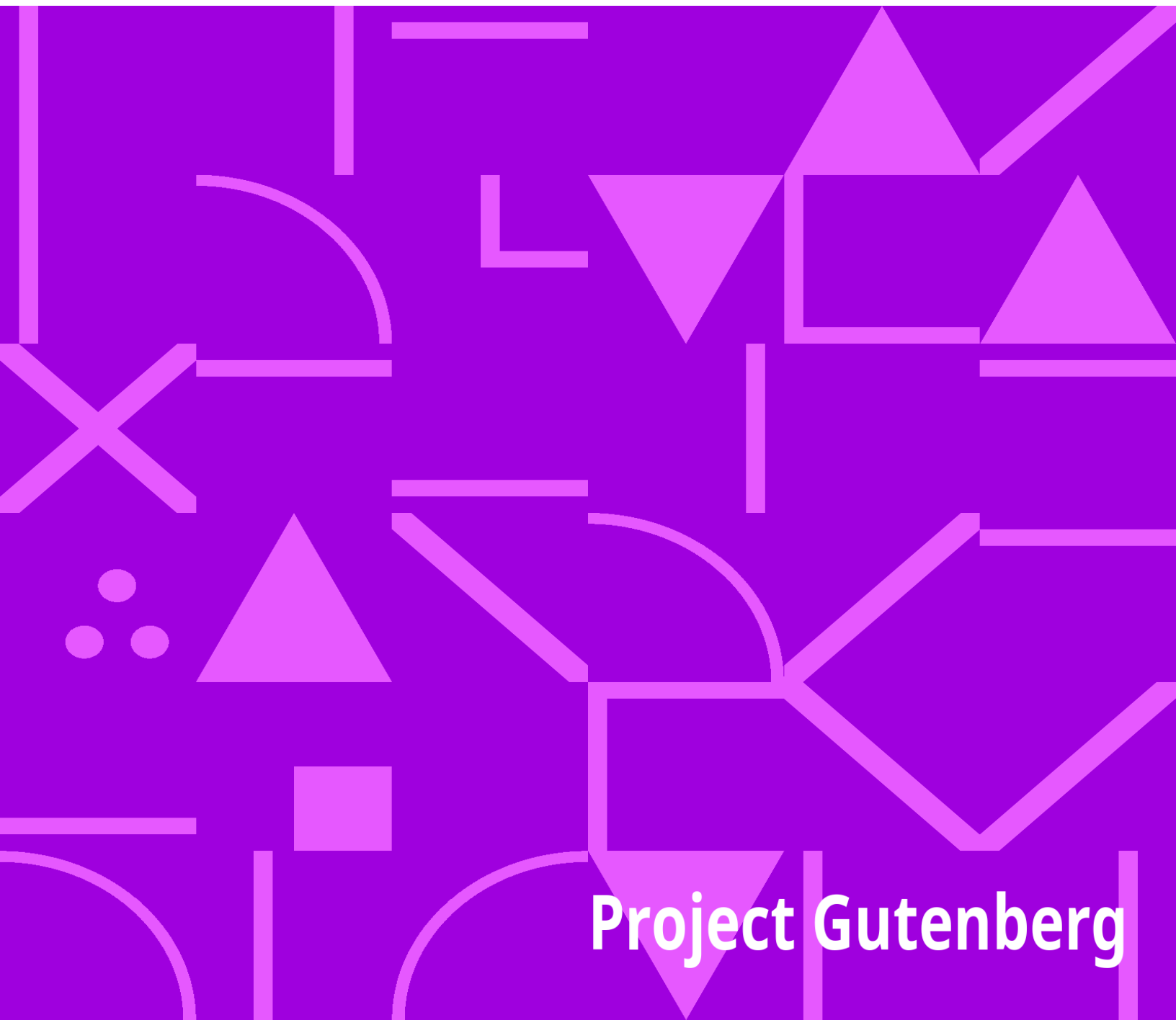


The Anti-Slavery Examiner, Omnibus

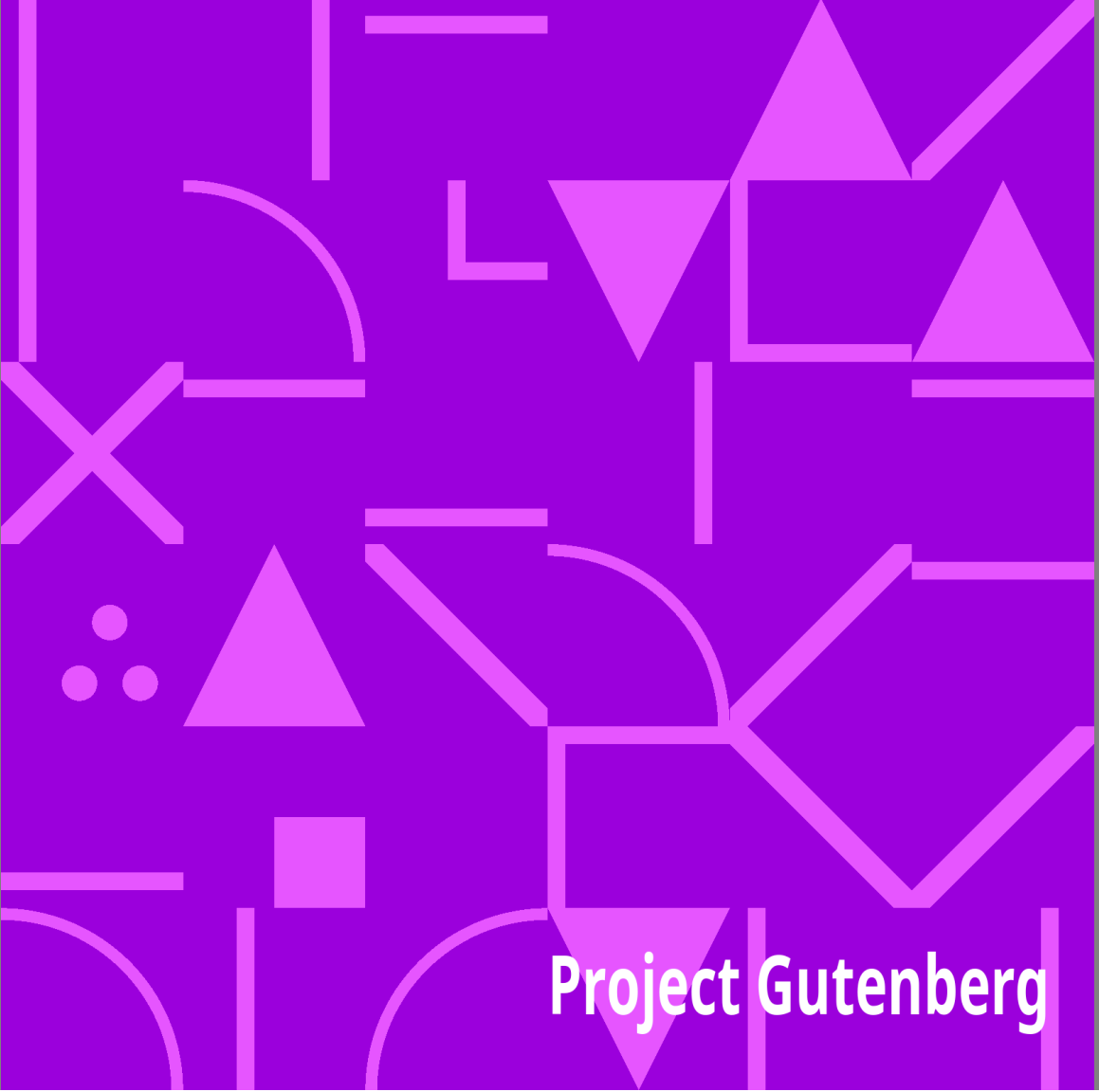
American Anti-Slavery Society

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THE ANTI-SLAVERY EXAMINER

By The American Anti-
Slavery Society 1836

1. [No. 1. To the People of the United States; or, To Such Americans As Value Their Rights, and Dare to Maintain Them.](#)
2. [No. 2. Appeal to the Christian Women of the South.](#)
3. [No. 2. Appeal to the Christian Women of the South. Revised and Corrected.](#)
4. [No. 3. Letter of Gerrit Smith to Rev. James Smylie, of the State of Mississippi.](#)
5. [No. 4. The Bible Against Slavery. An Inquiry Into the Patriarchal and Mosaic Systems on the Subject of Human Rights.](#)
6. [No. 4. The Bible Against Slavery. An Inquiry Into the Patriarchal and Mosaic Systems on the Subject of Human Rights. Third Edition—Revised.](#)
7. [No. 4. The Bible Against Slavery. An Inquiry Into the Patriarchal and Mosaic Systems on the Subject of Human Rights. Fourth Edition—Enlarged.](#)
8. [No. 5. Power of Congress Over the District of Columbia.](#)
9. [No. 5. Power of Congress Over the District of Columbia. With Additions by the Author.](#)
10. [No. 5. Power of Congress Over the District of Columbia. Fourth Edition.](#)
11. [No. 6. NARRATIVE OF JAMES WILLIAMS, AN AMERICAN SLAVE.](#)
12. [No. 7. EMANCIPATION IN THE WEST INDIES.](#)
13. [No. 8. CORRESPONDENCE, BETWEEN THE HON. F.H. ELMORE, ONE OF THE SOUTH CAROLINA DELEGATION IN CONGRESS, AND JAMES G. BIRNEY, ONE OF THE SECRETARIES OF THE AMERICAN ANTI-SLAVERY SOCIETY.](#)
14. [No. 9. LETTER OF GERRIT SMITH, TO HON. HENRY CLAY.](#)
15. [No. 10. EMANCIPATION In The WEST INDIES, IN 1838.](#)
16. [THE CHATTEL PRINCIPLE THE ABHORRENCE OF JESUS CHRIST AND THE APOSTLES; OR NO REFUGE FOR AMERICAN SLAVERY IN THE NEW TESTAMENT. 1839.](#)
17. [No. 10. American Slavery As It Is: Testimony of a Thousand Witnesses.](#)

18. [No. 10. Speech of Hon. Thomas Morris, of Ohio, in Reply to the Speech of the Hon. Henry Clay.](#)
19. [No. 11. The Constitution A Pro-Slavery Compact Or Selections From the Madison Papers, &c.](#)
20. [No. 11. The Constitution A Pro-Slavery Compact Or Selections From the Madison Papers, &c. Second Edition, Enlarged.](#)
21. [No. 12. Chattel Principle The Abhorrence of Jesus Christ and the Apostles; Or No Refuge for American Slavery in the New Testament.](#)
22. [On the Condition of the Free People of Color in the United States.](#)
23. [No. 13. Can Abolitionists Vote or Take Office Under the United States Constitution?](#)
24. [Address to the Friends of Constitutional Liberty, on the Violation by the United States House of Representatives of the Right of Petition at the Executive Committee of the American Anti-Slavery Society.](#)

THE ANTI-SLAVERY EXAMINER

VOL. I. AUGUST, 1836. NO. 1.

TO THE
PEOPLE OF THE UNITED STATES;
OR, TO SUCH AMERICANS AS VALUE THEIR RIGHTS, AND
DARE TO MAINTAIN THEM.

FELLOW COUNTRYMEN!

A crisis has arrived, in which rights the most important which civil society can acknowledge, and which have been acknowledged by our Constitution and laws, in terms the most explicit which language can afford, are set at nought by men, whom your favor has invested with a brief authority. By what standard is your liberty of conscience, of speech, and of the press, now measured? Is it by those glorious charters you have inherited from your fathers, and which your present rulers have called Heaven to witness, they would preserve inviolate? Alas! another standard has been devised, and if we would know what rights are conceded to us by our own servants, we must consult the COMPACT by which the South engages on certain conditions to give its trade and votes to Northern men. All rights not allowed by this compact, we now hold by sufferance, and our Governors and Legislatures avow their readiness to deprive us of them, whenever in their opinion, legislation on the subject shall be "necessary^A." This compact is not indeed published to the world, under the hands and seals of the contracting parties, but it is set forth in official messages,—in resolutions of the State and National Legislatures—in the proceedings of popular meetings, and in acts of lawless violence. The temples of the Almighty have been sacked, because the worshipers did not conform their consciences to the compact^B. Ministers of the gospel have been dragged as criminals from

the altar to the bar, because they taught the people from the Bible, doctrines proscribed by the compact^C. Hundreds of free citizens, peaceably assembled to express their sentiments, have, because such an expression was forbidden by the compact, been forcibly dispersed, and the chief actor in this invasion on the freedom of speech, instead of being punished for a breach of the peace, was rewarded for his fidelity to the compact with an office of high trust and honor^D.

^A: See the Messages of the Governors of New-York and Connecticut, the resolutions of the New-York Legislature, and the bill introduced into the Legislature of Rhode Island.

^B: Churches in New-York attacked by the mob in 1834.

^C: See two cases within the last twelve months in New Hampshire.

^D: Samuel Beardsley, Esq. the leader of the Utica riot, was shortly afterwards appointed Attorney General of the state of New-York.

* * * * *

POSTAGE—This Periodical contains one sheet, postage under 100 miles, is 1 1-2 cents over 100 miles, 2 1-2 cents.

"The freedom of the press—the palladium of liberty," was once a household proverb. Now, a printing office^A is entered by ruffians, and its types scattered in the highway, because disobedient to the compact. A Grand Jury, sworn to "present all things truly as they come to their knowledge," refuse to indict the offenders; and a senator in Congress rises in his place, and appeals to the outrage in the printing office, and the conduct of the Grand Jury as evidence of the good faith with which the people of the state of New York were resolved to observe the compact^B.

^A: Office of the Utica Standard and Democrat newspaper.

^B: See speech of the Hon. Silas Wright in the U.S. Senate of Feb. 1836.

The Executive Magistrate of the American Union, unmindful of his obligation to execute the laws for the equal benefit of his fellow citizens,

has sanctioned a censorship of the press, by which papers incompatible with the compact are excluded from the southern mails, and he has officially advised Congress to do by law, although in violation of the Constitution, what he had himself virtually done already in despite of both. The invitation has indeed been rejected, but by the Senate of the United States only, after a portentous struggle—a struggle which distinctly exhibited the *political* conditions of the compact, as well as the fidelity with which those conditions are observed by a northern candidate for the Presidency. While in compliance with these conditions, a powerful minority in the Senate were forging fetters for the PRESS, the House of Representatives were employed in breaking down the right of PETITION. On the 26th May last, the following resolution, reported by a committee was adopted by the House, viz.

"Resolved, that all Petitions, Memorials, Resolutions and Propositions relating in any way, or to any extent whatever, to the subject of Slavery, shall without being either printed or referred, be laid on the table, and that no further action whatever shall be had thereon." Yeas, 117. Nays, 68.

Bear with us, fellow countrymen, while we call your attention to the outrage on your rights, the contempt of personal obligations and the hardened cruelty involved in this detestable resolution. Condemn us not for the harshness of our language, before you hear our justification. We shall speak only the truth, but we shall speak it as freemen.

The right of petition is founded in the very institution of civil government, and has from time immemorial been acknowledged as among the unquestionable privileges of our English ancestors. This right springs from the great truth that government is established for the benefit of the governed; and it forms the medium by which the people acquaint their rulers with their wants and their grievances. So accustomed were the Americans to the exercise of this right, even during their subjection to the British crown, that, on the formation of the Federal Constitution, the Convention not conceiving that it could be endangered, made no provision for its security. But in the very first Congress that assembled under the new Government, the omission was repaired. It was thought some case might possibly occur, in which this right might prove troublesome to a dominant

faction, who would endeavor to stifle it. An amendment was therefore proposed and adopted, by which Congress is restrained from making any law abridging "the right of the People, peaceably to assemble, and to petition the Government for a redress of grievances." Had it not been for this prudent jealousy of our Fathers, instead of the resolution I have transcribed, we should have had a LAW, visiting with pains and penalties, all who dared to petition the Federal Government, in behalf of the victims of oppression, held in bondage by its authority. The present resolution cannot indeed consign such petitioners to the prison or the scaffold, but it makes the right to petition a congressional boon, to be granted or withheld at pleasure, and in the present case effectually withholds it, by tendering it nugatory.

Petitions are to inform the Government of the wishes of the people, and by calling forth the action of the Legislature, to inform the constituents how far their wishes are respected by their representatives. The information thus mutually given and received is essential to a faithful and enlightened exercise of the right of legislation on the one hand, and of suffrage on the other. But the resolution we are considering, provides that no petition in relation to slavery, shall be printed for the information of the members, nor referred to a committee to ascertain the truth of its statements; nor shall any vote be taken, in regard to it, by which the People may learn the sentiments of their representatives.

If Congress may thus dispose of petitions on one subject, they may make the same disposition of petitions on any and every other subject. Our representatives are bound by oath, not to pass any law abridging the right of petition, but if this resolution is constitutional, they may order every petition to be delivered to their door-keeper, and by him to be committed to the flames; for why preserve petitions on which *no action can be had*? Had the resolution been directed to petitions for an object palpably unconstitutional, it would still have been without excuse. The construction of the Constitution is a matter of opinion, and every citizen has a right to express that opinion in a petition, or otherwise.

But this usurpation is aggravated by the almost universal admission that Congress does possess the constitutional power to legislate on the subject of slavery in the District of Columbia and the Territories. No wonder that a

distinguished statesman refused to sanction the right of the House to pass such a resolution by even voting against it^A. The men who perpetrated this outrage had sworn to support the Constitution, and will they hereafter plead at the bar of their Maker, that they had kept their oath, because they had abridged the right of petition *by a resolution*, and not by law!

^A: Mr. J.Q. Adams, on his name being called, refused to vote, saying, "the resolution is in direct violation of the Constitution of the United States, and the privileges of the members of this House."

This resolution not only violates the rights of the people, but it nullifies the privileges and obligations of their representatives. It is an undoubted right and duty of every member of Congress to propose any measure within the limits of the Constitution, which he believes is required by the interests of his constituents and the welfare of his country. Now mark the base surrender of this right—the wicked dereliction of this duty. All "resolutions and propositions" relating "in *any way* or to *any extent* whatever to the subject of slavery," shall be laid on the table, and "no further action *whatever* shall be had thereon." What a spectacle has been presented to the American people!—one hundred and seventeen members of Congress relinquishing their own rights, cancelling their own solemn obligations, forcibly depriving the other members of their legislative privileges, abolishing the freedom of debate, condemning the right of petition, and prohibiting present and future legislation on a most important and constitutional subject, by a rule of order!

In 1820, the New-York Legislature instructed the representatives from that state in Congress, to insist on making "the prohibition of slavery an indispensable condition of admission" of certain territories into the union. In 1828, the Legislature of Pennsylvania instructed the Pennsylvania members of Congress, to vote for the abolition of slavery in the district of Columbia. In vain hereafter shall a representative present the instructions of his constituents, or the injunctions of a sovereign state. No question shall be taken, or any motion he may offer, in *any way*, or to *any extent*, relating to slavery!

Search the annals of legislation, and you will find no precedent for such a profligate act of tyranny, exercised by a majority over their fellow

legislators, nor for such an impudent contempt of the rights of the people.

But this resolution is no less barbarous than it is profligate and impudent. Remember, fellow countrymen! that the decree has gone forth, that there shall be no legislation by Congress, *in any way*, or to *any extent whatever*, on the subject of slavery. Now call to mind, that Congress is the local and only legislature of the District of Columbia, which is placed by the Constitution under its "exclusive jurisdiction *in all cases whatsoever*." In this District, there are thousands of human beings divested of the rights of humanity, and subjected to a negotiable despotism; and Congress is the only power that can extend the shield of law to protect them from cruelty and abuse; and that shield, it is now resolved, shall not be extended in any way, or to any extent! But this is not all. The District has become the great slave-market of North America, and the port of Alexandria is the Guinea of our proud republic, whence "cargoes of despair" are continually departing^A.

^A: One dealer, John Armfield, advertises in the National Intelligencer of the 10th of February last, that he has three vessels in the trade, and they will leave the port of Alexandria on the first and fifteenth of each month.

In the city which bears the name of the Father of his country, dealers in human flesh receive licenses for the vile traffic, at four hundred dollars each per annum; and the gazettes of the Capital have their columns polluted with the advertisements of these men, offering cash for children and youth, who, torn from their parents and families, are to wear out their existence on the plantations of the south.^A For the safe keeping of these children and youth, till they are shipped for the Mississippi, private pens and prisons are provided, and the UNITED STATES' JAIL used when required. The laws of the District in relation to slaves and free negroes are of the most abominable and iniquitous character. Any free citizen with a dark skin, may be arrested on pretence of being a fugitive slave, and committed to the UNITED STATES' PRISON, and unless within a certain number of days he proves his freedom, while immured within its walls, he is, under authority of Congress, sold as a slave for life. Do you ask why? Let the blood mantle in your cheeks, while we give you the answer of the LAW—"to pay his jail fees!!"

A: Twelve hundred negroes are thus advertised for in the National Intelligencer of the 28th of March last. The negroes wanted are generally from the age of ten or twelve years to twenty-five, and of both sexes.

On the 11th of January, 1827, the Committee for the District of Columbia, (themselves slaveholders) introduced a bill providing that the jail fees should hereafter be a county charge. The bill did not pass; and by the late resolution, a statute unparalleled for injustice and atrocity by any mandate of European despotism, is to be like the law of the Medes and Persians, that altereth not, since no proposition for its repeal or modification can be entertained.

The Grand Jury of Alexandria presented the slave trade of that place, as "disgraceful to our character as citizens of a free government," and as "a grievance demanding legislative redress;" that is, the interposition of Congress—but one hundred and seventeen men have decided that there shall be "no action whatever" by Congress in relation to slavery.

In March, 1816, John Randolph submitted the following resolution to the House of Representatives: "*Resolved*, That a Committee be appointed to inquire into the existence of an *inhuman* and illegal traffic of slaves, carried on in and through the District of Columbia, and to report whether any, and what measures are necessary for putting a stop to the same." The COMPACT had not then been formed and the resolution was *adopted*. Such a resolution would now "be laid on the table," and treated with silent contempt.

In 1828, eleven hundred inhabitants of the District presented a petition to Congress, complaining of the "DOMESTIC SLAVE-TRADE" as a grievance disgraceful in its character, and "even more demoralizing its influence" than the foreign traffic. The petition concluded as follows: "The people of this District have within themselves no means of legislative redress, and we therefore appeal to your Honorable body as the *only one* vested by the American Constitution with power to relieve us." No more shall such appeals be made to the national council. What matters it, that the people of the District are annoyed by the human shambles opened among them? What matters it, that Congress is "the only body vested by the

American Constitution with power to relieve" them? The compact requires that no action shall be had on *any* petition relating to slavery.

The horse or the ox may be protected in the District, by act of Congress, from the cruelty of its owner; but MAN, created in the image of God, shall, if his complexion be dark, be abandoned to every outrage. The negro may be bound alive to the stake in front of the Capitol, as well as in the streets of St. Louis—his shrieks may resound through the representative hall—and the stench of his burning body may enter the nostrils of the law-givers—but no vote may rebuke the abomination—no law forbid its repetition.

The representatives of the nation may regulate the traffic in sheep and swine, within the ten miles square; but the SLAVERS of the District may be laden to suffocation with human cattle—the horrors of the middle passage may be transcended at the wharves of Alexandria; but Congress may not limit the size of the cargoes, or provide for the due feeding and watering the animals composing them!—The District of Columbia is henceforth to be the only spot on the face of the globe, subjected to a civilized and Christian police, in which avarice and malice may with legal impunity inflict on humanity whatever sufferings ingenuity can devise, or depravity desire.

And this accumulation of wickedness, cruelty and baseness, is to render the seat of the federal government the scoff of tyrants and the reproach of freemen FOREVER! On the 9th of January 1829, the House of Representatives passed the following vote. "*Resolved*, that the committee of the District of Columbia be instructed to inquire into the expediency of providing by law, for the gradual abolition of Slavery in the District, in such manner that no individual shall be injured thereby." Never again while the present rule of order is in force, can similar instructions be given to a committee—never again shall even an inquiry be made into the expediency of abolishing slavery and the slave-trade in the District. What stronger evidence can we have, of the growing and spreading corruption caused by slavery, than that one hundred and seventeen republican legislators professed believers in Christianity—many of them from the North, aye even from the land of the Pilgrims, should strive to render such curses PERPETUAL!

The flagitiousness of this resolution is aggravated if possible by the arbitrary means by which its adoption was secured. No representative of the People was permitted to lift up his voice against it—to plead the commands of the Constitution which is violated—his own privileges and duties which it contemned—the rights of his constituents on which it trampled—the chains of justice and humanity which it impiously outraged. Its advocates were afraid and ashamed to discuss it, and forbidding debate, they perpetrated in silence the most atrocious act that has ever disgraced an American Legislature^A. And was no reason whatever, it may be asked, assigned for this bold invasion of our rights, this insult to the sympathies of our common nature? Yes—connected with the resolution was a preamble explaining its OBJECT. Read it, fellow countrymen, and be equally astonished at the impudence of your rulers in avowing such an object, and at their folly in adopting such an expedient to effect it. The lips of a free people are to be sealed by insult and injury!

^A: A debate was allowed on a motion to re-commit the report, for the purpose of preparing a resolution that Congress has no constitutional power to interfere with slavery in the District of Columbia; but when the sense of the House was to be taken on the resolution reported by the committees, all debate was prevented by the previous question.

"Whereas, it is extremely important and desirable that the AGITATION on this subject should be finally ARRESTED, for the purpose of restoring *tranquillity* to the public mind, your committee respectfully recommend the following resolution."

ORDER REIGNS IN WARSAW, were the terms in which the triumph of Russia over the liberties of Poland was announced to the world. When the right of petition shall be broken down—when no whisper shalt be heard in Congress in behalf of human rights—when the press shall be muzzled, and the freedom of speech destroyed by gag-laws, then will the slaveholders announce, that TRANQUILLITY IS RESTORED TO THE PUBLIC MIND!

Fellow countrymen! is such the tranquillity you desire—is such the heritage you would leave to your children? Suffer not the present outrage, by effecting its avowed object, to invite farther aggressions on your rights. The

chairman of the committee boasted that the number of petitioners the present session, for the abolition of slavery in the District, was *only* thirty-four thousand! Let us resolve, we beseech you, that at the next session the number shall be A MILLION. Perhaps our one hundred and seventeen representatives will then abandon in despair their present dangerous and unconstitutional expedient for tranquilizing the public mind.

The purpose of this address, is not to urge upon you our own views of the sinfulness of slavery, and the safety of its immediate abolition; but to call your attention to the conduct of your rulers. Let no one think for a moment, that because he is not an abolitionist, his liberties are not and will not be invaded. We have no rights, distinct from the rights of the whole people. Calumny, falsehood, and popular violence, have been employed in vain, to tranquilize abolitionists. It is now proposed to soothe them, by despoiling them of their Constitutional rights; but they cannot be despoiled *alone*. The right of petition and the freedom of debate are as sacred and valuable to those who dissent from our opinions, as they are to ourselves. Can the Constitution at the same time secure liberty to you, and expose us to oppression—give you freedom of speech, and lock our lips—respect your right of petition, and treat ours with contempt? No, fellow countrymen!—we must be all free, or all slaves together. We implore you, then, by all the obligations of interest, of patriotism, and of religion—by the remembrance of your Fathers—by your love for your children, to unite with us in maintaining our common, and till lately, our unquestioned political rights.

We ask you as men to insist that your servants acting as the local legislators of the District of Columbia, shall respect the common rights and decencies of humanity.—We ask you as freemen, not to permit your constitutional privileges to be trifled with, by those who have sworn to maintain them.—We ask you as Christian men, to remember that by sanctioning the sinful acts of your agents, you yourselves assume their guilt.

We have no candidates to recommend to your favor—we ask not your support for any political party; but we do ask you to give your suffrages hereafter only to such men as you have reason to believe will not sacrifice your rights, and their own obligations, and the claims of mercy and the commands of God, to an iniquitous and mercenary COMPACT. If we cannot have northern Presidents and other officers of the general

government except in exchange for freedom of conscience, of speech, of the press and of legislation, then let all the appointments at Washington be given to the South. If slaveholders will not trade with us, unless we consent to be slaves ourselves, then let us leave their money, and their sugar, and their cotton, to perish with them.

Fellow countrymen! we wish, we recommend no action whatever, inconsistent with the laws and constitutions of our country, or the precepts of our common religion, but we beseech you to join with us in resolving, that while we will respect the rights of others, we will at every hazard maintain our own.

In behalf of the American Anti-Slavery Society.

ARTHUR TAPPAN, \
WM. JAY, \
JNO. RANKIN, \
LEWIS TAPPAN, \
S.S. JOCELYN, \
S.E. CORNISH, | *Executive Committee.*
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LA ROY SUNDERLAND, /
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ELIZUR WRIGHT, JR. /

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THE ANTI-SLAVERY EXAMINER.

VOL. I. SEPTEMBER 1836. No. 2.

APPEAL TO THE CHRISTIAN WOMEN OF THE SOUTH,

BY A.E. GRIMKÉ.

"Then Mordecai commanded to answer Esther, Think not within thyself that thou shalt escape in the king's house more than all the Jews. For if thou altogether holdest thy peace at this time, then shall there enlargement and deliverance arise to the Jews from another place: but thou and thy father's house shall be destroyed: and who knoweth whether thou art come to the kingdom for such a time as this. And Esther bade them return Mordecai this answer:—and so will I go in unto the king, which is not according to law, and *if I perish, I perish.*" Esther IV. 13-16.

RESPECTED FRIENDS,

It is because I feel a deep and tender interest in your present and eternal welfare that I am willing thus publicly to address you. Some of you have loved me as a relative, and some have felt bound to me in Christian sympathy, and Gospel fellowship; and even when compelled by a strong sense of duty, to break those outward bonds of union which bound us together as members of the same community, and members of the same religious denomination, you were generous enough to give me credit, for sincerity as a Christian, though you believed I had been most strangely deceived. I thanked you then for your kindness, and I ask you *now*, for the sake of former confidence, and former friendship, to read the following pages in the spirit of calm investigation and fervent prayer. It is because you have known me, that I write thus unto you.

But there are other Christian women scattered over the Southern States, and of these, a very large number have never seen me, and never heard my name, and feel *no* personal interest whatever in *me*. But I feel an interest in *you*, as branches of the same vine from whose root I daily draw the principle of spiritual vitality—Yes! Sisters in Christ I feel an interest in *you*, and often has the secret prayer arisen on your behalf, Lord "open thou their eyes that they may see wondrous things out of thy Law"—It is then, because I *do feel* and *do pray* for you, that I thus address you upon a subject about which of all others, perhaps you would rather not hear any thing; but, "would to God ye could bear with me a little in my folly, and indeed bear with me, for I am jealous over you with godly jealousy." Be not afraid then to read my appeal; it is *not* written in the heat of passion or prejudice, but in that solemn calmness which is the result of conviction and duty. It is true, I am going to tell you unwelcome truths, but I mean to speak those *truths in love*, and remember Solomon says, "faithful are the *wounds* of a friend." I do not believe the time has yet come when *Christian women* "will not endure sound doctrine," even on the subject of Slavery, if it is spoken to them in tenderness and love, therefore I now address *you*.

* * * * *

POSTAGE.—This periodical contains four and a half sheets. Postage under 100 miles, 6 3-4 cents; over 100 miles, 11 1-4 cents. Please read and circulate.

To all of you then, known or unknown, relatives or strangers, (for you are all *one* to Christ,) I would speak. I have felt for you at this time, when unwelcome light is pouring in upon the world on the subject of slavery; light which even Christians would exclude, if they could, from our country, or at any rate from the southern portion of it, saying, as its rays strike the rock bound coasts of New England and scatter their warmth and radiance over her hills and valleys, and from thence travel onward over the Palisades of the Hudson, and down the soft flowing waters of the Delaware and gild the waves of the Potomac, "hitherto shalt thou come and no further;" I know that even professors of His name who has been emphatically called the "Light of the world" would, if they could, build a wall of adamant around the Southern States whose top might reach unto heaven, in order to shut out the light which is bounding from mountain to mountain and from the hills to the plains and valleys beneath, through the vast extent of our Northern States. But believe me, when I tell you, their attempts will be as utterly fruitless as were the efforts of the builders of Babel; and why? Because moral, like natural light, is so extremely subtle in its nature as to overleap all human barriers, and laugh at the puny efforts of man to control it. All the excuses and palliations of this system must inevitably be swept away, just as other "refuges of lies" have been, by the irresistible torrent of a rectified public opinion. "The *supporters* of the slave system," says Jonathan Dymond in his admirable work on the Principles of Morality, "will *hereafter* be regarded with the *same* public feeling, as he who was an advocate for the slave trade *now is*." It will be, and that very soon, clearly perceived and fully acknowledged by all the virtuous and the candid, that in *principle* it is as sinful to hold a human being in bondage who has been born in Carolina, as one who has been born in Africa. All that sophistry of argument which has been employed to prove, that although it is sinful to send to Africa to procure men and women as slaves, who have never been in slavery, that still, it is not sinful to keep those in bondage who have come down by inheritance, will be utterly overthrown. We must come back to the good old doctrine of our forefathers who declared to the world, "this self evident truth that *all* men are created equal, and that they have certain *inalienable* rights among which are life, *liberty*, and the pursuit of happiness." It is even a greater absurdity to suppose a man can be legally born a slave under *our free Republican* Government, than under the petty despotisms of barbarian Africa. If then, we have no right to enslave an

African, surely we can have none to enslave an American; if it is a self evident truth that *all* men, every where and of every color are born equal, and have an *inalienable right to liberty*, then it is equally true that *no* man can be born a slave, and no man can ever *rightfully* be reduced to *involuntary* bondage and held as a slave, however fair may be the claim of his master or mistress through wills and title-deeds.

But after all, it may be said, our fathers were certainly mistaken, for the Bible sanctions Slavery, and that is the highest authority. Now the Bible is my ultimate appeal in all matters of faith and practice, and it is to *this test* I am anxious to bring the subject at issue between us. Let us then begin with Adam and examine the charter of privileges which was given to him. "Have dominion over the fish of the sea, and over the fowl of the air, and over every living thing that moveth upon the earth." In the eighth Psalm we have a still fuller description of this charter which through Adam was given to all mankind. "Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet. All sheep and oxen, yea, and the beasts of the field, the fowl of the air, the fish of the sea, and whatsoever passeth through the paths of the seas." And after the flood when this charter of human rights was renewed, we find *no additional* power vested in man. "And the fear of you and the dread of you shall be upon every beast of the earth, and every fowl of the air, and upon all that moveth upon the earth, and upon all the fishes of the sea, into your hand are they delivered." In this charter, although the different kinds of *irrational* beings are so particularly enumerated, and supreme dominion over *all of them* is granted, yet *man* is *never* vested with this dominion *over his fellow man*; he was never told that any of the human species were put *under his feet*; it was only *all things*, and man, who was created in the image of his Maker, *never* can properly be termed a *thing*, though the laws of Slave States do call him "a chattel personal;" *Man* then, I assert *never* was put *under the feet of man*, by that first charter of human rights which was given by God, to the Fathers of the Antediluvian and Postdiluvian worlds, therefore this doctrine of equality is based on the Bible.

But it may be argued, that in the very chapter of Genesis from which I have last quoted, will be found the curse pronounced upon Canaan, by which his posterity was consigned to servitude under his brothers Shem and Japheth. I know this prophecy was uttered, and was most fearfully and wonderfully

fulfilled, through the immediate descendants of Canaan, *i.e.* the Canaanites, and I do not know but it has been through all the children of Ham, but I do know that prophecy does *not* tell us what *ought to be*, but what actually does take place, ages after it has been delivered, and that if we justify America for enslaving the children of Africa, we must also justify Egypt for reducing the children of Israel to bondage, for the latter was foretold as explicitly as the former. I am well aware that prophecy has often been urged as an excuse for Slavery, but be not deceived, the fulfillment of prophecy will *not cover one sin* in the awful day of account. Hear what our Saviour says on this subject; "it must needs be that offences come, but *woe unto that man through whom they come*"—Witness some fulfillment of this declaration in the tremendous destruction of Jerusalem, occasioned by that most nefarious of all crimes the crucifixion of the Son of God. Did the fact of that event having been foretold, exculpate the Jews from sin in perpetrating it; No—for hear what the Apostle Peter says to them on this subject, "Him being delivered by the determinate counsel and foreknowledge of God, ye have taken, and by *wicked* hands have crucified and slain." Other striking instances might be adduced, but these will suffice.

But it has been urged that the patriarchs held slaves, and therefore, slavery is right. Do you really believe that patriarchal servitude was like American slavery? Can you believe it? If so, read the history of these primitive fathers of the church and be undeceived. Look at Abraham, though so great a man, going to the herd himself and fetching a calf from thence and serving it up with his own hands, for the entertainment of his guests. Look at Sarah, that princess as her name signifies, baking cakes upon the hearth. If the servants they had were like Southern slaves, would they have performed such comparatively menial offices for themselves? Hear too the plaintive lamentation of Abraham when he feared he should have no son to bear his name down to posterity. "Behold thou hast given me no seed, &c., one born in my house *is mine* heir." From this it appears that one of his *servants* was to inherit his immense estate. Is this like Southern slavery? I leave it to your own good sense and candor to decide. Besides, such was the footing upon which Abraham was with *his* servants, that he trusted them with arms. Are slaveholders willing to put swords and pistols into the hands of their slaves? He was as a father among his servants; what are planters and masters generally among theirs? When the institution of circumcision was

established, Abraham was commanded thus; "He that is eight days old shall be circumcised among you, *every* man-child in your generations; he that is born in the house, or bought with money of any stranger which is not of thy seed." And to render this command with regard to his *servants* still more impressive it is repeated in the very next verse; and herein we may perceive the great care which was taken by God to guard the *rights of servants* even under this "dark dispensation." What too was the testimony given to the faithfulness of this eminent patriarch. "For I know him that he will command his children and his *household* after him, and they shall keep the way of the Lord to do justice and judgment." Now my dear friends many of you believe that circumcision has been superseded by baptism in the Church; *Are you* careful to have *all* that are born in your house or bought with money of any stranger, baptized? *Are you* as faithful as Abraham to command *your household to keep the way of the Lord*? I leave it to your own consciences to decide. Was patriarchal servitude then like American Slavery?

But I shall be told, God sanctioned Slavery, yea commanded Slavery under the Jewish Dispensation. Let us examine this subject calmly and prayerfully. I admit that a species of *servitude* was permitted to the Jews, but in studying the subject I have been struck with wonder and admiration at perceiving how carefully the servant was guarded from violence, injustice and wrong. I will first inform you how these servants became servants, for I think this a very important part of our subject. From consulting Horne, Calmet and the Bible, I find there were six different ways by which the Hebrews became servants legally.

1. If reduced to extreme poverty, a Hebrew might sell himself, i.e. his services, for six years, in which case *he* received the purchase money *himself*. Lev. xxv, 39.

2. A father might sell his children as servants, i.e. his *daughters*, in which circumstance it was understood the daughter was to be the wife or daughter-in-law of the man who bought her, and the *father* received the price. In other words, Jewish women were sold as *white women* were in the first settlement of Virginia—as *wives*, *not* as slaves. Ex. xxi, 7.

3. Insolvent debtors might be delivered to their creditors as servants. 2 Kings iv, 1.

4. Thieves not able to make restitution for their thefts, were sold for the benefit of the injured person. Ex. xxii, 3.

5. They might be born in servitude. Ex. xxi, 4.

6. If a Hebrew had sold himself to a rich Gentile, he might be redeemed by one of his brethren at any time the money was offered; and he who redeemed him, was *not* to take advantage of the favor thus conferred, and rule over him with rigor. Lev. xxv, 47-55.

Before going into an examination of the laws by which these servants were protected, I would just ask whether American slaves have become slaves in any of the ways in which the Hebrews became servants. Did they sell themselves into slavery and receive the purchase money into their own hands? No! Did they become insolvent, and by their own imprudence subject themselves to be sold as slaves? No! Did they steal the property of another, and were they sold to make restitution for their crimes? No! Did their present masters, as an act of kindness, redeem them from some heathen tyrant to whom *they had sold themselves* in the dark hour of adversity? No! Were they born in slavery? No! No! not according to *Jewish Law*, for the servants who were born in servitude among them, were born of parents who had *sold themselves* for six years: Ex. xxi, 4. Were the female slaves of the South sold by their fathers? How shall I answer this question? Thousands and tens of thousands never were, *their fathers never* have received the poor compensation of silver or gold for the tears and toils, the suffering, and anguish, and hopeless bondage of *their* daughters. They labor day by day, and year by year, side by side, in the same field, if haply their daughters are permitted to remain on the same plantation with them, instead of being as they often are, separated from their parents and sold into distant states, never again to meet on earth. But do the *fathers of the South ever sell their daughters*? My heart beats, and my hand trembles, as I write the awful affirmative, Yes! The fathers of this Christian land often sell their daughters, *not* as Jewish parents did, to be the wives and daughters-in-law of the man who buys them, but to be the abject slaves of petty tyrants and irresponsible masters. Is it not so, my friends? I leave it to your own candor to

corroborate my assertion. Southern slaves then have *not* become slaves in any of the six different ways in which Hebrews became servants, and I hesitate not to say that American masters *cannot* according to *Jewish law* substantiate their claim to the men, women, or children they now hold in bondage.

But there was one way in which a Jew might illegally be reduced to servitude; it was this, he might be *stolen* and afterwards sold as a slave, as was Joseph. To guard most effectually against this dreadful crime of manstealing, God enacted this severe law. "He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death^{[A](#)}." As I have tried American Slavery by *legal* Hebrew servitude, and found, (to your surprise, perhaps,) that Jewish law cannot justify the slaveholder's claim, let us now try it by *illegal* Hebrew bondage. Have the Southern slaves then been stolen? If they did not sell themselves into bondage; if they were not sold as insolvent debtors or as thieves; if they were not redeemed from a heathen master to whom they had sold themselves; if they were not born in servitude according to Hebrew law; and if the females were not sold by their fathers as wives and daughters-in-law to those who purchased them; then what shall we say of them? what can we say of them? but that according to *Hebrew Law* they have been stolen.

^{[A](#)}: And again, "If a man be found stealing any of his brethren of the children of Israel, and maketh merchandise of him, or selleth him; then *that thief shall die*, and thou shalt put away evil from among you." Deut. xxiv, 7.

But I shall be told that the Jews had other servants who were absolute slaves. Let us look a little into this also. They had other servants who were procured in two different ways.

1. Captives taken in war were reduced to bondage instead of being killed; but we are not told that their children were enslaved. Deut. xx, 14.

2. Bondmen and bondmaids might be bought from the heathen round about them; these were left by fathers to their children after them, but it does not appear that the *children* of these servants ever were reduced to servitude. Lev. xxv, 44.

I will now try the right of the southern planter by the claims of Hebrew masters over their *heathen* slaves. Were the southern slaves taken captive in war? No! Were they bought from the heathen? No! for surely, no one will *now* vindicate the slave-trade so far as to assert that slaves were bought from the heathen who were obtained by that system of piracy. The only excuse for holding southern slaves is that they were born in slavery, but we have seen that they were *not* born in servitude as Jewish servants were, and that the children of heathen slaves were not legally subjected to bondage even under the Mosaic Law. How then have the slaves of the South been obtained?

I will next proceed to an examination of those laws which were enacted in order to protect the Hebrew and the Heathen servant; for I wish you to understand that *both* are protected by Him, of whom it is said "his mercies are over all his works." I will first speak of those which secured the rights of Hebrew servants. This code was headed thus:

1. Thou shalt not rule over him with rigor, but shalt fear thy God.
2. If thou buy a Hebrew servant, six years shall he serve, and in the seventh year he shall go out free for nothing. Ex. xx, 2^{[A](#)}.

^{[A](#)}: And when thou sendest him out free from thee, thou shalt not let him go away empty: Thou shalt furnish him *liberally* out of thy flock and out of thy floor, and out of thy wine-press: of that wherewith the Lord thy God hath blessed thee, shalt thou give unto him. Deut. xv, 13, 14.

3. If he come in by himself, he shall go out by himself; if he were married, then his wife shall go out with him.
4. If his master have given him a wife and she have borne him sons and daughters, the wife and her children shall be his master's, and he shall go out by himself.
5. If the servant shall plainly say, I love my master, my wife, and my children; I will not go out free; then his master shall bring him unto the Judges, and he shall bring him to the door, or unto the door-post, and his master shall bore his ear through with an awl, and he shall serve him *forever*. Ex. xxi, 3-6.

6. If a man smite the eye of his servant, or the eye of his maid, that it perish, he shall let him go *free* for his eye's sake. And if he smite out his man servant's tooth or his maid servant's tooth, he shall let him go *free* for his tooth's sake. Ex. xxi, 26, 27.

7. On the Sabbath rest was secured to servants by the fourth commandment. Ex. xx, 10.

8. Servants were permitted to unite with their masters three times in every year in celebrating the Passover, the feast of Pentecost, and the feast of Tabernacles; every male throughout the land was to appear before the Lord at Jerusalem with a gift; here the bond and the free stood on common ground. Deut. xvi.

9. If a man smite his servant or his maid with a rod, and he die under his hand, he shall be surely punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money. Ex. xxi, 20, 21.

From these laws we learn that Hebrew men servants were bound to serve their masters *only six years*, unless their attachment to their employers, their wives and children, should induce them to wish to remain in servitude, in which case, in order to prevent the possibility of deception on the part of the master, the servant was first taken before the magistrate, where he openly declared his intention of continuing in his master's service, (probably a public register was kept of such) he was then conducted to the door of the house, (in warm climates doors are thrown open,) and *there* his ear was *publicly* bored, and by submitting to this operation he testified his willingness to serve him *forever*, i.e. during his life, for Jewish Rabbins who must have understood Jewish *slavery*, (as it is called,) "affirm that servants were set free at the death of their masters and did *not* descend to their heirs:" or that he was to serve him until the year of Jubilee, when *all* servants were set at liberty. To protect servants from violence, it was ordained that if a master struck out the tooth or destroyed the eye of a servant, that servant immediately became *free*, for such an act of violence evidently showed he was unfit to possess the power of a master, and therefore that power was taken from him. All servants enjoyed the rest of the Sabbath and partook of the privileges and festivities of the three great Jewish Feasts; and if a servant died under the infliction of chastisement, his

master was surely to be punished. As a tooth for a tooth and life for life was the Jewish law, of course he was punished with death. I know that great stress has been laid upon the following verse: "Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money."

Slaveholders, and the apologists of slavery, have eagerly seized upon this little passage of scripture, and held it up as the masters' Magna Charta, by which they were licensed by God himself to commit the greatest outrages upon the defenceless victims of their oppression. But, my friends, was it designed to be so? If our Heavenly Father would protect by law the eye and the tooth of a Hebrew servant, can we for a moment believe that he would abandon that same servant to the brutal rape of a master who would destroy even life itself. Do we not rather see in this, the *only* law which protected masters, and was it not right that in case of the death of a servant, one or two days after chastisement was inflicted, to which other circumstances might have contributed, that the master should be protected when, in all probability, he never intended to produce so fatal a result? But the phrase "he is his money" has been adduced to show that Hebrew servants were regarded as mere *things*, "chattels personal;" if so, why were so many laws made to *secure their rights as men*, and to ensure their rising into equality and freedom? If they were mere *things*, why were they regarded as responsible beings, and one law made for them as well as for their masters? But I pass on now to the consideration of how the *female* Jewish servants were protected by *law*.

1. If she please not her master, who hath betrothed her to himself, then shall he let her be redeemed: to sell her unto another nation he shall have no power, seeing he hath dealt deceitfully with her.
2. If he have betrothed her unto his son, he shall deal with her after the manner of daughters.
3. If he take him another wife, her food, her raiment, and her duty of marriage, shall he not diminish.
4. If he do not these three unto her, then shall she go out *free* without money.

On these laws I will give you Calmet's remarks; "A father could not sell his daughter as a slave, according to the Rabbins, until she was at the age of puberty, and unless he were reduced to the utmost indigence. Besides, when a master bought an Israelitish girl, it was *always* with the presumption that he would take her to wife." Hence Moses adds, "if she please not her master, and he does not think fit to marry her, he shall set her at liberty," or according to the Hebrew, "he shall let her be redeemed." "To sell her to another nation he shall have no power, seeing he hath dealt deceitfully with her;" as to the engagement implied, at least of taking her to wife. "If he have betrothed her unto his son, he shall deal with her after the manner of daughters, i.e. he shall take care that his son uses her as his wife, that he does not despise or maltreat her. If he make his son marry another wife, he shall give her her dowry, her clothes and compensation for her virginity; if he does none of these three, she shall *go out free* without money." Thus were the *rights of female servants carefully secured by law* under the Jewish Dispensation; and now I would ask, are the rights of female slaves at the South thus secured? Are *they* sold only as wives and daughters-in-law, and when not treated as such, are they allowed to *go out free*? No! They have *all* not only been illegally obtained as servants according to Hebrew law, but they are also illegally *held* in bondage. Masters at the South and West have all forfeited their claims, (*if they ever had any,*) to their female slaves.

We come now to examine the case of those servants who were "of the heathen round about;" Were *they* left entirely unprotected by law? Horne in speaking of the law, "Thou shalt not rule over him with rigor, but shalt fear thy God," remarks, "this law Lev. xxv, 43; it is true speaks expressly of slaves who were of Hebrew descent; but as *alien born* slaves were ingrafted into the Hebrew Church by circumcision, *there is no doubt* but that it applied to *all* slaves;" if so, then we may reasonably suppose that the other protective laws extended to them also; and that the only difference between Hebrew and Heathen servants lay in this, that the former served but six years unless they chose to remain longer; and were always freed at the death of their masters; whereas the latter served until the year of Jubilee, though that might include a period of forty-nine years,—and were left from father to son.

There are however two other laws which I have not yet noticed. The one effectually prevented *all involuntary* servitude, and the other completely

abolished Jewish servitude every fifty years. They were equally operative upon the Heathen and the Hebrew.

1. "Thou shalt *not* deliver unto his master the servant that is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best: thou shalt *not* oppress him." Deut. xxxiii; 15, 16.

2. "And ye shall hallow the fiftieth year, and proclaim *Liberty* throughout *all* the land, unto *all* the inhabitants thereof: it shall be a jubilee unto you." Deut. xxv, 10.

Here, then, we see that by this first law, the *door of Freedom was opened wide to every servant who* had any cause whatever for complaint; if he was unhappy with his master, all he had to do was to leave him, and *no man* had a right to deliver him back to him again, and not only so, but the absconded servant was to *choose* where he should live, and no Jew was permitted to oppress him. He left his master just as our Northern servants leave us; we have no power to compel them to remain with us, and no man has any right to oppress them; they go and dwell in that place where it chooseth them, and live just where they like. Is it so at the South? Is the poor runaway slave protected *by law* from the violence of that master whose oppression and cruelty has driven him from his plantation or his house? No! no! Even the free states of the North are compelled to deliver unto his master the servant that is escaped from his master into them. By *human* law, under the *Christian Dispensation*, in the *nineteenth century* we are commanded to do, what *God* more than *three thousand* years ago, under the *Mosaic Dispensation*, *positively commanded* the Jews *not* to do. In the wide domain even of our free states, there is not *one* city of refuge for the poor runaway fugitive; not one spot upon which he can stand and say, I am a free man—I am protected in my rights as a *man*, by the strong arm of the law; no! *not one*. How long the North will thus shake hands with the South in sin, I know not. How long she will stand by like the persecutor Saul, *consenting* unto the death of Stephen, and keeping the raiment of them that slew him, I know not; but one thing I do know, the *guilt of the North* is increasing in a tremendous ratio as light is pouring in upon her on the subject and the sin of slavery. As the sun of righteousness climbs higher and higher in the moral heavens, she will stand still more and more abashed as the query is

thundered down into her ear, "*Who hath required this at thy hand?*" It will be found *no* excuse then that the Constitution of our country required that *persons bound to service* escaping from their masters should be delivered up; no more excuse than was the reason which Adam assigned for eating the forbidden fruit. *He was condemned and punished because* he hearkened to the voice of *his wife*, rather than to the command of his Maker; and we will assuredly be condemned and punished for obeying *Man* rather than *God*, if we do not speedily repent and bring forth fruits meet for repentance. Yea, are we not receiving chastisement even *now*?

But by the second of these laws a still more astonishing fact is disclosed. If the first effectually prevented *all involuntary servitude*, the last absolutely forbade even *voluntary servitude being perpetual*. On the great day of atonement every fiftieth year the Jubilee trumpet was sounded throughout the land of Judea, and *Liberty* was proclaimed to *all* the inhabitants thereof. I will not say that the servants' *chains* fell off and their *manacles* were burst, for there is no evidence that Jewish servants *ever* felt the weight of iron chains, and collars, and handcuffs; but I do say that even the man who had voluntarily sold himself and the *heathen* who had been sold to a Hebrew master, were set free, the one as well as the other. This law was evidently designed to prevent the oppression of the poor, and the possibility of such a thing as *perpetual servitude* existing among them.

Where, then, I would ask, is the warrant, the justification, or the palliation of American Slavery from Hebrew servitude? How many of the southern slaves would now be in bondage according to the laws of Moses; Not one. You may observe that I have carefully avoided using the term *slavery* when speaking of Jewish servitude; and simply for this reason, that *no such thing* existed among that people; the word translated servant does *not* mean *slave*, it is the same that is applied to Abraham, to Moses, to Elisha and the prophets generally. *Slavery* then *never* existed under the Jewish Dispensation at all, and I cannot but regard it as an aspersion on the character of Him who is "glorious in Holiness" for any one to assert that "*God sanctioned, yea commanded slavery* under the old dispensation." I would fain lift my feeble voice to vindicate Jehovah's character from so foul a slander. If slaveholders are determined to hold slaves as long as they can, let them not dare to say that the God of mercy and of truth *ever* sanctioned such a system of cruelty and wrong. It is blasphemy against Him.

We have seen that the code of laws framed by Moses with regard to servants was designed to *protect them as men and women*, to secure to them their *rights as human beings*, to guard them from oppression and defend them from violence of every kind. Let us now turn to the Slave laws of the South and West and examine them too. I will give you the substance only, because I fear I shall trespass too much on your time, were I to quote them at length.

1. *Slavery* is hereditary and perpetual, to the last moment of the slave's earthly existence, and to all his descendants to the latest posterity.
2. The labor of the slave is compulsory and uncompensated; while the kind of labor, the amount of toil, the time allowed for rest, are dictated solely by the master. No bargain is made, no wages given. A pure despotism governs the human brute; and even his covering and provender, both as to quantity and quality, depend entirely on the master's discretion^A.

^A: There are laws in some of the slave states, limiting the labor which the master may require of the slave to fourteen hours daily. In some of the states there are laws requiring the masters to furnish a certain amount of food and clothing, as for instance, *one quart* of corn per day, or *one peck* per week, or *one bushel* per month, and "one linen shirt and pantaloons for the summer, and a linen shirt and woollen great coat and pantaloons for the winter," &c. But "still," to use the language of Judge Stroud "the slave is entirely under the control of his master,—is unprovided with a protector,—and, especially as he cannot be a witness or make complaint in any known mode against his master, the apparent object of these laws may *always* be defeated." ED.

3. The slave being considered a personal chattel may be sold or pledged, or leased at the will of his master. He may be exchanged for marketable commodities, or taken in execution for the debts or taxes either of a living or dead master. Sold at auction, either individually, or in lots to suit the purchaser, he may remain with his family, or be separated from them for ever.
4. Slaves can make no contracts and have no *legal* right to any property, real or personal. Their own honest earnings and the legacies of friends belong in point of law to their masters.

5. Neither a slave nor a free colored person can be a witness against any *white*, or free person, in a court of justice, however atrocious may have been the crimes they have seen him commit, if such testimony would be for the benefit of a *slave*; but they may give testimony *against a fellow slave*, or free colored man, even in cases affecting life, if the *master* is to reap the advantage of it.

6. The slave may be punished at his master's discretion—without trial—without any means of legal redress; whether his offence be real or imaginary; and the master can transfer the same despotic power to any person or persons, he may choose to appoint.

7. The slave is not allowed to resist any free man under *any* circumstances, *his* only safety consists in the fact that his *owner* may bring suit and recover the price of his body, in case his life is taken, or his limbs rendered unfit for labor.

8. Slaves cannot redeem themselves, or obtain a change of masters, though cruel treatment may have rendered such a change necessary for their personal safety.

9. The slave is entirely unprotected in his domestic relations.

10. The laws greatly obstruct the manumission of slaves, even where the master is willing to enfranchise them.

11. The operation of the laws tends to deprive slaves of religious instruction and consolation.

12. The whole power of the laws is exerted to keep slaves in a state of the lowest ignorance.

13. There is in this country a monstrous inequality of law and right. What is a trifling fault in the *white* man, is considered highly criminal in the *slave*; the same offences which cost a white man a few dollars only, are punished in the negro with death.

14. The laws operate most oppressively upon free people of color^{[A](#)}.

^{[A](#)}: See Mrs. Child's Appeal, Chap. II.

Shall I ask you now my friends, to draw the *parallel* between Jewish *servitude* and American *slavery*? No! For there is *no likeness* in the two systems; I ask you rather to mark the contrast. The laws of Moses *protected servants* in their *rights as men and women*, guarded them from oppression and defended them from wrong. The Code Noir of the South *robs the slave of all his rights* as a *man*, reduces him to a chattel personal, and defends the *master* in the exercise of the most unnatural and unwarrantable power over his slave. They each bear the impress of the hand which formed them. The attributes of justice and mercy are shadowed out in the Hebrew code; those of injustice and cruelty, in the Code Noir of America. Truly it was wise in the slaveholders of the South to declare their slaves to be "chattels personal;" for before they could be robbed of wages, wives, children, and friends, it was absolutely necessary to deny they were human beings. It is wise in them, to keep them in abject ignorance, for the strong man armed must be bound before we can spoil his house—the powerful intellect of man must be bound down with the iron chains of nescience before we can rob him of his rights as a man; we must reduce him to a *thing*; before we can claim the right to set our feet upon his neck, because it was only *all things* which were originally *put under the feet of man* by the Almighty and Beneficent Father of all, who has declared himself to be *no respecter* of persons, whether red, white, or black.

But some have even said that Jesus Christ did not condemn slavery. To this I reply, that our Holy Redeemer lived and preached among the Jews only. The laws which Moses had enacted fifteen hundred years previous to his appearance among them, had never been annulled, and these laws *protected* every servant in Palestine. That he saw nothing of *perpetual* servitude is certain from the simple declaration made by himself in John, viii, 35. "The servant abideth *not* in the house for ever, the son abideth ever." If then He did not condemn Jewish *temporary* servitude, this does not prove that he would not have condemned such a monstrous system as that of AMERICAN *slavery*, if that had existed among them. But did not Jesus condemn slavery? Let us examine some of his precepts. "*Whatsoever* ye would that men should do to you, do ye *even so to them*." Let every slaveholder apply these queries to his own heart; Am *I* willing to be a slave—Am *I* willing to see *my* husband the slave of another—Am *I* willing to see my mother a slave, or my father, my *white* sister, or my *white* brother?

If *not*, then in holding others as slaves, I am doing what I would *not* wish to be done to me or any relative I have; and thus have I broken this golden rule which was given *me* to walk by.

But some slaveholders have said, "we were never in bondage to any man," and therefore the yoke of bondage would be insufferable to us, but slaves are accustomed to it, their backs are fitted to the burden. Well, I am willing to admit that you who have lived in freedom would find slavery even more oppressive than the poor slave does, but then you may try this question in another form—Am I willing to reduce *my little child* to slavery? You know that *if it is brought up a slave*, it will never know any contrast between freedom and bondage; its back will become fitted to the burden just as the negro child's does—*not by nature*—but by daily, violent pressure, in the same way that the head of the Indian child becomes flattened by the boards in which it is bound. It has been justly remarked that "*God never made a slave*," he made man upright; his back was *not* made to carry burdens as the slave of another, nor his neck to wear a yoke, and the *man* must be crushed within him, before *his* back can be *fitted* to the burden of perpetual slavery; and that his back is *not* fitted to it, is manifest by the insurrections that so often disturb the peace and security of slave-holding countries. Who ever heard of a rebellion of the beasts of the field; and why not? simply because *they* were all placed *under the feet of man*, into whose hand they were delivered; it was originally designed that they should serve him, therefore their necks have been formed for the yoke, and their backs for the burden; but *not so with man*, intellectual, immortal man! I appeal to you, my friends, as mothers; Are you willing to enslave *your* children? You start back with horror and indignation at such a question. But why, if slavery is *no wrong* to those upon whom it is imposed? why, if, as has often been said, slaves are happier than their masters, freer from the cares and perplexities of providing for themselves and their families? why not place *your children* in the way of being supported without your having the trouble to provide for them, or they for themselves? Do you not perceive that as soon as this golden rule of action is applied to *yourselves*, that you involuntarily shrink from the test; as soon as *your* actions are weighed in *this* balance of the sanctuary, that *you are found wanting*? Try yourselves by another of the Divine precepts, "Thou shalt love thy neighbor as thyself." Can we love a man *as we love ourselves* if we do, and continue to do unto him, what we

would not wish any one to do to us? Look too, at Christ's example, what does he say of himself, "I came *not* to be ministered unto, but to minister." Can you for a moment imagine the meek, and lowly, and compassionate Saviour, a *slaveholder*? do you not shudder at this thought as much as at that of his being a *warrior*? But why, if slavery is not sinful?

Again, it has been said, the Apostle Paul did not condemn Slavery, for he sent Onesimus back to Philemon. I do not think it can be said he sent him back, for no coercion was made use of. Onesimus was not thrown into prison and then sent back in chains to his master, as your runaway slaves often are—this could not possibly have been the case, because you know Paul as a Jew, was *bound to protect* the runaway, *he had no right* to send any fugitive back to his master. The state of the case then seems to have been this. Onesimus had been an unprofitable servant to Philemon and left him—he afterwards became converted under the Apostle's preaching, and seeing that he had been to blame in his conduct, and desiring by future fidelity to atone for past error, he wished to return, and the Apostle gave him the letter we now have as a recommendation to Philemon, informing him of the conversion of Onesimus, and entreating him as "Paul the aged to receive him, *not* now as a *servant*, but *above* a servant, a brother beloved, especially to me, but how much more unto thee, both in the flesh and in the Lord. If thou count *me* therefore as a partner, *receive him as myself*." This then surely cannot be forced into a justification of the practice of returning runaway slaves back to their masters, to be punished with cruel beatings and scourgings as they often are. Besides the word [Greek: doulos] here translated servant, is the same that is made use of in Matt. xviii, 27. Now it appears that this servant owed his lord ten thousand talents; he possessed property to a vast amount. Onesimus could not then have been a *slave*, for slaves do not own their wives, or children; no, not even their own bodies, much less property. But again, the servitude which the apostle was accustomed to, must have been very different from American slavery, for he says, "the heir (or son), as long as he is a child, differeth *nothing from a servant*, though he be lord of all. But is under *tutors* and governors until the time appointed of the father." From this it appears, that the means of *instruction* were provided for *servants* as well as children; and indeed we know it must have been so among the Jews, because their servants were not permitted to remain in perpetual bondage, and therefore it was absolutely

necessary they should be prepared to occupy higher stations in society than those of servants. Is it so at the South, my friends? Is the daily bread of instruction provided for *your slaves*? are their minds enlightened, and they gradually prepared to rise from the grade of menials into that of *free*, independent members of the state? Let your own statute book, and your own daily experience, answer these questions.

If this apostle sanctioned *slavery*, why did he exhort masters thus in his epistle to the Ephesians, "and ye, masters, do the same things unto them (i.e. perform your duties to your servants as unto Christ, not unto me) *forbearing threatening*; knowing that your master also is in heaven, neither is *there respect of persons with him*." And in Colossians, "Masters give unto your servants that which is *just and equal*, knowing that ye also have a master in heaven." Let slaveholders only *obey* these injunctions of Paul, and I am satisfied slavery would soon be abolished. If he thought it sinful even to *threaten* servants, surely he must have thought it sinful to flog and to beat them with sticks and paddles; indeed, when delineating the character of a bishop, he expressly names this as one feature of it, "*no striker*." Let masters give unto their servants that which is *just and equal*, and all that vast system of unrequited labor would crumble into ruin. Yes, and if they once felt they had no right to the *labor* of their servants without pay, surely they could not think they had a right to their wives, their children, and their own bodies. Again, how can it be said Paul sanctioned slavery, when, as though to put this matter beyond all doubt, in that black catalogue of sins enumerated in his first epistle to Timothy, he mentions "*menstealers*," which word may be translated "*slavedealers*." But you may say, we all despise slavedealers as much as any one can; they are never admitted into genteel or respectable society. And why not? Is it not because even you shrink back from the idea of associating with those who make their fortunes by trading in the bodies and souls of men, women, and children? whose daily work it is to break human hearts, by tearing wives from their husbands, and children from their parents? But why hold slavedealers as despicable, if their trade is lawful and virtuous? and why despise them more than the *gentlemen of fortune and standing* who employ them as *their* agents? Why more than the *professors of religion* who barter their fellow-professors to them for gold and silver? We do not despise the land agent, or the physician, or the merchant, and why? Simply because their professions

are virtuous and honorable; and if the trade of men-jobbers was honorable, you would not despise them either. There is no difference in *principle*, in *Christian ethics*, between the despised slavedealer and the *Christian* who buys slaves from, or sells slaves to him; indeed, if slaves were not wanted by the respectable, the wealthy, and the religious in a community, there would be no slaves in that community, and of course no *slavedealers*. It is then the *Christians* and the *honorable men and women* of the South, who are the *main pillars* of this grand temple built to Mammon and to Moloch. It is the *most enlightened* in every country who are *most* to blame when any public sin is supported by public opinion, hence Isaiah says, "*When the Lord hath performed his whole work upon mount Zion and on Jerusalem, (then) I will punish the fruit of the stout heart of the king of Assyria, and the glory of his high looks.*" And was it not so? Open the historical records of that age, was not Israel carried into captivity B.C. 606, Judah B.C. 588, and the stout heart of the heathen monarchy not punished until B.C. 536, fifty-two years *after* Judah's, and seventy years *after* Israel's captivity, when it was overthrown by Cyrus, king of Persia? Hence, too, the apostle Peter says, "*judgment must begin at the house of God.*" Surely this would not be the case, if the *professors of religion* were not *most worthy* of blame.

But it may be asked, why are *they* most culpable? I will tell you, my friends. It is because sin is imputed to us just in proportion to the spiritual light we receive. Thus the prophet Amos says, in the name of Jehovah, "*You only* have I known of all the families of the earth: *therefore* I will punish you for all your iniquities." Hear too the doctrine of our Lord on this important subject; "*The servant who knew his Lord's will and prepared not himself, neither did according to his will, shall be beaten with many stripes*"; and why? "*For unto whomsoever much is given, of him shall much be required; and to whom men have committed much, of him they will ask the more.*" Oh! then that the *Christians* of the south would ponder these things in their hearts, and awake to the vast responsibilities which rest *upon them* at this important crisis.

I have thus, I think, clearly proved to you seven propositions, viz.: First, that slavery is contrary to the declaration of our independence. Second, that it is contrary to the first charter of human rights given to Adam, and renewed to Noah. Third, that the fact of slavery having been the subject of prophecy, furnishes *no* excuse whatever to slavedealers. Fourth, that no

such system existed under the patriarchal dispensation. Fifth, that *slavery never* existed under the Jewish dispensation; but so far otherwise, that every servant was placed under the *protection of law*, and care taken not only to prevent all *involuntary* servitude, but all *voluntary perpetual* bondage. Sixth, that slavery in America reduces a *man* to a *thing*, a "chattel personal," *robs him* of *all* his rights as a *human being*, fetters both his mind and body, and protects the *master* in the most unnatural and unreasonable power, whilst it *throws him out* of the protection of law. Seventh, that slavery is contrary to the example and precepts of our holy and merciful Redeemer, and of his apostles.

But perhaps you will be ready to query, why appeal to *women* on this subject? We do not make the laws which perpetuate slavery. No legislative power is vested in *us*; we can do nothing to overthrow the system, even if we wished to do so. To this I reply, I know you do not make the laws, but I also know that *you are the wives and mothers, the sisters and daughters of those who do*; and if you really suppose *you* can do nothing to overthrow slavery, you are greatly mistaken. You can do much in every way: four things I will name. 1st. You can read on this subject. 2d. You can pray over this subject. 3d. You can speak on this subject. 4th. You can *act* on this subject. I have not placed reading before praying because I regard it more important, but because, in order to pray aright, we must understand what we are praying for; it is only then we can "pray with the understanding and the spirit also."

1. Read then on the subject of slavery. Search the Scriptures daily, whether the things I have told you are true. Other books and papers might be a great help to you to this investigation, but they are not necessary, and it is hardly probable that your Committees of Vigilance will allow you to have any other. The *Bible* then is the book I want you to read in the spirit of inquiry, and the spirit of prayer. Even the enemies of Abolitionists, acknowledge that their doctrines are drawn from it. In the great mob in Boston, last autumn, when the books and papers of the Anti-Slavery Society, were thrown out of the windows of their office, one individual laid hold of the Bible and was about tossing it out to the ground, when another reminded him that it was the Bible he had in his hand. "O! 'tis *all one*," he replied, and out went the sacred volume, along with the rest. We thank him for the acknowledgment. Yes, "*it is all one*," for our books and papers are mostly

commentaries on the Bible, and the Declaration. Read the *Bible* then, it contains the words of Jesus, and they are spirit and life. Judge for yourselves whether *he sanctioned* such a system of oppression and crime.

2. Pray over this subject. When you have entered into your closets, and shut to the doors, then pray to your father, who seeth in secret, that he would open your eyes to see whether slavery is *sinful*, and if it is, that he would enable you to bear a faithful, open and un-shrinking testimony against it, and to do whatsoever your hands find to do, leaving the consequences entirely to him, who still says to us whenever we try to reason away duty from the fear of consequences, "*What is that to thee, follow thou me.*" Pray also for that poor slave, that he may be kept patient and submissive under his hard lot, until God is pleased to open the door of freedom to him without violence or bloodshed. Pray too for the master that his heart may be softened, and he made willing to acknowledge, as Joseph's brethren did, "Verily we are guilty concerning our brother," before he will be compelled to add in consequence of Divine judgment, "therefore is all this evil come upon us." Pray also for all your brethren and sisters who are laboring in the righteous cause of Emancipation in the Northern States, England and the world. There is great encouragement for prayer in these words of our Lord. "Whatsoever ye shall ask the Father in my name, he will give it to you"—Pray then without ceasing, in the closet and the social circle.

3. Speak on this subject. It is through the tongue, the pen, and the press, that truth is principally propagated. Speak then to your relatives, your friends, your acquaintances on the subject of slavery; be not afraid if you are conscientiously convinced it is *sinful*, to say so openly, but calmly, and to let your sentiments be known. If you are served by the slaves of others, try to ameliorate their condition as much as possible; never aggravate their faults, and thus add fuel to the fire of anger already kindled, in a master and mistress's bosom; remember their extreme ignorance, and consider them as your Heavenly Father does the *less* culpable on this account, even when they do wrong things. Discountenance *all* cruelty to them, all starvation, all corporal chastisement; these may brutalize and *break* their spirits, but will never bend them to willing, cheerful obedience. If possible, see that they are comfortably and *seasonably* fed, whether in the house or the field; it is unreasonable and cruel to expect slaves to wait for their breakfast until eleven o'clock, when they rise at five or six. Do all you can, to induce their

owners to clothe them well, and to allow them many little indulgences which would contribute to their comfort. Above all, try to persuade your husband, father, brothers and sons, that *slavery is a crime against God and man*, and that it is a great sin to keep *human beings* in such abject ignorance; to deny them the privilege of learning to read and write. The Catholics are universally condemned, for denying the Bible to the common people, but, *slaveholders must not* blame them, for *they* are doing the *very same thing*, and for the very same reason, neither of these systems can bear the light which bursts from the pages of that Holy Book. And lastly, endeavour to inculcate submission on the part of the slaves, but whilst doing this be faithful in pleading the cause of the oppressed.

"Will you behold unheeding,
Life's holiest feelings crushed,
Where *woman's* heart is bleeding,
Shall *woman's* voice be hushed?"

4. Act on this subject. Some of you *own* slaves yourselves. If you believe slavery is *sinful*, set them at liberty, "undo the heavy burdens and let the oppressed go free." If they wish to remain with you, pay them wages, if not let them leave you. Should they remain teach them, and have them taught the common branches of an English education; they have minds and those minds, *ought to be improved*. So precious a talent as intellect, never was given to be wrapt in a napkin and buried in the earth. It is the *duty* of all, as far as they can, to improve their own mental faculties, because we are commanded to love God with *all our minds*, as well as with all our hearts, and we commit a great sin, if we *forbid or prevent* that cultivation of the mind in others, which would enable them to perform this duty. Teach your servants then to read &c., and encourage them to believe it is their *duty* to learn, if it were only that they might read the Bible.

But some of you will say, we can neither free our slaves nor teach them to read, for the laws of our state forbid it. Be not surprised when I say such wicked laws *ought to be no barrier* in the way of your duty, and I appeal to the Bible to prove this position. What was the conduct of Shiphrah and Puah, when the king of Egypt issued his cruel mandate, with regard to the Hebrew children? "*They feared God*, and did *not* as the King of Egypt

commanded them, but saved the men children alive." Did these *women* do right in disobeying that monarch? "*Therefore* (says the sacred text,) *God dealt well* with them, and made them houses" Ex. i. What was the conduct of Shadrach, Meshach, and Abednego, when Nebuchadnezzar set up a golden image in the plain of Dura, and commanded all people, nations, and languages, to fall down and worship it? "Be it known, unto thee, (said these faithful *Jews*) O king, that *we will not* serve thy gods, nor worship the image which thou hast set up." Did these men *do right in disobeying the law* of their sovereign? Let their miraculous deliverance from the burning fiery furnace, answer; Dan. iii. What was the conduct of Daniel, when Darius made a firm decree that no one should ask a petition of any man or God for thirty days? Did the prophet cease to pray? No! "When Daniel *knew that the writing was signed*, he went into his house, and his windows being *open* towards Jerusalem, he kneeled upon his knees three times a day, and prayed and gave thanks before his God, as he did aforetime." Did Daniel do right thus to *break* the law of his king? Let his wonderful deliverance out of the mouths of the lions answer; Dan. vii. Look, too, at the Apostles Peter and John. When the rulers of the Jews, "*commanded them not* to speak at all, nor teach in the name of Jesus," what did they say? "Whether it be right in the sight of God, to hearken unto you more than unto God, judge ye." And what did they do? "They spake the word of God with boldness, and with great power gave the Apostles witness of the *resurrection* of the Lord Jesus;" although *this* was the very doctrine, for the preaching of which, they had just been cast into prison, and further threatened. Did these men do right? I leave *you* to answer, who now enjoy the benefits of their labors and sufferings, in that Gospel they dared to preach when positively commanded *not to teach any more* in the name of Jesus; Acts iv.

But some of you may say, if we do free our slaves, they will be taken up and sold, therefore there will be no use in doing it. Peter and John might just as well have said, we will not preach the gospel, for if we do, we shall be taken up and put in prison, therefore there will be no use in our preaching. *Consequences*, my friends, belong no more to *you*, than they did to these apostles. Duty is ours and events are God's. If you think slavery is sinful, all *you* have to do is to set your slaves at liberty, do all you can to protect them, and in humble faith and fervent prayer, commend them to

your common Father. He can take care of them; but if for wise purposes he sees fit to allow them to be sold, this will afford you an opportunity of testifying openly, wherever you go, against the crime of *manstealing*. Such an act will be *clear robbery*, and if exposed, might, under the Divine direction, do the cause of Emancipation more good, than any thing that could happen, for, "He makes even the wrath of man to praise him, and the remainder of wrath he will restrain."

I know that this doctrine of obeying *God*, rather than man, will be considered as dangerous, and heretical by many, but I am not afraid openly to avow it, because it is the doctrine of the Bible; but I would not be understood to advocate resistance to any law however oppressive, if, in obeying it, I was not obliged to commit *sin*. If for instance, there was a law, which imposed imprisonment or a fine upon me if I manumitted a slave, I would on no account resist that law, I would set the slave free, and then go to prison or pay the fine. If a law commands me to *sin I will break it*; if it calls me to *suffer*, I will let it take its course *unresistingly*. The doctrine of blind obedience and unqualified submission to *any human* power, whether civil or ecclesiastical, is the doctrine of despotism, and ought to have no place among Republicans and Christians.

But you will perhaps say, such a course of conduct would inevitably expose us to great suffering. Yes! my christian friends, I believe it would, but this will *not* excuse you or any one else for the neglect of *duty*. If Prophets and Apostles, Martyrs, and Reformers had not been willing to suffer for the truth's sake, where would the world have been now? If they had said, we cannot speak the truth, we cannot do what we believe is right, because the *laws of our country or public opinion are against us*, where would our holy religion have been now? The Prophets were stoned, imprisoned, and killed by the Jews. And why? Because they exposed and openly rebuked public sins; they opposed public opinion; had they held their peace, they all might have lived in ease and died in favor with a wicked generation. Why were the Apostles persecuted from city to city, stoned, incarcerated, beaten, and crucified? Because they dared to *speak the truth*; to tell the Jews, boldly and fearlessly, that *they* were the *murderers* of the Lord of Glory, and that, however great a stumbling-block the Cross might be to them, there was no other name given under heaven by which men could be saved, but the name of Jesus. Because they declared, even at Athens, the seat of learning and

refinement, the self-evident truth, that "they be no gods that are made with men's hands," and exposed to the Grecians the foolishness of worldly wisdom, and the impossibility of salvation but through Christ, whom they despised on account of the ignominious death he died. Because at Rome, the proud mistress of the world, they thundered out the terrors of the law upon that idolatrous, war-making, and slave-holding community. Why were the martyrs stretched upon the rack, gibbeted and burnt, the scorn and diversion of a Nero, whilst their tarred and burning bodies sent up a light which illuminated the Roman capital? Why were the Waldenses hunted like wild beasts upon the mountains of Piedmont, and slain with the sword of the Duke of Savoy and the proud monarch of France? Why were the Presbyterians chased like the partridge over the highlands of Scotland—the Methodists pumped, and stoned, and pelted with rotten eggs—the Quakers incarcerated in filthy prisons, beaten, whipped at the cart's tail, banished and hung? Because they dared to *speak the truth*, to *break* the unrighteous laws of their country, and chose rather to suffer affliction with the people of God, "not accepting deliverance," even under the gallows. Why were Luther and Calvin persecuted and excommunicated, Cranmer, Ridley, and Latimer burnt? Because they fearlessly proclaimed the truth, though that truth was contrary to public opinion, and the authority of Ecclesiastical councils and conventions. Now all this vast amount of human suffering might have been saved. All these Prophets and Apostles, Martyrs, and Reformers, might have lived and died in peace with all men, but following the example of their great pattern, "they despised the shame, endured the cross, and are now set down on the right hand of the throne of God," having received the glorious welcome of "*well done* good and faithful servants, enter ye into the joy of your Lord."

But you may say we are *women*, how can *our* hearts endure persecution? And why not? Have not *women* stood up in all the dignity and strength of moral courage to be the leaders of the people, and to bear a faithful testimony for the truth whenever the providence of God has called them to do so? Are there no *women* in that noble army of martyrs who are now singing the song of Moses and the Lamb? Who led out the women of Israel from the house of bondage, striking the timbrel, and singing the song of deliverance on the banks of that sea whose waters stood up like walls of crystal to open a passage for their escape? It was a *woman*; Miriam, the

prophetess, the sister of Moses and Aaron. Who went up with Barak to Kadesh to fight against Jabin, King of Canaan, into whose hand Israel had been sold because of their iniquities? It was a *woman*! Deborah the wife of Lapidoth, the judge, as well as the prophetess of that backsliding people; Judges iv, 9. Into whose hands was Sisera, the captain of Jabin's host delivered? Into the hand of a *woman*. Jael the wife of Heber! Judges vi, 21. Who dared to *speaking the truth* concerning those judgments which were coming upon Judea, when Josiah, alarmed at finding that his people "had not kept the word of the Lord to do after all that was written in the book of the Law," sent to enquire of the Lord concerning these things? It was a *woman*. Huldah the prophetess, the wife of Shallum; 2, Chron. xxxiv, 22. Who was chosen to deliver the whole Jewish nation from that murderous decree of Persia's King, which wicked Haman had obtained by calumny and fraud? It was a *woman*; Esther the Queen; yes, weak and trembling *woman* was the instrument appointed by God, to reverse the bloody mandate of the eastern monarch, and save the *whole visible church* from destruction. What human voice first proclaimed to Mary that she should be the mother of our Lord? It was a *woman*! Elizabeth, the wife of Zacharias; Luke i, 42, 43. Who united with the good old Simeon in giving thanks publicly in the temple, when the child, Jesus, was presented there by his parents, "and spake of him to all them that looked for redemption in Jerusalem?" It was a *woman*! Anna the prophetess. Who first proclaimed Christ as the true Messiah in the streets of Samaria, once the capital of the ten tribes? It was a *woman*! Who ministered to the Son of God whilst on earth, a despised and persecuted Reformer, in the humble garb of a carpenter? They were *women*! Who followed the rejected King of Israel, as his fainting footsteps trod the road to Calvary? "A great company of people and of *women*;" and it is remarkable that to *them alone*, he turned and addressed the pathetic language, "Daughters of Jerusalem, weep not for me, but weep for yourselves and your children." Ah! who sent unto the Roman Governor when he was set down on the judgment seat, saying unto him, "Have thou nothing to do with that just man, for I have suffered many things this day in a dream because of him?" It was a *woman*! the wife of Pilate. Although "*he knew* that for envy the Jews had delivered Christ," yet *he* consented to surrender the Son of God into the hands of a brutal soldiery, after having himself scourged his naked body. Had the *wife* of Pilate sat upon that

judgment seat, what would have been the result of the trial of this "just person?"

And who last hung round the cross of Jesus on the mountain of Golgotha? Who first visited the sepulchre early in the morning on the first day of the week, carrying sweet spices to embalm his precious body, not knowing that it was incorruptible and could not be holden by the bands of death? These were *women*! To whom did he *first* appear after his resurrection? It was to a *woman*! Mary Magdalene; Mark xvi, 9. Who gathered with the apostles to wait at Jerusalem, in prayer and supplication, for "the promise of the Father;" the spiritual blessing of the Great High Priest of his Church, who had entered, *not* into the splendid temple of Solomon, there to offer the blood of bulls, and of goats, and the smoking censer upon the golden altar, but into Heaven itself, there to present his intercessions, after having "given himself for us, an offering and a sacrifice to God for a sweet smelling savor?" *Women* were among that holy company; Acts i, 14. And did *women* wait in vain? Did those who had ministered to his necessities, followed in his train, and wept at his crucifixion, wait in vain? No! No! Did the cloven tongues of fire descend upon the heads of *women* as well as men? Yes, my friends, "it sat upon *each one of them*;" Acts ii, 3. *women* as well as men were to be living stones in the temple of grace, and therefore *their* heads were consecrated by the descent of the Holy Ghost as well as those of men. Were *women* recognized as fellow laborers in the gospel field? They were! Paul says in his epistle to the Philippians, "help those *women* who labored with me, in the gospel;" Phil. iv, 3.

But this is not all. Roman *women* were burnt at the stake, *their* delicate limbs were torn joint from joint by the ferocious beasts of the Amphitheatre, and tossed by the wild bull in his fury, for the diversion of that idolatrous, warlike, and slaveholding people. Yes, *women* suffered under the ten persecutions of heathen Rome, with the most unshrinking constancy and fortitude; not all the entreaties of friends, nor the claims of new born infancy, nor the cruel threats of enemies could make *them* sprinkle one grain of incense upon the altars of Roman idols. Come now with me to the beautiful valleys of Piedmont. Whose blood stains the green sward, and decks the wild flowers with colors not their own, and smokes on the sword of persecuting France? It is *woman's*, as well as man's? Yes, *women* were

accounted as sheep for the slaughter, and were cut down as the tender saplings of the wood.

But time would fail me, to tell of all those hundreds and thousands of *women*, who perished in the Low countries of Holland, when Alva's sword of vengeance was unsheathed against the Protestants, when the Catholic Inquisitions of Europe became the merciless executioners of vindictive wrath, upon those who dared to worship God, instead of bowing down in unholy adoration before "my Lord God the *Pope*," and when England, too, burnt her Ann Ascoes at the stake of martyrdom. Suffice it to say, that the Church, after having been driven from Judea to Rome, and from Rome to Piedmont, and from Piedmont to England, and from England to Holland, at last stretched her fainting wings over the dark bosom of the Atlantic, and found on the shores of a great wilderness, a refuge from tyranny and oppression—as she thought, but *even here*, (the warm blush of shame mantles my cheek as I write it,) *even here*, *woman* was beaten and banished, imprisoned, and hung upon the gallows, a trophy to the Cross.

And what, I would ask in conclusion, have *women* done for the great and glorious cause of Emancipation? Who wrote that pamphlet which moved the heart of Wilberforce to pray over the wrongs, and his tongue to plead the cause of the oppressed African? It was a *woman*, Elizabeth Heyrick. Who labored assiduously to keep the sufferings of the slave continually before the British public? They were *women*. And how did they do it? By their needles, paint brushes and pens, by speaking the truth, and petitioning Parliament for the abolition of slavery. And what was the effect of their labors? Read it in the Emancipation bill of Great Britain. Read it, in the present state of her West India Colonies. Read it, in the impulse which has been given to the cause of freedom, in the United States of America. Have English women then done so much for the negro, and shall American women do nothing? Oh no! Already are there sixty female Anti-Slavery Societies in operation. These are doing just what the English women did, telling the story of the colored man's wrongs, praying for his deliverance, and presenting his kneeling image constantly before the public eye on bags and needle-books, card-racks, pen-wipers, pin-cushions, &c. Even the children of the north are inscribing on their handy work, "May the points of our needles prick the slaveholder's conscience." Some of the reports of these Societies exhibit not only considerable talent, but a deep sense of

religious duty, and a determination to persevere through evil as well as good report, until every scourge, and every shackle, is buried under the feet of the manumitted slave.

The Ladies' Anti-Slavery Society of Boston was called last fall, to a severe trial of their faith and constancy. They were mobbed by "the gentlemen of property and standing," in that city at their anniversary meeting, and their lives were jeopardized by an infuriated crowd; but their conduct on that occasion did credit to our sex, and affords a full assurance that they will *never* abandon the cause of the slave. The pamphlet, *Right and Wrong* in Boston, issued by them in which a particular account is given of that "mob of broad cloth in broad day," does equal credit to the head and the heart of her who wrote it. I wish my Southern sisters could read it; they would then understand that the women of the North have engaged in this work from a sense of *religious duty*, and that nothing will ever induce them to take their hands from it until it is fully accomplished. They feel no hostility to you, no bitterness or wrath; they rather sympathize in your trials and difficulties; but they well know that the first thing to be done to help you, is to pour in the light of truth on your minds, to urge you to reflect on, and pray over the subject. This is all *they* can do for you, *you* must work out your own deliverance with fear and trembling, and with the direction and blessing of God, *you can do it*. Northern women may labor to produce a correct public opinion at the North, but if Southern women sit down in listless indifference and criminal idleness, public opinion cannot be rectified and purified at the South. It is manifest to every reflecting mind, that slavery must be abolished; the era in which we live, and the light which is overspreading the whole world on this subject, clearly show that the time cannot be distant when it will be done. Now there are only two ways in which it can be effected, by moral power or physical force, and it is for *you* to choose which of these you prefer. Slavery always has, and always will produce insurrections wherever it exists, because it is a violation of the natural order of things, and no human power can much longer perpetuate it. The opposers of abolitionists fully believe this; one of them remarked to me not long since, there is no doubt there will be a most terrible overturning at the South in a few years, such cruelty and wrong, must be visited with Divine vengeance soon. Abolitionists believe, too, that this must inevitably be the case, if you do not repent, and they are not willing to leave you to perish

without entreating you, to save yourselves from destruction; well may they say with the apostle, "am I then your enemy because I tell you the truth," and warn you to flee from impending judgments.

But why, my dear friends, have I thus been endeavoring to lead you through the history of more than three thousand years, and to point you to that great cloud of witnesses who have gone before, "from works to rewards?" Have I been seeking to magnify the sufferings, and exalt the character of woman, that she "might have praise of men?" No! no! my object has been to arouse *you*, as the wives and mothers, the daughters and sisters, of the South, to a sense of your duty as *women*, and as Christian women, on that great subject, which has already shaken our country, from the St. Lawrence and the lakes, to the Gulf of Mexico, and from the Mississippi to the shores of the Atlantic; *and will continue mightily to shake it*, until the polluted temple of slavery fall and crumble into ruin. I would say unto each one of you, "what meanest thou, O sleeper! arise and call upon thy God, if so be that God will think upon us that we perish not." Perceive you not that dark cloud of vengeance which hangs over our boasting Republic? Saw you not the lightnings of Heaven's wrath, in the flame which leaped from the Indian's torch to the roof of yonder dwelling, and lighted with its horrid glare the darkness of midnight? Heard you not the thunders of Divine anger, as the distant roar of the cannon came rolling onward, from the Texian country, where Protestant American Rebels are fighting with Mexican Republicans—for what? For the re-establishment of *slavery*; yes! of American slavery in the bosom of a Catholic Republic, where that system of robbery, violence, and wrong, had been legally abolished for twelve years. Yes! citizens of the United States, after plundering Mexico of her land, are now engaged in deadly conflict, for the privilege of fastening chains, and collars, and manacles—upon whom? upon the subjects of some foreign prince? No! upon native born American Republican citizens, although the fathers of these very men declared to the whole world, while struggling to free themselves from the three penny taxes of an English king, that they believed it to be a *self-evident* truth that *all men* were created equal, and had an *unalienable right to liberty*.

Well may the poet exclaim in bitter sarcasm,

"The fustian flag that proudly waves
In solemn mockery *o'er a land of slaves.*"

Can you not, my friends, understand the signs of the times; do you not see the sword of retributive justice hanging over the South, or are you still slumbering at your posts?—Are there no Shiprahs, no Puahs among you, who will dare in Christian firmness and Christian meekness, to refuse to obey the *wicked laws* which require *woman to enslave, to degrade and to brutalize woman*? Are there no Miriams, who would rejoice to lead out the captive daughters of the Southern States to liberty and light? Are there no Huldahs there who will dare to *speak the truth* concerning the sins of the people and those judgments, which it requires no prophet's eye to see, must follow if repentance is not speedily sought? Is there no Esther among you who will plead for the poor devoted slave? Read the history of this Persian queen, it is full of instruction; she at first refused to plead for the Jews; but, hear the words of Mordecai, "Think not within thyself, that *thou* shalt escape in the king's house more than all the Jews, for *if thou altogether holdest thy peace at this time*, then shall there enlargement and deliverance arise to the Jews from another place: but *thou and thy father's house shall be destroyed.*" Listen, too, to her magnanimous reply to this powerful appeal; "*I will go* in unto the king, which is not according to law, and if I perish. I perish." Yes! if there were but *one* Esther at the South, she *might* save her country from ruin; but let the Christian women there arise, as the Christian women of Great Britain did, in the majesty of moral power, and that salvation is certain. Let them embody themselves in societies, and send petitions up to their different legislatures, entreating their husbands, fathers, brothers and sons, to abolish the institution of slavery; no longer to subject *woman* to the scourge and the chain, to mental darkness and moral degradation; no longer to tear husbands from their wives, and children from their parents; no longer to make men, women, and children, work *without wages*; no longer to make their lives bitter in hard bondage; no longer to reduce *American citizens* to the abject condition of *slaves*, of "chattels personal;" no longer to barter the *image of God* in human shambles for corruptible things such as silver and gold.

The *women of the South* can overthrow this horrible system of oppression and cruelty, licentiousness and wrong. Such appeals to your legislatures

would be irresistible, for there is something in the heart of man which *will bend under moral suasion*. There is a swift witness for truth in his bosom, which *will respond to truth* when it is uttered with calmness and dignity. If you could obtain but six signatures to such a petition in only one state, I would say, send up that petition, and be not in the least discouraged by the scoffs and jeers of the heartless, or the resolution of the house to lay it on the table. It will be a great thing if the subject can be introduced into your legislatures in any way, even by *women*, and *they* will be the most likely to introduce it there in the best possible manner, as a matter of *morals* and *religion*, not of expediency or politics. You may petition, too, the different, ecclesiastical bodies of the slave states. Slavery must be attacked with the whole power of truth and the sword of the spirit. You must take it up on *Christian* ground, and fight against it with Christian weapons, whilst your feet are shod with the preparation of the gospel of peace. And *you are now* loudly called upon by the cries of the widow and the orphan, to arise and gird yourselves for this great moral conflict, with the whole armour of righteousness upon the right hand and on the left.

There is every encouragement for you to labor and pray, my friends, because the abolition of slavery as well as its existence, has been the theme of prophecy. "Ethiopia (says the Psalmist) shall stretch forth her hands unto God." And is she not now doing so? Are not the Christian negroes of the south lifting their hands in prayer for deliverance, just as the Israelites did when their redemption was drawing nigh? Are they not sighing and crying by reason of the hard bondage? And think you, that He, of whom it was said, "and God heard their groaning, and their cry came up unto him by reason of the hard bondage," think you that his ear is heavy that he cannot *now* hear the cries of his suffering children? Or that He who raised up a Moses, an Aaron, and a Miriam, to bring them up out of the land of Egypt from the house of bondage, cannot now, with a high hand and a stretched out arm, rid the poor negroes out of the hands of their masters? Surely you believe that his arm is *not* shortened that he cannot save. And would not such a work of mercy redound to his glory? But another string of the harp of prophecy vibrates to the song of deliverance: "But they shall sit every man under his vine, and under his fig-tree, and *none shall make them afraid*; for the mouth of the Lord of Hosts hath spoken it." The *slave* never can do this as long as he is a *slave*; whilst he is a "chattel personal" he can

own *no* property; but the time *is to come* when *every* man is to sit under *his* own vine and *his* own fig-tree, and no domineering driver, or irresponsible master, or irascible mistress, shall make him afraid of the chain or the whip. Hear, too, the sweet tones of another string: "Many shall run to and fro, and *knowledge* shall be increased." Slavery is an insurmountable barrier to the increase of knowledge in every community where it exists; *slavery, then, must be abolished before* this prediction can be fulfilled. The last chord I shall touch, will be this, "They shall *not* hurt nor destroy in all my holy mountain."

Slavery, then, must be overthrown before the prophecies can be accomplished, but how are they to be fulfilled? Will the wheels of the millennial car be rolled onward by miraculous power? No! God designs to confer this holy privilege upon *man*; it is through *his* instrumentality that the great and glorious work of reforming the world is to be done. And see you not how the mighty engine of *moral power* is dragging in its rear the Bible and peace societies, anti-slavery and temperance, sabbath schools, moral reform, and missions? or to adopt another figure, do not these seven philanthropic associations compose the beautiful tints in that bow of promise which spans the arch of our moral heaven? Who does not believe, that if these societies were broken up, their constitutions burnt, and the vast machinery with which they are laboring to regenerate mankind was stopped, that the black clouds of vengeance would soon burst over our world, and every city would witness the fate of the devoted cities of the plain? Each one of these societies is walking abroad through the earth scattering the seeds of truth over the wide field of our world, not with the hundred hands of a Briareus, but with a hundred thousand.

Another encouragement for you to labor, my friends, is, that you will have the prayers and co-operation of English and Northern philanthropists. You will never bend your knees in supplication at the throne of grace for the overthrow of slavery, without meeting there the spirits of other Christians, who will mingle their voices with yours, as the morning or evening sacrifice ascends to God. Yes, the spirit of prayer and of supplication has been poured out upon many, many hearts; there are wrestling Jacobs who will not let go of the prophetic promises of deliverance for the captive, and the opening of prison doors to them that are bound. There are Pauls who are saying, in reference to this subject, "Lord, what wilt thou have me to do?"

There are Marys sitting in the house now, who are ready to arise and go forth is this work as soon as the message is brought, "the master is come and calleth for thee." And there are Marthas, too, who have already gone out to meet Jesus, as he bends his footsteps to their brother's grave, and weeps, *not* over the lifeless body of Lazarus bound hand and foot in grave-clothes, but over the politically and intellectually lifeless slave, bound hand and foot in the iron chains of oppression and ignorance. Some may be ready to say, as Martha did, who seemed to expect nothing but sympathy from Jesus, "Lord, by this time he stinketh, for he hath been dead four days." She thought it useless to remove the stone and expose the loathsome body of her brother; she could not believe that so great a miracle could be wrought, as to raise *that putrefied body* into life; but "Jesus said, take ye away the stone;" and when *they* had taken away the stone where the dead was laid, and uncovered the body of Lazarus, then it was that "Jesus lifted up his eyes and said, Father, I thank thee that thou hast heard me," &c. "And when he had thus spoken, he cried with a loud voice, Lazarus, come forth." Yes, some may be ready to say of the colored race, how can *they* ever be raised politically and intellectually, they have been dead four hundred years? But *we* have *nothing* to do with *how* this is to be done; *our business* is to take away the stone which has covered up the dead body of our brother, to expose the putrid carcass, to show *how* that body has been bound with the grave-clothes of heathen ignorance, and his face with the napkin of prejudice, and having done all it was our duty to do, to stand by the negro's grave, in humble faith and holy hope, waiting to hear the life-giving command of "Lazarus, come forth." This is just what Anti-Slavery Societies are doing; they are taking away the stone from the mouth of the tomb of slavery, where lies the putrid carcass of our brother. They want the pure light of heaven to shine into that dark and gloomy cave; they want all men to see *how* that dead body has been bound, *how* that face has been wrapped in the *napkin of prejudice*; and shall they wait beside that grave in vain? Is not Jesus still the resurrection and the life? Did He come to proclaim liberty to the captive, and the opening of prison doors to them that are bound, in vain? Did He promise to give beauty for ashes, the oil of joy for mourning, and the garment of praise for the spirit of heaviness unto them that mourn in Zion, and will He refuse to beautify the mind, anoint the head, and throw around the captive negro the mantle of praise for that spirit of heaviness which has so long bound him down to the ground? Or shall we not rather

say with the prophet, "the zeal of the Lord of Hosts *will* perform this?" Yes, his promises are sure, and amen in Christ Jesus, that he will assemble her that halteth, and gather her that is driven out, and her that is afflicted.

But I will now say a few words on the subject of Abolitionism. Doubtless you have all heard Anti-Slavery Societies denounced as insurrectionary and mischievous, fanatical and dangerous. It has been said they publish the most abominable untruths, and that they are endeavoring to excite rebellions at the South. Have you believed these reports, my friends? have *you* also been deceived by these false assertions? Listen to me, then, whilst I endeavor to wipe from the fair character of Abolitionism such unfounded accusations. You know that *I* am a Southerner; you know that my dearest relatives are now in a slave State. Can you for a moment believe I would prove so recreant to the feelings of a daughter and a sister, as to join a society which was seeking to overthrow slavery by falsehood, bloodshed, and murder? I appeal to you who have known and loved me in days that are passed, can *you* believe it? No! my friends. As a Carolinian, I was peculiarly jealous of any movements on this subject; and before I would join an Anti-Slavery Society, I took the precaution of becoming acquainted with some of the leading Abolitionists, of reading their publications and attending their meetings, at which I heard addresses both from colored and white men; and it was not until I was fully convinced that their principles were *entirely pacific*, and their efforts *only moral*, that I gave my name as a member to the Female Anti-Slavery Society of Philadelphia. Since that time, I have regularly taken the Liberator, and read many Anti-Slavery pamphlets and papers and books, and can assure you I *never* have seen a single insurrectionary paragraph, and never read any account of cruelty which I could not believe. Southerners may deny the truth of these accounts, but why do they not *prove* them to be false. Their violent expressions of horror at such accounts being believed, *may* deceive some, but they cannot deceive *me*, for I lived too long in the midst of slavery, not to know what slavery is. When *I* speak of this system, "I speak that I do know," and I am not at all afraid to assert, that Anti-Slavery publications have *not* overdrawn the monstrous features of slavery at all. And many a Southerner *knows* this as well as I do. A lady in North Carolina remarked to a friend of mine, about eighteen months since, "Northerners know nothing at all about slavery; they think it is perpetual bondage only; but of the *depth of degradation* that word

involves, they have no conception; if they had, *they would never cease* their efforts until so *horrible* a system was overthrown." She did not know how faithfully some Northern men and Northern women had studied this subject; how diligently they had searched out the cause of "him who had none to help him," and how fearlessly they had told the story of the negro's wrongs. Yes, Northerners know *every* thing about slavery now. This monster of iniquity has been unveiled to the world, her frightful features unmasked, and soon, very soon will she be regarded with no more complacency by the American republic than is the idol of Juggernaut, rolling its bloody wheels over the crushed bodies of its prostrate Victims.

But you will probably ask, if Anti-Slavery societies are not insurrectionary, why do Northerners tell us they are? Why, I would ask you in return, did Northern senators and Northern representatives give their votes, at the last sitting of congress, to the admission of Arkansas Territory as a state? Take those men, one by one, and ask them in their parlours, do you *approve of slavery*? ask them on *Northern* ground, where they will speak the truth, and I doubt not *every man* of them will tell you, *no*! Why then, I ask, did *they* give their votes to enlarge the mouth of that grave which has already destroyed its tens of thousands? All our enemies tell *us* they are as much anti-slavery as we are. Yes, my friends, thousands who are helping you to bind the fetters of slavery on the negro, despise you in their hearts for doing it; they rejoice that such an institution has not been entailed upon them. Why then, I would ask, do *they* lend you their help? I will tell you, "they love *the praise of men* more than the praise of God." The Abolition cause has not yet become so popular as to induce them to believe, that by advocating it in congress, they shall sit still more securely in their seats there, and like the *chief rulers* in the days of our Saviour, though many believed on him, yet they did *not* confess him, lest they should *be put out of the synagogue*; John xii, 42, 43. Or perhaps like Pilate, thinking they could prevail nothing, and fearing a tumult, they determined to release Barabbas and surrender the just man, the poor innocent slave to be stripped of his rights and scourged. In vain will such men try to wash their hands, and say, with the Roman governor, "I am innocent of the blood of this just person." Northern American statesmen are no more innocent of the crime of slavery, than Pilate was of the murder of Jesus, or Saul of that of Stephen. These are

high charges, but I appeal to *their hearts*; I appeal to public opinion ten years from now. Slavery then is a national sin.

But you will say, a great many other Northerners tell us so, who can have no political motives. The interests of the North, you must know, my friends, are very closely combined with those of the South. The Northern merchants and manufacturers are making *their* fortunes out of the *produce of slave labor*; the grocer is selling your rice and sugar; how then can these men bear a testimony against slavery without condemning themselves? But there is another reason, the North is most dreadfully afraid of Amalgamation. She is alarmed at the very idea of a thing so monstrous, as she thinks. And lest this consequence *might* flow from emancipation, she is determined to resist all efforts at emancipation without expatriation. It is not because *she approves of slavery*, or believes it to be "the corner stone of our republic," for she is as much *anti-slavery* as we are; but amalgamation is too horrible to think of. Now I would ask *you*, is it right, is it generous, to refuse the colored people in this country the advantages of education and the privilege, or rather the *right*, to follow honest trades and callings merely because they are colored? The same prejudice exists here against our colored brethren that existed against the Gentiles in Judea. Great numbers cannot bear the idea of equality, and fearing lest, if they had the same advantages we enjoy, they would become as intelligent, as moral, as religious, and as respectable and wealthy, they are determined to keep them as low as they possibly can. Is this doing as they would be done by? Is this loving their neighbor *as themselves*? Oh! that *such* opposers of Abolitionism would put their souls in the stead of the free colored man's and obey the apostolic injunction, to "remember them that are in bonds *as bound with them*." I will leave you to judge whether the fear of amalgamation ought to induce men to oppose anti-slavery efforts, when *they* believe *slavery* to be *sinful*. Prejudice against color, is the most powerful enemy we have to fight with at the North.

You need not be surprised, then, at all, at what is said *against* Abolitionists by the North, for they are wielding a two-edged sword, which even here, cuts through the *CORDS OF CASTE*, on the one side, and the *BONDS OF INTEREST* on the other. They are only sharing the fate of other reformers, abused and reviled whilst they are in the minority; but they are neither angry nor discouraged by the invective which has been heaped upon them by

slaveholders at the South and their apologists at the North. They know that when George Fox and William Edmundson were laboring in behalf of the negroes in the West Indies in 1671 that the very *same* slanders were propagated against them, which are *now* circulated against Abolitionists. Although it was well known that Fox was the founder of a religious sect which repudiated *all* war, and *all* violence, yet *even he* was accused of "endeavoring to excite the slaves to insurrection and of teaching the negroes to cut their master's throats." And these two men who had their feet shod with the preparation of the Gospel of Peace, were actually compelled to draw up a formal declaration that *they were not* trying to raise a rebellion in Barbadoes. It is also worthy of remark that these Reformers did not at this time see the necessity of emancipation under seven years, and their principal efforts were exerted to persuade the planters of the necessity of instructing their slaves; but the slaveholder saw then, just what the slaveholder sees now, that an *enlightened* population *never* can be a *slave* population, and therefore they passed a law, that negroes should not even attend the meetings of Friends. Abolitionists know that the life of Clarkson was sought by slavetraders; and that even Wilberforce was denounced on the floor of Parliament as a fanatic and a hypocrite by the present King of England, the very man who, in 1834, set his seal to that instrument which burst the fetters of eight hundred thousand slaves in his West India colonies. They know that the first Quaker who bore a *faithful* testimony against the sin of slavery was cut off from religious fellowship with that society. That Quaker was a *woman*. On her deathbed she sent for the committee who dealt with her—she told them, the near approach of death had not altered her sentiments on the subject of slavery and waving her hand towards a very fertile and beautiful portion of country which lay stretched before her window, she said with great solemnity, "Friends, the time will come when there will not be friends enough in all this district to hold one meeting for worship, and this garden will be turned into a wilderness."

The aged friend, who with tears in his eyes, related this interesting circumstance to me, remarked, that at that time there were seven meetings of friends in that part of Virginia, but that when he was there ten years ago, not a single meeting was held, and the country was literally a desolation. Soon after her decease, John Woolman began his labors in our society, and

instead of disowning a member for testifying *against* slavery, they have for fifty-two years positively forbidden their members to hold slaves.

Abolitionists understand the slaveholding spirit too well to be surprised at any thing that has yet happened at the South or the North; they know that the greater the sin is, which is exposed, the more violent will be the efforts to blacken the character and impugn the motives of those who are engaged in bringing to light the hidden things of darkness. They understand the work of Reform too well to be driven back by the furious waves of opposition, which are only foaming out their own shame. They have stood "the world's dread laugh," when only twelve men formed the first Anti-Slavery Society in Boston in 1831. They have faced and refuted the calumnies of their enemies, and proved themselves to be emphatically *peace men* by *never resisting* the violence of mobs, even when driven by them from the temple of God, and dragged by an infuriated crowd through the streets of the emporium of New-England, or subjected by *slaveholders* to the pain of corporal punishment. "None of these things move them;" and, by the grace of God, they are determined to persevere in this work of faith and labor of love: they mean to pray, and preach, and write, and print, until slavery is completely overthrown, until Babylon is taken up and cast into the sea, to "be found no more at all." They mean to petition Congress year after year, until the seat of our government is cleansed from the sinful traffic of "slaves and the souls of men." Although that august assembly may be like the unjust judge who "feared not God neither regarded man," yet it must yield just as he did, from the power of importunity. Like the unjust judge, Congress *must* redress the wrongs of the widow, lest by the continual coming up of petitions, it be wearied. This will be striking the dagger into the very heart of the monster, and once 'tis done, he must soon expire.

Abolitionists have been accused of abusing their Southern brethren. Did the prophet Isaiah *abuse* the Jews when he addressed to them the cutting reproofs contained in the first chapter of his prophecies, and ended by telling them, they would be *ashamed* of the oaks they had desired, and *confounded* for the garden they had chosen? Did John the Baptist *abuse* the Jews when he called them "*a generation of vipers*," and warned them "to bring forth fruits meet for repentance?" Did Peter abuse the Jews when he told them they were the *murderers* of the Lord of Glory? Did Paul abuse the Roman Governor when he reasoned before him of righteousness,

temperance, and judgment, so as to send conviction home to his guilty heart, and cause him to tremble in view of the crimes he was living in? Surely not. No man will now accuse the prophets and apostles of *abuse*, but what have Abolitionists done more than they? No doubt the Jews thought the prophets and apostles in their day, just as harsh and uncharitable as slaveholders now, think Abolitionists; if they did not, why did they beat, and stone, and kill them?

Great fault has been found with the prints which have been employed to expose slavery at the North, but my friends, how could this be done so effectually in any other way? Until the pictures of the slave's sufferings were drawn and held up to public gaze, no Northerner had any idea of the cruelty of the system, it never entered their minds that such abominations could exist in Christian, Republican America; they never suspected that many of the *gentlemen* and *ladies* who came from the South to spend the summer months in travelling among them, were petty tyrants at home. And those who had lived at the South, and came to reside at the North, were too *ashamed of slavery* even to speak of it; the language of their hearts was, "tell it *not* in Gath, publish it *not* in the streets of Askelon;" they saw no use in uncovering the loathsome body to popular sight, and in hopeless despair, wept in secret places over the sins of oppression. To such hidden mourners the formation of Anti-Slavery Societies was as life from the dead, the first beams of hope which gleamed through the dark clouds of despondency and grief. Prints were made use of to effect the abolition of the Inquisition in Spain, and Clarkson employed them when he was laboring to break up the Slave trade, and English Abolitionists used them just as we are now doing. They are powerful appeals and have invariably done the work they were designed to do, and we cannot consent to abandon the use of these until the *realities* no longer exist.

With regard to those white men, who, it was said, did try to raise an insurrection in Mississippi a year ago, and who were stated to be Abolitionists, none of them were proved to be members of Anti-Slavery Societies, and it must remain a matter of great doubt whether, even they were guilty of the crimes alledged against them, because when any community is thrown into such a panic as to inflict Lynch law upon accused persons, they cannot be supposed to be capable of judging with calmness and impartiality. *We know* that the papers of which the Charleston mail was

robbed, were *not* insurrectionary, and that they were *not* sent to the colored people as was reported. *We know* that Amos Dresser was *no insurrectionist* though he was accused of being so, and on this false accusation was publicly whipped in Nashville in the midst of a crowd of infuriated *slaveholders*. Was that young man disgraced by this infliction of corporal punishment? No more than was the great apostle of the Gentiles who five times received forty stripes, save one. Like him, he might have said, "henceforth I bear in my body the marks of the Lord Jesus," for it was for the *truth's sake, he suffered*, as much as did the Apostle Paul. Are Nelson, and Garrett, and Williams, and other Abolitionists who have recently been banished from Missouri, insurrectionists? *We know* they are *not*, whatever slaveholders may choose to call them. The spirit which now asperses the character of the Abolitionists, is the *very same* which dressed up the Christians of Spain in the skins of wild beasts and pictures of devils when they were led to execution as heretics. Before we condemn individuals, it is necessary, even in a wicked community, to accuse them of some crime; hence, when Jezebel wished to compass the death of Naboth, men of Belial were suborned to bear *false* witness against him, and so it was with Stephen, and so it ever has been, and ever will be, as long as there is any virtue to suffer on the rack, or the gallows. *False* witnesses must appear against Abolitionists before they can be condemned.

I will now say a few words on George Thompson's mission to this country. This Philanthropist was accused of being a foreign emissary. Were La Fayette, and Steuben, and De Kalb, foreign emissaries when they came over to America to fight against the tories, who preferred submitting to what was termed, "the yoke of servitude," rather than bursting the fetters which bound them to the mother country? *They* came with *carnal weapons* to engage in *bloody* conflict against American citizens, and yet, where do their names stand on the page of History. Among the honorable, or the low? Thompson came here to war against the giant sin of slavery, *not* with the sword and the pistol, but with the smooth stones of oratory taken from the pure waters of the river of Truth. His splendid talents and commanding eloquence rendered him a powerful coadjutor in the Anti-Slavery cause, and in order to neutralize the effects of these upon his auditors, and rob the poor slave of the benefits of his labors, his character was defamed, his life was sought, and he at last driven from our Republic, as a fugitive. But was *Thompson*

disgraced by all this mean and contemptible and wicked chicanery and malice? No more than was Paul, when in consequence of a vision he had seen at Troas, he went over to Macedonia to help the Christians there, and was beaten and imprisoned, because he cast out a spirit of divination from a young damsel which had brought much gain to her masters. Paul was as much a *foreign emissary* in the Roman colony of Philippi, as George Thompson was in America, and it was because he was a *Jew*, and taught customs it was not lawful for them to receive or observe, being Romans, that the Apostle was thus treated.

It was said, Thompson was a felon, who had fled to this country to escape transportation to New Holland. Look at him now pouring the thundering strains of his eloquence, upon crowded audiences in Great Britain, and see in this a triumphant vindication of his character. And have the slaveholder, and his obsequious apologist, gained any thing by all their violence and falsehood? No! for the stone which struck Goliath of Gath, had already been thrown from the sling. The giant of slavery who had so proudly defied the armies of the living God, had received his death-blow before he left our shores. But what is George Thompson doing there? Is he not now laboring there, as effectually to abolish American slavery as though he trod our own soil, and lectured to New York or Boston assemblies? What is he doing there, but constructing a stupendous dam, which will turn the overwhelming tide of public opinion over the wheels of that machinery which Abolitionists are working here. He is now lecturing to *Britons* on *American Slavery*, to the *subjects* of a *King*, on the abject condition of the *slaves of a Republic*. He is telling them of that mighty confederacy of petty tyrants which extends over thirteen States of our Union. He is telling them of the munificent rewards offered by slaveholders, for the heads of the most distinguished advocates for freedom in this country. He is moving the British Churches to send out to the churches of America the most solemn appeals, reproof, rebuking, and exhorting them with all long suffering and patience to abandon the sin of slavery immediately. Where then I ask, will the name of George Thompson stand on the page of History? Among the honorable, or the base?

What can I say more, my friends, to induce *you* to set your hands, and heads, and hearts, to this great work of justice and mercy. Perhaps you have feared the consequences of immediate Emancipation, and been frightened

by all those dreadful prophecies of rebellion, bloodshed and murder, which have been uttered. "Let no man deceive you;" they are the predictions of that same "lying spirit" which spoke through the four thousand prophets of old, to Ahab king of Israel, urging him on to destruction. *Slavery* may produce these horrible scenes if it is continued five years longer, but Emancipation *never will*.

I can prove the *safety* of immediate Emancipation by history. In St. Domingo in 1793 six hundred thousand slaves were set free in a white population of forty-two thousand. That Island "marched as by enchantment towards its ancient splendor", cultivation prospered, every day produced perceptible proofs of its progress, and the negroes all continued quietly to work on the different plantations, until in 1802, France determined to reduce these liberated slaves again to bondage. It was at *this time* that all those dreadful scenes of cruelty occurred, which we so often *unjustly* hear spoken of, as the effects of Abolition. They were occasioned *not* by Emancipation, but by the base attempt to fasten the chains of slavery on the limbs of liberated slaves.

In Guadaloupe eighty-five thousand slaves were freed in a white population of thirteen thousand. The same prosperous effects followed manumission here, that had attended it in Hayti, every thing was quiet until Buonaparte sent out a fleet to reduce these negroes again to slavery, and in 1802 this institution was re-established in that Island. In 1834, when Great Britain determined to liberate the slaves in her West India colonies, and proposed the apprenticeship system; the planters of Bermuda and Antigua, after having joined the other planters in their representations of the bloody consequences of Emancipation, in order if possible to hold back the hand which was offering the boon of freedom to the poor negro; as soon as they found such falsehoods were utterly disregarded, and Abolition must take place, came forward voluntarily, and asked for the compensation which was due to them, saying, *they preferred immediate emancipation*, and were not afraid of any insurrection. And how is it with these islands now? They are decidedly more prosperous than any of those in which the apprenticeship system was adopted, and England is now trying to abolish that system, so fully convinced is she that immediate Emancipation is the *safest* and the best plan.

And why not try it in the Southern States, if it *never* has occasioned rebellion; if *not a drop of blood* has ever been shed in consequence of it, though it has been so often tried, why should we suppose it would produce such disastrous consequences now? "Be not deceived then, God is not mocked," by such false excuses for not doing justly and loving mercy. There is nothing to fear from immediate Emancipation, but *every thing* from the continuance of slavery.

Sisters in Christ, I have done. As a Southerner, I have felt it was my duty to address you. I have endeavoured to set before you the exceeding sinfulness of slavery, and to point you to the example of those noble women who have been raised up in the church to effect great revolutions, and to suffer for the truth's sake. I have appealed to your sympathies as women, to your sense of duty as *Christian women*>. I have attempted to vindicate the Abolitionists, to prove the entire safety of immediate Emancipation, and to plead the cause of the poor and oppressed. I have done—I have sowed the seeds of truth, but I well know, that even if an Apollos were to follow in my steps to water them, "*God only* can give the increase." To Him then who is able to prosper the work of his servant's hand, I commend this Appeal in fervent prayer, that as he "*hath chosen the weak things of the world*, to confound the things which are mighty," so He may cause His blessing, to descend and carry conviction to the hearts of many Lydias through these speaking pages. Farewell.—Count me not your "enemy because I have told you the truth," but believe me in unfeigned affection,

Your sympathizing Friend,

ANGELINA E. GRIMKÉ.

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**APPEAL
TO THE
CHRISTIAN WOMEN OF THE SOUTH,**

BY A.E. GRIMKÉ

REVISED AND CORRECTED.

"Then Mordecai commanded to answer Esther, Think not within thyself that thou shalt escape in the king's house more than all the Jews. For if thou altogether holdest thy peace at this time, then shalt there enlargement and deliverance arise to the Jews from another place: but thou and thy father's house shall be destroyed: and who knoweth whether thou art come to the kingdom for such a time as this. And Esther bade them return Mordecai this answer:—and so will I go in unto the king, which is not according to law, and *if I perish, I perish.*"

Esther IV. 13-16.

RESPECTED FRIENDS,

It is because I feel a deep and tender interest in your present and eternal welfare that I am willing thus publicly to address you. Some of you have loved me as a relative, and some have felt bound to me in Christian sympathy, and Gospel fellowship; and even when compelled by a strong sense of duty, to break those outward bonds of union which bound us together as members of the same community, and members of the same religious denomination, you were generous enough to give me credit, for sincerity as a Christian, though you believed I had been most strangely deceived. I thanked you then for your kindness, and I ask you *now*, for the sake of former confidence, and former friendship, to read the following pages in the spirit of calm investigation and fervent prayer. It is because you have known me, that I write thus unto you.

But there are other Christian women scattered over the Southern States, of whom a very large number have never seen me, and never heard my name, and feel *no* personal interest whatever in *me*. But I feel an interest in *you*, as branches of the same vine from whose root I daily draw the principle of spiritual vitality—Yes! Sisters in Christ I feel an interest in *you*, and often has the secret prayer arisen on your behalf, Lord "open thou their eyes that they may see wondrous things out of thy Law"—It is then, because I *do feel* and *do pray* for you, that I thus address you upon a subject about which of all others, perhaps you would rather not hear any thing; but, "would to God ye could bear with me a little in my folly, and indeed bear with me, for I am jealous over you with godly jealousy." Be not afraid then to read my appeal; it is *not* written in the heat of passion or prejudice, but in that solemn calmness which is the result of conviction and duty. It is true, I am going to tell you unwelcome truths, but I mean to speak these *truths in love*, and remember Solomon says, "faithful are the *wounds* of a friend." I do not believe the time has yet come when *Christian women* "will not endure sound doctrine," even on the subject of Slavery, if it is spoken to them in tenderness and love, therefore I now address *you*.

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To all of you then, known or unknown, relatives or strangers, (for you are all *one* in Christ,) I would speak. I have felt for you at this time, when unwelcome light is pouring in upon the world on the subject of slavery; light which even Christians would exclude, if they could, from our country, or at any rate from the southern portion of it, saying, as its rays strike the rock bound coasts of New England and scatter their warmth and radiance over her hills and valleys, and from thence travel onward over the Palisades of the Hudson, and down the soft flowing waters of the Delaware and gild the waves of the Potomac, "hitherto shalt thou come and no further;" I know that even professors of His name who has been emphatically called the "Light of the world" would, if they could, build a wall of adamant around the Southern States whose top might reach unto heaven, in order to shut out the light which is bounding from mountain to mountain and from the hills to the plains and valleys beneath, through the vast extent of our Northern States. But believe me, when I tell you, their attempts will be as utterly fruitless as were the efforts of the builders of Babel; and why? Because moral, like natural light, is so extremely subtle in its nature as to overleap all human barriers, and laugh at the puny efforts of man to control it. All the excuses and palliations of this system must inevitably be swept away, just as other "refuges of lies" have been, by the irresistible torrent of a rectified public opinion. "The *supporters* of the slave system," says Jonathan Dymond in his admirable work on the Principles of Morality, "will *hereafter* be regarded with the *same* public feeling, as he who was an advocate for the slave trade *now* is." It will be, and that very soon, clearly perceived and fully acknowledged by all the virtuous and the candid, that in *principle* it is as sinful to hold a human being in bondage who has been born in Carolina, as one who has been born in Africa. All that sophistry of argument which has been employed to prove, that although it is sinful to send to Africa to procure men and women as slaves, who have never been in slavery, that still, it is not sinful to keep those in bondage who have come

down by inheritance, will be utterly overthrown. We must come back to the good old doctrine of our forefathers who declared to the world, "this self evident truth that *all* men are created equal, and that they have certain *inalienable* rights among which are life, *liberty*, and the pursuit of happiness." It is even a greater absurdity to suppose a man can be legally born a slave under *our free Republican* Government, than under the petty despotisms of barbarian Africa. If then, we have no right to enslave an African, surely we can have none to enslave an American; if it is a self evident truth that *all* men, every where and of every color are born equal, and have an *inalienable right to liberty*, then it is equally true that *no* man can be born a slave, and no man can ever *rightfully* be reduced to *involuntary* bondage and held as a slave, however fair may be the claim of his master or mistress through wills and title-deeds.

But after all, it may be said, our fathers were certainly mistaken, for the Bible sanctions Slavery, and that is the highest authority. Now the Bible is my ultimate appeal in all matters of faith and practice, and it is to *this test* I am anxious to bring the subject at issue between us. Let us then begin with Adam and examine the charter of privileges which was given to him. "Have dominion over the fish of the sea, and over the fowl of the air, and over every living thing that moveth upon the earth." In the eighth Psalm we have a still fuller description of this charter which through Adam was given to all mankind. "Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet. All sheep and oxen, yea, and the beasts of the field, the fowl of the air, the fish of the sea, and whatsoever passeth through the paths of the seas." And after the flood when this charter of human rights was renewed, we find *no additional* power vested in man. "And the fear of you and the dread of you shall be upon every beast of the earth, and every fowl of the air, and upon all that moveth upon the earth, and upon all the fishes of the sea, into your hand are they delivered." In this charter, although the different kinds of *irrational* beings are so particularly enumerated, and supreme dominion over *all of them* is granted, yet *man* is *never* vested with this dominion over *his fellow man*; he was never told that any of the human species were put *under his feet*; it was only *all things*, and man, who was created in the image of his Maker, *never* can properly be termed a *thing*, though the laws of Slave States do call him "a chattel personal;" *Man* then, I assert *never* was put *under the feet of man*, by that

first charter of human right, which was given by God, to the Fathers of the Antediluvian and Postdiluvian worlds, therefore this doctrine of equality is based on the Bible.

But it may be argued, that in the very chapter of Genesis from which I have last quoted, will be found the curse pronounced upon Canaan, by which his posterity was consigned to servitude under his brothers Shem and Japheth. I know this prophecy was uttered, and was most fearfully and wonderfully fulfilled, through the immediate descendants of Canaan, i.e. the Canaanites, and I do not know but it has been through all the children of Ham, but I do know that prophecy does *not* tell us what *ought to be*, but what actually does take place, ages after it has been delivered, and that if we justify America for enslaving the children of Africa, we must also justify Egypt for reducing the children of Israel to bondage, for the latter was foretold as explicitly as the former. I am well aware that prophecy has often been urged as an excuse for Slavery, but be not deceived, the fulfilment of prophecy will *not cover one sin* in the awful day of account. Hear what our Saviour says on this subject; "it must needs be that offences come, but *woe unto that man through whom they come*"—Witness some fulfilment of this declaration in the tremendous destruction of Jerusalem, occasioned by that most nefarious of all crimes the crucifixion of the Son of God. Did the fact of that event having been foretold, exculpate the Jews from sin in perpetrating it; No—for hear what the Apostle Peter says to them on this subject, "Him being delivered by the determinate counsel and foreknowledge of God, *ye* have taken, and by *wicked* hands have crucified and slain." Other striking instances might be adduced, but these will suffice.

But it has been urged that the patriarchs held slaves, and therefore, slavery is right. Do you really believe that patriarchal servitude was like American slavery? Can you believe it? If so, read the history of these primitive fathers of the church and be undeceived. Look at Abraham, though so great a man, going to the herd himself and fetching a calf from thence and serving it up with his own hands, for the entertainment of his guests. Look at Sarah, that princess as her name signifies, baking cakes upon the hearth. If the servants they had were like Southern slaves, would they have performed such comparatively menial offices for themselves? Hear too the plaintive lamentation of Abraham when he feared he should have no son to bear his name down to posterity. "Behold thou hast given me no seed, &c., one born

in my house is *mine* heir." From this it appears that one of his *servants* was to inherit his immense estate. Is this like Southern slavery? I leave it to your own good sense and candor to decide. Besides, such was the footing upon which Abraham was with *his* servants, that he trusted them with arms. Are slaveholders willing to put swords and pistols into the hands of their slaves? He was as a father among his servants; what are planters and masters generally among theirs? When the institution of circumcision was established, Abraham was commanded thus; "He that is eight days old shall be circumcised among you, *every* man-child in your generations; he that is born in the house, or bought with money of any stranger which is not of thy seed." And to render this command with regard to his *servants* still more impressive it is repeated in the very next verse; and herein we may perceive the great care which was taken by God to guard the *rights of servants* even under this "dark dispensation." What too was the testimony given to the faithfulness of this eminent patriarch. "For I know him that he will command his children and his *household* after him, and they shall keep the way of the Lord to do justice and judgment." Now my dear friends many of you believe that circumcision has been superseded by baptism in the Church; *Are you* careful to have *all* that are born in your house or bought with money of any stranger, baptized? *Are you* as faithful as Abraham to command *your household* to *keep the way of the Lord*? I leave it to your own consciences to decide. Was patriarchal servitude then like American Slavery?

But I shall be told, God sanctioned Slavery, yea commanded Slavery under the Jewish Dispensation. Let us examine this subject calmly and prayerfully. I admit that a species of *servitude* was permitted to the Jews, but in studying the subject I have been struck with wonder and admiration at perceiving how carefully the servant was guarded from violence, injustice, and wrong. I will first inform you how these servants became servants, for I think this a very important part of our subject. From consulting Horne, Calmet, and the Bible, I find there were six different ways by which the Hebrews became servants legally.

1. A Hebrew, whose father was still alive, and who on that account had not inherited his patrimonial estate, might sell himself, i.e., his services, for six years, in which case *he* received the purchase money *himself*. Ex. xxi, 2.

2. A father might sell his children as servants, i.e., his *daughters*, in which circumstance it was understood the daughter was to be the wife or daughter-in-law of the man who bought her, and the *father* received the price. In other words, Jewish women were sold as *white women* were in the first settlement of Virginia—as *wives*, *not* as slaves. Ex. xxi, 7-11.

3. Thieves not able to make restitution for their thefts, were sold for the benefit of the injured person. Ex. xxii, 3.

4. They might be born in servitude. Ex. xxi, 4.

5. If reduced to extreme poverty, a Hebrew might sell himself; but in such a case he was to serve, not as a bondsman, whose term of service was only six years, nor was he to serve as a hired servant, who received his wages every evening, nor yet as a sojourner or temporary resident in the family, but he was to serve his master until the year of Jubilee^A. Lev. xxv, 39, 40.

^A: If the reader will leave out the italicised words—But and And, in the 40th verse—he will find that I am fully authorized in the meaning I have attached to it. But and And are *not* in the original Hebrew; have been introduced by the translators, and entirely destroy the true sense of the passage.

6. If a Hebrew had sold himself to a rich Gentile, he might be redeemed by one of his brethren at any time the money was offered; and he who redeemed him, was *not* to take advantage of the favor thus conferred, and rule over him with rigor. Lev. xxv, 47-55.

Before going into an examination of the laws by which these servants were protected, I would just ask whether American slaves have become slaves in any of the ways in which the Hebrews became servants. Did they sell themselves into slavery and receive the purchase money into their own hands? No! No! Did they steal the property of another, and were they sold to make restitution for their crimes? No! Did their present masters, as an act of kindness, redeem them from some heathen tyrant to whom *they had sold themselves* in the dark hour of adversity? No! Were they born in slavery? No! No! Not according to *Jewish Law*, for the servants who were born in servitude among them, were born of parents who had *sold themselves*: Ex. xxi, 4; Lev. xxv, 39, 40. Were the female slaves of the South sold by their

fathers? How shall I answer this question? Thousands and tens of thousands never were, *their* fathers *never* have received the poor compensation of silver or gold for the tears and toils, the suffering, and anguish, and hopeless bondage of *their* daughters. They labor day by day, and year by year, side by side, in the same field, if haply their daughters are permitted to remain on the same plantation with them, instead of being, as they often are, separated from their parents and sold into distant states, never again to meet on earth. But do the *fathers of the South ever sell their daughters*? My heart beats, and my hand trembles, as I write the awful affirmative, Yes! The fathers of this Christian land often sell their daughters, *not* as Jewish parents did, to be the wives and daughters-in-law of the men who buy them, but to be the abject slaves of petty tyrants and irresponsible masters. Is it not so, my friends? I leave it to your own candor to corroborate my assertion. Southern slaves then have *not* become slaves in any of the six different ways in which Hebrews became servants, and I hesitate not to say that American masters *cannot* according to *Jewish law* substantiate their claim to the men, women, or children they now hold in bondage.

But there was one way in which a Jew might illegally be reduced to servitude; it was this, he might be *stolen* and afterwards sold as a slave, as was Joseph. To guard most effectually against this dreadful crime of manstealing, God enacted this severe law. "He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death." And again, "If a man be found stealing any of his brethren of the children of Israel, and maketh merchandise of him, or selleth him; then *that thief shall die*; and thou shalt put away evil from among you." Deut. xxiv, 7. As I have tried American Slavery by *legal* Hebrew servitude, and found, (to your surprise, perhaps,) that Jewish law cannot justify the slaveholder's claim, let us now try it by *illegal* Hebrew bondage. Have the Southern slaves then been stolen? If they did not sell themselves into bondage; if they were not sold as thieves; if they were not redeemed from a heathen master to whom *they had sold themselves*; if they were not born in servitude according to Hebrew law; and if the females were not sold by their fathers as wives and daughters-in-law to those who purchased them; then what shall we say of them? what can we say of them? but that according to *Hebrew Law they have been stolen*.

But I shall be told that the Jews had other servants who were absolute slaves. Let us look a little into this also. They had other servants who were procured from the heathen.

Bondmen and bondmaids might be bought of the heathen round about them. Lev. xxv, 44.

I will now try the right of the southern planter by the claims of Hebrew masters to their *heathen* servants. Were the southern slaves bought from the heathen? No! For surely, no one will *now* vindicate the slave-trade so far as to assert that slaves were bought from the heathen who were obtained by that system of piracy. The only excuse for holding southern slaves is that they were born in slavery, but we have seen that they were *not* born in servitude as Jewish servants were, and that the children of heathen servants were not legally subjected to bondage, even under the Mosaic Law. How then have the slaves of the South been obtained?

I will next proceed to an examination of those laws which were enacted in order to protect the Hebrew and the Heathen servant; for I wish you to understand that *both* were protected by Him, of whom it is said "his mercies are over *all* his works." I will first speak of those which secured the rights of Hebrew servants. This code was headed thus:

1. Thou shalt *not* rule over him with *rigor*, but shalt fear thy God.
2. If thou buy a Hebrew servant, six years shall he serve, and in the seventh year he shall go out free for nothing. Ex. xxi, 2. And when thou sendest him out free from thee, thou shalt not let him go away empty: Thou shalt furnish him *liberally* out of thy flock and out of thy floor, and out of thy wine-press: of that wherewith the Lord thy God hath blessed thee, shalt thou give unto him. Deut. xv, 13, 14.
3. If he come in by himself, he shall go out by himself; if he were married, then his wife shall go out with him. Ex. xxi, 3.
4. If his master have given him a wife, and she have borne him sons and daughters, the wife and her children shall be his master's, and he shall go out by himself. Ex. xxi, 4.

5. If the servant shall plainly say, I love my master, my wife, and my children; I will not go out free; then his master shall bring him unto the Judges, and he shall bring him to the door, or unto the door-post, and his master shall bore his ear through with an awl, and he shall serve him *for ever*. Ex. xxi, 5, 6.

6. If a man smite the eye of his servant, or the eye of his maid, that it perish, he shall let him go *free* for his eye's sake. And if he smite out his man servant's tooth or his maid servant's tooth, he shall let him go *free* for his tooth's sake. Ex. xxi, 26, 27.

7. On the Sabbath, rest was secured to servants by the fourth commandment. Ex. xx, 10.

8. Servants were permitted to unite with their masters three times in every year in celebrating the Passover, the feast of Weeks, and the feast of Tabernacles; every male throughout the land was to appear before the Lord at Jerusalem with a gift; here the bond and the free stood on common ground. Deut. xvi.

9. If a man smite his servant or his maid with a rod, and he die under his hand, he shall be surely punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money. Ex. xxi, 20, 21.

From these laws we learn, that one class of Hebrew men servants were bound to serve their masters *only six years*, unless their attachment to their employers, their wives and children, should induce them to wish to remain in servitude, in which case, in order to prevent the possibility of deception on the part of the master, the servant was first taken before the magistrate, where he openly declared his intention of continuing in his master's service, (probably a public register was kept of such,) he was then conducted to the door of the house, (in warm climates doors are thrown open.) and *there* his ear was *publicly* bored, and by submitting to this operation, he testified his willingness to serve him in subserviency to the law of God; for let it be remembered, that the door-post was covered with the precepts of that law. Deut. vi, 9. xi, 20: *for ever*, i.e., during his life, for Jewish Rabbins, who must have understood Jewish *slavery* (as it is called), "affirm that servants were set free at the death of their masters, and did *not* descend to their heirs;" or that he was to serve him until the year of Jubilee, when *all*

servants were set at liberty. The other class, when they first sold themselves, agreed to remain until the year of Jubilee. To protect servants from violence, it was ordained, that if a master struck out the tooth or destroyed the eye of a servant, that servant immediately became *free*, for such an act of violence evidently showed he was unfit to possess the power of a master, and therefore that power was taken from him. All servants enjoyed the rest of the Sabbath, and partook of the privileges and festivities of the three great Jewish Feasts; and if a servant died under the infliction of chastisement, his master was surely to be punished. As a tooth for a tooth and life for life was the Jewish law, of course he was punished with death. I know that great stress has been laid upon the following verse: "Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money."

Slaveholders, and the apologists of slavery, have eagerly seized upon this little passage of Scripture, and held it up as the masters' Magna Charta, by which they were licensed by God himself to commit the greatest outrages upon the defenceless victims of their oppression. But, my friends, was it designed to be so? If our Heavenly Father would protect by law the *eye* and the *tooth* of a Hebrew servant, can we for a moment believe that he would abandon that same servant to the brutal rage of a master who would destroy even life itself? Let us then examine this passage with the help of the context. In the 18th and 19th verses we have a law which was made for *freemen* who strove together. Here we find, that if one man smote another, so that he died not, but only kept his bed from being disabled, and he rose again and walked abroad upon his staff, then *he* was to be paid for the loss of his time, and all the expenses of his sickness were to be borne by the man who smote him. The freeman's time was *his own*, and therefore he was to be remunerated for the loss of it. But *not* so with the *servant*, whose time was, as it were, *the money of his master*, because he had already paid for it: If he continued a day or two after being struck, to keep his bed in consequence of any wound received, then his lost time was *not* to be paid for, because it was *not his own*, but his master's, who had already paid him for it. The loss of his time was the *master's loss*, and *not* the servant's. This explanation is confirmed by the fact, that the Hebrew word translated continue, means "to stand still;" *i.e.*, to be unable to go out about his master's work.

Here then we find this stronghold of slavery completely demolished. Instead of its being a license to inflict such chastisement upon a servant as to cause even death itself, it is in fact a law merely to provide that a man should not be required to pay his servant twice over for his time. It is altogether an unfounded assumption on the part of the slaveholder, that this servant *died* after a day or two; the text does not say so, and I contend that he *got well* after a day or two, just as the man mentioned in the 19th verse recovered from the effects of the blows he received. The cases are completely parallel, and the first law throws great light on the second. This explanation is far more consonant with the character of God, and were it not that our vision has been so completely darkened by the existence of slavery in our country, we never could so far have dishonored Him as to have supposed that He sanctioned the murder of a servant; although slaveholding legislators might legalize the killing of a slave in *four* different ways.—(*Stroud's Sketch of Slave Laws.*)

But I pass on now to the consideration of how the *female* Jewish servants were protected by *law*.

1. If she please not her master, who hath betrothed her to himself, then shall he let her be redeemed: to sell her unto another nation he shall have no power, seeing he hath dealt deceitfully with her.
2. If he have betrothed her unto his son, he shall deal with her after the manner of daughters.
3. If he take him another wife, her food, her raiment, and her duty of marriage, shall he not diminish.
4. If he do not these three unto her, then shall she go out *free* without money.

On these laws I will give you Calmet's remarks; "A father could not sell his daughter as a slave, according to the Rabbins, until she was at the age of puberty, and unless he were reduced to the utmost indigence. Besides, when a master bought an Israelitish girl, it was *always* with the presumption that he would take her to wife. Hence Moses adds, 'if she please not her master, and he does not think fit to marry her, he shall set her at liberty,' or according to the Hebrew, 'he shall let her be redeemed.' 'To sell her to

another nation he shall have no power, seeing he hath dealt deceitfully with her;' as to the engagement implied, at least of taking her to wife. 'If he have betrothed her unto his son, he shall deal with her after the manner of daughters;' i.e., he shall take care that his son uses her as his wife, that he does not despise or maltreat her. If he make his son marry another wife, he shall give her her dowry, her clothes, and compensation for her virginity; if he does none of these three, she shall *go out free* without money." Thus were the *rights of female servants carefully secured by law* under the Jewish Dispensation; and now I would ask, are the rights of female slaves at the South thus secured? Are *they* sold only as wives and daughters-in-law, and when not treated as such, are they allowed to *go out free*? No! They have *all* not only been illegally obtained as servants according to Hebrew law, but they are also illegally *held* in bondage. Masters at the South and West have all forfeited their claims, (*if they ever had any*), to their female slaves.

We come now to examine the case of those servants who were "of the heathen round about;" Were *they* left entirely unprotected by law? Horne, in speaking of the law, "Thou shalt not rule over him with rigor, but shalt fear thy God," remarks, "this law, Lev. xxv, 43, it is true, speaks expressly of slaves who were of Hebrew descent; but as *alien born* slaves were ingrafted into the Hebrew Church by circumcision, *there is no doubt* but that it applied to *all* slaves:" if so, then we may reasonably suppose that the other protective laws extended to them also; and that the only difference between Hebrew and Heathen servants lay in this, that the former served but six years, unless they chose to remain longer, and were always freed at the death of their masters; whereas, the latter served until the year of Jubilee, though that might include a period of forty-nine years,—and were left from father to son.

There are, however, two other laws which I have not yet noticed. The one effectually prevented *all involuntary* servitude, and the other completely abolished Jewish servitude every fifty years. They were equally operative upon the Heathen and the Hebrew.

1. "Thou shalt *not* deliver unto his master the servant that is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best: thou shalt *not* oppress him." Deut. xxiii, 15, 16.

2. "And ye shall hallow the fiftieth year, and proclaim *Liberty* throughout *all* the land, unto *all* the inhabitants thereof; it shall be a jubilee unto you." Lev. xxv, 10.

Here, then, we see that by this first law, the *door of Freedom was opened wide to every servant who* had any cause whatever for complaint; if he was unhappy with his master, all he had to do was to leave him, and *no man* had a right to deliver him back to him again, and not only so, but the absconded servant was to *choose* where he should live, and no Jew was permitted to oppress him. He left his master just as our Northern servants leave us; we have no power to compel them to remain with us, and no man has any right to oppress them; they go and dwell in that place where it chooseth them, and live just where they like. Is it so at the South? Is the poor runaway slave protected *by law* from the violence of that master whose oppression and cruelty has driven him from his plantation or his house? No! no! Even the free states of the North are compelled to deliver unto his master the servant that is escaped from his master into them. By *human* law, under the *Christian Dispensation*, in the *nineteenth century* we are commanded to do, what *God* more than *three thousand* years ago, under the *Mosaic Dispensation*, *positively commanded* the Jews *not* to do. In the wide domain even of our free states, there is not *one* city of refuge for the poor runaway fugitive; not one spot upon which he can stand and say, I am a free man—I am protected in my rights as a *man*, by the strong arm of the law; no! *not one*. How long the North will thus shake hands with the South in sin, I know not. How long she will stand by like the persecutor Saul, *consenting* unto the death of Stephen, and keeping the raiment of them that slew him. I know not; but one thing I do know, the *guilt of the North* is increasing in a tremendous ratio as light is pouring in upon her on the subject and the sin of slavery. As the sun of righteousness climbs higher and higher in the moral heavens, she will stand still more and more abashed as the query is thundered down into her ear, "*Who hath required this at thy hand?*" It will be found *no* excuse then that the Constitution of our country required that *persons bound to service* escaping from their masters should be delivered up; no more excuse than was the reason which Adam assigned for eating the forbidden fruit. *He was condemned and punished because* he hearkened to the voice of *his wife*, rather than to the command of his Maker; and we shall assuredly be condemned and punished for obeying *Man* rather than *God*, if

we do not speedily repent and bring forth fruits meet for repentance. Yea, are we not receiving chastisement even *now*?

But by the second of these laws a still more astonishing fact is disclosed. If the first effectually prevented *all involuntary servitude*, the last absolutely forbade even *voluntary servitude being perpetual*. On the great day of atonement every fiftieth year the Jubilee trumpet was sounded throughout the land of Judea, and *Liberty* was proclaimed to *all* the inhabitants thereof. I will not say that the servants' *chains* fell off and their *manacles* were burst, for there is no evidence that Jewish servants *ever* felt the weight of iron chains, and collars, and handcuffs; but I do say that even the man who had voluntarily sold himself and the *heathen* who had been sold to a Hebrew master, were set free, the one as well as the other. This law was evidently designed to prevent the oppression of the poor, and the possibility of such a thing as *perpetual servitude* existing among them.

Where, then, I would ask, is the warrant, the justification, or the palliation of American Slavery from Hebrew servitude? How many of the southern slaves would now be in bondage according to the laws of Moses; Not one. You may observe that I have carefully avoided using the term *slavery* when speaking of Jewish servitude; and simply for this reason, that *no such thing* existed among that people; the word translated servant does *not* mean *slave*, it is the same that is applied to Abraham, to Moses, to Elisha and the prophets generally. *Slavery* then *never* existed under the Jewish Dispensation at all, and I cannot but regard it as an aspersion on the character of Him who is "glorious in Holiness" for any one to assert that "*God sanctioned, yea commanded slavery* under the old dispensation." I would fain lift my feeble voice to vindicate Jehovah's character from so foul a slander. If slaveholders are determined to hold slaves as long as they can, let them not dare to say that the God of mercy and of truth *ever* sanctioned such a system of cruelty and wrong. It is blasphemy against Him.

We have seen that the code of laws framed by Moses with regard to servants was designed to *protect them as men and women*, to secure to them their *rights as human beings*, to guard them from oppression and defend them from violence of every kind. Let us now turn to the Slave laws of the South and West and examine them too. I will give you the substance only,

because I fear I shall trespass too much on your time, were I to quote them at length.

1. *Slavery* is hereditary and perpetual, to the last moment of the slave's earthly existence, and to all his descendants to the latest posterity.

2. The labor of the slave is compulsory and uncompensated; while the kind of labor, the amount of toil, the time allowed for rest, are dictated solely by the master. No bargain is made, no wages given. A pure despotism governs the human brute; and even his covering and provender, both as to quantity and quality, depend entirely on the master's discretion^A.

^A: There are laws in some of the slave states, limiting the labor which the master may require of the slave to fourteen hours daily. In some of the states there are laws requiring the masters to furnish a certain amount of food and clothing, as for instance, *one quart* of corn per day, or *one peck* per week, or *one bushel* per month, and "one linen shirt and pantaloons for the summer, and a linen shirt and woolen great coat and pantaloons for the winter," &c. But "still," to use the language of Judge Stroud "the slave is entirely under the control of his master.—is unprovided with a protector,—and, especially as he cannot be a witness or make complaint in any known mode against his master, the *apparent* object of these laws may *always* be defeated." ED.

3. The slave being considered a personal chattel may be sold or pledged, or leased at the will of his master. He may be exchanged for marketable commodities, or taken in execution for the debts or taxes either of a living or dead master. Sold at auction, either individually, or in lots to suit the purchaser, he may remain with his family, or be separated from them for ever.

4. Slaves can make no contracts and have no *legal* right to any property, real or personal. Their own honest earnings and the legacies of friends belong in point of law to their masters.

5. Neither a slave nor a free colored person can be a witness against any *white*, or free person, in a court of justice, however atrocious may have been the crimes they have seen him commit, if such testimony would be for the benefit of a *slave*; but they may give testimony *against a fellow slave*, or

free colored man, even in cases affecting life, if the *master* is to reap the advantage of it.

6. The slave may be punished at his master's discretion—without trial—without any means of legal redress; whether his offence be real or imaginary; and the master can transfer the same despotic power to any person or persons, he may choose to appoint.

7. The slave is not allowed to resist any free man under *any* circumstances, *his* only safety consists in the fact that his *owner* may bring suit and recover the price of his body, in case his life is taken, or his limbs rendered unfit for labor.

8. Slaves cannot redeem themselves, or obtain a change of masters, though cruel treatment may have rendered such a change necessary for their personal safety.

9. The slave is entirely unprotected in his domestic relations.

10. The laws greatly obstruct the manumission of slaves, even where the master is willing to enfranchise them.

11. The operation of the laws tends to deprive slaves of religious instruction and consolation.

12. The whole power of the laws is exerted to keep slaves in a state of the lowest ignorance.

13. There is in this country a monstrous inequality of law and right. What is a trifling fault in the *white* man, is considered highly criminal in the *slave*; the same offences which cost a white man a few dollars only, are punished in the negro with death.

14. The laws operate most oppressively upon free people of color^{[A](#)}.

^{[A](#)}: See Mrs. Child's Appeal, Chap. II.

Shall I ask you now my friends, to draw the *parallel* between Jewish *servitude* and American *slavery*? No! For there is *no likeness* in the two systems; I ask you rather to mark the contrast. The laws of Moses *protected servants* in their *rights* as *men and women*, guarded them from oppression

and defended them from wrong. The Code Noir of the South *robs the slave of all his rights* as a *man*, reduces him to a chattel personal, and defends the *master* in the exercise of the most unnatural and unwarrantable power over his slave. They each bear the impress of the hand which formed them. The attributes of justice and mercy are shadowed out in the Hebrew code; those of injustice and cruelty, in the Code Noir of America. Truly it was wise in the slaveholders of the South to declare their slaves to be "chattels personal;" for before they could be robbed of wages, wives, children, and friends, it was absolutely necessary to deny they were human beings. It is wise in them, to keep them in abject ignorance, for the strong man armed must be bound before we can spoil his house—the powerful intellect of man must be bound down with the iron chains of nescience before we can rob him of his rights as a man; we must reduce him to a *thing* before we can claim the right to set our feet upon his neck, because it was only *all things* which were originally *put under the feet of man* by the Almighty and Beneficent Father of all, who has declared himself to be *no respecter* of persons, whether red, white or black.

But some have even said that Jesus Christ did not condemn slavery. To this I reply that our Holy Redeemer lived and preached among the Jews only. The laws which Moses had enacted fifteen hundred years previous to his appearance among them, had never been annulled, and these laws protected every servant in Palestine. If then He did not condemn Jewish servitude this does not prove that he would not have condemned such a monstrous system as that of American *slavery*, if that had existed among them. But did not Jesus condemn slavery? Let us examine some of his precepts. "*Whatsoever ye would that men should do to you, do ye even so to them.*" Let every slaveholder apply these queries to his own heart; Am *I* willing to be a slave—Am *I* willing to see my wife the slave of another—Am *I* willing to see my mother a slave, or my father, my sister or my brother? If not, then in holding others as slaves, I am doing what I would *not* wish to be done to me or any relative I have; and thus have I broken this golden rule which was given *me* to walk by.

But some slaveholders have said, "we were never in bondage to any man," and therefore the yoke of bondage would be insufferable to us, but slaves are accustomed to it, their backs are fitted to the burden. Well, I am willing to admit that you who have lived in freedom would find slavery even more

oppressive than the poor slave does, but then you may try this question in another form—Am I willing to reduce *my little child* to slavery? You know that *if it is brought up a slave* it will never know any contrast, between freedom and bondage, its back will become fitted to the burden just as the negro child's does—*not by nature*—but by daily, violent pressure, in the same way that the head of the Indian child becomes flattened by the boards in which it is bound. It has been justly remarked that "*God never made a slave*," he made man upright; his back was *not* made to carry burdens, nor his neck to wear a yoke, and the *man* must be crushed within him, before *his* back can be *fitted* to the burden of perpetual slavery; and that his back is *not* fitted to it, is manifest by the insurrections that so often disturb the peace and security of slaveholding countries. Who ever heard of a rebellion of the beasts of the field; and why not? simply because *they* were all placed *under the feet of man*, into whose hand they were delivered; it was originally designed that they should serve him, therefore their necks have been formed for the yoke, and their backs for the burden; but *not so with man*, intellectual, immortal man! I appeal to you, my friends, as mothers; Are you willing to enslave *your* children? You start back with horror and indignation at such a question. But why, if slavery is *no wrong* to those upon whom it is imposed? why, if as has often been said, slaves are happier than their masters, free from the cares and perplexities of providing for themselves and their *wanting*? Try yourselves by another of the Divine precepts, "Thou shalt love thy neighbor as thyself." Can we love a man *as we love ourselves if we do, and continue to do* unto him, what we would not wish any one to do to us? Look, too, at Christ's example, what does he say of himself, "I came *not* to be ministered unto, but to minister." Can you for a moment imagine the meek and lowly, and compassionate Saviour, *a slaveholder*? Do you not shudder at this thought as much as at that of his being *a warrior*? But why, if slavery is not sinful?

Again, it has been said, the Apostle Paul did not condemn slavery, for he sent Onesimus back to Philemon. I do not think it can be said he sent him back, for no coercion was made use of. Onesimus was not thrown into prison and then sent back in chains to his master, as your runaway slaves often are—this could not possibly have been the case, because you know Paul as a Jew, was *bound to protect* the runaway; *he had no right* to send *any* fugitive back to his master. The state of the case then seems to have

been this. Onesimus had been an unprofitable servant to Philemon and left him—he afterwards became converted under the Apostle's preaching, and seeing that he had been to blame in his conduct, and desiring by future fidelity to atone for past error, he wished to return, and the Apostle gave him the letter we now have as a recommendation to Philemon, informing him of the conversion of Onesimus, and entreating him as "Paul the aged" "to receive him, *not* now as a *servant*, but *above* a servant, a *brother beloved*, especially to me, but how much more unto thee, both in the flesh and in the Lord. If thou count *me* therefore as a partner, *receive him as myself*." This, then, surely cannot be forced into a justification of the practice of returning runaway slaves back to their masters, to be punished with cruel beatings and scourgings as they often are. Besides the word *doulos* here translated servant, is the same that is made use of in Matt. xviii, 27. Now it appears that this servant *owed* his lord ten thousand talents; he possessed property to a vast amount. And what is still more surprising, if he was a *slave*, is, that "forasmuch as he had not to pay, his lord commanded *him* to be sold, and his wife and children, and all that he had, and payment to be made." Whoever heard of a slaveholder selling a *slave* and his family to pay himself a debt due to him from a *slave*? What would he gain by it when the slave is himself his *property*, and his wife and children also? Onesimus could not, then, have been a *slave*, for slaves do not own their wives or children; no, not even their own bodies, much less property. But again, the servitude which the apostle was accustomed to, must have been very different from American slavery, for he says, "the heir (or son), as long as he is a child, differeth *nothing from a servant*, though he be lord of all. But is under *tutors* and governors until the time appointed of the father." From this it appears, that the means of *instruction* were provided for *servants* as well as children; and indeed we know it must have been so among the Jews, because their servants were not permitted to remain in perpetual bondage, and therefore it was absolutely necessary they should be prepared to occupy higher stations in society than those of servants. Is it so at the South, my friends? Is the daily bread of instruction provided for *your slaves*? are their minds enlightened, and they gradually prepared to rise from the grade of menials into that of *free*, independent members of the state? Let your own statute book, and your own daily experience, answer these questions.

If this apostle sanctioned *slavery*, why did he exhort masters thus in his epistle to the Ephesians, "and ye, masters, do the same things unto them (i.e. perform your duties to your servants as unto Christ, not unto men) *forbearing threatening*; knowing that your master also is in heaven, neither is *there respect of persons with him*." And in Colossians, "Masters give unto your servants that which is *just and equal*, knowing that ye also have a master in heaven." Let slaveholders only *obey* these injunctions of Paul, and I am satisfied slavery would soon be abolished. If he thought it sinful even to *threaten* servants, surely he must have thought it sinful to flog and to beat them with sticks and paddles; indeed, when delineating the character of a bishop, he expressly names this as one feature of it, "*no striker*." Let masters give unto their servants that which is *just and equal*, and all that vast system of unrequited labor would crumble into ruin. Yes, and if they once felt they had no right to the *labor* of their servants without pay, surely they could not think they had a right to their wives, their children, and their own bodies. Again, how can it be said Paul sanctioned slavery, when, as though to put this matter beyond all doubt, in that black catalogue of sins enumerated in his first epistle to Timothy, he mentions "*menstealers*," which word may be translated "*slavedealers*." But you may say, we all despise slavedealers as much as any one can; they are never admitted into genteel or respectable society. And why not? Is it not because even you shrink back from the idea of associating with those who make their fortunes by trading in the bodies and souls of men, women, and children? whose daily work it is to break human hearts, by tearing wives from their husbands, and children from their parents? But why hold slavedealers as despicable, if their trade is lawful and virtuous? and why despise them more than the *gentlemen of fortune and standing* who employ them as *their* agents? Why more than the *professors of religion* who barter their fellow-professors to them for gold and silver? We do not despise the land agent, or the physician, or the merchant, and why? Simply because their processions are virtuous and honorable; and if the trade of men-jobbers was honorable, you would not despise them either. There is no difference in *principle*, in *Christian ethics*, between the despised slavedealer and the *Christian* who buys slaves from, or sells slaves to him; indeed, if slaves were not wanted by the respectable, the wealthy, and the religious in a community, there would be no slaves in that community, and of course no *slavedealers*. It is then the *Christians* and the *honorable men and women* of the South, who

are the *main pillars* of this grand temple built to Mammon and to Moloch. It is the *most enlightened*, in every country who are *most* to blame when any public sin is supported by public opinion, hence Isaiah says, "*When the Lord hath performed his whole work upon mount Zion and on Jerusalem, (then) I will punish the fruit of the stout heart of the king of Assyria, and the glory of his high looks.*" And was it not so? Open the historical records of that age, was not Israel carried into captivity B.C. 721, Judah B.C. 588, and the stout heart of the heathen monarchy not punished until B.C. 536, fifty-two years *after* Judah's, and 185 years, *after* Israel's captivity, when it was overthrown by Cyrus, king of Persia? Hence, too, the apostle Peter says, "judgment must *begin at the house of God.*" Surely this would not be the case, if the *professors of religion* were not *most worthy* of blame.

But it may be asked, why are *they* most culpable? I will tell you, my friends. It is because sin is imputed to us just in proportion to the spiritual light we receive. Thus the prophet Amos says, in the name of Jehovah, "*You only have I known of all the families of the earth: therefore I will punish you for all your iniquities.*" Hear too the doctrine of our Lord on this important subject: "The servant who *knew* his Lord's will and *prepared not* himself, neither did according to his will, shall be beaten with *many stripes:*" and why? "For unto whomsoever *much* is given, *of him* shall *much* be required; and to whom men have committed *much*, *of him* they will ask the *more.*" Oh! then that the *Christians* of the south would ponder these things in their hearts, and awake to the vast responsibilities which rest *upon them* at this important crisis.

I have thus, I think, clearly proved to you seven propositions, viz.: First, that slavery is contrary to the declaration of our independence. Second, that it is contrary to the first charter of human rights given to Adam, and renewed to Noah. Third, that the fact of slavery having been the subject of prophecy, furnishes *no* excuse whatever to slaveholders. Fourth, that no such system existed under the patriarchal dispensation. Fifth, that *slavery never* existed under the Jewish dispensation; but so far otherwise, that every servant was placed under the *protection of law*, and care taken not only to prevent all *involuntary* servitude, but all *voluntary perpetual* bondage. Sixth, that slavery in America reduces a *man* to a *thing*, a "chattel personal," *robs him* of *all* his rights as a *human being*, fetters both his mind and body, and protects the *master* in the most unnatural and unreasonable power,

whilst it *throws him out* of the protection of law. Seventh, that slavery is contrary to the example and precepts of our holy and merciful Redeemer, and of his apostles.

But perhaps you will be ready to query, why appeal to *women* on this subject? We do not make the laws which perpetuate slavery. No legislative power is vested in *us*; we can do nothing to overthrow the system, even if we wished to do so. To this I reply, I know you do not make the laws, but I also know that *you are the wives and mothers, the sisters and daughters of those who do*; and if you really suppose *you* can do nothing to overthrow slavery, you are greatly mistaken. You can do much in every way: four things I will name. 1st. You can read on this subject. 2d. You can pray over this subject. 3d. You can speak on this subject. 4th. You can act on this subject. I have not placed reading before praying because I regard it more important, but because, in order to pray right, we must understand what we are praying for; it is only then we can "pray with the understanding and the spirit also."

1. Read then on the subject of slavery. Search the Scriptures daily, whether the things I have told you are true. Other books and papers might be a great help to you in this investigation, but they are not necessary, and it is hardly probable that your Committees of Vigilance will allow you to have any other. The *Bible* then is the book I want you to read in the spirit of inquiry, and the spirit of prayer. Even the enemies of Abolitionists, acknowledge that their doctrines are drawn from it. In the great mob in Boston, last autumn, when the books and papers of the Anti-Slavery Society, were thrown out of the windows of their office, one individual laid hold of the Bible and was about tossing it out to the crowd, when another reminded him that it was the Bible he had in his hand. "*Oh! 'tis all one,*" he replied, and out went the sacred volume, along with the rest. We thank him for the acknowledgment. Yes, "*it is all one,*" for our books and papers are mostly commentaries on the Bible, and the Declaration. Read the *Bible* then; it contains the words of Jesus, and they are spirit and life. Judge for yourselves whether *he sanctioned* such a system of oppression and crime.

2. Pray over this subject. When you have entered into your closets, and shut to the doors, then pray to your father, who seeth in secret, that he would open your eyes to see whether slavery is *sinful*, and if it is, that he would

enable you to bear a faithful, open and unshrinking testimony against it, and to do whatsoever your hands find to do, leaving the consequences entirely to him, who still says to us whenever we try to reason away duty from the fear of consequences, "*What is that to thee, follow thou me.*" Pray also for the poor slave, that he may be kept patient and submissive under his hard lot, until God is pleased to open the door of freedom to him without violence or bloodshed. Pray too for the master that his heart may be softened, and he made willing to acknowledge, as Joseph's brethren did, "Verily we are guilty concerning our brother," before he will be compelled to add in consequence of Divine judgment, "therefore is all this evil come upon us." Pray also for all your brethren and sisters who are laboring in the righteous cause of Emancipation in the Northern States, England and the world. There is great encouragement for prayer in these words of our Lord. "Whatsoever ye shall ask the Father in any name, he will give it to you"—Pray then without ceasing, in the closet and the social circle.

3. Speak on this subject. It is through the tongue, the pen, and the press, that truth is principally propagated. Speak then to your relatives, your friends, your acquaintances on the subject of slavery; be not afraid if you are conscientiously convinced it is *sinful*, to say so openly, but calmly, and to let your sentiments be known. If you are served by the slaves of others, try to ameliorate their condition as much as possible; never aggravate their faults, and thus add fuel to the fire of anger already kindled, in a master and mistress's bosom; remember their extreme ignorance, and consider them as your Heavenly Father does the *less* culpable on this account, even when they do wrong things. Discountenance *all* cruelty to them, all starvation, all corporal chastisement; these may brutalize and *break* their spirits, but will never bend them to willing, cheerful obedience. If possible, see that they are comfortably and *seasonably* fed, whether in the house or the field; it is unreasonable and cruel to expect slaves to wait for their breakfast until eleven o'clock, when they rise at five or six. Do all you can, to induce their owners to clothe them well, and to allow them many little indulgences which would contribute to their comfort. Above all, try to persuade your husband, father, brothers and sons, that *slavery is a crime against God and man*, and that it is a great sin to keep *human beings* in such abject ignorance; to deny them the privilege of learning to read and write. The Catholics are universally condemned, for denying the Bible to the common

people, but, *slaveholders must not* blame them, for *they* are doing the very *same thing*, and for the very same reason, neither of these systems can bear the light which bursts from the pages of that Holy Book. And lastly, endeavour to inculcate submission on the part of the slaves, but whilst doing this be faithful in pleading the cause of the oppressed.

"Will *you* behold unheeding,
Life's holiest feelings crushed,
Where *woman's* heart is bleeding,
Shall *woman's* voice be hushed?"

4. Act on this subject. Some of you *own* slaves yourselves. If you believe slavery is *sinful*, set them at liberty, "undo the heavy burdens and let the oppressed go free." If they wish to remain with you, pay them wages, if not, let them leave you. Should they remain, teach them, and have them taught the common branches of an English education; they have minds, and those minds *ought to be improved*. So precious a talent as intellect, never was given to be wrapt in a napkin and buried in the earth. It is the *duty* of all, as far as they can, to improve their own mental faculties, because we are commanded to love God with *all our minds*, as well as with all our hearts, and we commit a great sin, if we *forbid or prevent* that cultivation of the mind in others, which would enable them to perform this duty. Teach your servants, then, to read, &c., and encourage them to believe it is their *duty* to learn, if it were only that they might read the Bible.

But some of you will say, we can neither free our slaves nor teach them to read, for the laws of our state forbid it. Be not surprised when I say such wicked laws *ought to be no barrier* in the way of your duty, and I appeal to the Bible to prove this position. What was the conduct of Shiprah and Puah, when the king of Egypt issued his cruel mandate, with regard to the Hebrew children? "*They feared God, and did not as the King of Egypt commanded them, but saved the men children alive.*" And be it remembered, that it was through *their* faithfulness that Moses was preserved. This great and immediate emancipator was indebted to a *woman* for his spared life, and he became a blessing to the whole Jewish nation. Did these *women* do right in disobeying that monarch? "*Therefore (says the sacred text,) God dealt well with them, and made them houses*" Ex. i. What was the conduct of

Shadrach, Meshach, and Abednego, when Nebuchadnezzar set up a golden image in the plain of Dura, and commanded all people, nations, and languages, to fall down and worship it? "Be it known, unto thee, (said these faithful *Jews*) O king, that *we will not* serve thy gods, nor worship the image which thou hast set up." Did these men *do right in disobeying the law* of their sovereign? Let their miraculous deliverance from the burning fiery furnace, answer; Dan. iii. What was the conduct of Daniel, when Darius made a firm decree that no one should ask a petition of any man or God for thirty days? Did the prophet cease to pray? No! "When Daniel *knew that the writing was signed*, he went into his house, and his windows being *open* towards Jerusalem, he kneeled upon his knees three times a day, and prayed and gave thanks before his God, as he did aforetime." Did Daniel do right thus to *break* the law of his king? Let his wonderful deliverance out of the mouths of the lions answer; Dan. vii. Look, too, at the Apostles Peter and John. When the rulers of the Jews, "*commanded them not* to speak at all, nor teach in the name of Jesus," what did they say? "Whether it be right in the sight of God, to hearken unto you more than unto God, judge ye." And what did they do? "They spake the word of God with boldness, and with great power gave the Apostles witness of the *resurrection* of the Lord Jesus;" although *this* was the very doctrine, for the preaching of which, they had just been cast into prison, and further threatened. Did these men do right? I leave *you* to answer, who now enjoy the benefits of their labors and sufferings, in that Gospel they dared to preach when positively commanded *not to teach any more* in the name of Jesus; Acts iv.

But some of you may say, if we do free our slaves, they will be taken up and sold, therefore there will be no use in doing it. Peter and John might just as well have said, we will not preach the gospel, for if we do, we shall be taken up and put in prison, therefore there will be no use in our preaching. *Consequences*, my friends, belong no more to *you*, than they did to these apostles. Duty is ours and events are God's. If you think slavery is sinful, all *you* have to do is to set your slaves at liberty, do all you can to protect them, and in humble faith and fervent prayer, commend them to your common Father. He can take care of them; but if for wise purposes he sees fit to allow them to be sold, this will afford you an opportunity of testifying openly, wherever you go, against the crime of *manstealing*. Such

an act will be *clear robbery*, and if exposed, might, under the Divine direction, do the cause of Emancipation more good, than any thing that could happen, for, "He makes even the wrath of man to praise him, and the remainder of wrath he will restrain."

I know that this doctrine of obeying *God*, rather than man, will be considered as dangerous, and heretical by many, but I am not afraid openly to avow it, because it is the doctrine of the Bible; but I would not be understood to advocate resistance to any law however oppressive, if, in obeying it, I was not obliged to commit *sin*. If for instance, there was a law, which imposed imprisonment or a fine upon me if I manumitted a slave, I would on no account resist that law, I would set the slave free, and then go to prison or suffer the penalty. If a law commands me to *sin* *I will break it*; if it calls me to *suffer*, I will let it take its course *unresistingly*. The doctrine of blind obedience and unqualified submission to *any human* power, whether civil or ecclesiastical, is the doctrine of despotism, and ought to have no place among Republicans and Christians.

But you will perhaps say, such a course of conduct would inevitably expose us to great suffering. Yes! my christian friends, I believe it would, but this will *not* excuse you or any one else for the neglect of *duty*. If Prophets and Apostles, Martyrs, and Reformers had not been willing to suffer for the truth's sake, where would the world have been now? If they had said, we cannot speak the truth, we cannot do what we believe is right, because the *laws of our country or public opinion are against us*, where would our holy religion have been now? The Prophets were stoned, imprisoned, and killed by the Jews. And why? Because they exposed and openly rebuked public sins; they opposed public opinion; had they held their peace, they all might have lived in ease and died in favor with a wicked generation. Why were the Apostles persecuted from city to city, stoned, incarcerated, beaten, and crucified? Because they dared to *speak the truth*; to tell the Jews, boldly and fearlessly, that *they* were the *murderers* of the Lord of Glory, and that, however great a stumbling-block the Cross might be to them, there was no other name given under heaven by which men could be saved, but the name of Jesus. Because they declared, even at Athens, the seat of learning and refinement, the self-evident truth, that "they be no gods that are made with men's hands", and exposed to the Grecians the foolishness of worldly wisdom, and the impossibility of salvation but through Christ, whom they

despised on account of the ignominious death he died. Because at Rome, the proud mistress of the world, they thundered out the terrors of the law upon that idolatrous, war-making, and slave-holding community. Why were the martyrs stretched upon the rack, gibbeted and burnt, the scorn and diversion of a Nero, whilst their tarred and burning bodies sent up a light which illuminated the Roman capital? Why were the Waldenses hunted like wild beasts upon the mountains of Piedmont, and slain with the sword of the Duke of Savoy and the proud monarch of France? Why were the Presbyterians chased like the partridge over the highlands of Scotland—the Methodists pumped, and stoned, and pelted with rotten eggs—the Quakers incarcerated in filthy prisons, beaten, whipped at the cart's tail, banished and hung? Because they dared to *speak the truth*, to *break* the unrighteous laws of their country, and chose rather to suffer affliction with the people of God, "not accepting deliverance," even under the gallows. Why were Luther and Calvin persecuted and excommunicated, Cranmer, Ridley, and Latimer burnt? Because they fearlessly proclaimed the truth, though that truth was contrary to public opinion, and the authority of Ecclesiastical councils and conventions. Now all this vast amount of human suffering might have been saved. All these Prophets and Apostles, Martyrs, and Reformers, might have lived and died in peace with all men, but following the example of their great pattern, "they despised the shame, endured the cross, and are now set down on the right hand of the throne of God," having received the glorious welcome of "well *done* good and faithful servants, enter ye into the joy of your Lord."

But you may say we are *women*, how can *our* hearts endure persecution? And why not? Have not *women* arisen in all the dignity and strength of moral courage to be the leaders of the people, and to bear a faithful testimony for the truth whenever the providence of God has called them to do so? Are there no *women* in that noble army of martyrs who are now singing the song of Moses and the Lamb? Who led out the women of Israel from the house of bondage, striking the timbrel, and singing the song of deliverance on the banks of that sea whose waters stood up like walls of crystal to open a passage for their escape? It was a *woman*; Miriam, the prophetess, the sister of Moses and Aaron. Who went up with Barak to Kadesh to fight against Jabin, King of Canaan, into whose hand Israel had been sold because of their iniquities? It was a *woman*! Deborah the wife of

Lapidoth, the judge, as well as the prophetess of that backsliding people; Judges iv, 9. Into whose hands was Sisera, the captain of Jabin's host delivered? Into the hand of a *woman*. Jael the wife of Heber! Judges vi, 21. Who dared to *speak the truth* concerning those judgments which were coming upon Judea, when Josiah, alarmed at finding that his people "had not kept the word of the Lord to do after all that was written in the book of the Law," sent to enquire of the Lord concerning these things? It was a *woman*. Huldah the prophetess, the wife of Shallum; 2, Chron. xxxiv, 22. Who was chosen to deliver the whole Jewish nation from that murderous decree of Persia's King, which wicked Haman had obtained by calumny and fraud? It was a *woman*; Esther the Queen; yes, weak and trembling *woman* was the instrument appointed by God, to reverse the bloody mandate of the eastern monarch, and save the *whole visible church* from destruction. What human voice first proclaimed to Mary that she should be the mother of our Lord? It was a *woman*! Elizabeth, the wife of Zacharias; Luke i, 42, 43. Who united with the good old Simeon in giving thanks publicly in the temple, when the child, Jesus, was presented there by his parents, "and spake of him to all them that looked for redemption in Jerusalem?" It was a *woman*! Anna the prophetess. Who first proclaimed Christ as the true Messiah in the streets of Samaria, once the capital of the ten tribes? It was a *woman*! Who ministered to the Son of God whilst on earth, a despised and persecuted Reformer, in the humble garb of a carpenter? They were *women*! Who followed the rejected King of Israel, as his fainting footsteps trod the road to Calvary? "A great company of people and of *women*;" and it is remarkable that to *them alone*, he turned and addressed the pathetic language, "Daughters of Jerusalem weep not for me, but weep for yourselves and your children." Ah! who sent unto the Roman Governor when he was set down on the judgment seat, saying unto him, "Have thou nothing to do with that just man, for I have suffered many things this day in a dream because of him?" It was a *woman*! the wife of Pilate. Although "*he knew* that for envy the Jews had delivered Christ," yet *he* consented to surrender the Son of God into the hands of a brutal soldiery, after having himself scourged his naked body. Had the *wife* of Pilate sat upon that judgment seat, what would have been the result of the trial of this "just person?"

And who last hung round the cross of Jesus on the mountain of Golgotha? Who first visited the sepulchre early in the morning on the first day of the week, carrying sweet spices to embalm his precious body, not knowing that it was incorruptible and could not be holden by the bands of death? These were *women*! To whom did he *first* appear after his resurrection? It was to a *woman*! Mary Magdalene; Mark xvi, 9. Who gathered with the apostles to wait at Jerusalem, in prayer and supplication, for "the promise of the Father;" the spiritual blessing of the Great High Priest of his Church, who had entered, *not* into the splendid temple of Solomon, there to offer the blood of bulls, and of goats, and the smoking censer upon the golden altar, but into Heaven itself, there to present his intercessions, after having "given himself for us, an offering and a sacrifice to God for a sweet smelling savor?" *Women* were among that holy company; Acts i, 14. And did *women* wait in vain? Did those who had ministered to his necessities, followed in his train, and wept at his crucifixion, wait in vain? No! No! Did the cloven tongues of fire descend upon the heads of *women* as well as men? Yes, my friends, "it sat upon *each one of them*;" Acts ii, 3. *Women* as well as men were to be living stones in the temple of grace, and therefore *their* heads were consecrated by the descent of the Holy Ghost as well as those of men. Were *women* recognized as fellow laborers in the gospel field? They were! Paul says in his epistle to the Philippians, "help those *women* who labored with me, in the gospel;" Phil. iv, 3.

But this is not all. Roman *women* were burnt at the stake, *their* delicate limbs were torn joint from joint by the ferocious beasts of the Ampitheatre, and tossed by the wild bull in his fury, for the diversion of that idolatrous, warlike, and slaveholding people. Yes, *women* suffered under the ten persecutions of heathen Rome, with the most unshrinking constancy and fortitude; not all the entreaties of friends, nor the claims of new born infancy, nor the cruel threats of enemies could make *them* sprinkle one grain of incense upon the altars of Roman idols. Come now with me to the beautiful valleys of Piedmont. Whose blood stains the green sward, and decks the wild flowers with colors not their own, and smokes on the sword of persecuting France? It is *woman's*, as well as *man's*? Yes, *women* were accounted as sheep for the slaughter, and were cut down as the tender saplings of the wood.

But time would fail me, to tell of all those hundreds and thousands of *women*, who perished in the Low countries of Holland, when Alva's sword of vengeance was unsheathed against the Protestants, when the Catholic Inquisitions of Europe became the merciless executioners of vindictive wrath, upon those who dared to worship God, instead of bowing down in unholy adoration before "my Lord God the *Pope*," and when England, too, burnt her Ann Ascoes at the stake of martyrdom. Suffice it to say, that the Church, after having been driven from Judea to Rome, and from Rome to Piedmont, and from Piedmont to England, and from England to Holland, at last stretched her fainting wings over the dark bosom of the Atlantic, and found on the shores of a great wilderness, a refuge from tyranny and oppression—as she thought, but *even here*, (the warm blush of shame mantles my cheek as I write it,) *even here*, *woman* was beaten and banished, imprisoned, and hung upon the gallows, a trophy to the Cross. And what, I would ask in conclusion, have *women* done for the great and glorious cause of Emancipation? Who wrote that pamphlet which moved the heart of Wilberforce to pray over the wrongs, and his tongue to plead the cause of the oppressed African? It was a *woman*, Elizabeth Heyrick. Who labored assiduously to keep the sufferings of the slave continually before the British public? They were *women*. And how did they do it? By their needles, paint brushes and pens, by speaking the truth, and petitioning Parliament for the abolition of slavery. And what was the effect of their labors? Read it in the Emancipation bill of Great Britain. Read it, in the present state of her West India Colonies. Read it, in the impulse which has been given to the cause of freedom, in the United States of America. Have English women then done so much for the negro, and shall American women do nothing? Oh no! Already are there sixty female Anti-Slavery Societies in operation. These are doing just what the English women did, telling the story of the colored man's wrongs, praying for his deliverance, and presenting his kneeling image constantly before the public eye on bags and needle-books, card-racks, pen-wipers, pin-cushions, &c. Even the children of the north are inscribing on their handy work, "May the points of our needles prick the slaveholder's conscience." Some of the reports of these Societies exhibit not only considerable talent, but a deep sense of religious duty, and a determination to persevere through evil as well as good report, until every scourge, and every shackle, is buried under the feet of the manumitted slave.

The Ladies' Anti-Slavery Society of Boston was called last fall, to a severe trial of their faith and constancy. They were mobbed by "the gentlemen of property and standing," in that city at their anniversary meeting, and their lives were jeopardized by an infuriated crowd; but their conduct on that occasion did credit to our sex, and affords a full assurance that they will *never* abandon the cause of the slave. The pamphlet, *Right and Wrong in Boston*, issued by them in which a particular account is given of that "mob of broad cloth in broad day," does equal credit to the head and the heart of her who wrote it. I wish my Southern sisters could read it; they would then understand that the women of the North have engaged in this work from a sense of *religious duty*, and that nothing will ever induce them to take their hands from it until it is fully accomplished. They feel no hostility to you, no bitterness or wrath; they rather sympathize in your trials and difficulties; but they well know that the first thing to be done to help you, is to pour in the light of truth on your minds, to urge you to reflect on, and pray over the subject. This is all *they* can do for you, *you* must work out your own deliverance with fear and trembling, and with the direction and blessing of God, *you can do it*. Northern women may labor to produce a correct public opinion at the North, but if Southern women sit down in listless indifference and criminal idleness, public opinion cannot be rectified and purified at the South. It is manifest to every reflecting mind, that slavery must be abolished; the era in which we live, and the light which is overspreading the whole world on this subject, clearly show that the time cannot be distant when it will be done. Now there are only two ways in which it can be effected, by moral power or physical force, and it is for *you* to choose which of these you prefer. Slavery always has, and always will produce insurrections wherever it exists, because it is a violation of the natural order of things, and no human power can much longer perpetuate it. The opposers of abolitionists fully believe this; one of them remarked to me not long since, there is no doubt there will be a most terrible overturning at the South in a few years, such cruelty and wrong, must be visited with Divine vengeance soon. Abolitionists believe, too, that this must inevitably be the case if you do not repent, and they are not willing to leave you to perish without entreating you, to save yourselves from destruction; well may they say with the apostle, "am I then your enemy because I tell you the truth," and warn you to flee from impending judgments.

But why, my dear friends, have I thus been endeavoring to lead you through the history of more than three thousand years, and to point you to that great cloud of witnesses who have gone before, "from works to rewards?" Have I been seeking to magnify the sufferings, and exalt the character of woman, that she "might have praise of men?" No! no! my object has been to arouse *you*, as the wives and mothers, the daughters and sisters, of the South, to a sense of your duty as *women*, and as Christian women, on that great subject, which has already shaken our country, from the St. Lawrence and the lakes, to the Gulf of Mexico, and from the Mississippi to the shores of the Atlantic; *and will continue mightily to shake it*, until the polluted temple of slavery fall and crumble into ruin. I would say unto each one of you, "what meanest thou, O sleeper! arise and call upon thy God, if so be that God will think upon us that we perish not." Perceive you not that dark cloud of vengeance which hangs over our boasting Republic? Saw you not the lightnings of Heaven's wrath, in the flame which leaped from the Indian's torch to the roof of yonder dwelling, and lighted with its horrid glare the darkness of midnight? Heard you not the thunders of Divine anger, as the distant roar of the cannon came rolling onward, from the Texian country, where Protestant American Rebels are fighting with Mexican Republicans—for what? For the re-establishment of *slavery*; yes! of American slavery in the bosom of a Catholic Republic, where that system of robbery, violence, and wrong, had been legally abolished for twelve years. Yes! citizens of the United States, after plundering Mexico of her land, are now engaged in deadly conflict, for the privilege of fastening chains, and collars, and manacles—upon whom? upon the subjects of some foreign prince? No! upon native born American Republican citizens, although the fathers of these very men declared to the whole world, while struggling to free themselves from the three penny taxes of an English king, that they believed it to be a *self-evident* truth that *all men* were created equal, and had an *unalienable right to liberty*.

Well may the poet exclaim in bitter sarcasm,

"The fustian flag that proudly waves
In solemn mockery o'er *a land of slaves*."

Can you not, my friends, understand the signs of the times; do you not see the sword of retributive justice hanging over the South, or are you still slumbering at your posts?—Are there no Shiphrahs, no Puaahs among you, who will dare in Christian firmness and Christian meekness, to refuse to obey the *wicked laws* which require *woman to enslave, to degrade and to brutalize woman*? Are there no Miriams, who would rejoice to lead out the captive daughters of the Southern States to liberty and light? Are there no Huldahs there who will dare to *speak the truth* concerning the sins of the people and those judgments, which it requires no prophet's eye to see, must follow if repentance is not speedily sought? Is there no Esther among you who will plead for the poor devoted slave? Read the history of this Persian queen, it is full of instruction; she at first refused to plead for the Jews; but, hear the words of Mordecai, "Think not within thyself, that *thou* shalt escape in the king's house more than all the Jews, for *if thou altogether holdest thy peace at this time*, then shall there enlargement and deliverance arise to the Jews from another place: but *thou and thy father's house shall be destroyed*." Listen, too, to her magnanimous reply to this powerful appeal; "*I will go in unto the king, which is not according to law, and if I perish, I perish*." Yes! if there were but *one* Esther at the South, she *might* save her country from ruin; but let the Christian women there arise, as the Christian women of Great Britain did, in the majesty of moral power, and that salvation is certain. Let them embody themselves in societies, and send petitions up to their different legislatures, entreating their husbands, fathers, brothers and sons, to abolish the institution of slavery; no longer to subject *woman* to the scourge and the chain, to mental darkness and moral degradation; no longer to tear husbands from their wives, and children from their parents; no longer to make men, women, and children, work *without wages*; no longer to make their lives bitter in hard bondage; no longer to reduce *American citizens* to the abject condition of *slaves*, of "*chattels personal*;" no longer to barter the *image of God* in human shambles for corruptible things such as silver and gold.

The *women of the South* can overthrow this horrible system of oppression and cruelty, licentiousness and wrong. Such appeals to your legislatures would be irresistible, for there is something in the heart of man which *will bend under moral suasion*. There is a swift witness for truth in his bosom, which *will respond to truth* when it is uttered with calmness and dignity. If

you could obtain but six signatures to such a petition in only one state, I would say, send up that petition, and be not in the least discouraged by the scoffs and jeers of the heartless, or the resolution of the house to lay it on the table. It will be a great thing if the subject can be introduced into your legislatures in any way, even by *women*, and *they* will be the most likely to introduce it there in the best possible manner, as a matter of *morals* and *religion*, not of expediency or politics. You may petition, too, the different ecclesiastical bodies of the slave states. Slavery must be attacked with the whole power of truth and the sword of the spirit. You must take it up on *Christian* ground, and fight against it with Christian weapons, whilst your feet are shod with the preparation of the gospel of peace. And *you are now* loudly called upon by the cries of the widow and the orphan, to arise and gird yourselves for this great moral conflict "with the whole armour of righteousness on the right hand and on the left."

There is every encouragement for you to labor and pray, my friends, because the abolition of slavery as well as its existence, has been the theme of prophecy. "Ethiopia (says the Psalmist) shall stretch forth her hands unto God." And is she not now doing so? Are not the Christian negroes of the south lifting their hands in prayer for deliverance, just as the Israelites did when their redemption was drawing nigh? Are they not sighing and crying by reason of the hard bondage? And think you, that He, of whom it was said, "and God heard their groaning, and their cry came up unto him by reason of the hard bondage," think you that his ear is heavy that he cannot *now* hear the cries of his suffering children? Or that He who raised up a Moses, an Aaron, and a Miriam, to bring them up out of the land of Egypt from the house of bondage, cannot now, with a high hand and a stretched out arm, rid the poor negroes out of the hands of their masters? Surely you believe that his arm is *not* shortened that he cannot save. And would not such a work of mercy redound to his glory? But another string of the harp of prophecy vibrates to the song of deliverance: "But they shall sit every man under his vine, and under his fig-tree, and *none shall make them afraid*; for the mouth of the Lord of Hosts hath spoken it." The *slave* never can do this as long as he is a *slave*; whilst he is a "chattel personal" he can own *no* property; but the time *is to come* when *every* man is to sit under *his own* vine and *his own* fig-tree, and no domineering driver, or irresponsible master, or irascible mistress, shall make him afraid of the chain or the whip.

Hear, too, the sweet tones of another string: "Many shall run to and fro, and *knowledge* shall be increased." Slavery is an insurmountable barrier to the increase of knowledge in every community where it exists; *slavery, then, must be abolished before* this prediction can be fulfilled. The last chord I shall touch, will be this, "They shall *not* hurt nor destroy in all my holy mountain."

Slavery, then, must be overthrown before the prophecies can be accomplished, but how are they to be fulfilled? Will the wheels of the millennial car be rolled onward by miraculous power? No! God designs to confer this holy privilege upon *woman*; it is through *their* instrumentality that the great and glorious work of reforming the world is to be done. And see you not how the mighty engine of *moral power* is dragging in its rear the Bible and peace societies, anti-slavery and temperance, sabbath schools, moral reform, and missions? or to adopt another figure, do not these seven philanthropic associations compose the beautiful tints in that bow of promise which spans the arch of our moral heaven? Who does not believe, that if these societies were broken up, their constitutions burnt, and the vast machinery with which they are laboring to regenerate mankind was stopped, that the black clouds of vengeance would soon, burst over our world, and every city would witness the fate of the devoted cities of the plain? Each one of these societies is walking abroad through the earth scattering the seeds of truth over the wide field of our world, not with the hundred hands of a Briareus, but with a hundred thousand.

Another encouragement for you to labor, my friends, is, that you will have the prayers and co-operation of English and Northern philanthropists. You will never bend your knees in supplication at the throne of grace for the overthrow of slavery, without meeting there the spirits of other Christians, who will mingle their voices with yours, as the morning or evening sacrifice ascends to God. Yes, the spirit of prayer and of supplication has been poured out upon many, many hearts; there are wrestling Jacobs who will not let go of the prophetic promises of deliverance for the captive, and the opening, of prison doors to them that are bound. There are Pauls who are saying, in reference to this subject, "Lord, what wilt thou have me to do?" There are Marys sitting in the house now, who are ready to arise and go forth in this work as soon as the message is brought, "the master is come and calleth for thee." And there are Marthas, too, who have already gone

out to meet Jesus, as he bends his footsteps to their brother's grave, and weeps, *not* over the lifeless body of Lazarus bound hand and foot in grave-clothes, but over the politically and intellectually lifeless slave, bound hand and foot in the iron chains of oppression and ignorance. Some may be ready to say, as Martha did, who seemed to expect nothing but sympathy from Jesus, "Lord, by this time he stinketh, for he hath been dead four days." She thought it useless to remove the stone and expose the loathsome body of her brother; she could not believe that so great a miracle could be wrought, as to raise *that putrified body* into life; but "Jesus said, take ye away the stone;" and when *they* had taken away the stone where the dead was laid, and uncovered the body of Lazarus, then it was that "Jesus lifted up his eyes and said, Father, I thank thee that thou hast heard me," &c. "And when he had thus spoken, he cried with a loud voice, Lazarus, come forth." Yes, some may be ready to say of the colored race, how can *they* ever be raised politically and intellectually, they have been dead four hundred years? But *we* have *nothing* to do with *how* this is to be done; *our business* is to take away the stone which has covered up the dead body of our brother, to expose the putrid carcass, to show *how* that body has been bound with the grave-clothes of heathen ignorance, and his face with the napkin of prejudice, and having done all it was our duty to do, to stand by the negro's grave, in humble faith and holy hope, waiting to hear the life-giving command of "Lazarus, come forth." This is just what Anti-Slavery Societies are doing; they are taking away the stone from the mouth of the tomb of slavery, where lies the putrid carcass of our brother. They want the pure light of heaven to shine into that dark and gloomy cave; they want all men to see *how* that dead body has been bound, *how* that face has been wrapped in the *napkin of prejudice*; and shall they wait beside that grave in vain? Is not Jesus still the resurrection and the life? Did He come to proclaim liberty to the captive, and the opening of prison doors to them that are bound, in vain? Did He promise to give beauty for ashes, the oil of joy for mourning, and the garment of praise for the spirit of heaviness unto them that mourn in Zion, and will He refuse to beautify the mind, anoint the head, and throw around the captive negro the mantle of praise for that spirit of heaviness which has so long bowed him down to the ground? Or shall we not rather say with the prophet, "the zeal of the Lord of Hosts *will* perform this?" Yes, his promises are sure, and amen in Christ Jesus, that he will assemble her that halteth, and gather her that is driven out, and her that is afflicted.

But I will now say a few words on the subject of Abolitionism. Doubtless you have all heard Anti-Slavery Societies denounced as insurrectionary and mischievous, fanatical and dangerous. It has been said they publish the most abominable untruths, and that they are endeavoring to excite rebellions at the South. Have you believed these reports, my friends? have *you* also been deceived by these false assertions? Listen to me, then, whilst I endeavor to wipe from the fair character of Abolitionism such unfounded accusations. You know that *I* am a Southerner: you know that my dearest relatives are now in a slave State. Can you for a moment believe I would prove so recreant to the feelings of a daughter and a sister, as to join a society which seeking to overthrow slavery by falsehood, bloodshed and murder? I appeal to you who have known and loved me in days that are passed, can *you* believe it? No! my friends. As a Carolinian, I was peculiarly jealous of any movements on this subject; and before I would join an Anti-Slavery Society, I took the precaution of becoming acquainted with some of the leading Abolitionists, of reading their publications and attending their meetings, at which I heard addresses both from colored and white men; and it was not until I was fully convinced that their principles were *entirely pacific*, and their efforts *only moral*, that I gave my name as a member to the Female Anti-Slavery Society of Philadelphia. Since that time, I have regularly taken the Liberator, and read many Anti-Slavery pamphlets and papers and books, and can assure you I *never* have seen a single insurrectionary paragraph, and never read any account of cruelty which I could not believe. Southerners may deny the truth of these accounts, but why do they not *prove* them to be false. Their violent expressions of horror at such accounts being believed, *may* deceive some, but they cannot deceive *me*, for I lived too long in the midst of slavery, not to know what slavery is. Such declarations remind me of an assertion made by a Catholic priest, who said that his Church had never persecuted Protestants for their religion, when it is well known that the pages of history are black with the crimes of the Inquisition. Oh! if the slaves of the South could only write a book, it would vie, I have no doubt, with the horrible details of Catholic cruelty. When *I* speak of this system, "I speak that I do know," and I am not afraid to assert, that Anti-Slavery publications have *not* overdrawn the monstrous features of slavery at all. And many a Southerner *knows* this as well as I do. A lady in North Carolina remarked to a friend of mine, about eighteen months since, "Northerners know nothing at all about slavery; they think it

is perpetual bondage only; but of the *depth of degradation* that word involves, they have no conception; if they had, *they would never cease* their efforts until so *horrible* a system was overthrown." She did not, know how faithfully some Northern men and Northern women had studied this subject; how diligently they had searched out the cause of "him who had none to help him," and how fearlessly they had told the story of the negro's wrongs. Yes, Northerners know *every* thing about slavery now. This monster of iniquity has been unveiled to the world, his frightful features unmasked, and soon, very soon, will he be regarded with no more complacency by the American republic than is the idol of Juggernaut, rolling its bloody wheels over the crushed bodies of its prostrate victims.

But you will probably ask, if Anti-Slavery societies are not insurrectionary, why do Northerners tell us they are! Why, I would ask you in return, did Northern senators and Northern representatives give their votes, at the last sitting of congress, to the admission of Arkansas Territory as a slave state? Take those men, one by one, and ask them in their parlours, do you *approve of slavery*? ask them on *Northern* ground, where they will speak the truth, and I doubt not *every man* of them will tell you, *no*! Why then, I ask, did *they* give their votes to enlarge the mouth of that grave which has already destroyed its tens of thousands! All our enemies tell *us* they are as much anti slavery as we are. Yes, my friends, thousands who are helping you to bind the fetters of slavery on the negro, despise you in their hearts for doing it; they rejoice that such an institution has not been entailed upon them. Why then, I would ask, do *they* lend you their help? I will tell you, "they love *the praise of men* more than the praise of God." The Abolition cause has not yet become so popular as to induce them to believe, that by advocating it in congress, they shall sit still more securely in their seats there, and like the *chief rulers* in the days of our Saviour, though *many* believed on him, yet they did *not* confess him, lest they should *be put out of the synagogue*; John xii, 42, 43. Or perhaps like Pilate, thinking they could prevail nothing, and fearing a tumult, they determined to release Barabbas and surrender the just man, the poor innocent slave to be stripped of his rights and scourged. In vain will such men try to wash their hands, and say, with the Roman governor, "I am innocent of the blood of this just person." Northern American statesmen are no more innocent of the crime of slavery, than Pilate was of the murder of Jesus, or Saul of that of Stephen. These are

high charges, but I appeal to *their hearts*; I appeal to public opinion ten years from now. Slavery then is a national sin.

But you will say, a great many other Northerners tell us so, who can have no political motives. The interests of the North, you must know, my friends, are very closely combined with those of the South. The Northern merchants and manufacturers are making *their* fortunes out of the *produce of slave labor*; the grocer is selling your rice and sugar; how then can these men bear a testimony against slavery without condemning themselves? But there is another reason, the North is most dreadfully afraid of Amalgamation. She is alarmed at the very idea of a thing so monstrous, as she thinks. And lest this consequence *might* flow from emancipation, she is determined to resist all efforts at emancipation without expatriation. It is not because she *approves of slavery*, or believes it to be "the corner stone of our republic," for she is as much *anti-slavery* as we are; but amalgamation is too horrible to think of. Now I would ask *you*, is it right, is it generous, to refuse the colored people in this country the advantages of education and the privilege, or rather the *right*, to follow honest trades and callings merely because they are colored? The same prejudice exists here against our colored brethren that existed against the Gentiles in Judea. Great numbers cannot bear the idea of equality, and fearing lest, if they had the same advantages we enjoy, they would become as intelligent, as moral, as religious, and as respectable and wealthy, they are determined to keep them as low as they possibly can. Is this doing as they would be done by? Is this loving their neighbor as *themselves*? Oh! that *such* opposers of Abolitionism would put their souls in the stead of the free colored man's and obey the apostolic injunction, to "remember them that are in bonds *as bound with them*." I will leave you to judge whether the fear of amalgamation ought to induce men to oppose anti-slavery efforts, when *they* believe *slavery* to be *sinful*. Prejudice against color, is the most powerful enemy we have to fight with at the North.

You need not be surprised, then, at all, at what is said *against* Abolitionists by the North, for they are wielding a two-edged sword, which even here, cuts through the *CORDS OF CASTE*, on the one side, and the *BONDS OF INTEREST* on the other. They are only sharing the fate of other reformers, abused and reviled whilst they are in the minority; but they are neither angry nor discouraged by the invective which has been heaped upon them by

slaveholders at the South and their apologists at the North. They know that when George Fox and William Edmundson were laboring in behalf of the negroes in the West Indies in 1671 that the very *same* slanders were propagated against them, which are *now* circulated against Abolitionists. Although it was well known that Fox was the founder of a religious sect which repudiated *all* war, and *all* violence, yet *even he* was accused of "endeavoring to excite the slaves to insurrection and of teaching the negroes to cut their master's throats." And these two men who had their feet shod with the preparation of the Gospel of Peace, were actually compelled to draw up a formal declaration that *they were not* trying to raise a rebellion in Barbadoes. It is also worthy of remark that these Reformers did not at this time see the necessity of emancipation under seven years, and their principal efforts were exerted to persuade the planters of the necessity of instructing their slaves; but the slaveholder saw then, just what the slaveholder sees now, that an *enlightened* population *never* can be a *slave* population, and therefore they passed a law that negroes should not even attend the meetings of Friends. Abolitionists know that the life of Clarkson was sought by slavetraders, and that even Wilberforce was denounced on the floor of Parliament as a fanatic and a hypocrite by the present King of England, the very man who, in 1834 set his seal to that instrument which burst the fetters of eight hundred thousand slaves in his West India colonies. They know that the first Quaker who bore a *faithful* testimony against the sin of slavery was cut off from religious fellowship with that society. That Quaker was a *woman*. On her deathbed she sent for the committee who dealt with her—she told them, the near approach of death had not altered her sentiments on the subject of slavery and waving her hand towards a very fertile and beautiful portion of country which lay stretched before her window, she said with great solemnity, "Friends, the time will come when there will not be friends enough in all this district to hold one meeting for worship, and this garden will be turned into a wilderness."

The aged friend, who with tears in his eyes, related this interesting circumstance to me, remarked, that at that time there were seven meetings of friends in that part of Virginia, but that when he was there ten years ago, not a single meeting was held, and the country was literally a desolation. Soon after her decease, John Woolman began his labors in our society, and

instead of disowning a member for testifying *against* slavery, they have for sixty-two years positively forbidden their members to hold slaves.

Abolitionists understand the slaveholding spirit too well to be surprised at any thing that has yet happened at the South or the North; they know that the greater the sin is, which is exposed, the more violent will be the efforts to blacken the character and impugn the motives of those who are engaged in bringing to light the hidden things of darkness. They understand the work of Reform too well to be driven back by the furious waves of opposition, which are only foaming out their own shame. They have stood "the world's dread laugh," when only twelve men formed the first Anti-Slavery Society in Boston in 1831. They have faced and refuted the calumnies of their enemies, and proved themselves to be emphatically *peace men* by *never resisting* the violence of mobs, even when driven by them from the temple of God, and dragged by an infuriated crowd through the streets of the emporium of New-England, or subjected by *slaveholders* to the pain of corporal punishment. "None of these things move them;" and, by the grace of God, they are determined to persevere in this work of faith and labor of love: they mean to pray, and preach, and write, and print, until slavery is completely overthrown, until Babylon is taken up and cast into the sea, to "be found no more at all." They mean to petition Congress year after year, until the seat of our government is cleansed from the sinful traffic of "slaves and the souls of men." Although that august assembly may be like the unjust judge who "feared not God neither regarded man," yet it *must* yield just as he did, from the power of importunity. Like the unjust judge, Congress *must* redress the wrongs of the widow, lest by the continual coming up of petitions, it be wearied. This will be striking the dagger into the very heart of the monster, and once this done, he must soon expire.

Abolitionists have been accused of abusing their Southern brethren. Did the prophet Isaiah *abuse* the Jews when he addressed to them the cutting reproof contained in the first chapter of his prophecies, and ended by telling them, they would be *ashamed* of the oaks they had desired, and *confounded* for the garden they had chosen? Did John the Baptist *abuse* the Jews when he called them "*a generation of vipers*," and warned them "to bring forth fruits meet for repentance!" Did Peter abuse the Jews when he told them they were the murderers of the Lord of Glory? Did Paul abuse the Roman Governor when he reasoned before him of righteousness, temperance, and

judgment, so as to send conviction home to his guilty heart, and cause him to tremble in view of the crimes he was living in? Surely not. No man will *now* accuse the prophets and apostles of *abuse*, but what have Abolitionists done more than they? No doubt the Jews thought the prophets and apostles in their day, just as harsh and uncharitable as slaveholders now, think Abolitionists; if they did not, why did they beat, and stone, and kill them?

Great fault has been found with the prints which have been employed to expose slavery at the North, but my friends, how could this be done so effectively in any other way? Until the pictures of the slave's sufferings were drawn and held up to public gaze, no Northerner had any idea of the cruelty of the system, it never entered their minds that such abominations could exist in Christian, Republican America; they never suspected that many of the *gentlemen* and *ladies* who came from the South to spend the summer months in traveling among them, were petty tyrants at home. And those who had lived at the South, and came to reside at the North, were too *ashamed of slavery* even to speak of it; the language of their hearts was, "tell it *not* in Gath, publish it *not* in the streets of Askelon;" they saw no use in uncovering the loathsome body to popular sight, and in hopeless despair, wept in secret places over the sins of oppression. To such hidden mourners the formation of Anti-Slavery Societies was as life from the dead, the first beams of hope which gleamed through the dark clouds of despondency and grief. Prints were made use of to effect the abolition of the Inquisition in Spain, and Clarkson employed them when he was laboring to break up the Slave trade, and English Abolitionists used them just as we are now doing. They are powerful appeals and have invariably done the work they were designed to do, and we cannot consent to abandon the use of these until the *realities* no longer exist.

With regard to those white men, who, it was said, did try to raise an insurrection in Mississippi a year ago, and who were stated to be Abolitionists, none of them were proved to be members of Anti-Slavery Societies, and it must remain a matter of great doubt whether, even they were guilty of the crimes alledged against them, because when any community is thrown into such a panic as to inflict Lynch law upon accused persons, they cannot be supposed to be capable of judging with calmness and impartiality. *We know* that the papers of which the Charleston mail was robbed, were *not* insurrectionary, and that they were *not* sent to the colored

people as was reported. *We know* that Amos Dresser was *no insurrectionist* though he was accused of being so, and on this false accusation was publicly whipped in Nashville in the midst of a crowd of infuriated *slaveholders*. Was that young man disgraced by this infliction of corporal punishment? No more than was the great apostle of the Gentile; who five times received forty stripes, save one. Like him, he might have said, "henceforth I bear in my body the marks of the Lord Jesus," for it was for the *truth's sake, he suffered*, as much as did the Apostle Paul. Are Nelson, and Garrett, and Williams, and other Abolitionists who have recently been banished from Missouri, insurrectionists? *We know* they are *not*, whatever slaveholders may choose to call them. The spirit which now asperses the character of the Abolitionists, is the *very same* which dressed up the Christians of Spain in the skins of wild beasts and pictures of devils when they were led to execution as heretics. Before we condemn individuals, it is necessary, even in a wicked community, to accuse them of some crime; hence, when Jezebel wished to compass the death of Naboth, men of Belial were suborned to bear false witness against him, and so it was with Stephen, and so it ever has been, and ever will be, as long as there is any virtue to suffer on the rack, or the gallows. *False* witnesses must appear against Abolitionists before they can be condemned.

I will now say a few words on George Thompson's mission to this country. This Philanthropist was accused of being a foreign emissary. Were Lafayette, and Steuben, and De Kalb, and Pulawski, foreign emissaries when they came over to America to fight against the tories, who preferred submitting to what was termed, "the yoke of servitude," rather than bursting the fetters which bound them to the mother country? *They* came with *carnal weapons* to engage in *bloody* conflict against American citizens, and yet, where do their names stand on the page of History. Among the honorable, or the base? Thompson came here to war against the giant sin of slavery, *not* with the sword and the pistol, but with the smooth stones of oratory taken from the pure waters of the river of Truth. His splendid talents and commanding eloquence rendered him a powerful coadjutor in the Anti-Slavery cause, and in order to neutralize the effects of these upon his auditors, and rob the poor slave of the benefits of his labors, his character was defamed, his life was sought, and he at last driven from our Republic, as a fugitive. But was *Thompson* disgraced by all this mean and

contemptible and wicked chicanery and malice? No more than was Paul, when in consequence of a vision he had seen at Treas, he went over the Macedonia to help the Christians there, and was beaten and imprisoned, because he cast out a spirit of divination from a young damsel which had brought much gain to her masters. Paul was as much a *foreign emissary* in the Roman colony of Philippi, as George Thompson was in America, and it was because he was a *Jew*, and taught customs it was not lawful for them to receive or observe being Romans, that the Apostle was thus treated.

It was said, Thompson was a felon, who had fled to this country to escape transportation to New Holland. Look at him now pouring the thundering strains of his eloquence, upon crowded audiences in Great Britain, and see in this a triumphant vindication of his character. And have the slaveholder, and his obsequious apologist, gained anything by all their violence and falsehood? No! for the stone which struck Goliath of Gath, had already been thrown from the sling. The giant of slavery who had so proudly defied the armies of the living God, had received his death-blow before he left our shores. But what is George Thompson doing there? Is he not now laboring there, as effectually to abolish American slavery as though he trod our own soil, and lectured to New York or Boston assemblies? What is he doing there, but constructing a stupendous dam, which will turn the overwhelming tide of public opinion over the wheels of that machinery which Abolitionists are working here. He is now lecturing to *Britons* on *American Slavery*, to the *subjects* of a *King*, on the abject condition of the *slaves of a Republic*. He is telling them of that mighty Confederacy of petty tyrants which extends over thirteen States of our Union. He is telling them of the munificent rewards offered by slaveholders, for the heads of the most distinguished advocates for freedom in this country. He is moving the British Churches to send out to the churches of America the most solemn appeals, reproving, rebuking, and exhorting, them with all long suffering and patience to abandon the sin of slavery immediately. Where then I ask, will the name of George Thompson stand on the page of History? Among the honorable, or the base?

What can I say more, my friends, to induce you to set your hands, and heads, and hearts, to the great work of justice and mercy. Perhaps you have feared the consequences of immediate emancipation, and been frightened by all those dreadful prophecies of rebellion, bloodshed and murder, which

have been uttered. "Let no man deceive you;" they are the predictions of that same "lying spirit" which spoke through the four hundred prophets of old, to Ahab king of Israel, urging him on to destruction. *Slavery* may produce these horrible scenes if it is continued five years longer, but Emancipation *never will*.

I can prove the *safety* of immediate Emancipation by history. In St. Domingo in 1793 six hundred thousand slaves were set free in a white population of forty-two thousand. That Island "marched as by enchantment towards its ancient splendor", cultivation prospered, every day produced perceptible proofs of its progress, and the negroes all continued quietly to work on the different plantations, until in 1802, France determined to reduce these liberated slaves again to bondage. It was at *this time* that all those dreadful scenes of cruelty occurred, which we so often *unjustly* hear spoken of, as the effects of Abolition. They were occasioned *not* by Emancipation, but by the base attempt to fasten the chains of slavery on the limbs of liberated slaves.

In Guadaloupe eighty-five thousand slaves were freed in a white population of thirteen thousand. The same prosperous effects followed manumission here, that had attended it in Hayti, every thing was quiet until Buonaparte sent out a fleet to reduce these negroes again to slavery, and in 1802 this institution was re-established in that Island. In 1834, when Great Britain determined to liberate the slaves in her West India colonies, and proposed the apprenticeship system; the planters of Bermuda and Antigua, after having joined the other planters in their representations of the bloody consequences of Emancipation, in order if possible to hold back the hand which was offering the boon of freedom to the poor negro; as soon as they found such falsehoods were utterly disregarded, and Abolition must take place, came forward voluntarily, and asked for the compensation which was due to them, saying, *they preferred immediate emancipation*, and were not afraid of any insurrection. And how is it with these islands now? They are decidedly more prosperous than any of those on which the apprenticeship system was adopted, and England is now trying to abolish that system, so fully convinced is she that immediate Emancipation is the *safest* and the best plan.

And why not try it in the Southern States, if it *never* has occasioned rebellion; if *not a drop of blood* has ever been shed in consequence of it, though it has been so often tried, why should we suppose it would produce such disastrous consequences now? "Be not deceived then, God is not mocked," by such false excuses for not doing justly and loving mercy. There is nothing to fear from immediate Emancipation, but *every thing* from the continuance of slavery.

Sisters in Christ, I have done. As a Southerner, I have felt it was my duty to address you. I have endeavoured to set before you the exceeding sinfulness of slavery, and to point you to the example of those noble women who have been raised up in the church to effect great revolutions, and to suffer for the truth's sake. I have appealed to your sympathies as women, to your sense of duty as *Christian women*. I have attempted to vindicate the Abolitionists, to prove the entire safety of immediate Emancipation, and to plead the cause of the poor and oppressed. I have done—I have sowed the seeds of truth, but I well know, that even if an Apollos were to follow in my steps to water them, "*God only* can give the increase." To Him then who is able to prosper the work of his servant's hand, I commend this Appeal in fervent prayer, that as he "*hath chosen the weak things of the world*, to confound the things which are mighty," so He may give His blessing, to descend and carry conviction to the hearts of many Lydias through these speaking pages. Farewell—Count me not your "enemy because I have told you the truth," but believe me in unfeigned affection,

Your sympathizing Friend,

ANGELINA E. GRIMKÉ.

Shrewsbury, N.J., 1836.

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No. 3.

THE ANTI-SLAVERY EXAMINER.

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**LETTER OF GERRIT SMITH
TO
REV. JAMES SMYLIE,
OF THE
STATE OF MISSISSIPPI.**

1837.

LETTER, ETC.

PETERBORO', October 28, 1836.

Rev. JAMES SMYLIE,

Late Stated Clerk of the Presbytery of Mississippi:

SIR,—Accept my thanks for your politeness in sending me a copy of your book on slavery. This book proves, that the often repeated assertion, that the whole South is opposed to the discussion of the question of slavery, is not true:—and so far, I rejoice in its appearance. I presume—I know, indeed, that you are not the only man in the South, who is in favor of this discussion. There are, doubtless, many persons in the South, who believe, that all attempts to suppress it, are vain, as well as wicked. Besides, you virtually admit, that the South is compelled to discuss the question of slavery; or, at least, to give her own views of it, in order to prevent the conscience of Southern Christians—that conscience, "which does make cowards of us all"—from turning traitor to the cause of slavery. I rejoice, too, that you accompanied the copy sent to me, with the request, that I should review it, and make "candid remarks" upon it; and, that you have thus put it in my power to send to the South some of my views on slavery, without laying myself open to the charge of being discourteous and obtrusive.

You undertake to show that slavery existed, and, with the Divine approbation, amongst the Old Testament Jews; and that it also existed, whilst our Saviour and his Apostles were on the earth, and was approved by them. You thence argue, that it is not only an innocent institution, but one which it is a religious duty to maintain.

I admit, for the sake of argument, that there was a servitude in the patriarchal families which was approved by God. But what does this avail in your defence of slavery, unless you show, that that servitude and slavery are essentially alike? The literal terms of the relation of master and servant, under that servitude, are not made known to us; but we can, nevertheless, confidently infer their spirit from facts, which illustrate their practical character; and, if this character be found to be opposite to that of slavery,

then it is manifest, that what you say of patriarchal servitude is impertinent, and tends to mislead, rather than enlighten your readers. To a few of these facts and a few of the considerations arising from them, I now call your attention.

1st. Read the first eight verses of the eighteenth chapter of Genesis, and tell me, if you ever saw Gov. McDuffie or any other Southern patriarch (for the governor desires to have all slaveholders looked upon in the character of patriarchs) putting himself on a level with his servants, and "working with his hands," after the manner of Abraham and Sarah?

2d. There was such a community of interest—so much of mutual confidence—between Abraham and his servants, that they fought his battles. Indeed, the terms of this patriarchal servitude were such, that in the event of the master's dying without issue, one of his servants inherited his property (Gen. 15: 3). But, according to the code of Southern slavery, the slave can no more own property, than he can own himself. "All that a slave possesses belongs to his master"—"Slaves are incapable of inheriting or transmitting property." These, and many similar phrases, are found in that code. Severe as was the system of Roman slavery, yet in this respect, it was far milder than yours; for its subjects could acquire property (their peculium); and frequently did they purchase their liberty with it. So far from Southern slaves being, as Abraham's servants were, a dependence in war, it is historically true, that they are accustomed to improve this occasion to effect their escape, and strengthen the hands of the enemy. As a further proof that Southern slavery begets none of that confidence between master and slave, which characterized the mutual intercourse of Abraham and his servants—the slave is prohibited, under severe penalties, from having any weapons in his possession, even in time of peace; and the nightly patrol, which the terror-stricken whites of Southern towns keep up, in peace, as well as in war, argues any thing, rather than the existence of such confidence. "For keeping or carrying a gun, or powder or shot, or a club, or other weapon whatsoever, offensive or defensive, a slave incurs, says Southern statute book, for each offence, thirty-nine lashes."

3d. When I read your quotation from the twenty-fourth chapter of Genesis, made for the purpose of showing that God allowed Abraham to have slaves, I could not but wonder at your imprudence, in meddling with this chapter,

which is of itself, enough to convince any unbiased mind, that Abraham's servants held a relation to their master and to society, totally different from that held by Southern slaves. Have you ever known a great man in your state send his slave into another to choose a wife for his son?—And if so, did the lily white damsel he selected call the sable servant "my lord?"—And did her family spare no pains to manifest respect for their distinguished guest, and promote his comfort? But this chapter, which you call to your aid, informs us, that Abraham's servant was honored with such tokens of confidence and esteem. If a Southern slave shall ever be employed in such a mission, he may count himself highly favored, if he be not taken up by the way, imprisoned, and "sold for his jail fees."

4th. Did you ever know Southern slaves contend for their rights with their masters? When a Southern master reads the thirteenth verse of the thirty-first chapter of Job, he must think that Job was in the habit of letting down his dignity very low.

5th. Do Southern masters accord religious privileges and impart religious instruction equally to their slaves and their children? Your laws, which visit with stripes, imprisonment, and death, the attempt to teach slaves to read the Bible, show but too certainly, that the Southern master, who should undertake to place "his children and his household" on the same level, in respect to their religious advantages, as it is probable that Abraham did (Gen. 18:19), would soon find himself in the midst of enemies, not to his reputation only, but to his life also.

And now, sir, admitting that the phrase, on which you lay so much stress—"bought with his money"—was used in connexion with a form of servitude which God approved—I put it to your candor, whether this phrase should be allowed to weigh at all against the facts I have adduced and the reasonings I have employed to show the true nature of that servitude, and how totally unlike it is to slavery? Are you not bound by the principles of sound reasoning, to attach to it a meaning far short of what, I grant, is its natural import in this age, and, especially, amongst a people who, like ourselves, are accustomed to associate such an expression with slavery? Can you deny, that you are bound to adopt such a meaning of it, as shall harmonize with the facts, which illustrate the nature of the servitude in question, and with the laws and character of Him, whose sanction you claim

for that servitude? An opposite course would give a preference to words over things, which common sense could not tolerate. Many instances might be cited to show the absurdity of the assumption that whatever is spoken of in the Scriptures as being "bought," is property. Boaz "purchased" his wife. Hosea "bought her (his wife) for fifteen pieces of silver." Jacob, to use a common expression, "took his wages" in wives. Joseph "bought" the Egyptians, after they had said to him "buy us." But, so far from their having become the property of Joseph or of his king, it was a part of the bargain, that they were to have as much land as they wanted—seed to sow it—and four-fifths of the crops. The possessors of such independence and such means of wealth are not the property of their fellow-men.

I need say no more, to prove that slavery is entirely unlike the servitude in the patriarchal families. I pass on, now, to the period between the promulgation of the Divine law by Moses, and the birth of Christ.

You argue from the fifth and sixth verses of the twenty-first chapter of Exodus, that God authorized the enslavement of the Jews: but, on the same page, on which you do so, you also show the contrary. It may, nevertheless, be well for me to request you to read and read again Leviticus 25:39-42, until your remaining doubts, on this point, shall all be put to flight. I am free to admit the probability, that under some of the forms of servitude, in which Jews were held, the servant was subjected to a control so extensive as to expose him to suffer great cruelties. These forms corresponded with the spirit and usages of the age, in which they existed; entirely unsuited, as they are, to a period and portion of the world, blessed with the refining and softening influences of civilization and the gospel. Numerous as were the statutory regulations for the treatment of the servant, they could not preclude the large discretion of the master. The apprentice, in our country, is subjected to an authority, equaling a parent's authority, but not always tempered in its exercise, with a parent's love. His condition is, therefore, not unfrequently marked with severity and suffering. Now, imagine what this condition would be, under the harsh features of a more barbarous age, and you will have in it, as I conjecture, no distant resemblance to that of some of the Jewish servants. But how different is this condition from that of the slave!

I am reminded in this connexion, of the polished, but pernicious, article on slavery in a late number of the Biblical Repertory. In that article Professor Hodge says, that the claim of the slaveholder "is found to be nothing more than a transferable claim of service either for life, or for a term of years." Will he allow me to ask him, where he discovered that the pretensions of the slaveholder are all resolvable into this modest claim? He certainly did not discover it in any slave code; nor in any practical slavery. Where then? No where, but in that undisclosed system of servitude, which is the creation of his own fancy. To this system I raise no objection whatever. On the contrary, I am willing to admit its beauty and its worthiness of the mint in which it was coined. But I protest against his right to bestow upon it the name of another and totally different thing. He must not call it slavery.

Suppose a poor German to be so desirous of emigrating with his family to America, as to agree to give his services for ten years, as a compensation for the passage. Suppose further, that the services are to be rendered to the captain of the ship in which they sail, or to any other person, to whom he may assign his claim. Such a bargain is not uncommon. Now, according to Professor Hodge, this German may as rightly as any of your Southern servants, be called a slave. He may as rightly be called *property*, as they may be, who, in the language of the South Carolina laws, "shall be deemed, held, taken, reputed, and adjudged in law, to be chattels personal, in the hands of their owners and possessors, and their executors, administrators, and assigns, *to all intents, constructions, and purposes whatsoever.*"

We will glance at a few points of difference in their condition. 1st. The German is capable of making a contract, and in the case supposed, does make a contract; but your slave is incapable of making any contract. 2d. The German receives wages; the price of carrying himself and family being the stipulated price for his services, during the ten years; but your slave receives no wages. 3d. The German, like any other hireling, and, like any apprentice in our country, is under the protection of law. But, there is no law to shield the slave from wrongs. Being a mere chattel or thing, he has no rights; and, therefore, he can have no wrongs to be redressed. Does Professor Hodge say, that there are statutes limiting and regulating the power of the slaveholder? I grant there are; though it must be remembered, that there is one way of even murdering a slave, which some of the slave States do not only not forbid, but impliedly and practically admit^A. The

Professor should know, however, that all these statutes are, practically, a mere nullity. Nevertheless, they show the absoluteness of the power which they nominally qualify. This absoluteness is as distinctly implied by them, as the like was by the law of the Emperor Claudius, which imposed limitations upon the "jus vitae et necis" (the right of life and death) which Roman slavery put into the hand of the master. But if the Professor should be so imprudent as to cite us to the slave code for evidence of its merciful provisions, he will, in so doing, authorize us to cite him to that code for evidence of the *nature* of slavery. This authority, however, he would not like to give us; for he is unwilling to have slavery judged of by its own code. He insists, that it shall be judged of by that ideal system of slavery, which is lodged in his own brain, and which he can bring forth by parcels, to suit present occasions, as Mahomet produced the leaves of the Koran.

A: The licensed murder referred to, is that where the slave dies under "moderate correction." But is not the murder of a slave by a white man, *in any way*, practically licensed in all the slave States? Who ever heard of a white man's being put to death, under Southern laws, for the murder of a slave? American slavery provides impunity for the white murderer of the slave, by its allowing none but whites—none but those who construct and uphold the system of abominations—to testify against the murderer. But why particularize causes of this impunity? The whole policy of the Southern slave system goes to provide it. How unreasonable is it to suppose, that they, who have conspired against a portion of their fellow-beings, and mutually pledged themselves to treat them as *mere things*—how unreasonable, I say, is it to suppose, that they would consent to put a *man* to death, on account of his treatment, in whatever way, of a *mere thing*? Not long ago, I was informed by a highly respectable lawyer of the State of Georgia, that he had known a number of attempts (attempts most probably but in form and name) to effect the conviction of whites for their undoubted murder of slaves. But in every instance, the jurors perjured themselves, rather than consent that a *man* should be put to death, for the liberty he had taken in disposing of a *thing*. They had rather perjure themselves, than by avenging the blood of a *slave* with that of a *man*, make a breach upon the policy of keeping the slave ignorant, that he has the *nature*, and consequently the *rights*, of a man.

Professor Hodge tells his readers, in substance, that the selling of men, as they are sold under the system of slavery, is to be classed with the cessions of territory, occasionally made by one sovereign to another; and he would have the slave, who is sold from hand to hand, and from State to State, at the expense to his bleeding heart, of the disruption of its dearest ties, think his lot no harder than that of the inhabitant of Louisiana, who was passed without his will, from the jurisdiction of the French government to that of the United States.

When a good man lends himself to the advocacy of slavery, he must, at least for a time, feel himself to be anywhere but at home, amongst his new thoughts, doctrines, and modes of reasoning. This is very evident in the case before us—especially, when now and then, old habits of thought and feeling break out, in spite of every effort to repress them, and the Professor is himself again, and discourses as manfully, as fearlessly, and as eloquently, as he ever had done before the slaveholders got their hands upon him. It is not a little amusing to notice, that, although the burden of his article is to show that slavery is one of God's institutions, (what an undertaking for a Professor of Theology in the year 1836!) he so far forgets the interests of his new friends and their expectations from him, as to admit on one page, that "the general principles of the gospel have destroyed domestic slavery throughout the greater part of Christendom;" and on another, that "the South has to choose between emancipation, by the silent and holy influence of the gospel, or to abide the issue of a long continued conflict against the laws of God." Whoever heard, until these strange times on which we have fallen, of any thing, which, to use the Professor's language about slavery, "it is in vain, to contend is sin, and yet profess reverence for the Scriptures," being at war with and destroyed by the principles of the gospel. What sad confusion of thought the pro-slavery influences, to which some great divines have yielded, have wrought in them!

I will proceed to argue, that the institution in the Southern States called "slavery," is radically unlike any form of servitude under which Jews were held, agreeably to the Divine will; and also radically unlike any form of servitude approved of God in the patriarchal families.

1st. God does not contradict Himself. He is "without variableness or shadow of turning." He loves his word and has "magnified it above all his

name." He commands his rational creatures to "search the Scriptures." He cannot, therefore, approve of a system which forbids the searching of them, and shuts out their light from the soul; and which, by the confession of your own selves, turns men in this gospel land into heathen. He has written his commandment against adultery, and He cannot, therefore, approve of a system, which induces this crime, by forbidding marriage. The following extract from an opinion of the Attorney General of Maryland, shows some of the consequences of this "forbidding to marry." "A slave has never maintained an action against the violator of his bed. A slave is not admonished for incontinence, or punished for fornication or adultery; never prosecuted for bigamy." Again, God has written his commandment, that children should honor their parents. How, then, can He approve of a system, which pours contempt on the relation of parent and child? Which subjects them to be forcibly separated from each other, and that too, beyond the hope of reunion?—under which parents are exposed and sold in the market-place along with horses and cattle?—under which they are stripped and lashed, and made to suffer those innumerable, and some of them, nameless indignities, that tend to generate in their children, who witness them, any feelings, rather than those of respect and honor, for parents thus degraded? Some of these nameless indignities are alluded to in a letter written to me from a slave state, in March, 1833. "In this place," says the writer, "I find a regular and a much frequented slave market, where thousands are yearly sold like cattle to the highest bidder. It is the opinion of gentlemen here, that not far from five hundred thousand dollars are yearly paid in this place for negroes; and at this moment, I can look from the window of my room and count six droves of from twenty to forty each, sitting in the market place for sale. This morning I witnessed the sale of twelve slaves, and I could but shudder at the language used and the liberties taken with the females!"

2d. As a proof, that in the kinds of servitude referred to, God did not invest Abraham, or any other person with that absolute ownership of his fellow-men, which is claimed by Southern slaveholders—I would remark, that He has made man accountable to Himself; but slavery makes him accountable to, and a mere appendage to his fellow-man. Slavery substitutes the will of a fallible fellow-man for that infallible rule of action—the will of God. The slave, instead of being allowed to make it the great end of his existence to glorify God and enjoy Him for ever, is degraded from his exalted nature,

which borders upon angelic dignity, to be, to do, and to suffer what a mere man bids him be, do, and suffer.

The Southern slave would obey God in respect to marriage, and also to the reading and studying of His word. But this, as we have seen, is forbidden him. He may not marry; nor may he read the Bible. Again, he would obey God in the duties of secret and social prayer. But he may not attend the prayer-meeting—certainly not that of his choice; and instances are known, where the master has intruded upon the slave's secret audience with heaven, to teach him by the lash, or some other instrument of torture, that he would allow "no other God before" himself.

Said Joseph Mason, an intelligent colored man, who was born and bred near Richmond, in Virginia, in reply to my question whether he and his fellow-slaves cared about their souls—"We did not trouble ourselves about our souls; we were our masters' property and not our own; under their and not our own control; and we believed that our masters were responsible for our souls." This unconcern for their spiritual interests grew very naturally out of their relation to their masters; and were the relation ordained of God, the unconcern would, surely, be both philosophical and sinless.

God cannot approve of a system of servitude, in which the master is guilty of assuming absolute power—of assuming God's place and relation towards his fellow-men. Were the master, in every case, a wise and good man—as wise and good as is consistent with this wicked and heaven-daring assumption on his part—the condition of the slave would it is true, be far more tolerable, than it now is. But even then, we should protest as strongly as ever against slavery; for it would still be guilty of its essential wickedness of robbing a man of his right to himself, and of robbing God of His right to him, and of putting these stolen rights into the hand of an erring mortal. Nay, if angels were constituted slaveholders, our objection to the relation would remain undiminished; since there would still be the same robbery of which we now complain.

But you will say, that I have overlooked the servitude in which the Jews held strangers and foreigners; and that it is on this, more than any other, that you rely for your justification of slavery. I will say nothing now of this servitude; but before I close this communication, I will give my reasons for

believing, that whatever was its nature, even if it were compulsory, it cannot be fairly pleaded in justification of slavery.

After you shall have allowed, as you will allow, that slavery, as it exists, is at war with God, you will be likely to say, that the fault is not in the theory of it; but in the practical departure from that theory; that it is not the system, but the practice under it, which is at war with God. Our concern, however, is with slavery as it is, and not with any theory of it. But to indulge you, we will look at the system of slavery, as it is presented to us, in the laws of the slave States; and what do we find here? Why, that the system is as bad as the practice under it. Here we find the most diabolical devices to keep millions of human beings in a state of heathenism—in the deepest ignorance and most loathsome pollution. But you will tell me, that I do not look far enough to find the true theory of slavery; and that the cruelties and abominations, which the laws of the slave States have ingrafted on this theory, are not acknowledged by the good men in those States to be a part of the theory. Well, you shall have the benefit of this plea; and I admit, for the sake of argument, that this theory of slavery, which lies far back, and out of sight of every thing visible and known about slavery, is right. And what does this admission avail you? It is slavery as it is—as it is seen and known, that the abolitionists are contending against. But, say you, to induce our forbearance, "We good men at the South are restoring slavery, as fast as we can, to what it should be; and we will soon make its erring practice quadrate with its perfect and sinless theory." Success to your endeavors! But let me ask these good men, whether similar representations would avail to make them forbearing towards any other class of offenders; and whether they would allow these offenders to justify the wickedness of their hands, by pleading the purity of their hearts. Suppose that I stand in court confessedly guilty of the crime of passing counterfeit money; and that I ask for my acquittal on the ground, that, notwithstanding I am practically wrong, I am, nevertheless, theoretically right. "Believe me," I say, in tones of deep and unfeigned pathos, and with a corresponding pressure of my hand upon my heart, "that the principles within are those of the purest morality; and that it is my faithful endeavor to bring my deportment, which, as you this day witness, is occasionally devious, into perfect conformity with my inward rectitude. My theory of honest and holy living is all that you could wish it to be. Be but patient, and you shall witness its beautiful

exhibitions in my whole conduct." Now, you certainly would not have this plea turn to my advantage;—why then expect that your similar plea should be allowed?

We must continue to judge of slavery by what it is, and not by what you tell us it will, or may be. Until its character be righteous, we shall continue to condemn it; but when you shall have brought it back to your sinless and beautiful theory of it, it will have nothing to fear from the abolitionists. There are two prominent reasons, however, for believing that you will never present Southern slavery to us in this lovely character, the mere imagination of which is so dear to you. The first is, that you are doing nothing to this end. It is an indisputable fact that Southern slavery is continually getting wider and wider from God, and from an innocent theory of servitude; and the "good men at the South," of whom we have spoken, are not only doing nothing to arrest this increasing divergency, but they are actually favoring it. The writings of your Dews, and Baxters, and Plummers, and Postells, and Andersons, and the proceedings of your ecclesiastical bodies, abundantly show this. Never, and the assertion is borne out by your statute books, as well as other evidences, has Southern slavery multiplied its abominations so rapidly, as within the last ten years; and never before had the Southern Church been so much engaged to defend and perpetuate these abominations. The other of these reasons for believing that Southern slavery will never be conformed to your *beau ideal* of slavery, in which it is presupposed there are none but principles of righteousness, is, that on its first contact with these principles, it would "vanish into thin air," leaving "not a wreck behind." In proof of this, and I need not cite any other case, it would be immediate death to Southern slavery to concede to its subjects, God's institution of marriage; and hence it is, that its code forbids marriage. The rights of the husband in the wife, and of the wife in the husband, and of parents in their children, would stand directly in the way of that traffic in human flesh, which is the very life-blood of slavery; and the assumptions of the master would, at every turn and corner, be met and nullified by these rights; since all his commands to the children of those servants (for now they should no longer be called slaves) would be in submission to the paramount authority of the parents^A. And here, sir, you and I might bring our discussion to a close, by my putting the following questions to you,

both of which your conscience would compel you to answer in the affirmative.

[A](#): I am aware that Professor Hodge asserts, that "slavery may exist without those laws which interfere with their (the slaves) marital or parental right" Now, this is a point of immense importance in the discussion of the question, whether slavery is sinful; and I, therefore, respectfully ask him either to retract the assertion, or to prove its correctness. Ten thousands of his fellow-citizens, to whom the assertion is utterly incredible, unite with me in this request. If he can show, that slavery does not "interfere with marital or parental rights," they will cease to oppose it. Their confident belief is, that slavery and marriage, whether considered in the light of a civil contract, or a scriptural institution, are entirely incompatible with each other.

1st. Is not Southern slavery guilty of a most heaven-daring crime, in substituting concubinage for God's institution of marriage?

2d. Would not that slavery, and also every theory and modification of slavery, for which you may contend, come speedily to nought, if their subjects were allowed to marry? Slavery, being an abuse, is incapable of reformation. It dies, not only when you aim a fatal blow at its life principle—its foundation doctrine of man's right to property in man^{[B](#)}—but it dies as surely, when you prune it of its manifold incidents of pollution and irreligion.

[B](#): I mean by this phrase, "right to property in man," a right to hold man as property; and I do not see with what propriety certain writers construe it to mean, a property in the mere services of a man.

But it would be treating you indecorously to stop you at this stage of the discussion, before we are a third of the way through your book, and thus deny a hearing to the remainder of it. We will proceed to what you say of the slavery which existed in the time of the New Testament writers. Before we do so, however, let me call your attention to a few of the specimens of very careless reasoning in that part of your book, which we have now gone over. They may serve to inspire you with a modest distrust of the soundness of other parts of your argument.

After concluding that Abraham was a slaveholder, you quote the following language from the Bible; "Abraham obeyed my voice and kept my charge, my commandments, my statutes, and my laws." You then inquire, "How could this be true of Abraham, holding as he did, until he was an old man, more slaves than any man in Mississippi or Louisiana?" To be consistent with your design in quoting this passage, you must argue from it, that Abraham was perfect. But this he was not; and, therefore, your quotation is vain. Again, if the slaveholder would quiet his conscience with the supposition, that "Abraham held more slaves than any man in Mississippi or Louisiana," let him remember, that he had also more concubines (Gen. 25: 6), "than any man in Mississippi or Louisiana;" and, if Abraham's authority be in the one case conclusive for slaveholding, equally so must it be in the other, for concubinage.

Perhaps, in saying that "Abraham had more concubines than any man in Mississippi or Louisiana," I have done injustice to the spirit of propagation prevailing amongst the gentlemen of those States. It may be, that some of your planters quite distance the old patriarch in obedience to the command to "multiply and replenish the earth." I am correctly informed, that a planter in Virginia, who counted, I know not how many slaves upon his plantation, confessed on his death-bed, that his licentiousness had extended to every adult female amongst them. This planter was a near relative of the celebrated Patrick Henry. It may be, that you have planters in Mississippi and Louisiana, who avail themselves to the extent that he did, of the power which slaveholding gives to pollute and destroy. The hundreds of thousands of mulattoes, who constitute the Southern commentary on the charge, that the abolitionists design amalgamation, bear witness that this planter was not singular in his propensities. I do not know what you can do with this species of your population. Besides, that it is a standing and deep reproach on Southern chastity, it is not a little embarrassing and puzzling to those who have received the doctrine, that the descendants of Africa amongst us must be returned to the land of their ancestors. How the poor mulatto shall be disposed of, under this doctrine, between the call which Africa makes for him, on the one hand, and that which some state of Europe sends out for him on the other, is a problem more difficult of solution than that which the contending mothers brought before the matchless wisdom of Solomon.

In the paragraph, which relates to the fourth and tenth commandments, there is another specimen of your loose reasoning. You say, that the language, "In it (the Sabbath) thou shalt do no work, thou, nor thy son, nor thy daughter, nor thy man servant, nor thy maid servant," "recognises the authority of the master over the servant." I grant, that it does: but does it at all show, that these servants were slaves? Does it recognise any more authority than the master should exercise over his voluntary servants? Should not the head of a family restrain all his servants, as well the voluntary as the involuntary, from unnecessary labor on the Sabbath? You also say, that the tenth commandment "recognizes servants as the *property* of their masters." But how does it appear from the language of this commandment, that the man servant and maid servant are property any more than the wife is? We will proceed, however, to the third section of your book.

Your acquaintance with history has enabled you to show some of the characteristics and fruits of Greek and Roman slavery. You state the facts, that the subjects of this slavery were "absolutely the property of their masters"—that they "were used like dogs"—that "they were forbidden to learn any liberal art or perform any act worthy of their masters"—that "once a day they received a certain number of stripes for fear they should forget they were slaves"—that, at one time, "sixty thousand of them in Sicily and Italy were chained and confined to work in dungeons"—that "in Rome there was a continual market for slaves," and that "the slaves were commonly exposed for sale naked"—that, when old, they were turned away," and that too by a master, highly esteemed for his superior virtues, to starve to death"—that they were thrown into ponds to be food for fish—that they were in the city of Athens near twenty times as numerous as free persons—that there were in the Roman Empire sixty millions of slaves to twenty millions of freemen mind that many of the Romans had five thousand, some ten thousand, and others twenty thousand.

And now, for what purpose is your recital of these facts?—not, for its natural effect of awakening, in your readers, the utmost abhorrence of slavery:—no—but for the strange purpose (the more strange for being in the breast of a minister of the gospel) of showing your readers, that even Greek and Roman slavery was innocent, and agreeable to God's will; and that, horrid as are the fruits you describe, the tree, which bore them, needed but

to be dug about and pruned—not to be cut down. This slavery is innocent, you insist, because the New Testament does not show, that it was specifically condemned by the Apostles. By the same logic, the races, the games, the dramatic entertainments, and the shows of gladiators, which abounded in Greece and Rome, were, likewise, innocent, because the New Testament does not show a specific condemnation of them by the apostles^A. But, although the New Testament does not show such condemnation, does it necessarily follow, that they were silent, in relation to these sins? Or, because the New Testament does not specifically condemn Greek and Roman slavery, may we, therefore, infer, that the Apostles did not specifically condemn it? Look through the published writings of many of the eminent divines, who have lived in modern times, and have written and published much for the instruction of the churches, and you will not find a line in them against gambling or theatres or the slave-trade;—in some of them, not a line against the very common sin of drunkenness. Think you, therefore, that they never spoke or wrote against these things? It would be unreasonable to expect to find, in print, their sentiments against all, even of the crying sins of their times. But how much more unreasonable is it to expect to find in the few pages of the Apostles' published letters, the whole of which can be read in a few hours, their sentiments in relation to all the prominent sins of the age in which they lived! And far greater still is the unreasonableness of setting them down, as favorable to all practices which these letters do not specifically condemn.

^A: Prof. Hodge says, if the apostles did abstain from declaring slavery to be sinful, "it must have been, because they did not consider it as, in itself, a crime. No other solution of their conduct is consistent with their truth or fidelity." But he believes that they did abstain from so doing; and he believes this, on the same evidence, on which he believes, that they abstained from declaring the races, games, &c., above enumerated, to be sinful. His own mode of reasoning, therefore, brings him unavoidably to the conclusion, that these races, games, &c., were not sinful.

It may be, that the Saviour and the Apostles, in the course of their teachings, both oral and written, did specify sins to a far greater extent, than they are supposed to have done. It may be, that their followers had much instruction, in respect to the great sin of slavery. We must bear in mind, that but a very small part of that Divine instruction, which, on the testimony of an Apostle,

"the world itself could not contain if written," has come down to us. Of the writings of our Saviour we have nothing. Of those of his Apostles a very small part. It is probable, that, during his protracted ministry, the learned apostle to the Gentiles wrote many letters on religious subjects to individuals and to churches. So also of the immense amount of instruction, which fell from the lips of the Apostles, but very little is preserved. It was Infinite Wisdom, however, which determined the size of the New, as well as of the Old Testament, and of what kinds and portions of the Saviour's and the Apostles' instructions it should consist. For obvious considerations, it is made up, in a great measure, of general truths and propositions. Its limited size, if no other reason, accounts for this. But, these general truths and propositions are as comprehensive as the necessity of the case requires; and, carried out into all their suitable applications they leave no sin unforbidden. Small as is the New Testament, it is as large as we need. It instructs us in relation to all our duties. It is as full on the subject of slavery, as is necessary; and, if we will but obey its directions, that bear on this subject, and "love one another," and love our neighbors as ourselves, and, as we would that men should do to us, do "also to them likewise," and "remember them, that are in bonds as bound with them," and "give unto servants, that which is just and equal"—not a vestige of this abomination will remain.

For the sake of the argument, I will admit, that the Apostles made no specific attack on slavery^A; and that they left it to be reached and overthrown, provided it be sinful, by the general principles and instructions which they had inculcated. But you will say, that it was their practice, in addition to inculcating such principles and instructions, to point out sins and reprove them:—and you will ask, with great pertinence and force, why they did not also point out and reprove slavery, which, in the judgment of abolitionists, is to be classed with the most heinous sins. I admit, that there is no question addressed to abolitionists, which, after the admission I have made for them, it is less easy to answer; and I admit further, that they are bound to answer it. I will proceed to assign what to me appear to be some of the probable reasons, why the Apostles specified the sins of lying, covetousness, stealing, &c., and, agreeably to the admission, which lays me under great disadvantage, did not specify slavery.

^A: This is no small admission in the face of the passage, in the first chapter of Timothy, which particularizes manstealing, as a violation of the law of

God. I believe all scholars will admit, that one of the crimes referred to by the Apostle, is kidnapping. But is not kidnapping an integral and most vital part of the system of slavery? And is not the slaveholder guilty of this crime? Does he not, indeed, belong to a class of kidnappers stamped with peculiar meanness? The pirate, on the coast of Africa, has to cope with the strength and adroitness of mature years. To get his victim into his clutches is a deed of daring and of peril demanding no little praise, upon the principles of the world's "code of honor." But the proud chivalry of the South is securely employed in kidnapping newborn infants. The pirate, in the one case, soothes his conscience with the thought, that the bloody savages merit no better treatment, than they are receiving at his hands:—but the pirate, in the other, can have no such plea—for they, whom he kidnaps, are untainted with crime.

And what better does it make the case for you, if we adopt the translation of "men stealers?" Far better, you will say, for, on the authority of Othello himself,

"He that is robb'd———

Let him not know it, and he's not robbed at all."

But, your authority is not conclusive. The crime of the depredation is none the less, because the subject is ignorant or unconscious of it. It is true, the slave, who never possessed liberty—who was kidnapped at his birth—may not grieve, under the absence of it, as he does, from whose actual and conscious possession it had been violently taken: but the robbery is alike plain, and is coupled with a meanness, in the one case, which does not disgrace it in the other.

1st. The book of Acts sets forth the fundamental doctrines and requirements of Christianity. It is to the letters of the Apostles we are to look for extended specifications of right and wrong affections, and right and wrong practices. Why do these letters omit to specify the sin of slaveholding? Because they were addressed to professing Christians exclusively; who, far more emphatically than now, were "the base things of the world," and were in circumstances to be slaves, rather than slaveholders. Doubtless, there were many slaves amongst them—but I cannot admit, that there were

slaveholders. There is not the least probability, that slaveholding was a prevalent sin amongst primitive Christians^B. Instructions to them on that sin might have been almost as superfluous, as would be lectures on the sin of luxury, addressed to the poor Greenland disciples, whose poverty compels them to subsist on filthy oil. No one, acquainted with the history of their lives, believes that the Apostles were slave-holders. They labored, "working with (their) own hands." The supposition, that they were slaveholders, is inconsistent with their practice, and with the tenor of their instructions to others on the duty of manual labor. But if the Apostles were not slaveholders, why may we suppose, that their disciples were? At the South, it is, "like people, like priest," in this matter. There, the minister of the gospel thinks, that he has as good right to hold slaves, as has his parishioner: and your Methodists go so far, as to say, that even a bishop has as good right, as any other person, to have slaves

^B: How strongly does the following extract from the writings of the great and good Augustine, who lived in the fourth century, argue, that slaveholding was not a prevalent sin amongst primitive Christians! "Non oportet Christianum possidere servum quomodo equum aut argentum. Quis dicere audeat ut vestimentum cum debere contemni? Hominem namque homo tamquam seipsum diligere debet cui ab omnium Domino, ut inimicos diligat, imperatur." *A Christian ought not to hold his servant as he does his horse or his money. Who dares say that he should be thought as lightly of as a garment? For man, whom the Lord of all has commanded to love his enemies, should love his fellow-man as himself.*

"———to fan him while he sleeps,
And tremble when he wakes."

Indeed, they already threaten to separate from their Northern brethren, unless this right be conceded. But have we not other and conclusive evidence, that primitive Christians were not slaveholders? We will cite a few passages from the Bible to show, that it was not the will of the Apostles to have their disciples hold manual labor in disrepute, as it is held, in all slaveholding communities. "Do your own business, and work with your own hands, as we commanded you." "For this we commanded you, that, if any would not work, neither should he eat." "Let him that stole, steal no

more; but rather let him labor, working with his hands the thing which is good, that he may have to give to him that needeth." In bringing the whole verse into this last quotation, I may have displeased you. I am aware, that you slaveholders proudly and indignantly reject the applicableness to yourselves of the first phrase in this verse, and also of the maxim, that "the partaker of stolen goods is as bad as the thief." I am aware, that you insist, that the kidnapping of a man, or getting possession of him, after he has been kidnapped, is not to be compared, if indeed it can be properly called theft at all, with the crime of stealing a *thing*. It occurs to me, that if a shrewd lawyer had you on trial for theft, he would say, that you were *estopped* from going into this distinction between a *man* and a *thing*, inasmuch as, by your own laws, the slave is expressly declared to be a *chattel*—is expressly *elevated* into a *thing*. He would say, however competent it may be for others to justify themselves on the ground, that it was but a *man*, and not a *thing*, they had stolen; your own statutes, which, with magic celerity, convert stolen men into things, make such a plea, on your part, utterly inadmissible. He would have you as fast, as though the stolen goods, in your hands, were a bushel of wheat, or some other important *thing*, instead of a *mere man*.

But, if you are not yet convinced that primitive Christians were not slaveholders, let me cite another passage to show you, how very improbable it is, that they stood in this capacity:—"all, that believed, had all things common, and sold their possessions and goods, and parted them to all men, as every man had need." Now I do not say, that all the primitive believers did so. But if a portion of them did, and met with the Apostles' approbation in it, is it at all probable, that a course, so diverse from it, as that of slaveholding in the Church, met likewise with their approbation?

2d. I go on to account for the Apostles' omission to specify slavery.

Criminality is not always obvious, in proportion to its extent. The sin of the traffic in intoxicating liquors, was, until the last few years, almost universally unfelt and unperceived. But now, we meet with men, who, though it was "in all good conscience," that they were once engaged in it, would not resume it for worlds; and who see more criminality, in taking money from a fellow man, in exchange for the liquor which intoxicates him, than in simple theft. However it may be with others, in this employment, they now see, that, for them to traffic in intoxicating liquors,

would be to stain themselves with the twofold crime of robbery and murder. How is it, that good men ever get into this employment?—and, under what influences and by what process of thought, do they come to the determination to abandon it? The former is accounted for, by the fact, that they grow up—have their education—their moral and intellectual training—in the midst of a public opinion, and even of laws also, which favor and sanction the employment. The latter is accounted for, by the fact, that they are brought, in the merciful providence of God, to observe and study and understand the consequences of their employment—especially on those who drink their liquor—the liquor which they sell or make, or, with no less criminality, furnish the materials for making. These consequences they find to be "evil, only evil, and that continually." They find, that this liquor imparts no benefit to them who drink it, but tends to destroy, and, oftentimes, does destroy, their healths and lives. To continue, therefore, in an employment in which they receive their neighbor's money, without returning him an equivalent, or any portion of an equivalent, and, in which they expose both his body and soul to destruction, is to make themselves, in their own judgments, virtually guilty of theft and murder.

Thus it is in the case of a national war, waged for conquest. Christians have taken part in it; and, because they were blinded by a wrong education, and were acting in the name of their country and under the impulses of patriotism, they never suspected that they were doing the devil, instead of "God, service." But when, in the kind providence of God, one of these butchers of their fellow beings is brought to pause and consider his ways, and to resolve his enormous and compound sin into its elements of wickedness,—into the lies, theft, covetousness, adultery, murder, and what not of crime, which enter into it,—he is amazed that he has been so "slow of heart to believe," and abandon the iniquity of his deeds.

What I have said to show that Christians, even in enlightened and gospelized lands, may be blind to the great wickedness of certain customs and institutions, serves to introduce the remark; that there were probably some customs and institutions, in the time of the Apostles, on which it would have been even worse than lost labor for them to make direct attacks. Take, for example, the kind of war of which we have been speaking. If there are reasons why the modern Christian can be insensible to the sin of it, there are far stronger reasons why the primitive Christian could be. If the light

and instruction which have been accumulating for eighteen centuries, are scarcely sufficient to convince Christians of its wickedness, is it reasonable to suppose that, at the commencement of this long period, they could have been successfully taught it? Consider, that at that time the literature and sentiment of the world were wholly on the side of war; and especially, consider how emphatically the authority of civil government and of human law was in favor of its rightfulness. Now, to how great an extent such authority covers over and sanctifies sin, may be inferred from the fact, that there are many, who, notwithstanding they believe slavery to be a most Heaven-daring sin, yet, because it is legalized and under the wing of civil government, would not have it spoken against. Even Rev. Dr. Miller, in certain resolutions which he submitted to the last General Assembly, indicated his similar reverence for human laws; and the lamented Dr. Rice distinctly recognises, in his letter to Mr. Maxwell, the doctrine that the Church is bound to be quiet about every sin which the civil government adopts and whitewashes. That the Christian Spectator should indorse the Doctor's sentiments on this point is still more worthy of remark than that he should utter them. Indeed, I judge from what you say on the 68th and 69th pages of your book, that you are yourself opposed to calling in question the morality of that which civil government approves. But, to doubt the infallibility of civil government,—to speak against Caesar,—was manifestly held to be quite as presumptuous in the time of the Apostles as it is now.

Another reason why an Apostle would probably have deemed it hopeless to attempt to persuade his disciples, immediately and directly, of the sin of war, is to be found in the fact of their feeble and distorted perception of truth and duty. We, whose advantage it is to have lived all our days in the light of the gospel, and whose ancestors, from time immemorial, had the like precious advantage, can hardly conceive how very feeble and distorted was that perception. But, consider for a moment who those disciples were. They had, most of them, but just been taken out of the gross darkness and filth of heathenism. In reading accounts which missionaries give of converted heathen—of such, even, as have for ten, fifteen, or twenty years, been reputed to be pious—you are, doubtless, often surprised to find how grossly erroneous are their moral perceptions. Their false education still cleaves to them. They are yet, to a great extent, in the mould of a corrupted public opinion; and, as far from having a clear discernment of moral truth,

as were the partially unsealed eyes which saw "men, as trees, walking." The first letter to the Church at Corinth, proves that the new principles implanted in its members had not yet purged out the leaven of their old wickedness; and that their conceptions of Christian purity and conduct were sadly defective. As it was with the Corinthian Christians, so was it to a great extent with the other Christians of that age. Now, if the Apostles did not directly teach the primitive believers that wars, and theatres, and games, and slavery, are sinful, it is because they thought it more fit to exercise their ignorant pupils chiefly in the mere alphabet and syllables of Christianity. (Acts xv, 28, 29.) The construction of words and sentences would naturally follow. The rudiments of the gospel, if once possessed by them, would be apt to lead them on to greater attainments. Indeed, the love, peace, truth, and other elements of holy living inculcated by the Apostles, would, if turned to all proper account, be fatal to every, even the most gigantic, system of wickedness. Having these elements in their minds and hearts, they would not fail of condemning the great and compound sin of war whenever they should be led to take it up, examine it, resolve it into its constituent parts, and lay these parts for comparison, by the side of those elements. But, such an advance was hardly to be expected from many of these heathen converts during the brief period in which they enjoyed Apostolic instruction; and it is but too probable, that most of them died in great ignorance of the sin of national wars. Converts from the heathen, in the present age, when conviction of the sinfulness of war is spreading in different parts of Christendom, would be more likely to imbibe correct views of it.

The Apostles "fed with milk" before they fed with meat, as did our Saviour, who declared, "I have yet many things to say unto you, but ye cannot bear them now." In every community, the foundation principles of righteousness must be laid, before there can be fulcrums for the levers to be employed in overthrowing the sins which prevail in it. You will doubtless, then, agree with me, that it is not probable that the Apostles taught their heathen converts, directly and specifically, the sinfulness of war. But slaves, in that age, with the exception of the comparative few who were reduced to slavery on account of the crimes of which they had been judicially convicted, were the spoils of war. How often in that age, as was most awfully the fact, on the final destruction of Jerusalem, were the slave-markets of the world

glutted by the captives of war! Until, therefore, they should be brought to see the sinfulness of war, how could they see the sinfulness of so direct and legitimate a fruit of it as slavery?—and, if the Apostles thought their heathen converts too weak to be instructed in the sinfulness of war, how much more would they abstain from instructing them, directly and specifically, in the sin of slavery!

3d. In proceeding with my reasons why the Apostles did not extend their specification of sins to slavery, I remark, that it is apparent from the views we have taken, and from others which might have been taken, that nothing would have been gained by their making direct and specific attacks on the institutions of the civil governments under which they lived. Indeed, much might have been lost by their doing so. Weak converts, with still many remains of heathenism about them, might in this wise have been incurably prejudiced against truths, which, by other modes of teaching,—by general and indirect instructions,—would probably have been lodged in their minds. And there is another point of view in which vastly more, even their lives, might have been lost, by the Apostles making the direct and specific attacks referred to. I know that you ridicule the idea of their consulting their personal safety. But what right have you to do so? They did, on many occasions, consult the security of their lives. They never perilled them needlessly, and through a presumptuous reliance on God. It is the devil, who, in a garbled quotation from the Scriptures, lays down, in unlimited terms, the proposition, that God will keep his children. But, God promises them protection only when they are in their own proper ways. The Saviour himself consulted the safety of his life, until his "time" had "full come;" and his command to his Apostles was, "when they persecute you in this city, flee ye into another." If you suppose me to admit for a moment, that regard for the safety of their lives ever kept them from the way of their duty, you are entirely mistaken; and, if you continue to assert, in the face of my reasoning to the contrary, that on the supposition of the sinfulness of slavery, their omission to make direct and specific attacks on it would have been a failure of their duty, then I can only regret that this reasoning has had no more influence upon you.

I observe that Professor Hodge agrees with you, that if slavery is sin, it would have been specifically attacked by the Apostles at any hazard to their lives. This is his conclusion, because they did not hesitate to specify and

rebuke idolatry. Here is another of the Professor's sophisms. The fact, that the Apostles preached against idolatry, is no reason at all why, if slavery is sin, they would have preached against that also. On the one hand, it is not conceivable that the gospel can be preached where there is idolatry, without attacking it: for, in setting forth the true God to idolaters, the preacher must denounce their false gods. On the other hand, gospel sermons can be preached without number, and the true God presented, not only in a nation of idolaters, but elsewhere, without one allusion being made to such crying sins as slavery, lewdness, and intemperance.

In the same connexion, Professor Hodge makes the remark "We do not expect them (our missionaries) to refrain from denouncing the institutions of the heathen as sinful, because they are popular, or intimately interwoven with society." If he means by this language, that it is the duty of missionaries on going into a heathen nation, to array themselves against the civil government, and to make direct and specific attacks on its wicked nature and wicked administration, then is he at issue, on this point, with the whole Christian public; and, if he does not mean this, or what amounts to this, I do not see how his remark will avail any thing, in his attempt to show that the Apostles made such attacks on whatever sinful institutions came under their observation.

What I have said on a former page shows sufficiently how fit it is for missionaries to the heathen, more especially in the first years of their efforts among them, to labor to instruct their ignorant pupils in the elementary principles of Christianity, rather than to call their attention to the institutions of civil government, the sinfulness of which they would not be able to perceive until they had been grounded in those elementary principles; and the sinfulness of which, more than of any thing else, their prejudices would forbid them to suspect. Another reason why the missionary to the heathen should not directly, and certainly not immediately, assail their civil governments, is that he would thereby arouse their jealousies to a pitch fatal to his influence, his usefulness, and most probably his life; and another reason is, that this imprudence would effectually close the door, for a long time, against all efforts, even the most judicious, to spread the gospel amongst a people so needlessly and greatly prejudiced against it by an unwise and abrupt application of its principles. For instance, what folly and madness it would be for our missionaries to Burmah, to make a direct

assault on the political institutions of that country! How fatal would it be to their lives, and how incalculably injurious to the cause entrusted to their hands! And, if this can be said of them, after they have spent ten, fifteen, and twenty years, in efforts to bring that portion of the heathen world to a knowledge and love of the truth, how much more emphatically could it be said if they had been in the field of their labors but three or four years! And yet, even this short space of time exceeds the average period of the Apostles' labor among those different portions of the heathen world which they visited;—labor, too, it must be remembered, not of the whole, nor even of half of "the twelve."

That the Apostles could not have made direct attacks on the institutions of the Roman government, but at the expense of their lives, is not to be doubted. Our Saviour well knew how fatal was the jealousy of that government to the man who was so unhappy as to have excited it; and he accordingly avoided the excitement of it, as far as practicable and consistent. His ingenious and beautiful disposition of the question, "Is it lawful to give tribute to Caesar or not," is among the instances, in which He studied to shun the displeasure of the civil government. Pilate gave striking evidence of his unwillingness to excite the jealousy of his government, when, every other expedient to induce him to consent to the Saviour's death having failed, the bare charge, utterly unproven and groundless, that, the Divine prisoner had put forth pretensions, interfering with Caesar's rights, availed to procure His death-warrant from the hands of that truth-convicted, but man-fearing governor. Had it not availed, Pilate would have been exposed to the suspicion of disloyalty to his government; and so perilous was this suspicion, that he was ready, at any expense to his conscience and sense of justice, to avoid incurring it.

A direct attack on Roman slavery, as it would have called in question the rightfulness of war—the leading policy of the Roman government—would, of course, have been peculiarly perilous to its presumptuous author. No person could have made this attack, and lived; or, if possibly he might have escaped the vengeance of the government, do we not know too much of the deadly wrath of slaveholders, to believe that he could have also escaped the summary process of Lynch law? If it be at the peril of his life that a Northern man travels in the Southern States,—and that, too, whether he do or do not say a word about slavery, or even whether he be or be not an

abolitionist;—if your leading men publicly declare, that it is your religious duty to put to an immediate death, whenever they come within your power, those who presume to say that slavery is sin (and such a declaration did a South Carolina gentleman make on the floor of congress, respecting the inconsiderable person who is addressing you);—and, if your professing Christians, not excepting ministers of the gospel, thirst for the blood of abolitionists^A, as I will abundantly show, if you require proof;—if, in a gospel land, all this be so, then I put it to your candor, whether it can reasonably be supposed that the Apostles would have been allowed to attack slavery in the midst of heathen slaveholders. Why it is that slaveholders will not allow a word to be breathed against slavery, I cannot, perhaps, correctly judge. Abolitionists think that this unwillingness denotes that man is unfit for absolute power over his fellow men. They think as unfavorably of the influence of this power on the slaveholder, as your own Jefferson did. They think that it tends to make him impatient of contradiction, self-willed, supercilious, cruel, murderous, devilish; and they think that they can establish this opinion, not by the soundest philosophy only, but by the pages of many of your own writers, and by those daily scenes of horrid brutality which make the Southern States, in the sight both of God and man, one of the most frightful and loathsome portions of the world—of the whole world—barbarous as well as civilized.

^A: I will relate an incident, to show what a fiend even woman, gentle, lovely woman, may become, after she has fallen under the sway of the demon of slavery. Said a lady of Savannah, on a visit in the city of New York, "I wish he (Rev. Dr. Samuel H. Cox) would come to Savannah. I should love to see him tarred and feathered, and his head cut off and carried on a pole around Savannah." This lady is a professing Christian. Her language stirs me up to retaliate upon her, and to express the wish that she would come to the town, and even to the dwelling, in which Dr. Cox resides. She would find that man of God—that man of sanctified genius—as glad to get his enemies into his hands, as she would be to get him into the hands of his enemies:—not, however, for the purpose of disgracing and decapitating them, but, that he might pour out upon them the forgiveness and love of his generous and *abolitionized* heart. In the city of New York there are thousands of whole-souled abolitionists. What a striking testimony is it, in behalf of their meekness and forbearance, when a southern fury is

perfectly secure, in belching out such words of wrath in the midst of them! We abolitionists never love our principles better, than when we see the slaveholder feeling safe amongst us. No man has been more abusive of us than Governor McDuffie; and yet, were he to travel in the Northern States, he would meet with no unkindness at the hands of any abolitionist. On the other hand, let it be known to the governor, that he has within his jurisdiction a prominent abolitionist—one, whose heart of burning love has made him specially anxious to persuade the unfortunate slaveholder to be just to himself, to his fellow men, and to his God,—and the governor, true to the horrid sentiments of his famous message, would advise that he be "put to death without benefit of clergy." Let slaveholders say what they will about our blood-thirstiness, there is not one of them who fears to put himself in our power. The many of them, who have been beneath my roof, and the roofs of other abolitionists, have manifested their confidence in our kindness. Were a stranger to the institution of slavery to learn, in answer to his inquiries, that "an abolitionist" is "an outlaw amongst slaveholders," and that "a slaveholder" is "the kindly entertained guest of abolitionists,"—here would be a puzzle indeed. But the solution of it would not fail to be as honorable to the persecuted man of peace, as it would be disgraceful to the bloody advocate and executioner of Lynch law.

I need not render any more reasons why the Apostles did not specifically attack slavery; but I will reply to a question, which I am sure will be upon your lips all the time you are reading those I have rendered. This question is, "If the Apostles did not make such an attack on slavery, why may the American abolitionists?" I answer, that the difference between the course of the abolitionists and of the Apostles, in this matter, is justified by the difference in their circumstances. Professor Hodge properly says, that our course should be like theirs, "unless it can be shown that their circumstances were so different from ours, as to make the rule of duty different in the two cases." And he as properly adds, "the obligation to point out and establish this difference rests upon the abolitionists."

The reasons I have given, why the Apostles did not directly attack slavery, do not apply to the abolitionists. The arm of civil power does not restrain us from attacking it. To open our lips against the policy and institutions of civil government is not certain death. A despotic government restricted the efforts of the Apostles to do good. But we live under governments which

afford the widest scope for exertions to bless our fellow men and honor God. Now, if we may not avail ourselves of this advantage, simply because the Apostles did not have it to avail themselves of, then whatever other interests may prosper under a republican government, certain it is, that the cause of truth and righteousness is not to be benefited by it. Far better never to have had our boasted form of government, if, whilst it extends the freedom and multiplies the facilities of the wicked, it relieves the righteous of none of the restrictions of a despotic government. Again, there is a religious conscience all over this land, and an enlightened and gospel sense of right and wrong; on which we can and do (as in your Introduction you concede is the fact) bring our arguments against slavery to bear with mighty power. But, on the other hand, the creating of such a conscience and such a sense, in the heathen and semi-heathen amongst whom they lived and labored, was the first, and appropriate, and principal work of the Apostles. To employ, therefore, no other methods for the moral and religious improvement of the people of the United States, than were employed by the Apostles for that of the people of the Roman empire, is as absurd as it would be to put the highest and lowest classes in a school to the same lessons; or a raw apprentice to those higher branches of his trade which demand the skill of an experienced workman.

I am here reminded of what Professor Hodge says were the means relied on by the Saviour and Apostles for abolishing slavery. "It was," says he, "by teaching the true nature, dignity, equality, and destiny of men; by inculcating the principles of justice and love; and by leaving these principles to produce their legitimate effects in ameliorating the condition of all classes of society." I would not speak disparagingly of such a course of instruction; so far from it, I am ready to admit that it is indispensable for the removal of evils, in every age and among every people. When general instructions of this character shall have ceased to be given, then will all wholesome reforms have ceased also. But, I cannot approve of the Professor's object in this remark. This object is to induce his readers to believe, that these abstract and general instructions are all that is needed to effect the termination of slavery. Now, I maintain that one thing more is wanting; and that is, the application of these instructions—of the principles contained in them—to the evil in hand. As well may it be supposed, that the mechanic can accomplish his work without the application, and by the mere

possession, of his tools, as that a given reformation can be effected by unapplied general principles. Of these principles, American philanthropists have been possessed from time immemorial; and yet all the while American slavery has been flourishing and growing strong. Of late, however, these principles have been brought to bear upon the system, and it manifestly is already giving way. The groans of the monster prove that those rays of truth, which did not disturb him whilst they continued to move in the parallel lines of abstractions and generalities, make it quite too hot for him since they are converged to a burning focus upon his devoted head. Why is it, for example, that the influence of the Boston Recorder and New-York Observer—why is it, that the influence of most of our titled divines—is decidedly hostile to the abolition of slavery? It is not because they are deficient in just general sentiments and principles respecting man's duties to God and his fellow man. It is simply because they stand opposed to the application of these sentiments and principles to the evil in question; or, in other words, stand opposed to the Anti-Slavery Society, which is the chosen lens of Divine Providence for turning these sentiments and principles, with all the burning, irresistible power of their concentration, against a giant wickedness. What is the work of the Temperance Societies, but to make a specific application of general truths and principles to the vice of intemperance? And the fact, that from the time of Noah's intoxication, until the organization of the American Temperance Society, the desolating tide of intemperance had been continually swelling, proves that this reliance on unapplied principles, however sound—this "faith without works"—is utterly vain. Nathan found that nothing, short of a specific application of the principles of righteousness, would answer in the case of the sin of adultery. He had to abandon all generalities and circuitousness, and come plump upon the royal sinner with his "Thou art the man." Those divines, whose policy it is to handle slaveholders "with gloves," if they must handle them at all, doubtless regard Nathan as an exceedingly impolite preacher.

But, not only is it far less difficult to instruct the people of the United States than it was the people of the Roman Empire, in the sin of slavery; it is also—for the reason that the sin is ours, to a far greater extent, than it was theirs—much more important for us than for them to be instructed in it. They had no share in the government which upheld it. They could not abolish it by law. But, on the other hand, the people of the United States are themselves

the government of their country. They are the co-sovereigns of their nation. They uphold slavery by law, and they can put it down by law. In this point of view, therefore, slavery is an incomparably greater sin in us, than it was in them.

Only one other reason will be given why it is more needful to overthrow American, than it was to overthrow Roman slavery. The Church was then but a handful of "strangers scattered throughout" the heathen world. It was made up of those who had little influence, and who were esteemed "the filth of the world, and the offscouring of all things." It had, probably, little, if any thing, to do with slavery, except to suffer its rigors in the persons of many of its members. But here, the Church, comprising no very small proportion of the whole population, and exerting a mighty influence for good or ill on the residue, is tainted, yes, rotten with slavery. In this contrast, we not only see another reason why the destruction of American slavery is more important than was that of Roman slavery; but we also see, that the Apostles could have been little, if at all, actuated by that motive, which is more urgent than any other in the breasts of the American abolitionists—the motive of purging the Church of slavery.

To return to what you say of the abominations and horrors of Greek and Roman slavery:—I should be doing you great injustice, were I to convey the idea that you approve of them. It is admitted that you disapprove of them; and, it is also admitted, that no responsibility for them rests on the relation of slaveholder and slave, if that relation have, as you labor to show, the stamp of Divine approbation. You say, that slavery, like marriage, is an institution sanctioned by the New Testament; and that, therefore, neither for the evils which attend it, nor for any other cause, is it to be argued against. This is sound reasoning, on your part; and, if your premises are correct, there is no resisting your deduction. We are, in that case, not only not to complain of the institution of slavery, but we are to be thankful for it. Considering, however, that the whole fabric of your argument, in the principal or New Testament division of your book, is based on the alleged fact that the New Testament approves of slavery, it seems to me that you have contented yourself, and sought to make your readers contented, with very slender evidences of the truth of this proposition. These evidences are, mainly—that the New Testament does not declare slavery to be a sin: and, that the Apostles enjoin upon masters and servants their respective duties;

and this, too, in the same connexion in which they make similar injunctions upon those who stand in the confessedly proper relations of life—the husband and wife, the parent and child. Your other evidences, that the New Testament approves of slavery, unimportant as they are, will not be left unnoticed.

I have attempted to show, that the omission of the New Testament to declare slavery to be a sin, is not proof that it is not a sin. I pass on to show, that the Apostolic injunction of duties upon masters and servants does not prove that slavery is sinless.

I have now reached another grand fallacy in your book. It is also found in Professor Hodge's article. You, gentlemen, take the liberty to depart from our standard English translation of the Bible, and to substitute "slaveholder" for "master"—"slave" for "servant"—and, in substance, "emperor" for "ruler"—and "subject of an imperial government" for "subject of civil government generally." I know that this substitution well suits your purposes: but, I know not by what right you make it. Professor Hodge tells the abolitionists, certainly without much respect for either their intelligence or piety, that "it will do no good (for them) to attempt to tear the Bible to pieces." There is but too much evidence, that he himself has not entirely refrained from the folly and crime, which he is so ready to impute to others.

I will proceed to offer some reasons for the belief, that when the Apostles enjoined on masters and servants their respective duties, they had reference to servitude in general, and not to any modification of it.

1st. You find passages in the New Testament, where you think *despotes* refers to a person who is a slaveholder, and *doulos* to a person who is a slave. Admit that you are right: but this (which seems to be your only ground for it) does not justify you in translating these words "slaveholder" and "slave," whenever it may be advantageous to your side of the question to have them thus translated. These words, have a great variety of meanings. For instance, there are passages in the New Testament where *despotes* means "God"—Jesus Christ"—Head of a family:" and where *doulos* means "a minister or agent"—a subject of a king"—a disciple or follower of Christ." *Despotes* and *doulos* are the words used in the original of the expression: "Lord, now lettest thou thy servant depart in peace:"

doulos in that of the expressions, "servant of Christ," and "let him be servant of all." Profane writers also use these words in various senses. My full belief is, that these words were used in both a generic and special sense, as is the word corn, which denotes bread-stuffs in general, and also a particular kind of them; as is the word meat, the meaning of which is, sometimes, confined to flesh that is eaten, and, at other times, as is frequently the case in the Scriptures, extends to food in general; and, as is the word servant, which is suitable, either in reference to a particular form of servitude, or to servitude in general. There is a passage in the second chapter of Acts, which is, of itself, perhaps, sufficient to convince an unbiassed mind, that the Apostles used the word *doulos* in a, generic, as well as in a special sense. *Doulos* and *doule* are the words in the phrase: "And on my servants and on my handmaidens." A reference to the prophecy as it stands; in Joel 2: 28, 29, makes it more obvious, that persons in servitude are referred to under the words *doulos* and *doule*; and, that the predicted blessing was to be shed upon persons of all ages, classes, and conditions—upon old men and young men—upon sons and daughters—and upon man-servants and maid-servants. But, under the interpretation of those, who, like Professor Hodge and yourself, confine the meaning of *doulos* and *doule* to a species of servants, the prophecy would have reference to persons of all ages, classes, and conditions—*excepting certain descriptions of servants*. Under this interpretation, we are brought to the absurd conclusion, that the spirit is to be poured out upon the master and his slaves—but *not upon his hired servants*.

I trust that enough has been said, under this my first head, to show that the various senses in which the words *despotes* and *doulos* are employed, justify me in taking the position, that whenever we meet with them, we are to determine, from the nature of the case, and from the connexion in which they are used, whether they refer to servitude in general, or to a species of it.

2d. The confinement of the meaning of the words in question supposes, what neither religion nor common sense allows us to suppose, that slaveholders and slaves, despots and those in subjection to them, were such especial favorites of the Apostles, as to obtain from them specific instructions in respect to their relative duties, whilst all other masters and servants, and all other rulers and subjects, throughout all future time, were

left unprovided with such instructions. According to this supposition, when slavery and despotism shall, agreeably to Professor Hodge's expectations, have entirely ceased, there will be not one master nor servant, not one ruler nor subject in the whole earth, to fall, as such, under the Apostolic injunctions.

3d. You admit that there were hirelings, in a community of primitive believers; and I admit, for the moment, that there were slaves in it. Now, under my interpretation of the Apostolic injunction, all husbands, all wives, all parents, all children, and all servants, in this community, are told their respective duties: but, under yours, these duties are enjoined on all husbands, all wives, all parents, all children, and a *part of the servants*. May we not reasonably complain of your interpretation, that it violates analogy?

Imagine the scene, in which a father, in the Apostolic age, assembles his family to listen to a letter from the glowing Peter, or "such an one as Paul the aged." The letter contains instructions respecting the relative duties of life. The venerable pair, who stand in the conjugal and parental relations, receive, with calm thankfulness, what is addressed to themselves;—the bright-eyed little ones are eager to know what the Apostle says to children—a poor slave blesses God for his portion of the Apostolic counsel;—and the scene would be one of unmingled joy, if the writer had but addressed hired servants, as well as slaves. One of the group goes away to weep, because the Apostle had remembered the necessities of all other classes of men, and forgotten those of the hireling. Sir, do you believe that the Apostle was guilty of such an omission? I rejoice that my side of the question between us, does not call for the belief of what is so improbable and unnatural—and, withal, so dishonoring to the memory of the Apostle.

4th. Another reason for believing, that the Apostles intended no such limitation as that which you impose upon their words, is, that their injunctions are as applicable to the other classes of persons occupying these relations, as they are to the particular class to which you confine them. The hired servant, as well as the slave, needs to be admonished of the sins of "eye service" and "purloining;" and the master of voluntary, as well as involuntary servants, needs to be admonished to "give that which is just and equal." The ruler in a republic, or, in a limited monarchy, as well as the despot, requires to be reminded, that he is to be "a minister of God for

good." So the subject of one kind of civil government, as well as that of another, needs to be told to be "subject unto the higher powers."

I need not extend my remarks to prove, that *despotes* and *doulos* are, in the case before us, to be taken in their comprehensive sense of master and servant: and, clearly, therefore, the abolitionist is not guilty of violating your rule, "not to interfere with a civil relation (in another place, you say, 'any of the existing relations of life') for which, and to regulate which, either Christ or his Apostles have prescribed regulations." He believes, as fully as yourself, that the relation of master and servant is approved of God. It is the slavery modification of it—the slaveholder's abuse and perversion of the relation, in reducing the servant to a chattel—which, he believes, is not approved of God.

For the sake of the argument, I will admit, that the slave alone, of all classes of servants, was favored with specific instructions from the Apostles: and then, how should we account for the selection? In no other way, can I conceive, than, on the ground, that his lot is so peculiarly hard—so much harder than that of persons under other forms of servitude—that he needs, whilst they do not, Apostolic counsel and advice to keep him just, and patient, and submissive. Let me be spared from the sin of reducing a brother man to such a lot. Your doctrine, therefore, that the Apostles addressed slaves only, and not servants in general, would not, were its correctness admitted, lift you out of all the difficulties in your argument.

Again, does it necessarily follow from this admission, that the relation of slaveholder and slave is sinless? Was the despotism of the Roman government sinless? I do not ask whether the *abuses* of civil government, in that instance, were sinless. But, I ask, was a government, despotic in its constitution, depriving all its subjects of political power, and extending absolute control over their property and persons—was such a government, independently of the consideration of its *abuses*, (if indeed we may speak of the abuses of what is in itself an *abuse*,) sinless? I am aware, that Prof. Hodge says, that it was so: and, when he classes despotism and slavery with *adiaphora*, "things indifferent;" and allows no more moral character to them than to a table or a broomstick, I trust no good man envies his optics. May I not hope that you, Mr. Smylie, perceive a difference between despotism and an "indifferent thing." May I not hope, that you will, both as

a Republican and a Christian, take the ground, that despotism has a moral character, and a bad one? When our fathers prayed, and toiled, and bled, to obtain for themselves and their children the right of self-government, and to effect their liberation from a power, which, in the extent and rigor of its despotism, is no more to be compared to the Roman government, than the "little finger" to the "loins," I doubt not, that they felt that despotism had a moral, and a very bad moral character. And so would Prof. Hodge have felt, had he stood by their side, instead of being one of their ungrateful sons. I say ungrateful—for, who more so, than he who publishes doctrines that disparage the holy cause in which they were embarked, and exhibits them, as contending for straws, rather than for principles? Tell me, how long will this Republic endure after our people shall have imbibed the doctrine, that the *nature* of civil government is an indifferent thing: and that the poet was right when he said,

"For forms of government let *fools* contest?"

This, however, is but one of many doctrines of ruinous tendency to the cause of civil liberty, advanced by pro-slavery writers to sustain their system of oppression.

It would surely be superfluous to go into proofs, that the Roman government was vicious and wicked in its constitution and nature. Nevertheless, the Apostle enjoined submission to it, and taught its subjects how to demean themselves under it. Here, then, we have an instance, in which we cannot argue the sinlessness of a relation, from the fact of Apostolic injunctions on those standing in it. Take another instance. The Chaldeans went to a foreign land, and enslaved its people—as members of your guilty partnership have done for some of the slaves you now own, and for the ancestors of others. And God destroyed the Chaldeans expressly "for all their evil that they had done in Zion." But, wicked as they were, for having instituted this relation between themselves and the Jews, God, nevertheless, tells the Jews to submit to it. He tells them, "Serve the King of Babylon." He even says, "seek the peace of the city, whither I have caused you to be carried away captives, and pray unto the Lord for it; for, in the peace thereof, shall ye have peace." Here then, we have another instance, in addition to that of the Roman despot and his subjects, in which the Holy

Spirit prescribed regulations for wicked relations. You will, at least, allow, that the relation established by the Chaldeans between themselves and the captive Jews, was wicked. But, you will perhaps say, that this is not a relation coming within the contemplation of your rule. Your rule speaks of a civil relation, and also of the existing relations of life. But, the relation in question, being substantially that of slaveholder and slave, is, according to your own showing, a civil relation. Perhaps you will say, it is not an "existing relation of life." But what do you mean by "an existing relation of life?" Do you mean, that it is a relation approved of God? If you do, and insist that the relation of slaveholder and slave is "an existing relation of life," then you are guilty of begging the great question between us. Your rule, therefore, can mean nothing more than this—that any relation is rightful, for which the Bible prescribes regulations. But the relation referred to between the Chaldeans and Jews, proves the falsity of the rule. Again, when a man compels me to go with him, is not the compelled relation between him and me a sinful one? And the relation of robber and robbed, which a man institutes between himself and me, is not this also sinful? But, the Bible has prescribed regulations for the relations in both these cases. In the one, it requires me to "go with him twain;" and, in the other, to endure patiently even farther spoliation and, "let him have (my) cloak also." In these cases, also, do we see the falsity of your rule—and none the less clearly, because the relations in question are of brief duration.

Before concluding my remarks on this topic, let me say, that your doctrine, that God has prescribed no rules for the behaviour of persons in any other than the just relations of life, reflects no honor on His compassion. Why, even we "cut-throat" abolitionists are not so hard-hearted as to overlook the subjects of a relation, because it is wicked. Pitying, as we do, our poor colored brethren, who are forced into a wicked relation, which, by its very nature and terms, and not by its *abuses*, as you would say, has robbed them of their all—even we would, nevertheless, tell them to "resist not evil"—to be obedient unto their own masters"—not purloining, but showing all good fidelity." We would tell them, as God told the captive Jews, to "seek the peace of those, whither they are carried away captives, and to pray unto the Lord" for them: and our hope of their emancipation is not, as it is most slanderously and wickedly reported to be, in their deluging the South with blood: but, it is, to use again those sweet words of inspiration, that "in the

peace thereof they shall have peace." We do not communicate with the slave; but, if we did, we would teach him, that our hope of his liberation is grounded largely in his patience, and that, if he would have us drop his cause from our hands, he has but to take it into his own, and attempt to accomplish by violence, that which we seek to effect through the power of truth and love on the understanding and heart of his master.

Having disposed of your reasons in favor of the rightfulness of the relation of slaveholder and slave, I will offer a few reasons for believing that it is not rightful.

1st. My strongest reason is, that the great and comprehensive principles, and the whole genius and spirit of Christianity, are opposed to slavery.

2d. In the case of Pharoah and his Jewish slaves, God manifested his abhorrence of the relation of slavery. The fact that the slavery in this case was political, instead of domestic, and, therefore, of a milder type than that of Southern slavery, does not forbid my reasoning from the one form to the other. Indeed, if I may receive your declaration on this point, for the truth, I need not admit that the type of the slavery in question is milder than that of Southern slavery;—for you say, that "their (the Jews) condition was that of the most abject bondage or slavery." But the supposition that it is milder, being allowed to be correct, would only prove, that God's abhorrence of Southern bondage as much exceeds that which he expressed of Egyptian bondage, as the one system is more full than the other of oppression and cruelty.

We learn from the Bible, that it was not because of the *abuses* of the Egyptian system of bondage, but, because of its sinful nature, that God required its abolition. He did not command Pharaoh to cease from the *abuses* of the system, and to correct his administration of it, but to cease from the system itself. "I have heard," says God, "the groaning of the children of Israel, whom the Egyptians keep in bondage;"—not whom the Egyptians, availing themselves of their absolute power, compel to make brick without straw, and seek to waste and exterminate by the murder of their infant children;—but simply "whom the Egyptians keep in bondage." These hardships and outrages were but the leaves and branches. The root of the abomination was the bondage itself, the assertion of absolute and

slaveholding power by "a new king over Egypt, which knew not Joseph." In the next verse God says: "I will rid you"—not only from the burdens and abuses, as you would say, of bondage,—but "out of their (the Egyptians) bondage" itself—out of the relation in which the Egyptians oppressively and wickedly hold you.

God sends many messages to Pharaoh. In no one of them does He reprove him for the abuses of the relation into which he had forced the Jews. In no one of them is he called on to correct the evils which had grown out of that relation. But, in every one, does God go to the root of the evil, and command Pharaoh, "let my people go"—"let my people go, that they may serve me." The abolitionist is reproachfully called an "ultraist" and "an immediatist." It seems that God was both, when dealing with this royal slaveholder:—for He commanded Pharaoh, not to mitigate the bondage of the Israelites, but to deliver them from it—and that, too, immediately. The system of slavery is wicked in God's sight, and, therefore, did He require of Pharaoh its immediate abandonment. The phrase, "let my people go, that they may serve me," shows most strikingly one feature of resemblance between Egyptian and American slavery. Egyptian slavery did not allow its subjects to serve God, neither does American. The Egyptian master stood between his slave and their God: and how strikingly and awfully true is it, that the American master occupies the like position! Not only is the theory of slavery, the world over, in the face of God's declaration; "all souls are mine:" but American slaveholders have brought its practical character to respond so fully to its theory—they have succeeded, so well, in excluding the light and knowledge of God from the minds of their slaves—that they laugh at His claim to "all souls."

3d. Paul, in one of his letters to the Corinthian Church, tells servants—say slaves, to suit your views—if they may be free, to prefer freedom to bondage. But if it be the duty of slaves to prefer freedom to bondage, how clearly is it the correlative duty of the master to grant it to him! You interpret the Apostle's language, in this case, as I do; and it is not a little surprising, that, with your interpretation of it, you can still advocate slavery. You admit, that Paul says—I use your own words—"a state of freedom, on the whole, is the best." Now, it seems to me, that this admission leaves you without excuse, for defending slavery. You have virtually yielded the ground. And this admission is especially fatal to your strenuous endeavors

to class the relation of master and slave with the confessedly proper relations of life, and to show that, like these, it is approved of God. Would Paul say to the child, "a state of freedom" from parental government "on the whole is the best?" Would he say to the wife, "a state of freedom from your conjugal bonds" on the whole is the best? Would he say to the child and wife, in respect to this freedom, "use it rather?" Would he be thus guilty of attempting to annihilate the family relation?

Does any one wonder, that the Apostle did not use stronger language, in advising to a choice and enjoyment of freedom? It is similar to that which a pious, intelligent, and prudent abolitionist would now use under the like circumstances. Paul was endeavoring to make the slave contented with his hard lot, and to show him how unimportant is personal liberty, compared with liberation from spiritual bondage: and this explains why it is, that he spoke so briefly and moderately of the advantages of liberty. His advice to the slave to accept the boon of freedom, was a purely incidental remark: and we cannot infer from it, how great stress he would have laid on the evils of slavery, and on the blessings of liberty, in a discourse treating directly and mainly of those subjects. What I have previously said, however, shows that it would, probably, have been in vain, and worse than in vain, for him to have come out, on any occasion whatever, with an exposition of the evils of slavery.

On the thirty-second page of your book, you say, "Masters cannot, according to the command of Christ, render to their slaves that which is just and equal, if you abolish the relation; for, then they will cease to be masters." Abolish any of the relations for which regulations are provided "in the New Testament, and, in effect, you abolish some of the laws of Christ." But, we have just seen that Paul was in favor of abolishing the relation of master and slave; which, as you insist, is a relation for which regulations are provided in the New Testament. It is, therefore, irresistibly deduced from your own premises, that he was in favor of abolishing "the laws of Christ." It would require but little, if any, extension of your doctrine, to make it wrong to remove all the graven images out of a nation. For, in that event, the law of God against bowing down to them would have nothing left to act upon. It would thenceforth be inoperative.

4th. Another reason for believing, that the Apostles did not approve of the slavery modification of servitude, is found in Paul's injunction; "Remember them that are in bonds as bound with them." I admit, that it is probable that others as well as slaves, are referred to in this injunction: but it certainly is not probable, that others, to the exclusion of slaves, are referred to. But, even on the supposition that slaves are not referred to, but those only who are tenants of prisons, let me ask you which you would rather be—a slave or a prisoner, as Paul probably was when he wrote this injunction?—and whether your own description of the wretched condition of the Roman slave, does not prepare you to agree with me, that if the Apostle could ask sympathy for the prisoner, who, with all his deprivations, has still the protection of law, it is not much more due to the poor slave, who has no protection whatever against lawless tyranny and caprice!

But to proceed, if slaves are the only, or even a part of the persons referred to in the injunction, then you will observe, that the Apostle does not call for the exercise of sympathy towards those who are said to be suffering what you call the *abuses* of slavery; but towards those who are so unhappy as to be but the subjects of it—towards those who are "in bonds." The bare relation of a slave is itself so grievous, as to call for compassion towards those who bear it. Now, if this relation were to be classed with the approved relations of life, why should the Apostle have undertaken to awaken compassion for persons, simply because they were the subject, of it? He never asked for sympathy for persons, simply because they were parties to the relations of husband and wife, parent and child. It may be worthy of notice, that the injunction under consideration is found in Paul's letter to the Jewish Christians. This attempt to awaken pity in behalf of the slave, and to produce abhorrence of slavery, was made upon these, and not upon the Gentile Christians; because, perhaps, that they, who had always possessed the Oracles of God, could bear it; and they who had just come up out of the mire of heathenism, could not. If this explanation be just, it enforces my argument for ascribing to causes, other than the alleged sinfulness of the institution, the Apostle's omission to utter specific rebukes of slavery.

5th. Another reason for believing that the slavery modification of servitude should not be classed with the confessedly proper relations with which you class it, is the conclusive one, that it interferes with, and tends to subvert, and does actually subvert, these relations. The Apostles prescribe duties,

which are necessary to sustain these relations, and make them fruitful sources of happiness to the parties to them. Among these duties are the following: "Wives, submit yourselves to your own husbands, as it is fit in the Lord"—"Children, obey your parents"—"Husbands, dwell with them" (your wives). But slavery, where it does not make obedience to these commands utterly impossible, conditions it on the permission of usurpers, who have presumed to step between the laws of God and those on whom they are intended to bear. Slavery, not the law of God, practically determines whether husbands shall dwell with their wives: and an amount of anguish, which God alone can compute, testifies that slavery has thus determined, times without number, that husbands shall not dwell with their wives. A distinguished gentleman, who has been much at the South, is spending a little time in my family. He told me but this day, that he had frequently known the air filled with shrieks of anguish for a whole mile around the spot, where, under the hammer of the auctioneer, the members of a family were undergoing an endless separation from each other. It was but last week, that a poor fugitive reached a family, in which God's commands, "Hide the outcasts, betray not him that wandereth"—"Hide not thyself from thy own flesh"—are not a dead letter. The heaviest burden of his heart is, that he has not seen his wife for five years, and does not expect to see her again: his master, in Virginia, having sold him to a Georgian, and his wife to an inhabitant of the District of Columbia. Whilst the law of God requires wives to "submit themselves to their husbands, as it is fit in the Lord;" the law of slavery commands them, under the most terrific penalties, to submit to every conceivable form of violence, and the most loathsome pollution, "as it is fit" in the eyes of slaveholders—no small proportion of whom are, as a most natural fruit of slavery, abandoned to brutality and lust. The laws of South Carolina and Georgia make it an offence punishable with death, "if any slave shall presume to strike a white person." By the laws of Maryland and Kentucky, it is enacted "if any negro, mulatto, or Indian, bond or free, shall, at any time, lift his or her hand in opposition to any person, not being a negro or Indian, he or she shall, in the first-mentioned State, suffer the penalty of cropped ears; and, in the other, thirty-nine lashes on his or her bare back, well laid on, by order of the justice." In Louisiana there is a law—for the enactment of which, slavery is, of course, responsible—in these words: "Free people of color ought never to insult or strike white people, nor presume to conceive themselves equal to the whites: but, on the

contrary, they ought *to yield to them on every occasion*, and never speak or answer them but with respect, under the penalty of imprisonment, according to the nature of the offence." The following extract of a letter, written to me from the South, by a gentleman who still resides there, serves to show how true it is, that "on every occasion," the colored person must yield to the white, and, especially, if the white be clothed with the authority of an ambassador of Christ. "A negro was executed in Autauga Co., not long since, for the murder of his master. The latter, it seems, attempted to violate the wife of his slave in his presence, when the negro enraged, smote the wretch to the ground. And this master—this brute—this fiend—was a preacher of the gospel, in regular standing!" In a former part of this communication, I said enough to show, that slavery prevents children from complying with the command to obey their parents. But, in reply to what I have said of these outrages on the rights of husbands and wives, parents and children, you maintain, that they are no part of the system of slavery. Slaveholders, however, being themselves judges, they are a part of it, or, at least, are necessary to uphold it; else they would not by deliberate, solemn legislation, authorize them. But, be this as it may, it is abundantly proven, that slavery is, essentially and inevitably, at war with the sacred rights of the family state. Let me say, then, in conclusion under this head, that in whatever other company you put slavery, place it not in that of the just relations of husband and wife, parent and child. They can no more company with each other, than can fire with water. Their natures are not only totally opposite to, but destructive of, each other.

6th. The laws, to which you refer on the sixty-eighth page of your book, tend to prove, and, so far as your admission of the necessity of them goes, do prove, that the relation of slaveholder and slave does not deserve a place, in the class of innocent and proper relations. You there say, that the writings of "such great and good men as Wesley, Edwards, Porteus, Paley, Horsley, Scott, Clark, Wilberforce, Sharp, Clarkson, Fox, Johnson, and a host of as good if not equally great, men of later date," have made it necessary for the safety of the institution of slavery, to pass laws, forbidding millions of our countrymen to read. You should have, also, mentioned the horrid sanctions of these laws—stripes, imprisonment, and death. Now, these laws disable the persons on whom they bear, from fulfilling God's commandments, and, especially, His commandment to "search the Scriptures." They are,

therefore, wicked. What then, in its moral character, must be a relation, which, to sustain it, requires the aid of wicked laws?—and, how entirely out of place must it be, when you class it with those just relations of life, that, certainly, require none of the support, which, you admit, is indispensable to the preservation of the relation of slaveholder and slave! It is true, that you attempt to justify the enactment of the laws in question, by the occasions which you say led to it. But, every law forbidding what God requires, is a wicked law—under whatever pretexts, or for whatever purposes, it may have been enacted. Let the occasions which lead to a wicked measure be what they may, the wickedness of the measure is still sufficient to condemn it.

In the case before us, we see how differently different persons are affected by the same fact. Whilst the stand taken against slavery by Wesley, Edwards, and the other choice spirits you enumerate, serves but to inspire you with concern for its safety, it would, of itself, and without knowing their reasons for it, be well nigh enough to destroy my confidence in the institution. Let me ask you, Sir, whether it would not be more reasonable for those, who are so industriously engaged in insulating the system of American slavery, and shrouding it with darkness, to find less fault with the bright and burning light which the writings of the wisest and best men pour upon it, and more with the system which "hateth the light, neither cometh to the light."

You would have your readers believe, that the blessings of education are to be withheld from your slaves—only "until the storm shall be overblown," and that you hope that "Satan's being let loose will be but for a little season." I say nothing more about the last expression, than that I most sincerely desire you may penitently regret having attributed the present holy excitement against slavery to the influences of Satan. By "the storm" you, doubtless, mean the excitement produced by the publications and efforts of the American Anti-Slavery Society. Now, I will not suppose that you meant to deceive your readers on this point. You are, nevertheless, inexcusable for using language so strikingly calculated to lead them into error. It is not yet three years since that Society was organized: but the statute books of some of the slave States contain laws, forbidding the instruction of slaves in reading, which were enacted long before you and I were born. As long ago as the year 1740, South Carolina passed a law, forbidding to teach slaves to

write. Georgia did so in 1770. In the year 1800, thirty-three years before "the storm" of the Anti-Slavery Society began to blow, South Carolina passed a law, forbidding "assemblies of slaves, free negroes, &c., for the purpose of mental instruction." In the Revised Code of Virginia of 1819, is a law similar to that last mentioned. In the year 1818, the city of Savannah forbade by an ordinance, the instruction of all persons of color, either free or bond, in reading and writing. I need not specify any more of these man-crushing, soul-killing, God-defying laws;—nor need I refer again to the shocking penalties annexed to the violation of most of them. I conclude my remarks under this head, with the advice, that, in the next edition of your book, you do not assign the anti-slavery excitement, which is now spreading over our land, as the occasion of the passage of the laws in question.

7th. The only other reason I will mention for believing, that the slavery modification of servitude is not approved of God, is, that it has never been known *to work well*—never been known to promote man's happiness or God's glory. Wickedness and wretchedness are, so uniformly, the product of slavery, that they must be looked upon, not as its abuses, but as its legitimate fruits. Whilst all admit, that the relations of the family state are, notwithstanding their frequent perversions, full of blessings to the world; and that, but for them, the world would be nothing better than one scene of pollution and wo;—to what history of slavery will you refer me, for proof of its beneficent operation? Will it be to the Bible history of Egyptian slavery? No—for that informs us of the exceeding wickedness and wretchedness of Egyptian slavery. Will it be to the history of Greek and Roman slavery? No—for your own book acknowledges its unutterable horrors and abominations. Will you refer me to the history of the West Indies for proofs of the happy fruits of slavery? Not until the earth is no more, will its polluted and bloody pages cease to testify against slavery. And, when we have come down to American slavery, you will not even open the book which records such facts, as that its subjects are forbidden to be joined in wedlock, and to read the Bible. No—you will not presume to look for a single evidence of the benign influences of a system, where, by the admission of your own ecclesiastical bodies, it has turned millions of men into heathen. I say nothing now of your beautiful and harmless theories of slavery:—but this I say, that when you look upon slavery as it has

existed, or now exists, either amidst the darkness of Mahommedanism or the light of Christianity, you dare not, as you hope for the Divine favor, say that it is a Heaven-descended institution; and that, notwithstanding it is like Ezekiel's roll, "written within and without with lamentations and mourning and wo," it, nevertheless, bears the mark of being a boon from God to man.

Having disposed of your "strong reasons" for the position, that the New Testament authorizes slavery, I proceed to consider your remaining reasons for it.

Because it does not appear, that our Saviour and the Apostle Peter told certain centurions, who, for the sake of the argument, I will admit were slaveholders, that slaveholding is sinful, you argue, and most confidently too, that it is not sinful. But, it does not appear, that the Saviour and the Apostle charged *any* sinful practices upon them. Then, by your logic, all their other practices, as well as their slaveholding, were innocent, and these Roman soldiers were literally perfect.—Again; how do you know that the Saviour and the Apostle did not tell them, on the occasion you refer to, that they were sinners for being slaveholders? The fact, that the Bible does not inform us that they told them so, does not prove that they did not; much less does it prove, that they did not tell them so subsequently to their first interview with them. And again, the admission that they did not specifically attack slavery, at any of their interviews with the centurions, or on any other occasions whatever, would not justify the inference, that it is sinless. I need not repeat the reasoning which makes the truth of this remark apparent.

You refer to the Saviour's declaration of the unequalled faith of one of these centurions, with the view of making it appear that a person of so great faith could not be a great sinner. But, how long had he exercised this, or, indeed, any Christian faith? That he was on good terms with the Jews, and had built them a synagogue, is quite as strong evidence, that he had not, as that he had, previously to that time, believed in Jesus:—and, if he had not, then his faith, however strong, and his conversion, however decided, are nothing towards proving that slavery is sinless.

It is evident, that the Apostle was sent to Cornelius for the single purpose of inculcating the doctrine of the remission of sin, through faith in Christ.

I proceed to examine another of your arguments. From Paul's declaration to the Elders at Miletus, "I have not shunned to declare unto you all the counsel of God," taken in connexion with the fact, that the Bible does not inform us that he spoke to them of slaveholding, you confidently and exultingly infer that it is innocent. Here, again, you prove too much, and therefore, prove nothing. It does not appear that he specified a hundredth part of their duties. If he did not tell them to abstain from slaveholding, neither did he tell them to abstain from games and theatres. But, his silence about slaveholding proves to your mind its sinlessness: equally then should his silence about games and theatres satisfy you of their innocence. Two radical errors run through a great part of your book. They are, that the Apostle gave specific instructions concerning all duties, and that the Bible contains these instructions. But, for these errors, your book would be far less objectionable than it is. I might, perhaps, rather say, that but for these, you could not have made up your book.

And now, since Paul's address to the Elders has been employed by you in behalf of slavery, allow me to try its virtue against slavery: and, if it should turn out that you are slain with your own weapon, it will not be the first time that temerity has met with such a fate. I admit, that the Apostle does not tell the Elders of any wrong thing which they had done; but there are some wrong things from which he had himself abstained, and some right things which he had himself done, of which he does tell them. He tells them, for instance, that he had not been guilty of coveting what was another's, and also, that with his own hands he had ministered to his own necessities and those of others: and he further tells them, that they ought to copy his example, and labor, as he had done, "to support the weak." Think you, sir, from this language that Paul was a slaveholder—and, that his example was such, as to keep lazy, luxurious slaveholders in countenance? The slaveholder is guilty of coveting, not only all a man has, but even the man himself. The slaveholder will not only not labor with his hands to supply the wants of others, and "to support the weak;" but he makes others labor to supply his wants:—yes, makes them labor unpaid—night and day—in storm, as well as in sunshine—under the lash—bleeding—groaning—dying—and all this, not to minister to his actual needs, but to his luxuriousness and sensuality.

You ridicule the idea of the abolition of slavery, because it would make the slaveholder "so poor, as to oblige him to take hold of the maul and wedge himself—he must catch, curry, and saddle his own horse—he must black his own brogans (for he will not be able to buy boots)—his wife must go herself to the wash-tub—take hold of the scrubbing broom, wash the pots, and cook all that she and her rail-mauler will eat." If Paul were, as you judge he was, opposed to the abolition of slavery, it is at least certain, from what he says of the character of his life in his address to the Elders, that his opposition did not spring from such considerations as array you against it. In his estimation, manual labor was honorable. In a slaveholding community, it is degrading. It is so in your own judgment, or you would not hold up to ridicule those humble employments, which reflect disgrace, only where the moral atmosphere is tainted by slavery. That the pernicious influences of slavery in this respect are felt more or less, in every part of this guilty nation, is but too true. I put it to your candor, sir, whether the obvious fact, that slavery makes the honest labor of the hands disreputable, is not a weighty argument against the supposition that God approves it? I put it to your candor, sir, whether the fact, which you, at least, cannot gainsay, that slavery makes even ministers of the gospel despise the employments of seven-eighths of the human family, and, consequently, the humble classes, who labor in them—I put it to your candor, whether the institution, which breeds such contempt of your fellow-men and fellow Christians, must not be offensive to Him, who commands us to "Honor all men, and love the brotherhood?"

In another argument, you attempt to show, that Paul's letter to Philemon justifies slaveholding, and also the apprehension and return of fugitive slaves. After having recited the Resolution of the Chilicothe Presbytery—"that to apprehend a slave who is endeavoring to escape from slavery, with a view to restore him to his master, is a direct violation of the Divine law, and, when committed by a member of the church, ought to subject him to censure"—you undertake to make your readers believe, that Paul's sending Onesimus to Philemon, is a case coming fairly within the purview of the resolution. Let us see if it does. A man by the name of Onesimus was converted to Christianity, under Paul's ministry at Rome. Paul learnt that he had formerly been a servant—say a slave—of Philemon, who was a "dearly beloved" Christian: and believing that his return to his old master would

promote the cause of Christ, and beautifully exemplify its power, he advised him to return to him. He followed the Apostle's advice and returned. Now, from this example, you attempt to derive a justification for "a member of a Church" to be engaged in forcibly apprehending and restoring fugitive slaves. I say forcibly—as the apprehension and return, referred to in the Resolution, are clearly forcible. I cannot refrain, sir, from saying, that you greatly wrong the memory of that blessed Apostle of the Lord Jesus, in construing his writings to authorize such violence upon the persons and rights of men. And greatly, also, do you wrong the Resolution in question, by your endeavor to array the Bible against it. The Resolution is right; it is noble—it denotes in the source whence it emanated, a proper sense of the rights and dignity of man. It is all the better for being marked with an honorable contempt of wicked and heaven-daring laws. May I, having the suspicion, or even the certain knowledge, that my fellow man was once held in slavery, and is still *legally* a slave, seize upon him and reduce him again to slavery? May I thus deal with a guiltless and unaccused brother? Human laws may, it is true, bear me out in this man-stealing, which is not less flagrant than that committed on the coast of Africa:—but, says the Great Law-giver, "The word that I have spoken, the same shall judge him in the last day:"—and, it is a part of this "word," that "he that stealeth a man shall surely be put to death." In that last day, the mayors, recorders, sheriffs, and others, who have been engaged, whether in their official or individual capacity, in slave-catching and man-stealing, will find human laws but a flimsy protection against the wrath of Him, who judges his creatures by his own and not by human laws. In that "last day," all who have had a part, and have not repented of it, in the sin of treating man as property; all, I say, whether slaveholders or their official or unofficial assistants, the drivers upon their plantations, or their drivers in the free States—all, who have been guilty of throwing God's "image" into the same class with the brutes of the field—will find, that He is the avenger of his poorest, meanest ones—and that the crime of transmuting His image into property, is but aggravated by the fact and the plea that it was committed under the sanction of human laws.

But, to return—wherein does the letter of Paul to Philemon justify slaveholding? What evidence does it contain, that Philemon was a slaveholder at the time it was written? He, who had been his slave "in time

past," had, very probably, escaped before Philemon's conversion to Christ. This "time past," may have been a *long* "time past." The word in the original, which is translated "in time past," does not forbid the supposition. Indeed, it is the same word, which the Apostle uses in the thirteenth verse of the first chapter of Galatians; and there it denotes a *long* "time past"—as much as from fifteen to eighteen years. Besides, Onesimus' escape and return both favor the supposition, that it was between the two events that Philemon's conversion took place. On the one hand, he fled to escape from the cruelties of an unconverted master; on the other, he was encouraged to follow the Apostle's advice, by the consideration, that on his return to Philemon he should not have to encounter again the unreasonableness and rage of a heathen, but that he should meet with the justice and tenderness of a Christian—qualities, with the existence and value of which, he had now come to an experimental acquaintance. Again, to show that the letter in question does not justify slaveholding—in what character was it, that Paul sent Onesimus to Philemon? Was it in that of a slave? Far from it. It was, in that of "a brother beloved," as is evident from his injunction to Philemon to "receive him forever—not now as a *slave*, but above a *slave*—a brother beloved."

It is worthy of remark, that Paul's message to Philemon, shows, not only that he himself was not in favor of slaveholding, but, that he believed the gospel had wrought such an entire change on this subject, in the heart of Philemon, that Onesimus would find on his return to him, the tyrant and the slaveholder sunk in the brother and the Christian.

Paul's course in relation to Onesimus was such, as an abolitionist would deem it proper to adopt, under the like circumstances. If a fugitive slave, who had become a dear child of God, were near me, and, if I knew that his once cruel master had also become a "dearly beloved" Christian; and if, therefore, I had reason to believe, as Paul had, in the case of Philemon, that he would "receive him forever—not now as a *slave*, but above a *slave*, a brother beloved," I would advise him to revisit his old master, provided he could do so, without interference and violence from others. Such interference and violence did not threaten Onesimus in his return to Philemon. He was not in danger of being taken up, imprisoned, and sold for his jail fees, as a returning Onesimus would be in parts of this nation.

On the 72d page of your book, you utter sentiments, which, I trust, all your readers will agree, are unworthy of a man, a republican, and a Christian. You there endeavor again to make it appear, that it is not the *relation* of master and slave, but only the abuse of it, which is to be objected to.—You say: "Independence is a charming idea, especially to Americans: but what gives it the charm? Is it the thing in itself? or is it because it is a release from the control of a bad master? Had Great Britain been a kind master, our ancestors were willing to remain her slaves." In reply to this I would say, that it must be a base spirit which does not prize "independence" for its own sake, whatever privation and suffering may attend it; and much more base must be that spirit, which can exchange that "independence" for a state of slavish subjection—even though that state abound in all sensual gratifications. To talk of "a kind master" is to talk of a blessing for a dog, but not for a man, who is made to "call no man master." Were the people of this nation like yourself, they would soon exchange their blood-bought liberties for subjection to any despot who would promise them enough to eat, drink, and wear. But, I trust, that we at the North are "made of sterner stuff." They, who make slaves of others, can more easily become slaves themselves: for, in their aggressions upon others, they have despised and trampled under foot those great, eternal principles of right, which *not only* constitute the bulwark of the general freedom; but his respect for which is indispensable to every man's valuation and protection of his individual liberties. This train of thought associates with itself in my mind, the following passage in an admirable speech delivered by the celebrated William Pinckney, in the Maryland House of Delegates in 1789. Such a speech, made at the present time in a slave State, would probably cost the life of him who should make it; nor could it be delivered in a free States at any less sacrifice, certainly, than that of the reputation of the orator. What a retrograde movement has liberty made in this country in the last fifty years!

"Whilst a majority of your citizens are accustomed to rule with the authority of despots, within particular limits—while your youths are reared in the habit of thinking that the great rights of human nature are not so sacred, but they may with innocence be trampled on, can it be expected, that the public mind should glow with that generous ardor in the cause of freedom, which can alone save a government, like ours, from the lurking demon of usurpation? Do you not dread the contamination of principle? Have you no

alarms for the continuance of that spirit, which once conducted us to victory and independence, when the talons of power were unclasped for our destruction? Have you no apprehension left, that when the votaries of freedom sacrifice also at the gloomy altars of slavery, they will, at length, become apostates from them for ever? For my own part, I have no hope, that the stream of general liberty will flow for ever, unpolluted, through the foul mire of partial bondage, or that they, who have been habituated to lord it over others, will not be base enough, in time, to let others lord it over them. If they resist, it will be the struggle of *pride* and *selfishness*, not of *principle*."

Had Edmund Burke known slaveholders as well as Mr. Pinckney knew them, he would not have pronounced his celebrated eulogium on their love of liberty;—he would not have ascribed to them any love of liberty, but the spurious kind which the other orator, impliedly, ascribes to them—that which "pride and selfishness" beget and foster. Genuine love of liberty, as Mr. Pinckney clearly saw, springs from "principle," and is found no where but in the hearts of those who respect the liberties and the rights of others.

I had reason, in a former part of this communication, to charge some of the sentiments of Professor Hodge with being alike reproachful to the memory of our fathers, and pernicious to the cause of civil liberty. There are sentiments on the 72d page of your book, obnoxious to the like charge. If political "independence"—if a free government—be the poor thing—the illusive image of an American brain—which you sneeringly represent it, we owe little thanks to those who purchased it for us, even though they purchased it with their blood; and little pains need we take in that case to preserve it. When will the people of the Northern States see, that the doctrines now put forth so industriously to maintain slavery, are rapidly undermining liberty?

On the 43d page of your book you also evince your low estimate of man's rights and dues. You there say, "the fact that the planters of Mississippi and Louisiana, even while they have to pay from twenty to twenty-five dollars per barrel for pork the present season, afford to their slaves from three to four and a half pounds per week, does not show, that they are neglectful in rendering to their slaves that which is just and equal." If men had only an animal, and not a spiritual and immortal nature also, it might do for you to

represent them as well provided for, if but pork enough were flung to them. How preposterous to tell us, that God approves a system which brings a man, as slavery seems to have brought you, to regard his fellow man as a mere animal!

I am happy to find that you are not all wrong. You are no "gradualist." You are not inconsistent, like those who admit that slavery is sinful, and yet refuse to treat it as sinful. I hope our Northern "gradualists" will profit by the following passage in your book: "If I were convinced by that word (the Bible) that slavery is itself a sin, I trust that, let it cost what it would, I should be an abolitionist, because there is no truth, more clear to my mind, than that the gospel requires an *immediate* abandonment of sin."

You have no doubt of your right to hold your fellow men, as slaves. I wish you had given your readers more fully your views of the origin of this right. I judge from what you say, that you trace it back to the curse pronounced by Noah upon Canaan. But was that curse to know no end? Were Canaan's posterity to endure the entailment of its disabilities and woes, until the end of time? Was Divine mercy never to stay the desolating waves of this curse? Was their harsh and angry roar to reach, even into the gospel dispensation, and to mingle discordantly with the songs of "peace on earth and good will to men?" Was the captivity of Canaan's race to be even stronger than He, who came "to bind up the broken-hearted, and proclaim liberty to the captives?" But who were Canaan and his descendants? You speak of them, and with singular unfairness, I think, as "*the* posterity of Ham, from whom, it is supposed, sprang the Africans." They were, it is true, a part of Ham's posterity; but to call them "*the* posterity of Ham," is to speak as though he had no other child than Canaan. The fifteenth to nineteenth verses of the tenth chapter of Genesis teach us, beyond all question, that Canaan's descendants inhabited the land of Canaan and adjacent territory, and that this land is identical with the country afterwards occupied by the Jews, and known, in modern times, by the name of Palestine, or the Holy Land. Therefore, however true it may be, that a portion of Ham's posterity settled in Africa, we not only have no evidence that it was the portion cursed, but we have conclusive evidence that it was not.

But, was it a state of slavery to which Canaanites were doomed? I will suppose, for a moment, that it was: and, then, how does it appear right to

enslave them? The curse in question is prophecy. Now prophecy does not say what ought to come to pass: nor does it say, that they who have an agency in the production of the foretold event, will be innocent in that agency. If the prediction of an event justifies those who are instrumental in producing it, then was Judas innocent in betraying our Saviour. "It must needs be that offences come, but wo to that man by whom the offence cometh." Prophecy simply tells what will come to pass. The question, whether it was proper to enslave Canaanites, depends for its solution not on the curse or prophecy in question. If the measure were in conformity with the general morality of the Bible, then it was proper. Was it in conformity with it? It was not. The justice, equity and mercy which were, agreeable to the Divine command, to characterize the dealings of the Jews with each other, are in such conformity, and these are all violated by slavery. If those dealings were all based on the general morality of the Bible, as they certainly were, then slavery, which, in its moral character, is completely opposite to them, cannot rest on that morality. If that morality did not permit the Jews to enslave Canaanites, how came they to enslave them? You will say, that they had special authority from God to do so, in the words, "Both thy bondmen and thy bondmaids, which thou shalt have, shall be of the heathen that are around about you; of them shall ye buy bondmen and bondmaids." Well, I will admit that God did in one instance, and that He may have done so in others, give special authority to the Jews to do that, which, without such authority, would have been palpably and grossly immoral. He required them to exterminate some of the tribes of the Canaanites. He may have required them to bring other Heathens under a form of servitude violative of the general morality of his word.—Of course, no blame attaches to the execution of such commands. When He specially deposes us to kill for Him, we are as innocent in the agency, notwithstanding the general law, "thou shalt not kill," as is the earthquake or thunderbolt, when commissioned to destroy. Samuel was as innocent in hewing "Agag in pieces," as is the tree that falls upon the traveler. It may be remarked, in this connexion, that the fact that God gave a special statute to destroy some of the tribes of the Canaanites, argues the contrariety of the thing required to the morality of the Bible. It argues, that this morality would not have secured the accomplishment of what was required by the statute. Indeed, it is probable that it was, sometimes, under the influence of the tenderness and mercy inculcated by this morality, that the Jews were

guilty of going counter to the special statute in question, and sparing the devoted Canaanites, as in the instance when they "spared Agag." We might reason, similarly to show that a special statute, if indeed there were such a one, authorizing the Jews to compel the Heathen to serve them, argues that compulsory service is contrary to fundamental morality. We will suppose that God did; in the special statute referred to, clothe the Jews with power to enslave Heathens, and now let me ask you, whether it is by this same statute to enslave, that you justify your neighbors and yourself for enslaving your fellow men? But this is a special statute, conferring a power on the Jews only—a power too, not to enslave whomsoever they could; but only a specified portion of the human family, and this portion, as we have seen, of a stock, other than that from which you have obtained your slaves. If the special statutes, by which God clothed the Jews with peculiar powers, may be construed to clothe you with similar powers, then, inasmuch as they were authorized and required to kill Canaanites, you may hunt up for destruction the straggling descendants of such of the devoted ones, as escaped the sword of the Jews. Or, to make a different interpretation of your rights, under this supposition; since the statute in question authorized and required the Jews to kill the heathen, within the borders of what was properly the Jews' country, then you are also authorized and required to kill the heathens within the limits of your country:—and these are not wanting, if the testimony of your ecclesiastical bodies, before referred to, can be relied on; and, if it be as they say, that the millions of the poor colored brethren in the midst of you are made heathens by the operation of the system, to which, with unparalleled wickedness, they are subjected.

If then, neither Noah's curse, nor the special statute in question, authorize you to enslave your fellow men, there is, probably, but one ground on which you will contend for authority to do so—and this is the ground of the general morality of the Christian religion—of the general principles of right and duty, in the word of God. Do you find your authority on this ground? If you do, then, manifestly, you have a right to enslave me, and I a right to enslave you, and every man has a right to enslave whomsoever he can;—a right as perfect, as is the right to do good to one another. Indeed, the enslavement of each other would, under this construction of duty, *be* the doing of good to one another. Think you, sir, that the universal exercise of this right would promote the fulfilment of the "new commandment that ye

love one another?" Think you, it would be the harbinger of millennial peace and blessedness? Or, think you not, rather, that it would fully and frightfully realize the prophet's declaration: "They all lie in wait for blood: they hunt every man his neighbor with a net."

If any people have a right to enslave their fellow men, it must be the Jews, if they once had it. But if they ever had it, it ceased, when all their peculiar rights ceased. In respect to rights from the Most High, they are now on the same footing with other races of men. When "the vail of the temple was rent in twain from the top to the bottom," then that distinction from the Gentile, in which the Jew had gloried, ceased, and the partition wall between them was prostrate for ever. The Jew, as well as the Gentile, was never more to depart from the general morality of the Bible. He was never again to be under any special statutes, whose requirements should bring him into collision with that morality: He was no more to confine his sympathies and friendships within the narrow range of the twelve tribes: but every son and daughter of Adam were thenceforth entitled to claim from him the heart and hand of a brother. "Under the glorious dispensation of the gospel," says the immortal Granville Sharp, "we are absolutely bound to consider ourselves as citizens of the world; every man whatever, without any partial distinction of nation, distance, or complexion, must necessarily be esteemed our neighbor and our brother; and we are absolutely bound, in Christian duty, to entertain a disposition towards all mankind, as charitable and benevolent, at least, as that which was required of the Jews under the law towards their brethren; and, consequently, it is absolutely unlawful for those who call themselves Christians, to exact of their brethren (I mean their brethren of the universe) a more burthensome service, than that to which the Jews were limited with respect to their brethren of the house of Israel; and the slavery or involuntary bondage of a brother Israelite was absolutely forbid."

It occurs to me, that after all which has been said to satisfy you, that compulsory servitude, if such there were among the Jews, cannot properly be pleaded in justification of yours; a question may still be floating in your mind whether, if God directed his chosen people to enslave the Heathen, slavery should not be regarded as a good system of servitude? Just as pertinently may you ask, whether that is not a good system of servitude, which is found in some of our state prisons. Punishment probably—certainly not labor—is the leading object in the one case as well as the

other: and the labor of the bondman in the one, as well as of the convict in the other, constitutes but a subordinate consideration. To suppose that God would, with every consideration out of view, but that of having the best relation of employer and laborer, make choice of slavery—to suppose that He believes that this state of servitude operates most beneficially, both for the master and the servant—is a high impeachment of the Divine wisdom and goodness. But thus guilty are you, if you are unwilling to believe, that, if He chose the severe servitude in question, He chose it for the punishment of his enemies, or from some consideration, other than its suitableness for the ordinary purposes of the relation of master and servant.

But it has been for the sake of argument only, that I have admitted that God authorized the Jews to enslave the heathen. I now totally deny that He did so. You will, of course, consent that if He did so, it was in a special statute, as was the case when He authorized them to exterminate other heathen: and you will as readily consent that He enacted the statutes, in both instances, with the view of punishing his enemies. Now, in killing the Canaanites, the Jew was constituted, not the owner of his devoted fellow man, but simply the executioner of God's vengeance: and evidently, such and no other was his character when he was reducing the Canaanite to involuntary servitude—that he did so reduce him, and was commissioned by God to do so, is the supposition we make for the sake of argument. Had the Jews been authorized by God to shut up in dungeons for life those of the heathen, whom they were directed to have for bondmen and bondmaids, you would not claim, that they, any more than sheriffs and jailers in our day, are to be considered in the light of owners of the persons in their charge. Much less then, can the Jews be considered as the owners of any person whom they held in servitude: for, however severe the type of that servitude, the liberty of its subject was not restricted, as was that of the prisoners in question:—most certainly, the power asserted over him is not to be compared in extent with that asserted by the Jew over the Canaanite, whom he slew;—a case in which he was, indisputably, but the executioner of the Divine wrath. The Canaanite, whether devoted to a violent death or to an involuntary servitude, still remained the property of God: and God no more gave him up to be the property of the executioner of his wrath, than the people of the State of New York give up the offender against public justice to be the property of the ministers of that justice. God never suspends the

accountability of his rational creatures to himself: and his rights to them, He never transfers to others. He could not do so consistently with his attributes, and his indissoluble relations to man. But slavery claims, that its subjects are the property of man. It claims to turn them into mere chattels, and to make them as void of responsibility to God, as other chattels. Slavery, in a word, claims to push from his throne the Supreme Being, who declares, "all souls are mine." That it does not succeed in getting its victim out of God's hand, and in unmanning and *chattelizing* him—that God's hold upon him remains unbroken, and that those upward tendencies of the soul, which distinguish man from the brute, are not yet entirely crushed in him—is no evidence in favor of its nature:—it simply proves, that its power is not equal to its purposes. We see, then, that the Jews—if it be true that they reduced their fellow men to involuntary servitude, and did so as the Heaven-appointed ministers of God's justice,—are not to be charged with slaveholding for it. There may be involuntary servitude where there is no slavery. The essential and distinguishing feature of slavery is its reduction of man to property—to a thing. A tenant of one of our state prisons is under a sentence of "hard labor for life." But he is not a slave. That is, he is not the *thing* which slavery would mark its subject. He is still a man. Offended justice has placed him in his present circumstances, because he is a man: and, it is because he is a *man* and not a *thing*—a responsible, and not an irresponsible being, that he must continue in his present trials and sufferings.

God's commandments to the Jews, respecting servants and strangers, show that He not only did not authorize them to set up the claim of property in their fellow men, but that He most carefully guarded against such exercises of power, as might lead to the assumption of a claim so wrongful to Himself. Some of these commandments I will bring to your notice. They show that whatever was the form of servitude under which God allowed the Jews to hold the heathen, it was not slavery. Indeed, if all of the Word of God which bears on this point were cited and duly explained, it would, perhaps, appear that He allowed no involuntary servitude whatever amongst the Jews. I give no opinion whether he allowed it or not. There are strong arguments which go to show, that He did not allow it; and with these arguments the public will soon be made more extensively acquainted. It is

understood, that the next number of the Anti-Slavery Examiner will be filled with them.

1st. So galling are the bonds of Southern slavery, that it could not live a year under the operation of a law forbidding the restoration of fugitive servants to their masters. How few of the discontented subjects of this oppressive servitude would agree with Hamlet, that it is better to

—"bear those ills we have,
Than fly to others that we know not of."

What a running there would be from the slave States to the free!—from one slave State to another!—from one plantation to another! Now, such a law—a solemn commandment of God—many writers on slavery are of the opinion, perhaps too confident opinion, was in force in the Jewish nation (Deut. xxiii, 15); and yet the system of servitude on which it bore, and which you cite as the pattern and authority for your own, lived in spite of it. How could it? Manifestly, because its genius was wholly unlike that of Southern slavery; and because its rigors and wrongs, if rigors and wrongs there were in it, bear no comparison to those which characterize Southern slavery; and which would impel nine-tenths of its adult subjects to fly from their homes, did they but know that they would not be obliged to return to them. When Southern slaveholders shall cease to scour the land for fugitive servants, and to hunt them with guns and dogs, and to imprison, and scourge, and kill them;—when, in a word, they shall subject to the bearing of such a law as that referred to their system of servitude, then we shall begin to think that they are sincere in likening it to the systems which existed among the Jews. The law, enacted in Virginia in 1705, authorizing any two justices of the peace "by proclamation to *outlaw* runaways, who might thereafter be killed and destroyed by any person whatsoever, by such ways and means as he might think fit, without accusation or impeachment of any crime for so doing," besides that it justifies what I have just said about hunting fugitive servants, shows, 1st. That the American Anti-Slavery Society is of too recent an origin to be the occasion, as slaveholders and their apologists would have us believe, of all the cruel laws enacted at the South. 2d. That Southern slaveholders would be very unwilling to have their system come under the operation of such a law as that which allowed

the Jewish servant to change his master. 3d. That they are monsters, indeed, into which men may be turned by their possession of absolute power.

You, perhaps, suppose, (and I frankly admit to you, that there is some room for the supposition,) that the servants referred to in the 15th and 16th verses of the 23d chapter of Deuteronomy, were such as had escaped from foreign countries to the country of the Jews. But, would this view of the matter help you? By taking it, would you not expose yourself to be most pertinently and embarrassingly asked, for what purpose these servants fled to a strange and most odious people?—and would not your candid reply necessarily be, that it was to escape from the galling chains of slavery, to a far-famed milder type of servitude?—from Gentile oppression, to a land in which human rights were protected by Divine laws? But, as I have previously intimated, I have not the strongest confidence in the anti-slavery argument, so frequently drawn from this passage of the Bible. I am not sure that a Jewish servant is referred to: nor that on the supposition of his being a foreigner, the servant came under any form of servitude when entering the land of the Jews. Before leaving the topic, however, let me remark, that the passage, under any construction of it, makes against Southern slavery. Admit that the fugitive servant was a foreigner, and that he was not reduced to servitude on coming among the Jews, let me ask you whether the law in question, under this view of it, would be tolerated by the spirit of Southern slavery?—and whether, before obedience would be rendered to it, you would not need to have a different type of servitude, in the place of slavery? You would—I know you would—for you have been put to the trial. When, by a happy providence, a vessel was driven, the last year, to a West India island, and the chains of the poor slaves with which it was filled fell from around them, under freedom's magic power, the exasperated South was ready to go to war with Great Britain. *Then*, the law against delivering up foreign servants to their masters was not relished by you. The given case comes most strikingly within the supposed policy of this law. The Gentile was to be permitted to remain in the land to which he had fled, and where he would have advantages for becoming acquainted with the God of the Bible. Such advantages are they enjoying who escaped from the confessed heathenism of Southern slavery to the island in question. They are now taught to read that "Book of life," which before, they were forbidden to read. But again, suppose a slave were to escape from a West India island into the Southern

States—would you, with your "domestic institutions," of which you are so jealous, render obedience to this Divine law? No; you would subject him *for ever* to a servitude more severe than that, from which he had escaped. Indeed, if a *freeman* come within a certain portion of our Southern country, and be so unhappy as to bear a physical resemblance to the slave, he will be punished for that resemblance, by imprisonment, and even by a reduction to slavery.

2d. Southern slaveholders, who, by their laws, own men as absolutely as they own cattle, would have it believed, that Jewish masters thus owned their fellow-men. If they did, why was there so wide a difference between the commandment respecting the stray man, and that respecting the stray ox or ass? The man was not, but the beasts were, to be returned; and that too, even though their owner was the enemy of him who met them. (Ex. 23. 4.) I repeat the question;—why this difference? The only answer is, because God made the brute to be the *property* of man; but He never gave us our noble nature for such degradation. Man's title deed, in the eighth Psalm, extends his right of property to the inanimate and brute creation only—not to the flesh and bones and spirit of his fellow-man.

3d. The very different penalties annexed to the crime of stealing a man, and to that of stealing a thing, shows the eternal and infinite difference which God has established between a man and property. The stealing of a man was *surely* to be punished with death; whilst mere property was allowed to atone for the offence of stealing property.

4th. Who, if not the slave, can be said to be vexed and oppressed! But God's command to his people was, that they should neither "vex a stranger, nor oppress him."

5th. Such is the nature of American slavery, that not even its warmest friends would claim that it could recover itself after such a "year of jubilee" as God appointed. One such general delivery of its victims would be for ever fatal to it. I am aware that you deny that all the servants of the Jews shared in the blessings of the "year of jubilee." But let me ask you, whether if one third or one half of your servants were discharged from servitude every fiftieth year—and still more, whether if a considerable proportion of them were thus discharged every sixth year—the remainder would not be

fearfully discontented? Southern masters believe, that their only safety consists in keeping down the discontent of their servants. Hence their anxious care to withhold from them the knowledge of human rights. Hence the abolitionist who is caught in a slave state, must be whipped or put to death. If there were a class of servants amongst the Jews, who could bear to see all their fellow servants go free, whilst they themselves were retained in bondage, then that bondage was of a kind very different from what you suppose it to have been. Had its subjects worn the galling chains of American slavery, they would have struggled with bloody desperation for the deliverance which they saw accorded to others.

I scarcely need say, that the Hebrew words rendered "bondmen" and "bondmaids," do not, in themselves considered, and independently of the connexion in which they are used, any more than the Greek words *doulos* and *doule*, denote a particular kind of servant. If the servant was a slave, because he was called by the Hebrew word rendered "bondman," then was Jacob a slave also:—and even still greater absurdities could be deduced from the position.

I promised, in a former part of this communication, to give you my reasons for denying that you are at liberty to plead in behalf of slavery, the example of any compulsory servitude in which Jews may have held foreigners. My promise is now fulfilled, and I trust that the reasons are such as not to admit of an answer.

Driven, as you now are, from every other conceivable defence of slaveholding it may be (though I must hope better things of you), that you will fly to the ground taken by the wicked multitude—that there is authority in the laws of man for being a slaveholder. But, not only is the sin of your holding slaves undiminished by the consideration, that they are held under human laws; but, your claiming to hold them under such laws, makes you guilty of an additional sin, which, if measured by its pernicious consequences to others, is by no means inconsiderable. The truth of these two positions is apparent from the following considerations.

1st. There is no valid excuse to be found, either in man's laws or any where else, for transgressing God's laws. Whatever may be thought, or said to the

contrary, it still remains, and for ever will remain true, that under all circumstances, "sin is the transgression of the (Divine) law."

2d. In every instance in which a commandment of God is transgressed, under the cover and plea of a human law, purporting to permit what that commandment forbids, there is, in proportion to the authority and influence of the transgressor, a fresh sanction imparted to that law; and consequently, in the same proportion the public habit of setting up a false standard of right and wrong is promoted. It is this habit—this habit of graduating our morality by the laws of the land in which we live—that makes the "mischief framed by a law" so much more pernicious than that which has no law to countenance it, and to commend it to the conscience. Who is unaware, that nothing tends so powerfully to keep the traffic in strong drink from becoming universally odious, as the fact, that this body and soul destroying business finds a sanction in human laws? Who has not seen the man, authorized by these laws to distribute the poison amongst his tippling neighbors, proof against all the shafts of truth, under the self-pleasing and self-satisfying consideration, that his is a lawful business.

This habit of setting up man's law, instead of God's law, as the standard of conduct, is strikingly manifested in the fact, that on the ground, that the Federal Constitution binds the citizens of the United States to perpetuate slavery, or at least, not to meddle with it, we are, both at the North and the South, called on to forbear from all efforts to abolish it. The exertions made to discover in that instrument, authority for slavery, and authority against endeavors to abolish it, are as great, anxious, and unwearied, as if they who made them, thought that the fortunate discovery would settle for ever the great question which agitates our country—would nullify all the laws of God against slavery—and make the oppression of our colored brethren, as long as time shall last, justifiable and praiseworthy. But this discovery will never be made; for the Constitution is not on the side of the slaveholder. If it were, however, it would clothe him with no moral right to act in opposition to the paramount law of God. It is not at all necessary to the support of my views, in this communication, to show that the Constitution was not designed to favor slavery; and yet, a few words to this end may not be out of place.

A treaty between Great Britain and Turkey, by the terms of which the latter should be prohibited from allowing slaves to be brought within her dominions, after twenty years from its date, would, all will admit, redound greatly to the credit of Great Britain. To be sure, she would not have done as much for the cause of humanity, as if she had succeeded in bringing the further indulgence of the sin within the limits of a briefer period, and incomparably less than if she had succeeded in reconciling the Sublime Porte to her glorious and emphatically English doctrines of immediate emancipation. But still she would deserve some praise—much more than if she had done nothing in this respect. Now, for my present purpose, and many of our statesmen say, for nearly all purposes, the Federal Constitution is to be regarded as a treaty between sovereign States. But how much more does this treaty do for the abolition of slavery, than that on which we were, a moment since, bestowing our praise! It imposes a prohibition similar to that in the supposed treaty between Great Britain and Turkey, so that no slaves have been allowed to be introduced into the United States since the year 1808. It goes further, and makes ample provision for the abolition and prevention of slavery in every part of the nation, save these States; so that the District of Columbia and the national territories can be cleared forever of slavery, whenever a majority of the parties, bound by the treaty, shall desire it. And it goes still farther, and clothes this majority with the power of regulating commerce between the States, and consequently, of prohibiting their mutual traffic in "the bodies and souls of men." Had this treaty gone but one step farther, and made an exception, as it should have done, in behalf of slaves, in the clause making necessary provision for the return of fugitives held to service in the States from which they flee, none but those who think it is fairly held responsible for the twenty years indulgence of the unholy traffic, would have claimed any thing more from it in relation to slavery. Now, this instrument, which contains nothing more, bearing on the subject of slavery, than what I have referred to, and whose pages are not once polluted with the words "slave" and "slavery," is abundantly and triumphantly cited, as conclusive authority in favor of slavery, and against endeavors to abolish it. Whilst we regret, that the true-hearted sons of freedom in the Convention which formed it, could obtain no more concessions from the advocates of slavery, let us honor their sacred memory, and thank God for those they did obtain.

I have supposed it possible, that you might number yourself with those, who defend slavery on the ground of its alleged conformity with human laws. It occurs to me, that you may, also, take hope, that slavery is defensible in the supposed fact, that a considerable share of the professing Christians, in the free States, are in favor of it. "Let God be true, but every man a liar." If all professing Christians were for slavery, yet, if God is against it, that is reason enough why you also should be against it. It is not true, however, that a considerable share of our professing Christians are on the side of slavery. Indeed, until I read Professor Hodge's article, I had not supposed that any of them denied its sinfulness. It is true, that a large proportion of them refuse to take a stand against it. Let them justify to their consciences, and to their God, as they can, the equivocal silence and still more equivocal action on this subject, by which they have left their Southern brethren to infer, that Northern piety sanctions slavery. It is the doctrine of expediency, so prevalent and corrupting in the American Church, which has deceived you into the belief, that a large share of the professing Christians in the free States, think slavery to be sinless. This share, which you have in your eye, is, as well as the remainder, convinced that slavery is sinful—*only they think it inexpedient to say so*. In relation to other sins, they are satisfied with God's way of immediate abandonment. But, in relation to slavery, they flatter themselves that they have discovered "a more excellent way"—that of leaving the sin untouched, and simply hoping for its cessation, at some indefinite period in the distant future. I say hoping, instead of praying, as prayer for an object is found to be accompanied by corresponding efforts. But for this vile doctrine of expediency, which gives to our ecclesiastical bodies, whenever the subject of such a giant and popular sin as slavery is broached in them, the complexion of a political caucus steeped in unprincipled policy, rather than that of a company of the Saviour's disciples, inquiring "in simplicity and godly sincerity, not with fleshly wisdom," the way of the Lord;—but for this doctrine, I say, you would, long ago, have heard the testimony of Northern Christians against Southern slavery;—and not only so, but you would long ago have seen this Dagon fall before the power of that testimony. I trust, however, that this testimony will not long be withheld; and that Northern Christians will soon perceive, that, in relation to slavery, as well as every other sin, it is the safest and wisest, as well as the holiest

course, to drop all carnal policy—to "trust in the Lord with all thine heart, and lean not unto thine own understanding."

Not only are Northern Christians, with very rare exceptions, convinced of the sin of slavery; but even your slaveholders were formerly accustomed, with nearly as great unanimity, to admit, that they themselves thought it to be sinful. It is only recently, and since they have found that their system must be tested by the Bible, thoroughly and in earnest—not merely for the purpose, as formerly, of determining without any practical consequences of the determination, what is the moral character of slavery—but, for the purpose of settling the point, whether the institution shall stand or fall,—it is only, I say, since the civilized world has been fast coming to claim that it shall be decided by the Bible, and by no lower standard, whether slavery shall or shall not exist—that your slaveholders have found it expedient to take the ground, that slavery is not sin.

It probably has not occurred to you, how fairly and fully you might have been stopped, upon the very threshold of your defence of slavery. The only witness you have called to the stand to sustain your sinking cause, is the Bible. But this is a witness, which slavery has itself impeached, and of which, therefore, it is not entitled to avail itself. It is a good rule in our civil courts, that a party is not permitted to impeach his own witness; and it is but an inconsiderable variation of the letter of this rule, and obviously no violation of its spirit and policy to say, that no party is permitted to attempt to benefit his cause by a witness whom he has himself impeached. Now, the slaveholder palpably violates this rule, when he presumes to offer the Bible as a witness for his cause:—for he has previously impeached it, by declaring, in his slave system, that it is not to be believed—that its requirements are not to be obeyed—that they are not even to be read (though the Bible expressly directs that they shall be)—that concubinage shall be substituted for the marriage it enjoins—and that its other provisions for the happiness, and even the existence, of the social relations, shall be trampled under foot. The scene, in which a lawyer should ask the jury to believe what his witness is saying at one moment, and to reject what he is saying at another, would be ludicrous enough. But what more absurdity is there in it than that which the pro-slavery party are guilty of, when they would have us deaf, whilst their witness is testifying in favor of marriage and searching the Scriptures; and, all ears, whilst that same witness is

testifying, as they construe it, in favor of slavery! No—before it will be competent for the American slaveholder to appeal to the Bible for justification of his system, that system must be so modified, as no longer to make open, shameless war upon the Bible. I would recommend to slaveholders, that, rather than make so unhallowed a use of the Bible as to attempt to bolster up their hard beset cause with it, they should take the ground, which a very distinguished slaveholding gentleman of the city of Washington took, in a conversation with myself on the subject of slavery. Feeling himself uncomfortably plied by quotations from the word of God, he said with much emphasis, "Stop, Sir, with that, if you please—SLAVERY IS A SUBJECT, WHICH HAS NOTHING TO DO WITH THE BIBLE."

This practice of attempting to put the boldest and most flagrant sins under the wing and sanction of the Bible, is chargeable on others as well as on the advocates of slavery. Not to speak of other instances of it—it is sought to justify by this blessed book the most despotic forms of civil government, and the drinking of intoxicating liquors. There are two evils so great, which arise from this perversion of the word of God, that I cannot forbear to notice them. One is, that the consciences of men are quieted, when they imagine that they have found a justification in the Bible for the sins of which they are guilty. The other is, that infidels are multiplied by this perversion. A respectable gentleman, who edits a newspaper in this neighborhood, and who, unhappily, is not established in the Christian faith, was asked, a few months since, to attend a meeting of a Bible Society. "I am not willing," said he, in reply, "to favor the circulation of a volume, which many of its friends claim to be on the side of slavery." Rely on it, Sir, that wherever your book produces the conviction that the Bible justifies slavery, it there weakens whatever of respect for that blessed volume previously existed. Whoever is brought to associate slavery with the Bible, may, it is true, think better of slavery; but he will surely think worse of the Bible. I hope, therefore, in mercy to yourself and the world, that the success of your undertaking will be small.

But oftentimes the same providence has a bright, as well as a gloomy, aspect. It is so in the case before us. The common attempt, in our day, to intrench great sins in the authority of the Bible, is a consoling and cheering evidence, that this volume is recognised as the public standard of right and

wrong; and that, whatever may be their private opinions of it who are guilty of these sins, they cannot hope to justify themselves before the world, unless their lives are, apparently, at least, conformed, in some good degree, to this standard. We may add, too, that, as surely as the Bible is against slavery, every pro-slavery writer, who like yourself appeals to it as the infallible and only admissible standard of right and wrong, will contribute to the overthrow of the iniquitous system. His writings may not, uniformly, tend to this happy result. In some instances, he may strengthen confidence in the system of slavery by producing conviction, that the Bible sanctions it;—and then his success will be, as before remarked, at the expense of the claims and authority of the Bible:—but these instances of the pernicious effects of his writings will be very rare, quite too rare we may hope, to counterbalance the more generally useful tendency of writings on the subject of slavery, which recognise the paramount authority of God's law.

Having completed the examination of your book, I wish to hold up to you, in a single view, the substance of what you have done. You have come forth, the unblushing advocate of American slavery;—a system which, whether we study its nature in the deliberate and horrid enactments of its code, or in the heathenism and pollution and sweat and tears and blood, which prove, but too well, the agreement of its practical character with its theory—is, beyond all doubt, more oppressive and wicked than any other, which the avaricious, sensual, cruel heart of man ever devised. You have come forth, the unblushing advocate of a system under which parents are daily selling their children; brothers and sisters, their brothers and sisters; members of the Church of Christ, their fellow-members—under which, in a word, immortal man, made "in the image of God," is more unfeelingly and cruelly dealt with, than the brute. I know that you intimate that this system would work well, were it in the hands of none but good men. But with equal propriety might you say, that the gaming-house or the brothel would work well in such hands. You have attempted to sustain this system by the testimony of the Bible. The system, a part only of the crimes of which, most of the nations of Christendom have declared to be piracy;—against which, the common sense, the philosophy, the humanity, the conscience of the world, are arrayed;—this system, so execrable and infamous, you have had the presumption to attempt to vindicate by that blessed book, whose Author

"is of purer eyes than to behold evil, and (who) cannot look upon iniquity"—and who "has magnified his word above all his name."

And now, Sir, let me solemnly inquire of you, whether it is right to do what you have done?—whether it is befitting a man, a Christian, and a minister of the gospel?—and let me, further, ask you, whether you have any cheering testimony in your heart that it is God's work you have been doing? That you and I may, in every future work of our hands, have the happiness to know, that the approbation of our employer comes from the upper, and not from the under world, is the sincere desire of

Your friend,

GERRIT SMITH.

No. 4

**THE
ANTI-SLAVERY EXAMINER.**

**THE
BIBLE AGAINST SLAVERY.**

**AN INQUIRY
INTO THE
PATRIARCHAL AND MOSAIC SYSTEMS
ON THE SUBJECT OF HUMAN RIGHTS.**

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CONTENTS.

- [Definition of Slavery](#)
- [Man-stealing—Examination of Ex. xxi. 16](#)
- [Import of "Bought with money," etc.](#)
- [Rights and privileges of servants](#)
- [No involuntary servitude under the Mosaic system](#)
- [Servants were paid wages](#)
- [Masters, not owners](#)
- [Servants distinguished from property.](#)
- [Social equality of servants with their masters](#)
- [Condition of the Gibeonites, as subjects of the Hebrew Commonwealth](#)
- [Egyptian bondage analyzed](#)
- [OBJECTIONS CONSIDERED.](#)
- ["Cursed be Canaan, a servant of servants shall he be," etc. Gen. ix. 25](#)
- ["For he is his money," Examination of, Ex. xxi. 20, 21](#)
- ["Bondmen and bondmaids" bought of the heathen. Lev. xxv. 44-46](#)
- ["They shall be your bondmen forever." Lev. xxv. 46](#)
- ["Ye shall take them as an inheritance," etc. Lev. xxv. 46](#)
- [The Israelite to serve as a hired servant. Lev. xxv. 39, 40](#)
- [Difference between bought and hired servants](#)
- [Bought servants the most privileged class](#)
- [Summary of the different classes of servants](#)
- [Disabilities of the servants from the heathen](#)
- [Examination of Exodus xxi. 2-6](#)
- [The Canaanites not sentenced to unconditional extermination](#)

INQUIRY, &c.

* * * * *

The spirit of slavery never takes refuge in the Bible *of its own accord*. The horns of the altar are its last resort. It seizes them, if at all, only in desperation—rushing from the terror of the avenger's arm. Like other unclean spirits, it "hateth the light, neither cometh to the light, lest its deeds should be reproved." Goaded to phrenzy in its conflicts with conscience and common sense, denied all quarter, and hunted from every covert, it breaks at last into the sacred enclosure, and courses up and down the Bible, "seeking rest, and finding none." THE LAW OF LOVE, streaming from every page, flashes around it an omnipresent anguish and despair. It shrinks from the hated light, and howls under the consuming touch, as demons recoiled from the Son of God, and shrieked, "Torment us not." At last, it slinks away among the shadows of the Mosaic system, and thinks to burrow out of sight among its types and shadows. Vain hope! Its asylum is its sepulchre; its city of refuge, the city of destruction. It rushes from light into the sun; from heat, into devouring fire; and from the voice of God into the thickest of His thunders.

DEFINITION OF SLAVERY.

If we would know whether the Bible is the charter of slavery, we must first determine *just what slavery is*. The thing itself must be separated from its appendages. A constituent element is one thing; a relation another; an appendage another. Relations and appendages presuppose *other* things, of which there are relations and appendages. To regard them as *the things* to which they pertain, or as constituent parts of them, leads to endless fallacies. A great variety of conditions, relations, and tenures, indispensable to the social state, are confounded with slavery; and thus slaveholding is deemed quite harmless, if not virtuous. We will specify some of the things which are often confounded with slavery.

1. *Privation of the right of suffrage.* Then *minors* are slaves.
2. *Ineligibility to office.* Then *females* are slaves.
3. *Taxation without representation.* Then three-fourths of the people of Rhode Island are slaves, and *all* in the District of Columbia.
4. *Privation of one's oath in law.* Then the *free* colored people of Ohio are slaves. So are disbelievers in a future retribution, generally.
5. *Privation of trial by jury.* Then all in France and Germany are slaves.
6. *Being required to support a particular religion.* Then the people of England are slaves. [To the preceding may be added all other disabilities, merely political.]
7. *Cruelty and oppression.* Wives are often cruelly treated; hired domestics are often oppressed; but these forms of oppression are not slavery.
8. *Apprenticeship.* The rights and duties of master and apprentice are correlative and reciprocal. The *claim* of each upon the other results from the *obligation* of each to the other. Apprenticeship is based on the principle of equivalent for value received. The rights of the apprentice are secured, and his interests are promoted equally with those of the master. Indeed, while the law of apprenticeship is *just* to the master, it is *benevolent* to the apprentice. Its main design is rather to benefit the apprentice than the master. It *promotes* the interests of the former, while it guards from injury those of the latter in doing it. It secures to the master a mere legal compensation, while it secures to the apprentice both a legal compensation, and a virtual gratuity in addition, the apprentice being of the two decidedly the greatest gainer. The law not only recognizes the *right* of the apprentice to a reward for his labor, but appoints the wages, and enforces the payment. The master's claim covers only the *services* of the apprentice. The apprentice's claim covers *equally* the services of the master. The master cannot hold the apprentice as property, nor the apprentice the master; but each holds property in the services of the other, and BOTH EQUALLY. Is this slavery?
9. *Filial subordination and parental claims.* Both are nature's dictates, and indispensable to the existence of the social state; their *design* the promotion

of mutual welfare; and the *means*, those natural affections created by the relation of parent and child, and blending them in one by irrepressible affinities; and thus, while exciting each to discharge those offices incidental to the relation, they constitute a shield for mutual protection. The parent's legal claim to the services of his children, while minors, is a slight boon for the care and toil of their rearing, to say nothing of outlays for support and education. This provision for the good of the *whole*, is, with the greater part of mankind, indispensable to the preservation of the family state. The child, in helping his parents, helps himself—increases a common stock, in which he has a share; while his most faithful services do but acknowledge a debt that money cannot cancel.

10. *Bondage for crime, or governmental claims on criminals.* Must innocence be punished because guilt suffers penalties? True, the criminal works for the government without pay; and well he may. He owes the government. A century's work would not pay its drafts on him. He is a public defaulter, and will die so. Because laws make men pay their debts, shall those be forced to pay who *owe nothing*? Besides, the law makes no criminal, PROPERTY. It restrains his liberty; it makes him pay something, a mere penny in the pound, of his debt to the government; but it does not make him a *chattel*. Test it. To own property is to own its product. Are children born of convicts government property? Besides, can *property* be *guilty*? Are *chattels* punished?

11. *Restrictions upon freedom.* Children are restrained by parents, wards by guardians, pupils by teachers, patients by physicians and nurses, corporations by charters, and legislators by constitutions. Embargoes, tariffs, quarantine, and all other laws, keep men from doing as they please. Restraints are the web of civilized society, warp and woof. Are they slavery? then civilized society is a mammoth slave—a government of LAW, *the climax of slavery*, and its executive a king among slaveholders.

12. *Involuntary or compulsory service.* A juryman is empannelled *against his will*, and sit he *must*. A sheriff orders his posse; bystanders *must* turn in. Men are *compelled* to remove nuisances, pay fines and taxes, support their families, and "turn to the right as the law directs," however much *against their wills*. Are they therefore slaves? To confound slavery with involuntary service is absurd. Slavery is a *condition*. The slave's *feelings* toward it, are

one thing; the condition itself, the object of these feelings, is *another* thing; his feelings cannot alter the nature of that condition. Whether he *desire* or *detest* it, the *condition* remains the same. The slave's *willingness* to be a slave is no palliation of his master's guilt in holding him. Suppose the slave verily thinks himself a chattel, and consents that others may so regard him, does that *make* him a chattel, or make those guiltless who *hold* him as such? I may be sick of life, and I tell the assassin so that stabs me; is he any the less a murderer because I *consent* to be made a corpse? Does my partnership in his guilt blot out his part of it? If the slave were willing to be a slave, his *voluntariness*, so far from *lessening* the guilt of the "owner," *aggravates* it. If slavery has so palsied his mind and he looks upon himself as a chattel, and consents to be one, actually *to hold him as such*, falls in with his delusion, and confirms the impious falsehood. *These very feelings and convictions of the slave*, (if such were possible) increase a hundred fold the guilt of the master in holding him as property, and call upon him in thunder, immediately to recognize him as a MAN, and thus break the sorcery that binds his soul, cheating it of its birth-right, and the consciousness of its worth and destiny.

Many of the foregoing conditions and relations are *appendages* of slavery, and some of them inseparable from it. But no one, nor all of them together, constitute its *intrinsic unchanging element*.

We proceed to state affirmatively that,

ENSLAVING MEN IS REDUCING THEM TO ARTICLES OF PROPERTY, making free agents chattels, converting *persons* into *things*, sinking intelligence, accountability, immortality, into *merchandise*. A *slave* is one held in this condition. He is a mere tool for another's use and benefit. In law "he owns nothing, and can acquire nothing." *His right to himself is abrogated*. He is another's property. If he say *my hands, my feet, my body, my mind, MYself*; they are figures of speech. To *use himself* for his own good is a CRIME. To keep what he *earns* is stealing. To take his body into his own keeping is *insurrection*. In a word, the *profit* of his master is the END of his being, and he, a *mere means* to that end, a *mere means* to an end into which his interests do not enter, of which they constitute no portion^A. MAN sunk to a *thing*! the intrinsic element, the *principle* of slavery; MEN sold, bartered, leased, mortgaged, bequeathed, invoiced, shipped in cargoes,

stored as goods, taken on executions, and knocked off at public outcry! Their *rights* another's conveniences, their interests, wares on sale, their happiness, a household utensil; their personal inalienable ownership, a serviceable article, or plaything, as best suits the humor of the hour; their deathless nature, conscience, social affections, sympathies, hopes, marketable commodities! We repeat it, *the reduction of persons to things*; not robbing a man of privileges, but of *himself*; not loading with burdens, but making him a *beast of burden*; not *restraining* liberty, but subverting it; not curtailing rights, but abolishing them; not inflicting personal cruelty, but annihilating *personality*; not exacting involuntary labor, but sinking him into an *implement* of labor; not abridging his human comforts, but abrogating his *human nature*; not depriving an animal of immunities, but *despoiling a rational being of attributes*, uncreating a MAN to make room for a *thing*!

A: Whatever system sinks man from an END to a *means*, or in other words, whatever transforms him from an object of instrumentality into a mere instrumentality to an object, just so far makes him a *slave*. Hence West India apprenticeship retains in *one* particular the cardinal principle of slavery. The apprentice, during three-fourths of his time, is still forced to labor, and robbed of his earnings; just so far forth he is a *mere means*, a *slave*. True, in all other respects slavery is abolished in the British West Indies. Its bloodiest features are blotted out—but the meanest and most despicable of all—forcing the poor to work for the rich without pay three-fourths of their time, with a legal officer to flog them if they demur at the outrage, is one of the provisions of the "Emancipation Act!" For the glories of that luminary, abolitionists thank God, while they mourn that it rose behind clouds, and shines through an eclipse.

That this is American slavery, is shown by the laws of slave states. Judge Stroud, in his "Sketch of the Laws relating to Slavery," says, "The cardinal principle of slavery, that the slave is not to be ranked among sentient beings, but among *things*—is an article of property, a chattel personal, obtains as undoubted law in all of these states," (the slave states.) The law of South Carolina thus lays down the principle, "Slaves shall be deemed, held, taken, reputed, and adjudged in law to be *chattels personal* in the hands of their owners and possessors, and their executors, administrators, and assigns, to ALL INTENTS, CONSTRUCTIONS, AND PURPOSES

WHATSOEVER." Brevard's Digest, 229. In Louisiana, "a slave is one who is in the power of a master to whom he *belongs*; the master may sell him, dispose of his *person, his industry, and his labor*; he can do nothing, possess nothing, nor acquire any thing, but what must belong to his master." Civil Code of Louisiana, Art. 35.

This is American slavery. The eternal distinction between a person and a thing, trampled under foot—the crowning distinction of all others—their centre and circumference—the source, the test, and the measure of their value—the rational, immortal principle, embalmed by God in everlasting remembrance, consecrated to universal homage in a baptism of glory and honor, by the gift of His Son, His Spirit, His Word, His presence, providence, and power; His protecting shield, upholding staff, and sheltering wing; His opening heavens, and angels ministering, and chariots of fire, and songs of morning stars, and a great voice in heaven, proclaiming eternal sanctions, and confirming the word with signs following.

Having stated the *principle* of American slavery, we ask, DOES THE BIBLE SANCTION SUCH A PRINCIPLE?[A]^A? To the *law* and the *testimony*. First, the moral law, or the ten commandments. Just after the Israelites were emancipated from their bondage in Egypt, while they stood before Sinai to receive the law, as the trumpet waxed louder, and the mount quaked and blazed, God spake the ten commandments from the midst of clouds and thunderings. *Two* of those commandments deal death to slavery. Look at the eighth, "*Thou shall not steal*," or, thou shalt not take from another what belongs to him. All man's powers of body and mind are God's gift to *him*. That they are *his own*, and that he has a right to them, is proved from the fact that God has given them to *him alone*, that each of them is a part of *himself*, and all of them together *constitute* himself. All *else* that belongs to man is acquired by the *use* of these powers. The *interest* belongs to him, because the *principal* does—the product is his, because he is the *producer*. Ownership of any thing is ownership of its *use*. The right to use according to will, is *itself* ownership. The eighth commandment *presupposes and assumes the right of every man to his powers, and their product*. Slavery robs of both. A man's right to himself is the only right absolutely original and intrinsic—his right to whatever else that belongs to him is merely *relative* to his right to himself—is derived from it, and held only by virtue of it. SELF-RIGHT is the *foundation right*—the *post in the*

middle, to which all other rights are fastened. Slaveholders, the world over, when talking about their RIGHT to their slaves, always assume *their own right to themselves*. What slaveholder ever undertook to prove his own right to himself? He knows it to be a self-evident proposition, that *a man belongs to himself*—that the right is intrinsic and absolute. The slaveholder, in making out his own title to himself, makes out the title of every human being to *himself*. As the fact of being *a man* is itself the title, the whole human family have one common title deed. If *one* man's title is valid, *all* are valid. If one is worthless, all are. To deny the validity of the *slave's* title is to deny the validity of *his own*; and yet in the act of making him a slave, the slaveholder *asserts* the validity of his own title, while he seizes *him* as his property who has the *same* title. Further, in making him a slave, he does not merely unhumanize *one* individual, but UNIVERSAL MAN. He destroys the foundations. He annihilates *all rights*. He attacks not only the human race, but *universal being*, and rushes upon JEHOVAH.—For rights are *rights*; God's are no more—man's are no less.

A: The Bible record of actions is no comment on their moral character. It vouches for them as *facts*, not as *virtues*. It records without rebuke, Noah's drunkenness, Lot's incest, and the lies of Jacob and his mother—not only single acts, but *usages*, such as polygamy and concubinage, are entered on the record without censure. Is that *silent entry* God's *endorsement*? Because the Bible, in its catalogue of human actions, does not stamp on every crime its name and number, and write against it, *this is a crime*—does that wash out its guilt, and bleach it into a virtue?

The eighth commandment forbids the taking of *any* part of that which belongs to another. Slavery takes the *whole*. Does the same Bible which forbids the taking of *any* thing belonging to him, sanction the taking of *every* thing? Is it such a medley of absurdities as to thunder wrath against him who robs his neighbor of a *cent*, while it bids God speed to him who robs his neighbor of *himself*? Slavery is the highest possible violation of the eighth commandment. To take from a man his earnings, is theft. But to take the *earner*, is compound, superlative, perpetual theft. It is to be a thief by profession. It is a trade, a life of robbery, that vaults through all the gradations of the climax at a leap—the dread, terrific, giant robbery, that towers among other robberies, a solitary horror, monarch of the realm. The eighth commandment forbids the taking away, and the *tenth* adds, "*Thou*

shalt not COVET any thing that is thy neighbor's;" thus guarding every man's right to himself and his property, by making not only the actual taking away a sin, but even that state of mind which would *tempt* to it. Who ever made human beings slaves, or held them as slaves without *coveting* them? Why do they take from them their time, their labor, their liberty, their right of self-preservation and improvement, their right to acquire property, to worship according to conscience, to search the Scriptures, to live with their families, and their right to their own bodies? Why do they *take* them, if they do not *desire* them? They COVET them for purposes of gain, convenience, lust of dominion, of sensual gratification, of pride and ostentation. *They break the tenth commandment*, and pluck down upon their heads the plagues that are written in the book. *Ten* commandments constitute the brief compend of human duty. *Two* of these brand slavery as sin.

The giving of the law at Sinai, immediately preceded the promulgation of that body of laws and institutions, called the "Mosaic system." Over the gateway of that system, fearful words were written by the finger of God—"HE THAT STEALETH A MAN AND SELLETH HIM, OR IF HE BE FOUND IN HIS HAND, HE SHALL SURELY BE PUT TO DEATH." See Exodus, xxi. 16.

The oppression of the Israelites in Egypt, and the wonders wrought for their deliverance, proclaim the reason for *such* a law at *such* a time—when the body politic became a theocracy, and reverently waited for the will of God. They had just been emancipated. The tragedies of their house of bondage were the realities of yesterday, and peopled their memories with thronging horrors. They had just witnessed God's testimony against oppression in the plagues of Egypt—the burning blains on man and beast—the dust quickened into loathsome life, and cleaving in swarms to every living thing—the streets, the palaces, the temples, and every house heaped up with the carcasses of things abhorred—even the kneading troughs and ovens, the secret chambers and the couches, reeking and dissolving with the putrid death—the pestilence walking in darkness at noonday, the devouring locusts and hail mingled with fire, the first-born death-struck, and the waters blood, and, last of all, that dread high hand and stretched out arm, that whelmed the monarch and his hosts, and strewed their corpses in the

sea. All this their eyes had looked upon,—earth's proudest city, wasted and thunder-scarred, lying in desolation, and the doom of oppressors traced on her ruins in the hand writing of God, glaring in letters of fire mingled with blood—a blackened monument of wrath to the uttermost against the stealers of men.

No wonder that God, in a code of laws prepared for such a people at such a time, should light up on its threshold a blazing beacon to flash terror on slaveholders. "*He that stealeth a man and selleth him, or if he be found in his hand, he shall be surely put to death.*" Ex. xxii. 16. God's cherubim and flaming sword guarding the entrance to the Mosaic system! See also Deut. xxiv. 7^A.

^A: Jarchi, the most eminent of the Jewish writers, (if we except perhaps the Egyptian Maimonides,) who wrote seven hundred years ago, in his comment on this stealing and making merchandize of men, gives the meaning thus:—"Using a man against his will, as a servant lawfully purchased; yea though he should use his services ever so little, only to the value of a farthing, or use but his arm to lean on to support him, *if he be forced so to act as a servant*, the person compelling him but once to do so shall die as a thief, whether he has sold him or not."

The Hebrew word, *Gaunab*, here rendered *stealeth*, means the taking from another what *belongs* to him, whether it be by violence or fraud; the same word is used in the eighth commandment, and prohibits both *robbery* and theft.

The crime specified is that of *depriving* **SOMEBODY** of the ownership of a *man*. Is this somebody a master? and is the crime that of depriving a *master* of his *servant*? Then it would have been "he that stealeth" a *servant*, not "he that stealeth a *man*." If the crime had been the taking of an individual from *another*, then the *term* used would have been *expressive of that relation*, and *most especially* if it was the relation of property and *proprietor*!

The crime, as stated in the passage, is three-fold—man *stealing*, *selling* and *holding*. All are put on a level, and whelmed under one penalty—DEATH. This *somebody* deprived of the ownership of man, is the *man himself*, robbed of personal ownership. Joseph said to the servants of Pharaoh, "Indeed I was *stolen* away out of the land of the Hebrews." Gen. xl. 15.

How *stolen*? His brethren took him and sold him as an *article of merchandize*. Contrast this penalty for *man-stealing* with that for *property-stealing*. Exod. xxii. If a man stole an ox and killed or sold it, he was to restore five oxen; if he had neither sold nor killed it, the penalty was two oxen. The selling or the killing being virtually a deliberate repetition of the crime, the penalty was more than doubled.

But in the case of stealing a *man*, the first act drew down the utmost power of punishment; however often repeated, or however aggravated the crime, human penalty could do no more. The fact that the penalty for *man-stealing* was death, and the penalty for *property-stealing*, the mere *restoration of double*, shows that the two cases were adjudicated on totally different principles. The man stolen might be past labor, and his support a *burden*, yet death was the penalty, though not a cent's worth of *property value* was taken. The penalty for stealing *property* was a mere *property penalty*. However large the amount stolen, the payment of *double* wiped out the score. It might have a greater *money* value than a *thousand* men, yet *death* was never the penalty, nor maiming, nor branding, nor even *stripes*. Whatever the kind, or the amount stolen, the unvarying penalty was double of *the same kind*. Why was not the rule uniform? When a *man* was stolen why not require the thief to restore *double of the same kind*—*two men*, or if he had sold him, *five men*? Do you say that the man-thief might not *have* them? So the ox-thief might not have two *oxen*, or if he had killed it, *five*. But if God permitted men to hold *men* as property, equally with *oxen*, the *man-thief* could get *men* with whom to pay the penalty, as well as the ox-thief, *oxen*.

Further, when *property* was stolen, the whole of the legal penalty was a compensation to the person injured. But when a *man* was stolen, no property compensation was offered. To tender *money* as an equivalent, would have been to repeat the outrage with the intolerable aggravations of supreme insult and impiety. Compute the value of a MAN in *money*! Throw dust into the scale against immortality! The law recoiled from such outrage and blasphemy. To have permitted the man-thief to expiate his crime by restoring double, would have been making the repetition of crime its atonement. But the infliction of death for *man-stealing* exacted from the guilty wretch the utmost possibility of reparation. It wrung from him, as he gave up the ghost, a testimony in blood, and death groans, to the infinite

dignity and worth of man,—a proclamation to the universe, voiced in mortal agony, that MAN IS INVIOLEABLE,—a confession shrieked in phrenzy at the grave's mouth—"I die accursed, and God is just."

If God permitted man to hold *man* as property, why did He punish for stealing *that* kind of property infinitely more than for stealing any *other* kind of property? Why did he punish with *death* for stealing a very little, perhaps not a sixpence worth, of *that* sort of property, and make a mere *fine*, the penalty for stealing a thousand times as much, of any other sort of property—especially if God did by his own act annihilate the difference between man and *property*, by putting him *on a level with it*?

The atrociousness of a crime, depends greatly upon the nature, character, and condition of the victim. To steal is a crime, whoever the thief, or whatever the plunder. To steal bread from a *full* man, is theft; to steal it from a *starving* man, is both theft and murder. If I steal my neighbor's *property*, the crime consists not in the *nature* of the article, but in *shifting its external relation* from *him to me*. But when I take my neighbor *himself*, and first make him *property*, and then *my* property, the latter act, which was the sole crime in the former case, dwindles to a mere appendage. The sin in stealing a man does not consist in transferring, from its owner to another, that which is *already property*, but in turning *personality* into *property*. True, the *attributes* of man still remain, but the rights and immunities which grow out of them are *annihilated*. It is the first law of reason and revelation to regard things and beings as they are; and the sum of religion, to feel and act toward them according to their nature and value. Knowingly to treat them otherwise, is *sin*; and the degree of violence done to their nature, relations, and value, measures its guilt. When things are sundered which God has indissolubly joined, or confounded in one, which he has separated by infinite extremes; when sacred and eternal distinctions, which he has garnished with glory, are derided and set at nought, then, if ever, *sin* reddens in its "scarlet dye." The sin specified in the passage, is that of doing violence to the *nature* of a *man*—his *intrinsic value* and relations as a rational being, and blotting out the exalted distinction stamped upon him by his Maker. In the verse preceding, and in that which follows, the same principle is laid down. Verse 15, "*He then smiteth his father or his mother shall surely be put to death.*" Verse 17, "*He that curseth his father or his mother, shall surely be put to death.*" If a Jew smote his neighbor, the law

merely smote him in return. But if that same blow were given to a *parent*, the law struck the smiter *dead*. Why this difference in the punishment of the same act, inflicted on different persons? Answer—God guards the parental relation with peculiar care. It is the *centre* of human relations. To violate that, is to violate *all*. Whoever trampled on *that*, showed that no relation had any sacredness in his eyes—that he was unfit to move among human relations who had violated one so sacred and tender.—Therefore, the Mosaic law uplifted his bleeding corpse, and brandished the ghastly terror around the parental relation to guard it from impious inroads.

But why the difference in the penalty since the *act* was the same? The sin had divers aggravations.

1. The relation violated was obvious—the distinction between parents and others, manifest, dictated by natural affection—a law of the constitution.
2. The act was violence to nature—a suicide on constitutional susceptibilities.
3. The parental relation then, as now, was the centre of the social system, and required powerful safe-guards. "*Honor thy father and thy mother*," stands at the head of those commands which prescribe the duties of man to man; and, throughout the Bible, the parental relation is God's favorite illustration, of his own relations to the whole family of man. In this case, death is inflicted not at all for the act of *smiting*, nor for smiting a *man*, but a *parent*—for violating a vital and sacred relation—a *distinction* cherished by God, and around which, both in the moral and ceremonial law, He threw up a bulwark of defence. In the next verse, "He that stealeth a man," &c., the SAME PRINCIPLE is wrought out in still stronger relief. The crime here punished with death, is not the mere act of taking property from its owner, but the disregarding of *fundamental relations*, doing violence to an *immortal nature*, making war on a *sacred distinction* of priceless worth. That distinction which is cast headlong by the principle of American slavery; which makes MEN "*chattels*."

The incessant pains-taking throughout the old Testament, in the separation of human beings from brutes and things, shows God's regard for the sacredness of his own distinction.

"In the beginning" the Lord uttered it in heaven, and proclaimed it to the universe as it rose into being. He arrayed creation at the instant of its birth, to do it reverent homage. It paused in adoration while He ushered forth its crowning work. Why that dread pause, and that creating arm held back in mid career, and that high conference in the godhead? *"Let us make man in OUR IMAGE, after OUR LIKENESS, AND LET HIM HAVE DOMINION over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth, and over every living thing that moveth upon the earth."*

Then while every living thing, with land, and sea, and firmament, and marshalled worlds, waited to catch and swell the shout of morning stars—THEN "GOD CREATED MAN IN HIS OWN IMAGE. IN THE IMAGE OF GOD CREATED HE HIM." This solves the problem, IN THE IMAGE OF GOD CREATED HE HIM. Well might the sons of God cry all together, "Amen, alleluia"—*"Thou art worthy, O Lord, to receive blessing and honor"*—*"For thou hast made him a little lower than the angels, and hast crowned him with glory and honor. Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet. O Lord, our Lord, how excellent is thy name in all the earth."* Psalms viii. 5, 6, 9. The frequent and solemn repetition of this distinction by God proclaims his infinite regard. The 26th, 27th, and 28th verses of the 1st chapter of Genesis are little else than the repetition of it in various forms. In the 5th chapter, 1st verse, we find it again—"In the day that God created man, IN THE LIKENESS of GOD MADE HE MAN." In the 9th chapter, 6th verse, we find it again. After giving license to shed the blood of "every moving thing that liveth," it is added, *"Whoso sheddeth man's blood, by man shall his blood be shed, for IN THE IMAGE OF GOD MADE HE MAN."* As though he had said, "All these other creatures are your property, designed for your use—they have the likeness of earth, they perish with the using, and their spirits go downward; but this other being, MAN, has my own *likeness*; IN THE IMAGE OF GOD made I man; an intelligent, moral, immortal agent, invited to all that I can give and he can be." So in Levit. xxiv. 17, 18, *"He that killeth any MAN shall surely be put to death; and he, that killeth a beast shall make it good, beast for beast; and he that killeth a MAN shall be put to death."* So in the passage quoted above, Ps. viii. 5, 6. What an

enumeration of particulars, each separating infinitely, MEN from brutes and things!

1. "*Thou hast made him a little lower than the angels.*" Slavery drags him down among *brutes*.
2. "*And hast crowned him with glory and honor.*" Slavery tears off his crown, and puts on a yoke.
3. "*Thou madest him to have dominion OVER the works of thy hands.*" Slavery breaks his sceptre, and casts him down *among* those works—yea, *beneath them*.
4. "*Thou hast put all things under his feet.*" Slavery puts HIM *under the feet of an owner*, with beasts and creeping things. Who, but an impious scorner, dare thus strive with his Maker, and mutilate HIS IMAGE, and blaspheme the Holy One, who saith to those that grind his poor, "*Inasmuch as ye did it unto one of the least of these, ye did it unto me.*"

But time would fail us to detail the instances in which this distinction is most impressively marked in the Bible.

In further prosecuting this inquiry, the Patriarchal and Mosaic systems will be considered together, as each reflects light upon the other, and as many regulations of the latter are mere *legal* forms of Divine institutions previously existing. As a *system*, however, the latter alone is of Divine authority. Whatever were the usages of the *patriarchs*, God has not made them our exemplars^A.

^A: Those who insist that the patriarchs held slaves, and sit with such delight under their shadow, hymning the praises of "those good old patriarchs and slaveholders," might at small cost greatly augment their numbers. A single stanza celebrating patriarchal *concubinage*, winding off with a chorus in honor of patriarchal *drunkenness*, would be a trumpet call, summoning from bush and brake, highway and hedge, and sheltering fence, a brotherhood of kindred affinities, each claiming Abraham or Noah as his patron saint, and shouting, "My name is legion." What a myriad choir, and thunderous song!

Before entering upon an analysis of the condition of servants under these two states of society, let us settle the import of certain terms which describe the mode of procuring them.

IMPORT OF THE WORD "BUY," AND THE PHRASE "BOUGHT WITH MONEY."

From the direction to the Israelites to "buy" their servants, and from the phrase "bought with money," applied to Abraham's servants, it is argued that they were articles of *property*. The sole ground for this belief is the *terms* "buy" and "bought with money," and such an import to these terms when applied to servants is assumed, not only in the absence of all proof, but in the face of evidence to the contrary. How much might be saved, if in discussion, the thing to be proved was always *assumed*. To *beg* the question in debate, what economy of midnight oil! what a forestaller of premature wrinkles, and grey hairs! Instead of protracted investigation into Scripture usage, and painful collating of passages, and cautiously tracing minute relations, to find the meaning of Scripture terms, let every man boldly resolve to interpret the language of the oldest book in the world, by the usages of his own time and place, and the work is done. And then what a march of mind! Instead of *one* revelation, they might be multiplied as the drops of the morning! Every man might take orders as an inspired interpreter, with an infallible clue to the mind of the Spirit, if he only understood the dialect of his own neighborhood! We repeat it, the only ground of proof that these terms are to be interpreted to mean, when applied to servants in the Bible, the same that they mean when applied to our *slaves, is the terms themselves*.

What a Babel-jargon it would make of the Bible to take it for granted that the sense in which words are *now* used is the *inspired* sense.

David says, "I prevented the dawning of the morning, and cried." What a miracle-worker, to stop the earth in its revolution! Rather too fast. Two hundred years ago, *prevent* was used in the strict Latin sense to *come before*, or *anticipate*. It is always used in this sense in the Old and New Testaments. David's expression, in the English of the nineteenth century, is, "Before the dawning of the morning I cried," or, I began to cry before day-

break. "So my prayer shall *prevent* thee." "Let us *prevent* his face with thanksgiving." "Mine eyes *prevent* the night watches." "We shall not *prevent* them that are asleep," &c. In almost every chapter of the Bible, words are used in a sense now nearly or quite obsolete, and sometimes in a sense totally *opposite* to their present meaning. A few examples follow: "Oftentimes I purposed to come to you, but was *let* (hindered) hitherto." "And the four *beasts* (living ones) fell down and worshipped God,"—Whosoever shall *offend* (cause to sin) one of these little ones,"—Go out into the high ways and *compel* (urge) them to come in,"—Only let your *conversation* (habitual conduct or course of life) be as becometh the Gospel,"—They that seek me *early* (earnestly) shall find me,—Give me *by and by* (now) in a charger, the head of John the Baptist,"—So when tribulation or persecution ariseth *by-and-by* (immediately) they are offended. Nothing is more mutable than language. Words, like bodies, are continually throwing off particles and absorbing others. So long as they are mere *representatives*, elected by the whims of universal suffrage, their meaning will be a perfect volatile, and to cork it up for the next century is an employment sufficiently silly, (to speak within bounds,) for a modern Bible dictionary maker. There never was a shallower conceit than that of establishing the sense attached to a word centuries ago, by showing what it means *now*. Pity that hyper-fashionable mantuamakers and milliners were not a little quicker at taking hints from some of our Doctors of Divinity. How easily they could save their pious customers all qualms of conscience about the weekly shiftings of fashion, by demonstrating that the last importation of Parisian indecency, just now flaunting here on promenade, was the identical style of dress in which the pious Sarah kneaded cakes for the angels, the modest Rebecca drew water for the camels of Abraham's servants. Since such fashions are rife in Chestnut-street and Broadway *now*, they *must* have been in Canaan and Pandanaram four thousand years ago!

II. 1. The inference that the word *buy*, used to describe the procuring of servants, means procuring them as *chattels*, seems based upon the fallacy—that whatever *costs* money *is* money; that whatever or whoever you pay money *for*, is an article of property, and the fact of your paying for it *proves* that it is property. The children of Israel were required to *purchase* their first-born out from under the obligations of the priesthood, Numb. xviii. 15, 16; Exod. xxxiv. 20. This custom is kept up to this day among the Jews, and

the word *buy* is still used to describe the transaction. Does this prove that their first-born were, or are, held as property? They were *bought* as really as were *servants*. So the Israelites were required to *pay money* for their own souls. This is called sometimes a ransom, sometimes an atonement. Were their *souls* therefore marketable commodities?

2. Bible saints *bought* their wives. Boaz *bought* Ruth. "So Ruth the Moabitess, the wife of Mahlon, have I *purchased* to be my wife." Ruth iv. 10. Hosea bought his wife. "So I *bought* her to me for fifteen pieces of silver, and for an homer of barley, and an half homer of barley." Hosea iii. 2. Jacob *bought* his wives Rachel and Leah, and not having money, paid for them in labor—seven years a piece. Gen. xxix. 15-29. Moses probably bought his wife in the same way, and paid for her by his labor, as the servant of her father. Exod. ii. 21. Shechem, when negotiating with Jacob and his sons for Dinah, says, "What ye shall say unto me, I will *give*. Ask me never so much dowry and gift, and I will give according as ye shall say unto me." Gen. xxxiv. 11, 12. David purchased Michal, Saul's daughter, and Othniel, Achsah, the daughter of Caleb, by performing perilous services for the benefit of their fathers-in-law. 1 Sam. xviii. 25-27; Judges i. 12, 13. That the purchase of wives, either with money or by service was the general practice, is plain from such passages as Exod. xxii. 17, and 1 Sam. xviii. 25. Among the Jews of the present day this usage exists, though it is now a mere form, there being no *real* purchase. Yet among their marriage ceremonies, is one called "marrying by the penny." The coincidences, not only in the methods of procuring wives and servants, and in the terms employed in describing the transactions, but in the prices paid for each, are worthy of notice. The highest price of wives (virgins) and servants was the same. Compare Deut. xxii. 28, 29, and Exod. xxii. 17, with Lev. xxvii. 2-8. The *medium* price of wives and servants was the same. Compare Hosea iii. 2, with Exod. xxi. 2. Hosea appears to have paid one half in money and the other in grain. Further, the Israelitish female bought-servants were *wives*, their husbands and their masters being the same persons. Exod. xxi. 8, and Judges xix. 3, 27. If *buying* servants among the Jews shows that they were property, then buying *wives* shows that *they* were property. The words in the original used to describe the one, describe the other. Why not contend that the wives of the ancient fathers of the faithful were their chattels, and used as ready change at a pinch? And thence deduce the rights of modern

husbands. How far gone is the Church from primitive purity! How slow to emulate illustrious examples! Alas! Patriarchs and prophets are followed afar off! When will pious husbands live up to their Bible privileges, and become partakers with Old Testament worthies in the blessedness of a husband's rightful immunities! Surely professors of religion now, are *bound* to buy and hold their wives as property! Refusing so to do, is to question the morality of those "good old" wife-trading "patriarchs, Abraham, Isaac, and Jacob," with the prophets, and a host of whom the world was not worthy.

The use of the word buy, to describe the procuring of wives, is not peculiar to the Hebrew. In the Syriac language, the common expression for "the married," or "the espoused," is "the bought." Even so late as the 16th century, the common record of *marriages* in the old German Chronicles was "A. BOUGHT B."

The Hebrew word translated *buy*, is, like other words, modified by the nature of the subject to which it is applied. Eve says, "I have *gotten* (bought) a man of the Lord." She named him Cain, that is, *bought*. "He that heareth reproof, getteth (buyeth) understanding", Prov. xv. 32. So in Isa. xi. 11. "The Lord shall set his hand again to recover (to *buy*) the remnant of his people." So Ps. lxxviii. 54. He brought them to this mountain which his right hand had *purchased*, i.e. gotten. Jer. xiii. 4. "Take the girdle that thou hast got" (bought.) Neh. v. 8. "We of our ability have *redeemed* (bought) our brethren that were sold to the heathen." Here "*bought*" is not applied to persons who were made slaves, but to those taken *out* of slavery. Prov. 8. 22. "The Lord possessed (bought) me in the beginning of his way before his works of old." Prov. xix. 8. "He that *getteth* (buyeth) wisdom loveth his own soul." Prov. xvi. 16. "How much better is it to *get* (buy) wisdom than gold?" Finally, to *buy* is a *secondary* meaning of the Hebrew word *Kana*.

4. Even at this day the word *buy* is used to describe the procuring of servants, where slavery is abolished. In the British West Indies, where slaves became apprentices in 1834, they are still "bought." This is now the current word in West India newspapers. So a few years since in New-York, Connecticut, Pennsylvania, and even now in New-Jersey servants are "*bought*" as really as in Virginia. And the different senses in which the same

word is used in the two states, puts no man in a quandary, whose common sense amounts to a modicum.

So under the system of legal *indenture* in Illinois, servants now are "*bought*."^A A short time since, hundreds of foreigners who came to this country were "bought" annually. By voluntary contract they engaged to work for their purchasers a given time to pay for their passage. This class of persons called "redemptioners," consisted at one time of thousands. Multitudes are *bought out* of slavery by themselves or others, and remove into free states. Under the same roof with the writer is a "servant bought with money." A few weeks since, she was a slave. As soon as "bought," she was a slave no longer. Alas! for our leading politicians if "buying" men makes them "chattels." The Whigs say that Benton and Rives were "bought" by the administration with the surplus revenue; and the other party, that Clay and Webster were "bought" by the Bank. The histories of the revolution tell us that Benedict Arnold was "bought" by British gold. Did that make him an article of property? When a northern clergyman marries a rich southern widow, country gossip hits off the indecency with this current phrase, "The cotton bags *bought* him." When Robert Walpole said, "Every man has his price, and whoever will pay it can *buy* him," and when John Randolph said, while the Missouri question was pending, "The northern delegation is in the market; give me money enough, and I can *buy* them," they both meant *just what they said*. When the temperance publications tell us that candidates for office *buy* men with whiskey; and the oracles of street tattle, that the court, district attorney, and jury, in the late trial of Robinson were *bought*, we have no floating visions of "chattels personal," man auctions, or coffles.

^A: The following statute is now in force in the state of Illinois—"No negro, mulatto, or Indian, shall at any time *purchase* any servant other than of their own complexion: and if any of the persons aforesaid shall presume to *purchase* a white servant, such servant shall immediately become free, and shall be so held, deemed, and taken."

The transaction between Joseph and the Egyptians gives a clue to the meaning attached to "buy" and "bought with money." See Gen. xlvii. 18-26. The Egyptians proposed to Joseph to become servants, and that he should *buy* them. When the bargain was closed, Joseph said, "Behold I have *bought*

you this day," and yet it is plain that neither of the parties dreamed that the persons *bought* were in any sense articles of property, but merely that they became thereby obligated to labor for the government on certain conditions, as a *compensation* for the entire support of themselves and families during the famine. And that the idea attached to "buy us," and "behold I have bought you," was merely the procuring of services voluntarily offered, and secured by contract, as a return for *value received*, and not at all that the Egyptians were bereft of their personal ownership, and made articles of property. And this buying of *services* (they were to give one-fifth part of their crops to Pharaoh) is called in Scripture usage, *buying the persons*. This case deserves special notice, as it is the only one where the whole transaction of buying servants is detailed—the preliminaries, the process, the mutual acquiescence, and the permanent relation resulting therefrom. In all other instances, the *mere fact* is stated without entering into particulars. In this case, the whole process is laid open.

1. The persons "bought," *sold themselves*, and of their own accord.
2. Obtaining permanently the *services* of persons, or even a portion of them, is called "buying" those persons. The objector, at the outset, assumes that servants were bought of *third* persons; and thence infers that they were articles of property. This is sheer *assumption*. Not a single instance is recorded, of a servant being sold by any one but himself; not a case, either under the patriarchal, or the Mosaic systems, in which a *master sold his servant*. That the servants who were "bought" *sold themselves*, is a fair inference from various passages of Scripture.

In Leviticus xxv. 47, the case of the Israelite, who became the servant of the stranger, the words are, "If he SELL HIMSELF unto the stranger." The *same word*, and the same *form* of the word, which, in the 47th verse, is rendered *sell himself*, is in the 39th verse of the same chapter, rendered *be sold*; in Deut. xxviii. 68, the same word is rendered "*be sold*." Here it is the Hithpael conjugation, which is reflexive in its force, and, like the middle voice in Greek, represents what an individual does for himself; or in his own concerns; and should manifestly have been rendered, *ye shall offer yourselves* for sale. For a clue to Scripture usage on this point, see 1 Kings xxi. 20, 25—"Thou hast *sold thyself* to work evil." "There was none like to Ahab that *sold himself* to work wickedness."—2 Kings xvii. 17. "They used

divination and enchantments, and *sold themselves* to do evil."—Isa. l. 1. "For your iniquities have ye *sold yourselves*." Isa. lii. 3, "Ye have *sold yourselves* FOR NOUGHT, and ye shall be redeemed without money." See also, Jeremiah xxxiv. 14—Romans vii. 14, and vi. 16—John viii. 34, and the case of Joseph and the Egyptians, already quoted.

Again, if servants were *bought of third persons*, where are the instances? In the purchase of wives, though spoken of rarely, it is generally stated that they were bought of *third persons*. Is it not a fair inference, if servants were bought of third persons, that there would *sometimes* have been such an intimation?

II.-THE LEADING DESIGN OF THE MOSAIC LAWS RELATING TO MASTERS AND SERVANTS, WITH AN ENUMERATION OF THE RIGHTS AND PRIVILEGES SECURED TO SERVANTS.

The general object of those statutes, which prescribed the relations of master and servant, was the good of both parties—but more especially the good of the *servants*. While the interests of the master were specially guarded from injury, those of the servants were *promoted*.

These laws were a merciful provision for the poorer classes, both of the Israelites and Strangers. Not laying on burdens, but lightening them—they were a grant of *privileges*—a bestowment of *favors*.

1. *No servant from the Strangers, could remain a servant in the family of an Israelite, without becoming a proselyte.* Compliance with this condition was the *price of the privilege*.—Genesis xvii. 9-14, 23, 27.

2. *Excommunication from the family was a PUNISHMENT.*—Genesis xxi. 14-Luke xvi. 2-4.

3. *The fact that every Hebrew servant could COMPEL his master to keep him after the six years contract had, expired,* shows that the system was framed to advance the interests and gratify the wishes of the servant *quite as much* as those of the master. If the servant *demand*ed it, the law *obliged* the master to retain him in his household, however little he might need his

services, or great his dislike to the individual. Deut. xv. 12-17, and Exodus xxi. 2-6.

4. *The rights and privileges guaranteed by law to all servants.* (1.) *They were admitted into covenant with God.* Deut. xxix. 10-13.

(2.) *They were invited guests at all the national and family festivals of the household in which they resided.* Exodus xii. 43-44; Deut. xii. 12, 18, and xvi. 10-16.

(3.) *They were statedly instructed in morality and religion.* Deut. xxxi. 10-13; Joshua viii. 33-35; 2 Chronicles xvii. 8-9.

(4.) *They were released from their regular labor nearly ONE HALF OF THE WHOLE TIME.* During which, the law secured to them their entire support; and the same public and family instruction that was provided for the other members of the Hebrew community.

(a.) The Law secured to them the *whole of every seventh year*; Lev. xxv. 3-6; thus giving to those servants that remained such during the entire period between the jubilees, *eight whole years* (including the Jubilee year) of unbroken rest.

(b.) *Every seventh day.* This in forty-two years, (the eight being subtracted from the fifty) would amount to just *six years*.

(c.) *The three great annual festivals.* The *Passover*, which commenced on the 15th of the 1st month, and lasted seven days, Deut. xvi. 3, 8. The *Pentecost*, or *Feast of Weeks*, which began on the sixth day of the third month, and lasted seven days. Lev. xxiii. 15-21. And the *Feast of Tabernacles*, which commenced on the 15th of the seventh month, and lasted eight days. Deut. xvi. 13, 15; Lev. xxiii. 34-39. As all met in one place, much time would be spent on the journey. Their cumbered caravans moved slowly. After their arrival at the place of sacrifice, a day or two at least, would be requisite for divers preparations, before entering upon the celebration of the festival, besides some time at the close of it, in preparations for their return. If we assign three weeks to each festival—including the time spent on the journey going and returning, and the delays before and after the celebration, together with the *festival week*; it will be a small allowance for the cessation of their regular labor. As there were three

festivals in the year, the main body of the servants would be absent from their stated employments at least *nine weeks annually*, which would amount in forty-two years, subtracting the sabbaths, to six years and eighty-four days.

(e.) *The new moons*. The Jewish year had twelve; Josephus tells us that the Jews always kept *two* days for the new moon. See Calmet on the Jewish Calender, and Horne's Introduction; also 1 Sam. xx, 18, 19, 27. This would amount in forty-two years, to two years, two hundred and eighty days, after the necessary subtractions.

(f.) *The feast of trumpets*. On the first day of the seventh month, and of the civil year. Lev. xxiii. 24, 25.

(g.) *The day of atonement*. On the tenth of the seventh month. Lev. xxiii. 27-32.

These two last feasts would consume not less than sixty-five days of time not otherwise reckoned.

Thus it appears that those persons who continued servants during the whole period between the jubilees, were by law released from their labor, **TWENTY-THREE YEARS AND SIXTY-FOUR DAYS, OUT OF FIFTY YEARS**, and those who remained a less time, in nearly the same proportion. In the foregoing calculation, besides making a generous donation of all the *fractions* to the objector, we have left out of the account, those numerous *local* festivals to which frequent allusion is made, as in Judges xxi. 19; 1 Sam. 9th chapter. And the various *family* festivals, such as at the weaning of children; at marriages; at sheep shearings; at the making of covenants, &c., to which reference is often made, as in 1st Sam. xx. 28, 29. Neither have we included those memorable festivals instituted at a later period of the Jewish history. The feast of Purim, Esther, ix. 28, 29; and the feast of the Dedication, which lasted eight days. John x. 22; 1 Mac. iv. 59.

Finally, the Mosaic system secured to servants, an amount of time, which, if distributed, would on an average be almost **ONE HALF OF THE DAYS IN EACH YEAR**. Meanwhile, they and their families were supported, and furnished with opportunities of instruction. If this amount of time were distributed over *every day*, the servants would have *to themselves*, all but a

fraction of ONE HALF OF EACH DAY, and would labor for their masters the remaining fraction and the other half of the day.

THIS REGULATION IS A PART OF THAT MOSAIC SYSTEM WHICH IS CLAIMED BY SLAVEHOLDERS AS THE GREAT PROTOTYPE OF AMERICAN SLAVERY.

5. *The servant was protected by law equally with the other members of the community.*

Proof—"Hear the causes between your brethren, and judge righteously between every man and his neighbor, and THE STRANGER THAT IS WITH HIM." "Ye shall not RESPECT PERSONS in judgment, but ye shall hear the SMALL as well as the great." Deut. i. 16, 17. Also in Lev. xxiv. 22. "Ye shall have one manner of law as well for the stranger, as for one of your own country, for I am the Lord your God." So Numbers xv. 29. "Ye shall have ONE LAW for him that sinneth through ignorance, both for him that is born among the children of Israel, and for the STRANGER that sojourneth among them." Deut. xxvii. 19. "Cursed be he that PERVERTETH THE JUDGMENT OF THE STRANGER, the fatherless and the widow."

6. *The Mosaic system enjoined upon the Israelites the greatest affection and kindness toward their servants, foreign as well as Jewish.*

Lev. xix. 34. "The stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself." Also Deut. x. 17, 19. "For the Lord your God is God of gods, and Lord of lords, a great God, a mighty and a terrible, which REGARDETH NOT PERSONS, nor taketh reward. He doth execute the judgment of the fatherless and widow, and LOVETH THE STRANGER, in giving him food and raiment, LOVE YE THEREFORE THE STRANGER." So Exodus xxii. 21. "Thou shalt neither vex a stranger nor oppress him." Exodus xxiii. 9. "Thou shalt not oppress a stranger, for ye know the heart of a stranger." Lev. xxv. 35, 36. "If thy brother be waxen poor thou shalt relieve him, yea, though he be a STRANGER or a sojourner, that he may live with thee, take thou no usury of him or increase, but fear thy God." [What an absurdity to suppose that this same stranger could be taken by one that feared his God, held as a slave, and robbed of time, earnings, and all his rights!]

7. *Servants were placed upon a level with their masters in all civil and religious rights.* See Numbers xv. 15, 16, 29. Numb. ix. 14. Deut, i. 16, 17. Lev. xxiv. 22.

III.—DID PERSONS BECOME SERVANTS VOLUNTARILY, OR WERE THEY MADE SERVANTS AGAINST THEIR WILLS?

We argue that they became servants *of their own accord*,

1. Because to become a servant in the family of an Israelite, was to abjure idolatry, to enter into covenant with God^A, to be circumcised in token of it, to be bound to the observance of the Sabbath, of the Passover, the Pentecost, and the Feast of Tabernacles, and to receive instruction in all the particulars of the moral and ceremonial law.

^A: Maimonides, who wrote in Egypt about seven hundred years ago, a contemporary with Jarchi, and who stands with him at the head of Jewish writers, gives the following testimony on this point: "Whether a servant be born in the power of an Israelite, or whether he be purchased from the heathen, the master is to bring them both into the covenant."

"But he that is in the *house* is entered on the eighth day, and he that is bought with money, on the day on which the master receives him, unless the slave be *unwilling*. For if the master receive a grown slave, and he be *unwilling*, his master is to bear with him, to seek to win him over by instruction, and by love and kindness, for one year. After which, should he *refuse* so long, it is forbidden to keep him, longer than a year. And the master must send him back to the strangers from whence he came. For the God of Jacob will not accept any other than the worship of a *willing* heart."—Maimon, Hilcoth, Miloth, Chap. 1st, Sec. 8th.

The ancient Jewish Doctors agree in the testimony, that the servant from the strangers who at the close of his probationary year still refused to adopt the religion of the Mosaic system, and was on that account cut off from the family, and sent back to his own people, received a *full compensation* for his services, besides the payment of his expenses. But that *postponement* of the circumcision of the foreign servant for a year (*or even at all* after he had

entered the family of an Israelite) of which the Mishnic doctors speak, seems to have been *a mere usage*. We find nothing of it in the regulations of the Mosaic system. Circumcision was manifestly a rite strictly *initiatory*. Whether it was a rite merely *national* or *spiritual*, or *both*, comes not within the scope of this inquiry. Nor does it at all affect the argument.

Were the servants *forced* through all these processes? Was the renunciation of idolatry *compulsory*? Were they *dragged* into covenant with God? Were they seized and circumcised by *main strength*? Were they *compelled* mechanically to chew, and swallow, the flesh of the Paschal lamb, while they abhorred the institution, despised its ceremonies, spurned the law which enjoined it, detested its author and executors, and instead of rejoicing in the deliverance which it commemorated, bewailed it as a calamity, and cursed the day of its consummation? Were they *driven* from all parts of the land three times in the year up to the annual festivals? Were they drugged with instruction which they nauseated? Were they goaded through a round of ceremonies, to them senseless and disgusting mummeries; and drilled into the tactics of a creed rank with loathed abominations?

We repeat it, to become a *servant*, was to become a *proselyte*. And how did God authorize his people to make proselytes? At the point of the sword? By the terror of pains and penalties? By converting men into *merchandise*? Were *proselyte* and *chattel* synonymes, in the Divine vocabulary? Must a man be sunk to a *thing* before taken into covenant with God? Was this the stipulated condition of adoption, and the sole passport to the communion of the saints?

2. We argue the voluntariness of servants from Deut. xxiii. 15, 16, "*Thou shall not deliver unto his master the servant which is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best; thou shalt not oppress him.*"

As though God had said, "To deliver him up would be to recognize the *right* of the master to hold him. His *fleeing* "shows his *choice*—proclaims his wrongs, his master's oppressive acts, and his own claim to legal protection." You shall not force him back, and thus recognize the *right* of the master to hold him in such a condition as induces him to flee to others for protection."

It may be objected, that this command had no reference to servants among the *Israelites*, but only to those of *heathen* masters in the surrounding nations. We answer, The regulation has no restriction. Its terms are unlimited. But the objection, even if valid, merely shifts the pressure of the difficulty to another point. Does God array his infinite authority to protect the *free choice* of a *single* servant from the heathen, and yet *authorize* the same persons, to crush the free choice of *thousands* of servants from the heathen! Suppose a case. A *foreign* servant flees from his master to the *Israelites*; God speaks, "He shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it *liketh* him best." They were strictly charged not to put him in a condition which he did not *choose*. Now, suppose this same servant, instead of coming into Israel of his own accord, had been *dragged* in by some kidnapper who *bought* him of his master, and *forced* him into a condition against his will. Would He who forbade such treatment of the stranger, who *voluntarily* came into the land, sanction the *same* treatment of the *same person*, provided in *addition* to this last outrage, the *previous* one had been committed of *forcing him into the nation against his will*?

To commit violence on the free choice of a *foreign* servant is a horrible enormity, forsooth, PROVIDED you *begin* the violence *after* he has come among you. But if you commit the *first act*, on the *other side of the line*; if you *begin* the outrage by buying him from a third person *against his will*, and then tear him from home, and drag him across the line into the land of Israel, and hold him as a slave—ah! that alters the case, and you may perpetrate the violence now with impunity! Would *greater* favor have been shown to this new comer from the heathen than to the old residents—those who had been servants in Jewish families perhaps for a generation? Were the *Israelites* commanded to exercise toward *him*, uncircumcised and *out* of the covenant, a justice and kindness denied to the multitude, who *were* circumcised, and *within* the covenant?

Again: the objector finds small gain to his argument on the supposition that the covenant respected merely the fugitives from the surrounding nations, while it left the servants of the *Israelites* in a condition against their wills—the objector finds small gain to his argument. In that case, the surrounding nations would of course adopt retaliatory measures, and resolve themselves into so many asylums for fugitive *Israelitish* servants. As these nations were

on every side of them such a proclamation would have been an effectual lure to men held in a condition which was a constant *counteraction of will*. Further, the objector's assumption destroys itself; for the same command which protected the foreign servant from the power of his *master*, protected him equally from the power of an *Israelite*. It was not merely, "Thou shalt not deliver him to his *master*," but "he (the servant) shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it liketh him best." Every Israelite was commanded to respect his free choice, and to put him in no condition *against his will*. What was this but a proclamation, that all who *chose* to live in the land and obey the laws, were left to their own free will, to dispose of their services at such a rate, to such persons, and in such places as they pleased?

Besides, grant that this command prohibited the sending back of *foreign* servants merely, was the any law requiring the return of servants who had escaped from the *Israelites*? There was a statute requiring the return of *property* lost, and *cattle* escaped, but none requiring the return of escaped *servants*.

Finally, these verses contain, *first*, a command, "Thou shalt not deliver," &c. *Secondly*, a declaration of the fugitive's right of *free choice*, and of God's will that he should exercise it at his own discretion; and *thirdly*, a command guarding this right, namely, "Thou shalt not oppress him," as though God had said, If you forbid him to exercise his *own choice*, as to the place and condition of his residence, it is *oppression*, and I will not tolerate it.

3. *We argue the voluntariness of servants from their peculiar opportunities and facilities for escape.* Three times every year, all the males over twelve years of age, were required to attend the public festivals. The main body were thus absent from their homes not less than three weeks each time, making nine weeks annually. As these caravans moved over the country, were there military scouts lining the way, to intercept deserters?—a corporal's guard stationed at each pass of the mountains, sentinels pacing the hill-tops, and light horse scouring the defiles? What safe contrivance had the Israelites for taking their "*slaves*" three times in a year to Jerusalem and back? When a body of slaves is moved any distance in our free and equal *republic*, they are handcuffed to keep them from running away, or

beating their drivers' brains out. Was this the *Mosaic* plan, or an improvement left for the wisdom of Solomon? The usage, doubtless, claims a paternity not less venerable and biblical! Perhaps they were lashed upon camels, and transported in bundles, or caged up, and trundled on wheels to and fro, and while at the Holy City, "lodged in jail for safe keeping," religious services *extra* being appointed, and special "ORAL instruction" for their benefit. But meanwhile, what became of the sturdy *handmaids* left at home? What hindered them from marching off in a body? Perhaps the Israelitish matrons stood sentry in rotation round the kitchens, while the young ladies scoured the country, as mounted rangers, to pick up stragglers by day, and patrolled the streets as city guards, keeping a sharp look-out at night.

4. *Their continuance in Jewish families depended upon the performance of various rites and ceremonies necessarily VOLUNTARY.*

Suppose a servant from the heathen should, upon entering a Jewish family, refuse circumcision; the question whether he shall remain a servant, is in his own hands. If a *slave*, how simple the process of emancipation! His *refusal* did the job. Or, suppose that, at any time, he should refuse to attend the tri-yearly feasts, or should eat leavened bread during the Passover, or compound the ingredients of the anointing oil, he is "cut off from the people;" *excommunicated*.

5. *We infer the voluntariness of the servants of the Patriarchs from the impossibility of their being held against their wills.* The servants of Abraham are an illustration. At one time he had three hundred and eighteen *young men* "born in his house," and probably many more *not* born in his house. The whole number of his servants of all ages, was probably MANY THOUSANDS. Doubtless, Abraham was a man of a million, and Sarah too, a right notable housekeeper; still, it is not easy to conceive how they contrived to hold so many thousand servants against their wills, unless the patriarch and his wife *took turns* in performing the Hibernian exploit of surrounding them! The neighboring tribes, instead of constituting a picket guard to hem in his servants, would have been far more likely to sweep them and him into captivity, as they did Lot and his household. Besides, Abraham had neither "Constitution," nor "compact," nor statutes, nor judicial officers to send back his fugitives, nor a truckling police to pounce

upon panic-stricken women, nor gentleman-kidnappers, suing for patronage, volunteering to howl on the track, boasting their blood-hound scent, and pledging their "honor" to hunt down and "deliver up," *provided* they had a description of the "flesh marks," and were stimulated in their chivalry by *pieces of silver*. Abraham seems also to have been sadly deficient in all the auxiliaries of family government, such as stocks, hand cuffs, foot-chains, yokes, gags, and thumb-screws. His destitution of these patriarchal indispensables is the more afflicting, when we consider his faithful discharge of responsibilities to his household, though so deplorably destitute of the needful aids.

6. *We infer that servants were voluntary, from the fact that there is no instance of an Israelitish master ever SELLING a servant.* Abraham had thousands of servants, but appears never to have sold one. Isaac "grew until he became very great," and had "great store of servants." Jacob's youth was spent in the family of Laban, where he lived a servant twenty-one years. Afterward he had a large number of servants.

When Joseph sent for Jacob to come into Egypt, the words are, "thou and thy children, and thy children's children, and thy flocks and thy herds, and ALL THAT THOU HAST." Jacob took his flocks and herds but *no servants*. Gen xlv. 10; xlvii. 6; xlvii. 1. His servants doubtless, served under their own *contracts*, and when Jacob went into Egypt, they *chose* to stay in their own country.

The government might sell *thieves*, if they had no property, until their services had made good the injury, and paid the legal fine. Ex. xxii. 3. But *masters* seem to have had no power to sell their *servants*—the reason is obvious. To give the master a *right* to sell his servant, would annihilate the servant's right of choice in his own disposal; but says the objector, To give the master a right to *buy* a servant, equally annihilates the servant's *right of choice*. Answer. It is one thing to have a right to buy a man, and a very different thing to have a right to buy him of *another* man.

Though there is no instance of a servant being bought of his, or her master, yet there are instances of young females being bought of their *fathers*. But their purchase as *servants* was their betrothal as WIVES. Exodus xxi. 7, 8. "*If a man sell his daughter to be a maid-servant, she shall not go out as the*

men-servants do. If she please not her master WHO HATH BETROTHED HER TO HIMSELF, he shall let her be redeemed^A."

^A: The comment of Maimonides on this passage is as follows:

"A Hebrew handmaid might not be sold but to one who laid himself under obligations, to espouse her to himself or to his son, when she was fit to be betrothed."—*Maimonides—Hilcoth—Obedim*, Ch. IV. Sec. XI.

Jarchi, on the same passage, says, "He is bound to espouse her and take her to be his wife for the *money of her purchase* is the money of her *espousals*."

7. *We infer that the Hebrew servant was voluntary in COMMENCING his service, because he was pre-eminently so IN CONTINUING it.* If, at the year of release, it was the servant's *choice* to remain with his master, so did the law guard his free will, that it required his ear to be bored by the judges of the land, thus making it impossible for the servant to be held in an involuntary condition. Yea, so far was his *free choice* protected, that his master was compelled to keep him, however much he might wish to get rid of him.

8. *The method prescribed for procuring servants, recognized their choice, and was an appeal to it.* The Israelites were commanded to offer them a suitable *inducement*, and then leave them to decide. They might neither seize by *force*, nor frighten them by *threats*, nor wheedle them by false pretenses, nor *borrow* them, nor *beg* them; but they were commanded to BUY them^A; that is, they were to recognize the *right* of the individuals to their own services—their right to *dispose* of them, and their right to *refuse all offers*. They might, if they pleased, refuse all applications, and thus oblige those who made them, *to do their own work*. Suppose all, with one accord, *refused* to become servants, what provision did the Mosaic law make for such an emergency? NONE.

^A: The case of thieves, whose services were sold until they had earned enough to make restitution to the person wronged, and to pay the legal penalty, *stands by itself*, and has no relation to the condition of servants.

9. *Various incidental expressions throughout the Bible, corroborate the idea that servants became such by virtue of their own contract.* Job xli. 4. is an

illustration, "*Will he (Leviathan) make a COVENANT with thee? wilt thou take him for a SERVANT forever?*"

10. *The transaction which made the Egyptians the SERVANTS OF PHAROAH, shows entire voluntariness throughout.* It is detailed in Gen. xlvii. 18-26. Of their own accord, they came to Joseph and said, "We have not aught left but our *bodies* and our lands; *buy us*;" then in the 25th verse, "*Thou hast saved our lives: let us find grace in the sight of my Lord, and we will be servants to Pharaoh.*"

11. *We argue that the condition of servants was an OPTIONAL one from the fact that RICH strangers did not become servants.* Indeed, so far were they from becoming servants themselves, that *they bought and held Jewish servants.* Lev. xxv. 47.

12. *The sacrifices and offerings which ALL were required to present, were to be made VOLUNTARILY.* Lev. i. 2, 3.

13. *Mention is often made of persons becoming servants where they were manifestly and pre-eminently VOLUNTARY.* The case of the Prophet Elisha is one. 1 Kings xix. 21; 2 Kings iii. 11. Elijah was his *master*. The original word, translated master, is the same that is so rendered in almost every instance where masters are spoken of throughout the Mosaic and patriarchal systems. It is translated *master* eighty-five times in our English version. Moses was the servant of Jethro. Exodus iii. 1. Joshua was the servant of Moses. Numbers xi. 28. Jacob was the servant of Laban. Genesis xxix, 18-27.

IV. WERE THE SERVANTS FORCED TO WORK WITHOUT PAY?

Having already shown that the servants became and continued such *of their own accord*, it would be no small marvel if they *chose* to work without pay. Their becoming servants, pre-supposes *compensation* as a motive.

That they *were paid* for their labor, we argue,

1. *Because, while Israel was under the Mosaic system, God rebuked in thunder, the sin of using the labor of others without wages.* "Wo unto him

that buildeth his house by unrighteousness, and his chambers by wrong; that useth his neighbor's service without wages, and giveth him not for his work." Jer. xxii. 13. Here God testifies that to use the service of others without wages is "unrighteousness," and He commissions his "wo" to burn upon the doer of the "wrong." This "wo" was a permanent safeguard of the Mosaic system. The Hebrew word *Rea*, here translated *neighbor*, does not mean one man, or class of men, in distinction from others, but *any one with whom we have to do*—all descriptions of persons, not merely servants and heathen, but even those who prosecute us in lawsuits, and enemies while in the act of fighting us—"As when a man riseth against his NEIGHBOR and slayeth him." Deut. xxii. 26. "Go not forth hastily to strive, lest thou know not what to do in the end thereof, when thy NEIGHBOR hath put thee to shame." Prov. xxv. 8. "Thou shalt not bear false witness against thy NEIGHBOR." Exod. xx. 16. "If any man come presumptuously upon his NEIGHBOR to slay him with guile." Exod. xxi. 14. In these, and in scores of similar cases, *Rea* is the original word.

2. *We have the testimony of God, that in our duty to our fellow men, ALL THE LAW AND THE PROPHETS hang upon this command, "Thou shalt love thy neighbor as thyself."* Our Saviour, in giving this command, quoted *verbatim* one of the laws of the Mosaic system. Lev. xix. 18. In the 34th verse of the same chapter, Moses commands obedience to this law in all the treatment of strangers, "*The stranger that dwelleth with you shall be unto you as one born among you, and THOU SHALT LOVE HIM AS THYSELF.*" If it be loving others *as ourselves*, to make them work for us without pay; to rob them of food and clothing, as well as wages, would be a stranger illustration still of the law of love! Super-disinterested benevolence! And if it be doing to others as we would have them do to us, to make them work for *our own* good alone, Paul should be called to order for his hard sayings against human nature, especially for that libellous matter in Ephes. v. 29, "*No man ever yet hated his own flesh, but nourisheth and cherisheth it.*"

3. *As persons became servants FROM POVERTY, we argue that they were compensated, since they frequently owned property, and sometimes a large amount.* Ziba, the servant of Mephibosheth, gave David a princely present, "An hundred loaves of bread, and an hundred bunches of raisins, and an hundred of summer fruits, and a bottle of wine." 2 Sam. xvi. 1. The extent

of his possessions can be inferred from the fact, that though the father of fifteen sons, he still employed twenty servants, of whom he was the master.

A case is stated in Leviticus xxv. 47-55, where a servant, reduced to poverty, sells himself; and it is declared that afterward he may be *redeemed*, either by his kindred, or by HIMSELF. As he was forced to sell himself from sheer poverty he must not only have acquired property *after* he became a servant, but a considerable sum.

If it had not been common for servants to possess, and acquire property, over which they had the exclusive control, Gehazi, the servant of Elisha, would hardly have ventured to take a large sum of money, (nearly \$3000^A) from Naaman, (2 Kings v. 22, 23.) As it was procured by deceit, he was anxious to conceal the means used in getting it; but if the Israelitish servants, like our slaves, could "own nothing, nor acquire any thing," to embark in such an enterprise would have been consummate stupidity. The fact of having in his possession two talents of silver, would of itself convict him of theft^B. But since the possession and use of property by servants, was common under the Mosaic system, he might have it, and invest or use it, without attracting special attention. And that consideration alone would have been a strong motive to the act. His master, while he rebukes him for using such means to get the money, not only does not take it from him, but seems to expect that he would invest it in real estate, and cattle, and would procure servants with it. 2 Kings v. 26. In 1 Sam. ix. 8, we find the servant of Saul having money, and relieving his master in an emergency. Arza, the servant of Elah, was the *owner of a house*. That it was spacious and somewhat magnificent, would be a natural inference from the fact that it was a resort of the king. 1 Kings xvi. 9. The case of the Gibeonites, who, after they became servants, still occupied their cities, and remained, in many respects, a distinct people for centuries; and that of the 150,000 Canaanites, the *servants* of Solomon, who worked out their tribute of bond-service in levies, periodically relieving each other, while preparing the materials for the temple, are additional illustrations of independence in the acquisition and ownership of property.

^A: Though we have not sufficient data to decide with accuracy upon the *relative* value of that sum, *then* and *now*, yet we have enough to warrant us

in saying that two talents of silver had far more value *then* than three thousand dollars have *now*.

B: Whoever heard of the slaves in our southern states stealing a large amount of money? They "*know how to take care of themselves*" quite too well for that. When they steal, they are careful to do it on such a *small* scale, or in the taking of *such things* as will make detection difficult. No doubt they steal now and then a little, and a gaping marvel would it be if they did not. Why should they not follow in the footsteps of their masters and mistresses? Dull scholars indeed! if, after so many lessons from *proficients* in the art, who drive the business by *wholesale*, they should not occasionally copy their betters, fall into the *fashion*, and try their hand in a small way, at a practice which is the *only permanent and universal* business carried on around them! Ignoble truly! never to feel the stirrings of high impulse, prompting them to imitate the eminent pattern set before them in the daily vocation of "Honorables" and "Excellencies," and to emulate the illustrious examples of Doctor of Divinity and *Right* and *Very Reverends*! Hear President Jefferson's testimony. In his notes of Virginia, speaking of slaves, he says, "That disposition to theft with which they (the slaves) have been branded, must be ascribed to their *situation*, and not to any special depravity of the moral sense. It is a problem which I give the master to solve, whether the religious precepts against the violation of property were not framed for HIM as well as for his slave—and whether the slave may not as justifiably take a little from one who has taken ALL from him, as he may *slay* one who would slay him" See Jefferson's Notes on Virginia, pp. 207-8

4. *Heirship*—Servants frequently inherited their master's property; especially if he had no sons, or if they had dishonored the family. This seems to have been a general usage.

The cases of Eliezer, the servant of Abraham; Ziba, the servant of Mephibosheth, Jarha an Egyptian, the servant of Sheshan, and the husband of his daughter; 1 Chron. ii. 34, 35, and of the *husbandmen* who said of their master's son, "*this is the HEIR*, let us kill him, *and the INHERITANCE WILL BE OURS*." Mark xii. 7, are illustrations. Also the declaration in Prov. xvii. 2—"A *wise servant shall have rule over a son that causeth shame, and SHALL HAVE PART OF THE INHERITANCE AMONG THE BRETHREN*." This passage seems to give *servants*

precedence as heirs, even over the *wives* and *daughters* of their masters. Did masters hold by force, and *plunder of earnings*, a class of persons, from which, in frequent contingencies, they selected both heirs for their property, and husbands for their daughters?

5. ALL were required to present offerings and sacrifices. Deut. xvi. 15, 17. 2 Chron. xv. 9-11. Numb. ix. 13.

Servants must have had permanently, the means of *acquiring* property to meet these expenditures.

6. *Those Hebrew servants who went out at the seventh year, were provided by law with a large stock of provisions and cattle.* Deut. xv. 11-14. "*Thou shalt furnish him liberally out of thy flock, and out of thy floor, and out of thy wine press, of that wherewith the Lord thy God hath blessed thee, thou shalt give him^A.*" If it be objected, that no mention is made of the servants from the strangers, receiving a like bountiful supply, we answer, neither did the most honorable class of the *Israelitish* servants, the free-holders; and for the same reason, *they did not go out in the seventh year*, but continued until the jubilee. If the fact that no mention is made of the Gentile servants receiving such a *gratuity* proves that they were robbed of their *earnings*; it proves that the most valued class of *Hebrew* servants were robbed of theirs also, a conclusion too stubborn for even pro-slavery masticators, however unscrupulous.

^A: The comment of Maimonides on this passage is as follows—"Thou shalt furnish him liberally,' &c. That is to say, '*Loading ye shall load him.*' likewise every one of his family, with as much as he can take with him in abundant benefits. And if it be avariciously asked, How much must I give him? I say unto you, *not less than thirty shekels*, which is the valuation of a servant, as declared in Exodus xxi. 32"—Maimonides, Hilcoth, Obedim, Chapter ii. Section 3.

7. *The servants were BOUGHT. In other words, they received compensation for their services in advance.* Having shown, under a previous head, that servants *sold themselves*, and of course received the compensation for themselves, (except in cases where parents hired out the time of their children until they became of age^B.) a mere reference to the fact in this place is all that is required for the purposes of this argument.

B: Among the Israelites, girls became of age at twelve, and boys at thirteen years.

8. *We infer that servants were paid, because we find masters at one time having a large number of servants, and afterwards none, without any intimation that they were sold.* The wages of servants would enable them to set up in business for themselves. Jacob, after being the servant of Laban for twenty-one years, became thus an independent herdsman, and was the master of many servants. Gen. xxx. 43, and xxxii. 15. But all these servants had left him before he went down into Egypt, having doubtless acquired enough to commence business for themselves. Gen. xlv. 10, 11, and xlvi. 1-7, 32.

9. *God's testimony to the character of Abraham.* Genesis xviii. 19. "*For I know him that he will command his children and his household after him, and they shall keep THE WAY OF THE LORD TO DO JUSTICE AND JUDGMENT.*" We have here God's testimony, that Abraham taught his servants "the way of the Lord." What was the "way of the Lord" respecting the payment of wages where service was rendered? "*Wo unto him that useth his neighbor's service without wages!*" Jer. xxii. 13. "*Masters, give unto your servants that which is just and equal.*" Col. iv. 1. "*Render unto all their DUES.*" ROM. xiii. 7. "*The laborer is worthy of his hire.*" Luke x. 7. How did Abraham teach his servants to "*do justice*" to others? By doing *injustice to them*? Did he exhort them to "render to all their dues" by keeping back *their own*? Did he teach them that "the laborer was worthy of his hire" by robbing them of *theirs*? Did he beget in them a reverence for the eighth commandment by pilfering all their time and labor? Did he teach them "not to defraud" others "in any matter" by denying *them* "what was just and equal?" If each of Abraham's pupils under such a catechism did not become a very *Aristides* in justice, then an illustrious example, patriarchal dignity, and *practical* lessons, can make but slow headway against human perverseness!

10. *Specific precepts of the Mosaic law enforcing general principles.* Out of many, we select the following:

(1.) "*Thou shall not muzzle the ox that treadeth out the corn,*" or literally, *while he thresheth.* Deut. xxv. 4. Here is a general principle applied to a

familiar case. The ox representing all domestic animals. Isaiah xxx. 24. A *particular* kind of service—all kinds; and a law requiring an abundant provision for the wants of an animal ministering to man in a *certain* way,—*a general principle of treatment covering all times, modes, and instrumentalities of service.* The object of the law was, not merely to enjoin tenderness towards brutes, but to inculcate the duty of *rewarding those who serve us*, showing that they who labor for others, are entitled to what is just and equal in return; and if such care is enjoined, by God, not merely for the ample sustenance, but for the *present enjoyment of a brute*, what would be a meet return for the services of *man*? MAN, with his varied wants, exalted nature and immortal destiny! Paul tells us expressly, that the principle which we have named, lies at the bottom of the statute. See 1 Corinthians ix. 9, 10—"For it is written in the law of Moses, *Thou shalt not muzzle the mouth of the ox that treadeth out the corn. Doth God take care for oxen? Or saith he it altogether for OUR sakes? that he that ploweth should plow in HOPE, and that he that thresheth in hope should be PARTAKER OF HIS HOPE.*"

(2.) "*If thy brother be waxen poor, and fallen in decay with thee, then thou shalt relieve him. YEA, THOUGH HE BE A STRANGER OR a SOJOURNER, that he may live with thee. Take thou no usury of him, or increase, but fear thy God. Thou shalt not give him thy money upon usury, nor lend him thy victuals for increase.*" Lev. xxv. 35-37. Or, in other words, "relief at your hands is his right, and your duty—you shall not take advantage of his necessities, but cheerfully supply them." Now, we ask, by what process of pro-slavery legerdemain, this benevolent regulation can be made to be in *keeping* with the doctrine of WORK WITHOUT PAY? Did God declare the poor stranger entitled to RELIEF, and in the same breath, *authorize them to "use his services without wages;"* force him to work, and ROB HIM OF ALL HIS EARNINGS? Judge ye.

V.—WERE MASTERS THE PROPRIETORS OF SERVANTS AS THEIR LEGAL PROPERTY?

The discussion of this topic has been already somewhat anticipated under the preceding heads; but a variety of considerations, not within the range of our previous inquiries, remain to be noticed.

1. *Servants were not subjected to the uses, nor liable to the contingencies of property.*

(1.) *They were never taken in payment for their masters' debts*, though children were sometimes taken (without legal authority) for the debts of a father. 2 Kings iv. 1; Job xxiv. 9; Isaiah l. 1; Matt. xviii. 25.

Cases are recorded to which creditors took from debtors property of all kinds, to satisfy their demands. In Job xxiv. 3, cattle are taken; in Prov. xxii 27, household furniture; in Lev. xxv. 25-28, the productions of the soil; in Lev. xxv. 27-30, houses; in Exodus xxii. 26-29, and Deut. xxiv. 10-13, and Matt. v. 40, clothing; but *servants* were taken in *no instance*.

(2.) *Servants were never given as pledges. Property* of all sorts was given and held in pledge. We find in the Bible, household furniture, clothing, cattle, money, signets, and personal ornaments, with divers other articles of property, used as pledges for value received. But no *servants*.

(3.) *All lost PROPERTY was to be restored.* "Oxen, asses, sheep, raiment, and whatsoever lost things," are specified—servant *not*. Deut. xxii. 13. Besides, the Israelites were expressly forbidden to take back the runaway servant to his master. Deut. xxiii. 15.

(4.) *The Israelites never gave away their servants as presents.* They made princely presents of great variety. Lands, houses, all kinds of animals, merchandize, family utensils, precious metals, and grain, armor, &c. are among their recorded *gifts*. Giving presents to superiors and persons of rank when visiting them, and at other times, was a standing usage. 1 Sam. x. 27; 1 Sam. xvi. 20; 2 Chron. xvii. 5. Abraham to Abimelech, Gen. xxi. 27; Jacob to the viceroy of Egypt. Gen. xliii. 11; Joseph to his brethren and father, Gen. xlv. 22, 23; Benhadad to Elisha, 2 Kings viii. 8, 9; Ahaz to Tiglath Pileser, 2 Kings xvi. 8; Solomon to the Queen of Sheba, 1 Kings, x. 13; Jeroboam to Ahijah, 1 Kings xiv. 3; Asa to Benhadad, 1 Kings xv. 18, 19. But no servants were given as presents—though that was a prevailing fashion in the surrounding nations. Gen. xii. 16; Gen. xx. 14.

OBJECTION 1. *Laban GAVE handmaids to his daughters, Jacob's wives.* Without enlarging on the nature of the polygamy then prevalent, it is enough to say that the handmaids of wives, at that time, were themselves

regarded as wives, though of inferior dignity and authority. That Jacob so regarded his handmaids, is proved by his curse upon Reuben, (Gen. xlix. 4, and Chron. v. 1) also by the equality of their children with those of Rachel and Leah. But had it been otherwise—had Laban given them *as articles of property*, then, indeed, the example of this "good old patriarch and slaveholder," Saint Laban, would have been a fore-closer to all argument.

Ah! We remember his jealousy for *religion*—his holy indignation when he found that his "GODS" were stolen! How he mustered his clan, and plunged over the desert in hot pursuit, seven days, by forced marches; how he ransacked a whole caravan, sifting the contents of every tent, little heeding such small matters as domestic privacy, or female seclusion, for lo! the zeal of his "IMAGES" had eaten him up!

No wonder that slavery, in its Bible-navigation, drifting dismantled before the free gusts, should scud under the lee of such a pious worthy to haul up and refit; invoking his protection, and the benediction of his "GODS!"

OBJECTION 2. *Servants were enumerated in inventories of property.* If that proves *servants* property, it proves *wives* property. "*Thou shalt not covet thy neighbor's house, thou shalt not covet thy neighbor's WIFE, nor his man servant, nor his maid-servant, nor his ox, nor his ass, nor any thing that is thy neighbor's*" EXODUS xx. 17. An examination of all the places in which servants are included among beasts, chattels, &c., will show, that in inventories of *mere property*, servants are not included, or if included, it is in such a way, as to show that they are not regarded as *property*. Eccl. ii. 7, 8. But when the design is to show, not merely the wealth but the *greatness* of any personage, that he is a man of distinction, a ruler, a prince, servants are spoken of, as well as property. In a word, if *riches* alone are spoken of, no mention is made of servants; if *greatness*, servants and property. Gen. xiii. 2. "*And Abraham was very rich in cattle, in silver and in gold.*" No mention of *servants*. So in the fifth verse; Lot's riches are enumerated, "*And Lot also had flocks, and herds, and tents.*" In the seventh verse servants are mentioned, "*And there was a strife between the HERDMEN of Abraham's cattle and the HERDMEN of Lot's cattle*". See also Josh. xxii. 8; Gen. xxxiv. 23; Job. xlii. 12; 2 Chron. xxi. 3; xxxii. 27-29; Job 1. 3-5; Deut. viii. 12-17; Gen. xxiv. 35, and xxvi. 13, and xxx. 43.

Divers facts dropped incidentally, show that when servants are mentioned in connection with property, it is in such a way as to *distinguish* them from it. When Jacob was about to leave Laban, his wives say, "All the *riches* which thou hast taken from our father, that is ours and our children's." Then follows an inventory of property. "All his cattle," "all his goods," "the cattle of his getting," &c. He had a large number of servants at the time, *but they are not included with his property*. Compare Gen. xxx. 43, with Gen. xxxi. 16-18.

When he sent messengers to Esau, in order to secure his respect, and impress him with an idea of his state and sway, he bade them tell him not only of *his RICHES*, but of his GREATNESS; that Jacob had "*oxen, and asses, and flocks, and men servants, and maid servants*." Gen. xxxii. 4, 5. Yet in the present which he sent, there were no servants; though he seems to have aimed to give it as much variety as possible. Gen. xxxii. 14, 15; see also Gen. xxxvi. 6, 7; Gen. xxxiv. 23. As flocks and herds were the *staples* of wealth, a large number of servants *presupposed* large possessions of cattle, which would require many herdsmen. Further. When servants are spoken of in connection with *mere property*, the terms used to express the latter do not include the former.

The Hebrew word *Mickna* is an illustration. It is a derivative of *Kana*, to procure, to buy, and its meaning is, a *possession, wealth, riches*. It occurs more than forty times in the Old Testament—and is applied always to *mere property*—generally to domestic animals, but *never* to servants. In some instances, servants are mentioned in *distinction* from the *Mickna*. See Gen. xii. 5. "*And Abraham took Sarah his wife, and Lot his brother's son. And all their SUBSTANCE that they had gathered, and the souls that they had gotten in Haran, and they went forth to go into the land of Canaan.*" *Substance gathered and souls gotten!* Many will have it, that these *souls* were a part of Abraham's *substance* (notwithstanding the pains here taken to separate them from it)—that they were *slaves*—probably captives in war, and now, by right of conquest, taken with him in his migration as part of his family effects. Who but slaveholders, either actually, or in heart, would torture into the principle and practice of slavery, such a harmless phrase as "*the souls that they had gotten?*" Until the slave trade breathed its haze upon the vision of the church, and smote her with palsy and decay, commentators saw no slavery in, "The souls that they had gotten." In the

Targum of Onkelos^{[A](#)} it is thus rendered, "The souls whom they had brought to obey the law in Haran." In the Targum of Jonathan, thus: "The souls whom they had made proselytes in Haran." In the Targum of Jerusalem, "The souls proselyted in Haran." Jarchi, placed by Jewish Rabbis at the head of their commentators, thus renders it: "The souls whom they had brought under the Divine wings." Jerome, one of the most learned of the Christian fathers: "The persons whom they had proselyted." The Persian version thus gives the whole verse, "And Abraham took Sarah his wife, and Lot his brother's son, and all their wealth which they had accumulated, and the souls which they had *made*." The Vulgate version thus translates it, "Universam substantiam quam possederant et animas quas fecerant in Haran." "The entire wealth which they possessed, and the souls which they had made." The Syriac thus, "All their possessions which they possessed, and the souls which they had made in Haran." The Arabic, "All their property which they had acquired, and the souls whom they had made in Haran." The Samaritan, "All the wealth which they had gathered, and the souls which they had made in Haran." Menochius, a commentator who wrote before our present translation of the English Bible, renders it as follows:—"Quas de idolotria converterunt^{[B](#)}." "Those whom they have converted from idolatry."—Paulus Fagius^{[C](#)}. "Quas instituerant in religione."—"Those whom they had instructed in religion."—Luke Franke, a German commentator who lived two centuries ago. "Quas legi subjicerant."—"Those whom they had brought to obey the law."

^{[A](#)}: The Targums are Chaldee paraphrases of parts of the Old Testament. The Targum of Onkelos is for the most part, a very accurate and faithful translation of the original, and was probably made at about the commencement of the Christian era. The Targum of Jonathan Ben Uzziel bears about the same date. The Targum of Jerusalem was probably about five hundred years later.

The Israelites, during their long captivity in Babylon, lost as a body, their knowledge of their own language. These translations of the Hebrew Scriptures into the Chaldee, the language which they acquired in Babylon, were thus called for by the necessity of the case.

^{[B](#)}: See his "Brevis explicatio sensus literalis totius Scripture."

C: This eminent Hebrew scholar was invited to England by Cranmer, then Archbishop of Canterbury, to superintend the translation of the Bible into English, under the patronage of Henry the Eighth. He had hardly commenced the work when he died. This was nearly a century before the date of our present translation.

2. The condition of servants in their masters' families, the privileges which they shared in common with the children, and their recognition as equals by the highest officers of the government—make the doctrine that they were mere COMMODITIES, an absurdity. The testimony of Paul, in Gal. iv. 1, gives an insight into the condition of servants. *"Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all."*

That Abraham's servants were voluntary,—that their interests were identified with those of their master's family—that they were regarded with great affection by the household, and that the utmost confidence was reposed in them, is shown in the arming of 318 of them for the recovery of Lot and his family from captivity. See Gen. xiv. 14, 15.

When Abraham's servant went to Padanaram, the young Princess Rebekah did not disdain to say to him, "Drink, MY Lord," as "she hasted and let down her pitcher upon her hand, and gave him drink," and "she hasted and emptied her pitcher, and ran again unto the well, and drew for all his camels." Laban, the brother of Rebekah, prepared the house for his reception, *"ungirded his camels, and brought him water to wash his feet, and the men's feet that were with him!"*

In the 9th chapter of 1 Samuel, we have an account of a high festival in the city of Zuph, at which Samuel, the chief judge and ruler in Israel, presided. None sat down at the feast but those that were bidden. And only "about thirty persons" were invited. Quite a select party!—the elite of the city of Zuph! Saul and his servant arrived at Zuph just as the party was assembling; and *both* of them, at Samuel's solicitation, accompany him as invited guests. *"And Samuel took Saul and his SERVANT, and brought THEM into the PARLOR(!) and made THEM sit in the CHIEFEST SEATS among those that were bidden."* A servant invited by the chief judge, ruler, and prophet in Israel, to dine publicly with a select party, in company with his master, who

was *at the same time anointed King of Israel*; and this servant introduced by Samuel into the PARLOR, and assigned, with his master, to the *chiefest seat* at the table! This was "*one of the servants*" of *Kish*, Saul's father; not the *steward* or the *chief* of them—not at all a *picked* man, but "*one of the servants*;" *any* one that could be most easily spared, as no endowments specially rare would be likely to find scope in looking after asses.

Again: we learn from 1 Kings xvi. 8, 9, that Elah, the King of Israel, was slain by Zimri, one of his chief officers, at a festive entertainment, in the house of Arza, his steward, or head servant, with whom he seems to have been on terms of familiarity. Without detailing other cases, we refer the reader to the intercourse between Gideon and his servant.—Judges vii. 10, 11.—Jonathan and his servant.—1 Samuel xiv. 1-14.—Elisha and his servant.

3. *The condition of the Gibeonites, as subjects of the Hebrew commonwealth, shows that they were neither articles of property, nor even INVOLUNTARY servants.* The condition of the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim, under the Israelites, is quoted in triumph by the advocates of slavery; and truly they are right welcome to all the crumbs that can be gleaned from it. Milton's devils made desperate snatches at fruit that turned to ashes on their lips. The spirit of slavery raves under tormenting gnawings, and casts about in blind phrenzy for something to ease, or even to *mock* them. But for this, it would never have clutched at the Gibeonites, for even the incantations of the demon cauldron, could not extract from their case enough to tantalize starvation's self. But to the question. What was the condition of the Gibeonites under the Israelites?

(1.) *It was voluntary.* It was their own proposition to Joshua to become servants. Joshua ix. 8, 11. Their proposition was accepted, but the kind of service which they should perform, was not specified until their gross imposition came to light; they were then assigned to menial offices in the tabernacle.

(2.) *They were not domestic servants in the families of the Israelites.* They still continued to reside in their own cities, cultivating their own fields, tending their flocks and herds, and exercising the functions of a *distinct*, though not independent community. They were *subject* to the Jewish nation

as *tributaries*. So far from being distributed among the Israelites, their family relations broken up, and their internal organization as a distinct people abolished, they seem to have remained a separate, and, in some respects, an independent community for many centuries. When they were attacked by the Amorites, they applied to the Israelites as confederates for aid—it was promptly rendered, their enemies routed, and themselves left unmolested in the occupation of their cities, while all Israel returned to Gilgal. Joshua x. 6-18. Long afterwards, Saul slew some of them, and God sent upon Israel a three years' famine for it. David said to the Gibeonites, "What shall I do for you, and wherewith shall I make the atonement, that ye may bless the inheritance of the Lord?" At their demand, he delivered up to them, seven of the royal family, five of them the sons of Michal, his own former wife. 2 Samuel xxi. 1-9. The whole transaction was a formal recognition of the Gibeonites as a separate people. There is no intimation that they served families, or individuals of the Israelites, but only the "house of God," or the Tabernacle. This was established first at Gilgal, a day's journey from the cities of the Gibeonites; and then at Shiloh, nearly two days' journey from them; where it continued about 350 years. During all this period, the Gibeonites inhabited their ancient cities and territory. Only a few, comparatively, could have been absent from their cities at any one time in attendance on the tabernacle.

(1.) Whenever allusion is made to them in the history, the main body are spoken of as *at home*.

(2.) It is preposterous to suppose that their tabernacle services could have furnished employment for all the inhabitants of these four cities. One of them "was a great city, as one of the royal cities;" so large, that a confederacy of five kings, apparently the most powerful in the land, was deemed necessary for its destruction. It is probable that the men were divided into classes, and thus ministered at the tabernacle in rotation—each class a few days or weeks at a time. This service was their *national tribute* to the Israelites, rendered for the privilege of residence and protection under their government. No service seems to have been required of the *females*. As these Gibeonites were Canaanites, and as they had greatly exasperated the Israelites by impudent imposition, hypocrisy, and lying, we might assuredly expect that they would reduce *them* to the condition of chattels and property, if there was *any* case in which God permitted them to do so.

7. *Because, throughout the Mosaic system, God warns them against holding their servants in such a condition as they were held in by the Egyptians.* How often are the Israelites pointed back to the grindings of their prison-house! What motives to the exercise of justice and kindness towards their servants, are held out to their fears in threatened judgements; to their hopes in promised good; and to all within them that could feel, by those oft repeated words of tenderness and terror! "For ye were bondmen in the land of Egypt"—waking anew the memory of tears and anguish, and of the wrath that avenged them.

That the argument derived from the condition of the Israelites in Egypt, and God's condemnation of it, may be appreciated, it is important that the Egyptian bondage should be analyzed. We shall then be able to ascertain, of what rights the Israelites were plundered, and what they retained.

EGYPTIAN BONDAGE ANALYZED. (1.) *The Israelites were not dispersed among the families of Egypt, the property of individual owners^A.* They formed a *separate* community. See Gen. xlv. 35. Ex. viii. 22, 24, and ix. 26, and x. 23, and xi. 7, and ii. 9, and xvi. 22, and xvii. 5.

^A: The Egyptians evidently had *domestic* servants living in their families; these may have been slaves; allusion is made to them in Exodus ix. 14, 20, 21. But none of the Israelites were included in this class.

(2.) *They had the exclusive possession of the land of Goshen^B, one of the richest and most productive parts of Egypt.* Gen. xlv. 18, and xlvii. 6, 11, 27. Ex. xii. 4, 19, 22, 23, 27.

^B: The land of Goshen was a large tract of country, east of the Pelusian arm of the Nile, and between it and the head of the Red Sea, and the lower border of Palestine. The probable centre of that portion, occupied by the Israelites, could hardly, have been less than 60 miles from the city. From the best authorities it would seem that the extreme western boundary of Goshen must have been many miles distant from Egypt. See "Exodus of the Israelites out of Egypt," an able article by Professor Robinson, in the Biblical Repository for October, 1832.

(3.) *They lived in permanent dwellings.* These were *houses*, not *tents*. In Ex. xii. 6, the two side *posts*, and the upper door *posts* of the houses are

mentioned, and in the 22d, the two side posts and the lintel. Each family seems to have occupied a house *by itself*—Acts vii. 20, Ex. xii. 4—and from the regulation about the eating of the Passover, they could hardly have been small ones—Ex. xii. 4—and probably contained separate apartments, and places for seclusion. Ex. ii. 2, 3; Acts vii. 20. They appear to have been well apparelled. Ex. xii. 11. To have had their own burial grounds. Ex. xiii. 19, and xiv. 11.

(4.) *They owned "a mixed multitude of flocks and herds," and "very much cattle."* Ex. xii. 32, 37, 38.

(5.) They had their own form of government, and preserved their tribe and family divisions, and their internal organization throughout, though still a province of Egypt, and *tributary* to it. Ex. ii. 1, and xii. 19, 21, and vi. 14, 25, and v. 19, and iii. 16, 18.

(6.) *They seem to have had in a considerable measure, the disposal of their own time,*—Ex. xxiii. 4, and iii. 16, 18, and xii. 6, and ii. 9, and iv. 27, 29-31. Also to have practised the fine arts. Ex. xxxii. 4, and xxxv. 32-35.

(7.) *They were all armed.* Ex. xxxii. 27.

(8.) *All the females seem to have known something of domestic refinements; they were familiar with instruments of music, and skilled in the working of fine fabrics.* Ex. xv. 20, and 35, 36.

(9.) *They held their possessions independently, and the Egyptians seem to have regarded them as inviolable.* This we infer from the fact that there is no intimation that the Egyptians dispossessed them of their habitations, or took away their flocks, or herds, or crops, or implements of agriculture, or any article of property.

(10.) *Service seems to have been exacted from none but adult males.* Nothing is said from which the bond service of females could be inferred; the hiding of Moses three months by his mother, and the payment of wages to her by Pharaoh's daughter, go against such a supposition. Ex. ii. 29.

(11.) So far from being fed upon a given allowance, their food was abundant, and had great variety. "They sat by the flesh-pots," and "did eat bread to the full." Ex. xvi. 3, and xxiv. 1, and xvii. 5, and iv. 29, and vi. 14.

Also, "they did eat fish freely, and cucumbers, and melons, and leeks, and onions, and garlic." Num. xi. 4, 5, and x. 18, and xx. 5.

(12.) *That the great body of the people were not in the service of the Egyptians, we infer* (1) from the fact, that the extent and variety of their own possessions, together with such a cultivation of their crops as would provide them with bread, and such care of their immense flocks and herds, as would secure their profitable increase, must have furnished constant employment for the main body of the nation.

(2.) During the plague of darkness, God informs us that "ALL the children of Israel had light in their dwellings." We infer that they were *there* to enjoy it.

(3.) It seems improbable that the making of brick, the only service named during the latter part of their sojourn in Egypt, could have furnished permanent employment for the bulk of the nation. See also Ex. iv. 29-31.

Besides, when Eastern nations employed tributaries, it was, as now, in the use of the levy, requiring them to furnish a given quota, drafted off periodically, so that comparatively but a small portion of the nation would be absent *at any one time*.

Probably there was the same requisition upon the Israelites for one-fifth part of the proceeds of their labor, that was laid upon the Egyptians. See Gen. xlvii. 24, 26. Instead of taking it out of their *crops*, (Goshen being better for *pasturage* than crops) they exacted it of them in brick making; and it is quite probable that only the *poorer* Israelites were required to work for the Egyptians at all, the wealthier being able to pay their tribute, in money. See Exod. iv. 27-31.

This was the bondage in Egypt. Contrast it with American slavery. Have our slaves "very much cattle," and "a mixed multitude of flocks and herds?" Do they live in commodious houses of their own? Do they "*sit by the flesh-pots*," "*eat fish freely*," and "*eat bread to the full*?" Do they live in a separate community, at a distance from their masters, in their distinct tribes, under their own rulers and officers? Have they the exclusive occupation of an extensive and fertile tract of country for the culture of their own crops, and for rearing immense herds of *their own* cattle—and all these held

independently of their masters, and regarded by them as inviolable? Are our female slaves free from all exactions of labor and liabilities of outrage?—and whenever employed, are they paid wages, as was the Israelitish woman, when employed by the king's daughter? Exod. ii. 9. Have the females entirely, and the males to a considerable extent, the disposal of their own time? Have they the means for cultivating social refinements, for practising the fine arts, and for intellectual and moral improvement?

THE ISRAELITES, UNDER THE BONDAGE OF EGYPT, ENJOYED ALL THESE RIGHTS AND PRIVILEGES. True, "*their lives were made bitter, and all the service wherein they made them serve was with rigor.*" But what was that, when compared with the incessant toil of American slaves, the robbery of all their time and earnings, and even the "power to own any thing, or acquire any thing"—the "quart of corn a day," the legal allowance of food^A!—their *only* clothing for one half the year, "*one shirt and one pair of pantaloons*"^B!—the *two hours and a half* only for rest and refreshment in the twenty-four^C!—their dwellings, *hovels*, unfit for human residence, commonly with but one apartment, where both sexes and all ages herd promiscuously at night, like the beasts of the field. Add to this, the mental ignorance, and moral degradation; the daily separations of kindred, the revelries of lust, the lacerations and baptisms of blood, sanctioned by the laws of the South, and patronized by its public sentiment. What, we ask, was the bondage of Egypt when compared with this? And yet for *her* oppression of the poor, God smote her with plagues, and trampled her as the mire, till she passed away in his wrath, and the place that knew her in her pride, knew her no more. Ah! "*I have seen the afflictions of my people, and I have heard their groanings, and am come down to deliver them.*" HE DID COME, and Egypt sank, a ruinous heap, and her blood closed over her.

^A: The law of North Carolina. See Haywood's Manual, 524-5

^B: The law of Louisiana. See Martin's Digest, 610.

^C: The whole amount of time secured by the law of Louisiana. See Act of July 7, 1806. Martin's Digest, 610-12

If such was God's retribution for the oppression of heathen Egypt, of how much sorer punishment shall a Christian people be thought worthy, who

cloak with religion, a system, in comparison with which the bondage of Egypt dwindles to nothing?

Let those believe who can, that God gave his people permission to hold human beings, robbed of *all* their rights, while he threatened them with wrath to the uttermost, if they practised the *far lighter* oppression of Egypt—which robbed its victims of only the *least* and *cheapest* of their rights, and left the *females* unplundered even of these. What! *Is God divided against himself?* When he had just turned Egypt into a funeral pile; while his curse yet blazed upon her unburied dead, and his bolts still hissed amidst her slaughter, and the smoke of her torment went upwards because she had "ROBBED THE POOR," did He license the VICTIMS of robbery to rob the poor of ALL? As *Lawgiver*, did he *create* a system tenfold more grinding than that, for which he had just hurled Pharaoh headlong, and cloven down his princes, and overwhelmed his hosts, and blasted them with His thunder, till "hell was moved to meet them at their coming?"

Having touched upon the general topics which we design to include in this inquiry, we proceed to examine various Scripture facts and passages, which will doubtless be set in array against the foregoing conclusions.

OBJECTIONS CONSIDERED.

The advocates of slavery are always at their wits end when they try to press the Bible into their service. Every movement shows that they are hard-pushed. Their odd conceits and ever varying shifts, their forced constructions, lacking even plausibility, their bold assumptions, and blind guesswork, not only proclaim their *cause* desperate, but themselves. Some of the Bible defences thrown around slavery by ministers of the Gospel, do so torture common sense, Scripture, and historical fact, that it were hard to tell whether absurdity, fatuity, ignorance, or blasphemy, predominates, in compound. Each strives so lustily for the mastery, it may be set down a drawn battle.

How often has it been set up in type, that the color of the negro is the *Cain-mark*, propagated downward. Doubtless Cain's posterity started an opposition to the ark, and rode out the flood with flying streamers! Why

should not a miracle be wrought to point such an argument, and fill out for slaveholders a Divine title-deed, vindicating the ways of God to men?

OBJECTION 1. "*Cursed be Canaan, a servant of servants shall he be unto his brethren.*" Gen. i. 25.

This prophecy of Noah is the vade mecum of slaveholders, and they never venture abroad without it. It is a pocket-piece for sudden occasion—a keepsake to dote over—a charm to spell-bind opposition, and a magnet to attract "whatsoever worketh abomination, or maketh a lie." But closely as they cling to it, "cursed be Canaan" is a poor drug to stupify a throbbing conscience—a mocking lullaby, vainly wooing slumber to unquiet tossings, and crying "Peace, be still," where God wakes war, and breaks his thunders.

Those who plead the curse on Canaan to justify negro slavery, *assume* all the points in debate.

1. That the condition prophesied was *slavery*, rather than the mere *rendering of service* to others, and that it was the bondage of *individuals* rather than the condition of a *nation tributary* to another, and in *that* sense its *servant*.

2. That the *prediction* of crime *justifies* it; that it grants absolution to those whose crimes fulfil it, if it does not transform the crimes into *virtues*. How piously the Pharaohs might have quoted God's prophecy to Abraham, "*Thy seed shall be in bondage, and they shall afflict them for four hundred years.*" And then, what *saints* were those that crucified the Lord of glory!

3. That the Africans are descended from Canaan. Whereas Africa was peopled from Egypt and Ethiopia, and Mizraim settled Egypt, and Cush, Ethiopia. See Gen. x. 15-19, for the location and boundaries of Canaan's posterity. So on the assumption that African slavery fulfils the prophecy, a curse pronounced upon one people, is quoted to justify its infliction upon another. Perhaps it may be argued that Canaan includes all Ham's posterity. If so, the prophecy has not been fulfilled. The other sons of Ham settled the Egyptian and Assyrian empires, and conjointly with Shem the Persian, and afterward, to some extent, the Grecian and Roman. The history of these nations gives no verification of the prophecy. Whereas the history of Canaan's descendants, for more than three thousand years, is a record of its

fulfilment. First, they were made tributaries by the Israelites. Then Canaan was the servant of Shem. Afterward, by the Medes and Persians. Then Canaan was the servant of Shem, and in part of the other sons of Ham. Afterward, by the Macedonians, Grecians, and Romans, successively. Then Canaan was the servant of Japhet, mainly, and secondarily of the other sons of Ham. Finally, they were subjected by the Ottoman dynasty, where they yet remain. Thus Canaan is *now* the servant of Shem and Japhet and the other sons of Ham.

But it may still be objected, that though Canaan is the only one *named* in the curse, yet the 22d and 23d verses show that it was pronounced upon the posterity of Ham in general. "*And Ham, the father of Canaan, saw the nakedness of his father, and told his two brethren without.*"—Verse 22. In verse 23, Shem and Japhet cover their father with a garment. Verse 24, "*And Noah awoke from his wine, and knew what his YOUNGER son had done unto him, and said,*" &c.

It is argued that this younger son cannot be *Canaan*, as he was not the *son*, but the *grandson* of Noah, and therefore it must be *Ham*. We answer, whoever that "*younger son*" was, or whatever he did, *Canaan* alone was named in the curse. Besides, the Hebrew word *Ben*, signifies son, grandson, great-grandson, or *any one* of the posterity of an individual. Gen. xxix. 5, "*And he said unto them, Know ye Laban, the SON of Nahor?*" Yet Laban was the *grandson* of Nahor. Gen. xxiv. 15, 29. In 2 Sam. xix. 24, it is said, "*Mephibosheth, the SON of Saul, came down to meet the king.*" But Mephibosheth was the son of Jonathan, and the *grandson* of Saul. 2 Sam. ix. 6. So Ruth iv. 17. "*There is a SON born to Naomi.*" This was the son of Ruth, the daughter-in-law of Naomi. Ruth iv. 13, 15. So 2 Sam. xxi. 6. "*Let seven men of his (Saul's) SONS be delivered unto us,*" &c. Seven of Saul's *grandsons* were delivered up. 2 Sam. xxi. 8, 9. So Gen. xxi. 28, "*And hast not suffered me to kiss my SONS and my daughters;*" and in the 55th verse, "*And early in the morning Laban rose up and kissed his SONS,*" &c. These were his *grandsons*. So 2 Kings ix. 20, "*The driving of Jehu, the SON of Nimshi.*" So 1 Kings xix. 16. But Jehu was the *grandson* of Nimshi. 2 Kings ix. 2, 14. Who will forbid the inspired writer to use the *same* word when speaking of Noah's grandson?

Further, if Ham were meant what propriety in calling him the *younger* son? The order in which Noah's sons are always mentioned, makes Ham the *second*, and not the *younger* son. If it be said that Bible usage is variable, and that the order of birth is not always preserved in enumerations; the reply is, that, enumeration in the order of birth, is the *rule*, in any other order the *exception*. Besides, if the younger member of a family, takes precedence of older ones in the family record, it is a mark of pre-eminence, either in original endowments, or providential instrumentality. Abraham, though sixty years younger than his eldest brother, and probably the youngest of Terah's sons, stands first in the family genealogy. Nothing in Ham's history warrants the idea of his pre-eminence; besides, the Hebrew word *Hakkaton*, rendered *younger*, means the *little, small*. The same word is used in Isaiah xl. 22. "A LITTLE ONE *shall become a thousand*." Also in Isaiah xxii. 24. "All vessels of SMALL quantity." So Psalms cxv. 13. "He will bless them that fear the Lord, both SMALL and great." Also Exodus xviii. 22. "But every SMALL matter they shall judge." It would be a perfectly literal rendering of Gen. ix. 24, if it were translated thus, "when Noah knew what his little son ^A, or grandson (*Beno hakkaton*) had done unto him, he said, cursed be Canaan," &c.

^A: The French language in this respect follows the same analogy. Our word *grandson* being in French, *petit fils*, (little son.)

Even if the Africans were the descendants of Canaan, the assumption that their enslavement is a fulfilment of this prophecy, lacks even plausibility, for, only a mere *fraction* of the inhabitants of Africa have at any one time been the slaves of other nations. If the objector say in reply, that a large majority of the Africans have always been slaves at *home*, we answer, 1st. *It is false in point of fact*, though zealously bruited often to serve a turn. 2d. *If it were true*, how does it help the argument? The prophecy was, "Cursed be Canaan; a servant of servants shall he be unto his brethren" not unto *himself*!

OBJECTION II.—"*If a man smite his servant or his maid with a rod, and he die under his hand, he shall surely be punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money.*" Exodus xxi. 20, 21.

Arguments drawn from the Mosaic system in support of slavery, originate in a misconception both of its genius, *as a whole*, and of the design and scope of its most simple provisions. The verses quoted above, afford an illustration in point.

What was the design of this regulation? Was it to grant masters an indulgence to beat servants with impunity? and an assurance, that if they beat them to death, the offence would not be *capital*? This is substantially what some modern Doctors tell us. What Deity do such men worship? Some blood-gorged Moloch, enthroned on human hecatombs, and snuffing carnage for incense? Did He who thundered out from Sinai's flames, "THOU SHALT NOT KILL," offer a bounty on *murder*? Whoever analyzes the Mosaic system—the condition of the people for whom it was made—their inexperience in government—ignorance of judicial proceedings—laws of evidence, &c., will find a moot court in session, trying law points—setting definitions, or laying down rules of evidence, in almost every chapter. Numbers xxxv. 10-22; Deuteronomy xi. 11, and xix. 4-6; Leviticus xxiv. 19-22; Exodus, xxi. 18, 19, are a few, out of many cases stated, with tests furnished by which to detect *the intent*, in actions brought before them. The detail gone into, in the verses quoted, is manifestly to enable the judges to get at the *motive* of the action, and find out whether the master *designed* to kill.

1. "If a man smite his servant with a *rod*."—The instrument used, gives a clue to the *intent*. See Numbers xxxv. 16, 18. It was a *rod*, not an axe, nor a sword, nor a bludgeon, nor any other death-weapon—hence, from the *kind* of instrument, no design to *kill* would be inferred; for *intent* to kill would hardly have taken a *rod* for its weapon. But if the servant dies *under his hand*, then the unfitness of the instrument, instead of being evidence in his favor, is point blank against him; for, to strike him with a *rod* until he *dies*, argues a *great many* blows laid on with *great* violence, and this kept up to the death-gasp, establishes the point of *intent to kill*. Hence the sentence, "He shall *surely* be punished." The case is plain and strong. But if he continued *a day or two*, the *length of time that he lived*, together with the *kind* of instrument used, and the fact that the master had a pecuniary interest in his *life*, ("he is his *money*,") all, made out a strong case of circumstantial evidence, showing that the master did not *design* to kill; and required a corresponding decision and sentence. A single remark on the word

"punished:" in Exodus xxi. 20, 21, the Hebrew word here rendered *punished*, (*Nakum*,) is not so rendered in another instance. Yet it occurs thirty-five times in the Old Testament—in almost every instance, it is translated *avenge*—in a few, "*to take vengeance*," or "*to revenge*," and in this instance ALONE, "*punish*." As it stands in our translation, the pronoun preceding it, refers to the *master*—the *master* in the 21st verse, is to be *punished*, and in the 22d *not* to be punished; whereas the preceding pronoun refers neither to the *master* nor to the *servant*, but to the *crime*, and the word rendered *punished*, should have been rendered *avenged*. The meaning is this: If a man smite his servant or his maid with a rod, and he die under his hand, IT (the death) shall surely be avenged, or literally, *by avenging it shall be avenged*; that is, the *death* of the servant shall be *avenged* by the *death* of the master. So in the next verse—"If he continues a day or two," his death shall not be avenged by the *death* of the *master*, for in that case the crime was to be adjudged *manslaughter*, and not *murder*, as in the first instance. In the following verse, another case of personal injury is stated, not intentional, nor extending to life or limb, a mere accidental hurt, for which the injurer is to pay *a sum of money*; and yet our translators employ the same phraseology in both places. One, an instance of deliberate, wanton, *killing by piecemeal*. The other and *accidental*, and comparatively slight injury—of the inflicter, in both cases, they say the same thing! "*He shall surely be punished*." Now, just the difference which common sense would expect to find in such cases, where GOD legislates, is strongly marked in the original. In the case of the servant wilfully murdered, God says, "It (the death) shall surely be *avenged*," (*Nakum*,) that is, *the life of the wrong doer shall expiate the crime*. The same word is used in the Old Testament, when the greatest wrongs are redressed, by devoting the perpetrators, whether individuals or communities, to *destruction*. In the case of the *unintentional* injury, in the following verse, God says, "He shall surely be" *fined*, (*Aunash*.) "He shall *pay* as the judges determine." The simple meaning of the word *Aunash*, is to lay a fine. It is used in Deut. xxii. 19. They shall *amerce* him in one hundred shekels," and in 2 Chron. xxxvi. 3—"He condemned (*mulcted*) the land in a hundred talents of gold.—This is the general use of the word, and its primary signification. That *avenging* the death of the servant, was neither imprisonment, nor stripes, nor amercing the master in damages, but that it was *taking the master's life* we infer.

1. From the *Bible usage* of the word Nakam. See Genesis iv. 24; Joshua x. 13; Judges xv. 7-xvi. 28; 1 Samuel xiv. 24-xviii. 25-xxv. 31; 2 Samuel iv. 8; Judges v. 2; 1 Samuel xxv. 26-33, &c. &c.

2. From the express statute in such case provided. Leviticus xxiv. 17. "*He that killeth ANY man shall surely be put to death.*" Also Numbers xxxv. 30, 31. "*Whoso killeth ANY person, the murderer shall be put to death. Moreover ye shall take NO SATISFACTION for the life of a murderer which is guilty of death, but he shall surely be put to death.*"

3. The Targum of Jonathan gives the verse thus, "Death by the sword shall assuredly be adjudged." The Targum of Jerusalem thus, "Vengeance shall be taken for him to the *uttermost*." Jarchi gives the same rendering. The Samaritan version thus, "He shall die the death."

Again, the last clause in the 21st verse ("for he is his money") is often quoted to prove that the servant is his master's *property*, and *therefore*, if he died, the master was not *to be punished*. *Because*, 1st. A man may dispose of his *property* as he pleases. 2d. If the servant died of the injury, the master's *loss* was a sufficient punishment. A word about the premises, before we notice the inferences. The assumption is, that the phrase, "HE IS HIS MONEY," proves not only that the servant is *worth money* to the master, but that he is an *article of property*. If the advocates of slavery will take this principle of interpretation into the Bible, and turn it loose, let them either give bonds for its behavior, or else stand and draw in self-defence, "lest it turn again and rend" them. If they endorse for it at one point, they must stand sponsors all around the circle. It will be too late to cry for quarter when they find its stroke clearing the whole table, and tilting them among the sweepings beneath. The Bible abounds with such expressions as the following: "This (bread) *is* my body;" "this (wine) *is* my blood;" "all they (the Israelites) *are* brass, and tin, and iron, and lead;" "this *is* life eternal, that they might know thee;" "this (the water of the well of Bethlehem) *is* the blood of the men who went in jeopardy of their lives;" "I *am* the lily of the valleys;" "a garden enclosed *is* my sister;" "my tears *have been* my meat;" "the Lord God *is* a sun and a shield;" "God *is* love;" "the Lord *is* my rock;" "the seven good ears *are* seven years, and the seven good kine *are* seven years;" "the seven thin and ill-favored kine *are* seven years, and the seven empty ears blasted by the east wind *shall be* seven years of

famine;" "he *shall be* head, and thou *shall be* tail;" "the Lord *will be* a wall of fire;" "they *shall be* one flesh;" "the tree of the field *is* man's life;" "God *is* a consuming fire;" "he *is* his money," &c. A passion for the exact *literalities* of Bible language is so amiable, it were hard not to gratify it in this case. The words in the original are (Kaspo-hu,) "his *silver* is he." The objector's principle of interpretation is, a philosopher's stone! Its miracle touch transmutes five feet eight inches of flesh and bones into *solid silver*! Quite a *permanent* servant, if not so nimble with all—reasoning against "*forever*," is forestalled henceforth, and, Deut. xxiii. 15, utterly outwitted.

Who in his senses believes that in the expression, "*He is his money*," the object was to inculcate the doctrine that the servant was a *chattel*? The obvious meaning is, he is *worth money* to his master, and since, if the master killed him, it would take money out of his pocket, the *pecuniary loss*, the *kind of instrument used*, and the *fact of his living some time after the injury*, (as, if the master *meant* to kill, he would be likely to *do* it while about it,) all together make out a strong case of presumptive evidence clearing the master of *intent to kill*. But let us look at the objector's inferences. One is, that as the master might dispose of his *property* as he pleased, he was not to be punished, if he destroyed it. Answer. Whether the servant died under the master's hand, or continued a day or two, he was *equally* his master's property, and the objector admits that in the *first* case the master is to be "surely punished" for destroying *his own property*! The other inference is, that since the continuance of a day or two, cleared the master of *intent to kill*, the loss of the slave would be a sufficient punishment for inflicting the injury which caused his death. This inference makes the Mosaic law false to its own principles. A *pecuniary loss*, constituted no part of the claims of the law, where a person took the *life* of another. In such case, the law utterly spurned money, however large the sum. God would not so cheapen human life, as to balance it with such a weight. "*Ye shall take no satisfaction for the life of a murderer, but he shall surely be put to death.*" See Numb. xxxv. 31. Even in excusable homicide, a case of death purely accidental, as where an axe slipped from the helve and killed a man, no sum of money availed to release from confinement in the city of refuge, until the death of the High Priest. Numbers xxxv. 32. The doctrine that the loss of the servant would be a penalty *adequate* to the desert of the master, admits the master's *guilt*—his desert of *some*

punishment, and it prescribes a *kind* of punishment, rejected by the law, in all cases where man took the life of man, whether with or without *intent* to kill. In short, the objector annuls an integral part of the system—resolves himself into a legislature, with power in the premises, makes a *new* law, and coolly metes out such penalty as he thinks fit, both in kind and quantity. Mosaic statutes amended, and Divine legislation revised and improved!

The master who struck out the tooth of a servant, whether intentionally or not, was required to set him free for his tooth's sake. The *pecuniary loss* to the master was the same as though the servant had *died*. Look at the two cases. A master beats his servant so severely, that after a day or two he dies of his wounds; another master accidentally strikes out his servant's tooth, and his servant is free—the *pecuniary loss of both masters is the same*. The objector contends that the loss of the slave's services in the first case is punishment sufficient for the crime of killing him; yet God commands the *same* punishment for even the *accidental* knocking out of a *tooth*! Indeed, unless the injury was done *inadvertently*, the loss of the servant's services is only a *part* of the punishment—mere reparation to the *individual* for injury done; the *main* punishment, that strictly *judicial*, was, reparation to the *community* for injury to one of its members. To set the servant *free*, and thus proclaim his injury, his right to redress, and the measure of it—answered not the ends of public justice. The law made an example of the offender, "those that remain might hear and fear." "*If a man cause a blemish in his neighbour, as he hath done, so shall it be done unto him. Breach for breach, eye for eye, tooth for tooth; as he hath caused a blemish in a man, so shall it be done to him again. You have one manner of law as well for the STRANGER as for one of your own country.*" Lev. xxiv. 19, 20, 22. Finally, if a master smote out the tooth of a servant, the law smote out *his* tooth—thus redressing the *public* wrong; and it cancelled the servant's obligation to the master, thus giving some compensation for the injury done, and exempting him from perilous liabilities in future.

OBJECTION III. *Both the bondmen and bondmaids which thou shalt have, shall be of the heathen that are round about you, of them shall ye buy bondmen and bondmaids. Moreover of the children of the strangers that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land, and they shall be your possession. And*

ye shall take them as an inheritance for your children after you, to inherit them for a possession; they shall be your bondmen forever. Lev. xxv. 44-46.

The *points* in these verses, urged as proof, that the Mosaic system sanctioned slavery, are 1. The word "BONDMEN." 2. "BUY." 3. "INHERITANCE AND POSSESSION." 4. "FOREVER."

The *second* point, the *buying* of servants, has been already discussed, see [page 15](#). And a part of the *third* (holding servants as a "possession." See [p. 36](#).) We will now ascertain what sanction to slavery is derivable from the terms "bondmen," "inheritance," and "forever."

I. BONDMEN. The fact that servants, from the heathen are called "*bondmen*," while others are called "*servants*," is quoted as proof that the former were slaves. As the *caprices* of King James' translators were not divinely inspired, we need stand in no special awe of them. The word rendered *bondmen*, in this passage, is the same word uniformly rendered *servants* elsewhere. To infer from this that the Gentile servants were slaves, is absurd. Look at the use of the Hebrew word "*Ebed*," the plural of which is here translated "*bondmen*." In Isaiah xlii. 1, the *same word* is applied to Christ. "Behold my *servant* (bondman, slave?) whom I have chosen, mine elect in whom my soul delighteth." So Isaiah lii. 13. "Behold my *servant* (Christ) shall deal prudently." In 1 Kings xii. 6, 7, it is applied to *King Rehoboam*. "And they (the old men) spake unto him, saying if thou wilt be a *servant* (*Ebed*) unto this people this day, and will serve them and answer them, and wilt speak good words to them, then they will be thy *servants* forever." In 2 Chron. xii. 7, 8, 9, 13, it is applied to the king and all the nation. In fine, the word is applied to *all* persons doing service to others—to magistrates, to all governmental officers, to tributaries, to all the subjects of governments, to younger sons—defining their relation to the first born, who is called *Lord* and *ruler*—to prophets, to kings, to the Messiah, and in respectful addresses not less than *fifty* times in the Old Testament.

If the Israelites not only held slaves, but multitudes of them, why had their language *no word* that *meant* slave? If Abraham had thousands, and if they *abounded* under the Mosaic system, why had they no such *word* as slave or slavery? That language must be woefully poverty stricken, which has *no signs* to represent the most *common* and *familiar* objects and conditions. To

represent by the same word, and without figure, *property*, and the *owner* of that property, is a solecism. Ziba was an "Ebed," yet he "owned" (!) twenty *Ebeds*. In *English*, we have both the words *servant* and *slave*. Why? Because we have both the *things*, and need *signs* for them. If the tongue had a sheath, as swords have scabbards, we should have some *name* for it: but our dictionaries give us none. Why? because there is no such *thing*. But the objector asks, "Would not the Israelites use their word *Ebed* if they spoke of the slave of a heathen?" Answer. The servants of individuals among the heathen are scarcely ever alluded to. *National* servants or *tributaries*, are spoken of frequently, but so rarely are their *domestic* servants alluded to, no necessity existed, even if they were slaves, for coining a new word. Besides, the fact of their being domestics, under *heathen laws and usages*, proclaimed their *liabilities*; their locality told their condition; so that in applying to them the word *Ebed*, there would be no danger of being misunderstood. But if the Israelites had not only *servants*, but besides these, a multitude of *slaves*, a word meaning *slave*, would have been indispensable for purposes of every day convenience. Further, the laws of the Mosaic system were so many sentinels on every side, to warn off foreign practices. The border ground of Canaan, was quarantine ground, enforcing the strictest non-intercourse between the *without* and the *within*, not of *persons*, but of *usages*. The fact that the Hebrew language had no words corresponding to *slave* and *slavery*, though not a conclusive argument, is no slight corroborative.

II. "FOREVER."—"They shall be your bondmen *forever*." This is quoted to prove that servants were to serve during their life time, and their posterity, from generation to generation.

No such idea is contained in the passage. The word *forever*, instead of defining the length of *individual* service, proclaims the *permanence* of the regulation laid down in the two verses preceding, namely, that their *permanent domestics* should be of the *Strangers*, and not of the Israelites; and it declares the duration of that general provision. As if God had said, "You shall *always* get your *permanent* laborers from the nations round about you—your *servants* shall always be of *that* class of persons." As it stands in the original, it is plain—"Forever of them shall ye serve

yourselves." This is the literal rendering of the Hebrew words, which, in our version, are translated, "*They shall be your bondmen forever.*"

This construction is in keeping with the whole of the passage. "Both thy bondmen and thy bondmaids, which thou shalt have, shall be of the *heathen* (the nations) that are round about you. OF THEM shall ye buy bondmen and bondmaids. Moreover of the children of the strangers that do sojourn among you, OF THEM shall ye buy," &c. The design of this passage is manifest from its structure. It was to point out the *class* of persons from which they were to get their supply of servants, and the *way* in which they were to get them. That "*forever*" refers to the permanent relations of a *community*, rather than to the services of *individuals*, is a fair inference from the form of the expression, "THEY shall be your possession. Ye shall take *them* as an inheritance for your children to inherit them for a possession." To say nothing of the uncertainty of *these individuals* surviving those *after* whom they are to live, the language used, applies more naturally to a *body* of people, than to *individual* servants.

But suppose it otherwise; still *perpetual* service could not be argued from the term *forever*. The ninth and tenth verses of the same chapter, limit it absolutely by the jubilee. "*Then shall thou cause the trumpet of the jubilee to sound on the tenth day of the seventh month: in the day of atonement shall ye make the trumpet sound throughout ALL your land.*" "*And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto ALL the inhabitants thereof.*"

It may be objected that "inhabitants" here means *Israelitish* inhabitants alone. The command is, "Proclaim liberty throughout all the land unto ALL the inhabitants thereof." Besides, in the sixth verse, there is an enumeration of the different classes of the inhabitants, in which servants and strangers are included. "*And the Sabbath of the land shall be meet for YOU—[For whom? For you Israelites only?]*—for thee, and for thy SERVANT, and for thy maid, and for thy hired servant, and for thy STRANGER that sojourneth with thee.**"

Further, in all the regulations of the jubilee, and the sabbatical year, the strangers are included in the precepts, prohibitions, and promised blessings. Again: the year of jubilee was ushered in, by the day of atonement. What

was the design of these institutions? The day of atonement prefigured the atonement of Christ, and the year of jubilee, the gospel jubilee. And did they prefigure an atonement and a jubilee to *Jews* only? Were they the types of sins remitted, and of salvation, proclaimed to the nation of *Israel* alone? Is there no redemption for us Gentiles in these ends of the earth, and is our hope presumption and impiety? Did that old partition wall survive the shock, that made earth quake, and hid the sun, burst graves and rocks, and rent the temple vail? And did the Gospel only rear it higher to thunder direr perdition from its frowning battlements on all without? No! The God of OUR salvation lives. "Good tidings of great joy shall be to ALL people." *One* shout shall swell from *all* the ransomed, "Thou hast redeemed us unto God by thy blood out of EVERY kindred, and tongue, and people, and nation." To deny that the blessings of the jubilee extended to the servants from the *Gentiles*, makes Christianity *Judaism*. It not only eclipses the glory of the Gospel, but strikes out the sun. The refusal to release servants at the sound of the jubilee trumpet, falsified and disannulled a grand leading type of the atonement, and thus libelled the doctrine of Christ's redemption.

Finally, even if *forever* did refer to the length of *individual* service, we have ample precedents for limiting the term by the jubilee. The same word is used to define the length of time for which those *Jewish* servants were held, who refused to go out in the *seventh* year. And all admit that their term of service did not go beyond the jubilee. Ex. xxi. 2-6; Deut. xv. 12-17.

The 23d verse of the same chapter is quoted to prove that "*forever*" in the 46th verse, extends beyond the jubilee. "*The land shall not be sold FOREVER, for the land is mine*"—as it would hardly be used in different senses in the same general connection. In reply, we repeat that *forever* respects the duration of the *general arrangement*, and not that of *individual service*. Consequently, it is not affected by the jubilee; so the objection does not touch the argument. But it may not be amiss to show that it is equally harmless against any other argument drawn from the use of forever in the 46th verse,—for the word there used, is *Olam*, meaning *throughout the period*, whatever that may be. Whereas in the 23d verse, it is *Tsemithuth*, meaning *cutting off*, or *to be cut off*.

III. "INHERITANCE AND POSSESSION."—"Ye shall take them as an INHERITANCE for your children after you to inherit them for a

possession." This refers to the *nations*, and not to the *individual* servants, procured from these nations. We have already shown, that servants could not be held as a *property*-possession, and inheritance; that they became servants of their *own accord*, and were paid wages; that they were released by law from their regular labor nearly *half the days in each year*, and thoroughly *instructed*; that the servants were *protected* in all their personal, social, and religious rights, equally with their masters, &c. Now, truly, all remaining, after these ample reservations, would be small temptation, either to the lust of power or of lucre. What a profitable "possession" and "inheritance!" What if our American slaves were all placed in *just such a condition*! Alas, for that soft, melodious circumlocution, "Our PECULIAR species of property!" Truly, emphasis is cadence, and euphony and irony have met together!

What eager snatches at mere words, and bald technics, irrespective of connection, principles of construction, Bible usages, or limitations of meaning by other passages—and all to eke out such a sense as accords with existing usages and sanctifies them, thus making God pander for their lusts. Little matter whether the meaning of the word be primary or secondary, literal or figurative, *provided* it sustains their practices.

But let us inquire whether the words rendered "inherit" and "inheritance," when used in the Old Testament, necessarily point out the things inherited and possessed as *articles of property*. *Nahal* and *Nahala*—*inherit* and *inheritance*. See 2 Chronicles x. 16. "The people answered the king and said, What portion have we in David, and we have none *inheritance* in the son of Jesse." Did they mean gravely to disclaim the holding of their king as an article of *property*? Psalms cxxvii. 3—"Lo, children are an *heritage* (inheritance) of the Lord." Exodus xxxiv. 9—"Pardon our iniquity and our sin, and take us for thine *inheritance*." When God pardons his enemies, and adopts them as his children, does he make them *articles of property*? Are forgiveness, and chattel-making, synonymes? Psalms cxix. 111—"Thy testimonies have I taken as a *heritage* (inheritance) forever." Ezekiel xlv. 27, 28—"And in the day that he goeth into the sanctuary, unto the inner court to minister in the sanctuary, he shall offer his sin-offering, saith the Lord God. And it shall be unto them for an *inheritance*; *I* am their *inheritance*." Psalms ii. 8—"Ask of me, and I will give thee the heathen for thine *inheritance*." Psalms xciv. 14—"For the Lord will not cast off his

people, neither will he forsake his *inheritance*." See also Deuteronomy iv. 20; Joshua xiii. 33; Chronicles x. 16; Psalms lxxxii. 8, and lxxviii. 62, 71; Proverbs xiv. 8.

The question whether the servants were a PROPERTY—"possession," has been already discussed—(See [p. 36](#))—we need add in this place but a word. *Ahusa* rendered "*possession*." Genesis xlii. 11—"And Joseph placed his father and his brethren, and gave them a *possession* in the land of Egypt, in the best of the land, in the land of Rameses, as Pharaoh had commanded."

In what sense was the land of Goshen the *possession* of the Israelites? Answer, In the sense of, *having it to live in*. In what sense were the Israelites to *possess* these nations, and *take them* as an *inheritance for their children*? We answer, They possessed them as a *permanent source of supply for domestic or household servants*. And this relation to these nations was to go down to posterity as a standing regulation—a national usage respecting them, having the certainty and regularity of a descent by *inheritance*. The sense of the whole regulation may be given thus: "Thy permanent domestics, both male and female, which thou shalt have, shall be of the nations that are round about you, of *them* shall ye get male and female domestics." "Moreover of the children of the foreigners that do sojourn among you, of *them* shall ye get, and of their families that are with you, which they begat in your land, and *they* shall be your permanent resource," (for household servants.) "And ye shall take them as a *perpetual* provision for your children after you, to hold as a *constant source of supply*. ALWAYS of *them* shall ye serve yourselves."

OBJECTION IV. "*If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a BOND-SERVANT, but as an HIRED-SERVANT, and as a sojourner shall he be with thee, and shall serve thee unto the year of jubilee.*" Lev. xxv. 39, 40.

From the fact that only *one* class of the servants is called *hired*, it is sagely inferred that servants of the *other* class were *not paid* for their labor. That is, that while God thundered anathemas against those who "used their neighbor's service *without wages*," he granted a special indulgence to his chosen people to seize persons, force them to work, and rob them of earnings, provided always, in selecting their victims, they spared "the

gentlemen of property and standing," and pounced only upon the *strangers* and the *common* people. The inference that "*hired*" is synonymous with *paid*, and that those servants not *called* "*hired*" were *not paid* for their labor, is a *mere assumption*.

The meaning of the English verb *to hire*, is, as every one knows, to procure for a temporary use at a certain price—to engage a person to *temporary* service for wages. That is also the meaning of the Hebrew word "*Saukar*." *Temporary* service, and generally for a *specific* object, is inseparable from its meaning. It is never used when the procurement of *permanent* service, for a long period, is spoken of. Now, we ask, would *permanent* servants, those who constituted an integral and stationary part of the family, have been designated by the same term that marks *temporary* servants? The every-day distinctions made on this subject, are as familiar as table-talk. In many families, the domestics perform only such labor, as every day brings along with it—the *regular* work. Whatever is *occasional* merely, as the washing of a family, is done by persons *hired expressly for the purpose*. In such families, the familiar distinction between the two classes, is "*servants*," or "*domestics*," and "*hired help*," (not *paid* help.) *Both* classes are *paid*. One is permanent, the other occasional and temporary, and therefore in this case called "*hired*." To suppose a servant robbed of his earnings, because when spoken of, he is not called a *hired* servant, is profound induction! If I employ a man at twelve dollars a month to work my farm, he is my "*hired*" man, but if, instead of giving him so much a month, I *give him such a portion of the crop*, or in other words, if he works my farm "*on shares*," he is no longer my *hired* man. Every farmer knows that *that* designation is not applied to him. Yet he works the same farm, in the same way, at the same times, and with the same teams and tools; and does the same amount of work in the year, and perhaps clears twenty dollars a month, instead of the twelve, paid him while he was my *hired* laborer. Now, as the technic "*hired*" is no longer used to designate him, and as he still labors on my farm, suppose my neighbors gather in conclave, and from such ample premises sagely infer, that since he is no longer my "*hired*" laborer, I *rob* him of his earnings, and with all the gravity of owls, they record their decision, and adjourn to hoot it abroad. My neighbors are deep divers!—like some theological professors, they not only go to the bottom, but come up covered with the tokens.

A variety of particulars are recorded in the Bible, distinguishing *hired* from *bought* servants. (1.) Hired servants were paid daily at the close of their work. Lev. xix 13; Deut. xxiv. 14, 15; Job. vii. 2; Matt. xx. 8. "*Bought*" servants were paid in advance, (a reason for their being called, *bought*,) and those that went out at the seventh year received a *gratuity* at the close of their period of service. Deut. xv. 12-13. (2.) The hired servant was paid *in money*, the bought servant received his *gratuity*, at least, in grain, cattle, and the product of the vintage. Deut. xiv. 17. (3.) The *hired* servant *lived by himself*, in his own family. The *bought* servant was a part of his master's family. (4.) The *hired* servant supported his family out of his wages; the *bought* servant and his family, were supported by the master *besides* his wages.

A careful investigation of the condition of "*hired*" and of "*bought*" servants, shows that the latter were, *as a class, superior to the former*—were more trust-worthy, had greater privileges, and occupied in every respect (*other things being equal*) a higher station in society. (1.) *They were intimately incorporated with the family of the master.* They were guests at family festivals, and social solemnities, from which hired servants were excluded. Lev. xxii. 10; Exod. xii. 43, 45. (2) *Their interests were far more identified with the general interests of their masters' family.* Bought servants were often actually, or prospectively, heirs of their master's estate. Witness the case of Eliezer, of Ziba, of the sons of Bilhah, and Zilpah, and others. When there were no sons to inherit the estate, or when, by unworthiness, they had forfeited their title, bought servants were made heirs. Proverbs xvii. 2. We find traces of this usage in the New Testament. "But when the husbandmen saw him, they reasoned among themselves, saying, this is the *heir*, come let us kill him, *that the inheritance may be ours.*" Luke xx. 14; also Mark xii. 7. In no instance on Bible record, does a *hired* servant inherit his master's estate. (3.) *Marriages took place between servants and their master's daughters.* "Now Sheshan had no sons, but daughters: and Sheshan had a *servant*, an Egyptian, whose name was Jarha. And Sheshan gave his daughter to Jarha his servant to wife." 1 Chron. ii. 34, 35. There is no instance of a *hired* servant forming such an alliance.

(4.) *Bought servants and their descendants seem to have been regarded with the same affection and respect as the other members of the family*^A. The

treatment of Eliezer, and the other servants in the family of Abraham, Gen. chap. 25—the intercourse between Gideon and his servant Phurah, Judges vii. 10, 11. and Saul and his servant, in their interview with Samuel, 1 Sam. ix. 5, 22; and Jonathan and his servant, 1 Sam. xiv. 1-14, and Elisha and his servant Gehazi, are illustrations. No such tie seems to have existed between *hired* servants and their masters. Their untrustworthiness seems to have been proverbial. See John ix. 12, 13.

None but the *lowest class* seem to have engaged as hired servants. No instance occurs in which they are assigned to business demanding much knowledge or skill. Various passages show the low repute and trifling character of the class from which they were hired. Judges ix. 4; 1 Sam. ii. 5.

The superior condition and privileges of bought servants, are manifested in the high trusts confided to them, and in the dignity and authority with which they were clothed in their master's household. But in no instance is a *hired* servant thus distinguished. In some cases, the *bought* servant is manifestly the master's representative in the family—with plenipotentiary powers over adult children, even negotiating marriage for them. Abraham besought Eliezer his servant, to take a solemn oath, that HE would not take a wife for Isaac of the daughters of the Canaanites, but from Abraham's kindred. The servant went accordingly, and *himself* selected the individual. Servants also exercised discretionary power in the management of their master's estate, "And the servant took ten camels, of the camels of his master, *for all the goods of his master were under his hand.*" Gen. xxiv. 10. The reason assigned for taking them, is not that such was Abraham's direction, but that the servant had discretionary control. Servants had also discretionary power in the *disposal of property*. See Gen. xxiv. 22, 23, 53. The condition of Ziba in the house of Mephiboseth, is a case in point. So is Prov. xvii. 2. Distinct traces of this estimation are to be found in the New Testament, Math. xxiv. 45; Luke xii. 42, 44. So in the parable of the talents; the master seems to have set up each of his servants in trade with considerable capital. One of them could not have had less than eight thousand dollars. The parable of the unjust steward is another illustration. Luke xvi. 4, 8. He evidently was entrusted with large *discretionary* power, was "accused of wasting his master's goods." and manifestly regulated with his master's debtors, the *terms* of settlement. Such trusts were never reposed in *hired* servants.

The inferior condition of *hired* servants, is illustrated in the parable of the prodigal son. When the prodigal, perishing with hunger among the swine and husks, came to himself, his proud heart broke; "I will arise," he cried, "and go to my father." And then to assure his father of the depth of his humility, resolved to add imploringly, "Make me as one of thy *hired* servants." It need not be remarked, that if *hired* servants were the *superior* class; to apply for the situation, and press the suit, savored little of that sense of unworthiness that seeks the dust with hidden face, and cries "unclean." Unhumbled nature *climbs*; or if it falls, clings fast, where first it may. Humility sinks of its own weight, and in the lowest deep, digs lower. The design of the parable was to illustrate on the one hand, the joy of God, as he beholds afar off, the returning sinner "seeking an injured father's face" who runs to clasp and bless him with an unchiding welcome; and on the other, the contrition of the penitent, turning homeward with tears, from his wanderings, his stricken spirit breaking with its ill-desert, he sobs aloud, "The lowest place, *the lowest place*, I can abide no other." Or in those inimitable words, "*Father, I have sinned against Heaven, and in thy sight, and no more worthy to be called thy son; make me as one of thy HIRED servants.*" The supposition that *hired* servants were the *highest* class, takes from the parable an element of winning beauty and pathos. It is manifest to every careful student of the Bible, that *one* class of servants, was on terms of equality with the children and other members of the family. (Hence the force of Paul's declaration, Gal. iv. 1, "*Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all.*") If this were the *hired* class, the prodigal was a sorry specimen of humility. Would our Lord have put such language, into the lips of one held up by himself, as a model of gospel humility, to illustrate its lowliness, its conscious destitution of all merit, and deep sense of all ill desert? If this is *humility*, put it on stilts, and set it a strutting, while pride takes lessons, and blunders in apeing it.

Here let it be observed, that both Israelites and Strangers, belonged indiscriminately to *each* class of the servants, the *bought* and the *hired*. That those in the former class, whether Jews or Strangers, were in higher estimation, and rose to honors and authority in the family circle, which were not conferred on *hired* servants, has been already shown. It should be added, however, that in the enjoyment of privileges, merely *political* and

national, the hired servants from the *Israelites*, were more favored than either the hired, or the bought servants from the *Strangers*. No one from the *Strangers*, however wealthy or highly endowed, was eligible to the highest office, nor could he own the soil. This last disability seems to have been one reason for the different periods of service required of the two classes of bought servants—the *Israelites* and the *Strangers*. The *Israelite* was to serve six years—the *Stranger* until the jubilee^A.

^A: Both classes may with propriety be called *permanent* servants; even the bought *Israelite*, when his six-years' service is contrasted with the brief term of the hired servant.

As the *Strangers* could not own the soil, nor even houses, except within walled towns, most of them would choose to attach themselves permanently to *Israelitish* families. Those *Strangers* who were wealthy, or skilled in manufactures, instead of becoming servants themselves, would need servants for their own use, and as inducements for the *Strangers* to become servants to the *Israelites*, were greater than persons of their own nation could hold out to them, these wealthy *Strangers* would naturally procure the poorer *Israelites* for servants. See Levit. xxv. 47. In a word, such was the political condition of the *Strangers*, the Jewish polity furnished a strong motive to them, to become servants, thus incorporating themselves with the nation, and procuring those social and religious privileges already enumerated, and for their children in the second generation, a permanent inheritance. (This last was a regulation of later date. Ezekiel xlvii. 21-23.) Indeed, the structure of the whole Mosaic polity, was a virtual bounty offered to those who would become permanent servants, and merge in the Jewish system their distinct nationality. None but the monied aristocracy among them, would be likely to decline such offers.

For various reasons, this class, (the servants bought from the *Strangers*,) would prefer a *long* service. They would thus more effectually become absorbed into the national circulation, and identify their interests with those in whose gift were all things desirable for themselves, and brighter prospects for their children. On the other hand, the *Israelites*, owning all the soil, and an inheritance of land being a sort of sacred possession, to hold it free of incumbrance, was, with every *Israelite*, a delicate point, both of family honor and personal character. 1 Kings xxi. 3. Hence, to forego the

possession of one's inheritance, *after* the division of the paternal domain, or to be restrained from its *control*, after having acceded to it, was a burden grievous to be borne. To mitigate, as much as possible, such a calamity, the law, instead of requiring the Israelite to continue a servant until the jubilee, released him at the end six years^A, as, during that time—if, of the first class—the partition of the patrimonial land might have taken place; or, if of the second, enough money might have been earned to disencumber his estate, and thus he might assume his station as a lord of the soil. If these contingencies had not occurred, then, at the end of another six years, the opportunity was again offered, and in the same manner until the jubilee. So while strong motives urged the Israelite, to discontinue his service as soon as the exigency had passed, which induced him to become a servant, every consideration impelled the *Stranger* to *prolong* his term of service; and the same kindness which dictated the law of six years' service for the Israelite, assigned as the general rule, a much longer period to the Gentile servant, who, instead of being tempted to a brief service, had every inducement to protract the term.

^A: Another reason for protracting the service until the seventh year, seems to have been, its coincidence with other arrangements, and provisions, inseparable from the Jewish economy. That period was a favorite one in the Mosaic system. Its pecuniary responsibilities, social relations and general internal structure, if not *graduated* upon a septennial scale, were variously modified by the lapse of the period. Another reason doubtless was, that as those Israelites who became servants through poverty, would not sell themselves, except as a last resort when other expedients to recruit their finances had failed—(See Lev. xxv. 35)—their *becoming servants* proclaimed such a state of their affairs, as demanded the labor of *a course of years* fully to reinstate them.

It is important to a clear understanding of the whole subject, to keep in mind that adult Jews ordinarily became servants, only as a temporary expedient to relieve themselves from embarrassment, and ceased to be such when that object was effected. The poverty that forced them to it was a calamity, and their service was either a means of relief, or a measure of prevention. It was not pursued as a *permanent business*, but resorted to on emergencies—a sort of episode in the main scope of their lives. Whereas with the Strangers, it was a *permanent employment*, pursued not merely as a

means of bettering their own condition, and prospectively that of their posterity, but also, as an *end* for its own sake, conferring on them privileges, and a social estimation not otherwise attainable.

We see from the foregoing, why servants purchased from the heathen, are called by way of distinction, *the* servants, (not *bondmen*, as our translators have it.) (1.) They followed it as a *permanent business*. (2.) Their term of service was *much longer* than that of the other class. (3.) As a class, they doubtless greatly outnumbered the Israelitish servants. (4.) All the Strangers that dwelt in the land, were *tributaries* to the Israelites—required to pay an annual tribute to the government, either in money, or in public service, which was called a "*tribute of bond-service*;" in other words, all the Strangers were *national servants*, to the Israelites, and the same Hebrew word which is used to designate *individual* servants, equally designates *national* servants or tributaries. 2 Sam. viii. 2, 6, 14. 2 Chron. viii. 7-9. Deut. xx. 11. 2 Sam. x. 19. 1 Kings ix. 21, 22. 1 Kings iv. 21. Gen. xxvii. 29. The same word is applied to the Israelites, when they paid tribute to other nations. See 2 Kings xvii. 3. Judges iii. 8, 14. Gen. xlix. 15. Another distinction between the Jewish and Gentile bought servants, claims notice. It was in the *kinds* of service assigned to each class. The servants from the Strangers, were properly the *domestics*, or household servants, employed in all family work, in offices of personal attendance, and in such mechanical labor, as was constantly required in every family, by increasing wants, and needed repairs. On the other hand, the Jewish bought servants seem to have been almost exclusively *agricultural*. Besides being better fitted for this by previous habits—agriculture, and the tending of cattle, were regarded by the Israelites as the most honorable of all occupations; kings engaged in them. After Saul was elected king, and escorted to Gibeah, the next report of him is, "*And behold Saul came after the herd out of the field.*"—1 Sam. xi. 7.

Elisha "was plowing with twelve yoke of oxen" when Elijah threw his mantle upon him. 1 Kings xix. 19. King Uzziah "loved husbandry." 2 Chron. xxvi. 10. Gideon, the deliverer of Israel, was "*threshing wheat* by the wine press" when called to lead the host against the Midianites. Judges vi. 11. The superior honorableness of agriculture, is shown by the fact, that it was *protected and supported by the fundamental law* of the theocracy—God thus indicating it as the chief prop of the government, and putting upon it peculiar honor. An inheritance of land seems to have filled out an

Israelite's idea of worldly furnishment. They were like permanent fixtures on their soil, so did they cling to it. To be agriculturalists on their own inheritances, was, in their notions, the basis of family consequence, and the grand claim to honorable estimation. Agriculture being pre-eminently a *Jewish* employment, to assign a native Israelite to *other* employments as a *business*, was to break up his habits, do violence to cherished predilections, and put him to a kind of labor in which he had no skill, and which he deemed degrading. In short, it was, in the earlier ages of the Mosaic system, practically to *unjew* him, a hardship and rigor grievous to be borne, as it annihilated a visible distinction between the descendants of Abraham and the Strangers—a distinction vital to the system, and gloried in by every Jew.

To guard this and another fundamental distinction, God instituted the regulation contained in Leviticus xxv. 39, which stands at the head of this branch of our inquiry, "*If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a bond-servant.*" In other words, thou shalt not put him to *servants' work*—to the *business*, and into the *condition of domestics*.

In the Persian version it is translated thus, "Thou shalt not assign to him the work of *servitude*," (or *menial* labor.) In the Septuagint thus, "He shall not serve thee with the service of a *domestic or household servant*." In the Syriac thus, "Thou shalt not employ him after the manner of servants." In the Samaritan thus, "Thou shalt not require him to serve in the service of a servant." In the Targum of Onkelos thus, "He shall not serve thee with the service of a household servant." In the Targum of Jonathan thus, "Thou shalt not cause him to serve according to the usages of the servitude of servants^A." In fine, "thou shalt not compel him to serve as a bond-servant," means, *thou shalt not assign him to the same grade, nor put him to the same services, with permanent domestics*.

^A: Jarchi's comment on "Thou shalt not compel him to serve as a bond-servant" is, "the Hebrew servant is not to be required to do any thing which is accounted degrading—such as all offices of personal attendance, as loosing his master's shoe latchet, bringing him water to wash his feet and hands, waiting on him at table, dressing him, carrying things to and from the bath. The Hebrew servant is to work with his master as a son or brother, in the business of his farm, or other labor, until his legal release."

We pass to the remainder of the regulation in the 40th verse:—

"*But as an hired servant and as a sojourner shall he be with thee.*" Hired servants were not incorporated into the families of their masters; they still retained their own family organization, without the surrender of any domestic privilege, honor, or authority; and this, even though they resided under the same roof with their master. While bought-servants were associated with their master's families at meals, at the Passover, and at other family festivals, hired servants and sojourners were not. Exodus xii. 44, 45; Lev. xxii. 10, 11. Not being merged in the family of his master, the hired servant was not subject to his authority, (except in directions about his labor) in any such sense as the master's wife, children, and bought servants. Hence the only form of oppressing hired servants spoken of in the Scriptures as practicable to masters, is that of *keeping back their wages*.

To have taken away these privileges in the case stated in the passage under consideration, would have been preeminent *rigor*; for the case described, is not that of a servant born in the house of a master, nor that of a minor, whose unexpired minority had been sold by the father, neither was it the case of an Israelite, who though of age, had not yet acceded to his inheritance; nor, finally, was it that of one who had received the *assignment* of his inheritance, but was, as a servant, working off from it an incumbrance, before entering upon its possession and control^A. But it was that of *the head of a family*, who had lived independently on his own inheritance, and long known better days, now reduced to poverty, forced to relinquish the loved inheritance of his fathers, with the competence and respectful consideration its possession secured to him, and to be indebted to a neighbor for shelter, sustenance, and employment, both for himself and his family. Surely so sad a reverse, might well claim sympathy; but there remaineth to him one consolation, and it cheers him in the house of his pilgrimage. He is an *Israelite—Abraham is his father*, and now in his calamity he clings closer than ever, to the distinction conferred by the immunities of his birthright. To rob him of this, were "the unkindest cut of all." To have assigned him to a *grade* of service filled only by those whose permanent business was *serving*, would have been to *rule over him with peculiar rigor*.

A: These two latter classes are evidently referred to in Exod. xxi. 1-6, and Deut. xv. 12

Finally, the former part of the regulation, "Thou shalt not compel him to serve as a bond-servant," or more literally, *thou shalt not serve thyself with him, with the service of a servant*, guaranties his political privileges, and secures to him a kind and grade of service, comporting with his character and relations as a son of Israel. And the remainder of the verse, "But as a *hired* servant, and as a sojourner shall he be with thee," continues and secures to him his separate family organization, the respect and authority due to his head, and the general consideration in society resulting from such a station. Though this individual was a Jewish *bought* servant, the case is peculiar, and forms an exception to the general class of Jewish bought servants. Being already in possession of his inheritance, and the head of a household, the law so arranged his relations, as a servant, as to *alleviate* as much as possible the calamity which had reduced him from independence and authority, to penury and subjection.

Having gone so much into detail on this point, comment on the command which concludes this topic in the forty-third verse, would be superfluous. "*Thou shalt not rule over him with rigor, but shalt fear thy God.*" As if it had been said, "In your administration you shall not disregard those differences in previous habits, station, authority, and national and political privileges, upon which this regulation is based; for to exercise authority over this class of servants, *irrespective* of these distinctions, and annihilating them, is *torule with rigor.*" The same command is repeated in the forty-sixth verse, and applied to the distinction between the servants of Jewish, and those of Gentile extraction, and forbids the overlooking of distinctive Jewish peculiarities, so vital to an Israelite as to make the violation of them, *rigorous* in the extreme; while to the servants from the Strangers, whose previous habits and associations differed so widely from those of the Israelite, these same things would be deemed slight disabilities.

It may be remarked here, that the political and other disabilities of the Strangers, which were the distinctions growing out of a different national descent, and important to the preservation of national characteristics, and to the purity of national worship, do not seem to have effected at all the *social* estimation, in which this class of servants was held. They were regarded

according to their character and worth as *persons*, irrespective of their foreign origin, employments, and political condition.

The common construction put upon the expression, "*rule with rigor*," and an inference drawn from it, have an air so oracular, as quite to overcharge risibles of ordinary calibre, if such an effect were not forestalled by its impiety. It is interpreted to mean, "you shall not make him an article of property, you shall not force him to work, and rob him of his earnings, you shall not make him a chattel, and strip him of legal protection." So much for the interpretation. The inference is like unto it, viz. Since the command forbade such outrages upon the *Israelites*, it *permitted and commissioned* the infliction of them upon the *Strangers*. Such impious and shallow smattering, captivates two classes of minds, the one by its flippancy, the other by its blasphemy, and both, by the strong scent of its unbridled license. What boots it to reason against such rampant affinities!

In Exodus, chap. i. 13, 14, it is said that the Egyptians "made the children of Israel to *serve with rigor*," "and all their *service* wherein they made them *serve*, was with rigor." The rigor here spoken of, is affirmed of the *amount of labor* extorted from them, and the *mode* of the exaction. This form of expression, "*serve with rigor*," is never applied to the service of servants either under the Patriarchal, or the Mosaic systems. Nor is any other form of expression ever used, either equivalent to it, or at all similar. The phrase, "thou shalt not RULE over him with rigor," used in Leviticus xxv. 43, 46, does not prohibit unreasonable exactions of labor, nor inflictions of personal cruelty. *Such were provided against otherwise*. But it forbids, confounding the distinctions between a Jew and a Stranger, by assigning the former to the same grade of service, for the same term of time, and under the same national and political disabilities as the latter.

We are now prepared to survey at a glance, the general condition of the different classes of servants, with the modifications peculiar to each class. I. In the possession of *all fundamental rights*, *all classes of servants were on an absolute equality*, all were *equally protected* by law in their persons, character, property and social relations. All were *voluntary*, all were *compensated* for their labor. All were released from their regular labor nearly *one half of the days in each year*, all were furnished with stated *instruction*; none in either class were in any sense articles of *property*, all

were regarded as *men*, with the rights, interests, hopes, and destinies of *men*. In these respects the circumstances of *all* classes of servants among the Israelites, were not only similar but *identical*, and so far forth, they formed but ONE CLASS.

II. DIFFERENT CLASSES OF SERVANTS.

1. *Hired Servants*.—This class consisted both of Israelites and Strangers. Their employments were different. The *Israelite*, was an agricultural servant. The Stranger was a *domestic* and *personal* servant, and in some instances *mechanical*; both were *occasional*, procured *temporally* to serve an emergency. Both lived in their own families, their wages were *money*, and they were paid when their work was done. As a *class of servants*, the hired were less loved, trusted, honored and promoted than any other.

2. *Bought Servants*, (*including those "born in the house."*)—This class also, was composed both of Israelites and Strangers, the same general difference obtaining in their kinds of employment as was noticed before. Both were paid in advance^A, and neither was temporary.

^A: The payment *in advance*, doubtless lessened considerably the price of the purchase; the servant thus having the use of the money from the beginning, and the master assuming all the risks of life, and health for labor; at the expiration of the six years' contract, the master having experienced no loss from the risk incurred at the making of it, was obliged by law to release the servant with a liberal gratuity. The reason assigned for this is, "he hath been worth a double hired servant unto thee in serving thee six years," as if it had been said, he has now served out his time, and as you have experienced no loss from the risks of life, and ability to labor which you incurred in the purchase, and which lessened the price, and as, by being your permanent servant for six years, he has saved you all the time and trouble of looking up and hiring laborers on emergencies, therefore, "thou shalt furnish him liberally," &c.

The Israelitish servant, in most instances, was released after six years. (The *freeholder* continued until the jubilee.) The Stranger, was a *permanent* servant, continuing until the jubilee. Besides these distinctions between Jewish and Gentile bought servants, a marked distinction obtained between different classes of Jewish bought servants. Ordinarily, during their term of

service, they were merged in their master's family, and, like the wife and children of the master, subject to his authority; (and of course, like them, protected by law from its abuse.) But *one* class of the Jewish bought servants was a marked exception. The *freeholder*, obliged by poverty to leave his possession, and sell himself as a servant, did not thereby affect his family relations, or authority, nor subject himself as an inferior to the control of his master, though dependent upon him for employment. In this respect, his condition differed from that of the main body of Jewish bought servants, which seems to have consisted of those, who had not yet come into possession of their inheritance, or of those who were dislodging from it an incumbrance.

Having dwelt so much at length on this part of the subject, the reader's patience may well be spared further details. We close it with a suggestion or two, which may serve as a solvent of some minor difficulties, if such remain.

I. It should be kept in mind, that *both* classes of servants, the Israelite and the Stranger, not only enjoyed *equal natural and religious rights*, but *all the civil and political privileges* enjoyed by those of their own people, who were *not* servants. If Israelites, all rights belonging to Israelites were theirs. If from the Strangers, the same political privileges enjoyed by those wealthy Strangers, who bought and held *Israelitish* servants, *were theirs*. They also shared *in common with them*, the political disabilities which appertained to *all* Strangers, whether the servants of Jewish masters, or the masters of Jewish servants.

II. The disabilities of the servants from the Strangers, were exclusively *political* and *national*.

1. They, in common with all Strangers, *could not own the soil*.

2. They were *ineligible to civil offices*.

3. They were assigned to *employments* less honorable than those in which Israelitish servants engaged; agriculture being regarded as fundamental to the prosperity and even to the existence of the state, other employments were in far less repute, and deemed *unjewish*.

Finally, the condition of the Strangers, whether servants or masters, was, as it respected political privileges, much like that of unnaturalized foreigners in the United States; no matter how great their wealth or intelligence, or moral principle, or love for our institutions, they can neither go to the ballot-box, nor own the soil, nor be eligible to office. Let a native American, who has always enjoyed these privileges, be suddenly bereft of them, and loaded with the disabilities of an alien, and what to the foreigner would be a light matter, to *him*, would be the severity of *rigor*.

The recent condition of the Jews and Catholics in England, is a still better illustration of the political condition of the Strangers in Israel. Rothschild, the late English banker, though the richest private citizen in the world, and perhaps master of scores of English servants, who sued for the smallest crumbs of his favor, was, as a subject of the government, inferior to the veriest scavenger among them. Suppose an Englishman, of the Established Church, were by law deprived of power to own the soil, made ineligible to office, and deprived unconditionally of the electoral franchise, would Englishmen think it a misapplication of language, if it were said, "The government rules over that man with rigor?" And yet his life, limbs, property, reputation, conscience, all his social relations, the disposal of his time, the right of locomotion at pleasure, and of natural liberty in all respects, are just as much protected by law as the Lord Chancellor's. The same was true of all "the strangers within the gates" among the Israelites: Whether these Strangers were the servants of Israelitish masters, or the masters of Israelitish servants, whether sojourners, or bought servants, or born in the house, or hired, or neither—*all were protected equally with the descendants of Abraham*.

Finally—As the Mosaic system was a great compound type, made up of innumerable fractional ones, each rife with meaning in doctrine and duty; the practical power of the whole, depended upon the exact observance of those distinctions and relations which constituted its significancy. Hence, the care everywhere shown to preserve inviolate the distinction between a *descendant of Abraham* and a *Stranger*, even when the Stranger was a proselyte, had gone through the initiatory ordinances, entered the congregation, and become incorporated with the Israelites by family alliance. The regulation laid down in Exodus xxi. 2-6, is an illustration, "*If*

thou buy an Hebrew servant, six years shall he serve: and in the seventh he shall go out free for nothing. If he came in by himself, he shall go out by himself: if he were married, then, his wife shall go out with him. If his master have given him a wife, and she have borne him sons or daughters; the wife and her children shall be her master's, and he shall go out by himself. And if the servant should plainly say, I love my master, my wife, and my children, I will not go out free: then his master shall bring him unto the judges; he shall also bring him to the door, or unto the door-post; and his master shall bore his ear through with an awl, and he shall serve him forever." In this case, the Israelitish servant, whose term expired in six years, married one of his master's *permanent female domestics*; but the fact of her marriage, did not release her master from *his* part of the contract for her whole term of service, nor absolve him from his legal obligation to support and educate her children. Nor could it do away that distinction, which marked her national descent by a specific *grade* and *term* of service. Her marriage did not impair her obligation to fulfil *her* part of the contract. Her relations as a permanent domestic grew out of a distinction guarded with great care throughout the Mosaic system. To permit this to be rendered void, would have been to divide the system against itself. This God would not tolerate. Nor, on the other hand, would he permit the master, to throw off the responsibility of instructing her children, nor the care and expense of their helpless infancy and rearing. He was bound to support and educate them, and all her children born afterwards during her term of service. The whole arrangement beautifully illustrates that wise and tender regard for the interests of all the parties concerned, which arrays the Mosaic system in robes of glory, and causes it to shine as the sun in the kingdom of our Father. By this law, the children had secured to them a mother's tender care. If the husband loved his wife and children, he could compel his master to keep him, whether he had any occasion for his services or not, and with such remuneration as was provided by the statute. If he did not love them, to be rid of him was a blessing; and in that case, the regulation would prove an act for the relief of an afflicted family. It is not by any means to be inferred, that the release of the servant from his service in the seventh year, either absolved him from the obligations of marriage, or shut him out from the society of his family. He could doubtless procure a service at no great distance from them, and might often do it, to get higher wages, or a kind of employment better suited to his taste and skill, or because his master might

not have sufficient work to occupy him. Whether he lived near his family, or at a considerable distance, the great number of days on which the law released servants from regular labor, would enable him to spend much more time with them than can be spent by most of the agents of our benevolent societies with *their* families, or by many merchants, editors, artists, &c., whose daily business is in New York, while their families reside from ten to one hundred miles in the country.

We conclude this Inquiry by touching briefly upon an objection, which, though not formally stated, has been already set aside by the whole tenor of the foregoing argument. It is this,—

"The slavery of the Canaanites by the Israelites, was appointed by God as a commutation of the punishment of death denounced against them for their sins."—If the absurdity of a sentence consigning persons to *death*, and at the same time to perpetual *slavery*, did not sufficiently laugh in its own face, it would be small self-denial, in a case so tempting, to make up the deficiency by a general contribution. For, *be it remembered*, the Mosaic law was given, while Israel was *in the wilderness*, and only *one* statute was ever given respecting *the disposition to be made of the inhabitants of the land*. If the sentence of death was first pronounced against them, and afterwards *commuted*, when? where? by whom? and in what terms was the commutation? And where is it recorded? Grant, for argument's sake, that all the Canaanites were sentenced to unconditional extermination; as there was no reversal of the sentence, how can a right to *enslave* them, be drawn from such premises? The punishment of death is one of the highest recognitions of man's moral nature possible. It proclaims him *man*—intelligent accountable, guilty *man*, deserving death for having done his utmost to cheapen human life, and make it worthless, when the proof of its priceless value, lives in his own nature. But to make him a *slave*, cheapens to nothing *universal human nature*, and instead of healing a wound, gives a death stab. What! repair an injury done to rational being in the robbery of *one* of its rights, not merely by robbing it of *all*, but by annihilating the very *foundation* of them—that everlasting distinction between men and things? To make a man a chattel, is not the *punishment*, but the *annihilation* of a *human* being, and, so far as it goes, of *all* human beings. This commutation of the punishment of death, into perpetual slavery, what a fortunate

discovery! Alas! for the honor of Deity, if commentators had not manned the forlorn hope, and rushed to the rescue of the Divine character at the very crisis of its fate, and, by a timely movement, covered its retreat from the perilous position in which inspiration had carelessly left it! Here a question arises of sufficient importance for a separate dissertation; but must for the present be disposed of in a few paragraphs. WERE THE CANAANITES SENTENCED BY GOD TO INDIVIDUAL AND UNCONDITIONAL EXTERMINATION? That the views generally prevalent on this subject, are wrong, we have no doubt; but as the limits of this Inquiry forbid our going into the merits of the question, so as to give all the grounds of dissent from the commonly received opinions, the suggestions made, will be thrown out merely as QUERIES, and not as a formal laying down of *doctrines*.

The leading directions as to the disposal of the Canaanites, are mainly in the following passages, Exod. xxiii. 23-33, and 33-51, and 34, 11—Deut. vii. 16-25, and ix. 3, and xxxi. 3, 1, 2. In these verses, the Israelites are commanded to "destroy the Canaanites"—to "drive out,"—"consume,"—"utterly overthrow,"—"put out,"—"dispossess them," &c. Quest. Did these commands enjoin the unconditional and universal destruction of the *individuals*, or merely of the *body politic*? Ans. The Hebrew word *Haram*, to destroy, signifies *national*, as well as individual destruction; *political* existence, equally with *personal*; the destruction of governmental organization, equally with the lives of the subjects. Besides, if we interpret the words destroy, consume, overthrow, &c., to mean *personal* destruction, what meaning shall we give to the expressions, "drive out before thee;" "cast out before thee;" "expel," "put out," "dispossess," &c., which are used in the same passages?

For a clue to the sense in which the word "*destroy*" is used, see Exodus xxiii. 27. "I will destroy all the people to whom thou shalt come, and I will make all thine enemies *turn their backs unto thee*." Here "*all their enemies*" were to *turn their backs*, and "*all the people*" to be "*destroyed*". Does this mean that God would let all their *enemies* escape, but kill all their *friends*, or that he would *first* kill "all the people" and THEN make them turn their backs in flight, an army of runaway corpses?

The word rendered *backs*, is in the original, *necks*, and the passage *may* mean, I will make all your enemies turn their necks unto you; that is, be

subject to you as tributaries, become *denationalized*, their civil polity, state organization, political existence, *destroyed*—their idolatrous temples, altars, images, groves, and all heathen rites *destroyed*; in a word, their whole system, national, political, civil, and religious, subverted, and the whole people *put under tribute*. Again; if these commands required the unconditional destruction of all the *individuals* of the Canaanites, the Mosaic law was at war with itself, for the directions relative to the treatment of native residents and sojourners, form a large part of it. "The stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself." "If thy brother be waxen poor, thou shalt relieve him, yea, though he be a *stranger or a sojourner*, that he may live with thee." "Thou shalt not oppress a *stranger*." "Thou shalt not vex a *stranger*." "Judge righteously between every, man and his brother, and the *stranger* that is with him." "Ye shall not respect persons in judgement." "Ye shall have one manner of law as well for the *stranger*, as for him of your own country." We find, also, that provision was made for them in the cities of refuge. Num. xxxv. 15—the gleanings of the harvest and vintage were assigned to them, Lev. xix. 9, 10, and xxiii. 22, and 25, 6;—the blessings of the Sabbath, theirs, Ex. xx. 10;—the privilege of offering sacrifices secured, Lev. 22. 18; and stated religious instruction provided for them. Deut. xxxi. 9, 12. Now, does this *same law* authorize and appoint the *individual extermination* of those very persons, whose lives and general interests it so solicitously protects? These laws were given to the Israelites, long *before* they entered Canaan; and they must of necessity have inferred from them, that a multitude of the inhabitants of the land would *continue in it*, under their government.

3. We argue that these commands did not require the INDIVIDUAL destruction of the Canaanites unconditionally, from the fact that the most pious Israelites never seem to have so regarded them. Joshua was selected as the leader of Israel to execute God's threatenings upon Canaan. He had no *discretionary* power. God's commands were his *official instructions*. Going *beyond* them would have been usurpation; refusing to *carry them out*, rebellion and treason. For not obeying, in *every particular*, and in a *single* instance, God's command respecting the Amalekites, Saul was rejected from being king.

Now, if God commanded the individual destruction of all the Canaanitish nations, Joshua *disobeyed him in every instance*. For at his death, the Israelites still "*dwelt among them*," and each nation is mentioned by name. See Judges i. 5, and yet we are told that "Joshua was full of the spirit of the Lord and of WISDOM," Deut. xxxiv. 9. (of course, he could not have been ignorant of the meaning of those commands,)—that "the Lord was with him," Josh. vi. 27; and that he "left nothing undone of all that the Lord commanded Moses;" and further, that he "took all that land." Joshua xi, 15-23. Also, that "the Lord gave unto Israel all the land which he swore to give unto their fathers, and they possessed it and dwelt therein, and there *stood not a man* of *all* their enemies before them." "The Lord delivered *all their* enemies into their hand," &c.

How can this testimony be reconciled with itself, if we suppose that the command to *destroy* enjoined *individual* extermination, and the command to *drive out*, enjoined the unconditional expulsion of individuals from the country, rather than their expulsion from the *possession* or *ownership* of it, as the lords of the soil? It is true, multitudes of the Canaanites were slain, but in every case it was in consequence of their refusing to surrender their land to the possession of the Israelites. Not a solitary case can be found in which a Canaanite was either killed or driven out of the country, who acquiesced in the transfer of the territory of Canaan, and its sovereignty, from the inhabitants of the land to the Israelites. Witness the case of Rahab and all her kindred, and the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim^A. The Canaanites knew of the miracles in Egypt, at the Red Sea, in the wilderness, and at the passage of Jordan. They knew that their land had been transferred to the Israelites, as a judgment upon them for their sins.—See Joshua ii. 9-11, and ix. 9, 10, 24. Many of them were awed by these wonders, and made no resistance to the confiscation of their territory. Others fiercely resisted, defied the God of the armies of Israel, and came out to battle. These occupied the *fortified cities*, were the most *inveterate* heathen—the *aristocracy* of idolatry, the *kings*, the *nobility* and *gentry*, the *priests*, with their crowds of satellites, and retainers that aided in the performance of idolatrous rites, the *military forces*, with the chief profligates and lust-panders of both sexes. Every Bible student will recall many facts corroborating this supposition. Such as the multitudes of *tributaries* in the midst of Israel, and that too, when the Israelites had

"waxed strong," and the uttermost nations quaked at the terror of their name. The large numbers of the Canaanites, as well as the Philistines and others, who became proselytes, and joined themselves to the Hebrews—as the Nethenims, Uriah the Hittite, one of David's memorable "thirty seven"—Rahab, who married one of the princes of Judah—Ittai—The six hundred Gittites—David's bodyguard, "faithful among the faithless."—2 Sam. xv. 18, 21. Obbededom the Gittite, who was adopted into the tribe of Levi.—Compare 2 Sam. vi. 10, 11, with 1 Chron. xv. 18, and 1 Chron xxvi. 45. The cases of Jaziz, and Obil,—1 Chron. xxvi. 30, 31, 33. Jephunneh, the father of Caleb—the Kenite, registered in the genealogies of the tribe of Judah, and the one hundred and fifty thousand Canaanites, employed by Solomon in the building of the Temple^B. Add to these, the fact that the most memorable miracle on record, was wrought for the salvation of a portion of those very Canaanites, and for the destruction of those who would exterminate them.—Joshua x. 12-14. Further—the terms used in the directions of God to the Israelites, regulating their disposal of the Canaanites, such as, "drive out," "put out," "cast out," "expel," "dispossess," &c. seem used interchangeably with "consume," "destroy," "overthrow," &c., and thus indicate the sense in which the latter words are used. As an illustration of the meaning generally attached to these and similar terms, when applied to the Canaanites in Scripture, we refer the reader to the history of the Amalekites. In Ex. xxvii. 14, God says, "I will utterly put out the remembrance of Amalek from under heaven,"—In Deut. xxv. 19, "Thou shalt blot out the remembrance of Amalek from under heaven; thou shalt not forget it."—In 1 Sam. xv. 2, 3. "Smite Amalek and *utterly destroy* all that they have, and spare them not, but slay both man and woman, infant and suckling, ox and sheep." In the seventh and eighth verses of the same chapter, we are told, "Saul smote the Amalekites, and took Agag the king of the Amalekites, alive, and **UTTERLY DESTROYED ALL THE PEOPLE** with the edge of the sword." In verse 20, Saul says, "I have obeyed the voice of the Lord, and have brought Agag, the king of Amalek, and have *utterly destroyed* the Amalekites."

^A: Perhaps it will be objected, that the preservation of the Gibeonites, and of Rahab and her kindred, was a violation of the command of God. We answer, if it had been, we might expect some such intimation. If God had straitly commanded them to *exterminate all the Canaanites*, their pledge to

save them alive, was neither a repeal of the statute, nor absolution for the breach of it. If *unconditional destruction* was the import of the command, would God have permitted such an act to pass without severe rebuke? Would he have established such a precedent when Israel had hardly passed the threshold of Canaan, and was then striking the first blow of a half century war? What if they *had* passed their word to Rahab and the Gibeonites? Was that more binding upon them than God's command? So Saul seems to have passed *his* word to Agag; yet Samuel hewed him in pieces, because in saving his life, Saul had violated God's command. This same Saul appears to have put the same construction on the command to destroy the inhabitants of Canaan, that is generally put upon it now. We are told that he sought to slay the Gibeonites "in his zeal for the children of Israel and Judah." God sent upon Israel a three years' famine for it. In assigning the reason, he says, "It is for Saul and his bloody house, because he slew the Gibeonites." When David inquired of them what atonement he should make, they say, "The man that consumed us, and that devised against us, that we should be destroyed from *remaining in any of the coasts of Israel* let seven of his sons be delivered," &c. 2 Samuel xxii. 1-6.

B: If the Canaanites were devoted by God to individual and unconditional extermination, to have employed them in the erection of the temple,—what was it but the climax of impiety? As well might they pollute its altars with swine's flesh, or make their sons pass through the fire to Moloch.

In 1 Sam. 30th chapter, we find the Amalekites at war again, marching an army into Israel, and sweeping every thing before them—and all this in hardly more than twenty years after they had *all been* UTTERLY DESTROYED!

Deut. xx. 16, 17, will probably be quoted against the preceding view. "*But of the cities of these people which the Lord thy God doth give thee for an inheritance, thou shalt save alive nothing that breatheth: but thou shalt utterly destroy them; namely, the Hittites, and the Amorites, the Canaanites, and the Perizzites, the Hivites, and the Jebusites, as the Lord thy God hath commanded thee.*" We argue that this command to exterminate, did not include all the individuals of the Canaanitish nations, but only the inhabitants of the *cities*, (and even those conditionally,) for the following reasons.

I. Only the inhabitants of *cities* are specified,—“of the *cities* of these people thou shalt save alive nothing that breatheth.” The reasons for this wise discrimination were, no doubt, (1.) Cities then, as now, were pest-houses of vice—they reeked with abominations little practiced in the country. On this account, their influence would be far more perilous to the Israelites than that of the country. (2.) These cities were the centres of idolatry—the residences of the priests, with their retinues of the baser sort. There were their temples and altars, and idols, without number. Even their buildings, streets, and public walks were so many visibilities of idolatry. The reason assigned in the 18th verse for exterminating them, strengthens the idea,—“*that they teach you not to do after all the abominations which they have done unto their gods.*” This would be a reason for exterminating *all* the nations and individuals *around* them, as all were idolaters; but God permitted, and even commanded them, in certain cases, to spare the inhabitants. Contact with *any* of them would be perilous—with the inhabitants of the *cities* peculiarly, and of the *Canaanitish* cities preeminently so.

It will be seen from the 10th and 11th verses, that those cities which accepted the offer of peace were to be spared. “*When thou comest nigh unto a city to fight against it, then proclaim peace unto it. And it shall be, if it make thee answer of peace and open unto thee, then it shall be, that all the people that is found therein shall be* **TRIBUTARIES** *unto thee, and they shall* **SERVE** *thee.*”—Deuteronomy xx. 10, 11. These verses contain the general rule prescribing the method in which cities were to be summoned to surrender.

1. The offer of peace—if it was accepted, the inhabitants became *tributaries*—if it was rejected, and they came out against Israel in battle, the *men* were to be killed, and the women and little ones saved alive. See Deuteronomy xx. 12, 13, 14. The 15th verse restricts their lenient treatment in saving the wives and little ones of those who fought them, to the inhabitants of the cities *afar off*. The 16th verse gives directions for the disposal of the inhabitants of Canaanitish cities, after they had taken them. Instead of sparing the women and children, they were to save alive nothing that breathed. The common mistake has been, in taking it for granted, that the command in the 15th verse, “Thus shalt thou do unto all the cities,” &c. refers to the *whole system of directions preceding*, commencing with the

10th verse, whereas it manifestly refers only to the *infections* specified in the verses immediately preceding, viz. the 12th, 13th, and 14th, and thus make a distinction between those *Canaanitish* cities that *fought*, and the cities *afar off* that fought—in one case destroying the males and females, and in the other, the *males* only. The offer of peace, and the *conditional preservation*, were as really guaranteed to *Canaanitish* cities as to others. Their inhabitants were not to be exterminated *unless they came out against Israel in battle*. But let us settle this question by the "*law and the testimony*." Joshua xix. 19, 20.—"*There was not a city that made peace with the children of Israel save, the Hivites, the inhabitants of Gibeon; all others they took in battle. For it was of the Lord to harden their hearts, that they should COME OUT AGAINST ISRAEL IN BATTLE, that he might destroy them utterly, and that they might have no favor, but that he might destroy them, as the Lord commanded Moses.*" That is, if they had not come out against Israel in battle, they would have had "favor" shown them, and would not have been "*destroyed utterly*"

The great design of God seems to have been to *transfer the territory* of the Canaanites to the Israelites, and along with it, *absolute sovereignty in every respect*; to annihilate their political organizations, civil polity, jurisprudence, and their system of religion, with all its rights and appendages; and to substitute therefor, a pure theocracy, administered by Jehovah, with the Israelites as His representatives and agents. Those who resisted the execution of Jehovah's purpose were to be killed, while those who quietly submitted to it were to be spared. All had the choice of these alternatives, either free egress out of the land^A; or acquiescence in the decree, with life and residence as tributaries, under the protection of the government; or resistance to the execution of the decree, with death. "*And it shall come to pass, if they will diligently learn the ways of my people, to swear by my name, the Lord liveth, as they taught my people to swear by Baal; THEN SHALL THEY BE BUILT IN THE MIDST OF MY PEOPLE.*"

^A: Suppose all the Canaanitish nations had abandoned their territory at the tidings of Israel's approach, did God's command require the Israelites to chase them to the ends of the earth, and hunt them down, until every Canaanite was destroyed? It is too preposterous for belief, and yet it follows legitimately from that construction, which interprets the terms "consume,"

"destroy," "destroy utterly," &c. to mean unconditional individual extermination.

* * * * *

[The preceding Inquiry is merely an *outline*. Whoever *reads* it, needs no such information. Its original design embraced a much wider range of general topics, and subordinate heads, besides an Inquiry into the teachings of the New Testament on the same subject. To have filled up the outline, in conformity with the plan upon which it was sketched, would have swelled it to a volume. Much of the foregoing has therefore been thrown into the form of a mere skeleton of heads, or rather a series of *indices*, to trains of thought and classes of proof, which, however limited or imperfect, may perhaps, afford some facilities to those who have little leisure for minute and protracted investigation.]

No. 4.

**THE
ANTI-SLAVERY EXAMINER.**

**THE
BIBLE AGAINST SLAVERY.
AN INQUIRY INTO THE PATRIARCHAL AND
MOSAIC SYSTEMS ON THE SUBJECT OF
HUMAN RIGHTS. Third Edition—Revised.**

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CONTENTS

- DEFINITION OF SLAVERY,
 - Negative,
 - Affirmative,
 - Legal,
- THE MORAL LAW AGAINST SLAVERY
 - "Thou shalt not steal,"
 - "Thou shalt not covet,"
- MAN-STEALING—EXAMINATION OF EX. xxi. 16,
 - Separation of man from brutes and things,
- IMPORT OF "BUY" AND "BOUGHT WITH MONEY,"
 - Servants sold themselves,
- RIGHTS AND PRIVILEGES SECURED BY LAW TO SERVANTS,
- SERVANTS WERE VOLUNTARY,
 - Runaway Servants not to be delivered to their Masters,
- SERVANTS WERE PAID WAGES,
- MASTERS NOT "OWNERS,"
 - Servants not subjected to the uses of property,
 - Servants expressly distinguished from property,
 - Examination of Gen. xii. 5.—"The souls that they had gotten," &c.
 - Social equality of Servants and Masters,
 - Condition of the Gibeonites as subjects of the Hebrew Commonwealth,
 - Egyptian Bondage analyzed,
- OBJECTIONS CONSIDERED.
- "CURSED BE CANAAN," &c.—EXAMINATION OF GEN. ix. 25,
- "FOR HE IS HIS MONEY," &c.—EXAMINATION OF EX. xxi. 20, 21,
- EXAMINATION OF LEV. xxv. 44-46,
 - "Both thy BONDMEN, &c., shall be of the heathen,"
 - "They shall be your bondmen FOREVER,"
 - "Ye shall take them as an INHERITANCE," &c.
- EXAMINATION OF LEV. XXV. 39, 40.—THE FREEHOLDER NOT TO "SERVE AS A BOND SERVANT,"
 - Difference between Hired and Bought Servants,
 - Bought Servants the most favored and honored class,
 - Israelites and Strangers belonged to both classes,

- Israelites servants to the Strangers,
- Reasons for the release of the Israelitish Servants in the seventh year,
- Reasons for assigning the Strangers to a longer service,
- Reasons for calling them *the* Servants,
- Different kinds of service assigned to the Israelites and Strangers,
- REVIEW OF ALL THE CLASSES OF SERVANTS WITH THE MODIFICATIONS OF EACH,
- ◦ Political disabilities of the Strangers,
- EXAMINATION OF EX. xxi. 2-6.—"IF THOU BUY AN HEBREW SERVANT,"
- THE CANAANITES NOT SENTENCED TO UNCONDITIONAL EXTERMINATION,

THE BIBLE AGAINST SLAVERY.

The spirit of slavery never seeks shelter in the Bible, of its own accord. It grasps the horns of the altar only in desperation—rushing from the terror of the avenger's arm. Like other unclean spirits, it "hateth the light, neither cometh to the light, lest its deeds should be reproved." Goaded to phrenzy in its conflicts with conscience and common sense, denied all quarter, and hunted from every covert, it vaults over the sacred inclosure and courses up and down the Bible, "seeking rest, and finding none." THE LAW OF LOVE, glowing on every page, flashes around it an omnipresent anguish and despair. It shrinks from the hated light, and howls under the consuming touch, as demons quailed before the Son of God, and shrieked, "Torment us not." At last, it slinks away under the types of the Mosaic system, and seeks to burrow out of sight among their shadows. Vain hope! Its asylum is its sepulchre; its city of refuge, the city of destruction. It flies from light into the sun; from heat, into devouring fire; and from the voice of God into the thickest of His thunders.

DEFINITION OF SLAVERY.

If we would know whether the Bible sanctions slavery, we must determine *what slavery is*. A constituent element, is one thing; a relation, another; an appendage, another. Relations and appendages presuppose *other* things to which they belong. To regard them as *the things themselves*, or as constituent parts of them, leads to endless fallacies. A great variety of conditions, relations, and tenures, indispensable to the social state, are confounded with slavery; and thus slaveholding becomes quite harmless, if not virtuous. We will specify some of these.

1. *Privation of suffrage*. Then minors are slaves.
2. *Ineligibility to office*. Then females are slaves.
3. *Taxation without representation*. Then slaveholders in the District of Columbia are slaves.
4. *Privation of one's oath in law*. Then disbelievers in a future retribution are slaves.
5. *Privation of trial by jury*. Then all in France and Germany are slaves.
6. *Being required to support a particular religion*. Then the people of England are slaves. [To the preceding may be added all other disabilities, merely *political*.]
7. *Cruelty and oppression*. Wives, children, and hired domestics are often oppressed; but these forms of cruelty are not slavery.
8. *Apprenticeship*. The rights and duties of master and apprentice are correlative and reciprocal. The claim of each upon the other results from his *obligation* to the other. Apprenticeship is based on the principle of equivalent for value received. The rights of the apprentice are secured, equally with those of the master. Indeed, while the law is *just* to the master, it is *benevolent* to the apprentice. Its main design is rather to benefit the apprentice than the master. It promotes the interests of the former, while in doing it, it guards from injury those of the latter. To the master it secures a mere legal compensation—to the apprentice, both a legal compensation and a virtual gratuity in addition, he being of the two the greatest gainer. The law not only recognizes the *right* of the apprentice to a reward for his labor, but appoints the wages, and enforces the payment. The master's claim

covers only the services of the apprentice. The apprentice's claim covers *equally* the services of the master. Neither can hold the other as property; but each holds property in the services of the other, and BOTH EQUALLY. Is this slavery?

9. *Filial subordination and parental claims.* Both are nature's dictates and intrinsic elements of the social state; the natural affections which blend parent and child in one, excite each to discharge those offices incidental to the relation, and constitute a shield for mutual protection. The parent's legal claim to the child's services, while a minor, is a slight return for the care and toil of his rearing, to say nothing of outlays for support and education. This provision is, with the mass of mankind, indispensable to the preservation of the family state. The child, in helping his parents, helps himself—increases a common stock, in which he has a share; while his most faithful services do but acknowledge a debt that money cannot cancel.

10. *Bondage for crime.* Must innocence be punished because guilt suffers penalties? True, the criminal works for the government without pay; and well he may. He owes the government. A century's work would not pay its drafts on him. He is a public defaulter, and will die so. Because laws make men pay their debts, shall those be forced to pay who owe nothing? The law makes no criminal, PROPERTY. It restrains his liberty, and makes him pay something, a mere penny in the pound, of his debt to the government; but it does not make him a chattel. Test it. To own property, is to own its product. Are children born of convicts, government property? Besides, can *property* be guilty? Are chattels punished?

11. *Restraints upon freedom.* Children are restrained by parents—pupils, by teachers—patients, by physicians—corporations, by charters—and legislatures, by constitutions. Embargoes, tariffs, quarantine, and all other laws, keep men from doing as they please. Restraints are the web of society, warp and woof. Are they slavery? then civilized society is a giant slave—a government of LAW, *the climax of slavery*, and its executive, a king among slaveholders.

12. *Compulsory service.* A juryman is empannelled against his will, and sit he must. A sheriff orders his posse; bystanders *must* turn in. Men are *compelled* to remove nuisances, pay fines and taxes, support their families,

and "turn to the right as the law directs," however much against their wills. Are they therefore slaves? To confound slavery with involuntary service is absurd. Slavery is a *condition*. The slave's *feelings* toward it, are one thing; the condition itself, is another thing; his feelings cannot alter the nature of that condition. Whether he desires or detests it, the condition remains the same. The slave's willingness to be a slave is no palliation of the slaveholder's guilt. Suppose the slave should think himself a chattel, and consent to be so regarded by others, does that *make* him a chattel, or make those guiltless who *hold* him as such? I may be sick of life, and I tell the assassin so that stabs me; is he any the less a murderer? Does my *consent* to his crime, atone for it? my partnership in his guilt, blot out his part of it? The slave's willingness to be a slave, so far from lessening the guilt of the "owner," aggravates it. If slavery has so palsied his mind that he looks upon himself as a chattel, and consents to be one, actually to hold him as such, falls in with his delusion, and confirms the impious falsehood. These very feelings and convictions of the slave, (if such were possible) increase a hundred fold the guilt of the master, and call upon him in thunder, immediately to recognize him as a man and thus break the sorcery that cheats him out of his birthright—the consciousness of his worth and destiny.

Many of the foregoing conditions are *appendages* of slavery. But no one, nor all of them together, constitute its intrinsic unchanging element.

We proceed to state affirmatively that, ENSLAVING MEN IS REDUCING THEM TO ARTICLES OF PROPERTY—making free agents, chattels—converting *persons* into *things*—sinking immortality, into *merchandise*. A *slave* is one held in this condition. In law, "he owns nothing, and can acquire nothing." His right to himself is abrogated. If he say *my* hands, *my* feet, *my* body, *my* mind, *MY self*, they are figures of speech. To use *himself* for his own good, is a CRIME. To keep what he *earns*, is stealing. To take his body into his own keeping, is *insurrection*. In a word, the *profit* of his master is made the END of his being, and he, a *mere means* to that end—a *mere means* to an end into which his interests do not enter, of which they constitute no portion^A. MAN, sunk to a *thing*! the intrinsic element, the *principle* of slavery; MEN, bartered, leased, mortgaged, bequeathed, invoiced, shipped in cargoes, stored as goods, taken on executions, and knocked off at public outcry! Their *rights*, another's conveniences; their

interests, wares on sale; their happiness, a household utensil; their personal inalienable ownership, a serviceable article, or a plaything, as best suits the humor of the hour; their deathless nature, conscience, social affections, sympathies, hopes—marketable commodities! We repeat it, *the reduction of persons to things*; not robbing a man of privileges, but of *himself*; not loading with burdens, but making him a *beast of burden*; not *restraining* liberty, but subverting it; not curtailing rights, but abolishing them; not inflicting personal cruelty, but annihilating *personality*; not exacting involuntary labor, but sinking him into an *implement* of labor; not abridging human comforts, but abrogating human nature; not depriving an animal of immunities, but despoiling a rational being of attributes—uncreating a MAN, to make room for a *thing*!

A: Whatever system sinks men from an END to a mere *means*, just so far makes him a *slave*. Hence West India apprenticeship retains the cardinal principle of slavery. The apprentice, during three fourths of his time, is still forced to labor, and robbed of his earnings; just so far forth he is a *mere means*, a *slave*. True, in other respects slavery is abolished in the British West Indies. Its bloodiest features are blotted out—but the meanest and most despicable of all—forcing the poor to work for the rich without pay three fourths of their time, with a legal officer to flog them if they demur at the outrage, is one of the provisions of the "Emancipation Act!" For the glories of that luminary, abolitionists thank God, while they mourn that it rose behind clouds, and shines through an eclipse.

That this is American slavery, is shown by the laws of slave states. Judge Stroud, in his "Sketch of the Laws relating to Slavery," says, "The cardinal principle of slavery, that the slave is not to be ranked among sentient beings, but among *things*—obtains as undoubted law in all of these [the slave] states." The law of South Carolina thus lays down the principle, "Slaves shall be deemed, held, taken, reputed, and adjudged in law to be chattels personal in the hands of their owners and possessors, and their executors, administrators, and assigns, to ALL INTENTS, CONSTRUCTIONS, AND PURPOSES WHATSOEVER."—Brevard's Digest, 229. In Louisiana, "A slave is one who is in the power of a master to whom he belongs; the master may sell him, dispose of his person, his industry, and his labor; he can do nothing, possess nothing, nor acquire any

thing, but what must belong to his master."—Civ. Code of Louisiana, Art. 35.

This is American slavery. The eternal distinction between a person and a thing, trampled under foot—the crowning distinction of all others—alike the source, the test, and the measure of their value—the rational, immortal principle, consecrated by God to universal homage, in a baptism of glory and honor by the gift of His Son, His Spirit, His word, His presence, providence, and power; His shield, and staff, and sheltering wing; His opening heavens, and angels ministering, and chariots of fire, and songs of morning stars, and a great voice in heaven, proclaiming eternal sanctions, and confirming the word with signs following.

Having stated the *principle* of American slavery, we ask, DOES THE BIBLE SANCTION SUCH A PRINCIPLE?^A "To the *law* and the *testimony*?" First, the moral law. Just after the Israelites were emancipated from their bondage in Egypt, while they stood before Sinai to receive the law, as the trumpet waxed louder, and the mount quaked and blazed, God spake the ten commandments from the midst of clouds and thunderings. Two of those commandments deal death to slavery. "THOU SHALT NOT STEAL," or, "thou shalt not take from another what belongs to him." All man's powers are God's gift to *him*. That they are *his own*, is proved from the fact that God has given them to *him alone*,—that each of them is a part of himself, and all of them together constitute himself. All else that belongs to man, is acquired by the *use* of these powers. The interest belongs to him, because the principal does; the product is his, because he is the producer. Ownership of any thing, is ownership of its *use*. The right to use according to will, is *itself* ownership. The eighth commandment presupposes and assumes the right of every man to his powers, and their product. Slavery robs of both. A man's right to himself, is the only right absolutely original and intrinsic—his right to whatever else that belongs to him is merely *relative* to this, is derived from it, and held only by virtue of it. SELF-RIGHT is the *foundation right*—the *post is the middle*, to which all other rights are fastened. Slaveholders, when talking about their RIGHT to their slaves, always assume their own right to themselves. What slaveholder ever undertook to prove his right to himself? He knows it to be a self-evident proposition, that *a man belongs to himself*—that the right is intrinsic and

absolute. In making out his own title, he makes out the title of every human being. As the fact of being a *man* is itself the title, the whole human family have one common title deed. If one man's title is valid, all are valid. If one is worthless, all are. To deny the validity of the *slave's* title is to deny the validity of *his own*; and yet in the act of making a man a slave, the slaveholder *asserts* the validity of his own title, while he seizes him as his property who has the *same* title. Further, in making him a slave, he does not merely disfranchise the humanity of *one* individual, but of UNIVERSAL MAN. He destroys the foundations. He annihilates *all rights*. He attacks not only the human race, but *universal being*, and rushes upon JEHOVAH. For rights are *rights*; God's are no more—man's are no less.

A: The Bible record of actions is no comment on their moral character. It vouches for them as *facts*, not as *virtues*. It records without rebuke, Noah's drunkenness, Lot's incest, and the lies of Jacob and his mother—not only single acts, but *usages*, such as polygamy and concubinage, are entered on the record without censure. Is that *silent entry* God's *endorsement*? Because the Bible in its catalogue of human actions, does not stamp on every crime its name and number, and write against it, *this is a crime*—does that wash out its guilt, and bleach into a virtue?

The eighth commandment forbids the taking of *any part* of that which belongs to another. Slavery takes the *whole*. Does the same Bible which prohibits the taking of *any* thing from him, sanction the taking of *every* thing? Does it thunder wrath against him who robs his neighbor of a *cent*, yet bid God speed to him who robs his neighbor of *himself*? Slaveholding is the highest possible violation of the eighth commandment. To take from a man his earnings, is theft. But to take the *earner*, is a compound, life-long theft—supreme robbery, that vaults up the climax at a leap—the dread, terrific, giant robbery, that towers among other robberies a solitary horror, monarch of the realm. The eighth commandment forbids the taking away, and the *tenth* adds, "THOU SHALT NOT COVET ANY THING THAT IS THY NEIGHBOR'S;" thus guarding every man's right to himself and his property, by making not only the actual taking away a sin, but even that state of mind which would *tempt* to it. Who ever made human beings slaves, without *coveting* them? Why take from them their time, labor, liberty, right of self-preservation and improvement, their right to acquire property, to worship according to conscience; to search the Scriptures, to

live with their families, and their right to their own bodies, if they do not *desire* them? They covet them for purposes of gain, convenience, lust of dominion, of sensual gratification of pride and ostentation. THEY BREAK THE TENTH COMMANDMENT, and pluck down upon their heads the plagues that are written in the book.—*Ten* commandments constitute the brief compend of human duty.—*Two* of these brand slavery as sin.

The giving of the law at Sinai, immediately preceded the promulgation of that body of laws called the "Mosaic system." Over the gateway of that system, fearful words were written by the finger of God—"HE THAT STEALETH A MAN AND SELLETH HIM, OR IF HE BE FOUND IN HIS HAND, HE SHALL SURELY BE PUT TO DEATH." Ex. xxi. 16.

The oppression of the Israelites in Egypt, and the wonders wrought for their deliverance, proclaim the reason for *such* a law at *such* a time—when the body politic became a theocracy, and reverently waited for the will of God. They had just been emancipated. The tragedies of their house of bondage were the realities of yesterday, and peopled their memories with thronging horrors. They had just witnessed God's testimony against oppression in the plagues of Egypt—the burning blains on man and beast—the dust quickened into loathsome life, and swarming upon every living thing—the streets, the palaces, the temples, and every house heaped up with the carcasses of things abhorred—the kneading troughs and ovens, the secret chambers and the couches; reeking and dissolving with the putrid death—the pestilence walking in darkness at noonday, the devouring locusts, and hail mingled with fire, the first-born death-struck, and the waters blood, and last of all, that dread high hand and stretched-out arm, that whelmed the monarch and his hosts, and strewed their corpses on the sea. All this their eyes had looked upon,—earth's proudest city, wasted and thunder-scarred, lying in desolation, and the doom of oppressors traced on her ruins in the hand writing of God, glaring in letters of fire mingled with blood—a blackened monument of wrath to the uttermost against the stealers of men. No wonder that God, in a code of laws prepared for such a people at such a time, should light up on its threshold a blazing beacon to flash terror on slaveholders. "*He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death.*" Ex. xxi. 16. Deut. xxiv. 7^A. God's cherubim and flaming sword guarding the entrance to the Mosaic system!

[A](#): Jarchi, the most eminent of the Jewish Commentators, who wrote seven hundred years ago, in his commentary on this stealing and making merchandize of men, gives the meaning thus:—"Using a man against his will, as a servant lawfully purchased; yea, though he should use his services ever so little, only to the value of a farthing, or use but his arm to lean on to support him, *if he be forced so to act as a servant*, the person compelling him but once to do so shall die as a thief, whether he has sold him or not."

The word *Gānābh* here rendered *stealeth*, means the taking what *belongs* to another, whether by violence or fraud; the same word is used in the eighth commandment, and prohibits both *robbery* and theft.

The crime specified is that of depriving **SOMEBODY** of the ownership of a man. Is this somebody a master? and is the crime that of depriving a master of his servant? Then it would have been "he that stealeth" a *servant*, *not* "he that stealeth a *man*." If the crime had been the taking an individual from *another*, then the *term* used would have been expressive of that relation, and most especially if it was the relation of property and *proprietor*!

The crime is stated in a three-fold form—man *stealing*, *selling*, and *holding*. All are put on a level, and whelmed under one penalty—DEATH. This *somebody* deprived of the ownership of a man, is the *man himself*, robbed of personal ownership. Joseph said, "Indeed I was *stolen* away out of the land of the Hebrews." Gen. xl. 15. How *stolen*? His brethren sold him as an article of merchandize. Contrast this penalty for *man-stealing* with that for *property-stealing*, Ex. xxii. If a man had stolen an ox and killed or sold it, he was to restore five oxen; if he had neither sold nor killed it, two oxen. But in the case of stealing a *man*, the *first* act drew down the utmost power of punishment; however often repeated, or aggravated the crime, human penalty could do no more. The fact that the penalty for *man-stealing* was death, and the penalty for *property-stealing*, the mere restoration of double, shows that the two cases were adjudicated on totally different principles. The man stolen might be past labor, and his support a burden, yet death was the penalty, though not a cent's worth of *property value* was taken. The penalty for stealing property was a mere property penalty. However large the theft, the payment of double wiped out the score. It might have a greater *money* value than a thousand men, yet death was not the penalty, nor maiming, nor branding, nor even *stripes*, but double of *the same kind*. Why

was not the rule uniform? When a *man* was stolen why was not the thief required to restore double of the same kind—two men, or if he had sold him, five men? Do you say that the man-thief might not *have* them? So the ox-thief might not have two oxen, or if he had killed it, five. But if God permitted men to hold *men* as property, equally with *oxen*, the man-thief could get men with whom to pay the penalty, as well as the ox-thief, oxen. Further, when *property* was stolen, the legal penalty was a compensation to the person injured. But when a *man* was stolen, no property compensation was offered. To tender money as an equivalent, would have been to repeat the outrage with intolerable aggravations. Compute the value of a MAN in *money*! Throw dust into the scale against immortality! The law recoiled from such supreme insult and impiety. To have permitted the man-thief to expiate his crime by restoring double, would have been making the repetition of crime its atonement. But the infliction of death for *man-stealing* exacted the utmost possibility of reparation. It wrung from the guilty wretch as he gave up the ghost, a testimony in blood, and death-groans, to the infinite dignity and worth of man,—a proclamation to the universe, voiced in mortal agony, "MAN IS INVIOLEABLE"—a confession shrieked in phrenzy at the grave's mouth—"I die accursed, and God is just."

If God permitted man to hold man as property, why did he punish for stealing that kind of property infinitely more than for stealing any other kind of property? Why did he punish with death for stealing a very little of *that* sort of property, and make a mere fine, the penalty for stealing a thousand times as much, of any other sort of property—especially if God did by his own act annihilate the difference between man and *property*, by putting him on a level with it?

The atrociousness of a crime, depends much upon the nature, character, and condition of the victim. To steal is a crime, whoever the thief, or whatever the plunder. To steal bread from a full man, is theft; to steal from a starving man, is both theft and murder. If I steal my neighbor's property, the crime consists not in altering the *nature* of the article but in shifting its relation from him to me. But when I take my neighbor himself, and first make him *property*, and then *my* property, the latter act, which was the sole crime in the former case, dwindles to nothing. The sin in stealing a man, is not the transfer from its owner to another of that which is *already property*, but the turning of *personality* into *property*. True, the attributes of man remain, but

the rights and immunities which grow out of them are attributed. It is the first law both of reason and revelation to regard things and beings as they are; and the sum of religion, to feel and act towards them according to their value. Knowingly to treat them otherwise is sin; and the degree of violence done to their nature, religions, and value, measures its guilt. When things are sundered which God has indissolubly joined, or confounded in one, which he has separated by infinite extremes; when sacred and eternal distinctions, which he has garnished with glory, are derided and set at nought, then, if ever, sin reddens to its "scarlet dye." The sin specified in the passage, is that of doing violence to the *nature* of a man—to his intrinsic value as a rational being, and blotting out the exalted distinction stamped upon him by his Maker. In the verse preceding, and in that which follows, the same principle is laid down. Verse 15, "He that smiteth his father or his mother shall surely be put to death." V. 17, "He that curseth his father or his mother, shall surely be put to death." If a Jew smote his neighbor, the law merely smote him in return; but if the blow was given to a *parent*, it struck the smiter dead. The parental relation is the *centre* of human society. God guards it with peculiar care. To violate that, is to violate all. Whoever trampled on that, showed that *no* relation had any sacredness in his eyes—that he was unfit to move among human relations who had violated one so sacred and tender. Therefore, the Mosaic law uplifted his bleeding corpse, and brandished the ghastly terror around the parental relation to guard it from impious inroads.

Why such a difference in penalties, for the same act? Answer. (1.) The relation violated was obvious—the distinction between parents and others manifest, dictated by natural affection—a law of the constitution. (2.) The act was violence to nature—a suicide on constitutional susceptibilities. (3.) The parental relation then, as now, was the focal point of the social system, and required powerful safeguards. "*Honor thy father and thy mother*," stands at the head of those commands which prescribe the duties of man to man; and, throughout the Bible, the parental state is God's favorite illustration of his own relations to the whole human family. In this case death was to be inflicted not for smiting a *man*, but a *parent*—a *distinction* cherished by God, and around which, He threw up a bulwark of defence. In the next verse, "He that stealeth a man," &c., the SAME PRINCIPLE is wrought out in still stronger relief. The crime to be punished with death was

not the taking of property from its owner, but the doing violence to an *immortal nature*, blotting out a sacred *distinction*, making MEN "chattels." The incessant pains taken in the Old Testament to separate human beings from brutes and things, shows God's regard for his own distinction.

"In the beginning" it was uttered in heaven, and proclaimed to the universe as it rose into being. Creation was arrayed at the instant of its birth, to do it homage. It paused in adoration while God ushered forth its crowning work. Why that dread pause and that creating arm held back in mid career and that high conference in the godhead? "Let us make man in OUR IMAGE after OUR LIKENESS, AND LET HIM HAVE DOMINION over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth." Then while every living thing, with land, and sea, and firmament, and marshalled worlds, waited to swell the shout of morning stars—then "GOD CREATED MAN IN HIS OWN IMAGE; IN THE IMAGE OF GOD CREATED HE HIM." This solves the problem, **IN THE IMAGE OF GOD, CREATED HE HIM**. Well might the sons of God shout, "Amen, alleluia"—For thou hast made him a little lower than the angels, and hast crowned him with glory and honor. Thou madest him to have dominion over the works of thy hands; thou hast put all things under his feet." Ps. viii. 5, 6. The repetition of this distinction is frequent and solemn. In Gen. i. 26-28, it is repeated in various forms. In Gen. v. 1, we find it again, "IN THE LIKENESS OF GOD MADE HE MAN." In Gen. ix. 6, again. After giving license to shed the blood of "every moving thing that liveth," it is added, "*Whoso sheddeth man's blood, by man shall his blood be shed, for IN THE IMAGE OF GOD MADE HE MAN.*" As though it had been said, "All these creatures are your property, designed for your use—they have the likeness of earth, they perish with the using, and their spirits go downward; but this other being, MAN, has my own likeness: "IN THE IMAGE OF GOD made I man;" "an intelligent, moral, immortal agent, invited to all that I can give and he can be." So in Lev. xxiv. 17, 18, 21, "He that killeth any MAN shall surely be put to death; and he that killeth a beast shall make it good, beast for beast; and he that killeth a man shall be put to death." So in Ps. viii. 5, 6, what an enumeration of particulars, each separating infinitely MEN from brutes and things! (1.) "*Thou hast made him a little lower than the angels.*" Slavery drags him down among *brutes*. (2.) "*And hast crowned him with glory and honor.*" Slavery tears off his crown, and puts on a yoke.

(3.) "*Thou madest him to have dominion OVER the works of thy hands.*" Slavery breaks the sceptre, and casts him down *among* those works—yea *beneath them*. (4.) "*Thou hast put all things under his feet.*" Slavery puts HIM under the feet of an "owner." Who, but an impious scorner, dares thus strive with his Maker, and mutilate HIS IMAGE, and blaspheme the Holy One, who saith, "*Inasmuch as ye did it unto one of the least of these, ye did it unto ME.*"

In further presenting this inquiry, the Patriarchal and Mosaic systems will be considered together, as each reflects light upon the other, and as many regulations of the latter are mere *legal* forms of Divine institutions previously existing. As a *system*, the latter alone is of Divine authority. Whatever were the usages of the patriarchs, God has not made them our exemplars^A.

^A: Those who insist that the patriarchs held slaves, and sit with such delight under their shadow, hymning the praises of "those good old patriarchs and slaveholders," might at small cost greatly augment their numbers. A single stanza celebrating patriarchal *concubinage*, winding off with a chorus in honor of patriarchal *drunkenness*, would be a trumpet call, summoning from bush and brake, highway and hedge, and sheltering fence, a brotherhood of kindred affinities, each claiming Abraham or Noah as his patron saint, and shouting, "My name is legion." What a myriad choir and thunderous song.

Before entering upon an analysis of the condition of servants under these two states of society, we will consider the import of certain terms which describe the mode of procuring them.

IMPORT OF "BUY," AND "BOUGHT WITH MONEY."

As the Israelites were commanded to "buy" their servants, and as Abraham had servants "bought with money," it is argued that servants were articles of *property*. The sole ground for this belief is the terms themselves. How much might be saved, if in discussion, the thing to be proved were always *assumed*. To beg the question in debate, would be vast economy of midnight oil! and a great forestaller of wrinkles and grey hairs! Instead of protracted investigation into Scripture usage, with painful collating of

passages, to find the meaning of terms, let every man interpret the oldest book in the world by the usages of his own time and place, and the work is done. And then instead of one revelation, they might be multiplied as the drops of the morning, and every man have an infallible clue to the mind of the Spirit, if he only understood the dialect of his own neighborhood! What a Babel-jargon it would make of the Bible to take it for granted that the sense in which words are *now* used is the *inspired* sense, David says, "I prevented the dawning of the morning, and cried." What, stop the earth in its revolution! Two hundred years ago, *prevent* was used in its strict Latin sense to *come before*, or *anticipate*. It is always used in this sense in the Old and New Testaments. David's expression, in the English of the nineteenth century, would be "Before the dawning of the morning I cried." In almost every chapter of the Bible, words are used in a sense now nearly or quite obsolete, and sometimes in a sense totally *opposite* to their present meaning. A few examples follow: "I purposed to come to you, but was *let* (hindered) hitherto." "And the four *beasts* (living ones) fell down and worshipped God,"—"Whosoever shall *offend* (cause to sin) one of these little ones,"—"Go out into the highways and *compel* (urge) them to come in,"—"Only let your *conversation* (habitual conduct) be as becometh the Gospel,"—"They that seek me *early* (earnestly) shall find me,"—"So when tribulation or persecution ariseth *by-and-by* (immediately) they are offended." Nothing is more mutable than language. Words, like bodies, are always throwing off some particles and absorbing others. So long as they are mere *representatives*, elected by the whims of universal suffrage, their meaning will be a perfect volatile, and to cork it up for the next century is an employment sufficiently silly (to speak within bounds) for a modern Bible Dictionary maker. There never was a shallower conceit than that of establishing the sense attached to a word centuries ago, by showing what it means *now*. Pity that fashionable mantuamakers were not a little quicker at taking hints from some Doctors of Divinity. How easily they might save their pious customers all qualms of conscience about the weekly shiftings of fashion, by proving that the last importation of Parisian indecency now flaunting on promenade, was the very style of dress in which the pious Sarah kneaded cakes for the angels, and the modest Rebecca drew water for the camels of Abraham's servants. Since such fashions are rife in Broadway *now*, they *must* have been in Canaan and Padanaram four thousand years ago!

The inference that the word buy, used to describe the procuring of servants, means procuring them as *chattels*, seems based upon the fallacy, that whatever *costs* money *is* money; that whatever or whoever you pay money *for*, is an article of property, and the fact of your paying for it *proves* it property. The children of Israel were required to purchase their first-born from under the obligations of the priesthood, Num. xviii. 15, 16; Ex. xiii. 13; xxxiv. 20. This custom still exists among the Jews, and the word *buy* is still used to describe the transaction. Does this prove that their first-born were, or are, held as property? They were *bought* as really as were *servants*. (2.) The Israelites were required to pay money for their own souls. This is called sometimes a ransom, sometimes an atonement. Were their souls therefore marketable commodities? (3.) Bible saints *bought* their wives. Boaz bought Ruth. "So Ruth the Moabite, the wife of Mahlon, have I *purchased* to be my wife." Ruth iv. 10. Hosea bought his wife. "So I *bought* her to me for fifteen pieces of silver, and for an homer of barley, and an half homer of barley." Hosea iii. 2. Jacob bought his wives Rachael and Leah, and not having money, paid for them in labor—seven years a piece. Gen. xxix. 15-29. Moses probably bought his wife in the same way, and paid for her by his labor, as the servant of her father. Exod. ii. 21. Shechem, when negotiating with Jacob and his sons for Dinah, says, "Ask me never so much dowry and gift, and I will give according as ye shall say unto me." Gen. xxxiv. 11, 12. David purchased Michal, and Othniel, Achsah, by performing perilous services for their fathers. 1 Sam. xviii. 25-27; Judg. i. 12, 13. That the purchase of wives, either with money or by service, was the general practice, is plain from such passages as Ex. xxii. 17, and 1 Sam. xviii. 25. Among the modern Jews this usage exists, though now a mere form, there being no *real* purchase. Yet among their marriage ceremonies, is one called "marrying by the penny." The coincidences in the methods of procuring wives and servants, in the terms employed in describing the transactions, and in the prices paid for each, are worthy of notice. The highest price of wives (virgins) and servants was the same. Comp. Deut. xxii. 28, 29, and Ex. xxii. 17, with Lev. xxvii. 2-8. The *medium* price of wives and servants was the same. Comp. Hos. iii. 2, with Ex. xxi. 32. Hosea seems to have paid one half in money and the other half in grain. Further, the Israelitish female bought servants were wives, their husbands and masters being the same persons. Ex. xxi. 8, Judg. xix. 3, 27. If *buying* servants proves them property, buying wives proves them property. Why

not contend that the *wives* of the ancient fathers of the faithful were their "chattels," and used as ready change at a pinch; and thence deduce the rights of modern husbands? Alas! Patriarchs and prophets are followed afar off! When will pious husbands live up to their Bible privileges, and become partakers with Old Testament worthies in the blessedness of a husband's rightful immunities! Refusing so to do, is questioning the morality of those "good old patriarchs and slaveholders, Abraham, Isaac, and Jacob."

This use of the word *buy*, is not peculiar to the Hebrew. In the Syriac, the common expression for "the espoused," is "the bought." Even so late as the 16th century, the common record of *marriages* in the old German Chronicles was, "A BOUGHT B."

The word translated *buy*, is, like other words, modified by the nature of the subject to which it is applied. Eve said, "I have *gotten* (bought) a man of the Lord." She named him Cain, that is *bought*. "He that heareth reproof, getteth (buyeth) understanding," Prov. xv. 32. So in Isa. xi. 11. "The Lord shall set his hand again to recover (to *buy*) the remnant of his people." So Ps. lxxviii. 54. "He brought them to this mountain which his right hand had *purchased*," (gotten.) Jer. xiii. 4. "Take the girdle that thou hast got" (bought.) Neh. v. 8. "We of our ability have *redeemed* (bought) our brethren that were sold to the heathen." Here "*bought*" is not applied to persons reduced to servitude, but to those taken *out* of it. Prov. 8. 22. "The Lord possessed (bought) me in the beginning of his way." Prov. xix. 8. "He that *getteth* (buyeth) wisdom loveth his own soul." Finally, to *buy* is a *secondary* meaning of the Hebrew word Kānā.

Even at this day the word *buy* is used to describe the procuring of servants, where slavery is abolished. In the British West Indies, where slaves became apprentices in 1834, they are still "bought." This is the current word in West India newspapers. Ten years since servants were "*bought*" in New-York, as really as in Virginia, yet the different senses in which the word was used in the two states, put no man in a quandary. Under the system of legal *indenture* in Illinois, servants now are "*bought*."^A Until recently immigrants to this country were "bought" in great numbers. By voluntary contract they engaged to work a given time to pay for their passage. This class of persons called "redemptioners," consisted at one time of thousands. Multitudes are "bought" *out* of slavery by themselves or others. Under the same roof with

the writer is a "servant bought with money." A few weeks since, she was a slave; when "bought" she was a slave no longer. Alas! for our leading politicians if "buying" men makes them "chattels." The Whigs say that Benton and Rives are "bought" by the administration; and the other party, that Clay and Webster are "bought" by the Bank. The histories of the revolution tell us that Benedict Arnold was "bought" by British gold. When a northern clergyman marries a rich southern widow, country gossip thus hits off the indecency, "The cotton bags *bought* him." Sir Robert Walpole said, "Every man has his price, and whoever will pay it, can *buy* him," and John Randolph said, "The northern delegation is in the market, give me money enough, and I can *buy* them;" both meant just what they said. The temperance publications tell us that candidates for office *buy* men with whiskey; and the oracles of street tattle that the court, district attorney, and jury, in the late trial of Robinson were *bought*, yet we have no floating visions of "chattels personal," man auctions, or coffles.

A: The following statute is now in force in the free state of Illinois—No negro, mulatto, or Indian shall at any time *purchase* any servant other than of their own complexion: and if any of the persons aforesaid shall presume to *purchase* a white servant, such servant shall immediately become free, and shall be so held, deemed and taken.

The transaction between Joseph and the Egyptians gives a clue to the use of "buy" and "bought with money." Gen, xlvii. 18-26. The Egyptians proposed to Joseph to become servants. When the bargain was closed, Joseph said, "Behold I have *bought* you this day," and yet it is plain that neither party regarded the persons *bought* as articles of property, but merely as bound to labor on certain conditions, to pay for their support during the famine. The idea attached by both parties to "buy us," and "behold I have bought you," was merely that of service voluntarily offered, and secured by contract, in return for *value received*, and not at all that the Egyptians were bereft of their personal ownership, and made articles of property. And this buying of *services* (in this case it was but one-fifth part) is called in Scripture usage, *buying the persons*. This case claims special notice, as it is the only one where the whole transaction of buying servants is detailed—the preliminaries, the process, the mutual acquiescence, and the permanent relation resulting therefrom. In all other instances, the *mere fact* is stated without particulars. In this case, the whole process is laid open. (1.) The

persons "bought," *sold themselves*, and of their own accord. (2.) Obtaining permanently the *services* of persons, or even a portion of them, is called "buying" those persons. The objector, at the outset, takes it for granted, that servants were bought of *third* persons; and thence infers that they were articles of property. Both the alleged fact and the inference are sheer *assumptions*. No instance is recorded, under the Mosaic system, in which a *master sold his servant*. That servants who were "bought" *sold themselves* is a fair inference from various passages of Scripture.

In Leviticus xxv. 47, the case of the Israelite, who became the servant of the stranger, the words are, "If he SELL HIMSELF unto the stranger." The *same word*, and the same *form* of the word, which, in verse 47, is rendered *sell himself*, is in verse 39 of the same chapter, rendered *be sold*; in Deut. xxviii. 68, the same word is rendered "be sold." "And there ye shall BE SOLD unto your enemies for bond-men and bond-women and NO MAN SHALL BUY YOU." How could they "*be sold*" without *being bought*? Our translation makes it nonsense. The word Mākar rendered "be sold" is used here in the Hithpael conjugation, which is generally reflexive in its force, and, like the middle voice in Greek, represents what an individual does for himself, and should manifestly have been rendered, "ye shall *offer yourselves* for sale, and there shall be no purchaser." For a clue to Scripture usage on this point, see 1 Kings xxi. 20, 25—"Thou hast *sold thyself* to work evil." "There was none like to Ahab that *sold himself* to work wickedness."—2 Kings xvii. 17. "They used divination and enchantments, and *sold themselves* to do evil."—Isa. l. 1. "For your iniquities have ye *sold yourselves*." Isa. lii. 3, "Ye have *sold yourselves* FOR NOUGHT, and ye shall be redeemed without money." See also, Jer. xxxiv. 14—Romans vii. 14, vi. 16—John viii. 34, and the case of Joseph and the Egyptians, already quoted. In the purchase of wives, though spoken of rarely, it is generally stated that they were bought of *third* persons. If *servants* were bought of third persons, it is strange that no *instance* of it is on record.

II.—THE LEADING DESIGN OF THE LAWS RELATING TO SERVANTS, WITH THE RIGHTS AND PRIVILEGES SECURED TO THEM.

The general object of the laws defining the relations of master and servant, was the good of both parties—more especially the good of the *servants*.

While the master's interests were guarded from injury, those of the servants were *promoted*. These laws made a merciful provision for the poorer classes, both of the Israelites and Strangers, not laying on burdens, but lightening them—they were a grant of *privileges* and *favors*.

I. No servant from the Strangers, could remain in the family of an Israelite without becoming a proselyte. Compliance with this condition was the *price of the privilege*.—Gen. xvii. 9-14, 23, 27.

II. Excommunication from the family was a PUNISHMENT.—Gen. xxi. 14. Luke xvi. 2-4.

III. Every Hebrew servant could COMPEL his master to keep him after the six years contract had expired. This shows that the system was framed to advance the interests and gratify the wishes of the servant quite as much as those of the master. If the servant *demand*ed it, the law *obliged* the master to retain him, however little he might need his services. Deut. xv. 12-17. Ex. xxi. 2-6.

IV. The rights and privileges guaranteed by law to all servants.

1. *They were admitted into covenant with God*. Deut. xxix. 10-13.

2. *They were invited guests at all the national and family festivals*. Ex. xii. 43-44; Deut. xii. 12, 18, xvi. 10-16.

3. *They were statedly instructed in morality and religion*. Deut. xxxi. 10-13; Josh. viii. 33-35; 2 Chron. xvii. 8-9.

4. *They were released from their regular labor nearly ONE HALF OF THE WHOLE TIME*. During which they had their entire support, and the same instruction that was provided for the other members of the Hebrew community.

(a.) The Law secured to them the *whole of every seventh year*; Lev. xxv. 3-6; thus giving to those who were servants during the entire period between the jubilees, *eight whole years*, including the jubilee year, of unbroken rest.

(b.) *Every seventh day*. This in forty-two years, the eight being subtracted from the fifty, would amount to just *six years*.

(c.) *The three annual festivals.* The *Passover*, which commenced on the 15th of the 1st month, and lasted seven days, Deut. xvi. 3, 8. The *Pentecost*, or *Feast of Weeks*, which began on the 6th day of the 3d month, and lasted seven days. Lev. xvi. 10, 11. The *Feast of Tabernacles*, which commenced on the 15th of the 7th month, and lasted eight days. Deut. xvi. 13, 15; Lev. xxiii. 34-39. As all met in one place, much time would be spent on the journey. Cumbered caravans move slowly. After their arrival, a day or two would be requisite for divers preparations before the celebration, besides some time at the close of it, in preparations for return. If we assign three weeks to each festival—including the time spent on the journeys, and the delays before and after the celebration, together with the *festival week*, it will be a small allowance for the cessation of their regular labor. As there were three festivals in the year, the main body of the servants would be absent from their stated employments at least *nine weeks annually*, which would amount in forty-two years, subtracting the Sabbaths, to six years and eighty-four days.

(d.) *The new moons.* The Jewish year had twelve; Josephus says that the Jews always kept *two* days for the new moon. See Calmet on the Jewish Calendar, and Horne's Introduction; also 1 Sam. xx. 18, 19, 27. This in forty-two years, would be two years 280 days.

(e.) *The feast of trumpets.* On the first day of the seventh month, and of the civil year. Lev. xxiii. 24, 25.

(f.) *The atonement day.* On the tenth of the seventh month. Lev. xxiii. 27.

These two feasts would consume not less than sixty-five days not reckoned above.

Thus it appears that those who continued servants during the period between the jubilees, were by law released from their labor, **TWENTY-THREE YEARS AND SIXTY-FOUR DAYS, OUT OF FIFTY YEARS**, and those who remained a less time, in nearly the same proportion. In this calculation, besides making a donation of all the *fractions* to the objector, we have left out those numerous *local* festivals to which frequent allusion is made, Judg. xxi. 19; I Sam. ix. etc., and the various *family* festivals, such as at the weaning of children; at marriages; at sheep shearings; at circumcisions; at the making of covenants, &c., to which reference is often

made, as in 1 Sam. xx. 28, 29. Neither have we included the festivals instituted at a later period of the Jewish history. The feast of Purim, Esth. ix. 28, 29; and of the Dedication, which lasted eight days. John x. 22; 1 Mac. iv. 59.

Finally, the Mosaic system secured to servants, an amount of time which, if distributed, would be almost ONE HALF OF THE DAYS IN EACH YEAR. Meanwhile, they were supported, and furnished with opportunities of instruction. If this time were distributed over *every day*, the servants would have to themselves nearly *one half of each day*.

THIS IS A REGULATION OF THAT MOSAIC SYSTEM WHICH IS CLAIMED BY SLAVEHOLDERS AS THE PROTOTYPE OF AMERICAN SLAVERY.

V. The servant was protected by law equally with the other members of the community.

Proof.—"Judge righteously between every man and his neighbor, and THE STRANGER THAT IS WITH HIM." "Ye shall not RESPECT PERSONS in judgement, but ye shall hear the SMALL as well as the great." Deut. i. 16, 17. Also Lev. xxiv. 22. "Ye shall have one manner of law as well for the STRANGER, as for one of your own country." So Numb. xv. 29. "Ye shall have ONE LAW for him that sinneth through ignorance, both for him that is born among the children of Israel and for the STRANGER that sojourneth among them." Deut. xxvii. 19. "Cursed be he that PERVERTETH THE JUDGMENT OF THE STRANGER."

VI. The Mosaic system enjoined the greatest affection and kindness toward servants, foreign as well as Jewish.

Lev. xix. 34. "The stranger that dwelleth with you shall be unto you as one born among you, and thou shall love him as thyself." Also Deut. x. 17, 19. "For the Lord your God * * REGARDETH NOT PERSONS. He doth execute the judgment of the fatherless and widow, and LOVETH THE STRANGER, in giving him food and raiment, LOVE YE THEREFORE THE STRANGER." So Ex. xxii. 21. "Thou shalt neither vex a STRANGER nor oppress him." Ex. xxiii. 9. "Thou shalt not oppress a STRANGER, for ye know the heart of a stranger." Lev. xxv. 35, 36. "If thy brother be waxen

poor thou shalt relieve him, yea, though he be a STRANGER or a sojourner, that he may live with thee, take thou no usury of him or increase, but fear thy God." Could this same stranger be taken by one that feared his God, and held as a slave, and robbed of time, earnings, and all his rights?

VII. Servants were placed upon a level with their masters in all civil and religious rights. Num. xv. 15, 16, 29; ix. 14. Deut. i. 16, 17. Lev. xxiv. 22.

III.—DID PERSONS BECOME SERVANTS VOLUNTARILY, OR WERE THEY MADE SERVANTS AGAINST THEIR WILLS?

We argue that they became servants *of their own accord*.

I. Because to become a servant in the family of an Israelite, was to abjure idolatry, to enter into covenant with God^A, be circumcised in token of it, bound to keep the Sabbath, the Passover, the Pentecost, and the Feast of Tabernacles, and to receive instruction in the moral and ceremonial law. Were the servants *forced* through all these processes? Was the renunciation of idolatry *compulsory*? Were they *dragged* into covenant with God? Were they seized and circumcised by *main strength*? Were they *compelled* mechanically to chew, and swallow the flesh of the Paschal lamb, while they abhorred the institution, spurned the laws that enjoined it, detested its author and its executors, and instead of rejoicing in the deliverance which it commemorated, bewailed it as a calamity, and cursed the day of its consummation? Were they *driven* from all parts of the land three times in the year to the annual festivals? Were they drugged with instruction which they nauseated? Goaded through a round of ceremonies, to them senseless and disgusting mummeries; and drilled into the tactics of a creed rank with loathed abominations? We repeat it, to become a *servant*, was to become a *proselyte*. And did God authorize his people to make proselytes, at the point of the sword? by the terror of pains and penalties? by converting men into *merchandise*? Were *proselyte* and *chattel* synonymes, in the Divine vocabulary? Must a man be sunk to a *thing* before taken into covenant with God? Was this the stipulated condition of adoption, and the sole passport to the communion of the saints?

^A: Maimonides, who wrote in Egypt about seven hundred years ago, a contemporary with Jarchi, and who stands with him at the head of Jewish

writers, gives the following testimony on this point:

"Whether a servant be born in the power of an Israelite, or whether he be purchased from the heathen, the master is to bring them both into the covenant."

"But he that is in the *house* is entered on the eighth day, and he that is bought with money, on the day on which his master receives him, unless the slave be *unwilling*. For if the master receive a grown slave, and he be *unwilling*, his master is to bear with him, to seek to win him over by instruction, and by love and kindness, for one year. After which, should he *refuse* so long, it is forbidden to keep him longer than a year. And the master must send him back to the strangers from whence he came. For the God of Jacob will not accept any other than the worship of a willing heart"—Mamon, Hilcoth Mileth, Chap. 1st, Sec. 8th.

The ancient Jewish Doctors assert that the servant from the Strangers who at the close of his probationary year, refused to adopt the Jewish religion and was on that account sent back to his own people, received a *full compensation* for his services, besides the payment of his expenses. But that *postponement* of the circumcision of the foreign servant for a year (*or even at all* after he had entered the family of an Israelite), of which the Mishnic doctors speak, seems to have been a *mere usage*. We find nothing of it in the regulations of the Mosaic system. Circumcision was manifestly a rite strictly *initiatory*. Whether it was a rite merely *national* or *spiritual*, or *both*, comes not within the scope of this inquiry.

II. We argue the voluntariness of servants from Deut. xxiii. 15, 16, "Thou shalt not deliver unto his master the servant which is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best; thou shalt not oppress him."

As though God had said, "To deliver him up would be to recognize the *right* of the master to hold him; his *fleeing* shows his *choice*—proclaims his wrongs and his title to protection; you shall not force him back and thus recognize the *right* of the master to hold him in such a condition as induces him to flee to others for protection." It may be said that this command referred only to the servants of *heathen* masters in the surrounding nations.

We answer, the terms of the command are unlimited. But the objection, if valid, would merely shift the pressure of the difficulty to another point. Did God require them to protect the *free choice* of a *single* servant from the heathen, and yet *authorize* the same persons, to crush the free choice of *thousands* of servants from the heathen? Suppose a case. A *foreign* servant flees to the Israelites; God says, "He shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it *liketh him* best." Now, suppose this same servant, instead of coming into Israel of his own accord, had been *dragged* in by some kidnapper who *bought* him of his master, and *forced* him into a condition against his will; would He who forbade such treatment of the stranger, who *voluntarily* came into the land, sanction the *same* treatment of the *same person*, provided in *addition* to this last outrage, the *previous* one had been committed of forcing him into the nation against his will? To commit violence on the free choice of a *foreign* servant is forsooth a horrible enormity, PROVIDED you *begin* the violence *after* he has come among you. But if you commit the *first act* on the *other side of the line*; if you begin the outrage by buying him from a third person against his will, and then tear him from home, drag him across the line into the land of Israel, and hold him as a slave—ah! that alters the case, and you may perpetrate the violence now with impunity! Would *greater* favor have been shown to this new comer than to the old residents—those who had been servants in Jewish families perhaps for a generation? Were the Israelites commanded to exercise toward *him*, uncircumcised and out of the covenant, a justice and kindness denied to the multitudes who *were* circumcised, and *within* the covenant? But, the objector finds small gain to his argument on the supposition that the covenant respected merely the fugitives from the surrounding nations, while it left the servants of the Israelites in a condition against their wills. In that case, the surrounding nations would adopt retaliatory measures, and become so many asylums for Jewish fugitives. As these nations were not only on every side of them, but in their midst, such a proclamation would have been an effectual lure to men whose condition was a constant counteraction of will. Besides the same command which protected the servant from the power of his foreign *master*, protected him equally from the power of an *Israelite*. It was not, "Thou shalt not deliver him unto his *master*," but "he shall dwell with thee, in that place which *he shall choose* in one of thy gates where it *liketh him* best." Every Israelite was forbidden to put him in any condition *against his will*. What was this

but a proclamation, that all who *chose* to live in the land and obey the laws, were left to their own free will, to dispose of their services at such a rate, to such persons and in such places as they pleased? Besides, grant that this command prohibited the sending back of *foreign* servants merely, there was no law requiring the return of servants who had escaped from the *Israelites*. *Property* lost, and *cattle* escaped, they were required to return, but not escaped servants. These verses contain 1st, a command, "Thou shalt not deliver," &c., 2d, a declaration of the fugitive's right of *free choice*, and of God's will that he should exercise it at his own discretion; and 3d, a command guarding this right, namely, "Thou shalt not oppress him," as though God had said, "If you restrain him from exercising his *own choice*, as to the place and condition of his residence, it is *oppression*."

III. We argue the voluntariness of servants from their peculiar opportunities and facilities for escape. Three times every year, all the males over twelve years, were required to attend the national feasts. They were thus absent from their homes not less than three weeks at each time, making nine weeks annually. As these caravans moved over the country, were there military scouts lining the way, to intercept deserters?—a corporal's guard at each pass of the mountains, sentinels pacing the hill-tops, and light horse scouring the defiles? The Israelites must have had some safe contrivance for taking their "*slaves*" three times in a year to Jerusalem and back. When a body of slaves is moved any distance in our *republic*, they are hand-cuffed and chained together, to keep them from running away, or beating their drivers' brains out. Was this the *Mosaic* plan, or an improvement introduced by Samuel, or was it left for the wisdom of Solomon? The usage, doubtless, claims a paternity not less venerable and biblical! Perhaps they were lashed upon camels, and transported in bundles, or caged up, and trundled on wheels to and fro, and while at the Holy City, "lodged in jail for safe keeping," the Sanhedrim appointing special religious services for their benefit, and their "drivers" officiating at "ORAL instruction." Mean while, what became of the sturdy *handmaids* left at home? What hindered them from marching off in a body? Perhaps the Israelitish matrons stood sentry in rotation round the kitchens, while the young ladies scoured the country, as mounted rangers, picking up stragglers by day, and patrolled the streets, keeping a sharp look-out at night.

IV. Their continuance in Jewish families depended upon the performance of various rites necessarily VOLUNTARY.

Suppose the servants from the heathen had upon entering Jewish families, refused circumcision; if *slaves*, how simple the process of emancipation! Their *refusal* did the job. Or, suppose they had refused to attend the annual feasts, or had eaten unleavened bread during the Passover, or compounded the ingredients of the anointing oil, they would have been "cut off from the people;" *excommunicated*.

V. We infer the voluntariness of the servants of the Patriarchs from the impossibility of their having been held against their wills. Abraham's servants are an illustration. At one time he had three hundred and eighteen *young men* "born in his house," and many more *not* born in his house. His servants of all ages, were probably MANY THOUSANDS. How Abraham and Sarah contrived to hold fast so many thousand servants against their wills, we are left quite in the dark. The most natural supposition is that the Patriarch and his wife *took turns* in surrounding them! The neighboring tribes, instead of constituting a picket guard to hem in his servants, would have been far more likely to sweep them and him into captivity, as they did Lot and his household. Besides, there was neither "Constitution" nor "compact," to send back Abraham's fugitives, nor a truckling police to pounce upon them, nor gentleman-kidnappers, suing for his patronage, volunteering to howl on their track, boasting their blood-hound scent, and pledging their "honor" to hunt down and "deliver up," *provided* they had a description of the "flesh-marks," and were suitably stimulated by *pieces of silver*. Abraham seems also to have been sadly deficient in all the auxiliaries of family government, such as stocks, hand-cuffs, foot-chains, yokes, gags, and thumb-screws. His destitution of these patriarchal indispensables is the more afflicting, since he faithfully trained "his household to do justice and judgment," though so deplorably destitute of the needful aids.

VI. We infer that servants were voluntary, as there is no instance of an Israelitish master SELLING a servant. Abraham had thousands of servants, but seems never to have sold one. Isaac "grew until he became very great," and had "great store of servants." Jacob's youth was spent in the family of Laban, where he lived a servant twenty-one years. Afterward he had a large number of servants. Joseph sent for Jacob to come into Egypt, "thou and thy

children, and thy children's children, and thy flocks and thy herds, and ALL THAT THOU HAST." Jacob took his flocks and herds but *no servants*. Gen xlv. 10; xlvii. 16. They doubtless, served under their *own contracts*, and when Jacob went into Egypt, they *chose* to stay in their own country. The government might sell *thieves*, if they had no property, until their services had made good the injury, and paid the legal fine. Ex. xxii. 3. But *masters* seem to have had no power to sell their *servants*. To give the master a *right* to sell his servant, would annihilate the servant's right of choice in his own disposal; but says the objector, "to give the master a right to *buy* a servant, equally annihilates the servant's *right of choice*." Answer. It is one thing to have a right to buy a man, and a different thing to have a right to buy him of *another man*^A.

^A: There is no evidence that masters had the power to dispose even the *services* of their servants, as men hire out their laborers whom they employ by the year; but whether they had or not, affects not the argument.

Though servants were not bought of their masters, yet young females were bought of their *fathers*. But their purchase as *servants* was their betrothal as wives. Ex. xxi. 7, 8. "If a man sell his daughter to be a maid-servant, she shall not go out as the men-servants do. If she please not her master WHO HATH BETROTHED HER TO HIMSELF, he shall let her be redeemed."^B

^B: The comment of Maimonides on this passage is as follows: "A Hebrew handmaid might not be sold but to one who laid himself under obligations, to espouse her to himself or to his son, when she was fit to be betrothed."—*Maimonides—Hilcoth—Obedim*, Ch. IV. Sec. XI. Jarchi, on the same passage, says, "He is bound to espouse her and take her to be his wife, for the *money of her purchase* is the money of her espousal."

VII. We infer that the Hebrew servant was voluntary in COMMENCING his service, because he was pre-eminently so IN CONTINUING it. If, at the year of release, it was the servant's *choice* to remain with his master, law required his ear to be bored by the judges of the land, thus making it impossible for him to be held against his will. Yea more, his master was *compelled* to keep him, however much he might wish to get rid of him.

VIII. The method prescribed for procuring servants, was an appeal to their choice. The Israelites were commanded to offer them a suitable inducement,

and then leave them to decide. They might neither seize them by *force*, nor frighten them by *threats*, nor wheedle them by false pretences, nor *borrow* them, nor *beg* them; but they were commanded to buy them^A; that is, they were to recognize the *right* of the individuals to *dispose* of their own services, and their right to *refuse all offers*, and thus oblige those who made them, *to do their own work*. Suppose all, with one accord, had *refused* to become servants, what provision did the Mosaic law make for such an emergency? NONE.

^A: The case of thieves, whose services were sold until they had earned enough to make restitution to the person wronged, and to pay the legal penalty, *stands by itself*, and has nothing to do with the condition of servants.

IX. Various incidental expressions corroborate the idea that servants became such by their own contract. Job xli. 4, is an illustration, "Will he (Leviathan) make a COVENANT with thee? wilt thou take him for a SERVANT forever?"

X. The transaction which made the Egyptians the SERVANTS OF PHARAOH was voluntary throughout. See Gen. xlvii. 18-26. Of their own accord they came to Joseph and said, "We have not aught left but our *bodies* and our lands; *buy us*;" then in the 25th verse, "we will be servants to Pharaoh."

XI. We infer the voluntariness of servants, from the fact that RICH Strangers did not become servants. Indeed, so far were they from becoming servants themselves, that they bought and held Jewish servants. Lev. xxv. 47.

XII. The sacrifices and offerings which ALL were required to present, were to be made VOLUNTARILY. Lev. i. 2, 3.

XIII. Mention is often made of persons becoming servants where they were manifestly and pre-eminently VOLUNTARY. As the Prophet Elisha. 1 Kings xix. 21; 2 Kings iii. 11. Elijah was his *master*. The word, translated master, is the same that is so rendered in almost every instance where masters are spoken of under the Mosaic and patriarchal systems. Moses was

the servant of Jethro. Ex. iii. 1. Joshua was the servant of Moses. Num. xi. 28. Jacob was the servant of Laban. Gen. xxix. 18-27.

IV.—WERE THE SERVANTS FORCED TO WORK WITHOUT PAY?

As the servants became and continued such of *their own accord*, it would be no small marvel if they *chose* to work without pay. Their becoming servants, pre-supposes *compensation* as a motive. That they *were paid* for their labor, we argue,

I. Because God rebuked in thunder, the sin of using the labor of others without wages. "Wo unto him that buildeth his house by unrighteousness, and his chambers by wrong; THAT USETH HIS NEIGHBOR'S SERVICE WITHOUT WAGES, and giveth him not for his work." Jer. xxii. 13. God here testifies that to use the service of others without wages is "unrighteousness" and pronounces his "wo" against the doer of the "wrong." The Hebrew word *Reā*, translated *neighbor*, does not mean one man, or class of men, in distinction from others, but any one with whom we have to do—all descriptions of persons, even those who prosecute us in lawsuits and enemies while in the act of fighting us—"As when a man riseth against his NEIGHBOR and slayeth him." Deut. xxii. 26. "Go not forth hastily to strive, lest thou know not what to do in the end thereof, when thy NEIGHBOR hath put thee to shame." Prov. xxv. 8. "Thou shalt not bear false witness against thy NEIGHBOR." Ex. xx. 16. "If any man come presumptuously upon his NEIGHBOR to slay him with guile." Ex. xxi. 14, &c.

II. God testifies that in our duty to our fellow men, ALL THE LAW AND THE PROPHETS hang upon this command, "Thou shalt love thy neighbor as thyself." Our Savior, in giving this command, quoted *verbatim* one of the laws of the Mosaic system. Lev. xix. 18. In the 34th verse of the same chapter, Moses applies this law to the treatment of Strangers, "The stranger that dwelleth with you shall be unto you as one born among you, and THOU SHALT LOVE HIM AS THYSELF." If it be loving others *as ourselves*, to make them work for us without pay; to rob them of food and clothing also, would be a stronger illustration still of the law of love! *Super-disinterested benevolence*! And if it be doing unto others as we would have them do to us, to make them work for *our own* good alone, Paul should be

called to order for his hard saying against human nature, especially for that libellous matter in Eph. v. 29, "No man ever yet hated his own flesh, but nourisheth it and cherisheth it."

III. As persons became servants FROM POVERTY, we argue that they were compensated, since they frequently owned property, and sometimes a large amount. Ziba, the servant of Mephibosheth, gave David a princely present, "An hundred loaves of bread, and an hundred bunches of raisins, and an hundred of summer fruits, and a bottle of wine." 2 Sam. xvi. 1. The extent of his possessions can be inferred from the fact, that though the father of fifteen sons, he had twenty servants. In Lev. xxv. 57-59, where a servant, reduced to poverty, sold himself, it is declared that he may be *redeemed*, either by his kindred, or by HIMSELF. Having been forced to sell himself from poverty, he must have acquired considerable property *after* he became a servant. If it had not been common for servants to acquire property over which they had the control, the servant of Elisha would hardly have ventured to take a large sum of money, (nearly \$3000^A) from Naaman, 2 Kings v. 22, 23. As it was procured by deceit, he wished to conceal the means used in getting it; but if servants, could "own nothing, nor acquire any thing," to embark in such an enterprise would have been consummate stupidity. The fact of having in his possession two talents of silver, would of itself convict him of theft^B. But since it was common for servants to own property he might have it, and invest or use it, without attracting special attention, and that consideration alone would have been a strong motive to the act. His master, while rebuking him for using such means to get the money, not only does not take it from him; but seems to expect that he would invest it in real estate, and cattle, and would procure servants with it. 2 Kings v. 26. We find the servant of Saul having money, and relieving his master in an emergency. 1 Sam. ix. 8. Arza, the servant of Elah, was the *owner of a house*. That it was somewhat magnificent, would be a natural inference from it's being a resort of the king. 1 Kings xvi. 9. The case of the Gibeonites, who after becoming servants, still occupied their cities, and remained in many respects, a distinct people for centuries; and that of the 150,000 Canaanites, the *servants* of Solomon, who worked out their "tribute of bond-service" in levies, periodically relieving each other, are additional illustrations of independence in the acquisition and ownership of property.

A: Though we have not sufficient data to decide upon the *relative* value of that sum, *then* and *now*, yet we have enough to warrant us in saying that two talents of silver, had far more value *then* than three thousand dollars have *now*.

B: Whoever heard of the slaves in our southern states stealing a large amount of money? They "*know how to take care of themselves*" quite too well for that. When they steal, they are careful to do it on such a *small* scale, or in the taking of *such things* as will make detection difficult. No doubt they steal now and then a little, and a gaping marvel would it be if they did not. Why should they not follow in the footsteps of their masters and mistresses? Dull scholars indeed! if, after so many lessons from *proficients* in the art, who drive the business by *wholesale*, they should not occasionally copy their betters, fall into the *fashion*, and try their hand in a small way, at a practice which is the *only permanent and universal* business carried on around them! Ignoble truly! never to feel the stirrings of high impulse, prompting to imitate the eminent pattern set before them in the daily vocation of "Honorable" and "Excellences," and to emulate the illustrious examples of Doctors of Divinity, and *Right and Very Reverends*! Hear President Jefferson's testimony. In his Notes on Virginia, pp. 207-8, speaking of slaves, he says, "That disposition to theft with which they have been branded, must be ascribed to their *situation*, and not to any special depravity of the moral sense. It is a problem which I give the master to solve, whether the religious precepts against the violation of property were not framed for HIM as well as for his slave—and whether the slave may not as justifiably take a *little* from one who has taken ALL from him, as he may *slay* one who would slay him?"

IV. Heirship.—Servants frequently inherited their master's property; especially if he had no sons, or if they had dishonored the family. Eliezer, the servant of Abraham; Ziba, the servant of Mephibosheth, Jarha the servant of Sheshan, and the *husbandmen* who said of their master's son, "this is the HEIR, let us kill him, and the INHERITANCE WILL BE OURS," are illustrations; also Prov. xvii. 2—"A wise servant shall have rule over a son that causeth shame, and SHALL HAVE PART OF THE INHERITANCE AMONG THE BRETHREN." This passage gives servants precedence as heirs, even over the wives and daughters of their masters. Did masters hold by force, and plunder of earnings, a class of persons, from

which, in frequent contingencies, they selected both heirs for their property, and husbands for their daughters?

V. ALL were required to present offerings and sacrifices. Deut. xvi. 15, 17, 2 Chron. xv. 9-11. Numb. ix. 13. Servants must have had permanently, the means of *acquiring* property to meet these expenditures.

VI. Those Hebrew servants who went out at the seventh year, were provided by law with a large stock of provisions and cattle. Deut. xv. 11-14. "Thou shalt furnish him liberally out of thy flock, and out of thy flour, and out of thy wine press, of that wherewith the Lord thy God hath blessed thee, thou shalt give him [A](#)." If it be said that the servants from the Strangers did not receive a like bountiful supply, we answer, neither did the most honorable class of *Israelitish* servants, the free-holders; and for the same reason, *they did not go out in the seventh year*, but continued until the jubilee. If the fact that the Gentile servants did not receive such a *gratuity* proves that they were robbed of their *earnings*, it proves that the most valued class of *Hebrew* servants were robbed of theirs also; a conclusion too stubborn for even pro-slavery masticators, however unscrupulous.

[A](#): The comment of Maimonides on this passage is as follows—"Thou shalt furnish him liberally," &c. "That is to say, '*Loading, ye shall load him,*' likewise every one of his family, with as much as he can take with him—abundant benefits. And if it be avariciously asked, "How much must I give him?" I say unto *you, not less than thirty shekels*, which is the valuation of a servant, as declared in Ex. xxi. 32."—Maimonides, Hilcoth Obedim, Chap. ii. Sec. 3

VII. The servants were BOUGHT. In other words, they received compensation in advance. Having shown, under a previous head, that servants *sold themselves*, and of course received the compensation for themselves, except in cases where parents hired out the time of their children till they became of age [B](#), a mere reference to the fact is all that is required for the purposes of this argument.

[B](#): Among the Israelites, girls became of age at twelve, and boys at thirteen years.

VIII. We find masters at one time having a large number of servants, and afterwards none, without any intimation that they were sold. The wages of servants would enable them to set up in business for themselves. Jacob, after being Laban's servant for twenty-one years, became thus an independent herdsman, and was the master of many servants. Gen. xxx. 43, xxxii. 15. But all these servants had left him before he went down into Egypt, having doubtless acquired enough to commence business for themselves. Gen. xlv. 10, 11; xlvi. 1-7, 32.

IX. God's testimony to the character of Abraham. Gen. xviii. 19. "For I know him that he will command his children and his household after him, and they shall keep, THE WAY OF THE LORD TO DO JUSTICE AND JUDGEMENT." God here testifies that Abraham taught his servants "the way of the Lord." What was the "way of the Lord" respecting the payment of wages where service was rendered? "Wo unto him that useth his neighbor's service WITHOUT WAGES!" Jer. xxii. 13. "Masters, give unto your servants that which is JUST AND EQUAL." Col. iv. 1. "Render unto all their DUES." Rom. xiii. 7. "The laborer is WORTHY OF HIS HIRE." Luke x. 7. How did Abraham teach his servants to "*do justice*" to others? By doing injustice to them? Did he exhort them to "render to all their dues" by keeping back *their own*? Did he teach them that "the laborer was worthy of his hire" by robbing them of *theirs*? Did he beget in them a reverence for honesty by pilfering all their time and labor? Did he teach them "not to defraud" others "in any matter" by denying them "what was just and equal?" If each of Abraham's pupils under such a catechism did not become a very *Aristides* in justice, then illustrious examples, patriarchal dignity, and *practical* lessons, can make but slow headway against human perverseness!

X. *Specific precepts of the Mosaic law enforcing general principles.* Out of many, we select the following: (1.) "Thou shalt not muzzle the ox that treadeth out the corn," or literally, while he thresheth. Deut. xxv. 4. Here is a general principle applied to a familiar case. The ox representing all domestic animals. Isa. xxx. 24. A *particular* kind of service, *all* kinds; and a law requiring an abundant provision for the wants of an animal ministering to man in a *certain* way,—a general principle of treatment covering all times, modes, and instrumentalities of service. The object of the law was; not merely to enjoin tenderness towards brutes, but to inculcate the duty of rewarding those who serve us; and if such care be enjoined, by God, both

for the ample sustenance and present enjoyment of *a brute*, what would be a meet return for the services of *man*?—MAN with his varied wants, exalted nature and immortal destiny! Paul says expressly, that this principle lies at the bottom of the statute. 1 Cor. ix. 9, 10, "For it is written in the law of Moses, Thou shalt not muzzle the mouth of the ox that treadeth out the corn. Doth God take care for oxen? Or saith he it altogether for OUR SAKES? that he that ploweth should plow in HOPE, and that he that thresheth in hope should be PARTAKER OF HIS HOPE," (2.) "If thy brother be waxen poor, and fallen in decay with thee, then thou shalt relieve him, YEA, THOUGH HE BE A STRANGER or a SOJOURNER that he may live with thee. Take thou no usury of him, or increase, but fear thy God. Thou shalt not give him thy money upon usury, nor lend him thy victuals for increase." Lev. xxv. 35-37. Now, we ask, by what process of pro-slavery legerdemain, this regulation can be made to harmonize with the doctrine of WORK WITHOUT PAY? Did God declare the poor stranger entitled to RELIEF, and in the same breath, authorize them to "use his services without wages;" force him to work and ROB HIM OF HIS EARNINGS?

V.—WERE MASTERS THE PROPRIETORS OF SERVANTS AS LEGAL PROPERTY?

The discussion of this topic has already been somewhat anticipated, but a variety of additional considerations remain to be noticed.

1. Servants were not subjected to the uses nor liable to the contingencies of property. (1.) They were never taken in payment for their masters' debts, though children were sometimes taken (without legal authority) for the debts of a father. 2 Kings iv. 1; Job xxiv. 9; Isa. l., 1; Matt. xviii. 25. Creditors took from debtors property of all kinds, to satisfy their demands. Job xxiv. 3, cattle are taken; Prov. xxii. 27, household furniture; Lev. xxv. 25-28, the productions of the soil; Lev. xxv. 27-30, houses; Ex. xxii. 26-29, Deut. xxiv. 10-13, Matt. v. 40, clothing; but *servants* were taken in *no instance*. (2.) Servants were never given as pledges. Property of all sorts was given in pledge. We find household furniture, clothing, cattle, money, signets, and personal ornaments, with divers other articles of property, used as pledges for value received; but no servants. (3.) All lost PROPERTY was

to be restored. Oxen, asses, sheep, raiment, and "whatsoever lost things," are specified—servants *not*. Deut. xxii. 13. Besides, the Israelites were forbidden to return the runaway servant. Deut. xxiii. 15. (4.) The Israelites never gave away their servants as presents. They made costly presents, of great variety. Lands, houses, all kinds of animals, merchandise, family utensils, precious metals, grain, armor, &c. are among their recorded *gifts*. Giving presents to superiors and persons of rank, was a standing usage. 1 Sam. x. 27; 1 Sam. xvi. 20; 2 Chron. xvii. 5. Abraham to Abimelech, Gen. xxi. 27; Jacob to the viceroy of Egypt, Gen. xliii. 11; Joseph to his brethren and father, Gen. xlv. 22, 23; Benhadad to Elisha, 2 Kings viii. 8, 9; Ahaz to Tiglath Pilezer, 2 Kings vi. 8; Solomon to the Queen of Sheba, 1 Kings x. 13; Jeroboam to Ahijah, 1 Kings xiv. 3; Asa to Benhadad, 1 Kings xv. 18, 19. But no servants were given as presents—though it was a prevailing fashion in the surrounding nations. Gen. xii. 16; Gen. xx. 14. It may be objected that Laban GAVE handmaids to his daughters, Jacob's wives. Without enlarging on the nature of the polygamy then prevalent suffice it to say that the handmaids of wives were regarded as wives, though of inferior dignity and authority. That Jacob so regarded his handmaids, is proved by his curse upon Reuben, Gen. xlix. 4, and Chron. v. 1; also by the equality of their children with those of Rachel and Leah. But had it been otherwise—had Laban given them as *articles of property*, then, indeed, the example of this "good old patriarch and slaveholder," Saint Laban, would have been a forecloser to all argument. Ah! we remember his jealousy for *religion*—his holy indignation when he found that his "GODS" were stolen! How he mustered his clan, and plunged over the desert in hot pursuit, seven days, by forced marches; how he ransacked a whole caravan, sifting the contents of every tent, little heeding such small matters as domestic privacy, or female seclusion, for lo! the zeal of his "IMAGES" had eaten him up! No wonder that slavery, in its Bible-navigation, drifting dismantled before the free gusts, should scud under the lee of such a pious worthy to haul up and refit: invoking his protection, and the benediction of his "GODS!" "Again, it may be objected that, servants were enumerated in inventories of property. If that proves *servants* property, it proves *wives* property. "Thou shalt not covet thy neighbor's house, thou shalt not covet thy neighbor's WIFE, nor his man-servant, nor his maid-servant, nor his ox, nor his ass, nor any thing that is thy neighbor's." Ex. xx. 17. In inventories of *mere property* if servants are included, it is in such a way, as to show that they are not regarded as

property. See Eccl. ii. 7, 8. But when the design is to show not merely the wealth, but the *greatness* of any personage, servants are spoken of, as well as property. In a word, if *riches* alone are spoken of, no mention is made of servants; if *greatness*, servants and property. Gen. xiii. 2. "And Abraham was very rich in cattle, in silver and in gold." So in the fifth verse, "And Lot also had flocks, and herds, and tents." In the seventh verse servants are mentioned, "And there was a strife between the HERDMEN of Abraham's cattle and the HERDMEN of Lot's cattle." See also Josh. xxii. 8; Gen. xxxiv. 23; Job xlii. 12; 2 Chron. xxi. 3; xxxii. 27-29; Job i. 3-5; Deut. viii. 12-17; Gen. xxiv. 35, xxvi. 13, xxx. 43. Jacobs's wives say to him, "All the *riches* which thou hast taken from our father that is ours and our children's." Then follows an inventory of property. "All his cattle," "all his goods," "the cattle of his getting." He had a large number of servants at the time but they are not included with his property. Comp. Gen. xxx. 43, with Gen. xxxi. 16-18. When he sent messengers to Esau, wishing to impress him with an idea of his state and sway, he bade them tell him not only of his RICHES, but of his GREATNESS; that Jacob had "oxen, and asses, and flocks, and men-servants, and maid-servants." Gen. xxxii. 4, 5. Yet in the present which he sent, there were no servants; though he seems to have sought as much variety as possible. Gen. xxxii. 14, 15; see also Gen. xxxvi. 6, 7; Gen. xxxiv. 23. As flocks and herds were the staples of wealth, a large number of servants presupposed large possessions of cattle, which would require many herdsmen. When servants are spoken of in connection with *mere property*, the terms used to express the latter do not include the former. The Hebrew word *Miknē*, is an illustration. It is derived from *Kānā*, to procure, to buy, and its meaning is, *a possession, wealth, riches*. It occurs more than forty times in the Old Testament, and is applied always to *mere property*, generally to domestic animals, but never to servants. In some instances, servants are mentioned in distinction from the *Miknē*. And Abraham took Sarah his wife, and Lot his brother's son, and all their SUBSTANCE that they had gathered; and the souls that they had gotten in Haran, and they went forth to go into the land of Canaan."—Gen. xii. 5. Many will have it, that these *souls* were a part of Abraham's *substance* (notwithstanding the pains here taken to separate them from it)—that they were slaves taken with him in his migration as a part of his family effects. Who but slaveholders, either actually or in heart, would torture into the principle and practice of slavery, such a harmless phrase as "*the souls that they had gotten?*" Until

the slave trade breathed its haze upon the vision of the church, and smote her with palsy and decay, commentators saw no slavery in, "The souls that they had gotten." In the Targum of Onkelos^A it is rendered, "The souls whom they had brought to obey the law in Haran." In the Targum of Jonathan, "The souls whom they had made proselytes in Haran." In the Targum of Jerusalem, "The souls proselyted in Haran." Jarchi, the prince of Jewish commentators, "The souls whom they had brought under the Divine wings." Jerome, one of the most learned of the Christian fathers, "The persons whom they had proselyted." The Persian version, the Vulgate, the Syriac, the Arabic, and the Samaritan all render it, "All the wealth which they had gathered, and the souls which they had made in Haran." Menochius, a commentator who wrote before our present translation of the Bible, renders it, "Quas de idolatraria converterant." "Those whom they had converted from idolatry."—Paulus Fagius^B. "Quas instituerant in religione." "Those whom they had established in religion." Luke Francke, a German commentator who lived two centuries ago. "Quas legi subjicerant"—"Those whom they had brought to obey the law."

^A: The Targums are Chaldee paraphrases of parts of the Old Testament. The Targum of Onkelas is, for the most part, a very accurate and faithful translation of the original, and was probably made at about the commencement of the Christian era. The Targum of Jonathan Ben Uzziel, bears about the same date. The Targum of Jerusalem was probably about five hundred years later. The Israelites, during their captivity in Babylon, lost, as a body, their own language. These translations into the Chaldee, the language which they acquired in Babylon, were thus called for by the necessity of the case.

^B: This eminent Hebrew scholar was invited to England to superintend the translation of the Bible into English, under the patronage of Henry the Eighth. He had hardly commenced the work when he died. This was nearly a century before the date of our present translation.

II. The condition and treatment of servants make the doctrine that they were mere COMMODITIES, an absurdity. St. Paul's testimony in Gal. iv. 1, shows the condition of servants: "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all." That Abraham's servants were voluntary, that their interests

were identified with those of their master's family, and that the utmost confidence was reposed in them, is shown in their being armed.—Gen. xiv. 14, 15. When Abraham's servant went to Padanaram, the young Princess Rebecca did not disdain to say to him, "Drink, MY LORD," as "she hasted and let down her pitcher upon her hand, and gave him drink." Laban, the brother of Rebecca, "ungirded his camels, and brought him water to wash his feet and the men's feet that were with him!" In 1 Sam. ix. is an account of a festival in the city of Zuph, at which Samuel presided. None but those bidden, sat down at the feast, and only "about thirty persons" were invited. Quite a select party!—the elite of the city. Saul and his servant had just arrived at Zuph, and *both* of them, at Samuel's solicitation, accompany him as invited guests. "And Samuel took Saul and his SERVANT, and brought THEM into the PARLOR(!) and made THEM sit in the CHIEFEST SEATS among those that were bidden." A *servant* invited by the chief judge, ruler, and prophet in Israel, to dine publicly with a select party, in company with his master, who was at the same time anointed King of Israel! and this servant introduced by Samuel into the PARLOR, and assigned, with his master, to the *chiefest seat* at the table! This was "*one* of the servants" of Kish, Saul's father; not the steward or the chief of them—not at all a *picked* man, but "*one* of the servants;" *any* one that could be most easily spared, as no endowments specially rare would be likely to find scope in looking after asses. Again: we find Elah, the King of Israel, at a festive entertainment, in the house of Arza, his steward, or head servant, with whom he seems to have been on terms of familiarity.—1 Kings xvi. 8, 9. See also the intercourse between Gideon and his servant.—Judg. vii. 10, 11. Jonathan and his servant.—1 Sam. xiv. 1-14. Elisha and his servant.—2 Kings iv. v. vi.

III. The case of the Gibeonites. The condition of the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim, under the Hebrew commonwealth, is quoted in triumph by the advocates of slavery; and truly they are right welcome to all the crumbs that can be gleaned from it. Milton's devils made desperate snatches at fruit that turned to ashes on their lips. The spirit of slavery raves under tormenting gnawings, and casts about in blind phrenzy for something to ease, or even to *mock* them. But for this, it would never have clutched at the Gibeonites, for even the incantations of the demon cauldron, could not extract from their case enough to tantalize starvation's

self. But to the question. What was the condition of the Gibeonites under the Israelites? (1.) *It was voluntary*. Their own proposition to Joshua was to become servants. Josh. ix. 8, 11. It was accepted, but the kind of service which they should perform, was not specified until their gross imposition came to light; they were then assigned to menial offices in the Tabernacle. (2.) *They were not domestic servants in the families of the Israelites*. They still resided in their own cities, cultivated their own fields, tended their flocks and herds, and exercised the functions of a *distinct*, though not independent community. They were subject to the Jewish nation as *tributaries*. So far from being distributed among the Israelites, and their internal organization as a distinct people abolished, they remained a separate, and, in some respects, an independent community for many centuries. When attacked by the Amorites, they applied to the Israelites as confederates for aid—it was rendered, their enemies routed, and themselves left unmolested in their cities. Josh. x. 6-18. Long afterwards, Saul slew some of them, and God sent upon Israel a three years' famine for it. David inquired of the Gibeonites, "What shall I do for you, and wherewith shall I make the atonement?" At their demand, he delivered up to them, seven of Saul's descendants. 2 Sam. xxi. 1-9. The whole transaction was a formal recognition of the Gibeonites as a distinct people. There is no intimation that they served families, or individuals of the Israelites, but only the "house of God," or the Tabernacle. This was established first at Gilgal, a day's journey from their cities; and then at Shiloh, nearly two day's journey from them; where it continued about 350 years. During this period, the Gibeonites inhabited their ancient cities and territory. Only a few, comparatively, could have been absent at any one time in attendance on the Tabernacle. Wherever allusion is made to them in the history, the main body are spoken of as *at home*. It is preposterous to suppose that all the inhabitants of these four cities could find employment at the Tabernacle. One of them "was a great city, as one of the royal cities;" so large, that a confederacy of five kings, apparently the most powerful in the land, was deemed necessary for its destruction. It is probable that the men were divided into classes, ministering in rotation—each class a few days or weeks at a time. This service was their *national tribute* to the Israelites, for the privilege of residence and protection under their government. No service seems to have been required of the *females*. As these Gibeonites were Canaanites, and as they had greatly exasperated the Israelites by

impudent imposition, and lying, we might assuredly expect that they would reduce *them* to the condition of chattels if there was *any* case in which God permitted them to do so.

IV. Throughout the Mosaic system, God warns the Israelites against holding their servants in such a condition as they were held in by the Egyptians. How often are they pointed back to the grindings of their prison-house! What motives to the exercise of justice and kindness towards their servants, are held out to their fears in threatened judgments; to their hopes in promised good; and to all within them that could feel; by those oft repeated words of tenderness and terror! "For ye were bondmen in the land of Egypt"—waking anew the memory of tears and anguish, and of the wrath that avenged them.

God's denunciations against the bondage of Egypt make it incumbent on us to ascertain, of what rights the Israelites were plundered, and what they retained.

EGYPTIAN BONDAGE ANALYZED. (1.) The Israelites were not dispersed among the families of Egypt^A, but formed a separate community. Gen. xlv. 35. Ex. viii. 22, 24; ix. 26; x. 23; xi. 7; ii. 9; xvi. 22; xvii. 5. (2.) They had the exclusive possession of the land of Goshen^B. Gen. xlv. 18; xlvii. 6, 11, 27. Ex. xii. 4, 19, 22, 23, 27. (3.) They lived in permanent dwellings. These were *houses*, not *tents*. In Ex. xii. 6, 22, the two side *posts*, and the upper door *posts*, and the lintel of the houses are mentioned. Each family seems to have occupied a house *by itself*,—Acts vii. 20. Ex. xii. 4—and judging from the regulation about the eating of the Passover, they could hardly have been small ones, Ex. xii. 4, probably contained separate apartments, and places for concealment. Ex. ii. 2, 3; Acts vii. 20. They appear to have been well apparelled. Ex. xii. 11. To have their own burial grounds. Ex. xiii. 19, and xiv. 11. (4.) They owned "a mixed multitude of flocks and herds," and "very much cattle." Ex. xii. 32, 37, 38. (5.) They had their own form of government, and preserved their tribe and family divisions, and their internal organization throughout, though still a province of Egypt, and *tributary* to it. Ex. ii. 1; xii. 19, 21; vi. 14, 25; v. 19; iii. 16, 18. (6.) They seem to have had in a considerable measure, the disposal of their own time,—Ex. xxiii. 4; iii. 16, 18, xii. 6; ii. 9; and iv. 27, 29-31. And to have practiced the fine arts. Ex. xxxii. 4; xxxv. 22-35. (7.) They were all

armed. Ex. xxxii. 27. (8.) They held their possessions independently, and the Egyptians seem to have regarded them as inviolable. No intimation is given that the Egyptians dispossessed them of their habitations, or took away their flocks, or herds, or crops, or implements of agriculture, or any article of property. (9.) All the females seem to have known something of domestic refinements; they were familiar with instruments of music, and skilled in the working of fine fabrics. Ex. xv. 20; xxxv. 25, 26. (10.) Service seems to have been exacted from none but adult males. Nothing is said from which the bond service of females could be inferred; the hiding of Moses three months by his mother, and the payment of wages to her by Pharaoh's daughter, go against such a supposition. Ex. ii. 29. (11.) So far from being fed upon a given allowance, their food was abundant, and of great variety. "They sat by the flesh-pots," and "did eat bread to the full." Ex. xvi. 3; xxiv. 1; xvii. 5; iv. 29; vi. 14; "they did eat fish freely, and cucumbers, and melons, and leeks, and onions, and garlic." Num. xi. 4, 5; x. 18; xx. 5. (12.) The great body of the people were not in the service of the Egyptians. (a.) The extent and variety of their own possessions, together with such a cultivation of their crops as would provide them with bread, and such care of their immense flocks and herds, as would secure their profitable increase, must have furnished constant employment for the main body of the nation. (b.) During the plague of darkness, God informs us that "ALL the children of Israel had light in their dwellings." We infer that they were *there* to enjoy it. (c.) It seems improbable that the making of brick, the only service named during the latter part of their sojourn in Egypt, could have furnished permanent employment for the bulk of the nation. See also Ex. iv. 29-31. Besides, when Eastern nations employed tributaries, it was as now, in the use of the levy, requiring them to furnish a given quota, drafted off periodically, so that comparatively but a small portion of the nation would be absent *at any one time*. Probably one-fifth part of the proceeds of their labor was required of the Israelites in common with the Egyptians. Gen. xlvii. 24, 26. Instead of taking it from their *crops*, (Goshen being better for *pasturage*) they exacted it of them in brick making; and it is quite probable that labor was exacted only from the *poorer* Israelites, the wealthy being able to pay their tribute in money. Ex. iv. 27-31. Contrast this bondage of Egypt with American slavery. Have our slaves "very much cattle," and "a mixed multitude of flocks and herds?" Do they live in commodious houses of their own, "sit by the flesh-pots," "eat fish freely,"

and "eat bread to the full?" Do they live in a separate community, in their distinct tribes, under their own rulers, in the exclusive occupation of an extensive tract of country for the culture of their crops, and for rearing immense herds of their own cattle—and all these held inviolable by their masters? Are our female slaves free from exactions of labor and liabilities of outrage? or when employed, are they paid wages, as was the Israelitish woman by the king's daughter? Have they the disposal of their own time and the means for cultivating social refinements, for practising the fine arts, and for personal improvement? THE ISRAELITES UNDER THE BONDAGE OF EGYPT, ENJOYED ALL THESE RIGHTS AND PRIVILEGES. True, "all the service wherein they made them serve was with rigor." But what was this when compared with the incessant toil of American slaves, the robbery of all their time and earnings, and even the power to "own any thing, or acquire any thing?" a "quart of corn a-day," the legal allowance of food^C! their *only* clothing for one half the year, "*one* shirt and *one* pair of pantaloons^D!" *two hours and a half only*, for rest and refreshment in the twenty-four^E!—their dwellings, *hovels*, unfit for human residence, with but one apartment, where both sexes and all ages herd promiscuously at night, like the beasts of the field. Add to this, the ignorance, and degradation; the daily sundering of kindred, the revelries of lust, the lacerations and baptisms of blood, sanctioned by law, and patronized by public sentiment. What was the bondage of Egypt when compared with this? And yet for her oppression of the poor, God smote her with plagues, and trampled her as the mire, till she passed away in his wrath, and the place that knew her in her pride, knew her no more. Ah! "I have seen the afflictions of my people, and I have heard their groanings, and am come down to deliver them." HE DID COME, and Egypt sank a ruinous heap, and her blood closed over her. If such was God's retribution for the oppression of heathen Egypt, of how much sorer punishment shall a Christian people be thought worthy, who cloak with religion a system, in comparison with which the bondage of Egypt dwindles to nothing? Let those believe who can that God commissioned his people to rob others of *all* their rights, while he denounced against them wrath to the uttermost, if they practised the *far lighter* oppression of Egypt—which robbed it's victims of only the least and cheapest of their rights, and left the females un plundered even of these. What! Is God divided against himself? When He had just turned Egypt into a funeral pile; while his curse yet blazed upon

her unburied dead, and his bolts still hissed amidst her slaughter, and the smoke of her torment went upwards because she had "ROBBED THE POOR," did He license the victims of robbery to rob the poor of ALL? As *Lawgiver* did he *create* a system tenfold more grinding than that for which he had just hurled Pharaoh headlong, and overwhelmed his princes, and his hosts, till "hell was moved to meet them at their coming?"

A: The Egyptians evidently had *domestic* servants living in their families; these may have been slaves; allusion is made to them in Ex. ix. 14, 20, 21.

B: The land of Goshen was a large tract of country, east of the Pelusian arm of the Nile, and between it and the head of the Red Sea, and the lower border of Palestine. The probable centre of that portion, occupied by the Israelites, could hardly have been less than sixty miles from the city. The border of Goshen nearest to Egypt must have been many miles distant. See "Exodus of the Israelites out of Egypt," an able article by Professor Robinson, in the Biblical Repository for October, 1832.

C: Law of N.C. Haywood's Manual 524-5.

D: Law of La. Martin's Digest, 610.

E: Law of La. Act of July 7, 1806. Martin's Digest, 610-12.

We now proceed to examine various objections which will doubtless be set in array against all the foregoing conclusions.

OBJECTIONS CONSIDERED.

The advocates of slavery find themselves at their wits end in pressing the Bible into their service. Every movement shows them hard-pushed. Their ever-varying shifts, their forced constructions, and blind guesswork, proclaim both their *cause* desperate, and themselves. The Bible defences thrown around slavery by professed ministers of the Gospel, do so torture common sense, Scripture, and historical facts it were hard to tell whether absurdity, fatuity, ignorance, or blasphemy, predominates in the compound; each strives so lustily for the mastery it may be set down a drawn battle. How often has it been bruited that the color of the negro is the *Cain-mark*, propagated downward. Cain's posterity started an opposition to the ark,

forsooth, and rode out the flood with flying streamers! Why should not a miracle be wrought to point such an argument, and fill out for slaveholders a Divine title-deed, vindicating the ways of God to man?

OBJECTION 1. "Cursed be Canaan, a servant of servants shall he be unto his brethren." Gen. ix. 25.

This prophecy of Noah is the *vade mecum* of slaveholders, and they never venture abroad without it; it is a pocket-piece for sudden occasion, a keepsake to dote over, a charm to spell-bind opposition, and a magnet to draw around their standard "whatsoever worketh abomination or maketh a lie." But "cursed be Canaan" is a poor drug to ease a throbbing conscience—a mocking lullaby, to unquiet tossings, and vainly crying "Peace be still," where God wakes war, and breaks his thunders. Those who justify negro slavery by the curse of Canaan, *assume* all the points in debate. (1.) That *slavery* was prophesied rather than mere *service* to others, and *individual* bondage rather than *national* subjection and tribute. (2.) That the *prediction* of crime *justifies* it; at least absolving those whose crimes fulfill it, if not transforming the crimes into *virtues*. How piously the Pharaohs might have quoted the prophecy "*Thy seed shall be a stranger in a land that is not theirs, and they shall afflict there four hundred years.*" And then, what *saints* were those that crucified the Lord of glory! (3.) That the Africans are descended from Canaan. Whereas Africa was peopled from Egypt and Ethiopia, and they were settled by Mizraim and Cush. For the location and boundaries of Canaan's posterity, see Gen. x. 15-19. So a prophecy of evil to one people, is quoted to justify its infliction upon another. Perhaps it may be argued that Canaan includes all Ham's posterity. If so, the prophecy is yet unfulfilled. The other sons of Ham settled Egypt and Assyria, and, conjointly with Shem, Persia, and afterward, to some extent, the Grecian and Roman empires. The history of these nations gives no verification of the prophecy. Whereas, the history of Canaan's descendants for more than three thousand years, records its fulfilment. First, they were put to tribute by the Israelites; then by the Medes and Persians; then by the Macedonians, Grecians and Romans, successively; and finally, were subjected by the Ottoman dynasty, where they yet remain. Thus Canaan has been for ages the servant mainly of Shem and Japhet, and secondarily of the other sons of Ham. It may still be objected, that though Canaan alone is *named* in the

curse, yet the 23d and 24th verses show the posterity of Ham in general to be meant. "And Ham, the father of Canaan, saw the nakedness of his father, and told his two brethren without." "And Noah awoke from his wine, and knew what his YOUNGER son had done unto him, and said," &c. It is argued that this "*younger son*" can not be *Canaan*, as he was the *grandson* of Noah, and therefore it must be *Ham*. We answer, whoever that "*younger son*" was, *Canaan* alone was named in the curse. Besides, the Hebrew word *Ben*, signifies son, grandson, or *any of one* the posterity of an individual. "*Know ye Laban the SON of Nahor?*" Laban was the *grandson* of Nahor. Gen. xxix. 5. "*Mephibosheth the SON of Saul.*" 2 Sam. xix. 24. Mephibosheth was the *grandson* of Saul. 2 Sam. ix. 6. "*There is a SON born to Naomi.*" Ruth iv. 17. This was the son of Ruth, the daughter-in-law of Naomi. "*Let seven men of his (Saul's) SONS be delivered unto us.*" 2 Sam. xxi. 6. Seven of Saul's *grandsons* were delivered up. "*Laban rose up and kissed his SONS.*" Gen. xxi. 55. These were his *grandsons*. "*The driving of Jehu the SON of Nimshi.*" 2 Kings ix. 20. Jehu was the *grandson* of Nimshi. Shall we forbid the inspired writer to use the *same* word when speaking of *Noah's* grandson? Further; Ham was not the "*younger*" son. The order of enumeration makes him the *second* son. If it be said that Bible usage varies, the order of birth not always being observed in enumerations, the reply is, that, enumeration in that order is the *rule*, in any other order the *exception*. Besides, if a younger member of a family, takes precedence of older ones in the family record, it is a mark of pre-eminence, either in endowments, or providential instrumentality. Abraham, though sixty years younger than his eldest brother, stands first in the family genealogy. Nothing in Ham's history shows him pre-eminent; besides, the Hebrew word *Hākkātān* rendered "*the younger,*" means the *little, small*. The same word is used in Isa. xl. 22. "*A LITTLE ONE shall become a thousand.*" Isa. xxii. 24. "*All vessels of SMALL quantity.*" Ps. cxv. 13. "*He will bless them that fear the Lord both SMALL and great.*" Ex. xviii. 22. "*But every SMALL matter they shall judge.*" It would be a literal rendering of Gen. ix. 24, if it were translated thus. "When Noah knew what his little son^A, or grandson (*Bēno Hākkātān*) had done unto him, he said cursed be Canaan," &c. Further, even if the Africans were the descendants of Canaan, the assumption that their enslavement fulfils this prophecy, lacks even plausibility, for, only a *fraction* of the Africans have at any time been the slaves of other nations. If the objector say in reply, that a large majority of

the Africans have always been slaves *at home*, we answer: *It is false in point of fact*, though zealously bruited often to serve a turn; and *if it were true*, how does it help the argument? The prophecy was, "Cursed be Canaan, a servant of servants shall he be *unto his* BRETHREN," not *unto himself*!

A: The French follows the same analogy; *grandson* being *petit fils* (little son.)

OBJECTION II.—"If a man smite his servant or his maid with a rod, and he die under his hand, he shall surely be punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money." Ex. xxi. 20, 21. What was the design of this regulation? Was it to grant masters an indulgence to beat servants with impunity, and an assurance, that if they beat them to death, the offense shall not be *capital*? This is substantially what commentators tell us. What Deity do such men worship? Some blood-gorged Moloch, enthroned on human hecatombs, and snuffing carnage for incense? Did He who thundered from Sinai's flames, "THOU SHALT NOT KILL," offer a bounty on *murder*? Whoever analyzes the Mosaic system, will find a moot court in session, trying law points—settling definitions, or laying down rules of evidence, in almost every chapter. Num. xxxv. 10-22; Deut. xi. 11, and xix. 4-6; Lev. xxiv. 19-22; Ex. xxi. 18, 19, are a few, out of many cases stated, with tests furnished the judges by which to detect *the intent*, in actions brought before them. Their ignorance of judicial proceedings, laws of evidence, &c., made such instructions necessary. The detail gone into, in the verses quoted, is manifestly to enable them to get at the *motive* and find out whether the master *designed* to kill. (1.) "If a man smite his servant with a *rod*."—The instrument used, gives a clue to the *intent*. See Num. xxxv. 16, 18. A *rod*, not an axe, nor a sword, nor a bludgeon, nor any other death-weapon—hence, from the *kind* of instrument, no design to *kill* would be inferred; for *intent* to kill would hardly have taken a *rod* for its weapon. But if the servant die *under his hand*, then the unfitness of the instrument, is point blank against him; for, to strike him with a *rod* until he *dies*, argues a great many blows and great violence, and this kept up to the death-gasp, showed an *intent to kill*. Hence "He shall surely be punished." But if he continued *a day or two*, the *length of time that he lived*, together with the *kind* of instrument used, and the master's

pecuniary interest in his *life*, ("he is his *money*,") all made a strong case of circumstantial evidence, showing that the master did not design to kill. Further, the word *nākām*, here rendered *punished*, is *not so rendered in another instance*. Yet it occurs thirty-five times in the Old Testament, and in almost every place is translated "*avenge*," in a few, "*to take vengeance*," or "*to revenge*," and in this instance ALONE, "*punish*." As it stands in our translation, the pronoun preceding it, refers to the *master*, whereas it should refer to the *crime*, and the word rendered *punished*, should have been rendered *avenged*. The meaning is this: If a man smite his servant or his maid with a rod, and he die under his hand, IT (the death) shall surely be avenged, or literally, *by avenging it shall be avenged*; that is, the *death* of the servant shall be *avenged* by the *death* of the master. So in the next verse, "If he continue a day or two," his death is not to be avenged by the *death* of the *master*, as in that case the crime was to be adjudged *manslaughter*, and not *murder*. In the following verse, another case of personal injury is stated, for which the injurer is to pay a *sum of money*; and yet our translators employ the same phraseology in both places. One, an instance of deliberate, wanton, killing by piecemeal. The other, an accidental, and comparatively slight injury—of the inflicter, in both cases, they say the same thing! "He shall surely be punished." Now, just the discrimination to be looked for where God legislates, is marked in the original. In the case of the servant wilfully murdered, He says, "It (the death) shall surely be *avenged*," that is, the life of the wrong doer shall expiate the crime. The same word is used in the Old Testament, when the greatest wrongs are redressed, by devoting the perpetrators to *destruction*. In the case of the unintentional injury, in the following verse, God says, "He shall surely be *fined*," (*Aunash*.) "He shall *pay* as the judges determine." The simple meaning of the word *ānāsh*, is to lay a fine. It is used in Deut. xxii. 19: "They shall amerce him in one hundred shekels," and in 2 Chron. xxxvi. 3: "He condemned (*mulcted*) the land in a hundred talents of gold." That *avenging* the death of the servant, was neither imprisonment, nor stripes, nor a fine, but that it was *taking the master's life* we infer, (1.) From the use of the word *nākām*. See Gen. iv. 24; Josh. x. 13; Judg. xiv. 7; xvi. 28; I Sam. xiv. 24; xviii. 25; xxv. 31; 2 Sam. iv. 8; Judg. v. 2; I Sam. xxv. 26-33. (2.) From the express statute, Lev. xxiv. 17; "He that killeth ANY man shall surely be put to death." Also Num. xxxv. 30, 31: "Whoso killeth ANY person, the murderer shall be put to death. Moreover, ye shall take NO SATISFACTION for the life of a

murderer which is guilty of death, but he shall surely be put to death." (3.) The Targum of Jonathan gives the verse thus, "Death by the sword shall surely be adjudged." The Targum of Jerusalem. "Vengeance shall be taken for him to the *uttermost*." Jarchi, the same. The Samaritan version: "He shall die the death," Again the clause "for he is his money," is quoted to prove that the servant is his master's property, and therefore, if he died, the master was not to be punished. The assumption is, that the phrase, "HE IS HIS MONEY," proves not only that the servant is *worth money* to the master, but that he is an *article of property*. If the advocates of slavery insist upon taking the principle of interpretation into the Bible, and turning it loose, let them stand and draw in self-defence. If they endorse for it at one point, they must stand sponsors all around the circle. It will be too late to cry for quarter when its stroke clears the table, and tilts them among the sweepings beneath. The Bible abounds with such expressions as the following: "This (bread) is my body;" "this (wine) is my blood;" "all they (the Israelites) are brass and tin;" "this (water) is the blood of the men who went in jeopardy of their lives;" "the Lord God is a sun and a shield;" "God is love;" "the seven good ears are seven years, and the seven good kine are seven years;" "the tree of the field is man's life;" "God is a consuming fire;" "he is his money," &c. A passion for the exact *literalities* of the Bible is so amiable, it were hard not to gratify it in this case. The words in the original are (*Kāspo-hu*), "his *silver* is he." The objector's principle of interpretation is a philosopher's stone! Its miracle touch transmutes five feet eight inches of flesh and bones into *solid silver*! Quite a *permanent* servant, if not so nimble with all—reasoning against "*forever*," is forestalled henceforth, and, Deut. xxiii. 15, utterly outwitted. The obvious meaning of the phrase, "*He is his money*," is, he is *worth money* to his master, and since, if the master had killed him, it would have taken money out of his pocket, the *pecuniary loss*, the *kind of instrument used*, and the *fact of his living some time after the injury*, (if the master *meant* to kill, he would be likely to *do* it while about it,) all together make a strong case of presumptive evidence clearing the master of *intent to kill*. But let us look at the objector's *inferences*. One is, that as the master might dispose of his *property* as he pleased, he was not to be punished, if he destroyed it. Whether the servant died under the master's hand, or after a day or two, he was *equally* his property, and the objector admits that in the *first* case the master is to be "surely punished" for destroying *his own property*! The other inference is, that since the

continuance of a day or two, cleared the master of *intent to kill*, the loss of the slave would be a sufficient punishment for inflicting the injury which caused his death. This inference makes the Mosaic law false to its own principles. A *pecuniary loss* was no part of the legal claim, where a person took the *life* of another. In such case, the law spurned money, whatever the sum. God would not cheapen human life, by balancing it with such a weight. "Ye shall take NO SATISFACTION for the life of a murderer, but he shall surely be put to death." Num. xxxv. 31. Even in excusable homicide, where an axe slipped from the helve and killed a man, no sum of money availed to release from confinement in the city of refuge, until the death of the High Priest. Numb. xxxv. 32. The doctrine that the loss of the servant would be a penalty *adequate* to the desert of the master, admits his *guilt* and his desert of *some* punishment, and it prescribes a kind of punishment, rejected by the law in all cases where man took the life of man, whether with or without the intent to kill. In short, the objector annuls an integral part of the system—makes a *new* law, and coolly metes out such penalty as he thinks fit. Divine legislation revised and improved! The master who struck out his servant's tooth, whether intentionally or not, was required to set him free. The *pecuniary loss* to the master was the same as though he had killed him. Look at the two cases. A master beats his servant so that he dies of his wounds; another accidentally strikes out his servant's tooth,—*the pecuniary loss of both cases is the same*. If the loss of the slave's services is punishment sufficient for the crime of killing him, would *God* command the *same* punishment for the *accidental* knocking out of a *tooth*? Indeed, unless the injury was done *inadvertantly*, the loss of the servant's services was only a *part* of the punishment—mere reparation to the *individual* for injury done; the *main* punishment, that strictly *judicial*, was reparation to the *community*. To set the servant free, and thus proclaim his injury, his right to redress, and the measure of it—answered not the ends of *public* justice. The law made an example of the offender. That "those that remain might hear and fear." "If a man cause a blemish in his neighbor, as he hath done, so shall it be done unto him. Breach for breach, eye for eye, tooth for tooth. Ye shall have one manner of law as well for the STRANGER as for one of your own country." Lev xxiv. 19, 20, 22. Finally, if a master smote out his servant's tooth the law smote out *his* tooth—thus redressing the *public* wrong; and it cancelled the servant's obligation to the

master, thus giving some compensation for the injury done, and exempting him from perilous liabilities in future.

OBJECTION III. "Both thy bondmen and bondmaids which thou shalt have shall be of the heathen that are round about you, of them shall ye buy bondmen and bondmaids. Moreover of the children of the stranger that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land, and they shall be your possessions. And ye shall take them as an inheritance of your children from you, to inherit them for a possession; they shall be your bondmen forever." Lev, xxv. 44-46.

The *points* in these verses urged as proof, that the Mosaic system sanctioned slavery, are 1. The word "BONDMEN." 2. "BUY." 3. "INHERITANCE AND POSSESSION." and 4. "FOREVER."

The *buying* of servants was discussed, pp. 17-22, and holding them as a "possession." pp. 37-46. We will now ascertain what sanction to slavery is derivable from the terms "bondmen," "inheritance," and "forever."

1. "BONDMEN." The fact that servants from the heathen are called "*bondmen*," while others are called "*servants*," is quoted as proof that the former were slaves. As the caprices of King James' translators were not inspired, we need stand in no special awe of them. The word here rendered bondmen is uniformly rendered servants elsewhere. The Hebrew word "*ēbēdh*," the plural of which is here translated "bondmen," is in Isa. xlii. 1, applied to Christ. "Behold my *servant* (bondman, slave?) whom I have chosen." So Isa. lii. 13. "Behold my *servant* (Christ) shall deal prudently." In 1 Kings xii. 6, 7, to *King Rehoboam*. "And they spake unto him, saying if thou wilt be a *servant* unto this people, then they will be thy *servants* forever." In 2 Chron. xii. 7, 8, 9, 13, to the king and all the nation. In fine, the word is applied to *all* persons doing service for others—to magistrates, to all governmental officers, to tributaries, to all the subjects of governments, to younger sons—defining their relation to the first born, who is called *Lord* and *ruler*—to prophets, to kings, to the Messiah, and in respectful addresses not less than *fifty* times in the Old Testament.

If the Israelites not only held slaves, but multitudes of them, if Abraham had thousands and if they *abounded* under the Mosaic system, why had their language *no word* that *meant slave*? That language must be wofully poverty-stricken, which has no signs to represent the most common and familiar objects and conditions. To represent by the same word, and without figure, property, and the owner of that property, is a solecism. Ziba was an "*ēbēdh*," yet he "*owned*" (!) twenty *ēbēdhs*! In our language, we have both *servant* and *slave*. Why? Because we have both the *things* and need *signs* for them. If the tongue had a sheath, as swords have scabbards, we should have some *name* for it: but our dictionaries give us none. Why? Because there is no such *thing*. But the objector asks, "Would not the Israelites use their word *ēbēdh* if they spoke of the slave of a heathen?" Answer. Their *national* servants or tributaries, are spoken of frequently, but domestic servants so rarely that no necessity existed, even if they were slaves, for coining a new word. Besides, the fact of their being domestics, under *heathen laws and usages* proclaimed their *liabilities*, their *locality* made a *specific* term unnecessary. But if the Israelites had not only *servants*, but a multitude of *slaves*, a *word meaning slave*, would have been indispensable for every day convenience. Further, the laws of the Mosaic system were so many sentinels on the outposts to warn off foreign practices. The border ground of Canaan, was quarantine ground, enforcing the strictest non-intercourse in usages between the without and the within.

2. "FOREVER." This is quoted to prove that servants were to serve during their life time, and their posterity from generation to generation. No such idea is contained in the passage. The word "forever," instead of defining the length of *individual* service, proclaims the permanence of the regulation laid down in the two verses preceding, namely, that their *permanent domestics* should be of the Strangers, and not of the Israelites: it declares the duration of that general provision. As if God had said, "You shall *always* get your *permanent* laborers from the nations round about you—your servants shall always be of that class of persons." As it stands in the original it is plain—"Forever of them shall ye serve yourselves." This is the literal rendering.

That "*forever*" refers to the permanent relations of a *community*, rather than to the services of *individuals*, is a fair inference from the form of the expression, "Both thy bondmen, &c., shall be of the *heathen*. Of THEM

shall ye buy," &c. "THEY shall be your possession." To say nothing of the uncertainty of *those individuals* surviving those *after* whom they are to live, the language used, applies more naturally to a *body* of people, than to *individual* servants. Besides *perpetual* service cannot be argued from the term *forever*. The ninth and tenth verses of the same chapter, limit it absolutely by the jubilee. "Then thou shalt cause the trumpet of the jubilee to sound * * throughout ALL your land." "And ye shall proclaim liberty throughout all the land unto ALL the inhabitants thereof." It may be objected that "inhabitants" here means *Israelitish* inhabitants alone. The command is, "Proclaim liberty throughout all the land unto ALL *the inhabitants thereof*." Besides, in the sixth verse, there is an enumeration of the different classes of the inhabitants, in which servants and Strangers are included; and in all the regulations of the jubilee, and the sabbatical year, the Strangers are included in the precepts, prohibitions, and promises. Again: the year of jubilee was ushered in, by the day of atonement. What did these institutions show forth? The day of atonement prefigured the atonement of Christ, and the year of jubilee, the gospel jubilee. And did they prefigure an atonement and a jubilee to Jews only? Were they types of sins remitted, and of salvation proclaimed to the nation of Israel alone? Is there no redemption for us Gentiles in these ends of the earth, and is our hope presumption and impiety? Did that old partition wall survive the shock, that made earth quake, and hid the sun, burst graves and rocks, and rent the temple veil? and did the Gospel only rear it higher to thunder direr perdition from its frowning battlements on all without? No! The God of our salvation lives "Good tidings of great joy shall be to ALL people." One shout shall swell from all the ransomed, "Thou hast redeemed us unto God by thy blood out of every kindred, and tongue, and people, and nation." To deny that the blessings of the jubilee extended to the servants from the *Gentiles*, makes Christianity *Judaism*. It not only eclipses the glory of the Gospel, but strikes out the sun. The refusal to release servants at the jubilee falsified and disannulled a grand leading type of the atonement, and was a libel on the doctrine of Christ's redemption. Finally, even if *forever* did refer to *individual* service, we have ample precedents for limiting the term by the jubilee. The same word defines the length of time which *Jewish* servants served who did not go out in the *seventh* year. And all admit that they went out at the jubilee. Ex. xxi. 2-6; Deut. xv. 12-17. The 23d verse of the same chapter is quoted to prove that "*forever*" in the 46th verse, extends beyond

the jubilee. "The land shall not be sold FOREVER, for the land is mine"—since it would hardly be used in different senses in the same general connection. As *forever*, in the 46th verse, respects the *general arrangement*, and not *individual service* the objection does not touch the argument. Besides in the 46th verse, the word used, is *Olām*, meaning *throughout the period*, whatever that may be. Whereas in the 23d verse, it is *Tsēmithuth*, meaning, a *cutting off*.

3. "INHERITANCE AND POSSESSION," "Ye shall take them as an INHERITANCE for your children after you to inherit them for a possession." This refers to the *nations*, and not to the *individual* servants, procured from these nations. We have already shown, that servants could not be held as a *property-possession*, and inheritance; that they became servants of their *own accord*, and were paid wages; that they were released by law from their regular labor nearly *half the days in each year*, and thoroughly *instructed*; that the servants were *protected* in all their personal, social and religious rights, equally with their masters &c. All remaining, after these ample reservations, would be small temptation, either to the lust of power or of lucre; a profitable "possession" and "inheritance," truly! What if our American slaves were all placed in *just such a condition* Alas, for that soft, melodious circumlocution, "Our PECULIAR species of property!" Verily, emphasis would be cadence, and euphony and irony meet together! What eager snatches at mere words, and bald technics, irrespective of connection, principles of construction, Bible usages, or limitations of meaning by other passages—and all to eke out such a sense as sanctifies existing usages, thus making God pander for lust. The words *nahal* and *nahala*, inherit and inheritance by no means necessarily signify *articles of property*. "The people answered the king and said, we have none *inheritance* in the son of Jesse." 2 Chron. x. 16. Did they moan gravely to disclaim the holding of their kin; as an article of *property*? "Children are an *heritage* (inheritance) of the Lord." Ps. cxxvii. 3. "Pardon our iniquity, and take us for thine *inheritance*." Ex. xxxiv. 9. When God pardons his enemies, and adopts them as children, does he make them *articles of property*? Are forgiveness, and chattel-making, synonymes? "Thy testimonies have I taken as a *heritage*" (inheritance.) Ps. cxix. 111. "*I am their inheritance*." Ezek. xliv. 28. "I will give thee the heathen for thine *inheritance*." Ps. ii. 8. "For the Lord will not cast off his people, neither will he forsake his

inheritance." Ps. xciv 14. see also Deut. iv. 20; Josh. xiii. 33; Ps. lxxxii. 8; lxxviii. 62, 71; Prov. xiv. 8. The question whether the servants were a PROPERTY-"*possession*," has been already discussed—pp. 37-46—we need add in this place but a word, *āhuzzā* rendered "*possession*." "And Joseph placed his father and his brethren, and gave them a *possession* in the land of Egypt." Gen. xlii. 11. In what sense was Goshen the *possession* of the Israelites? Answer, in the sense of *having it to live in*. In what sense were the Israelites to *possess* these nations, and *take them* as an *inheritance for their children*? Answer, they possessed them as a permanent source of supply for domestic or household servants. And this relation to these nations was to go down to posterity as a standing regulation, having the certainty and regularity of a descent by inheritance. The sense of the whole regulation may be given thus: "Thy permanent domestics, which thou shalt have, shall be of the nations that are round about you, of *them* shall ye get male and female domestics." "Moreover of the children of the foreigners that do sojourn among you, of *them* shall ye get, and of their families that are with you, which they begat in your land, and *they* shall be your permanent resource." "And ye shall take them as a *perpetual* provision for your children after you, to hold as a *constant source of supply*. Always of *them* shall ye serve yourselves." The design of the passage is manifest from its structure. It was to point out the *class* of persons from which they were to get their supply of servants, and the *way* in which they were to get them.

OBJECTION IV. "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a BOND-SERVANT, but as an HIRED-SERVANT, and as a sojourner shall he be with thee, and shall serve thee unto the year of jubilee." Lev. xxv. 39, 40.

As only *one* class is called "*hired*," it is inferred that servants of the *other* class were *not paid* for their labor. That God, with thundering anathemas against those who "used their neighbor's service without wages," granted a special indulgence to his chosen people to force others to work, and rob them of earnings, provided always, in selecting their victims, they spared "the gentlemen of property and standing," and pounced only upon the strangers and the common people. The inference that "*hired*" is synonymous with *paid*, and that those servants not *called* "*hired*" were not *paid* for their labor, is a mere assumption. The meaning of the English verb

to hire, is to procure for a *temporary* use at a certain price—to engage a person to temporary service for wages. That is also the meaning of the Hebrew word "*saukar*." It is not used when the procurement of *permanent* service is spoken of. Now, we ask, would *permanent* servants, those who constituted a stationary part of the family, have been designated by the same term that marks *temporary* servants? The every-day distinction on this subject, are familiar as table-talk. In many families the domestics perform only the *regular* work. Whatever is occasional merely, as the washing of a family, is done by persons hired expressly for the purpose. The familiar distinction between the two classes, is "servants," and "hired help," (not *paid* help.) *Both classes are paid*. One is permanent, the other occasional and temporary, and therefore in this case called "*hired*^A."

^A: To suppose a servant robbed of his earnings because he is not called a *hired* servant is profound induction! If I employ a man at twelve dollars a month to work my farm, he is my "*hired*" man, but if *I give him such a portion of the crop*, or in other words, if he works my farm "*on shares*," every farmer knows that he is no longer called my "*hired*" man. Yet he works the same farm, in the same way, at the same time, and with the same teams and tools; and does the same amount of work in the year, and perhaps earns twenty dollars a month, instead of twelve. Now as he is no longer called "*hired*," and as he still works my farm, suppose my neighbours sagely infer, that since he is not my "*hired*" laborer, I *rob* him of his earnings and with all the gravity of owls, pronounce the oracular decision, and hoot it abroad. My neighbors are deep divers!—like some theological professors, they not only go to the bottom but come up covered with the tokens.

A variety of particulars are recorded distinguishing *hired* from *bought* servants. (1.) Hired servants were paid daily at the close of their work. Lev. xix 13; Deut. xxiv. 14, 15; Job. vii. 2; Matt. xx. 8. "*Bought*" servants were paid in advance, (a reason for their being called *bought*,) and those that went out at the seventh year received a *gratuity*. Deut. xv. 12, 13. (2.) The "*hired*" were paid *in money*, the "*bought*" received their *gratuity*, at least, in grain, cattle, and the product of the vintage. Deut. xiv. 17. (3.) The "*hired*" *lived* in their own families, the "*bought*" were part of their masters' families. (4.) The "*hired*" supported their families out of their wages: the "*bought*" and their families were supported by the master *besides* their wages. The

"bought" servants were, *as a class, superior to the hired*—were more trustworthy, had greater privileges, and occupied a higher station in society. (1.) They were intimately incorporated with the family of the masters, were guests at family festivals, and social solemnities, from which hired servants were excluded. Lev. xxii. 10; Ex. xii, 43, 45. (2.) Their interests were far more identified with those of their masters' family. They were often, actually or prospectively, heirs of their masters' estates, as in the case of Eliezer, of Ziba, and the sons of Bilhah and Zilpah. When there were no sons, or when they were unworthy, bought servants were made heirs. Prov. xvii. 2. We find traces of this usage in the New Testament. "But when the husbandmen saw him, they reasoned among themselves, saying, this is the *heir*, come let us kill him, *that the inheritance may be ours.*" Luke xx. 14. In no instance does a *hired* servant inherit his master's estate. (3.) Marriages took place between servants and their master's daughters. Sheshan had a *servant*, an Egyptian, whose name was Jarha. And Sheshan gave his daughter to Jarha his servant to wife. 1 Chron. ii. 34, 35. There is no instance of a *hired* servant forming such an alliance. (4.) Bought servants and their descendants were treated with the same affection and respect as the other members of the family.^A The treatment of Abraham's servants, Gen. xxv.—the intercourse between Gideon and his servant, Judg. vii. 10, 11; Saul and his servant, 1 Sam. iv. 5, 22; Jonathan and his servant, 1 Sam. xiv. 1-14, and Elisha and his servant, are illustrations. No such tie seems to have existed between *hired* servants and their masters. Their untrustworthiness was proverbial. John ix. 12, 13. None but the *lowest class* engaged as hired servants, and the kinds of labor assigned to them required little knowledge and skill. Various passages show the low repute and trifling character of the class from which they were hired. Judg. ix. 4; 1 Sam. ii. 5. The superior condition of bought servants is manifest in the high trusts confided to them, and in their dignity and authority in the household. In no instance is a *hired* servant thus distinguished. The *bought* servant is manifestly the master's representative in the family—with plenipotentiary powers over adult children, even negotiating marriage for them. Abraham adjured his servant not to take a wife for Isaac of the daughters of the Canaanites. The servant himself selected the individual. Servants also exercised discretionary power in the management of their masters' estates, "And the servant took ten camels of the camels of his master, *for all the goods of his master were under his hand.*" Gen. xxiv. 10. The reason

assigned for taking them, is not that such was Abraham's direction, but that the servant had discretionary control. Servants had also discretionary power in the *disposal of property*. See Gen. xxiv. 22, 23, 53. The condition of Ziba in the house of Mephibosheth, is a case in point. So in Prov. xvii. 2. Distinct traces of this estimation are to be found in the New Testament, Matt. xxiv. 45; Luke xii, 42, 44. So in the parable of the talents; the master seems to have set up each of his servants in trade with a large capital. The unjust steward had large *discretionary* power, was "accused of wasting his master's goods," and manifestly regulated with his debtors, the *terms* of settlement. Luke xvi. 4-8. Such trusts were never reposed in *hired* servants.

A: "For the *purchased servant* who is an Israelite, or proselyte, shall fare as his master. The master shall not eat fine bread, and his servant bread of bran. Nor yet drink old wine, and give his servant new; nor sleep on soft pillows, and bedding, and his servant on straw. I say unto you, that he that gets a *purchased* servant does well to make him as his friend, or he will prove to his employer as if he got himself a master."—Maimonides, in Mishna Kiddushim. Chap. 1, Sec. 2.

The inferior condition of *hired* servants, is illustrated in the parable of the prodigal son. When the prodigal, perishing with hunger among the swine and husks, came to himself, his proud heart broke; "I will arise," he cried, "and go to my father." And then to assure his father of the depth of his humility, resolved to add, "Make me as one of thy *hired* servants." If *hired* servants were the *superior* class—to apply for the situation, savored little of that sense of unworthiness that seeks the dust with hidden face, and cries "unclean." Unhumbled nature *climbs*; or if it falls, clings fast, where first it may. Humility sinks of its own weight, and in the lowest deep, digs lower. The design of the parable was to illustrate on the one hand, the joy of God, as he beholds afar off, the returning sinner "seeking an injured father's face" who runs to clasp and bless him with unchiding welcome; and on the other, the contrition of the penitent, turning homeward with tears from his wanderings, his stricken spirit breaking with its ill-desert he sobs aloud. "The lowest place, *the lowest place*, I can abide no other." Or in those inimitable words, "Father I have sinned against Heaven, and in thy sight, and am no more worthy to be called thy son; make me as one of thy HIRED servants." The supposition that *hired* servants were the *highest* class, takes from the parable an element of winning beauty and pathos. It is manifest to

every careful student of the Bible, that *one* class of servants, was on terms of equality with the children and other members of the family. (Hence the force of Paul's declaration, Gal. iv. 1, "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all.") If this were the *hired* class, the prodigal was a sorry specimen of humility. Would our Lord have put such language upon the lips of one held up by himself, as a model of gospel humility, to illustrate its deep sense of an ill-desert? If this is *humility*, put it on stilts, and set it a strutting, while pride takes lessons, and blunders in apeing it.

Israelites and Strangers, belonged indiscriminately to *each* class of the servants, the *bought* and the *hired*. That those in the former class, whether Jews or Strangers, rose to honors and authority in the family circle, which were not conferred on *hired* servants, has been shown. It should be added, however, that in the enjoyment of privileges, merely *political*, the hired servants from the *Israelites*, were more favored than even the bought servants from the *Strangers*. No one from the Strangers, however wealthy or highly endowed, was eligible to the highest office, nor could he own the soil. This last disability seems to have been one reason for the different periods of service required of the two classes of bought servants—the Israelites and the Strangers. The Israelite was to serve six years—the Stranger until the jubilee. As the Strangers could not own the soil, nor even houses, except within walled towns, most would attach themselves to Israelitish families. Those who were wealthy, or skilled in manufactures, instead of becoming servants would need servants for their own use, and as inducements for the Stranger's to become servants to the Israelites, were greater than persons of their own nation could hold out to them, these wealthy Strangers would naturally procure the poorer Israelites for servants. Lev. xxv. 47. In a word, such was the political condition of the Strangers, that the Jewish polity offered a virtual bounty, to such as would become permanent servants, and thus secure those privileges already enumerated, and for their children in the second generation a permanent inheritance. Ezek. xlvii. 21-23. None but the monied aristocracy would be likely to decline such offers. On the other hand, the Israelites, owning all the soil, and an inheritance of land being a sacred possession, to hold it free of incumbrance was with every Israelite, a delicate point, both of family honor and personal character. 1 Kings xxi. 3. Hence, to forego the control of one's

inheritance, after the division of the paternal domain, or to be kept out of it after having acceded to it, was a burden grievous to be borne. To mitigate as much as possible such a calamity, the law released the Israelitish servant at the end of six years^A; as, during that time—if of the first class—the partition of the patrimonial land might have taken place; or, if of the second, enough money might have been earned to disencumber his estate, and thus he might assume his station as a lord of the soil. If neither contingency had occurred, then after another six years the opportunity was again offered, and so on, until the jubilee. So while strong motives urged the Israelite to discontinue his service as soon as the exigency had passed which made him a servant, every consideration impelled the *Stranger* to *prolong* his term of service; and the same kindness which dictated the law of six years' service for the Israelite, assigned as a general rule, a much longer period to the Gentile servant, who had every inducement to protract the term. It should be borne in mind, that adult Jews ordinarily became servants, only as a temporary expedient to relieve themselves from embarrassment, and ceased to be such when that object was effected. The poverty that forced them to it was a calamity, and their service was either a means of relief, or a measure of prevention; not pursued as a permanent business, but resorted to on emergencies—a sort of episode in the main scope of their lives. Whereas with the Strangers, it was a *permanent employment*, pursued both as a *means* of bettering their own condition, and that of their posterity, and as an *end* for its own sake, conferring on them privileges, and a social estimation not otherwise attainable.

^A: Another reason for protracting the service until the seventh year, seems to have been the coincidence of that period with other arrangements, in the Jewish economy. Its pecuniary responsibilities, social relations, and general internal structure, were *graduated* upon a septennial scale. Besides as those Israelites who became servants through poverty, would not sell themselves, till other expedients to recruit their finances had failed—(Lev. xxv. 35)—their *becoming servants* proclaimed such a state of their affairs, as demanded the labor of a *course of years* fully to reinstate them.

We see from the foregoing, why servants purchased from the heathen, are called by way of distinction, *the servants*, (not *bondmen*,) (1.) They followed it as a *permanent business*. (2.) Their term of service was *much longer* than that of the other class. (3.) As a class they doubtless greatly

outnumbered the Israelitish servants. (4.) All the Strangers that dwelt in the land were *tributaries*, required to pay an annual tax to the government, either in money, or in public service, (called a "*tribute of land-service*;") in other words, all the Strangers were *national servants* to the Israelites, and the same Hebrew word used to designate *individual* servants, equally designates *national* servants or tributaries. 2 Sam. viii. 2, 6, 14. 2 Chron. viii. 7-9. Deut xx. 11. 2 Sam. x. 19. 1 Kings ix. 21, 22. 1 Kings iv. 21. Gen. xxvii. 29. The same word is applied to the Israelites, when they paid tribute to other nations. 2 Kings xvii. 3. Judg. iii. 8, 14. Gen. xlix. 15. Another distinction between the Jewish and Gentile bought servants, was in their *kinds* of service. The servants from the Strangers were properly the *domestics*, or household servants, employed in all family work, in offices of personal attendance, and in such mechanical labor, as was required by increasing wants, and needed repairs. The Jewish bought servants seem almost exclusively *agricultural*. Besides being better fitted for it by previous habits—agriculture, and the tending of cattle, were regarded by the Israelites as the most honorable of all occupations. After Saul was elected king, and escorted to Gibeah, the next report of him is, "*And behold Saul came after the herd out of the field.*" 1 Sam. xi. 7. Elisha "was plowing with twelve yoke of oxen." 1 Kings xix. 19. King Uzziah "loved husbandry." 2 Chron. xxvi. 10. Gideon was "*threshing wheat*" when called to lead the host against the Midianites. Judg. vi. 11. The superior honorableness of agriculture, is shown, in that it was protected and supported by the fundamental law of the theocracy—God indicating it as the chief prop of the government. The Israelites were like permanent fixtures on their soil, so did they cling to it. To be agriculturalists on their own inheritances, was with them the grand claim to honorable estimation. Agriculture being pre-eminently a *Jewish* employment, to assign a native Israelite to other employments as a business, was to break up his habits, do violence to cherished predilections, and put him to a kind of labor in which he had no skill, and which he deemed degrading. In short, it was in the earlier ages of the Mosaic system, practically to *unjew* him, a hardship and rigor grievous to be borne, as it annihilated a visible distinction between the descendants of Abraham and the Strangers.—*To guard this and another fundamental distinction*, God instituted the regulation which stands at the head of this branch of our inquiry, "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a bond-

servant." In other words, thou shalt not put him to servant's work—to the business, and into the condition of domestics. In the Persian version it is translated thus, "Thou shalt not assign to him the work of *servitude*." In the Septuagint, "He shall not serve thee with the service of a *domestic*." In the Syriac, "Thou shalt not employ him after the manner of servants." In the Samaritan, "Thou shalt not require him to serve in the service of a servant." In the Targum of Onkelos, "He shall not serve thee with the service of a household servant." In the Targum of Jonathan, "Thou shalt not cause him to serve according to the usages of the servitude of servants."^A The meaning of the passage is, *thou shalt not assign him to the same grade, nor put him to the same service, with permanent domestics*. The remainder of the regulation is,—"*But as an hired servant and as a sojourner shall he be with thee*." Hired servants were not incorporated into the families of their masters: they still retained their own family organization, without the surrender of any domestic privilege, honor, or authority; and this even though they resided under the same roof with their master. While bought servants were associated with their master's families at meals, at the Passover, and at other family festivals, hired servants and sojourners were not. Ex. xii. 44, 45; Lev. xxii. 10, 11. Hired servants were not subject to the authority of their masters in any such sense as the master's wife, children, and bought servants. Hence the only form of oppressing hired servants spoken of in the Scriptures as practicable to masters, is that of *keeping back their wages*. To have taken away such privileges in the case under consideration, would have been pre-eminent "*rigor*," for it was not a servant born in the house of a master, not a minor, whose minority had been sold by the father, neither was it one who had not yet acceded to his inheritance: nor finally, one who had received the *assignment* of his inheritance, but was working off from it an incumbrance, before entering upon its possession and control. But it was that of *the head of a family*, who had known better days, now reduced to poverty, forced to relinquish the loved inheritance of his fathers, with the competence and respectful consideration its possession secured to him, and to be indebted to a neighbor for shelter, sustenance, and employment. So sad a reverse, might well claim sympathy; but one consolation cheers him in the house of his pilgrimage; he is an *Israelite*—*Abraham is his father*, and now in his calamity he clings closer than ever, to the distinction conferred by his birth-right. To rob him of this, were "the unkindest cut of all." To have assigned him to a grade of service filled only

by those whose permanent business was serving, would have been to "rule over him with" peculiar "rigor." "Thou shalt not compel him to serve as a bond-servant," or literally, *thou shalt not serve thyself with him, with the service of a servant*, guarantees his political privileges, and a kind and grade of service, comporting with his character and relations as an Israelite. And "as a *hired* servant, and as a sojourner shall he be with thee," secures to him his family organization, the respect and authority due to its head, and the general consideration resulting from such a station. Being already in possession of his inheritance, and the head of a household, the law so arranged the conditions of his service as to *alleviate* as much as possible the calamity, which had reduced him from independence and authority, to penury and subjection. The import of the command which concludes this topic in the forty-third verse, ("Thou shalt not rule over him with rigor,") is manifestly this, you shall not disregard those differences in previous associations, station, authority, and political privileges, upon which this regulation is based; for to hold this class of servants *irrespective* of these distinctions, and annihilating them, is to "rule with rigor." The same command is repeated in the forty-sixth verse, and applied to the distinction between servants of Jewish, and those of Gentile extraction, and forbids the overlooking of distinctive Jewish peculiarities, the disregard of which would be *rigorous* in the extreme^B. The construction commonly put upon the phrase "rule with rigor," and the inference drawn from it, have an air vastly oracular. It is interpreted to mean, "you shall not make him a chattel, and strip him of legal protection, nor force him to work without pay." The inference is like unto it, viz., since the command forbade such outrages upon the Israelites, it permitted and commissioned their infliction upon the Strangers. Such impious and shallow smattering captivates scoffers and libertines; its flippancy and blasphemy, and the strong scent of its loose-reined license works like a charm upon them. What boots it to reason against such rampant affinities! In Ex. i. 13, it is said that the Egyptians "made the children of Israel to *serve* with rigor." This rigor is affirmed of the *amount of labor* extorted and the *mode* of the exaction. The expression, "serve with rigor," is never applied to the service of servants under the Mosaic system. The phrase, "thou shalt not RULE over him with rigor," does not prohibit unreasonable exactions of labor, nor inflictions of cruelty. Such were provided against otherwise. But it forbids confounding the distinctions between a Jew and a Stranger, by assigning the former to the

same grade of service, for the same term of time, and under the same political disabilities as the latter.

[A](#): Jarchi's comment on "Thou shall not compel him to serve as a bond-servant" is, "The Hebrew servant is not to be required to do any thing which is accounted degrading—such as all offices of personal attendance, as loosing his master's shoe-latchet, bringing him water to wash his feet and hands, waiting on him at table, dressing him, carrying things to and from the bath. The Hebrew servant is to work with his master as a son or brother, in the business of his farm, or other labor, until his legal release."

[B](#): The disabilities of the Strangers, which were distinctions, based on a different national descent, and important to the preservation of national characteristics, and a national worship, did not at all affect their *social* estimation. They were regarded according to their character, and worth as *persons*, irrespective of their foreign origin, employments, and political condition.

We are now prepared to review at a glance, the condition of the different classes of servants, with the modifications peculiar to each class. In the possession of all fundamental rights, all classes of servants were on an absolute equality, all were equally protected by law in their persons, character, property and social relations; all were voluntary, all were compensated for their labor, and released from it nearly half of the days in each year; all were furnished with stated instruction: none in either class were in any sense articles of property, all were regarded as *men*, with the rights, interests, hopes and destinies of *men*. In all these respects, *all* classes of servants among the Israelites, formed but ONE CLASS. The *different* classes and the differences in *each* class, were, (1.) *Hired Servants*. This class consisted both of Israelites and Strangers. Their employments were different. The *Israelite* was an agricultural servant. The Stranger was a *domestic* and *personal* servant, and in some instances *mechanical*; both were occasional and temporary. Both lived in their own families, their wages were *money*, and they were paid when their work was done. (2.) *Bought Servants*, (including those "born in the house.") This class also, consisted of Israelites and Strangers, the same difference in their kinds of employments noticed before. Both were paid in advance^{[A](#)}, and neither was temporary. The Israelitish servant, with the exception of the *freeholders* was

released after six years. The stranger was a permanent servant, continuing until the jubilee. A marked distinction obtained also between different classes of *Jewish* bought servants. Ordinarily, they were merged in their master's family, and, like his wife and children, subject to his authority; (and, like them, protected by law from its abuse.) But the *freeholder* was a marked exception: his family relations, and authority remained unaffected, nor was he subjected as an inferior to the control of his master, though dependent upon him for employment.

A: The payment *in advance*, doubtless lessened the price of the purchase; the servant thus having the use of the money, and the master assuming all the risks of life and health for labor: at the expiration of the six year's contract, the master having suffered no loss from the risk incurred at the making of it, was obliged by law to release the servant with a liberal gratuity. The reason assigned for this is, "he hath been worth a double hired servant unto thee in serving thee six years," as if it had been said, as you have experienced no loss from the risks of life, and ability to labor, incurred in the purchase, and which lessened the price, and as, by being your servant for six years, he has saved you the time and trouble of looking up and hiring laborers on emergencies, therefore, "thou shalt furnish him liberally," &c.

It should be kept in mind, that *both* classes of servants, the Israelite and the Stranger, not only enjoyed *equal natural and religious rights*, but *all the civil and political privileges* enjoyed by those of their own people who were *not* servants. They also shared in common with them the political disabilities which appertained to all Strangers, whether the servants of Jewish masters, or the masters of Jewish servants. Further, the disabilities of the servants from the Strangers were exclusively *political* and *national*. (1.) They, in common with all Strangers, could not own the soil. (2.) They were ineligible to civil offices. (3.) They were assigned to employments less honorable than those in which Israelitish servants engaged; agriculture being regarded as fundamental to the existence of the state, other employments were in less repute, and deemed *unjewish*.

Finally, the Strangers, whether servants or masters, were all protected equally with the descendants of Abraham. In respect to political privileges, their condition was much like that of naturalized foreigners in the United States; whatever their wealth or intelligence, or moral principle, or love for

our institutions, they can neither go to the ballot-box, nor own the soil, nor be eligible to office. Let a native American, be suddenly bereft of these privilege, and loaded with the disabilities of an alien, and what to the foreigner would be a light matter, to *him*, would be the severity of *rigor*. The recent condition of the Jews and Catholics in England, is another illustration. Rothschild, the late banker, though the richest private citizen in the world, and perhaps master of scores of English servants, who sued for the smallest crumbs of his favor, was, as a subject of the government, inferior to the lowest among them. Suppose an Englishman of the Established Church, were by law deprived of power to own the soil, of eligibility to office and of the electoral franchise, would Englishmen think it a misapplication of language, if it were said, the government "rules over him with rigor?" And yet his person, property, reputation, conscience, all his social relations, the disposal of his time, the right of locomotion at pleasure, and of natural liberty in all respects, are just as much protected by law as the Lord Chancellor's.

FINALLY,—As the Mosaic system was a great compound type, rife with meaning in doctrine and duty; the practical power of the whole, depended upon the exact observance of those distinctions and relations which constituted its significancy. Hence, the care to preserve serve inviolate the distinction between a *descendant of Abraham* and a *Stranger*, even when the Stranger was a proselyte, had gone through the initiatory ordinances, entered the congregation, and become incorporated with the Israelites by family alliance. The regulation laid down in Ex. xxi. 2-6, is an illustration. In this case, the Israelitish servant, whose term expired in six years, married one of his master's *permanent female domestics*; but her marriage, did not release her master from *his* part of the contract for her whole term of service, nor from his legal obligation to support and educate her children. Neither did it do away that distinction, which marked her national descent by a specific *grade* and *term* of service, nor impair her obligation to fulfill *her* part of the contract. Her relations as a permanent domestic grew out of a distinction guarded with great care throughout the Mosaic system. To render it void, would have been to divide the system against itself. This God would not tolerate. Nor, on the other hand, would he permit the master, to throw off the responsibility of instructing her children, nor the care and expense of their helpless infancy and rearing. He was bound to support and

educate them, and all her children born afterwards during her term of service. The whole arrangement beautifully illustrates that wise and tender regard for the interests of all the parties concerned, which arrays the Mosaic system in robes of glory, and causes it to shine as the sun in the kingdom of our Father. By this law, the children had secured to them a mother's tender care. If the husband loved his wife and children, he could compel his master to keep him, whether he had any occasion for his services or not. If he did not love them, to be rid of him was a blessing; and in that case, the regulation would prove an act for the relief of an afflicted family. It is not by any means to be inferred, that the release of the servant in the seventh year, either absolved him from the obligations of marriage, or shut him out from the society of his family. He could doubtless procure a service at no great distance from them, and might often do it, to get higher wages, or a kind of employment better suited to his taste and skill. The great number of days on which the law released servants from regular labor, would enable him to spend much more time with his family, than can be spent by most of the agents of our benevolent societies with *their* families, or by many merchants, editors, artists &c., whose daily business is in New York, while their families reside from ten to one hundred miles in the country.

We conclude this Inquiry by touching briefly upon an objection, which, though not formally stated, has been already set aside by the whole tenor of the foregoing argument. It is this,—"The slavery of the Canaanites by the Israelites, was appointed by God as a commutation of the punishment of death denounced against them for their sins." If the absurdity of a sentence consigning persons to *death*, and at the same time to perpetual *slavery*, did not sufficiently laugh at itself, it would be small self-denial, in a case so tempting, to make up the deficiency by a general contribution. For, *be it remembered*, only *one* statute was ever given respecting the disposition to be made of the inhabitants of Canaan. If the sentence of death was pronounced against them, and afterwards *commuted*, when? where? by whom? and in what terms was the commutation, and where is it recorded? Grant, for argument's sake, that all the Canaanites were sentenced to unconditional extermination; as there was no reversal of the sentence, how can a right to *enslave* them, be drawn from such premises? The punishment of death is one of the highest recognitions of man's moral nature possible. It proclaims him *man*—rational, accountable, guilty, deserving death for

having done his utmost to cheapen human life, when the proof of its priceless worth lived in his own nature. But to make him a *slave*, cheapens to nothing *universal human nature*, and instead of healing a wound, gives a death-stab. What! repair an injury to rational being in the robbery of *one* of its rights, by robbing it of *all*, and annihilating their *foundation*—the everlasting distinction between persons and things? To make a man a chattel, is not the *punishment*, but the *annihilation* of a *human* being, and, so far as it goes, of *all* human beings. This commutation of the punishment of death, into perpetual slavery, what a fortunate discovery! Alas! for the honor of Deity, if commentators had not manned the forlorn hope, and by a timely movement rescued the Divine character, at the very crisis of its fate, from the perilous position in which inspiration had carelessly left it! Here a question arises of sufficient importance for a separate dissertation; but must for the present be disposed of in a few paragraphs. WERE THE CANAANITES SENTENCED BY GOD TO INDIVIDUAL AND UNCONDITIONAL EXTERMINATION? As the limits of this inquiry forbid our giving all the grounds of dissent from commonly received opinions, the suggestions made, will be thrown out merely as *QUERIES*, rather than laid down as *doctrines*. The directions as to the disposal of the Canaanites, are mainly in the following passages: Ex. xxiii. 23-33; xxxiv. 11; Deut. vii. 16-25; ix. 3; xxxi. 3-5. In these verses, the Israelites are commanded to "destroy the Canaanites," "drive out," "consume," "utterly overthrow," "put out," "dispossess them," &c. Did these commands enjoin the unconditional and universal destruction of the *inhabitants* or merely of the *body politic*? The word *hārām*, to destroy, signifies *national*, as well as individual destruction, the destruction of *political* existence, equally with *personal*; of governmental organization, equally with the lives of the subjects. Besides, if we interpret the words destroy, consume, overthrow, &c., to mean *personal* destruction, what meaning shall we give to the expressions, "throw out before thee;" "cast out before thee;" "expel," "put out," "dispossess," &c., which are used in the same passages? "I will destroy all the people to whom thou shalt come, and I will make all thine enemies *turn their backs unto thee*" Ex. xxiii. 27. Here "*all thine enemies*" were to *turn their backs* and "*all the people*" to be "*destroyed*." Does this mean that God would let all their *enemies* escape, but kill all their *friends*, or that he would *first* kill "all the people" and THEN make them "turn their backs," an army of runaway corpses? If these commands required the

destruction of all the inhabitants, the Mosaic law was at war with itself, for directions as to the treatment of native residents form a large part of it. See Lev. xix. 34; xxv. 35, 36; xx. 22. Ex. xxiii. 9; xxii. 21; Deut. i. 16, 17; x. 17, 19, xxvii. 19. We find, also that provision was made for them in the cities of refuge. Num. xxxv. 15;—the gleanings of the harvest and vintage were theirs, Lev. xix. 9, 10; xxiii. 22;—the blessings of the Sabbath, Ex. xx. 10;—the privilege of offering sacrifices secured, Lev. xxii. 18; and stated religious instruction provided for them, Deut. xxxi. 9, 12. Now does this same law require the *individual extermination* of those whose lives and interests it thus protects? These laws were given to the Israelites, long *before* they entered Canaan; and they must have inferred from them that a multitude of the inhabitants of the land were to *continue* in it, under their government. Again Joshua was selected as the leader of Israel to execute God's threatenings upon Canaan. He had no *discretionary* power. God's commands were his *official instructions*. Going beyond them would have been usurpation; refusing to carry them out rebellion and treason. Saul was rejected from being king for disobeying god's commands in a *single* instance. Now, if God commanded the individual destruction of all the Canaanites. Joshua *disobeyed him in every instance*. For at his death, the Israelites still "*dwelt among them*," and each nation is mentioned by name. Judg. i. 5, and yet we are told that Joshua "left nothing undone of all that the Lord commanded Moses;" and that he "took all that land." Josh. xi. 15-22. Also, that "*there stood not a man of all their enemies before them*." How can this be, if the command to *destroy* enjoined *individual* extermination, and the command to *drive out*, unconditional expulsion from the country, rather than their expulsion from the *possession* or *ownership* of it, as the lords of the soil? True, multitudes of the Canaanites were slain, but not a case can be found in which one was either killed or expelled who *acquiesced* in the transfer of the territory, and its sovereignty, from the inhabitants of the land to the Israelites. Witness the case of Rahab and her kindred, and the Gibeonites^A. The Canaanites knew of the miracles wrought for the Israelites; and that their land had been transferred to them as a judgment for their sins. Josh. ii. 9-11; ix. 9, 10, 24. Many of them were awed by these wonders, and made no resistance. Others defied God and came out to battle. These occupied the fortified cities, were the most inveterate heathen—the aristocracy of idolatry, the kings, the nobility and gentry, the priests, with their crowds of satellite, and retainers that aided in

idolatrous rites, and the military forces, with the chief profligates of both sexes. Many facts corroborate the general position. Such as the multitude of *tributaries* in the midst of Israel, and that too, after they had "waxed strong," and the uttermost nations quaked at the terror of their name—the Canaanites, Philistines, and others, who became proselytes—as the Nethenims, Uriah the Hittite—Rahab, who married one of the princes of Judah—Ittai—the six hundred Gittites—David's body guard. 2 Sam. xv. 18, 21. Obededom the Gittite, adopted into the tribe of Levi. Comp. 2 Sam. vi. 10, 11, with 1 Chron. xv. 18, and 1 Chron. xxvi. 45—Jaziz, and Obil. 1 Chron. xxvi. 30, 31, 33. Jephunneh the father of Caleb, the Kenite, registered in the genealogies of the tribe of Judah, and the one hundred and fifty thousand Canaanites, employed by Solomon in the building of the Temple^B. Besides, the greatest miracle on record, was wrought to save a portion of those very Canaanites, and for the destruction of those who would exterminate them. Josh. x. 12-14. Further—the terms employed in the directions regulating the disposal of the Canaanites, such as "drive out," "put out," "cast out," "expel," "dispossess," &c. seem used interchangeably with "consume," "destroy," "overthrow," &c., and thus indicate the sense in which the latter words are used. As an illustration of the meaning generally attached to these and similar terms, we refer to the history of the Amelekites. "I will utterly put out the remembrance of Amelek from under heaven." Ex. xxvii. 14. "Thou shalt blot out the remembrance of Amelek from under heaven; thou shalt not forget it." Deut. xxv. 19. "Smite Amelek and *utterly destroy* all that they have, and spare them not, but slay both man and woman, infant and suckling, ox and sheep." 1 Sam. xv. 2, 3. "Saul smote the Amelekites, and took Agag the king of the Amelekites, alive and UTTERLY DESTROYED ALL THE PEOPLE with the edge of the sword." Verses 7, 8. In verse 20, Saul says, "I have brought Agag, the king of Amelek, and have *utterly destroyed* the Amelekites." In 1 Sam. xxx. we find the Amelekites marching an army into Israel, and sweeping everything before them—and this in about eighteen years after they had *all been* "UTTERLY DESTROYED!" Deut. xx. 16, 17, will probably be quoted against the preceding view. We argue that the command in these verses, did not include all the individuals of the Canaanitish nations, but only the inhabitants of the *cities*, (and even those conditionally,) because, only the inhabitants of the *cities* are specified,—"*of the cities of these people thou shalt save alive nothing that breatheth.*" Cities then, as now, were pest-

houses of vice—they reeked with abominations little practiced in the country. On this account their influence would be far more perilous to the Israelites than that of the country. Besides, they were the centres of idolatry—there were the temples and altars, and idols, and priests, without number. Even their buildings, streets, and public walks were so many visibilities of idolatry. The reason assigned in the 18th verse for exterminating them, strengthens the idea,—“that they teach you not to do after all the abominations which they have done unto their gods.” This would be a reason for exterminating *all* the nations and individuals *around* them, as all were idolaters; but God commanded them, in certain cases, to spare the inhabitants. Contact with *any* of them would be perilous—with the inhabitants of the *cities* peculiarly, and of the *Canaanitish* cities pre-eminently so. The 10th and 11th verses contain the general rule prescribing the method in which cities were to be summoned to surrender. They were first to receive the offer of peace—if it was accepted, the inhabitants became *tributaries*—but if they came out against Israel in battle, the *men* were to be killed, and the women and little ones saved alive. The 15th verse restricts this lenient treatment to the inhabitants of the cities *afar off*. The 16th directs as to the disposal of the inhabitants of Canaanitish cities. They were to save alive “nothing that breathed.” The common mistake has been, in supposing that the command in the 15th verse refers to the *whole system of directions preceding*, commencing with the 10th, whereas it manifestly refers only to the *inflictions* specified in the 12th, 13th, and 14th, making a distinction between those *Canaanitish* cities that *fought*, and the cities *afar off* that fought—in one case destroying the males and females, and in the other, the *males* only. The offer of peace, and the *conditional preservation*, were as really guaranteed to *Canaanitish* cities as to others. Their inhabitants were not to be exterminated unless they came out against Israel in battle. But let us settle this question by the “law and the testimony.” “There was not a city that made peace with the children of Israel save the Hivites, the inhabitants of Gibeon; all others they took in battle. For it was of the Lord to harden their hearts, that they should COME OUT AGAINST ISRAEL IN BATTLE, that he might destroy them utterly, and that they might have no favor, but that he might destroy them, as the Lord commanded Moses.” Josh. xix. 19, 20. That is, if they had *not* come out against Israel in battle, they would have had “favor” shown them, and would not have been “*destroyed utterly*.” The great design was to *transfer*

the territory of the Canaanites to the Israelites, and along with it, absolute sovereignty in every respect; to annihilate their political organizations, civil polity, and jurisprudence and their system of religion, with all its rights and appendages; and to substitute therefor, a pure theocracy, administered by Jehovah, with the Israelites as His representatives and agents. In a word the people were to be denationalized, their political existence annihilated, their idol temples, altars, images groves and heathen rites destroyed, and themselves put under tribute. Those who resisted the execution of Jehovah's purpose were to be killed, while those who quietly submitted to it were to be spared. All had the choice of these alternatives, either free egress out of the land^C*; or acquiescence in the decree, with life and residence as tributaries, under the protection of the government; or resistance to the execution of the decree, with death. "And it shall come to pass, if they will diligently learn the ways of my people, to swear by my name, the Lord liveth as they taught my people to swear by Baal; THEN SHALL THEY BE BUILT IN THE MIDST OF MY PEOPLE."*

^A: Perhaps it will be objected, that the preservation of the Gibeonites, and of Rahab and her kindred, was a violation of the command of God. We answer, if it had been, we might expect some such intimation. If God had strictly commanded them to *exterminate all the Canaanites*, their pledge to save themselves was neither a repeal of the statute, nor absolution for the breach of it. If *unconditional destruction* was the import of the command, would God have permitted such an act to pass without rebuke? Would he have established such a precedent when Israel had hardly passed the threshold of Canaan, and was then striking the first blow of a half century war? What if they *had* passed their word to Rahab and the Gibeonites? Was that more binding than God's command? So Saul seems to have passed *his* word to Agag; yet Samuel hewed him in pieces, because in saving his life, Saul had violated God's command. When Saul sought to slay the Gibeonites in "his zeal for the children of Israel and Judah," God sent upon Israel three years famine for it. When David inquired of them what atonement he should make, they say, "The man that devised against us, that we should be destroyed from *remaining in any of the coasts of Israel*, let seven of his sons be delivered," &c. 2 Sam. xxii. 1-6.

^B: If the Canaanites were devoted by God to unconditional extermination, to have employed them in the erection of the temple,—what was it but the

climax of impiety? As well might they pollute its altars with swine's flesh, or make their sons pass through the fire to Moloch.

[C](#): Suppose all the Canaanitish nations had abandoned their territory at the tidings of Israel's approach, did God's command require the Israelites to chase them to the ends of the earth and hunt them out, until every Canaanite was destroyed? It is too preposterous for belief and yet it follows legitimately from that construction, which interprets the terms "consume," "destroy," "destroy utterly," &c. to mean unconditional, individual extermination.

[The original design of the preceding Inquiry embraced a much wider range of topics. It was soon found, however, that to fill up the outline would be to make a volume. Much of the foregoing has therefore been thrown into a mere series of *indices*, to trains of thought and classes of proof which, however limited or imperfect, may perhaps, afford some facilities to those who have little leisure for protracted investigation.]

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CONTENTS.

- DEFINITION OF SLAVERY,
- ◦ NEGATIVE,
- ◦ AFFIRMATIVE,
- ◦ LEGAL,
- THE MORAL LAW AGAINST SLAVERY
- ◦ "THOU SHALT NOT STEAL,"
- ◦ "THOU SHALT NOT COVET,"
- MAN-STEALING—EXAMINATION OF EX. xxi. 16,
- ◦ SEPARATION OF MAN FROM BRUTES AND THINGS,
- IMPORT OF "BUY" AND "BOUGHT WITH MONEY,"
- ◦ SERVANTS SOLD THEMSELVES,
- RIGHTS AND PRIVILEGES SECURED BY LAW TO SERVANTS,
- SERVANTS WERE VOLUNTARY,
- ◦ RUNAWAY SERVANTS NOT TO BE DELIVERED TO THEIR MASTERS,
- SERVANTS WERE PAID WAGES,
- MASTERS NOT "OWNERS,"
- ◦ SERVANTS NOT SUBJECTED TO THE USES OF PROPERTY,
- ◦ SERVANTS EXPRESSLY DISTINGUISHED FROM PROPERTY,
- ◦ EXAMINATION OF GEN. xii. 5.—"THE SOULS THAT THEY HAD GOTTEN," &c.
- ◦ SOCIAL EQUALITY OF SERVANTS AND MASTERS,
- ◦ CONDITION OF THE GIBIONITES AS SUBJECTS OF THE HEBREW COMMONWEALTH,
- ◦ EGYPTIAN BONDAGE CONTRASTED WITH AMERICAN SLAVERY,
- ◦ CONDITION OF AMERICAN SLAVES,
- ◦ ILL FED,
- ◦ ILL CLOTHED,
- ◦ OVER-WORKED,
- ◦ THEIR DWELLING UNFIT FOR HUMAN BEINGS,
- ◦ MORAL CONDITION—"HEATHENS,"

- OBJECTIONS CONSIDERED.
- "CURSED BE CANAAN," &c.—EXAMINATION OF GEN. ix. 25,
- "FOR HE IS HIS MONEY," &c.—EXAMINATION OF EX. xxi. 20,
21,
- EXAMINATION OF LEV. xxv. 44-46,
- - "BOTH THY **BONDMEN**, &c., SHALL BE OF THE
HEATHEN,"
 - "OF THEM SHALL YE **BUY**,"
 - "THEY SHALL BE YOUR BONDMEN **FOREVER**,"
 - "YE SHALL TAKE THEM AS AN **INHERITANCE**," &c.
- EXAMINATION OF LEV. xxv. 39, 40.—THE FREEHOLDER NOT
TO "SERVE AS A BOND SERVANT,"
- - DIFFERENCE BETWEEN HIRED AND BOUGHT
SERVANTS,
 - BOUGHT SERVANTS THE MOST FAVORED AND
HONORED CLASS,
 - ISRAELITES AND STRANGERS BELONGED TO BOTH
CLASSES,
 - ISRAELITES SERVANTS TO THE STRANGERS,
 - REASONS FOR THE RELEASE OF THE ISRAELITISH
SERVANTS IN THE SEVENTH YEAR,
 - REASONS FOR ASSIGNING THE STRANGERS TO A
LONGER SERVICE,
 - REASONS FOR CALLING THEM THE SERVANTS,
 - DIFFERENT KINDS OF SERVICE ASSIGNED TO THE
ISRAELITES AND STRANGERS,
- REVIEW OF ALL THE CLASSES OF SERVANTS WITH THE
MODIFICATIONS OF EACH,
- - POLITICAL DISABILITIES OF THE STRANGERS,
- EXAMINATION OF EX. xxi. 2-6.—"IF THOU BUY AN HEBREW
SERVANT,"
- THE CANAANITES NOT SENTENCED TO UNCONDITIONAL
EXTERMINATION,

THE BIBLE AGAINST SLAVERY.

The spirit of slavery never seeks refuge in the Bible of its own accord. The horns of the altar are its last resort—seized only in desperation, as it rushes from the terror of the avenger's arm. Like other unclean spirits, it "hateth the light, neither cometh to the light, lest its deeds should be reprov'd." Goaded to phrenzy in its conflicts with conscience and common sense, denied all quarter, and hunted from every covert, it vaults over the sacred inclosure and courses up and down the Bible, "seeking rest, and finding none." THE LAW OF LOVE, glowing on every page, flashes around it an omnipresent anguish and despair. It shrinks from the hated light, and howls under the consuming touch, as demons quailed before the Son of God, and shrieked, "Torment us not." At last, it slinks away under the types of the Mosaic system, and seeks to burrow out of sight among their shadows. Vain hope! Its asylum is its sepulchre; its city of refuge, the city of destruction. It flies from light into the sun; from heat, into devouring fire; and from the voice of God into the thickest of His thunders.

DEFINITION OF SLAVERY.

If we would know whether the Bible sanctions slavery, we must determine *what slavery is*. An element, is one thing; a relation, another; an appendage, another. Relations and appendages presuppose other things to which they belong. To regard them as the things themselves, or as constituent parts of them, leads to endless fallacies. Mere political disabilities are often confounded with slavery; so are many relations, and tenures, indispensable to the social state. We will specify some of these.

1. PRIVATION OF SUFFRAGE. Then minors are slaves.
2. INELIGIBILITY TO OFFICE. Then females are slaves.
3. TAXATION WITHOUT REPRESENTATION. Then slaveholders in the District of Columbia are slaves.
4. PRIVATION OF ONE'S OATH IN LAW. Then atheists are slaves.
5. PRIVATION OF TRIAL BY JURY. Then all in France are slaves.

6. BEING REQUIRED TO SUPPORT A PARTICULAR RELIGION. Then the people of England are slaves.

7. APPRENTICESHIP. The rights and duties of master and apprentice are correlative. The *claim* of each upon the other results from his *obligation* to the other. Apprenticeship is based on the principle of equivalent for value received. The rights of the apprentice are secured, equally with those of the master. Indeed while the law is *just* to the former it is *benevolent* to the latter; its main design being rather to benefit the apprentice than the master. To the master it secures a mere compensation—to the apprentice, both a compensation and a virtual gratuity in addition, he being of the two the greatest gainer. The law not only recognizes the *right* of the apprentice to a reward for his labor, but appoints the wages, and enforces the payment. The master's claim covers only the *services* of the apprentice. The apprentice's claim covers *equally* the services of the master. Neither can hold the other as property; but each holds property in the services of the other, and BOTH EQUALLY. Is this slavery?

8. FILIAL SUBORDINATION AND PARENTAL CLAIMS. Both are nature's dictates, and intrinsic elements of the social state; the natural affections which blend parent and child in one, excite each to discharge those offices incidental to the relation, and are a shield for mutual protection. The parent's legal claim to the child's services, is a slight return for the care and toil of his rearing, exclusively of outlays for support and education. This provision is, with the mass of mankind, indispensable to the preservation of the family state. The child, in helping his parents, helps himself—increases a common stock, in which he has a share; while his most faithful services do but acknowledge a debt that money cannot cancel.

9. CLAIMS OF GOVERNMENT ON SUBJECTS. Governments owe their subjects protection; subjects owe just governments allegiance and support. The obligations of both are reciprocal, and the benefits received by both are mutual, equal, and voluntarily rendered.

10. BONDAGE FOR CRIME. Must innocence be punished because guilt suffers penalties? True, the criminal works for the government without pay; and well he may. He owes the government. A century's work would not pay its drafts on him. He will die a public defaulter. Because laws make men

pay their debts, shall those be forced to pay who owe nothing? The law makes no criminal, PROPERTY. It restrains his liberty, and makes him pay something, a mere penny in the pound, of his debt to the government; but it does not make him a chattel. Test it. To own property, is to own its product. Are children born of convicts, government property? Besides, can *property* be guilty? Can *chattels* deserve punishment?

11. RESTRAINTS UPON FREEDOM. Children are restrained by parents, pupils, by teachers, patients, by physicians, corporations, by charters, and legislatures, by constitutions. Embargoes, tariffs, quarantine, and all other laws, keep men from doing as they please. Restraints are the web of civilized society, warp and woof. Are they slavery? then a government of LAW, is the climax of slavery!

12. INVOLUNTARY OR COMPULSORY SERVICE. A juryman is empannelled against his will, and sit he *must*. A sheriff orders his posse; bystanders *must* turn in. Men are *compelled* to remove nuisances, pay fines and taxes, support their families, and "turn to the right as the law directs," however much against their wills. Are they therefore slaves? To confound slavery with involuntary service is absurd. Slavery is a *condition*. The slave's *feelings* toward it cannot alter its nature. Whether he desires or detests it, the condition remains the same. The slave's willingness to be a slave is no palliation of the slaveholder's guilt. Suppose he should really believe himself a chattel, and consent to be so regarded by others, would that *make* him a chattel, or make those guiltless who *hold* him as such? I may be sick of life, and I tell the assassin so that stabs me; is he any the less a murderer? Does my *consent* to his crime, atone for it? my partnership in his guilt, blot out his part of it? The slave's willingness to be a slave, so far from lessening the guilt of his "owner," aggravates it. If slavery has so palsied his mind that he looks upon himself as a chattel, and consents to be one, actually to hold him as such, falls in with his delusion, and confirms the impious falsehood. These very feelings and convictions of the slave, (if such were possible) increase a hundred fold the guilt of the master, and call upon him in thunder, immediately to recognize him as a MAN, and thus break the sorcery that cheats him out of his birthright—the consciousness of his worth and destiny.

Many of the foregoing conditions are *appendages* of slavery, but no one, nor all of them together, constitute its intrinsic unchanging element.

ENSLAVING MEN IS REDUCING THEM TO ARTICLES OF PROPERTY—making free agents, chattels—converting *persons* into *things*—sinking immortality into *merchandise*. A *slave* is one held in this condition. In law, "he owns nothing, and can acquire nothing." His right to himself is abrogated. If he say *my hands, my body, my mind, MYself*, they are figures of speech. To *use himself* for his own good, is a *crime*. To keep what he earns, is *stealing*. To take his body into his own keeping, is *insurrection*. In a word, the profit of his master is made the END of his being, and he, a *mere means* to that end—a mere means to an end into which his interests do not enter, of which they constitute no portion^A. MAN, sunk to a *thing*! the intrinsic element, the *principle* of slavery; MEN, bartered, leased, mortgaged, bequeathed, invoiced, shipped in cargoes, stored as goods, taken on executions, and knocked off at a public outcry! Their *rights*, another's conveniences; their interests, wares on sale; their happiness, a household utensil; their personal inalienable ownership, a serviceable article or a plaything, as best suits the humour of the hour; their deathless nature, conscience, social affections, sympathies, hopes—marketable commodities! We repeat it, THE REDUCTION OF PERSONS TO THINGS! Not robbing a man of privileges, but of *himself*; not loading him with burdens, but making him a *beast of burden*; not restraining liberty, but subverting it; not curtailing rights, but abolishing them; not inflicting personal cruelty, but annihilating *personality*; not exacting involuntary labor, but sinking man into an *implement* of labor; not abridging human comforts, but abrogating human *nature*; not depriving an animal of immunities, but despoiling a rational being of attributes—uncreating a MAN, to make room for a *thing*!

^A: To deprive human nature of *any* of its rights is *oppression*; to take away the *foundation* of its rights is slavery. In other words, whatever sinks man from an END to a mere *means*, just so far makes him a slave. Hence West-India apprenticeship retained the cardinal principle of slavery. The apprentice, during three-fourths of his time, was forced to labor, and robbed of his earnings; just so far forth he was a *mere means*, a slave. True in other respects slavery was abolished in the British West Indies August, 1834. Its bloodiest features were blotted out—but the meanest and most despicable

of all—forcing the poor to work for the rich without pay three fourths of their time, with a legal officer to flog them if they demurred at the outrage, was one of the provisions of the "Emancipation Act!" For the glories of that luminary, abolitionists thanked God, while they mourned that it rose behind clouds and shone through an eclipse.

[West India apprenticeship is now (August 1838) abolished. On the first of the present month, every slave in every British island and colony stood up a freeman!—Note to fourth edition.]

That this is American slavery, is shown by the laws of slave states. Judge Stroud, in his "Sketch of the Laws relating to Slavery," says, "The cardinal principle of slavery, that the slave is not to be ranked among sentient beings, but among *things*—obtains as undoubted law in all of these [the slave] states." The law of South Carolina says, "Slaves shall be deemed, held, taken, reputed, and adjudged in law to be chattels personal in the hands of their owners and possessors, and their executors, administrators, and assigns, to ALL INTENTS, CONSTRUCTIONS, AND PURPOSES WHATSOEVER." *Brev. Dig.*, 229. In Louisiana, "A slave is one who is in the power of a master to whom he belongs; the master may sell him, dispose of his person, his industry, and his labor; he can do nothing, possess nothing, nor acquire any thing, but what must belong to his master."—*Civ. Code*, Art. 35.

This is American slavery. The eternal distinction between a person and a thing, trampled under foot—the crowning distinction of all others—alike the source, the test, and the measure of their value—the rational, immortal principle, consecrated by God to universal homage in a baptism of glory and honor, by the gift of his Son, his Spirit, his word, his presence, providence, and power; his shield, and staff, and sheltering wing; his opening heavens, and angels ministering, and chariots of fire, and songs of morning stars, and a great voice in heaven proclaiming eternal sanctions, and confirming the word with signs following.

Having stated the *principle* of American slavery, we ask, DOES THE BIBLE SANCTION SUCH A PRINCIPLE?^A "To the *law* and the testimony?"

A: The Bible record of actions is no comment on their moral character. It vouches for them as *facts*, not as *virtues*. It records without rebuke, Noah's drunkenness, Lot's incest, and the lies of Jacob and his mother—not only single acts, but *usages*, such as polygamy and concubinage, are entered on the record without censure. Is that *silent entry* God's *endorsement*? Because the Bible in its catalogue of human actions, does not stamp on every crime its name and number, and write against it, *this is a crime*—does that wash out its guilt, and bleach it into a virtue?

THE MORAL LAW AGAINST SLAVERY.

Just after the Israelites were emancipated from their bondage in Egypt, while they stood before Sinai to receive the law, as the trumpet waxed louder, and the mount quaked and blazed, God spake the ten commandments from the midst of clouds and thunderings. Two of those commandments deal death to slavery. "THOU SHALT NOT STEAL," or, "thou shalt not take from another what *belongs* to him." All man's powers are God's gift to HIM. Each of them is a part of himself, and all of them together constitute himself. All else that belongs to man, is acquired by the *use* of these powers. The interest belongs to him, because the principal does; the product is his, because he is the producer. Ownership of any thing, is ownership of its *use*. The right to use according to will, is *itself* ownership. The eighth commandment presupposes and assumes the right of every man to his powers, and their product. Slavery robs of both. A man's right to himself, is the only right absolutely original and intrinsic—his right to anything else is merely *relative* to this, is derived from it, and held only by virtue of it. SELF-RIGHT is the *foundation right*—the *post in the middle*, to which all other rights are fastened. Slaveholders, when talking about their RIGHT to their slaves, always assume their own right to themselves. What slave-holder ever undertook to prove his right to himself? He knows it to be a self-evident proposition, that *a man belongs to himself*—that the right is intrinsic and absolute. In making out his own title, he makes out the title of every human being. As the fact of being *a man* is itself the title, the whole human family have one common title deed. If one man's title is valid, all are valid. If one is worthless, all are. To deny the validity of the *slave's* title is to deny the validity of *his own*; and yet in the act of making a man a slave, the slaveholder *asserts* the validity of his own

title, while he seizes him as his property who has the *same* title. Further, in making him a slave, he does not merely disfranchise of humanity *one* individual, but UNIVERSAL MAN. He destroys the foundations. He annihilates *all rights*. He attacks not only the human race, but *universal being*, and rushes upon JEHOVAH. For rights are *rights*; God's are no more—man's are no less.

The eighth commandment forbids the taking of *any part* of that which belongs to another. Slavery takes the *whole*. Does the same Bible which prohibits the taking of *any* thing from him, sanction the taking of *every* thing! Does it thunder wrath against the man who robs his neighbor of a *cent*, yet commission him to rob his neighbour of *himself*? Slaveholding is the highest possible violation of the eight commandment. To take from a man his earnings, is theft. But to take the *earner*, is a compound, life-long theft—supreme robbery that vaults up the climax at a leap—the dread, terrific, giant robbery, that towers among other robberies a solitary horror. The eight commandment forbids the taking away, and the tenth adds, "Thou shalt not *covet* any thing that is thy neighbor's;" thus guarding every man's right to himself and property, by making not only the actual taking away a sin, but even that state of mind which would *tempt* to it. Who ever made human beings slaves, without *coveting* them? Why take from them their time, labor, liberty, right of self-preservation and improvement, their right to acquire property, to worship according to conscience, to search the Scriptures, to live with their families, and their right to their own bodies, if they do not *desire* them? They COVET them for purposes of gain, convenience, lust of dominion, of sensual gratification, of pride and ostentation. THEY BREAK THE TENTH COMMANDMENT, and pluck down upon their heads the plagues that are written in the book. *Ten* commandments constitute the brief compend of human duty. *Two* of these brand slavery as sin.

MANSTEALING—EXAMINATION OF EX. XXI. 16.

The giving of the law at Sinai, immediately preceded the promulgation of that body of laws called the "Mosaic system." Over the gateway of that system, fearful words were written by the finger of God—"HE THAT

STEALETH A MAN AND SELLETH HIM, OR IF HE BE FOUND IN HIS HAND, HE SHALL SURELY BE PUT TO DEATH^A." Ex. xxi. 16.

^A: A writer in the American Quarterly Review, commenting on this passage, thus blasphemes. "On this passage an impression has gone abroad that slave-owners are necessarily menstealers; how hastily, any one will perceive who consults the passage in its connection. Being found in the chapter which authorizes this species of property among the Hebrews, it must of course relate to *its full protection from the danger of being enticed away from its rightful owner*."—Am. Quart. Review for June, 1833. Article "Negro slavery."

The oppression of the Israelites in Egypt, and the wonders wrought for their deliverance, proclaim the reason for such a law at such a time. They had just been emancipated. The tragedies of their house of bondage were the realities of yesterday, and peopled their memories with thronging horrors. They had just witnessed God's testimony against oppression in the plagues of Egypt—the burning blains on man and beast; the dust quickened into loathsome life, and swarming upon every living thing; the streets, the palaces, the temples, and every house heaped up with the carcasses of things abhorred; the kneading troughs and ovens, the secret chambers and the couches, reeking and dissolving with the putrid death; the pestilence walking in darkness at noonday, the devouring locusts, and hail mingled with fire, the first-born death-struck, and the waters blood; and last of all, that dread high hand and stretched-out arm, that whelmed the monarch and his hosts, and strewed their corpses on the sea. All this their eyes had looked upon; earth's proudest city, wasted and thunder-scarred, lying in desolation, and the doom of oppressors traced on her ruins in the handwriting of God, glaring in letters of fire mingled with blood—a blackened monument of wrath to the uttermost against the stealers of men. No wonder that God, in a code of laws prepared for such a people at such a time, should uprear on its foreground a blazing beacon to flash terror on slaveholders. "*He that stealeth a man and selleth him, or if he be found in his hand, he shall surely be put to death.*" Ex. xxi. 16. Deut. xxiv, 7^A. God's cherubim and flaming sword guarding the entrance to the Mosaic system!

^A: Jarchi, the most eminent of the Jewish Commentators, who wrote seven hundred years ago, in his comment on this stealing and making

merchandize of men, gives the meaning thus:—"Using a man against his will, as a servant lawfully purchased; yea, though he should use his services ever so little, only to the value of a farthing, or use but his arm to lean on to support him, *if he be forced so to act as a servant*, the person compelling him but once to do so, shall die as a thief, whether he has sold him or not."

The word *Gānābh* here rendered *stealeth*, means, the taking of what belongs to another, whether by violence or fraud; the same word is used in the eight commandment, and prohibits both robbery and theft.

The crime specified, is that of depriving **SOMEBODY** of the ownership of a man. Is this somebody a master? and is the crime that of depriving a master of his servant? Then it would have been "he that *stealeth*" a *servant*, not "he that *stealeth* a *man*." If the crime had been the taking of an individual from *another*, then the *term* used would have been expressive of that relation, and most especially if it was the relation of property and *proprietor*!

The crime is stated in a three-fold form—man *stealing*, *selling*, and *holding*. All are put on a level, and whelmed under one penalty—**DEATH**^A. This *somebody* deprived of the ownership of a man, is the *man himself*, robbed of personal ownership. Joseph said, "Indeed I was *stolen* away out of the land of the Hebrews." Gen. xl. 15. How *stolen*? His brethren sold him as an article of merchandize. Contrast this penalty for *man-stealing* with that for *property-stealing*, Ex. xxii. 14. If a man had stolen an ox and killed or sold it, he was to restore five oxen; if he had neither sold nor killed it, two oxen. But in the case of stealing a *man*, the *first* act drew down the utmost power of punishment; however often repeated or aggravated the crime, human penalty could do no more. The fact that the penalty for *man-stealing* was death, and the penalty for *property-stealing*, the mere restoration of double, shows that the two cases were adjudicated on totally different principles. The man stolen might be diseased or totally past labor, consequently instead of being profitable to the thief, he would be a tax upon him, yet death was still the penalty, though not a cent's worth of *property-value* was taken. The penalty for stealing property was a mere property-penalty. However large the theft, the payment of double wiped out the score. It might have a greater money value than a thousand men, yet death was not the penalty, nor maiming, nor braiding, nor even stripes, but double *of the same kind*. Why

was not the rule uniform? When a *man* was stolen why was not the thief required to restore double of the same kind—two men, or if he had sold him, five men? Do you say that the man-thief might not *have* them? So the ox-thief might not have two oxen, or if he had killed it, five. But if God permitted men to hold *men* as property, equally with oxen, the man-thief, could get men with whom to pay the penalty, as well as the ox-thief, oxen. Further, when property was stolen, the legal penalty was a compensation to the person injured. But when a *man* was stolen, no property compensation was offered. To tender money as an equivalent, would have been to repeat the outrage with intolerable aggravations. Compute the value of a MAN in *money*! Throw dust into the scale against immortality! The law recoiled from such supreme insult and impiety. To have permitted the man-thief to expiate his crime by restoring double, would have been making the repetition of crime its atonement. But the infliction of death for man-stealing exacted the utmost possibility of reparation. It wrung from the guilty wretch as he gave up the ghost, the testimony of blood, and death-groans, to the infinite dignity and worth of man,—a proclamation to the universe, voiced in mortal agony, "MAN IS INVIOLEABLE."—a confession shrieked in phrenzy at the grave's mouth—"I die accursed, and God is just."

A: "Those are *men-stealers* who abduct, *keep*, sell, or buy slaves or freemen." GROTIUS.

If God permitted man to hold man as property, why did he punish for stealing that kind of property infinitely more than for stealing any other kind of property? Why punish with death for stealing a very little of *that* sort of property, and make a mere fine the penalty for stealing a thousand times as much, of any other sort of property—especially if by his own act, God had annihilated the difference between man and *property*, by putting him on a level with it?

The guilt of a crime, depends much upon the nature, character, and condition of the victim. To steal is a crime, whoever the thief, or whatever the plunder. To steal bread from a full man, is theft; to steal it from a starving man, is both theft and murder. If I steal my neighbor's property, the crime consists not in altering the *nature* of the article, but in taking as *mine* what is *his*. But when I take my neighbor himself, and first make him *property*, and then *my* property, the latter act, which was the sole crime in

the former case, dwindles to nothing. The sin in stealing a man, is not the transfer from its owner to another of that which is already property, but the turning of *personality* into *property*. True, the attributes of man remain, but the rights and immunities which grow out of them are annihilated. It is the first law both of reason and revelation, to regard things and beings as they are; and the sum of religion, to feel and act toward them according to their value. Knowingly to treat them otherwise is sin; and the degree of violence done to their nature, relations, and value, measures its guilt. When things are sundered which God has indissolubly joined, or confounded in one, which he has separated by infinite extremes; when sacred and eternal distinctions, which he has garnished with glory, are derided and set at nought, then, if ever, sin reddens to its "scarlet dye." The sin specified in the passage, is that of doing violence to the *nature* of a *man*—to his intrinsic value as a rational being. In the verse preceding the one under consideration, and in that which follows, the same principle is laid down. Verse 15, "He that smiteth his father or his mother shall surely be put to death." Verse. 17, "He that curseth his father or his mother, shall surely be put to death." If a Jew smote his neighbor, the law merely smote him in return; but if the blow was given to a *parent*, it struck the smiter dead. The parental relation is the *centre* of human society. God guards it with peculiar care. To violate that, is to violate all. Whoever tramples on that, shows that *no* relation has any sacredness in his eyes—that he is unfit to move among human relations who violates one so sacred and tender. Therefore, the Mosaic law uplifted his bleeding corpse, and brandished the ghastly terror around the parental relation to guard it from impious inroads.

Why such a difference in penalties, for the same act? Answer. 1. The relation violated was obvious—the distinction between parents and others self-evident, dictated by a law of nature. 2. The act was violence to nature—a suicide on constitutional susceptibilities. 3. The parental relation then, as now, was the focal point of the social system, and required powerful safeguards. "*Honor thy father and thy mother*," stands at the head of those commands which prescribe the duties of man to man; and throughout the Bible, the parental state is God's favorite illustration of his own relations to the human family. In this case, death was to be inflicted not for smiting a *man*, but a *parent*—a *distinction* made sacred by God, and fortified by a bulwark of defence. In the next verse, "He that stealeth a man," &c., the

SAME PRINCIPLE is wrought out in still stronger relief. The crime to be punished with death was not the taking of property from its owner, but violence to an *immortal nature*, the blotting out of a sacred *distinction*—making MEN "chattels."

The incessant pains taken in the Old Testament to separate human beings from brutes and things, shows God's regard for this, his own distinction. "In the beginning" he proclaimed it to the universe as it rose into being. Creation stood up at the instant of its birth, to do it homage. It paused in adoration while God ushered forth its crowning work. Why that dread pause and that creating arm held back in mid career and that high conference in the godhead? "Let us make man in OUR IMAGE after OUR LIKENESS, and let him have dominion over the fish of the sea, and over the fowl of the air, and over the cattle and over all the earth." Then while every living thing, with land, and sea, and firmament, and marshalled worlds, waited to swell the shout of morning stars—then God created man IN HIS OWN IMAGE; IN THE IMAGE OF GOD created he him." This solves the problem, IN THE IMAGE OF GOD, CREATED HE HIM. This distinction is often repeated and always with great solemnity. In Gen. i. 26-28, it is expressed in various forms. In Gen. v. 1, we find it again, "IN THE LIKENESS OF GOD MADE HE HIM." In Gen. ix. 6, again. After giving license to shed the blood of "every moving thing that liveth," it is added, "*Whoso sheddeth man's blood, by man shall his blood be shed, for IN THE IMAGE OF GOD MADE HE MAN.*" As though it had been said, "All these creatures are your property, designed for your use—they have the likeness of earth, and their spirits go downward; but this other being, MAN, has my own likeness: IN THE IMAGE OF GOD made I man; an intelligent, moral, immortal agent, invited to all that I can give and he can be. So in Lev. xxiv. 17, 18, 21, "He that killeth any MAN shall surely be put to death; and he that killeth a beast shall make it good, beast for beast; and he that killeth a MAN he shall be put to death." So in Ps. viii. 5, 6, we have an enumeration of particulars, each separating infinitely MEN from brutes and things! 1. "*Thou hast made him a little lower than the angels.*" Slavery drags him down among brutes. 2. "*And hast crowned him with glory and honor.*" Slavery tears off his crown, and puts on a yoke. 3. "*Thou madest him to have dominion^A OVER the works of thy hands.*" Slavery breaks his sceptre, and cast him down *among* those works—yea, *beneath* them. 4.

"*Thou hast put all things under his feet.*" Slavery puts HIM under the feet of an "owner." Who, but an impious scorner, dare thus strive with his Maker, and mutilate HIS IMAGE, and blaspheme the Holy One, who saith, "*Inasmuch as ye did it unto one of the least of these, ye did it unto ME.*"

A: "Thou madest him to have dominion." In Gen. i. 28, God says to man, "*Have dominion* over the fish of the sea, and over the fowl of the air and over every living thing that moveth upon the earth," thus vesting in *every* human being the right of ownership over the earth, its products and animal life, and in *each* human being the *same* right. By so doing God prohibited the exercise of ownership by man over *man*; for the grant to *all* men of *equal* ownership, for ever *shut* out the possibility of their exercising ownership over *each other*, as whoever is the owner of a *man*, is the owner of his *right of property*—in other words, when one man becomes the property of another his rights become such too, his *right of property* is transferred to his "owner," and thus as far as *himself* is concerned, is annihilated. Finally, by originally vesting *all* men with dominion or ownership over property, God proclaimed the *right of all* to exercise it, and pronounced every man who takes it away a robber of the highest grade. Such is every slaveholder.

In further prosecuting this inquiry, the Patriarchal and Mosaic systems will be considered together, as each reflects light upon the other, and as many regulations of the latter are mere *legal* forms of Divine institutions previously existing. As a *system*, the latter alone is of Divine authority. Whatever were the usages of the patriarchs God has not made them our exemplars.B The question to be settled by us, is not what were Jewish *customs*, but what were the rules that God gave for the regulation of those customs.

B: Those who insist that the patriarchs held slaves, and sit with such delight under their shadow, hymning the praises of "those good old slaveholders and patriarchs," might at small cost greatly augment their numbers. A single stanza celebrating patriarchal *concubinage*, winding off with a chorus in honor of patriarchal *drunkenness*, would be a trumpet-call, summoning from brothels, bush and brake, highway and hedge, and sheltering fence, a brotherhood of kindred affinities, each claiming Abraham or Noah as his

patron saint, and shouting, "My name is legion." A myriad choir and thunderous song!

Before entering upon an analysis of the condition of servants under these two states of society, we will consider the import of certain terms which describe the mode of procuring them.

IMPORT OF "BUY," AND "BOUGHT WITH MONEY."

As the Israelites were commanded to "buy" their servants, and as Abraham had servants "bought with money," it is argued that servants were articles of property! The sole ground for this belief is *the terms themselves!* How much might be saved, if in discussion, the thing to be proved were always *assumed!* To beg the question in debate, is vast economy of midnight oil, and a wholesale forestaller of wrinkles and gray hairs. Instead of protracted investigation into Scripture usage, painfully collating passages, to settle the meaning of terms, let every man interpret the oldest book in the world by the usages of his own time and place, and the work is done. And then instead of one revelation, they might be multiplied as the drops of the morning, and every man have an infallible clue to the mind of the Spirit, in the dialect of his own neighborhood! What a Babel-jargon, to take it for granted that the sense in which words are *now* used, is the *inspired* sense. David says, "I prevented the dawning of the morning, and cried." What, stop the earth in its revolution! Two hundred years ago, *prevent* was used in its strict Latin sense, to *come before*, or *anticipate*. It is always used in this sense in the Old and New Testaments. David's expression, in the English of the nineteenth century, would be "Before the dawning of the morning I cried." In almost every chapter of the Bible, words are used in a sense now nearly, or quite obsolete, and sometimes in a sense totally *opposite* to their present meaning. A few examples follow: "I purposed to come to you, but was *let* (hindered) hitherto." "And the four *beasts* (living ones) fell down and worshiped God,"—"Whosoever shall *offend* (cause to sin) one of these little ones,"—"Go out into the highways and *compel* (urge) them to come in,"—"Only let your *conversation* (habitual conduct) be as becometh the Gospel,"—"The Lord Jesus Christ who shall judge the *quick* (living) and the dead,"—"They that seek me *early* (earnestly) shall find me," So when tribulation or persecution ariseth *by-and-by* (immediately) they are

offended." Nothing is more mutable than language. Words, like bodies, are always throwing off some particles and absorbing others. So long as they are mere representatives, elected by the whims of universal suffrage, their meaning will be a perfect volatile, and to cork it up for the next century is an employment sufficiently silly (to speak within bounds) for a modern Bible-Dictionary maker. There never was a shallower conceit than that of establishing the sense attached to a word centuries ago, by showing what it means *now*. Pity that fashionable mantuamakers were not a little quicker at taking hints from some Doctors of Divinity. How easily they might save their pious customers all qualms of conscience about the weekly shiftings of fashion, by proving that the last importation of Parisian indecency now "showing off" on promenade, was the very style of dress in which the modest and pious Sarah kneaded cakes for the angels. Since such a fashion flaunts along Broadway *now*, it *must* have trailed over Canaan four thousand years ago!

The inference that the word *buy*, used to describe the procuring of servants, means procuring them as *chattels*, seems based upon the fallacy, that whatever *costs* money *is* money; that whatever or whoever you pay money *for*, is an article of property, and the fact of your paying for it, *proves* it property. 1. The children of Israel were required to purchase their firstborn from under the obligations of the priesthood, Num. xviii. 15, 16; iii. 45-51; Ex. xiii. 13; xxxiv. 20. This custom still exists among the Jews, and the word *buy* is still used to describe the transaction. Does this prove that their firstborn were or are, held as property? They were *bought* as really as were *servants*. 2. The Israelites were required to pay money for their own souls. This is called sometimes a ransom, sometimes an atonement. Were their souls therefore marketable commodities? 3. When the Israelites set apart themselves or their children to the Lord by vow, for the performance of some service, an express statute provided that a *price* should be set upon the "*persons*," and it prescribed the manner and *terms* of the "estimation" or valuation, by the payment of which, the persons might be *bought off* from the service vowed. The *price* for males from one month old to five years, was five shekels, for females, three; from five years old to twenty, for males, twenty shekels, for females, ten; from twenty years old to sixty, for males, fifty shekels, for females, thirty; above sixty years old, for males, fifteen shekels, for females, ten, Lev. xxvii. 2-8. What egregious folly to

contend that all these descriptions of persons were goods and chattels because they were *bought* and their *prices* regulated by law! 4. Bible saints *bought* their wives. Boaz bought Ruth. "Moreover Ruth the Moabitess, the wife of Mahlon, have I *purchased* (bought) to be my wife." Ruth iv. 10.^A Hosea bought his wife. "So I *bought* her to me for fifteen pieces of silver, and for an homer of Barley, and an half homer of barley." Hosea iii. 2. Jacob bought his wives Rachael and Leah, and not having money, paid for them in labor—seven years a piece. Gen. xxix. 15-23. Moses probably bought his wife in the same way, and paid for her by his labor, as the servant of her father.^B Exod. ii. 21. Shechem, when negotiating with Jacob and his sons for Dinah, says, "Ask me never so much dowry and gift, and I will give according as ye shall say unto me." Gen. xxxiv. 11, 12. David purchased Michael, and Othniel, Achsah, by performing perilous services for the fathers of the damsels. 1 Sam. xviii. 25-27; Judg. i. 12, 13. That the purchase of wives, either with money or by service, was the general practice, is plain from such passages as Ex. xxii. 17, and 1 Sam. xviii. 25. Among the modern Jews this usage exists, though now a mere form, there being no *real* purchase. Yet among their marriage ceremonies, is one called "marrying by the penny." The similarity in the methods of procuring wives and servants, in the terms employed in describing the transactions, and in the prices paid for each, are worthy of notice. The highest price of wives (virgins) and servants was the same. Comp. Deut. xxii. 28, 29, and Ex. xxii. 17, with Lev. xxvii. 2-8. The *medium* price of wives and servants was the same. Comp. Hos. iii. 2, with Ex. xxi. 32. Hosea seems to have paid one half in money and the other half in grain. Further, the Israelitish female bought-servants were wives, their husbands and masters being the same persons. Ex. xxi. 8, Judg. xix. 3, 27. If *buying* servants proves them property, buying wives proves *them* property. Why not contend that the wives of the ancient fathers of the faithful were their "chattels," and used as ready change at a pinch; and thence deduce the rights of modern husbands? Alas! Patriarchs and prophets are followed afar off! When will pious husbands live up to their Bible privileges, and become partakers with Old Testament worthies in the blessedness of a husband's rightful immunities! Refusing so to do, is questioning the morality of those "good old slaveholders and patriarchs, Abraham, Isaac, and Jacob."

A: In the verse preceding, Boaz says, "I have *bought* all that was Elimelech's * * * of the hand of Naomi." In the original, the same word (*kānā*) is used in both verses. In the 9th, "a parcel of land" is "bought," in the 10th a "wife" is "bought." If the Israelites had been as profound at inferences as our modern Commentators, they would have put such a fact as this to the rack till they had tortured out of it a divine warrant for holding their wives as property and speculating in the article whenever it happened to be scarce.

B: This custom still prevails in some eastern countries. The Crim Tartars, who are poor, serve an apprenticeship for their wives, during which they live under the same roof with them and at the close of it are adopted into the family.

This use of the word *buy*, is not peculiar to the Hebrew. In the Syriac, the common expression for "the espoused," is "the bought." Even so late as the 16th century, the common record of *marriages* in the old German Chronicles was, "A BOUGHT B."

The word translated *buy*, is, like other words, modified by the nature of the subject to which it is applied. Eve said, "I have *gotten* (bought) a man from the Lord." She named him Cain, that is *bought*. "He that heareth reproof, getteth (buyeth) understanding," Prov. xv. 32. So in Isa. xi. 11. "The Lord shall set his hand again to recover (to *buy*) the remnant of his people." So Ps. lxxviii. 54. "He brought them to his mountain which his right hand had *purchased*," (gotten.) Neh. v. 8. "We of our ability have *redeemed* (bought) our brethren the Jews, that were sold unto the heathen." Here "*bought*" is not applied to persons reduced to servitude, but to those taken *out* of it. Prov. viii. 22. "The Lord possessed (bought) me in the beginning of his way." Prov. xix. 8. "He that *getteth* (buyeth) wisdom loveth his own soul." Finally, to *buy* is a *secondary* meaning of the Hebrew word *kānā*.

Even at this day the word *buy* is used to describe the procuring of servants, where slavery is abolished. In the British West Indies, where slaves became apprentices in 1834, they are still, (1837,) "bought." This is the current word in West India newspapers. Ten years since servants were "*bought*" in New York, and still are in New Jersey, as really as in Virginia, yet the different senses in which the word is used in those states, puts no man in a

quandary. Under the system of legal *indenture* in Illinois, servants now are "bought."^A Until recently immigrants to this country were "bought" in great numbers. By voluntary contract they engaged to work a given time to pay for their passage. This class of persons, called "redemptioners," consisted at one time of thousands. Multitudes are "bought" *out* of slavery by themselves or others. Under the same roof with the writer is a "servant bought with money." A few weeks since, she was a slave; when "bought," she was a slave no longer. Alas! for our leading politicians if "buying" men makes them "chattels." The Whigs say, that Calhoun has been "bought" by the administration; and the other party, that Clay and Webster have been "bought" by the Bank. The histories of the revolution tell us that Benedict Arnold was "bought" by British gold, and that Williams, Paulding, and Van Wert, could not be "bought" by Major Andre. When a northern clergyman marries a rich southern widow, country gossip thus hits off the indecency, "The cotton bags *bought* him." Sir Robert Walpole said, "Every man has his price, and whoever will pay it, can *buy* him," and John Randolph said, "The northern delegation is in the market; give me money enough, and I can *buy* them." The temperance publications tell us that candidates for office *buy* men with whiskey; and the oracles of street tattle, that the court, district attorney, and jury, in the late trial of Robinson were *bought*, yet we have no floating visions of "chattels personal," man-auctions, or coffles.

^A: The following statute is now in force in the free state of Illinois—"No negro, mulatto, or Indian, shall at any time *purchase* any servant other than of their own complexion: and if any of the persons aforesaid shall presume to *purchase* a white servant, such servant shall immediately become free, and shall be so held, deemed and taken."

In Connecticut, town paupers are "bought" by individuals, who, for a stipulated sum become responsible to the town for their comfortable support for one year. If these "bought" persons perform any labor for those who "buy" them, it is wholly *voluntary*. It is hardly necessary to add that they are in no sense the "property" of their purchasers.^A

^A: "The select-men" of each town annually give notice, that at such a time and place, they will proceed to *sell* the poor of said town. The persons thus "sold" are "bought" by such persons, approved by the "select-men," as engage to furnish them with sufficient wholesome food, adequate clothing,

shelter, medicine, &c., for such a sum as the parties may agree upon. The Connecticut papers frequently contain advertisements like the following:

"NOTICE—The poor of the town of Chatham will be SOLD on the first Monday in April, 1837, at the house of F. Penfield, Esq., at 9 o'clock in the forenoon,"—[Middletown Sentinel, Feb. 3, 1837.]

The transaction between Joseph and the Egyptians gives a clue to the use of "buy" and "bought with money." Gen. xlvii. 18-26. The Egyptians proposed to Joseph to become servants. When the bargain was closed, Joseph said, "Behold I have *bought you* this day," and yet it is plain that neither party regarded the persons *bought* as articles of property, but merely as bound to labor on certain conditions, to pay for their support during the famine. The idea attached by both parties to "buy us," and "behold I have bought you," was merely that of service voluntarily offered, and secured by contract, in return, for *value received*, and not at all that the Egyptians were bereft of their personal ownership, and made articles of property. And this buying of *services* (in this case it was but one-fifth part) is called in Scripture usage, *buying the persons*. This case claims special notice, as it is the only one where the whole transaction of buying servants is detailed—the preliminaries, the process, the mutual acquiescence, and the permanent relation resulting therefrom. In all other instances, the mere fact is stated without particulars. In this case, the whole process is laid open. 1. The persons "bought," *sold themselves*, and of their own accord. 2. Paying for the permanent *service* of persons, or even a portion of it, is called "buying" those persons; just as paying for the *use* of land or houses for a number of years in succession is called in Scripture usage *buying* them. See Lev. xxv. 28, 33, and xxvii. 24. The objector, at the outset, takes it for granted, that servants were bought of *third* persons; and thence infers that they were articles of property. Both the alleged fact and the inference are *sheer assumptions*. No instance is recorded, under the Mosaic system, in which a *master sold his servant*.

That servants who were "bought," *sold themselves*, is a fair inference from various passages of Scripture.^A In Leviticus xxv. 47, the case of the Israelite, who became the servant of the stranger, the words are, "If he SELL HIMSELF unto the stranger." Yet the 51st verse informs us that this servant was "BOUGHT" and that the price of his purchase was paid to

himself. The *same word*, and the *same form* of the word, which, in verse 47, is rendered *sell himself*, is in verse 39 of the same chapter, rendered *be sold*; in Deut. xxviii. 68, the same word is rendered "be sold." "And there ye shall BE SOLD unto your enemies for bond-men and bond-women and NO MAN SHALL BUY YOU." How could they "*be sold*" without *being bought*? Our translation makes it nonsense. The word *Mākar* rendered "*be sold*" is used here in Hithpael conjugation, which is generally reflexive in its force, and like the middle voice in Greek, represents what an individual does for himself, and should manifestly have been rendered "ye shall *offer yourselves* for sale, and there shall be no purchaser." For a clue to Scripture usage on this point, see 1 Kings xxi. 20. 25.—"Thou hast *sold thyself* to work evil." "There was none like unto Ahab which did sell *himself* to work wickedness."—2 Kings xvii. 17. "They used divination and enchantments, and *sold themselves* to do evil."—Isa. l. 1. "For your iniquities have ye *sold yourselves*." Isa. lii. 3, "Ye have *sold yourselves* FOR NOUGHT, and ye shall be redeemed without money." See also, Jer. xxxiv. 14; Rom. vii. 14, vi. 16; John, viii. 34, and the case of Joseph and the Egyptians, already quoted. In the purchase of wives, though spoken of rarely, it is generally stated that they were bought of *third* persons. If *servants* were bought of third persons, it is strange that no *instance* of it is on record.

A: Those who insist that the servants which the Israelites were commanded to buy of "the heathen which were round about" them, were to be bought of *third persons*, virtually charge God with the inconsistency of recognizing and affirming the right of those very persons to freedom, upon whom, say they, he pronounced the doom of slavery. For they tell us, that the sentence of death uttered against those heathen was commuted into slavery, which punishment God denounced against them. Now if "the heathen round about" were doomed to slavery, the *sellers* were doomed as well as the *sold*. Where, we ask, did the sellers get their right to sell? God by commanding the Israelites to BUY, affirmed the right of *somebody* to *sell*, and that the *ownership* of what was sold existed *somewhere*; which *right* and ownership he commanded them to *recognize* and *respect*. We repeat the question, where did the heathen *sellers* get their right to sell, since *they* were dispossessed of their right to *themselves* and doomed to slavery equally with those whom they sold. Did God's decree vest in them a right to *others* while it annulled their right to *themselves*? If, as the objector's argument

assumes, one part of "the heathen round about" were *already* held as slaves by the other part, *such* of course were not *doomed* to slavery, for they were already slaves. So also, if those heathen who held them as slaves had a *right* to hold them, which right God commanded the Israelites to *buy out*, thus requiring them to recognize *it* as a *right*, and on no account to procure its transfer to themselves without paying to the holders an equivalent, surely, these *slaveholders* were not doomed by God to be slaves, for according to the objector, God had himself affirmed their right *to hold others as slaves*, and commanded his people to respect it.

We now proceed to inquire into the *condition* of servants under the patriarchal and Mosaic systems.

I. THE RIGHTS AND PRIVILEGES OF SERVANTS.

The leading design of the laws defining the relations of master and servant, was the good of both parties—more especially the good of the *servants*. While the master's interests were guarded from injury, those of the servants were *promoted*. These laws made a merciful provision for the poorer classes, both of the Israelites and Strangers, not laying on burdens, but lightening them—they were a grant of *privileges* and *favors*.

I. BUYING SERVANTS WAS REGARDED AS A KINDNESS TO THE PERSONS BOUGHT, and as establishing between them and their purchasers a bond of affection and confidence. This is plain from the frequent use of it to illustrate the love and care of God for his chosen people. Deut. xxxii. 6; Ex. xv. 16; Ps. lxxiv. 2; Prov. viii. 22.

II. NO STRANGER COULD JOIN THE FAMILY OF AN ISRAELITE WITHOUT BECOMING A PROSELYTE. Compliance with this condition was the *price of the privilege*. Gen. xvii. 9-14, 23, 27. In other words, to become a servant was virtually to become an Israelite.^{[A](#)} In the light of this fact, look at the relation sustained by a proselyted servant to his master. Was it a sentence consigning to *punishment*, or a ticket of admission to *privileges*?

^{[A](#)}: The rites by which a stranger became a proselyte transformed him into a Jew. Compare 1 Chron. ii. 17, with 2 Sam. xvii. 25. In Esther viii. 17, it is

said "Many of the people of the land *became Jews*." In the Septuagint, the passage is thus rendered, "Many of the heathen were circumcised and became Jews." The intimate union and incorporation of the proselytes with the Hebrews is shown by such passages as Isa. lvi. 6, 7, 8; Eph. ii. 11, 22; Num. x. 29-32. Calmet, Art. Proselyte, says "They were admitted to all the prerogatives of the people of the Lord." Mahommed doubtless borrowed from the laws and usages of the Jews, his well known regulation for admitting to all civil and religious privileges, all proselytes of whatever nation or religion.

III. EXPULSION FROM THE FAMILY WAS THE DEPRIVATION OF A PRIVILEGE IF NOT A PUNISHMENT. When Sarah took umbrage at the conduct of Hagar and Ishmael, her servants, "She said unto Abraham *cast out* this bond-woman and her son." * * And Abraham rose up early in the morning and took bread and a bottle of water and gave it unto Hagar and the child, and *sent her away*. Gen. xxi. 10, 14; in Luke xvi. 1-8, our Lord tells us of the steward or head-servant of a rich man who defrauded his master, and was, in consequence, excluded from his household. The servant anticipating such a punishment, says, "I am resolved what to do, that when I am *put out* of the stewardship, they may receive me into their houses." The case of Gehazi, the servant of Elisha, appears to be a similar one. He was guilty of fraud in procuring a large sum of money from Naaman, and of deliberate lying to his master, on account of which Elisha seems to have discarded him. 2 Kings v. 20-27. In this connection we may add that if a servant neglected the observance of any ceremonial rite, and was on that account excommunicated from the congregation of Israel, such excommunication excluded him also from the *family* of an Israelite. In other words he could be a *servant* no longer than he was an *Israelite*. To forfeit the latter *distinction* involved the forfeiture of the former *privilege*—which proves that it *was* a privilege.

IV. THE HEBREW SERVANT COULD COMPEL HIS MASTER TO KEEP HIM.

When the six years' contract had expired, if the servant *demand*ed it, the law *obliged* the master to retain him permanently, however little he might need his services. Deut. xv. 12-17; Ex. xxi. 2-6. This shows that the system was

framed to advance the interest and gratify the wishes of the servant quite as much as those of the master.

V. SERVANTS WERE ADMITTED INTO COVENANT WITH GOD. Deut. xxix. 10-13.

VI. THEY WERE GUESTS AT ALL NATIONAL AND FAMILY FESTIVALS Ex. xii. 43-44; Deut xii. 12, 18, xvi. 10-16.

VII. THEY WERE STATEDLY INSTRUCTED IN MORALITY AND RELIGION. Deut. xxxi. 10-13; Josh. viii. 33-35; 2 Chron. xvii. 8-9, xxxv. 3, and xxxiv. 30. Neh. viii. 7, 8.

VIII. THEY WERE RELEASED FROM THEIR REGULAR LABOR NEARLY ONE HALF OF THE WHOLE TIME. During which they had their entire support, and the same instruction that was provided for the other members of the Hebrew community. The Law secured to them,

1. *Every seventh year*; Lev. xxv. 3-6; thus giving to those who were servants during the entire period between the jubilees, *eight whole years*, (including the jubilee year,) of unbroken rest.

2. *Every seventh day*. This in forty-two years, the eight being subtracted from the fifty, would amount to just *six years*.

3. *The three annual festivals*. Ex. xxiii. 17, xxxiv. 23. The *Passover*, which commenced on the 15th of the 1st month, and lasted seven days, Deut. xvi. 3, 8. The *Pentecost*, or *Feast of Weeks*, which began on the 6th day of the 3d month, and lasted seven days. Deut. xvi. 10, 11. The *Feast of Tabernacles*, which commenced on the 15th of the 7th month, and lasted eight days. Deut. xvi. 13, 15; Lev. xxiii. 34-39. As all met in one place, much time would be spent on the journey. Cumbered caravans move slowly. After their arrival, a day or two would be requisite for divers preparations before the celebration, besides some time at the close of it, in preparations for return. If we assign three weeks to each festival—including the time spent on the journeys, and the delays before and after the celebration, together with the *festival week*, it will be a small allowance for the cessation of their regular labor. As there were three festivals in the year, the main body of the servants would be absent from their stated employments at least

nine weeks annually, which would amount in forty-two years, subtracting the sabbaths, to six years and eighty-four days.

4. *The new moons*. The Jewish year had twelve; Josephus says that the Jews always kept *two* days for the new moon. See Calmet on the Jewish Calendar, and Horne's Introduction; also 1 Sam. xx, 18, 19, 27. This, in forty-two years, would be two years 280 days.

5. *The feast of trumpets*. On the first day of the seventh month, and of the civil year. Lev. xxiii. 24, 25.

6. *The atonement day*. On the tenth of the seventh month Lev. xxiii. 27.

These two feasts would consume not less than sixty-five days not reckoned above.

Thus it appears that those who continued servants during the period between the jubilees, were by law released from their labor, TWENTY-THREE YEARS AND SIXTY-FOUR DAYS, OUT OF FIFTY YEARS, and those who remained a less time, in nearly the same proportion. In this calculation, besides making a donation of all the *fractions* to the objector, we have left out those numerous *local* festivals to which frequent allusion is made, Judg. xxi. 19; 1 Sam. ix. 12. 22. etc., and the various *family* festivals, such as at the weaning of children; at marriages; at sheep shearings; at circumcisions; at the making of covenants, &c., to which reference is often made, as in 1 Sam, xx. 6. 28, 29. Neither have we included the festivals instituted at a later period of the Jewish history—the feast of Purim, Esth. ix. 28, 29; and of the Dedication, which lasted eight days. John x. 22; 1 Mac. iv. 59.

Finally, the Mosaic system secured to servants, an amount of time which, if distributed, would be almost ONE HALF OF THE DAYS IN EACH YEAR. Meanwhile, they were supported, and furnished with opportunities of instruction. If this time were distributed over *every day*, the servants would have to themselves nearly *one half of each day*.

The service of those Strangers who were *national* servants or tributaries, was regulated upon the same benevolent principle, and secured to them TWO-THIRDS of the whole year. "A month they were in Lebanon, and two months they were at home." 1 Kings, v. 13-15. Compared with 2 Chron. 11.

17-19, viii. 7-9; 1 Kings, ix 20. 22. The regulations under which the inhabitants of Gibeon, Chephirah, Beeroth and Kirjath-jearim, (afterwards called *Nethinims*) performed service for the Israelites, must have secured to them nearly the whole of their time. If, as is probable, they served in courses corresponding to those of their priests whom they assisted, they were in actual service less than one month annually.

IX. THE SERVANT WAS PROTECTED BY LAW EQUALLY WITH THE OTHER MEMBERS OF THE COMMUNITY

Proof.—"Judge righteously between every man and his brother and THE STRANGER THAT IS WITH HIM." "Ye shall not RESPECT PERSONS in judgment, but ye shall hear the SMALL as well as the great." Deut. i. 16, 19. Also Lev. xix. 15. xxiv. 22. "Ye shall have one manner of law as well for the STRANGER, as for one of your own country." So Num. xv. 29. "Ye shall have ONE LAW for him that sinneth through ignorance, both for him that is born among the children of Israel and for the STRANGER that sojourneth among them." Deut. xxvii. 19. "Cursed be he that PERVERTETH THE JUDGMENT OF THE STRANGER."^A Deut. xxvii. 19.

^A: In a work entitled, "Instruction in the Mosaic Religion" by Professor Jholson, of the Jewish seminary at Frankfort-on-the-Main, translated into English by Rabbi Leeser, we find the following.—Sec. 165.

"Question. Does holy writ any where make a difference between the Israelite and the other who is no Israelite, in those laws and prohibitions which forbid us the *committal of any thing against our fellow men*?"

"Answer. No where we do find a trace of such a difference. See Lev. xix. 33-36."

"God says thou shalt not murder, *steal*, cheat, &c. In every place the action *itself* is prohibited as being an abomination to God *without respect to the persons against whom it is committed*."

X. THE MOSAIC SYSTEM ENJOINED THE GREATEST AFFECTION AND KINDNESS TOWARDS SERVANTS, FOREIGN AS WELL AS JEWISH.

"The stranger that dwelleth with you shall be unto you as one born among you, and thou shalt love him as thyself." Lev. xix. 34. "For the Lord your God * * REGARDETH NOT PERSONS. He doth execute the judgment of the fatherless and widow, and LOVETH THE STRANGER, in giving him food and raiment, LOVE YE THEREFORE THE STRANGER." Deut. x. 17, 19. "Thou shalt neither vex a STRANGER nor oppress him." Ex. xxii. 21. "Thou shalt not oppress a STRANGER, for ye know the heart of a stranger." Ex. xxiii. 9. "If thy brother be waxen poor thou shalt relieve him, yea, though he be a STRANGER or a sojourner, that he may live with thee, take thou no usury of him or increase, but fear thy God." Lev. xxv. 35, 36. Could this same stranger be taken by one that feared his God, and held as a slave, and robbed of time, earnings, and all his rights?

XI. SERVANTS WERE PLACED UPON A LEVEL WITH THEIR MASTERS IN ALL CIVIL AND RELIGIOUS RIGHTS. Num. xv. 15, 16, 29; ix. 14; Deut. i. 16, 17; Lev. xxiv. 22. To these may be added that numerous class of passages which represents God as regarding *alike* the natural rights of *all* men, and making for all an *equal* provision. Such as, 2 Chron. xix. 7; Prov. xxiv. 23, xxviii. 21; Job. xxxiv. 19, 2 Sam. xiv. 14; Acts x. 35; Eph. vi. 9.

Finally—With such watchful jealousy did the Mosaic Institutes guard the *rights* of servants, as to make the mere fact of a servant's escape from his master presumptive evidence that his master had *oppressed* him; and on that presumption, annulled his master's authority over him, gave him license to go wherever he pleased, and commanded all to protect him. Deut. xxiii. 15, 16. As this regulation will be examined under a subsequent head, where its full discussion more appropriately belongs, we notice it here merely to point out its bearings on the topic under consideration.

THESE ARE REGULATIONS OF THAT MOSAIC SYSTEM WHICH IS CLAIMED BY SLAVEHOLDERS AS THE PROTOTYPE OF AMERICAN SLAVERY.

II. WERE PERSONS MADE SERVANTS AGAINST THEIR WILLS?

We argue that they became servants of *their own accord*, because,

I. TO BECOME A SERVANT WAS TO BECOME A PROSELYTE. Whoever of the strangers became a servant, he was required to abjure idolatry, to enter into covenant with God^A, be circumcised in token of it, be bound to keep the Sabbath, the Passover, the Pentecost, and the Feast of Tabernacles, and to receive instruction in the moral and ceremonial law. Were the servants *forced* through all these processes? Was the renunciation of idolatry *compulsory*? Were they *dragged* into covenant with God? Were they seized and circumcised by *main strength*? Were they *compelled* mechanically to chew and swallow the flesh of the Paschal lamb, while they abhorred the institution, spurned the laws that enjoined it, detested its author and its executors, and instead of rejoicing in the deliverance which it commemorated, bewailed it as a calamity, and cursed the day of its consummation? Were they *driven* from all parts of the land three times in the year to the annual festivals? Were they drugged with instruction which they nauseated? Were they goaded through a round of ceremonies, to them senseless and disgusting mummeries; and drilled into the tactics of a creed rank with loathed abominations? We repeat it, to become a *servant*, was to become a *proselyte*. Did God authorize his people to make proselytes at the point of the bayonet? by the terror of pains and penalties? by converting men into *merchandise*? Were *proselyte* and *chattel* synonymes in the Divine vocabulary? Must a man be sunk to a *thing* before taken into covenant with God? Was this the stipulated condition of adoption? the sure and sacred passport to the communion of the saints?

^A: Maimonides, a contemporary with Jarchi, and who stands with him at the head of Jewish writers, gives the following testimony on this point:

"Whether a servant be born in the power of an Israelite, or whether he be purchased from the heathen, the master is to bring them both into the covenant.

"But he that is in the *house* is entered on the eighth day, and he that is bought with money, on the day on which his master receives him, unless the slave be *unwilling*. For if the master receive a grown slave, and he be *unwilling*, his master is to bear with him, to seek to win him over by instruction, and by love and kindness, for one year. After which, should he *refuse* so long, it is forbidden to keep him longer than a year. And the master must send him back to the strangers from whence he came. For the

God of Jacob will not accept any other than the worship of a *willing* heart."—Maimon, Hilcoth Miloth, Chap. 1, Sec. 8.

The ancient Jewish Doctors assert that the servant from the Strangers who at the close of his probationary year, refused to adopt the Jewish religion and was on that account sent back to his own people, received a *full compensation* for his services, besides the payment of his expenses. But that *postponement* of the circumcision of the foreign servant for a year (*or even at all* after he had entered the family of an Israelite) of which the Mishnic doctors speak, seems to have been a *mere usage*. We find nothing of it in the regulations of the Mosaic system. Circumcision was manifestly a rite strictly *initiatory*. Whether it was a rite merely *national* or *spiritual*, or *both*, comes not within the scope of this inquiry.

II. THE SURRENDER OF FUGITIVE SERVANTS TO THEIR MASTERS WAS PROHIBITED. "Thou shalt not deliver unto his master the servant which is escaped from his master unto thee. He shall dwell with thee, even among you, in that place which he shall choose, in one of thy gates where it liketh him best; thou shalt not oppress him." Deut. xxiii. 15, 16.

As though God had said, "To deliver him up would be to recognize the *right* of the master to hold him; his *fleeing* shows his *choice*, proclaims his wrongs and his title to protection; you shall not force him back and thus recognize the *right* of the master to hold him in such a condition as induces him to flee to others for protection." It may be said that this command referred only to the servants of *heathen* masters in the surrounding nations. We answer: the terms of the command are unlimited. But the objection, if valid, would merely shift the pressure of the difficulty to another point. Did God require them to protect the *free choice* of a *single* servant from the heathen, and yet *authorize* the same persons, to crush the free choice of *thousands* of servants from the heathen? Suppose a case. A *foreign* servant escapes to the Israelites; God says, "He shall dwell with thee, in that place which *he shall choose*, in one of thy gates where it *liketh him* best." Now, suppose this same servant, instead of coming into Israel of his own accord, had been *dragged* in by some kidnapper, who bought him of his master, and forced him into a condition against his will; would He who forbade such treatment of the stranger, who *voluntarily* came into the land, sanction the same treatment of the *same person*, provided in addition to this last outrage,

the previous one had been committed of forcing him into the nation against his will? To commit violence on the free choice of a foreign servant is forsooth a horrible enormity, provided you *begin* the violence *after* he has come among you. But if you commit the first act on the *other side of the line*; if you begin the outrage by buying him from a third person against his will, and then tear him from home, drag him across the line into the land of Israel, and hold him as a slave—ah! that alters the case, and you may perpetrate the violence now with impunity! Would *greater* favor have been shown to this new comer than to the old residents—those who had been servants in Jewish families perhaps for a generation? Were the Israelites commanded to exercise towards *him*, uncircumcised and out of the covenant, a justice and kindness denied to the multitudes who *were* circumcised, and *within* the covenant? But, the objector finds small gain to his argument on the supposition that the covenant respected merely the fugitives from the surrounding nations, while it left the servants of the Israelites in a condition against their wills. In that case, the surrounding nations would adopt retaliatory measures, and become so many asylums for Jewish fugitives. As these nations were not only on every side of them, but in their midst, such a proclamation would have been an effectual lure to men whose condition was a constant counteraction of will. Besides the same command which protected the servant from the power of his foreign *master*, protected him equally from the power of an *Israelite*. It was not, merely "Thou shalt not deliver him unto his *master*," but "he shall dwell with thee, in that place which *he shall choose* in one of thy gates where it liketh *him* best." Every Israelite was forbidden to put him in any condition *against his will*. What was this but a proclamation, that all who *chose* to live in the land and obey the laws, were left to their own free will, to dispose of their services at such a rate, to such persons, and in such places as they pleased? Besides, grant that this command prohibited the sending back of *foreign* servants only, there was no law requiring the return of servants who had escaped from the *Israelites*. *Property* lost, and *cattle* escaped, they were required to return, but not escaped *servants*. These verses contain, 1st, a command, "Thou shalt not deliver," &c., 2d. a declaration of the fugitive's right of *free choice*, and of God's will that he should exercise it at his own discretion; and 3d, a command guarding this right, namely, "Thou shalt not oppress him," as though God had said, "If you restrain him from exercising

his *own choice*, as to the place and condition of his residence, it is *oppression*, and shall not be tolerated."A

A: Perhaps it may be objected that this view of Deut. xxiii. 15, 16, makes nonsense of Ex. xxi. 27, which provides that if a man strikes out his servant's tooth he shall let him go free. Small favor indeed if the servant might set himself free whenever he pleased! Answer—The former passage might remove the servant from the master's *authority*, without annulling the master's legal claims upon the servant, if he had paid him in advance and had not received from him an equivalent, and this equally, whether his master were a Jew or a Gentile. The latter passage, "He shall let him go free *for his tooth's sake*," not only freed the servant from the master's authority, but also from any pecuniary claim which the master might have on account of having paid his wages in advance; and this *as a compensation*, for the loss of a tooth.

III. THE SERVANTS HAD PECULIAR OPPORTUNITIES AND FACILITIES FOR ESCAPE. Three times every year, all the males over twelve years, were required to attend the national feasts. They were thus absent from their homes not less than three weeks at each time, making nine weeks annually. As these caravans moved over the country, were there military scouts lining the way, to intercept deserters?—a corporal's guard at each pass of the mountains, sentinels pacing the hilltops, and light-horse scouring the defiles? The Israelites must have had some safe contrivance for taking their "*slaves*" three times in a year to Jerusalem and back. When a body of slaves is moved any distance in our *republic*, they are handcuffed and chained together, to keep them from running away, or beating their drivers' brains out. Was this the *Mosaic* plan, or an improvement introduced by Samuel, or was it left for the wisdom of Solomon? The usage, doubtless, claims a paternity not less venerable and biblical! Perhaps they were lashed upon camels, and transported in bundles, or caged up and trundled on wheels to and fro, and while at the Holy City, "lodged in jail for safe keeping," the Sanhedrim appointing special religious services for their benefit, and their "drivers" officiating at "ORAL instruction." Meanwhile, what became of the sturdy *handmaids* left at home? What hindered them from stalking off in a body? Perhaps the Israelitish matrons stood sentry in rotation round the kitchens, while the young ladies scoured the country, as

mounted rangers, picking up stragglers by day, and patrolled the streets, keeping a sharp look-out at night!

IV. WILFUL NEGLECT OF CEREMONIAL RITES DISSOLVED THE RELATION.

Suppose the servants from the heathen had, upon entering Jewish families, refused circumcision; if *slaves*, how simple the process of emancipation! Their *refusal* did the job. Or, suppose they had refused to attend the annual feasts, or had eaten leavened bread during the Passover, or compounded the ingredients of the anointing oil, or had touched a dead body, a bone, or a grave, or in any way had contracted ceremonial uncleanness, and refused to be cleansed with the "water of separation," they would have been "cut off from the people;" *excommunicated*. Ex. xii. 19; xxx. 33; Num. xix. 16.

V. SERVANTS OF THE PATRIARCHS NECESSARILY VOLUNTARY.

Abraham's servants are an illustration. At one time he had three hundred and eighteen *young men* "born in his house," and many more *not* born in his house. His servants of all ages were probably MANY THOUSANDS. How did Abraham and Sarah contrive to hold fast so many thousand servants against their wills? The most natural supposition is that the Patriarch and his wife "took turns" in surrounding them! The neighboring tribes, instead of constituting a picket guard to hem in his servants, would have been far more likely to sweep them and him into captivity, as they did Lot and his household. Besides, there was neither "constitution" nor "compact," to send back Abraham's fugitives, nor a truckling police to pounce upon them, nor gentlemen-kidnappers, suing for his patronage, volunteering to howl on their track, boasting their blood-hound scent, and pledging their honour to hunt down and deliver up, provided they had a description of the "flesh-marks," and were suitably stimulated by pieces of silver.^A Abraham seems also to have been sadly deficient in all the auxiliaries of family government, such as stocks, hand-cuffs, foot-chains, yokes, gags, and thumb-screws. His destitution of these patriarchal indispensables is the more afflicting, since he faithfully trained "his household to do justice and judgment," though so deplorably destitute of the needful aids.

^A: The following is a standing newspaper advertisement of one of these professional man-catchers, a member of the New York bar, who coolly plies

his trade in the commercial emporium, sustained by the complacent greetings and courtesies of "HONORABLE MEN!"

"IMPORTANT TO THE SOUTH.—F.H. Pettis, native of Orange County, Va., being located in the city of New York, in the practice of law, announces to his friends and the public in general, that he has been engaged as Counsel and Adviser in General for a party whose business it is in the northern cities to arrest and secure runaway slaves. He has been thus engaged for several years, and as the act of Congress alone governs now in this city, in business of this sort, which renders it easy for the recovery of such property, he invites post paid communications to him, inclosing a fee of \$20 in each case, and a power of Attorney minutely descriptive of the party absconded, and if in the northern region, he, or she will soon be had.

"Mr. Pettis will attend promptly to all law business confided to him.

"N.B. New York City is estimated to contain 5,000 Runaway Slaves.

"PETTIS."

Probably Job had even more servants than Abraham. See Job. i. 3, 14-19, and xlii. 12. That his thousands of servants staid with him entirely of their own accord, is proved by the *fact* of their staying with him. Suppose they had wished to quit his service, and so the whole army had filed off before him in full retreat, how could the patriarch have brought them to halt? Doubtless with his wife, seven sons, and three daughters for allies, he would have soon out-flanked the fugitive host and dragged each of them back to his wonted chain and staple.

But the impossibility of Job's servants being held against their wills, is not the only proof of their voluntary condition. We have his own explicit testimony that he had not "withheld from the poor their *desire*." Job. xxxi. 16. Of course he could hardly have made them live with him, and forced them to work for him against *their desire*.

When Isaac sojourned in the country of the Philistines he "had *great store* of servants." And we have his testimony that the Philistines hated him, added to that of inspiration that they "envied" him. Of course they would hardly volunteer to organize patrols and committees of vigilance to keep his servants from running away, and to drive back all who were found

beyond the limits of his plantation without a "pass!" If the thousands of Isaac's servants were held against their wills, who held them?

The servants of the Jews, during the building of the wall of Jerusalem, under Nehemiah, may be included under this head. That they remained with their masters of their own accord, we argue from the fact, that the circumstances of the Jews made it impossible for them to *compel* their residence and service. They were few in number, without resources, defensive fortifications, or munitions of war, and surrounded withal by a host of foes, scoffing at their feebleness and inviting desertion from their ranks. Yet so far from the Jews attempting in any way to restrain their servants, or resorting to precautions to prevent escape, they put arms into their hands, and enrolled them as a night-guard, for the defence of the city. By cheerfully engaging in this service and in labor by day, when with entire ease they might all have left their masters, marched over to the enemy, and been received with shoutings, the servants testified that their condition was one of *their own choice*, and that they regarded their own interests as inseparably identified with those of their masters. Neh. iv. 23.

VI. NO INSTANCES OF ISRAELITISH MASTERS SELLING SERVANTS. Neither Abraham nor Isaac seem ever to have sold one, though they had "great store of servants." Jacob was himself a servant in the family of Laban twenty-one years. He had afterward a large number of servants. Joseph invited him to come into Egypt, and to bring all that he had with him—"thou and thy children, and thy children's children, and thy flocks and thy herds, and ALL THAT THOU HAST." Gen. xlv. 10. Jacob took his flocks and herds but *no servants*. Yet we are told that Jacob "took his journey with *all that he had*." Gen. xlv. 1. And after his arrival in Egypt, Joseph said to Pharaoh "my father, and my brethren, and their flocks, and their herds and *all that they have*, are come." Gen. xlvii. 1. The servants doubtless, served under their *own contracts*, and when Jacob went into Egypt, they *chose* to stay in their own country.

The government might sell *thieves*, if they had no property, until their services had made good the injury, and paid the legal fine. Ex. xxii. 3. But *masters* seem to have had no power to sell their *servants*. To give the master a *right* to sell his servant, would annihilate the servant's right of choice in his own disposal; but says the objector, "to give the master a right to *buy* a

servant, equally annihilates the servant's *right of choice*." Answer. It is one thing to have a right to buy a man, and a quite another thing to have a right to buy him of *another* man.^A

^A: There is no evidence that masters had the power to dispose of even the *services* of their servants, as men hire out their laborers whom they employ by the year; but whether they had or not, affects not the argument.

Though servants were not bought of their masters, yet young females were bought of their *fathers*. But their purchase as *servants* was their betrothal as WIVES. Ex. xxi. 7, 8. "If a man sell his daughter to be a maid-servant, she shall not go out as the men-servants do. If she please not her master WHO HATH BETROTHED HER TO HIMSELF, he shall let her be redeemed."^B

^B: The comment of Maimonides on this passage is as follows:—"A Hebrew handmaid might not be sold but to one who laid himself under obligations, to espouse her to himself or to his son, when she was fit to be betrothed."—*Maimonides—Hilcoth—Obedim*, Ch. IV. Sec. XI. Jarchi, on the same passage, says, "He is bound to espouse her to be his wife, for the *money of her purchase* is the money of her *espousal*."

VII. VOLUNTARY SERVANTS FROM THE STRANGERS.

We infer that *all* the servants from the Strangers were voluntary in becoming such, since we have direct testimony that some of them were so. "Thou shalt not oppress an hired servant that is poor and needy, whether he be of thy brethren, OR OF THY STRANGERS that are in thy land within thy gates." Deut. xxiv. 14. We learn from this that some of the servants, which the Israelites obtained from the strangers were procured by presenting the inducement of *wages* to their *free choice*, thus recognizing their right to sell their services to others, or not, at their own pleasure. Did the Israelites, when they went among the heathen to procure servants, take money in one hand and ropes in the other? Did they *ask* one man to engage in their service, and *drag* along with them the next that they met, in spite of his struggles. Did they knock for admission at one door and break down the next? Did they go through one village with friendly salutations and respectful demeanor, and with the air of those soliciting favors, offer wages to the inhabitants as an inducement to engage in their service—while they sent on their agents to prowl through the next, with a kidnapping posse at

their heels, to tear from their homes as many as they could get within their clutches?

VIII. HEBREW SERVANTS VOLUNTARY.

We infer that the Hebrew servant was voluntary in COMMENCING his service, because he was preeminently so IN CONTINUING it. If, at the year of release, it was the servant's *choice* to remain with his master, the law required his ear to be bored by the judges of the land, thus making it impossible for him to be held against his will. Yea more, his master was *compelled* to keep him, however much he might wish to get rid of him.

IX. THE MANNER OF PROCURING SERVANTS, AN APPEAL TO CHOICE.

The Israelites were commanded to offer them a suitable inducement, and then leave them to decide. They might neither seize them by *force*, nor frighten them by *threats*, nor wheedle them by false pretences, nor *borrow* them, nor *beg* them; but they were commanded to BUY them^A—that is, they were to recognize the *right* of the individuals to *dispose* of their own services, and their right to *refuse all offers*, and thus oblige those who made them, *to do their own work*. Suppose all, with one accord, had *refused* to become servants, what provision did the Mosaic law make for such an emergency? NONE.

^A: The case of thieves, whose services were sold until they had earned enough to make restitution to the person wronged, and to pay the legal penalty, *stands by itself*, and has nothing to do with the condition of servants.

X. INCIDENTAL CORROBORATIVES. Various incidental expressions corroborate the idea that servants became such by their own contract. Job. xli. 4, is an illustration, "Will he (Leviathan) make a COVENANT with thee? wilt thou take him for a SERVANT forever?" Isa. xiv. 1, 2 is also an illustration. "The strangers shall be joined with them (the Israelites) and *they shall CLEAVE* to the house of Jacob, and the house of Israel shall possess them in the land of the Lord, for servants and handmaids."

The transaction which made the Egyptians the SERVANTS OF PHARAOH was voluntary throughout. See Gen. xlvii. 18-26. Of their own accord they came to Joseph and said, "There is not aught left but our *bodies* and our lands; *buy* us;" then in the 25th verse, "We will be Pharaoh's servants." To these it may be added, that the sacrifices and offerings which ALL were required to present, were to be made VOLUNTARILY. Lev. i. 2. 3.

The pertinence and point of our Lord's declaration in Luke xvi. 13, is destroyed on the supposition that servants did not become such by *their own choice*. "No servant can serve two masters: for either he will hate the one and love the other, or else he will hold to the one and despise the other." Let it be kept in mind, that our Lord was a *Jew*. The lost sheep of the house of Israel were his flock. Wherever he went, they were around him: whenever he spake, they were his auditors. His public preaching and his private teaching and conversation, were full of references to their own institutions, laws and usages, and of illustrations drawn from them. In the verse quoted, he illustrates the impossibility of their making choice of God as their portion, and becoming his servants, while they chose the world, and were *its* servants. To make this clear, he refers to one of their own institutions, that of *domestic service*, with which, in all its relations, incidents and usages, they were perfectly familiar. He reminds them of the well-known impossibility of any person being the servant of two masters, and declares the sole ground of that impossibility to be, the fact that the servant *chooses* the service of the one, and *spurns* that of the other. "He shall *hold to* the one and *despise* (reject) the other." As though our Lord had said, "No one can become the servant of another, when his will revolts from his service, and when the conditions of it tend to make him hate the man." Since the fact that the servant *spurns* one of two masters, makes it impossible for him to serve *that one*, if he spurned *both* it would make it impossible for him to serve *either*. So, also, if the fact that an individual did not "hold to" or choose the service of another, proves that he could not become his servant, then the question, whether or not he should become the servant of another was suspended on *his own will*. Further, the phraseology of the passage shows that the *choice* of the servant decided the question. "He will HOLD TO the one,"—hence there is no difficulty in the way of his serving *him*; but "no servant can serve" a master whom he does not "*hold*

to," or *cleave* to, whose service he does not *choose*. This is the sole ground of the impossibility asserted by our Lord.

The last clause of the verse furnishes an application of the principle asserted in the former part, "Ye cannot serve God and mammon." Now in what does the impossibility of serving both God and the world consist? Solely in the fact that the will which chooses the one refuses the other, and the affections which "hold to" the one, reject the other. Thus the question, Which of the two is to be served, is suspended alone upon the *choice* of the individual.

XI. RICH STRANGERS DID NOT BECOME SERVANTS. Indeed, so far were they from becoming servants themselves, that they bought and held Jewish servants. Lev. xxv. 47. Since *rich* strangers did not become servants to the Israelites, we infer that those who *did*, became such not because they were *strangers*, but because they were *poor*,—not because, on account of their being heathen, they were *compelled by force* to become servants, but because, on account of their *poverty*, they *chose* to become servants to better their condition.

XII. INSTANCES OF VOLUNTARY SERVANTS. Mention is often made of persons becoming servants who were manifestly VOLUNTARY. As the Prophet Elisha. 1 Kings xix. 21; 2 Kings iii. 11. Elijah was his *master*. 2 Kings ii. 5. The word translated master, is the same that is so rendered in almost every instance where masters are spoken of under the Mosaic and patriarchal systems. Moses was the servant of Jethro. Ex. iii. 1; iv. 10. Joshua was the servant of Moses. Ex. xxxiii. 11. Num. xi. 28. Jacob was the servant of Laban. Gen. xxix. 18-27. See also the case of the Gibeonites who *voluntarily* became servants to the Israelites and afterwards performed service for the "house of God" throughout the subsequent Jewish history, were incorporate with the Israelites, registered in the genealogies, and manifestly of their own accord remained with them, and "*clave*" to them. Neh. x. 28, 29; xi. 3; Ez. vii. 7.

Finally, in all the regulations respecting servants and their service, no form of expression is employed from which it could be inferred, that servants were made such, and held in that condition by force. Add to this the entire absence of all the machinery, appurtenances and incidents of *compulsion*.

Voluntary service on the part of servants would have been in keeping with regulations which abounded in the Mosaic system and sustained by a multitude of analogies. Compulsory service on the other hand, could have harmonized with nothing, and would have been the solitary disturbing force, marring its design, counteracting its tendencies, and confusing and falsifying its types. The directions given to regulate the performance of service for the *public*, lay great stress on the *willingness* of those employed to perform it. For the spirit and usages that obtained under the Mosaic system in this respect, see 1 Chron. xxviii. 21; Ex. xxxv. 5, 21, 22, 29; 1 Chron. xxix. 5, 6, 9, 14, 17; Ex. xxv. 2; Judges v. 2; Lev. xxii. 29; 2 Chron. xxxv. 8; Ezra i. 6; Ex. xxxv; Neh. xi. 2.^{[A](#)}

^{[A](#)}: We should naturally infer that the directions which regulated the rendering of service to individuals, would proceed upon the same principle in this respect with those which regulated the rendering of service to the *public*. Otherwise the Mosaic system, instead of constituting in its different parts a harmonious *whole*, would be divided against itself; its principles counteracting and nullifying each other.

Again, the voluntariness of servants is a natural inference from the fact that the Hebrew word *ebēdh*, uniformly rendered *servant*, is applied to a great variety of classes and descriptions of persons under the patriarchal and Jewish dispensations, *all of whom* were voluntary and most of them eminently so. For instance, it is applied to persons rendering acts of *worship* about seventy times, whereas it is applied to *servants* not more than half that number of times.

To this we may add, that the illustrations drawn from the condition and service of *servants* and the ideas which the term servant is employed to convey when applied figuratively to moral subjects would, in most instances, lose all their force, and often become absurdities if the will of the servant *resisted* his service, and he performed it only by *compulsion*. Many passages will at once occur to those who are familiar with the Bible. We give a single example. "*To whom YE YIELD YOURSELVES servants to obey, his servants ye are to whom ye obey.*" Rom. vi. 16. It would hardly be possible to assert the voluntariness of servants more strongly in a direct proposition than it is here asserted by implication.

III. WERE SERVANTS FORCED TO WORK WITHOUT PAY

As the servants became and continued such of *their own accord*, it would be no small marvel if they *chose* to work without pay. Their becoming servants, pre-supposes *compensation* as a motive. That they *were paid* for their labor, we argue.

1. BECAUSE GOD REBUKED THE USING OF SERVICE WITHOUT WAGES. "Wo unto him that buildeth his house by unrighteousness, and his chambers by wrong; THAT USETH HIS NEIGHBOR'S SERVICE WITHOUT WAGES, AND GIVETH HIM NOT FOR HIS WORK." Jer. xxii. 13. The Hebrew word *reā*, translated *neighbor*, means any one with whom we have to do—all descriptions of persons, even those who prosecute us in lawsuits, and enemies while in the act of fighting us—"As when a man riseth against his NEIGHBOR and slayeth him." Deut. xxii. 26. "Go not forth hastily to strive, lest thou know not what to do in the end thereof, when thy NEIGHBOR hath put thee to shame." Prov. xxv. 8. "Thou shalt not bear false witness against thy NEIGHBOR." Ex. xx. 16. "If a man come presumptuously upon his NEIGHBOR to slay him with guile." Ex. xxi. 14, &c. The doctrine plainly inculcated in this passage is, that every man's labor, or "service," being his own property, he is entitled to the profit of it, and that for another to "use" it without paying him the value of it, is "unrighteousness." The last clause of the verse "and giveth him not for his work," reaffirms the same principle, that every man is to be *paid* for "his work." In the context, the prophet contrasts the unrighteousness of those who used the labor of others without pay, with the justice and equity practiced by their patriarchal ancestor toward the poor. "Did not thy father eat and drink and *do judgment and justice*, and then it was well with him. He *judged the cause of the poor and needy*; then it was well with him. But thine eyes and thine heart are not but for thy *covetousness*, and for to shed innocent blood, and for *oppression*, and for violence to do it." Jer. xxii. 15, 16. 17.^{[A](#)}

^{[A](#)}: Paul lays down the same principle in the form of a precept "Masters give unto your servants that which is JUST and EQUAL." Col. iv. 1. Thus not only asserting the *right* of the servant to an equivalent for his labor, and the duty of the master to render it, but condemning all those relations between

master and servant which were not founded upon justice and equality of rights. The apostle James enforces the same principle. "Behold, the hire of the laborers, who have reaped down your fields, which is of you kept back *by fraud*, crieth." James v. 4. As though he had said, "wages are the *right* of laborers; those who work for you have a just claim on you for *pay*; this you refuse to render, and thus *defraud* them by keeping from them what *belongs* to them." See also Mal. iii 5.

II. GOD TESTIFIES THAT IN OUR DUTY TO OUR FELLOW MEN, ALL THE LAW AND THE PROPHETS HANG UPON THIS COMMAND, "THOU SHALT LOVE THY NEIGHBOR AS THYSELF." Our Savior, in giving this command, quoted *verbatim* one of the laws of the Mosaic system. Lev. xix. 18. In the 34th verse of the same chapter, Moses applies this law to the treatment of strangers, "The stranger that dwelleth with you shall be unto you as one born among you, and THOU SHALT LOVE HIM AS THYSELF." If it be loving others as ourselves, to make them work for us without pay; to rob them of food and clothing also, would be a stronger illustration still of the law of love! *Super*-disinterested benevolence! And if it be doing unto others as we would have them do to us, to make them work for *our own* good alone, Paul should be called to order for his hard sayings against human nature, especially for that libellous matter in Eph. v. 29, "No man ever yet hated his own flesh, but nourisheth it and cherisheth it."

III. SERVANTS WERE OFTEN WEALTHY. As persons became servants FROM POVERTY, we argue that they were compensated, since they frequently owned property, and sometimes a large amount. Ziba, the servant of Mephibosheth, gave David "Two hundred loaves of bread, and a hundred bunches of raisins, and a hundred of summer fruits, and a bottle of wine." 2 Sam. xvi. 1. The extent of his possessions can be inferred from the fact, that though the father of fifteen sons, he had twenty servants. In Lev. xxv. 47-49, where a servant, reduced to poverty, sold himself, it is declared that he may be *redeemed*, either by his kindred, or by HIMSELF. Having been forced to sell himself from poverty, he must have acquired considerable property *after* he became a servant. If it had not been common for servants to acquire property over which they had the control, the servant of Elisha would hardly have ventured to take a large sum of money, (nearly \$3000^A) from Naaman, 2 Kings v. 22, 23. As it was procured by deceit, he wished to

conceal the means used in getting it; but if servants could "own nothing, nor acquire anything," to embark in such an enterprise would have been consummate stupidity. The fact of having in his possession two talents of silver, would of itself convict him of theft.^B But since it was common for servants to own property, he might have it, and invest or use it, without attracting special attention, and that consideration alone would have been a strong motive to the act. His master, though he rebuked him for using such means to get the money, not only does not take it from him, but seems to expect that he would invest it in real estate, and cattle, and would procure servants with it. 2 Kings v. 26. We find the servant of Saul having money, and relieving his master in an emergency. 1 Sam. ix. 8. Arza, the servant of Elah, was the *owner of a house*. That it was somewhat magnificent, would be a natural inference from its being a resort of the king. 1 Kings xvi. 9. When Jacob became the servant of Laban, it was evidently from poverty, yet Laban said to him, Tell me "what shall thy *wages* be?" After Jacob had been his servant for ten years, he proposed to set up for himself, but Laban said "Appoint me thy wages and I will give it," and he paid him his price. During the twenty years that Jacob was a servant, he always worked for wages and at his own price. Gen. xxix. 15, 18; xxx. 28-33. The case of the Gibeonites, who, after becoming servants, still occupied their cities, and remained in many respects, a distinct people for centuries;^C and that of the 150,000 Canaanites, the *servants* of Solomon, who worked out their "tribute of bond-service" in levies, periodically relieving each other, are additional illustrations of independence in the acquisition and ownership of property.

^A: Though we have not sufficient data to decide upon the *relative* value of that sum, *then* and now, yet we have enough to warrant us in saying that two talents of silver, had far more value *then* than three thousand dollars have *now*.

^B: Whoever heard of the slaves in our southern states stealing a large amount of money? They "*know how to take care of themselves*" quite too well for that. When they steal, they are careful to do it on such a small scale, or in the taking of *such things* as will make detection difficult. No doubt they steal now and then, and a gaping marvel would it be if they did not. Why should they not follow in the footsteps of their masters and mistresses? Dull scholars indeed! if, after so many lessons from *proficients* in the art, who drive the business by *wholesale*, they should not

occasionally copy their betters, fall into the *fashion*, and try their hand in a small way, at a practice which is the *only permanent and universal* business carried on around them! Ignoble truly! never to feel the stirrings of high impulse, prompting to imitate the eminent pattern set before them in the daily vocation of "Honorable" and "Excellencies," and to emulate the illustrious examples of Doctors of Divinity, and *Right and Very Reverends!* Hear President Jefferson's testimony. In his Notes on Virginia, pp. 207-8, speaking of slaves, he says, "That disposition to theft with which they have been branded, must be ascribed to their *situation*, and not to any special depravity of the moral sense. It is a problem which I give the master to solve, whether the religious precepts against the violation of property were not framed for HIM as well as for his slave—and whether the slave may not as justifiably take a *little* from one who has taken ALL from him, as he may *slay* one who would slay him?"

C: The Nethinims, which name was afterwards given to the Gibeonites on account of their being *set apart* for the service of the tabernacle, had their own houses and cities and "dwelt every one in his own possession." Neh. xi. 3. 21; Ezra ii. 70; 1 Chron. ix. 2.

Again. The Israelites often *hired* servants from the strangers. Deut. xxiv. 17.

Since then it is certain that they gave wages to a part of their Canaanitish servants, thus recognizing their *right* to a reward for their labor, we infer that they did not rob the rest of their earnings.

If God gave them a license to make the strangers work for them without pay—if this was good and acceptable in His sight, and *right and just in itself*, they must have been great fools to have wasted their money by paying wages when they could have saved it, by making the strangers do all their work for nothing! Besides, by refusing to avail themselves of this "Divine license," they despised the blessing and cast contempt on the giver! But far be it from us to do the Israelites injustice; perhaps they seized all the Canaanites they could lay their hands on, and forced them to work without pay, but not being able to catch enough to do their work, were obliged to offer wages in order to eke out the supply!

The parable of our Lord, contained in Mat. xviii. 23-34, not only derives its significance from the fact, that servants can both *own* and *owe* and *earn*

property, over which they had the control, but would be made a medley of contradictions on any other supposition.—1. Their lord at a set time proceeded to "take account" and "reckon" with his servants; the phraseology itself showing that the relations between the parties, were those of debt and credit. 2. As the reckoning went on, one of his servants was found to owe him ten thousand talents. From the fact that the servant *owed* this to his master, we naturally infer, that he must have been at some time, and in some way, the responsible *owner* of that amount, or of its substantial equivalent. Not that he had had that amount put into his hands to invest, or disburse, in his master's name, merely as his *agent*, for in that case no claim of *debt* for value received would lie, but, that having sustained the responsibilities of legal *proprietorship*, he was under the liabilities resulting therefrom. 3. Not having on hand wherewith to pay, he says to his master "have patience with me *and I will pay thee all.*" If the servant had been his master's *property*, his time and earnings belonged to the master as a matter of course, hence the promise to earn and pay over that amount, was virtually saying to his master, "I will take money out of your pocket with which to pay my debt to you," thus adding insult to injury. The promise of the servant to pay the debt on condition that the time for payment should be postponed, not only proceeds upon the fact that his time was his own, that he was constantly earning property or in circumstances that enabled him to earn it, and that he was the *proprietor* of his earnings, but that his master had *full knowledge* of that fact.—In a word, the supposition that the master was the *owner* of the servant, would annihilate all legal claim upon him for value received, and that the servant was the *property* of the master, would absolve him from all obligations of debt, or rather would always *forestall* such obligations—for the relations of owner and creditor in such case, would annihilate each other, as would those of *property* and *debtor*. The fact that the same servant was the creditor of one of his fellow servants, who owed him a considerable sum, and that at last he was imprisoned until he should pay all that was due to his master, are additional corroborations of the same point.

IV. HEIRSHIP.—Servants frequently inherited their master's property; especially if he had no sons, or if they had dishonored the family. Eliezer, the servant of Abraham, Gen. xv. 23; Ziba, the servant of Mephibosheth; Jarha, the servant of Sheshan, who married his daughter, and thus became

his heir, he having no sons, and the *husbandmen* who said of their master's son, "this is the HEIR, let us kill him, and the INHERITANCE WILL BE OURS," are illustrations; also Prov. xxx. 23, an *handmaid* (or *maid-servant*,) that is *heir* to her mistress; also Prov. xvii. 2—"A wise servant shall have rule over a son that causeth shame, and SHALL HAVE PART OF THE INHERITANCE AMONG THE BRETHREN." This passage gives servants precedence as heirs, even over the wives and daughters of their masters. Did masters hold by force, and plunder of earnings, a class of persons, from which, in frequent contingencies, they selected both heirs for their property, and husbands for their daughters?

V. ALL WERE REQUIRED TO PRESENT OFFERINGS AND SACRIFICES. Deut. xvi. 16, 17; 2 Chron. xv. 9-11; Numb. ix. 13, 14. Beside this, "every man" from twenty years old and above, was required to pay a tax of half a shekel at the taking of the census; this is called "an offering unto the Lord to make an atonement for their souls." Ex. xxx. 12-16. See also Ex. xxxiv. 20. Servants must have had permanently the means of *acquiring* property to meet these expenditures.

VI. SERVANTS WHO WENT OUT AT THE SEVENTH YEAR, WERE "FURNISHED LIBERALLY." Deut. xv. 10-14. "Thou shalt furnish him liberally out of thy flock, and out of thy floor, and out of thy wine press, of that wherewith the Lord thy God hath blessed thee, thou shalt give him."^A If it be said that the servants from the Strangers did not receive a like bountiful supply, we answer, neither did the most honorable class of *Israelitish* servants, the free-holders; and for the same reason, *they did not go out in the seventh year*, but continued until the jubilee. If the fact that the Gentile servants did not receive such a *gratuity* proves that they were robbed of their *earnings*, it proves that the most valued class of *Hebrew* servants were robbed of theirs also; a conclusion too stubborn for even proslavery masticators, however unscrupulous.

^A: The comment of Maimonides on this passage is as follows—"Thou shalt furnish him liberally,' &c. That is to say, '*Loading, ye shall load him,*' likewise every one of his family with as much as he can take with him—abundant benefits. And if it be avariciously asked, 'How much must I give him?' I say unto you, *not less than thirty shekels*, which is the valuation of a

servant, as declared in Ex. xxi. 32."—Maimonides, Hilcoth Obedim, Chap. ii. Sec. 3.

VII. SERVANTS WERE BOUGHT. In other words, they received compensation in advance.^A Having shown, under a previous head, that servants *sold themselves*, and of course received the compensation for themselves, except in cases where parents hired out the time of their children till they became of age,^B a mere reference to the fact is all that is required for the purposes of this argument. As all the strangers in the land were required to pay an annual tribute to the government, the Israelites might often "buy" them as family servants, by stipulating with them to pay their annual tribute. This assumption of their obligations to the government might cover the whole of the servant's time of service, or a part of it, at the pleasure of the parties.

^A: But, says the objector, if servants received their pay in advance, and if the Israelites were forbidden to surrender the fugitive to his master, it would operate practically as a bounty offered to all servants who would leave their master's service encouraging them to make contracts, get their pay in advance and then run away, thus cheating their masters out of their money as well as their own services.—We answer, the prohibition, Deut xxiii. 15. 16, "Thou shalt not deliver unto his master," &c., sets the servant free from his *authority* and of course, from all those liabilities of injury, to which *as his servant*, he was subjected, but not from the obligation of legal contracts. If the servant had received pay in advance, and had not rendered an equivalent for this "value received," he was not absolved from his obligation to do so, but he was absolved from all obligations to pay his master in *that particular way*, that is, *by working for him as his servant*.

^B: Among the Israelites, girls became of age at twelve, and boys at thirteen years.

VIII. THE RIGHT OF SERVANTS TO COMPENSATION IS RECOGNISED IN Ex. xxi. 27. "And if he smite out his man-servant's, or his maid-servant's tooth, he shall let him go free for his tooth's sake." This regulation is manifestly based upon the *right* of the servant to the *use* of himself and all his powers, faculties and personal conveniences, and consequently his just claim for remuneration, upon him, who should

however *unintentionally*, deprive him of the use even of the least of them. If the servant had a right to his *tooth* and the use *of* it, upon the same principle, he had a right to the rest of his body and the use of it. If he had a right to the *fraction*, and if it was his to hold, to use, and to have pay for; he had a right to the *sum total*, and it was his to hold, to use, and to have pay for.

IX. WE FIND MASTERS AT ONE TIME HAVING A LARGE NUMBER OF SERVANTS, AND AFTERWARDS NONE, WITH NO INTIMATION IN ANY CASE THAT THEY WERE SOLD. The wages of servants would enable them to set up in business for themselves. Jacob, after being Laban's servant for twenty-one years, became thus an independent herdsman, and had many servants. Gen. xxx. 43; xxxii. 16. But all these servants had left him before he went down into Egypt, having doubtless acquired enough to commence business for themselves. Gen. xlv. 10, 11; xlv. 1-7, 32. The case of Ziba, the servant of Mephibosheth, who had twenty servants, has been already mentioned.

X. GOD'S TESTIMONY TO THE CHARACTER OF ABRAHAM. Gen. xviii. 19. "For I know him that he will command his children and his household after him, and they shall keep THE WAY OF THE LORD TO DO JUSTICE AND JUDGMENT." God here testifies that Abraham taught his servants "the way of the Lord." What was the "way of the Lord" respecting the payment of wages where service was rendered? "Wo unto him that useth this neighbor's service WITHOUT WAGES!" Jer. xxii. 13. "Masters, give unto your servants that which is JUST AND EQUAL." Col. iv. 1. "Render unto all their DUES." Rom. xiii. 7. "The laborer is WORTHY of HIS HIRE." Luke x. 7. How did Abraham teach his servants to "*do justice*" to others? By doing injustice to *them*? Did he exhort them to "render to all their dues" by keeping back *their own*? Did he teach them that "the laborer was worthy of his hire" by robbing them of *theirs*? Did he beget in them a reverence for honesty by pilfering all their time and labor? Did he teach them "not to defraud" others "in any matter" by denying *them* "what was just and equal?" If each of Abraham's pupils under such a catechism did not become a very *Aristides* in justice, then illustrious examples, patriarchal dignity, and *practical* lessons, can make but slow headway against human perverseness!

XI. SPECIFIC PRECEPTS OF THE MOSAIC LAW ENFORCING GENERAL PRINCIPLES. Out of many, we select the following: (1.) "Thou shalt not muzzle the ox when he treadeth out the corn." Deut. xxv. 4. Here is a general principle applied to a familiar case. The ox representing all domestic animals. Isa. xxx. 24. A *particular* kind of service, *all* kinds; and a law requiring an abundant provision for the wants of an animal ministering to man in a *certain* way,—a general principle of treatment covering all times, modes, and instrumentalities of service. The object of the law was; not merely to enjoin tenderness towards brutes, but to inculcate the duty of rewarding those who serve us; and if such care be enjoined, by God, both for the ample sustenance and present enjoyment of *a brute*, what would be a meet return for the services of *man*?—MAN with his varied wants, exalted nature and immortal destiny! Paul says expressly, that this principle lies at the bottom of the statute. 1 Cor. ix. 9, 10, "For it is written in the law of Moses, Thou shalt not muzzle the mouth of the ox that treadeth out the corn. Doth God take care for oxen? Or saith he it altogether for OUR sakes? that he that ploweth should plow in HOPE, and that he that thresheth in hope should be PARTAKER OF HIS HOPE." In the context, Paul innumers the four grand divisions of labor among the Jews in illustration of the principle that the laborer, whatever may be the service he performs, is entitled to a *reward*. The priests, Levites and all engaged in sacred things—the military, those who tended flocks and herds, and those who cultivated the soil. As the latter employment engaged the great body of the Israelites, the Apostle amplifies his illustration under that head by much detail—and enumerates the five great departments of agricultural labor among the Jews—vine-dressing, plowing, sowing, reaping and threshing, as the representatives of universal labor. In his epistle to Timothy. 1 Tim. v. 18. Paul quotes again this precept of the Mosaic law, and connects with it the declaration of our Lord. Luke x. 7. "The laborer is worthy of his hire,"—as both inculcating the *same* doctrine, that he who labors, whatever the employment, or whoever the laborer, is entitled to a reward. The Apostle thus declares the principle of right respecting the performance of service for others, and the rule of duty towards those who perform it, to be the same under both dispensations. (2.) "If thy brother be waxen poor, and fallen in decay with thee, then thou shalt relieve him, YEA THOUGH HE BE A STRANGER or a SOJOURNER that he may live with thee. Take thou no usury of him, or increase, but fear thy God. Thou shalt not give him thy

money upon usury, nor lend him thy victuals for increase." Lev. xxv. 35-37. Now, we ask, by what process of pro-slavery legerdemain, this regulation can be made to harmonize with the doctrine of WORK WITHOUT PAY? Did God declare the poor stranger entitled to RELIEF, and in the same breath, authorize them to "use his service without wages;" force him to work and ROB HIM OF HIS EARNINGS?

IV.—WERE MASTERS THE PROPRIETORS OF SERVANTS AS LEGAL PROPERTY?

This topic has been unavoidably somewhat anticipated, in the foregoing discussion, but a variety of additional considerations remain to be noticed.

I. SERVANTS WERE NOT SUBJECTED TO THE USES NOR LIABLE TO THE CONTINGENCIES OF PROPERTY. 1 *They were never taken in payment for their masters' debts.* Children were sometimes taken (without legal authority) for the debts of a father. 2 Kings iv. 1; Job xxiv. 9; Isa. l. 1; Matt. xviii. 25. Creditors took from debtors property of all kinds, to satisfy their demands. Job xxiv. 3, cattle are taken; Prov. xxii. 27, household furniture; Lev. xxv. 25-28, the productions of the soil; Lev. xxv. 27-30, houses; Ex. xxii. 26, 27; Deut. xxiv. 10-13; Matt. v. 40, clothing; but *servants* were taken in *no instance*. 2. *Servants were never given as pledges.* Property of all sorts was pledged for value received; household furniture, clothing, cattle, money, signets, personal ornaments, &c., but no servants. 3. *Servants were not put into the hands of others, or consigned to their keeping.* The precept giving directions how to proceed in a case where property that has life is delivered to another "to keep," and "it die or be hurt or driven away," enumerates oxen, asses, sheep or "any *beast*," but not "*servants*." Ex. xxii. 10. 4. *All lost property was to be restored.* Oxen, asses, sheep, raiment, and "all lost things," are specified—servants *not*. Deut. xxii 1-3. Besides, the Israelites were forbidden to return the runaway servant. Deut. xxiii, 15. 5. *Servants were not sold.* When by flagrant misconduct, unfaithfulness or from whatever cause, they had justly forfeited their privilege of membership in an Israelitish family, they were not sold, but *expelled* from the household. Luke xvi. 2-4; 2 Kings v. 20, 27; Gen. xxi. 14. 6 *The Israelites never received servants as tribute.* At different times all the nations round about them were their tributaries and paid them annually large amounts. They received property of all kinds in payment of tribute. Gold, silver, brass, iron, precious stone, and vessels, armor, spices, raiment, harness, horses, mules, sheep, goats, &c., are in various places enumerated, but *servants*, never. 7. *The Israelites never gave away their servants as presents.* They made costly presents, of great variety. Lands, houses, all kinds of domestic animals, beds, merchandize, family utensils, precious

metals, grain, honey, butter, cheese, fruits, oil, wine, raiment, armor, &c., are among their recorded *gifts*. Giving presents to superiors and persons of rank, was a standing usage. 1 Sam. x. 27; xvi. 20; 2 Chron. xvii. 5. Abraham to Abimelech, Gen. xxi. 27; Jacob to the viceroy of Egypt, Gen. xliii. 11; Joseph to his brethren and father, Gen. xlv. 22, 23; Benhadad to Elisha, 2 Kings viii. 8, 9; Ahaz to Tiglath Pilezer, 2 Kings vi. 8; Solomon to the Queen of Sheba, 1 Kings x. 13; Jeroboam to Ahijah, 1 Kings xiv. 3; Asa to Benhadad, 1 Kings xv. 18, 19. Abigail the wife of Nabal to David, 1 Sam. xxv. 18. David to the elders of Judah, 1 Sam. xxx. 26. Jehoshaphat to his sons, 2 Chron. xxi. 3. The Israelites to David, 1 Chron. xii. 39, 40. Shobi Machir and Barzillai to David, 2 Sam. xvii. 28, 29. But no servants were given as presents, though it was a prevailing fashion in the surrounding nations. Gen. xii. 16, xx. 14. In the last passage we are told that Abimelech king of the Philistines "took sheep and oxen and men servants and women servants and gave them unto Abraham." Not long after this Abraham made Abimelech a present, the same kind with that which he had received from him except that he gave him *no servants*. "And Abraham took sheep and oxen and gave them unto Abimelech." Gen. xxi. 27. It may be objected that Laban "GAVE" handmaids to his daughters, Jacob's wives. Without enlarging on the nature of the polygamy then prevalent, suffice it to say that the handmaids of wives were regarded as wives, though of inferior dignity and authority. That Jacob so regarded his handmaids, is proved by his curse upon Reuben, Gen. xlix. 4, and 1 Chron. v. 1; also by the equality of their children with those of Rachel and Leah. But had it been otherwise—had Laban given them as *articles of property*, then, indeed, the example of this "good old slaveholder and patriarch," Saint Laban, would have been a forecloser to all argument. Ah! we remember his jealousy for *religion*—his holy indignation when he found that his "GODS" were stolen! How he mustered his clan, and plunged over the desert in hot pursuit seven days by forced marches; how he ransacked a whole caravan, sifting the contents of every tent, little heeding such small matters as domestic privacy, or female seclusion, for lo! the zeal of his "IMAGES" had eaten him up! No wonder that slavery, in its Bible-navigation, drifting dismantled before the free gusts, should scud under the lee of such a pious worthy to haul up and refit; invoking his protection, and the benediction, of his "GODS!" Again, it may be objected that, servants were enumerated in inventories of property. If that proves *servants* property, it proves *wives* property. "Thou shall not covet thy

neighbor's house, thou shall not covet thy neighbor's WIFE, nor his man-servant, nor his maid-servant, nor his ox, nor his ass, nor any thing that is thy neighbor's." Ex. xx. 17. In inventories of mere property, if servants are included, it is in such a way as to show that they are not regarded as property. Eccl. ii. 7, 8. But when the design is to show, not merely the wealth, but the *greatness* and *power* of any one, servants are spoken of, as well as property. In a word, if *riches* alone are spoken of, no mention is made of servants; if *greatness*, servants and property. Gen. xiii. 2, 5. "And Abraham was very rich in cattle, in silver, and in gold." Yet we are told, in the verse preceding, that he came up out of Egypt "with *all* that he had." "And Lot also had flocks, and herds, and tents." In the seventh verse servants are mentioned, "And there was a strife between the HERDMEN of Abraham's cattle and the HERDMEN of Lot's cattle." It is said of Isaac. "And the man waxed *great*, and went forward, and grew until he became *very great*. For he had possession of flocks, and possession of herds, and *great store of servants*." In immediate connection with this we find Abimelech the king of the Philistines saying to him. "Thou art much *mightier* than we." Shortly after this avowal, Isaac is waited upon by a deputation consisting of Abimelech, Phicol the chief captain of his army, and Ahuzzath, who says to him "Let there be now an oath betwixt us and thee, and let us make a covenant with thee, that thou wilt *do us no hurt*." Gen. xxvi. 13, 14, 16, 26, 28, 29.—A plain concession of the *power* which Isaac had both for aggression and defence in his "great store of *servants*;" that is, of willing and affectionate adherents to him as a just and benevolent prince. When Hamor and Shechem speak to the Hivites of the *riches* of Abraham and his sons, they say, "Shall not their *cattle* and their *substance* and *every beast of theirs* be ours?" Gen. xxxiv. 23. See also Josh. xxii. 8; Gen. xxxiv. 23; Job. xlii. 12; 2 Chron. xxi. 3; xxxii. 27-29; Job. i. 3-5; Deut. viii. 12-17; Gen. xxiv. 35; xxvi. 13; xxx. 43. Jacob's wives say to him, "All the *riches* which God has taken from our father that is ours and our children's." Then follows an inventory of property—"All his cattle," "all his goods," "the cattle of his getting." His numerous servants are not included with his property. Comp. Gen. xxx. 43, with Gen. xxxi. 16-18. When Jacob sent messengers to Esau, wishing to impress him with an idea of his state and sway, he bade them tell him not only of his RICHES, but of his GREATNESS; that he had "oxen, and asses, and flocks, and men-servants, and maid-servants." Gen. xxxii. 4, 5. Yet in the present which he sent, there

were no servants; though he manifestly selected the *most valuable* kinds of property. Gen. xxxii. 14, 15; see also Gen. xxxvi. 6, 7; xxxiv. 23. As flocks and herds were the staples of wealth, a large number of servants presupposed large possessions of cattle, which would require many herdsmen. When Jacob and his sons went down into Egypt it is repeatedly asserted that they took *all that they had*. "Their cattle and their goods which they had gotten in the land of Canaan," "Their flocks and their herds" are mentioned, but no *servants*. And as we have besides a full catalogue of the *household*, we know that he took with him no servants. That Jacob *had* many servants before his migration into Egypt, we learn from Gen, xxx. 43; xxxii. 5, 16, 19. That he was not the *proprietor* of these servants as his property is a probable inference from the fact that he did not take them with him, since we are expressly told that he did take all his *property*. Gen. xlv. 10; xlvi. 1, 32; xlvii. 1. When servants are spoken of in connection with *mere property*, the terms used to express the latter do not include the former. The Hebrew word *miknē*, is an illustration. It is derived from *kānā*, to procure, to buy, and its meaning is, a *possession, wealth, riches*. It occurs more than forty times in the Old Testament, and is applied always to *mere property*, generally to domestic animals, but never to servants. In some instances, servants are mentioned in distinction from the *miknē*. "And Abraham took Sarah his wife, and Lot his brother's son, and all their SUBSTANCE that they had gathered; and the souls that they had gotten in Haran, and they went forth to go into the land of Canaan." Gen. xii. 5. Many will have it, that these *souls* were a part of Abraham's *substance* (notwithstanding the pains here taken to separate them from it)—that they were slaves taken with him in his migration as a part of his family effects. Who but slaveholders, either actually or in heart, would torture into the principle and practice of slavery, such a harmless phrase as "*the souls that they had gotten?*" Until the African slave trade breathed its haze into the eyes of the church and smote her with palsy and decay, commentators saw no slavery in, "The souls that they had gotten." In the Targum of Onkelos^{[A](#)} it is rendered, "The souls whom they had brought to obey the law in Haran." In the Targum of Jonathan, "The souls whom they had made proselytes in Haran." In the Targum of Jerusalem, "The souls proselyted in Haran." Jarchi, the prince of Jewish commentators, "The souls whom they had brought under the Divine wings." Jerome, one of the most learned of the Christian fathers, "The persons whom they had proselyted." The Persian

version, the Vulgate, the Syriac, the Arabic, and the Samaritan all render it, "All the wealth which they had gathered, and the souls which they had made in Haran." Menochius, a commentator who wrote before our present translation of the Bible, renders it, "Quas de idolatraria converterant." "Those whom they had converted from idolatry." Paulus Fagius,^B "Quas instituerant in religione." "Those whom they had established in religion." Luke Francke, a German commentator who lived two centuries ago, "Quas legi subjicerant."—"Those whom they had brought to obey the law." The same distinction is made between *persons* and property, in the enumeration of Esau's household and the inventory of his effects. "And Esau took his wives and his sons and his daughters, and all the *persons* of his house, and his cattle, and all his beasts, and all his *substance* which he had got in the land of Canaan, and went into the country from the face of his brother Jacob. For their *riches* were more than that they might dwell together; and the land could not bear them because of their *cattle*." Gen. xxxvi. 6, 7.

^A: The Targums are Chaldee paraphrases of parts of the Old Testament. The Targum of Onkelos is, for the most part, a very accurate and faithful translation of the original, and was probably made at about the commencement of the Christian era. The Targum of Jonathan Ben Uzziel, bears about the same date. The Targum of Jerusalem was probably about five hundred years later. The Israelites, during their captivity in Babylon, lost, as a body, their own language. These translations into the Chaldee, the language which they acquired in Babylon, were thus called for by the necessity of the case.

^B: This eminent Hebrew scholar was invited to England to superintend the translation of the Bible into English, under the patronage of Henry the Eighth. He had hardly commenced the work when he died. This was nearly a century before the date of our present translation.

II. THE CONDITION AND SOCIAL ESTIMATION OF SERVANTS MAKE THE DOCTRINE THAT THEY WERE COMMODITIES, AN ABSURDITY. As the head of a Jewish family possessed the same power over his wife, children, and grandchildren (if they were in his family) as over his servants, if the latter were articles of property, the former were equally such. If there were nothing else in the Mosaic Institutes or history establishing the social equality of the servants with their masters and their

master's wives and children, those precepts which required that they should be guests at all the public feasts, and equal participants in the family and social rejoicings, would be quite sufficient to settle the question. Deut. xii. 12, 18; xvi. 10, 11, 13, 14. Ex. xii. 43, 44. St. Paul's testimony in Gal. iv. 1, shows the condition of servants: "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all." That the interests of Abraham's servants were identified with those of their master's family, and that the utmost confidence was reposed in them, is shown in their being armed. Gen. xiv. 14, 15. When Abraham's servant went to Padanaram, the young Princess Rebecca did not disdain to say to him. "Drink, MY LORD," as "she hasted and let down her pitcher upon her hand, and gave him drink." Laban, the brother of Rebecca, "ungirded his camels, and brought him water to wash his feet, and the men's feet that were with him!" In the arrangements of Jacob's household on his journey from Padanaram to Canaan, we find his two maid servants treated in the same manner and provided with the same accommodations as Rachel and Leah. Each of them had a separate tent appropriated to her use. Gen. xxxi. 33. The social equality of servants with their masters and other members of their master's families, is an obvious deduction from Ex. xxi. 7, 10, from which we learn that the sale of a young Jewish female as a servant, was also *betrothed as a wife*, either to her master, or to one of his sons. In 1 Sam. ix. is an account of a festival in the city of Zuph, at which Samuel presided. None but those bidden, sat down at the feast, and only "about thirty persons" were invited. Quite a select party!—the elite of the city. Saul and his servant had just arrived at Zuph, and *both* of them, at Samuel's solicitation, accompany him as invited guests. "And Samuel took Saul and his SERVANT, and brought THEM into the PARLOR (!) and made THEM sit in the CHIEFEST SEATS among those that were bidden." A *servant* invited by the chief judge, ruler, and prophet in Israel, to dine publicly with a select party, in company with his master, who was at the same time anointed King of Israel! and this servant introduced by Samuel into the PARLOR, and assigned, with his master, to the *chiefest seat* at the table! This was "*one of the servants*" of Kish, Saul's father; not the steward or the chief of them—not at all a *picked* man, but "*one of the servants*;" *any* one that could be most easily spared, as no endowments specially rare would be likely to find scope in looking after asses. David seems to have been for a time in all respects a servant in Saul's family. He "*stood before him*." "And

Saul sent to Jesse, saying, let David, I pray thee, *stand before me*." He was Saul's personal servant, went on his errands, played on the harp for his amusement, bore his armor for him, and when he wished to visit his parents, asked permission of Jonathan, Saul's son. Saul also calls him "my servant." 1 Sam. xvi. 21-23; xviii. 5; xx. 5, 6; xxii. 8. Yet David sat with the king at meat, married his daughter, and lived on terms of the closest intimacy with the heir apparent of the throne. Abimelech, who was first elected king of Shechem, and afterwards reigned over all Israel, *was the son of a MAID-SERVANT*. His mother's family seems to have been of much note in the city of Shechem, where her brothers manifestly held great sway. Judg. ix. 1-6, 18. Jarha, an Egyptian, the servant of Sheshan, married his daughter. Tobiah, "the servant" and an Ammonite married the daughter of Shecaniah one of the chief men among the Jews in Jerusalem and was the intimate associate of Sanballat the governor of the Samaritans. We find Elah, the King of Israel, at a festive entertainment, in the house of Arza, his steward, or head servant, with whom he seems to have been on terms of familiarity. 1 Kings xvi. 8, 9. See also the intercourse between Gideon and his servants. Judg. vi. 27, and vii. 10, 11. The Levite of Mount Ephraim and his servant. Judg. xx. 3, 9, 11, 13, 19, 21, 22. King Saul and his servant Doeg, one of his herdmen. 1 Sam. xx. 1, 7; xxii. 9, 18, 22. King David and Ziba, the servant of Mephibosheth. 2 Sam. xvi. 1-4. Jonathan and his servant. 1 Sam. xiv. 1-14. Elisha and his servant, Gehazi. 2 Kings iv. v. vi. Also between Joram king of Israel and the servant of Elisha. 2 Kings viii. 4, 5, and between Naaman "the Captain of the host of the king of Syria" and the same person. 2 Kings v. 21-23. The fact stated under a previous head that servants were always invited guests at public and social festivals, is in perfect keeping with the foregoing exemplifications of the prevalent estimation in which servants were held by the Israelites.

Probably no one of the Old Testament patriarchs had more servants than Job; "This man was the greatest man of all the men of the east." Job, i. 3. We are not left in the dark as to the condition of his servants. After asserting his integrity, his strict justice, honesty, and equity, in his dealings with his fellow men, and declaring "I delivered the poor," "I was eyes to the blind and feet was I to the lame," "I was a father to the poor, and the cause which I knew not I searched out," * * * he says "If I did despise the cause of my man-servant or my maid-servant when they **CONTENDED** with me * * *

then let mine arm fall from the shoulder blade, and mine arm be broken from the bone." Job. xxix. 12, 15, 16; xxxi. 13, 22. The language employed in this passage is the phraseology applied in judicial proceedings to those who implead one another, and whether it be understood literally or figuratively, shows that whatever difference existed between Job and his servants in other respects, so far as *rights* are concerned, they were on equal ground with him, and that in the matter of daily intercourse, there was not the least restraint on their *free speech* in calling in question all his transactions with them, and that the relations and claims of both parties were adjudicated on the principles of equity and reciprocal right. "If I *despised* the cause of my man-servant," &c. In other words, if I treated it lightly, as though servants were not men, had not rights, and had not a claim for just dues and just estimation as human beings. "When they *contended* with me," that is, when they plead their rights, claimed what was due to them, or questioned the justice of any of my dealings with them.

In the context Job virtually affirms as the ground of his just and equitable treatment of his servants, that they had the same rights as he had, and were, as human beings, entitled to equal consideration with himself. By what language could he more forcibly utter his conviction of the oneness of their common origin and of the identity of their common nature, necessities, attribute and rights? As soon as he has said, "If I did despise the cause of my man-servant," &c., he follows it up with "What then shall I do when God raiseth up? and when he visiteth, what shall I answer him? Did not he that made me in the womb, make *him*? and did not one fashion us in the womb." In the next verse Job glories in the fact that he has not "*withheld from the poor their desire*." Is it the "desire" of the poor to be *compelled* by the rich to work for them, and without *pay*?

III. THE CASE OF THE GIBEONITES. The condition of the inhabitants of Gibeon, Chephirah, Beeroth, and Kirjathjearim, under the Hebrew commonwealth, is quoted in triumph by the advocates of slavery; and truly they are right welcome to all the crumbs that can be gleaned from it. Milton's devils made desperate snatches at fruit that turned to ashes on their lips. The spirit of slavery raves under tormenting gnawings, and casts about in blind phrenzy for something to ease, or even to mock them. But for this, it would never have clutched at the Gibeonites, for even the incantations of the demon cauldron could not extract from their case enough to tantalize

starvation's self. But to the question. What was the condition of the Gibeonites under the Israelites? 1. *It was voluntary*. Their own proposition to Joshua was to become servants. Josh. ix. 8, 11. It was accepted, but the kind of service which they should perform, was not specified until their gross imposition came to light; they were then assigned to menial offices in the Tabernacle. 2. *They were not domestic servants in the families of the Israelites*. They still resided in their own cities, cultivated their own fields, tended their flocks and herds, and exercised the functions of a *distinct*, though not independent community. They were subject to the Jewish nation as *tributaries*. So far from being distributed among the Israelites and their internal organization as a distinct people abolished, they remained a separate, and, in some respects, an independent community for many centuries. When attacked by the Amorites, they applied to the Israelites as confederates for aid—it was rendered, their enemies routed, and themselves left unmolested in their cities. Josh. x. 6-18. Long afterwards, Saul slew some of them, and God sent upon Israel a three years' famine for it. David inquired of the Gibeonites, "What shall I do for you, and wherewith shall I make the atonement?" At their demand, he delivered up to them seven of Saul's descendants. 2 Sam. xxi. 1-9. The whole transaction was a formal recognition of the Gibeonites as a distinct people. There is no intimation that they served either families or individuals of the Israelites, but only the "house of God," or the Tabernacle. This was established first at Gilgal, a days' journey from their cities; and then at Shiloh, nearly two days' journey from them; where it continued about 350 years. During this period the Gibeonites inhabited their ancient cities and territory. Only a few, comparatively, could have been absent at any one time in attendance on the Tabernacle. Wherever allusion is made to them in the history, the main body are spoken of as *at home*. It is preposterous to suppose that all the inhabitants of these four cities could find employment at the Tabernacle. One of them "was a great city, as one of the royal cities;" so large, that a confederacy of five kings, apparently the most powerful in the land, was deemed necessary for its destruction. It is probable that the men were divided into classes, ministering in rotation—each class a few days or weeks at a time. As the priests whose assistants they were, served by courses in rotation a week at a time; it is not improbable that their periods of service were so arranged as to correspond. This service was their *national tribute* to the Israelites, for the privilege of residence and

protection under their government. No service seems to have been required of the *females*. As these Gibeonites were Canaanites, and as they had greatly exasperated the Israelites by impudent imposition and lying, we might assuredly expect that they would reduce *them* to the condition of chattels, if there was *any* case in which God permitted them to do so.

IV. EGYPTIAN BONDAGE ANALYZED. Throughout the Mosaic system, God warns the Israelites against holding their servants in such a condition as they were held in by the Egyptians. How often are they pointed back to the grindings of their prison-house! What motives to the exercise of justice and kindness towards their servants, are held out to their fears in threatened judgments; to their hopes in promised good; and to all within them that could feel, by those oft repeated words of tenderness and terror! "For ye were bondmen in the land of Egypt"—waking anew the memory of tears and anguish, and of the wrath that avenged them. But what was the bondage of the Israelites in Egypt? Of what rights were they plundered and what did they retain?

1. *They were not dispersed among the families of Egypt,^A but formed a separate community.* Gen. xlvi. 34. Ex. viii. 22, 24; ix. 26; x. 23; xi. 7; iv. 29; ii. 9; xvi. 22; xvii. 5; vi. 14. 2. *They had the exclusive possession of the land of Goshen,^B "the best part of the land" of Egypt.* Gen. xlv. 18; xlvii. 6, 11, 27; Ex. viii. 22; ix. 26; xii. 4. Goshen must have been at a considerable distance from those parts of Egypt inhabited by the Egyptians; so far at least as to prevent their contact with the Israelites, since the reason assigned for locating them in Goshen was, that shepherds were "an abomination to the Egyptians;" besides, their employments would naturally lead them out of the settled parts of Egypt to find a free range of pasturage for their immense flocks and herds. 3. *They lived in permanent dwellings.* These were *houses*, not *tents*. In Ex. xii. 7, 22, the two side *posts*, and the upper door *posts*, and the lintel of the houses are mentioned. Each family seems to have occupied a house *by itself*. Acts vii. 20. Ex. xii. 4—and judging from the regulation about the eating of the Passover, they could hardly have been small ones, Ex. xii. 4; probably contained separate apartments, as the entertainment of sojourners seems to have been a common usage. Ex. iii. 23; and also places for concealment. Ex. ii. 2, 3; Acts vii. 20. They appear to have been well apparelled. Ex. xii. 11. 4. *They owned "flocks and herds," and "very much cattle."* Ex. xii. 4, 6, 32, 37, 38. From the fact that "every man" was

commanded to kill either a lamb or a kid, one year old, for the Passover, before the people left Egypt, we infer that even the poorest of the Israelites owned a flock either of sheep or goats. Further, the immense multitude of their flocks and herds may be judged of from the expostulation of Moses with Jehovah. Num. xii. 21, 22. "The people among whom I am are six hundred thousand footmen, and thou hast said I will give them flesh that they may eat a whole month; shall the flocks and the herds be slain for them to suffice them." As these six hundred thousand were only the *men* "from twenty years old and upward, that were able to go forth to war," Ex. i. 45, 46; the whole number of the Israelites could not have been less than three millions and a half. Flocks and herds to "suffice" all these for food, might surely be called "very much cattle." 5. *They had their own form of government*, and preserved their tribe and family divisions, and their internal organization throughout, though still a province of Egypt, and tributary to it. Ex. ii. 1; xii. 19, 21; vi. 14, 25; v. 19; iii. 16, 18. 6. *They had in a considerable measure, the disposal of their own time*. Ex. iii. 16, 18; xii. 6; ii. 9; and iv. 27, 29-31. *They seem to have practised the fine arts*. Ex. xxxii. 4; xxxv. 22, 35. 7. *They were all armed*. Ex. xxxii. 27. 8. *They held their possessions independently, and the Egyptians seem to have regarded them as inviolable*. No intimation is given that the Egyptians dispossessed them of their habitations, or took away their flocks, or herds, or crops, or implements of agriculture, or any article of property. 9. *All the females seem to have known something of domestic refinements*. They were familiar with instruments of music, and skilled in the working of fine fabrics. Ex. xv. 20; xxxv. 25, 26; and both males and females were able to read and write. Deut. xi. 18-20; xvii. 19; xxvii. 3. 10. *Service seems to have been exacted from none but adult males*. Nothing is said from which the bond service of females could be inferred; the hiding of Moses three months by his mother, and the payment of wages to her by Pharaoh's daughter, go against such a supposition. Ex. ii. 29. 11. *Their food was abundant and of great variety*. So far from being fed upon a fixed allowance of a single article, and hastily prepared, "they sat by the flesh-pots," and "did eat bread to the full." Ex. xvi. 3; and their bread was prepared with leaven. Ex. xii. 15, 39. They ate "the fish freely, the cucumbers, and the melons, and the leeks, and the onions, and the garlic." Num. xi. 4, 5; xx. 5. Probably but a small portion of the people were in the service of the Egyptians at any one time. The extent and variety of their own possessions, together with such a cultivation of

their crops as would provide them with bread, and such care of their immense flocks and herds, as would secure their profitable increase, must have kept at home the main body of the nation. During the plague of darkness, God informs us that "ALL the children of Israel had light in their dwellings." We infer that they were *there* to enjoy it. See also Ex. ix. 26. It seems improbable that the making of brick, the only service named during the latter part of their sojourn in Egypt, could have furnished permanent employment for the bulk of the nation. See also Ex. iv. 29-31. Besides, when Eastern nations employed tributaries, it was as now, in the use of the levy, requiring them to furnish a given quota, drafted off periodically, so that comparatively but a small portion of the nation would be absent *at any one time*. The adult males of the Israelites were probably divided into companies, which relieved each other at stated intervals of weeks or months. It might have been during one of these periodical furloughs from service that Aaron performed the journey to Horeb. Ex. iv. 27. At the least calculation this journey must have consumed *eight weeks*. Probably one-fifth part of the proceeds of their labor was required of the Israelites in common with the Egyptians. Gen. xlvii. 24, 26. Instead of taking it from their *crops*, (Goshen being better for *pasturage*) they exacted it of them in brick making; and labor might have been exacted only from the *poorer* Israelites, the wealthy being able to pay their tribute in money. The fact that all the elders of Israel seem to have controlled their own time, (See Ex. iv. 29; iii. 16; v. 20,) favors the supposition. Ex. iv. 27, 31. Contrast this bondage of Egypt with American slavery. Have our slaves "flocks and herds even very much cattle?" Do they live in commodious houses of their own, "sit by the flesh-pots," "eat fish freely," and "eat bread to the full"? Do they live in a separate community, in their distinct tribes, under their own rulers, in the exclusive occupation of an extensive tract of country for the culture of their crops, and for rearing immense herds of their own cattle—and all these held inviolable by their masters? Are our female slaves free from exactions of labor and liabilities of outrage? or when employed, are they paid wages, as was the Israelitish woman by the king's daughter? Have they the disposal of their own time, and the means for cultivating social refinements, for practising the fine arts, and for personal improvement? THE ISRAELITES UNDER THE BONDAGE OF EGYPT, ENJOYED ALL THESE RIGHTS AND PRIVILEGES. True, "all the service wherein they made them serve was with rigor." But what was this when compared

with the incessant toil of American slaves; the robbery of all their time and earnings, and even the "power to own any thing, or acquire any thing?" a "quart of corn a-day," the legal allowance of food!^C their *only* clothing for one half the year, "*one* shirt and *one* pair of pantaloons!"^D *two hours and a half* only, for rest and refreshment in the twenty-four!^E—their dwellings, *hovels*, unfit for human residence, with but one apartment, where both sexes and all ages herd promiscuously at night, like the beasts of the field.^F Add to this, the ignorance, and degradation;^G the daily Sunderings of kindred, the revelries of lust, the lacerations and baptisms of blood, sanctioned by law, and patronized by public sentiment. What was the bondage of Egypt when compared with this? And yet for her oppression of the poor, God smote her with plagues, and trampled her as the mire, till she passed away in his wrath, and the place that knew her in her pride, knew her no more. Ah! "I have seen the afflictions of my people, and I have heard their groanings, and am come down to deliver them." HE DID COME, and Egypt sank a ruinous heap, and her blood closed over her. If such was God's retribution for the oppression of heathen Egypt, of how much sorer punishment shall a Christian people be thought worthy, who cloak with religion a system, in comparison with which the bondage of Egypt dwindles to nothing? Let those believe who can, that God commissioned his people to rob others of *all* their rights, while he denounced against them wrath to the uttermost, if they practised the *far lighter* oppression of Egypt—which robbed its victims of only the least and cheapest of their rights, and left the females unplundered even of these. What! Is God divided against himself? When He had just turned Egypt into a funeral pile; while his curse yet blazed upon her unburied dead, and his bolts still hissed amidst her slaughter, and the smoke of her torment went upwards because she had "ROBBED THE POOR," did He license the VICTIMS of robbery to rob the poor of ALL? As *Lawgiver*, did he *create* a system tenfold more grinding than that for which he had just hurled Pharaoh headlong, and overwhelmed his princes and his hosts, till "hell was moved to meet them at their coming?"

^C: See law of North Carolina, Haywood's Manual 524-5. To show that slaveholders are not better than their laws. We give a few testimonies. Rev. Thomas Clay, of Georgia, (a slaveholder,) in an address before the Georgia presbytery, in 1834, speaking of the slave's allowance of food, says:—"The quantity allowed by custom is a *peck of corn a week*."

The Maryland Journal and Baltimore Advertiser of May 30, 1788, says, "a *single peck of corn a week, or the like measure of rice*, is the ordinary quantity of provision for a *hard-working* slave; to which a small quantity of meat is occasionally, though *rarely*, added."

The Gradual Emancipation Society of North Carolina, in their Report for 1836, signed Moses Swaim, President, and William Swaim, Secretary, says, in describing the condition of slaves in the Eastern part of that State, "The master puts the unfortunate wretches upon short allowances, scarcely sufficient for their sustenance, so that a *great part* of them go *half naked* and *half starved* much of the time." See Minutes of the American Convention, convened in Baltimore, Oct. 25, 1826.

Rev. John Rankin, a native of Tennessee, and for many years a preacher in slave states, says of the food of slaves, "It *often* happens that what will *barely keep them alive*, is all that a cruel avarice will allow them. Hence, in some instances, their allowance has been reduced to a *single pint of corn each*, during the day and night. And some have no better allowance than a small portion of cotton seed; while perhaps they are not permitted to taste meat so much as once in the course of seven years. *Thousands of them are pressed with the gnawings of cruel hunger during their whole lives.*" Rankin's Letters on Slavery, pp. 57, 58.

Hon. Robert J. Turnbull, of Charleston, S.C., a slaveholder, says, "The subsistence of the slaves consists, from March until August, of corn ground into grits, or meal, made into what is called *hominy*, or baked into corn bread. The other six months, they are fed upon the sweet potatoe. Meat, when given, is only by way of *indulgence or favor.*" See "*Refutation of the Calumnies circulated against the Southern and Western States,*" by a South Carolinian. Charleston, 1822.

Asa A. Stone, a theological student, residing at Natchez, Mississippi, wrote a letter to the editor of the New York Evangelist in 1835, in which he says, "On almost every plantation, the hands suffer more or less from hunger at some seasons of almost every year. There is always a *good deal of suffering* from hunger. On many plantations, and particularly in Louisiana, the slaves are in a condition of *almost utter famishment* during a great portion of the year."

At the commencement of his letter, Mr. S. says, "Intending, as I do, that my statements shall be relied on, and knowing that, should you think fit to publish this communication, they will come to this country, where their correctness may be tested by comparison with real life, I make them with the utmost care and precaution."

President Edwards, the younger, in a sermon preached half a century ago, at New Haven, Conn., says, speaking of the allowance of food given to slaves—"They are supplied with barely enough to keep them from starving."

In the debate on the Missouri question in the U.S. Congress, 1819-20, the admission of Missouri to the Union, as a slave state, was urged, among other grounds as a measure of humanity to the slaves of the south. Mr. Smyth, a member of Congress, from Virginia, and a large slaveholder, said, "The plan of our opponents seems to be to confine the slave population to the southern states, to the countries where sugar, cotton, and tobacco are cultivated. But, sir, by confining the slaves to a part of the country where crops are raised for exportation, and the bread and meat are purchased, *you doom them to scarcity and hunger*. Is it not obvious that the way to render their situation more comfortable is to allow them to be taken where there is not the same motive to force the slave to INCESSANT TOIL that there is in the country where cotton, sugar, and tobacco are raised for exportation. It is proposed to hem in the blacks *where they are* HARD WORKED and ILL FED, that they may be rendered unproductive and the race be prevented from increasing. * * * The proposed measure would be EXTREME CRUELTY to the blacks. * * * You would * * * doom them to SCARCITY and HARD LABOR."—[Speech of Mr. Smyth, of Va., Jan. 28, 1820.]—See National Intelligencer.

D: See law of Louisiana, Martin's Digest, 6, 10. Mr. Bouldin, a Virginia slaveholder, in a speech in Congress, Feb. 16, 1835, (see National Intelligencer of that date,) said "*he knew* that many negroes had died from exposure to weather." Mr. B. adds, "they are clad in a flimsy fabric that will turn neither wind nor water."

Rev. John Rankin says, in his Letters on slavery, page 57, "In every slaveholding state, *many slaves suffer extremely*, both while they labor and while they sleep, *for want of clothing* to keep them warm. Often they are

driven through frost and snow without either stocking or shoe, until the path they tread is died with their blood. And when they return to their miserable huts at night, they find not there the means of comfortable rest; but *on the cold ground they must lie without covering, and shiver while they slumber.*"

[E](#): See law of Louisiana, act of July 7, 1806, Martin's Digest, 6, 10-12. The law of South Carolina permits the master to *compel* his slaves to work fifteen hours in the twenty-four, in summer, and fourteen in the winter—which would be in winter, from daybreak in the morning until *four hours* after sunset!—See 2 Brevard's Digest, 243. The preamble of this law commences thus: "Whereas, *many* owners of slaves *do confine them so closely to hard labor that they have not sufficient time for natural rest*: be it therefore enacted," &c. In a work entitled "Travels in Louisiana in 1802," translated from the French, by John Davis, is the following testimony under this head:—

"The labor of Slaves in Louisiana is *not* severe, unless it be at the rolling of sugars, an interval of from two to three months, then they work *both night and day*. Abridged of their sleep, they scarce retire to rest during the whole period." See page 81. On the 87th page of the same work, the writer says, "*Both in summer and winter* the slaves must be *in the field* by the *first dawn of day*." And yet he says, "the labor of the slave is *not* severe, except at the rolling of sugars!" The work abounds in eulogies of slavery.

In the "History of South Carolina and Georgia," vol. 1, p. 120, is the following: "*So laborious* is the task of raising, beating, and cleaning rice, that had it been possible to obtain European servants in sufficient numbers, *thousands and tens of thousands* MUST HAVE PERISHED."

In an article on the agriculture of Louisiana, published in the second number of the "Western Review" is the following:—"The work is admitted to be severe for the hands, (slaves) requiring, when the process of making sugar is commenced, TO BE PRESSED NIGHT AND DAY."

Mr. Philemon Bliss, of Ohio, in his letters from Florida, in 1835, says, "The negroes commence labor by daylight in the morning, and excepting the plowboys, who must feed and rest their horses, do not leave the field till dark in the evening."

Mr. Stone, in his letter from Natchez, an extract of which was given above, says, "It is a general rule on all regular plantations, that the slaves rise in season in the morning, to *be in the field as soon as it is light enough for them to see to work*, and remain there until it is *so dark that they cannot see*. This is the case at all seasons of the year."

President Edwards, in the sermon already extracted from, says, "The slaves are kept at hard labor from *five o'clock in the morning till nine at night*, excepting time to eat twice during the day."

Hon. R.J. Turnbull, a South Carolina slaveholder, already quoted, speaking of the harvesting of cotton, says: "*All the pregnant women even, on the plantation, and weak and sickly negroes incapable of other labor, are then in requisition.*" * * * See "Refutation of the Calumnies circulated against the Southern and Western States," by a South Carolinian.

[E](#): A late number of the "Western Medical Reformer" contains a dissertation by a Kentucky physician, on *Cachexia Africana*, or African consumption, in which the writer says—

"This form of disease deserves more attention from the medical profession than it has heretofore elicited. Among the causes may be named the mode and manner in which the negroes live. They are *crowded* together in a *small hut*, sometimes having an imperfect, and sometimes no floor—and seldom raised from the ground, illy ventilated, and surrounded with filth. Their diet and clothing, are also causes which might be enumerated as exciting agents. They live on a coarse, crude and unwholesome diet, and are imperfectly clothed, both summer and winter; sleeping upon filthy and frequently damp beds."

Hon. R.J. Turnbull, of South Carolina, whose testimony on another point has been given above, says of the slaves, that they live in "*clay cabins*, with clay chimneys," &c. Mr. Clay, a Georgia slaveholder, from whom an extract has been given already, says, speaking of the dwellings of the slaves, "Too many individuals of both sexes are crowded into one house, and the proper separation of apartments *cannot* be observed. That the slaves are insensible to the evils arising from it, does not in the least lessen the unhappy consequences." Clay's Address before the Presbytery of Georgia.—P. 13.

G: Rev. C.C. Jones, late of Georgia, now Professor in the Theological Seminary at Columbia, South Carolina, made a report before the presbytery of Georgia, in 1833, on the moral condition of the slave population, which report was published under the direction of the presbytery. In that report Mr. Jones says, "They, the slaves, are shut out from our sympathies and efforts as immortal beings, and are educated and disciplined as creatures of profit, and of profit only, for this world."

In a sermon preached by Mr. Jones, before two associations of planters, in Georgia, in 1831, speaking of the slaves he says, "They are a nation of HEATHEN in our very midst." "What have we done for our poor negroes? With shame we must confess that we have done NOTHING!" "How can you pray for Christ's kingdom to come while you are neglecting a people perishing for lack of vision around your very doors." "We withhold the Bible from our servants and keep them in ignorance of it, while we *will* not use the means to have it read and explained to them." Jones' Sermon, pp. 7, 9.

An official report of the Presbyterian Synod of South Carolina and Georgia, adopted at its session in Columbia, S.C., and published in the Charleston Observer of March 22, 1834, speaking of the slaves, says, "There are over *two millions of human beings*, in the condition of HEATHEN, and, in some respects, *in a worse condition!*" * * * "From long continued and close observation, we believe that their moral and religious condition is such, as that they may justly be considered the *heathen* of this Christian country, and will *bear comparison with heathen in any country in the world.*" * * * "The negroes are destitute of the privileges of the gospel, and *ever will be under the present state of things.*" Report, &c., p. 4.

A writer in the Church Advocate, published in Lexington, Ky., says, "The poor negroes are left in the ways of spiritual darkness, no efforts are being made for their enlightenment, no seed is being sown, nothing but a moral wilderness is seen, over which the soul sickens—the heart of Christian sympathy bleeds. Here nothing is presented but a moral waste, as *extensive as our influence*, as appalling as the valley of death."

The following is an extract of a letter from Bishop Andrew of the Methodist Episcopal Church, to Messrs. Garrit and Maffit, editors of the "Western

Methodist," then published at Nashville, Tennessee.

"*Augusta*, Jan. 29, 1835.

"The Christians of the South owe a heavy debt to slaves on their plantations, and the ministers of Christ especially are debtors to the whole slave population. I fear a cry goes up to heaven on this subject against us; and how, I ask, shall the scores who have left the ministry of the Word, that they may make corn and cotton, and buy and sell, and get gain, meet this cry at the bar of God? and what shall the hundreds of money-making and money-loving masters, who have grown rich by the toil and sweat of their slaves, and *left their souls to perish*, say when they go with them to the judgment of the great day?"

"The Kentucky Union for the moral and religious improvement of the colored race,"—an association composed of some of the most influential ministers and laymen of Kentucky, says in a general circular to the religious public, "To the female character among the black population, we cannot allude but with feelings of the bitterest shame. A similar condition of moral pollution, and utter disregard of a pure and virtuous reputation, is to be found only *without the pale of Christendom*. That such a state of society should exist in a Christian nation, without calling forth any particular attention to its existence, though ever before our eyes and in our families, is a moral phenomenon at once unaccountable and disgraceful."

Rev. James A. Thome, a native of Kentucky, and still residing there, said in a speech in New York, May 1834, speaking of licentiousness among the slaves, "I would not have you fail to understand that this is a *general* evil. Sir, what I now say, I say from deliberate conviction of its truth; that the slave states are Sodoms, and almost every village family is a brothel. (In this, I refer to the inmates of the kitchen, and not to the whites.)"

A writer in the "Western Luminary," published in Lexington, Ky., made the following declaration to the same point in the number of that paper for May 7, 1835: "There is one topic to which I will allude, which will serve to establish the heathenism of this population. I allude to the UNIVERSAL LICENTIOUSNESS which prevails. *Chastity is no virtue among them*—its violation neither injures female character in their own estimation, or that of their master or mistress—no instruction is ever given, *no censure*

pronounced. I speak not of the world. I SPEAK OF CHRISTIAN FAMILIES GENERALLY."

Rev. Mr. Converse, long a resident of Virginia, and agent of the Colonization Society, said, in a sermon before the Vt. C.S.—"Almost nothing is done to instruct the slaves in the principles and duties of the Christian religion. * * * The majority are emphatically *heathens*. * * Pious masters (with some honorable exceptions) are criminally negligent of giving religious instruction to their slaves. * * * They can and do instruct their own children, and *perhaps* their house servants; while those called "field hands" live, and labor, and die, without being told by their *pious* masters (?) that Jesus Christ died to save sinners."

The page is already so loaded with references that we forbear. For testimony from the mouths of slaveholders to the terrible lacerations and other nameless outrages inflicted on the slaves, the reader is referred to the number of the Anti-Slavery Record for Jan. 1837.

We now proceed to examine the various objections which will doubtless be set in array against all the foregoing conclusions.

OBJECTIONS CONSIDERED.

The advocates of slavery find themselves at their wit's end in pressing the Bible into their service. Every movement shows them hard pushed. Their ever-varying shifts, their forced constructions and blind guesswork, proclaim both their *cause* desperate, and themselves. Meanwhile their invocations for help to "those good old slaveholders and patriarchs, Abraham, Isaac, and Jacob,"^A sent up without ceasing from the midst of their convulsions, avail as little as did the screams and lacerations of the prophets of Baal to bring an answer of fire. The Bible defences thrown around slavery by the professed ministers of the Gospel, do so torture common sense, Scripture, and historical facts it were hard to tell whether absurdity, fatuity, ignorance, or blasphemy, predominates, in the compound; each strives so lustily for the mastery, it may be set down a drawn battle. How often has it been bruited that the color of the negro is the *Cain-mark*, propagated downward. Cain's posterity started an opposition to the ark, forsooth, and rode out the flood with flying streamers! How could miracle

be more worthily employed, or better vindicate the ways of God to man than by pointing such an argument, and filling out for slaveholders a Divine title-deed!

[A](#): The Presbytery of Harmony, South Carolina, at their meeting in Wainsborough, S.C., Oct. 28, 1836, appointed a special committee to report on slavery. The following resolution is a part of the report adopted by the Presbytery.

"Resolved, That slavery has existed from the days of those GOOD OLD SLAVEHOLDERS AND PATRIARCHS, Abraham, Isaac and Jacob, who are now in the kingdom of Heaven."

Abraham receives abundant honor at the hands of slave-holding divines. Not because he was the "father of the faithful," forsook home and country for the truth's sake, was the most eminent preacher and practiser of righteousness in his day; nay, verily, for all this he gets faint praise; but then he had "SERVANTS BOUGHT WITH MONEY!!!" This is the finishing touch of his character, and its effect on slaveholders is electrical. Prose fledges into poetry, cold compliments warm into praise, eulogy rarifies into panegyric and goes off in rhapsody. In their ecstasies over Abraham, Isaac's paramount claims to their homage are lamentably lost sight of. It is quite unaccountable, that in their manifold oglings over Abraham's "servants bought with money," no slaveholder is ever caught casting loving side-glances at Gen. xxvii. 29, 37, where Isaac, addressing Jacob, says, "Be *lord* over thy brethren and let thy mother's sons *bow down* to thee." And afterwards, addressing Esau, he says, speaking of the birth-right immunities confirmed to Jacob, "Behold I have made him thy *Lord* and all his brethren have I GIVEN TO HIM FOR SERVANTS!"

Here is a charter for slaveholding, under the sign manual of that "good old slaveholder and patriarch, Isaac." Yea, more—a "Divine Warrant" for a father holding his *children* as slaves and bequeathing them as property to his heirs! Better still, it proves that the favorite practice amongst our slaveholders of bequeathing their *colored* children to those of a different hue, was a "Divine institution," for Isaac "*gave*" Esau, who was "*red* all over," to Jacob, "*as a servant*." Now gentlemen, "honor to whom honor." Let Isaac no longer be stinted of the glory that is his due as the great

prototype of that "peculiar domestic institution," of which you are eminent patrons, that nice discrimination, by which a father, in his will, makes part of his children *property*, and the rest, their *proprietors*, whenever the propriety of such a disposition is indicated, as in the case of Jacob and Esau, by the decisive tokens of COLOR and HAIR, (for, to show that Esau was Jacob's *rightful* property after he was "given to him" by Isaac "for a servant," the difference in *hair* as well as color, is expressly stated by inspiration!)

One prominent feature of patriarchal example has been quite overlooked by slaveholders. We mean the special care of Isaac to inform Jacob that those "given to him as servants" were "HIS BRETHREN," (twice repeated.) The deep veneration of slaveholders for every thing patriarchal, clears them from all suspicion of *designedly* neglecting this authoritative precedent, and their admirable zeal to perpetuate patriarchal fashions, proves this seeming neglect, a mere *oversight*: and is an all-sufficient guarantee that henceforward they will religiously illustrate in their own practice, the beauty of this hitherto neglected patriarchal usage. True, it would be an odd codicil to a will, for a slaveholder, after bequeathing to *some* of his children, all his slaves, to add a supplement, informing them that such and such and such of them were their *brothers and sisters*. Doubtless it would be at first a sore trial also, but what *pious* slaveholder would not be sustained under it by the reflection that he was humbly following in the footsteps of his illustrious patriarchal predecessors!

Great reformers must make great sacrifices, and if the world is to be brought back to the purity of patriarchal times, upon whom will the ends of the earth come, to whom will all trembling hearts and failing eyes spontaneously turn as leaders to conduct the forlorn hope through the wilderness to that promised land, if not to slaveholders, those disinterested pioneers whose self-denying labors have founded far and wide the "patriarchal institution" of *concubinage*, and through evil report and good report, have faithfully stamped their own image and superscription, in variegated hues, upon the faces of a swarming progeny from generation to generation.

OBJECTION I. "*Cursed be Canaan, a servant of servants shall he be unto his brethren.*" Gen. ix. 25.

This prophecy of Noah is the *vade mecum* of slaveholders, and they never venture abroad without it; it is a pocket-piece for sudden occasion, a keepsake to dote over, a charm to spell-bind opposition, and a magnet to draw to their standard "whatsoever worketh abomination or maketh a lie." But "cursed be Canaan" is a poor drug to ease a throbbing conscience—a mocking lullaby to unquiet tossings. Those who justify negro slavery by the curse on Canaan, *assume* as usual all the points in debate. 1. That *slavery* was prophesied, rather than mere *service* to others, and *individual* bondage rather than *national* subjection and tribute. 2. That the *prediction* of crime justifies it; or at least absolves those whose crimes fulfil it. How piously the Pharaohs might have quoted the prophecy, "*Thy seed shall be a stranger in a land that is not theirs, and they shall afflict them four hundred years.*" And then, what saints were those that crucified the Lord of glory! 3. That the Africans are descended from Canaan. Africa was peopled from Egypt and Ethiopia, which countries were settled by Mizraim and Cush. For the location and boundaries of Canaan's posterity, see Gen. x. 15-19. So a prophecy of evil to one people, is quoted to justify its infliction upon another. Perhaps it may be argued that Canaan includes all Ham's posterity. If so, the prophecy is yet unfulfilled. The other sons of Ham settled Egypt and Assyria, and, conjointly with Shem, Persia, and afterward, to some extent, the Grecian and Roman empires. The history of these nations gives no verification of the prophecy. Whereas, the history of Canaan's descendants for more than three thousand years, is a record of its fulfillment. First, they were put to tribute by the Israelites; then by the Medes and Persians; then by the Macedonians, Grecians and Romans, successively; and finally, were subjected by the Ottoman dynasty, where they yet remain. Thus Canaan has been for ages the servant mainly of Shem and Japhet, and secondarily of the other sons of Ham. It may still be objected, that though Canaan alone is *named*, yet the 22d and 24th verses show the posterity of Ham in general to be meant. "And Ham, the father of Canaan, saw the nakedness of his father, and told his two brethren without." "And Noah awoke from his wine, and knew what his YOUNGER son had done unto him, and said," &c. It is argued that this "*younger* son" cannot be Canaan, as he was the *grandson* of Noah, and therefore it must be Ham. We answer, whoever that "*younger* son" was, Canaan alone was named in the curse. Besides, the Hebrew word *Ben*, signifies son, grandson, or *any one* of the posterity of an individual.^A "Know ye Laban, the SON (grandson) of

Nahor?" Gen. xxix. 5. "*Mephibosheth the SON (grandson) of Saul.*" 2 Sam. xix. 24; 2 Sam. ix. 6. "*The driving of Jehu the SON (grandson) of Nimshi.*" 2 Kings ix. 20. See also Ruth iv. 17; 2 Sam. xxi. 6; Gen. xxxi. 55. Shall we forbid the inspired writer to use the same word when speaking of Noah's grandson? Further, Ham was not the "*younger son.*" The order of enumeration makes him the *second* son. If it be said that Bible usage varies, the order of birth not always being observed in enumerations; the reply is, that, enumeration in that order, is the *rule*, in any other order the *exception*. Besides, if a younger member of a family takes precedence of older ones in the family record, it is a mark of pre-eminence, either in endowments, or providential instrumentality. Abraham, though sixty years younger than his eldest brother, stands first in the family genealogy. Nothing in Ham's history shows him pre-eminent; besides, the Hebrew word *Hākkātān* rendered "*the younger,*" means the *little, small*. The same word is used in Isa. lx. 22. "*A LITTLE ONE shall become a thousand.*" Isa. xxii. 24. "*All vessels of SMALL quantity.*" Ps. cxv. 13. "*He will bless them that fear the Lord both SMALL and great.*" Ex. xviii, 22. "*But every SMALL matter they shall judge.*" It would be a literal rendering of Gen. ix. 24, if it were translated thus, "when Noah knew what his little son," ^B or grandson (*Bēno Hākkātān*) "had done unto him, he said cursed be Canaan," &c. Further, even if the Africans were the descendants of Canaan, the assumption that their enslavement fulfils this prophecy, lacks even plausibility, for, only a *fraction* of the inhabitants of Africa have at any time been the slaves of other nations. If the objector say in reply, that a large majority of the Africans have always been slaves *at home*, we answer: *It is false in point of fact*, though zealously bruited often to serve a turn; and *if it were true*, how does it help the argument? The prophecy was, "Cursed be Canaan, a servant of servants shall he be *unto his BRETHREN,*" not *unto himself!*

^A: So *āv*, the Hebrew word for father, signifies any ancestor, however remote. 2 Chron. xvii. 3; xxviii. 1; xxxiv. 2; Dan. v. 2.

^B: The French follows the same analogy; *grandson* being *petit fils* (little son.)

OBJECTION II.—"*If a man smite his servant or his maid with a rod, and he die under his hand, he shall surely be punished. Notwithstanding, if he continue a day or two, he shall not be punished, for he is his money.*" Ex.

xxi. 20, 21. What was the design of this regulation? Was it to grant masters an indulgence to beat servants with impunity, and an assurance, that if they beat them to death, the offence should not be *capital*? This is substantially what commentators tell us. What Deity do such men worship? Some blood-gorged Moloch, enthroned on human hecatombs, and snuffing carnage for incense? Did He who thundered from Sinai's flames, "THOU SHALT NOT KILL," offer a bounty on *murder*? Whoever analyzes the Mosaic system, will often find a moot court in session, trying law points, settling definitions, or laying down rules of evidence. Num. xxxv. 10-22; Deut. xix. 4-6; Lev. xxiv. 19-22; Ex. xxi. 18, 19, are some of the cases stated, with tests furnished the judges by which to detect *the intent*, in actions brought before them. Their ignorance of judicial proceedings, laws of evidence, &c., made such instructions necessary. The detail gone into, in the verses quoted, is manifestly to enable them to get at the *motive* and find out whether the master *designed* to kill. 1. "If a man smite his servant with a *rod*."—The instrument used, gives a clue to the *intent*. See Num. xxxv. 16-18. A *rod*, not an axe, nor a sword, nor a bludgeon, nor any other death-weapon—hence, from the *kind* of instrument, no design to *kill* would be inferred; for *intent* to kill would hardly have taken a *rod* for its weapon. But if the servant "*die under his hand*," then the unfitness of the instrument, is point blank against him; for, striking with a *rod* so as to cause death, presupposed very many blows and great violence, and this kept up till the death-gasp, showed an *intent to kill*. Hence "He shall *surely* be punished." But if he continued a day or two, the *length of time that he lived*, the *kind* of instrument used, and the master's pecuniary interest in his *life*, ("he is his *money*,") all made a strong case of presumptive evidence, showing that the master did not *design* to kill. Further, the word *nākām*, here rendered *punished*, occurs thirty-five times in the Old Testament, and in almost every place is translated "*avenge*," in a few, "*to take vengeance*," or "*to revenge*," and in this instance ALONE, "*punish*." As it stands in our translation, the pronoun preceding it, refers to the *master*, whereas it should refer to the *crime*, and the word rendered *punished*, should have been rendered *avenged*. The meaning is this: If a man smite his servant or his maid with a rod, and he die under his hand, IT (the death) shall surely be avenged, or literally, *by avenging it shall be avenged*; that is, the *death* of the servant shall be *avenged* by the *death* of the master. So in the next verse, "If he continue a day or two," his death is not to be avenged by the *death* of the

master, as in that case the crime was to be adjudged *manslaughter*, and not *murder*. In the following verse, another case of personal injury is stated, for which the injurer is to pay *a sum of money*; and yet our translators employ the same phraseology in both places! One, an instance of deliberate, wanton, killing by piecemeal; the other, an accidental, and comparatively slight injury—of the inflicter, in both cases, they say the same thing! Now, just the discrimination to be looked for where GOD legislates, is marked in the original. In the case of the servant wilfully murdered, He says, "It (the death) shall surely be *avenged*," that is, the life of the wrong doer shall expiate the crime. The same word is used in the Old Testament, when the greatest wrongs are redressed, by devoting the perpetrators to *destruction*. In the case of the unintentional injury, in the following verse, God says, "He shall surely be *fined*, (*ānāsh*.) "He shall *pay* as the judges determine." The simple meaning of the word *ānāsh*, is to lay a fine. It is used in Deut. xxii. 19: "They shall *amerce* him in one hundred shekels," and in 2 Chron. xxxvi. 3: "He condemned (*mulcted*) the land in a hundred talents of silver and a talent of gold." That *avenging* the death of the servant, was neither imprisonment, nor stripes, nor a fine but that it was *taking the master's life* we infer, 1. From the *use* of the word *nākām*. See Gen. iv. 24; Josh. x. 13; Judg. xv. 7; xvi. 28; 1 Sam. xiv. 24; xviii. 25; xxv. 31; 2 Sam. iv. 8; Judg. v. 2; 1 Sam. xxv. 26-33. 2. From the express statute, Lev. xxiv. 17: "He that killeth ANY man shall surely be put to death." Also, Num. xxxv. 30, 31: "Whoso killeth ANY person, the murderer shall be put to death. Moreover, ye shall take NO SATISFACTION for the life of a murderer which is guilty of death, but he shall surely be put to death." 3. The Targum of Jonathan gives the verse thus, "Death by the sword shall surely be adjudged." The Targum of Jerusalem, "Vengeance shall be taken for him to the *uttermost*." Jarchi, the same. The Samaritan version: "He shall die the death." Again, the clause "for he is his money," is quoted to prove that the servant is his master's property, and therefore, if he died, the master was not to be punished. The assumption is, that the phrase, "HE IS HIS MONEY," proves not only that the servant is *worth money* to the master, but that he is an *article of property*. If the advocates of slavery insist upon taking this principle of interpretation into the Bible, and turning it loose, let them stand and draw in self-defence. If they endorse for it at one point, they must stand sponsors all around the circle. It will be too late to cry for quarter when its stroke clears the table, and tilts them among the sweepings beneath. The

Bible abounds with such expressions as the following: "This (bread) *is* my body;" "all they (the Israelites) *are* brass and tin;" this (water) *is* the blood of the men who went in jeopardy of their lives;" "the Lord God *is* a sun;" "the seven good ears *are* seven years;" "the tree of the field *is* man's life;" "God *is* a consuming fire;" "he *is* his money," &c. A passion for the exact *literalities* of the Bible is too amiable, not to be gratified in this case. The words in the original are (*Káspo-hu*,) "his *silver* is he." The objector's principle of interpretation is a philosopher's stone! Its miracle touch transmutes five feet eight inches of flesh and bones into *solid silver*! Quite a *permanent* servant, if not so nimble withal—reasoning against "*forever*," is forestalled henceforth, and, Deut. xxiii. 15, quite outwitted. The obvious meaning of the phrase, "*He is his money*," is, he is *worth money* to his master, and since, if the master had killed him, it would have taken money out of his pocket, the *pecuniary loss*, the *kind of instrument used*, and the *fact of his living sometime after the injury*, (if the master *meant* to kill, he would be likely to *do* it while about it.) all together make a strong case of presumptive evidence clearing the master from *intent to kill*. But let us look at the objector's *inferences*. One is, that as the master might dispose of his *property* as he pleased, he was not to be punished, if he destroyed it. Whether the servant died under the master's hand, or after a day or two, he was *equally* his property, and the objector admits that in the *first* case the master is to be "surely punished" for destroying *his own property*! The other inference is, that since the continuance of a day or two, cleared the master of *intent to kill*, the loss of the servant would be a sufficient punishment for inflicting the injury which caused his death. This inference makes the Mosaic law false to its own principles. A *pecuniary loss* was no part of the legal claim, where a person took the *life* of another. In such case, the law spurned money, whatever the sum. God would not cheapen human life, by balancing it with such a weight. "Ye shall take NO SATISFACTION for the life of a murderer, but he shall surely be put to death." Num. xxxv. 31. Even in excusable homicide, where an axe slipped from the helve and killed a man, no sum of money availed to release from confinement in the city of refuge, until the death of the High Priest. Num. xxxv. 32. The doctrine that the loss of the servant would be a penalty *adequate* to the desert of the master, admits his *guilt* and his desert of *some* punishment, and it prescribes a kind of punishment, rejected by the law, in all cases where man took the life of man, whether with or without intent to kill. In short, the objector

annuls an integral part of the system—makes a *new* law, and coolly metes out such penalty as he thinks fit. Divine legislation revised and improved! The master who struck out his servant's tooth, whether intentionally or not, was required to set him free. The *pecuniary* loss to the master was the same as though he had killed him. Look at the two cases. A master beats his servant so that he dies of his wounds; another accidentally strikes out his servant's tooth,—*the pecuniary loss of both masters is the same*. If the loss of the servant's services is punishment sufficient for the crime of killing him, would God command the same punishment for the accidental knocking out of a *tooth*? Indeed, unless the injury was done *inadvertently*, the loss of the servant's services was only a part of the punishment—mere reparation to the *individual* for injury done; the main punishment, that strictly *judicial*, was reparation to the *community*. To set the servant *free*, and thus proclaim his injury, his right to redress, and the measure of it—answered not the ends of *public* justice. The law made an example of the offender, that "those that remain might hear and fear." "If a man cause a blemish in his neighbor, as he hath done, so shall it be done unto him. Breach for breach, eye for eye, tooth for tooth. Ye shall have one manner of law as well for the STRANGER as for one of your own country." Lev. xxiv. 19, 20, 22. Finally, if a master smote out *his* servant's tooth, the law smote out his tooth—thus redressing the *public* wrong; and it cancelled the servant's obligation to the master, thus giving some compensation for the injury done, and exempting him from perilous liabilities in future.

OBJECTION III. "Both thy bondmen and bondmaids which thou shalt have, shall be of the heathen that are round about you, of them shall ye buy bondmen and bondmaids. Moreover of the children of the strangers that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land, and they shall be your possession. And ye shall take them as an inheritance for your children after you, to inherit them for a possession; they shall be your bondmen forever." Lev. xxv. 44-46.

The *points* in these verses, urged as proof, that the Mosaic system sanctioned slavery, are 1. The word "BONDMEN." 2. "BUY." 3.

"INHERITANCE AND POSSESSION." 4. "FOREVER."

We will now ascertain what sanction to slavery is derivable from these terms.

1. "BONDMEN." The fact that servants from the heathen are called "*bondmen*," while others are called "*servants*," is quoted as proof that the former were slaves. As the caprices of King James' translators were not inspired, we need stand in no special awe of them. The word here rendered bondmen is uniformly rendered servants elsewhere. The Hebrew word "*ēbēdh*," the plural of which is here translated "*bondmen*," is often applied to Christ. "Behold my *servant* (bondman, slave?) whom I uphold." Isa. xlii. 1. "Behold my *servant* (Christ) shall deal prudently." Isa. lii. 13. "And he said it is a light thing that thou (Christ) shouldst be my *servant*." Isa. xlix. 6. "To a *servant* of rulers." Isa. xlix. 7. "By his knowledge shall my righteous *servant* (Christ) justify many." Is. liii. 11. "Behold I will bring forth my *servant* the BRANCH." Zech. iii. 8. In 1 Kings xii. 6, 7, it is applied to King Rehoboam. "And they spake unto him, saying if thou wilt be a *servant* unto this people, then they will be thy *servants* forever." In 2 Chron. xii. 7, 8, 9, 13, to the king and all the nation. The word is used to designate those who perform service for *individuals or families*, about thirty-five times in the Old Testament. To designate *tributaries* about twenty-five times. To designate the *subjects of government*, about thirty-three times. To designate the worshippers both of the true God, and of false gods, about seventy times. It is also used in salutations and courteous addresses nearly one hundred times. In fine, the word is applied to all persons doing service for others, and that *merely to designate them as the performers of such service*, whatever it might be, or whatever the ground on which it might be rendered. To argue from the fact, of this word being used to designate domestic servants, that they were made servants by *force*, worked without pay, and held as articles of property, is such a gross assumption and absurdity as to make formal refutation ridiculous. We repeat what has been shown above, that the word rendered bondmen in Lev. xxv. 44, is used to point out persons rendering service for others, totally irrespective of the principle on which that service was rendered; as is manifest from the fact that it is applied indiscriminately to tributaries, to domestics, to all the subjects of governments, to magistrates, to all governmental officers, to younger sons—defining their relation to the first born, who is called *lord*

and *ruler*—to prophets, to kings, and to the Messiah. To argue from the meaning of the word *ěbēdh* as used in the Old Testament, that those to whom it was applied rendered service against their will, and without pay, does violence to the scripture use of the term, sets at nought all rules of interpretation, and outrages common sense. If *any* inference as to the meaning of the term is to be drawn from the condition and relations of the various classes of persons, to whom it is applied, the only legitimate one would seem to be, that the term designates a person who renders service to another in return for something of value received from him. The same remark applies to the Hebrew verb *ābādh*, to serve, answering to the noun *ěbēdh* (servant). It is used in the Old Testament to describe the *serving* of tributaries, of worshippers, of domestics, of Levites, of sons to a father, of younger brothers to the elder, of subjects to a ruler, of hirelings, of soldiers, of public officers to the government, of a host to his guests, &c. Of these it is used to describe the serving of *worshippers* more than forty times, of *tributaries*, about thirty five, and of servants or domestics, about *ten*.

If the Israelites not only held slaves, but multitudes of them, if Abraham had thousands, and if they abounded under the Mosaic system, why had their language no word that *meant* slave? That language must be woefully poverty-stricken, which has no signs to represent the most common and familiar objects and conditions. To represent by the same word, and without figure, property, and the owner of that property, is a solecism. Ziba was an "*ěbēdh*," yet he "*owned*" (!) twenty *ěbēdhs*! In our language, we have both *servant* and *slave*. Why? Because we have both the *things*, and need *signs* for them. If the tongue had a sheath, as swords have scabbards, we should have some *name* for it: but our dictionaries give us none. Why? Because there is no such *thing*. But the objector asks, "Would not the Israelites use their word *ěbēdh* if they spoke of the slave of a heathen?" Answer. Their *national* servants or tributaries, are spoken of frequently, but domestics servants so rarely, that no necessity existed, even if they were slaves, for coining a new word. Besides, the fact of their being domestics, under *heathen laws and usages*, proclaimed their liabilities; their *locality* made a *specific* term unnecessary. But if the Israelites had not only *servants*, but a multitude of *slaves*, a *word meaning slave*, would have been indispensable for every day convenience. Further, the laws of the Mosaic system were so many sentinels on the outposts to warn off foreign practices. The border

ground of Canaan, was quarantine ground, enforcing the strictest non-intercourse in usages between the without and the within.

2. "BUY." The *buying* of servants, is discussed at length. pp. [17-23](#). To that discussion the reader is referred. We will add in this place but a single consideration. This regulation requiring the Israelites to "*buy*" servants of the heathen, prohibited their taking them without buying. *Buying* supposes two parties: a *price* demanded by one and paid by the other, and consequently, the *consent* of both buyer and seller, to the transaction. Of course the command to the Israelites to *buy* servants of the heathen, prohibited their getting them unless they first got *somebody's* consent to the transaction, and paid to *somebody* a fair equivalent. Now, who were these *somebodies*? This at least is plain, they were not *Israelites*, but heathen. "Of *them* shall ye buy." Who then were these *somebodies*, whose right was so paramount, that *their* consent must be got and the price paid must go into *their* pockets? Were they the persons themselves who became servants, or some *other* persons. "Some *other* persons to be sure," says the objector, "the countrymen or the neighbors of those who become servants." Ah! this then is the import of the Divine command to the Israelites.

"When you go among the heathen round about to get a man to work for you, I straightly charge you to go first to his *neighbors*, get *their* consent that you may have him, settle the terms with *them*, and pay to them a fair equivalent. If it is not *their* choice to let him go, I charge you not to take him on your peril. If *they* consent, and you pay *them* the full value of his labor, then you may go and catch the man and drag him home with you, and make him work for you, and I will bless you in the work of your hands and you shall eat of the fat of the land. As to the man himself, his choice is nothing, and you need give him nothing for his work: but take care and pay his *neighbors* well for him, and respect *their* free choice in taking him, for to deprive a heathen man by force and without pay of the *use of himself* is well pleasing in my sight, but to deprive his heathen neighbors of the use of him is that abominable thing which my soul hateth."

3. "FOREVER." This is quoted to prove that servants were to serve during their life time, and their posterity from generation to generation.^{[A](#)} No such idea is contained in the passage. The word "forever," instead of defining the length of *individual* service, proclaims the permanence of the regulation

laid down in the two verses preceding, namely, that their *permanent domestics* should be of the *Strangers*, and not of the Israelites; it declares the duration of that general provision. As if God had said, "You shall *always* get your *permanent* laborers from the nations round about you; your servants shall *always* be of that class of persons." As it stands in the original, it is plain—"Forever of them shall ye serve yourselves." This is the literal rendering.

A: One would think that the explicit testimony of our Lord should for ever forestall all cavil on this point. "*The servant abideth not in the house FOR EVER, but the Son, abideth ever.*" John viii. 35.

That "*forever*" refers to the permanent relations of a *community*, rather than to the services of *individuals*, is a fair inference from the form of the expression, "Both thy bondmen, &c., shall be of the *heathen*. OF THEM shall ye buy." "They shall be your possession." "THEY shall be your bondmen forever." "But over your brethren the CHILDREN OF ISRAEL," &c. To say nothing of the uncertainty of *these individuals* surviving those *after* whom they are to live, the language used applies more naturally to a *body* of people, than to *individual* servants. Besides *perpetual* service cannot be argued from the term *forever*. The ninth and tenth verses of the same chapter limit it absolutely by the jubilee. "Then thou shalt cause the trumpet of the jubilee to sound * * throughout ALL your land." "And ye shall proclaim liberty throughout all the land unto ALL the inhabitants thereof." It may be objected that "inhabitants" here means *Israelitish* inhabitants alone. The command is, "Proclaim liberty throughout all the land unto ALL *the inhabitants thereof*." Besides, in the sixth verse, there is an enumeration of the different classes of the inhabitants, in which servants and Strangers are included; and in all the regulations of the jubilee, and the sabbatical year, the Strangers are included in the precepts, prohibitions, and promises. Again: the year of jubilee was ushered in by the day of atonement. What did these institutions show forth? The day of atonement prefigured the atonement of Christ, and the year of jubilee, the gospel jubilee. And did they prefigure an atonement and a jubilee to *Jews* only? Were they types of sins remitted, and of salvation proclaimed to the nation of Israel alone? Is there no redemption for us Gentiles in these ends of the earth, and is our hope presumption and impiety? Did that old partition wall survive the shock that made earth quake, and hid the sun, burst graves and

rocks, and rent the temple veil? and did the Gospel only rear it higher to thunder direr perdition from its frowning battlements on all without? No! The God of OUR salvation lives. "Good tidings of great joy shall be to ALL people." One shout shall swell from all the ransomed, "Thou hast redeemed us unto God by thy blood out of EVERY kindred, and tongue, and people, and nation."

To deny that the blessings of the jubilee extended to the servants from the *Gentiles*, makes Christianity *Judaism*.^A It not only eclipses the glory of the Gospel, but strikes out its sun. The refusal to release servants at the jubilee falsified and disannulled a grand leading type of the atonement, and was a libel on the doctrine of Christ's redemption. But even if *forever* did refer to *individual* service, we have ample precedents for limiting the term by the jubilee. The same word defines the length of time which *Jewish* servants served who did not go out at the end of their six years' term. And all admit that they went out at the jubilee. Ex. xxi. 2-6; Deut. xv. 12-17. The 23d verse of the same chapter is quoted to prove that "*forever*" in the 46th verse extends beyond the jubilee. "The land shall not be sold FOREVER, for the land is mine"—since it would hardly be used in different senses in the same general connection. As *forever*, in the 46th verse, respects the *general arrangement*, and not *individual service* the objection does not touch the argument. Besides, in the 46th verse, the word used is *Olam*, meaning *throughout the period*, whatever that may be. Whereas in the 23d verse, it is *Tsemithuth*, meaning, a *cutting off*, or *to be cut off*; and the import of it is, that the owner of an inheritance shall not forfeit his *proprietaryship* of it; though it may for a time pass from his control into the hands of his creditors or others, yet the owner shall be permitted to *redeem* it, and even if that be not done, it shall not be "*cut off*," but shall revert to him at the jubilee.

^A: So far from the Strangers not being released by the proclamation of liberty on the morning of the jubilee, they were the only persons who were, as a body, released by it. The rule regulating the service of Hebrew servants was, "Six years shall he serve, and in the seventh year he shall go out free." The *free holders* who had "fallen into decay," and had in consequence mortgaged their inheritances to their more prosperous neighbors, and become in some sort their servants, were released by the jubilee, and again resumed their inheritances. This was the only class of Jewish servants (and

it could not have been numerous,) which was released by the jubilee; all others went out at the close of their six years' term.

3. "INHERITANCE AND POSSESSION." "Ye shall take them as an INHERITANCE for your children after you to inherit them for a POSSESSION. This, as has been already remarked refers to the *nations*, and not to the *individual* servants procured from the senations. The holding of servants as a *possession* is discussed at large pp. [47-64](#). To what is there advanced we here subjoin a few brief considerations. We have already shown, that servants could not be held as a *property* possession, and inheritance; that they became such of their *own accord*, were paid wages, released from their regular labor nearly *half the days in each year*, thoroughly *instructed* and *protected* in all their personal, social, and religious rights, equally with their masters. All remaining, after these ample reservations, would be small temptation, either to the lust of power or of lucre; a profitable "possession" and "inheritance," truly! What if our American slaves were all placed in *just such a condition*! Alas, for that soft, melodious circumlocution, "OUR PECULIAR species of property!" Verily, emphasis would be cadence, and euphony and irony meet together! What eager snatches at mere words, and bald technics, irrespective of connection, principles of construction, Bible usages, or limitations of meaning by other passages—and all to eke out such a sense as sanctifies existing usages, thus making God pander for lust. The words *nahal* and *nahala*, inherit and inheritance, by no means necessarily signify *articles of property*. "The people answered the king and said, "we have none *inheritance* in the son of Jesse." 2 Chron. x. 16. Did they mean gravely to disclaim the holding of their king as an article of *property*? "Children are an *heritage* (inheritance) of the Lord." Ps. cxxvii. 3. "Pardon our iniquity, and take us for thine *inheritance*." Ex. xxxiv. 9. When God pardons his enemies, and adopts them as children, does he make them *articles of property*? Are forgiveness, and chattel-making, synonyms? "*I am their inheritance*." Ezek. xlv. 28. "I shall give thee the heathen for thine *inheritance*." Ps. ii. 18. See also Deut. iv. 20; Josh. xiii. 33; Ps. lxxxii. 8; lxxviii. 62, 71; Prov. xiv. 18.

The question whether the servants were a PROPERTY-"*possession*," has been already discussed, pp. [47-64](#), we need add in this place but a word. As an illustration of the condition of servants from the heathen that were the "possession" of Israelitish families, and of the way in which they became

servants, the reader is referred to Isa. xiv. 1, 2. "For the Lord will have mercy on Jacob, and will yet choose Israel, and set them in their own land; and the strangers will be *joined* with them, and *they shall CLEAVE to the house of Jacob*. And the people shall take them and bring them to their place, and the house of Israel shall *possess* them in the land of the Lord for servants and handmaids; and they shall take them captives, whose captives they were; and they shall rule over the oppressors."

We learn from these verses, 1st. That these servants which were to be "*possessed*" by the Israelites, were to be "joined with them," i.e., become proselytes to their religion. 2d. That they should "CLEAVE to the house of Jacob," i.e., that they would forsake their own people voluntarily, attach themselves to the Israelites as servants, and of their own free choice leave home and friends, to accompany them on their return, and to take up their permanent abode with them, in the same manner that Ruth accompanied Naomi from Moab to the land of Israel, and that the "souls gotten" by Abraham in Padanaram, accompanied him when he left it and went to Canaan. "And the house of Israel shall *possess* them for servants," i.e. shall *have* them for servants.

In the passage under consideration, "they shall be your *possession*," the original word translated "possession" is *ahuzza*. The same word is used in Gen. xlvii. 11. "And Joseph placed his father and his brethren, and gave them a *possession* in the land of Egypt." Gen. xlvii. 11. In what sense was Goshen the *possession* of the Israelites? Answer, in the sense of *having it to live in*, not in the sense of having it as *owners*. In what sense were the Israelites to *possess* these nations, and *take them* as an *inheritance for their children*? Answer, they possessed them as a permanent source of supply for domestic or household servants. And this relation to these nations was to go down to posterity as a standing regulation, having the certainty and regularity of a descent by inheritance. The sense of the whole regulation may be given thus: "Thy permanent domestics, which thou shalt have, shall be of the nations that are round about you, of *them* shall ye buy male and female domestics." "Moreover of the children of the foreigners that do sojourn among you, of *them* shall ye buy, and of their families that are with you, which they begat in your land, and *they* shall be your permanent resource." "And ye shall take them as a *perpetual* source of supply to whom your children after you shall resort for servants. ALWAYS, of *them* shall ye

serve yourselves." The design of the passage is manifest from its structure. So far from being a permission to purchase slaves, it was a prohibition to employ Israelites for a certain term and in a certain grade of service, and to point out the *class* of persons from which they were to get their supply of servants, and the way in which they were to get them.^{[A](#)}

^{[A](#)}: Rabbi Leeser, who translated from the German the work entitled "Instruction in the Mosaic Religion" by Professor Jholson of the Jewish seminary at Frankfort-on-the-Main, in his comment on these verses, says, "It must be observed that it was prohibited to SUBJECT *a Stranger to slavery*. The *buying* of slaves *alone* is permitted, but not stealing them."

Now whatever we call that condition in which servants were, whether servitude or slavery, and whatever we call the persons in that condition, whether servants or *slaves*, we have at all events, the testimony that the Israelites were prohibited to *subject* a Stranger to that condition, or in other words, the free choice of the servant was not to be compelled.

OBJECTION IV. "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a BOND-SERVANT but as an HIRED-SERVANT, and as a sojourner shall he be with thee, and shall serve thee unto the year of jubilee." Lev. xxv. 39, 40.

As only *one* class is called "*hired*," it is inferred that servants of the other class were *not paid* for their labor. That God, while thundering anathemas against those who "used their neighbor's service without wages," granted a special indulgence to his chosen people to force others to work, and rob them of earnings, provided always, in selecting their victims, they spared "the gentlemen of property and standing," and pounced only upon the strangers and the common people. The inference that "*hired*" is synonymous with *paid*, and that those servants not *called* "*hired*," were *not paid* for their labor, is a mere assumption. The meaning of the English verb to *hire*, is to procure for a *temporary* use at a certain price—to engage a person to temporary service for wages. That is also the meaning of the Hebrew word "*saukar*." It is not used when the procurement of *permanent* service is spoken of. Now, we ask, would *permanent* servants, those who

constituted a stationary part of the family, have been designated by the same term that marks *temporary* servants? The every-day distinctions in this matter, are familiar as table-talk. In many families the domestics perform only the *regular* work. Whatever is occasional merely, as the washing of a family, is done by persons hired expressly for the purpose. The familiar distinction between the two classes, is "servants," and "hired help," (not *paid* help.) *Both* classes are *paid*. One is permanent, and the other occasional and temporary, and *therefore* in this case called "hired."^A A variety of particulars are recorded distinguishing, *hired* from *bought* servants. 1. Hired servants were paid daily at the close of their work. Lev. xix. 13; Deut. xxiv. 14, 15; Job. vii. 2; Matt. xx. 8. "*Bought*" servants were paid in advance, (a reason for their being called *bought*,) and those that went out at the seventh year received a *gratuity*. Deut. xv. 12, 13. 2. The "hired" were paid *in money*, the "bought" received their *gratuity*, at least, in grain, cattle, and the product of the vintage. Deut. xv. 14. 3. The "hired" *lived* in their own families, the "bought" were a part of their masters' families. 4. The "hired" supported their families out of their wages; the "bought" and their families were supported by the master *beside* their wages. 5. Hired servants were expected to work more *constantly*, and to have more *working hours* in the day than the bought servants. This we infer from the fact, that "a hireling's day," was a sort of proverbial phrase, meaning a *full* day. No subtraction of time being made from it. So a *hireling's year* signifies an entire year without abatement. Job. vii. 1; xiv. 6; Isa. xvi. 14; xxi. 16.

^A: To suppose a servant robbed of his earnings because he is not called a *hired* servant, is profound induction! If I employ a man at twelve dollars a month to work my farm, he is my "*hired*" man, but if *I give him such a portion of the crop*, or in other words, if he works my farm "*on shares*," every farmer knows that he is no longer called a "*hired*" man. Yet he works the same farm, in the same way, at the same times, and with the same teams and tools; and does the same amount of work in the year, and perhaps clears twenty dollars a month, instead of twelve. Now as he is no longer called "hired," and as he still works my farm, suppose my neighbors sagely infer, that since he is not my "*hired*" laborer, I *rob* him of his earnings, and with all the gravity of owls, pronounce their oracular decision, and hoot it

abroad. My neighbors are deep divers! like some theological professors, they go not only to the bottom but come up covered with the tokens.

The "bought" servants, were, *as a class, superior to the hired*—were more trust-worthy, were held in higher estimation, had greater privileges, and occupied a more elevated station in society. 1. They were intimately incorporated with the family of the master, were guests at family festivals, and social solemnities, from which hired servants were excluded. Lev. xxii. 10, 11; Ex. xii. 43, 45. 2. Their interests were far more identified with those of their masters' family. They were often, actually or prospectively, heirs of their masters' estates, as in the case of Eliezer, of Ziba, and the sons of Bilhah, and Zilpah. When there were no sons, or when they were unworthy, bought servants were made heirs. Prov. xvii. 2. We find traces of this usage in the New Testament. "But when the husbandmen saw him, they reasoned among themselves saying, this is the *heir*, come let us kill him, *that the inheritance may be ours*." Luke xx. 14. In no instance does a *hired* servant inherit his master's estate. 3. Marriages took place between servants and their master's daughters. "Sheshan had a *servant*, an Egyptian, whose name was Jarha. And Sheshan gave his daughter to Jarha his servant to wife." 1 Chron. ii. 34, 35. There is no instance of a *hired* servant forming such an alliance. 4. Bought servants and their descendants were treated with the same affection and respect as the other members of the family.^A The treatment of Abraham's servants. Gen. xxiv. and xviii. 1-7; the intercourse between Gideon and Phurah Judg. vii. 10, 11; Saul and his servant, 1 Sam. ix. 5, 22; Jonathan and his servant, 1 Sam. xiv. 1-14, and Elisha and Gehazi are illustrations. The tenderness exercised towards home-born servants or the children of *handmaids*, and the strength of the tie that bound them to the family, are employed by the Psalmist to illustrate the regard of God for him, his care over him, and his own endearing relation to him, when in the last extremity he prays, "Save the son of thy *handmaid*." Ps. lxxxvi. 16. So also in Ps. cxvi. 16. Oh Lord, truly I am thy servant; I am thy servant, and the son of thy *handmaid*. Also, Jer. ii. 14. Is Israel a servant? Is he a *home-born*?^B WHY IS HE SPOILED? No such tie seems to have existed between *hired* servants and their masters. Their untrustworthiness was proverbial. John x. 12, 13. They were reckoned at but half the value of bought servants. Deut. xv. 18. None but the *lowest class* of the people engaged as hired servants, and the kinds of labor assigned to them required little knowledge

and skill. No persons seem to have become hired servants except such as were forced to it from extreme poverty. The hired servant is called "poor and needy," and the reason assigned by God why he should be paid as soon as he had finished his work is, "For *he is poor*, and setteth his heart upon it." Deut. xxiv. 14, 15. See also, 1 Sam. ii. 5. Various passages show the low repute and trifling character of the class from which they were hired. Judg. ix. 4; 1 Sam. ii. 5. The superior condition of bought servants is manifest in the high trust confided to them, and in their dignity and authority in the household. In no instance is a *hired* servant thus distinguished. The *bought* servant is manifestly the master's representative in the family, sometimes with plenipotentiary powers over adult children, even negotiating marriage for them. Abraham adjured his servant, not to take a wife for Isaac of the daughters of the Canaanites. The servant himself selected the individual. Servants exercised discretionary power in the management of their masters' estates, "And the servant took ten camels of the camels of his master, *for all the goods of his master were in his hand*." Gen. xxiv. 10. The reason assigned is not that such was Abraham's direction, but that the servant had discretionary control. Servants had also discretionary power in the *disposal of property*. Gen. xxiv. 22, 30, 53. The condition of Ziba in the house of Mephibosheth, is a case in point. So is Prov. xvii. 2. Distinct traces of this estimation are to be found in the New Testament, Matt. xxiv. 45; Luke xii. 42, 44. So in the parable of the talents, the master seems to have set up each of his servants in trade with a large capital. The unjust steward had large *discretionary* power, was "accused of wasting his master's goods," and manifestly regulated with his debtors the *terms* of settlement. Luke xvi. 4-8. Such trusts were never reposed in *hired* servants.

A: "For the *purchased servant* who is an Israelite, or proselyte, shall fare as his master. The master shall not eat fine bread, and his servant bread of bran. Nor yet drink old wine, and give his servant new: nor sleep on soft pillows, and bedding, and his servant on straw. I say unto you, that he that gets a *purchased* servant does well to make him as his friend, or he will prove to his employer as if he got himself a master."—Maimonides, in Mishna Kiddushim. Chap. 1, Sec. 2.

B: Our translators in rendering it "Is he a home-born SLAVE," were wise beyond what is written.

The inferior condition of *hired* servants, is illustrated in the parable of the prodigal son. When he came to himself, the memory of his home, and of the abundance enjoyed by even the *lowest* class of servants in his father's household, while he was perishing with hunger among the swine and husks, so filled him with anguish at the contrast, that he exclaimed, "How many *hired* servants of my father, have bread enough and to spare, and I perish with hunger." His proud heart broke. "I will arise," he cried, "and go to my father;" and then to assure his father of the depth of his humility, resolved to add; "Make me as one of thy *hired* servants." If *hired* servants were the *superior* class—to bespeak the situation, savored little of that sense of unworthiness that seeks the dust with hidden face, and cries "unclean." Unhumbled nature *climbs*; or if it falls, clings fast, where first it may. Humility sinks of its own weight, and in the lowest deep, digs lower. The design of the parable was to illustrate on the one hand, the joy of God, as he beholds afar off, the returning sinner "seeking an injured father's face," who runs to clasp and bless him with an unchiding welcome; and on the other, the contrition of the penitent, turning homeward with tears from his wanderings, his stricken spirit breaking with its ill-desert he sobs aloud, "The lowest place, *the lowest place*, I can abide no other." Or in those inimitable words, "Father I have sinned against Heaven, and in thy sight, and am no more worthy to be called thy son; make me as one of thy HIRED servants." The supposition that *hired* servants were the *highest* class, takes from the parable an element of winning beauty and pathos.

It is manifest to every careful student of the Bible, that *one* class of servants, was on terms of equality with the children and other members of the family. Hence the force of Paul's declaration, Gal. iv. 1, "Now I say unto you, that the heir, so long as he is a child, DIFFERETH NOTHING FROM A SERVANT, though he be lord of all." If this were the *hired* class, the prodigal was a sorry specimen of humility. Would our Lord have put such language upon the lips of one held up by himself, as a model of gospel humility, to illustrate its deep sense of all ill-desert? If this is *humility*, put it on stilts, and set it a strutting, while pride takes lessons, and blunders in aping it.

Israelites and Strangers belonged indiscriminately to *each* class of the servants, the *bought* and the *hired*. That those in the former class, whether Jews or Strangers, rose to honors and authority in the family circle, which

were not conferred on *hired* servants, has been shown. It should be added, however, that in the enjoyment of privileges, merely *political*, the hired servants from the *Israelites*, were more favored than even the bought servants from the *Strangers*. No one from the *Strangers*, however wealthy or highly endowed, was eligible to the highest office, nor could he own the soil. This last disability seems to have been one reason for the different periods of service required of the two classes of bought servants. The Israelite was to serve six years—the *Stranger* until the jubilee. As the *Strangers* could not own the soil, nor houses, except within walled towns, they would naturally attach themselves to Israelitish families. Those who were wealthy, or skilled in manufactures, instead of becoming servants would need servants for their own use, and as inducements for the *Strangers* to become servants to the *Israelites*, were greater than persons of their own nation could hold out to them, these wealthy *Strangers* would naturally procure the poorer *Israelites* for servants. Lev. xxv. 47. In a word, such was the political condition of the *Strangers*, that the Jewish polity offered a virtual bounty, to such as would become permanent servants, and thus secure those privileges already enumerated, and for their children in the second generation a permanent inheritance. Ezek. xlvii. 21-23. None but the monied aristocracy would be likely to decline such offers. On the other hand, the *Israelites*, owning all the soil, and an inheritance of land being a sacred possession, to hold it free of incumbrance was with every *Israelite*, a delicate point, both of family honor and personal character. 1 Kings xxi. 3. Hence, to forego the control of one's inheritance, after the division of the paternal domain, or to be kept out of it after having acceded to it, was a burden grievous to be borne. To mitigate as much as possible such a calamity, the law released the Israelitish servant at the end of six^A years; as, during that time—if of the first class—the partition of the patrimonial land might have taken place or, if of the second, enough money might have been earned to disencumber his estate, and thus he might assume his station as a lord of the soil. If neither contingency had occurred, then after another six years the opportunity was again offered, and so on, until the jubilee. So while strong motives urged the *Israelite* to discontinue his service as soon as the exigency had passed which made him a servant, every consideration impelled the *Stranger* to *prolong* his term of service;^B and the same kindness which dictated the law of six years' service for the *Israelite*, assigned as the general rule, a much longer period to the Gentile servant,

who had every inducement to protract the term. It should be borne in mind, that adult Jews ordinarily became servants, only as a temporary expedient to relieve themselves from embarrassment, and ceased to be such when that object was effected. The poverty that forced them to it was a calamity, and their service was either a means of relief, or a measure of prevention; not pursued as a permanent business, but resorted to on emergencies—a sort of episode in the main scope of their lives. Whereas with the Stranger, it was a *permanent employment*, pursued both as a *means* of bettering their own condition, and that of their posterity, and as an *end* for its own sake, conferring on them privileges, and a social estimation not otherwise attainable.

A: Another reason for protracting the service until the seventh year, seems to have been the coincidence of that period with other arrangements, in the Jewish economy. Its pecuniary responsibilities, social relations, and general internal structure, were *graduated* upon a septennial scale. Besides, as those Israelites who had become servants through poverty, would not sell themselves, till other expedients to recruit their finances had failed—(Lev. xxv. 35)—their *becoming servants* proclaimed such a state of their affairs, as demanded the labor of a *course of years* fully to reinstate them.

B: The Stranger had the same inducements to prefer a long term of service that those have who cannot own land, to prefer a long *lease*.

We see from the foregoing, why servants purchased from the heathen, are called by way of distinction, *the servants*, (not *bondmen*.) 1. They followed it as a *permanent business*. 2. Their term of service was *much longer* than that of the other class. 3. As a class, they doubtless greatly outnumbered the Israelitish servants. 4. All the Strangers that dwelt in the land were *tributaries*, required to pay an annual tax to the government, either in money, or in public service, (called a "*tribute of bond-service*;") in other words, all the Strangers were *national servants*, to the Israelites, and the same Hebrew word used to designate *individual* servants, equally designates *national* servants or tributaries. 2 Sam. viii. 2, 6, 14; 2 Chron. viii. 7-9; Deut, xx. 11; 2 Sam. x. 19; 1 Kings ix. 21, 22; 1 Kings iv. 21; Gen. xxvii. 29. The same word is applied to the Israelites, when they paid tribute to other nations. 2 Kings xvii. 3.; Judg. iii. 8, 14; Gen. xlix. 15. Another distinction between the Jewish and Gentile bought servants, was in their

kinds of service. The servants from the Strangers were properly the *domestics*, or household servants, employed in all family work, in offices of personal attendance, and in such mechanical labor, as was required by increasing wants and needed repairs. The Jewish bought servants seem almost exclusively *agricultural*. Besides being better fitted for it by previous habits, agriculture, and the tending of cattle, were regarded by the Israelites as the most honorable of all occupations. After Saul was elected king, and escorted to Gibeah, the next report of him is, "*And behold Saul came after the herd out of the field.*" 1 Sam. xi. 5. Elisha "was plowing with twelve yoke of oxen." 1 Kings xix. 19. King Uzziah "loved husbandry." 2 Chron. xxvi. 10. Gideon was "*threshing wheat*" when called to lead the host against the Midianites. Judg. vi. 11. The superior honorableness of agriculture is shown, in that it was protected and supported by the fundamental law of the theocracy—God indicating it as the chief prop of the government. The Israelites were like permanent fixtures on their soil, so did they cling to it. To be agriculturists on their own patrimonial inheritances, was with them the grand claim to honorable estimation. When Ahab proposed to Naboth that he should sell him his vineyard, king though he was, he might well have anticipated from an Israelitish freeholder, just such an indignant burst as that which his proposal drew forth, "And Naboth said to Ahab, the Lord forbid it me that I should give the inheritance of my fathers unto thee." 1 Kings xxi. 2, 3. Agriculture being pre-eminently a *Jewish* employment, to assign a native Israelite to other employments as a business, was to break up his habits, do violence to cherished predilections, and put him to a kind of labor in which he had no skill, and which he deemed degrading.^C In short, it was in the earlier ages of the Mosaic system, practically to *unjew* him, a hardship and a rigor grievous to be borne, as it annihilated a visible distinction between the descendants of Abraham and the Strangers. *To guard this and another fundamental distinction*, God instituted the regulation, "If thy brother that dwelleth by thee be waxen poor, and be sold unto thee, thou shalt not compel him to serve as a bond-servant." In other words, thou shalt not put him to servant's work—to the business, and into the condition of domestics. In the Persian version it is translated, "Thou shalt not assign to him the work of *servitude*." In the Septuagint, "He shall not serve thee with the service of a *domestic*." In the Syriac, "Thou shalt not employ him after the manner of servants." In the Samaritan, "Thou shalt not require him to serve in the service of a

servant." In the Targum of Onkelos, "He shall not serve thee with the service of a household servant." In the Targum of Jonathan, "Thou shalt not cause him to serve according to the usages of the servitude of servants."^D The meaning of the passage is, *thou shalt not assign him to the same grade, nor put him to the same service, with permanent domestics*. The remainder of the regulation is—"But as an hired servant and as a sojourner shall he be with thee." Hired servants were not incorporated into the families of their masters; they still retained their own family organization, without the surrender of any domestic privilege, honor, or authority; and this, even though they resided under the same roof with their master. The same substantially may be said of the sojourner though he was not the owner of the land which he cultivated, and of course had not the control of an inheritance, yet he was not in a condition that implied subjection to him whose land he tilled, or that demanded the surrender of any *right*, or exacted from him any homage, or stamped him with any inferiority; unless, it be supposed that a degree of inferiority would naturally attach to a state of *dependence* however qualified. While bought servants were associated with their master's families at meals, at the Passover, and at other family festivals, hired servants and sojourners were not. Ex. xii. 44, 45; Lev. xxii. 10, 11. Hired servants were not subject to the authority of their masters in any such sense as the master's wife, children, and bought servants. Hence the only form of oppressing hired servants spoken of in the Scriptures as practicable to masters, is that of *keeping back their wages*. To have taken away such privileges in the case under consideration, would have been pre-eminent "*rigor*;" for it was not a servant born in the house of a master, nor a minor, whose minority had been sold by the father, neither was it one who had not yet acceded to his inheritance, nor finally, one who had received the *assignment* of his inheritance, but was working off from it an incumbrance, before entering upon its possession and control. But it was that of *the head of a family*, who had known better days, now reduced to poverty, forced to relinquish the loved inheritance of his fathers, with the competence and respectful consideration its possession secured to him, and to be indebted to a neighbor for shelter, sustenance, and employment. So sad a reverse, might well claim sympathy; but one consolation cheers him in the house of his pilgrimage; he is an *Israelite*—*Abraham is his father* and now in his calamity he clings closer than ever, to the distinction conferred by his birth-right. To rob him of this, were "the unkindest cut of all." To have assigned

him to a grade of service filled only by those whose permanent business was serving, would have been to "rule over him with" peculiar "rigor." "Thou shalt not compel him to serve as a bond-servant," or literally, *thou shalt not serve thyself with him, with the service of a servant*, guaranties his political privileges, and a kind and grade of service comporting with his character and relations as an Israelite. And "as a *hired* servant, and as a sojourner shall he be with thee," secures to him his family organization, the respect and authority due to its head, and the general consideration resulting from such a station. Being already in possession of his inheritance, and the head of a household, the law so arranged the conditions of his service as to *alleviate* as much as possible the calamity which had reduced him from independence and authority, to penury and subjection. The import of the command which concludes this topic in the forty-third verse, ("Thou shalt not rule over him with rigor,") is manifestly this, you shall not disregard those differences in previous associations, station, authority, and political privileges, upon which this regulation is based; for to hold this class of servants *irrespective* of these distinctions, and annihilating them, is to "rule with rigor." The same command is repeated in the forty-sixth verse, and applied to the distinction between servants of Jewish, and those of Gentile extraction, and forbids the overlooking of distinctive Jewish peculiarities, the disregard of which would be *rigorous* in the extreme.^E The construction commonly put upon the phrase "rule with rigor," and the inference drawn from it, have an air vastly oracular. It is interpreted to mean, "you shall not make him a chattel, and strip him of legal protection, nor force him to work without pay." The inference is like unto it, viz., since the command forbade such outrages upon the Israelites, it permitted and commissioned their infliction upon the Strangers. Such impious and shallow smattering captivates scoffers and libertines; its flippancy and blasphemy, and the strong scent of its loose-reined license works like a charm upon them. What boots it to reason against such rampant affinities! In Ex. i. 13, it is said that the Egyptians, "made the children of Israel to *serve* with rigor." This rigor is affirmed of the *amount of labor* extorted and the *mode* of the exaction. The expression "serve with rigor," is never applied to the service of servants under the Mosaic system. The phrase, "thou shalt not RULE over him with rigor," does not prohibit unreasonable exactions of labor, nor inflictions of cruelty. Such were provided against otherwise. But it forbids confounding the distinctions between a Jew and a Stranger, by assigning the former to

the same grade of service, for the same term of time and under the same political disabilities as the latter.

C: The Babylonish captivity seems to have greatly modified Jewish usage in this respect. Before that event, their cities were comparatively small, and few were engaged in mechanical or mercantile employments. Afterward their cities enlarged apace and trades multiplied.

D: Jarchi's comment on "Thou shalt not compel him to serve as a bond-servant" is, "The Hebrew servant is not to be required to do any thing which is accounted degrading—such as all offices of personal attendance, as loosing his master's shoe-latchet, bringing him water to wash his hands and feet, waiting on him at table, dressing him, carrying things to and from the bath. The Hebrew servant is to work with his master as a son or brother, in the business of his farm, or other labor, until his legal release."

E: The disabilities of the Strangers, which were distinctions, based on a different national descent, and important to the preservation of nation characteristics, and a national worship, did not at all affect their *social* estimation. They were regarded according to their character and worth as *persons*, irrespective of their foreign origin, employments and political condition.

We are now prepared to review at a glance, the condition of the different classes of servants, with the modifications peculiar to each.

In the possession of all fundamental rights, all classes of servants were on an absolute equality, all were equally protected by law in their persons, character, property and social relations; all were voluntary, all were compensated for their labor, and released from it nearly one half of the days in each year; all were furnished with stated instruction; none in either class were in any sense articles of property, all were regarded as *men*, with the rights, interests, hopes and destinies of *men*. In all these respects, *all* classes of servants among the Israelites, formed but ONE CLASS. The *different* classes, and the differences in *each* class, were, 1. *Hired Servants*. This class consisted both of Israelites and Strangers. Their employments were different. The *Israelite* was an agricultural servant. The Stranger was a *domestic* and *personal* servant, and in some instances *mechanical*; both were occasional and temporary. Both lived in their own families, their wages were *money*, and they were paid when their work was done. 2. *Bought Servants*, (including those "born in the house.") This class also, consisted of Israelites and Strangers, the same difference in their kinds of employment as noticed before. Both were paid in advance,^A and neither was temporary. The Israelitish servant, with the exception of the *freeholder*, completed his term in six years. The Stranger was a permanent servant, continuing until the jubilee. A marked distinction obtained also between different classes of *Jewish* bought servants. Ordinarily, they were merged in their master's family, and, like his wife and children, subject to his authority; (and, like them, protected by law from its abuse.) But the *freeholder* was an exception; his family relations and authority remained unaffected, nor was he subjected as an inferior to the control of his master, though dependent on him for employment.

^A: The payment *in advance*, doubtless lessened the price of the purchase; the servant thus having the use of the money, and the master assuming all the risks of life, and health for labor; at the expiration of the six years' contract, the master having suffered no loss from the risk incurred at the

making of it, was obliged by law to release the servant with a liberal gratuity. The reason assigned for this is, "he hath been worth a double hired servant unto thee in serving thee six years," as if it had been said, as you have experienced no loss from the risks of life, and ability to labor, incurred in the purchase, and which lessened the price, and as, by being your servant for six years, he has saved you the time and trouble of looking up and hiring laborers on emergencies, therefore, "thou shalt furnish him liberally," &c.

This gratuity at the close of the service shews the *principle* of the relation; *equivalent* for value received.

It should be kept in mind, that *both* classes of servants, the Israelite and the Stranger, not only enjoyed *equal, natural and religious rights*, but *all the civil and political privileges* enjoyed by those of their own people who were *not* servants. They also shared in common with them the political disabilities which appertained to all Strangers, whether servants of Jewish masters, or masters of Jewish servants. Further, the disabilities of the servants from the Strangers were exclusively *political* and *national*. 1. They, in common with all Strangers, could not own the soil. 2. They were ineligible to civil offices. 3. They were assigned to employments less honorable than those in which Israelitish servants engaged; agriculture being regarded as fundamental to the existence of the state, other employments were in less repute, and deemed *unjewish*.

Finally, the Strangers, whether servants or masters, were all protected equally with the descendants of Abraham. In respect to political privileges, their condition was much like that of unnaturalized foreigners in the United States; whatever their wealth or intelligence, or moral principle, or love for our institutions, they can neither go to the ballot-box, nor own the soil, nor be eligible to office. Let a native American, be suddenly bereft of these privileges, and loaded with the disabilities of an alien, and what to the foreigner would be a light matter, to *him*, would be the severity of *rigor*. The recent condition of the Jews and Catholics in England, is another illustration. Rothschild, the late banker, though the richest private citizen in the world, and perhaps master of scores of English servants, who sued for the smallest crumbs of his favor, was, as a subject of the government, inferior to the lowest among them. Suppose an Englishman of the Established Church, were by law deprived of power to own the soil, of

eligibility to office and of the electoral franchise, would Englishmen think it a misapplication of language, if it were said, the government "rules over him with rigor?" And yet his person, property, reputation, conscience, all his social relations, the disposal of his time, the right of locomotion at pleasure, and of natural liberty in all respects, are just as much protected by law as the Lord Chancellor's.

FINALLY.—As the Mosaic system was a great compound type, rife with meaning in doctrine and duty; the practical power of the whole, depended upon the exact observance of those distinctions and relations which constituted its significancy. Hence, the care to preserve inviolate the distinction between a *descendant of Abraham* and a *Stranger*, even when the Stranger was a proselyte, had gone through the initiatory ordinances, entered the congregation, and become incorporated with the Israelites by family alliance. The regulation laid down in Ex. xxi. 2-6, is an illustration. In this case, the Israelitish servant, whose term expired in six years, married one of his master's *permanent female domestics*; but her marriage did not release her master from *his* part of the contract for her whole term of service, nor from his legal obligation to support and educate her children. Neither did it do away that distinction, which marked her national descent by a specific *grade* and *term* of service, nor impair her obligation to fulfil *her* part of the contract. Her relations as a permanent domestic grew out of a distinction guarded with great care throughout the Mosaic system. To render it void, would have been to divide the system against itself. This God would not tolerate. Nor, on the other hand, would he permit the master to throw off the responsibility of instructing her children, nor the care and expense of their helpless infancy and rearing. He was bound to support and educate them, and all her children born afterwards during her term of service. The whole arrangement beautifully illustrates that wise and tender regard for the interests of all the parties concerned, which arrays the Mosaic system in robes of glory, and causes it to shine as the sun in the kingdom of our Father.^B By this law, the children had secured to them a mother's tender care. If the husband loved his wife and children, he could compel his master to keep him, whether he had any occasion for his services or not. If he did not love them, to be rid of him was a blessing; and in that case, the regulation would prove an act for the relief of an afflicted family. It is not by any means to be inferred, that the release of the servant in the seventh

year, either absolved him from the obligations of marriage, or shut him out from the society of his family. He could doubtless procure a service at no great distance from them, and might often do it, to get higher wages, or a kind of employment better suited to his taste and skill. The great number of days on which the law released servants from regular labor, would enable him to spend much more time with his family, than can be spent by most of the agents of our benevolent societies with *their* families, or by many merchants, editors, artists, &c., whose daily business is in New York, while their families reside from ten to one hundred miles in the country.

B: Whoever profoundly studies the Mosaic Institutes with a teachable and reverential spirit, will feel the truth and power of that solemn appeal and interrogatory of God to his people Israel, when he had made an end of setting before them all his statutes and ordinances. "What nation is there so great, that hath statutes and judgments SO RIGHTEOUS, as *all* this law which I set before you this day." Deut. iv. 8.

We conclude this inquiry by touching upon an objection, which, though not formally stated, has been already set aside by the tenor of the foregoing argument. It is this,—"The slavery of the Canaanites by the Israelites, was appointed by God as a commutation of the punishment of death denounced against them for their sins."A If the absurdity of a sentence consigning persons to death, and at the same time to perpetual slavery, did not sufficiently laugh at itself; it would be small self-denial, in a case so tempting, to make up the deficiency by a general contribution. Only *one* statute was ever given respecting the disposition to be made of the inhabitants of Canaan. If the sentence of death was pronounced against them, and afterwards *commuted*, when? where? by whom? and in what terms was the commutation, and where is it recorded? Grant, for argument's sake, that all the Canaanites were sentenced to unconditional extermination; how can a right to *enslave* them, be drawn from such premises? The punishment of death is one of the highest recognitions of man's moral nature possible. It proclaims him rational, accountable, guilty, deserving death for having done his utmost to cheapen human life, when the proof of its priceless worth lived in his own nature. But to make him a *slave*, cheapens to nothing *universal human nature*, and instead of healing a wound, gives a death-stab. What! repair an injury to rational being in the

robbery of one of its rights, not only by robbing it of all, but by annihilating their *foundation*, the everlasting distinction between persons and things? To make a man a chattel, is not the *punishment*, but the *annihilation* of a *human* being, and, so far as it goes, of *all* human beings. This commutation of the punishment of death, into perpetual slavery, what a fortunate discovery! Alas! for the honor of Deity, if commentators had not manned the forlorn hope, and by a timely movement rescued the Divine character, at the very crisis of its fate, from the perilous position in which inspiration had carelessly left it! Here a question arises of sufficient importance for a separate dissertation; but must for the present be disposed of in a few paragraphs. WERE THE CANAANITES SENTENCED BY GOD TO INDIVIDUAL AND UNCONDITIONAL EXTERMINATION? As the limits of this inquiry forbid our giving all the grounds of dissent from commonly received opinions, the suggestions made, will be thrown out merely as *QUERIES*, rather than laid down as *doctrines*. The directions as to the disposal of the Canaanites, are mainly in the following passages, Ex. xxiii. 23-33; xxxiv. 11; Deut. vii. 16-24; ix. 3; xxxi. 3-5. In these verses, the Israelites are commanded to "destroy the Canaanites," to "drive out," "consume," "utterly overthrow," "put out," "dispossess them," &c. Did these commands enjoin the unconditional and universal destruction of the *individuals*, or merely of the *body politic*? The word *hārām*, to destroy, signifies *national*, as well as individual destruction; the destruction of *political* existence, equally with *personal*; of governmental organization, equally with the lives of the subjects. Besides, if we interpret the words destroy, consume, overthrow, &c., to mean *personal* destruction, what meaning shall we give to the expressions, "drive out before thee," "cast out before thee," "expel," "put out," "dispossess," &c., which are used in the same and in parallel passages? In addition to those quoted above, see Josh. iii. 10; xvii. 18; xxiii. 5; xxiv. 18; Judg. i. 20, 29-35; vi. 9. "I will *destroy* all the people to whom thou shalt come, and I will make all thine enemies *turn their backs unto thee*." Ex. xxiii. 27. Here "*all their enemies*" were to *turn their backs*, and "*all the people*" to be "*destroyed*." Does this mean that God would let all their *enemies* escape, but kill their *friends*, or that he would *first* kill "all the people" and THEN make them "turn their backs," an army of runaway corpses? In Josh. xxiv. 8, God says, speaking of the Amorites, "I *destroyed* them from before you." In the 18th verse of the same chapter, it is said, "The Lord *drove out* from before us all the people, even the Amorites

which dwelt in the land." In Num. xxxii. 39, we are told that "the children of Machir the son of Manasseh, went to Gilead, and took it, and *dispossessed* the Amorite which was in it." If these commands required the destruction of all the *individuals*, the Mosaic law was at war with itself, for directions as to the treatment of native residents form a large part of it. See Lev. xix. 34; xxv. 35, 36; xxiv. 22.; Ex. xxiii. 9; xxii. 21; Deut. i. 16, 17; x. 17, 19; xxvii. 19. We find, also, that provision was made for them in the cities of refuge, Num. xxxv. 15,—the gleanings of the harvest and vintage were theirs, Lev. xix. 9, 10; xxiii. 22;—the blessings of the Sabbath, Ex. xx. 10;—the privilege of offering sacrifices secured, Lev. xxii. 18; and stated religious instruction provided for them. Deut. xxxi. 9, 12. Now does this same law require the *individual extermination* of those whose lives and interests it thus protects? These laws were given to the Israelites, long *before* they entered Canaan; and they must have inferred from them, that a multitude of the inhabitants of the land were to *continue in it*, under their government. Again Joshua was selected as the leader of Israel to execute God's threatenings upon Canaan. He had no discretionary power. God's commands were his official instructions. Going beyond them would have been usurpation; refusing to carry them out, rebellion and treason. Saul was rejected from being king for disobeying God's commands in a single instance. Now if God commanded the individual destruction of all the Canaanites Joshua disobeyed him in every instance. For at his death, the Israelites still "*dwelt among them*," and each nation is mentioned by name. Judg. i. 27-36, and yet we are told that Joshua "left nothing undone of all that the Lord commanded Moses;" and that he "took all that land." Josh. xi. 15-22. Also, that "there *stood not a man* of *all* their enemies before them." Josh. xxi. 44. How can this be if the command to destroy, destroy utterly, &c., enjoined *individual* extermination, and the command to drive out, unconditional expulsion from the country, rather than their expulsion from the *possession* or *ownership* of it, as the lords of the soil? That the latter is the true sense to be attached to those terms, we argue, further from the fact that the same terms are employed by God to describe the punishment which he would inflict upon the Israelites if they served other Gods. "Ye shall utterly perish," "be utterly destroyed," "consumed," &c., are some of them.—See Deut. iv. 20; viii. 19, 20.^B Josh. xxiii. 12, 13-16; 1. Sam. xii. 25. The Israelites *did* serve other Gods, and Jehovah *did* execute upon them his threatenings—and thus himself *interpreted* these threatenings. He subverted

their *government*, dispossessed them of their land, divested them of national power, and made them *tributaries*, but did not *exterminate* them. He "destroyed them utterly" as an independent body politic, but not as individuals. Multitudes of the Canaanites were slain, but not a case can be found in which one was either killed or expelled who *acquiesced* in the transfer of the territory, and its sovereignty, from the inhabitants of the land to the Israelites. Witness the case of Rahab and her kindred, and that of the Gibeonites.^C The Canaanites knew of the miracles wrought for the Israelites; and that their land had been transferred to them as a judgment for their sins. Josh. ii. 9-11; ix. 9, 10, 24. Many of them were awed by these wonders, and made no resistance. Others defied God and came out to battle. These last occupied the fortified cities, were the most inveterate heathen—the aristocracy of idolatry, the kings, the nobility and gentry, the priests, with their crowds of satellites, and retainers that aided in idolatrous rites, and the military forces, with the chief profligates of both sexes. Many facts corroborate the general position. Witness that command (Deut. xxiii. 15, 16,) which, not only prohibited the surrender of the fugitive servant to his master, but required the Israelites to receive him with kindness, permit him to dwell where he pleased, and to protect and cherish him. Whenever any servant, even a Canaanite, fled from his master to the Israelites, Jehovah, so far from commanding them to *kill* him, straitly charged them, "He shall dwell with thee, even among you, in that place which *he* shall choose—in one of thy gates where it liketh *him* best—thou shalt not oppress him." Deut. xxiii. 16. The Canaanitish servant by thus fleeing to the Israelites, submitted himself as a dutiful subject to their national government, and pledged his allegiance. Suppose *all* the Canaanites had thus submitted themselves to the Jewish theocracy, and conformed to the requirements of the Mosaic institutes, would not *all* have been spared upon the same principle that *one* was? Again, look at the multitude of *tributaries* in the midst of Israel, and that too, after they had "waxed strong," and the uttermost nations quaked at the terror of their name—the Canaanites, Philistines and others, who became proselytes—as the Nethenims, Uriah the Hittite—Rahab, who married one of the princes of Judah—Jether, an Ishmaelite, who married Abigail the sister of David and was the father of Amasa, the captain of the host of Israel. Comp. 1 Chron. ii. 17, with 2 Sam. xvii. 25.—Ittai—the six hundred Gittites, David's body guard. 2. Sam xv. 18, 21. Obbedom the Gittite, adopted into the tribe of Levi. Comp. 2 Sam.

vi. 10, 11, with 1 Chron. xv. 18, and xxvi. 4, 5—Jaziz, and Obil. 1 Chron, xxvii. 30, 31. Jephunneh the Kenezite, Josh. xiv. 6, and father of Caleb a ruler of the tribe of Judah. Numb. xiii. 2, 6—the Kenites registered in the genealogies of the tribe of Judah, Judg. i. 16; 1 Chron. ii. 55, and the one hundred and fifty thousand Canaanites, employed by Solomon in the building of the Temple.^D Besides, the greatest miracle on record, was wrought to save a portion of those very Canaanites, and for the destruction of those who would exterminate them. Josh. x. 12-14. Further—the terms employed in the directions regulating the disposal of the Canaanites, such as "drive out," "put out," "cast out," "expel," "dispossess," &c., seem used interchangeably with "consume," "destroy," "overthrow," &c., and thus indicate the sense in which the latter words are used. As an illustration of the meaning generally attached to these and similar terms, we refer to the history of the Amalekites. "I will utterly put out the remembrance of Amalek from under heaven." Ex. xvii. 14. "Thou shalt blot out the remembrance of Amalek from under heaven; thou shalt not forget it." Deut. xxv. 19. "Smite Amalek and *utterly destroy* all that they have, and spare them not, but slay both man and woman, infant and suckling, ox and sheep." 1 Sam. xv. 2, 3. "Saul smote the Amalekites, and he took Agag the king of the Amalekites, alive and UTTERLY DESTROYED ALL THE PEOPLE with the edge of the sword." Verses 7, 8. In verse 20, Saul says, "I have brought Agag, the king of Amalek, and have *utterly destroyed* the Amalekites." In 1 Sam. xxx. 1, 2, we find the Amalekites marching an army into Israel, and sweeping everything before them—and this in about eighteen years after they had all been "UTTERLY DESTROYED!" In 1 Kings ii. 15-17, is another illustration. We are informed that Joab remained in Edom six months with all Israel, "until he had *cut off every male*" in Edom. In the next verse we learn that Hadad and "certain Edomites" were not slain. Deut. xx. 16, 17, will probably be quoted against the preceding view. We argue that the command in these verses, did not include all the individuals of the Canaanitish nations, but only the inhabitants of the *cities*, (and even those conditionally,) because, only the inhabitants of *cities* are specified—"of the *cities* of these people thou shalt save alive nothing that breatheth." Cities then, as now, were pest-houses of vice, they reeked with abominations little practised in the country. On this account, their influence would be far more perilous to the Israelites than that of the country. Besides, they were the centres of idolatry—there were the temples and

altars, and idols, and priests, without number. Even their buildings, streets, and public walks were so many visibilities of idolatry. The reason assigned in the 18th verse for exterminating them, strengthens the idea—"that they teach you not to do after all the abominations which they have done unto their gods." This would be a reason for exterminating all the nations and individuals *around* them, as all were idolaters; but God commanded them, in certain cases, to spare the inhabitants. Contact with *any* of them would be perilous—with the inhabitants of the *cities* peculiarly, and of the *Canaanitish* cities pre-eminently so. The 10th and 11th verses contain the general rule prescribing the method in which cities were to be summoned to surrender. They were first to receive the offer of peace—if it was accepted, the inhabitants became *tributaries*—but if they came out against Israel in battle, the *men* were to be killed, and the woman and little ones saved alive. The 15th verse restricts this lenient treatment to the inhabitants of the cities *afar off*. The 16th directs as to the disposal of the inhabitants of the Canaanitish cities. They were to save alive "nothing that breathed." The common mistake has been, in supposing that the command in the 15th verse refers to the *whole system of directions preceding*, commencing with the 10th, whereas it manifestly refers only to the *inflictions* specified in the 12th, 13th, and, 14th, making a distinction between those *Canaanitish* cities that *fought*, and the cities *afar off* that fought—in one case destroying the males and females, and in the other, the *males* only. The offer of peace, and the *conditional preservation*, were as really guaranteed to *Canaanitish* cities as to others. Their inhabitants were not to be exterminated unless they came out against Israel in battle. Whatever be the import of the commands respecting the disposition to be made of the Canaanites, all admit the fact that the Israelites did *not* utterly exterminate them. Now, if entire and unconditional extermination was the command of God, it was *never* obeyed by the Israelites, consequently the truth of God stood pledged to consign *them* to the same doom which he had pronounced upon the Canaanites, but which they had refused to visit upon them. "If ye will not drive out all the inhabitants of the land from before you, then it shall come to pass that * * *I shall do unto you as I thought to do unto them.*" Num. xxxiii. 55, 56. As the Israelites were not exterminated, we infer that God did not pronounce *that* doom upon them; and as he *did* pronounce upon them the *same* doom, whatever it was, which they should *refuse* to visit upon the Canaanites, it follows that the doom of unconditional *extermination* was *not* pronounced

against the Canaanites. But let us settle this question by the "law and the testimony." "There was not a city that made peace with the children of Israel save the Hivites, the inhabitants of Gibeon; all others they took in battle. For it was of the Lord to harden their hearts, that they should COME OUT AGAINST ISRAEL IN BATTLE, that he might destroy them utterly, and that they might have no favor, but that he might destroy them, as the Lord commanded Moses." Josh. xi. 19. 20. That is, if they had *not* come out against Israel in battle, they would have had "favor" shown them, and would not have been "*destroyed utterly*." The great design was to *transfer the territory* of the Canaanites to the Israelites, and along with it, *absolute sovereignty in every respect*; to annihilate their political organizations, civil polity, and jurisprudence, and their system of religion, with all its rights and appendages; and to substitute therefor, a pure theocracy, administered by Jehovah, with the Israelites as His representatives and agents. In a word the people were to be *denationalized*, their political existence annihilated, their idol temples, altars, groves, images, pictures, and heathen rites destroyed, and themselves put under tribute. Those who resisted the execution of Jehovah's purpose were to be killed, while those who quietly submitted to it were to be spared. All had the choice of these alternatives, either free egress out of the land;^E or acquiescence in the decree, with life and residence as tributaries, under the protection of the government; or resistance to the execution of the decree, with death. "*And it shall come to pass, if they will diligently learn the ways of my people, to swear by my name, the Lord liveth, as they taught my people to swear by Baal; THEN SHALL THEY BE BUILT IN THE MIDST OF MY PEOPLE.*"

^A: In the prophecy, Gen. ix. 25, the subjection of the Canaanites as a conquered people rendering tribute to other nations, is foretold by inspiration. The fulfilment of this prediction, seems to have commenced in the subjection of the Canaanites to the Israelites as tributaries. If the Israelites had exterminated them, as the objector asserts they were commanded to do; the prediction would have been *falsified*.

^B: These two verses are so explicit we quote them entire—"And it shall be if thou do at all forget the Lord thy God and walk after other Gods and serve them, and worship them, I testify against you this day that ye shall surely *perish*, as the nations which the Lord destroyed before your face, so shall ye perish." The following passages are, if possible still more explicit

—"The Lord shall send upon thee cursing, vexation and rebuke in all that thou settest thine hand unto for to do, until thou be *destroyed*, and until thou perish quickly." "The Lord shall make the pestilence cleave unto thee until he have *consumed* thee." "They (the 'sword,' 'blasting,' &c.) shall pursue thee until thou *perish*." "From heaven shall it come down upon thee until thou be *destroyed*." "All these curses shall come upon thee till thou be *destroyed*." "He shall put a yoke of iron upon thy neck until he have *destroyed* thee." "The Lord shall bring a nation against thee, a nation of fierce countenance, which shall not regard the person of the old, nor show favor to the young, * * until he have *destroyed* thee." All these, with other similar threatenings of *destruction*, are contained in the twenty-eighth chapter of Deut. See verses 20-25, 45, 48, 51. In the *same* chapter God declares that as a punishment for the same transgressions, the Israelites shall "be *removed* into all the kingdoms of the earth," thus showing that the terms employed in the other verses, "destroy," "perish," "perish quickly," "consume," &c., instead of signifying utter, personal destruction doubtless meant their destruction as an independent nation. In Josh. xxiv. 8, 18, "destroyed" and "drove out," are used synonymously.

C: Perhaps it will be objected, that the preservation of the Gibeonites, and of Rahab and her kindred, was a violation of the command of God. We answer, if it had been, we might expect some such intimation. If God had straitly commanded them to *exterminate all the Canaanites*, their pledge to save them alive, was neither a repeal of the statute, nor absolution for the breach of it. If *unconditional destruction* was the import of the command, would God have permitted such an act to pass without rebuke? Would he have established such a precedent when Israel had hardly passed the threshold of Canaan, and was then striking the first blow of a half century war? What if they *had* passed their word to Rahab and the Gibeonites? Was that more binding than God's command? So Saul seems to have passed *his* word to Agag; yet Samuel hewed him in pieces, because in saving his life, Saul had violated God's command. When Saul sought to slay the Gibeonites in "his zeal for the children of Israel and Judah," God sent upon Israel a three years' famine for it. When David inquired of them what atonement he should make, they say, "The man that devised against us, that we should be destroyed from *remaining in any of the coast of Israel*, let seven of his sons be delivered," &c. 2 Sam. xxi. 1-6.

D: If the Canaanites were devoted by God to unconditional extermination, to have employed them in the erection of the temple,—what was it but the climax of impiety? As well might they pollute its altars with swine's flesh or make their sons pass through the fire to Moloch.

E: Suppose all the Canaanitish nations had abandoned their territory at the tidings of Israel's approach, did God's command require the Israelites to chase them to ends of the earth, and hunt them out, until every Canaanite was destroyed? It is too preposterous for belief, and yet it follows legitimately from that construction, which interprets the terms "consume," "destroy," "destroy utterly," &c. to mean unconditional, individual extermination.

[The original design of the preceding Inquiry embraced a much wider range of topics. It was soon found, however, that to fill up the outline would be to make a volume. Much of the foregoing has therefore been thrown into a mere series of *indices*, to trains of thought and classes of proof, which, however limited or imperfect, may perhaps, afford some facilities to those who have little leisure for protracted investigation.]

NO. 5.

THE

ANTI-SLAVERY EXAMINER.

THE

POWER OF CONGRESS

OVER THE

DISTRICT OF COLUMBIA.

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POWER OF CONGRESS OVER THE DISTRICT OF COLUMBIA.

A civilized community presupposes a government of law. If that government be a republic, its citizens are the sole *sources*, as well as the *subjects* of its power. Its constitution is their bill of directions to their own agents—a grant authorizing the exercise of certain powers, and prohibiting that of others. In the Constitution of the United States, whatever else may be obscure, the clause granting power to Congress over the Federal District may well defy misconstruction. Art. 1, Sec. 6, Clause 18: "The Congress shall have power to exercise exclusive legislation, *in all cases whatsoever*, over such District." Congress may make laws for the District "in all cases," not of all *kinds*; not all *laws whatsoever*, but laws "in all cases whatsoever." The grant respects the *subjects* of legislation, *not* the moral nature of the laws. The law-making power every where is subject to *moral* restrictions, whether limited by constitutions or not. No legislature can authorize murder, nor make honesty penal, nor virtue a crime, nor exact impossibilities. In these and similar respects, the power of Congress is held in check by principles, existing in the nature of things, not imposed by the Constitution, but presupposed and assumed by it. The power of Congress over the District is restricted only by those principles that limit ordinary legislation, and, in some respects, it has even wider scope.

In common with the legislatures of the States, Congress cannot constitutionally pass ex post facto laws in criminal cases, nor suspend the writ of habeas corpus, nor pass a bill of attainder, nor abridge the freedom of speech and of the press, nor invade the right of the people to be secure in

their persons, houses, papers, and effects, nor enact laws respecting an establishment of religion. These are general limitations. Congress cannot do these things *any where*. The exact import, therefore, of the clause "in all cases whatsoever," is, *on all subjects within the appropriate sphere of legislation*. Some legislatures are restrained by constitutions, from the exercise of powers strictly within the proper sphere of legislation. Congressional power over the District has no such restraint. It traverses the whole field of legitimate legislation. All the power which any legislature has within its own jurisdiction, Congress holds over the District of Columbia.

It has been objected that the clause in question respects merely police regulations, and that its sole design was to enable Congress to protect itself against popular tumults. But if the convention that framed the Constitution aimed to provide for a *single* case only, why did they provide for "*all* cases whatsoever?" Besides, this clause was opposed in many of the state conventions, because the grant of power was extended to "*all* cases whatsoever," instead of being restricted to police regulations *alone*. In the Virginia Convention, George Mason, the father of the Virginia Constitution, Patrick Henry, Mr. Grayson, and others, assailed it on that ground. Mr. Mason said, "This clause gives an unlimited authority in every possible case within the District. He would willingly give them exclusive power as far as respected the police and good government of the place, but he would give them no more." Mr. Grayson exclaimed against so large a grant of power—said that control over the *police* was all-sufficient, and "that the Continental Congress never had an idea of exclusive legislation in all cases." Patrick Henry said: "Shall we be told, when about to grant such illimitable authority, that it will never be exercised? Is it consistent with any principle of prudence or good policy, to grant *unlimited, unbounded authority*?" Mr. Madison said in reply: "I did conceive that the clause under consideration was one of those parts which would speak its own praise. I cannot comprehend that the power of legislation over a small District, will involve the dangers which he apprehends. When any power is given, its delegation necessarily involves authority to make laws to execute it. * * * * The powers which are found necessary to be given, are therefore delegated *generally*, and particular and minute specification is left to the Legislature. * * * It is not within the limits of human capacity to delineate on paper all

those particular cases and circumstances, in which legislation by the general legislature, would be necessary." Governor Randolph said: "Holland has no ten miles square, but she has the Hague where the deputies of the States assemble. But the influence which it has given the province of Holland, to have the seat of government within its territory, subject in some respects to its control, has been injurious to the other provinces. The wisdom of the convention is therefore manifest in granting to Congress exclusive jurisdiction over the place of their session." (*See debates in the Virginia Convention*, p. 320.) In the forty-third number of the "Federalist," Mr. Madison says: "The indispensable necessity of *complete* authority at the seat of government, carries its own evidence with it."

Finally, that the grant in question is to be interpreted according to the obvious import of its *terms*, and not in such a way as to restrict it to *police* regulations, is proved by the fact, that the State of Virginia proposed an amendment to the United States Constitution at the time of its adoption, providing that this clause "should be so construed as to give power only over the *police and good government* of said District," *which amendment was rejected*. Fourteen other amendments, proposed at the same time by Virginia, were *adopted*.

The former part, of the clause under consideration, "Congress shall have power to exercise *exclusive* legislation," gives sole jurisdiction, and the latter part, "in all cases whatsoever," defines the *extent* of it. Since, then, Congress is the *sole* legislature within the District, and since its power is limited only by the checks common to all legislatures, it follows that what the law-making power is intrinsically competent to do *any* where, Congress is competent to do in the District of Columbia.

STATEMENT OF THE QUESTION AT ISSUE.

Having disposed of preliminaries, we proceed to argue the *real question* at issue. Is the law-making power competent to abolish slavery when not restricted in that particular by constitutional provisions—or, *Is the abolition of slavery within the appropriate sphere of legislation?*

In every government, absolute sovereignty exists *somewhere*. In the United States it exists primarily with the *people*, and *ultimate* sovereignty *always*

exists with them. In each of the States, the legislature possesses a *representative* sovereignty, delegated by the people through the Constitution—the people thus committing to the legislature a portion of their sovereignty, and specifying in their constitutions the amount and the conditions of the grant. That the *people* in any state where slavery exists, have the power to abolish it, none will deny. If the legislature have not the power, it is because *the people* have reserved it to themselves. Had they lodged with the legislature "power to exercise exclusive legislation in all cases whatsoever," they would have parted with their sovereignty over the legislation of the State, and so far forth the legislature would have become *the people*, clothed with all their functions, and as such competent, *during the continuance of the grant*, to do whatever the people might have done before the surrender of their power: consequently, they would have the power to abolish slavery. The sovereignty of the District of Columbia exists *somewhere*—where is it lodged? The citizens of the District have no legislature of their own, no representation in Congress, and no political power whatever. Maryland and Virginia have surrendered to the United States their "full and absolute right and entire sovereignty," and the people of the United States have committed to Congress by the Constitution, the power to "exercise exclusive legislation in all cases whatsoever over such District."

Thus, the sovereignty of the District of Columbia, is shown to reside solely in the Congress of the United States; and since the power of the people of a state to abolish slavery within their own limits, results from their entire sovereignty within the state, so the power of Congress to abolish slavery in the District, results from its entire *sovereignty* within the District. If it be objected that Congress can have no more power over the District, than was held by the legislatures of Maryland and Virginia, we ask what clause in the constitution graduates the power of Congress by the standard of a state legislature? Was the United States constitution worked into its present shape under the measuring line and square of Virginia and Maryland? and is its power to be bevelled down till it can run in the grooves of state legislation? There is a deal of prating about constitutional power over the District, as though Congress were indebted for it to Maryland and Virginia. The powers of those states, whether few or many, prodigies or nullities, have nothing to do with the question. As well thrust in the powers of the Grand Lama to join

issue upon, or twist papal bulls into constitutional tether, with which to curb congressional action. The Constitution of the United States gives power to Congress, and takes it away, and *it alone*. Maryland and Virginia adopted the Constitution *before* they ceded to the united States the territory of the District. By their acts of cession, they abdicated their own sovereignty over the District, and thus made room for that provided by the United States constitution, which sovereignty was to commence as soon as a cession of territory by states, and its acceptance by Congress furnished a sphere for its exercise.

That the abolition of slavery is within the sphere of legislation, I argue, *secondly*, from the fact, that *slavery as a legal system, is the creature of legislation*. The law by *creating* slavery, not only affirmed its *existence* to be within the sphere and under the control of legislation, but equally, the *conditions* and *terms* of its existence, and the *question* whether or not it *should* exist. Of course legislation would not travel *out* of its sphere, in abolishing what is *within* it, and what was recognised to be within it, by its own act. Cannot legislatures repeal their own laws? If law can take from a man his rights, it can give them back again. If it can say, "your body belongs to your neighbor," it can say, "it belongs to *yourself*, and I will sustain your right." If it can annul a man's right to himself, held by express grant from his Maker, and can create for another an artificial title to him, can it not annul the artificial title, and leave the original owner to hold himself by his original title?

3. *The abolition of slavery has always been considered within the appropriate sphere of legislation*. Almost every civilized nation has abolished slavery by law. The history of legislation since the revival of letters, is a record crowded with testimony to the universally admitted competency of the law-making power to abolish slavery. It is so manifestly an attribute not merely of absolute sovereignty, but even of ordinary legislation, that the competency of a legislature to exercise it, may well nigh be reckoned among the legal axioms of the civilized world. Even the night of the dark ages was not dark enough to make this invisible.

The Abolition decree of the great council of England was passed in 1102. The memorable Irish decree, "that all the English slaves in the whole of Ireland, be immediately emancipated and restored to their former liberty,"

was issued in 1171. Slavery in England was abolished by a general charter of emancipation in 1381. Passing over many instances of the abolition of slavery by law, both during the middle ages and since the reformation, we find them multiplying as we approach our own times. In 1776 slavery was abolished in Prussia by special edict. In St. Domingo, Cayenne, Guadaloupe and Martinique, in 1794, where more than 600,000 slaves were emancipated by the French government. In Java, 1811; in Ceylon, 1815; in Buenos Ayres, 1816; in St. Helena, 1819; in Colombia, 1821; by the Congress of Chili in 1821; in Cape Colony, 1823; in Malacca, 1825; in the southern provinces of Birmah, in 1826; in Bolivia, 1826; in Peru, Guatemala, and Monte Video, 1828, in Jamaica, Barbadoes, Bermudas, Bahamas, the Mauritius, St. Christopher's, Nevis, the Virgin Islands, Antigua, Montserrat, Dominica, St. Vincents, Grenada, Barbice, Tobago, St. Lucia, Trinidad, Honduras, Demarara, and the Cape of Good Hope, on the 1st of August, 1834. But waving details, suffice it to say, that England, France, Spain, Portugal, Sweden, Denmark, Austria, Prussia, and Germany, have all and often given their testimony to the competency of the law to abolish slavery. In our own country, the Legislature of Pennsylvania passed an act of abolition in 1780, Connecticut, in 1784; Rhode Island, 1784; New-York, 1799; New-Jersey, in 1804; Vermont, by Constitution, in 1777; Massachusetts, in 1780; and New Hampshire, in 1784.

When the competency of the law-making power to abolish slavery, has thus been recognised every where and for ages, when it has been embodied in the highest precedents, and celebrated in the thousand jubilees of regenerated liberty, is it forsooth an achievement of modern discovery, that such a power is a nullity?—that all these acts of abolition are void, and that the millions disenthralled by them, are, either themselves or their posterity, still legally in bondage?

4. *Legislative power has abolished slavery in its parts.* The law of South Carolina prohibits the working of slaves more than fifteen hours in the twenty-four. [See *Brevard's Digest*, 253.] In other words, it takes from the slaveholder his power over nine hours of the slave's time daily; and if it can take nine hours it may take twenty-four—if two-fifths, then five-fifths. The laws of Georgia prohibit the working of slaves on the first day of the week; and if they can do it for the first, they can for the six following. Laws

embodying the same principle have existed for ages in nearly all governments that have tolerated slavery.

The law of North Carolina prohibits the "immoderate" correction of slaves. If it has power to prohibit *immoderate* correction, it can prohibit *moderate* correction—*all* correction, which would be virtual emancipation; for, take from the master the power to inflict pain, and he is master no longer. Cease to ply the slave with the stimulus of fear, and he is free. Laws similar to this exist in slaveholding governments generally.

The Constitution of Mississippi gives the General Assembly power to make laws "to oblige the owners of slaves to *treat them with humanity*." The Constitution of Missouri has the same clause, and an additional one making it the DUTY of the legislature to pass such laws as may be necessary to secure the *humane* treatment of the slaves. This grant of power to those legislatures empowers them to decide what *is* and what is *not* "humane treatment." Otherwise it gives no "power"—the clause is mere waste paper, and flouts in the face of a mocked and befooled legislature. A clause giving power to require "humane treatment" covers all the *particulars* of such treatment—gives power to exact it in all *respects*—*requiring* certain acts, and *prohibiting* others—maiming, branding, chaining together, allowing each but a quart of corn a day,^A and but "one shirt and one pair of pantaloons" in six months^B—separating families, destroying marriages, floggings for learning the alphabet and reading the Bible—robbing them of their oath, of jury trial, and of the right to worship God according to conscience—the legislature has power to specify each of these acts—declare that it is not "*humane treatment*," and PROHIBIT it.—The legislature may also believe that driving men and women into the field, and forcing them to work without pay as long as they live, is not "humane treatment," and being constitutionally bound "to *oblige*" masters to practise "humane treatment"—they have the *power to prohibit such* treatment, and are bound to do it.

^A: Law of North Carolina, Haywood's Manual, 524-5.

^B: Law of Louisiana, Martin's Digest, 610.

The law of Louisiana makes slaves real estate, prohibiting the holder, if he be also a *land* holder, to separate them from the soil.^C If it has power to prohibit the sale *without* the soil, it can prohibit the sale *with* it; and if it can prohibit the *sale* as property, it can prohibit the *holding* as property. Similar laws exist in the French, Spanish, and Portuguese colonies.

^C: Virginia made slaves real estate by a law passed in 1705. (*Beverly's Hist. of Va.*, p. 98.) I do not find the precise time when this law was repealed, probably when Virginia became the chief slave breeder for the cotton-growing and sugar-planting country, and made young men and women "from fifteen to twenty-five" the main staple production of the State.

The law of Louisiana requires the master to give his slaves a certain amount of food and clothing, (*Martin's Digest*, 610.) If it can oblige the master to give the slave *one* thing, it can oblige him to give him another: if food and clothing, then wages, liberty, his own body. Such laws exist in most slaveholding governments.

By the slave laws of Connecticut, under which slaves are now held, (for even Connecticut is still a slave State,) slaves might receive and hold property, and prosecute suits in their own name as plaintiffs: [This last was also the law of Virginia in 1795. See Tucker's "Dissertation on Slavery," p. 73.] There were also laws making marriage contracts legal, in certain contingencies, and punishing infringements of them, ["*Reeve's Law of Baron and Femme*," p. 310-1.] Each of the laws enumerated above, does, *in principle*, abolish slavery; and all of them together abolish it *in fact*. True, not as a *whole*, and at a *stroke*, nor all in one place; but in its *parts*, by piecemeal, at divers times and places; thus showing that the abolition of slavery is within the boundary of *legislation*.

5. *The competency of the law-making power to abolish slavery has been recognized by all the slaveholding States, either directly or by implication.* Some States recognize it in their *Constitutions*, by giving the legislature power to emancipate such slaves as may "have rendered the state some distinguished service," and others by express prohibitory restrictions. The *Constitutions* of Mississippi, Arkansas, and other States, restrict the power of the legislature in this respect. Why this express prohibition, if the law-making power cannot abolish slavery? A stately farce, indeed, formally to

construct a special clause, and with appropriate rites induct it into the Constitution, for the express purpose of restricting a nonentity!—to take from the lawmaking power what it *never had*, and what *cannot* pertain to it! The legislatures of those States have no power to abolish slavery, simply because their Constitutions have expressly *taken away* that power. The people of Arkansas, Mississippi, &c., well knew the competency of the law-making power to abolish slavery, and hence their zeal to *restrict* it. The fact that these and other States have inhibited their legislatures from the exercise of this power, shows that the abolition of slavery is acknowledged to be a proper subject of legislation, when Constitutions impose no restrictions.

The slaveholding States have recognised this power in their *laws*. The Virginia Legislature passed a law in 1786 to prevent the further importation of Slaves, of which the following is an extract: "And be it further enacted that every slave imported into this commonwealth contrary to the true intent and meaning of this act, shall upon such importation become *free*." By a law of Virginia, passed Dec. 17, 1792, a slave brought into the state and kept *there a year*, was *free*. The Maryland Court of Appeals at the December term 1813 (see case of Stewart vs. Oakes,) decided that a slave owned in Maryland, and sent by his master into Virginia to work at different periods, making one year in the whole, became *free*, being *emancipated* by the law of Virginia quoted above. North Carolina and Georgia in their acts of cession, transferring to the United States the territory now constituting the States of Tennessee, Alabama and Mississippi, made it a condition of the grant, that the provisions of the ordinance of '87, should be secured to the inhabitants *with the exception of the sixth article which prohibits slavery*; thus conceding, both the competency of law to abolish slavery, and the power of Congress to do it, within its jurisdiction. Besides, these acts show the prevalent belief at that time, in the slaveholding States, that the general government had adopted a line of policy aiming at the exclusion of slavery from the entire territory of the United States, not included within the original States, and that this policy would be pursued unless prevented by specific and formal stipulation.

Slaveholding states have asserted this power *in their judicial decisions*. In numerous cases their highest courts have decided that if the legal owner of slaves takes them into those States where slavery has been abolished either by law or by the constitution, such removal emancipates them, such law or

constitution abolishing their slavery. This principle is asserted in the decision of the Supreme Court of Louisiana, in the case of Lunsford vs. Coquillon, 14 Martin's La. Reps. 401. Also by the Supreme Court of Virginia, in the case of Hunter vs. Fulcher, 1 Leigh's Reps. 172. The same doctrine was laid down by Judge Washington, of the United States Supreme Court, in the case of Butler vs. Hopper, Washington's Circuit Court Reps. 508. This principle was also decided by the Court of Appeals in Kentucky; case of Rankin vs. Lydia, 2 Marshall's Reps. 407; see also, Wilson vs. Isbell, 5 Call's Reps. 425, Spotts vs. Gillespie, 6 Randolph's Reps. 566. The State vs. Lasselle, 1 Blackford's Reps. 60, Marie Louise vs. Mariot, 8 La. Reps. 475. In this case, which was tried in 1836, the slave had been taken by her master to France and brought back; Judge Mathews, of the Supreme Court of Louisiana, decided that "residence for one moment" under the laws of France emancipated her.

6. *Eminent statesmen, themselves slaveholders, have conceded this power.* Washington, in a letter to Robert Morris, dated April 12, 1786, says: "There is not a man living, who wishes more sincerely than I do, to see a plan adopted for the abolition of slavery; but there is only one proper and effectual mode by which it can be accomplished, and that is by *legislative* authority." In a letter to Lafayette, dated May 10, 1786, he says: "It (the abolition of slavery) certainly might, and assuredly ought to be effected, and that too by *legislative* authority." In a letter to John Fenton Mercer, dated Sept. 9, 1786, he says: "It is among my first wishes to see some plan adopted by which slavery in this country may be abolished by *law*." In a letter to Sir John Sinclair, he says: "There are in Pennsylvania, *laws* for the gradual abolition of slavery, which neither Maryland nor Virginia have at present, but which nothing is more certain that that they *must have*, and at a period not remote." Speaking of movements in the Virginia Legislature in 1777, for the passage of a law emancipating the slaves, Mr. Jefferson says: "The principles of the amendment were agreed on, that is to say, the freedom of all born after a certain day; but it was found that the public mind would not bear the proposition, yet the day is not far distant, when *it must bear and adopt it*."—Jefferson's Memoirs, v. 1, p. 35. It is well known that Jefferson, Pendleton, Mason, Wythe and Lee, while acting as a committee of the Virginia House of Delegates to revise the State Laws, prepared a plan for the gradual emancipation of the slaves by law. These men were the great

lights of Virginia. Mason, the author of the Virginia Constitution; Pendleton, the President of the memorable Virginia Convention in 1787, and President of the Virginia Court of Appeals; Wythe was the Blackstone of the Virginia bench, for a quarter of a century Chancellor of the State, the professor of law in the University of William and Mary, and the preceptor of Jefferson, Madison, and Chief Justice Marshall. He was author of the celebrated remonstrance to the English House of Commons on the subject of the stamp act. As to Jefferson, his *name* is his biography.

Every slaveholding member of Congress from the States of Maryland, Virginia, North and South Carolina, and Georgia, voted for the celebrated ordinance of 1787, which *abolished* the slavery then existing in the Northwest Territory. Patrick Henry, in his well known letter to Robert Pleasants, of Virginia, January 18, 1773, says: "I believe a time will come when an opportunity will be offered to *abolish* this lamentable evil." William Pinkney, of Maryland, advocated the abolition of slavery by law, in the legislature of that State, in 1789. Luther Martin urged the same measure both in the Federal Convention, and in his report to the Legislature of Maryland. In 1796, St. George Tucker, professor of law in the University of William and Mary, and Judge of the General Court, published an elaborate dissertation on slavery, addressed to the General Assembly of the State, and urging upon them the abolition of slavery by *law*.

John Jay, while New-York was yet a slave State, and himself in law a slaveholder, said in a letter from Spain, in 1786, "An excellent law might be made out of the Pennsylvania one, for the gradual abolition of slavery. Were I in your legislature, I would present a bill for the purpose, drawn up with great care, and I would never cease moving it till it became a law, or I ceased to be a member."

Daniel D. Tompkins, in a message to the Legislature of New-York, January 8, 1812, said: "To devise the means for the gradual and ultimate *extermination* from amongst us of slavery, is work worthy the representatives of a polished and enlightened nation."

The Virginia Legislature asserted this power in 1832. At the close of a month's debate, the following proceedings were had. I extract from an editorial article of the Richmond Whig, of January 26, 1832.

"The report of the Select Committee, adverse to legislation on the subject of Abolition, was in these words: *Resolved*, as the opinion of this Committee, that it is INEXPEDIENT FOR THE PRESENT, to make any legislative enactments for the abolition of Slavery." This Report Mr. Preston moved to reverse, and thus to declare that it *was* expedient, *now* to make Legislative enactments for the abolition of slavery. This was meeting the question in its strongest form. It demanded action, and immediate action. On this proposition the vote was 58 to 73. Many of the most decided friends of abolition voted against the amendment; because they thought public opinion not sufficiently prepared for it, and that it might prejudice the cause to move too rapidly. The vote on Mr. Witcher's motion to postpone the whole subject indefinitely, indicates the true state of opinion in the House.—That was the test question, and was so intended and proclaimed by its mover. That motion was *negatived*, 71 to 60; showing a majority of 11, who by that vote, declared their belief that "at the proper time, and in the proper mode, Virginia ought to commence a system of gradual abolition."

8. *The Congress of the United States have asserted this power.* The ordinance of '87, declaring that there should be "neither slavery nor involuntary servitude," in the North Western territory, abolished the slavery then existing there. The Supreme Court of Mississippi, in its decision in the case of Harvey vs. Decker, Walker's Mi. Reps. 36, declared that the ordinance emancipated the slaves then held there. In this decision the question is argued ably and at great length. The Supreme Court of Louisiana made the same decision in the case of Forsyth vs. Nash, 4 Martin's La. Reps 385. The same doctrine was laid down by Judge Porter, (late United States Senator from Louisiana,) in his decision at the March term of the La. Supreme Court, 1830, in the case of Merry vs. Chexnaider, 20 Martin's Reps. 699.

That the ordinance abolished the slavery then existing, is also shown by the fact, that persons holding slaves in the territory petitioned for the repeal of the article abolishing slavery, assigning that as a reason. "The petition of the citizens of Randolph and St. Clair counties in the Illinois country, stating that they were in possession of slaves, and praying the repeal of that act (the 6th article of the ordinance of '87) and the passage of a law legalizing slavery there." [Am. State papers, Public Lands, v. 1. p. 69,] Congress passed this ordinance before the United States Constitution was adopted,

when it derived all its authority from the articles of Confederation, which conferred powers of legislation far more restricted than those conferred on Congress over the District and Territories by the United States Constitution. Now, we ask, how does the Constitution *abridge* the powers which Congress possessed under the articles of confederation?

The abolition of the slave trade by Congress, in 1808, is another illustration of the competency of legislative power to abolish slavery. The African slave trade has become such a mere *technic*, in common parlance, that the fact of its being *proper slavery* is overlooked. The buying and selling, the transportation, and the horrors of the middle passage, were mere *incidents* of the slavery in which the victims were held. Let things be called by their own names. When Congress abolished the African slave trade, it abolished SLAVERY—supreme slavery—power frantic with license, trampling a whole hemisphere scathed with its fires, and running down with blood. True, Congress did not, in the abolition of the slave trade, abolish *all* the slavery within its jurisdiction, but it did abolish all the slavery in *one part* of its jurisdiction. What has rifled it of power to abolish slavery in *another* part of its jurisdiction, especially in that part where it has "exclusive legislation in all cases whatsoever?"

9. *The Constitution of the United States recognizes this power by the most conclusive implication.* In Art. 1, sec. 3, clause 1, it prohibits the abolition of the slave trade previous to 1808: thus implying the power of Congress to do it at once, but for the restriction; and its power to do it *unconditionally*, when that restriction ceased. Again: In Art. 4, sec. 2, "No person held to service or labor in one state under the laws thereof, escaping into another, shall in consequence of any law or regulation therein, be discharged from said service or labor." This clause was inserted, as all admit, to prevent the runaway slave from being emancipated by the *laws* of the free states. If these laws had *no power* to emancipate, why this constitutional guard to prevent it?

The insertion of the clause, was the testimony of the eminent jurists that framed the Constitution, to the existence of the *power*, and their public proclamation, that the abolition of slavery was within the appropriate sphere of legislation. The right of the owner to that which is rightfully property, is founded on a principle of *universal law*, and is recognised and protected by

all civilized nations; property in slaves is, by general consent, an *exception*; hence slaveholders insisted upon the insertion of this clause in the United States Constitution that they might secure by an *express provision*, that from which protection is withheld, by the acknowledged principles of universal law.^A By demanding this provision, slaveholders consented that their slaves should not be recognised as property by the United States Constitution, and hence they found their claim, on the fact of their being "*persons, and held to service.*"

^A: The fact, that under the articles of Confederation, slaveholders, whose slaves had escaped into free states, had no legal power to force them back,—that *now* they have no power to recover, by process of law, their slaves who escape to Canada, the South American States, or to Europe—the case already cited in which the Supreme Court of Louisiana decided, that residence "*for one moment,*" under the laws of France emancipated an American slave—the case of *Fulton, vs. Lewis*, 3 Har. and John's Reps., 56, where the slave of a St. Domingo slaveholder, who brought him to Maryland in '93, was pronounced free by the Maryland Court of Appeals—these, with other facts and cases "*too numerous to mention,*" are illustrations of the acknowledged truth here asserted, that by the consent of the civilized world, and on the principles of universal law, slaves are not "*property,*" but *self-proprietors*, and that whenever held as property under law, it is only by *positive legislative acts*, forcibly setting aside the law of nature, the common law, and the principles of universal justice and right between man and man,—principles paramount to all law, and from which alone law derives its intrinsic authoritative sanction.

But waiving all concessions, whether of constitutions, laws, judicial decisions, or common consent, I take the position that the power of Congress to abolish slavery in the District, follows from the fact, that as the sole legislature there, it has unquestionable power *to adopt the Common Law, as the legal system within its exclusive jurisdiction*. This has been done, with certain restrictions, in most of the States, either by legislative acts or by constitutional implication. THE COMMON LAW KNOWS NO SLAVES. Its principles annihilate slavery wherever they touch it. It is a universal, unconditional, abolition act. Wherever slavery is a legal system, it is so only by *statute* law, and in violation of common law. The declaration of Lord Chief Justice Holt, that "*by the common law, no man can have*

property in another," is an acknowledged axiom, and based upon the well known common law definition of property. "The subjects of dominion or property are *things*, as contra-distinguished from *persons*." Let Congress adopt the common law in the District of Columbia, and slavery there is at once abolished. Congress may well be at home in common law legislation, for the common law is the grand element of the United States Constitution. All its *fundamental* provisions are instinct with its spirit; and its existence, principles and paramount authority, are presupposed and assumed throughout the whole. The preamble of the Constitution plants the standard of the Common Law immovably in its foreground. "We, the people of the United States, in order to ESTABLISH JUSTICE, &c., do ordain and establish this Constitution;" thus proclaiming *devotion to justice*, as the controlling motive in the organization of the Government, and its secure establishment the chief object of its aims. By this most solemn recognition, the common law, that grand legal embodiment of "*justice*" and fundamental right was made the groundwork of the Constitution, and intrenched behind its strongest munitions. The second clause of Sec. 9, Art. 1; Sec. 4, Art. 2, and the last clause of Sec. 2, Art. 3, with Articles 7, 8, 9, and 13 of the Amendments, are also express recognitions of the common law as the presiding Genius of the Constitution.

By adopting the common law within its exclusive jurisdiction Congress would carry out the principles of our glorious Declaration, and follow the highest precedents in our national history and jurisprudence. It is a political maxim as old as civil legislation, that laws should be strictly homogeneous with the principles of the government whose will they express, embodying and carrying them out—being indeed the *principles themselves*, in preceptive form—representatives alike of the nature and the power of the Government—standing illustrations of its genius and spirit, while they proclaim and enforce its authority. Who needs be told that slavery is in antagonism to the principles of the Declaration, and the spirit of the Constitution, and that these and the principles of the common law gravitate toward each other with irrepressible affinities, and mingle into one? The common law came hither with our pilgrim fathers; it was their birthright, their panoply, their glory, and their song of rejoicing in the house of their pilgrimage. It covered them in the day of their calamity, and their trust was under the shadow of its wings. From the first settlement of the country, the

genius of our institutions and our national spirit have claimed it as a common possession, and exulted in it with a common pride. A century ago, Governor Pownall, one of the most eminent constitutional jurists of colonial times, said of the common law, "In all the colonies the common law is received as the foundation and main body of their law." In the Declaration of Rights, made by the Continental Congress at its first session in '74, there was the following resolution: "Resolved, That the respective colonies are entitled to the common law of England, and especially to the great and inestimable privilege of being tried by their peers of the vicinage according to the course of that law." Soon after the organization of the general government, Chief Justice Ellsworth, in one of his decisions on the bench of the United States Supreme Court, said: "The common law of this country remains the same as it was before the revolution." Chief Justice Marshall, in his decision in the case of *Livingston vs. Jefferson*, said: "When our ancestors migrated to America, they brought with them the common law of their native country, so far as it was applicable to their new situation and I do not conceive that the revolution in any degree changed the relations of man to man, or the law which regulates them. In breaking our political connection with the parent state, we did not break our connection with each other." [See *Hall's Law Journal*, new series.] Mr. Duponceau, in his "Dissertation on the Jurisdiction of Courts in the United States," says, "I consider the common law of England the *jus commune* of the United States. I think I can lay it down as a correct principle, that the common law of England, as it was at the time of the declaration of Independence, still continues to be the national law of this country, so far as it is applicable to our present state, and subject to the modifications it has received here in the course of nearly half a century." Chief Justice Taylor of North Carolina, in his decision in the case of the *State vs. Reed*, in 1823, Hawkes' N.C. Reps. 454, says, "a law of *paramount obligation to the statute* was violated by the offence—COMMON LAW, founded upon the law of nature, and confirmed by revelation." The legislation of the United States abounds in recognitions of the principles of the common law, asserting their paramount binding power. Sparing details, of which our national state papers are full, we illustrate by a single instance. It was made a condition of the admission of Louisiana into the Union, that the right of trial by jury should be secured to all her citizens,—the United States government thus employing its power to enlarge the jurisdiction of the common law in this its great representative.

Having shown that the abolition of slavery is within the competency of the law-making power, when unrestricted by constitutional provisions, and that the legislation of Congress over the District is thus unrestricted, its power to abolish slavery there is established.

Besides this general ground, the power of Congress to abolish slavery in the District may be based upon another equally tenable. We argue it from the fact, that slavery exists there *now* by an act of Congress. In the act of 16th July, 1790, Congress accepted portions of territory offered by the states of Maryland and Virginia, and enacted that the laws, as they then were, should continue in force, "until Congress shall otherwise by law provide;" thus making the slave codes of Maryland and Virginia its own. Under these laws, adopted by Congress, and in effect re-enacted and made laws of the District, the slaves there are now held.

Is Congress so impotent in its own "exclusive jurisdiction" that it *cannot* "otherwise by law provide?" If it can say, what *shall* be considered property, it can say what *shall not* be considered property. Suppose a legislature enacts, that marriage contracts shall be mere bills of sale, making a husband the proprietor of his wife, as his *bona fide* property; and suppose husbands should herd their wives in droves for the market as beasts of burden, or for the brothel as victims of lust, and then prate about their inviolable legal property, and deny the power of the legislature, which stamped them property, to undo its own wrong, and secure to wives by law the rights of human beings. Would such cant about "legal rights" be heeded where reason and justice held sway, and where law, based upon fundamental morality, received homage? If a frantic legislature pronounces woman a chattel, has it no power, with returning reason, to take back the blasphemy? Is the impious edict irrevocable? Be it, that with legal forms it has stamped wives "wares." Can no legislation blot out the brand? Must the handwriting of Deity on human nature be expunged for ever? Has law no power to stay the erasing pen, and tear off the scrawled label that covers up the IMAGE OF GOD? We now proceed to show that

**THE POWER OF CONGRESS TO ABOLISH SLAVERY IN
THE DISTRICT HAS BEEN, TILL RECENTLY,
UNIVERSALLY CONCEDED.**

1. It has been assumed by Congress itself. The following record stands on the journals of the House of Representatives for 1804, p. 225: "On motion made and seconded that the House do come to the following resolution: 'Resolved, That from and after the 4th day of July, 1805, all blacks and people of color that shall be born within the District of Columbia, or whose mothers shall be the property of any person residing within said District, shall be free, the males at the age of ----, and the females at the age of ----. The main question being taken that the House do agree to said motion as originally proposed, it was negatived by a majority of 46.'" Though the motion was lost, it was on the ground of its alleged *inexpediency* alone, and not because Congress lacked the constitutional power. In the debate which preceded the vote, the *power* of Congress was conceded. In March, 1816, the House of Representatives passed the following resolution:—"Resolved, That a committee be appointed to inquire into the existence of an inhuman and illegal traffic in slaves, carried on in and through the District of Columbia, and to report whether any and what measures are necessary for *putting a stop to the same*."

On the 9th of January, 1829, the House of Representatives passed the following resolution by a vote of 114 to 66: "Resolved, That the Committee on the District of Columbia be instructed to inquire into the *expediency* of providing by *law* for the gradual abolition of slavery within the District, in such manner that the interests of no individual shall be injured thereby." Among those who voted in the affirmative were Messrs. Barney of Md., Armstrong of Va., A.H. Shepperd of N.C., Blair of Tenn., Chilton and Lyon of Ky., Johns of Delaware, and others from slave states.

2. It has been conceded directly, or impliedly, by all the committees on the District of Columbia that have reported on the subject. In a report of the committee on the District, Jan. 11, 1837, by their chairman, Mr. Powell of Virginia, there is the following declaration "The Congress of the United States, has by the constitution exclusive jurisdiction over the District, and has power upon this subject, (*slavery*) as upon all other subjects of legislation, to exercise *unlimited discretion*." Reps. of Comms. 2d Session, 19th Cong. v. I. No. 43. In February, 1829, the committee on the District, Mr. Alexander of Virginia, Chairman, in their report pursuant to Mr. Miner's resolutions, recognize a contingent abolition proceeding upon the consent of the people. In December, 1831, the committee on the District, Mr.

Doddridge of Virginia, Chairman, reported, "That until the adjoining states act on the subject (slavery) it would be (not *unconstitutional* but) unwise and impolitic, if not unjust, for Congress to interfere." In April, 1836, a special committee on abolition memorials reported the following resolutions by their Chairman, Mr. Pinckney of South Carolina: "Resolved, that Congress possesses no constitutional authority to interfere in any way with the institution of slavery in any of the states of this confederacy."

"Resolved, That Congress *ought not to interfere* in any way with slavery in the District of Columbia." "Ought not to interfere," carefully avoiding the phraseology of the first resolution, and thus in effect conceding the constitutional power. In a widely circulated "Address to the electors of the Charleston District," Mr. Pinckney is thus denounced by his own constituents: "He has proposed a resolution which is received by the plain common sense of the whole country as a concession that Congress has authority to abolish slavery in the District of Columbia."

3. It has been conceded by the *citizens of the District*. A petition for the gradual abolition of slavery in the District, signed by nearly eleven hundred of its citizens, was presented to Congress, March 24, 1837. Among the signers to this petition, were Chief Justice Cranch, Judge Van Ness, Judge Morsel, Prof. J.M. Staughton, Rev. Dr. Balch, Rev. Dr. Keith, John M. Munroe, and a large number of the most influential inhabitants of the District. Mr. Dickson, of New York, asserted on the floor of Congress in 1835, that the signers of this petition owned more than half of the property in the District. The accuracy of this statement has never been questioned.

This power has been conceded by *grand juries of the District*. The grand jury of the county of Alexandria, at the March term 1802, presented the domestic slave trade as a grievance, and said, "We consider these grievances demanding *legislative* redress." Jan. 19, 1829, Mr. Alexander, of Virginia, presented a representation of the grand jury in the city of Washington, remonstrating against "any measure for the abolition of slavery within said District, unless accompanied by measures for the removal of the emancipated from the same;" thus, not only conceding the power to emancipate slaves, but affirming an additional power, that of *excluding them when free*. See Journal H.R. 1828-9, p. 174.

4. This power has been conceded *by State Legislatures*. In 1828 the Legislature of Pennsylvania instructed their Senators in Congress "to procure, if practicable, the passage of a law to abolish slavery in the District of Columbia." Jan. 28, 1829, the House of Assembly of New York passed a resolution, that their "Senators in Congress be instructed to make every possible exertion to effect the passage of a law for the abolition of Slavery in the District of Columbia." In February, 1837, the Senate of Massachusetts "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery and the slave trade therein, and that the early exercise of such right is demanded by the enlightened sentiment of the civilized world, by the principles of the revolution, and by humanity." The House of Representatives passed the following resolution at the same session: "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery in said District, and that its exercise should only be restrained by a regard to the public good."

November 1, 1837, the Legislature of Vermont, "Resolved, that Congress have the full power by the constitution to abolish slavery and the slave trade in the District of Columbia, and in the territories." The Legislature of Vermont passed in substance the same resolution, at its session in 1836.

May 30, 1836, a committee of the Pennsylvania Legislature reported the following resolution: "Resolved, That Congress does possess the constitutional power, and it is expedient to abolish slavery and the slave trade within the District of Columbia."

In January, 1836, the Legislature of South Carolina "Resolved, That we should consider the abolition of slavery in the District of Columbia as a violation of the rights of the citizens of that District derived from the *implied* conditions on which that territory was ceded to the General Government." Instead of denying the constitutional power, they virtually admit its existence, by striving to smother it under an *implication*. In February, 1836, the Legislature of North Carolina "Resolved, That, although by the Constitution all legislative power over the District of Columbia is vested in the Congress of the United States, yet we would deprecate any legislative action on the part of that body towards liberating the slaves of that District, as a breach of faith towards those States by whom

the territory was originally ceded, and will regard such interference as the first step towards a general emancipation of the slaves of the South." Here is a full concession of the *power*, February 2, 1836, the Virginia Legislature passed unanimously the following resolution: "Resolved, by the General Assembly of Virginia, that the following article be proposed to the several states of this Union, and to Congress, as an amendment of the Constitution of the United States: 'The powers of Congress shall not be so construed as to authorize the passage of any law for the emancipation of slaves in the District of Columbia, without the consent of the individual proprietors thereof, unless by the sanction of the Legislatures of Virginia and Maryland, and under such conditions as they shall by law prescribe.'"

Fifty years after the formation of the United States constitution the states are solemnly called upon by the Virginia Legislature, to amend that instrument by a clause asserting that, in the grant to Congress of "exclusive legislation in all cases whatsoever" over the District, the "case" of slavery is not included!! What could have dictated such a resolution but the conviction that the power to abolish slavery is an irresistible interference from the constitution *as it is*. The fact that the same legislature passed afterward a resolution, though by no means unanimously, that Congress does not possess the power, abates not a tittle of the testimony in the first resolution. March 23d, 1824, "Mr. Brown presented the resolutions of the General Assembly of Ohio, recommending to Congress the consideration of a system for the gradual emancipation of persons of color held in servitude in the United States." On the same day, "Mr. Noble, of Indiana, communicated a resolution from the legislature of that state, respecting the gradual emancipation of slaves within the United States." Journal of the United States Senate, for 1824-5, p. 231.

The Ohio and Indiana resolutions, by taking for granted the *general* power of Congress over the subject of slavery, do virtually assert its *special* power within its *exclusive* jurisdiction.

5. The power of Congress to abolish slavery in the District, has been conceded by bodies of citizens in the slave states. The petition of eleven hundred citizens of the District of Columbia, in 1827, has been already mentioned. "March 5, 1830, Mr. Washington presented a memorial of inhabitants of the county of Frederick, in the state of Maryland, praying that

provision may be made for the gradual abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 358.

March 30, 1828. Mr. A.H. Shepperd, of North Carolina, presented a memorial of citizens of that state, "praying Congress to take measures for the entire abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 379.

January 14, 1822. Mr. Rhea, of Tennessee, presented a memorial of citizens of that state, praying "that provision may be made, whereby all slaves which may hereafter be born in the District of Columbia, shall be free at a certain period of their lives." Journal H.R. 1821-22, p. 142.

December 13, 1824. Mr. Saunders of North Carolina, presented a memorial of citizens of that state, praying "that measures may be taken for the gradual abolition of slavery in the United States." Journal H.R. 1824-25, p. 27.

December 16, 1828. "Mr. Barnard presented the memorial of the American Convention for promoting the abolition of slavery, held in Baltimore, praying that slavery may be abolished in the District of Columbia." Journal U.S. Senate, 1828-29, p. 24.

6. Distinguished statesmen and jurists in the slaveholding states, have conceded the power of Congress to abolish slavery in the District. The testimony of Messrs. Doddridge, Powell, and Alexander, of Virginia, Chief Justice Cranch, and Judges Morsell and Van Ness, of the District, has already been given. In the debate in Congress on the memorial of the Society of Friends, in 1790, Mr. Madison, in speaking of the territories of the United States, explicitly declared, from his own knowledge of the views of the members of the convention that framed the constitution, as well as from the obvious import of its terms, that in the territories "Congress have certainly the power to regulate the subject of slavery." Congress can have no more power over the territories than that of "exclusive legislation in all cases whatsoever," consequently, according to Mr. Madison, "it has certainly the power to regulate the subject of slavery in the" *District*. In March, 1816, John Randolph introduced a resolution for putting a stop to the domestic slave trade within the District. December 12, 1827, Mr. Barney, of Maryland, presented a memorial for abolition in the District, and moved that it be printed. Mr. McDuffie, of South Carolina, objected to the

printing, but "expressly admitted the right of Congress to grant to the people of the District any measures which they might deem necessary to free themselves from the deplorable evil."—(See letter of Mr. Claiborne, of Mississippi, to his constituents, published in the Washington Globe, May 9, 1836.) The sentiments of Henry Clay on the subject are well known. In a speech before the U.S. Senate, in 1836, he declared the power of Congress to abolish slavery in the District "unquestionable." Messrs. Blair, of Tennessee, Chilton, Lyon, and Richard M. Johnson, of Kentucky, A.H. Shepperd, of North Carolina, Messrs. Armstrong and Smyth, of Virginia, Messrs. Dorsey, Archer, and Barney, of Maryland, and Johns, of Delaware, with numerous others from slave states, have asserted the power of Congress to abolish slavery in the District. In the speech of Mr. Smyth, of Virginia, on the Missouri question, January 28, 1820, he says on this point: "If the future freedom of the blacks is your real object, and not a mere pretence, why do you not begin *here*? Within the ten miles square, you have *undoubted power* to exercise exclusive legislation. *Produce a bill to emancipate the slaves in the District of Columbia*, or, if you prefer it, to emancipate those born hereafter."

To this may be added the testimony of the present Vice President of the United States, Hon. Richard M. Johnson, of Kentucky. In a speech before the United States' Senate, February 1, 1820, (National Intelligencer, April 29, 1820,) he says: "Congress has the express power stipulated by the Constitution, to exercise exclusive legislation over this District of ten miles square. Here slavery is sanctioned by law. In the District of Columbia, containing a population of 30,000 souls, and probably as many slaves as the whole territory of Missouri, THE POWER OF PROVIDING FOR THEIR EMANCIPATION RESTS WITH CONGRESS ALONE. Why, then, let me ask, Mr. President, why all this sensibility—this commiseration—this heart-rending sympathy for the slaves of Missouri, and this cold insensibility, this eternal apathy, towards the slaves in the District of Columbia?"

It is quite unnecessary to add, that the most distinguished northern statesmen of both political parties, have always affirmed the power of Congress to abolish slavery in the District. President Van Buren in his letter of March 6, 1836, to a committee of gentlemen in North Carolina, says, "I would not, from the light now before me, feel myself safe in pronouncing that Congress does not possess the power of abolishing slavery in the

District of Columbia." This declaration of the President is consistent with his avowed sentiments touching the Missouri question, on which he coincided with such men as Daniel D. Tompkins, De Witt Clinton, and others, whose names are a host.^A It is consistent also, with his recommendation in his late message on the 5th of last month, in which, speaking of the District, he strongly urges upon Congress "a thorough and careful revision of its local government," speaks of the "entire dependence" of the people of the District "upon Congress," recommends that a "uniform system of local government" be adopted, and adds, that "although it was selected as the seat of the General Government, the site of its public edifices, the depository of its archives, and the residence of officers intrusted with large amounts of public property, and the management of public business, yet it never has been subjected to, or received, that *special* and *comprehensive* legislation which these circumstances peculiarly demanded."

^A: Mr. Van Buren, when a member of the Senate of New-York, voted for the following preamble and resolutions, which passed unanimously:—Jan. 28th, 1820. "Whereas, the inhibiting the further extension of slavery in the United States, is a subject of deep concern to the people of this state: and whereas, we consider slavery as an evil much to be deplored, and that *every constitutional barrier should be interposed to prevent its further extension*: and that the constitution of the United States *clearly gives congress the right* to require new states, not comprised within the original boundary of the United States, to *make the prohibition of slavery* a condition of their admission into the Union: Therefore,

"Resolved, That our Senators be instructed, and our members of Congress be requested, to oppose the admission as a state into the Union, of any territory not comprised as aforesaid, without making *the prohibition of slavery* therein an indispensable condition of admission."

The tenor of Senator Tallmadge's speech on the right of petition, in the last Congress, and of Mr. Webster's on the reception of abolition memorials, may be taken as universal exponents of the sentiments of northern statesmen as to the power of Congress to abolish slavery in the District of Columbia.

After presenting this array of evidence, *direct testimony* to show that the power of Congress to abolish slavery in the District, has always till recently been *universally conceded*, is perhaps quite superfluous. We subjoin; however, the following:

The Vice-President of the United States in his speech on the Missouri question, quoted above, after contending that the restriction of slavery in Missouri would be unconstitutional, adds, "But I am at a loss to conceive why gentlemen should arouse all their sympathies upon this occasion, when they permit them to lie dormant upon the same subject, in relation to other sections of country, in which THEIR POWER COULD NOT BE QUESTIONED." Then follows immediately the assertion of congressional power to abolish slavery in the District, as already quoted. In the speech of Mr. Smyth, of Va., also quoted above, he declares the power of Congress to abolish slavery in the District to be "UNDOUBTED."

Mr. Sutherland, of Pennsylvania, in a speech in the House of Representatives, on the motion to print Mr. Pinckney's Report, is thus reported in the Washington Globe, of May 9th, '36. "He replied to the remark that the report conceded that Congress had a right to legislate upon the subject in the District of Columbia, and said that SUCH A RIGHT HAD NEVER BEEN, TILL RECENTLY, DENIED."

The American Quarterly Review, published at Philadelphia, with a large circulation and list of contributors in the slave states, holds the following language in the September No. 1833, p. 55: "Under this 'exclusive jurisdiction,' granted by the constitution, Congress has power to abolish slavery and the slave trade in the District of Columbia. It would hardly be necessary to state this as a distinct proposition, had it not been occasionally questioned. The truth of the assertion, however, is too obvious to admit of argument—and we believe HAS NEVER BEEN DISPUTED BY PERSONS WHO ARE FAMILIAR WITH THE CONSTITUTION."

Finally—an explicit, and unexpected admission, that an "*over-whelming majority*" of the *present* Congress concede the power to abolish slavery in the District, has just been made by a member of Congress from South Carolina, in a letter published in the Charleston Mercury of Dec. 27, well known as the mouth-piece of Mr. Calhoun. The following is an extract:

"The time has arrived when we must have new guarantees under the constitution, or the union must be dissolved. *Our views of the constitution are not those of the majority. An overwhelming majority think that by the constitution, Congress may abolish slavery in the District of Columbia—may abolish the slave trade between the States; that is, it may prohibit their being carried out of the State in which they are—and prohibit it in all the territories, Florida among them. They think, NOT WITHOUT STRONG REASONS, that the power of Congress extends to all of these subjects.*"

In another letter, the same correspondent says:

"The fact is, it is vain to attempt, AS THE CONSTITUTION IS NOW, to keep the question of slavery out of the halls of Congress,—until, by some decisive action, WE COMPEL SILENCE, or alter the constitution, agitation and insult is our eternal fate in the confederacy."

OBJECTIONS TO THE FOREGOING CONCLUSIONS CONSIDERED.

We now proceed to notice briefly the main arguments that have been employed in Congress and elsewhere against the power of Congress to abolish slavery in the District. One of the most plausible, is that "the conditions on which Maryland and Virginia ceded the District to the United States, would be violated, if Congress should abolish slavery there." The reply to this is, that Congress had no power to *accept* a cession coupled with conditions restricting the power given it by the constitution. Nothing short of a convention of the states, and an alteration of the constitution, abridging its grant of power, could have empowered Congress to accept a territory on any other conditions than that of exercising "exclusive legislation, in all cases whatsoever," over it.

To show the futility of the objection, here follow the acts of cession. The cession of Maryland was made in November, 1788, and is as follows: "An act to cede to Congress a district of ten miles square in this state for the seat of the government of the United States."

"Be it enacted, by the General Assembly of Maryland, that the representatives of this state in the House of Representatives of the Congress

of the United States, appointed to assemble at New-York, on the first Wednesday of March next, be, and they are hereby authorized and required on the behalf of this state, to cede to the Congress of the United States, any district in this state, not exceeding ten miles square, which the Congress may fix upon, and accept for the seat of government of the United States." Laws of Maryland, vol. 2, chap. 46.

The cession from Virginia was made by act of the Legislature of that State on the 3d of December, 1788, in the following words:

"Be it enacted by the General Assembly, That a tract of country, not exceeding ten miles square, or any lesser quantity, to be located within the limits of the State, and in any part thereof, as Congress may, by law, direct, shall be, and the same is hereby for ever ceded and relinquished to the Congress and Government of the United States, in full and absolute right, and exclusive jurisdiction, as well of soil, as of persons residing or to reside thereon, pursuant to the tenor and effect of the eighth section of the first article of the government of the constitution of the United States."

But were there no provisos to these acts? The Maryland act had *none*. That part of the District therefore, which includes the cities of Washington and Georgetown, can lay claim to nothing with which to ward off the power of Congress. The Virginia act had this proviso: "Sect. 2. Provided, that nothing herein contained, shall be construed to vest in the United States any right of property in the *soil*, or to affect the rights of individuals *therein*, otherwise than the same shall or may be transferred by such individuals to the United States."

This specification touching the soil was merely definitive and explanatory of that clause in the act of cession, "*full and absolute right*." Instead of restraining the power of Congress on *slavery* and other subjects, it even gives it wider scope; for exceptions to *parts* of a rule, give double confirmation to those parts not embraced in the exceptions. If it was the *design* of the proviso to restrict congressional action on the subject of *slavery*, why is the *soil alone* specified? As legal instruments are not paragons of economy in words, might not "John Doe," out of his abundance, and without spoiling his style, have afforded an additional word—at least a hint—that slavery was *meant*, though nothing was *said* about it?

The subject must have been too "delicate," even for the most distant allusion! The mystery of silence is solved!!

But again, Maryland and Virginia, in their acts of cession, declare them to be "in pursuance of" that clause of the constitution which gives to Congress "exclusive legislation in all cases whatsoever over" the ten miles square—thus, instead of *restricting* that clause, both States gave an express and decided confirmation of it. Now, their acts of cession either accorded with that clause of the constitution, or they conflicted with it. If they conflicted with it, *accepting* the cessions was a violation of the constitution. If they accorded, the objector has already had his answer. The fact that Congress accepted the cessions, proves that in its view their *terms* did not conflict with the constitutional grant of "power to exercise exclusive legislation in all cases whatsoever over such District." The inquiry whether these acts of cession were consistent or inconsistent with the United States constitution, is totally irrelevant to the question at issue. What saith the CONSTITUTION? That is the question. Not, what saith Virginia, or Maryland, or—equally to the point—John Bull! If Maryland and Virginia had been the authorized interpreters of the constitution for the Union, these acts of cession could hardly have been magnified more than they were by Messrs. Garland and Wise in the last Congress. A true understanding of the constitution can be had, forsooth, only by holding it up in the light of Maryland and Virginia legislation!

We are told, again, that those States would not have ceded the District if they had supposed the constitution gave Congress power to abolish slavery in it.

This comes with an ill grace from Maryland and Virginia. They *knew* the constitution. They were parties to it. They had sifted it, clause by clause, in their State conventions. They had weighed its words in the balance—they had tested them as by fire; and finally, after long pondering, they *adopted* the constitution. And *afterward*, self-moved, they ceded the ten miles square, and declared the cession made "in pursuance of" that oft-cited clause, "Congress shall have power to exercise exclusive legislation in all cases whatsoever over such District," &c. And now verily "they would not have ceded if they had *supposed*!" &c. Cede it they *did*, and "in full and absolute right both of soil and persons." Congress accepted the cession—

state power over the District ceased, and congressional power over it commenced—and now, the sole question to be settled is, *the amount of power over the District, lodged in Congress by the constitution*. The constitution—the CONSTITUTION—that is the point. Maryland and Virginia "suppositions" must be potent suppositions, to abrogate a clause in the United States Constitution! That clause either gives Congress power to abolish slavery in the District, or it does *not*—and that point is to be settled, not by state "suppositions," nor state usages, nor state legislation, but *by the terms of the clause themselves*.

Southern members of Congress, in the recent discussions, have conceded the power of a contingent abolition in the District, by suspending it upon the consent of the people. Such a doctrine from *declaimers* like Messrs. Alford, of Georgia, and Walker, of Mississippi, would excite no surprise; but that it should be honored with the endorsement of such men as Mr. Rives and Mr. Calhoun, is quite unaccountable. Are attributes of *sovereignty* mere creatures of *contingency*? Is delegated *authority* mere conditional *permission*? Is a *constitutional power* to be exercised by those who hold it, only by popular *sufferance*? Must it lie helpless at the pool of public sentiment, waiting the gracious troubling of its waters? Is it a lifeless corpse, save only when popular "consent" deigns to put breath into its nostrils? Besides, if the consent of the people of the District be necessary, the consent of the *whole* people must be had—not that of a majority, however large. Majorities, to be authoritative, must be *legal*—and a legal majority without legislative power, right of representation, or even the electoral franchise, would be an anomaly. In the District of Columbia, such a thing as a majority in a legal sense is unknown to law. To talk of the power of a majority, or the will of a majority there, is mere mouthing. A majority? Then it has an authoritative will—and an organ to make it known—and an executive to carry it into effect—Where are they? We repeat it—if the consent of the people of the District be necessary, the consent of *every one* is necessary—and *universal* consent will come only with the Greek Kalends and a "perpetual motion." A single individual might thus perpetuate slavery in defiance of the expressed will of a whole people. The most common form of this fallacy is given by Mr. Wise, of Virginia, in his speech, February 16, 1835, in which he denied the power of Congress to abolish slavery in the District, unless the inhabitants owning slaves

petitioned for it!! Southern members of Congress at the present session ring changes almost daily upon the same fallacy. What! pray Congress *to use* a power which it *has not*? "It is required of a man according to what he *hath*," saith the Scripture. I commend Mr. Wise to Paul for his ethics. Would that he had got his *logic* of him! If Congress does not possess the power, why taunt it with its weakness, by asking its exercise? Why mock it by demanding impossibilities? Petitioning, according to Mr. Wise, is, in matters of legislation, omnipotence itself; the very source of all constitutional power; for, *asking* Congress to do what it *cannot* do, gives it the power—to pray the exercise of a power that is *not*, *creates* it. A beautiful theory! Let us work it both ways. If to petition for the exercise of a power that is *not*, creates it—to petition against the exercise of a power that *is*, annihilates it. As southern gentlemen are partial to summary processes, pray, sirs, try the virtue of your own recipe on "exclusive legislation in all cases whatsoever;" a better subject for experiment and test of the prescription could not be had. But if the petitions of the citizens of the District give Congress the *right* to abolish slavery, they impose the *duty*; if they confer constitutional authority, they create constitutional obligation. If Congress *may* abolish because of an expression of their will, it *must* abolish at the bidding of that will. If the people of the District are a *source of power* to Congress, their *expressed will* has the force of a constitutional provision, and has the same binding power upon the National Legislature. To make Congress dependent on the District for authority, is to make it a *subject* of its authority, restraining the exercise of its own discretion, and sinking it into a mere organ of the District's will. We proceed to another objection.

"The southern states would not have ratified the constitution, if they had supposed that it gave this power." It is a sufficient answer to this objection, that the northern states would not have ratified it, if they had supposed that it *withheld* the power. If "suppositions" are to take the place of the constitution—coming from both sides, they neutralize each other. To argue a constitutional question by *guessing* at the "suppositions" that might have been made by the parties to it, would find small favor in a court of law. But even a desperate shift is some easement when sorely pushed. If this question is to be settled by "suppositions," suppositions shall be forthcoming, and that without stint.

First, then, I affirm that the North ratified the constitution, "supposing" that slavery had begun to wax old, and would speedily vanish away, and especially that the abolition of the slave trade, which by the constitution was to be surrendered to Congress after twenty years, would cast it headlong.

Would the North have adopted the constitution, giving three-fifths of the "slave property" a representation, if it has "supposed" that the slaves would have increased from half a million to two millions and a half by 1838—and that the census of 1840 would give to the slave states, 30 representatives of "slave property?"

If they had "supposed" that this representation would have controlled the legislation of the government, and carried against the North every question vital to its interests, would Alexander Hamilton, Benjamin Franklin, Roger Sherman, Elbridge Gerry, William Livingston, John Langdon, and Rufus King have been such madmen, as to sign the constitution, and the Northern States such suicides as to ratify it? Every self-preserving instinct would have shrieked at such an infatuate immolation. At the adoption of the United States constitution, slavery was regarded as a fast waning system. This conviction was universal. Washington, Jefferson, Patrick Henry, Grayson, St. George Tucker, Madison, Wythe, Pendleton, Lee, Blair, Mason, Page, Parker, Edmund Randolph, Iredell, Spaight, Ramsey, William Pinckney, Luther Martin, James McHenry, Samuel Chase, and nearly all the illustrious names south of the Potomac, proclaimed it before the sun, that the days of slavery were beginning to be numbered. A reason urged in the convention that formed the United States constitution, why the word slave should not be used in it, was, that *when slavery should cease* there might remain upon the National Charter no record that it had even been. (See speech of Mr. Burrill, of R.I., on the Missouri question.)

I now proceed to show by testimony, that at the date of the United States constitution, and for several years before and after that period, slavery was rapidly on the wane; that the American Revolution with the great events preceding accompanying, and following it, had wrought an immense and almost universal change in the public sentiment of the nation of the subject, powerfully impelling it toward the entire abolition of the system—and that it was the *general belief* that measures for its abolition throughout the

Union, would be commenced by the individual States generally before the lapse of many years. A great mass of testimony establishing this position is at hand and might be presented, but narrow space, little time, the patience of readers, and the importance of speedy publication, counsel brevity. Let the following proofs suffice. First, a few dates as points of observation.

The first *general* Congress met in 1774. The revolutionary war commenced in '75. Independence was declared in '76. The articles of confederacy were adopted by the thirteen states in '78. Independence acknowledged in '83. The convention for forming the U.S. constitution was held in '87, the state conventions for considering it in '87, and '88. The first Congress under the constitution in '89.

Dr. Rush, of Pennsylvania, one of the signers of the Declaration of Independence, in a letter to the celebrated Granville Sharpe, May 1, 1773, says: "A spirit of humanity and religion begins to awaken in several of the colonies in favor of the poor negroes. The clergy begin to bear a public testimony against this violation of the laws of nature and christianity. Great events have been brought about by small beginnings. *Anthony Benezet stood alone a few years ago in opposing negro slavery in Philadelphia*, and NOW THREE-FOURTHS OF THE PROVINCE AS WELL AS OF THE CITY CRY OUT AGAINST IT."—(Stuart's Life of Sharpe, p. 21.)

In the preamble to the act prohibiting the importation of slaves into Rhode Island, June 1774, is the following: "Whereas, the inhabitants of America are generally engaged in the preservation of their own rights and liberties, among which that of personal freedom must be considered the greatest, and as those who are desirous of enjoying all the advantages of liberty themselves, *should be willing to extend personal liberty to others*, therefore," &c.

October 20, 1774, the Continental Congress passed the following: "We, for ourselves and the inhabitants of the several colonies whom we represent, *firmly agree and associate under the sacred ties of virtue, honor, and love of our country*, as follows:

"2d Article. *We will neither import nor purchase any slaves imported after the first day of December next, after which time we will wholly discontinue the slave trade, and we will neither be concerned in it ourselves, nor will we*

hire our vessels, nor sell our commodities or manufactures to those who are concerned in it."

The Continental Congress, in 1775, setting forth the causes and the necessity for taking up arms, say: "*If it were possible* for men who exercise their reason to believe that the Divine Author of our existence intended a part of the human race *to hold an absolute property in, and unbounded power over others*, marked out by infinite goodness and wisdom as objects of a legal domination, never rightfully resistible, however severe and oppressive, the inhabitants of these colonies might at least require from the Parliament of Great Britain some evidence that this dreadful authority over them has been granted to that body."

In 1776, the celebrated Dr. Hopkins, then at the head of New England divines, published a pamphlet entitled, "An Address to the owners of negro slaves in the American colonies," from which the following is an extract: "The conviction of the unjustifiableness of this practice (slavery) has been *increasing*, and *greatly spreading of late*, and *many* who have had slaves, have found themselves so unable to justify their own conduct in holding them in bondage, as to be induced to *set them at liberty*. May this conviction soon reach every owner of slaves in *North America!* Slavery is, *in every instance*, wrong, unrighteous, and oppressive—a very great and crying sin—*there being nothing of the kind equal to it on the face of the earth*."

The same year the American Congress issued a solemn MANIFESTO to the world. These were its first words: "We hold these truths to be self-evident, that *all* men are created equal, that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness." *Once*, these were words of power; *now*, "a rhetorical flourish."

The celebrated Patrick Henry of Virginia, in a letter, of Jan. 18, 1773, to Robert Pleasants, afterwards president of the Virginia Abolition Society, says: "Believe me, I shall honor the Quakers for their noble efforts to abolish slavery. It is a debt we owe to the purity of our religion to show that it is at variance with that law that warrants slavery. I exhort you to persevere in so worthy a resolution."

In 1779, the Continental Congress ordered a pamphlet to be published, entitled, "Observations on the American Revolution," from which the following is an extract: "The great principle (of government) is and ever will remain in force, *that men are by nature free*; as accountable to him that made them, they must be so; and so long as we have any idea of divine *justice*, we must associate that of *human freedom*. Whether men can part with their liberty, is among the questions which have exercised the ablest writers; but it is *conceded on all hands, that the right to be free CAN NEVER BE ALIENATED*—still less is it practicable for one generation to mortgage the privileges of another."

Extract from the Pennsylvania act for the Abolition of Slavery, passed March 1, 1780: * * * "We conceive that it is our duty, and we rejoice that it is in our power, to extend a portion of that freedom to others which has been extended to us. Weaned by a long course of experience from those narrow prejudices and partialities we have imbibed, we find our hearts enlarged with kindness and benevolence towards men of all conditions and nations: * * * Therefore be it enacted, that no child born hereafter be a slave," &c.

Jefferson, in his Notes on Virginia, written just before the close of the Revolutionary War, says: "I think a change already perceptible since the origin of the present revolution. The spirit of the master is abating, that of the slave is rising from the dust, his condition mollifying, *the way I hope preparing under the auspices of heaven, FOR A TOTAL EMANCIPATION*, and that this is disposed, in the order of events, to be with the consent of the masters, rather than by their extirpation."

In a letter to Dr. Price, of London, who had just published a pamphlet in favor of the abolition of slavery, Mr. Jefferson, then Minister at Paris, (August 7, 1785,) says: "From the mouth to the head of the Chesapeake, *the bulk of the people will approve of your pamphlet in theory*, and it will find a respectable minority ready to *adopt it in practice*—a minority which, for weight and worth of character, *preponderates against the greater number*." Speaking of Virginia, he says: "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression,—a conflict in which *THE SACRED SIDE IS GAINING DAILY RECRUITS*. Be not, therefore discouraged—what you have written

will do a *great deal of good*; and could you still trouble yourself with our welfare, no man is more able to give aid to the laboring side. The College of William and Mary, in Williamsburg, since the remodelling of its plan, is the place where are collected together all the young men of Virginia, under preparation for public life. They are there under the direction (most of them) of a Mr. Wythe, one of the most virtuous of characters, and *whose sentiments on the subject of slavery are unequivocal*. I am satisfied, if you could resolve to address an exhortation to those young men with all the eloquence of which you are master that *its influence on the future decision of this important question would be great, perhaps decisive*. Thus, you see, that so far from thinking you have cause to repent of what you have done, *I wish you to do more, and wish it on an assurance of its effect*."—Jefferson's Posthumous Works, vol. 1, p. 268.

In 1786, John Jay, afterward Chief Justice of the United States, drafted and signed a petition to the Legislature of New York, on the subject of slavery, beginning with these words:

"Your memorialists being deeply affected by the situation of those, who, although FREE BY THE LAWS OF GOD, are held in slavery by the laws of the State," &c.

This memorial bore also the signature of the celebrated Alexander Hamilton; Robert R. Livingston, afterward Secretary of Foreign Affairs of the United States, and Chancellor of the State of New York; James Duane, Mayor of the City of New York, and many others of the most eminent individuals in the State.

In the preamble of an instrument, by which Mr. Jay emancipated a slave in 1784, is the following passage:

"Whereas, the children of men are by nature equally free, and cannot, without injustice, be either reduced to or HELD in slavery."

In his letter while Minister at Spain, in 1786, he says, speaking of the abolition of slavery: "Till America comes into this measure, her prayers to heaven will be IMPIOUS. This is a strong expression, but it is just. I believe God governs the world; and I believe it to be a maxim in his, as in our court, that those who ask for equity *ought to do it*."

In 1785, the New York Manumission Society was formed. John Jay was chosen its first President, and held the office five years. Alexander Hamilton was its second President, and after holding the office one year, resigned upon his removal to Philadelphia as Secretary of the United States' Treasury. In 1787, the Pennsylvania Abolition Society was formed. Benjamin Franklin, warm from the discussions of the convention that formed the United States constitution, was chosen President, and Benjamin Rush, Secretary—both signers of the Declaration of Independence. In 1789, the Maryland Abolition Society was formed. Among its officers were Samuel Chace, Judge of the United States Supreme Court, and Luther Martin, a member of the convention that formed the United States constitution. In 1790, the Connecticut Abolition Society was formed. The first President was Rev. Dr. Stiles, President of Yale College, and the Secretary, Simeon Baldwin, (the late Judge Baldwin of New Haven.) In 1791, this Society sent a memorial to Congress, from which the following is an extract:

"From a sober conviction of the unrighteousness of slavery, your petitioners have long beheld, with grief, our fellow men doomed to perpetual bondage, in a country which boasts of her freedom. Your petitioners are fully of opinion, that calm reflection will at last convince the world, that the whole system of African slavery is unjust in its nature—impolitic in its principles—and, in its consequences, ruinous to the industry and enterprise of the citizens of these States. From a conviction of these truths, your petitioners were led, by motives, we conceive, of general philanthropy, to associate ourselves for the protection and assistance of this unfortunate part of our fellow men; and, though this Society has been *lately* established, it has now become *generally extensive* through this state, and, we fully believe, *embraces, on this subject, the sentiments of a large majority of its citizens.*"

The same year the Virginia Abolition Society was formed. This Society, and the Maryland Society, had auxiliaries in different parts of those States. Both societies sent up memorials to Congress. The memorial of the Virginia Society is headed—"The memorial of the *Virginia Society*, for promoting the Abolition of Slavery, &c." The following is an extract:

"Your memorialists, fully believing that 'righteousness exalteth a nation,' and that slavery is not only an odious degradation, but an *outrageous*

violation of one of the most essential rights of human nature, and utterly repugnant to the precepts of the gospel, which breathes 'peace on earth, good will to men;' lament that a practice, so inconsistent with true policy and the inalienable rights of men, should subsist in so enlightened an age, and among a people professing, that all mankind are, by nature, equally entitled to freedom."

About the same time a Society was formed in New-Jersey. It had an acting committee of five members in each county in the State. The following is an extract from the preamble to its constitution:

"It is our boast, that we live under a government founded on principles of justice and reason, wherein life, liberty, and the pursuit of happiness, are recognised as the universal rights of men; and whilst we are anxious to preserve these rights to ourselves, and transmit them inviolate, to our posterity, we abhor that inconsistent, illiberal, and interested policy, which withholds those rights, from an unfortunate and degraded class of our fellow creatures."

Among other distinguished individuals who were efficient officers of these Abolition Societies, and delegates from their respective state societies, at the annual meetings of the American convention for promoting the abolition of slavery, were Hon. Uriah Tracy, United States' Senator, from Connecticut; Hon. Zephaniah Swift, Chief Justice of the same State; Hon. Cesar A. Rodney, Attorney General of the United States; Hon. James A. Bayard, United States Senator, from Delaware; Governor Bloomfield, of New Jersey; Hon. Wm. Rawle, the late venerable head of the Philadelphia bar; Dr. Casper Wistar, of Philadelphia; Messrs. Foster and Tillinghast, of Rhode Island; Messrs. Ridgeley, Buchanan, and Wilkinson, of Maryland; and Messrs. Pleasants, McLean, and Anthony, of Virginia.

In July, 1787, the old Congress passed the celebrated ordinance, abolishing slavery in the northwestern territory, and declaring that it should never thereafter exist there. This ordinance was passed while the convention that formed the United States constitution was in session. At the first session of Congress under the constitution, this ordinance was ratified by a special act. Washington, fresh from the discussions of the convention, in which *more than forty days had been spent in adjusting the question of slavery, gave it*

his approval. The act passed with only one dissenting voice, (that of Mr. Yates, of New-York,) the South equally with the North avowing the fitness and expediency of the measure of general considerations, and indicating thus early the line of national policy, to be pursued by the United States Government on the subject of slavery.

In the debates in the North Carolina Convention, Mr. Iredell, afterward a Judge of the United States' Supreme Court, said, "*When the entire abolition of slavery takes place*, it will be an event which must be pleasing to every generous mind and every friend of human nature." Mr. Galloway said, "I wish to see this abominable trade put an end to. I apprehend the clause (touching the slave trade) means to *bring forward manumission*." Luther Martin, of Md., a member of the convention that formed the United States constitution, said, "We ought to authorize the General Government to make such regulations as shall be thought most advantageous for *the gradual abolition of slavery*, and the *emancipation of the slaves* which are already in the States." Judge Wilson, of Pennsylvania, one of the framers of the constitution, said, in the Pennsylvania convention of '87, Deb. Pa. Con. p. 303, 156: "I consider this (the clause relative to the slave trade) as laying the foundation for *banishing slavery out of this country*. It will produce the same kind of gradual change which was produced in Pennsylvania; the new states which are to be formed will be under the control of Congress in this particular, and *slaves will never be introduced* among them. It presents us with the pleasing prospect that the rights of mankind will be acknowledged and established *throughout the Union*. Yet the lapse of a few years, and Congress will have power to *exterminate slavery* within our borders." In the Virginia convention of '87, Mr. Mason, author of the Virginia constitution, said, "The augmentation of slaves weakens the States, and such a trade is *diabolical* in itself, and disgraceful to mankind. As much as I value a union of all the states, I would not admit the southern states, (i.e., South Carolina and Georgia,) into the union, *unless they agree to a discontinuance of this disgraceful trade*." Mr. Tyler opposed with great power the clause prohibiting the abolition of the slave trade till 1808, and said, "My earnest desire is, that it shall be handed down to posterity that I oppose this wicked clause." Mr. Johnson said, "The principle of emancipation *has begun since the revolution. Let us do what we will, it will come round*."—[*Deb. Va. Con.* p. 463.] Patrick Henry, arguing the power of Congress under the United

States constitution to abolish slavery in the States, said, in the same convention, "Another thing will contribute to bring this event (the abolition of slavery) about. Slavery is *detested*. We feel its fatal effects; we deplore it with all the pity of humanity."—[*Deb. Va. Con.* p. 431.] In the Mass. Con. of '88, Judge Dawes said, "Although slavery is not smitten by an apoplexy, yet *it has received a mortal wound*, and will die of consumption."—[*Deb. Mass. Con.* p. 60.] General Heath said that, "Slavery was confined to the States *now existing*, *it could not be extended*. By their ordinance, Congress had declared that the new States should be republican States, and *have no slavery*."—p. 147.

In the debate in the first Congress, February 11th and 12th, 1789, on the petitions of the Society of Friends, and the Pennsylvania Abolition Society, Mr. Parker, of Virginia, said, "I hope, Mr. Speaker, the petition of these respectable people will be attended to *with all the readiness the importance of its object demands*; and I cannot help expressing the pleasure I feel in finding *so considerable a part* of the community attending to matters of such a momentous concern to the *future prosperity* and happiness of the people of America. I think it my duty, as a citizen of the Union, *to espouse their cause*."

Mr. Page, of Virginia, (afterward Governor)—"Was *in favor* of the commitment; he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion of the prayer of the memorial. With respect to the alarm that was apprehended, he conjectured there was none; but there might be just cause, if the memorial was *not* taken into consideration. He placed himself in the case of a slave, and said, that on hearing that Congress had refused to listen to the decent suggestions of a respectable part of the community, he should infer, that the general government, *from which was expected great good would result to EVERY CLASS of citizens*, had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if any thing could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf, and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and *wait the decision patiently*."

Mr. Scott, of Pennsylvania: "I cannot, for my part, conceive how any person *can be said to acquire a property in another*; but enough of those who reduce men to the state of transferable goods, or use them like beasts of burden, who deliver them up as the property or patrimony of another man. Let us argue on principles countenanced by reason, and becoming humanity. *I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation, but I am sure I would go as far as I could.*"

Mr. Burke, of South Carolina, said, "He *saw the disposition of the House*, and he feared it would be referred to a committee, maugre all their opposition."

Mr. Smith, of South Carolina, said, "That on entering into this government, they (South Carolina and Georgia) apprehended that the other states, not knowing the necessity the citizens of the Southern states were under to hold this species of property, *would, from motives of humanity and benevolence, be led to vote for a general emancipation*; and had they not seen, that the constitution provided against the effect of such a disposition, I may be bold to say, they never would have adopted it."

In the debate, at the same session, May 13th, 1789, on the petition of the Society of Friends respecting the slave trade, Mr. Parker, of Virginia, said, "He hoped Congress would do all that lay in their power to *restore to human nature its inherent privileges*, and if possible, wipe off the stigma, which America labored under. The inconsistency in our principles, with which we are justly charged *should be done away*, that we may show by our actions the pure beneficence of the doctrine we held out to the world in our Declaration of Independence."

Mr. Jackson of Georgia, said, "IT WAS THE FASHION OF THE DAY TO FAVOR THE LIBERTY OF THE SLAVES. * * * * * What is to be done for compensation? Will Virginia set all her negroes free? Will they give up the money they have cost them; and to whom? *When this practice comes to be tried, then the sound of liberty will lose those charms which make it grateful to the ravished ear.*"

Mr. Madison of Virginia,—*"The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy, require it of*

us. The constitution has particularly called our attention to it. * * * * * I conceive the constitution in this particular was formed in order that the Government, whilst it was restrained from having a total prohibition, might be able to *give some testimony of the sense of America*, with respect to the African trade. * * * * * It is to be hoped, that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, AND OUR POSTERITY THE IMBECILITY EVER ATTENDANT ON A COUNTRY FILLED WITH SLAVES. I do not wish to say any thing harsh to the hearing of gentlemen who entertain different sentiments from me, or different sentiments from those I represent. But if there is any one point in which it is clearly the policy of this nation, so far as we constitutionally can, *to vary the practice* obtaining under some of the state governments, it is this. But it is *certain* a majority of the states are *opposed to this practice*."—[Cong. Reg. v. 1, p. 308-12.]

A writer in the "Gazette of the United States," Feb. 20th, 1790, (then the government paper,) who opposes the abolition of slavery, and avows himself a *slaveholder*, says, "I have seen in the papers accounts of *large associations*, and applications to Government for *the abolition of slavery*. Religion, humanity, and the generosity natural to a free people, are the *noble principles which dictate those measures*. SUCH MOTIVES COMMAND RESPECT, AND ARE ABOVE ANY EULOGIUM WORDS CAN BESTOW."

It is well known, that in the convention that formed the constitution of Kentucky in 1780, the effort to prohibit slavery was nearly successful. The writer has frequently heard it asserted in Kentucky, and has had it from some who were members of that convention, that a decided majority of that body would have voted for its exclusion but for the great efforts and influence of two large slaveholders—men of commanding talents and sway—Messrs. Breckenridge and Nicholas. The following extract from a speech made in that convention by a member of it, Mr. Rice, a native Virginian, is a specimen of the *free discussion* that prevailed on that "delicate subject." Said Mr. Rice: "I do a man greater injury, when I deprive him of his liberty, than when I deprive him of his property. It is vain for me to plead that I have the sanction of law; for this makes the injury the greater—it arms the community against him, and makes his case desperate. The owners of such slaves then are *licensed robbers*, and not the just proprietors of what they

claim. Freeing them is not depriving them of property, but *restoring it to the right owner*. In America, a slave is a standing monument of the tyranny and inconsistency of human governments. The master is the enemy of the slave; he *has made open war upon him*, AND IS DAILY CARRYING IT ON in unremitted efforts. Can any one imagine, then, that the slave is indebted to his master, and *bound to serve him*? Whence can the obligation arise? What is it founded upon? What is my duty to an enemy that is carrying on war against me? I do not deny, but in some circumstances, it is the duty of the slave to serve; but it is a duty he owes himself, and not his master."

President Edwards, the younger, said, in a sermon preached before the Connecticut Abolition Society, Sept. 15, 1791: "Thirty years ago, scarcely a man in this country thought either the slave trade or the slavery of negroes to be wrong; but now how many and able advocates in private life, in our legislatures, in Congress, have appeared, and have openly and irrefragably pleaded the rights of humanity in this as well as other instances? And if we judge of the future by the past, *within fifty years from this time, it will be as shameful for a man to hold a negro slave, as to be guilty of common robbery or theft.*"

In 1794, the General Assembly of the Presbyterian church adopted its "Scripture proofs," notes, comments, &c. Among these was the following:

"1 Tim. i. 10. The law is made for manstealers. This crime among the Jews exposed the perpetrators of it to capital punishment. Exodus xxi. 16. And the apostle here classes them with *sinner of the first rank*. The word he uses, in its original import comprehends all who are concerned in bringing any of the human race into slavery, or in *retaining* them in it. *Stealers of men* are all those who bring off slaves or freemen, and *keep*, sell, or buy them."

In 1794, Dr. Rush declared: "Domestic slavery is repugnant to the principles of Christianity. It prostrates every benevolent and just principle of action in the human heart. It is rebellion against the authority of a common Father. It is a practical denial of the extent and efficacy of the death of a common Savior. It is an usurpation of the prerogative of the great Sovereign of the universe, who has solemnly claimed an exclusive property in the souls of men."

In 1795, Mr. Fiske, then an officer of Dartmouth College, afterward a Judge in Tennessee, said, in an oration published that year, speaking of slaves: "I steadfastly maintain, that we must bring them to *an equal standing, in point of privileges, with the whites!* They must enjoy all the rights belonging to human nature."

When the petition on the abolition of the slave trade was under discussion in the Congress of '89, Mr. Brown. of North Carolina, said, "The emancipation of the slaves *will be effected* in time; it ought to be a gradual business, but he hoped that Congress would not *precipitate* it to the great injury of the southern States." Mr. Hartley, of Pennsylvania said, in the sane debate, "*He was not a little surprised to hear the cause of slavery advocated in that house.*" WASHINGTON, in a letter to Sir John Sinclair, says, "There are, in Pennsylvania, laws for the gradual abolition of slavery which neither Maryland nor Virginia have at present, but which *nothing is more certain* than that they *must have*, and at a period NOT REMOTE." In 1782, Virginia passed her celebrated manumission act. Within nine years from that time nearly eleven thousand slaves were voluntarily emancipated by their masters. Judge Tucker's "Dissertation on Slavery," p. 72. In 1787, Maryland passed an act legalizing manumission. Mr. Dorsey, of Maryland, in a speech in Congress, December 27th, 1826, speaking of manumissions under that act, said, that "*The progress of emancipation was astonishing*, the State became crowded with a free black population."

The celebrated William Pinkney, in a speech before the Maryland House of Delegates, in 1789, on the emancipation of slaves, said, "Sir, by the eternal principles of natural justice, *no master in the state has a right to hold his slave in bondage for a single hour.* I would as soon believe the incoherent tale of a schoolboy, who should tell me he had been frightened by a ghost, as that the grant of this permission (to emancipate) ought in any degree to alarm us. Are we apprehensive that these men will become more dangerous by becoming freemen? Are we alarmed, lest by being admitted into the enjoyment of civil rights, they will be inspired with a deadly enmity against the rights of others? Strange, unaccountable paradox! How much more rational would it be, to argue that the natural enemy of the privileges of a freeman, is he who is robbed of them himself! Dishonorable to the species is the idea that they would ever prove injurious to our interests—released from the shackles of slavery, by the justice of government and the bounty of

individuals—the want of fidelity and attachment would be next to impossible."

Hon. James Campbell, in an address before the Pennsylvania Society of the Cincinnati, July 4, 1787, said, "Our separation from Great Britain has extended the empire of *humanity*. The time *is not far distant* when our sister states, in imitation of our example, *shall turn their vassals into freemen*." The Convention that formed the United States' constitution being then in session, attended at the delivery of this oration with General Washington at their head.

A Baltimore paper of September 8th, 1780, contains the following notice of Major General Gates: "A few days ago passed through this town the Hon. General Gates and lady. The General, previous to leaving Virginia, summoned his numerous family of slaves about him, and amidst their tears of affection and gratitude, gave them their FREEDOM."

In 1791 the university of William and Mary, in Virginia, conferred upon Granville Sharpe the degree of Doctor of Laws. Sharpe was at that time the acknowledged head of British abolitionists. His indefatigable exertions, prosecuted for years in the case of Somerset, procured that memorable decision in the Court of King's Bench, which settled the principle that no slave could be held in England. He was most uncompromising in his opposition to slavery, and for twenty years previous he had spoken, written, and accomplished more against it than any man living.

In the "Memoirs of the Revolutionary War in the Southern Department," by Gen. Lee, of Va., Commandant of the Partizan Legion, is the following: "The Constitution of the United States, adopted lately with so much difficulty, has effectually provided against this evil, (by importation) after a few years. It is much to be lamented that having done so much in this way, *a provision had not been made for the gradual abolition of slavery*."—p. 233, 4.

Mr. Tucker, of Virginia, Judge of the Supreme Court of that state, and professor of law in the University of William and Mary, addressed a letter to the General Assembly of that state, in 1796, urging the abolition of slavery; from which the following is an extract. Speaking of the slaves in Virginia, he says: "Should we not, at the time of the revolution, have loosed their

chains and broken their fetters; or if the difficulties and dangers of such an experiment prohibited the attempt, during the convulsions of a revolution, is it not our duty, *to embrace the first moment* of constitutional health and vigor to effectuate so desirable an object, and to remove from us a stigma with which our enemies will never fail to upbraid us, nor consciences to reproach us?"

Mr. Faulkner, in a speech before the Virginia Legislature, Jan. 20, 1832, said:—"The idea of a gradual emancipation and removal of the slaves from this commonwealth, is coeval with the declaration of our independence from the British yoke. It sprung into existence during the first session of the General Assembly, subsequent to the formation of your republican government. When Virginia stood sustained in her legislation by the pure and philosophic intellect of Pendleton—by the patriotism of Mason and Lee—by the searching vigor and sagacity of Wythe, and by the all-embracing, all-comprehensive genius of Thomas Jefferson! Sir, it was a committee composed of those five illustrious men, who, in 1777, submitted to the general assembly of this state, then in session, *a plan for the gradual emancipation of the slaves of this commonwealth.*"

Hon. Benjamin Watkins Leigh, late United States' senator from Virginia, in his letters to the people of Virginia, in 1832, signed Appomattox, p. 43, says: "I thought, till very lately, that it was known to every body that during the Revolution, *and for many years after, the abolition of slavery was a favorite topic with many of our ablest statesmen*, who entertained, with respect, all the schemes which wisdom or ingenuity could suggest for accomplishing the object. Mr. Wythe, to the day of his death, *was for a simple abolition, considering the objection to color as founded in prejudice.* By degrees, all projects of the kind were abandoned. Mr. Jefferson *retained* his opinion, and now we have these projects revived."

Governor Barbour, of Virginia, in his speech in the U.S. Senate, on the Missouri question, Jan. 1820, said:—"We are asked why has Virginia *changed her policy* in reference to slavery? That the sentiments *of our most distinguished men*, for thirty years *entirely corresponded* with the course which the friends of the restriction (of slavery in Missouri) now advocated; and that the Virginia delegation, one of which was the late President of the United States, voted for the restriction, (of slavery) in the northwestern

territory, and that Mr. Jefferson has delineated a gloomy picture of the baneful effects of slavery. When it is recollected that the Notes of Mr. Jefferson were written during the progress of the revolution, it is no matter of surprise that the writer should have imbibed a large portion of that enthusiasm which such an occasion was so well calculated to produce. As to the consent of the Virginia delegation to the restriction in question, whether the result of a disposition to restrain the slave trade indirectly, or the influence of that *enthusiasm* to which I have just alluded, * * * * it is not now important to decide. We have witnessed its effects. The liberality of Virginia, or, as the result may prove, her folly, which submitted to, or, if you will, PROPOSED *this measure*, (abolition of slavery in the N.W. territory) has eventuated in effects which speak a monitory lesson. *How is the representation from this quarter on the present question?"*

Mr. Imlay, in his early history of Kentucky, p. 185, says: "We have disgraced the fair face of humanity, and trampled upon the sacred privileges of man, at the very moment that we were exclaiming against the tyranny of your (the English) ministry. But in contending for the birthright of freedom, we have learned to feel *for the bondage of others*, and in the libations we offer to the goddess of liberty, we *contemplate an emancipation of the slaves of this country*, as honorable to themselves as it will be glorious to us."

In the debate in Congress, Jan. 20, 1806, on Mr. Sloan's motion to lay a tax on the importation of slaves, Mr. Clark of Va. said: "He was no advocate for a system of slavery." Mr. Marion, of S. Carolina, said: "He never had purchased, nor should he ever purchase a slave." Mr. Southard said: "Not revenue, but an expression of the *national sentiment* is the principal object." Mr. Smilie—"I rejoice that the word (slave) is not in the Constitution; its not being there does honor to the worthies who would not suffer it to become a *part* of it." Mr. Alston, of N. Carolina—"In two years we shall have the power to prohibit the trade altogether. Then this House will be UNANIMOUS. No one will object to our exercising our full constitutional powers." National Intelligencer, Jany. 24, 1806.

These witnesses need no vouchers to entitle them to credit—nor their testimony comments to make it intelligible—their *names* are their *endorsers* and their strong words their own interpreters. We wave all comments. Our

readers are of age. Whosoever hath ears to *hear*, let him HEAR. And whosoever will not hear the fathers of the revolution, the founders of the government, its chief magistrates, judges, legislators and sages, who dared and periled all under the burdens, and in the heat of the day that tried men's souls—then "neither will he be persuaded though THEY rose from the dead."

Some of the points established by the testimony are—The universal expectation that the *moral* influence of Congress, of state legislatures, of seminaries of learning, of churches, of the ministers of religion, and of public sentiment widely embodied in abolition societies, would be exerted against slavery, calling forth by argument and appeal the moral sense of the nation, and creating a power of opinion that would abolish the system throughout the union. In a word, that free speech and a free press would be wielded against slavery without ceasing and without restriction. Full well did the south know, not only that the national government would probably legislate against slavery wherever the constitution placed it within its reach, but she knew also that Congress had already marked out the line of national policy to be pursued on the subject—had committed itself before the world to a course of action against slavery, wherever she could move upon it without encountering a conflicting jurisdiction—that the nation had established by solemn ordinance memorable precedent for subsequent action, by abolishing slavery in the northwest territory, and by declaring that it should never thenceforward exist there; and this too, as soon as by cession of Virginia and other states, the territory came under Congressional control. The south knew also that the sixth article in the ordinance prohibiting slavery was first proposed by the largest slaveholding state in the confederacy—that the chairman of the committee that reported the ordinance was a slaveholder—that the ordinance was enacted by Congress during the session of the convention that formed the United States Constitution—that the provisions of the ordinance were, both while in prospect, and when under discussion, matters of universal notoriety and *approval* with all parties, and when finally passed, received the vote of *every member of Congress from each of the slaveholding states*. The south also had every reason for believing that the first Congress under the constitution would *ratify* that ordinance—as it *did* unanimously.

A crowd of reflections, suggest by the preceding testimony, press for utterance. The right of petition ravished and trampled by its constitutional guardians, and insult and defiance hurled in the faces of the SOVEREIGN PEOPLE while calmly remonstrating *with their* SERVANTS for violence committed on the nation's charter and their own dearest rights! Add to this "the right of peaceably assembling" violently wrested—the rights of minorities, *rights* no longer—free speech struck dumb—free *men* outlawed and murdered—free presses cast into the streets and their fragments strewed with shoutings, or flourished in triumph before the gaze of approving crowds as proud members of prostrate law!

The spirit and power of our fathers, where are they? Their deep homage always and every where rendered to FREE THOUGHT, with its *inseparable signs—free speech and a free press*—their reverence for justice, liberty, *rights* and all-pervading law, where are they?

But we turn from these considerations—though the times on which we have fallen, and those towards which we are borne with headlong haste, call for their discussion as with the voices of departing life—and proceed to topics relevant to the argument before us.

The seventh article of the amendments to the constitution is alleged to withhold from Congress the power to abolish slavery in the District. "No person shall be deprived of life, liberty, or property, without due process of law." All the slaves in the District have been "deprived of liberty" by legislative acts. Now, these legislative acts "depriving" them "of liberty," were either "due process of law," or they were *not*. If they *were*, then a legislative act, taking from the master that "property" which is the identical "liberty" previously taken from the slave, would be "due process of law" *also*, and of course a *constitutional* act; but if the legislative acts "depriving" them of "liberty" were *not* "due process of law," then the slaves were deprived of liberty *unconstitutionally*, and these acts are *void*. In that case the *constitution emancipates them*.

If the objector reply, by saying that the import of the phrase "due process of law," is *judicial* process solely, it is granted, and that fact is our rejoinder; for no slave in the District *has* been deprived of his liberty by "a judicial process," or, in other words, by "due process of law;" consequently, upon

the objector's own admission, every slave in the District has been deprived of liberty *unconstitutionally*, and is therefore *free by the constitution*. This is asserted only of the slaves under the "exclusive legislation" of Congress.

The last clause of the article under consideration is quoted for the same purpose: "Nor shall private property be taken for public use without just compensation." Each of the state constitutions has a clause of similar purport. The abolition of slavery in the District by Congress, would not, as we shall presently show, violate this clause either directly or by implication. Granting for argument's sake, that slaves are "private property," and that to emancipate them, would be to "take private property" for "public use," the objector admits the power of Congress to do *this*, provided it will do something *else*, that is, *pay* for them. Thus, instead of denying *the power*, the objector not only admits, but *affirms* it, as the ground of the inference that compensation must accompany it. So far from disproving the existence of *one* power, the objector asserts the existence of *two*—one, the power to take the slaves from their masters, the other, the power to take the property of the United States to pay for them.

If Congress cannot constitutionally impair the right of private property, or take it without compensation, it cannot constitutionally, *legalize* the perpetration of such acts, by *others*, nor *protect* those who commit them. Does the power to rob a man of his earnings, rob the earner of his *right* to them? Who has a better right to the *product* than the producer?—to the *interest*, than the owner of the *principal*?—to the hands and arms, than he from whose shoulders they swing?—to the body and soul, than he whose they *are*? Congress not only impairs but annihilates the right of private property, while it withholds from the slaves of the District their title to *themselves*. What! Congress powerless to protect a man's right to *himself*, when it can make inviolable the right to a *dog*? But, waving this, I deny that the abolition of slavery in the District would violate this clause. What does the clause prohibit? The "taking" of "private property" for "public use." Suppose Congress should emancipate the slaves in the District, what would it "*take*?" Nothing. What would it *hold*? Nothing. What would it put to "public use?" Nothing. Instead of *taking* "private property," Congress, by abolishing slavery, would say "private property shall not *be* taken; and those who have been robbed of it already, shall be kept out of it no longer; and since every man's right to his own body is *paramount*, he shall be protected

in it." True, Congress may not arbitrarily take property, *as* property, from one man and give it to another—and in the abolition of slavery no such thing is done. A legislative act changes the *condition* of the slave—makes him his own *proprietor* instead of the property of another. It determines a question of *original right* between two classes of persons—doing an act of justice to one, and restraining the other from acts of injustice; or, in other words, preventing one from robbing the other, by granting to the injured party the protection of just and equitable laws.

Congress, by an act of abolition, would change the condition of seven thousand "persons" in the District, but would "take" nothing. To construe this provision so as to enable the citizens of the District to hold as property, and in perpetuity, whatever they please, or to hold it as property in all circumstances—all necessity, public welfare, and the will and power of the government to the contrary notwithstanding—is a total perversion of its whole *intent*. The *design* of the provision, was to throw up a barrier against Governmental aggrandizement. The right to "take property" for *State uses* is one thing;—the right so to adjust the *tenures* by which property is held, that *each may have his own secured to him*, is another thing, and clearly within the scope of legislation. Besides, if Congress were to "take" the slaves in the District, it would be *adopting*, not abolishing slavery—becoming a slaveholder itself, instead of requiring others to be such no longer. The clause in question, prohibits the "taking" of individual property for public uses, to be employed or disposed of *as* property for governmental purposes. Congress, by abolishing slavery in the District, would do no such thing. It would merely change the *condition* of that which has been recognised as a qualified property by congressional acts, though previously declared "persons" by the constitution. More than this is done continually by Congress and every other Legislature. Property the most absolute and unqualified, is annihilated by legislative acts. The embargo and non-intercourse act, prostrated at a stroke, a forest of shipping, and sank millions of capital. To say nothing of the power of Congress to take hundreds of millions from the people by direct taxation, who doubts its power to abolish at once the whole tariff system, change the seat of Government, arrest the progress of national works, prohibit any branch of commerce with the Indian tribes or with foreign nations, change the locality of forts, arsenals, magazines, dock yards, &c., to abolish the Post Office system, the privilege

of patents and copyrights, &c. By such acts Congress might, in the exercise of its acknowledged powers, annihilate property to an incalculable amount, and that without becoming liable to claims for compensation.

Finally, this clause prohibits the taking for public use of "*property*." The constitution of the United States does not recognise slaves as "PROPERTY" any where, and it does not recognise them in *any sense* in the District of Columbia. All allusions to them in the constitution recognise them as "persons." Every reference to them points *solely* to the element of *personality*; and thus, by the strongest implication, declares that the constitution *knows* them only as "persons," and *will* not recognise them in any other light. If they escape into free States, the constitution authorizes their being taken back. But how? Not as the property of an "owner," but as "persons;" and the peculiarity of the expression is a marked recognition of their *personality*—a refusal to recognise them as chattels—"persons *held* to service." Are *oxen* "*held* to service?" That can be affirmed only of *persons*. Again, slaves give political power as "persons." The constitution, in settling the principle of representation, requires their enumeration in the census. How? As property? Then why not include race horses and game cocks? Slaves, like other inhabitants, are enumerated as "persons." So by the constitution, the government was pledged to non-interference with "the migration or importation of such *persons*" as the States might think proper to admit until 1808, and authorized the laying of a tax on each "person" so admitted. Further, slaves are recognized as "persons" by the exaction of their *allegiance* to the government. For offences against the government slaves are tried as *persons*; as persons they are entitled to counsel for their defence, to the rules of evidence, and to "due process of the law," and as *persons* they are punished. True, they are loaded with cruel disabilities in courts of law, such as greatly obstruct and often inevitably defeat the ends of justice, yet they are still recognised as *persons*. Even in the legislation of Congress, and in the diplomacy of the general government, notwithstanding the frequent and wide departures from the integrity of the constitution on this subject, slaves are not recognised as *property* without qualification. Congress has always refused to grant compensation for slaves killed or taken by the enemy, even when these slaves had been impressed into the United States' service. In half a score of cases since the last war, Congress has rejected such applications for compensation. Besides, both in

Congressional acts, and in our national diplomacy, slaves and property are not used as convertible terms. When mentioned in treaties and state papers it is in such a way as to distinguish them from mere property, and generally by a recognition of their *personality*. In the invariable recognition of slaves as *persons*, the United States' constitution caught the mantle of the glorious Declaration, and most worthily wears it.—It recognizes all human beings as "men," "persons," and thus as "equals." In the original draft of the Declaration, as it came from the head of Jefferson, it is alleged that Great Britain had "waged a cruel war against *human* nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, carrying them into slavery, * * determined to keep up a market where MEN should be bought and sold,"—thus disdaining to make the charter of freedom a warrant for the arrest of *men*, that they might be shorn both of liberty and humanity.

The celebrated Roger Sherman, one of the committee of five appointed to draft the Declaration of Independence, and also a member of the Convention that formed the United States' Constitution, said, in the first Congress after its adoption: "The constitution *does not consider these persons, (slaves,) as a species of property.*"—[Lloyd's Cong. Reg. v. 1, p. 313.] That the United States' Constitution does not make slaves "property," is shown in the fact, that no person, either as a citizen of the United States, or by having his domicile within the United States' government, can hold slaves. He can hold them only by deriving his power from *state* laws, or from the law of Congress, if he hold slaves within the District. But no person resident within the United States' jurisdiction, and *not* within the District, nor within a state whose laws support slavery, nor "held to service" under the laws of such state or district, having escaped therefrom, *can be held as a slave.*

Men can hold *property* under the United States' government though residing beyond the bounds of any state, district, or territory. An inhabitant of the Wisconsin Territory can hold property there under the laws of the United States, but he cannot hold *slaves* there under the United States' laws, nor by virtue of the United States' Constitution, nor upon the ground of his United States citizenship, nor by having his domicile within the United States jurisdiction. The constitution nowhere recognizes the right to "slave property," *but merely the fact that the states have jurisdiction each in its*

own limits, and that there are certain "persons" within their jurisdictions "held to service" by their own laws.

Finally, in the clause under consideration, "private property" is not to be taken "without *just* compensation." "JUST!" If justice is to be appealed to in determining the amount of compensation, let her determine the *grounds* also. If it be her province to say *how much* compensation is "just," it is hers to say whether *any* is "just,"—whether the slave is "just" property *at all*, rather than a "*person*." Then, if justice adjudges the slave to be "private property," it adjudges him to be *his own* property, since the right to one's *self* is the first right—the source of all others—the original stock by which they are accumulated—the principal, of which they are the interest. And since the slave's "private property" has been "taken," and since "compensation" is impossible—there being no *equivalent* for one's self—the least that can be done is to restore to him his original private property.

Having shown that in abolishing slavery, "property" would not be "taken for public use," it may be added that, in those states where slavery has been abolished by law, no claim for compensation has been allowed. Indeed the manifest absurdity of demanding it, seems to have quite forestalled the *setting up* of such a claim.

The abolition of slavery in the District, instead of being a legislative anomaly, would proceed upon the principles of every day legislation. It has been shown already, that the United States' Constitution does not recognize slaves as "property." Yet ordinary legislation is full of precedents, showing that even *absolute* property is in many respects wholly subject to legislation. The repeal of the law of entailments—all those acts that control the alienation of property, its disposal by will, its passing to heirs by descent, with the question, who shall be heirs, and what shall be the rule of distribution among them, or whether property shall be transmitted at all by descent, rather than escheat to the state—these, with statutes of limitation, and various other classes of legislative acts, serve to illustrate the acknowledged scope of the law-making power, even where property *is in every sense absolute*. Persons whose property is thus affected by public laws, receive from the government no compensation for their losses, unless the state has been put into possession of the property taken from them.

The preamble of the United States' Constitution declares it to be a fundamental object of the organization of the government "to ESTABLISH JUSTICE." Has Congress *no power* to do that for which it was made the *depository of power*? CANNOT the United States Government fulfil the purpose *for which it was brought into being*?

To abolish slavery, is to take from no rightful owner his property; but to "*establish justice*" between two parties. To emancipate the slave, is to "*establish justice*" between him and his master—to throw around the person, character, conscience, liberty, and domestic relations of the one, *the same law* that secures and blesses the other. In other words, to prevent by *legal restraints* one class of men from seizing upon another class, and robbing them at pleasure of their earnings, their time, their liberty, their kindred, and the very use and ownership of their own persons. Finally, to abolish slavery is to proclaim and *enact* that innocence and helplessness—now *free plunder*—are entitled to *legal protection*; and that power, avarice, and lust, shall no longer gorge upon their spoils under the license, and by the ministrations of *law*! Congress, by possessing "exclusive legislation in all cases whatsoever," has a *general protective power* for ALL the inhabitants of the District. If it has no power to protect *one* man, it has none to protect another—none to protect *any*—and if it *can* protect *one* man and is *bound* to protect him, it *can* protect *every* man—all men—and is *bound* to do it. All admit the power of Congress to protect the masters in the District against their slaves. What part of the constitution gives the power? The clause so often quoted,—"*power of legislation in all cases whatsoever*," equally in the "*case*" of defending the blacks against the whites, as in that of defending the whites against the blacks. The power is given also by Art. 1, Sec. 8, clause 15—"Congress shall have power to suppress insurrections"—a power to protect, as well blacks against whites, as whites against blacks. If the constitution gives power to protect *one* class against the other, it gives power to protect *either* against the other. Suppose the blacks in the District should seize the whites, drive them into the fields and kitchens, force them to work without pay, flog them, imprison them, and sell them at their pleasure, where would Congress find power to restrain such acts? Answer; a *general power* in the clause so often cited, and an *express* one in that cited above—"Congress shall have power, to suppress insurrections." So much for a *supposed* case. Here follows a *real* one. The whites in the District are

perpetrating these identical acts upon seven thousand blacks daily. That Congress has power to restrain these acts in one case, all assert, and in so doing they assert the power "in *all* cases whatsoever." For the grant of power to suppress insurrections, is an *unconditional* grant, not hampered by provisos as to the color, shape, size, sex, language, creed, or condition of the insurgents. Congress derives its power to suppress this *actual* insurrection, from the same source whence it derived its power to suppress the *same* acts in the case *supposed*. If one case is an insurrection, the other is. The *acts* in both are the same; the *actors* only are different. In the one case, ignorant and degraded—goaded by the memory of the past, stung by the present, and driven to desperation by the fearful looking for of wrongs for ever to come. In the other, enlightened into the nature of *rights*, the principles of justice, and the dictates of the law of love, unprovoked by wrongs, with cool deliberation, and by system, they perpetrate these acts upon those to whom they owe unnumbered obligations for *whole lives* of unrequited service. On which side may palliation be pleaded, and which party may most reasonably claim an abatement of the rigors of law? If Congress has power to suppress such acts *at all*, it has power to suppress them *in all*.

It has been shown already that *allegiance* is exacted of the slave. Is the government of the United States unable to grant *protection* where it exacts *allegiance*? It is an axiom of the civilized world, and a maxim even with savages, that allegiance and protection are reciprocal and correlative. Are principles powerless with us which exact homage of barbarians? *Protection is the CONSTITUTIONAL RIGHT of every human being under the exclusive legislation of Congress who has not forfeited it by crime.*

In conclusion, I argue the power of Congress to abolish slavery in the District, froth Art. 1, sec. 8, clause 1, of the constitution: "Congress shall have power to provide for the common defence and the general welfare of the United States." Has the government of the United States no power under this grant, to legislate within its own exclusive jurisdiction on subjects that vitally affect its interests? Suppose the slaves in the District should rise upon their masters, and the United States' government, in quelling the insurrection, should kill any number of them. Could their masters claim compensation of the government? Manifestly not; even though no proof existed that the particular slaves killed were insurgents. This was precisely

the point at issue between those masters, whose slaves were killed by the State troops at the time of the Southampton insurrection, and the Virginia Legislature; no evidence was brought to show that the slaves killed by the troops were insurgents; yet the Virginia Legislature decided that their masters were *not entitled to compensation*. They proceeded on the sound principle, that a government may in self protection destroy the claim of its subjects even to that which has been recognised as property by its own acts. If in providing for the common defence the United States government, in the case supposed, would have power to destroy slaves both as *property and persons*, it surely might stop half-way, destroy them as *property* while it legalized their existence as *persons*, and thus provided for the common defence by giving them a personal and powerful interest in the government, and securing their strength for its defence.

Like other Legislatures, Congress has power to abate nuisances—to remove or tear down unsafe buildings—to destroy infected cargoes—to lay injunctions upon manufactories injurious to the public health—and thus to "provide for the common defence and general welfare" by destroying individual property, when it puts in jeopardy the public weal.

Granting, for argument's sake, that slaves are "property" in the District of Columbia—if Congress has a right to annihilate property in the District when the public safety requires it, it may surely annihilate its existence *as property* when public safety requires it, especially if it transform into a *protection and defence* that which as *property* periled the public interests. In the District of Columbia there are, besides the United States' Capitol, the President's house, the national offices, &c. of the Departments of State, Treasury, War, and Navy, the General Post-office, and Patent Office. It is also the residence of the President, all the highest officers of the government, both houses of Congress, and all the foreign ambassadors. In this same District there are also *seven thousand slaves*. Jefferson, in his Notes on Va. p. 241, says of slavery, that "the State permitting one half of its citizens to trample on the rights of the other, *transforms them into enemies*;" and Richard Henry Lee, in the Va. House of Burgesses in 1758, declared that to those who held them, "*slaves must be natural enemies*." Is Congress so *impotent* that it *cannot* exercise that right pronounced both by municipal and national law, the most sacred and universal—the right of self-preservation and defence? Is it shut up to the *necessity* of keeping

seven thousand "enemies" in the heart of the nation's citadel? Does the iron fiat of the constitution doom it to such imbecility that it *cannot* arrest the process that *made* them "enemies," and still goads to deadlier hate by fiery trials, and day by day adds others to their number? Is *this* providing for the common defence and general welfare? If to rob men of rights excites their hate, freely to restore them and make amends, will win their love.

By emancipating the slaves in the District, the government of the United States would disband an army of "enemies," and enlist "for the common defence and general welfare," a body guard of *friends* seven thousand strong. In the last war, a handful of British soldiers sacked Washington city, burned the capitol, the President's house, and the national offices and archives; and no marvel, for thousands of the inhabitants of the District had been "TRANSFORMED INTO ENEMIES." Would *they* beat back invasion? If the national government had exercised its constitutional "power to provide for the common defence and to promote the general welfare," by turning those "enemies" into friends, then, instead of a hostile ambush lurking in every thicket inviting assault, and secret foes in every house paralyzing defence, an army of allies would have rallied in the hour of her calamity, and shouted defiance from their munitions of rocks; whilst the banner of the republic, then trampled in dust, would have floated securely over FREEMEN exulting amidst bulwarks of strength.

To show that Congress can abolish slavery in the District, under the grant of power "to provide for the common defence and to promote the general welfare," I quote an extract from a speech of Mr. Madison, of Va., in the first Congress under the constitution, May 13, 1789. Speaking of the abolition of the slave trade, Mr. Madison says: "I should venture to say it is as much for the interests of Georgia and South Carolina, as of any state in the union. Every addition they receive to their number of slaves tends to *weaken* them, and renders them less capable of self-defence. In case of hostilities with foreign nations, they will be the means of *inviting* attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well *internal* as external. *Every thing, therefore, which tends to increase this danger, though it may be a local affair, yet if it involves national expense or safety, it becomes of concern to every part of the union, and is a proper*

subject for the consideration of those charged with the general administration of the government." See Cong. Reg. vol. 1, p. 310-11.

WYTHE.

POSTSCRIPT

My apology for adding a *postscript*, to a discussion already perhaps too protracted, is the fact that the preceding sheets were in the hands of the printer, and all but the concluding pages had gone through the press, before the passage of Mr. Calhoun's late resolutions in the Senate of the United States. A proceeding so extraordinary,—if indeed the time has not passed when *any* acts of Congress in derogation of freedom and in deference to slavery, can be deemed extraordinary,—should not be suffered to pass in silence at such a crisis as the present; especially as the passage of one of the resolutions by a vote of 36 to 8, exhibits a shift of position on the part of the South, as sudden as it is unaccountable, being nothing less than the surrender of a fortress which until then they had defended with the pertinacity of a blind and almost infuriated fatuity. Upon the discussions during the pendency of the resolutions, and upon the vote, by which they were carried, I make no comment, save only to record my exultation in the fact there exhibited, that great emergencies are *true touchstones*, and that henceforward, until this question is settled, whoever holds a seat in Congress will find upon, and all around him, a pressure strong enough to TEST him—a focal blaze that will find its way through the carefully adjusted cloak of fair pretension, and the sevenfold brass of two-faced political intrigue, and *no-faced non-committalism*, piercing to the dividing asunder of joints and marrow. Be it known to every northern man who aspires to a seat in Congress, that hereafter it is the destiny of congressional action on this subject, to be a MIGHTY REVELATOR—making secret thoughts public property, and proclaiming on the house-tops what is whispered in the ear—smiting off masks, and bursting open sepulchres beautiful outwardly, and heaving up to the sun their dead men's bones. To such we say,—*Remember the Missouri Question, and the fate of those who then sold the North, and their own birthright!*

Passing by the resolutions generally without remark—the attention of the reader is specially solicited to Mr. Clay's substitute for Mr. Calhoun's fifth

resolution.

"Resolved, That when the District of Columbia was ceded by the states of Virginia and Maryland to the United States, domestic slavery existed in both of these states, including the ceded territory, and that, as it still continues in both of them, it could not be abolished within the District without a violation of that good faith, which was implied in the cession and in the acceptance of the territory; nor, unless compensation were made to the proprietors of slaves, without a manifest infringement of an amendment to the constitution of the United States; nor without exciting a degree of just alarm and apprehension in the states recognising slavery, far transcending in mischievous tendency, any possible benefit which could be accomplished by the abolition."

By voting for this resolution, the south by a simultaneous movement, shifted its mode of defence, not so much by taking a position entirely new, as by attempting to refortify an old one—never much trusted in, and abandoned mainly long ago, as being unable to hold out against assault however unskilfully directed. In the debate on this resolution, though the southern members of Congress did not *professedly* retreat from the ground hitherto maintained by them—that Congress has no power by the constitution to abolish slavery in the District—yet in the main they silently drew off from it.

The passage of this resolution—with the vote of every southern senator, forms a new era in the discussion of this question.

We cannot join in the lamentations of those who bewail it. We hail it, and rejoice in it. It was as we would have had it—offered by a southern senator, advocated by southern senators, and on the ground that it "was no compromise"—that it embodied the true southern principle—that "this resolution stood on as high ground as Mr. Calhoun's."—(Mr. Preston)—"that Mr. Clay's resolution was as strong as Mr. Calhoun's"—(Mr. Rives)—that "the resolution he (Mr. Calhoun) now refused to support, was as strong as his own, and that in supporting it, there was no abandonment of principle by the south."—(Mr. Walker, of Mi.)—further, that it was advocated by the southern senators generally as an expression of their views, and as setting the question of slavery in the District on its *true*

ground—that finally when the question was taken, every slaveholding senator, including Mr. Calhoun himself, voted for the resolution.

By passing this resolution, and with such avowals, the south has surrendered irrevocably the whole question at issue between them and the petitioners for abolition in the District. It has, unwittingly but explicitly, conceded the main question argued in the preceding pages.

The *only* ground taken against the right of Congress to abolish slavery in the District is, that slavery existed in Maryland and Virginia when the cession was made, and "*as it still continues in both of them*, it could not be abolished without a violation of that good faith which was implied in the cession," &c. The *sole argument* is *not* that exclusive *sovereignty* has no power to abolish slavery within its jurisdiction, *nor* that the powers of even *ordinary legislation* cannot do it,—nor that the clause granting Congress "exclusive legislation in all cases whatsoever over such District," gives no power to do it; but that the *unexpressed expectation* of one of the parties that the other would not "*in all cases*" use the power which said party had consented *might be used "in all cases," prohibits* the use of it. The only cardinal point in the discussion, is here not only *yielded*, but formally laid down by the South as the leading article in their creed on the question of Congressional jurisdiction over slavery in the District. The *sole reason* given why Congress should not abolish, and the sole evidence that if it did, such abolition would be a violation of "good faith," is that "*slavery still continues in those states*,"—thus explicitly admitting, that if slavery did *not* "still continue" in those States, Congress *could* abolish it in the District. The same admission is made also in the *premises*, which state that slavery existed in those states *at the time of the cession*, &c. Admitting that if it had *not* existed there then, but had grown up in the District under *United States' laws*, Congress might constitutionally abolish it. Or that if the ceded parts of those states had been the *only* parts in which slaves were held under their laws, Congress might have abolished in such a contingency also. The cession in that case leaving no slaves in those states,—no "good faith," would be "implied" in it, nor any "violated," by an act of abolition. The principle of the resolution makes this further admission, that if Maryland and Virginia should at once abolish their slavery, Congress might at once abolish it in the District. The principle goes even further than this, and *requires* Congress in such case to abolish slavery in the District "by the

good faith implied in the cession and acceptance of the territory." Since according to the spirit and scope of the resolution, this "implied good faith" of Maryland and Virginia in making the cession, was that Congress would do nothing within the District which should go to counteract the policy, or bring into disrepute the "institutions," or call in question the usages, or even in any way ruffle the prejudices of those states, or do what *they* might think would unfavorably bear upon their interests; *themselves* of course being the judges.

But let us dissect another limb of the resolution. What is to be understood by "that good faith which was IMPLIED?" It is of course an admission that such a condition was not *expressed* in the acts of cession—that in their *terms* there is nothing restricting the power of Congress on the subject of slavery in the District—not a *word* alluding to it, nor one inserted with such an *intent*. This "implied faith," then, rests on no clause or word in the United States' Constitution, or in the acts of cession, or in the acts of Congress accepting the cession, nor does it rest on any declarations of the legislatures of Maryland and Virginia made at the time, or in that generation, nor on any *act* of theirs, nor on any declaration of the *people* of those states, nor on the testimony of the Washingtons, Jeffersons, Madisons, Chaces, Martins, and Jennifers, of those states and times. The assertion rests *on itself alone!* Mr. Clay and the other senators who voted for the resolution, *guess* that Maryland and Virginia *supposed* that Congress would by no means *use* the power given them by the constitution, except in such ways as would be well pleasing in the eyes of those states; especially as one of them was the "Ancient Dominion!" And now after the lapse of half a century, this *assumed expectation* of Maryland and Virginia, the existence of which is mere matter of conjecture with the 36 senators, is conjured up and duly installed upon the judgment-seat of final appeal, before whose nod constitutions are to flee away, and with whom, solemn grants of power and explicit guaranties are when weighed in the balance, altogether lighter than vanity!

But let us survey it in another light. Why did Maryland and Virginia leave so much to be "*implied*?" Why did they not in some way *express* what lay so near their hearts? Had their vocabulary run so low that a single word could not be eked out for the occasion? Or were those states so bashful of a sudden that they dare not speak out and tell what they wanted? Or did they

take it for granted that Congress would always act in the premises according to their wishes, and that too, without their *making known* their wishes? If, as honorable senators tell us, Maryland and Virginia did verily travail with such abounding *faith*, why brought they forth no *works*?

It is as true in *legislation* as in religion, that the only *evidence* of "faith" is *works*, and that "faith" *without works* is *dead*, i.e. has no power. But here, forsooth, a blind implication with nothing *expressed*, an "implied" *faith* without works, is *omnipotent*. Mr. Clay is lawyer enough to know that even a *senatorial hypothesis* as to *what must have been the understanding* of Maryland and Virginia about congressional exercise of constitutional power, *abrogates no grant*, and that to plead it in a court of law, would be of small service except to jostle "their honors" gravity! He need not be told that the constitution gives Congress "power to exercise exclusive legislation in all cases whatsoever over such District." Nor that the legislatures of Maryland and Virginia constructed their acts of cession with this clause *before their eyes*, and that both of them declared those acts made "in *pursuance*" of said clause. Those states were aware that the United States in their constitution had left nothing to be "*implied*" as to the power of Congress over the District;—an admonition quite sufficient one would think to put them on their guard, and induce them to eschew vague implications and resort to *stipulations*. Full well did they know also that these were times when, in matters of high import, *nothing* was left to be "implied." The colonies were then panting from a twenty years' conflict with the mother country, about bills of rights, charters, treaties, constitutions, grants, limitations, and *acts of cession*. The severities of a long and terrible discipline had taught them to guard at all points *legislative grants*, that their exact import and limit might be self-evident—leaving no scope for a blind "faith," that *somehow* in the lottery of chances there would be no blanks, but making all sure by the use of explicit terms, and wisely chosen words, and *just enough* of them. The Constitution of the United States with its amendments, those of the individual states, the national treaties, the public documents of the general and state governments at that period, show the universal conviction of legislative bodies, that when great public interests were at stake, nothing should be left to be "implied."

Further: suppose Maryland and Virginia had expressed their "implied faith" in *words*, and embodied it in their acts of cession as a proviso, declaring

that Congress should not "exercise exclusive legislation in *all* cases whatsoever over the District," but that the "case" of *slavery* should be an exception: who does not know that Congress, if it had accepted the cession on those terms, would have violated the Constitution; and who that has ever studied the free mood of those times in its bearings on slavery—proofs of which are given in scores on the preceding pages—can for an instant believe that the people of the United States would have altered their Constitution for the purpose of providing for slavery an inviolable sanctuary; that when driven in from its outposts, and everywhere retreating discomfited before the march of freedom, it might be received into everlasting habitations on the common homestead and hearth-stone of this free republic? Besides, who can believe that Virginia made such a condition, or cherished such a purpose, when at that very moment, Washington, Jefferson, Wythe, Patrick Henry St. George Tucker, and almost all her illustrious men, were advocating the abolition of slavery by law. When Washington had said, two years before, Maryland and Virginia "must have laws for the gradual abolition of slavery and at a period *not remote*;" and when Jefferson in his letter to Price, three years before the cession, had said, speaking of Virginia, "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS;" when voluntary emancipations on the soil were then progressing at the rate of between one and two thousand annually, (See Judge Tucker's "Dissertation on Slavery," p. 73;) when the public sentiment of Virginia had undergone, and was undergoing so mighty a revolution that the idea of the continuance of slavery as a permanent system could not be *tolerated*, though she then contained about half the slaves in the Union. Was this the time to stipulate for the *perpetuity* of slavery under the exclusive legislation of Congress? and that too at the *same* session of Congress when *every one* of her delegation voted for the abolition of slavery in the North West Territory; a territory which she had herself ceded to Congress, and along with it had surrendered her jurisdiction over many of her citizens, inhabitants of that territory, who held slaves there—and whose slaves were emancipated by that act of Congress, in which all her delegation with one accord participated?

Now in view of the universal belief then prevalent, that slavery in this country was doomed to short life, and especially that in Maryland and Virginia it would be *speedily* abolished—are we to be told that these states *designed* to bind Congress *never* to terminate it? Are we to adopt the monstrous conclusion that this was the *intent* of the Ancient Dominion—thus to *bind* the United States by an "implied faith," and that when the United States *accepted* the cession, she did solemnly thus plight her troth, and that Virginia did then so *understand* it? Verily one would think that honorable senators supposed themselves deputed to do our *thinking* as well as our legislation, or rather, that they themselves were absolved from such drudgery by virtue of their office!

Another absurdity of this dogma about "implied faith" is, that where there was no power to exact an *express* pledge, there was none to demand an *implied* one, and where there was no power to *give* the one, there was none to give the *other*. We have shown already that Congress could not have accepted the cession with such a condition. To have signed away a part of its constitutional grant of power would have been a *breach* of the Constitution. Further, the Congress which accepted the cession was competent to pass a resolution pledging itself not to *use all* the power over the District committed to it by the Constitution. But here its power ended. Its resolution would only bind *itself*. Could it bind the *next* Congress by its authority? Could the members of one Congress say to the members of another, because we do not choose to exercise all the authority vested in us by the Constitution, therefore you *shall* not? This would have been a prohibition to do what the Constitution gives power to do. Each successive Congress would still have gone to the Constitution for its power, brushing away in its course the cobwebs stretched across its path by the officiousness of an impertinent predecessor. Again, the legislatures of Virginia and Maryland, had no power to bind Congress, either by an express or an implied pledge, never to abolish slavery in the District. Those legislatures had no power to bind *themselves* never to abolish slavery within their own territories—the ceded parts included. Where then would they get power to bind *another* not to do what they had no power to bind themselves not to do? If a legislature could not in this respect control the successive legislatures of its own State, could it control the successive Congresses of the United States?

But perhaps we shall be told, that the "implied faith" in the acts of cession of Maryland and Virginia was *not* that Congress should *never* abolish slavery in the District, but that it should not do it until *they* had done it within their bounds! Verily this "faith" comes little short of the faith of miracles! "A good rule that works both ways." First, Maryland and Virginia have "good faith" that Congress will *not* abolish until *they* do; and then just as "good faith" that Congress *will* abolish *when* they do! Excellently accommodated! Did those States suppose that Congress would legislate over the national domain, the common jurisdiction of *all*, for Maryland and Virginia alone? And who, did they suppose, would be judges in the matter?—themselves merely? or the whole Union?

This "good faith implied in the cession" is no longer of doubtful interpretation. The principle at the bottom of it, when fairly stated, is this:—That the Government of the United States are bound in "good faith" to do in the District of Columbia, without demurring, just what and when, Maryland and Virginia do in their own States. In short, that the general government is eased of all the burdens of legislation within its exclusive jurisdiction, save that of hiring a scrivener to copy off the acts of the Maryland and Virginia legislatures as fast as they are passed, and engross them, under the title of "Laws of the United States, for the District of Columbia!" A slight additional expense would also be incurred in keeping up an express between the capitols of those States and Washington city, bringing Congress from time to time its "*instructions*" from head quarters—instructions not to be disregarded without a violation of that, "good faith implied in the cession," &c.

This sets in strong light the advantages of "our glorious Union," if the doctrine of Mr. Clay and the thirty-six Senators be orthodox. The people of the United States have been permitted to set up at their own expense, and on their own territory, two great *sounding boards* called "Senate Chamber" and "Representatives' Hall," for the purpose of sending abroad "by authority" *national echoes* of *state* legislation!—permitted also to keep in their pay a corps of pliant *national* musicians, with peremptory instructions to sound on any line of the staff according as Virginia and Maryland may give the *sovereign* key note!

Though this may have the seeming of mere raillery, yet an analysis of the resolution and of the discussions upon it, will convince every fair mind that it is but the legitimate carrying out of the *principle* pervading both. They proceed virtually upon the hypothesis that the will and pleasure of Virginia and Maryland are *paramount* to those of the *Union*. If the main design of setting apart a federal district had been originally the accommodation of Maryland, Virginia, and the south, with the United States as an *agent* to consummate the object, there could hardly have been higher assumption or louder vaunting. The sole object of *having* such a District was in effect totally perverted in the resolution of Mr. Clay, and in the discussions of the entire southern delegation, upon its passage. Instead of taking the ground, that the benefit of the whole Union was the sole *object* of a federal district, that it was designed to guard and promote the interests of *all* the states, and that it was to be legislated over *for this end*—the resolution proceeds upon an hypothesis *totally the reverse*. It takes a single point of *state* policy, and exalts it above NATIONAL interests, utterly overshadowing them; abrogating national *rights*; making void a clause of the Constitution; humbling the general government into a subject—crouching for favors to a superior, and that too *on its own exclusive jurisdiction*. All the attributes of sovereignty vested in Congress by the Constitution it impales upon the point of an alleged *implication*. And this is Mr. Clay's peace-offering, to appease the lust of power and the ravings of state encroachment! A "*compromise*," forsooth! that sinks the general government on *its own territory* into a mere colony, with Virginia and Maryland for its "mother country!" It is refreshing to turn from these shallow, distorted constructions and servile cringings, to the high bearing of other southern men in other times; men, who in their character of legislators and lawyers, disdained to accommodate their interpretations of constitutions and charters to geographical lines, or to bend them to the purposes of a political canvass. In the celebrated case of Cohens vs. the State of Virginia, Hon. William Pinkney, late of Baltimore, and Hon. Walter Jones, of Washington city, with other eminent constitutional lawyers, prepared an elaborate written opinion, from which the following is an extract: "Nor is there any danger to be apprehended from allowing to Congressional legislation with regard to the District of Columbia, its FULLEST EFFECT. Congress is responsible to the States, and to the people for that legislation. It is in truth the legislation of the states over a district placed under their control for *their own benefit*, not

for that of the District, except as the prosperity of the District is involved, and necessary to the *general advantage*."—[Life of Pinkney, p. 612.]

The profound legal opinion, from which this is an extract, was elaborated at great length many years since, by a number of the most distinguished lawyers in the United States, whose signatures are appended to it. It is specific and to the point. It asserts, 1st, that Congressional legislation over the District, is "the legislation of the *States* and the *people*," (not of *two* states, and a mere *fraction* of the people.) 2d, "Over a District placed under *their* control," i.e. under the control of the *whole* of the States, not under the control of *two twenty-sixths* of them. 3d, That it was thus put under their control "*for THEIR OWN benefit*," the benefit of *all* the States *equally*; not to secure special benefits to Maryland and Virginia, (or what it might be *conjectured* they would regard as benefits.) 4th, It concludes by asserting that the design of this exclusive control of Congress over the District was "not for the benefit of the *District*," except as that is *connected* with, and a *means of promoting* the *general advantage*. If this is the case with the *District*, which is *directly* concerned, it is pre-eminently so with Maryland and Virginia, who are but *indirectly* interested, and would be but remotely affected by it. The argument of Mr. Madison in the Congress of '89, an extract from which has been given on a preceding page, lays down the same principle; that though any matter "*may be a local affair, yet if it involves national EXPENSE OR SAFETY, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government.*" Cong. Reg. vol. 1. p. 310, 11.

But these are only the initiatory absurdities of this "good faith *implied*." The thirty-six senators aptly illustrate the principle, that error not only conflicts with truth, but is generally at issue with itself. For if it would be a violation of "good faith" to Maryland and Virginia, for Congress to abolish slavery in the District, it would be *equally* a violation for Congress to do it *with the consent*, or even at the earnest and unanimous petition of the people of the District: yet for years it has been the southern doctrine, that if the people of the District demand of Congress relief in this respect, it has power, as their local legislature, to grant it, and by abolishing slavery there, carry out the will of the citizens. But now new light has broken in! The optics of the thirty-six have pierced the millstone with a deeper insight, and discoveries

thicken faster than they can be telegraphed! Congress has no power, O no, not a modicum, to help the slaveholders of the District, however loudly they may clamor for it. The southern doctrine, that Congress is to the District a mere local Legislature to do its pleasure, is tumbled from the genitive into the vocative! Hard fate—and that too at the hands of those who begat it! The reasonings of Messrs. Pinckney, Wise, and Leigh, are now found to be wholly at fault, and the chancleer rhetoric of Messrs. Glascock and Garland stalks featherless and crest-fallen. For, Mr. Clay's resolution sweeps by the board all those stereotyped common-places, as "Congress a local Legislature," "consent of the District," "bound to consult the wishes of the District," &c. &c., which for the last two sessions of Congress have served to eke out scanty supplies. It declares, that *as slavery existed in Maryland and Virginia at the time of the cession, and as it still continues in both those states, it could not be abolished in the District without a violation of 'that good faith', &c.*

But let us see where this principle of the *thirty-six* will lead us. If "implied faith" to Maryland and Virginia *restrains* Congress from the abolition of slavery in the District, it *requires* Congress to do in the District what those states have done within their bounds, i.e., restrain *others* from abolishing it. Upon the same principle Congress is *bound*, by the doctrine of Mr. Clay's resolution, to *prohibit emancipation* within the District. There is no *stopping place* for this plighted "faith." Congress must not only refrain from laying violent hands on slavery, *itself*, and see to it that the slaveholders themselves do not, but it is bound to keep the system up to the Maryland and Virginia standard of vigor!

Again, if the good faith of Congress to Virginia and Maryland requires that slavery should exist in the District, while it exists in those states, it requires that it should exist there *as it exists* in those states. If to abolish *every* form of slavery in the District would violate good faith, to abolish *the* form existing in those states, and to substitute a totally different one, would also violate it. The Congressional "good faith" is to be kept not only with *slavery*, but with the *Maryland and Virginia systems* of slavery. The faith of those states not being in the preservation of *a* system, but of *their* system; otherwise Congress, instead of *sustaining*, would counteract their policy—principles would be brought into action there conflicting with their system, and thus the true spirit of the "implied" pledge would be violated. On this

principle, so long as slaves are "chattels personal" in Virginia and Maryland, Congress could not make them *real estate*, inseparable from the soil, as in Louisiana; nor could it permit slaves to read, nor to worship God according to conscience; nor could it grant them trial by jury, nor legalize marriage; nor require the master to give sufficient food and clothing; nor prohibit the violent sundering of families—because such provisions would conflict with the existing slave laws of Virginia and Maryland, and thus violate the "good faith implied," &c. So the principle of the resolution binds Congress in all these particulars: 1st. Not to abolish slavery in the District *until* Virginia and Maryland abolish. 2d. Not to abolish any *part* of it that exists in those states. 3d. Not to abolish any *form* or *appendage* of it still existing in those states. 4th. *To abolish* when they do. 5th. To increase or abate its rigor *when, how, and as* the same are modified by those states. In a word, Congressional action in the District is to float passively in the wake of legislative action on the subject in those states.

But here comes a dilemma. Suppose the legislation of those states should steer different courses—then there would be *two* wakes! Can Congress float in both? Yea, verily! Nothing is too hard for it! Its obsequiousness equals its "power of legislation in *all* cases whatsoever." It can float *up* on the Virginia tide, and ebb down on the Maryland at the same time. What Maryland does, Congress will do in the Maryland part. What Virginia does, Congress will do in the Virginia part. Though Congress might not always be able to run at the bidding of both *at once*, especially in different directions, yet if it obeyed orders cheerfully, and "kept in its place," according to its "good faith implied," impossibilities might not be rigidly exacted. True, we have the highest sanction for the maxim that no *man* can serve two masters—but if "corporations have *no* souls," analogy would absolve Congress on that score, or at most give it only *a very small soul*—not large enough to be at all in the way, as an *exception* to the universal rule laid down to the maxim!

In following out the absurdities of this "*implied* good faith," it will be seen at once that the doctrine of Mr. Clay's Resolution extends to *all the subjects of legislation* existing in Maryland and Virginia, which exist also within the District. Every system, "institution," law, and established usage there, is placed beyond Congressional control equally with slavery, and by the same "implied faith." The abolition of the lottery system in the District as an

immorality, was a flagrant breach of this "good faith" to Maryland and Virginia, as the system "still continued in those states." So to abolish imprisonment for debt, and capital punishment, to remodel the bank system, the power of corporations, the militia law, laws of limitation, &c., in the District, *unless Virginia and Maryland took the lead*, would violate the "good faith implied in the cession," &c.

That in the acts of cession no such "good faith" was "implied by Virginia and Maryland" as is claimed in the Resolution, we argue from the fact, that in 1781 Virginia ceded to the United States all her northwest territory, with the special proviso that her citizens inhabiting that territory should "have their *possessions* and *titles* confirmed to them, and be *protected* in the enjoyment of their *rights* and liberties." (See Journals of Congress vol. 9, p. 63.) The cession was made in the form of a deed, and signed by Thomas Jefferson, Samuel Hardy, Arthur Lee, and James Monroe. Many of these inhabitants *held slaves*. Three years after the cession, the Virginia delegation in Congress *proposed* the passage of an ordinance which should abolish slavery, in that territory, and declare that it should never thereafter exist there. All the members of Congress from Virginia and Maryland voted for this ordinance. Suppose some member of Congress had during the passage of the ordinance introduced the following resolution: "Resolved, That when the northwest territory was ceded by Virginia to the United States, domestic slavery existed in that State, including the ceded territory, and as it still continues in that State, it could not be abolished within the territory without a violation of that good faith, which was implied in the cession and in the acceptance of the territory." What would have been the indignant response of Grayson, Griffin, Madison, and the Lees, in the Congress of '87, to such a resolution, and of Carrington, Chairman of the Committee, who reported the ratification of the ordinance in the Congress of '89, and of Page and Parker, who with every other member of the Virginia delegation supported it?

But to enumerate all the absurdities into which the thirty-six Senators have plunged themselves, would be to make a quarto inventory. We decline the task; and in conclusion, merely add that Mr. Clay in presenting this resolution, and each of the thirty-six Senators who voted for it, entered on the records of the Senate, and proclaimed to the world, a most unworthy accusation against the MILLIONS of American citizens who have during

nearly half a century petitioned the national legislature to abolish slavery in the District of Colombia,—charging them either with the ignorance or the impiety of praying the nation to violate its "PLIGHTED FAITH." The resolution virtually indicts at the bar of public opinion, and brands with odium, all the Manumission Societies, the *first* petitioners for the abolition of slavery in the District, and for a long time the only ones, petitioning from year to year through evil report and good report, still petitioning, by individual societies and in their national conventions.

But as if it were not enough to table the charge against such men as Benjamin Rush, William Rawle, John Sergeant, Robert Vaux, Cadwallader Colden, and Peter A. Jay,—to whom we may add Rufus King, James Hillhouse, William Pinkney, Thomas Addis Emmett, Daniel D. Tompkins, De Witt Clinton, James Kent, and Daniel Webster, besides eleven hundred citizens of the District itself; headed by their Chief Justice and judges—even the sovereign States of Pennsylvania, New-York, Massachusetts, and Vermont, whose legislatures have either memorialized Congress to abolish slavery in the District, or instructed their Senators to move such a measure, must be gravely informed by Messrs. Clay, Norvell, Niles, Smith, Pierce, Benton, Black, Tipton, and other honorable Senators, either that their perception is so dull, they know not whereof they affirm, or that their moral sense is so blunted they can demand without compunction a violation of the nation's faith!

We have spoken already of the concessions unwittingly made in this resolution to the true doctrine of Congressional power over the District. For that concession, important as it is, we have small thanks to render. That such a resolution, passed with such an *intent*, and pressing at a thousand points on relations and interests vital to the free states, should be hailed, as it has been, by a portion of the northern press as a "compromise" originating in deference to northern interests, and to be received by us as a free-will offering of disinterested benevolence, demanding our gratitude to the mover,—may well cover us with shame. We deserve the humiliation and have well earned the mockery. Let it come!

If, after having been set up at auction in the public sales-room of the nation, and for thirty years, and by each of a score of "compromises," treacherously knocked off to the lowest bidder, and that without money and without price,

the North, plundered and betrayed, *will not*, in this her accepted time, consider the things that belong to her peace before they are hidden from her eyes, then let her eat of the fruit of her own way, and be filled with her own devices! Let the shorn and blinded giant grind in the prison-house of the Philistines, till taught the folly of intrusting to Delilahs the secret and the custody of his strength.

Have the free States bound themselves by an oath never to profit by the lessons of experience? If lost to *reason*, are they dead to *instinct* also? Can nothing rouse them to cast about for self preservation? And shall a life of tame surrenders be terminated by suicidal sacrifice?

A "COMPROMISE!" Bitter irony! Is the plucked and hood-winked North to be wheedled by the sorcery of another Missouri compromise? A compromise in which the South gained all, and the North lost all, and lost it for ever. A compromise which embargoed the free laborer of the North and West, and clutched at the staff he leaned upon, to turn it into a bludgeon and fell him with its stroke. A compromise which wrested from liberty her boundless birthright domain, stretching westward to the sunset, while it gave to slavery loose reins and a free course, from the Mississippi to the Pacific.

The resolution, as it finally passed, is here inserted. The original Resolution, as moved by Mr. Clay, was inserted at the head of this postscript with the impression that it was the *amended* form. It will be seen however, that it underwent no material modification.

"Resolved, That the interference by the citizens of any of the states, with the view to the abolition of slavery in the District, is endangering the rights and security of the people of the District; and that any act or measure of Congress designed to abolish slavery in the District, would be a violation of the faith implied in the cessions by the states of Virginia and Maryland, a just cause of alarm to the people of the slaveholding states, and have a direct and inevitable tendency to disturb and endanger the Union."

The vote upon the Resolution stood as follows:

Yeas.—Messrs. Allen, Bayard, Benton, Black, Buchanan, Brown, Calhoun, Clay, of Alabama, Clay, of Kentucky, Clayton, Crittenden, Cuthbert, Fulton,

Grundy, Hubbard, King, Lumpkin, Lyon, Nicholas, Niles, Norvell, Pierce, Preston, Rives, Roane, Robinson, Sevier, Smith, of Connecticut, Strange, Tallmadge, Tipton, Walker, White, Williams, Wright, Young.

Nays.—Messrs. DAVIS, KNIGHT, McKEAN, MORRIS, PRENTISS, RUGGLES, SMITH, of Indiana, SWIFT, WEBSTER.

THE
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No. 5

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THE
POWER OF CONGRESS
OVER THE
DISTRICT OF COLUMBIA.

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POWER OF CONGRESS OVER THE DISTRICT OF COLUMBIA.

A civilized community presupposes a government of law. If that government be a republic, its citizens are the sole *sources*, as well as the *subjects* of its power. Its constitution is their bill of directions to their own agents—a grant authorizing the exercise of certain powers, and prohibiting that of others. In the Constitution of the United States, whatever else may be obscure, the clause granting power to Congress over the Federal District may well defy misconstruction. Art. 1, Sec. 8, Clause 18: "The Congress shall have power to exercise exclusive legislation, *in all cases whatsoever*, over such District." Congress may make laws for the District "in all *cases*," not of all *kinds*; not all *laws* whatsoever, but laws "in all *cases* whatsoever." The grant respects the *subjects* of legislation, *not* the moral nature of the laws. The law-making power every where is subject to *moral* restrictions, whether limited by constitutions or not. No legislature can authorize murder, nor make honesty penal, nor virtue a crime, nor exact impossibilities. In these and similar respects, the power of Congress is held in check by principles, existing in the nature of things, not imposed by the Constitution, but presupposed and assumed by it. The power of Congress

over the District is restricted only by those principles that limit ordinary legislation, and, in some respects, it has even wider scope.

In common with the legislatures of the States, Congress cannot constitutionally pass ex post facto laws in criminal cases, nor suspend the writ of habeas corpus, nor pass a bill of attainder, nor abridge the freedom of speech and of the press, nor invade the right of the people to be secure in their persons, houses, papers, and effects, nor enact laws respecting an establishment of religion. These are general limitations. Congress cannot do these things *any where*. The exact import, therefore, of the clause "in all cases whatsoever," is, *on all subjects within the appropriate sphere of legislation*. Some legislatures are restrained by constitutions, from the exercise of powers strictly within the proper sphere of legislation. Congressional power over the District has no such restraint. It traverses the whole field of legitimate legislation. All the power which any legislature has within its own jurisdiction, Congress holds over the District of Columbia.

It has been objected that the clause in question respects merely police regulations, and that its sole design was to enable Congress to protect itself against popular tumults. But if the convention that framed the Constitution aimed to provide for a *single* case only, why did they provide for "*all* cases whatsoever?" Besides, this clause was opposed in many of the state conventions, because the grant of power was not restricted to police regulations *alone*. In the Virginia Convention, George Mason, the father of the Virginia Constitution, Patrick Henry, Mr. Grayson, and others, assailed it on that ground. Mr. Mason said, "This clause gives an unlimited authority in every possible case within the District. He would willingly give them exclusive power as far as respected the police and good government of the place, but he would give them no more." Mr. Grayson said, that control over the *police* was all-sufficient, and "that the Continental Congress never had an idea of exclusive legislation in all cases." Patrick Henry said, "Is it consistent with any principle of prudence or good policy, to grant *unlimited, unbounded authority*?" Mr. Madison said in reply: "I did conceive that the clause under consideration was one of those parts which would speak its own praise. When any power is given, its delegation necessarily involves authority to make laws to execute it.... The powers which are found necessary to be given, are therefore delegated *generally*, and particular and

minute specification is left to the Legislature.... It is not within the limits of human capacity to delineate on paper all those particular cases and circumstances, in which legislation by the general legislature, would be necessary." Governor Randolph said: "Holland has no ten miles square, but she has the Hague where the deputies of the States assemble. But the influence which it has given the province of Holland, to have the seat of government within its territory, subject in some respects to its control, has been injurious to the other provinces." The wisdom of the convention is therefore manifest in granting to Congress exclusive jurisdiction over the place of their session. [*Deb. Va. Con.*, p. 320.] In the forty-third number of the "Federalist," Mr. Madison says: "The indispensable necessity of *complete* authority at the seat of government, carries its own evidence with it."

Finally, that the grant in question is to be interpreted according to the obvious import of its *terms*, is proved by the fact, that Virginia proposed an amendment to the United States' Constitution at the time of its adoption, providing that this clause "should be so construed as to give power only over the *police and good government* of said District," *which amendment was rejected*.

The former part of the clause under consideration, "Congress shall have power to exercise *exclusive* legislation," gives *sole* jurisdiction, and the latter part, "in all cases whatsoever," defines the *extent* of it. Since, then, Congress is the *sole* legislature within the District, and since its power is limited only by the checks common to all legislatures, it follows that what the law-making power is intrinsically competent to do *any* where, Congress is competent to do in the District of Columbia. Having disposed of preliminaries, we proceed to state and argue the *real question* at issue.

**IS THE LAW-MAKING POWER COMPETENT TO
ABOLISH SLAVERY WHEN NOT RESTRICTED IN THAT
PARTICULAR BY CONSTITUTIONAL PROVISIONS—or,
IS THE ABOLITION OF SLAVERY WITHIN THE
APPROPRIATE SPHERE OF LEGISLATION?**

In every government, absolute sovereignty exists *somewhere*. In the United States it exists primarily with the *people*, and *ultimate* sovereignty *always* exists with them. In each of the States, the legislature possesses a *representative* sovereignty, delegated by the people through the Constitution—the people thus committing to the legislature a portion of their sovereignty, and specifying in their constitutions the amount and the conditions of the grant. That the *people* in any state where slavery exists, have the power to abolish it, none will deny. If the legislature have not the power, it is because *the people* have reserved it to themselves. Had they lodged with the legislature "power to exercise exclusive legislation in all cases whatsoever," they would have parted with their sovereignty over the legislation of the State, and so far forth the legislature would have become *the people*, clothed with all their functions, and as such competent, *during the continuance of the grant*, to do whatever the people might have done before the surrender of their power: consequently, they would have the power to abolish slavery. The sovereignty of the District of Columbia exists *somewhere*—where is it lodged? The citizens of the District have no legislature of their own, no representation in Congress, and no political power whatever. Maryland and Virginia have surrendered to the United States their "full and absolute right and entire sovereignty," and the people of the United States have committed to Congress by the Constitution, the power to "exercise exclusive legislation in all cases whatsoever over such District."

Thus, the sovereignty of the District of Columbia, is shown to reside solely in the Congress of the United States; and since the power of the people of a state to abolish slavery within their own limits, results from their entire sovereignty within that state, so the power of Congress to abolish slavery in the District, results from its entire *sovereignty* within the District. If it be objected that Congress can have no more power over the District, than was held by the legislatures of Maryland and Virginia, we ask what clause in the constitution graduates the power of Congress by the standard of a state legislature? Was the United States' constitution worked into its present shape under the measuring line and square of Virginia and Maryland? and is its power to be bevelled down till it can run in the grooves of state legislation? There is a deal of prating about constitutional power over the District, as though Congress were indebted for it to Maryland and Virginia.

The powers of those states, whether few or many, prodigies or nullities, have nothing to do with the question. As well thrust in the powers of the Grand Lama to join issue upon, or twist papal bulls into constitutional tether, with which to curb congressional action. The Constitution of the United States gives power to Congress, and takes it away, and *it alone*. Maryland and Virginia adopted the Constitution *before* they ceded to the United States the territory of the District. By their acts of cession, they abdicated their own sovereignty over the District, and thus made room for that provided by the United States' constitution, which sovereignty was to commence as soon as a cession of territory by states, and its acceptance by Congress, furnished a sphere for its exercise. That the abolition of slavery is within the sphere of legislation, I argue,

2. FROM THE FACT, THAT SLAVERY, AS A LEGAL SYSTEM, IS THE CREATURE OF LEGISLATION. The law, by *creating* slavery, not only affirmed its *existence* to be within the sphere and under the control of legislation, but equally, the *conditions* and *terms* of its existence, and the *question* whether or not it *should* exist. Of course legislation would not travel *out* of its sphere, in abolishing what is *within* it, and what was recognised to be within it, by its own act. Cannot legislatures repeal their own laws? If law can take from a man his rights, it can give them back again. If it can say, "your body belongs to your neighbor," it can say, "it belongs to *yourself*." If it can annul a man's right to himself, held by express grant from his Maker, and can create for another an *artificial* title to him, can it not annul the artificial title, and leave the original owner to hold himself by his original title?

3. THE ABOLITION OF SLAVERY HAS ALWAYS BEEN CONSIDERED WITHIN THE APPROPRIATE SPHERE OF LEGISLATION. Almost every civilized nation has abolished slavery by law. The history of legislation since the revival of letters, is a record crowded with testimony to the universally admitted competency of the law-making power to abolish slavery. It is so manifestly an attribute not merely of absolute sovereignty, but even of ordinary legislation, that the competency of a legislature to exercise it, may well nigh be reckoned among the legal axioms of the civilized world. Even the night of the dark ages was not dark enough to make this invisible.

The Abolition decree of the great council of England was passed in 1102. The memorable Irish decree, "that all the English slaves in the whole of Ireland, be immediately emancipated and restored to their former liberty," was issued in 1171. Slavery in England was abolished by a general charter of emancipation in 1381. Passing over many instances of the abolition of slavery by law, both during the middle ages and since the reformation, we find them multiplying as we approach our own times. In 1776 slavery was abolished in Prussia by special edict. In St. Domingo, Cayenne, Guadeloupe, and Martinique, in 1794, where more than 690,000 slaves were emancipated by the French government. In Java, 1811; in Ceylon, 1815; in Buenos Ayres, 1816; in St. Helena, 1819; in Colombia, 1821; by the Congress of Chili in 1821; in Cape Colony, 1823; in Malacca, 1825; in the southern provinces of Birmah, 1826; in Bolivia, 1826; in Peru, Guatemala, and Monte Video, 1828, in Jamaica, Barbadoes, Bermudas, Bahamas, the Mauritius, St. Christophers, Nevis, the Virgin Islands, Antigua, Montserrat, Dominica, St. Vincents, Grenada, Barbice, Tobago, St. Lucia, Trinidad, Honduras, Demarara, and the Cape of Good Hope, on the 1st of August, 1834. But waving details, suffice it to say, that England, France, Spain, Portugal, Sweden, Denmark, Austria, Prussia, and Germany, have all and often given their testimony to the competency of the legislative power to abolish slavery. In our own country, the Legislature of Pennsylvania passed an act of abolition in 1780, Connecticut, in 1784; Rhode Island, 1784; New-York, 1799; New-Jersey, in 1804; Vermont, by Constitution, in 1777; Massachusetts, in 1780; and New Hampshire, in 1784.

When the competency of the law-making power to abolish slavery, has thus been recognised every where and for ages, when it has been embodied in the highest precedents, and celebrated in the thousand jubilees of regenerated liberty, is it an achievement of modern discovery, that such a power is a nullity?—that all these acts of abolition are void, and that the millions disenthralled by them, are, either themselves or their posterity, still legally in bondage?

4. LEGISLATIVE POWER HAS ABOLISHED SLAVERY IN ITS PARTS.

The law of South Carolina prohibits the working of slaves more than fifteen hours in the twenty-four. In other words, it takes from the slaveholder his power over nine hours of the slave's time daily; and if it can take nine hours

it may take twenty-four. The laws of Georgia prohibit the working of slaves on the first day of the week; and if they can do it for the first, they can for the six following.

The law of North Carolina prohibits the "immoderate" correction of slaves. If it has power to prohibit immoderate correction, it can prohibit *moderate* correction—*all* correction, which would be virtual emancipation; for, take from the master the power to inflict pain, and he is master no longer. Cease to ply the slave with the stimulus of fear; and he is free.

The Constitution of Mississippi gives the General Assembly power to make laws "to oblige the owners of slaves to *treat them with humanity*." The Constitution of Missouri has the same clause, and an additional one making it the DUTY of the legislature to pass such laws as may be necessary to secure the *humane* treatment of the slaves. This grant to those legislatures, empowers them to decide what *is* and what is *not* "humane treatment." Otherwise it gives no "power"—the clause is mere waste paper, and flouts in the face of a befooled legislature. A clause giving power to require "humane treatment" covers all the *particulars* of such treatment—gives power to exact it in *all respects*—*requiring* certain acts, and *prohibiting* others—maiming, branding, chaining together, separating families, floggings for learning the alphabet, for reading the Bible, for worshipping God according to conscience—the legislature has power to specify each of these acts—declare that it is not "*humane* treatment," and PROHIBIT it.—The legislature may also believe that driving men and women into the field, and forcing them to work without pay, is not "humane treatment," and being Constitutionally bound "to *oblige*" masters to practise "humane treatment"—they have the power to *prohibit such* treatment, and are bound to do it.

The law of Louisiana makes slaves real estate, prohibiting the holder, if he be also a *land* holder, to separate them from the soil.^A If it has power to prohibit the sale *without* the soil, it can prohibit the sale *with* it; and if it can prohibit the *sale* as property, it can prohibit the *holding* as property. Similar laws exist in the French, Spanish, and Portuguese colonies.

^A: Virginia made slaves real estate by a law passed in 1705. (*Beverly's Hist. of Va.*, p. 98.) I do not find the precise time when this law was repealed,

probably when Virginia became the chief slave breeder for the cotton-growing and sugar-planting country, and made young men and women "from fifteen to twenty-five" the main staple production of the State.

The law of Louisiana requires the master to give his slaves a certain amount of food and clothing. If it can oblige the master to give the slave *one* thing, it can oblige him to give him another: if food and clothing, then wages, liberty, his own body.

By the laws of Connecticut, slaves may receive and hold property, and prosecute suits in their own name as plaintiffs: [This last was also the law of Virginia in 1795. See Tucker's "Dissertation on Slavery," p. 73.] There were also laws making marriage contracts legal, in certain contingencies, and punishing infringements of them, ["*Reeve's Law of Baron and Femme*," p. 340-1.] Each of the laws enumerated above, does, *in principle*, abolish slavery; and all of them together abolish it in fact. True, not as a *whole*, and at a *stroke*, nor all in one place; but in its *parts*, by piecemeal, at divers times and places; thus showing that the abolition of slavery is within the boundary of legislation.

5. THE COMPETENCY OF THE LAW-MAKING POWER TO ABOLISH SLAVERY, HAS BEEN RECOGNIZED BY ALL THE SLAVEHOLDING STATES, EITHER DIRECTLY OR BY IMPLICATION. Some States recognize it in their *Constitutions*, by giving the legislature power to emancipate such slaves as may "have rendered the state some distinguished service," and others by express prohibitory restrictions. The Constitution of Mississippi, Arkansas, and other States, restrict the power of the legislature in this respect. Why this express prohibition, if the law-making power *cannot* abolish slavery? A stately farce, indeed, to construct a special clause, and with appropriate rites induct it into the Constitution, for the express purpose of restricting a nonentity!—to take from the law-making power what it *never had*, and what *cannot* pertain to it! The legislatures of those States have no power to abolish slavery, simply because their Constitutions have expressly *taken away* that power. The people of Arkansas, Mississippi, &c., well knew the competency of the law-making power to abolish slavery, and hence their zeal to *restrict* it.

The slaveholding States have recognised this power in their *laws*. The Virginia Legislature passed a law in 1786 to prevent the further importation of Slaves, of which the following is an extract: "And be it further enacted that every slave imported into this commonwealth contrary to the true intent and meaning of this act, shall upon such importation become *free*." By a law of Virginia, passed Dec. 17, 1792, a slave brought into the state and kept *there a year*, was *free*. The Maryland Court of Appeals at the December term 1813 [case of Stewart vs. Oakes,] decided that a slave owned in Maryland, and sent by his master into Virginia to work at different periods, making one year in the whole, became *free*, being *emancipated* by the law of Virginia quoted above. North Carolina and Georgia in their acts of cession, transferring to the United States the territory now constituting the States of Tennessee, Alabama and Mississippi, made it a condition of the grant, that the provisions of the ordinance of '87, should be secured to the inhabitants *with the exception of the sixth article which prohibits slavery*; thus conceding, both the competency of law to abolish slavery, and the power of Congress to do it, within its jurisdiction. (These acts show the prevalent belief at that time, in the slaveholding States, that the general government had adopted a line of policy aiming at the exclusion of slavery from the entire territory of the United States, not included within the original States, and that this policy would be pursued unless prevented by specific and formal stipulation.)

Slaveholding states have asserted this power *in their judicial decisions*. In numerous cases their highest courts have decided that if the legal owner of slaves takes them into those States where slavery has been abolished either by law or by the constitution, such removal emancipates them, such law or constitution abolishing their slavery. This principle is asserted in the decision of the Supreme Court of Louisiana, in the case of Lunsford vs. Coquillon, 14 Martin's La. Reps. 401. Also by the Supreme Court of Virginia, in the case of Hunter vs. Fulcher, 1 Leigh's Reps. 172. The same doctrine was laid down by Judge Washington, of the United States Supreme Court, in the case of Butler vs. Hopper, Washington's Circuit Court Reps. 508. This principle was also decided by the Court of Appeals in Kentucky; case of Rankin vs. Lydia, 2 Marshall's Reps. 407; see also, Wilson vs. Isbell, 5 Call's Reps. 425, Spotts vs. Gillespie, 6 Randolph's Reps. 566. The State vs. Lasselle, 1 Blackford's Reps. 60, Marie Louise vs. Mariot, 8 La. Reps.

475. In this case, which was tried in 1836, the slave had been taken by her master to France and brought back; Judge Mathews, of the Supreme Court of Louisiana, decided that "residence for one moment" under the laws of France emancipated her.

6. EMINENT STATESMEN, THEMSELVES SLAVEHOLDERS, HAVE CONCEDED THIS POWER. Washington, in a letter to Robert Morris, dated April 12, 1786, says: "There is not a man living, who wishes more sincerely than I do, to see a plan adopted for the abolition of slavery; but there is only one proper and effectual mode by which it can be accomplished, and that is by *legislative* authority." In a letter to Lafayette, dated May 10, 1786, he says: "It (the abolition of slavery) certainly might, and assuredly ought to be effected, and that too by *legislative* authority." In a letter to John Fenton Mercer, dated Sept. 9, 1786, he says: "It is among my first wishes to see some plan adopted by which slavery in this country may be abolished by *law*." In a letter to Sir John Sinclair, he says: "There are in Pennsylvania, *laws* for the gradual abolition of slavery, which neither Maryland nor Virginia have at present, but which nothing is more certain than that they *must have*, and at a period not remote." Speaking of movements in the Virginia Legislature in 1777, for the passage of a law emancipating the slaves, Mr. Jefferson says: "The principles of the amendment were agreed on, that is to say, the freedom of all born after a certain day; but it was found that the public mind would not bear the proposition, yet the day is not far distant, when *it must bear and adopt it*."—Jefferson's Memoirs, v. 1, p. 35. It is well known that Jefferson, Pendleton, Mason, Wythe and Lee, while acting as a committee of the Virginia House of Delegates to revise the State Laws, prepared a plan for the gradual emancipation of the slaves by law. These men were the great lights of Virginia. Mason, the author of the Virginia Constitution; Pendleton, the President of the memorable Virginia Convention in 1787, and President of the Virginia Court of Appeals; Wythe was the Blackstone of the Virginia bench, for a quarter of a century Chancellor of the State, the professor of law in the University of William and Mary, and the preceptor of Jefferson, Madison, and Chief Justice Marshall. He was author of the celebrated remonstrance to the English House of Commons on the subject of the stamp act. As to Jefferson, his *name* is his biography.

Every slaveholding member of Congress from the States of Maryland, Virginia, North and South Carolina, and Georgia, voted for the celebrated ordinance of 1787, which *abolished* the slavery then existing in the Northwest Territory. Patrick Henry, in his well known letter to Robert Pleasants, of Virginia, January 18, 1773, says: "I believe a time will come when an opportunity will be offered to *abolish* this lamentable evil." William Pinkney, of Maryland, advocated the abolition of slavery by law, in the legislature of that State, in 1789. Luther Martin urged the same measure both in the Federal Convention, and in his report to the Legislature of Maryland. In 1796, St. George Tucker, of Virginia, professor of law in the University of William and Mary, and Judge of the General Court, published an elaborate dissertation on slavery, addressed to the General Assembly of the State, and urging upon them the abolition of slavery by *law*.

John Jay, while New York was yet a slave State, and himself in law a slaveholder, said in a letter from Spain, in 1786, "An excellent law might be made out of the Pennsylvania one, for the gradual abolition of slavery. Were I in your legislature, I would present a bill for the purpose, drawn up with great care, and I would never cease moving it till it became a law, or I ceased to be a member."

Daniel D. Tompkins, in a message to the Legislature of New-York January 8, 1812, said: "To devise the means for the gradual and ultimate *extermination* from amongst us of slavery, is a work worthy the representatives of a polished and enlightened nation."

The Virginia Legislature asserted this power in 1832. At the close of a month's debate, the following proceedings were had. I extract from an editorial article of the Richmond Whig, of January 26, 1832.

"The report of the Select Committee, adverse to legislation on the subject of Abolition, was in these words: *Resolved*, as the opinion of this Committee, that it is INEXPEDIENT FOR THE PRESENT, to make any *legislative enactments for the abolition of Slavery*." This Report Mr. Preston moved to reverse, and thus to declare that it *was* expedient, *now* to make legislative enactments for the abolition of slavery. This was meeting the question in its strongest form. It demanded action, and immediate action. On this proposition the vote

was 58 to 73. Many of the most decided friends of abolition voted against the amendment; because they thought public opinion not sufficiently prepared for it, and that it might prejudice the cause to move too rapidly. The vote on Mr. Witcher's motion to postpone the whole subject indefinitely, indicates the true state of opinion in the House.—That was the test question, and was so intended and proclaimed by its mover. That motion was *negatived*, 71 to 60; showing a majority of 11, who by that vote, declared their belief that "at the proper time, and in the proper mode, Virginia ought to commence a system of gradual abolition."

7. THE CONGRESS OF THE UNITED STATES HAVE ASSERTED THIS POWER. The ordinance of '87, declaring that there should be "neither slavery nor involuntary servitude," in the North Western territory, abolished the slavery then existing there. The Supreme Court of Mississippi, in its decision in the case of Harvey vs. Decker, Walker's Mi. Reps. 36, declared that the ordinance emancipated the slaves then held there. In this decision the question is argued ably and at great length. The Supreme Court of La. made the same decision in the case of Forsyth vs. Nash, 4 Martin's La. Reps. 395. The same doctrine was laid down by Judge Porter, (late United States Senator from La.,) in his decision at the March term of the La. Supreme Court, 1830, in the case of Merry vs. Chexnaider, 20 Martin's Reps. 699.

That the ordinance abolished the slavery then existing there is also shown by the fact, that persons holding slaves in the territory petitioned for the repeal of the article abolishing slavery, assigning *that* as a reason. "The petition of the citizens of Randolph and St. Clair counties in the Illinois country, stating that they were in possession of slaves, and praying the repeal of that act (the 6th article of the ordinance of '87) and the passage of a law legalizing slavery there." [Am. State papers, Public Lands, v. 1. p. 69.] Congress passed this ordinance before the United States Constitution was adopted, when it derived all its authority from the articles of Confederation, which conferred powers of legislation far more restricted than those conferred on Congress over the District and Territories by the United States Constitution. Now, we ask, how does the Constitution *abridge* the powers which Congress possessed under the articles of confederation?

The abolition of the slave trade by Congress, in 1808, is another illustration of the competency of legislative power to abolish slavery. The African slave trade has become such a mere *technic*, in common parlance, that the fact of its being *proper slavery* is overlooked. The buying and selling, the transportation, and the horrors of the middle passage, were mere *incidents* of the slavery in which the victims were held. Let things be called by their own names. When Congress abolished the African slave trade, it abolished SLAVERY—supreme slavery—power frantic with license, trampling a whole hemisphere scathed with its fires, and running down with blood. True, Congress did not, in the abolition of the slave trade, abolish *all* the slavery within its jurisdiction, but it did abolish all the slavery in *one* part of its jurisdiction. What has rifled it of power to abolish slavery in *another* part of its jurisdiction, especially in that part where it has "exclusive legislation in all cases whatsoever?"

8. THE CONSTITUTION OF THE UNITED STATES RECOGNISES THIS POWER BY THE MOST CONCLUSIVE IMPLICATION. In Art. 1, sec. 3, clause 1, it prohibits the abolition of the slave trade previous to 1808: thus implying the power of Congress to do it at once, but for the restriction; and its power to do it *unconditionally*, when that restriction ceased. Again; In Art. 4, sec. 2, "No person held to service or labor in one state under the laws thereof, escaping into another, shall in consequence of any law or regulation therein, be discharged from said service or labor." This clause was inserted, as all admit, to prevent the runaway slave from being emancipated by the *laws* of the free states. If these laws had *no power* to emancipate, why this constitutional guard to prevent it?

The insertion of the clause, was the testimony of the eminent jurists that framed the Constitution, to the existence of the *power*, and their public proclamation, that the abolition of slavery was within the appropriate sphere of legislation. The right of the owner to that which is rightfully property, is founded on a principle of *universal law*, and is recognised and protected by all civilized nations; property in slaves is, by general consent, an *exception*; hence slaveholders insisted upon the insertion of this clause in the United States Constitution, that they might secure by an *express provision*, that from which protection is withheld, by the acknowledged principles of universal law.^A By demanding this provision, slaveholders consented that their slaves should not be recognised as property by the United States

Constitution, and hence they found their claim, on the fact of their being "*persons*, and *held* to service."

A: The fact, that under the articles of Confederation, slaveholders, whose slaves had escaped into free states, had no legal power to force them back,—that *now* they have no power to recover, by process of law, their slaves who escape to Canada, the South American States, or to Europe—the case already cited, in which the Supreme Court of Louisiana decided, that residence "*for one moment*," under the laws of France emancipated an American slave—the case of *Fulton vs. Lewis*, 3 Har. and John's Reps., 56, where the slave of a St. Domingo slaveholder, who brought him to Maryland in '93, was pronounced free by the Maryland Court of Appeals—are illustrations of the acknowledged truth here asserted, that by the consent of the civilized world, and on the principles of universal law, slaves are not "*property*," and that whenever held as property under *law*, it is only by *positive legislative acts*, forcibly setting aside the law of nature, the common law, and the principles of universal justice and right between man and man,—principles paramount to all law, and from which alone law, derives its intrinsic authoritative sanction.

9. CONGRESS HAS UNQUESTIONABLE POWER TO ADOPT THE COMMON LAW, AS THE LEGAL SYSTEM, WITHIN ITS EXCLUSIVE JURISDICTION.—This has been done, with certain restrictions, in most of the States, either by legislative acts or by constitutional implication. THE COMMON LAW KNOWS NO SLAVES. Its principles annihilate slavery wherever they touch it. It is a universal, unconditional, abolition act. Wherever slavery is a legal system, it is so only by *statute* law, and in violation of the common law. The declaration of Lord Chief Justice Holt, that, "by the common law, no man can have property in another," is an acknowledged axiom, and based upon the well known common law definition of property. "The subjects of dominion or property are *things*, as contra-distinguished from *persons*." Let Congress adopt the common law in the District of Columbia, and slavery there is at once abolished. Congress may well be at home in common law legislation, for the common law is the grand element of the United States Constitution. All its *fundamental* provisions are instinct with its spirit; and its existence, principles, and paramount authority, are presupposed and assumed throughout the whole. The preamble of the Constitution plants the standard of the Common Law

immovably in its foreground. "We, the people of the United States, in order to ESTABLISH JUSTICE, &c., do ordain and establish this Constitution;" thus proclaiming *devotion to* JUSTICE, as the controlling motive in the organization of the Government, and its secure establishment the chief object of its aims. By this most solemn recognition, the common law, that grand legal embodiment of "*justice*" and fundamental right—was made the Groundwork of the Constitution, and intrenched behind its strongest munitions. The second clause of Sec. 9, Art. 1; Sec. 4, Art. 2, and the last clause of Sec. 2, Art. 3, with Articles 7, 8, 9, and 13 of the Amendments, are also express recognitions of the common law as the presiding Genius of the Constitution.

By adopting the common law within its exclusive jurisdiction Congress would carry out the principles of our glorious Declaration, and follow the highest precedents in our national history and jurisprudence. It is a political maxim as old as civil legislation, that laws should be strictly homogeneous with the principles of the government whose will they express, embodying and carrying them out—being indeed the *principles themselves*, in preceptive form—representatives alike of the nature and the power of the Government—standing illustrations of its genius and spirit, while they proclaim and enforce its authority. Who needs be told that slavery makes war upon the principles of the Declaration, and the spirit of the Constitution, and that these and the principles of the common law gravitate toward each other with irrepressible affinities, and mingle into one? The common law came hither with our pilgrim fathers; it was their birthright, their panoply, their glory, and their song of rejoicing in the house of their pilgrimage. It covered them in the day of their calamity, and their trust was under the shadow of its wings. From the first settlement of the country, the genius of our institutions and our national spirit have claimed it as a common possession, and exulted in it with a common pride. A century ago, Governor Pownall, one of the most eminent constitutional jurists of colonial times, said of the common law, "In all the colonies the common law is received as the foundation and main body of their law." In the Declaration of Rights, made by the Continental Congress at its first session in '74, there was the following resolution: "Resolved, That the respective colonies are entitled to the common law of England, and especially to the great and inestimable privilege of being tried by their peers of the vicinage according

to the course of that law." Soon after the organization of the general government, Chief Justice Ellsworth, in one of his decisions on the bench of the United States Supreme Court, said: "The common law of this country remains the same as it was before the revolution." Chief Justice Marshall, in his decision in the case of *Livingston vs. Jefferson*, said: "When our ancestors migrated to America, they brought with them the common law of their native country, so far as it was applicable to their new situation, and I do not conceive that the revolution in any degree changed the relations of man to man, or the law which regulates them. In breaking our political connection with the parent state, we did not break our connection with each other." [*Hall's Law Journal, new series.*] Mr. Duponceau, in his "Dissertation on the Jurisdiction of Courts in the United States," says, "I consider the common law of England the *jus commune* of the United States. I think I can lay it down as a correct principle, that the common law of England, as it was at the time of the Declaration of Independence, still continues to be the national law of this country, so far as it is applicable to our present state, and subject to the modifications it has received here in the course of nearly half a century." Chief Justice Taylor of North Carolina, in his decision in the case of the *State vs. Reed*, in 1823, Hawkes' N.C. Reps. 454, says, "a law of *paramount obligation to the statute*, was violated by the offence—COMMON LAW founded upon the law of nature, and confirmed by revelation." The legislation of the United States abounds in recognitions of the principles of the common law, asserting their paramount binding power. Sparing details, of which our national state papers are full, we illustrate by a single instance. It was made a condition of the admission of Louisiana into the Union, that the right of trial by jury should be secured to all her citizens,—the United States government thus employing its power to enlarge the jurisdiction of the common law in this its great representative.

Having shown that the abolition of slavery is within the competency of the law-making power, when unrestricted by constitutional provisions, and that the legislation of Congress over the District is thus unrestricted, its power to abolish slavery there is established.

We argue it further, from the fact, that slavery exists there *now* by an act of Congress. In the act of 16th July, 1790, Congress accepted portions of territory offered by the states of Maryland and Virginia, and enacted that the laws, as they then were, should continue in force, "until Congress shall

otherwise by law provide." Under these laws, adopted by Congress, and in effect re-enacted and made laws of the District, the slaves there are now held.

Is Congress so impotent in its own "exclusive jurisdiction" that it *cannot* "otherwise by law provide?" If it can say, what *shall* be considered property, it can say what shall *not* be considered property. Suppose a legislature should enact that marriage contracts shall be mere bills of sale, making a husband the proprietor of his wife, as his *bona fide* property; and suppose husbands should herd their wives in droves for the market as beasts of burden, or for the brothel as victims of lust, and then prate about their inviolable legal property, and deny the power of the legislature, which stamped them "property," to undo its own wrong, and secure to wives by law the rights of human beings. Would such cant about "legal rights" be heeded where reason and justice held sway, and where law, based upon fundamental morality, received homage? If a frantic legislature pronounces woman a chattel, has it no power, with returning reason, to take back the blasphemy? Is the impious edict irrevocable? Be it, that with legal forms it has stamped wives "wares." Can no legislation blot out the brand? Must the handwriting of Deity on human nature be expunged for ever? Has law no power to stay the erasing pen, and tear off the scrawled label that covers up the IMAGE OF GOD?

II. THE POWER OF CONGRESS TO ABOLISH SLAVERY IN THE DISTRICT HAS BEEN, TILL RECENTLY, UNIVERSALLY CONCEDED.

1. IT HAS BEEN ASSUMED BY CONGRESS ITSELF. The following record stands on the journals of the House of Representatives for 1804, p. 225: "On motion made and seconded that the House do come to the following resolution: 'Resolved, That from and after the 4th day of July, 1805, all blacks and people of color that shall be born within the District of Columbia, or whose mothers shall be the property of any person residing within said District, shall be free, the males at the age of ----, and the females at the age of ----. The main question being taken that the house do agree to said motion as originally proposed, it was negatived by a majority of 46.'" Though the motion was lost, it was on the ground of its alleged

inexpediency alone. In the debate which preceded the vote, the *power* of Congress was conceded. In March, 1816, the House of Representatives passed the following resolution:—"Resolved, That a committee be appointed to inquire into the existence of an inhuman and illegal traffic in slaves, carried on in and through the District of Columbia, and to report whether any and what measures are necessary for *putting a stop to the same*."

On the 9th of January, 1829, the House of Representatives passed the following resolution by a vote of 114 to 66: "Resolved, That the Committee on the District of Columbia, be instructed to inquire into the *expediency* of providing by *law* for the gradual abolition of slavery within the District, in such manner that the interests of no individual shall be injured thereby." Among those who voted in the affirmative were Messrs. Barney of Md., Armstrong of Va., A.H. Shepperd of N.C., Blair of Tenn., Chilton and Lyon of Ky., Johns of Del., and others from slave states.

2. IT HAS BEES CONCEDED BY COMMITTEES OF CONGRESS, OF THE DISTRICT of COLUMBIA.—In a report of the committee on the District, Jan. 11, 1837, by their chairman, Mr. Powell of Va., there is the following declaration:—"The Congress of the United States, has by the constitution exclusive jurisdiction over the District, and has power upon this subject, (*slavery*,) as upon all other subjects of legislation, to exercise *unlimited discretion*." Reps. of Comms. 2d Sess. 19th Cong. v. iv. No. 43. In December, 1831, the committee on the District, Dr. Doddridge of Va., Chairman, reported, "That until the adjoining states act on the subject, (*slavery*) it would be (not *unconstitutional* but) unwise and impolitic, if not unjust, for Congress to interfere." In April, 1836, a special committee on abolition memorials reported the following resolutions by their Chairman, Mr. Pinckney of South Carolina: "Resolved, That Congress possesses no constitutional authority to interfere in any way with the institution of slavery in any of the states of this confederacy."

"Resolved, That Congress *ought not to interfere* in any way with slavery in the District of Columbia." "Ought not to interfere," carefully avoiding the phraseology of the first resolution, and thus in effect conceding the constitutional power. In a widely circulated "Address to the electors of the Charleston District," Mr. Pinkney is thus denounced by his own

constituents: "He has proposed a resolution which is received by the plain common sense of the whole country as a concession that Congress has authority to abolish slavery in the District of Columbia."

3. IT HAS BEEN CONCEDED BY THE CITIZENS OF THE DISTRICT. A petition for the gradual abolition of slavery in the District, signed by nearly eleven hundred of its citizens, was presented to Congress, March 24, 1827. Among the signers to this petition, were Chief Justice Cranch, Judge Van Ness, Judge Morsel, Prof. J.M. Staughton, and a large number of the most influential inhabitants of the District. Mr. Dickson, of New York, asserted on the floor of Congress in 1835, that the signers of this petition owned more than half of the property in the District. The accuracy of this statement has never been questioned.

THIS POWER HAS BEEN CONCEDED BY GRAND JURIES OF THE DISTRICT. The Grand jury of the county of Alexandria, at the March term, 1802, presented the domestic slave trade as a grievance, and said, "We consider these grievances demanding *legislative* redress." Jan. 19, 1829, Mr. Alexander, of Virginia, presented a representation of the grand jury in the city of Washington, remonstrating against "any measure for the abolition of slavery within said District, unless accompanied by measures for the removal of the emancipated from the same;" thus, not only conceding the power to emancipate slaves, but affirming an additional power, that of *excluding them when free*. Journal H.R. 1828-9, p. 174.

4. THIS POWER HAS BEEN CONCEDED BY STATE LEGISLATURES. In 1828 the Legislature of Pennsylvania instructed their Senators in Congress "to procure, if practicable, the passage of a law to abolish slavery in the District of Columbia." Jan. 28, 1829, the House of Assembly of New-York passed a resolution, that their "Senators in Congress be instructed to make every possible exertion to effect the passage of a law for the abolition of Slavery in the District of Columbia." In February, 1837, the Senate of Massachusetts "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery and the slave trade therein." The House of Representatives passed the following resolution at the same session: "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery in said District."

November 1, 1837, the Legislature of Vermont, "Resolved, that Congress have the full power by the constitution to abolish slavery and the slave trade in the District of Columbia, and in the territories."

May 30, 1836, a committee of the Pennsylvania Legislature reported the following resolution: "Resolved, That Congress does possess the constitutional power, and it is expedient to abolish slavery and the slave trade within the District of Columbia."

In January, 1836, the Legislature of South Carolina "Resolved, That we should consider the abolition of Slavery in the District of Columbia as a violation of the rights of the citizens of that District derived from the *implied* conditions on which that territory was ceded to the General Government." Instead of denying the constitutional power, they virtually admit its existence, by striving to smother it under an *implication*. In February, 1836, the Legislature of North Carolina "Resolved, That, although by the Constitution *all legislative power* over the District of Columbia is vested in the Congress of the United States, yet we would deprecate any legislative action on the part of that body towards liberating the slaves of that District, as a breach of faith towards those States by whom the territory was originally ceded. Here is a full concession of the *power*. February 2, 1836, the Virginia Legislature passed unanimously the following resolution: "Resolved, by the General Assembly of Virginia, that the following article be proposed to the several states of this Union, and to Congress, as an amendment of the Constitution of the United States: "The powers of Congress shall not be so construed as to authorize the passage of any law for the emancipation of slaves in the District of Columbia, without the consent of the individual proprietors thereof, unless by the sanction of the Legislatures of Virginia and Maryland, and under such conditions as they shall by law prescribe."

Fifty years after the formation of the United States' constitution the states are solemnly called upon by the Virginia Legislature, to amend that instrument by a clause asserting that, in the grant to Congress of "exclusive legislation in all cases whatsoever" over the District, the "case" of slavery is not included!! What could have dictated such a resolution but the conviction that the power to abolish slavery is an irresistible inference from the constitution *as it is*. The fact that the same legislature passed afterward a

resolution, though by no means unanimously, that Congress does not possess the power, abates not a tittle of the testimony in the first resolution. March 23d, 1824, "Mr. Brown presented the resolutions of the General Assembly of Ohio, recommending to Congress the consideration of a system for the gradual emancipation of persons of color held in servitude in the United States." On the same day, "Mr. Noble, of Indiana, communicated a resolution from the legislature of that state, respecting the gradual emancipation of slaves within the United States." Journal of the United States Senate, for 1824-5, p. 231.

The Ohio and Indiana resolutions, by taking for granted the *general* power of Congress over the subject of slavery, do virtually assert its *special* power within its *exclusive* jurisdiction.

5. THIS POWER HAS BEEN CONCEDED BY BODIES OF CITIZENS IN THE SLAVE STATES. The petition of eleven hundred citizens of the District, has been already mentioned. "March 5, 1830, Mr. Washington presented a memorial of inhabitants of the county of Frederick, in the state of Maryland, praying that provision be made for the gradual abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 358.

March 30, 1828. Mr. A.H. Shepperd, of North Carolina, presented a memorial of citizens of that state, "praying Congress to take measures for the entire abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 379.

January 14, 1822. Mr. Rhea, of Tennessee, presented a memorial of citizens of that state, praying "that provision may be made, whereby all slaves which may hereafter be born in the District of Columbia, shall be free at a certain period of their lives." Journal H.R. 1821-22, p. 142.

December 13, 1824. Mr. Saunders of North Carolina, presented a memorial of citizens of that state, praying "that measures may be taken for the gradual abolition of slavery in the United States." Journal H.R. 1824-25, p. 27.

December 16, 1828. "Mr. Barnard presented the memorial of the American Convention for promoting the abolition of slavery, held in Baltimore, praying that slavery may be abolished in the District of Columbia." Journal U.S. Senate, 1828-29, p. 24.

6. DISTINGUISHED STATESMEN AND JURISTS IN THE SLAVEHOLDING STATES, HAVE CONCEDED THIS POWER. The testimony of Messrs. Doddridge, and Powell, of Virginia, Chief Justice Cranch, and Judges Morsel and Van Ness, of the District, has already been given. In the debate in Congress on the memorial of the Society of Friends, in 1790, Mr. Madison, in speaking of the territories of the United States, explicitly declared, from his own knowledge of the views of the members of the convention that framed the constitution, as well as from the obvious import of its terms, that in the territories, "Congress have certainly the power to regulate the subject of slavery." Congress can have no more power over the territories than that of "exclusive legislation in all cases whatsoever," consequently, according to Mr. Madison, "it has certainly the power to regulate the subject of slavery in the" *District*. In March, 1816, Mr. Randolph of Va. introduced a resolution for putting a stop to the domestic slave trade within the District. December 12, 1827, Mr. Barney, of Md. presented a memorial for abolition in the District, and moved that it be printed. Mr. McDuffie, of S.C., objected to the printing, but "expressly admitted the right of Congress to grant to the people of the District any measures which they might deem necessary to free themselves from the deplorable evil."—[See letter of Mr. Claiborne of Miss. to his constituents, published in the Washington Globe, May 9, 1836.] The sentiments of Mr. Clay, of Kentucky, on the subject are well known. In a speech before the U.S. Senate, in 1836, he declared the power of Congress to abolish slavery in the District "unquestionable." Messrs. Blair, of Tenn., and Chilton, Lyon, and R.M. Johnson, of Ky., A.H. Shepperd, of N.C., Messrs. Armstrong and Smyth, of Va., Messrs. Dorsey, Archer, and Barney, of Md., and Johns, of Del., with numerous others from slave states, have asserted the power of Congress to abolish slavery in the District. In the speech of Mr. Smyth, of Va., on the Missouri question, January 28, 1820, he says on this point: "If the future freedom of the blacks is your real object, and not a mere pretence, why do you not begin *here*? Within the ten miles square, you have *undoubted power* to exercise exclusive legislation. *Produce a bill to emancipate the slaves in the District of Columbia*, or, if you prefer it, to emancipate those born hereafter."

To this may be added the testimony of the present Vice President of the United States, Hon. Richard M. Johnson, of Kentucky. In a speech before

the U.S. Senate, Feb. 1, 1820, (National Intelligencer, April 20, 1820) he says: "In the District of Columbia, containing a population of 30,000 souls, and probably as many slaves as the whole territory of Missouri, THE POWER OF PROVIDING FOR THEIR EMANCIPATION RESTS WITH CONGRESS ALONE. Why, then, this heart-rending sympathy for the slaves of Missouri, and this cold insensibility, this eternal apathy, towards the slaves in the District of Columbia?"

It is quite unnecessary to add, that the most distinguished northern statesmen of both political parties, have always affirmed the power of Congress to abolish slavery in the District: President Van Buren in his letter of March 6, 1836, to a committee of gentlemen in North Carolina, says, "I would not, from the light now before me, feel myself safe in pronouncing that Congress does not possess the power of abolishing slavery in the District of Columbia." This declaration of the President is consistent with his avowed sentiments touching the Missouri question, on which he coincided with such men as Daniel D. Tompkins, De Witt Clinton, and others, whose names are a host.^A It is consistent, also, with his recommendation in his late message, in which, speaking of the District, he strongly urges upon Congress "a thorough and careful revision of its local government," speaks of the "entire dependence" of the people of the District "upon Congress," recommends that a "uniform system of local government" be adopted, and adds, that "although it was selected as the seat of the General Government, the site of its public edifices, the depository of its archives, and the residence of officers entrusted with large amounts of public property, and the management of public business, yet it never has been subjected to, or received, that *special* and *comprehensive* legislation which these circumstances peculiarly demanded."

^A: Mr. Van Buren, when a member of the Senate of New-York, voted for the following preamble and resolutions, which passed unanimously:—Jan 28th, 1820. "Whereas the inhibiting the further extension of slavery in the United States, is a subject of deep concern to the people of this state: and whereas, we consider slavery as an evil much to be deplored, and that *every constitutional barrier should be interposed to prevent its further extension*: and that the constitution of the United States *clearly gives congress the right* to require new states, not comprised within the original boundary of

the United States, to *make the prohibition of slavery* a condition of their admission into the Union: Therefore,

"Resolved, That our Senators be instructed, and our members of Congress be requested, to oppose the admission as a state into the Union, of an territory not comprised as aforesaid, without making *the prohibition of slavery* therein an indispensable condition of admission."

The tenor of Mr. Tallmadge's speech on the right of petition, and of Mr. Webster's on the reception of abolition memorials, may be taken as universal exponents of the sentiments of northern statesmen as to the power of Congress to abolish slavery in the District of Columbia.

An explicit declaration, that an "*overwhelming majority*" of the *present* Congress concede the power to abolish slavery in the District, has just been made by Hon. Robert Barnwell Rhett, a member of Congress from South Carolina, in a letter published in the Charleston Mercury of Dec. 27, 1837. The following is an extract:

"The time has arrived when we must have new guaranties under the constitution, or the Union must be dissolved. *Our views of the constitution are not those of the majority.* AN OVERWHELMING MAJORITY *think that by the constitution, Congress may abolish slavery in the District of Columbia—may abolish the slave trade between the States; that is, it may prohibit their being carried out of the State in which they are—and prohibit it in all the territories, Florida among them. They think, NOT WITHOUT STRONG REASONS, that the power of Congress extends to all of these subjects.*"

Direct testimony to show that the power of Congress to abolish slavery in the District, has always till recently been *universally conceded*, is perhaps quite superfluous. We subjoin, however, the following:

The Vice-President of the United States in his speech on the Missouri question, quoted above, after contending that the restriction of slavery in Missouri would be unconstitutional, declares, that the power of Congress over slavery in the District "COULD NOT BE QUESTIONED." In the

speech of Mr. Smyth, of Va., also quoted above, he declares the power of Congress to abolish slavery in the District to be "UNDOUBTED."

Mr. Sutherland, of Penn., in a speech in the House of Representatives, on the motion to print Mr. Pinckney's Report, is thus reported in the Washington Globe, of May 9th, '36. "He replied to the remark that the report conceded that Congress had a right to legislate upon the subject in the District of Columbia, and said that SUCH A RIGHT HAD NEVER BEEN, TILL RECENTLY, DENIED."

The American Quarterly Review, published at Philadelphia, with a large circulation and list of contributors in the slave states, holds the following language in the September No. 1833, p. 55: "Under this 'exclusive jurisdiction,' granted by the constitution, Congress has power to abolish slavery and the slave trade in the District of Columbia. It would hardly be necessary to state this as a distinct proposition, had it not been occasionally questioned. The truth of the assertion, however, is too obvious to admit of argument—and we believe HAS NEVER BEEN DISPUTED BY PERSONS WHO ARE FAMILIAR WITH THE CONSTITUTION."

OBJECTIONS TO THE FOREGOING CONCLUSIONS CONSIDERED.

We now proceed to notice briefly the main arguments that have been employed in Congress, and elsewhere against the power of Congress to abolish slavery in the District. One of the most plausible is; that "the conditions on which Maryland and Virginia ceded the District to the United States, would be violated, if Congress should abolish slavery there." The reply to this is, that Congress had no power to *accept* a cession coupled with conditions restricting that "power of exclusive legislation in all cases whatsoever, over such District," which was given it by the constitution.

To show the futility of the objection, we insert here the acts of cession. The cession of Maryland was made in November, 1788, and is as follows: "An act to cede to Congress a district of ten miles square in this state for the seat of the government of the United States."

"Be it enacted, by the General Assembly of Maryland, that the representatives of this state in the House of Representatives of the Congress of the United States, appointed to assemble at New-York, on the first Wednesday of March next, be, and they are hereby authorized and required on the behalf of this state, to cede to the Congress of the United States, any district in this state, not exceeding ten miles square, which the Congress may fix upon, and accept for the seat of government of the United States." Laws of Md., v. 2., c. 46.

The cession of Virginia was made on the 3d of December, 1788, in the following words:

"Be it enacted by the General Assembly, That a tract of country, not exceeding ten miles square, or any lesser quantity, to be located within the limits of the State, and in any part thereof, as Congress may, by law, direct, shall be, and the same is hereby forever ceded and relinquished to the Congress and Government of the United States, in full and absolute right, and exclusive jurisdiction, as well of soil, as of persons residing or to reside thereon, pursuant to the tenor and effect of the eighth section of the first article of the government of the constitution of the United States."

But were there no provisos to these acts? The Maryland act had *none*. The Virginia act had this proviso: "Sect. 2. Provided, that nothing herein contained, shall be construed to vest in the United States any right of property in the soil, or to affect the rights of individuals *therein*, otherwise than the same shall or may be transferred by such individuals to the United States."

This specification touching the soil was merely definitive and explanatory of that clause in the act of cession, "*full and absolute right*." Instead of restraining the power of Congress on *slavery* and other subjects, it even gives it freer course; for exceptions to *parts* of a rule, give double confirmation to those parts not embraced in the exceptions. If it was the *design* of the proviso to restrict congressional action on the subject of *slavery*, why is the *soil alone* specified? As legal instruments are not paragons of economy in words, might not "John Doe," out of his abundance, and without spoiling his style, have afforded an additional word—at least a hint—that slavery was *meant*, though nothing was *said* about it?

But again, Maryland and Virginia, in their acts of cession, declare them to be "in pursuance of" that clause of the constitution which gives to Congress "exclusive legislation in all cases whatsoever over" the ten miles square—thus, instead of *restricting* that clause, both States *confirm* it. Now, their acts of cession either accorded with that clause of the constitution, or they conflicted with it. If they conflicted with it, *accepting* the cessions was a violation of the constitution. The fact that Congress accepted the cessions, proves that in its view their *terms* did not conflict with its constitutional grant of power. The inquiry whether these acts of cession were consistent or inconsistent with the United States' constitution, is totally irrelevant to the question at issue. What saith the CONSTITUTION? That is the question. Not, what saith Virginia, or Maryland, or—equally to the point—John Bull! If Maryland and Virginia had been the authorized interpreters of the constitution for the Union, these acts of cession could hardly have been magnified more than they have been recently by the southern delegation in Congress. A true understanding of the constitution can be had, forsooth, only by holding it up in the light of Maryland and Virginia legislation!

We are told, again, that those States would not have ceded the District if they had supposed the constitution gave Congress power to abolish slavery in it.

This comes with an ill grace from Maryland and Virginia. They *knew* the constitution. They were parties to it. They had sifted it clause by clause, in their State conventions. They had weighed its words in the balance—they had tested them as by fire; and finally, after long pondering, they *adopted* the constitution. And *afterward*, self-moved, they ceded the ten miles square, and declared the cession made "in pursuance of" that oft-cited clause, "Congress shall have power to exercise exclusive legislation in all cases whatsoever over such District." And now verily "they would not have ceded if they had *supposed*!" &c. Cede it they *did*, and in "full and absolute right both of soil and persons." Congress accepted the cession—state power over the District ceased, and congressional power over it commenced—and now, the sole question to be settled is, *the amount of power over the District, lodged in Congress by the constitution*. The constitution—THE CONSTITUTION—that is the point. Maryland and Virginia "suppositions" must be potent suppositions to abrogate a clause of the United States' Constitution! That clause either gives Congress power to abolish slavery in

the District, or it does *not*—and that point is to be settled, not by state "suppositions," nor state usages, nor state legislation, but *by the terms of the clause themselves*.

Southern members of Congress, in the recent discussions, have conceded the power of a contingent abolition in the District, by suspending it upon the *consent* of the people. Such a doctrine from *declaimers* like Messrs. Alford, of Georgia, and Walker, of Mississippi, would excite no surprise; but that it should be honored with the endorsement of such men as Mr. Rives and Mr. Calhoun, is quite unaccountable. Are attributes of *sovereignty* mere creatures of *contingency*? Is delegated *authority* mere conditional *permission*? Is a *constitutional power* to be exercised by those who hold it, only by popular *sufferance*? Must it lie helpless at the pool of public sentiment, waiting the gracious troubling of its waters? Is it a lifeless corpse, save only when popular "consent" deigns to puff breath into its nostrils? Besides, if the consent of the people of the District be necessary, the consent of the *whole* people must be had—not that of a majority, however large. Majorities, to be authoritative, must be *legal*—and a legal majority without legislative power, or right of representation, or even the electoral franchise, would be truly an anomaly! In the District of Columbia, such a thing as a majority in a legal sense is unknown to law. To talk of the power of a majority, or the will of a majority there, is mere mouthing. A majority? Then it has an authoritative will—and an organ to make it known—and an executive to carry it into effect—Where are they? We repeat it—if the consent of the people of the District be necessary, the consent of *every one* is necessary—and *universal* consent will come only with the Greek Kalends and a "perpetual motion." A single individual might thus *perpetuate* slavery in defiance of the expressed will of a whole people. The most common form of this fallacy is given by Mr. Wise, of Virginia, in his speech, February 16, 1835, in which he denied the power of Congress to abolish slavery in the District, unless the inhabitants owning slaves petitioned for it!! Southern members of Congress at the present session ring changes almost daily upon the same fallacy. What! pray Congress *to use* a power which it *has not*? "It is required of a man according to what he *hath*," saith the Scripture. I commend Mr. Wise to Paul for his ethics. Would that he had got his *logic* of him! If Congress does not possess the power, why taunt it with its weakness, by asking its exercise? Why mock it by

demanding impossibilities? Petitioning, according to Mr. Wise, is, in matters of legislation, omnipotence itself; the very *source* of all constitutional power; for, *asking* Congress to do what it *cannot* do, gives it the power—to pray the exercise of a power that is *not*, *creates* it. A beautiful theory! Let us work it both ways. If to petition for the exercise of a power that is *not*, creates it—to petition against the exercise of a power that *is*, annihilates it. As southern gentlemen are partial to summary processes, pray, sirs, try the virtue of your own recipe on "exclusive legislation in all cases whatsoever;" a better subject for experiment and test of the prescription could not be had. But if the petitions of the citizens of the District give Congress the *right* to abolish slavery, they impose the *duty*; if they confer constitutional *authority*, they create constitutional *obligation*. If Congress *may* abolish because of an expression of their will, it *must* abolish at the bidding of that will. If the people of the District are a *source of power* to Congress, their *expressed* will has the force of a constitutional provision, and has the same binding power upon the National Legislature. To make Congress dependent on the District for authority, is to make it a *subject* of its authority, restraining the exercise of its own discretion, and sinking it into a mere organ of the District's will. We proceed to another objection.

"*The southern states would not have ratified the constitution, if they had supposed that it gave this power.*" It is a sufficient answer to this objection, that the northern states would not have ratified it, if they had supposed that it *withheld* the power. If "suppositions" are to take the place of the constitution—coming from both sides, they neutralize each other. To argue a constitutional question by *guessing* at the "suppositions" that might have been made by the parties to it, would find small favor in a court of law. But even a desperate shift is some easement when sorely pushed. If this question is to be settled by "suppositions" suppositions shall be forthcoming, and that without stint.

First, then, I affirm that the North ratified the constitution, "supposing" that slavery had begun to wax old, and would speedily vanish away, and especially that the abolition of the slave trade, which by the constitution was to be surrendered to Congress after twenty years, would cast it headlong.

Would the North have adopted the constitution, giving three-fifths of the "slave property" a representation, if it had "supposed" that the slaves would have increased from half a million to two millions and a half by 1838—and that the census of 1840 would give to the slave states thirty representatives of "slave property?"

If they had "supposed" that this representation would have controlled the legislation of the government, and carried against the North every question vital to its interests, would Hamilton, Franklin, Sherman, Gerry, Livingston, Langdon, and Rufus King have been such madmen, as to sign the constitution, and the Northern States such suicides as to ratify it? Every self-preserving instinct would have shrieked at such an infatuate immolation. At the adoption of the United States constitution, slavery was regarded as a fast waning system. This conviction was universal. Washington, Jefferson, Henry, Grayson, Tucker, Madison, Wythe, Pendleton, Lee, Blair, Mason, Page, Parker, Randolph, Iredell, Spaight, Ramsey, Pinkney, Martin, McHenry, Chase, and nearly all the illustrious names south of the Potomac, proclaimed it before the sun. A reason urged in the convention that formed the United States constitution, why the word slave should not be used in it, was, that *when slavery should cease*, there might remain upon the National Charter no record that it had ever been. (See speech of Mr. Burrill, of R.I., on the Missouri question.)

I now proceed to show by testimony, that at the date of the United States constitution, and for several years before and after that period, slavery was rapidly on the wane; that the American Revolution with the great events preceding, accompanying, and following it, had wrought an immense and almost universal change in the public sentiment of the nation on the subject, powerfully impelling it toward the entire abolition of the system—and that it was the *general belief* that measures for its abolition throughout the Union, would be commenced by the individual States generally before the lapse of many years. A great mass of testimony establishing this position might be presented, but narrow space, and the importance of speedy publication, counsel brevity. Let the following proofs suffice. First, a few dates as points of observation.

The first *general* Congress met in 1774. The revolutionary war commenced in '75. Independence was declared in '76. The articles of confederation were

adopted by the thirteen states in '78. Independence acknowledged in '83. The convention for forming the U.S. constitution was held in '87, the state conventions for considering it in '87, and '88. The first Congress under the constitution in '89.

Dr. Rush, of Pennsylvania, one of the signers of the Declaration of Independence, in a letter to Granville Sharpe, May 1, 1773, says "A spirit of humanity and religion begins to awaken in several of the colonies in favor of the poor negroes. Great events have been brought about by small beginnings. *Anthony Benezet stood alone a few years ago in opposing negro slavery in Philadelphia,* and NOW THREE-FOURTHS OF THE PROVINCE AS WELL AS OF THE CITY CRY OUT AGAINST IT."—[Stuart's Life of Sharpe, p. 21.]

In the preamble to the act prohibiting the importation of slaves into Rhode Island, June, 1774, is the following: "Whereas the inhabitants of America are generally engaged in the preservation of their own rights and liberties, among which that of personal freedom must be considered the greatest, and as those who are desirous of enjoying all the advantages of liberty themselves, *should be willing to extend personal liberty to others,* therefore," &c.

October 20, 1774, the Continental Congress passed the following: "We, for ourselves and the inhabitants of the several colonies whom we represent, *firmly agree and associate under the sacred ties of virtue, honor, and love of our country,* as follows:

"2d Article. *We will neither import nor purchase any slaves imported* after the first day of December next, after which time we will *wholly discontinue* the slave trade, and we will neither be concerned in it ourselves, nor will we hire our vessels, nor sell our commodities or manufactures to those who are concerned in it."

The Continental Congress, in 1775, setting forth the causes and the necessity for taking up arms, say: "*If it were possible* for men who exercise their reason to believe that the divine Author of our existence intended a part of the human race to *hold an absolute property in, and unbounded power over others,*" &c.

In 1776, Dr. Hopkins, then at the head of New England divines, in "An Address to the owners of negro slaves in the American colonies," says: "The conviction of the unjustifiableness of this practice (slavery) has been *increasing*, and *greatly spreading of late*, and *many* who have had slaves, have found themselves so unable to justify their own conduct in holding them in bondage, as to be induced to *set them at liberty*. * * * * Slavery is, *in every instance*, wrong, unrighteous, and oppressive—a very great and crying sin—*there being nothing of the kind equal to it on the face of the earth*."

The same year the American Congress issued a solemn MANIFESTO to the world. These were its first words: "We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness." *Once*, these were words of power; *now*, "a rhetorical flourish."

The celebrated Patrick Henry of Virginia, in a letter, of Jan. 18, 1773, to Robert Pleasants, afterwards president of the Virginia Abolition Society, says: "Believe me, I shall honor the Quakers for their noble efforts to abolish slavery. It is a debt we owe to the purity of our religion to show that it is at variance with that law that warrants slavery. I exhort you to persevere in so worthy a resolution."

In 1779, the Continental Congress ordered a pamphlet to be published, entitled, "Observations on the American Revolution," from which the following is an extract: "The great principle (of government) is and ever will remain in force, *that men are by nature free*; and so long as we have any idea of divine *justice*, we must associate that of *human freedom*. It is *conceded on all hands*, that the right to be free CAN NEVER BE ALIENATED."

Extract from the Pennsylvania act for the abolition of slavery, passed March 1, 1780: * * "We conceive that it is our duty, and we rejoice that it is in our power, to extend a portion of that freedom to others which has been extended to us. Weaned by a long course of experience from those narrow prejudices and partialities we had imbibed, we find our hearts enlarged with kindness and benevolence towards men of all conditions and

nations: * * * Therefore be it enacted, that no child born hereafter be a slave," &c.

Jefferson, in his Notes on Virginia, written just before the close of the Revolutionary War, says: "I think a change already perceptible since the origin of the present revolution. The spirit of the master is abating, that of the slave is rising from the dust, his condition mollifying, *the way I hope preparing under the auspices of heaven*, FOR A TOTAL EMANCIPATION."

In a letter to Dr. Price, of London, who had just published a pamphlet in favor of the abolition of slavery, Mr. Jefferson, then minister at Paris, (August 7, 1785,) says: "From the mouth to the head of the Chesapeake, *the bulk of the people will approve of your pamphlet in theory*, and it will find a respectable minority ready to *adopt it in practice*—a minority which, for weight and worth of character, *preponderates against the greater number*." Speaking of Virginia, he says: "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression,—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS. Be not, therefore, discouraged—what you have written will do a *great deal of good*; and could you still trouble yourself with our welfare, no man is more able to give aid to the laboring side. The College of William and Mary, since the remodelling of its plan, is the place where are collected together all the young men of Virginia, under preparation for public life. They are there under the direction (most of them) of a Mr. Wythe, one of the most virtuous of characters, and *whose sentiments on the subject of slavery are unequivocal*. I am satisfied, if you could resolve to address an exhortation to those young men with all that eloquence of which you are master, that *its influence on the future decision of this important question would be great, perhaps decisive*. Thus, you see, that so far from thinking you have cause to repent of what you have done, *I wish you to do more, and wish it on an assurance of its effect*."—Jefferson's Posthumous Works, vol. 1, p. 268.

In 1786, John Jay drafted and signed a petition to the Legislature of New York, on the subject of slavery, beginning with these words: "Your memorialists being deeply affected by the situation of those, who, although FREE BY THE LAW OF GOD, are held in slavery by the laws of the

State," &c. This memorial bore also the signatures of the celebrated Alexander Hamilton; Robert R. Livingston, afterward Secretary of Foreign Affairs of the United States, and Chancellor of the State of New-York; James Duane, Major of the City of New-York, and many others of the most eminent individuals in the State.

In the preamble of an instrument, by which Mr. Jay emancipated a slave in 1784, is the following passage:

"Whereas, the children of men are by nature equally free, and cannot, without injustice, be either reduced to or HELD in slavery."

In his letter while Minister at Spain, in 1786, he says, speaking of the abolition of slavery: "Till America comes into this measure, her prayers to heaven will be IMPIOUS. I believe God governs the world; and I believe it to be a maxim in his, as in our court, that those who ask for equity *ought to do it.*"

In 1785, the New-York Manumission Society was formed. John Jay was chosen its first President, and held the office for five years. Alexander Hamilton was its second President, and after holding the office one year, resigned upon his removal to Philadelphia as Secretary of the United States' Treasury. In 1787, the Pennsylvania Abolition Society was formed. Benjamin Franklin, warm from the discussions of the convention that formed the U.S. constitution, was chosen President, and Benjamin Rush, Secretary—both signers of the Declaration of Independence. In 1789, the Maryland Abolition Society was formed. Among its officers were Samuel Chace, Judge of the U.S. Supreme Court, and Luther Martin, a member of the convention that formed the U.S. constitution. In 1790, the Connecticut Abolition Society was formed. The first President was Rev. Dr. Stiles, President of Yale College, and the Secretary, Simeon Baldwin, (the late Judge Baldwin of New Haven.) In 1791, this Society sent a memorial to Congress, from which the following is an extract:

"From a sober conviction of the unrighteousness of slavery, your petitioners have long beheld, with grief, our fellow men doomed to perpetual bondage, in a country which boasts of her freedom. Your petitioners are fully of opinion; that calm reflection will at last convince the world, that the whole system of African slavery IS unjust

in its nature—impolitic in its principles—and, in its consequences, ruinous to the industry and enterprise of the citizens of these States. From a conviction of those truths, your petitioners were led, by motives, we conceive, of general philanthropy, to associate ourselves for the protection and assistance of this unfortunate part of our fellow men; and, though this Society has been *lately* established, it has now become *generally extensive* through this state, and, we fully believe, *embraces, on this subject, the sentiments of a large majority of its citizens.*"

The same year the Virginia Abolition Society was formed. This Society, and the Maryland Society, had auxiliaries in different parts of those States. Both societies sent up memorials to Congress. The memorial of the Virginia Society is headed—"The memorial of the *Virginia Society*, for promoting the Abolition of Slavery, &c." The following is an extract:

"Your memorialists, fully believing that slavery is not only an odious degradation, but an *outrageous violation of one of the most essential rights of human nature, and utterly repugnant to the precepts of the gospel*, lament that a practice so inconsistent with true policy and the inalienable rights of men, should subsist in so enlightened an age, and among a people professing, that all mankind are, by nature, equally entitled to freedom."

About the same time a Society was formed in New Jersey. It had an acting committee of five members in each county in the State. The following is an extract from the preamble to its constitution:

"It is our boast, that we live under a government wherein *life, liberty, and the pursuit of happiness*, are recognized as the universal rights of men; and whilst we are anxious to preserve these rights to ourselves, and transmit them inviolate, to our posterity, we *abhor that inconsistent, illiberal, and interested policy, which withholds those rights from an unfortunate and degraded class of our fellow creatures.*"

Among other distinguished individuals who were efficient officers of these Abolition Societies, and delegates from their respective state societies, at

the annual meetings of the American convention for promoting the abolition of slavery, were Hon. Uriah Tracy, United States' Senator, from Connecticut; Hon. Zephaniah Swift, Chief Justice of the same State; Hon. Cesar A. Rodney, Attorney General of the United States; Hon. James A. Bayard, United States' Senator, from Delaware; Governor Bloomfield, of New-Jersey; Hon. Wm. Rawle, the late venerable head of the Philadelphia bar; Dr. Caspar Wistar, of Philadelphia; Messrs. Foster and Tillinghast, of Rhode Island; Messrs. Ridgely, Buchanan, and Wilkinson, of Maryland; and Messrs. Pleasants, McLean, and Anthony, of Virginia.

In July, 1787, the old Congress passed the celebrated ordinance abolishing slavery in the northwestern territory, and declaring that it should never thereafter exist there. This ordinance was passed while the convention that formed the United States' constitution was in session. At the first session of Congress under the constitution, this ordinance was ratified by a special act. Washington, fresh from the discussions of the convention, in which *more than forty days had been spent in adjusting the question of slavery, gave it his approval*. The act passed with only one dissenting voice, (that of Mr. Yates, of New York,) *the South equally with the North avowing the fitness and expediency of the measure on general considerations, and indicating thus early the line of national policy, to be pursued by the United States' Government on the subject of slavery*.

In the debates in the North Carolina Convention, Mr. Iredell, afterward a Judge of the United States' Supreme Court, said, "*When the entire abolition of slavery takes place, it will be an event which must be pleasing to every generous mind and every friend of human nature*." Mr. Galloway said, "I wish to see this abominable trade put an end to. I apprehend the clause (touching the slave trade) means *to bring forward manumission*." Luther Martin, of Maryland, a member of the convention that formed the United States Constitution, said, "We ought to authorize the General Government to make such regulations as shall be thought most advantageous for *the gradual abolition of slavery, and the emancipation of the slaves* which are already in the States." Judge Wilson, of Pennsylvania, one of the framers of the constitution, said, in the Pennsylvania convention of '87, [Deb. Pa. Con. p. 303, 156:] "I consider this (the clause relative to the slave trade) as laying the foundation for *banishing slavery out of this country*. It will produce the same kind of gradual change which was produced in Pennsylvania; the new

states which are to be formed will be under the control of Congress in this particular, and *slaves will never be introduced* among them. It presents us with the pleasing prospect that the rights of mankind will be acknowledged and established *throughout the Union*. Yet the lapse of a few years, and Congress will have power to *exterminate slavery* within our borders." In the Virginia convention of '87, Mr. Mason, author of the Virginia constitution, said, "The augmentation of slaves weakens the States, and such a trade is *diabolical* in itself, and disgraceful to mankind. As much as I value a union of all the states, I would not admit the southern states, (i.e., South Carolina and Georgia,) into the union, *unless they agree to a discontinuance of this disgraceful trade*." Mr. Tyler opposed with great power the clause prohibiting the abolition of the slave trade till 1808, and said, "My earnest desire is, that it shall be handed down to posterity that I oppose this wicked clause." Mr. Johnson said, "The principle of emancipation *has begun since the revolution. Let us do what we will, it will come round*."—[Deb. Va. Con. p. 463.] Patrick Henry, arguing the power of Congress under the United States' constitution to abolish slavery in the States, said, in the same convention, "Another thing will contribute to bring this event (the abolition of slavery) about. Slavery is *detested*. We feel its fatal effects; we deplore it with all the pity of humanity."—[Deb. Va. Con. p. 431.] In the Mass. Con. of '88, Judge Dawes said, "Although slavery is not smitten by an apoplexy, yet *it has received a mortal wound*, and will die of consumption."—[Deb. Mass. Con. p. 60.] General Heath said that, "Slavery was confined to the States *now existing*, it *could not be extended*. By their ordinance, Congress had declared that the new States should be republican States, *and have no slavery*."—p. 147.

In the debate, in the first Congress, February 11th and 12th, 1789, on the petitions of the Society of Friends, and the Pennsylvania Abolition Society, Mr. Parker, of Virginia, said, "I cannot help expressing the pleasure I feel in finding *so considerable a part* of the community attending to matters of such a momentous concern to the *future prosperity* and happiness of the people of America. I think it my duty, as a citizen of the Union, *to espouse their cause*."

Mr. Page, of Virginia, (afterward Governor)—"Was *in favor* of the commitment; he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion

of the prayer of the memorial. With respect to the alarm that was apprehended, he conjectured there was none; but there might be just cause, if the memorial was *not* taken into consideration. He placed himself in the case of a slave, and said, that on hearing that Congress had refused to listen to the decent suggestions of a respectable part of the community, he should infer, that the general government, *from which was expected great good would result to EVERY CLASS of citizens*, had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if any thing could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf, and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and *wait the decision patiently*."

Mr. Scott of Pennsylvania: "I cannot, for my part, conceive how any person *can be said to acquire a property in another*. Let us argue on principles countenanced by reason, and becoming humanity. *I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation, but I am sure I would go as far as I could*."

Mr. Burke, of South Carolina, said, "He *saw the disposition of the House*, and he feared it would be referred to a committee, maugre all their opposition."

Mr. Smith of South Carolina, said, "That on entering into this government, they (South Carolina and Georgia) apprehended that the other states, * * would, *from motives of humanity and benevolence, be led to vote for a general emancipation*."

In the debate, at the same session, May 13th, 1789, on the petition of the Society of Friends respecting the slave trade, Mr. Parker, of Virginia, said, "He hoped Congress would do all that lay in their power *to restore to human nature its inherent privileges*. The inconsistency in our principles, with which we are justly charged *should be done away*."

Mr. Jackson, of Georgia, said, "IT WAS THE FASHION OF THE DAY TO FAVOR THE LIBERTY OF THE SLAVES. * * * * Will

Virginia set her negroes free? *When this practice comes to be tried, then the sound of liberty will lose those charms which make it grateful to the ravished ear.*"

Mr. Madison, of Virginia,—*"The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy, require it of us. * * * * I conceive the constitution in this particular was formed in order that the Government, whilst it was restrained from laying a total prohibition, might be able to give some testimony of the sense of America, with respect to the African trade. * * * * It is to be hoped, that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, AND OUR POSTERITY THE IMBECILITY EVER ATTENDANT ON A COUNTRY FILLED WITH SLAVES. If there is any one point in which it is clearly the policy of this nation, so far as we constitutionally can, to vary the practice obtaining under some of the state governments, it is this. But it is certain a majority of the states are opposed to this practice."*—Cong. Reg. v. 1, p. 308-12.

A writer in the "Gazette of the United States," Feb. 20th, 1790, (then the government paper,) who opposes the abolition of slavery, and avows himself a *slaveholder*, says, "I have seen in the papers accounts of *large associations*, and applications to Government for *the abolition of slavery*. Religion, humanity, and the generosity natural to a free people, are the *noble principles which dictate those measures*. SUCH MOTIVES COMMAND RESPECT, AND ARE ABOVE ANY EULOGIUM WORDS CAN BESTOW."

In the convention that formed the constitution of Kentucky in 1790, the effort to prohibit slavery was nearly successful. A decided majority of that body would undoubtedly have voted for its exclusion, but for the great efforts and influence of two large slaveholders—men of commanding talents and sway—Messrs. Breckenridge and Nicholas. The following extract from a speech made in that convention by a member of it, Mr. Rice a native Virginian, is a specimen of the *free discussion* that prevailed on that "delicate subject." Said Mr. Rice: "I do a man greater injury, when I deprive him of his liberty, than when I deprive him of his property. It is vain for me to plead that I have the sanction of law; for this makes the injury the greater—it arms the community against him, and makes his case desperate. The

owners of such slaves then are *licensed robbers*, and not the just proprietors of what they claim. Freeing them is not depriving them of property, but *restoring it to the right owner*. In America, a slave is a standing monument of the tyranny and inconsistency of human governments. The master is the enemy of the slave; he *has made open war upon him*, AND IS DAILY CARRYING IT ON in unremitted efforts. Can any one imagine, then, that the slave is indebted to his master, and *bound to serve him*? Whence can the obligation arise? What is it founded upon? What is my duty to an enemy that is carrying on war against me? I do not deny, but in some circumstances, it is the duty of the slave to serve; but it is a duty he owes himself, and not his master."

President Edwards, the younger, said, in a sermon preached before the Connecticut Abolition Society, Sept. 15, 1791: "Thirty years ago, scarcely a man in this country thought either the slave trade or the slavery of negroes to be wrong; but now how many and able advocates in private life, in our legislatures, in Congress, have appeared, and have openly and irrefragably pleaded the rights of humanity in this as well as other instances? And if we judge of the future by the past, *within fifty years from this time, it will be as shameful for a man to hold a negro slave, as to be guilty of common robbery or theft.*"

In 1794, the General Assembly of the Presbyterian church adopted its "Scripture proofs," notes, comments, &c. Among these was the following:

"1 Tim. i. 10. The law is made for manstealers. This crime among the Jews exposed the perpetrators of it to capital punishment. Exodus xxi. 16. And the apostle here classes them with *sinner of the first rank*. The word he uses, in its original import comprehends all who are concerned in bringing any of the human race into slavery, or in *retaining* them in it. *Stealers of men* are all those who bring off slaves or freemen, and *keep, sell, or buy* them."

In 1794, Dr. Rush declared: "Domestic slavery is repugnant to the principles of Christianity. It prostrates every benevolent and just principle of action in the human heart. It is rebellion against the authority of a common Father. It is a practical denial of the extent and efficacy of the death of a common Savior. It is an usurpation of the prerogative of the great

Sovereign of the universe, who has solemnly claimed an exclusive property in the souls of men."

In 1790, Mr. Fiske, then an officer of Dartmouth College, afterward a Judge in Tennessee, said, in an oration published that year, speaking of slaves: "I steadfastly maintain, that we must bring them to *an equal standing, in point of privileges, with the whites!* They must enjoy all the rights belonging to human nature."

When the petition on the abolition of the slave trade was under discussion in the Congress of '89, Mr. Brown, of North Carolina, said, "The emancipation of the slaves *will be effected* in time; it ought to be a gradual business, but he hoped that Congress would not *precipitate* it to the great injury of the southern States." Mr. Hartley, of Pennsylvania, said, in the same debate, "*He was not a little surprised to hear the cause of slavery advocated in that house.*" WASHINGTON, in a letter to Sir John Sinclair, says, "There are, in Pennsylvania, laws for the gradual abolition of slavery which neither Maryland nor Virginia have at present, but which *nothing is more certain* than that they *must have*, and at a period NOT REMOTE." In 1782, Virginia passed her celebrated manumission act. Within nine years from that time nearly eleven thousand slaves were voluntarily emancipated by their masters. Judge Tucker's "Dissertation on Slavery," p. 72. In 1787, Maryland passed an act legalizing manumission. Mr. Dorsey, of Maryland, in a speech in Congress, December 27th, 1826, speaking of manumissions under that act, said, that "*The progress of emancipation was astonishing*, the State became crowded with a free black population."

The celebrated William Pinkney, in a speech before the Maryland House of Delegates, in 1789, on the emancipation of slaves, said, "Sir, by the eternal principles of natural justice, *no master in the state has a right to hold his slave in bondage for a single hour....* I would as soon believe the incoherent tale of a schoolboy, who should tell me he had been frightened by a ghost, as that the grant of this permission (to emancipate) ought in any degree to alarm us. Are we apprehensive that these men will become more dangerous by becoming freemen? Are we alarmed, lest by being admitted into the enjoyment of civil rights, they will be inspired with a deadly enmity against the rights of others? Strange, unaccountable paradox! How much more rational would it be, to argue that the natural enemy of the privileges of a

freeman, is he who is robbed of them himself! Dishonorable to the species is the idea that they would ever prove injurious to our interests—released from the shackles of slavery, by the justice of government and the bounty of individuals—the want of fidelity and attachment would be next to impossible."

Hon. James Campbell, in an address before the Pennsylvania Society of the Cincinnati, July 4, 1787, said, "Our separation from Great Britain has extended the empire of humanity. The time *is not far distant* when our sister states, in imitation of our example, *shall turn their vassals into freemen*." The Convention that formed the United States' Constitution being then in session, attended at the delivery of this oration with General Washington at their head.

A Baltimore paper of September 8th, 1780, contains the following notice of Major General Gates: "A few days ago passed through this town the Hon. General Gates and lady. The General, previous to leaving Virginia, summoned his numerous family of slaves about him, and amidst their tears of affection and gratitude, gave them their FREEDOM."

In 1791 the university of William and Mary, in Virginia, conferred upon Granville Sharpe the degree of Doctor of Laws. Sharpe was at that time the acknowledged head of British abolitionists. His indefatigable exertions, prosecuted for years in the case of Somerset, procured that memorable decision in the Court of King's Bench, which settled the principle that no slave could be held in England. He was most uncompromising in his opposition to slavery, and for twenty years previous he had spoken, written, and accomplished more against it than any man living.

In the "Memoirs of the Revolutionary War in the Southern Department," by Gen. Lee, of Va., Commandant of the Partizan Legion, is the following: "The Constitution of the United States, adopted lately with so much difficulty, has effectually provided against this evil, (by importation) after a few years. It is much to be lamented that having done so much in this way, *a provision had not been made for the gradual abolition of slavery*."—p. 233, 4.

Mr. Tucker, of Virginia, Judge of the Supreme Court of that state, and professor of law in the University of William and Mary, addressed a letter to

the General Assembly of that state, in 1796, urging the abolition of slavery; from which the following is an extract. Speaking of the slaves in Virginia, he says: "Should we not, at the time of the revolution, have loosed their chains and broken their fetters; or if the difficulties and dangers of such an experiment prohibited the attempt, during the convulsions of a revolution, is it not our duty, *to embrace the first moment* of constitutional health and vigor to effectuate so desirable an object, and to remove from us a stigma with which our enemies will never fail to upbraid us, nor our consciences to reproach us?"

Mr. Faulkner, in a speech before the Virginia Legislature, Jan. 20, 1832, said—"The idea of a gradual emancipation and removal of the slaves from this commonwealth, is coeval with the declaration of our independence from the British yoke. It sprung into existence during the first session of the General Assembly, subsequent to the formation of your republican government. When Virginia stood sustained in her legislation by the pure and philosophic intellect of Pendleton—by the patriotism of Mason and Lee—by the searching vigor and sagacity of Wythe, and by the all-embracing, all-comprehensive genius of Thomas Jefferson! Sir, it was a committee composed of those five illustrious men, who, in 1777, submitted to the general assembly of this state, then in session, *a plan for the gradual emancipation of the slaves of this commonwealth.*"

Hon. Benjamin Watkins Leigh, late United States' senator from Virginia, in his letters to the people of Virginia, in 1832, signed Appomattox, p. 43, says: "I thought, till very lately, that it was known to every body that during the Revolution, *and for many years after, the abolition of slavery was a favorite topic with many of our ablest statesmen*, who entertained, with respect, all the schemes which wisdom or ingenuity could suggest for accomplishing the object. Mr. Wythe, to the day of his death, *was for a simple abolition, considering the objection to color as founded in prejudice.* By degrees, all projects of the kind were abandoned. Mr. Jefferson *retained* his opinion, and now we have these projects revived."

Governor Barbour, of Virginia, in his speech in the U.S. Senate, on the Missouri question, Jan. 1820, said:—"We are asked why has Virginia *changed her policy* in reference to slavery? That the sentiments of *our most distinguished men*, for thirty years *entirely corresponded* with the course

which the friends of the restriction (of slavery in Missouri) now advocated; and that the Virginia delegation, one of whom was the late President of the United States, voted for the restriction, (of slavery) in the northwestern territory, and that Mr. Jefferson has delineated a gloomy picture of the baneful effects of slavery. When it is recollected that the Notes of Mr. Jefferson were written during the progress of the revolution, it is no matter of surprise that the writer should have imbibed a large portion of that enthusiasm which such an occasion was so well calculated to produce. As to the consent of the Virginia delegation to the restriction in question, whether the result of a disposition to restrain the slave trade indirectly, or the influence of that enthusiasm to which I have just alluded, * * * * it is not now important to decide. We have witnessed its effects. The liberality of Virginia, or, as the result may prove, her folly, which submitted to, or, if you will, PROPOSED *this measure*, (abolition of slavery in the N.W. territory) has eventuated in effects which speak a monitory lesson. *How is the representation from this quarter on the present question?"*

Mr. Imlay, in his early history of Kentucky, p. 185, says: "We have disgraced the fair face of humanity, and trampled upon the sacred privileges of man, at the very moment that we were exclaiming against the tyranny of your (the English) ministry. But in contending for the birthright of freedom, we have learned to feel *for the bondage of others*, and in the libations we offer to the goddess of liberty, we *contemplate an emancipation of the slaves of this country*, as honorable to themselves as it will be glorious to us."

In the debate in Congress, Jan, 20, 1806, on Mr. Sloan's motion to lay a tax on the importation of slaves, Mr. Clark of Va. said: "He was no advocate for a system of slavery." Mr. Marion, of S. Carolina, said: "He never had purchased, nor should he ever purchase a slave." Mr. Southard said: "Not revenue, but an expression of the *national sentiment* is the principal object." Mr. Smilie—"I rejoice that the word (slave) is not in the constitution; its not being there does honor to the worthies who would not suffer it to become a *part* of it." Mr. Alston, of N. Carolina—"In two years we shall have the power to prohibit the trade altogether. Then this House will be UNANIMOUS. No one will object to our exercising our full constitutional powers." National Intelligencer, Jan. 24, 1806.

These witnesses need no vouchers to entitle them to credit; nor their testimony comments to make it intelligible—their *names* are their *endorsers* and their strong words their own interpreters. We wave all comments. Our readers are of age. Whosoever hath ears to *hear*, let him HEAR. And whosoever will not hear the fathers of the revolution, the founders of the government, its chief magistrates, judges, legislators and sages, who dared and periled all under the burdens, and in the heat of the day that tried men's souls—then "neither will he be persuaded though THEY rose from the dead."

Some of the points established by the testimony are—The universal expectation that the *moral* influence of Congress, of state legislatures, of seminaries of learning, of churches, of the ministers of religion, and of public sentiment widely embodied in abolition societies, would be exerted against slavery, calling forth by argument and appeal the moral sense of the nation, and creating a power of opinion that would abolish the system throughout the union. In a word, that free speech and a free press would be wielded against slavery without ceasing and without restriction. Full well did the south know, not only that the national government would probably legislate against slavery wherever the constitution placed it within its reach, but she knew also that Congress had already marked out the line of national policy to be pursued on the subject—had committed itself before the world to a course of action against slavery, wherever she could move upon it without encountering a conflicting jurisdiction—that the nation had established by solemn ordinance memorable precedent for subsequent action, by abolishing slavery in the northwest territory, and by declaring that it should never thenceforward exist there; and this too, as soon as by cession of Virginia and other states, the territory came under Congressional control. The south knew also that the sixth article in the ordinance prohibiting slavery was first proposed by the largest slaveholding state in the confederacy—that the chairman of the committee that reported the ordinance was a slaveholder—that the ordinance was enacted by Congress during the session of the convention that formed the United States Constitution—that the provisions of the ordinance were, both while in prospect, and when under discussion, matters of universal notoriety and *approval* with all parties, and when finally passed, received the vote of *every member of Congress from each of the slaveholding states*. The south

also had every reason for believing that the first Congress under the constitution would *ratify* that ordinance—as it *did* unanimously.

A crowd of reflections, suggested by the preceding testimony, press for utterance. The right of petition ravished and trampled by its constitutional guardians, and insult and defiance hurled in the faces of the SOVEREIGN PEOPLE while calmly remonstrating *with their* SERVANTS for violence committed on the nation's charter and their own dearest rights! Add to this "the right of peaceably assembling" violently wrested—the rights of minorities, *rights* no longer—free speech struck dumb—free *men* outlawed and murdered—free presses cast into the streets and their fragments strewn with shoutings, or flourished in triumph before the gaze of approving crowds as proud members of prostrate law!

The spirit and power of our fathers, where are they? Their deep homage always and every where rendered to FREE THOUGHT, with its *inseparable signs—free speech and a free press*—their reverence for justice, liberty, *rights* and all-pervading law, where are they?

But we turn from these considerations—though the times on which we have fallen, and those towards which we are borne with headlong haste, call for their discussion as with the voices of departing life—and proceed to topics relevant to the argument before us.

The seventh article of the amendments to the constitution is alleged to withhold from Congress the power to abolish slavery in the District. "No person shall be deprived of life, liberty, or property, without due process of law." All the slaves in the District have been "deprived of liberty" by legislative acts. Now, these legislative acts "depriving" them "of liberty," were either "due process of law," or they were *not*. If they *were*, then a legislative act, taking from the master that "property" which is the identical "liberty" previously taken from the slave, would be "due process of law" *also*, and of course a *constitutional* act; but if the legislative acts "depriving" them of "liberty" were *not* "due process of law," then the slaves were deprived of liberty *unconstitutionally*, and these acts are *void*. In that case the *constitution emancipates them*.

If the objector reply, by saying that the import of the phrase "due process of law," is *judicial* process solely, it is granted, and that fact is our rejoinder;

for no slave in the District *has* been deprived of his liberty by "a judicial process," or, in other words, by "due process of law;" consequently, upon the objector's own admission, every slave in the District has been deprived of liberty *unconstitutionally*, and is therefore *free by the constitution*. This is asserted only of the slaves under the "exclusive legislation" of Congress.

The last clause of the article under consideration is quoted for the same purpose: "Nor shall private property be taken for public use without just compensation." Each of the state constitutions has a clause of similar purport. The abolition of slavery in the District by Congress, would not, as we shall presently show, violate this clause either directly or by implication. Granting for argument's sake, that slaves are "private property," and that to emancipate them, would be to "take private property" for "public use," the objector admits the power of Congress to do *this*, provided it will do something *else*, that is, *pay* for them. Thus, instead of denying the *power*, the objector not only admits, but *affirms* it, as the ground of the inference that compensation must accompany it. So far from disproving the existence of *one* power, the objector asserts the existence of *two*—one, the power to take the slaves from their masters, the other, the power to take the property of the United States to pay for them.

If Congress cannot constitutionally impair the right of private property, or take it without compensation, it cannot constitutionally, *legalise* the perpetration of such acts, by *others*, nor *protect* those who commit them. Does the power to rob a man of his earnings, rob the earner of his right to them? Who has a better right to the *product* than the producer?—to the *interest*, than the owner of the *principal*?—to the hands and arms, than he from whose shoulders they swing?—to the body and soul, than he whose they *are*? Congress not only impairs but annihilates the right of private property, while it withholds from the slaves of the District their title to *themselves*. What! Congress powerless to protect a man's right to *himself*, when it can make inviolable the right to a *dog*! But, waving this, I deny that the abolition of slavery in the District would violate this clause. What does the clause prohibit? The "taking" of "private property" for "public use." Suppose Congress should emancipate the slaves in the District, what would it "*take*?" Nothing. What would it *hold*? Nothing. What would it put to "public use?" Nothing. Instead of *taking* "private property," Congress, by abolishing slavery, would say "*private property shall not be taken*; and

those who have been robbed of it already, shall be kept out of it no longer; and since every man's right to his own body is *paramount*, he shall be protected in it." True, Congress may not arbitrarily take property, as property, from one man and give it to another—and in the abolition of slavery no such thing is done. A legislative act changes the *condition* of the slave—makes him his own *proprietor* instead of the property of another. It determines a question of *original right* between two classes of persons—doing an act of justice to one, and restraining the other from acts of injustice; or, in other words, preventing one from robbing the other, by granting to the injured party the protection of just and equitable laws.

Congress, by an act of abolition, would change the condition of seven thousand "persons" in the District, but would "take" nothing. To construe this provision so as to enable the citizens of the District to hold as property, and in perpetuity, whatever they please, or to hold it as property in all circumstances—all necessity, public welfare, and the will and power of the government to the contrary notwithstanding—is a total perversion of its whole *intent*. The *design* of the provision, was to throw up a barrier against Governmental aggrandizement. The right to "take property" for *State uses* is one thing;—the right so to adjust the *tenures* by which property is held, that *each may have his own secured to him*, is another thing, and clearly within the scope of legislation. Besides, if Congress were to "take" the slaves in the District, it would be *adopting*, not abolishing slavery—becoming a slaveholder itself, instead of requiring others to be such no longer. The clause in question, prohibits the "taking" of individual property for public uses, to be employed or disposed of as property for governmental purposes. Congress, by abolishing slavery in the District, would do no such thing. It would merely change the *condition* of that which has been recognised as a qualified property by congressional acts, though previously declared "persons" by the constitution. More than this is done continually by Congress and every other Legislature. Property the most absolute and unqualified, is annihilated by legislative acts. The embargo and non-intercourse act, prostrated at a stroke, a forest of shipping, and sunk millions of capital. To say nothing of the power of Congress to take hundreds of millions from the people by direct taxation, who doubts its power to abolish at once the whole tariff system, change the seat of Government, arrest the progress of national works, prohibit any branch of

commerce with the Indian tribes or with foreign nations, change the locality of forts, arsenals, magazines, dock yards, &c., to abolish the Post Office system, the privilege of patents and copyrights, &c. By such acts Congress might, in the exercise of its acknowledged powers, annihilate property to an incalculable amount, and that without becoming liable to claims for compensation.

Finally, this clause prohibits the taking for public use of "*property*." The constitution of the United States does not recognise slaves as "PROPERTY" any where, and it does not recognise them in *any sense* in the District of Columbia. All allusions to them in the constitution recognise them as "persons." Every reference to them points *solely* to the element of *personality*; and thus, by the strongest implication, declares that the constitution *knows* them only as "persons," and *will* not recognise them in any other light. If they escape into free States, the constitution authorizes their being taken back. But how? Not as the property of an "owner," but as "persons;" and the peculiarity of the expression is a marked recognition of their *personality*—a refusal to recognise them as chattels—"persons *held* to service." Are oxen "*held* to service?" That can be affirmed only of *persons*. Again, slaves give political power as "persons." The constitution, in settling the principle of representation, requires their enumeration in the census. How? As property? Then why not include race horses and game cocks? Slaves, like other inhabitants, are enumerated as "persons." So by the constitution, the government was pledged to non-interference with "the migration or importation of such persons" as the States might think proper to admit until 1808, and authorized the laying of a tax on each "person" so admitted. Further, slaves are recognised as *persons* by the exaction of their *allegiance* to the government. For offences against the government slaves are tried as *persons*; as persons they are entitled to counsel for their defence, to the rules of evidence, and to "due process of law," and as *persons* they are punished. True, they are loaded with cruel disabilities in courts of law, such as greatly obstruct and often inevitably defeat the ends of justice, yet they are still recognised as *persons*. Even in the legislation of Congress, and in the diplomacy of the general government, notwithstanding the frequent and wide departures from the integrity of the constitution on this subject, slaves are not recognised as *property* without qualification. Congress has always refused to grant compensation for slaves killed or

taken by the enemy, even when these slaves had been impressed into the United States' service. In half a score of cases since the last war, Congress has rejected such applications for compensation. Besides, both in Congressional acts, and in our national diplomacy, slaves and property are not used as convertible terms. When mentioned in treaties and state papers it is in such a way as to distinguish them from mere property, and generally by a recognition of their *personality*. In the invariable recognition of slaves as *persons*, the United States' constitution caught the mantle of the glorious Declaration, and most worthily wears it.—It recognizes all human beings as "men," "persons," and thus as "equals." In the original draft of the Declaration, as it came from the hand of Jefferson, it is alleged that Great Britain had "waged a cruel war against *human* nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, carrying them into slavery, * * * determined to keep up a market where MEN should be bought and sold,"—thus disdaining to make the charter of freedom a warrant for the arrest of *men*, that they might be shorn both of liberty and humanity.

The celebrated Roger Sherman, one of the committee of five appointed to draft the Declaration of Independence, and also a member of the convention that formed the United States' constitution, said, in the first Congress after its adoption: "The constitution *does not consider these persons*, (slaves,) *as a species of property*."—[Lloyd's Cong. Reg. v. 1, p. 313.] That the United States' Constitution does not make slaves "property," is shown in the fact that no person, either as a citizen of the United States, or by having his domicile within the United States' government, can hold slaves. He can hold them only by deriving his power from *state* laws, or from the laws of Congress, if he hold slaves within the District. But no person resident within the United States' jurisdiction, and not within the District, nor within a state whose laws support slavery, nor "held to service" under the laws of such state or district, having escaped therefrom, *can be held as a slave*.

Men can hold *property* under the United States' government though residing beyond the bounds of any state, district, or territory. An inhabitant of the Wisconsin Territory can hold property there under the laws of the United States, but he cannot hold *slaves* there under the United States' laws, nor by virtue of the United States' Constitution, nor upon the ground of his United States citizenship, nor by having his domicile within the United States'

jurisdiction. The constitution nowhere recognizes the right to "slave property," *but merely the fact that the states have jurisdiction each in its own limits, and that there are certain "persons" within their jurisdictions "held to service" by their own laws.*

Finally, in the clause under consideration, "private property" is not to be taken "without *just* compensation." "JUST!" If justice is to be appealed to in determining the amount of compensation, let her determine the *grounds* also. If it be her province to say *how much* compensation is "just," it is hers to say whether *any* is "just,"—whether the slave is "just" property *at all*, rather than a "*person*." Then, if justice adjudges the slave to be "private property," it adjudges him to be *his own* property, since the right to one's *self* is the first right—the source of all others—the original stock by which they are accumulated—the principal, of which they are the interest. And since the slave's "private property" has been "taken," and since "compensation" is impossible—there being no *equivalent* for one's self—the least that can be done is to restore to him his original private property.

Having shown that in abolishing slavery, "property" would not be "taken for public use," it may be added that, in those states where slavery has been abolished by law, no claim for compensation has been allowed. Indeed the manifest absurdity of demanding it, seems to have quite forstalled the *setting up* of such a claim.

The abolition of slavery in the District, instead of being a legislative anomaly, would proceed upon the principles of every day legislation. It has been shown already, that the United States' Constitution does not recognize slaves as "property." Yet ordinary legislation is full of precedents, showing that even *absolute* property is in many respects wholly subject to legislation. The repeal of the law of entailments—all those acts that control the alienation of property, its disposal by will, its passing to heirs by descent, with the question, who shall be heirs, and what shall be the rule of distribution among them, or whether property shall be transmitted at all by descent, rather than escheat to the state—these, with statutes of limitation, and various other classes of legislative acts, serve to illustrate the acknowledged scope of the law-making power, even where property is *in every sense absolute*. Persons whose property is thus affected by public

laws, receive from the government no compensation for their losses, unless the state has been put in possession of the property taken from them.

The preamble of the United States' Constitution declares it to be a fundamental object of the organization of the government "to ESTABLISH JUSTICE." Has Congress *no power* to do that for which it was made the *depository of power*? CANNOT the United States' Government fulfil the purpose *for which it was brought into being*?

To abolish slavery, is to take from no rightful owner his property; but to "*establish justice*" between two parties. To emancipate the slave, is to "*establish justice*" between him and his master—to throw around the person, character, conscience, liberty, and domestic relations of the one, *the same law* that secures and blesses the other. In other words, to prevent by *legal restraints* one class of men from seizing upon another class, and robbing them at pleasure of their earnings, their time, their liberty, their kindred, and the very use and ownership of their own persons. Finally, to abolish slavery is to proclaim and *enact* that innocence and helplessness—now *free plunder*—are entitled to *legal protection*; and that power, avarice, and lust, shall no longer gorge upon their spoils under the license, and by the ministrations of *law*! Congress, by possessing "exclusive legislation in all cases whatsoever," has a *general protective power* for ALL the inhabitants of the District. If it has no power to protect *one* man, it has none to protect another—none to protect *any*—and if it *can* protect *one* man and is *bound* to protect him, it *can* protect *every* man—all men—and is *bound* to do it. All admit the power of Congress to protect the masters in the District against their slaves. What part of the constitution gives the power? The clause so often quoted,—"*power of legislation in all cases whatsoever*," equally in the "*case*" of defending the blacks against the whites, as in that of defending the whites against the blacks. The power is given also by Art. 1, Sec. 8, clause 15—"Congress shall have power to suppress insurrections"—a power to protect, as well blacks against whites, as whites against blacks. If the constitution gives power to protect *one* class against the other, it gives power to protect *either* against the other. Suppose the blacks in the District should seize the whites, drive them into the fields and kitchens, force them to work without pay, flog them, imprison them, and sell them at their pleasure, where would Congress find power to restrain such acts? Answer; a *general* power in the clause so often cited, and an *express* one in that cited

above—"Congress shall have power to suppress insurrections." So much for a *supposed* case. Here follows a *real* one. The whites in the District *are perpetrating these identical acts* upon seven thousand blacks daily. That Congress has power to restrain these acts in *one* case, all assert, and in so doing they assert the power "in *all* cases whatsoever." For the grant of power to suppress insurrections, is an *unconditional* grant, not hampered by provisos as to the color, shape, size, sex, language, creed, or condition of the insurgents. Congress derives its power to suppress this *actual* insurrection, from the same source whence it derived its power to suppress the *same* acts in the case *supposed*. If one case is an insurrection, the other is. The *acts* in both are the same; the *actors* only are different. In the one case, ignorant and degraded—goaded by the memory of the past, stung by the present, and driven to desperation by the fearful looking for of wrongs for ever to come. In the other, enlightened into the nature of *rights*, the principles of justice, and the dictates of the law of love, unprovoked by wrongs, with cool deliberation, and by system, they perpetrate these acts upon those to whom they owe unnumbered obligations for *whole lives* of unrequited service. On which side may palliation be pleaded, and which party may most reasonably claim an abatement of the rigors of law? If Congress has power to suppress such acts *at all*, it has power to suppress them *in all*.

It has been shown already that *allegiance* is exacted of the slave. Is the government of the United States unable to grant *protection* where it exacts *allegiance*? It is an axiom of the civilized world, and a maxim even with savages, that allegiance and protection are reciprocal and correlative. Are principles powerless with us which exact homage of barbarians? *Protection is the CONSTITUTIONAL RIGHT of every human being under the exclusive legislation of Congress who has not forfeited it by crime.*

In conclusion, I argue the power of Congress to abolish slavery in the District, from Art. 1, sec, 8, clause 1, of the constitution; "Congress shall have power to provide for the common defence and the general welfare of the United States." Has the government of the United States no power under this grant, to legislate within its own exclusive jurisdiction on subjects that vitally affect its interests? Suppose the slaves in the district should rise upon their masters, and the United States' government, in quelling the insurrection, should kill any number of them. Could their masters claim

compensation of the government? Manifestly not; even though no proof existed that the particular slaves killed were insurgents. This was precisely the point at issue between those masters, whose slaves were killed by the State troops at the time of the Southampton insurrection, and the Virginia Legislature: no evidence was brought to show that the slaves killed by the troops were insurgents; yet the Virginia Legislature decided that their masters were *not entitled to compensation*. They proceeded on the sound principle, that a government may in self-protection destroy the claim of its subjects even to that which has been recognized as property by its own acts. If in providing for the common defence, the United States' government, in the case supposed, would have power to destroy slaves both as *property* and *persons*, it surely might stop *half-way*, destroy them *as property* while it legalized their existence as *persons*, and thus provided for the common defence by giving them a personal and powerful interest in the government, and securing their strength for its defence.

Like other Legislatures, Congress has power to abate nuisances—to remove or tear down unsafe buildings—to destroy infected cargoes—to lay injunctions upon manufactories injurious to the public health—and thus to "provide for the common defence and general welfare" by destroying individual property, when such property puts in jeopardy the public weal.

Granting, for argument's sake, that slaves are "property" in the District of Columbia—if Congress has a right to annihilate property in the District when the public safety requires it, it may surely annihilate its existence *as property* when the public safety requires it, especially if it transform into a *protection* and *defence* that which as *property* perilled the public interests. In the District of Columbia there are, besides the United States' Capitol, the President's house, the national offices, &c. of the Departments of State, Treasury, War, and Navy, the General Post-office, and Patent Office. It is also the residence of the President, all the highest officers of the government, both houses of Congress, and all the foreign ambassadors. In this same District there are also *seven thousand slaves*. Jefferson, in his Notes on Va. p. 241, says of slavery, that "the State permitting one half of its citizens to trample on the rights of the other, *transforms them into enemies*;" and Richard Henry Lee, in the Va. house of Burgesses in 1758, declared that to those who held them, "*slaves must be natural enemies*." Is Congress so *impotent* that it *cannot* exercise that right pronounced both by

municipal and national law, the most sacred and universal—the right of self-preservation and defence? Is it shut up to the *necessity* of keeping seven thousand "enemies" in the heart of the nation's citadel? Does the iron fiat of the constitution doom it to such imbecility that it *cannot* arrest the process that *made* them "enemies," and still goads to deadlier hate by fiery trials, and day by day adds others to their number? Is *this* providing for the common defence and general welfare? If to rob men of rights excites their hate, freely to restore them and make amends, will win their love.

By emancipating the slaves in the District, the government of the United States would disband an army of "enemies," and enlist "for the common defence and general welfare," a body guard of *friends* seven thousand strong. In the last year, a handful of British soldiers sacked Washington city, burned the capitol, the President's house, and the national offices and archives; and no marvel, for thousands of the inhabitants of the District had been "TRANSFORMED INTO ENEMIES." Would *they* beat back invasion? If the national government had exercised its constitutional "power to provide for the common defence and to promote the general welfare," by turning those "enemies" into friends, then, instead of a hostile ambush lurking in every thicket inviting assault, and secret foes in every house paralyzing defence, an army of allies would have rallied in the hour of her calamity, and shouted defiance from their munitions of rocks; whilst the banner of the republic, then trampled in dust, would have floated securely over FREEMEN exulting amidst bulwarks of strength.

To show that Congress can abolish slavery in the District, under the grant of power "to provide for the common defence and to promote the general welfare," I quote an extract from a speech of Mr. Madison, of Va., in the first Congress under the constitution, May 13, 1789. Speaking of the abolition of the slave trade, Mr. Madison says: "I should venture to say it is as much for the interests of Georgia and South Carolina, as of any state in the union. Every addition they receive to their number of slaves tends to *weaken* them, and renders them less capable of self-defence. In case of hostilities with foreign nations, they will be the means of *inviting* attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well *internal* as external. *Every thing, therefore, which tends to increase this danger, though it may be a local affair, yet if it involves national expense or*

safety, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government." See Cong. Reg. vol. 1, p. 310, 11.

POSTSCRIPT

My apology for adding a *postscript*, to a discussion already perhaps too protracted, is the fact that the preceding sheets were in the hands of the printer, and all but the concluding pages had gone through the press, before the passage of Mr. Calhoun's late resolutions in the Senate of the United States. A proceeding so extraordinary,—if indeed the time has not passed when *any* acts of Congress in derogation of freedom and in deference to slavery, can be deemed extraordinary,—should not be suffered to pass in silence at such a crisis as the present; especially as the passage of one of the resolutions by a vote of 36 to 9, exhibits a shift of position on the part of the South, as sudden as it is unaccountable, being nothing less than the surrender of a fortress which until then they had defended with the pertinacity of a blind and almost infuriated fatuity. Upon the discussions during the pendency of the resolutions, and upon the vote, by which they were carried, I make no comment, save only to record my exultation in the fact there exhibited, that great emergencies are *true touchstones*, and that henceforward, until this question is settled, whoever holds a seat in Congress will find upon, and all around him, a pressure strong enough to TEST him—a focal blaze that will find its way through the carefully adjusted cloak of fair pretension, and the sevenfold brass of two-faced political intrigue, and *no-faced non-committalism*, piercing to the dividing asunder of joints and marrow. Be it known to every northern man who aspires to a seat in Congress, that hereafter it is the destiny of congressional action on this subject, to be a MIGHTY REVELATOR—making secret thoughts public property, and proclaiming on the house-tops what is whispered in the ear—smiting off masks, and bursting open sepulchres beautiful outwardly, and heaving up to the sun their dead men's bones. To such we say,—*Remember the Missouri Question, and the fate of those who then sold the North, and their own birthright!*

Passing by the resolutions generally without remark—the attention of the reader is specially solicited to Mr. Clay's substitute for Mr. Calhoun's fifth

resolution.

"Resolved, That when the District of Columbia was ceded by the states of Virginia and Maryland to the United States, domestic slavery existed in both of these states, including the ceded territory, and that, as it still continues in both of them, it could not be abolished within the District without a violation of that good faith, which was implied in the cession and in the acceptance of the territory; nor, unless compensation were made to the proprietors of slaves, without a manifest infringement of an amendment to the constitution of the United States; nor without exciting a degree of just alarm and apprehension in the states recognizing slavery, far transcending in mischievous tendency, any possible benefit which could be accomplished by the abolition."

By voting for this resolution, the south, by a simultaneous movement, shifted its mode of defense, not so much by taking a position entirely new, as by attempting to refortify an old one—never much trusted in, and abandoned mainly long ago, as being unable to hold out against assault however unskilfully directed. In the debate on this resolution, though the southern members of Congress did not *professedly* retreat from the ground hitherto maintained by them—that Congress has no power by the constitution to abolish slavery in the District—yet in the main they silently drew off from it.

The passage of this resolution—with the vote of every southern senator, forms a new era in the discussion of this question.

We cannot join in the lamentations of those who bewail it. We hail it, and rejoice in it. It was as we would have had it—offered by a southern senator, advocated by southern senators, and on the ground that it "was no compromise"—that it embodied the true southern principle—that "this resolution stood on as high ground as Mr. Calhoun's"—(Mr. Preston)—"that Mr. Clay's resolution was as strong as Mr. Calhoun's"—(Mr. Rives)—that "the resolution he (Mr. Calhoun) now refused to support, was as strong as his own, and that in supporting it, there was no abandonment of principle by the south."—(Mr. Walker, of Mi.)—further, that it was advocated by the southern senators generally as an expression of their views, and as setting the question of slavery in the District on its *true* ground—that finally when

the question was taken, every slaveholding senator, including Mr. Calhoun himself, voted for the resolution.

By passing this resolution, and with such avowals, the south has surrendered irrevocably the whole question at issue between them and the petitioners for abolition in the District. It has, unwittingly but explicitly, conceded the main question argued in the preceding pages.

The *only* ground taken against the right of Congress to abolish slavery in the District is, that it existed in Maryland and Virginia when the cession was made, and "*as it still continues in both of them*, it could not be abolished without a violation of that good faith which was implied in the cession." &c. The *sole argument* is *not* that exclusive *sovereignty* has no power to abolish slavery within its jurisdiction, *nor* that the powers of even *ordinary legislation* cannot do it,—*nor* that the clause granting Congress "exclusive legislation in all cases whatsoever over such District," gives no power to do it; but that the *unexpressed expectation* of one of the parties that the other would not "*in all cases*" use the power which said party had consented *might be used "in all cases," prohibits* the use of it. The only cardinal point in the discussion, is here not only *yielded*, but formally laid down by the South as the leading article in their creed on the question of Congressional jurisdiction over slavery in the District. The *sole reason* given why Congress should not abolish, and the sole evidence that if it did, such abolition would be a violation of "good faith," is that "*slavery still continues in those states*,"—thus explicitly admitting, that if slavery did *not* "still continue" in those States, Congress *could* abolish it in the District. The same admission is made also in the *premises*, which state that slavery existed in those states *at the time of the cession*, &c. Admitting that if it had *not* existed there then, but had grown up in the District under *United States' laws*, Congress might constitutionally abolish it. Or that if the ceded parts of those states had been the *only* parts in which slaves were held under their laws, Congress might have abolished in such a contingency also. The cession in that case leaving no slaves in those states,—no "good faith," would be "implied" in it, nor any "violated," by an act of abolition. The principle of the resolution makes this further admission, that if Maryland and Virginia should at once abolish their slavery, Congress might at once abolish it in the District. The principle goes even further than this, and *requires* Congress in such case to abolish slavery in the District "by the

good faith implied in the cession and acceptance of the territory." Since, according to the spirit and scope of the resolution, this "implied good faith" of Maryland and Virginia in making the cession, was that Congress would do nothing within the District which should go to counteract the policy, or bring into disrepute the "institutions," or call in question the usages, or even in any way ruffle the prejudices of those states, or do what *they* might think would unfavorably bear upon their interests; *themselves* of course being the judges.

But let us dissect another limb of the resolution. What is to be understood by "that good faith which was IMPLIED?" It is of course an admission that such a condition was not *expressed* in the acts of cession—that in their *terms* there is nothing restricting the power of Congress on the subject of slavery in the District—not a word alluding to it, nor one inserted with such an *intent*. This "implied faith," then, rests on no clause or word in the United States' Constitution, or in the acts of cession, or in the acts of Congress accepting the cession, nor does it rest on any declarations of the legislatures of Maryland and Virginia made at the time, or in that generation, nor on any *act* of theirs, nor on any declaration of the people of those states, nor on the testimony of the Washingtons, Jeffersons, Madisons, Chaces, Martins, and Jennifers, of those states and times. The assertion rests *on itself alone*! Mr. Clay and the other senators who voted for the resolution, *guess* that Maryland and Virginia supposed that Congress would by no means *use* the power given them by the constitution, except in such ways as would be well pleasing in the eyes of those states; especially as one of them was the "Ancient Dominion!" And now after the lapse of half a century, this *assumed expectation* of Maryland and Virginia, the existence of which is mere matter of conjecture with the 36 senators, is conjured up and duly installed upon the judgment-seat of final appeal, before whose nod constitutions are to flee away, and with whom, solemn grants of power and explicit guaranties are, when weighed in the balance, altogether lighter than vanity!

But let us survey it in another light. Why did Maryland and Virginia leave so much to be "*implied*?" Why did they not in some way express what lay so near their hearts? Had their vocabulary run so low that a single word could not be eked out for the occasion? Or were those states so bashful of a sudden that they dare not speak out and tell what they wanted? Or did they

take it for granted that Congress would always act in the premises according to their wishes, and that too, without their *making known* their wishes? If, as honorable senators tell us, Maryland and Virginia did verily travail with such abounding *faith*, why brought they forth no *works*?

It is as true in *legislation* as in religion, that the only *evidence* of "faith" is *works*, and that "faith" *without works* is *dead*, i.e. has no *power*. But here, forsooth, a blind implication with nothing *expressed*, an "implied" *faith* without works, is *omnipotent*. Mr. Clay is lawyer enough to know that even a *senatorial hypothesis* as to what must have been the *understanding* of Maryland and Virginia about congressional exercise of constitutional power, *abrogates no grant*, and that to plead it in a court of law, would be of small service except to jostle "their Honors'" gravity! He need not be told that the constitution gives Congress "power to exercise exclusive legislation in all cases whatsoever over such District." Nor that the legislatures of Maryland and Virginia constructed their acts of cession with this clause *before their eyes*, and that both of them declared those acts made "in *pursuance*" of said clause. Those states were aware that the United States in their constitution had left nothing to be "*implied*" as to the power of Congress over the District;—an admonition quite sufficient one would think to put them on their guard, and induce them to eschew vague implications and resort to *stipulations*. Full well did they know also that those were times when, in matters of high import, *nothing* was left to be "implied." The colonies were then panting from a twenty years' conflict with the mother country, about bills of rights, charters, treaties, constitutions, grants, limitations, and *acts of cession*. The severities of a long and terrible discipline had taught them to guard at all points *legislative grants*, that their exact import and limit might be self-evident—leaving no scope for a blind "faith," that *somehow* in the lottery of chances there would be no blanks, but making all sure by the use of explicit terms, and wisely chosen words, and *just enough* of them. The Constitution of the United States with its amendments, those of the individual states, the national treaties, the public documents of the general and state governments at that period, show the universal conviction of legislative bodies, that when great public interest were at stake, nothing should be left to be "implied."

Further: suppose Maryland and Virginia had expressed their "implied faith" in *words*, and embodied it in their acts of cession as a proviso, declaring

that Congress should not "exercise exclusive legislation in *all* cases whatsoever over the District," but that the "case" of *slavery* should be an exception: who does not know that Congress, if it had accepted the cession on those terms, would have violated the Constitution; and who that has ever studied the free mood of those times in its bearings on slavery—proofs of which are given in scores on the preceding pages—can for an instant believe that the people of the United States would have altered their Constitution for the purpose of providing for slavery an inviolable sanctuary; that when driven in from its outposts, and everywhere retreating discomfited before the march of freedom, it might be received into everlasting habitations on the common homestead and hearth-stone of this free republic? Besides, who can believe that Virginia made such a condition, or cherished such a purpose, when at that very moment, Washington, Jefferson, Wythe, Patrick Henry, St. George Tucker, and almost all her illustrious men, were advocating the abolition of slavery by law. When Washington had said, two years before, Maryland and Virginia "must have laws for the gradual abolition of slavery and at a period *not remote*;" and when Jefferson in his letter to Price, three years before the cession, had said, speaking of Virginia, "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression—a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS;" when voluntary emancipations on the soil were then progressing at the rate of between one and two thousand annually, (See Judge Tucker's "Dissertation on Slavery," p. 73;) when the public sentiment of Virginia had undergone, and was undergoing so mighty a revolution that the idea of the continuance of slavery as a permanent system could not be *tolerated*, though she then contained about half the slaves in the Union. Was this the time to stipulated for the *perpetuity* of slavery under the exclusive legislation of Congress? and that too at the *same* session of Congress when *every one* of her delegation voted for the abolition of slavery in the North West Territory; a territory which she had herself ceded to Congress, and along with it had surrendered her jurisdiction over many of her citizens, inhabitants of that territory, who held slaves there—and whose slaves were emancipated by that act of Congress, in which all her delegation with one accord participated?

Now in view of the universal belief then prevalent, that slavery in this country was doomed to short life, and especially that in Maryland and Virginia it would be *speedily* abolished—are we to be told that those states *designed* to bind Congress *never* to terminate it? Are we to adopt the monstrous conclusion that this was the intent of the Ancient Dominion—thus to *bind* the United States by an "implied faith," and that when the United States *accepted* the cession, she did solemnly thus plight her troth, and that Virginia did then so *understand* it? Verily one would think that honorable senators supposed themselves deputed to do our *thinking* as well as our legislation, or rather, that they themselves were absolved from such drudgery by virtue of their office!

Another absurdity of this dogma about "implied faith" is, that where there was no power to exact an *express* pledge, there was none to demand an *implied* one, and where there was no power to *give* the one, there was none to give the *other*. We have shown already that Congress could not have accepted the cession with such a condition. To have signed away a part of its constitutional grant of power would have been a *breach* of the Constitution. Further, the Congress which accepted the cession was competent to pass a resolution pledging itself not to *use all* the power over the District committed to it by the Constitution. But here its power ended. Its resolution would only bind *itself*. Could it bind the *next* Congress by its authority? Could the members of one Congress say to the members of another, because we do not choose to exercise all the authority vested in us by the Constitution, therefore you *shall* not? This would have been a prohibition to do what the Constitution gives power to do. Each successive Congress would still have gone to the Constitution for its power, brushing away in its course the cobwebs stretched across its path by the officiousness of an impertinent predecessor. Again, the legislatures of Virginia and Maryland, had no power to bind Congress, either by an express or an implied pledge, never to abolish slavery in the District. Those legislatures had no power to bind *themselves* never to abolish slavery within their own territories—the ceded parts included. Where then would they get power to bind *another* not to do what they had no power to bind themselves not to do? If a legislature could not in this respect control the successive legislatures of its own State, could it control the successive Congresses of the United States?

But perhaps we shall be told, that the "implied faith" in the acts of cession of Maryland and Virginia was *not* that Congress should *never* abolish slavery in the District, but that it should not do it until *they* had done it within their bounds! Verily this "faith" comes little short of the faith of miracles! "A good rule that works both ways." First, Maryland and Virginia have "good faith" that Congress will *not* abolish until *they* do; and then just as "good faith" that Congress *will* abolish *when* they do! Excellently accommodated! Did those States suppose that Congress would legislate over the national domain, the common jurisdiction of *all*, for Maryland and Virginia alone? And who, did they suppose, would be judges in the matter?—themselves merely? or the whole Union?

This "good faith implied in the cession" is no longer of doubtful interpretation. The principle at the bottom of it, when fairly stated, is this:—That the Government of the United States are bound in "good faith" to do in the District of Columbia, without demurring, just what and when, Maryland and Virginia do in their own States. In short, that the general government is eased of all the burdens of legislation within its exclusive jurisdiction, save that of hiring a scrivener to copy off the acts of the Maryland and Virginia legislatures as fast as they are passed, and engross them, under the title of "Laws of the United States, for the District of Columbia!" A slight additional expense would also be incurred in keeping up an express between the capitols of those States and Washington city, bringing Congress from time to time its "*instructions*" from head quarters—instructions not to be disregarded without a violation of that "good faith implied in the cession," &c.

This sets in strong light the advantages of "our glorious Union," if the doctrine of Mr. Clay and the thirty-six Senators be orthodox. The people of the United States have been permitted to set up at their own expense, and on their own territory, two great *sounding boards* called "Senate Chamber" and "Representatives' Hall," for the purpose of sending abroad "by authority" *national* echoes of *state* legislation!—permitted also to keep in their pay a corps of pliant *national* musicians, with peremptory instructions to sound on any line of the staff according as Virginia and Maryland may give the *sovereign* key note!

Though this may have the seeming of mere raillery, yet an analysis of the resolution and of the discussions upon it, will convince every fair mind that it is but the legitimate carrying out of the *principle* pervading both. They proceed virtually upon the hypothesis that the will and pleasure of Virginia and Maryland are *paramount* to those of the *Union*. If the main design of setting apart a federal district had been originally the accommodation of Maryland, Virginia, and the south, with the United States as an *agent* to consummate the object, there could hardly have been higher assumption or louder vaunting. The sole object of *having* such a District was in effect totally perverted in the resolution of Mr. Clay, and in the discussions of the entire southern delegation, upon its passage. Instead of taking the ground, that the benefit of the whole Union was the sole *object* of a federal district, that it was designed to guard and promote the interests of *all* the states, and that it was to be legislated over *for this end*—the resolution proceeds upon an hypothesis *totally the reverse*. It takes a single point of *state* policy, and exalts it above NATIONAL interests, utterly overshadowing them; abrogating national *rights*; making void a clause of the Constitution; humbling the general government into a subject—crouching for favors to a superior, and that too *on its own exclusive jurisdiction*. All the attributes of sovereignty vested in Congress by the Constitution it impales upon the point of an alleged *implication*. And this is Mr. Clay's peace-offering, to appease the lust of power and the ravings of state encroachment! A "compromise," forsooth! that sinks the general Government on *its own territory* into a mere colony, with Virginia and Maryland for its "mother country!" It is refreshing to turn from these shallow, distorted constructions and servile cringings, to the high bearing of other southern men in other times; men, who in their character of legislators and lawyers, disdained to accommodate their interpretations of constitutions and charters to geographical lines, or to bend them to the purposes of a political canvass. In the celebrated case of Cohens vs. the State of Virginia, Hon. William Pinkney, late of Baltimore, and Hon. Walter Jones, of Washington city, with other eminent constitutional lawyers, prepared an elaborate written opinion, from which the following is an extract: "Nor is there any danger to be apprehended from allowing to Congressional legislation with regard to the District of Columbia, its FULLEST EFFECT. Congress is responsible to the States, and to the people for that legislation. It is in truth the legislation of the states over a district placed under their control for *their own benefit*, not

for that of the District, except as the prosperity of the District is involved, and necessary to the *general advantage*."—[Life of Pinkney, p. 612.]

The profound legal opinion, from which this is an extract, was elaborated at great length many years since, by a number of the most distinguished lawyers in the United States, whose signatures are appended to it. It is specific and to the point. It asserts, 1st, that Congressional legislation over the District, is "the legislation of the *States* and the *people*," (not of *two* states, and a mere *fraction* of the people;) 2d. "Over a District placed under *their* control," i.e. under the control of the *whole* of the States, not under the control of *two twenty-sixths* of them. 3d. That it was thus put under their Control "*for THEIR OWN benefit*," the benefit of all the States *equally*; not to secure special benefits to Maryland and Virginia, (or what it might be *conjectured* they would regard as benefits.) 4th. It concludes by asserting that the design of this exclusive control of Congress over the District was "not for the benefit of the *District*," except as that is *connected* with, and a *means of promoting* the *general advantage*. If this is the case with the *District*, which is *directly* concerned, it is pre-eminently so with Maryland and Virginia, who are but *indirectly* interested, and would be but remotely affected by it. The argument of Mr. Madison in the Congress of '89, an extract from which has been given on a preceding page, lays down the same principle; that though any matter "*may be a local affair, yet if it involves national EXPENSE OR SAFETY, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government.*" Cong. Reg. vol. 1. p. 310, 11.

But these are only the initiatory absurdities of this "good faith *implied*." The thirty-six senators aptly illustrate the principle, that error not only conflicts with truth, but is generally at issue with itself. For if it would be a violation of "good faith" to Maryland and Virginia, for Congress to abolish slavery in the District, it would be *equally* a violation for Congress to do it *with the consent*, or even at the earnest and unanimous petition of the people of the District: yet for years it has been the southern doctrine, that if the people of the District demand of Congress relief in this respect, it has power, as their local legislature, to grant it, and by abolishing slavery there, carry out the will of the citizens. But now new light has broken in! The optics of the thirty-six have pierced the millstone with a deeper insight, and discoveries

thicken faster than they can be telegraphed! Congress has no power, O no, not a modicum, to help the slaveholders of the District, however loudly they may clamor for it. The southern doctrine, that Congress is to the District a mere local Legislature to do its pleasure, is tumbled from the genitive into the vocative! Hard fate—and that too at the hands of those who begat it! The reasonings of Messrs. Pinckney, Wise, and Leigh, are now found to be wholly at fault, and the chancleer rhetoric of Messrs. Glascock and Garland stalks featherless and crest-fallen. For, Mr. Clay's resolution sweeps by the board all those stereotyped common-places, as "Congress a local Legislature," "consent of the District," "bound to consult the wishes of the District," &c. &c., which for the last two sessions of Congress have served to eke out scanty supplies. It declares, that *as slavery existed in Maryland and Virginia at the time of the cession, and as it still continues in both those states, it could not be abolished in the District without a violation of 'that good faith,' &c.*

But let us see where this principle of the *thirty-six* will lead us. If "implied faith" to Maryland and Virginia *restrains* Congress from the abolition of slavery in the District, it *requires* Congress to do in the District what those states have done within their bounds, i.e., restrain *others* from abolishing it. Upon the same principle Congress is *bound*, by the doctrine of Mr. Clay's resolution, to *prohibit emancipation* within the District. There is no *stopping place* for this plighted "faith." Congress must not only refrain from laying violent hands on slavery, *itself*, and see to it that the slaveholders themselves do not, but it is bound to keep the system up to the Maryland and Virginia standard of vigor!

Again, if the good faith of Congress to Virginia and Maryland requires that slavery should exist in the District, while it exists in those states, it requires that it should exist there *as it exists* in those states. If to abolish *every* form of slavery in the District would violate good faith, to abolish *the* form existing in those states, and to substitute a totally different one, would also violate it. The Congressional "good faith" is to be kept not only with *slavery*, but with the *Maryland and Virginia systems* of slavery. The faith of those states not being in the preservation of *a* system, but of *their* system; otherwise Congress, instead of *sustaining*, would counteract their policy—principles would be brought into action there conflicting with their system, and thus the true spirit of the "implied" pledge would be violated. On this

principle, so long as slaves are "chattels personal" in Virginia and Maryland, Congress could not make them *real estate*, inseparable from the soil, as in Louisiana; nor could it permit slaves to read, nor to worship God according to conscience; nor could it grant them trial by jury, nor legalize marriage; nor require the master to give sufficient food and clothing; nor prohibit the violent sundering of families—because such provisions would conflict with the existing slave laws of Virginia and Maryland, and thus violate the "good faith implied," &c. So the principle of the resolution binds Congress in all these particulars: 1st. Not to abolish slavery in the District *until* Virginia and Maryland abolish. 2d. Not to abolish any *part* of it that exists in those states. 3d. Not to abolish any *form* or *appendage* of it still existing in those states. 4th. *To abolish* when they do. 5th. To increase or abate its rigors *when, how, and as* the same are modified by those states. In a word, Congressional action in the District is to float passively in the wake of legislative action on the subject in those states.

But here comes a dilemma. Suppose the legislation of those states should steer different courses—then there would be *two* wakes! Can Congress float in both? Yea, verily! Nothing is too hard for it! Its obsequiousness equals its "power of legislation in *all* cases whatsoever." It can float *up* on the Virginia tide, and ebb down on the Maryland at the same time. What Maryland does, Congress will do in the Maryland part. What Virginia does, Congress will do in the Virginia part. Though Congress might not always be able to run at the bidding of both *at once*, especially in different directions, yet if it obeyed orders cheerfully, and "kept in its place," according to its "good faith implied," impossibilities might not be rigidly exacted. True, we have the highest sanction for the maxim that no *man* can serve two masters—but if "corporations have *no* souls," analogy would absolve Congress on that score, or at most give it only *a very small soul*—not large enough to be at all in the way, as an *exception* to the universal rule laid down in the maxim!

In following out the absurdities of this "*implied* good faith," it will be seen at once that the doctrine of Mr. Clay's Resolution extends to *all the subjects of legislation* existing in Maryland and Virginia, which exist also within the District. Every system, "institution," law, and established usage there, is placed beyond Congressional control equally with slavery, and by the same "implied faith." The abolition of the lottery system in the District as an

immorality, was a flagrant breach of this "good faith" to Maryland and Virginia, as the system "still continued in those states." So to abolish imprisonment for debt, and capital punishment, to remodel the bank system, the power of corporations, the militia law, laws of limitation, &c., in the District, *unless Virginia and Maryland took the lead*, would violate the "good faith implied in the cession," &c.

That in the acts of cession no such "good faith" was "implied by Virginia and Maryland" as is claimed in the Resolution, we argue from the fact, that in 1784 Virginia ceded to the United States all her northwest territory, with the special proviso that her citizens inhabiting that territory should "have their *possessions* and *titles* confirmed to them, and be *protected* in the enjoyment of their *rights* and liberties." (See Journals of Congress, vol. 9, p. 63.) The cession was made in the form of a deed, and signed by Thomas Jefferson, Samuel Hardy, Arthur Lee, and James Monroe. Many of these inhabitants *held slaves*. Three years after the cession, the Virginia delegation in Congress *proposed* the passage of an ordinance which should abolish slavery, in that territory, and declare that it should never thereafter exist there. All the members of Congress from Virginia and Maryland voted for this ordinance. Suppose some member of Congress had during the passage of the ordinance introduced the following resolution: "Resolved, That when the northwest territory was ceded by Virginia to the United States, domestic slavery existed in that State, including the ceded territory, and as it still continues in that State, it could not be abolished within the territory without a violation of that good faith, which was implied in the cession and in the acceptance of the territory." What would have been the indignant response of Grayson, Griffin, Madison, and the Lees, in the Congress of '87, to such a resolution, and of Carrington, Chairman of the Committee, who reported the ratification of the ordinance in the Congress of '89, and of Page and Parker, who with every other member of the Virginia delegation supported it!

But to enumerate all the absurdities into which the thirty-six Senators have plunged themselves, would be to make a quarto inventory. We decline the task; and in conclusion, merely add that Mr. Clay, in presenting this resolution, and each of the thirty-six Senators who voted for it, entered on the records of the Senate, and proclaimed to the world, a most unworthy accusation against the MILLIONS of American citizens who have during

nearly half a century petitioned the national legislature to abolish slavery in the District of Columbia,—charging them either with the ignorance or the impiety of praying the nation to violate its "PLIGHTED FAITH." The resolution virtually indicts at the bar of public opinion, and brands with odium, all the Manumission Societies, the *first* petitioners for the abolition of slavery in the District, and for a long time the only ones, petitioning from year to year through evil report and good report, still petitioning, by individual societies and in their national conventions.

But as if it were not enough to table the charge against such men as Benjamin Rush, William Rawle, John Sergeant, Robert Vaux, Cadwallader Colden, and Peter A. Jay,—to whom we may add Rufus King, James Hillhouse, William Pinkney, Thomas Addis Emmett, Daniel D. Tompkins, De Witt Clinton, James Kent, and Daniel Webster, besides eleven hundred citizens of the District itself, headed by their Chief Justice and judges—even the sovereign States of Pennsylvania, New-York, Massachusetts, and Vermont, whose legislatures have either memorialized Congress to abolish slavery in the District, or instructed their Senators to move such a measure, must be gravely informed by Messrs. Clay, Norvell, Niles, Smith, Pierce, Benton, Black, Tipton, and other honorable Senators, either that their perception is so dull, they know not what of they affirm, or that their moral sense is so blunted they can demand without compunction a violation of the nation's faith!

We have spoken already of the concessions unwittingly made in this resolution to the true doctrine of Congressional power over the District. For that concession, important as it is, we have small thanks to render. That such a resolution, passed with such an *intent*, and pressing at a thousand points on relations and interests vital to the free states, should be hailed, as it has been, by a portion of the northern press as a "compromise" originating in deference to northern interests, and to be received by us as a free-will offering of disinterested benevolence, demanding our gratitude to the mover,—may well cover us with shame. We deserve the humiliation and have well earned the mockery. Let it come!

If, after having been set up at auction in the public sales-room of the nation, and for thirty years, and by each of a score of "compromises," treacherously knocked off to the lowest bidder, and that without money and without price,

the North, plundered and betrayed, *will not*, in this her accepted time, consider the things that belong to her peace before they are hidden from her eyes, then let her eat of the fruit of her own way, and be filled with her own devices! Let the shorn and blinded giant grind in the prison-house of the Philistines, till taught the folly of intrusting to Delilahs the secret and the custody of his strength.

Have the free States bound themselves by an oath never to profit by the lessons of experience? If lost to *reason*, are they dead to *instinct* also? Can nothing rouse them to cast about for self preservation? And shall a life of tame surrenders be terminated by suicidal sacrifice?

A "COMPROMISE!" Bitter irony! Is the plucked and hood-winked North to be wheedled by the sorcery of another Missouri compromise? A compromise in which the South gained all, and the North lost all, and lost it for ever. A compromise which embargoed the free laborer of the North and West, and clutched at the staff he leaned upon, to turn it into a bludgeon and fell him with its stroke. A compromise which wrested from liberty her boundless birthright domain, stretching westward to the sunset, while it gave to slavery loose reins and a free course, from the Mississippi to the Pacific.

The resolution, as it finally passed, is here inserted. The original Resolution, as moved by Mr. Clay, was inserted at the head of this postscript with the impression that it was the *amended* form. It will be seen however, that it underwent no material modification.

"Resolved, That the interference by the citizens of any of the states, with the view to the abolition of slavery in the District, is endangering the rights and security of the people of the District; and that any act or measure of Congress designed to abolish slavery in the District, would be a violation of the faith implied in the cessions by the states of Virginia and Maryland, a just cause of alarm to the people of the slaveholding states, and have a direct and inevitable tendency to disturb and endanger the Union."

The vote upon the Resolution stood as follows:

Yeas.—Messrs. Allen, Bayard, Benton, Black, Buchanan, Brown, Calhoun, Clay, of Alabama, Clay, of Kentucky, Clayton, Crittenden, Cuthbert, Fulton,

Grundy, Hubbard, King, Lumpkin, Lyon, Nicholas, Niles, Norvell, Pierce, Preston, Rives, Roane, Robinson, Sevier, Smith, of Connecticut, Strange, Tallmadge, Tipton, Walker, White, Williams, Wright, Young.

Nays.—Messrs. DAVIS, KNIGHT, McKEAN, MORRIS, PRENTISS, RUGGLES, SMITH, of Indiana, SWIFT, WEBSTER.

1836 By The American Anti-Slavery Society.

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THE ANTI-SLAVERY EXAMINER

NO. 5

THE POWER OF CONGRESS OVER THE DISTRICT OF COLUMBIA.

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POWER OF CONGRESS OVER THE DISTRICT OF COLUMBIA.

A civilized community presupposes a government of law. If that government be a republic, its citizens are the sole *sources*, as well as the *subjects* of its power. Its constitution is their bill of directions to their own agents--a grant authorizing the exercise of certain powers, and prohibiting that of others. In the Constitution of the United States, whatever else may be obscure, the clause granting power to Congress over the Federal District may well defy misconstruction. Art. 1, Sec. 8, Clause 18: "The Congress shall have power to exercise exclusive legislation, *in all cases whatsoever*, over such District." Congress may make laws for the District "in all cases," not of all *kinds*. The grant respects the *subjects* of legislation, *not* the moral nature of the laws. The law-making power every where, is subject to *moral* restrictions, whether limited by constitutions or not. No legislature can authorize murder, nor make honesty penal, nor virtue a crime, nor exact impossibilities. In these and similar respects, the power of Congress is held in check by principles existing in the nature of things, not imposed by the Constitution, but presupposed and assumed by it. The power of Congress over the District is restricted only by those principles that limit ordinary legislation, and, in some respects, it has even wider scope.

In common with the legislatures of the States, Congress cannot constitutionally pass ex post facto laws in criminal cases, nor suspend the writ of habeas corpus, nor pass a bill of attainder, nor abridge the freedom of speech and of the press, nor invade the right of the people to be secure in their persons, houses, papers, and effects, nor enact laws respecting an establishment of religion. These are general limitations. Congress cannot do these things *any where*. The exact import, therefore, of the clause "in all cases whatsoever," is, *on all subjects within the appropriate sphere of legislation*. Some legislatures are restrained by constitutions from the exercise of powers strictly within the proper sphere of legislation. Congressional power over the District has no such restraint. It traverses the whole field of legitimate legislation. All the power which any legislature has within its own jurisdiction, Congress holds over the District of Columbia.

It has been asserted that the clause in question respects merely police regulations, and that its sole design was to enable Congress to protect itself against popular tumults. But if the framers of the Constitution aimed to provide for a *single* case only, why did they provide for "*all* cases whatsoever?" Besides, this clause was opposed in many of the state conventions, because the grant of power was not restricted to police regulations *alone*. In the Virginia Convention, George Mason, the father of the Virginia Constitution, said, "This clause gives an unlimited authority in every possible case within the District. He would willingly give them exclusive power as far as respected the police and good government of the place, but he would give them no more." Mr. Grayson said, that control over the *police* was all-sufficient, and that the "Continental Congress never had an idea of exclusive legislation in all cases." Patrick Henry said. "Is it consistent with any principle of prudence or good policy, to grant *unlimited, unbounded authority*?" Mr. Madison said in reply: "I did conceive that the clause under consideration was one of those parts which would speak its own praise. When any power is given, its delegation necessarily involves authority to make laws to execute it. * * * * The powers which are found necessary to be given, are therefore delegated *generally*, and particular and minute specification is left to the legislature. * * * It is not within the limits of human capacity to delineate on paper all those particular cases and circumstances, in which legislation by the general legislature would be

necessary." Governor Randolph said: "Holland has no ten miles square, but she has the Hague where the deputies of the States assemble. But the influence which it has given the province of Holland, to have the seat of government within its territory, subject in some respects to its control, has been injurious to the other provinces. The wisdom of the Convention is therefore manifest in granting to Congress exclusive jurisdiction over the place of their session." [*Deb. Va. Con.*, p. 320.] In the forty-third number of the "Federalist," Mr. Madison says: "The indispensable necessity of *complete* authority at the seat of government, carries its own evidence with it."

Finally, that the grant in question is to be interpreted according to the obvious import of its *terms*, is proved by the fact, that Virginia proposed an amendment to the United States' Constitution at the time of its adoption, providing that this clause "should be so construed as to give power only over the *police and good government* of said District," *which amendment was rejected*.

The former part of the clause under consideration, "Congress shall have power to exercise *exclusive* legislation," gives *sole* jurisdiction, and the latter part, "in all cases whatsoever," defines the *extent* of it. Since, then, Congress is the *sole* legislature within the District, and since its power is limited only by the checks common to all legislatures, it follows that what the law-making power is intrinsically competent to do *any* where, Congress is competent to do in the District of Columbia. Having disposed of preliminaries, we proceed to state and argue the *real* question at issue.

IS THE LAW-MAKING POWER COMPETENT TO ABOLISH SLAVERY WHEN NOT RESTRICTED IN THAT PARTICULAR BY CONSTITUTIONAL PROVISIONS--or, IS THE ABOLITION OF SLAVERY WITHIN THE APPROPRIATE SPHERE OF LEGISLATION?

1. In every government, absolute sovereignty exists *somewhere*. In the United States it exists primarily with the *people*, and *ultimate* sovereignty *always* exists with them. In each of the States, the legislature possesses a *representative* sovereignty, delegated by the people through the Constitution--the people thus committing to the legislature a portion of their sovereignty, and specifying in their constitutions the amount of the grant

and its conditions. That the *people* in any state where slavery exists, have the power to abolish it, none will deny. If the legislature have not the power, it is because *the people* have reserved it to themselves. Had they lodged with the legislature "power to exercise exclusive legislation in all cases whatsoever," they would have parted with their sovereignty over the legislation of the State, and so far forth, the legislature would have become *the people*, clothed with all their functions, and as such competent, *during the continuance of the grant*, to do whatever the people might have done before the surrender of their power: consequently, they would have the power to abolish slavery. The sovereignty of the District of Columbia exists *somewhere*--where is it lodged? The citizens of the District have no legislature of their own, no representation in Congress, and no political power whatever. Maryland and Virginia have surrendered to the United States their "full and absolute right and entire sovereignty," and the people of the United States have committed to Congress by the Constitution, the power to "exercise exclusive legislation in all cases whatsoever over such District."

Thus, the sovereignty of the District of Columbia, is shown to reside solely in the Congress of the United States; and since the power of the people of a state to abolish slavery within their own limits, results from their entire sovereignty within that state, so the power of Congress to abolish slavery in the District, results from its entire sovereignty within the District. If it be objected that Congress can have no more power over the District, than was held by the legislatures of Maryland and Virginia, we ask what clause of the constitution graduates the power of Congress by the standard of those legislatures? Was the United States' constitution worked into its present shape under the measuring line and square of Virginia and Maryland? and is its power to be bevelled down till it can run in the grooves of state legislation? There is a deal of prating about constitutional power over the District, as though Congress were indebted for it to Maryland and Virginia. The powers of those states, whether prodigies or nullities, have nothing to do with the question. As well thrust in the powers of the Grand Lama to join issue upon, or twist papal bulls into constitutional tether, with which to curb congressional action. THE CONSTITUTION OF THE UNITED STATES gives power to Congress, and takes it away, and *it alone*. Maryland and Virginia adopted the Constitution *before* they ceded to the United States the

territory of the District. By their acts of cession, they abdicated their own sovereignty over the District, and thus made room for that provided by the United States' constitution, which sovereignty was to commence as soon as a cession of territory by states, and its acceptance by Congress, furnished a sphere for its exercise. That the abolition of slavery is within the sphere of legislation, I argue.

2. FROM THE FACT, THAT SLAVERY, AS A LEGAL SYSTEM, IS THE CREATURE OF LEGISLATION. The law, by *creating* slavery, not only affirmed its *existence* to be within the sphere and under the control of legislation, but also, the conditions and terms of its existence, and the *question* whether or not it should exist. Of course legislation would not travel *out* of its sphere, in abolishing what is *within* it, and what had been recognized to be within it, by its own act. Cannot legislatures repeal their own laws? If law can take from a man his rights, it can give them back again. If it can say, "your body belongs to your neighbor," it can say, "it belongs to *yourself*." If it can annul a man's right to himself, held by express grant from his Maker, and can create for another an *artificial* title to him, can it not annul the artificial title, and leave the original owner to hold himself by his original title?

3. THE ABOLITION OF SLAVERY HAS ALWAYS BEEN CONSIDERED WITHIN THE APPROPRIATE SPHERE OF LEGISLATION. Almost every civilized nation has abolished slavery by law. The history of legislation since the revival of letters, is a record crowded with testimony to the universally admitted competency of the law-making power to abolish slavery. It is so manifestly an attribute not merely of absolute sovereignty, but even of ordinary legislation, that the competency of a legislature to exercise it, may well nigh be reckoned among the legal axioms of the civilized world. Even the night of the dark ages was not dark enough to make this invisible.

The Abolition decree of the great council of England was passed in 1102. The memorable Irish decree, "that all the English slaves in the whole of Ireland, be immediately emancipated and restored to their former liberty," was issued in 1171. Slavery in England was abolished by a general charter of emancipation in 1381. Passing over many instances of the abolition of slavery by law, both during the middle ages and since the reformation, we

find them multiplying as we approach our own times. In 1776 slavery was abolished in Prussia by special edict. In St. Domingo, Cayenne, Guadaloupe, and Martinique, in 1794, where more than 600,000 slaves were emancipated by the French government. In Java, 1811; in Ceylon, 1815; in Buenos Ayres, 1816; in St. Helena, 1819; in Colombia, 1821; by the Congress of Chili in 1821; in Cape Colony, 1823; in Malacca, 1825; in the southern provinces of Birmah, 1826; in Bolivia, 1826; in Peru, Guatemala, and Monte Video, 1828; in Jamaica, Barbados, the *Bermudas*, the Bahamas, Anguilla, Mauritius, St. Christopers, Nevis, the Virgin Islands, (British), Antigua, Montserrat, Dominica, St. Vincents, Grenada, Berbice, Tobago, St. Lucia, Trinidad, Honduras, Demerara, Essequibo and the Cape of Good Hope, on the 1st of August, 1834. But waving details, suffice it to say, that England, France, Spain, Portugal, Denmark, Russia, Austria, Prussia, and Germany, have all and often given their testimony to the competency of the legislative power to abolish slavery. In our own country, the Legislature of Pennsylvania passed an act of abolition in 1780, Connecticut in 1784; Rhode Island, 1784; New-York, 1799; New-Jersey, in 1804; Vermont, by Constitution, in 1777; Massachusetts, in 1780; and New-Hampshire, in 1784.

When the competency of the law-making power to abolish slavery has thus been recognized every where and for ages, when it has been embodied in the highest precedents, and celebrated in the thousand jubilees of regenerated liberty, is it an achievement of modern discovery, that such a power is a nullity?--that all these acts of abolition are void, and that the millions disenthralled by them, are, either themselves or their posterity, still legally in bondage?

4. LEGISLATIVE POWER HAS ABOLISHED SLAVERS IN ITS PARTS. The law of South Carolina prohibits the working of slaves more than fifteen hours in the twenty-four. In other words, it takes from the slaveholder his power over nine hours of the slave's time daily; and if it can take nine hours it may take twenty-four. The laws of Georgia prohibit the working of slaves on the first day of the week; and if they can do it for the first, they can for the six following. The law of North Carolina prohibits the "immoderate" correction of slaves. If it has power to prohibit *immoderate* correction, it can prohibit *moderate* correction--*all* correction, which would be virtual emancipation; for, take from the master the power to inflict pain, and he is

master no longer. Cease to ply the slave with the stimulus of fear, and he is free.

The Constitution of Mississippi gives the General Assembly power to make laws "to oblige the owners of slaves to *treat them with humanity*." The Constitution of Missouri has the same clause, and an additional one making it the DUTY of the legislature to pass such laws as may be necessary to secure the *humane* treatment of the slaves. This grant to those legislatures, empowers them to decide what *is* and what is *not* "humane treatment." Otherwise it gives no "power"--the clause is mere waste paper, and flouts in the face of a befooled legislature. A clause giving power to require "humane treatment" covers all the *particulars* of such treatment--gives power to exact it in *all respects*--requiring certain acts, and *prohibiting* others--maiming, branding, chaining together, separating families, floggings for learning the alphabet, for reading the Bible, for worshiping God according to conscience--the legislature has power to specify each of these acts--declare that it is not "*humane* treatment," and PROHIBIT it.--The legislature may also believe that driving men and women into the field, and forcing them to work without pay, is not "humane treatment," and being constitutionally bound "to *oblige*" masters to practise "humane treatment"--they have the *power* to *prohibit* such treatment, and are bound to do it.

The law of Louisiana makes slaves real estate, prohibiting the holder, if he be also a *land* holder, to separate them from the soil.[\[A\]](#) If it has power to prohibit the sale *without* the soil, it can prohibit the sale *with* it; and if it can prohibit the *sale* as property, it can prohibit the *holding* as property. Similar laws exist in the French, Spanish, and Portuguese colonies. The law of Louisiana requires the master to give his slaves a certain amount of food and clothing. If it can oblige the master to give the slave *one* thing, it can oblige him to give him another: if food and clothing, then wages, liberty, his own body. By the laws of Connecticut, slaves may receive and hold property, and prosecute suits in their own name as plaintiffs: [This last was also the law of Virginia in 1795. See Tucker's "Dissertation on Slavery," p. 73.] There were also laws making marriage contracts legal, in certain contingencies, and punishing infringements of them, ["*Reeve's Law of Baron and Femme*," p. 340-1.]

[Footnote [A](#): Virginia made slaves real estate by a law passed in 1705. (*Beverly's Hist. of Va.*, p. 98.) I do not find the precise time when this law was repealed, probably when Virginia became the chief slave breeder for the cotton-growing and sugar-planting country, and made young men and women "from fifteen to twenty-five" the main staple production of the State.]

Each of the laws enumerated above, does, *in principle*, abolish slavery; and all of them together abolish it *in fact*. True, not as a *whole*, and at a *stroke*, nor all in one place; but in its *parts*, by piecemeal, at divers times and places; thus showing that the abolition of slavery is within the boundary of legislation.

In the "Washington (D.C.) City Laws," page 138, is "AN ACT to prevent horses from being cruelly beaten or abused." Similar laws have been passed by corporations in many of the slave states, and throughout the civilized world, such acts are punishable either as violations of common law or of legislative enactments. If a legislature can pass laws "to prevent *horses* from being cruelly abused," it can pass laws to prevent *men* from being cruelly abused, and if it can *prevent* cruel abuse, it can define *what it is*. It can declare that to make men *work without pay* is cruel abuse, and can PROHIBIT it.

5. THE COMPETENCY OF THE LAW-MAKING POWER TO ABOLISH SLAVERY, HAS BEEN RECOGNIZED BY ALL THE SLAVEHOLDING STATES, EITHER DIRECTLY OR BY IMPLICATION. Some States recognize it in their *Constitutions*, by giving the legislature power to emancipate such slaves as may "have rendered the state some distinguished service," and others by express prohibitory restrictions. The Constitution of Mississippi, Arkansas, and other States, restrict the power of the legislature in this respect. Why this express prohibition, if the law-making power *cannot* abolish slavery? A stately farce indeed, with appropriate rites to induct into the Constitution a special clause, for the express purpose of restricting a nonentity!--to take from the law-making power what it *never had*, and what *cannot* pertain to it! The legislatures of those States have no power to abolish slavery, simply because their Constitutions have expressly *taken away* that power. The people of Arkansas, Mississippi, &c. well knew

the competency of the law-making power to abolish slavery, and hence their zeal to *restrict* it.

The slaveholding States have recognised this power in their *laws*. Virginia passed a law in 1786 to prevent the importation of Slaves, of which the following is an extract: "And be it further enacted that every slave imported into this commonwealth contrary to the true intent and meaning of this act, shall upon such importation become *free*." By a law of Virginia, passed Dec. 17, 1792, a slave brought into the state and kept *there a year*, was *free*. The Maryland Court of Appeals, Dec., 1813 [case of Stewart vs. Oakes,] decided that a slave owned in Maryland, and sent by his master into Virginia to work at different periods, making one year in the whole, became *free*, being *emancipated* by the above law. North Carolina and Georgia in their acts of cession, transferring to the United States the territory now constituting the States of Tennessee, Alabama and Mississippi, made it a condition of the grant, that the provisions of the ordinance of '87 should be secured to the inhabitants, *with the exception of the sixth article which prohibits slavery*; thus conceding, both the competency of law to abolish slavery, and the power of Congress to do it, within its jurisdiction. (These acts show the prevalent belief at that time, in the slaveholding States, that the general government had adopted a line of policy aiming at the exclusion of slavery from the entire territory of the United States, not included within the original States, and that this policy would be pursued unless prevented by specific and formal stipulation.)

Slaveholding States have asserted this power *in their judicial decisions*. In numerous cases their highest courts have decided that if the legal owner of slaves takes them into those States where slavery has been abolished either by law or by the constitution, such removal emancipates them, such law or constitution abolishing their slavery. This principle is asserted in the decision of the Supreme Court of Louisiana, Lunsford vs. Coquillon, 14 Martin's La. Reps. 401. Also by the Supreme Court of Virginia, Hunter vs. Fulcher, 1 Leigh's Reps. 172. The same doctrine was laid down by Judge Washington, of the U. S. Sup. Court, Butler vs. Hopper, Washington's C. C. Reps. 508; also, by the Court of Appeals in Kentucky, Rankin vs. Lydia, 2 Marshall's Reps. 407; see also, Wilson vs. Isbell, 5 Call's Reps. 425, Spotts vs. Gillespie, 6 Randolph's Reps. 566. The State vs. Lasselle, 1 Blackford's Reps. 60, Marie Louise vs. Mariot, 8 La. Reps. 475. In this case, which was

tried in 1836, the slave had been taken by her master to France and brought back; Judge Matthews, of the Supreme Court of Louisiana, decided that "residence for one moment" under the laws of France emancipated her.

6. EMINENT STATESMEN, THEMSELVES SLAVEHOLDERS, HAVE CONCEDED THIS POWER. Washington, in a letter to Robert Morris, April 12, 1786, says: "There is not a man living, who wishes more sincerely than I do, to see a plan adopted for the abolition of slavery; but there is only one proper and effectual mode by which it can be accomplished, and that is by *legislative* authority." In a letter to Lafayette, May 10, 1786, he says: "It (the abolition of slavery) certainly might, and assuredly ought to be effected, and that too by *legislative* authority." In a letter to John Fenton Mercer, Sept. 9, 1786, he says: "It is among my first wishes to see some plan adopted by which slavery in this country may be abolished by *law*." In a letter to Sir John Sinclair, he says: "There are in Pennsylvania, *laws* for the gradual abolition of slavery, which neither Maryland nor Virginia have at present, but which nothing is more certain than that they *must have*, and at a period not remote." Jefferson, speaking of movements in the Virginia Legislature in 1777, for the passage of a law emancipating the slaves, says: "The principles of the amendment were agreed on, that is to say, the freedom of all born after a certain day; but it was found that the public mind would not bear the proposition, yet the day is not far distant when *it must bear and adopt it*."--Jefferson's Memoirs, v. i. p. 35. It is well known that Jefferson, Pendleton, Mason, Wythe and Lee, while acting as a committee of the Virginia House of Delegates to revise the State Laws, prepared a plan for the gradual emancipation of the slaves by law. These men were the great lights of Virginia. Mason, the author of the Virginia Constitution; Pendleton, the President of the memorable Virginia Convention in 1787, and President of the Virginia Court of Appeals; Wythe was the Blackstone of the Virginia bench, for a quarter of a century Chancellor of the State, the professor of law in the University of William and Mary, and the preceptor of Jefferson, Madison, and Chief Justice Marshall. He was the author of the celebrated remonstrance to the English House of Commons on the subject of the stamp act. As to Jefferson, his *name* is his biography.

Every slaveholding member of Congress from the States of Maryland, Virginia, North and South Carolina, and Georgia, voted for the celebrated ordinance of 1787, which abolished the slavery then existing in the

Northwest Territory. Patrick Henry, in his well known letter to Robert Pleasants, of Virginia, January 18, 1773, says: "I believe a time will come when an opportunity will be offered to abolish this lamentable evil." William Pinkney, of Maryland, advocated the abolition of slavery by law, in the legislature of that State, in 1789. Luther Martin urged the same measure both in the Federal Convention, and in his report to the Legislature of Maryland. In 1796, St. George Tucker, of Virginia, professor of law in the University of William and Mary, and Judge of the General Court, published a dissertation on slavery, urging the abolition of slavery by *law*.

John Jay, while New-York was yet a slave State, and himself in law a slaveholder, said in a letter from Spain, in 1786, "An excellent law might be made out of the Pennsylvania one, for the gradual abolition of slavery. Were I in your legislature, I would present a bill for the purpose, and I would never cease moving it till it became a law, or I ceased to be a member."

Governor Tompkins, in a message to the Legislature of New-York, January 8, 1812, said: "To devise the means for the gradual and ultimate *extermination* from amongst us of slavery, is a work worthy the *representatives* of a polished and enlightened nation."

The Virginia Legislature asserted this power in 1832. At the close of a month's debate, the following proceedings were had. I extract from an editorial article in the Richmond Whig, Jan. 26, 1832.

"The report of the Select Committee, adverse to legislation on the subject of Abolition, was in these words: *Resolved*, as the opinion of this Committee, that it is INEXPEDIENT FOR THE PRESENT, to make any *legislative enactments for the abolition of slavery*." This Report Mr. Preston moved to reverse, and thus to declare that it *was* expedient, *now* to make legislative enactments for the abolition of slavery. This was meeting the question in its strongest form. It demanded action, and immediate action. On this proposition the vote was 58 to 73. Many of the most decided friends of abolition voted against the amendment, because they thought public opinion not sufficiently prepared for it, and that it might prejudice the cause to move too rapidly. The vote on Mr. Witcher's motion to postpone the whole subject indefinitely, indicates the true state of opinion in the House. That was the test question, and was so intended and proclaimed by its mover. That

motion was *negatived*, 71 to 60; showing a majority of 11, who by that vote, declared their belief that at the proper time, and in the proper mode, Virginia ought to commence a system of gradual abolition.

7. THE CONGRESS OF THE UNITED STATES HAVE ASSERTED THIS POWER. The ordinance of '87, declaring that there should be "neither slavery nor involuntary servitude," in the North Western Territory, abolished the slavery then existing there. The Sup. Court of Mississippi, [Harvey vs. Decker, Walker's Mi. Reps. 36,] declared that the ordinance of '87 emancipated the slaves then held there. In this decision the question is argued ably and at great length. The Supreme Court of La. made the same decision in the case of Forsyth vs. Nash, 4 Martin's La. Reps. 385. The same doctrine was laid down by Judge Porter, (late United States Senator from La.,) in his decision at the March term of the La. Supreme Court, 1830, Merry vs. Chexnaider, 20 Martin's Reps. 699.

That the ordinance abolished the slavery then existing there is also shown by the fact, that persons holding slaves in the territory petitioned for the repeal of the article abolishing slavery, assigning *that* as a reason. "The petition of the citizens of Randolph and St. Clair counties in the Illinois country, stating that they were in possession of slaves, and praying the repeal of that act (the 6th article of the ordinance of '87) and the passage of a law legalizing slavery there." [Am. State papers, Public Lands, v. 1. p. 69.] Congress passed this ordinance before the United States' Constitution was adopted, when it derived all its authority from the articles of Confederation, which conferred powers of legislation far more restricted than those committed to Congress over the District and Territories by the United States' Constitution. Now, we ask, how does the Constitution *abridge* the powers which Congress possessed under the articles of confederation?

The abolition of the slave trade by Congress, in 1808, is another illustration of the competency of legislative power to abolish slavery. The African slave trade has become such a mere *technic*, in common parlance, that the fact of its being *proper slavery* is overlooked. The buying and selling, the transportation, and the horrors of the middle passage, were mere *incidents* of the slavery in which the victims were held. Let things be called by their own names. When Congress abolished the African slave trade, it abolished

SLAVERY--supreme slavery--power frantic with license, trampling a whole hemisphere scathed with its fires, and running down with blood. True, Congress did not, in the abolition of the slave trade, abolish all the slavery within its jurisdiction, but it did abolish *all* the slavery *in one* part of its jurisdiction. What has rifled it of power to abolish slavery in *another* part of its jurisdiction, especially in that part where it has "exclusive legislation in all cases whatsoever?"

8. THE CONSTITUTION OF THE UNITED STATES RECOGNIZES THIS POWER BY THE MOST CONCLUSIVE IMPLICATION. In Art. 1, sec. 3, clause 1, it prohibits the abolition of the slave trade previous to 1808: thus implying the power of Congress to do it at once, but for the restriction; and its power to do it *unconditionally*, when that restriction ceased. Again; In Art. 4, sec. 2, "No person held to service or labor in one state under the laws thereof, escaping into another, shall in consequence of any law or regulation therein, be discharged from said service or labor." This clause was inserted, as all admit, to prevent the runaway slave from being emancipated by the *laws* of the free states. If these laws had *no power* to emancipate, why this constitutional guard to prevent it?

The insertion of the clause, was the testimony of the eminent jurists that framed the Constitution, to the existence of the *power*, and their public proclamation, that the abolition of slavery was within the appropriate sphere of legislation. The right of the owner to that which is rightfully property, is founded on a principle of *universal law*, and is recognized and protected by all civilized nations; property in slaves is, by general consent, an *exception*; hence slaveholders insisted upon the insertion of this clause in the United States' Constitution, that they might secure by an *express provision*, that from which protection is withheld, by the acknowledged principles of universal law.[\[A\]](#) By demanding this provision, slaveholders consented that their slaves should not be recognized as property by the United States' Constitution, and hence they found their claim, on the fact of their being "*persons, and held to service.*"

[Footnote [A](#): The fact, that under the articles of Confederation, slaveholders, whose slaves had escaped into free states, had no legal power to force them back,--that *now* they have no power to recover, by process of law, their slaves who escape to Canada, the South American States, or to

Europe--the case already cited, in which the Supreme Court of Louisiana decided, that residence "*for one moment*," under the laws of France emancipated an American slave--the case of *Fulton, vs. Lewis*, 3 Har. and John's Reps., 56, where the slave of a St. Domingo slaveholder, who brought him to Maryland in '93, was pronounced free by the Maryland Court of Appeals--are illustrations of the acknowledged truth here asserted, that by the consent of the civilized world, and on the principles of universal law, slaves are not "*property*," and that whenever held as property under law, it is only by *positive legislative acts*, forcibly setting aside the law of nature, the common law, and the principles of universal justice and right between man and man,--principles paramount to all law, and from which alone, law derives its intrinsic authoritative sanction.]

9. CONGRESS HAS UNQUESTIONABLE POWER TO ADOPT THE COMMON LAW, AS THE LEGAL SYSTEM, WITHIN ITS EXCLUSIVE JURISDICTION.--This has been done, with certain restrictions, in most of the States, either by legislative acts or by constitutional implication. THE COMMON LAW KNOWS NO SLAVES. Its principles annihilate slavery wherever they touch it. It is a universal, unconditional, abolition act. Wherever slavery is a legal system, it is so only by *statute* law, and in violation of the common law. The declaration of Lord Chief Justice Holt, that, "by the common law, no man can have property in another," is an acknowledged axiom, and based upon the well known common law definition of property. "The subjects of dominion or property are *things*, as *contra*-distinguished from *persons*." Let Congress adopt the common law in the District of Columbia, and slavery there is abolished. Congress may well be at home in common law legislation, for the common law is the grand element of the United States' Constitution. All its *fundamental* provisions are instinct with its spirit; and its existence, principles, and paramount authority, are presupposed and assumed throughout the whole. The preamble of the Constitution plants the standard of the Common Law immovably in its foreground. "We, the people of the United States, in order to ESTABLISH JUSTICE, &c., do ordain and establish this Constitution;" thus proclaiming *devotion* to JUSTICE, as the controlling motive in the organization of the Government, and its secure establishment the chief object of its aims. By this most solemn recognition, the common law, that grand legal embodiment of "justice" and fundamental right--was made the

groundwork of the Constitution, and intrenched behind its strongest munitions. The second clause of Sec. 9, Art. 1; Sec. 4, Art. 2, and the last clause of Sec. 2, Art. 3, with Articles 7, 8, 9, and 13 of the Amendments, are also express recognitions of the common law as the presiding Genius of the Constitution.

By adopting the common law within its exclusive jurisdiction Congress would carry out the principles of our glorious Declaration, and follow the highest precedents in our national history and jurisprudence. It is a political maxim as old as civil legislation, that laws should be strictly homogeneous with the principles of the government whose will they express, embodying and carrying them out--being indeed the *principles themselves*, in preceptive form--representatives alike of the nature and power of the Government--standing illustrations of its genius and spirit, while they proclaim and enforce its authority. Who needs be told that slavery makes war upon the principles of the Declaration, and the spirit of the Constitution, and that these and the principles of the common law gravitate towards each other with irrepressible affinities, and mingle into one? The common law came hither with our pilgrim fathers; it was their birthright, their panoply, their glory, and their song of rejoicing in the house of their pilgrimage. It covered them in the day of their calamity, and their trust was under the shadow of its wings. From the first settlement of the country, the genius of our institutions and our national spirit have claimed it as a common possession, and exulted in it with a common pride. A century ago, Governor Pownall, one of the most eminent constitutional jurists of colonial times, said of the common law, "In all the colonies the common law is received as the foundation and main body of their law." In the Declaration of Rights, made by the Continental Congress at its first session in '74, there was the following resolution: "Resolved, That the respective colonies are entitled to the common law of England, and especially to the great and inestimable privilege of being tried by their peers of the vicinage according to the course of that law." Soon after the organization of the general government, Chief Justice Ellsworth, in one of his decisions on the bench of the U. S. Sup. Court, said: "The common law of this country remains the same as it was before the revolution." Chief Justice Marshall, in his decision in the case of *Livingston vs. Jefferson*, said: "When our ancestors migrated to America, they brought with them the common law of their

native country, so far as it was applicable to their new situation, and I do not conceive that the revolution in any degree changed the relations of man to man, or the law which regulates them. In breaking our political connection with the parent state, we did not break our connection with each other." [*Hall's Law Journal, new series.*] Mr. Duponceau, in his "Dissertation on the Jurisdiction of Courts in the United States," says, "I consider the common law of England the *jus commune* of the United States. I think I can lay it down as a correct principle, that the common law of England, as it was at the time of the Declaration of Independence, still continues to be the national law of this country, so far as it is applicable to our present state, and subject to the modifications it has received here in the course of nearly half a century." Chief Justice Taylor of North Carolina, in his decision in the case of the State vs. Reed, in 1823, Hawkes' N.C. Reps. 454, says, "a law of *paramount, obligation to the statute*, was violated by the offence--COMMON LAW, founded upon the law of nature, and confirmed by revelation." The legislation of the United States abounds in recognitions of the principles of the common law, asserting their paramount binding power. Sparing details, of which our national state papers are full, we illustrate by a single instance. It was made a condition of the admission of Louisiana into the Union, that the right of trial by jury should be secured to all her citizens,--the United States government thus employing its power to enlarge the jurisdiction of the common law in this its great representative.

Having shown that the abolition of slavery is within the competency of the law-making power, when unrestricted by constitutional provisions, and that the legislation of Congress over the District is thus unrestricted, its power to abolish slavery there is established. We argue it further, from the fact that,

10. SLAVERY NOW EXISTS IN THE DISTRICT BY AN ACT OF CONGRESS. In the act of 16th July, 1790, Congress accepted portions of territory offered by the states of Maryland and Virginia, and enacted that the laws, as they then were, should continue in force, "until Congress shall otherwise by law provide." Under these laws, adopted by Congress, and in effect re-enacted and made laws of the District, the slaves there are now held.

Is Congress so impotent in its own "exclusive jurisdiction" that it cannot "otherwise by law provide?" If it can say, what *shall* be considered property,

it can say what shall *not* be considered property. Suppose a legislature should enact that marriage contracts should be mere bills of sale, making a husband the proprietor of his wife, as his *bona fide* property; and suppose husbands should herd their wives in droves for the market as beasts of burden, or for the brothel as victims of lust, and then prate about their inviolable legal property, and deny the power of the legislature, which stamped them "property," to undo its own wrong, and secure to wives by law the rights of human beings. Would such cant about "legal rights" be heeded where reason and justice held sway, and where law, based upon fundamental morality, received homage? If a frantic legislature pronounces woman a chattel, has it no power, with returning reason, to take back the blasphemy? Is the impious edict irrevocable? Be it, that with legal forms it has stamped wives "wares." Can no legislation blot out the brand? Must the handwriting of Deity on human nature be expunged for ever? Has LAW no power to stay the erasing pen, and tear off the scrawled label that covers up the IMAGE OF GOD?

II. THE POWER OF CONGRESS TO ABOLISH SLAVERY IN THE DISTRICT HAS BEEN, TILL RECENTLY, UNIVERSALLY CONCEDED.

1. It has been assumed by Congress itself. The following record stands on the journals of the House of Representatives for 1804, p. 225: "On motion made and seconded that the House do come to the following resolution: 'Resolved, That from and after the 4th day of July, 1805, all blacks and people of color that shall be born within the District of Columbia, or whose mothers shall be the property of any person residing within the said District, shall be free, the males at the age of ----, and the females at the age of ----. The main question being taken that the House do agree to said motions as originally proposed, it was negatived by a majority of 46.'" Though the motion was lost, it was on the ground of its alleged *inexpediency* alone. In the debate which preceded the vote, the power of Congress was conceded. In March, 1816, the House of Representatives passed the following resolution: "Resolved, That a committee be appointed to inquire into the existence of an inhuman and illegal traffic in slaves, carried on in and through the District of Columbia, and to report whether any and what measures are necessary for *putting a stop to the same*."

On the 9th of January, 1829, the House of Representatives passed the following resolution by a vote of 114 to 66: "Resolved, That the Committee on the District of Columbia, be instructed to inquire into the *expediency* of providing by *law* for the gradual abolition of slavery within the District, in such a manner that the interests of no individual shall be injured thereby." Among those who voted in the affirmative were Messrs. Barney of Md., Armstrong of Va., A.H. Shepperd of N.C., Blair of Tenn., Chilton and Lyon of Ky., Johns of Del., and others from slave states.

2. IT HAS BEEN CONCEDED BY COMMITTEES OF CONGRESS, ON THE DISTRICT OF COLUMBIA.--In a report of the committee on the District, Jan. 11, 1837, by their chairman, Mr. Powell of Va., there is the following declaration: "The Congress of the United States, has by the constitution exclusive jurisdiction over the District, and has power upon this subject (*slavery*,) as upon all other subjects of legislation, to exercise *unlimited discretion*." Reports of Comms. 2d Sess. 19th Cong. v. iv. No. 43. In December, 1831, the committee on the District, Mr. Doddridge of Va., Chairman, reported, "That until the adjoining states act on the subject, (*slavery*) it would be (not *unconstitutional* but) unwise and impolitic, if not unjust, for Congress to interfere." In April, 1836, a special committee on abolition memorials reported the following resolutions by their Chairman, Mr. Pinckney of South Carolina: "Resolved, That Congress possesses no constitutional authority to interfere in any way with the institution of slavery in any of the states of this confederacy."

"Resolved, That Congress *ought not to interfere* in any way with slavery in the District of Columbia." "Ought not to interfere," carefully avoiding the phraseology of the first resolution, and thus in effect conceding the constitutional power. In a widely circulated "Address to the electors of the Charleston District," Mr. Pinkney is thus denounced by his own constituents: "He has proposed a resolution which is received by the plain common sense of the whole country as a concession that Congress has authority to abolish slavery in the District of Columbia."

3. IT HAS BEEN CONCEDED BY THE CITIZENS OF THE DISTRICT. A petition for the gradual abolition of slavery in the District, signed by nearly eleven hundred of its citizens, was presented to Congress, March 24, 1827. Among the signers to this petition, were Chief Justice Cranch, Judge

Van Ness, Judge Morsel, Prof. J.M. Staughton, and a large number of the most influential inhabitants of the District. Mr. Dickson, of New York, asserted on the floor of Congress in 1835, that the signers to this petition owned more than half the property in the District. The accuracy of this statement has never been questioned.

THIS POWER HAS BEEN CONCEDED BY GRAND JURIES OF THE DISTRICT. The grand jury of the county of Alexandria, at the March term, 1802, presented the domestic slaves trade as a grievance, and said, "We consider these grievances demanding *legislative* redress." Jan. 19, 1829, Mr. Alexander, of Virginia, presented a representation of the grand jury in the city of Washington, remonstrating against "any measure for the abolition of slavery within said District, unless accompanied by measures for the removal of the emancipated from the same;" thus, not only conceding the power to emancipate slaves, but affirming an additional power, that of *excluding them when free*. Journal H. R. 1828-9, p. 174.

4. THIS POWER HAS BEEN CONCEDED BY STATE LEGISLATURES. In 1828 the Legislature of Pennsylvania instructed their Senators in Congress "to procure, if practicable, the passage of a law to abolish slavery in the District of Columbia." Jan. 28, 1829, the House of Assembly of New York passed a resolution, that their "Senators in Congress be instructed to make every possible exertion to effect the passage of a law for the abolition of Slavery in the District of Columbia." In February, 1837, the Senate of Massachusetts "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery and the slave trade therein." The House of Representatives passed the following resolution at the same session: "Resolved, That Congress having exclusive legislation in the District of Columbia, possess the right to abolish slavery in said District." November 1, 1837, the Legislature of Vermont, "Resolved that Congress have the full power by the constitution to abolish slavery and the slave trade in the District of Columbia, and in the territories."

In May, 1838, the Legislature of Connecticut passed a resolution asserting the power of Congress to abolish slavery in the District of Columbia.

In January, 1836, the Legislature of South Carolina "Resolved, That we should consider the abolition of Slavery in the District of Columbia as a

violation of the rights of the citizens of that District derived from the *implied* conditions on which that territory was ceded to the General Government." Instead of denying the constitutional power, they virtually admit its existence, by striving to smother it under an *implication*. In February, 1836, the Legislature of North Carolina "Resolved, That, although by the Constitution *all legislative power* over the District of Columbia is vested in the Congress of the United States, yet we would deprecate any legislative action on the part of that body towards liberating the slaves of that District, as a breach of faith towards those States by whom the territory was originally ceded. Here is a full concession of the *power*. February 2, 1836, the Virginia Legislature passed unanimously the following resolution: "Resolved, by the General Assembly of Virginia, that the following article be proposed to the several states of this Union, and to Congress, as an amendment of the Constitution of the United States:" "The powers of Congress shall not be so construed as to authorize the passage of any law for the emancipation of slaves in the District of Columbia, without the consent of the individual proprietors thereof, unless by the sanction of the Legislatures of Virginia and Maryland, and under such conditions as they shall by law prescribe."

Fifty years after the formation of the United States' constitution the states are solemnly called upon by the Virginia Legislature, to amend that instrument by a clause asserting that, in the grant to Congress of "exclusive legislation in all cases whatsoever" over the District, the "case" of slavery is not included!! What could have dictated such a resolution but the conviction that the power to abolish slavery is an irresistible inference from the constitution *as it is*? The fact that the same legislature, passed afterward a resolution, though by no means unanimously, that Congress does not possess the power, abates not a title of the testimony in the first resolution. March 23d, 1824, "Mr. Brown presented the resolutions of the General Assembly of Ohio, recommending to Congress the consideration of a system for the gradual emancipation of persons of color held in servitude in the United States." On the same day, "Mr. Noble, of Indiana, communicated a resolution from the legislature of that state, respecting the gradual emancipation of slaves within the United States." Journal of the United States' Senate, for 1824-5, p.231.

The Ohio and Indiana resolutions, by taking for granted the *general* power of Congress over the subject of slavery, do virtually assert its *special* power within its *exclusive* jurisdiction.

5. THIS POWER HAS BEEN CONCEDED BY BODIES OF CITIZENS IN THE SLAVE STATES. The petition of eleven hundred citizens of the District, has been already mentioned. "March 5, 1830, Mr. Washington presented a memorial of inhabitants of the county of Frederick, in the state of Maryland, praying that provision be made for the gradual abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 358.

March 30, 1828. Mr. A.H. Shepperd, of North Carolina, presented a memorial of citizens of that state, "praying Congress to take measures for the entire abolition of slavery in the District of Columbia." Journal H.R. 1829-30, p. 379.

January 14, 1822. Mr. Rhea, of Tennessee, presented a memorial of citizens of that state, praying that "provision may be made, whereby all slaves that may hereafter be born in the District of Columbia, shall be free at a certain period of their lives." Journal H.R. 1821-22, p. 142.

December 13, 1824. Mr. Saunders of North Carolina, presented a memorial of the citizens of that state, praying "that measures may be taken for the gradual abolition of slavery in the United States." Journal H.R. 1824-25, p. 27.

December 16, 1828. "Mr. Barnard presented the memorial of the American Convention for promoting the abolition of slavery, held in Baltimore, praying that slavery may be abolished in the District of Columbia." Journal U.S. Senate, 1828-29, p. 24.

6. DISTINGUISHED STATESMEN AND JURISTS IN THE SLAVEHOLDING STATES, HAVE CONCEDED THIS POWER. The testimony Of Messrs. Doddridge, and Powell, of Virginia, Chief Justice Cranch, and Judges Morsel and Van Ness, of the District, has already been given. In the debate in Congress on the memorial of the Society of Friends, in 1790, Mr. Madison, in speaking of the territories of the United States, explicitly declared, from his own knowledge of the views of the members of the convention that framed the constitution, as well as from the obvious

import of its terms, that in the territories, "Congress have certainly the power to regulate the subject of slavery." Congress can have no more power over the territories than that of "exclusive legislation in all cases whatsoever," consequently, according to Mr. Madison, "it has certainly the power to regulate the subject of slavery in the" *District*. In March, 1816, Mr. Randolph of Virginia, introduced a resolution for putting a stop to the domestic slave trade within the District. December 12, 1827, Mr. Barney, of Maryland, presented a memorial for abolition in the District, and moved that it be printed. Mr. McDuffie, of S.C., objected to the printing, but "expressly admitted the right of Congress to grant to the people of the District any measure which they might deem necessary to free themselves from the deplorable evil."--[See letter of Mr. Claiborne of Miss. to his constituents published in the Washington Globe, May 9, 1836.] The sentiments of Mr. Clay of Kentucky, on the subject are well known. In a speech before the U.S. Senate, in 1836, he declared the power of Congress to abolish slavery in the District "unquestionable." Messrs. Blair, of Tennessee, and Chilton, Lyon, and R.M. Johnson, of Kentucky, A.H. Shepperd, of N.C., Messrs. Armstrong and Smyth of Va., Messrs. Dorsey, Archer, and Barney, of *Md.*, and Johns, of Del., with numerous others from slave states have asserted the power of Congress to abolish slavery in the District. In the speech of Mr. Smyth, of Virginia, on the Missouri question, January 28, 1820, he says on this point: "If the future freedom of the blacks is your real object, and not a mere pretence, why do you begin *here*? Within the ten miles square, you have *undoubted power* to exercise exclusive legislation. *Produce a bill to emancipate the slaves in the District of Columbia*, or, if you prefer it, to emancipate those born hereafter."

To this may be added the testimony of the present Vice President of the United States, Hon. Richard M. Johnson, of Kentucky. In a speech before the U.S. Senate, February 1, 1820, (National Intelligencer, April 29, 1829,) he says: "In the District of Columbia, containing a population of 30,000 souls, and probably as many slaves as the whole territory of Missouri, THE POWER OF PROVIDING FOR THEIR EMANCIPATION RESTS WITH CONGRESS ALONE. Why then, this heart-rending sympathy for the slaves of Missouri, and this cold insensibility, this eternal apathy, towards the slaves in the District of Columbia?"

It is quite unnecessary to add, that the most distinguished northern statesmen of both political parties, have always affirmed the power of Congress to abolish slavery in the District. President Van Buren in his letter of March 6, 1836, to a committee of Gentlemen in North Carolina, says, "I would not, from the light now before me, feel myself safe in pronouncing that Congress does not possess the power of abolishing slavery in the District of Columbia." This declaration of the President is consistent with his avowed sentiments touching the Missouri question, on which he coincided with such men as Daniel D. Thompson, De Witt Clinton, and others, whose names are a host.[\[A\]](#) It is consistent, also with his recommendation in his last message, in which speaking of the District, he strongly urges upon Congress "a thorough and careful revision of its local government," speaks of the "entire independence" of the people of the District "upon Congress," recommends that a "uniform system of local government" be adopted, and adds, that "although it was selected as the seat of the General Government, the site of its public edifices, the depository of its archives, and the residences of officers intrusted with large amounts of public property, and the management of public business, yet it never has been subjected to, or received, that *special* and *comprehensive* legislation which these circumstances peculiarly demanded."

[Footnote [A](#): Mr. Van Buren, when a member of the Senate of New-York, voted for the following preamble and resolutions, which passed unanimously:--Jan. 28th, 1820. "Whereas the inhibiting the further extension of slavery in the United States, is a subject of deep concern to the people of this state: and whereas, we consider slavery as an evil much to be deplored, and that *every constitutional barrier should be interposed to prevent its further extension*: and that the constitution of the United States *clearly gives Congress the right* to require new states, not comprised within the original boundary of the United States, to *make the prohibition of slavery* a condition of their admission into the Union: Therefore,

Resolved, That our Senators be instructed, and our members of Congress be requested, to oppose the admission as a state into the Union, of any territory not comprised as aforesaid, without making *the prohibition of slavery* therein an indispensable condition of admission."

The tenor of Mr. Tallmadge's speech on the right of petition, and of Mr. Webster's on the reception of abolition memorials, may be taken as universal exponents of the sentiments of northern statesmen as to the power of Congress to abolish slavery in the District of Columbia.

An explicit declaration, that an "*overwhelming majority*" of the *present* Congress concede the power to abolish slavery in the District has just been made by Robert Barnwell Rhett, a member of Congress from South Carolina, in a letter published in the Charleston Mercury of Dec. 27, 1837. The following is an extract:

"The time has arrived when we must have new guaranties under the constitution, or the Union must be dissolved. *Our views of the constitution are not those of the majority.* AN OVERWHELMING MAJORITY *think that by the constitution, Congress may abolish slavery in the District of Columbia--may abolish the slave trade between the States; that is, it may prohibit their being carried out of the State in which they are--and prohibit it in all the territories, Florida among them. They think, NOT WITHOUT STRONG REASONS, that the power of Congress extends to all of these subjects.*"

Direct testimony to show that the power of Congress to abolish slavery in the District, has always till recently been *universally conceded*, is perhaps quite superfluous. We subjoin, however, the following:

The Vice-President of the United States in his speech on the Missouri question, quoted above, after contending that the restriction of slavery in Missouri would be unconstitutional, declares, that the power of Congress over slavery in the District "COULD NOT BE QUESTIONED." In the speech of Mr. Smyth, of Va., also quoted above, he declares the power of Congress to abolish slavery in the District to be "UNDOUBTED."

Mr. Sutherland, of Penn., in a speech in the House of Representatives, on the motion to print Mr. Pinckney's Report, is thus reported in the Washington Globe, of May 9th, '36. "He replied to the remark that the report conceded that Congress had a right to legislate upon the subject in the District of Columbia, and said that SUCH A RIGHT HAD NEVER BEEN, TILL RECENTLY, DENIED."

The American Quarterly Review, published at Philadelphia, with a large circulation and list of contributors in the slave states, holds the following language in the September No. 1833, p. 55: "Under this 'exclusive jurisdiction,' granted by the constitution, Congress has power to abolish slavery and the slave trade in the District of Columbia. It would hardly be necessary to state this as a distinct proposition, had it not been occasionally questioned. The truth of the assertion, however, is too obvious to admit of argument--and we believe has NEVER BEEN DISPUTED BY PERSONS WHO ARE FAMILIAR WITH THE CONSTITUTION."

OBJECTIONS TO THE FOREGOING CONCLUSIONS CONSIDERED.

We now proceed to notice briefly the main arguments that have been employed in Congress and elsewhere against the power of Congress to abolish slavery in the District. One of the most plausible is, that "the conditions on which Maryland and Virginia ceded the District to the United States, would be violated, if Congress should abolish slavery there." The reply to this is, that Congress had no power to *accept* a cession coupled with conditions restricting that "power of exclusive legislation in all cases whatsoever, over such District," which was given it by the constitution.

To show the futility of the objection, we insert here the acts of cession. The cession of Maryland was made in November, 1788, and is as follows: "An act to cede to Congress a district of ten miles square in this state for the seat of the government of the United States."

"Be it enacted, by the General Assembly of Maryland, that the representatives of this state in the House of Representatives of the Congress of the United States, appointed to assemble at New-York, on the first Wednesday of March next, be, and they are; hereby authorized and required on the behalf of this state, to cede to the Congress of the United States, any district in this state, not exceeding ten miles square, which the Congress may fix upon, and accept for the seat of government of the United States." Laws of *Md.*, v. 2., c. 46.

The cession of Virginia was made on the 3d of December, 1788, in the following words:

"Be it enacted by the General Assembly, That a tract of country, not exceeding ten miles square, or any lesser quantity, to be located within the limits of the State, and in any part thereof; as Congress may, by law, direct, shall be, and the same is hereby forever ceded and relinquished to the Congress and Government of the United States, in full and absolute right, and exclusive jurisdiction, as well of soil, as of persons residing or to reside thereon, pursuant to the tenor and effect of the eighth section of the first article of the government of the constitution of the United States."

But were there no provisos to these acts? The Maryland act had *none*. The Virginia act had this proviso: "Sect. 2. Provided, that nothing herein contained, shall be construed to vest in the United States any right of property in the soil, or to affect the rights of individuals *therein*, otherwise than the same shall or may be transferred by such individuals to the United States."

This specification touching the soil was merely definitive and explanatory of that clause in the act of cession, "*full and absolute right*." Instead of restraining the power of Congress on *slavery* and other subjects, it even gives it freer course; for exceptions to *parts* of a rule, give double confirmation to those parts not embraced in the exceptions. If it was the *design* of the proviso to restrict congressional action on the subject of *slavery*, why is the *soil alone* specified? As legal instruments are not paragons of economy in words, might not "John Doe," out of his abundance, and without spoiling his style, have afforded an additional word--at least a hint--that slavery was *meant*, though nothing was said about it?

But again, Maryland and Virginia, in their acts of cession, declare them to be made "in pursuance of" that clause of the constitution which gives to Congress "exclusive legislation in all cases whatsoever" over the ten miles square--thus, instead of *restricting* that clause, both States *confirm* it. Now, their acts of cession either accorded with that clause of the constitution, or they conflicted with it. If they conflicted with it, *accepting* the *cessions* was a violation of the constitution. The fact that Congress accepted the *cessions*, proves that in its views their *terms* did not conflict with its constitutional grant of power. The inquiry whether these acts of cession were consistent or inconsistent with the United States' constitution, is totally irrelevant to the

question at issue. What with the CONSTITUTION? That is the question. Not, what with Virginia, or Maryland, or--equally to the point--John Bull! If Maryland and Virginia had been the authorized interpreters of the constitution for the Union, these acts of cession could hardly have been more magnified than they have been recently by the southern delegation in Congress. A true understanding of the constitution can be had, forsooth, only by holding it up in the light of Maryland and Virginia legislation!

We are told, again, that those States would not have ceded the District if they had supposed the constitution gave Congress power to abolish slavery in it.

This comes with an ill grace from Maryland and Virginia. They *knew* the constitution. They were parties to it. They had sifted it, clause by clause, in their State conventions. They had weighed its words in the balance--they had tested them as by fire; and, finally, after long pondering, they adopted the constitution. And *afterward*, self-moved, they ceded the ten miles square, and declared the cession made "in pursuance of" that oft-cited clause, "Congress shall have power to exercise exclusive legislation in all cases whatsoever over such District." And now verily "they would not have ceded if they had *supposed*!" &c. Cede it they *did*, and in "full and absolute right both of soil and persons." Congress accepted the cession--state power over the District ceased, and congressional power over it commenced,--and now, the sole question to be settled is, the *amount of power over the District lodged in Congress by the constitution*. The constitution--THE CONSTITUTION--that is the point. Maryland and Virginia "suppositions" must be potent suppositions to abrogate a clause of the United States' Constitution! That clause either gives Congress power to abolish slavery in the District, or it does *not*--and that point is to be settled, not by state "suppositions," nor state usages, nor state legislation, but *by the terms of the clause themselves*.

Southern members of Congress, in the recent discussions, have conceded the power of a contingent abolition in the District, by suspending it upon the *consent* of the people. Such a doctrine from *declaimers* like Messrs. Alford, of Georgia, and Walker, of Mississippi, would excite no surprise; but that it should be honored with the endorsement of such men as Mr. Rives and Mr. Calhoun, is quite unaccountable. Are attributes of

sovereignty mere creatures of contingency? Is delegated authority mere conditional permission? Is a constitutional power to be exercised by those who hold it, only by popular sufferance? Must it lie helpless at the pool of public sentiment, waiting the gracious troubling of its waters? Is it a lifeless corpse, save only when popular "consent" deigns to puff breath into its nostrils? Besides, if the consent of the people of the District be necessary, the consent of the *whole* people must be had--not that of a majority, however large. Majorities, to be authoritative, must be *legal*--and a legal majority without legislative power, or right of representation, or even the electoral franchise, would be truly an anomaly! In the District of Columbia, such a thing as a majority in a legal sense is unknown to law. To talk of the power of a majority, or the will of a majority there, is mere mouthing. A majority? Then it has an authoritative will, and an organ to make it known, and an executive to carry it into effect--Where are they? We repeat it--if the consent of the people of the District be necessary, the consent of *every one* is necessary--and *universal* consent will come only with the Greek Kalends and a "perpetual motion." A single individual might thus perpetuate slavery in defiance of the expressed will of a whole people. The most common form of this fallacy is given by Mr. Wise, of Virginia, in his speech, February 16, 1835, in which he denied the power of Congress to abolish slavery in the District, unless the inhabitants owning slaves petitioned for it!! Southern members of Congress at the present session (1837-8) ring changes almost daily upon the same fallacy. What! pray Congress *to use* a power which it *has not*? "It is required of a man according to what he *hath*," saith the Scripture. I commend Mr. Wise to Paul for his ethics. Would that he had got his *logic* of him! If Congress does not possess the power, why taunt it with its weakness, by asking its exercise? Petitioning, according to Mr. Wise, is, in matters of legislation, omnipotence itself; the very *source* of all constitutional power; for, *asking* Congress to do what it *cannot* do, gives it the power!--to pray the exercise of a power that is *not*, *creates* it! A beautiful theory! Let us work it both ways. If to petition for the exercise of a power that is *not*, creates it--to petition against the exercise of a power that *is*, annihilates it. As southern gentlemen are partial to summary processes, pray, sirs, try the virtue of your own recipe on "exclusive legislation in all cases whatsoever;" a better subject for experiment and test of the prescription could not be had. But if the petitions of the citizens of the District give Congress the *right* to abolish slavery, they impose the *duty*;

if they confer constitutional *authority*, they create constitutional *obligation*. If Congress *may* abolish because of an expression of their will, it *must* abolish at the bidding of that will. If the people of the District are a *source of power* to Congress, their *expressed will* has the force of a constitutional provision, and has the same binding power upon the National Legislature. To make Congress dependent on the District for authority, is to make it a *subject* of its authority, restraining the exercise of its own discretion, and sinking it into a mere organ of the District's will. We proceed to another objection.

"The southern states would not have ratified the constitution, if they had supposed that it gave this power." It is a sufficient answer to this objection, that the northern states would not have ratified it, if they had supposed that it *withheld* the power. If "suppositions" are to take the place of the constitution--coming from both sides, they neutralize each other. To argue a constitutional question by *guessing* at the "suppositions" that might have been made by the parties to it would find small favor in a court of law. But even a desperate shift is some easement when sorely pushed. If this question is to be settled by "suppositions," suppositions shall be forthcoming, and that without stint.

First, then, I affirm that the North ratified the constitution, "supposing" that slavery had begun to wax old, and would speedily vanish away, and especially that the abolition of the slave trade, which by the constitution was to be surrendered to Congress after twenty years, would plunge it headlong.

Would the North have adopted the constitution, giving three-fifths of the "slave property" a representation, if it had "supposed" that the slaves would have increased from half a million to two millions and a half by 1838--and that the census of 1840 would give to the slave states thirty representatives of "slave property?"

If they had "supposed" that this representation would have controlled the legislation of the government, and carried against the North every question vital to its interests, would Hamilton, Franklin, Sherman, Gerry, Livingston, Langdon, and Rufus King have been such madmen, as to sign the constitution, and the Northern States such suicides as to ratify it? Every

self-preserving instinct would have shrieked at such an infatuate immolation. At the adoption of the United States constitution, slavery was regarded as a fast waning system. This conviction was universal. Washington, Jefferson, Henry, Grayson, Tucker, Madison, Wythe, Pendleton, Lee, Blair, Mason, Page, Parker, Randolph, Iredell, Spaight, Ramsey, Pinkney, Martin, McHenry, Chase, and nearly all the illustrious names south of the Potomac, proclaimed it before the sun. A reason urged in the convention that formed the United States' constitution, why the word slave should not be used in it, was, *that when slavery should cease* there might remain upon the National Charter no record that it had ever been. (See speech of Mr. Burrill, of R.I., on the Missouri question.)

I now proceed to show by testimony, that at the date of the United States' constitution, and for several years before and after that period, slavery was rapidly on the wane; that the American Revolution with the great events preceding, accompanying, and following it, had wrought an immense and almost universal change in the public sentiment of the nation on the subject, powerfully impelling it toward the entire abolition of the system--and that it was the *general belief* that measures for its abolition throughout the Union, would be commenced by the States generally before the lapse of many years. A great mass of testimony establishing this position might be presented, but narrow space, and the importance of speedy publication, counsel brevity. Let the following proofs suffice. First, a few dates as points of observation.

In 1757, Commissioners from seven colonies met at Albany, resolved upon a Union and proposed a plan of general government. In 1765, delegates from nine colonies met at New York and sent forth a bill of rights. The first *general* Congress met in 1774. The first Congress of the *thirteen* colonies met in 1775. The revolutionary war commenced in '75. Independence was declared in '76. The articles of confederation were adopted by the thirteen states in '77 and '78. Independence acknowledged in '83. The convention for forming the U.S. constitution was held in '87, the state conventions for considering it in '87 and '88. The first Congress under the constitution in '89.

Dr. Rush, of Pennsylvania, one of the signers of the Declaration of Independence, in a letter to Granville Sharpe, May 1, 1773, says: "A spirit

of humanity and religion begins to awaken in several of the colonies in favor of the poor negroes. Great events have been brought about by small beginnings. *Anthony Bènèzet stood alone a few years ago in opposing negro slavery in Philadelphia, and NOW THREE-FOURTHS OF THE PROVINCE AS WELL AS OF THE CITY CRY OUT AGAINST IT.*"-- [Stuart's Life of Granville Sharpe, p. 21.]

In the preamble to the act prohibiting the importation of slaves into Rhode Island, June, 1774, is the following: "Whereas the inhabitants of America are generally engaged in the preservation of their own rights and liberties, among which that of personal freedom must be considered the greatest, and as those who are desirous of enjoying all the advantages of liberty themselves, *should be willing to extend personal liberty to others, therefore,*" &c.

October 20, 1774, the Continental Congress passed the following: "We, for ourselves and the inhabitants of the several colonies whom we represent, *firmly agree and associate under the sacred ties of virtue, honor, and love of our country,* as follows:"

"2d Article. *We will neither import nor purchase any slaves imported after the first day of December next, after which time we will wholly discontinue the slave trade, and we will neither be concerned in it ourselves, nor will we hire our vessels nor sell our commodities or manufactures to those who are concerned in it.*"

The Continental Congress, in 1775, setting forth the causes and the necessity for taking up arms, say: "*If it were possible for men who exercise their reason to believe that the divine Author of our existence intended a part of the human race to hold an absolute property in, and unbounded power over others,*" &c.

In 1776, Dr. Hopkins, then at the head of New England divines, in "An Address to the owners of negro slaves in the American colonies," says: "The conviction of the unjustifiableness of this practice (slavery) has been *increasing, and greatly spreading of late, and many who have had slaves, have found themselves so unable to justify their own conduct in holding them in bondage, as to be induced to set them at liberty.*

* * * * *

Slavery is *in every instance*, wrong, unrighteous, and oppressive--a very great and crying sin--*there being nothing of the kind equal to it on the face of the earth.*"

The same year the American Congress issued a solemn MANIFESTO to the world. These were its first words: "We hold these truths to be self-evident, that *all* men are created equal, that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness." *Once*, these were words of power; *now*, "a rhetorical flourish."

The Virginia Gazette of March 19, 1767, in an essay on slavery says: "*There cannot be in nature, there is not in all history, an instance in which every right of man is more flagrantly violated.* Enough I hope has been effected to prove that slavery is a violation of justice and religion."

The celebrated Patrick Henry of Virginia, in a letter, Jan. 18, 1773, to Robert Pleasants, afterwards president of the Virginia Abolition Society, says: "Believe me, I shall honor the Quakers for their noble efforts to abolish slavery. It is a debt we owe to the purity of our religion to show that it is at variance with that law that warrants slavery. I exhort you to persevere in so worthy a resolution."

The Pennsylvania Chronicle of Nov. 21, 1768, says: "Let every black that shall henceforth be born amongst us be deemed free. One step farther would be to emancipate the whole race, restoring that liberty we have so long unjustly detained from them. Till some step of this kind be taken we shall justly be the derision of the whole world."

In 1779, the Continental Congress ordered a pamphlet to be published, entitled, "Observations on the American Revolution," from which the following is an extract: "The great principle (of government) is and ever will remain in force, *that men are by Nature free*; and so long as we have any idea of divine *justice*, we must associate that of *human freedom*. It is *conceded on all hands, that the right to be free CAN NEVER BE ALIENATED.*"

Extract from the Pennsylvania act for the abolition of slavery, passed March 1, 1780: * * * "We conceive that it is our duty, and we rejoice that it is in our power, to extend a portion of that freedom to others which has been extended to us. Weaned by a long course of experience from those narrow prejudices and partialities we had imbibed, we find our hearts enlarged with kindness and benevolence towards men of all conditions and nations: * * * Therefore be it enacted, that no child born hereafter be a slave," &c.

Jefferson, in his Notes on Virginia, written just before the close of the Revolutionary War, says: "I think a change already perceptible since the origin of the present revolution. The spirit of the master is abating, that of the slave is rising from the dust, his condition mollifying, *and the way I hope preparing, under the auspices of heaven, FOR A TOTAL EMANCIPATION.*"

In a letter to Dr. Price, of London, who had just published a pamphlet in favor of the abolition of slavery, Mr. Jefferson, then minister at Paris, (August 7, 1785,) says: "From the mouth to the head of the Chesapeake, *the bulk of the people will approve of your pamphlet in theory*, and it will find a respectable minority ready to *adopt it in practice*--a minority which, for weight and worth of character, *preponderates against the greater number.*" Speaking of Virginia, he says: "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression,--a conflict in which the SACRED SIDE IS GAINING DAILY RECRUITS. Be not, therefore, discouraged--what you have written will do a *great deal of good*; and could you still trouble yourself with our welfare, no man is more able to give aid to the laboring side. The College of William and Mary, since the remodelling of its plan, is the place where are collected together all the young men of Virginia, under preparation for public life. They are there under the direction (most of them) of a Mr. Wythe, one of the most virtuous of characters, and *whose sentiments on the subject of slavery are unequivocal.* I am satisfied, if you could resolve to address an exhortation to those young men with all that eloquence of which you are master, that *its influence on the future decision of this important question would be great, perhaps decisive.* Thus. you see, that so far from thinking you have cause to repent of what you have done, *I wish you to do more, and I wish it on an assurance of its effect.*"--Jefferson's Posthumous Works, vol. 1, p. 268.

In 1786, John Jay drafted and signed a petition to the Legislature of New York, on the subject of slavery, beginning with these words: "Your memorialists being deeply affected by the situation of those, who, although, FREE BY THE LAWS OF GOD, are held in slavery by the laws of the State," &c. This memorial bore also the signatures of the celebrated Alexander Hamilton; Robert R. Livingston, afterwards Secretary of Foreign Affairs of the United States, and Chancellor of the State of New York; James Duane, Mayor of the City of New York, and many others of the most eminent individuals in the State.

In the preamble of an instrument, by which Mr. Jay emancipated a slave in 1784, is the following passage:

"Whereas, the children of men are by nature equally free, and cannot, without injustice, be either reduced to or HELD in slavery."

In his letter while Minister at Spain, in 1786, he says, speaking of the abolition of slavery: "Till America comes into this measure, her prayers to heaven will be IMPIOUS. I believe God governs the world; and I believe it to be a maxim in his, as in our court, that those who ask for equity *ought to do it.*"

In 1785, the New York Manumission Society was formed. John Jay was chosen its first President, and held the office five years. Alexander Hamilton was its second President, and after holding the office one year, resigned upon his removal to Philadelphia as Secretary of the United States' Treasury. In 1787, the Pennsylvania Abolition Society was formed. Benjamin Franklin, warm from the discussions of the convention that formed the U.S. constitution, was chosen President, and Benjamin Rush Secretary--both signers of the Declaration of Independence. In 1789, the Maryland Abolition Society was formed. Among its officers were Samuel Chase, Judge of the U.S. Supreme Court, and Luther Martin, a member of the convention that formed the U.S. constitution. In 1790, the Connecticut Abolition Society was formed. The first President was Rev. Dr. Stiles, President of Yale College, and the Secretary, Simeon Baldwin, (late Judge Baldwin of New Haven.) In 1791, this Society sent a memorial to Congress, from which the following is an extract:

"From a sober conviction of the unrighteousness of slavery, your petitioners have long beheld, with grief, our fellow men doomed to perpetual bondage, in a country which boasts of her freedom. Your petitioners were led, by motives, we conceive, of general philanthropy, to associate ourselves for the protection and assistance of this unfortunate part of our fellow men; and, though this Society has been *lately* established, it has now become *generally extensive* through this state, and, we fully believe, *embraces, on this subject, the sentiments of a large majority of its citizens.*"

The same year the Virginia Abolition Society was formed. This Society, and the Maryland Society, had auxiliaries in different parts of those States. Both societies sent up memorials to Congress. The memorial of the Virginia Society is headed--"The memorial of the *Virginia Society*, for promoting the Abolition of Slavery," &c. The following is an extract:

"Your memorialists, fully believing that slavery is not only an odious degradation, but an *outrageous violation of one of the most essential rights of human nature, and utterly repugnant to the precepts of the gospel,*" &c.

About the same time a Society was formed in New-Jersey. It had an acting committee of five members in each county in the State. The following is an extract from the preamble to its constitution:

"It is our boast, that we live under a government, wherein *life, liberty, and the pursuit of happiness*, are recognized as the universal rights of men. We *abhor that inconsistent, illiberal, and interested policy, which withholds those rights from an unfortunate and degraded class of our fellow creatures.*"

Among other distinguished individuals who were efficient officers of these Abolition Societies, and delegates from their respective state societies, at the annual meetings of the American convention for promoting the abolition of slavery, were Hon. Uriah Tracy, United States' Senator, from Connecticut; Hon. Zephaniah Swift, Chief Justice of the same State; Hon. Cesar A. Rodney, Attorney General of the United States; Hon. James A. Bayard, United States' Senator, from Delaware; Governor Bloomfield, of New-Jersey; Hon. Wm. Rawle, the late venerable head of the Philadelphia bar; Dr. Caspar Wistar, of Philadelphia; Messrs. Foster and Tillinghast, of

Rhode Island; Messrs. Ridgely, Buchanan, and Wilkinson, of Maryland; and Messrs. Pleasants, McLean, and Anthony, of Virginia.

In July, 1787, the old Congress passed the celebrated ordinance abolishing slavery in the northwestern territory, and declaring that it should never thereafter exist there. This ordinance was passed while the convention that formed the United States' constitution was in session. At the first session of Congress under the constitution, this ordinance was ratified by a special act. Washington, fresh from the discussions of the convention, in which *more than forty days had been spent in adjusting the question of slavery, gave it his approval*. The act passed with only one dissenting voice, (that of Mr. Yates, of New York,) *the South equally with the North avowing the fitness and expediency of the measure on general considerations, and indicating thus early the line of national policy, to be pursued by the United States' Government on the subject of slavery*.

In the debates in the North Carolina Convention, Mr. Iredell, afterward a Judge of the United States' Supreme Court, said, "*When the entire abolition of slavery takes place, it will be an event which must be pleasing to every generous mind and every friend of human nature*." Mr. Galloway said, "I wish to see this abominable trade put an end to. I apprehend the clause (touching the slave trade) means *to bring forward manumission*." Luther Martin, of Maryland, a member of the convention that formed the United States' Constitution, said, "We ought to authorize the General Government to make such regulations as shall be thought most advantageous for *the gradual abolition of slavery, and the emancipation of the slaves* which are already in the States." Judge Wilson, of Pennsylvania, one of the framers of the constitution, said, in the Pennsylvania convention of '87, [Deb. Pa. Con. p. 303, 156:] "I consider this (the clause relative to the slave trade) as laying the foundation for *banishing slavery out of this country*. It will produce the same kind of gradual change which was produced in Pennsylvania; the new States which are to be formed will be under the control of Congress in this particular, and *slaves will never be introduced* among them. It presents us with the pleasing prospect that the rights of mankind will be acknowledged and established *throughout the Union*. Yet the lapse of a few years, and Congress will have power to *exterminate slavery* within our borders." In the Virginia convention of '87, Mr. Mason, author of the Virginia constitution, said, "The augmentation of slaves weakens the States, and such a trade is

diabolical in itself, and disgraceful to mankind. As much as I value a union of all the States, I would not admit the Southern States, (i.e., South Carolina and Georgia,) into the union, *unless they agree to a discontinuance of this disgraceful trade.*" Mr. Tyler opposed with great power the clause prohibiting the abolition of the slave trade till 1808, and said, "My earnest desire is, that it shall be handed down to posterity that I oppose this wicked clause." Mr. Johnson said, "The principle of emancipation *has begun since the revolution. Let us do what we will, it will come round.*"--[*Deb. Va. Con.* p. 463.] Patrick Henry, arguing the power of Congress under the United States' constitution to abolish slavery in the States, said, in the same convention, "Another thing will contribute to bring this event (the abolition of slavery) about. Slavery is *detested*. We feel its fatal effects; we deplore it with all the pity of humanity." Governor Randolph said: "They insist that the *abolition of slavery will result from this Constitution*. I hope that there is no one here, who will advance *an objection so dishonorable* to Virginia--I hope that at the moment they are securing the rights of their citizens, an objection will not be started, that those unfortunate men now held in bondage, *by the operation of the general government* may be made free!" [*Deb. Va. Con.* p. 421.] In the Mass. Con. of '88, Judge Dawes said, "Although slavery is not smitten by an apoplexy, yet *it has received a mortal wound*, and will die of consumption."--[*Deb. Mass. Con.* p. 60.] General Heath said that, "Slavery was confined to the States *now existing*, it *could not be extended*. By their ordinance, Congress had declared that the new States should be republican States, *and have no slavery.*"--p. 147.

In the debate, in the first Congress, February 11th and 12th, 1789, on the petitions of the Society of Friends, and the Pennsylvania Abolition Society, Mr. Parker, of Virginia, said, "I cannot help expressing the pleasure I feel in finding *so considerable a part* of the community attending to matters of such a momentous concern to the *future prosperity* and happiness of the people of America. I think it my duty, as a citizen of the Union, to *espouse their cause.*"

Mr. Page, of Virginia, (afterwards Governor)--"Was *in favor* of the commitment: he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion of the prayer of the memorial. He placed himself in the case of a slave, and said, that on hearing that Congress had refused to listen to the decent

suggestions of the respectable part of the community, he should infer, that the general government, *from which was expected great good would result to EVERY CLASS of citizens*, had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if any thing could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf, and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and *wait the decision patiently.*"

Mr. Scott of Pennsylvania: "I cannot, for my part, conceive how any person *can be said to acquire a property in another. I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation, but I am sure I would go as far as I could.*"

Mr. Burke, of South Carolina, said, "He *saw the disposition of the House*, and he feared it would be referred to a committee, maugre all their opposition."

Mr. Baldwin of Georgia said that the clause in the U.S. Constitution relating to direct taxes "was intended to prevent Congress from laying any special tax upon negro slaves, *as they might, in this way, so burthen the possessors of them, as to induce a GENERAL EMANCIPATION.*"

Mr. Smith of South Carolina, said, "That on entering into this government, they (South Carolina and Georgia) apprehended that the other states, * * * would, *from motives of humanity and benevolence, be led to vote for a general emancipation.*"

In the debate, at the same session, May 13th, 1789, on the petition of the society of Friends respecting the slave trade, Mr. Parker, of Virginia, said, "He hoped Congress would do all that lay in their power *to restore to human nature its inherent privileges.* The inconsistency in our principles, with which we are justly charged *should be done away.*"

Mr. Jackson, of Georgia, said, "IT WAS THE FASHION OF THE DAY TO FAVOR THE LIBERTY OF THE SLAVES. * * * * * Will Virginia set her

negroes free? *When this practice comes to be tried, then the sound of liberty will lose those charms which make it grateful to the ravished ear.*"

Mr. Madison of Virginia,--"The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy, require it of us. * * * * * I conceive the constitution in this particular was formed in order that the Government, whilst it was restrained from laying a total prohibition, might be able to *give some testimony of the sense of America*, with respect to the African trade. * * * * * It is to be hoped, that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, AND OUR PROSPERITY THE IMBECILITY EVER ATTENDANT ON A COUNTRY FILLED WITH SLAVES."

Mr. Gerry, of Massachusetts, said, "he highly commended the part the Society of Friends had taken; it was the cause of humanity they had interested themselves in."--Cong. *Reg.* v. 1, p. 308-12.

A writer in the "Gazette of the Unites States," Feb. 20th, 1790, (then the government paper,) who opposes the abolition of slavery, and avows himself a *slaveholder*, says, "I have seen in the papers accounts of *large associations*, and applications to Government for *the abolition of slavery*. Religion, humanity, and the generosity natural to a free people, are the *noble principles which dictate those measures*. SUCH MOTIVES COMMAND RESPECT, AND ARE ABOVE ANY EULOGIUM WORDS CAN BESTOW."

In the convention that formed the constitution of Kentucky in 1790, the effort to prohibit slavery was nearly successful. A decided majority of that body would undoubtedly have voted for its exclusion, but for the great efforts and influence of two large slaveholders--men of commanding talents and sway--Messrs. Breckenridge and Nicholas. The following extract from a speech made in that convention by a member of it, Mr. Rice a native Virginian, is a specimen of the *free discussion* that prevailed on that "delicate subject." Said Mr. Rice: "I do a man greater injury, when I deprive him of his liberty, than when I deprive him of his property. It is vain for me to plead that I have the sanction of law; for this makes the injury the greater--it arms the community against him, and makes his case desperate.

The owners of such slaves then are *licensed robbers*, and not the just proprietors of what they claim. Freeing them is not depriving them of property, but *restoring it to the right owner*. The master is the enemy of the slave; he *has made open war upon him*, AND IS DAILY CARRYING IT ON in unremitted efforts. Can any one imagine, then, that the slave is indebted to his master, and *bound to serve him*? Whence can the obligation arise? What is it founded upon? What is my duty to an enemy that is carrying on war against me? I do not deny, but in some circumstances, it is the duty of the slave to serve; but it is a duty he owes himself, and not his master."

President Edwards, the younger, said, in a sermon preached before the Connecticut Abolition Society, Sept. 15, 1791: "Thirty years ago, scarcely a man in this country thought either the slave trade or the slavery of negroes to be wrong; but now how many and able advocates in private life, in our legislatures, in Congress, have appeared, and have openly and irrefragably pleaded the rights of humanity in this as well as other instances? And if we judge of the future by the past, *within fifty years from this time, it will be as shameful for a man to hold a negro slave, as to be guilty of common robbery or theft.*"

In 1794, the General Assembly of the Presbyterian church adopted its "Scripture proofs," notes, and comments. Among these was the following:

"1 Tim. i. 10. The law is made for manstealers. This crime among the Jews exposed the perpetrators of it to capital punishment. Exodus xxi. 16. And the apostle here classes them with *sinner of the first rank*. The word he uses, in its original import comprehends all who are concerned in bringing any of the human race into slavery, or in *retaining* them in it. *Stealers of men* are all those who bring off slaves or freemen, and *keep*, sell, or buy them."

In 1794, Dr. Rush declared: "Domestic slavery is repugnant to the principles of Christianity. It prostrates every benevolent and just principle of action in the human heart. It is rebellion against the authority of a common Father. It is a practical denial of the extent and efficacy of the death of a common Saviour. It is an usurpation of the prerogative of the

great Sovereign of the universe, who has solemnly claimed an exclusive property in the souls of men."

In 1795, Mr. Fiske, then an officer of Dartmouth College, afterward a Judge in Tennessee, said, in an oration published that year, speaking of slaves: "I steadfastly maintain, that we must bring them to *an equal standing, in point of privileges, with the whites!* They must enjoy all the rights belonging to human nature."

When the petition on the abolition of the slave trade was under discussion in the Congress of '89, Mr. Brown, of North Carolina, said, "The emancipation of the slaves *will be effected* in time; it ought to be a gradual business, but he hoped that Congress would not *precipitate* it to the great injury of the southern States." Mr. Hartley, of Pennsylvania, said, in the same debate, "*He was not a little surprised to hear the cause of slavery advocated in that house.*" WASHINGTON, in a letter to Sir John Sinclair, says, "There are, in Pennsylvania, laws for the gradual abolition of slavery which neither Maryland nor Virginia have at present, but which *nothing is more certain* than that they *must have*, and at a period NOT REMOTE." In 1782, Virginia passed her celebrated manumission act. Within nine years from that time nearly eleven thousand slaves were voluntarily emancipated by their masters. [Judge Tucker's "Dissertation on Slavery," p. 72.] In 1787, Maryland passed an act legalizing manumission. Mr. Dorsey, of Maryland, in a speech in Congress, December 27th, 1826, speaking of *manumissions* under that act, said, that "*The progress of emancipation was astonishing*, the State became crowded with a free black population."

The celebrated William Pinkney, in a speech before the Maryland House of Delegates, in 1789, on the emancipation of slaves, said, "Sir, by the eternal principles of natural justice, *no master in the state has a right to hold his slave in bandage for a single hour...* Are we apprehensive that these men will become more dangerous by becoming freemen? Are we alarmed, lest by being admitted into the enjoyment of civil rights, they will be inspired with a deadly enmity against the rights of others? Strange, unaccountable paradox! How much more rational would it be, to argue that the natural enemy of the privileges of a freeman, is he who is robbed of them himself!"

Hon. James Campbell, in an address before the Pennsylvania Society of Cincinnati, July 4, 1787, said, "Our separation from Great Britain has extended the empire of *humanity*. The time *is not far distant* when our sister states, in imitation of our example, *shall turn their vassals into freemen*." The Convention that formed the United States' constitution being then in session, attended on the delivery of this oration with General Washington at their head.

A Baltimore paper of September 8th, 1780, contains the following notice of Major General Gates: "A few days ago passed through this town the Hon. General Gates and lady. The General, previous to leaving Virginia, summoned his numerous family of slaves about him, and amidst their tears of affection and gratitude, gave them their **Freedom**."

In 1791, the university of William and Mary, in Virginia, conferred upon Granville Sharpe the degree of Doctor of Laws. Sharpe was at that time the acknowledged head of British abolitionists. His indefatigable exertions, prosecuted for years in the case of Somerset, procured that memorable decision in the Court of King's Bench, which settled the principle that no slave could be held in England. He was most uncompromising in his opposition to slavery, and for twenty years previous he had spoken, written, and accomplished more against it than any man living.

In the "Memoirs of the Revolutionary War in the Southern Department," by Gen. Lee, of Va., Commandant of the Partizan Legion, is the following: "The Constitution of the United States, adopted lately with so much difficulty, has effectually provided against this evil (by importation) after a few years. It is much to be lamented that having done so much in this way, *a provision had not been made for the gradual abolition of slavery*."--pp. 233, 4.

Mr. Tucker, of Virginia, Judge of the Supreme Court of that state, and professor of law in the University of William and Mary, addressed a letter to the General Assembly of that state, in 1796, urging the abolition of slavery, from which the following is an extract. Speaking of the slaves in Virginia, he says: "Should we not, at the time of the revolution, have broken their fetters? Is it not our duty *to embrace the first moment* of constitutional health and vigor to effectuate so desirable an object, and to remove from us

a stigma with which our enemies will never fail to upbraid us, nor our consciences to reproach us?"

Mr. Faulkner, in a speech before the Virginia House of Delegates, Jan. 20, 1832, said: "The idea of a gradual emancipation and removal of the slaves from this commonwealth, is coeval with the declaration of our independence from the British yoke. When Virginia stood sustained in her legislation by the pure and philosophic intellect of Pendleton, by the patriotism of Mason and Lee, by the searching vigor and sagacity of Wythe, and by the all-embracing, all-comprehensive genius of Thomas Jefferson! Sir, it was a committee composed of those five illustrious men, who, in 1777, submitted to the general assembly of this state, then in session, *a plan for the gradual emancipation of the slaves of this commonwealth.*"

Hon. Benjamin Watkins Leigh, late United States' senator from Virginia, in his letters to the people of Virginia, in 1832, signed Appomattox, p. 43, says: "I thought, till very lately, that it was known to every body that during the revolution, *and for many years after, the abolition of slavery was a favorite topic with many of our ablest statesmen*, who entertained, with respect, all the schemes which wisdom or ingenuity could suggest for accomplishing the object. Mr. Wythe, to the day of his death, *was for a simple abolition, considering the objection to color as founded in prejudice.* By degrees, all projects of the kind were abandoned. Mr. Jefferson *retained* his opinion, and now we have these projects revived."

Governor Barbour, of Virginia, in his speech in the U.S. Senate, on the Missouri question, Jan. 1820, said: "We are asked why has Virginia changed her policy in reference to slavery? That the sentiments of our most distinguished men, for thirty years *entirely corresponded* with the course which the friends of the restriction (of slavery in Missouri) now advocated; and that the Virginia delegation, one of whom was the late President of the United States, voted for the restriction (of slavery) in the northwestern territory, and that Mr. Jefferson has delineated a gloomy picture of the baneful effects of slavery. When it is recollected that the Notes of Mr. Jefferson were written during the progress of the revolution, it is no matter of surprise that the writer should have imbibed a large portion of that enthusiasm which such an occasion was so well calculated to produce. As to the consent of the Virginia delegation to the restriction in question, whether

the result of a disposition to restrain the slave-trade indirectly, or the influence of that enthusiasm to which I have just alluded, * * * * it is not now important to decide. We have witnessed its effects. The liberality of Virginia, or, as the result may prove, her folly, which submitted to, or, if you will, PROPOSED *this measure* (abolition of slavery in the N.W. territory) has eventuated in effects which speak a monitory lesson. *How is the representation from this quarter on the present question?*"

Mr. Imlay, in his early history of Kentucky, p. 185, says: "We have disgraced the fair face of humanity, and trampled upon the sacred privileges of man, at the very moment that we were exclaiming against the tyranny of your (the English) ministry. But in contending for the birthright of freedom, we have learned to feel *for the bondage of others*, and in the libations we offer to the goddess of liberty, we contemplate an *emancipation of the slaves of this country*, as honorable to themselves as it will be glorious to us."

In the debate in Congress, Jan. 20, 1806, on Mr. Sloan's motion to lay a tax on the importation of slaves, Mr. Clark of Va. said: "He was no advocate for a system of slavery." Mr. Marion, of S. Carolina, said: "He never had purchased, nor should he ever purchase a slave." Mr. Southard said: "Not revenue, but an expression of the *national sentiment* is the principal object." Mr. Smilie--"I rejoice that the word (slave) is not in the constitution; its not being there does honor to the worthies who would not suffer it to become a *part* of it." Mr. Alston, of N. Carolina--"In two years we shall have the power to prohibit the trade altogether. Then this House will be unanimous. No one will object to our exercising our full constitutional powers." National Intelligencer, Jan. 24, 1806.

These witnesses need no vouchers to entitle them to credit; nor their testimony comments to make it intelligible--their *names* are their *endorsers*, and their strong words their own interpreters. We waive all comments. Our readers are of age. Whosoever hath ears to *hear*, let him HEAR. And whosoever will not hear the fathers of the revolution, the founders of the government, its chief magistrates, judges, legislators and sages, who dared and perilled all under the burdens, and in the heat of the day that tried men's souls--then "neither will he be persuaded though THEY rose from the dead."

Some of the points established by this testimony are--The universal expectation that Congress, state legislatures, seminaries of learning, churches, ministers of religion, and public sentiment widely embodied in abolition societies, would act against slavery, calling forth the moral sense of the nation, and creating a power of opinion that would abolish the system throughout the Union. In a word, that free speech and a free press would be wielded against it without ceasing and without restriction. Full well did the South know, not only that the national government would probably legislate against slavery wherever the constitution placed it within its reach, but she knew also that Congress had already marked out the line of national policy to be pursued on the subject--had committed itself before the world to a course of action against slavery, wherever she could move upon it without encountering a conflicting jurisdiction--that the nation had established by solemn ordinance a memorable precedent for subsequent action, by abolishing slavery in the northwest territory, and by declaring that it should never thenceforward exist there; and this too, as soon as by cession of Virginia and other states, the territory came under congressional control. The South knew also that the sixth article in the ordinance prohibiting slavery, was first proposed by the largest slaveholding state in the confederacy--that in the Congress of '84, Mr. Jefferson, as chairman of the committee on the N.W. territory, reported a resolution abolishing slavery there--that the chairman of the committee that reported the ordinance of '87 was also a slaveholder--that the ordinance was enacted by Congress during the session of the convention that formed the United States' Constitution--that the provisions of the ordinance were, both while in prospect and when under discussion, matters of universal notoriety and *approval* with all parties, and when finally passed, received the vote of *every member of Congress from each of the slaveholding states*. The South also had every reason for believing that the first Congress under the constitution would *ratify* that ordinance--as it did unanimously.

A crowd of reflections, suggested by the preceding testimony, presses for utterance. The right of petition ravished and trampled by its constitutional guardians, and insult and defiance hurled in the faces of the SOVEREIGN PEOPLE while calmly remonstrating *with their* SERVANTS for violence committed on the nation's charter and their own dearest rights! Added to this "the right of peaceably assembling" violently wrested--the rights of

minorities, *rights* no longer--free speech struck dumb--free *men* outlawed and murdered--free presses cast into the streets and their fragments strewed with shoutings, or flourished in triumph before the gaze of approving crowds as proud mementos of prostrate law! The spirit and power of our fathers, where are they? Their deep homage always and every where rendered to FREE THOUGHT, with its *inseparable signs--free speech and a free press*--their reverence for justice, liberty, *rights* and all-pervading law, where are they?

But we turn from these considerations--though the times on which we have fallen, and those toward which we are borne with headlong haste, call for their discussion as with the voices of departing life--and proceed to topics relevant to the argument before us.

The seventh article of the amendments to the constitution is alleged to withhold from Congress the power to abolish slavery in the District. "No person shall be deprived of life, liberty, or property, without due process of law." All the slaves in the District have been "deprived of liberty" by legislative acts. Now, these legislative acts "depriving" them "of liberty," were either "due process of law," or they were *not*. If they *were*, then a legislative act, taking from the master that "property" which is the identical "liberty" previously taken from the slave, would be "due process of law" *also*, and of course a *constitutional* act; but if the legislative acts "depriving" them of "liberty" were *not* "due process of law," then the slaves were deprived of liberty *unconstitutionally*, and these acts are *void*. In that case the *constitution emancipates them*.

If the objector reply, by saying that the import of the phrase "due process of law," is *judicial* process solely, it is granted, and that fact is our rejoinder; for no slave in the District *has* been deprived of his liberty by "a judicial process," or, in other words, by "due process of law;" consequently, upon the objector's own admission, every slave in the District has been deprived of liberty *unconstitutionally*, and is therefore *free by the constitution*. This is asserted only of the slaves under the "exclusive legislation" of Congress.

The last clause of the article under consideration is quoted for the same purpose: "Nor shall private property be taken for public use without just compensation." Each of the state constitutions has a clause of similar

purport. The abolition of slavery in the District by Congress, would not, as we shall presently show; violate this clause either directly or by implication. Granting for argument's sake, that slaves are "private property," and that to emancipate them, would be to "take private property" for "public use," the objector admits the power of Congress to do *this*, provided it will do something *else*, that is, *pay* for them. Thus, instead of denying the *power*, the objector not only admits, but *affirms* it, as the ground of the inference that compensation must accompany it. So far from disproving the existence of *one* power, he asserts the existence of *two*--one, the power to take the slaves from their masters, the other, the power to take the property of the United States to pay for them.

If Congress cannot constitutionally impair the right of private property, or take it without compensation, it cannot constitutionally, *legalize* the perpetration of such acts, by *others*, nor *protect* those who commit them. Does the power to rob a man of his earnings, rob the earner of his *right* to them? Who has a better right to the *product* than the producer?--to the *interest*, than the owner of the *principal*?--to the hands and arms, than he from whose shoulders they swing?--to the body and soul, than he whose they are? Congress not only impairs but annihilates the right of private property, while it withholds from the slaves of the District their title to *themselves*. What! Congress powerless to protect a man's right to *himself*, when it can make inviolable the right to a *dog*! But, waiving this, I deny that the abolition of slavery in the District would violate this clause. What does the clause prohibit? The "taking" of "private property" for "public use." Suppose Congress should emancipate the slaves in the District, what would it "*take*?" Nothing. What would it *hold*? Nothing. What would it put to "public use?" Nothing. Instead of *taking* "private property," Congress, by abolishing slavery, would say "*private property* shall not be taken; and those who have been robbed of it already, shall be kept out of it no longer; and every man's right to his own body shall be protected." True, Congress may not arbitrarily take property, *as* property, from one man and give it to another--and in the abolition of slavery no such thing is done. A legislative act changes the *condition* of the slave--makes him his own *proprietor*, instead of the property of another. It determines a question of *original right* between two classes of persons--doing an act of justice to one, and restraining the other from acts of injustice; or, in other words, preventing

one from robbing the other, by granting to the injured party the protection of just and equitable laws.

Congress, by an act of abolition, would change the condition of seven thousand "persons" in the District, but would "take" nothing. To construe this provision so as to enable the citizens of the District to hold as property, and in perpetuity, whatever they please, or to hold it as property in all circumstances--all necessity, public welfare, and the will and power of the government to the contrary notwithstanding--is a total perversion of its whole *intent*. The *design* of the provision, was to throw up a barrier against Governmental aggrandizement. The right to "take property" for *State uses* is one thing;--the right so to adjust the *tenures* by which property is held, that *each may have his own secured to him*, is another thing, and clearly within the scope of legislation. Besides, if Congress were to "take" the slaves in the District, it would be *adopting*, not abolishing slavery--becoming a slaveholder itself, instead of requiring others to be such no longer. The clause in question, prohibits the "taking" of individual property for public use, to be employed or disposed of *as* property for governmental purposes. Congress, by abolishing slavery in the District, would do no such thing. It would merely change the *condition* of that which has been recognized as a qualified property by congressional acts, though previously declared "persons" by the constitution. More than this is done continually by Congress and every other Legislature. Property the most absolute and unqualified, is annihilated by legislative acts. The embargo and non-intercourse act, levelled at a stroke a forest of shipping, and sunk millions of capital. To say nothing of the power of Congress to take hundreds of millions from the people by direct taxation, who doubts its power to abolish at once the whole tariff system, change the seat of Government, arrest the progress of national works, prohibit any branch of commerce with the Indian tribes or with foreign nations, change the locality of forts, arsenals, magazines and dock yards; abolish the Post Office system, and the privilege of patents and copyrights? By such acts Congress might, in the exercise of its acknowledged powers, annihilate property to an incalculable amount, and that without becoming liable to claims for compensation.

Finally, this clause prohibits the taking for public use of "*property*." The constitution of the United States does not recognize slaves as "PROPERTY" any where, and it does not recognize them in *any sense* in the District of

Columbia. All allusions to them in the constitution recognize them as "persons." Every reference to them points *solely* to the element of *personality*; and thus, by the strongest implication, declares that the constitution *knows* them only as "persons," and *will* not recognize them in any other light. If they escape into free States, the constitution authorizes their being taken back. But how? Not as the property of an "owner," but as "persons;" and the peculiarity of the expression is a marked recognition of their *personality*--a refusal to recognize them as chattels--"persons *held* to service." Are oxen "*held* to service?" That can be affirmed only of *persons*. Again, slaves give political power as "persons." The constitution, in settling the principle of representation, requires their enumeration in the census. How? As property? Then why not include race horses and game cocks? Slaves, like other inhabitants, are enumerated as "persons." So by the constitution, the government was pledged to non-interference with "the migration or importation of such *persons*" as the States might think proper to admit until 1808, and authorized the laying of a tax on each "person" so admitted. Further, slaves are recognized as *persons* by the exaction of their *allegiance* to the government. For offences against the government slaves are tried as *persons*; as persons they are entitled to counsel for their defence, to the rules of evidence, and to "due process of law," and as *persons* they are punished. True, they are loaded with cruel disabilities in courts of law, such as greatly obstruct and often inevitably defeat the ends of justice, yet they are still recognized as *persons*. Even in the legislation of Congress, and in the diplomacy of the general government, notwithstanding the frequent and wide departures from the integrity of the constitution on this subject, slaves are not recognized as *property* without qualification. Congress has always refused to grant compensation for slaves killed or taken by the enemy, even when these slaves had been impressed into the United States' service. In half a score of cases since the last war, Congress has rejected such applications for compensation. Besides, both in Congressional acts, and in our national diplomacy, slaves and property are not used as convertible terms. When mentioned in treaties and state papers it is in such a way as to distinguish them from mere property, and generally by a recognition of their *personality*. In the invariable recognition of slaves as *persons*, the United States' constitution caught the mantle of the glorious Declaration, and most worthily wears it. It recognizes all human beings as "men," "persons," and thus as "equals." In the original draft of the

Declaration, as it came from the hand of Jefferson, it is alleged that Great Britain had "waged a cruel war against *human* nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, carrying them into slavery, * * determined to keep up a market where MEN should be bought and sold,"--thus disdaining to make the charter of freedom a warrant for the arrest of *men*, that they might be shorn both of liberty and humanity.

The celebrated Roger Sherman, one of the committee of five appointed to draft the Declaration of Independence, and a member of the convention that formed the United States' constitution, said, in the first Congress after its adoption: "The constitution *does not consider these persons, (slaves,) as a species of property.*"--[Lloyd's Cong. Reg. v. 1, p. 313.] That the United States' Constitution does not make slaves "property," is shown in the fact, that no person, either as a citizen of the United States, or by having his domicile within the United States' government, can hold slaves. He can hold them only by deriving his power from *state* laws, or from the laws of Congress, if he hold slaves within the District. But no person resident within the United States' jurisdiction, and *not* within the District, nor within a state whose laws support slavery, nor "held to service" under the laws of such a state or district, having escaped therefrom, *can be held as a slave.*

Men can hold *property* under the United States' government though residing beyond the bounds of any state, district, or territory. An inhabitant of the Iowa Territory can hold property there under the laws of the United States, but he cannot hold *slaves* there under the United States' laws, nor by virtue of the United States' Constitution, nor upon the ground of his United States' citizenship, nor by having his domicile within the United States' jurisdiction. The constitution no where recognizes the right to "slave property," *but merely the fact that the states have jurisdiction each in its own limits, and that there are certain "persons" within their jurisdictions "held to service" by their own laws.*

Finally, in the clause under consideration "private property" is not to be taken "without just compensation." "JUST!" If justice is to be appealed to in determining the *amount* of compensation, let her determine the *grounds* also. If it be her province to say *how much* compensation is "just," it is hers to say whether *any* is "just,"--whether the slave is "just" property *at all*,

rather than a "*person*". Then, if justice adjudges the slave to be "private property," it adjudges him to be *his own* property, since the right to one's self is the first right--the source of all others--the original stock by which they are accumulated--the principal, of which they are the interest. And since the slave's "private property" has been "taken," and since "compensation" is impossible--there being no *equivalent* for one's self--the least that can be done is to restore to him his original private property.

Having shown that in abolishing slavery, "property" would not be "taken for public use," it may be added that, in those states where slavery has been abolished by law, no claim for compensation has been allowed. Indeed the manifest absurdity of demanding it seems to have quite forestalled the *setting up* of such a claim.

The abolition of slavery in the District instead of being a legislative anomaly, would proceed upon the principles of every day legislation. It has been shown already, that the United States' Constitution does not recognize slaves as "property." Yet ordinary legislation is full of precedents, showing that even *absolute* property is in many respects wholly subject to legislation. The repeal of the law of entailments--all those acts that control the alienation of property, its disposal by will, its passing to heirs by descent, with the question, who shall be heirs, and what shall be the rule of distribution among them, or whether property shall be transmitted at all by descent, rather than escheat to the estate--these, with statutes of limitation, and various other classes of legislative acts, serve to illustrate the acknowledged scope of the law-making power, even where property *is in every sense absolute*. Persons whose property is thus affected by public laws, receive from the government no compensation for their losses; unless the state has been put in possession of the property taken from them.

The preamble of the United States' Constitution declares it to be a fundamental object of the organization of the government "to ESTABLISH JUSTICE." Has Congress *no power* to do that for which it was made the depository of power? CANNOT the United States' Government fulfil the purpose for which it was brought into being?

To abolish slavery, is to take from no rightful owner his property; but to "establish justice" between two parties. To emancipate the slave, is to

"establish justice" between him and his master--to throw around the person, character, conscience; liberty, and domestic relations of the one, *the same law* that secures and blesses the other. In other words, to prevent by legal restraints one class of men from seizing upon another class, and robbing them at pleasure of their earnings, their time, their liberty, their kindred, and the very use and ownership of their own persons. Finally, to abolish slavery is to proclaim and *enact* that innocence and helplessness--now *free plunder*--are entitled to *legal protection*; and that power, avarice, and lust, shall no longer revel upon their spoils under the license, and by the ministration of *law*! Congress, by possessing "exclusive legislation in all cases whatsoever," has a *general protective power for ALL* the inhabitants of the District. If it has no power to protect *one* man in the District it has none to protect another--none to protect *any*--and if it *can* protect one man and is *bound* to do it, it *can* protect *every* man--and is *bound* to do it. All admit the power of Congress to protect the masters in the District against their slaves. What part of the constitution gives the power? The clause so often quoted,--"power of legislation in all cases whatsoever," equally in the "*case*" of defending blacks against whites, as in that of defending whites against blacks. The power is also conferred by Art. 1, Sec. 8, clause 15--"Congress shall have power to suppress insurrections"--a power to protect, as well blacks against whites, as whites against blacks. If the constitution gives power to protect *one* class against the other, it gives power to protect *either* against the other. Suppose the blacks in the District should seize the whites, drive them into the fields and kitchens, force them to work without pay, flog them, imprison them, and sell them at their pleasure, where would Congress find power to restrain such acts? Answer; a *general* power in the clause so often cited, and an *express* one in that cited above--"Congress shall have power to suppress insurrections." So much for a supposed case. Here follows a real one. The whites in the District are *perpetrating these identical acts* upon seven thousand blacks daily. That Congress has power to restrain these acts in *one* case, all assert, and in so doing they assert the power "in *all* cases whatsoever." For the grant of power to suppress insurrections, is an *unconditional* grant, not hampered by provisos as to the color, shape, size, sex, language, creed, or condition of the insurgents. Congress derives its power to suppress this *actual* insurrection, from the same source whence it derived its power to suppress the *same* acts in the case supposed. If one case is an insurrection, the other is. The *acts* in both

are the same; the *actors* only are different. In the one case, ignorant and degraded--goaded by the memory of the past, stung by the present, and driven to desperation by the fearful looking for of wrongs for ever to come. In the other, enlightened into the nature of *rights*, the principles of justice, and the dictates of the law of love, unprovoked by wrongs, with cool deliberation, and by system, they perpetrate these acts upon those to whom they owe unnumbered obligations for *whole lives* of unrequited service. On which side may palliation be pleaded, and which party may most reasonably claim an abatement of the rigors of law? If Congress has power to suppress such acts *at all*, it has power to suppress them *in all*.

It has been shown already that *allegiance* is exacted of the slave. Is the government of the United States unable to grant *protection* where it exacts *allegiance*? It is an axiom of the civilized world, and a maxim even with savages, that allegiance and protection are reciprocal and correlative. Are principles powerless with us which exact homage of barbarians? *Protection is the CONSTITUTIONAL RIGHT of every human. being under the exclusive legislation of Congress who has not forfeited it by crime.*

In conclusion, I argue the power of Congress to abolish slavery in the District, from Art. 1, sec. 8, clause 1, of the constitution; "Congress shall have power to provide for the common defence and the general welfare of the United States." Has the government of the United States no power under this grant to legislate within its own exclusive jurisdiction on subjects that vitally affect its interest? Suppose the slaves in the district should rise upon their masters, and the United States' government, in quelling the insurrection, should kill any number of them. Could their masters claim compensation of the government? Manifestly not; even though no proof existed that the particular slaves killed were insurgents. This was precisely the point at issue between those masters, whose slaves were killed by the State troops at the time of the Southampton insurrection, and the Virginia Legislature: no evidence was brought to show that the slaves killed by the troops were insurgents; yet the Virginia Legislature decided that their masters were *not entitled to compensation*. They proceeded on the sound principle, that the government may in self-protection destroy the claim of its subjects even to that which has been recognized as property by its own acts. If in providing for the common defence, the United States' government, in the case supposed, would have power to destroy slaves both

as *property* and *persons*, it surely might stop *half-way*, destroy them *as property* while it legalized their existence as *persons*, and thus provided for the common defence by giving them a personal and powerful interest in the government, and securing their strength for its defence.

Like other Legislatures, Congress has power to abate nuisances--to remove or tear down unsafe buildings--to destroy infected cargoes--to lay injunctions upon manufactories injurious to the public health--and thus to "provide for the common defence and general welfare" by destroying individual property, when such property puts in jeopardy the public weal.

Granting, for argument's sake, that slaves are "property" in the District of Columbia--if Congress has a right to annihilate property there when the public safety requires it, it may annihilate its existence *as property* when the public safety requires it, especially if it transform into a *protection* and *defence* that which as *property* perilled the public interests. In the District of Columbia there are, besides the United States' Capitol, the President's house, the national offices, and archives of the Departments of State, Treasury, War, and Navy, the General Post-office, and Patent office. It is also the residence of the President, of all the highest officers of the government, of both houses of Congress, and of all the foreign ambassadors. In this same District there are also seven thousand slaves. Jefferson, in his Notes on Va. p. 241, says of slavery, that "the State permitting one half of its citizens to trample on the rights of the other, transforms them into *enemies*;" and Richard Henry Lee, in the Va. House of Burgesses in 1758, declared that to those who held them, "*slaves must be natural enemies*." Is Congress so impotent that it *cannot* exercise that right pronounced both by municipal and national law, the most sacred and universal--the right of self-preservation and defence? Is it shut up to the *necessity* of keeping seven thousand "enemies" in the heart of the nation's citadel? Does the iron fiat of the constitution doom it to such imbecility that it *cannot* arrest the process that *made* them "enemies," and still goads to deadlier hate by fiery trials, and day by day adds others to their number? Is *this* providing for the common defence and general welfare? If to rob men of rights excites their hate, freely to restore them and make amends, will win their love.

By emancipating the slaves in the District, the government of the United States would disband an army of "enemies," and enlist "for the common defence and general welfare," a body guard of *friends* seven thousand strong. In the last war, a handful of British soldiers sacked Washington city, burned the capitol, the President's house, and the national offices and archives; and no marvel, for thousands of the inhabitants of the District had been "TRANSFORMED INTO ENEMIES." Would *they* beat back invasion? If the national government had exercised its constitutional "power to provide for the common defence and to promote the general welfare," by turning those "enemies" into friends, then, instead of a hostile ambush lurking in every thicket inviting assault, and secret foes in every house paralyzing defence, an army of allies would have rallied in the hour of her calamity, and shouted defiance from their munitions of rocks; whilst the banner of the republic, then trampled in dust, would have floated securely over FREEMEN exulting amidst bulwarks of strength.

To show that Congress can abolish slavery in the District, under the grant of power "to provide for the common defence and to promote the general welfare," I quote an extract from a speech of Mr. Madison, of Va., in the first Congress under the constitution, May 13, 1789. Speaking of the abolition of the slave trade, Mr. Madison says: "I should venture to say it is as much for the interests of Georgia and South Carolina, as of any state in the union. Every addition they receive to their number of slaves tends to *weaken* them, and renders them less capable of self-defence. In case of hostilities with foreign nations, they will be the means of *inviting* attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well *internal* as external. *Every thing, therefore, which tends to increase this danger, though it may be a local affair, yet if it involves national expense or safety, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government.*" Cong. Reg. vol. 1, p. 310, 11.

WYTHE.

POSTSCRIPT

My apology for adding a *postscript*, to a discussion already perhaps too protracted, is the fact that the preceding sheets were in the hands of the printer, and all but the concluding pages had gone through the press, before the passage of Mr. Calhoun's late resolutions in the Senate of the United States. A proceeding so extraordinary,--if indeed henceforward *any* act of Congress in derogation of freedom and in deference to slavery, can be deemed extraordinary,--should not be passed in silence at such a crisis as the present; especially as the passage of one of the resolutions by a vote of 36 to 9, exhibits a shift of position on the part of the South, as sudden as it is unaccountable, being nothing less than the surrender of a fortress which until then, they had defended with the pertinacity of a blind and almost infuriated fatuity. Upon the discussions during the pendency of the resolutions, and upon the vote, by which they were carried, I make no comment, save only to record my exultation in the fact there exhibited, that great emergencies are *true touchstones*, and that henceforward, until this question is settled, whoever holds a seat in Congress will find upon, and around him, a pressure strong enough to test him--a focal blaze that will find its way through the carefully adjusted cloak of fair pretension, and the sevenfold brass of two faced political intrigue, and *no-faced non-committalism*, piercing to the dividing asunder of joints and marrow. Be it known to every northern man who aspires to a seat in our national councils, that hereafter congressional action on this subject will be a MIGHTY REVELATOR--making secret thoughts public property, and proclaiming on the house-tops what is whispered in the ear--smiting off masks, and bursting open sepulchres beautiful outwardly, and up-heaving to the sun their dead men's bones. To such we say,--*Remember the Missouri Question, and the fate of those who then sold the free states and their own birthright!*

Passing by the resolutions generally without remark--the attention of the reader is specially solicited to Mr. Clay's substitute for Mr. Calhoun's fifth resolution.

"Resolved, That when the District of Columbia was ceded by the states of Virginia and Maryland to the United States, domestic slavery existed in both of these states, including the ceded territory, and that, as it still continues in both of them, it could not be abolished within the District without a violation of that good faith, which was implied in the cession and in the acceptance of the territory; nor, unless compensation were made to

the proprietors of slaves, without a manifest infringement of an amendment to the constitution of the United States; nor without exciting a degree of just alarm and apprehension in the states recognizing slavery, far transcending in mischievous tendency, any possible benefit which could be accomplished by the abolition."

By advocating this resolution, the south shifted its mode of defence, not by taking a position entirely new, but by attempting to refortify an old one--abandoned mainly long ago, as being unable to hold out against assault however unskillfully directed. In the debate on this resolution, the southern members of Congress silently drew off from the ground hitherto maintained by them, *viz.*--that Congress has no power by the constitution to abolish slavery in the District.

The passage of this resolution--with the vote of every southern senator, forms a new era in the discussion of this question. We cannot join in the lamentations of those who bewail it. We hail it, and rejoice in it. It was as we would have had it--offered by a southern senator, advocated by southern senators, and on the ground that it "was no compromise"--that it embodied the true southern principle--that "this resolution stood on as high ground as Mr. Calhoun's."--(Mr. Preston)--"that Mr. Clay's resolution was as strong as Mr. Calhoun's"--(Mr. Rives)--that "the resolution he (Mr. Calhoun) now refused to support, was as strong as his own, and that in supporting it, there was no abandonment of principle by the south."--(Mr. Walker, of Mi.)--further, that it was advocated by the southern senators generally as an expression of their views, and as setting the question of slavery in the District on its *true* ground--that finally, when the question was taken, every slaveholding senator, including Mr. Calhoun himself, voted for the resolution.

By passing this resolution, and with such avowals, the south has unwittingly but explicitly, conceded the main point argued in the preceding pages, and surrendered the whole question at issue between them and the petitioners for abolition in the District.

The *only* ground taken against the right of Congress to abolish slavery in the District is, that it existed in Maryland and Virginia when the cession was made, and "*as it still continues in both of them*, it could not be abolished

without a violation of that good faith which was implied in the cession," &c. The argument is not that exclusive *sovereignty* has no power to abolish slavery within its jurisdiction, nor that the powers of even ordinary legislation cannot do it, nor that the clause granting Congress "exclusive legislation in all cases what soever over such District," gives no power to do it; but that the *unexpressed expectation* of one of the parties that the other would not "in all cases" use the power which said party had consented might be used "*in all cases,*" *prohibits* the use of it. The only cardinal point in the discussion, is here not only yielded, but formally laid down by the South as the leading article in their creed on the question of Congressional jurisdiction over slavery in the District. The reason given why Congress should not abolish, and the sole evidence that if it did, such abolition would be a violation of "good faith," is that "*slavery still continues in those states,*"--thus admitting, that if slavery did *not* "still continue" in those States, Congress could abolish it in the District. The same admission is made also in the *premises*, which state that slavery existed in those states *at the time of the cession*, &c. Admitting that if it had not existed there then, but had grown up in the District under United States' laws, Congress might constitutionally abolish it. Or that if the ceded parts of those states had been the *only* parts in which slaves were held under their laws, Congress might have abolished in such a contingency also. The cession in that case leaving no slaves in those states,--no "good faith" would be "implied" in it, nor any "violated" by an act of abolition. The resolution makes virtually this further admission, that if Maryland and Virginia should at once abolish their slavery, Congress might at once abolish it in the District. The principle goes even further than this, and *requires* Congress in such case to abolish slavery in the District "by the *good faith implied* in the cession and acceptance of the territory." Since, according to the spirit and scope of the resolution, this "implied good faith" of Maryland and Virginia in making the cession, was, that Congress would do nothing within the District which should counteract the policy, or discredit the "institutions," or call in question the usages, or even in any way ruffle the prejudices of those states, or do what *they* might think would unfavorably bear upon their interests; *themselves* of course being the judges.

But let us dissect another limb of the resolution. What is to be understood by "that good faith which was IMPLIED?" It is of course an admission that

such a condition was not *expressed* in the acts of cession--that in their terms there is nothing restricting the power of Congress on the subject of slavery in the District. This "implied faith," then, rests on no clause or word in the United States' Constitution, or in the acts of cession, or in the acts of Congress accepting the cession, nor on any declarations of the legislatures of Maryland and Virginia, nor on any *act* of theirs, nor on any declaration of the *people* of those states, nor on the testimony of the Washingtons, Jeffersons, Madisons, Chases, Martins, and Jennifers, of those states and times. The assertion rests *on itself alone!* Mr. Clay *guesses* that Maryland and Virginia *supposed* that Congress would by no means *use* the power given them by the Constitution, except in such ways as would be well pleasing in the eyes of those states; especially as one of them was the "Ancient Dominion!" And now after half a century, this *assumed expectation* of Maryland and Virginia, the existence of which is mere matter of conjecture with the 36 senators, is conjured up and duly installed upon the judgment-seat of final appeal, before whose nod constitutions are to flee away, and with whom, solemn grants of power and explicit guaranties are, when weighed in the balance, altogether lighter than vanity!

But survey it in another light. Why did Maryland and Virginia leave so much to be "*implied??*" Why did they not in some way *express* what lay so near their hearts? Had their vocabulary run so low that a single word could not be eked out for the occasion? Or were those states so bashful of a sudden that they dare not speak out and tell what they wanted? Or did they take it for granted that Congress would always know their wishes by intuition, and always take them for law? If, as honorable senators tell us, Maryland and Virginia did verily travail with such abounding *faith*, why brought they forth no *works*?

It is as true in legislation as in religion, that the only evidence of "faith" is works, and that "faith" *without* works is *dead*, *i.e.* has no *power*. But here, forsooth, a blind implication with nothing *expressed*, an "implied" faith without works, is omnipotent! Mr. Clay is lawyer enough to know that Maryland and Virginia notions of constitutional power, *abrogate no grant*, and that to plead them in a court of law, would be of small service, except to jostle "their Honors'" gravity! He need not be told that the Constitution gives Congress "power to exercise exclusive legislation in all cases whatsoever over such District;" nor that Maryland and Virginia constructed

their acts of cession with this clause *before their eyes*, and declared those acts made "in *pursuance*" of it. Those states knew that the U.S. Constitution had left nothing to be "*implied*" as to the power of Congress over the District; an admonition quite sufficient, one would think, to put them on their guard, and lead them to eschew vague implications, and to resort to *stipulations*. They knew, moreover, that those were times when, in matters of high import, *nothing* was left to be "implied." The colonies were then panting from a twenty years' conflict with the mother country, about bills of rights, charters, treaties, constitutions, grants, limitations, and *acts of cession*. The severities of a long and terrible discipline had taught them to guard at all points *legislative grants*, that their exact import and limit might be self-evident--leaving no scope for a blind "faith" that *somehow* in the lottery of chances, every ticket would turn up a prize. Toil, suffering, blood, and treasure outpoured like water over a whole generation, counselled them to make all sure by the use of explicit terms, and well chosen words, and just enough of them. The Constitution of the United States, with its amendments, those of the individual states, the national treaties, and the public documents of the general and state governments at that period, show the universal conviction of legislative bodies, that nothing should be left to be "implied," when great public interests were at stake.

Further: suppose Maryland and Virginia had expressed their "implied faith" in *words*, and embodied it in their acts of cession as a proviso, declaring that Congress should not "exercise exclusive legislation in *all* cases whatsoever over the District," but that the "case" of *slavery* should be an exception: who does not know that Congress, if it had accepted the cession on those terms, would have violated the Constitution; and who that has studied the free mood of those times in its bearings on slavery--proofs of which are given in scores on the preceding pages--[See pp. 25-37.] can be made to believe that the people of the United States would have remodelled their Constitution for the purpose of providing for slavery an inviolable sanctuary; that when driven in from its outposts, and everywhere retreating discomfited before the march of freedom, it might be received into everlasting habitations on the common homestead and hearth-stone of the republic? Who can believe that Virginia made such a condition, or cherished such a purpose, when Washington, Jefferson, Wythe, Patrick Henry, St. George Tucker, and all her most illustrious men, were at that

moment advocating the abolition of slavery by law; when Washington had said, two years before, that Maryland and Virginia "must have laws for the gradual abolition of slavery, and at a period *not remote*;" and when Jefferson in his letter to Dr. Price, three years before the cession, had said, speaking of Virginia, "This is the next state to which we may turn our eyes for the interesting spectacle of justice in conflict with avarice and oppression--a conflict in which THE SACRED SIDE IS GAINING DAILY RECRUITS;" when voluntary *emancipations* on the soil were then progressing at the rate of between one and two thousand annually, (See Judge Tucker's "Dissertation on Slavery," p. 73;) when the public sentiment of Virginia had undergone, so mighty a revolution that the idea of the continuance of slavery as a permanent system could not be tolerated, though she then contained about half the slaves in the Union. Was this the time to stipulate for the *perpetuity* of slavery under the exclusive legislation of Congress? and that too when at the *same* session *every one* of her delegation voted for the abolition of slavery in the North West Territory; a territory which she herself had ceded to the Union, and surrendered along with it her jurisdiction over her citizens, inhabitants of that territory, who held slaves there--and whose slaves were emancipated by that act of Congress, in which all her delegation with one accord participated?

Now in view of the universal belief then prevalent, that slavery in this country was doomed to short life, and especially that in Maryland and Virginia it would be *speedily* abolished--must we adopt the monstrous conclusion that those states *designed* to bind Congress *never* to terminate it? --that it was the *intent* of the Ancient Dominion thus to *bind* the United States by an "implied faith," and that when the national government *accepted* the cession, she did solemnly thus plight her troth, and that Virginia did then so *understand* it? Verily, honorable senators must suppose themselves deputed to do our *thinking* for us as well as our legislation, or rather, that they are themselves absolved from such drudgery by virtue of their office!

Another absurdity of this "implied faith" dogma is, that where there was no power to exact an *express* pledge, there was none to demand an *implied* one, and where there was no power to give the one, there was none to give the other. We have shown already that Congress could not have accepted the cession with such a condition. To have signed away a part of its

constitutional grant of power would have been a *breach* of the Constitution. The Congress which accepted the cession was competent to pass a resolution pledging itself not to *use all* the power over the District committed to it by the Constitution. But here its power ended. Its resolution could only bind *itself*. It had no authority to bind a subsequent Congress. Could the members of one Congress say to those of another, because we do not choose to exercise all the authority vested in us by the Constitution, therefore you *shall* not? This would, have been a prohibition to do what the Constitution gives power to do. Each successive Congress would still have gone to THE CONSTITUTION for its power, brushing away in its course the cobwebs stretched across its path by the officiousness of an impertinent predecessor. Again, the legislatures of Virginia and Maryland, had no power to bind Congress, either by an express or an implied pledge, never to abolish slavery in the District. Those legislatures had no power to bind *themselves* never to abolish slavery within their own territories--the ceded parts included. Where then would they get power to bind *another* not to do what they had no power to bind *themselves* not to do? If a legislature could not in this respect control the successive legislatures of its own State, could it control the successive Congresses of the United States?

But perhaps we shall be told, that the "implied faith" of Maryland and Virginia was *not* that Congress should *never* abolish slavery in the District, but that it should not do it until *they* had done it within their bounds! Verily this "faith" comes little short of the faith of miracles! Maryland and Virginia have "good faith" that Congress will not abolish until *they* do; and then just as "good faith" that Congress *will* abolish *when* they do! Excellently accommodated! Did those states suppose that Congress would legislate over the national domain, for Maryland and Virginia alone? And who, did they suppose, would be judges in the matter?--themselves merely? or the whole Union?

This "good faith implied in the cession" is no longer of doubtful interpretation. The principle at the bottom of it, when fairly stated, is this:-- That the Government of the United States are bound in "good faith" to do in the District of Columbia, without demurring, just what and when, Maryland and Virginia do within their own bounds. In short, that the general government is eased of all the burdens of legislation within its exclusive jurisdiction, save that of hiring a scrivener to copy off the acts of the

Maryland and Virginia legislatures as fast as they are passed, and engross them, under the title of "Laws of the United States for the District of Columbia!" A slight additional expense would also be incurred in keeping up an express between the capitols of those States and Washington city, bringing Congress from time to time its "*instructions*" from head quarters!

What a "glorious Union" this doctrine of Mr. Clay bequeaths to the people of the United States! We have been permitted to set up at our own expense, and on our own territory, two great *sounding-boards* called "Senate Chamber" and "Representatives' Hall," for the purpose of sending abroad "by authority" *national* echoes of *state* legislation! --permitted also to keep in our pay a corps of pliant *national* musicians, with peremptory instructions to sound on any line of the staff according as Virginia and Maryland may give the sovereign key note!

A careful analysis of Mr. Clay's resolution and of the discussions upon it, will convince every fair mind that this is but the legitimate carrying out of the *principle* pervading both. They proceed virtually upon the hypothesis that the will and pleasure of Virginia and Maryland are paramount to those of the Union. If the original design of setting apart a federal district had been for the sole accommodation of the south, there could hardly have been higher assumption or louder vaunting. The only object of *having* such a District was in effect totally perverted in the resolution of Mr. Clay, and in the discussions of the entire southern delegation, upon its passage. Instead of taking the ground, that the benefit of the whole Union was the sole *object* of a federal district, and that it was to be legislated over *for this end*--the resolution proceeds upon an hypothesis totally the reverse. It takes a single point of *state* policy, and exalts it above NATIONAL interests, utterly overshadowing them; abrogating national rights; making void a clause of the Constitution; humbling the general government into a subject crouching for favors to a superior, and that too within its own exclusive jurisdiction. All the attributes of sovereignty vested in Congress by the Constitution, it impales upon the point of an alleged *implication*. And this is Mr. Clay's peace-offering, to the lust of power and the ravings of state encroachment! A "compromise," forsooth! that sinks the general government on *its own territory*, into a mere colony, with Virginia and Maryland for its "mother country!" It is refreshing to turn from these shallow, distorted constructions and servile cringings, to the high bearing of

other southern men in other times; men, who as legislators and lawyers, scorned to accommodate their interpretations of constitutions and charters to geographical lines, or to bend them to the purposes of a political canvass. In the celebrated case of *Cohens vs. the State of Virginia*, Hon. William Pinkney, late of Baltimore, and Hon. Walter Jones, of Washington city, with other eminent constitutional lawyers, prepared an elaborate opinion, from which the following is an extract: "Nor is there any danger to be apprehended from allowing to Congressional legislation with regard to the District of Columbia, its FULLEST EFFECT. Congress is responsible to the States, and to the people for that legislation. It is in truth the legislation of the states over a district placed under their control FOR THEIR OWN BENEFIT, not for that of the District, except as the prosperity of the District is involved, and *necessary to the general advantage*."--[Life of Pinkney, p. 612.]

This profound legal opinion asserts, 1st, that Congressional legislation over the District, is "the legislation of the *states* and the *people*." (not of *two* states, and a mere *fraction* of the people;) 2d. "Over a District placed under *their* control," i.e. under the control of *all* the States, not of *two twenty-sixths* of them. 3d. That it was thus put under their control "*for THEIR OWN benefit*." 4th. It asserts that the design of this exclusive control of Congress over the District was "not for the benefit of the *District*," except as that is *connected* with, and *a means of promoting* the *general* advantage. If this is the case with the *District*, which is *directly* concerned, it is pre-eminently so with Maryland and Virginia, which are but *indirectly* interested. The argument of Mr. Madison in the Congress of '89, an extract from which has been given on a preceding page, lays down the same principle; that though any matter "*may be a local affair, yet if it involves national EXPENSE or SAFETY, it becomes of concern to every part of the union, and is a proper subject for the consideration of those charged with the general administration of the government*."--Cong. Reg. vol. 1. p. 310.

But these are only the initiatory absurdities of this "good faith *implied*." Mr. Clay's resolution aptly illustrates the principle, that error not only conflicts with truth, but is generally at issue with itself: For if it would be a violation of "good faith" to Maryland and Virginia, for Congress to abolish slavery in the District, it would be *equally* a violation for Congress to do it *with the consent*, or even at the unanimous petition of the people of the District: yet

for years it has been the southern doctrine, that if the people of the District demand of Congress relief in this respect, it has power, as their local legislature, to grant it, and by abolishing slavery there, carry out the will of the citizens. But now new light has broken in! The optics of Mr. Clay have pierced the millstone with a deeper insight, and discoveries thicken faster than they can be telegraphed! Congress has no power, O no, not a modicum! to help the slaveholders of the District, however loudly they may clamor for it. The southern doctrine, that Congress is to the District a mere local Legislature to do its pleasure, is tumbled from the genitive into the vocative! Hard fate--and that too at the hands of those who begat it! The reasonings of Messrs. Pinckney and Wise, are now found to be wholly at fault, and the chancery rhetoric of Messrs. Glascock and Garland stalks featherless and crest-fallen. For the resolution sweeps by the board all those stereotyped common-places, such as "Congress a local Legislature," "consent of the District," "bound to consult the wishes of the District," with other catch phrases, which for the last two sessions of Congress have served to eke out scanty supplies. It declares, that as slavery existed in *Maryland and Virginia at the time of the cession, and as it still continues in both those states*, it could not be abolished in the District without a violation of "that good faith," &c.

But let us see where this principle will lead us. If "implied faith" to Maryland and Virginia *restrains* Congress from the abolition of slavery in the District, because those states have not abolished *their* slavery, it *requires* Congress to do in the District what those states have done within their own limits, *i.e.*, restrain *others* from abolishing it. Upon the same principle Congress is *bound to prohibit emancipation* within the District. There is no *stopping place* for this plighted "faith." Congress must not only refrain from laying violent hands on slavery, and see to it that the slaveholders themselves do not, but it is bound to keep the system up to the Maryland and Virginia standard of vigor!

Again, if the good faith of Congress to Virginia and Maryland requires that slavery should exist in the District, while it exists in those states, it requires that it should exist there as it exists in those states. If to abolish *every* form of slavery in the District would violate good faith, to abolish *the* form existing in those states, and to substitute a different one, would also violate it. The Congressional "good faith" is to be kept not only with *slavery*, but

with the *Maryland and Virginia* systems of slavery. The faith of those states being not that Congress would maintain a system, but *their* system; otherwise instead of *sustaining*, Congress would counteract their policy--principles would be brought into action there conflicting with their system, and thus the true sprit of the "implied" pledge would be violated. On this principle, so long as slaves are "chattels personal" in Virginia and Maryland, Congress could not make them *real estate* in the District, as they are in Louisiana; nor could it permit slaves to read, nor to worship God according to conscience; nor could it grant them trial by jury, nor legalize marriage; nor require the master to give sufficient food and clothing; nor prohibit the violent sundering of families--because such provisions would conflict with the existing slave laws of Virginia and Maryland, and thus violate the "good faith implied," &c. So the principle of the resolution binds Congress in all these particulars: 1st. Not to abolish slavery in the District *until* Virginia and Maryland abolish. 2d. Not to abolish any *part* of it that exists in those states. 3d. Not to abolish any *form* or *appendage* of it still existing in those states. 4th. To *abolish* when they do. 5th. To increase or abate its rigors *when, how, and as* the same are modified by those states. In a word, Congressional action in the District is to float passively in the wake of legislative action on the subject in those states.

But here comes a dilemma. Suppose the legislation of those states should steer different courses--then there would be *two* wakes! Can Congress float in both? Yea, verily! Nothing is too hard for it! Its obsequiousness equals its "power of legislation in *all* cases whatsoever." It can float *up* on the Virginia tide, and ebb down on the Maryland. What Maryland does, Congress will do in the Maryland part. What Virginia does, Congress will do in the Virginia part. Though it might not always be able to run at the bidding of both *at once*, especially in different directions, yet if it obeyed orders cheerfully, and "kept in its place," according to its "good faith implied," impossibilities might not be rigidly exacted. True, we have the highest sanction for the maxim that no *man* can serve two masters--but if "corporations have no souls," analogy would absolve Congress on that score, or at most give it only a *very small soul*--not large enough to be at all in the way, as an exception to the universal rule laid down in the maxim!

In following out the absurdities of this "implied good faith," it will be seen at once that the doctrine of Mr. Clay's Resolution extends to *all the subjects*

of legislation existing in Maryland and Virginia, which exist also within the District. Every system, "institution," law, and established usage there, is placed beyond Congressional control equally with slavery, and by the same "implied faith." The abolition of the lottery system in the District as an immorality, was a flagrant breach of this "good faith" to Maryland and Virginia, as the system "still continued in those states." So to abolish imprisonment for debt, or capital punishment, to remodel the bank system, the power of corporations, the militia law, laws of limitation, &c., in the District, *unless Virginia and Maryland took the lead*, would violate the "good faith implied in the cession."

That in the acts of cession no such "good faith" was "implied" by Virginia and Maryland as is claimed in the Resolution, we argue from the fact, that in 1784 Virginia ceded to the United States all her north-west territory, with the special proviso that her citizens inhabiting that territory should "have their *possessions and titles* confirmed to them, and be *protected* in the enjoyment of their *rights* and liberties." (See Journals of Congress, vol. 9, p. 63.) The cession was made in the form of a deed, and signed by Thomas Jefferson, Samuel Hardy, Arthur Lee, and James Munroe. Many of these inhabitants *held slaves*. Three years after the cession, the Virginia delegation in Congress *proposed* the passage of an ordinance which should abolish slavery, in that territory, and declare that it should never thereafter exist there. All the members of Congress from Virginia and Maryland voted for this ordinance. Suppose some member of Congress had during the passage of the ordinance introduced the following resolution: "Resolved, that when the northwest territory was ceded by Virginia to the United States, domestic slavery existed in that State, including the ceded territory, and as it still continues in that State, it could not be abolished within the territory without a violation of that good faith, which was implied in the cession and in the acceptance of the territory." What would have been the indignant response of Grayson, Griffin, Madison, and the Lees, in the Congress of '87, to such a resolution, and of Carrington, Chairman of the Committee, who reported the ratification of the ordinance in the Congress of '89, and of Page and Parker, who with every other member of the Virginia delegation supported it?

But to enumerate all the absurdities into which those interested for this resolution have plunged themselves, would be to make a quarto inventory.

We decline the task; and in conclusion merely add, that Mr. Clay, in presenting it, and each of the thirty-six Senators who voted for it, entered on the records of the Senate, and proclaimed to the world, a most unworthy accusation against the millions of American citizens who have during nearly half a century petitioned the national legislature to abolish slavery in the District of Columbia,--charging them either with the ignorance or the impiety of praying the nation to violate its "Plighted Faith." The resolution virtually indicts at the bar of public opinion, and brands with odium, all the early Manumission Societies, the *first* petitioners for the abolition of slavery in the District, and for a long time the only ones, petitioning from year to year through evil report and good report, still petitioning, by individual societies and in their national conventions.

But as if it were not enough to table the charge against such men as Benjamin Rush, William Rawle, John Sergeant, Roberts Vaux, Cadwallader Colden, and Peter A. Jay,--to whom we may add Rufus King, James Hillhouse, William Pinkney, Thomas Addis Emmett, Daniel D. Tompkins, De Witt Clinton, James Kent, and Daniel Webster, besides eleven hundred citizens of the District itself, headed by their Chief Justice and Judges--even the sovereign States of Pennsylvania, New-York, Massachusetts, Vermont, and Connecticut, whose legislatures have either memorialized Congress to abolish slavery in the District, or instructed their Senators to move such a measure, must be gravely informed by Messrs. Clay, Norvell, Niles, Smith, Pierce, Benton, Black, Tipton, and other honorable Senators, either that their perception is so dull, they know not whereof they affirm, or that their moral sense is so blunted they can demand without compunction a violation of the nation's faith!

We have spoken already of the concessions unwittingly made in this resolution to the true doctrine of Congressional power over the District. For that concession, important as it is; we have small thanks to render. That such a resolution, passed with such an *intent*, and pressing at a thousand points on relations and interests vital to the free states, should be hailed, as it has been, by a portion of the northern press as a "compromise" originating in deference to northern interests, and to be received by us as a free-will offering of disinterested benevolence, demanding our gratitude to the mover,--may well cover us with shame. We deserve the humiliation and have well earned the mockery. Let it come!

If, after having been set up at auction in the public sales-room of the nation, and for thirty years, and by each of a score of "compromises," treacherously knocked off to the lowest bidder, and that without money and without price, the North, plundered and betrayed, *will not*, in this her accepted time, consider the things that belong to her peace before they are hidden from her eyes, then let her eat of the fruit of her own way, and be filled with her own devices! Let the shorn and blinded giant grind in the prison-house of the Philistines, till taught by weariness and pain the folly of entrusting to Delilahs the secret and the custody of his strength.

Have the free States bound themselves by an oath never to profit by the lessons of experience? If lost to reason, are they dead to *instinct* also? Can nothing rouse them to cast about for self preservation? And shall a life of tame surrenders be terminated by suicidal sacrifice?

A "COMPROMISE!" Bitter irony! Is the plucked and hoodwinked North to be wheedled by the sorcery of another Missouri compromise? A compromise in which the South gained all, and the North lost all, and lost it forever. A compromise which embargoed the free laborer of the North and West, and, clutched at the staff he leaned upon, to turn it into a bludgeon and fell him with its stroke. A compromise which wrested from liberty her boundless birthright domain, stretching westward to the sunset, while it gave to slavery loose reins and a free coarse, from the Mississippi to the Pacific.

The resolution, as it finally passed, is here inserted.

"Resolved, That the interference by the citizens of any of the states, with the view to the abolition of slavery in the District, is endangering the rights and security of the people of the District; and that any act or measure of Congress designed to abolish slavery in the District, would be a violation of the faith implied in the *cessions* by the states of Virginia and Maryland, a just cause of alarm to the people of the slaveholding states, and have a direct and inevitable tendency to disturb and endanger the Union."

The vote upon the resolution stood as follows:

Yeas.--Messrs. Allen, Bayard, Benton, Black, Buchanan, Brown, Calhoun, Clay of Alabama, Clay of Kentucky, Clayton, Crittenden, Cuthbert, Fulton,

Grundy, Hubbard, King, Lumpkin, Lyon, Nicholas. Niles, Norvell, Pierce, Preston, Rives, Roane, Robinson, Sevier, Smith, of Connecticut, Strange, Tallmadge, Tipton, Walker, White, Williams, Wright, Young--36.

Nays.--Messrs. DAVIS, KNIGHT, McKEAN, MORRIS, PRENTISS, RUGGLES, SMITH, of Indiana, SWIFT, WEBSTER--9.

* * * * *

ANTI-SLAVERY EXAMINER. No. 6.

NARRATIVE OF JAMES WILLIAMS, AN AMERICAN SLAVE.

ONE DOLLAR PER 100] [143 NASSAU ST. N.Y.

* * * * *

PREFACE.

"American Slavery," said the celebrated John Wesley, "is the *vilest* beneath the sun!" Of the truth of this emphatic remark, no other proof is required, than an examination of the statute books of the American slave states. Tested by its own laws, in all that facilitates and protects the hateful process of converting a man into a "*chattel personal*;" in all that stamps the law-maker, and law-upholder with meanness and hypocrisy, it certainly has no present rival of its "bad eminence," and we may search in vain the history of a world's despotism for a parallel. The civil code of Justinian never acknowledged, with that of our democratic despotisms, the essential equality of man. The dreamer in the gardens of Epicurus recognized neither in himself, nor in the slave who ministered to his luxury, the immortality of

the spiritual nature. Neither Solon nor Lycurgus taught the inalienability of human rights. The Barons of the Feudal System, whose maxim was emphatically that of Wordsworth's robber,

"That he should take who had the power,
And he should keep who can."

while trampling on the necks of their vassals, and counting the life of a man as of less value than that of a wild beast, never appealed to God for the sincerity of their belief, that all men were created equal. It was reserved for American slave-holders to present to the world the hideous anomaly of a code of laws, beginning with the emphatic declaration of the inalienable rights of all men to life, liberty, and the pursuit of happiness, and closing with a deliberate and systematic denial of those rights, in respect to a large portion of their countrymen; engrossing on the same parchment the antagonist laws of liberty and tyranny. The very nature of this unnatural combination has rendered it necessary that American slavery, in law and in practice, should exceed every other in severity and cool atrocity. The masters of Greece and Rome permitted their slaves to read and write and worship the gods of paganism in peace and security, for there was nothing in the laws, literature, or religion of the age to awaken in the soul of the bondman a just sense of his rights as a man. But the American slaveholder cannot be thus lenient. In the excess of his benevolence, as a political propagandist, he has kindled a fire for the oppressed of the old world to gaze at with hope, and for crowned heads and dynasties to tremble at; but a due regard to the safety of his "peculiar institution," compels him to put out the eyes of his own people, lest they too should see it. Calling on all the world to shake off the fetters of oppression, and wade through the blood of tyrants to freedom, he has been compelled to smother, in darkness and silence, the minds of his own bondmen, lest they too should hear and obey the summons, by putting the knife to his own throat.--Proclaiming the truths of Divine Revelation, and sending the Scriptures to the four quarters of the earth, he has found it necessary to maintain heathenism at home by special enactments; and to make the second offence of teaching his slaves the message of salvation punishable with *death*!

What marvel then that American slavery even on the *statute book* assumes the right to transform moral beings into brutes:[[A](#)] that it legalizes man's

usurpation of Divine authority; the substitution of the will of the master, for the moral government of God: that it annihilates the rights of conscience; debars from the enjoyment of religious rights and privileges by specific enactments; and enjoins disobedience to the Divine lawgiver: that it discourages purity and chastity, encourages crime, legalizes concubinage; and, while it places the slave entirely in the hands of his master, provides no real protection for his life or his person.

[Footnote [A](#): The *cardinal principle* of slavery, that a slave is not to be ranked among sentient beings, but among things, as an article of property, a chattel personal, obtains as undoubted law, in all the slave states. (Judge Stroud's Sketch of Slave Laws, p. 22.)]

But it may be said, that these laws afford no certain evidence of the actual condition of the slaves: that, in judging the system by its code, no allowance is made for the humanity of individual masters. It was a just remark of the celebrated Priestley, that "*no people ever were found to be better than their laws, though many have been known to be worse.*" All history and common experience confirm this. Besides, admitting that the legal severity of a system may be softened in the practice of the humane, may it not also be aggravated by that of the avaricious and cruel?

But what are the testimony and admissions of slaveholders themselves on this point? In an Essay published in Charleston, S.C., in 1822, and entitled "A Refutation of the Calumnies circulated against the Southern and Western States," by the late Edwin C. Holland, Esq., it is stated, that "all slaveholders have laid down non-resistance, and perfect and uniform *obedience* to their orders as fundamental principles in the government of their slaves:" that this is "a *necessary* result of the relation," and "*unavoidable.*" Robert J. Turnbull, Esq., of South Carolina, in remarking upon the management of slaves, says, "The only principle upon which may authority over them, (the slaves,) can be maintained is *fear*, and he who denies this has little knowledge of them." To this may be added the testimony of Judge Ruffin, of North Carolina, as quoted in Wheeler's Law of Slavery, p. 217. "The slave, to remain a slave, must feel that there is *no appeal from his master*. No man can anticipate the provocations which the slave would give, nor the consequent wrath of the master, prompting him to

BLOODY VENGEANCE on the turbulent traitor, a vengeance *generally* practised with impunity by reason of its *privacy*."

In an Essay on the "improvement of negroes on plantations," by Rev. Thomas S. Clay, a slaveholder of Bryan county, Georgia, and Printed at the request of the Georgia Presbytery, in 1833, we are told "that the present economy of the slave system is *to get all you can* from the slave, and give him in return *as little as will barely support him in a working condition!*" Here, in a few words, the whole enormity of slavery is exposed to view: "*to get all you can* from the slave"--by means of whips and forks and irons--by every device for torturing the body, without destroying its capability of labor; and in return give him as little of his coarse fare as will keep him, like a mere beast of burden, in a "*working condition*;" this is slavery, as explained by the slaveholder himself. Mr. Clay further says: "*Offences against the master* are more severely punished than violations of the law of God, a fault which affects the slave's personal character a good deal. As examples we may notice, that *running away* is more severely punished than adultery." "He (the slave) only knows his master as lawgiver and executioner, and the *sole object of punishment* held up to his view, is to make him *a more obedient and profitable slave*."

Hon. W.B. Seabrook, in an address before the Agricultural Society of St. John's, Colleton, published by order of the Society, at Charleston, in 1834, after stating that "as Slavery exists in South Carolina, the action of the citizens should rigidly conform to that state of things:" and, that "*no abstract opinions of the rights of man* should be allowed in any instance to modify the *police system of a plantation*," proceeds as follows. "*He* (the slave) *should be practically treated as a slave*; and thoroughly taught the true cardinal principle on which our peculiar institutions are founded, viz.; that to his owner he is bound by the law of God and man; and that no human authority can sever the link which unites them. The great aim of the slaveholder, then, should be to keep his people in strict *subordination*. In this, it may in truth be said, lies his *entire duty*." Again, in speaking of the punishments of slaves, he remarks: "If to our army the disuse of THE LASH has been prejudicial, to the slaveholder it would operate to deprive him of the MAIN SUPPORT of his authority. For the first class of offences, I consider imprisonment in THE STOCKS[[A](#)] at night, with or without hard labor by day, as a powerful auxiliary in the cause of *good government*."

"*Experience* has convinced me that there is no punishment to which the slave looks with more horror, than that upon which I am commenting, (the stocks,) and none which has been attended with happier results."

[Footnote [A](#): Of the nature of this punishment in the stocks, something may be learned by the following extract of a letter from a gentleman in Tallahassee, Florida, to the editor of the Ohio Atlas, dated June 9, 1835: "A planter, a *professer* of religion, in conversing upon the universality of whipping, remarked, that a planter in G____, who had whipped a great deal, at length got tired of it, and invented the following *excellent* method of punishment, which I saw practised while I was paying him a visit. The negro was placed in a sitting position, with his hands made fast above his head, and his feet in the stocks, so that he could not move any part of the body. The master retired, intending to leave him till morning, but we were awakened in the night by the groans of the negro, which were so doleful that we feared he was dying. We went to him, and found him covered with a cold sweat, and almost gone. He could not have lived an hour longer. Mr. -- -- found the 'stocks' such an effective punishment, that it almost superseded the whip."]

There is yet another class of testimony quite as pertinent as the foregoing, which may at any time be gleaned from the newspapers of the slave states--the advertisements of masters for their runaway slaves, and casual paragraphs coldly relating cruelties, which would disgrace a land of Heathenism. Let the following suffice for a specimen:

* * * * *

To the Editors of the Constitutionalist.

Aiken, S.C., Dec. 20, 1836.

I have just returned from an inquest I held over the dead body of a negro man, a runaway, that was shot near the South Edisto, in this district, (Barnwell,) on Saturday morning last. He came to his death by his own recklessness. He refused to be taken alive; and said that other attempts to

take him had been made, and he was determined that he would not be taken. When taken he was nearly naked--had a large dirk or knife and a heavy club. He was at first, (when those who were in pursuit of him found it absolutely necessary,) shot at with small shot, with the intention of merely crippling him. He was shot at several times, and at last he was so disabled as to be compelled to surrender. He kept in the run of a creek in a very dense swamp all the time that the neighbors were in pursuit of him. As soon as the negro was taken, the best medical aid was procured, but he died on the same evening. One of the witnesses at the inquisition stated that the negro boy said that he was from Mississippi, and belonged to so many persons he did not know who his master was; but again he said his master's name was *Brown*. He said his own name was Sam; and when asked by another witness who his master was, he muttered something like Augusta or Augustine. The boy was apparently above 35 or 40 years of age--about six feet high--slightly yellow in the face--very long beard or whiskers--and very stout built, and a stern countenance; and appeared to have been run away a long time.

WILLIAM H. PRITCHARD,

Coroner, (ex officio,) Barnwell Dist., S.C.

The Mississippi and other papers will please copy the above.--*Georgia Constitutionalist*.

* * * * *

\$100 REWARD.--Ran away from the subscriber, living on Herring Bay, Ann Arundel county, *Md.*, on Saturday, 28th January, negro man Elijah, who calls himself Elijah Cook, is about 21 years of age, well made, of a very dark complexion has an impediment in his speech, and *a scar on his left cheek bone, apparently occasioned by a shot.*

J. SCRIVENER. Annapolis (*Md.*) Rep., Feb., 1837.

* * * *

\$40 REWARD.--Ran away from my residence near Mobile, two negro men, Isaac and Tim. Isaac is from 25 to 30 years old, dark complexion, scar on the right side of the head, and also one on the right side of the body, occasioned by BUCK SHOT. Tim is 22 years old, dark complexion, scar on the right cheek, as also another on the back of the neck. Captains and owners of steamboats, vessels, and water crafts of every description, are cautioned against taking them on board under the penalty of the law; and all other persons against harboring or in any manner favoring the escape of said negroes under like penalty.

Mobile, Sept. 1. SARAH WALSH. Montgomery (Ala.) Advertiser, Sept. 29, 1837.

* * * *

\$200 REWARD.--Ran away from the subscriber, about three years ago, a certain negro man named Ben, (commonly known by the name of Ben Fox.) He is about five feet five or six inches high, chunky made, yellow complexion, and has but one eye. Also, one other negro, by the name of Rigdon, who ran away on the 8th of this month. He is stout made, tall, and very black, with large lips.

I will give the reward of one hundred dollars for each of the above negroes, to be delivered to me or confined in the jail of Lenoir or Jones county, or *for the killing of them so that I can see them.* Masters of vessels and all others are cautioned against harboring, employing, or carrying them away, under the penalty of the law.

W.D. COBB. *Lenoir county, N.C., Nov. 12, 1836.*

* * * *

"A negro who had absconded from his master, and for who a reward was offered of \$100, has been apprehended and committed to prison in Savannah, Georgia. The Editor who states the fact, adds, with as much coolness as though there was no barbarity in the matter, that he did not surrender until he was considerably *maimed by the dogs*[\[A\]](#) that had been set on him,--desperately fighting them, one of which he cut badly with a sword."

New-York Commercial Advertiser, June, 8, 1827.

[Footnote [A](#): In regard to the use of bloodhounds, for the recapture of runaway slaves, we insert the following from the New-York Evangelist, being an extract of a letter from Natchez (Miss.) under date of January 31, 1835: "An instance was related to me in Claiborne County, in Mississippi. A runaway was heard about the house in the night. The hound was put upon his track, and in the morning was found watching the dead body of the negro. The dogs are trained to this service when young. A negro is directed to go into the woods and secure himself upon a tree. When sufficient time has elapsed for doing this, the hound is put upon his track. The blacks are compelled to worry them until they make them their implacable enemies: and it is common to meet with dogs which will take no notice of whites, though entire strangers, but will suffer no blacks beside the house servants to enter the yard."]

* * * * *

From the foregoing evidence on the part of slaveholders themselves, we gather the following facts:

1. That perfect obedience is required of the slave--that he is made to feel that there is no appeal from his master.
2. That the authority of the master is only maintained by fear--a "*reign of terror*."

3. That "the economy of slavery is to *get all you can* from the slave, and give him in return as little as will barely support him in a working condition."
4. That runaway slaves may be shot down with impunity by any white person.
5. That masters offer rewards for "*killing*" their slaves, "*so that they may see them!*"
6. That slaves are branded with hot irons, and very much scarred with the whip.
7. That *iron collars*, with projecting prongs, rendering it almost impossible for the wearer to lie down, are fastened upon the *necks of women*.
8. That the LASH is the MAIN SUPPORT of the slaveholder's authority: but, that the *stocks* are "a powerful auxiliary" to his government.
9. That runaway slaves are chased with dogs--men hunted like beasts of prey.

Such is American Slavery in practice.

The testimony thus far adduced is only that of the slaveholder and wrong-doer himself: the admission of men who have a direct interest in keeping out of sight the horrors of their system. It is besides no voluntary admission. Having "framed iniquity by law," it is out of their power to hide it. For the recovery of their runaway property, they are compelled to advertise in the public journals, and that it may be identified, they are under the necessity of describing the marks of the whip on the backs of women, the iron collars about the neck--the gun-shot wounds, and the traces of the branding-iron. Such testimony must, in the nature of things, be partial and incomplete. But for a full revelation of the secrets of the prison-house, we must look to the slave himself. The Inquisitors of Goa and Madrid never disclosed the peculiar atrocities of their "hall of horrors." It was the escaping heretic, with his swollen and disjointed limbs, and bearing about him the scars of rack and fire, who exposed them to the gaze and abhorrence of Christendom.

The following pages contain the simple and unvarnished story of an AMERICAN SLAVE,--of one, whose situation, in the first place, as a favorite servant in an aristocratic family in Virginia; and afterwards as the sole and confidential driver on a large plantation in Alabama, afforded him rare and peculiar advantages for accurate observation of the practical workings of the system. His intelligence, evident candor, and grateful remembrance of those kindnesses, which in a land of Slavery, made his cup of suffering less bitter; the perfect accordance of his statements, (made at different times, and to different individuals),[B] one with another, as well as those statements themselves, all afford strong confirmation of the truth and accuracy of his story. There seems to have been no effort, on his part to make his picture of Slavery one of entire darkness--he details every thing of a mitigating character which fell under his observation; and even the cruel deception of his master has not rendered him unmindful of his early kindness.

[Footnote B: The reader is referred to JOHN G. WHITTIER, of Philadelphia, or to the following gentlemen, who have heard the whole, or a part of his story, from his own lips: Emmor Kimber, of Kimberton, Pa., Lindley Coates, of Lancaster Co., do.; James Mott, of Philadelphia, Lewis Tappan, Elizur Wright Jun., Rev. Dr. Follen, and James G. Birney, of New York. The latter gentleman, who was a few years ago, a citizen of Alabama, assures us that the statements made to him by James Williams, were such as he had every reason to believe, from his own knowledge of slavery in that State.]

The editor is fully aware that he has not been able to present this affecting narrative in the simplicity and vivid freshness with which it fell from the lips of the narrator. He has, however, as closely as possible, copied his manner, and in many instances his precise language. THE SLAVE HAS SPOKEN FOR HIMSELF. Acting merely as his amanuensis, he has carefully abstained from comments of his own.[A]

[Footnote A: As the narrator was unable to read or write, it is quite possible that the orthography of some of the names of individuals mentioned in his story may not be entirely correct. For instance, the name of his master may have been either Larrimer, or Larrimore.]

The picture here presented to the people of the free states, is, in many respects, a novel one. We all know something of Virginia and Kentucky Slavery. We have heard of the internal slave trade--the pangs of separation--the slave ship with its "cargo of despair" bound for the New-Orleans market--the weary journey of the chained Coflle to the cotton country. But here, in a great measure, we have lost sight of the victims of avarice and lust. We have not studied the dreadful economy of the cotton plantation, and know but little of the secrets of its unlimited despotism.

But in this narrative the scenes of the plantation rise before us, with a distinctness which approaches reality. We hear the sound of the horn at daybreak, calling the sick and the weary to toil unrequited. Woman, in her appealing delicacy and suffering, about to become a mother, is fainting under the lash, or sinking exhausted beside her cotton row. We hear the prayer for mercy answered with sneers and curses. We look on the instruments of torture, and the corpses of murdered men. We see the dogs, reeking hot from the chase, with their jaws foul with human blood. We see the meek and aged Christian scarred with the lash, and bowed down with toil, offering the supplication of a broken heart to his Father in Heaven, for the forgiveness of his brutal enemy. We hear, and from our inmost hearts repeat the affecting interrogatory of the aged slave, *"How long, Oh Lord! how long!"*

The editor has written out the details of this painful narrative with feelings of sorrow. If there be any who feel a morbid satisfaction in dwelling upon the history of outrage and cruelty, he at least is not one of them. His taste and habits incline him rather to look to the pure and beautiful in our nature--the sunniest side of humanity--its kindly sympathies--its holy affections--its charities and its love. But, it is because he has seen that all which is thus beautiful and excellent in mind and heart, perishes in the atmosphere of slavery: it is because humanity in the slave sinks down to a level with the brute and in the master gives place to the attributes of a fiend--that he has not felt at liberty to decline the task. He cannot sympathize with that abstract and delicate philanthropy, which hesitates to bring itself in contact with the sufferer, and which shrinks from the effort of searching out the extent of his afflictions. The emblem of Practical Philanthropy is the Samaritan stooping over the wounded Jew. It must be no fastidious hand which administers the oil and the wine, and binds up the unsightly gashes.

Believing, as he does, that this narrative is one of truth; that it presents an unexaggerated picture of Slavery as it exists on the cotton plantations of the South and West, he would particularly invite to its perusal, those individuals, and especially those professing Christians at the North, who have ventured to claim for such a system, the sanction and approval of the Religion of Jesus Christ. In view of the facts here presented, let these men seriously inquire of themselves, whether in advancing such a claim, they are not uttering a higher and more audacious blasphemy than any which ever fell from the pens of Voltaire and Paine. As if to cover them with confusion, and leave them utterly without excuse for thus libelling the character of a just God, these developments are making, and the veil rising, which for long years of sinful apathy has rested upon the abominations of American Slavery. Light is breaking into it's dungeons, disclosing the wreck of buried intellect--of hearts broken--of human affections outraged--of souls ruined. The world will see it as God has always seen it; and when He shall at length make inquisition for blood, and His vengeance kindle over the habitations of cruelty, with a destruction more terrible than that of Sodom and Gomorrah, His righteous dealing will be justified of man, and His name glorified among the nations, and there will be a voice of rejoicing in Earth and in Heaven. ALLELUIA!--THE PROMISE IS FULFILLED!--FOR THE SIGHING OF THE POOR AND THE OPPRESSION OF THE NEEDY, GOD HATH RISEN!

It is the earnest desire of the Editor, that this narrative may be the means, under God, of awakening in the hearts of all who read it, a sympathy for the oppressed which shall manifest itself in immediate, active, self-sacrificing exertion for their deliverance; and, while it excites abhorrence of his crimes, call forth pity for the oppressor. May it have the effect to prevent the avowed and associated friends of the slave, from giving such an undue importance to their own trials and grievances, as to forget in a great measure the sorrows of the slave. Let its cry of wo, coming up from the plantations of the South, suppress every feeling of selfishness in our hearts. Let our regret and indignation at the denial of the right of petition, be felt only because we are thereby prevented from pleading in the Halls of Congress for the "suffering and the dumb." And let the fact, that we are shut out from half the territory of our country, be lamented only because it

prevents us from bearing personally to the land of Slavery, the messages of hope for the slave, and of rebuke and warning for the oppressor.

New-York, 24th 1st mo., 1838.

* * * * *

NARRATIVE

I was born in Powhatan County, Virginia, on the plantation of George Larrimore. Sen., at a place called Mount Pleasant, on the 16th of May 1805. My father was the slave of an orphan family whose name I have forgotten, and was under the care of a Mr. Brooks, guardian of the family. He was a native of Africa, and was brought over when a mere child, with his mother. My mother was the slave of George Larrimore, Sen. She was nearly white, and is well known to have been the daughter of Mr. Larrimore himself. She died when myself and my twin brother Meshech were five years of age--I can scarcely remember her. She had in all eight children, of whom only five are now living. One, a brother, belongs to the heirs of the late Mr. Brockenbrough of Charlottesville; of whom he hires his time, and pays annually \$120 for it. He is a member of the Baptist church, and used to preach occasionally. His wife is a free woman from Philadelphia, and being able to read and write, taught her husband. The whites do not know that he can write, and have often wondered that he could preach so well without learning. It is the practice when a church is crowded, to turn the blacks out of their seats. My brother did not like this, and on one occasion preached a sermon from a text, showing that all are of one blood. Some of the whites who heard it, said that such preaching would raise an insurrection among the negroes. Two of them told him that if he would prove his doctrine by Scripture, they would let him go, but if he did not, he should have nine and thirty lashes. He accordingly preached another sermon and spoke with a great deal of boldness. The two men who were in favor of having him whipped, left before the sermon was over; those who remained, acknowledged that he had proved his doctrine, and preached a good

sermon, and many of them came up and shook hands with him. The two opposers, Scott and Brockley, forbid my brother, after this, to come upon their estates. They were both Baptists, and my brother had before preached to their people. During the cholera at Richmond, my brother preached a sermon, in which he compared the pestilence to the plagues, which afflicted the Egyptian slaveholders, because they would not let the people go. After the sermon some of the whites threatened to whip him. Mr. Valentine, a merchant on Shocko Hill prevented them; and a young lawyer named Brooks said it was wrong to threaten a man for preaching the truth. Since the insurrection of Nat. Turner he has not been allowed to preach much.

My twin brother was for some time the property of Mr. John Griggs, of Richmond, who sold him about three years since, to an Alabama Cotton Planter, with whom he staid one year, and then ran away and in all probability escaped into the free states or Canada, as he was seen near the Maryland line. My other brother lives in Fredericksburg, and belongs to a Mr. Scott, a merchant formerly of Richmond. He was sold from Mr. Larrimore's plantation because his wife was a slave of Mr. Scott. My only sister is the slave of John Smith, of King William. Her husband was the slave of Mr. Smith, when the latter lived in Powhatan county, and when he removed to King William, she was taken with her husband.

My old master, George Larrimore, married Jane Roane, the sister of a gentleman named John Roane, one of the most distinguished men in Virginia, who in turn married a sister of my master. One of his sisters married a Judge Scott, and another married Mr. Brockenbrough of Charlottesville. Mr. Larrimore had three children; George, Jane, and Elizabeth. The former was just ten days older than myself; and I was his playmate and constant associate in childhood. I used to go with him to his school, and carry his books for him as far as the door, and meet him there when the school was dismissed. We were very fond of each other, and frequently slept together. He taught me the letters of the alphabet, and I should soon have acquired a knowledge of reading, had not George's mother discovered her son in the act of teaching me. She took him aside and severely reprimanded him. When I asked him, not long after, to tell me more of what he had learned at school, he said that his mother had forbidden him to do so any more, as her father had a slave, who was instructed in reading and writing, and on that account proved very

troublesome. He could, they said, imitate the hand-writing of the neighboring planters, and used to write passes and certificates of freedom for the slaves, and finally wrote one for himself, and went off to Philadelphia, from whence her father received from him a saucy letter, thanking him for his education.

The early years of my life went by pleasantly. The bitterness of my lot I had not yet realized. Comfortably clothed and fed, kindly treated by my old master and mistress and the young ladies, and the playmate and confidant of my young master, I did not dream of the dark reality of evil before me.

When he was fourteen years of age, master George went to his uncle Brockenbrough's at Charlottesville, as a student of the University. After his return from College, he went to Paris and other parts of Europe, and spent three or four years in study and travelling. In the mean time I was a waiter in the house, dining-room servant, &c. My old master visited and received visits from a great number of the principal families in Virginia. Each summer, with his family, he visited the Sulphur Springs and the mountains. While George was absent, I went with him to New-Orleans, in the winter season, on account of his failing health. We spent three days in Charleston, at Mr. McDuffie's, with whom my master was on intimate terms. Mr. McDuffie spent several days on one occasion at Mt. Pleasant. He took a fancy to me, and offered my master the servant whom he brought with him and \$500 beside, for me. My master considered it almost an insult, and said after he was gone, that Mr. McDuffie needed money to say the least, as much as he did.

He had a fine house in Richmond, and used to spend his winters there with his family, taking me with him. He was not there much at other times, except when the Convention of 1829 for amending the State Constitution, was held in that city. He had a quarrel with Mr. Neal of Richmond Co., in consequence of some remarks upon the subject of Slavery. It came near terminating in a duel. I recollect that during the sitting of the Convention, my master asked me before several other gentlemen, if I wished to be free and go back to my own country. I looked at him with surprise, and inquired what country?

"Africa, to be sure," said he, laughing.

I told him that was not my country--that I was born in Virginia.

"Oh yes," said he, "but your father was born in Africa." He then said that there was a place on the African coast called Liberia where a great many free blacks were going; and asked me to tell him honestly, whether I would prefer to be set free on condition of going to Africa, or live with him and remain a slave. I replied that I had rather be as I was.

I have frequently heard him speak against slavery to his visitors. I heard him say on one occasion, when some gentlemen were arguing in favor of sending the free colored people to Africa, that this was as really the black man's country as the white's, and that it would be as humane to knock the free negroes, at once, on the head, as to send them to Liberia. He was a kind man to his slaves. He was proud of them, and of the reputation he enjoyed of feeding and clothing them well. They were as near as I can judge about 300 in number. He never to my knowledge sold a slave, unless to go with a wife or husband, and at the slave's own request. But all except the very wealthiest planters in his neighborhood sold them frequently. John Smoot of Powhatan Co. has sold a great number. Bacon Tait[[A](#)] used to be one of the principal purchasers. He had a jail at Richmond where he kept them. There were many others who made a business of buying and selling slaves. I saw on one occasion while travelling with my master, a gang of nearly two hundred men fastened with chains. The women followed unchained and the children in wagons. It was a sorrowful sight. Some were praying, some crying, and they all had a look of extreme wretchedness. It is an awful thing to a Virginia slave to be sold for the Alabama and Mississippi country. I have known some of them to die of grief, and others to commit suicide, on account of it.

[Footnote [A](#): Bacon Tait's advertisement of "new and commodious buildings" for the keeping of negroes, situated at the corner of 15th and Carey streets, appears in the Richmond Whig of Sept. 1896.--EDITOR.]

In my seventeenth year, I was married to a girl named Harriet, belonging to John Gatewood, a planter living about four miles from Mr. Pleasant. She was about a year younger than myself--was a tailoress, and used to cut out clothes for the hands.

We were married by a white clergyman named Jones; and were allowed to or three weeks to ourselves, which we spent in visiting and other amusements.

The field hands are seldom married by a clergyman. They simply invite their friends together, and have a wedding party.

Our two eldest children died in their infancy: two are now living. The youngest was only two months old when I saw him for the last time. I used to visit my wife on Saturday and Sunday evenings.

My young master came back from Europe in delicate health. He was advised by his physicians to spend the winter in New-Orleans, whither he accordingly went, taking me with him. Here he became acquainted with a French lady of one of the first families in the city. The next winter he also spent in New-Orleans, and on his third visit, three years after his return from Europe, he was married to the lady above mentioned. In May he returned to Mt. Pleasant, and found the elder Larrimore on his sick bed, from which he never rose again. He died on the 14th of July. There was a great and splendid funeral, as his relatives and friends were numerous.

His large property was left principally in the hands of his widow until her decease, after which it was to be divided among the three children. In February Mrs. Larrimore also died. The administrators upon the estate were John Green, Esq., and Benjamin Temple. My young master came back from Europe in delicate health. He way advised by his physicians to spend the winter in New-Orleans, whither he accordingly went, taking me with him. Here he became acquainted with a French lady of one of the first families in the city. The next winter he also spent in New-Orleans, and on his third visit, three years after his return from Europe, he was married to the lady above mentioned. In May he returned to Mt. Pleasant, and found the elder Larrimore on his sick bed, from which he never rose again. He died on the 14th of July. There was a great and splendid funeral, as his relatives and friends were numerous.

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My young mistresses, Jane and Elizabeth, were very kind to the servants. They seemed to feel under obligations to afford them every comfort and gratification, consistent with the dreadful relation of ownership which they sustained towards them. Whipping was scarcely known on the estate; and, whenever it did take place, it was invariably against the wishes of the young ladies.

But the wife of master George was of a disposition entirely the reverse. Feeble, languid, and inert, sitting motionless for hours at her window, or moving her small fingers over the strings of her guitar, to some soft and languishing air, she would have seemed to a stranger incapable of rousing herself from that indolent repose, in which mind as well as body participated. But, the slightest disregard of her commands--and sometimes even the neglect to anticipate her wishes, on the part of the servants; was sufficient to awake her. The inanimate and delicate beauty then changed into a stormy virago. Her black eyes flared and sparkled with a snaky fierceness, her full lips compressed, and her brows bent and darkened. Her very voice, soft and sweet when speaking to her husband, and exquisitely fine and melodious, when accompanying her guitar, was at such times, shrill, keen, and loud. She would order the servants of my young mistresses upon her errands, and if they pleaded their prior duty to obey the calls of another, would demand that they should be forthwith whipped for their insolence. If the young ladies remonstrated with her, she met them with a perfect torrent of invective and abuse. In these paroxysms of fury she always spoke in French, with a vehemence and volubility, which strongly contrasted with the calmness and firmness of the young ladies. She would boast of what she had done in New-Orleans, and of the excellent discipline of her father's slaves. She said she had gone down in the night to the cell under her father's house, and whipped the slaves confined there with her own hands. I had heard the same thing from her father's servants at New-Orleans, when I was there with my master. She brought with her from New-Orleans a girl named Frances. I have seen her take her by the ear, lead her up to the side of the room, and beat her head against it. At other times she would snatch off her slipper and strike the girl on her face and head with it.

She seldom manifested her evil temper before master George. When she did, he was greatly troubled, and he used to speak to his sisters about it. Her manner towards him was almost invariably that of extreme fondness. She

was dark complexioned, but very beautiful; and the smile of welcome with which she used to meet him was peculiarly fascinating. I did not marvel that *he* loved her; while at the same time, in common with all the house servants, I regarded her as a being possessed with an evil spirit,--half woman, and half fiend.

Soon after the settlement of the estate, I heard my master speak of going out to Alabama. His wife had 1500 acres of wild land in Greene County in that State: and he had been negotiating for 500 more. Early in the summer of 1833, he commenced making preparations for removing to that place a sufficient number of hands to cultivate it. He took great pains to buy up the wives and husbands of those of his own slaves who had married out of the estate, in order, as he said, that his hands might be contented in Alabama, and not need chaining together while on their journey. It is always found necessary by the regular slave-traders, in travelling with their slaves to the far South, to handcuff and chain their wretched victims, who have been bought up as the interest of the trader, and the luxury or necessities of the planter may chance to require, without regard to the ties sundered or the affections made desolate, by these infernal bargains. About the 1st of September, after the slaves destined for Alabama had taken a final farewell of their old home, and of the friends they were leaving behind, our party started on their long journey. There were in all 214 slaves, men, women and children. The men and women travelled on foot--the small children in the wagons, containing the baggage, &c. Previous to my departure, I visited my wife and children at Mr. Gatewood's. I took leave of them with the belief that I should return with my master, as soon as he had seen his hands established on his new plantation. I took my children in my arms and embraced them; my wife, who was a member of the Methodist church, implored the blessing of God upon me, during my absence, and I turned away to follow my master.

Our journey was a long and tedious one, especially to those who were compelled to walk the whole distance. My master rode in a sulky, and I, as his body servant, on horseback: When we crossed over the Roanoke, and were entering upon North Carolina, I remember with what sorrowful countenances and language the poor slaves looked back for the last time upon the land of their nativity. It was their last farewell to Old Virginia. We passed through Georgia, and crossing the Chattahoochee, entered Alabama.

Our way for many days was through a sandy tract of country, covered with pine woods, with here and there the plantation of an Indian or a half-breed. After crossing what is called Line Creek, we found large plantations along the road, at intervals of four or five miles. The aspect of the whole country was wild and forbidding, save to the eye of a cotton-planter. The clearings were all new, and the houses rudely constructed of logs. The cotton fields, were skirted with an enormous growth of oak, pine, and other wood. Charred stumps stood thickly in the clearings, with here and there a large tree girdled by the axe and left to decay. We reached at last the place of our destination. It was a fine tract of land with a deep rich soil. We halted on a small knoll, where the tents were pitched, and the wagons unladen. I spent the night with my master at a neighboring plantation, which was under the care of an overseer named Flincher.

The next morning my master received a visit from a man named Huckstep, who had undertaken the management of his plantation as an overseer. He had been an overseer on cotton plantations many years in Georgia and North Carolina. He was apparently about forty years of age, with a sunburnt and sallow countenance. His thick shock of black hair was marked in several places with streaks of white, occasioned as he afterwards told me by blows received from slaves whom he was chastising.

After remaining in the vicinity for about a week, my master took me aside one morning--told me he was going to Selma in Dallas County, and wished me to be in readiness on his return the next day, to start for Virginia. This was to me cheering news. I spent that day and the next among my old fellow servants who had lived with me in Virginia. Some of them had messages to send by me to their friends and acquaintances. In the afternoon of the second day after my master's departure, I distributed, among them all the money which I had about me, viz., fifteen dollars. I noticed that the overseer Huckstep laughed at this and called me a fool: and that whenever I spoke of going home with my master, his countenance indicated something between a smile and a sneer.

Night came; but contrary to his promise, my master did not come. I still however expected him the next day. But another night came, and he had not returned. I grew uneasy, and inquired of Huckstep where he thought my master was.

"On his way to Old Virginia," said he, with a malicious laugh.

"But," said I. "Master George told me that he should come back and take me with him to Virginia."

"Well, boy," said the overseer, "I'll now tell ye what master George, as you call him, told me. You are to stay here and act as driver of the field hands. That was the order. So you may as well submit to it at once."

I stood silent and horror-struck. Could it be that the man whom I had served faithfully from our mutual boyhood, whose slightest wish had been my law, to serve whom I would have laid down my life, while I had confidence in his integrity--could it be that he had so cruelly and wickedly deceived me? I looked at the overseer. He stood laughing at me in my agony.

"Master George gave you no such orders," I exclaimed, maddened by the overseer's look and manner.

The overseer looked at me with a fiendish grin. "None of your insolence," said he, with a dreadful oath. "I never saw a Virginia nigger that I couldn't manage, proud as they are. Your master has left you in my hands, and you must obey my orders. If you don't, why I shall have to make you '*hug the widow there*,'" pointing to a tree, to which I afterwards found the slaves were tied when they were whipped.

That night was one of sleepless agony. Virginia--the hills and the streams of my birth-place; the kind and hospitable home; the gentle-hearted sisters, sweetening with their sympathy the sorrows of the slave--my wife--my children--all that had thus far made up my happiness, rose in contrast with my present condition. Deeply as he has wronged me, may my master himself never endure such a night of misery!

At daybreak, Huckstep told me to dress myself, and attend to his directions. I rose, subdued and wretched, and at his orders handed the horn to the headmen of the gang, who summoned the hands to the field. They were employed in clearing land for cultivation, cutting trees and burning. I was with them through the day, and at night returned once more to my lodgings to be laughed at by the overseer. He told me that I should do well, he did not doubt, by and by, but that a Virginia driver generally had to be whipped a few times himself before he could be taught to do justice to the slaves

under his charge. They were not equal to those raised in North Carolina, for keeping the lazy hell-hounds, as he called the slaves, at work.

And this was my condition!--a driver set over more than one hundred and sixty of my kindred and friends, with orders to apply the whip unsparingly to every one, whether man or woman, who faltered in the task, or was careless in the execution of it, myself subject at any moment to feel the accursed lash upon my own back, if feelings of humanity should perchance overcome the selfishness of misery, and induce me to spare and pity.

I lived in the same house with Huckstep,--a large log house, roughly finished; where we were waited upon by an old woman, whom we used to call aunt Polly. Huckstep was, I soon found, inordinately fond of peach brandy; and once or twice in the course of a month he had a drunken debauch, which usually lasted from two to four days. He was then full of talk, laughed immoderately at his own nonsense and would keep me up until late at night listening to him. He was at these periods terribly severe to his hands, and would order me to use up the cracker of my whip every day upon the poor creatures, who were toiling in the field, and in order to satisfy him, I used to tear it off when returning home at night. He would then praise me for a good fellow, and invite me to drink with him.

He used to tell me at such times, that if I would only drink as he did, I should be worth a thousand dollars more for it. He would sit hours with his peach brandy, cursing and swearing, laughing and telling stories full of obscenity and blasphemy. He would sometimes start up, take my whip, and rush out to the slave quarters, flourish it about and frighten the inmates and often cruelly beat them. He would order the women to pull up their clothes, in Alabama style, as he called it, and then whip them for not complying. He would then come back roaring and shouting to the house, and tell me what he had done; if I did not laugh with him, he would get angry and demand what the matter was. Oh! how often I have laughed, at such times, when my heart ached within me; and how often, when permitted to retire to my bed, have I found relief in tears!

He had no wife, but kept a colored mistress in a house situated on a gore of land between the plantation and that of Mr. Goldsby. He brought her with him from North Carolina, and had three children by her.

Sometimes in his fits of intoxication, he would come riding into the field, swinging his whip, and crying out to the hands to strip off their shirts, and be ready to take a whipping: and this too when they were all busily at work. At another time, he would gather the hands around him and fall to cursing and swearing about the neighboring overseers. They were, he said, cruel to their hands, whipped them unmercifully, and in addition starved them. As for himself, he was the kindest and best fellow within forty miles; and the hands ought to be thankful that they had such a good man for their overseer.

He would frequently be very familiar with me, and call me his child; he would tell me that our people were going to get Texas, a fine cotton country, and that he meant to go out there and have a plantation of his own, and I should go with him and be his overseer.

The houses in the "*negro quarters*" were constructed of logs, and from twelve to fifteen feet square; they had no glass, but there were holes to let in the light and air. The furniture consisted of a table, a few stools, and dishes made of wood, and an iron pot, and some other cooking utensils. The houses were placed about three or four rods apart, with a piece of ground attached to each of them for a garden, where the occupant could raise a few vegetables. The "*quarters*" were about three hundred yards from the dwelling of the overseer.

The hands were occupied in clearing land and burning brush, and in constructing their houses, through the winter. In March we commenced ploughing: and on the first of April began planting seed for cotton. The hoeing season commenced about the last of May. At the earliest dawn of day, and frequently before that time, the laborers were roused from their sleep by the blowing of the horn. It was blown by the headman of the gang who led the rest in the work and acted under my direction, as my assistant.

Previous to the blowing of the horn the hands generally rose and eat what was called the "*morning's bit*," consisting of ham and bread. If exhaustion and fatigue prevented their rising before the dreaded sound of the horn broke upon their slumbers, they had no time to snatch a mouthful, but were harried out at once.

It was my business to give over to each of the hands his or her appropriate implement of labor, from the toolhouse where they were deposited at night.

After all had been supplied, they were taken to the field, and set at work as soon as it was sufficiently light to distinguish the plants from the grass and weeds. I was employed in passing from row to row, in order to see that the work was well done, and to urge forward the laborers. At 12 o'clock, the horn was blown from the overseer's house, calling the hands to dinner, each to his own cabin. The intermission of labor was one hour and a half to hoers and pickers, and two hours to the ploughmen. At the expiration of this interval, the horn again summoned them to thus labor. They were kept in the field until dark, when they were called home to supper.

There was little leisure for any of the hands on the plantation. In the evenings, after it was too dark for work in the field, the men were frequently employed in burning brush and in other labors until late at night. The women after toiling in the field by day, were compelled to card, spin, and weave cotton for their clothing, in the evening. Even on Sundays there was little or no respite from toil. Those who had not been able to work out all their tasks during the week were allowed by the overseer to finish it on the Sabbath, and thus save themselves from a whipping on Monday morning. Those whose tasks were finished frequently employed most of that day in cultivating their gardens.

Many of the female hands were delicate young women, who in Virginia had never been accustomed to field labor. They suffered greatly from the extreme heat and the severity of the toil. Oh! how often have I seen them dragging their weary limbs from the cotton field at nightfall, faint and exhausted. The overseer used to laugh at their sufferings. They were, he said, Virginia ladies, and altogether too delicate for Alabama use: but they must be made to do their tasks notwithstanding. The recollection of these things even now is dreadful. I used to tell the poor creatures, when compelled by the overseer to urge them forward with the whip, that I would much rather take their places, and endure the stripes than inflict them.

When but three months old, the children born on the estate were given up to the care of the old women who were not able to work out of doors. Their mothers were kept at work in the field.

It was the object of the overseer to separate me in feeling and interest as widely as possible from my suffering brethren and sisters. I had relations among the field hands, and used to call them my cousins. He forbid my doing so; and told me if I acknowledged relationship with any of the hands I should be flogged for it. He used to speak of them as devils and hell-hounds, and ridicule them in every possible way; and endeavoured to make me speak of them and regard them in the same manner. He would tell long stories about hunting and shooting "runaway niggers," and detail with great apparent satisfaction the cruel and horrid punishments which he had inflicted. One thing he said troubled him. He had once whipped a slave so severely that he died in consequence of it, and it was soon after ascertained

that he was wholly innocent of the offence charged against him. That slave, he said, had haunted him ever since.

Soon after we commenced weeding our cotton, some of the hands who were threatened with a whipping for not finishing their tasks, ran away. The overseer and myself went out after them, taking with us five bloodhounds, which were kept on the Estate for the sole purpose of catching runaways. There were no other hounds in the vicinity, and the overseers of the neighboring plantations used to borrow them to hunt their runaways. A Mr. Crop, who lived about ten miles distant, had two packs, and made it his sole business to catch slaves with them. We used to set the dogs upon the track of the fugitives, and they would follow them until, to save themselves from being torn in pieces, they would climb into a tree, where the dogs kept them until we came up and secured them.

These hounds, when young, are taught to run after the negro boys; and being always kept confined except when let out in pursuit of runaways, they seldom fail of overtaking the fugitive, and seem to enjoy the sport of hunting men as much as other dogs do that of chasing a fox or a deer. My master gave a large sum for his five dogs,--a slut and her four puppies.

While going over our cotton picking for the last time, one of our hands named Little John, ran away. The next evening the dogs were started on his track. We followed them awhile, until we knew by their ceasing to bark that they had found him. We soon met the dogs returning. Their jaws, heads, and feet, were bloody. The overseer looked at them and said, "he was afraid the dogs had killed the nigger." It being dark, we could not find him that night. Early the next morning, we started off with our neighbors, Sturtivant and Flincher; and after searching about for some time, we found the body of Little John lying in the midst of a thicket of cane. It was nearly naked, and dreadfully mangled and gashed by the teeth of the dogs. They had evidently dragged it some yards through the thicket: blood, tatters of clothes, and even the entrails of the unfortunate man, were clinging to the stubs of the old and broken cane. Huckstep stooped over his saddle, looked at the body, and muttered an oath. Sturtivant swore it was no more than the fellow deserved. We dug a hole in the cane-brake, where he lay, buried him, and returned home.

The murdered young man had a mother and two sisters on the plantation, by whom he was dearly loved. When I told the old woman of what had befallen her son, she only said that it was better for poor John than to live in slavery.

Late in the fall of this year, a young man, who had already run away several times, was missing from his task. It was four days before we found him. The dogs drove him at last up a tree, where he was caught, and brought home. He was then fastened down to the ground by means of forked sticks of wood selected for the purpose, the longest fork being driven into the ground until the other closed down upon the neck, ankles, and wrists. The overseer then sent for two large cats belonging to the house. These he placed upon the naked shoulders of his victim, and dragged them suddenly by their tails downward. At first they did not scratch deeply. He then ordered me to strike them with a small stick after he had placed them once more upon the back of the sufferer. I did so; and the enraged animals extended their claws, and tore his back deeply and cruelly as they were dragged along it. He was then whipped and placed in the stocks, where he was kept for three days. On the third morning as I passed the stocks, I stopped to look at him. His head hung down over the chain which supported his neck. I spoke, but he did not answer. *He was dead in the stocks!* The overseer on seeing him seemed surprised, and, I thought, manifested some remorse. Four of the field hands took him out of the stocks and buried him: and every thing went on as usual.

It is not in my power to give a narrative of the daily occurrences on the plantation. The history of one day was that of all. The gloomy monotony of our slavery, was only broken by the overseer's periodical fits of drunkenness, at which times neither life nor limb on the estate were secure from his caprice or violence.

In the spring of 1835, the overseer brought me a letter from my wife, written for her by her young mistress, Mr. Gateweed's daughter. He read it to me: it stated that herself and children were well--spoke of her sad and heavy disappointment in consequence of my not returning with my master; and of her having been told by him that I should come back the next fall.

Hope for a moment lightened my heart; and I indulged the idea of once more returning to the bosom of my family. But I recollected that my master had already cruelly deceived me; and despair again took hold on me.

Among our hands was one whom we used to call Big Harry. He was a stout, athletic man--very intelligent, and an excellent workman; but he was of a high and proud spirit, which the weary and crushing weight of a life of slavery had not been able to subdue. On almost every plantation at the South you may find one or more individuals, whose look and air show that they have preserved their self-respect as *men*;--that with them the power of the tyrant ends with the coercion of the body--that the soul is free, and the inner man retaining the original uprightness of the image of God. You may know them by the stern sobriety of their countenances, and the contempt with which they regard the jests and pastimes of their miserable and degraded companions, who, like Samson, make sport for the keepers of their prison-house. These men are always feared as well as hated by their task-masters. Harry had never been whipped, and had always said that he would die rather than submit to it. He made no secret of his detestation of the overseer. While most of the slaves took off their hats, with cowering submission, in his presence, Harry always refused to do so. He never spoke to him except in a brief answer to his questions. Master George, who knew, and dreaded the indomitable spirit of the man, told the overseer, before he left the plantation, to beware how he attempted to punish him. But, the habits of tyranny in which Huckstep had so long indulged, had accustomed him to abject submission, on the part of his subjects; and he could not endure this upright and unbroken manliness. He used frequently to curse and swear about him, and devise plans for punishing him on account of his impudence as he called it.

A pretext was at last afforded him. Sometime in August of this year, there was a large quantity of yellow unpicked cotton lying in the gin house. Harry was employed at night in removing the cotton seed, which has been thrown out by the gin. The rest of the male hands were engaged during the day in weeding the cotton for the last time, and in the night, in burning brush on the new lands clearing for the next year's crop. Harry was told one evening to go with the others and assist in burning the brush. He accordingly went and the next night a double quantity of seed had accumulated in the gin house:

and although he worked until nearly 2 o'clock in the morning, he could not remove it all.

The next morning the overseer came into the field, and demanded of me why I had not whipped Harry for not removing all the cotton seed. He then called aloud to Harry to come forward and be whipped. Harry answered somewhat sternly that he would neither be struck by overseer nor driver; that he had worked nearly all night, and had scarcely fallen asleep when the horn blew to summon him to his toil in the field. The overseer raved and threatened, but Harry paid no farther attention to him. He then turned to me and asked me for my pistols, with a pair of which he had furnished me. I told him they were not with me. He growled an oath, threw himself on his horse and left us. In the evening I found him half drunk and raving like a madman. He said he would no longer bear with that nigger's insolence; but would whip him if it cost him his life. He at length fixed upon a plan for seizing him; and told me that he would go out in the morning, ride along by the side of Harry and talk pleasantly to him, and then, while Harry was attending to him, I was to steal upon him and knock him down, by a blow on the head, from the loaded and heavy handle of my whip. I was compelled to promise to obey his directions.

The next morning when we got to the field I told Harry of the overseer's plan, and advised him by all means to be on his guard and watch my motions. His eye glistened with gratitude. "Thank you James", said he, "I'll take care that you don't touch me."

Huckstep came into the field about 10 o'clock. He rode along by the side of Harry talking and laughing. I was walking on the other side. When I saw that Harry's eye was upon me I aimed a blow at him intending however to miss him. He evaded the blow and turned fiercely round with his hoe uplifted, threatening to cut down any one who again attempted to strike him. Huckstep cursed my awkwardness, and told Harry to put down his hoe and came to him. He refused to do so and swore he would kill the first man who tried to lay hands on him. The cowardly tyrant shrank away from his enraged bondman, and for two weeks Harry was not again molested.

About the first of September, the overseer had one of his drunken fits. He made the house literally an earthly hell. He urged me to drink, quarrelled

and swore at me for declining, and chased the old woman round the house, with his bottle of peach brandy. He then told me that Harry had forgotten the attempt to seize him, and that is the morning we must try our old game over again.

On the following morning, as I was handing to each of the hands their hoes from the tool house, I caught Harry's eye. "Look out," said I to him. "Huckstep will be after you again to day." He uttered a deep curse against the overseer and passed on to his work. After breakfast Huckstep came riding out to the cotton field. He tied his horse to a tree, and came towards us. His sallow and haggard countenance was flushed, and his step unsteady. He came up by the side of Harry and began talking about the crops and the weather; I came at the same time on the other side, and in striking at him, beat off his hat. He sprang aside and stepped backwards. Huckstep with a dreadful oath commanded him to stop, saying that he had determined to whip him, and neither earth nor hell should prevent him. Harry defied him: and said he had always done the work allotted to him and that was enough: he would sooner die than have the accursed lash touch him. The overseer staggered to his horse, mounted him and rode furiously to the house, and soon made his appearance, returning, with his gun in his hand.

"Yonder comes the devil!" said one of the women whose row was near Harry's.

"Yes," said another, "He's trying to scare Harry with his gun."

"Let him try as he pleases," said Harry, in his low, deep, determined tones, "He may shoot me, but he can't whip me."

Huckstep came swearing on: when within a few yards of Harry he stopped, looked at him with a stare of mingled rage and drunken imbecility; and bid him throw down his hoe and come forward. The undaunted slave refused to comply, and continuing his work told the drunken demon to shoot if he pleased. Huckstep advanced within a few steps of him when Harry raised his hoe and told him to stand back. He stepped back a few paces, leveled his gun and fired. Harry received the charge in his breast, and fell instantly across a cotton row. He threw up his hands wildly, and groaned, "Oh, Lord!"

The hands instantly dropped their hoes. The women shrieked aloud. For my own part I stood silent with horror. The cries of the women enraged the overseer, he dropped his gun, and snatching the whip from my hand, with horrid oaths, and imprecations fell to whipping them, laying about him like a maniac. Upon Harry's sister he bestowed his blows without mercy, commanding her to quit her screaming and go to work. The poor girl, whose brother had thus been murdered before her eyes, could not wrestle down the awful agony of her feelings, and the brutal tormentor left her without effecting his object. He then, without going to look of his victim, told four of the hands to carry him to the house, and taking up his gun left the field. When we got to the poor fellow, he was alive, and groaning faintly. The hands took him up, but before they reached the house he was dead. Huckstep came out, and looked at him, and finding him dead, ordered the hands to bury him. The burial of a slave in Alabama is that of a brute. No coffin--no decent shroud--no prayer. A hole is dug, and the body (sometimes enclosed in a rude box,) is thrown in without further ceremony.

From this time the overseer was regarded by the whole gang with detestation and fear--as a being to whose rage and cruelty there were no limits. Yet he was constantly telling us that he was the kindest of overseers--that he was formerly somewhat severe in managing his hands, but that now he was, if any thing, too indulgent. Indeed he had the reputation of being a good overseer, and an excellent manager, when sober. The slaves on some of the neighboring plantations were certainly worse clothed and fed, and more frequently and cruelly whipped than ours. Whenever they saw them they complained of over working and short feeding. One of Flincher's, and one of Sturtivant's hands ran away, while I was in Alabama: and after remaining in the woods awhile, and despairing of being able to effect their escape, resolved to put an end to their existence and their slavery together. Each twisted himself a vine of the muscadine grape, and fastened one end around the limb of an oak, and made a noose in the other. Jacob, Flincher's man, swung himself off first, and expired after a long struggle. The other, horrified by the contortions and agony of his comrade, dropped his noose, and was retaken. When discovered, two or three days afterwards, the body of Jacob was dreadfully torn and mangled, by the buzzards, those winged hyenas and *goules* of the Southwest.

Among the slaves who were brought from Virginia, were two young and bright mulatto women, who were always understood throughout the plantation to have been the daughters of the elder Larrimore, by one of his slaves. One was named Sarah and the other Hannah. Sarah, being in a state of pregnancy, failed of executing her daily allotted task of hoeing cotton. I was ordered to whip her, and on my remonstrating with the overseer, and representing the condition of the woman, I was told that my business was to obey orders, and that if I was told "to whip a dead nigger I must do it." I accordingly gave her fifty lashes. This was on Thursday evening. On Friday she also failed through weakness, and was compelled to lie down in the field. That night the overseer himself whipped her. On Saturday the wretched woman dragged herself once more to the cotton field. In the burning sun, and in a situation which would have called forth pity in the bosom of any one save a cotton-growing overseer, she struggled to finish her task. She failed--nature could do no more--and sick and despairing, she sought her cabin. There the overseer met her and inflicted fifty more lashes upon her already lacerated back.

The next morning was the Sabbath. It brought no joy to that suffering woman. Instead of the tones of the church bell summoning to the house of prayer, she heard the dreadful sound of the lash falling upon the backs of her brethren and sisters in bondage. For the voice of prayer she heard curses. For the songs of Zion obscene and hateful blasphemies. No bible was there with its consolations for the sick of heart. Faint and fevered, scarred and smarting from the effects of her cruel punishment, she lay upon her pallet of moss--dreading the coming of her relentless persecutor,--who, in the madness of one of his periodical fits of drunkenness, was now swearing and cursing through the quarters.

Some of the poor woman's friends on the evening before, had attempted to relieve her of the task which had been assigned her, but exhausted nature, and the selfishness induced by their own miserable situation, did not permit them to finish it and the overseer, on examination, found that the week's work of the woman, was still deficient. After breakfast, he ordered her to be tied up to the limb of a tree, by means of a rope fastened round her wrists, so as to leave her feet about six inches from the ground. She begged him to let her down for she was very sick.

"Very well!" he exclaimed with a sneer and a laugh,--"I shall bleed you then, and take out some of your Virginia blood. You are too proud a miss for Alabama."

He struck her a few blows. Swinging thus by her arms, she succeeded in placing one of her feet against the body of the tree, and thus partly supported herself, and relieved in some degree the painful weight upon her wrists. He threw down his whip--took a rail from the garden fence, ordered her feet to be tied together, and thrust the rail between them. He then ordered one of the hands to sit upon it. Her back at this time was bare, but the strings of the only garment which she wore passed over her shoulders and prevented the full force of the whip from acting on her flesh. These he cut off with his pen-knife, and thus left her entirely naked. He struck her only two blows, for the second one cut open her side and abdomen with a frightful gash. Unable to look on any longer in silence, I entreated him to stop, as I feared he had killed her. The overseer looked at the wound--dropped his whip, and ordered her to be untied. She was carried into the house in a state of insensibility, and died in three days after.

During the whole season of picking cotton, the whip was frequently and severely plied. In his seasons of intoxication, the overseer made no distinction between the stout man and the feeble and delicate woman--the sick and the well. Women in a far advanced state of pregnancy were driven out to the cotton field. At other times he seemed to have some consideration; and to manifest something like humanity. Our hands did not suffer for food--they had a good supply of ham and corn-meal, while on Flincher's plantation the slaves had meat but once a year, at Christmas.

Near the commencement of the weeding season of 1835, I was ordered to whip a young woman, a light mustee, for not performing her task. I told the overseer that she was sick. He said he did not care for that, she should be made to work. A day or two afterwards, I found him in the house half intoxicated. He demanded of me why I had not whipped the girl; and I gave the same reason as before. He flew into a dreadful rage, but his miserable situation made him an object of contempt rather than fear. He sat shaking his fist at me, and swearing for nearly half an hour. He said he would teach the Virginia lady to sham sickness; and that the only reason I did not whip her was, that she was a white woman, and I did not like to cut up her

delicate skin. Some time after I was ordered to give two of our women, named Hannah and big Sarah, 150 lashes each, for not performing their tasks. The overseer stood by until he saw Hannah whipped, and until Sarah had been tied up to the tree. As soon as his back was turned I struck the tree instead of the woman, who understanding my object, shrieked as if the whip at every blow was cutting into her flesh. The overseer heard the blows and the woman's cries, and supposing that all was going on according to his mind, left the field. Unfortunately the husband of Hannah stood looking on; and indignant that his wife should be whipped and Sarah spared, determined to revenge himself by informing against me.

Next morning Huckstep demanded of me whether I had whipped Sarah the day before; I replied in the affirmative. Upon this he called Sarah forward and made her show her back, which bore no traces of recent whipping. He then turned upon me and told me that the blows intended for Sarah should be laid on my back. That night the overseer, with the help of three of the hands, tied me up to a large tree--my arms and legs being clasped round it, and my body drawn up hard against it by two men pulling at my arms and one pushing against my back. The agony occasioned by this alone was almost intolerable. I felt a sense of painful suffocation, and could scarcely catch my breath.

A moment after I felt the first blow of the overseer's whip across my shoulders. It seemed to cut into my very heart. I felt the blood gush, and run down my back. I fainted at length under the torture, and on being taken down, my shoes contained blood which ran from the gashes in my back. The skin was worn off from my breast, arms, and thighs, against the rough bark of the tree. I was sick and feverish, and in great pain for three weeks afterwards; most of which time I was obliged to lie with my face downwards, in consequence of the extreme soreness of my sides and back, Huckstep himself seemed concerned about me, and would come frequently to see me, and tell me that he should not have touched me had it not been for "the cursed peach brandy."

Almost the first person that I was compelled to whip after I recovered, was the man who pushed at my back when I was tied up to the tree. The hands who were looking on at that time, all thought he pushed me much harder than was necessary: and they expected that I would retaliate upon him the

injury I had received. After he was tied up, the overseer told me to give him a severe flogging, and left me. I struck the tree instead of the man. His wife, who was looking on, almost overwhelmed me with her gratitude.

At length one morning, late in the fall of 1835, I saw Huckstep, and a gentleman ride out to the field. As they approached, I saw the latter was my master. The hands all ceased their labor, and crowded around him, inquiring about old Virginia. For my own part, I could not hasten to greet him. He had too cruelly deceived me. He at length came towards me, and seemed somewhat embarrassed. "Well James," said he, "how do you stand it here?" "Badly enough," I replied. "I had no thought that you could be so cruel as to go away and leave me as you did." "Well, well, it was too bad, but it could not be helped--you must blame Huckstep for it." "But," said I, "I was not his servant; I belonged to you, and you could do as you pleased." "Well," said he, "we will talk about that by and by." He then inquired of Huckstep where big Sarah was. "She was sick and died," was the answer. He looked round among the slaves again, and inquired for Harry. The overseer told him that Harry undertook to kill him, and that, to save his life, he was obliged to fire upon him, and that he died of the wound. After some further inquiries, he requested me to go into the house with him. He then asked me to tell him how things had been managed during his absence. I gave him a full account of the overseer's cruelty. When he heard of the manner of Harry's death, he seemed much affected and shed tears. He was a favorite servant of his father's. I showed him the deep scars on my back occasioned by the whipping I had received. He was, or professed to be, highly indignant with Huckstep; and said he would see to it that he did not lay hands on me again. He told me he should be glad to take me with him to Virginia, but he did not know where he should find a driver who would be so kind to the hands as I was. If I would stay ten years, he would give me a thousand dollars, and a piece of land to plant on my own account. "But," said I, "my wife and children." "Well," said he, "I will do my best to purchase them, and send them on to you." I now saw that my destiny was fixed: and that I was to spend my days in Alabama, and I retired to my bed that evening with a heavy heart.

My master staid only three or four days on the plantation. Before he left, he cautioned Huckstep to be careful and not strike me again, as he would on no

account permit it. He told him to give the hands food enough, and not over-work them, and, having thus satisfied his conscience, left us to our fate.

Out of the two hundred and fourteen slaves who were brought out from Virginia, at least one-third of them were members of the Methodist and Baptist churches in that State. Of this number five or six could read. Then had been torn away from the care and discipline of their respective churches, and from the means of instruction, but they retained their love for the exercises of religion; and felt a mournful pleasure in speaking of the privileges and spiritual blessings which they enjoyed in Old Virginia. Three of them had been preachers, or exhorters, viz. Solomon, usually called Uncle Solomon, Richard and David. Uncle Solomon was a grave, elderly man, mild and forgiving in his temper, and greatly esteemed among the more serious portion of our hands. He used to snatch every occasion to talk to the lewd and vicious about the concerns of their souls, and to advise them to fix their minds upon the Savior, as their only helper. Some I have heard curse and swear in answer, and others would say that they could not keep their minds upon God and the devil (meaning Huckstep) at the same time: that it was of no use to try to be religious--they had no time--that the overseer wouldn't let them meet to pray--and that even Uncle Solomon, when he prayed, had to keep one eye open all the time, to see if Huckstep was coming. Uncle Solomon could both read and write, and had brought out with him from Virginia a Bible, a hymn-book, and some other religious books, which he carefully concealed from the overseer, Huckstep was himself an open infidel as well as blasphemer. He used to tell the hands that there was no hell hereafter for white people, but that they had their punishment on earth in being obliged to take care of the negroes. As for the blacks, he was sure there was a hell for them. He used frequently to sit with his bottle by his side, and a Bible in his hand; and read passages and comment on them, and pronounce them lies. Any thing like religious feeling among the slaves irritated him. He said that so much praying and singing prevented the people from doing their tasks, as it kept them up nights, when they should be asleep. He used to mock, and in every possible way interrupt the poor slaves, who after the toil of the day, knelt in their lowly cabins to offer their prayers and *supplications* to Him whose ear is open to the sorrowful sighing of the prisoner, and who hath promised in His own time to come down and deliver. In his drunken seasons he would make

excursions at night through the slave-quarters, enter the cabins, and frighten the inmates, especially if engaged in prayer or singing. On one of these occasions he came back rubbing his hands and laughing. He said he had found Uncle Solomon in his garden, down on his knees, praying like an old owl, and had tipped him over, and frightened him half out of his wits. At another time he found Uncle David sitting on his stool with his face thrust up the chimney, in order that his voice might not be heard by his brutal persecutor. He was praying, giving utterance to these words, probably in reference to his bondage:--"*How long, oh, Lord, how long?*" "As long as my whip!" cried the overseer, who had stolen behind him, giving him a blow. It was the sport of a demon.

Not long after my master had left us, the overseer ascertained for the first time that some of the hands could read, and that they had brought books with them from Virginia. He compelled them to give up the keys of their chests, and on searching found several Bibles and hymn-books. Uncle Solomon's chest contained quite a library, which he could read at night by the light of knots of the pitchpine. These books he collected together, and in the evening called Uncle Solomon into the house. After jeering him for some time, he gave him one of the Bibles and told him to name his text and preach him a sermon. The old man was silent. He then made him get up on the table, and ordered him to pray. Uncle Solomon meekly replied, that "forced prayer was not good for soul or body." The overseer then knelt down himself, and in a blasphemous manner, prayed that the Lord would send his spirit into Uncle Solomon; or else let the old man fall from the table and break his neck, and so have an end of "nigger preaching." On getting up from his knees he went to the cupboard, poured out a glass of brandy for himself, and brought another to the table. "James," said he, addressing me, "Uncle Solomon stands there, for all the world, like a Hickory Quaker. His spirit don't move. I'll see if another spirit wont move it." He compelled the old preacher to swallow the brandy; and then told him to preach and exhort, for the spirit was in him. He set one of the Bibles on fire, and after it was consumed, mixed up the ashes of it in a glass of water, and compelled the old man to drink it, telling him that as the spirit and the word were now both in him, there was no longer any excuse for not preaching. After tormenting the wearied old man in this way until nearly midnight he permitted him to go to his quarters.

The next day I saw Uncle Solomon, and talked with him about his treatment. He said it would not always be so--that slavery was to come to an end, for the Bible said so--that there would then be no more whippings and fightings, but the lion the lamb would lie down together, and all would be love. He said he prayed for Huckstep--that it was not he but the devil in him who behaved so. At his request, I found means to get him a Bible and a hymn-book from the overseer's room; and the old man ever afterwards kept them concealed in the hen-house.

The weeding season of 1836, was marked by repeated acts of cruelty on the part of Huckstep. One of the hands, Priscilla, was, owing to her delicate situation, unable to perform her daily task. He ordered her to be tied up against a tree, in the same manner that I had been. In this situation she was whipped until *she was delivered of a dead infant, at the foot of the tree!* Our men took her upon a sheet, and carried her to the house, where she lay sick for several months, but finally recovered. I have heard him repeatedly laugh at the circumstance.

Not long after this, we were surprised, one morning about ten o'clock, by hearing the horn blown at the house. Presently Aunt Polly came screaming into the field. "What is the matter, Aunty?" I inquired. "Oh Lor!" said she, "Old Huckstep's pitched off his horse and broke his head, and is e'en about dead."

"Thank God!" said little Simon, "The devil will have him at last."

"God-a-mighty be praised!" exclaimed half a dozen others.

The hands, with one accord dropped their hoes; and crowded round the old woman, asking questions. "Is he dead?"--"Will he die?" "Did you feel of him--was he cold?"

Aunt Polly explained as well as she could, that Huckstep, in a state of partial intoxication, had attempted to leap his horse over a fence, had fallen and cut a deep gash in his head, and that he was now lying insensible.

It is impossible to describe the effect produced by this news among the hands. Men, women and children shouted, clapped their hands, and laughed aloud. Some cursed the overseer, and others thanked the Lord for taking him away. Little Simon got down on his knees, and called loudly upon God

to finish his work, and never let the overseer again enter a cotton field. "Let him die, Lord," said he, "let him. He's killed enough of us: Oh, good Lord, let him die and not live."

"Peace, peace! it is a bad spirit," said Uncle Solomon, "God himself willeth not the death of a sinner."

I followed the old woman to the house; and found Huckstep at the foot of one of those trees, so common at the South, called the Pride of China. His face was black, and there was a frightful contusion on the side of his head. He was carried into the house, where, on my bleeding him, he revived. He lay in great pain for several days, and it was nearly three weeks before he was able to come out to the cotton fields.

On returning to the field after Huckstep had revived, I found the hands sadly disappointed to hear that he was still living. Some of them fell to cursing and swearing, and were enraged with me for trying to save his life. Little Simon said I was a fool; if he had bled him he would have done it to some purpose. He would at least, have so disable his arm that he would never again try to swing a whip. Uncle Solomon remonstrated with Simon, and told that I had done right.

The neighbouring overseers used frequently to visit Huckstep, and he, in turn, visited them. I was sometimes present during their interviews, and heard them tell each other stories of horse-racing, negro-huntings, &c. Some time during this season, Ludlow, who was overseer of a plantation about eight miles from ours, told of a slave of his named Thornton, who had twice attempted to escape with his wife and one child. The first time he was caught without much difficulty, chained to the overseer's horse, and in that way brought back. The poor man, to save his wife from a beating, laid all the blame upon himself; and said that his wife had no wish to escape, and tried to prevent him from attempting it. He was severely whipped; but soon ran away again, and was again arrested. The overseer, Ludlow, said he was determined to put a stop to the runaway, and accordingly had resort to a somewhat unusual method of punishment.

There is a great scarcity of good water in that section of Alabama; and you will generally see a large cistern attached to the corners of the houses to catch water for washing &c. Underneath this cistern is frequently a tank

from eight to ten feet deep, into which, when the former is full the water is permitted to run. From this tank the water is pumped out for use. Into one of these tanks the unfortunate slave was placed, and confined by one of his ancles to the bottom of it; and the water was suffered to flow in from above. He was compelled to pump out the water as fast as it came in, by means of a long rod or handle connected with the pump above ground. He was not allowed to begin until the water had risen to his middle. Any pause or delay after this, from weakness and exhaustion, would have been fatal, as the water would have risen above his head. In this horrible dungeon, toiling for his life, he was kept for twenty-four hours without any sustenance. Even Huckstep said that this was too bad--that he had himself formerly punished runaways in that way--but should not do it again.

I rejoice to be able to say that this sufferer has at last escaped with his wife and child, into a free state. He was assisted by some white men, but I do not know all the particulars of his escape.

Our overseer had not been long able to ride about the plantation after his accident, before his life was again endangered. He found two of the hands, Little Jarret and Simon, fighting with each other, and attempted to chastise both of them. Jarret bore it patiently, but Simon turned upon him, seized a stake or pin from a cart near by, and felled him to the ground. The overseer got up--went to the house, and told aunt Polly that he had nearly been killed by the 'niggers,' and requested her to tie up his head, from which the blood was streaming. As soon as this was done, he took down his gun, and went out in pursuit of Simon, who had fled to his cabin, to get some things which he supposed necessary previous to attempting his escape from the plantation. He was just stepping out of the door when he met the enraged overseer with his gun in his hand. Not a word was spoken by either. Huckstep raised his gun and fired. The man fell without a groan across the door-sill. He rose up twice on his hands and knees, but died in a few minutes. He was dragged off and buried. The overseer told me that there was no other way to deal with such a fellow. It was Alabama law, if a slave resisted to shoot him at once. He told me of a case which occurred in 1834, on a plantation about ten miles distant, and adjoining that where Crop, the negro hunter, boarded with his hounds. The overseer had bought some slaves at Selma, from a drove or coffle passing through the place. They proved very refractory. He whipped three of them, and undertook to whip a

fourth who was from Maryland. The man raised his hoe in a threatening manner, and the overseer fired upon him. The slave fell, but instantly rose up on his hands and knees, and was beaten down again by the stock of the overseer's gun. The wounded wretch raised himself once more, drew a knife from the waistband of his pantaloons, and catching hold of the overseer's coat, raised himself high enough to inflict a fatal wound upon the latter. Both fell together, and died immediately after.

Nothing more of special importance occurred until July, of last year, when one of our men named John, was whipped three times for not performing his task. On the last day of the month, after his third whipping, he ran away. On the following morning, I found that he was missing at his row. The overseer said we must hunt him up; and he blew the "nigger horn," as it is called, for the dogs. This horn was only used when we went out in pursuit of fugitives. It is a cow's horn, and makes a short, loud sound. We crossed Flincher's and Goldsby's plantations, as the dogs had got upon John's track, and went off barking in that direction, and the two overseers joined us in the chase. The dogs soon caught sight of the runaway, and compelled him to climb a tree. We came up; Huckstep ordered him down, and secured him upon my horse by tying him to my back. On reaching home he was stripped entirely naked and lashed up to a tree. Flincher then volunteered to whip him on one side of his legs, and Goldsby on the other. I had, in the meantime, been ordered to prepare a wash of salt and pepper, and wash his wounds with it. The poor fellow groaned, and his flesh shrunk and quivered as the burning solution was applied to it. This wash, while it adds to the immediate torment of the sufferer, facilitates the cure of the wounded parts. Huckstep then whipped him from his neck down to his thighs, making the cuts lengthwise of his back. He was very expert with the whip, and could strike, at any time, within an inch of his mark. He then gave the whip to me and told me to strike directly across his back. When I had finished, the miserable sufferer, from his neck to his heel, was covered with blood and bruises. Goldsby and Flincher now turned to Huckstep, and told him, that I deserved a whipping as much as John did: that they had known me frequently disobey his orders, and that I was partial to the "Virginia ladies," and didn't whip them as I did the men. They said if I was a driver of theirs they would know what to do with me. Huckstep agreed with them; and after directing me to go to the house and prepare more of the wash for John's

back, he called after me with an oath, to see to it that I had some for myself, for he meant to give me, at least, two hundred and fifty lashes. I returned to the house, and scarcely conscious of what I was doing, filled an iron vessel with water, put in the salt and pepper; and placed it over the embers.

As I stood by the fire watching the boiling of the mixture, and reflecting upon the dreadful torture to which I was about to be subjected, the thought of *escape* flashed upon my mind. The chance was a desperate one; but I resolved to attempt it. I ran up stairs, tied my shirt in a handkerchief, and stepped out of the back door of the house, telling Aunt Polly to take care of the wash at the fire until I returned. The sun was about one hour high, but luckily for me the hands as well as the three overseers, were on the other side of the house. I kept the house between them and myself, and ran as fast as I could for the woods. On reaching them I found myself obliged to proceed slowly as there was a thick undergrowth of cane and reeds. Night came on. I straggled forward by a dim star-light, amidst vines and reed beds. About midnight the horizon began to be overcast; and the darkness increased until in the thick forest, I could scarcely see a yard before me. Fearing that I might lose my way and wander towards the plantation, instead of from it, I resolved to wait until day. I laid down upon a little hillock, and fell asleep.

When I awoke it was broad day. The clouds had vanished, and the hot sunshine fell through the trees upon my face. I started up, realizing my situation, and darted onward. My object was to reach the great road by which we had travelled when we came out from Virginia. I had, however, very little hope of escape. I knew that a hot pursuit would be made after me, and what I most dreaded was, that the overseer would procure Crop's bloodhounds to follow my track. If only the hounds of our plantation were sent after me, I had hopes of being able to make friends of them, as they were always good-natured and obedient to me. I travelled until, as near as I could judge, about ten o'clock, when a distant sound startled me. I stopped and listened. It was the deep bay of the bloodhound, apparently at a great distance. I hurried on until I came to a creek about fifteen yards wide, skirted by an almost impenetrable growth of reeds and cane. Plunging into it, I swam across and ran down by the side of it a short distance, and, in order to baffle the dogs, swam back to the other side again. I stopped in the reed-bed and listened. The dogs seemed close at hand, and by the loud

barking I felt persuaded that Crop's hounds were with them. I thought of the fate of Little John, who had been torn in pieces by the hounds, and of the scarcely less dreadful condition of those who had escaped the dogs only to fall into the hands of the overseer. The yell of the dogs grew louder. Escape seemed impossible. I ran down to the creek with a determination to drown myself. I plunged into the water and went down to the bottom; but the dreadful strangling sensation compelled me to struggle up to the surface. Again I heard the yell of the bloodhounds; and again desperately plunged down into the water. As I went down I opened my mouth, and, choked and gasping, I found myself once more struggling upward. As I rose to the top of the water and caught a glimpse of the sunshine and the trees, the love of life revived in me. I swam to the other side of the creek, and forced my way through the reeds to a large tree, and stood under one of its lowest limbs, ready in case of necessity, to spring up into it. Here panting and exhausted, I stood waiting for the dogs. The woods seemed full of them. I heard a bell tinkle, and, a moment after, our old hound Venus came bounding through the cane, dripping wet from the creek. As the old hound came towards me, I called to her as I used to do when out hunting with her. She stopped suddenly, looked up at me, and then came wagging her tail and fawning around me. A moment after the other dog came up hot in the chase, and with their noses to the ground. I called to them, but they did not look up, but came yelling on. I was just about to spring into the tree to avoid them when Venus the old hound met them, and stopped them. They then all came fawning and playing and jumping about me. The very creatures whom a moment before I had feared would tear me limb from limb, were now leaping and licking my hands, and rolling on the leaves around me. I listened awhile in the fear of hearing the voices of men following the dogs, but there was no sound in the forest save the gurgling of the sluggish waters of the creek, and the chirp of black squirrels in the trees. I took courage and started onward once more, taking the dogs with me. The bell on the neck of the old dog, I feared might betray me, and, unable to get it off her neck, I twisted some of the long moss of the trees around it, so as to prevent its ringing. At night I halted once more with the dogs by my side. Harassed with fear, and tormented with hunger, I laid down and tried to sleep. But the dogs were uneasy, and would start up and bark at the cries or the footsteps of wild animals, and I was obliged, to use my utmost exertions to keep them quiet, fearing that their barking would draw my pursuers upon me. I slept

but little; and as soon as daylight, started forward again. The next day towards evening, I reached a great road which, I rejoiced to find, was the same which my master and myself had travelled on our way to Greene county. I now thought it best to get rid of the dogs, and accordingly started them in pursuit of a deer. They went off, yelling on the track, and I never saw them again. I remembered that my master told me, near this place, that we were in the Creek country, and that there were some Indian settlements not far distant. In the course of the evening I crossed the road, and striking into a path through the woods, soon came to a number of Indian cabins. I went into one of them and begged for some food. The Indian women received me with a great deal of kindness, and gave me a good supper of venison, corn bread, and stewed pumpkin. I remained with them till the evening of the next day, when I started afresh on my journey. I kept on the road leading to Georgia. In the latter part of the night I entered into a long low bottom, heavily timbered--sometimes called Wolf Valley. It was a dreary and frightful place. As I walked on, I heard on all sides the howling of the wolves, and the quick patter of their feet on the leaves and sticks, as they ran through the woods. At daylight I laid down, but had scarcely closed my eyes when I was roused up by the wolves snarling and howling around me. I started on my feet, and saw several of them running by me. I did not again close my eyes during the whole day. In the afternoon, a bear with her two cubs came to a large chestnut tree near where I lay. She crept up the tree, went out on one of the limbs, and broke off several twigs in trying to shake down the nuts. They were not ripe enough to fall, and, after several vain attempts to procure some of them, she crawled down the tree again and went off with her young.

The day was long and tedious. As soon as it was dark, I once more resumed my journey. But fatigue and the want of food and sleep rendered me almost incapable of further effort. It was not long before I fell asleep, while walking, and wandered out of the road. I was awakened by a bunch of moss which hung down from the limb of a tree and met my face. I looked up and saw, as I thought, a large man standing just before me. My first idea was that some one had struck me over the face, and that I had been at last overtaken by Huckstep. Rubbing my eyes once more, I saw the figure before me sink down upon its hands and knees. Another glance assured me that it was a bear and not a man. He passed across the road and disappeared.

This adventure kept me awake for the remainder of the night. Towards morning I passed by a plantation, on which was a fine growth of peach trees, full of ripe fruit. I took as many of them as I could conveniently carry in my hands and pockets, and retiring a little distance into the woods, laid down and slept till evening, when I again went forward.

Sleeping thus by day and travelling by night, in a direction towards the North Star, I entered Georgia. As I only travelled in the night time, I was unable to recognize rivers and places which I had seen before until I reached Columbus, where I recollected I had been with my master. From this place I took the road leading to Washington, and passed directly through that village. On leaving the village, I found myself contrary to my expectation, in an open country with no woods in view. I walked on until day broke in the east. At a considerable distance ahead, I saw a group of trees, and hurried on towards it. Large and beautiful plantations were on each side of me, from which I could hear dogs bark, and the driver's horn sounding. On reaching the trees, I found that they afforded but a poor place of concealment. On either hand, through its openings, I could see the men turning out to the cotton fields. I found a place to lie down between two oak stumps, around which the new shoots had sprung up thickly, forming a comparatively close shelter. After eating some peaches, which since leaving the Indian settlement had constituted my sole food, I fell asleep. I was waked by the barking of a dog. Raising my head and looking through the bushes, I found that the dog was barking at a black squirrel who was chattering on a limb almost directly above me. A moment after, I heard a voice speaking to the dog, and soon saw a man with a gun in his hand, stealing through the wood. He passed close to the stumps, where I lay trembling with terror lest he should discover me. He kept his eye however upon the tree, and raising his gun, fired. The squirrel dropped dead close by my side. I saw that any further attempt at concealment would be in vain, and sprang upon my feet. The man started forward on seeing me, struck at me with his gun and beat my hat off. I leaped into the road; and he followed after, swearing he would shoot me if I didn't stop. Knowing that his gun was not loaded, I paid no attention to him, but ran across the road into a cotton field where there was a great gang of slaves working. The man with the gun followed, and called to the two colored drivers who were on horseback, to ride after me and stop me. I saw a large piece of woodland at some distance

ahead, and directed my course towards it. Just as I reached it, I looked back, and saw my pursuer far behind me; and found, to my great joy, that the two drivers had not followed me. I got behind a tree, and soon heard the man enter the woods and pass me. After all had been still for more than an hour, I crept into a low place in the depth of the woods and laid down amidst a bed of reeds, where I again fell asleep. Towards evening, on awaking, I found the sky beginning to be cloudy, and before night set in it was completely overcast. Having lost my hat, I tied an old handkerchief over my head, and prepared to resume my journey. It was foggy and very dark, and involved as I was in the mazes of the forest, I did not know in what direction I was going. I wandered on until I reached a road, which I supposed to be the same one which I had left. The next day the weather was still dark and rainy, and continued so for several days. During this time I slept only by leaning against the body of a tree, as the ground was soaked with rain. On the fifth night after my adventure near Washington, the clouds broke away, and the clear moonlight and the stars shone down upon me.

I looked up to see the North Star, which I supposed still before me. But I sought it in vain in all that quarter of the heavens. A dreadful thought came over me that I had been travelling out of my way. I turned round and saw the North Star, which had been shining directly upon my back. I then knew that I had been travelling away from freedom, and towards the place of my captivity ever since I left the woods into which I had been pursued on the 21st, five days before. Oh, the keen and bitter agony of that moment! I sat down on the decaying trunk of a fallen tree, and wept like a child. Exhausted in mind and body, nature came at last to my relief, and I fell asleep upon the log. When I awoke it was still dark. I rose and nerved myself for another effort for freedom. Taking the North Star for my guide, I turned upon my track, and left once more the dreaded frontiers of Alabama behind me. The next night, after crossing the one on which I travelled, and which seemed to lead more directly towards the North. I took this road, and the next night after, I came to a large village. Passing through the main street, I saw a large hotel which I at once recollected. I was in Augusta, and this was the hotel at which my master had spent several days when I was with him, on one of his southern visits. I heard the guards patrolling the town cry the hour of twelve; and fearful of being taken up, I turned out of the main street, and got upon the road leading to Petersburg. On reaching

the latter place, I swam over the Savannah river into South Carolina, and from thence passed into North Carolina.

Hitherto I had lived mainly upon peaches, which were plenty on almost all the plantations in Alabama and Georgia; but the season was now too far advanced for them, and I was obliged to resort to apples. These I obtained without much difficulty until within two or three days journey of the Virginia line. At this time I had had nothing to eat but two or three small and sour apples for twenty-four hours, and I waited impatiently for night, in the hope of obtaining fruit from the orchards along the road. I passed by several plantations, but found no apples. After midnight, I passed near a large house, with fruit trees around it. I searched under, and climbed up and shook several of them to no purpose. At last I found a tree on which there were a few apples. On shaking it, half a dozen fell. I got down, and went groping and feeling about for them in the grass, but could find only two, the rest were devoured by several hogs who were there on the same errand with myself. I pursued my way until day was about breaking, when I passed another house. The feeling of extreme hunger was here so intense, that it required all the resolution I was master of to keep myself from going, up to the house and breaking into it in search of food. But the thought of being again made a slave, and of suffering the horrible punishment of a runaway restrained me. I lay in the worlds all that day without food. The next evening, I soon found a large pile of excellent apples, from which I supplied myself.

The next evening I reached Halifax Court House, and I then knew that I was near Virginia. On the 7th of October, I came to the Roanoke, and crossed it in the midst of a violent storm of rain and thunder. The current ran so furiously that I was carried down with it, and with great difficulty, and in a state of complete exhaustion, reached the opposite shore.

At about 2 o'clock, on the night of the 15th, I approached Richmond, but not daring to go into the city at that hour, on account of the patrols, I lay in the woods near Manchester, until the next evening, when I started in the twilight, in order to enter before the setting of the watch. I passed over the bridge unmolested, although in great fear, as my tattered clothes and naked head were well calculated to excite suspicion; and being well acquainted with the localities of the city, made my way to the house of a friend. I was

received with the utmost kindness, and welcomed as one risen from the dead. Oh, how inexpressibly sweet were the tones of human sympathy, after the dreadful trials to which I had been subjected--the wrongs and outrages which I witnessed and suffered! For between two and three months I had not spoken with a human being, and the sound even of my own voice now seemed strange to my ears. During this time, save in two or three instances I had tasted of no food except peaches and apples. I was supplied with some dried meat and coffee, but the first mouthful occasioned nausea and faintness. I was compelled to take my bed, and lay sick for several days. By the assiduous attention and kindness of my friends, I was supplied with every thing which was necessary during my sickness. I was detained in Richmond nearly a month. As soon as I had sufficiently recovered to be able to proceed on my journey, I bade my kind host and his wife an affectionate farewell, and set forward once more towards a land of freedom. I longed to visit my wife and children in Powhatan county, but the dread of being discovered prevented me from attempting it. I had learned from my friends in Richmond that they were living and in good health, but greatly distressed on my account.

My friends had provided me with a fur cap, and with as much lean ham, cake and biscuit, as I could conveniently carry. I proceeded in the same way as before, travelling by night and lying close and sleeping by day. About the last of November I reached the Shenandoah river. It was very cold; ice had already formed along the margin, and in swimming the river I was chilled through; and my clothes froze about me soon after I had reached the opposite side. I passed into Maryland, and on the 5th of December, stepped across the line which divided the free state of Pennsylvania from the land of slavery.

I had a few shillings in money which were given me at Richmond, and after travelling nearly twenty-four hours from the time I crossed the line, I ventured to call at a tavern, and buy a dinner. On reaching Carlisle, I enquired of the ostler in a stable if he knew of any one who wished to hire a house servant or coachman. He said he did not. Some more colored people came in, and taking me aside told me that they knew that I was from Virginia, by my pronunciation of certain words--that I was probably a runaway slave--but that I need not be alarmed, as they were friends, and would do all in their power to protect me. I was taken home by one of them,

and treated with the utmost kindness; and at night he took me in a wagon, and carried me some distance on my way to Harrisburg, where he said I should meet with friends.

He told me that I had better go directly to Philadelphia, as there would be less danger of my being discovered and retaken there than in the country, and there were a great many persons there who would exert themselves to secure me from the slaveholders. In parting he cautioned me against conversing or stopping with any man on the road, unless he wore a plain, straight collar on a round coat, and said, "thee," and "thou." By following his directions I arrived safely in Philadelphia, having been kindly entertained and assisted on my journey, by several benevolent gentlemen and ladies, whose compassion for the wayworn and hunted stranger I shall never forget, and whose names will always be dear to me. On reaching Philadelphia, I was visited by a large number of the Abolitionists, and friends of the colored people, who, after hearing my story, thought it would not be safe for me to remain in any part of the United States. I remained in Philadelphia a few days; and then a gentleman came on to New-York with me, I being considered on board the steam-boat, and in the cars, as his servant. I arrived at New-York, on the 1st of January. The sympathy and kindness which I have every where met with since leaving the slave states, has been the more grateful to me because it was in a great measure unexpected. The slaves are always told that if they escape into a free state, they will be seized and put in prison, until their masters send for them. I had heard Huckstep and the other overseers occasionally speak of the Abolitionists, but I did not know or dream that they were the friends of the slave. Oh, if the miserable men and women, now toiling on the plantations of Alabama, could know that thousands in the free states are praying and striving for their deliverance, how would the glad tidings be whispered from cabin to cabin, and how would the slave-mother as she watches over her infant, bless God, on her knees, for the hope that this child of her day of sorrow, might never realize in stripes, and toil, and grief unspeakable, what it is to be a slave?

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NO. 7

THE ANTI-SLAVERY EXAMINER.
EMANCIPATION IN THE WEST INDIES.

* * * * *

A SIX MONTHS' TOUR IN ANTIGUA, BARBADOES, AND JAMAICA
IN THE YEAR 1837.

BY JAS. A. THOME, AND J. HORACE KIMBALL.

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CONTENTS.

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ANTIGUA.--CHAPTER I.

Geography and Statistics of the Island,--Reflections on arrival,--Interview with Clergymen,--with the Governor,--with a member of Assembly, --Sabbath,--Service at the Moravian Chapel,--Sabbath School,--Service at the Episcopal Church,--Service at the Wesleyan Chapel,--Millar's Estate,--Cane-holing,--Colored planter,--Fitch's Creek Estate,--Free Villages,--Dinner at the Governor's,--Donovan's Estate,--Breakfast at Mr. Watkins,--Dr. Ferguson,--Market,--Lockup house,--Christmas Holidays,--Colored Population,--Thibou Jarvis's Estate,--Testimony of the Manager,--Anniversary of the Friendly Society,--A negro patriarch,--Green Castle Estate,--Testimony of the Manager,--Anniversary of the Juvenile Association,--Wetherill Estate,--

-Testimony of the Manager,--Conversation with a boatman,--Moravian station at Newfield,--Testimony of the Missionaries,--School for Adults,--Interview with the Speaker of the Assembly,--Moravian "Speaking,"--Conversation with Emancipated Slaves,--The Rector of St. Philip's,--Frey's Estate,--Interview with the American Consul,--Sabbath at Millar's,--Breakfast at the Villa Estate,--A Fair,--Breakfast at Mr. Cranstoun's,--His Testimony,--Moravian Station at Cedar Hall,--Conversation with Emancipated Slaves,--Moravian Station at Grace Bay,--Testimony of the Missionaries,--Grandfather Jacob,--Mr. Scotland's Estate.--A day at Fitch's Creek,--Views of the Manager,--A call from the Archdeacon,--from Rev. Edward Fraser,--Wesleyan District Meeting,--Social interviews with the Missionaries,--Their Views and Testimony,--Religious Anniversaries,--Temperance Society,--Bible Society,--Wesleyan Missionary Society.--Resolution of the Meeting,--Laying the Corner Stone of a Wesleyan Chapel,--Resolutions of the Missionaries.

ANTIGUA.--CHAPTER II.

GENERAL RESULTS.

Religion,--Statistics of Denominations,--Morality,--Reverence for the Lord's Day,--Marriage,--Conjugal faithfulness,--Concubinage decreasing,--Temperance,--Profane Language rare,--Statistics of the Bible Society,--Missionary Associations,--Temperance Societies,--Friendly Societies,--Daily Meal Society,--Distressed Females' Friend Society,--Education,--Annual Examination of the Parochial School,--Infant Schools in the Country,--Examination at Parham,--at Willoughby Bay,--Mr. Thwaite's Replies to Queries on Education,--Great Ignorance before Emancipation,--Aptness of the Negroes to learn,--Civil and Political Condition of the Emancipated.

ANTIGUA.--CHAPTER III.

FACTS AND TESTIMONY.

IMMEDIATE ABOLITION--an immense change to the condition of the Slave,--Adopted from Political and Pecuniary Considerations,--Went into operation peaceably,--gave additional security to Persons and Property,--Is regarded by all as a great blessing to the Island,--Free, cheaper than Slave labor,--More work done, and better done, since Emancipation,--Freemen more easily managed than Slaves,--The Emancipated more Trustworthy than when Slaves,--They appreciate and reverence Law,--They stay at home and mind their own business,--Are less "insolent" than when Slaves,--Gratitude a strong trait of their character,--Emancipation has elevated them,--It has raised the price of Real Estate, given new life to Trade, and to all kinds of business,--Wrought a total change in the views of the Planters,--Weakened Prejudice against Color,--The Discussions preceding Emancipation restrained Masters from Cruelties,--Concluding Remarks.

BARBADOES.

Passage to Barbadoes,--Bridgetown,--Visit to the Governor,--To the Archdeacon,--Lear's Estate,--Testimony of the Manager,--Dinner Party at Lear's,--Ride to Scotland,--The Red Shanks,--Sabbath at Lear's; Religious Service,--Tour to the Windward,--Breakfast Party at the Colliton Estate,--Testimony to the Working of the Apprenticeship,--The Working of it in Demerara,--The Codrington Estate,--Codrington College,--The "Horse,"--An Estate on Fire,--The Ridge Estate; Dinner

with a Company of Planters,--A Day at Colonel Ashby's; his Testimony to the Working of the Apprenticeship,--Interviews with Planters; their Testimony,--The Belle Estate,--Edgecombe Estate; Colonel Barrow,--Horton Estate,--Drax Hall Estate,--Dinner Party at the Governor's,--Testimony concerning the Apprenticeship,--Market People,--Interview with Special Justice Hamilton; his Testimony,--Station House, District A; Trials of Apprentices before Special Magistrate Colthurst,--Testimony of the Superintendent of the Rural Police,--Communication from Special Justice Colthurst,--Communication from Special Justice Hamilton,--Testimony of Clergymen and Missionaries,--Curate of St. Paul's,--A FREE Church,--A Sabbath School Annual Examination,--Interview with Episcopal Clergymen; their Testimony,--Visit to Schools,--Interview with the Superintendent of the Wesleyan Mission,--Persecution of the Methodists by Slaveholders,--The Moravian Mission,--Colored Population,--Dinner Party at Mr. Harris's,--Testimony concerning the objects of our Mission,--A New Englander,--History of an Emancipated Slave,--Breakfast Party at Mr. Thorne's,--Facts and Testimony concerning Slavery and the Apprenticeship,--History of an Emancipated Slave,--Breakfast Party at Mr. Prescod's,--Character and History of the late Editor of the New Times,--Breakfast Party at Mr. Bourne's,--Prejudice,--History and Character of an Emancipated Slave,--Prejudice, vincible,--Concubinage,--Barbadoes as it was; "Reign of Terror;"--Testimony; Cruelties,--Insurrection of 1816,--Licentiousness,--Prejudice--Indolence and Inefficiency of the Whites,--Hostility to Emancipation,--Barbadoes as it is,--The Apprenticeship System; Provisions respecting the Special Magistrates,--Provisions respecting the Master,--Provisions respecting the Apprentice,--The Design of the Apprenticeship,--Practical Operation of the Apprenticeship,--Sympathy of the Special Magistrates with the Masters,--Apprenticeship, modified Slavery,--Vexatious to the Master,--No Preparation for Freedom,--Begets hostility between Master and Apprentice,--Has illustrated the Forbearance of the Negroes,--Its tendency to exasperate them,--Testimony to the Working of the Apprenticeship in the Windward Islands generally.

JAMAICA.

Sketch of its Scenery,--Interview with the Attorney General,--The Solicitor General; his Testimony,--The American Consul; his Testimony,--The Superintendent of the Wesleyan Missions,--The Baptist Missionaries; Sabbath; Service in a Baptist Chapel,--Moravians; Episcopalians; Scotch Presbyterians,--Schools in Kingston,--Communication from the Teacher of the Wolmer Free School; Education; Statistics,--The Union School,--"Prejudice Vincible",--Disabilities and Persecutions of Colored People,--Edward Jordan, Esq.,--Colored Members of Assembly,--Richard Hill, Esq.,--Colored Artisans and Merchants in Kingston,--Police Court of Kingston,--American Prejudice in the "limbos",--"Amalgamation!"--St. Andrew's House of Correction; Tread-mill,--Tour through "St. Thomas in the East",--Morant Bay; Local Magistrate; his lachrymal forebodings,--Proprietor of Green Wall Estate; his Testimony,--Testimony of a Wesleyan Missionary,--Belvidere Estate; Testimony of the Manager,--Chapel built by Apprentices,--House of Correction,--Chain-Gang,--A call from Special Justice Baines; his Testimony,--Bath,--Special Justice's Office; his Testimony,--"Alarming Rebellion",--Testimony of a Wesleyan Missionary,--Principal of the Mico Charity School; his Testimony,--Noble instance of Filial Affection in a Negro Girl,--Plantain Garden River Valley; Alexander Barclay, Esq.,--Golden Grove Estate; Testimony of the Manager,--The Custos of the Parish; his Testimony,--Amity Hall Estate; Testimony of the Manager,--Lord Belmore's Prophecy,--Manchioneal; Special Magistrate Chamberlain; his Testimony,--his Weekly Court,--Pro slavery gnashings,--Visit with the Special Magistrate to the Williamsfield Estate; Testimony of the Manager,--Oppression of Book-keepers,--Sabbath; Service at a Baptist Chapel,--Interview with Apprentices; their Testimony,--Tour through St. Andrew's and Port Royal,--Visit to Estates in company with Special Justice Bourne,--White Emigrants to Jamaica,--Dublin Castle Estate; Special Justice Court,--A Despot in convulsions; arbitrary power dies hard,--Encounter with Mules in a mountain pass,--Silver Hill Estate; cases tried; Appraisement of an Apprentice,--Peter's Rock Estate,--

Hall's Prospect Estate,--Female Traveling Merchant,--Negro Provision Grounds,--Apprentices eager to work for Money,--Jury of Inquest,--Character of Overseers,--Conversation with Special Justice Hamilton,--With a Proprietor of Estates and Local Magistrate; Testimony,--Spanishtown,--Richard Hill, Esq., Secretary of the Special Magistracy,--Testimony of Lord Sligo concerning him,--Lord Sligo's Administration; its independence and impartiality,--Statements of Mr. Hill,--Statements of Special Justice Ramsey,--Special Justice's Court,--Baptist Missionary at Spanishtown; his Testimony,--Actual Working of the Apprenticeship; no Insurrection; no fear of it; no Increase of Crime; Negroes improving; Marriage increased; Sabbath better kept; Religious Worship better attended; Law obeyed,--Apprenticeship vexatious to both parties,--Atrocities perpetrated by Masters and Magistrates,--Causes of the ill-working of the Apprenticeship--Provisions of the Emancipation Act defeated by Planters and Magistrates,--The present Governor a favorite with the Planters,--Special Justice Palmer suspended by him,--Persecution of Special Justice Bourne,--Character of the Special Magistrates,--Official Cruelty; Correspondence between a Missionary and Special Magistrate,--Sir Lionel Smith's Message to the House of Assembly,--Causes of the Diminished Crops since Emancipation,--Anticipated Consequences of full Emancipation in 1840,--Examination of the grounds of such anticipations,--Views of Missionaries and Colored People, Magistrates and Planters;--Concluding Remarks.

APPENDIX.

Official Communication from Special Justice Lyon,--Communication from the Solicitor General of Jamaica,--Communication from Special Justice Colthurst,--Official Returns of the Imports and Exports of Barbadoes,--Valuations of Apprentices in Jamaica,--Tabular View of the Crops in Jamaica for fifty-three years preceding 1836; Comments

[of the Jamaica Watchman on the foregoing Table,--Comments of the Spanishtown Telegraph,--Brougham's Speech in Parliament.](#)

INTRODUCTION.

It is hardly possible that the success of British West India Emancipation should be more conclusively proved, than it has been by the absence among us of the exultation which awaited its failure. So many thousands of the citizens of the United States, without counting slaveholders, would not have suffered their prophesyings to be falsified, if they could have found whereof to manufacture fulfilment. But it is remarkable that, even since the first of August, 1834, the evils of West India emancipation on the lips of the advocates of slavery, or, as the most of them nicely prefer to be termed, the opponents of abolition, have remained in the future tense. The bad reports of the newspapers, spiritless as they have been compared with the predictions, have been traceable, on the slightest inspection, not to emancipation, but to the illegal continuance of slavery, under the cover of its legal substitute. Not the slightest reference to the rash act, whereby the thirty thousand slaves of Antigua were immediately "turned loose," now mingles with the croaking which strives to defend our republican slavery against argument and common sense.

The Executive Committee of the American Anti-Slavery Society, deemed it important that the silence which the pro-slavery press of the United States has seemed so desirous to maintain in regard to what is strangely enough termed the "great experiment of freedom," should be thoroughly broken up by a publication of facts and testimony collected on the spot. To this end, REV. JAMES A. THOME, and JOSEPH H. KIMBALL, ESQ., were deputed to the West Indies to make the proper investigations. Of their qualifications for the task, the subsequent pages will furnish the best

evidence: it is proper, however, to remark, that Mr. Thome is thoroughly acquainted with our own system of slavery, being a native and still a resident of Kentucky, and the son of a slaveholder, (happily no longer so,) and that Mr. Kimball is well known as the able editor of the Herald of Freedom, published at Concord, New Hampshire.

They sailed from New York, the last of November, 1836, and returned early in June, 1837. They improved a short stay at the Danish island of St. Thomas, to give a description of slavery as it exists there, which, as it appeared for the most part in the anti-slavery papers, and as it is not directly connected with the great question at issue, has not been inserted in the present volume. Hastily touching at some of the other British islands, they made Antigua, Barbadoes, and Jamaica, successively the objects of their deliberate and laborious study--as fairly presenting the three grand phases of the "experiment"--Antigua, exemplifying immediate unrestricted abolition; Barbadoes, the best working of the apprenticeship, and Jamaica the worst. Nine weeks were spent in Antigua, and the remainder of their time was divided between the other two islands.

The reception of the delegates was in the highest degree favorable to the promotion of their object, and their work will show how well they have used the extraordinary facilities afforded them. The committee have, in some instances, restored testimonials which their modesty led them to suppress, showing in what estimation they themselves, as well as the object of their mission, were held by some of the most distinguished persons in the islands which they visited.

So wide was the field before them, and so rich and various the fruit to be gathered, that they were tempted to go far beyond the strength supplied by the failing health they carried with them. Most nobly did they postpone every personal consideration to the interests of the cause, and the reader will, we think, agree with us, that they have achieved a result which undiminished energies could not have been expected to exceed--a result sufficient, if any thing could be, to justify the sacrifice it cost them. We regret to add that the labors and exposures of Mr. Kimball, so far prevented his recovery from the disease[[A](#)] which obliged him to resort to a milder climate, or perhaps we should say aggravated it, that he has been compelled to leave to his colleague, aided by a friend, nearly the whole burden of

preparing for the press--which, together with the great labor of condensing from the immense amount of collected materials, accounts for the delay of the publication. As neither Mr. Thome nor Mr. Kimball were here while the work was in the press, it is not improbable that trivial errors have occurred, especially in the names of individuals.

[Footnote [A](#): We learn that Mr. Kimball closed his mortal career at Pembroke, N.H. April 12th, in the 25th year of his age. Very few men in the Anti-Slavery cause have been more distinguished, than this lamented brother, for the zeal, discretion and ability with which he has advocated the cause of the oppressed. "Peace to the memory of a man of worth!"]

It will be perceived that the delegates rest nothing of importance on their own unattested observation. At every point they are fortified by the statements of a multitude of responsible persons in the islands, whose names, when not forbidden, they leave taken the liberty to use in behalf of humanity. Many of these statements were given in the handwriting of the parties, and are in the possession of the Executive Committee. Most of these island authorities are as unchallengeable on the score of previous leaning towards abolitionism, as Mr. McDuffie of Mr. Calhoun would be two years hence, if slavery were to be abolished throughout the United States tomorrow.

Among the points established in this work, beyond the power of dispute or cavil, are the following:

1. That the act of IMMEDIATE EMANCIPATION in Antigua, was not attended with any disorder whatever.
2. That the emancipated slaves have readily, faithfully, and efficiently worked for wages from the first.
3. That wherever there has been any disturbance in the working of the apprenticeship, it has been invariably by the fault of the masters, or of the officers charged with the execution of the "Abolition Act."
4. That the prejudice of caste is fast disappearing in the emancipated islands.

5. That the apprenticeship was not sought for by the planters as a *preparation for freedom*.

6. That no such preparation was needed.

7. That the planters who have fairly made the "experiment," now greatly prefer the new system to the old.

8. That the emancipated people are perceptibly rising in the scale of civilization, morals, and religion.

From these established facts, reason cannot fail to make its inferences in favor of the two and a half millions of slaves in our republic. We present the work to our countrymen who yet hold slaves, with the utmost confidence that its perusal will not leave in their minds a doubt, either of the duty or perfect safety of *immediate emancipation*, however it may fail to persuade their hearts--which God grant it may not!

By order of the Executive Committee of the American Anti-Slavery Society.

New York, April 28th, 1838.

* * * * *

EXPLANATION OF TERMS USED IN THE NARRATIVE.

1. The words 'Clergy' and 'Missionary' are used to distinguish between the ministers of the English or Scotch church, and those of all other denominations.

2. The terms 'church' and 'chapel' denote a corresponding distinction in the places of worship, though the English Church have what are technically called 'chapels of ease!'

3. 'Manager' and 'overseer' are terms designating in different islands the same station. In Antigua and Barbadoes, *manager* is the word in general use, in Jamaica it is *overseer*--both meaning the practical conductor or immediate superintendent of an estate. In our own country, a peculiar odium is attached to the latter term. In the West Indies, the station of manager or overseer is an honorable one; proprietors of estates, and even men of rank, do not hesitate to occupy it.

4. The terms 'colored' and 'black' or 'negro' indicate a distinction long kept up in the West Indies between the mixed blood and the pure negro. The former as a body were few previous to the abolition act; and for this reason chiefly we presume the term of distinction was originally applied to them. To have used these terms interchangeably in accordance with the usage in the United States, would have occasioned endless confusion in the narrative.

5. 'Praedial' and 'non-praedial' are terms used in the apprenticeship colonies to mark the difference between the agricultural class and the domestic; the former are called *praedials*, the latter *non-praedials*.

* * * * *

POPULATION OF THE BRITISH (FORMERLY SLAVE) COLONIES.

(Compiled from recent authentic documents.)

British Colonies.	White.	Slave.	F. Col'd.	Total.
Anguilla	365	2,388	357	3,110
Antigua[A]	1,980	29,839	3,895	35,714
Bahamas	4,240	9,268	2,991	16,499
Barbadoes	15,000	82,000	5,100	102,100
Berbicel	550	21,300	1,150	23,000

Bermuda[A]	3,900	4,600	740	9,240
Cape of Good Hope[B]	43,000	35,500	29,000	107,500
Demerara[B]	3,000	70,000	6,400	79,400
Dominica	850	15,400	3,600	19,850
Grenada	800	24,000	2,800	27,600
Honduras[B]	250	2,100	2,300	4,650
Jamaica	37,000	323,000	55,000	415,000
Mauritius[B]	8,000	76,000	15,000	99,000
Montserrat	330	6,200	800	7,330
Nevis	700	6,600	2,000	9,300
St. Christophers, St. Kitts	1,612	19,310	3,000	23,922
St. Lucia[B]	980	13,600	3,700	18,280
St. Vincent	1,300	23,500	2,800	27,600
Tobago	320	12,500	1,200	14,020
Tortola	480	5,400	1,300	7,180
Trinidad[B]	4,200	24,000	16,000	44,200
Virgin Isles	800	5,400	600	6,800
Total	131,257	831,105	162,733	1,125,095

[Footnote A: These islands adopted immediate emancipation, Aug 1, 1834.]

[Footnote B: These are crown colonies, and have no local legislature.]

ANTIGUA.

CHAPTER I.

Antigua is about eighteen miles long and fifteen broad; the interior is low and undulating, the coast mountainous. From the heights on the coast the whole island may be taken in at one view, and in a clear day the ocean can be seen entirely around the land, with the exception of a few miles of cliff in one quarter. The population of Antigua is about 37,000, of whom 30,000 are negroes--lately slaves--4500 are free people of color, and 2500 are whites.

The cultivation of the island is principally in sugar, of which the average annual crop is 15,000 hogsheads. Antigua is one of the oldest of the British West India colonies, and ranks high in importance and influence. Owing to the proportion of proprietors resident in the Island, there is an accumulation of talent, intelligence and refinement, greater, perhaps, than in any English colony, excepting Jamaica.

Our solicitude on entering the Island of Antigua was intense. Charged with a mission so nearly concerning the political and domestic institutions of the colony, we might well be doubtful as to the manner of our reception. We knew indeed that slavery was abolished, that Antigua had rejected the apprenticeship, and adopted entire emancipation. We knew also, that the free system had surpassed the hopes of its advocates. But we were in the midst of those whose habits and sentiments had been formed under the influences of slavery, whose prejudices still clinging to it might lead them to regard our visit with indifference at least, if not with jealousy. We dared not hope for aid from men who, not three years before, were slaveholders, and who, as a body, strenuously resisted the abolition measure, finally yielding to it only because they found resistance vain.

Mingled with the depressing anxieties already referred to, were emotions of pleasure and exultation, when we stepped upon the shores of an unfettered isle. We trod a soil from which the last vestige of slavery had been swept away! To us, accustomed as we were to infer the existence of slavery from the presence of a particular hue, the numbers of negroes passing to and fro, engaged in their several employments, denoted a land of oppression; but the erect forms, the active movements, and the sprightly countenances, bespoke that spirit of disenthralment which had gone abroad through Antigua.

On the day of our arrival we had an interview with the Rev. James Cox, the superintendent of the Wesleyan mission in the island. He assured us that we need apprehend no difficulty in procuring information, adding, "We are all free here now; every man can speak his sentiments unawed. We have nothing to conceal in our present system; had you come here as the *advocates of slavery* you might have met with a very different reception."

At the same time we met the Rev. N. Gilbert, a clergyman of the English Church, and proprietor of an estate. Mr. G. expressed the hope that we might gather such facts during our stay in the island, as would tend effectually to remove the curse of slavery from the United States. He said that the failure of the crops, from the extraordinary drought which was still prevailing, would, he feared, be charged by persons abroad to the new system. "The enemies of freedom," said he, "will not ascribe the failure to the proper cause. It will be in vain that we solemnly declare, that for more than thirty years the island has not experienced such a drought. Our enemies will persist in laying all to the charge of our free system; men will look only at the amount of sugar exported, which will be less than half the average. They will run away with this fact, and triumph over it as the disastrous consequence of abolition."

On the same day we were introduced to the Rev. Bennet Harvey, the principal of the Moravian mission, to a merchant, an agent for several estates, and to an intelligent manager. Each of these gentlemen gave us the most cordial welcome, and expressed a warm sympathy in the objects of our visit. On the following day we dined, by invitation, with the superintendent of the Wesleyan mission, in company with several missionaries. *Freedom in Antigua* was the engrossing and delightful topic. They rejoiced in the change, not merely from sympathy with the disenthralled negroes, but because it had emancipated them from a disheartening surveillance, and opened new fields of usefulness. They hailed the star of freedom "with exceeding great joy," because it heralded the speedy dawning of the Sun of Righteousness.

We took an early opportunity to call on the Governor, whom we found affable and courteous. On learning that we were from the United States, he remarked, that he entertained a high respect for our country, but its slavery was a stain upon the whole nation. He expressed his conviction that the

instigators of northern mobs must be implicated in some way, pecuniary or otherwise, with slavery. The Governor stated various particulars in which Antigua had been greatly improved by the abolition of slavery. He said, the planters all conceded that emancipation had been a great blessing to the island, and he did not know of a single individual who wished to return to the old system.

His excellency proffered us every assistance in his power, and requested his secretary--*a colored gentleman*--to furnish us with certain documents which he thought would be of service to us. When we rose to leave, the Governor followed us to the door, repeating the advice that we should "see with our own eyes, and hear with our own ears." The interest which his Excellency manifested in our enterprise, satisfied us that the prevalent feeling in the island was opposed to slavery, since it was a matter well understood that the Governor's partialities, if he had any, were on the side of the planters rather than the people.

On the same day we were introduced to a barrister, a member of the assembly and proprietor of an estate. He was in the assembly at the time the abolition act was under discussion. He said that it was violently opposed, until it was seen to be inevitable. Many were the predictions made respecting the ruin which would be brought upon the colony; but these predictions had failed, and abolition was now regarded as the salvation of the island.

SABBATH.

The morning of our first Sabbath in Antigua came with that hushed stillness which marks the Sabbath dawn in the retired villages of New England. The arrangements of the family were conducted with a studied silence that indicated habitual respect for the Lord's day. At 10 o'clock the streets were filled with the church-going throng. The rich rolled along in their splendid vehicles with liveried outriders and postillions. The poor moved in lowlier procession, yet in neat attire, and with the serious air of Christian

worshippers. We attended the Moravian service. In going to the chapel, which is situated on the border of the town, we passed through and across the most frequented streets. No persons were to be seen, excepting those whose course was toward some place of worship. The shops were all shut, and the voices of business and amusement were hushed. The market place, which yesterday was full of swarming life, and sent forth a confused uproar, was deserted and dumb--not a straggler was to be seen of all the multitude.

On approaching the Moravian chapel we observed the negroes, wending their way churchward, from the surrounding estates, along the roads leading into town.

When we entered the chapel the service had begun, and the people were standing, and repeating their liturgy. The house, which was capable of holding about a thousand persons, was filled. The audience were all black and colored, mostly of the deepest Ethiopian hue, and had come up thither from the estates, where once they toiled as slaves, but now as freemen, to present their thank-offerings unto Him whose truth and Spirit had made them free. In the simplicity and tidiness of their attire, in its uniformity and freedom from ornament, it resembled the dress of the Friends. The females were clad in plain white gowns, with neat turbans of cambric or muslin on their heads. The males were dressed in *spencers*, vests, and pantaloons, all of white. All were serious in their demeanor, and although the services continued more than two hours, they gave a wakeful attention to the end. Their responses in the litany were solemn and regular.

Great respect was paid to the aged and infirm. A poor blind man came groping his way, and was kindly conducted to a seat in an airy place. A lame man came wearily up to the door, when one within the house rose and led him to the seat he himself had just occupied. As we sat facing the congregation, we looked around upon the multitude to find the marks of those demoniac passions which are to strew carnage through our own country when its bondmen shall be made free. The countenances gathered there, bore the traces of benevolence, of humility, of meekness, of docility, and reverence; and we felt, while looking on them, that the doers of justice to a wronged people "shall surely dwell in safety and be quiet from fear of evil."

After the service, we visited the Sabbath school. The superintendent was an interesting young colored man. We attended the recitation of a Testament class of children of both sexes from eight to twelve. They read, and answered numerous questions with great sprightliness.

In the afternoon we attended the Episcopal church, of which the Rev. Robert Holberton is rector. We here saw a specimen of the aristocracy of the island. A considerable number present were whites,--rich proprietors with their families, managers of estates, officers of government, and merchants. The greater proportion of the auditory, however, were colored people and blacks. It might be expected that distinctions of color would be found here, if any where;--however, the actual distinction, even in this the most fashionable church in Antigua, amounted only to this, that the body pews on each side of the broad aisle were occupied by the whites, the side pews by the colored people, and the broad aisle in the middle by the negroes. The gallery, on one side, was also appropriated to the colored people, and on the other to the blacks. The finery of the negroes was in sad contrast with the simplicity we had just seen at the Moravian chapel. Their dresses were of every color and style; their hats were of all shapes and sizes, and fillagreed with the most tawdry superfluity of ribbons. Beneath these gaudy bonnets were glossy ringlets, false and real, clustering in tropical luxuriance. This fantastic display was evidently a rude attempt to follow the example set them by the white aristocracy.

The choir was composed chiefly of colored boys, who were placed on the right side of the organ, and about an equal number of colored girls on the left. In front of the organ were eight or ten white children. The music of this colored, or rather "amalgamated" choir, directed by a colored chorister, and accompanied by a colored organist, was in good taste.

In the evening, we accompanied a friend to the Wesleyan chapel, of which the Rev. James Cox is pastor. The minister invited us to a seat within the altar, where we could have a full view of the congregation. The chapel was crowded. Nearly twelve hundred persons were present. All sat promiscuously in respect of color. In one pew was a family of whites, next a family of colored persons, and behind that perhaps might be seen, side by side, the ebon hue of the negro, the mixed tint of the mulatto, and the unblended whiteness of the European. Thus they sat in crowded contact,

seemingly unconscious that they were outraging good taste, violating natural laws, and "confounding distinctions of divine appointment!" In whatever direction we turned, there was the same commixture of colors. What to one of our own countrymen whose contempt for the oppressed has defended itself with the plea of *prejudice against color*, would have been a combination absolutely shocking, was to us a scene as gratifying as it was new.

On both sides, the gallery presented the same unconscious blending of colors. The choir was composed of a large number, mostly colored, of all ages. The front seats were filled by children of various ages--the rear, of adults, rising above these tiny choristers, and softening the shrillness of their notes by the deeper tones of mature age.

The style of the preaching which we heard on the different occasions above described, so far as it is any index to the intelligence of the several congregations, is certainly a high commendation. The language used, would not offend the taste of any congregation, however refined.

On the other hand, the fixed attention of the people showed that the truths delivered were understood and appreciated.

We observed, that in the last two services the subject of the present drought was particularly noticed in prayer.

The account here given is but a fair specimen of the solemnity and decorum of an Antigua sabbath.

VISIT TO MILLAR'S ESTATE.

Early in the week after our arrival, by the special invitation of the manager, we visited this estate. It is situated about four miles from the town of St. John's.

The smooth MacAdamized road extending across the rolling plains and gently sloping hill sides, covered with waving cane, and interspersed with provision grounds, contributed with the fresh bracing air of the morning to make the drive pleasant and animating.

At short intervals were seen the buildings of the different estates thrown together in small groups, consisting of the manager's mansion and out-houses, negro huts, boiling house, cooling houses, distillery, and windmill. The mansion is generally on an elevated spot, commanding a view of the estate and surrounding country. The cane fields presented a novel appearance--being without fences of any description. Even those fields which lie bordering on the highways, are wholly unprotected by hedge, ditch, or rails. This is from necessity. Wooden fences they cannot have, for lack of timber. Hedges are not used, because they are found to withdraw the moisture from the canes. To prevent depredations, there are watchmen on every estate employed both day and night. There are also stock keepers employed by day in keeping the cattle within proper grazing limits. As each estate guards its own stock by day and folds them by night, the fields are in little danger.

We passed great numbers of negroes on the road, loaded with every kind of commodity for the town market. *The head is the beast of burthen* among the negroes throughout the West Indies. Whatever the load, whether it be trifling or valuable, strong or frail, it is consigned to the head, both for safe keeping and for transportation. While the head is thus taxed, the hands hang useless by the side, or are busied in gesticulating, as the people chat together along the way. The negroes we passed were all decently clad. They uniformly stopped as they came opposite to us, to pay the usual civilities. This the men did by touching their hats and bowing, and the women, by making a low courtesy, and adding, sometimes, "howdy, massa," or "mornin', massa." We passed several loaded wagons, drawn by three, four, or five yoke of oxen, and in every instance the driver, so far from manifesting any disposition "insolently" to crowd us off the road, or to contend for his part of it, turned his team aside, leaving us double room to go by, and sometimes stopping until we had passed.

We were kindly received at Millar's by Mr. Bourne, the manager. Millar's is one of the first estates in Antigua. The last year it made the largest sugar

crop on the island. Mr. B. took us before breakfast to view the estate. On the way, he remarked that we had visited the island at a very unfavorable time for seeing the cultivation of it, as every thing was suffering greatly from the drought. There had not been a single copious rain, such as would "make the water run," since the first of March previous. As we approached the laborers, the manager pointed out one company of ten, who were at work with their hoes by the side of the road, while a larger one of thirty were in the middle of the field. They greeted us in the most friendly manner. The manager spoke kindly to them, encouraging them to be industrious. He stopped a moment to explain to us the process of cane-holing. The field is first ploughed[A] in one direction, and the ground thrown up in ridges of about a foot high. Then similar ridges are formed crosswise, with the hoe, making regular squares of two-feet-sides over the field. By raising the soil, a clear space of six inches square is left at the bottom. In this space the *plant* is placed horizontally, and slightly covered with earth. The ridges are left about it, for the purpose of conducting the rain to the roots, and also to retain the moisture. When we came up to the large company, they paused a moment, and with a hearty salutation, which ran all along the line, bade us "good mornin'," and immediately resumed their labor. The men and women were intermingled; the latter kept pace with the former, wielding their hoes with energy and effect. The manager addressed them for a few moments, telling them who we were, and the object of our visit. He told them of the great number of slaves in America, and appealed to them to know whether they would not be sober, industrious, and diligent, so as to prove to American slaveholders the benefit of freeing all their slaves. At the close of each sentence, they all responded, "Yes, massa," or "God bless de massas," and at the conclusion, they answered the appeal, with much feeling, "Yes, massa; please God massa, we will all do so." When we turned to leave, they wished to know what we thought of their industry. We assured them that we were much pleased, for which they returned their "thankee, massa." They were working at a *job*. The manager had given them a piece of ground "to hole," engaging to pay them sixteen dollars when they had finished it. He remarked that he had found it a good plan to give *jobs*. He obtained more work in this way than he did by giving the ordinary wages, which is about eleven cents per day. It looked very much like slavery to see the females working in the field; but the manager said they chose it generally "*for the sake of the wages*." Mr. B. returned with us to the house, leaving the gangs

in the field, with only an aged negro in charge of the work, as *superintendent*. Such now is the name of the overseer. The very *terms*, *driver* and *overseer*, are banished from Antigua; and the *whip* is buried beneath the soil of freedom.

[Footnote [A](#): In those cases where the plough is used at all. It is not yet generally introduced throughout the West Indies. Where the plough is not used, the whole process of holing is done with the hoe, and is extremely laborious]

When we reached the house we were introduced to Mr. Watkins, a *colored* planter, whom Mr. B. had invited to breakfast with us. Mr. Watkins was very communicative, and from him and Mr. B., who was equally free, we obtained information on a great variety of points, which we reserve for the different heads to which they appropriately belong.

FITCH'S CREEK ESTATE.

From Millar's we proceeded to Fitch's Creek Estate, where we had been invited to dine by the intelligent manager, Mr. H. Armstrong. We three met several Wesleyan missionaries. Mr. A. is himself a local preacher in the Wesleyan connection. When a stranger visits an estate in the West Indies, almost the first thing is an offer from the manager to accompany him through the sugar works. Mr. A. conducted us first to a new boiling house, which he was building after a plan of his own devising. The house is of brick, on a very extensive scale. It has been built entirely by negroes--chiefly those belonging to the estate who were emancipated in 1834. Fitch's Creek Estate is one of the largest on the Island, consisting of 500 acres, of which 300 are under cultivation. The number of people employed and living on the property is 260. This estate indicates any thing else than an apprehension of approaching ruin. It presents the appearance, far more, of a *resurrection*, from the grave. In addition to his improved sugar and boiling establishment, he has projected a plan for a new village, (as the collection of negro houses is called,) and has already selected the ground and begun to

build. The houses are to be larger than those at present in use, they are to be built of stone instead of mud and sticks, and to be neatly roofed. Instead of being huddled together in a bye place, as has mostly been the case, they are to be built on an elevated site, and ranged at regular intervals around three sides of a large square, in the centre of which a building for a chapel and school house is to be erected. Each house is to have a garden. This and similar improvements are now in progress, with the view of adding to the comforts of the laborers, and attaching them to the estate. It has become the interest of the planter to make it for the *interest of the people* to remain on his estate. This *mutual interest* is the only sure basis of prosperity on the one hand and of industry on the other.

The whole company heartily joined in assuring us that a knowledge of the actual working of abolition in Antigua, would be altogether favorable to the cause of freedom, *and that the more thorough our knowledge of the facts in the case, the more perfect would be our confidence in the safety of IMMEDIATE emancipation.*

Mr. A. said that the spirit of enterprise, before dormant, had been roused since emancipation, and planters were now beginning to inquire as to the best modes of cultivation, and to propose measures of general improvement. One of these measures was the establishing of *free villages*, in which the laborers might dwell by paying a small rent. When the adjacent planters needed help they could here find a supply for the occasion. This plan would relieve the laborers from some of that dependence which they must feel so long as they live on the estate and in the houses of the planters. Many advantages of such a system were specified. We allude to it here only as an illustration of that spirit of inquiry, which freedom has kindled in the minds of the planters.

No little desire was manifested by the company to know the state of the slavery question in this country. They all, planters and missionaries, spoke in terms of abhorrence of our slavery, our snobs, our prejudice, and our Christianity. One of the missionaries said it would never do for him to go to America, for he should certainly be excommunicated by his Methodist brethren, and Lynched by the advocates of slaver. He insisted that slaveholding professors and ministers should be cut off from the communion of the Church.

As we were about to take leave, the *proprietor* of the estate rode up, accompanied by the governor, who he had brought to see the new boiling-house, and the other improvements which were in progress. The proprietor reside in St. John's, is a gentleman of large fortune, and a member of the assembly. He said he would be happy to aid us in any way--but added, that in all details of a practical kind, and in all matters of fact, the planters were the best witnesses, for they were the conductors of the present system. We were glad to obtain the endorsement of an influential proprietor to the testimony of practical planters.

DINNER AT THE GOVERNOR'S.

On the following day having received a very courteous invitation[[A](#)] from the governor, to dine at the government house, we made our arrangements to do so. The Hon. Paul Horsford, a member of the council, called during the day, to say, that he expected to dine with us at the government house and that he would be happy to call for us at the appointed hour, and conduct us thither. At six o'clock Mr. H.'s carriage drove up to our door, and we accompanied him to the governor's, where we were introduced to Col. Jarvis, a member of the privy council, and proprietor of several estates in the island, Col. Edwards, a member of the assembly and a barrister, Dr. Musgrave, a member of the assembly, and Mr. Shiel, attorney general. A dinner of state, at a Governor's house, attended by a company of high-toned politicians, professional gentlemen, and proprietors, could hardly be expected to furnish large accessions to our stock of information, relating to the object of our visit. Dinner being announced, we were hardly seated at the table when his excellency politely offered to drink a glass of Madeira with us. We begged leave to decline the honor. In a short time he proposed a glass of Champaign--again we declined. "Why, surely, gentlemen," exclaimed the Governor, "you must belong to the temperance society." "Yes, sir, we do." "Is it possible? but you will surely take a glass of liqueur?" "Your excellency must pardon us if we again decline the honor; we drink no wines." This announcement of ultra temperance principles

excited no little surprise. Finding that our allegiance to cold water was not to be shaken, the governor condescended at last to meet us on middle ground, and drink his wine to our water.

[Footnote [A](#): We venture to publish the note in which the governor conveyed his invitation, simply because, though a trifle in itself, it will serve to show the estimation in which our mission was held.

"If Messrs. Kimball and Thome are not engaged Tuesday next, the Lieut. Governor will be happy to see them at dinner, at six o'clock, when he will endeavor to facilitate their philanthropic inquiries, by inviting two or three proprietors to met them."

"*Government House, St. John's, Dec. 18th, 1836.*"]

The conversation on the subject of emancipation served to show that the prevailing sentiment was decidedly favorable to the free system. Col. Jarvis, who is the proprietor of three estates, said that he was in England at the time the bill for immediate emancipation passed the legislature. Had he been in the island he should have opposed it; but *now* he was glad it had prevailed. The evil consequences which he apprehended had not been realized, and he was now confident that they never would be.

As to prejudice against the black and colored people, all thought it was rapidly decreasing--indeed, they could scarcely say there was now any such thing. To be sure, there was an aversion among the higher classes of the whites, and especially among *females*, to associating in parties with colored people; but it was not on account of their *color*, but chiefly because of their *illegitimacy*. This was to us a new *source* of prejudice: but subsequent information fully explained its bearings. The whites of the West Indies are themselves the authors of that *illegitimacy*, out of which their aversion springs. It is not to be wondered at that they should be unwilling to invite the colored people to their social parties, seeing they might not unfrequently be subjected to the embarrassment of introducing to their white wives a colored mistress or an *illegitimate* daughter. This also explains the special prejudice which the *ladies* of the higher classes feel toward those among whom are their guilty rivals in a husband's affections, and those whose every feature tells the story of a husband's unfaithfulness!

A few days after our dinner with the governor and his friends, we took breakfast, by invitation, with Mr. Watkins, the *colored* planter whom we had the pleasure of meeting at Millar's, on a previous occasion. Mr. W. politely sent in his chaise for us, a distance of five miles. At an early hour we reached Donovan's, the estate of which he is manager. We found the sugar works in active operation: the broad wings of the windmill were wheeling their stately revolutions, and the smoke was issuing in dense volumes from the chimney of the boiling house. Some of the negroes were employed in carrying cane to the mill, others in carrying away the *trash* or *megass*, as the cane is called after the juice is expressed from it. Others, chiefly the old men and women, were tearing the megass apart, and strewing it on the ground to dry. It is the only fuel used for boiling the sugar.

On entering the house we found three planters whom Mr. W. had invited to breakfast with us. The meeting of a number of intelligent practical planters afforded a good opportunity for comparing their views. On all the main points, touching the working of freedom, there was a strong coincidence.

When breakfast was ready, Mrs. W. entered the room, and after our introduction to her, took her place at the head of the table. Her conversation was intelligent, her manners highly polished, and she presided at the table with admirable grace and dignity.

On the following day, Dr. Ferguson, of St. John's, called on us. Dr. Ferguson is a member of the assembly, and one of the first physicians in the island. The Doctor said that freedom had wrought like a magician, and had it not been for the unprecedented drought, the island would now be in a state of prosperity unequalled in any period of its history. Dr. F. remarked that a general spirit of improvement was pervading the island. The moral condition of the whites was rapidly brightening; formerly concubinage was *respectable*; it had been customary for married men--those of the highest standing--to keep one or two colored mistresses. This practice was now becoming disreputable. There had been a great alteration as to the observance of the Sabbath; formerly more business was done in St. John's on Sunday, by the merchants, than on all the other days of the week together. The mercantile business of the town had increased astonishingly; he thought that the stores and shops had multiplied in a *ratio of ten to one*.

Mechanical pursuits were likewise in a flourishing condition. Dr. F. said that a greater number of buildings had been erected since emancipation, than had been put up for twenty years before. Great improvements had also been made in the streets and roads in town and country.

MARKET.

SATURDAY.--This is the regular market-day here. The negroes come from all parts of the island; walking sometimes ten or fifteen miles to attend the St. John's market. We pressed our way through the dense mass of all hues, which crowded the market. The ground was covered with wooden trays filled with all kinds of fruits, grain, vegetables, fowls, fish, and flesh. Each one, as we passed, called attention to his or her little stock. We passed up to the head of the avenue, where men and women were employed in cutting up the light fire-wood which they had brought from the country on their heads, and in binding it into small bundles for sale. Here we paused a moment and looked down upon the busy multitude below. The whole street was a moving mass. There were broad Panama hats, and gaudy turbans, and uncovered heads, and heads laden with water pots, and boxes, and baskets, and trays--all moving and mingling in seemingly inextricable confusion. There could not have been less than fifteen hundred people congregated in that street--all, or nearly all, emancipated slaves. Yet, amidst all the excitements and competitions of trade, their conduct toward each other was polite and kind. Not a word, or look, or gesture of insolence or indecency did we observe. Smiling countenances and friendly voices greeted us on every side, and we felt no fears either of having our pockets picked or our throats cut!

At the other end of the market-place stood the *Lock-up House*, the *Cage*, and the *Whipping Post*, with stocks for feet and wrists. These are almost the sole relics of slavery which still linger in the town. The Lock-up House is a sort of jail, built of stone--about fifteen feet square, and originally designed as a place of confinement for slaves taken up by the patrol. The Cage is a

smaller building, adjoining the former, the sides of which are composed of strong iron bars--fitly called a *cage*! The prisoner was exposed to the gaze and insult of every passer by, without the possibility of concealment. The Whipping Post is hard by, but its occupation is gone. Indeed, all these appendages of slavery have gone into entire disuse, and Time is doing his work of dilapidation upon them. We fancied we could see in the marketers, as they walked in and out at the doorless entrance of the Lock-up House, or leaned against the Whipping Post, in careless chat, that harmless defiance which would prompt one to beard the dead lion.

Returning from the market we observed a negro woman passing through the street, with several large hat boxes strung on her arm. She accidentally let one of them fall. The box had hardly reached the ground, when a little boy sprang from the back of a carriage rolling by, handed the woman the box, and hastened to remount the carriage.

CHRISTMAS.

During the reign of slavery, the Christmas holidays brought with them general alarm. To prevent insurrections, the militia was uniformly called out, and an array made of all that was formidable in military engineering. This custom was dispensed with at once, after emancipation. As Christmas came on the Sabbath, it tested the respect for that day. The morning was similar, in all respects, to the morning of the Sabbath described above; the same serenity reigning everywhere--the same quiet in the household movements, and the same tranquillity prevailing through the streets. We attended morning service at the Moravian chapel. Notwithstanding the descriptions we had heard of the great change which emancipation had wrought in the observance of Christmas, we were quite unprepared for the delightful reality around us. Though thirty thousand slaves had but lately been "turned loose" upon a white population of less than three thousand! instead of meeting with scenes of disorder, what were the sights which greeted our eyes? The neat attire, the serious demeanor, and the thronged procession to

the place of worship. In every direction the roads leading into town were lined with happy beings--attired for the house of God. When groups coming from different quarters met at the corners, they stopped a moment to exchange salutations and shake hands, and then proceeded on together.

The Moravian chapel was slightly decorated with green branches. They were the only adorning which marked the plain sanctuary of a plain people. It was crowded with black and colored people, and very many stood without, who could not get in. After the close of the service in the chapel, the minister proceeded to the adjacent school room, and preached to another crowded audience. In the evening the Wesleyan chapel was crowded to overflowing. The aisles and communion place were full. On all festivals and holidays, which occur on the Sabbath, the churches and chapels are more thronged than on any other Lord's day.

It is hardly necessary to state that there was no instance of a dance or drunken riot, nor wild shouts of mirth during the day. The Christmas, instead of breaking in upon the repose of the Sabbath, seemed only to enhance the usual solemnity of the day.

The holidays continued until the next Wednesday morning, and the same order prevailed to the close of them. On Monday there were religious services in most of the churches and chapels, where sabbath-school addresses, discourses on the relative duties of husband and wife, and on kindred subjects, were delivered.

An intelligent gentleman informed us that the negroes, while slaves, used to spend during the Christmas holidays, the extra money which they got during the year. Now they save it--*to buy small tracts of land for their own cultivation.*

The Governor informed us that the police returns did not report a single case of arrest during the holidays. He said he had been well acquainted with the country districts of England, he had also travelled extensively in Europe, yet he had never found such a *peaceable, orderly, and law-abiding people as those of Antigua.*

An acquaintance of nine weeks with the colored population of St. John's, meeting them by the wayside, in their shops, in their parlors, and elsewhere,

enables us to pronounce them a people of general intelligence, refinement of manners, personal accomplishments, and true politeness. As to their style of dress and mode of living, were we disposed to make any criticism, we should say that they were extravagant. In refined and elevated conversation, they would certainly bear a comparison with the white families of the island.

VISIT TO THIBOU JARVIS'S ESTATE.

After the Christmas holidays were over, we resumed our visits to the country. Being provided with a letter to the manager of Thibou Jarvis's estate, Mr. James Howell, we embraced the earliest opportunity to call on him. Mr. H. has been in Antigua for thirty-six years, and has been a practical planter during the whole of that time. He has the management of two estates, on which there are more than five hundred people. The principal items of Mr. Howell's testimony will be found in another place. In this connection we shall record only miscellaneous statements of a local nature.

1. The severity of the drought. He had been in Antigua since the year 1800, and he had never known so long a continuance of dry weather, although the island is subject to severe droughts. He stated that a field of yams, which in ordinary seasons yielded ten cart-loads to the acre, would not produce this year more than *three*. The failure in the crops was not in the least degree chargeable upon the laborers, for in the first place, the cane plants for the present crop were put in earlier and in greater quantities than usual, and *until* the drought commenced, the fields promised a large return.

2. *The religious condition* of the negroes, during slavery, was extremely low. It seemed almost impossible to teach them any higher *religion* than *obedience to their masters*. Their highest notion of God was that he was a *little above* their owner. He mentioned, by way of illustration, that the slaves of a certain large proprietor used to have this saying, "Massa only want he little finger to touch God!" that is, *their master was lower than God*

only by the length of his little finger. But now the religious and moral condition of the people was fast improving.

3. A great change in the use of *rum* had been effected on the estates under his management since emancipation. He formerly, in accordance with the prevalent custom, gave his people a weekly allowance of rum, and this was regarded as essential to their health and effectiveness. But he has lately discontinued this altogether, and his people had not suffered any inconvenience from it. He gave them in lieu of the rum, an allowance of molasses, with which they appeared to be entirely satisfied. When Mr. H. informed the people of his intention to discontinue the spirits, he told them that he should *set them the example* of total abstinence, by abandoning wine and malt liquor also, which he accordingly did.

4. There had been much less *pretended sickness* among the negroes since freedom. They had now a strong aversion to going to the sick house[A], so much so that on many estates it had been put to some other use.

[Footnote A: The *estate hospital*, in which, during slavery, all sick persons were placed for medical attendance and nursing. There was one on every estate.]

We were taken through the negro village, and shown the interior of several houses. One of the finest looking huts was decorated with pictures, printed cards, and booksellers' advertisements in large letters. Amongst many ornaments of this kind, was an advertisement not unfamiliar to our eyes--"THE GIRL'S OWN BOOK. BY MRS. CHILD."

We generally found the women at home. Some of them had been informed of our intention to visit them, and took pains to have every thing in the best order for our reception. The negro village on this estate contains one hundred houses, each of which is occupied by a separate family. Mr. H. next conducted us to a neighboring field, where the *great gang*[B] were at work. There were about fifty persons in the gang--the majority females--under two inspectors or superintendents, men who take the place of the *quondam drivers*, though their province is totally different. They merely direct the laborers in their work, employing with the loiterers the stimulus of persuasion, or at farthest, no more than the violence of the tongue.

[Footnote [B](#): The people on most estates are divided into three gangs; first, the great gang, composed of the principal effective men and women; second, the weeding gang, consisting of younger and weekly persons; and third, the grass gang, which embraces all the children able to work.]

Mr. H. requested them to stop their work, and told them who we were, and as we bowed, the men took off their hats and the women made a low courtesy. Mr. Howell then informed them that we had come from America, where there were a great many slaves: that we had visited Antigua to see how freedom was working, and whether the people who were made free on the first of August were doing well--and added, that he "hoped these gentlemen might be able to carry back such a report as would induce the masters in America to set their slaves free." They unanimously replied, "Yes, massa, we hope *dem* will gib *um* free." We spoke a few words: told them of the condition of the slaves in America, urged them to pray for them that they might be patient under their sufferings, and that they might soon be made free. They repeatedly promised to pray for the poor slaves in America. We then received their hearty "Good bye, massa," and returned to the house, while they resumed their work.

We took leave of Mr. Howell, grateful for his kind offices in furtherance of the objects of our mission.

We had not been long in Antigua before we perceived the distress of the poor from the scarcity of water. As there are but few springs in the island, the sole reliance is upon rain water. Wealthy families have cisterns or tanks in their yards, to receive the rain from the roofs. There are also a few public cisterns in St. John's. These ordinarily supply the whole population. During the present season many of these cisterns have been dry, and the supply of water has been entirely inadequate to the wants of the people. There are several large open ponds in the vicinity of St. John's, which are commonly used to water "stock." There are one or more on every estate, for the same purpose. The poor people were obliged to use the water from these ponds both for drinking and cooking while we were in Antigua. In taking our morning walks, we uniformly met the negroes either going to, or returning from the ponds, with their large pails balanced on their heads, happy apparently in being able to get even such foul water.

Attended the anniversary of the "Friendly Society," connected with the church in St. John's. Many of the most respectable citizens, including the Governor, were present. After the services in the church, the society moved in procession to the Rectory school-room. We counted one hundred males and two hundred and sixty females in the procession. Having been kindly invited by the Rector to attend at the school-room, we followed the procession. We found the house crowded with women, many others, besides those in the procession, having convened. The men were seated without under a canvass, extended along one side of the house. The whole number present was supposed to be nine hundred. Short addresses were made by the Rector, the Archdeacon, and the Governor.

The Seventh Annual Report of the Society, drawn up by the secretary, a colored man, was read. It was creditable to the author. The Rector in his address affectionally warned the society, especially the female members, against extravagance in dress.

The Archdeacon exhorted them to domestic and conjugal faithfulness. He alluded to the prevalence of inconstancy during past years, and to the great improvement in this particular lately; and concluded by wishing them all "a happy new-year and *many* of them, and a blessed immortality in the end." For this kind wish they returned a loud and general "thankee, massa."

The Governor then said, that he rose merely to remark, that this society might aid in the emancipation of millions of slaves, now in bondage in other countries. A people who are capable of forming such societies as this among themselves, deserve to be free, and ought no longer to be held in bondage. You, said he, are showing to the world what the negro race are capable of doing. The Governor's remarks were received with applause. After the addresses the audience were served with refreshments, previous to which the Rector read the following lines, which were sung to the tune of Old Hundred, the whole congregation standing.

"Lord at our table now appear
And bless us here, as every where;
Let manna to our souls be given,
The bread of life sent down from heaven."

The simple refreshment was then handed round. It consisted merely of buns and lemonade. The Governor and the Rector, each drank to the health and happiness of the members. The loud response came up from all within and all around the house--"thankee--thankee--thankee--massa--thankee *good massa*." A scene of animation ensued. The whole concourse of black, colored and white, from the humblest to the highest, from the unlettered apprentice to the Archdeacon and the Governor of the island, joined in a common festivity.

After the repast was concluded, thanks were returned in the following verse, also sung to Old Hundred.

"We thank thee, Lord, for this our food,
But bless thee more for Jesus' blood;
Let manna to our souls be given,
The bread of life sent down from heaven."

The benediction was pronounced, and the assembly retired.

There was an aged negro man present, who was noticed with marked attention by the Archdeacon, the Rector and other clergymen. He is sometimes called the African Bishop. He was evidently used to familiarity with the clergy, and laid his hand on their shoulders as he spoke to them. The old patriarch was highly delighted with the scene. He said, when he was young he "never saw nothing, but sin and Satan. *Now I just begin to live.*"

On the same occasion the Governor remarked to us that the first thing to be done in our country, toward the removal of slavery, was to discard the absurd notion that *color* made any difference, intellectually or morally, among men. "All distinctions," said he, "founded in color, must be abolished everywhere. We should learn to talk of men not as *colored* men, but as MEN *as fellow citizens and fellow subjects.*" His Excellency

certainly showed on this occasion a disposition to put in practice his doctrine. He spoke affectionately to the children, and conversed freely with the adults.

VISIT TO GREEN CASTLE.

According to a previous engagement, a member of the assembly called and took us in his carriage to Green Castle estate.

Green Castle lies about three miles south-east from St. John's, and contains 940 acres. The mansion stands on a rocky cliff; overlooking the estate, and commanding a wide view of the island. In one direction spreads a valley, interspersed with fields of sugar-cane and provisions. In another stretches a range of hills, with their sides clad in culture, and their tops covered with clouds. At the base of the rock are the sugar Houses. On a neighboring upland lies the negro village, in the rear of which are the provision grounds. Samuel Bernard, Esq., the manager, received us kindly. He said, he had been on the island forty-four years, most of the time engaged in the management of estates. He is now the manager of two estates, and the attorney for six, and has lately purchased an estate himself. Mr. B. is now an aged man, grown old in the practice of slave holding. He has survived the wreck of slavery, and now stripped of a tyrant's power, he still lives among the people, who were lately his slaves, and manages an estate which was once his empire. The testimony of such a man is invaluable. Hear him.

1. Mr. B. said, that the negroes throughout the island were very peaceable when they received their freedom.

2. He said he had found no difficulty in getting his people to work after they had received their freedom. Some estates had suffered for a short time; there was a pretty general fluctuation for a month or two, the people leaving one estate and going to another. But this, said Mr. B., was chargeable to the

folly of the planters, who *overbid* each other in order to secure the best hands and enough of them. The negroes had a *strong attachment to their homes*, and they would rarely abandon them unless harshly treated.

3. He thought that the assembly acted very wisely in rejecting the apprenticeship. He considered it absurd. It took the chains partly from off the slave, and fastened them on the master, *and enslaved them both*. It withdrew from the latter the power of compelling labor, and it supplied to the former no incentive to industry.

He was opposed to the measures which many had adopted for further securing the benefits of emancipation.--He referred particularly to the system of education which now prevailed. He thought that the education of the emancipated negroes should combine industry with study even in childhood, so as not to disqualify the taught for cultivating the ground. It will be readily seen that this prejudice against education, evidently the remains of his attachment to slavery, gives additional weight to his testimony.

The Mansion on the Rock (which from its elevated and almost inaccessible position, and from the rich shrubbery in perpetual foliage surrounding it, very fitly takes the name of Green Castle) is memorable as the scene of the murder of the present proprietor's grandfather. He refused to give his slaves holiday on a particular occasion. They came several times in a body and asked for the holiday, but he obstinately refused to grant it. They rushed into his bedroom, fell upon him with their hoes, and killed him.

On our return to St. John's, we received a polite note from a colored lady, inviting us to attend the anniversary of the "Juvenile Association," at eleven o'clock. We found about forty children assembled, the greater part of them colored girls, but some were white. The ages of these juvenile philanthropists varied from four to fourteen. After singing and prayer, the object of the association was stated, which was to raise money by sewing, soliciting contributions, and otherwise, for charitable purposes.

From the annual report it appeared that this was the *twenty-first anniversary* of the society. The treasurer reported nearly £60 currency (or about \$150) received and disbursed during the year. More than one hundred dollars had been given towards the erection of the new Wesleyan chapel in St. John's.

Several resolutions were presented by little misses, expressive of gratitude to God for continued blessings, which were adopted unanimously--every child holding up its right hand in token of assent.

After the resolutions and other business were despatched, the children listened to several addresses from the gentlemen present. The last speaker was a member of the assembly. He said that his presence there was quite accidental; but that he had been amply repaid for coming by witnessing the goodly work to which this juvenile society was engaged. As there was a male branch association about to be organized, he begged the privilege of enrolling his name as an honorary member, and promised to be a constant contributor to its funds. He concluded by saying, that though he had not before enjoyed the happiness of attending their anniversaries, he should never again fail to be present (with the permission of their worthy patroness) at the future meetings of this most interesting society. We give the substance of this address, as one of the signs of the times. The speaker was a wealthy merchant of St. John's.

This society was organized in 1815. The *first proposal* came from a few *little colored girls*, who, after hearing a sermon on the blessedness of doing good, wanted to know whether they might not have a society for raising money to give to the poor.

This Juvenile Association has, since its organization, raised the sum of *fourteen hundred dollars*! Even this little association has experienced a great impulse from the free system. From a table of the annual receipts since 1815, we found that the amount raised the two last years, is nearly equal to that received during any three years before.

DR. DANIELL--WEATHERILL ESTATE.

On our return from Thibou Jarvis's estate, we called at Weatherill's; but the manager, Dr. Daniell, not being at home, we left our names, with an intimation of the object of our visit. Dr. D. called soon after at our lodgings. As authority, he is unquestionable. Before retiring from the practice of medicine, he stood at the head of his profession in the island. He is now a member of the council, is proprietor of an estate, manager of another, and attorney for six.

The fact that such men as Dr. D., but yesterday large slaveholders, and still holding high civil and political stations, should most cheerfully facilitate our anti-slavery investigations, manifesting a solicitude to furnish us with all the information in their power, is of itself the highest eulogy of the new system. The testimony of Dr. D. will be found mainly in a subsequent part of the work. We state, in passing, a few incidentals. He was satisfied that immediate emancipation was better policy than a temporary apprenticeship. The apprenticeship was a middle state--kept the negroes in suspense--vexed and harrassed them--*fed them on a starved hope*; and therefore they would not be so likely, when they ultimately obtained freedom, to feel grateful, and conduct themselves properly. The reflection that they had been cheated out of their liberty for six years would *sour their minds*. The planters in Antigua, by giving immediate freedom, had secured the attachment of their people.

The Doctor said he did not expect to make more than two thirds of his average crop; but he assured us that this was owing solely to the want of rain. There had been no deficiency of labor. The crops were *in*, in season, throughout the island, and the estates were never under better cultivation than at the present time. Nothing was wanting but RAIN--RAIN.

He said that the West India planters were very anxious to *retain* the services of the negro population.

Dr. D. made some inquiries as to the extent of slavery in the United States, and what was doing for its abolition. He thought that emancipation in our country would not be the result of a slow process. The anti-slavery feeling of the civilized world had become too strong to wait for a long course of "preparations" and "*ameliorations*." And besides, continued he, "the arbitrary control of a master can never be a preparation for freedom;--*sound and wholesome legal restraints are the only preparative*."

The Doctor also spoke of the absurdity and wickedness of the caste of color which prevailed in the United States. It was the offspring of slavery, and it must disappear when slavery is abolished.

CONVERSATION WITH A NEGRO.

We had a conversation one morning with a boatman, while he was rowing us across the harbor of St. John's. He was a young negro man. Said he was a slave until emancipation. We inquired whether he heard any thing about emancipation before it took place. He said, yes--the slaves heard of it, but it was talked about so long that many of them lost all *believement* in it, got tired waiting, and bought their freedom; but he had more patience, and got his for nothing. We inquired of him, what the negroes did on the first of August, 1834. He said they all went to church and chapel. "Dare was more *religious* on dat day *dan* you could tire of." Speaking of the *law*, he said it was his *friend*. If there was no law to take his part, a man, who was stronger than he, might step up and knock him down. But now no one dare do so; all were afraid of the *law*,--the law would never hurt any body who behaved well; but a master would *slash a fellow, let him do his best*.

VISIT TO NEWFIELD.

Drove out to Newfield, a Moravian station, about eight miles from St. John's. The Rev. Mr. Morrish, the missionary at that station, has under his charge two thousand people. Connected with the station is a day school for children, and a night school for adults twice in each week.

We looked in upon the day school, and found one hundred and fifteen children. The teacher and assistant were colored persons. Mr. M. superintends. He was just dismissing the school, by singing and prayer, and the children marched out to the music of one of their little songs. During the afternoon, Mr. Favey, manager of a neighboring estate, (Lavicount's,) called on us.

He spoke of the tranquillity of the late Christmas holidays. They ended Tuesday evening, and his people were all in the field at work on Wednesday morning--there were no stragglers. Being asked to specify the chief advantages of the new system over slavery, he stated at once the following things: 1st. It (free labor) is less *expensive*. 2d. It costs a planter far less *trouble* to manage free laborers, than it did to manage slaves. 3d. It had *removed all danger of insurrection, conflagration, and conspiracies*.

ADULT SCHOOL.

In the evening, Mr. Morrish's adult school for women was held. About thirty women assembled from different estates--some walking several miles. Most of them were just beginning to read. They had just begun to learn something about figures, and it was no small effort to add 4 and 2 together. They were incredibly ignorant about the simplest matters. When they first came to the school, they could not tell which was their right arm or their right side, and they had scarcely mastered that secret, after repeated showing. We were astonished to observe that when Mr. M. asked them to point to their cheeks, they laid their finger upon their chins. They were much pleased with the evolutions of a dumb clock, which Mr. M. exhibited, but none of them could tell the time of day by it. Such is a specimen of the intelligence of the Antigua negroes. Mr. M. told us that they were a pretty fair sample of the country negroes generally. It surely cannot be said that they were uncommonly well prepared for freedom; yet with all their ignorance, and with the merest infantile state of intellect, they prove the peaceable subjects of law. That they have a great desire to learn, is manifest from their coming such distances, after working in the field all day. The school which they attend has been established since the abolition of slavery.

The next morning, we visited the day school. It was opened with singing and prayer. The children knelt and repeated the Lord's Prayer after Mr. M. They then formed into a line and marched around the room, singing and keeping the step. A tiny little one, just beginning to walk, occasionally straggled out of the line. The next child, not a little displeased with such disorderly movements, repeatedly seized the straggler by the frock, and pulled her into the ranks; but finally despaired of reducing her to subordination. When the children had taken their seats, Mr. M., at our request, asked all those who were free before August, 1834, to rise. Only one girl arose, and she was in no way distinguishable from a white child. The first exercise, was an examination of a passage of scripture. The children were then questioned on the simple rules of addition and subtraction, and their answers were prompt and accurate.

DR. NUGENT.

The hour having arrived when we were to visit a neighboring estate, Mr. M. kindly accompanied us to Lyon's, the estate upon which Dr. Nugent resides. In respect to general intelligence, scientific acquirements, and agricultural

knowledge, no man in Antigua stands higher than Dr. Nugent. He has long been speaker of the house of assembly, and is favorably known in Europe as a geologist and man of science. He is manager of the estate on which he resides, and proprietor of another.

The Doctor informed us that the crop on his estate had almost totally failed, on account of the drought--being reduced from one hundred and fifty hogsheads, the average crop, to *fifteen*! His provision grounds had yielded almost nothing. The same soil which ordinarily produced ten cart-loads of yams to the acre--the present season barely averaged *one load to ten acres*! Yams were reduced from the dimensions of a man's head, to the size of a radish. The *cattle were dying* from want of water and grass. He had himself lost *five oxen* within the past week.

Previous to emancipation, said the Doctor, no man in the island dared to avow anti-slavery sentiments, if he wished to maintain a respectable standing. Planters might have their hopes and aspirations; but they could not make them public without incurring general odium, and being denounced as the enemies of their country.

In allusion to the motives which prompted the legislature to reject the apprenticeship and adopt immediate emancipation, Dr. N. said, "When we saw that abolition was *inevitable*, we began, to inquire what would be the safest course for getting rid of slavery. *We wished to let ourselves down in the easiest manner possible*--THEREFORE WE CHOSE IMMEDIATE EMANCIPATION!" These were his words.

On returning to the hospitable mansion of Mr. Morrish, we had an opportunity of witnessing a custom peculiar to the Moravians. It is called 'speaking.' All the members of the church are required to call on the missionary once a month, and particular days are appropriated to it. They come singly or in small companies, and the minister converses with each individual.

Mr. M. manifested great faithfulness in this duty. He was affectionate in manner--entered into all the minutiae of individual and family affairs, and advised with them as a father with his children. We had an opportunity of conversing with some of those who came. We asked one old man what he

did on the "First of August?"[A] His reply was, "Massa, we went to church, and tank de Lord for make a we all free."

[Footnote A: By this phrase the freed people always understand the 1st of August, 1834, when slavery was abolished.]

An aged infirm woman said to us, among other things, "Since de *free* come de massa give me no--no, nothing to eat--gets all from my cousins." We next conversed with two men, who were masons on an estate. Being asked how they liked liberty, they replied, "O, it very comfortable, Sir--very comfortable indeed." They said, "that on the day when freedom came, they were as happy, as though they had just been going to heaven." They said, now they had got free, they never would be slaves again. They were asked if they would not be willing to sell themselves to a man who would treat them well. They replied immediately that they would be very willing to *serve* such a man, but they would not *sell themselves* to the best person in the world! What fine logicians a slave's experience had made these men! Without any effort they struck out a distinction, which has puzzled learned men in church and state, the difference between *serving* a man and *being his property*.

Being asked how they conducted themselves on the 1st of August they said they had no frolicking, but they all went to church to "*tank God for make a we free*." They said, they were very desirous to have their children learn all they could while they were young. We asked them if they did not fear that their children would become lazy if they went to school all the time. One said, shrewdly, "Eh! nebber mind--dey *come to* by'm by--belly '*blige 'em* to work."

In the evening Mr. M. held a religious meeting in the chapel; the weekly meeting for exhortation. He stated to the people the object of our visit, and requested one of us to say a few words. Accordingly, a short time was occupied in stating the number of slaves in America, and in explaining their condition, physical, moral, and spiritual; and the congregation were urged to pray for the deliverance of the millions of our bondmen. They manifested much sympathy, and promised repeatedly to pray that they might be "free like we." At the close of the meeting they pressed around us to say "howdy, massa;" and when we left the chapel, they showered a thousand blessings

upon us. Several of them, men and women, gathered about Mr. M.'s door after we went in, and wished to talk with us. The men were mechanics, foremen, and watchmen; the women were nurses. During our interview, which lasted nearly an hour, these persons remained standing.

When we asked them how they liked freedom, and whether it was better than slavery, they answered with a significant *umph* and a shrug of the shoulders, as though they would say, "Why you ask dat question, massa?"

They said, "all the people went to chapel on the first of August, to tank God for make such poor undeserving sinners as we free; we no nebber expect to *hab* it. But it please de Lord to gib we free, and we tank him good Lord for it."

We asked them if they thought the wages they got (a shilling per day, or about eleven cents,) was enough for them. They said it seemed to be very small, and it was as much as they could do to get along with it; but they could not get any more, and they had to be "satisfy and conten."

As it grew late and the good people had far to walk, we shook hands with them, and bade them good bye, telling them we hoped to meet them again in a world where all would be free. The next morning Mr. M. accompanied us to the residence of the Rev. Mr. Jones, the rector of St. Phillip's.

Mr. J. informed us that the planters in that part of the island were gratified with the working of the new system. He alluded to the prejudices of some against having the children educated, lest it should foster indolence. But, said Mr. J., the planters have always been opposed to improvements, until they were effected, and their good results began to be manifest. They first insisted that the abolition of the slave-trade would ruin the colonies--next the *abolition of slavery* was to be the certain destruction of the islands--and now the education of children is deprecated as fraught with disastrous consequences.

FREY'S ESTATE--MR. HATLEY.

Mr. Morrish accompanied us to a neighboring estate called Frey's, which lies on the road from Newfield to English Harbor. Mr. Hatley, the manager, showed an enthusiastic admiration of the new system. Most of his testimony will be found in Chapter III. He said, that owing to the dry

weather he should not make one third of his average crop. Yet his people had acted their part well. He had been encouraged by their improved industry and efficiency, to bring into cultivation lands that had never before been tilled.

It was delightful to witness the change which had been wrought in this planter by the abolition of slavery. Although accustomed for years to command a hundred human beings with absolute authority, he could rejoice in the fact that his power was wrested from him, and when asked to specify the advantages of freedom over slavery, he named emphatically and above all others *the abolition of flogging*. Formerly, he said, it was "*whip--whip--whip--incessantly*, but now we are relieved from this disagreeable task."

THE AMERICAN CONSUL.

We called on the American Consul, Mr. Higginbotham, at his country residence, about four miles from St. John's. Shortly after we reached his elevated and picturesque seat, we were joined by Mr. Cranstoun, a planter, who had been invited to dine with us. Mr. C. is a *colored gentleman*. The Consul received him in such a manner as plainly showed that they were on terms of intimacy. Mr. C. is a gentleman of intelligence and respectability, and occupies a station of trust and honor in the island. On taking leave of us, he politely requested our company at breakfast on a following morning, saying, he would send his gig for us.

At the urgent request of Mr. Bourne, of Miller's, we consented to address the people of his estate, on Sabbath evening. He sent in his gig for us in the afternoon, and we drove out.

At the appointed hour we went to the place of meeting. The chapel was crowded with attentive listeners. Whenever allusions were made to the grout blessings which God had conferred upon them in delivering them from bondage, the audience heartily responded in their rough but earnest way to the sentiments expressed. At the conclusion of the meeting, they gradually withdrew, bowing or courtesying as they passed us, and dropping upon our ear their gentle "good bye, massa." During slavery every estate had its *dungeon* for refractory slaves. Just as we were leaving Miller's, we asked Mr. B. what had become of these dungeons. He instantly replied, "I'll show you one," In a few moments we stood at the door of the old prison, a

small stone building, strongly built, with two cells. It was a dismal looking den, surrounded by stables, pig-styes, and cattlepens. The door was off its hinges, and the entrance partly filled up with mason work. The sheep and goats went in and out at pleasure.

We breakfasted one morning at the Villa estate, which lies within half a mile of St. John's. The manager was less sanguine in his views of emancipation than the planters generally. We were disposed to think that, were it not for the force of public sentiment, he might declare himself against it. His feelings are easily accounted for. The estate is situated so near the town; that his people are assailed by a variety of temptations to leave their work; from which those on other estates are exempt. The manager admitted that the danger of insurrection was removed--crime was lessened--and the moral condition of society was rapidly improving.

A few days after, we went by invitation to a bazaar, or fair, which was held in the court-house in St. John's. The avails were to be appropriated to the building of a new Wesleyan chapel in the town. The council chamber and the assembly's hall were given for the purpose. The former spacious room was crowded with people of every class and complexion. The fair was got up by the *colored* members of the Wesleyan church; nevertheless, some of the first ladies and gentlemen in town attended it, and mingled promiscuously in the throng. Wealthy proprietors, lawyers legislators, military officers in their uniform, merchants, etc. swelled the crowd. We recognised a number of ladies whom we had previously met at a fashionable dinner in St. John's. Colored ladies presided at the tables, and before them was spread a profusion of rich fancy articles. Among a small number of books exhibited for sale were several copies of a work entitled "COMMEMORATIVE WREATH," being a collection of poetical pieces relating to the abolition of slavery in the West Indies.

VISIT TO MR. CRANSTOUN'S.

On the following morning Mr. C.'s gig came for us, and we drove out to his residence. We were met at the door by the American Consul, who breakfasted with us. When he had taken leave, Mr. C. proposed that we should go over his grounds. To reach the estate, which lies in a beautiful valley far below Mr. C.'s mountainous residence, we were obliged to go on

foot by a narrow path that wound along the sides of the precipitous hills. This estate is the property of Mr. Athill, a colored gentleman now residing in England. Mr. A. is post-master general of Antigua, one of the first merchants in St. John's, and was a member of the assembly until the close of 1836, when, on account of his continued absence, he resigned his seat. A high-born white man, the Attorney General, now occupies the same chair which this colored member vacated. Mr. C. was formerly attorney for several estates, is now agent for a number of them, and also a magistrate.

He remarked, that since emancipation the nocturnal disorders and quarrels in the negro villages, which were incessant during slavery, had nearly ceased. The people were ready and willing to work. He had frequently given his gang jobs, instead of paying them by the day. This had proved a great stimulant to industry, and the work of the estate was performed so much quicker by this plan that it was less expensive than daily wages. When they had jobs given them, they would sometimes go to work by three o'clock in the morning, and work by moonlight. When the moon was not shining, he had known them to kindle fires among the trash or dry cane leaves to work by. They would then continue working all day until four o'clock, stopping only for breakfast, and dispensing with the usual intermission from twelve to two.

We requested him to state briefly what were in his estimation the advantages of the free system over slavery. He replied thus: 1st. The diminished expense of free labor. 2d. *The absence of coercion*. 3d. The greater facility in managing an estate. Managers had not half the perplexity and trouble in watching, driving, &c. They could leave the affairs of the estate in the hands of the people with safety. 4th. *The freedom from danger*. They had now put away all fears of insurrections, robbery, and incendiarism.

There are two reflections which the perusal of these items will probably suggest to most minds: 1st. The coincidence in the replies of different planters to the question--What are the advantages of freedom over slavery? These replies are almost identically the same in every case, though given by men who reside in different parts of the island, and have little communication with each other. 2d. They all speak exclusively of the advantages to the *master*, and say nothing of the benefit accruing to the

emancipated. We are at some loss to decide whether this arose from indifference to the interests of the emancipated, or from a conviction that the blessings of freedom to them were self-evident and needed no specification.

While we were in the boiling-house we witnessed a scene which illustrated one of the benefits of freedom to the slave; it came quite opportunely, and supplied the deficiency in the manager's enumeration of advantages. The head boiler was performing the work of 'striking off;' *i.e.* of removing the liquor, after it had been sufficiently boiled, from the copper to the coolers. The liquor had been taken out of the boiler by the skipper, and thence was being conducted to the coolers by a long open spout. By some means the spout became choaked, and the liquor began to run over. Mr. C. ordered the man to let down the valve, but he became confused, and instead of letting go the string which lifted the valve, he pulled on it the more. The consequence was that the liquor poured over the sides of the spout in a torrent. The manager screamed at the top of his voice--"*let down the valve, let it down!*" But the poor man, more and more frightened, hoisted it still higher,--and the precious liquid--pure sugar--spread in a thick sheet over the earthen floor. The manager at last sprang forward, thrust aside the man, and stopped the mischief, but not until many gallons of sugar were lost. Such an accident as this, occurring during slavery, would have cost the negro a severe flogging. As it was, however, in the present case, although Mr. C. 'looked daggers,' and exclaimed by the workings of his countenance, 'a kingdom for a *cat*,'[\[A\]](#) yet the severest thing which he could say was, "You bungling fellow--if you can't manage better than this, I shall put some other person in your place--that's all." '*That's ALL*' indeed, but it would not have been all, three years ago. The negro replied to his chidings in a humble way, saying 'I couldn't help it, sir, I couldn't help it' Mr. C. finally turned to us, and said in a calmer tone, "The poor fellow got confused, and was frightened half to death."

[Footnote [A](#): A species of whip, well known in the West Indies.]

VISIT TO GRACE BAY.

We made a visit to the Moravian settlement at Grace Bay, which is on the opposite side of the island. We called, in passing, at Cedar Hall, a Moravian

establishment four miles from town. Mr. Newby, one of the missionaries stationed at this place, is the oldest preacher of the Gospel in the island. He has been in Antigua for twenty-seven years. He is quite of the *old way of thinking* on all subjects, especially the divine right of kings, and the scriptural sanction of slavery. Nevertheless, he was persuaded that emancipation had been a great blessing to the island and to all parties concerned. When he first came to Antigua in 1809, he was not suffered to teach the slaves. After some time he ventured to keep an evening school *in a secret way*. Now there is a day school of one hundred and twenty children connected with the station. It has been formed since emancipation.

From Cedar Hail we proceeded to Grace Bay. On the way we met some negro men at work on the road, and stopped our chaise to chat with them. They told us that they lived on Harvey's estate, which they pointed out to us. Before emancipation that estate had four hundred slaves on it, but a great number had since left because of ill usage during slavery. They would not live on the estate, because the same manager remained, and they could not trust him.

They told us they were Moravians, and that on the first of August they all went to the Moravian chapel at Grace Bay, 'to tank and praise de good Savior for make a we free.' We asked them if they still liked liberty; they said, "Yes, massa, we all quite *proud* to be free." The negroes use the word *proud* to express a strong feeling of delight. One man said, "One morning as I was walking along the road all alone, I prayed that the Savior would make me free, for then I could be so happy. I don't know what made me pray so, for I wasn't looking for de free; but please massa, *in one month de free come*."

They declared that they worked a great deal better since emancipation, because they were *paid for it*. To be sure, said they, we get very little wages, but it is better than none. They repeated it again and again, that men could not be made to work well by *flogging* them, "*it was no use to try it*."

We asked one of the men, whether he would not be willing to be a slave again provided he was *sure* of having a kind master. "Heigh! me massa," said he, "me neber slave no more. A good massa a very good ting, *but freedom till better*." They said that it was a great blessing to them to have

their children go to school. After getting them to show us the way to Grace Bay, we bade them good bye.

We were welcomed at Grace Bay by the missionary, and his wife, Mr. and Mrs. Möhne.[\[B\]](#) The place where these missionaries reside is a beautiful spot. Their dwelling-house and the chapel are situated on a high promontory, almost surrounded by the sea. A range of tall hills in the rear cuts off the view of the island, giving to the missionary station an air of loneliness and seclusion truly impressive. In this sequestered spot, we found Mr. and Mrs. M. living alone. They informed us that they rarely have white visitors, but their house is the constant resort of the negroes, who gather there after the toil of the day to 'speak' about their souls. Mr. and Mrs. M. are wholly engrossed in their labors of love. They find their happiness in leading their numerous flock "by the still waters and the green pastures" of salvation. Occupied in this delightful work, they covet not other employments, nor other company, and desire no other earthly abode than their own little hill-embosomed, sea-girt missionary home.

[Footnote [B](#): Pronounced Maynuh.]

There are a thousand people belonging to the church at this station, each of whom, the missionaries see once every month. A day school has been lately established, and one hundred children are already in attendance. After dinner we walked out accompanied by the missionaries to enjoy the beautiful sunset. It is one of the few *harmless* luxuries of a West India climate, to go forth after the heat of the day is spent and the sun is sinking in the sea, and enjoy the refreshing coolness of the air. The ocean stretched before us, motionless after the turmoil of the day, like a child which has rocked itself asleep, yet indicating by its mighty breathings as it heaved along the beach, that it only slumbered. As the sun went down, the full moon arose, only less luminous, and gradually the stars began to light up their beaming fires. The work of the day now being over, the weary laborers were seen coming from different directions to have a 'speak' with the missionaries. Mr. M. stated a fact illustrative of the influence of the missionaries over the negroes. Some time ago, the laborers on a certain estate became dissatisfied with the wages they were receiving, and refused to work unless they were increased. The manager tried in vain to reconcile his people to the grievance of which they complained, and then sent to Mr.

M., requesting him to visit the estate, and use his influence to persuade the negroes, most of whom belonged to his church, to work at the usual terms. Mr. M. sent word to the manager that it was not his province, as minister, to interfere with the affairs of any estate; but he would talk with the people about it individually, when they came to 'speak.' Accordingly he spoke to each one, as he came, in a kind manner, advising him to return to his work, and live as formerly. In a short time peace and confidence were restored, and the whole gang to a man were in the field.

Mr. and Mrs. M. stated that notwithstanding the very low rate of wages, which was scarcely sufficient to support life, they had never seen a single individual who desired to return to the condition of a slave. Even the old and infirm, who were sometimes really in a suffering state from neglect of the planters and from inability of their relatives adequately to provide for them, expressed the liveliest gratitude for the great blessing which the Savior had given them. They would often say to Mrs. M. "Why, Missus, old sinner just sinkin in de grave, but God let me old eyes see *dis* blessed sun."

The missionaries affirmed that the negroes were an affectionate people--remarkably so. Any kindness shown them by a white person, was treasured up and never forgotten. On the other hand, the slightest neglect or contempt from a white person, was keenly felt. They are very fond of saying '*howdy*' to white people; but if the salutation is not returned, or noticed kindly, they are not likely to repeat it to the same individual. To shake hands with a white person is a gratification which they highly prize. Mrs. M. pleasantly remarked, that after service on Sabbath, she was usually wearied out with saying *howdy*, and *shaking hands*.

During the evening we had some conversation with two men who came to 'speak.' They spoke about the blessings of liberty, and their gratitude to God for making them free. They spoke also, with deep feeling, of the still greater importance of being free from *sin*. That, they said, was better. *Heaven was the first best, and freedom was the next best.*

They gave us some account, in the course of the evening, of an aged saint called Grandfather Jacob, who lived on a neighboring estate. He had been a *helper*[\[A\]](#) in the Moravian church, until he became too infirm to discharge the duties connected with that station. Being for the same reason discharged

from labor on the estate, he now occupied himself in giving religious instruction to the other superannuated people on the estate.

[Footnote [A](#): An office somewhat similar to that of deacon]

Mrs. M. said it would constitute an era in the life of the old man, if he could have an interview with two strangers from a distant land; accordingly, she sent a servant to ask him to come to the mission-house early the next morning. The old man was prompt to obey the call. He left home, as he said, 'before the gun fire'--about five o'clock--and came nearly three miles on foot. He was of a slender form, and had been tall, but age and slavery had bowed him down. He shook us by the hand very warmly, exclaiming, "God bless you, God bless you--me bery glad to see you." He immediately commenced giving us an account of his conversion. Said he, putting his hand on his breast, "You see old Jacob? de old *sinner* use to go on *drinkin'*, *swearin'*, *dancin'*, *fightin'*! No God-- no Savior--no soul! *When old England and de Merica fall out de first time*, old Jacob was a man--a wicked sinner!--drink rum, fight--love to fight! Carry coffin to de grabe on me head; put dead body under ground--dance over it--den fight and knock man down--go 'way, drink rum, den take de fiddle. And so me went on, just so, till me get sick and going to die--thought when me die, dat be de end of me;--*den de Savior come to me!* Jacob love de Savior, and been followin' de good Savior ever since." He continued his story, describing the opposition he had to contend with, and the sacrifices he made to go to church. After working on the estate till six o'clock at night, he and several others would each take a large stone on his head and start for St. John's; nine miles over the hills. They carried the stones to aid is building the Moravian chapel at Spring Garden, St. John's. After he had finished this account, he read to us, in a highly animated style, some of the hymns which he taught to the old people, and then sung one of them. These exercises caused the old man's heart to burn within him, and again he ran over his past life, his early wickedness, and the grace that snatched him from ruin, while the mingled tides of gratitude burst forth from heart, and eyes, and tongue.

When we turned his attention to the temporal freedom he had received, he instantly caught the word FREE, and exclaimed vehemently, "O yes, me Massa--dat is anoder kind blessin from de Savior! Him make we all *free*. Can never praise him too much for dat." We inquired whether he was now

provided for by the manager. He said he was not--never received any thing from him--his *children* supported him. We then asked him whether it was not better to be a slave if he could get food and clothing, than to be free and not have enough. He darted his quick eye at us and said `*rader* be free *still*.' He had been severely flogged twice since his conversion, for leaving his post as watchman to bury the dead. The minister was sick, and he was applied to, in his capacity of *helper*, to perform funeral rites, and he left his watch to do it. He said, his heavenly Master called him, and he *would* go though he expected a flogging. He must serve his Savior whatever come. "Can't put we in dungeon *now*," said Grandfather Jacob with a triumphant look.

When told that there were slaves in America, and that they were not yet emancipated, he exclaimed, "Ah, de Savior make we free, and he will make *dem* free too. He come to Antigo first--he'll be in Merica soon."

When the time had come for him to leave, he came and pressed our hands, and fervently gave us his patriarchal blessing. Our interview with Grandfather Jacob can never be forgotten. Our hearts, we trust, will long cherish his heavenly savor--well assured that if allowed a part in the resurrection of the just, we shall behold his tall form, erect in the vigor of immortal youth, amidst the patriarchs of past generations.

After breakfast we took leave of the kind-hearted missionaries, whose singular devotedness and delightful spirit won greatly upon our affections, and bent our way homeward by another route.

MR. SCOTLAND'S ESTATE.

We called at the estate of Mr. J. Scotland, Jr., barrister, and member of the assembly. We expected to meet with the proprietor, but the manager informed us that pressing business at court had called him to St. John's on the preceding day. The testimony of the manager concerning the dry weather, the consequent failure in the crop, the industry of the laborers, and so forth, was similar to that which we had heard before. He remarked that he had not been able to introduce job-work among his people. It was a new thing with them, and they did not understand it. He had lately made a proposal to give the gang four dollars per acre for holding a certain field. They asked a little time to consider upon so novel a proposition. He gave

them half a day, and at the end of that time asked them what their conclusion was. One, acting as spokesman for the rest, said, "We rada *hab de shilling* wages." That was *certain*; the job might yield them more, and it might fall short--quite a common sense transaction!

At the pressing request of Mr. Armstrong we spent a day with him at Fitch's Creek. Mr. A. received us with the most cordial hospitality, remarking that he was glad to have another opportunity to state some things which he regarded as obstacles to the complete success of the experiment in Antigua. One was the entire want of concert among the planters. There was no disposition to meet and compare views respecting different modes of agriculture, treatment of laborers, and employment of machinery. Another evil was, allowing people to live on the estates who took no part in the regular labor of cultivation. Some planters had adapted the foolish policy of encouraging such persons to remain on the estates, in order that they might have help at hand in cases of emergency. Mr. A. strongly condemned this policy. It withheld laborers from the estates which needed them; it was calculated to make the regular field hands discontented, and it offered a direct encouragement to the negroes to follow irregular modes of living. A third obstacle to the successful operation of free labor, was the absence of the most influential proprietors. The consequences of absenteeism were very serious. The proprietors were of all men the most deeply interested in the soil; and no attorneys, agents, or managers, whom they could employ, would feel an equal interest in it, nor make the same efforts to secure the prosperous workings of the new system.

In the year 1833, when the abolition excitement was at its height in England, and the people were thundering at the doors of parliament for emancipation, Mr. A. visited that country for his health. To use his own expressive words, he "got a terrible scraping wherever he went." He said he could not travel in a stage-coach, or go into a party, or attend a religious meeting, without being attacked. No one the most remotely connected with the system could have peace there. He said it was astonishing to see what a feeling was abroad, how mightily the mind of the whole country, peer and priest and peasant, was wrought up. The national heart seemed on fire.

Mr. A. said, he became a religious man whilst the manager of a slave estate, and when he became a Christian, he became an abolitionist. Yet this man,

while his conscience was accusing him--while he was longing and praying for abolition--did not dare open his mouth in public to urge it on! How many such men are there in our southern states--men who are inwardly cheering on the abolitionist in his devoted work, and yet send up no voice to encourage him, but perhaps are traducing and denouncing him!

We received a call at our lodgings in St. John's from the Archdeacon. He made interesting statements respecting the improvement of the negroes in dress, morals, education and religion, since emancipation. He had resided in the island some years previous to the abolition of slavery, and spoke from personal observation.

Among many other gentlemen who honored us with a call about the same time, was the Rev. Edward Fraser, Wesleyan missionary, and a colored gentleman. He is a native of Bermuda, and ten years ago was a *slave*. He received a mercantile education, and was for several years the confidential clerk of his master. He was treated with much regard and general kindness. He said he was another Joseph--every thing which his master had was in his hands. The account books and money were all committed to him. He had servants under him, and did almost as he pleased--except becoming free. Yet he must say, as respected himself, kindly as he was treated, that slavery was a *grievous wrong, most unjust and sinful*. The very thought--and it often came over him--that he was a slave, brought with it a terrible sense of degradation. It came over the soul like a frost. His sense of degradation grew more intense in proportion as his mind became more cultivated. He said, *education was a disagreeable companion for a slave*. But while he said this, Mr. F. spoke very respectfully and tenderly of his master. He would not willingly utter a word which would savor of unkindness towards him. Such was the spirit of one whose best days had been spent under the exactions of slavery. He was a local preacher in the Wesleyan connection while he was a slave, and was liberated by his master, without remuneration, at the request of the British Conference, who wished to employ him as an itinerant. He is highly esteemed both for his natural talents and general literary acquisitions and moral worth. The Conference have recently called him to England to act as an agent in that country, to procure funds for educational and religious purposes in these islands.

MEETING OF WESLEYAN MISSIONARIES.

As we were present at the annual meeting of the Wesleyan missionaries for this district, we gained much information concerning the object of our mission, as there were about twenty missionaries, mostly from Dominica, Montserrat, Nevis, St. Christophers, Anguilla, and Tortola.

Not a few of them were men of superior acquirements, who had sacrificed ease and popular applause at home, to minister to the outcast and oppressed. They are the devoted friends of the black man. It was soul-cheering to hear them rejoice over the abolition of slavery. It was as though their own limbs had been of a sudden unshackled, and a high wall had fallen from around them. Liberty had broken upon them like the bursting forth of the sun to the watchman on his midnight tower.

During the session, the mission-house was thrown open to us, and we frequently dined with the numerous company of missionaries, who there ate at a common table. Mrs. F., wife of the colored clergyman mentioned above, presided at the social board. The missionaries and their wives associated with Mr. and Mrs. F. as unreservedly as though they wore the most delicate European tint. The first time we took supper with them, at one side of a large table, around which were about twenty missionaries with their wives, sat Mrs. F., with the furniture of a tea table before her. On the other side, with the coffee urn and its accompaniments, sat the wife of a missionary, with a skin as lily-hued as the fairest Caucasian. Nearly opposite to her, between two white preachers, sat a colored missionary. Farther down, with the chairman of the district on his right, sat another colored gentleman, a merchant and local preacher in Antigua. Such was the uniform appearance of the table, excepting that the numbers were occasionally swelled by the addition of several other colored gentlemen and ladies. On another occasion, at dinner, we had an interesting conversation, in which the whole company of missionaries participated. The Rev. M. Banks, of St. Bartholomews, remarked, that one of the grossest of all absurdities was that of *preparing men for freedom*. Some, said he, pretend that immediate emancipation is unsafe, but it was evident to him that if men *are peaceable while they are slaves*, they might be trusted in any other condition, for they could not possibly be placed in one more aggravating. If *slavery* is a safe system, *freedom* surely will be. There can be no better evidence that a people are prepared for liberty, *than their patient endurance of slavery*. He expressed the greatest regret at the conduct of the American

churches, particularly that of the Methodist church. "Tell them," said he, "on your return, that the missionaries in these islands are cast down and grieved when they think of their brethren in America. We feel persuaded that they are holding back the car of freedom; they are holding up the gospel." Rev. Mr. Cheesbrough, of St. Christopher's, said, "Tell them that much as we desire to visit the United States, we cannot go so long as we are prohibited from speaking against slavery, or while that *abominable prejudice* is encouraged in the churches. *We could not administer the sacrament to a church in which the distinction of colors was maintained.*" "Tell our brethren of the Wesleyan connection," said Mr. B. again, "that slavery must be abolished by *Christians*, and the church ought to take her stand at once against it." We told him that a large number of Methodists and other Christians had engaged already in the work, and that the number was daily increasing. "That's right," he exclaimed, "agitate, *agitate*, AGITATE! *You must succeed*: the Lord is with you." He dwelt particularly on the obligations resting upon Christians in the free states. He said, "Men must be at a distance from slavery to judge of its real character. Persons living in the midst of it, gradually become familiarized with its horrors and woes, so that they can view calmly, exhibitions from which they would once have shrunk in dismay."

We had some conversation with Rev. Mr. Walton, of Montserrat. After making a number of statements in reference to the apprenticeship there, Mr. W. stated that there had been repeated instances of planters *emancipating all their apprentices*. He thought there had been a case of this kind every month for a year past. The planters were becoming tired of the apprenticeship, and from mere considerations of interest and comfort, were adopting free labor.

A new impulse had been given to education in Montserrat, and schools were springing up in all parts of the island. Mr. W. thought there was no island in which education was so extensive. Religious influences were spreading among the people of all classes. Marriages were occurring every week.

We had an interview with the Rev. Mr. H., an aged colored minister. He has a high standing among his brethren, for talents, piety, and usefulness. There are few ministers in the West Indies who have accomplished more *for the cause of Christ* than has Mr. H.[\[A\]](#)

[Footnote [A](#): It is a fact well known in Antigua and Barbadoes, that this colored missionary has been instrumental in the conversion of several clergymen of the Episcopal Church in those islands, who are now currently devoted men.]

He said he had at different periods been stationed in Antigua, Anguilla, Tortola, and some other islands. He said that the negroes in the other islands in which he had preached, were as intelligent as those in Antigua, and in every respect as well prepared for freedom. He was in Anguilla when emancipation took place. The negroes there were kept at work on the very *day that freedom came!* They worked as orderly as on any other day. The Sabbath following, he preached to them on their new state, explaining the apprenticeship to them. He said the whole congregation were in a state of high excitement, weeping and shouting. One man sprang to his feet, and exclaimed, 'Me never forget God and King William.' This same man was so full that he went out of the chapel, and burst into loud weeping.

The preaching of the missionaries, during their stay in Antigua, was full of allusions to the abolition of slavery in the West Indies, and especially to the entire emancipation in Antigua. Indeed, we rarely attended a meeting in Antigua, of any kind, in which the late emancipation was not in some way alluded to with feelings of gratitude and exultation. In the ordinary services of the Sabbath, this subject was almost uniformly introduced, either in the prayer or sermon. Whenever thanksgiving was rendered to God for favors, *freedom* was among the number.

The meeting of the district afforded an opportunity for holding a number of anniversary meetings. We notice them here, believing that they will present the most accurate view that can be given of the religious and moral condition of Antigua.

On the evening of the 1st of February, the first anniversary of the Antigua Temperance Society was held in the Wesleyan chapel. We had been invited to attend and take a part in the exercises. The chapel was crowded with a congregation of all grades and *complexions*. Colored and white gentlemen appeared together on the platform. We intimated to a member of the committee, that we could not conscientiously speak without advocating *total abstinence*, which doctrine, we concluded from the nature of the

pledge, (which only included ardent spirits,) would not be well received. We were assured that we might use the most perfect freedom in avowing our sentiments.

The speakers on this occasion were two planters, a Wesleyan missionary, and ourselves. All advocated the doctrine of total abstinence. The first speaker, a planter, concluded by saying, that it was commonly believed that wine and malt were rendered absolutely indispensable in the West Indies, by the exhausting nature of the climate. But facts disprove the truth of this notion. "I am happy to say that I can now present this large assembly with ocular demonstration of the fallacy of the popular opinion. I need only point you to the worthy occupants of this platform. Who are the healthiest among them? *The cold water drinkers--the teetotallers!* We can assure you that we have not lost a pound of flesh, by abandoning our cups. We have tried the cold water experiment faithfully, and we can testify that since we became cold water men, *we work better, we eat better, we sleep better, and we do every thing better than before.*" The next speaker, a planter also, dwelt on the inconsistency of using wine and malt, and at the same time calling upon the poor to give up ardent spirits. He said this inconsistency had been cast in his teeth by his negroes. He never could prevail upon them to stop drinking rum, until he threw away his wine and porter. Now he and all his people were teetotallists. There were two other planters who had taken the same course. He stated, as the result of a careful calculation which he had made, that he and the two planters referred to, had been in the habit of giving to their people not less than *one thousand gallons of rum annually*. The whole of this was now withheld, and molasses and sugar were given instead. The missionary who followed them was not a whit behind in boldness and zeal, and between them, they left us little to say in our turn on the subject of total abstinence.

On the following evening the anniversary of the Bible Society was held in the Moravian school-room. During the day we received a note from the Secretary of the Society, politely requesting us to be present. The spacious school-room was filled, and the broad platform crowded with church clergymen, Moravian ministers, and Wesleyan missionaries, colored and white. The Secretary, a Moravian minister, read the twenty-first annual report. It spoke emphatically of 'the joyful event of emancipation', and in allusion to an individual in England, of whom it spoke in terms of high

commendation, it designated him, as one "who was distinguished for his efforts in the abolition of slavery." The adoption of the report was moved by one of the Wesleyan missionaries, who spoke at some length. He commenced by speaking of "the peculiar emotions with which he always arose to address an assembly of the free people of Antigua." It had been his lot for a year past to labor in a colony[[A](#)] where slavery still reigned, and he could not but thank God for the happiness of setting his foot once more on the free soil of an emancipated island.

[Footnote [A](#): St. Martin's]

Perhaps the most interesting meeting in the series, was the anniversary of the Wesleyan Missionary Society of Antigua. Both parts of the day were devoted to this anniversary. The meetings were held in the Wesleyan chapel, which was filled above and below, with the usual commixture of white, colored, and black. We saw, as on former occasions, several colored gentlemen seated among the ministers. After the usual introductory exercises of singing and prayer, the annual report was read by the Secretary, Rev. E. Fraser, the colored minister already mentioned. It was terse, direct, and business like. The meeting was then addressed by a Moravian missionary. He dwelt upon the decrease of the sectarian spirit, and hailed the coming of Christian charity and brotherly communion. He opened his Bible, and read about the middle wall of partition being broken down. "Yes, brother," said Mr. Horne, "and every other wall." "The rest are but paper walls," responded the speaker, "and when once the middle wall is removed, these will soon be burned up by the fire of Christian love."

The next speaker was a Wesleyan missionary of Nevis. He spoke of the various instrumentalities which were now employed for the conversion of the world. "We welcome," said he, "the co-operation of America, and with all our hearts do we rejoice that she is now beginning to put away from her that vile system of oppression which has hitherto crippled her moral energy and her religious enterprise." Then turning and addressing himself to us, he said, "We hail you, dear brethren, as co-workers with us. Go forward in your blessed undertaking. Be not dismayed with the huge dimensions of that vice which you are laboring to overthrow! Be not disheartened by the violence and menaces of your enemies! Go forward. Proclaim to the church and to your countrymen the sinfulness of slavery, and be assured that soon

the fire of truth will melt down the massy chains of oppression." He then urged upon the people of Antigua *their* peculiar obligations to extend the gospel to other lands. It was the *Bible* that made them free, and he begged them to bear in mind that there were millions of their countrymen *still in the chains of slavery*. This appeal was received with great enthusiasm.

We then spoke on a resolution which had been handed us by the Secretary, and which affirmed "that the increasing and acknowledged usefulness of Christian missions was a subject of congratulation." We spoke of the increase of missionary operations in our own country, and of the spirit of self-denial which was widely spreading, particularly among young Christians. We spoke of that accursed thing in our midst, which not only tended greatly to kill the spirit of missions in the church, but which directly withheld *many* young men from foreign missionary fields. It had made more than two millions of heathen in our country; and so long as the cries of these *heathen at home* entered the ears of our young men and young women, they could not, dare not, go abroad. How could they go to Ceylon, to Burmah, or to Hindostan, with the cry of their *country's heathen* ringing their ears! How could they tear themselves away from famished millions kneeling at their feet in chains and begging for the bread of life, and roam afar to China or the South Sea Islands! Increasing numbers filled with a missionary spirit felt that their obligations were at home, and they were resolved that if they could not carry the gospel *forthwith* to the slaves, they would labor for the overthrow of that system which made it a crime punishable with death to preach salvation to the poor. In conclusion, the hope was expressed that the people of Antigua--so highly favored with freedom, education, and religion, would never forget that in the nation whence we came, there were *two millions and a half of heathen*, who, instead of bread, received stones and scorpions; instead of the Bible, bolts and bars; instead of the gospel, chains and scourgings; instead of the hope of salvation thick darkness and despair. They were entreated to remember that in the gloomy dungeon, from which they had lately escaped there were deeper and more dismal cells, *yet filled* with millions of their countrymen. The state of feeling produced by this reference to slavery, was such as might be anticipated in an audience, a portion of which were once slaves, and still remembered freshly the horrors of their late condition.

The meeting was concluded after a sitting of more than four hours. The attendance in the evening was larger than on any former occasion. Many were unable to get within the chapel. We were again favored with an opportunity of urging a variety of considerations touching the general cause, as well as those drawn from the condition of our own country, and the special objects of our mission.

The Rev. Mr. Horne spoke very pointedly on the subject of slavery. He began by saying that he had been *so long accustomed* to speak cautiously about slavery that he was even now almost afraid of his own voice when he alluded to it. [General laughter.] But he would remember that he was in a *free island*, and that he spoke to *freemen*, and therefore he had nothing to fear.

He said the peace and prosperity of these colonies is a matter of great moment in itself considered, but it was only when viewed as an example to the rest of the slaveholding world that its real magnitude and importance was perceived. The influence of abolition, and especially of entire emancipation in Antigua, must be very great. The eyes of the world were fixed upon her. The great nation of America must now soon *toll the knell* of slavery, and this event will be hastened by the happy operation of freedom here.

Mr. H. proceeded to say, that during the agitation of the slavery question at home, he had been suspected of not being a friend to emancipation; and it would probably be remembered by some present that his name appeared in the report of the committee of the House of Commons, where it stood in *no enviable society*. But whatever might be thought of his course at that time, he felt assured that the day was not far distant when he should be able to clear up every thing connected with it. It was not a little gratifying to us to see that the time had come in the West Indies, when the suspicion of having been opposed to emancipation is a stain upon the memory from which a public man is glad to vindicate himself.

RESOLUTION OF THE MEETING.

After a few other addresses were delivered, and just previous to the dismissal of the assembly, Rev. Mr. Cox, Chairman of the District, arose and said, that as this was the last of the anniversary meetings, he begged to

move a resolution which he had no doubt would meet with the hearty and unanimous approval of that large assembly. He then read the following resolution, which we insert here as an illustration of the universal sympathy in the objects of our mission. As the resolution is not easily divisible, we insert the whole of it, making no ado on the score of modesty.

"Resolved, that this meeting is deeply impressed with the importance of the services rendered this day to the cause of missions by the acceptable addresses of Mr. ----, from America, and begs especially to express to him and his friend Mr. ----, the assurance of their sincere sympathy in the object of their visit to Antigua."

Mr. C. said he would make no remarks in support of the resolution he had just read for he did not deem them necessary. He would therefore propose at once that the vote be taken by rising. The Chairman read the resolution accordingly, and requested those who were in favor of adopting it, to rise. Not an individual in the crowded congregation kept his seat. The masters and the slaves of yesterday--all rose together--a phalanx of freemen, to testify "their sincere sympathy" in the efforts and objects of American abolitionists.

After the congregation had resumed their seats, the worthy Chairman addressed us briefly in behalf of the congregation, saying, that it was incumbent on him to convey to us the unanimous expression of sympathy on the part of this numerous assembly in the object of our visit to the island. We might regard it as an unfeigned assurance that we were welcomed among them, and that the cause which we were laboring to promote was dear to the hearts of the people of Antigua.

This was the testimonial of an assembly, many of whom, only three years before, were themselves slaveholders. It was not given at a meeting specially concerted and called for the purpose, but grew up unexpectedly and spontaneously out of the feelings of the occasion, a free-will offering, the cheerful impulsive gush of *free* sympathies. We returned our acknowledgments in the best manner that our excited emotions permitted.

LAYING THE CORNER STONE OF A WESLEYAN CHAPEL.

The corner stone of a new Wesleyan Chapel was laid in St. John's, during the district meeting. The concourse of spectators was immense. At eleven o'clock religious exercises were held in the old chapel. At the close of the service a procession was formed, composed of Wesleyan missionaries, Moravian ministers, clergymen of the church, members of the council and of the assembly, planters, merchants, and other gentlemen, and the children of the Sunday and infant schools, connected with the Wesleyan Chapel.

As the procession moved to the new site, a hymn was sung, in which the whole procession united. Our position in the procession, to which we were assigned by the marshal, and much to our satisfaction, was at either side of two colored gentlemen, with whom we walked, four abreast.

On one side of the foundation a gallery had been raised, which was covered with an awning, and was occupied by a dense mass of white and colored ladies. On another side the gentlemen of the procession stood. The other sides were thronged with a promiscuous multitude of all colors. After singing and prayer, the Hon. Nicholas Nugent, speaker of the house of assembly, descended from the platform by a flight of stairs into the cellar, escorted by two missionaries. The sealed phial was then placed in his hand, and Mr. P., a Wesleyan missionary, read from a paper the inscription written on the parchment within the phial. The closing words of the inscription alluded to the present condition of the island, thus: "The demand for a new and larger place of worship was pressing, and the progress of public liberality advancing on a scale highly creditable to this FREE, enlightened, and evangelized colony." The Speaker then placed the phial in the cavity of the rock. When it was properly secured, and the corner stone lowered down by pullies to its place, he struck three blows upon it with a mallet, and then returned to the platform. The most eager curiosity was exhibited on every side to witness the ceremony.

At the conclusion of it, several addresses were delivered. The speakers were, Rev. Messrs. Horne and Harvey, and D.B. Garling, Esq. Mr. Horne, after enumerating several things which were deserving of praise, and worthy of imitation, exclaimed, "The grand crowning glory of all--that which places Antigua above all her sister colonies--was the magnanimous measure of the legislature in entirely abolishing slavery." It was estimated that there were more than two thousand persons assembled on this occasion.

The *order* which prevailed among such a concourse was highly creditable to the island. It was pleasing to see the perfect intermixture of colors and conditions; not less so to observe the kindly bearing of the high toward the low.[[A](#)] After the exercises were finished, the numerous assembly dispersed quietly. Not an instance of drunkenness, quarrelling, or anger, fell under our notice during the day.

[Footnote [A](#): During Mr. Home's address, we observed Mr. A., a planter, send his umbrella to a negro man who stood at the corner-stone, exposed to the sun.]

RESOLUTIONS OF THE MISSIONARIES.

Toward the close of the district meeting, we received a kind note from the chairman, inviting us to attend the meeting, and receive in person, a set of resolutions which had been drawn up at our request, and signed by all the missionaries. At the hour appointed, we repaired to the chapel. The missionaries all arose as we entered, and gave us a brotherly salutation. We were invited to take our seats at the right hand of the chairman. He then, in the presence of the meeting, read to us the subjoined resolutions; we briefly expressed, in behalf of ourselves and our cause, the high sense we had of the value of the testimony, which the meeting had been pleased to give us. The venerable father Horne then prayed with us, commending our cause to the blessing of the Head of the church, and ourselves to the protection and guidance of our heavenly Father. After which we shook hands with the brethren, severally, receiving their warmest assurances of affectionate regard, and withdrew.

"Resolutions passed at the meeting of the Wesleyan Missionaries of the Antigua District, assembled at St. John's, Antigua, February 7th, 1837.

1. That the emancipation of the slaves of the West Indies, while it was an act of undoubted justice to that oppressed people, has operated most favorably in furthering the triumphs of the gospel, by removing one prolific source of unmerited suspicion of religious teachers, and thus opening a door to their more extensive labors and usefulness--by furnishing a greater portion of time for the service of the negro, and thus preventing the continuance of unavoidable Sabbath desecrations, in labor and neglect of the means of grace--and in its operation as a

stimulus to proprietors and other influential gentlemen, to encourage religious education, and the wide dissemination of the Scriptures, as an incentive to industry and good order.

2. That while the above statements are true with reference to all the islands, even where the system of apprenticeship prevails, they are especially applicable to Antigua, where the results of the great measure, of entire freedom, so humanely and judiciously granted by the legislature, cannot be contemplated without the most devout thanks givings to Almighty God.

3. That we regard with much gratification, the great diminution among all classes in these islands, of the most unchristian prejudice of color the total absence of it in the government and ordinances of the churches of God, with which we are connected, and the prospect of its complete removal, by the abolition of slavery, by the increased diffusion of general knowledge, and of that religion which teaches to "honor *all* men," and to love our neighbor as ourselves.

4. That we cannot but contemplate with much humiliation and distress, the existence, among professing Christians in America, of this partial, unseemly, and unchristian system of *caste*, so distinctly prohibited in the word of God, and so utterly irreconcilable with Christian charity.

5. That regarding slavery as a most unjustifiable infringement of the rational and inalienable rights of men, and in its moral consequences, (from our own personal observation as well as other sources,) as one of the greatest curses with which the great Governor of the nations ever suffered this world to be blighted: we cannot but deeply regret the connection which so intimately exists between the various churches of Christ in the United States of America, and this unchristian system. With much sorrow do we learn that the *principle* of the lawfulness of slavery has been defended by some who are ministers of Christ, that so large a proportion of that body in America, are exerting their influence in favor of the continuance of so indefensible and monstrous a system--and that these emotions of sorrow are especially occasioned with reference to our own denomination.

6. That while we should deprecate and condemn any recourse on the part of the slaves, to measures of rebellion, as an unjustifiable mode of obtaining their freedom, we would most solemnly, and affectionately, and imploringly, adjure our respected fathers and brethren in America, to endeavor, in every legitimate way, to wipe away this reproach from their body, and thus act in perfect accordance with the deliberate and recorded sentiments of our venerated founder on this subject, and in harmony with the feelings and proceedings of their brethren in the United Kingdom, who have had the honor to take a distinguished part in awakening such a determined and resistless public feeling in that country, as issued in the abolition of slavery among 800,000 of our fellow subjects.

7. That we hail with the most lively satisfaction the progress in America of anti-slavery principles, the multiplication of anti-slavery societies, and the diffusion of correct views on this subject. We offer to the noble band of truly patriotic, and enlightened, and philanthropic men, who are combating in that country with such a fearful evil, the assurance of our most cordial and fraternal sympathy, and our earnest prayers for their complete success. We view with pity and sorrow the vile calumnies with which they have been assailed. We welcome with Christian joyfulness, in the success which has already attended their efforts, the dawn of a cloudless day of light and glory, which shall presently shine upon that vast continent, when the song of universal freedom shall sound in its length and breadth.

8. That these sentiments have been increased and confirmed by the intercourse, which some of our body Have enjoyed with our beloved brethren, the Rev. James A. Thome, and Joseph Horace Kimball, Esq., the deputation to these islands, from the Anti-Slavery Society in America. We regard this appointment, and the nomination of such men to fulfil it, as most judicious. We trust we can appreciate the spirit of entire devotedness to this cause, which animates our respected brethren, and breathes throughout their whole deportment, and rejoice in such a manifestation of the fruits of that divine charity, which flow from the constraining love of Christ, and which many waters cannot quench.

9. That the assurance of the affectionate sympathy of the twenty-five brethren who compose this district meeting, and our devout wishes for their success in the objects of their mission, are hereby presented, in our collective and individual capacity, to our endeared and Christian friends from America.

(Signed) JAMES COX, chairman of the district, and resident in Antigua.

Jonathan Cadman, St. Martin's. James Horne, St. Kitts. Matthew Banks, St. Bartholomew's. E. Frazer, Antigua. Charles Bates, do. John Keightley, do. Jesse Pilcher, do. Benjamin Tregaskiss, do. Thomas Edwards, St. Kitts. Robert Hawkins, Tortola. Thomas Pearson, Nevis. George Craft, do. W.S. Wamouth, St. Kitts. John Hodge, Tortola. William Satchel, Dominica. John Cullingford, Dominica. J. Cameron, Nevis. B. Gartside, St. Kitts. John Parker, do. Hilton Cheeseborough, do. Thomas Jeffery, do. William Rigglesworth, Tortola. Daniel Stepney, Nevis. James Walton, Montserrat."

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CHAPTER II.

GENERAL RESULTS.

Having given a general outline of our sojourn in Antigua, we proceed to a mere minute account of the results of our investigations. We arrange the testimony in two general divisions, placing that which relates to the past

and present condition of the colony in one, and that which bears directly upon the question of slavery in America in another.

RELIGION.

There are three denominations of Christians in Antigua: the Established Church; the Moravians, and Wesleyans. The Moravians number fifteen thousand--almost exclusively negroes. The Wesleyans embrace three thousand members, and about as many more attendants. Of the three thousand members, says a Wesleyan missionary, "not fifty are whites--a larger number are colored; but the greater part black." "The attendance of the negro population at the churches and chapels," (of the established order,) says the Rector of St. John's, "amounts to four thousand six hundred and thirty-six." The whole number of blacks receiving religious instruction from these Christian bodies, making allowance for the proportion of white and colored included in the three thousand Wesleyans, is about twenty-two thousand--leaving a population of eight thousand negroes in Antigua who are unsupplied with religious instruction.

The Established Church has six parish churches, as many "chapels of ease," and nine clergymen. The Moravians have five settlements and thirteen missionaries. The Wesleyans have seven chapels, with as many more small preaching places on estates, and twelve ministers; half of whom are itinerant missionaries, and the other half, local preachers, employed as planters, or in mercantile, and other pursuits, and preaching only occasionally. From the limited number of chapels and missionaries, it may be inferred that only a portion of the twenty-two thousand can enjoy stated weekly instruction. The superintendent of the Moravian mission stated that their chapels could not accommodate more than *one third* of their members.

Each of the denominations complains of the lack of men and houses. The Wesleyans are now building a large chapel in St. John's. It will accommodate two thousand persons. "Besides free sittings, there will be nearly two hundred pews, every one of which is now in demand."

However much disposed the churches of different denominations might have been during slavery to maintain a strict discipline, they found it exceedingly difficult to do so. It seems impossible to elevate a body of slaves, *remaining such*, to honesty and purity. The reekings of slavery will

almost inevitably taint the institutions of religion, and degrade the standard of piety. Accordingly the ministers of every denomination in Antigua, feel that in the abolition of slavery their greatest enemy has been vanquished, and they now evince a determination to assume higher ground than they ever aspired to during the reign of slavery. The motto of all creeds is, "*We expect great things of freemen.*" A report which we obtained from the Wesleyan brethren, states, "Our own brethren preach almost daily." "We think the negroes are uncommonly punctual and regular in their attendance upon divine worship, particularly on the Sabbath." "They always show a readiness to contribute to the support of the gospel. With the present low wages, and the entire charge of self-maintenance, they have little to spare." Parham and Sion Hill (taken as specimens) have societies almost entirely composed of rural blacks--about thirteen hundred and fifty in number. These have contributed this year above £330 sterling, or sixteen hundred and fifty dollars, in little weekly subscriptions; besides giving to special objects occasionally, and contributing for the support of schools.[[A](#)]

[Footnote [A](#): The superintendent of the Wesleyan mission informed us that the collection in the several Wesleyan chapels last year, independent of occasional contributions to Sunday schools, Missionary objects, &c., amounted to £850 sterling, or more than \$4000!]

In a letter dated December 2d, 1834, but four months after emancipation, and addressed to the missionary board in England, the Rev. B. Harvey thus speaks of the Moravian missions: "With respect to our people, I believe; I may say that in all our places here, they attend the meetings of the church more numerously than ever, and that many are now in frequent attendance who *could very seldom appear amongst us during slavery.*" The same statements substantially were made to us by Mr. H., showing that instead of any falling off the attendance was still on the increase.

In a statement drawn up at our request by the Rector of St. John's, is the following: "Cases of discipline are more frequent than is usual in English congregations, but at the same time it should be observed, that a *closer oversight* is maintained by the ministers, and a *greater readiness to submit themselves* (to discipline) is manifested by the late slaves here than by those who have always been a free people." "I am able to speak very favorably of the attendance at church--it is regular and crowded." "The negroes on some

estates have been known to contribute willingly to the Bible Society, since 1832. They are now beginning to pay a penny and a half currency per week for their children's instruction."

MORALITY.

The condition of Antigua, but a very few years previous to emancipation, is represented to have been truly revolting. It has already been stated that the Sabbath was the market day up to 1832, and this is evidence enough that the Lord's day was utterly desecrated by the mass of the population. Now there are few parts of our own country, equal in population, which can vie with Antigua in the solemn and respectful observance of the Sabbath. Christians in St. John's spoke with joy and gratitude of the tranquillity of the Sabbath. They had long been shocked with its open and abounding profanation--until they had well-nigh forgot the aspect of a Christian Sabbath. At length the full-orbed blessing beamed upon them, and they rejoiced in its brightness, and thanked God for its holy repose.

All persons of all professions testify to the fact that *marriages* are rapidly increasing. In truth, there was scarcely such a thing as marriage before the abolition of slavery. Promiscuous intercourse of the sexes was almost universal. In a report of the Antigua Branch Association of the Society for advancing the Christian Faith in the British West Indies, (for 1836,) the following statements are made:

"The number of marriages in the six parishes of the island, in the year 1835, the first entire year of freedom, was 476; all of which, excepting about 50, were between persons formerly slaves. The total number of marriages between slaves solemnized in the Church during the nine years ending December 31, 1832, was 157; in 1833, the last entire year of slavery, it was 61."

Thus it appears that the whole number of marriages during *ten years* previous to emancipation (by far the most favorable ten years that could have been selected) was but *half* as great as the number for a single year following emancipation!

The Governor, in one of our earliest interviews with him, said, "the great crime of this island, as indeed of all the West India Colonies, has been

licentiousness, but we are certainly fast improving in this particular." An aged Christian, who has spent many years in the island, and is now actively engaged in superintending several day schools for the negro children, informed us that there was not *one third* as much concubinage as formerly. This he said was owing mainly to the greater frequency of marriages, and the cessation of late night work on the estates, and in the boiling houses, by which the females were constantly exposed during slavery. Now they may all be in their houses by dark. Formerly the mothers were the betrayers of their daughters, encouraging them to form unhallowed connections, and even *selling* them to licentious white and colored men, for their own gain. Now they were using great strictness to preserve the chastity of their daughters.

A worthy planter, who has been in the island since 1800, stated, that it used to be a common practice for mothers to *sell their daughters* to the highest bidder!--generally a manager or overseer. "But now;" said he, "the mothers *hold their daughters up for marriage*, and take pains to let every body know that their virtue is not to be bought and sold any longer." He also stated that those who live unmarried now are uniformly neglected and suffer great deprivations. Faithfulness after marriage, exists also to a greater extent than could have been expected from the utter looseness to which they had been previously accustomed, and with their ignorance of the nature and obligations of the marriage relation. We were informed both by the missionaries and the planters, that every year and month they are becoming more constant, as husband and wife, more faithful as parents, and more dutiful as children. One planter said that out of a number who left his employ after 1834, nearly all had companions on other estates, and left for the purpose of being with them. He was also of the opinion that the greater proportion of changes of residence among the emancipated which took place at that time, were owing to the same cause.[\[A\]](#) In an address before the Friendly Society in St. John's, the Archdeacon stated that during the previous year (1835) several individuals had been expelled from that society for domestic unfaithfulness; but he was happy to say that he had not heard of a single instance of expulsion for this cause during the year then ended. Much inconvenience is felt on account of the Moravian and Wesleyan missionaries being prohibited from performing the marriage service, even for their own people. Efforts are now making to obtain the

repeal of the law which makes marriages performed by sectarians (as all save the established church are called) void.

[Footnote [A](#): What a resurrection to domestic life was that, when long severed families flocked from the four corners of the island to meet their kindred members! And what a glorious resurrection will that be in our own country, when the millions of emancipated beings scattered over the west and south, shall seek the embraces of parental and fraternal and conjugal love.]

That form of licentiousness which appears among the higher classes in every slaveholding country, abounded in Antigua during the reign of slavery. It has yielded its redundant fruits in a population of four thousand colored people; double the number of whites. The planters, with but few exceptions, were unmarried and licentious. Nor was this vice confined to the unmarried. Men with large families, kept one or more mistresses without any effort at concealment. We were told of an "Honorable" gentleman, who had his English wife and two concubines, a colored and a black one. The governor himself stated as an apology for the prevalence of licentiousness among the slaves, that the example was set them constantly by their masters, and it was not to be wondered at if they copied after their superiors. But it is now plain that concubinage among the whites is nearly at an end. An unguarded statement of a public man revealed the conviction which exists among his class that concubinage must soon cease. He said that the present race of colored people could not be received into the society of the whites, *because of illegitimacy*; but the next generation would be fit associates for the whites, *because they would be chiefly born in wedlock*.

The uniform testimony respecting *intemperance* was, that it *never had been one of the vices of the negroes*. Several planters declared that they had rarely seen a black person intoxicated. The report of the Wesleyan missionaries already referred to, says, "Intemperance is most uncommon among the rural negroes. Many have joined the Temperance Society, and many act on tee-total principles." The only *colored* person (either black or brown) whom we saw drunk during a residence of nine weeks in Antigua, was a carpenter in St. John's, who as he reeled by, stared in our faces and mumbled out his sentence of condemnation against wine bibbers, "--Gemmen--you sees I'se a little bit drunk, but 'pon honor I only took th--th--

ree bottles of wine--that's all." It was "Christmas times," and doubtless the poor man thought he would venture for once in the year to copy the example of the whites.

In conclusion, on the subject of morals in Antigua, we are warranted in stating, 1st., That during the continuance of slavery, immoralities were rife.

2d. That the repeated efforts of the home Government and the local Legislature, for several successive years previous to 1834, to *ameliorate* the system of slavery, seconded by the labors of clergymen and missionaries, teachers and catechists, to improve the character of the slaves, failed to arrest the current of vice and profligacy. What few reformatations were effected were very partial, leaving the more enormous immoralities as shameless and defiant as ever, up to the very day of abolition; demonstrating the utter impotence of all attempts to purify the *streams* while the *fountain* is poison.

3d. That the abolition of slavery gave the death blow to open vice, overgrown and emboldened as it had become. Immediate emancipation, instead of lifting the flood-gates, was the only power strong enough to shut them down! It restored the proper restraints upon vice, and supplied the incentives to virtue. Those great controllers of moral action, *self-respect, attachment to law, and veneration for God*, which slavery annihilated, *freedom has resuscitated*, and now they stand round about the emancipated with flaming swords deterring from evil, and with cheering voices exhorting to good. It is explicitly affirmed that the grosser forms of immorality, which in every country attend upon slavery, have in Antigua either shrunk into concealment or become extinct.

BENEVOLENT INSTITUTIONS.

We insert here a brief account of the benevolent institutions of Antigua. Our design in giving it, is to show the effect of freedom in bringing into play those charities of social life, which slavery uniformly stifles. Antigua abounds in benevolent societies, all of which have been *materially revived* since emancipation, and some of them have been formed since that event.

THE BIBLE SOCIETY.

This is the oldest society in the island. It was organized in 1815. All denominations in the island cordially unite in this cause. The principal design of this society is to promote the Circulation of the Scriptures among the laboring population of the island. To secure this object numerous branch associations--amounting to nearly fifty--have been organized throughout the island *among the negroes themselves*. The society has been enabled not only to circulate the Scriptures among the people of Antigua, but to send them extensively to the neighboring islands.

The following table, drawn up at our request by the Secretary of the Society, will show the extent of foreign operations:

Years.	Colonies Supplied.	Bibles.	Test's.
1822	Anguilla	94	156
1823	Demerara	18	18
1824	Dominica	89	204
1825	Montserrat	57	149
1827	Nevis	79	117
1832	Saba	6	12
1833	St. Bart's	111	65
1834	St. Eustatius	97	148
1835	St. Kitts	227	487
1835	St. Martins	48	37
1836	Tortola	69	136
To 1837	Trinidad	25	67
	Total	920	1596

From the last annual report we quote the following cheering account, touching the events of 1834:

"The next event of importance in our annals is the magnificent grant of the parent society, on occasion of the emancipation of the slaves, and the perpetual banishment of slavery from the shores of Antigua, on the first of August, 1834; by which a choice portion of the Holy Scriptures was gratuitously circulated to about one third of the inhabitants of this colony. Nine thousand seven hundred copies of the New Testament, bound together

with the book of Psalms, were thus placed at the disposal of your committee."

* * * "Following hard upon this joyful event another gratifying circumstance occurred among us. The attention of the people was roused, and their gratitude excited towards the Bible Society, and they who had freely received, now freely gave, and thus a considerable sum of money was presented to the parent society in acknowledgment of its beneficent grant."

We here add an extract from the annual report for 1826. Its sentiments contrast strongly with the congratulations of the last report upon 'the joyful event' of emancipation.

"Another question of considerable delicacy and importance still remains to be discussed. Is it advisable, under all the circumstances of the case, to circulate the Holy Scriptures, without note of comment, among the slave population of these islands? Your Committee can feel no hesitation in affirming that such a measure is not merely expedient, but one of almost indispensable necessity. The Sacred Volume is in many respects peculiarly adapted to the slave. It enjoins upon him precepts so plain, that the most ignorant cannot fail to understand them: 'Slaves, obey in all things your masters, not with eye service, as men pleasers, but in singleness of heart, fearing God.' It furnishes him with motives the most impressive and consoling: 'Ye serve,' says the Apostle, 'the Lord Christ.' It promises him rewards sufficient to stimulate the most indolent to exertion: 'Whatsoever good thing any man doeth, the same shall he receive of the Lord, whether he be bond or free.' And it holds forth to him an example so glorious, that it would ennoble even angels to imitate it: 'Let this mind be in you which was also in Christ Jesus, who made himself of no reputation, and took upon him the form of a *slave*!'"

"It may here be proper to observe, that the precise import of the word, which in general throughout the English Bible is translated *servant*, is strictly that which has been assigned it in the foregoing quotations; (!) and so understood, the Sacred Volume will be found to hold out to our slaves, both by precept and example the most persuasive and the most compelling motives to industry, obedience, and submission."

Nothing could more plainly show the corrupting influences of slavery, upon all within its reach, than this spectacle of a noble, religious institution, prostituted to the vile work of defending oppression, and, in the zeal of its advocacy, blasphemously degrading the Savior into a self-made slave!

The receipts of the Antigua Branch Society have greatly increased since emancipation. From receipts for the year 1836, in each of the British islands, it appears that the contributions from Antigua and Bermuda, the only two islands which adopted entire emancipation, are about *double* those from any other two islands.

MISSIONARY ASSOCIATIONS.

These associations are connected with the Wesleyan mission, and have been in existence since 1820. Their object is to raise funds for the parent society in England. Although it has been in existence for several years, yet it was mostly confined to the whites and free people of color, during slavery. The calling together assemblies of rural negroes, and addressing them on the subject of missions, and soliciting contributions in aid of the cause, is a new feature in the missionary operations to which nothing but freedom could give birth.

TEMPERANCE SOCIETIES.

The first temperance society in Antigua was formed at the beginning of 1836. We give an extract from the first annual report: "Temperance societies have been formed in each town, and on many of the estates. A large number of persons who once used spirituous liquors moderately, have entirely relinquished the use. Some who were once intemperate have been reclaimed, and in some instances an adoption of the principles of the temperance society, has been followed by the pursuit and enjoyment of vital religion. Domestic peace and quietness have superseded discord and strife, and a very general sense of astonishment at the gross delusion which these drinks have long produced on the human species is manifest."

"The numbers on the various books of the society amount to about 1700. One pleasing feature in their history, is the very small number of those who have violated their pledge."

"On several estates, the usual allowance of spirits has been discontinued, and sugar or molasses substituted."

The temperance society in Antigua may be specially regarded as a result of emancipation. It is one of the guardian angels which hastened to the island as soon as the demon of slavery was cast out.

FRIENDLY SOCIETIES.

The friendly societies are designed exclusively for the benefit of the negro population. The general object is thus stated in the constitution of one of these societies: "The object of this society is to assist in the purchase of articles of mourning for the dead; to give relief in cases of unlooked for distress; to help those who through age or infirmities are incapable of helping themselves by marketing, or working their grounds; *to encourage sobriety and industry, and to check disorderly and immoral conduct.*"

These societies obtain their funds by laying a tax of one shilling per month on every member above eighteen years of age, and of six pence per month on all members under that age and above twelve, which is the minimum of membership. The aged members are required to pay no more than the sum last mentioned.

The first society of this kind was established in St. John's by the present rector, in 1829. Subsequently the Moravians and Wesleyans formed similar societies among their own people. Independent of the pecuniary assistance which these societies bestow, they encourage in a variety of ways the good order of the community. For example, no one is allowed to receive assistance who is "disabled by drunkenness, debauchery, or disorderly living;" also, "if any member of the society, male or female, is guilty of adultery or fornication, the offending member shall be suspended for so long a time as the members shall see fit, and shall lose all claim on the society for any benefit during the suspension, and shall not be readmitted until clear and satisfactory evidence is given of penitence." Furthermore, "If any member of the society shall be expelled from the church to which he or she belongs, or shall commit any offence punishable by a magistrate, that member forfeits his membership in the society." Again, the society directly encourages marriage, by "making a present of a young pig to every child born in wedlock, and according as their funds will admit of it, giving

rewards to those married persons living faithfully, or single persons living virtuously, who take a pride in keeping their houses neat and tidy, and their gardens flourishing."

These societies have been more than doubled, both in the number of members and in the annual receipts, since emancipation.

Of the societies connected with the established church, the rector of St. John's thus speaks: "At the beginning of 1834 there were eleven societies, embracing 1602 members. At the beginning of 1835 they numbered 4197; and in 1836 there were 4560 members," *almost quadrupled in two years!*

The societies connected with the Moravian church, have more than doubled, both in members and funds, since emancipation. The funds now amount to \$10,000 per year.

The Wesleyans have four Friendly societies. The largest society, which contained six hundred and fifty members, was organized in the *month of August*, 1834. The last year it had expended £700 currency, and had then in its treasury £600 currency.

Now, be it remembered that the Friendly societies exist solely among the freed negroes, *and that the moneys are raised exclusively among them.* Among whom? A people who are said to be so proverbially improvident, that to emancipate them, would be to abandon them to beggary, nakedness, and starvation;--a people who "cannot take care of themselves;" who "will not work when freed from the fear of the lash;" who "would squander the earnings of the day in debaucheries at night;" who "would never provide for to-morrow for the wants of a family, or for the infirmities of old age." Yea, among *negroes* these things are done; and that, too, where the wages are but one shilling per day--less than sufficient, one would reasonably suppose, to provide daily food.

DAILY MEAL SOCIETY.

The main object of this society is denoted by its name. It supplies a daily meal to those who are otherwise unprovided for. A commodious house had just been completed in the suburbs of the town, capable of lodging a considerable number of beneficiaries. It is designed to shelter those who are diseased, and cannot walk to and fro for their meals. The number now fed at

this house is from eighty to a hundred. The diseased, who live at the dispensary, are mostly those who are afflicted with the elephantiasis, by which they are rendered entirely helpless. Medical aid is supplied free of expense. It is worthy of remark, that there is no *public poor-house* in Antigua,--a proof of the industry and prosperity of the emancipated people.

DISTRESSED FEMALES' FRIEND SOCIETY.

This is a society in St. John's: there is also a similar one, called the Female Refuge Society, at English Harbor. Both these societies were established and are conducted by colored ladies. They are designed to promote two objects: the support of destitute aged females of color, and the rescue of poor young colored females from vice. The necessity for special efforts for the first object, arose out of the fact, that the colored people were allowed no parochial aid whatever, though they were required to pay their parochial taxes; hence, the support of their own poor devolved upon themselves. The demand for vigorous action in behalf of the young, grew out of the prevailing licentiousness of slave-holding times. The society in St. John's has been in existence since 1815. It has a large and commodious asylum, and an annual income, by subscriptions, of £350, currency. This society, and the Female Refuge Society established at English Harbor, have been instrumental in effecting a great reform in the morals of females, and particularly in exciting reprobation against that horrid traffic--the sale of girls by their mothers for purposes of lust. We were told of a number of cases in which the society in St. John's had rescued young females from impending ruin. Many members of the society itself, look to it as the guardian of their orphanage. Among other cases related to us, was that of a lovely girl of fifteen, who was bartered away to a planter by her mother, a dissolute woman. The planter was to give her a quantity of cloth to the value of £80 currency, and two young slaves; he was also to give the grandmother, for her interest in the girl, *one gallon of rum!* The night was appointed, and a gig in waiting to take away the victim, when a female friend was made acquainted with the plot, just in time to save the girl by removing her to her own house. The mother was infuriated, and endeavored to get her back, but the girl had occasionally attended a Sabbath school, where she imbibed principles which forbade her to yield even to her mother for such an unhallowed purpose. She was taken before a magistrate, and indentured herself to a milliner for two years. The mother made an attempt

to regain her, and was assisted by some whites with money to commence a suit for that purpose. The lady who defended her was accordingly prosecuted, and the whole case became notorious. The prosecutors were foiled. At the close of her apprenticeship, the young woman was married to a highly respectable colored gentleman, now resident in St. John's. The notoriety which was given to the above case had a happy effect. It brought the society and its object more fully before the public, and the contributions for its support greatly increased. Those for whose benefit the asylum was opened, heard of it, and came begging to be received.

This society is a signal evidence that the colored people neither lack the ability to devise, nor the hearts to cherish, nor the zeal to execute plans of enlarged benevolence and mercy.

The Juvenile Association, too, of which we gave some account in describing its anniversary, originated with the colored people, and furnishes additional evidence of the talents and charities of that class of the community. Besides the societies already enumerated, there are two associations connected with the Established Church, called the "Society for the Promotion of Christian Knowledge," and the "Branch Association of the Society for Advancing the Christian Faith in the British West Indies, &c." These societies are also designed chiefly for the benefit of the negro population.

EDUCATION.

Our inquiries under this head were directed to three principal points--first, The extent to which education prevailed previous to emancipation; second, The improvements introduced since; and third, The comparative capacity of negroes for receiving instruction.

Being providentially in the island at the season of the year when all the schools have their annual examinations, we enjoyed the most favorable opportunities for procuring intelligence on the subject of education. From various quarters we received invitations to attend school examinations. We visited the schools at Parham, Willoughby Bay, Newfield; Cedar Hall, Grace Bay, Fitch's Creek, and others: besides visiting the parochial school, the rectory school, the Moravian and Wesleyan schools, in St. John's. All

the schools, save those in St. John's, were almost exclusively composed of emancipated children from the estates.

VISIT TO THE PAROCHIAL SCHOOL.

At the invitation of the Governor, we accompanied him to the annual examination of the parochial school, in St. John's, under the superintendence of the Episcopal church. It has increased greatly, both in scholars and efficiency, since emancipation, and contributions are made to its support by the parents whose children receive its benefits. We found one hundred and fifty children, of both sexes, assembled in the society's rooms. There was every color present, from the deepest hue of the Ethiopian, to the faintest shadowing of brown.

The boys constituting the first class, to the number of fifty, were called up. They read with much fluency and distinctness, equalling white boys of the same age anywhere. After reading, various questions were put to them by the Archdeacon, which they answered with promptness and accuracy. Words were promiscuously selected from the chapter they had read, and every one was promptly spelled. The catechism was the next exercise, and they manifested a thorough acquaintance with its contents.

Our attention was particularly called to the examination in arithmetic. Many of the children solved questions readily in the compound rules, and several of them in Practice, giving the different parts of the pound, shilling, and penny, used in that rule, and all the whys and wherefores of the thing, with great promptness. One lad, only ten years of age, whose attendance had been very irregular on account of being employed in learning a trade, performed intricate examples in Practice, with a facility worthy the counting-house desk. We put several inquiries on different parts of the process, in order to test their real knowledge, to which we always received clear answers.

The girls were then examined in the same studies and exercises, except arithmetic, and displayed the same gratifying proficiency. They also presented specimens of needlework and strawbraiding, which the ladies, on whose better judgment we depend, pronounced very creditable. We noticed several girls much older than the others, who had made much less advance in their studies, and on inquiry learned, that they had been members of the

school but a short time, having formerly been employed to wield the heavy hoe in the cane field. The parents are very desirous to give their children education, and make many sacrifices for that purpose. Many who are field-laborers in the country, receiving their shilling a day, have sent their children to reside with some relations or friends in town, for the purpose of giving them the benefits of this school. Several such children were pointed out to us. The increase of female scholars during the first year of emancipation, was in this school alone, about eighty.

For our gratification, the Governor requested that all the children emancipated on the *first of August*, might be called up and placed on our side of the room. Nearly one hundred children, of both sexes, who two years ago were *slaves*, now stood up before us FREE. We noticed one little girl among the rest, about ten years old, who bore not the least tinge of color. Her hair was straight and light, and her face had that mingling of vermilion and white, which Americans seem to consider, not only the nonpareil standard of beauty, but the immaculate test of human rights. At her side was another with the deepest hue of the native African. There were high emotions on the countenances of those redeemed ones, when we spoke to them of emancipation. The undying principle of freedom living and burning in the soul of the most degraded slave, like lamps amid the darkness of eastern sepulchres, was kindling up brilliantly within them, young as they were, and flashing in smiles upon their ebon faces.

The Governor made a few remarks, in which he gave some good advice, and expressed himself highly pleased with the appearance and proficiency of the school.

His excellency remarked to us in a tone of pleasantry, "You see, gentlemen, these children have *souls*."

During the progress of the examination; he said to us, "You perceive that it is our policy to give these children every chance to make *men* of themselves. We look upon them as our *future citizens*." He had no doubt that the rising generation would assume a position in society above the contempt or opposition of the whites.

INFANT SCHOOLS IN THE COUNTRY.

We had the pleasure of attending one of the infant schools in the vicinity of Parham, on the east side of the island. Having been invited by a planter, who kindly sent his horse and carriage for our conveyance, to call and take breakfast with him on our way, we drove out early in the morning.

While we were walking about the estate, our attention was arrested by distant singing. As we cast our eyes up a road crossing the estate, we discovered a party of children! They were about twenty in number, and were marching hand in hand to the music of their infant voices. They were children from a neighboring estate, on their way to the examination at Parham, and were singing the hymns which they had learned at school. All had their Testaments in their hands, and seemed right merry-hearted.

We were received at the gate of the chapel by the Wesleyan missionary located in this district, a highly respectable and intelligent colored man, who was ten years since a *slave*. He gave us a cordial welcome, and conducted us to the chapel, where we found the children, to the number of *four hundred*, assembled, and the examination already commenced. There were six schools present, representing about twenty estates, and arranged under their respective teachers. The ages of the pupils were from three to ten or twelve. They were all, with the exception of two or three, the children of emancipated slaves.

They came up by classes to the superintendent's desk, where they read and were examined. They read correctly; some of them too, who had been in school only a few months, in any portion of the New Testament selected for them. By request of the superintendent, we put several inquiries to them, which they answered in a way which showed that they *thought*. They manifested an acquaintance with the Bible and the use of language which was truly surprising. It was delightful to see so many tiny beings stand around you, dressed in their tidy gowns and frocks, with their bright morning faces, and read with the self-composure of manhood, any passage chosen for them. They all, large and small, bore in their hands the charter of their freedom, the book by the influence of which they received all the privileges they were enjoying. On the cover of each was stamped in large capitals--"PRESENTED BY THE BRITISH AND FOREIGN BIBLE SOCIETY, IN COMMEMORATION OF THE FIRST OF AUGUST, 1834."

At the close of the examination, the rewards, consisting of books, work-bags, &c. &c., chiefly sent by a society of females in England, were distributed. It was impossible to repress the effervescence of the little expectants. As a little one four years old came up for her reward, the superintendent said to her--"Well, little Becky, what do you want?" "Me wants a bag," said Becky, "and me wants a pin-cushion, and me wants a little book." Becky's desires were large, but being a good girl, she was gratified. Occasionally the girls were left to choose between a book and a work-bag, and although the bag might be gaudy and tempting, they invariably took the book.

The teachers were all but one blacks, and were formerly slaves. They are very devoted and faithful, but are ill-qualified for their duties, having obtained all the learning they possess in the Sabbath school. They are all pious, and exert a harpy influence on the morals of their pupils.

The number of scholars has very greatly increased since emancipation, and their morals have essentially improved. Instances of falsehood and theft, which at first were fearfully frequent and bold, have much lessened. They begin to have a regard for *character*. Their sense of right and wrong is enlightened, and their power of resisting temptation, and adhering to right, manifestly increased.

On the whole, we know not where we have looked on a more delightful scene. To stand in front of the pulpit and look around on a multitude of negro children, gathered from the sordid huts into which slavery had carried ignorance and misery--to see them coming up, with their teachers of the same proscribed hue, to hear them read the Bible, answer with readiness the questions of their superintendent, and lift up together their songs of infant praise, and then to remember that two years ago these four hundred children were *slaves*, and still more to remember that in our own country, boasting its republicanism and Christian institutions, there are thousands of just such children under the yoke and scourge, in utter heathenism, the victims of tyrannic *law* or of more tyrannic public opinion--caused the heart to swell with emotions unutterable. There were as many intelligent countenances, and as much activity and sprightliness, as we ever saw among an equal number of children anywhere. The correctness of their reading, the pertinence of their replies, the general proofs of talent which they showed

through all the exercises, evinced that they are none inferior to the children of their white oppressors.

After singing a hymn they all kneeled down, and the school closed with a prayer and benediction. They continued singing as they retired from the house, and long after they had parted on their different ways home, their voices swelled on the breeze at a distance as the little parties from the estates chanted on their way the songs of the school room.

WILLOUGHBY BAY EXAMINATION.

When we entered the school house at Willoughby Bay, which is capable of containing a thousand persons, a low murmur, like the notes of preparation, ran over the multitude. One school came in after we arrived, marching in regular file, with their teacher, a negro man, at their head, and their *standard bearer* following; next, a sable girl with a box of Testaments on her head. The whole number of children was three hundred and fifty. The male division was first called out, and marched several times around the room, singing and keeping a regular step. After several rounds, they came to a halt, filing off and forming into ranks four rows deep--in quarter-circle shape. The music still continuing, the girls sallied forth, went through the same evolutions, and finally formed in rows corresponding with those of the boys, so as to compose with the latter a semicircle.

The schools were successively examined in spelling, reading, writing, cyphering, &c., after the manner already detailed. In most respects they showed equal proficiency with the children of Parham; and in reading the Testament, their accuracy was even greater. In looking over the writing, several "incendiary" copies caught our eyes. One was, "*Masters, give unto your servants that which is just and equal.*" Another, "*If I neglect the cause of my servant, what shall I do when I appear before my Master!*" A few years ago, *had children been permitted to write at all*, one such copy as the above would have exploded the school, and perchance sent the teacher to jail for sedition. But now, thanks to God! the Negro children of Antigua are taught liberty from their Bibles, from their song books, and from their *copy books* too; they read of liberty, they sing of it, and they write of it; they chant to liberty in their school rooms, and they resume the strains on their

homeward way, till every rustling lime-grove, and waving cane-field, is alive with their notes, and every hillock and dell rings with "free" echoes.

The girls, in their turn, pressed around us with the liveliest eagerness to display their little pieces of needle-work. Some had samplers marked with letters and devices in *vari*-colored silk. Others showed specimens of stitching; while the little ones held up their rude attempts at hemming handkerchiefs, aprons, and so on.

During the exercises we spoke to several elderly women, who were present to witness the scene. They were laborers on the estates, but having children in the school, they had put on their Sunday dresses, and "come to see." We spoke to one, of the privileges which the children were enjoying, since freedom. Her eyes filled, and she exclaimed, "Yes, massa, we do tank de good Lord for bring de free--never can be too tankful." She said she had seven children present, and it made her feel happy to know that they were learning to read. Another woman said, when she heard the children reading so finely, she wanted to "take de word's out of *da mouts* and put em in her own." In the morning, when she first entered the school house, she felt quite sick, but all the pleasant things she saw and heard, had made her well, and she added, "I tell you, me massa, it do my old heart good to come here." Another aged woman, who had grand-children in the school, said, when she saw what advantages the children enjoyed, she almost cried to think she was not a child too. Besides these there were a number of adult men and women, whom curiosity or parental solicitude had brought together, and they were thronging about the windows and doors witnessing the various exercises with the deepest interest. Among the rest was one old patriarch, who, anxious to bear some part however humble in the exercises of the occasion, walked to and fro among the children, with a six feet pole in his hand, to keep order.

These schools, and those examined at Parham, are under the general supervision of Mr. Charles Thwaites, an indefatigable and long tried friend of the negroes.

We here insert a valuable communication which we received from Mr. T. in reply to several queries addressed to him. It will give further information relative to the schools.

Mr. Charles Thwaites' Replies to Queries on Education in Antigua.

1. What has been your business for some years past in Antigua?

A superintendent of schools, and catechist to the negroes.

2. How long have you been engaged in this business?

Twenty-four years. The first four years engaged gratuitously, ten years employed by the Church Missionary Society, and since, by the Wesleyan Missionary Society.

3. How many schools have you under your charge?

Sunday schools, (including all belonging to the Wesleyan Missionary Society,) eight, with 1850 scholars; day schools, seventeen with 1250 scholars; night schools on twenty-six estates, 336 scholars. The total number of scholars under instruction is about 3500.

4. Are the scholars principally the children who were emancipated in August, 1834?

Yes, except the children in St. John's, most of whom were free before.

5. Are the teachers negroes, colored, or white?

One white, four colored, and sixteen black.[\[A\]](#)

[Footnote [A](#): This number includes only salaried teachers, and not the gratuitous.]

6. How many of the teachers were slaves prior to the first of August, 1834?

Thirteen.

7. What were their opportunities for learning?

The Sunday and night schools; and they have much improved themselves since they have been in their present employment.

8. What are their qualifications for teaching, as to education, religion, zeal, perseverance, &c.?

The white and two of the colored teachers, I presume, are well calculated, in all respects, to carry on a school in the ablest manner. The others are deficient in education, but are zealous, and very persevering.

9. What are the wages of these teachers?

The teachers' pay is, some four, and some three dollars per month. This sum is far too small, and would be greater if the funds were sufficient.

10. How and by whom are the expenses of superintendent, teachers, and schools defrayed?

The superintendent's salary, &c., is paid by the Wesleyan Missionary Society. The expenses of teachers and schools are defrayed by charitable societies and friends in England, particularly the Negro Education Society, which grants 50l. sterling per annum towards this object, and pays the rent of the Church Missionary Society's premises in Willoughby Bay for use of the schools. About 46l. sterling per annum is also raised from the children; each child taught writing and needle-work, pays 1-1/2d. sterling per week.

11. Is it your opinion that the negro children are as ready to receive instruction as white children?

Yes, perfectly so.

12. Do parents manifest interest in the education of their children?

They do. Some of the parents are, however, still very ignorant, and are not aware how much their children lose by irregular attendance at the schools.

13. Have there been many instances of *theft* among the scholars?

Not more than among any other class of children.

RESULTS.

Besides an attendance upon the various schools, we procured specific information from teachers, missionaries, planters, and others, with regard to the past and present state of education, and the weight of testimony was to the following effect:

First, That education was by no means extensive previous to emancipation. The testimony of one planter was, that not a *tenth part* of the present adult population knew the letters of the alphabet. Other planters, and some missionaries, thought the proportion might be somewhat larger; but all agreed that it was very small. The testimony of the venerable Mr. Newby, the oldest Moravian missionary in the island, was, that such was the opposition among the planters, it was impossible to teach the slaves, excepting by night, secretly. Mr. Thwaites informed us that the children were not allowed to attend day school after they were six years old. All the instruction they obtained after that age, was got at night--a very unsuitable time to study, for those who worked all day under an exhausting sun. It is manifest that the instruction received under six years of age, would soon be effaced by the incessant toil of subsequent life. The account given in a former connection of the adult school under the charge of Mr. Morrish, at Newfield, shows most clearly the past inattention to education. And yet Mr. M. stated that his school was a *fair specimen of the intelligence of the negroes generally*. One more evidence in point is the acknowledged ignorance of Mr. Thwaites' teachers. After searching through the whole freed population for a dozen suitable teachers of children. Mr. T. could not find even that number who could *read well*. Many children in the schools of six years old read better than their teachers.

We must not be understood to intimate that up to the period of the Emancipation, the planters utterly prohibited the education of their slaves. Public sentiment had undergone some change previous to that event. When the public opinion of England began to be awakened against slavery, the planters were indured, for peace sake, to *tolerate* education to some extent; though they cannot be said to have *encouraged* it until after Emancipation. This is the substance of the statements made to us. Hence it appears that when the active opposition of the planters to education ceased, it was succeeded by a general indifference, but little less discouraging. We of course speak of the planters as a body; there were some honorable exceptions.

Second, Education has become very extensive *since* emancipation. There are probably not less than *six thousand* children who now enjoy daily instruction. These are of all ages under twelve. All classes feel an interest in *knowledge*. While the schools previously established are flourishing in

newness of life, additional ones are springing up in every quarter. Sabbath schools, adult and infant schools, day and evening schools, are all crowded. A teacher in a Sabbath school in St. John's informed us, that the increase in that school immediately after emancipation was so sudden and great, that he could compare it to nothing but the rising of the mercury when the thermometer is removed *out of the shade into the sun*.

We learned that the Bible was the principal book taught in all the schools throughout the island. As soon as the children have learned to read, the Bible is put into their hands. They not only read it, but commit to memory portions of it every day:--the first lesson in the morning is an examination on some passage of scripture. We have never seen, even among Sabbath school children, a better acquaintance with the characters and events recorded in the Old and New Testaments, than among the negro children in Antigua. Those passages which inculcate *obedience to law* are strongly enforced; and the prohibitions against stealing, lying, cheating, idleness, &c., are reiterated day and night.

Great attention is paid to *singing* in all the schools.

The songs which they usually sung, embraced such topics as Love to God--the presence of God--obedience to parents--friendship for brothers and sisters and schoolmates--love of school--the sinfulness of sloth, of lying, and of stealing. We quote the following hymn as a specimen of the subjects which are introduced into their songs: often were we greeted with this sweet hymn, while visiting the different schools throughout the island.

BROTHERLY LOVE.

CHORUS.

We're all brothers, sisters, brothers,
We're sisters and brothers,
And heaven is our home.
We're all brothers, sisters, brothers,
We're sisters and brothers,
And heaven is our home.

The God of heaven is pleased to see
That little children all agree;
And will not slight the praise they bring,
When loving children join to sing:
We're all brothers, sisters, brothers, &c.

For love and kindness please him more
Than if we gave him all our store;
And children here, who dwell in love,
Are like his happy ones above.
We're all brothers, sisters, brothers, &c.

The gentle child that tries to please,
That hates to quarrel, fret, and teaze,
And would not say an angry word--
That child is pleasing to the Lord.
We're all brothers, sisters, brothers, &c.

O God! forgive, whenever we
Forget thy will, and disagree;
And grant that each of us, may find
The sweet delight of being kind.
We're all brothers, sisters, brothers, &c.

We were convinced that the negroes were as capable of receiving instruction as any people in the world. The testimony of teachers, missionaries, clergymen, and planters, was uniform on this point.

Said one planter of age and long experience on the island, "The negroes are as capable of culture as any people on earth. *Color makes no difference in minds*. It is slavery alone that has degraded the negro."

Another planter, by way of replying to our inquiry on this subject, sent for a negro child of five years, who read with great fluency in any part of the Testament to which we turned her. "Now," said the gentleman, "I should be ashamed to let you hear my own son, of the same age with that little girl, read after her." We put the following questions to the Wesleyan missionaries: "Are the negroes as *apt to learn*, as other people in similar

circumstances?" Their written reply was this: "We think they are; the same diversified qualities of intellect appear among them, as among other people." We put the same question to the Moravian missionaries, to the clergymen, and to the teachers of each denomination, some of whom, having taught schools in England, were well qualified to judge between the European children and the negro children; and we uniformly received substantially the same answer. Such, however, was the air of surprise with which our question was often received, that it required some courage to repeat it. Sometimes it excited a smile, as though we could not be serious in the inquiry. And indeed we seldom got a direct and explicit answer, without previously stating by way of explanation that we had no doubts of our own, but wished to remove those extensively entertained among our countrymen. After all, we were scarcely credited in Antigua. Such cases as the following were common in every school: children of four and five years old reading the Bible; children beginning in their A, B, C's, and learning to read in four months; children of five and six, answering a variety of questions on the historical parts of the Old Testament; children but a little older, displaying fine specimens of penmanship, performing sums in the compound rules, and running over the multiplication table, and the pound, shilling, and pence table, without mistake.

We were grieved to find that most of the teachers employed in the instruction of the children, were exceedingly unfit for the work. They are very ignorant themselves, and have but little skill in the management of children. This however is a necessary evil. The emancipated negroes feel a great anxiety for the education of their children. They encourage them to go to school, and they labor to support them, while they have strong temptation to detain them at home to work. They also pay a small sum every week for the maintenance of the schools.

In conclusion, we would observe, that one of the prominent features of *regenerated* Antigua, is its *education*. An intelligent religion, and a religious education, are the twin glories of this emancipated colony. It is comment enough upon the difference between slavery and freedom, that the same agents which are deprecated as the destroyers of the one, are cherished as the defenders of the other.

Before entering upon a detail of the testimony which bears more directly upon slavery in America, we deem it proper to consider the inquiry.

"What is the amount of freedom in Antigua, as regulated by law?"

1st. The people are entirely free from the whip, and from all compulsory control of the master.

2d. They can change employers whenever they become dissatisfied with their situation, by previously giving a month's notice.

3d. They have the right of trial by jury in all cases of a serious nature, while for small offences, the magistrate's court is open. They may have legal redress for any wrong or violence inflicted by their employers.

4th. Parents have the entire control of their children. The planter cannot in any way interfere with them. The parents have the whole charge of their support.

5th. By an express provision of the legislature, it was made obligatory upon every planter to support all the superannuated, infirm, or diseased on the estate, *who were such at this time of emancipation*. Those who have become so since 1834, fall upon the hands of their relatives for maintenance.

6th. The amount of wages is not determined by law. By a general understanding among the planters, the rate is at present fixed at a shilling per day, or a little more than fifty cents per week, counting five working days. This matter is wisely left to be regulated by the character of the seasons, and the mutual agreement of the parties concerned. As the island is suffering rather from a paucity of laborers, than otherwise, labor must in good seasons command good wages. The present rate of wages is extremely low, though it is made barely tolerable by the additional perquisites which the people enjoy. They have their houses rent free, and in connection with them small premises forty feet square, suitable for gardens, and for raising poultry, and pigs, &c.; for which they always find a ready market. Moreover, they are burthened with no taxes whatever; and added to this, they are supplied with medical attendance at the expense of the estates.

7th. The master is authorized in case of neglect of work, or turning out late in the morning, or entire absence from labor, to reduce the wages, or

withhold them for a time, not exceeding a week.

8th. The agricultural laborers may leave the field whenever they choose, (provided they give a month's previous notice,) and engage in any other business; or they may purchase land and become cultivators themselves, though in either case they are of course liable to forfeit their houses on the estates.

9th. They may leave the island, if they choose, and seek their fortunes in any other part of the world, by making provision for their near relatives left behind. This privilege has been lately tested by the emigration of some of the negroes to Demerara. The authorities of the island became alarmed lest they should lose too many of the laboring population, and the question was under discussion, at the time we were in Antigua, whether it would not be lawful to prohibit the emigration. It was settled, however, that such a measure would be illegal, and the planters were left to the alternative of either being abandoned by their negroes, or of securing their continuance by adding to their comforts and treating them kindly.

10. The right of suffrage, and eligibility to office are subject to no restrictions, save the single one of property, which is the same with all colors. The property qualification, however, is so great, as effectually to exclude the whole agricultural negro population for many years.

11th. *The main constabulary force is composed of emancipated negroes, living on the estates.* One or two trust-worthy men on each estate are empowered with the authority of constables in relation to the people on the same estate, and much reliance is placed upon these men, to preserve order and to bring offenders to trial.

12th. A body of police has been established, whose duty it is to arrest all disorderly or riotous persons, to repair to the estates in case of trouble, and co-operate with the constables, in arraigning all persons charged with the violation of law.

13th. The punishment for slight offences, such as stealing sugar-canes from the field, is confinement in the house of correction, or being sentenced to the tread-mill, for any period from three days to three months. The

punishment for burglary, and other high offences, is solitary confinement in chains, or transportation for life to Botany Bay.

Such are the main features in the statutes, regulating the freedom of the emancipated population of Antigua. It will be seen that there is no enactment which materially modifies, or unduly restrains, the liberty of the subject. There are no secret reservations or postscript provisoes, which nullify the boon of freedom. Not only is slavery utterly abolished, but all its appendages are scattered to the winds; and a system of impartial laws secures justice to all, of every color and condition.

The measure of success which has crowned the experiment of emancipation in Antigua--an experiment tried under so many adverse circumstances, and with comparatively few local advantages--is highly encouraging to slaveholders in our country. It must be evident that the balance of advantages between the situation of Antigua and that of the South, is *decidedly in favor of the latter*. The South has her resident proprietors, her resources of wealth, talent, and enterprise, and her preponderance of white population; she also enjoys a regularity of seasons, but rarely disturbed by desolating droughts, a bracing climate, which imparts energy and activity to her laboring population, and comparatively numerous wants to stimulate and press the laborer up to the *working mark*; she has close by her side the example of a free country, whose superior progress in internal improvements, wealth, the arts and sciences, morals and religion, all ocular demonstration to her of her own wretched policy, and a moving appeal in favor of abolition; and above all, she has the opportunity of choosing her own mode, and of ensuring all the blessings of a *voluntary and peaceable manumission*, while the energies, the resources, the sympathies, and the prayers of the North, stand pledged to her assistance.

* * * * *

CHAPTER III.

FACTS AND TESTIMONY.

We have reserved the mass of facts and testimony, bearing immediately upon slavery in America, in order that we might present them together in a condensed furor, under distinct heads. These heads, it will be perceived, consist chiefly of propositions which are warmly contested in our country. Will the reader examine these principles in the light of facts? Will the candid of our countrymen--whatever opinions they may hitherto have entertained on this subject--hear the concurrent testimony of numerous planters, legislators, lawyers, physicians, and merchants, who have until three years past been wedded to slavery by birth, education, prejudice, associations, and supposed interest, but who have since been divorced from all connection with the system?

In most cases we shall give the names, the stations, and business of our witnesses; in a few instances, in which we were requested to withhold the name, we shall state such circumstances as will serve to show the standing and competency of the individuals. If the reader should find in what follows, very little testimony unfavorable to emancipation, he may know the reason to be, that little was to be gleaned from any part of Antigua. Indeed, we may say that, with very few exceptions, the sentiments here recorded as coming from individuals, are really the sentiments of the whole community. There is no such thing known in Antigua as an *opposing, disaffected party*. So complete and thorough has been the change in public opinion, that it would be now *disreputable* to speak against emancipation.

FIRST PROPOSITION.--The transition from slavery to freedom is represented as a greet revolution, by which a prodigious change was effected in *the condition of the negroes*.

In conversation with us, the planters often spoke of the greatness and suddenness of the change. Said Mr. Barnard, of Green Castle estate, "The transition from slavery to freedom, was like passing suddenly out of a dark dungeon into the light of the sun."

R.B. Eldridge, Esq., a member of the assembly, remarked, that, "There never had been in the history of the world so great and instantaneous a change in the condition of so large a body of people."

The Honorable Nicholas Nugent, speaker of the house of assembly, and proprietor, said, "There never was so sudden a transition from one state to another, by so large a body of people. When the clock began to strike the hour of twelve on the last night of July, 1834, the negroes of Antigua were *slaves*--when it ceased they were all *freemen*! It was a stupendous change," he said, "and it was one of the sublimest spectacles ever witnessed, to see the subjects of the change engaged at the very moment it occurred, in worshipping God."

These, and very many similar ones, were the spontaneous expressions of men *who had long contended against the change* of which they spoke.

It is exceedingly difficult to make slaveholders see that there is any material difference between slavery and freedom; but when they have once renounced slavery, they *will magnify this distinction* more than any other class of men.

SECOND PROPOSITION.--Emancipation in Antigua was the result of political and pecuniary considerations merely.

Abolition was seen to be inevitable, and there were but two courses left to the colonists--to adopt the apprenticeship system, or immediate emancipation. Motives of convenience led them to choose the latter. Considerations of general philanthropy, of human rights, and of the sinfulness of slavery, were scarcely so much as thought of.

Some time previous to the abolition of slavery, a meeting of the influential men of the island was called in St. John's, to memorialize parliament against the measure of abolition. When the meeting convened, the Hon. Samuel O. Baijer, who had been the champion of the opposition, was called upon to propose a plan of procedure. To the consternation of the pro-slavery meeting, their leader arose and spoke to the following effect:--"Gentlemen, my previous sentiments on this subject are well known to you all; be not surprised to learn that they have undergone an entire change, I have not altered my views without mature deliberation. I have been making

calculations with regard to the probable results of emancipation, and *I have ascertained beyond a doubt, that I can cultivate my estate at least one third cheaper by free labor than by slave labor.*" After Mr. B. had finished his remarks, Mr. S. Shands, member of assembly, and a wealthy proprietor, observed that he entertained precisely the same views with those just expressed; but he thought that the honorable gentleman had been unwise in uttering them in so public a manner; "for," said he, "should these sentiments reach the ear of parliament, as coming from us, *it might induce them to withhold the compensation.*"

Col. Edwards, member of the assembly, then arose and said, that he had long been opposed to slavery, but he had not *dared to avow his sentiments.*

As might be supposed, the meeting adjourned without effecting the object for which it was convened.

When the question came before the colonial assembly, similar discussions ensued, and finally the bill for immediate emancipation passed both bodies *unanimously*. It was an evidence of the spirit of selfish expediency, which prompted the whole procedure, that they clogged the emancipation bill with the proviso that a certain governmental tax on exports, called the four and a half per cent tax^[A], should be repealed. Thus clogged, the bill was sent home for sanction, but it was rejected by parliament, and sent back with instructions, that before it could receive his majesty's seal, it must appear wholly unencumbered with extraneous provisoes. This was a great disappointment to the legislature, and it so chagrined them that very many actually withdrew their support from the bill for emancipation, which passed finally in the assembly only by the casting vote of the speaker.

[Footnote ^A: We subjoin the following brief history of the four and a half per cent. tax, which we procured from the speaker of the assembly. In the rein of Charles II., Antigua was conquered by the French, and the inhabitants were forced to swear allegiance to the French government. In a very short time the French were driven off the island and the English again took possession of it. It was then declared, by order of the king, that as the people had, by swearing allegiance to another government, forfeited the protection of the British government, and all title to their lands, they should not again receive either, except on condition of paying to the king a duty of

four and a half per cent on every article exported from the island--and that they were to do in *perpetuity*. To this hard condition they were obliged to submit, and they have groaned under the onerous duty ever since. On every occasion, which offered any hope, they have sought the repeal of the tax, but have uniformly been defeated. When they saw that the abolition question was coming to a crisis, they resolved to make a last effort for the repeal of the four and a half percent duty. They therefore adopted immediate emancipation, and then, covered as they were, with the laurels of so magnanimous an act, they presented to parliament their cherished object. The defeat was a humiliating one, and it produced such a reaction in the island, as well nigh led to the rescinding of the abolition bill.]

The verbal and written statements of numerous planters also confirm the declaration that emancipation was a measure solely of selfish policy.

Said Mr. Bernard, of Green Castle estate "Emancipation was preferred to apprenticeship, because it was attended with less trouble, and left the planters independent, instead of being saddled with a legion of stipendiary magistrates."

Said Dr. Daniell, member of the council, and proprietor--"The apprenticeship was rejected by us solely from motives of policy. We did not wish to be annoyed with stipendiary magistrates."

Said Hon. N. Nugent--"We wished to let ourselves down in the easiest manner possible; *therefore* we chose immediate freedom in preference to the apprenticeship."

"Emancipation was preferred to apprenticeship, because of the inevitable and endless perplexities connected with the latter system."--*David Cranstoun, Esq., colonial magistrate and planter.*

"It is not pretended that emancipation was produced by the influence of religious considerations. It was a measure of mere convenience and interest."--*A Moravian Missionary.*

The following testimony is extracted from a letter addressed to us by a highly respectable merchant of St. John's--a gentleman of long experience on the island, and now agent for several estates. "Emancipation was an act of mere policy, adopted as *the safest and most economic* measure."

Our last item of testimony under this head is from a written statement by the Hon. N. Nugent, speaker of the assembly, at the time of emancipation. His remarks on this subject, although long, we are sure will be read with interest. Alluding to the adoption of immediate emancipation in preference to the apprenticeship, he observes:--

"The reasons and considerations which led to this step were various, of course impressing the minds of different individuals in different degrees. As slave emancipation could not be averted, and must inevitably take place very shortly, it was better to meet the crisis at once, than to have it hanging over our heads for six years, with all its harassing doubts and anxieties; better to give an air of grace to that which would be ultimately unavoidable; the slaves should rather have a motive of gratitude and kind reciprocation, than to feel, on being declared free, that their emancipation could neither be withheld nor retarded by their owners. The projected apprenticeship, while it destroyed the means of an instant coercion in a state of involuntary labor, equally withdrew or neutralized all those urgent motives which constrain to industrious exertion in the case of freemen. It abstracted from the master, in a state of things then barely remunerative, one fourth of the time and labor required in cultivation, and gave it to the servant, while it compelled the master to supply the same allowances as before. With many irksome restraints, conditions, and responsibilities imposed on the master, it had no equivalent advantages. There appeared no reason, in short, why general emancipation would not do as well in 1834 as in 1840. Finally, a strong conviction existed that from peculiarity of climate and soil, the physical wants and necessities of the peasantry would compel them to labor for their subsistence, to seek employment and wages from the proprietors of the soil; and if the *transformation* could be safely and quietly brought about, that the *free* system might be cheaper and more profitable than the other."

The general testimony of planters, missionaries, clergymen, merchants, and others, was in confirmation of the same truth.

There is little reason to believe that the views of the colonists on this subject have subsequently undergone much change. We did not hear, excepting occasionally among the missionaries and clergy, the slightest insinuation thrown out that *slavery was sinful*; that the slaves had a right to freedom, or that it would have been wrong to have continued them in

bondage. The *politics* of anti-slavery the Antiguans are exceedingly well versed in, but of its *religion*, they seem to feel but little. They seem never to have examined slavery in its moral relations; never to have perceived its monstrous violations of right and its impious trappings upon God and man. The Antigua planters, it would appear, have yet to repent of the sin of slaveholding.

If the results of an emancipation so destitute of *principle*, so purely selfish, could produce such general satisfaction, and be followed by such happy results, it warrants us in anticipating still more decided and unmingled blessings in the train of a voluntary, conscientious, and religious abolition.

THIRD PROPOSITION.--The *event* of emancipation passed PEACEFULLY. The first of August, 1834, is universally regarded in Antigua, as having presented a most imposing and sublime moral spectacle. It is almost impossible to be in the company of a missionary, a planter, or an emancipated negro, for ten minutes, without hearing some allusion to that occasion. Even at the time of our visit to Antigua, after the lapse of nearly three years, they spoke of the event with an admiration apparently unabated.

For some time previous to the first of August, forebodings of disaster lowered over the island. The day was fixed! Thirty thousand degraded human beings were to be brought forth from the dungeon of slavery and "turned loose on the community!" and this was to be done "in a moment, in the twinkling of an eye."

Gloomy apprehensions were entertained by many of the planters. Some timorous families did not go to bed on the night of the 31st of July; fear drove sleep from their eyes, and they awaited with fluttering pulse the hour of midnight, fearing lest the same bell which sounded the jubilee of the slaves might toll the death knell of the masters.[[A](#)]

[Footnote [A](#): We were informed by a merchant of St. John's, that several American vessels which had lain for weeks in the harbor, weighed anchor on the 31st of July, and made their escape, through actual fear, that the island would be destroyed on the following day. Ere they set sail they earnestly besought our informant to escape from the island, as he valued his life.]

The more intelligent, who understood the disposition of the negroes, and contemplated the natural tendencies of emancipation, through philosophical principles, and to the light of human nature and history, were free from alarm.

To convey to the reader some idea of the manner in which the great crisis passed, we give the substance of several accounts which were related to us in different parts of the island, by those who witnessed them.

The Wesleyans kept "watch-night" in all their chapels on the night of the 31st July. One of the Wesleyan missionaries gave us an account of the watch meeting at the chapel in St. John's. The spacious house was filled with the candidates for liberty. All was animation and eagerness. A mighty chorus of voices swelled the song of expectation and joy, and as they united in prayer, the voice of the leader was drowned in the universal *acclamations* of thanksgiving and praise, and blessing, and honor, and glory, to God, who had come down for their deliverance. In such exercises the evening was spent until the hour of twelve approached. The missionary then proposed that when the clock on the cathedral should begin to strike, the whole congregation should fall upon their knees and receive the boon of freedom in silence. Accordingly, as the loud bell tolled its first note, the immense assembly fell prostrate on their knees. All was silence, save the quivering half-stifled breath of the struggling spirit. The slow notes of the clock fell upon the multitude; peal on peal, peal on peal, rolled over the prostrate throng, in tones of angels' voices, thrilling among the desolate chords and weary heart strings. Scarce had the clock sounded its last note, when the lightning flashed vividly around, and a loud peal of thunder roared along the sky--God's pillar of fire, and trump of jubilee! A moment of profoundest silence passed--then came the *burst*--they broke forth in prayer; they shouted, they sung, "Glory," "alleluia;" they clapped their hands, leaped up, fell down, clasped each other in their free arms, cried, laughed, and went to and fro, tossing upward their unfettered hands; but high above the whole there was a mighty sound which ever and anon swelled up; it was the utterings in broken negro dialect of gratitude to God.

After this gush of excitement had spent itself; and the congregation became calm, the religious exercises were resumed, and the remainder of the night was occupied in singing and prayer, in reading the Bible, and in addresses

from the missionaries explaining the nature of the freedom just received, and exhorting the freed people to be industrious, steady, obedient to the laws, and to show themselves in all things worthy of the high boon which God had conferred upon them.

The first of August came on Friday, and a release was proclaimed from all work until the next Monday. The day was chiefly spent by the great mass of the negroes in the churches and chapels. Thither they flocked "as clouds, and as doves to their windows." The clergy and missionaries throughout the island were actively engaged, seizing the opportunity in order to enlighten the people on all the duties and responsibilities of their new relation, and above all, urging them to the attainment of that higher liberty with which Christ maketh his children free. In every quarter we were assured that the day was like a Sabbath. Work had ceased; the hum of business was still, and noise and tumult were unheard on the streets. Tranquillity pervaded the towns and country. A Sabbath indeed! when the wicked ceased from troubling, and the weary were at rest, and the slave was free from his master! The planters informed us that they went to the chapels where their own people were assembled, greeted them, shook hands with them, and exchanged the most hearty good wishes.

The churches and chapels were thronged all over the island. At Cedar Hall, a Moravian station, the crowd was so great that the minister was obliged to remove the meeting from the chapel to a neighboring grove.

At Grace Hill, another Moravian station, the negroes went to the Missionary on the day before the first of August, and begged that they might be allowed to have a meeting in the chapel at sunrise. It is the usual practice among the Moravians to hold but one sunrise meeting during the year, and that is on the morning of Easter: but as the people besought very earnestly for this special favor on the Easter morning of their freedom, it was granted to them.

Early in the morning they assembled at the chapel. For some time they sat in perfect silence. The missionary then proposed that they should kneel down and sing. The whole audience fell upon their knees, and sung a hymn commencing with the following verse:

"Now let us praise the Lord,
With body, soul and spirit,
Who doth such wondrous things,
Beyond our sense and merit."

The singing was frequently interrupted with the tears and sobbings of the melted people, until finally it was wholly arrested, and a tumult of emotion overwhelmed the congregation.

During the day, repeated meetings were held. At eleven o'clock, the people assembled in vast numbers. There were at least a *thousand* persons around the chapel, who could not get in. For once the house of God suffered violence, and the violent took it by force. After all the services of the day, the people went again to the missionaries in a body, and petitioned to have a meeting in the evening.

At Grace Bay, the people, all dressed in white, assembled in a spacious court in front of the Moravian chapel. They formed a procession and walked arm in arm into the chapel. Similar scenes occurred at all the chapels and at the churches also. We were told by the missionaries that the dress of the negroes on that occasion was uncommonly simple and modest. There was not the least disposition of gaiety.

We were also informed by planters and missionaries in every part of the island, that there was not a single dance known of, either day or night, nor so much as a fiddle played. There were no riotous assemblies, no drunken carousals. It was not in such channels that the excitement of the emancipated flowed. They were as far from dissipation and debauchery, as they were from violence and carnage. GRATITUDE was the absorbing emotion. From the hill-tops, and the valleys, the cry of a disenthralled people went upward like the sound of many waters, "Glory to God, glory to God."

The testimony of the planters corresponds fully with that of the missionaries.

Said R.B. Eldridge, Esq., after speaking of the number emancipated, "Yet this vast body, (30,000,) *glided* out of slavery into freedom with the utmost tranquillity."

Dr. Daniell observed, that after so prodigious a revolution in the condition of the negroes, he expected that some irregularities would ensue; but he had been entirely disappointed. He also said that he anticipated some relaxation from labour during the week following emancipation. But he found his hands in the field early on Monday morning, and not one missing. The same day he received word from another estate, of which he was proprietor,[[A](#)] that the negroes had to a man refused to go to the field. He immediately rode to the estate and found the people standing with their hoes in their hands doing nothing. He accosted them in a friendly manner: "What does this mean, my fellows, that you are not at work this morning?" They immediately replied, "It's not because we don't want to work, massa, but we wanted to see you first and foremost to *know what the bargain would be*." As soon as that matter was settled, the whole body of negroes turned out cheerfully, without a moment's cavil.

[Footnote [A](#): It is not unusual in the West Indies for proprietors to commit their own estates into the hands of managers; and be themselves, the managers of other men's estates.]

Mr. Bourne, of Millar's, informed us that the largest gang he had ever seen in the field on his property, turned out the *week after emancipation*.

Said Hon. N. Nugent, "Nothing could surpass the universal propriety of the negroes' conduct on the first of August, 1834! Never was there a more beautiful and interesting spectacle exhibited, than on that occasion."

FOURTH PROPOSITION.--There has been *since* emancipation, not only *no rebellion in fact*, but NO FEAR OF IT in Antigua.

Proof 1st. The militia were not called out during Christmas holidays. *Before* emancipation, martial law invariably prevailed on the holidays, but the very first Christmas after emancipation, the Governor made a proclamation stating that *in consequence of the abolition of slavery* it was no longer necessary to resort to such a precaution. There has not been a parade of soldiery on any subsequent Christmas.[[B](#)]

[Footnote [B](#): This has been followed by a measure on the part of the Legislature, which is further proof of the same thing. It is "an Act for

amending and further continuing the several Acts at present in force for better organizing and ordering the militia."

The preamble reads thus:

"WHEREAS the abolition of slavery in this island renders it expedient to provide against an unnecessary augmentation of the militia, and the existing laws for better organizing and ordering that local force require amendment."

The following military advertisement also shows the increasing confidence which is felt in the freed men:

"RECRUITS WANTED.--The free men of Antigua are now called on to show their gratitude and loyalty to King WILLIAM, for the benefits he has conferred on them and their families, by volunteering their services as soldiers in his First West India Regiment; in doing which they will acquire a still higher rank in society, by being placed on a footing of perfect equality with the other troops in his Majesty's service, and receive the same bounty, pay, clothing, rations and allowances.

None but young men of good character can be received, and all such will meet with every encouragement by applying at St. John's Barracks, to

H. DOWNIE, *Capt. 1st W.I. Regt. September 15th, 1836.*"]

2d. The uniform declaration of planters and others:

"Previous to emancipation, many persons apprehended violence and bloodshed as the consequence of turning the slaves all loose. But when emancipation took place, all these apprehensions vanished. The sense of personal security is universal. We know not of a single instance in which the negroes have exhibited a *vengeful spirit*."

S. Bourne, Esq., of Millar's.--Watkins, Esq., of Donovan's.

"It has always appeared to me self-evident, that if a man is peaceable while a *slave*, he will be so when a *free man*."

Dr. Ferguson.

"There is no possible danger of personal violence from the slaves; should a foreign power invade our island, I have no doubt that the negroes would, to a man, fight for the planters. I have the utmost confidence in all the people who are under my management; they are my friends, and they consider me their friend."

H. Armstrong, Esq., of Fitch's Creek.

The same gentleman informed us that during slavery, he used frequently to lie sleepless on his bed, thinking about his dangerous situation--a lone white person far away from help, and surrounded by hundreds of savage slaves; and he had spent hours thus, in devising plans of self-defence in case the house should be attacked by the negroes. "If they come," he would say to himself, "and break down the door, and fill my bedroom, what shall I do? It will be useless to fire at them; my only hope is to frighten the superstitious fellows by covering myself with a white sheet, and rushing into the midst of them, crying, 'ghost, ghost.'"

Now Mr. A. sleeps in peace and safety, without conjuring up a ghost to keep guard at his bedside. His bodyguard is a battalion of substantial flesh and blood, made up of those who were once the objects of his nightly terror!

"There has been no instance of personal violence since freedom. Some persons pretended, prior to emancipation, to apprehend disastrous results; but for my part I cannot say that I ever entertained such fears. I could not see any thing which was to instigate negroes to rebellion, *after* they had obtained their liberty. I have not heard of a single case of even *meditated* revenge."

Dr. Daniell, Proprietor, Member of Council, Attorney of six estates, and Manager of Weatherill's.

"One of the blessings of emancipation has been, that it has banished the *fear* of insurrections, incendiarism, &c."

Mr. Favey, Manager of Lavicount's.

"In my extensive intercourse with the people, as missionary, I have never heard of an instance of violence or revenge on the part of the negroes, even where they had been ill-treated during slavery."

Rev. Mr. Morrish, Moravian Missionary.

"Insurrection or revenge is in no case dreaded, not even by those planters who were most cruel in the time of slavery. My family go to sleep every night with the doors unlocked, and we fear neither violence nor robbery."

Hon. N. Nugent.

Again, in a written communication, the same gentleman remarks:--"There is not the slightest feeling of insecurity--quite the contrary. Property is more secure, *for all idea of insurrection is abolished forever.*"

"We have no cause now to fear insurrections; emancipation has freed us from all danger on this score."

David Cranstoun, Esq.

Extract of a letter from a merchant of St. John's who has resided in Antigua more than thirty years:

"There is no sense of personal danger arising from insurrections or conspiracies among the blacks. Serious apprehensions of this nature were formerly entertained; but they gradually died away *during the first year of freedom.*"

We quote the following from a communication addressed to us by a gentleman of long experience in Antigua--now a merchant in St. John's--*James Scotland, Sen., Esq.*

"Disturbances, *insubordinations*, and revelry, have greatly decreased since emancipation; and it is a remarkable fact, that on the day of abolition, which was observed with the solemnity and services of the Sabbath, not an instance of common insolence was experienced from any freed man."

"There is no feeling of insecurity. A stronger proof of this cannot be given than the dispensing, within five months after emancipation, with the Christmas guards, which had been regularly and uninterruptedly kept, for nearly one hundred years--during the whole time of slavery."

"The military has never been called out, but on one occasion, since the abolition, and that was when a certain planter, the most violent enemy of freedom, reported to the Governor that there were strong symptoms of insurrection among his negroes. The story was generally laughed at, and the reporter of it was quite ashamed of his weakness and fears."

"My former occupation, as editor of a newspaper, rendered it necessary for me to make incessant inquiries into the conduct as well as the treatment of the emancipated, and I have *never heard any instance of revenge* for former injuries. The negroes have *quitted* managers who were *harsh or cruel* to them in their bondage, but they removed in a peaceable and orderly manner."

"Our negroes, and I presume other negroes too, are very little less sensible to the force of those motives which lead to the peace, order, and welfare of society, than any other set of people."

"The general conduct of the negroes has been worthy of much praise, especially considering the sudden transition from slavery to unrestricted freedom. Their demeanor is peaceable and orderly."

Ralph Higinbotham, U. S. Consul.

As we mingled with the missionaries, both in town and country, they all bore witness to the security of their persons and families. They, equally with the planters, were surprised that we should make any inquiries about insurrections. A question on this subject generally excited a smile, a look of astonishment, or some exclamation, such as "*Insurrection!* my dear sirs, we do not think of such a thing;" or, "Rebellion indeed! why, what should they rebel for *now*, since they have got their liberty!"

Physicians informed us that they were in the habit of riding into the country at all hours of the night, and though they were constantly passing negroes, both singly and in companies, they never had experienced any rudeness, nor even so much as an insolent word. They could go by night or day, into any

part of the island where their professional duties called them, without the slightest sense of danger.

A residence of nine weeks in the island gave us no small opportunity of testing the reality of its boasted security. The hospitality of planters and missionaries, of which we have recorded so many instances in a previous part of this work, gave us free access to their houses in every part of the island. In many cases we were constrained to spend the night with them, and thus enjoyed, in the intimacies of the domestic circle, and in the unguarded moments of social intercourse, every opportunity of detecting any lurking fears of violence, if such there had been; but we saw no evidence of it, either in the arrangements of the houses or in the conduct of the inmates[[A](#)].

[Footnote [A](#): In addition to the evidence derived from Antigua, we would mention the following fact:

A planter, who is also an attorney, informed us that on the neighboring little island of Barbuda, (which is leased from the English government by Sir Christopher Codrington,) there are five hundred negroes and only *three white men*. The negroes are entirely free, yet the whites continue to live among them without any fear of having their throats cut. The island is cultivated in sugar.--Barbuda is under the government of Antigua, and accordingly the act of entire emancipation extended to that island.]

FIFTH PROPOSITION.--There has been no fear of house breaking, highway robberies, and like misdemeanors, since emancipation. Statements, similar to those adduced under the last head, from planters, and other gentlemen, might be introduced here; but as this proposition is so intimately involved in the foregoing, separate proof is not necessary. The same causes which excite apprehensions of insurrection, produce fears of robberies and other acts of violence; so also the same state of society which establishes security of person, insures the safety of property. Both in town and country we heard gentlemen repeatedly speak of the slight fastenings to their houses. A mere lock, or bolt, was all that secured the outside doors, and they might be burst open with ease, by a single man. In some cases, as has already been intimated, the planters habitually neglect to fasten their doors--so strong is their confidence of safety. We were not a little struck with the

remark of a gentleman in St. John's. He said he had long been desirous to remove to England, his native country, and had slavery continued much longer in Antigua, he certainly should have gone; but *now the security of property was so much greater in Antigua than it was in England*, that he thought it doubtful whether he should ever *venture* to take his family thither.

SIXTH PROPOSITION.--Emancipation is regarded by all classes as a great blessing to the island.

There is not a class, or party, or sect, who do not esteem the abolition of slavery as a *special blessing to them*. The rich, because it relieved them of "property" which was fast becoming a disgrace, as it had always been a vexation and a tax, and because it has emancipated them from the terrors of insurrection, which kept them all their life time subject to bondage. The poor whites--because it lifted from off them the yoke of civil oppression. The free colored population--because it gave the death blow to the prejudice that crushed them, and opened the prospect of social, civil, and political equality with the whites. The *slaves*--because it broke open their dungeon, led them out to liberty, and gave them, in one munificent donation, their wives, their children, their bodies, their souls--every thing!

The following extracts from the journals of the legislature, show the state of feeling existing shortly after emancipation. The first is dated October 30, 1834:

"The Speaker said, that he looked with exultation at the prospect before us. The hand of the Most High was evidently working for us. Could we regard the universal tranquillity, the respectful demeanor of the lower classes, as less than an interposition of Providence? The agricultural and commercial prosperity of the island were absolutely on the advance; and for his part he would not hesitate to purchase estates to-morrow."

The following remark was made in the course of a speech by a member of the council, November 12, 1834:

"Colonel Brown stated, that since emancipation he had never been without a sufficient number of laborers, and he was certain he could obtain as many more to-morrow as he should wish."

The general confidence in the beneficial results of emancipation, has grown stronger with every succeeding year and month. It has been seen that freedom will bear trial; that it will endure, and continue to bring forth fruits of increasing value.

The Governor informed us that "it was *universally admitted*, that emancipation had been a great blessing to the island."

In a company of proprietors and planters, who met us on a certain occasion, among whom were lawyers, magistrates, and members of the council, and of the assembly, the sentiment was distinctly avowed, that emancipation was highly beneficial to the island, and there was not a dissenting opinion.

"Emancipation is working most admirably, especially for the planters. It is infinitely better policy than slavery or the apprenticeship either." --*Dr. Ferguson*.

"Our planters find that freedom answers a far better purpose than slavery ever did. A gentleman, who is attorney for eight estates, assured me that there was no comparison between the benefits and advantages of the two systems."--*Archdeacon Parry*.

"All the planters in my neighborhood (St. Philip's parish) are highly pleased with the operation of the new system."--*Rev. Mr. Jones, Rector of St. Philip's*.

"I do not know of more than one or two planters in the whole island, who do not consider emancipation as a decided advantage to all parties." --*Dr. Daniell*.

That emancipation should be universally regarded as a blessing, is remarkable, when we consider that combination of untoward circumstances which it has been called to encounter--a combination wholly unprecedented in the history of the island. In 1835, the first year of the new system, the colony was visited by one of the most desolating hurricanes which has occurred for many years. In the same year, cultivation was arrested, and the crops greatly reduced, by drought. About the same time, the yellow fever prevailed with fearful mortality. The next year the drought returned, and brooded in terror from March until January, and from January until June:

not only blasting the harvest of '36, but extending its blight over the crops of '37.

Nothing could be better calculated to try the confidence in the new system. Yet we find all classes zealously exonerating emancipation, and in despite of tornado, plague, and wasting, still affirming the blessings and advantages of freedom!

SEVENTH PROPOSITION.--*Free labor* is decidedly LESS EXPENSIVE than *slave labor*. It costs the planter actually less to pay his free laborers daily wages, than it did to maintain his slaves. It will be observed in the testimony which follows, that there is some difference of opinion as to the *precise amount* of reduction in the expenses, which is owing to the various modes of management on different estates, and more particularly, to the fact that some estates raise all their provisions, while others raise none. But as to the fact itself, there can scarcely be said to be any dispute among the planters. There was one class of planters whose expenses seemed to be somewhat increased, *viz.* those who raised all their provisions before emancipation, and ceased to raise any *after* that event. But in the opinion of the most intelligent planters, even these did not really sustain any loss, for originally it was bad policy to raise provisions, since it engrossed that labor which would have been more profitably directed to the cultivation of sugar; and hence they would ultimately be gainers by the change.

S. Bourne, Esq. stated that the expenses on Millar's estate, of which he is manager, had diminished about *one third*.

Mr. Barnard, of Green Castle, thought his expenses were about the same that they were formerly.

Mr. Favey, of Lavicount's estate, enumerated, among the advantages of freedom over slavery, "the diminished expense."

Dr. Nugent also stated, that "the expenses of cultivation were greatly diminished."

Mr. Hatley, manager of Fry's estate, said that the expenses on his estate had been greatly reduced since emancipation. He showed us the account of his expenditures for the last year of slavery, and the first full year of freedom, 1835. The expenses during the last year of slavery were 1371*l.* 2*s.* 4-1/2*d.*;

the expenses for 1835 were 821*l.* 16*s.* 7-1/2*d.*: showing a reduction of more than one third.

D. Cranstoun, Esq., informed us that his weekly expenses during slavery, on the estate which he managed, were, on an average, 45*l.*; the average expenses now do not exceed 20*l.*

Extract of a letter from Hon. N. Nugent:

"The expenses of cultivating sugar estates have in no instance, I believe, been found *greater* than before. As far as my experience goes, they are certainly less, particularly as regards those properties which were overhanded before, when proprietors were compelled to support more dependents than they required. In some cases, the present cost is less by *one third*. I have not time to furnish you with any detailed statements, but the elements of the calculation are simple enough."

It is not difficult to account for the diminution in the cost of cultivation. In the first place, for those estates that bought their provision previous to emancipation, it cost more money to purchase their stores than they now pay out in wages. This was especially true in dry seasons, when home provisions failed, and the island was mainly dependent upon foreign supplies.

But the chief source of the diminution lies in the reduced number of people to be supported by the planter. During slavery, the planter was required by law to maintain *all* the slaves belonging to the estate; the superannuated, the infirm, the pregnant, the nurses, the young children, and the infants, as well as the working slaves. Now it is only the latter class, the effective laborers, (with the addition of such as were superannuated or infirm at the period of emancipation,) who are dependent upon the planter. These are generally not more than one half, frequently less than a third, of the whole number of negroes resident on the estate; consequently a very considerable burthen has been removed from the planter.

The reader may form some estimate of the reduced expense to the planter, resulting from these causes combined, by considering the statement made to us by Hon. N. Nugent, and repeatedly by proprietors and managers, that had slavery been in existence during the present drought, many of the smaller

estates *must have been inevitably ruined*; on account of the high price of imported provisions, (home provisions having fallen short) and the number of slaves to be fed.

EIGHTH PROPOSITION.--The negroes work *more cheerfully*, and *do their work better* than they did during slavery. Wages are found to be an ample substitute for the lash--they never fail to secure the amount of labor desired. This is particularly true where task work is tried, which is done occasionally in cases of a pressing nature, when considerable effort is required. We heard of no complaints on the score of idleness, but on the contrary, the negroes were highly commended for the punctuality and cheerfulness with which they performed the work assigned them.

The Governor stated, that "he was assured by planters, from every part of the island, that the negroes were very industriously disposed."

"My people have become much more industrious since they were emancipated. I have been induced to extend the sugar cultivation over a number of acres more than have ever been cultivated before."--*Mr. Watkins, of Donovan's.*

"Fearing the consequences of emancipation, I reduced my cultivation in the year '34; but soon finding that my people would work as well as ever, I brought up the cultivation the next year to the customary extent, and this year ('36) I have added fifteen acres of new land."--*S. Bourne, of Millar's.*

"Throughout the island the estates were never in a more advanced state than they now are. The failure in the crops is not in the slightest degree chargeable to a deficiency of labor. I have frequently adopted the job system for short periods; the results have always been gratifying--the negroes accomplished twice as much as when they worked for daily wages, because they made more money. On some days they would make three shillings--three times the ordinary wages."--*Dr. Daniell.*

"They are as a body *more* industrious than when slaves, for the obvious reason that they are *working for themselves*."--*Ralph Higinbotham, U.S. Consul.*

"I have no hesitation in saying that on my estate cultivation is more forward than ever it has been at the same season. The failure of the crops is not in

the least degree the fault of the laborers. They have done well."--*Mr. Favey, of Lavicount's estate.*

"The most general apprehension prior to emancipation was, that the negroes would not work after they were made free--that they would be indolent, buy small parcels of land, and '*squat*' on them to the neglect of sugar cultivation. Time, however, has proved that there was no foundation for this apprehension. The estates were never in better order than they are at present. If you are interrogated on your return home concerning the cultivation of Antigua, you can say that every thing depends upon the *weather*. If we have *sufficient rain*, you may be certain that we shall realize abundant crops. If we have no rain, the crops *must inevitably* fail. *But we always depend upon the laborers*. On account of the stimulus to industry which wages afford, there is far less feigned sickness than there was during slavery. When slaves, the negroes were glad to find any excuse for deserting their labor, and they were incessantly feigning sickness. The sick-house was thronged with real and pretended invalids. After '34, it was wholly deserted. The negroes would not go near it; and, in truth, I have lately used it for a stable."--*Hon. N. Nugent.*

"Though the laborers on both the estates under my management have been considerably reduced since freedom, yet the grounds have never been in a finer state of cultivation, than they are at present. When my work is backward, I give it out in jobs, and it is always done in half the usual time."

"Emancipation has almost wholly put an end to the practice of *skulking*, or pretending to be sick. That was a thing which caused the planter a vast deal of trouble during slavery. Every Monday morning regularly, when I awoke, I found ten or a dozen, or perhaps twenty men and women, standing around my door, waiting for me to make my first appearance, and begging that I would let them off from work that day on account of sickness. It was seldom the case that one fourth of the applicants were really unwell; but every one would maintain that he was very sick, and as it was hard to contend with them about it, they were all sent off to the sick-house. Now this is entirely done away, and my sick-house is converted into a chapel for religious worship."--*James Howell, Esq.*

"I find my people much more disposed to work than they formerly were. The habit of feigning sickness to get rid of going to the field, is completely broken up. This practice was very common during slavery. It was often amusing to hear their complaints. One would come carrying an arm in one hand, and declaring that it had a mighty pain in it, and he could not use the hoe no way; another would make his appearance with both hands on his breast, and with a rueful look complain of a great pain in the stomach; a third came limping along, with a *dreadful rheumatiz* in his knees; and so on for a dozen or more. It was vain to dispute with them, although it was often manifest that nothing earthly was ailing them. They would say, 'Ah! me massa, you no tink how bad me feel--it's *deep in*, massa.' But all this trouble is passed. We have no sick-house now; no feigned sickness, and really much less actual illness than formerly. My people say, '*they have not time to be sick now*.' My cultivation has never been so far advanced at the same season, or in finer order than it is at the present time. I have been encouraged by the increasing industry of my people to bring several additional acres under cultivation."--*Mr. Hatley, Fry's estate.*

"I get my work done better than formerly, and with incomparably more cheerfulness. My estate was never in a finer state of cultivation than it is now, though I employ *fewer* laborers than during slavery. I have occasionally used job, or task work, and with great success. When I give out a job, it is accomplished in about half the time that it would have required by giving the customary wages. The people will do as much in one week at job work, as they will in two, working for a shilling a day. I have known them, when they had a job to do, turn out before three o'clock in the morning, and work by moonlight."--*D. Cranstoun, Esq.*

"My people work very well for the ordinary wages; I have no fault to find with them in this respect."--*Manager of Scotland's estate.*

Extract from the Superintendent's Report to the Commander in Chief.

SUPERINTENDENT'S OFFICE, *June 6th.* 1836.

"During the last month I have visited the country in almost every direction, with the express object of paying a strict attention to all branches of agricultural operations at that period progressing.

The result of my observations is decidedly favorable, as regards proprietors and laborers. The manufacture of sugar has advanced as far as the long and continued want of rain will admit; the lands, generally, appear to be in a forward state of preparation for the ensuing crop, and the laborers seem to work with more steadiness and satisfaction to themselves and their employers, than they have manifested for some length of time past, and their work is much more correctly performed.

Complaints are, for the most part, adduced by the employers against the laborers, and principally consist, (as hitherto,) of breaches of contract; but I am happy to observe, that a diminution of dissatisfaction on this head even, has taken place, as will be seen by the accompanying general return of offences reported.

Your honor's most obedient, humble servant,

Richard S. Wickham, Superintendent of police."

NINTH PROPOSITION.--The negroes are *more easily managed* as freemen than they were when slaves.

On this point as well as on every other connected with the system of slavery, public opinion in Antigua has undergone an entire revolution, since 1834. It was then a common maxim that the peculiar characteristics of the negro absolutely required a government of terror and brute force.

The Governor said, "The negroes are as a race remarkable for *docility*; they are very easily controlled by kind influence. It is only necessary to gain their confidence, and you can sway them as you please."

"Before emancipation took place, I dreaded the consequence of abolishing the power of compelling labor, but I have since found by experience that forbearance and kindness are sufficient for all purposes of authority. I have seldom had any trouble in managing my people. They consider me their friend, and the expression of my wish is enough for them. Those planters who have retained their *harsh manner* do not succeed under the new system. The people will not bear it."--*Mr. J. Howell.*

"I find it remarkably easy to manage my people. I govern them entirely by mildness. In every instance in which managers have persisted in their habits of arbitrary command, they have failed. I have lately been obliged to discharge a manager from one of the estates under my direction, on account of his overbearing disposition. If I had not dismissed him, the people would have abandoned the estate *en masse*."--*Dr. Daniell*.

"The management of an estate under the free system is a much lighter business than it used to be. We do not have the trouble to get the people to work, or to keep them in order."--*Mr. Favey*.

"Before the abolition of slavery, I thought it would be utterly impossible to manage my people without tyrannizing over them as usual, and that it would be giving up the reins of government entirely, to abandon the whip; but I am now satisfied that I was mistaken. I have lost all desire to exercise arbitrary power. I have known of several instances in which unpleasant disturbances have been occasioned by managers giving way to their anger, and domineering over the laborers. The people became disobedient and disorderly, and remained so until the estates went into other hands, and a good management immediately restored confidence and peace."--*Mr. Watkins*.

"Among the advantages belonging to the free system, may he enumerated the greater facility in managing estates. We are freed from a world of trouble and perplexity."--*David Cranstoun, Esq.*

"I have no hesitation in saying, that if I have a supply of cash, I can take off any crop it may please God to send. Having already, since emancipation, taken off one fully sixty hogsheads above the average of the last twenty years. I can speak with confidence."--*Letter from S. Bourne, Esq.*

Mr. Bourne stated a fact which illustrates the ease with which the negroes are governed by gentle means. He said that it was a prevailing practice during slavery for the slaves to have a dance soon after they had finished gathering in the crop. At the completion of his crop in '35, the people made arrangements for having the customary dance. They were particularly elated because the crop which they had first taken off was the largest one that had ever been produced by the estate, and it was also the largest crop on the island for that year. With these extraordinary stimulants and excitements,

operating in connection with the influence of habit, the people were strongly inclined to have a dance. Mr. B. told them that dancing was a bad practice--and a very childish, barbarous amusement, and he thought it was wholly unbecoming *freemen*. He hoped therefore that they would dispense with it. The negroes could not exactly agree with their manager--and said they did not like to be disappointed in their expected sport. Mr. B. finally proposed to them that he would get the Moravian minister, Rev. Mr. Harvey, to ride out and preach to them on the appointed evening. The people all agreed to this. Accordingly, Mr. Harvey preached, and they said no more about the dance--nor have they ever attempted to get up a dance since.

We had repeated opportunities of witnessing the management of the laborers on the estates, and were always struck with the absence of every thing like coercion.

By the kind invitation of Mr. Bourne, we accompanied him once on a morning circuit around his estate. After riding some distance, we came to the 'great gang' cutting canes. Mr. B. saluted the people in a friendly manner, and they all responded with a hearty 'good mornin, massa.' There were more than fifty persons, male and female, on the spot. The most of them were employed in cutting canes[[A](#)], which they did with a heavy knife called a *bill*. Mr. B. beckoned to the superintendent, a black man, to come to him, and gave him some directions for the forenoon's work, and then, after saying a few encouraging words to the people, took us to another part of the estate, remarking as we rode off, "I have entire confidence that those laborers will do their work just as I want to have it done." We next came upon some men, who were hoeing in a field of corn. We found that there had been a slight altercation between two of the men. Peter, who was a foreman, came to Mr. B., and complained that George would not leave the cornfield and go to another kind of work as he had bid him. Mr. B. called George, and asked for an explanation. George had a long story to tell, and he made an earnest defence, accompanied with impassioned gesticulation; but his dialect was of such outlandish description, that we could not understand him. Mr. B. told us that the main ground of his defence was that Peter's direction was *altogether unreasonable*. Peter was then called upon to sustain his complaint; he spoke with equal earnestness and equal

unintelligibility. Mr. B. then gave his decision, with great kindness of manner, which quite pacified both parties.

[Footnote [A](#): The process of cutting canes is this:--The leafy part, at top is first cut off down as low as the saccharine matter A few of the lowest joints of the part thus cut off, are then stripped of the leaves, and cut off for *plants*, for the next crop. The stalk is then cut off close to the ground--and it is that which furnishes the juice for sugar. It is from three to twelve feet long, and from one to two inches in diameter, according to the quality of the soil, the seasonableness of the weather, &c. The cutters are followed by *gatherers*, who bind up the plants and stalks, as the cutters cast them behind them, in different bundles. The carts follow in the train, and take up the bundles--carrying the stalks to the mill to be ground, and the plants in another direction.]

As we rode on, Mr. B. informed us that George was himself the foreman of a small weeding gang, and felt it derogatory to his dignity to be ordered by Peter.

We observed on all the estates which we visited, that the planters, when they wish to influence their people, are in the habit of appealing to them as *freemen*, and that now better things are expected of them. This appeal to their self-respect seldom fails of carrying the point.

It is evident from the foregoing testimony, that if the negroes do not work well on any estate, it is generally speaking the *fault of the manager*. We were informed of many instances in which arbitrary men were discharged from the management of estates, and the result has been the restoration of order and industry among the people.

On this point we quote the testimony of James Scotland, Sen., Esq., an intelligent and aged merchant of St. John's:

"In this colony, the evils and troubles attending emancipation have resulted almost entirely from the perseverance of the planters in their old habits of domination. The planters very frequently, indeed, *in the early stage of freedom*, used their power as employers to the annoyance and injury of their laborers. For the slightest misconduct, and sometimes without any reason whatever, the poor negroes were dragged before the magistrates, (planters

or their friends,) and mulcted in their wages, fined otherwise, and committed to jail or the house of correction. And yet those harassed people remained patient, orderly and submissive. *Their treatment now is much improved. The planters have happily discovered, that as long as they kept the cultivators of their lands in agitations and sufferings, their own interests were sacrificed.*"

TENTH PROPOSITION.--The negroes are *more trust-worthy, and take a deeper interest in their employers' affairs*, since emancipation.

"My laborers manifest an increasing attachment to the estate. In all their habits they are becoming more settled, and they begin to feel that they have a personal interest in the success of the property on which they live."--*Mr. Favey.*

"As long as the negroes felt uncertain whether they would remain in one place, or be dismissed and compelled to seek a home elsewhere, they manifested very little concern for the advancement of their employers' interest; but in proportion as they become permanently established on an estate, they seem to identify themselves with its prosperity. The confidence between master and servant is mutually increasing."--*Mr. James Howell.*

The Hon. Mr. Nugent, Dr. Daniell, D. Cranstoun, Esq., and other planters, enumerated among the advantages of freedom, the planters being released from the perplexities growing out of want of confidence in the sympathy and honesty of the slaves.

S. Bourne, Esq., of Millar's, remarked as we were going towards his mill and boiling-house, which had been in operation about a week, "I have not been near my works for several days; yet I have no fears but that I shall find every thing going on properly."

The planters have been too deeply experienced in the nature of slavery, not to know that mutual jealousy, distrust, and alienation of feeling and interest, are its legitimate offspring; and they have already seen enough of the operation of freedom, to entertain the confident expectation, that fair wages, kind treatment, and comfortable homes, will attach the laborers to the estates, and identify the interests of the employer and the employed.

ELEVENTH PROPOSITION.--The experiment in Antigua proves that emancipated slaves can *appreciate law*. It is a prevailing opinion that those who have long been slaves, cannot at once be safely subjected to the control of law.

It will now be seen how far this theory is supported by facts. Let it be remembered that the negroes of Antigua passed, "by a single *jump*, from absolute slavery to unqualified freedom." [A] In proof of *their subordination to law*, we give the testimony of planters, and quote also from the police reports sent in monthly to the Governor, with copies of which we were kindly furnished by order of His Excellency.

[Footnote A: Dr. Daniell.]

"I have found that the negroes are readily controlled by law; more so perhaps than the laboring classes in other countries."--*David Cranstoun, Esq.*

"The conduct of the negro population generally, has surpassed all expectation. They are as pliant to the hand of legislation, as any people; perhaps more so than some." *Wesleyan Missionary*.

Similar sentiments were expressed by the Governor, the Hon. N. Nugent, R.B. Eldridge, Esq., Dr. Ferguson, Dr. Daniell, and James Scotland, Jr., Esq., and numerous other planters, managers, &c. This testimony is corroborated by the police reports, exhibiting, as they do, comparatively few crimes, and those for the most part minor ones. We have in our possession the police reports for every month from September, 1835, to January, 1837. We give such specimens as will serve to show the general tenor of the reports.

Police-Office, St. John's, Sept. 3, 1835.

"From the information which I have been able to collect by my own personal exertions, and from the reports of the assistant inspectors, at the out stations, I am induced to believe that, in general, a far better feeling and good understanding at present prevails between the laborers and their employers, than hitherto.

Capital offences have much decreased in number, as well as all minor ones, and the principal crimes lately submitted for the investigation of the magistrates, seem to consist chiefly in trifling offences and breaches of contract.

*Signed, Richard S. Wickham,
Superintendent of Police."*

* * * * *

"To his excellency,

Sir C.I. Murray McGregor, Governor, &c.

St. John's, Antigua, Oct. 2, 1835.

Sir--The general state of regularity and tranquillity which prevails throughout the island, admits of my making but a concise report to your Excellency, for the last month.

The autumnal agricultural labors continue to progress favorably, and I have every reason to believe, that the agriculturalists, generally, are far more satisfied with the internal state of the island affairs, than could possibly have been anticipated a short period since.

From conversations which I have had with several gentlemen of extensive interest and practical experience, united with my own observations, I do not hesitate in making a favorable report of the general easy and quietly progressing state of contentedness, evidently showing itself among the laboring class; and I may add, that with few exceptions, a reciprocity of kind and friendly feeling at present is maintained between the planters and their laborers.

Although instances do occur of breach of contract, they are not very frequent, and in many cases I have been induced to believe, that the

crime has originated more from the want of a proper understanding of the time, intent, and meaning of the contract into which the laborers have entered, than from the actual existence of any dissatisfaction on their part."

Signed, &c.

* * * * *

St. John's, Antigua, Dec. 2d, 1835.

"Sir--I have the honor to report that a continued uninterrupted state of peace and good order has happily prevailed throughout the island, during the last month.

The calendar of offences for trial at the ensuing sessions, bears little comparison with those of former periods, and I am happy to state, that the crimes generally, are of a trifling nature, and principally petty thefts.

By a comparison of the two last lists of offences submitted for investigation, it will be found that a decrease has taken place in that for November."

Signed, &c.

* * * * *

St. John's, January 2d, 1836.

"Sir--I have great satisfaction in reporting to your Honor the peaceable termination of the last year, and of the Christmas vacation.

At this period of the year, which has for ages been celebrated for scenes of gaiety and amusement among the laboring, as well as all other classes of society, and when several successive days of idleness occur, I cannot but congratulate your Honor, on the quiet demeanor and general good order, which has happily been maintained throughout the island.

It may not be improper here to remark, that during the holidays, I had only one prisoner committed to my charge, and that even his offence was of a minor nature."

Signed, &c.

* * * * *

Extract of Report for February, 1836.

"The operation of the late Contract Acts, caused some trifling inconvenience at the commencement, but now that they are clearly understood, even by the young and ignorant, I am of opinion, that the most beneficial effects have resulted from these salutary Acts, equally to master and servant, and that a permanent understanding is fully established.

A return of crimes reported during the month of January, I beg leave to enclose, and at the same time, to congratulate your Honor on the vast diminution of all minor misdemeanors, and of the continued total absence of capital offences."

* * * * *

Superintendent's office, Antigua, April 4th, 1836.

"SIR--I am happy to remark, for the information of your Honor, that the Easter holidays have passed off, without the occurrence of any violation of the existing laws sufficiently serious to merit particular observation."[A]

Signed, &c.

* * * * *

[Footnote A: This and the other reports concern, not St. John's merely, but the entire population of the island.]

Extract from the Report for May, 1836.

"It affords me great satisfaction in being able to report that the continued tranquillity prevailing throughout the island, prevents the necessity of my calling the particular attention of your Honor to the existence of any serious or flagrant offence.

The crop season having far advanced, I have much pleasure in remarking the continued steady and settled disposition, which on most properties appear to be reciprocally established between the proprietors and their agricultural laborers; and I do also venture to offer as my opinion, that a considerable improvement has taken place, in the behavior of domestic, as well as other laborers, not immediately employed in husbandry."

We quote the following table of offences as a specimen of the monthly reports:

Police Office, St. John's, 1836.

RETURN OF OFFENCES REPORTED AT THE POLICE STATIONS
FROM 1ST TO 31ST MAY.

NATURE OF OFFENSES.	St. Johns	E. Harbour	Parham Point	Johnston's	Total	More than last month	Less than last month
Assaults.	2	2			4		5
Do. and Batteries.	2	3	5		10		8
Breach of Contract.	4	11	59		74		16
Burglaries.	2		3		5	2	
Commitments under Vagrant Act.	4	1			5		10
Do. for Fines	5				5	2	
Do. under amended Porter's and Jobber's Act.							7
Felonies.	2				2	2	
Injury to property.	4	9	7		20		5
Larcenies.	4				4	4	
Misdemeanors.	3	12			15	15	
Murders.							
Petty Thefts.		1			1		10
Trespasses.	1	2	2		5		
Riding improperly thro' the streets.							
Total.	33	41	76		150	25	61

Signed, Richard S. Wickham, Superintendent of Police.

* * * *

*Superintendent's office,
Antigua, July 6th, 1836.*

"SIR,--I have the honor to submit for your information, a general return of all offences reported during the last month, by which your Honor will perceive, that no increase of 'breach of contract' has been recorded.

While I congratulate your Honor on the successful maintenance of general peace, and a reciprocal good feeling among all classes of society, I beg to assure you, that the opinion which I have been able to form in relation to the behavior of the laboring population, differs but little from my late observations.

At a crisis like this, when all hopes of the ultimate success of so grand and bold an experiment, depends, almost entirely, on a cordial co-operation of the community, I sincerely hope, that no obstacles or interruptions will now present themselves, to disturb that general good understanding so happily established, since the adoption of unrestricted freedom."

* * * *

*Superintendent's office,
St. John's, Sept. 4th, 1836.*

"SIR--I have the honor to enclose, for the information of your Excellency, the usual monthly return of offences reported for punishment.

It affords me very great satisfaction to report, that the internal peace and tranquillity of the island has remained uninterrupted during the last month; the conduct of all classes of the community has been orderly and peaceable, and strictly obedient to the laws of their country.

The agricultural laborers continue a steady and uniform line of conduct, and with some few exceptions, afford a general satisfaction to their several employers.

Every friend to this country, and to the liberties of the world, must view with satisfaction the gradual improvement in the character and behavior of this class of the community, under the constant operation of the local enactments.

The change must naturally be slow, but I feel sure that, in due time, a general amelioration in the habits and industry of the laborers will be sensibly experienced by all grades of society in this island, and will prove the benign effects and propitious results of the co-operated exertions of all, for their general benefit and future advancement.

Complaints have been made in the public prints of the robberies committed in this town, as well as the neglect of duty of the police force, and as these statements must eventually come under the observation of your Excellency, I deem it my duty to make a few observations on this point.

The town of St. John's occupies a space of one hundred and sixty acres of land, divided into fourteen main, and nine cross streets, exclusive of lanes and alleys--with a population of about three thousand four hundred persons.

The numerical strength of the police force in this district, is eleven sergeants and two officers; five of these sergeants are on duty every twenty-four hours. One remains in charge of the premises, arms, and stores; the other four patrol by day and night, and have also to attend to the daily duties of the magistrates, and the eleventh is employed by me (being an old one) in general patrol duties, pointing out nuisances and irregularities.

One burglary and one felony alone were reported throughout the island population of 37,000 souls in the month of July; and no burglary, and three *felonies*, were last month reported.

The cases of robbery complained of, have been effected without any violence or noise, and have principally been by concealment in stores, which, added to the great want of a single lamp, or other light, in any one street at night, must reasonably facilitate the design of the robber, and defy the detection of the most active and vigilant body of police."

Signed, &c.

* * * * *

*Superintendent's office,
Antigua, January 4th, 1837.*

"SIR--It is with feelings of the most lively gratification that I report, for your notice the quiet and peaceable termination of Christmas vacation, and the last year, which were concluded without a single serious violation of the governing laws.

I cannot refrain from cordially congratulating your Excellency on the regular and steady behavior, maintained by all ranks of society, at this particular period of the year.

Not one species of crime which can be considered of an heinous nature, has yet been discovered; and I proudly venture to declare my opinion, that in no part of his Majesty's dominions, has a population of thirty thousand conducted themselves with more strict propriety, at this annual festivity, or been more peaceably obedient to the laws of their country."

Signed, &c.

* * * *

In connection with the above quotation from the monthly reports, we present an extract of a letter from the superintendent of the police, addressed to us.

St. John's, 9th February, 1837.

"MY DEAR SIRS--In compliance with your request, I have not any hesitation in affording you any information on the subject of the free system adopted in this island, which my public situation has naturally provided me with.

The opinion which I have formed has been, and yet remains, in favor of the emancipation; and I feel very confident that the system has and continues to work well, in almost all instances. The laborers have conducted themselves generally in a highly satisfactory manner to all the authorities, and strikingly so when we reflect that the greater portion of the population of the island were at once removed from a state of long existing slavery, to one of unrestricted freedom. Unacquainted as they are with the laws newly enacted for their future government and guidance, and having been led in their ignorance to expect incalculable wonders and benefits arising from freedom, I cannot but reflect with amazement on the peace and good order which have been so fortunately maintained throughout the island population of thirty thousand subjects.

Some trifling difficulties sprang up on the commencement of the new system among the laborers, but even these, on strict investigation, proved to originate more from *an ignorance of their actual position*, than from any bad feeling, or improper motives, and consequently *were of short duration*. In general the laborers are peaceable orderly, and civil, not only to those who move in higher spheres of life than themselves, but also to each other.

The crimes they are generally guilty of, are petty thefts, and other minor offences against the local acts; but crimes of an heinous nature are very rare among them; and I may venture to say, that petty thefts, *breaking sugar-canes to eat*, and offences of the like description, *principally* swell the calendars of our quarterly courts of sessions. *Murder* has been a stranger to this island for many years; no execution has occurred among the island population for a very long period; the only two instances were two *Irish* soldiers.

The lower class having become more acquainted with their governing laws, have also become infinitely more obedient to them, and I have observed *that particular care is taken among most of them to explain to each other the nature of the laws*, and to point out in their usual style the ill consequences attending any violation of them. ==> *A due fear of, and a prompt obedience to, the authority of the magistrates, is a prominent feature of the lower orders*, and to this I mainly attribute the successful maintenance of rural tranquillity.

Since emancipation, the agricultural laborer has had to contend with two of the most obstinate droughts experienced for many years in the island, which has decreased the supply of his accustomed vegetables and ground provisions, and consequently subjected him and family to very great privations; but this even, I think, has been submitted to with becoming resignation.

To judge of the past and present state of society throughout the island, I presume that *the lives and properties of all classes are as secure in this, as in any other portion of his Majesty's dominions*; and I sincerely hope that the future behavior of all, will more clearly manifest the correctness of my views of this highly important subject.

I remain, dear sirs, yours faithfully, RICHARD S. WICKHAM,
Superintendent of police."

* * * * *

This testimony is pointed and emphatic; and it comes from one whose *official business it is to know* the things whereof he here affirms. We have presented not merely the opinions of Mr. W., relative to the subordination of the emancipated negroes in Antigua, but likewise the *facts* upon which he founded his opinion.

On a point of such paramount importance we cannot be too explicit. We therefore add the testimony of planters as to the actual state of crime compared with that previous to emancipation.

Said J. Howell, Esq., of T. Jarvis's estate, "I do not think that aggressions on property, and crime in general, have increased since emancipation, but rather decreased. They *appear* to be more frequent, because they are made *more public*. During slavery, all petty thefts, insubordination, insolence, neglect of work, and so forth, were punished summarily on the estate, by order of the manager, and not even so much as the rumor of them ever reached beyond the confines of the property. Now all offences, whether great or trifling, are to be taken cognizance of by the magistrate or jury, and hence they become notorious. Formerly each planter knew only of those crimes which occurred on his own property; now every one knows something about the crimes committed on every other estate, as well as his own."

It will be remembered that Mr. H. is a man of thorough and long experience in the condition of the island, having lived in it since the year 1800, and being most of that time engaged directly in the management of estates.

"Aggression on private property, such as breaking into houses, cutting canes, &c., are decidedly fewer than formerly. It is true that crime is made more *public* now, than during slavery, when the master was his own magistrate."--*Dr. Daniell*.

"I am of the opinion that crime in the island has diminished rather than increased since the abolition of slavery. There is an *apparent* increase of crime, because every misdemeanor, however petty, floats to the surface."--*Hon. N. Nugent*.

We might multiply testimony on this point; but suffice it to say that with very few exceptions, the planters, many of whom are also civil magistrates, concur in these two statements; that the amount of crime is actually less than it was during slavery; and that it *appears to be greater* because of the publicity which is necessarily given by legal processes to offences which were formerly punished and forgotten on the spot where they occurred.

Some of the prominent points established by the foregoing evidence are,

1st. That most of the crimes committed are petty misdemeanors such as turning out to work late in the morning, cutting canes to eat, &c. *High penal offences* are exceedingly rare.

2d. That where offences of a serious nature do occur, or any open insubordination takes place, they are founded in ignorance or misapprehension of the law, and are seldom repeated a second time, if the law be properly explained and fully understood.

3d. That the above statements apply to no particular part of the island, where the negroes are peculiarly favored with intelligence and religion, but are made with reference to tire island generally. Now it happens that in one quarter of the island the negro population are remarkably ignorant and degraded. We were credibly informed by various missionaries, who had labored in Antigua and in a number of the other English islands, that they had not found in any colony so much debasement among the people, as prevailed in the part of Antigua just alluded to. Yet they testified that the negroes in that quarter were as peaceable, orderly, and obedient to law, as in any other part of the colony. We make this statement here particularly for the purpose of remarking that in the testimony of the planters, and in the police reports; there is not a single allusion to this portion of the island as forming an exception to the prevailing state of order and subordination.

After the foregoing facts and evidences, we ask, what becomes of the dogma, that slaves cannot be immediately placed under the government of *equitable laws* with safety to themselves and the community?

TWELFTH PROPOSITION.--The emancipated negroes have shown *no disposition to roam from place to place*. A tendency to rove about, is thought by many to be a characteristic of the negro; he is not allowed even

an ordinary share of local attachment, but must leave the chain and staple of slavery to hold him amidst the graves of his fathers and the society of his children. The experiment in Antigua shows that such sentiments are groundless prejudices. There a large body of slaves were "*turned loose*;" they had full liberty to leave their old homes and settle on other properties--or if they preferred a continuous course of roving, they might change employers every six weeks, and pass from one estate to another until they had accomplished the circuit of the island. But, what are the facts? "The negroes are not disposed to leave the estates on which they have formerly lived, unless they are forced away by bad treatment. I have witnessed many facts which illustrate this remark. Not unfrequently one of the laborers will get dissatisfied about something, and in the excitement of the moment will notify me that he intends to leave my employ at the end of a month. But in nine cases out of ten such persons, before the month has expired, beg to be allowed to remain on the estate. The strength of their *local attachment* soon overcomes their resentment and even drives them to make the most humiliating confessions in order to be restored to the favor of their employer, and thus be permitted to remain in their old homes."--*H. Armstrong, Esq.*

"Nothing but bad treatment on the part of the planters has ever caused the negroes to leave the estates on which they were accustomed to live, and in such cases a *change of management* has almost uniformly been sufficient to induce them to return. We have known several instances of this kind."--*S. Bourne, Esq., of Millar's, and Mr. Watkins, of Donovan's.*

"The negroes are remarkably attached to their homes. In the year 1828, forty-three slaves were sold from the estate under my management, and removed to another estate ten miles distant. After emancipation, the whole of these came back, and plead with me to employ them, that they might live in their former houses."--*James Howell, Esq.*

"Very few of my people have left me. The negroes are peculiar for their attachment to their homes."--*Samuel Barnard, Esq., of Green Castle.*

"Love of home is very remarkable in the negroes. It is a passion with them. On one of the estates of which I am attorney, a part of the laborers were hired from other proprietors. They had been for a great many years living

on the estate, and they became so strongly attached to it, that they all continued to work on it after emancipation, and they still remain on the same property. The negroes are loth to leave their homes, and they very seldom do so unless forced away by ill treatment."--*Dr. Daniell*.

On a certain occasion we were in the company of four planters, and among other topics this subject was much spoken of. They all accorded perfectly in the sentiment that the negroes were peculiarly sensible to the influence of local attachments. One of the gentlemen observed that it was a very common saying with them--"*Me nebber leave my bornin' ground*,"--i.e., birth-place.

An aged gentleman in St. John's, who was formerly a planter, remarked, "The negroes have very strong local attachments. They love their little hut, where the calabash tree, planted at the birth of a son, waves over the bones of their parents. They will endure almost any hardship and suffer repeated wrongs before they will desert that spot."

Such are the sentiments of West India planters; expressed, in the majority of cases, spontaneously, and mostly in illustration of other statements. We did not hear a word that implied an opposite sentiment. It is true, much was said about the emigration to Demerara, but the facts in this case only serve to confirm the testimony already quoted. In the first place, nothing but the inducement of very high wages[A] could influence any to go, and in the next place, after they got there they sighed to return, (but were not permitted,) and sent back word to their relatives and friends not to leave Antigua.

[Footnote [A](#): From fifty cents to a dollar per day.]

Facts clearly prove, that the negroes, instead of being indifferent to local attachments, are peculiarly alive to them. That nothing short of cruelty can drive them from their homes--that they will endure even that, as long as it can be borne, rather than leave; and that as soon as the instrument of cruelty is removed, they will hasten back to their "*bornin' ground*."

THIRTEENTH PROPOSITION.--"The gift of unrestricted freedom, though so suddenly bestowed, has not made the negroes more insolent than they were while slaves, but has rendered them *less so*."--*Dr. Daniell*.

Said James Howell, Esq.--"A short time after emancipation, the negroes showed some disposition to assume airs and affect a degree of independence; but this soon disappeared, and they are now respectful and civil. There has been a mutual improvement in this particular. The planters treat the laborers more like fellow men, and this leads the latter to be respectful in their turn."

R.B. Eldridge, Esq., asked us if we had not observed the civility of the lower classes as we passed them on the streets, both in town and in the country. He said it was their uniform custom to bow or touch their hat when they passed a white person. They did so during slavery, and he had not discovered any change in this respect since emancipation.

Said Mr. Bourne--"The negroes are decidedly less insolent now than they were during slavery."

Said Mr. Watkins, of Donovan's--"The negroes are now all *cap in hand*; as they know that it is for their interest to be respectful to their employers."

Said Dr. Nugent--"Emancipation has not produced insolence among the negroes."

During our stay in Antigua, we saw no indications whatsoever of insolence. We spoke in a former part of this work of the uncommon civility manifested in a variety of ways on the road-sides.

A trifling incident occurred one day in St. John's, which at first seemed to be no small rudeness. As one of us was standing in the verandah of our lodging house, in the dusk of the evening, a brawny negro man who was walking down the middle of the street, stopped opposite us, and squaring himself, called out. "Heigh! What for you stand dare wid your arms so?" placing his arms akimbo, in imitation of ours. Seeing we made no answer, he repeated the question, still standing in the same posture. We took no notice of him, seeing that his supposed insolence was at most good-humored and innocent. Our hostess, a colored lady, happened to step out at the moment, and told us that the man had mistaken us for her son, with whom he was well acquainted, at the same time calling to the man, and telling him of his mistake. The negro instantly dropped his arms, took off his hat, begged pardon, and walked away apparently quite ashamed.

FOURTEENTH PROPOSITION.--Emancipation in Antigua has demonstrated that GRATITUDE *is a prominent trait of the negro character*. The conduct of the negroes on the first of August, 1834, is ample proof of this; and their uniform conduct since that event manifests an *habitual* feeling of gratitude. Said one, "The liberty we received from the king, we can never sufficiently thank God for; whenever we think of it, our hearts go out in gratitude to God." Similar expressions we heard repeatedly from the negroes.--We observed that the slightest allusion to the first of August in a company of freed persons, would awaken powerful emotions, accompanied with exclamations of "tank de good Lord," "bless de Savior," "praise de blessed Savior," and such like.

It was the remark of Mr. James Howell, manager of Thibou Jarvis's--"That the negroes evinced very little gratitude to their *masters* for freedom. Their gratitude all flowed toward God and the king, whom they regarded as the sole authors of their liberty."

Mr. Watkins observed that "the negroes' motto was God and the king. This feeling existed particularly at the time of emancipation, and shortly after it. They have since become more attached to their former masters."

It is by no means strange that the negroes should feel little gratitude toward their late masters, since they knew their opposition to the benevolent intentions of the English government. We were informed by Dr. Daniell and many others, that for several months before emancipation took place, the negroes had an idea that the king had sent them 'their free papers,' and that *their masters were keeping them back*. Besides, it was but two years before that period, that they had come into fierce and open hostility with the planters for abolishing the Sunday market, and giving them no market-day instead thereof. In this thing their masters had shown themselves to be their enemies.

That any good thing could come from such persons the slaves were doubtless slow to believe. However, it is an undeniable fact, that since emancipation, kind treatment on the part of the masters, has never failed to excite gratitude in the negroes. The planters understand fully how they may secure the attachment and confidence of their people. A *grateful* and *contented* spirit certainly characterizes the negroes of Antigua. They do not

lightly esteem what they have got, and murmur because they have no more. They do not complain of small wages, and strike for higher. They do not grumble about their simple food and their coarse clothes, and flaunt about, saying '*freemen ought to live better.*' They do not become dissatisfied with their lowly, cane-thatched huts, and say we ought to have as good houses as massa. They do not look with an evil eye upon the political privileges of the whites, and say we have the majority, and we'll rule. It is the common saying with them, when speaking of the inconveniences which they sometimes suffer, "Well, we must be satisfy and conten."

FIFTEENTH PROPOSITION.--The freed negroes of Antigua have proved that *they are able to take care of themselves*. It is affirmed by the opponents of emancipation in the United States, that if the slaves were liberated, they could not take care of themselves. Some of the reasons assigned for entertaining this view are--1st, "The negro is naturally improvident." 2d, "He is constitutionally indolent." 3d, "Being of an inferior race, he is deficient in that shrewdness and management necessary to prevent his being imposed upon, and which are indispensable to enable him to conduct any business with success." 4th, "All these natural defects have been aggravated by slavery. The slave never provides for himself, but looks to his master for everything he needs. So likewise he becomes increasingly averse to labor, by being driven to it daily, and flogged for neglecting it. Furthermore, whatever of mind he had originally has been extinguished by slavery." Thus by nature and by habit the negro is utterly unqualified to take care of himself. So much for theory; now for testimony. First, what is the evidence with regard to the *improvidence* of the negroes?

"During slavery, the negroes squandered every cent of money they got, because they were sure of food and clothing. Since their freedom, they have begun to cultivate habits of carefulness and economy".--*Mr. James Howell*.

Facts--1st. The low wages of the laborers is proof of their providence. Did they not observe the strictest economy, they could not live on fifty cents per week.

2d. That they buy small parcels of land to cultivate, is proof of economy and foresight. The planters have to resort to every means in their power to induce their laborers not to purchase land.

3d. The Friendly Societies are an evidence of the same thing. How can we account for the number of these societies, and for the large sums of money annually contributed in them? And how is it that these societies have trebled, both in members and means since emancipation, if it be true that the negroes are thus improvident, and that freedom brings starvation?

4th. The weekly and monthly contributions to the churches, to benevolent societies, and to the schools, demonstrate the economy of the negroes; and the *great increase* of these contributions since August, 1834, proves that emancipation has not made them less economical.

5th. The increasing attention paid to the cultivation of their private provision grounds is further proof of their foresight. For some time subsequent to emancipation, as long as the people were in an unsettled state, they partially neglected their grounds. The reason was, they did not know whether they should remain on the same estate long enough to reap their provisions, should they plant any. This state of uncertainty very naturally paralyzed all industry and enterprise; and their neglecting the cultivation of their provision grounds, *under such circumstances*, evinced foresight rather than improvidence. Since they have become more permanently established on the estates, they are resuming the cultivation of their grounds with renewed vigor.

Said Dr. Daniell--"There is an increasing attention paid by the negroes to cultivating their private lands, since they have become more permanently settled."

6th. The fact that the parents take care of the wages which their children earn, shows their provident disposition. We were informed that the mothers usually take charge of the money paid to their children, especially their daughters, and this, in order to teach them proper subordination, and to provide against casualties, sickness, and the infirmities of age.

7th. The fact that the negroes are able to support their aged parents, is further proof.

As it regards the second specification, *viz., constitutional indolence*, we may refer generally to the evidence on this subject under a former proposition. We will merely state here two facts.

1st. Although the negroes are not obliged to work on Saturday, yet they are in the habit of going to estates that are weak-handed, and hiring themselves out on that day.

2d. It is customary throughout the island to give two hours (from 12 to 2) recess from labor. We were told that in many cases this time is spent in working on their private provision grounds, or in some active employment by which a pittance may be added to their scanty earnings.

What are the facts respecting the natural *inferiority* of the negro race, and their incompetency to manage their own affairs?

Said Mr. Armstrong--"The negroes are exceedingly quick *to turn a thought*. They show a great deal of shrewdness in every thing which concerns their own interests. To a stranger it must be utterly incredible how they can manage to live on such small wages. They are very exact in keeping their accounts with the manager."

"The negroes are very acute in making bargains. A difficulty once arose on an estate under my charge, between the manager and the people, in settling for a job which the laborers had done. The latter complained that the manager did not give them as much as was stipulated in the original agreement. The manager contended that he had paid the whole amount. The people brought their complaint before me, as attorney, and maintained that there was one shilling and six-pence (about nineteen cents) due each of them. I examined the accounts and found that they were right, and that the manager had really made a mistake to the very amount specified."--*Dr. Daniell*.

"The emancipated people manifest as much cunning and address in business, as any class of persons."--*Mr. J. Howell*.

"The capabilities of the blacks for education are conspicuous; so also as to mental acquirements and trades."--*Hon. N. Nugent*.

It is a little remarkable that while Americans fear that the negroes, if emancipated, could not take care of themselves, the West Indians fear lest they *should* take care of themselves; hence they discourage them from buying lands, from learning trades, and from all employments which might render them independent of sugar cultivation.

SIXTEENTH PROPOSITION.--Emancipation has operated at once to elevate and improve the negroes. It introduced them into the midst of all relations, human and divine. It was the first formal acknowledgment that they were MEN--personally interested in the operations of law, and the requirements of God. It laid the corner-stone in the fabric of their moral and intellectual improvement.

"The negroes have a growing self-respect and regard for character. This was a feeling which was scarcely known by them during slavery."--*Mr. J. Howell.*

"The negroes pay a great deal more attention to their personal appearance, than they were accustomed to while slaves. The *women* in particular have improved astonishingly in their dress and manners."--*Dr. Daniell.*

Abundant proof of this proposition may be found in the statements already made respecting the decrease of licentiousness, the increased attention paid to marriage, the abandonment by the mothers of the horrible practice of selling their daughters to vile white men, the reverence for the Sabbath, the attendance upon divine worship, the exemplary subordination to law, the avoidance of riotous conduct, insolence, and intemperance.

SEVENTEENTH PROPOSITION--Emancipation promises a vast improvement in the condition of woman. What could more effectually force woman from her sphere, than slavery has done by dragging her to the field, subjecting her to the obscene remarks, and to the vile abominations of licentious drivers and overseers; by compelling her to wield the heavy hoe, until advancing pregnancy rendered her useless then at the earliest possible period driving her back to the field with her infant swung at her back, or torn from her and committed to a stranger. Some of these evils still exist in Antigua, but there has already been a great abatement of them, and the humane planters look forward to their complete removal, and to the ultimate restoration of woman to the quiet and purity of domestic life.

Samuel Bourne, Esq., stated, that there had been a great improvement in the treatment of mothers on his estate. "Under the old system, mothers were required to work half the time after their children were six weeks old; but now we do not call them out for *nine months* after their confinement, until their children are entirely weaned."

"In those cases where women have husbands in the field, they do not turn out while they are nursing their children. In many instances the husbands prefer to have their wives engaged in other work, and I do not require them to go to the field."--*Mr. J Howell.*

Much is already beginning to be said of the probability that the women will withdraw from agricultural labor. A conviction of the impropriety of females engaging in such employments is gradually forming in the minds of enlightened and influential planters.

A short time previous to emancipation, the Hon. N. Nugent, speaker of the assembly, made the following remarks before the house:--"At the close of the debate, he uttered his fervent hope, that the day would come when the principal part of the agriculture of the island would be performed by males, and that the women would be occupied in keeping their cottages in order, and in increasing their domestic comforts. The desire of improvement is strong among them; they are looking anxiously forward to the instruction and advancement of their children, and even of themselves."--*Antigua Herald, of March, 1834.*

In a written communication to us, dated January 17, 1837, the Speaker says: "Emancipation will, I doubt not, improve the condition of the females. There can be no doubt that they will ultimately leave the field, (except in times of emergency,) and confine themselves to their appropriate domestic employments."

EIGHTEENTH PROPOSITION.--Real estate has risen in value since emancipation; mercantile and mechanical occupations have received a fresh impulse; and the general condition of the colony is decidedly more flourishing than at any former period.

"The credit of the island has decidedly improved. The internal prosperity of the island is advancing in an increased ratio. More buildings have been erected since emancipation, than for twenty years before. Stores and shops have multiplied astonishingly; I can safely say that their number has more than quintupled since the abolition of slavery."--*Dr. Ferguson.*

"Emancipation has very greatly increased the value of, and consequently the demand for, real estate. That which three years ago was a drug

altogether unsaleable by private bargain; has now many inquirers after it, and ready purchasers at good prices. The importation of British manufactured goods has been considerably augmented, probably one fourth."

"The credit of the planters who have been chiefly affected by the change, has been much improved. And *the great reduction of expense in managing the estates*, has made them men of more real wealth, and consequently raised their credit both with the English merchants and our own."--*James Scotland, Sen., Esq.*

"The effect of emancipation upon the commerce of the island *must needs* have been beneficial, as the laborers indulge in more wheaten flour, rice, mackerel, dry fish, and salt-pork, than formerly. More lumber is used in the superior cottages now built for their habitations. More dry goods--manufactures of wool, cotton, linen, silk, leather, &c., are also used, now that the laborers can better afford to indulge their propensity for gay clothing."--*Statement of a merchant and agent for estates.*

"Real estate has risen in value, and mercantile business has greatly improved."--*H. Armstrong, Esq.*

A merchant of St. John's informed us, that real estate had increased in value at least fifty per cent. He mentioned the fact, that an estate which previous to emancipation could not be sold for £600 current, lately brought £2000 current.

NINETEENTH PROPOSITION--Emancipation has been followed by the introduction of labor-saving machinery.

"Various expedients for saving manual labor have already been introduced, and we anticipate still greater improvements. Very little was thought of this subject previous to emancipation."--*S. Bourne, Esq.*

"Planters are beginning to cast about for improvements in labor. My own mind has been greatly turned to this subject since emancipation."--*H. Armstrong, Esq.*

"The plough is beginning to be very extensively used."--*Mr. Hatley.*

"There has been considerable simplification in agricultural labor already, which would have been more conspicuous, had it not been for the excessive drought which has prevailed since 1834. The plough is more used, and the expedients for manuring land are less laborious."--*Extract of a letter from Hon. N. Nugent.*

TWENTIETH PROPOSITION.--Emancipation has produced the most decided change in the views of the *planters*.

"Before emancipation took place, there was the bitterest opposition to it among the planters. But after freedom came, they were delighted with the change. I felt strong opposition myself, being exceedingly unwilling to give up my power of command. But I shall never forget how differently I felt when freedom took place I arose from my bed on the first of August, exclaiming with joy, 'I am free, I am free; I was *the greatest slave on the estate*, but now I am free.'"--*Mr. J. Howell.*

"We all resisted violently the measure of abolition, when it first began to be agitated in England. We regarded it as an outrageous interference with our rights, with our property. But we are now rejoiced that slavery is abolished."--*Dr. Daniell.*

"I have already seen such decided benefits growing out of the free labor system, that for my part I wish never to see the face of slavery again." --*Mr. Hatley.*

"I do not know of a single planter who would be willing to return to slavery. We all feel that it was a great curse."--*D. Cranstoun, Esq.*

The speaker of the assembly was requested to state especially the advantages of freedom both to the master and the slave; and he kindly communicated the following reply:

"The benefits to the master are conspicuous--he has got rid of the cark and care, the anxiety and incessant worry of managing slaves; all the trouble and responsibility of rearing them from infancy, of their proper maintenance in health, and sickness, and decrepitude, of coercing them to labor, restraining, correcting, and punishing their faults and crimes--settling all their grievances and disputes. He is now entirely free from

all apprehension of injury, revenge, or insurrection, however transient and momentary such impression may have formerly been. He has no longer the reproach of being a *slaveholder*; his property has lost all the *taint* of slavery, and is placed on as secure a footing, in a moral and political point of view, as that in any other part of the British dominions.

As regards the *other* party, it seems almost unnecessary to point out the advantages of being a free man rather than a slave. He is no longer liable to personal trespass of any sort; he has a right of self-control, and all the immunities enjoyed by other classes of his fellow subjects--he is enabled to better his condition as he thinks proper--he can make what arrangements he likes best, as regards his kindred, and all his domestic relations--he takes to his *own* use and behoof, all the wages and profits of his own labor; he receives money wages instead of weekly allowances, and can purchase such particular food and necessaries as he prefers--*and so on!* IT WOULD BE ENDLESS TO ATTEMPT TO ENUMERATE ALL THE SUPERIOR ADVANTAGES OF A STATE OF FREEDOM TO ONE OF SLAVERY!"

The writer says, at the close of his invaluable letter, "I was born in Antigua, and have resided here with little interruption since 1809. Since 1814, I have taken an active concern in plantation affairs." He was born heir to a large slave property, and retained it up to the hour of emancipation. He is now the proprietor of an estate.

We have, another witness to introduce to the reader, Ralph Higinbothom, Esq., the UNITED STATES CONSUL!--*Hear him!*--

"Whatever may have been the dissatisfaction as regards emancipation among the planters at its commencement, there are few, indeed, if any, who are not *now* well satisfied that under the present system, their properties are better worked, and their laborers more contented and cheerful, than in the time of slavery."

In order that the reader may see the *revolution* that has taken place since emancipation in the views of the highest class of society in Antigua, we make a few extracts.

"There was the most violent opposition in the legislature, and throughout the island, to the anti-slavery proceedings in Parliament. The anti-slavery party in England were detested here for their *fanatical and reckless course*. Such was the state of feeling previous to emancipation, that it would have been certain disgrace for any planter to have avowed the least sympathy with anti-slavery sentiments. The humane might have their hopes and aspirations, and they might secretly long to see slavery ultimately terminated; but they did not dare to make such feelings public. *They would at once have been branded as the enemies of their country!*"--Hon. N. Nugent.

"There cannot be said to have been any *anti-slavery party* in the island before emancipation. There were some individuals in St. John's, and a very few planters, who favored the anti-slavery views, but they dared not open their mouths, because of the bitter hostility which prevailed."--S. Bourne, Esq.

"The opinions of the clergymen and missionaries, with the exception of, I believe, a few clergymen, were favorable to emancipation; but neither in their conduct, preaching, or prayers, did they declare themselves openly, until the measure of abolition was determined on. The missionaries felt restrained by their instructions from home, and the clergymen thought that it did not comport with their order 'to take part in politics!' I never heard of a single *planter* who was favorable, until about three months before the emancipation took place; when some few of them began to perceive that it would be advantageous to their *interests*. Whoever was known or suspected of being an advocate for freedom, became the object of vengeance, and was sure to suffer, if in no other way, by a loss of part of his business. My son-in-law[A], my son[B], and myself, were perhaps the chief marks for calumny and resentment. The first was twice elected a member of the Assembly, and as often put out by scrutinies conducted by the House, in the most flagrantly dishonest manner. Every attempt was made to deprive the second of his business, as a lawyer. With regard to myself, I was thrown into prison, without any semblance of justice, without any form of trial, but in the most summary manner, simply upon the complaint of one of the justices, and without any opportunity being allowed me of saying one word in my defence. I remained in jail until discharged by a peremptory order

from the Colonial Secretary, to whom I appealed."--*James Scotland, Sen., Esq.*

[Footnote [A](#): Dr. Ferguson, physician in St. John's.]

[Footnote [B](#): James Scotland, Jun., Esq., barrister, proprietor, and member of Assembly.]

Another gentleman, a white man, was arrested on the charge of being in the interest of the English Anti-Slavery party, and in a manner equally summary and illegal, was cast into prison, and confined there for one year.

From the foregoing statements we obtain the following comparative view of the past and present state of sentiment in Antigua.

Views and conduct of the planters previous to emancipation:

1st. They regarded the negroes as an inferior race, fit only for slaves.

2d. They regarded them as their rightful property.

3d. They took it for granted that negroes could never be made to work without the use of the whip; hence,

4th. They supposed that emancipation would annihilate sugar cultivation; and,

5th. That it would lead to bloodshed and general rebellion.

6th. Those therefore who favored it, were considered the "*enemies of their country*"--"TRAITORS"--and were accordingly persecuted in various ways, not excepting imprisonment in the common jail.

7th. So popular was slavery among the higher classes, that its morality or justice could not be questioned by a missionary--an editor--or a *planter* even, without endangering the safety of the individual.

8th. The anti-slavery people in England were considered detestable men, intermeddling with matters which they did not understand, and which at any rate did not concern them. They were accused of being influenced by selfish motives, and of designing to further their own interests by the ruin of the planters. They were denounced as *fanatics, incendiaries, knaves, religious enthusiasts*.

9th The abolition measures of the English Government were considered a gross outrage on the rights of private property, a violation their multiplied pledges of countenance and support, and a flagrant usurpation of power over the weak.

Views and conduct of the planters subsequent to emancipation:

1st. The negroes are retarded as *men*--equals standing on the same footing as fellow-citizens.

2d. Slavery is considered a foolish, impolitic, and wicked system.

3d. Slaves are regarded as an *unsafe* species of property, and to hold them disgraceful.

4th. The planters have become the *decided enemies* of slavery. The worst thing they could say against the apprenticeship, was, that "it was only another name for *slavery*."

5th. The abolition of slavery is applauded by the planters as one of the most noble and magnanimous triumphs ever achieved by the British government.

6th. Distinguished abolitionists are spoken of in terms of respect and admiration. The English Anti-slavery Delegation[A] spent a fortnight in the island, and left it the same day we arrived. Wherever we went we heard of them as "the respectable gentlemen from England," "the worthy and intelligent members of the Society of Friends," &c. A distinguished agent of the English anti-slavery society now resides in St. John's, and keeps a bookstore, well stocked with anti-slavery books and pamphlets. The bust of GEORGE THOMPSON stands conspicuously upon the counter of the bookstore, looking forth upon the public street.

[Footnote [A](#): Messrs. Sturge and Harvey.]

7th. The planters affirm that the abolition of slavery put an end to all danger from insurrection, rebellion, privy conspiracy, and sedition, on the part of the slaves.

8th. Emancipation is deemed an incalculable blessing, because it released the planters from an endless complication of responsibilities, perplexities, temptations and anxieties, and because it *emancipated them from the bondage of the whip*.

9th. *Slavery--emancipation--freedom*--are the universal topics of conversation in Antigua. Anti-slavery is the popular doctrine among all classes. He is considered an enemy to his country who opposes the

principles of liberty. The planters look with astonishment on the continuance of slavery in the United States, and express their strong belief that it must soon terminate here and throughout the world. They hailed the arrival of French and American visitors on tours of inquiry as a bright omen. In publishing our arrival, one of the St. John's papers remarks, "We regard this as a pleasing indication that the American public have their eyes turned upon our experiment, with a view, we may hope, of ultimately following our excellent example." (!) All classes showed the same readiness to aid us in what the Governor was pleased to call "the objects of our philanthropic mission."

Such are the views now entertained among the planters of Antigua. What a complete change[B]--and all in less than three years, and effected by the abolition of slavery and a trial of freedom! Most certainly, if the former views of the Antigua planters resemble those held by pro-slavery men in this country, their present sentiments are a *fac simile* of those entertained by the immediate abolitionists.

[Footnote B: The following little story will further illustrate the wonderful revolution which has taken place in the public sentiment of this colony. The facts here stated all occurred while we were in Antigua, and we procured them from a variety of authentic sources. They were indeed publicly known and talked of, and produced no little excitement throughout the island. Mr. Corbett was a respectable and intelligent planter residing on an estate near Johnson's Point. Several months previous to the time of which we now speak, a few colored families (emancipated negroes) bought of a white man some small parcels of land lying adjacent to Mr. C.'s estate. They planted their lands in provisions, and also built them houses thereon, and moved into them. After they had become actively engaged in cultivating their provisions, Mr. Corbett laid claim to the lands, and ordered the negroes to leave them forthwith.

They of course refused to do so. Mr. C. then flew into a violent rage, and stormed and swore, and threatened to burn their houses down over their heads. The terrified negroes forsook their property and fled. Mr. C. then ordered his negroes to tear down their huts and burn up the materials--which was accordingly done. He also turned in his cattle upon the provision grounds, and destroyed them. The negroes made a complaint against Mr. C.,

and he was arrested and committed to jail in St. John's for trial on the charge of *arson*.

We heard of this circumstance on the day of Mr. C.'s commitment, and we were told that it would probably go very hard with him on his trial, and that he would be very fortunate if he escaped the *gallows* or *transportation*. A few days after this we were surprised to hear that Mr. C. had died in prison. Upon inquiry, we learned that he died literally from *rage and mortification*. His case defied the skill and power of the physicians. They could detect the presence of no disease whatever, even on a minute post-mortem examination. They pronounced it as their opinion that he had died from the violence of his passions--excited by being imprisoned, together with his apprehensions of the fatal issue of the trial.

Not long before emancipation, Mr. Scotland was imprisoned for *befriending* the negroes. After emancipation, Mr. Corbett was imprisoned for wronging them.

Mr. Corbett was a respectable planter, of good family and moved in the first circles in the island]

TWENTY-FIRST PROPOSITION.--Emancipation has been followed by a manifest diminution of "*prejudice against color*," and has opened the prospect off its speedy extirpation.

Some thirty years ago, the president of the island, Sir Edward Byam, issued an order forbidding the great bell in the cathedral of St. John's being tolled at the funeral of a colored person; and directing a *smaller* bell to be hung up in the same belfry, and used on such occasions. For twenty years this distinction was strictly maintained. When a white person, however *vile*, was buried, the great bell was tolled; when a colored person, whatever his moral worth, intelligence, or station, was carried to his grave, the little bell was tinkled. It was not until the arrival of the present excellent Rector, that this "prejudice bell" was silenced. The Rev. Mr. Cox informed us that prejudice had greatly decreased since emancipation. It was very common for white and colored gentlemen to be seen walking arm in arm on the streets of St. John's.

"Prejudice against color is fast disappearing. The colored people have themselves contributed to prolong this feeling, *by keeping aloof from the society of the whites.*"--James Howell, of T. Jarvis's.

How utterly at variance is this with the commonly received opinion, that the colored people are disposed to *thrust* themselves into the society of the whites!

"*Prejudice against color* exists in this community only to a limited extent, and that chiefly among those who could never bring themselves to believe that emancipation would really take place. Policy dictates to them the propriety of confining any expression of their feelings to those of the same opinions. Nothing is shown of this prejudice in their intercourse with the colored class--it is '*kept behind the scenes.*'"--Ralph Higginbotham, U. S. Consul.

Mr. H. was not the only individual standing in "high places" who insinuated that the whites that still entertained prejudice were ashamed of it. His excellency the Governor intimated as much, by his repeated assurances for himself and his compeers of the first circles, that there was no such feeling in the island as prejudice against *color*. The reasons for excluding the colored people from their society, he said, were wholly different from that. It was chiefly because of their *illegitimacy*, and also because they were not sufficiently refined, and because their *occupations* were of an inferior kind, such as mechanical trades, small shop keeping, &c. Said he, "You would not wish to ask your tailor, or your shoemaker, to dine with you?" However, we were too unsophisticated to coincide in his Excellency's notions of social propriety.

TWENTY-SECOND PROPOSITION.--The progress of the anti-slavery discussions in England did not cause the masters to treat their slaves worse, but on the contrary restrained them from outrage.

"The treatment of the slaves during the discussions in England, was manifestly milder than before."--Dr. Daniell.

"The effect of the proceedings in parliament was to make the planters treat their slaves better. Milder laws were passed by the assembly, and the

general condition of the slave was greatly ameliorated."--*H. Armstrong, Esq.*

"The planters did not increase the rigor of their discipline because of the anti-slavery discussions; but as a general thing, were more lenient than formerly."--*S. Bourne. Esq.*

"We pursued a much milder policy toward our slaves after the agitation began in England."--*Mr. Jas. Hawoile.*

"The planters did not treat their slaves worse on account of the discussions; but were more lenient and circumspect."--*Letter of Hon. N. Nugent.*

"There was far less cruelty exercised by the planters during the anti-slavery excitement in gland. They were always on their guard to escape the notice of the abolitionists. *They did not wish to have their names published abroad, and to be exposed as monsters of cruelty!*"--*David Cranstoun, Esq.*

We have now completed our observations upon Antigua. It has been our single object in the foregoing account to give an accurate statement of the results of IMMEDIATE EMANCIPATION. We have not taken a single step beyond the limits of testimony, and we are persuaded that testimony materially conflicting with this, cannot be procured from respectable sources in Antigua. We now leave it to our readers to decide, whether emancipation in Antigua has been to all classes in that island a *blessing* or a *curse*.

We cannot pass from this part of our report without recording the kindness and hospitality which we everywhere experienced during our sojourn in Antigua. Whatever may have been our apprehensions of a cool reception from a community of ex-slaveholders, none of our forebodings were realized. It rarely Falls to the lot of strangers visiting a distant land, with none of the contingencies of birth, fortune, or fame, to herald their arrival, and without the imposing circumstance of a popular mission to recommend them, to meet with a warmer reception, or to enjoy a more hearty confidence, than that with which we were honored in the interesting island of Antigua. The very *object* of our visit, humble, and even odious as it may appear in the eyes of many of our own countrymen, was our passport to the consideration and attention of the higher classes in that free colony. We hold

in grateful remembrance the interest which all--not excepting those most deeply implicated in the late system of slavery--manifested in our investigations. To his excellency the Governor, to officers both civil and military, to legislators and judges, to proprietors and planters, to physicians, barristers, and merchants, to clergymen, missionaries, and teachers, we are indebted for their uniform readiness in furthering our objects, and for the mass of information with which they were pleased to furnish us. To the free colored population, also, we are lasting debtors for their hearty co-operation and assistance. To the emancipated, we recognise our obligations as the friends of the slave, for their simple-hearted and reiterated assurances that they should remember the oppressed of our land in their prayers to God. In the name of the multiplying hosts of freedom's friends, and in behalf of the millions of speechless but grateful-hearted slaves, we render to our acquaintances of every class in Antigua our warmest thanks for their cordial sympathy with the cause of emancipation in America. We left Antigua with regret. The natural advantages of that lovely island; its climate, situation, and scenery; the intelligence and hospitality of the higher orders, and the simplicity and sobriety of the poor; the prevalence of education, morality, and religion; its solemn Sabbaths and thronged sanctuaries; and above *all*, its rising institutions of liberty--flourishing so vigorously,--conspire to make Antigua one of the fairest portions of the earth. Formerly it was in our eyes but a speck on the world's map, and little had we checked if an earthquake had sunk, or the ocean had overwhelmed it; but now, the minute circumstances in its condition, or little incidents in its history, are to our minds invested with grave interest.

None, who are alive to the cause of religious freedom in the world, can be indifferent to the movements and destiny of this little colony. Henceforth, Antigua is the morning star of our nation, and though it glimmers faintly through a lurid sky, yet we hail it, and catch at every ray as the token of a bright sun which may yet burst gloriously upon us.

BARBADOES

CHAPTER I.

PASSAGE

Barbadoes was the next island which we visited. Having failed of a passage in the steamer,[[A](#)] (on account of her leaving Antigua on the Sabbath,) we were reduced to the necessity of sailing in a small schooner, a vessel of only seventeen tons burthen, with no cabin but a mere *hole*, scarcely large enough to receive our baggage. The berths, for there were two, had but one mattress between them; however, a foresail folded made up the complement.

[Footnote [A](#): There are several English steamers which ply between Barbadoes and Jamaica, touching at several of the intermediate and surrounding islands, and carrying the mails.]

The being for the most part directly against us, we were seven days in reaching Barbadoes. Our aversion to the sepulchre-like cabin obliged us to spend, not the days only, but the nights mostly on the open deck. Wrapping our cloaks about us, and drawing our fur caps over our faces, we slept securely in the soft air of a tropical clime, undisturbed save by the hoarse voice of the black captain crying "ready, bout" and the flapping of the sails, and the creaking of the cordage, in the frequent tackings of our staunch little sea-boat. On our way we passed under the lee of Guadaloupe and to the windward of Dominica, Martinique and St. Lucia. In passing Guadaloupe, we were obliged to keep at a league's distance from the land, in obedience to an express regulation of that colony prohibiting small English vessels from approaching any nearer. This is a precautionary measure against the escape of slaves to the English islands. Numerous small vessels, called *guarda costas*, are stationed around the coast to warn off vessels and seize upon all slaves attempting to make their escape. We were informed that the eagerness of the French negroes to taste the sweets of liberty, which they hear to exist in the surrounding English islands, is so great, that notwithstanding all the vigilance by land and sea, they are escaping in vast numbers. They steal to the shores by night, and seizing upon any sort of vessel within their reach, launch forth and make for Dominica, Montserrat, or Antigua. They have been known to venture out in skiffs, canoes, and such like hazardous conveyances, and make a voyage of fifty or sixty miles; and it is not without reason supposed, that very many have been lost in these eager darings for freedom.

Such is their defiance of dangers when liberty is to be won, that old ocean, with its wild storms, and fierce monsters, and its yawning deep, and even the superadded terrors of armed vessels ever hovering around the island, are barriers altogether ineffectual to prevent escape. The western side of Guadaloupe, along which we passed, is hilly and little cultivated. It is mostly occupied in pasturage. The sugar estates are on the opposite side of the island, which stretches out eastward in a low sloping country, beautifully situated for sugar cultivation. The hills were covered with trees, with here and there small patches of cultivated grounds where the negroes raise provisions. A deep rich verdure covered all that portion of the island which we saw. We were a day and night in passing the long island of Guadaloupe. Another day and night were spent in beating through the channel between Gaudaloupe and Dominica: another day in passing the latter island, and then we stood or Martinique. This is the queen island of the French West Indies. It is fertile and healthful, and though not so large as Guadaloupe, produces a larger revenue. It has large streams of water, and many of the sugar mills are worked by them. Martinique and Dominica are both very mountainous. Their highest peaks are constantly covered with clouds, which in their varied siftings, now wheeling around, then rising or falling, give the hills the appearance of smoking volcanoes. It was not until the eighth day of the voyage, that we landed at Barbadoes. The passage from Barbadoes to Antigua seldom occupies more than three days, the wind being mostly in that direction.

In approaching Barbadoes, it presented an entirely difference appearance from that of the islands we had passed on the way. It is low and level, almost wholly destitute of trees. As we drew nearer we discovered in every direction the marks of its extraordinary cultivation. The cane fields and provision grounds in alternate patches cover the island with one continuous mantle of green. The mansions of the planters, and the clusters of negro houses, appear at shore intervals dotting the face of the island, and giving to it the appearance of a vast village interspersed with verdant gardens.

We "rounded up" in the bay, off Bridgetown, the principal place in Barbadoes, where we underwent a searching examination by the health officer; who, after some demurring, concluded that we might pass muster. We took lodgings in Bridgetown with Mrs. M., a colored lady.

The houses are mostly built of brick or stone, or wood plastered. They are seldom more than two stories high, with flat roofs, and huge window shutters and doors--the structures of a hurricane country. The streets are narrow and crooked, and formed of white marle, which reflects the sun with a brilliancy half blinding to the eyes. Most of the buildings are occupied as stores below and dwelling houses above, with piazzas to the upper story, which jut over the narrow streets, and afford a shade for the side walks. The population of Bridgetown is about 30,000. The population of the island is about 140,000, of whom nearly 90,000 are apprentices, the remainder are free colored and white in the proportion of 30,000 free colored and 20,000 whites. The large population exists on an island not more than twenty miles long, by fifteen broad. The whole island is under the most vigorous and systematic culture. There is scarcely a foot of productive land that is not brought into requisition. There is no such thing as a forest of any extent in the island. It is thus that, notwithstanding the insignificance of its size, Barbadoes ranks among the British islands next to Jamaica in value and importance. It was on account of its conspicuous standing among the English colonies, that we were induced to visit it, and there investigate the operations of the apprenticeship system.

Our principal object in the following tales is to give an account of the working of the apprenticeship system, and to present it in contrast with that of entire freedom, which has been described minutely in our account of Antigua. The apprenticeship was designed as a sort of preparation for freedom. A statement of its results will, therefore, afford no small data for deciding upon the general principle of *gradualism*!

We shall pursue a plan less labored and prolix than that which it seemed necessary to adopt in treating of Antigua. As that part of the testimony which respects the abolition of slavery, and the sentiments of the planters is substantially the same with what is recorded in the foregoing pages, we shall be content with presenting it in the sketch of our travels throughout the island, and our interviews with various classes of men. The testimony respecting the nature and operations of the apprenticeship system, will be embodied in a more regular form.

VISIT TO THE GOVERNOR.

At an early day after our arrival we called on the Governor, in pursuance of the etiquette of the island, and in order to obtain the assistance of his Excellency in our inquiries. The present Governor is Sir Evan John Murray McGregor, a Scotchman of Irish reputation. He is the present chieftain of the McGregor clan, which figures so illustriously in the history of Scotland. Sir Evan has been distinguished for his victory in war, and he now bears the title of Knight, for his achievements in the British service. He is Governor-General of the windward islands, which include Barbadoes, Grenada, St. Vincent's, and Tobago. The government house, at which he resides, is about two miles from town. The road leading to it is a delightful one, lined with cane fields, and pasture grounds, all verdant with the luxuriance of midsummer. It passes by the cathedral, the king's house, the noble residence of the Archdeacon, and many other fine mansions. The government house is situated in a pleasant eminence, and surrounded with a large garden, park, and entrance yard. At the large outer gate, which gives admittance to the avenue leading to the house, stood a *black* sentinel in his military dress, and with a gun on his shoulder, pacing to and fro. At the door of the house we found another black soldier on guard. We were ushered into the dining hall, which seems to serve as ante-chamber when not otherwise used. It is a spacious airy room, overhung with chandeliers and lamps in profusion, and bears the marks of many scenes of mirth and wassail. The eastern windows, which extend from the ceiling to the floor, look out upon a garden filled with shrubs and flowers, among which we recognised a rare variety of the floral family in full bloom. Every thing around--the extent of the buildings, the garden, the park, with deer browsing amid the tangled shrubbery--all bespoke the old English style and dignity.

After waiting a few minutes, we were introduced to his Excellency, who received us very kindly. He conversed freely on the subject of emancipation, and gave his opinion decidedly in favor of unconditional freedom. He has been in the West Indies five years, and resided at Antigua and Dominica before he received his present appointment; he has visited several other islands besides. In no island that he has visited have affairs gone on so quietly and satisfactorily to all parties as in Antigua. He remarked that he was ignorant of the character of the black population of the United States, but from what he knew of their character in the West Indies, he could not avoid the conclusion that immediate emancipation was

entirely safe. He expressed his views of the apprenticeship system with great freedom. He said it was vexatious to all parties.

He remarked that he was so well satisfied that emancipation was safe and proper, and that unconditional freedom was better than apprenticeship, that had he the power, he would emancipate every apprentice to-morrow. It would be better both for the planter and the laborer.

He thought the negroes in Barbadoes, and in the windward islands generally, now as well prepared for freedom as the slaves of Antigua.

The Governor is a dignified but plain man, of sound sense and judgement, and of remarkable liberality. He promised to give us every assistance, and said, as we arose to leave him, that he would mention the object of our visit to a number of influential gentlemen, and that we should shortly hear from him again.

A few days after our visit to the Governor's, we called on the Rev. Edward Elliott, the Archdeacon at Barbadoes, to whom we had been previously introduced at the house of a friend in Bridgetown. He is a liberal-minded man. In 1812, he delivered a series of lectures in the cathedral on the subject of slavery. The planters became alarmed--declared that such discourses would lead to insurrection, and demanded that they should lie abandoned. He received anonymous letters threatening him with violence unless he discontinued them. Nothing daunted, however, he went through the course, and afterwards published the lectures in a volume.

The Archdeacon informed us that the number of churches and clergymen had increased since emancipation; religious meetings were more fully attended, and the instructions given had manifestly a greater influence. Increased attention was paid to *education* also. Before emancipation the planters opposed education, and as far as possible, prevented the teachers from coming to the estates. Now they encouraged it in many instances, and where they do not directly encourage, they make no opposition. He said that the number of marriages had very much increased since the abolition of slavery. He had resided in Barbados for twelve years, during which time he had repeatedly visited many of the neighboring islands. He thought the negroes of Barbadoes *were as well prepared for freedom in 1834, as those of Antigua*, and that there would have been no bad results had entire

emancipation been granted at that time. He did not think there was the least danger of insurrection. On this subject he spoke the sentiments of the inhabitants generally. He did not suppose there were five planters on the island, who entertained any fears on this score *now*.

On one other point the Archdeacon expressed himself substantially thus: The planters undoubtedly treated their slaves better during the anti-slavery discussions in England.

The condition of the slaves was very much mitigated by the efforts which were made for their entire freedom. The planters softened down, the system of slavery as much as possible. *They were exceedingly anxious to put a stop to discussion and investigation.*

Having obtained a letter of introduction from an American merchant here to a planter residing about four miles from town, we drove out to his estate. His mansion is pleasantly situated on a small eminence, in one of the coolest and most inviting retreats which is to be seen in this clime, and we were received by its master with all the cordiality and frankness for which Barbados is famed. He introduced us to his family, consisting of three daughters and two sons, and invited us to stop to dinner. One of his daughters, now here on a visit, is married to an American, a native of New York, but now a merchant in one of the southern states, and our connection as fellow countrymen with one dear to them, was an additional claim to their kindness and hospitality.

He conducted us through all the works and out-buildings, the mill, boiling-house, caring-house, hospital, store-houses, &c. The people were at work in the mill and boiling-house, and as we passed, bowed and bade us "good mornin', massa," with the utmost respect and cheerfulness. A white overseer was regulating the work, but wanted the insignia of slaveholding authority, which he had borne for many years, the *whip*. As we came out, we saw in a neighboring field a gang of seventy apprentices, of both sexes, engaged in cutting up the cane, while others were throwing it into carts to be carried to the mill. They were all as quietly and industriously at work as any body of our own farmers or mechanics. As we were looking at them, Mr. C., the planter, remarked, "those people give me more work than when slaves. This estate was never under so good cultivation as at the present time."

He took us to the building used as the mechanics' shop. Several of the apprentices were at work in it, some setting up the casks for sugar, others repairing utensils. Mr. C. says all the work of the estate is done by the apprentices. His carts are made, his mill kept in order, his coopering and blacksmithing are all done by them. "All these buildings," said he, "even to the dwelling-house, were built after the great storm of 1831, by the slaves."

As we were passing through the hospital, or sick-house, as it is called by the blacks, Mr. C. told us he had very little use for it now. There is no skulking to it as there was under the old system.

Just as we were entering the door of the house, on our return, there was an outcry among a small party of the apprentices who were working near by. Mr. C. went to them and inquired the cause. It appeared that the overseer had struck one of the lads with a stick. Mr. C. reproved him severely for the act, and assured him if he did such a thing again he would take him before a magistrate.

During the day we gathered the following information:--

Mr. C. had been a planter for thirty-six years. He has had charge of the estate on which he now resides ten years. He is the attorney for two other large estates a few miles from this, and has under his superintendence, in all, more than a thousand apprenticed laborers. This estate consists of six hundred and sixty-six acres of land, most of which is under cultivation either in cane or provisions, and has on it three hundred apprentices and ninety-two free children. The average amount of sugar raised on it is two hundred hogsheads of a ton each, but this year it will amount to at least two hundred and fifty hogsheads--the largest crop ever taken off since he has been connected with it. He has planted thirty acres additional this year. The island has never been under so good cultivation, and is becoming better every year.

During our walk round the works, and during the day, he spoke several times in general terms of the great blessings of emancipation.

Emancipation is as great a blessing to the master as to the slave. "Why," exclaimed Mr. C., "it was emancipation to me. I assure you the first of August brought a great, *great* relief to me. I felt myself, for the first time, a

freeman on that day. You cannot imagine the responsibilities and anxieties which were swept away with the extinction of slavery."

There were many unpleasant and annoying circumstances attending slavery, which had a most pernicious effect on the master. There was continual jealousy and suspicion between him and those under him. They looked on each other as sworn enemies, and there was kept up a continual system of plotting and counterplotting. Then there was the flogging, which was a matter of course through the island. To strike a slave was as common as to strike a horse--then the punishments were inflicted so unjustly, in innumerable instances, that the poor victims knew no more why they were punished than the dead in their graves. The master would be a little ill--he had taken a cold, perhaps, and felt irritable--something were wrong--his passion was up, and away went some poor fellow to the whipping post. The slightest offence at such a moment, though it might have passed unnoticed at another time, would meet with the severest punishment. He said he himself had more than once ordered his slaves to be flogged in a passion, and after he became cool he would have given guineas not to have done it. Many a night had he been kept awake in thinking of some poor fellow whom he had shut up in the dungeon, and had rejoiced when daylight came. He feared lest the slave might die before morning; either cut his throat or dash his head against the wall in his desperation. He has known such cases to occur.

The apprenticeship will not have so beneficial an effect as he hoped it would, on account of an indisposition on the part of many of the planters to abide by its regulations. The planters generally are doing very little to prepare the apprentices for freedom; but some are doing very much to unprepare them. They are driving the people from them by their conduct.

Mr. C. said he often wished for emancipation. There were several other planters among his acquaintance who had the same feelings, but did not dare express them. Most of the planters, however, were violently opposed. Many of them declared that emancipation could not and should not take place. So obstinate were they, that they would have sworn on the 31st of July, 1831, that emancipation could not happen. *These very men now see and acknowledge the benefits which have resulted from the new system.*

The first of August passed off very quietly. The people labored on that day as usual, and had a stranger gone over the island, he would not have suspected any change had taken place. Mr. C. did not expect his people would go to work that day. He told them what the conditions of the new system were, and that after the first of August, they would be required to turn out to work at six o'clock instead of five o'clock as before. At the appointed hour every man was at his post in the field. Not one individual was missing.

The apprentices do more work in the nine hours required by law, than in twelve hours during slavery.

His apprentices are perfectly willing to work for him during their own time. He pays them at the rate of twenty-five cents a day. The people are less quarrelsome than when they were slaves.

About eight o'clock in the evening, Mr. C. invited us to step out into the piazza. Pointing to the houses of the laborers, which were crowded thickly together, and almost concealed by the cocoa-nut and calabash trees around them, he said, "there are probably more than four hundred people in that village. All my own laborers, with their free children, are retired for the night, and with them are many from the neighboring estates." We listened, but all was still, save here and there a low whistle from some of the watchmen. He said that night was a specimen of every night now. But it had not always been so. During slavery these villages were oftentimes a scene of bickering, revelry, and contention. One might hear the inmates reveling and shouting till midnight. Sometimes it would be kept up till morning. Such scenes have much decreased, and instead of the obscene and heathen songs which they used to sing, they are learning hymns from the lips of their children.

The apprentices are more trusty. They are more faithful in work which is given them to do. They take more interest in the prosperity of the estate generally, in seeing that things are kept in order, and that the property is not destroyed.

They are more open-hearted. Formerly they used to shrink before the eyes of the master, and appear afraid to meet him. They would go out of their way to avoid him, and never were willing to talk with him. They never liked

to have him visit their houses; they looked on him as a spy, and always expected a reprimand, or perhaps a flogging. Now they look up cheerfully when they meet him, and a visit to their homes is esteemed a favor. Mr. C. has more confidence in his people than he ever had before.

There is less theft than during slavery. This is caused by greater respect for character, and the protection afforded to property by law. For a slave to steal from his master was never considered wrong, but rather a meritorious act. He who could rob the most without being detected was the best fellow. The blacks in several of the islands have a proverb, that for a thief to steal from a thief makes God laugh.

The blacks have a great respect for, and even fear of law. Mr. C. believes no people on earth are more influenced by it. They regard the same punishment, inflicted by a magistrate, much more than when inflicted by their master. Law is a kind of deity to them, and they regard it with great reverence and awe.

There is no insecurity now. Before emancipation there was a continual fear of insurrection. Mr. C. said he had lain down in bed many a night fearing that his throat would be cut before morning. He has started up often from a dream in which he thought his room was filled with armed slaves. But when the abolition bill passed, his fears all passed away. He felt assured there would be no trouble then. The motive to insurrection was taken away. As for the cutting of throats, or insult and violence in any way, he never suspects it. He never thinks of fastening his door at night now. As we were retiring to bed he looked round the room in which we had been sitting, where every thing spoke of serenity and confidence--doors and windows open, and books and plate scattered about on the tables and sideboards. "You see things now," he said, "just as we leave them every night, but you would have seen quite a different scene had you come here a few years ago."

Mr. C. thinks the slaves of Barbadoes might have been entirely and immediately emancipated as well as those of Antigua. The results, he doubts not, would have been the same.

He has no fear of disturbance or insubordination in 1840. He has no doubt that the people will work. That there may be a little unsettled, excited,

experimenting feeling for a short time, he thinks probable--but feels confident that things generally will move on peaceably and prosperously. He looks with much more anxiety to the emancipation of the non-*praedials* in 1838.

There is no disposition among the apprentices to revenge their wrongs. Mr. C. feels the utmost security both of person and property.

The slaves were very much excited by the discussions in England. They were well acquainted, with them, and looked and longed for the result. They watched every arrival of the packet with great anxiety. The people on his estate often knew its arrival before he did. One of his daughters remarked, that she could see their hopes flashing from their eyes. They manifested, however, no disposition to rebel, waiting in anxious but quiet hope for their release. Yet Mr. C. had no doubt, that if parliament had thrown out the emancipation bill, and all measures had ceased for their relief, there would have been a general insurrection.--While there was hope they remained peaceable, but had hope been destroyed it would have been buried in blood.

There was some dissatisfaction among the blacks with the apprenticeship. They thought they ought to be entirely free, and that their masters were deceiving them. They could not at first understand the conditions of the new system--there was some murmuring among them, but they thought it better, however, to wait six years for the boon, than to run the risk of losing it altogether by revolt.

The expenses of the apprenticeship are about the same as during slavery. But under the free system, Mr. C. has no doubt they will be much less. He has made a calculation of the expenses of cultivating the estate on which he resides for one year during slavery, and what they will probably be for one year under the free system. He finds the latter are less by about \$3,000.

Real estate has increased in value more than thirty per cent. There is greater confidence in the security of property. Instances were related to us of estates that could not be sold at any price before emancipation, that within the last two years have been disposed of at great prices.

The complaints to the magistrates, on the part of the planters, were very numerous at first, but have greatly diminished. They are of the most trivial

and even ludicrous character. One of the magistrates says the greater part of the cases that come before him are from old women who cannot get their coffee early enough in the morning! and for offences of equal importance.

Prejudice has much diminished since emancipation. The discussions in England prior to that period had done much to soften it down, but the abolition of slavery has given it its death blow.

Such is a rapid sketch of the various topics touched upon during our interview with Mr. C. and his family.

Before we left the hospitable mansion of Lear's, we had the pleasure of meeting a company of gentlemen at dinner. With the exception of one, who was provost-marshal, they were merchants of Bridgetown. These gentlemen expressed their full concurrence in the statements of Mr. C., and gave additional testimony equally valuable.

Mr. W., the provost-marshal, stated that he had the supervision of the public jail, and enjoyed the best opportunity of knowing the state of crime, and he was confident that there was a less amount of crime since emancipation than before. He also spoke of the increasing attention which the negroes paid to neatness of dress and personal appearance.

The company broke up about nine o'clock, but not until we had seen ample evidence of the friendly feelings of all the gentlemen toward our object. There was not a single dissenting voice to any of the statements made, or any of the sentiments expressed. This fact shows that the prevailing feeling is in favor of freedom, and that too on the score of policy and self-interest.

Dinner parties are in one sense a very safe pulse in all matters of general interest. They rarely beat faster than the heart of the community. No subject is likely to be introduced amid the festivities of a fashionable circle, until it is fully endorsed by public sentiment.

Through the urgency of Mr. C., we were induced to remain all night. Early the next morning, he proposed a ride before breakfast to Scotland. Scotland is the name given to an abrupt, hilly section, in the north of the island. It is about five miles from Mr. C.'s, and nine from Bridgetown. In approaching, the prospect bursts suddenly upon the eye, extorting an involuntary exclamation of surprise. After riding for miles, through a country which

gradually swells into slight elevations, or sweeps away in rolling plains, covered with cane, yams, potatoes, eddoes, corn, and grass, alternately, and laid out with the regularity of a garden; after admiring the cultivation, beauty, and skill exhibited on every hand, until almost wearied with viewing the creations of art; the eye at once falls upon a scene in which is crowded all the wildness and abruptness of nature in one of her most freakish moods--a scene which seems to defy the hand of cultivation and the graces of art. We ascended a hill on the border of this section, which afforded us a complete view. To describe it in one sentence, it is an immense basin, from two to three miles in diameter at the top, the edges of which are composed of ragged hills, and the sides and bottom of which are diversified with myriads of little hillocks and corresponding indentations. Here and there is a small sugar estate in the bottom, and cultivation extends some distance up the sides, though this is at considerable risk, for not infrequently, large tracts of soil, covered with cane or provisions, slide down, over-spreading the crops below, and destroying those which they carry with them.

Mr. C. pointed to the opposite side of the basin to a small group of stunted trees, which he said were the last remains of the Barbadoes forests. In the midst of them there is a boiling spring of considerable notoriety.

In another direction, amid the rugged precipices, Mr. C. pointed out the residences of a number of poor white families, whom he described as the most degraded, vicious, and abandoned people in the island--"very far below the negroes." They live promiscuously, are drunken, licentious, and poverty-stricken,--a body of most squalid and miserable human beings.

From the height on which we stood, we could see the ocean nearly around the island, and on our right and left, overlooking the basin below us, rose the two highest points of land of which Barbadoes can boast. The white marl about their naked tops gives them a bleak and desolate appearance, which contrasts gloomily with the verdure of the surrounding cultivation.

After we had fully gratified ourselves with viewing the miniature representation of old Scotia, we descended again into the road, and returned to Lear's. We passed numbers of men and women going towards town with loads of various kinds of provisions on their heads. Some were black, and

others were white--of the same class whose huts had just been shown us amid the hills and ravines of Scotland. We observed that the latter were barefoot, and carried their loads on their heads precisely like the former. As we passed these busy pedestrians, the blacks almost uniformly courtesied or spoke; but the whites did not appear to notice us. Mr. C inquired whether we were not struck with this difference in the conduct of the two people, remarking that he had always observed it. It is very seldom, said he, that I meet a negro who does not speak to me politely; but this class of whites either pass along without looking up, or cast a half-vacant, rude stare into one's face, without opening their mouths. Yet this people, he added, veriest raggamuffins that they are, despise the negroes, and consider it quite degrading to put themselves on term of equity with them. They will beg of blacks more provident and industrious than themselves, or they will steal their poultry and rob their provision grounds at night; but they would disdain to associate with them. Doubtless these *sans culottes* swell in their dangling rags with the haughty consciousness that they possess *white skins*. What proud reflections they must have, as they pursue their barefoot way, thinking on their high lineage, and running back through the long list of their illustrious ancestry whose notable badge was a *white skin*! No wonder they cannot stop to bow to the passing stranger. These sprouts of the Caucasian race are known among the Barbadians by the rather ungracious name of *Red Shanks*. They are considered the pest of the island, and are far more troublesome to the police, in proportion to their numbers, than the apprentices. They are estimated at about eight thousand.

The origin of this population we learned was the following: It has long been a law in Barbadoes, that each proprietor should provide a white man for every sixty slaves in his possession, and give him an acre of land, a house, and arms requisite for defence of the island in case of insurrection. This caused an importation of poor whites from Ireland and England, and their number has been gradually increasing until the present time.

During our stay of nearly two days with Mr. C., there was nothing to which he so often alluded as to the security from danger which was now enjoyed by the planters. As he sat in his parlor, surrounded by his affectionate family, the sense of personal and domestic security appeared to be a luxury to him. He repeatedly expressed himself substantially thus: "During the

existence of slavery, how often have I retired to bed *fearing that I should have my throat cut before morning*, but *now* the danger is all over."

We took leave of Lear's, after a protracted visit, not without a pressing invitation from Mr. C. to call again.

SECOND VISIT TO LEAR'S.

The following week, on Saturday afternoon, we received a note from Mr. C., inviting us to spend the Sabbath at Lear's, where we might attend service at a neighboring chapel, and see a congregation composed chiefly of apprentices. On our arrival, we received a welcome from the residents, which reassured us of their sympathy in our object. We joined the family circle around the centre table, and spent the evening in free conversation on the subject of slavery.

During the evening Mr. C. stated, that he had lately met with a planter who, for some years previous to emancipation, and indeed up to the very event, maintained that it was utterly impossible for such a thing ever to take place. The mother country, he said, could not be so mad as to take a step which must inevitably ruin the colonies. Now, said Mr. C., this planter would be one of the last in the island to vote for a restoration of slavery; nay, he even wishes to have the apprenticeship terminated at once, and entire freedom given to the people. Such changes as this were very common.

Mr. C. remarked that during slavery, if the negro ventured to express an opinion about any point of management, he was met at once with a reprimand. If one should say, "I think such a course would be best," or, "Such a field of cane is fit for cutting," the reply would be, "*Think!* you have no right to think any thing about it. *Do as I bid you.*" Mr. C. confessed frankly, that he had often used such language himself. Yet at the same time that he affected such contempt for the opinions of the slaves, he used to go around secretly among the negro houses at night to overhear their conversation, and ascertain their views. Sometimes he received very valuable suggestions from them, which he was glad to avail himself of, though he was careful not to acknowledge their origin.

Soon after supper, Miss E., one of Mr. C.'s daughters, retired for the purpose of teaching a class of colored children which came to her on

Wednesday and Saturday nights. A sister of Miss E. has a class on the same days at noon.

During the evening we requested the favor of seeing Miss E.'s school. We were conducted by a flight of stairs into the basement story, where we found her sitting in a small recess, and surrounded by a dozen negro girls; from the ages of eight to fifteen. She was instructing them from the Testament, which most of them could read fluently. She afterwards heard them recite some passages which they had committed to memory, and interspersed the recitations with appropriate remarks of advice and exhortation.

It is to be remarked that Miss E. commenced instructing after the abolition; before that event the idea of such an employment would have been rejected as degrading.

At ten o'clock on Sabbath morning, we drove to the chapel of the parish, which is a mile and a half from Lear's. It contains seats for five hundred persons. The body of the house is appropriated to the apprentices. There were upwards of four hundred persons, mostly apprentices, present, and a more quiet and attentive congregation we have seldom seen. The people were neatly dressed. A great number of the men wore black or blue cloth. The females were generally dressed in white. The choir was composed entirely of blacks, and sung with characteristic excellence.

There was so much intelligence in the countenances of the people, that we could scarcely believe we were looking on a congregation of lately emancipated slaves.

We returned to Lear's. Mr. C. noticed the change which has taken place in the observance of the Sabbath since emancipation. Formerly the smoke would be often seen at this time of day pouring from the chimneys of the boiling-houses; but such a sight has not been seen since slavery disappeared.

Sunday used to be the day for the negroes to work on their grounds; now it is a rare thing for them to do so. Sunday markets also prevailed throughout the island, until the abolition of slavery.

Mr. C. continued to speak of slavery. "I sometimes wonder," said he, "at myself, when I think how long I was connected with slavery; but self-interest and custom blinded me to its enormities." Taking a short walk towards sunset, we found ourselves on the margin of a beautiful pond, in which myriads of small gold fishes were disporting--now circling about in rapid evolutions, and anon leaping above the surface, and displaying their brilliant sides in the rays of the setting sun. When we had watched for some moments their happy gambols, Mr. C. turned around and broke a twig from a bush that stood behind us; "*there is a bush,*" said he, "*which has committed many a murder.*" On requesting him to explain, he said, that the root of it was a most deadly poison, and that the slave women used to make a decoction of it and give to their infants to destroy them; many a child had been murdered in this way. Mothers would kill their children, rather than see them *grow up to be slaves*. "Ah," he continued, in a solemn tone, pausing a moment and looking at us in a most earnest manner, "I could write a book about the evils of slavery. I could write a book about these things."

What a volume of blackness and blood! [[A](#)]

[Footnote [A](#): We are here reminded of a fact stated by Mr. C. on another occasion. He said, that he once attended at the death of a planter who had been noted for his severity to his slaves. It was the most horrid scene he ever witnessed. For hours before his death he was in the extremest agony, and the only words which he uttered were, "Africa. O Africa!" These words he repeated every few minutes, till he died. And such a ghastly countenance, such distortions of the muscles, such a hellish glare of the eye, and such convulsions of the body--it made him shudder to think of them.]

When we arose on Monday morning, the daylight has scarcely broken. On looking out of the window, we saw the mill slowly moving in the wind, and the field gang were going out to their daily work. Surely, we thought, this does not look much like the laziness and insubordination of freed negroes. After dressing, we walked down to the mill, to have some conversation with the people. They all bade us a cordial "good mornin'." The *tender* of the mill was an old man, whose despised locks were gray and thin, and on whose brow the hands of time and sorrow had written many effaceless lines. He appeared hale and cheerful, and answered our questions in distinct

intelligible language. We asked him how they were all getting along under the new system. "Very well, massa," said he, "very well, thank God. All peaceable and good." "Do you like the apprenticeship better then slavery?" "Great deal better, massa; we is doing well now." "You like the apprenticeship as well as freedom, don't you?" "O *no* me massa, freedom *till better*."

"What will you do when you are entirely free?"

"We must work; all have to work when de free come, white and black." "You are old, and will not enjoy freedom long; why do you wish for freedom, then?" "Me want to *die* free, massa--good ting to die free, and me want to see *children* free too."

We continued at Lear's during Monday, to be in readiness for a tour to the windward of the island, which Mr. C. had projected for us, and on which we were to set out early the next morning. In the course of the day we had opportunities of seeing the apprentices in almost every situation--in the field, at the mill, in the boiling-house, moving to and from work, and at rest. In every aspect in which we viewed them, they appeared cheerful, amiable, and easy of control. It was admirable to see with what ease and regularity every thing moved. An estate of nearly seven hundred acres, with extensive agriculture, and a large manufactory and distillery, employing three hundred apprentices, and supporting twenty-five horses, one hundred and thirty head of horned cattle, and hogs, sheep; and poultry in proportion, is manifestly a most complicated machinery. No wonder it should have been difficult to manage during slavery, when the main spring was absent, and every wheel out of gear.

We saw the apprentices assemble after twelve o'clock, to receive their allowances of yams. These provisions are distributed to them twice every week--on Monday and Thursday. They were strewed along the yard in heaps of fifteen pounds each. The apprentices came with baskets to get their allowances. It resembled a market scene, much chattering and talking, but no anger. Each man, woman, and child, as they got their baskets filled, placed them on their heads, and marched off to their several huts.

On Tuesday morning, at an early hour, Mr. C. took us in his phaeton on our projected excursion. It was a beautiful morning. There was a full breeze

from the east, which had already started the ponderous wings of the wind-mills, in every direction. The sun was shaded by light clouds, which rendered the air quite cool. Crossing the rich valley in which the Bell estate and other noble properties are situated, we ascended the cliffs of St. John's--a ridge extending through the parish of that name and as we rode along its top, eastward, we had a delightful view of sea and land. Below us on either hand lay vast estates glowing in the, verdure of summer, and on three sides in the distance stretched the ocean. Rich swells of land, cultivated and blooming like a vast garden, extended to the north as far as the eye could reach, and on every other side down to the water's edge. One who has been accustomed to the wildness of American scenery, and to the imperfect cultivation, intercepted with woodland, which yet characterizes the even the oldest portions of the United States, might revel for a time amid the sunny meadows. The waving cane fields, the verdant provision grounds, the acres of rich black soil without a blade of grass, and divided into beds two feet square for the cane plants with the precision almost of the cells of a honey comb; and withal he might be charmed with the luxurious mansions--more luxurious than superb--surrounded with the white cedar, the cocoa-nut tree, and the tall, rich mountain cabbage--the most beautiful of all tropical trees; but perchance it would not require a very long excursion to weary him with the artificiality of the scenery, and cause him to sigh for the "woods and wilds," the "banks and braes," of his own majestic country.

After an hour and a half's drive, we reached Colliton estate, where we were engaged to breakfast. We met a hearty welcome from the manager, Samuel Hinkston, Esq. we were soon joined by several gentlemen whom Mr. H. had invited to take breakfast with us; these were the Rev. Mr. Gittens, rector of St. Philip's parish, (in which Colliton estate is situated,) and member of the colonial council; Mr. Thomas, an extensive attorney of Barbadoes; and Dr. Bell, a planter of Demerara--then on a visit to the island. We conversed with each of the gentlemen separately, and obtained their individual views respecting emancipation.

Mr. Hinkston has been a planter for thirty-six years, and is highly esteemed throughout the island. The estate which he manages, ranks among the first in the island. It comprises six hundred acres of superior land, has a population of two hundred apprentices, and yields an average crop of one hundred and eighty hogsheads. Together with his long experience and

standing as a planter, Mr. H. has been for many years local magistrate for the parish in which he resides. From these circumstances combined, we are induced to give his opinions on a variety of points.

1. He remarked that the planters were getting along *infinitely* better under the new system than they ever did under the old. Instead of regretting that the change had taken place, he is looking forward with pleasure to a better change in 1840, and he only regrets that it is not to come sooner.

2. Mr. H. said it was generally conceded that the island was never under better cultivation than at the present time. The crops for this year will exceed the average by several thousand hogsheads. The canes were planted in good season, and well attended to afterwards.

3. Real estate has risen very much since emancipation. Mr. H. stated that he had lately purchased a small sugar estate, for which he was obliged to give several hundred pounds more than it would have cost him before 1834.

4. There is not the least sense of insecurity now. Before emancipation there was much fear of insurrection, but that fear passed away with slavery.

5. The prospect for 1840 is good. That people have no fear of ruin after emancipation, is proved by the building of sugar works on estates which never had any before, and which were obliged to cart their canes to neighbouring estates to have them ground and manufactured. There are also numerous improvements making on the larger estates. Mr. H. is preparing to make a new mill and boiling-house on Colliton, and other planters are doing the same. Arrangements are making too in various directions to build new negro villages on a more commodious plan.

6. Mr. H. says he finds his apprentices perfectly ready to work for wages during their own time. Whenever he needs their labor on Saturday, he has only to ask them, and they are ready to go to the mill, or field at once. There has not been an instance on Colliton estate in which the apprentices have refused to work, either during the hours required by law, or during their own time. When he does not need their services on Saturday, they either hire themselves to other estates or work on their own grounds.

7. Mr. H. was ready to say, both as a planter and a magistrate, that vice and crime generally had decreased, and were still on the decrease. Petty thefts

are the principal offences. He has not had occasion to send a single apprentice to the court of sessions for the last six months.

8. He has no difficulty in managing his people--far less than he did when they were slaves. It is very seldom that he finds it necessary to call in the aid of the special magistrate. Conciliatory treatment is generally sufficient to maintain order and industry among the apprentices.

9. He affirms that the negroes have no disposition to be revengeful. He has never seen any thing like revenge.

10. His people are as far removed from insolence as from vindictiveness. They have been uniformly civil.

11. His apprentices have more interest in the affairs of the estate, and he puts more confidence in them than he ever did before.

12. He declares that the working of the apprenticeship, as also that of entire freedom, depends entirely on the *planters*. If they act with common humanity and reason, there is no fear but that the apprentices will be peaceable.

Mr. Thomas is attorney for fifteen estates, on which there are upwards of two thousand five hundred apprentices. We were informed that he had been distinguished as a *severe disciplinarian* under the old reign, or in plain terms, had been a *cruel man and a hard driver*; but he was one of those who, since emancipation, have turned about and conformed their mode of treatment to the new system. In reply to our inquiry how the present system was working, he said, "infinitely better (such was his language) than slavery. I succeed better on all the estates under my charge than I did formerly. I have far less difficulty with the people. I have no reason to complain of their conduct. However, I think they will do still better after 1840."

We made some inquiries of Dr. Bell concerning the results of abolition in Demerara. He gave a decidedly flattering account of the working of the apprenticeship system. No fears are entertained that Demerara will be ruined after 1840. On the contrary it will be greatly benefited by emancipation. It is now suffering from a want of laborers, and after 1840 there will be an increased emigration to that colony from the older and less

productive colonies. The planters of Demerara are making arrangements for cultivating sugar on a larger scale than ever before. Estates are selling at very high prices. Every thing indicates the fullest confidence on the part of the planters that the prosperity of the colony will not only be permanent, but progressive.

We made some inquiries of Dr. Bell concerning the

After breakfast we proceeded to the Society's estate. We were glad to see this estate, as its history is peculiar. In 1726 it was bequeathed by General Coddington to a society in England, called "The Society for the promotion of Christian Knowledge." The proceeds of the estate were to be applied to the support of an institution in Barbadoes, for educating missionaries of the established order. Some of the provisions of the will were that the estate should always have three hundred slaves upon it; that it should support a school for the education of the negro children who were to be taught a portion of every day until they were twelve years old, when they were to go into the field; and that there should be a chapel built upon it. The negroes belonging to the estate have for upwards of a hundred years been under this kind of instruction. They have all been taught to read, though in many instances they have forgotten all they learned, having no opportunity to improve after they left school. They enjoy some other comforts peculiar to the Society's estate. They have neat cottages built apart--each on a half-acre lot, which belongs to the apprentice and for the cultivation of which he is allowed one day out of the five working days. Another peculiarity is, that the men and women work in separate gangs.

At this estate we procured horses to ride to the College. We rode by the chapel and school-house belonging to the Society's estate which are situated on the row of a high hill. From the same hill we caught a view of Coddington college, which is situated on a low bottom extending from the foot of the rocky cliff on which we stood to the sea shore, a space of quarter of a mile. It is a long, narrow, ill-constructed edifice.

We called on the principal, Rev. Mr. Jones, who received us very cordially, and conducted us over the buildings and the grounds connected with them. The college is large enough to accommodate a hundred students. It is fitted out with lodging rooms, various professors' departments, dining hall,

chapel, library, and all the appurtenances of a university. The number of student at the close of the last term was *fifteen*.

The professors, two in number, are supported by a fund, consisting of £40,000 sterling, which has in part accumulated from the revenue of the estate.

The principal spoke favorably of the operation of the apprenticeship in Barbadoes, and gave the negroes a decided superiority over the lower class of whites. He had seen only one colored beggar since he came to the island, but he was infested with multitudes of white ones.

It is intended to improve the college buildings as soon as the toil of apprentices on the Society's estate furnishes the requisite means. This robbing of God's image to promote education is horrible enough, taking the wages of slavery to spread the kingdom of Christ!

On re-ascending the hill, we called at the Society's school. There are usually in attendance about one hundred children, since the abolition of slavery. Near the school-house is the chapel of the estate, a neat building, capable of holding three or four hundred people. Adjacent to the chapel is the burial ground for the negroes belonging to the Society's estate. We noticed several neat tombs, which appeared to have been erected only a short time previous. They were built of brick, and covered over with lime, so as to resemble white marble slabs. On being told that these were erected by the negroes themselves over the bodies of their friends, we could not fail to note so beautiful an evidence of their civilization and humanity. We returned to the Society's estate, where we exchanged our saddles for the phaeton, and proceeded on our eastward tour.

Mr. C. took us out of the way a few miles to show us one of the few curiosities of which Barbadoes can boast. It is called the "Horse." The shore for some distance is a high and precipitous ledge of rocks, which overhangs the sea in broken cliffs. In one place a huge mass has been riven from the main body of rock and fallen into the sea. Other huge fragments have been broken off in the same manner. In the midst of these, a number of steps have been cut in the rock for the purpose of descending to the sea. At the bottom of these steps, there is a broad platform of solid rock, where one may stand securely, and hear the waves breaking around him like heavy

thunders. Through the fissures we could see the foam and spray mingling with the blue of the ocean, and flashing in the sunshine. To the right, between the largest rock and the main land, there is a chamber of about ten feet wide, and twenty feet long. The fragment, which forms one of its sides, leans towards the main rock, and touches it at top, forming a roof, with here and there a fissure, through which the light enters. At the bottom of the room there is a clear bed of water, which communicates with the sea by a small aperture under the rock. It is as placid as a summer pond, and is fitted with steps for a bathing place. Bathe, truly! with the sea ever dashing against the side, and roaring and reverberating with deafening echo.

On a granite slab, fixed in the side of the rock at the bottom of the first descent is an inscription. Time has very much effaced the letters, but by the aid of Mr. C.'s memory, we succeeded in deciphering them. They will serve as the hundred and first exemplification of the Bonapartean maxim--"There is but one step from the sublime to the ridiculous."

"In this remote, and hoarse resounding place,
Which billows clash, and craggy cliffs embrace,
These babbling springs amid such horrors rise,
But armed with virtue, horrors we despise.
Bathe undismayed, nor dread the impending rock,
'Tis virtue shields us from each adverse shock.

GENIO LOCI SACRUM POSUIT J.R. MARTIS MENSE 1769"

From the "Crane," which is the name given to that section of the country in which the "Horse" is situated, we bent our way in a southerly direction to the Ridge estate, which was about eight miles distant, where we had engaged to dine. On the way we passed an estate which had just been on fire. The apprentices, fearing lest their houses should be burnt, had carried away all the moveables from them, and deposited them in separate heaps, on a newly ploughed field. The very doors and window shutters had been torn off and carried into the field, several acres of which were strewed over with piles of such furniture. Mr. C. was scarcely less struck with this scene than we were, and he assured us that he had never known such providence manifested on a similar occasion during slavery.

At the Ridge estate we met Mr. Clarke, manager at Staple Grove estate, Mr. Applewhitte of Carton, and a brother of Mr. C. The manager, Mr. Cecil, received us with the customary cordiality.

Mr. Clarke is the manager of an estate on which there are two hundred apprentices. His testimony was, that the estate was better cultivated since abolition than before, and that it is far easier to control the laborers, and secure uniformity of labor under the present system. He qualified this remark, by saying, that if harsh or violent measures were used, there would be more difficulty now than during slavery; but kind treatment and a conciliatory spirit never failed to secure peace and industry. At the time of abolition, Mr. C. owned ten slaves, whom he entirely emancipated. Some of these still remain with him as domestics; others are hired on an adjoining estate. One of those who left him to work on another estate, said to him, "Massa, whenever you want anybody to help you, send to me, and I'll come. It makes no odds when it is--I'll be ready at any time--day or night." Mr. C. declared himself thoroughly convinced of the propriety of immediate emancipation; though he was once a violent opposer of abolition. He said, that if he had the power, he would emancipate every apprentice on his estate to-morrow. As we were in the sugar-house examining the quality of the sugar, Mr. C. turned to one of us, and putting his hand on a hogshead, said, "You do not raise this article in your state, (Kentucky,) I believe." On being answered in the negative, he continued, "Well, we will excuse you, then, somewhat in your state--you can't treat your slaves so cruelly there. *This, this* is the dreadful thing! Wherever sugar is cultivated by slaves, there is extreme suffering."

Mr. Applewhitte said emphatically, that there was no danger in entire emancipation. He was the proprietor of more than a hundred apprentices and he would like to see them all free at once.

During a long sitting at the dinner table, emancipation was the topic, and we were gratified with the perfect unanimity of sentiment among these planters. After the cloth was removed, and we were about leaving the table, Mr. Clarke begged leave to propose a toast. Accordingly, the glasses of the planters were once more filled, and Mr. C., bowing to us, gave our health, and "success to our laudable undertaking,"--"*most* laudable undertaking," added Mr. Applewhitte, and the glasses were emptied. Had the glasses

contained water instead of wine, our gratification would have been complete. It was a thing altogether beyond our most sanguine expectations, that a company of planters, all of whom were but three years previous the actual oppressors of the slave, should be found wishing success to the cause of emancipation.

At half past eight o'clock, we resumed our seats in Mr. C.'s phaeton, and by the nearest route across the country, returned to Lear's. Mr. C. entertained us by the way with eulogies upon the industry and faithfulness of his apprentices. It was, he said, one of the greatest pleasures he experienced, to visit the different estates under his charge, and witness the respect and affection which the apprentices entertained towards him. Their joyful welcome, their kind attentions during his stay with them, and their hearty 'good-bye, massa,' when he left, delighted him.

VISIT TO COLONEL ASHBY'S.

We were kindly invited to spend a day at the mansion of Colonel Ashby, an aged and experienced planter, who is the proprietor of the estate on which he resides. Colonel A.'s estate is situated in the parish of Christ Church, and is almost on the extreme point of a promontory, which forms the southernmost part of the island. An early and pleasant drive of nine miles from Bridgetown, along the southeastern coast of the island, brought us to his residence. Colonel A. is a native of Barbadoes, has been a practical planter since 1795, and for a long time a colonial magistrate, and commander of the parish troops. His present estate contains three hundred and fifty acres, and has upon it two hundred and thirty apprentices, with a large number of free children. His average crop is eighty large hogsheads. Colonel A. remarked to us, that he had witnessed many cruelties and enormities under "the reign of terror." He said, that the abolition of slavery had been an incalculable blessing, but added, that he had not always entertained the same views respecting emancipation. Before it took place, he was a violent opposer of any measure tending to abolition. He regarded the English abolitionists, and the anti-slavery members in parliament, with unmingled hatred. He had often cursed Wilberforce most bitterly, and thought that no doom either in this life, or in the life to come, was too bad for him. "But," he exclaimed, "how mistaken I was about that man--I am convinced of it now--O he was a good man--*a noble philanthropist!--if*

there is a chair in heaven, Wilberforce is in it!" Colonel A. is somewhat sceptical, which will account for his hypothetical manner of speaking about heaven.

He said that he found no trouble in managing his apprentices. As local or colonial magistrate, in which capacity he still continued to act he had no cases of serious crime to adjudicate, and very few cases of petty misdemeanor. Colonel A. stated emphatically, that the negroes were not disposed to leave their employment, unless the master was intolerably passionate and hard with them; as for himself, he did not fear losing a single laborer after 1840.

He dwelt much on the trustiness and strong attachment of the negroes, where they are well treated. There were no people in the world that he would trust his property or life with sooner than negroes, provided he had the previous management of them long enough to secure their confidence. He stated the following fact in confirmation of this sentiment. During the memorable insurrection of 1816, by which the neighboring parishes were dreadfully ravaged, he was suddenly called from home on military duty. After he had proceeded some distance, he recollected that he had left five thousand dollars in an open desk at home. He immediately told the fact to his slave who was with him, and sent him back to take care of it. He knew nothing more of his money until the rebellion was quelled, and peace restored. On returning home, the slave led him to a cocoa-nut tree near by the house, and dug up the money, which he had buried under its roots. He found the whole sum secure. The negro, he said, might have taken the money, and he would never have suspected him, but would have concluded that it had been, in common with other larger sums, seized upon by the insurgents. Colonel A. said that it was impossible for him to mistrust the negroes as a body. He spoke in terms of praise also of the *conjugal attachment* of the negroes. His son, a merchant, stated a fact on this subject. The wife of a negro man whom he knew, became afflicted with that loathsome disease, the leprosy. The man continued to live with her, notwithstanding the disease was universally considered contagious and was peculiarly dreaded by the negroes. The man on being asked why he lived with his wife under such circumstances, said, that he had lived with her when she was well, and he could not bear to forsake her when she was in distress.

Colonel A. made numerous inquiries respecting slavery in America. He said there certainly be insurrections in the slaveholding states, unless slavery was abolished. Nothing but abolition could put an end to insurrections.

Mr. Thomas, a neighboring planter, dined with us. He had not carried a complaint to the special magistrate against his apprentices for six months. He remarked particularly that emancipation had been a great blessing to the master; it brought freedom to him as well as to the slave.

A few days subsequent to our visit to Colonel A.'s, the Reverend Mr. Packer, of the Established Church, called at our lodgings, and introduced a planter from the parish of St. Thomas. The planter is proprietor of an estate, and has eighty apprentices. His apprentices conduct themselves very satisfactorily, and he had not carried a half dozen complaints to the special magistrate since 1831. He said that cases of crime were very rare, as he had opportunity of knowing, being local magistrate. There were almost no penal offences brought before him. Many of the apprentices of St. Thomas parish were buying their freedom, and there were several cases of appraisement[[A](#)] every week. The Monday previous, six cases came before him, in four of which the apprentices paid the money on the spot.

[Footnote [A](#): When an apprentice signifies his wish to purchase his freedom, he applies to the magistrate for an appraisement. The appraisement is made by one special and two local magistrates.]

Before this gentleman left, the Rev. Mr. C. called in with Mr. Pigeot, another planter, with whom we had a long conversation. Mr. P. has been a manager for many years. We had heard of him previously as the only planter in the island who had made an experiment in task work prior to abolition. He tried it for twenty months before that period on an estate of four hundred acres and two hundred people. His plan was simply to give each slave an ordinary day's work for a task; and after that was performed, the remainder of the time, if any, belonged to the slave. *No wages were allowed.* The gang were expected to accomplish just as much as they did before, and to do it as well, however long a time it might require; and if they could finish in half a day, the other half was their own, and they might employ it as they saw fit. Mr. P. said, he was very soon convinced of the good policy of the system; though he had one of the most unruly gangs of

negroes to manage in the whole island. The results of the experiment he stated to be these:

1. The usual day's work was done generally before the middle of the afternoon. Sometimes it was completed in five hours.
2. The work was done as well as it was ever done under the old system. Indeed, the estate continued to improve in cultivation, and presented a far better appearance at the close of the twenty months than when he took the charge of it.
3. The trouble of management was greatly diminished. Mr. P. was almost entirely released from the care of overseeing the work: he could trust it to the slaves.
4. The whip was entirely laid aside. The idea of having a part of the day which they could call their own and employ for their own interests, was stimulus enough for the slaves without resorting to the whip.
5. The time gained was not spent (as many feared and prophesied it would be) either in mischief or indolence. It was diligently improved in cultivating their provision grounds, or working for wages on neighboring estates. Frequently a man and his wife would commence early and work together until they got the work of both so far advanced that the man could finish it alone before night; and then the woman would gather on a load of yams and start for the market.
6. The condition of the people improved astonishingly. They became one of the most industrious and orderly gangs in the parish. Under the former system they were considered inadequate to do the work of the estate, and the manager was obliged to hire additional hands every year, to take off the crop; but Mr. P. never hired any, though he made as large crops as were made formerly.
7. After the abolition of slavery, his people chose to continue on the same system of task work.

Mr. P. stated that the planters were universally opposed to his experiment. They laughed at the idea of making negroes work without using the whip; and they all prophesied that it would prove an utter failure. After some

months' successful trial, he asked some of his neighbor planters what they thought of it then, and he appealed to them to say whether he did not get his work done as thoroughly and seasonably as they did theirs. They were compelled to admit it; but still they were opposed to his system, even more than ever. They called it an *innovation*--it was setting a bad example; and they honestly declared that they did not wish the slaves to *have any time of their own*. Mr. P. said, he was first induced to try the system of task work from a consideration that the negroes were men as well as himself, and deserved to be dealt with as liberally as their relation would allow. He soon found that what was intended as a favor to the slaves was really a benefit to the master. Mr. P. was persuaded that entire freedom would be better for all parties than apprenticeship. He had heard some fears expressed concerning the fate of the island after 1840; but he considered them very absurd.

Although this planter looked forward with sanguine hopes to 1840, yet he would freely say that he did not think the apprenticeship would be any preparation for entire freedom. The single object with the great majority of the planters seemed to be to *get as much out* of the apprentices as they possibly could during the term. No attention had been paid to preparing the apprentices for freedom.

We were introduced to a planter who was notorious during the reign of slavery for the *strictness of his discipline*, to use the Barbadian phrase, or, in plain English, for his rigorous treatment and his cruelty.

He is the proprietor of three sugar estates and one cotton plantation in Barbadoes, on all of which there are seven hundred apprentices. He was a luxurious looking personage, bottle-cheeked and huge in the midst, and had grown fat on slaveholding indulgences. He mingled with every sentence he uttered some profane expression, or solemn appeal to his "honor," and seemed to be greatly delighted with hearing himself talk. He displayed all those prejudices which might naturally be looked for in a mind educated and trained as his had been. As to the conduct of the apprentices, he said they were peaceable and industrious, and mostly well disposed. But after all, the negroes were a perverse race of people. It was a singular fact, he said, that the severer the master, the better the apprentices. When the master was mild and indulgent, they were sure to be lazy, insolent, and unfaithful. *He knew this by experience; this was the case with his apprentices.* His

house-servants especially were very bad. But there was one complaint he had against them all, domestics and praedials--they always hold him to the letter of the law, and are ready to arraign him before the special magistrate for every infraction of it on his part, however trifling. How ungrateful, truly! After being provided for with parental care from earliest infancy, and supplied yearly with two suits of clothes, and as many yams as they could eat and only having to work thirteen or fifteen hours per day in return; and now when they are no longer slaves, and new privileges are conferred to exact them to the full extent of the law which secures them--what ingratitude! How soon are the kindnesses of the past, and the hand that bestowed them, forgotten! Had these people possessed the sentiments of human beings, they would have been willing to take the boon of freedom and lay it at their master's feet, dedicating the remainder of their days to his discretionary service!

But with all his violent prejudices, this planter stated some facts which are highly favorable to the apprentices.

1. He frankly acknowledged that his estates were never under better cultivation than at the present time: and he could say the same of the estates throughout the island. The largest crops that have ever been made, will he realized this year.
2. The apprentices are generally willing to work on the estates on Saturday whenever their labor is needed.
3. The females are very much disposed to abandon field labor. He has great difficulty sometimes in inducing them to take their hoes and go out to the field along with the men; it was the case particularly *with the mothers!* This he regarded as a sore evil!
4. The free children he represented as being in a wretched condition. Their parents have the entire management of them, and they are utterly opposed to having them employed on the estates. He condemned severely the course taken in a particular instance by the late Governor, Sir Lionel Smith. He took it upon himself to go around the island and advise the parents never to bind their children in any kind of apprenticeship to the planters. He told them that sooner than involve their free children in any way, they ought to "work their own fingers to the stubs." The consequence of this imprudent

measure, said our informant, is that the planters have no control over the children born on their estates; and in many instances their parents have sent them away lest their *residence* on the property should, by some chance, give the planter a claim upon their services. Under the good old system the young children were placed together under the charge of some superannuated women, who were fit for nothing else, and the mothers went into the field to work; now the nursery is broken up, and the mothers spend half of their time "*in taking care of their brats.*"

5. As to the management of the working people, there need not be any more difficulty now than during slavery. If the magistrates, instead of encouraging the apprentices to complain and be insolent, would join their influence to support the authority of the planters, things might go on nearly as smoothly as before.

In company with Rev. Mr. Packer, late Rector of St. Thomas, we rode out to the Belle estate, which is considered one of the finest in the island. Mr. Marshall, the manager, received us cordially. He was selected, with two others, by Sir Lionel Smith, to draw up a scale of labor for general use in the island. There are five hundred acres in the estate, and two hundred and thirty-five apprenticed laborers. The manager stated that every thing was working well on his property. He corroborated the statements made by other planters with regard to the conduct of the apprentices. On one point he said the planters had found themselves greatly disappointed. It was feared that after emancipation the negroes would be very much worse to cultivating cane, as it was supposed that nothing but the whip could induce them to perform that species of labor. But the truth is, they now not only cultivate the estate lands better than they did when under the lash, but also cultivate a third of their half-acre allotments in cane on their own accounts. They would plant the whole in cane if they were not discouraged by the planter, whose principal objection to their doing so is that it would lead to the entire neglect of *provision cultivation*. The apprentices on Belle estate will make little short of one thousand dollars the present season by their sugar.

Mr. M. stated that he was extensively acquainted with the cultivation of the island, and he knew that it was in a better condition than it had been for many years. There were twenty-four estates under the same attorneyship with the Belle, and they were all in the same prosperous condition.

A short time before we left Barbadoes we received an invitation from Col. Barrow, to breakfast with him at his residence on Edgecome estate--about eight miles from town. Mr. Cummins, a colored gentleman, a merchant of Bridgetown, and agent of Col. B., accompanied us.

The proprietor of Edgecome is a native of Barbadoes, of polished manners and very liberal views. He has travelled extensively, has held many important offices, and is generally considered the *cleverest* man in the island. He is now a member of the council, and acting attorney for about twenty estates. He remarked that he had always desired emancipation, and had prepared himself for it; but that it had proved a greater blessing than he had expected. His apprentices did as much work as before, and it was done without the application of the whip. He had not had any cases of insubordination, and it was very seldom that he had any complaints to make to the special magistrate. "The apprentices," said he, "understand the meaning of law, and they regard its authority." He thought there was no such thing in the island as a *sense of insecurity*, either as respected person or property. Real estate had risen in value.

Col. B. alluded to the expensiveness of slavery, remarking that after all that was expended in purchasing the slaves, it cost the proprietor as much to maintain them, as it would to hire free men. He spoke of the habit of exercising arbitrary power, which being in continual play up to the time of abolition, had become so strong that managers even yet gave way to it, and frequently punished their apprentices, in spite of all penalties. The fines inflicted throughout the island in 1836, upon planters, overseers, and others, for punishing apprentices, amounted to one thousand two hundred dollars. Col. B. said that he found the legal penalty so inadequate, that in his own practice he was obliged to resort to other means to deter his book-keepers and overseers from violence; hence he discharged every man under his control who was known to strike an apprentice. He does not think that the apprenticeship will be a means of preparing the negroes for freedom, nor does he believe that they *need* any preparation. He should have apprehended no danger, had emancipation taken place in 1834.

At nine o'clock we sat down to breakfast. Our places were assigned at opposite sides of the table, between Col. B. and Mr. C. To an American eye, we presented a singular spectacle. A wealthy planter, a member of the

legislative council, sitting at the breakfast table with a colored man, whose mother was a negress of the most unmitigated hue, and who himself showed a head of hair as curly as his mother's! But this colored guest was treated with all that courtesy and attention to which his intelligence, worth and accomplished manners so justly entitle him.

About noon, we left Edgemoor, and drove two miles farther, to Horton--an estate owned by Foster Clarke, Esq., an attorney for twenty-two estates, who is now temporarily residing in England. The intelligent manager of Horton received us and our colored companion, with characteristic hospitality. Like every one else, he told us that the apprenticeship was far better than slavery, though he was looking forward to the still better system, entire freedom.

After we had taken a lunch, Mr. Cummins invited our host to take a seat, with us in his carriage, and we drove across the country to Drax Hall. Drax Hall is the largest estate in the island--consisting of eight hundred acres. The manager of this estate confirmed the testimony of the Barbadian planters in every important particular.

From Drax Hall we returned to Bridgetown, accompanied by our friend Cummins.

CHAPTER II.

TESTIMONY OF SPECIAL MAGISTRATES, POLICE OFFICERS, CLERGYMEN, AND MISSIONARIES.

Next in weight to the testimony of the planters is that of the special magistrates. Being officially connected with the administration of the apprenticeship system, and tire adjudicators in all difficulties between master and servant, their views of the system and of the conduct of the different parties are entitled to special consideration. Our interviews with this class of men were frequent during our stay in the island. We found them uniformly ready to communicate information, and free to express their sentiments.

In Barbadoes there are seven special magistrates, presiding over as many districts, marked A, B, C, &c., which include the whole of the apprentice population, praedial and non-praedial. These districts embrace an average of twelve thousand apprentices--some more and some less. All the complaints and difficulties which arise among that number of apprentices and their masters, overseers and book-keepers, are brought before the single magistrate presiding in the district in which they occur. From the statement of this fact it will appear in the outset either that the special magistrates have an incalculable amount of business to transact, or that the conduct of the apprentices is wonderfully peaceable. But more of this again.

About a week following our first interview with his excellency, Sir Evan McCregor, we received an invitation to dine at Government House with a company of gentlemen. On our arrival at six o'clock, we were conducted into a large antechamber above the dining hall, where we were soon joined by the Solicitor-General, Hon. R.B. Clarke. Dr. Clarke, a physician, Maj. Colthurst, Capt. Hamilton, and Mr. Galloway, special magistrates. The appearance of the Governor about an hour afterwards, was the signal for an adjournment to dinner.

Slavery and emancipation were the engrossing topics during the evening. As our conversation was for the most part general, we were enabled to gather at the same time the opinions of all the persons present. There was, for aught we heard or could see to the contrary, an entire unanimity of sentiment. In the course of the evening we gathered the following facts and testimony:

1. All the company testified to the benefits of abolition. It was affirmed that the island was never in so prosperous a condition as at present.
2. The estates generally are better cultivated than they were during slavery. Said one of the magistrates:

"If, gentlemen, you would see for yourselves the evidences of our successful cultivation, you need but to travel in any part of the country, and view the superabundant crops which are now being taken off; and if you would satisfy yourselves that emancipation has not been ruinous to Barbadoes, only cast your eyes over the land in any direction, and see the

flourishing condition both of houses and fields: every thing is starting into new life."

It as also stated that more work was done during the nine hours required by law, than was done during slavery in twelve or fifteen hours, with all the driving and goading which were then practised.

3. Offences have not increased, but rather lessened. The Solicitor-General remarked, that the comparative state of crime could not be ascertained by a mere reference to statistical records, since previous to emancipation all offences were summarily punished by the planter. Each estate was a little despotism, and the manager took cognizance of all the misdemeanors committed among his slaves--inflicting such punishment as he thought proper. The public knew nothing about the offences of the slaves, unless something very atrocious was committed. But since emancipation has taken place, all offences, however trivial, come to the light and are recorded. He could only give a judgment founded on observation. It was his opinion, that there were fewer petty offences, such as thefts, larcenies, &c., than during slavery. As for serious crime, it was hardly known in the island. The whites enjoy far greater safety of person and property than they did formerly.

Maj. Colthurst, who is an Irishman, remarked, that he had long been a magistrate or justice of the peace in Ireland, and he was certain that at the present ratio of crime in Barbadoes, there would not be as much perpetrated in six years to come, as there is in Ireland among an equal population in six months. For his part, he had never found in any part of the world so peaceable and inoffensive a community.

4. It was the unanimous testimony that there was no disposition among the apprentices to revenge injuries committed against them. *They are not a revengeful people*, but on the contrary are remarkable for forgetting wrongs, particularly when the are succeeded by kindness.

5. The apprentices were described as being generally civil and respectful toward their employers. They were said to manifest more independence of feeling and action than they did when slaves; but were seldom known to be insolent unless grossly insulted or very harshly used.

6. Ample testimony was given to the law-abiding character of the negroes. When the apprenticeship system was first introduced, they did not fully comprehend its provisions, and as they had anticipated entire freedom, they were disappointed and dissatisfied. But in a little while they became reconciled to the operations of the new system, and have since manifested a due subordination to the laws and authorities.

7. There is great desire manifested among them to purchase their freedom. Not a week passes without a number of appraisements. Those who have purchased their freedom have generally conducted well, and in many instances are laboring on the same estates on which they were slaves.

8. There is no difficulty in inducing the apprentices to work on Saturday. They are usually willing to work if proper wages are given them. If they are not needed on the estates, they either work on their own grounds, or on some neighboring estate.

9. The special magistrates were all of the opinion that it would have been entirely safe to have emancipated the slaves of Barbadoes in 1834. They did not believe that any preparation was needed; but that entire emancipation would have been decidedly better than the apprenticeship.

10. The magistrates also stated that the number of complaints brought before them was comparatively small, and it was gradually diminishing. The offences were of a very trivial nature, mostly cases of slight insubordination, such as impertinent replies and disobedience of orders.

11. They stated that they had more trouble with petty overseers and managers and small proprietors than with the entire black population.

12. The special magistrates further testified that wherever the planters have exercised common kindness and humanity, the apprentices have generally conducted peaceably. Whenever there are many complaints from one estate, it is presumable that the manager is a bad man.

13. Real estate is much higher throughout the island than it has been for many years. A magistrate said that he had heard of an estate which had been in market for ten years before abolition and could not find a purchaser. In 1835, the year following abolition, it was sold for one third more than was asked for it two years before.

14. It was stated that there was not a proprietor in the island, whose opinion was of any worth, who would wish to have slavery restored. Those who were mostly bitterly opposed to abolition, have become reconciled, and are satisfied that the change has been beneficial. The Solicitor-General was candid enough to own that he himself was openly opposed to emancipation. He had declared publicly and repeatedly while the measure was pending in Parliament, that abolition would ruin the colonies. But the results had proved so different that he was ashamed of his former forebodings. He had no desire ever to see slavery re-established.

15. The first of August, 1834, was described as a day of remarkable quiet and tranquillity. The Solicitor-General remarked, that there were many fears for the results of that first day of abolition. He said he arose early that morning, and before eight o'clock rode through the most populous part of the island, over an extent of twelve miles. The negroes were all engaged in their work as on other days. A stranger riding through the island, and ignorant of the event which had taken place that morning, would have observed no indications of so extraordinary a change. He returned home satisfied that all would work well.

16. The change in 1840 was spoken of as being associated with the most sanguine expectations. It was thought that there was more danger to be apprehended from the change in 1834. It was stated that there were about fifteen thousand non-*praedials*, who would then be emancipated in Barbadoes. This will most likely prove the occasion of much excitement and uneasiness, though it is not supposed that any thing serious will arise. The hope was expressed that the legislature would effect the emancipation of the whole population at that time. One of the magistrates informed us that he knew quite a number of planters in his district who were willing to liberate their apprentices immediately, but they were waiting for a general movement. It was thought that this state of feeling was somewhat extensive.

17. The magistrates represented the negroes as naturally confiding and docile, yielding readily to the authority of those who are placed over them. Maj. Colthurst presides over a district of 9,000 apprentices; Capt. Hamilton over a district of 13,000, and Mr. Galloway over the same number. There are but three days in the week devoted to hearing and settling complaints. It is very evident that in so short a time it would be utterly impossible for one

man to control and keep in order such a number, unless the subjects were of themselves disposed to be peaceable and submissive. The magistrates informed us that, notwithstanding the extent of their districts, they often did not have more than from a dozen to fifteen complaints in a week.

We were highly gratified with the liberal spirit and the intelligence of the special magistrates. Major Colthurst is a gentleman of far more than ordinary pretensions to refinement and general information. He was in early life a justice of the peace in Ireland, he was afterwards a juror in his Majesty's service, and withal, has been an extensive traveller. Fifteen years ago he travelled in the United States, and passed through several of the slaveholding states, where he was shocked with the abominations of slavery. He was persuaded that slavery was worse in our country, than it has been for many years in the West Indies. Captain Hamilton was formerly an officer in the British navy. He seems quite devoted to his business, and attached to the interests of the apprentices. Mr. Galloway is a *colored* gentleman, highly respected for his talents. Mr. G. informed us that *prejudice* against color was rapidly diminishing--and that the present Governor was doing all in his power to discountenance it.

The company spoke repeatedly of the *noble act of abolition, by which Great Britain had immortalized her name more than by all the achievements of her armies and navies.*

The warmest wishes were expressed for the abolition of slavery in the United States. All said they should rejoice when the descendants of Great Britain should adopt the noble example of their mother country. They hailed the present anti-slavery movements. Said the Solicitor-General, "We were once strangely opposed to the English anti-slavery party, but now we sympathize with you. Since slavery is abolished to our own colonies, and we see the good which results from the measure, we go for abolition throughout the world. Go on, gentlemen, we are with you; *we are all sailing in the same vessel.*"

Being kindly invited by Captain Hamilton, during our interview with him at the government house, to call on him and attend his court, we availed ourselves of his invitation a few days afterwards. We left Bridgetown after breakfast, and as it chanced to be Saturday, we had a fine opportunity of

seeing the people coming into market. They were strung all along the road for six miles, so closely, that there was scarcely a minute at any time in which we did not pass them. As far as the eye could reach there were files of men and women, moving peaceably forward. From the cross paths leading through the estates, the busy marketers were pouring into the highway. To their heads as usual was committed the safe conveyance of the various commodities. It was amusing to observe the almost infinite diversity of products which loaded them. There were sweet potatoes, yams, eddoes, Guinea and Indian corn, various fruits and berries, vegetables, nuts, cakes, bottled beer and empty bottles, bundles of sugar cane, bundles of fire wood, &c. &c. Here was one woman (the majority were females, as usual with the marketers in these islands) with a small black pig doubled up under her arm. Another girl had a brood of young chickens, with nest, coop, and all, on her head. Further along the road we were specially attracted by a woman who was trudging with an immense turkey elevated on her head. He quite filled the tray; head and tail projecting beyond its bounds. He advanced, as was very proper, head foremost, and it was irresistibly laughable to see him ever and anon stretch out his neck and peep under the tray, as though he would discover by what manner of locomotive it was that he got along so fast while his own legs were tied together.

Of the hundreds whom we past, there were very few who were not well dressed, healthy, and apparently in good spirits. We saw nothing indecorous, heard no vile language, and witnessed no violence.

About four miles from town, we observed on the side of the road a small grove of shade trees. Numbers of the marketers were seated there, or lying in the cool shade with their trays beside them. It seemed to be a sort of rendezvous place, where those going to, and those returning from town, occasionally halt for a time for the purpose of resting, and to tell and hear news concerning the state of the market. And why should not these travelling merchants have an exchange as well as the stationary ones of Bridgetown?

On reaching the station-house, which is about six miles from town, we learned that Saturday was not one of the court days. We accordingly drove to Captain Hamilton's residence. *He stated that during the week he had only six cases of complaint among the thirteen thousand apprentices embraced*

in his district. Saturday is the day set apart for the apprentices to visit him at his house for advice on any points connected with their duties. He had several calls while we were with him. One was from the mother of an apprentice girl who had been committed for injuring the master's son. She came to inform Captain H. that the girl had been whipped twice contrary to law, before her commitment. Captain H. stated that the girl had said nothing about this at the time of her trial; if she had, she would in all probability have been *set free*, instead of being *committed to prison*. He remarked that he had no question but there were numerous cases of flogging on the estates which never came to light. The sufferers were afraid to inform against their masters, lest they should be treated still worse. The opportunity which he gave them of coming, to him one day in the week for private advice, was the means of exposing many outrages which would otherwise he unheard of: He observed that there were not a few whom he had liberated on account of the cruelty of their masters.

Captain H. stated that the apprentices were much disposed to purchase their freedom. To obtain money to pay for themselves they practice the most severe economy and self-denial in the very few indulgences which the law grants them. They sometimes resort to deception to depreciate their value with the appraisers. He mentioned an instance of a man who lead for many years been an overseer on a large estate. Wishing to purchase himself, and knowing that his master valued him very highly, he permitted his beard to grow; gave his face a wrinkled and haggard appearance, and bound a handkerchief about his head. His clothes were suffered to become ragged and dirty, and he began to feign great weakness in his limbs, and to complain of a "misery all down his back." He soon appeared marked with all the signs of old age and decrepitude. In this plight, and leaning on a stick, he hobbled up to the station-house one day, and requested to be appraised. He was appraised at £10, which he immediately paid. A short time afterwards, he engaged himself to a proprietor to manage a small estate for £30 per year in cash and his own maintenance, all at once grew vigorous again; and is prospering finely. Many of the masters in turn practice deception to prevent the apprentices from buying themselves, or to make them pay the very highest sum for their freedom. They extol their virtues--they are every thing that is excellent and valuable--their services on the estate are indispensable no one can fill their places. By such

misrepresentations they often get an exorbitant price for the remainder of the term--more, sometimes, than they could have obtained for them for life while they were slaves.

From Captain H.'s we returned to the station-house, the keeper of which conducted us over the buildings, and showed us the cells of the prison. The house contains the office and private room of the magistrate, and the guard-room, below, and chambers for the police men above. There are sixteen solitary cells, and two large rooms for those condemned to hard labour--one for females and the other for males. There were at that time seven in the solitary cells, and twenty-four employed in labor on the roads. This is more than usual. The average number is twenty in all. When it is considered that most of the commitments are for trivial offences, and that the district contains thirteen thousand apprentices, certainly we have grounds to conclude that the state of morals in Barbadoes is decidedly superior to that in our own country.

The whole police force for this district is composed of seventeen horsemen, four footmen, a sergeant, and the keeper. It was formerly greater but has been reduced within the past year.

The keeper informed us that he found the apprentices, placed under his care, very easily controlled. They sometimes attempt to escape; but there has been no instance of revolt or insubordination. The island, he said, was peaceable, and were it not for the petty complaints of the overseers, nearly the whole police force might be disbanded. As for insurrection, he laughed at the idea of it. It was feared before abolition, but now no one thought of it. All but two or three of the policemen at this station are black and colored men.

STATION-HOUSE AT DISTRICT A.

Being disappointed in our expectations of witnessing some trials at the station-house in Captain Hamilton's district (B,) we visited the court in district A, where Major Colthurst presides. Major C. was in the midst of a trial when we entered, and we did not learn fully the nature of the case then pending. We were immediately invited within the bar, whence we had a fair view of all that passed.

There were several complaints made and tried, during our stay. We give a brief account of them, as they will serve as specimens of the cases usually brought before the special magistrates.

I. The first was a complaint made by a colored lady, apparently not more than twenty, against a colored girl--her domestic apprentice. The charge was insolence, and disobedience of orders. The complainant said that the girl was exceedingly insolent--no one could imagine how insolent she had been--it was beyond endurance. She seemed wholly unable to find words enough to express the superlative insolence of her servant. The justice requested her to particularize. Upon this, she brought out several specific charges such as, first, That the girl brought a candle to her one evening, and wiped her greasy fingers on her (the girl's) gown: second, That one morning she refused to bring some warm water, as commanded, to pour on a piece of flannel, until she had finished some other work that she was doing at the time; third, That the same morning she delayed coming into her chamber as usual to dress her, and when she did come, she sung, and on being told to shut her mouth, she replied that her mouth was her own, and that she would sing when she pleased; and fourth, That she had said in her mistress's hearing that she would be glad when she was freed. These several charges being sworn to, the girl was sentenced to four days' solitary confinement, but at the request of her mistress, she was discharged on promise of amendment.

II. The second complaint was against an apprentice-man by his master, for absence from work. He had leave to go to the funeral of his mother, and he did not return until after the time allowed him by his master. The man was sentence to imprisonment.

III. The third complaint was against a woman for singing and making a disturbance in the field. Sentenced to six days' solitary confinement.

IV. An apprentice was brought up for not doing his work well. He was a mason, and was employed in erecting an arch on one of the public roads. This case excited considerable interest. The apprentice was represented by his master to be a praedial--the master testified on oath that he was registered as a praedial; but in the course of the examination it was proved that he had always been a mason; that he had labored at that trade from his

boyhood, and that he knew 'nothing about the hoe,' having never worked an hour in the field. This was sufficient to prove that he was a non-praedial, and of course entitled to liberty two years sooner than he would have been as a praedial. As this matter came up incidentally, it enraged the master exceedingly. He fiercely reiterated his charge against the apprentice, who, on his part, averred that he did his work as well as he could. The master manifested the greatest excitement and fury during the trial. At one time, because the apprentice disputed one of his assertions, he raised his clenched fist over him, and threatened, with an oath, to knock him down. The magistrate was obliged to threaten him severely before he would keep quiet.

The defendant was ordered to prison to be tried the next day, time being given to make further inquiries about his being a praedial.

V. The next case was a complaint against an apprentice, for leaving his place in the boiling house without asking permission. It appeared that he had been unwell during the evening, *and at half past ten o'clock at night*, being attacked more severely, he left for a few moments, expecting to return. He, however, was soon taken so ill that he could not go back, but was obliged to lie down on the ground, where he remained until twelve o'clock, when he recovered sufficiently to creep home. His sickness was proved by a fellow apprentice, and indeed his appearance at the bar clearly evinced it. He was punished by several days imprisonment. With no little astonishment in view of such a decision, we inquired of Maj. C. whether the planters had the power to require their people to work as late as half past ten at night. He replied, "Certainly, *the crops must be secured at any rate, and if they are suffering, the people must be pressed the harder.*"[[A](#)]

[Footnote [A](#): We learned subsequently from various authentic sources, that the master has *not* the power to compel his apprentices to labor more than nine hours per day on any condition, except in case of a fire, or some similar emergency. If the call for labor in crop-time was to be set down as an emergency similar to a "fire," and if in official decisions he took equal latitude, alas for the poor apprentices!]

VI. The last case was a complaint against a man for not keeping up good fires under the boilers. He stoutly denied the charge; said he built as good

fires as he could. He kept stuffing in the trash, and if it would not burn he could not help it. He was sentenced to imprisonment.

Maj. C. said that these complaints were a fair specimen of the cases that came up daily, save that there were many more frivolous and ridiculous. By the trials which we witnessed we were painfully impressed with two things:

1st. That the magistrate, with all his regard for the rights and welfare of the apprentices, showed a great and inexcusable partiality for the masters. The patience and consideration with which he heard the complaints of the latter, the levity with which he regarded the defence of the former, the summary manner in which he despatched the cases, and the character of some of his decisions, manifested no small degree of favoritism.

2d That the whole proceedings of the special magistrates' courts are eminently calculated to perpetuate bad feeling between the masters and apprentices. The court-room is a constant scene of angry dispute between these parties. The master exhausts his store of abuse and violence upon the apprentice, and the apprentice, emboldened by the place, and provoked by the abuse, retorts in language which he would never think of using on the estate, and thus, whatever may be the decision of the magistrate, the parties return home with feelings more embittered than ever.

There were twenty-six persons imprisoned at the station-house, twenty-four were at hard labor, and two were in solitary confinement. The keeper of the prison said, he had no difficulty in managing the prisoners. The keeper is a colored man, and so also is the sergeant and most of the policemen.

We visited one other station-house, in a distant part of the island, situated in the district over which Captain Cuppage presides. We witnessed several trials there which were similar in frivolity and meanness to those detailed above. We were shocked with the mockery of justice, and the indifference to the interests of the negro apparent in the course of the magistrate. It seemed that little more was necessary than for the manager or overseer to make his complaint and swear to it, and the apprentice was forthwith condemned to punishment.

We never saw a set of men in whose countenances fierce passions of every name were so strongly marked as in the overseers and managers who were

assembled at the station-houses. Trained up to use the whip and to tyrannize over the slaves, their grim and evil expression accorded with their hateful occupation.

Through the kindness of a friend in Bridgetown we were favored with an interview with Mr. Jones, the superintendent of the rural police--the whole body of police excepting those stationed in the town. Mr. J. has been connected with the police since its first establishment in 1834. He assured us that there was nothing in the local peculiarities of the island, nor in the character of its population, which forbade immediate emancipation in August, 1834. He had no doubt it would be perfectly safe and decidedly profitable to the colony.

2. The good or bad working of the apprenticeship depends mainly on the conduct of the masters. He was well acquainted with the character and disposition of the negroes throughout the island, and he was ready to say, that if disturbances should arise either before or after 1840, it would be because the people were goaded on to desperation by the planters, and not because they sought disturbance themselves.

3. Mr. J. declared unhesitatingly that crime had not increased since abolition, but rather the contrary.

4. He represented the special magistrates as the friends of the planters. They loved the *dinners* which they got at the planters' houses. The apprentices had no sumptuous dinners to give them. The magistrates felt under very little obligation of any kind to assert the cause of the apprentice and secure him justice, while they were under very strong temptations to favor the master.

5. Real estate had increased in value nearly fifty per cent since abolition. There is such entire security of property, and the crops since 1834 have been so flattering, that capitalists from abroad are desirous of investing their funds in estates or merchandise. All are making high calculations for the future.

6. Mr. J. testified that marriages had greatly increased since abolition. He had seen a dozen couples standing at one time on the church floor. There had, he believed, been more marriages within the last three years among the

negro population, than have occurred before since the settlement of the island.

We conclude this chapter by subjoining two highly interesting documents from special magistrates. They were kindly furnished us by the authors in pursuance of an order from his excellency the Governor, authorizing the special magistrates to give us any official statements which we might desire. Being made acquainted with these instructions from the Governor, we addressed written queries to Major Colthurst and Captain Hamilton. We insert their replies at length.

COMMUNICATION FROM MAJOR COLTHURST, SPECIAL MAGISTRATE.

The following fourteen questions on the working of the apprenticeship system in this colony were submitted to me on the 30th of March, 1837, requesting answers thereto.

1. What is the number of apprenticed laborers in your district, and what is their character compared with other districts?

The number of apprenticed laborers, of all ages, in my district, is nine thousand four hundred and eighty, spread over two hundred and ninety-seven estates of various descriptions--some very large, and others again very small--much the greater number consisting of small lots in the near neighborhood of Bridgetown. Perhaps my district, in consequence of this minute subdivision of property, and its contact with the town, is the most troublesome district in the island; and the character of the apprentices differs consequently from that in the more rural districts, where not above half the complaints are made. I attribute this to their almost daily intercourse with Bridgetown.

2. What is the state of agriculture in the island?

When the *planters themselves* admit that general cultivation was *never* in a better state, and the plantations extremely clean, *it is more than presumptive* proof that agriculture generally is in a most prosperous condition. The vast crop of canes grown this year proves this fact. Other crops are also luxuriant.

3. Is there any difficulty occasioned by the apprentices refusing to work?

No difficulty whatever has been experienced by the refusal of the apprentices to work. This is done manfully and cheerfully, when they are treated with humanity and consideration by the masters or managers. I have never known an instance to the contrary.

4. Are the apprentices willing to work in their own time?

The apprentices are most willing to work in their own time.

5. What is the number and character of the complaints brought before you--are they increasing or otherwise?

The number of complaints brought before me, during the last quarter, are much fewer than during the corresponding quarter of the last year. Their character is also greatly improved. Nine complaints out of ten made lately to me are for small impertinences or saucy answers, which, considering the former and present position of the parties, is naturally to be expected. The number of such complaints is much diminished.

6. What is the state of crime among the apprentices?

What is usually denominated crime in the old countries, is by no means frequent among the blacks or colored persons. It is amazing how few material breaches of the law occur in so extraordinary a community. Some few cases of crime do occasionally arise;--but when it is considered that the population of this island is nearly as dense as that of any part of China, and wholly uneducated, either by precept or example, this absence of frequent crime excites our wonder, and is highly creditable to the negroes. I sincerely believe there is no such person, of that class called at home an accomplished villain, to be found in the whole island.--Having discharged the duties of a general justice of the peace in Ireland, for above twenty-four years, where crimes of a very aggravated nature were perpetrated almost daily. I cannot help contrasting the situation of that country with this colony, where I do not hesitate to say perfect tranquillity exists.

7. Have the apprentices much respect for law?

It is perhaps, difficult to answer this question satisfactorily, as it has been so short a time since they enjoyed the blessing of equal laws. To appreciate just laws, time, and the experience of the benefit arising from them must be felt. That the apprentices do not, to any material extent, *outrage* the law, is certain; and hence it may be inferred that they respect it.

8. Do you find a spirit of revenge among the negroes?

From my general knowledge of the negro character in other countries, as well as the study of it here, I do not consider them by any means a revengeful people. Petty dislikes are frequent, but any thing like a deep spirit of revenge for former injuries does not exist, nor is it for one moment to be dreaded.

9. Is there any sense of insecurity arising from emancipation?

Not the most remote feeling of insecurity exists arising from emancipation; far the contrary. All sensible and reasonable men think the prospects before them most cheering, and would not go back to the old system on any account whatever. There are some, however, who croak and forebode evil; but they are few in number, and of no intelligence,--such as are to be found in every community.

10. What is the prospect for 1840?--for 1838?

This question is answered I hope satisfactorily above. On the termination of the two periods no evil is to be reasonably anticipated, with the exception of a few days' idleness.

11. Are the planters generally satisfied with the apprenticeship, or would they return back to the old system?

The whole body of respectable planters are fully satisfied with the apprenticeship, and would not go back to the old system on any account whatever. A few young managers, whose opinions are utterly worthless, would perhaps have no objection to be put again into their puny authority.

12. Do you think it would have been dangerous for the slaves in this island to have been entirely emancipated in 1834?

I do not think it would have been productive of danger, had the slaves of this island been fully emancipated in 1834; which is proved by what has taken place in another colony.

13. Has emancipation been a decided blessing to this island, or has it been otherwise?

Emancipation has been, under God, the greatest blessing ever conferred upon this island. All good and respectable men fully admit it. This is manifest throughout the whole progress of this mighty change. Whatever may be said of the vast benefit conferred upon the slaves, in right judgment the slave owner was the greatest gainer after all.

14. Are the apprentices disposed to purchase their freedom? How have those conducted themselves who have purchased it?

The apprentices are inclined to purchase their discharge, particularly when misunderstandings occur with their masters. When they obtain their discharge they generally labor in the trades and occupations they were previously accustomed to, and conduct themselves well. The discharged apprentices seldom take to drinking. Indeed the negro and colored population are the most temperate persons I ever knew of their class. The experience of nearly forty years in various public situations, confirms me in this very important fact.

The answers I have had the honor to give to the questions submitted to me, have been given most conscientiously, and to the best of my judgment are a faithful picture of the working of the apprenticeship in this island, as far as relates to the inquiries made.--*John B. Colthurst, Special Justice of the Peace, District A. Rural Division.*

COMMUNICATION FROM CAPT. HAMILTON.

Barbadoes, April 4th, 1837.

Gentlemen,

Presuming that you have kept a copy of the questions[[A](#)] you sent me, I shall therefore only send the answers.

[Footnote [A](#): The same interrogatories were propounded to Capt. Hamilton which have been already inserted in Major Colthurst's communication.]

1. There are at present five thousand nine hundred and thirty male, and six thousand six hundred and eighty-nine female apprentices in my district, (B,) which comprises a part of the parishes of Christ Church and St. George. Their conduct, compared with the neighboring districts, is good.

2. The state of agriculture is very flourishing. Experienced planters acknowledge that it is generally far superior to what it was during slavery.

3. Where the managers are kind and temperate, they have not any trouble with the laborers.

4. The apprentices are generally willing to work for wages in their own time.

5. The average number of complaints tried by me, last year, ending December, was one thousand nine hundred and thirty-two. The average number of apprentices in the district during that time was twelve thousand seven hundred. Offences, generally speaking, are not of any magnitude. They do not increase, but fluctuate according to the season of the year.

6. The state of crime is not so bad by any means as we might have expected among the negroes--just released from such a degrading bondage. Considering the state of ignorance in which they have been kept, and the immoral examples set them by the lower class of whites, it is matter of astonishment that they should behave so well.

7. The apprentices would have a great respect for law, were it not for the erroneous proceedings of the managers, overseers, &c., in taking them before the magistrates for every petty offence, and often abusing the magistrate in the presence of the apprentices, when his decision does not please them. The consequence is, that the apprentices too often get indifferent to law, and have been known to say that they cared not about going to prison, and that they would do just as they did before as soon as they were released.

8. The apprentices in this colony are generally considered a peaceable race. All acts of revenge committed by them originate in jealousy, as, for

instance, between husband and wife.

9. Not the slightest sense of insecurity. As a proof of this, property has, since the commencement of the apprenticeship, increased in value considerably--at least one third.

10. The change which will take place in 1838, in my opinion, will occasion a great deal of discontent among those called *praedials*--which will not subside for some months. They ought to have been all emancipated at the same period. I cannot foresee any bad effects that will ensue from the change in 1840, except those mentioned hereafter.

11. The most prejudiced planters would not return to the old system if they possibly could. They admit that they get more work from the laborers than they formerly did, and they are relieved from a great responsibility.

12. It is my opinion that if entire emancipation had taken place in 1834, no more difficulty would have followed beyond what we may naturally expect in 1810. It will then take two or three months before the emancipated people finally settle themselves. I do not consider the apprentice more fit or better prepared for entire freedom now than he was in 1834.

13. I consider, most undoubtedly, that emancipation has been a decided blessing to the colony.

14. They are much disposed to purchase the remainder of the apprenticeship term. Their conduct after they become free is good.

I hope the foregoing answers and information may be of service to you in your laudable pursuits, for which I wish you every success.

I am, gentlemen, your ob't serv't,

Jos. Hamilton, Special Justice.

TESTIMONY OF CLERGYMEN AND MISSIONARIES.

There are three religious denominations at the present time in Barbadoes--Episcopalians, Wesleyans, and Moravians. The former have about twenty clergymen, including the bishop and archdeacon. The bishop was absent during our visit, and we did not see him; but as far as we could learn, while

in some of his political measures, as a member of the council, he has benefited the colored population, his general influence has been unfavorable to their moral and spiritual welfare. He has discountenanced and defeated several attempts made by his rectors and curates to abolish the odious distinctions of color in their churches.

We were led to form an unfavorable opinion of the Bishop's course, from observing among the intelligent and well-disposed classes of colored people, the current use of the phrase, "bishop's man," and "no bishop's man," applied to different rectors and curates. Those that they were averse to, either as pro-slavery or pro-prejudice characters, they usually branded as "bishop's men," while those whom they esteemed their friends, they designated as "no bishop's men."

The archdeacon has already been introduced to the reader. We enjoyed several interviews with him, and were constrained to admire him for his integrity, independence and piety. He spoke in terms of strong condemnation of slavery, and of the apprenticeship system. He was a determined advocate of entire and immediate emancipation, both from principle and policy. He also discountenanced prejudice, both in the church and in the social circle. The first time we had the pleasure of meeting him was at the house of a colored gentleman in Bridgetown where we were breakfasting. He called in incidentally, while we were sitting at table, and exhibited all the familiarity of a frequent visitant.

One of the most worthy and devoted men whom we met in Barbadoes was the Rev. Mr. Cummins, curate of St. Paul's church, in Bridgetown. The first Sabbath after our arrival at the island we attended his church. It is emphatically a free church. Distinctions of color are nowhere recognized. There is the most complete intermingling of colors throughout the house. In one pew were seen a family of whites, in the next a family of colored people, and in the next perhaps a family of blacks. In the same pews white and colored persons sat side by side. The floor and gallery presented the same promiscuous blending of hues and shades. We sat in a pew with white and colored people. In the pew before and in that behind us the sitting was equally indiscriminate. The audience was kneeling in their morning devotions when we entered, and we were struck with the different colors bowing side by side as we passed down the aisles. There is probably no

clergyman in the island who has secured so perfectly the affections of his people as Mr. C. He is of course "no bishop's man." He is constantly employed in promoting the spiritual and moral good of his people, of whatever complexion. The annual examination of the Sabbath school connected with St. Paul's occurred while we were in the island, and we were favored with the privilege of attending it. There were about three hundred pupils present, of all ages, from fifty down to three years. There were all colors--white, tawny, and ebon black. The white children were classed with the colored and black, in utter violation of those principles of classification in vogue throughout the Sabbath schools of our own country. The examination was chiefly conducted by Mr. Cummins. At the close of the examination about fifty of the girls, and among them the daughter of Mr. Cummins, were arranged in front of the altar, with the female teachers in the rear of them, and all united in singing a hymn written for the occasion. Part of the teachers were colored and part white, as were also the scholars, and they stood side by side, mingled promiscuously together. This is altogether the best Sabbath school in the island.

After the exercises were closed, we were introduced, by a colored gentleman who accompanied us to the examination, to Mr. Cummins, the Rev. Mr. Packer, and the Rev. Mr. Rowe, master of the public school in Bridgetown. By request of Mr. C., we accompanied him to his house, where we enjoyed an interview with him and the other gentlemen, just mentioned. Mr. C. informed us that his Sabbath school was commenced in 1833; but was quite small and inefficient until after 1834. It now numbers more than four hundred scholars. Mr. C. spoke of prejudice. It had wonderfully decreased within the last three years. He said he could scarcely credit the testimony of his own senses, when he looked around on the change which had taken place. Many now associate with colored persons, and sit with them in the church, who once would have scorned to be found near them. Mr. C. and the other clergymen stated, that there had been an increase of places of worship and of clergymen since abolition. All the churches are now crowded, and there is a growing demand for more. The negroes manifest an increasing desire for religious instruction. In respect to morals, they represent the people as being greatly improved. They spoke of the general respect which was now paid to the institution of marriage among the negroes, Mr. C. said, he was convinced that the blacks had as much

natural talent and capacity for learning as the whites. He does not know any difference. Mr. Pocker, who was formerly rector of St. Thomas' parish, and has been a public teacher of children of all colors, expressed the same opinion. Mr. Rowe said, that before he took charge of the white school, he was the teacher of one of the free schools for blacks, and he testified that the latter has just as much capacity for acquiring any kind of knowledge, as much inquisitiveness, and ingenuity, as the former.

Accompanied by an intelligent gentleman of Bridgetown, we visited two flourishing schools for colored children, connected with the Episcopal church, and under the care of the Bishop. In the male school, there were one hundred and ninety-five scholars, under the superintendence of one master, who is himself a black man, and was educated and trained up in the same school. He is assisted by several of his scholars, as monitors and teachers. It was, altogether, the best specimen of a well-regulated school which we saw in the West Indies.

The present instructor has had charge of the school two years. It has increased considerably since abolition. Before the first of August, 1834, the whole number of names on the catalogue was a little above one hundred, and the average attendance was seventy-five. The number immediately increased, and now the average attendance is above two hundred. Of this number at least sixty are the children of apprentices.

We visited also the infant school, established but two weeks previous. Mr. S. the teacher, who has been for many years an instructor, says he finds them as apt to learn as any children he ever taught. He said he was surprised to see how soon the instructions of the school-room were carried to the homes of the children, and caught up by their parents.

The very first night after the school closed, in passing through the streets, he heard the children repeating what they had been taught, and the parents learning the songs from their children's lips. Mr. S. has a hundred children already in his school, and additions were making daily. He found among the negro parents much interest in the school.

WESLEYAN MISSIONARIES.

We called on the Rev. Mr. Fidler, the superintendent of the Wesleyan missions in Barbadoes. Mr. F. resides in Bridgetown, and preaches mostly in the chapel in town. He has been in the West Indies twelve years, and in Barbadoes about two years. Mr. F. informed us that there were three Wesleyan missionaries in the island, besides four or five local preachers, one of whom is a black man. There are about one thousand members belonging to their body, the greater part of whom live in town. Two hundred and thirty-five were added during the year 1836, being by far the largest number added in any one year since they began their operations in the island.

A brief review of the history of the Wesleyan Methodists in Barbadoes, will serve to show the great change which has been taking place in public sentiment respecting the labors of missionaries. In the year 1823, not long after the establishment of the Wesleyan church in the island, the chapel in Bridgetown was destroyed by a mob. Not one stone was left upon another. They carried the fragments for miles away from the site, and scattered them about in every direction, so that the chapel might never be rebuilt. Some of the instigators and chief actors in this outrage, were "gentlemen of property and standing," residents of Bridgetown. The first morning after the outrage began, the mob sought for the Rev. Mr. Shrewsbury, the missionary, threatening his life, and he was obliged to flee precipitately from the island, with his wife. He was hunted like a wild beast, and it is thought that he would have been torn in pieces if he had been found. Not an effort or a movement was made to quell the mob, during their assault upon the chapel. The first men of the island connived at the violence--secretly rejoicing in what they supposed would be the extermination of Methodism from the country. The governor, Sir Henry Ward, utterly refused to interfere, and would not suffer the militia to repair to the spot, though a mere handful of soldiers could have instantaneously routed the whole assemblage.

The occasion of this riot was partly the efforts made by the Wesleyans to instruct the negroes, and still more the circumstance of a letter being written by Mr. Shrewsbury, and published in an English paper, which contained some severe strictures on the morals of the Barbadians. A planter informed us that the riot grew out of a suspicion that Mr. S. was "leagued with the Wilberforce party in England."

Since the re-establishment of Wesleyanism in this island, it has continued to struggle against the opposition of the Bishop, and most of the clergy, and against the inveterate prejudices of nearly the whole of the white community. The missionaries have been discouraged, and in many instances absolutely prohibited from preaching on the estates. These circumstances have greatly retarded the progress of religious instruction through their means. But this state of things had been very much altered since the abolition of slavery. There are several estates now open to the missionaries. Mr. F. mentioned several places in the country, where he was then purchasing land, and erecting chapels. He also stated, that one man, who aided in pulling down the chapel in 1823, had offered ground for a new chapel, and proffered the free use of a building near by, for religious meetings and a school, till it could be erected.

The Wesleyan chapel in Bridgetown is a spacious building, well filled with worshippers every Sabbath. We attended service there frequently, and observed the same indiscriminate sitting of the various colors, which is described in the account of St. Paul's church.

The Wesleyan missionaries have stimulated the clergy to greater diligence and faithfulness, and have especially induced them to turn their attention to the negro population more than they did formerly.

There are several local preachers connected with the Wesleyan mission in Barbadoes, who have been actively laboring to promote religion among the apprentices. Two of these are converted soldiers in his Majesty's service--acting sergeants of the troops stationed in the island. While we were in Barbadoes, these pious men applied for a discharge from the army, intending to devote themselves exclusively to the work of teaching and preaching. Another of the local preachers is a negro man, of considerable talent and exalted piety, highly esteemed among his missionary brethren for his labors of love.

THE MORAVIAN MISSION.

Of the Moravians, we learned but little. Circumstances unavoidably prevented us from visiting any of the stations, and also from calling on any of the missionaries. We were informed that there were three stations in the island, one in Bridgetown, and two in the country, and we learned in

general terms, that the few missionaries there were laboring with their characteristic devotedness, assiduity, and self-denial, for the spiritual welfare of the negro population.

CHAPTER III.

COLORED POPULATION.

The colored, or as they were termed previous to abolition, by way of distinction, the free colored population, amount in Barbadoes to nearly thirty thousand. They are composed chiefly of the mixed race, whose paternal connection, though illegitimate, secured to them freedom at their birth, and subsequently the advantages of an education more or less extensive. There are some blacks among them, however, who were free born, or obtained their freedom at an early period, and have since, by great assiduity, attained an honorable standing.

During our stay in Barbadoes, we had many invitations to the houses of colored gentlemen, of which we were glad to avail ourselves whenever it was possible. At an early period after our arrival, we were invited to dine with Thomas Harris, Esq. He politely sent his chaise for us, as he resided about a mile from our residence. At his table, we met two other colored gentlemen, Mr. Thorne of Bridgetown, and Mr. Prescod, a young gentleman of much intelligence and ability. There was also at the table a niece of Mr. Harris, a modest and highly interesting young lady. All the luxuries and delicacies of a tropical clime loaded the board--an epicurean variety of meats, flesh, fowl, and fish--of vegetables, pastries, fruits, and nuts, and that invariable accompaniment of a West India dinner, wine.

The dinner was enlivened by an interesting and well sustained conversation respecting the abolition of slavery, the present state of the colony, and its prospects for the future. Lively discussions were maintained on points where there chanced to be a difference of opinion, and we admired the liberality of the views which were thus elicited. We are certainly prepared to say, and that too without feeling that we draw any invidious distinctions, that in style of conversation, in ingenuity and ability of argument, this company would compare with any company of white gentlemen that we met in the island. In that circle of colored gentlemen, were the keen sallies

of wit, the admirable repartee, the satire now severe, now playful, upon the measures of the colonial government, the able exposure of aristocratic intolerance, of plantership chicanery, of plottings and counterplottings in high places--the strictures on the intrigues of the special magistrates and managers, and withal, the just and indignant reprobation of the uniform *oppressions* which have disabled and crushed the colored people.

The views of these gentlemen with regard to the present state of the island, we found to differ in some respects from those of the planters and special magistrates. They seemed to regard both those classes of men with suspicion. The planters they represented as being still, at least the mass of them, under the influence of the strong habits of tyrannizing and cruelty which they formed during slavery. The prohibitions and penalties of the law are not sufficient to prevent occasional and even frequent outbreaks of violence, so that the negroes even yet suffer much of the rigor of slavery. In regard to the special magistrates, they allege that they are greatly controlled by the planters. They associate with the planters, dine with the planters, lounge on the planters' sofas, and marry the planters daughters. Such intimacies as these, the gentlemen very plausibly argued, could not exist without strongly biasing the magistrate towards the planters, and rendering it almost impossible for them to administer equal justice to the poor apprentice, who, unfortunately, had no sumptuous dinners to give them, no luxurious sofas to offer them, nor dowered daughters to present in marriage.

The gentlemen testified to the industry and subordination of the apprentices. They had improved the general cultivation of the island, and they were reaping for their masters greater crops than they did while slaves. The whole company united in saying that many blessings had already resulted from the abolition of slavery--imperfect as that abolition was. Real estate had advanced in value at least one third. The fear of insurrection had been removed; invasions of property, such as occurred during slavery, the firing of cane-fields, the demolition of houses, &c., were no longer apprehended. Marriage was spreading among the apprentices, and the general morals of the whole community, high and low, white, colored, and black, were rapidly improving.

At ten o'clock we took leave of Mr. Harris and his interesting friends. We retired with feelings of pride and gratification that we had been privileged

to join a company which, though wearing the badge of a proscribed race, displayed in happy combination, the treasures of genuine intelligence, and the graces of accomplished manners. We were happy to meet in that social circle a son of New England, and a graduate of one of her universities. Mr. H. went to the West Indies a few months after the abolition of slavery. He took with him all the prejudices common to our country, as well as a determined hostility to abolition principles and measures. A brief observation of the astonishing results of abolition in those islands, effectually disarmed him of the latter, and made him the decided and zealous advocate of immediate emancipation. He established himself in business in Barbados, where he has been living the greater part of the time since he left his native country. His *prejudices* did not long survive his abandonment of anti-abolition sentiments. We rejoiced to find him on the occasion above referred to, moving in the circle of colored society, with all the freedom of a familiar guest, and prepared most cordially to unite with us in the wish that all our prejudiced countrymen could witness similar exhibitions. The gentleman at whose table we had the pleasure to dine, was *born a slave*, and remained such until he was seventeen years of age. After obtaining his freedom, he engaged as a clerk in a mercantile establishment, and soon attracted attention by his business talents. About the same period he warmly espoused the cause of the free colored people, who were doubly crushed under a load of civil and political impositions, and a still heavier one of prejudice. He soon made himself conspicuous by his manly defence of the rights of his brethren against the encroachments of the public authorities, and incurred the marked displeasure of several influential characters. After a protracted struggle for the civil immunities of the colored people, during which he repeatedly came into collision with public men, and was often arraigned before the public tribunals; finding his labors ineffectual, he left the island and went to England. He spent some time there and in France, moving on a footing of honorable equality among the distinguished abolitionists of those countries. There, amid the free influences and the generous sympathies which welcomed and surrounded him,--his whole character ripened in those manly graces and accomplishments which now so eminently distinguish him.

Since his return to Barbadoes, Mr. H. has not taken so public a part in political controversies as he did formerly, but is by no means indifferent to

passing events. There is not, we venture to say, within the colony, a keener or more sagacious observer of its institutions, its public men and their measures.

When witnessing the exhibitions of his manly spirit, and listening to his eloquent and glowing narratives of his struggles against the political *oppressions* which ground to the dust himself and his brethren, we could scarcely credit the fact that he was himself born and reared to manhood--A SLAVE.

BREAKFAST AT MR. THORNE'S.

By invitation we took breakfast with Mr. Joseph Thorne, whom we met at Mr. Harris's. Mr. T. resides in Bridgetown. In the parlor, we met two colored gentlemen--the Rev. Mr. Hamilton, a local Wesleyan preacher, and Mr. Cummins, a merchant of Bridgetown, mentioned in a previous chapter. We were struck with the scientific appearance of Mr. Thorne's parlor. On one side was a large library of religious, historical and literary works, the selection of which displayed no small taste and judgment. On the opposite side of the room was a fine cabinet of minerals and shells. In one corner stood a number of curious relics of the aboriginal Caribs, such as bows and arrows, *etc.*, together with interesting fossil remains. On the tops of the book-cases and mineral stand, were birds of rare species, procured from the South American Continent. The centre table was ornamented with shells, specimens of petrifications, and elegantly bound books. The remainder of the furniture of the room was costly and elegant. Before breakfast two of Mr. Thorne's children, little boys of six and four, stepped in to salute the company. They were of a bright yellow, with slightly curled hair. When they had shaken hands with each of the company, they withdrew from the parlor and were seen no more. Their manners and demeanor indicated the teachings of an admirable mother, and we were not a little curious to see the lady of whose taste and delicate sense of propriety we had witnessed so attractive a specimen in her children. At the breakfast table we were introduced to Mrs. Thorne, and we soon discovered from her dignified air, from the chaste and elevated style of her conversation, from her intelligence, modesty and refinement, that we were in the presence of a highly accomplished lady. The conversation was chiefly on subjects connected with our mission. All spoke with great gratitude of the downfall

of slavery. It was not the slaves alone that were interested in that event. Political oppression, prejudice, and licentiousness had combined greatly to degrade the colored community, but these evils were now gradually lessening, and would soon wholly disappear after the final extinction of slavery--the parent of them all.

Several facts were stated to show the great rise in the value of real estate since 1834. In one instance a gentleman bought a sugar estate for nineteen thousand pounds sterling, and the very next year, after taking off a crop from which he realized a profit of three thousand pounds sterling, he sold the estate for thirty thousand pounds sterling. It has frequently happened within two years that persons wishing to purchase estates would inquire the price of particular properties, and would hesitate to give what was demanded. Probably soon after they would return to close the bargain, and find that the price was increased by several hundreds of pounds; they would go away again, reluctant to purchase, and return a third time, when they would find the price again raised, and would finally be glad to buy at almost any price. It was very difficult to purchase sugar estates now, whereas previous to the abolition of slavery, they were, like the slaves, a drug in the market.

Mr. Joseph Thorne is a gentleman of forty-five, of a dark mulatto complexion, with the negro features and hair. *He was born a slave*, and remained so until about twenty years of age. This fact we learned from the manager of the Belle estate, on which Mr. T. was born and raised a slave. It was an interesting coincidence, that on the occasion of our visit to the Belle estate we were indebted to Mr. Thorne, the former *property* of that estate, for his horse and chaise, which he politely proffered to us. Mr. T. employs much of his time in laboring among the colored people in town, and among the apprentices on the estates, in the capacity of *lay-preacher*. In this way he renders himself very useful. Being very competent, both by piety and talents, for the work, and possessing more perhaps than any missionary, the confidence of the planters, he is admitted to many estates, to lecture the apprentices on religious and moral duties. Mr. T. is a member of the Episcopal church.

BREAKFAST AT MR. PRESCOD'S

We next had the pleasure of breakfasting with Mr. Prescod. Our esteemed friend, Mr. Harris, was of the company. Mr. P. is a young man, but lately married. His wife and himself were both liberally educated in England. He was the late editor of the New Times, a weekly paper established since the abolition of slavery and devoted chiefly to the interests of the colored community. It was the first periodical and the only one which advocated the rights of the colored people, and this it did with the utmost fearlessness and independence. It boldly exposed oppression, whether emanating from the government house or originating in the colonial assembly. The measures of all parties, and the conduct of every public man, were subject to its scrutiny, and when occasion required, to its stern rebuke. Mr. P. exhibits a thorough acquaintance with the politics of the country, and with the position of the various parties. He is familiar with the spirit and operations of the white gentry--far more so, it would seem; than many of his brethren who have been repeatedly deceived by their professions of increasing liberality, and their show of extending civil immunities, which after all proved to be practical nullities, and as such were denounced by Mr. P. at the outset. A few years ago the colored people mildly petitioned the legislature for a removal of their disabilities. Their remonstrance was too reasonable to be wholly disregarded. Something must be done which would at least bear the semblance of favoring the object of the petitioners. Accordingly the obnoxious clauses were repealed, and the colored people were admitted to the polls. But the qualification was made three times greater than that required of white citizens. This virtually nullified the extension of privilege, and actually confirmed the disabilities of which it was a pretended abrogation. The colored people, in their credulity, hailed the apparent enfranchisement, and had a public rejoicing in the occasion. But the delusion could not escape the discrimination of Mr. P. He detected it at once, and exposed it, and incurred the displeasure of the credulous people of color by refusing to participate in their premature rejoicings. He soon succeeded however in convincing his brethren that the new provision was a mockery of their wrongs, and that the assembly had only added insult to past injuries. Mr. P. now urged the colored people to be patient, as the great changes which were working in the colony must bring to them all the rights of which they had been so cruelly deprived. On the subject of prejudice he spoke just as a man of keen sensibilities and manly spirit might be expected to speak, who had himself been its victim. He was accustomed to being

flouted, scorned and condemned by those whom he could not but regard as his inferiors both in native talents and education. He had submitted to be forever debarred from offices which were filled by men far less worthy except in the single qualification of a *white skin*, which however was paramount to all other virtues and acquirements! He had seen himself and his accomplished wife excluded from the society of whites, though keenly conscious of their capacity to move and shine in the most elevated social circles. After all this, it may readily be conceived how Mr. P. would speak of prejudice. But while he spoke bitterly of the past, he was inspired with buoyancy of hope as he cast his eye to the future. He was confident that prejudice would disappear. It had already diminished very much, and it would ere long be wholly exterminated.

Mr. P. gave a sprightly picture of the industry of the negroes. It was common, he said, to hear them called lazy, but this was not true. That they often appeared to be indolent, especially those about the town, was true; but it was either because they had no work to do, or were asked to work without reasonable wages. He had often been amused at their conduct, when solicited to do small jobs--such as carrying baggage, loading or unloading a vessel, or the like. If offered a very small compensation, as was generally the case at first, they would stretch themselves on the ground, and with a sleepy look, and lazy tone, would say, "O, I can't do it, sir." Sometimes the applicants would turn away at once, thinking that they were unwilling to work, and cursing "the lazy devils;" but occasionally they would try the efficacy of offering a larger compensation, when instantly the negroes would spring to their feet, and the lounging inert mass would appear all activity.

We are very willing to hold up Mr. P. as a specimen of what colored people generally may become with proper cultivation, or to use the language of one of their own number,[\[A\]](#) "with free minds and space to rise."

[Footnote [A](#): Thomas C. Brown, who renounced colonization, returned from a disastrous and almost fatal expedition to Liberia, and afterwards went to the West Indies, in quest of a free country.]

We have purposely refrained from speaking of Mrs. P., lest any thing we should be willing to say respecting her, might seem to be adulation.

However, having alluded to her, we will say that it has seldom fallen to our lot to meet with her superior.

BREAKFAST AT MR. LONDON BOURNE'S.

After what has been said in this chapter to try the patience and irritate the nerves of the prejudiced, if there should be such among our readers, they will doubtless deem it quite intolerable to be introduced, not as hitherto to a family in whose faces the *lineaments* and the complexion of the white man are discernible, relieving the ebon hue, but to a household of genuine unadulterated negroes. We cordially accepted an invitation to breakfast with Mr. London Bourne. If the reader's horror of amalgamation does not allow him to join us at the table, perhaps he will consent to retire to the parlor, whence, without fear of contamination, he may safely view us through the folding doors, and note down our several positions around the board. At the head of the table presides, with much dignity, Mrs. Bourne; at the end opposite, sits Mr. Bourne--both of the glossiest jet; the thick matted hair of Mr. B. slightly frosted with age. He has an affable, open countenance, in which the radiance of an amiable spirit, and the lustre of a sprightly intellect, happily commingle, and illuminate the sable covering. On either hand of Mr. B. we sit, occupying the posts of honor. On the right and left of Mrs. B., and at the opposite corners from us, sit two other guests, one a colored merchant, and the other a young son-in-law of Mr. B., whose face is the very double extract of blackness; for which his intelligence, the splendor of his dress, and the elegance of his manners, can make to be sure but slight atonement! The middle seats are filled on the one side by an unmarried daughter of Mr. B., and on the other side by a promising son of eleven, who is to start on the morrow for Edinburgh, where he is to remain until he has received the honors of Scotland's far famed university.

We shall doubtless be thought by some of our readers to glory in our shame. Be it so. We *did* glory in joining the company which we have just described. On the present occasion we had a fair opportunity of testing the merits of an unmixed negro party, and of determining how far the various excellences of the gentlemen and ladies previously noticed were attributable to the admixture of English blood. We are compelled in candor to say; that the company of blacks did not fall a whit below those of the colored race in any respect. We conversed on the same general topics, which, of course, were

introduced where-ever we went. The gentlemen showed an intimate acquaintance with the state of the colony, with the merits of the apprenticeship system, and with the movements of the colonial government. As for Mrs. B., she presided at the table with great ease, dignity, self-possession, and grace. Her occasional remarks, made with genuine modesty, indicated good sense and discrimination. Among other topics of conversation, prejudice was not forgotten. The company were inquisitive as to the extent of it in the United States. We informed them that it appeared to be strongest in those states which held no slaves, that it prevailed among professing Christians, and that it was most manifestly seen in the house of God. We also intimated, in as delicate a manner as possible, that in almost any part of the United States such a table-scene as we then presented would be reprobated and denounced, if indeed it escaped the summary vengeance of the mob. We were highly gratified with their views of the proper way for the colored people to act in respect to prejudice. They said they were persuaded that their policy was to wait patiently for the operation of those influences which were now at work for the removal of prejudice. "*Social intercourse*," they said, "was not a thing to be gained by *pushing*." "They could not go to it, but it would come to them." It was for them however, to maintain an upright, dignified course, to be uniformly courteous, to seek the cultivation of their minds, and strive zealously for substantial worth, and by such means, and such alone, they could aid in overcoming prejudice.

Mr. Bourne was a slave until he was twenty-three years old. He was purchased by his father, a free negro, who gave five hundred dollars for him. His mother and four brothers were bought at the same time for the sum of two thousand five hundred dollars. He spoke very kindly of his former master. By industry, honesty, and close attention to business, Mr. B. has now become a wealthy merchant. He owns three stores in Bridgetown, lives in very genteel style in his own house, and is worth from twenty to thirty thousand dollars. He is highly respected by the merchants of Bridgetown for his integrity and business talents. By what means Mr. B. has acquired so much general information, we are at a loss to conjecture. Although we did not ourselves need the evidence of his possessing extraordinary talents, industry, and perseverance, yet we are happy to present our readers with such tangible proofs--proofs which are read in every language, and which pass current in every nation.

The foregoing sketches are sufficient to give a general idea of the colored people of Barbadoes. Perchance we may have taken too great liberties with those whose hospitalities we enjoyed; should this ever fall under their notice, we doubt not they will fully appreciate the motives which have actuated us in making them public. We are only sorry, for their sakes, and especially for that of our cause, that the delineations are so imperfect. That the above specimens are an exact likeness of the mass of colored people we do not pretend; but we do affirm, that they are as true an index to the whole community, as the merchants, physicians, and mechanics of any of our villages are to the entire population. We must say, also, that families of equal merit are by no means rare among the same people. We might mention many names which deservedly rank as high as those we have specified. One of the wealthiest merchants in Bridgetown is a colored gentleman. He has his mercantile agents in England, English clerks in his employ, a branch establishment in the city, and superintends the concerns of an extensive and complicated business with distinguished ability and success. A large portion, of not a majority of the merchants of Bridgetown are colored. Some of the most popular instructors are colored men and ladies, and one of these ranks high as a teacher of the ancient and modern languages. The most efficient and enterprising mechanics of the city, are colored and black men. There is scarcely any line of business which is not either shared or engrossed by colored persons, if we except that of *barber*. *The only barber in Bridgetown is a white man.*

That so many of the colored people should have obtained wealth and education is matter of astonishment, when we consider the numerous discouragements with which they have ever been doomed to struggle. The paths of political distinction have been barred against them by an arbitrary denial of the right of suffrage, and consequent ineligibility to office. Thus a large and powerful class of incitements to mental effort, which have been operating continually upon the whites, have never once stirred the sensibilities nor waked the ambition of the colored community. Parents, however wealthy, had no inducement to educate their sons for the learned professions, since no force of talent nor extent of acquirement could hope to break down the granite walls and iron bars which prejudice had erected round the pulpit, the bar, and the bench. From the same cause there was very little encouragement to acquire property, to seek education, to labor for

the graces of cultivated manners, or even to aspire to ordinary respectability, since not even the poor favor of social intercourse with the whites, of participating in the civilities and courtesies of every day life, was granted them.

The crushing power of a prevailing licentiousness, has also been added to the other discouragements of the colored people. Why should parents labor to amass wealth enough, and much of course it required, to send their daughters to Europe to receive their educations, if they were to return only to become the victims of an all-whelming concubinage! It is a fact, that in many cases young ladies, who have been sent to England to receive education, have, after accomplishing themselves in all the graces of womanhood, returned to the island to become the concubines of white men. Hitherto this vice has swept over the colored community, gathering its repeated conscriptions of beauty and innocence from the highest as well as the lowest families. Colored ladies have been taught to believe that it was more honorable, and quite as virtuous, to be the kept mistresses of *white gentlemen*, than the lawfully wedded wives of *colored men*. We repeat the remark, that the actual progress which the colored people of Barbadoes have made, while laboring under so many depressing influences, should excite our astonishment, and, we add, our admiration too. Our acquaintance with this people was at a very interesting period--just when they were beginning to be relieved from these discouragements, and to feel the regenerating spirit of a new era. It was to us like walking through a garden in the early spring. We could see the young buds of hope, the first bursts of ambition, the early up-shoots of confident aspiration, and occasionally the opening bloom of assurance. The star of hope had risen upon the colored people, and they were beginning to realize that *their* day had come. The long winter of their woes was melting into "glorious summer." Civil immunities and political privileges were just before them, the learned professions were opening to them, social equality and honorable domestic connections would soon be theirs. Parents were making fresh efforts to establish schools for the children, and to send the choicest of their sons and daughters to England. They rejoiced in the privileges they were securing, and they anticipated with virtuous pride the free access of their children to all the fields of enterprise, all the paths of honest emulation, and all the *eminences* of distinction.

We remark in conclusion, that the forbearance of the colored people of Barbadoes under their complicated wrongs is worthy of all admiration. Allied, as many of them are, to the first families of the island, and gifted as they are with every susceptibility to feel disgrace, it is a marvel that they have not indignantly cast off the yoke and demanded their political rights. Their wrongs have been unprovoked on their part, and unnatural on the part of those who have inflicted them--in many cases the guilty authors of their being. The patience and endurance of the sufferers under such circumstances are unexampled, except by the conduct of the slaves, who, though still more wronged, were, if possible, still more patient.

We regret to add, that until lately, the colored people of Barbadoes have been far in the background in the cause of abolition, and even now, the majority of them are either indifferent, or actually hostile to emancipation. They have no fellow feeling with the slave. In fact; they have had prejudices against the negroes no less bitter than those which the whites have exercised toward them. There are many honorable exceptions to this, as has already been shown; but such, we are assured, is the general fact.[[A](#)]

[Footnote [A](#): We are here reminded, by the force of contrast, of the noble spirit manifested by the free colored people of our own country. As early as 1817, a numerous body of them in Philadelphia, with the venerable James Forten at their head, pledged themselves to the cause of the slave in the following sublime sentiment, which deserves to be engraver to their glory on the granite of our "everlasting hills"--"Resolved, That we never will separate ourselves voluntarily from the slave population in this country; they are our brethren by the ties of consanguinity, of suffering, and of wrong; and we feel that there is more virtue in suffering privations with them, than enjoying *fancied* advantages for a season."

We believe that this resolution embodies the feelings and determinations of the free colored people generally in the free states.]

CHAPTER IV.

BARBADOES AS IT WAS, AND IS.

According to the declaration of one of the special magistrates, "Barbadoes has long been distinguished for its devotion to slavery." There is probably no portion of the globe where slave-holding, slave driving, and slave labor, have been reduced to a more perfect system.

The records of slavery in Barbadoes are stained with bloody atrocities. The planters uniformly spoke of slavery as a system of cruelties; but they expressed themselves in general terms. From colored gentlemen we learned some particulars, a few of which we give. To most of the following facts the narrators were themselves eye witnesses, and all of them happened in their day and were fresh in their memories.

The slaves were not unfrequently worked in the streets of Bridgetown with chains on their wrists and ankles. Flogging on the estates and in the town, were no less public than frequent, and there was an utter shamelessness often in the manner of its infliction. Even women were stripped naked on the sides of the streets, and their backs lacerated with the whip. It was a common practice, when a slave offended a white man, for the master to send for a public whipper, and order him to take the slave before the door of the person offended, and flog him till the latter was satisfied. White females would order their male slaves to be stripped naked in their presence and flogged, while they would look on to see that their orders were faithfully executed. Mr. Prescod mentioned an instance which he himself witnessed near Bridgetown. He had seen an aged female slave, stripped and whipped by her own son, a child of twelve, at the command of the mistress. As the boy was small, the mother was obliged to get down upon her hands and knees, so that the child could inflict the blows on her naked person with a rod. This was done on the public highway, before the mistress's door. Mr. T. well remembered when it was lawful for any man to shoot down his slave, under no greater penalty than twenty-five pounds currency; and he knew of cases in which this had been done. Just after the insurrection in 1816, white men made a regular sport of shooting negroes. Mr. T. mentioned one case. A young man had sworn that he would kill ten negroes before a certain time. When he had shot nine he went to take breakfast with a neighbor, and carried his gun along. The first slave he met on the estate, he accused of being concerned in the rebellion. The negro protested that he was innocent, and begged for mercy. The man told him to be gone, and as he turned to go away, he shot him dead. Having fulfilled his bloody pledge, the young

knight ate his breakfast with a relish. Mr. H. said that a planter once, in a time of perfect peace, went to his door and called one of his slaves. The negro made some reply which the master construed into insolence, and in a great rage he swore if he did not come to him immediately he would shoot him. The man replied he hoped massa wan't in earnest. 'I'll show you whether I am in earnest,' said the master, and with that he levelled his rifle, took deliberate aim, and shot the negro on the spot. He died immediately. Though great efforts were made by a few colored men to bring the murderer to punishment, they were all ineffectual. The evidence against him was clear enough, but the influence in his favor was so strong that he finally escaped.

Dungeons were built on all the estates, and they were often abominably filthy, and infested with loathsome and venomous vermin. For slight offences the slaves were thrust into these prisons for several successive nights--being dragged out every morning to work during the day. Various modes of torture were employed upon those who were consigned to the dungeon. There were stocks for their feet, and there were staples in the floor for the ankles and wrists, placed in such a position as to keep the victim stretched out and lying on his face. Mr. H. described one mode which was called the *cabin*. A narrow board, only wide enough for a man to lie upon, was fixed in an inclined position, and elevated considerably above the ground. The offending slave was made to lay upon this board, and a strong rope or chain, was tied about his neck and fastened to the ceiling. It was so arranged, that if he should fall from the plank, he would inevitably hang by his neck. Lying in this position all night, he was more likely than not to fall asleep, and then there were ninety-nine chances to one that he would roll off his narrow bed and be killed before he could awake, or have time to extricate himself. Peradventure this is the explanation of the anxiety Mr. ---- of ----, used to feel, when he had confined one of his slaves in the dungeon. He stated that he would frequently wake up in the night, was restless, and couldn't sleep, from fear that the prisoner would *kill himself* before morning.

It was common for the planters of Barbadoes, like those of Antigua, to declare that the greatest blessing of abolition to them, was that it relieved them from the disagreeable work of flogging the negroes. We had the unsolicited testimony of a planter, that slave mothers frequently poisoned,

and otherwise murdered, their young infants, to rid them of a life of slavery. What a horrible comment this upon the cruelties of slavery! Scarce has the mother given birth to her child, when she becomes its murderer. The slave-mother's joy begins, not like that of other mothers, when "a man is born into the world," but when her infant is hurried out of existence, and its first faint cry is hushed in the silence of death! Why this perversion of nature? Ah, that mother knows the agonies, the torments, the wasting woes, of a life of slavery, and by the bowels of a mother's love, and the yearnings of a mother's pity, she resolves that her babe shall never know the same. O, estimate who can, how many groans have gone up from the cane field, from the boiling-house, from around the wind mill, from the bye paths, from the shade of every tree, from the recesses of every dungeon!

Colonel Barrow, of Edgecome estate, declared, that the habit of flogging was so strong among the overseers and book-keepers, that even now they frequently indulge it in the face of penalties and at the risk of forfeiting their place.

The descriptions which the special magistrates give of the lower class of overseers and the managers of the petty estates, furnish data enough for judging of the manner in which they would be likely to act when clothed with arbitrary power. They are "a low order of men," "without education," "trained up to use the whip," "knowing nothing else save the art of flogging," "ready at any time to perjure themselves in any matter where a negro is concerned," &c. Now, may we not ask what but cruelty, the most monstrous, could be expected under a system where *such men* were constituted law makers, judges, and executioners?

From the foregoing facts, and the still stronger circumstantial evidence, we leave the reader to judge for himself as to the amount of cruelty attendant upon "the reign of terror," in Barbadoes. We must, however, mention one qualification, without which a wrong impression may be made. It has already been remarked that Barbadoes has, more than any other island, reduced slave labor and sugar cultivation to a regular system. This the planters have been compelled to do from the denseness of their population, the smallness of their territory, the fact that the land was all occupied, and still more, because the island, from long continued cultivation, was partly worn out. A prominent feature in their system was, theoretically at least,

good bodily treatment of the slaves, good feeding, attention to mothers, to pregnant women, and to children, in order that the estates might always be kept *well stocked with good-conditioned negroes*. They were considered the best managers, who increased the population of the estates most rapidly, and often premiums were given by the attorneys to such managers. Another feature in the Barbadoes system was to raise sufficient provisions in the island to maintain the slaves, or, in planter's phrase, to *feed the stock*, without being dependent upon foreign countries. This made the supplies of the slaves more certain and more abundant. From several circumstances in the condition of Barbadoes, it is manifest, that there were fewer motives to cruelty there than existed in other islands. First, the slave population was abundant, then the whole of the island was under cultivation, and again the lands were old and becoming exhausted. Now, if either one of these things had not been true, if the number of slaves had been inadequate to the cultivation, or if vast tracts of land, as in Jamaica, Trinidad, and Demerara, had been uncultivated, or were being brought into cultivation; or, again, if the lands under cultivation had been fresh and fertile, so as to bear *pushing*, then it is plain that there would have been inducements to hard driving, which, as the case was, did not exist.

Such is a partial view of Barbadoes as it *was*, touching the matter of cruelty. We say partial, for we have omitted to mention the selling of slaves from one estate to another, whereby families were separated, almost as effectually as though an ocean intervened. We have omitted to notice the transportation of slaves to Trinidad, Berbice, and Demerara, which was made an open traffic until prohibited in 1827, and was afterwards continued with but little abatement by evasions of the law.

From the painful contemplation of all this outrage and wrong, the mind is relieved by turning to the present state of the colony. It cannot be denied that much oppression grows out of the apprenticeship system, both from its essential nature, and from the want of virtuous principle and independence in the men who administer it. Yet it is certainly true that there has been a very great diminution in the amount of actual cruelty. The total abolition of flogging on the estates, the prohibition to use the dungeons, and depriving the masters, managers, overseers and drivers, of the right to punish in any case, or in any way whatever, leave no room for doubt on this subject. It is true, that the laws are often violated, but this can only take place in cases of

excessive passion, and it is not likely to be a very frequent occurrence. The penalty of the law is so heavy,[A] and the chances of detection[B] are so great, that in all ordinary circumstances they will be a sufficient security against the violence of the master. On the other hand, the special magistrates themselves seldom use the whip, but resort to other modes of punishment less cruel and degrading. Besides, it is manifest that if they did use the whip and were ever so cruelly disposed, it would be physically impossible for them to inflict as much suffering as the drivers could during slavery; on account of the vast numbers over whom they preside. We learned from the apprentices themselves, by conversing with them, that their condition, in respect to treatment, is incomparably better than it was during slavery. We were satisfied from our observations and inquiries, that the planters, at least the more extensive and enlightened ones, conduct their estates on different principles from those formerly followed. Before the abolition of slavery, they regarded the *whip* as absolutely necessary to the cultivation of sugar, and hence they uniformly used it, and loudly deprecated its abolition as being *their* certain ruin. But since the whip has been abolished, and the planters have found that the negroes continue, nevertheless, industrious and subordinate, they have changed their measures, partly from necessity, and partly from policy, have adopted a conciliatory course.

[Footnote A: A fine of sixteen dollars for the first assault, and the liberation of the apprentice after a second.]

[Footnote B: Through the complaint of the apprentice to the special magistrate]

Barbadoes was not without its insurrections during slavery. Although not very frequent, they left upon the minds of the white colonists this conviction, (repeatedly expressed to us by planters and others,) that *slavery and rebellions are inseparable*. The last widely extended insurrection occurred in 1816, in the eastern part of the island. Some of the particulars were given us by a planter who resided to that region, and suffered by it great loss of property. The plot was so cautiously laid, and kept so secret, that no one suspected it. The planter observed that if any one had told him that such a thing was brewing *ten minutes* before it burst forth, he would not have credited the statement. It began with firing the cane-fields. A signal

was given by a man setting fire to a pile of trash on an elevated spot, when instantly the fires broke out in every direction, and in less than a half hour, more than one hundred estates were in flames. The planters and their families, in the utmost alarm, either fled into other parts of the island, or seized their arms and hurriedly mustered in self-defence. Meanwhile the negroes, who had banded themselves in numerous companies, took advantage of the general consternation, proceeded to the deserted mansions of the planters, broke down the doors, battered in the windows, destroyed all the furniture, and carried away the provision stores to their own houses.

These ravages continued for three days, during which, the slaves flocked together in increasing numbers; in one place there were several thousands assembled. Above five hundred of the insurgents were shot down by the militia, before they could be arrested. The destruction of property during the rebellion was loosely estimated at many hundred thousand pounds. The canes on many estates were almost wholly burned; so that extensive properties, which ordinarily yielded from two to three hundred hogsheads, did not make more than fifteen or twenty.

Our informant mentioned two circumstances which he considered remarkable. One was, that the insurgents never touched the property of the estates to which they severally belonged; but went to the neighboring or more distant estates. The other was, that during the whole insurrection the negroes did not make a single attempt to destroy life. On the other hand, the sacrifice of negroes during the rebellion, and subsequent to it, was appalling. It was a long time before the white man's thirst for blood could be satiated.

No general insurrection occurred after this one. However, as late as 1823, the proprietor of Mount Wilton--the noblest estate in the island--was murdered by his slaves in a most horrid manner. A number of men entered his bed-chamber at night. He awoke ere they reached him, and grasped his sword, which always hung by his bed, but it was wrested from his hand, and he was mangled and killed. His death was caused by his *cruelties*, and especially by his *extreme licentiousness*. All the females on this estate were made successively the victims of his lust. This, together with his cruelties, so incensed the men, that they determined to murder the wretch. Several of them were publicly executed.

Next to the actual occurrence of rebellions, *the fear of them* deserves to be enumerated among the evils which slavery entailed upon Barbadoes. The dread of hurricanes to the people of Barbadoes is tolerable in comparison with the irrepressible apprehensions of bloody rebellions. A planter told us that he seldom went to bed without thinking he might be murdered before morning.

But now the whites are satisfied that slavery was the sole instigator of rebellions, and since its removal they have no fear on this score.

Licentiousness was another of the fruits of slavery. It will be difficult to give to the reader a proper conception of the prevalence of this vice in Barbadoes, and of the consequent demoralization. A numerous colored population were both the offspring and the victims of it. On a very moderate calculation, nineteen-twentieths of the present adult colored race are illegitimate. Concubinage was practised among the highest classes. Young merchants and others who were unmarried, on first going to the island, regularly engaged colored females to live with them as housekeepers and mistresses, and it was not unusual for a man to have more than one. The children of these connections usually sat with the mothers at the father's table, though when the gentlemen had company, neither mothers nor children made their appearance. To such conduct no disgrace was attached, nor was any shame felt by either party. We were assured that there are in Bridgetown, colored ladies of "respectability," who, though never married, have large families of children whose different surnames indicate their difference of parentage, but who probably do not know their fathers by any other token. These remarks apply to the towns. The morals of the estates were still more deplorable. The managers and overseers, commonly unmarried, left no female virtue unattempted. Rewards sometimes, but oftener the whip, or the dungeon, gave them the mastery in point of fact, which the laws allowed in theory. To the slaves marriage was scarcely known. They followed the example of the master, and were ready to minister to his lust. The mass of mulatto population grew paler as it multiplied, and catching the refinement along with the tint of civilization, waged a war upon marriage which had well nigh expelled it from the island. Such was Barbadoes under the auspices of slavery.

Although these evils still exist, yet, since the abolition of slavery, there is one symptom of returning purity, the *sense of shame*. Concubinage is becoming disreputable. The colored females are growing in self-respect, and are beginning to seek regular connections with colored men. They begin to feel (to use the language of one of them) that the *light is come*, and that they can no longer have the apology of ignorance to plead for their sin. It is the prevailing impression among whites, colored, and blacks, that open licentiousness cannot long survive slavery.

Prejudice was another of the concomitants of slavery. Barbadoes was proverbial for it. As far as was practicable, the colored people were excluded from all business connections; though merchants were compelled to make clerks of them for want of better, that is, *whiter*, ones. Colored merchants of wealth were shut out of the merchants' exchange, though possessed of untarnished integrity, while white men were admitted as subscribers without regard to character. It was not a little remarkable that the rooms occupied as the merchants' exchange were rented from a colored gentleman, or more properly, a *negro*;[A] who, though himself a merchant of extensive business at home and abroad, and occupying the floor below with a store, was not suffered to set his foot within them. This merchant, it will be remembered, is educating a son for a learned profession at the university of Edinburgh. Colored gentlemen were not allowed to become members of literary associations, nor subscribers to the town libraries. Social intercourse was utterly interdicted. To visit the houses of such men as we have already mentioned in a previous chapter, and especially to sit down at their tables, would have been a loss of caste; although the gentry were at the same time living with colored concubines. But most of all did this wicked prejudice delight to display itself in the churches. Originally, we believe, the despised color was confined to the galleries, afterwards it was admitted to the seats under the galleries, and ultimately it was allowed to extend to the body pews below the cross aisle. If perchance one of the proscribed class should ignorantly stray beyond these precincts, and take a seat above the cross aisle, he was instantly, if not forcibly, removed. Every opportunity was maliciously seized to taunt the colored people with their complexion. A gentleman of the highest worth stated that several years ago he applied to the proper officer for a license to be married. The license was accordingly made out and handed to him. It was expressed in the following

insulting style: "T---- H----, F.M., is licensed to marry H---- L----, F.C.W." The initials F.M. stood for *free mulatto*, and F.C.W. for *free colored woman*! The gentleman took his knife and cut out the initials; and was then threatened with a prosecution for forging his license.

[Footnote [A](#): Mr. London Bourne, the merchant mentioned in the previous chapter.]

It must be admitted that this cruel feeling still exists in Barbadoes. Prejudice is the last viper of the slavery-gendered brood that dies. But it is evidently growing weaker. This the reader will infer from several facts already stated. The colored people themselves are indulging sanguine hopes that prejudice will shortly die away. They could discover a bending on the part of the whites, and an apparent readiness to concede much of the ground hitherto withheld. They informed us that they had received intimations that they might be admitted as subscribers to the merchants' exchange if they would apply; but they were in no hurry to make the advances themselves. They felt assured that not only business equality, but social equality, would soon be theirs, and were waiting patiently for the course of events to bring them. They have too much self-respect to sue for the consideration of their white neighbors, or to accept it as a condescension and favor, when by a little patience they might obtain it on more honorable terms. It will doubtless be found in Barbadoes, as it has been in other countries--and perchance to the mortification of some lordlings--that freedom is a mighty leveller of human distinctions. The pyramid of pride and prejudice which slavery had upreared there, must soon crumble in the dust.

Indolence and inefficiency among the whites, was another prominent feature in slaveholding Barbadoes. Enterprise, public and personal, has long been a stranger to the island. Internal improvements, such as the laying and repairing of roads, the erection of bridges, building wharves, piers, &c., were either wholly neglected, or conducted in such a listless manner as to be a burlesque on the name of business. It was a standing task, requiring the combined energy of the island, to repair the damages of one hurricane before another came. The following circumstance was told us, by one of the shrewdest observers of men and things with whom we met in Barbadoes. On the southeastern coast of the island there is a low point running far out into the sea, endangering all vessels navigated by persons not well

acquainted with the island. Many vessels have been wrecked upon it in the attempt to make Bridgetown from the windward. From time immemorial, it has been in contemplation to erect a light-house on that point. Every time a vessel has been wrecked, the whole island has been agog for a light-house. Public meetings were called, and eloquent speeches made, and resolutions passed, to proceed to the work forthwith. Bills were introduced into the assembly, long speeches made, and appropriations voted commensurate with the stupendous undertaking. There the matter ended, and the excitement died away, only to be revived by another wreck, when a similar scene would ensue. The light-house is not built to this day. In personal activity, the Barbadians are as sadly deficient as in public spirit. London is said to have scores of wealthy merchants who have never been beyond its limits, nor once snuffed the country air. Bridgetown, we should think, is in this respect as deserving of the name *Little London* as Barbadoes is of the title "Little England," which it proudly assumes. We were credibly informed that there were merchants in Bridgetown who had never been off the island in their lives, nor more than five or six miles into the country. The sum total of their locomotion might be said to be, turning softly to one side of their chairs, and then softly to the other. Having no personal cares to harass them, and no political questions to agitate them--having no extended speculations to push, and no public enterprises to prosecute, (save occasionally when a wreck on the southern point throws them into a ferment,) the lives of the higher classes seem a perfect blank, as it regards every thing manly. Their thoughts are chiefly occupied with sensual pleasure, anticipated or enjoyed. The centre of existence to them is the *dinner-table*.

"They eat and drink and sleep, and then--
Eat and drink and sleep again."

That the abolition of slavery has laid the foundation for a reform in this respect, there can be no doubt. The indolence and inefficiency of the white community has grown out of slavery. It is the legitimate offspring of oppression everywhere--one of the burning curses which it never fails to visit upon its supporters. It may be seriously doubted, however, whether in Barbadoes this evil will terminate with its cause. There is there such a superabundance of the laboring population, that for a long time to come, labor must be very cheap, and the habitually indolent will doubtless prefer

employing others to work for them, than to work themselves. If, therefore, we should not see an active spirit of enterprise at once kindling among the Barbadians, *if the light-house should not be build for a quarter of a century to come*, it need not excite our astonishment.

We heard not a little concerning the expected distress of those white families whose property consisted chiefly of slaves. There were many such families, who have hitherto lived respectably and independently by hiring out their slaves. After 1840, these will be deprived of all their property, and will have no means of support whatever. As they will consider it degrading to work, and still more so to beg, they will be thrown into extremely embarrassing circumstances. It is thought that many of this class will leave the country, and seek a home where they will not be ashamed to work for their subsistence. We were forcibly reminded of the oft alleged objection to emancipation in the United States, that it would impoverish many excellent families in the South, and drive delicate females to the distaff and the wash-tub, whose hands have never been used to any thing--*rougher than the cowhide*. Much sympathy has been awakened in the North by such appeals, and vast numbers have been led by them to conclude that it is better for millions of slaves to famish in eternal bondage, than that a few white families, here and there scattered over the South, should be reduced to the humiliation of *working*.

Hostility to emancipation prevailed in Barbadoes. That island has always been peculiarly attached to slavery. From the beginning of the anti-slavery agitations in England, the Barbadians distinguished themselves by their inveterate opposition. As the grand result approximated they increased their resistance. They appealed, remonstrated, begged, threatened, deprecated, and imprecated. They continually protested that abolition would ruin the colony--that the negroes could never be brought to work--especially to raise sugar--without the whip. They both besought and demanded of the English that they should cease their interference with their private affairs and personal property.

Again and again they informed them that they were wholly disqualified, by their distance from the colonies, and their ignorance of the subject, to do any thing respecting it, and they were entreated to leave the whole matter

with the colonies, who alone could judge as to the best time and manner of moving, or whether it was proper to move at all.

We were assured that there was not a single planter in Barbadoes who was known to be in favor of abolition, before it took place; if, however, there had been one such, he would not have dared to avow his sentiments. The anti-slavery party in England were detested; no epithets were too vile for them--no curses too bitter. It was a Barbadian lady who once exclaimed in a public company in England, "O, I wish we had Wilberforce in the West Indies, I would be one of the very first to tear his heart out!" If such a felon wish could escape the lips of a female, and that too amid the awing influence of English society, what may we conclude were the feelings of planters and drivers on the island!

The opposition was maintained even after the abolition of slavery; and there was no colony, save Jamaica, with which the English government had so much trouble in arranging the provisions and conditions under which abolition was to take place.

From statements already made, the reader will see how great a change has come over the feelings of the planters.

He has followed us through this and the preceding chapters, he has seen tranquillity taking the place of insurrections, a sense of security succeeding to gloomy forbodings, and public order supplanting mob law; he has seen subordination to authority, peacefulness, industry, and increasing morality, characterizing the negro population; he has seen property rising in value, crime lessening, expenses of labor diminishing, the whole island blooming with unexampled cultivation, and waving with crops unprecedented in the memory of its inhabitants; above all, he has seen licentiousness decreasing, prejudice fading away, marriage extending, education spreading, and religion preparing to multiply her churches and missionaries over the land.

These are the blessing of abolition--*begun* only, and but partially realized as yet, but promising a rich maturity in time to come, after the work of freedom shall have been completed.

CHAPTER V.

THE APPRENTICESHIP SYSTEM.

The nature of the apprenticeship system may be learned from the following abstract of its provisions, relative to the three parties chiefly concerned in its operation--the special magistrate, the master, and the apprentice.

PROVISIONS RESPECTING THE SPECIAL MAGISTRATES.

1. They must be disconnected with planters and plantership, that they may be independent of all colonial parties and interests whatever.
2. The special magistrates adjudicate only in cases where the master and apprentice are parties. Offences committed by apprentices against any person not connected with the estates on which they live, come under the cognizance of the local magistrates or of higher courts.
3. The special justices sit three days in the week at their offices, where all complaints are carried, both by the master and apprentice. The magistrates do not go the estate, either to try or to punish offenders. Besides, the three days the magistrates are required to be at home every Saturday, (that being the day on which the apprentices are disengaged,) to give friendly advice and instruction on points of law and personal rights to all apprentices who may call.

PROVISIONS RESPECTING THE MASTER.

1. The master is allowed the gratuitous labor of the apprentice for forty-five hours each week. The several islands were permitted by the English government to make such a division of this time as local circumstances might seem to require. In some islands, as for instance in St. Christopher's and Tortola, it is spread over six days of the week in proportions of seven and a half hours per day, thus leaving the apprentice mere shreds of time in which he can accomplish nothing for himself. In Barbadoes, the forty-five hours is confined within five days, in portions of nine hours per day.
2. The allowances of food continue the same as during slavery, excepting that now the master may give, instead of the allowance, a third of an acre to each apprentice, but then he must also grant an additional day every week for the cultivation of this land.

3. The master has no power whatever to punish. A planter observed, "if I command my butler to stand for half an hour on the parlor floor, and it can be proved that I designed it as a punishment, I may be fined for it." The penalty for the first offence (punishing an apprentice) is a fine of five pounds currency, or sixteen dollars, and imprisonment if the punishment was cruel. For a second offence the apprentice is set free.

Masters frequently do punish their apprentices *in despite of all penalties*. A case in point occurred not long since, in Bridgetown. A lady owned a handsome young mulatto woman, who had a beautiful head of hair of which she was very proud. The servant did something displeasing to her mistress, and the latter in a rage shaved off her hair close to her head. The girl complained to the special magistrate, and procured an immediate release from her mistress's service.

4. It is the duty of the master to make complaint to the special magistrate. When the master chooses to take the punishment into his own hand, the apprentice has a right to complain.

5. The master is obliged to sell the remainder of the apprentice's term, whenever the apprentice signifies a wish to buy it. If the parties cannot agree about the price, the special magistrate, in connection with two local magistrates, appraises the latter, and the master is bound to take the amount of the appraisement, whatever that is. Instances of apprentices purchasing themselves are quite frequent, notwithstanding the term of service is now so short, extending only to August, 1840. The value of an apprentice varies from thirty to one hundred dollars.

PROVISIONS RESPECTING THE APPRENTICE.

1. He has the whole of Saturday, and the remnants of the other five days, after giving nine hours to the master.

2. The labor does not begin so early, nor continue so late as during slavery. Instead of half past four or five o'clock the apprentices are called out at six o'clock in the morning. They then work till seven, have an hour for breakfast, again work from eight to twelve, have a respite of two hours, and then work till six o'clock.

3. If an apprentice hires his time from his master as is not unfrequently the case, especially among the non-*praedials*, he pays a dollar a week, which is two thirds, or at least one half of his earnings.

4. If the apprentice has a complaint to make against his master, he must either make it during his own time, or if he prefers to go to the magistrate during work hours, he must ask his master for a pass. If his master refuse to give him one, he can then go without it.

5. There is an *unjustifiable inequality* in the apprentice laws, which was pointed out by one of the special magistrates. The master is punishable only for cruelty or corporeal inflictions, whereas the apprentice is punishable for a variety of offences, such as idleness, stealing, insubordination, insolence, &c. The master may be as insolent and abusive as he chooses to be, and the slave can have no redress.

6. Hard labor, solitary confinement, and the treadmill, are the principal modes of punishment. Shaving the head is sometimes resorted to. A very sever punishment frequently adopted, is requiring the apprentice to make up for the time during which he is confined. If he is committed for ten working days, he must give the master ten successive Saturdays.

This last regulation is particularly oppressive and palpably unjust. It matters not how slight the offence may have been, it is discretionary with the special magistrate to mulct the apprentice of his Saturdays. This provision really would appear to have been made expressly for the purpose of depriving the apprentices of their own time. It is a direct inducement to the master to complain. If the apprentice has been absent from his work but an hour, the magistrate may sentence him to give a whole day in return; consequently the master is encouraged to mark the slightest omission, and to complain of it whether it was unavoidable or not.

THE DESIGN OF THE APPRENTICESHIP.--It is a serious question with a portion of the colonists, whether or not the apprenticeship was originally designed as a preparation for freedom. This however was the professed object with its advocates, and it was on the strength of this plausible pretension, doubtless, that the measure was carried through. We believe it is pretty well understood, both in England and the colonies; that it was mainly intended *as an additional compensation to the planters*. The latter

complained that the twenty millions of pounds was but a pittance of the value of their slaves, and to drown their cries about robbery and oppression this system of modified slavery was granted to them, that they might, for a term of years, enjoy the toil of the negro without compensation. As a mockery to the hopes of the slaves this system was called an apprenticeship, and it was held out to them as a needful preparatory stage for them to pass through, ere they could rightly appreciate the blessings of entire freedom. It was not wonderful that they should be slow to apprehend the necessity of serving a six years' apprenticeship, at a business which they had been all their lives employed in. It is not too much to say that it was a grand cheat--a national imposture at the expense of the poor victims of oppression, whom, with benevolent pretences, it offered up a sacrifice to cupidity and power.

PRACTICAL OPERATION OF THE APPRENTICESHIP.--It cannot be denied that this system is in some respects far better than slavery. Many restraints are imposed upon the master, and many important privileges are secured to the apprentice. Being released from the arbitrary power of the master, is regarded by the latter as a vast stride towards entire liberty. We once asked an apprentice; if he thought apprenticeship was better than slavery. "O yes," said he, "great deal better, sir; when we was slaves, our masters git mad wid us, and give us *plenty of licks*; but now, thank God, they can't touch us." But the actual enjoyment of these advantages by the apprentices depends upon so many contingencies, such as the disposition of the master, and the faithfulness of the special magistrate, that it is left after all exceedingly precarious. A very few observations respecting the special magistrates, will serve to show how liable the apprentice is to suffer wrong without the possibility of obtaining redress. It is evident that this will be the case unless the special magistrates are *entirely independent*. This was foreseen by the English government, and they pretended to provide for it by paying the magistrates' salaries at home. But how inadequate was their provision! The salaries scarcely answer for pocket money in the West Indies. Thus situated, the magistrates are continually exposed to those temptations, which the planters can so artfully present in the shape of sumptuous dinners. They doubtless find it very convenient, when their stinted purses run low, and mutton and wines run high, to do as the New England school master does, "*board round*;" and consequently the

dependence of the magistrate upon the planter is of all things the most deprecated by the apprentice.[A]

[Footnote A: The feelings of apprentices on this point are well illustrated by the following anecdote, which was related to us while in the West Indies. The governor of one of the islands, shortly after his arrival, dined with one of the wealthiest proprietors. The next day one of the negroes of the estate said to another, "De new gubner been *poison'd*." "What dat you say?" inquired the other in astonishment, "De gubner been *poison'd*." "Dah, now!-How him poisoned!" "*Him eat massa turtle soup last night*," said the shrewd negro. The other took his meaning at once; and his sympathy for the governor was turned into concern for himself, when he perceived that the poison was one from which *he* was likely to suffer more than his excellency.]

Congeniality of feeling, habits, views, style and rank--identity of country and color--these powerful influences bias the magistrate toward the master, at the same time that the absence of them all, estrange and even repel him from the apprentice. There is still an additional consideration which operates against the unfortunate apprentice. The men selected for magistrates, are mostly officers of the army and navy. To those who are acquainted with the arbitrary habits of military and naval officers, and with the iron despotism which they exercise among the soldiers and sailors,[B] the bare mention of this fact is sufficient to convince them of the unenviable situation of the apprentice. It is at best but a gloomy transfer from the mercies of a slave driver, to the justice of a military magistrate.

[Footnote B: We had a specimen of the stuff special magistrates are made of in sailing from Barbadoes to Jamaica. The vessel was originally an English man-of-war brig, which had been converted into a steamer, and was employed by the English government, in conveying the island mails from Barbadoes to Jamaica--to and fro. She was still under the strict discipline of a man-of-war. The senior officer on board was a lieutenant. This man was one of the veriest savages on earth. His passions were in a perpetual storm, at some times higher than at others, occasionally they blew a hurricane. He quarrelled with his officers, and his orders to his men were always uttered in oaths. Scarcely a day passed that he did not have some one of his sailors flogged. One night, the cabin boy left the water-can sitting on the cabin

floor, instead of putting it on the sideboard, where it usually stood. For this offence the commander ordered him up on deck after midnight, and made the quarter-master flog him. The instrument used in this case, (the regular flogging stick having been *used up* by previous service,) was the commander's cane--*a heavy knotted club*. The boy held out one hand and received the blows. He howled most piteously, and it was some seconds before he recovered sufficiently from the pain to extend the other. "*Lay on*," stormed the commander. Down went the cane a second time. We thought it must have broken every bone in the boy's hand. This was repeated several times, the boy extending each hand alternately, and recoiling at every blow. "Now lay on to his back," sternly vociferated the commander--"give it to him--*hard--lay on harder*." The old seaman, who had some mercy in his heart, seemed very loth to lay out his strength on the boy with such a club. The commander became furious--cursed and swore--and again yelled, "*Give it to him harder, more--MORE--MORE--there, stop*." "you infernal villain"--speaking to the quarter-master and using the most horrid oaths--"You infernal villain, if you do not *lay on harder* the next time I command you, I'll have you put in irons." The boy limped away, writhing in every joint, and crying piteously, when the commander called at him, "Silence there, you imp--or I'll give you a second edition." One of the first things the commander did after we left Barbadoes, was to have a man flogged, and the last order we heard him give as we left the steamer at Kingston, was to put two of the men *in irons*.]

It is not a little remarkable that the apprenticeship should be regarded by the planters themselves, as well as by other persons generally throughout the colony, as merely a modified form of slavery. It is common to hear it called 'slavery under a different form,' 'another name for slavery,'--'modified slavery,' 'but little better than slavery.'

Nor is the practical operation of the system upon the *master* much less exceptionable. It takes out of his hand the power of coercing labor, and provides no other stimulus. Thus it subjects him to the necessity either of resorting to empty threats, which must result only in incessant disputes, or of condescending to persuade and entreat, against which his habits at once rebel, or of complaining to a third party--an alternative more revolting if possible, than the former, since it involves the acknowledgment of a higher power than his own. It sets up over his actions a foreign judge, at whose bar

he is alike amenable (in theory) with his apprentice, before whose tribunal he may be dragged at any moment by his apprentice, and from whose lips he may receive the humiliating sentence of punishment in the presence of his apprentice. It introduces between him and his laborers, mutual repellanties and estrangement; it encourages the former to exercise an authority which he would not venture to assume under a system of perfect freedom; it emboldens the latter to display an insolence which he would not have dreamed of in a state of slavery, and thus begetting in the one, the imperiousness of the slaveholder *without his power*, and in the other, the independence of the freeman *without his immunities*, it perpetuates a scene of angry collision, jealousy and hatred.

It does not even serve for the master the unworthy purpose for which it was mainly devised, viz., that of an additional compensation. The apprenticeship is estimated to be more expensive than a system of free labor would be. It is but little less expensive than slavery, and freedom it is confidently expected will be considerably less. So it would seem that this system burthens the master with much of the perplexity, the ignominy and the expensiveness of slavery, while it denies him its power. Such is the apprenticeship system. A splendid imposition!--which cheats the planter of his gains, cheats the British nation of its money, and robs the world of what else might have been a glorious example of immediate and entire emancipation.

THE APPRENTICESHIP IS NO PREPARATION FOR FREEDOM.--Indeed, as far as it can be, it is an actual *disqualification*. The testimony on this subject is ample. We rarely met a planter, who was disposed to maintain that the apprenticeship was preparing the negroes for freedom. They generally admitted that the people were no better prepared for freedom now, than they were in 1834; and some of them did not hesitate to say that the sole use to which they and their brother planters turned the system, was to get *as much work out of the apprentices while it lasted, as possible*. Clergymen and missionaries, declared that the apprenticeship was no preparation for freedom. If it were a preparation at all, it would most probably be so in a religious and educational point of view. We should expect to find the masters, if laboring at all to prepare their apprentices for freedom, doing so chiefly by encouraging missionaries and teachers to come to their estates, and by aiding in the erection of chapels and school-houses. But the missionaries declare that they meet with little more direct encouragement now, than they did during slavery.

The special magistrates also testify that the apprenticeship is no preparation for freedom. On this subject they are very explicit.

The colored people bear the same testimony. Not a few, too, affirm, that the tendency of the apprenticeship is to unfit the negroes for freedom, and avow it as their firm persuasion, that the people will be less prepared for liberty at the end of the apprenticeship, than they were at its commencement. And it is not without reason that they thus speak. They say, first, that the bickerings and disputes to which the system gives rise between the master

and the apprentice, and the arraigning of each other before the special magistrate, are directly calculated to alienate the parties. The effect of these contentions, kept up for six years, will be to implant *deep mutual hostility*; and the parties will be a hundred fold more irreconcilable than they were on the abolition of slavery. Again, they argue that the apprenticeship system is calculated to make the negroes regard *law as their foe*, and thus it unfits them for freedom. They reason thus--the apprentice looks to the magistrate as his judge, his avenger, his protector; he knows nothing of either law or justice except as he sees them exemplified in the decisions of the magistrate. When, therefore, the magistrate sentences him to punishment, when he knows he was the injured party, he will become disgusted with the very name of justice, and esteem law his greatest enemy.

The neglect of the planters to use the apprenticeship as a preparation for freedom, warrants us in the conclusion, that they do not think any preparation necessary. But we are not confined to doubtful inferences on this point. They testify positively--and not only planters, but all other classes of men likewise--that the slaves of Barbadoes were fit for entire freedom in 1834, and that they might have been emancipated then with perfect safety. Whatever may have been the sentiment of the Barbadians relative to the necessity of preparation before the experiment was made, it is clear that now they have no confidence either in the necessity or the practicability of preparatory schemes.

But we cannot close our remarks upon the apprenticeship system without noticing one good end which it has undesignedly accomplished, *i.e., the illustration of the good disposition of the colored people*. We firmly believe that if the friends of emancipation had wished to disprove all that has ever been said about the ferocity and revengefulness of the negroes, and at the same time to demonstrate that they possess, in a pre-eminent degree, those other qualities which render them the fit subjects of liberty and law, they could not have done it more triumphantly than it has been done by the apprenticeship. *How* this has been done may be shown by pointing out several respects in which the apprenticeship has been calculated to try the negro character most severely, and to develop all that was fiery and rebellious in it.

1. The apprenticeship removed that strong arm of slavery and substituted no adequate force. The arbitrary power of the master, which awed the slave into submission, was annihilated. The whip which was held over the slave, and compelled a kind of subordination--brutal, indeed, but effectual--was abolished. Here in the outset the reins were given to the long-oppressed, but now aspiring mass. No adequate force was substituted, because it was the intent of the new system to govern by milder means. This was well, but what were the milder means which were to take the place of brute force?

2. Was the stimulus of wages substituted? No! That was expressly denied. Was the liberty of locomotion granted? No. Was the privilege of gaining a personal interest in the soil extended to them? No. Were the immunities and rights of citizenship secured to them? No. Was the poor favor allowed them of selecting their own business, or of choosing their employer? Not even this? Thus far, then, we see nothing of the milder measures of the apprenticeship. It has indeed opened the prison doors and knocked off the prisoners' chains--but it still keeps them grinding there, as before, and refuses to let them come forth, except occasionally, and then only to be thrust back again. Is it not thus directly calculated to encourage indolence and insubordination?

3. In the next place, this system introduces a third party, to whom the apprentice is encouraged to look for justice, redress, and counsel. Thus he is led to regard his master as his enemy, and all confidence in him is for ever destroyed. But this is not the end of the difficulty. The apprentice carries up complaints against his master. If they gain a favorable hearing he triumphs over him--if they are disregarded, he concludes that the magistrate also is his enemy, and he goes away with a rankling grudge against his master. Thus he is gradually led to assert his own cause, and he learns to contend with his master, to reply insolently, to dispute, quarrel, and--it is well that we cannot add, to *fight*. At least one thing is the result--a permanent state of alienation, contempt of authority, and hatred. *All these are the fruits of the apprenticeship system.* They are caused by transferring the power of the master, while the *relation* continues the same. Nor is this contempt for the master, this alienation and hatred, all the mischief. The unjust decisions of the magistrate, of which the apprentices have such abundant reasons to complain, excite their abhorrence of him, and thus their confidence in the protection of law is weakened or destroyed. Here, then, is contempt for the

master, abhorrence of the magistrate, and mistrust of the law--the apprentice regarding all three as leagued together to rob him of his rights. What a combination of circumstances to drive the apprentices to desperation and madness! What a marvel that the outraged negroes have been restrained from bloody rebellions!

Another insurrectionary feature peculiar to the apprenticeship is its making the apprentices *free a portion of the time*. One fourth of the time is given them every week--just enough to afford them a taste of the sweets of liberty, and render them dissatisfied with their condition. Then the manner in which this time is divided is calculated to irritate. After being a slave nine hours, the apprentice is made a freeman for the remainder of the day; early the next morning the halter is again put on, and he treads the wheel another day. Thus the week wears away until Saturday; which is an entire day of freedom. The negro goes out and works for his master, or any one else, as he pleases, and at night he receives his quarter of a dollar. This is something like freedom, and he begins to have the feelings of a freeman--a lighter heart and more active limbs. He puts his money carefully away at night, and lays himself down to rest his toil-worn body. He awakes on Sabbath morning, and *is still free*. He puts on his best clothes, goes to church, worships a free God, contemplates a free heaven, sees his free children about him, and his wedded wife; and ere the night again returns, the consciousness that he is a slave is quite lost in the thoughts of liberty which fill his breast, and the associations of freedom which cluster around him. He sleeps again. *Monday morning he is startled from his dreams by the old "shell-blow" of slavery*, and he arises to endure another week of toil, alternated by the same tantalizing mockeries of freedom. Is not this applying the *hot iron to the nerve*?

5. But, lastly, the apprenticeship system, as if it would apply the match to this magazine of combustibles, holds out the reward of liberty to every apprentice who shall by any means provoke his master to punish him a second time.

[NOTE.--In a former part of this work--the report of Antigua--we mentioned having received information respecting a number of the apprenticeship islands, viz., Dominica, St. Christopher's, Nevis, Montserrat, Anguilla, and Tortola, from the Wesleyan Missionaries whom we

providentially met with at the annual district meeting in Antigua. We designed to give the statements of these men at some length in this connection, but we find that it would swell our report to too great a size. It only remains to say, therefore, in a word, that the same things are generally true of those colonies which have been detailed in the account of Barbadoes. There is the same peaceableness, subordination, industry, and patient suffering on the part of the apprentices, the same inefficiency of the apprenticeship as a preparation for freedom, and the same conviction in the community that the people will, if at all affected by it, be *less* fit for emancipation in 1840 than they were in 1834. A short call at St. Christopher's confirmed these views in our minds, so far as that island is concerned.

While in Barbadoes, we had repeated interviews with gentlemen who were well acquainted with the adjacent islands, St. Lucia, St. Vincent's, Grenada, &c.; one of whom was a proprietor of a sugar estate in St. Vincent's; and they assured us that there was the same tranquillity reigning in those islands which we saw in Barbadoes. Sir Evan McGregor, who is the governor-general of the windward colonies, and of course thoroughly informed respecting their internal state, gave us the same assurances. From Mr. H., an American gentleman, a merchant of Barbadoes, and formerly of Trinidad, we gathered similar information touching that large and (compared with Barbadoes or Antigua) semi-barbarous island.

We learned enough from these authentic sources to satisfy ourselves that the various degrees of intelligence in the several islands makes very little difference in the actual results of abolition; but that in all the colonies, conciliatory and equitable management has never failed to secure industry and tranquillity.]

JAMAICA.

CHAPTER I.

KINGSTON.

Having drawn out in detail the results of abolition, and the working of the apprenticeship system in Barbadoes, we shall spare the reader a protracted

account of Jamaica; but the importance of that colony, and the fact that greater dissatisfaction on account of the abolition of slavery has prevailed there than in all the other colonies together, demand a careful statement of facts.

On landing in Jamaica, we pushed onward in our appropriate inquiries, scarcely stopping to cast a glance at the towering mountains, with their cloud-wreathed tops, and the valleys where sunshine and shade sleep side by side--at the frowning precipices, made more awful by the impenetrable forest-foliage which shrouds the abysses below, leaving the impression of an ocean depth--at the broad lawns and magnificent savannahs glowing in verdure and sunlight--at the princely estates and palace mansions--at the luxuriant cultivation, and the sublime solitude of primeval forests, where trees of every name, the mahogany, the boxwood, the rosewood, the cedar, the palm, the fern, the bamboo, the cocoa, the breadfruit, the mango, the almond, all grow in wild confusion, interwoven with a dense tangled undergrowth.[\[A\]](#)

[Footnote [A](#): It is less necessary for us to dwell long on Jamaica, than it would otherwise be, since the English gentlemen, Messrs. Sturge and Harvey, spent most of their time in that island, and will, doubtless, publish their investigations, which will, ere long, be accessible to our readers. We had the pleasure of meeting these intelligent philanthropic and pious men in the West Indies, and from the great length of time, and the superior facilities which they enjoyed over us, of gathering a mass of facts in Jamaica, we feel assured that their report will be highly interesting and useful, as well among us as on the other side of the water.]

We were one month in Jamaica. For about a week we remained in Kingston, [\[B\]](#) and called on some of the principal gentlemen, both white and colored. We visited the Attorney-General, the Solicitor-General, some of the editors, the Baptist and Wesleyan missionaries, and several merchants. We likewise visited the public schools, the house of correction, penitentiary, hospital, and other public institutions. We shall speak briefly of several individuals whom we saw in Kingston, and give some of their statements.

[Footnote [B](#): The chief town of the island, with about forty thousand inhabitants.]

The Hon. Dowel O'Reily; the Attorney-General; is an Irishman, and of one of the influential families. In his own country he was a prominent politician, and a bold advocate of Catholic Emancipation. He is decidedly one of the ablest men in the island, distinguished for that simplicity of manners, and flow of natural benevolence, which are the characteristics of the Irishman. He received his present appointment from the English government about six years ago, and is, by virtue of his office, a member of the council. He declared that the apprenticeship was in no manner preparing the negroes for freedom, but was operating in a contrary way, especially in Jamaica, where it had been made the instrument of greater cruelties in some cases, than slavery itself. Mr. O'Reily is entirely free from prejudice; with all his family rank and official standing, he identifies himself with the colored people as far as his extensive professional engagements will allow. Having early learned this, we were surprised to find him so highly respected by the whites. In our subsequent excursions to the country, the letters of introduction with which he kindly furnished us, to planters and others, were uniformly received with avowals of the profoundest respect for him. It should be observed, that Mr. O'Reily's attachment to the cause of freedom in the colonies, is not a mere partizan feeling assumed in order to be in keeping with the government under which he holds his office. The fact of his being a Roman Catholic must, of itself, acquit him of the suspicion of any strong partiality for the English government. On the other hand, his decided hostility to the apprenticeship--the favorite offspring of British legislation--demonstrates equally his sincerity and independence.

We were introduced to the Solicitor-General, William Henry Anderson, Esq., of Kingston. Mr. A. is a Scotchman, and has resided to Jamaica for more than six years. We found him the fearless advocate of negro emancipation. He exposed the *corruptions* and abominations of the apprenticeship without reserve. Mr. A. furnished us with a written statement of his views, respecting the state of the island, the condition of the apprentices, &c., from which we here make a few extracts.

"1. A very material change for the better has taken place in the sentiments of the community since slavery was abolished. Religion and education were formerly opposed as subversive of the security of property; now they are in the most direct manner encouraged as its best support. The value of all kinds of property has risen considerably, and a general sense of security

appears to be rapidly pervading the public mind. I have not heard one man assert that it would be an advantage to return to slavery, even were it practicable; and I believe that the public is beginning to see that slave labor is not the cheapest."

"2. The prejudices against color are *rapidly vanishing*. I do not think there is a respectable man, I mean one who would be regarded as respectable on account of his good sense and weight of character, who would impugn another's conduct for associating with persons of color. So far as my observation goes, those who would formerly have acted on these prejudices, will be ashamed to own that they had entertained them. The distinction of superior acquirements still belongs to the whites, as a body; but that, and character, will shortly be the only distinguishing mark recognized among us."

"3. The apprentices are improving, *not, however, in consequence of the apprenticeship, but in spite of it, and in consequence of the great act of abolition!*"

"4. I think the negroes might have been emancipated as safely in 1834, as in 1840; and had the emancipation then taken place, they would be found much further in advance in 1840, than they can be after the expiration of the present period of apprenticeship, *through which all, both apprentices and masters, are LABORING HEAVILY.*"

"5. That the negroes will work if moderately compensated, no candid man can doubt. Their *endurance* for the sake of a very little gain is quite amazing, and they are most desirous to procure for themselves and families as large a share as possible of the comforts and decencies of life. They appear peculiarly to reverence and desire intellectual attainments. They employ, occasionally, children who have been taught in the schools to teach them in their leisure time to read."

"6. I think the partial modifications of slavery have been attended by so much improvement in all that constitutes the welfare and respectability of society, that I cannot doubt the increase of the benefit were a total abolition accomplished of every restriction that has arisen out of the former state of things."

During our stay in Kingston, we called on the American consul, to whom we had a letter from the consul at Antigua. We found him an elderly gentleman, and a true hearted Virginian, both in his generosity and his prejudices in favor of slavery. The consul, Colonel Harrison, is a near relation of General W.H. Harrison, of Ohio. Things, he said, were going ruinously in Jamaica. The English government were mad for abolishing slavery. The negroes of Jamaica were the most degraded and ignorant of all negroes he had ever seen. He had travelled in all our Southern States, and the American negroes, even those of South Carolina and Georgia, were as much superior to the negroes of Jamaica, as Henry Clay was superior to him. He said they were the most ungrateful, faithless set he ever saw; no confidence could be placed in them, and kindness was always requited by insult. He proceeded to relate a fact from which it appeared that the ground on which his grave charges against the negro character rested, was the ill-conduct of one negro woman whom he had hired some time ago to assist his family. The town negroes, he said, were too lazy to work; they loitered and lounged about on the sidewalks all day, jabbering with one another, and keeping up an incessant noise; and they would not suffer a white man to order them in the least. They were rearing their children in perfect idleness and for his part he could not tell what would become of the rising population of blacks. Their parents were too proud to let them work, and they sent them to school all the time. Every afternoon, he said, the streets are thronged with the half-naked little black devils, just broke from the schools, and all singing some noisy tune learned in the infant schools; the *burthen* of their songs seems to be, "*O that will be joyful.*" These words, said he, are ringing in your ears wherever you go. How aggravating truly such words must be, bursting cheerily from the lips of the little free songsters! "*O that will be joyful, joyful, JOYFUL*"--and so they ring the changes day after day, ceaseless and untiring. A new song this, well befitting the times and the prospects, but provoking enough to oppressors. The consul denounced the special magistrates; they were an insolent set of fellows, they would fine a white man as quick as they would flog a *nigger*. [A] If a master called his apprentice "you scoundrel," or, "you huzzy," the magistrate would either fine him for it or reprove him sharply in the presence of the apprentice. This, in the eyes of the veteran Virginian, was intolerable. Outrageous, not to allow a *gentleman* to call his servant what names he chooses! We were very much edified by the Colonel's *exposé* of

Jamaica manners. We must say, however, that his opinions had much less weight with us after we learned (as we did from the best authority) that he had never been a half dozen miles into the country during a ten year's residence in Kingston.

[Footnote [A](#): We fear there is too little truth in this representation.]

We called on the Rev. Jonathan Edmonson, the superintendent of the Wesleyan missions in Jamaica. Mr. E. has been for many years laboring as a missionary in the West Indies, first in Barbadoes, then in St. Vincent's, Grenada, Trinidad, and Demerara, and lastly in Jamaica. He stated that the planters were doing comparatively nothing to prepare the negroes for freedom. "*Their whole object was to get as much sugar out of them as they possibly could.*"

We received a call from the Rev. Mr. Wooldridge, one of the Independent missionaries. He thinks the conduct of the planters is tending to make the apprentices their bitter enemies. He mentioned one effect of the apprenticeship which had not been pointed out to us before. The system of appraisement, he said, was a *premium upon all the bad qualities of the negroes and a tax upon all the good ones*. When a person is to be appraised, his virtues and his vices are always inquired into, and they materially influence the estimate of his value. For example, the usual rate of appraisement is a dollar per week for the remainder of the term; but if the apprentice is particularly sober, honest, and industrious, more particularly if he be a *pious man*, he is valued at the rate of two or three dollars per week. It was consequently for the interest of the master, when an apprentice applied for an appraisement, to portray his virtues, while on the other hand there was an inducement for the apprentice to conceal or actually to renounce his good qualities, and foster the worst vices. Some instances of this kind had fallen under his personal observation.

We called on the Rev. Mr. Gardiner, and on the Rev. Mr. Tinson, two Baptist missionaries in Kingston. On Sabbath we attended service at the church of which Mr. G. is the pastor. It is a very large building, capable of seating two thousand persons. The great mass of the congregation were apprentices. At the time we were present, the chapel was well filled, and the broad surface of black faces was scarcely at all diversified with lighter

colors. It was gratifying to witness the neatness of dress, the sobriety of demeanor, the devotional aspect of countenance, the quiet and wakeful attention to the preacher which prevailed. They were mostly rural negroes from the estates adjacent to Kingston.

The Baptists are the most numerous body of Christians in the island. The number of their missionaries now in Jamaica is sixteen, the number of Chapels is thirty-one, and the number of members thirty-two thousand nine hundred and sixty. The increase of members during the year 1836 was three thousand three hundred and forty-four.

At present the missionary field is mostly engrossed by the Baptists and Wesleyans. The Moravians are the next most numerous body. Besides these, there are the clergy of the English Church, with a Bishop, and a few Scotch clergymen. The Baptist missionaries, as a body, have been most distinguished for their opposition to slavery. Their boldness in the midst of suffering and *persecutions*, their denunciations of oppression, though they did for a time arouse the wrath of oppressors, and cause their chapels to be torn down and themselves to be hunted, imprisoned, and banished, did more probably than any other cause, to hasten the abolition of slavery.

Schools in Kingston.--We visited the Wolmer free school--the largest and oldest school in the island. The whole number of scholars is five hundred. It is under the charge of Mr. Reid, a venerable Scotchman, of scholarship and piety. All colors are mingled in it promiscuously. We saw the infant school department examined by Mr. R. There were nearly one hundred and fifty children, of every hue, from the jettiest black to the fairest white; they were thoroughly intermingled, and the ready answers ran along the ranks from black to white, from white to brown, from brown to pale, with undistinguished vivacity and accuracy. We were afterwards conducted into the higher department, where lads and misses from nine to fifteen, were instructed in the various branches of academic education. A class of lads, mostly colored, were examined in arithmetic. They wrought several sums in pounds, shillings and pence currency, with wonderful celerity.

Among other things which we witnessed in that school, we shall not soon forget having seen a curly headed negro lad of twelve, examining a class of white young ladies in scientific history.

Some written statements and statistical tables were furnished us by Mr. Reid, which we subjoin..

Kingston, May 13th, 1837

DEAR SIR,--I delayed answering your queries in hopes of being able to give you an accurate list of the number of schools in Kingston, and pupils under tuition, but have not been able completely to accomplish my intention. I shall now answer your queries in the order you propose them. 1st Quest. How long have you been teaching in Jamaica? *Ans.* Thirty-eight years in Kingston. 2d Q. How long have you been master of Wolmer's free school? A. Twenty-three years. 3d Q. What is the number of colored children now in the school? A. Four hundred and thirty. 4th Q. Was there any opposition to their admission at first? A. Considerable opposition the first year, but none afterwards. 5th Q. Do they learn as readily as the white children? A. As they are more regular in their attendance, they learn better. 6th Q. Are they as easily governed? A. Much easier. 7th Q. What proportion of the school are the children of apprentices? A. Fifty. 8th Q. Do their parents manifest a desire to have them educated? A. In general they do. 9th Q. At what age do the children leave your school? A. Generally between twelve and fourteen. 10th Q. What employments do they chiefly engage in upon leaving you? A. The boys go to various mechanic trades, to counting-houses, attorney's offices, clerks to planting attorneys, and others become planters. The girls seamstresses, mantuamakers, and a considerable proportion tailoresses, in Kingston and throughout Jamaica, as situations offer.

I am, dear sirs, yours respectfully,

E. REID.

The following table will show the average numbers of the respective classes, white and colored, who have attended Wolmer's free school in each year, from 1814 to the present time.

	White Children.	Colored Children.	Total.
Average number in 1814	87		87

"	"	1815	111	3	114
"	"	1816	129	25	154
"	"	1817	146	36	182
"	"	1818	155	38	193
"	"	1819	136	57	193
"	"	1820	116	78	194
"	"	1821	118	122	240
"	"	1822	93	167	260
"	"	1823	97	187	280
"	"	1824	94	196	290
"	"	1825	89	185	274
"	"	1826	93	176	269
"	"	1827	92	156	248
"	"	1828	88	152	240
"	"	1829	79	192	271
"	"	1830	88	194	282
"	"	1831	88	315	403
"	"	1832	90	360	450
"	"	1833	93	411	504
"	"	1834	81	420	501
"	"	1835	85	425	510
"	"	1836	78	428	506
"	"	1837	72	430	502

With regard to the *comparative intellect* of white and colored children, Mr. Reid gives the following valuable statement:

"For the last thirty-eight years I have been employed in this city in the tuition of children of all classes and colors, and have no hesitation in saying

that the children of color are equal both in conduct and ability to the white. They have always carried off more than their proportion of prizes, and at one examination, out of seventy prizes awarded, sixty-four were obtained by children of color."

Mr. R. afterwards sent to us the table of the number of schools in Kingston, alluded to in the foregoing communication. We insert it here, as it affords a view of the increase of schools and scholars since the abolition of slavery.

1831.

	Schools.	Scholars.
2	Wolmer's,	403
1	National,	270
34	Gentlemen's private,	1368
40	Ladies' do.,	1005
8	Sunday,	1042
85	Total,	4088

1832.

	Schools.	Scholars.
2	Wolmer's,	472
1	National,	260
31	Gentlemen's private,	1169
41	Ladies' do.,	856
8	Sunday,	981
83	Total,	3738

1836.

	Schools.	Scholars.
2	Wolmer's,	527
3	National,	1136
3	Mico,	590
1	Baptist,	250
1	Jamaica Union,	120
31	Gentlemen's private,	1137

59	Ladies' do.,	1339
9	Sunday,	1108
	By itinerant teachers and children.	1500
109	Total,	7707

1837.

	Schools.	Scholars.
2	Wolmer's,	502
3	National,	1238
4	Mico,	611
1	Baptist,	260
1	Jamaica Union,	200
34	Gentlemen's private,	1476
63	Ladies' do.,	1525
10	Sunday,	1316
	By itinerant teachers and children.	1625
118	Total,	8753

We also visited the Union school, which has been established for some years in Kingston. All the children connected with it, about one hundred and fifty, are, with two exceptions, black or colored. The school is conducted generally on the Lancasterian plan. We examined several of the boys in arithmetic. We put a variety of questions to them, to be worked out on the slate, and the reasons of the process to be explained as they went along; all which they executed with great expertness. There was a jet black boy, whom we selected for a special trial. We commenced with the simple rules, and went through them one by one, together with the compound rules and Reduction, to Practice, propounding questions and examples in each of them, which were entirely new to him, and to all of them he gave prompt and correct replies. He was only thirteen years old, and we can aver we never saw a boy of that age in any of our common schools, that exhibited a fuller and clearer knowledge of the science of numbers.

In general, our opinion of this school was similar to that already expressed concerning the others. It is supported by the pupils, aided by six hundred dollars granted by the assembly.

In connection with this subject, there is one fact of much interest. However strong and exclusive was the prejudice of color a few years since in the schools of Jamaica, we could not, during our stay in that island, learn of more than two or three places of education, and those private ones, from which colored children were excluded, and among the numerous schools in Kingston, there is not one of this kind.

We called on several colored gentlemen of Kingston, from whom we received much valuable information. The colored population are opposed to the apprenticeship, and all the influence which they have, both in the colony and with the home government, (which is not small,) is exerted against it. They are a festering thorn in the sides of the planters, among whom they maintain a fearless espionage, exposing by pen and tongue their iniquitous proceedings. It is to be regretted that their influence in this respect is so sadly weakened by their *holding apprentices themselves*.

We had repeated invitations to breakfast and dine with colored gentlemen, which we accepted as often as our engagements would permit. On such occasions we generally met a company of gentlemen and ladies of superior social and intellectual accomplishments. We must say, that it is a great self-denial to refrain from a description of some of the animated, and we must add splendid, parties of colored people which we attended. The conversation on these occasions mostly turned on the political and civil disabilities under which the colored population formerly labored, and the various straggles by which they ultimately obtained their rights. The following are a few items of their history. The colored people of Jamaica, though very numerous, and to some extent wealthy and intelligent, were long kept by the white colonists in a state of abject political bondage. Not only were offices withheld from them, and the right of suffrage denied, but they were not even allowed the privilege of an oath in court, in defense of their property or their persons. They might be violently assaulted, their limbs broken, their wives and daughters might be outraged before their eyes by villains having white skins; yet they had no legal redress unless another white man chanced to see the deed. It was not until 1824 that this

oppressive enactment was repealed, and the protection of an oath extended to the colored people; nor was it then effected without a long struggle on their part.

Another law, equally worthy of a slaveholding legislature, prohibited any white man, however wealthy, bequeathing, or in any manner giving his colored son or daughter more than £2000 currency, or six thousand dollars. The design of this law was to keep the colored people poor and dependent upon the whites. Further to secure the same object, every effort, both legislative and private, was made to debar them from schools, and sink them in the lowest ignorance. Their young men of talent were glad to get situations as clerks in the stores of white merchants. Their young ladies of beauty and accomplishments were fortune-made if they got a place in the white man's harem. These were the highest stations to which the flower of their youth aspired. The rest sank beneath the discouragements, and grovelled in vice and debasement. If a colored person had any business with a white gentleman, and should call at his house, "he must take off his hat, and wait at the door, and be *as polite as a dog*."

These insults and *oppressions* the colored people in Jamaica bore, until they could bear them no longer. By secret correspondence they formed a union throughout the island, for the purpose of resistance. This, however, was not effected for a long time, and while in process, the correspondence was detected, and the most vigorous means were used by the whites to crush the growing conspiracy--for such it was virtually. Persuasions and intimations were used privately, and when these failed, *public persecutions* were resorted to, under the form of judicial procedures. Among the milder means was the dismissal of clerks, agents, &c., from the employ of a white men. As soon as a merchant discovered that his clerk was implicated in the correspondence, he first threatened to discharge him unless he would promise to desert his brethren: if he could not extort this promise, he immediately put his threat in execution. Edward Jordon, Esq., the talented editor of the Watchman, then first clerk in the store of a Mr. Briden, was prominently concerned in the correspondence, and was summarily dismissed.

White men drove their colored sons from their houses, and subjected them to every indignity and suffering, in order to deter them from prosecuting an

enterprise which was seen by the terrified oppressors to be fraught with danger to themselves. Then followed more violent measures. Persons suspected of being the projectors of the disaffection, were dragged before incensed judges, and after mock trials, were sentenced to imprisonment in the city jail. Messrs. Jordon and Osborne, (after they had established the Watchman paper,) were both imprisoned; the former twice, for five months each time. At the close of the second term of imprisonment, Mr. Jordon was *tried for his life*, on the charge of having published *sedition matter* in the Watchman.

The paragraph which was denominated '*sedition matter*' was this--

"Now that the member for Westmoreland (Mr. Beaumont) has come over to our side, we will, by a long pull, a strong pull, and a pull altogether, bring down the system by the run, knock off the fetters, and let the oppressed go free."

On the day of Mr. J.'s trial, the court-room was thronged with colored men, who had armed themselves, and were determined, if the sentence of death were pronounced upon Mr. Jordon, to rescue him at whatever hazard. It is supposed that their purpose was conjectured by the judges--at any rate, they saw fit to acquit Mr. J. and give him his enlargement. The Watchman continued as fearless and *sedition* as ever, until the Assembly were ultimately provoked to threaten some extreme measure which should effectually silence the agitators. *Then* Mr. Jordon issued a spirited circular, in which he stated the extent of the coalition among the colored people, and in a tone of defiance demanded the instant repeal of every restrictive law, the removal of every disability, and the extension of complete political equality; declaring, that if the demand were not complied with, the whole colored population would rise in arms, would proclaim freedom to their own slaves, instigate the slaves generally to rebellion, and then shout war and wage it, until *the streets of Kingston should run blood*. This bold piece of generalship succeeded. The terrified legislators huddled together in their Assembly-room, and swept away, at one blow, all restrictions, and gave the colored people entire enfranchisement. These occurrences took place in 1831; since which time the colored class have been politically free, and have been marching forward with rapid step in every species of improvement, and are now on a higher footing than in any other colony. All

offices are open to them; they are aldermen of the city, justices of the peace, inspectors of public institutions, trustees of schools, *etc.* There are, at least, then colored special magistrates, natives of the island. There are four colored members of the Assembly, including Messrs. Jordon and Osborne. Mr. Jordon now sits in the same Assembly, side by side, with the man who, a few years ago, ejected him disdainfully from his clerkship. He is a member of the Assembly for the city of Kingston, where not long since he was imprisoned, and tried for his life. He is also alderman of the city, and one of its local magistrates. He is now inspector of the same prison in which he was formerly immured as a pestilent fellow, and a mover of sedition.

The secretary of the special magistrate department, Richard Hill, Esq., is a colored gentleman, and is one of the first men in the island,^[A] for integrity, independence, superior abilities, and extensive acquirements. It has seldom been our happiness to meet with a man more illustrious for true nobility of soul, or in whose countenance there were deeper traces of intellectual and moral greatness. We are confident that no man can see him without being impressed with his rare combination of excellences.

[Footnote ^A: We learn from the Jamaica papers, since our return to this country, that Mr. Hill has been elected a member of the Assembly.]

Having said thus much respecting the political advancement of the colored people, it is proper to remark, that they have by no means evinced a determination to claim more than their share of office and influence. On the contrary, they stop very far short of what they are entitled to. Having an extent of suffrage but little less than the whites, they might fill one third of the seats in the Assembly, whereas they now return but four members out of forty-five. The same may be said of other offices, particularly those in the city of Kingston, and the larger towns, where they are equal to, or more numerous, than the whites. It is a fact, that a portion of the colored people continue at this time to return white members to the Assembly, and to vote for white aldermen and other city officers. The influential men among them, have always urged them to take up white men, unless they could find *competent* men of their own color. As they remarked to us, if they were obliged to send an *ass* to the Assembly, it was far better for *them* to send a *white* ass than a *black* one.

In company with a friend, we visited the principal streets and places of business in Kingston, for the purpose of seeing for ourselves the general employments of the people of color; and those who engage in the lowest offices, such as porters, watermen, draymen, and servants of all grades, from him who flaunts in livery, to him who polishes shoes, are of course from this class. So with the fruiterers, fishmongers, and the almost innumerable tribe of petty hucksters which swarm throughout the city, and is collected in a dense mass in its suburbs. The market, which is the largest and best in the West Indies, is almost entirely supplied and attended by colored persons, mostly females. The great body of artisans is composed mostly of colored persons.

There are two large furniture and cabinet manufactories in Kingston, one owned by two colored men, and the other by a white man. The operatives, of which one contains eighty, and the other nearly as many, are all black and colored. A large number of them are what the British law terms *apprentices*, and are still bound in unremunerated servitude, though some of them for thrice seven years have been adepts in their trades, and not a few are earning their masters twenty or thirty dollars each month, clear of all expenses. Some of these *apprentices* are hoary-headed and wrinkle-browed men, with their children, and grand-children, apprentices also, around them, and who, after having used the plane and the chisel for half a century, with faithfulness for *others*, are now spending the few hours and the failing strength of old again in *preparing* to use the plane and the chisel for *themselves*. The work on which they were engaged evinced no lack of mechanical skill and ingenuity, but on the contrary we were shown some of the most elegant specimens of mechanical skill, which we ever saw. The rich woods of the West Indies were put into almost every form and combination which taste could designate or luxury desire.

The owners of these establishments informed us that their business had much *increased within the last two years*, and was still extending. Neither of them had any fears for the results of complete emancipation, but both were laying their plans for the future as broadly and confidently as ever.

In our walk we accidentally met a colored man, whom we had heard mentioned on several occasions as a superior architect. From the conversation we had with him, then and subsequently, he appeared to

possess a fine mechanical genius, and to have made acquirements which would be honorable in any man, but which were truly admirable in one who had been shut up all his life by the disabilities which in Jamaica have, until recently, attached to color. He superintended the erection of the Wesleyan chapel in Kingston, the largest building of the kind in the island, and esteemed by many as the most elegant. The plan was his own, and the work was executed under his own eye. This man is using his means and influence to encourage the study of his favorite art, and of the arts and sciences generally, among those of his own hue.

One of the largest bookstores in the island is owned by two colored men. (Messrs. Jordon and Osborne, already referred to.) Connected with it is an extensive printing-office, from which a newspaper is issued twice a week. Another paper, under the control of colored men, is published at Spanishtown. These are the two principal liberal presses in Jamaica, and are conducted with spirit and ability. Their influence in the political and civil affairs of the island is very great. They are the organs of the colored people, bond and free, and through them any violation of law or humanity is exposed to the public, and redress demanded, and generally obtained. In literary merit and correctness of moral sentiment, they are not excelled by any press there, while some of their white contemporaries fall far below them in both. Besides the workmen employed in these two offices, there is a large number of colored printers in the other printing offices, of which there are several.

We called at two large establishments for making jellies, comfits, pickles, and all the varieties of tropic *preserves*. In each of them thirty or more persons are constantly employed, and a capital of some thousands of dollars invested. Several large rooms were occupied by boxes, jars, and canisters, with the apparatus necessary to the process, through which the fruit passes. We saw every species of fruits and vegetables which the island produces, some fresh from the trees and vines, and others ready to be transported to the four quarters of the globe, in almost every state which the invalid or epicure could desire. These articles, with the different preparations of arrow-root and cassada, form a lucrative branch of trade, which is mostly in the hands of the colored people.

We were introduced to a large number of colored merchants, dealers in dry goods, crockery and glass ware, ironmongers, booksellers, druggists, grocers, and general importers and were conducted by them through their stores; many of which were on an extensive scale, and managed, apparently, with much order and regularity. One of the largest commercial houses in Kingston has a colored man as a partner, the other two being white. Of a large auction and commission firm, the most active and leading partner is a colored man. Besides these, there is hardly a respectable house among the white merchants, in which some important office, oftentimes the head clerkship, is not filled by a person of color. They are as much respected in business transactions, and their mercantile talents, their acquaintance with the generalities and details of commerce, and sagacity and judgment in making bargains, are as highly esteemed by the white merchants, as though they wore an European hue. The commercial room is open to them, where they resort unrestrainedly to ascertain the news; and a visitor may not unfrequently see sitting together at a table of newspapers, or conversing together in the parlance of trade, persons as dissimilar in complexion as white and black can make them. In the streets the same intercourse is seen.

The general trade of the island is gradually and quietly passing into the hands of the colored people. Before emancipation, they seldom reached a higher grade in mercantile life than a clerkship, or, if they commenced business for themselves, they were shackled and confined in their operations by the overgrown and monopolizing establishments which slavery had built up. Though the civil and political rights of one class of them were acknowledged three years previous, yet they found they could not, even if they desired it, disconnect themselves from the slaves. They could not transact business--form credits and agencies, and receive the confidence of the commercial public--like free men. Strange or not, their fate was inseparably linked with that of the bondman, their interests were considered as involved with his. However honest they might be, it was not safe to trust them; and any attempt to rise above a clerkship, to become the employer instead of the employed, was regarded as a kind of insurrection, and strongly disapproved and opposed. Since emancipation, they have been unshackling them selves from white domination in matters of trade; extending their connections, and becoming every day more and more independent. They have formed credits with commercial houses abroad, and

now import directly for themselves, at wholesale prices, what they were formerly obliged to receive from white importers, or rather speculators, at such prices as they, in their tender mercies, saw fit to impose.

Trade is now equalizing itself among all classes. A spirit of competition is awakened, banks have been established, steam navigation introduced, railroads projected, old highways repaired, and new ones opened. The descendants of the slaves are rapidly supplying the places which were formerly filled by whites from abroad.

We had the pleasure of being present one day at the sitting of the police court of Kingston. Mr. Jordon, the editor of the Watchman, in his turn as a member of the common council, was presiding justice, with an alderman of the city, a black man, as his associate. At a table below them sat the superintendent of police, a white man, and two white attorneys, with their huge law books and green bags before them. The bar was surrounded by a motley assemblage of black, colored, and white faces, intermingled without any regard to hue in the order of superiority and precedence. There were about a dozen cases adjudged while we were present. The court was conducted with order and dignity, and the justices were treated with great respect and deference both by white and black.

After the adjournment of the court, we had some conversation with the presiding justice. He informed us that whites were not unfrequently brought before him for trial, and, in spite of his color, sometimes even our own countrymen. He mentioned several instances of the latter, in some of which American prejudice assumed very amusing and ludicrous forms. In one case, he was obliged to threaten the party, a captain from one of our southern ports, with imprisonment for contempt, before he could induce him to behave himself with proper decorum. The captain, unaccustomed to obey injunctions from men of such a complexion, curled his lip in scorn, and showed a spirit of defiance, but on the approach of two police officers, whom the court had ordered to arrest him, he submitted himself. We were gratified with the spirit of good humor and pleasantry with which Mr. J. described the astonishment and gaping curiosity which Americans manifest on seeing colored men in offices of authority, particularly on the judicial bench, and their evident embarrassment and uneasiness whenever obliged to transact business with them as magistrates. He seemed to regard it as a

subject well worthy of ridicule; and we remarked, in our intercourse with the colored people, that they were generally more disposed to make themselves merry with American sensitiveness on this point, than to bring serious complaints against it, though they feel deeply the wrongs which they have suffered from it, and speak of them occasionally with solemnity and earnestness. Still the feeling is so absurd and ludicrous in itself, and is exhibited in so many grotesque positions, even when oppressive, that the sufferer cannot help laughing at it. Mr. Jordon has held his present office since 1832. He has had an extensive opportunity, both as a justice of the police court, and as a member of the jail committee, and in other official stations, to become well acquainted with the state of crime in the island at different periods. He informed us that the number of complaints brought before him had much diminished since 1834, and he had no hesitation in saying, that crime had decreased throughout the island generally more than one third.

During one of our excursions into the country, we witnessed another instance of the amicability with which the different colors associated in the civil affairs of the island. It was a meeting of one of the parish vestries, a kind of local legislature, which possesses considerable power over its own territory. There were fifteen members present, and nearly as many different shades of complexion. There was the planter of aristocratic blood, and at his side was a deep mulatto, born in the same parish a slave. There was the quadroon, and the unmitigated hue and unmodified features of the negro. They sat together around a circular table, and conversed as freely as though they had been all of one color. There was no restraint, no uneasiness, as though the parties felt themselves out of place, no assumption nor disrespect, but all the proceedings manifested the most perfect harmony, confidence, and good feeling.

At the same time there was a meeting of the parish committee on roads, at which there was the same intermixture of colors, the same freedom and kindness of demeanor, and the same unanimity of action. Thus it is with all the political and civil bodies in the island, from the House of Assembly, to committees on jails and houses of correction. Into all of them, the colored people are gradually making their way, and participating in public debates and public measures, and dividing with the whites legislative and judicial power, and in many cases they exhibit a superiority, and in all cases a

respectability, of talents and attainments, and a courtesy and general propriety of conduct, which gain for them the respect of the intelligent and candid among their white associates.

We visited the house of correction for the parish of St. Andrews. The superintendent received us with the iron-hearted courtesy of a Newgate turnkey. Our company was evidently unwelcome, but as the friend who accompanied us was a man in authority, he was constrained to admit us. The first sound that greeted us was a piercing outcry from the treadmill. On going to it, we saw a youth of about eighteen hanging in the air by a strap bound to his wrist, and dangling against the wheel in such a manner that every revolution of it scraped the body from the breast to the ankles. He had fallen off from weakness and fatigue, and was struggling and crying in the greatest distress, while the strap, which extended to a pole above and stretched his arm high above his head, held him fast. The superintendent, in a harsh voice, ordered him to be lifted up, and his feet again placed on the wheel. But before he had taken five steps, he again fell off, and was suspended as before. At the same instant, a woman also fell off, and without a sigh or the motion of a muscle, for she was too much exhausted for either, but with a shocking wildness of the eye, hung by her half-dislocated arms against the wheel. As the allotted time (fifteen minutes) had expired, the persons on the wheel were released, and permitted to rest. The boy could hardly stand on the ground. He had a large ulcer on one of his feet, which was much swollen and inflamed, and his legs and body were greatly bruised and peeled by the revolving of the wheel. The gentleman who was with us reproved the superintendent severely for his conduct, and told him to remove the boy from the treadmill gang, and see that proper care was taken of him. The poor woman who fell off, seemed completely exhausted; she tottered to the wall near by, and took up a little babe which we had not observed before. It appeared to be not more than two or three months old, and the little thing stretched out its arms and welcomed its mother. On inquiry, we ascertained that this woman's offence was absence from the field an hour after the required time (six o'clock) in the morning. Besides the infant with her, she had two or three other children. Whether the care of them was any excuse for her, we leave American mothers to judge. There were two other women on the treadmill--one was sentenced there for

stealing cane from her master's field, and the other, we believe, for running away.

The superintendent next took us to the solitary cells. They were dirty, and badly ventilated, and unfit to keep beasts in. On opening the doors, such a stench rushed forth, that we could not remain. There was a poor woman in one of them, who appeared, as the light of day and the fresh air burst in upon her, like a despairing maniac.

We went through the other buildings, all of which were old and dirty, nay, worse, *filthy* in the extreme. The whole establishment was a disgrace to the island. The prisoners were poorly clad, and had the appearance of harsh usage. Our suspicions of ill treatment were strengthened by noticing a large whip in the treadmill, and sundry iron collars and handcuffs hanging about in the several rooms through which we passed.

The number of inmates in this house at our visit, was forty-eight--eighteen of whom were females. Twenty of these were in the treadmill and in solitary confinement--the remainder were working on the public road at a little distance--many of them *in irons*--iron collars about their necks, and chains passing between, connecting them together two and two.

CHAPTER II.

TOUR TO THE COUNTRY.

Wishing to accomplish the most that our limited time would allow; we separated at Kingston;--the one taking a northwesterly route among the mountainous coffee districts of Port Royal and St. Andrews, and the other going into the parish of St. Thomas in the East.

St. Thomas in the East is said to present the apprenticeship in its most favorable aspects. There is probably no other parish in the island which includes so many fine estates, or has so many liberal-minded planters.[[A](#)] A day's easy drive from Kingston, brought us to Morant Bay, where we spent two days, and called on several influential gentlemen, besides visiting the neighboring estate of Belvidere. One gentleman whom we met was Thomas Thomson, Esq., the senior local magistrate of the Parish, next in civil

influence to the Custos. His standing may be inferred from the circumstance, (not trifling in Jamaica,) that the Governor, during his tour of the island, spent a night at his house. We breakfasted with Mr. Thomson, and at that time, and subsequently, he showed the utmost readiness in furnishing us with information. He is a Scotchman, has been in the island for thirty-eight years, and has served as a local magistrate for thirty-four. Until very lately, he has been a proprietor of estates; he informed us that he had sold out, but did not mention the reasons. We strongly suspected, from the drift of his conversation, that he sold about the time of abolition, through alarm for the consequences. We early discovered that he was one of the old school tyrants, hostile to the change which *had* taken place, and dreadfully alarmed in view of that which was yet to come. Although full of the prejudices of an old slaveholder, yet we found him a man of strong native sense and considerable intelligence. He declared it most unreservedly as his opinion, that the negroes would not work after 1810--they were *naturally so indolent*, that they would prefer gaining a livelihood in some easier way than by digging cane holes. He had all the results of the emancipation of 1840 as clearly before his mind, as though he saw them in prophetic vision; he knew the whole process. One portion of the negroes, too lazy to provide food by their own labor, will rob the provision grounds of the few who will remain at work. The latter will endure the wrong as long as they well can, and then they will procure arms and fire upon the marauders; this will give rise to incessant petty conflicts between the lazy and the industrious, and a great destruction of life will ensue. Others will die in vast numbers from starvation; among these will be the superannuated and the young, who cannot support themselves, and whom the planters will not be able to support. Others numerous will perish from disease, chiefly for want of medical attendance, which it will be wholly out of their power to provide. Such is the dismal picture drawn by a late slaveholder, of the consequences of removing the negroes from the tender mercies of oppressors. Happily for all parties, Mr. Thomson is not very likely to establish his claim to the character of a prophet. We were not at all surprised to hear him wind up his prophecies against freedom with a *denunciation of slavery*. He declared that slavery was a wretched system. Man was *naturally a tyrant*. Mr. T. said he had one good thing to say of the negroes, viz., that they were an *exceedingly temperate people*. It was a very unusual thing to see one of them drunk. Slavery, he said, was a system of *horrid*

cruelties. He had lately read, in the history of Jamaica, of a planter, in 1763, having a slave's *leg* cut off, to keep him from running away. He said that dreadful cruelties were perpetrated until the close of slavery, and they were inseparable from slavery. He also spoke of the fears which haunted the slaveholders. He never would live on an estate; and whenever he chanced to stay over night in the country, he always took care to secure his door by bolting and barricading it. At Mr. Thomson's we met Andrew Wright, Esq., the proprietor of a sugar estate called Green Wall, situated some six miles from the bay. He is an intelligent gentleman, of an amiable disposition--has on his estate one hundred and sixty apprentices. He described his people as being in a very peaceable state, and as industrious as he could wish. He said he had no trouble with them, and it was his opinion, that where there is trouble, it must be *owing to bad management*. He anticipated no difficulty after 1840, and was confident that his people would not leave him. He believed that the negroes would not to any great extent abandon the cultivation of sugar after 1840. Mr. T. stated two facts respecting this enlightened planter, which amply account for the good conduct of his apprentices. One was, that he was an exceedingly kind and amiable man. *He had never been known to have a falling out with any man in his life*. Another fact was, that Mr. Wright was the only resident sugar proprietor in all that region of country. He superintends his own estate, while the other large estates are generally left in the hands of unprincipled, mercenary men.

[Footnote [A](#): We have the following testimony of Sir Lionel Smith to the superiority of St. Thomas in the East. It is taken from the Royal Gazette, (Kingston.) May 6, 1837. "His Excellency has said, that in all his tour he was not more highly gratified with any parish than he was with St. Thomas in the East."]

We called on the Wesleyan missionary at Morant Bay, Rev. Mr. Crookes, who has been in Jamaica fifteen years. Mr. C. said, that in many respects there had been a great improvement since the abolition of slavery, but, said he, "I abominate the apprenticeship system. At best, it is only *improved slavery*." The obstacles to religious efforts have been considerably diminished, but the masters were not to be thanked for this; it was owing chiefly to the protection of British law. The apprenticeship, Mr. C. thought, could not be any material preparation for freedom. He was persuaded that it

would have been far better policy to have granted entire emancipation at once.

In company with Mr. Howell, an Independent, and teacher of a school of eighty negro children in Morant Bay, we drove out to Belvidere estate, which is situated about four miles from the bay, in a rich district called the Blue Mountain Valley. The Belvidere is one of the finest estates in the valley. It contains two thousand acres, only four hundred of which are cultivated in sugar; the most of it is woodland. This estate belongs to Count Freeman, an absentee proprietor. We took breakfast with the overseer, or manager, Mr. Briant. Mr. B. stated that there was not so much work done now as there was during slavery. Thinks there is *as much done for the length of time that the apprentices are at work*; but a day and a half every week is lost; neither *are they called out as early in the morning, nor do they work as late at night*. The apprentices work at night very cheerfully for money: but they will not work on Saturday for the common wages--quarter of a dollar. On inquiry of Mr. B. we ascertained that the reason the apprentices did not work on Saturdays was, that they could *make twice or three times as much* by cultivating their provision grounds, and carrying their produce to market. At *night* they cannot cultivate their grounds, then they work for their masters "very cheerfully."

The manager stated, that there had been no disturbance with the people of Belvidere since the change. They work well, and conduct themselves peaceably; and he had no fear but that the great body of the negroes would remain on the estate after 1840, and labor as usual. This he thought would be the case on every estate where there *is mild management*. Some, indeed, might leave even such estates to *try their fortunes* elsewhere, but they would soon discover that they could get no better treatment abroad, and they would then return to their old homes.

While we were at Belvidere, Mr. Howell took us to see a new chapel which the apprentices of that estate have erected since 1834, by their own labor, and at their own expense. The house is thirty feet by forty; composed of the same materials of which the negro huts are built. We were told that the building of this chapel was first suggested by the apprentices, and as soon as permission was obtained, they commenced the preparations for its erection. We record this as a delightful *sign of the times*.

On our return to Morant Bay, we visited the house of correction, situated near the village. This is the only "institution," as a Kingston paper gravely terms it, of the kind in the parish. It is a small, ill-constructed establishment, horribly filthy, more like a receptacle for wild beasts than human beings. There is a treadmill connected with it, made to *accommodate* fifteen persons at a time. Alternate companies ascend the wheel every fifteen minutes. It was unoccupied when we went in; most of the prisoners being at work on the public roads. Two or three, who happened to be near by, were called in by the keeper, and ordered to mount the wheel, to show us how it worked. It made our blood run cold as we thought of the dreadful suffering that inevitably ensues, when the foot loses the step, and the body hangs against the revolving cylinder.

Leaving the house of correction, we proceeded to the village. In a small open square in the centre of it, we saw a number of the unhappy inmates of the house of correction at work under the direction, we are sorry to say, of our friend Thomas Thomson, Esq. They were chained two and two by heavy chains fastened to iron bands around their necks. On another occasion, we saw the same gang at work in the yard attached to the Independent chapel.

We received a visit, at our lodgings, from the special justice of this district, Major Baines. He was accompanied by Mr. Thomson, who came to introduce him as his friend. We were not left to this recommendation alone, suspicious as it was, to infer the character of this magistrate, for we were advertised previously that he was a "planter's man"--unjust and cruel to the apprentices. Major B. appeared to have been looking through his friend Thomson's prophetic telescope. There was certainly a wonderful coincidence of vision--the same abandonment of labor, the same preying upon provision grounds; the same violence, bloodshed and great loss of life among the negroes themselves! However, the special magistrate appeared to see a little further than the local magistrate, even to the *end* of the carnage, and to the re-establishment of industry, peace and prosperity. The evil, he was confident, would soon cure itself.

One remark of the special magistrate was worthy a prophet. When asked if he thought there would be any serious disaffection produced among the *praedials* by the emancipation of the non-*praedials* in 1838, he said, he

thought there would not be, and assigned as the reason, that the praedials knew all about the arrangement, and did not *expect to be free*. That is, the field apprentices knew that the domestics were to be liberated two years sooner than they, and, without inquiring into the grounds, or justice of the arrangement, *they would promptly acquiesce in it!*

What a fine compliment to the patience and forbearance of the mass of the negroes. The majority see the minority emancipated two years before them, and that, too, upon the ground of an odious distinction which makes the domestic more worthy than they who "bear the heat and burthen of the day," in the open field; and yet they submit patiently, because they are told that it is the pleasure of government that it should be so!

The *non-praedials*, too, have their noble traits, as well as the less favored agriculturalists. The special magistrate said that he was then engaged in classifying the apprentices of the different estates in his district. The object of this classification was, to ascertain all those who were non-praedials, that they might be recorded as the subjects of emancipation in 1838. To his astonishment he found numbers of this class who expressed a wish to remain apprentices until 1840. On one estate, six out of eight took this course, on another, twelve out of fourteen, and in some instances, *all* the non-praedials determined to suffer it out with the rest of their brethren, refusing to accept freedom until with the whole body they could rise up and shout the jubilee of universal disinthralment. Here is a nobility worthy to compare with the patience of the praedials. In connection with the conduct of the non-praedials, he mentioned the following instance of white brutality and negro magnanimity. A planter, whose negroes he was classifying, brought forward a woman whom he claimed as a praedial. The woman declared that she was a non-praedial, and on investigation it was clearly proved that she had always been a domestic; and consequently entitled to freedom in 1838. After the planter's claim was set aside, the woman said, "Now I will stay with massa, and be his 'prentice for de udder two year."

Shortly before we left the Bay, our landlady, a colored woman, introduced one of her neighbors, whose conversation afforded us a rare treat. She was a colored lady of good appearance and lady like manners. Supposing from her color that she had been prompted by strong sympathy in our objects to seek an interview with us, we immediately introduced the subject of

slavery, stating that as we had a vast number of slaves in our country, we had visited Jamaica to see how the freed people behaved, with the hope that our countrymen might be encouraged to adopt emancipation. "Alack a day!" The tawny madam shook her head, and, with that peculiar *creole* whine, so expressive of contempt, said, "Can't say any thing for you, sir--they not doing no good now, sir--the negroes an't!"--and on she went abusing the apprentices, and denouncing abolition. No American white lady could speak more disparagingly of the niggers, than did this recreant descendant of the negro race. They did no work, they stole, were insolent, insubordinate, and what not.

She concluded in the following elegiac strain, which did not fail to touch our sympathies. "I can't tell what will become of us after 1840. Our negroes will be taken away from us--we shall find no work to do ourselves--we shall all have to beg, and who shall we beg from? *All will be beggars, and we must starve!*"

Poor Miss L. is one of that unfortunate class who have hitherto gained a meagre support from the stolen hire of a few slaves, and who, after entire emancipation, will be stripped of every thing. This is the class upon whom emancipation will fall most heavily; it will at once cast many out of a situation of ease, into the humiliating dilemma of *laboring or begging*--to the *latter* of which alternatives, Miss L. seems inclined. Let Miss L. be comforted! It is better to beg than to *steal*.

We proceeded from Morant Bay to Bath, a distance of fourteen miles, where we put up at a neat cottage lodging-house, kept by Miss P., a colored lady. Bath is a picturesque little village, embowered in perpetual green, and lying at the foot of a mountain on one side, and on the other by the margin of a rambling little river. It seems to have accumulated around it and within it, all the verdure and foliage of a tropical clime.

Having a letter of introduction, we called on the special magistrate for that district--George Willis, Esq. As we entered his office, an apprentice was led up in irons by a policeman, and at the same time another man rode up with a letter from the master of the apprentice, directing the magistrate to release him instantly. The facts of this case, as Mr. W. himself explained them to us, will illustrate the careless manner in which the magistrates administer the

law. The master had sent his apprentice to a neighboring estate, where there had been some disturbance, to get his clothes, which had been left there. The overseer of the estate finding an intruder on his property, had him handcuffed forthwith, notwithstanding his repeated declarations that his master had sent him. Having handcuffed him, he ordered him to be taken before the special magistrate, Mr. W., who had him confined in the station-house all night. Mr. W., in pursuance of the direction received from the master, ordered the man to be released, but at the same time repeatedly declared to him that the *overseer was not to blame for arresting him*.

After this case was disposed of, Mr. W. turned to us. He said he had a district of thirty miles in extent, including five thousand apprentices; these he visited thrice every month. He stated that there had been a gradual decrease of crime since he came to the district, which was early in 1835. For example, in March, 1837, there were but twenty-four persons punished, and in March, 1835, there were as many punished in a single week. He explained this by saying that the apprentices had become *better acquainted with the requirements of the law*. The chief offence at present was *absconding from labor*.

This magistrate gave us an account of an alarming rebellion which had lately occurred in his district, which we will venture to notice, since it is the only serious disturbance on the part of the negroes, which has taken place in the island, from the beginning of the apprenticeship. About two weeks before, the apprentices on Thornton estate, amounting to about ninety, had refused to work, and fled in a body to the woods, where they still remained. Their complaint, according to our informant, was, that their master had turned the cattle upon their provision grounds, and all their provisions were destroyed, so that they could not live. They, therefore, determined that they would not continue at work, seeing they would be obliged to starve. Mr. W. stated that he had visited the provision grounds, in company with two *disinterested planters*, and he could affirm that the apprentices had *no just cause of complaint*. It was true their fences had been broken down, and their provisions had been somewhat injured, but the fence could be very easily repaired, and there was an *abundance of yams left* to furnish food for the whole gang for some time to come--those that were destroyed being chiefly young roots which would not have come to maturity for several months. These statements were the substance of a formal report which he had just

prepared for the eye of Sir Lionel Smith, and which he was kind enough to read to us. This was a fine report, truly, to come from a special justice. To say nothing of the short time in which the fence might be repaired, those were surely very dainty-mouthed cattle that would consume those roots only which were so small that several months would be requisite for their maturity. The report concluded with a recommendation to his Excellency to take seminary vengeance upon a few of the gang as soon as they could be arrested, since they had set such an example to the surrounding apprentices. He could not see how order and subordination could be preserved in his district unless such a punishment was inflicted as would be a warning to all evil doers. He further suggested the propriety of sending the maroons[A] after them, to hunt them out of their hiding places and bring them to justice.

[Footnote [A](#): The maroons are free negroes, inhabiting the mountains of the interior, who were formerly hired by the authorities, or by planters, to hunt up runaway slaves, and return them to their masters. Unfortunately our own country is not without *its* maroons.]

We chanced to obtain a different version of this affair, which, as it was confirmed by different persons in Bath, both white and colored, who had no connection with each other, we cannot help thinking it the true one.

The apprentices on Thornton, are what is termed a jobbing gang, that is, they are hired out by their master to any planter who may want their services. Jobbing is universally regarded by the negroes as the worst kind of service, for many reasons--principally because it often takes them many miles from their homes, and they are still required to supply themselves with food from their own provision grounds. They are allowed to return home every Friday evening or Saturday, and stay till Monday morning. The owner of the gang in question lately died--to whom it is said they were greatly attached--and they passed into the hands of a Mr. Jocken, the present overseer. Jocken is a notoriously cruel man. It was scarcely a twelvemonth ago, that he was fined one hundred pounds currency, and sentenced to imprisonment for three months in the Kingston jail, *for tying one of his apprentices to a dead ox*, because the animal died while in the care of the apprentice. He also confined a woman in the same pen with a dead sheep, because she suffered the sheep to die. Repeated acts of cruelty have caused Jocken to be regarded as a monster in the community. From a

knowledge of his character, the apprentices of Thornton had a strong prejudice against him. One of the earliest acts after he went among them, was to break down their fences, and turn his cattle into their provision grounds. He then ordered them to go to a distant estate to work. This they refused to do, and when he attempted to compel them to go, they left the estate in a body, and went to the woods. This is what is called a *state of open rebellion*, and for this they were to be hunted like beasts, and to suffer such a terrible punishment as would deter all other apprentices from taking a similar step.

This Jocken is the same wretch who wantonly handcuffed the apprentice, who went on to his estate by the direction of his master.

Mr. Willis showed us a letter which he had received that morning from a planter in his district, who had just been trying an experiment in job work, (i.e., paying his people so much for a certain amount of work.) He had made a proposition to one of the head men on the estate, that he would give him a doubloon an acre if he would get ten acres of cane land holed. The man employed a large number of apprentices, and accomplished the job on three successive Saturdays. They worked at the rate of nearly one hundred holes per day for each man, whereas the usual day's work is only seventy-five holes.

Mr. W. bore testimony that the great body of the negroes in his district were very peaceable. There were but a few *incorrigible fellows*, that did all the mischief. When any disturbance took place on an estate, he could generally tell who the individual offenders were. He did not think there would be any serious difficulty after 1840. However, the result he thought would *greatly depend on the conduct of the managers!*

We met in Bath with the proprietor of a coffee estate situated a few miles in the country. He gave a very favorable account of the people on his estate; stating that they were as peaceable and industrious as he could desire, that he had their confidence, and fully expected to retain it after entire emancipation. He anticipated no trouble whatever, and he felt assured, too, that if *the planters would conduct in a proper manner*, emancipation would be a blessing to the whole colony.

We called on the Wesleyan missionary, whom we found the decided friend and advocate of freedom. He scrupled not to declare his sentiments respecting the special magistrate, whom he declared to be a cruel and dishonest man. He seemed to take delight in flogging the apprentices. He had got a whipping machine made and erected in front of the Episcopal church in the village of Bath. It was a frame of a triangular shape, the base of which rested firmly on the ground, and having a perpendicular beam from the base to the apex or angle. To this beam the apprentice's body was lashed, with his face towards the machine, and his arms extended at right angles, and tied by the wrists. The missionary had witnessed the floggings at this machine repeatedly, as it stood but a few steps from his house. Before we reached Bath, the machine had been removed from its conspicuous place and *concealed in the bushes, that the governor might not see it when he visited the village.*

As this missionary had been for several years laboring in the island, and had enjoyed the best opportunities to become extensively acquainted with the negroes, we solicited from him a written answer to a number of inquiries. We make some extracts from his communication.

1. Have the facilities for missionary effort greatly increased since the abolition of slavery?

The opportunities of the apprentices to attend the means of grace are greater than during absolute slavery. They have now one day and a half every week to work for their support, leaving the Sabbath free to worship God.

2. Do you anticipate that these facilities will increase still more after entire freedom?

Yes. The people will then have *six days of their own to labor for their bread*, and will be at liberty to go to the house of God every Sabbath. Under the present system, the magistrate often takes away the Saturday, as a punishment, and then they must either work on the Sabbath or starve.

3. Are the negroes likely to revenge by violence the wrongs which they have suffered, after they obtain their freedom?

I never heard the idea suggested, nor should I have thought of it had you not made the inquiry.

We called on Mr. Rogers, the teacher of a Mico charity infant school in Bath. Mr. R., his wife and daughter, are all engaged in this work. They have a day school, and evening school three evenings in the week, and Sabbath school twice each Sabbath. The evening schools are for the benefit of the adult apprentices, who manifest the greatest eagerness to learn to read. After working all day, they will come several miles to school, and stay cheerfully till nine o'clock.

Mr. R. furnished us with a written communication, from which we extract the following.

Quest. Are the apprentices desirous of being instructed?

Ans. Most assuredly they are; in proof of which I would observe that since our establishment in Bath, the people not only attend the schools regularly, but if they obtain a leaf of a book with letters upon it, that is their *constant companion*. We have found mothers with their sucking babes in their arms, standing night after night in their classes learning the alphabet.

Q. Are the negroes grateful for attentions and favors?

A. They are; I have met some who have been so much affected by acts of kindness, that they have burst into tears, exclaiming, 'Massa so kind--my heart full.' Their affection to their teachers is very remarkable. On my return lately from Kingston, after a temporary absence, the negroes flocked to our residence and surrounded the chaise, saying, 'We glad to see massa again; we glad to see school massa.' On my way through an estate some time ago, some of the children observed me, and in a transport of joy cried, 'Thank God, massa come again! Bless God de Savior, massa come again!'

Mr. R., said he, casually met with an apprentice whose master had lately died. The man was in the habit of visiting his master's grave every Saturday. He said to Mr. R., "Me go to massa grave, and de water come into me yeye; but me can't help it, massa, *de water will come into me yeye*."

The Wesleyan missionary told us, that two apprentices, an aged man and his daughter, a young woman, had been brought up by their master before the special magistrate who sentenced them to several days confinement in the house of correction at Morant Bay and to dance the treadmill. When the sentence was passed the daughter entreated that she might be allowed to *do*

her father's part, as well as her own, on the treadmill, for he was too old to dance the wheel--it would kill him.

From Bath we went into the Plantain Garden River Valley, one of the richest and most beautiful savannahs in the island. It is an extensive plain, from one to three miles wide, and about six miles long. The Plantain Garden River, a small stream, winds through the midst of the valley lengthwise, emptying into the sea. Passing through the valley, we went a few miles south of it to call on Alexander Barclay, Esq., to whom we had a letter of introduction. Mr. Barclay is a prominent member of the assembly, and an attorney for eight estates. He made himself somewhat distinguished a few years ago by writing an octavo volume of five hundred pages in defence of the colonies, *i.e.*, in defence of colonial slavery. It was a reply to Stephen's masterly work against West India slavery, and was considered by the Jamaicans a triumphant vindication of their "peculiar institutions." We went several miles out of our route expressly to have an interview with so zealous and celebrated a champion of slavery. We were received with marked courtesy by Mr. B., who constrained us to spend a day and night with him at his seat at Fairfield. One of the first objects that met our eye in Mr. B.'s dining hall was a splendid piece of silver plate, which was presented to him by the planters of St. Thomas in the East, in consideration of his able defence of colonial slavery. We were favorably impressed with Mr. B.'s intelligence, and somewhat so with his present sentiments respecting slavery. We gathered from him that he had resisted with all his might the anti-slavery measures of the English government, and exerted every power to prevent the introduction of the apprenticeship system. After he saw that slavery would inevitably be abolished, he drew up at length a plan of emancipation according to which the condition of the slave was to be commuted into that of the old English *villein*--he was to be made an appendage to *the soil* instead of the "chattel personal" of the master, the whip was to be partially abolished, a modicum of wages was to be allowed the slave, and so on. There was to be no fixed period when this system would terminate, but it was to fade gradually and imperceptibly into entire freedom. He presented a copy of his scheme to the then governor, the Earl of Mulgrave, requesting that it might be forwarded to the home government. Mr. B. said that the anti-slavery party in England had acted from the blind impulses of religious fanaticism, and had precipitated to its

issue a work which required many years of silent preparation in order to its safe accomplishment. He intimated that the management of abolition ought to have been left with the colonists; they had been the long experienced managers of slavery, and they were the only men qualified to superintend its burial, and give it a decent interment.

He did not think that the apprenticeship afforded any clue to the dark mystery of 1840. Apprenticeship was so inconsiderably different from slavery, that it furnished no more satisfactory data for judging of the results of entire freedom than slavery itself. Neither would he consent to be comforted by the actual results of emancipation in Antigua.

Taking leave of Mr. Barclay, we returned to the Plantain Garden River Valley, and called at the Golden Grove, one of the most splendid estates in that magnificent district. This is an estate of two thousand acres; it has five hundred apprentices and one hundred free children. The average annual crop is six hundred hogsheads of sugar. Thomas McCornock, Esq., the attorney of this estate, is the custos, or chief magistrate of the parish, and colonel of the parish militia. There is no man in all the parish of greater consequence, either in fact or in seeming self-estimation, than Thomas McCornock, Esq. He is a Scotchman, as is also Mr. Barclay. The custos received us with as much freedom as the dignity of his numerous offices would admit of. The overseer, (manager,) Mr. Duncan, is an intelligent, active, business man, and on any other estate than Golden Grove, would doubtless be a personage of considerable distinction. He conducted us through the numerous buildings, from the boiling-house to the pig-stye. The principal complaint of the overseer, was that he could not make the people work to any good purpose. They were not at all refractory or disobedient; there was no difficulty in getting them on to the field; but when they were there, they moved without any life or energy. They took no interest in their work, and he was obliged to be watching and scolding them all the time, or else they would do nothing. We had not gone many steps after this observation, before we met with a practical illustration of it. A number of the apprentices had been ordered that morning to cart away some dirt to a particular place. When we approached them, Mr. D. found that one of the "wains" was standing idle. He inquired of the driver why he was keeping the team idle. The reply was, that there was nothing there for it to do; there were enough other wains to carry away all the dirt. "Then," inquired the

overseer with an ill-concealed irritation, "why did not go to some other work?" The overseer then turned to us and said, "You see, sir, what lazy dogs the apprentices are--this is the way they do every day, if they are not closely watched." It was not long after this little incident, before the overseer remarked that the apprentices worked very well during their own time, *when they were paid for it*. When we went into the hospital, Mr. D. directed out attention to one fact, which to him was very provoking. A great portion of the patients that come in during the week, unable to work, are in the habit of getting well on Friday evening, so that they can go out on Saturday and Sunday; but on Monday morning they are sure to be sick again, then they return to the hospital and remain very poorly till Friday evening, when they get well all at once, and ask permission to go out. The overseer saw into the trick; but he could find no medicine that could cure the negroes of that intermittent sickness. The Antigua planters discovered the remedy for it, and doubtless Mr. D. will make the grand discovery in 1840.

On returning to the "great house," we found the custos sitting in state, ready to communicate any official information which might be called for. He expressed similar sentiments in the main, with those of Mr. Barclay. He feared for the consequences of complete emancipation; the negroes would to a great extent abandon the sugar cultivation and retire to the woods, there to live in idleness, planting merely yams enough to keep them alive, and in the process of time, retrograding into African barbarism. The attorney did not see how it was possible to prevent this. When asked whether he expected that such would be the case with the negroes on Golden Grove, he replied that he did not think it would, except with a very few persons. His people had been *so well treated*, and had *so many comforts*, that they would not be at all likely to abandon the estate! [Mark that!] Whose are the people that will desert after 1840? Not Thomas McCornock's, Esq.! *They are too well situated*. Whose then will desert? *Mr. Jocken's*, or in other words, those who are ill-treated, who are cruelly driven, whose fences are broken down, and whose provision grounds are exposed to the cattle. They, and they alone, will retire to the woods who can't get food any where else!

The custos thought the apprentices were behaving very ill. On being asked if he had any trouble with his, he said, O, no! his apprentices did quite well, and so did the apprentices generally, in the Plantain Garden River Valley.

But in *far off parishes*, he *heard* that they were very refractory and troublesome.

The custos testified that the negroes were very easily managed. He said he had often thought that he would rather have the charge of six hundred negroes, than of two hundred English sailors. He spoke also of the temperate habits of the negroes. He had been in the island twenty-two years, and he had never seen a negro woman drunk, on the estate. It was very seldom that the men got drunk. There were not more than ten men on Golden Grove, out of a population of five hundred, who were in the habit of occasionally getting intoxicated. He also remarked that the negroes were a remarkable people for their attention to the old and infirm among them; they seldom suffered them to want, if it was in their power to supply them. Among other remarks of the custos, was this sweeping declaration--"*No man in his senses can pretend to defend slavery.*"

After spending a day at Golden Grove, we proceeded to the adjacent estate of Amity Hall. On entering the residence of the manager, Mr. Kirkland, we were most gratefully surprised to find him engaged in family prayers. It was the first time and the last that we heard the voice of prayer in a Jamaican planter's house. We were no less gratefully surprised to see a white lady, to whom we were introduced as Mrs. Kirkland, and several modest and lovely little children. It was the first and the last *family circle* that we were permitted to see among the planters of that licentious colony. The motley group of colored children--of every age from tender infancy--which we found on other estates, revealed the state of domestic manners among the planters.

Mr. K. regarded the abolition of slavery as a great blessing to the colony; it was true that the apprenticeship was a wretchedly bad system, but notwithstanding, things moved smoothly on his estate. He informed us that the negroes on Amity Hall had formerly borne the character of being the *worst gang in the parish*; and when he first came to the estate, he found that half the truth had not been told of them; but they had become remarkably peaceable and subordinate. It was his policy to give them every comfort that he possibly could. Mr. K. made the same declaration, which has been so often repeated in the course of this narrative, *i.e.*, that if any of the estates were abandoned, it would be owing to the harsh treatment of the people. He

knew many overseers and book-keepers who were cruel driving men, and he should not be surprised if *they* lost a part, or all, of their laborers. He made one remark which we had not heard before. There were some estates, he said, which would probably be abandoned, for the same reason that they ought never to have been cultivated, because they require *almost double labor*;--such are the mountainous estates and barren, worn-out properties, which nothing but a system of forced labor could possibly retain in cultivation. But the idea that the negroes generally would leave their comfortable homes, and various privileges on the estates, and retire to the wild woods, he ridiculed as preposterous in the extreme. Mr. K. declared repeatedly that he could not look forward to 1840, but with the most sanguine hopes; he confidently believed that the introduction of complete freedom would be the *regeneration of the island*. He alluded to the memorable declaration of Lord Belmore, (made memorable by the excitement which it caused among the colonists,) in his valedictory address to the assembly, on the eve of his departure for England.[\[A\]](#) "Gentlemen," said he, "the resources of this noble island will never be fully developed until slavery is abolished!" For this manly avowal the assembly ignobly refused him the usual marks of respect and honor at his departure. Mr. K. expected to see Jamaica become a new world under the enterprise and energies of freedom. There were a few disaffected planters, who would probably remain so, and leave the islands after emancipation. It would be a blessing to the country if such men left it, for as long as they were disaffected, they were the enemies of its prosperity.

[Footnote [A](#): Lord Belmore left the government of Jamaica, a short time before the abolition act passed in parliament.]

Mr. K. conducted us through the negro quarters, which are situated on the hill side, nearly a mile from his residence. We went into several of the houses; which were of a better style somewhat than the huts in Antigua and Barbadoes--larger, better finished and furnished. Some few of them had verandahs or porches on one or more sides, after the West India fashion, closed in with *jalousies*. In each of the houses to which we were admitted, there was one apartment fitted up in a very neat manner, with waxed floor, a good bedstead, and snow white coverings, a few good chairs, a mahogany sideboard, ornamented with dishes, decanters, *etc.*

From Amity Hall, we drove to Manchioneal, a small village ten miles north of the Plantain Garden River Valley. We had a letter to the special magistrate for that district, R. Chamberlain, Esq., a colored gentleman, and the first magistrate we found in the parish of St. Thomas in the East, who was faithful to the interests of the apprentices. He was a boarder at the public house, where we were directed for lodgings, and as we spent a few days in the village, we had opportunities of obtaining much information from him, as well as of attending some of his courts. Mr. C. had been only five months in the district of Manchioneal, having been removed thither from a distant district. Being a friend of the apprentices, he is hated and persecuted by the planters. He gave us a gloomy picture of the *oppressions* and cruelties of the planters. Their complaints brought before him are often of the most trivial kind; yet because he does not condemn the apprentices to receive a punishment which the most serious offences alone could justify him in inflicting, they revile and denounce him as unfit for his station. He represents the planters as not having the most distant idea that it is the province of the special magistrate to secure justice to the apprentice; but they regard it as his sole duty to *help them* in getting from the laborers as much work as whips, and chains, and tread-wheels can extort. His predecessor, in the Manchioneal district, answered perfectly to the planters' *beau ideal*. He ordered a *cat* to be kept on every estate in his district, to be ready for use as he went around on his weekly visits. Every week he inspected the cats, and when they became too much worn to do good execution, he *condemned* them, and ordered new ones to be made.

Mr. C. said the most frequent complaints made by the planters are for *insolence*. He gave a few specimens of what were regarded by the planters as serious offences. An overseer will say to his apprentice, "Work along there faster, you lazy villain, or I'll strike you;" the apprentice will reply, "You *can't* strike me now," and for this he is taken before the magistrate on the complaint of *insolence*. An overseer, in passing the gang on the field, will hear them singing; he will order them, in a peremptory tone to stop instantly, and if they continue singing, they are complained of for *insubordination*. An apprentice has been confined to the hospital with disease,--when he gets able to walk, tired of the filthy sick house, he hobbles to his hut, where he may have the attentions of his wife until he gets well. That is called *absconding from labor*! Where the magistrate does

not happen to be an independent man, the complaint is sustained, and the poor invalid is sentenced to the treadmill for absenting himself from work. It is easy to conjecture the dreadful consequence. The apprentice, debilitated by sickness, dragged off twenty-five miles on foot to Morant Bay, mounted on the wheel, is unable to keep the step with the stronger ones, slips off and hangs by the wrists, and his flesh is mangled and torn by the wheel.

The apprentices frequently called at our lodgings to complain to Mr. C. of the hard treatment of their masters. Among the numerous distressing cases which we witnessed, we shall never forget that of a poor little negro boy, of about twelve, who presented himself one afternoon before Mr. C., with a complaint against his master for violently beating him. A gash was cut in his head, and the blood had flowed freely. He fled from his master, and came to Mr. C. for refuge. He belonged to A. Ross, Esq., of Mulatto Run estate. We remembered that we had a letter of introduction to that planter, and we had designed visiting him, but after witnessing this scene, we resolved not to go near a monster who could inflict such a wound, with his own hand, upon a child. We were highly gratified with the kind and sympathizing manner in which Mr. C. spoke with the unfortunate beings who, in the extremity of their wrongs, ventured to his door.

At the request of the magistrate we accompanied him, on one occasion, to the station-house, where he held a weekly court. We had there a good opportunity to observe the hostile feelings of the planters towards this faithful officer--"faithful among the faithless," (though we are glad that we cannot quite add, "*only he.*")

A number of managers, overseers, and book-keepers, assembled; some with complaints, and some to have their apprentices classified. They all set upon the magistrate like bloodhounds upon a lone stag. They strove together with one accord, to subdue his independent spirit by taunts, jeers, insults, *intimidations* and bullyings. He was obliged to threaten one of the overseers with arrest, on account of his abusive conduct. We were actually amazed at the intrepidity of the magistrate. We were convinced from what we saw that day, that only the most fearless and conscientious men could be *faithful magistrates* in Jamaica. Mr. C. assured us that he met with similar indignities every time he held his courts, and on most of the estates that he

visited. It was in his power to punish them severely, but he chose to use all possible forbearance, so as not to give the planters any grounds of complaint.

On a subsequent day we accompanied Mr. C. in one of his estate visits. As it was late in the afternoon, he called at but one estate, the name of which was Williamsfield. Mr. Gordon, the overseer of Williamsfield, is among the fairest specimens of planters. He has naturally a generous disposition, which, like that of Mr. Kirkland, has out-lived the witherings of slavery.

He informed us that his people worked as well under the apprenticeship system, as ever they did during slavery; and he had every encouragement that they would do still better after they were completely free. He was satisfied that he should be able to conduct his estate at much less expense after 1840; he thought that fifty men would do as much then as a hundred do now. We may add here a similar remark of Mr. Kirkland--that forty freemen would accomplish as much as eighty slaves. Mr. Gordon hires his people on Saturdays, and he expressed his astonishment at the increased vigor with which they worked when they were to receive wages. He pointedly condemned the driving system which was resorted to by many of the planters. They foolishly endeavored to keep up the coercion of slavery, *and they had the special magistrates incessantly flogging the apprentices.* The planters also not unfrequently take away the provision grounds from their apprentices, and in every way oppress and harass them.

In the course of the conversation Mr. G. accidentally struck upon a fresh vein of facts, respecting the SLAVERY OF BOOK-KEEPERS,[\[A\]](#) *under the old system.* The book-keepers, said Mr. G., were the complete slaves of the overseers, who acted like despots on the estates. They were mostly young men from England, and not unfrequently had considerable refinement; but ignorant of the treatment which book-keepers had to submit to, and allured by the prospect of becoming wealthy by plantership, they came to Jamaica and entered as candidates. They soon discovered the cruel bondage in which they were involved. The overseers domineered over them, and stormed at them as violently as though they were the most abject slaves. They were allowed no privileges such as their former habits impelled them to seek. If they played a flute in the hearing of the overseer, they were commanded to be silent instantly. If they dared to put a gold ring

on their finger, even that trifling pretension to gentility was detected and disallowed by the jealous overseer. (These things were specified by Mr. G. himself.) They were seldom permitted to associate with the overseers as equals. The only thing which reconciled the book-keepers to this abject state, was the reflection that they might one day *possibly* become overseers themselves, and then they could exercise the same authority over others. In addition to this degradation, the book-keepers suffered great hardships. Every morning (during slavery) they were obliged to be in the field before day; they had to be there as soon as the slaves, in order to call the roll, and mark absentees, if any. Often Mr. G. and the other gentleman had gone to the field, when it was so dark that they could not see to call the roll, and the negroes have all lain down on their hoes, and slept till the light broke. Sometimes there would be a thick dew on the ground, and the air was so cold and damp, that they would be completely chilled. When they were shivering on the ground, the negroes would often lend them their blankets, saying, "Poor *busha pickaninny* sent out here from England to die." Mr. Gordon said that his constitution had been permanently injured by such exposure. Many young men, he said, had doubtless been killed by it. During crop time, the book-keepers had to be up every night till twelve o'clock, and every other night *all night*, superintending the work in the boiling-house, and at the mill. They did not have rest even on the Sabbath; they must have the mill put about (set to the wind so as to grind) by sunset every Sabbath. Often the mills were in the wind before four o'clock, on Sabbath afternoon. They knew of slaves being flogged for not being on the spot by sunset, though it was known that they had been to meeting. Mr. G. said that he had a young friend who came from England with him, and acted as book-keeper. His labors and exposures were so intolerable, that he had often said to Mr. G., confidentially, *that if the slaves should rise in rebellion, he would most cheerfully join them!* Said Mr. G., *there was great rejoicing among the book-keepers in August 1834! The abolition of slavery was EMANCIPATION TO THE BOOK-KEEPERS.*

[Footnote [A](#): The book-keepers are subordinate overseers and drivers; they are generally young white men, who after serving a course of years in a sort of apprenticeship, are promoted to managers of estates.]

No complaints were brought before Mr. Chamberlain. Mr. Gordon pleasantly remarked when we arrived, that he had some cases which he

should have presented if the magistrate had come a little earlier, but he presumed he should forget them before his next visit. When we left Williamsfield, Mr. C. informed us that during five months there had been but two cases of complaint on that estate--and but *a single instance of punishment*. Such are the results where there is a good manager and a good special magistrate.

On Sabbath we attended service in the Baptist chapel, of which Rev. Mr. Kingdon is pastor. The chapel, which is a part of Mr. K.'s dwelling-house, is situated on the summit of a high mountain which overlooks the sea. As seen from the valley below, it appears to topple on the very brink of a frightful precipice. It is reached by a winding tedious road, too rugged to admit of a chaise, and in some places so steep as to try the activity of a horse. As we approached nearer, we observed the people climbing up in throngs by various footpaths, and halting in the thick woods which skirted the chapel, the men to put on their shoes, which they had carried in their hands up the mountain, and the women to draw on their white stockings and shoes. On entering the place of worship, we found it well filled with the apprentices, who came from many miles around in every direction. The services had commenced when we arrived. We heard an excellent sermon from the devoted and pious missionary, Mr. Kingdon, whose praise is among all the good throughout the island, and who is eminently known as the negro's friend. After the sermon, we were invited to make a few remarks; and the minister briefly stated to the congregation whence we had come, and what was the object of our visit. We cannot soon forget the scene which followed. We begun by expressing, in simple terms, the interest which we felt in the temporal and spiritual concerns of the people present, and scarcely had we uttered a sentence when the whole congregation were filled with emotion. Soon they burst into tears--some sobbed, others cried aloud; insomuch that for a time we were unable to proceed. We were, indeed, not a little astonished at so unusual a scene; it was a thing which we were by no means expecting to see. Being at a loss to account for it, we inquired of Mr. K. afterwards, who told us that it was occasioned by our expressions of sympathy and regard. They were so unaccustomed to hear such language from the lips of white people, that it fell upon them like rain upon the parched earth. The idea that one who was a stranger and a foreigner should

feel an interest in their welfare, was to them, in such circumstances, peculiarly affecting, and stirred the deep fountains of their hearts.

After the services, the missionary, anxious to further our objects, proposed that we should hold an interview with a number of the apprentices; and he accordingly invited fifteen of them into his study, and introduced them to us by name, stating also the estates to which they severally belonged. We had thus an opportunity of seeing the *representatives of twelve different estates*, men of trust on their respective estates, mostly constables and head boilers. For nearly two hours we conversed with these men, making inquiries on all points connected with slavery, the apprenticeship, and the expected emancipation.

From no interview, during our stay in the colonies, did we derive so much information respecting the real workings of the apprenticeship; from none did we gain such an insight into the character and disposition of the negroes. The company was composed of intelligent and pious men;--so manly and dignified were they in appearance, and so elevated in their sentiments, that we could with difficulty realize that they were *slaves*. They were wholly unreserved in their communications, though they deeply implicated their masters, the special magistrates, and others in authority. It is not improbable that they would have shrunk from some of the disclosures which they made, had they known that they would be published. Nevertheless we feel assured that in making them public, we shall not betray the informants, concealing as we do their names and the estates to which they belong.

With regard to the wrongs and hardships of the apprenticeship much as said; we can only give a small part.

Their masters were often very harsh with them, more so than when they were slaves. They could not flog them, but they would scold them, and swear at them, and call them hard names, which hurt their feelings almost as much as it would if they were to flog them. They would not allow them as many privileges as they did formerly. Sometimes they would take their provision grounds away, and sometimes they would go on their grounds and carry away provisions for their own use without paying for them, or as much as asking their leave. They had to bear this, for it was useless to

complain--they could get no justice; there was no law in Manchioneal. The special magistrate would only hear the master, and would not allow the apprentices to say any thing for themselves[A]. The magistrate would do just as the busha (master) said. If he say flog him, he flog him; if he say, send him to Morant Bay, (to the treadmill,) de magistrate send him. If we happen to laugh before de busha, he complain to de magistrate, and we get licked. If we go to a friend's house, when we hungry, to get something to eat, and happen to get lost in de woods between, we are called runaways, and are punished severely. Our half Friday is taken away from us; we must give that time to busha for a little salt-fish, which was always allowed us during slavery. If we lay in bed after six o'clock, they take away our Saturday too. If we lose a little time from work, they make us pay a great deal more time. They stated, and so did several of the missionaries, that the loss of the half Friday was very serious to them; as it often rendered it impossible for them to get to meeting on Sunday. The whole work of cultivating their grounds, preparing their produce for sale, carrying it to the distant market, (Morant Bay, and sometimes further,) and returning, all this was, by the loss of the Friday afternoon, crowded into Saturday, and it was often impossible for them to get back from market before Sabbath morning; then they had to dress and go six or ten miles further to chapel, or stay away altogether, which, from weariness and worldly cares, they would be strongly tempted to do. This they represented as being a grievous thing to them. Said one of the men; in a peculiarly solemn and earnest manner, while the tears stood in his eyes, "I declare to you, massa, if de Lord spare we to be free, we be much more 'ligiours--*we be wise to many more tings*; we be better Christians; because den we have all de Sunday for go to meeting. But now de holy time taken up in work for we food." These words were deeply impressed upon us by the intense earnestness with which they were spoken. They revealed "the heart's own bitterness." There was also a lighting up of joy and hope in the countenance of that child of God, as he looked forward to the time when he might become *wise to many more tings*.

[Footnote A: We would observe, that they did not refer to Mr. Chamberlain, but to another magistrate, whose name they mentioned.]

They gave a heart-sickening account of the cruelties of the treadmill. They spoke of the apprentices having their wrists tied to the handboard, and said it was very common for them to fall and hang against the wheel. Some who

had been sent to the treadmill, had actually died from the injuries they there received. They were often obliged to see their wives dragged off to Morant Bay, and tied to the treadmill, even when they were in a state of pregnancy. They suffered a great deal of misery from *that*; *but they could not help it*.

Sometimes it was a wonder to themselves how they could endure all the provocations and sufferings of the apprenticeship; *it was only "by de mercy of God!"*

They were asked why they did not complain to the special magistrates. They replied, that it did no good, for the magistrates would not take any notice of their complaints, besides, it made the masters treat them still worse. Said one, "We go to de magistrate to complain, and den when we come back de busha do all him can to vex us. He *wingle* (tease) us, and *wingle* us; de book-keeper curse us and threaten us; de constable he scold us, and call hard names, and dey all strive to make we mad, so we say someting wrong, and den dey take we to de magistrate for insolence." Such was the final consequence of complaining to the magistrate. We asked them why they did not complain, when they had a good magistrate who would do them justice. Their answer revealed a new fact. They were afraid to complain to a magistrate, who they knew was their friend, *because their masters told them that the magistrate would soon be changed, and another would come who would flog them; and that for every time they dared to complain to the GOOD magistrate, they would be flogged when the BAD one came*. They said their masters had explained it all to them long ago.

We inquired of them particularly what course they intended to take when they should become free. We requested them to speak, not only with reference to themselves, but of the apprentices generally, as far as they knew their views. They said the apprentices expected to work on the estates, if they were allowed to do so. They had no intention of leaving work. Nothing would cause them to leave their estates but bad treatment; if their masters were harsh, they would go to another estate, where they would get better treatment. They would be *obliged* to work when they were free; even more than now, for *then* they would have no other dependence.

One tried to prove to us by reasoning, that the people would work when they were free. Said he, "In slavery time we work *even* wid de whip, now

we work 'till better--*what tink we will do when we free? Won't we work den, when we get paid?*" He appealed to us so earnestly, that we could not help acknowledging we were fully convinced. However, in order to establish the point still more clearly, he stated some facts, such as the following:

During slavery, it took six men to tend the coppers in boiling sugar, and it was thought that fewer could not possibly do the work; but now, since the boilers are paid for their extra time, the work is monopolized by *three* men. *They would not have any help; they did all the work "dat dey might get all de pay."*

We sounded them thoroughly on their views of law and freedom. We inquired whether they expected to be allowed to do as they pleased when they were free. On this subject they spoke very rationally. Said one, "We could never live widout de law; (we use, his very expressions) we must have some law when we free. In other countries, where dey are free, *don't* dey have law? Wouldn't dey shoot one another if they did not have law?" Thus they reasoned about freedom. Their chief complaint against the apprenticeship was, that it did not allow them *justice*. "*There was no law now.*" They had been told by the governor, that there was the same law for all the island; but they knew better, for there was more justice done them in some districts than in others.

Some of their expressions indicated very strongly the characteristic kindness of the negro. They would say, we work now as well as we can *for the sake of peace; any thing for peace*. Don't want to be complained of to the magistrate; don't like to be called hard names--do any thing to keep peace. Such expressions were repeatedly made. We asked them what they thought of the domestics being emancipated in 1838, while they had to remain apprentices two years longer? They said, "it bad enough--but we know de law make it so, and *for peace sake*, we will be satisfy. *But we murmur in we minds.*"

We asked what they expected to do with the old and infirm, after freedom? They said, "we will support *dem*--as how dey brought us up when we was pickaninny, and now we come trong, must care for *dem*." In such a spirit did these apprentices discourse for two hours. They won greatly upon our sympathy and respect. The touching story of their wrongs, the artless

unbosoming of their hopes, their forgiving spirit toward their masters, their distinct views of their own rights, their amiable bearing under provocation, their just notions of law, and of a state of freedom--these things were well calculated to excite our admiration for them, and their companions in suffering. Having prayed with the company, and commended them to the grace of God, and the salvation of Jesus Christ, we shook hands with them individually, and separated from them, never more to see them, until we meet at the bar of God.

While one of us was prosecuting the foregoing inquiries in St. Thomas in the East, the other was performing a horse-back tour among the mountains of St. Andrews and Port Royal. We had been invited by Stephen Bourne, Esq., special magistrate for one of the rural districts in those parishes, to spend a week in his family, and accompany him in his official visits to the plantations embraced in his commission--an invitation we were very glad to accept, as it laid open to us at the same time three important sources of information,--the magistrate, the planter, and the apprentice.

The sun was just rising as we left Kingston, and entered the high road. The air, which the day before had been painfully hot and stived, was cool and fresh, and from flowers and spice-trees, on which the dew still lay, went forth a thousand fragrant exhalations. Our course for about six miles, lay over the broad, low plain, which spreads around Kingston, westward to the highlands of St. Andrews, and southward beyond Spanishtown. All along the road, and in various directions in the distance, were seen the residences--uncouthly termed 'pens'--of merchants and gentlemen of wealth, whose business frequently calls them to town. Unlike Barbadoes, the fields here were protected by walls and hedges, with broad gateways and avenues leading to the house. We soon began to meet here and there, at intervals, person going to the market with fruits and provisions. The number continually increased, and at the end of an hour, they could be seen trudging over the fields, and along the by-paths and roads, on every hand. Some had a couple of stunted donkeys yoked to a ricketty cart,--others had mules with pack-saddles--but the many loaded their own heads, instead of the donkeys and mules. Most of them were well dressed, and all civil and respectful in their conduct.

Invigorated by the mountain air, and animated by the novelty and grandeur of the mountain scenery, through which we had passed, we arrived at 'Grecian Regale' in season for an early West Indian breakfast, (8 o'clock.) Mr. Bourne's district is entirely composed of coffee plantations, and embraces three thousand apprentices. The people on coffee plantations are not worked so hard as those employed on sugar estates; but they are more liable to suffer from insufficient food and clothing.

After breakfast we accompanied Mr. Bourne on a visit to the plantations, but there were no complaints either from the master or apprentice, except on one. Here Mr. B. was hailed by a hoary-headed man, sitting at the side of his house. He said that he was lame and sick, and could not work, and complained that his master did not give him any food. All he had to eat was given him by a relative. As the master was not at home, Mr. B. could not attend to the complaint at that time, but promised to write the master about it in the course of the day. He informed us that the aged and disabled were very much neglected under the apprenticeship. When the working days are over, the profit days are over, and how few in any country are willing to support an animal which is past labor? If these complaints are numerous under the new system, when magistrates are all abroad to remedy them, what must it have been during slavery, when master and magistrate were the same!

On one of the plantations we called at the house of an emigrant, of which some hundreds have been imported from different parts of Europe, since emancipation. He had been in the island eighteen months, and was much dissatisfied with his situation. The experiment of importing whites to Jamaica as laborers, has proved disastrous--an unfortunate speculation to all parties, and all parties wish them back again.

We had some conversation with several apprentices, who called on Mr. Bourne for advice and aid. They all thought the apprenticeship very hard, but still, on the whole, liked it better than slavery. They "were killed too bad,"--that was their expression--during slavery--were worked hard and terribly flogged. They were up ever so early and late--went out in the mountains to work, when so cold busha would have to cover himself up on the ground. Had little time to eat, or go to meeting. 'Twas all slash, slash! Now they couldn't be flogged, unless the magistrate said so. Still the busha

was very hard to them, and many of the apprentices run away to the woods, they are so badly used.

The next plantation which we visited was Dublin Castle. It lies in a deep valley, quite enclosed by mountains. The present attorney has been in the island nine years, and is attorney for several other properties. In England he was a religious man, and intimately acquainted with the eccentric Irving. For a while after he came out he preached to the slaves, but having taken a black concubine, and treating those under his charge oppressively, he soon obtained a bad character among the blacks, and his meetings were deserted. He is now a most passionate and wicked man, having cast off even the show of religion.

Mr. B. visited Dublin Castle a few weeks since, and spent two days in hearing complaints brought against the manager and book-keeper by the apprentices. He fined the manager, for different acts of oppression, one hundred and eight dollars. The attorney was present during the whole time. Near the close of the second day he requested permission to say a few words, which was granted. He raised his hands and eyes in the most agonized manner, as though passion was writhing within, and burst forth--"O, my God! my God! has it indeed come to this! Am I to be arraigned in this way? Is my conduct to be questioned by these people? Is my authority to be destroyed by the interference of stranger? O, my God!" And he fell back into the arms of his book-keeper, and was carried out of the room in convulsions.

The next morning we started on another excursion, for the purpose of attending the appraisement of an apprentice belonging to Silver Hill, a plantation about ten miles distant from Grecian Regale. We rode but a short distance in the town road, when we struck off into a narrow defile by a mule-path, and pushed into the very heart of the mountains.

We felt somewhat timid at the commencement of our excursion among these minor Andes, but we gained confidence as we proceeded, and finding our horse sure-footed and quite familiar with mountain paths, we soon learned to gallop, without fear, along the highest cliffs, and through the most dangerous passes. We were once put in some jeopardy by a drove of mules, laden with coffee. We fortunately saw them, as they came round the

point of a hill, at some distance, in season to secure ourselves in a little recess where the path widened. On they came, cheered by the loud cries of their drivers, and passed rapidly forward, one after another, with the headlong stupidity which animals, claiming more wisdom than quadrupeds, not unfrequently manifest. When they came up to us, however, they showed that they were not unaccustomed to such encounters, and, although the space between us and the brow of the precipice, was not three feet wide, they all contrived to sway their bodies and heavy sacks in such a manner as to pass us safely, except one. He, more stupid or more unlucky than the rest, struck us a full broad-side as he went by jolting us hard against the hill, and well-nigh jolting himself down the craggy descent into the abyss below. One leg hung a moment over the precipice, but the poor beast suddenly threw his whole weight forward, and by a desperate leap, obtained sure foothold in the path, and again trudged along with his coffee-bags.

On our way we called at two plantations, but found no complaints. At one of them we had some conversation with the overseer. He has on it one hundred and thirty apprentices, and produces annually thirty thousand pounds of coffee. He informed us that he was getting along well. His people are industrious and obedient, as much so, to say the least, as under the old system. The crop this year is not so great as usual, on account of the severe drought. His plantation was never better cultivated. Besides the one hundred and thirty apprentices, there are forty free children, who are supported by their parents. None of them will work for hire, or in any way put themselves under his control, as the parents fear there is some plot laid for making them apprentices, and through that process reducing them to slavery. He thinks this feeling will continue till the apprenticeship is entirely broken up, and the people begin to feel assured of complete freedom, when it will disappear.

We reached Silver Hill about noon. This plantation contains one hundred and ten apprentices, and is under the management of a colored man, who has had charge of it seven years. He informed us that it was under as good cultivation now as it was before emancipation. His people are easily controlled. Very much depends on the conduct of the overseer. If he is disposed to be just and kind, the apprentices are sure to behave well; if he is harsh and severe, and attempts to *drive* them, they will take no pains to please him, but on the contrary, will be sulky and obstinate.

There were three overseers from other estates present. One of them had been an overseer for forty years, and he possessed the looks and feelings which we suppose a man who has been thus long in a school of despotism, must possess. He had a giant form, which seemed to be breaking down with luxury and sensualism. His ordinary voice was hoarse and gusty, and his smile diabolical. Emancipation had swept away his power while it left the love of it ravaging his heart. He could not speak of the new system with composure. His contempt and hatred of the negro was unadulterated. He spoke of the apprentices with great bitterness. They were excessively lazy and impudent, and were becoming more and more so every day. They did not do half the work now that they did before emancipation. It was the character of the negro never to work unless compelled. His people would not labor for him an hour in their own time, although he had offered to pay them for it. They have not the least gratitude. They will leave him in the midst of his crop, and help others, because they can get a little more. They spend all their half Fridays and their Saturdays on other plantations where they receive forty cents a day. Twenty-five cents is enough for them, and is as much as he will give.

Mr. B. requested the overseer to bring forward his complaints. He had only two. One was against a boy of ten for stealing a gill of goat's milk. The charge was disproved. The other was against a boy of twelve for neglecting the cattle, and permitting them to trespass on the lands of a neighbor. He was sentenced to receive a good switching--that is, to be beaten with a small stick by the constable of the plantation.

Several apprentices then appeared and made a few trivial complaints against 'busha.' They were quickly adjusted. These were all the complaints that had accumulated in five weeks.

The principal business which called Mr. Bourne to the plantation, as we have already remarked, was the appraisement of an apprentice. The appraisers were himself and a local magistrate. The apprentice was a native born African, and was stolen from his country when a boy. He had always resided on this plantation, and had always been a faithful laborer. He was now the constable, or driver, as the office was called in slavery times, of the second gang. The overseer testified to his honesty and industry, and said he regretted much to have him leave. He was, as appeared by the plantation

books, fifty-four years old, but was evidently above sixty. After examining several witnesses as to the old man's ability and general health, and making calculations by the rule of three, with the cold accuracy of a *yankee* horse-bargain, it was decided that his services were worth to the plantation forty-eight dollars a year, and for the remaining time of the apprenticeship, consequently, at that rate, one hundred and fifty-six dollars. One third of this was deducted as an allowance for the probabilities of death, and sickness, leaving one hundred and four dollars as the price of his redemption. The old man objected strongly and earnestly to the price; he said, it was too much; he had not money enough to pay it; and begged them, with tears in his eyes, not to make him pay so much "for his old bones;" but they would not remit a cent. They could not. They were the stern ministers of the British emancipation law, the praises of which have been shouted through the earth!

Of the three overseers who were present, not one could be called a respectable man. Their countenances were the mirrors of all lustful and desperate passions. They were continually drinking rum and water, and one of them was half drunk.

Our next visit was to an elevated plantation called Peter's Rock. The path to it was, in one place, so steep, that we had to dismount and permit our horses to work their way up as they could, while we followed on foot. We then wound along among provision grounds and coffee fields, through forests where hardly a track was to be seen, and over hedges, which the horses were obliged to leap, till we issued on the great path which leads from the plantation to Kingston.

Peter's Rock has one hundred apprentices, and is under the management, as Mr. Bourne informed us, of a very humane man. During the two years and a half of the apprenticeship, there had been *only six complaints*. As we approached the plantation we saw the apprentices at the side of the road, eating their breakfast. They had been at work some distance from their houses, and could not spend time to go home. They saluted us with great civility, most of them rising and uncovering their heads. In answer to our questions, they said they were getting along very well. They said their master was kind to them, and they appeared in fine spirits.

The overseer met us as we rode up to the door, and received us very courteously. He had no complaints. He informed us that the plantation was as well cultivated as it had been for many years, and the people were perfectly obedient and industrious.

From Peter's Rock we rode to "Hall's Prospect," a plantation on which there are sixty apprentices under the charge of a black overseer, who, two years ago, was a slave. It was five weeks since Mr. B. had been there, and yet he had only one complaint, and that against a woman for being late at work on Monday morning. The reason she gave for this was, that she went to an estate some miles distant to spend the Sabbath with her husband.

Mr. Bourne, by the aid of funds left in his hands by Mr. Sturge, is about to establish a school on this plantation. Mr. B., at a previous visit, had informed the people of what he intended to do, and asked their co-operation. As soon as they saw him to-day, several of them immediately inquired about the school, when it would begin, &c. They showed the greatest eagerness and thankfulness. Mr. B. told them he should send a teacher as soon as a house was prepared. He had been talking with their master (the attorney of the plantation) about fixing one, who had offered them the old "lock-up house," if they would put it in order. There was a murmur among them at this annunciation. At length one of the men said, they did not want the school to be held in the "lock-up house." It was not a good place for their "pickaninnies" to go to. They had much rather have some other building, and would be glad to have it close to their houses. Mr. B. told them if they would put up a small house near their own, he would furnish it with desks and benches. To this they all assented with great joy.

On our way home we saw, as we did on various other occasions, many of the apprentices with hoes, baskets, &c., going to their provision grounds. We had some conversation with them as we rode along. They said they had been in the fields picking coffee since half past five o'clock. They were now going, as they always did after "horn-blow" in the afternoon, (four o'clock,) to their grounds, where they should stay till dark. Some of their grounds were four, others six miles from home. They all liked the apprenticeship better than slavery. They were not flogged so much now, and had more time to themselves. But they should like freedom much better, and should be glad when it came.

We met a brown young woman driving an ass laden with a great variety of articles. She said she had been to Kingston (fifteen miles off) with a load of provisions, and had purchased some things to sell to the apprentices. We asked her what she did with her money. "Give it to my husband," said she. "Do you keep none for yourself?" She smiled and replied: "What for him for me."

After we had passed, Mr. B. informed us that she had been an apprentice, but purchased her freedom a few months previous, and was now engaged as a kind of country merchant. She purchases provisions of the negroes, and carries them to Kingston, where she exchanges them for pins, needles, thread, dry goods, and such articles as the apprentices need, which she again exchanges for provisions and money.

Mr. Bourne informed us that real estate is much higher than before emancipation. He mentioned one "pen" which was purchased for eighteen hundred dollars a few years since. The owner had received nine hundred dollars as 'compensation' for freedom. It has lately been leased for seven years by the owner, for nine hundred dollars per year.

A gentleman who owns a plantation in Mr. B.'s district, sold parcels of land to the negroes before emancipation at five shillings per acre. He now obtains twenty-seven shillings per acre.

The house in which Mr. B. resides was rented in 1833 for one hundred and fifty dollars. Mr. B. engaged it on his arrival for three years, at two hundred and forty dollars per year. His landlord informed him a few days since, that on the expiration of his present lease, he should raise the rent to three hundred and thirty dollars.

Mr. B. is acquainted with a gentleman of wealth, who has been endeavoring for the last twelve months to purchase an estate in this island. He has offered high prices, but has as yet been unable to obtain one. Landholders have so much confidence in the value and security of real estate, that they do not wish to part with it.

After our visit to Silver Hill, our attention was particularly turned to the condition of the negro grounds. Most of them were very clean and flourishing. Large plats of the onion, of cocoa, plantain, banana, yam,

potatoe, and other tropic vegetables, were scattered all around within five or six miles of a plantation. We were much pleased with the appearance of them during a ride on a Friday. In the forenoon, they had all been vacant; not a person was to be seen in them; but after one o'clock, they began gradually to be occupied, till, at the end of an hour, where-ever we went, we saw men, women, and children laboring industriously in their little gardens. In some places, the hills to their very summits were spotted with cultivation. Till Monday morning the apprentices were free, and they certainly manifested a strong disposition to spend that time in taking care of themselves. The testimony of the numerous apprentices with whom we conversed, was to the same effect as our observation. They all testified that they were paying as much attention to their grounds as they ever did, but that their provisions had been cut short by the drought. They had their land all prepared for a new crop, and were only waiting for rain to put in the seed. Mr. Bourne corroborated their statement, and remarked, that he never found the least difficulty in procuring laborers. Could he have the possession of the largest plantation in the island to-day, he had no doubt that, within a week, he could procure free laborers enough to cultivate every acre.

On one occasion, while among the mountains, we were impressed on a jury to sit in inquest on the body of a negro woman found dead on the high road. She was, as appeared in evidence, on her return from the house of correction, at Half-Way-Tree, where she had been sentenced for fourteen days, and been put on the treadmill. She had complained to some of her acquaintances of harsh treatment there, and said they had killed her, and that if she ever lived to reach home, she should tell all her massa's negroes never to cross the threshold of Half-Way-Tree, as it would kill them. The evidence, however, was not clear that she died in consequence of such treatment, and the jury, accordingly, decided that she came to her death by some cause unknown to them.

Nine of the jury were overseers, and if they, collected together indiscriminately on this occasion, were a specimen of those who have charge of the apprentices in this island, they must be most degraded and brutal men. They appeared more under the influence of low passions, more degraded by sensuality, and but little more intelligent, than the negroes themselves. Instead of possessing irresponsible power over their fellows,

they ought themselves to be under the power of the most strict and energetic laws. Our visits to the plantations, and inquiries on this point, confirmed this opinion. They are the 'feculum' of European society--ignorant, passionate, licentious. We do them no injustice when we say this, nor when we further add, that the apprentices suffer in a hundred ways which the law cannot reach, gross insults and oppression from their excessive rapaciousness and lust. What must it have been during slavery?

We had some conversation with Cheny Hamilton, Esq., one of the special magistrates for Port Royal. He is a colored man, and has held his office about eighteen months. There are three thousand apprentices in his district, which embraces sugar and coffee estates. The complaints are few and of a very trivial nature. They mostly originate with the planters. Most of the cases brought before him are for petty theft and absence from work.

In his district, cultivation was never better. The negroes are willing to work during their own time. His father-in-law is clearing up some mountain land for a coffee plantation, by the labor of apprentices from neighboring estates. The seasons since emancipation have been bad. The blacks cultivate their own grounds on their half Fridays and Saturdays, unless they can obtain employment from others.

Nothing is doing by the planters for the education of the apprentices. Their only object is to get as much work out of them as possible.

The blacks, so far as he has had opportunity to observe, are in every respect as quiet and industrious as they were before freedom. He said if we would compare the character of the complaints brought by the overseers and apprentices against each other, we should see for ourselves which party was the most peaceable and law-abiding.

To these views we may here add those of another gentleman, with whom we had considerable conversation about the same time. He is a proprietor and local magistrate, and was represented to us as a kind and humane man. Mr. Bourne stated to us that he had not had six cases of complaint on his plantation for the last twelve months. We give his most important statements in the following brief items:

1. He has had charge of estates in Jamaica since 1804. At one time he had twelve hundred negroes under his control. He now owns a coffee plantation, on which there are one hundred and ten apprentices, and is also attorney for several others, the owners of which reside out of the island.

2. His plantation is well cultivated and clean, and his people are as industrious and civil as they ever were. He employs them during their own time, and always finds them willing to work for him, unless their own grounds require their attendance. Cultivation generally, through the island, is as good as it ever was. Many of the planters, at the commencement of the apprenticeship, reduced the quantity of land cultivated; he did not do so, but on the contrary is extending his plantation.

3. The crops this year are not so good as usual. This is no fault of the apprentices, but is owing to the bad season.

4. The conduct of the apprentices depends very much on the conduct of those who have charge of them. If you find a plantation on which the overseer is kind, and does common justice to the laborer, you will find things going on well--if otherwise, the reverse. Those estates and plantations on which the proprietor himself resides, are most peaceable and prosperous.

5. Real estate is more valuable than before emancipation. Property is more secure, and capitalists are more ready to invest their funds.

6. The result of 1840 is as yet doubtful. For his part, he has no fears. He doubts not he can cultivate his plantation as easily after that period as before. He is confident he can do it cheaper. He thinks it not only likely, but certain, that many of the plantations on which the people have been ill used, while slaves and apprentices, will be abandoned by the present laborers, and that they will never be worked until overseers are put over them who, instead of doing all they can to harass them, will soothe and conciliate them. The apprenticeship has done much harm instead of good in the way of preparing the blacks to work after 1840.

A few days after our return from the mountains, we rode to Spanishtown, which is about twelve miles west of Kingston. Spanishtown is the seat of government, containing the various buildings for the residence of the

governor, the meeting of the legislature, the session of the courts, and rooms for the several officers of the crown. They are all strong and massive structures, but display little architectural magnificence or beauty.

We spent nearly a day with Richard Hill, Esq., the secretary of the special magistrates' department, of whom we have already spoken. He is a colored gentleman, and in every respect the noblest man, white or black, whom we met in the West Indies. He is highly intelligent, and of fine moral feelings. His manners are free and unassuming, and his language in conversation fluent and well chosen. He is intimately acquainted with English and French authors, and has studied thoroughly the history and character of the people with whom the tie of color has connected him. He travelled two years in Hayti, and his letters, written in a flowing and luxuriant style, as a son of the tropics should write, giving an account of his observations and inquiries in that interesting island, were published extensively in England; and have been copied into the anti-slavery journals in this country. His journal will be given to the public as soon as his official duties will permit him to prepare it. He is at the head of the special magistrates, (of which there are sixty in the island,) and all the correspondence between them and the governor is carried on through him. The station he holds is a very important one, and the business connected with it is of a character and an extent that, were he not a man of superior abilities, he could not sustain. He is highly respected by the government in the island, and at home, and possesses the esteem of his fellow-citizens of all colors. He associates with persons of the highest rank, dining and attending parties at the government-house with all the aristocracy of Jamaica. We had the pleasure of spending an evening with him at the solicitor-general's. Though an African sun has burnt a deep tinge on him, he is truly one of nature's noblemen. His demeanor is such, so dignified, yet bland and amiable, that no one can help respecting him.

He spoke in the warmest terms of Lord Sligo,[\[A\]](#) the predecessor of Sir Lionel Smith, who was driven from the island by the machinations of the planters and the enemies of the blacks. Lord Sligo was remarkable for his statistical accuracy. Reports were made to him by the special magistrates every week. No act of injustice or oppression could escape his indefatigable inquiries. He was accessible, and lent an open ear to the lowest person in

the island. The planters left no means untried to remove him, and unhappily succeeded.

[Footnote [A](#): When Lord Sligo visited the United States in the summer of 1836, he spoke with great respect of Mr. Hill to Elizur Wright, Esq., Corresponding Secretary of the American Anti-Slavery Society. Mr. Wright has furnished us with the following statement:--"Just before his lordship left this city for England, he bore testimony to us substantially as follows:--'When I went to Jamaica, Mr. Hill was a special magistrate. In a certain case he refused to comply with my directions, differing from me in his interpretation of the law. I informed him that his continued non-compliance must result in his removal from office. He replied that his mind was made up as to the law, and he would not violate his reason to save his bread. Being satisfied of the correctness of my own interpretation, I was obliged, of course, to remove him; but I was so forcibly struck with his manly independence, that I applied to the government for power to employ him as my secretary, which was granted. And having had him as an *intimate of my family* for several months, I can most cordially bear my testimony to his trustworthiness, ability, and gentlemanly deportment.' Lord Sligo also added, that Mr. Hill was treated in his family in all respects as if he had not been colored, and that with no gentleman in the West Indies was he, in social life, on terms of more intimate friendship."]

The following items contain the principal information received from Mr. Hill:

1. The apprenticeship is a most vicious system, full of blunders and absurdities, and directly calculated to set master and slave at war.
2. The complaints against the apprentices are decreasing every month, *except, perhaps, complaints against mothers for absence from work, which he thinks are increasing.* The apprenticeship law makes no provision for the free children, and on most of the plantations and estates no allowance is given them, but they are thrown entirely for support on their parents, who are obliged to work the most and best part of their time for their masters unrewarded. The nurseries are broken up, and frequently the mothers are obliged to work in the fields with their infants at their backs, or else to leave them at some distance under the shade of a hedge or tree. Every year is

making their condition worse and worse. The number of children is increasing, and yet the mothers are required, after their youngest child has attained the age of a few weeks, to be at work the same number of hours as the men. Very little time is given them to take care of their household. When they are tardy they are brought before the magistrate.

A woman was brought before Mr. Hill a few days before we were there, charged with not being in the field till one hour after the rest of the gang. She had twins, and appeared before him with a child hanging on each arm. What an eloquent defence! He dismissed the complaint.

He mentioned another case, of a woman whose master resided in Spanishtown, but who was hired out by him to some person in the country. Her child became sick, but her employer refused any assistance. With it in her arms, she entreated aid of her master. The monster drove her and her dying little one into the street at night, and she sought shelter with Mr. Hill, where her child expired before morning. For such horrid cruelty as this, the apprenticeship law provides no remedy. The woman had no claim for the support of her child, on the man who was receiving the wages of her daily toil. That child was not worth a farthing to him, because it was no longer his *chattel*; and while the law gives him power to rob the mother, it has no compulsion to make him support the child.

3. The complaints are generally of the most trivial and frivolous nature. They are mostly against mothers for neglect of duty, and vague charges of insolence. There is no provision in the law to prevent the master from using abusive language to the apprentice; any insult short of a blow, he is free to commit; but the slightest word of incivility, a look, smile, or grin, is punished in the apprentice, even though it were provoked.

4. There is still much flogging by the overseers. Last week a girl came to Mr. H. terribly scarred and "slashed," and complained that her master had beaten her. It appeared that this was the *seventh offence*, for neither of which she could obtain a hearing from the special magistrate in her district. While Mr. H. was relating to me this fact, a girl came in with a little babe in her arms. He called my attention to a large bruise near her eye. He said her master knocked her down a few days since, and made that wound by kicking her.

Frequently when complaints of insolence are made, on investigation, it is found that the offence was the result of a quarrel commenced by the master, during which he either cuffed or kicked the offender.

The special magistrates also frequently resort to flogging. Many of them, as has been mentioned already, have been connected with the army or navy, where corporal punishment is practised and flogging is not only in consonance with their feelings and habits, but is a punishment more briefly inflicted and more grateful to the planters, as it does not deprive them of the apprentice's time.

5. Mr. H. says that the apprentices who have purchased their freedom behave well. He has not known one of them to be brought before the police.

6. Many of the special magistrates require much looking after. Their salaries are not sufficient to support them independently. Some of them leave their homes on Monday morning, and make the whole circuit of their district before returning, living and lodging meanwhile, *free of expense*, with the planters. If they are not inclined to listen to the complaints of the apprentices, they soon find that the apprentices are not inclined to make complaints to them, and that they consequently have much more leisure time, and get through their district much easier. Of the sixty magistrates in Jamaica, but few can be said to discharge their duties faithfully. The governor is often required to interfere. A few weeks since he discharged two magistrates for putting iron collars on two women, in direct violation of the law, and then sending him false reports.

7. The negro grounds are often at a great distance, five or six miles, and some of them fifteen miles, from the plantation. Of course much time, which would otherwise be spent in cultivating them, is necessarily consumed in going to them and returning. Yet for all that, and though in many cases the planters have withdrawn the watchmen who used to protect them, and have left them entirely exposed to thieves and cattle, they are generally well cultivated--on the whole, better than during slavery. When there is inattention to them, it is caused either by some planters hiring them during their own time, or because their master permits his cattle to trespass on them, and the people feel an insecurity. When you find a kind planter, in whom the apprentices have confidence, there you will find beautiful

gardens. In not a few instances, where the overseer is particularly harsh and cruel, the negroes have thrown up their old grounds, and taken new ones on other plantations, where the overseer is better liked, or gone into the depths of the mountain forests, where no human foot has been before them, and there cleared up small plats. This was also done to some extent during slavery. Many of the people, against whom the planters are declaiming as lazy and worthless, have rich grounds of which those planters little dream.

8. There is no feeling of insecurity, either of life or property. One may travel through the whole island without the least fear of violence. If there is any danger, it is from the *emigrants*, who have been guilty of several outrages. So far from the planters fearing violence from the apprentices, when an assault or theft is committed, they refer it, almost as a matter of course, to some one else. A few weeks ago one of the island mails was robbed. As soon as it became known, it was at once said, "Some of those villanous emigrants did it," and so indeed it proved.

People in the country, in the midst of the mountains, where the whites are few and isolated, sleep with their doors and windows open, without a thought of being molested. In the towns there are no watchmen, and but a small police, and yet the streets are quiet and property safe.

9. The apprentices understand the great provisions of the new system, such as the number of hours they must work for their master, and that their masters have no right to flog them, &c., but its details are inexplicable mysteries. The masters have done much injury by deceiving them on points of which they were ignorant.

10. The apprentices almost to a man are ready to work for wages during their own time. When the overseer is severe towards them, they prefer working on other plantations, even for less wages, as is very natural.

11. Almost all the evils of the apprenticeship arise from the obstinacy and oppressive conduct of the overseers. They are constantly taking advantage of the defects of the system, which are many, and while they demand to the last grain's weight "the pound of flesh," they are utterly unwilling to yield the requirements which the law makes of them. Where you find an overseer endeavoring in every way to overreach the apprentices, taking away the privileges which they enjoyed during slavery, and exacting from them the

utmost minute and mite of labor, there you will find abundant complaints both against the master and the apprentice. And the reverse. The cruel overseers are complaining of idleness, insubordination, and ruin, while the kind master is moving on peaceably and prosperously.

12. The domestic apprentices have either one day, or fifty cents cash, each week, as an allowance for food and clothing. This is quite insufficient. Many of the females seem obliged to resort to theft or to prostitution to obtain a support. Two girls were brought before Mr. Hill while we were with him, charged with neglect of duty and night-walking. One of them said her allowance was too small, and she must get food in some other way or starve.

13. The apprentices on many plantations have been deprived of several privileges which they enjoyed under the old system. Nurseries have been abolished, water-carriers have been taken away, keeping stock is restricted, if not entirely forbidden, watchmen are no longer provided to guard the negro grounds, &c.--petty aggressions in our eyes, perhaps, but severe to them. Another instance is still more hard. By the custom of slavery, women who had reared up seven children were permitted to "sit down," as it was termed; that is, were not obliged to go into the field to work. Now no such distinction is made, but all are driven into the field.

14. One reason why the crops were smaller in 1835 and 1836 than in former years, was, that the planters in the preceding seasons, either fearful that the negroes would not take off the crops after emancipation, and acting on their baseless predictions instead of facts, or determined to make the results of emancipation appear as disastrous as possible, neglected to put in the usual amount of cane, and to clean the coffee fields. As they refused to sow, of course they could not reap.

15. The complaints against the apprentices generally are becoming fewer every week, but the complaints against the masters are increasing both in number and severity. One reason of this is, that the apprentices, on the one hand, are becoming better acquainted with the new system, and therefore better able to avoid a violation of its provisions, and are also learning that they cannot violate these provisions with impunity; and, on the other hand, they are gaining courage to complain against their masters, to whom they

have hitherto been subjected by a fear created by the whips and dungeons, and nameless tortures of slavery. Another reason is, that the masters, as the term of the apprenticeship shortens, and the end of their authority approaches nearer, are pressing their poor victims harder and harder, determined to extort from them all they can, before complete emancipation rescues them for ever from their grasp.

While we were in conversation with Mr. Hill, Mr. Ramsay, one of the special magistrates for this parish, called in. He is a native of Jamaica, and has been educated under all the influences of West India society, but has held fast his integrity, and is considered the firm friend of the apprentices. He confirmed every fact and opinion which Mr. Hill had given. He was even stronger than Mr. H. in his expressions of disapprobation of the apprenticeship.

The day which we spent with Mr. Hill was one of those on which he holds a special justice's court. There were only three cases of complaint brought before him.

The first was brought by a woman, attended by her husband, against her servant girl, for "impertinence and insubordination." She took the oath and commenced her testimony with an abundance of vague charges. "She is the most insolent girl I ever saw. She'll do nothing that she is told to do--she never thinks of minding what is said to her--she is sulky and saucy," *etc.* Mr. H. told her she must be specific--he could not convict the girl on such general charges--some particular acts must be proved.

She became specific. Her charges were as follows:

1. On the previous Thursday the defendant was plaiting a shirt. The complainant went up to her and asked her why she did not plait it as she ought, and not hold it in her hand as she did. Defendant replied, that it was easier, and she preferred that way to the other. The complainant remonstrated, but, despite all she could say, the obstinate girl persisted, and did it as she chose. The complainant granted that the work was done well, only it was not done in the way she desired.
2. The same day she ordered the defendant to wipe up some tracks in the hall. She did so. While she was doing it, the mistress told her the room was

very dusty, and reproved her for it. The girl replied, "Is it morning?" (It is customary to clean the rooms early in the morning, and the girl made this reply late in the afternoon, when sufficient time had elapsed for the room to become dusty again.)

3. The girl did not wash a cloth clean which the complainant gave her, and the complainant was obliged to wash it herself.

4. Several times when the complainant and her daughter have been conversing together, this girl had burst into laughter--whether at them or their conversation, complainant did not know.

5. When the complainant has reproved the defendant for not doing her work well, she has replied, "Can't you let me alone to my work, and not worry my life out."

A black man, a constable on the same property, was brought up to confirm the charges. He knew nothing about the case, only that he often heard the parties quarrelling, and sometimes had told the girl not to say any thing, as she knew what her mistress was.

It appeared in the course of the evidence, that the complainant and her husband had both been in the habit of speaking disrespectfully of the special magistrate, stationed in their district, and that many of the contentions arose out of that, as the girl sometimes defended him.

While the accused was making her defence, which she did in a modest way, her mistress was highly enraged, and interrupted her several times, by calling her a liar and a jade. The magistrate was two or three times obliged to reprove her, and command her to be silent, and, so passionate did she become, that her husband, ashamed of her, put his hand on her shoulder, and entreated her to be calm.

Mr. Hill dismissed the complaint by giving some good advice to both parties, much to the annoyance of the mistress.

The second complaint was brought by a man against a servant girl, for disobedience of orders, and insolence. It appears that she was ordered, at ten o'clock at night, to do some work. She was just leaving the house to call on some friends, as she said, and refused. On being told by her mistress that

she only wanted to go out for bad purposes, she replied, that "It was no matter--the allowance they gave her was not sufficient to support her, and if they would not give her more, she must get a living any way she could, so she did not steal." She was sentenced to the house of correction for one week.

The third case was a complaint against a boy for taking every alternate Friday and Saturday, instead of every Saturday, for allowance. He was ordered to take every Saturday, or to receive in lieu of it half a dollar.

Mr. Hill said these were a fair specimen of the character of the complaints that came before him. We were much pleased with the manner in which he presided in his court, the ease, dignity, and impartiality which he exhibited, and the respect which was shown him by all parties.

In company with Mr. Hill, we called on Rev. Mr. Phillips, the Baptist missionary, stationed at Spanishtown. Mr. P. has been in the island thirteen years. He regards the apprenticeship as a great amelioration of the old system of slavery, but as coming far short of the full privileges and rights of freedom, and of what it was expected to be. It is beneficial to the missionaries, as it gives them access to the plantations, while before, in many instances, they were entirely excluded from them, and in all cases were much shackled in their operations.

Mr. P. has enlarged his chapel within the last fifteen months, so that it admits several hundreds more than formerly. But it is now too small. The apprentices are much more anxious to receive religious instruction, and much more open to conviction, than when slaves. He finds a great difference now on different plantations. Where severity is used, as it still is on many estates, and the new system is moulded as nearly as possible on the old, the minds of the apprentices are apparently closed against all impressions,--but where they are treated with kindness, they are warm in their affections, and solicitous to be taught.

In connection with his church, Mr. P. has charge of a large school. The number present, when we visited it, was about two hundred. There was, to say the least, as much manifestation of intellect and sprightliness as we ever saw in white pupils of the same age. Most of the children were slaves previous to 1834, and their parents are still apprentices. Several were

pointed out to us who were not yet free, and attend only by permission, sometimes purchased, of their master. The greater part live from three to five miles distant. Mr. P. says he finds no lack of interest among the apprentices about education. He can find scholars for as many schools as he can establish, if he keeps himself unconnected with the planters. The apprentices are opposed to all schools established by, or in any way allied to, their masters.

Mr. P. says the planters are doing nothing to prepare the apprentices for freedom in 1840. They do not regard the apprenticeship as intermediate time for preparation, but as part of the *compensation*. Every day is counted, not as worth so much for education and moral instruction, but as worth so much for digging cane-holes, and clearing coffee fields.

Mr. P.'s church escaped destruction during the persecution of the Baptists. The wives and connections of many of the colored soldiers had taken refuge in it, and had given out word that they would defend it even against their own husbands and brothers, who in turn informed their officers that if ordered to destroy it, they should refuse at all peril.

CHAPTER III.

RESULTS OF ABOLITION.

The actual working of the apprenticeship in Jamaica, was the specific object of our investigations in that island. That it had not operated so happily as in Barbadoes, and in most of the other colonies, was admitted by all parties. As to the *degree* of its failure, we were satisfied it was not so great as had been represented. There has been nothing of an *insurrectionary* character since the abolition of slavery. The affair on Thornton's estate, of which an account is given in the preceding chapter, is the most serious disturbance which has occurred during the apprenticeship. The *fear* of insurrection is as effectually dead in Jamaica, as in Barbadoes--so long as the apprenticeship lasts. There has been no *increase of crime*. The character of the negro population has been gradually improving in morals and intelligence. Marriage has increased, the Sabbath is more generally observed, and religious worship is better attended. Again, the apprentices of Jamaica have not manifested any peculiar *defiance of law*. The most illiberal magistrates

testified that the people respected the law, when they understood it. As it respects the *industry* of the apprentices, there are different opinions among the *planters* themselves. Some admitted that they were as industrious as before, and did as much work *in proportion to the time they were employed*. Others complained that they *lacked the power* to compel industry, and that hence there was a falling off of work. The prominent evils complained of in Jamaica are, absconding from work, and insolence to masters. From the statements in the preceding chapter, it may be inferred that many things are called by these names, and severely punished, which are really innocent or unavoidable; however, it would not be wonderful if there were numerous instances of both. Insolence is the legitimate fruit of the apprenticeship, which holds out to the apprentice, that he possesses the rights of a man, and still authorizes the master to treat him as though he were little better than a dog. The result must often be that the apprentice will repay insult with insolence. This will continue to exist until either the former system of *absolute force* is restored, or a system of free compensated labor, with its powerful checks and balances on both parties, is substituted. The prevalence and causes of the other offence--absconding from labor--will be noticed hereafter.

The atrocities which are practised by the masters and magistrates, are appalling enough. It is probable that the actual condition of the negroes in Jamaica, is but little if any better than it was during slavery. The amount of punishment inflicted by the special magistrates, cannot fall much short of that usually perpetrated by the drivers. In addition to this, the apprentices are robbed of the *time* allowed them by law, at the will of the magistrate, who often deprives them of it on the slightest complaint of the overseer. The situation of the *free children*[\[A\]](#) is often very deplorable. The master feels none of that interest in them which he formerly felt in the children that were his property, and consequently, makes no provision for them. They are thrown entirely upon their parents, who are *unable* to take proper care of them, from the almost constant demands which the master makes upon their time. The condition of pregnant women, and nursing mothers, is *decidedly worse* than it was during slavery. The privileges which the planter felt it for his interest to grant these formerly, for *the sake of their children*, are now withheld. The former are exposed to the inclemencies of the weather, and the hardships of toil--the latter are cruelly dragged away from their infants,

that the master may not lose the smallest portion of time,--and *both* are liable at any moment to be incarcerated in the dungeon, or strung up on the treadmill. In consequence of the cruelties which are practised, the apprentices are in a *disaffected state* throughout the island.

[Footnote [A](#): All children under *six years* of age at the time of abolition, were made entirely free.]

In assigning the causes of the ill-working of the apprenticeship in Jamaica, we would say in the commencement, that nearly all of them are embodied in the intrinsic defects of the system itself. These defects have been exposed in a former chapter, and we need not repeat them here. The reason why the system has not produced as much mischief in all the colonies as it has in Jamaica, is that the local circumstances in the other islands were not so adapted to develop its legitimate results.

It is not without the most careful investigation of facts, that we have allowed ourselves to entertain the views which we are now about to express, respecting the conduct of the planters and special justices--for it is to *them* that we must ascribe the evils which exist in Jamaica. We cheerfully accede to them all of palliation which may be found in the provocations incident to the wretched system of apprenticeship.

The causes of the difficulties rest chiefly with the *planters*. They were *originally* implicated, and by their wily schemes they soon involved the special magistrates. The Jamaica planters, as a body, always violently opposed the abolition of slavery. Unlike the planters in most of the colonies, they cherished their hostility *after the act of abolition*. It would seem that they had agreed with one accord, never to become reconciled to the measures of the English government, and had sworn eternal hostility to every scheme of emancipation. Whether this resulted most from love for slavery or hatred of English interference, it is difficult to determine. If we were to believe the planters themselves, who are of the opposition, we should conclude that they were far from being in favor of slavery--that they were "as much opposed to slavery, as any one can be[\[A\]](#)." Notwithstanding this avowal, the tenacity with which the planters cling to the remnant of their power, shows an affection for it, of the strength of which they are not probably themselves aware.

[Footnote [A](#): It seems to be the order of the day, with the opposition party in Jamaica, to disclaim all friendship with slavery. We noticed several instances of this in the island papers, which have been most hostile to abolition. We quote the following sample from the Royal Gazette, (Kingston) for May 6, 1837. The editor, in an article respecting Cuba, says:

"In writing this, one chief object is to arouse the attention of our own fellow-subjects, in this colony, to the situation--the dangerous situation--in which they stand, and to implore them to lend all their energies to avert the ruin that is likely to visit them, should America get the domination of Cuba.

The negroes of this and of all the British W.I. colonies have been '*emancipated*.' Cuba on the other hand is still a *slave country*. (Let not our readers imagine for one moment that we advocate the *continuance of slavery*," &c.)

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When public men have endeavored to be faithful and upright, they have uniformly been abused, and even persecuted, by the planters. The following facts will show that the latter have not scrupled to resort to the most dishonest and unmanly intrigues to effect the removal or to circumvent the influence of such men. Neglect, ridicule, vulgar abuse, slander, threats, intimidation, misrepresentation, and legal prosecutions, have been the mildest weapons employed against those who in the discharge of their sworn duties dared to befriend the oppressed.

The shameful treatment of the late governor, Lord Sligo, illustrates this. His Lordship was appointed to the government about the period of abolition. Being himself a proprietor of estates in the island, and formerly chairman of the West India Body, he was received at first with the greatest cordiality; but it was soon perceived that he was disposed to secure justice to the apprentices. From the accounts we received, we have been led to entertain an exalted opinion of his integrity and friendship for the poor. It was his custom (unprecedented in the West Indies,) to give a patient hearing to the poorest negro who might carry his grievances to the government-house. After hearing the complaint, he would despatch an order to the special

magistrate of the district in which the complainant lived, directing him to inquire into the case. By this means he kept the magistrates employed, and secured redress to the apprentices to many cases where they would otherwise have been neglected.

The governor soon rendered himself exceedingly obnoxious to the planters, and they began to manoeuvre for his removal, which, in a short time, was effected by a most flagitious procedure. The home government, disposed to humor their unruly colony, sent them a governor in whom they are not likely to find any fault. The present governor, Sir Lionel Smith, is the antipode of his predecessor in every worthy respect. When the apprentices come to him with their complaints, he sends them back unheard, with curses on their heads. A distinguished gentleman in the colony remarked of him that he was *a heartless military chieftain, who ruled without regard to mercy*. Of course the planters are full of his praise. His late tour of the island was a *triumphal procession*, amid the sycophantic greetings of oppressors.

Several special magistrates have been suspended because of the faithful discharge of their duties. Among these was Dr. Palmer, an independent and courageous man. Repeated complaints were urged against him by the planters, until finally Sir Lionel Smith appointed a commission to inquire into the grounds of the difficulty.

"This commission consisted of two local magistrates, both of them planters or managers of estates, and two stipendiary magistrates, the bias of one of whom, at least, was believed to be against Dr. Palmer. At the conclusion of their inquiry they summed up their report by saying that Dr. Palmer had administered the abolition law in the spirit of the English abolition act, and in his administration of the law he had adapted it more to the comprehension of freemen than to the understandings of apprenticed laborers. Not only did Sir Lionel Smith suspend Dr. Palmer on this report, but the colonial office at home have dismissed him from his situation."

The following facts respecting the persecution of Special Justice Bourne, illustrate the same thing.

"A book-keeper of the name of Maclean, on the estate of the Rev. M. Hamilton, an Irish clergyman, committed a brutal assault upon an old

African. The attorney on the property refused to hear the complaint of the negro, who went to Stephen Bourne, a special magistrate. When Maclean was brought before him, he did not deny the fact; but said as the old man was not a Christian, his oath could not be taken! The magistrate not being able to ascertain the amount of injury inflicted upon the negro (whose head was dreadfully cut,) but feeling that it was a case which required a greater penalty than three pounds sterling, the amount of punishment to which he was limited by the local acts, detained Maclean, and afterwards committed him to jail, and wrote the next day to the chief justice upon the subject. He was discharged as soon as a doctor's certificate was procured of the state of the wounded man, and bail was given for his appearance at the assizes. Maclean's trial came on at the assizes, and he was found guilty by a Jamaica Jury; he was severely reprimanded for his inhuman conduct and fined thirty pounds. The poor apprentice however got no remuneration for the severe injury inflicted upon him, and the special justice was prosecuted for false imprisonment, dragged from court to court, represented as an oppressor and a tyrant, subjected to four hundred pounds expenses in defending himself, and actually had judgment given against him for one hundred and fifty pounds damages.

Thus have the planters succeeded in pulling down every magistrate who ventures to do more than fine them three pounds sterling for any act of cruelty of which they may be guilty. On the other hand, there were two magistrates who were lately dismissed, through, I believe, the representation of Lord Sligo, for flagrant violations of the law in inflicting punishment; and in order to evince their sympathy for those men, the planters gave them a farewell dinner, and had actually set on foot a subscription, as a tribute of gratitude for their "Impartial" conduct in administering the laws, as special justices. Thus were two men, notoriously guilty of violations of law and humanity, publicly encouraged and protected, while Stephen Bourne, who according to the testimony of the present and late attorney-general had acted not only justly but *legally*, was suffering every species of persecution and indignity for so doing."

Probably nothing could demonstrate the meanness of the artifices to which the planters resort to get rid of troublesome magistrates better than the following fact. When the present governor, in making his tour of the island, came into St. Thomas in the East, some of the planters of Manchioneal district hired a negro constable on one of the estates to go to the governor and complain to him that Mr. Chamberlain encouraged the apprentices to be disorderly and idle. The negro went accordingly, but like another Balaam, he prophesied *against his employers*. He stated to the governor that the apprentices on the estate where he lived were lazy and wouldn't do right, *but he declared that it was not Mr. C.'s fault, for that he was not allowed to come on the estate!*

Having given such an unfavorable description of the mass of planters, it is but just to add that there are a few honorable exceptions. There are some attorneys and overseers, who if they dared to face the allied powers of oppression, would act a noble part. But they are trammelled by an overpowering public sentiment, and are induced to fall in very much with the prevailing practices. One of this class, an attorney of considerable influence, declined giving us his views in writing, stating that his situation and the state of public sentiment must be his apology. An overseer who was disposed to manifest the most liberal bearing towards his apprentices, and who had directions from the absentee proprietor to that effect, was yet effectually prevented by his attorney, who having several other estates under his charge, was fearful of losing them, if he did not maintain the same severe discipline on all.

The special magistrates are also deeply implicated in causing the difficulties existing under the apprenticeship. They are incessantly exposed to multiplied and powerful temptations. The persecution which they are sure to incur by a faithful discharge of their duties, has already been noticed. It would require men of unusual sternness of principle to face so fierce an array. Instead of being *independent* of the planters, their situation is in every respect totally the reverse. Instead of having a central office or station-house to hold their courts at, as is the case in Barbadoes, they are required to visit each estate in their districts. They have a circuit from forty to sixty miles to compass every fortnight, or in some cases three times every month. On these tours they are absolutely dependent upon the hospitality of the planters. None but men of the "sterner stuff" could escape, (to use the

negro's phrase) *being poisoned by massa's turtle soup*. The character of the men who are acting as magistrates is thus described by a colonial magistrate of high standing and experience.

"The special magistracy department is filled with the most worthless men, both domestic and imported. It was a necessary qualification of the former to possess no property; hence the most worthless vagabonds on the island were appointed. The latter were worn out officers and dissipated rakes, whom the English government sent off here in order to get rid of them." As a specimen of the latter kind, this gentleman mentioned one (special Justice Light) who died lately from excessive dissipation. He was constantly drunk, and the only way in which to get him to do any business was to take him on to an estate in the evening so that he might sleep off his intoxication, and then the business was brought before him early the next morning, before he had time to get to his cups.

It is well known that many of the special magistrates are totally unprincipled men, monsters of cruelty, lust, and despotism. As a result of natural character in many cases, and of dependence upon planters in many more, the great mass of the special justices are a disgrace to their office, and to the government which commissioned them. Out of sixty, the number of special justices in Jamaica, there are not more than fifteen, or twenty at farthest, who are not the merest tools of the attorneys and overseers. Their servility was graphically hit off by the apprentice. "If busha say flog em, he flog em; if busha say send them to the treadmill, he send em." If an apprentice laughs or sings, and the busha represents it to the magistrate as insolence, he *feels it his duty* to make an example of the offender!

The following fact will illustrate the injustice of the magistrates. It was stated in writing by a missionary. We conceal all names, in compliance with the request of the writer. "An apprentice belonging to ---- in the ---- was sent to the treadmill by special justice G. He was ordered to go out and count the sheep, as he was able to count higher than some of the field people, although a house servant from his youth--I may say childhood. Instead of bringing in the tally cut upon a piece of board, as usual, he wrote the number eighty upon a piece of paper. When the overseer saw it, he would scarcely believe that any of his people could write, and ordered a piece of coal to be brought and made him write it over again; the next day

he turned him into the field, but unable to perform the task (to hoe and weed one hundred coffee roots daily) with those who had been accustomed to field work all their lives, he was tried for neglect of duty, and sentenced to fourteen days on the treadmill!"

We quote the following heart-rending account from the Telegraph, (Spanishtown,) April 28, 1837. It is from a Baptist missionary.

"I see something is doing in England to shorten the apprenticeship system. I pray God it may soon follow its predecessor--slavery, for it is indeed slavery under a less disgusting name. Business lately (December 23) called me to Rodney Hall; and while I was there, a poor old negro was brought in for punishment. I heard the fearful vociferation, 'twenty stripes.' 'Very well; here ----, put this man down.' I felt as I cannot describe; yet I thought, as the supervisor was disposed to be civil, my presence might tend to make the punishment less severe than it usually is--but I was disappointed. I inquired into the crime for which such an old man could be so severely punished, and heard various accounts. I wrote to the magistrate who sentenced him to receive it; and after many days I got the following reply."

"Logan Castle, Jan. 9, 1836.

Sir--In answer to your note of the 4th instant, I beg leave to state, that -
--- ----, an apprentice belonging to ---- ----, was brought before me by Mr. ----, his late overseer, charged upon oath with continual neglect of duty and disobedience of orders as cattle-man, and also for stealing milk--was convicted, and sentenced to receive twenty stripes. So far from the punishment of the offender being severe, he was not ordered one half the number of stripes provided for such cases by the abolition act--if he received more than that number, or if those were inflicted with undue severity, I shall feel happy in making every inquiry amongst the authorities at Rodney Hall institution.

I remain, sir, yours, truly,

T.W. JONES, S.M."

'Rev. J. Clarke, &c., &c.'

From Mr. Clarke's reply, we make the following extract:

"Jericho, January 19, 1836.

Sir--I beg to acknowledge the receipt of your letter of the 9th instant.

Respecting the punishment of ---- ----, I still adhere to the opinion I before expressed, that, for an old man of about sixty years of age, the punishment was severe. To see a venerable old man tied as if to be broken on the wheel, and cut to the bone by the lash of an athletic driver--writhing and yelling under the most exquisite torture, were certainly circumstances sufficiently strong to touch the heart of any one possessed of the smallest degree of common humanity. The usual preparations being made, the old man quietly stripped off his upper garments, and lay down upon the board--he was then tied by his legs, middle, above the elbows, and at each wrist. Mr. ---- then called out to the driver, 'I hope you will do your duty--he is not sent here for nothing.' At the first lash the skin started up; and at the third, the blood began to flow; ere the driver had given ten, the cat was covered with gore; and he stopped to change it for a dry one, which appeared to me somewhat longer than the first. When the poor tortured creature had received sixteen, his violent struggles enabled him to get one of his hands loose, which he put instantly to his back--the driver stopped to retie him, and then proceeded to give the remaining four. The struggles of the poor old man from the first lash bespoke the most extreme torture; and his cries were to me most distressing. 'Oh! oh! mercy! mercy! mercy! oh! massa! massa! dat enough--enough! oh, enough! O, massa, have pity! O, massa! massa! dat enough--enough! Oh, never do de like again--only pity me--forgive *me dis once!* oh! pity! mercy! mercy! oh! oh!' were the cries he perpetually uttered. I shall remember them while I live; and would not for ten thousand worlds have been the cause of producing them. It was some minutes after he was loosed ere he could rise to his feet, and as he attempted to rise, he continued calling out, 'My back! oh! my back! my back is broken.' A long time he remained half-doubled, the blood flowing round his body; 'I serve my

master,' said the aged sufferer, 'at all times; get no Saturday, no Sunday; yet this is de way *dem* use me.'

With such planters, and such magistrates to play into their hands, is it to be wondered at that the apprentices do badly? Enough has been said, we think, to satisfy any candid person as to the *causes of the evils in Jamaica*. If any thing further were needed, we might speak of the peculiar facilities which these men have for perpetrating acts of cruelty and injustice. The major part of the island is exceedingly mountainous, and a large portion of the sugar estates, and most of the coffee plantations, are among the mountains. These estates are scattered over a wide extent of country, and separated by dense forests and mountains, which conceal each plantation from the public view almost as effectually as though it were the only property on the island. The only mode of access to many of the estates in the mountainous districts, is by mule paths winding about, amid fastnesses, precipices, and frightful solitudes. In those lone retirements, on the mountain top, or in the deep glen by the side of the rocky rivers, the traveller occasionally meets with an estate. Strangers but rarely intrude upon those little domains. They are left to the solitary sway of the overseers dwelling amid their "gangs," and undisturbed, save by the weekly visitations of the special magistrates. While the traveller is struck with the facilities for the perpetration of those enormities which must have existed there during slavery; he is painfully impressed also with the numerous opportunities which are still afforded for oppressing the apprentices, particularly where the special magistrates are not honest men.[\[A\]](#)

[Footnote [A](#): From the nature of the case, it must be impossible to know how much actual flogging is perpetrated by the overseers. We might safely conjecture that there must be a vast deal of it that never comes to the light. Such is the decided belief of many of the first men in the island. The planters, say they, flog their apprentices, and then, to prevent their complaining to the magistrate, threaten them with severe punishment, or bribe them to silence by giving them a few shillings. The attorney-general mentioned an instance of the latter policy. A planter got angry with one of his head men, who was a constable, and knocked him down. The man

started off to complain to the special magistrate. The master called him back, and told him he need not go to the magistrate--that he was constable, and had a right to fine him himself. "Well, massa," said the negro, "I fine you five shillings on de spot." The master was glad to get off with that--the magistrate would probably have fined him £5 currency.]

In view of the local situation of Jamaica--the violent character of its planters--and the inevitable dependency of the magistrates, it is very manifest *that immediate emancipation was imperatively demanded there*. In no other colony did the negroes require to be more *entirely released from the tyranny of the overseers, or more thoroughly shielded by the power of equal law*. This is a principle which must hold good always--that where slavery has been most rigorous and absolute, there emancipation, needs to be most unqualified; and where the sway of the master has been *most despotic, cruel, and* LONG CONTINUED, there the protection of law should be most SPEEDILY *extended and most impartially applied*."[B]

[Footnote B: Since the above was written we have seen a copy of a message sent by Sir Lionel Smith, to the house of assembly of Jamaica, on the 3d November, 1837, in which a statement of the deprivations of the apprentices, is officially laid before the house. We make the following extract from it, which contains, to use his Excellency's language, "the principal causes, as has been found by the records of the special magistrates, of complaints among the apprentices; and of consequent collisions between the planters and magistrates."

"Prudent and humane planters have already adopted what is recommended, and their properties present the good working of this system in peace and industry, without their resorting to the authority of the special magistrates; but there are other properties where neither the law of the apprenticeship nor the usages of slavery have been found sufficient to guard the rights of the apprentices.

First, the magistrates' reports show that on some estates the apprentices have been deprived of cooks and water-carriers while at work in the field--thus, the time allowed for breakfast, instead of being a period of rest, is one of continual labor, as they have to seek for fuel and to cook.

The depriving them of water-carriers is still more injurious, as the workmen are not allowed to quit their rows to obtain it. Both these privations are detrimental to the planter's work. Second, a law seems wanting to supply the estates' hospitals with sufficient attendants on the sick apprentices, as well as for the supply of proper food, as they cannot depend on their own grounds, whilst unable to leave the hospitals. The first clause of the abolition law has not been found strong enough to secure these necessary attentions to the sick. Third, in regard to jobbers, more exposed to hardships than any other class. A law is greatly required allowing them the distance they may have to walk to their work, at the rate of three miles an hour, and for compelling the parties hiring them to supply them with salt food and meal; their grounds are oftentimes so many miles distant, it is impossible for them to supply themselves. Hence constant complaints and irregularities. Fourth, that mothers of six children and upwards, pregnant women, and the aged of both sexes, would be greatly benefited by a law enforcing the kind treatment which they received in slavery, but which is now considered optional, or is altogether avoided on many properties. Fifth, nothing would tend more to effect general contentment and repress the evils of comparative treatment, than the issue of fish as a right by law. It was an indulgence in slavery seldom denied, but on many properties is now withheld, or given for extra labor instead of wages. Sixth, his Excellency during the last sessions had the honor to address a message to the house for a stronger definition of working time. The clause of the act in aid expressed that it was the intention of the legislature to regulate 'uniformity' of labor, but in practice there is still a great diversity of system. The legal adviser of the crown considers the clause active and binding; the special magistrate cannot, therefore, adjudicate on disputes of labor under the eight hour system, and the consequences have been continual complaints and bickerings between the magistrates and managers, and discontent among the apprentices by comparison of the advantages which one system presents over the other. Seventh, if your honorable house would adopt some equitable fixed principle for the value of apprentices desirous of purchasing their discharge, either by ascertained rates of weekly labor, or by fixed sums according to their trade or occupation, which should not be exceeded, and allowing the

deduction of one third from the extreme value for the contingencies of maintenance, clothing, medical aid, risk of life, and health, it would greatly tend to set at rest one cause of constant disappointment. In proportion as the term of apprenticeship draws to a close, THE DEMANDS FOR THE SALE OF SERVICES HAVE GREATLY INCREASED. It is in the hope that the honorable house will be disposed to enforce a more general system of equal treatment, that his Excellency now circumstantially represents what have been the most common causes of complaint among the apprentices, and why the island is subject to the reproach that the negroes, in some respects, are now in a worse condition than they were in slavery."

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We heard frequent complaints in Jamaica respecting the falling off of the crops since abolition. In order that the reader may know the extent of the failure in the aggregate island crops, we have inserted in the appendix a table showing the "exports for fifty-three years, ending 31st December, 1836, condensed from the journals of the House."

By the disaffected planters, the diminished crops were hailed as "an evident token of perdition." They had foretold that abolition would be the ruin of cultivation, they had maintained that sugar, coffee, rum, &c., could not be produced extensively without the *whip of slavery*, and now they exultingly point to the short crops and say, "See the results of abolition!" We say exultingly, for a portion of the planters do really seem to rejoice in any indication of ruin. Having staked their reputation as prophets against their credit as colonists and their interests as men, they seem happy in the establishment of the former, even though it be by the sacrifice of the latter. Said an intelligent gentleman in St. Thomas in the East, "The planters have *set their hearts upon* ruin, and they will be sorely disappointed if it should not come."

Hearing so much said concerning the diminution of the crops, we spared no pains to ascertain the *true causes*. We satisfied ourselves that the causes were mainly two.

First. The prevailing impression that the negroes would not *work well* after the abolition of slavery, led many planters to throw a part of their land out

of cultivation, in 1834. This is a fact which was published by Lord Sligo, in an official account which he gave shortly before leaving Jamaica, of the working of the apprenticeship. The overseer of Belvidere estate declared that he knew of many cases in which part of the land usually planted in canes was thrown up, owing to the general expectation that *much less work* would be done after abolition. He also mentioned one attorney *who ordered all the estates under his charge to be thrown out of cultivation* in 1834, so confident was he that the negroes would not work. The name of this attorney was White. Mr. Gordon, of Williamsfield, stated, that the quantity of land planted in cane, in 1834, was considerably less than the usual amount: on some estates it was less by twenty, and on others by forty acres. Now if such were the fact in the Parish of St. Thomas in the East, where greater confidence was felt probably than in any other parish, we have a clue by which we may conjecture (if indeed we were left to conjecture) to what extent the cultivation was diminished in the island generally. This of itself would satisfactorily account for the falling off in the crops--which at most is not above one third. Nor would this explain the decrease in '34 *only*, for it is well known among sugar planters that a neglect of planting, either total or partial, for one year, will affect the crops for two or three successive years.

The other cause of short crops has been the *diminished amount of time for labor*. One fourth of the time now belongs to the laborers, and they often prefer to employ it in cultivating their provision grounds and carrying their produce to market. Thus the estate cultivation is necessarily impeded. This cause operates very extensively, particularly on two classes of estates: those which lie convenient to market places, where the apprentices have strong inducements to cultivate their grounds, and those (more numerous still) which *have harsh overseers*, to whom the apprentices are averse to hire their time--in which cases they will choose to work for neighboring planters, who are better men. We should not omit to add here, that owing to a singular fact, the falling off of the crops *appears* greater than it really has been. We learned from the most credible sources that *the size of the hogsheads* had been considerably enlarged since abolition. Formerly they contained, on an average, eighteen hundred weight, now they vary from a ton to twenty-two hundred! As the crops are estimated by the number of hogsheads, this will make a material difference. There were two reasons for

enlarging in the hogsheads,--one was, to lessen the amount of certain port charges in exportation, which were made *by the hogshead*; the other, and perhaps the principal, was to create some foundation in appearance for the complaint that the crops had failed because of abolition.

While we feel fully warranted in stating these as the chief causes of the diminished crops, we are at the same time disposed to admit that the apprenticeship is in itself exceedingly ill calculated either to encourage or to compel industry. We must confess that we have no special zeal to vindicate this system from its full share of blame; but we are rather inclined to award to it every jot and tittle of the dishonored instrumentality which it has had in working mischief to the colony. However, in all candor, we must say, that we can scarcely check the risings of exultation when we perceive that this party-fangled measure--this offspring of old Slavery in her dying throes, *which was expressly designed as a compensation to the proprietor*, HAS ACTUALLY DIMINISHED HIS ANNUAL RETURNS BY ONE THIRD! So may it ever be with legislation which is based on *iniquity and robbery*!

But the subject which excites the deepest interest in Jamaica *is the probable consequences of entire emancipation in 1840*. The most common opinion among the prognosticators of evil is, that the emancipated negroes will abandon the cultivation of all the staple products, retire to the woods, and live in a state of semi-barbarism; and as a consequence, the splendid sugar and coffee estates must be "thrown up," and the beautiful and fertile island of Jamaica become a waste howling wilderness.

The *reasons* for this opinion consist in part of naked assumptions, and in part of inferences from *supposed* facts. The assumed reasons are such as these. The negroes will not cultivate the cane *without the whip*. How is this known? Simply because *they never have*, to any great extent, in Jamaica. Such, it has been shown, was the opinion formerly in Barbadoes, but it has been forever exploded there by experiment. Again, the negroes are *naturally improvident*, and will never have enough foresight to work steadily. What is the evidence of *natural* improvidence in the negroes? Barely this--their carelessness in a state of slavery. But that furnishes no ground at all for judging of *natural* character, or of the developments of character under a *totally different system*. If it testifies any thing, it is only this, that the natural disposition of the negroes is not always *proof* against

the degenerating influences of slavery.[A] Again, the actual wants of the negroes are very few and easily supplied, and they will undoubtedly prefer going into the woods where they can live almost without labor, to toiling in the hot cane fields or climbing the coffee mountains. But they who urge this, lose sight of the fact that the negroes are considerably civilized, and that, like other civilized people, they will seek for more than supply for the necessities of the rudest state of nature. Their wants are already many, even in the degraded condition of slaves; is it probable that they will be satisfied with *fewer of the comforts and luxuries of civilized life*, when they are elevated to the sphere, and feel the self-respect and dignity of freemen? But let us notice some of the reasons which profess to be *founded on fact*. They may all be resolved into two, *the laziness of negroes, and their tendency to barbarism*.

[Footnote [A](#): Probably in more instances than the one recorded in the foregoing chapter, the improvidence of the negroes is inferred from their otherwise unaccountable preference in walking six or ten miles to chapel, rather than to work for a macaroni a day.]

i. They *now* refuse to work on Saturdays, even with wages. On this assertion we have several remarks to make.

1.) It is true only to a partial extent. The apprentices on many estates--whether a majority or not it is impossible to say--do work for their masters on Saturdays, when their services are called for.

2.) They often refuse to work on the estates, because they can earn three or four times as much by cultivating their provision grounds and carrying their produce to market. The ordinary day's wages on an estate is a quarter of a dollar, and where the apprentices are conveniently situated to market, they can make from seventy-five cents to a dollar a day with their provisions.

3.) The overseers are often such overbearing and detestable men, that the apprentices doubtless feel it a great relief to be freed from their command on Saturday, after submitting to it compulsorily for five days of the week.

2. Another fact from which the laziness of the negroes is inferred, is their *neglecting their provision grounds*. It is said that they have fallen off greatly to their attention to their grounds, since the abolition of slavery. This fact does not comport very well with the complaint, that the apprentices cultivate their provision grounds to the neglect of the estates. But both assertions may be true under opposite circumstances. On those estates which are situated near the market, provisions will be cultivated; on those which are remote from the market, provisions will of course be partially neglected, and it will be more profitable to the apprentices to work on the estates at a quarter of a dollar per day, raising only enough provisions for their own use. But we ascertained another circumstance which throws light on this point. The negroes expect, after emancipation, to *lose their provision grounds*; many expect certainly to be turned off by their masters, and many who have harsh masters, intend to leave, and seek homes on other estates, and *all* feel a great uncertainty about their situation after 1840; and consequently they can have but little encouragement to vigorous and

extended cultivation of their grounds. Besides this, there are very many cases in which the apprentices of one estate cultivate provision grounds on another estate, where the manager is a man in whom they have more confidence than they have in their own "busha." They, of course, in such cases, abandon their former grounds, and consequently are charged with neglecting them through laziness.

3. Another alleged fact is, that *actually less work* is done now than was done during slavery. The argument founded on this fact is this: there is less work done under the apprenticeship than was done during slavery: therefore *no work at all* will be done after entire freedom! But the apprenticeship allows *one fourth less time* for labor than slavery did, and presents no inducement, either compulsory or persuasive, to continued industry. Will it be replied that emancipation will take away *all* the time from labor, and offer no encouragement *but to idleness*? How is it now? Do the apprentices work better or worse during their own time when they are paid? Better, unquestionably. What does this prove? That freedom will supply both the time and the inducement to the most vigorous industry.

The *other reason* for believing that the negroes will abandon estate-labor after entire emancipation, is their *strong tendency to barbarism*! And what are the facts in proof of this? We know but one.

We heard it said repeatedly that the apprentices were not willing to have their free children educated--that they had pertinaciously declined every offer of the *bushas* to educate their children, and *this*, it was alleged, evinced a determination on the part of the negroes to perpetuate ignorance and barbarism among their posterity. We heard from no less than four persons of distinction in St. Thomas in the East, the following curious fact. It was stated each time for the double purpose of proving that the apprentices did not wish to have their children *learn to work*, and that they were opposed to their *receiving education*. A company of the first-gentlemen of that parish, consisting of the rector of the parish, the custos, the special magistrate, an attorney, and member of the assembly, *etc.*, had mustered in imposing array, and proceeded to one of the large estates in the Plantain Garden River Valley, and there having called the apprentices together, made the following proposals to them respecting their free children, the rector acting as spokesman. The attorney would provide a

teacher for the estate, and would give the children four hours' instruction daily, if the parents would *bind them to work* four hours every day; the attorney further offered to pay for all medical attendance the children should require. The apprentices, after due deliberation among themselves, unanimously declined this proposition. It was repeatedly urged upon them, and the advantages it promised were held up to them; but they persisted in declining it wholly. This was a great marvel to the planters; and they could not account for it in any other way than by supposing that the apprentices were opposed both to labor and education, and were determined that their free children should grow up in ignorance and indolence! Now the true reason why the apprentices rejected this proposal was, *because it came from the planters*, in whom they have no confidence. They suspected that some evil scheme was hid under the fair pretence of benevolence; the design of the planters, as they firmly believed, was to get their *free children bound to them*, so that they might continue to keep them in a species of apprenticeship. This was stated to us, as the real ground of the rejection, by several missionaries, who gave the best evidence that it was so; viz. that at the same time that the apprentices declined the offer, they would send their free children *six or eight miles to a school taught by a missionary*. We inquired particularly of some of the apprentices, to whom this offer was made, why they did not accept it. They said that they could not trust their masters; the whole design of it was to get them to give up their children, and if they should give them up *but for a single month*, it would be the same as acknowledging that they (the parents) were not able to take care of them themselves. The busha would then send word to the Governor that the people had given up their children, not being able to support them, and the Governor would have the children bound to the busha, "and *then*," said they, "*we might whistle for our children!*" In this manner the apprentices, the *parents*, reasoned. They professed the greatest anxiety to have their children educated, but they said they could have no confidence in the honest intentions of their busha.

The views given above, touching the results of entire emancipation in 1840, are not unanimously entertained even among the planters, and they are far from prevailing to any great extent among other classes of the community. The missionaries, as a body, a portion of the special magistrates, and most of the intelligent free colored people, anticipate glorious consequences; they

hail the approach of 1840, as a deliverance from the *oppressions* of the apprenticeship, and its train of disaffections, complaints and incessant disputes. They say they have nothing to fear--nor has the island any thing to fear, but every thing to hope, from entire emancipation. We subjoin a specimen of the reasoning of the minority of the planters. They represent the idea that the negroes will abandon the estates, and retire to the woods, as wild and absurd in the extreme. They say the negroes have a great regard for the comforts which they enjoy on the estates; they are strongly attached to their houses and little furniture, and their provision grounds. These are as much to them as the 'great house' and the estate are to their master. Besides, they have very *strong local attachments*, and these would bind them to the properties. These planters also argue, from *the great willingness* of the apprentices now to work for money, during their own time, that they will not be likely to relinquish labor when they are to get wages for the whole time. There was no doubt much truth in the remark of a planter in St. Thomas in the East, that if *any* estates were abandoned by the negroes after 1840, it would be those which had harsh managers, and those which are so mountainous and inaccessible, or barren, that they *ought* to be abandoned. It was the declaration of a *planter*, that entire emancipation would *regenerate* the island of Jamaica.

* * * * *

We now submit to the candid examination of the American, especially the Christian public, the results of our inquiries in Antigua, Barbadoes, and Jamaica. The deficiency of the narrative in ability and interest, we are sure is neither the fault of the subject nor of the materials. Could we have thrown into vivid forms a few only of the numberless incidents of rare beauty which thronged our path--could we have imparted to pages that freshness and glow, which invested the institutions of freedom, just bursting into bloom over the late wastes of slavery--could we, in fine, have carried our readers amid the scenes which we witnessed, and the sounds which we heard, and the things which we handled, we should not doubt the power and permanence of the impression produced. It is due to the cause, and to the

society under whose commission we acted, frankly to state, that we were not selected on account of any peculiar qualifications for the work. As both of us were invalids, and compelled to fly from the rigors of an American winter, it was believed that we might combine the improvement of health, with the prosecution of important investigations, while abler men could thus be retained in the field at home; but we found that the unexpected abundance of materials requires the strongest health and powers of endurance. We regret to add, that the continued ill health of both of us, since our return, so serious in the case of one, as to deprive him almost wholly of participation in the preparation of the work, has necessarily, delayed its appearance, and rendered its execution more imperfect.

We lay no claim to literary merit. To present as simple narrative of facts, has been our sole aim. We have not given the results of our personal observations merely, or chiefly, nor have we made a record of private impressions or idle speculations. *Well authenticated facts*, accompanied with the testimony, verbal and documentary, of public men, planters, and other responsible individuals, make up the body of the volume, as almost every page will show. That no statements, if erroneous, might escape detection and exposure, we have, in nearly every case, given the *names* of our authorities. By so doing we may have subjected ourselves to the censure of those respected gentlemen, with whose names we have taken such liberty. We are assured, however, that their interest in the cause of freedom will quite reconcile them to what otherwise might be an unpleasant personal publicity.

Commending our narrative to the blessing of the God of truth, and the Redeemer of the oppressed, we send it forth to do its part, however humble, toward the removal of slavery from our beloved but guilty country.

APPENDIX.

We have in our possession a number of official documents from gentlemen, officers of the government, and variously connected with its administration, in the different islands which we visited: some of these--such as could not be conveniently incorporated into the body of the work--we insert in the form of an appendix. To insert them *all*, would unduly increase the size of

the present volume. Those not embodied in this appendix, will be published in the periodicals of the American Anti-Slavery Society.

* * * * *

OFFICIAL COMMUNICATION FROM E.B. LYON, ESQ., SPECIAL
MAGISTRATE.

Jamaica, Hillingdon, near Falmouth, Trelawney, May 15, 1837.

TO J.H. KIMBALL., ESQ., and J.A. THOME, ESQ.

DEAR SIRS,--Of the operation of the apprenticeship system in this district, from the slight opportunity I have had of observing the conduct of managers and apprentices, I could only speak conjecturally, and my opinions, wanting the authority of experience, would be of little service to you; I shall therefore confine the remarks I have to make, to the operation of the system in the district from which I have lately removed.

I commenced my duties in August, 1834, and from the paucity of special magistrates at that eventful era, I had the superintendence of a most extensive district, comprising nearly one half of the populous parish of St. Thomas in the East, and the whole of the parish of St. David, embracing an apprentice population of nearly eighteen thousand,--in charge of which I continued until December, when I was relieved of St. David, and in March, 1835, my surveillance was confined to that portion of St. Thomas in the East, consisting of the coffee plantations in the Blue Mountains, and the sugar estates of Blue Mountain Valley, over which I continued to preside until last March, a district containing a population of four thousand two hundred and twenty-seven apprentices, of which two thousand eighty-seven were males, and two thousand one hundred and forty, females. The apprentices of the Blue Mountain Valley were, at the period of my assumption of the duties of a special magistrate, the most disorderly in the island. They were greatly excited, and almost desperate from disappointment, in finding their trammels under the new law, nearly as burdensome as under the old, and their condition, in many respects, much

more intolerable. They were also extremely irritated at what they deemed an attempt upon the part of their masters to rob them of one of the greatest advantages they had been led to believe the new law secured to them--this was the half of Friday. Special Justice Everard, who went through the district during the first two weeks of August, 1834, and who was the first special justice to read and explain the new law to them, had told them that the law gave to them the extra four and a half hours on the Friday, and some of the proprietors and managers, who were desirous of preparing their people for the coming change, had likewise explained it so; but, most unfortunately, the governor issued a proclamation, justifying the masters in withholding the four and a half hours on that day, and substituting any other half day, or by working them eight hours per day, they might deprive them altogether of the advantage to be derived from the extra time, which, by the abolition of Sunday marketing, was almost indispensable to people whose grounds, in some instances, were many miles from their habitations, and who were above thirty miles from Kingston market, where prices were fifty per cent. more than the country markets in their favor for the articles they had to dispose of, and correspondingly lower for those they had to purchase. To be in time for which market, it was necessary to walk all Friday night, so that without the use of the previous half day, they could not procure their provisions, or prepare themselves for it. The deprivation of the half of Friday was therefore a serious hardship to them, and this, coupled to the previous assurance of their masters, and Special Justice Everard, that they were entitled to it, made them to suspect a fraud was about being practised on them, which, if they did not resist, would lead to the destruction of the remaining few privileges they possessed. The resistance was very general, but without violence; whole gangs leaving the fields on the afternoon of Friday; refusing to take any other afternoon, and sometimes leaving the estates for two or three days together. They fortunately had confidence in me--and I succeeded in restoring order, and all would have been well,--but the managers, no longer alarmed by the fear of rebellion or violence, began a system of retaliation and revenge, by withdrawing cooks, water-carriers, and nurses, from the field, by refusing medicine and admittance to the hospital to the apprentice children, and by compelling old and infirm people, who had been allowed to withdraw from labor, and mothers of six children, who were exempt by the slave law from hard labor, to come out and work in the field. All this had a natural tendency

to create irritation, and did do so; though, to the great credit of the people, in many instances, they submitted with the most extraordinary patience, to evils which were the more onerous, because inflicted under the affected sanction of a law, whose advent, as the herald of liberty, they had expected would have been attended with a train of blessings. I effected a change in this miserable state of things; and mutual contract for labor, in crop and out of it, were made on twenty-five estates in my district, before, I believe, any arrangement had been made in other parts of the island, between the managers and the apprentices; so that from being in a more unsettled state than others, we were soon happily in a more prosperous one, and so continued.

No peasantry in the most favored country on the globe, can have been more irreproachable in morals and conduct than the majority of apprentices in that district, since the beginning of 1835. I have, month after month, in my despatches to the governor, had to record instances of excess of labor, compared with the quantity performed during slavery in some kinds of work; and while I have with pleasure reported the improving condition, habits, manners, and the industry which characterized the labors of the peasantry, I have not been an indifferent or uninterested witness of the improvement in the condition of many estates, the result of the judicious application of labor, and of the confidence in the future and sanguine expectations of the proprietors, evinced in the enlargements of the works, and expensive and permanent repair of the buildings on various estates, and in the high prices given for properties and land since the apprenticeship system, which would scarcely have commanded a purchaser, at any price, during the existence of slavery.

I have invariably found the apprentice willing to work for an equitable hire, and on all the sugar estates, and several of the plantations, in the district I speak of, they worked a considerable portion of their own time during crop, about the works, for money, or an equivalent in herrings, sugar, *etc.*, to so great a degree, that less than the time allotted to them during slavery, was left for appropriation to the cultivation of their grounds, and for marketing, as the majority, very much to their credit, scrupulously avoided working on the Sabbath day.

In no community in the world is crime less prevalent. At the quarter sessions, in January last, for the precinct of St. Thomas in the East, and St. David, which contains an apprentice population of about thirty thousand, there was only one apprentice tried. And the offences that have, in general, for the last eighteen months, been brought before me on estates, have been of the most trivial description, such as an individual occasionally turning out late, or some one of an irritable temper answering impatiently, or for some trifling act of disobedience; in fact, the majority of apprentices on estates have been untainted with offence, and have steadily and quietly performed their duty, and respected the law. The apprentices of St. Thomas in the East, I do not hesitate to say, are much superior in manners and morals to those who inhabit the towns.

During the first six or eight months, while the planters were in doubt how far the endurance of their laborers might be taxed, the utmost deference and respect was paid by them to the special magistrates; their suggestions or recommendations were adopted without cavil, and opinions taken without reference to the letter of the law; but when the obedience of the apprentice, and his strict deference to the law and its administrators, had inspired them with a consciousness of perfect security, I observed with much regret, a great alteration in the deportment of many of the managers towards myself and the people; trivial and insignificant complaints were astonishingly increased, and assaults on apprentices became more frequent, so that in the degree that the conduct of one party was more in accordance with the obligations imposed on him by the apprenticeship, was that of the other in opposition to it; again with the hold and infirm harassed; again were mothers of six living children attempted to be forced to perform field labor; and again were mothers with sucking children complained of, and some attempts made to deprive them of the usual nurses.

Such treatment was not calculated to promote cordiality between master and apprentice, and the effect will, I fear, have a very unfavorable influence upon the working of many estates, at the termination of the system; in fact, when that period arrives, if the feeling of estrangement be no worse, I am convinced it will be no better than it is at the present moment, as I have witnessed no pains taking on the part of the attorneys generally to attach the apprentices to the properties, or to prepare them in a beneficial manner for the coming change. It was a very common practice in the district, when an

apprentice was about to purchase his discharge, to attempt to intimidate him by threats of immediate ejectment from the property, and if in the face of this threatened separation from family and connections, he persevered and procured his release, then the sincerity of the previous intimations was evinced by a peremptory order, to instantly quit the property, under the penalty of having the trespass act enforced against him; and if my interference prevented any outrageous violation of law, so many obstructions and annoyances were placed in the way of his communication with his family, or enjoyment of his domestic rights, that he would be compelled for their peace, and his own personal convenience, to submit to privations, which, as a slave, he would not have been subject to. The consequence is, that those released from the obligations of the apprenticeship by purchase, instead of being located, and laboring for hire upon the estate to which they were attached, and forming a nucleus around which others would have gathered and settled themselves, they have been principally driven to find other homes, and in the majority of instances have purchased land, and become settlers on their own account. If complete emancipation had taken place in 1834, there would have been no more excitement, and no more trouble to allay it, than that which was the consequence of the introduction of the present system of coerced and uncompensated labor. The relations of society would have been fixed upon a permanent basis, and the two orders would not have been placed in that situation of jealousy and suspicion which their present anomalous condition has been the baneful means of creating.

I am convinced there never was any serious alarm about the consequences of immediate emancipation among those who were acquainted with the peasantry of Jamaica. The fears of the morbidly humane were purposely excited to increase the amount of compensation, or to lengthen the duration of the apprenticeship; and the daily ridiculous and untruthful statements that are made by the vitiated portion of the Jamaica press, of the indolence of the apprentices, their disinclination to work in their own time, and the great increase of crime, are purposely and insidiously put forward to prevent the fact of the industry, and decorum, and deference to the law, of the people, and the prosperous condition of the estates, appearing in too prominent a light, lest the friends of humanity, and the advocates for the equal rights of men, should be encouraged to agitate for the destruction of a system which,

in its general operation, has retained many of the worst features of slavery, perpetuated many gross infringements of the social and domestic rights of the working classes; and which, instead of working out the benevolent intention of the imperial legislature, by aiding and encouraging the expansion of intellect, and supplying motives for the permanent good conduct of the apprentices, in its termination, has, I fear, retarded the rapidity with which civilization would have advanced, and sown the seeds of a feeling more bitter than that which slavery, with all its abominations, had engendered.

I am, dear sirs, your very faithful servant,

EDMUND B. LYON, *Special Justice*.

Extract from a communication which we received from Wm. Henry Anderson, Esq., of Kingston, the Solicitor-General for Jamaica.

The staples of the island must be cultivated after 1840 as now, because if not, the negroes could not obtain the comforts or luxuries, of which they are undoubtedly very desirous, from cultivation of their grounds. The fruits and roots necessary for the public markets are already supplied in profusion at tolerably moderate prices: if the supply were greatly increased, the prices could not be remunerative. There is no way in which they can so readily as by labor for wages, *obtain money*, and therefore I hold that there must ever be an adequate supply of labor in the market.

The negroes are in my opinion very acute in their perceptions of right and wrong, justice and injustice, and appreciate fully the benefits of equitable legislation, and would unreservedly submit to it where they felt confidence in the purity of its administration.

There is not the slightest likelihood of rebellion on the part of the negroes after 1840, unless some unrighteous attempts be made to keep up the helotism of the class by enactments of partial laws. *They* could have no interest in rebellion, they could gain nothing by it; and might lose every thing; nor do I think they dream of such a thing. They are ardently attached to the British government, and would be so to the colonial government, were it to indicate by its enactments any purposes of kindness or protection

towards them. Hitherto the scope of its legislation has been, in reference to them, almost exclusively coercive; certainly there have been no enactments of a tendency to conciliate their good will or attachment.

The negroes are much desirous of education and religious instruction: no one who has attended to the matter can gainsay that. Formerly marriage was unknown amongst them; they were in fact only regarded by their masters, and I fear by themselves too, as so many brutes for labor, and for increase. Now they seek the benefits of the social institution of marriage and its train of hallowed relationships: concubinage is becoming quite disreputable; many are seeking to repair their conduct by marriage to their former partners, and no one in any rank of life would be hardy enough to express disapprobation of those who have done or may do so.

WM. HENRY ANDERSON.

Kingston, Jamaica, 24th April, 1837.

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The following communication is the monthly report for March, 1837, of Major J.B. Colthurst, special justice for District A., Rural Division, Barbadoes.

The general conduct of the apprentices since my last report has been excellent, considering that greater demands have been made upon their labor at this moment to save perhaps the finest crop of canes ever grown in the island.

Upon the large estates generally the best feeling exists, because they are in three cases out of four conducted by either the proprietors themselves, or attorneys and managers of sense and consideration. Here all things go on well; the people are well provided and comfortable, and therefore the best possible understanding prevails.

The apprentices in my district *perform their work most willingly*, whenever the immediate manager is a man of sense and humanity. If this is not the

case, the effect is soon seen, and complaints begin to be made. Misunderstandings are usually confined to the smaller estates, particularly in the neighborhood of Bridgetown, where the lots are very small, and the apprentice population of a less rural description, and more or less also corrupted by daily intercourse with the town.

The working hours most generally in use in my district are as follows: On most estates, the apprentices work from six to nine, breakfast; from ten to one, dinner--rest; from three to six, work.

It is almost the constant practice of the apprentices, particularly the praedials or rural portion, to work in their own time for money wages, at the rate of a quarter dollar a day. They sometimes work also during those periods in their little gardens round their negro houses, and which they most generally enjoy without charge, or in the land they obtain in lieu of allowance, they seem ALWAYS well pleased to be fully employed at *free* labor, and work, when so employed, exceedingly well. I know a small estate, worked exclusively on this system. It is in excellent order, and the proprietor tells me his profits are greater than they would be under the apprenticeship. He is a sensible and correct man, and I therefore rely upon his information. During the hurry always attendant on the saving of the crop, the apprentices are generally hired in their own time upon their respective estates at the above rate, and which they seldom refuse. No hesitation generally occurs in this or any other matter, whenever the employer discharges his duty by them in a steady and considerate manner.

The attendance at church throughout my district is most respectable; but the accommodation, either in this respect or as regards schools, is by no means adequate to the wants of the people. The apprentices conduct themselves during divine service in the most correct manner, and it is most gratifying to perceive, that only very little exertion, indeed, would be required to render them excellent members of society. This fact is fully proved by the orderly situation of a few estates in my district, that have had the opportunity of receiving some moral and religious instruction. There are sixty-four estates in my district over twenty-five acres. Upon four of those plantations where the apprentices have been thus taught, there are a greater number of *married* couples (which may be considered a fair test) than upon the remaining sixty.

I scarcely ever have a complaint from these four estates, and they are generally reported to be in a most orderly state.

In the memory of the oldest inhabitant, the island has never produced a finer crop of canes than that now in the course of manufacture. All other crops are luxuriant, and the plantations in a high state of agricultural cleanliness. The season has been very favorable.

Under the head of general inquiry, I beg leave to offer a few remarks. I have now great pleasure in having it in my power to state, that a manifest change for the better has taken place *gradually* in my district within the last few months. Asperities seem to be giving way to calm discussion, and the laws are better understood and obeyed.

It is said in other colonies as well as here, that there has been, and still continues to be, a great want of natural affection among the negro parents for their children, and that great mortality among the free children has occurred in consequence. This opinion, I understand, has been lately expressed in confident terms by the legislature of St. Vincent's, which has been fully and satisfactorily contradicted by the reports of the special justices to the lieutenant-governor. The same assertion has been made by individuals to myself. As regards Barbadoes, I have spared no pains to discover whether such statements were facts, and I now am happy to say, that not a *single instance* of unnatural conduct on the part of the negro parents to their children has come to my knowledge--far, perhaps too far, the contrary is the case; *over indulgence* and *petting* them seems in my judgment to be the only matter the parents can be, with any justice, accused of. They exhibit their fondness in a thousand ways. Contrasting the actual conduct of the negro parents with the assertions of the planters, it is impossible not to infer that *some bitterness is felt by the latter on the score of their lost authority*. When this is the case, reaction is the natural consequence, and thus misunderstandings and complaints ensue. The like assertions are made with respect to the disinclination of the parents to send their children to school. This certainly does exist to a certain extent, particularly to schools where the under classes of whites are taught, who often treat the negro children in a most imperious and hostile manner. As some proof that no decided objection exists in the negro to educate his children, a vast number of the apprentices of my district send them to

school, and take pride in paying a bit a week each for them--a quarter dollar entrance and a quarter dollar for each vacation. Those schools are almost always conducted by a black man and his *married* wife. However, they are well attended, but are very few in number.

To show that the apprentices fully estimate the blessings of education, many females *hire their apprentice* children at a quarter dollar a week from their masters, for the express purpose of sending them to school. This proves the possibility of a *voluntary* system of education succeeding, provided it was preceded by full and satisfactory explanation to the parties concerned. I have also little doubt that labor to the extent I speak of, may be successfully introduced when the apprentices become assured that nothing but the ultimate welfare of themselves and children is intended; but so suspicious are they from habit, and, as I said before, so profoundly ignorant of what may in truth and sincerity be meant only for their benefit, that it will require great caution and delicacy on the occasion. Those suspicions have not been matured in the negroes mind without cause--the whole history of slavery proves it. Such suspicions are even *now* only relinquished under doubts and apprehensions; therefore, all new and material points, to be carried successfully with them, should be proposed to them upon the most liberal and open grounds.

J.B. COLTHURST, *Special Justice Peace, District A, Rural Division.*

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General return of the imports and exports of the island of Barbadoes, during a series of years--furnished by the Custom-house officer at Bridgetown.

	£.	s.	d.
1832	481,610	6	3
1833	462,132	14	4
1834	449,169	12	4
1835	595,961	13	2

1836	622,128	19	11
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IMPORTS OF LUMBER.

	Feet.	Shingles.
1833	5,290,086	5,598,958
1834	5,708,494	5,506,646
1835	5,794,596	4,289,025
1836	7,196,189	7,037,462

IMPORTS OF PROVISIONS.

Flour.		Corn Meal.		
Y'rs.	bbls.	1/2 bbls.	bush.	bbls.
1833	21,535	397	629	265
1834	34,191	865	1675	1580
1835	32,393	828	160	809
1836	41,975	433	823	1123

Bread and Biscuits.				Oats & Corn.			
Y'rs.	hds.	bbls.	1/2 bbls.	kegs.	bags.	bags.	qrs.
1833	49	2146	30	"	"	430	50
1834	401	8561	99	57	"	100	1025
1835	2024	10762	"	"	"	2913	3134
1836	4	4048	"	"	1058	8168	3119

IMPORTS OF CATTLE, ETC.

	Cattle.	Horses.	Mules.
1833	649	462	65
1834	549	728	24
1835	569	1047	43
1836	1013	1345	104

RETURN OF EXPORTS--SUGAR.

	hhds.	trcs.	bbls.
1832	18,804	1278	838
1833	27,015	1505	651
1834	27,593	1464	1083
1835	24,309	1417	938
1836	25,060	1796	804

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VALUATIONS OF APPRENTICES IN JAMAICA.

"From the 1st of August, 1834, to 31st of May, 1836, 998 apprentices purchased their freedom by valuation, and paid £33,998. From 31st May, 1836, to 1st November, in the same year, 582 apprentices purchased themselves, and paid £18,217--making, in all, £52,216--a prodigious sum to be furnished by the negroes in two years. From the above statement it appears that the desire to be free is daily becoming more general and more intense, and that the price of liberty remains the same, although the term of apprenticeship is decreasing. The amount paid by the apprentices is a proof of the extent of the exertions and sacrifices they are willing to make for freedom, which can scarcely be appreciated by those who are unacquainted with the disadvantages of their previous condition. The negroes frequently raise the money by loans to purchase their freedom, and they are scrupulous in repaying money lent them for that purpose."

The above is extracted from the "West Indies in 1837," an English work by Messrs. Sturge and Harvey, page 86, Appendix.

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We insert the following tabular view of the crops in Jamaica for a series of years preceding 1837.--As the table and "Remarks" appended were first published in the St. Jago Gazette, a decided "pro-slavery" paper, we insert, in connection with them, the remarks of the Jamaica Watchman, published at Kingston, and an article on the present condition of slavery, from the Telegraph, published at Spanishtown, the seat of the colonial government.

A GENERAL RETURN OF EXPORTS *From the island of Jamaica, for 53 years, ending 31st December, 1836--copied from the Journals of the House.*

[illegible]

1772	69,451	9,936	270				
1773	72,996	11,453	849				
1774	69,579	9,250	278				
1775	75,291	9,090	425				
1776							
1788	83,036	9,256	1,063				
1789	84,167	10,078	1,077				
1790	84,741	9,284	1,599				
1791	85,447	8,037	1,718				
1792							
1793	77,575	6,722	642	34,755	879		
	62	8,605					
1794	89,532	11,158	1,224	39,843	1,570		
	121	10,305					
1795	88,851	9,537	1,225	37,684	1,475		
	426	14,861					
1796	89,219	10,700	858	40,810	1,364		
	690	20,275					

1797		78,373		9,963		753		28,014		1,463			
		259		29,098									
1798		87,896		11,725		1,163		40,823		2,234			
		119		18,454									
1799		101,457		13,538		1,321		37,022		1,981			
		221		10,358									
1800		96,347		13,549		1,631		37,166		1,350			
		444		3,586									
1801		123,251		18,704		2,692		48,879		1,514			
		12		239									
1802		129,544		15,403		2,403		45,632		2,073		473	
		205		366		23		2,079					
1803		107,387		11,825		1,797		43,298		1,416			
		461		51		3,287							
1804		103,352		12,802		2,207		42,207		913			
		429		1,094		1,854							
1805		137,906		17,977		3,689		53,211		1,328		133	
		167		471		315		2,128					
1806		133,996		18,237		3,579		58,191		1,178			
		499		485		1,818							
1807		123,175		17,344		3,716		51,812		1,998			
		699		512		1,411							
1808		121,444		15,836		2,625		52,409		2,196			
		379		436		1,470							
1809		104,457		14,596		3,534		43,492		2,717			
		230		2,321		572							
1810		108,703		4,560		3,719		42,353		1,964			
		293		520		1,881							
1811		127,751		15,235		3,046		54,093		2,011			
		446		1,110		2,072							
1812		105,283		11,357		2,558		43,346		1,531			
		151		804		1,235							
1813		97,548		10,029		2,304		44,618		1,345		382	
		874		208		816		1,428					
1814		101,846		10,485		2,575		43,486		1,551			
		202		1,146		145		884		1,668			
1815		118,767		12,224		2,817		52,996		1,465			

574|1,398|242|1,493| 1,667|
1816| 93,881| 9,332|2,236|35,736| 769| 281|
903|166|2,354| 1,118|
1817|116,012|11,094|2,868|47,949|1,094| 203|
916|254|3,361| 1,195|
1818|113,818|11,388|2,786|50,195|1,108| 121|
191|407|2,526| 1,067|
1819|108,305|11,450|3,244|43,946|1,695|
602|1,558|253|1,714| 718|
1820|115,065|11,322|2,474|45,361|1,783| 106|
460|252|1,159| 316|
1821|111,512|11,703|1,972|46,802|1,793| 153|
534|167| 984| 274|
1822| 88,551| 8,705|1,292|28,728|1,124| 9|
442|144| 891| 72|
1823| 94,905| 9,179|1,947|35,242|1,935| 20|
118|614|1,041| 60|
1824| 99,225| 9,651|2,791|37,121|3,261| 5|
64|910|2,230| 52|
1825| 73,813| 7,380|2,858|27,630|2,077| 101|
215|894|3,947| 348|
1826| 99,978| 9,514|3,126|35,610|3,098|1,852|
|549|5,724| 517|
1827| 82,096| 7,435|2,770|31,840|2,672|1,573|
|204|4,871| 240|
1828| 94,912| 9,428|3,024|36,585|2,793|1,013|
|189|5,382| 279|
1829| 91,364| 9,193|3,204|36,285|2,009| 563| |
66|4,101| 168|
1830| 93,882| 8,739|3,645|33,355|2,657|1,367|
|154|3,494| 15|
1831| 88,409| 9,053|3,492|34,743|2,846| 982|
|230|3,224| 22|
1832| 91,453| 9,987|4,600|32,060|2,570|1,362|
|799|4,702| 38|
1833| 78,375| 9,325|4,074|33,215|3,034| 977|
|755|4,818| 23|

1834	77,801	9,860	3,055	30,495	2,588	1,288
	486	5,925	116			
1835	71,017	8,840	8,455	26,433	1,820	747
	300	3,985	486			
1836	61,644	7,707	2,497	19,938	874	646
	182	5,224	69			

. d e t r o p x E r a e Y	PIMENTO		COFFEE		REMARKS
	s	s	s		
	k	g	n		
	s	a	u		
	a	a	o		
	C	B	P		

1772			841,558	
1773			779,303	
1774			739,039	
1775			493,981	
1776				
1788			1,035,368	
1789			1,493,282	
1790			1,783,740	
1791			2,299,874	August--Destruction of
1792				Santo Domingo.
1793	420	9,108	3,983,576	
1794	554	22,153	4,911,549	
1795	957	20,451	6,318,812	

1796	136	9,820	7,203,539	
1797	328	2,935	7,869,133	
1798	1,181	8,961	7,894,306	
1799	1,766	28,273	11,745,425	Bourbon cane introduced.
1800	610	12,759	11,116,474	
1801	648	14,084	13,401,468	
1802	591	7,793	17,961,923	
1803	867	14,875	15,866,291	
1804	1,417	19,572	22,063,980	
1805	288	7,157	21,137,393	Largest sugar crop.
1806	1,094	19,534	29,298,036	
1807	525	19,224	26,761,188	March 25th, abolition of
1808	225	6,529	29,528,273	African slave trade.
1809	21,022	1,177	25,586,668	
1810	4,276	21,163	25,885,285	
1811	638	22,074	17,460,068	
1812	598	7,778	18,481,986	
1813	1,124	14,361	24,623,572	Storm in October, 1812
1814	394	10,711	34,045,585	Largest coffee crop.
1815	844	27,386	27,362,742	
1816	851	28,047	17,289,393	Storm in October, 1815
1817	946	15,817	14,793,706	
1818	941	21,071	25,329,456	
1819	882	24,500	14,091,983	
1820	673	12,880	22,127,444	
1821	1,224	24,827	16,819,761	
1822	699	18,672	19,773,912	Extreme drought.
1823	1,894	21,481	20,326,445	Mr. Canning's resolutions
1824	599	33,306	27,667,239	relative to slavery.

1825	537	20,979	21,254,656	
1826	522	16,433	20,352,886	Severe drought in
1824,				the previous year.
1827	3,236	26,691	25,741,520	
1828	4,003	25,352	22,216,780	
1829	3,733	48,933	22,234,640	
1830	5,609	37,925	22,256,950	
1831	2,844	22,170	14,055,350	
1832	3,736	27,936	19,815,010	
1833	7,741	58,581	9,866,060	Emancipation act
				passed.
1834	496	29,301	17,725,731	Seasons favorable.
1835	1,115	59,033	10,593,018	do.
1836	227	46,779	13,446,053	do.

The following are the remarks of the editor of the Jamaica Watchman, on the foregoing, in his paper of April 8, 1837:--

A general return of exports from the island for fifty-three years, ending the 31st December last, and purporting to be extracted from the journals of the assembly, has been published, and as usual, the decrease in the crops of the respective years has been attributed to the resolutions passed by the British House of Commons in 1823, and the abolition of slavery in 1833. It is remarkable that in preparing this table, a manifest disposition is evinced to account for the falling off of the crops in certain years anterior, and subsequent to the passing of Mr. Canning's memorable resolution, whilst opposite to the years 1834 and 1835, is written "seasons favorable." In 1813, the sugar crop fell off 8,000 hhds. compared with the previous year, and we are told in reference to this circumstance, that there was a storm in October, 1812. This remark is evidently made to account for the decrease, and perhaps the storm at the close of the previous year was the cause of it. But it is astonishing, and the circumstance is worthy of notice, that whilst the sugar crop fell off nearly 8,000 hhds. the coffee crop increased nearly six millions of pounds. We should have supposed that the coffee trees would have suffered more from the effects of a storm, than the canes. However, the effect was as we have stated it, whatever might have been the cause. In 1814, the largest coffee crop was made. Again, in 1816, there was a decrease in the sugar crop compared with the year immediately preceding

it of nearly 25,000 hhds. And here we have the storm of October, 1815, assigned as a reason. The coffee crop in this instance also fell off nearly ten millions of pounds. In 1822, the sugar crop was reduced 23,000 hhds., and the coffee crop increased three millions of pounds. The reason now assigned is an "extreme drought." The celebrated resolutions relative to slavery now appear to begin to exercise their baneful influence on the *seasons* and the *soil* of our island. In the year in which they were passed, 1823, 94,900 hogsheads of sugar were made, and twenty millions of pounds of coffee gathered. 1824 came, and the crop, instead of being reduced, was increased from nearly 95,000 hogsheads to upwards of 99,000 hogsheads. The coffee crop was also greater by seven millions of pounds. In 1825, they fall off to 73,860 hogsheads and twenty-one millions. In 1826, the sugar crop rather exceeded that of 1824, but the coffee crop was seven millions less. In 1827, from causes not known to us, for none were assigned, there was a difference of 16,000 hhds. of sugar, and an increase of five millions of pounds of coffee. 1828, 29, and 30, were pretty nearly alike in sugar and coffee crops, and about equal to 1823. The crops of 1831 fell off from 93 to 88,000 hogsheads of sugar, and from 22 to 14 millions of pounds of coffee. No reason is assigned for this reduction. It was during the continuance of the driving system, and therefore no blame can attach to the managers. In 1832, the crop rose to 91,000 hogsheads of sugar, and nearly twenty millions of pounds of coffee. But 1833 comes, and, with it, fresh troubles for the planters. In that ill-fated year, there was a decrease of 13,000 hogsheads sugar, and of ten millions of pounds of coffee. Its sugar crop was the smallest made, with the exception of that of 1825, since 1793, and its coffee crop since that of 1798. But if this determination be alarming, what must be that of the succeeding years. Can we be blamed, if, in a strain truly lachrymal, we allude to the deductions which have annually been made from the miserable return which 1833 gave to the unfortunate proprietors of estates? What boots it to tell us that we have fingered thousands of pounds sterling, in the shape of compensation: and what consolation is it to know, that a hogshead of sugar will now bring thirty pounds, which, a short time ago, was only worth twelve. Let any *unprejudiced* individual look at the return now before us, and say whether our prospects are not deplorably dull and obscure. If we take the four years immediately preceding the passing of Mr. Canning's resolutions, say 1819, 20, 21, and 22; we will find the average to be 105,858 hogsheads, and if from this we even deduct one

fourth for the time now lost, there will be an average crop of 79,394 hhds., being 7,185 hogsheads mere than the average of 1833, 34, 35, and 36; and no one will deny that this falling off of one tenth, (supposing that the hogsheads made during the last four years are *not larger* than those of 1819 to 1822) is *nearly*, if not *quite equal* to the increase of price, from twelve to thirty pounds, or one hundred and fifty per cent.

It is true some persons may be disposed to take the four years subsequent to the passing of Mr. Canning's resolutions, say 1823, 4, 5, and 6, and compare them with the four years ending 31st December last. Should this be done, it will be found that the average crop of the previous four years is 91,980 hhds., and if from it is deducted one fourth, there will remain 68,985 hhds., whilst the average of the other four years is 72,200 hhds. Such a mode of comparison must, however, be obviously incorrect; because, in the first place, Mr. Canning's resolutions had reduced the crops of those years considerably below the average of the years immediately preceding them, and next, because it would show the advantage to be on the side of freedom in the ratio of seventy-two to sixty-nine, which cannot be correct. Besides, in 1824, there was a severe drought, whereas in 1834 and 35 the seasons are reported as being favorable. Again, it is necessary, in instituting such an inquiry, to go back more than fourteen years; nor is it a valid objection to this to say, that even during that period a number of estates have been thrown out of cultivation, in consequence of being worn out and unprofitable. "Deplorable," however, as is the "falling off in the yearly amounts of our staple productions, which have decreased," gentle reader, according to the despatch, "in an accelerated ratio within the last few years, till in the year 1836, when they do not average one half the returns of former years preceding that of 1823, the year that Mr. Canning's resolutions for the ultimate abolition of slavery in the British colonies passed the House of Commons," still it is a matter of sincere gratification to know, that the sugar planters are better off now than they have been for the last fourteen or fifteen years. With the compensation money a great many of them have been enabled to pay off their English debts, and the remainder very considerably to reduce them, whilst the reduction in the quantity of sugar produced, has occasioned such a rise in the price of that article as will place the former in easy circumstances, and enable the latter entirely to free themselves from the trammels of English mortgagees, and the tender

mercies of English mortgagees before the 1st August, 1840, arrives. And ought these parties not to be thankful? Unquestionably they ought. Ingratitude, we are told, is as the sin of witchcraft, and although the table of exports exhibits our fair island as hastening to a state of ruin, and the despatch tells us that "by the united influence of mock philanthropy, religious cant, and humbug," a reformed parliament was *forced* "to precipitate the *slavery spoliation* act under the specious pretext of promoting the industry and improving the condition of the manumitted slaves," still we maintain, and the reasonable will agree with us, that we are much better off now than we have been for a long time, and that Jamaica's brightest and happiest days have not yet dawned. Let the croakers remember the remarkable words of the Tory Lord, Belmore, the planter's friend, and be silent--"The resources of this fine island will never be fully developed until slavery ceases." The happiness and prosperity of the inhabitants of Jamaica are not contingent, nor need they be, upon the number of hogsheads of sugar annually exported from her shores.

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To the foregoing we add the remarks of the editor of the "Spanishtown Telegraph," on the present state of the colony, made in his paper of May 9, 1837:--

"When it was understood that the island of Jamaica and the other British West Indian colonies were to undergo the blessed transition from slavery to freedom, it was the hourly cry of the pro-slavery party and press, that the ruin of Jamaica would, as a natural consequence, follow liberty! Commerce, said they, will cease; hordes of barbarians will come upon us and drive us from our own properties; agriculture will be completely paralyzed; and Jamaica, in the space of a few short months, will be seen buried in ashes--irretrievably ruined. Such were the awful predictions of an unjust, illiberal faction!! Such the first fruits that were to follow the incomparable blessings of liberty! The staple productions of the island, it was vainly surmised, could never be cultivated without the name of slavery; rebellions, massacres,

starvation, rapine and bloodshed, danced through the columns of the liberty-hating papers, in mazes of metaphorical confusion. In short, the name of freedom was, according to their assertions, directly calculated to overthrow our beautiful island, and involve it in one mass of ruin, unequalled in the annals of history!! But what has been the result? All their fearful forebodings and horrible predictions have been entirely disproved, and instead of liberty proving a curse, she has, on the contrary, unfolded her banners, and, ere long, is likely to reign triumphant in our land. *Banks, steam companies, railroads, charity schools, etc.*, seem all to have remained dormant until the time arrived when Jamaica was to be *enveloped in smoke*! No man thought of hazarding his capital in an extensive *banking establishment* until *Jamaica's ruin*, by the introduction of *freedom*, *had been accomplished*!! No person was found possessed of sufficient energy to speak of navigation companies in Jamaica's brightest days of slavery; but now that ruin stares every one in the face--now that we have no longer the power to treat out peasantry as we please, they have taken it into their heads to establish so excellent an undertaking. Railroads were not dreamt of until *darling* slavery had (*in a great measure*) departed, and now, when we thought of throwing up our estates, and flying from the *dangers of emancipation*, the best projects are being set on foot, and what is *worst*, are likely to *succeed*! This is the way that our Jamaica folks, no doubt, reason with themselves. But the reasons for the delay which have taken place in the establishment of all these valuable undertakings, are too evident to require elucidation. We behold the *Despatch* and *Chronicle*, asserting the ruin of our island; the overthrow of all order and society; and with the knowledge of all this, they speak of the profits likely to result from steam navigation, banking establishments, and railroads! What in the name of conscience, can be the use of steam-vessels when Jamaica's ruin is so fast approaching? What are the planters and merchants to ship in steamers when the apprentices will not work, and there is nothing doing? How is the bank expected to advance money to the planters, when their total destruction has been accomplished by the abolition of slavery? What, in the name of reason, can be the use of railroads, when commerce and agriculture have been nipped in the bud, by that *baneful weed, Freedom*? Let the unjust panderers of discord, the haters of

liberty, answer. Let them consider what has all this time retarded the development of Jamaica's resources, and they will find that it was *slavery*; yes, it was its very name which prevented the idea of undertakings such as are being brought about. Had it not been for the introduction of freedom in our land; had the cruel monster, Slavery, not partially disappeared, when would we have seen banks, steamers, or railroads? No man thought of hazarding his capital in the days of slavery, but now that a new era has burst upon us, a complete change has taken possession of the hearts of all just men, and they think of improving the blessing of freedom by the introduction of other things which must ever prove beneficial to the country.

The vast improvements that are every day being effected in this island, and throughout the other colonies, stamp the assertions of the pro-slavery party as the vilest falsehoods. They glory in the introduction of banks, steam-vessels, and railroads; with the knowledge (as they would have us believe) that the island is fast verging into destruction. They speak of the utility and success of railroads, when, according to their showing, there is no produce to be sent to market, when agriculture has been paralyzed, and Jamaica swept to destruction."

* * * * *

The following copious extracts from a speech of Lord Brougham, on the workings of the apprenticeship, and on the immediate emancipation substituted therefor in Antigua and the *Bermudas*, are specially commended to the notice of the reader. The speech was delivered in the House of Lords, Feb. 20, 1838. We take it from the published report of the speech in the London Times, of Feb. 25:--

I now must approach that subject which has some time excited almost universal anxiety. Allow me, however, first to remind your lordships--because that goes to the root of the evil--allow me first to remind you of the anxiety that existed previous to the Emancipation Act which was passed in January, 1833, coming into operation in August, 1834. My

lords, there was much to apprehend from the character of the masters of the slaves. I know the nature of man. * * * * I know that he who has abused power clings to it with a yet more convulsive grasp. I know his revenge against those who have been rescued from his tyrannous fangs; I know that he never forgives those whom he has injured, whether white or black. I have never yet met with an unforgiving enemy, except in the person of one of whose injustice I had a right to complain. On the part of the slaves, my lords, I was not without anxiety; for I know the corrupt nature of the degrading system under which they groaned. * * * * It was, therefore, I confess, my lords, with some anxiety that I looked forward to the 1st of August, 1834; and I yielded, though reluctantly, to the plan of an intermediate state before what was called the full enjoyment of freedom--the transition condition of indentured apprenticeship.

The first of August arrived--that day so confidently and joyously anticipated by the poor slaves, and so sorely dreaded by their hard taskmasters--and if ever there was a picture interesting to look upon--if ever there was a passage in the history of a people redounding to their eternal honor--if ever there was a complete refutation of all the scandalous calumnies which had been heaped upon them for ages, as if in justification of the wrongs which we had done them--(Hear, hear)--that picture and that passage are to be found in the uniform and unvarying history of that people throughout the whole of the West India islands. Instead of the fires of rebellion, lit by a feeling of lawless revenge and resistance to oppression, the whole of those islands were, like an Arabian scene, illuminated by the light of contentment, joy, peace, and good-will towards all men. No civilized people, after gaining an unexpected victory, could have shown more delicacy and forbearance than was exhibited by the slaves at the great moral consummation which they had attained. There was not a look or a gesture which could gall the eyes of their masters. Not a sound escaped from negro lips which could wound the ears of the most feverish planter in the islands. All was joy, mutual congratulation, and hope.

This peaceful joy, this delicacy towards the feelings of others, was all that was to be seen, heard, or felt, on that occasion, throughout the

West India islands.

It was held that the day of emancipation would be one of riot and debauchery, and that even the lives of the planters would be endangered. So far from this proving the case, the whole of the negro population kept it as a most sacred festival, and in this light I am convinced it will ever be viewed.

In one island, where the bounty of nature seems to provoke the appetite to indulgence, and to scatter with a profuse hand all the means of excitement, I state the fact when I say not one drunken negro was found during the whole of the day. No less than 800,000 slaves were liberated in that one day, and their peaceful festivity was disturbed only on one estate, in one parish, by an irregularity which three or four persons sufficed to put down.

Well, my lords, baffled in their expectations that the first of August would prove a day of disturbance--baffled also in the expectation that no voluntary labor would be done--we were then told by the "practical men," to look forward to a later period. We have done so, and what have we seen? Why, that from the time voluntary labor began, there was no want of men to work for hire, and that there was no difficulty in getting those who as apprentices had to give the planters certain hours of work, to extend, upon emergency, their period of labor, by hiring out their services for wages to strangers. I have the authority of my noble friend behind me, (the Marquis of Sligo,) who very particularly, inquired into the matter, when I state that on nine estates out of ten there was no difficulty in obtaining as much work as the owners had occasion for, on the payment of wages. How does all this contrast with the predictions of the "practical men?" "Oh," said they, in 1833, "it is idle talking; the cart-whip must be used--without that stimulant no negro will work--the nature of the negro is idle and indolent, and without the thought of the cartwhip is before his eyes he falls asleep--put the cartwhip aside and no labor will be done." Has this proved the case? No, my lords, it has not; and while every abundance of voluntary labor has been found, in no one instance has the stimulus of the cartwhip been found wanting. The apprentices work

well without the whip, and wages have been found quite as good a stimulus as the scourge even to negro industry. "Oh, but" it is said, "this may do in cotton planting and cotton picking, and indigo making; but the cane will cease to grow, the operation of hoeing will be known no more, boiling will cease to be practised, and sugar-making will terminate entirely." Many, I know, were appalled by these reasonings, and the hopes of many were dissipated by these confident predictions of these so-deemed experienced men. But how stands the case now? My lords, let these experienced men, come forth with their experience. I will plant mine against it, and you will find he will talk no more of his experience when I tell him--tell him, too, without fear of contradiction--that during the year which followed the first of August, 1834, twice as much sugar per hour, and of a better quality as compared with the preceding years, was stored throughout the sugar districts; and that one man, a large planter, has expressly avowed, that with twenty freemen he could do more work than with a hundred slaves or fifty indentured apprentices. (Hear, hear.) But Antigua!--what has happened there? There has not been even the system of indentured apprentices. In Antigua and the *Bermudas*, as would have been the case at Montserrat if the upper house had not thrown out the bill which was prepared by the planters themselves, there had been no preparatory step. In Antigua and the *Bermudas*, since the first of August, 1834, not a slave or indentured apprentice was to be found. Well, had idleness reigned there--had indolence supplanted work--had there been any deficiency of crop? No. On the contrary, there had been an increase, and not a diminution of crop. (Hear.) But, then, it was said that quiet could not be expected after slavery in its most complete and abject form had so long reigned paramount, and that any sudden emancipation must endanger the peace of the islands. The experience of the first of August at once scattered to the winds that most fallacious prophecy. Then it was said, only wait till Christmas, for that is a period when, by all who have any practical knowledge of the negro character, a rebellion on their part is most to be apprehended. We did wait for this dreaded Christmas; and what was the result? I will go for it to Antigua, for it is the strongest case, there being there no indentured apprentices--no preparatory state--no transition--the chains being at once knocked off, and the negroes made at once free. For the first time within the last

thirty years, at the Christmas of the year 1834, martial law was not proclaimed in the island of Antigua. You talk of facts--here is one. You talk of experience--here it is. And with these facts and this experience before us, I call on those *soi-disant* men of experience--those men who scoffed at us--who laughed to scorn at what they called our visionary, theoretical schemes--schemes that never could be carried into effect without rebellion and the loss of the colonies--I say, my lords, I call on these experienced men to come forward, and, if they can, deny one single iota of the statement I am now making. Let those who thought that with the use of those phrases, "a planter of Jamaica" "the West India interest," "residence in Jamaica and its experience," they could make our balance kick the beam--let them, I say, hear what I tell, for it is but the fact--that when the chains were knocked off there was not a single breach of the peace committed either on the day itself, or on the Christmas festival which followed.

Well, my lords, beaten from these two positions, where did the experienced men retreat to under what flimsy pretext did they next undertake to disparage the poor negro race? Had I not seen it in print, and been otherwise informed of the fact, I could not have believed it possible that from any reasonable man any such absurdity could issue. They actually held out this last fear, which, like the others, was fated to be dissipated by the fact. "Wait only," said they, "till the anniversary of the first of August, and then you will see what the negro character is, and how little these indentured apprentices are fit to be entrusted with freedom." Was there ever such an absurdity uttered, as if my lords, the man who could meet with firm tranquillity and peaceful thankfulness the event itself, was likely to be raised to rebellion and rioting by the recollection of it a year afterwards. My lords, in considering this matter, I ask you, then, to be guided by your own experience, and nothing else; profit by it, my lords, and turn it to your own account; for it, according to that book which all of us must revere, teaches even the most foolish of a foolish race. I do not ask you to adopt as your own the experience of others; you have as much as you can desire of your own, and by no other test do I wish or desire to be judged. But I think my task may be said to be done. I think I have proved my case, for I have shown that the negro can work without the stimulant of the whip;

I have shown that he can labor for hire without any other motive than that of industry to inspire him. I have demonstrated that all over the West Indies, even when fatigued with working the allotted hours for the profit of his master, he can work again for wages for him who chooses to hire him and has wherewithal to pay him; I have also most distinctly shown that the experience of Antigua and the *Bermudas* is demonstrative to show that without any state of preparation, without any indenture of apprenticeship at all, he is fit to be intrusted with his freedom, and will work voluntarily as a free laborer for hire. But I have also demonstrated from the same experience, and by reference to the same state of facts, that a more quiet, inoffensive, peaceable, innocent people, is not to be found on the face of this earth than the negro--not in their own unhappy country, but after they have been removed from it and enslaved in your Christian land, made the victim of the barbarizing demon of civilized powers, and has all this character, if it were possible to corrupt it, and his feelings, if it were possible to pervert them, attempted to be corrupted and perverted by Christian and civilized men, and that in this state, with all incentives to misdemeanor poured around him, and all the temptation to misconduct which the arts and artifices and examples of civilized man can give hovering over him--that after this transition is made from slavery to apprenticeship, and from slavery to absolute freedom, a negro's spirit has been found to rival the unbroken tranquillity of the Caribbean Seas. (Cheers.) This was not the state of things we expected, my lords; and in proof that it was not so, I have but to refer you to the statute book itself. On what ground did you enact the intermediate state of indenture apprenticeship, and on what arguments did you justify it? You felt and acknowledged that the negro had a right to be free, and that you had no right to detain him in bondage. Every one admitted this, but in the prevailing ignorance of their character it was apprehended that they could not be made free at once, and that time was requisite to train the negro to receive the boon it was intended bestowing upon him.

This was the delusion which prevailed, and which was stated in the preamble of the statute--the same delusion which had made the men on one side state and the other to believe that it was necessary to pay the

slave-owners for the loss it was supposed they would sustain. But it was found to be a baseless fear, and the only result of the phantom so conjured up was a payment of twenty millions to the conjurors. (Hear, and a laugh.) Now, I maintain that had we known what we now know of the character of the negroes, neither would this compensation have been given to the slave-owners, nor we have been guilty of proposing to keep the negro in slavery five years, after we were decided that he had a right to his freedom. The noble and learned lord here proceeded to contend that up to the present time the slave-owners, so far from being sufferers, had been gainers by the abolition of slavery and the enactment of the system of apprenticeship, and that consequently up to the present moment nothing had occurred to entitle them to a claim upon the compensation allotted by parliament. The slave-owners might be said to have pocketed the seven millions without having the least claim to them, and therefore, in considering the proposition he was about to make, parliament should bear in mind that the slave proprietors were, if anything, the debtors to the nation. The money had, in fact, been paid to them by mistake, and, were the transaction one between man and man, an action for its recovery might lie. But the slave-owners alleged that if the apprenticeship were now done away there would be a loss, and that to meet that loss they had a right to the money. For argument's sake he would suppose this to be true, and that there would be loss; but would it not be fair that the money should be lodged in the hands of a third party, with authority to pay back at the expiration of the two years whatever rateable sum the master could prove himself to have lost? His firm belief was, that no loss could arise; but, desirous to meet the planter at every point, he should have no objection to make terms with him. Let him, then, pay the money into court, as it were, and at the end of two years he should be fully indemnified for any loss he might prove. He called upon their lordships to look to Antigua and the *Bermudas* for proof that the free negro worked well, and that no loss was occasioned to the planters or their property by the granting of emancipation. But it was said that there was a difference between the cases of Antigua and other colonies, such as Jamaica, and it was urged that while the negroes of the former, from the smallness and barrenness of the place, would be forced into work, that in the latter they would run away, and take refuge in the

woods. Now, he asked, why should the negro run away from his work, on being made free, more than during the continuance of his apprenticeship? Why, again, should it be supposed that on the 1st of August, 1840, the emancipated negroes should have less inclination to betake themselves to the woods than in 1838? If there was a risk of the slaves running to the woods in 1838, that risk would be increased and not diminished during the intermediate period up to 1840, by the treatment they were receiving from their masters, and the deferring of their hopes.

My lords, (continued the noble lord,) I have now to say a few words upon the treatment which the slaves have received during the past three years of their apprenticeship, and which, it is alleged, during the next two years is to make them fitted for absolute emancipation. My lords, I am prepared to show that in most respects the treatment the slaves have received since 1834 is no better, and in many others more unjust and worse, than it ever was in the time of absolute slavery. It is true that the use of the cartwhip as a stimulus to labor has been abolished. This, I admit, is a great and most satisfactory improvement; but, in every other particular, the state of the slave, I am prepared to show, is not improved, and, in many respects, it is materially worse. First, with regard to the article of food, I will compare the Jamaica prison allowance with that allotted to the apprenticed negroes in other colonies. In the Jamaica prison the allowance of rice is 14 pints a week to each person. I have no return of the allowance to the indentured apprentice in Jamaica, but I believe it is little over this; but in Barbadoes and the Leeward Islands, it is much under. In Barbadoes, instead of receiving the Jamaica prison allowance of 14 pints a week, the apprenticed negro received but 10 pints: while in the Leeward Islands he had but 8 pints. In the crown colonies, before 1834, the slave received 21 pints of rice, now the apprentice gets but 10; so that in the material article, food, no improvement in the condition of the negro was observable. Then, with regard to time, it is obviously of the utmost importance that the apprentice should have at least two holidays and a half a week--the Sabbath for religious worship and instruction, the Saturday to attend the markets, and half of Friday to work in his own garden. The act of emancipation specified 45 hours a

week as the period the apprentice was to work for his master, but the master so contrived matters as in most instances to make the 45 hours the law allotted him run into the apprentice's half of Friday, and even in some cases into the Saturday. The planter invariably counted the time from the moment that the slave commenced his work; and as it often occurs that his residence was on the border of the estate, he may have to walk five or six miles to get to the place he has to work. This was a point which he was sure their lordships would agree with him in thinking required alteration.

The next topic to which I shall advert relates to the administration of justice; and this large and important subject I cannot pass over without a word to remind your lordships how little safe it is, how little deserving the name of just, or any thing like just, that where you have two classes you should separate them into conflicting parties, until they became so exasperated in their resentment as scarcely to regard each other as brethren of the same species; and that you should place all the administration of justice in the hands of one dominant class, whose principles, whose passions whose interests, are all likely to be preferred by the judges when they presume to sit where you have placed them on the judgment seat. The chief and puisne judges are raised to their situations from amongst the class which includes the white men and planters. But, worse than that, the jurors are taken from the same privileged body: jurors, who are to assess civil damages in actions for injuries done to the negroes--jurors, who are to try bills of indictment against the whites for the maltreatment of the blacks--jurors who are to convict or acquit on those bills--jurors who are to try the slaves themselves--nay, magistrates, jailors, turnkeys, the whole apparatus of justice, both administrative and executive, exclusively in the hands of one race! What is the consequence? Why, it is proverbial that no bills are found for the blacks. (Hear, hear.) Six bills of indictment were preferred, some for murder and some for bad manslaughter, and at one assizes every one of these six indictments was thrown out. Assizes after assizes the same thing happened, until at length wagers were held that no such bill would be found, and no one was found to accept them. Well was it for them that they declined, for every one of the bills preferred was ignored. Now, observe that in

proceedings, as your lordships know; before grand jurors, not a tittle of evidence is heard for the prisoners; every witness is in favor of the indictment, or finding of the bill; but in all these instances the bills were flung out on the examination of evidence solely against the prisoner. Even in the worst cases of murder, as certainly and plainly committed as the sun shines at noon day, monstrous to all, the bills were thrown out when half the witnesses for the prosecution remained to be examined. (Hear, hear.) Some individuals swore against the prisoners, and though others tendered their evidence, the jury refused to hear them. (Hear, hear.) Besides, the punishments inflicted are monstrous; thirty-nine lashes are inflicted for the vague, indefinite--because incapable to be defined--offence of insolence. Thirty-nine lashes for the grave and the more definite, I admit, offence of an attempt to carry a small knife. Three months imprisonment, or fifty lashes for the equally grave offence of cutting off the shoot of a cane plant! There seems to have prevailed at all times amongst the governors of our colonies a feeling, of which, I grieve to say, the governors at home have ever and anon largely partaken, that there is something in the nature of a slave--something in the habits of the African negro--something in the disposition of the unfortunate hapless victims of our own crimes and cruelties, which makes what is mercy and justice to other men cruelty to society and injustice to the law in the case of the negro, and which condemns offences slightly visited, if visited at all, with punishment, when committed by other men, to the sentence that for his obdurate nature none can be too severe. (Hear, hear.) As if we had any one to blame but ourselves--as if we had any right to visit on him that character if it were obdurate, those habits if they were insubordinate, that dishonest disposition if it did corrupt his character, all of which I deny, and which experience proves to be contrary to the fact and truth; but even if these statements were all truth instead of being foully slanderous and absolutely false, we, of all men, have ourselves to blame, ourselves to tax, and ourselves to punish, at least for the self abasement, for we have been the very causes of corrupting the negro character. (Cheers.)

If some capricious despot, in his career of ordinary tyranny, were to tax his imagination to produce something more monstrous and

unnatural than himself, and were to place a dove amongst vultures, or engraft a thorn on the olive tree, much as we should marvel at the caprice, we should be still more astounded at the expectation, which exceeds even a tyrant's proverbial unreasonableness, that he should gather grapes from the thorn, or that the dove should be habituated to a thirst for blood. Yet that is the caprice, that is the unreasonable, the foul, the gross, the monstrous, the outrageous, incredible injustice of which we are hourly guilty towards the whole unhappy race of negroes. (Cheers.) My lords, we fill up the incasare of injustice by severely executing laws badly conceived in a still more atrocious and cruel spirit. The whole punishments smell of blood. (Hear, Hear.) If the treadmill stop in consequence of the languid limbs and exhausted frames of the victims, within a minute the lash resounds through the building--if the stones which they are set to break be not broken by limbs scarred, and marred, and whaled, they are summoned by the crack of the whip to their toilsome task! I myself have heard within the last three hours, from a person, who was an eye-witness of the appalling and disgusting fact, that a leper was introduced amongst the negroes; and in passing let me remark, that in private houses or hospitals no more care has been taken to separate those who are stricken with infectious diseases from the sound portion, any more than to furnish food to those in prison who are compelled, from the unheard-of, the paltry, the miserable disposition to treat with cruelty the victims of a prison, to go out and gather their own food,--a thing which I believe even the tyrant of Siberia does not commit. Yet in that prison, where blood flows profusely, and the limbs of those human beings are subjected to perpetual torture, the frightful, the nauseous, the disgusting--except that all other feelings are lost in pity towards the victim and indignation against the oppressor--sight was presented of a leper, scarred from the eruptions of disease on his legs and previous mistreatment, whaled again and again, and his blood again made to flow from the jailer's lash. I have told your lordships how bills have been thrown out for murdering the negroes. But a man had a bill presented for this offence: a petition was preferred, and by a white man. Yes, a white man who had dared, under feelings of excited indignation, to complain to the regularly constituted authorities, instead of receiving for his gallant conduct the thanks of the

community, had a bill found which was presented against him as a nuisance. I have, within the last two hours, amid the new mass of papers laid before your lordships within the last forty-eight hours, culled a sample which, I believe, represents the whole odious mass.

Eleven females have been flogged, starved, lashed, attached to the treadmill, and compelled to work until nature could no longer endure their sufferings. At the moment when the wretched victims were about to fall off--when they could no longer bring down the mechanism and continue the movement, they were suspended by their arms, and at each revolution of the wheel received new wounds on their members, until, in the language of that law so grossly outraged in their persons, they "languished and died." Ask you if a cringe of this murderous nature went unvisited, and if no inquiry was made respecting its circumstances? The forms of justice were observed; the handmaid was present, but the sacred mistress was far away. A coroner's inquest was called; for the laws decreed that no such injuries should take place without having an inquiry instituted. Eleven inquisitions were held, eleven inquiries were made, eleven verdicts were returned. For murder? Manslaughter? Misconduct? No; but that "they died by the visitation of God." A lie--a perjury--a blasphemy! The visitation of God! Yes, for of the visitations of the Divine being by which the inscrutable purposes of his will are mysteriously worked out, one of the most mysterious is the power which, from time to time, is allowed by him to be exercised by the wicked for the torment of the innocent. (Cheers.) But of those visitations prescribed by Divine Providence there is one yet more inscrutable, for which it is still more difficult to affix a reason, and that is, when heaven rolls down on this earth the judgment, not of scorpions, or the plague of pestilence, or famine, or war--but incomparably the worse plague, the worser judgment, of the injustice of judges who become betrayers of the law--perjured, wicked men who abuse the law which they are sworn to administer, in order to gratify their own foul passions, to take the part of the wrong-doer against his victim, and to forswear themselves on God's gospel, in order that justice may not be done. * * * * My lords, I entirely concur in what was formerly said by Mr. Burke, and afterwards repeated by Mr. Canning, that while the making of laws was confined to the

owners of slaves, nothing they did was ever found real or effectual. And when, perchance, any thing was accomplished, it had not, as Mr. Burke said, "an executive principle." But, when they find you determined to do your duty, it is proved, by the example which they have given in passing the Apprenticeship Amendment Act, that they will even outstrip you to prevent your interference with them. * * * * Place the negroes on the same footing with other men, and give them the uncontrolled power over their time and labor, and it will become the interest of the planter, as well as the rest of the community, to treat the negro well, for their comfort and happiness depend on his industry and good behavior. It is a consequence perfectly clear, notwithstanding former distinctions, notwithstanding the difference of color and the variety of race in that population, the negro and the West Indian will in a very few generations--when the clank of his chain is no longer heard, when the oppression of the master can vex no more, when equal rights are enjoyed by all, and all have a common interest in the general prosperity--be impressed with a sense of their having an equal share in the promotion of the public welfare; nay, that social improvement, the progress of knowledge, civility, and even refinement itself, will proceed as rapidly and diffuse itself as universally in the islands of the Western Ocean as in any part of her Majesty's dominions. * * * *

I see no danger in the immediate emancipation of the negro; I see no possible injury in terminating the apprenticeship, (which we now have found should never have been adopted,) and in causing it to cease for slaves previous to August, 1838, at that date, as those subsequent to that date must in that case be exempt. * * * * I regard the freedom of the negro as accomplished and sure. Why? Because it is his right--because he has shown himself fit for it--because a pretext or a shadow of a pretext can no longer be devised for withholding that right from its possessor. I know that all men now take a part in the question, and that they will no longer bear to be imposed upon now they are well informed. My reliance is firm and unflinching upon the great change which I have witnessed--the education of the people unfettered by party or by sect--from the beginning of its progress, I may say from the hour of its birth. Yes; it was not for a humble man like me to assist at royal births with the illustrious prince who condescended to grace the

pageant of this opening session, or the great captain and statesman in whose presence I now am proud to speak. But with that illustrious prince, and with the father of the Queen I assisted at that other birth, more conspicuous still. With them and with the lord of the house of Russel I watched over its cradle--I marked its growth--I rejoiced in its strength--I witnessed its maturity--I have been spared to see it ascend the very height of supreme power--directing the councils of the state--accelerating every great improvement--uniting itself with every good work--propping honorable and useful institutions--extirpating abuses in all our institutions--passing the bounds of our dominion, and in the new world, as in the old, proclaiming that freedom is the birthright of man--that distinction of color gives no title to oppression--that the chains now loosened must be struck off, and even the marks they have left effaced by the same eternal law of our nature which makes nations the masters of their own destiny, and which in Europe has caused every tyrant's throne to quake. But they need to feel no alarm at the progress of right who defend a limited monarchy and support their popular institutions--who place their chiefest pride not in ruling over slaves, be they white or be they black--not in protecting the oppressor, but in wearing a constitutional crown, in holding the sword of justice with the hand of mercy, in being the first citizen of a country whose air is too pure for slavery to breathe, and on whose shores, if the captive's foot but touch, his fetters of themselves fall off. (Cheers.) To the resistless progress of this great principle I look with a confidence which nothing can shake; it makes all improvement certain--it makes all change safe which it produces; for none can be brought about, unless all has been accomplished in a cautious and salutary spirit. So now the fulness of time is come; for our duty being at length discharged to the African captive, I have demonstrated to you that every thing is ordered--every previous step taken--all safe, by experience shown to be safe, for the long-desired consummation. The time has come--the trial has been made--the hour is striking: you have no longer a pretext for hesitation, or faltering, or delay. The slave has shown, by four years' blameless behavior and devotion, unsurpassed by any English peasant, to the pursuit of peaceful industry, that he is as fit for his freedom as any lord whom I now address. I demand his rights--I demand his liberty without stint, in the names of justice and of

law--in the name of reason--in the name of God, who has given you no right to work injustice. I demand that your brother be no longer trampled upon as your slave. (Hear, hear.) I make my appeal to the Commons, who represent the free people of England; and I require at their hands the performance of that condition for which they paid so enormous a price--that condition which all their constituents are in breathless anxiety to see fulfilled! I appeal to his house--the hereditary judges of the first tribunal in the world--to you I appeal for justice. Patrons of all the arts that humanize mankind, under your protection I place humanity herself! To the merciful Sovereign of a free people I call aloud for mercy to the hundreds of thousands in whose behalf half a million of her Christian sisters have cried aloud, that their cry may not have risen in vain. But first I turn my eye to the throne of all justice, and devoutly humbling myself before Him who is of purer eyes than to behold any longer such vast iniquities--I implore that the curse over our heads of unjust oppression be averted from us--that your hearts may be turned to mercy--and that over all the earth His will may at length be done!

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INDEX.

ABSCONDING from labor,
Accident in a boiling house,
Aged negro,
Allowance to Apprentices,
"Amalgamation,"
American Consul, (*See Consul.*)
American Prejudice,
Amity Hall Estate,
Anderson, Wm. II. Esq.,
Anguilla,
Annual Meeting of Missionaries,

Antigua, Dimensions of,
 " Sugar Crop of,
Applewhitte, Mr.
Appraisement of Apprentices,
Apprentice, provisions respecting the,
Apprenticeship compared with slavery,
Apprenticeship System,
 " Design of,
 " Good effect of,
 " No preparation for freedom,
Apprenticeship, Operation of,
Apprenticeship, Opinion of, in Antigua;--in Barbadoes;--in Jamaica,
Apprentices liberated,
Apprentices' work compared with slaves
Archdeacon of Antigua,
 " of Barbadoes,
Aristocracy of Antigua,
Armstrong, Mr. H.,
Ashby, Colonel,
Athill, Mr.,
Attachment to home,
Attorney General of Jamaica,
Attendance on Church
August, First of

Baijer, Hon. Samuel O.,
Baines, Major,
Banks, Rev. Mr.,
Baptist Chapel
Baptists in Jamaica,
Barbadoes,
Barbuda,
Barber in Bridgetown,
Barclay, Alexander, Esq.,
Barnard, Samuel, Esq.,
Barrow, Colonel,
Bath,

Bazaar,
Bell, Dr.,
Belle Estate,
Bell not tolled for colored person,
"Belly, 'blige 'em to work,"
Belmore, Lord,
Belvidere Estate,
Benevolent institutions of Antigua,
Bible Society,
Bishop of Barbadoes,
Blessings of Abolition, (See *Morals*, &c.)
Blind man,
Boiling House,
Bookkeepers, Slaver of,
"Bornin' Ground,"
Bourne, Mr. London,
Bourne, Mr. S., (of Antigua,)
Bourne, Stephen, Esq., (of Jamaica,)
Breakfast at Mr. Bourne's,
 " at Mr. Prescod's,
 " at Mr. Thorne's,
Briant, Mr.,
Bridgetown,
Brown, Colonel,
Brown, Thomas C.,

C., Mr., of Barbadoes,
"Cage,"
Cane cultivated by apprentices on their own ground,
Cane-cutting,
Cane-holing,
Cecil, Mr.,
Cedar Hall,
Chamberlain, R., Esq.,
Change of opinion in regard to slavery,
Chapel erected by apprentices,
Character of colored people,

Cheesborough, Rev. Mr.,
Children, care of, (See *Free*.)
Christmas,
Church, Established,
Civility of negroes,
Clarke, Dr.,
Clarke, Hon. R.B.,
Clarke, Mr.,
Classification of apprentices,
Codrington Estate,
Codrington, Sir Christopher.
Coffee Estates.
College, Codrington.
Colliton Estate.
Colored Architect.
" Editors.
" Lady.
" Legislators.
" Magistrates.
" Merchants.
" Policemen.
" Population.
" Proprietor.
" Teachers.
Colthurst, Major.
Complaints to Special Magistrates.
Concubinage.
Condition of the negroes, changed.
Conduct of the Emancipated on the first of August.
Confidence increased.
Conjugal attachment.
Consul, American at Antigua.
" " at Jamaica.
Constabulary force, colored.
Contributions for religious purposes.
Conversation with a negro boatman.
Conversation with negroes on Harvey's estate.

Conversation with apprentices.
Corbett, Mr. Trial of.
Corner stone laid.
Courts in Barbadoes.
Courts in Jamaica.
Cox, Rev. James.
Cranstoun, Mr.
Crimes, Diminution of.
Crimes in Jamaica.
Crookes, Rev. Mr.
Crops in Barbadoes.
Crops in Jamaica.
Cruelty of slavery.
" to apprentices.
Cultivation in Barbadoes, (See *Crops*.)
Cultivation in Jamaica.
Cummins, Mr.
Cummins, Rev. Mr.
Cuppage, Captain.
Custom House returns, Barbadoes.

Daily meal Society.
Dangers of slavery.
Daniell, Dr.
Death-bed of a planter.
Deception.
Defect of law.
Demerara, Apprenticeship in.
Desire for instruction.
Dinner at Mr. Harris's.
" at the Governor's.
Disabilities of colored people.
Discussion, Effect of.
Distinction between *serving* and being *property*.
Distressed Females' Friend Society.
Disturbances, Reason of.
Docility of the negroes.

Domestic Apprentices.

Donovan's Estate.

Drax Hall.

Dress in Antigua.

"Driver and overseer."

Drought in Antigua.

Dublin Castle Estate.

Duncan, Mr.

Dungeons in Antigua.

" in Barbadoes.

Economy of the negroes.

Edgecomb Estate.

Edmonson, Rev. Jonathan.

Education of Apprentices.

" in Antigua.

" in Barbadoes. (See *Schools*.)

Education, Queries on, replied to.

" Results, in regard to.

Edwards, Colonel.

Eldridge, R. B. Esq..

Elliot, Rev. Edward.

Emancipation, Immediate. (See *Preparation, &c.*)

Emancipation, Motives of, in Antigua.

Emigrants from Europe.

Employments of the colored.

English Delegation.

Enrolment of colored militia.

Escape of slaves from French islands.

Expectations in regard to 1838 and 1840.

Expense of free compared with slave labor.

Expense of Apprenticeship compared with slavery.

Explanation of terms.

Exports of Jamaica for 53 years.

Fair of St. John's.

Favey, Mr.

Feeding in Barbadoes.

Feeling, intense, of the negroes.
Females in the field.
Fences wanting in Antigua.
Ferguson, Dr.
Fines upon the planters.
Fire in the canes.
Fitch's Creek Estate.
Flogging.
" machine.
Forten, James.
Four and a half per cent tax.
Fraser, Rev. Edward.
" Mrs., ----
Free children.
Freedom in Antigua.
Free labor less expensive.
Freeman, Count.
Frey's Estate.
Friendly Societies.
Fright of American vessels.

Galloway, Mr.
Gangs, Division of.
Gardiner, Rev. Mr.
Gilbert, Rev. N.
Girl sold by her mother.
Gitters, Rev. Mr.
Golden Grove Estate.
Gordon, Mr.
Governor of Antigua.
" of Barbadoes.
Grace Bay.
Grenada.
"Grandfather Jacob."
Gratitude of the Negroes.
"Grecian Regale."
Green Castle Estate.

Green Wall Estate.

Guadeloupe.

Guarda Costas.

"Gubner poisoned."

H., Mr., an American.

Hamilton, Capt.

Hamilton, Cheny, Esq.

Hamilton, Rev. Mr.

Harrison, Colonel.

Harris, Thomas, Esq.

Harvey, Rev. B.

Hatley, Mr.

Heroism of colored women.

Higginbotham, Ralph, Esq.

Hill, Richard, Esq.

Hinkston, Samuel, Esq.

Holberton, Rev. Robert.

Holidays in Antigua.

Horne, Rev. Mr.

"Horse."

Horton Estate.

Horsford, Hon. Paul.

Hostility to Emancipation. (See also, *Change, &c.*)

House of Correction.

Howell, Mr., (of Jamaica).

Howell, James Esq.

Hurricane.

Imports and Exports of Barbadoes.

Improvement since Emancipation. (See *Morals.*)

Indolence of Apprentices.

" of Whites.

Industry of Emancipated Slaves.

Industry of Apprentices.

Infanticide.

Insolence.

Insubordination. (See *Subordination.*)

Insurrection in Barbadoes in 1816.

Insurrection not feared in Antigua;

nor in Barbadoes;

nor in Jamaica.

Intelligence of blacks, as compared with whites.

Intemperance in Antigua. (See *Temperance*.)

Intermixture. (See also *Amalgamation*.)

Internal Improvement.

Jamaica.

Jarvis, Colonel.

Jobs.

Jocken, Mr.

Jones, Mr.

Jones, Rev. Mr.

Jones, T. Watkins, S. M.

Jordon, Edward, Esq.

Jury on the body of a negro woman.

"Juvenile Association."

Kingdon, Rev. Mr.

Kingston.

Kirkland, Mr.

Law, respect for.

Lear's Estate.

Legislature of Antigua.

Letter to a Special Magistrate.

License to marry.

Licentiousness.

Lighthouse.

Lock-up house at St. John's.

Lyon, E.B., Esq.

Lyon's Estate.

Machinery, Labor-saving.

Managers, Testimony of.

Manchioneal.

Market in St. John's.
Market people.
Maroons.
Marriage.
Marshall, Mr.
Martinique.
Master's power over the apprentice.
McCornock, Thomas, Esq.
McGregor, Sir Evan, J. M.
Megass.
Merchants, Testimony of.
Messages of Sir Lionel Smith.
Mico Charity Infant School.
Miller's Estate.
Missionaries, Wesleyan.
Missionary associations.
 " Society, Wesleyan.
Mob, Pro-Slavery, in Barbadoes.
Möhne, Mr. and Mrs.
Montserrat.
Morals, improvement of.
Morant Bay.
Moravian Chapel.
 " Missionary.
Moravians.
Morrish, Rev. Mr.
Mule-traveling.
Murder of a planter.
Musgrave, Dr.

Negro Grounds.
Negro Quarters.
Nevis.
Newby, Mr.
Newfield, visit to.
Noble trait in the apprentices.
Nugent, Hon. Nicholas.

Obstacles to free labor in Antigua.
Old school tyrant.
Opinions in Antigua in regard to Emancipation.
Opinions of the United States.
Opposition to slavery in Jamaica.
O'Reily, Hon. Dowel.
Osburne, Mr.
Overseers.

Packer, Rev. Mr.
Parry, Archdeacon.
Partiality of the Special Magistrates.
Peaceableness of negro villages.
Peaceableness of the change from slavery to freedom.
Peaceableness of the negro character.
Persecution of a Special Justice.
Peter's Rock.
Phillips, Rev. Mr.
Physician, Testimony of.
Pigeot, Mr.
Plantain Garden River Valley.
Planter, a severe one.
Planters, cruelty of.
 " in Barbadoes.
Plough.
Police Court.
 " of Antigua.
 " Officers, Testimony of.
 " Reports.
Policy of colored people in regard to prejudice.
Port Royal.
Prejudice against color.
"Prejudice Bell."
Preparation for freedom.
Prescod, Mr.
Promiscuous seating in church (See "*Amalgamation*," &c.)
Proprietor, testimony of.

Pro-slavery pretences.
Providence of the emancipated, the.
Provost Marshal, Testimony of.
Punishment, cruel.
Punishment in Antigua.

Ramsay, Mr.
Real Estate.
Rebellion, so called.
Rector of St. John's.
"Red Shanks."
Reid, Mr. E.
Religion in Antigua;
 in Barbadoes;
 in Jamaica.
Religious condition of slaves in Antigua.
Religious instruction desired.
Report of a Special Magistrate.
Resolution in regard to Messrs. Thome and Kimball.
Resolutions of Wesleyan Missionaries.
Respect for the aged.
Results in Antigua.
Revengefulness.
Ridge Estate.
Right of suffrage.
Rogers, Mr.
Ross, A., Esq.
Rowe, Rev. Mr.
Rum, use of in Antigua.

Sabbath in Antigua;
 in Barbadoes;
 in Jamaica.
Sabbath school in Bridgetown.
Safety of immediate emancipation. (See *Insurrections*.)
School, adult;
 at Lear's;
 Parochial;

Wolmer Free.
Schools in Antigua;
in Bridgetown;
infant;
in Kingston;
in Spanishtown.
Scotland in Barbadoes.
Scotland, James, Esq.
Scotland, J., Jr. Esq.
Security restored.
Self-emancipation.
Self-respect.
Shands, Mr. S.
Shiel, Mr.
Shrewsbury, Rev. Mr.
Sickness, pretended.
Silver Hill.
Sligo, Lord.
Smith, Sir Lionel.
Social intercourse.
Societies, benevolent.
Society among colored people.
" for promotion of Christian knowledge.
Soldiers, black.
Solicitor General of Barbadoes.
" of Jamaica.
Song sung in the schools.
Spanishtown.
"Speaking," a Moravian custom.
Special Magistrates. (See also *Partiality*.)
Special Magistrates, Testimony of.
St. Andrews.
Station House, A.
St. Christopher's.
St. Lucia.
Stock Keepers.
St. Thomas in the East.

Sturge & Harvey, Messrs.
St. Vincent's.
Subordination.
Sugar Crop.
 " cultivation hard for the slave.
Sugar Mill.
Sunday Markets.
Superintendent of Police.
Suspension of faithful magistrates.

Task-work.
Teacher, Black.
Teachers.
"Telegraph," Remarks of the.
Temperance in Antigua.
 " of negroes.
 " Society.
Testimony of Managers.
Testimony of clergymen and missionaries.
Testimony of Governors.
 " of magistrates.
 " of physicians.
Theft, decrease of.
Thibou Jarvis's estate.
Thomas, Mr.
Thompson, George, Bust of.
Thompson, Thomas, Esq.
Thorne, Mr.
Thwaites, Mr. Charles.
Tinson, Rev. Mr.
Toast to Immediate Emancipation.
Tortala.
Traffic in Slaves.
Transition from slavery to freedom.
Treatment of slaves ameliorated by discussion.
Treadmill.

Trinidad.

Trustworthiness.

Unwilling witness.

Vagrancy.

Value of an apprentice. (See *Appraisement*.)

Villa Estate.

Wages.

Walton, Rev. Mr.

Watchman, Jamaica.

" Remarks of the.

Watkins, Mr.

Ward, Sir Henry.

Weatherill's Estate.

Wesleyan Chapel, Antigua.

" " New, ".

" Missionary Society.

Wesleyans in Antigua.

" in Barbadoes.

" in Jamaica.

Whip banished.

Whipping Post.

White lady.

Wilberforce, opinion of.

Wickham, Richard S.

Willis, George, Esq.

Willoughby Bay Examination.

Wolmer Free School.

Women abandon the field.

" condition of.

Woolridge, Rev. Mr.

Wright, Andrew, Esq.

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THE ANTI-SLAVERY EXAMINER--EXTRA.

* * * * *

EMANCIPATION

In The

WEST INDIES, IN 1838.

* * * * *

IMPORTANT TO THE UNITED STATES.

False prophets were never stiller about their time-detected *impostures* than are the pro-slavery presses of the United States about the results of West India Emancipation. Now and then, for the sake of appearances, they obscurely copy into their immense sheets an inch or two of complaints, from some snarling West India paper, that the emancipated are lazy and won't work. But they make no parade. They are more taciturn than grave-stones.

In the following closely printed columns, those who wish to know will find out precisely how the "*great experiment*" has worked. They will find,

1. The *safety* of abolition demonstrated--its safety in the worst possible case.
2. That the colonies are prospering in their *agriculture*.
3. That the planters conferred freedom because they were *obliged to* by public opinion abroad.
4. That freedom, even thus unwillingly conferred, was accepted as a precious boon by the slaves--they were grateful to God, and ready to work for their masters for fair pay.
5. That the mass of the planters have endeavoured, from the first, to get work out of the free laborers for as small wages as possible.
6. That many of the attorneys and managers have refused fair wages and practiced extortion, *to depreciate the price of property*, that they might profit thereby.
7. That all the indisposition to labor which has yet been exhibited is fully accounted for by these causes.
8. That in spite of all, the abolition is working well for the *honest* of all parties.

* * * * *

WEST INDIA EMANCIPATION, IN 1838.

The immediate abolitionists hold that the change from slavery to freedom cannot be too sudden. They say that the first step in raising the slave from his degradation should be that of making him a proper subject of law, by putting him in possession of himself. This position they rest on the ground both of justice and expediency, which indeed they believe to be inseparable. With exceptions too trifling to affect the question, they believe the laborer who feels no stimulus but that of wages and no restraint but that of law, is the most *profitable*, not only to himself and society at large, but to any employer other than a brutal tyrant. The benefit of this role they claim for every man and woman living within this republic, till on fair trial the proper tribunal shall have judged them unworthy of it. They deny both the justice

and expediency of permitting any degree of ignorance or debasement to work the forfeiture of self-ownership, and pronounce slavery continued for such a cause the worst of all, inasmuch as it is the *robbery of the poor because he is poor*.

What light was thrown upon this doctrine by the process of abolition in the British West Indies from the 1st of August 1834 to the 1st of June 1837, may be seen in the work of Messrs. Thome and Kimball entitled, "Emancipation in the West Indies." That light continues to shine. Bermuda and Antigua, in which the slaves passed instantaneously out of absolute slavery into full freedom, are living witnesses of the blessing of heaven upon immediate emancipation. In Antigua, one of the old sugar colonies, where slavery had had its full sway there has been especially a fair test of immediatism, and the increasing prosperity of the island does the utmost honor to the principle. After the fullest inquiry on the point, Messrs. Thome and Kimball say of this island:--

"There is not a class, or party, or sect, who do not esteem the abolition of slavery as a *special blessing to them*. The rich, because it relieved them of "property" which was fast becoming a disgrace, as it had always been a vexation and a tax, and because it has emancipated them from the terrors of insurrection, which kept them all their life-time subject to bondage. The poor whites--because it lifted from off them the yoke of civil oppression. The free colored population--because it gave the death blow to the prejudice that crushed them, and opened the prospect of social, civil, and political equality with the whites. The *slaves*--because it broke open their dungeons, led them out to liberty, and gave them, in one munificent donation, their wives, their children, their bodies, their souls--everything."

In the emphatic language of the Governor, "It was *universally admitted* that emancipation had been a great blessing to the island."

In November 1837, Lord Brougham thus summed up the results of the Antigua experiment in a speech in the House of Lords:--

"It might be known to their lordships that in one most important colony the experiment of instant and entire emancipation had been tried. Infinitely to the honor of the island of Antigua was it, that it did not wait for the period fixed by the Legislature, but had at once converted the state of slavery into

one of perfect liberty. On the 1st of August, 1834, the day fixed by act of Parliament for the commencement of a ten years' apprenticeship, the Legislature of that colony, to the immortal honor of their wisdom, their justice, and their humanity, had abolished the system of apprenticeship, and had absolutely and entirely struck the fetters off from 30,000 slaves. Their lordships would naturally ask whether the experiment had succeeded; and whether this sudden emancipation had been wisely and politically done. He should move for some returns which he would venture to say would prove that the experiment had entirely succeeded. He would give their lordships some proofs: First, property in that island had risen in value; secondly, with a very few exceptions, and those of not greater importance than occurred in England during harvest, there was no deficiency in the number of laborers to be obtained when laborers were wanted; thirdly, offences of all sorts, from capital offences downwards, had decreased; and this appeared from returns sent by the inspector of slaves to the governor of that colony, and by him transmitted to the proper authority here; and, fourthly, the exports of sugar had increased: during the three years ending 1834, the average yearly export was 165,000 cwts., and for the three subsequent years this average had increased to 189,000 cwts., being an increase of 21,000 cwts, or one clear seventh, produced by free labor. Nor were the last three years productive seasons; for in 1835 there was a very severe and destructive hurricane, and in the year 1836 there was such a drought that water was obliged to be imported from Barbados."

Of such sort, with regard to both the colonies that adopted the principle of immediate emancipation, have been the facts--and all the facts--up to the latest intelligence.

The rest of the colonies adopted the plan proposed by the British government, which contrary to the wishes of the great body of British abolitionists, made the slaves but partially free under the name of apprentices. In this mongrel condition they were to remain, the house servants four, and the field laborers six years. This apprenticeship was the darling child of that expediency, which, holding the transaction from wrong to right to be dangerous and difficult, illustrates its wisdom by lingering on the dividing line. Therefore any mischance that might have occurred in any part of this tardy process would have been justly attributable to *gradualism* and not to *immediatism*. The force of this remark will be better seen by

referring to the nature and working of the apprenticeship as described in the book of Messrs. Thome and Kimball. We have only room to say that the masters universally regarded the system as a part of the compensation or bonus to the slaveholder and not as a preparatory school for the slave. By law they were granted a property in the uncompensated *labor* of the slaves for six years; but the same law, by taking away the sole means of enforcing this labor, in fact threw the masters and slaves into a six years' quarrel in which they stood on something like equal terms. It was surely not to be wondered if the parties should come out of this contest too hostile ever to maintain to each other the relation of employer and employed. This six years of vexatious swinging like a pendulum over the line between bondage and liberty was well calculated to spoil all the gratitude and glory of getting across.

It was early discovered that the masters generally were disposed to abuse their power and get from their apprentices all that could by any means be extorted. The friends of humanity in Great Britain were aroused, Mr. Sturge, a distinguished philanthropist of Birmingham, accompanied by Messrs. Scohle, Harvey, and Lloyd, proceeded to the West Indies on a mission of inquiry, and prosecuted their investigation contemporaneously with Messrs. Thome and Kimball. Their Report produced a general conviction in England, that the planters had forfeited all claim to retain their authority over the apprentices, and the government was accordingly petitioned immediately to abolish the system. This it was loth to do. It caused inquiries to be instituted in the colonies, especially in Jamaica, with the evident hope of overthrowing the charges of Mr. Sturge. The result more than confirmed those charges. The government still plead for delay, and brought in a bill for the *improvement* of the apprenticeship. In the progress of these proceedings, urged on as they were by the heaven-high enthusiasm of the British nation, many of the planters clearly perceived that their chance of power during the remaining two years of the apprenticeship had become worth less to them than the good will which they might get by voluntarily giving it up. Whether it was this motive operating in good faith, or a hope to escape philanthropic interference for the future by yielding to its full claim, and thus gain a clear field to oppress under the new system of wages, one thing is certain the chartered colonies, suddenly, and to the surprise of many, put the finishing stroke to the system and made their

apprentices free from the 1st of August, 1838. The crown colonies have mostly imitated their example.

The following table exhibits the extent and population of these colonies.

Possessions	Population				
	Date of	Extent.			
	acquisit.	sq. m.	White.	Slaves.	F. Col.
Anguilla[B],	1650	...	365	2,388	327
Antigua[A],	1632	108	1,980	29,537	3,895
Bahamas[B],	1629	4,400	4,240	9,268	2,991
Barbados[B],	1625	166	14,959	82,807	5,146
<i>Bermudas</i> [A],	1611	22	3,905	4,608	738
Dominica[B],	1783	275	840	15,392	3,606
Grenada[B],	1783	125	801	24,145	3,786
Jamaica[B],	1655	6,400	37,000	311,692	55,000
Montserrat[B],	1632	47	330	6,262	814
Nevis[B],	1628	20	700	9,259	2,000
St.					
Christophers[B],	1632	68	1,612	19,310	3,000
St. Lucia[B],	1803	58	972	13,661	3,718
St. Vincent[B],	1783	130	1,301	23,589	2,824
Tobago[B],	1763	187	322	12,556	1,164
Trinidad[B],	1797	2,460	4,201	24,006	15,956
Tortola, or Virgin					
Isles[B],	1666	...	800	5,399	607
Total, B.W.I	...	14,466	74,328	593,879	105,572
Cape of Good					
Hope,	...	...	43,000	35,500	29,000
Guiana					
Berbice[B]	...	...	523	20,645	1,161
Guiana					
Demarara[B]	1803	...	3,006	65,556	6,360
Guiana					
Essequibo[B],	...	...	...	...	...
Honduras	1650	62,750	250	2,100	2,300

Mauritius	...	...	8,000	76,000	15,000
Total.	...	...	129,107	793,680	159,393

[Footnote A: Emancipated entirely on the 1st. of August, 1834.]

[Footnote B: Emancipated entirely on the 1st. of August, 1838, by vote of the local legislatures in the chartered Colonies; and by Governor and Council, in the Crown Colonies.]

The *unanimity* with which the apprenticeship was given up is a most remarkable and instructive fact. In the Council and Assembly of Montserrat, there was an unanimous decision in favor of Emancipation as early as February 1838. In the legislature of Tortola, which passed the bill in April 1838, the opposing party was small. In that of Barbados the bill was passed on the 15th of May with but *one* dissenting voice. In that of Jamaica, the bill seems to have been passed on the 8th of June, and the *Jamaica Times* remarks:--"No dissentient voice was heard within the walls of the Assembly, all joined in the wish so often expressed, that the remaining term of the apprenticeship should be cancelled, that the excitement produced by a law which has done inconceivable harm in Jamaica, in alienating the affections of her people, and creating discord and disaffection, should at once cease. Thank God! it is now nearly at an end, and we trust that Jamaica will enjoy that repose, so eagerly and anxiously sought after, by all who wish the Island well."

These facts come down upon the question of the safety of an *immediate* emancipation with an *a fortiori*, a *much more then*. For it is admitted on all hands that the apprenticeship had "alienated the affections of the people;" they were in a state less favorable to a quiet sequel, than they were before the first of August, 1834, yet the danger was not thought of. The *safety* was an argument *in favor* of emancipation, not *against* it. The raw head and bloody bones had vanished. The following is a fair exhibition of the feeling of the most influential planters, in regard to the *safety* of the step.

From the Barbadian, May 9, 1838.

AT A MEETING OF THE BOARD OF LEGISLATIVE COUNCIL, IN
THE NEW COURT
HOUSE, APRIL 24TH, 1838.

The Lord Bishop rose and spoke as follows:

"Mr. President, and Gentlemen of the Council,

'I was informed yesterday that, during my absence from this island, the members recorded their opinion as to the expediency of absolutely abolishing the apprenticeship in August, 1838. I am most anxious to record my entire concurrence in this resolution, but I wish it to be understood that I do not consider the measure as called for by any hardships, under which the laborers in this island are suffering--nor from the want of any essential comfort--nor from the deprivation of any thing, which a laborer can fairly claim from his master; still I do express my concurrence in the resolution of the board, and I do so on these grounds: that I am satisfied the measure can be safely carried in this island, and if safely, then I feel justly; for I consider the very important interests which are involved in the measure. I must confess, too, that I am unwilling the Barbados should be behind any other island, especially in a measure which may be carried both safely and justly, and where its example may be of such beneficial consequence. I am just returned from visiting the Northern Islands of the Diocese. I have gone over every part of Tortola, and though it is far more fertile than the Off Islands, yet even these are sufficiently productive for the laborer to raise the lesser and necessary provision of life,--and yet with these islands in their very face, the Legislature of Tortola has passed the act of abolition. Some of the proprietors were opposed to it, but they have now given up their opposition; and I heard, whilst in Antigua, not only that the act had passed, but that on the day of its passing, or the following day, some of the leading proprietors rode through the island, and were met by the people with expressions of the utmost gratitude, regarding the act as a boon granted to them by their masters. At Nevis the act has passed. At St. Christopher's the council are in favor of its passing, and with Nevis emancipated in its vicinity, there is little doubt but the Act must pass. At Montserrat also it has passed. At Antigua, which I visited last year, I found that every thing was proceeding quietly and regularly. I found too, the planters in high spirits, and some estates, which had been given up, restored; and the small patches and tenements of the free people, commencing last year, now in a very satisfactory state of cultivation. It is possible, indeed, that these last mentioned, unless the population is proportionably increased, may affect the cultivation of the larger estates, but there they are, and flourishing, as I have described, whilst

I was in the island. A contiguous, though abandoned estate was purchased by Sir Henry Martin for about 9,500 *l.* currency, being 3,000 *l.* more than he had offered a few years previously. To compare Barbados with any other island, either as to population, wealth, or state of agriculture, is unnecessary. I have seen nothing like the commercial activity which I saw in the streets yesterday, except at St. Thomas; and I feel, therefore, on all these grounds, that the act may be passed safely and justly. At the same time I am not unmindful or insensible to the state of public opinion in the mother country, nor to the many new and harassing annoyances to which the proprietors may be exposed during a protracted continuance of the apprenticeship. I request that my full concurrence in the resolution of the council, may be accorded on the minutes of this day's proceedings."

Such is the testimony of a witness in no wise warped by prejudice in favor of the anti-slavery party.

The debates which took place in the legislatures of both Barbados and Jamaica, are full of similar testimony, uttered by men every way qualified to bear witness, and under influences which relieve their testimony from every taint of suspicion.

In the legislature of Jamaica, on the question of a Committee to bring in a Bill, Mr. GOOD remarked, "He could say that the negroes from their general good conduct were deserving of the boon. Then why not give in with a good heart? why exhibit any bad feelings about the matter? There were many honorable gentlemen who had benefitted by the pressure from without, who owed their rank in society and their seats in that house to the industry of the negroes. Why should they now show a bad heart in the matter?--Nine tenths of the proprietors of this island had determined upon giving up the apprenticeship. Hundreds of thousands were to be benefited--were to take their stations as men of society, and he hoped the boon would not be retarded by a handful of men who owed their all to slavery."

Mr. Dallas said,--"*The abolition of the remaining term of apprenticeship must take place; let them then join hand and heart in doing it well, and with such grace as we now could. Let it have the appearance of a boon from ourselves, and not in downright submission to the coercive measures adopted by the British Parliament.*"

After a committee had been appointed to prepare and bring in a Bill for the abolition of the apprenticeship, a member rose and proposed that the 28th of June should be its termination. We give his speech as reported in the Jamaica papers, to show how fanatical even a slaveholder may become.

"On the members resuming their seats, Mr. HART proposed that it be an instruction to the committee appointed to bring in the bill or abolishing the remainder of the apprenticeship, to insert a clause in it, that the operation of that bill should commence on the 28th of June, that being the day appointed for the coronation of the Queen. *He felt proud in telling the house that he was the representative of the black population. He was sent there by the blacks and his other friends.* The white Christians had their representatives, the people of color had their representatives, and *he hoped shortly to see the day when the blacks would send in their own representatives.* He wanted the thing done at once, Sir, said the honorable member waxing warm. It was nonsense to delay it. It could be done in three lines as he said before, dele 1840 and put in 1838. That was all that they had to do. If it were possible, let the thing be done in two words. He went there to do his duty to his constituents, and he was determined to do so. His black friends looked up to him to protect them--and he would press his motion that all the apprentices in the island should be *crowned* on the 28th of June. (Thundering roars of laughter.) He was as independent as any honorable member, and would deliver his sentiment, without caring who were and who were not pleased. He was possessed of property in apprentices--*he had an estate with nearly two hundred negroes, that he was determined to crown on the 28th of June.* (Increased roars of laughter in the house, and at the bar.) He would not be laughed down. His properties were not encumbered. He would not owe anything on them after they were paid for, and that he could do. (Loud laughter.) He was determined to have his opinion. As he had said before, the 28th day of June being fixed for the coronation of all the negroes in the island, that is the day they ought to be released from the apprenticeship. (Thundering and deafening roars of laughter). (Here the honorable member was told that the Queen was to be crowned on that day.) Ah, well, he had made a mistake, but he would tell the house the truth, *he had made up his mind to give his apprentices freedom on that day, but he did not wish to do it without his neighbors doing the same, lest they should say he was setting a bad example.* He would press his motion to a division. It had been

seconded by his honorable friend on his right.--(Aside, "Good, didn't you promise to second it?") The honorable member then read his motion, and handed it up to the clerk."

The "mistake" of this liberal descendant of Israel, which excited so much merriment was, after all, not a very unfortunate one, *if* the "crown" of manhood is more important than that of monarchy. The members objected to so near an approach to *immediatism*, not, however, be it remarked, on account of the unfitness of the apprentices, (slaves) but their own convenience. Among those who replied to Mr. Hart, was Mr. Osborn, of unmingled African blood, born a slave, and who, we are informed, was a successful competitor for the seat he now occupies against the very man who formerly claimed him as property. Mr. Osborn and his partner Mr. Jordon were editors of the Jamaica Watchman, and had contended manfully for liberty when it was a dangerous word. Mr. Osborn said:--"He was astonished at the galloping liberality which seemed to have seized some honorable members, now there was nothing to contend for. Their liberality seemed to have outrun all prudence. Where were they and their liberality when it was almost death to breach the question of slavery? What had become of their philanthropy? But no, it was not convenient then. The stream was too strong for them to resist. Now, however, when the question was finally settled, when nothing remained for them to do, it was the time that some honorable gentlemen began to clamor their liberality, and began a race who should be the first, or who should have the honor of first terminating the apprenticeship. He hoped the motion would be withdrawn, and the discussion put an end to."

What had become of the visions of blood and slaughter? Could there be more impressive testimony to the safety of Emancipation in all, even the worst cases?

We might add to this testimony that of the universal newspaper press of the British West India colonies. We have room, however, to select only from a few of the well known opponents of freedom.

"We seriously call upon our representatives to consider well all the bearings of the question, and if they cannot resist effectually these encroachments of the Imperial Government, adopt the remaining alternative of saving

themselves from an infliction, by giving up at once and entirely, the bone of contention between us. Thus only shall we disarm, if anything in reason or in nature can, our enemies of their slanderous weapons of offence, and secure in as far as possible, a speedy and safe return of peace and prosperity to the "distracted" colony.--Without this sacrifice on our parts, we see no shelter from our sufferings--no amelioration of present wrongs--no hope for the future; but on the contrary, a systematic and remorseless train laid for the ultimate ruin of every proprietor in the country. With this sacrifice which can only be to any extent to a few and which the wisdom of our legislature may possibly find out some means or other of compensation, we have the hope that the sunshine of Jamaica's prosperity shall not receive any farther diminution; but shall rather dawn again with renewed vigor; when all shall be alike free under the protection of the same law, and the same law-givers; and all shall be alike amenable to the powers that punish without favor and without affection."--*Jamaica Standard*.

"There is great reason to expect that many Jamaica proprietors will anticipate the period established by the Slavery Abolition Act for the termination of the apprenticeship. They will, as an act of grace, and with a view to their future arrangements with their negroes, terminate the apprenticeship either of all at once, or by giving immediate freedom to the most deserving; try the effect of this gift, and of the example afforded to the apprentices when they see those who have been discharged from the apprenticeship working on the estates for wages. If such a course is adopted, it will afford an additional motive for inducing the Legislature to consider whether the good feeling of the laboring population, and their future connection with their former employers, may not be promoted by permitting them to owe to the grace of their own Legislature the termination of the apprenticeship as soon as the requisite legislation for the new state of things has been adopted."--*Jamaica Despatch*.

Of such sort as this is the testimony from all the Colonies, most abundantly published in the Emancipator and other abolition papers, to the point of the *safety* of entire Emancipation. At the time when the step was taken, it was universally concluded that so far from being dangerous it promised the greatest safety. It would not only put an end to the danger apprehended from the foreign interference of the abolitionists, but it would *conciliate the negroes*! And we are not able to find any one who professes to be

disappointed with the result thus far. The only evil now complained of, is the new freemen do not in some instances choose *to work* on the *terms* offered by the planters. They have shed no man's blood. They have committed no depredation. They peaceably obey the laws. All this, up to the latest date, is universally admitted. Neither does any one *now* presume to prophesy anything different for the future.

INDUSTRY.

On the one topic of the industry of the Emancipated people, the West Indian papers give the most conflicting accounts. Some represent them as laboring with alacrity, diligence and effect wherever anything like an adequate compensation is offered. It is asserted by some, and not denied by any authorities that we have seen, that the emancipated are industriously at work on those estates where the masters voluntarily relinquished the apprenticeship before the first of August and met their freed people in good faith. But most of the papers, especially in Jamaica, complain grievously that the freed people will work on no reasonable terms. We give a fair specimen from one of the Jamaica papers, on which our political editors choose most to rely for their information:--

"In referring to the state of the country this week, we have still the same tale to tell of little work, and that little indifferently done, but exorbitantly charged for; and wherever resisted, a general "strike" is the consequence. Now this, whatever more favourable complexion the interested and sinister motives of others may attempt to throw around it, is the real state of matters upon nine-tenths of the properties situated in St. James's, Westmoreland, and Hanover. In Trelawny they *appear* to be doing a little better; but that only arises, we are confident from the longer purses, and patience of endurance under exorbitant wages, exhibited by the generality of the managers of that parish. Let them wait till they find they can no longer continue making sugar at its present expensive rate, and they will then find whether Trelawny is substantially in a better condition than either of the other parties."--*Standard, quoted in the Morning Journal of Nov. 2.*

This is the "tale" indeed, of a great part of the West India papers, sung to the same hum drum tune ever since the first of August; and so faithfully echoed by our own pro slavery press that many of our estimable fellow citizens

have given it up that the great "experiment" has turned out unfavorably, and that the colored population of the West Indies are rapidly *sinking* from the condition of *slaves* to that of idle freemen. Were we all in a position perfectly disinterested and above the peculiar influence of slavery, we might perhaps consider these complaints as asking for, rather than against, the character of the Emancipated and the cause of freedom, inasmuch as they prove the former slaves to have both the discretion and the spirit which should characterise freemen. But to the peculiar optics which abound in these United States it may be necessary to show the entire picture.

To prove in the first place the general falsehood of the complaints themselves it is only necessary to advert to recent official documents. For our present purpose it will be sufficient to refer to Jamaica. The legislature was convened on the 30th of October and addressed by the Governor Sir Lionel Smith in a speech of which the following extract pertains to our subject:--

"Gentlemen of the Council, Mr. Speaker, and Gentlemen of the House of Assembly,

The most important event in the annals of colonial history has taken place since last I had the pleasure of meeting the legislature of this Island; and I am happy in being able to declare that the conduct of the laboring population, who were then the objects of your liberal and enlightened policy, *entitles them to the highest praise, and amply proves how WELL THEY HAVE DESERVED the boon of freedom.*

It was not to be expected that the total extinction of the apprenticeship law would be followed by an instantaneous return to active labor, but feeling as I do the deepest interest in the successful result of the great measurement now in progress, I sincerely congratulate you and the country at large, on the improvement which is daily taking place on the resumption of industrious habits, and I TRUST THERE IS EVERY PROSPECT OF AGRICULTURAL PROSPERITY."

Such is the testimony of a Governor who is no stranger in the West Indies and who was put in the place of Lord Sligo as more acceptable to the planters. But what said the House of Assembly in reply?--a House made up

chiefly of attorneys who had more interest than any other men in the continuance of the old system and who, as will presently be shown, were not unwilling to have the "experiment" fail? They speak as follows:--

"May it Please your Excellency,

We, her Majesty's dutiful and loyal subjects, the Assembly of Jamaica, thank your Excellency for your speech at the opening of the session.

The House join your Excellency in bearing testimony TO THE PEACEABLE MANNER in which the laboring population have conducted themselves in a state of FREEDOM.

It certainly was not to be expected that so great a change in the condition of the people would be followed by an immediate return to active labor. The House, however, are willing to believe that some degree of improvement is taking place, and they sincerely join in the HOPE expressed by your Excellency, that the agricultural interests of the Island may ultimately prosper, by a resumption of industrious habits on the part of the peasantry in their new condition."

This settles the question. Those who will not be convinced by such documents as these that the mass of the Emancipated in Jamaica are ready *to do their part* in the system of free labor, would not be convinced if one rose from the deed to prove it.

We are now prepared to investigate the causes of the complaints, and inquire why in numerous cases the negroes have refused to work. Let us first go back to the debates Jamaica Legislature on the passage of the Emancipation bill in June, and see whether we can discover the *temper* in which it was passed, and the prospect of good faith in its execution. We can hardly doubt that some members, and some especially from whose speeches on that occasion we have already quoted, designed really to confer the "boon of freedom." But others spoke very differently. To understand their language we must commence with the Governor's speech at the opening of the session:--

"Gentlemen of the Council, Mr. Speaker, and Gentlemen of the Assembly

I have called you together, at an unusual season, to take it to your consideration the state of the Island under the Laws of Apprenticeship, for the labouring population.

I need not refer you to the agitation on this subject throughout the British Empire, or to the discussions upon it in Parliament, *where the honourable efforts of the ministry* were barely found sufficient to preserve the original duration of the Laws, as an obligation of the National faith.

I shall lay before you some despatches on this subject."

* * * * *

"Gentlemen,

General agitation and Parliamentary interference have not, I am afraid, yet terminated.

A corresponding excitement has been long going on among the apprentices themselves, but still they have rested in sober and quiet hopes, relying on your generosity, that you will extend to them that boon which has been granted to their class in other Colonies."

* * * * *

"Gentlemen of the Council, Mr. Speaker and Gentlemen of the Assembly,

In this posture of affairs, it is my duty to declare my sentiments, and distinctly to *recommend to you the early and equal abolition of the apprenticeship for all classes.* I do so in confidence that the

apprentices will be found worthy of freedom, and that it will operate as a double blessing, by securing also the future interests of the planters.

I am commanded, however, to inform you that her Majesty's ministers will not entertain any question of further compensation. But should your views be opposed to the policy I recommend, I would entreat you to consider well *how impracticable it will become to carry on coercive labor*--always difficult, it would in future be in peril of constant comparisons with other colonies made free, and with those estates in this island made free by individual proprietors.

As Governor, under these circumstances, and I never shrink from any of my responsibilities, *I pronounce it physically impossible to maintain the apprenticeship with any hope of successful agriculture.*

* * * *

"Gentlemen of the Council,

Mr. Speaker, and gentlemen of the Assembly.

Jamaica, is in your hands--she requires repose, by the removal of a law which has *equally tormented the laborer, and disappointed the planter*--a law by which man still constrains man in unnatural servitude. This is her first exigency. For her future welfare she appeals to your wisdom to legislate in the spirit of the times, with liberality and benevolence towards all classes."

* * * *

When such a man as Sir Lionel Smith pronounced it no longer practicable to carry on coercive labor, he must have been as bold as well as a rash planter who would venture to hold on to the old system under Lord Glenelg's improvement Act. Accordingly we find some of the staunchest advocates of slavery, men who had been fattening on the oppression of the apprentices up to that moment the first, and the most precipitate, is their

proposals of abolition. Mr. Hyslop, Mr. Gay and others were for acting at once on the Governor's speech without referring it to a committee. The former said: "He believed that a proposition would be made to abandon the apprenticeship from the 1st of August, *but he would say let it be abandoned from Sunday next*. He would therefore move that the speech be made the order of the day for tomorrow."

Mr. Guy said:--

"The Governor's speech contained nothing more than what every Gentlemen expected, *and what every Gentlemen, he believed, was prepared to do*. In short he would state that *a bill had already been prepared by him, which he intended to introduce tomorrow, for the abolition of the apprenticeship on the 1st of August next*."

Both these gentlemen are well known by the readers of Jamaica papers as obstinate defenders slavery. The latter was so passionately devoted to the abuses of the apprenticeship that Lord Sligo was obliged to dismiss him from the post of Adjutant General of militia. In the ardor of his attachment to the "peculiar institution" of getting work without pay, he is reported to have declared on a public occasion, that the British ministry were a "parcel of reptiles" and that the "English nation was fast going to the dogs." In another part of the debate:--

"Mr. Guy hoped the house would not *go into a discussion of the nature of the apprenticeship*, or the terms upon which it was forced us by the government. All that he knew about the matter was, that it was a part and parcel of the compensation. Government had so declared it. In short it was made law. He could not help believing that the Hon. member for Trelawny, was arguing against the dictates of his own honest heart--that he came there cut and dry with a speech prepared to *defend the government*."

Mr. Barclay, to whom, some years ago, the planters gave a *splendid service of plate* for his ingenious defence of slavery against the terrible pen of JAMES STEPHEN, said "it appeared to be the general feeling of the house that the apprenticeship should be done away with. Be that as it may, he was free to say that in that part of the island he was from, and certainly it was a large and wealthy district, the apprenticeship system *had worked well*, and all parties *appeared* satisfied with it. He denied that there existed any

necessity to disturb the working of the system, it would have *gradually* slid into *absolute freedom if they were permitted to regulate their own affairs*, but the government, or rather, *the people of England, had forced on the predicament in which they were placed*. The ministry could not help themselves--They were driven to violate the national compact, not in express words, it is true, but in fact. It was, however, the *force of public opinion that operated* in producing the change. They were placed in a situation from which they could hardly extricate themselves.-- *They had no alternative, he was afraid, but to go along with the stream.*"

Mr. Hamilton Brown, who at the commencement of the apprenticeship came into a Special Magistrate's court and publicly told him that unless he and his colleagues "*did their duty by having recourse to a frequent and vigorous application of the lash, there would be rebellion in the Parish (of St. Ann's!) in less than a month, and all the responsibility of such a calamity would rest on their shoulders*"! discoursed in the following manner. "It was always understood, for the apprenticeship *had become marketable*. Properties had been bought and sold with them, their time had been bought by others, and by themselves."

"He had no hesitation in saying, that the statements which had been made in England against the planters *were as false as hell*--they had been concocted here, and sent home by a parcel of spies in the island. They were represented as a cruel set of men, as having outraged the feelings of humanity towards the negroes, or in matters in which they were concerned. This was false. He did not mean to deny that there were a *few instances* of cruelty to the apprentices, but then those were *isolated cases*, and was it not hard that a hue and cry should be raised against the whole body of planters, and all made to suffer on account of those *few*. He would say that there was a greater disposition to be cruel to the negroes evinced *by young men arriving in this island from England, than by the planters*. There was, indeed, a *great deal of difficulty in restraining them from doing so, but the longer they lived in the country, the more kind and humane they became*. The negroes were *better off here than many of the people of Great Britain*, and they would have been contented, had it not been for the injudicious *interference of some of the Special Justices*. Who had ever heard of negroes being starved to death? Had they not read accounts in the English papers of men destroying their wives, their children, *and afterwards themselves*,

because they could not obtain food. They had been grossly defrauded of their property; and after doing that, it was now sought to destroy their constitutional rights. He would repeat, they had been grossly defrauded of their property." [Here is the true slaveholder, logic, chivalry and all.]

Mr. Frater said, among other things, "He knew that it might be said the bill (Lord Glenelg's) did not go to the extent of freeing the negroes--*that we are about to do ourselves*, but he would ask whether we were not *driven into the difficulty* by which we are now surrounded! Had we not been brought into this *alarming position*, into this *exigency*, by the conduct of the British Government. *Why do we not tell the English nation frankly and candidly, that they agreed to give the planter six years' services of their apprentices, as a part of the compensation, and if they desired to do away with it, that we must be paid for it*, otherwise we will NOT ANSWER FOR ANY CHANGE, FOR ANY EVILS WHICH ARE LIKELY TO ENSUE. Why did the government force such an obnoxious bill upon us? They had in substance done this, they refused to annul the apprenticeship themselves, it is true, but said, we will place them in a situation that will compel them to do it themselves. He must say that the Government had acted *cowardly and unjustly*, they had in substance deprived them of the further two years' services of their apprentices, agreeably to the compact entered into, upon a pretext that we had not kept faith with them, and now tell us they will give us no compensation. He hoped the allusion to it in the address would be retained."

We beg the patient attention of the reader to still more of these extracts. The present state of things in Jamaica renders them very important. It is indispensable to a correct judgment of the results of the experiment to understand in what temper it was entered upon by the parties. Nothing can show this more clearly or authoritatively than the quotations we are making. We find another little torrent of eloquence from the same Mr. Hamilton Brown above quoted. He and several other gentlemen rose to reply to the statements of Richard Hill, a friend of freedom, and Secretary of the Special Magistracy.

Mr. Brown--"Mr. Chairman, I am on my legs, Sir. I say that we have to thank the Special Justices, and the *private instructions* which they have acted upon, *for all the evils that have occurred in the country*. Had they

taken *the law* for their guide, had they acted upon that, Sir, and not upon their private instructions, *every thing would have gone on splendidly*, and we should have done well. But they had *destroyed the negroes with their instructions*, they had *given them bad advice*, and *encouraged them in disobedience to their masters*. I say it, Sir, in the face of this committee--I would say it on my death-bed tomorrow, that if the Stipendiary Magistrates had *done their duty* all would have gone on well, *and I told his Excellency that he might then have slept on a bed of roses.*"

Here was one of the abolishers of the apprenticeship who held that more flogging would have made it work more "splendidly." Mr. Hugh Fraser Leslie, who the February before had, in his place in the Assembly, denominated the anti-slavery delegates assembled in London, as "a set of crawling wretches;" "the scum and refuse of society." "The washings and scrapings of the manufacturing districts," &c. &c. now delivered himself of the following:--

"*He would ask any man in the house, nay, in the country, whether the house had any discretion left to them in the steps they were about to take? Could it be denied, that they were driven to the present alternative? Could they any longer say they were an independent legislature? It would be preposterous--absolutely absurd to entertain any such idea. The apprenticeship had been forced upon the country as a part and parcel of the planters' compensation--it had been working well, and would insensibly have slid into a state of absolute freedom, had the masters been left alone to themselves. It is now utterly impracticable to continue it. A most obnoxious measure had been passed by the British parliament, and sent out to this country to be promulgated by the Governor as the law of the land. The functions of the legislature were put in abeyance, and a British act crammed down their throats. It could not be denied that they were now under a military Government. He was only sorry that the thing had not been more honestly done; in his opinion, it would have been better for all classes, for then the government would have taken all the responsibilities which might attend the sudden change they had driven the house to make, and find the means of conducting the affairs of the country into a peaceable and successful state. Let any person look to the excitement which at present prevailed throughout the country, couple that with the speech which had been delivered by the Governor, and say if it was any longer practicable to carry on the system*

of apprenticeship. With respect to the doctrine which had been broached, that the apprenticeship was not a part and parcel of the compact between the government and the planters; that they (the planters) did not possess an absolute but an incidental right to the services of their apprentices, *he confessed he was at a loss to understand it*, he was incapable of drawing so nice a distinction. He repeated, the government and nation had made the apprenticeship a part of the consideration of the abolition of slavery, and having placed us in a situation to render its continuance impracticable they were bound in honor and common honesty *to compensate us* for the two years."

Once more, and we have done. Mr. Berry said,

"He did not think that because the Governor said they were not entitled to compensation, that therefore they should give up the claim which they unquestionably had upon the British nation for further compensation. He would contend also, that the apprenticeship was one part of the consideration for the abolition of slavery. He had heard it remarked that the apprenticeship must cease, but it ought to be added that they were compelled--they were driven to put an end to it by the Government, though they were convinced that neither party was at this moment prepared for immediate abandonment. The Governor, in his opening speech, had told the house that from the agitation at home, and the corresponding agitation which at the present moment prevailed here, it was physically impossible to carry on the apprenticeship with advantage to masters and labourers. He would take leave to remark, that the apprenticeship *was working very well*--in some of the parishes had worked extremely well. Where this was not the case, it was attributable *to the improper conduct of the Special Justices*. He did not mean to reflect upon them all; there were some honorable exceptions, but he would say that a great deal of the ill-feeling which had arisen in the country between the masters and their apprentices, was to be traced to the *injudicious advice* and conduct of the special Justices."

Such were the sentiments of by far the majority of those who spoke in the Assembly. Such, doubtless, were the sentiments of more than nine-tenths of the persons invested with the management of estates in Jamaica. What, then if we had heard that nine-tenths of the emancipated had refused to be employed? Could that have been counted a failure of the experiment? Was

there any reason to believe that the planters would not resort to every species of oppression compatible with a system of wages?

Before proceeding to the question of wages, however, we invite the reader to scan the temper and disposition of the parties of the other part, viz., the laboring population. Let us observe more carefully how *they* behaved at the important period of

TRANSITION

Two of the sturdiest advocates of slavery, the *Jamaica Standard* and the *Cornwall Courier*, speak as follows:--

The *Standard* says--"On Tuesday evening, (July 31), the Wesleyan, and we believe, Baptist Chapels, (St. James') were opened for service--the former being tastefully decorated with branches of the palm, sage, and other trees, with a variety of appropriate devices, having a portrait of her Majesty in the center, and a crown above. When we visited the Chapel, about 10 o'clock, it was completely full, but not crowded, the generality of the audience well dressed; and all evidently of the better class of the colored and negro population. Shortly after, we understand, a very excellent and modern sermon, in all political points, was delivered by the Rev. Mr. Kerr, the highly respected pastor. The congregation was dismissed shortly after 12 o'clock; at which hour the church bell commenced its solemn peal, and a few noisy spirits welcomed in the morning of Freedom with loud cheers, and planted a huge branch, which they termed the "Tree of Liberty," in the center of the two roads crossing the market square."

Again the *Standard* observes, "The long, and somewhat anxiously expected jubilee of Emancipation has arrived, and now nearly passed over, with a remarkable degree of quiet and circumspection. Of St. James's of course, we speak more particularly,--St. James's, hitherto the most reviled, and most unwarrantably calumniated parish, of all the parishes in this unfortunate and distracted colony!"

The *Cornwall Courier* says, "The first of August, the most important day ever witnessed in Jamaica, has passed quietly as far as actual disturbance is concerned."

The *Jamaica Morning Journal*, of whose recent course the planters should be the last to complain, gives more particular information of the transition in all parts of the island. We give copious extracts, for to dwell upon such a scene must soften the heart. It is good sometimes to behold the joy of mere brute freedom--the boundings of the noble horse freed from his stable and his halter--the glad homeward flight of the bird from its cage--but here was besides the rational joy of a heaven-born nature. Here were 300,000 souls set free; and on wings of gratitude flying upwards to the throne of God. There were the gatherings in the public squares, there were the fireworks, the transparencies, the trees of liberty and the shouts of the jubilee, but the churches and the schools were the chief scenes, and hymns and prayer the chief language of this great ovation. There was no giving up to drunken revelry, but a solemn recognition of God, even by those who had not been wont to worship him. His temples were never so crowded. His ministers never so much honored. We give the picture in all its parts, faithfully, and as completely as our information will enable us to do.

August 2.

"In this city, the day has passed off in the way in which such a day ought to pass off. With glad hearts and joyful lips, the people have crowded the temples of the living God, and poured out their praises and thanksgivings for the great benefits they had received at the hands of a beneficent Providence. That they will continue to deport themselves as dutiful subjects, and good men and women, we have no doubt. From the country we wait with anxious hopes to hear that everything has gone off with the same peace, and quiet, and order, and regularity which have prevailed here, and especially that the people have returned to their labor, and are giving general satisfaction."

From the same.

Among the various ways of interesting the minds of our newly enfranchised peasantry on the 1st of August, was that of planting a Palm tree emblematical of liberty, and commemorative of its commencement in this island. Both in Kingston and in Liguanea, we understand, this ceremony was performed by the schools and congregations of the "London Missionary Society." The following hymn, composed by Mr. Wooldridge,

for the purpose, and committed to memory by many of the children, who were treated with cakes and lemonade.

Appropriate sermons were preached, both morning and evening, by the Rev. Messrs. Woodbridge and Ingraham, and in the evening a Temperance Society was formed for the district of Liguanea, when several signed the pledge.

The thorny bush we'll clear away
The emblem of old slavery--
Let every fibre of it die,
And all its vices cease to be.

Let indolence, deceit, and theft,
Be of their nourishment bereft,
Let cruel wrong now disappear,
And decent order crown each year.

PROCEEDINGS AT TRELAWNEY.--A correspondent in Trelawney writes. The first of August was observed by the people so decently and devoutly, and with such manifestations of subdued, yet grateful feeling, that they appeared more like a select class of Christians celebrating some holy day of their church, than a race but recently converted from idolatry, and who were just emerging from the *pollutions* and degradation of slavery.

TREAT TO THE CHILDREN.--The most interesting and truly exciting scene of all in Trelawny, was the spectacle of some hundreds of happy children dining. This feast for them, and for all who had hearts that could sympathise with the happiness of others, was provided by the Rev. Mr. Knibb. Similar scenes were enacted in the rural districts. The Rev. Mr. Blyth had, I believe, a meeting of his scholars, and a treat provided for them. The Rev. Mr. Anderson had a large assemblage of his scholars at the school-house, who were regaled with meat, bread, and beverage, and also a large meeting of the adult members of his Church, to every one of whom, who could, or was attempting to learn to read, he gave a book.--[HE GAVE A BOOK.]

AT ST. ELIZABETH.--At the hour of 10, A.M., there was about 3000 persons assembled at Crosmond, when the clergyman, the Rev. Mr. Hylton,

proposed an adjournment from the Chapel to the shade of some wide-spreading trees in the common pasture, whither the happy multitude immediately adjourned. The morning service of the church having ended, the Rev. Gentleman preached a most impressive sermon from the 4th chapter of Zech. 6th verse--"Not by might, nor by power, but by my Spirit, saith the Lord of Hosts"--In his application, he took a brief review of the history of the island--the conquest by the Spanish--the extermination by the Indians--and the consequent introduction of the negroes from Africa. He then adverted to the several insurrections that had taken place during the period since the conquest by the British, to the last general rebellion in 1832, in which both himself and many present were deeply interested. Having shown that all these insurrections had been suppressed, and had come to nought, he proceeded to point out how through Divine providence Mr. Wilberforce was raised up to advocate the cause of the oppressed African, and since that period, step by step, various privileges had been quietly conceded to the colored race, until the final consummation by the Legislature, in abolishing the last vestiges of slavery on the 1st of August, 1838.

The Rev. Gentleman's honorable mention of Mr. Wilberforce appeared to be deeply felt and acknowledged by all around. After the service was concluded, the assembled multitude gave three hearty cheers for Queen Victoria, and three for Lord Mulgrave, the first *free Governor* that ever came to Jamaica.

A more decent, orderly, and well-behaved assemblage could not be seen in any part of the world. The people have indeed proved themselves worthy of the "*great boon*" conferred upon them.

AT PORT MARIA.--The first of August passed off happily and peaceably. The people felt deeply the great blessing that had been conferred on them, and behaved uncommonly well. All the places of worship were crowded; indeed, thrice the number would not have contained those who attended, and many of whom could not be accommodated.

From the Cornwall Chronicle of Aug. 4.

Nothing could give a fairer and fuller confidence in the character of the negroes than their conduct on so joyous and trying an occasion, as what

they have exhibited during the brief period of their political regeneration. It may be considered as an earnest of their future peaceable demeanor; the disbelief of the sceptic will thus be put to the blush, and the apprehensions of the timid allayed. The first of August has passed, and with it the conduct of the people has been such as to convince the most jealous, as well as the most sanguine of the evil prognosticators, that they are a good and trustworthy people. There is no doubt but that this day will be held for ever as a sacred anniversary--a new Pentecost--upon which they will render thanks for the quiet "possession of their Canaan"--free from all political *oppressions*, and that they can suffer only from the acts of their own indiscretion. If ever they were placed in a favorable situation which they could improve, it could not have been equal to the present.--The exercise of moderation, however, is now most required, and will be greatly appreciated to themselves at a future time.

CUMBERLAND PEN., ST. CATHERINE.--The conduct of the people in this district generally, is such as to entitle them to the highest commendation. Well knowing the inconvenience to which their masters' customers would be otherwise reduced from a want of food for their horses and cattle, they voluntarily went out to work on the second day, and in some instances on the following, and supplied the usual demand of the market, presenting their labor thus voluntarily given as a free-will offering to their employers. Comment on such conduct would be superfluous. The late apprentices of Jamaica have hitherto acquired honors,

Above all Greek,
Above all Roman fame.

So far as they are concerned, the highest expectations of their friends have been more than realized. Let the higher classes universally but exhibit the same dispositions and conduct, and the peace and prosperity of Jamaica are for ever secured.

Morning Journal of August 4.

SAINT THOMAS IN THE EAST.

Up to the moment when the post left Morant Bay, the utmost tranquillity prevailed. In fact, from the quiet of the day and the circumstance of droves

of well-dressed persons going to and from the Church and Chapels, I was occasionally deluded, says a correspondent, into the belief of the day being Sunday. The parish Church was crowded, and the Rector delivered a very able and appropriate address. The Methodist and Independent Chapels were also filled. At both places suitable sermons were preached. At the latter, the resident minister provided an ample second breakfast, which was faithfully discussed under the shade of a large tent purposely erected for the occasion. The Rev. Mr. Atkins, Wesleyan Minister, has proceeded from this place to lay the foundation stone of a chapel this afternoon, (1st August) at Port Morant, in which important service he will be assisted by Thomas Thomson, Esq., Church warden, and Alexander Barclay, Esq., Member for the parish. It is expected that many thousand spectators will be present at the interesting ceremony. From all I have been able to learn the changes among the labourers on the estates in this quarter, will be very limited, these people being apparently satisfied with the arrangement for their continued domicile on the respective properties.

Another correspondent writes--"we are very quiet here. The day has arrived and nearly passed off, and thank God the predictions of the alarmists are not fulfilled. The Chapels were quite full with a great many persons in the yards. The Independents are just sitting down to a feast. The Rector delivered a sermon or rather a string of advices and opinions to the labouring population, the most intolerant I have heard for a long time. This parish will, I am quite certain, enjoy in peace and quietness this happy jubilee."

MANCHESTER.

We learn from this parish that the Churches and Chapels were crowded many hours before the usual time for beginning service. Several thousand persons remained outside the respective places, which were much too small to afford the accommodation. Every thing was quiet and orderly when the post left.

Says the Jamaica Gazette of Aug. 4th, a paper of the Old School--"In spite of all the endeavours of a *clique* of self-interested agitators, clerical humbug and radical rabble, to excite the bad passions of the sable populace against those who have been the true friends of Colonial freedom, and the

conservators of the public peace and prosperity of the country, the bonfire, bull-roast, and malignant effigy exhibited to rouse the rancor of the savage, failed to produce the effect anticipated by the projectors of the *Saturnalia*, and the negro multitude fully satisfied with the boon so generously conceded by the Island Legislature, were in no humor to wreak their wrath on individual benefactors, whom the envy of party spirit had marked out as the victims of truth and independence.

We are happy to give our meed of praise to the decent and orderly conduct of the sable multitude, and to record that it far excelled the *Loco Foco* group of bullies and boasters in decency of propriety of demeanor. A kind of spree or scuffle took place between donkey-driver Quallo and another. We don't know if they came to close fisti-cuffs, but it was, we are assured, the most serious affray on the Course."

The following is the testimony borne in regard to Barbados.

From the Barbados Liberal, Aug. 4th.

FIRST OF AUGUST.

"It gives us great pleasure to state that, so far as our information from the country extends, this day was observed in a manner highly creditable to our brethren. We never ourselves anticipated any riotings or disorder on the part of the emancipated. A little exhilaration begetting a shout or two, would not have surprised us; but even this, we are happy to say, made no part of their manifestation of joy. The day was spent in quiet piety! In heartfelt, soul overflowing gratitude to their heavenly Father, whose divine agency had raised up friends in their necessity, and brought their great tribulation to an end, they crowded at an early hour to the several churches and chapels, in which their numbers could scarcely find turning room, and then quietly and devoutly poured forth their souls in prayer and praise and thanksgiving! No revellings, no riotings, no drunkenness, desecrated this day. We have heard from five parishes, and in none of the five have we heard of a single convivial meeting. From church and chapel they went to their homes, and eat their first free dinner with their families, putting to shame the intolerant prejudices which had prepared powder and balls, and held the Riot Act in readiness to correct their insubordinate notions of liberty!"

From the New Haven, *Ct.*, Herald.

"Barbados, Aug. 2, 1838

Yesterday's sun rose upon eight hundred thousand freemen, on whom and their ancestors the badge of slavery had rested for two hundred years. It was a solemn, delightful, most memorable day. I look upon it as a matter of exceeding thankfulness, that I have been permitted to be a witness to it, and to be able to speak from experience and from observation, of the happiness to which that day has given birth. The day had previously been set apart by proclamation of the Governor, "as a day of devout thanksgiving and praise to Almighty God for the happy termination of slavery." The thanksgiving and praise were most truly sincere, heartfelt and general. It was an emancipation not merely of the slave but of the proprietor. It was felt as such; openly acknowledged and rejoiced in as such. Never have I witnessed more apparently unfeigned expressions of satisfaction than were made on that day by the former owners of slaves, at the load of which they had been relieved.

I do not wish to be understood as asserting that previous to the working of emancipation, the slave proprietors wished the abolition of slavery. Far from it. But having, though unwillingly, been made witnesses of the operations of freedom; and having themselves tasted of the previously unknown satisfaction of employing voluntary and contented, because *free* laborers; their minds became enlightened, softened, changed: and from being the determined opposers, they became themselves the *authors* of complete emancipation. I know not in what terms to describe to you the emotions excited by passing through the streets of this populous town on that memorable morning. There was a stillness and solemnity that might be felt. It was caused by no display of force, for none was to be seen. Here and there a policeman going his usual rounds, but not a soldier, nor the slightest warlike preparation of any kind to strike the eye, or overawe the spirit of disorder.

The spirit that seemed to fill the entire population was eminently the spirit of peace, good will, thankfulness and joy too deep, too solemn,

to allow of any loud or noisy demonstration of it. Of course, all stores, shops and offices of every kind were closed. So also were all places of amusement. No sound of revelry, no evidences of nightly excess were to be heard or seen. I do not say too much when I assert that the reign of order, peace, and sobriety, was complete.

To give eclat to an event of such importance, the Governor had ordered one company of militia to attend with him at the cathedral. It is an immense building, and was crowded in every part of its spacious area, galleries and aisles, with a most attentive assemblage of people, of all colors and conditions. Several clergymen officiated, and one of them at the opening of the services read most appropriately the 58th chapter of Isaiah. Imagine for a moment the effect in such an audience, on such an occasion, where were many hundreds of emancipated slaves, of words like these:--"Is not this the fast that I have chosen, to loose the bonds of wickedness, to undo the heavy burdens, and to let the oppressed go free, and that ye break every yoke?" The sermon by the Bishop was, as might have been expected on such an occasion, interesting and impressive. He spoke with great effect of the unexpected progress of freedom, from island to island, from colony to colony, until, with a solitary exception, upon that day the stain of slavery was obliterated forever from every British possession. The progress of education, the gradual reformation of morals, and the increasing thirst for religious instruction, were all dwelt upon with great force, and the glory of all ascribed, as was most fit, to the Great Giver of every good and perfect gift. It was an occasion rich with happy emotions, and long to be remembered as a bright and beautiful spot in the pathway of our earthly pilgrimage.

The close of the day was not less auspicious than its commencement. In company with Mrs. H., I drove through several of the principal streets, and thence through the most public thoroughfare into the country; and no where could aught be seen to mar the decent and truly impressive solemnity of the day. There were no dances, no merry-making of any sort; not a solitary drunkard, not a gun fired, nor even was a shout heard to welcome in the newborn liberty. The only groups we saw were going to or returning from the different chapels and

churches: except in a few instances, where families might be seen reading or singing hymns at their own dwellings.

And now, sir, having arrived at the long looked for consummation of all the labors and prayers of the friends of the slave for so many years, as I cast my eye around this *land of liberty*, how many thoughts crowd my mind? I ask myself--is it indeed finished? And are there none to lament the downfall of time-honored, hoary-headed slavery? Where are the mourners? Where are the prognosticators of ruin, desolation, and woe? Where are the riots and disorders, the bloodshed and the burnings? The prophets and their prophecies are alike empty, vain, and unfounded, and are alike buried in oblivion.

And why, in the name of humanity, was not this glorious consummation brought about ages ago?--Is it because the slaves of 1838 are better fitted for freedom than those of fifty or a hundred years since? No one believes it. The only preparation for freedom required in this island, or any where else, in order to put a peaceful end to slavery, is the preparation of heart in the slaveholder to grant deliverance to the captive.

Yours truly,

WM. R. HAYES

P.S. August 9th.--All is quiet, and the utmost good order every where prevails."

To complete the picture we will give two extracts of letters from eminent Jamaica Attornies to their employers in England, with regard to the turning out to work. It is remarked by the English papers that the Attornies generally in writing to their employers adopt the same strain. They are all doing well on *their* estates, but hear that the rest of the island is in a woful condition.--These are the men who are the greatest, if not the only, losers by emancipation; hence their testimony is doubly valuable.

From the British Emancipator, Nov. 14.

LETTERS FROM ATTORNIES.

Extract of a Letter from an eminent Estate Attorney, in St. Mary's, Jamaica, dated August 24, 1838.

"There was nothing whatever done in this parish, or throughout the island, for the first two weeks of the month. In this quarter some estates did a little last week, and have been making more progress since, but the far greater number have not yet done any work; the minds of the people are very unsettled, and full of all sorts of foolish notions, which will continue more or less till we hear of the home government having accepted and approved of our abolition bill, and their views with regard to us.

On several of the estates which have wrought, the people have struck once or twice. We have in this parish ministers of every denomination, and they are all acting very properly; but they do not seem to have as much influence as expected; we must *be as considerate and liberal as possible to secure their confidence* ourselves. We are in St. Mary's paying the highest rate of wages in the island; 1s. 8d. currency per day nett, with allowances, are generally offered; I am giving here, from sheer necessity, 2s. 6d. currency per day, without charging any rent in the mean time. In the present state of things when so few estates are doing anything at all, I have much satisfaction in saying that the people here, on ----, a good proportion of them were at work last week, and I have now the mill about making sugar, with every probability, I think of going on satisfactorily; and looking dispassionately at the great change which has so suddenly taken place, our present difficulties are not much to be wondered at.

Sunday night, 8th Sept.--The foregoing was written, but too late, for the last packet; but as another sails to-morrow, I write you a few lines more. There is, up to this moment, but little material alteration in the state of affairs generally, certainly none for the worse. I have made here twenty hogsheads of sugar since the 1st ult. We are altogether in an uncertain state, but there are more mills about, and more work doing *in this district than in any other in the island*, which might and ought to be a feather in the cap of Maitter, our late stipe. I have no time to say more now, excepting that, although I am in great hopes that

things will soon generally improve, and am of opinion that our present difficulties are not to be wondered at, yet our situation is still so critical, that I dare not venture to hazard an opinion as to the success of the great experiment, I repeat, however, again, that we have not seen anything to disappoint or surprise us, bad as many things are."

Extract of a Letter from an Attorney in St. Mary's, Jamaica, 24th August, 1838

"The services of the stipes are much wanting here; I am paying 10s. a week for first class, 6s. 8d. for second, and 4s. 2d. for third, for five days work; they say they will not work on Fridays. However, I have got people at ---- to work today; they are behaving better than most others. I hope things will now improve; and it is my opinion that good estates will do, and others will fall to the ground. Old Mr. Tytte is dead, and his son Alexander made stipe for the district. The Governor's speech respecting women has done a great deal of harm. None of the women want to work. If Lord Glenelg had made such a mistake, he would have heard enough of it. I wish the Government would take it on themselves to settle the rate of wages, otherwise two-thirds of the estates will be thrown up before next year; of course I can stand this as well as any. The ---- people have behaved well: they did every thing I told them; they are working on piece-work, which is the best plan."

Precisely similar is the testimony of private correspondents and of the public press so far as we have been able to learn, in all the other colonies where emancipation has taken place. There is certainly nothing in all this that indicates a disposition on the part of the emancipated to throw off the employment of their former masters, but much the reverse. We may safely challenge contradiction to the assertion, that at the expiration of the jubilee there were not a set of free laborers on earth from whom the West India planters could have got more work for the same money. It may be proper in these days, when the maxims of slavery have so fearfully overshadowed the rights of man, to say that a man has a *right* to forbear laboring when he can live honestly without it--or, at all events, he has a right to choose whether he will employ himself or be employed by another. Hence it *may* turn out that the refusal to labor, so far as there has been any, only serves to prove the more clearly the fitness of the laborers of freedom.

WAGES

It must have been obvious to every man of reflection that in a change so vast, involving so many laborers, and in circumstances so various, there would arise almost infinite disputes about the rate of wages. The colonies differ widely as to the real value of labor. Some have a rich, unexhausted, and, perhaps, inexhaustible soil, and a scanty supply of laborers. Others are more populous and less fertile. The former would of course offer higher wages than the latter, for so sudden was the step there could be no common understanding on the point. Again, as we have seen, the planters came into the measure with different views. Some anticipated the general change, and either from motives of humanity or policy, or more probably of both, adopted a course calculated to gain the gratitude and good will of the laborer.--These would offer wages which the less liberal would call ruinous. Many, and it would seem the great body of them in Jamaica, yielded unwillingly to superior power. They saw the sceptre of despotic authority was to be wrested from their grasp. They threw it down, as one may easily believe, resolved to seize the best substitute they could. They would infallibly fall upon the plan of getting the greatest possible amount of work for the least possible amount of pay. When we consider that even in the oldest, most civilized, and most Christianized free-labor communities, employers are wont to combine to keep down the rate of wages, while on the other hand the laborers throw up work to raise it, we shall not be surprised that there should be things of this sort in Jamaica, liberty being in the gristle. The only help for such an evil is, that there is always a rate of wages which is advantageous to both parties, and things being left to themselves, it will at last be found.

To the planters and freed-men in settling the question what wages they should offer and receive, two standards or guides presented themselves,--1. The rate of wages which had been given in Antigua since 1834. 2. The compensation that had been demanded by the Jamaica planters themselves, and adjudged by the magistrates, in case of apprentices buying their own time. Hundreds of planters had declared upon oath what the time of the apprentice was worth to them. Possibly as sellers, in the elasticity of their consciences, they may have set a higher price than they would be willing to give as buyers. In strict honesty, however, it is difficult to see why labor should not be worth to them as much in the one case as the other. The rate

of wages fixed upon in Antigua may be seen by a reference to the Journal of Thome and Kimball to be very inadequate to the wants of the laborer. Free labor is there screwed down to the lowest possible point. The wonder is that the laborers should have submitted to such a scale for a moment. But they had no precedent to guide them, no advisers free from the yoke of the proprietary, no valuations given by their own masters, and there was every facility for successful combination on the part of the masters. They must work for such wages as the masters pleased to offer, or starve.

Say Messrs. Thome and Kimball--"*By a general understanding among the planters*, the rate is at present fixed at a *shilling* per day, or a little more than fifty cents per week, counting five working days." This Antigua scale, and not the one they themselves had sold labor by during the apprenticeship, became at once the favorite with a great part of the Jamaica and Barbados planters. If they in any cases offered higher wages, they made it up by charging higher rent for the houses and grounds, which the negroes had built and brought under culture on their properties. It was before the first of August that this procedure was resolved upon by the planters, as we gather from numerous communications in the papers recommending a variety of modes of getting labor for less than its natural market value. We select a single one of these as a specimen, by the application to which of a little arithmetic, it will be perceived that the employer would *bring the laborer in debt* to him at the end of the year, though not a moment should be lost by sickness or other casualty. The humanity of the document is perfectly of a piece with that of the system which would civilize mankind by making merchandize of them.

To the Editor of the Morning journal.

SIR,--Let meetings be held, not only in every parish, but in every district of a parish, and let all land-owners, &c., agree not to rent land under £8[[A](#)] per acre, and not to sell it for less than double that sum. Should a few be found regardless of the *general weal*, let the proprietary, &c. join and purchase such lands, and if otherwise, it is presumed the dissentients to the measure would be so small as not to affect in any material degree the *general* interest, inasmuch as those who dissented, from the consequent scarcity of land arising from the measure, would demand a high rental for their land. The *maximum* system appears to be preferable to the *minimum*. I have

therefore made choice of it as a stimulus to the laborers to work *at least* four days or thirty-six hours in the week to pay for their rent, &c. &c., *or pay 2s. 1d. for every day's absence*; or, if sick, pay up the labor by working on the Friday, &c., *and Saturday, if needful*. Weekly settlements with both parties, or *immediate summary ejectment*, if deemed necessary.

[Footnote [A](#): The sums are in the currency of the islands when not otherwise specified, that is 7s 6d to the dollar.]

	£	s.	d.
Rent of 2 acres of land as a ground for each able adult, at £5 per acre	10	0	0
Do. of house and garden, from £4 to £10 per annum, say	6	0	0
<i>Medical attendance, medicine, &c. &c., worth £4 per annum</i>	4	0	0
Clothing and Christmas allowance per annum	1	13	4
	----	----	----
		-	-
	21	13	4
	----	----	----
		-	-
Four days' or 36 hours' labor in each week, at 2s. 1d. per day, or 208 days, at 2s. 1d.	21	13	4
If task-work were adopted, or the day's labor prolonged to 10-1/2 or 12 hours' labor, 3 days' or 3-1/2 days' labor <i>would suffice</i> , consequently, the laborer would have 2 or 3 days in each week to work for extra wages.	21	13	4
In addition to the above, say pasturage for a horse, at 4s. 2d. per week per annum	10	16	8
Pasturage for an ass, at 2s. 1d. per week per annum	5	6	4
<i>Run of pasturage and fruit, for a sow, barrow, or sholt; IF RUNG IN THE NOSE, 10d. per week; IF</i>	2	3	4

NOT RUNG, 1s. 8d. *per week; per annum, at 10d.
per week*

The above charges for pasturage might be paid for either *by additional labor* or in money, and to a good head-man they might be granted as a gratuity, and perhaps an additional acre of land allowed him to cultivate. It would be desirable that the negroes should, when quite free, work 11 hours per day in the short days, and 12 hours in the longer ones. I believe the shortest day's labor in England in the winter months in 10 hours' actual labor, and 12 hours' in the summer, for which 2 hours they are paid extra wages.

St. Mary's, 8th June, 1838. S.R.

The date should not escape notice. By this plan, for a few petty indulgences, *all of which were professedly granted in the time of slavery itself*, the master could get the entire labor of the negro, and *seven or eight pounds per annum besides!* Some may be disposed to regard this as a mere joke, but we can assure them it was a serious proposal, and not more monstrous than many things that the planters are now attempting to put in practice. The idea of actually paying money wages was horrifying and intolerable to many of the planters; they seem to have exercised their utmost ingenuity to provide against so dreadful a result. One who signed himself an "Old Planter" in the *Despatch*, before the abolition of the apprenticeship, in view of the emancipation of the non-*praedials* which was to take place on the first of August, gravely wrote as follows:--

"It is my intention, therefore, when the period arrives for any arrangement with them, to offer them in return for such services, *the same time as the praedials now have*, with of course the same allowances generally, putting out of the question, however, any relaxation from labor during the day, usually allowed field laborers, and understood as shell-blow--house people being considered at all times capable of enjoying that indulgence at their pleasure, besides the impossibility of their master submitting to such an inconvenience.--This appears to me to be the only mode of arrangement that would be feasible, unless we resort to money wages, and I should regret to find that such a precedent was established in this instance, for it would

only be a forerunner to similar demands at the coming period, when the praedials became free."

There were more reasons than one why "money wages" were feared by the Jamaica planters. A great many estates are managed by attorneys for absentee proprietors. These gentlemen pocket certain commissions, for which reason they keep in cultivation estates which cannot possibly yield a profit under a system of paid labor. They deem it for their interest to retain their occupation even at the expense of their employers. Not a few conceive it for their interest to depreciate the value of property that they may purchase low, hence they deem it good policy to refuse wages, let the crops perish, and get up a panic. The documents we shall furnish will be clear on these points. The great diversity of practice in the planters in regard to wages, as well as the reasonable disposition of the laborers, is shown by the following paragraphs culled from the *Morning Journal* of August 10:--

"ST. DAVIDS.--A gentleman in the management of a property in this parish, writes in the following strain to his employer--"I have an accession of strength this morning. The people are civil and industrious. I have received letters assuring me that the example of the Cocoa Walt estate people, has been the means of inducing those on other estates to enter into the terms proposed"--that is 5s. per week, with houses, grounds, medicines, &c, &c."

"St. Thomas in the East.--The apprentices on Golden Grove Estate, turned out to work on Monday, but we have not learnt on what terms. At Mount Vernon, the property of Kenneth McPherson Esq., they turned out on Tuesday morning to work for five days in the week, at 10d. per day with houses, grounds, &c."

"Trelawny--A correspondent writes, every thing is quiet, and the people would go to work if any bargains were made, but I believe throughout the parish the people were directed to go to work on Monday morning, without any previous arrangement, or being even told how much they would be paid, or asked what they expected. On one estate 1s. 8d. with houses and grounds was offered and refused. Some of the masters are determined, it is said, to hold out, and will not consent to give more than 1s. 3d. or 1s. 8d. per day."

"St. Johns.--The people in this parish are at work on most of the estates without any agreement. They refuse the offer of 1s. 01-2d. per day, but continue to labor, relying on the honor and liberality of the planters for fair and reasonable pay. If they do not get these in two weeks, our correspondent writes, there will be a dead stop. The laborers fix the quantity of work to be done in a day, agreeable to the scale of labor approved of by the Governor during the apprenticeship. For any thing beyond that, they demand extra pay, as was usual under that system."

"St. Thomas in the Vale--No work, we understand, is being done in this parish as yet. A correspondent states that some of the overseers and attorneys wish the people to turn out to work without entering into any arrangements, which they refuse to do. The attorney for Rose Hall, Knollis, New Works, and Wallace Estates has offered 1s. 3d. per day, out of which £5 per annum is to be deducted for houses and grounds. The offer has been refused. The overseer of Byndloss estate required his people to work without agreeing as to the rate of wages they were to receive, but they refused to do any thing without a proper agreement."

"St. Mary's--On some estates in this parish we are informed, and particularly those under the charge of Richard Lewis, Esq. such as Ballard's Valley, Timperon's estates, Ellis' estates, &c. and of Charles Stewart, Esq. Trinity, Royal, Roslin Bremer Hall, &c., and also of James Geddes, Esq., the laborers are getting from 2s. 6d. to 3s. 4d. per day. The same rates are paid upon many outer properties. On many estates the people have refused to labor, and urge objections against the managers, as a reason for so acting. They remain and will engage to labor, provided the obnoxious parties are removed."

How could the people be blamed for refusing 10d. per day, while on "many properties" they were getting from 2s. 6d. to 3s. 4d.? Such being also the valuation which the masters had uniformly placed upon their time during the apprenticeship?

When the planters found that the free laborers could neither be prevailed upon to labor for half-price nor be driven to excesses by such paltry persecution, they turned their wrath, as had been long their custom, upon the Baptist Missionaries. Upon Mr. Knibb especially they laid the blame of giving mischievous advice to the peasantry. And for the obvious purpose of exciting the thousands of people warmly devoted to him, to acts of violence, they attempted to burn him in effigy and actually circulated the report that he had been murdered. Thousands of his people flocked into Spanish Town, threatening to destroy the town if the report proved true. But on learning its falsity were easily persuaded to retire, and did so without being guilty of any excess whatever. Unmeasured and unceasing have been the attacks of the Jamaica press upon the missionaries. Upon their shoulders has been laid "the ruin of that fine island."--They have corrupted the peasantry and put it in their heads to ask more wages than the estate can possibly give. To determine the value of the testimony of the missionaries in this case it is important to know the nature of their influence upon the laborers touching the question of wages. We are happily furnished with the required information from their own lips and pens in the Jamaica papers.

From the Falmouth Post.

REV. W. KNIBB'S ADVICE TO THE NEGROES.

MEETING AT THE "SUFFIELD SCHOOL-ROOM."

On Friday evening last we attended the suffield School-room, in this town, which, at an early hour was crowded with apprentices and head people, from upwards of twenty properties, who had met for the purpose of receiving advice from the Rev. Wm. Knibb, and Special Justice Lyon, respecting the course of conduct it will be necessary for them to adopt, on taking their stand in society as freemen. Several gentlemen connected with the commercial and agricultural interests of the parish were present on the occasion.

The Rev. W. Knibb commenced by saying, that he attended a meeting of a similar nature at Wilberforce Chapel, on the preceding evening. He had thought it better to request the attendance this evening of the head people, who being the more intelligent would be able to explain to others, the

advice which they would now receive themselves. "I am glad," said the Rev. Gentleman, "to see so many persons present, among whom I notice a few gentlemen who are not connected with my church: I am glad of the attendance of these gentlemen, for what I do, I do openly, and any one is at liberty to express his opinion at this meeting if he desires to do so.

You will shortly, my friends, be released from your present state of bondage; in the course of a very few weeks you will receive the boon of freedom, and I would therefore impress deeply on your minds the necessity of your continuing the cultivation of the soil on the receipt of fair and equitable wages. I am not aware myself of any complete scale of wages having been drawn up, but I have been on 10 or 12 different properties, I have conversed with several proprietors, and I am glad to say that with some of them there appears to be a disposition to meet the charge fairly and honorably. Those who are more conversant with figures than I am, will be enabled to show what the owner can afford to give for the cultivation of his property. In the mean time I would say to you, do not make any hasty bargain: take time and consider the subject, for it is one of vital interest and importance to all! If you demand too high a rate of wages, the proprietors will be ruined; if you consent to take too low a sum, you will not be able to provide for the wants of yourselves and families. In making your arrangement, if there be an attempt to grind you down, resist the attempt by all legal means; for you must consider that you are not acting for yourselves alone, but for posterity. I desire to see every vestige of slavery completely rooted out. You must work for money; you must pay money to your employers for all you receive at their hands: a fair scale of wages must be established, and you must be entirely independent of any one. If you continue to receive those allowances which have been given during slavery and apprenticeship, it will go abroad that you are not able to take care of yourselves; that your employers are obliged to provide you with these allowances to keep you from starvation; in such a case you will be nothing more than slaves.--To be free, you must be independent; you must receive money for your work; come to market with money; purchase from whom you please, and be accountable to no one but that Being above, who I hope will watch over and protect you!--I sincerely trust that proper arrangements will be made before the 1st of August.--I have spoken to nearly four thousand persons connected with my church, and I have not yet learnt that

there is any disposition among them to leave their present employers, provided they receive equitable wages. Your employer will expect from you good crops of sugar and rum; and while you labour to give him these, he must pay you such wages as will enable you to provide yourselves with wholesome food, good clothing, comfortable houses, and every other necessity of life. Your wages must be such as to enable you to do this; to contribute to the support of your church; the relief of the distressed; the education of your children, and to put by something for sickness and old age. I hail the coming of the 1st August with feelings of joy and gratitude. Oh, it will be a blessed day; a day which gives liberty to all; and my friends, I hope that the liberty which it will bring to you will be duly appreciated. I trust I may live to see the black man in the full enjoyment of every privilege with his white brethren, and that you may all so conduct yourselves as to give the lie direct to those who have affirmed that the only idea you have of liberty is that it will enable you to indulge in idle habits and licentious pursuits. When liberty casts her benignant smiles on this beautiful island, I trust that the employer and the laborer will endeavour to live on terms of friendship and good will with one another.--When the labourer receives a proper remuneration for his services--when the employer contemplates the luxuriance of his well-cultivated fields, may they both return thanks to a merciful God, for permitting the sun of liberty to shine with bright effulgence! I need scarcely assure you, my friends, that I will be at all times ready to protect your rights. I care not about the abuse with which I may probably be assailed; I am ready to meet all the obloquy and scorn of those who have been accustomed to place the most unfavourable constructions on my actions. I am willing to meet the proprietors in a spirit of candour and conciliation. I desire to see you fairly compensated for your labor; I desire also to you performing your work with cheerful industry: but I would warn you *not to be too hasty in entering into contracts*. Think seriously before you act, and remember, as I have already told you, that you have now to act not only for yourselves, but for posterity."

We give numerous documents from these gentlemen, as among the best if not the greatest part of our fellow citizens; we trust their testimony will be deemed the best that could be offered.

LETTER OF EIGHT BAPTIST MISSIONARIES.

To the Right Hon. Lord GLENELG, &c.

My Lord--We feel assured that no apology is necessary, in requesting your attention to the subject of this letter. The official connection which you hold with the colony, together with the peculiar circumstances in which its newly-emancipated population are placed, render it an imperative duty we owe to ourselves to lay before you our sentiments.

Having labored in the island for many years, and having been in daily intercourse with the objects of our solicitude, we do feel devoutly thankful to ALMIGHTY GOD, that he has spared us to see the disenthralment of our beloved flocks; while it gives us increased pleasure to assure your lordship that they received the boon with holy joy, and that the hour which made them men beheld them in thousands humbly prostrate at the footstool of mercy, imploring the blessing of HEAVEN upon themselves and their country, while, during the night and joyful day, not a single case of intoxication was seen.

To us, as their pastors, they naturally looked for advice, both as to the labor they should perform and the wages they should receive. The importance of this subject was deeply felt by us, and we were prepared to meet it with a full sense of the responsibility it involved, and happily succeeded in inducing them to accept of a sum lower than that which the representatives of the landowners had formerly asserted was fair and just.

We regret to state, that a deep combination was formed by many of these *middlemen* to grind the peasantry to the dust, and to induce, if possible, the acceptance of remuneration which, by affording no inducement to the peasant cheerfully to labor, would have entailed pauperism on him and his family, and ruin on the absentee proprietor. It was to this circumstance, and not in the least to any unwillingness in the free negro to work, or to demand more for his labor than it was fairly worth, that for one or two weeks, in some places, the cultivation of the soil was not resumed. Upon the planting attorneys, so long accustomed to tyranny and oppression, and armed with a power over the land which must prove inimical to the full development of the resources of this valuable colony, the blame entirely rests.

We suppose that your lordship is fully aware, that the laws under which the laborer is now placed are tyrannical and unjust in the extreme; laws, we

hesitate not to affirm, which are a disgrace to those who framed them, and which, if acted upon by a local magistracy, will entail upon the oft-cheated, over-patient negro some of the worst features of that degrading state of vassalage from which he has just escaped. We particularly refer to "An Act to enlarge the Powers of Justices in determining complaints between Masters and Servants, and between Masters, and Apprentices, Artificers, and others," which passed the Assembly the 3rd day of July, 1834, while by police acts, especially one regulating the town of Falmouth, our people will be daily harassed and annoyed.

We think it right to inform your lordship, that the greater part of those who hold the commission of magistrates are the very persons who, by their connection with the soil, are the most unfit, because the most interested, honestly to discharge their important duties; while their ignorance of the law is, in too many cases, equalled only by their love of tyranny and misrule. Time must work a mighty change in the views of numbers who hold this office, ere they believe there is any dereliction of duty in daily defrauding the humble African. We cannot but entreat your lordship to use those means which are in your power to obtain for the laborer, who imploringly looks to the Queen for protection, justice at the hands of those by whom the law is administered. We must, indeed, be blind to all passing events, did we not see that, without the watchful care of the home government, the country district courts, held sometimes in the very habitations of those who will have to make the complaints, will be dens of injustice and cruelty, and that our hearts will again be lacerated by the *oppressions* under which our beloved people will groan.

We beg to apprise your lordship, that we have every reason to believe that an early attempt will be made to deprive the peasantry of their provision grounds--that they will not be permitted, even to rent them; so that, by producing starvation and rendering the population entirely dependent upon foreign-supplies for the daily necessities of life, a lower rate of wages may be enforced. Cruel as this may appear to your lordship, and unlikely as it may seem, long experience has taught us that there is no possible baseness of which a slave-owner will not be guilty, and no means of accomplishing his purposes, however fraught with ruin to those around him, which he will not employ.

Should the peasantry be thus treated, we shall feel it our duty humbly to implore that the lands belonging to the crown may be made available for their use. Your lordship will remember that these ill-treated people became not the subjects of her Majesty by choice, though they are now devotedly attached to her government. Their fathers were stolen and brought hither. On their native shores they had lands and possessions capable of supplying all their wants. If, then, after having toiled without remuneration, they are prevented even renting a portion of land which has hitherto been esteemed as their own, we shall ask, and shall feel assured that the boon will not be withheld, that her Most Gracious Majesty will throw open the lands belonging to the crown, where we may retire from the tyranny of man, and with our people find a peaceful and quiet home.

Though still surrounded by obloquy and reproach, though the most abusive epithets and language disgracefully vulgar has been employed to assail us, especially by a newspaper known to be under the patronage of a bishop, and in which all official accounts of his diocese are given to the world, yet we assure your lordship that, in endeavouring to promote the general interests and welfare of this colony, we shall still pursue that line of conduct which is the result of our judgment, and in accordance with the dictates of our conscience.

In no part of the island are arrangements made so fully or so fairly, as in those districts where our congregations reside, and in no part are the laborers more faithfully performing their duty. We deeply feel our responsibility at the present crisis, and pledging ourselves to your lordship and the British Government by the sacred office we hold, we assure you that ceaseless efforts shall still be exerted, as they have ever been, to promote the peace and happiness of those around us.

In the name and on the behalf of our churches, for the sacred cause of freedom throughout the world, we unitedly implore your lordship to throw the shield of Britain's protection over those who are just made her loyal subjects. All they want, and all they ask, is, that, as they are raised to the dignity, so they may receive all the rights of man, and that the nation who purchased them from bondage may fully secure to them that civil and religious liberty, to which both their unparalleled sufferings and their unexampled patience so richly entitle them.

We cannot conclude this letter, without expressing the high sense we entertain of the noble and disinterested conduct pursued by his excellency Sir Lionel Smith, the Governor of this colony. But for his firmness, Jamaica would have presented all the horrors of a civil war.

Feeling assured that your lordship will give that attention to this letter which the subject demands, and with earnest prayer that this colony, now blest with liberty, may exhibit increasing prosperity, we are, my lord, your most obedient servants, Signed by

THOMAS BURCHELL
WILLIAM KNIBB
THOMAS ABBOTT
WALTER DENDY
JOHN CLARK
B.B. DEXTER
SAMUEL OUGHTON
J. HUTCHINS

Baptist Missionaries, North Side Union.

[On the foregoing letter the *London Sun* has the following observations.]

"Every arrival from the West Indies but strengthens our conviction, that there never will be happiness, security, or peace for the emancipated negroes, so long as the administration of the laws, and the management of the plantations, are continued in the hands of those white officials whose occupation, previous to the passing of the emancipation act, consisted in torturing and tormenting them with impunity. They cannot endure to witness the elevation to the rank of free, intelligent, and well-behaved fellow-citizens, of a class of beings whom they were accustomed to treat a myriad of times worse than they did the "beasts that perish." Having pronounced them incapable of civilization, and strangers to all the better feelings of our nature, they deem it a sort of duty to themselves to employ every artifice to neutralize or retard every measure calculated to ameliorate the moral and social condition of the negro race. Several of the colonial agents have powerful inducements to the provocation of some insurrectionary outbreak, on the part of the colored population. In the first

place, such an *emute* would fulfil their predictions with regard to the passing the Emancipation Act, and so establish their reputation as seers; and in the next, it would lead to the sale of many of the plantations at one-sixth their real value, and so transform them from agents to principles, as they would not fail to be the purchasers. That such is their policy cannot, we think, be doubted for a moment by those who will take the trouble to peruse a letter addressed by eight Baptist missionaries, long resident in Jamaica, to Lord Glenelg, which will be found in another part of *The Sun*. These missionaries, we are assured, are men of irreproachable lives, of indefatigable Christian zeal, and of conversation becoming persons whose sacred office it is to preach the gospel of peace. That their representation will produce a powerful effect upon the minds of the people of this country, we feel as confident as we do that our gracious Queen will concede any boon in her royal gift, necessary to the welfare of her colored subjects."

The following are a series of letters to Mr. Sturge, published in the British Emancipator for Nov. 28, 1838. The one from a Special Justice clearly develops the principal causes of the backwardness of the laborers. The testimony of this letter to some important facts will be fully confirmed by that of the Governor of Jamaica. The evidence of extortion submitted by the missionaries is so explicit, that we beg the attention of the reader to all the details. Remember the experiment involves the claims of millions to that without which life is little better than a curse. Every thing hangs on the inquiry whether the emancipated or their former masters are chargeable with whatever there is of *ruin* in the "fine island" of Jamaica. Says Mr. Sturge, in laying these letters before the public, "it should be clearly understood that the fee simple of all negro houses in Jamaica is not worth £10 each on an average, and that their provision grounds have been brought into cultivation by the negroes themselves in their *own* time."

Extract of a letter from a Missionary:--

Savannah-la-Mar, Sept. 8, 1838.

MY DEAR SIR,--You are probably aware that the following question has been submitted by the Governor to the Attorney-General for his opinion:

(copy.)

(No. 844.) King' House, Aug. 27, 1838.

SIR,--I am desired by the Governor to request you will give your opinion for general publication. 1st. Whether in instances of notices to quit their houses and grounds, having been served upon the late apprentices, they are liable to be made to pay rent for the occupation of such house, during the three months allowed by law?

(OPINION.)

They are.

(Signed,)

D O'REILL.

We shall soon see the evil effects of this opinion, it being generally previously understood that the late apprenticed population would not be liable for rent until the three months had expired, after receiving notice to quit.

As a specimen of this being made an instrument of great oppression in the hands of managers of estates, I would state that two notices were yesterday brought to brother Hutchins for his inspection; one was served upon David Clarke, a labourer, on King's Valley estate, in this parish. On the back of the notice to quit was written as under;--

"The rent of your house and grounds is twenty-one pounds six shillings and eight pence, per annum, commencing 1st of August, 1838, if legal."

(Signed) J. H. JONES.

Mr. Sturge appends the following West India accounts, which he says are in his possession by which it is evident that the planters are bringing their laborers in debt to them, by a spirit of shameless extortion.

	£	s.	d.
Charles Duncan to John Dixon, Dr. 1838. Sept.			
15. To rent of house and ground, from 1st of			9-
August to date, 6s. 8d. per week.	2	3	1/2
Cr. By balance, five days, 1s.8d. per day	0	8	4

	----	----
	--	-
	1	15 5-
		1/2

Charles Brown, to John Dixon, Dr. 1838. Sept. 13.

To rent of house and ground, 6s. 8d. per week, from 1st Aug, to date.	2	1	10
--	---	---	----

Charge for running a sow and pigs, from 1st Aug. to date, 2s. 6d. per week			8-
	0	15	1/2

	----	----
	--	-
	2	17 6-
		1/2

John Alfred Bullock to John Dixon, Dr. 1838.

Sept. 15. To rent of house and garden, from 1st of Aug. to date, 6s. 8d. per week,			9-
	2	3	1/2

Rent of provision ground, 5s. per week,	1	12	6
---	---	----	---

Pasturage, two weeks, for an ass, 6s. 3d, per month,	0	3	4
---	---	---	---

Two hogs, 1s. 8d. per week,			10-
	1	1	3/4

	----	----	
	--	-	
	5	1 6-	
		1/4	
Cr. By two days' labour, 1s. 8d. per day	0	3	4

	----	----
	--	-
	4	18 2-
		1/3

LETTER TO MR. STURGE, FROM A SPECIAL JUSTICE.

Jamaica, Oct. 12th, 1838.

Freedom has brought with it the blessings we anticipated; and as we progress in civilization we shall all be happier. I have ever been sanguine as

to its beneficial results, and I am not in the least disappointed. I cannot find language sufficiently strong to express the commendation due to the negroes for their steady and good conduct since the 1st of August. Amidst the most trying circumstance, they have exhibited the greatest forbearance, and placed their whole reliance on the laws for protection. I am satisfied that no other nation of free men could conduct themselves so temperately and well, under similar circumstances; and in my opinion, they have proved themselves infinitely superior to many of those who so lately exercised almost unlimited control over them. I declare to you, to see such a mass of persons, whose morals have been little regarded by those who held them in slavery, and without education, rise all at once, and express and conduct themselves so admirably, is wonderful. When seeking redress before the magistrates for wrongs committed by their former owners they have maintained more coolness and temper than their more fortunate brethren, when matters are decided against them. There is a hard struggle on the part of the pro-slavery faction to compel the negro to work for little or nothing, in order that the attorneys and overseers may keep their places as before; and I am informed, by a gentleman whose veracity is not to be doubted, and who is himself an attorney, that he can still keep his overseer and merchant as in former days, draw his own commissions, and send home to his employer a very handsome surplus. Under such circumstances, well may the friends of freedom cry shame at the opposition which has for so long a time been thrown in the way of liberty, by these West Indians of practical knowledge. The facts are, that the absent proprietors have been led by the advice they have received from their attorneys; and these have had so many ways of making more than an honest commission, and have so speedily made their fortunes, that as long as they could continue slavery, they have exerted every influence. The overseer was paid, housed, fed, and waited upon, all at the expense of master and slave, beside; keeping a fine stud of horses, and as many brood mares at pasture on the property as would enable him to dispose of seven or eight prime mules annually; and so long as he drove and tormented the poor negro, and made good crops for the attorney's commissions, and supplied his horses with corn, these *little perquisites* were never discovered. Now the proprietor will hardly pay for more labor than is absolutely necessary to grow and manufacture the produce of his estate; and these gentlemen must henceforth look to their own resources, for the payment of servants to attend and take care of their own interests and

comforts. An overseer's situation on an estate making 300 hogsheads, was calculated in slavery to be equal to 2000l. a year. Indeed no man in any town could have lived in such luxury for that sum. If the proprietor would only come out, and live prudently, he would save all this by residing on his property, which he could easily manage by employing, for extra wages, his former steady head people. *They*, from long residence, know the best manner of working the land; and, as to the manufacture of sugar, they are the persons who have *all their lives* been working at it. The most important part of an overseer and book-keeper's business was to make use of their eyes. The negro had to make use of his legs, arms and strength; and, in nine cases out of ten, his brains kept the white people in their situations, by preventing matters from going wrong.

I perfectly coincide with you, as to the propriety of the negro speedily becoming possessed of the elective franchise. In Antigua there is very little more land than is in cultivation for the estates, but here it is widely different; and they are beginning to settle themselves by purchasing small lots very fast. At Sligoville there are nearly fifty new freeholders. The negroes are taught to do this by the perpetual worry of their employers, threatening to oust them on every trifling occasion, and withholding part of their wages on the plea of non-performance of work.--The root of all evil is the Assembly and the Juries. Nothing requires greater alteration; and I shall never rest, until I see the black man stand the same chance at the bar of his country as the white man.--The negroes will not work under their former hard task-masters. They determinedly resist all solicitations to labor with those who treated them ill. They say that the pain is gone, but the mark remains, and I respect them for this proud feeling.

* * * *

I have come under his displeasure for taking the opinion of Middleton and McDougal, as to the legality of charging the negro hire for his house and grounds, for the three months during which the notices to quit are running.--Had we not taken these opinions, what a fearful state things might we have been brought to in this country! I am quite satisfied that no rent could be recovered until the expiration of the three months, from which time it would commence to run, and the plaintiff would in law be considered in

possession of his lands again, which, in slavery, he was compelled to give to his slave for his support and maintenance. He must re-enter before he could demand rent, for it is impossible for him to prove a contract, or imply one. The negro did not willingly come from Africa, and occupy his land; he was torn from his native land, and compelled by his owner, under laws that took his life, not to quit the land; how therefore can he be considered to have made a contract, or consented to one?

FROM THE REV. J. KINGDON

Manchioneal, Oct. 9, 1838.

In passing through Hector's River great house yard, in my way to my preaching spot, I have the most sensible demonstration of the reality of the political change happily brought about; for that hot-house, in which I have seen one of my own members in irons for having a bad sore leg, and in which I have been grossly insulted for daring to go to see my poor people--that house is *shut up*! Delightful, I assure you, are my feelings, whenever I go by that place, attached to which, too, was the old-time prison, a perfect charnel-house.

FROM THE REV. S. OUGHTON.

Lucea, October 2, 1838.

Unused to acts of justice and humanity, the Planters, in a moment of mad excitement passed an act to abolish the accursed system of Slavery. The debates on that occasion proved with what an ill grace they performed that scanty act of justice, and all experience since that period proves how bitterly they repent it. It is true, we are not now, as before, distressed by hearing recitals of barbarous corporeal punishments, and we are no longer pained by seeing human beings chained to each other by the neck; but, although cruelty has, to a certain extent, ceased, oppression has become ten thousand times more rampant than ever. Every act which ingenuity or malice can invent, is employed to harass the poor negroes. Prior to August 1st, the planter studiously avoided every thing like an arrangement with the laborer, and when, on the following Monday, they turned out to work, the paltry pittance of 12-1/2d. (7-1/2d. sterl.) was all that in the majority of cases was offered for the services of an able-bodied negro, although 2s. 6d.

per day (currency), had before been invariably exacted from them, when they were desirous of purchasing the remaining term of their apprenticeship. Of course, the people refused to receive so paltry a remuneration for their labour, and this has laid the foundation for a course of systematic oppression scarcely conceivable. Notices to quit were served indiscriminately on every one, old and young, sick and healthy. Medical attendance was refused, and even a dose of physic from the Estates' hospitals. Cattle were turned into the provision-grounds of the negroes, thus destroying their only means of support; and assaults of the most wanton and brutal description were committed on many of the peasantry. On one estate the proprietor and his brother assaulted a young man in the most unprovoked manner. One presented a pistol to his breast, and threatened to shoot him; while the other levelled a gun at his head for the same purpose. They were bound over to take their trial at the Quarter Sessions; but what hope is there in such a tribunal as that, composed principally of men engaged in the same reckless course, and banded together by mutual interests? On another estate (*Content*), the attorney ordered the cattle of a poor man (a member of my Chapel) to be taken up and impounded. It was done, and the man was obliged to pay 6l. to redeem them; when, as soon as he carried them back, they were again taken and impounded. The man has been to my house with his case of oppression, on my return from Kingston. He states that he exhausted his last farthing to redeem the cattle the first time, and was also obliged to borrow of his friends; they have now been impounded five weeks, and unless he can raise the money to redeem them (upwards of 10l.), they will be sold to pay the expenses. Thus is an honest and worthy man, in a few weeks, stripped of every thing which, by years of industry and care, he had accumulated for the comfort of his old age, or the benefit of his family. Yesterday a negro came and informed me that the owner of a property had told him last year, that he must cultivate more ground, so as to be able to continue possession as a tenant; and now that he has done so, another person, saying that he had purchased the property, came a few days ago, and told him that in three weeks he would drive him from the place. He then ordered a man whom he had with him to climb a bread-fruit tree, and pull the fruit, which he forcibly carried away to give to his hogs. But I must forbear: were I to state half the cases of oppression which have occurred in Hanover since August 1st; I should require a volume instead of a sheet. I think, however, I have said enough to prove the

bitter and rancorous spirit which at present animates the planters. Enclosed I send a specimen of another artifice adopted to harass and distress the negroes. They have adopted the notion (sanctioned by the opinion of the old Planters' Jackall, Batty, and the Attorney General), that the people are liable to pay rent for houses and grounds during the three months' possession to which the Abolition Act entitled them, and notices have been served on the people, demanding the most extravagant amounts for the miserable sheds which the people inhabited. You will perceive that in once case 21l. 6s. 9d. has been demanded. This conscientious demand was made by John Houghton James, Executor and Attorney for Sir Simon Clark. Another is from a Mr. Bowen, of *Orchard Estate*; and the third from Mr. Brockett, of *Hopewell* and *Content* Estates, the property of Mr. Miles, M.P. for Bristol. Let it be borne in mind that these shameful and exorbitant demands are not made, as in England, on the head of the family only, but on *every member who is able to do the least work*, and even little children have papers demanding 2s. 4d. per week for ground, although unable to do the least thing: one of these I also enclose.

Jamaica, ss. Notice is hereby Given, That the sum of eight shillings and four pence, weekly, will be exacted from you and each of you respectively, for the houses and grounds at Orchard Estate, in the parish of Hanover, from August of the present year, until the expiration of the three months' notice, from its period of service to quit; or to the period of surrendering to me the peaceable possession of the aforesaid house and provision grounds.

J. R. BOWEN.

Dated this 17th day of Sep. 1838.

TO JAMES DARLING and SARAH DARLING, of the parish of HANOVER.

Here then, my dear Sir, you may perceive something of the atrocious proceedings in the island of Jamaica. Pray insert these documents in the *Emancipator*. Let the Anti-slavery friends know the state of things, and urge them to redoubled diligence. The House of Assembly will meet on the 30th instant, and then, I fear, dreadful measures will be taken. A letter from Mr. Harker, of the Jamaica Royal Gazette, about a fortnight since, addressed to Mr. Abbott, shows what absolute and cruel statutes they would wish either

to act upon, or to make the models of new laws. Every act must be watched with the most jealous scrutiny. Experience shows that the planters possess an ingenuity truly diabolical, in twisting and distorting the laws to suit their own selfish purpose. Our hope is in British Christians; and we confidently hope every one of them will feel the importance of increased diligence, lest the great, and long prayed-for boon of freedom, should become a curse, instead of a blessing. The papers will inform you of the odium I have drawn on myself in defending the people's rights. That contained in the great mass, only provokes a smile. I know that every friend in England will interpret it inversely. I did feel Mr. ----'s letter in the Falmouth Post, but he knows his error, and is sorry for it. I could have answered it, but did not choose to cause a division amongst the few friends of the negro, when they had quite enough to do to withstand the attacks of their enemies.

FROM THE REV. J. M. PHILIPPO.

Spanish Town, Oct. 13, 1838.

The following is one of the seven of the same tenor now in my possession, which will, in addition to those I forwarded by last mail, inform you of the cause of the late disinclination of the people in some districts to labour--which, with so much effrontery, has been proclaimed through the public Journals here:--

Charles Michael Kelly and Wife, to J.S. Benbow, Dr.

1830: July 14th to Sept. 9th.

1. To the rent of house and ground on Castle Kelly plantation, for eight weeks, at 6s. 8d. per week. 3l. 13 4
2. Richard Kelly and Wife. Same.
3. Elenor Mercer. Same.
4. John Ried and Wife. Same.
5. Mary Ann Christie. Same.
6. Venus Owen (or such like name). Same.

FROM THE REV. J. HUTCHINS.

Savanna-la-Mar, Sept. 17, 1838.

I now, according to promise in my last, send you a few out of the many cases I am almost hourly troubled with. Some of our would-be great men are, I am sorry to say, harassing the poor free labourers shamefully; and should it prove, as I think in some cases it must, of serious injury to the absentee proprietors, I shall publish the cases of grievance brought me, together with the names of the estates, owners, attorneys, overseers, &c., and leave all parties to form their own opinion on the subject.

Amelia Martin, to Retrieve Estate, Dr.

1838: August 29.

To house and ground, rent at 5s. per week, from 1st

August to date

4l. 0 0

[A]Alliac Davis, ground rent at 10d. per week

3 0

[A]William Davis; ditto ditto

0 3 4

--- --- ---

- - -

4l. 6 4

--- --- ---

- - -

Thos. Tats, Esq. is Attorney, and Mr. Comry
Overseer,

[Footnote A: Boys from 9 to 11, her sons.]

* * * * *

Louisa Patter, to Retrieve Estate, Dr.

1838: Aug. 28.

To house and ground from 1st Aug. to date

1l. 0 0

She states she has been sickly so long, that she has no ground in cultivation, and cannot help herself, and has only what yams her friends give her.

* * * * *

Susan James, to Albany Estate, Dr.
1838: Aug. 28.

To house and ground rent at 5s. per week, from 1st August, to date	1l.	0	0
Thos. Hewett, ground rent	0	13	4
Elizabeth James, ditto	0	13	4
Mary Dunn, ditto	0	10	0
Letitia, ditto[A]	0	6	8
	---	---	---
	-	-	-
	3l.	3	4
	---	---	---
	-	-	-

[Footnote [A](#): These are a mother and four children in one house, and with but one ground, they tell me.]

* * * * *

Richard Warren, to Albany Estate, Dr.
1838: Aug. 28.

To house and ground rent to date	1l.	0	0
Wife	0	15	4
Child[B]	0	10	0
	----	----	----
	2l.	5	4
	----	----	----

[Footnote [B](#): The child is quite young, and in daily attendance at one of my schools.]

* * * * *

On this property, under the same managers as Retrieve, the people state that they are going on shamefully. "The last Sabbath but one, when we were at service, Stephen Campbell, the book-keeper, and Edward Pulsey, old-time constable, come round and mark all for we house, and charge for ebery one of we family. We don't know what kind of *fee dis* we *hab* at all; for we attorney, Mr. Tate, neber come on we property, leave all to Mr. Comeoy. We peak to him for make bargain, him say him can't make law, and him no make bargain till him heare what law come out in packet. Him say *dem* who make bargain are fools; beside him no call up a parcel of niggers to hold service wid me; should only get laughed at. So we know not what for do. You are for we minister, and for we only friend; and if you did not advise we to go on work till things settle down, we no lift another hoe. We would left the property." Unless an arrangement is soon entered into, I shall advise them to do so.

James Greenheld, to New Galloway Estate, Dr.

To one week's rent of house, garden, and ground, and
to 5 ditto for his wife, Margaret Greenfield, at 5s. per
week. £1 100

J.G. states, "I come for massa. When we make bargain with Mr. McNeal, it was a macaroni (1s. 8d.) a day, and for we house and ground. Me is able and willing for work, so let my wife stop home; so him charge me de same sum for my wife, as for me own house and ground. And den last week me sick and get no money, and they charge me over again, (as above) one week me sick. Me no able for say what to call dat massa, me sure."

I leave with you to make your own comments, and to do what you please with the above. Although my chapel is £700 in debt, and my schools, one of 180 and one of 160 scholars, are heavy, very heavy on me, I cannot do other than advise my people to save every mite, buy an acre of land, and by that means be independent, and job about wherever they may be wanted.

FROM THE REV. T. BURCHELL.

Montego Bay, October 2, 1838.

The reason why I have not written to you so long, is the intensely anxious time we have had. I feel, however, that it is high time now to address you; for, if our friends in England relax their efforts, my conviction is, that freedom will be more in name than in reality, in this slave-holding Island. There is nothing to be feared, if the noble band of friends who have so long and so successfully struggled, will but continue their assistance a short time longer. The planters have made a desperate struggle, and so, I have no doubt, will the House of Assembly, against the emancipated negroes. My firm conviction has been, and still is, that the planters have endeavored, by the offer of the most paltry wages, to reduce the condition of the laborer, and make him as badly off as he was when an apprentice or a slave, that he may curse the day that made him free.

Though unable to conduct the usual services on Sunday the 5th August, at the close I addressed the congregation, urging upon them the necessity of commencing their work on the following day, whether arrangements were made between themselves and their masters or not; as by so doing they would put it out of the power of their opponents to say anything evil of them. They assembled, and on Monday the 6th thousands turned out to work, and continued to labor, unless prevented by the Manager, until arrangements were made.

You will remember, that prior to the 1st of August, a white man who hired out a gang of apprentices to an estate was paid at the rate of 1s. 6d. sterling per diem for each able laborer. The apprentice received the same when he worked for the estate on his own days, Friday and Saturday; and whenever they were valued for the purpose of purchasing the remaining time of their apprenticeship, the planter upon oath stated that their services were worth at least 1s. 6. per diem to the estate, and the apprentice had to redeem himself at that rate.

After the 1st of August, the planters discovered, that, whilst the properties would well afford to continue the lavish and extravagant expenditure in managing the estates, "it would be certain ruin to the properties, if the labourer was paid more than 7 1/2d. per diem. for the 1st class of labourers, 6d. the 2nd class, and 4 1/2d. for the 3rd class:" and why? I know not why, unless it was because the long oppressed negro was to put the money into his own pocket, and not his white oppressors. This seems to have made all

the difference. The above wages were accordingly offered, and rejected with scorn; the people feeling the greatest indignation at the atrocious attempt of their old oppressors to grind them down now they are free, and keep them in a state of degradation. The greatest confusion and disorder ensued; the labourers indignant at the conduct of their masters, and the planters enraged against the people, for presuming to think and act for themselves. As a matter of course, the fury of the planters was directed against half a dozen Baptist missionaries, and as many more friends and stipendiary Magistrates; and I can assure you that the Jamaica press equalled its most vituperative days, and came forth worthy of itself. The Despatch, or the Old Jamaica Courant, so well known in 1832 for advocating the burning of chapels, and the hanging of missionaries; was quite in the shade. The pious Polypheme, the Bishop's paper, with the Jamaica Standard of infamy and falsehood, published in this town, took the lead, and a pretty standard it is. Let foreigners judge of Jamaica by the Jamaica Standard of August last, and they must suppose it is an island of savages, or a little hell. The press teemed with abuse of the most savage nature against us, and published the most barefaced lies. That, however, you who know the generality of the Jamaica Press, will say is nothing new or strange; well, it is not, nor do we regard any statements they make; for no one believes what they publish, and it is a source of gratification to us that we have never forfeited our character or principles in the estimation of the reflecting, the philanthropist, or the Christian public, by meriting their approbation.

In the mulct of this seemingly general conspiracy to defraud the laborer of his wages by exorbitant rents, &c. Sir Lionel Smith, the Governor, proceeds from district to district, giving advice to both of the contending parties, and striving to promote a mutual understanding. His testimony to the designs of the planters given to their faces, and not denied, is very important; we give therefore one of his meetings, as the find it reported in the Jamaica papers. Here is a rather familiar conversation among some of the chief men of that island--where can we expect to find more authoritative testimony?

SIR LIONEL SMITH'S VISIT TO DUNSINANE.

His Excellency, Sir Lionel Smith, visited Dunsinane on Thursday last, agreeably to arrangements previously entered into, for the purpose of

addressing the late apprenticed population in that neighborhood, on the propriety of resuming the cultivation of the soil. About two miles from Dunsinane, his Excellency was met by a cavalcade composed of the late apprentices, who were preceded by Messrs. Bourne, Hamilton, and Kent, late Special Justices. On the arrival of his Excellency at Dunsinane, he was met by the Hon. Joseph Gordon, Custos, the Lord Bishop attended by his Secretary, and the Rev. Alexander Campbell; the Hon. Hector Mitchel, Mayor of Kingston, and a large number of highly respectable planters, proprietors, and attorneys. His Excellency, on being seated in the dwelling, said, that from information which he had received from other parishes, and facts gathered from personal observation, he believed that the same bone of contention existed there as elsewhere--a source of discontent brought about by the planters serving the people with notices to quit their houses and grounds. He did not question their right to do so, or the legality of such a proceeding, but he questioned the prudence of the step. The great change from slavery to unrestricted freedom surely deserved some consideration. Things cannot so soon be quiet and calm. Depend upon it, nothing will be done by force. Much may be by conciliation and prudence. Do away with every emblem of slavery; throw off the Kilmarnock cap, and adopt in its stead, like rational men, Britannia's cap of liberty. He (Sir Lionel) doubted not the right of the planters to rent their houses and grounds; in order to be more certain on that head, he had procured the opinion of the Attorney General; but the exercise of the right by the planter, and getting the people to work, were very different matters. Much difficulty must be felt in getting rid of slavery. Even in the little island of Antigua, it had taken six months to get matters into a quiet state; but here, in a large country like Jamaica, could it be expected to be done in a day, and was it because it was not done, that the planters were to be opposed to him? You are all in arms against me (said his Excellency,) but all I ask of you is to exercise patience, and all will be right. I have done, and am doing all in my power for the good of my country. If you have served the people with notices to quit, with a view to compel them to work, or thinking to force them to work for a certain rate of wages, you have done wrong. Coercive measures will never succeed. In Vere, which I lately visited, the planters have agreed to give the people 1s. 8d. per day, and to let them have their houses and grounds for three months free of charge. His Excellency, on seeing some symptoms of disapprobation manifested, said, Well, if you cannot afford to pay so much, pay what you

can afford; but above all, use conciliatory measures, and I have not a doubt on my mind but that the people will go to their work. Seeing so many planters present, he should be happy if they would come to an arrangement among themselves, before he addressed the people outside.

Mr. WELLWOOD HYSLOP remarked, that Vere and other rich sugar parishes might be able to pay high rates of wages, because the land yielded profitable crops, but in this district it was impossible to follow the example of those parishes. He thought that two bits a day might do very well, but that was as much as could be afforded.

His EXCELLENCY said that in Manchester, where he believed he had more enemies than in any other parish, he had advised them to work by the piece, and it had been found to answer well.

Mr. HINTON EAST said that he would submit a measure which he thought would be approved of. He proposed that the people should be paid 5s. for four days' labor; that if they cleaned more than 130 trees per day, either themselves or by bringing out their wives and children, they should be paid extra wages in the same proportion.

Mr. ANDREW SIMPSON said that he could not afford to pay the rates named by his Excellency. It was entirely out of the question; that a good deal depended upon the state the fields are in--that his people, for instance, could, with much ease, if they chose, clean 170 trees by half-past three o'clock.

Mr. MASON, of St. George's, said he was willing to pay his people 1s. 8d. per day, if they would but work; but the fact was that they refused to do so, on account of the stories that had been told them by Special Justice Fishbourne; willingly too would I have given them their houses and grounds for three months, free of charge, had they shown a desire to labor; but what was the lamentable fact? the people would not work, because Mr. Fishbourne had influenced them not to do so, and he (Mr. Mason) had been a loser of one thousand pounds in consequence. He had been compelled in self-defence to issue summonses against two of his people. He had purchased his property--it was his all--he had sacrificed twenty of the best years of his life as a planter, he had a wife and family to support, and what was the prospect before him and them? He admitted having served notices

on his people to quit their houses--in truth he did not now care whether they were or were not located on the property--he was willing to pay fair, nay, high wages, but the demand was exorbitant. He had a servant, a trustworthy white man, who laboured from day-dawn to sunset for 2s. 1d. per day, and he was quite satisfied. All the mischief in his district had been owing to the poisonous stories poured into the ears of the people by Special Justice Fishbourne. If he were removed, the parish might probably assume a healthy state; if allowed to remain, no improvement could possibly take place.

His EXCELLENCY said that the Assembly had passed a law preventing the special magistrates from going on the estates; they could not, however, prevent the people from going to them, and taking their advice if they wished it. He had understood that the people had gone to the special magistrates, informing them that the planters demanded 3s. 4d. per week rent for the houses and grounds, and that they had been advised, if such were the case, that they ought to be paid higher wages. He understood that to be a fact.

Mr. ANDREW SIMPSON said that the people would, he had no doubt, have worked, but for the pernicious advice of Mr. Fishbourne. He had heard that the people had been told that the Governor did not wish them to work, and that he would be vexed with them if they did.

Sir LIONEL replied that he was aware that white men were going about the country disguised as policemen, pretending to have his (Sir Lionel's) authority, telling the people not to work. He knew well their intention and design, he understood the trick. You are anxious (said his Excellency) to produce a panic, to reduce the value of property, to create dismay, in order that you may speculate, by reducing the present value of property; but you will be disappointed, notwithstanding a press sends forth daily abuse against me, and black-guard and contemptible remarks against my acts. I assure you I am up to your tricks.

Mr. ANDREW SIMPSON would be glad if his Excellency would speak individually. There was a paper called the West Indian, and another the Colonial Freeman. He wished to know whether his Excellency meant either

of those papers. [Some slight interruption here took place, several gentlemen speaking at the same time.]

His EXCELLENCY said he had not come to discuss politics, but to endeavour to get the people to work, and it would be well for them to turn their attention to that subject.

Mr. SIMPSON said he had a gang who had jobbed by the acre, and had done well, but it was unfortunate in other respects to observe the disinclination shown by the laborers to work. He wished them to know that they must work, and trusted that his Excellency would endeavour to force them to labor.

Sir LIONEL--I can't compel them to do as you would wish, nor have I the power of forcing them to labor. The people will not suffer themselves to be driven by means of the cart-whip. It is the policy of every man to make the best bargain he can. I can say nothing to the people about houses and grounds, and price of wages. I can only ask them to work.

Mr. WILES said that the planters were anxious to come to amicable arrangements with the people, but they were unreasonable in their demands. The planters could not consent to be injured--they must profit by their properties.

Mr. MASON said, that the only bone of contention was the subject of rent. His people were outside waiting to be satisfied on that head. He hesitated not to say, that the proprietors were entitled to rent in every instance where the laborer was unwilling to labor, and unless that subject was at once settled, it would involve both parties in endless disagreement. He was not one of those persons alluded to by his Excellency, who circulated misrepresentations for private benefit, nor was he aware that any one in the parish in which he lived had done so. All that he desired was the good of the country, with which his interests were identified.

Sir LIONEL--I could not possibly be personal towards any gentleman present, for I have not the honour of knowing most of you. My observations were not confined to any particular parish, but to the Island of Jamaica, in which the occurrences named have taken place.

Dr. RAPKY, of St. George's--If your Excellency will only do away with a curtain magistrate, things will go on smoothly in the parish of St. George. This gentleman has told the people that they are entitled to the lands occupied by them, in consequence of which the parish is now in an unsettled state.

Sir LIONEL--Who is the magistrate!

Dr. RAPKY--Mr. Fishbourne.

Sir LIONEL--I am afraid I cannot please you. The question of possession of lands and houses has for the present been settled by the opinion of the Attorney-General, but it is still an undetermined question at law. There are many persons in the island who are of opinion that the legislature had not so intended; he (Sir Lionel) was at a loss to know what they meant; seeing, however, some members of the assembly present, perhaps they would be disposed to give some information.

Mr. S.J. DALLAS said, that it was the intention of the legislature that rent should be paid. He thought it fair that 1s. 8d. per day should be offered the people to work five days in the week, they returning one day's labor for the houses and grounds.

Mr. SPECIAL JUSTICE HAMILTON said that complaints had been made to him, that in many instances where the husband and wife lived in the same house, rent had been demanded of both. The laborers had, in consequence, been thrown into a state of consternation and alarm, which accounted for the unsettled state of several properties--a serious bone of contention had in consequence been produced. He held a notice in his hand demanding of a laborer the enormous sum of 10s. per week for house and ground. He had seen other notices in which 6s, 8d. and 5s. had been demanded for the same. He did not consider that the parties issuing those notices had acted with prudence.

Mr. HYSLOP explained--He admitted the charge, but said that the sum was never intended to be exacted.

Sir LIONEL said he was aware of what was going on; he had heard of it. "It was a policy which ought no longer to be pursued."

We have given the foregoing documents, full and ungarbled, that our readers might fairly judge for themselves. We have not picked here a sentence and there a sentence, but let the Governor, the Assembly, the Missionaries, and the press tell their whole story. Let them be read, compared, and weighed.

We might indefinitely prolong our extracts from the West India papers to show, not only in regard to the important island of Jamaica, but Barbados and several other colonies, that the former masters are alone guilty of the non-working of the emancipated, so far as they refuse to work. But we think we have already produced proof enough to establish the following points:--

1. That there was a strong predisposition on the part of the Jamaica planters to defraud their labourers of their wages. They hoped that by yielding, before they were driven quite to the last extremity, by the tide of public sentiment in England, they should escape from all philanthropic interference and surveillance, and be able to bring the faces of their unyoked peasantry to the grindstone of inadequate wages.
2. That the emancipated were not only peaceful in their new freedom, but ready to grant an amnesty of all past abuses, and enter cheerfully into the employ of their former masters for reasonable wages. That in cases where disagreement has arisen as to the rate of daily or weekly wages, the labourers have been ready to engage in task work, to be paid by the piece, and have laboured so efficiently and profitably--proving a strong disposition for industry and the acquisition of property.
3. That in the face of this good disposition of the laborers, the planters have, in many cases, refused to give adequate wages.
4. That in still more numerous cases, including many in which the wages have been apparently liberal, enormous extortion has been practiced upon the laborer, in the form of rent demanded for his hovel and provision patch--£20 per annum being demanded for a shanty not worth half that money, and rent being frequently demanded from *every member* of a family more than should have been taken from the whole.
5. That the negroes are able to look out for their own interest, and have very distinct ideas of their own about the value of money and the worth of their

labour, as well as the best methods of bringing their employers to reasonable terms. On this point we might have made a still stronger case by quoting from the Despatch and Standard, which assert numerous instances in which the labourers have refused to work for wages recommended to them by the Governor, Special Magistrates, or Missionaries, though they offered to work for 3s. 4d., 5s., or a dollar a day. They are shown to be rare bargain-makers and not easily trapped.

6. That the attorneys and managers have deliberately endeavoured to raise a panic, whereby property might be depreciated to their own advantage; showing clearly thereby, that they consider Jamaica property, even with the laborers, irreclaimably free, a desirable investment.

7. That in spite of all their efforts, the great body of the laborers continue industrious, doing more work in the same time than in slavery. *The testimony to his very important point, of the Governor and House of Assembly, is perfectly conclusive*, as we have already said. A house that represents the very men who, in 1832, burnt the missionary chapels, and defied the British Parliament with the threat, that in case it proceeded to legislate Abolition, Jamaica would attach herself to the United States, now HOPES for the agricultural prosperity of the island! Indeed no one in Jamaica expresses a doubt on this subject, who does not obviously do so *for the sake of buying land to better advantage!* Were the colony a shade worse off than before Emancipation, either in fact or in the opinion of its landholders, or of any considerable portion of persons acquainted with it, the inevitable consequence would be a depreciation of *real estate*. But what is the fact? said Rev. John Clark, a Jamaica Baptist Missionary, who has visited this country since the first of August, in a letter published in the Journal of Commerce:--

"The Island of Jamaica is not in the deplorable state set forth by your correspondent.--Land is rising in value so rapidly, that what was bought five years ago at 3 dollars per acre, is now selling for 15 dollars; and this in the interior of the Island, in a parish not reckoned the most healthy, and sixteen miles distant from the nearest town. Crops are better than in the days of slavery--extra labour is easily obtained where kindness and justice are exercised towards the people. The hopes of proprietors are great, and larger

sums are being offered for estates than were offered previous to August, 1834, when estates, and negroes upon them, were disposed of together."

Again, as in Jamaica commerce rests wholly upon agriculture, *its* institutions can only flourish in a flourishing condition of the latter.--What then are we to infer from an imposing prospectus which appears in the island papers, commencing thus:--

"Kingston, October 26, 1838

Jamaica Marine, Fire, and Life Assurance Company.

Capital £100,000,

In 5000 shares of £20 each.

It has been long a matter of astonishment that, in a community so essentially mercantile as Jamaica, no Company should have been formed for the purpose of effecting Insurance on Life and Property; although it cannot be doubted for an instant, that not only would such an establishment be highly useful to all classes of the community, but that it must yield a handsome return to such persons as may be inclined to invest their money in it," &c.

Farther down in the prospectus we are told--"It may here be stated, that the scheme for the formation of this Company has been mentioned to some of the principal Merchants and *Gentlemen of the Country*, and has met with decidedly favourable notice: and it is expected that the shares, a large number of which have been already taken, will be rapidly disposed of."

The same paper, the Morning Journal, from which we make this extract, informs us: Nov. 2d--

"The shares subscribed for yesterday, in the Marine Fire and Life Insurance Company, we understand, amount to the almost unprecedented number of One Thousand Six Hundred, with a number of applicants whose names have not been added to the list."

The Morning Journal of October 20th in remarking upon this project says:--

"Jamaica is now happily a free country; she contains within herself the means of becoming prosperous. Let her sons develop those resources which Lord Belmore with so much truth declared never would be developed *until slavery had ceased*. She has her Banks.--Give her, in addition, her Loan Society, her Marine, Fire, and life Assurance Company, and some others that will shortly be proposed, and capital will flow in from other countries--property will acquire a value in the market, that will increase with the increase of wealth, and she will yet be a flourishing island, and her inhabitants a happy and contented people."

Now men desperately in debt *might* invite in foreign capital for temporary relief, but, since the *compensation*, this is understood not to be the case with the Jamaica planters; and if they are rushing into speculation, it must be because they have strong *hope* of the safety and prosperity of their country--in other words, because they confide in the system of free labor. This one prospectus, coupled with its prompt success, is sufficient to prove the falsehood of all the stories so industriously retailed among us from the Standard and the Despatch. But speculators and large capitalists are not the only men who confide in the success of the "great experiment."

The following editorial notice in the Morning Journal of a recent date speaks volumes:--

SAVINGS BANK.

"We were asked not many days ago how the Savings Bank in this City was getting on. We answered well, very well indeed. By a notification published in our paper of Saturday, it will be seen that £1600 has been placed in the hands of the Receiver-General. By the establishment of these Banks, a great deal of the money now locked up, and which yields no return whatever to the possessors, and is liable to be stolen, will be brought into circulation. This circumstance of itself ought to operate as a powerful inducement to those parishes in which no Banks are yet established to be up and doing. We have got some *five* or *six* of them fairly underweigh, as Jack would say, and hope the remainder will speedily trip their anchors and follow."

We believe banks were not known in the West Indies before the 1st of August 1834. Says the Spanishtown Telegraph of May 1st, 1837, "*Banks, Steam-Companies, Rail-Roads, Charity Schools, etc.*," seem all to have

remained dormant until the time arrived when Jamaica was to be *enveloped in smoke*! No man thought of hazarding his capital in an extensive banking establishment until Jamaica's ruin, by the introduction of freedom, had been accomplished!" And it was not till after the 1st of August, 1838, that Jamaica had either savings banks or savings. These institutions for the industrious classes came only with their manhood. But why came they at all, if Emancipated industry is, or is likely to be, unsuccessful?--In Barbados we notice the same forwardness in founding monied institutions. A Bank is there proposed, with a capital of £200,000. More than this, the all absorbing subject in all the West India papers at the present moment is that of the *currency*. Why such anxiety to provide the means of paying for labor which is to become valueless? Why such keenness for a good circulating medium if they are to have nothing to sell? The complaints about the old fashioned coinage we venture to assort have since the first of August occupied five times as much space in the colonial papers, we might probably say in each and every one of them, as those of the non-working of the freemen. The inference is irresistible. *The white colonists take it for granted that industry is to thrive.*

It may be proper to remark that the late refusal of the Jamaica legislature to fulfil its appropriate functions has no connection with the working of freedom, any further than it may have been a struggle to get rid in some measure of the surveillance of the mother country in order to coerce the labourer so far as possible by vagrant laws, &c. The immediate pretext was the passing of a law by the imperial Parliament for the regulation of prisons, which the House of Assembly declared a violation of that principle of their charter which forbids the mother-country to lay a tax on them without their consent, in as much as it authorized a crown officer to impose a fine, in a certain case, of £20. A large majority considered this an infringement of their prerogatives, and among them were some members who have nobly stood up for the slave in times of danger. The remarks of Mr. Osborn especially, on this subject, (he is the full blooded, slave-born, African man to whom we have already referred) are worthy of consideration in several points of view. Although he had always been a staunch advocate of the home government on the floor of the Assembly are now contended for the rights of the Jamaica legislature with arguments which to us republicans are

certainly quite forcible. In a speech of some length, which appears very creditable to him throughout, he said--

"Government could not be acting fair towards them to assume that the mass of the people of this island would remain in the state of political indifference to which poverty and slavery had reduced them. They were now free, every man to rise as rapidly as he could; and the day was not very distant when it would be demonstrated by the change of representatives that would be seen in that house. It did appear to him, that under the pretext of extending the privileges of freemen to the mass of the people of this country, the government was about to deprive them of those privileges, by curtailing the power of the representative Assembly of those very people. He could not bring himself to admit, with any regard for truth, that the late apprentices could now be oppressed; they were quite alive to their own interests, and were now capable of taking care of themselves. So long as labor was marketable, so long they could resist oppression, while on the other hand, the proprietor, for his own interest's sake, would be compelled to deal fairly with them."

Though it is evidently all important that the same public opinion which has wrested the whip from the master should continue to watch his proceedings as an employer of freemen, there is much truth in the speech of this black representative and alderman of Kingston. The brutalized and reckless attorneys and managers, *may* possibly succeed in driving the negroes from the estates by exorbitant rent and low wages. They *may* succeed in their effort to buy in property at half its value. But when they have effected that, they will be totally dependent for the profits of their ill-gotten gains upon the *free laboring people*. They may produce what they call idleness now, and a great deal of vexation and suffering. But land is plenty, and the laborers, if thrust from the estates, will take it up, and become still more independent. Reasonable wages they will be able to command, and for such they are willing to labor. The few thousand whites of Jamaica will never be able to establish slavery, or any thing like it, over its 300,000 blacks.

Already they are fain to swallow their prejudice against color. Mr. Jordon, member for Kingston and "free nigger," was listened to with respect. Nay more, his argument was copied into the "Protest" which the legislature proudly flung back in the face of Parliament, along with the abolition of the

apprenticeship, in return for Lord Glenelg's Bill. Let all in the United States read and ponder it who assert that "the two races cannot live together on term of equality."

Legislative independence of Jamaica has ever been the pride of her English conquerors. They have received with joy the colored fellow colonists into an equal participation of their valued liberty, and they were prepared to rejoice at the extension of the constitution to the emancipated blacks. But the British Government, by a great fault, if not a crime, has, at the moment when all should have been free, torn from the lately ascendant class, the privileges which were their birthright, another class, now the equals of the former, the rights they had long and fortunately struggled for, and from the emancipated blacks the rights which they fondly expected to enjoy with their personal freedom. The boon of earlier freedom will not compensate this most numerous part of our population for the injustice and wrong done to the whole Jamaica people.

The documents already adduced are confined almost exclusively to Jamaica. We will refer briefly to one of the other colonies. The next in importance is

BARBADOS

Here has been played nearly the same game in regard to wages, and with the same results. We are now furnished with advices from the island down to the 19th of December 1838. At the latter date the panic making papers had tapered down their complainings to a very faint whisper, and withal expressing more hope than fears. As the fruit of what they had already done we are told by one of them, *the Barbadian*, that the unfavourable news carried home by the packets after the emancipation had served to raise the price of sugar in England, which object being accomplished, it is hoped that they will intermit the manufacture of such news. The first and most important document, and indeed of itself sufficient to save the trouble of giving more, is the comparison of crime during two and a half months of freedom, and the corresponding two and a half months of slavery or apprenticeship last year, submitted to the legislature at the opening of its session in the latter part of October. Here it is. We hope it will be held up before every slave holder.

From the Barbadian of Dec. 1.

Barbados.--Comparative Table, exhibiting the number of Complaints preferred against the Apprentice population of this Colony, in the months of August, September and to the 15th of October, 1838; together with the Complaints charged against Free Labourers of the same Colony, during the months of August, September and to the 15th of October, 1838. The former compiled from the Monthly Journals of the Special Justice of the Peace and the latter from the Returns of the Local Magistracy transmitted to his excellency the Governor

APPRENTICESHIP.

Total of Complaints vs. Apprentices from the

1st to 31st August 1837.	1708
Ditto from the 1st to 30th September	1464
Ditto from the 1st to 15th October	574
Grand Total	3746

Total number of Apprentices punished from the

1st to 31st August	1608
Ditto from the 1st to 31th September	1321
Ditto from the 1st to 15th October	561
Grand Total	3490

Total compromised, admonished and dismissed

1st to 31st August	105
Ditto from the 1st to 30th September	113
Ditto from the 1st to 15th October	38
Total	256
Deficiency in compromised cases in 1837 comparatively with those of 1838	158
Grand Total	414

FREEDOM.

Total of Complaints vs. Labourers from the 1st to the 31st August 1838	582
Ditto from the 1st to the 30th September	386
Ditto from the 1st to the 15th October	103
Total	1071
Comparative Surplus of Complaints in 1838	2675
Grand Total	3746
Total of Laborers punished from the 1st to the 31st August, 1838,	334
Ditto from the 1st to 30th September	270
Ditto from the 1st to 15th October	53
Total	657
Comparative surplus of punishment in 1837	2833
Grand total	3490
Total compromised, admonished and dismissed from the 1st to the 31st August	248
Ditto from the 1st to 30th September	116
Ditto from the 1st to 15th October	50
Grand Total	414

NOTE.

It may be proper to remark that the accompanying General Abstract for August, September, and to the 15th October, 1837, does not include complaints preferred and heard before the Local Magistrates during those months for such offences--viz. for misdemeanors, petty debts, assaults and petty thefts--as were not cognizable by the Special Justices; so that estimating these offences--the number of which does not appear in the Abstract for 1837--at a similar number as that enumerated in the Abstract for 1838, the actual relative difference of

punishments between the two and a half months in 1837 and these in 1838, would thus appear:

Surplus of Apprentices punished in 1837, as above	2833
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Offences in August, September, and to the 15th, October, 1837 heard before the General Justices of the Peace, and estimated as follows:

Petty thefts	75
Assaults	143
Misdemeanors	98
Petty Debts	19-
	-835

Actual surplus of punishment in 1837,	3168
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From the Journal of Commerce.

Letter from W.R. Hays, Esq. Barbados, W.I. to Rev. H.G. Ludlow, of New Haven.

BARBADOS, Dec. 26, 1838.

I gave you in my last, some account of the manner in which the first day of emancipation came and went in this island. We very soon afterwards received similar accounts from all the neighboring islands. In all of them the day was celebrated as an occasion "of devout thanksgiving and praise to God, for the happy termination of slavery." In all of them, the change took place in a manner highly creditable to the emancipated, and intensely gratifying to the friends of liberty. The quiet, good order, and solemnity of the day, were every where remarkable. Indeed, is it not a fact worth remembering, that whereas in former years, a single day's relaxation from labor was met by the slaves with shouting and revelry, and merry-making, yet now, when the last link of slavery was broken forever, sobriety and decorum were especially the order of the day. The perfect order and subordination to the laws, which marked the first day of August, are yet unbroken. We

have now nearly five months' experience of entire emancipation; and I venture to say, that a period of more profound peace never existed in the West Indies. There have been disputes about wages, as in New England and in other free countries; but no concert, no combination even, here; and the only attempt at a combination was among the planters, to keep down wages--and that but for a short time only. I will not enter particularly into the questions, whether or not the people will continue to work for wages, whether they will remain quiet,--or on the other hand, whether the Island will be suffered to become desolate, and the freed slaves relapse into barbarism, &c. These things have been speculated about, and gloomy predictions have had their day; the time has now come for the proof. People do not buy land and houses, and rent property for long terms of years, in countries where life is insecure, or where labor cannot be had, and the tendency of things is to ruin and decay. In short, men, in their senses, do not embark on board a sinking ship. Confidence is the very soul of prosperity; of the existence of this confidence in this Island, the immense operations in real estate, since the first of August, are abundant proof. There are multitudes of instances in which estates have sold for \$20,000 *more* than was asked for them six months ago; and yet at the time they were considered very high. A proprietor who was persuaded a few weeks since to part with his estate for a very large sum of money, went and bought *it back again* at an *advance* of \$9600. A great many long leases of property have been entered into. An estate called "Edgecombe," mentioned by Thome and Kimball, has been rented for 21 years at \$7500 per annum. Another called the "hope" has been rented for 10 years at £2000 sterling, equal to \$9600 per annum. Another, after being rented at a high price, was relet, by the lessee, who became entirely absolved from the contract, and took \$16,000 for his bargain. If required, I could give you a host of similar cases, with the names of the parties. But it seems unnecessary. The mere impulse given to the value of property in this island by emancipation, is a thing as notorious *here*, as the *fact* of emancipation.

But, are not crimes more frequent than before? I have now before me a Barbados newspaper, printed two weeks since, in which the fact is

stated, that in *all* the county prisons, among a population of 80,000, only *two* prisoners were confined for any cause whatever!

"But," says a believer in the necessity of Colonization, "how will you *get rid* of the negroes?" I answer by adverting to the spectacle which is now witnessed in *all* the Islands of the former proprietors of slaves, now *employers* of *free* laborers, using every endeavor to *prevent* emigration. Trinidad, Demerara, and Berbice, *want* laborers. The former has passed a law to pay the passage money of any laborer who comes to the Island, leaving him free to choose his employment. Demerara and Berbice have sent Emigration agents to this and other islands, to induce the laborers to join those colonies, offering high wages, good treatment, &c. On the other hand, Barbados, Grenada, St. Vincent, and all the old and populous islands, individually and collectively, by legislative resolves, legal enactments, &c. &c.--loudly protest that they have *not a man to spare*! What is still better, the old island proprietors are on every hand building new houses for the peasantry, and with great forethought adding to their comfort; knowing that they will thereby secure their contentment on their native soil. As a pleasing instance of the good understanding which now exists between proprietors and laborers, I will mention, that great numbers of the former were in town on the 24th, buying up pork, hams, rice, &c. as presents for their people on the ensuing Christmas; a day which has this year passed by amid scenes of quiet Sabbath devotions, a striking contrast to the tumult and drunkenness of former times. I cannot close this subject, without bearing my testimony to the correctness of the statements made by our countrymen, Thome and Kimball. They were highly esteemed here by all classes, and had free access to every source of valuable information. If they have not done justice to the subject of their book, it is because the manifold blessings of a deliverance from slavery are beyond the powers of language to represent. When I attempt, as I have done in this letter, to enumerate a few of the, I know not where to begin, or where to end. One must *see*, in order to know and feel how unspeakable a boon these islands have received,--a boon, which is by no means confined to the emancipated slaves; but, like the dew and rains of heaven, it fell upon all the inhabitants of the land, bond and free, rich and poor, together.

It is a common thing here, when you hear one speak of the benefits of emancipation--the remark--that it ought to have taken place long ago. Some say fifty years ago, some twenty, and some, that at any rate it ought to have taken place all at once, without any apprenticeship. The noon-day sun is not clearer than the fact, that no preparation was required on the part of the slaves. It was the dictate of an accusing conscience, that foretold of bloodshed, and burning, and devastation. Can it be supposed to be an accidental circumstance, that peace and good-will have *uniformly*, in *all* the colonies, followed the steps of emancipation. Is it not rather the broad seal of attestation to that heaven born principle, "It is safe to do right." Dear brother, if you or any other friend to down trodden humanity, have any lingering fear that the blaze of light which is now going forth from the islands will ever be quenched, even for a moment, dismiss that fear. The light, instead of growing dim, will continue to brighten. Your prayers for the safe and happy introduction of freedom, upon a soil long trodden by the foot of slavery, may be turned into praises--for the event has come to pass. When shall we be able to rejoice in such a consummation in our beloved America? How I long to see a deputation of slaveholders making the tour of these islands. It would only be necessary for them to use their eyes and ears. Argument would be quite out of place. Even an appeal to principle--to compassion--to the fear of God--would not be needed. Self-interest alone would decide them in favor of immediate emancipation.

Ever yours,

W.R. HAYES.

DEMERARA.

SPEECH OF THE GOVERNOR, ON OPENING THE SESSION OF THE
COURT OF POLICY,
SEPT. 17, 1838.

From the Guiana Royal Gazette.

"I should fail in my duty to the public, and perhaps no respond to the expectations of yourselves, Gentlemen of the Colonial Section of this Honorable Court, did I not say a few words on the state of the Colony, at this our first meeting after the memorable first of August.

We are now approaching the close of the second month since that date--a sufficient time to enable us to judge of the good disposition of the new race of Freemen, but not perhaps of the prosperity of the Colony. It is a proud thing for the Colonist--Proprietors and Employers--that nothing has occurred to indicate a want of good feeling in the great body of the laborers. It is creditable to them, satisfactory to their employers, and confounding to those who anticipated a contrary state of affairs.

That partial changes of location should have taken place, cannot surprise any reasonable mind--that men who have all their lives been subject to compulsory labor should, on having this labor left to their discretion, be disposed at first to relax, and, in some instances, totally abstain from it, was equally to be expected. But we have no reason to despond, nor to imagine that, because such has occurred in some districts, it will continue.

It is sufficient that the ignorant have been undeceived in their exaggerated notions of their rights as Freemen: it was the first step towards resumption of labor in every part of the Colony. The patient forbearance of the Employers has produced great changes. If some Estates have been disappointed in the amount of labor performed, others again, and I have reason to believe a great number, are doing well. It is well known that the Peasantry have not taken to a wandering life: they are not lost to the cultivated parts of the Colony: for the reports hitherto received from the Superintendents of Rivers and Creeks make no mention of an augmented population in the distant parts of their respective districts.

I hear of few commitments, except in this town, where, of course, many of the idle have flocked from the country. On the East Coast, there has been only one case brought before the High Sheriff's Court since the 1st of August. In the last Circuit, not one!

With these facts before us, we may, I trust, anticipate the continued prosperity of the Colony; and though it be possible there may be a diminution in the exports of the staple commodities in this and the succeeding quarter, yet we must take into consideration that the season had been unfavorable, in some districts, previous to the 1st August, therefore a larger proportion of the crops remained uncut; and we may ask, whether a continuance of compulsory labor would have produced a more favorable result? Our united efforts will, I trust, not be wanting to base individual prosperity on the welfare of all."

The Governor of Demerara is HENRY LIGHT, Esq., a gentlemen who seems strongly inclined to court the old slavery party and determined to shew his want of affinity to the abolitionists. In another speech delivered on a similar occasion, he says:

"Many of the new freemen may still be said to be in their infancy of freedom, and like children are wayward. On *many of the estates* they have repaid the kindness and forbearance of their masters; on others they have continued to take advantage of (what? the kindness and forbearance of their masters? No.) their new condition, are idle or irregular in their work. The good sense of the mass gives me reason to hope that idleness will be the exception, not the rule."

The Barbadian of NOV. 28, remarks, that of six districts in Demerara whose condition had been reported, *five* were working favorably. In the sixth the laborers were standing out for higher wages.

TRINIDAD.

In the *Jamaica Morning Journal* of Oct. 2d and 15th, we find the following paragraphs in relation to this colony:

"Trinidad.--The reports from the various districts as to the conduct of our laboring population, are as various and opposite, the Standard says, to each other as it is possible for them to be. There are many of the Estates on which the laborers had at first gone on steadily to work which now have scarcely a hand upon them, whilst upon others they muster a greater force than they could before command. We hear also that the people have already in many instances exhibited that propensity common to the habits of

common life, which we call squatting, and to which we have always looked forward as one of the evils likely to accompany their emancipation, and calling for the earliest and most serious attention of our Legislature. We must confess, however, that it is a subject not easy to deal with safely and effectually."

TRINIDAD,--The Standard says: "The state of the cultivation at present is said to be as far advanced as could have been anticipated under the new circumstances in which the Island stands. The weather throughout the month has been more than usually favorable to weeding, whilst there has also been sufficient rain to bring out the plants; and many planters having, before the 1st of Augus, pushed on their weeding by free labor and (paid) extra tasks, the derangement in their customary labor which has been experienced since that period, does not leave them much below an average progress."

"Of the laborers, although they are far from being settled, we believe we may say, that they are not working badly; indeed, compared with those of the sister colonies, they are both more industrious and more disposed to be on good terms with their late masters. Some few estates continue short of their usual compliment of hands; but many of the laborers who had left the proprietors, have returned to them, whilst many others have changed their locality either to join their relations, or to return to their haunts of former days. So far as we can learn, nothing like insubordination or combination exists. We are also happy to say, that on some estates, the laborers have turned their attention to their provision grounds. There is one point, however, which few seem to comprehend, which is, that although free, they cannot work one day and be idle the next, *ad libitum*."

Later accounts mention that some thousands more of laborers were wanted to take off the crop, and that a committee of immigration had been appointed to obtain them. [See Amos Townsend's letter on the last page.] So it seems the free laborers are so good they want more of them. The same is notoriously true of Demerara, and Berbice. Instead of a colonization spirit to get rid of the free blacks, the quarrel among the colonies is, which shall get the most. It is no wonder that the poor negroes in Trinidad should betake themselves to squatting. The island is thinly peopled and the administration or justice is horribly corrupt, under the governorship and judgeship of Sir

George Hill, the well known defaulter as Vice Treasurer of Ireland, on whose appointment Mr. O'Connell remarked that "delinquents might excuse themselves by referring to the case of their judge."

GRENADA.

"GRENADA--The Gazette expresses its gratification at being able to record, that the accounts which have been received from several parts of the country, are of a satisfactory nature. On many of the properties the peasantry have, during the week, evinced a disposition to resume their several accustomed avocations, at the rates, and on the terms proposed by the directors of the respective estates, to which they were formerly belonging; and very little desire to change their residence has been manifested. One of our correspondents writes, that 'already, by a conciliatory method, and holding out the stimulus of extra pay, in proportion to the quantity of work performed beyond that allowed to them, he had, 'succeeded in obtaining, for three days, double the former average of work, rendered by the labors during the days of slavery; and this, too, by four o'clock, at which hour it seems, they are now wishful of ceasing to work, and to enable them to do so, they work continuously from the time they return from their breakfast.'"

"It is one decided opinion, the paper named says, that in a very short time the cultivation of the cane still be generally resumed, and all things continue to progress to the mutual satisfaction of both employer and laborer. We shall feel indebted to our friends for such information, as it may be in their power to afford us on this important subject, as it will tend to their advantage equally with that of their laborers, from the same being made public. We would wish also that permission be given as to mention the names of the properties on which matters have assumed a favorable aspect."

Jamaica Morning Journal of Oct. 2.

GRENADA.--According to the *Free Press*, it would appear that 'the proprietors and managers of several estates in Duquesne Valley, and elsewhere, their patience being worn out, and seeing the cultivation of their estates going to ruin, determined to put the law into operation, by compelling, after allowing twenty-three or twenty-four days of idleness, the people either to work or to leave the estates. They resisted; the aid of the

magistrates and of the constabulary force was called in, but without effect, and actual violence was, we learn, used towards those who came to enforce the law. Advices were immediately sent down to the Executive, despatched by a gentleman of the Troop, who reached town about half past five o'clock on Saturday morning last. We believe a Privy Council was summoned, and during the day, Capt. Clarke of the 1st West-India Regiment, and Government Secretary, Lieut. Mould of the Royal Engineers, and Lieut. Costabodie of the 70th, together with twenty men of the 70th, and 20 of the 1st West India, embarked, to be conveyed by water to the scene of insubordination.'

""We have not learnt the reception this force met with, from the laborers, but the results of the visit paid them were, that yesterday, there were at work, on four estates, none: on eleven others, 287 in all, and on another all except three, who are in the hands of the magistrates. On one of the above properties, the great gang was, on Friday last, represented in the cane-piece by one old woman!""

""The presence of the soldiers has had, it will be seen, some effect, yet still the prospects are far from encouraging; a system of stock plundering, &c. is prevalent to a fearful degree, some gentlemen and the industrious laborers having had their fowls, &c. entirely carried off by the worthless criminals; it is consolatory, however, to be able to quote the following written, to us by a gentleman: "Although there are a good many people on the different estates, still obstinate and resisting either to work or to leave the properties, yet I hope that if the military are posted at Samaritan for some time longer, they will come round, several of the very obstinate having done so already." Two negroes were sent down to goal on Monday last, to have their trial for assaulting the magistrates.""

""Such are the facts, as far as we have been able to ascertain them, which have attended a rebellious demonstration among a portion of the laboring population, calculated to excite well-founded apprehension in the whole community. Had earlier preventive measures been adopted, this open manifestation of a spirit of resistance to, and defiance of the law, might have been avoided. On this point, we have, in contempt of the time-serving reflections it has drawn upon us, freely and fearlessly expressed our opinion, and we shall now only remark, that matters having come to the

pass we have stated, the Executive has adopted the only effective means to bring affairs again to a healthy state; fortunate is it for the colony, that this has been done, and we trust that the effects will be most beneficial."

TOBAGO.

The following testifies well for the ability of the emancipated to take care of themselves.

"Tobago.--The Gazette of this Island informs us that up to the period of its going to press, the accounts from the country, as to the disinclination of the laborers to turn out to work are much the same as we have given of last week. Early this morning parties of them were seen passing through town in various directions, accompanied by their children, and carrying along with them their ground provisions, stock, &c. indicating a change of location. Whilst on many estates where peremptory demands have been made that work be resumed, or the laborers should leave the estate, downright refusal to do either the one or the other has been the reply; and that reply has been accompanied by threat and menace of personal violence against any attempts to turn them out of their houses and grounds. In the transition of the laborers from a state of bondage to freedom, much that in their manners and deportment would have brought them summarily under the coercion of the stipendiary magistrate, formerly, may now be practised with impunity; and the fear is lest that nice discrimination betwixt restraints just terminated and rights newly acquired, will not be clouded for some time, even in the minds of the authorities, before whom laborers are likely to be brought for their transgression. Thus, although it may appear like an alarming confederacy, the system of sending delegates, or head men, around the estates, which the laborers have adopted, as advisers, or agents, to promote general unanimity; it must be borne in mind that this is perfectly justifiable; and it is only where actual violence has been threatened by those delegates against those who choose to work at under wages, that the authorities can merely assure them of their protection from violence.'--*Morning Jour.*, Oct. 2."

The *Barbadian* of November 21, says, "An agricultural report has been lately made of the windward district of the Island, which is favorable as to the general working of the negroes." The same paper of November 28, says,

"It is satisfactory to learn that *many* laborers in Tobago are engaging more readily in agricultural operations."

ST. VINCENT.

"Saint Vincent.--Our intelligence this week, observes the Gazette of 25th August, from the country districts, is considerably more favorable than for the previous fortnight. In most of the leeward quarter, the people have, more or less, returned to work, with the exception of very few estates, which we decline naming, as we trust that on these also they will resume their labor in a few days. The same may be said generally of the properties in St. George's parish; and in the more extensive district of Charlotte, there is every prospect that the same example will be followed next week particularly in the Caraib country, where a few laborers on some properties have been at work during the present week, and the explanation and advice given them by Mr. Special Justice Ross has been attended with the best effect, and we doubt not will so continue. In the Biabou quarter the laborers have resumed work in greater numbers than in other parts of the parish, and the exceptions in this, as in ether districts, we hope will continue but a short time."

The Barbadian of November 21, speaks of a "megass house" set on fire in this island which the peasantry refused to extinguish, and adds that but half work is performed by the laborer in that parish. "Those of the adjoining parish," its says, "are said to be working satisfactorily." In a subsequent paper we notice a report from the Chief of Police to the Lieutenant Governor, which speaks favorably of the general working of the negroes, as far as he had been able to ascertain by inquiry into a district comprising one-third of the laborers.

The New York Commercial Advertiser of February 25, has a communication from Amos Townsend, Esq., Cashier of the New Haven Bank; dated New Haven, February 21, 1839, from which we make the following extract. He says he obtained his information from one of the most extensive shipping houses in that city connected with the West India trade.

"A Mr. Jackson, a planter from St. Vincents, has been in this city within a few day, and says that the emancipation of the slaves on that island works extremely well; and that his plantation produces more and yields a larger profit than it has ever done before. The emancipated

slaves now do in eight hours what was before considered a two-days' task, and he pays the laborers a dollar a day.

Mr. Jackson further states that he, and Mr. Nelson, of Trinidad, with another gentleman from the same islands, have been to Washington, and conferred with Mr. Calhoun and Mr. Clay, *to endeavour to concert some plan to get colored laborers from this country to emigrate to these islands, as there is a great want of hands*. They offer one dollar a day for able bodied hands. The gentlemen at Washington were pleased with the idea of thus disposing of the free blacks at the South, and would encourage their efforts to induce that class of the colored people to emigrate. Mr. Calhoun remarked that it was the most feasible plan of colonizing the free blacks that had ever been suggested.

This is the amount of my information, and comes in so direct a channel as leaves no room to doubt its correctness. What our southern champions will now say to this direct testimony from their brother planters of the West Indies, of the practicability and safety of immediate emancipation, remains to be seen. Truly yours." AMOS TOWNSEND, JUN.

ST. LUCIA.

Saint Lucia.--The Palladium states that affairs are becoming worse every day with the planters. Their properties are left without labourers to work them; their buildings broken into, stores and produce stolen, ground provisions destroyed, stock robbed, and they themselves insulted and laughed at.

On Saturday night, the Commissary of Police arrived in town from the third and fourth districts, with some twenty or thirty prisoners, who had been convicted before the Chief Justice of having assaulted the police in the execution of their duty, and sent to gaol.

"It has been deemed necessary to call for military aid with a view of humbling the high and extravagant ideas entertained by the ex-apprentices upon the independence of their present condition; thirty-six men of the first West India regiment, and twelve of the seventy-fourth have been accordingly despatched; the detachment embarked yesterday on board Mr.

Muter's schooner, the Louisa, to land at *Soufriere*, and march into the interior."

In both the above cases where the military was called out, the provocation was given by the white. And in both cases it was afterwards granted to be needless. Indeed, in the quelling of one of these factitious rebellions, the prisoners taken were two white men, and one of them a manager.

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THE CHATTEL PRINCIPLE

THE ABHORRENCE OF
JESUS CHRIST AND THE APOSTLES;
OR
NO REFUGE FOR AMERICAN SLAVERY

IN

THE NEW TESTAMENT.

NEW YORK

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY.

NO. 143 NASSAU STREET.

1839

Please read and circulate.

The

NEW TESTAMENT AGAINST SLAVERY.

* * * * *

"THE SON OF MAN IS COME TO SEEK AND TO SAVE THAT WHICH WAS LOST."

Is Jesus Christ in favor of American slavery? In 1776 THOMAS JEFFERSON, supported by a noble band of patriots and surrounded by the American people, opened his lips in the authoritative declaration: "We hold these truths to be SELF-EVIDENT, *that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, LIBERTY and the pursuit of happiness.*" And from the inmost heart of the multitudes around, and in a strong and clear voice, broke forth the unanimous and decisive answer: Amen--such truths we do indeed hold to be self-evident. And animated and sustained by a declaration, so

inspiring and sublime, they rushed to arms, and as the result of agonizing efforts and dreadful sufferings, achieved under God the independence of their country. The great truth, whence they derived light and strength to assert and defend their rights, they made the foundation of their republic. And in the midst of *this republic*, must we prove, that He, who was the Truth, did not contradict "the truths" which He Himself, as their Creator, had made self-evident to mankind?

Is Jesus Christ in favor of American slavery? What, according to those laws which make it what it is, is American slavery? In the Statute-Book of South Carolina thus it is written:[[A](#)] "Slaves shall be deemed, sold, taken, reputed and adjudged in law to be *chattels personal* in the hands of their owners and possessors, and their executors, administrators and assigns, to all intents, constructions and purposes whatever." The very root of American slavery consists in the assumption, that *law has reduced men to chattels*. But this assumption is, and must be, a gross falsehood. Men and cattle are separated from each other by the Creator, immutably, eternally, and by an impassable gulf. To confound or identify men and cattle must be to *lie* most wantonly, impudently, and maliciously. And must we prove, that Jesus Christ is not in favor of palpable, monstrous falsehood?

[Footnote [A](#): Stroud's Slave Laws, p. 23.]

Is Jesus Christ in favor of American slavery? How can a system, built upon a stout and impudent denial of self-evident truth--a system of treating men like cattle--operate? Thomas Jefferson shall answer. Hear him.[[B](#)] "The whole commerce between master and slave is a perpetual exercise of the most boisterous passions; the most unremitting despotism on the one part, and degrading submission on the other. The parent storms, the child looks on, catches the *lineaments* of wrath, puts on the same airs in the circle of smaller slaves, gives loose to his worst passions, and thus nursed, educated, and daily exercised in tyranny, can not but be stamped by it with odious peculiarities. The man must be a prodigy, who can retain his manners and morals undepraved by such circumstances." Such is the practical operation of a system, which puts men and cattle into the same family and treats them alike. And must we prove, that Jesus Christ is not in favor of a school where the worst vices in their most hateful forms are systematically and efficiently taught and practiced?

[Footnote [B](#): Notes on Virginia.]

Is Jesus Christ in favor of American slavery? What, in 1818, did the General Assembly of the Presbyterian church affirm respecting its nature and operation?[[C](#)] "Slavery creates a paradox in the moral system--it exhibits rational, accountable, and immortal beings, in such circumstances as scarcely to leave them the power of moral action. It exhibits them as dependent on the will of others, whether they shall receive religious instruction; whether they shall know and worship the true God; whether they shall enjoy the ordinances of the gospel; whether they shall perform the duties and cherish the endearments of husbands and wives, parents and children, neighbors and friends; whether they shall preserve their chastity and purity, or regard the dictates of justice and humanity. Such are some of the consequences of slavery; consequences not imaginary, but which connect themselves with its very existence. The evils to which the slave is *always* exposed, *often take place* in their very worst degree and form; and where all of them do not take place, still the slave is deprived of his natural rights, degraded as a human being, and exposed to the danger of passing into the hands of a master who may inflict upon him all the hardships and injuries which inhumanity and avarice may suggest." Must we prove, that Jesus Christ is not in favor of such things?

[Footnote [C](#): Minutes of the General Assembly for 1818, p. 29.]

Is Jesus Christ in favor of American slavery? It is already widely felt and openly acknowledged at the South, that they can not support slavery without sustaining the opposition of universal christendom. And Thomas Jefferson declared, that "he trembled for his country when he reflected, that God is just; that his justice can not sleep forever; that considering numbers, nature, and natural means only, a revolution of the wheel of fortune, an exchange of situation, is among possible events; that it may become practicable by supernatural influences! The Almighty has no attribute which can take sides with us in such a contest."[[A](#)] And must we prove, that Jesus Christ is not in favor of what universal christendom is impelled to abhor, denounce, and oppose;--is not in favor of what every attribute of Almighty God is armed against?

[Footnote [A](#): Notes on Virginia]

"YE HAVE DESPISED THE POOR."

It is no man of straw, with whom in making out such proof we are called to contend. Would to God we had no other antagonist! Would to God that our labor of love could be regarded as a work of supererogation! But we may well be ashamed and grieved; to find it necessary to "stop the mouths" of grave and learned ecclesiastics, who from the heights of Zion have undertaken to defend the institution of slavery. We speak not now of those, who amidst the monuments of oppression are engaged in the sacred vocation; who as ministers of the Gospel can "prophecy smooth things" to such as pollute the altar of Jehovah with human sacrifices; nay, who themselves bind the victim and kindle the sacrifice. That *they* should put their Savior to the torture, to wring from his lips something in favor of slavery, is not to be wondered at. They consent to the murder of the children; can they respect the rights of the Father? But what shall we say of theological professors at the North--professors of sacred literature at our oldest divinity schools--who stand up to defend, both by argument and authority, southern slavery! And from the Bible! Who, Balaam-like, try a thousand expedients to force from the mouth of Jehovah a sentence which they know the heart of Jehovah abhors! Surely we have here something more mischievous and formidable than a man of straw. More than two years ago, and just before the meeting of the General Assembly of the Presbyterian church, appeared an article in the Biblical Repertory,[\[A\]](#) understood to be from the pen of the Professor of Sacred Literature at Princeton, in which an effort is made to show, that slavery, whatever may be said of *any abuses* of it, is *not a violation of the precepts of the Gospel*. This article, we are informed, was industriously and extensively distributed among the members of the General Assembly--a body of men, who by a frightful majority seemed already too much disposed to wink at the horrors of slavery. The effect of the Princeton Apology on the southern mind, we have high authority for saying, has been most decisive and injurious. It has contributed greatly to turn the public eye off from the sin--from the inherent and necessary *evils of slavery* to incidental evils, which the *abuse* of it might be expected to occasion. And how few can be brought to admit, that whatever abuses may prevail nobody knows where or how, any such thing is chargeable upon them! Thus our Princeton prophet has done what he

could to lay the southern conscience asleep upon ingenious perversions of the sacred volume!

[Footnote [A](#): For April, 1836. The General Assembly of the Presbyterian Church met in the following May, at Pittsburgh, where, in pamphlet form, this article was distributed. The following appeared upon the title page:

PITTSBURGH:

1836.

For gratuitous distribution.

]

About a year after this, an effort in the same direction was jointly made by Dr. Fisk and Prof. Stuart. In a letter to a Methodist clergyman, Mr. Merritt, published in Zion's Herald, Dr. Fisk gives utterance to such things as the following:--"But that you and the public may see and *feel*, that you have the ablest and those who are among the honestest men of this age, arrayed against you, be pleased to notice the following letter from Prof. Stuart." I wrote to him, knowing as I did his integrity of purpose, his unflinching regard for truth, as well as his deserved reputation as a scholar and biblical critic, proposing the following questions:--

1. Does the New Testament directly or indirectly teach, that slavery existed in the primitive church?
2. In 1 Tim. vi. 2, And they that have believing masters, &c., what is the relation expressed or implied between "they" (servants) and "*believing masters*?" And what are your reasons for the construction of the passage?
3. What was the character of ancient and eastern slavery?--Especially what (legal) power did this relation give the master over the slave?

PROFESSOR STUART'S REPLY.

ANDOVER, 10th April, 1837.

REV. AND DEAR SIR,--Yours is before me. A sickness of three months' standing (typhus fever,) in which I have just escaped death,

and which still confines me to my house, renders it impossible for me to answer your letter at large.

1. The precepts of the New Testament respecting the demeanor of slaves and of their masters, beyond all question, recognize the existence of slavery. The masters are in part "believing masters," so that a precept to them, how they are to behave as *masters*, recognizes that the relation may still exist, *salva fide et salva ecclesia*, ("without violating the Christian faith or the church.") Otherwise, Paul had nothing to do but to cut the band asunder at once. He could not lawfully and properly temporize with a *malum in se*, ("that which is in itself sin.")

If any one doubts, let him take the case of Paul's sending Onesimus back to Philemon, with an apology for his running away, and sending him back to be his servant for life. The relation did exist, may exist. The *abuse* of it is the essential and fundamental wrong. Not that the theory of slavery is in itself right. No; "Love thy neighbor as thyself," "Do unto others that which ye would that others should do unto you," decide against this. But the relation once constituted and continued, is not such a *malum in se* as calls for immediate and violent disruption at all hazards. So Paul did not counsel.

2. 1 Tim. vi. 2, expresses the sentiment, that slaves, who are Christians and have Christian masters, are not, on that account, and because *as Christians they are brethren*, to forego the reverence due to them as masters. That is, the relation of master and slave is not, as a matter of course, abrogated between all Christians. Nay, servants should in such a case, a *fortiori*, do their duty cheerfully. This sentiment lies on the very face of the case. What the master's duty in such a case may be in respect to *liberation*, is another question, and one which the apostle does not here treat of.

3. Every one knows, who is acquainted with Greek or Latin antiquities, that slavery among heathen nations has ever been more unqualified and at looser ends than among Christian nations. Slaves were *property* in Greece and Rome. That decides all questions about their *relation*. Their treatment depended, as it does now, on the temper of their

masters. The power of the master over the slave was, for a long time, that of *life and death*. Horrible cruelties at length mitigated it. In the apostle's day, it was at least as great as among us.

After all the spouting and vehemence on this subject, which have been exhibited, the *good old Book* remains the same. Paul's conduct and advice are still safe guides. Paul knew well that Christianity would ultimately destroy slavery, as it certainly will. He knew too, that it would destroy monarchy and aristocracy from the earth; for it is fundamentally a doctrine of *true liberty and equality*. Yet Paul did not expect slavery or anarchy to be ousted in a day; and gave precepts to Christians respecting their demeanor *ad interim*.

With sincere and paternal regard,

Your friend and brother,

M. STUART.

* * * * *

--This, sir, is doctrine that will stand, because it is *Bible doctrine*. The abolitionists, then, are on a wrong course. They have traveled out of the record; and if they would succeed, they must take a different position, and approach the subject in a different manner. Respectfully yours,

W. FISK

"SO THEY WRAP [SNARL] IT UP."

What are we taught here? That in the ecclesiastical organizations which grew up under the hands of the apostles, slavery was admitted as a relation, that did not violate the Christian faith; that the relation may now in like manner exist; that "the abuse of it is the essential and fundamental wrong;" and, of course, that American Christians may hold their own brethren in slavery without incurring guilt or inflicting injury. Thus according to Prof.

Stuart, Jesus Christ has not a word to say against "the peculiar institutions" of the South. If our brethren there do not "abuse" the privilege of exacting unpaid labor, they may multiply their slaves to their hearts' content, without exposing themselves to the frown of the Savior or laying their Christian character open to the least suspicion. Could any trafficker in human flesh ask for greater latitude? And to such doctrines, Dr. Fisk eagerly and earnestly subscribes. He goes further. He urges it on the attention of his brethren, as containing important truth, which they ought to embrace. According to him, it is "*Bible doctrine*," showing, that "the abolitionists are on a wrong course," and must, "if they would succeed, take a different position."

We now refer to such distinguished names, to show, that in attempting to prove that Jesus Christ is not in favor of American slavery, we contend with something else than a man of straw. The ungrateful task, which a particular examination of Prof. Stuart's letter lays upon us, we hope fairly to dispose of in due season.--Enough has now been said, to make it clear and certain, that American slavery has its apologists and advocates in the northern pulpit; advocates and apologists, who fall behind few if any of their brethren in the reputation they have acquired, the stations they occupy, and the general influence they are supposed to exert.

Is it so? Did slavery exist in Judea, and among the Jews, in its worst form, during the Savior's incarnation? If the Jews held slaves, they must have done so in open and flagrant violation of the letter and the spirit of the Mosaic Dispensation. Whoever has any doubts of this may well resolve his doubts in the light of the Argument entitled "The Bible against Slavery." If, after a careful and thorough examination of that article, he can believe that slaveholding prevailed during the ministry of Jesus Christ among the Jews and in accordance with the authority of Moses, he would do the reading public an important service to record the grounds of his belief--especially in a fair and full refutation of that Argument. Till that is done, we hold ourselves excused from attempting to prove what we now repeat, that if the Jews during our Savior's incarnation held slaves, they must have done so in open and flagrant violation of the letter and the spirit of the Mosaic Dispensation. Could Christ and the Apostles every where among their countrymen come in contact with slaveholding, being as it was a gross

violation of that law which their office and their profession required them to honor and enforce, without exposing and condemning it.

In its worst forms, we are told, slavery prevailed over the whole world, not excepting Judea. As, according to such ecclesiastics as Stuart, Hodge, and Fisk, slavery in itself is not bad at all, the term "*worst*" could be applied only to "*abuses*" of this innocent relation. Slavery accordingly existed among the Jews, disfigured and disgraced by the "*worst abuses*" to which it is liable. These abuses in the ancient world, Prof. Stuart describes as "*horrible cruelties*." And in our own country, such abuses have grown so rank, as to lead a distinguished eye-witness--no less a philosopher and statesman than Thomas Jefferson--to say, that they had armed against us every attribute of the Almighty. With these things the Savior every where came in contact, among the people to whose improvement and salvation he devoted his living powers, and yet not a word, not a syllable, in exposure and condemnation of such "*horrible cruelties*," escaped his lips! He saw--among the "*covenant people*" of Jehovah he saw, the babe plucked from the bosom of its mother; the wife torn from the embrace of her husband; the daughter driven to the market by the scourge of her own father;--he saw the word of God sealed up from those who, of all men, were especially entitled to its enlightening, quickening influence;--nay, he saw men beaten for kneeling before the throne of heavenly mercy;--such things he saw without a word of admonition or reproof! No sympathy with them who suffered wrong--no indignation at them who inflicted wrong, moved his heart!

From the alledged silence of the Savior, when in contact with slavery among the Jews, our divines infer, that it is quite consistent with Christianity. And they affirm, that he saw it in its worst forms; that is, he witnessed what Prof. Stuart ventures to call "*horrible cruelties*." But what right have these interpreters of the sacred volume to regard any form of slavery which the Savior found, as "*worst*," or even bad? According to their inference--which they would thrust gag-wise into the mouths of abolitionists--his silence should seal up their lips. They ought to hold their tongues. They have no right to call any form of slavery bad--an abuse; much less, horribly cruel! Their inference is broad enough to protect the most brutal driver amidst his deadliest inflictions!

"THINK NOT THAT I AM COME TO DESTROY THE LAW OR THE PROPHETS; I AM NOT COME TO DESTROY, BUT TO FULFILL."

And did the Head of the new dispensation, then, fall so far behind the prophets of the old in a hearty and effective regard for suffering humanity? The forms of oppression which they witnessed, excited their compassion and aroused their indignation. In terms the most pointed and powerful, they exposed, denounced, threatened. They could not endure the creatures, who "used their neighbors' service without wages, and gave him not for his work;"[[A](#)] who imposed "heavy burdens"[[B](#)] upon their fellows, and loaded them with "the bands of wickedness;" who, "hiding themselves from their own flesh," disowned their own mothers' children. Professions of piety, joined with the oppression of the poor, they held up to universal scorn and execration, as the dregs of hypocrisy. They warned the creature of such professions, that he could escape the wrath of Jehovah only by heartfelt repentance. And yet, according to the ecclesiastics with whom we have to do, the Lord of these prophets passed by in silence just such enormities as he commanded them to expose and denounce! Every where, he came in contact with slavery in its worst forms--"horrible cruelties" forced themselves upon his notice; but not a word of rebuke or warning did he utter. He saw "a boy given for a harlot, and a girl sold for wine, that they might drink,"[[C](#)] without the slightest feeling of displeasure, or any mark of disapprobation! To such disgusting and horrible conclusions, do the arguings which, from the haunts of sacred literature, are inflicted on our churches, lead us! According to them, Jesus Christ, instead of shining as the light of the world, extinguished the torches which his own prophets had kindled, and plunged mankind into the palpable darkness of a starless midnight! O Savior, in pity to thy suffering people, let thy temple be no longer used as a "den of thieves!"

[Footnote [A](#): Jeremiah xxii. 13.]

[Footnote [B](#): Isaiah lviii. 6,7.]

[Footnote [C](#): Joel iii. 3.]

"THOU THOUGHTEST THAT I WAS ALTOGETHER SUCH AN ONE AS THYSELF."

In passing by the worst forms of slavery, with which he every where came in contact among the Jews, the Savior must have been inconsistent with himself. He was commissioned to preach glad tidings to the poor; to heal the broken-hearted; to preach deliverance to the captives; to set at liberty them that are bruised; to preach the year of Jubilee. In accordance with this commission, he bound himself, from the earliest date of his incarnation, to the poor, by the strongest ties; himself "had not where to lay his head;" he exposed himself to misrepresentation and abuse for his affectionate intercourse with the outcasts of society; he stood up as the advocate of the widow, denouncing and dooming the heartless ecclesiastics, who had made her bereavement a source of gain; and in describing the scenes of the final judgment, he selected the very personification of poverty, disease, and oppression, as the test by which our regard for him should be determined. To the poor and wretched; to the degraded and despised, his arms were ever open. They had his tenderest sympathies. They had his warmest love. His heart's blood he poured out upon the ground for the human family, reduced to the deepest degradation, and exposed to the heaviest inflictions, as the slaves of the grand usurper. And yet, according to our ecclesiastics, that class of sufferers who had been reduced immeasurably below every other shape and form of degradation and distress; who had been most rudely thrust out of the family of Adam, and forced to herd with swine; who, without the slightest offense, had been made the foot-stool of the worst criminals; whose "tears were their meat night and day," while, under nameless insults and killing injuries, they were continually crying, O Lord, O Lord:--this class of sufferers, and this alone, our biblical expositors, occupying the high places of sacred literature, would make us believe the compassionate Savior coldly overlooked. Not an emotion of pity; not a look of sympathy; not a word of consolation, did his gracious heart prompt him to bestow upon them! He denounces damnation upon the devourer of the widow's house. But the monster, whose trade it is to make widows and devour them and their babes, he can calmly endure! O Savior, when wilt thou stop the mouths of such blasphemers!

IT IS THE SPIRIT THAT QUICKENETH.

It seems, that though, according to our Princeton professor, "the subject" of slavery "is hardly alluded to by Christ in any of his personal instructions[[A](#)]," he had a way of "treating it." What was that? Why, "he

taught the true nature, DIGNITY, EQUALITY, and destiny of men," and "inculcated the principles of justice and love."[B] And according to Professor Stuart, the maxims which our Savior furnished, "decide against" "the theory of slavery." All, then, that these ecclesiastical apologists for slavery can make of the Savior's alledged silence is, that he did not, in his personal instructions, "*apply his own principles to this particular form of wickedness.*" For wicked that must be, which the maxims of the Savior decide against, and which our Princeton professor assures us the principles of the gospel, duly acted on, would speedily extinguish[C]. How remarkable it is, that a teacher should "hardly allude to a subject in any of his personal instructions," and yet inculcate principles which have a direct and vital bearing upon it!--should so conduct, as to justify the inference, that "slaveholding is not a crime[D]," and at the same time lend his authority for its "speedy extinction!"

[Footnote A: Pittsburgh pamphlet, (already alluded to,)p.9.]

[Footnote B: Pittsburgh pamphlet, p.9.]

[Footnote C: The same, p.34.]

[Footnote D: The same, p.13.]

Higher authority than sustains *self-evident truths* there can not be. As forms of reason, they are rays from the face of Jehovah. Not only are their presence and power self-manifested, but they also shed a strong and clear light around them. In this light, other truths are visible. Luminaries themselves, it is their office to enlighten. To their authority, in every department of thought, the sane mind bows promptly, gratefully, fully. And by their authority, he explains, proves, and disposes of whatever engages his attention and engrosses his powers as a reasonable and reasoning creature. For what, when thus employed and when most successful, is the utmost he can accomplish? Why, to make the conclusions which he would establish and commend, *clear in the light of reason*;--in other words, to evince that *they are reasonable*. He expects, that those with whom he has to do, will acknowledge the authority of principle--will see whatever is exhibited in the light of reason. If they require him to go further, and, in order to convince them, to do something more that show that the doctrines he maintains, and the methods he proposes, are accordant with reason--are

illustrated and supported by "self-evident truths"--they are plainly "beside themselves." They have lost the use of reason. They are not to be argued with. They belong to the mad-house.

"COME NOW, LET US REASON TOGETHER, SAITH THE LORD."

Are we to honor the Bible, which Prof. Stuart quaintly calls "the good old book," by turning away from "self-evident truths" to receive its instructions? Can these truths be contradicted or denied there? Do we search for something there to obscure their clearness, or break their force, or reduce their authority? Do we long to find something there, in the form of premises or conclusions, of arguing or of inference, in broad statements or blind hints, creed-wise or fact-wise, which may set us free from the light and power of first principles? And what if we were to discover what we were thus in search of?--something directly or indirectly, expressly or impliedly prejudicial to the principles, which reason, placing us under the authority of, makes self-evident? In what estimation, in that case, should we be constrained to hold the Bible? Could we longer honor it, as the book of God? *The book of God opposed to the authority of REASON!* Why, before what tribunal do we dispose of the claims of the sacred volume to divine authority? The tribunal of reason. *This every one acknowledges the moment he begins to reason on the subject.* And what must reason do with a book, which reduced the authority of its own principles--broke the force of self-evident truths? Is he not, by way of eminence, the apostle of infidelity, who, as a minister of the gospel or a professor of sacred literature, exerts himself, with whatever arts of ingenuity or show of piety, to exalt the Bible at the expense of reason? Let such arts succeed and such piety prevail, and Jesus Christ is "crucified afresh and put to an open shame."

What saith the Princeton professor? Why, in spite of "general principles," and "clear as we may think the arguments against DESPOTISM, there have been thousands of ENLIGHTENED *and good men*, who *honestly* believe it to be of all forms of government the best and most acceptable to God." [\[A\]](#) Now, these "good men" must have been thus warmly in favor of despotism, in consequence of, or in opposition to, their being "enlightened." In other words, the light, which in such abundance they enjoyed, conducted them to the position in favor of despotism, where the Princeton professor so heartily

shook hands with them, or they must have forced their way there in despite of its hallowed influence. Either in accordance with, or in resistance to the light, they became what he found them--the advocates of despotism. If in resistance to the light--and he says they were "enlightened men"--what, so far as the subject with which alone he and we are now concerned, becomes of their "honesty" and "goodness?" Good and honest resisters of the light, which was freely poured around them! Of such, what says Professor Stuart's "good old Book?" Their authority, where "general principles" command the least respect, must be small indeed. But if in accordance with the light, they have become the advocates of despotism, then is despotism "the best form of government and most acceptable to God." It is sustained by the authority of reason, by the word of Jehovah, by the will of Heaven! If this be the doctrine which prevails at certain theological seminaries, it must be easy to account for the spirit which they breathe, and the general influence which they exert. Why did not the Princeton professor place this "general principle" as a shield, heaven-wrought and reason-approved, over that cherished form of despotism which prevails among the churches of the South, and leave the "peculiar institutions" he is so forward to defend, under its protection?

[Footnote [A](#): Pittsburgh pamphlet, p.12.]

What is the "general principle" to which, whatever may become of despotism with its "honest" admirers and "enlightened" supporters, human governments should be universally and carefully adjusted? Clearly this--*that as capable of, man is entitled to, self-government*. And this is a specific form of a still more general principle, which may well be pronounced self-evident--*that every thing should be treated according to its nature*. The mind that can doubt of this, must be incapable of rational conviction. Man, then,--it is the dictate of reason, it is the voice of Jehovah--must be treated *as a man*. What is he? What are his distinctive attributes? The Creator impressed his own image on him. In this were found the grand peculiarities of his character. Here shone his glory. Here REASON manifests its laws. Here the WILL puts forth its *volitions*. Here is the crown of IMMORTALITY. Why such endowments? Thus furnished--the image of Jehovah--is he not capable of self-government? And is he not to be so treated? *Within the sphere where the laws of reason place him*, may he not act according to his choice--carry out his own *volitions*?--may he not enjoy

life, exult in freedom and pursue as he will the path of blessedness? If not, why was he so created and endowed? Why the mysterious, awful attribute of will? To be a source, profound as the depths of hell, of exquisite misery, of keen anguish, of insufferable torment! Was man formed "according to the image of Jehovah," to be crossed, thwarted, counteracted; to be forced in upon himself; to be the sport of endless contradictions; to be driven back and forth forever between mutually repellant forces; and all, all "*at the discretion of another!*"[[A](#)] How can men be treated according to his nature, as endowed with reason or will, if excluded from the powers and privileges of self government?--if "despotism" be let loose upon him, to "deprive him of personal liberty, oblige him to serve at the discretion of another," and with the power of "transferring" such "authority" over him and such claim upon him, to "another master?" If "thousands of enlightened and good men" can so easily be found, who are forward to support "despotism" as "of all governments the best and most acceptable to God," we need not wonder at the testimony of universal history, that "the whole creation groaneth and travaileth in pain together until now." Groans and travail-pangs must continue to be the order of the day throughout "the whole creation," till the rod of despotism be broken, and man be treated as man--as capable of, and entitled to, self-government.

[Footnote [A](#): Pittsburgh pamphlet, p.12]

But what is the despotism whose horrid features our smooth professor tries to hide beneath an array of cunningly-selected words and nicely-adjusted sentences? It is the despotism of American slavery--which crushes the very life of humanity out of its victims, and transforms them to cattle! At its touch, they sink from men to things! "Slaves," with Prof. Stuart, "were *property* in Greece and Rome. That decides all questions about their *relation*." Yes, truly. And slaves in republican America are *property*; and as that easily, clearly, and definitely settles "all questions about their *relation*," why should the Princeton professor have put himself to the trouble of weaving a definition equally ingenious and inadequate--at once subtle and deceitful? Ah, why? Was he willing thus to conceal the wrongs of his mother's children even from himself? If among the figments of his brain, he could fashion slaves, and make them something else than property, he knew full well that a very different pattern was in use among the southern patriarchs. Why did he not, in plain words, and sober earnest, and good

faith, describe the thing as it was, instead of employing honied words and courtly phrases, to set forth with all becoming vagueness and ambiguity what might possibly be supposed to exist in the regions of fancy.

"FOR RULERS ARE NOT A TERROR TO GOOD WORKS, BUT TO THE EVIL."

But are we, in maintaining the principle of self-government, to overlook the unripe, or neglected, or broken powers of any of our fellow-men with whom we may be connected?--or the strong passions, vicious propensities, or criminal pursuit of others? Certainly not. But in providing for their welfare, we are to exert influences and impose restraints suited to their character. In wielding those prerogatives which the social of our nature authorizes us to employ for their benefit, we are to regard them as they are in truth, not things, not cattle, not articles of merchandize, but men, our fellow-men--reflecting, from however battered and broken a surface, reflecting with us the image of a common Father. And the great principle of self-government is to be the basis, to which the whole structure of discipline under which they may be placed, should be adapted. From the nursery and village school on to the work-house and state-prison, this principle is over and in all things to be before the eyes, present in the thoughts, warm on the heart. Otherwise, God is insulted, while his image is despised and abused. Yes, indeed, we remember that in carrying out the principle of self-government, multiplied embarrassments and obstructions grow out of wickedness on the one hand and passion on the other. Such difficulties and obstacles we are far enough from overlooking. But where are they to be found? Are imbecility and wickedness, bad hearts and bad heads, confined to the bottom of society? Alas, the weakest of the weak, and the desperately wicked, often occupy the high places of the earth, reducing every thing within their reach to subserviency to the foulest purposes. Nay, the very power they have usurped, has often been the chief instrument of turning their heads, inflaming their passions, corrupting their hearts. All the world knows, that the possession of arbitrary power has a strong tendency to make men shamelessly wicked and insufferably mischievous. And this, whether the vassals over whom they domineer, be few or many. If you can not trust man with himself, will you put his fellows under his control?--and flee from the inconveniences incident to self-government, to the horrors of despotism?

"THOU THAT PREACHEST A MAN SHOULD NOT STEAL, DOST THOU STEAL."

Is the slaveholder, the most absolute and shameless of all despots, to be intrusted with the discipline of the injured men whom he himself has reduced to cattle?--with the discipline by which they are to be prepared to wield the powers and enjoy the privileges of freemen? Alas, of such discipline as he can furnish, in the relation of owner to property, they have had enough. From this sprang the vary ignorance and vice, which in the view of many lie in the way of their immediate enfranchisement. He it is, who has darkened their eyes and crippled their powers. And are they to look to him for illumination and renewed vigor!--and expect "grapes from thorns and figs from thistles!" Heaven forbid! When, according to arrangements which had usurped the sacred name of law, he consented to receive and use them as property, he forfeited all claims to the esteem and confidence, not only of the helpless sufferers themselves, but also of every philanthropist. In becoming a slaveholder, he became the enemy of mankind. The very act was a declaration of war upon human nature. What less can be made of the process of turning men to cattle? It is rank absurdity--it is the height of madness, to propose to employ *him* to train, for the places of freemen, those whom he has wantonly robbed of every right--whom he has stolen from themselves. Sooner place Burke, who used to murder for the sake of selling bodies to the dissector, at the head of a hospital. Why, what have our slaveholders been about these two hundred years? Have they not been constantly and earnestly engaged in the work of education? --training up their human cattle? And how? Thomas Jefferson shall answer. "The whole commerce between master and slave, is a perpetual exercise of the most boisterous passions; the most unremitting despotism on the one part, and degrading submission on the other." Is this the way to fit the unprepared for the duties and privileges of American citizens? Will the evils of the dreadful process be diminished by adding to it length? What, in 1818, was the unanimous testimony of the General Assembly of the Presbyterian church? Why, after describing a variety of influences growing out of slavery, most fatal to mental and moral improvement, the General Assembly assure us, that such "consequences are not imaginary, but connect themselves WITH THE VERY EXISTENCE of slavery. The evils to which the slave is *always* exposed, often take place in fact, and IN THEIR VERY WORST DEGREE

AND FORM[A]; and where all of them do not take place," "still the slave is deprived of his natural right, degraded as a human being, and exposed to the danger of passing into the hands of a master who may inflict upon him all the hardships and injuries, which inhumanity and avarice may suggest." Is this the condition in which our ecclesiastics would keep the slave, at least a little longer, to fit him to be restored to himself?

[Footnote A: The words here marked as emphasis were so distinguished by ourselves.]

"AND THEY STOPPED THEIR EARS."

The methods of discipline under which, as slaveholders, the Southrons now place their human cattle, they with one consent and in great wrath, forbid us to examine. The statesman and the priest unite in the assurance, that these methods are none of our business. Nay, they give us distinctly to understand, that if we come among them to take observations, and make inquiries, and discuss questions, they will dispose of us as outlaws. Nothing will avail to protect us from speedy and deadly violence! What inference does all this warrant? Surely, not that the methods which they employ are happy and worthy of universal application. If so, why do they not take the praise, and give us the benefit, of their wisdom, enterprise, and success? Who, that has nothing to hide, practices concealment?--"He that doeth truth cometh to the light, that his deeds may be manifest, that they are wrought in God." Is this the way of slaveholders? Darkness they court--they will have darkness. Doubtless "because their deeds are evil." Can we confide in methods for the benefit of our enslaved brethren, which it is death for us to examine? What good ever came, what good can we expect, from deeds of darkness?

Did the influence of the masters contribute any thing in the West Indies; to prepare the apprentices for enfranchisement? Nay, verily. All the world knows better. They did what in them lay, to turn back the tide of blessings, which through emancipation was pouring in upon the famishing around them. Are not the best minds and hearts in England now thoroughly convinced, that slavery, under no modification, can be a school for freedom?

We say such things to the many who alledge, that slaves can not at once be entrusted with the powers and privileges of self-government. However this may be, they can not be better qualified under *the influence of slavery*. *That must be broken up* from which their ignorance, and viciousness, and wretchedness proceeded. That which can only do what it has always done, pollute and degrade, must not be employed to purify and elevate. *The lower their character and condition, the louder, clearer, sterner, the just demand for immediate emancipation*. The plague-smitten sufferer can derive no benefit from breathing a little longer an infected atmosphere.

In thus referring to elemental principles--in thus availing ourselves of the light of self-evident truths--we bow to the authority and tread in the foot-prints of the great Teacher. He chid those around him for refusing to make the same use of their reason in promoting their spiritual, as they made in promoting their temporal welfare. He gives them distinctly to understand, that they need not go out of themselves to form a just estimation of their position, duties, and prospects, as standing in the presence of the Messiah. "Why, **EVEN OF YOURSELVES**," he demands of them, "judge ye not what is *right*?"^[A] How could they, unless they had a clear light, and an infallible standard *within them*, whereby, amidst the relations they sustained and the interests they had to provide for, they might discriminate between truth and falsehood, right and wrong, what they ought to attempt and what they ought to eschew? From this pointed, significant appeal of the Savior, it is clear and certain, that in human consciousness may be found self-evident truths, self-manifested principles; that every man, studying his own consciousness, is bound to recognize their presence and authority, and in sober earnest and good faith to apply them to the highest practical concerns of "life and godliness." It is in obedience to the Bible, that we apply self-evident truths, and walk in the light of general principles. When our fathers proclaimed these truths, and at the hazard of their property, reputation, and life, stood up in their defense, they did homage to the sacred Scriptures--they honored the Bible. In that volume, not a syllable can be found to justify that form of infidelity, which in the abused name of piety, reproaches us for practicing the lessons which "nature teacheth."^[B] These lessons, the Bible requires us reverently to listen to, earnestly to appropriate, and most diligently and faithfully to act upon in every direction and on all occasions.

[Footnote ^A: Luke xii. 67.]

[Footnote [B](#): 1 Cor. xi. 14.]

Why, our Savior goes so far in doing honor to reason, as to encourage men universally to dispose of the characteristic peculiarities and distinctive features of the Gospel in the light of its principles. "If any man will do his will, he shall know of the doctrine, whether it be of God, or whether I speak of myself." [[C](#)] Natural religion--the principles which nature reveals, and the lessons which nature teaches--he thus makes a test of the truth and authority of revealed religion. So far was he, as a teacher, from shrinking from the clearest and most piercing rays of reason--from calling off the attention of those around him from the import, bearings, and practical application of general principle. And those who would have us escape from the pressure of self-evident truths, by betaking ourselves to the doctrines and precepts of Christianity, whatever airs of piety they may put on, do foul dishonor to the Savior of mankind.

[Footnote [C](#): John vii. 17.]

And what shall we say of the Golden Rule, which, according to the Savior, comprehends all the precepts of the Bible? "Whatsoever ye would that men should do to you, do ye even so to them; for this is the law and the prophets."

According to this maxim, in human consciousness, universally, may be found, 1. The standard whereby, in all the relations and circumstances of life, we may determine what Heaven demands and expects of us. 2. The just application of this standard, is practicable for, and obligatory upon, every child of Adam. 3. The qualification requisite to a just application of this rule to all the cases in which we can be concerned, is simply this--*to regard all the members of the human family as our brethren, our equals.*

In other words, the Savior here teaches us, that in the principles and laws of reason, we have an infallible guide in all the relations and circumstances of life; that nothing can hinder our following this guide, but the bias of *selfishness*; and that the moment, in deciding any moral question, we place *ourselves in the room of our brother*, before the bar of reason, we shall see what decision ought to be pronounced. Does this, in the Savior, look like fleeing self-evident truths!--like decrying the authority of general principles!--like exalting himself at the expense of reason!--like opening a

refuge in the Gospel for those whose practice is at variance with the dictates of humanity!

What then is the just application of the Golden Rule--that fundamental maxim of the Gospel, giving character to, and shedding light upon, all its precepts and arrangements--to the subject of slavery?--*that we must "do to" slaves as we would be done by, AS SLAVES, the RELATION itself being justified and continued?* Surely not. A little reflection will enable us to see, that the Golden Rule reaches farther in its demands, and strikes deeper in its influences and operations. The *natural equality* of mankind lies at the very basis of this great precept. It obviously requires *every man to acknowledge another self in every other man*. With my powers and resources, and in my appropriate circumstances, I am to recognize in any child of Adam who may address me, another self in his appropriate circumstances and with his powers and resources. This is the natural equality of mankind; and this the Golden Rule requires us to admit, defend, and maintain.

"WHY DO YE NOT UNDERSTAND MY SPEECH; EVEN BECAUSE YE CAN NOT HEAR MY WORD."

They strangely misunderstand and grossly misrepresent this doctrine, who charge upon it the absurdities and mischiefs which *any "levelling system"* can not but produce. In all its bearings, tendencies, and effects, it is directly contrary and powerfully hostile to any such system. EQUALITY OF RIGHTS, the doctrine asserts; and this necessarily opens the way for *variety of condition*. In other words, every child of Adam has, from the Creator, the inalienable right of wielding, within reasonable limits, his own powers, and employing his own resources, according to his own choice; while he respects his social relations, to promote as he will his own welfare. But mark--HIS OWN powers and resources, and NOT ANOTHER'S, are thus inalienably put under his control. The Creator makes every man free, in whatever he may do, to exert HIMSELF, and not *another*. Here no man may lawfully cripple or embarrass another. The feeble may not hinder the strong, nor may the strong crush the feeble. Every man may make the most of himself; in his own proper sphere. Now, as in the constitutional endowments, and natural opportunities, and lawful acquisitions of mankind, infinite variety prevails, so in exerting each HIMSELF, in his own sphere, according to his own choice, the variety of human condition can be little

less than infinite. Thus equality of rights opens the way for variety of condition.

But with all this variety of make, means, and condition, considered individually, the children of Adam are bound together by strong ties which can never be dissolved. They are mutually united by the social of their nature. Hence mutual dependence and mutual claims. While each is inalienably entitled to assert and enjoy his own personality as a man, each sustains to all and all to each, various relations. While each owns and honors the individual, all are to own and honor the social of their nature. Now, the Golden Rule distinctly recognizes, lays its requisitions upon, and extends its obligations to, the whole nature of man, in his individual capacities and social relations. What higher honor could it do to man, as *an individual*, than to constitute him the judge, by whose decision, when fairly rendered, all the claims of his fellows should be authoritatively and definitely disposed of? "Whatsoever YE WOULD" have done to you, so do ye to others. Every member of the family of Adam, placing himself in the position here pointed out, is competent and authorized to pass judgment on all the cases in social life in which he may be concerned. Could higher responsibilities or greater confidence be reposed in men individually? And then, how are their *claims upon each other* herein magnified! What inherent worth and solid dignity are ascribed to the social of their nature! In every man with whom I may have to do, I am to recognize the presence of *another self*, whose case I am to make *my own*. And thus I am to dispose of whatever claims he may urge upon me.

Thus, in accordance with the Golden Rule, mankind are naturally brought, in the voluntary use of their powers and resources, to promote each other's welfare. As his contribution to this great object, it is the inalienable birth-right of every child of Adam, to consecrate whatever he may possess. With exalted powers and large resources, he has a natural claim to a correspondent field of effort. If his "abilities" are small, his task must be easy and his burden light. Thus the Golden Rule requires mankind mutually to serve each other. In this service, each is to exert *himself*--employ *his own* powers, lay out his own resources, improve his own opportunities. A division of labor is the natural result. One is remarkable for his intellectual endowments and acquisitions; another, for his wealth; and a third, for power and skill in using his muscles. Such attributes, endlessly varied and

diversified, proceed from the basis of a *common character*, by virtue of which all men and each--one as truly as another--are entitled, as a birth-right, to "life, liberty, and the pursuit of happiness." Each and all, one as well as another, may choose his own modes of contributing his share to the general welfare, in which his own is involved and identified. Under one great law of mutual dependence and mutual responsibility, all are placed--the strong as well as the weak, the rich as much as the poor, the learned no less than the unlearned. All bring their wares, the products of their enterprise, skill and industry, to the same market, where mutual exchanges are freely effected. The fruits of muscular exertion procure the fruits of mental effort. John serves Thomas with his hands, and Thomas serves John with his money. Peter wields the axe for James, and James wields the pen for Peter. Moses, Joshua, and Caleb, employ their wisdom, courage, and experience, in the service of the community, and the community serve Moses, Joshua, and Caleb, in furnishing them with food and raiment, and making them partakers of the general prosperity. And all this by mutual understanding and voluntary arrangement. And all this according to the Golden Rule.

What then becomes of *slavery*--a system of arrangements, in which one man treats his fellow, not as another self, but as a thing--a chattel--an article of merchandize, which is not to be consulted in any disposition which may be made of it;--a system which is built on the annihilation of the attributes of our common nature--in which man doth to others, what he would sooner die than have done to himself? The Golden Rule and slavery are mutually subversive of each other. If one stands, the other must fall. The one strikes at the very root of the other. The Golden Rule aims at the abolition of THE RELATION ITSELF, in which slavery consists. It lays its demands upon every thing within the scope of *human action*. To "whatever MEN DO," it extends its authority. And the relation itself, in which slavery consists, is the work of human hands. It is what men have done to each other--contrary to nature and most injurious to the general welfare. THIS RELATION, therefore, the Golden Rule condemns. Wherever its authority prevails, this relation must be annihilated. Mutual service and slavery--like light and darkness, life and death--are directly opposed to, and subversive of, each other. The one the Golden Rule can not endure; the other it requires, honors, and blesses.

"LOVE WORKETH NO ILL TO HIS NEIGHBOR."

Like unto the Golden Rule is the second great commandment--"*Thou shalt love thy neighbor as thyself.*" "A certain lawyer," who seems to have been fond of applying the doctrine of limitation of human obligations, once demanded of the Savior, within what limits the meshing of the word "neighbor" ought to be confined. "And who is my neighbor?" The parable of the good Samaritan set that matter in the clearest light, and made it manifest and certain, that *every man* whom we could reach with our sympathy and assistance, was our neighbor, entitled to the same regard which we cherished for ourselves. Consistently with such obligations, can *slavery*, as a RELATION, be maintained? Is it then a *labor of love*--such love as we cherish for ourselves--to strip a child of Adam of all the prerogatives and privileges which are his inalienable birth-right?--To obscure his reason, crush his will, and trample on his immortality?--To strike home to the inmost of his being, and break the heart of his heart?--To thrust him out of the human family, and dispose of him as a chattel--as a thing in the hands of an owner, a beast under the lash of a driver? All this, apart from every thing incidental and extraordinary, belongs to the RELATION, in which slavery, as such, consists. All this--well fed or ill fed, underwrought or overwrought, clothed or naked, caressed or kicked, whether idle songs break from his thoughtless tongue or "tears be his meat night and day," fondly cherished or cruelly murdered;--*all this ENTERS VITALLY INTO THE RELATION ITSELF, by which every slave, AS A SLAVE, is set apart from the rest of the human family.* Is it an exercise of love, to place our "neighbor" under the crushing weight, the killing power, of such a relation?--to apply the murderous steel to the very vitals of his humanity?

"YE THEREFORE APPLAUD AND DELIGHT IN THE DEEDS OF YOUR FATHERS; FOR THEY KILLED THEM, AND YE BUILD THEIR SEPULCHRES."[\[A\]](#)

The slaveholder may eagerly and loudly deny, that any such thing is chargeable upon him. He may confidently and earnestly alledge, that he is not responsible for the state of society in which he is placed. Slavery was established before he began to breathe. It was his inheritance. His slaves are his property by birth or testament. But why will he thus deceive himself?

Why will he permit the cunning and rapacious spiders, which in the very sanctuary of ethics and religion are laboriously weaving webs from their own bowels, to catch him with their wretched sophistries?--and devour him, body, soul, and substance? Let him know, as he must one day with shame and terror own, that whoever holds slaves is himself responsible for *the relation*, into which, whether reluctantly or willingly, he thus enters. *The relation can not be forced upon him.* What though Elizabeth countenanced John Hawkins in stealing the natives of Africa?--what though James, and Charles, and George, opened a market for them in the English colonies?--what though modern Dracos have "framed mischief by law," in legalizing man-stealing and slaveholding?--what though your ancestors, in preparing to go "to their own place," constituted you the owner of the "neighbors" whom they had used as cattle?--what of all this, and as much more like this, as can be drawn from the history of that dreadful process by which men "are deemed, sold, taken, reputed, and adjudged in law to be *chattels personal*?" Can all this force you to put the cap upon the climax--to clinch the nail by doing that, without which nothing in the work of slave-making would be attempted? *The slaveholder is the soul of the whole system.* Without him, the chattel principle is a lifeless abstraction. Without him, charters, and markets, and laws, and testaments, are empty names. And does *he* think to escape responsibility? Why, kidnappers, and soul-drivers, and law-makers, are nothing but his *agents*. He is the guilty *principal*. Let him look to it.

[Footnote [A](#): You join with them in their bloody work. They murder, and you bury the victims.]

But what can he do? Do? Keep his hands off his "neighbor's" throat. Let him refuse to finish and ratify the process by which the chattel principle is carried into effect. Let him refuse, in the face of derision, and reproach, and opposition. Though poverty should fasten its bony hand upon him, and persecution shoot forth its forked tongue; whatever may betide him--scorn, flight, flames--let him promptly and steadfastly refuse. Better the spite and hate of men than the wrath of Heaven! "If thy right eye offend thee, pluck it out and cast it from thee; for it is profitable for thee, that one of thy members should perish, and not that thy whole body should be cast into hell."

Prof. Stuart admits, that the Golden Rule and the second great commandment "decide against the theory of slavery as being in itself right." What, then, is their relation to the particular precepts, institutions, and usages, which are authorized and enjoined in the New Testament? Of all these, they are the summary expression--the comprehensive description. No precept in the Bible enforcing our mutual obligations, can be more or less than *the application of these injunctions to specific relations or particular occasions and conditions*. Neither in the Old Testament nor the New, do prophets teach or laws enjoin, any thing which the Golden Rule and the second great command do not contain. Whatever they forbid, no other precept can require; and whatever they require, no other precept can forbid. What, then, does he attempt, who turns over the sacred pages to find something in the way of permission or command, which may set him free from the obligations of the Golden Rule? What must his objects, methods, spirit be, to force him to enter upon such inquiries?--to compel him to search the Bible for such a purpose? Can he have good intentions, or be well employed? Is his frame of mind adapted to the study of the Bible?--to make its meaning plain and welcome? What must he think of God, to search his word in quest of gross inconsistencies and grave contradictions! Inconsistent legislation in Jehovah! Contradictory commands! Permissions at war with prohibitions! General requirements at variance with particular arrangements!

What must be the moral character of any institution which the Golden Rule decides against?--which the second great command condemns? *It can not but be wicked*, whether newly established or long maintained. However it may be shaped, turned, colored--under every modification and at all times--*wickedness must be its proper character. It must be, IN ITSELF, apart from its circumstances, IN ITS ESSENCE, apart from its incidents, SINFUL.*

"THINK NOT TO SAY WITHIN YOURSELVES, WE HAVE ABRAHAM FOR OUR FATHER."

In disposing of those precepts and exhortations which have a specific bearing upon the subject of slavery, it is greatly important, nay, absolutely essential, that we look forth upon the objects around us, from the right post of observation. Our stand we must take at some central point, amidst the general maxims and fundamental precepts, the known circumstances and

characteristic arrangements, of primitive Christianity. Otherwise, wrong views and false conclusions will be the result of our studies. We can not, therefore, be too earnest in trying to catch the general features and prevalent spirit of the New Testament institutions and arrangements. For to what conclusions must we come, if we unwittingly pursue our inquiries under the bias of the prejudice, that the general maxims of social life which now prevail in this country, were current, on the authority of the Savior, among the primitive Christians! That, for instance, wealth, station, talents, are the standard by which our claims upon, and our regard for, others, should be modified?--That those who are pinched by poverty, worn by disease, tasked in menial labors, or marked by features offensive to the taste of the artificial and capricious, are to be excluded from those refreshing and elevating influences which intelligence and refinement may be expected to exert; that thus they are to constitute a class by themselves, and to be made to know and keep their place at the very bottom of society? Or, what if we should think and speak of the primitive Christians, as if they had the same pecuniary resources as Heaven has lavished upon the American churches?--as if they were as remarkable for affluence, elegance, and splendor? Or, as if they had as high a position and as extensive an influence in politics and literature?--having directly or indirectly, the control over the high places of learning and of power?

If we should pursue our studies and arrange our arguments--if we should explain words and interpret language--under such a bias, what must inevitably be the results? What would be the worth of our conclusions? What confidence could be reposed in any instruction we might undertake to furnish? And is not this the way in which the advocates and apologists of slavery dispose of the bearing which primitive Christianity has upon it? They first ascribe, unwittingly perhaps, to the primitive churches, the character, relations, and condition, of American Christianity, and amidst the deep darkness and strange confusion thus produced, set about interpreting the language and explaining the usages of the New Testament!

"SO THAT YE ARE WITHOUT EXCUSE."

Among the lessons of instruction which our Savior imparted, having a general bearing on the subject of slavery, that in which he sets up the *true standard of greatness*, deserves particular attention. In repressing the

ambition of his disciples, he held up before them the methods by which alone healthful aspirations for eminence could be gratified, and thus set the elements of true greatness in the clearest light. "Ye know, that they which are accounted to rule over the Gentiles, exercise lordship over them; and their great ones exercise authority upon them. But so shall it not be among you; but whosoever will be great among you, shall be your minister; *and whosoever of you will be chiefest, shall be servant of all.*" In other words, through the selfishness and pride of mankind, the maxim widely prevails in the world, that it is the privilege, prerogative, and mark of greatness, TO EXACT SERVICE; that our superiority to others, while it authorizes us to relax the exertion of our own powers, gives us a fair title to the use of theirs; that "might," while it exempts us from serving, "gives the right" to be served. The instructions of the Savior open the way to greatness for us in the opposite direction. Superiority to others, in whatever it may consist, gives us a claim to a wider field of exertion, and demands of us a larger amount of service. We can be great only as we *are useful*. And "might gives right" to bless our fellow men, by improving every opportunity and employing every faculty, affectionately, earnestly, and unweariedly, in their service. Thus the greater the man, the more active, faithful, and useful the servant.

The Savior has himself taught us how this doctrine must be applied. He bids us improve every opportunity and employ every power, even, through the most menial services, in blessing the human family. And to make this lesson shine upon our understandings and move our hearts, he embodied it in a most instructive and attractive example. On a memorable occasion, and just before his crucifixion, he discharged for his disciples the most menial of all offices--taking, *in washing their feet*, the place of the lowest servant. He took great pains to make them understand, that only by imitating this example could they honor their relations to him as their Master; that thus only would they find themselves blessed. By what possibility could slavery exist under the influence of such a lesson, set home by such an example? *Was it while washing the disciples' feet, that our Savior authorized one man to make a chattel of another?*

To refuse to provide for ourselves by useful labor, the apostle Paul teaches us to regard as a grave offence. After reminding the Thessalonian Christians, that in addition to all his official exertions he had with his own

muscles earned his own bread, he calls their attention to an arrangement which was supported by *apostolical* authority, "that if any would not work, neither should he eat." In the most earnest and solemn manner, and as a minister of the Lord Jesus Christ, he commanded and exhorted those who neglected useful labor, "*with quietness to work and eat their own bread.*" What must be the bearing of all this upon slavery? Could slavery be maintained where every man eat the bread which himself had earned?--where idleness was esteemed so great a crime, as to be reckoned worthy of starvation as a punishment? How could unrequited labor be exacted, or used, or needed? Must not every one in such a community contribute his share to the general welfare?--and mutual service and mutual support be the natural result?

The same apostle, in writing to another church, describes the true source whence the means of liberality ought to be derived. "Let him that stole steal no more; but rather let him labor, working with his hands the thing which is good, that he may have to give to him that needeth." Let this lesson, as from the lips of Jehovah, be proclaimed throughout the length and breadth of South Carolina. Let it be universally welcomed and reduced to practice. Let thieves give up what they had stolen to the lawful proprietors, cease stealing, and begin at once to "labor, working with their hands," for necessary and charitable purposes. Could slavery, in such a case, continue to exist? Surely not! Instead of exacting unpaid services from others, every man would be busy, exerting himself not only to provide for his own wants, but also to accumulate funds, "that he might have to give to" the needy. Slavery must disappear, root and branch, at once and forever.

In describing the source whence his ministers should expect their support, the Savior furnished a general principle, which has an obvious and powerful bearing on the subject of slavery. He would have them remember, while exerting themselves for the benefit of their fellow men, that "the laborer is worthy of his hire." He has thus united wages with work. Whoever renders the one is entitled to the other. And this manifestly according to a mutual understanding and a voluntary arrangement. For the doctrine that I may force you to work for me for whatever consideration I may please to fix upon, fairly opens the way for the doctrine, that you, in turn, may force me to render you whatever wages you may choose to exact for any services you may see fit to render. Thus slavery, even as involuntary servitude, is cut up

by the root. Even the Princeton professor seems to regard it as a violation of the principle which unites work with wages.

The apostle James applies this principle to the claims of manual laborers--of those who hold the plough and thrust in the sickle. He calls the rich lordlings who exacted sweat and withheld wages, to "weeping and howling," assuring them that the complaints of the injured laborer had entered into the ear of the Lord of Hosts, and that, as a result of their oppression, their riches were corrupted, and their garments moth-eaten; their gold and silver were cankered; that the rest of them should be a witness against them, and should eat their flesh as it were fire; that, in one word, they had heaped treasure together for the last days, when "miseries were coming upon them," the prospect of which might well drench them in tears and fill them with terror. If these admonition and warnings were heeded there, would not "the South" break forth into "weeping and wailing, and gnashing of teeth?" What else are its rich men about, but withholding by a system of fraud, his wages from the laborer, who is wearing himself out under the impulse of fear, in cultivating their fields and producing their luxuries? Encouragement and support do they derive from James, in maintaining the "peculiar institution" whence they derived their wealth, which they call patriarchal, and boast of as the "corner-stone" of the republic?

In the New Testament, we have, moreover, the general injunction, "*Honor all men.*" Under this broad precept, every form of humanity may justly claim protection and respect. The invasion of any human right must do dishonor to humanity, and be a transgression of this command. How then, in the light of such obligations, must slavery be regarded? Are those men honored, who are rudely excluded from a place in the human family, and shut up to the deep degradation and nameless horrors of chattelship? *Can they be held as slaves, and at the same time be honored as men?*

How far, in obeying this command, we are to go, we may infer from the admonitions and instructions which James applies to the arrangements and usages of religious assemblies. Into these he can not allow "respect of persons" to enter. "My brethren," he exclaims, "have not the faith of our Lord Jesus Christ, the Lord of glory, with respect of persons. For if there come unto your assembly a man with a gold ring, in goodly apparel; and

there come in also a poor man in vile raiment; and ye have respect to him that weareth the gay clothing, and say unto him, sit thou here in a good place; and say to the poor, stand thou there, or sit here under my footstool; are ye not then partial in yourselves, and are become judges of evil thoughts? *If ye have respect to persons, ye commit sin, and are convinced of the law as transgressors.*" On this general principle, then, religious assemblies ought to be regulated--that every man is to be estimated, not according to his *circumstances*--not according to any thing incidental to his *condition*; but according to his *moral worth*--according to the essential features and vital elements of his *character*. Gold rings and gay clothing, as they qualify no man for, can entitle no man to, a "good place" in the church. Nor can the "vile raiment of the poor man," fairly exclude him from any sphere, however exalted, which his heart and head may fit him to fill. To deny this, in theory or practice, is to degrade a man below a thing; for what are gold rings, or gay clothing, or vile raiment, but things, "which perish with the using?" And this must be "to commit sin, and be convinced of the law as transgressors."

In slavery, we have "respect of persons," strongly marked, and reduced to system. Here men are despised not merely for "the vile raiment," which may cover their scarred bodies. This is bad enough. But the deepest contempt for humanity here grows out of birth or complexion. Vile raiment may be, often is, the result of indolence, or improvidence, or extravagance. It may be, often is, an index of character. But how can I be responsible for the incidents of my birth?--how for my complexion? To despise or honor me for these, is to be guilty of "respect of persons" in its grossest form, and with its worst effects. It is to reward or punish me for what I had nothing to do with; for which, therefore, I can not, without the greatest injustice, be held responsible. It is to poison the very fountains of justice, by confounding all moral distinctions. It is with a worse temper, and in the way of inflicting infinitely greater injuries, to copy the kingly folly of Xerxes, in chaining and scourging the Hellespont. What, then, so far as the authority of the New Testament is concerned, becomes of slavery, which can not be maintained under any form nor for a single moment, without "respect of persons" the most aggravated and unendurable? And what would become of that most pitiful, silly, and wicked arrangement in so many of our churches,

in which worshipers of a dark complexion are to be shut up to the negro pew?[[A](#)]

[Footnote [A](#): In Carlyle's Review of the Memoirs of Mirabeau, we have the following anecdote, illustrative of the character of a "grandmother" of the Count. "Fancy the dame Mirabeau sailing stately towards the church font; another dame striking in to take precedence of her; the dame Mirabeau despatching this latter with a box on the ear, and these words, '*Here, as in the army, THE BAGGAGE goes last!*'" Let those who justify the negro-pew-arrangement, throw a stone at this proud woman--if they dare.]

Nor are we permitted to confine this principle to *religious* assemblies. It is to pervade social life every where. Even where plenty, intelligence, and refinement, diffuse their brightest rays, the poor are to be welcomed with especial favor. "Then said he to him that bade him, when thou makest a dinner or a supper, call not thy friends, nor thy brethren, neither thy kinsmen, nor thy rich neighbors, lest they also bid thee again, and a recompense be made thee. But when thou makest a feast, call the poor and the maimed, the lame and the blind, and thou shalt be blessed; for they can not recompense thee, but thou shalt be recompensed at the resurrection of the just."

In the high places of social life then--in the parlor, the drawing-room, the saloon--special reference should be had, in every arrangement, to the comfort and improvement of those who are least able to provide for the cheapest rites of hospitality. For these, ample accommodations must be made, whatever may become of our kinsmen and rich neighbors. And for this good reason, that while such occasions signify little to the latter, to the former they are pregnant with good--raising their drooping spirits, cheering their desponding hearts, inspiring them with life, and hope, and joy. The rich and the poor thus meeting joyfully together, can not but mutually contribute to each other's benefit; the rich will be led to moderation, sobriety, and circumspection, and the poor to industry, providence, and contentment. The recompense must be rich and sure.

A most beautiful and instructive commentary on the text in which these things are taught, the Savior furnished in his own conduct. He freely mingled with those who were reduced to the very bottom of society. At the

tables of the outcasts of society, he did not hesitate to be a cheerful guest, surrounded by publicans and sinners. And when flouted and reproached by smooth and lofty ecclesiastics, as an ultraist and leveler, he explained and justified himself by observing, that he had only done what his office demanded. It was his to seek the lost, to heal the sick, to pity the wretched;-in a word, to bestow just such benefits as the various necessities of mankind made appropriate and welcome. In his great heart, there was room enough for those who had been excluded from the sympathy of little souls. In its spirit and design, the gospel overlooked none--least of all, the outcasts of a selfish world.

Can slavery, however modified, be consistent with such a gospel?--a gospel which requires us, even amidst the highest forms of social life, to exert ourselves to raise the depressed by giving our warmest sympathies to those who have the smallest share in the favor of the world?

Those who are in "bonds" are set before us as deserving an especial remembrance. Their claims upon us are described as a modification of the Golden Rule--as one of the many forms to which its obligations are reducible. To them we are to extend the same affectionate regard as we would covet for ourselves, if the chains upon their limbs were fastened upon ours. To the benefits of this precept, the enslaved have a natural claim of the greatest strength. The wrongs they suffer, spring from a persecution which can hardly be surpassed in malignancy. Their birth and complexion are the occasion of the insults and injuries which they can neither endure nor escape. It is for the *work of God*, and not them own deserts, that they are loaded with chains. *This is persecution.*

Can I regard the slave as another self--can I put myself in his place--and be indifferent to his wrongs? Especially, can I, thus affected, take sides with the oppressor? Could I, in such a state of mind as the gospel requires me to cherish, reduce him to slavery or keep him in bonds? Is not the precept under hand naturally subversive of every system and every form of slavery?

The *general descriptions* of the church which are found here and there in the New Testament, are highly instructive in their bearing on the subject of slavery. In one connection, the following words meet the eye: "There is neither Jew nor Greek, there is neither bond nor free, there is neither male

nor female; for ye are all one in Christ Jesus."[A] Here we have--1. A clear and strong description of the doctrine of *human equality*. "Ye are all ONE;"--so much alike, so truly placed on common ground, all wielding each his own powers with such freedom, *that one is the same as another*.

[Footnote A: Gal. iii. 23.]

2. This doctrine, self-evident in the light of reason, is affirmed on divine authority. "IN CHRIST JESUS, *ye are all one*." The natural equality of the human family is a part of the gospel. For--

3. All the human family are included in this description. Whether men or women, whether bond or free, whether Jews or Gentiles, all are alike entitled to the benefit of this doctrine. Wherever Christianity prevails, the *artificial* distinctions which grow out of birth, condition, sex, are done away. *Natural* distinctions are not destroyed. *They* are recognized, hallowed, confirmed. The gospel does not abolish the sexes, forbid a division of labor, or extinguish patriotism. It takes woman from beneath the feet, and places her by the side of man; delivers the manual laborer from "the yoke," and gives him wages for his work; and brings the Jew and Gentile to embrace each other with fraternal love and confidence. Thus it raises all to a common level, gives to each the free use of his own powers and resources, binds all together in one dear and loving brotherhood. Such, according to the description of the apostle, was the influence, and such the effect of primitive Christianity. "Behold the picture!" Is it like American slavery, which, in all its tendencies and effects, is destructive of all oneness among brethren?

"Where the spirit of the Lord is," exclaims the same apostle, with his eye upon the condition and relations of the church, "*where the spirit of the Lord is, THERE IS LIBERTY*." Where, then, may we reverently recognize the presence, and bow before the manifested power, of this spirit? *There*, where the laborer may not choose how he shall be employed!--in what way his wants shall he supplied!--with whom he shall associate!--who shall have the fruit of his exertions! *There*, where he is not free to enjoy his wife and children! *There*, where his body and his soul, his very "destiny,"[A] are placed altogether beyond his control! *There*, where every power is crippled, every energy blasted, every hope crushed! *There*, where in all the relations

and concerns of life, he is legally treated as if he had nothing to do with the laws of reason, the light of immortality, or the exercise of will! Is the spirit of the Lord *there*, where liberty is decried and denounced, mocked at and spit upon, betrayed and crucified! In the midst of a church which justified slavery, which derived its support from slavery, which carried on its enterprises by means of slavery, would the apostle have found the fruits of the Spirit of the Lord! Let that Spirit exert his influences, and assert his authority, and wield his power, and slavery must vanish at once and forever.

[Footnote [A](#): "The Legislature [of South Carolina] from time to time, has passed many restricted and penal acts, with a view to bring under direct control and subjection the *DESTINY of the black population*." See the Remonstrance of James S. Pope and 352 others, against home missionary efforts for the benefit of the enslaved--a most instructive paper.]

In more than one connection, the apostle James describes Christianity as "*the law of liberty*." It is in other words the law under which liberty can not but live and flourish--the law in which liberty is clearly defined, strongly asserted, and well protected. As the law of liberty, how can it be consistent with the law of slavery? The presence and the power of this law are felt wherever the light of reason shines. They are felt in the uneasiness and conscious degradation of the slave, and in the shame and remorse which the master betrays in his reluctant and desperate efforts to defend himself. This law it is which has armed human nature against the oppressor. Wherever it is obeyed, "every yoke is broken."

In these references to the New Testament we have a *general description* of the primitive church, and the *principles* on which it was founded and fashioned. These principles bear the same relation to Christian *history* as to Christian *character*, since the former is occupied with the development of the latter. What then is Christian character but Christian principle *realized*, acted out, bodied forth, and animated? Christian principle is the soul, of which Christian character is the expression--the manifestation. It comprehends in itself, as a living seed, such Christian character, under every form, modification, and complexion. The former is, therefore, the test and interpreter of the latter. In the light of Christian principle, and in that light only, we can judge of and explain Christian character. Christian history is occupied with the forms, modifications, and various aspects of Christian

character. The facts which are there recorded serve to show, how Christian principle has fared in this world--how it has appeared, what it has done, how it has been treated. In these facts we have the various institutions, usages, designs, doings, and sufferings of the church of Christ. And all these have of necessity, the closest relation to Christian principle. They are the production of its power. Through them, it is revealed and manifested. In its light, they are to be studied, explained, and understood. Without it they must be as unintelligible and insignificant as the letters of a book, scattered on the wind.

In the principles of Christianity, then, we have a comprehensive and faithful account of its objects, institutions, and usages--of how it must behave, and act, and suffer, in a world of sin and misery. For between the principles which God reveals, on the one hand, and the precepts he enjoins, the institutions he establishes, and the usages he approves, on the other, there must be consistency and harmony. Otherwise we impute to God what we must abhor in man--practice at war with principle. Does the Savior, then, lay down the *principle* that our standing in the church must depend upon the habits, formed within us, of readily and heartily subserving the welfare of others; and permit us *in practice* to invade the rights and trample on the happiness of our fellows, by reducing them to slavery. Does he, *in principle* and by example, require us to go all lengths in rendering mutual service, comprehending offices the most menial, as well as the most honorable; and permit us *in practice* to EXACT service of our brethren, as if they were nothing better than "articles of merchandize?" Does he require us *in principle* "to work with quietness and eat our own bread;" and permit us *in practice* to wrest from our brethren the fruits of their unrequited toil? Does he in principle require us, abstaining from every form of theft, to employ our powers in useful labor, not only to provide for ourselves but also to relieve the indigence of others; and permit us *in practice*, abstaining from every form of labor, to enrich and aggrandize ourselves with the fruits of man-stealing? Does he require us *in principle* to regard "the laborer as worthy of his hire;" and permit us *in practice* to defraud him of his wages? Does he require us *in principle* "to honor ALL men;" and permit us *in practice* to treat multitudes like cattle? Does he *in principle* prohibit "respect of persons;" and permit us *in practice* to place the feet of the rich upon the necks of the poor? Does he *in principle* require us to sympathize

with the bondman as another self; and permit us *in practice* to leave him unpitied and unhelpt in the hands of the oppressor? *In principle*, "where the Spirit of the Lord is, there is liberty;" *in practice*, is *slavery* the fruit of the Spirit? *In principle*, Christianity is the law of liberty; *in practice*, is it the law of slavery? Bring practice in these various respects into harmony with principle, and what becomes of slavery? And if, where the divine government is concerned, practice is the expression of principle, and principle the standard and interpreter of practice, such harmony cannot but be maintained and must be asserted. In studying, therefore, fragments of history and sketches of biography--in disposing of references to institutions, usages, and facts in the New Testament, this necessary harmony between principle and practice in the government, should be continually present to the thoughts of the interpreter. Principles assert what practice must be. Whatever principle condemns, God condemns. It belongs to those weeds of the dunghill which, planted by "an enemy," his hand will assuredly "root up." It is most certain, then, that if slavery prevailed in the first ages of Christianity, it could nowhere have prevailed under its influence and with its sanction.

The *condition* in which, in its efforts to bless mankind, the primitive church was placed, must have greatly assisted the early Christians in understanding and applying the principles of the gospel.--Their *Master* was born in great obscurity, lived in the deepest poverty, and died the most ignominious death. The place of his residence, his familiarity with the outcasts of society, his welcoming assistance and support from female hands, his casting his beloved mother, when he hung upon the cross, upon the charity of a disciple--such things evince the depth of his poverty, and show to what derision and contempt he must have been exposed. Could such an one, "despised and rejected of men--a man of sorrows and acquainted with grief," play the oppressor, or smile on those who made merchandize of the poor!

And what was the history of the *apostles*, but an illustration of the doctrine, that "it is enough for the disciple, that he be as his Master?" Were they lordly ecclesiastics, abounding with wealth, shining with splendor, bloated with luxury! Were they ambitious of distinction, fleecing, and trampling, and devouring "the flocks," that they themselves might "have the pre-eminence!" Were they slaveholding bishops! Or did they derive their

support from the wages of iniquity and the price of blood! Can such inferences be drawn from the account of their condition, which the most gifted and enterprising of their number has put upon record? "Even unto this present hour, we both hunger, and thirst, and are naked, and *are buffeted*, and have *no certain dwelling place, and labor working with our own hands*. Being reviled, we bless; being persecuted, we suffer it; being defamed, we entreat; we are made as *the filth of the world*, and are THE OFFSCOURING OF ALL THINGS unto this day[A]." Are these the men who practiced or countenanced slavery? *With such a temper, they WOULD NOT; in such circumstances, they COULD NOT*. Exposed to "tribulation, distress, and persecution;" subject to famine and nakedness, to peril and the sword; "killed all the day long; accounted as sheep for the slaughter[B]," they would have made but a sorry figure at the great-house or slave-market!

[Footnote [A](#): 1 Cor. iv. 11-13.]

[Footnote [B](#): 1 Rom. viii. 35, 36.]

Nor was the condition of the brethren, generally, better than that of the apostles. The position of the apostles doubtless entitled them to the strongest opposition, the heaviest reproaches, the fiercest persecution. But derision and contempt must have been the lot of Christians generally. Surely we cannot think so ill of primitive Christianity as to suppose that believers, generally, refused to share in the trials and sufferings of their leaders; as to suppose that while the leaders submitted to manual labor, to buffeting, to be reckoned the filth of the world, to be accounted as sheep for the slaughter, his brethren lived in affluence, ease, and honor! despising manual labor! and living upon the sweat of unrequited toil! But on this point we are not left to mere inference and conjecture. The apostle Paul in the plainest language explains the ordination of Heaven. "But *God hath CHOSEN* the foolish things of the world to confound the wise; and God hath CHOSEN the weak things of the world to confound the things which are mighty; and base things of the world, and things which are despised hath God CHOSEN, yea, and THINGS WHICH ARE NOT, to bring to nought things that are." [A] Here we may well notice,

[Footnote [A](#): 1 Cor. i. 27, 28.]

1. That it was not by *accident*, that the primitive churches were made up of such elements, but the result of the DIVINE CHOICE--an arrangement of His wise and gracious Providence. The inference is natural, that this ordination was co-extensive with the triumphs of Christianity. It was nothing new or strange, that Jehovah had concealed his glory "from the wise and prudent, and had revealed it unto babes," or that "the common people heard him gladly," while "not many wise men after the flesh, not many mighty, not many noble, had been called."

2. The description of character which the apostle records, could be adapted only to what are reckoned the *very dregs of humanity*. The foolish and the weak, the base and the contemptible, in the estimation of worldly pride and wisdom--these were they whose broken hearts were reached, and moulded, and refreshed by the gospel; these were they whom the apostle took to his bosom as his own brethren.

That *slaves* abounded at Corinth, may easily be admitted. *They* have a place in the enumeration of elements of which, according to the apostle, the church there was composed. The most remarkable class found there, consisted of "THINGS WHICH ARE NOT"--mere nobodies, not admitted to the privileges of men, but degraded to a level with "goods and chattels;" of whom *no account* was made in such arrangements of society as subserved the improvement, and dignity, and happiness of MANKIND. How accurately this description applies to those who are crushed under the chattel principle!

The reference which the apostle makes to the "deep poverty of the churches of Macedonia,"[[B](#)] and this to stir up the sluggish liberality of his Corinthian brethren, naturally leaves the impression, that the latter were by no means inferior to the former in the gifts of Providence. But, pressed with want and pinched by poverty as were the believers in "Macedonia and Achaia, it pleased them to make a certain contribution for the poor saints which were at Jerusalem."[[C](#)] Thus it appears, that Christians every where were familiar with contempt and indigence, so much so, that the apostle would dissuade such as had no families from assuming the responsibilities of the conjugal relation[[D](#)]!

[Footnote [B](#): 2 Cor. viii. 2.]

[Footnote [C](#): Rom. xv. 26.]

[Footnote [D](#): 1 Cor. vi 26,27]

Now, how did these good people treat each other? Did the few among them, who were esteemed wise, mighty, or noble, exert their influence and employ their power in oppressing the weak, in disposing of the "things that are not," as marketable commodities!--kneeling with them in prayer in the evening, and putting them up at auction the next morning! Did the church sell any of the members to swell the "certain contribution for the poor saints at Jerusalem!" Far otherwise--as far as possible! In those Christian communities where the influence of the apostles was most powerful, and where the arrangements drew forth their highest commendations, believers treated each other as brethren, in the strongest sense of that sweet word. So warm was their mutual love, so strong the public spirit, so open-handed and abundant the general liberality, that they are set forth as "*having all things common*." [[E](#)] Slaves and their holders here? Neither the one nor the other could in that relation to each other have breathed such an atmosphere. The appeal of the kneeling bondman, "Am I not a man and a brother," must here have met with a prompt and powerful response.

[Footnote [E](#): Acts iv. 32]

The *tests* by which our Savior tries the character of his professed disciples, shed a strong light upon the genius of the gospel. In one connection[[F](#)], an inquirer demands of the Savior, "What good thing shall I do that I may have eternal life?" After being reminded of the obligations which his social nature imposed upon him, he ventured, while claiming to be free from guilt in his relations to mankind, to demand, "what lack I yet?" The radical deficiency under which his character labored, the Savior was not long or obscure in pointing out. If thou wilt be perfect, go and sell that thou hast and give to the poor, and thou shalt have treasure in heaven; and come and follow me. On this passage it is natural to suggest--

[Footnote [E](#): Luke xvii 18-24]

1. That we have here a *test of universal application*. The rectitude and benevolence of our Savior's character forbid us to suppose that he would subject this inquirer, especially as he was highly amiable, to a trial, where eternal life was at stake, *peculiarly* severe. Indeed, the test seems to have been only a fair exposition of the second great command, and of course it must be applicable to all who are placed under the obligations of that precept. Those who can not stand this test, as their character is radically imperfect and unsound, must, with the inquirer to whom our Lord applied it, be pronounced unfit for the kingdom of heaven.

2. The least that our Savior can in that passage be understood to demand is, that we disinterestedly and heartily devote ourselves to the welfare of mankind, "the poor" especially. We are to put ourselves on a level with *them*, as we must do "in selling that we have" for their benefit--in other words, in employing our powers and resources to elevate their character, condition, and prospects. This our Savior did; and if we refuse to enter into sympathy and cooperation with him, how can we be his *followers*? Apply this test to the slaveholder. Instead of "selling that he hath" for the benefit of the poor, he BUYS THE POOR, and exacts their sweat with stripes, to enable him to "clothe himself in purple and fine linen, and fare sumptuously every day;" or, HE SELLS THE POOR to support the gospel and convert the heathen!

What, in describing the scenes of the final judgment, does our Savior teach us? *By what standard* must our character be estimated, and the *retributions* of eternity be awarded? A standard, which both the righteous and the wicked will be surprised to see erected. From the "offscouring of all things," the meanest specimen of humanity will be selected--a "stranger" in the hands of the oppressor, naked, hungry, sickly; and this stranger, placed in the midst of the assembled universe, by the side of the sovereign Judge, will be openly acknowledged as his representative. "Glory, honor, and immortality," will be the reward of those who had recognized and cheered their Lord through his outraged poor. And tribulation, anguish, and despair, will seize on "every soul of man," who had neglected or despised them. But whom, within the limits of our country, are we to regard especially as the representatives of our final Judge? Every feature of the Savior's picture finds its appropriate original in our enslaved countrymen.

1. They are the LEAST of his brethren.
2. They are subject to thirst and hunger, unable to command a cup of water or a crumb of bread.
3. They are exposed to wasting sickness, without the ability to procure a nurse or employ a physician.
4. They are emphatically "in prison," restrained by chains, goaded with whips, tasked, and under keepers. Not a wretch groans in any cell of the prisons of our country, who is exposed to a confinement so rigorous and heart-breaking as the law allows theirs to be continually and permanently.
5. And then they are emphatically, and peculiarly, and exclusively, STRANGERS--*strangers* in the land which gave them birth. Whom else do we constrain to remain aliens in the midst of our free institutions? The Welch, the Swiss, the Irish? The Jews even? Alas, it is the *negro* only, who may not strike his roots into our soil. Every where we have conspired to treat him as a stranger--every where he is forced to feel himself a stranger. In the stage and steamboat, in the parlor and at our tables, in the scenes of business and in the scenes of amusement--even in the church of God and at the communion table, he is regarded as a stranger. The intelligent and religious are generally disgusted and horror-struck at the thought of his becoming identified with the citizens of our republic--so much so, that

thousands of them have entered into a conspiracy to send him off "out of sight," to find a home on a foreign shore!--And justify themselves by openly alledging, that a "single drop" of his blood, in the veins of any human creature, must make him hateful to his fellow citizens!--That nothing but banishment from "our coasts," can redeem him from the scorn and contempt to which his "stranger" blood has reduced him among his own mother's children!

Who, then, in this land "of milk and honey," is "hungry and athirst," but the man from whom the law takes away the last crumb of bread and the smallest drop of water?

Who "naked," but the man whom the law strips of the last rag of clothing?

Who "sick," but the man whom the law deprives of the power of procuring medicine or sending for a physician?

Who "in prison," but the man who, all his life is under the control of merciless masters and cruel keepers?

Who a "stranger," but the man who is scornfully denied the cheapest courtesies of life--who is treated as an alien in his native country?

There is one point in this awful description which deserves particular attention. Those who are doomed to the left hand of the Judge, are not charged with inflicting *positive injuries* on their helpless, needy, and oppressed brother. Theirs was what is often called *negative* character. What they *had done* is not described in the indictment. Their *neglect* of duty, what they *had NOT done*, was the ground of their "everlasting punishment." The representative of their Judge, they had seen a hungered and they gave him no meat, thirsty and they have him no drink, a stranger and they took him not in, naked and they clothed him not, sick and in prison and they visited him not. In as much as they did NOT yield to the claims of suffering humanity--did NOT exert themselves to bless the meanest of the human family, they were driven away in their wickedness. But what if the indictment had run thus: I was a hungered and ye snatched away the crust which might have saved me from starvation; I was thirsty and ye dashed to the ground the "cup of cold water," which might have moistened my parched lips; I was a stranger and ye drove me from the hovel which might

have sheltered me from the piercing wind; I was sick and ye scourged me to my task; in prison and you sold me for my jail-fees--to what depths of hell must not those who were convicted under such charges be consigned! And what is the history of American slavery but one long indictment, describing under ever-varying forms and hues just such injuries!

Nor should it be forgotten, that those who incurred the displeasure of their Judge, took far other views than he, of their own past history. The charges which he brought against them, they heard with great surprise. They were sure that they had never thus turned away from his necessities. Indeed, when had they seen him thus subject to poverty, insult, and oppression! Never. And as to that poor friendless creature whom they left unpitied and unhelped in the hands of the oppressor, and whom their Judge now presented as his own representative, they never once supposed, that *he* had any claims on their compassion and assistance. Had they known, that he was destined to so prominent a place at the final judgment, they would have treated him as a human being, in despite of any social, pecuniary, or political considerations. But neither their *negative virtue* nor their *voluntary ignorance* could shield them from the penal fire which their selfishness had kindled.

Now amidst the general maxims, the leading principles, the "great commandments" of the gospel; amidst its comprehensive descriptions and authorized tests of Christian character, we should take our position in disposing of any particular allusions to such forms and usages of the primitive churches as are supposed by divine authority. The latter must be interpreted and understood in the light of the former. But how do the apologists and defenders of slavery proceed? Placing themselves amidst the arrangements and usages which grew out of the *corruptions* of Christianity, they make these the standard by which the gospel is to be explained and understood! Some Recorder or Justice, without the light of inquiry or the aid of a jury, consigns the negro whom the kidnapper has dragged into his presence to the horrors of slavery. As the poor wretch shrieks and faints, Humanity shudders and demands why such atrocities are endured? Some "priest" or "Levite," "passing by on the other side," quite self-possessed and all complacent reads in reply from his bread phylactery, *Paul sent back Onesimus to Philemon*! Yes, echoes the negro-hating mob, made up of "gentlemen of property and standing" together with equally gentle-men

reeking from the gutter; *Yes--Paul sent back Onesimus to Philemon!* And Humanity, brow-beaten, stunned with noise and tumult, is pushed aside by the crowd! A fair specimen this of the manner in which modern usages are made to interpret the sacred Scriptures?

Of the particular passages in the New Testament on which the apologists for slavery especially rely, the epistle to Philemon first demands our attention.

1. This letter was written by the apostle Paul while a "prisoner of Jesus Christ" at Rome.

2. Philemon was a benevolent and trustworthy member of the church at Colosse, at whose house the disciples of Christ held their assemblies, and who owed his conversion, under God, directly or indirectly to the ministry of Paul.

3. Onesimus was the servant of Philemon; under a relation which it is difficult with accuracy and certainty to define. His condition, though servile, could not have been like that of an American slave; as, in that case, however he might have "wronged" Philemon, he could not also have "*owed him ought.*"[[A](#)] The American slave is, according to law, as much the property of his master as any other chattel; and can no more "owe" his master than can a sheep or a horse. The basis of all pecuniary obligations lies in some "value received." How can "an article of merchandise" stand on this basis and sustain commercial relations to its owner? There is no *person* to offer or promise. *Personality is swallowed up in American slavery!*

[Footnote [A](#): Phil. 18.]

4. How Onesimus found his way to Rome it is not easy to determine. He and Philemon appear to have parted from each other on ill terms. The general character of Onesimus, certainly, in his relation to Philemon, had been far from attractive, and he seems to have left him without repairing the wrongs he had done him or paying the debts which he owed him. At Rome, by the blessing of God upon the exertions of the apostle, he was brought to reflection and repentance.

5. In reviewing his history in the light of Christian truth, he became painfully aware of the injuries, he had inflicted on Philemon. He longed for an opportunity for frank confession and full restitution. Having, however,

parted with Philemon on ill terms, he knew not how to appear in his presence. Under such embarrassments, he naturally sought sympathy and advice of Paul. *His* influence upon Philemon, Onesimus knew must be powerful, especially as an apostle.

6. A letter in behalf of Onesimus was therefore written by the apostle to Philemon. After such salutations, benedictions, and thanks giving as the good character and useful life of Philemon naturally drew from the heart of Paul, he proceeds to the object of the letter. He admits that Onesimus had behaved ill in the service of Philemon; not in running away, for how they had parted with each other is not explained, but in being unprofitable and in refusing to pay the debts[B] which he had contracted. But his character had undergone a radical change. Thenceforward fidelity and usefulness would be his aim and mark his course. And as to any pecuniary obligations which he had violated, the apostle authorized Philemon to put them on *his* account.[C] Thus a way was fairly opened to the heart of Philemon. And now what does the apostles ask?

[Footnote [B](#): Verse 11,18.]

[Footnote [C](#): Verse 18.]

7. He asks that Philemon would receive Onesimus. How? "Not as a *servant*, but *above* a servant." [A] How much above? Philemon was to receive him as "a son" of the apostle--"as a brother beloved"--nay, if he counted Paul a partner, an equal, he was to receive Onesimus as he would receive *the apostle himself* [B]. *So much* above a servant was he to receive him!

[Footnote [A](#): Verse 16.]

[Footnote [B](#): Verse 10, 16, 17.]

8. But was not this request to be so interpreted and complied with as to put Onesimus in the hands of Philemon as "an article of merchandise," CARNALLY, while it raised him to the dignity of a "brother beloved," SPIRITUALLY? In other words, might not Philemon consistently with the request of Paul, have reduced Onesimus to a chattel, AS A MAN, while he admitted him fraternally to his bosom, as a CHRISTIAN? Such gibberish in an apostolic epistle! Never. As if, however, to guard against such folly, the natural product of mist and moonshine, the apostle would have Onesimus

raised above a servant to the dignity of a brother beloved, "BOTH IN THE FLESH AND IN THE LORD;"[C] as a man and Christian, in all the relations, circumstances, and responsibilities of life.

[Footnote C: Verse 16.]

It is easy now with definiteness and certainty to determine in what sense the apostle in such connections uses the word "*brother*." It describes a relation inconsistent with and opposite to the *servile*. It is "NOT" the relation of a "SERVANT." It elevates its subject "above" the servile condition. It raises him to full equality with the master, to the same equality, on which Paul and Philemon stood side by side as brothers; and this, not in some vague, undefined, spiritual sense, affecting the soul and leaving the body in bonds, but in every way, "both in the FLESH and in the Lord." This matter deserves particular and earnest attention. It sheds a strong light on other lessons of apostolic instruction.

9. It is greatly to our purpose, moreover, to observe that the apostle clearly defines the *moral character* of his request. It was fit, proper, right, suited to the nature and relations of things--a thing which *ought* to be done.[D] On this account, he might have urged it upon Philemon in the form of an *injunction*, on apostolic authority and with great boldness.[E] *The very nature* of the request made it obligatory on Philemon. He was sacredly bound, out of regard to the fitness of things, to admit Onesimus to full equality with himself--to treat him as a brother both in the Lord and as having flesh--as a fellow man. Thus were the inalienable rights and birth-right privileges of Onesimus, as a member of the human family, defined and protected by apostolic authority.

[Footnote D: Verse 8. To [Greek: anaekon]. See Robinson's New Testament Lexicon; "*it is fit, proper, becoming, it ought*." In what sense King James' translators used the word "convenient" any one may see who will read Rom. i. 28 and Eph. v. 3, 4.]

[Footnote E: Verse 8.]

10. The apostle preferred a request instead of imposing a command, on the ground of CHARITY.[A] He would give Philemon an opportunity of discharging his obligations under the impulse of love. To this impulse, he

was confident Philemon would promptly and fully yield. How could he do otherwise? The thing itself was right. The request respecting it came from a benefactor, to whom, under God, he was under the highest obligations.[\[B\]](#) That benefactor, now an old man and in the hands of persecutors, manifested a deep and tender interest in the matter, and had the strongest persuasion that Philemon was more ready to grant than himself to entreat. The result, as he was soon to visit Colosse, and had commissioned Philemon to prepare a lodging for him, must come under the eye of the apostle. The request was so manifestly reasonable and obligatory, that the apostle, after all, described a compliance with it, by the strong word "*obedience*."[\[C\]](#)

[Footnote [A](#): Verse 9 [Greek: *dia taen agapaen*].]

[Footnote [B](#): Verse 19.]

[Footnote [C](#): Verse 21.]

Now how must all this have been understood by the church at Colosse?--a church, doubtless, made up of such materials as the church at Corinth, that is, of members chiefly from the humblest walks of life. Many of them had probably felt the degradation and tasted the bitterness of the servile condition. Would they have been likely to interpret the apostle's letter under the bias of feelings friendly to slavery!--And put the slaveholder's construction on its contents! Would their past experience or present sufferings--for doubtless some of them were still "under the yoke"--have suggested to their thoughts such glosses as some of our theological professors venture to put upon the words of the apostle! Far otherwise. The Spirit of the Lord was there, and the epistle was read in the light of "*liberty*." It contained the principles of holy freedom, faithfully and affectionately applied. This must have made it precious in the eyes of such men "of low degree" as were most of the believers, and welcome to a place in the sacred canon. There let it remain as a luminous and powerful defense of the cause of emancipation!

But what with Prof. Stuart? "If any one doubts, let him take the case of Paul's sending Onesimus back to Philemon, with an apology for his running away, and sending him back to be his servant for life."[\[A\]](#)

[Footnote [A](#): See his letter to Dr. Fisk, supra p. 8.]

"Paul sent back Onesimus to Philemon." By what process? Did the apostle, a prisoner at Rome, seize upon the fugitive, and drag him before some heartless and perfidious "Judge," for authority to send him back to Colosse? Did he hurry his victim away from the presence of the fat and supple magistrate, to be driven under chains and the lash to the field of unrequited toil, whence he had escaped? Had the apostle been like some teachers in the American churches, he might, as a professor of sacred literature in one of our seminaries, or a preacher of the gospel to the rich in some of our cities, have consented thus to subserve the "peculiar" interests of a dear slaveholding brother. But the venerable champion of truth and freedom was himself under bonds in the imperial city, waiting for the crown of martyrdom. He wrote a letter to the church at Colosse, which was accustomed to meet at the house of Philemon, and another letter to that magnanimous disciple, and sent them by the hand of Onesimus. So much for *the way* in which Onesimus was sent back to his master.

A slave escapes from a patriarch in Georgia, and seeks a refuge in the parish of the Connecticut doctor, who once gave public notice that he saw no reason for caring for the servitude of his fellow men.[\[B\]](#) Under his influence, Caesar becomes a Christian convert. Burning with love for the son whom he hath begotten in the gospel, our doctor resolves to send him back to his master. Accordingly, he writes a letter, gives it to Caesar, and bids him return, staff in hand, to the "corner-stone of our republican institutions." Now, what would any Caesar do, who had ever felt a link of slavery's chain? As he left his *spiritual father*, should we be surprized to hear him say to himself, What, return of my own accord to the man who, with the hand of a robber, plucked me from my mother's bosom!--for whom I have been so often drenched in the sweat of unrequited toil!--whose violence so often cut my flesh and scarred my limbs!--who shut out every ray of light from my mind!--who laid claim to those honors to which my Creator and Redeemer only are entitled! And for what am I to return? To be cursed, and smitten, and sold! To be tempted, and torn, and destroyed! I can not thus throw myself away--thus rush upon my own destruction.

[Footnote [B](#): "Why should I care?"]

Who ever heard of the voluntary return of a fugitive from American oppression? Do you think that the doctor and his friends could persuade one to carry a letter to the patriarch from whom he had escaped? And must we believe this of Onesimus!

"Paul sent back Onesimus to Philemon." On what occasion?--"If," writes the apostle, "he hath wronged thee, or oweth thee ought, put that on my account." Alive to the claims of duty, Onesimus would "restore" whatever he "had taken away." He would honestly pay his debts. This resolution, the apostle warmly approved. He was ready, at whatever expense, to help his young disciple in carrying it into full effect. Of this he assured Philemon, in language the most explicit and emphatic. Here we find one reason for the conduct of Paul in sending Onesimus to Philemon.

If a fugitive slave of the Rev. Mr. Smylie, of Mississippi, should return to him with a letter from a doctor of divinity in New York, containing such an assurance, how would the reverend slaveholder dispose of it? What, he exclaims, have we here? "If Cato has not been upright in his pecuniary intercourse with you--if he owes you any thing--put that on my account." What ignorance of southern institutions! What mockery, to talk of pecuniary intercourse between a slave and his master! *The slave himself, with all he is and has, is an article of merchandise.* What can *he* owe his master?--A rustic may lay a wager with his mule, and give the creature the peck of oats which he had permitted it to win. But who in sober earnest would call this a pecuniary transaction?

"TO BE HIS SERVANT FOR LIFE!" From what part of the epistle could the expositor have evolved a thought so soothing to tyrants--so revolting to every man who loves his own nature? From this? "For perhaps he therefore departed for a season, that thou shouldest receive him for ever." Receive him how? *As a servant*, exclaims our commentator. But what wrote the apostle? "NOT *now as a servant, but above a servant*, a brother beloved, especially to me, but how much more unto thee, both in the flesh and in the Lord." Who authorized the professor to bereave the word '*not*' of its negative influence? According to Paul, Philemon was to receive Onesimus '*not as a servant*';--according to Stuart, he was to receive him "*as a servant*!" If the professor will apply the same rules of exposition to the writings of the abolitionists, all difference between him and them must in

his view presently vanish away. The harmonizing process would be equally simple and effectual. He has only to understand them as affirming what they deny, and as denying what they affirm.

Suppose that Prof. Stuart had a son residing at the South. His slave, having stolen money of his master, effected his escape. He fled to Andover, to find a refuge among the "sons of the prophets." There he finds his way to Prof. Stuart's house, and offers to render any service which the professor, dangerously ill "of a typhus fever," might require. He is soon found to be a most active, skillful, faithful nurse. He spares no pains, night and day, to make himself useful to the venerable sufferer. He anticipates every want. In the most delicate and tender manner, he tries to sooth every pain. He fastens himself strongly on the heart of the reverend object of his care. Touched with the heavenly spirit, the meek demeanor, the submissive frame, which the sick bed exhibits, Archy becomes a Christian. A new bond now ties him and his convalescent teacher together. As soon as he is able to write, the professor sends by Archy the following letter to the South, to Isaac Stuart, Esq.:--

"MY DEAR SON,--With a hand enfeebled by a distressing and dangerous illness, from which I am slowly recovering, I address you, on a subject which lies very near my heart. I have a request to urge, which my acquaintance with you, and your strong obligations to me, will, I can not doubt, make you eager fully to grant. I say a request, though the thing I ask is, in its very nature and on the principles of the gospel, obligatory upon you. I might, therefore, boldly demand, what I earnestly entreat. But I know how generous, magnanimous, and Christ-like you are, and how readily you will "do even more than I say"--I, your own father, an old man, almost exhausted with multiplied exertions for the benefit of my family and my country, and now just rising, emaciated and broken, from the brink of the grave. I write in behalf of Archy, whom I regard with the affection of a father, and whom, indeed, 'I have begotten in my sickness.' Gladly would I have retained him, to be an *Isaac* to me; for how often did not his soothing voice, and skillful hand, and unwearied attention to my wants, remind me of you! But I chose to give you an opportunity of manifesting, voluntarily, the goodness of your heart; as, if I had retained him with me, you might seem to have been forced to grant what you will gratefully bestow. His temporary absence from you may have opened the way for his permanent continuance

with you. Not now as a slave. Heaven forbid! But superior to a slave. Superior, did I say? Take him to your bosom, as a beloved brother; for I own him as a son, and regard him as such, in all the relations of life, both as a man and a Christian.--'Receive him as myself.' And that nothing may hinder you from complying with my request at once, I hereby promise, without advertng to your many and great obligations to me, to pay you every cent which he took from your drawer. Any preparation which my comfort with you may require, you will make without much delay, when you learn, that I intend, as soon as I shall be able 'to perform the journey,' to make you a visit."

And what if Dr. Baxter, in giving an account of this letter should publicly declare that Prof. Stuart of Andover regarded slaveholding as lawful; for that "he had sent Archy back to his son Isaac, with an apology for his running away" to be held in perpetual slavery? With what propriety might not the professor exclaim: False, every syllable false. I sent him back, NOT TO BE HELD AS A SLAVE, *but recognized as a dear brother, in all respects, under every relation, civil and ecclesiastical.* I bade my son receive *Archy as myself.* If this was not equivalent to a requisition to set him fully and most honorably free, and that, too, on the ground of natural obligation and Christian principle, then I know not how to frame such a requisition.

I am well aware that my supposition is by no means strong enough fully to illustrate the case to which it is applied. Prof. Stuart lacks *apostolical* authority. Isaac Stuart is not a leading member of a church consisting, as the early churches chiefly consisted, of what the world regard as the dregs of society--"the offscouring of all things." Nor was slavery at Colosse, it seems, supported by such barbarous usages, such horrid laws as disgrace the South.

But it is time to turn to another passage which, in its bearing on the subject in hand, is, in our view, as well as in the view of Dr. Fisk and Prof. Stuart, in the highest degree authoritative and instructive. "Let as many servants as are under the yoke count their own masters worthy of all honor, that the name of God and his doctrines be not blasphemed. And they that have believing masters, let them not despise them because they are brethren; but

rather do them service, because they are faithful and beloved, partakers of the benefit."[[A](#)]

[Footnote [A](#): 1 Tim. vi. 1, 2.]

1. The apostle addresses himself here to two classes of servants, with instructions to each respectively appropriate. Both the one class and the other, in Prof. Stuart's eye, were *slaves*. This he assumes, and thus begs the very question in dispute. The term servant is *generic*, as used by the sacred writers. It comprehends all the various offices which men discharge for the benefit of each other, however honorable, or however menial; from that of an apostle[[B](#)] opening the path to heaven, to that of washing "one another's feet."[[C](#)] A general term it is, comprehending every office which belongs to human relations and Christian character.[[D](#)]

[Footnote [B](#): Cor. iv. 5.]

[Footnote [C](#): John xiii. 14.]

[Footnote [D](#): Mat. xx. 26-28.]

A leading signification gives us the *manual laborer*, to whom, in the division of labor, muscular exertion was allotted. As in his exertions the bodily powers are especially employed--such powers as belong to man in common with mere animals--his sphere has generally been considered low and humble. And as intellectual power is superior to bodily, the manual laborer has always been exposed in very numerous ways and in various degrees to oppression. Cunning, intrigue, the oily tongue, have, through extended and powerful conspiracies, brought the resources of society under the control of the few, who stood aloof from his homely toil. Hence his dependence upon them. Hence the multiplied injuries which have fallen so heavily upon him. Hence the reduction of his wages from one degree to another, till at length, in the case of millions, fraud and violence strip him of his all, blot his name from the record of *mankind*, and, putting a yoke upon his neck, drive him away to toil among the cattle. *Here you find the slave*. To reduce the servant to his condition, requires abuses altogether monstrous--injuries reaching the very vitals of man--stabs upon the very heart of humanity. Now, what right has Prof. Stuart to make the word "*servants*," comprehending, even as manual laborers, so many and such

various meanings, signify "slaves," especially where different classes are concerned? Such a right he could never have derived from humanity, or philosophy, or hermeneutics. Is it his by sympathy with the oppressor?

Yes, different classes. This is implied in the term "*as many*,"[A] which sets apart the class now to be addressed. From these he proceeds to others, who are introduced by a particle,[B] whose natural meaning indicates the presence of another and a different subject.

[Footnote A: [Greek: Osoi.] See Passow's Schneider.]

[Footnote B: [Greek: De.] See Passow.]

2. The first class are described as "*under the yoke*"--a yoke from which they were, according to the apostle, to make their escape if possible.[C] If not, they must in every way regard the master with respect--bowing to his authority, working his will, subserving his interests so far as might be consistent with Christian character.[D] And this, to prevent blasphemy--to prevent the pagan master from heaping profane reproaches upon the name of God and the doctrines of the gospel. They should beware of rousing his passions, which, as his helpless victims, they might be unable to allay or withstand.

[Footnote C: See 1 Cor. vii. 21--[Greek: *All ei kai d u n a s a i eleutheros genesthai.*]]

[Footnote D: 1 Cor. vii. 23--[Greek: *Mae ginesthe douloi anthron.*]]

But all the servants whom the apostle addressed were not "*under the yoke*" [E]--an instrument appropriate to cattle and to slaves. These he distinguishes from another class, who instead of a "yoke"--the badge of a slave--had "*believing masters.*" *To have a "believing master," then, was equivalent to freedom from "the yoke."* These servants were exhorted not to *despise* their masters. What need of such an exhortation, if their masters had been slaveholders, holding them as property, wielding them as mere instruments, disposing of them as "articles of merchandise?" But this was not consistent with believing. Faith, "breaking every yoke," united master and servants in the bonds of brotherhood. Brethren they were, joined in a relation which, excluding the yoke,[E] placed them side by side on the ground of equality, where, each in his appropriate sphere, they might exert

themselves freely and usefully, to the mutual benefit of each other. Here, servants might need to be cautioned against getting above their appropriate business, putting on airs, despising their masters, and thus declining or neglecting their service.[G] Instead of this, they should be, as emancipated slaves often have been,[H] models of enterprise, fidelity, activity, and usefulness--especially as their masters were "worthy of their confidence and love," their helpers in this well-doing.[I]

[Footnote E: See Lev. xxvi. 13; Isa. lviii. 6, 9.]

[Footnote F: Supra p. 47.]

[Footnote G: See Matt. vi. 24.]

[Footnote H: Those, for instance, set free by that "believing master" James G. Birney.]

[Footnote I: The following exposition is from the pen of ELIZUR WRIGHT, JR.:--"This word [Greek: antilambanesthai,] in our humble opinion, has been so unfairly used by the commentators, that we feel constrained to take its part. Our excellent translators, in rendering the clause 'partakers of the benefit,' evidently lost sight of the component preposition, which expresses the *opposition of reciprocity*, rather than the *connection of participation*. They have given it exactly the sense of [Greek: metalambanein,] (2 Tim. ii. 6.) Had the apostle intended such a sense, he would have used the latter verb, or one of the more common words, [Greek: metochoi, koinonountes], &c. (See Heb. iii. 1, and 1 Tim. v. 22, where the latter word is used in the clause, 'neither be partaker of other men's sins.' Had the verb in our text been used, it might have been rendered, 'neither be the *part-taker* of other men's sins.') The primary sense of [Greek: antilambano] is *to take in return--to take instead of*, &c. Hence, in the middle with the genitive, it signifies *assist*, or *do one's part towards* the person or thing expressed by that genitive. In this sense only is the word used in the New Testament.--(See Luke i. 54, and Acts xx. 35.) If this be true, the word [Greek: euergesai] can not signify the benefit conferred by the gospel, as our common version would make it, but the *well-doing* of the servants, who should continue to serve their believing masters, while they were no longer under the *yoke* of compulsion. This word is used elsewhere in the New Testament but once, (Acts iv. 3.) in relation to the '*good deed*'

done to the impotent man. The plain import of the clause, unmystified by the commentators, is, that believing masters would not fail to *do their part towards*, or encourage by suitable returns, the *free* service of those who had once been under the *yoke*."]]

Such, then, is the relation between those who, in the view of Prof. Stuart, were Christian masters and Christian slaves[A]--the relation of "brethren," which, excluding "the yoke," and of course conferring freedom, placed them side by side on the common ground of mutual service, both retaining, for convenience's sake, the one while giving and the other while receiving employment, the correlative name, *as is usual in such cases*, under which they had been known. Such was the instruction which Timothy was required, as a Christian minister, to give. Was it friendly to slaveholding?

[Footnote A: Letter to Dr. Fisk, *supra*, p. 7.]

And on what ground, according to the Princeton professor, did these masters and these servants stand in their relation to each other? On that of a "*perfect religious equality*." [A] In all the relations, duties, and privileges--in all the objects, interests, and prospects, which belong to the province of Christianity, servants were as free as their master. The powers of the one, were allowed as wide a range and as free an exercise, with as warm encouragements, as active aids, and as high results, as the other. Here, the relation of a servant to his master imposed no restrictions, involved no embarrassments, occasioned no injury. All this, clearly and certainly, is implied in "*perfect religious equality*," which the Princeton professor accords to servants in relation to their master. Might the *master*, then, in order more fully to attain the great ends for which he was created and redeemed, freely exert himself to increase his acquaintance with his own powers, and relations, and resources--with his prospects, opportunities, and advantages? So might his *servants*. Was *he* at liberty to "study to approve himself to God," to submit to his will and bow to his authority, as the sole standard of affection and exertion? So were *they*. Was *he* at liberty to sanctify the Sabbath, and frequent the "solemn assembly?" So were *they*. Was *he* at liberty so to honor the filial, conjugal, and paternal relations, as to find in them that spring of activity and that source of enjoyment, which they are capable of yielding? So were *they*. In every department of interest and exertion, they might use their capacities, and wield their powers, and

improve their opportunities, and employ their resources, as freely as he, in glorifying God, in blessing mankind, and in laying up imperishable treasures for themselves! Give perfect religious equality to the American slave, and the most eager abolitionist must be satisfied. Such equality would, like the breath of the Almighty, dissolve the last link of the chain of servitude. Dare those who, for the benefit of slavery, have given so wide and active a circulation do the Pittsburgh pamphlet, make the experiment?

[Footnote [A](#): Pittsburgh Pamphlet, p. 9.]

In the epistle to the Colossians, the following passage deserves earnest attention:--"Servants, obey in all things your masters according to the flesh; not with eye-service, as men-pleasers; but in singleness of heart, fearing God: and whatsoever ye do, do it heartily, as to the Lord, and not unto men; knowing, that of the Lord ye shall receive the reward of the inheritance; for ye serve the Lord Christ. But he that doeth wrong shall receive for the wrong which he hath done: and there is no respect of persons.--Masters, give unto your servants that which is just and equal; knowing that ye have a Master in heaven."[[A](#)]

[Footnote [A](#): Col. iii. 22 to iv. 1.]

Here it is natural to remark--

1. That in maintaining the relation, which mutually united them, both masters and servants were to act in conformity with the principles of the divine government. Whatever *they* did, servants were to do in hearty obedience to the Lord, by whose authority they were to be controlled and by whose hand they were to be rewarded. To the same Lord, and according to the same law, was the *master* to hold himself responsible. *Both the one and the other were of course equally at liberty and alike required to study and apply the standard, by which they were to be governed and judged.*

2. The basis of the government under which they thus were placed, was *righteousness*--strict, stern, impartial. Nothing here of bias or antipathy. Birth, wealth, station,--the dust of the balance not so light! Both master and servants were hastening to a tribunal, where nothing of "respect of persons" could be feared or hoped for. There the wrong-doer, whoever he might be,

and whether from the top or bottom of society, must be dealt with according to his deservings.

3. Under this government, servants were to be universally and heartily obedient; and both in the presence and absence of the master, faithfully to discharge their obligations. The master on his part, in his relations to the servants, was to make JUSTICE AND EQUALITY the *standard of his conduct*. Under the authority of such instructions, slavery falls discountenanced, condemned, abhorred. It is flagrantly at war with the government of God, consists in "respect of persons" the most shameless and outrageous, treads justice and equality under foot, and in its natural tendency and practical effects is nothing else than a system of wrong-doing. What have *they* to do with the just and the equal who in their "respect of persons" proceed to such a pitch as to treat one brother as a thing because he is a servant, and place him, without the least regard to his welfare here, or his prospects hereafter, absolutely at the disposal of another brother, under the name of master, in the relation of owner to property? Justice and equality on the one hand, and the chattel principle on the other, are naturally subversive of each other--proof clear and decisive that the correlates, masters and servants, cannot here be rendered slaves and owners, without the grossest absurdity and the greatest violence.

"The relation of slavery," according to Prof. Stuart, is recognized in "the precepts of the New Testament," as one which "may still exist without violating the Christian faith or the church."[\[A\]](#) Slavery and the chattel principle! So our professor thinks; otherwise his reference has nothing to do with the subject--with the slavery which the abolitionist, whom he derides, stands opposed to. How gross and hurtful is the mistake into which he allows himself to fall. The relation recognized in the precepts of the New Testament had its basis and support in "justice and equality;" the very opposite of the chattel principle; a relation which may exist as long as justice and equality remain, and thus escape the destruction to which, in the view of Prof. Stuart, slavery is doomed. The description of Paul obliterates every feature of American slavery, raising the servant to equality with his master, and placing his rights under the protection of justice; yet the eye of Prof. Stuart can see nothing in his master and servant but a slave and his owner. With this relation he is so thoroughly possessed, that, like an evil angel, it haunts him even when he enters the temple of justice!

[Footnote [A](#): Letter to Dr. Fisk, supra p. 7.]

"It is remarkable," with the Princeton professor, "that there is not even an exhortation" in the writings of the apostles "to masters to liberate their slaves, much less is it urged as an imperative and immediate duty." [\[B\]](#) It would be remarkable, indeed, if they were chargeable with a defect so great and glaring. And so they have nothing to say upon the subject? *That* not even the Princeton professor has the assurance to affirm. He admits that KINDNESS, MERCY, AND JUSTICE, were enjoined with a *distinct reference to the government of God*. [\[C\]](#) "Without respect of persons," they were to be God-like in doing justice. They were to act the part of kind and merciful "brethren." And whither would this lead them? Could they stop short of restoring to every man his natural, inalienable rights?--of doing what they could to redress the wrongs, soothe the sorrows, improve the character, and raise the condition of the degraded and oppressed? Especially, if oppressed and degraded by any agency of theirs. Could it be kind, merciful, or just to keep the chains of slavery on their helpless, unoffending brother? Would this be to honor the Golden Rule, or obey the second great command of "their Master in heaven?" Could the apostles have subserved the cause of freedom more directly, intelligibly, and effectually, than *to enjoin the principles, and sentiments, and habits, in which freedom consists--constituting its living root and fruitful germ?*

[Footnote [B](#): Pittsburgh pamphlet, p. 9.]

[Footnote [C](#): Pittsburgh pamphlet, p. 10.]

The Princeton professor himself, in the very paper which the South has so warmly welcomed and so loudly applauded as a scriptural defense of "the peculiar institution," maintains, that the "GENERAL PRINCIPLES OF THE GOSPEL *have DESTROYED SLAVERY throughout out the greater part of Christendom*" [\[A\]](#)--"THAT CHRISTIANITY HAS ABOLISHED BOTH POLITICAL AND DOMESTIC BONDAGE WHEREVER IT HAS HAD FREE SCOPE--*that it ENJOINS a fair compensation for labor; insists on the mental and intellectual improvement of ALL classes of men; condemns ALL infractions of marital or parental rights; requires in short not only that FREE SCOPE should be allowed to human improvement, but that ALL SUITABLE MEANS should be employed for the attainment of*

that end."[[B](#)] It is indeed "remarkable," that while neither Christ nor his apostles ever gave "an exhortation to masters to liberate their slaves," they enjoined such "general principles as have destroyed domestic slavery throughout the greater part of Christendom;" that while Christianity forbears "to urge" emancipation "as an imperative and immediate duty," it throws a barrier, heaven high, around every domestic circle; protects all the rights of the husband and the fathers; gives every laborer a fair compensation; and makes the moral and intellectual improvement of all classes, with free scope and all suitable means, the object of its tender solicitude and high authority. This is not only "remarkable," but inexplicable. Yes and no--hot and cold, in one and the same breath! And yet these things stand prominent in what is reckoned an acute, ingenious, effective defense of slavery!

[Footnote [A](#): Pittsburgh pamphlet p. 18. 19.]

[Footnote [B](#): The same, p. 31.]

In his letter to the Corinthian church, the apostle Paul furnishes another lesson of instruction, expressive of his views and feelings on the subject of slavery. "Let every man abide in the same calling wherein he was called. Art thou called being a servant? care not for it: but if thou mayest be made free, use it rather. For he that is called in the Lord, being a servant, is the Lord's freeman: likewise also he that is called, being free, is Christ's servant. Ye are bought with a price; be not ye the servants of men."[[A](#)]

[Footnote [A](#): 1 Cor. vii. 20-23.]

In explaining and applying this passage, it is proper to suggest,

1. That it *could* not have been the object of the apostle to bind the Corinthian converts to the stations and employments in which the Gospel found them. For he exhorts some of them to escape, if possible, from their present condition. In the servile state, "under the yoke," they ought not to remain unless impelled by stern necessity. "If thou canst be free, use it rather." If they ought to prefer freedom to bondage and to exert themselves to escape from the latter for the sake of the former, could their master consistently with the claims and spirit of the Gospel have hindered or discouraged them in so doing? Their "brother" could *he* be, who kept "the

yoke" upon their neck, which the apostle would have them shake off if possible? And had such masters been members of the Corinthian church, what inferences must they have drawn from this exhortation to their servants? That the apostle regarded slavery as a Christian institution?--or could look complacently on any efforts to introduce or maintain it in the church? Could they have expected less from him than a stern rebuke, if they refused to exert themselves in the cause of freedom?

2. But while they were to use their freedom, if they could obtain it, they should not, even on such a subject, give themselves up to ceaseless anxiety. "The Lord was no respecter of persons." They need not fear, that the "low estate," to which they had been wickedly reduced, would prevent them from enjoying the gifts of his hand or the light of his countenance. *He* would respect their rights, sooth their sorrows, and pour upon their hearts, and cherish there, the spirit of liberty. "For he that is called in the Lord, being a servant, is the Lord's freeman." In *him*, therefore, should they cheerfully confide.

3. The apostle, however, forbids them so to acquiesce in the servile relation, as to act inconsistently with their Christian obligations. To their Savior they belonged. By his blood they had been purchased. It should be their great object, therefore, to render *Him* a hearty and effective service. They should permit no man, whoever he might be, to thrust in himself between them and their Redeemer. "*Ye are bought with a price; BE NOT YE THE SERVANTS OF MEN.*"

With his eye upon the passage just quoted and explained, the Princeton professor asserts that "Paul represents this relation"--the relation of slavery--"as of comparatively little account."[\[A\]](#) And this he applies--otherwise it is nothing to his purpose--to *American* slavery. Does he then regard it as a small matter, a mere trifle, to be thrown under the slave-laws of this republic, grimly and fiercely excluding their victim from almost every means of improvement, and field of usefulness, and source of comfort; and making him, body and substance, with his wife and babes, "the servant of men?" Could such a relation be acquiesced in consistently with the instructions of the apostle?

[Footnote [A](#): Pittsburgh pamphlet p. 10.]

To the Princeton professor the commend a practical trial of the bearing of the passage in hand upon American slavery. His regard for the unity and prosperity of the ecclesiastical organizations, which in various forms and under different names unite the southern with the northern churches, will make the experiment grateful to his feelings. Let him, then, as soon as his convenience will permit, proceed to Georgia. No religious teacher[B] from any free state, can be likely to receive so general and so warm a welcome there. To allay the heat, which the doctrines and movements of the abolitionists have occasioned in the southern mind, let him with as much despatch as possible collect, as he goes from place to place, masters and their slaves. Now let all men, whom it may concern, see and own that slavery is a Christian institution! With his Bible in his hand and his eye upon the passage in question, he addresses himself to the task of instructing the slaves around him. Let not your hearts, my brethren, be overcharged with sorrow, or eaten up with anxiety. Your servile condition cannot deprive you of the fatherly regards of Him "who is no respecter of persons." Freedom you ought, indeed, to prefer. If you can escape from "the yoke," throw it off. In the mean time rejoice that "where the Spirit of the Lord is, there is liberty;" that the Gospel places slaves "on a perfect religious equality" with their master; so that every Christian is "the Lord's freeman." And, for your encouragement, remember that "Christianity has abolished both political and domestic servitude whenever it has had free scope. It enjoins a fair compensation for labor; it insists on the moral and intellectual improvement of all classes of men; it condemns all infractions of marital or parental rights; in short it requires not only that free scope be allowed to human improvement, but that all suitable means should be employed for the attainment of that end." [C] Let your lives, then, be honorable to your relations to your Savior. He bought you with his own blood; and is entitled to your warmest love and most effective service. "Be not ye the servants of men." Let no human arrangements prevent you, as citizens of the kingdom of heaven, from making the most of your powers and opportunities. Would such an effort, generally and heartily made, allay excitement at the South, and quench the flames of discord, every day rising higher and waxing hotter, in almost every part of the republic, and cement "the Union?"

[Footnote B: Rev. Mr. Savage, of Utica, New York, had, not very long ago, a free conversation with a gentleman of high standing in the literary and

religious world from a slaveholding state, where the "peculiar institution" is cherished with great warmth and maintained with iron rigor. By him, Mr. Savage was assured, that the Princeton professor had, through the Pittsburgh pamphlet, contributed most powerfully and effectually to bring the "whole South" under the persuasion, *that slaveholding is in itself right--a system to which the Bible gives countenance and support.*

In an extract from an article in the Southern Christian Sentinel, a new Presbyterian paper established in Charleston, South Carolina, and inserted in the Christian Journal for March 21, 1839, we find the following paragraphs from the pen of Rev. C.W. Howard, and according to Mr. Chester, ably and freely endorsed by the editor. "There is scarcely any diversity of sentiment at the North upon this subject. The great mass of the people believing slavery to be sinful, are clearly of the opinion that as a system, it should be abolished throughout this land and throughout the world. They differ as to the time and mode of abolition. The abolitionists consistently argue, that whatever is sinful, should be instantly abandoned. The others, *by a strange sort of reasoning for Christian men*, contend that though slavery is sinful, *yet it may be allowed to exist until it shall be expedient to abolish it*; or if, in many cases, this reasoning might be translated into plain English, the sense would be, both in church and State, *slavery, though sinful, may be allowed to exist until our interest will suffer us to say that it must be abolished.* This is not slander; it is simply a plain way of stating a plain truth. It does seem the evident duty of every man to become an abolitionist, who believes slavery to be sinful, for the Bible allows no tampering with sin."

"To these remarks, there are some noble exceptions to be found in both parties in the church. *The South owes a debt of gratitude to the Biblical Repertory, for the fearless argument in behalf of the position, that slavery is not forbidden by the Bible.* The writer of that article is said, without contradiction, to be *Prof. Hodge of Princeton--HIS NAME OUGHT TO BE KNOWN AND REVERED AMONG YOU*, my brethren, *for in a land of anti-slavery men, he is the ONLY ONE who has dared to vindicate your character from the serious charge of living in the habitual transgression of God's holy law.*"

[Footnote [C](#): Pittsburgh pamphlet p. 31.]

"It is," affirms the Princeton professor, "on all hands acknowledged, that, at the time of the advent of Jesus Christ, slavery in its worst forms prevailed over the whole world. *The Savior found it around him in JUDEA.*"[A] To say that he found it *in Judea*, is to speak ambiguously. Many things were to be found "*in Judea*," which neither belonged to, nor were characteristic of *the Jews*. It is not denied that *the Gentiles*, who resided among them, might have had slaves; *but of the Jews this is denied*. How could the professor take that as granted, the proof of which entered vitally into the argument and was essential to the soundness of the conclusions to which he would conduct us? How could he take advantage of an ambiguous expression to conduct his confiding readers on to a position which, if his own eyes were open, he must have known they could not hold in the light of open day?

[Footnote A: Pittsburgh pamphlet p. 9.]

We do not charge the Savior with any want of wisdom, goodness, or courage,[B] for refusing to "break down the wall of partition between Jews and Gentiles" "before the time appointed." While this barrier stood, he could not, consistently with the plan of redemption, impart instruction freely to the Gentiles. To some extent, and on extraordinary occasions, he might have done so. But his business then was with "the lost sheep of the house of Israel." [C] The propriety of this arrangement is not the matter of dispute between the Princeton professor and ourselves.

[Footnote B: The same, p. 10.]

[Footnote C: Matt. xv. 24.]

In disposing of the question whether the Jews held slaves during our Savior's incarnation among them, the following points deserve earnest attention:--

1. Slaveholding is inconsistent with the Mosaic economy. For the proof of this, we would refer our readers, among other arguments more or less appropriate and powerful, to the tract already alluded to.[A] In all the external relations and visible arrangements of life, the Jews, during our Savior's ministry among them, seem to have been scrupulously observant of the institutions and usages of the "Old Dispensation." They stood far aloof from whatever was characteristic of Samaritans and Gentiles. From idolatry

and slaveholding--those twin-vices which had always so greatly prevailed among the heathen--they seem at length, as the result of a most painful discipline, to have been effectually divorced.

[Footnote [A](#): "The Bible against Slavery."]

2. While, therefore, John the Baptist, with marked fidelity and great power, acted among the Jews the part of a *reprover*, he found no occasion to repeat and apply the language of his predecessors,[\[B\]](#) in exposing and rebuking idolatry and slaveholding. Could he, the greatest of the prophets, have been less effectually aroused by the presence of "the yoke," than was Isaiah?--or less intrepid and decisive in exposing and denouncing the sin of oppression under its most hateful and injurious forms?

[Footnote [B](#): Psalm lxxxii; Isa. lviii. 1-12; Jer. xxii. 13-16.]

3. The Savior was not backward in applying his own principles plainly and pointedly to such forms of oppression as appeared among the Jews. These principles, whenever they have been freely acted on, the Princeton professor admits, have abolished domestic bondage. Had this prevailed within the sphere of our Savior's ministry, he could not, consistently with his general character, have failed to expose and condemn it. The oppression of the people by lordly ecclesiastics, of parents by their selfish children, of widows by their ghostly counsellors, drew from his lips scorching rebukes and terrible denunciations.[\[C\]](#) How, then, must he have felt and spoke in the presence of such tyranny, if *such tyranny had been within his official sphere*, as should *have made widows*, by driving their husbands to some flesh-market, and their children not orphans, *but cattle*?

[Footnote [C](#): Matt. xxiii; Mark vii. 1-13.]

4. Domestic slavery was manifestly inconsistent with the *industry*, which, *in the form of manual labor*, so generally prevailed among the Jews. In one connection, in the Acts of the Apostles, we are informed, that, coming from Athens to Corinth, Paul "found a certain Jew named Aquila, born in Pontus, lately come from Italy, with his wife Priscilla; (because that Claudius had commanded all Jews to depart from Rome;) and came unto them. And because he was of the same craft, he abode with them and wrought: (for by their occupation they were tent-makers.")[[A](#)] This passage has opened the

way for different commentators to refer us to the public sentiment and general practice of the Jews respecting useful industry and manual labor. According to *Lightfoot*, "it was their custom to bring up their children to some trade, yea, though they gave them learning or estates." According to Rabbi Judah, "He that teaches not his son a trade, is as if he taught him to be a thief."[\[B\]](#) It was, *Kuinoel* affirms, customary even for Jewish teachers to unite labor (opificium) with the study of the law. This he confirms by the highest Rabbinical authority.[\[C\]](#) *Heinrichs* quotes a Rabbi as teaching, that no man should by any means neglect to train his son to honest industry.[\[D\]](#) Accordingly, the apostle Paul, though brought up at the "feet of Gamaliel," the distinguished disciple of a most illustrious teacher, practiced the art of tent-making. His own hands ministered to his necessities; and his example in so doing, he commends to his Gentile brethren for their imitation.[\[E\]](#) That Zebedee, the father of John the Evangelist, had wealth, various hints in the New Testament render probable.[\[E\]](#) Yet how do we find him and his sons, while prosecuting their appropriate business? In the midst of the hired servants, "in the ship mending their nets."[\[G\]](#)

[Footnote [A](#): Acts xviii. 1-3.]

[Footnote [B](#): Henry on Acts xviii, 1-3.]

[Footnote [C](#): Kuinoel on Acts.]

[Footnote [D](#): Heinrichs on Acts.]

[Footnote [E](#): Acts xx. 34, 35; 1 Thess. iv. 11]

[Footnote [F](#): See Kuinoel's Prolegom. to the Gospel of John.]

[Footnote [G](#): Mark i. 19, 20.]

Slavery among a people who, from the highest to the lowest, were used to manual labor! What occasion for slavery there? And how could it be maintained? No place can be found for slavery among a people generally inured to useful industry. With such, especially if men of learning, wealth, and station "labor, working with their hands," such labor must be honorable. On this subject, let Jewish maxims and Jewish habits be adopted at the South, and the "peculiar institution" would vanish like a ghost at daybreak.

5. Another hint, here deserving particular attention, is furnished in the allusions of the New Testament to the lowest casts and most servile employments among the Jews. With profligates, *publicans* were joined as depraved and contemptible. The outcasts of society were described, not as fit to herd with slaves, but as deserving a place among Samaritans and publicans. They were "*hired servants*," whom Zebedee employed. In the parable of the prodigal son we have a wealthy Jewish family. Here servants seem to have abounded. The prodigal, bitterly bewailing his wretchedness and folly, described their condition as greatly superior to his own. How happy the change which should place him by their side! His remorse, and shame, and penitence made him willing to embrace the lot of the lowest of them all. But these--what was their condition? They were HIRED SERVANTS. "Make me as one of thy hired servants." Such he refers to as the lowest menials known in Jewish life.

Lay such hints as have now been suggested together; let it be remembered, that slavery was inconsistent with the Mosaic economy; that John the Baptist in preparing the way for the Messiah makes no reference "to the yoke" which, had it been before him, he would, like Isaiah, have condemned; that the Savior, while he took the part of the poor and sympathized with the oppressed; was evidently spared the pain of witnessing within the sphere of his ministry, the presence of the chattel principle; that it was the habit of the Jews, whoever they might be, high or low, rich or poor, learned or rude, "to labor, working with their hands;" and that where reference was had to the most menial employments, in families, they were described as carried on by hired servants; and the question of slavery "in Judea," so far as the seed of Abraham were concerned, is very easily disposed of. With every phase and form of society among them slavery was inconsistent.

The position which, in the article so often referred to in this paper, the Princeton professor takes, is sufficiently remarkable. Northern abolitionists he saw in an earnest struggle with southern slaveholders. The present welfare and future happiness of myriads of the human family were at stake in this contest. In the heat of the battle, he throws himself between the belligerent powers. He gives the abolitionists to understand, that they are quite mistaken in the character of the object they have set themselves so openly and sternly against. Slaveholding is not, as they suppose, contrary to

the law of God. It was witnessed by the Savior "in its worst form,"[A] without extorting from his lips a syllable of rebuke. "The sacred writers did not condemn it."[B] And why should they? By a definition[C] sufficiently ambiguous and slippery, he undertakes to set forth a form of slavery which he looks upon as consistent with the law of Righteousness. From this definition he infers that the abolitionists are greatly to blame for maintaining that American slavery is inherently and essentially sinful, and for insisting that it ought at once to be abolished. For this labor of love the slaveholding South is warmly grateful and applauds its reverend ally, as if a very Daniel had come as their advocate to judgment.[D]

[Footnote A: Pittsburgh pamphlet p. 9.]

[Footnote B: The same p. 13.]

[Footnote C: The same p. 12.]

[Footnote D: Supra p. 61.]

A few questions, briefly put, may not here be inappropriate.

1. Was the form of slavery which our professor pronounces innocent *the form* witnessed by our Savior "in Judea?" That, *he* will by no means admit. The slavery there was, he affirms, of the "worst" kind. *How then does he account for the alledged silence of the Savior?--a silence covering the essence and the form--the institution and its "worst" abuses?*

2. Is the slaveholding, which, according to the Princeton professor, Christianity justifies, the same as that which the abolitionists so earnestly wish to see abolished? Let us see.

<i>Christianity in supporting Slavery, according to Prof. Hodge,</i>	<i>The American system for supporting Slavery,</i>
--	--

"Enjoins a fair compensation for labor."	Makes compensation impossible by reducing the laborer to a chattel.
--	---

"It insists on the moral and intellectual improvement of all classes of men."	It sternly forbids its victim to learn to read even the name of his Creator and Redeemer.
---	---

"It condemns all infractions of marital or parental rights." It outlaws the conjugal and parental relations.

"It requires that free scope should be allowed to human improvement." It forbids any effort, on the part of myriads of the human family, to improve their character, condition, and prospects.

"It requires that all suitable means should be employed to improve mankind." It inflicts heavy penalties for teaching letters to the poorest of the poor.

"Wherever it has had free scope, it abolished domestic bondage." Wherever it has free scope, it perpetuates domestic bondage.

*Now it is slavery according to the American system that the abolitionists are set against. Of the existence of any such form of slavery as is consistent with Prof. Hodge's account of the requisitions of Christianity, they know nothing. It has never met their notice, and of course, has never roused their feelings, or called forth their exertions. What, then, have they to do with the censures and reproaches which the Princeton professor deals around? Let those who have leisure and good nature protect the *man of straw* he is so hot against. The abolitionists have other business. It is not the figment of some sickly brain; but that system of oppression which in theory is corrupting, and in practice destroying both Church and State;--it is this that they feel pledged to do battle upon, till by the just judgment of Almighty God it is thrown, dead and damned, into the bottomless abyss.*

3. How can the South feel itself protected by any shield which may be thrown over SUCH SLAVERY, as may be consistent with what the Princeton professor describes as the requisitions of Christianity? Is this? THE slavery which their laws describe, and their hands maintain? "Fair compensation for labor"--"marital and parental rights"--"free scope" and "all suitable means" for the "improvement, moral and intellectual, of all classes of men;"--are these, according to the statutes of the South, among the objects of slaveholding legislation? Every body knows that any such requisition and American slavery are flatly opposed to and directly subversive of each

other. What service, then, has the Princeton professor, with all his ingenuity and all his zeal, rendered the "peculiar institution?" Their gratitude must be of a stamp and complexion quite peculiar, if they can thank him for throwing their "domestic system" under the weight of such Christian requisitions as must at once crush its snaky head "and grind it to powder."

And what, moreover, is the bearing of the Christian requisitions which Prof. Hodge quotes, upon *the definition of slavery* which he has elaborated? "All the ideas which necessarily enter into the definition of slavery are, deprivation of personal liberty, obligation of service at the discretion of another, and the transferable character of the authority and claim of service of the master[A]."

[Footnote [A](#): Pittsburgh pamphlet p. 12]

<i>According to Prof. Hodge's account of the requisitions of Christianity,</i>	<i>According to Prof. Hodge's account of Slavery,</i>
--	---

The spring of effort in the labor is a fair compensation.	The laborer must serve at the discretion of another.
---	--

Free scope must be given for his moral and intellectual improvement.	He is deprived of personal liberty--the necessary condition, and living soul of improvement, without which he has no control of either intellect or morals.
--	---

His rights as a husband and a father are to be protected.	The authority and claims of the master may throw an ocean between him and his family, and separate them from each other's presence at any moment and forever.
---	---

Christianity, then, requires such slavery as Prof. Hodge so cunningly defines, to be abolished. It was well provided, for the peace of the respective parties, that he placed *his definition* so far from *the requisitions of Christianity*. Had he brought them into each other's presence, their natural and invincible antipathy to each other would have broken out into

open and exterminating warfare. But why should we delay longer upon an argument which is based on gross and monstrous sophistry? It can mislead only such as *wish* to be misled. The lovers of sunlight are in little danger of rushing into the professor's dungeon. Those who, having something to conceal, covet darkness, can find it there, to their hearts' content. The hour can not be far away, when upright and reflective minds at the South will be astonished at the blindness which could welcome such protection as the Princeton argument offers to the slaveholder.

But *Prof. Stuart* must not be forgotten. In his celebrated letter to Dr. Fisk, he affirms that "*Paul did not expect slavery to be ousted in a day*[[A](#)]." *Did not EXPECT!* What then? Are the *requisitions* of Christianity adapted to any EXPECTATIONS which in any quarter and on any ground might have risen to human consciousness? And are we to interpret the *precepts* of the Gospel by the expectations of Paul? The Savior commanded all men every where to repent, and this, though "Paul did not expect" that human wickedness, in its ten thousand forms would in any community "be ousted in a day." Expectations are one thing; requisitions quite another.

[Footnote [A](#): Supra, p.8.]

In the mean time, while expectation waited, Paul, the professor adds, "gave precepts to Christians respecting their demeanor." *That* he did. Of what character were these precepts? Must they not have been in harmony with the Golden Rule? But this, according to Prof. Stuart, "decides against the righteousness of slavery" even as a "theory." Accordingly, Christians were required, *without respect of persons*, to do each other justice--to maintain equality as common ground for all to stand upon--to cherish and express in all their intercourse that tender love and disinterested charity which one *brother* naturally feels for another. These were the "ad interim precepts,"[[A](#)] which can not fail, if obeyed, to cut up slavery, "root and branch," at once and forever.

[Footnote [A](#): Letter to Dr. Fisk, p. 8.]

Prof. Stuart comforts us with the assurance that "*Christianity will ultimately certainly destroy slavery.*" Of this we have not the feeblest doubt. But how could *he* admit a persuasion and utter a prediction so much at war with the doctrine he maintains, that "*slavery may exist without VIOLATING THE*

CHRISTIAN FAITH OR THE CHURCH?"[B] What, Christianity bent on the destruction of an ancient and cherished institution which hurts neither her character nor condition![C] Why not correct its abuses and purify its spirit; and shedding upon it her own beauty, preserve it, as a living trophy of her reformatory power? Whence the discovery that, in her onward progress, she would trample down and destroy what was no way hurtful to her? This is to be *aggressive* with a witness. Far be it from the Judge of all the earth to whelm the innocent and guilty in the same destruction! In aid of Professor Stuart, in the rude and scarcely covert attack which he makes upon himself, we maintain that Christianity will certainly destroy slavery on account of its inherent wickedness--its malignant temper--its deadly effects--its constitutional, insolent, and unmitigable opposition to the authority of God and the welfare of man.

[Footnote B: The same, p. 7.]

[Footnote C: Prof. Stuart applies here the words, *salva fide et salva ecclesia*.]

"Christianity will *ultimately* destroy slavery." "ULTIMATELY!" What meaneth that portentous word? To what limit of remotest time, concealed in the darkness of futurity, may it look? Tell us, O watchman, on the hill of Andover. Almost nineteen centuries have rolled over this world of wrong and outrage--and yet we tremble in the presence of a form of slavery whose breath is poison, whose fang is death! If any one of the incidents of slavery should fall, but for a single day, upon the head of the prophet who dipped his pen, in such cold blood, to write that word "ultimately," how, under the sufferings of the first tedious hour, would he break out in the lamentable cry, "How *long*, O Lord, HOW LONG!" In the agony of beholding a wife or daughter upon the table of the auctioneer, while every bid fell upon his heart like the groan of despair, small comfort would he find in the dull assurance of some heartless prophet, quite at "ease in Zion," that "ULTIMATELY *Christianity would destroy slavery*." As the hammer falls and the beloved of his soul, all helpless and most wretched, is borne away to the haunts of *legalized* debauchery, his heart turns to stone, while the cry dies upon his lips, "*How LONG, O Lord, HOW LONG?*"

"*Ultimately!*" In *what circumstances* does Prof. Stuart assure himself that Christianity will destroy slavery? Are we, as American citizens, under the sceptre of a Nero? When, as integral parts of this republic--as living members of this community, did we forfeit the prerogatives of *freemen*? Have we not the right to speak and act as wielding the powers which the principle of self-government has put in our possession? And without asking leave of priest or statesman, of the North or the South, may we not make the most of the freedom which we enjoy under the guaranty of the ordinances of Heaven and the Constitution of our country? Can we expect to see Christianity on higher vantage-ground than in this country she stands upon? In the midst of a republic based on the principle of the equality of mankind, where every Christian, as vitally connected with the state, freely wields the highest political rights and enjoys the richest political privileges; where the unanimous demand of one-half of the members of the churches would be promptly met in the abolition of slavery, what "*ultimately*" must Christianity here wait for before she crushes the chattel principle beneath her heel? Her triumph over slavery is retarded by nothing but the corruption and defection so widely spread through the "sacramental host" beneath her banners! Let her voice be heard and her energies exerted, and the *ultimately* of the "dark spirit of slavery" would at once give place to the *immediately* of the Avenger of the Poor.

* * * * *

NO. 8.

THE ANTI-SLAVERY EXAMINER.

* * * * *

CORRESPONDENCE,

BETWEEN THE

HON. F.H. ELMORE,

ONE OF THE SOUTH CAROLINA DELEGATION IN CONGRESS,

AND

JAMES G. BIRNEY,

ONE OF THE SECRETARIES OF THE AMERICAN ANTI-SLAVERY
SOCIETY.

* * * * *

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Please read and circulate.

REMARKS IN EXPLANATION.

* * * * *

ANTI-SLAVERY OFFICE, *New York, May 24, 1838.*

In January, a tract entitled "WHY WORK FOR THE SLAVE?" was issued from this office by the agent for the *Cent-a-week Societies*. A copy of it was transmitted to the Hon. John C. Calhoun;--to *him*, because he has seemed, from the first, more solicitous than the generality of Southern politicians, to possess himself of accurate information about the Anti-Slavery movement. A note written by me accompanied the tract, informing Mr. Calhoun, why it was sent to him.

Not long afterward, the following letter was received from the Hon. F.H. Elmore, of the House of Representatives in Congress. From this and another of his letters just now received, it seems, that the Slaveholding Representatives in Congress, after conferring together, appointed a committee, of their own number, to obtain authentic information of the intentions and progress of the Anti-Slavery associations,--and that Mr. Elmore was selected, as the *South Carolina* member of the Committee.

Several other communications have passed between Mr. Elmore and me. They relate, chiefly, however, to the transmission and reception of Anti-slavery publications, which he requested to be sent to him,--and to other matters not having any connection with the merits of the main subject. It is, therefore, thought unnecessary to publish them. It may be sufficient to remark of all the communications received from Mr. Elmore--that they are characterized by exemplary courtesy and good temper, and that they bear the impress of an educated, refined, and liberal mind.

It is intended to circulate this correspondence throughout the *whole country*. If the information it communicates be important for southern Representatives in Congress, it is not less so for their Constituents. The Anti-slavery movement has become so important in a National point of view, that no statesman can innocently remain ignorant of its progress and tendencies. The facts stated in my answer may be relied on, in proportion to

the degree of accuracy to which they lay claim;--the arguments will, of course, be estimated according to their worth.

JAMES G. BIRNEY.

CORRESPONDENCE.

* * * * *

WASHINGTON CITY, FEB. 16, 1838

To Jas. G. Birney, Esq., *Cor. Sec. A.A.S. Soc.*

Sir:--A letter from you to the Hon. John C. Calhoun, dated 29th January last, has been given to me, by him, in which you say, (in reference to the abolitionists or Anti-Slavery Societies,) "we have nothing to conceal--and should you desire any information as to our procedure, it will be cheerfully communicated on [my] being apprised of your wishes." The frankness of this unsolicited offer indicates a fairness and honesty of purpose, which has caused the present communication, and which demands the same full and frank disclosure of the views with which the subjoined inquiries are proposed.

Your letter was handed to me, in consequence of a duty assigned me by my delegation, and which requires me to procure all the authentic information I can, as to the nature and intentions of yours and similar associations, in order that we may, if we deem it advisable, lay the information before our people, so that they may be prepared to decide understandingly, as to the course it becomes them to pursue on this all important question. If you "have nothing to conceal," and it is not imposing too much on, what may have been, an unguarded proffer, I will esteem your compliance as a courtesy to an opponent, and be pleased to have an opportunity to make a suitable return. And if, on the other hand, you have the least difficulty or objection, I trust you will not hesitate to withhold the information sought for, as I would not have it, unless as freely given, as it will, if deemed expedient, be freely used.

I am, Sir,

Your ob'd't serv't,

F.H. ELMORE, of S.C.

QUESTIONS for J.G. Birney, Esq., Cor. Sec. A.A.S. Society.

1. How many societies, affiliated with that of which you are the Corresponding Secretary, are there in the United States? And how many members belong to them *in the aggregate*?
2. Are there any other societies similar to yours, and not affiliated with it, in the United States? and how many, and what is the aggregate their members?
3. Have you affiliation, intercourse or connection with any similar societies out of the United States, and in what countries?
4. Do your or similar societies exist in the Colleges and other Literary institutions of the non-slaveholding States, and to what extent?
5. What do you estimate the numbers of those who co-operate in this matter at? What proportion do they bear in the population of the Northern states, and what in the Middle non-slaveholding states? Are they increasing, and at what rate?
6. What is the object your associations aim at? does it extend to the abolition of slavery only in the District of Columbia, or in the whole slave country?
7. By what means, and under what power, do you propose to carry your views into effect?
8. What has been for three years past, the annual income of your societies? and how is it raised?
9. In what way, and to what purposes, do you apply these funds?
10. How many priming presses and periodical publications have you?
11. To what classes of persons do you address your publications, and are they addressed to the judgment, the imagination, or the feelings?

12. Do you propagate your doctrines by any other means than oral and written discussions,--for instance, by prints and pictures in manufactures--say pocket handkerchiefs, &c. Pray, state the various modes?

13. Are your hopes and expectations increased or lessened by the events of the last year, and, especially, by the action of this Congress? And will your exertions be relaxed or increased?

14. Have you any permanent fund, and how much?

ANTI-SLAVERY OFFICE, *New York, March 8, 1838*

Hon. F.H. ELMORE,

Member of Congress from S. Carolina:

SIR,--I take pleasure in furnishing the information you have so politely asked for, in your letter of the 16th ult., in relation to the American Anti-Slavery Society;--and trust, that this correspondence, by presenting in a sober light, the objects and measures of the society, may contribute to dispel, not only from your own mind, but--if it be diffused throughout the South--from the minds of our fellow-citizens there generally, a great deal of undeserved prejudice and groundless alarm. I cannot hesitate to believe, that such as enter on the examination of its claims to public favour, without bias, will find that it aims intelligently, not only at the promotion of the interests of the slave, but of the master,--not only at the re-animation of the Republican principles of our Constitution, but at the establishment of the Union on an enduring basis.

I shall proceed to state the several questions submitted in your letter, and answer them, in the order in which they are proposed. You ask,--

"1. How many societies, affiliated with that of which you are corresponding secretary, are there in the United States? And how many members belong to them IN THE AGGREGATE?"

ANSWER.--Our anniversary is held on the Tuesday immediately preceding the second Thursday in May. Returns of societies are made only a short time before. In May, 1835, there were 225 auxiliaries reported. In May, 1836, 527. In May, 1837, 1006. Returns for the anniversary in May next

have not come in yet. It may, however, be safely said, that the increase, since last May, is not less than 400.[A] Of late, the multiplication of societies has not kept pace with the progress of our principles. Where these are well received, our agents are not so careful to organize societies as in former times, when our numbers were few; *societies, now*, being not deemed so necessary for the advancement of our cause. The auxiliaries average not less than 80 members each; making an aggregate of 112,480. Others estimate the auxiliaries at 1500, and the average of members at 100. I give you, what I believe to be the lowest numbers.

[Footnote A: The number reported for May was three hundred and forty, making, in the aggregate, 1346.--*Report for May, 1838.*]

"2. *Are there any other societies similar to yours, and not affiliated with it in the United States? And how many, and what is the aggregate of their members?*"

ANSWER.--Several societies have been formed in the Methodist connection within the last two years,--although most of the Methodists who are abolitionists, are members of societies auxiliary to the American. These societies have been originated by Ministers, and others of weight and influence, who think that their brethren can be more easily persuaded, as a religious body, to aid in the anti-slavery movement by this twofold action. None of the large religious denominations bid fairer soon to be on the side of emancipation than the Methodist. Of the number of the Methodist societies that are not auxiliary, I am not informed.--The ILLINOIS SOCIETY comes under the same class. The REV. ELIJAH P. LOVEJOY, the corresponding secretary, was slain by a mob, a few days after its organization. It has not held a meeting since; and I have no data for stating the number of its members. It is supposed not to be large.--Neither is the DELAWARE SOCIETY, organized, a few weeks ago, at Wilmington, auxiliary to the American. I have no information as to its numbers.--The MANUMISSION SOCIETY in this city, formed in 1785, with JOHN JAY its first, and ALEXANDER HAMILTON its second president, might, from its name, be supposed to be affiliated with the American. Originally, its object, so far as regarded the slaves, and those illegally held in bondage *in this state*, was, in a great measure, similar. Slavery being extinguished in New-York in 1827, as a state system, the efforts of the Manumission

Society are limited now to the rescue, from kidnappers and others, of such persons as are really free by the laws, but who have been reduced to slavery. Of the old Abolition societies, organized in the time, and under the influence of Franklin and Rush and Jay, and the most active of their coadjutors, but few remain. Their declension may be ascribed to this defect,--they did not inflexibly ask for *immediate* emancipation.--The PENNSYLVANIA ABOLITION SOCIETY, formed in 1789, with DR. FRANKLIN, president, and DR. RUSH, secretary, is still in existence--but unconnected with the American Society. Some of the most active and benevolent members of both the associations last named, are members of the American Society. Besides the societies already mentioned, there may be in the country a few others of anti-slavery name; but they are of small note and efficiency, and are unconnected with this.

"3. *Have you affiliation, intercourse, or connection with any similar societies out of the United States, and in what countries?*"

ANSWER.--A few societies have spontaneously sprung up in Canada. Two have declared themselves auxiliary to the American. We have an agent--a native of the United States--in Upper Canada; not with a view to the organization of societies, but to the moral and intellectual elevation of the Ten thousand colored people there; most of whom have escaped from slavery in this Republic, to enjoy freedom under the protection of a Monarchy. In Great Britain there are numerous Anti-slavery Societies, whose particular object, of late, has been, to bring about the abolition of the Apprentice-system, as established by the emancipation act in her slaveholding colonies. In England, there is a society whose professed object is, to abolish slavery *throughout the world*. Of the existence of the British societies, you are, doubtless, fully aware; as also of the fact, that, in Britain, the great mass of the people are opposed to slavery as it existed, a little while ago, in their own colonies, and as it exists now in the United States.--In France, the "FRENCH SOCIETY FOR THE ABOLITION OF SLAVERY" was founded in 1834. I shall have the pleasure of transmitting to you two pamphlets, containing an account of some of its proceedings; from which you will learn, that, the *DUC DE BROGLIE* is its presiding officer, and many of the most distinguished and influential of the public men of that country are members.--In Hayti, also, "The HAYTIAN ABOLITION SOCIETY" was formed in May, 1836.

These are all the foreign societies of which I have knowledge. They are connected with the American by no formal affiliation. The only intercourse between them and it, is, that which springs up spontaneously among those of every land who sympathize with Humanity in her conflicts with Slavery.

"4. Do your or similar societies exist in the Colleges and other Literary institutions of the non-slaveholding states, and to what extent?"

ANSWER.--Strenuous efforts have been made, and they are still being made, by those who have the direction of most of the literary and theological institutions in the free states, to bar out our principles and doctrines, and prevent the formation of societies among the students. To this course they have been prompted by various, and possibly, in their view, good motives. One of them, I think it not uncharitable to say, is, to conciliate the wealthy of the south, that they may send their sons to the north, to swell the college catalogues. Neither do I think it uncharitable to say, that in this we have a manifestation of that Aristocratic pride, which, feeling itself honored by having entrusted to its charge the sons of distant, opulent, and distinguished planters, fails not to dull everything like sympathy for those whose unpaid toil supplies the means so lavishly expended in educating southern youth at northern colleges. These efforts at suppression or restraint, on the part of Faculties and Boards of Trustees, have heretofore succeeded to a considerable extent. Anti-Slavery Societies, notwithstanding, have been formed in a few of our most distinguished colleges and theological seminaries. Public opinion is beginning to call for a relaxation of restraints and impositions; they are yielding to its demands; and *now*, for the most part, sympathy for the slave may be manifested by our generous college youth, in the institution of Anti-Slavery Societies, without any downright prohibition by their more politic teachers. College societies will probably increase more rapidly hereafter; as, in addition to the removal or relaxation of former restraints, just referred to, the murder of Mr. Lovejoy, the assaults on the Freedom of speech and of the press, the prostration of the Right of petition in Congress, &c, &c, all believed to have been perpetrated to secure slavery from the scrutiny that the intelligent world is demanding, have greatly augmented the number of college abolitionists. They are, for the most part, the diligent, the intellectual, the religious of the students. United in societies, their influence is generally

extensively felt in the surrounding region; *dispersed*, it seems scarcely less effective. An instance of the latter deserves particular notice.

The Trustees and Faculty of one of our theological and literary institutions united for the suppression of anti-slavery action among the students. The latter refused to cease pleading for the slave, as he could not plead for himself. They left the institution; were providentially dispersed over various parts of the country, and made useful, in a remarkable manner, in advancing the cause of humanity and liberty. One of these dismissed students, the son of a slaveholder, brought up in the midst of slavery, and well acquainted with its peculiarities, succeeded in persuading a pious father to emancipate his fourteen slaves. After lecturing a long time with signal success--having contracted a disease of the throat, which prevented him from further prosecuting his labors in this way--he visited the West Indies, eighteen months ago, in company with another gentleman of the most ample qualifications, to note the operation of the British emancipation act. Together, they collected a mass of facts--now in a course of publication--that will astonish, as it ought to delight, the whole south; for it shows, conclusively, that IMMEDIATE emancipation is the best, the safest, the most profitable, as it is the most just and honorable, of all *emancipations*.
[A]

[Footnote [A](#): See Appendix, A.]

Another of these dismissed students is one of the secretaries of this society. He has, for a long time, discharged its arduous and responsible duties with singular ability. To his qualifications as secretary, he adds those of an able and successful lecturer. He was heard, several times, before the joint committee of the Legislature of Massachusetts, a year ago, prior to the report of that committee, and to the adoption, by the Senate and House of Representatives, of their memorable resolutions in favor of the Power of Congress to abolish slavery in the District of Columbia, and of the Right of petition.

"5. *What do you estimate the number of those who co-operate in the matter at? What proportion do they bear in the population of the northern states, and what in the middle non-slaveholding states? Are they increasing, and at what rate?*"

ANSWER.--Those who stand *ready to join* our societies on the first suitable occasion, may be set down as equal in number to those who are now *actually members*. Those who are ready *fully to co-operate with us* in supporting the freedom of speech and the press, the right of petition, &c, may be estimated at *double*, if not *treble*, the joint numbers of those who *already are members*, and those who are *ready to become members*. The Recording secretary of the MASSACHUSETTS SOCIETY stated, a few weeks ago, that the abolitionists in the various minor societies in that state were one in thirty of the whole population. The proportion of abolitionists to the whole population is greater in Massachusetts than in any other of the free states, except VERMONT,--where the spirit of liberty has almost entirely escaped the *corruptions* which slavery has infused into it in most of her sister states, by means of commercial and other intercourse with them.

In MAINE, not much of systematic effort has, as yet, been put forth to enlighten her population as to our principles and proceedings. I attended the anniversary of the State Society on the 31st of January, at Augusta, the seat of government. The Ministers of the large religious denominations were beginning, as I was told, to unite with us--and Politicians, to descry the ultimate prevalence of our principles. The impression I received was, that much could, and that much would, speedily be done.

In NEW HAMPSHIRE, more labor has been expended, and a greater effect produced. Public functionaries, who have been pleased to speak in contemptuous terms of the progress of abolitionism, both in Maine and New Hampshire, will, it is thought, soon be made to see, through a medium not at all deceptive, the grossness of their error.

In RHODE ISLAND, our principles are fast pervading the great body of the people. This, it is thought, is the only one of the free states, in which the subject of abolition has been fully introduced, which has not been disgraced by a mob, triumphant, for the time being, over the right of the people to discuss any, and every, matter in which they feel interested. A short time previous to the last election of members of Congress, questions, embodying our views as to certain political measures were propounded to the several candidates. Respectful answers and, in the main, conformable with our views, were returned. I shall transmit you a newspaper containing both the questions and the answers.[[A](#)]

[Footnote [A](#): Since the above was written, at the last election in this state for governor and lieutenant governor, the abolitionists *interrogated* the gentlemen who stood candidates for these offices. Two of them answered respectfully, and conformably to the views of the abolitionists. Their opponents neglected to answer at all. The first were elected.--See Appendix, B.]

In CONNECTICUT, there has not been, as yet, a great expenditure of abolition effort. Although the moral tone of this state, so far as slavery is concerned, has been a good deal weakened by the influence of her multiform connexions with the south, yet the energies that have been put forth to reanimate her ancient and lofty feelings, so far from proving fruitless, have been followed by the most encouraging results. Evidence of this is found in the faithful administration of the laws by judges and juries. In May last, a slave, who had been brought from Georgia to Hartford, successfully asserted her freedom under the laws of Connecticut. The cause was elaborately argued before the Supreme court. The most eminent counsel were employed on both sides. And it is but a few days, since two anti-abolition rioters (the only ones on trial) were convicted before the Superior court in New Haven, and sentenced to pay a fine of twenty dollars each, and to be imprisoned six months, the longest term authorized by the law. A convention, for the organization of a State Society, was held in the city of Hartford on the last day of February. It was continued three days. The *call* for it (which I send you) was signed by nearly EIGHTEEN HUNDRED of the citizens of that state. SEVENTEEN HUNDRED, as I was informed, are legal voters. The proceedings of the convention were of the most harmonious and animating character.[\[B\]](#)

[Footnote [B](#): See Appendix, C.]

In NEW YORK, our cause is evidently advancing. The state is rapidly coming up to the high ground of principle, so far as universal liberty is concerned, on which the abolitionists would place her. Several large Anti-Slavery conventions have lately been held in the western counties. Their reports are of the most encouraging character. Nor is the change more remarkable in the state than in this city. Less than five years ago, a few of the citizens advertised a meeting, to be held in Clinton Hall, to form a City Anti-Slavery Society. A mob prevented their assembling at the place

appointed. They repaired, privately, to one of the churches. To this they were pursued by the mob, and routed from it, though not before they had completed, in a hasty manner, the form of organization. In the summer of 1834, some of the leading political and commercial journals of the city were enabled to stir up the mob against the persons and property of the abolitionists, and several of the most prominent were compelled to leave the city for safety; their houses were attacked, broken into, and, in one instance, the furniture publicly burnt in the street. Now, things are much changed. Many of the merchants and mechanics are favorable to our cause; gentlemen of the bar, especially the younger and more growing ones, are directing their attention to it; twenty-one of our city ministers are professed abolitionists; the churches are beginning to be more accessible to us; our meetings are held in them openly, attract large numbers, are unmolested; and the abolitionists sometimes hear themselves commended in other assemblies, not only for their honest *intentions*, but for their *respectability* and *intelligence*.

NEW JERSEY has, as yet, no State Society, and the number of avowed abolitionists is small. In some of the most populous and influential parts of the state, great solicitude exists on the subject; and the call for lecturers is beginning to be earnest, if not importunate.

PENNSYLVANIA has advanced to our principles just in proportion to the labor that has been bestowed, by means of lectures and publications in enlightening her population as to our objects, and the evils and dangers impending over the whole country, from southern slavery. The act of her late Convention, in depriving a large number of their own constituents (the colored people) of the elective franchise, heretofore possessed by them without any allegation of its abuse on their part, would seem to prove an unpropitious state of public sentiment. We would neither deny, nor elude, the force of such evidence. But when this measure of the convention is brought out and unfolded in its true light--shown to be a party measure to bring succor from the south--a mere following in the wake of North Carolina and Tennessee, who led the way, in their *new* constitutions, to this violation of the rights of their colored citizens, that they might the more firmly compact the wrongs of the enslaved--a pernicious, a profitless violation of great principles--a vulgar defiance of the advancing spirit of

humanity and justice--a relapse into the by-gone darkness of a barbarous age--we apprehend from it no serious detriment to our cause.

OHIO has been well advanced. In a short time, she will be found among the most prominent of the states on the right side in the contest now going on between the spirit of liberty embodied in the free institutions of the north, and the spirit of slavery pervading the south. Her Constitution publishes the most honorable reprobation of slavery of any other in the Union. In providing for its own revision or amendment, it declares, that *no alteration of it shall ever take place, so as to introduce slavery or involuntary servitude into the state*. Her Supreme court is intelligent and firm. It has lately decided, virtually, against the constitutionality of an act of the Legislature, made, in effect, to favor southern slavery by the persecution of the colored people within her bounds. She has, already, abolitionists enough to turn the scale in her elections, and an abundance of excellent material for augmenting the number.

In INDIANA but little has been done, except by the diffusion of our publications. But even with these appliances, several auxiliary societies have been organized.[\[A\]](#)

[Footnote [A](#): The first Legislative movement against the annexation of Texas to the Union, was made, it is believed, in Indiana. So early as December, 1836, a joint resolution passed its second reading in one or both branches of the Legislature. How it was ultimately disposed of, is not known.]

In MICHIGAN, the leaven of abolitionists pervades the whole population. The cause is well sustained by a high order of talent; and we trust soon to see the influence of it in all her public acts.

In ILLINOIS, the murder of Mr. Lovejoy has multiplied and confirmed abolitionists, and led to the formation of many societies, which, in all probability, would not have been formed so soon, had not that event taken place.

I am not possessed of sufficient data for stating, with precision, what proportion the abolitionists bear in the population of the Northern and Middle non-slaveholding states respectively. Within the last ten months, I

have travelled extensively in both these geographical divisions. I have had whatever advantage this, assisted by a strong interest in the general cause, and abundant conversations with the best informed abolitionists, could give, for making a fair estimate of their numbers. In the Northern states I should say, *they are one in ten*--in New York, New Jersey, and Pennsylvania, *one in twenty*--of the whole adult population. That the abolitionists have multiplied, and that they are still multiplying rapidly, no one acquainted with the smallness of their numbers at their first organization a few years ago, and who has kept his eyes about him since, need ask. That they have not, thus far, been more successful, is owing to the vastness of the undertaking, and the difficulties with which they have had to contend, from comparatively limited means, for presenting their measures and objects, with the proper developments and explanations, to the great mass of the popular mind. The progress of their principles, under the same amount of intelligence in presenting them, and where no peculiar causes of prejudice exist in the minds of the hearers, is generally proportioned to the degree of religious and intellectual worth prevailing in the different sections of the country where the subject is introduced. I know no instance, in which any one notoriously profane or intemperate, or licentious, or of openly irreligious *practice*, has professed, cordially to have received our principles.

"6. *What is the object your associations aim at? Does it extend to abolition of slavery only in the District of Columbia, or in the whole slave country?*"

ANSWER.--This question is fully answered in the second Article of the Constitution of the American Anti-Slavery Society, which is in these words:--

"The object of this society is the entire abolition of slavery in the United States. While it admits that each state, in which slavery exists, has, by the Constitution of the United States, the exclusive right to *legislate* in regard to its abolition in said state, it shall aim to convince all our fellow-citizens, by arguments addressed to their understandings and consciences, that slaveholding is a heinous crime in the sight of God, and that the duty, safety, and best interests of all concerned require its immediate abandonment, without expatriation. The society will also endeavor, in a constitutional way, to influence Congress to put an end to the domestic slave-trade, and to abolish slavery in all those portions of our common

country which come under its control, especially in the District of Columbia; and likewise to prevent the extension of it to any state that may hereafter be admitted to the Union."

Other objects, accompanied by a pledge of peace, are stated in the third article of the Constitution,--

"This Society shall aim to elevate the character and condition of the people of color, by encouraging their intellectual, moral, and religious improvement, and by removing public prejudice,--that thus they may, according to their intellectual and moral worth, share an equality with the whites of civil and religious privileges; but this Society will never in any way, countenance the oppressed in vindicating their rights by resorting to physical force."

"7. By what means and by what power do you propose to carry your views into effect?"

ANSWER.--Our "means" are the Truth,--the "Power" under whose guidance we propose to carry our views into effect, is, the Almighty. Confiding in these means, when directed by the spirit and wisdom of Him, who has so made them as to act on the hearts of men, and so constituted the hearts of men as to be affected by them, we expect, 1. To bring the CHURCH of this country to repentance for the sin of OPPRESSION. Not only the Southern portion of it that has been the oppressor--but the Northern, that has stood by, consenting, for half a century, to the wrong. 2. To bring our countrymen to see, that for a nation to persist in injustice is, but to rush on its own ruin; that to do justice is the highest expediency--to love mercy its noblest ornament. In other countries, slavery has sometimes yielded to fortuitous circumstances, or been extinguished by physical force. We strive to win for truth the victory over error, and on the broken fragments of slavery to rear for her a temple, that shall reach to the heavens, and toward which all nations shall worship. It has been said, that the slaveholders of the South will not yield, nor hearken to the influence of the truth on this subject. We believe it not--nor give we entertainment to the slander that such an unworthy defence of them implies. We believe them *men*,--that they have understandings that arguments will convince--consciences to which the appeals of justice and mercy will not be made in

vain. If our principles be true--our arguments right--if slaveholders be men--and God have not delivered over our guilty country to the *retributions* of the oppressor, not only of the STRANGER but of the NATIVE--our success is certain.

"8. What has been for three years past, the annual income of your societies? And how has it been raised?"

ANSWER.--The annual income of the societies at large, it would be impossible to ascertain. The total receipts of this society, for the year ending 9th of May, 1835--leaving out odd numbers--was \$10,000; for the year ending 9th of May, 1837, \$25,000; and for the year ending 11th of May, 1836, \$38,000. From the last date, up to this--not quite ten months--there has been paid into the treasury the sum of \$36,000.[\[A\]](#) These sums are independent of what is raised by state and auxiliary societies, for expenditure within their own particular bounds, and for their own particular exigencies. Also, of the sums paid in subscriptions for the support of newspapers, and for the printing (by auxiliaries,) of periodicals, pamphlets, and essays, either for sale at low prices, or for gratuitous distribution. The moneys contributed in these various modes would make an aggregate greater, perhaps, than is paid into the treasury of any one of the Benevolent societies of the country. Most of the wealthy contributors of former years suffered so severely in the money-pressure of this, that they have been unable to contribute much to our funds. This has made it necessary to call for aid on the great body of abolitionists--persons, generally, in moderate circumstances. They have well responded to the call, considering the hardness of the times. To show you the extremes that meet at our treasury,--General Sewall, of Maine, a revolutionary officer, eighty-five years old--William Philbrick, a little boy near Boston, not four years old--and a colored woman, who makes her subsistence by selling apples in the streets in this city, lately sent in their respective sums to assist in promoting the emancipation of the "poor slave."

[Footnote [A](#): The report for May states the sum received during the previous year at \$44,000.]

All contributions of whatever kind are *voluntary*.

"9. In what way, and to what purposes do you apply these funds!"

ANSWER.--They are used in sustaining the society's office in this city--in paying lecturers and agents of various kinds--in upholding the press--in printing books, pamphlets, tracts, &c, containing expositions of our principles--accounts of our progress--*refutations* of objections--and disquisitions on points, scriptural, constitutional, political, legal, economical, as they chance to arise and become important. In this office three secretaries are employed in different departments of duty; one editor; one publishing agent, with an assistant, and two or three young men and boys, for folding, directing, and despatching papers, executing errands, &c. The business of the society has increased so much of late, as to make it necessary, in order to ensure the proper despatch of it, to employ additional clerks for the particular exigency. Last year, the society had in its service about sixty "permanent agents." This year, the number is considerably diminished. The deficiency has been more than made up by creating a large number of "Local" agents--so called, from the fact, that being generally Professional men, lawyers or physicians in good practice, or Ministers with congregations, they are confined, for the most part, to their respective neighborhoods. Some of the best minds in our country are thus engaged. Their labors have not only been eminently successful, but have been rendered at but small charge to the society; they receiving only their travelling expenses, whilst employed in lecturing and forming societies. In the case of a minister, there is the additional expense of supplying his pulpit while absent on the business of his agency, However, in many instances, these agents, being in easy circumstances, make no charge, even for their expenses.

In making appointments, the executive committee have no regard to party discrimination. This will be fully understood, when it is stated, that on a late occasion, two of our local agents were the candidates of their respective political parties for the office of Secretary of State for the state of Vermont.

It ought to be stated here, that two of the most effective advocates of the anti-slavery cause are females--the Misses Grimké--natives of South Carolina--brought up in the midst of the usages of slavery--most intelligently acquainted with the merits of the system, and qualified, in an eminent degree, to communicate their views to others in public addresses. They are not only the advocates of the slave at their own charge, but they actually contribute to the funds of the societies. So successfully have they

recommended the cause of emancipation to the crowds that attended their lectures during the last year, that they were permitted on three several occasions publicly to address the joint committee (on slavery) of the Massachusetts Legislature, now in session, on the interesting matters that occupy their attention.

"10. *How many printing presses and periodical publications have you?*"

ANSWER.--We own no press. Our publications are all printed by contract. The EMANCIPATOR and HUMAN RIGHTS are the organs of the Executive Committee. The first (which you have seen,) is a large sheet, is published weekly, and employs almost exclusively the time of the gentleman who edits it. Human Rights is a monthly sheet of smaller size, and is edited by one of the secretaries. The increasing interest that is fast manifesting itself in the cause of emancipation and its kindred subjects will, in all probability, before long, call for the more frequent publication of one or both of these papers.--The ANTI-SLAVERY MAGAZINE, a quarterly, was commenced in October, 1835, and continued through two years. It has been intermitted, only to make the necessary arrangements for issuing it on a more extended scale.--It is proposed to give it size enough to admit the amplest discussions that we or our opponents may desire, and to give *them* a full share of its room--in fine, to make it, in form and merit, what the importance of the subject calls for. I send you a copy of the Prospectus for the new series.--The ANTI-SLAVERY RECORD, published for three years as a monthly, has been discontinued *as such*, and it will be issued hereafter, only as occasion may require.--THE SLAVE'S FRIEND, a small monthly tract, of neat appearance, intended principally for children and young persons, has been issued for several years. It is replete with facts relating to slavery, and with accounts of the hair-breadth escapes of slaves from their masters and pursuers that rarely fail to impart the most thrilling interest to its little readers.--Besides these, there is the ANTI-SLAVERY EXAMINER, in which are published, as the times call for them, our larger essays partaking of a controversial character, such as Smith's reply to the Rev. Mr. Smylie--Grimké's letter and "Wythe." By turning to page 32 of our Fourth Report (included in your order for books, &c,) you will find, that in the year ending 11th May, the issues from the press were--bound volumes, 7,877--Tracts and Pamphlets, 47,250--Circulars, &c, 4,100--Prints, 10,490--Anti-Slavery Magazine, 9000--Slave's Friend, 131,050--Human Rights, 189,400-

-Emancipator, 217,000. These are the issues of the American Anti-Slavery Society, from their office in this city. Other publications of similar character are issued by State Societies or individuals--the LIBERATOR, in Boston; HERALD OF FREEDOM, in Concord, N.H.; ZION'S WATCHMAN and the COLORED AMERICAN in this city. The latter is conducted in the editorial, and other departments, by colored citizens. You can judge of its character, by a few numbers that I send to you. Then, there is the FRIEND of MAN, in Utica, in this state. The NATIONAL ENQUIRER, in Philadelphia;[A] the CHRISTIAN WITNESS, in Pittsburgh; the PHILANTHROPIST, in Cincinnati.--All these are sustained by the friends, and devoted almost exclusively to the cause, of emancipation. Many of the Religious journals that do not make emancipation their main object have adopted the sentiments of abolitionists, and aid in promoting them. The Alton Observer, edited by the late Mr. Lovejoy, was one of these.

[Footnote A: The NATIONAL ENQUIRER, edited by Benjamin Lundy, has been converted into the PENNSYLVANIA FREEMAN, edited by John G. Whittier. Mr. Lundy proposes to issue the GENIUS OF UNIVERSAL EMANCIPATION, in Illinois.]

From the data I have, I set down the newspapers, as classed above, at upwards of one hundred. Here it may also be stated, that the presses which print the abolition journals above named, throw off besides, a great variety of other anti-slavery matter, in the form of books, pamphlets, single sheets, &c, &c, and that, at many of the principal commercial points throughout the free states, DEPOSITORIES are established, at which our publications of every sort are kept for sale. A large and fast increasing number of the Political journals of the country have become, within the last two years, if not the avowed supporters of our cause, well inclined to it. Formerly, it was a common thing for most of the leading *party*-papers, especially in the large cities, to speak of the abolitionists in terms signally disrespectful and offensive. Except in rare instances, and these, it is thought, only where they are largely subsidized by southern patronage, it is not so now. The desertions that are taking place from their ranks will, in a short time, render their position undesirable for any, who aspire to gain, or influence, or reputation in the North.

"11. *To what class of persons do you address your publications--and are they addressed to the judgment, the imagination, or the feelings?*"

ANSWER.--They are intended for the great mass of intelligent mind, both in the free and in the slave states. They partake, of course, of the intellectual peculiarities of the different authors. Jay's "INQUIRY" and Mrs. Child's "APPEAL" abound in facts--are dispassionate, ingenious, argumentative. The "BIBLE AGAINST SLAVERY," by the most careful and laborious research, has struck from slavery the prop, which careless Annotators, (writing, unconscious of the influence, the prevailing system of slavery throughout the Christian world exercised on their own minds,) have admitted was furnished for it in the Scriptures. "Wythe" by a pains-taking and lucid adjustment of facts in the history of the Government, both before and after the adoption of the Constitution, and with a rigor of logic, that cannot, it is thought, be successfully encountered, has put to flight forever with unbiased minds, every doubt as to the "Power of Congress over the District of Columbia."

There are among the abolitionists, Poets, and by the acknowledgment of their opponents, poets of no mean name too--who, as the use of poets is, do address themselves often--as John G. Whittier does *always*--powerfully to the imagination and feelings of their readers.

Our publications cannot be classed according to any particular style or quality of composition. They may be characterized generally, as well suited to affect the public mind--to rouse into healthful activity the conscience of this nation, stupified, torpid, almost dead, in relation to HUMAN RIGHTS, the high theme of which they treat!

It has often been alleged, that our writings appeal to the worst passions of the slaves, and that they are placed in their hands with a view to stir them to revolt. Neither charge has any foundation in truth to rest upon. The first finds no support in the tenor of the writings themselves; the last ought forever to be abandoned, in the absence of any single well authenticated instance of their having been conveyed by abolitionists to slaves, or of their having been even found in their possession. To instigate the slaves to revolt, as the means of obtaining their liberty, would prove a lack of wisdom and honesty that none would impute to abolitionists, except such as are

unacquainted with their character. Revolt would be followed by the sure destruction, not only of all the slaves who might be concerned in it, but of multitudes of the innocent. Moreover, the abolitionists, as a class, are religious--they favor peace, and stand pledged in their constitution, before the country and heaven, to abide in peace, so far as a forcible vindication of the right of the slaves to their freedom is concerned. Further still, no small number of them deny the right of defence, either to individuals or nations, even when forcibly and wrongfully attacked. This disagreement among ourselves on this single point--of which our adversaries are by no means ignorant, as they often throw it reproachfully in our teeth--would forever prevent concert in any scheme that looked to instigating servile revolt. If there be, in all our ranks, one, who--personal danger out of the question--would excite the slaves to insurrection and massacre, or who would not be swift to repeat the earliest attempt to concoct such an iniquity--I say, on my obligations as a man, he is unknown to me.

Yet it ought not to be matter of surprise to abolitionists, that the South should consider them "fanatics," "incendiaries," "cut-throats," and call them so too. The South has had their character reported to them by the North, by those who are their neighbors, who, it was supposed, knew, and would speak the truth, and the truth only, concerning them. It would, I apprehend, be unavailing for abolitionists now to enter on any formal vindication of their character from charges that can be so easily repeated after every refutation. False and fraudulent as they knew them to be, they must be content to live under them till the consummation of the work of Freedom shall prove to the master that they have been *his* friends, as well as the friends of the slave. The mischief of these charges has fallen on the South--the malice is to be placed to the credit of the North.

"12. Do you propagate your doctrines by any other means than oral and written discussions--for instance, by prints and pictures in manufactures--say of pocket-handkerchiefs, calicoes, &c? Pray, state the various modes?"

ANSWER.--Two or three years ago, an abolitionist of this city procured to be manufactured, at his own charge, a small lot of children's pocket-handkerchiefs, impressed with anti-slavery pictures and mottoes. I have no recollection of having seen any of them but once. None such, I believe, are now to be found, or I would send you a sample. If any manufactures of the

kinds mentioned, or others similar to theta, are in existence, they have been produced independently of the agency of this society. It is thought that none such exist, unless the following should be supposed to fall within the terms of the inquiry. Female abolitionists often unite in sewing societies. They meet together, usually once a week or fortnight, and labor through the afternoon, with their own hands, to furnish means for advancing the cause of the slave. One of the company reads passages from the Bible, or some religious book, whilst the others are engaged at their work. The articles they prepare, especially if they be of the "fancy" kind, are often ornamented with handsomely executed emblems, underwritten with appropriate mottoes. The picture of a slave kneeling (such as you will see impressed on one of the sheets of this letter) and supplicating in the words, "AM I NOT A MAN AND A BROTHER," is an example. The mottoes or sentences are, however, most generally selected from the Scriptures; either appealing to human sympathy in behalf of human suffering, or breathing forth God's tender compassion for the oppressed, or proclaiming, in thunder tones, his avenging justice on the oppressor. A few quotations will show their general character:--

"Blessed is he that considereth the poor."

"Defend the poor and fatherless; do justice to the afflicted and needy. Deliver the poor and the needy; rid him out of the hand of the wicked."

"Open thy mouth for the dumb, plead the cause of the poor and needy."

"Blessed are the merciful, for they shall obtain mercy."

"First, be reconciled to thy brother, and then come and offer thy gift."

"Thou shalt love thy neighbor as thyself."

"All things whatsoever ye would that men should do to you, do ye even so to them."

Again:--

"For he shall deliver the needy when he crieth; the poor also, and him that hath no helper."

"The Lord looseth the prisoners; the Lord raiseth them that are bowed down; the Lord preserveth the strangers."

"He hath sent me to heal the broken-hearted, to preach deliverance to the captives, to set at liberty them that are bruised."

"For the oppression of the poor, for the sighing of the needy, now will I arise, saith the Lord; I will set him in safety from him that puffeth at him."

Again:--

"The Lord executeth righteousness and judgment for all that are oppressed."

"Rob not the poor because he is poor, neither oppress the afflicted in the gate; for the Lord will plead their cause, and spoil the soul of those that spoiled them."

"And I will come near to you to judgment, and I will be a swift witness against those that oppress the hireling in his wages, the widow and the fatherless, and that turn aside the stranger from his right, and fear not me, saith the Lord of hosts."

"Wo unto him that buildeth his house by unrighteousness, and his chambers by wrong; that useth his neighbor's service without wages, and giveth him not for his work."

Fairs, for the sale of articles fabricated by the hands of female abolitionists, and recommended by such pictures and sentences as those quoted above, are held in many of our cities and large towns. Crowds frequent them to purchase; hundreds of dollars are thus realized, to be appropriated to the anti-slavery cause; and, from the cheap rate at which the articles are sold, vast numbers of them are scattered far and wide over the country. Besides these, if we except various drawings or pictures on *paper*, (samples of which were put up in the packages you ordered a few days ago,) such as the Slave-market in the District of Columbia, with Members of congress attending it--views of slavery in the South--a Lynch court in the slave-states--the scourging of Mr. Dresser by a vigilance committee in the public square of Nashville--the plundering of the post-office in Charleston, S.C., and the conflagration of part of its contents, &c, &c, I am apprised of no

other means of propagating our doctrines than by oral and written discussions.

"13. *Are your hopes and expectations of success increased or lessened by the events of the last year, and especially by the action of this Congress? And will your exertions be relaxed or increased?*"

ANSWER.--The events of the last year, including the action of the present Congress, are of the same character with the events of the eighteen months which immediately preceded it. In the question before us, they may be regarded as one series. I would say, answering your interrogatory generally, that none of them, however unpropitious to the cause of the abolitionists they may appear, to those who look at the subject from an opposite point to the one *they* occupy, seem, thus far, in any degree to have lessened their hopes and expectations. The events alluded to have not come altogether unexpected. They are regarded as the legitimate manifestations of slavery--necessary, perhaps, in the present dull and unapprehensive state of the public mind as to human rights, to be brought out and spread before the people, before they will sufficiently revolt against slavery itself.

1. They are seen in the CHURCH, and in the practice of its individual members. The southern portion of the American church may now be regarded as having admitted the dogma, that *slavery is a Divine institution*. She has been forced by the anti-slavery discussion into this position--either to cease from slaveholding, or formally to adopt the only alternative, that slaveholding is right. She has chosen the alternative--reluctantly, to be sure, but substantially, and, within the last year, almost unequivocally. In defending what was dear to her, she has been forced to cast away her garments, and thus to reveal a deformity, of which she herself, before, was scarcely aware, and the existence of which others did not credit. So much for the action of the southern church as a body.--On the part of her MEMBERS, the revelation of a time-serving spirit, that not only yielded to the ferocity of the multitude, but fell in with it, may be reckoned among the events of the last three years. Instances of this may be found in the attendance of the "clergy of all denominations," at a tumultuous meeting of the citizens of Charleston, S.C., held in August, 1835, for the purpose of reducing to *system* their unlawful surveillance and control of the post-office and mail; and in the alacrity with which they obeyed the popular call to

dissolve the Sunday-schools for the instruction of the colored people. Also in the fact, that, throughout the whole South, church members are not only found on the Vigilance Committees, (tribunals organized in opposition to the laws of the states where they exist,) but uniting with the merciless and the profligate in passing sentence consigning to infamous and excruciating, if not extreme punishment, persons, by their own acknowledgment, innocent of any unlawful act. Out of sixty persons that composed the vigilance committee which condemned Mr. Dresser to be scourged in the public square of Nashville, TWENTY-SEVEN were members of churches, and one of them a professed Teachers of Christianity. A member of the committee stated afterward, in a newspaper of which he was the editor, that Mr. D. *had not laid himself liable to any punishment known to the laws.* Another instance is to be found in the conduct of the Rev. Wm. S. Plumer, of Virginia. Having been absent from Richmond, when the ministers of the gospel assembled together formally to testify their abhorrence of the abolitionists, he addressed the chairman of the committee of correspondence a note, in which he uses this language:--"If abolitionists will set the country in a blaze, it is but fair that they should have the first warming at the fire."--"Let them understand, that they will be caught, if they come among us, and they will take good heed to keep out of our way." Mr. P. has no doubtful standing in the Presbyterian church with which he is connected. He has been regarded as one of its brightest ornaments.[\[A\]](#) To drive the slaveholding church and its members from the equivocal, the neutral position, from which they had so long successfully defended slavery--to compel them to elevate their practice to an even height with their avowed principles, or to degrade their principles to the level of their known practice, was a preliminary, necessary in the view of abolitionists, either for bringing that part of the church into the common action against slavery, or as a ground for treating it as confederate with oppressors. So far, then, as the action of the church, or of its individual members, is to be reckoned among the events of the last two or three years, the abolitionists find in it nothing to lessen their hopes or expectations.

[Footnote [A](#): In the division of the General Assembly of the Presbyterian church, that has just taken place, Mr. Plumer has been elected Moderator of the "Old School" portion.]

2. The abolitionists believed, from the beginning, that the slaves of the South were (as slaves are everywhere) unhappy, *because of their condition*. Their adversaries denied it, averring that, as a class, they were "contented and happy." The abolitionists thought that the argument against slavery could be made good, so far as this point was concerned, by either *admitting* or *denying* the assertion.

Admitting it, they insisted, that, nothing could demonstrate the turpitude of any system more surely than the fact, that MAN--made in the image of God--but a little lower than the angels--crowned with glory and honor, and set over the works of God's hands--his mind sweeping in an instant from planet to planet, from the sun of one system to the sun of another, even to the great centre sun of them all--contemplating the machinery of the universe "wheeling unshaken" in the awful and mysterious grandeur of its movements "through the void immense"--with a spirit delighting in upward aspiration--bounding from earth to heaven--that seats itself fast by the throne of God, to drink in the instructions of Infinite Wisdom, or flies to execute the commands of Infinite Goodness;--that such a being could be made "contented and happy" with "enough to eat, and drink, and wear," and shelter from the weather--with the base provision that satisfies the brutes, is (say the abolitionists) enough to render superfluous all other arguments for the *instant* abandonment of a system whose appropriate work is such infinite wrong.

Denying that "the slaves are contented and happy," the abolitionists have argued, that, from the structure of his moral nature--the laws of his mind--man cannot be happy in the fact, that he is *enslaved*. True, he may be happy in slavery, but it is not slavery that makes him so--it is virtue and faith, elevating him above the afflictions of his lot. The slave has a will, leading him to seek those things which the Author of his nature has made conducive to its happiness. In these things, the will of the master comes in collision with his will. The slave desires to receive the rewards of his own labor; the power of the master wrests them from him. The slave desires to possess his wife, to whom God has joined him, in affection, to have the superintendence, and enjoy the services, of the children whom God has confided to him as a parent to train them, by the habits of the filial relation, for the yet higher relation that they may sustain to him as their heavenly Father. But here he is met by the opposing will of the master, pressing *his*

claims with irresistible power. The ties that heaven has sanctioned and blessed--of husband and wife, of parent and child--are all sundered in a moment by the master, at the prompting of avarice or luxury or lust; and there is none that can stay his ruthless hand, or say unto him, "What doest thou?" The slave thirsts for the pleasures of refined and elevated intellect--the master denies to him the humblest literary acquisition. The slave pants to know something of that still higher nature that he feels burning within him--of his present state, his future destiny, of the Being who made him, to whose judgment-seat he is going. The master's interests cry, "No!" "Such knowledge is too wonderful for you; it is high, you cannot attain unto it." To predicate *happiness* of a class of beings, placed in circumstances where their will is everlastingly defeated by an irresistible power--the abolitionists say, is to prove them destitute of the sympathies of *our* nature--not *human*. It is to declare with the Atheist, that man is independent of the goodness of his Creator for his enjoyments--that human happiness calls not for any of the appliances of his bounty--that God's throne is a nullity, himself a superfluity.

But, independently of any abstract reasoning drawn from the nature of moral and intelligent beings, FACTS have been elicited in the discussion of the point before us, proving slavery everywhere (especially Southern slavery, maintained by enlightened Protestants of the nineteenth century) replete with torments and horrors--the direst form of oppression that upheaves itself before the sun. These facts have been so successfully impressed on a large portion of the intelligent mind of the country, that the slaves of the South are beginning to be considered as those whom God emphatically regards as the "poor," the "needy," the "afflicted," the "oppressed," the "bowed down;" and for whose consolation he has said, "Now will I arise--I will set him in safety from him that puffeth at him."

This state of the public mind has been brought about within the last two or three years; and it is an event which, so far from lessening, greatly animates, the hopes and expectations of abolitionists.

3. The abolitionists believed from the first, that the tendency of slavery is to produce, on the part of the whites, looseness of morals, disdain of the wholesome restraints of law, and a ferocity of temper, found, only in solitary instances, in those countries where slavery is unknown. They were

not ignorant of the fact, that this was disputed; nor that the "CHIVALRY OF THE SOUTH" had become a cant phrase, including, all that is high-minded and honorable among men; nor, that it had been formally asserted in our National legislature, that slavery, as it exists in the South, "produces the highest toned, the purest, best organization of society that has ever existed on the face of the earth." Nor were the abolitionists unaware, that these pretensions, proving anything else but their own solidity, had been echoed and re-echoed so long by the unthinking and the interested of the North, that the character of the South had been injuriously affected by them--till she began boldly to attribute her *peculiar* superiority to her *peculiar* institution, and thus to strengthen it. All this the abolitionists saw and knew. But few others saw and understood it as they did. The revelations of the last three years are fast dissipating the old notion, and bringing multitudes in the North to see the subject as the abolitionists see it. When "Southern Chivalry" and the *purity* of southern society are spoken of now, it is at once replied, that a large number of the slaves show, by their *color*, their indisputable claim to white paternity; and that, notwithstanding their near consanguineous relation to the whites, they are still held and treated, in all respects, *as slaves*. Nor is it forgotten now, when the claims of the South to "hospitality" are pressed, to object, because they are grounded on the unpaid wages of the laborer--on the robbery of the poor. When "Southern generosity" is mentioned, the old adage, "be just before you are generous," furnishes the reply. It is no proof of generosity (say the objectors) to take the bread of the laborer, to lavish it in banquetings on the rich. When "Southern Chivalry" is the theme of its admirers, the hard-handed, but intelligent, working man of the North asks, if the espionage of southern hotels, and of ships and steamboats on their arrival at southern ports; if the prowl, by day and by night, for the solitary stranger suspected of sympathizing with the enslaved, that he may be delivered over to the mercies of a vigilance committee, furnishes the proof of its existence; if the unlawful importation of slaves from Africa[A] furnishes the proof; if the abuse, the scourging, the hanging on suspicion, without law, of friendless strangers, furnish the proof; if the summary execution of slaves and of colored freemen, almost by the score, without legal trial, furnishes the proof; if the cruelties and tortures to which *citizens* have been exposed, and the burning to death of slaves by slow fires,[B] furnish the proof. All these

things, says he, furnish any thing but proof of *true* hospitality, or generosity, or gallantry, or purity, or chivalry.

[Footnote [A](#): Mr. Mercer, of Virginia, some years ago, asserted in Congress, that "CARGOES" of African slaves were smuggled into the southern states to a deplorable extent. Mr. Middleton, of South Carolina, declared it to be his belief, that THIRTEEN THOUSAND Africans were annually smuggled into the southern states. Mr. Wright, of Maryland, estimated the number at FIFTEEN THOUSAND. Miss Martineau was told in 1835, by a wealthy slaveholder of Louisiana, (who probably spoke of that state alone,) that the annual importation of native Africans was from THIRTEEN THOUSAND to FIFTEEN THOUSAND. The President of the United States, in his last Annual Message, speaking of the Navy, says, "The large force under Commodore Dallas [on the West India station] has been most actively and efficiently employed in protecting our commerce, IN PREVENTING THE IMPORTATION OF SLAVES, &c."]

[Footnote [B](#): Within the last few years, four slaves, and one citizen of color, have been put to death in this manner, in Alabama, Mississippi, Missouri, and Arkansas.]

Certain it is, that the time when southern slavery derived countenance at the North, from its supposed connection with "chivalry," is rapidly passing away. "Southern Chivalry" will soon be regarded as one of the by-gone fooleries of a less intelligent and less virtuous age. It will soon be cast out--giving place to the more reasonable idea, that the denial of wages to the laborer, the selling of men and women, the whipping of husbands and wives in each others presence, to compel them to unrequited toil, the deliberate attempt to extinguish mind, and, consequently, to destroy the soul--is among the highest offences against God and man--unspeakably mean and ungentlemanly.

The impression made on the minds of the people as to this matter, is one of the events of the last two or three years that does not contribute to lessen the hopes or expectations of abolitionists.

4. The ascendancy that Slavery has acquired, and exercises, in the administration of the government, and the apprehension now prevailing among the sober and intelligent, irrespective of party, that it will soon

overmaster the Constitution itself, may be ranked among the events of the last two or three years that affect the course of abolitionists. The abolitionists regard the Constitution with unabated affection. They hold in no common veneration the memory of those who made it. They would be the last to brand Franklin and King and Morris and Wilson and Sherman and Hamilton with the ineffaceable infamy of attempting to ingraft on the Constitution, and therefore to *perpetuate*, a system of oppression in absolute antagonism to its high and professed objects, one which their own practice condemned,--and this, too, when they had scarcely wiped away the dust and sweat of the Revolution from their brows! Whilst abolitionists feel and speak thus of our Constitutional fathers, they do not justify the dereliction of principle into which they were betrayed, when they imparted to the work of their hands *any* power to contribute to the continuance of such a system. They can only palliate it, by supposing, that they thought, slavery was already a waning institution, destined soon to pass away. In their time, (1787) slaves were comparatively of little value--there being then no great slave-labor staple (as cotton is now) to make them profitable to their holders.[\[A\]](#) Had the circumstances of the country remained as they then were, slave-labor, always and every where the most expensive--would have disappeared before the competition of free labour. They had seen, too, the principle of universal liberty, on which the Revolution was justified, recognised and embodied in most of the State Constitutions; they had seen slavery utterly forbidden in that of Vermont--instantaneously abolished in that of Massachusetts--and laws enacted in the New-England States and in Pennsylvania, for its gradual abolition. Well might they have anticipated, that Justice and Humanity, now starting forth with fresh vigor, would, in their march, sweep away the whole system; more especially, as freedom of speech and of the press--the legitimate abolisher not only of the acknowledged vice of slavery, but of every other that time should reveal in our institutions or practices--had been fully secured to the people. Again; power was conferred on Congress to put a stop to the African slave-trade, without which it was thought, at that time, to be impossible to maintain slavery, as a system, on this continent,--so great was the havoc it committed on human life. Authority was also granted to Congress to prevent the transfer of slaves, as articles of commerce, from one State to another; and the introduction of slavery into the territories. All this was crowned by the power of refusing admission into the Union, to any new state, whose form

of government was repugnant to the principles of liberty set forth in that of the United States. The faithful execution, by Congress, of these powers, it was reasonably enough supposed, would, at least, prevent the growth of slavery, if it did not entirely remove it. Congress did, at the set time, execute *one* of them--deemed, then, the most effectual of the whole; but, as it has turned out, the least so.

[Footnote [A](#): The cultivation of cotton was almost unknown in the United States before 1787. It was not till two years afterward that it began to be raised or exported. (See Report of the Secretary of the Treasury, Feb. 29, 1836.)--See Appendix, D.]

The effect of the interdiction of the African slave-trade was, not to diminish the trade itself, or greatly to mitigate its horrors; it only changed its name from African to American--transferred the seat of commerce from Africa to America--its profits from African princes to American farmers. Indeed, it is almost certain, if the African slave-trade had been left unrestrained, that slavery would not have covered so large a portion of our country as it does now. The cheap rate at which slaves might have been imported by the planters of the south, would have prevented the rearing of them for sale, by the farmers of Maryland, Virginia, and the other slave-selling states. If these states could be restrained from the *commerce* in slaves, slavery could not be supported by them for any length of time, or to any considerable extent. They could not maintain it, as an economical system, under the competition of free labor. It is owing to the *non-user* by Congress, or rather to their unfaithful application of their power to the other points, on which it was expected to act for the limitation or extermination of slavery, that the hopes of our fathers have not been realized; and that slavery has, at length, become so audacious, as openly to challenge the principles of 1776--to trample on the most precious rights secured to the citizen--to menace the integrity of the Union and the very existence of the government itself.

Slavery has advanced to its present position by steps that were, at first, gradual, and, for a long time, almost unnoticed; afterward, it made its way by intimidating or corrupting those who ought to have been forward to resist its pretensions. Up to the time of the "Missouri Compromise," by which the nation was wheedled out of its honor, slavery was looked on as an evil that was finally to yield to the expanding and ripening influences of

our Constitutional principles and regulations. Why it has not yielded, we may easily see, by even a slight glance at some of the incidents in our history.

It has already been said, that we have been brought into our present condition by the unfaithfulness of Congress, in not *exerting* the power vested in it, to stop the domestic slave-trade, and in the *abuse* of the power of admitting "*new states*" into the Union. Kentucky made application in 1792, with a slave-holding Constitution in her hand.--With what a mere *technicality* Congress suffered itself to be drugged into torpor:--*She was part of one of the "Original States"--and therefore entitled to all their privileges.*

One precedent established, it was easy to make another. Tennessee was admitted in 1796, without scruple, on the same ground.

The next triumph of slavery was in 1803, in the purchase of Louisiana, acknowledged afterward, even by Mr. Jefferson who made it, to be unauthorized by the Constitution--and in the establishment of slavery throughout its vast limits, actually and substantially under the auspices of that instrument which declares its only objects to be--"to form a more perfect union, establish JUSTICE, insure DOMESTIC TRANQUILITY, provide for the common defence, promote the general welfare, and secure the blessings of LIBERTY to ourselves and our posterity."[[A](#)]

[Footnote [A](#): It may be replied, The colored people were held as *property* by the laws of Louisiana previously to the cession, and that Congress had no right to divest the newly acquired citizens of their property. This statement is evasive. It does not include, nor touch the question, which is this:--Had Congress, or the treaty-making power, a right to recognise, and, by recognising, to establish, in a territory that had no claim of privilege, on the ground of being part of one of the "Original States," a condition of things that it could not establish *directly*, because there was no grant in the constitution of power, direct or incidental, to do so--and because, *to do so*, was in downright oppugnancy to the principles of the Constitution itself? The question may be easily answered by stating the following case:--Suppose a law had existed in Louisiana, previous to the cession, by which the children--male and female--of all such parents as were not owners of

real estate of the yearly value of \$500, had been--no matter how long--held in slavery by their more wealthy land-holding neighbors:--would Congress, under the Constitution, have a right (by recognising) to establish, for ever, such a relation as one white person, under such a law, might hold to another? Surely not. And yet no substantial difference between the two cases can be pointed out.]

In this case, the violation of the Constitution was suffered to pass with but little opposition, except from Massachusetts, because we were content to receive in exchange, multiplied commercial benefits and enlarged territorial limits.

The next stride that slavery made over the Constitution was in the admission of the State of Louisiana into the Union. *She* could claim no favor as part of an "Original State." At this point, it might have been supposed, the friends of Freedom and of the Constitution according to its original intent, would have made a stand. But no: with the exception of Massachusetts, they hesitated and were persuaded to acquiesce, because the country was just about entering into a war with England, and the crisis was unpropitious for discussing questions that would create divisions between different sections of the Union. We must wait till the country was at peace. Thus it was that Louisiana was admitted without a controversy.

Next followed, in 1817 and 1820, Mississippi and Alabama--admitted after the example of Kentucky and Tennessee, without any contest.

Meantime, Florida had given some uneasiness to the slaveholders of the neighboring states; and for their accommodation chiefly, a *negociation* was set on foot by the government to purchase it.

Missouri was next in order in 1821. *She* could plead no privilege, on the score of being part of one of the original states; the country too, was relieved from the pressure of her late conflict with England; it was prosperous and quiet; every thing seemed propitious to a calm and dispassionate consideration of the claims of slaveholders to add props to their system, by admitting indefinitely, new slave states to the Union. Up to this time, the "EVIL" of slavery had been almost universally acknowledged and deplored by the South, and its termination (apparently) sincerely hoped for.[\[A\]](#) By this management its friends succeeded in blinding the confiding

people of the North. They thought for the most part, that the slaveholders were acting in good faith. It is not intended by this remark, to make the impression, that the South had all along pressed the admission of new slave states, simply with a view to the increase of its own relative power. By no means: slavery had insinuated itself into favor because of its being mixed up with (other) supposed benefits--and because its ultimate influence on the government was neither suspected nor dreaded. But, on the Missouri question, there was a fair trial of strength between the friends of Slavery and the friends of the Constitution. The former triumphed, and by the prime agency of one whose raiment, the remainder of his days, ought to be sackcloth and ashes,--because of the disgrace he has continued on the name of his country, and the consequent injury that he has inflicted on the cause of Freedom throughout the world. Although all the different Administrations, from the first organization of the government, had, in the indirect manner already mentioned, favored slavery,--there had not been on any previous occasion, a direct struggle between its pretensions and the principles of liberty ingrafted on the Constitution. The friends of the latter were induced to believe, whenever they should be arrayed against each other, that *theirs* would be the triumph. Tremendous error! Mistake almost fatal! The battle was fought. Slavery emerged from it unhurt--her hands made gory--her bloody plume still floating in the air--exultingly brandishing her dripping sword over her prostrate and vanquished enemy. She had won all for which she fought. Her victory was complete--THE SANCTION OF THE NATION WAS GIVEN TO SLAVERY![[B](#)]

[Footnote [A](#): Mr. Clay, in conducting the Missouri compromise, found it necessary to argue, that the admission of Missouri, as a slaveholding state, would aid in bringing about the termination of slavery. His argument is thus stated by Mr. Sergeant, who replied to him:--"In this long view of remote and distant consequences, the gentleman from Kentucky (Mr. Clay) thinks he sees how slavery, when thus spread, is at last to find its end. It is to be brought about by the combined operation of the laws which regulate the price of labor, and the laws which govern population. When the country shall be filled with inhabitants, and the price of labor shall have reached a minimum, (a comparative minimum I suppose is meant,) free labor will be found cheaper than slave labor. Slaves will then be without employment, and, of course, without the means of comfortable subsistence, which will

reduce their numbers, and finally extirpate them. This is the argument as I understand it," says Mr. Sergeant; and, certainly, one more chimerical or more inhuman could not have been urged.]

[Footnote [B](#): See Appendix, E.]

Immediately after this achievement, the slaveholding interest was still more strongly fortified by the acquisition of Florida, and the establishment of slavery there, as it had already been in the territory of Louisiana. The Missouri triumph, however, seems to have extinguished every thing like a systematic or spirited opposition, on the part of the free states, to the pretensions of the slaveholding South.

Arkansas was admitted but the other day, with nothing that deserves to be called an effort to prevent it--although her Constitution attempts to *perpetuate* slavery, by forbidding the master to emancipate his bondmen without the consent of the Legislature, and the Legislature without the consent of the master. Emboldened, but not satisfied, with their success in every political contest with the people of the free states, the slaveholders are beginning now to throw off their disguise--to brand their former notions about the "evil, political and moral" of slavery, as "folly and delusion,"[\[A\]](#)--and as if to "make assurance double sure," and defend themselves forever, by territorial power, against the progress of Free principles and the renovation of the Constitution, they now demand openly--scorning to conceal that their object is, to *advance and establish their political power in the country*,--that Texas, a foreign state, five or six times as large as all New England, with a Constitution dyed as deep in slavery, as that of Arkansas, shall be added to the Union.

[Footnote [A](#): Mr. Calhoun is reported, in the National Intelligencer, as having used these words in a speech delivered in the Senate, the 10th day of January:--

"Many in the South once believed that it [slavery] was a moral and political evil; that folly and delusion are gone. We see it now in its true light, and regard it as the most safe and stable basis for free institutions in the world."

Mr. Hammond, formerly a Representative in Congress from South Carolina, delivered a speech (Feb. 1, 1836) on the question of receiving petitions for

the abolition of slavery in the District of Columbia. In answering those who objected to a slaveholding country, that it was "assimilated to an aristocracy," he says--"In this they are right. I accept the terms. *It is a government of the best.* Combining all the advantages, and possessing but few of the disadvantages, of the aristocracy of the old world--without fostering, to an unwarrantable extent, the pride, the exclusiveness, the selfishness, the thirst for sway, the contempt for the rights of others, which distinguish the nobility of Europe--it gives us their education, their polish, their munificence, their high honor, their undaunted spirit. Slavery does indeed create an aristocracy--an aristocracy of talents, of virtue, of generosity, of courage. In a slave country, every freeman is an aristocrat. Be he rich or poor, if he does not possess a single slave, he has been born to all the natural advantages of the society in which he is placed; and all its honors lie open before him, inviting his genius and industry. Sir, I do firmly believe, that domestic slavery, regulated as ours is, produces the highest toned, the purest, best organization of society, that has ever existed on the face of the earth."

That this *retraxit* of former *follies and delusions* is not confined to the mere politician, we have the following proofs:--

The CHARLESTON (S.C.) UNION PRESBYTERY--"Resolved. That in the opinion of this Presbytery, the holding of slaves, so far from being a sin in the sight of God, is nowhere condemned in his holy word; that it is in accordance with the example, or consistent with the precepts, of patriarchs, prophets, and apostles; and that it is compatible with the most fraternal regard to the good of the servants whom God has committed to our charge."--Within the last few months, as we learn from a late No. of the Charleston Courier, the late Synod of the Presbyterian Church, in Augusta, (Ga.) passed resolutions declaring "That slavery is a CIVIL INSTITUTION, with which the General Assembly [the highest ecclesiastical tribunal] has NOTHING TO DO."

Again:--The CHARLESTON BAPTIST ASSOCIATION, in a memorial to the Legislature of South Carolina, say--"The undersigned would further represent, that the said Association does not consider that the Holy Scriptures have made the FACT of slavery a question of morals at all." And

further,--"The right of masters to dispose of the time of their slaves, has been distinctly recognised by the Creator of all things."

Again:--The EDGEFIELD (S.C.) ASSOCIATION--"Resolved, That the practical question of slavery, in a country where the system has obtained as a part of its stated policy, is settled in the Scriptures by Jesus Christ and his apostles." "Resolved, That these uniformly recognised the relation of master and slave, and enjoined on both their respective duties, under a system of servitude more degrading and absolute than that which obtains in our country."

Again we find, in a late No. of the Charleston Courier, the following:--

"THE SOUTHERN CHURCH.--The Georgia Conference of the Methodist Episcopal Church, at a recent meeting in Athens, passed resolutions, declaring that slavery, as it exists in the United States, is not a moral evil, and is a civil and domestic institution, with which Christian ministers have nothing to do, further than to meliorate the condition of the slave, by endeavoring to impart to him and his master the benign influence of the religion of Christ, and aiding both on their way to heaven."]

The abolitionists feel a deep regard for the integrity and union of the government, *on the principles of the Constitution*. Therefore it is, that they look with earnest concern on the attempt now making by the South, to do, what, in the view of multitudes of our citizens, would amount to good cause for the separation of the free from the slave states. Their concern is not mingled with any feelings of despair. The alarm they sounded on the "annexation" question has penetrated the free states; it will, in all probability, be favorably responded to by every one of them; thus giving encouragement to our faith, that the admission of Texas will be successfully resisted,--that this additional stain will not be impressed on our national escutcheon, nor this additional peril brought upon the South.[[A](#)]

[Footnote [A](#): See Appendix, F.]

This, the present condition of the country, induced by a long train of *usurpations* on the part of the South, and by unworthy concessions to it by the North, may justly be regarded as one of the events of the last few years affecting in some way, the measures of the abolitionists. It has certainly

done so. And whilst it is not to be denied, that many abolitionists feel painful apprehensions for the result, it has only roused them up to make more strenuous efforts for the preservation of the country.

It may be replied--if the abolitionists are such firm friends of the Union, why do they persist in what must end in its rupture and dissolution? The abolitionists, let it be repeated *are* friends of *the* Union that was intended by the Constitution; but not of a Union from which is eviscerated, to be trodden under foot, the right to SPEAK,--to PRINT--to PETITION,--the rights of CONSCIENCE; not of a Union whose ligaments are whips, where the interest of the oppressor is the *great* interest, the right to oppress the *paramount* right. It is against the distortion of the glorious Union our fathers left us into one bound with despotic bands that the abolitionists are contending. In the political aspect of the question, they have nothing to ask, except what the Constitution authorizes--no change to desire, but that the Constitution may be restored to its pristine republican purity.

But they have well considered the "dissolution of the Union." There is no just ground for apprehending that such a measure will ever be resorted to by the *South*. It is by no means intended by this, to affirm, that the South, like a spoiled child, for the first time denied some favourite object, may not fall into sudden frenzy and do herself some great harm. But knowing as I do, the intelligence and forecast of the leading men of the South--and believing that they will, if ever such a crisis should come, be judiciously influenced by the *existing* state of the case, and by the *consequences* that would inevitably flow from an act of dissolution--they would not, I am sure, deem it desirable or politic. They would be brought, in their calmer moments, to coincide with one who has facetiously, but not the less truly remarked, that it would be as indiscreet in the slave South to separate from the free North, as for the poor, to separate from the parish that supported them. In support of this opinion, I would say:

First--A dissolution of the Union by the South would, in no manner, secure to her the object she has in view.--The *leaders* at the South, both in the church and in the state, must, by this time, be too well informed as to the nature of the anti-slavery movement, and the character of those engaged in it, to entertain fears that, violence of any kind will be resorted to, directly or indirectly.[\[A\]](#) The whole complaint of the South is neither more nor less

than this--THE NORTH TALKS ABOUT SLAVERY. Now, of all the means or appliances that could be devised, to give greater life and publicity to the discussion of slavery, none could be half so effectual as the dissolution of the Union *because of the discussion*. It would astonish the civilized world--they would inquire into the cause of such a remarkable event in its history;--the result would be not only enlarged *discussion* of the whole subject, but it would bring such a measure of contempt on the guilty movers of the deed, that even with all the advantages of "their education, their polish, their munificence, their high honor, their undaunted spirit," so eloquently set forth by the Hon. Mr. Hammond, they would find it hard to withstand its influence. It is difficult for men in a *good* cause, to maintain their steadfastness in opposition to an extensively corrupt public sentiment; in a *bad* one, against public sentiment purified and enlightened, next to impossible, if not quite so.

[Footnote [A](#): "It is not," says Mr. Calhoun, "that we expect the abolitionists will resort to arms--will commence a crusade to deliver our slaves by force."--"Let me tell our friends of the South, who differ from us, that the war which the abolitionists wage against us is of a very different character, and *far more effective*. It is waged, not against our lives, but our character." More correctly, Mr. C. might have said against a *system*, with which the slaveholders have chosen to involve their characters, and which they have determined to defend, at the hazard of losing them.]

Another result would follow the dissolution:--Now, the abolitionists find it difficult, by reason of the odium which the principal slaveholders and their friends have succeeded in attaching to their *name*, to introduce a knowledge of their principles and measures into the great mass of southern mind. There are multitudes at the South who would co-operate with us, if they could be informed of our aim.[\[A\]](#) Now, we cannot reach them--then, it would be otherwise. The united power of the large slaveholders would not be able longer to keep them in ignorance. If the Union were dissolved, they *would* know the cause, and discuss it, and condemn it.

[Footnote [A](#): There is abundant evidence of this. Our limits confine us to the following, from the first No. of the Southern Literary Journal, (Charleston, S.C.):--"There are *many good men even among us*, who have begun to grow *timid*. They think, that what the virtuous and high-minded men of the North

look upon as a crime and a plague-spot, cannot be perfectly innocent or quite harmless in a slaveholding community."

This, also, from the North Carolina Watchman:--

"It (the abolition party) is the growing party at the North. We are inclined to believe that there is even more of it at the South than prudence will permit to be openly avowed."

"It is well known, Mr. Speaker, that there is a LARGE, RESPECTABLE and INTELLIGENT PARTY in Kentucky, who will exert every nerve and spare no efforts to dislodge the subsisting rights to our Slave population, or alter in some manner, and to some extent, at least, the tenure by which that species of property is held."--*Speech of the Hon. James T. Morehead in the Kentucky Legislature, last winter.*]

A second reason why the South will not dissolve the Union is, that she would be exposed to the visitation of *real* incendiaries, exciting her slaves to revolt. Now, it would cover any one with infamy, who would stir them up to vindicate their rights by the massacre of their masters. Dissolve the Union, and the candidates for "GLORY" would find in the plains of Carolina and Louisiana as inviting a theatre for their enterprise, as their prototypes, the Houstons, the Van Rennselaers, and the Sutherlands did, in the prairies of Texas or the forests of Canada.

A third reason why the South will not dissolve is, that the slaves would leave their masters and take refuge in the free states. The South would not be able to establish a *cordon* along her wide frontier sufficiently strong to prevent it. Then, the slaves could not be reclaimed, as they now are, under the Constitution. Some may say, the free states would not permit them to come in and dwell among them.--Believe it not. The fact of separation on the ground supposed, would abolitionize the whole North. Beside this, in an economical point of view, the *demand for labor* in the Western States would make their presence welcome. At all events, a passage through the Northern States to Canada would not be denied them.

A fourth reason why the South will not dissolve is, that a large number of her most steady and effective population would emigrate to the free states. In the slave-selling states especially, there has always been a class who have

consented to remain there with their families, only in the hope that slavery would, in some way or other, be terminated. I do not say they are abolitionists, for many of them are slaveholders. It may be, too, that such would expect compensation for their slaves, should they be emancipated, and also that they should be sent out of the country. The particular mode of emancipation, however crude it may be, that has occupied their minds, has nothing to do with the point before us. *They look for emancipation--in this hope they have remained, and now remain, where they are.* Take away this hope, by making slavery the *distinctive bond of union* of a new government, and you drive them to the North. These persons are not among the rich, the voluptuous, the effeminate; nor are they the despised, the indigent, the thriftless--they are men of moderate property, of intelligence, of conscience--in every way the "bone and sinew" of the South.

A fifth reason why the South will not dissolve, is her *weakness*. It is a remarkable fact, that in modern times, and in the Christian world, all slaveholding countries have been united with countries that are free. Thus, the West Indian and Mexican and South American slaveholding colonies were united to England, France, Spain, Portugal, and other states of Europe. If England (before her Emancipation Act) and the others had at any time withdrawn the protection of their *power* from their colonies, slavery would have been extinguished almost simultaneously with the knowledge of the fact. In the West Indies there could have been no doubt of this, from the disparity in numbers between the whites and the slaves, from the multiplied attempts made from time to time by the latter to vindicate their rights by insurrection, and from the fact, that all their insurrections had to be suppressed by the *force* of the mother country. As soon as Mexico and the South American colonies dissolved their connexion with Spain, slavery was abolished in every one of them. This may, I know, be attributed to the necessity imposed on these states, by the wars in which they engaged to establish their independence. However this may be--the *fact* still remains. The free states of this Union are to the slave, so far as the maintenance of slavery is concerned, substantially, in the relation of the European states to their slaveholding colonies. Slavery, in all probability, could not be maintained by the South disjoined from the North, a single year. So far from there existing any reason for making the South an exception, in this particular, to other slave countries, there are circumstances in her condition

that seem to make her dependence more complete. Two of them are, the superior intelligence of her slaves on the subject of human rights, and the geographical connexion of the slave region in the United States. In the West Indies, in Mexico and South America the great body of the slaves were far below the slaves of this country in their intellectual and moral condition--and, in the former, their power to act in concert was weakened by the insular fragments into which they were divided.

Again, the depopulation of the South of large numbers of its white inhabitants, from the cause mentioned under the fourth head, would, it is apprehended, bring the two classes to something like a numerical equality. Now, consider the present state of the moral sentiment of the Christianized and commercial world in relation to slavery; add to it the impulse that this sentiment, acknowledged by the South already to be wholly opposed to her, would naturally acquire by an act of separation on her part, with a single view to the perpetuation of slavery; bring this sentiment in all its accumulation and intensity to act upon a nation where one half are enslavers, the other the enslaved--and what must be the effect? From the nature of mind; from the laws of moral influence, (which are as sure in their operation, if not so well understood, as the laws of physical influence,) the party "whose conscience with injustice is oppressed," must become dispirited, weakened in courage, and in the end unnerved and contemptible. On the other hand, the sympathy that would be felt for the oppressed--the comfort they would receive--the encouragement that would be given them to assert their rights, would make it an impossibility, to keep them in slavish peace and submission.

This state of things would be greatly aggravated by the peculiarly morbid sensitiveness of the South to every thing that is supposed to touch her *character*. Her highest distinction would then become her most troublesome one. How, for instance, could her chivalrous sons bear to be taunted, wherever they went, on business or for pleasure, out of their own limits, with the cry "the knights of the lash!" "Go home and pay your laborers!" "Cease from the scourging of husbands and wives in each others presence--from attending the shambles, to sell or buy as slaves those whom God has made of the same blood with yourselves--your brethren--your sisters! Cease, high minded sons of the 'ANCIENT DOMINION,' from estimating your revenue by the number of children you rear, to sell in the flesh

market!" "Go home and pay your laborers!" "Go home and pay your laborers!" This would be a trial to which "southern chivalry" could not patiently submit. Their "high honor," their "undaunted spirit" would impel them to the field--only to prove that the "last resort" requires something more substantial than mere "honor" and "spirit" to maintain it. Suppose there should be a disagreement--as in all likelihood there soon would, leading to war between the North and the South? The North would scarcely have occasion to march a squadron to the field. She would have an army that could be raised up by the million, at the fireside of her enemy. It has been said, that during the late war with England, it was proposed to her cabinet, by some enterprising officers, to land five thousand men on the coast of South Carolina and proclaim liberty to the slaves. The success of the scheme was well thought of. But then the example! England herself held nearly a million of slaves at no greater distance from the scene of action than the West Indies. Now, a restraint of this kind on such a scheme does not exist.

It seems plain beyond the power of argument to make it plainer, that a slaveholding nation--one under the circumstances in which the South separated from the North would be placed--must be at the mercy of every free people having neither power to vindicate a right nor avenge a wrong. [A]

[Footnote A: Governor Hayne, of South Carolina, spoke in high terms, a few years ago, of the ability that the South would possess, in a military point of view, because her great wealth would enable her, at all times, to command the services of mercenary troops. Without stopping to dispute with him, as to her comparative wealth, I would remark, that he seemed entirely to have overlooked this truth--that whenever a government is under the necessity of calling in foreign troops, to keep in subjection one half of the people, the power of the government has already passed into the hands of the *Protectors*. They can and will, of course, act with whichever party will best subserve their purpose.]

A sixth reason why the South will not dissolve the Union, is found in the difficulty of bringing about an *actual* separation. Preparatory to such a movement, it would seem indispensable, that *Union* among the seceding states themselves should be secured. A General Convention would be

necessary to adjust its terms. This would, of course, be preceded by *particular* conventions in the several states. To this procedure the same objection applies, that has been made, for the last two or three years, to holding an anti-abolition convention in the South:--It would give to the *question* such notoriety, that the object of holding the convention could not be concealed from the slaves. The more sagacious in the South have been opposed to a convention; nor have they been influenced solely by the consideration just mentioned--which, in my view, is but of little moment--but by the apprehension, that the diversity of sentiment which exists among the slave states, themselves, in relation to the *system*, would be disclosed to the country; and that the slaveholding interest would be found deficient in that harmony which, from its perfectness heretofore, has made the slaveholders so successful in their action on the North.

The slaveholding region may be divided into the *farming* and the *planting*--or the slave-*selling* and the slave-*buying* districts. Maryland, Virginia, Kentucky, Missouri and East Tennessee constitute the first. West Tennessee is somewhat equivocal. All the states south of Tennessee belong to the slave-*buying* district. The first, with but few exceptions, have from the earliest times, felt slavery a reproach to their good name--an encumbrance on their advancement--at some period, to be cast off. This sentiment, had it been at all encouraged by the action of the General Government, in accordance with the views of the convention that formed the Constitution, would, in all probability, by this time, have brought slavery in Maryland and Virginia to an end. Notwithstanding the easy admission of slave states into the Union, and the *yielding* of the free states whenever they were brought in collision with the South, have had a strong tendency to persuade the *farming* slave states to continue their system, yet the sentiment in favor of emancipation in some form, still exists among them. Proof, encouraging proof of this, is found in the present attitude of Kentucky. Her legislature has just passed a law, proposing to the people, to hold a convention to alter the constitution. In the discussion of the bill, slavery as connected with some form of emancipation, seems to have constituted the most important element. The public journals too, that are *opposed* to touching the subject at all, declare that the main object for recommending a convention was, to act on slavery in some way.

Now, it would be in vain for the *planting* South to expect, that Kentucky or any other of the *farming* slave states would unite with her, in making slavery the *perpetual bond* of a new political organization. If they feel the inconveniences of slavery *in their present condition*, they could not be expected to enter on another, where these inconveniences would be inconceivably multiplied and aggravated, and, by the very terms of their new contract, *perpetuated*.

This letter is already so protracted, that I cannot stop here to develop more at large this part of the subject. To one acquainted with the state of public sentiment, in what I have called, the *farming* district, it needs no further development. There is not one of these states embraced in it, that would not, when brought to the test, prefer the privileges of the Union to the privilege of perpetual slaveholding. And if there should turn out to be a single *desertion* in this matter, the whole project of secession must come to nought.

But laying aside all the obstacles to union among the seceding states, how is it possible to take the first step to *actual* separation! The separation, at the worst, can only be *political*. There will be no chasm--no rent made in the earth between the two sections. The natural and ideal boundaries will remain unaltered. Mason and Dixon's line will not become a wall of adamant that can neither be undermined nor surmounted. The Ohio river will not be converted into flame, or into another Styx, denying a passage to every living thing.

Besides this stability of natural things, the multiform interests of the two sections would, in the main, continue as they are. The complicate ties of commerce could not be suddenly unloosed. The breadstuffs, the beef, the pork, the turkies, the chickens, the woollen and cotton fabrics, the hats, the shoes, the socks, the "*horn flints and bark nutmegs*,"[\[A\]](#) the machinery, the sugar-kettles, the cotton-gins, the axes, the hoes, the drawing-chains of the North, would be as much needed by the South, the day after the separation as the day before. The newspapers of the North--its Magazines, its Quarterlies, its Monthlies, would be more sought after by the readers of the South than they now are; and the Southern journals would become doubly interesting to us. There would be the same lust for our northern summers and your southern winters, with all their health-giving influences; and last,

though not least, the same desire of marrying and of being given in marriage that now exists between the North and South. Really it is difficult to say *where* this long threatened separation is to *begin*; and if the place of beginning could be found, it would seem like a poor exchange for the South, to give up all these pleasant and profitable relations and connections for the privilege of enslaving an equal number of their fellow-creatures.

[Footnote [A](#): Senator Preston's Railroad Speech, delivered at Colombia, S.C., in 1836.]

Thus much for the menace, that the "UNION WILL BE DISSOLVED" unless the discussion of the slavery question be stopped.

But you may reply, "Do you think the South is not in earnest in her threat of dissolving the Union?" I rejoin, by no means;--yet she pursues a perfectly reasonable course (leaving out of view the justice or morality of it)--just such a course as I should expect she would pursue, emboldened as she must be by her multiplied triumphs over the North by the use of the same weapon. "We'll dissolve the Union!" was the cry, "unless Missouri be admitted!!" The North were frightened, and Missouri was admitted with SLAVERY engraved on her forehead. "We'll dissolve the Union!" unless the Indians be driven out of the South!! The North forgot her treaties, parted with humanity, and it is done--the defenceless Indians are forced to "consent" to be driven out, or they are left, undefended, to the mercies of southern land-jobbers and gold-hunters. "We'll dissolve the Union! If the Tariff" [established at her own suggestion] "be not repealed or modified so that our slave-labor may compete with your free-labor." The Tariff is accordingly modified to suit the South. "We'll dissolve the Union!" unless the freedom of speech and the press be put down in the North!--With the promptness of commission-merchants, the alternative is adopted. Public assemblies met for deliberation are assailed and broken up at the North; her citizens are stoned and beaten and dragged through the streets of her cities; her presses are attacked by mobs, instigated and led on by men of influence and character; whilst those concerned in conducting them are compelled to fly from their homes, pursued as if they were noxious wild beasts; or, if they remain to defend, they are sacrificed to appease the southern divinity. "We'll dissolve the Union" if slavery be abolished in the District of Columbia! The North, frightened from her propriety, declares that slavery

ought not to be abolished there NOW.--"We'll dissolve the Union!" if you read petitions from your constituents for its abolition, or for stopping the slave-trade at the Capital, or between the states. FIFTY NORTHERN REPRESENTATIVES respond to the cry, "down, then, with the RIGHT OF PETITION!!" All these assaults have succeeded because the North has been frightened by the war-cry, "WE'LL DISSOLVE THE UNION!"

After achieving so much by a process so simple, why should not the South persist in it when striving for further conquests? No other course ought to be expected from her, till this has failed. And it is not at all improbable, that she will persist, till she almost persuades herself that she is serious in her menace to dissolve the Union. She may in her eagerness, even approach so near the verge of dissolution, that the earth may give way under her feet and she be dashed in ruins in the gulf below.

Nothing will more surely arrest her fury, than the firm array of the North, setting up anew the almost forgotten principles of our fathers, and saying to the "dark spirit of slavery,"--"thus far shalt thou go, and no farther." This is the best--the only--means of saving the South from the fruits of her own folly--folly that has been so long, and so strangely encouraged by the North, that it has grown into intolerable arrogance--down right presumption.

There are many other "events" of the last two or three years which have, doubtless, had their influence on the course of the abolitionists--and which might properly be dwelt upon at considerable length, were it not that this communication is already greatly protracted beyond its intended limits. I shall, therefore, in mentioning the remaining topics, do little more than enumerate them.

The Legislature of Vermont has taken a decided stand in favor of anti-slavery principles and action. In the Autumn of 1836, the following resolutions were passed by an almost unanimous vote in both houses:--

"Resolved, By the General Assembly of the State of Vermont, That neither Congress nor the State Governments have any constitutional right to abridge the free expressions of opinions, or the transmission of them through the medium of the public mails."

"Resolved, That Congress do possess the power to abolish slavery in the District of Columbia."

"Resolved, That His Excellency, the Governor, be requested to transmit a copy of the foregoing resolutions to the Executive of each of the States, and to each of our Senators and Representatives in Congress."

At the session held in November last, the following joint resolutions, preceded by a decisive memorial against the admission of Texas, were passed by both branches--with the exception of the *fifth* which was passed only by the House of Representatives:--

1. Resolved, By the Senate and House of Representatives, That our Senators in Congress be instructed, and our Representatives requested, to use their influence in that body to prevent the annexation of Texas to the Union.

2. Resolved, That, representing, as we do, the people of Vermont, we do hereby, in their name, SOLEMNLY PROTEST against such annexation in any form.

3. Resolved, That, as the Representatives of the people of Vermont, we do solemnly protest against the admission, into this Union, of any state whose constitution tolerates domestic slavery.

4. Resolved, That Congress have full power, by the Constitution, to abolish slavery and the slave-trade in the District of Columbia and in the territories of the United States.

[5. Resolved, That Congress has the constitutional power to prohibit the slave-trade between the several states of this Union, and to make such laws as shall effectually prohibit such trade.]

6. Resolved, That our Senators in Congress be instructed, and our Representatives requested, to present the foregoing Report and Resolutions to their respective Houses in Congress, and use their influence to carry the same speedily into effect.

7. Resolved, That the Governor of this State be requested to transmit a copy of the foregoing Report and Resolutions to the President of the United States, and to each of our Senators and Representatives in Congress.

The influence of anti-slavery principles in Massachusetts has become decisive, if we are to judge from the change of sentiment in the legislative body. The governor of that commonwealth saw fit to introduce into his inaugural speech, delivered in January, 1836, a severe censure of the abolitionists, and to intimate that they were guilty of an offence punishable at common law. This part of the speech was referred to a joint committee of five, of which a member of the senate was chairman. To the same committee were also referred communications which had been received by the governor from several of the legislatures of the slaveholding states, requesting the Legislature of Massachusetts to enact laws, making it PENAL for citizens of that state to form societies for the abolition of slavery, or to speak or publish sentiments such as had been uttered in anti-slavery meetings and published in anti-slavery tracts and papers. The managers of the Massachusetts Anti-Slavery Society, in a note addressed to the chairman of the committee, requested permission, as a party whose rights were drawn in question, to appear before it. This was granted. The gentlemen selected by them to appear on their behalf were of unimpeachable character, and distinguished for professional merit and general literary and scientific intelligence. Such was *then* the unpopularity of abolitionism, that notwithstanding the personal influence of these gentlemen, they were ill--not to say rudely--treated, especially by the chairman of the committee; so much so, that respect for themselves, and the cause they were deputed to defend, persuaded them to desist before they had completed their remarks. A Report, including Resolutions unfavorable to the abolitionists was made, of which the following is a copy:--

The Joint Special Committee, to whom was referred so much of the governor's message as related to the abolition of slavery, together with certain documents upon the same subject, communicated to the Executive by the several Legislatures of Virginia, North Carolina, South Carolina, Georgia, and Alabama, transmitted by his Excellency to the Legislature, and hereunto annexed, have considered the same, and ask leave, respectfully, to submit the following:--

Resolved, That this Legislature distinctly disavow any right whatever in itself, or in the citizens of this commonwealth, to interfere in the institution of domestic slavery in the southern states: it having existed therein before

the establishment of the Constitution; it having been recognised by that instrument; and it being strictly within their own keeping.

Resolved, That this Legislature, regarding the agitation of the question of domestic slavery as having already interrupted the friendly relations which ought to exist between the several states of this Union, and as tending permanently to injure, if not altogether to subvert, the principles of the Union itself; and believing that the good effected by those who excite its discussion in the non-slaveholding states is, under the circumstances of the case, altogether visionary, while the immediate and future evil is great and certain; does hereby express its entire disapprobation of the doctrine upon this subject avowed, and the general measures pursued by such as agitate the question; and does earnestly recommend to them carefully to abstain from all such discussion, and all such measures, as may tend to disturb and irritate the public mind.

The report was laid on the table, whence it was not taken up during the session--its friends being afraid of a lean majority on its passage; for the *alarm* had already been taken by many of the members who otherwise would have favored it. From this time till the election in the succeeding autumn, the subject was much agitated in Massachusetts. The abolitionists again petitioned the Legislature at its session begun in January, 1837; especially, that it should remonstrate against the resolution of Mr. Hawes, adopted by the House of Representatives in Congress, by which all memorials, &c, in relation to slavery were laid, and to be laid, on the table, without further action on them. The abolitionists were again heard, in behalf of their petitions, before the proper committee.^[A] The result was, the passage of the following resolutions with only 16 dissenting voices to 378, in the House of Representatives, and in the Senate with not more than one or two dissentients on any one of them:--

[Footnote ^A: The gentleman who had been chairman of the committee the preceding year, was supposed, in consequence of the change in public opinion in relation to abolitionists, to have injured his political standing too much, even to be nominated as a candidate for re-election.]

"Whereas, The House of Representatives of the United States, in the month of January, in the year of our Lord one thousand eight hundred

and thirty-seven, did adopt a resolution, whereby it was ordered that all petitions, memorials, resolutions, propositions, or papers, relating in any way, or to any extent whatever, to the subject of slavery, or the abolition of slavery, without being either printed or referred, should be laid upon the table, and that no further action whatever should be had thereon; and whereas such a disposition of petitions, then or thereafter to be received, is a virtual denial of the right itself; and whereas, by the resolution aforesaid, which is adopted as a standing rule in the present House of Representatives, the petitions of a large number of the people of this commonwealth, praying for the removal of a great social, moral, and political evil, have been slighted and contemned: therefore,--

Resolved, That the resolution above named is an assumption of power and authority at variance with the spirit and intent of the Constitution of the United States, and injurious to the cause of freedom and free institutions; that it does violence to the inherent, absolute, and inalienable rights of man; and that it tends, essentially, to impair those fundamental principles of natural justice and natural law which are antecedent to any written constitutions of government, independent of them all, and essential to the security of freedom in a state.

Resolved, That our Senators and Representatives in Congress, in maintaining and advocating the right of petition, have entitled themselves to the cordial approbation of the people of this commonwealth.

Resolved, That Congress, having exclusive legislation in the District of Columbia, possess the right to abolish slavery in said district, and that its exercise should only be restrained by a regard to the public good."

That you may yourself, judge what influence the abolition question exercised in the elections in Massachusetts *last* autumn, I send you three numbers of the Liberator containing copies of letters addressed to many of the candidates, and their respective answers.

The Legislature have passed, *unanimously*, at its present session, resolutions (preceded by a report of great ability) protesting "*earnestly and*

solemnly against the annexation of Texas to this Union;" and declaring that, "no act done, or compact made, for such purpose, by the government of the United States, will be binding on the states or the people."

Two years ago, Governor Marcy, of this state, showed himself willing, at the dictation of the South, to aid in passing laws for restraining and punishing the abolitionists, whenever the extremity of the case might call for it. Two weeks ago, at the request of the Young Men's Anti-Slavery Society of Albany, the Assembly-chamber, by a vote of the House (only two dissentient) was granted to Alvan Stewart, Esq., a distinguished lawyer, to lecture on the subject of abolition.

Kentucky is assuming an attitude of great interest to the friends of Liberty and the Constitution. The blessings of "them that are ready to perish" throughout the land, the applause of the good throughout the world will be hers, if she should show moral energy enough to break every yoke that she has hitherto imposed on the "poor," and by which her own prosperity and true power have been hindered.

In view of the late action in the Senate and House of Representatives in Congress--adverse as they may seem, to those who think more highly of the branches of the Legislature than of the SOURCE of their power--the abolitionists see nothing that is cause for discouragement. They find the PEOPLE sound; they know that they still cherish, as their fathers did, the right of petition--the freedom of the press--the freedom of speech--the rights of conscience; that they love the liberty of the North more than they love the slavery of the South. What care they for *Resolutions* in the House, or Resolutions in the Senate, when the House and the Senate are but their ministers, their servants, and they know that they can discharge them at their pleasure? It may be, that Congress has yet to learn, that the people have but slight regard for their restraining resolutions. They ought to have known this from the history of such resolutions for the last two years. THIRTY-SEVEN THOUSAND petitioners for the abolition of slavery in the District of Columbia had their petitions laid on the table by the resolution of the House of Representatives in May, 1836. At the succeeding session, they had increased to ONE HUNDRED AND TEN THOUSAND.--The resolution of Jan. 18, 1837, laid all *their* petitions in the same way on the table. At the *called*, and at the present session, these 110,000 had

multiplied to FIVE HUNDRED THOUSAND[A]. Soon, Senators and Representatives will be sent from the free states who will need no petitions--they will know the prayer of their constituents *before they leave their homes*.

[Footnote [A](#): See Appendix, G.]

In concluding this, my answer to your 13th interrogatory, I will say that I know of no event, that has transpired, either in or out of Congress, for the last two or three years, that has had any other influence on the efforts of abolitionists than to increase and stimulate them. Indeed, every thing that has taken place within that period, ought to excite to their utmost efforts all who are not despairing dastards. The Demon of oppression in this land is tenfold more fierce and rampant and relentless than he was supposed to be before roused from the quiet of his lair. To every thing that is precious the abolitionists have seen him lay claim. The religion of the Bible must be adulterated--the claims of Humanity must be smothered--the demands of justice must be nullified--a part of our Race must be shut out from the common sympathy of a common nature. Nor is this all: they see their *own* rights and those of the people; the right to SPEAK--to WRITE--to PRINT--to PUBLISH--to ASSEMBLE TOGETHER--to PETITION THEIR OWN SERVANTS--all brought in peril. They feel that the final conflict between Popular liberty and Aristocratic slavery has come; that one or the other must fall; and they have made up their minds, with the blessing of God on their efforts, that their adversary shall die.

"14. *Have you any permanent fund, and how much?*"

ANSWER.--We have none. The contributions are anticipated. We are always in debt, and always getting out of debt.

I have now, Sir, completed my answers to the questions proposed in your letter of the 16th ult. It gives me pleasure to have had such an auspicious opportunity of doing so. I cannot but hope for good to both the parties concerned, where candor and civility have characterized their representatives.

Part of the answer to your 13th question may seem to wander from the strict terms of the question proposed. Let it be set down to a desire, on my part, to

give you all the information I can, at all german to the inquiry. The "proffer," made in my note to Mr. Calhoun, was not "unguarded;"--nor was it *singular*. The information I have furnished has been always accessible to our adversaries--even though the application for it might not have been clothed in the polite and gentlemanly terms which have so strongly recommended yours to the most respectful consideration of

Your very obedient servant,

JAMES G. BIRNEY.

* * * * *

[In the Explanatory Remarks placed at the beginning of this Correspondence, reasons were given, that were deemed sufficient, for not publishing more of the letters that passed between Mr. Elmore and myself than the two above. Since they were in type, I have received from Mr. Elmore a communication, in reply to one from me, informing him that I proposed limiting the publication to the two letters just mentioned. It is dated May 19. The following extract shows that he entertains a different opinion from mine, and thinks that justice to him requires that *another* of his letters should be included in the Correspondence:--

"The order you propose in the publication is proper enough; the omission of business and immaterial letters being perfectly proper, as they can interest nobody. I had supposed my last letter would have formed an exception to the rule, which excluded immaterial papers. It explained, more fully than my first, my reasons for this correspondence, defined the limits to *which I had prescribed myself*, and was a proper accompaniment to *a publication* of what *I* had not written for publication. Allow me, Sir, to say, that it will be but bare justice to me that it should be printed with the other papers. I only suggest this for your own consideration, for--adhering to my former opinions and decision--I ask nothing and complain of nothing."

It is still thought that the publication of the letter alluded to is unnecessary to the purpose of enlightening the public, as to the state, prospects, &c, of the anti-slavery cause. It contains no denial of the facts, nor impeachment of the statements, nor answer to the arguments, presented in my

communication. But as Mr. Elmore is personally interested in this matter, and as it is intended to maintain the consistent liberality which has characterized the Executive Committee in all their intercourse with their opponents, the suggestion made by Mr. Elmore is cheerfully complied with. The following is a copy of the letter alluded to.--J.G.B.]

"WASHINGTON, May 5, 1838.

To JAMES G. BIRNEY, Esq., Cor. Sec. A.A.S.S.

SIR,--I have to acknowledge the receipt of your letter of the 1st instant, in which you again refer to the publication of the Correspondence between us, in relation to the measures and designs of the abolitionists. I would have certainly answered yours of the 2d ult., on the same subject, more fully before this, had it not escaped my recollection, in consequence [of] having been more engaged than usual in the business before the House. I hope the delay has been productive of no inconvenience.

If I correctly understand your letters above referred to, the control of these papers, and the decision as to their publication, have passed into the 'Executive Committee of the American Anti-Slavery Society;' and, from their tenor, I infer that their determination is so far made, that nothing I could object would prevent it, if I desired to do so. I was certainly not apprised, when I entered into this Correspondence, that its disposition was to depend on any other will than yours and mine,--but that matters nothing now,--you had the power, and I am not disposed to question the right or propriety of its exercise. I heard of you as a man of intelligence, sincerity, and truth,--who, although laboring in a bad cause, did it with ability, and from a mistaken conviction of its justice. As one of the Representatives of a slave-holding constituency, and one of a committee raised by the Representatives of the slave-holding States, to ascertain the intentions and progress of your associations, I availed myself of the opportunity offered by your character and situation, to propose to you inquiries *as to facts*, which would make those *developments so important to be known by our people*. My inquiries were framed to draw out *full and authentic details* of the organization, numbers, resources, and designs

of the abolitionists, of the means they resorted to for the accomplishment of their ends, and the progress made, and making, in their dangerous work, that all such information might be laid before the *four millions and a half of white inhabitants in the slave States, whose lives and property are menaced and endangered* by this ill-considered, misnamed, and disorganizing philanthropy. They should be informed of the full length and breadth and depth of this storm which is gathering over their heads, before it breaks in its desolating fury. Christians and civilized, they are *now* industrious, prosperous, and happy; but should your schemes of abolition prevail, it will bring upon them overwhelming ruin, and misery unutterable. The two races cannot exist together upon terms of equality--the extirpation of one and the ruin of the other *would be inevitable*. This humanity, conceived in wrong and born in civil strife, would be baptized in a people's blood. It was, that our people might know, in time to guard against the mad onset, the full extent of this gigantic conspiracy and crusade against their institutions; and of necessity upon their lives with which they must sustain them; and their fortunes and prosperity, which *exist only while these institutions exist*, that I was induced to enter into a correspondence with you, who by your official station and intelligence were known to be well informed on these points, and from your well established character for candor and fairness, would make no statements of facts which were not known or believed by you to be true. To a great extent, my end has been accomplished by your replies to my inquiries. How far, or whether at all, your answers have run, beyond *the facts inquired for*, into theories, arguments, and dissertations, as erroneous as mischievous, is not a matter of present consideration. We differed no wider than I expected, but that difference has been exhibited courteously, and has nothing to do with the question of publication. Your object, or rather the object of your Committee, is to publish; and I, having no reason to desire it, as you have put me in possession of the facts I wished, and no reason not to desire it, as there is nothing to conceal, will leave yourself and the Committee to take your own course, neither assenting nor dissenting, in what you may finally decide to do.

Very respectfully,

Your obedient servant,

F.H. Elmore."

[This letter of Mr. Elmore contains but little more than a reiteration of alarming cries on the part of the slaveholder;--cries that are as old as the earliest attempts of philanthropy to break the fetters of the enslaved, and that have been repeated up to the present day, with a boldness that seems to increase, as instances of emancipation multiply to prove them groundless. Those who utter them seem, in their panic, not only to overlook the most obvious laws of the human mind, and the lights of experience, but to be almost unconscious of the great events connected with slavery, that are now passing around them in the world, and conspiring to bring about its early abrogation among all civilized and commercial nations.

However *Christian, and civilized, industrious, prosperous and happy*, the SLAVEHOLDERS of the South may be, this cannot be said of the SLAVES. A large religious denomination of the state in which Mr. Elmore resides, has deliberately pronounced them to be "HEATHEN." *Their* "industry" is seen at the end of the lash--of "prosperity" they have none, for they cannot possess any thing that is an element of prosperity--their "happiness" they prove, by running away from their masters, whenever they think they can effect their escape. This is the condition of a large *majority* of the people in South Carolina, Mississippi and Louisiana.

The "two races" exist in peace in Mexico,--in all the former South American dependencies of Spain, in Antigua, in the *Bermudas*, in Canada, in Massachusetts, in Vermont, in fine, in every country where they enjoy *legal equality*. It is the *denial* of this that produces discontent. MEN will never be satisfied without it. Let the slaveholders consult the irreversible laws of the human mind--make a full concession of right to those from whom they have withheld it, and they will be blessed with a peace, political, social, moral, beyond their present conceptions; without such concessions they never can possess it.

A system that cannot withstand the assaults of truth--that replies to arguments with threats--that cannot be "talked about"--that flourishes in secrecy and darkness, and dies when brought forth into the light and examined, must in this time of inexorable scrutiny and relentless agitation, be a dangerous one. If *justice* be done, all necessity for the extirpation of any part of the people will at once be removed. Baptisms *of blood* are seen

only when humanity has failed in her offices, and the suffering discern hope only in the brute efforts of despair.

Mr. Elmore is doubtless well versed in general history. To his vigorous declamation, I reply by asking, if he can produce from the history of our race a single instance, where emancipation, full and immediate, has been followed, as a legitimate consequence, by insurrection or bloodshed. I may go further, and ask him for a well authenticated instance, where an emancipated slave, singly has imbrued his hands in his master's blood. The first record of such an act in modern times, is yet to be made.

Mr. Elmore says "the white inhabitants in the slave states should be informed of the full length and breadth and depth of this storm which is gathering over their heads, before it breaks in its desolating fury." In this sentiment there is not a reasonable man in the country, be he abolitionist or not, who will not coincide with him. We rejoice at the evidence we here have, in a gentleman of the influence and intelligence of Mr. Elmore, of the returning sanity of the South. How wildly and mischievously has she been heretofore misled! Whilst the Governors of Virginia, Alabama, Tennessee and Arkansas, have been repelling offers, made in respectful terms, of the fullest and most authentic accounts of our movements; and whilst Governor Butler of South Carolina, has not only followed the example of his gubernatorial brethren just named, but is found corresponding with an obscure culprit in Massachusetts--bribing him with a few dollars, the sum he demanded for his fraudulent promise to aid in thwarting the abolitionists[[A](#)]; whilst too, Mr. Calhoun has been willing to pass laws to shut out from his constituents and the South generally information that concerned them more nearly than all others--we now have it from the highest source, from one selected by a state delegation as its *representative* in a general committee of the whole slaveholding delegations, that the South ought to be "*informed of the full length and breadth and depth*" of the measures, intentions, &c, of the abolitionists. At this there is not an abolitionist who will not rejoice. We ask for nothing but access to the popular mind of the South. We feel full confidence in the eternal rectitude of our principles, and of their reception at the South, when once they are understood. Let the conflict come, let the truth of liberty fairly enter the lists with the error of slavery, and we have not a doubt of a glorious triumph.

[Footnote [A](#): Appendix H.]

May we not, after this, expect the aid of Mr. Elmore and others of equal distinction in the South, in giving to their fellow-citizens the information that we have always believed, and that they now acknowledge, to be so, important to them?

May 24, 1838.

JAMES G. BIRNEY.]

APPENDIX.

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APPENDIX A.

Extract from an article addressed to the editor of the Christian Register and Observer, signed W.E.C.--attributed to the Rev. Dr. Channing.

"Speaking of slavery, I wish to recommend to your readers a book just from the press, entitled 'Emancipation in the West Indies,' and written by J. A. Thome and J.H. Kimball, who had visited those islands to inquire into the great experiment now going on there. I regard it as the most important work which has appeared among us for years. No man, without reading it, should undertake to pass judgment on Emancipation. It is something more than a report of the observation and opinions of the writers. It consists, chiefly, of the opinions, conversations, letters, and other documents of the very inhabitants of the islands whose judgments are most trust-worthy; of the governors, special magistrates, police officers, managers, attorneys, physicians, &c; and, in most cases, the names of these individuals are given, so that we have the strongest evidence of the correctness of the work.

The results of this great experiment surpass what the most sanguine could have hoped. It is hardly possible that the trial could have been made under more unfavorable circumstances. The planters on all the

islands were opposed to the Act of Emancipation, and, in most, exceedingly and fiercely hostile to it, and utterly indisposed to give it the best chance of success. The disproportion of the colored race to the whites was fearfully great, being that of seven or eight to one; whilst, in our slaveholding states, the whites outnumber the colored people. The slaves of the West Indies were less civilized than ours, and less fit to be trusted with their own support. Another great evil was, that the proprietors, to a considerable extent, were absentees; residing in England, and leaving the care of their estates and slaves to managers and owners; the last people for such a trust, and utterly unfit to carry the wretched victims of their tyranny through the solemn transition from slavery to freedom. To complete the unhappy circumstances under which the experiment began, the Act of Emancipation was passed by a distant government, having no intimate knowledge of the subject; and the consequence was, that a system of 'Apprenticeship,' as it was called, was adopted, so absurd, and betraying such ignorance of the principles of human nature, that, did we not know otherwise, we might suspect its author of intending to produce a failure. It was to witness the results of an experiment promising so little good, that our authors visited three islands, particularly worthy of examination--Antigua, Barbadoes, and Jamaica.

Our authors went first to Antigua, an island which had been wise enough to foresee the mischiefs of the proposed apprenticeship, and had substituted for it immediate and unqualified emancipation. The report given of this island is most cheering. It is, indeed, one of the brightest records in history. The account, beginning page 143, of the transition from slavery to freedom, can hardly be read by a man of ordinary sensibility without a thrill of tender and holy joy. Why is it not published in all our newspapers as among the most interesting events of our age? From the accounts of Antigua, it appears that immediate emancipation has produced only good. Its fruits are, greater security, the removal of the fears which accompany slavery, better and cheaper cultivation of the soil, increased value of real estate, improved morals, more frequent marriages, and fewer crimes. *The people proclaim, with one voice, that emancipation is a blessing, and that nothing would tempt than to revert to slavery.*

Our authors proceeded next to Barbadoes, where the apprenticeship system is in operation; and if any proof were needed of the docility and good dispositions of the negroes, it would be found in their acquiescence to so wonderful a degree in this unhappy arrangement. The planters on this island have been more disposed, than could have been anticipated, to make the best of this system, and here, accordingly, the same fruits of the Act of Emancipation are found as in Antigua, though less abundant; and a very general and strong conviction prevails of the happiness of the change.

In Jamaica, apprenticeship manifests its worst tendencies. The planters of this island were, from first to last, furious in their hostility to the act of emancipation; and the effort seems to have been, to make the apprenticeship bear as heavily as possible on the colored people; so that, instead of preparing them for complete emancipation, it has rather unfitted them for this boon. Still, under all these disadvantages, there is strong reason for expecting, that emancipation, when it shall come, will prove a great good. At any rate, it is hardly possible for the slaves to fall into a more deplorable condition, than that in which this interposition of parliament found them.

The degree of success which has attended this experiment in the West Indies, under such unfavorable auspices, makes us sure, that emancipation in this country, accorded by the good will of the masters, would be attended with the happiest effects. One thing is plain, that it would be perfectly *safe*. Never were the West Indies so peaceful and secure as since emancipation. So far from general massacre and insurrection, not an instance is recorded or intimated of violence of any kind being offered to a white man. Our authors were continually met by assurances of security on the part of the planters, so that, in this respect at least, emancipation has been unspeakable gain. The only obstacle to emancipation is, therefore, removed; for nothing but well grounded fears of violence and crime can authorize a man to encroach one moment on another's freedom.

The subject of this book is of great interest at the present moment. Slavery, in the abstract, has been thoroughly discussed among us. We

all agree that it is a great wrong. Not a voice is here lifted up in defence of the system, when viewed in a general light. We only differ when we come to apply our principles to a particular case. The only question is, whether the Southern states can abolish slavery consistently with the public safety, order, and peace? Many, very many well disposed people, both at the North and South, are possessed with vague fears of massacre and universal misrule, as the consequences of emancipation. Such ought to inquire into the ground of their alarm. They are bound to listen to the voice of *facts*, and such are given in this book. None of us have a right to make up our minds without inquiry, or to rest in opinions adopted indolently and without thought. It is a great crime to doom millions of our race to brutal degradation, on the ground of unreasonable fears. The power of public opinion is here irresistible, and to this power every man contributes something; so that every man, by his spirit and language, helps to loosen or rivet the chains of the slave."

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The following sentiments are expressed by GOVERNOR EVERETT, of Massachusetts, in a letter to EDMUND QUINCY, Esq., dated

"Boston, April 29, 1838.

DEAR SIR,--I have your favor of the 21st, accompanied with the volume containing the account of the tour of Messrs. Thome and Kimball in the West Indies, for which you will be pleased to accept my thanks. I have perused this highly interesting narrative with the greatest satisfaction. From the moment of the passage of the law, making provision for the immediate or prospective abolition of slavery in the British colonial possessions, I have looked with the deepest solicitude for tidings of its operation. The success of the measure, as it seemed to me, would afford a better hope than had before existed, that a like blessing might be enjoyed by those portions of the United States where slavery prevails. The only ground on which I had been accustomed to hear the continuance of slavery defended at the South, was that of necessity, and the impossibility of abolishing it without

producing consequences of the most disastrous character to both parties. The passage of a law providing for the emancipation of nearly a million of slaves in the British colonies, seemed to afford full opportunity of bringing this momentous question to the decisive test of experience. *If the result proved satisfactory, I have never doubted that it would seal the fate of slavery throughout the civilised world.* As far as the observations of Messrs. Thome and Kimball extended, the result is of the most gratifying character. It appears to place beyond a doubt, that the experiment of immediate emancipation, adopted by the colonial Legislature of Antigua, has fully succeeded in that island; and the plan of apprenticeship in other portions of the West Indies, as well as could have been expected from the obvious inherent vices of that measure. *It has given me new views of the practicability of emancipation.* It has been effected in Antigua, as appears from unquestionable authorities contained in the work of Messrs. Thome and Kimball, not merely *without danger* to the master, but without any sacrifice of his *interest*. I cannot but think that the information collected in the volume will have a powerful effect on public opinion, not only in the northern states, but in the slaveholding states."

GOVERNOR ELLSWORTH, of Connecticut, writes thus to A.F. WILLIAMS, Esq., of this city:--

"NEW HAVEN, *May* 19, 1838.

MY DEAR SIR,--Just before I left home, I received from you the Journal of Thome and Kimball, for which token of friendship I intended to have made you my acknowledgments before this; but I wished first to read the book. As far as time would permit, I have gone over most of its pages; and let me assure you, it is justly calculated to produce great effects, provided you can once get it into the hands of the planters. Convince *them* that their interests, as well as their security, will be advanced by employing free blacks, and emancipation will be accomplished without difficulty or delay.

I have looked with great interest at the startling measure of emancipation in Antigua; but if this book is correct, the question is settled as to that island beyond a doubt, since there is such

accumulated testimony from all classes, that the business and real estate of the island have advanced, by reason of the emancipation, one fourth, at least, in value; while personal security, without military force, is felt by the former masters, and contentment, industry, and gratitude, are seen in those who were slaves.

The great moral example of England, in abolishing slavery in the West Indies, will produce a revolution on this subject throughout the world, and put down slavery in every Christian country.

With sentiments of high esteem, &c,

W.W. ELLSWORTH."

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APPENDIX B.

A short time previous to the late election in Rhode Island for governor and lieutenant-governor, a letter was addressed to each of the candidates for those offices by Mr. Johnson, Corresponding Secretary of the Rhode Island Anti-Slavery Society, embodying the views of the abolitionists on the several subjects it embraced, in a series of queries. Their purport will appear from the answer of Mr. Sprague, (who was elected governor,) given below. The answer of Mr. Childs (elected lieutenant-governor) is fully as direct as that of governor Sprague.

"WARWICK, *March 28, 1838.*

DEAR SIR,--Your favor of the 19th inst. requesting of me, in conformity to a resolution of the Executive Committee of the Rhode Island Anti-Slavery Society, an expression of my opinions on certain topics, was duly received. I have no motive whatever for withholding my opinions on any subject which is interesting to any portion of my fellow-citizens. I will, therefore, cheerfully proceed to reply to the interrogatories proposed, and in the order in which they are submitted.

1. Among the powers vested by the Constitution in Congress, is the power to exercise exclusive legislation, 'in all cases whatsoever,' over the District of Columbia? 'All cases' must, of course, include the *case* of slavery and the slave-trade. I am, therefore, clearly of opinion, that the Constitution does confer upon Congress the power to abolish slavery and the slave-trade in that District; and, as they are great moral and political evils, the principles of justice and humanity demand the exercise of that power.

2. The traffic in slaves, whether foreign or domestic, is equally obnoxious to every principle of justice and humanity; and, as Congress has exercised its powers to suppress the slave-trade between this country and foreign nations, it ought, as a matter of consistency and justice, to exercise the same powers to suppress the slave-trade between the states of this Union. The slave-trade within the states is, undoubtedly, beyond the control of Congress; as the 'sovereignty of each state, to legislate exclusively on the subject of slavery, which is tolerated within its limits,' is, I believe, universally conceded. The Constitution unquestionably recognises the sovereign power of each state to legislate on the subject within its limits; but it imposes on us no obligation to add to the evils of the system by countenancing the traffic between the states. That which our laws have solemnly pronounced to be piracy in our foreign intercourse, no sophistry can make honorable or justifiable in a domestic form. For a proof of the feelings which this traffic naturally inspires, we need but refer to the universal execration in which the slave-dealer is held in those portions of the country where the institution of slavery is guarded with the most jealous vigilance.

3. Congress has no power to abridge the right of petition. The right of the people of the non-slaveholding states to petition Congress for the abolition of slavery and the slave-trade in the District of Columbia, and the traffic of human beings among the states, is as undoubted as any right guaranteed by the Constitution; and I regard the Resolution which was adopted by the House of Representatives on the 21st of December last as a virtual denial of that right, inasmuch as it disposed of all such petitions, as might be presented thereafter, in advance of

presentation and reception. If it was right thus to dispose of petitions on *one* subject, it would be equally right to dispose of them in the same manner on *all* subjects, and thus cut off all communication, by petition between the people and their representatives. Nothing can be more clearly a violation of the spirit of the Constitution, as it rendered utterly nugatory a right which was considered of such vast importance as to be specially guarantied in that sacred instrument. A similar Resolution passed the House of Representatives at the first session of the last Congress, and as I then entertained the same views which I have now expressed, I recorded my vote against it.

4. I fully concur in the sentiment, that 'every principle of justice and humanity requires, that every human being, when personal freedom is at stake, should have the benefit of a jury trial;' and I have no hesitation in saying, that the laws of this state ought to secure that benefit, so far as they can, to persons claimed as fugitives from 'service or labor,' without interfering with the laws of the United States. The course pursued in relation to this subject by the Legislature of Massachusetts meets my approbation.

5. I am opposed to all attempts to abridge or restrain the freedom of speech and the press, or to forbid any portion of the people peaceably to assemble to discuss any subject--moral, political, or religious.

6. I am opposed to the annexation of Texas to the United States.

7. It is undoubtedly inconsistent with the principles of a free state, professing to be governed in its legislation by the principles of freedom, to sanction slavery, in any form, within its jurisdiction. If we have laws in this state which bear this construction, they ought to be repealed. We should extend to our southern brethren, whenever they may have occasion to come among us, all the privileges and immunities enjoyed by our own citizens, and all the rights and privileges guarantied to them by the Constitution of the United States; but they cannot expect of us to depart from the fundamental principles of civil liberty for the purpose of obviating any temporal inconvenience which they may experience.

These are my views upon the topics proposed for my consideration. They are the views which I have always entertained, (at least ever since I have been awakened to their vast importance,) and which I have always supported, so far as I could, by my vote in Congress; and if, in any respect, my answers have not been sufficiently explicit, it will afford me pleasure to reply to any other questions which you may think proper to propose.

I am, Sir, very respectfully,

Your friend and fellow citizen,

WILLIAM SPRAGUE."

Oliver Johnson, Esq., Cor. Sec. R.I.A.S. Society.

APPENDIX C.

The abolitionists in Connecticut petitioned the Legislature of that state at its late session on several subjects deemed by them proper for legislative action. In answer to these petitions--

1. The law known as the "Black Act" or the "Canterbury law"--under which Miss Crandall was indicted and tried--was repealed, except a single provision, which is not considered objectionable.
2. The right to *trial by jury* was secured to persons who are claimed as slaves.
3. Resolutions were passed asserting the power of Congress to abolish slavery in the District of Columbia, and recommending that it be done as soon as it can be, "consistently with the *best good* of the *whole country*."(!)
4. Resolutions were passed protesting against the annexation of Texas to the Union.
5. Resolutions were passed asserting the right of petition as inalienable--condemning Mr. Patton's resolution of Dec. 21, 1837 as an invasion of the

rights of the people, and calling on the Connecticut delegation in Congress to use their efforts to have the same rescinded.

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APPENDIX D.

In the year 1793 there were but 5,000,000 pounds of cotton produced in the United States, and but 500,000 exported. Cotton never could have become an article of much commercial importance under the old method of preparing it for market. By hand-picking, or by a process strictly *manual*, a cultivator could not prepare for market, during the year, more than from 200 to 300 pounds; being only about one-tenth of what he could cultivate to maturity in the field. In '93 Mr. Whitney invented the Cotton-gin now in use, by which the labor of at least *one thousand* hands under the old system, is performed by *one*, in preparing the crop for market. Seven years after the invention (1800) 35,000,000 pounds were raised, and 17,800,000 exported. In 1834, 460,000,000 were raised--384,750,000 exported. Such was the effect of Mr. Whitney's invention. It gave, at once, extraordinary value to the *land* in that part of the country where alone cotton could be raised; and to *slaves*, because it was the general, the almost universal, impression that the cultivation of the South could be carried on only by slaves. There being no *free* state in the South, competition between free and slave labor never could exist on a scale sufficiently extensive to prove the superiority of the former in the production of cotton, and in the preparation of it for market.

Thus, it has happened that Mr. Whitney has been the innocent occasion of giving to slavery in this country its present importance--of magnifying it into the great interest to which all others must yield. How he was rewarded by the South--especially by the planters of Georgia--the reader may see by consulting Silliman's Journal for January, 1832, and the Encyclopedia Americana, article, WHITNEY.

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APPENDIX E.

It is impossible, of course, to pronounce with precision, how great would have been the effect in favor of emancipation, if the effort to resist the admission of Missouri as a slaveholding state had been successful. We can only conjecture what it would have been, by the effect its admission has had in fostering slavery up to its present huge growth and pretensions. If the American people had shown, through their National legislature, a *sincere* opposition to slavery by the rejection of Missouri, it is probable at least--late as it was--that the early expiration of the 'system' would, by this time, have been discerned by all men.

When the Constitution was formed, the state of public sentiment even in the South--with the exception of South Carolina and Georgia, was favorable to emancipation. Under the influence of this public sentiment was the Constitution formed. No person at all versed in constitutional or legal interpretation--with his judgment unaffected by interest or any of the prejudices to which the existing controversy has given birth--could, it is thought, construe the Constitution, *in its letter*, as intending to perpetuate slavery. To come to such a conclusion with a full knowledge of what was the mind of this nation in regard to slavery, when that instrument was made, demonstrates a moral or intellectual flaw that makes all reasoning useless.

Although it is a fact beyond controversy in our history, that the power conferred by the Constitution on Congress to "regulate commerce with foreign nations" was known to include the power of abolishing the African slave-trade--and that it was expected that Congress, at the end of the period for which the exercise of that power on this particular subject was restrained, would use it (as it did) *with a view to the influence that the cutting off of that traffic would have on the "system" in this country*--yet, such has been the influence of the action of Congress on all matters with which slavery has been mingled--more especially on the Missouri question, in which slavery was the sole interest--that an impression has been produced on the popular mind, that the Constitution of the United States *guaranties*, and consequently *perpetuates*, slavery to the South. Most artfully, incessantly, and powerfully, has this lamentable error been harped on by the slaveholders, and by their advocates in the free states. The impression of *constitutional favor* to the slaveholders would, of itself, naturally create for them an undue and disproportionate influence in the control of the government; but when to this is added the arrogance that the

possession of irresponsible power almost invariably engenders in its possessors--their overreaching assumptions--the contempt that the slaveholders entertain for the great body of the *people* of the North, it has almost delivered over the government, bound neck and heels, into the hands of slaveholding politicians--to be bound still more rigorously, or unloosed, as may seem well in their discretion.

Who can doubt that, as a nation, we should have been more honorable and influential abroad--more prosperous and united at home--if Kentucky, at the very outset of this matter, had been refused admission to the Union until she had expunged from her Constitution the covenant with oppression? She would not have remained out of the Union a single year on that account. If the worship of Liberty had not been exchanged for that of Power--if her principles had been successfully maintained in this first assault, their triumph in every other would have been easy. We should not have had a state less in the confederacy, and slavery would have been seen, at this time, shrunk up to the most contemptible dimensions, if it had not vanished entirely away. But we have furnished another instance to be added to the long and melancholy list already existing, to prove that,--

-----"facilis descensus Avernii,
Sed revocare gradum-----
Hoc opus hic labor est,"-----

if *poetry* is not *fiction*.

Success in the Missouri struggle--late as it was--would have placed the cause of freedom in our country out of the reach of danger from its inexorable foe. The principles of liberty would have struck deeper root in the free states, and have derived fresh vigor from such a triumph. If these principles had been honored by the government from that period to the present, (as they would have been, had the free states, even then, assumed their just preponderance in its administration,) we should now have, in Missouri herself, a healthful and vigorous ally in the cause of freedom; and, in Arkansas, a free people--*twice* her present numbers--pressing on the confines of slavery, and summoning the keepers of the southern charnel-house to open its doors, that its inmates might walk forth, in a glorious resurrection to liberty and life. Although young, as a people, we should be,

among the nations, venerable for our virtue; and we should exercise an influence on the civilized and commercial world that we most despair of possessing, as long as we remain vulnerable to every shaft that malice, or satire, or philanthropy may find it convenient to hurl against us.[A]

[Footnote A: A comic piece--the production of one of the most popular of the French writers in his way--had possession of the Paris stage last winter. When one of the personages SEPARATES HUSBAND AND WIFE, he cries out, "BRAVO! THIS IS THE DECLARATION OF INDEPENDENCE OF THE UNITED STATES!" [Bravo! *C'est la* Declaration d'Independence des Etats Unis.]

One of our distinguished College-professors, lately on a tour in Europe, had his attention called, while passing along the street of a German city, to the pictorial representation of a WHITE MAN SCOURGING A SUPPLICATING COLORED FEMALE, with this allusion underwritten:--
"A SPECIMEN OF EQUALITY--FROM REPUBLICAN AMERICA."

Truly might our countryman have exclaimed in the language, if not with the generous emotions of the Trojan hero, when he beheld the noble deeds of his countrymen pencilled in a strange land--

-----"Quis jam locus--

Quae regio in terris nostri non plena laboris?"

]

Instead of being thus seated on a "heaven-kissing hill," and seen of all in its pure radiance; instead of enjoying its delightful airs, and imparting to them the healthful savor of justice, truth, mercy, magnanimity, see what a picture we present;--our cannibal burnings of human beings--our Lynch courts--our lawless scourgings and capital executions, not only of slaves, but of freemen--our demoniac mobs raging through the streets of our cities and large towns at midday as well as at midnight, shedding innocent blood, devastating property, and applying the incendiaries' torch to edifices erected and dedicated to FREE DISCUSSION--the known friends of order, of law, of liberty, of the Constitution--citizens, distinguished for their worth at home, and reflecting honor on their country abroad, shut out from more than half our territory, or visiting it at the hazard of their lives, or of the

most degrading and painful personal inflictions--freedom of speech and of the press overthrown and hooted at--the right of petition struck down in Congress, where, above all places, it ought to have been maintained to the last--the people mocked at, and attempted to be gagged by their own servants--the time the office-honored veteran, who fearlessly contended for the *right*, publicly menaced for words spoken in his place as a representative of the people, with an indictment by a slaveholding grand jury--in fine, the great principles of government asserted by our fathers in the Declaration of Independence, and embodied in our Constitution, with which they won for us the sympathy, the admiration of the world--all forgotten, dishonoured, despised, trodden under foot! And this for slavery!!

Horrible catalogue!--yet by no means a complete one--for so young a nation, boasting itself, too, to be the freest on earth! It is the ripe fruit of that *chef d'oeuvre* of political skill and patriotic achievement--the MISSOURI COMPROMISE.

Another such compromise--or any compromise now with slavery--and the nation is undone.

APPENDIX F.

The following is believed to be a correct exhibit of the legislative resolutions against the annexation of Texas--of the times at which they were passed, and of the *votes* by which they were passed:--

1. VERMONT.

"1. *Resolved, By the Senate and House of Representatives, That our Senators in Congress be instructed, and our Representatives requested, to use their influence in that body to prevent the annexation of Texas to the Union.*

2. *Resolved, That representing, as we do, the people of Vermont, we do hereby, in their name, SOLEMNLY PROTEST against such annexation in any form.*"

[Passed unanimously, Nov. 1, 1837.]

2. RHODE ISLAND.

(In General Assembly, October Session, A. D. 1837.)

"Whereas the compact of the Union between these states was entered into by the people thereof in their respective states, 'in order to form a more perfect Union, establish justice, ensure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to themselves and their posterity;' and, therefore, a Representative Government was instituted by them, with certain limited powers, clearly specified and defined in the Constitution--all other powers, not therein expressly relinquished, being 'reserved to the states respectively, or to the people.'

And whereas this limited government possesses no power to extend its jurisdiction over any foreign nation, and no foreign nation, country, or people, can be admitted into this Union but by the sovereign will and act of the free people of all and each of these United States, nor without the formation of a new compact of Union--and another frame of government radically different, in objects, principles, and powers, from that which was framed for our own self-government, and deemed to be adequate to all the exigencies of our own free republic:--

Therefore, Resolved, That we have witnessed, with deep concern, the indications of a disposition to bring into this Union, as a constituent member thereof, the foreign province or territory of Texas.

Resolved, That, although we are fully aware of the consequences which must follow the accomplishment of such a project, could it be accomplished--aware that it would lead speedily to the conquest and annexation of Mexico itself, and its fourteen remaining provinces or intendencies--which, together with the revolted province of Texas, would furnish foreign territories and foreign people for at least twenty members of the new Union; that the government of a nation so extended and so constructed would soon become radically [changed] in character, if not in form--would unavoidably become a military government; and, under the plea of necessity, would free itself from the restraints of the Constitution and from its accountability to the

people. That the ties of kindred, common origin and common interests, which have so long bound this people together, and would still continue to bind them: these ties, which ought to be held sacred by all true Americans, would be angrily dissolved, and sectional political combinations would be formed with the newly admitted foreign states, unnatural and adverse to the peace and prosperity of the country. The civil government, with all the arbitrary powers it might assume, would be unable to control the storm. The usurper would find himself in his proper element; and, after acting the patriot and the hero for a due season, as the only means of rescuing the country from the ruin which he had chiefly contributed to bring upon it, would reluctantly and modestly allow himself to be declared 'Protector of the Commonwealth.'

We are now fully aware of the deep degradation into which the republic would sink itself in the eyes of the whole world, should it annex to its own vast territories other and foreign territories of immense though unknown extent, for the purpose of encouraging the propagation of slavery, and giving aid to the raising of slaves within its own bosom, the very bosom of freedom, to be esported and sold in those unhallowed regions. Although we are fully aware of these fearful evils, and numberless others which would come in their train, yet we do not here dwell upon them; because we are here firmly convinced that the free people of most, and we trust of all these states, will never suffer the admission of the foreign territory of Texas into this Union as a constituent member thereof--will never suffer the integrity of this Republic to be violated, either by the introduction and addition to it of foreign nations or territories, one or many, or by dismemberment of it by the transfer of any one or more of its members to a foreign nation. The people will be aware, that should one foreign state or country be introduced, another and another may be, without end, whether situated in South America, in the West India islands, or in any other part of the world; and that a single foreign state, thus admitted, might have in its power, by holding the balance between contending parties, to wrest their own government from the hands and control of the people, by whom it was established for their own benefit and self-government. We are firmly convinced, that the free people of these states will look

upon any attempt to introduce the foreign territory of Texas, or any other foreign territory or nation into this Union, as a constituent member or members thereof, as manifesting a willingness to prostrate the Constitution and dissolve the Union.

Resolved, That His Excellency, the Governor, be requested to forward a copy of the foregoing resolutions to each of our Senators and Representatives in Congress, and to each of the Executives of the several states, with a request that the same may be laid before the respective Legislatures of said states."

[The Preamble and Resolutions were unanimously adopted, Nov. 3, 1837.]

3. OHIO.

"Resolved, by the General Assembly of the State of Ohio, That in the name, and on behalf of the people of the State of Ohio, we do hereby SOLEMNLY PROTEST against the annexation of Texas to the Union of these United States.

And be it further resolved, That the Governor be requested to transmit to each of our Senators and Representatives in Congress, and to the Governors of each of the States, a copy of the foregoing resolution, with a statement of the votes by which it was passed in each branch of the Legislature."

[Passed by 64 out of 72, the whole number in the House of Representatives--unanimously in the Senate. Feb. 24, 1838.]

4. MASSACHUSETTS.

"Resolves against the annexation of Texas to the United States.

Whereas a proposition to admit into the United States as a constituent member thereof, the foreign nation of Texas, has been recommended by the legislative resolutions of several States, and brought before Congress for its approval and sanction; and whereas such a measure would involve great wrong to Mexico, and otherwise be of evil precedent, injurious to the interests and dishonorable to the character

of this country; and whereas its avowed objects are doubly fraught with peril to the prosperity and permanence of this Union, as tending to disturb and destroy the conditions of those compromises and concessions, entered into at the formation of the Constitution, by which the relative weights of different sections and interests were adjusted, and to strengthen and extend the evils of a system which is unjust in itself, in striking contrast with the theory of our institutions, and condemned by the moral sentiment of mankind; and whereas the people of these United States have not granted to any or all of the departments of their Government, but have retained in themselves, the only power adequate to the admission of a foreign nation into this confederacy; therefore,

Resolved, That we, the Senate and House of Representatives, in General Court assembled, do in the name of the people of Massachusetts, earnestly and solemnly protest against the incorporation of Texas into this Union, and declare, that no act done or compact made, for such purpose by the government of the United States, will be binding on the States or the People.

Resolved, That his Excellency the Governor be requested to forward a copy of these resolutions and the accompanying report to the Executive of the United States, and the Executive of each State and also to each of our Senators and Representatives in Congress, with a request that they present the resolves to both Houses of Congress."

[Passed MARCH 16, 1838, UNANIMOUSLY, in both Houses.]

* * * * *

5. MICHIGAN.

Whereas, propositions have been made for the annexation of Texas to the United States, with a view to its ultimate incorporation into the Union:

"And whereas, the extension of this General Government over so large a country on the south-west, between which and that of the original states, there is little affinity, and less identity of interest, would tend, in

the opinion of this Legislature, greatly to disturb the safe and harmonious operations of the Government of the United States, and put in imminent danger the continuance of this happy Union: Therefore,

Be it resolved, by the Senate and House of Representatives of the State of Michigan, That in behalf, and in the name of the State of Michigan, this Legislature doth hereby dissent from, and solemnly protest against the annexation, for any purpose, to this Union, of Texas, or of any other territory or district of country, heretofore constituting a part of the dominions of Spain in America, lying west or south-west of Louisiana.

And be it further Resolved, by the Authority aforesaid, That the Governor of this State be requested to transmit a copy of the foregoing preamble and resolve, under the great seal of this state, to the President of the United States; also, that he transmit one copy thereof, authenticated in manner aforesaid, to the President of the Senate of the United States, with the respectful request of this Legislature, that the same may be laid before the Senate; also, that he transmit one copy thereof to the Speaker of the House of Representatives of the United States, authenticated in like manner, with the respectful request of this Legislature, that the same may be laid before the House of Representatives; and also, that he transmit to each of our Senators and Representatives in Congress, one copy thereof, together with the Report adopted by this Legislature, and which accompanies said preamble and resolves."

[Passed nearly if not quite unanimously, April 2, 1838].

* * * * *

6. CONNECTICUT.

"Resolved, That we, the Senate and House of Representatives in General Assembly convened, do, in the name of the people of this State, solemnly protest against the annexation of Texas to this Union."

[Passed, it is believed, unanimously in both houses.]

* * * * *

(Those which follow were passed by but one branch of the respective Legislatures in which they were introduced.)

7. PENNSYLVANIA.

Resolutions relative to the admission of Texas into the Union.

"*Whereas* the annexation of Texas to the United States has been advocated and strongly urged by many of our fellow-citizens, particularly in the southern part of our country, and the president of Texas has received authority to open a correspondence with, and appoint, a commissioner to our government to accomplish the object;--*And whereas* such a measure would bring to us a dangerous extension of territory, with a population generally not desirable, and would probably involve us in war;--*And whereas* the subject is now pressed upon and agitated in Congress; therefore,

Resolved, &c, That our Senators in Congress be instructed, and our Representatives requested, to use their influence and vote against the annexation of Texas to the territory of the united States.

Resolved, That the Governor transmit to each of our Senators and Representatives a copy of the foregoing preamble and resolutions."

[Passed the Senate March 9, 1835, by 22 to 6. Postponed indefinitely in the House of Representatives, April 13, by 41 to 39.]

* * * * *

8. MAINE.

"*Resolved*, That the Legislature of the State of Maine, on behalf of the people of said state, do earnestly and solemnly protest against the annexation of the Republic of Texas to these United States; and that

our Senators and Representatives in Congress be, and they hereby are, requested to exert their utmost influence to prevent the adoption of a measure at once so clearly unconstitutional, and so directly calculated to disturb our foreign relations, to destroy our domestic peace, and to dismember our blessed Union."

[Passed in the House of Representatives, March 22, 1838, by 85 to 30. Senate (same day) refused to concur by 11 to 10.]

* * * * *

9. NEW-YORK.

"Resolved, (if the Senate concur,) That the admission of the Republic of Texas into this Union would be entirely repugnant to the will of the people of this state, and would endanger the union of these United States.

Resolved, (if the Senate concur,) That this Legislature do, in the name of the people of the State of New York, solemnly protest against the admission of the Republic of Texas into this Union.

Resolved, (if the Senate concur.) That his Excellency the Governor be requested to transmit a copy of the foregoing resolutions to each of our Senators and Representatives in Congress, and also to the governors of each of the United States, with a request that the same be laid before their respective Legislatures."

[These resolutions passed the House of Representatives in April, by a large majority--the newspapers say, 83 to 13. They were indefinitely postponed in the Senate, by a vote of 21 to 9.]

* * * * *

APPENDIX G.

The number of petitioners for abolition in the District of Columbia, and on other subjects allied to it, have been ascertained (in the House of Representatives) to be as follows:--

	Men.	Women.	Total.
For abolition in the District,	51,366	78,882	130,248
Against the annexation of Texas,	104,973	77,419	182,392
Rescinding the gag resolution,	21,015	10,821	31,836
Against admitting any new slave state,	11,770	10,391	22,161
For abolition of the slave-trade between the states,	11,864	11,541	23,405
For abolition of slavery in the territories,	9,129	12,083	21,212
At the extra session for rescinding the gag resolution of Jan. 21, 1837,	3,377		3,377
Total,	213,494	201,137	414,631

The number in the Senate, where some difficulty was interposed that prevented its being taken, is estimated to have been about two-thirds as great as that in the House.

* * * * *

APPENDIX H.

[On the 1st of December, one of the secretaries of the American Anti-Slavery Society addressed a note to each of the Governors of the slave states, in which he informed them, in courteous and respectful terms, that he had directed the Publishing Agent of this society, thereafter regularly to transmit to them, free of charge, the periodical publications issued from the office of the society. To this offer the following replies were received:--]

GOVERNOR CAMPBELL'S LETTER.

JAMES G. BIRNEY, Esq., *New York*

"RICHMOND, *Dec. 4, 1837.*

SIR,--I received, by yesterday's mail, your letter of the 1st instant, in which you state that you had directed the publishing agent of the American Anti-Slavery Society, hereafter, regularly to transmit, free of charge, by mail, to all the governors of the slave states, the periodical publications issued from that office.

Regarding your society as highly mischievous, I decline receiving any communications from it, and must request that no publications from your office be transmitted to me.

I am, &c,

DAVID CAMPBELL."

* * * * *

GOVERNOR BAGBY'S LETTER.

"TUSCALOOSA, *Jan. 6, 1838*

SIR,--I received, by due course of mail, your favor of the 1st of December, informing me that you had directed the publishing agent of the American Anti-Slavery Society to forward to the governors of the slaveholding states the periodicals issued from that office. Taking it for granted, that the only object which the society or yourself could have in view, in adopting this course, is, the dissemination of the opinions and principles of the society--having made up my own opinion, unalterably, in relation to the whole question of slavery, as it exists in a portion of the United States, and feeling confident that, in the correctness of this opinion, I am sustained by the entire free white population of Alabama, as well as the great body of the people of this Union, I must, with the greatest respect for yourself, personally but not for the opinions or principles advocated by the society--positively decline receiving said publications, or any others of a similar character, either personally or officially. Indeed, it is presuming a little too much,

to expect that the chief magistrate of a free people, elected by themselves, would hold correspondence or give currency to the publications of an organized society, openly engaged in a scheme fraught with more mischievous consequences to their interest and repose, than any that the wit or folly of mankind has heretofore devised.

I am, very respectfully,

Your ob't servant,

A.P. BAGBY"

JAMES G. BIRNEY, *Esq.*, *New York.*

* * * * *

GOVERNOR CANNON'S LETTER.

[This letter required so many alterations to bring it up to the ordinary standard of epistolary, grammatical, and orthographical accuracy, that it is thought best to give it in *word* and *letter*, precisely as it was received at the office.]

"EXECUTIVE DEPT.--

NASHVILLE. *Dec. 12th, 1837.*

Sir

I have rec'd yours of the 1st Inst notifying me, that you had directed, your periodical publications, on the subject of Slavery to be sent to me free of charge &c--and you are correct, if sincere, in your views, in supposing that we widely differ, on this subject, we do indeed widely differ, on it, if the publications said to have emanated from you, are honest and sincere, which, I admit, is possible.

My opinions are fix'd and settled, and I seldom Look into or examine, the, different vague notions of others who write and theorise on that subject. Hence I trust you will not expect me to examine, what you have printed on this subject, or cause to have printed. If you or any other man are influenced by feelings of humanity, and are laboring to relieve the sufferings, of the human race, you may find objects enough immediately around you, where you are, in any nonslaveholding State, to engage your, attention, and all your exertions, in that good cause.

But if your aim is to make a flourish on the subject, before the world, and to gain yourself some notoriety, or distinction, without, doing good to any, and evil to many, of the human race, you are, pursuing the course calculated to effect. Such an object, in which no honest man need envy. Your honours, thus gaind, I know there are many such in our country, but would fain hope, you are not one of them. If you have Lived, as you state forty years in a Slave holding State, you know that, that class of its population, are not the most, miserable, degraded, or unhappy, either in their feelings or habits, You know they are generally governd, and provided for by men of information and understanding sufficient to guard them against the most, odious vices, and hibets of the country, from which, you know the slaves are in a far greater degree, exempt than, are other portions of the population. That the slaves are the most happy, moral and contented generally, and free from suffering of any kind, having, each full confidence, in his masters, skill means and disposition to provide well for him, knowing also at the same time that *it is his interest to do it*. Hence in this State of Society more than any other, Superior intelligence has the ascendancy, in governing and provideing, for the wants of those inferior, also in giveing direction to their Labour, and industry, as should be the case, superior intelligence Should govern, when united with Virtue, and interest, that great predominating principle in all human affairs. It is my rule of Life, when I see any man labouring to produce effects, at a distance from him, while neglecting the objects immediately around him, (in doing good) to suspect his sincerity, to suspect him for some selfish, or sinister motive, all is not gold that glitters, and every man is not what he, endeavours to appear to be, is too well known. It is the duty of masters to take care of there slaves

and provide for them, and this duty I believe is as generally and as fully comply'd with as any other duty enjoind on the human family, for next to their children their own offspring, their slaves stand next foremost in their care and attention, there are indeed very few instances of a contrary character.

You can find around you, I doubt not a large number of persons intemix'd, in your society, who are entirely destitute of that care, and attention, towards them that is enjoyed by our slaves, and who are destitute of that deep feeling of interest, in guarding their morals and habits, and directing them through Life in all things, which is here enjoy'd by our slaves, to those let your efforts be directed immediately around you and do not trouble with your vague speculations those who are contented and happy, at a distance from you.

Very respectfully yours,

N. CANNON."

Mr. JAS. G. BIRNEY, *Cor. Sec. &c.*

* * * * *

[The letter of the Secretary to the governor of South Carolina was not *answered*, but was so inverted and folded as to present the *subscribed* name of the secretary, as the *superscription* of the same letter to be returned. The addition of *New York* to the address brought it back to this office.

Whilst governor Butler was thus refusing the information that was proffered to him in the most respectful terms from this office, he was engaged in another affair, having connection with the anti-slavery movement, as indiscreet, as it was unbecoming the dignity of the office he holds. The following account of it is from one of the Boston papers:--]

"*Hoaxing a Governor.*--The National Aegis says, that Hollis Parker, who was sentenced to the state prison at the late term of the criminal court for Worcester county, for endeavoring to extort money from governor Everett, had opened an extensive correspondence, previous

to his arrest, with similar intent, with other distinguished men of the country. Besides several individuals in New York, governor Butler, of South Carolina, was honored with his notice. A letter from that gentleman, directed to Parker, was lately received at the post office in a town near Worcester, enclosing a check for fifty dollars. So far as the character of Parker's letter can be inferred from the reply of governor Butler, it would appear, that Parker informed the governor, that the design was entertained by some of our citizens, of transmitting to South Carolina a quantity of 'incendiary publications,' and that with the aid of a little money, he (Parker) would be able to unravel the plot, and furnish full information concerning it to his excellency. The bait took, and the money was forwarded, with earnest appeals to Parker to be vigilant and active in thoroughly investigating the supposed conspiracy against the peace and happiness of the South.

The Aegis has the following very just remarks touching this case:-- 'Governor Butler belongs to a state loud in its professions of regard for state rights and state sovereignty. We, also, are sincere advocates of that good old republican doctrine. It strikes us, that it would have comported better with the spirit of that doctrine, the dignity, of his own station and character, the respect and courtesy due to a sovereign and independent state, if governor Butler had made the proper representation, if the subject was deserving of such notice, to the acknowledged head and constituted authorities of that state, instead of holding official correspondence with a citizen of a foreign jurisdiction, and employing a secret agent and informer, whose very offer of such service was proof of the base and irresponsible character of him who made it.'"

* * * * *

GOVERNOR CONWAY'S LETTER.

EXECUTIVE DEPARTMENT, LITTLE ROCK, ARKANSAS, *March*
1, 1838.

Sir--A newspaper, headed '*The Emancipator*,' in which you are announced the 'publishing agent,' has, for some weeks past, arrived at the post office in this city, to my address. Not having subscribed, or authorized any individual to give my name as a subscriber, for that or any such paper, it is entirely *gratuitous* on the part of its publishers to send me a copy; and not having a favorable opinion of the *intentions* of the *authors and founders* of the '*American Anti-Slavery Society*;' I have to request a discontinuance of '*The Emancipator*.'

Your ob't servant, "J.S. CONWAY."

R. G. WILLIAMS, Esq., New York.

* * * * *

[NOTE.--The following extract of a letter, from the late Chief Justice Jay to the late venerable Elias Boudinot, dated Nov. 17, 1819, might well have formed part of Appendix E. Its existence, however, was not known till it was too late to insert it in its most appropriate place. It shows the view taken of some of the *constitutional* questions by a distinguished jurist,--one of the purest patriots too, by whom our early history was illustrated.]

"Little can be added to what has been said and written on the subject of slavery. I concur in the opinion, that it ought not to be *introduced, nor permitted* in any of the *new* states; and that it ought to be gradually diminished, and finally, abolished, in all of them.

To me, the *constitutional authority* of the Congress to prohibit the *migration* and *importation* of slaves into any of the states, does not appear questionable.

The first article of the Constitution specifics the legislative powers committed to Congress. The ninth section of that article has these words:--'The *migration* or *importation* of such persons as any of the *now existing* states shall think proper to admit, shall not be prohibited by the Congress prior to the year 1808--but a tax or duty may be

imposed on such importation not exceeding *ten dollars* for each person.'

I understand the sense and meaning of this clause to be, That the power of the Congress, although *competent to prohibit such migration and importation*, was not to be exercised with respect to the THEN existing states, and *them only*, until the year 1808; but that Congress were at liberty to make such prohibition as to any *new state* which might in the *meantime* be established. And further, that from and after *that* period, they were authorized to make such prohibition as to *all the states*, *whether new or old*.

Slaves were the persons intended. The word slaves was avoided, on account of the existing toleration of slavery, and its discordancy with the principles of the Revolution; and from a consciousness of its being repugnant to those propositions to the Declaration of Independence:-- 'We hold these truths to be self-evident--that all men are created equal--that they are endowed by their Creator with certain inalienable rights--and that, among these, are life, liberty, and the pursuit of happiness.'"

* * * * *

NO. 9.

THE ANTI-SLAVERY EXAMINER.

* * * * *

**LETTER
OF
GERRIT SMITH,
TO
HON. HENRY CLAY.**

* * * * *

NEW YORK:

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,
NO. 143 NASSAU STREET.
----- 1839.

* * * * *

This No. contains 3-1/2 sheets.--Postage, under 100 miles, 6 cts. over 100,
10 cts.

Please Read and circulate.

LETTER.

* * * * *

PETERBORO, MARCH 21, 1839.

HON. HENRY CLAY:

DEAR SIR,

In the Annual Meeting of the American Colonization Society, held in the Capitol in the city of Washington, December, 1835, you commented on a speech made by myself, the previous autumn. Your objections to that speech formed the principal subject matter of your remarks. Does not this fact somewhat mitigate the great presumption of which I feel myself guilty, in undertaking, all unhonored and humble as I am, to review the production of one of the most distinguished statesmen of the age?

Until the appearance of your celebrated speech on the subject of slavery, I had supposed that you cherished a sacred regard for the right of petition. I now find, that you value it no more highly than they do, who make open war upon it. Indeed, you admit, that, in relation to this right, "there is no substantial difference between" them and yourself. Instead of rebuking, you compliment them; and, in saying that "the majority of the Senate" would not "violate the right of petition in any case, in which, according to its judgment, the object of the petition could be safely or properly granted," you show to what destructive conditions you subject this absolute right. Your doctrine is, that in those cases, where the object of the petition is such, as the supplicated party can approve, previously to any discussion of its merits--there, and there only, exists the right of petition. For aught I see, you are no more to be regarded as the friend of this right, than is the conspicuous gentleman[A] who framed the Report on that subject, which was presented to the Senate of my state the last month. That gentleman admits the sacredness of "the right to petition on any subject;" and yet, in the same breath, he insists on the equal sacredness of the right to refuse to attend to a petition. He manifestly failed to bear in mind, that a right to petition implies the correlative right to be heard. How different are the statesmen, who insist "on the right to refuse to attend to a petition," from Him, who says, "Whoso stoppeth his ears at the cry of the poor, he also shall cry himself, but shall not be heard." And who are poor, if it be not those for whom the abolitionists cry? They must even cry by proxy. For, in the language of John Quincy Adams, the champion of the right of petition,

"The slave is not permitted to cry for mercy--to plead for pardon--to utter the shriek of perishing nature for relief." It may be well to remark, that the error, which I have pointed out in the Report in question, lies in the premises of the principal argument of that paper; and that the correction of this error is necessarily attended with the destruction of the premises, and with the overthrow of the argument, which is built upon them.

[Footnote [A](#): Colonel Young.]

I surely need not stop to vindicate the right of petition. It is a natural right--one that human laws can guarantee, but can neither create nor destroy. It is an interesting fact, that the Amendment to the Federal Constitution, which guarantees the right of petition, was opposed in the Congress of 1789 as superfluous. It was argued, that this is "a self-evident, inalienable right, which the people possess," and that "it would never be called in question." What a change in fifty years!

You deny the power of Congress to abolish the inter-state traffic in human beings; and, inasmuch as you say, that the right "to regulate commerce with foreign nations, and among the several states," does not include the right to prohibit and destroy commerce; and, inasmuch as it is understood, that it was in virtue of the right to regulate commerce, that Congress enacted laws to restrain our participation in the "African slave trade," you perhaps also deny, that Congress had the power to enact such laws. The history of the times in which the Federal Constitution was framed and adopted, justifies the belief, that the clause of that instrument under consideration conveys the power, which Congress exercised. For instance, Governor Randolph, when speaking in the Virginia Convention of 1788, of the clause which declares, that "the migration or importation of such persons as any of the states now existing shall think proper to admit, shall not be prohibited by Congress prior to the year 1808," said, "This is an exception from the power of regulating commerce, and the restriction is to continue only till 1808. Then Congress can, by the exercise of that power, prevent future importations."

Were I, however, to admit that the right "to regulate commerce," does not include the right to prohibit and destroy commerce, it nevertheless would not follow, that Congress might not prohibit or destroy certain branches of commerce. It might need to do so, in order to preserve our general

commerce with a state or nation. So large a proportion of the cloths of Turkey might be fraught with the contagion of the plague, as to make it necessary for our Government to forbid the importation of all cloths from that country, and thus totally destroy one branch of our commerce with it, to the end that the other branches might be preserved. No inconsiderable evidence that Congress has the right to prohibit or destroy a branch of commerce, is to be found in the fact, that it has done so. From March, 1794, to May, 1820, it enacted several laws, which went to prohibit or destroy, and, in the end, did prohibit or destroy the trade of this country with Africa in human beings. And, if Congress has the power to pass embargo laws, has it not the power to prohibit or destroy commerce altogether?

It is, however, wholly immaterial, whether Congress could prohibit our participation in the "African slave trade," in virtue of the clause which empowers it "to regulate commerce." That the Constitution does, in some one or more of its passages, convey the power, is manifest from the testimony of the Constitution itself. The first clause of the ninth section says: "The migration or importation of such persons, as any of the states now existing shall think proper to admit, shall not be prohibited by the Congress prior to they year 1808." Now the implication in this clause of the existence of the power in question, is as conclusive, as would be the express and positive grant of it. You will observe, too, that the power of Congress over "migration or importation," which this clause implies, is a power not merely to "regulate," as you define the word, but to "prohibit."

It is clear, then, that Congress had the power to interdict our trade in human beings with Africa. But, in view of what has been said on that point--in view of the language of the Federal Constitution--of the proceedings of the Convention, which framed it--and of the cotemporary public sentiment--is it any less clear, that Congress has the power to interdict the inter-state traffic in human beings?

There are some, who assert that the words "migration" and "importation," instead of referring, as I maintain they do--the former to the removal of slaves from state to state, and the latter to their introduction from Africa--are used in the Constitution as synonyms, and refer exclusively to the "African slave trade." But there is surely no ground for the imputation of such utter tautology, if we recollect that the Constitution was written by

scholars, and that remarkable pains were taken to clear it of all superfluous words--a Committee having been appointed for that special purpose. But, it may be asked, Why, in reference to the taking of slaves from one state to another, use the word "migration," which denotes voluntary removal? One answer is--that it can be used with as much propriety in that case, as in the removal of slaves from Africa--the removal in the one case being no less involuntary than in the other. Another answer is--that the framers of the Constitution selected the word "migration," because of its congruity with that of "persons," under which their virtuous shame sought to conceal from posterity the existence of seven hundred thousand slaves amongst a people, who had but recently entered upon their national career, with the solemn declaration, that "all men are created equal."

John Jay, whose great celebrity is partly owing to his very able expositions of the Constitution, says: "To me, the constitutional authority of the Congress to prohibit the migration *and* importation of slaves into any of the states, does not appear questionable." If the disjunctive between "migration" and "importation" in the Constitution, argues their reference to the same thing, Mr. Jay's copulative argues more strongly, that, in his judgment, they refer to different things.

The law of Congress constituting the "Territory of Orleans," was enacted in 1804. It fully recognizes the power of that body to prohibit the trade in slaves between a territory and the states. But, if Congress had this power, why had it not as clear a power to prohibit, at that time, the trade in slaves between any two of the states? It might have prohibited it, but for the constitutional suspension of the exercise of the power. The term of that suspension closed, however, in 1808; and, since that year, Congress has had as full power to abolish the whole slave trade between the states, as it had in 1804 to abolish the like trade between the Territory of Orleans and the states.

But, notwithstanding the conclusive evidence, that the Constitution empowers Congress to abolish the inter-state slave trade, it is incomprehensible to many, that such states as Virginia and Maryland should have consented to deprive themselves of the benefit of selling their slaves into other states. It is incomprehensible, only because they look upon such states in the light of their present character and present interests. It will no

longer be so, if they will bear in mind, that slave labor was then, as it is now, unprofitable for ordinary agriculture, and that Whitney's cotton-gin, which gave great value to such labor, was not yet invented, and that the purchase of Louisiana, which has had so great an effect to extend and perpetuate the dominion of slavery, was not yet made. It will no longer be incomprehensible to them, if they will recollect, that, at the period in question, American slavery was regarded as a rapidly decaying, if not already expiring institution. It will no longer be so, if they will recollect, how small was the price of slaves then, compared with their present value; and that, during the ten years, which followed the passage of the Act of Virginia in 1782, legalizing *manumissions*, her citizens emancipated slaves to the number of nearly one-twentieth of the whole amount of her slaves in that year. To learn whether your native Virginia clung in the year 1787 to the inter-state traffic in human flesh, we must take our post of observation, not amongst her degenerate sons, who, in 1836, sold men, women, and children, to the amount of twenty-four millions of dollars--not amongst her President Dews, who write books in favor of breeding human stock for exportation--but amongst her Washingtons, and Jeffersons, and Henrys, and Masons, who, at the period when the Constitution was framed, freely expressed their abhorrence of slavery.

But, however confident you may be, that Congress has not the lawful power to abolish the branch of commerce in question; nevertheless, would the abolition of it be so clearly and grossly unconstitutional, as to justify the contempt with which the numerous petitions for the measure are treated, and the impeachment of their fidelity to the Constitution, and of their patriotism and purity, which the petitioners are made to endure?

I was about to take it for granted, that, although you deny the power of Congress to abolish the inter-state traffic in human beings, you do not justify the traffic--when I recollected the intimation in your speech, that there is no such traffic. For, when you speak of "the slave trade between the states," and add--"or, as it is described in abolition petitions, the traffic in human beings between the states"--do you not intimate there is no such traffic? Whence this language? Do you not believe slaves are human beings? And do you not believe that they suffer under the disruption of the dearest earthly ties, as human beings suffer? I will not detain you to hear what we of the North think of this internal slave trade. But I will call your

attention to what is thought of it in your own Kentucky and in your native Virginia. Says the "Address of the Presbyterian Synod of Kentucky to the Churches in 1835:"--"Brothers and sisters, parents and children, husbands and wives, are torn asunder, and permitted to see each other no more. Those acts are daily occurring in the midst of us. The shrieks and the agony often witnessed on such occasions, proclaim with a trumpet tongue the iniquity and cruelty of the system. There is not a neighborhood where these heart-rending scenes are not displayed. There is not a village or road that does not behold the sad procession of manacled outcasts, whose chains and mournful countenances tell that they are exiled by force from all that their hearts hold dear." Says Thomas Jefferson Randolph, in the Virginia Legislature in 1832, when speaking of this trade: "It is a practice, and an increasing practice, in parts of Virginia, to rear slaves for market. How can an honourable mind, a patriot, and a lover of his country, bear to see this ancient dominion, rendered illustrious by the noble devotion and patriotism of her sons in the cause of liberty, converted into one grand menagerie, where men are to be reared for the market like oxen for the shambles. Is it better--is it not worse than the (foreign) slave trade--that trade which enlisted the labor of the good and wise of every creed and every clime to abolish? The (foreign) trader receives the slave, a stranger in language, aspect, and manner, from the merchant who has brought him from the interior. The ties of father, mother, husband, and child, have already been rent in twain; before he receives him, his soul has become callous. But here, sir, individuals whom the master has known from infancy, whom he has seen sporting in the innocent gambols of childhood--who have been accustomed to look to him for protection, he tears from the mother's arms, and sells into a strange country--among strange people, subject to cruel taskmasters."

You are in favor of increasing the number of slave states. The terms of the celebrated "Missouri compromise" warrant, in your judgment, the increase. But, notwithstanding you admit, that this unholy compromise, in which tranquillity was purchased at the expense of humanity and righteousness, does not "in terms embrace the case," and "is not absolutely binding and obligatory;" you, nevertheless, make no attempt whatever to do away any one of the conclusive objections, which are urged against such increase. You do not attempt to show how the multiplication of slave states can consist with the constitutional duty of the "United States to guarantee to

every state in the Union a republican form of government," any more than if it were perfectly clear, that a government is republican under which one half of the people are lawfully engaged in buying and selling the other half; or than if the doctrine that "all men are created equal" were not the fundamental and distinctive doctrine of a republican government. You no more vindicate the proposition to enlarge the realm of slavery, than if the proposition were as obviously in harmony with, as it is opposed to the anti-slavery tenor and policy of the Constitution--the rights of man--and the laws of God.

You are perhaps of the number of those, who, believing, that a state can change its Constitution as it pleases, deem it futile in Congress to require, that States, on entering the Union, shall have anti-slavery Constitutions. The Framers of the Federal Constitution doubtless foresaw the possibility of treachery, on the part of the new States, in the matter of slavery: and the restriction in that instrument to the old States--"the States now existing"--of the right to participate in the internal and "African slave trade" may be ascribed to the motive of diminishing, if not indeed of entirely preventing, temptation to such treachery. The Ordinance concerning the North-west Territory, passed by the Congress of 1787, and ratified by the Congress of 1790, shows, so far as those bodies can be regarded as correct interpreters of the Constitution which was framed in 1787, and adopted in 1789, that slavery was not to have a constitutional existence in the new States. The Ordinance continues the privilege of recapturing fugitive slaves in the North-west Territory to the "existing States." Slaves in that territory, to be the subjects of lawful recapture, must in the language of the Ordinance, owe "labour or service in one of the *original* States."

I close what I have to say on this topic, with the remark, that were it admitted, that the reasons for the increase of the number of slave States are sound and satisfactory, it nevertheless would not follow, that the moral and constitutional wrong of preventing that increase is so palpable, as to justify the scorn and insult, which are heaped by Congress upon this hundred thousand petitioners for this measure.

It has hitherto been supposed, that you distinctly and fully admitted the Constitutional power of Congress to abolish slavery in the District of Columbia. But, on this point, as on that of the right of petition, you have for

reasons known to yourself, suddenly and greatly changed your tone. Whilst your speech argues, at no small length, that Congress has not the right to abolish slavery in the District, all that it says in favor of the Constitutional power to abolish it, is that "the language (of the Constitution) may *possibly* be sufficiently comprehensive to include a power of abolition." "Faint praise dams;" and your very reluctant and qualified concession of the Constitutional power under consideration, is to be construed, rather as a denial than a concession.

Until I acquire the skill of making white whiter, and black blacker, I shall have nothing to say in proof of the Constitutional power of Congress over slavery in the District of Columbia, beyond referring to the terms, in which the Constitution so plainly conveys this power. That instrument authorises Congress "to exercise exclusive legislation in all cases whatsoever over such District." If these words do not confer the power, it is manifest that no words could confer it. I will add that, never, until the last few years, had doubts been expressed, that these words do fully confer that power.

You will, perhaps, say, that Virginia and Maryland made their *cessions* of the territory, which constitutes the District of Columbia, with reservations on the subject of slavery. We answer, that none were expressed;[\[A\]](#) and that if there had been, Congress would not, and in view of the language of the Constitution, could not, have accepted the *cessions*. You may then say, that they would not have ceded the territory, had it occurred to them, that Congress would have cleared it of slavery; and that, this being the fact, Congress could not thus clear it, without being guilty of bad faith, and of an ungenerous and unjustifiable surprise on those States. There are several reasons for believing, that those States, not only did not, at the period in question, cherish a dread of the abolition of slavery; but that the public sentiment within them was decidedly in favor of its speedy abolition. At that period, their most distinguished statesmen were trumpet-tongued against slavery. At that period, there was both a Virginia and a Maryland society "for promoting the abolition of slavery;" and, it was then, that, with the entire consent of Virginia and Maryland, effectual measures were adopted to preclude slavery from that large territory, which has since given Ohio and several other States to the Union. On this subject, as on that of the inter-state slave trade, we misinterpret Virginia and Maryland, by not considering, how unlike was their temper in relation to slavery, amidst the

decays and dying throes of that institution half a century ago, to what it is now, when slavery is not only revived, but has become the predominant interest and giant power of the nation. We forget, that our whole country was, at that time, smitten with love for the holy cause of impartial and universal liberty. To judge correctly of the view, which our Revolutionary fathers took of oppression, we must go back and stand by their side, in their struggles against it,--we must survey them through the medium of the anti-slavery sentiment of their own times, and not impute to them the pro-slavery spirit so rampant in ours.

[Footnote [A](#): There is a proviso in the Act of Virginia. It was on this, that three years ago, in the Senate of the United States, Benjamin Watkins Leigh built his argument against the constitutional power of Congress to abolish slavery in the District of Columbia. I well remember that you then denied the soundness of his argument. This superfluous proviso virtually forbids Congress to pass laws, which shall "affect the rights of individuals" in the ceded territory. Amongst the inviolable "rights" was that of holding slaves, as Mr. Leigh contended. I regret, that, in replying to him, you did not make use of the fact, that all the members of Congress from Virginia voted in favor of the Ordinance, which abolished slavery in the North-West Territory; and this too, notwithstanding, that, in the Act of 1784, by which she ceded the North-West Territory to the Confederacy, she provided, that the "citizens of Virginia" in the said Territory, many of whom held slaves, should "be protected in the enjoyment of their rights." This fact furnishes striking evidence that at, or about, the time of the cession by Virginia of her portion of the District of Columbia, her statesmen believed, that the right to hold slaves in those portions of our country under the exclusive jurisdiction of Congress, was not beyond the reach of the controlling power of Congress.]

I will, however, suppose it true, that Virginia and Maryland would not have made the *cessions* in question, had they foreseen, that Congress would abolish slavery in the District of Columbia:--and yet, I affirm, that it would be the duty of Congress to abolish it. Had there been State Prisons in the territory, at the time Congress acquired jurisdiction over it, and had Congress immediately opened their doors, and turned loose hundreds of depraved and bloody criminals, there would indeed have been abundant occasion for complaint. But, had the exercise of its power in the premises

extended no farther than to the liberation of such convicts, as, on a re-examination of their cases, were found to be clearly guiltless of the crimes charged upon them; the sternest justice could not have objected to such an occasion for the rejoicing of mercy. And are not the thousands in the District, for whose liberation Congress is besought, unjustly deprived of their liberty? Not only are they guiltless, but they are even unaccused of such crimes, as in the judgment of any, justly work a forfeiture of liberty. And what do Virginia and Maryland ask? Is it, that Congress shall resubject to their control those thousands of deeply wronged men? No--for this Congress cannot do. They ask, that Congress shall fulfil the tyrant wishes of these States. They ask, that the whole people of the United States--those who hate, as well as those who love slavery, shall, by their representatives, assume the guilty and awful responsibility of perpetuating the enslavement of their innocent fellow men:--of chaining the bodies and crushing the wills, and blotting out the minds of such, as have neither transgressed, nor even been accused of having transgressed, a single human law. And the crime, which Virginia and Maryland, and they, who sympathise with them, would have the nation perpetrate, is, not simply that of prolonging the captivity of those, who were slaves before the cession--for but a handful of them are now remaining in the District. Most of the present number became slaves under the authority of this guilty nation. Their wrongs originated with Congress: and Congress is asked, not only to perpetuate their oppression, but to fasten the yoke of slavery on generations yet unborn.

There are those, who advocate the recession of the District of Columbia. If the nation were to consent to this, without having previously exercised her power to "break every yoke" of slavery in the District, the blood of those so cruelly left there in "the house of bondage," would remain indelible and damning upon her skirts:--and this too, whether Virginia and Maryland did or did not intend to vest Congress with any power over slavery. It is enough, that the nation has the power "to deliver them that are drawn unto death, and those that are ready to be slain," to make her fearfully guilty before God, if she "forbear" to exercise it.

Suppose, I were to obtain a lease of my neighbor's barn for the single and express purpose of securing my crops; and that I should find, chained up in one of its dark corners, an innocent fellow man, whom that neighbor was subjecting to the process of a lingering death; ought I to pause and recall

President Wayland's, "Limitations of Human Responsibility," and finally let the poor sufferer remain in his chains; or ought I not rather, promptly to respond to the laws of my nature and my nature's God, and let him go free? But, to make this case analogous to that we have been considering--to that, which imposes its claims on Congress--we must strike out entirely the condition of the lease, and with it all possible doubts of my right to release the victim of my neighbor's murderous hate.

I am entirely willing to yield, for the sake of argument, that Virginia and Maryland, when ceding the territory which constitutes the District of Columbia, did not anticipate, and did not choose the abolition of slavery in it. To make the admission stronger, I will allow, that these States were, at the time of the cession, as warmly opposed to the abolition of slavery in the District as they are said to be now: and to make it stronger still, I will allow, that the abolition of slavery in the District would prove deeply injurious, not only to Virginia and Maryland but to the nation at large. And, after all these admissions, I must still insist, that Congress is under perfectly plain moral obligation to abolish slavery in the District of Columbia.

They, who are deterred from favoring the abolition of slavery in the District by the apprehension, that Virginia and Maryland, if not, indeed, the nation at large, might suffer injurious consequences from the measure, overlook the fact, that there is a third party in the case. It is common to regard the nation as constituting one of the parties--Virginia and Maryland another, and the only other. But in point of fact, there is a third party. Of what does it consist? Of horses, oxen, and other brutes? Then we need not be greatly concerned about it--since its rights in that case, would be obviously subordinate to those of the other parties. Again, if such be the composition of this third party, we are not to be greatly troubled, that President Wayland and thousands of others entirely overlook its rights and interests; though they ought to be somewhat mindful even of brutes. But, this third party is composed, not of brutes--but of men--of the seven thousand men in the District, who have fallen under the iron hoofs of slavery--and who, because they are men, have rights equal to, and as sacred as the rights of any other men--rights, moreover, which cannot be innocently encroached on, even to the breadth of one hair, whether under the plea of "state necessity"--of the perils of emancipation--or under any other plea, which conscience-smitten and cowardly tyranny can suggest.

If these lines shall ever be so favored, as to fall under the eye of the venerable and beloved John Quincy Adams, I beg, that, when he shall have read them, he will solemnly inquire of his heart, whether, if he should ever be left to vote against the abolition of slavery in the District of Columbia, and thus stab deeply the cause of civil liberty, of humanity, and of God; the guilty act would not result from overlooking the rights and interests, and even the existence itself, of a third party in the case--and from considering the claims of the nation and those of Virginia and Maryland, as the only claims on which he was called to pass, because they were the claims of the only parties, of which he was aware.

You admit that "the first duty of Congress in relation to the District, of Columbia, is to render it available, comfortable, and convenient as a seat of the government of the whole Union." I thank you for an admission, which can be used, with great effect, against the many, who maintain, that Congress is as much bound to consult the interests and wishes of the inhabitants of the District, and be governed by them, as a State Legislature is to study and serve the interests and wishes of its constituents. The inhabitants of the District have taken up their residence in it, aware, that the paramount object of Congressional legislation is not their, but the nation's advantage. They judge, that their disfranchisement and the other disadvantages attending their residence are more than balanced by their favorable position for participating in Governmental patronage and other benefits. They know, that they have no better right to complain, that the legislation of Congress is not dictated by a primary regard to their interests, than has the Colonization Society, of which you are President, to complain, that the Capitol, in which it holds its annual meetings, is not constructed and fitted up in the best possible manner for such occasions. They know, that to sacrifice the design and main object of that building to its occasional and incidental uses, would be an absurdity no greater than would Congress be guilty of in shaping its legislation to the views of the thirty thousand white inhabitants of the District of Columbia, at the expense of neglecting the will and interests of the nation.

You feel, that there is no hazard in your admission, that the paramount object in relation to the District of Columbia, is its suitableness for a seat of Government, since you accompany that admission with the denial, that the presence of slavery interferes with such suitableness. But is it not a matter

of deep regret, that the place, in which our national laws are made--that the place from which the sentiment and fashion of the whole country derive so much of their tone and direction--should cherish a system, which you have often admitted, is at war with the first principles of our religion and civil polity;[\[A\]](#) and the influences of which are no less pervading and controlling than corrupting? Is it not a matter of deep regret, that they, whom other governments send to our own, and to whom, on account of their superior intellect and influence, it is our desire, as it is our duty, to commend our free institutions, should be obliged to learn their lessons of practical republicanism amidst the monuments and abominations of slavery? Is it no objection to the District of Columbia, as the seat of our Government, that slavery, which concerns the political and moral interests of the nation, more than any other subject coming within the range of legislation, is not allowed to be discussed there--either within or without the Halls of Congress? It is one of the doctrines of slavery, that slavery shall not be discussed. Some of its advocates are frank enough to avow, as the reason for this prohibition, that slavery cannot bear to be discussed. In your speech before the American Colonization Society in 1835, to which I have referred, you distinctly take the ground, that slavery is a subject not open to general discussion. Very far am I from believing, that you would employ, or intentionally countenance violence, to prevent such discussion. Nevertheless, it is to this doctrine of non-discussion, which you and others put forth, that the North is indebted for her pro-slavery mobs, and the South for her pro-slavery Lynchings. The declarations of such men as Henry Clay and John C. Calhoun, that slavery is a question not to be discussed, are a license to mobs to burn up halls and break up abolition meetings, and destroy abolition presses, and murder abolition editors. Had such men held the opposite doctrine, and admitted, yea, and insisted, as it was their duty to do, that every question in morals and politics is a legitimate subject of free discussion--the District of Columbia would be far less objectionable, as the seat of our Government. In that case the lamented Dr. Crandall would not have been seized in the city of Washington on the suspicion of being an abolitionist, and thrown into prison, and subjected to distresses of mind and body, which resulted in his premature death. Had there been no slavery in the District, this outrage would not have been committed; and the murders, chargeable on the bloodiest of all bloody institutions, would have been one less than they now are. Talk of the slaveholding District of Columbia being

a suitable locality for the seat of our Government! Why, Sir, a distinguished member of Congress was threatened there with an indictment for the *crime* of presenting, or rather of proposing to present, a petition to the body with which he was connected! Indeed the occasion of the speech, on which I am now commenting, was the *impudent* protest of inhabitants of that District against the right of the American people to petition their own Congress, in relation to matters of vital importance to the seat of their own Government! I take occasion here to admit, that I have seen but references to this protest--not the protest itself. I presume, that it is not dissimilar, in its spirit, to the petition presented about the same time by Mr. Moore in the other House of Congress--his speech on which, he complains was ungenerously anticipated by yours on the petition presented by yourself. As the petition presented by Mr. Moore is short, I will copy it, that I may say to you with the more effect--how unfit is the spirit of a slaveholding people, as illustrated in this petition, to be the spirit of the people at the seat of a free Government!

[Footnote [A](#): "It (slavery) is a sin and a curse both to the master and the slave:"--*Henry Clay*.]

"To the Senate and House of Representatives of the United States:

The petition of the undersigned, citizens of the District of Columbia represents--That they have witnessed with deep regret the attempts which are making *to disturb the integrity* of the Union by a BAND OF FANATICS, embracing men, women, and children, who cease not day and night to crowd the tables of your halls with SEDITIOUS MEMORIALS--and solicit your honorable bodies that you will, in your wisdom, henceforth give neither support nor countenance to such UNHALLOWED ATTEMPTS, but that you will, in the most emphatic manner, set the seal of your disapprobation upon all such FOUL AND UNNATURAL EFFORTS, by refusing not only to READ and REFER, but also to RECEIVE any papers which either directly or indirectly, or by implication, aim at any interference with the rights of your petitioners, or of those of any citizen of any of the States or Territories of the United States, or of this District of which we are inhabitants."

A Legislature should be imbued with a free, independent, fearless spirit. But it cannot be, where discussion is overawed and interdicted, or its boundaries

at all contracted. Wherever slavery reigns, the freedom of discussion is not tolerated: and whenever slavery exists, there slavery reigns;--reigns too with that exclusive spirit of Turkish despotism, that, "bears no brother near the throne."

You agree with President Wayland, that it is as improper for Congress to abolish slavery in the District of Columbia, as to create it in some place in the free States, over which it has jurisdiction. As improper, in the judgment of an eminent statesman, and of a no less eminent divine, to destroy what they both admit to be a system of unrighteousness, as to establish it! As improper to restrain as to practice, a violation of God's law! What will other countries and coming ages think of the politics of our statesmen and the ethics of our divines?

But, besides its immorality, Congress has no Constitutional right to create slavery. You have not yet presumed to deny positively, that Congress has the right to abolish slavery in the District of Columbia; and, notwithstanding the intimation in your speech, you will not presume to affirm, that Congress has the Constitutional right to enact laws reducing to, or holding in slavery, the inhabitants of West Point, or any other locality in the free States, over which it has exclusive jurisdiction. I would here remark, that the law of Congress, which revived the operation of the laws of Virginia and Maryland in the District of Columbia, being, so far as it respects the slave laws of those States, a violation of the Federal Constitution, should be held of no avail towards legalizing slavery in the District--and the subjects of that slavery, should, consequently, be declared by our Courts unconditionally free.

You will admit that slavery is a system of surpassing injustice:--but an avowed object of the Constitution is to "establish justice." You will admit that it utterly annihilates the liberty of its victims:--but another of the avowed objects of the Constitution is to "secure the blessings of liberty." You will admit, that slavery does, and necessarily must, regard its victims as *chattels*. The Constitution, on the contrary, speaks of them as nothing short of *persons*. Roger Sherman, a signer of the Declaration of Independence, a framer of the Federal Constitution, and a member of the first Congress under it, denied that this instrument considers slaves "as a species of property." Mr. Madison, in the 54th No. of the Federalist admits, that the

Constitution "regards them as inhabitants." Many cases might be cited, in which Congress has, in consonance with the Constitution, refused to recognize slaves as property. It was the expectation, as well as the desire of the framers of the Constitution, that slavery should soon cease to exist in our country; and, but for the laws, which both Congress and the slave States, have, in flagrant violation of the letter and spirit and obvious policy of the Constitution, enacted in behalf of slavery, that vice would, ere this, have disappeared from our land. Look, for instance, at the laws enacted in the fact of the clause: "The citizens of each State shall be entitled to all the privileges and immunities of citizens in the several States"--laws too, which the States that enacted them, will not consent to repeal, until they consent to abandon slavery. It is by these laws, that they shut out the colored people of the North, the presence of a single individual of whom so alarms them with the prospect of a servile insurrection, that they immediately imprison him. Such was the view of the Federal Constitution taken by James Wilson one of its framers, that, without, as I presume, claiming for Congress any direct power over slavery in the slave States, he declared that it possessed "power to exterminate slavery from within our borders." It was probably under a like view, that Benjamin Franklin, another of its framers, and Benjamin Rush, a signer of the Declaration of Independence, and other men of glorious and blessed memory, petitioned the first Congress under the Constitution to "countenance the restoration to liberty of those unhappy men," (the slaves of our country). And in what light that same Congress viewed the Constitution may be inferred from the fact, that, by a special act, it ratified the celebrated Ordinance, by the terms of which slavery was forbidden for ever in the North West Territory. It is worthy of note, that the avowed object of the Ordinance harmonizes with that of the Constitution: and that the Ordinance was passed the same year that the Constitution was drafted, is a fact, on which we can strongly rely to justify a reference to the spirit of the one instrument for illustrating the spirit of the other. What the spirit of the Ordinance is, and in what light they who passed it, regarded "republics, their laws and constitutions," may be inferred from the following declaration in the Ordinance of its grand object: "For extending the fundamental principles of civil and religious liberty, which form the basis wherever these Republics, their laws and constitutions are erected; to fix and establish those principles as the basis of all laws, constitutions, and governments, which forever hereafter shall be formed in the said territory,

&c.; it is hereby ordained and declared that the following articles, &c." One of these articles is that, which has been referred to, and which declares that "there shall be neither slavery nor involuntary servitude in the said Territory."

You will perhaps make light of my reference to James Wilson and Benjamin Franklin, for I recollect you say, that, "When the Constitution was about going into operation, its powers were not well understood by the community at large, and remained to be accurately interpreted and defined." Nevertheless, I think it wise to repose more confidence in the views, which the framers of the Constitution took of the spirit and principles of that instrument, than in the definitions and interpretations of the pro-slavery generation, which has succeeded them.

It should be regarded as no inconsiderable evidence of the anti-slavery genius and policy of the Constitution, that Congress promptly interdicted slavery in the first portion of territory, and that, too, a territory of vast extent, over which it acquired jurisdiction. And is it not a perfectly reasonable supposition, that the seat of our Government would not have been polluted by the presence of slavery, had Congress acted on that subject by itself, instead of losing sight of it in the wholesale legislation, by which the laws of Virginia and Maryland were revived in the District?

If the Federal Constitution be not anti-slavery in its general scope and character; if it be not impregnated with the principles of universal liberty; why was it necessary, in order to restrain Congress, for a limited period, from acting against the slave trade, which is but a branch or incident of slavery, to have a clause to that end in the Constitution? The fact that the framers of the Constitution refused to blot its pages with the word "slave" or "slavery;" and that, by *periphrase* and the substitution of "persons" for "slaves," they sought to conceal from posterity and the world the mortifying fact, that slavery existed under a government based on the principle, that governments derive "their just powers from the consent of the governed," contains volumes of proof, that they looked upon American slavery as a decaying institution; and that they would naturally shape the Constitution to the abridgment and the extinction, rather than the extension and perpetuity of the giant vice of the country.

It is not to be denied, that the Constitution tolerates a limited measure of slavery: but it tolerates this measure only as the exception to its rule of impartial and universal liberty. Were it otherwise, the principles of that instrument could be pleaded to justify the holding of men as property, in cases, other than those specifically provided for in it. Were it otherwise, these principles might be appealed to, as well to sanction the enslavement of men, as the capture of wild beasts. Were it otherwise, the American people might be Constitutionally realizing the prophet's declaration: "they all lie in wait for blood: they hunt every man his brother with a net." But mere principles, whether in or out of the Constitution, do not avail to justify and uphold slavery. Says Lord Mansfield in the famous Somerset case: "The state of slavery is of such a nature, that it is incapable of being now introduced by courts of justice upon mere reasoning or inferences from any principles, natural or political; it must take its rise from *positive law*; the origin of it can in no country or age be traced back to any other source. A case so odious as the condition of slaves, must be taken strictly." Grotius says, that "slavery places man in an unnatural relation to man--a relation which nothing but positive law can sustain." All are aware, that, by the common law, man cannot have property in man; and that wherever that law is not counteracted on this point by positive law, "slaves cannot breathe," and their "shackles fall." I scarcely need add, that the Federal Constitution does, in the main, accord with the common law. In the words of a very able writer: "The common law is the grand element of the United States Constitution. All its fundamental provisions are instinct with its spirit; and its existence, principles, and paramount authority, are presupposed and assumed throughout the whole."

To argue the anti-slavery character of the Federal Constitution, it is not necessary to take the high ground of some, that whatever in the Constitution favors slavery is void, because opposed to the principles and general tenor of that instrument. Much less is it necessary to take the still higher ground, that every law in favor of slavery, in whatever code or connection it may be found, is utterly invalid because of its plain contravention of the law of nature. To maintain my position, that the Constitution is anti-slavery in its general character, and that constitutional slavery is, at the most, but an exception to that general character, it was not necessary to take either of these grounds; though, had I been disposed to take even the higher of them,

I should not have lacked the countenance of the most weighty authorities. "The law of nature," says Blackstone, "being coeval with mankind, and dictated by God himself, is of course superior in obligation to any other. It is binding over all the globe, in all countries, and at all times: no human laws are of any validity if contrary to this." The same writer says, that "The law of nature requires, that man should pursue his own true and substantial happiness." But that slavery allows this pursuit to its victims, no one will pretend. "There is a law," says Henry Brougham, "above all the enactments of human codes. It is the law written by the finger of God on the heart of man; and by that law, unchangeable and eternal, while men despise fraud, and loathe rapine, and abhor blood, they shall reject with indignation the wild and guilty phantasy, that man can hold property in man."

I add no more to what I have said on the subject of slavery in the District of Columbia, than to ask, as I have done in relation to the inter-state slave trade and the annexation of slave states, whether petitions for its abolition argue so great a contempt of the Constitution, and so entire a recklessness of propriety, as to merit the treatment which they receive at the hands of Congress. Admitting that Congress has not the constitutional power to abolish slavery in the District--admitting that it has not the constitutional power to destroy what itself has established--admitting, too, that if it has the power, it ought not to exercise it;--nevertheless, is the case so perfectly clear, that the petitioners for the measure deserve all the abuse and odium which their representatives in Congress heap upon them? In a word, do not the three classes of petitions to which you refer, merit, at the hands of those representatives, the candid and patient consideration which, until I read your acknowledgment, that, in relation to these petitions, "there is no substantial difference between" yourself and those, who are in favor of thrusting them aside undebated, unconsidered, and even unread, I always supposed you were willing to have bestowed on them?

I pass to the examination of your charges against the abolitionists.

They condemn the "rights of property."

This charge you prefer against the abolitionists, not because they believe that a Legislature has the right to abolish slavery, nor because they deny that slaves are legally property; for this obvious truth they do not deny. But

you prefer it, because they believe that man cannot rightfully be a subject of property.

Abolitionists believe, to use words, which I have already quoted, that it is "a wild and guilty phantasy, that man can hold property in man." They believe, that to claim property in the exalted being, whom God has made in His own image, and but "a little lower than the angels," is scarcely less absurd than to claim it in the Creator himself. You take the position, that human laws can rightfully reduce a race of men to property; and that the outrage, to use your own language, is "sanctioned and sanctified" by "two hundred years" continuance of it. Abolitionists, on the contrary, trace back man's inalienable self-ownership to enactments of the Divine Legislator, and to the bright morning of time, when he came forth from the hand of his Maker, "crowned with glory and honor," invested with self-control, and with dominion over the brute and inanimate creation. You soothe the conscience of the slaveholder, by reminding him, that the relation, which he has assumed towards his down-trodden fellow-man, is lawful. The abolitionist protests, that the wickedness of the relation is none the less, because it is legalized. In charging abolitionists with condemning "the rights of property," you mistake the innocent for the guilty party. Were you to be so unhappy as to fall into the hands of a kidnapper, and be reduced to a slave, and were I to remonstrate, though in vain, with your oppressor, who would you think was the despiser of "the rights of property"--myself, or the oppressor? As you would judge in that case, so judges every slave in his similar case.

The man-stealer's complaint, that his "rights of property" in his stolen fellow men are not adequately respected by the abolitionist, recalls to my mind a very similar, and but little more ludicrous case of conscientious regard for the "rights of property." A traveler was plundered of the whole of his large sum of money. He pleaded successfully with the robber for a little of it to enable him to reach his home. But, putting his hand rather deeper into the bag of stolen coins than comported with the views of the robber, he was arrested with the cry, "Why, man, have you no conscience?" You will perhaps inquire, whether abolitionists regard all the slaves of the South as stolen--as well those born at the South, as those, who were confessedly stolen from Africa? I answer, that we do--that every helpless new-born infant, on which the chivalry of the South pounces, is, in our judgment, the

owner of itself--that we consider, that the crime of man-stealing which is so terribly denounced in the Bible, does not consist, as is alleged, in stealing a slave from a third person, but in stealing him from himself--in depriving him of self control, and subjecting him, as property, to the absolute control of another. Joseph's declaration, that he "was stolen," favors this definition of man-stealing. Jewish Commentators authorise it. Money, as it does not own itself, cannot be stolen from itself But when we reflect, that man is the owner of himself, it does not surprise us, that wresting away his inalienable rights--his very manhood--should have been called man-stealing.

Whilst on this subject of "the rights of property," I am reminded of your "third impediment to abolition." This "impediment" consists in the fact of the great value of the southern slaves--which, according to your estimation, is not less than "twelve hundred millions of dollars." I will adopt your estimate, and thus spare myself from going into the abhorrent calculation of the worth in dollars and cents of immortal man--of the worth of "the image of God." I thank you for your virtual admission, that this wealth is grasped with a tenacity proportioned to its vast amount. Many of the wisest and best men of the North have been led into the belief that the slaveholders of the South are too humane and generous to hold their slaves for the sake of gain. Even Dr. Channing was a subject of this delusion; and it is well remembered, that his too favorable opinions of his fellow men, made it difficult to disabuse him of it. Northern Christians have been ready to believe, that the South would give up her slaves, because of her conscious lack of title to them. But in what age of the world have impenitent men failed to cling as closely to that, which they had obtained by fraud, as to their honest acquisitions? Indeed, it is demonstrable on philosophical principles, that the more stupendous the fraud, the more tenacious is the hold upon that, which is gotten by it. I trust, that your admission to which I have just referred, will have no small effect to prevent the Northern apologist for slavery from repeating the remark that the South would gladly liberate her slaves, if she saw any prospect of bettering the condition of the objects of her tender and solicitous benevolence. I trust, too, that this admission will go far to prove the emptiness of your declaration, that the abolitionists "have thrown back for half a century the prospect of any species of emancipation of the African race, gradual or immediate, in any of the states," and the emptiness of your declaration, that, "prior to the

agitation of this subject of abolition, there was a progressive melioration in the condition of slaves throughout all the slave states," and that "in some of them, schools of instruction were opened," &c.; and I further trust, that this admission will render harmless your intimation, that this "melioration" and these "schools" were intended to prepare the slaves for freedom. After what you have said of the great value of the slaves, and of the obstacle it presents to emancipation, you will meet with little success in your endeavors to convince the world, that the South was preparing to give up the "twelve hundred millions of dollars," and that the naughty abolitionists have postponed her gratification "for half a century." If your views of the immense value of the slaves, and of the consequent opposition to their freedom, be correct, then the hatred of the South towards the abolitionists must be, not because their movements tend to lengthen, but because they tend to shorten the period of her possession of the "twelve hundred millions of dollars." May I ask you, whether, whilst the South clings to these "twelve hundred millions of dollars," it is not somewhat hypocritical in her to be complaining, that the abolitionists are fastening the "twelve hundred millions of dollars" to her? And may I ask you, whether there is not a little inconsistency between your own lamentations over this work of the abolitionists, and your intimation that the South will never consent to give up her slaves, until the impossibility, of paying her "twelve hundred millions of dollars" for them, shall have been accomplished? Puerile and insulting as is your proposition to the abolitionists to raise "twelve hundred millions of dollars" for the purchase of the slaves, it is nevertheless instructive; inasmuch as it shows, that, in your judgment, the South is as little willing to give up her slaves, as the abolitionists are able to pay "twelve hundred millions of dollars" for them; and how unable the abolitionists are to pay a sum of money far greater than the whole amount of money in the world, I need not explain.

But if the South must have "twelve hundred millions of dollars" to induce her to liberate her present number of slaves, how can you expect success for your scheme of ridding her of several times the present number, "in the progress of some one hundred and fifty, or two hundred years?" Do you reply, that, although she must have "four hundred dollars" a-piece for them, if she sell them to the abolitionists, she is, nevertheless, willing to let the Colonization Society have them without charge? There is abundant proof,

that she is not. During the twenty-two years of the existence of that Society, not so many slaves have been emancipated and given to it for expatriation, as are born in a single week. As a proof that the sympathies of the South are all with the slaveholding and *real* character of this two-faced institution, and not at all with the abolition purposes and tendencies, which it professes at the North, none of its Presidents, (and slave-holders only are deemed worthy to preside over it,) has ever contributed from his stock of slaves to swell those bands of emigrants, who, leaving our shores in the character of "nuisances," are instantly transformed, to use your own language, into "missionaries, carrying with them credentials in the holy cause of Christianity, civilization, and free institutions." But you were not in earnest, when you held up the idea in your recent speech, that the rapidly multiplying millions of our colored countrymen would be expatriated. What you said on that point was but to indulge in declamation, and to round off a paragraph. It is in that part of your speech where you say that "no practical scheme for their removal or separation from us has yet been devised or proposed," that you exhibit your real sentiments on this subject, and impliedly admit the deceitfulness of the pretensions of the American Colonization Society.

Before closing my remarks on the topic of "the rights of property," I will admit the truth of your charge, that *Abolitionists deny, that the slaveholder is entitled to "compensation" for his slaves.*

Abolitionists do not know, why he, who steals men is, any more than he, who steals horses, entitled to "compensation" for releasing his plunder. They do not know, why he, who has exacted thirty years' unrequited toil from the sinews of his poor oppressed brother, should be paid for letting that poor oppressed brother labor for himself the remaining ten or twenty years of his life. But, it is said, that the South bought her slaves of the North, and that we of the North ought therefore to compensate the South for liberating them. If there are individuals at the North, who have sold slaves, I am free to admit, that they should promptly surrender their ill-gotten gains; and no less promptly should the inheritors of such gains surrender them. But, however this may be, and whatever debt may be due on this score, from the North to the South, certain it is, that on no principle of sound ethics, can the South hold to the persons of the innocent slaves, as security for the payment of the debt. Your state and mine, and I would it were so

with all others, no longer allow the imprisonment of the debtor as a means of coercing payment from him. How much less, then, should they allow the creditor to promote the security of his debt by imprisoning a third person--and one who is wholly innocent of contracting the debt? But who is imprisoned, if it be not he, who is shut up in "the house of bondage?" And who is more entirely innocent than he, of the guilty transactions between his seller and buyer?

Another of your charges against abolitionists is, that, although "utterly destitute of Constitutional or other rightful power--living in totally distinct communities--as alien to the communities in which the subject on which they would operate resides, so far as concerns political power over that subject, as if they lived in Africa or Asia; they nevertheless promulgate to the world their purpose to be, to manumit forthwith, and without compensation, and without moral preparation, three millions of negro slaves, under jurisdictions altogether separated from those under which they live."

I will group with this charge several others of the same class.

1. Abolitionists neglect the fact, that "the slavery which exists amongst us (southern people) is our affair--not theirs--and that they have no more just concern with it, than they have with slavery as it exists throughout the world."

2. They are regardless of the "deficiency of the powers of the General Government, and of the acknowledged and incontestable powers of the States."

3. "Superficial men (meaning no doubt abolitionists) confound the totally different cases together of the powers of the British Parliament and those of the Congress of the United States in the matter of slavery."_

Are these charges any thing more than the imagery of your own fancy, or selections from the numberless slanders of a time-serving and corrupt press? If they are founded on facts, it is in your power to state the facts. For my own part, I am utterly ignorant of any, even the least, justification for them. I am utterly ignorant that the abolitionists hold any peculiar views in relation to the powers of the General or State Governments. I do not

believe, that one in a hundred of them supposes, that slavery in the states is a legitimate subject of federal legislation. I believe, that a majority of the intelligent men amongst them accord much more to the claims of "state sovereignty," and approach far more nearly to the character of "strict constructionists," than does the distinguished statesman, who charges them with such latitudinarian notions. There may be persons in our country, who believe that Congress has the absolute power over all American slavery, which the British Parliament had over all British slavery; and that Congress can abolish slavery in the slave states, because Great Britain abolished it in her West India Islands; but, I do not know them; and were I to look for them, I certainly should not confine my search to abolitionists--for abolitionists, as it is very natural they should be, are far better instructed in the subject of slavery and its connections with civil government, than are the community in general.

It is passing strange, that you, or any other man, who is not playing a desperate game, should, in the face of the Constitution of the American Anti-Slavery Society, which "admits, that each state, in which slavery exists, has, by the Constitution of the United States, the exclusive right to legislate in regard to the abolition of slavery in said state;" make such charges, as you have done.

In an Address "To the Public," dated September 3, 1835, and subscribed by the President, Treasurer, the three Secretaries, and the other five members of the Executive Committee of the American Anti-Slavery Society, we find the following language. 1. "We hold that Congress has no more right to abolish slavery in the Southern states than in the French West India Islands. Of course we desire no national legislation on the subject. 2. We hold that slavery can only be lawfully abolished by the legislatures of the several states in which it prevails, and that the exercise of any other than moral influence to induce such abolition is unconstitutional."

But what slavery is it that the abolitionists call on Congress to abolish? Is it that in the slave states? No--it is that in the District of Columbia and in the territories--none other. And is it not a fair implication of their petitions, that this is the only slavery, which, in the judgment of the petitioners, Congress has power to abolish? Nevertheless, it is in the face of this implication, that you make your array of charges.

Is it true, however, that the North has nothing more to do with slavery in the states, than with slavery in a foreign country? Does it not concern the North, that, whilst it takes many thousands of her voters to be entitled to a representative in Congress, there are districts at the South, where, by means of slavery, a few hundred voters enjoy this benefit. Again, since the North regards herself as responsible in common with the South, for the continuance of slavery in the District of Columbia and in the Territories, and for the continuance of the interstate traffic in human beings; and since she believes slavery in the slave states to be the occasion of these crimes, and that they will all of necessity immediately cease when slavery ceases--is it not right, that she should feel that she has a "just concern with slavery?" Again, is it nothing to the people of the North, that they may be called on, in obedience to a requirement of the federal constitution, to shoulder their muskets to quell "domestic violence?" But, who does not know, that this requirement owes its existence solely to the apprehension of servile insurrections?--or, in other words, to the existence of slavery in the slave states? Again, when our guiltless brothers escape from the southern prison-house, and come among us, we are under constitutional obligation to deliver them up to their stony-hearted pursuers. And is not slavery in the slave states, which is the occasion of our obligation to commit this outrage on humanity and on the law of God, a matter of "just concern to us?" To what too, but slavery, in the slave states, is to be ascribed the long standing insult of our government towards that of Hayti? To what but that, our national disadvantages and losses from the want of diplomatic relations between the two governments? To what so much, as to slavery in the slave states, are owing the corruption in our national councils, and the worst of our legislation? But scarcely any thing should go farther to inspire the North with a sense of her "just concern" in the subject of slavery in the slave states, than the fact, that slavery is the parent of the cruel and murderous prejudice, which crushes and kills her colored people; and, that it is but too probable, that the child will live as long as its parent. And has the North no "just concern" with the slavery of the slave states, when there is so much reason to fear that our whole blood-guilty nation is threatened with God's destroying wrath on account of it?

There is another respect in which we of the North have a "just concern" with the slavery of the slave states. We see nearly three millions of our

fellow men in those states robbed of body, mind, will, and soul--denied marriage and the reading of the Bible, and marketed as beasts. We see them in a word crushed in the iron folds of slavery. Our nature--the laws written upon its very foundations--the Bible, with its injunctions "to remember them that are in bonds as bound with them," and to "open thy mouth for the dumb in the cause of all such as are appointed to destruction"--all require us to feel and to express what we feel for these wretched millions. I said, that we see this misery. There are many amongst us--they are anti-abolitionists--who do not see it; and to them God says; "but he that hideth his eyes shall have many a curse."

I add, that we of the North must feel concerned about slavery in the slave states, because of our obligation to pity the deluded, hard-hearted, and bloody oppressors in those states: and to manifest our love for them by rebuking their unsurpassed sin. And, notwithstanding pro-slavery statesmen at the North, who wink at the iniquity of slave holding, and pro-slavery clergymen at the North, who cry, "peace, peace" to the slaveholder, and sew "pillows to armholes," tell us, that by our honest and open rebuke of the slaveholder, we shall incur his enduring hatred; we, nevertheless, believe that "open rebuke is better than secret love," and that, in the end, we shall enjoy more Southern favor than they, whose secret love is too prudent and spurious to deal faithfully with the objects of its regard. "He that rebuketh a man, afterward shall find more favor than he that flattereth with the tongue." The command, "thou shall in any wise rebuke thy neighbor and not suffer sin upon him," is one, which the abolitionist feels, that he is bound to obey, as well in the case of the slaveholder, as in that of any other sinner. And the question: "who is my neighbor," is so answered by the Savior, as to show, that not he of our vicinity, nor even he of our country, is alone our "neighbor."

The abolitionists of the North hold, that they have certainly as much "just concern" with slavery in the slave states, as the temperance men of the North have with "intemperance" at the South. And I would here remark, that the weapons with which the abolitionists of the North attack slavery in the slave states are the same, and no other than the same, with those, which the North employs against the vice of intemperance at the South. I add too, that were you to say, that northern temperance men disregard "the deficiency of the powers of the General Government," and also "the acknowledged and

incontestable powers of the states;" your charge would be as suitable as when it is applied to northern abolitionists.

You ascribe to us "the purpose to manumit the three millions of negro slaves." Here again you greatly misrepresent us, by holding us up as employing coercive, instead of persuasive, means for the accomplishment of our object. Our "purpose" is to persuade others to "manumit." The slaveholders themselves are to "manumit." It is evident, that others cannot "manumit" for them. If the North were endeavoring to persuade the South to give up the growing of cotton, you would not say, it is the purpose of the North to give it up. But, as well might you, as to say, that it is the "purpose" of the abolitionists to "manumit." It is very much by such misrepresentations, that the prejudices against abolitionists are fed and sustained. How soon they would die of atrophy, if they, who influence the public mind and mould public opinion, would tell but the simple truth about abolitionists.

You say, that the abolitionists would have the slaves manumitted "without compensation and without moral preparation." I have already said enough on the point of "compensation." It is true, that they would have them manumitted immediately:--for they believe slavery is sin, and that therefore the slaveholder has no right to protract the bondage of his slaves for a single year, or for a single day or hour;--not even, were he to do so to afford them "a moral preparation" for freedom, or to accomplish any other of the kindest and best purposes. They believe, that the relation of slaveholder, as it essentially and indispensably involves the reduction of men to chattelship, cannot, under any plea whatever, be continued with innocence, for a single moment. If it can be--if the plain laws of God, in respect to marriage and religious instruction and many other blessings, of which chattelized man is plundered, can be innocently violated--why credit any longer the assertion of the Bible, that "sin is the transgression of the law?"--why not get a new definition of sin?

Another reason with abolitionists in favor of immediate manumission, is, that the slaves do not, as a body, acquire, whilst in slavery, any "moral preparation" for freedom. To learn to swim we must be allowed the use of water. To learn the exercises of a freeman, we must enjoy the element of liberty. I will not say, that slaves cannot be taught, to some extent, the duties

of freemen. Some knowledge of the art of swimming may be acquired before entering the water. I have not forgotten what you affirm about the "progressive melioration in the condition of slaves," and the opening of "schools of instruction" for them "prior to the agitation of the subject of abolition;" nor, have I forgotten, that I could not read it without feeling, that the creations of your fancy, rather than the facts of history, supplied this information. Instances, rare instances, of such "melioration" and of such "schools of instruction," I doubt not there have been: but, I am confident, that the Southern slaves have been sunk in depths of ignorance proportioned to the profits of their labor. I have not the least belief, that the proportion of readers amongst them is one half so great, as it was before the invention of Whitney's cotton gin.

Permit me to call your attention to a few of the numberless evidences, that slavery is a poor school for "moral preparation" for freedom. 1st. Slavery turns its victims into thieves. "Who should be astonished," says Thomas S. Clay, a very distinguished slaveholder of Georgia, "if the negro takes from the field or corn-house the supplies necessary for his craving appetite and then justifies his act, and denies that it is stealing?" What debasement in the slave does the same gentleman's remedy for theft indicate? "If," says he, "the negro is informed, that if he does not steal, he shall receive rice as an allowance; and if he does steal, he shall not, a motive is held out which will counteract the temptation to pilfer." 2nd. Slavery reeks with licentiousness. Another son of the South says, that the slaveholder's kitchen is a brothel, and a southern village a Sodom. The elaborate defence of slavery by Chancellor Harper of South Carolina justifies the heaviest accusations, that have been brought against it on the score of licentiousness. How could you blame us for deeply abhorring slavery, even were we to view it in no other light than that in which the Dews and Harpers and its other advocates present it? 3rd. Slavery puts the master in the place of God, and the master's law in the place of God's law! "The negro," says Thomas S. Clay, "is seldom taught to feel, that he is punished for breaking God's law! He only knows his master as law-giver and executioner, and the sole object held up to his view is to make him a more obedient and profitable slave. He oftener hears that he shall be punished if he steals, than if he breaks the Sabbath or swears; and thus he sees the very threatenings of God brought to bear on his master's interests. It is very manifest to him, that his own good is very far

from forming the primary reason for his chastisement: his master's interests are to be secured at all events;--God's claims are secondary, or enforced merely for the purpose of advancing those of his owner. His own benefit is the residuum after this double distillation of moral motive--a mere accident." 4th. The laws of nearly all the slave-states forbid the teaching of the slaves to read. The abundant declarations, that those laws are without exception, a consequence of the present agitation of the question of slavery are glaringly false. Many of these laws were enacted long before this agitation; and some of them long before you and I were born. Say the three hundred and fifty-three gentlemen of the District of Abbeville and Edgefield in South Carolina, who, the last year, broke up a system of oral religious instruction, which the Methodist Conference of that State had established amongst their slaves: "Intelligence and slavery have no affinity for each other." And when those same gentlemen declare, that "verbal and lecturing instruction will increase a desire with the black population to learn"--that "the progress and diffusion of knowledge will be a consequence"--and that "a progressive system of improvement will be introduced, that will ultimately revolutionize our civil institutions," they admit, that the prohibition of "intelligence" to the slaves is the settled and necessary policy of slavery, and not, as you would have us believe, a temporary expedient occasioned by the present "agitation of this subject of abolition." 5th. Slavery--the system, which forbids marriage and the reading of the Bible--does of necessity turn its subjects into heathens. A Report of the Synod of South Carolina and Georgia, made five years ago, says: "Who could credit it, that in these years of revival and benevolent effort--that, in this Christian Republic, there are over two millions of human beings in the condition of heathen, and in some respects in a worse condition? They may be justly considered the heathen of this Christian country, and will bear comparison with heathen in any country in the world." I will finish what I have to say on this point of "moral preparation" for freedom, with the remark, that the history of slavery in no country warrants your implication, that slaves acquire such "moral preparation." The British Parliament substituted an apprenticeship for slavery with the express design, that it should afford a "moral preparation" for freedom. And yet, if you will read the reports of late visitors to the British West Indies, you will find, that the planters admit, that they made no use of the advantages of the apprenticeship to prepare their servants for liberty. Their own gain--not the

slaves'--was their ruling motive, during the term of the apprenticeship, as well as preceding it.

Another of your charges is, *that the abolitionists "have increased the rigors of legislation against slaves in most if not all the slave States."*

And suppose, that our principles and measures have occasioned this evil--are they therefore wrong?--and are we, therefore, involved in sin? The principles and measures of Moses and Aaron were the occasion of a similar evil. Does it follow, that those principles and measures were wrong, and that Moses and Aaron were responsible for the sin of Pharaoh's increased oppressiveness? The truth, which Jesus Christ preached on the earth, is emphatically peace: but its power on the depravity of the human heart made it the occasion of division and violence. That depravity was the guilty cause of the division and violence. The truth was but the innocent occasion of them. To make it responsible for the effects of that depravity would be as unreasonable, as it is to make the holy principles of the anti-slavery cause responsible for the wickedness which they occasion: and to make the great Preacher Himself responsible for the division and violence, would be but to carry out the absurdity, of which the public are guilty, in holding abolitionists responsible for the mobs, which are got up against them. These mobs, by the way, are called "abolition mobs." A similar misnomer would pronounce the mob, that should tear down your house and shoot your wife, "Henry Clay's mob." Harriet Martineau, in stating the fact, that the mobs of 1834, in the city of New York, were set down to the wrong account, says, that the abolitionists were told, that "they had no business to scare the city with the sight of their burning property and demolished churches!"

No doubt the light of truth, which the abolitionists are pouring into the dark den of slavery, greatly excites the monster's wrath: and it may be, that he vents a measure of it on the helpless and innocent victims within his grasp. Be it so;--it is nevertheless, not the Ithuriel spear of truth, that is to be held guilty of the harm:--it is the monster's own depravity, which cannot

"endure

Touch of celestial temper, but returns
Of force to its own likeness."[\[A\]](#)

[Footnote [A](#): This is a reference to a passage in Milton's *Paradise Lost*, in which Satan in disguise is touched by the spear of the archangel Ithuriel and is thereby forced to return to his own form.]

I am, however, far from believing, that the treatment of the slaves is rendered any more rigorous and cruel by the agitation of the subject of slavery. I am very far from believing, that it is any harsher now than it was before the organization of the American Anti-Slavery Society. Fugitive slaves tell us, it is not: and, inasmuch as the slaveholders are, and, by both words and actions, abundantly show, that they feel that they are, arraigned by the abolitionists before the bar of the civilized world, to answer to the charges of perpetrating cruelties on their slaves, it would, unless indeed, they are of the number of those "whose glory is in their shame," be most unphilosophical to conclude, that they are multiplying proofs of the truth of those charges, more rapidly than at any former stage of their barbarities. That slaveholders are not insensible to public opinion and to the value of a good character was strikingly exhibited by Mr. Calhoun, in his place in the Senate of the United States, when he followed his frank disclaimer of all suspicion, that the abolitionists are meditating a war against the slaveholder's person, with remarks evincive of his sensitiveness under the war, which they are waging against the slaveholder's character.

A fact occurs to me, which goes to show, that the slaveholders feel themselves to be put upon their good behavior by the abolitionists. Although slaves are murdered every day at the South, yet never, until very recently, if at all, has the case occurred, in which a white man has been executed at the South for the murder of a slave. A few months ago, the Southern newspapers brought us copies of the document, containing the refusal of Governor Butler of South Carolina to pardon a man, who had been convicted of the murder of a slave. This document dwells on the protection due to the slave; and, if I fully recollect its character, an abolitionist himself could hardly have prepared a more appropriate paper for the occasion. Whence such a document--whence, in the editorial captions to this document, the exultation over its triumphant *refutations* of the slanders of the abolitionists against the South--but, that Governor Butler feels--but, that the writes of those captions feel--that the abolitionists have put the South upon her good behavior.

Another of your charges is, *that the abolitionists oppose "the project of colonisation."*

Having, under another head, made some remarks on this "project," I will only add, that we must oppose the American Colonization Society, because it denies the sinfulness of slavery, and the duty of immediate, unqualified emancipation. Its avowed doctrine is, that, unless emancipation be accompanied by expatriation, perpetual slavery is to be preferred to it. Not to oppose that Society, would be the guiltiest treachery to our holy religion, which requires immediate and unconditional repentance of sin. Not to oppose it, would be to uphold slavery. Not to oppose it, would be to abandon the Anti-Slavery Society. Do you ask, why, if this be the character of the American Colonization Society, many, who are now abolitionists, continued in it so long? I answer for myself, that, until near the period of my withdrawal from it, I had very inadequate conceptions of the wickedness, both of that Society, and of slavery. For having felt the unequalled sin of slavery no more deeply--for feeling it now no more deeply, I confess myself to be altogether without excuse. The great criminality of my long continuance in the Colonization Society is perhaps somewhat palliated by the fact, that the strongest proofs of the wicked character and tendencies of the Society were not exhibited, until it spread out its wing over slavery to shelter the monster from the earnest and effective blows of the American Anti-Slavery Society.

Another of your charges is, that the abolitionists, in declaring "that their object is not to stimulate the action of the General Government, *but to operate upon the States themselves, in which the institution of domestic slavery exists,*" are evidently insincere, since the *"abolition societies and movements are all confined to the free States."*

I readily admit, that our object is the abolition of slavery, as well in the slave States, as in other portions of the Nation, where it exists. But, does it follow, because only an insignificant share of our "abolition societies and movements" is in those States, that we therefore depend for the abolition of slavery in them on the General Government, rather than on moral influence? I need not repeat, that the charge of our looking to the General Government for such abolition is refuted by the language of the Constitution of the Anti-Slavery Society. You may, however, ask--"why, if

you do not look to the General Government for it, is not the great proportion of your means of moral influence in the slave States, where is the great body of the slaves?" I answer that, in the first place, the South does not permit us to have them there; and that, in the words of one of your fellow Senators, and in the very similar words of another--both uttered on the floor of the Senate--"if the abolitionists come to the South, the South will hang them." Pardon the remark, that it seems very disingenuous in you to draw conclusions unfavorable to the sincerity of the abolitionists from premises so notoriously false, as are those which imply, that it is entirely at their own option, whether the abolitionists shall have their "societies and movements" in the free or slave States. I continue to answer your question, by saying, in the second place, that, had the abolitionists full liberty to multiply their "societies and movements" in the slave States, they would probably think it best to have the great proportion of them yet awhile in the free States. To rectify public opinion on the subject of slavery is a leading object with abolitionists. This object is already realized to the extent of a thorough anti-slavery sentiment in Great Britain, as poor Andrew Stevenson, for whom you apologise, can testify. Indeed, the great power and pressure of that sentiment are the only apology left to this disgraced and miserable man for uttering a bald falsehood in vindication of Virginia morals. He above all other men, must feel the truth of the distinguished Thomas Fowell Buxton's declaration, that "England is turned into one great Anti-Slavery Society." Now, Sir, it is such a change, as abolitionists have been the instruments of producing in Great Britain, that we hope to see produced in the free States. We hope to see public sentiment in these States so altered, that such of their laws, as uphold and countenance slavery, will be repealed--so altered, that the present brutal treatment of the colored population in them will give place to a treatment dictated by justice, humanity, and brotherly and Christian love;--so altered, that there will be thousands, where now there are not hundreds, to class the products of slave labor with other stolen goods, and to refuse to eat and to wear that, which is wet with the tears, and red with the blood of "the poor innocents," whose bondage is continued, because men are more concerned to buy what is cheap, than what is honestly acquired;--so altered, that our Missionary and other religious Societies will remember, that God says: "I hate robbery for burnt-offering," and will forbear to send their agents after that plunder, which, as it is obtained at the sacrifice of the body and soul of the

plundered, is infinitely more unfit, than the products of ordinary theft, to come into the Lord's treasury. And, when the warm desires of our hearts, on these points, shall be realized, the fifty thousand Southerners, who annually visit the North, for purposes of business and pleasure, will not all return to their homes, self-complacent and exulting, as now, when they carry with them the *suffrages* of the North in favor of slavery: but numbers of them will return to pursue the thoughts inspired by their travels amongst the enemies of oppression--and, in the sequel, they will let their "oppressed go free."

It were almost as easy for the sun to call up vegetation by the side of an iceberg, as for the abolitionists to move the South extensively, whilst their influence is counteracted by a pro-slavery spirit at the North. How vain would be the attempt to reform the drunkards of your town of Lexington, whilst the sober in it continue to drink intoxicating liquors! The first step in the reformation is to induce the sober to change their habits, and create that total abstinence-atmosphere, in the breathing of which, the drunkard lives,--and, for the want of which, he dies. The first step, in the merciful work of delivering the slaveholder from his sin, is similar. It is to bring him under the influence of a corrected public opinion--of an anti-slavery sentiment:--and they, who are to be depended on to contribute to this public opinion--to make up this anti-slavery sentiment--are those, who are not bound up in the iron habits, and blinded by the mighty interests of the slaveholder. To depend on slaveholders to give the lead to public opinion in the anti-slavery enterprise, would be no less absurd, than to begin the temperance reformation with drunkards, and to look to them to produce the influences, which are indispensable to their own redemption.

You say of the abolitionists, *that "they are in favor of amalgamation."*

The Anti-Slavery Society is, as its name imports, a society to oppose slavery--not to "make matches." Whether abolitionists are inclined to amalgamation more than anti-abolitionists are, I will not here take upon myself to decide. So far, as you and I may be regarded as representatives of these two parties, and so far as our marriages argue our tastes in this matter, the abolitionists and anti-abolitionists may be set down, as equally disposed to couple white with white and black with black--for our wives, as you are aware, are both white. I will here mention, as it may further argue the

similarity in the matrimonial tastes of abolitionists and anti-abolitionists, the fact so grateful to us in the days, when we were "workers together" in promoting the "scheme of Colonization," that our wives are natives of the same town.

I have a somewhat extensive acquaintance at the North; and I can truly say, that I do not know a white abolitionist, who is the reputed father of a colored child. At the South there are several hundred thousand persons, whose yellow skins testify, that the white man's blood courses through their veins. Whether the honorable portion of their parentage is to be ascribed exclusively to the few abolitionists scattered over the South--and who, under such supposition, must, indeed, be prodigies of industry and prolificness--or whether anti-abolitionists there have, notwithstanding all their pious horror of "amalgamation," been contributing to it, you can better judge than myself.

That slavery is a great amalgamator, no one acquainted with the blended colors of the South will, for a moment, deny. But, that an increasing amalgamation would attend the liberation of the slaves, is quite improbable, when we reflect, that the extensive occasions of the present mixture are the extreme debasement of the blacks and their entire subjection to the will of the whites; and that even should the debasement continue under a state of freedom, the subjection would not. It is true, that the colored population of our country might in a state of freedom, attain to an equality with the whites; and that a multiplication of instances of matrimonial union between the two races might be a consequence of this equality: but, beside, that this would be a lawful and sinless union, instead of the adulterous and wicked one, which is the fruit of slavery, would not the improved condition of our down-trodden brethren be a blessing infinitely overbalancing all the violations of our taste, which it might occasion? I say violations of *our* taste;--for we must bear in mind that, offensive as the intermixture of different races may be to us, the country or age, which practices it, has no sympathy whatever with our feeling on this point.

How strongly and painfully it argues the immorality and irreligion of the American people, that they should look so complacently on the "amalgamation," which tramples the seventh commandment under foot, and yet be so offended at that, which has the sanction of lawful wedlock! When

the Vice President of this Nation was in nomination for his present office, it was objected to him, that he had a family of colored children. The defence, set up by his partisans, was, that, although he had such a family, he nevertheless was not married to their mother! The defence was successful; and the charge lost all its odiousness; and the Vice President's popularity was retrieved, when, it turned out, that he was only the adulterous, and not the married father of his children!

I am aware, that many take the ground, that we must keep the slaves in slavery to prevent the matrimonial "amalgamation," which, they apprehend, would be a fruit of freedom. But, however great a good, abolitionists might deem the separation of the white and black races, and however deeply they might be impressed with the power of slavery to promote this separation, they nevertheless, dare not "do evil, that good may come:"--they dare not seek to promote this separation, at the fearful expense of upholding, or in anywise, countenancing a humanity-crushing and God-defying system of oppression.

Another charge against the abolitionists is implied in the inquiry you make, *whether since they do not "furnish in their own families or persons examples of intermarriage, they intend to contaminate the industrious and laborious classes of society of the North by a revolting admixture of the black element."*

This inquiry shows how difficult it is for southern minds, accustomed as they have ever been to identify labor with slavery, to conceive the true character and position of such "classes" at the North; and also how ignorant they are of the composition of our Anti-Slavery societies. To correct your misapprehensions on these points, I will briefly say, in the first place, that the laborers of the North are freemen and not slaves;--that they marry whom they please, and are neither paired nor unpaired to suit the interests of the breeder, or seller, or buyer, of human stock:--and, in the second place, that the abolitionists, instead of being a body of persons distinct from "the industrious and laborious classes," do, more than nineteen twentieths of them, belong to those "classes." You have fallen into great error in supposing, that *abolitionists* generally belong to the wealthy and aristocratic classes. This, to a great extent, is true of *anti-abolitionists*. Have you never

heard the boast, that there have been anti-abolition mobs, which consisted of "gentlemen of property and standing?"

You charge upon abolitionists *"the purpose to create a pinching competition between black labor and white labor;"* and add, that *"on the supposition of abolition the black class, migrating into the free states, would enter into competition with the white class, diminishing the wages of their labor."*

In making this charge, as well as in making that which immediately precedes it, you have fallen into the error, that abolitionists do not belong to "the industrious and laborious classes." In point of fact, the abolitionists belong so generally to these classes, that if your charge be true, they must have the strange "purpose" of "pinching" themselves.

Whether "the black class" would, or would not migrate, I am much more pleased to have you say what you do on this point, though it be at the expense of your consistency, than to have you say, as you do in another part of your speech, that abolition "would end in the extermination or subjugation of the one race or the other."

It appears to me highly improbable, that emancipation would be followed by the migration of the emancipated. Emancipation, which has already added fifty per cent. to the value of estates in the British West Indies, would immediately add as much to the value of the soil of the South. Much more of it would be brought into use; and, notwithstanding the undoubted truth, that the freedman performs twice as much labor as when a slave, the South would require, instead of any diminution, a very great increase of the number of her laborers. The laboring population of the British West India Islands, is one-third as large as that of the southern states; and yet, since these islands have got rid of slavery, and have entered on their career of enterprize and industry, they find this population, great as it is, insufficient to meet the increased demand for labor. As you are aware, they are already inviting laborers of this and other countries to supply the deficiency. But what is the amount of cultivable land in those islands, compared with that in all the southern states? It is not so extensive as the like land in your single state.

But you may suppose, that, in the event of the emancipation of her slaves, the South would prefer white laborers. I know not why she should. Such

are, for the most part, unaccustomed to her kinds of labor, and they would exact, because they would need, far greater wages than those, who had never been indulged beyond the gratification of their simplest wants. There is another point of view, in which it is still more improbable, that the black laborers of the South would be displaced by *immigrations* of white laborers. The proverbial attachment of the slave to his "bornin-ground," (the place of his nativity,) would greatly contribute to his contentment with low wages, at the hands of his old master. As an evidence of the strong attachment of our southern colored brethren to their birth-places, I remark, that, whilst the free colored population of the free states increased from 1820 to 1830 but nineteen per cent., the like population in the slave states increased, in the same period, thirty five per cent;--and this, too, notwithstanding the operation of those oppressive and cruel laws, whose enactment was dictated by the settled policy of expelling the free blacks from the South.

That, in the event of the abolition of southern slavery, the emancipated slaves would migrate to the North, rather than elsewhere, is very improbable. Whilst our climate would be unfriendly to them, and whilst they would be strangers to our modes of agriculture, the sugar and cotton fields of Texas, the West Indies, and other portions of the earth, would invite them to congenial employments beneath congenial skies. That, in case southern slavery is abolished, the colored population of the North would be drawn off to unite with their race at the South, is, for reasons too obvious to mention, far more probable than the reverse.

It will be difficult for you to persuade the North, that she would suffer in a pecuniary point of view by the extirpation of slavery. The consumption of the laborers at the South would keep pace with the improvement and elevation of their condition, and would very soon impart a powerful impulse to many branches of Northern industry.

Another of your charges is in the following words: "The subject of slavery within the District of Florida," and that "of the right of Congress to prohibit the removal of slaves from one state to another," are, with abolitionists, "but so many masked batteries, concealing the real and ultimate point of attack. That point of attack is the institution of domestic slavery, as it exists in those states."

If you mean by this charge, that abolitionists think that the abolition of slavery in the District of Columbia and in Florida, and the suppression of the interstate traffic in human beings are, in themselves, of but little moment, you mistake. If you mean, that they think them of less importance than the abolition of slavery in the slave states, you are right; and if you further mean, that they prize those objects more highly, and pursue them more zealously, because they think, that success in them will set in motion very powerful, if not indeed resistless influences against slavery in the slave states, you are right in this also. I am aware, that the latter concession brings abolitionists under the condemnation of that celebrated book, written by a *modern* limiter of "human responsibility"--not by the *ancient* one, who exclaimed, "Am I my brother's keeper?" In that book, to which, by the way, the infamous Atherton Resolutions are indebted for their keynote, and grand pervading idea, we find the doctrine, that even if it were the duty of Congress to abolish slavery in the District of Columbia, the North nevertheless should not seek for such abolition, unless the object of it be "ultimate within itself." If it be "for the sake of something ulterior" also--if for the sake of inducing the slaveholders of the slave states to emancipate their slaves--then we should not seek for it. Let us try this doctrine in another application--in one, where its distinguished author will not feel so much delicacy, and so much fear of giving offence. His reason why we should not go for the abolition of slavery in the District of Columbia, unless our object in it be "ultimate within itself," and unaccompanied by the object of producing an influence against slavery in the slave states, is, that the Federal Constitution has left the matter of slavery in the slave states to those states themselves. But will President Wayland say, that it has done so to any greater extent, than it has left the matter of gambling-houses and brothels in those states to those states themselves? He will not, if he consider the subject:--though, I doubt not, that when he wrote his bad book, he was under the prevailing error, that the Federal Constitution tied up the hands and limited the power of the American people in respect to slavery, more than to any other vice.

But to the other application. We will suppose, that Great Britain has put down the gambling-houses and brothels in her wide dominions--that Mexico has done likewise; and that the George Thompsons, and Charles Stuarts, and other men of God, have come from England to beseech the

people of the northern states to do likewise within their respective jurisdictions;--and we will further suppose, that those foreign missionaries, knowing the obstinate and infatuated attachment of the people of the southern states to their gambling-houses and brothels, should attempt, and successfully, too, to blend with the motive of the people of the northern states to get rid of their own gambling houses and brothels, the motive of influencing the people of the southern states to get rid of theirs--what, we ask, would this eminent divine advise in such a case? Would he have the people of the northern states go on in their good work, and rejoice in the prospect, not only that these polluting and ruinous establishments would soon cease to exist within all their limits, but that the influence of their overthrow would be fatal to the like establishments in the southern states? To be consistent with himself--with the doctrine in question--he must reply in the negative. To be consistent with himself, he must advise the people of the northern states to let their own gambling-houses and brothels stand, until they can make the object of their abolishment "ultimate within itself;"--until they can expel from their hearts the cherished hope, that the purification of their own states of these haunts of wickedness would exert an influence to induce the people of their sister states to enter upon a similar work of purity and righteousness. But I trust, that President Wayland would not desire to be consistent with himself on this point. I trust that he would have the magnanimity to throw away this perhaps most pernicious doctrine of a pernicious book, which every reader of it must see was written to flatter and please the slaveholder and arrest the progress of the anti-slavery cause. How great the sin of seizing on this very time, when special efforts are being made to enlist the world's sympathies in behalf of the millions of our robbed, outraged, crushed countrymen--how great the sin, of seizing on such a time to attempt to neutralize those efforts, by ascribing to the oppressors of these millions a characteristic "nobleness"--"enthusiastic attachment to personal right"--"disinterestedness which has always marked the southern character"--and a superiority to all others "in making any sacrifice for the public good!" It is this sin--this heinous sin--of which President Wayland has to repent. If he pities the slave, it is because he knows, that the qualities, which he ascribes to the slaveholder, do not, in fact, belong to him. On the other hand, if he believes the slaveholder to be, what he represents him to be, he does not--in the very nature of things, he cannot--pity the slave. He must rather rejoice, that the slave has fallen into

the hands of one, who, though he has the name, cannot have the heart, and cannot continue in the relation of a slaveholder. If John Hook, for having mingled his discordant and selfish cries with the *acclamations* of victory and then general joy, deserved Patrick Henry's memorable rebuke, what does he not deserve, who finds it in his heart to arrest the swelling tide of pity for the oppressed by praises of the oppressor, and to drown the public lament over the slave's subjection to absolute power, in the congratulation, that the slaveholder who exercises that power, is a being of characteristic "nobleness," "disinterestedness," and "sacrifice" of self-interest?

President Wayland may perhaps say, that the moral influence, which he is unwilling to have exerted over the slaveholder, is not that, which is simply persuasive, but that, which is constraining--not that, which is simply inducing, but that, which is compelling. I cheerfully admit, that it is infinitely better to induce men to do right from their own approbation of the right, than it is to shame them, or in any other wise constrain them, to do so; but I can never admit, that I am not at liberty to effect the release of my colored brother from the fangs of his murderous oppressor, when I can do so by bringing public opinion to bear upon that oppressor, and to fill him with uneasiness and shame.

I have not, overlooked the distinction taken by the reverend gentleman; though, I confess that, to a mind no less obtuse than my own, it is very little better than "a distinction without a difference." Whilst he denies, that I can, as an American citizen, rightfully labor for the abolition of slavery in the slave states, or even in the District of Columbia; he would perhaps, admit that, as a man, I might do so. But am I not interested, as an American citizen, to have every part of my country cleared of vice, and of whatever perils its free institutions? Am I not interested, as such, to promote the overthrow of gambling and rum drinking establishments in South Carolina? --but why any more than to promote the overthrow of slavery? In fine, am I not interested, as an American citizen, to have my country, and my whole country, "right in the sight of God?" If not, I had better not be an American citizen.

I say no more on the subject of the sophistries of President Wayland's book on, "The limitations of human responsibility;" nor would I have said what I

have, were it not that it is in reply to the like sophistries couched in that objection of yours, which I have now been considering.

Another of your charges against the abolitionists is, *that they seek to "stimulate the rage of the people of the free states against the people of the slave states. Advertisements of fugitive slaves and of slaves to be sold are carefully collected and blazoned forth to infuse a spirit of detestation and hatred against one entire and the largest section of the Union."*

The slaveholders of the South represent slavery as a heaven-born institution--themselves as patriarchs and patterns of benevolence--and their slaves, as their tenderly treated and happy dependents. The abolitionists, on the contrary, think that slavery is from hell--that slaveholders are the worst of robbers--and that their slaves are the wretched victims of unsurpassed cruelties. Now, how do abolitionists propose to settle the points at issue?--by fanciful pictures of the abominations of slavery to countervail the like pictures of its blessedness?--by mere assertions against slavery, to balance mere assertions in its favor? No--but by the perfectly reasonable and fair means of examining slavery in the light of its own code--of judging of the character of the slaveholder in the light of his own conduct--and of arguing the condition of the slave from unequivocal evidences of the light in which the slave himself views it. To this end we publish extracts from the southern slave code, which go to show that slavery subjects its victims to the absolute control of their erring fellow men--that it withholds from them marriage and the Bible--that it classes them with brutes and things--and annihilates the distinctions between mind and matter. To this end we republish in part, or entirely, pamphlets and books, in which southern men exhibit, with their own pens, some of the horrid features of slavery. To this end we also republish such advertisements as you refer to--advertisements in which immortal beings, made in the image of God, and redeemed by a Savior's blood, and breathed upon by the Holy Spirit, are offered to be sold, at public auction, or sheriff's sale, in connection with cows, and horses, and ploughs: and, sometimes we call special attention to the common fact, that the husband and wife, the parent and infant child, are advertised to be sold together or separately, as shall best suit purchasers. It is to this end also, that we often republish specimens of the other class of advertisements to which you refer. Some of the advertisements of this class identify the fugitive slave by the scars, which the whip, or the manacles and fetters, or the rifle

had made on his person. Some of them offer a reward for his head!--and it is to this same end, that we often refer to the ten thousands, who have fled from southern slavery, and the fifty fold that number, who have unsuccessfully attempted to fly from it. How unutterable must be the horrors of the southern prison house, and how strong and undying the inherent love of liberty to induce these wretched fellow beings to brave the perils which cluster so thickly and frightfully around their attempted escape? That love is indeed *undying*. The three hundred and fifty-three South Carolina gentlemen, to whom I have referred, admit, that even "the old negro man, whose head is white with age, raises his thoughts to look through the vista which will terminate his bondage."

I put it to your candor--can you object to the reasonableness and fairness of these modes, which abolitionists have adopted for establishing the truth on the points at issue between themselves and slaveholders? But, you may say that our republication of your own representations of slavery proceeds from unkind motives, and serves to stir up the "hatred," and "rage of the people of the free states against the people of the slave states." If such be an effect of the republication, although not at all responsible for it, we deeply regret it; and, as to our motives, we can only meet the affirmation of their unkindness with a simple denial. Were we, however, to admit the unkindness of our motives, and that we do not always adhere to the apostolic motto, of "speaking the truth in love"--would the admission change the features of slavery, or make it any the less a system of pollution and blood? Is the accused any the less a murderer, because of the improper motives with which his accuser brings forward the conclusive proof of his blood-guiltiness?

We often see, in the speeches and writings of the South, that slaveholders claim as absolute and as rightful a property in their slaves, as in their cattle. Whence then their sensitiveness under our republication of the advertisements, is which they offer to sell their human stock? If the south will republish the advertisements of our property, we will only not be displeased, but will thank her; and any rebukes she may see fit to pour upon us, for offering particular kinds of property, will be very patiently borne, in view of the benefit we shall reap from her copies of our advertisements.

A further charge in your speech is, that the abolitionists pursue their object "reckless of all consequences, however calamitous they may be;" that they have no horror of a "civil war," or "a dissolution of the Union;" that theirs is "a bloody road," and "their purpose is abolition, universal abolition, peaceably if it can, forcibly if it must."

It is true that, the abolitionists pursue their object, undisturbed by apprehensions of consequences; but it is not true, that they pursue it "reckless of consequences." We believe that they, who unflinchingly press the claims of God's truth, deserve to be considered as far less "reckless of consequences," than they, who, suffering themselves to be thrown into a panic by apprehensions of some mischievous results, local or general, immediate or remote, are guilty of compromising the truth, and substituting corrupt expediency for it. We believe that the consequences of obeying the truth and following God are good--only good--and that too, not only in eternity, but in time also. We believe, that had the confidently anticipated deluge of blood followed the abolition of slavery in the British West Indies, the calamity would have been the consequence, not of abolition, but of resistance to it. The insanity, which has been known to follow the exhibition of the claims of Christianity, is to be charged on the refusal to fall in with those claims, and not on our holy religion.

But, notwithstanding, we deem it our duty and privilege to confine ourselves to the word of the Lord, and to make that word suffice to prevent all fears of consequences; we, nevertheless, employ additional means to dispel the alarms of those, who insist on walking "by sight;" and, in thus accommodating ourselves to their want of faith, we are justified by the example of Him, who, though he said, "blessed are they that have not seen and yet have believed," nevertheless permitted an unbelieving disciple, both to see and to touch the prints of the nails and the spear. When dealing with such unbelievers, we do not confine ourselves to the "thus saith the Lord"--to the Divine command, to "let the oppressed go free and break every yoke"--to the fact, that God is an abolitionist: but we also show how contrary to all sound philosophy is the fear, that the slave, on whom have been heaped all imaginable outrages, will, when those outrages are exchanged for justice and mercy, turn and rend his penitent master. When dealing with such unbelievers, we advert to the fact, that the insurrections at the South have been the work of slaves--not one of them of persons

discharged from slavery: we show how happy were the fruits of emancipation in St. Domingo: and that the "horrors of St. Domingo," by the parading of which so many have been deterred from espousing our righteous cause, were the result of the attempt to re-establish slavery. When dealing with them, we ask attention to the present peaceful, prosperous, and happy condition of the British West India Islands, which so triumphantly falsifies the predictions, that bankruptcy, violence, bloodshed, and utter ruin would follow the liberation of their slaves. We point these fearful and unbelieving ones to the fact of the very favorable influence of the abolition of slavery on the price of real estate in those islands; to that of the present rapid multiplication of schools and churches in them; to the fact, that since the abolition of slavery, on the first day of August 1834, not a white man in all those islands has been struck down by the arm of a colored man; and then we ask them whether in view of such facts, they are not prepared to believe, that God connects safety with obedience, and that it is best to "trust in the Lord with all thine heart, and lean not to thine own understanding."

On the subject of "a dissolution of the Union," I have only to say, that, on the one hand, there is nothing in my judgment, which, under God, would tend so much to preserve our Republic, as the carrying out into all our social, political and religious institutions of its great foundation principle, that "all men are created equal;" and that, on the other hand, the flagrant violation of that principle in the system of slavery, is doing more than all thing, else to hasten the destruction of the Republic. I am aware, that one of the doctrines of the South is, that "slavery is the corner-stone of the republican edifice." But, if it be true, that our political institutions harmonize with, and are sustained by slavery, then the sooner we exchange them for others the better. I am aware, that it is said, both at the North and at the South, that it is essential to the preservation of the Union. But, greatly as I love the Union, and much as I would sacrifice for its righteous continuance, I cannot hesitate to say, that if slavery be an indispensable cement, the sooner it is dissolved the better.

I am not displeased, that you call ours "a bloody road"--for this language does not necessarily implicate our motives; but I am greatly surprised that you charge upon us the wicked and murderous "purpose" of a forcible abolition. In reply to this imputation, I need only refer you to the Constitution of the American Anti-Slavery Society--to the Declaration of

the Convention which framed it--and to our characters, for pledges, that we design no force, and are not likely to stain our souls with the crime of murder. That Constitution says: "This society will never, in any way, countenance the oppressed in vindicating their rights by resorting to physical force." The Declaration says "Our principles forbid the doing of evil that good may come, and lead us to reject, and to entreat the oppressed to reject, the use of all carnal weapons for deliverance from bondage. Our measures shall be such only, as the opposition of moral purity to moral corruption--the destruction of error by the potency of truth--the overthrow of prejudice by the power of love--and the abolition of slavery by the spirit of repentance." As to our characters they are before the world. You would probably look in vain through our ranks for a horse-racer, a gambler, a profane person, a rum-drinker, or a duellist. More than nine-tenths of us deny the rightfulness of offensive, and a large majority, even that of defensive national wars. A still larger majority believe, that deadly weapons should not be used in cases of individual strife. And, if you should ask, "where in the free States are the increasing numbers of men and women, who believe, that the religion of the unresisting 'Lamb of God' forbids recourse to such weapons, in all circumstances, either by nations or individuals?"--the answer is, "to a man, to a woman, in the ranks of the abolitionists." You and others will judge for yourselves, how probable it is, that the persons, whom I have described, will prove worthy of being held up as murderers.

The last of your charges against the abolitionists, which I shall examine, is the following: *Having begun "their operations by professing to employ only persuasive means," they "have ceased to employ the instruments of reason and persuasion," and "they now propose to substitute the powers of the ballot box;" and "the inevitable tendency of their proceedings is if these should be found insufficient, to invoke finally the more potent powers of the bayonet."*

If the slaveholders would but let us draw on them for the six or eight thousand dollars, which we expend monthly to sustain our presses and lecturers, they would then know, from an experience too painful to be forgotten, how truthless is your declaration, that we "have ceased to employ the instruments of reason and persuasion."

You and your friends, at first, employed "persuasive means" against "the sub-treasury system." Afterwards, you rallied voters against it. Now, if this fail, will you resort to "the more potent powers of the bayonet?" You promptly and indignantly answer, "No." But, why will you not? Is it because the prominent opposers of that system have more moral worth--more religious horror of blood--than Arthur Tappan, William Jay, and their prominent abolition friends? Were such to be your answer, the public would judge, whether the men of peace and purity, who compose the mass of abolitionists, would be more likely than the Clays and Wises and the great body of the followers of these Congressional leaders to betake themselves from a disappointment at "the ballot-box" to "the more potent powers of the bayonet?"

You say, that we "*now* propose to substitute the powers of the ballot-box," as if it were only of late, that we had proposed to do so. What then means the following language in our Constitution: "The society will also endeavor in a Constitutional way to influence Congress to put an end to the domestic slave-trade, and to abolish slavery in all those portions of our common country, which come under its control--especially in the District of Columbia--and likewise to prevent the extension of it to any State, that may be hereafter admitted to the Union?" What then means the following language in the "Declaration" of the Convention, which framed our Constitution: "We also maintain, that there are at the present time the highest obligations resting upon the people of the Free States to remove slavery by moral and political action, as prescribed in the Constitution of the United States?" If it be for the first time, that we "*now* propose" "political action," what means it, that anti-slavery presses have, from year to year, called on abolitionists to remember the slave at the polls?

You are deceived on this point; and the rapid growth of our cause has been the occasion of your deception. You suppose, because it is only within the last few months, that you have heard of abolitionists in this country carrying their cause to "the ballot box," that it is only within the last few months that they have done so. But, in point of fact, some of them have done so for several years. It was not, however, until the last year or two, when the number of abolitionists had become considerable, and their hope of producing an impression on the Elections proportionately strong, that many of them were seen bringing their abolition principles to the "ballot-box."

Nor was it until the Elections of the last Autumn, that abolition action at "the ballot-box" had become so extensive, as to apprise the Nation, that it is a principle with abolitionists to "remember" in one place as well as in another--at the polls as well as in the closet--"them that are in bonds." The fact that, at the last State Election, there were three or four hundred abolition votes given in the County in which I reside, is no more real because of its wide spread interest, than the comparatively unheard of fact, that about one hundred such votes were given the year before. By the way, when I hear complaints of abolition action at the "ballot-box," I can hardly refrain from believing, that they are made ironically. When I hear complaints, that the abolitionists of this State rallied, as such, at the last State Election, I cannot easily avoid suspecting, that the purpose of such complaints is the malicious one of reviving in our breasts the truly stinging and shame-filling recollection, that some five-sixths of the voters in our ranks, either openly apostatized from our principles, or took it into their heads, that the better way to vote for the slave and the anti-slavery cause was to vote for their respective political parties. You would be less afraid of the abolitionists, if I should tell you that more than ten thousand of them in this State voted at the last State Election, for candidates for law makers, who were openly in favor of the law of this State, which creates slavery, and of other laws, which countenance and uphold it. And you would owe me for one of your heartiest laughs, were I to tell you, that there are abolitionists--professed abolitionists--yes, actual members of the Anti-Slavery Society--who, carrying out this delusion of helping the slave by helping their "party," say, that they would vote even for a slaveholder, if their party should nominate him. Let me remark, however, that I am happy to be able to inform you, that this delusion--at least in my own State--is fast passing away; and that thousands of the abolitionists who, in voting last Autumn for Gov. Marey or Gov. Seward, took the first step in the way, that leads to voting for the slaveholder himself, are now not only refusing to take another step in that inconsistent and wicked way, but are repenting deeply of that, which they have already taken in it.

Much as you dislike, not to say *dread*, abolition action at "the ballot-box," I presume, that I need not spend any time in explaining to you the inconsistency of which an abolitionist is guilty, who votes for an upholder of slavery. A wholesome citizen would not vote for a candidate for a law

maker, who is in favor of laws, which authorize gaming-houses or *groggeries*. But, in the eye of one, who has attempted to take the "guage and dimensions" of the hell of slavery, the laws, which authorize slaveholding, far transcend in wickedness, those, which authorize gaming-houses or *groggeries*. You would not vote for a candidate for a law-maker, who is in favor of "the sub-treasury system." But compared with the evil of slavery, what is that of the most pernicious currency scheme ever devised? It is to be "counted as the small dust of the balance." If you would withhold your vote in the case supposed--how gross in your eyes must be the inconsistency of the abolitionist, who casts his vote on the side of the system of fathomless iniquity!

I have already remarked on "the third" of the "impediments" or "obstacles" to emancipation, which you bring to view. *"The first impediment," you say, "is the utter and absolute want of all power on the part of the General Government to effect the purpose."*

But because there is this want on the part of the General Government, it does not follow, that it also exists on the part of the States: nor does it follow, that it also exists on the part of the slaveholders themselves. It is a poor plea of your neighbor for continuing to hold his fellow man in slavery, that neither the Federal Government nor the State of Kentucky has power to emancipate them. Such a plea is about as valid, as that of the girl for not having performed the task, which her mistress had assigned to her. "I was tied to the table." "Who tied you there?" "I tied myself there."

"The next obstacle," you say, "in the way of abolition arises out of the fact of the presence in the slave states of three millions of slaves."

This is, indeed a formidable "obstacle:" and I admit, that it is as much more difficult for the impenitent slaveholder to surmount it, than it would be if there were but one million of slaves, as it is for the impenitent thief to restore the money he has stolen, than it would be, if the sum were one third as great. But, be not discouraged, dear sir, with this view of the case. Notwithstanding the magnitude of the obstacle, the warmest desires of your heart for the abolition of slavery, may yet be realized. Be thankful, that repentance can avail in every case of iniquity; that it can loosen the grasp of the man-thief, as well as that of the money-thief: of the oppressors of

thousands as well as of hundreds:--of "three millions," as well as of one million.

But, were I to allow, that the obstacle in question, is as great, as you regard it--nevertheless will it not increase with the lapse of years, and become less superable the longer the work of abolition is postponed? I suppose, however, that it is not to be disguised, that, notwithstanding the occasional attempts in the course of your speech to create a different impression, you are in favor of perpetual slavery; and that all you say about "ultra abolitionists" in distinction from "abolitionists," and about "gradual emancipation," in distinction from "immediate emancipation," is said, but to please those, who sincerely make, and are gulled by, such distinctions. I do not forget, that you say, that the abolition of slavery in Pennsylvania was proper. But, most obviously, you say it, to win favor with the anti-slavery portion of the North, and to sustain the world's opinion of your devotion to the cause of universal liberty;--for, having made this small concession to that holy cause--small indeed, since Pennsylvania never at any one time, had five thousand slaves--you, straightway, renew your claims to the confidence of slaveholders, by assuring them, that you are opposed to "any scheme whatever of emancipation, gradual or immediate," in States where the slave population is extensive;--and, for proof of the sincerity of your declaration, you refer them to the fact of your recent open and effective opposition to the overthrow of slavery in your own State.

The South is opposed to gradual, as well as to immediate emancipation: and, were she, indeed, to enter upon a scheme of gradual emancipation, she would speedily abandon it. The objections to swelling the number of her free colored population, whilst she continued to hold their brethren of the same race in bondage, would be found too real and alarming to justify her perseverance in the scheme. How strange, that men at the North, who think soundly on other subjects, should deduce the feasibility of gradual emancipation in the slave states--in some of which the slaves outnumber the free--from the fact of the like emancipation of the comparative handful of slaves in New York and Pennsylvania!

You say, *"It is frequently asked, what will become of the African race among us? Are they forever to remain in bondage? That question was asked*

more than half a century ago. It has been answered by fifty years of prosperity."

The wicked man, "spreading himself like the green bay tree," would answer this question, as you have. They, who "walk after their own lusts, saying, where is the promise of his coming--for since the fathers fell asleep all things continue as they were from the beginning of the creation?" would answer it, as you have. They, whose "heart is fully set in them to do evil, because sentence against an evil work is not executed speedily," would answer it, as you have. But, however you or they may answer it, and although God may delay his "coming" and the execution of his "sentence," it, nevertheless, remains true, that "it shall be well with them that fear God, but it shall not be well with the wicked."

"Fifty years of prosperity!" On whose testimony do we learn, that the last "fifty years" have been "years of prosperity" to the South?--on the testimony of oppressors or on that of the oppressed?--on that of her two hundred and fifty thousand slaveholders--for this is the sum total of the tyrants, who rule the South and rule this nation--or on that of her two millions and three quarters of bleeding and crushed slaves? It may well be, that those of the South, who "have lived in pleasure on the earth and been wanton and have nourished their hearts as in a day of slaughter," should speak of "prosperity:" but, before we admit, that the "prosperity," of which they speak, is that of the South, instead of themselves merely, we must turn our weeping eyes to the "laborers, who have reaped down" their oppressors' "fields without wages," and the "cries" of whom "are entered into the ears of the Lord of Sabaoth;" and we must also take into the account the tears, and sweat, and groans, and blood, of the millions of similar laborers, whom, during the last "fifty years," death has mercifully released from Southern bondage. Talks the slaveholder of the "prosperity" of the South? It is but his own "prosperity"--and a "prosperity," such as the wolf may boast, when gorging on the flock.

You say, that the people of the North would not think it "neighborly and friendly" if "the people of the slave states were to form societies, subsidize presses, make large pecuniary contributions, &c. to burn the beautiful capitals, destroy the productive manufactories, and sink the gallant ships of the northern states."

Indeed, they would not! But, if you were to go to such pains, and expense for the purpose of relieving our poor, doubling our wealth, and promoting the spiritual interests of both rich and poor--then we should bless you for practising a benevolence towards us, so like that, which abolitionists practise towards you; and then our children, and children's children, would bless your memories, even as your children and children's children will, if southern slavery be peacefully abolished, bless our memories, and lament that their ancestors had been guilty of construing our love into hatred, and our purpose of naught but good into a purpose of unmingled evil.

Near the close of your speech is the remark: "*I prefer the liberty of my own country to that of any other people.*"

Another distinguished American statesman uttered the applauded sentiment: "My country--my whole country--and nothing but my country;"--and a scarcely less distinguished countryman of ours commanded the public praise, by saying: "My country right--but my country, right or wrong." Such are the expressions of *patriotism* of that idolized compound of selfish and base affections!

Were I writing for the favor, instead of the welfare of my fellow-men, I should praise rather than denounce patriotism. Were I writing in accordance with the maxims of a corrupt world, instead of the truth of Jesus Christ, I should defend and extol, rather than rebuke the doctrine, that we may prefer the interests of one section of the human family to those of another. If patriotism, in the ordinary acceptation of the word, be right, then the Bible is wrong--for that blessed book requires us to love all men, even as we love ourselves. How contrary to its spirit and precepts, that,

"Lands intersected by a narrow frith,
Abhor each other, Mountains interposed
Make enemies of nations, who had else,
Like kindred drops, been mingled into one."

There are many, who consider that the doctrine of loving all our fellow men as ourselves, belongs, to use your words, "to a sublime but impracticable philosophy." Let them, however, but devoutly ask Him, who enjoins it, to warm and expand their selfish and contracted hearts with its influences; and

they will know, by sweet experience, that under the grace of God, the doctrine is no less "practicable" than "sublime." Not a few seem to suppose, that he, who has come to regard the whole world as his country, and all mankind as his countrymen, will have less love of home and country than the patriot has, who makes his own nation, and no other, the cherished object of his affections. But did the Saviour, when on earth, love any individual the less, because the love of His great heart was poured out, in equal tides, over the whole human family? And would He not, even in the eyes of the patriot himself, be stamped with imperfection, were it, to appear, that one nation shares less than another in His "loving-kindness" and that "His tender mercies are (not) over all his works?" Blessed be His holy name, that He was cast down the "middle wall of partition" between the Jew and Gentile!--that there is no respect of persons with Him!--that "Greek" and "Jew, circumcision and uncircumcision, barbarian, Scythian, bond" and "free," are equal before Him!

Having said, *"I prefer the liberty of my own country to that of any other people,"* you add--*"and the liberty of my own race to that of any other race."*

How perfectly natural, that the one sentiment should follow the other! How perfectly natural, that he who can limit his love by state or national lines, should be also capable of confining it to certain varieties of the human complexion! How perfectly natural, that, he who is guilty of the insane and wicked prejudice against his fellow men, because they happen to be born a dozen, or a hundred, or a thousand miles from the place of his nativity, should foster the no less insane and wicked prejudice against the "skin not colored like his own!" How different is man from God! "He maketh his sun to rise on the evil and on the good, and sendeth rain on the just and on the unjust." But were man invested with supreme control, he would not distribute blessings impartially even amongst the "good" and the "just."

You close your speech with advice and an appeal to abolitionists. Are you sure that an appeal, to exert the most winning influence upon our hearts, would not have come from some other source better than from one who, not content with endeavoring to show the pernicious tendency of our principles and measures, freely imputes to us bloody and murderous motives? Are you sure, that you, who ascribe to us designs more diabolical than those of

burning "beautiful capitals," and destroying "productive manufactories," and sinking "gallant ships," are our most suitable adviser? We have, however, waved all exception on this score to your appeal and advice, and exposed our minds and hearts to the whole power and influence of your speech. And now we ask, that you, in turn, will hear us. Presuming that you are too generous to refuse the reciprocation, we proceed to call on you to stay your efforts at quenching the world's sympathy for the slave--at arresting the progress of liberal, humane, and Christian sentiments--at upholding slavery against that Almighty arm, which now, "after so long a time," is revealed for its destruction. We urge you to worthier and more hopeful employments. Exert your great powers for the repeal of the matchlessly wicked laws enacted to crush the Saviour's poor. Set a happy and an influential example to your fellow slaveholders, by a righteous treatment of those, whom you unrighteously hold in bondage. Set them this example, by humbling yourself before God and your assembled slaves, in unfeigned penitence for the deep and measureless wrongs you have done the guiltless victims of your oppression--by paying those *men*, (speak of them, think of them, no longer, as *brutes* and *things*)--by paying these, who are my brother men and your brother men, the "hire" you have so long withheld from them, and "which crieth" to Heaven, because it "is of you kept back"--by breaking the galling yoke from their necks, and letting them "go free."

Do you shrink from our advice--and say, that obedience to its just requirements would impoverish you? Infinitely better, that you be honestly poor than dishonestly rich. Infinitely better to "do justly," and be a Lazarus; than to become a Croesus, by clinging to and accumulating ill-gotten gains. Do you add to the fear of poverty, that of losing your honors--those which are anticipated, as well as those, which already deck your brow? Allow us to assure you, that it will be impossible for you to redeem "Henry Clay, the statesman," and "Henry Clay, the orator," or even "Henry Clay, the President of the United States," from the contempt of a slavery-loathing posterity, otherwise than by coupling with those designations the inexpressibly more honorable distinction of "HENRY CLAY, THE EMANCIPATOR."

I remain,

Your friend,

GERRIT SMITH.

No. 10 THE ANTI-SLAVERY EXAMINER.

AMERICAN SLAVERY
AS IT IS:
TESTIMONY of A THOUSAND WITNESSES.

"Behold the wicked abominations that they do!"—Ezekial, viii, 2.

"The righteous considereth the cause of the poor; but the wicked regardeth not to know it."—Prov. 29, 7.

"True humanity consists not in a squeamish ear, but in listening to the story of human suffering and endeavoring to relieve it."—Charles James Fox.

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No. 143 NASSAU STREET. 1839.

This periodical contains 7 sheets—postage, under 100 miles, 10-1/2 cts;
over 100 miles, 17-1/2 cents.

ADVERTISEMENT TO THE READER. A majority of the facts and testimony contained in this work rests upon the authority of slaveholders, whose names and residences are given to the public, as vouchers for the truth of their statements. That they should utter falsehoods, for the sake of proclaiming their own infamy, is not probable.

Their testimony is taken, mainly, from recent newspapers, published in the slave states. Most of those papers will be deposited at the office of the American Anti-Slavery Society, 143 Nassau street, New York City. Those who think the atrocities, which they describe, incredible, are invited to call and read for themselves. We regret that *all* of the original papers are not in our possession. The idea of preserving them on file for the inspection of the incredulous, and the curious, did not occur to us until after the preparation of the work was in a state of forwardness, in consequence of this, some of the papers cannot be recovered. *Nearly all* of them, however have been preserved. In all cases the *name* of the paper is given, and, with very few exceptions, the place and time, (year, month, and day) of publication. Some of the extracts, however not being made with reference to this work, and before its publication was contemplated, are without date; but this class of extracts is exceedingly small, probably not a thirtieth of the whole.

The statements, not derived from the papers and other periodicals, letters, books, &c., published by slaveholders, have been furnished by individuals who have resided in slave states, many of whom are natives of those states, and have been slaveholders. The names, residences, &c. of the witnesses generally are given. A number of them, however, still reside in slave states;—to publish their names would be, in most cases, to make them the victims of popular fury.

New York, May 4, 1839.

NOTE.

The Executive Committee of the American Anti-Slavery Society, while tendering their grateful acknowledgments, in the name of American Abolitionists, and in behalf of the slave, to those who have furnished for this publication the result of their residence and travel in the slave states of this Union, announce their determination to publish, from time to time, as they may have the materials and the funds, TRACTS, containing well authenticated facts, testimony, personal narratives, &c. fully setting forth the *condition* of American slaves. In order that they may be furnished with the requisite materials, they invite all who have had personal knowledge of the condition of slaves in any of the states of this Union, to forward their testimony with their names and residences. To prevent imposition, it is indispensable that persons forwarding testimony, who are not personally known to any of the Executive Committee, or to the Secretaries or Editors of the American Anti-Slavery Society, should furnish references to some person or persons of respectability, with whom, if necessary, the Committee may communicate respecting the writer.

Facts and testimony respecting the condition of slaves, in *all respects*, are desired; their food, (kinds, quality, and quantity,) clothing, lodging, dwellings, hours of labor and rest, kinds of labor, with the mode of exaction, supervision, &c.—the number and time of meals each day, treatment when sick, regulations inspecting their social intercourse, marriage and domestic ties, the system of torture to which they are subjected, with its various modes; and *in detail*, their *intellectual* and *moral* condition. Great care should be observed in the statement of facts. Well-weighed testimony and well-authenticated facts; with a responsible name, the Committee earnestly desire and call for. Thousands of persons in the free states have ample knowledge on this subject, derived from their own observation in the midst of slavery. Will such hold their peace? That which maketh manifest is *light*; he who keepeth his candle under a bushel at such a time and in such a cause as this, *forges fetters for himself*, as well as for the slave. Let no one withhold his testimony because others have already testified to similar facts. The value of testimony is by no means to be

measured by the *novelty* of the horrors which it describes. *Corroborative* testimony,—facts, similar to those established by the testimony of others,—is highly valuable. Who that can give it and has a heart of flesh, will refuse to the slave so small a boon?

Communications may be addressed to Theodore D. Weld, 143 Nassau-street, New York. New York, May, 1839.

CONTENTS.

- INTRODUCTION.
 - Twenty-seven hundred thousand free born citizens of the U.S. in slavery;
 - Tender mercies of slaveholders;
 - Abominations of slavery;
 - Character of the testimony.
- PERSONAL NARRATIVES—PART I.
- NARRATIVE of NEHEMIAH CAULKINS;
 - North Carolina Slavery;
 - Methodist preaching slavedriver, Galloway;
 - Women at child-birth;
 - Slaves at labor;
 - Clothing of slaves;
 - Allowance of provisions;
 - Slave-fetters;
 - Cruelties to slaves;
 - Burying a slave alive;
 - Licentiousness of Slave-holders;
 - Rev. Thomas P. Hunt, with his "hands tied";
 - Preachers cringe to slavery;
 - Nakedness of slaves;
 - Slave-huts;
 - Means of subsistence for slaves;
 - Slaves' prayer.
- NARRATIVE of REV. HORACE MOULTON;
 - Labor of the slaves;
 - Tasks;
 - Whipping posts;
 - Food;
 - Houses;
 - Clothing;
 - Punishments;

- Scenes of horror;
- Constables, savage and brutal;
- Patrols;
- Cruelties at night;
- Paddle-torturing;
- Cat-hauling;
- Branding with hot iron;
- Murder with impunity;
- Iron collars, yokes, clogs, and bells.
- NARRATIVE of SARAH M. GRIMKÉ;
 - Barbarous Treatment of slaves;
 - Converted slave;
 - Professor of religion, near death, tortured his slave for visiting his companion;
 - Counterpart of James Williams' description of Larrimore's wife;
 - Head of runaway slave on a pole;
 - Governor of North Carolina left his sick slave to perish;
 - Cruelty to Women slaves;
 - Christian slave a martyr for Jesus.
- TESTIMONY of REV. JOHN GRAHAM;
 - Twenty-seven slaves whipped.
- TESTIMONY of WILLIAM POE;
 - Harris whipped a girl to death;
 - Captain of the U.S. Navy murdered his boy, was tried and acquitted;
 - Overseer burnt a slave;
 - Cruelties to slaves.
- PRIVATIONS OF THE SLAVES.
- FOOD;
 - Suffering from hunger;
 - Rations in the U.S. Army, &c;
 - Prison rations;
 - Testimony.
- LABOR;
 - Slaves are overworked;
 - Witnesses;
 - Henry Clay;

- Child-bearing prevented;
 - Dr. Channing;
 - Sacrifice of a set of hands every seven years;
 - Testimony;
 - Laws of Georgia, Louisiana, Maryland, South Carolina, and Virginia.
- CLOTHING;
 - Witnesses;
 - Advertisements;
 - Testimony;
 - Field-hands;
 - Nudity of slaves;
 - John Randolph's legacy to Essex and Hetty.
- DWELLINGS;
 - Witnesses;
 - Slaves are wretchedly sheltered and lodged.
- TREATMENT OF THE SICK.
- PERSONAL NARRATIVES, PART II.
- TESTIMONY of the REV. WILLIAM T. ALLAN;
 - Woman delivered of a dead child, being whipped;
 - Slaves shot by Helton;
 - Cruelties to slaves;
 - Whipping post;
 - Assaults, and maimings;
 - Murders;
 - Purvey, "the Devil,";
 - Overseers always armed;
 - Licentiousness of Overseers;
 - "Bend your backs";
 - Mrs. H., a Presbyterian, desirous to cut Arthur Tappan's throat;
 - Clothing, Huts, and Herding of slaves;
 - Iron yokes with prongs;
 - Marriage unknown among slaves;
 - Presbyterian minister at Huntsville;
 - Concubinage in Preacher's house;
 - Slavery, the great wrong.
- NARRATIVE of WILLIAM LEFTWICH;

- [Slave's life.](#)
- [TESTIMONY of LEMUEL SAPINGTON;](#)
 - [Nakedness of slaves;](#)
 - [Traffic in slaves.](#)
- [TESTIMONY of MRS. LOWRY;](#)
 - Long, a professor of religion killed three men;
 - Salt water applied to wounds to keep them from putrefaction.
- [TESTIMONY of WILLIAM C. GILDERSLEEVE;](#)
 - Acts of cruelty.
- [TESTIMONY of HIRAM WHITE;](#)
 - [Woman with a child chained to her neck;](#)
 - [Amalgamation, and mulatto children.](#)
- [TESTIMONY of JOHN M. NELSON;](#)
 - [Rev. Conrad Speece influenced Alexander Nelson when dying not to emancipate his slaves;](#)
 - [George Bourne opposed Slavery in 1810.](#)
- [TESTIMONY of ANGELINA GRIMKÉ WELD;](#)
 - [House-servants;](#)
 - [Slave-driving female professors of religion at Charleston, S.C.;](#)
 - [Whipping women and prayer in the same room;](#)
 - [Tread-mills;](#)
 - [Slaveholding religion;](#)
 - [Slave-driving mistress prayed for the divine blessing upon her whipping of an aged woman;](#)
 - [Girl killed with impunity;](#)
 - [Jewish law;](#)
 - [Barbarities;](#)
 - [Medical attendance upon slaves;](#)
 - [Young man beaten to epilepsy and insanity;](#)
 - [Mistresses flog their slaves;](#)
 - [Blood-bought luxuries;](#)
 - [Borrowing of slaves;](#)
 - [Meals of slaves;](#)
 - [All comfort of slaves disregarded;](#)
 - [Severance of companion lovers;](#)
 - [Separation of parents and children;](#)
 - [Slave espionage;](#)

- [Sufferings of slaves;](#)
 - [Horrors of slavery indescribable.](#)
- [TESTIMONY of CRUELTY INFLICTED UPON SLAVES;](#)
 - [Colonization Society;](#)
 - [Emancipation Society of North Carolina;](#)
 - [Kentucky.](#)
- [PUNISHMENTS;](#)
 - [Floggings;](#)
 - [Witnesses and Testimony.](#)
- [SLAVE DRIVING;](#)
 - [Droves of slaves.](#)
- [CRUELTY TO SLAVES;](#)
 - [Slaves like Stock without a shelter;](#)
 - ["Six pound paddle."](#)
- [TORTURES OF SLAVES.](#)
 - [Iron collars, chains, fetters, and hand-cuffs;](#)
 - [Advertisements for fugitive slaves;](#)
 - [Testimony;](#)
 - [Iron head-frame;](#)
 - [Chain coffles;](#)
 - [Droves of 'human cattle';](#)
 - [Washington, the National slave market;](#)
 - [Testimony of James K. Paulding, Secretary of the Navy;](#)
 - [*Literary fraud and pretended prophecy* by Mr. Paulding;](#)
 - [Brandings, Maimings, and Gun-shot wounds;](#)
 - [Witnesses and Testimony;](#)
 - [Mr. Sevier, senator of the U.S.;](#)
 - [Judge Hitchcock, of Mobile;](#)
 - [Commendable fidelity to truth in the advertisements of slaveholders;](#)
 - [Thomas Aylethorpe cut off a slave's ear, and sent it to Lewis Tappan;](#)
 - [Advertisements for runaway slaves with their teeth mutilated;](#)
 - [Excessive cruelty to slaves;](#)
 - [Slaves burned alive;](#)
 - [Mr. Turner, a slave-butcher;](#)
 - [Slaves roasted and flogged;](#)

- Cruelties common;
- Fugitive slaves;
- Slaves forced to eat tobacco worms;
- Baptist Christians escaping from slavery;
- Christian whipped for praying;
- James K. Paulding's testimony;
- Slave driven to death;
- Coroner's inquest on Harney's murdered female slave;
- Man-stealing encouraged by law;
- Trial for a murdered slave;
- Female slave whipped to death, and during the torture delivered of a dead infant;
- Slaves murdered;
- Slave driven to death;
- Slaves killed with impunity;
- George, a slave, chopped piece-meal, and burnt by Lilburn Lewis;
- Retributive justice in the awful death of Lilburn Lewis;
- Trial of Isham Lewis, a slave murderer.
- PERSONAL NARRATIVES.—PART III.
- NARRATIVE OF REV. FRANCIS HAWLEY;
 - Plantations;
 - Overseers;
 - No appeal from Overseers to Masters.
- CLOTHING;
 - Nudity of slaves.
- WORK;
 - Cotton-picking;
 - Mothers of slaves;
 - Presbyterian minister killed his slave;
 - Methodist colored preacher hung;
 - Licentiousness;
 - Slave-traffic;
 - Night in a Slaveholder's house;
 - Twelve slaves murdered;
 - Slave driving Baptist preachers;
 - Hunting of runaways slaves;
 - Amalgamation.

- TESTIMONY OF REUBEN C. MACY, AND RICHARD MACY.
 - Whipping of slaves.
 - Testimony of Eleazar Powel;
 - Overseer of Hinds Stuart, shot a slave for opposing the torture of his female companion.
- TESTIMONY OF REV. WILLIAM SCALES.
 - Three slaves murdered with impunity;
 - Separation of lovers, parents, and children.
- TESTIMONY OF JOS. IDE.
 - Mrs. T. a Presbyterian kind woman-killer;
 - Female slave whipped to death;
 - Food;
 - Nakedness of slaves;
 - Old man flogged after praying for his tyrant;
 - Slave-huts not as comfortable as pig-sties.
- TESTIMONY OF REV. PHINEAS SMITH.
 - Texas;
 - Suit for the value of slave 'property';
 - Anson Jones, Ambassador from Texas;
 - No trial or punishment for the murder of slaves;
 - Slave-hunting in Texas;
 - Suffering drives the slaves to despair and suicide.
- TESTIMONY OF PHIL'N BLISS.
 - Ignorance of northern citizens respecting slavery;
 - Betting upon crops;
 - Extent and cruelty of the punishment of slaves;
 - Slaveholders excuse their cruelties by the example of Preachers, and professors of religion, and Northern citizens;
 - Novel torture, eulogized by a professor of religion;
 - Whips as common as the plough;
 - Ladies use cowhides, with shovel and tongs.
- TESTIMONY OF REV. WM. A. CHAPIN.
 - Slave-labor;
 - Starvation of slaves;
 - Slaves lacerated, without clothing, and without food.
- TESTIMONY OF T.M. MACY.
 - Cotton plantations on St. Simon's Island;

- Cultivation of rice;
 - No time for relaxation;
 - Sabbath a nominal rest;
 - Clothing;
 - Flogging.
- TESTIMONY OF F.C. MACY.
 - Slave cabins;
 - Food;
 - Whipping every day;
 - Treatment of slaves as brutes;
 - Slave-boys fight for slaveholder's amusement;
 - Amalgamation common.
- TESTIMONY OF A CLERGYMAN.
 - Natchez;
 - 'Lie down,' for whipping;
 - Slave-hunting;
 - 'Ball and chain' men;
 - Whipping at the same time, on three plantations;
 - Hours of Labor;
 - Christians slave-hunting;
 - Many runaway slaves annually shot;
 - Slaves in the stocks;
 - Slave branding.
- CONDITION OF SLAVES.
 - Slavery is unmixed cruelty;
 - Fear the only motive of slaves;
 - Pain is the means, not the end of slave-driving;
 - Characters of Slave drivers and Overseers, brutal, sensual, and violent;
 - Ownership of human beings utterly destroys *their* comfort.
- OBJECTIONS CONSIDERED:
- I. Such cruelties are incredible.
 - Slaves deemed to be working animals, or merchandize; and called 'Stock,' 'Increase,' 'Breeder,' 'Drivers,' 'Property,' 'Human cattle';
 - Testimony of Thomas Jefferson;
 - Slaves worse treated than quadrupeds;
 - Contrast between the usage of slaves and animals;

- Testimony;
- Northern incredulity discreditable to consistency;
- Religious persecutions;
- Recent 'Lynchings,' and Riots, in the United States;
- Many outrageous Felonies perpetrated with impunity;
- Large faith of the objectors who 'can't believe';
- 'Doe faces,' and 'Dough faces';
- Slave-drivers acknowledge their own enormities;
- Slave plantations in Alabama, Louisiana, and Mississippi 'second only to hell';
- Legislature of North Carolina;
- Incredulity discreditable to intelligence;
- Abuse of power in the state, and churches;
- Legal restraints;
- American slaveholders possess absolute power;
- Slaves deprived of the safe guards of law;
- Mutual aversion between the oppressor and the slave;
- Cruelty the product of arbitrary power;
- Testimony of Thomas Jefferson;
- Judge Tucker;
- Presbyterian Synod of South Carolina, and Georgia;
- General William H. Harrison;
- President Edwards;
- Montesquieu;
- Wilberforce;
- Whitbread;
- Characters.
- OBJECTION II.—"Slaveholders protest that they treat their slaves well."
 - Not testimony but opinion;
 - 'Good treatment' of slaves;
 - Novel form of cruelty.
- OBJECTION III.—"Slaveholders are proverbial for their kindness, and generosity."
 - Hospitality and benevolence contrasted;
 - Slaveholders in Congress, respecting Texas and Hayti;
 - 'Fictitious kindness and hospitality.'

- OBJECTION IV.—"Northern visitors at the south testify that the slaves are not cruelly treated."
 - Testimony;
 - 'Gubner poisoned';
 - Field-hands;
 - Parlor slaves;
 - Chief Justice Durell.
- OBJECTION V.—"It is for the interest of the masters to treat their slaves well."
 - Testimony;
 - Rev. J.N. Maffitt;
 - Masters interest to treat cruelly the great body of the slaves;
 - Various classes of slaves;
 - Hired slaves;
 - Advertisements.
- OBJECTION VI.—"Slaves multiply; a proof that they are not inhumanly treated, and are in a comfortable condition."
 - Testimony;
 - Martin Van Buren;
 - Foreign slave trade;
 - 'Beware of Kidnappers';
 - 'Citizens sold as slaves';
 - Kidnapping at New Orleans;
 - Slave breeders.
- OBJECTION VII.—"Public opinion is a protection to the slave."
 - Decision of the Supreme Court of North and South Carolina;
 - 'Protection of slaves';
 - Mischievous effects of 'public opinion' concerning slavery;
 - Laws of different states;
 - Heart of slaveholders;
 - Reasons for enacting the laws concerning cruelties to slaves;
 - 'Moderate correction';
 - Hypocrisy and malignity of slave laws;
 - Testimony of slaves excluded;
 - Capital crimes for slaves;
 - 'Slaveholding brutality,' worse than that of Caligula;
 - Public opinion destroys fundamental rights;

- [Character of slaveholders' advertisements;](#)
- [Public opinion is diabolical;](#)
- [Brutal indecency;](#)
- [Murder of slaves by law;](#)
- [Judge Lawless;](#)
- [Slave-hunting;](#)
- [Health of slaves;](#)
- [Acclimation of slaves;](#)
- [Liberty of Slaves;](#)
- [Kidnapping of free citizens;](#)
- [Law of Louisiana;](#)
- [FRIENDS', memorial;](#)
- [Domestic slavery;](#)
- [Advertisements;](#)
- [Childhood, old age;](#)
- [Inhumanity;](#)
- [Butchering dead slaves;](#)
- [South Carolina Medical college;](#)
- [Charleston Medical Infirmary;](#)
- [Advertisements;](#)
- [Slave murders;](#)
- [John Randolph;](#)
- [Charleston slave auctions;](#)
- ['Never lose a day's work';](#)
- [Stocks;](#)
- [Slave-breeding;](#)
- [Lynch law;](#)
- [Slaves murdered;](#)
- [Slavery among Christians;](#)
- [Licentiousness encouraged by preachers;](#)
- ['Fine old preacher who dealt in slaves';](#)
- [Cruelty to slaves by professors of religion;](#)
- [Slave-breeding;](#)
- [Daniel O'Connell, and Andrew Stevenson;](#)
- [Virginia a negro raising menagerie;](#)
- [Legislature of Virginia;](#)
- [Colonization Society;](#)

- Inter-state slave traffic;
- Battles in Congress;
- Duelling;
- Cock-fighting;
- Horse-racing;
- Ignorance of slaveholders;
- 'Slaveholding civilization, and morality';
- Arkansas;
- Slave driving ruffians;
- Missouri;
- Alabama;
- Butcheries in Mississippi;
- Louisiana;
- Tennessee;
- Fatal Affray in Columbia;
- Presentment of the Grand Jury of Shelby County;
- Testimony of Bishop Smith of Kentucky.
- ATLANTIC SLAVEHOLDING REGION.
 - Georgia;
 - North Carolina;
 - Trading with Negroes;
 - Conclusion.

INTRODUCTION.

Reader, you are empannelled as a juror to try a plain case and bring in an honest verdict. The question at issue is not one of law, but of facts—"What is the actual condition of the slaves in the United States?" A plainer case never went to a jury. Look at it. TWENTY-SEVEN HUNDRED THOUSAND PERSONS in this country, men, women, and children, are in SLAVERY. Is slavery, as a condition for human beings, good, bad, or indifferent? We submit the question without argument. You have common sense, and conscience, and a human heart;—pronounce upon it. You have a wife, or a husband, a child, a father, a mother, a brother or a sister—make the case your own, make it theirs, and bring in your verdict. The case of Human Rights against Slavery has been adjudicated in the court of conscience times innumerable. The same verdict has always been rendered—"Guilty;" the same sentence has always been pronounced, "Let it be accursed;" and human nature, with her million echoes, has rung it round the world in every language under heaven, "Let it be accursed. Let it be accursed." His heart is false to human nature, who will not say "Amen." There is not a man on earth who does not believe that slavery is a curse. Human beings may be inconsistent, but human *nature* is true to herself. She has uttered her testimony against slavery with a shriek ever since the monster was begotten; and till it perishes amidst the execrations of the universe, she will traverse the world on its track, dealing her bolts upon its head, and dashing against it her condemning brand. We repeat it, every man knows that slavery is a curse. Whoever denies this, his lips libel his heart. Try him; clank the chains in his ears, and tell him they are for *him*; give him an hour to prepare his wife and children for a life of slavery; bid him make haste and get ready their necks for the yoke, and their wrists for the coffle chains, then look at his pale lips and trembling knees, and you have *nature's* testimony against slavery.

Two millions seven hundred thousand persons in these States are in this condition. They were made slaves and are held each by force, and by being put in fear, and this for no crime! Reader, what have you to say of such treatment? Is it right, just, benevolent? Suppose I should seize you, rob you

of your liberty, drive you into the field, and make you work without pay as long as you live, would that be justice and kindness, or monstrous injustice and cruelty? Now, every body knows that the slaveholders do these things to the slaves every day, and yet it is stoutly affirmed that they treat them well and kindly, and that their tender regard for their slaves restrains the masters from inflicting cruelties upon them. We shall go into no metaphysics to show the absurdity of this pretence. The man who *robs* you every day, is, forsooth, quite too tender-hearted ever to cuff or kick you! True, he can snatch your money, but he does it gently lest he should hurt you. He can empty your pockets without qualms, but if your *stomach* is empty, it cuts him to the quick. He can make you work a life time without pay, but loves you too well to let you go hungry. He fleeces you of your *rights* with a relish, but is shocked if you work bareheaded in summer, or in winter without warm stockings. He can make you go without your *liberty*, but never without a shirt. He can crush, in you, all hope of bettering your condition, by vowing that you shall die his slave, but though he can coolly torture your feelings, he is too compassionate to lacerate your back—he can break your heart, but he is very tender of your skin. He can strip you of all protection and thus expose you to all outrages, but if you are exposed to the *weather*, half clad and half sheltered, how yearn his tender bowels! What! slaveholders talk of treating men well, and yet not only rob them of all they get, and as fast as they get it, but rob them of *themselves*, also; their very hands and feet, all their muscles, and limbs, and senses, their bodies and minds, their time and liberty and earnings, their free speech and rights of conscience, their right to acquire knowledge, and property, and reputation;—and yet they, who plunder them of all these, would fain make us believe that their soft hearts ooze out so lovingly toward their slaves that they always keep them well housed and well clad, never push them too hard in the field, never make their dear backs smart, nor let their dear stomachs get empty.

But there is no end to these absurdities. Are slaveholders dunces, or do they take all the rest of the world to be, that they think to bandage our eyes with such thin gauzes? Protesting their kind regard for those whom they hourly plunder of all they have and all they get! What! when they have seized their victims, and annihilated all their *rights*, still claim to be the special guardians of their *happiness*! Plunderers of their liberty, yet the careful

suppliers of their wants? Robbers of their earnings, yet watchful sentinels round their interests, and kind providers for their comfort? Filching all their time, yet granting generous donations for rest and sleep? Stealing the use of their muscles, yet thoughtful of their ease? Putting them under *drivers*, yet careful that they are not hard-pushed? Too humane forsooth to stint the stomachs of their slaves, yet force their *minds* to starve, and brandish over them pains and penalties, if they dare to reach forth for the smallest crumb of knowledge, even a letter of the alphabet!

It is no marvel that slaveholders are always talking of their *kind treatment* of their slaves. The only marvel is, that men of sense can be gulled by such professions. Despots always insist that they are merciful. The greatest tyrants that ever dripped with blood have assumed the titles of "most gracious," "most clement," "most merciful," &c., and have ordered their crouching vassals to accost them thus. When did not vice lay claim to those virtues which are the opposites of its habitual crimes? The guilty, according to their own showing, are always innocent, and cowards brave, and drunkards sober, and harlots chaste, and pickpockets honest to a fault. Every body understands this. When a man's tongue grows thick, and he begins to hiccough and walk cross-legged, we expect him, as a matter of course, to protest that he is not drunk; so when a man is always singing the praises of his own honesty, we instinctively watch his movements and look out for our pocket-books. Whoever is simple enough to be hoaxed by such professions, should never be trusted in the streets without somebody to take care of him. Human nature works out in slaveholders just as it does to other men, and in American slaveholders just as in English, French, Turkish, Algerine, Roman and Grecian. The Spartans boasted of their kindness to their slaves, while they whipped them to death by thousands at the altars of their gods. The Romans lauded their own mild treatment of their bondmen, while they branded their names on their flesh with hot irons, and when old, threw them into their fish ponds, or like Cato "the Just," starved them to death. It is the boast of the Turks that they treat their slaves as though they were their children, yet their common name for them is "dogs," and for the merest trifles, their feet are bastinadoed to a jelly, or their heads clipped off with the scimitar. The Portuguese pride themselves on their gentle bearing toward their slaves, yet the streets of Rio Janeiro are filled with naked men

and women yoked in pairs to carts and wagons, and whipped by drivers like beasts of burden.

Slaveholders, the world over, have sung the praises of their tender mercies towards their slaves. Even the wretches that plied the African slave trade, tried to rebut Clarkson's proofs of their cruelties, by speeches, affidavits, and published pamphlets, setting forth the accommodations of the "middle passage," and their kind attentions to the comfort of those whom they had stolen from their homes, and kept stowed away under hatches, during a voyage of four thousand miles. So, according to the testimony of the autocrat of the Russias, he exercises great clemency towards the Poles, though he exiles them by thousands to the snows of Siberia, and tramples them down by millions, at home. Who discredits the atrocities perpetrated by Ovando in Hispaniola, Pizarro in Peru, and Cortez in Mexico,—because they filled the ears of the Spanish Court with protestations of their benignant rule? While they were yoking the enslaved natives like beasts to the draught, working them to death by thousands in their mines, hunting them with bloodhounds, torturing them on racks, and broiling them on beds of coals, their representations to the mother country teemed with eulogies of their parental sway! The bloody atrocities of Philip II, in the expulsion of his Moorish subjects, are matters of imperishable history. Who disbelieves or doubts them? And yet his courtiers magnified his virtues and chanted his clemency and his mercy, while the wail of a million victims, smitten down by a tempest of fire and slaughter let loose at his bidding, rose above the *Te Deums* that thundered from all Spain's cathedrals. When Louis XIV. revoked the edict of Nantz, and proclaimed two millions of his subjects free plunder for persecution,—when from the English channel to the Pyrennees the mangled bodies of the Protestants were dragged on reeking hurdles by a shouting populace, he claimed to be "the father of his people," and wrote himself "His most *Christian* Majesty."

But we will not anticipate topics, the full discussion of which more naturally follows than precedes the inquiry into the actual condition and treatment of slaves in the United States.

As slaveholders and their apologists are volunteer witnesses in their own cause, and are flooding the world with testimony that their slaves are kindly treated; that they are well fed, well clothed, well housed, well lodged,

moderately worked, and bountifully provided with all things needful for their comfort, we propose—first, to disprove their assertions by the testimony of a multitude of impartial witnesses, and then to put slaveholders themselves through a course of cross-questioning which shall draw their condemnation out of their own mouths. We will prove that the slaves in the United States are treated with barbarous inhumanity; that they are overworked, underfed, wretchedly clad and lodged, and have insufficient sleep; that they are often made to wear round their necks iron collars armed with prongs, to drag heavy chains and weights at their feet while working in the field, and to wear yokes, and bells, and iron horns; that they are often kept confined in the stocks day and night for weeks together, made to wear gags in their mouths for hours or days, have some of their front teeth torn out or broken off, that they may be easily detected when they run away; that they are frequently flogged with terrible severity, have red pepper rubbed into their lacerated flesh, and hot brine, spirits of turpentine, &c., poured over the gashes to increase the torture; that they are often stripped naked, their backs and limbs cut with knives, bruised and mangled by scores and hundreds of blows with the paddle, and terribly torn by the claws of cats, drawn over them by their tormentors; that they are often hunted with bloodhounds and shot down like beasts, or torn in pieces by dogs; that they are often suspended by the arms and whipped and beaten till they faint, and when revived by restoratives, beaten again till they faint, and sometimes till they die; that their ears are often cut off, their eyes knocked out, their bones broken, their flesh branded with red hot irons; that they are maimed, mutilated and burned to death over slow fires. All these things, and more, and worse, we shall *prove*. Reader, we know whereof we affirm, we have weighed it well; *more and worse* WE WILL PROVE. Mark these words, and read on; we will establish all these facts by the testimony of scores and hundreds of eye witnesses, by the testimony of *slaveholders* in all parts of the slave states, by slaveholding members of Congress and of state legislatures, by ambassadors to foreign courts, by judges, by doctors of divinity, and clergymen of all denominations, by merchants, mechanics, lawyers and physicians, by presidents and professors in colleges and *professional* seminaries, by planters, overseers and drivers. We shall show, not merely that such deeds are committed, but that they are frequent; not done in corners, but before the sun; not in one of the slave states, but in all of them; not perpetrated by brutal overseers and drivers merely, but by

magistrates, by legislators, by professors of religion, by preachers of the gospel, by governors of states, by "gentlemen of property and standing," and by delicate females moving in the "highest circles of society." We know, full well, the outcry that will be made by multitudes, at these declarations; the multiform cavils, the flat denials, the charges of "exaggeration" and "falsehood" so often bandied, the sneers of affected contempt at the credulity that can believe such things, and the rage and imprecations against those who give them currency. We know, too, the threadbare sophistries by which slaveholders and their apologists seek to evade such testimony. If they admit that such deeds are committed, they tell us that they are exceedingly rare, and therefore furnish no grounds for judging of the general treatment of slaves; that occasionally a brutal wretch in the *free* states barbarously butchers his wife, but that no one thinks of inferring from that, the general treatment of wives at the North and West.

They tell us, also, that the slaveholders of the South are proverbially hospitable, kind, and generous, and it is incredible that they can perpetrate such enormities upon human beings; further, that it is absurd to suppose that they would thus injure their own property, that self-interest would prompt them to treat their slaves with kindness, as none but fools and madmen wantonly destroy their own property; further, that Northern visitors at the South come back testifying to the kind treatment of the slaves, and that the slaves themselves corroborate such representations. All these pleas, and scores of others, are bruited in every corner of the free States; and who that hath eyes to see, has not sickened at the blindness that saw not, at the palsy of heart that felt not, or at the cowardice and sycophancy that dared not expose such shallow fallacies. We are not to be turned from our purpose by such vapid babblings. In their appropriate places, we propose to consider these objections and various others, and to show their emptiness and folly.

The foregoing declarations touching the inflictions upon slaves, are not haphazard assertions, nor the exaggerations of fiction conjured up to carry a point; nor are they the rhapsodies of enthusiasm, nor crude conclusions, jumped at by hasty and imperfect investigation, nor the aimless outpourings either of sympathy or poetry; but they are proclamations of deliberate, well-weighed convictions, produced by accumulations of proof, by affirmations and affidavits, by written testimonies and statements of a cloud of witnesses who speak what they know and testify what they have seen, and all these

impreguably fortified by proofs innumerable, in the relation of the slaveholder to his slave, the nature of arbitrary power, and the nature and history of man.

Of the witnesses whose testimony is embodied in the following pages, a majority are slaveholders, many of the remainder have been slaveholders, but now reside in free States.

Another class whose testimony will be given, consists of those who have furnished the results of their own observation during periods of residence and travel in the slave States.

We will first present the reader with a few PERSONAL NARRATIVES furnished by individuals, natives of slave states and others, embodying, in the main, the results of their own observation in the midst of slavery—facts and scenes of which they were eye-witnesses.

In the next place, to give the reader as clear and definite a view of the actual condition of slaves as possible, we propose to make specific points; to pass in review the various particulars in the slave's condition, simply presenting sufficient testimony under each head to settle the question in every candid mind. The examination will be conducted by stating distinct propositions, and in the following order of topics.

1. THE FOOD OF THE SLAVES, THE KINDS, QUALITY AND QUANTITY, ALSO, THE NUMBER AND TIME OF MEALS EACH DAY, &c.

2. THEIR HOURS OF LABOR AND REST.

3. THEIR CLOTHING.

4. THEIR DWELLINGS.

5. THEIR PRIVATIONS AND INFLICTIONS.

6. *In conclusion*, a variety of OBJECTIONS and ARGUMENTS will be considered which are used by the advocates of slavery to set aside the force of testimony, and to show that the slaves are kindly treated.

Between the larger divisions of the work, brief personal narratives will be inserted, containing a mass of facts and testimony, both general and specific.

PERSONAL NARRATIVES.

MR. NEHEMIAH CAULKINS, of Waterford, New London Co., Connecticut, has furnished the Executive Committee of the American Anti-Slavery Society, with the following statements relative to the condition and treatment of slaves, in the south eastern part of North Carolina. Most of the facts related by Mr. Caulkins fell under his personal observation. The air of candor and honesty that pervades the narrative, the manner in which Mr. C. has drawn it up, the good sense, just views, conscience and heart which it exhibits, are sufficient of themselves to commend it to all who have ears to hear.

The Committee have no personal acquaintance with Mr. Caulkins, but they have ample testimonials from the most respectable sources, all of which represent him to be a man whose long established character for sterling integrity, sound moral principle and piety, have secured for him the uniform respect and confidence of those who know him.

Without further preface the following testimonials are submitted to the reader.

This may certify, that we the subscribers have lived for a number of years past in the neighborhood with Mr. Nehemiah Caulkins, and have no hesitation in stating that we consider him a man of high respectability and that his character for truth and veracity is unimpeachable. PETER COMSTOCK. A.F. PERKINS, M.D. ISAAC BEEBE. LODOWICK BEEBE. D.G. OTIS. PHILIP MORGAN. JAMES ROGERS, M.D. *Waterford, Ct., Jan. 16th, 1839.*

Mr. Comstock is a Justice of the Peace. Mr. L. Beebe is the Town Clerk of Waterford. Mr. J. Beebe is a member of the Baptist Church. Mr. Otis is a member of the Congregational Church. Mr. Morgan is a Justice of the Peace, and Messrs. Perkins and Rogers are designated by their titles. All those gentlemen are citizens of Waterford, Connecticut.

To whom it may concern. This may certify that Mr. Nehemiah Caulkins, of Waterford, in New London County, is a near neighbor to the subscriber, and has been for many years. I do consider him a man of *unquestionable veracity* and certify that he is so considered by people to whom he is personally known. EDWARD R. WARREN. *Jan. 15th, 1839.*

Mr. Warren is a Commissioner (Associate Judge) of the County Court, for New London County.

This may certify that Mr. Nehemiah Caulkins, of the town of Waterford, County of New London, and State of Connecticut, is a member of the first Baptist Church in said Waterford, is in good standing, and is esteemed by us a man of truth and veracity. FRANCIS DARROW, Pastor of said Church. *Waterford, Jan. 16th, 1839.*

This may certify that Nehemiah Caulkins, of Waterford, lives near me, and I always esteemed him, and believe him to be a man of truth and veracity. ELISHA BECKWITH. *Jan. 16th, 1839.*

Mr. Beckwith is a Justice of the Peace, a Post Master, and a Deacon of the Baptist Church.

Mr. Dwight P. Jones, a member of the Second Congregational Church in the city of New London, in a recent letter, says;

"Mr. Caulkins is a member of the Baptist Church in Waterford, and in every respect a very worthy citizen. I have labored with him in the Sabbath School, and know him to be a man of active piety. The most *entire confidence* may be placed in the truth of his statements. Where he is known, no one will call them in question."

We close these testimonials with an extract, of a letter from William Bolles, Esq., a well known and respected citizen of New London, Ct.

"Mr. Nehemiah Caulkins resides in the town of Waterford, about six miles from this City. His opportunities to acquire exact knowledge in relation to Slavery, in that section of our country, to which his narrative is confined, have been very great. He is a carpenter, and was employed principally on the plantations, working at his trade, being thus almost constantly in the company of the slaves as well as of their masters. His full heart readily

responded to the call, [for information relative to slavery,] for, as he expressed it, he had long desired that others might know what he had seen, being confident that a general knowledge of facts as they exist, would greatly promote the overthrow of the system. He is a man of undoubted character; and where known, his statements need no corroboration.

Yours, &c. WILLIAM BOLLES."

NARRATIVE OF MR. CAULKINS.

I feel it my duty to tell some things that I know about slavery, in order, if possible, to awaken more feeling at the North in behalf of the slave. The treatment of the slaves on the plantations where I had the greatest opportunity of getting knowledge, *was not so bad* as that on some neighboring estates, where the owners were noted for their cruelty. There were, however, other estates in the vicinity, where the treatment was better; the slaves were better clothed and fed, were not worked so hard, and more attention was paid to their quarters.

The scenes that I have witnessed are enough to harrow up the soul; but could the slave be permitted to tell the story of his sufferings, which no white man, not linked with slavery, *is allowed to know*, the land would vomit out the horrible system, slaveholders and all, if they would not unclinch their grasp upon their defenceless victims.

I spent eleven winters, between the years 1824 and 1835, in the state of North Carolina, mostly in the vicinity of Wilmington; and four out of the eleven on the estate of Mr. John Swan, five or six miles from that place. There were on his plantation about seventy slaves, male and female: some were married, and others lived together as man and wife, without even a mock ceremony. With their owners generally, it is a matter of indifference; the marriage of slaves not being recognized by the slave code. The slaves, however, think much of being married by a clergyman.

The cabins or huts of the slaves were small, and were built principally by the slaves themselves, as they could find time on Sundays and moonlight nights; they went into the swamps, cut the logs, backed or hauled them to the quarters, and put up their cabins.

When I first knew Mr. Swan's plantation, his overseer was a man who had been a Methodist minister. He treated the slaves with great cruelty. His reason for leaving the ministry and becoming an overseer, as I was informed, was this: his wife died, at which providence he was so enraged, that he swore he would not preach for the Lord another day. This man

continued on the plantation about three years; at the close of which, on settlement of accounts, Mr. Swan owed him about \$400, for which he turned him out a negro woman, and about twenty acres of land. He built a log hut, and took the woman to live with him; since which, I have been at his hut, and seen four or five mulatto children. He has been appointed *justice of the peace*, and his place as overseer was afterwards occupied by a Mr. Galloway.

It is customary in that part of the country, to let the hogs run in the woods. On one occasion a slave caught a pig about two months old, which he carried to his quarters. The overseer, getting information of the fact, went to the field where he was at work, and ordered him to come to him. The slave at once suspected it was something about the pig, and fearing punishment, dropped his hoe and ran for the woods. He had got but a few rods, when the overseer raised his gun, loaded with duck shot, and brought him down. It is a common practice for overseers to go into the field armed with a gun or pistols, and sometimes both. He was taken up by the slaves and carried to the plantation hospital, and the physician sent for. A physician was employed by the year to take care of the sick or wounded slaves. In about six weeks this slave got better, and was able to come out of the hospital. He came to the mill where I was at work, and asked me to examine his body, which I did, and counted twenty-six duck shot still remaining in his flesh, though the doctor had removed a number while he was laid up.

There was a slave on Mr. Swan's plantation, by the name of Harry, who, during the absence of his master, ran away and secreted himself in the woods. This the slaves sometimes do, when the master is absent for several weeks, to escape the cruel treatment of the overseer. It is common for them to make preparations, by secreting a mortar, a hatchet, some cooking utensils, and whatever things they can get that will enable them to live while they are in the woods or swamps. Harry staid about three months, and lived by robbing the rice grounds, and by such other means as came in his way. The slaves generally know where the runaway is secreted, and visit him at night and on Sundays. On the return of his master, some of the slaves were sent for Harry. When he came home, he was seized and confined in the stocks. The stocks were built in the barn, and consisted of two heavy pieces of timber, ten or more feet in length, and about seven inches wide; the lower one, on the floor, has a number of holes or places cut in it, for the

anclcs; the upper piece, being of the same dimensions, is fastened at one end by a hinge, and is brought down after the anclcs are placed in the holes, and secured by a clasp and padlock at the other end. In this manner the person is left to sit on the floor. Barry was kept in the stocks *day and night for a week*, and flogged *every morning*. After this, he was taken out one morning, a log chain fastened around his neck, the two ends dragging on the ground, and he sent to the field, to do his task with the other slaves. At night he was again put in the stocks, in the morning he was sent to the field in the same manner, and thus dragged out another week.

The overseer was a very miserly fellow, and restricted his wife in what are considered the comforts of life—such as tea, sugar, &c. To make up for this, she set her wits to work, and, by the help of a slave, named Joe, used to take from the plantation whatever she could conveniently, and watch her opportunity during her husband's absence, and send Joe to sell them and buy for her such things as she directed. Once when her husband was away, she told Joe to kill and dress one of the pigs, sell it, and get her some tea, sugar, &c. Joe did as he was bid, and she gave him the offal for his services. When Galloway returned, not suspecting his wife, he asked her if she knew what had become of his pig. She told him she suspected one of the slaves, naming him, had stolen it, for she had heard a pig squeal the evening before. The overseer called the slave up, and charged him with the theft. He denied it, and said he knew nothing about it. The overseer still charged him with it, and told him he would give him one week to think of it, and if he did not confess the theft, or find out who did steal the pig, he would flog every negro on the plantation; before the week was up it was ascertained that Joe had killed the pig. He was called up and questioned, and admitted that he had done so, and told the overseer that he did it by the order of Mrs. Galloway, and that she directed him to buy some sugar, &c. with the money. Mrs. Galloway gave Joe the lie; and he was terribly flogged. Joe told me he had been several times to the smoke-house with Mrs. G, and taken hams and sold them, which her husband told me he supposed were stolen by the negroes on a neighboring plantation. Mr. Swan, hearing of the circumstance, told me he believed Joe's story, but that his statement would not be taken as proof; and if every slave on the plantation told the same story it could not be received as evidence against a white person.

To show the manner in which old and worn-out slaves are sometimes treated, I will state a fact. Galloway owned a man about seventy years of age. The old man was sick and went to his hut; laid himself down on some straw with his feet to the fire, covered by a piece of an old blanket, and there lay four or five days, groaning in great distress, without any attention being paid him by his master, until death ended his miseries; he was then taken out and buried with as little ceremony and respect as would be paid to a brute.

There is a practice prevalent among the planters, of letting a negro off from severe and long-continued punishment on account of the intercession of some white person, who pleads in his behalf, that he believes the negro will behave better, that he promises well, and he believes he will keep his promise, &c. The planters sometimes get tired of punishing a negro, and, wanting his services in the field, they get some white person to come, and, in the presence of the slave, intercede for him. At one time a negro, named Charles, was confined in the stocks in the building where I was at work, and had been severely whipped several times. He begged me to intercede for him and try to get him released. I told him I would; and when his master came in to whip him again, I went up to him and told him I had been talking with Charles, and he had promised to behave better, &c., and requested him not to punish him any more, but to let him go. He then said to Charles, "As Mr. Caulkins has been pleading for you, I will let you go on his account;" and accordingly released him.

Women are generally shown some little indulgence for three or four weeks previous to childbirth; they are at such times not often punished if they do not finish the task assigned them; it is, in some cases, passed over with a severe reprimand, and sometimes without any notice being taken of it. They are generally allowed four weeks after the birth of a child, before they are compelled to go into the field, they then take the child with them, attended sometimes by a little girl or boy, from the age of four to six, to take care of it while the mother is at work. When there is no child that can be spared, or not young enough for this service, the mother, after nursing, lays it under a tree, or by the side of a fence, and goes to her task, returning at stated intervals to nurse it. While I was on this plantation, a little negro girl, six years of age, destroyed the life of a child about two months old, which was left in her care. It seems this little nurse, so called, got tired of her charge

and the labor of carrying it to the quarters at night, the mother being obliged to work as long as she could see. One evening she nursed the infant at sunset as usual, and sent it to the quarters. The little girl, on her way home, had to cross a run or brook, which led down into the swamp; when she came to the brook she followed it into the swamp, then took the infant and plunged it head foremost into the water and mud, where it stuck fast; she there left it and went to the negro quarters. When the mother came in from the field, she asked the girl where the child was; she told her she had brought it home, but did not know where it was; the overseer was immediately informed, search was made, and it was found as above stated, and dead. The little girl was shut up in the barn, and confined there two or three weeks, when a speculator came along and bought her for two hundred dollars.

The slaves are obliged to work from daylight till dark, as long as they can see. When they have tasks assigned, which is often the case, a few of the strongest and most expert, sometimes finish them before sunset; others will be obliged to work till eight or nine o'clock in the evening. All must finish their tasks or take a flogging. The whip and gun, or pistol, are companions of the overseer; the former he uses very frequently upon the negroes, during their hours of labor, without regard to age or sex. Scarcely a day passed while I was on the plantation, in which some of the slaves were not whipped; I do not mean that they were *struck a few blows* merely, but had a *set flogging*. The same labor is commonly assigned to men and women,—such as digging ditches in the rice marshes, clearing up land, chopping cord-wood, threshing, &c. I have known the women go into the barn as soon as they could see in the morning, and work as late as they could see at night, threshing rice with the flail, (they now have a threshing machine,) and when they could see to thresh no longer, they had to gather up the rice, carry it up stairs, and deposit it in the granary.

The allowance of clothing on this plantation to each slave, was given out at Christmas for the year, and consisted of one pair of coarse shoes, and enough coarse cloth to make a jacket and trowsers. If the man has a wife she makes it up; if not, it is made up in the house. The slaves on this plantation, being near Wilmington, procured themselves extra clothing by working Sundays and moonlight nights, cutting cordwood in the swamps, which they had to back about a quarter of a mile to the ricer; they would

then get a permit from their master, and taking the wood in their canoes, carry it to Wilmington, and sell it to the vessels, or dispose of it as they best could, and with the money buy an old jacket of the sailors, some coarse cloth for a shirt, &c. They sometimes gather the moss from the trees, which they cleanse and take to market. The women receive their allowance of the same kind of cloth which the men have. This they make into a frock; if they have any under garments *they must procure them for themselves*. When the slaves get a permit to leave the plantation, they sometimes make all ring again by singing the following significant ditty, which shows that after all there is a flow of spirits in the human breast which for a while, at least, enables them to forget their wretchedness.[1]

Hurra, for good ole Massa, He giv me de pass to go to de city Hurra,
for good ole Missis, She bile de pot, and giv me de licker.
Hurra, I'm goin to de city.

[Footnote 1: Slaves sometimes sing, and so do convicts in jails under sentence, and both for the same reason. Their singing proves that they *want* to be happy not that they *are* so. It is the *means* that they use to make themselves happy, not the evidence that they are so already. Sometimes, doubtless, the excitement of song whelms their misery in momentary oblivion. He who argues from this that they have no conscious misery to forget, knows as little of human nature as of slavery.—EDITOR.]

Every Saturday night the slaves receive their allowance of provisions, which must last them till the next Saturday night. "Potatoe time," as it is called, begins about the middle of July. The slave may measure for himself, the overseer being present, half a bushel of sweet potatoes, and heap the measure as long as they will lie on; I have, however, seen the overseer, if he think the negro is getting too many, kick the measure; and if any fall off tell him he has got his measure. No salt is furnished them to eat with their potatoes. When rice or corn is given, they give them a little salt; sometimes half a pint of molasses is given, but not often. The quantity of rice, which is of the small, broken, unsaleable kind, is one peck. When corn is given them,

their allowance is the same, and if they get it ground, (Mr. Swan had a mill on his plantation,) they must give one quart for grinding, thus reducing their weekly allowance to seven quarts. When fish (mullet) were plenty, they were allowed, in addition, one fish. As to meat, they seldom had any. I do not think they had an allowance of meat oftener than once in two or three months, and then the quantity was very small. When they went into the field to work, they took some of the meal or rice and a pot with them; the pots were given to an old woman, who placed two poles parallel, set the pots on them, and kindled a fire underneath for cooking; she took salt with her and seasoned the messes as she thought proper. When their breakfast was ready, which was generally about ten or eleven o'clock, they were called from labor, ate, and returned to work; in the afternoon, dinner was prepared in the same way. They had but two meals a day while in the field; if they wanted more, they cooked for themselves after they returned to their quarters at night. At the time of killing hogs on the plantation, the pluck, entrails, and blood were given to the slaves.

When I first went upon Mr. Swan's plantation, I saw a slave in shackles or fetters, which were fastened around each ankle and firmly riveted, connected together by a chain. To the middle of this chain he had fastened a string, so as in a manner to suspend them and keep them from galling his ankles. This slave, whose name was Frank, was an intelligent, good looking man, and a very good mechanic. There was nothing vicious in his character, but he was one of those high-spirited and daring men, that whips, chains, fetters, and all the means of cruelty in the power of slavery, could not subdue. Mr. S. had employed a Mr. Beckwith to repair a boat, and told him Frank was a good mechanic, and he might have his services. Frank was sent for, his *shackles still on*. Mr. Beckwith set him to work making *trundels*, &c. I was employed in putting up a building, and after Mr. Beckwith had done with Frank, he was sent for to assist me. Mr. Swan sent him to a blacksmith's shop and had his shackles cut off with a cold chisel. Frank was afterwards sold to a cotton planter.

I will relate one circumstance, which shows the little regard that is paid to the feelings of the slave. During the time that Mr. Isaiah Rogers was superintending the building of a rice machine, one of the slaves complained of a severe toothache. Swan asked Mr. Rogers to take his hammer and *knock out the tooth*.

There was a slave on the plantation named Ben, a waiting man. I occupied a room in the same hut, and had frequent conversations with him. Ben was a kind-hearted man, and, I believe, a Christian; he would always ask a blessing before he sat down to eat, and was in the constant practice of praying morning and night.—One day when I was at the hut, Ben was sent for to go to the house. Ben sighed deeply and went. He soon returned with a girl about seventeen years of age, whom one of Mr. Swan's daughters had ordered him to flog. He brought her into the room where I was, and told her to stand there while he went into the next room: I heard him groan again as he went. While there I heard his voice, and he was engaged in prayer. After a few minutes he returned with a large cowhide, and stood before the girl, without saying a word. I concluded he wished me to leave the hut, which I did; and immediately after I heard the girl scream. At every blow she would shriek, "Do, Ben! oh do, Ben!" This is a common expression of the slaves to the person whipping them: "Do, Massa!" or, "Do, Missus!"

After she had gone, I asked Ben what she was whipped for: he told me she had done something to displease her young missus; and in boxing her ears, and otherwise beating her, she had scratched her finger by a pin in the girl's dress, for which she sent her to be flogged. I asked him if he stripped her before flogging; he said, yes; he did not like to do this, but was *obliged* to: he said he was once ordered to whip a woman, which he did without stripping her: on her return to the house, her mistress examined her back; and not seeing any marks, he was sent for, and asked why he had not whipped her: he replied that he had; she said she saw no marks, and asked him if he had made her pull her clothes off; he said, No. She then told him, that when he whipped any more of the women, he must make them strip off their clothes, as well as the men, and flog them on their bare backs, or he should be flogged himself.

Ben often appeared very gloomy and sad: I have frequently heard him, when in his room, mourning over his condition, and exclaim, "Poor African slave! Poor African slave!" Whipping was so common an occurrence on this plantation, that it would be too great a repetition to state the *many* and *severe* floggings I have seen inflicted on the slaves. They were flogged for not performing their tasks, for being careless, slow, or not in time, for going to the fire to warm, &c. &c.; and it often seemed as if occasions were sought as an excuse for punishing them.

On one occasion, I heard the overseer charge the hands to be at a certain place the next morning at sun-rise. I was present in the morning, in company with my brother, when the hands arrived. Joe, the slave already spoken of, came running, all out of breath, about five minutes behind the time, when, without asking any questions, the overseer told him to take off his jacket. Joe took off his jacket. He had on a piece of a shirt; he told him to take it off: Joe took it off: he then whipped him with a heavy cowhide full six feet long. At every stroke Joe would spring from the ground, and scream, "O my God! Do, Massa Galloway!" My brother was so exasperated; that he turned to me and said, "If I were Joe, I would kill the overseer if I knew I should be shot the next minute."

In the winter the horn blew at about four in the morning, and all the threshers were required to be at the threshing floor in fifteen minutes after. They had to go about a quarter of a mile from their quarters. Galloway would stand near the entrance, and all who did not come in time would get a blow over the back or head as heavy as he could strike. I have seen him, at such times, follow after them, striking furiously a number of blows, and every one followed by their screams. I have seen the women go to their work after such a flogging, crying and taking on most piteously.

It is almost impossible to believe that human nature can endure such hardships and sufferings as the slaves have to go through: I have seen them driven into a ditch in a rice swamp to bail out the water, in order to put down a flood-gate, when they had to break the ice, and there stand in the water among the ice until it was bailed out. I have *often* known the hands to be taken from the field, sent down the river in flats or boats to Wilmington, absent from twenty-four to thirty hours, *without any thing to eat*, no provision being made for these occasions.

Galloway kept medicine on hand, that in case any of the slaves were sick, he could give it to them without sending for the physician; but he always kept a good look out that they did not sham sickness. When any of them excited his suspicions, he would make them take the medicine in his presence, and would give them a rap on the top of the head, to make them swallow it. A man once came to him, of whom he said he was suspicious: he gave him two potions of salts, and fastened him in the stocks for the

night. His medicine soon began to operate; and *there he lay in all his filth till he was taken out the next day.*

One day, Mr. Swan beat a slave severely, for alleged carelessness in letting a boat get adrift. The slave was told to secure the boat: whether he took sufficient means for this purpose I do not know; he was not allowed to make any defence. Mr. Swan called him up, and asked why he did not secure the boat: he pulled off his hat and began to tell his story. Swan told him he was a damned liar, and commenced beating him over the head with a hickory cane, and the slave retreated backwards; Swan followed him about two rods, threshing him over the head with the hickory as he went.

As I was one day standing near some slaves who were threshing, the driver, thinking one of the women did not use her flail quick enough, struck her over the head: the end of the whip hit her in the eye. I thought at the time he had put it out; but, after poulticing and doctoring for some days, she recovered. Speaking to him about it, he said that he once struck a slave so as to put one of her eyes entirely out.

A patrol is kept upon each estate, and every slave found off the plantation without a pass is whipped on the spot. I knew a slave who started without a pass, one night, for a neighboring plantation, to see his wife: he was caught, tied to a tree, and flogged. He stated his business to the patrol, who was well acquainted with him but all to no purpose. I spoke to the patrol about it afterwards: he said he knew the negro, that he was a very clever fellow, but he had to whip him; for, if he let him pass, he must another, &c. He stated that he had sometimes caught and flogged four in a night.

In conversation with Mr. Swan about runaway slaves, he stated to me the following fact:—A slave, by the name of Luke, was owned in Wilmington; he was sold to a speculator and carried to Georgia. After an absence of about two months the slave returned; he watched an opportunity to enter his old master's house when the family were absent, no one being at home but a young waiting man. Luke went to the room where his master kept his arms; took his gun, with some ammunition, and went into the woods. On the return of his master, the waiting man told him what had been done: this threw him into a violent passion; he swore he would kill Luke, or lose his own life. He loaded another gun, took two men, and made search, but could

not find him: he then advertised him, offering a large reward if delivered to him or lodged in jail. His neighbors, however, advised him to offer a reward of two hundred dollars for him *dead or alive*, which he did. Nothing however was heard of him for some months. Mr. Swan said, one of his slaves ran away, and was gone eight or ten weeks; on his return he said he had found Luke, and that he had a rifle, two pistols, and a sword.

I left the plantation in the spring, and returned to the north; when I went out again, the next fall, I asked Mr. Swan if any thing had been heard of Luke; he said he was *shot*, and related to me the manner of his death, as follows:—Luke went to one of the plantations, and entered a hut for something to eat. Being fatigued, he sat down and fell asleep. There was only a woman in the hut at the time: as soon as she found he was asleep, she ran and told her master, who took his rifle, and called two white men on another plantation: the three, with their rifles, then went to the hut, and posted themselves in different positions, so that they could watch the door. When Luke waked up he went to the door to look out, and saw them with their rifles, he stepped back and raised his gun to his face. They called to him to surrender; and stated that they had him in their power, and said he had better give up. He said he would not: and if they tried to take him, he would kill one of them; for, if he gave up, he knew they would kill him, and he was determined to sell his life as dear as he could. They told him, if he should shoot one of them, the other two would certainly kill him: he replied, he was determined not to give up, and kept his gun moving from one to the other; and while his rifle was turned toward one, another, standing in a different direction, shot him through the head, and he fell lifeless to the ground.

There was another slave shot while I was there; this man had run away, and had been living in the woods a long time, and it was not known where he was, till one day he was discovered by two men, who went on the large island near Belvidere to hunt turkeys; they shot him and carried his head home.

It is common to keep dogs on the plantations, to pursue and catch runaway slaves. I was once bitten by one of them. I went to the overseer's house, the dog lay in the piazza, as soon as I put my foot upon the floor, he sprang and bit me just above the knee, but not severely; he tore my pantaloons badly. The overseer apologized for his dog, saying he never knew him to bite a

white man before. He said he once had a dog, when he lived on another plantation, that was very useful to him in hunting runaway negroes. He said that a slave on the plantation once ran away; as soon as he found the course he took, he put the dog on the track, and he soon came so close upon him that the man had to climb a tree, he followed with his gun, and brought the slave home.

The slaves have a great dread of being sold and carried south. It is generally said, and I have no doubt of its truth, that they are much worse treated farther south.

The following are a few among the many facts related to me while I lived among the slaveholder. The names of the planters and plantations, I shall not give, *as they did not come under my own observation*. I however place the fullest confidence in their truth.

A planter not far from Mr. Swan's employed an overseer to whom he paid \$400 a year; he became dissatisfied with him, because he did not drive the slaves hard enough, and get more work out of them. He therefore sent to South Carolina, or Georgia, and got a man to whom he paid I believe \$800 a year. He proved to be a cruel fellow, and drove the slaves almost to death. There was a slave on this plantation, who had repeatedly run away, and had been severely flogged every time. The last time he was caught, a hole was dug in the ground, and he buried up to the chin, his arms being secured down by his sides. He was kept in this situation four or five days.

The following was told me by an intimate friend; it took place on a plantation containing about one hundred slaves. One day the owner ordered the women into the barn, he then went in among them, whip in hand, and told them he meant to flog them all to death; they began immediately to cry out "What have I done Massa? What have I done Massa?" He replied; "D—n you, I will let you know what you have done, you don't breed, I haven't had a young one from one of you for several months." They told him they could not breed while they had to work in the rice ditches. (The rice grounds are low and marshy, and have to be drained, and while digging or clearing the ditches, the women had to work in mud and water from one to two feet in depth; they were obliged to draw up and secure their frocks about their waist, to keep them out of the water, in this manner they

frequently had to work from daylight in the morning till it was so dark they could see no longer.) After swearing and threatening for some time, he told them to tell the overseer's wife, when they got in that way, and he would put them upon the land to work.

This same planter had a female slave who was a member of the Methodist Church; for a slave she was intelligent and conscientious. He proposed a criminal intercourse with her. She would not comply. He left her and sent for the overseer, and told him to have her flogged. It was done. Not long after, he renewed his proposal. She again refused. She was again whipped. He then told her why she had been twice flogged, and told her he intended to whip her till she should yield. The girl, seeing that her case was hopeless, her back smarting with the scourging she had received, and dreading a repetition, gave herself up to be the victim of his brutal lusts.

One of the slaves on another plantation, gave birth to a child which lived but two or three weeks. After its death the planter called the woman to him, and asked her how she came to let the child die; said it was all owing to her carelessness, and that he meant to flog her for it. She told, him with all the feeling of a mother, the circumstances of its death. But her story availed her nothing against the savage brutality of her master. She was severely whipped. A healthy child four months old was then considered worth \$100 in North Carolina.

The foregoing facts were related to me by white persons of character and respectability. The following fact was related to me on a plantation where I have spent considerable time and where the punishment was inflicted. I have no doubt of its truth. A slave ran away from his master, and got as far as Newbern. He took provisions that lasted him a week; but having eaten all, he went to a house to get something to satisfy his hunger. A white man suspecting him to be a runaway, demanded his pass; as he had none he was seized and put in Newbern jail. He was there advertised, his description given, &c. His master saw the advertisement and sent for him; when he was brought back, his wrists were tied together and drawn over his knees. A stick was then passed over his arms and under his knees, and he secured in this manner, his trowsers were then stripped down, and he turned over on his side, and severely beaten with the paddle, then turned over and severely beaten on the other side, and then turned back again, and tortured by

another bruising and beating. He was afterwards kept in the stocks a week, and whipped every morning.

To show the disgusting pollutions of slavery, and how it covers with moral filth every thing it touches, I will state two or three facts, which I have on such evidence I cannot doubt their truth. A planter offered a white man of my acquaintance twenty dollars for every one of his female slaves, whom he would get in the family way. This offer was no doubt made for the purpose of improving the stock, on the same principle that farmers endeavour to improve their cattle by crossing the breed.

Slaves belonging to merchants and others in the city, often hire their own time, for which they pay various prices per week or month, according to the capacity of the slave. The females who thus hire their time, pursue various modes to procure the money; their masters making no inquiry how they get it, provided the money comes. If it is not regularly paid they are flogged. Some take in washing, some cook on board vessels, pick oakum, sell peanuts, &c., while others, younger and more comely, often resort to the vilest pursuits. I knew a man from the north who, though married to a respectable southern woman, kept two of these mulatto girls in an upper room at his store; his wife told some of her friends that he had not lodged at home for two weeks together, I have seen these two *kept misses*, as they are there called, at his store; he was afterwards stabbed in an attempt to arrest a runaway slave, and died in about ten days.

The clergy at the north cringe beneath the corrupting influence of slavery, and their moral courage is borne down by it. Not the hypocritical and unprincipled alone, but even such as can hardly be supposed to be destitute of sincerity.

Going one morning to the Baptist Sunday School, in Wilmington, in which I was engaged, I fell in with the Rev. Thomas P. Hunt, who was going to the Presbyterian school. I asked him how he could bear to see the little negro children beating their hoops, hallooing, and running about the streets, as we then saw them, their moral condition entirely neglected, while the whites were so carefully gathered into the schools. His reply was substantially this:—"I can't bear it, Mr. Caulkins. I feel as deeply as any one can on this subject, but what can I do? MY HANDS ARE TIED."

Now, if Mr. Hunt was guilty of neglecting his duty, as a servant of HIM who never failed to rebuke sin in high places, what shall be said of those clergymen at the north, where the power that closed his mouth is comparatively unfelt, who refuse to tell their people how God abhors oppression, and who seldom open their mouth on this subject, but to denounce the friends of emancipation, thus giving the strongest support to the accursed system of slavery. I believe Mr. Hunt has since become an agent of the Temperance Society.

In stating the foregoing facts, my object has been to show the practical workings of the system of slavery, and if possible to correct the misapprehension on this subject, so common at the north. In doing this I am not at war with slave-holders. No, my soul is moved for them as well as for the poor slaves. May God send them repentance to the acknowledgment of the truth! Principle, on a subject of this nature, is dearer to me than the applause of men, and should not be sacrificed on any subject, even though the ties of friendship may be broken. We have too long been silent on this subject, the slave has been too much considered, by our northern states, as being kept by necessity in his present condition.—Were we to ask, in the language of Pilate, "what evil have they done"—we may search their history, we cannot find that they have taken up arms against our government, nor insulted us as a nation—that they are thus compelled to drag out a life in chains! subjected to the most terrible inflictions if in any way they manifest a wish to be released.—Let us reverse the question. What evil has been done to them by those who call themselves masters? First let us look at their persons, "neither clothed nor naked"—I have seen instances where this phrase would not apply to boys and girls, and that too in winter. I knew one young man seventeen years of age, by the name of Dave, on Mr. J. Swan's plantation, worked day after day in the rice machine as naked as when he was born. The reason of his being so, his master said in my hearing, was, that he could not keep clothes on him—he would get into the fire and burn them off.

Follow them next to their huts; some with and some without floors:—Go at night, view their means of lodging, see them lying on benches, some on the floor or ground, some sitting on stools, dozing away the night:—others, of younger age, with a bare blanket wrapped about them; and one or two lying in the ashes. These things *I have often seen with my own eyes.*

Examine their means of subsistence, which consists generally of seven quarts of meal or eight quarts of small rice for one week; then follow them to their work, with driver and overseer pushing them to the utmost of their strength, by threatening and whipping.

If they are sick from fatigue and exposure, go to their huts, as I have often been, and see them groaning under a burning fever or pleurisy, lying on some straw, their feet to the fire with barely a blanket to cover them; or on some boards nailed together in form of a bedstead.

And after seeing all this, and hearing them tell of their sufferings, need I ask, is there any evil connected with their condition? and if so; upon whom is it to be charged? I answer for myself, and the reader can do the same. Our government stands first chargeable for allowing slavery to exist, under its own jurisdiction. Second, the states for enacting laws to secure their victim. Third, the slaveholder for carrying out such enactments, in horrid form enough to chill the blood. Fourth, every person who knows what slavery is, and does not raise his voice against this crying sin, but by silence gives consent to its continuance, is chargeable with guilt in the sight of God. "The blood of Zacharias who was slain between the temple and altar," says Christ, "WILL I REQUIRE OF THIS GENERATION."

Look at the slave, his condition but little, if at all, better than that of the brute; chained down by the law, and the will of his master; and every avenue closed against relief; and the names of those who plead for him, cast out as evil;—must not humanity let its voice be heard, and tell Israel their transgressions and Judah their sins?

May God look upon their afflictions, and deliver them from their cruel task-masters! I verily believe he will, if there be any efficacy in prayer. I have been to their prayer meetings and with them offered prayer in their behalf. I have heard some of them in their huts before day-light praying in their simple broken language, telling their heavenly Father of their trials in the following and similar language.

"Fader in heaven, look upon de poor slave, dat have to work all de day long, dat cant have de time to pray only in de night, and den massa mus not know it.^[2] Fader, have mercy on massa and missus. Fader, when shall poor slave get through de world! when will death come, and de poor slave go to

heaven;" and in their meetings they frequently add, "Fader, bless de white man dat come to hear de slave pray, bless his family," and so on. They uniformly begin their meetings by singing the following—

"And are we yet alive
To see each other's face," &c.

[Footnote [2](#): At this time there was some fear of insurrection and the slaves were forbidden to hold meetings.]

Is the ear of the Most High deaf to the prayer of the slave? I do firmly believe that their deliverance will come, and that the prayer of this poor afflicted people will be answered.

Emancipation would be safe. I have had eleven winters to learn the disposition of the slaves, and am satisfied that they would peaceably and cheerfully work for pay. Give them education, equal and just laws, and they will become a most interesting people. Oh, let a cry be raised which shall awaken the conscience of this guilty nation, to demand for the slaves immediate and unconditional emancipation.

NEHEMIAH CAULKINS.

NARRATIVE AND TESTIMONY OF REV. HORACE MOULTON.

Mr. Moulton is an esteemed minister of the Methodist Episcopal Church, in Marlborough, Mass. He spent five years in Georgia, between 1817 and 1824. The following communication has been recently received from him.

MARLBOROUGH, MASS., Feb. 18, 1839.

DEAR BROTHER—

Yours of Feb. 2d, requesting me to write out a few facts on the subject of slavery, as it exists at the south, has come to hand. I hasten to comply with your request. Were it not, however, for the claims of those "who are drawn unto death," and the responsibility resting upon me, in consequence of this request, I should forever hold my peace. For I well know that I shall bring upon myself a flood of persecution, for attempting to speak out for the dumb. But I am willing to be set at nought by men, if I can be the means of promoting the welfare of the oppressed of our land. I shall not relate many particular cases of cruelty, though I might a great number; but shall give some general information as to their mode of treatment, their food, clothing, dwellings, deprivations, &c.

Let me say, in the first place, that I spent nearly five years in Savannah, Georgia, and in its vicinity, between the years 1817 and 1824. My object in going to the south, was to engage in making and burning brick; but not immediately succeeding, I engaged in no business of much profit until late in the winter, when I took charge of a set of hands and went to work. During my leisure, however, I was an observer, at the auctions, upon the plantations, and in almost every department of business. The next year, during the cold months, I had several two-horse teams under my care, with which we used to haul brick, boards, and other articles from the wharf into the city, and cotton, rice, corn, and wood from the country. This gave me an extensive acquaintance with merchants, mechanics and planters. I had slaves under my control some portions of every year when at the south. All

the brick-yards, except one, on which I was engaged, were connected either with a corn field, potatoe patch, rice field, cotton field, tan-works, or with a wood lot. My business, usually, was to take charge of the brick-making department. At those jobs I have sometimes taken in charge both the field and brick-yard hands. I have been on the plantations in South Carolina, but have never been an overseer of slaves in that state, as has been said in the public papers.

I think the above facts and explanations are necessary to be connected with the account I may give of slavery, that the reader may have some knowledge of my acquaintance with *practical* slavery: for many mechanics and merchants who go to the South, and stay there for years, know but little of the dark side of slavery. My account of slavery will apply to *field hands*, who compose much the largest portion of the black population, (probably nine-tenths,) and not to those who are kept for kitchen maids, nurses, waiters, &c., about the houses of the planters and public hotels, where persons from the north obtain most of their knowledge of the evils of slavery. I will now proceed to take up specific points.

THE LABOR OF THE SLAVES

Males and females work together promiscuously on all the plantations. On many plantations *tasks* are given them. The best working hands can have some leisure time; but the feeble and unskilful ones, together with slender females, have indeed a hard time of it, and very often answer for non-performance of tasks at the *whipping-posts*. None who worked with me had tasks at any time. The rule was to work them from sun to sun. But when I was burning brick, they were obliged to take turns, and *sit up all night* about every other night, and work all day. On one plantation, where I spent a few weeks, the slaves were called up to work long before daylight, when business pressed, and worked until late at night; and sometimes some of them *all night*. A large portion of the slaves are owned by masters who keep them on purpose to hire out—and they usually let them to those who will give the highest wages for them, irrespective of their mode of treatment; and those who hire them, will of course try to get the greatest possible amount of work performed, with the least possible expense. Women are seen bringing their infants into the field to their work, and leading others who are not old enough to stay at the cabins with safety. When they get

there, they must set them down in the dirt and go to work. Sometimes they are left to cry until they fall asleep. Others are left at home, shut up in their huts. Now, is it not barbarous, that the mother, with her child or children around her, half starved, must be whipped at night if she does not perform her task? But so it is. Some who have very young ones, fix a little sack, and place the infants on their backs, and work. One reason, I presume is, that they will not cry so much when they can hear their mother's voice. Another is, the mothers fear that the poisonous vipers and snakes will bite them. Truly, I never knew any place where the land is so infested with all kinds of the most venomous snakes, as in the low lands round about Savannah. The moccasin snakes, so called, and water rattle-snakes—the bites of both of which are as poisonous as our upland rattlesnakes at the north,—are found in myriads about the stagnant waters and swamps of the South. The females, in order to secure their infants from these poisonous snakes, do, as I have said, often work with their infants on their backs. Females are sometimes called to take the hardest part of the work. On some brick yards where I have been, the women have been selected as the *moulders* of brick, instead of the men.

II. THE FOOD OF THE SLAVES.

It was a general custom, wherever I have been, for the masters to give each of his slaves, male and female, *one peck of corn per week* for their food. This at fifty cents per bushel, which was all that it was worth when I was there, would amount to twelve and a half cents per week for board per head.

It cost me upon an average, when at the south, one dollar per day for board. The price of fourteen bushels of corn per week. This would make my board equal in amount to the board of *forty-six slaves!* This is all that good or bad masters allow their slaves round about Savannah on the plantations. One peck of gourd-seed corn is to be measured out to each slave once every week. One man with whom I labored, however, being desirous to get all the work out of his hands he could, before I left, (about fifty in number,) bought for them every week, or twice a week, a beef's head from market. With this, they made a soup in a large iron kettle, around which the hands came at meal-time, and dipping out the soup, would mix it with their hommony, and eat it as though it were a feast. This man permitted his slaves to eat twice a day while I was doing a job for him. He promised me a beaver hat and as

good a suit of clothes as could be bought in the city, if I would accomplish so much for him before I returned to the north; giving me the entire control over his slaves. Thus you may see the temptations overseers sometimes have, to get all the work they can out of the poor slaves. The above is an exception to the general rule of feeding. For in all other places where I worked and visited; the slaves had *nothing from their masters but the corn*, or its equivalent in potatoes or rice, and to this, they were not permitted to come but *once a day*. The custom was to blow the horn early in the morning, as a signal for the hands to rise and go to work, when commenced; they continued work until about eleven o'clock, A.M., when, at the signal, all hands left off and went into their huts, made their fires, made their corn-meal into hommony or cake, ate it, and went to work again at the signal of the horn, and worked until night, or until their tasks were done. Some cooked their breakfast in the field while at work. Each slave must grind his own corn in a hand-mill after he has done his work at night. There is generally one hand-mill on every plantation for the use of the slaves.

Some of the planters have no corn, others often get out. The substitute for it is, the equivalent of one peck of corn either in rice or sweet potatoes; neither of which is as good for the slaves as corn. They complain more of being faint, when fed on rice or potatoes, than when fed on corn. I was with one man a few weeks who gave me his hands to do a job of work, and to save time one cooked for all the rest. The following course was taken,—Two crotched sticks were driven down at one end of the yard, and a small pole being laid on the crotches, they swung a large iron kettle on the middle of the pole; then made up a fire under the kettle and boiled the hommony; when ready, the hands were called around this kettle with their wooden plates and spoons. They dipped out and ate standing around the kettle, or sitting upon the ground, as best suited their convenience. When they had potatoes they took them out with their hands, and ate them. As soon as it was thought they had had sufficient time to swallow their food they were called to their work again. *This was the only meal they ate through the day.* now think of the little, almost naked and half starved children, nibbling upon a piece of cold Indian cake, or a potato! Think of the poor female, just ready to be confined, without any thing that can be called convenient or comfortable! Think of the old toil-worn father and mother, without anything to eat but the coarsest of food, and not half enough of that! then think of

home. When sick, their physicians are their masters and overseers, in most cases, whose skill consists in bleeding and in administering large potions of Epsom salts, when the whip and *cursing* will not start them from their cabins.

III. HOUSES.

The huts of the slaves are mostly of the poorest kind. They are not as good as those temporary shanties which are thrown up beside railroads. They are erected with posts and crotches, with but little or no frame-work about them. They have no stoves or chimneys; some of them have something like a fireplace at one end, and a board or two off at that side, or on the roof, to let off the smoke. Others have nothing like a fireplace in them; in these the fire is sometimes made in the middle of the hut. These buildings have but one apartment in them; the places where they pass in and out, serve both for doors and windows; the sides and roofs are covered with coarse, and in many instances with refuse boards. In warm weather, especially in the spring, the slaves keep up a smoke, or fire and smoke, all night, to drive away the gnats and musketoes, which are very troublesome in all the low country of the south; so much so that the whites sleep under frames with nets over them, knit so fine that the musketoes cannot fly through them.

Some of the slaves have rugs to cover them in the coldest weather, but I should think *more have not*. During driving storms they frequently have to run from one hut to another for shelter. In the coldest weather, where they can get wood or stumps, they keep up fires all night in their huts, and lay around them, with their feet towards the blaze. Men, women and children all lie down together, in most instances. There may be exceptions to the above statements in regard to their houses, but so far as my observations have extended, I have given a fair description, and I have been on a large number of plantations in Georgia and South Carolina up and down the Savannah river. Their huts are generally built compactly on the plantations, forming villages of huts, their size proportioned to the number of slaves on them. In these miserable huts the poor blacks are herded at night like swine, *without any conveniences of beadsteads, tables or chairs*. O Misery to the full! to see the aged sire beating off the swarms of gnats and musketoes in the warm weather, and shivering in the straw, or bending over a few coals in the winter, clothed in rags. I should think males and females, both lie down

at night with their working clothes on them. God alone knows how much the poor slaves suffer for the want of convenient houses to secure them from the piercing winds and howling storms of winter, almost as much in Georgia as I do in Massachusetts.

IV. CLOTHING.

The masters [in Georgia] make a practice of getting two suits of clothes for each slave per year, a thick suit for winter, and a thin one for summer. They provide also one pair of northern made sale shoes for each slave in *winter*. These shoes usually begin to rip in a few weeks. The negroes' mode of mending them is, to *wire* them together, in many instances. Do our northern shoemakers know that they are augmenting the sufferings of the poor slaves with their almost good for nothing sale shoes? Inasmuch as it is done unto one of those poor sufferers it is done unto our Saviour. The above practice of clothing the slave is customary to some extent. How many, however, fail of this, God only knows. The children and old slaves are, I should think, *exceptions* to the above rule. The males and females have their suits from the same cloth for their winter dresses. These winter garments appear to be made of a mixture of cotton and wool, very coarse and *sleazy*. The whole suit for the men consists of a pair of pantaloons and a short sailor-jacket, *without shirt, vest, hat, stockings, or any kind of loose garments!* These, if worn steadily when at work, would not probably last more than one or two months; therefore, for the sake of saving them, many of them work, especially in the summer, with no clothing on them except a cloth tied round their waist, and *almost all* with nothing more on them than pantaloons, and these frequently so torn that they do not serve the purposes of common decency. The women have for clothing a short petticoat, and a short loose gown, something like the male's sailor-jacket, *without any under garment, stockings, bonnets, hoods, caps, or any kind of over-clothes*. When at work in the warm weather, they usually strip off the loose gown, and have nothing on but a short petticoat with some kind of covering over their breasts. Many children may be seen in the summer months *as naked as they came into the world*. I think, as a whole, they suffer more for the want of comfortable bed clothes, than they do for wearing apparel. It is true, that some by begging or buying have more clothes than above described, but the *masters provide them with no more*. They are miserable objects of pity. It may be said of many of them, "I was *naked* and ye clothed me not." It is

enough to melt the hardest heart to see the ragged mothers nursing their almost naked children, with but a morsel of the coarsest food to eat. The Southern horses and dogs have enough to eat and good care taken of them, but Southern negroes, who can describe their misery?

V. PUNISHMENTS.

The ordinary mode of punishing the slaves is both cruel and barbarous. The masters seldom, if ever, try to govern their slaves by moral influence, but by whipping, kicking, beating, starving, branding, *cat-hauling*, loading with irons, imprisoning, or by some other cruel mode of torturing. They often boast of having invented some new mode of torture, by which they have "tamed the rascals," What is called a moderate flogging at the south is horribly cruel. Should we whip our horses for any offence as they whip their slaves for small offences, we should expose ourselves to the penalty of the law. The masters whip for the smallest offences, such as not performing their tasks, being caught by the guard or patrol by night, or for taking any thing from the master's yard without leave. For these, and the like crimes, the slaves are whipped thirty-nine lashes, and sometimes seventy or a hundred, on the bare back. One slave, who was under my care, was whipped, I think one hundred lashes, for getting a small handful of wood from his master's yard without leave. I heard an overseer boasting to this same master that he gave one of the boys seventy lashes, for not doing a job of work just as he thought it ought to be done. The owner of the slave appeared to be pleased that the overseer had been so faithful. The apology they make for whipping so cruelly is, that it is to frighten the rest of the gang. The masters say, that what we call an ordinary flogging will not subdue the slaves; hence the most cruel and barbarous scourgings ever witnessed by man are daily and *hourly* inflicted upon the naked bodies of these miserable bondmen; not by masters and negro-drivers only, but by the constables in the common markets and jailors in their yards.

When the slaves are whipped, either in public or private, they have their hands fastened by the wrists, with a rope or cord prepared for the purpose: this being thrown over a beam, a limb of a tree, or something else, the culprit is drawn up and stretched by the arms as high as possible, without raising his feet from the ground or floor: and sometimes they are made to stand on tip-toe; then the feet are made fast to something prepared for them. In this distorted posture the monster flies at them, sometimes in great rage, with his implements of torture, and cuts on with all his might, over the shoulders, under the arms, and sometimes over the head and ears, or on parts of the body where he can inflict the greatest torment. Occasionally the whipper, especially if his victim does not beg enough to suit him, while

under the lash, will fly into a passion, uttering the most horrid oaths; while the victim of his rage is crying, at every stroke, "Lord have mercy! Lord have mercy!" The scenes exhibited at the whipping post are awfully terrific and frightful to one whose heart has not turned to stone; I never could look on but a moment. While under the lash, the bleeding victim writhes in agony, convulsed with torture. Thirty-nine lashes on the bare back, which tear the skin at almost every stroke, is what the South calls a very *moderate punishment*! Many masters whip until they are tired—until the back is a gore of blood—then rest upon it: after a short cessation, get up and go at it again; and after having satiated their revenge in the blood of their victims, they sometimes *leave them tied, for hours together, bleeding at every wound*.—Sometimes, after being whipped, they are bathed with a brine of salt and water. Now and then a master, but more frequently a mistress who has no husband, will send them to jail a few days, giving orders to have them whipped, so many lashes, once or twice a day. Sometimes, after being whipped, some have been shut up in a dark place and deprived of food, in order to increase their torments: and I have heard of some who have, in such circumstances, died of their wounds and starvation.

Such scenes of horror as above described are so common in Georgia that they attract no attention. To threaten them with death, with breaking in their teeth or jaws, or cracking their heads, is *common talk*, when scolding at the slaves.—Those who run away from their masters and are caught again generally fare the worst. They are generally lodged in jail, with instructions from the owner to have them cruelly whipped. Some order the constables to whip them publicly in the market. Constables at the south are generally savage, brutal men. They have become so accustomed to catching and whipping negroes, that they are as fierce as tigers. Slaves who are absent from their yards, or plantations, after eight o'clock P.M., and are taken by the guard in market. Constables at the south are generally savage, brutal men. They the cities, or by the patrols in the country, are, if not called for before nine o'clock A.M. the next day, secured in prisons; and hardly ever escape, until their backs are torn up by the cowhide. On plantations, the *evenings* usually present scenes of horror. Those slaves against whom charges are preferred for not having performed their tasks, and for various faults, must, after work-hours at night, undergo their torments. I have often heard the sound of the lash, the curses of the whipper, and the cries of the

poor negro rending the air, late in the evening, and long before day-light in the morning.

It is very common for masters to say to the overseers or drivers, "put it on to them," "don't spare that fellow," "give that scoundrel one hundred lashes," &c. Whipping the women when in delicate circumstances, as they sometimes do, without any regard to their entreaties or the entreaties of their nearest friends, is truly barbarous. If negroes could testify, they would tell you of instances of women being whipped until they have miscarried at the whipping-post. I heard of such things at the south—they are undoubtedly facts. Children are whipped unmercifully for the smallest offences, and that before their mothers. A large proportion of the blacks have their shoulders, backs, and arms all scarred up, and not a few of them have had their heads laid open with clubs, stones, and brick-bats, and with the butt-end of whips and canes—some have had their jaws broken, others their teeth knocked in or out; while others have had their ears cropped and the sides of their cheeks gashed out. Some of the poor creatures have lost the sight of one of their eyes by the careless blows of the whipper, or by some other violence.

But punishing of slaves as above described, is not the only mode of torture. Some tie them up in a very uneasy posture, where they must stand *all night*, and they will then work them hard all day—that is, work them hard all day and torment them all night. Others punish by fastening them down on a log, or something else, and strike them on the bare skin with a board paddle full of holes. This breaks the skin, I should presume, at every hole where it comes in contact with it. Others, when other modes of punishment will not subdue them, *cat-haul* them—that is, take a cat by the nape of the neck and tail, or by the hind legs, and drag the claws across the back until satisfied. This kind of punishment poisons the flesh much worse than the whip, and is more dreaded by the slave. Some are branded by a hot iron, others have their flesh cut out in large gashes, to mark them. Some who are prone to run away, have iron fetters riveted around their ancles, sometimes they are put only on one foot, and are dragged on the ground. Others have on large iron collars or yokes upon their necks, or clogs riveted upon their wrists or ancles. Some have bells put upon them, hung upon a sort of frame to an iron collar. Some masters fly into a rage at trifles and knock down their negroes with their fists, or with the first thing that they can get hold of. The

whiplash-knots, or rawhide, have sometimes by a reckless stroke reached round to the front of the body and cut through to the bowels. One slaveholder with whom I lived, whipped one of his slaves one day, as many, I should think, as one hundred lashes, and then turned the *butt-end* and went to beating him over the head and ears, and truly I was amazed that the slave was not killed on the spot. Not a few slaveholders whip their slaves to death, and then say that they died under a "moderate correction." I wonder that ten are not killed where one is! Were they not much hardier than the whites many more of them must die than do. One young mulatto man, with whom I was well acquainted, was killed by his master in his yard with *impunity*. I boarded at the same time near the place where this glaring murder was committed, and knew the master well. He had a plantation, on which he enacted, almost daily, cruel barbarities, some of them, I was informed, more terrific, if possible, than death itself. Little notice was taken of this murder, and it all passed off without any action being taken against the murderer. The masters used to try to make me whip their negroes. They said I could not get along with them without flogging them—but I found I could get along better with them by coaxing and encouraging them than by beating and flogging them. I had not a heart to beat and kick about those beings; although I had not grace in my heart the three first years I was there, yet I sympathised with the slaves. I never was guilty of having but one whipped, and he was whipped but eight or nine blows. The circumstances were as follows: Several negroes were put under my care, one spring, *who were fresh from Congo and Guinea*. I could not understand them, neither could they me, in one word I spoke. I therefore pointed to them to go to work; all obeyed me willingly but one—he refused. I told the driver that he must tie him up and whip him. After he had tied him, by the help of some others, we struck him eight or nine blows, and he yielded. I told the driver not to strike him another blow. We untied him, and he went to work, and continued faithful all the time he was with me. This one was not a sample, however—many of them have such exalted views of freedom that it is hard work for the masters to whip them into brutes, that is to subdue their noble spirits. The negroes being put under my care, did not prevent the masters from whipping them when they pleased. But they never whipped much in my presence. This work was usually left until I had dismissed the hands. On the plantations, the masters chose to have the slaves whipped in the presence of all the hands, to strike them with terror.

VI. RUNAWAYS

Numbers of poor slaves run away from their masters; some of whom doubtless perish in the swamps and other secret places, rather than return back again to their masters; others stay away until they almost famish with hunger, and then return home rather than die, while others who abscond are caught by the negro-hunters, in various ways. Sometimes the master will hire some of his most trusty negroes to secure any stray negroes, who come on to their plantations, for many come at night to beg food of their friends on the plantations. The slaves assist one another usually when they can, and not be found out in it. The master can now and then, however, get some of his hands to betray the runaways. Some obtain their living in hunting after lost slaves. The most common way is to train up young dogs to follow them. This can easily be done by obliging a slave to go out into the woods, and climb a tree, and then put the young dog on his track, and with a little assistance he can be taught to follow him to the tree, and when found, of course the dog would bark at such game as a poor negro on a tree. There was a man living in Savannah when I was there, who kept a large number of dogs for no other purpose than to hunt runaway negroes. And he always had enough of this work to do, for hundreds of runaways are never found, but could he get news soon after one had fled, he was almost sure to catch him. And this fear of the dogs restrains multitudes from running off.

When he went out on a hunting excursion, to be gone several days, he took several persons with him, armed generally with rifles and followed by the dogs. The dogs were as true to the track of a negro, if one had passed recently, as a hound is to the track of a fox when he has found it. When the dogs draw near to their game, the slave must turn and fight them or climb a tree. If the latter, the dogs will stay and bark until the pursuer come. The blacks frequently deceive the dogs by crossing and recrossing the creeks. Should the hunters who have no dogs, start a slave from his hiding place, and the slave not stop at the hunter's call, he will shoot at him, as soon as he would at a deer. Some masters advertise so much for a runaway slave, dead or alive. It undoubtedly gives such more satisfaction to know that their property is dead, than to know that it is alive without being able to get it. Some slaves run away who never mean to be taken alive. I will mention one. He run off and was pursued by the dogs, but having a weapon with him he succeeded in killing two or three of the dogs; but was afterwards shot.

He had declared, that he never would be taken alive. The people rejoiced at the death of the slave, but lamented the death of the dogs, they were such ravenous hunters. Poor fellow, he fought for life and liberty like a hero; but the bullets brought him down. A negro can hardly walk unmolested at the south.—Every colored stranger that walks the streets is suspected of being a runaway slave, hence he must be interrogated by every negro hater whom he meets, and should he not have a pass, he must be arrested and hurried off to jail. Some masters boast that their slaves would not be free if they could. How little they know of their slaves! They are all sighing and groaning for freedom. May God hasten the time!

VII. CONFINEMENT AT NIGHT.

When the slaves have done their day's work, they must be herded together like sheep in their yards, or on their plantations. They have not as much liberty as northern men have, who are sent to jail for debt, for they have liberty to walk a larger yard than the slaves have. The slaves must all be at their homes precisely at eight o'clock, P.M. At this hour the drums beat in the cities, as a signal for every slave to be in his den. In the country, the signal is given by firing guns, or some other way by which they may know the hour when to be at home. After this hour, the guard in the cities, and patrols in the country, being well armed, are on duty until daylight in the morning. If they catch any negroes during the night without a pass, they are immediately seized and hurried away to the guard-house, or if in the country to some place of confinement, where they are kept until nine o'clock, A.M., the next day, if not called for by that time, they are hurried off to jail, and there remain until called for by their master and his jail and guard house fees paid. The guards and patrols receive one dollar extra for every one they can catch, who has not a pass from his master, or overseer, but few masters will give their slaves passes to be out at night unless on some special business: notwithstanding, many venture out, watching every step they take for the guard or patrol, the consequence is, some are caught almost every night, and some nights many are taken; some, fleeing after being hailed by the watch, are shot down in attempting their escape, others are crippled for life. I find I shall not be able to write out more at present. My ministerial duties are pressing, and if I delay this till the next mail, I fear it will not be in season. Your brother for those who are in bonds,

HORACE MOULTON

NARRATIVE AND TESTIMONY OF SARAH M. GRIMKÉ.

Miss Grimké is a daughter of the late Judge Grimké, of the Supreme Court of South Carolina, and sister of the late Hon. Thomas S. Grimké.

As I left my native state on account of slavery, and deserted the home of my fathers to escape the sound of the lash and the shrieks of tortured victims, I would gladly bury in oblivion the recollection of those scenes with which I have been familiar; but this may not, cannot be; they come over my memory like gory spectres, and implore me with resistless power, in the name of a God of mercy, in the name of a crucified Savior, in the name of humanity; for the sake of the slaveholder, as well as the slave, to bear witness to the horrors of the southern prison house. I feel impelled by a sacred sense of duty, by my obligations to my country, by sympathy for the bleeding victims of tyranny and lust, to give my testimony respecting the system of American slavery,—to detail a few facts, most of which came under my *personal observation*. And here I may premise, that the actors in these tragedies were all men and women of the highest respectability, and of the first families in South Carolina, and, with one exception, citizens of Charleston; and that their cruelties did not in the slightest degree affect their standing in society.

A handsome mulatto woman, about 18 or 20 years of age, whose independent spirit could not brook the degradation of slavery, was in the habit of running away: for this offence she had been repeatedly sent by her master and mistress to be whipped by the keeper of the Charleston work-house. This had been done with such inhuman severity, as to lacerate her back in a most shocking manner; a finger could not be laid between the cuts. But the love of liberty was too strong to be annihilated by torture; and, as a last resort, she was whipped at several different times, and kept a close prisoner. A heavy iron collar, with three long prongs projecting from it, was placed round her neck, and a strong and sound front tooth was extracted, to serve as a mark to describe her, in case of escape. Her sufferings at this time were agonizing; she could lie in no position but on her back, which was sore from scourgings, as I can testify, from personal inspection, and her only place of rest was the floor, on a blanket. These outrages were

committed in a family where the mistress daily read the scriptures, and assembled her children for family worship. She was accounted, and was really, so far as almsgiving was concerned, a charitable woman, and tender hearted to the poor; and yet this suffering slave, who was the seamstress of the family, was continually in her presence, sitting in her chamber to sew, or engaged in her other household work, with her lacerated and bleeding back, her mutilated mouth, and heavy iron collar, without, so far as appeared, exciting any feelings of compassion.

A highly intelligent slave, who panted after freedom with ceaseless longings, made many attempts to get possession of himself. For every offence he was punished with extreme severity. At one time he was tied up by his hands to a tree, and whipped until his back was one gore of blood. To this terrible infliction he was subjected at intervals for several weeks, and kept heavily ironed while at his work. His master one day accused him of a fault, in the usual terms dictated by passion and arbitrary power; the man protested his innocence, but was not credited. He again repelled the charge with honest indignation. His master's temper rose almost to frenzy; and seizing a fork, he made a deadly plunge at the breast of the slave. The man being far his superior in strength, caught the arm, and dashed the weapon on the floor. His master grasped at his throat, but the slave disengaged himself, and rushed from the apartment, having made his escape, he fled to the woods; and after wandering about for many months, living on roots and berries, and enduring every hardship, he was arrested and committed to jail. Here he lay for a considerable time, allowed scarcely food enough to sustain life, whipped in the most shocking manner, and confined in a cell so loathsome, that when his master visited him, he said the stench was enough to knock a man down. The filth had never been removed from the apartment since the poor creature had been immured in it. Although a black man, such had been the effect of starvation and suffering, that his master declared he hardly recognized him—his complexion was so yellow, and his hair, naturally thick and black, had become red and scanty; an infallible sign of long continued living on bad and insufficient food. Stripes, imprisonment, and the gnawings of hunger, had broken his lofty spirit for a season; and, to use his master's own exulting expression, he was "as humble as a dog." After a time he made another attempt to escape, and was absent so long, that a reward was offered for him, *dead or alive*. He eluded every attempt to

take him, and his master, despairing of ever getting him again, offered to pardon him if he would return home. It is always understood that such intelligence will reach the runaway; and accordingly, at the entreaties of his wife and mother, the fugitive once more consented to return to his bitter bondage. I believe this was the last effort to obtain his liberty. His heart became touched with the power of the gospel; and the spirit which no inflictions could subdue, bowed at the cross of Jesus, and with the language on his lips—"the cup that my father hath given me, shall I not drink it?" submitted to the yoke of the oppressor, and wore his chains in uncomplaining patience till death released him. The master who perpetrated these wrongs upon his slave, was one of the most influential and honored citizens of South Carolina, and to his equals was bland, and courteous, and benevolent even to a proverb.

A slave who had been separated from his wife, because it best suited the convenience of his owner, ran away. He was taken up on the plantation where his wife, to whom he was tenderly attached, then lived. His only object in running away was to return to her—no other fault was attributed to him. For this offence he was confined in the stocks *six weeks*, in a miserable hovel, not weather-tight. He received fifty lashes weekly during that time, was allowed food barely sufficient to sustain him, and when released from confinement, was not permitted to return to his wife. His master, although himself a husband and a father, was unmoved by the touching appeals of the slave, who entreated that he might only remain with his wife, promising to discharge his duties faithfully; his master continued inexorable, and he was torn from his wife and family. The owner of this slave was a professing Christian, in full membership with the church, and this circumstance occurred when he was confined to his chamber during his last illness.

A punishment dreaded more by the slaves than whipping, unless it is unusually severe, is one which was invented by a female acquaintance of mine in Charleston—I heard her say so with much satisfaction. It is standing on one foot and holding the other in the hand. Afterwards it was improved upon, and a strap was contrived to fasten around the ankle and pass around the neck; so that the least weight of the foot resting on the strap would choke the person. The pain occasioned by this unnatural position was great; and when continued, as it sometimes was, for an hour or more, produced intense agony. I heard this same woman say, that she had the ears

of her waiting maid *slit* for some petty theft. This she told me in the presence of the girl, who was standing in the room. She often had the helpless victims of her cruelty severely whipped, not scrupling herself to wield the instrument of torture, and with her own hands inflict severe chastisement. Her husband was less inhuman than his wife, but he was often goaded on by her to acts of great severity. In his last illness I was sent for, and watched beside his death couch. The girl on whom he had so often inflicted punishment, haunted his dying hours; and when at length the king of terrors approached, he shrieked in utter agony of spirit, "Oh, the blackness of darkness, the black imps, I can see them all around me—take them away!" and amid such exclamations he expired. These persons were of one of the first families in Charleston.

A friend of mine, in whose veracity I have entire confidence, told me that about two years ago, a woman in Charleston with whom I was well acquainted, had starved a female slave to death. She was confined in a solitary apartment, kept constantly tied, and condemned to the slow and horrible death of starvation. This woman was notoriously cruel. To those who have read the narrative of James Williams I need only say, that the character of young Larrimore's wife is an exact description of this female tyrant, whose countenance was ever dressed in smiles when in the presence of strangers, but whose heart was as the nether millstone toward her slaves.

As I was traveling in the lower country in South Carolina, a number of years since, my attention was suddenly arrested by an exclamation of horror from the coachman, who called out, "Look there, Miss Sarah, don't you see?"—I looked in the direction he pointed, and saw a human head stuck up on a high pole. On inquiry, I found that a runaway slave, who was outlawed, had been shot there, his head severed from his body, and put upon the public highway, as a terror to deter slaves from running away.

On a plantation in North Carolina, where I was visiting, I happened one day, in my rambles, to step into a negro cabin; my compassion was instantly called forth by the object which presented itself. A slave, whose head was white with age, was lying in one corner of the hovel; he had under his head a few filthy rags but the boards were his only bed, it was the depth of winter, and the wind whistled through every part of the dilapidated building—he opened his languid eyes when I spoke, and in reply to my question,

"What is the matter?" He said, "I am dying of a cancer in my side."—As he removed the rags which covered the sore, I found that it extended half round the body, and was shockingly neglected. I inquired if he had any nurse. "No, missey," was his answer, "but de people (the slaves) very kind to me, dey often steal time to run and see me and fetch me some ting to eat; if dey did not, I might starve." The master and mistress of this man, who had been worn out in their service, were remarkable for their intelligence, and their hospitality knew no bounds towards those who were of their own grade in society: the master had for some time held the highest military office in North Carolina, and not long previous to the time of which I speak, was the Governor of the State.

On a plantation in South Carolina, I witnessed a similar case of suffering—an aged woman suffering under an incurable disease in the same miserably neglected situation. The "owner" of this slave was proverbially kind to her negroes; so much so, that the planters in the neighborhood said she spoiled them, and set a bad example, which might produce discontent among the surrounding slaves; yet I have seen this woman tremble with rage, when her slaves displeased her, and heard her use language to them which could only be expected from an inmate of Bridewell; and have known her in a gust of passion send a favorite slave to the workhouse to be severely whipped.

Another fact occurs to me. A young woman about eighteen, stated some circumstances relative to her young master, which were thought derogatory to his character; whether true or false, I am unable to say; she was threatened with punishment, but persisted in affirming that she had only spoken the truth. Finding her incorrigible, it was concluded to send her to the Charleston workhouse and have her whipt; she pleaded in vain for a commutation of her sentence, not so much because she dreaded the actual suffering, as because her delicate mind shrunk from the shocking exposure of her person to the eyes of brutal and licentious men; she declared to me that death would be preferable; but her entreaties were vain, and as there was no means of escaping but by running away, she resorted to it as a desperate remedy, for her timid nature never could have braved the perils necessarily encountered by fugitive slaves, had not her mind been thrown into a state of despair.—She was apprehended after a few weeks, by two slave-catchers, in a deserted house, and as it was late in the evening they concluded to spend the night there. What inhuman treatment she received

from them has never been revealed. They tied her with cords to their bodies, and supposing they had secured their victim, soon fell into a deep sleep, probably rendered more profound by intoxication and fatigue; but the miserable captive slumbered not; by some means she disengaged herself from her bonds, and again fled through the lone wilderness. After a few days she was discovered in a wretched hut, which seemed to have been long uninhabited; she was speechless; a raging fever consumed her vitals, and when a physician saw her, he said she was dying of a disease brought on by over fatigue; her mother was permitted to visit her, but ere she reached her, the damps of death stood upon her brow, and she had only the sad consolation of looking on the death-struck form and convulsive agonies of her child.

A beloved friend in South Carolina, the wife of a slaveholder, with whom I often mingled my tears, when helpless and hopeless we deplored together the horrors of slavery, related to me some years since the following circumstance.

On the plantation adjoining her husband's, there was a slave of pre-eminent piety. His master was not a professor of religion, but the superior excellence of this disciple of Christ was not unmarked by him, and I believe he was so sensible of the good influence of his piety that he did not deprive him of the few religious privileges within his reach. A planter was one day dining with the owner of this slave, and in the course of conversation observed, that all profession of religion among slaves was mere hypocrisy. The other asserted a contrary opinion, adding, I have a slave who I believe would rather die than deny his Saviour. This was ridiculed, and the master urged to prove the assertion. He accordingly sent for this man of God, and peremptorily ordered him to deny his belief in the Lord Jesus Christ. The slave pleaded to be excused, constantly affirming that he would rather die than deny the Redeemer, whose blood was shed for him. His master, after vainly trying to induce obedience by threats, had him terribly whipped. The fortitude of the sufferer was not to be shaken; he nobly rejected the offer of exemption from further chastisement at the expense of destroying his soul, and this blessed martyr *died in consequence of this severe infliction*. Oh, how bright a gem will this victim of irresponsible power be, in that crown which sparkles on the Redeemer's brow; and that many such will cluster there, I have not the shadow of a doubt.

SARAH M. GRIMKÉ. *Fort Lee, Bergen County, New Jersey, 3rd Month, 26th, 1830.*

TESTIMONY OF THE LATE REV. JOHN GRAHAM of Townsend, Mass., who resided in S. Carolina, from 1831, to the latter part of 1833. Mr. Graham graduated at Amherst College in 1829, spent some time at the Theological Seminary, in New Haven, Ct., and went to South Carolina, for his health in 1830. He resided principally on the island of St. Helena, S.C., and most of the time in the family of James Tripp, Esq., a wealthy slave holding planter. During his residence at St. Helena, he was engaged as an instructor, and was most of the time the stated preacher on the island. Mr. G. was extensively known in Massachusetts; and his fellow students and instructors, at Amherst College, and at Yale Theological Seminary, can bear testimony to his integrity and moral worth. The following are extracts of letters, which he wrote while in South Carolina, to an intimate friend in Concord, Massachusetts, who has kindly furnished them for publication.

EXTRACTS.

Springfield, St. Helena Isl., S.C., Oct. 22, 1832.

"Last night, about one o'clock, I was awakened by the report of a musket. I was out of bed almost instantly. On opening my window, I found the report proceeded from my host's chamber. He had let off his pistol, which he usually keeps by him night and day, at a slave, who had come into the yard, and as it appears, had been with one of his house servants. He did not hit him. The ball, taken from a pine tree the next morning, I will show you, should I be spared by Providence ever to return to you. The house servant was called to the master's chamber, where he received 75 lashes, very severe too; and I could not only hear every lash, but each groan which succeeded very distinctly as I lay in my bed. What was then done with the servant I know not. Nothing was said of this to me in the morning and I presume it will ever be kept from me with care, if I may judge of kindred acts. I shall make no comment."

In the same letter, Mr. Graham says:—

"You ask me of my hostess"—then after giving an idea of her character says: "To day, she has I verily believe laid, in a very severe manner too,

more than 300 *stripes*, upon the house servants," (17 in number.)

Darlington, Court Moons. S.C. March, 28th, 1838.

"I walked up to the Court House to day, where I heard one of the most interesting cases I ever heard. I say interesting, on account of its novelty to me, though it had no novelty for the people, as such cases are of frequent occurrence. The case was this: To know whether two ladies, present in court, were *white* or *black*. The ladies were dressed well, seemed modest, and were retiring and neat in their look, having blue eyes, black hair, and appeared to understand much of the etiquette of southern behaviour.

"A man, more avaricious than humane, as is the case with most of the rich planters, laid a remote claim to those two modest, unassuming, innocent and free young ladies as his property, with the design of putting them into the field, and thus increasing his STOCK! As well as the people of Concord are known to be of a peaceful disposition, and for their love of good order, I verily believe if a similar trial should be brought forward there and conducted as this was, the good people would drive the lawyers out of the house. Such would be their indignation at their language, and at the mean under-handed manner of trying to ruin those young ladies, as to their standing in society in this district, if they could not succeed in dooming them for life to the degraded condition of slavery, and all its intolerable cruelties. Oh slavery! if statues of marble could curse you, they would speak. If bricks could speak, they would all surely thunder out their anathemas against you, accursed thing! How many white sons and daughters have bled and groaned under the lash in this sultry climate," &c.

Under date of March, 1832, Mr. G. writes, "I have been doing what I hope never to be called to do again, and what I fear I have badly done, though performed to the best of my ability, namely, sewing up a very bad wound made by a wild hog. The slave was hunting wild hogs, when one, being closely pursued, turned upon his pursuer, who turning to run, was caught by the animal, thrown down, and badly wounded in the thigh. The wound is about five inches long and very deep. It was made by the tusk of the animal. The slaves brought him to one of the huts on Mr. Tripp's plantation and made every exertion to stop the blood by filling the wound with ashes, (their remedy for stopping blood) but finding this to fail they came to me

(there being no other white person on the plantation, as it is now holidays) to know if I could stop the blood. I went and found that the poor creature must bleed to death unless it could be stopped soon. I called for a needle and succeeded in sewing it up as well as I could, and in stopping the blood. In a short time his master, who had been sent for came; and oh, you would have shuddered if you had heard the awful oaths that fell from his lips, threatening in the same breath "*to pay him for that!*" I left him as soon as decency would permit, with his hearty thanks that I had saved him \$500! Oh, may heaven protect the poor, suffering, fainting slave, and show his master his wanton cruelty—oh slavery! slavery!"

Under date of July, 1832, Mr. G. writes, "I wish you could have been at the breakfast table with me this morning to have seen and heard what I saw and heard, not that I wish your ear and heart and soul pained as mine is, with every day's observation 'of wrong and outrage' with which this place is filled, but that you might have auricular and ocular evidence of the cruelty of slavery, of cruelties that mortal language can never describe—that you might see the tender mercies of a hardened slaveholder, one who bears the name of being *one of the mildest and most merciful masters of which this island can boast*. Oh, my friend, another is screaming under the lash, in the shed-room, but for what I know not. The scene this morning was truly distressing to me. It was this:—*After the blessing was asked* at the breakfast table, one of the servants, a woman grown, in giving one of the children some molasses, happened to pour out a little more than usual, though not more than the child usually eats. Her master was angry at the petty and indifferent mistake, or slip of the hand. He rose from the table, took both of her hands in one of his, and with the other began to beat her, first on one side of her head and then on the other, and repeating this, till, as he said on sitting down at table, it hurt his hand too much to continue it longer. He then took off his *shoe*, and with the heel began in the same manner as with his hand, till the poor creature could no longer endure it without screeches and raising her elbow as it is natural to ward off the blows. He then called a great overgrown negro *to hold her hands behind her* while he should wreak his vengeance upon the poor servant. In this position he began again to beat the poor suffering wretch. It now became intolerable to bear; she *fell, screaming to me for help*. After she fell, he beat her until I thought she would have died in his hands. She got up, however, went out and washed

off the blood and came in before we rose from table, one of the most pitiable objects I ever saw till I came to the South. Her ears were almost as thick as my hand, her eyes awfully blood-shotten, her lips, nose, cheeks, chin, and whole head swollen so that no one would have known it was Etta—and for all this, she had to turn round as she was going out and *thank her master!* Now, all this was done while I was sitting at breakfast with the rest of the family. Think you not I wished myself sitting with the peaceful and happy circle around your table? Think of my feelings, but pity the poor negro slave, who not only fans his cruel master when he eats and sleeps, but bears the stripes his caprice may inflict. Think of this, and let heaven hear your prayers."

In a letter dated St. Helena Island, S.C., Dec. 3, 1832, Mr. G. writes, "If a slave here complains to his master, that his task is too great, his master at once calls him a scoundrel and tells him it is only because he has not enough to do, and orders the driver to increase his task, however unable he may be for the performance of it. I saw TWENTY-SEVEN *whipped at one time* just because they did not do more, when the poor creatures were so tired that they could scarcely drag one foot after the other."

TESTIMONY OF MR. WILLIAM POE

Mr. Poe is a native of Richmond, Virginia, and was formerly a slaveholder. He was for several years a merchant in Richmond, and subsequently in Lynchburg, Virginia. A few years since, he emancipated his slaves, and removed to Hamilton County, Ohio, near Cincinnati; where he is a highly respected ruling elder in the Presbyterian church. He says,—

"I am pained exceedingly, and nothing but my duty to God, to the oppressors, and to the poor down-trodden slaves, who go mourning all their days, could move me to say a word. I will state to you a *few* cases of the abuse of the slaves, but time would fail, if I had language to tell how many and great are the inflictions of slavery, even in its mildest form.

Benjamin James Harris, a wealthy tobacconist of Richmond, Virginia, whipped a slave girl fifteen years old to death. While he was whipping her, his wife heated a smoothing iron, put it on her body in various places, and burned her severely. The verdict of the coroner's inquest was, "Died of excessive whipping." He was tried in Richmond, and acquitted. I attended the trial. Some years after, this same Harris whipped another slave to death. The man had not done so much work as was required of him. After a number of protracted and violent scourgings, with short intervals between, the slave died under the lash. Harris was tried, and again acquitted, because none but blacks saw it done. The same man afterwards whipped another slave severely, for not doing work to please him. After repeated and severe floggings in quick succession, for the same cause, the slave, in despair of pleasing him, cut off his own hand. Harris soon after became a bankrupt, went to New Orleans to recruit his finances, failed, removed to Kentucky, became a maniac, and died.

A captain in the United States' Navy, who married a daughter of the collector of the port of Richmond, and resided there, became offended with his negro boy, took him into the meat house, put him upon a stool, crossed his hands before him, tied a rope to them, threw it over a joist in the building, drew the boy up so that he could just stand on the stool with his

toes, and kept him in that position, flogging him severely at intervals, until the boy became so exhausted that he reeled off the stool, and swung by his hands until he died. The master was tried and acquitted.

In Goochland County, Virginia, an overseer tied a slave to a tree, flogged him again and again with great severity, then piled brush around him, set it on fire, and burned him to death. The overseer was tried and imprisoned. The whole transaction may be found on the records of the court.

In traveling, one day, from Petersburg to Richmond, Virginia, I heard cries of distress at a distance, on the road. I rode up, and found two white men, beating a slave. One of them had hold of a rope, which was passed under the bottom of a fence; the other end was fastened around the neck of the slave, who was thrown flat on the ground, on his face, with his back bared. The other was beating him furiously with a large hickory.

A slaveholder in Henrico County, Virginia, had a slave who used frequently to work for my father. One morning he came into the field with his back completely *cut up*, and mangled from his head to his heels. The man was so stiff and sore he could scarcely walk. This same person got offended with another of his slaves, knocked him down, and struck out one of his eyes with a maul. The eyes of several of his slaves were injured by similar violence.

In Richmond, Virginia, a company occupied as a dwelling a large warehouse. They got angry with a negro lad, one of their slaves, took him into the cellar, tied his hands with a rope, bored a hole through the floor, and passed the rope up through it. Some of the family drew up the boy, while others whipped. This they continued until the boy died. The warehouse was owned by a Mr. Whitlock, on the scite of one formerly owned by a Mr. Philpot.

Joseph Chilton, a resident of Campbell County, Virginia, purchased a quart of tanners' oil, for the purpose, as he said, of putting it on one of his negro's heads, that he had sometime previous pitched or tarred over, for running away.

In the town of Lynchburg, Virginia, there was a negro man put in prison, charged with having pillaged some packages of goods, which he, as head

man of a boat, received at Richmond, to be delivered at Lynchburg. The goods belonged to A.B. Nichols, of Liberty, Bedford County, Virginia. He came to Lynchburg, and desired the jailor to permit him to whip the negro, to make him confess, as there was *no proof against him*. Mr. Williams, (I think that is his name,) a pious Methodist man, a great stickler for law and good order, professedly a great friend to the black man, delivered the negro into the hands of Nichols. Nichols told me that he took the slave, tied his wrists together, then drew his arms down so far below his knees as to permit a staff to pass above the arms under the knees, thereby placing the slave in a situation that he could not move hand or foot. He then commenced his bloody work, and continued, at intervals, until 500 blows were inflicted. I received this statement from Nichols himself, who was, by the way, a *son of the land of "steady habits,"* where there are many like him, if we may judge from their writings, sayings, and doings."

PRIVATIONS OF THE SLAVES.

I. FOOD.

We begin with the *food* of the slaves, because if they are ill treated in this respect we may be sure that they will be ill treated in other respects, and generally in a greater degree. For a man habitually to stint his dependents in their food, is the extreme of meanness and cruelty, and the greatest evidence he can give of utter indifference to their comfort. The father who stints his children or domestics, or the master his apprentices, or the employer his laborers, or the officer his soldiers, or the captain his crew, when able to furnish them with sufficient food, is every where looked upon as unfeeling and cruel. All mankind agree to call such a character inhuman. If any thing can move a hard heart, it is the appeal of hunger. The Arab robber whose whole life is a prowl for plunder, will freely divide his camel's milk with the hungry stranger who halts at his tent door, though he may have just waylaid him and stripped him of his money. Even savages take pity on hunger. Who ever went famishing from an Indian's wigwam? As much as hunger craves, is the Indian's free gift even to an enemy. The necessity for food is such a universal want, so constant, manifest and imperative, that the heart is more touched with pity by the plea of hunger, and more ready to supply that want than any other. He who can habitually inflict on others the pain of hunger by giving them insufficient food, can habitually inflict on them any other pain. He can kick and cuff and flog and brand them, put them in irons or the

stocks, can overwork them, deprive them of sleep, lacerate their backs, make them work without clothing, and sleep without covering.

Other cruelties may be perpetrated in hot blood and the acts regretted as soon as done—the feeling that prompts them is not a permanent state of mind, but a violent impulse stung up by sudden provocation. But he who habitually withholds from his dependents sufficient sustenance, can plead no such palliation. The fact itself shows, that his permanent state of mind toward them is a brutal indifference to their wants and sufferings—A state of mind which will naturally, necessarily, show itself in innumerable privations and inflictions upon them, when it can be done with impunity.

If, therefore, we find upon examination, that the slaveholders do not furnish their slaves with sufficient food, and do thus habitually inflict upon them the pain of hunger, we have a clue furnished to their treatment in other respects, and may fairly infer habitual and severe privations and inflictions; not merely from the fact that men are quick to feel for those who suffer from hunger, and perhaps more ready to relieve that want than any other; but also, because it is more for the interest of the slaveholder to supply that want than any other; consequently, if the slave suffer in this respect, he must as the general rule, suffer *more* in other respects.

We now proceed to show that the slaves have insufficient food. This will be shown first from the express declarations of slaveholders, and other competent witnesses who are, or have been residents of slave states, that the slaves generally are *under-fed*. And then, by the laws of slave states, and by the testimony of slaveholders and others, the *kind, quantity, and quality*, of their allowance will be given, and the reader left to judge for himself whether the slave *must* not be a sufferer.

THE SLAVES SUFFER FROM HUNGER—DECLARATIONS OF SLAVE-HOLDERS AND OTHERS

Hon. Alexander Smyth, a slave holder, and for ten years, Member of Congress from Virginia, in his speech on the Missouri question. Jan 28th, 1820.

"By confining the slaves to the Southern states, where crops are raised for exportation, and bread and meat are purchased, you *doom them to scarcity*

and hunger. It is proposed to hem in the blacks where they are ILL FED."

Rev. George Whitefield, in his letter, to the slave holders of Md. Va. N.C. S.C. and Ga. published in Georgia, just one hundred years ago, 1739.

"My blood has frequently run cold within me, to think how many of your slaves *have not sufficient food to eat*; they are scarcely permitted to *pick up the crumbs*, that fall from their master's table."

Rev. John Rankin, of Ripley, Ohio, a native of Tennessee, and for some years a preacher in slave states.

"Thousands of the slaves are pressed with the gnawings of cruel hunger during their whole lives."

Report of the Gradual Emancipation Society, of North Carolina, 1826. Signed Moses Swain, President, and William Swain, Secretary.

Speaking of the condition of slaves, in the eastern part of that state, the report says,—"The master puts the unfortunate wretches upon short allowances, scarcely sufficient for their sustenance, so that a *great part* of them go *half starved* much of the time."

Mr. Asa A. Stone, a Theological Student, who resided near Natchez, Miss., in 1834-5.

"On almost every plantation, the hands suffer more or less from hunger at some seasons of almost every year. There is always a *good deal of suffering* from hunger. On many plantations, and particularly in Louisiana, the slaves are in a condition of *almost utter famishment*, during a great portion of the year."

Thomas Clay, Esq., of Georgia, a Slaveholder.

"From various causes this [the slave's allowance of food] is *often* not adequate to the support of a laboring man."

Mr. Tobias Boudinot, St Albans, Ohio, a member of the Methodist Church. Mr. B. for some years navigated the Mississippi.

"The slaves down the Mississippi, are *half-starved*, the boats, when they stop at night, are constantly boarded by slaves, begging for something to eat."

President Edwards, the younger, in a sermon before the Conn. Abolition Society, 1791.

"The slaves are supplied with barely enough to keep them from *starving*."

Rev. Horace Moulton, a Methodist Clergyman of Marlboro' Mass., who lived five years in Georgia.

"As a general thing on the plantations, the slaves suffer extremely for the want of food."

Rev. George Bourne, late editor of the Protestant Vindicator, N.Y., who was seven years pastor of a church in Virginia.

"The slaves are deprived of *needful* sustenance."

2. KINDS OF FOOD.

Hon. Robert Turnbull, a slaveholder of Charleston, South Carolina.

"The subsistence of the slaves consists, from March until August, of corn ground into grits, or meal, made into what is called *hominy*, or baked into corn bread. The other six months, they are fed upon the sweet potatoe. Meat, when given, is only by way of *indulgence or favor*."

Mr. Eleazar Powell, Chippewa, Beaver Co., Penn., who resided in Mississippi, in 1836-7.

"The food of the slaves was generally corn bread, and *sometimes* meat or molasses."

Reuben G. Macy, a member of the Society of Friends, Hudson, N.Y., who resided in South Carolina.

"The slaves had no food allowed them besides *corn*, excepting at Christmas, when they had beef."

Mr. William Leftwich, a native of Virginia, and recently of Madison Co., Alabama, now member, of the Presbyterian Church, Delhi, Ohio.

"On my uncle's plantation, the food of the slaves, was corn-pone and a small allowance of meat."

WILLIAM LADD, Esq., of Minot, Me., president of the American Peace Society, and formerly a slaveholder of Florida, gives the following testimony as to the allowance of food to slaves.

"The usual food of the slaves was *corn*, with a modicum of salt. In some cases the master allowed no salt, but the slaves boiled the sea water for salt in their little pots. For about eight days near Christmas, i.e., from the Saturday evening before, to the Sunday evening after Christmas day, they were allowed some *meat*. They always with one single exception ground their corn in a hand-mill, and cooked their food themselves."

Extract of a letter from Rev. D.C. EASTMAN, a preacher of the Methodist Episcopal church, in Fayette county, Ohio.

"In March, 1838, Mr. Thomas Larrimer, a deacon of the Presbyterian church in Bloomingbury, Fayette county, Ohio, Mr. G.S. Fullerton, merchant, and member of the same church, and Mr. William A. Ustick, an elder of the same church, spent a night with a Mr. Shepherd, about 30 miles North of Charleston, S.C., on the Monk's corner road. He owned five families of negroes, who, he said, were fed from the same meal and meat tubs as himself, but that 90 out of a 100 of all the slaves in that county *saw meat but once a year*, which was on Christmas holidays."

As an illustration of the inhuman experiments sometimes tried upon slaves, in respect to the *kind* as well as the quality and quantity of their food, we solicit the attention of the reader to the testimony of the late General Wade Hampton, of South Carolina. General Hampton was for some time commander in chief of the army on the Canada frontier during the last war, and at the time of his death, about three years since, was the largest slaveholder in the United States. The General's testimony is contained in the following extract of a letter, just received from a distinguished clergyman in the west, extensively known both as a preacher and a writer. His name is with the executive committee of the American Anti-Slavery Society.

"You refer in your letter to a statement made to you while in this place, respecting the late General Wade Hampton, of South Carolina, and task me to write out for you the circumstances of the case—considering them well calculated to illustrate two points in the history of slavery: 1st, That the habit of slaveholding dreadfully blunts the feelings toward the slave, producing such insensibility that his sufferings and death are regarded with indifference. 2d, That the slave often has insufficient food, both in quantity and quality.

"I received my information from a lady in the west of high respectability and great moral worth,—but think it best to withhold her name, although the statement was not made in confidence.

"My informant stated that she sat at dinner once in company with General Wade Hampton, and several others; that the conversation turned upon the treatment of their servants, &c.; when the General undertook to entertain the company with the relation of an experiment he had made in the feeding of his slaves on cotton seed. He said that he first mingled one-fourth cotton seed with three-fourths corn, on which they seemed to thrive tolerably well; that he then had measured out to them equal quantities of each, which did not seem to produce any important change; afterwards he increased the quantity of cotton seed to three-fourths, mingled with one-fourth corn, and then he declared, with an oath, that 'they died like rotten sheep!!' It is but justice to the lady to state that she spoke of his conduct with the utmost indignation; and she mentioned also that he received no countenance from the company present, but that all seemed to look at each other with astonishment. I give it to you just as I received it from one who was present, and whose character for veracity is unquestionable.

"It is proper to add that I had previously formed an acquaintance with Dr. Witherspoon, now of Alabama, if alive; whose former residence was in South Carolina; from whom I received a particular account of the manner of feeding and treating slaves on the plantations of General Wade Hampton, and others in the same part of the State; and certainly no one could listen to the recital without concluding that such masters and overseers as he described must have hearts like the nether millstone. The cotton seed experiment I had heard of before also, as having been made in other parts of the south; consequently, I was prepared to receive as true the above

statement, even if I had not been so well acquainted with the high character of my informant."

2. QUANTITY OF FOOD

The legal allowance of food for slaves in North Carolina, is in the words of the law, "a quart of corn per day." See Haywood's Manual, 525. The legal allowance in Louisiana is more, a barrel [flour barrel] of corn, (in the ear,) or its equivalent in other grain, and a pint of salt a month. In the other slave states the amount of food for the slaves is left to the option of the master.

Thos. Clay, Esq., of Georgia, a slave holder, in his address before the Georgia Presbytery, 1833.

"The quantity allowed by custom is *a peck of corn a week!*"

The Maryland Journal, and Baltimore Advertiser, May 30, 1788.

"*A single peck of corn a week, or the like measure of rice, is the ordinary quantity of provision for a hard-working slave; to which a small quantity of meat is occasionally, though rarely, added.*"

W.C. Gildersleeve, Esq., a native of Georgia, and Elder in the Presbyterian Church, Wilksbarre, Penn.

"The weekly allowance to grown slaves on this plantation, where I was best acquainted, was *one peck of corn.*"

Wm. Ladd, of Minot, Maine, formerly a slaveholder in Florida.

"The usual allowance of food was *one quart of corn a day*, to a full task hand, with a modicum of salt; kind masters allowed *a peck of corn a week*; some masters allowed no salt."

Mr. Jarvis Brewster, in his "Exposition of the treatment of slaves in the Southern States," published in N. Jersey, 1815.

"The allowance of provisions for the slaves, is *one peck of corn, in the grain, per week.*"

Rev. Horace Moulton, a Methodist Clergyman of Marlboro, Mass., who lived five years in Georgia.

"In Georgia the planters give each slave only *one peck of their gourd seed corn per week*, with a small quantity of salt."

Mr. F.C. Macy, Nantucket, Mass., who resided in Georgia in 1820.

"The food of the slaves was three pecks of potatoes a week during the potato season, and *one peck of corn*, during the remainder of the year."

Mr. Nehemiah Caulkins, a member of the Baptist Church in Waterford, Conn., who resided in North Carolina, eleven winters.

"The subsistence of the slaves, consists of *seven quarts of meal or eight quarts of small rice for one week!*"

William Savery, late of Philadelphia, an eminent Minister of the Society of Friends, who travelled extensively in the slave states, on a Religious Visitation, speaking of the subsistence of the slaves, says, in his published Journal,

"*A peck of corn* is their (the slaves,) miserable subsistence *for a week*."

The late John Parrish, of Philadelphia, another highly respected Minister of the Society of Friends, who traversed the South, on a similar mission, in 1804 and 5, says in his "Remarks on the slavery of Blacks;"

"They allow them but *one peck of meal*, for a whole week, in some of the Southern states."

Richard Macy, Hudson, N.Y. a Member of the Society of Friends, who has resided in Georgia.

"Their usual allowance of food was one peck of corn per week, which was dealt out to them every first day of the week. They had nothing allowed them besides the corn, except one quarter of beef at Christmas."

Rev. C.S. Renshaw, of Quincy, Ill., (the testimony of a Virginian).

"The slaves are generally allowanced: a pint of corn meal and a salt herring is the allowance, or in lieu of the herring a "dab" of fat meat of about the same value. I have known the sour milk, and clauber to be served out to the

hands, when there was an abundance of milk on the plantation. This is a luxury not often afforded."

Testimony of Mr. George W. Westgate, member of the Congregational Church, of Quincy, Illinois. Mr. W. has been engaged in the low country trade for twelve years, more than half of each year, principally on the Mississippi, and its tributary streams in the south-western slave states.

"*Feeding is not sufficient*,—let facts speak. On the coast, i.e. Natchez and the Gulf of Mexico, the allowance was one barrel of ears of corn, and a pint of salt per month. They may cook this in what manner they please, but it must be done after dark; they have no day light to prepare it by. Some few planters, but only a few, let them prepare their corn on Saturday afternoon. Planters, overseers, and negroes, have told me, that in *pinching times*, i.e. when corn is high, they did not get near that quantity. In Miss., I know some planters who allowed their hands three and a half pounds of meat per week, when it was cheap. Many prepare their corn on the Sabbath, when they are not worked on that day, which however is frequently the case on sugar plantations. There are very many masters on "the coast" who will not suffer their slaves to come to the boats, because they steal molasses to barter for meat; indeed they generally trade more or less with stolen property. But it is impossible to find out what and when, as their articles of barter are of such trifling importance. They would often come on board our boats to beg a bone, and would tell how badly they were fed, that they were almost starved; many a time I have set up all night, to prevent them from stealing something to eat."

3. QUALITY OF FOOD.

Having ascertained the kind and quantity of food allowed to the slaves, it is important to know something of its *quality*, that we may judge of the amount of sustenance which it contains. For, if their provisions are of an inferior quality, or in a damaged state, their power to sustain labor must be greatly diminished.

Thomas Clay, Esq. of Georgia, from an address to the Georgia Presbytery, 1834, speaking of the quality of the corn given to the slaves, says,

"There is *often a defect here*."

Rev. Horace Moulton, a Methodist clergyman at Marlboro, Mass. and five years a resident of Georgia.

"The food, or 'feed' of slaves is generally of the *poorest* kind."

The "Western Medical Reformer," in an article on the diseases peculiar to negroes, by a Kentucky physician, says of the diet of the slaves;

"They live on a coarse, *crude, unwholesome diet.*"

Professor A.G. Smith, of the New York Medical College; formerly a physician in Louisville, Kentucky.

I have myself known numerous instances of large families of *badly fed* negroes swept off by a prevailing epidemic; and it is well known to many intelligent planters in the south, that the best method of preventing that horrible malady, *Chachexia Africana*, is to feed the negroes with *nutritious* food.

4. NUMBER AND TIME OF MEALS EACH DAY.

In determining whether or not the slaves suffer for want of food, the number of hours intervening, and the labor performed between their meals, and the number of meals each day, should be taken into consideration.

Philemon Bliss, Esq., a lawyer in Elyria, Ohio, and member of the Presbyterian church, who lived in Florida, in 1834, and 1835.

"The slaves go to the field in the morning; they carry with them corn meal wet with water, and at *noon* build a fire on the ground and bake it in the ashes. After the labors of the day are over, they take their *second* meal of ash-cake."

President Edwards, the younger.

"The slaves eat *twice* during the day."

Mr. Eleazar Powell, Chippewa, Beaver county, Penn., who resided in Mississippi in 1836 and 1837.

"The slaves received *two* meals during the day. Those who have their food cooked for them get their breakfast about eleven o'clock, and their other

meal *after night*."

Mr. Nehemiah Caulkins, Waterford, Conn., who spent eleven winters in North Carolina.

"The *breakfast* of the slaves was generally about *ten or eleven* o'clock."

Rev. Phineas Smith, Centreville, N.Y., who has lived at the south some years.

"The slaves have usually *two* meals a day, viz: at eleven o'clock and at night."

Rev. C.S. Renshaw, Quincy, Illinois—the testimony of a Virginian.

"The slaves have *two* meals a day. They breakfast at from ten to eleven, A.M., and eat their supper at from six to nine or ten at night, as the season and crops may be."

The preceding testimony establishes the following points.

1st. That the slaves are allowed, in general, *no meat*. This appears from the fact, that in the *only* slave states which regulate the slaves' rations *by law*, (North Carolina and Louisiana,) the *legal ration* contains *no meat*. Besides, the late Hon. R.J. Turnbull, one of the largest planters in South Carolina, says expressly, "meat, when given, is only by the way of indulgence or favor." It is shown also by the direct testimony recorded above, of slaveholders and others, in all parts of the slaveholding south and west, that the general allowance on plantations is corn or meal and salt merely. To this there are doubtless many exceptions, but they are *only* exceptions; the number of slaveholders who furnish meat for their *field-hands*, is small, in comparison with the number of those who do not. The house slaves, that is, the cooks, chambermaids, waiters, &c., generally get some meat every day; the remainder bits and bones of their masters' tables. But that the great body of the slaves, those that compose the field gangs, whose labor and exposure, and consequent exhaustion, are vastly greater than those of house slaves, toiling as they do from day light till dark, in the fogs of the early morning, under the scorchings of mid-day, and amid the damps of evening, are *in general* provided with *no meat*, is abundantly established by the preceding testimony.

Now we do not say that meat *is necessary* to sustain men under hard and long continued labor, nor that it is *not*. This is not a treatise on dietetics; but it is a notorious fact, that the medical faculty in this country, with very few exceptions, do most strenuously insist that it is necessary; and that working men in all parts of the country do *believe* that meat is indispensable to sustain them, even those who work within doors, and only ten hours a day, every one knows. Further, it is notorious, that the slaveholders themselves *believe* the daily use of meat to be absolutely necessary to the comfort, not merely of those who labor, but of those who are idle, as is proved by the fact of meat being a part of the daily ration of food provided for convicts in the prisons, in every one of the slave states, except in those rare cases where meat is expressly prohibited, and the convict is, by *way of extra punishment* confined to bread and water; he is occasionally, and for a little time only, confined to bread and water; that is, to the *ordinary diet* of slaves, with this difference in favor of the convict, his bread is made for him, whereas the slave is forced to pound or grind his own corn and make his own bread, when exhausted with toil.

The preceding testimony shows also, that *vegetables* form generally no part of the slaves' allowance. The *sole* food of the majority is *corn*: at every meal—from day to day—from week to week—from month to month, *corn*. In South Carolina, Georgia, and Florida, the sweet potato is, to a considerable extent, substituted for corn during a part of the year.

2d. The preceding testimony proves conclusively, that the *quantity of food* generally allowed to a full-grown field-hand, is a peck of corn a week, or a fraction over a quart and a gill of corn a day. The legal ration of North Carolina is *less*—in Louisiana it is *more*. Of the slaveholders and other witnesses, who give the fore-going testimony, the reader will perceive that no one testifies to a larger allowance of corn than a peck for a week; though a number testify, that within the circle of their knowledge, *seven* quarts was the usual allowance. Frequently a small quantity of meat is added; but this, as has already been shown, is not the general rule for *field-hands*. We may add, also, that in the season of "pumpkins," "cimblins," "cabbages," "greens," &c., the slaves on small plantations are, to some extent, furnished with those articles.

Now, without entering upon the vexed question of how much food is necessary to sustain the human system, under severe toil and exposure, and without giving the opinions of physiologists as to the insufficiency or sufficiency of the slaves' allowance, we affirm that all civilized nations have, in all ages, and in the most emphatic manner, declared, that *eight quarts of corn a week*, (the usual allowance of our slaves,) is utterly insufficient to sustain the human body, under such toil and exposure as that to which the slaves are subjected.

To show this fully, it will be necessary to make some estimates, and present some statistics. And first, the northern reader must bear in mind, that the corn furnished to the slaves at the south, is almost invariably the *white gourd seed* corn, and that a quart of this kind of corn weighs five or six ounces *less* than a quart of "flint corn," the kind generally raised in the northern and eastern states; consequently a peck of the corn generally given to the slaves, would be only equivalent to a fraction more than six quarts and a pint of the corn commonly raised in the New England States, New York, New Jersey, &c. Now, what would be said of the northern capitalist, who should allow his laborers but *six quarts and five gills of corn for a week's provisions?*

Further, it appears in evidence, that the corn given to the slaves is often *defective*. This, the reader will recollect, is the voluntary testimony of Thomas Clay, Esq., the Georgia planter, whose testimony is given above. When this is the case, the amount of actual nutriment contained in a peck of the "gourd seed," may not be more than in five, or four, or even three quarts of "flint corn."

As a quart of southern corn weighs at least five ounces less than a quart of northern corn, it requires little arithmetic to perceive, that the daily allowance of the slave fed upon that kind of corn, would contain about one third of a pound less nutriment than though his daily ration were the same quantity of northern corn, which would amount, in a year, to more than a hundred and twenty pounds of human sustenance! which would furnish the slave with his full allowance of a peck of corn a week for two months! It is unnecessary to add, that this difference in the weight of the two kinds of corn, is an item too important to be overlooked. As one quart of the southern corn weighs one pound and eleven-sixteenths of a pound, it

follows that it would be about one pound and six-eighths of a pound. We now solicit the attention of the reader to the following unanimous testimony, of the civilized world, to the utter insufficiency of this amount of food to sustain human beings under labor. This testimony is to be found in the laws of all civilized nations, which regulate the rations of soldiers and sailors, disbursements made by governments for the support of citizens in times of public calamity, the allowance to convicts in prisons, &c. We will begin with the United States.

The daily ration for each United States soldier, established by act of Congress, May 30, 1796. was the following: one pound of beef, one pound of bread, half a gill of spirits; and at the rate of one quart of salt, two quarts of vinegar, two pounds of soap, and one pound of candles to every hundred rations. To those soldiers "who were on the frontiers," (where the labor and exposure were greater,) the ration was one pound two ounces of beef and one pound two ounces of bread. Laws U.S. vol. 3d, sec. 10, p. 431.

After an experiment of two years, the preceding ration being found *insufficient*, it was increased, by act of Congress, July 16, 1798, and was as follows: beef one pound and a quarter, bread one pound two ounces; salt two quarts, vinegar four quarts, soap four pounds, and candles one and a half pounds to the hundred rations. The preceding allowance was afterwards still further increased.

The *present daily ration* for the United States' soldiers, is, as we learn from an advertisement of Captain Fulton, of the United States' army, in a late number of the Richmond (Va.) Enquirer, as follows: one and a quarter pounds of beef, one and three-sixteenths pounds of bread; and at the rate of *eight quarts of beans, eight pounds of sugar*, four pounds of coffee, two quarts of salt, four pounds of candles, and four pounds of soap, to every hundred rations.

We have before us the daily rations provided for the emigrating Ottawa Indians, two years since, and for the emigrating Cherokees last fall. They were the same—one pound of fresh beef, one pound of flour, &c.

The daily ration for the United States' navy, is fourteen ounces of bread, half a pound of beef, six ounces of pork, three ounces of rice, three ounces

of peas, one ounce of cheese, one ounce of sugar, half an ounce of tea, one-third of a gill molasses.

The daily ration in the British army is one and a quarter pounds of beef, one pound of bread, &c.

The daily ration in the French army is one pound of beef, one and a half pounds of bread, one pint of wine, &c.

The common daily ration for foot soldiers on the continent, is one pound of meat, and one and a half pounds of bread.

The *sea ration* among the Portuguese, has become the usual ration in the navies of European powers generally. It is as follows: "one and a half pounds of biscuit, one pound of salt meat, one pint of wine, with some dried fish and onions."

PRISON RATIONS.—Before giving the usual daily rations of food allowed to convicts, in the principal prisons in the United States, we will quote the testimony of the "American Prison Discipline Society," which is as follows:

"The common allowance of food in the penitentiaries, is equivalent to ONE POUND OF MEAT, ONE POUND OF BREAD, AND ONE POUND OF VEGETABLES PER DAY. It varies a little from this in some of them, but it is generally equivalent to it." First Report of American Prison Discipline Society, page 13.

The daily ration of food to each convict, in the principal prisons in this country, is as follows:

In the New Hampshire State Prison, one and a quarter pounds of meal, and fourteen ounces of beef, for *breakfast and dinner*; and for supper, a soup or porridge of potatoes and beans, or peas, the *quantity not limited*.

In the Vermont prison, the convicts are allowed to eat *as much as they wish*.

In the Massachusetts' penitentiary, one and a half pounds of bread, fourteen ounces of meat, half a pint of potatoes, and one gill of molasses, or one pint of milk.

In the Connecticut State Prison, one pound of beef, one pound of bread, two and a half pounds of potatoes, half a gill of molasses, with salt, pepper, and vinegar.

In the New York State Prison, at Auburn, one pound of beef, twenty-two ounces of flour and meal, half a gill of molasses; with two quarts of rye, four quarts of salt, two quarts of vinegar, one and a half ounces of pepper, and two and a half bushels of potatoes to every hundred rations.

In the New York State Prison at Sing Sing, one pound of beef, eighteen ounces of flour and meal, besides potatoes, rye coffee, and molasses.

In the New York City Prison, one pound of beef, one pound of flour; and three pecks of potatoes to every hundred rations, with other small articles.

In the New Jersey State Prison, one pound of bread, half a pound of beef, with potatoes and cabbage, (quantity not specified,) one gill of molasses, and a bowl of mush for supper.

In the late Walnut Street Prison, Philadelphia, one and a half pounds of bread and meal, half a pound of beef, one pint of potatoes, one gill of molasses, and half a gill of rye, for coffee.

In the Baltimore prison, we believe the ration is the same with the preceding.

In the Pennsylvania Eastern Penitentiary, one pound of bread and one pint of coffee for breakfast, one pint of meat soup, with potatoes without limit, for dinner, and mush and molasses for supper.

In the Penitentiary for the District of Columbia, Washington city, one pound of beef, twelve ounces of Indian meal, ten ounces of wheat flour, half a gill of molasses; with two quarts of rye, four quarts of salt, four quarts of vinegar, and two and a half bushels of potatoes to every hundred rations.

RATIONS IN ENGLISH PRISONS.—The daily ration of food in the Bedfordshire Penitentiary, is *two pounds of bread*; and if at hard labor, *a quart of soup for dinner*.

In the Cambridge County House of Correction, three pounds of bread, and one pint of beer.

In the Millbank General Penitentiary, one and a half pounds of bread, one pound of potatoes, six ounces of beef, with half a pint of broth therefrom.

In the Gloucestershire Penitentiary, one and a half pounds of bread, three-fourths of a pint of peas, made into soup, with beef, quantity not stated. Also gruel, made of vegetables, quantity not stated, and one and a half ounces of oatmeal mixed with it.

In the Leicestershire House of Correction, two pounds of bread, and three pints of gruel; and when at hard labor, one pint of milk in addition, and twice a week a pint of meat soup at dinner, instead of gruel.

In the Buxton House of Correction, one and a half pounds of bread, one and a half pints of gruel, one and a half pints of soup, four-fifths of a pound of potatoes, and two-sevenths of an ounce of beef.

Notwithstanding the preceding daily ration in the Buxton Prison is about double the usual daily allowance of our slaves, yet the visiting physicians decided, that for those prisoners who were required to work the tread-mill, it was *entirely sufficient*. This question was considered at length, and publicly discussed at the sessions of the Surry magistrates, with the benefit of medical advice; which resulted in "large additions" to the rations of those who worked on the tread-mill. See London Morning Chronicle, Jan. 13, 1830.

To the preceding we add the *ration of the Roman slaves*. The monthly allowance of food to slaves in Rome was called "Dimensum." The "Dimensum" was an allowance of wheat or of other grain, which consisted of five *modii* a month to each slave. Ainsworth, in his Latin Dictionary estimates the *modius*, when used for the measurement of grain, at *a peck and a half* our measure, which would make the Roman slave's allowance *two quarts of grain a day*, just double the allowance provided for the slave by law in North Carolina, and six quarts more per week than the ordinary allowance of slaves in the slave states generally, as already established by the testimony of slaveholders themselves. But it must by no means be overlooked that this "dimensum," or *monthly* allowance, was far from being the sole allowance of food to Roman slaves. In *addition* to this, they had a stated *daily* allowance (*diarium*) besides a monthly allowance of *money*, amounting to about a cent a day.

Now without further trenching on the reader's time, we add, compare the preceding daily allowances of food to soldiers and sailors in this and other countries; to convicts in this and other countries; to bodies of emigrants rationed at public expense; and finally, with the fixed allowance given to Roman slaves, and we find the states of this Union, the *slave* states as well as the free, the United States' government, the different European governments, the old Roman empire, in fine, we may add, the *world*, ancient and modern, uniting in the testimony that to furnish men at hard labor from daylight till dark with but 1-1/2 lbs. of *corn* per day, their sole sustenance, is to MURDER THEM BY PIECE-MEAL. The reader will perceive by examining the preceding statistics that the *average daily* ration throughout this country and Europe exceeds the usual slave's allowance *at least a pound a day*; also that one-third of this ration for soldiers and convicts in the United States, and for soldiers and sailors in Europe is *meat*, generally beef; whereas the allowance of the mass of our slaves is corn, only. Further, the convicts in our prisons are sheltered from the heat of the sun, and from the damps of the early morning and evening, from cold, rain, &c.; whereas, the great body of the slaves are exposed to all of these, in their season, from daylight till dark; besides this, they labor more hours in the day than convicts, as will be shown under another head, and are obliged to prepare and cook their own food after they have finished the labor of the day, while the convicts have theirs prepared for them. These, with other circumstances, necessarily make larger and longer draughts upon the strength of the slave, produce consequently greater exhaustion, and demand a larger amount of food to restore and sustain the laborer than is required by the convict in his briefer, less exposed, and less exhausting toils.

That the slaveholders themselves regard the usual allowance of food to slaves as insufficient, both in kind and quantity, for hard-working men, is shown by the fact, that in all the slave states, we believe without exception, *white* convicts at hard labor, have a much *larger* allowance of food than the usual one of slaves; and generally more than *one third* of this daily allowance is meat. This conviction of slaveholders shows itself in various forms. When persons wish to hire slaves to labor on public works, in addition to the inducement of high wages held out to masters to hire out their slaves, the contractors pledge themselves that a certain amount of food

shall be given the slaves, taking care to specify a *larger* amount than the usual allowance, and a part of it *meat*.

The following advertisement is an illustration. We copy it from the "Daily Georgian," Savannah, Dec. 14, 1838.

NEGROES WANTED.

The Contractors upon the Brunswick and Alatamaha Canal are desirous to hire a number of prime Negro Men, from the 1st October next, for fifteen months, until the 1st January, 1810. They will pay at the rate of eighteen dollars per month for each prime hand.

These negroes will be employed in the excavation of the Canal. They will be provided with *three and a half pounds of pork or bacon, and ten quarts of gourd seed corn per week*, lodged in comfortable shantees and attended constantly a skilful physician. J.H. COUPER, P.M. NIGHTINGALE.

But we have direct testimony to this point. The late Hon. John Taylor, of Caroline Co. Virginia, for a long time Senator in Congress, and for many years president of the Agricultural Society of the State, says in his "Agricultural Essays," No. 30, page 97, "BREAD ALONE OUGHT NEVER TO BE CONSIDERED A SUFFICIENT DIET FOR SLAVES EXCEPT AS A PUNISHMENT." He urges upon the planters of Virginia to give their slaves, in addition to bread, "salt meat and vegetables," and adds, "we shall be ASTONISHED to discover upon trial, that this great comfort to them is a profit to the master."

The Managers of the American Prison Discipline Society, in their third Report, page 58, say, "In the Penitentiaries generally, in the United States, the animal food is equal to one pound of meat per day for each convict."

Most of the actual suffering from hunger on the part of the slaves, is in the sugar and cotton-growing region, where the crops are exported and the corn generally purchased from the upper country. Where this is the case there cannot but be suffering. The contingencies of bad crops, difficult transportation, high prices, &c. &c., naturally occasion short and often precarious allowances. The following extract from a New Orleans paper of

April 26, 1837, affords an illustration. The writer in describing the effects of the money pressure in Mississippi, says:

"They, (the planters,) are now left without provisions and the means of living and using their industry, for the present year. In this dilemma, planters whose crops have been from 100 to 700 bales, find themselves forced to sacrifice many of their slaves in order to get the common necessities of life for the support of themselves and the rest of their negroes. In many places, heavy planters compel their slaves to fish for the means of subsistence, rather than sell them at such ruinous rates. There are at this moment THOUSANDS OF SLAVES in Mississippi, that KNOW NOT WHERE THE NEXT MORSEL IS TO COME FROM. The master must be ruined to save the wretches from being STARVED."

II. LABOR

THE SLAVES ARE OVERWORKED.

This is abundantly proved by the number of hours that the slaves are obliged to be in the field. But before furnishing testimony as to their hours of labor and rest, we will present the express declarations of slaveholders and others, that the slaves are severely driven in the field.

The Senate and House of Representatives of the State of South Carolina.

"Many owners of slaves, and others who have the management of slaves, *do confine them so closely at hard labor that they have not sufficient time for natural rest.*—See 2 Brevard's Digest of the Laws of South Carolina, 243."

History of Carolina.—Vol. I, page 190.

"So *laborious* is the task of raising, beating, and cleaning rice, that had it been possible to obtain European servants in sufficient numbers, *thousands and tens of thousands* MUST HAVE PERISHED."

Hon. Alexander Smyth, a slaveholder, and member of Congress from Virginia, in his speech on the "Missouri question," Jan. 28, 1820.

"Is it not obvious that the way to render their situation *more comfortable*, is to allow them to be taken where there is not the same motive to force the slave to INCESSANT TOIL that there is in the country where cotton, sugar,

and tobacco are raised for exportation. It is proposed to hem in the blacks *where they are* HARD WORKED, that they may be rendered unproductive and the race be prevented from increasing. * * * The proposed measure would be EXTREME CRUELTY to the blacks. * * * You would * * * doom them to HARD LABOR."

"Travels in Louisiana," translated from the French by John Davies, Esq.—Page 81.

"At the rolling of sugars, an interval of from two to three months, they *work both night and day*. Abridged of their sleep, they *scarce retire to rest during the whole period*."

The Western Review, No. 2,—article "Agriculture of Louisiana."

"The work is admitted to be severe for the hands, (slaves,) requiring when the process is commenced to be *pushed night and day*."

W.C. Gildersleeve, Esq., a native of Georgia, elder of the Presbyterian church, Wilkesbarre, Penn.

"*Overworked* I know they (the slaves) are."

Mr. Asa A. Stone, a theological student, near Natchez, Miss., in 1834 and 1835.

"Every body here knows *overdriving* to be one of the most common occurrences, the planters do not deny it, except, perhaps, to northerners."

Philemon Bliss, Esq., a lawyer of Elyria, Ohio, who lived in Florida in 1834 and 1835.

"During the cotton-picking season they usually labor in the field during the whole of the daylight, and then spend a good part of the night in ginning and baling. The labor required is very frequently excessive, and speedily impairs the constitution."

Hon. R.J. Turnbull of South Carolina, a slaveholder, speaking of the harvesting of cotton, says:

"*All the pregnant women even, on the plantation, and weak and sickly negroes incapable of other labour, are then in requisition.*"

HOURS OF LABOR AND REST.

Asa A. Stone, theological student, a classical teacher near Natchez, Miss., 1835.

"It is a general rule on all regular plantations, that the slaves be in the field *as soon as it is light enough for them to see to work*, and remain there until it is *so dark that they cannot see.*"

Mr. Cornelius Johnson, of Farmington, Ohio, who lived in Mississippi a part of 1837 and 1838.

"It is the common rule for the slaves to be kept at work *fifteen hours in the day*, and in the time of picking cotton a certain number of pounds is required of each. If this amount is not brought in at night, the slave is whipped, and the number of pounds lacking is added to the next day's job; this course is often repeated from day to day."

W.C. Gildersleeve, Esq., Wilkesbarre, Penn, a native of Georgia. "It was customary for the overseers to call out the gangs *long before day*, say three o'clock, in the winter, while dressing out the crops; such work as could be done by fire light (pitch pine was abundant,) was provided."

Mr. William Leftwich, a native of Virginia and son of a slaveholder—he has recently removed to Delhi, Hamilton County, Ohio.

"*From dawn till dark*, the slaves are required to bend to their work."

Mr. Nehemiah Caulkins, Waterford, Conn., a resident in North Carolina eleven winters.

"The slaves are obliged to work *from daylight till dark*, as long as they can see."

Mr. Eleazar Powel, Chippewa, Beaver county, Penn., who lived in Mississippi in 1836 and 1837.

"The slaves had to cook and eat their breakfast and be in the field by *daylight*, and continue there till dark."

Philemon Bliss, Esq., a lawyer in Elyria, Ohio, who resided in Florida in 1834 and 1835.

"The slaves commence labor *by daylight* in the morning, and do not leave the field *till dark* in the evening."

"Travels in Louisiana," page 87.

"Both in summer and winter the slave must *be in the field by the first dawning of day*."

Mr. Henry E. Knapp, member of a Christian church in Farmington, Ohio, who lived in Mississippi in 1837 and 1838.

"The slaves were made to work, from *as soon as they could see* in the morning, till as late as they could see at night. Sometimes they were made to work till nine o'clock at night, in such work as they could do, as burning cotton stalks, &c."

A New Orleans paper, dated March 23, 1826, says: "To judge from the activity reigning in the cotton presses of the suburbs of St. Mary, and the *late hours* during which their slaves work, the cotton trade was never more brisk."

Mr. GEORGE W. WESTGATE, a member of the Congregational Church at Quincy, Illinois, who lived in the south western slaves states a number of years says, "the slaves are driven to the field in the morning *about four o'clock*, the general calculation is to get them at work by daylight; the time for breakfast is between nine and ten o'clock, this meal is sometimes eaten '*bite and work*,' others allow fifteen minutes, and this is the only rest the slave has while in the field. I have never known a case of stopping for an hour, in Louisiana; in Mississippi the rule is milder, though entirely subject to the will of the master. On cotton plantations, in cotton picking time, that is from October to Christmas, each hand has a certain quantity to pick, and is flogged if his task is not accomplished; their tasks are such as to keep them all the while busy."

The preceding testimony under this head has sole reference to the actual labor of the slaves *in the field*. In order to determine how many hours are left for sleep, we must take into the account, the time spent in going to and from the field, which is often at a distance of one, two and sometimes three miles; also the time necessary for pounding, or grinding their corn, and preparing, overnight, their food for the next day; also the preparation of tools, getting fuel and preparing it, making fires and cooking their suppers, if they have any, the occasional mending and washing of their clothes, &c. Besides this, as everyone knows who has lived on a southern plantation, many little errands and *chores* are to be done for their masters and mistresses, old and young, which have accumulated during the day and been kept in reserve till the slaves return from the field at night. To this we may add that the slaves are *social* beings, and that during the day, silence is generally enforced by the whip of the overseer or driver.^[3] When they return at night, their pent up social feelings will seek vent, it is a law of nature, and though the body may be greatly worn with toil, this law cannot be wholly stifled. Sharers of the same woes, they are drawn together by strong affinities, and seek the society and sympathy of their fellows; even "*tired* nature" will joyfully forego for a time needful rest, to minister to a want of its being equally permanent and imperative as the want of sleep, and as much more profound, as the yearnings of the higher nature surpass the instincts of its animal appendage.

[Footnote ³: We do not mean that they are not suffered to *speak*, but, that, as conversation would be a hindrance to labour, they are generally permitted to indulge in it but little.]

All these things make drafts upon *time*. To show how much of the slave's time, which is absolutely indispensable for rest and sleep, is necessarily spent in various labors after his return from the field at night, we subjoin a few testimonies.

Mr. CORNELIUS JOHNSON, Farmington, Ohio, who lived in Mississippi in the years 1837 and 38, says:

"On all the plantations where I was acquainted, the slaves were kept in the field till dark; after which, those who had to grind their own corn, had that

to attend to, get their supper, attend to other family affairs of their own and of their master, such as bringing water, washing, clothes, &c. &c., and be in the field as soon as it was sufficiently light to commence work in the morning."

Mr. GEORGE W. WESTGATE, of Quincy, Illinois, who has spent several years in the south western slave states, says:

"Their time, after full dark until four o'clock in the morning is their own; this fact alone would seem to say they have sufficient rest, but there are other things to be considered; much of their making, mending and washing of clothes, preparing and cooking food, hauling and chopping wood, fixing and preparing tools, and a variety of little nameless jobs must be done between those hours."

PHILEMON BLISS, Esq. of Elyria, Ohio, who resided in Florida in 1834 and 5, gives the following testimony:

"After having finished their field labors, they are occupied till nine or ten o'clock in doing *chores*, such as grinding corn, (as all the corn in the vicinity is ground by hand,) chopping wood, taking care of horses, mules, &c., and a thousand things necessary to be done on a large plantation. If any extra job is to be done, it must not hinder the 'niggers' from their work, but must be done in the night."

W.C. GILDERSLEEVE, Esq., a native of Georgia, an elder of the Presbyterian Church at Wilkes-barre, Pa. says:

"The corn is ground in a handmill by the slave *after his task is done*—generally there is but one mill on the plantation, and as but one can grind at a time, the mill is going sometimes *very late at night*."

We now present another class of facts and testimony, showing that the slaves engaged in raising the large staples, are *overworked*.

In September, 1831, the writer of this had an interview with JAMES G. BIRNEY, Esq., who then resided in Kentucky, having removed with his family from Alabama the year before. A few hours before that interview, and on the morning of the same day, Mr. B. had spent a couple of hours with Hon. Henry Clay, at his residence, near Lexington. Mr. Birney

remarked, that Mr. Clay had just told him, he had lately been led to mistrust certain estimates as to the increase of the slave population in the far south west—estimates which he had presented, I think, in a speech before the Colonization Society. He now believed, that the births among the slaves in that quarter were *not equal to the deaths*—and that, of course, the slave population, independent of immigration from the slave-selling states, was *not sustaining itself*.

Among other facts stated by Mr. Clay, was the following, which we copy *verbatim* from the original memorandum, made at the time by Mr. Birney, with which he has kindly furnished us.

"Sept. 16, 1834.—Hon. H. Clay, in a conversation at his own house, on the subject of slavery, informed me, that Hon. Outerbridge Horsey, formerly a senator in Congress from the state of Delaware, and the owner of a sugar plantation in Louisiana, declared to him, that his overseer worked his hands so closely, that one of the women brought forth a child whilst engaged in the labors of the field.

"Also, that a few years since, he was at a brick yard in the environs of New Orleans, in which one hundred hands were employed; among them were from *twenty to thirty young women*, in the prime of life. He was told by the proprietor, that there had *not been a child born among them for the last two or three years, although they all had husbands*."

The preceding testimony of Mr. Clay, is strongly corroborated by advertisements of slaves, by Courts of Probate, and by executors administering upon the estates of deceased persons. Some of those advertisements for the sale of slaves, contain the names, ages, accustomed employment, &c., of all the slaves upon the plantation of the deceased. These catalogues show large numbers of young men and women, almost all of them between twenty and thirty-eight years old; and yet the number of young children is *astonishingly small*. We have laid aside many lists of this kind, in looking over the newspapers of the slaveholding states; but the two following are all we can lay our hands on at present. One is in the "Planter's Intelligencer," Alexandria, La., March 22, 1837, containing one hundred and thirty slaves; and the other in the New Orleans Bee, a few days later, April 8, 1837, containing fifty-one slaves. The former is a "Probate sale" of

the slaves belonging to the estate of Mr. Charles S. Lee, deceased, and is advertised by G.W. Keeton, Judge of the Parish of Concordia, La. The sex, name, and age of each slave are contained in the advertisement which fills two columns. The following are some of the particulars.

The whole number of slaves is *one hundred and thirty*. Of these, *only three are over forty years old*. There are *thirty-five females* between the ages of *sixteen and thirty-three*, and yet there are only THIRTEEN children under the age of *thirteen years*!

It is impossible satisfactorily to account for such a fact, on any other supposition, than that these thirty-five females were so overworked, or underfed, or both, as to prevent child-bearing.

The other advertisement is that of a "Probate sale," ordered by the Court of the Parish of Jefferson—including the slaves of Mr. William Gormley. The whole number of slaves is fifty-one; the sex, age, and accustomed labors of each are given. The oldest of these slaves is but *thirty-nine years old*: of the females, *thirteen* are between the ages of sixteen and thirty-two, and the oldest female is but *thirty-eight*—and yet there are but *two children under eight years old*!

Another proof that the slaves in the south-western states are over-worked, is the fact, that so few of them live to old age. A large majority of them are *old* at middle age, and few live beyond fifty-five. In one of the preceding advertisements, out of one hundred and thirty slaves, only *three* are over forty years old! In the other, out of fifty-one slaves, only *two* are over *thirty-five*; the oldest is but thirty-nine, and the way in which he is designated in the advertisement, is an additional proof, that what to others is "middle age," is to the slaves in the south-west "old age:" he is advertised as "*old Jeffrey*."

But the proof that the slave population of the south-west is so over-worked that it cannot *supply its own waste*, does not rest upon mere inferential evidence. The Agricultural Society of Baton Rouge, La., in its report, published in 1829, furnishes a labored estimate of the amount of expenditure necessarily incurred in conducting "a well-regulated sugar estate." In this estimate, the annual net loss of slaves, over and above the supply by propagation, is set down at TWO AND A HALF PER CENT!

The late Hon. Josiah S. Johnson, a member of Congress from Louisiana, addressed a letter to the Secretary of the United States' Treasury, in 1830, containing a similar estimate, apparently made with great care, and going into minute details. Many items in this estimate differ from the preceding; but the estimate of the annual *decrease* of the slaves on a plantation was the same—TWO AND A HALF PER CENT!

The following testimony of Rev. Dr. Channing, of Boston, who resided some time in Virginia, shows that the over-working of slaves, to such an extent as to abridge life, and cause a decrease of population, is not confined to the far south and south-west.

"I heard of an estate managed by an individual who was considered as singularly successful, and who was able to govern the slaves without the use of the whip. I was anxious to see him, and trusted that some discovery had been made favorable to humanity. I asked him how he was able to dispense with corporal punishment. He replied to me, with a very determined look, 'The slaves know that the work *must* be done, and that it is better to do it without punishment than with it.' In other words, the certainty and dread of chastisement were so impressed on them, that they never incurred it.

"I then found that the slaves on this well-managed estate, *decreased* in number. I asked the cause. He replied, with perfect frankness and ease, 'The gang is not large enough for the estate.' In other words, they were not equal to the work of the plantation, and, yet were *made to do it*, though with the certainty of abridging life.

"On this plantation the huts were uncommonly convenient. There was an unusual air of neatness. A superficial observer would have called the slaves happy. Yet they were living under a severe, subduing discipline, and were *over-worked* to a degree that *shortened life*."—*Channing on Slavery*, page 162, first edition.

PHILEMON BLISS, Esq., a lawyer of Elyria, Ohio, who spent some time in Florida, gives the following testimony to the over-working of the slaves:

"It is not uncommon for hands, in hurrying times, beside working all day, to labor half the night. This is usually the case on sugar plantations, during the

sugar-boiling season; and on cotton, during its gathering. Beside the regular task of picking cotton, averaging of the short staple, when the crop is good, 100 pounds a day to the hand, the ginning (extracting the seed,) and baling was done in the night. Said Mr. ——— to me, while conversing upon the customary labor of slaves, 'I work my niggers in a hurrying time till 11 or 12 o'clock at night, and have them up by four in the morning.'

"Beside the common inducement, the desire of gain, to make a large crop, the desire is increased by that spirit of gambling, so common at the south. It is very common to *bet* on the issue of a crop. A. lays a wager that, from a given number of hands, he will make more cotton than B. The wager is accepted, and then begins the contest; and who bears the burden of it? How many tears, yea, how many broken constitutions, and premature deaths, have been the effect of this spirit? From the desperate energy of purpose with which the gambler pursues his object, from the passions which the practice calls into exercise, we might conjecture many. Such is the fact. In Middle Florida, a *broken-winded* negro is more common than a *broken-winded* horse; though usually, when they are declared unsound, or when their constitution is so broken that their recovery is despaired of, they are exported to New Orleans, to drag out the remainder of their days in the cane-field and sugar house. I would not insinuate that all planters gamble upon their crops; but I mention the practice as one of the common inducements to 'push niggers.' Neither would I assert that all planters drive the hands to the injury of their health. I give it as a *general* rule in the district of Middle Florida, and I have no reason to think that negroes are driven worse there than in other fertile sections. People there told me that the situation of the slaves was far better than in Mississippi and Louisiana. And from comparing the crops with those made in the latter states, and for other reasons, I am convinced of the truth of their statements."

DR. DEMMING, a gentleman of high respectability, residing in Ashland, Richland county, Ohio, stated to Professor Wright, of New York city,

"That during a recent tour at the south, while ascending the Ohio river, on the steamboat Fame, he had an opportunity of conversing with a Mr. Dickinson, a resident of Pittsburg, in company with a number of cotton-planters and slave-dealers, from Louisiana, Alabama, and Mississippi, Mr. Dickinson stated as a fact, that the sugar planters upon the sugar coast in

Louisiana had ascertained, that, as it was usually necessary to employ about *twice* the amount of labor during the boiling season, that was required during the season of raising, they could, by excessive driving, day and night, during the boiling season, accomplish the whole labor *with one set of hands*. By pursuing this plan, they could afford *to sacrifice a set of hands once in seven years!* He further stated that this horrible system was now practised to a considerable extent! The correctness of this statement was substantially admitted by the slaveholders then on board."

The late MR. SAMUEL BLACKWELL, a highly respected citizen of Jersey city, opposite the city of New York, and a member of the Presbyterian church, visited many of the sugar plantations in Louisiana a few years since: and having for many years been the owner of an extensive sugar refinery in England, and subsequently in this country, he had not only every facility afforded him by the planters, for personal inspection of all parts of the process of sugar-making, but received from them the most unreserved communications, as to their management of their slaves. Mr. B., after his return, frequently made the following statement to gentlemen of his acquaintance,—"That the planters generally declared to him, that they were *obliged* so to over-work their slaves during the sugar-making season, (from eight to ten weeks,) as to use *them up* in seven or eight years. For, said they, after the process is commenced, it must be pushed without cessation, night and day; and we cannot afford to keep a sufficient number of slaves to do the *extra* work at the time of sugar-making, as we could not profitably employ them the rest of the year."

It is not only true of the sugar planters, but of the slaveholders generally throughout the far south and south west, that they believe it for their interest to wear out the slaves by excessive toil in eight or ten years after they put them into the field.[\[4\]](#)

[Footnote [4](#): Alexander Jones. Esq., a large planter in West Feliciana, Louisiana, published a communication in the "North Carolina True American," Nov. 25, 1838, in which, speaking of the horses employed in the mills on the plantations for ginning cotton, he says, they "are much

whipped and jaded;" and adds, "In fact, this service is so severe on horses, as to shorten their lives in many instances, if not actually kill them in gear."

Those who work one kind of their "live stock" so as to "shorten their lives," or "kill them in gear" would not stick at doing the same thing to another kind.]

REV. DOCTOR REED, of London, who went through Kentucky, Virginia and Maryland in the summer of 1834, gives the following testimony:

"I was told confidently and from *excellent authority*, that recently at a meeting of planters in South Carolina, the question was seriously discussed whether the slave is more profitable to the owner, if well fed, well clothed, and worked lightly, or if made the most of *at once*, and exhausted in some eight years. The decision was in favor of the last alternative. That decision will perhaps make many shudder. But to my mind this is not the chief evil. The greater and original evil is considering the *slave as property*. If he is only property and my property, then I have some right to ask how I may make that property most available."

"Visit to the American Churches," by Rev. Drs. Reed and Mattheson. Vol. 2 p. 173.

REV. JOHN O. CHOULES, recently pastor of a Baptist Church at New Bedford, Massachusetts, now of Buffalo, New York, made substantially the following statement in a speech in Boston.

"While attending the Baptist Triennial Convention at Richmond, Virginia, in the spring of 1835, as a delegate from Massachusetts, I had a conversation on slavery, with an officer of the Baptist Church in that city, at whose house I was a guest. I asked my host if he did not apprehend that the slaves would eventually rise and exterminate their masters.

"Why," said the gentleman, "I used to apprehend such a catastrophe, but God has made a providential opening, a *merciful safety valve*, and now I do not feel alarmed in the *prospect* of what is coming. 'What do you mean,' said Mr. Choules, 'by providence opening a merciful safety valve?' Why, said the gentleman, I will tell you; the slave traders come from the cotton and sugar plantations of the South and are willing to buy up more slaves than we can part with. We must keep a stock for the purpose of *rearing*

slaves, but we part with the most valuable, and at the same time, the most *dangerous*, and the demand is very constant and likely to be so, for when they go to these southern states, the average existence Is ONLY FIVE YEARS!"

Monsieur C.C. ROBIN, a highly intelligent French gentleman, who resided in Louisiana from 1802 to 1806, and published a volume of travels, gives the following testimony to the over-working of the slaves there:

"I have been a witness, that after the fatigue of the day, their labors have been prolonged several hours by the light of the moon; and then, before they could think of rest, they must pound and cook their corn; and yet, long before day, an implacable scold, whip in hand, would arouse them from their slumbers. Thus, of more than twenty negroes, who in twenty years should have doubled, the number *was reduced to four or five.*"

In conclusion we add, that slaveholders have in the most public and emphatic manner declared themselves guilty of barbarous inhumanity toward their slaves in exacting from them such *long continued daily labor*. The Legislatures of Maryland, Virginia and Georgia, have passed laws providing that convicts in their state prisons and penitentiaries, "shall be employed in work each day in the year except Sundays, not exceeding *eight* hours, in the months of November, December, and January; *nine* hours, in the months of February and October, and *ten* hours in the rest of the year." Now contrast this *legal* exaction of labor from CONVICTS with the exaction from slaves as established by the preceding testimony. The reader perceives that the amount of time, in which by the preceding laws of Maryland, Virginia, and Georgia, the *convicts* in their prisons are required to labor, is on an average during the year but little more than NINE HOURS daily. Whereas, the laws of South Carolina permit the master to *compel* his slaves to work FIFTEEN HOURS in the twenty-four, in summer, and FOURTEEN in the winter—which would be in winter, from daybreak in the morning until *four hours* after sunset!—See 2 Brevard's Digest, 243.

The other slave states, except Louisiana, have *no laws* respecting the labor of slaves, consequently if the master should work his slaves day and night without sleep till they drop dead, *he violates no law!*

The law of Louisiana provides for the slaves but TWO AND A HALF HOURS in the twenty-four for "rest!" See law of Louisiana, act of July 7 1806, Martin's Digest 6. 10—12.

III. CLOTHING.

We propose to show under this head, that the clothing of the slaves by day, and their covering by night, are inadequate, either for comfort or decency.

Hon. T.T. Bouldin, a slave-holder, and member of Congress from Virginia in a speech in Congress, Feb. 16, 1835.

Mr. Bouldin said "*he knew* that many negroes had *died* from exposure to weather," and added, "*they are clad in a flimsy fabric, that will turn neither wind nor water.*"

George Buchanan, M.D., of Baltimore, member of the American Philosophical Society, in an oration at Baltimore, July 4, 1791.

"The slaves, *naked* and starved, *often* fall victims to the inclemencies of the weather."

Wm. Savery of Philadelphia, an eminent Minister of the Society of Friends, who went through the Southern states in 1791, on a religious visit; after leaving Savannah, Ga., we find the following entry in his journal, 6th, month, 28, 1791.

"We rode through many rice swamps, where the blacks were very numerous, great droves of these poor slaves, working up to the middle in water, men and women nearly *naked*."

Rev. John Rankin, of Ripley, Ohio, a native of Tennessee.

"In every slave-holding state, *many slaves suffer extremely*, both while they labor and while they sleep, *for want of clothing* to keep them warm."

John Parrish, late of Philadelphia, a highly esteemed minister in the Society of Friends, who travelled through the South in 1804.

"It is shocking to the feelings of humanity, in travelling through some of those states, to see those poor objects, [slaves,] especially in the inclement

season, in *rags*, and *trembling with the cold*."

"They suffer them, both male and female, *to go without clothing* at the age of ten and twelve years"

Rev. Phineas Smith, Centreville, Allegany, Co., N.Y. Mr. S. has just returned from a residence of several years at the south, chiefly in Virginia, Louisiana, and among the American settlers in Texas.

"The apparel of the slaves, is of the coarsest sort and *exceedingly deficient* in quantity. I have been on many plantations where children of eight and ten years old, were in a state of *perfect nudity*. Slaves are *in general wretchedly clad*."

Wm. Ladd, Esq., of Minot, Maine, recently a slaveholder in Florida.

"They were allowed two suits of clothes a year, viz. one pair of trowsers with a shirt or frock of osnaburgh for summer; and for winter, one pair of trowsers, and a jacket of negro cloth, with a baize shirt and a pair of shoes. Some allowed hats, and some did not; and they were generally, I believe, allowed one blanket in two years. Garments of similar materials were allowed the women."

A Kentucky physician, writing in the Western Medical Reformer, in 1836, on the diseases peculiar to slaves, says.

"They are *imperfectly clothed* both summer and winter."

Mr. Stephen E. Maltby, Inspector of provisions, Skeneateles, N.Y., who resided sometime in Alabama.

"I was at Huntsville, Alabama, in 1818-19, I frequently saw slaves on and around the public square, *with hardly a rag of clothing on them*, and in a *great many* instances with but a single garment both in summer and in winter; generally the only bedding of the slaves was a *blanket*."

Reuben G. Macy, Hudson, N.Y. member of the Society of Friends, who resided in South Carolina, in 1818 and 19.

"Their clothing consisted of a pair of trowsers and jacket, made of 'negro cloth.' The women a petticoat, a very short 'short-gown,' and *nothing else*,

the same kind of cloth; some of the women had an old pair of shoes, but they *generally went barefoot*."

Mr. Lemuel Sapington, of Lancaster, Pa., a native of Maryland, and formerly a slaveholder.

"Their clothing is often made by themselves after night, though sometimes assisted by the old women, who are no longer able to do out-door work; consequently it is harsh and uncomfortable. And I have very frequently seen those who had not attained the age of twelve years *go naked*."

Philemon Bliss, Esq., a lawyer in Elyria, Ohio, who lived in Florida in 1834 and 35.

"It is very common to see the younger class of slaves up to eight or ten *without any clothing*, and most generally the laboring men wear *no shirts* in the warm season. The perfect nudity of the younger slaves is so familiar to the whites of both sexes, that they seem to witness it with perfect indifference. I may add that the aged and feeble often *suffer from cold*."

Richard Macy, a member of the Society of Friends, Hudson, N.Y., who has lived in Georgia.

"For *bedding* each slave was allowed *one blanket*, in which they rolled themselves up. I examined their houses, but could not find any thing like *a bed*."

W.C. Gildersleeve, Esq., Wilkesbarre, Pa., a native of Georgia.

"It is an every day sight to see women as well as men, with no other covering than a *few filthy rags fastened above the hips*, reaching midway to the ankles. *I never knew any kind of covering for the head* given. Children of both sexes, from infancy to ten years are seen in companies on the plantations, *in a state of perfect nudity*. This was so common that the most refined and delicate beheld them unmoved."

Mr. William Leftwich, a native of Virginia, now a member of the Presbyterian Church, in Delhi, Ohio.

"The only bedding of the slaves generally consists of *two old blankets*."

Advertisements like the following from the "New Orleans Bee," May 31, 1837, are common in the southern papers.

"10 DOLLARS REWARD.—Ranaway, the slave SOLOMON, about 28 years of age; BADLY CLOTHED. The above reward will be paid on application to FERNANDEZ & WHITING, No. 20, St. Louis St."

RANAWAY from the subscriber the negress FANNY, always badly dressed, she is about 25 or 26 years old. JOHN MACOIN, 117 S. Ann st.

The Darien (Ga.), Telegraph, of Jan. 24, 1837, in an editorial article, hitting off the aristocracy of the planters, incidentally lets out some secrets, about the usual *clothing* of the slaves. The editor says,— "The planter looks down, with the most sovereign contempt, on the merchant and the storekeeper. He deems himself a lord, because he gets his two or three RAGGED servants, to row him to his plantation every day, that he may inspect the labor of his hands."

The following is an extract from a letter lately received from Rev. C.S. RENSHAW, of Quincy, Illinois.

"I am sorry to be obliged to give more testimony without the *name*. An individual in whom I have great confidence, gave me the following facts. That I am not alone in placing confidence in him, I subjoin a testimonial from Dr. Richard Eells, Deacon of the Congregational Church, of Quincy, and Rev. Mr. Fisher, Baptist Minister of Quincy.

"We have been acquainted with the brother who has communicated to you some facts that fell under his observation, whilst in his native state; he is a professed follower of our Lord, and we have great confidence in him as a man of integrity, discretion, and strict Christian principle. RICHARD EELLS. EZRA FISHER."

Quincy, Jan. 9th, 1839.

TESTIMONY.— "I lived for thirty years in Virginia, and have travelled extensively through Fauquier, Culpepper, Jefferson, Stafford, Albemarle and Charlotte Counties; my remarks apply to these Counties.

"The negro houses are miserably poor, generally they are a shelter from neither the wind, the rain, nor the snow, and the earth is the floor. There are exceptions to this rule, but they are only exceptions; you may sometimes see puncheon floor, but never, or almost never a plank floor. The slaves are generally without *beds or bedsteads*; some few have cribs that they fasten up for themselves in the corner of the hut. Their bed-clothes are a nest of rags thrown upon a crib, or in the corner; sometimes there are three or four families in one small cabin. Where the slaveholders have more than one family, they put them in the same quarter till it is filled, then build another. I have seen exceptions to this, when only one family would occupy a hut, and where were tolerably comfortable bed-clothes.

"Most of the slaves in these counties are *miserably clad*. I have known slaves who went without shoes all winter, perfectly barefoot. The feet of many of them are frozen. As a general fact the planters do not serve out to their slaves, drawers, or any under clothing, or vests, or overcoats. Slaves sometimes, by working at night and on Sundays, get better things than their masters serve to them.

"Whilst these things are true of *field-hands*, it is also true that many slaveholders clothe their *waiters* and coachmen like gentlemen. I do not think there is any difference between the slaves of professing Christians and others; at all events, it is so small as to be scarcely noticeable.

"I have seen men and women at work in the field more than half naked: and more than once in passing, when the overseer was not near, they would stop and draw round them a tattered coat or some ribbons of a skirt to hide their nakedness and shame from the stranger's eye."

Mr. GEORGE W. WESTGATE, a member of the Congregational Church in Quincy, Illinois, who has spent the larger part of twelve years navigating the rivers of the south-western slave states with keel boats, as a trader, gives the following testimony as to the clothing and lodging of the slaves.

"In lower Tennessee, Mississippi and Louisiana, the clothing of the slaves is wretchedly poor; and grows worse as you go south, in the order of the states I have named. The only material is cotton bagging, i.e. bagging in which cotton is *baled*, not bagging made of cotton. In Louisiana, especially in the lower country, I have frequently seen them with nothing but a tattered coat,

not sufficient to hide their nakedness. In winter their clothing seldom serves the purpose of comfort, and frequently not even of decent covering. In Louisiana *the planters never think of serving out shoes to slaves*. In Mississippi they give one pair a year generally. I never saw or heard of an instance of masters allowing them *stockings*. A *small poor blanket is generally the only bed-clothing*, and this they frequently wear in the field when they have not sufficient clothing to hide their nakedness or to keep them warm. Their manner of sleeping varies with the season. In hot weather they stretch themselves anywhere and sleep. As it becomes cool they roll themselves in their blankets, and lay scattered about the cabin. In cold weather they nestle together with their feet towards the fire, promiscuously. As a general fact the earth is their only floor and bed—not one in ten have anything like a bedstead, and then it is a mere bunk put up by themselves."

Mr. GEORGE A. AVERY, an elder in the fourth Congregational Church, Rochester, N.Y., who spent four years in Virginia, says, "The slave children, very commonly of both sexes, up to the ages of eight and ten years, and I think in some instances beyond this age, go in a state of *disgusting* nudity. I have often seen them with their tow shirt (their only article of summer clothing) which, to all human appearance, had not been taken off from the time it was first put on, worn off from the bottom upwards shred by shred, until nothing remained but the straps which passed over their shoulders, and the less exposed portions extending a very little way below the arms, leaving the principal part of the chest, as well as the limbs, entirely uncovered."

SAMUEL ELLISON, a member of the Society of Friends, formerly of Southampton Co., Virginia, now of Marlborough, Stark Co., Ohio, says, "I knew a Methodist who was the owner of a number of slaves. The children of both sexes, belonging to him, under twelve years of age, were *entirely* destitute of clothing. I have seen an old man compelled to labor in the fields, not having rags enough to cover his nakedness."

Rev. H. LYMAN, late pastor of the Free Presbyterian Church, in Buffalo, N.Y., in describing a tour down and up the Mississippi river in the winter of 1832-3, says, "At the wood yards where the boats stop, it is not uncommon to see female slaves employed in carrying wood. Their dress which was quite uniform was provided without any reference to comfort. They had no

covering for their heads; the stuff which constituted the outer garment was sackcloth, similar to that in which brown domestic goods are done up. It was then December, and I thought that in such a dress, and being as they were, without *stockings*, they must suffer from the cold."

Mr. Benjamin Clendenon, Colerain, Lancaster Co., Pa., a member of the Society of Friends, in a recent letter describing a short tour through the northern part of Maryland in the winter of 1836, thus speaks of a place a few miles from Chestertown. "About this place there were a number of slaves; very few, if any, had *either stockings or shoes*; the weather was intensely cold, and the ground covered with snow."

The late Major Stoddard of the United States' artillery, who took possession of Louisiana for the U.S. government, under the cession of 1804, published a book entitled "Sketches of Louisiana," in which, speaking of the planters of Lower Louisiana, he says, "*Few of them allow any clothing to their slaves.*"

The following is an extract from the Will of the late celebrated John Randolph of Virginia.

"To my old and faithful servants, Essex and his wife Hetty, I give and bequeath a pair of strong shoes, a suit of clothes and a blanket each, to be paid them annually; also an annual hat to Essex."

No Virginia slaveholder has ever had a better name as a "kind master," and "good provider" for his slaves, than John Randolph. Essex and Hetty were *favorite* servants, and the memory of the long uncompensated services of those "old and faithful servants," seems to have touched their master's heart. Now as this master was *John Randolph*, and as those servants were "faithful," and favorite servants, advanced in years, and worn out in his service, and as their allowance was, in their master's eyes, of sufficient moment to constitute a paragraph in his last *will and testament*, it is fair to infer that it would be *very liberal*, far better than the ordinary allowance for slaves.

Now we leave the reader to judge what must be the *usual* allowance of clothing to common field slaves in the hands of common masters, when Essex and Hetty, the "old" and "faithful" slaves of John Randolph, were

provided, in his last will and testament, with but *one* suit of clothes annually, with but *one blanket* each for bedding, with no *stockings*, nor *socks*, nor *cloaks*, nor overcoats, nor *handkerchiefs*, nor *towels*, and with no *change* either of under or outside garments!

IV. DWELLINGS.

THE SLAVES ARE WRETCHEDLY SHELTERED AND LODGED.

Mr. Stephen E. Maltby. Inspector of provisions, Skaneateles, N.Y. who has lived in Alabama.

"The huts where the slaves slept, generally contained but *one* apartment, and that *without floor*."

Mr. George A. Avery, elder of the 4th Presbyterian Church, Rochester, N.Y. who lived four years in Virginia.

"Amongst all the negro cabins which I saw in Va., *I cannot call to mind one* in which there was any other floor than the *earth*; any thing that a northern laborer, or mechanic, white or colored, would call a *bed*, nor a solitary *partition*, to separate the sexes."

William Ladd, Esq., Minot, Maine. President of the American Peace Society, formerly a slaveholder in Florida.

"The dwellings of the slaves were palmetto huts, built by themselves of stakes and poles, thatched with the palmetto leaf. The door, when they had any, was generally of the same materials, sometimes boards found on the beach. They had *no floors*, no separate apartments, except the guinea negroes had sometimes a small inclosure for their 'god house.' These huts the slaves built themselves after task and on Sundays."

Rev. Joseph M. Sadd, Pastor Pres. Church, Castile, Greene Co., N.Y., who lived in Missouri five years previous to 1837.

"The slaves live *generally* in *miserable huts*, which are *without floors*, and have a single apartment only, where both sexes are herded promiscuously together."

Mr. George W. Westgate, member of the Congregational Church in Quincy, Illinois, who has spent a number of years in slave states.

"On old plantations, the negro quarters are of frame and clapboards, seldom affording a comfortable shelter from wind or rain; their size varies from 8 by 10, to 10 by 12, feet, and six or eight feet high; sometimes there is a hole cut for a window, but I never saw a sash, or glass in any. In the new country, and in the woods, the quarters are generally built of logs, of similar dimensions."

Mr. Cornelius Johnson, a member of a Christian Church in Farmington, Ohio. Mr. J. lived in Mississippi in 1837-8.

"Their houses were commonly built of logs, sometimes they were framed, often they had no floor, some of them have two apartments, commonly but one; each of those apartments contained a family. Sometimes these families consisted of a man and his wife and children, while in other instances persons of both sexes, were thrown together without any regard to family relationship."

The Western Medical Reformer, in an article on the Cachexia Africana by a Kentucky physician, thus speaks of the huts of the slaves.

"They are *crowded* together in a *small hut*, and sometimes having an imperfect, and sometimes no floor, and seldom raised from the ground, ill ventilated, and surrounded with filth."

Mr. William Leftwich, a native of Virginia, but has resided most of his life in Madison, Co. Alabama.

"The dwellings of the slaves are log huts, from 10 to 12 feet square, often without windows, doors, or floors, they have neither chairs, table, or bedstead."

Reuben L. Macy of Hudson, N.Y. a member of the Religious Society of Friends. He lived in South Carolina in 1818-19.

"The houses for the field slaves were about 14 feet square, built in the coarsest manner, with one room, *without any chimney or flooring, with a hole in the roof to let the smoke out.*"

Mr. Lemuel Sapington of Lancaster, Pa. a native of Maryland, formerly a slaveholder.

"The descriptions generally given of negro quarters, are correct; the quarters are *without floors, and not sufficient to keep off the inclemency of the weather*; they are uncomfortable both in summer and winter."

Rev. John Rankin, a native of Tennessee.

"When they return to their miserable huts at night, they find not there the means of comfortable rest; *but on the cold ground they must lie without covering, and shiver while they slumber.*"

Philemon Bliss, Esq. Elyria, Ohio, who lived in Florida, in 1835.

"The dwellings of the slaves are usually small *open* log huts, with but one apartment, and very generally *without floors.*"

Mr. W.C. Gildersleeve, Wilkesbarre, Pa., a native of Georgia.

"Their huts were generally put up without a nail, frequently without floors, and with a single apartment."

Hon. R.J. Turnbull, of South Carolina, a slaveholder.

"The slaves live in *clay cabins.*"

V. TREATMENT OF THE SICK.

THE SLAVES SUFFER FROM HUMAN NEGLECT WHEN SICK

In proof of this we subjoin the following testimony:

Rev. Dr. CHANNING of Boston, who once resided in Virginia, relates the following fact in his work on slavery, page 163, 1st edition.

"I cannot forget my feelings on visiting a hospital belonging to the plantation of a gentleman *highly esteemed for his virtues*, and whose manners and conversation expressed much *benevolence and conscientiousness*. When I entered with him the hospital, the first object on which my eye fell was a young woman, very ill, probably approaching death. She was stretched on the floor. Her head rested on something like a pillow; but *her body and limbs were extended on the hard boards*. The owner, I doubt not, had at least as much kindness as myself; but he was so

used to see the slaves living without common comforts, that the idea of unkindness in the present instance did not enter his mind."

This *dying* young woman "was *stretched on the floor*"—"her body and limbs extended upon the hard boards,"—and yet her master "was highly esteemed for his virtues," and his general demeanor produced upon Dr. Channing the impression of "benevolence and conscientiousness" If the *sick and dying female* slaves of *such* a master, suffer such barbarous neglect, whose heart does not fail him, at the thought of that inhumanity, exercised by the *majority* of slaveholders, towards their aged, sick, and dying victims.

The following testimony is furnished by SARAH M. GRIMKÉ, a sister of the late Hon. Thomas S. Grimké, of Charleston, South Carolina.

"When the Ladies' Benevolent Society in Charleston, S.C., of which I was a visiting commissioner, first went into operation, we were applied to for the relief of several sick and aged colored persons; one case I particularly remember, of an aged woman who was dreadfully burnt from having fallen into the fire; she was living with some free blacks who had taken her in out of compassion. On inquiry, we found that *nearly all* the colored persons who had solicited aid, were *slaves*, who being no longer able to work for their "owners," were thus inhumanly cast out in their sickness and old age, and must have perished, but for the kindness of their friends.

"I was once visiting a sick slave in whose spiritual welfare peculiar circumstances had led me to be deeply interested. I knew that she had been early seduced from the path of virtue, as nearly all the female slaves are. I knew also that her mistress, though a professor of religion, had never taught her a single precept of Christianity, yet that she had had her severely punished for this departure from them, and that the poor girl was then ill of an incurable disease, occasioned partly by her own misconduct, and partly by the cruel treatment she had received, in a situation that called for tenderness and care. Her heart seemed truly touched with repentance for her sins, and she was inquiring, "What shall I do to be saved?" I was sitting by her as she lay on the floor upon a blanket, and was trying to establish her trembling spirit in the fullness of Jesus, when I heard the voice of her mistress in loud and angry tones, as she approached the door. I read in the countenance of the prostrate sufferer, the terror which she felt at the

prospect of seeing her mistress. I knew my presence would be very unwelcome, but staid hoping that it might restrain, in some measure, the passions of the mistress. In this, however, I was mistaken; she passed me without apparently observing that I was there, and seated herself on the other side of the sick slave. She made no inquiry how she was, but in a tone of anger commenced a tirade of abuse, violently reproaching her with her past misconduct, and telling her in the most unfeeling manner, that eternal destruction awaited her. No word of kindness escaped her. What had then roused her temper I do not know. She continued in this strain several minutes, when I attempted to soften her by remarking, that —— was very ill, and she ought not thus to torment her, and that I believed Jesus had granted her forgiveness. But I might as well have tried to stop the tempest in its career, as to calm the infuriated passions nurtured by the exercise of arbitrary power. She looked at me with ineffable scorn, and continued to pour forth a torrent of abuse and reproach. Her helpless victim listened in terrified silence, until nature could endure no more, when she uttered a wild shriek, and casting on her tormentor a look of unutterable agony, exclaimed, "Oh, mistress, I am dying." This appeal arrested her attention, and she soon left the room, but in the same spirit with which she entered it. The girl survived but a few days, and, I believe, saw her mistress *no more*"

Mr. GEORGE A. AVERY, an elder of a Presbyterian church in Rochester, N.Y., who lived some years in Virginia, gives the following:

"The manner of treating the sick slaves, and especially in *chronic* cases, was to my mind peculiarly revolting. My opportunities for observation in this department were better than in, perhaps, any other, as the friend under whose direction I commenced my medical studies, enjoyed a high reputation as a *surgeon*. I rode considerably with him in his practice, and assisted in the surgical operations and dressings from time to time. In confirmed cases of disease, it was common for the master to place the subject under the care of a physician or surgeon, at whose expense the patient should be kept, and if death ensued to the patient, or the disease was not cured, no compensation was to be made, but if cured a bonus of one, two, or three hundred dollars was to be given. No provision was made against the *barbarity* or *neglect* of the physician, &c. I have seen *fifteen or twenty of these helpless sufferers* crowded together in the true spirit of slaveholding inhumanity, like the "brutes that perish," and driven from time

to time *like* brutes into a common yard, where they had to suffer any and every operation and experiment, which interest, caprice, or professional curiosity might prompt,—unrestrained by law, public sentiment, or the claims of common humanity."

Rev. WILLIAM T. ALLAN, son of Rev. Dr. Allan, a slaveholder, of Huntsville, Alabama, says in a letter now before us:

"Colonel Robert H. Watkins, of Laurence county, Alabama, who owned about three hundred slaves, after employing a physician among them for some time, ceased to do so, alleging as the reason, that it was cheaper to lose a few negroes every year than to pay a physician. This Colonel Watkins was a Presidential elector in 1836."

A.A. GUTHRIE, Esq., elder in the Presbyterian church at Putnam, Muskingum county, Ohio, furnishes the testimony which follows.

"A near female friend of mine in company with another young lady, in attempting to visit a sick woman on Washington's Bottom, Wood county, Virginia, missed the way, and stopping to ask directions of a group of colored children on the outskirts of the plantation of Francis Keen, Sen., they were told to ask 'aunty, in the house.' On entering the hut, says my informant, I beheld such a sight as I hope never to see again; its sole occupant was a female slave of the said Keen—her whole wearing apparel consisted of a frock, made of the coarsest tow cloth, and so scanty, that it could not have been made more tight around her person. In the hut there was neither table, chair, nor chest—a stool and a rude fixture in one corner, were all its furniture. On this last were a little straw and a few old remnants of what had been bedding—all exceedingly filthy.

"The woman thus situated *had been for more than a day in travail*, without any assistance, any nurse, or any kind of proper provision—during the night she said some fellow slave woman would stay with her, and the aforesaid children through the day. From a woman, who was a slave of Keen's at the same time, my informant learned, that this poor woman suffered for three days, and then died—when too late to save her life her master sent assistance. It was understood to be a rule of his, to neglect his women entirely in such times of trial, unless they previously came and informed him, and asked for aid."

Rev. PHINEAS SMITH, of Centreville, N.Y, who has resided four years at the south, says:

"Often when the slaves are sick, their accustomed toil is exacted from them. Physicians are rarely called for their benefit."

Rev. HORACE MOULTON, a minister of the Methodist Episcopal church in Marlborough, Mass., who resided a number of years in Georgia, says:

"Another dark side of slavery is the neglect of the *aged* and *sick*. Many when sick, are suspected by their masters of *feigning* sickness, and are therefore whipped out to work after disease has got fast hold of them; when the masters learn, that they are really sick, they are in many instances left alone in their cabins during work hours; not a few of the slaves are left to die without having one friend to wipe off the sweat of death. When the slaves are sick, the masters do not, as a general thing, employ physicians, but "doctor" them themselves, and their mode of practice in almost all cases is to bleed and give salts. When women are confined they have no physician, but are committed to the care of slave midwives. Slaves complain very little when sick, when they die they are frequently buried at night without much ceremony, and in many instances without any; their coffins are made by nailing together rough boards, frequently with their feet sticking out at the end, and sometimes they are put into the ground without a coffin or box of any kind."

PERSONAL NARRATIVES—PART II.

TESTIMONY OF THE REV. WILLIAM T. ALLAN, LATE OF
ALABAMA.

Mr. ALLAN is a son of the Rev. Dr. Allan, a slaveholder and pastor of the Presbyterian Church at Huntsville, Alabama. He has recently become the pastor of the Presbyterian Church in Chatham, Illinois.

"I was born and have lived most of my life in the slave states, mainly in the village of Huntsville, Alabama, where my parents still reside. I seldom went to a *plantation*, and as my visits were confined almost exclusively to the families of professing Christians, my *personal* knowledge of slavery, was consequently a knowledge of its *fairest* side, (if fairest may be predicated of foul.)

"There was one plantation just opposite my father's house in the suburbs of Huntsville, belonging to Judge Smith, formerly a Senator in Congress from South Carolina, now of Huntsville. The name of his overseer was Tune. I have often seen him flogging the slaves in the field, and have often heard their cries. Sometimes, too, I have met them with the tears streaming down their faces, and the marks of the whip, ('whelks,') on their bare necks and shoulders. Tune was so severe in his treatment, that his employer dismissed him after two or three years, lest, it was said, he should kill off all the slaves. But he was immediately employed by another planter in the neighborhood. The following fact was stated to me by my brother, James M. Allan, now residing at Richmond, Henry county, Illinois, and clerk of the circuit and county courts. Tune became displeased with one of the women who was pregnant, he made her lay down over a log, with her face towards the ground, and beat her so unmercifully, that she was soon after delivered of a *dead child*.

"My brother also stated to me the following, which occurred near my father's house, and within sight and hearing of the academy and public garden. Charles, a fine active negro, who belonged to a bricklayer in Huntsville, exchanged the burning sun of the brickyard to enjoy for a season the pleasant shade of an adjacent mountain. When his master got him back, he tied him by his hands so that his feet could just touch the ground—stripped off his clothes, took a paddle, bored full of holes, and paddled him leisurely all day long. It was two weeks before they could tell

whether he would live or die. Neither of these cases attracted any particular notice in Huntsville.

"While I lived in Huntsville a slave was killed in the mountain near by. The circumstances were these. A white man (James Helton) hunting in the woods, suddenly came upon a black man, and commanded him to stop, the slave kept on running, Helton fired his rifle and the negro was killed.[5]

[Footnote 5: This murder was committed about twelve years since. At that time, James G. Birney, Esq., now Corresponding Secretary of the American Anti-Slavery Society was the Solicitor (prosecuting attorney) for that judicial district. His views and feelings upon the subject of slavery were, even at that period, in advance of the mass of slaveholders, and he determined if possible to bring the murderer to justice. He accordingly drew up an indictment and procured the finding of a true bill against Helton. Helton, meanwhile, moved over the line into the state of Tennessee, and such was the apathy of the community, individual effort proved unavailing; and though the murderer had gone no further than to an adjoining county (where perhaps he still resides) he was never brought to trial.—ED.]

"Mrs. Barr, wife of Rev. H. Barr of Carrollton, Illinois, formerly from Courtland, Alabama, told me last spring, that she has very often stopped her ears that she might not hear the screams of slaves who were under the lash, and that sometimes she has left her house, and retired to a place more distant, in order to get away from their agonizing cries.

"I have often seen groups of slaves on the public squares in Huntsville, who were to be sold at auction, and I have often seen their tears gush forth and their countenances distorted with anguish. A considerable number were generally sold publicly every month.

"The following facts I have just taken down from the lips of Mr. L. Turner, a regular and respectable member of the Second Presbyterian Church in Springfield, our county town. He was born and brought up in Caroline county, Virginia. He says that the slaves are neither considered nor treated as human beings. One of his neighbors whose name was Barr, he says, on one occasion stripped a slave and lacerated his back with a handcard (for

cotton or wool) and then washed it with salt and water, with pepper in it. Mr. Turner *saw* this. He further remarked that he believed there were *many* slaves there in advanced life whose backs had never been well since they began to work.

"He stated that one of his uncles had killed a woman—broke her skull with an ax helve: she had insulted her mistress! No notice was taken of the affair. Mr. T. said, further, that slaves were *frequently murdered*.

"He mentioned the case of one slaveholder, whom he had seen lay his slaves on a large log, which he kept for the purpose, strip them, tie them with the face downward, then have a kettle of hot water brought—take the paddle, made of hard wood, and perforated with holes, dip it into the hot water and strike—before every blow dipping it into the water—every hole at every blow would raise a 'whelk.' This was the usual punishment for *running away*.

"Another slaveholder had a slave who had often run away, and often been severely whipped. After one of his floggings he burnt his master's barn: this so enraged the man, that when he caught him he took a pair of pincers and pulled his toe nails out. The negro then murdered two of his master's children. He was taken after a desperate pursuit, (having been shot through the shoulder) and hung.

"One of Mr. Turner's cousins, was employed as overseer on a large plantation in Mississippi. On a certain morning he called the slaves together, to give some orders. While doing it, a slave came running out of his cabin, having a knife in his hand and eating his breakfast. The overseer seeing him coming with the knife, was somewhat alarmed, and instantly raised his gun and shot him dead. He said afterwards, that he believed the slave was perfectly innocent of any evil intentions, he came out hastily to hear the orders whilst eating. *No* notice was taken of the killing.

"Mr. T. related the whipping habits of one of his uncles in Virginia. He was a wealthy man, had a splendid house and grounds. A tree in his *front yard*, was used as a *whipping post*. When a slave was to be punished, he would frequently invite some of his friends, have a table, cards and wine set out under the shade; he would then flog his slave a little while, and then play cards and drink with his friends, occasionally taunting the slave, giving him

the privilege of confessing such and such things, at his leisure, after a while flog him again, thus keeping it up for hours or half the day, and sometimes all day. This was his *habit*.

"*February 4th.*—Since writing the preceding, I have been to Carrollton, on a visit to my uncle, Rev. Hugh Barr, who was originally from Tennessee, lived 12 or 14 years in Courtland, Lawrence county, Alabama, and moved to Illinois in 1835. In conversation with the family, around the fireside, they stated a multitude of horrid facts, that were perfectly notorious in the neighborhood of Courtland.

"William P. Barr, an intelligent young man, and member of his father's church in Carrollton, stated the following. Visiting at a Mr. Mosely's, near Courtland, William Mosely came in with a bloody knife in his hand, having just stabbed a negro man. The negro was sitting quietly in a house in the village, keeping a woman company who had been left in charge of the house,—when Mosely, passing along, went in and demanded his business there. Probably his answer was not as civil as slaveholding requires, Mosely rushed upon him and stabbed him. The wound laid him up for a season. Mosley was called to no account for it. When he came in with the bloody knife, he said he wished he had killed him.

"John Brown, a slaveholder, and a member of the Presbyterian church in Courtland, Alabama, stated the following a few weeks since, in Carrollton. A man near Courtland, of the name of Thompson, recently shot a negro *woman* through the head; and put the pistol so close that her hair was singed. He did it in consequence of some difficulty in his dealings with her as a concubine. He buried her in a log heap; she was discovered by the buzzards gathering around it.

"William P. Barr stated the following, as facts well known in the neighborhood of Courtland, but not witnessed by himself. Two men, by the name of Wilson, found a fine looking negro man at 'Dandridge's Quarter,' without a pass; and flogged him so that he died in a short time. They were not punished.

"Col. Blocker's overseer attempted to flog a negro—he refused to be flogged; whereupon the overseer seized an axe, and cleft his skull. The Colonel justified it.

"One Jones whipped a woman to death for 'grabbling' a potato hill. He owned 80 or 100 negroes. His own children could not live with him.

"A man in the neighborhood of Courtland, Alabama, by the name of Puryear, was so proverbially cruel that among the negroes he was usually called 'the Devil.' Mrs. Barr, wife of Rev. H. Barr, was at Puryear's house, and saw a negro girl about 13 years old, waiting around the table, with a single garment—and that in cold weather; arms and feet bare—feet wretchedly swollen—arms burnt, and full of sores from exposure. All the negroes under his care made a wretched appearance.

"Col. Robert H. Watkins had a runaway slave, who was called Jim Dragon. Before he was caught the last time, he had been out a year, within a few miles of his master's plantation. He never stole from any one but his master, except when necessity compelled him. He said he had a right to take from his master; and when taken, that he had, whilst out, seen his master a hundred times. Having been whipped, clogged with irons, and yoked, he was set at work in the field. Col. Watkins worked about 300 hands—generally had one negro out hunting runaways. After employing a physician for some time among his negroes, he ceased to do so, alleging as the reason, that it was cheaper to lose a few negroes every year than to pay a physician. He was a Presidential elector in 1836.

"Col. Ben Sherrod, another large planter in that neighborhood, is remarkable for his kindness to his slaves. He said to Rev. Mr. Barr, that he had no doubt he should be rewarded in heaven for his kindness to his slaves; and yet his overseer, Walker, had to sleep with loaded pistols, for fear of assassination. Three of the slaves attempted to kill him once, because of his *treatment of their wives*.

"Old Major Billy Watkins was noted for his severity. I well remember, when he lived in Madison county, to have often heard him yell at his negroes with the most savage fury. He would stand at his house, and watch the slaves picking cotton; and if any of them straitened their backs for a moment, his savage yell would ring, 'bend your backs.'

"Mrs. Barr stated, that Mrs. H——, of Courtland, a member of the Presbyterian church, sent a little negro girl to jail, suspecting that she had attempted to put poison in the water pail. The fact was, that the child had

found a vial, and was playing in the water. This same woman (in high standing too,) told the Rev. Mr. McMillan, that she could 'cut Arthur Tappan's throat from ear to ear.'

"The clothing of slaves is in many cases comfortable, and in many it is far from being so. I have very often seen slaves, whose tattered rags were neither comfortable nor decent.

"Their *huts* are sometimes comfortable, but generally they are miserable *hovels*, where male and female are herded promiscuously together.

"As to the *usual* allowance of food on the plantations in North Alabama, I cannot speak confidently, from *personal* knowledge. There was a slave named Hadley, who was in the habit of visiting my father's slaves occasionally. He had run away several times. His reason was, as he stated, that they would not give him any meat—said he could not work without meat. The last time I saw him, he had quite a heavy iron yoke on his neck, the two prongs twelve or fifteen inches long, extending out over his shoulders and bending upwards.

"*Legal* marriage is unknown among the slaves, they sometimes have a marriage form—generally, however, *none at all*. The pastor of the Presbyterian church in Huntsville, had two families of slaves when I left there. One couple were married by a negro preacher—the man was robbed of his wife a number of months afterwards, by her '*owner*.' The other couple just 'took up together,' without any form of marriage. They are both members of churches—the man a Baptist deacon, sober and correct in his deportment. They have a large family of children—all children of concubinage—living in a minister's family.

"If these statements are deemed of any value by you, in forwarding your glorious enterprize, you are at liberty to use them as you please. The great wrong is *enslaving a man*; all other wrongs are pigmies, compared with that. Facts might be gathered abundantly, to show that it is *slavery itself*, and not cruelties merely, that make slaves unhappy. Even those that are most kindly treated, are generally far from being happy. The slaves in my father's family are almost as kindly treated as *slaves* can be, yet they pant for liberty.

"May the Lord guide you in this great movement. In behalf of the perishing,
Your friend and brother, WILLIAM. T. ALLAN"

NARRATIVE OF MR. WILLIAM LEFTWICH, A NATIVE OF
VIRGINIA.

Mr. Leftwich is a grandson of Gen. Jabez Leftwich, who was for some years a member of Congress from Virginia. Though born in Virginia, he has resided most of his life in Alabama. He now lives in Delhi, Hamilton county, Ohio, near Cincinnati.

As an introduction to his letter, the reader is furnished with the following testimonial to his character, from the Rev. Horace Bushnell, pastor of the Presbyterian church in Delhi. Mr. B. says:

"Mr. Leftwich is a worthy member of this church, and is a young man of sterling integrity and veracity.

H. BUSHNELL."

The following is the letter of Mr. Leftwich, dated Dec. 26, 1838.

"Dear Brother—I am not ranked among the abolitionists, yet I cannot, as a friend of humanity, withhold from the public such facts in relation to the condition of the slaves, as have fallen under my own observation. That I am somewhat acquainted with slavery will be seen, as I narrate some incidents of my own life. My parents were slaveholders, and moved from Virginia to Madison county, Alabama, during my infancy. My mother soon fell a victim to the climate. Being the youngest of the children, I was left in the care of my aged grandfather, who never held a slave, though his sons owned from 90 to 100 during the time I resided with him. As soon as I could carry a hoe, my uncle, by the name of Neely, persuaded my grandfather that I should be placed in his hands, and brought up in habits of industry. I was accordingly placed under his tuition. I left the domestic circle, little dreaming of the horrors that awaited me. My mother's own brother took me to the cotton field, there to learn habits of industry, and to be benefited by his counsels. But the sequel proved, that I was there to feel in my own person, and witness by experience many of the horrors of slavery. Instead of kind admonition, I was to endure the frowns of one, whose sympathies could neither be reached by the prayers and cries of his slaves, nor by the

entreaties and sufferings of a sister's son. Let those who call slaveholders kind, hospitable and humane, mark the course the slaveholder pursues with one born free, whose ancestors fought and bled for liberty; and then say, if they can without a blush of shame, that he who robs the helpless of every *right*, can be truly kind and hospitable.

"In a short time after I was put upon the plantation, there was but little difference between me and the slaves, except being *white*, I ate at the master's table. The slaves were my companions in misery, and I well learned their condition, both in the house and field. Their dwellings are log huts, from ten to twelve feet square; often without windows, doors or floors. They have neither chairs, tables or bedsteads. These huts are occupied by eight, ten or twelve persons each. Their bedding generally consists of two old blankets. Many of them sleep night after night sitting upon their blocks or stools; others sleep in the open air. Our task was appointed, and from dawn till dark all must bend to their work. Their meals were taken without knife or plate, dish or spoon. Their food was corn *pone*, prepared in the coarsest manner, with a small allowance of meat. Their meals in the field were taken from the hands of the carrier, wherever he found them, with no more ceremony than in the feeding of swine. My uncle was his own overseer. For punishing in the field, he preferred a large hickory stick; and wo to him whose work was not done to please him, for the hickory was used upon our heads as remorselessly as if we had been mad dogs. I was often the object of his fury, and shall bear the marks of it on my body till I die. Such was my suffering and degradation, that at the end of five years, I hardly dared to say I was *free*. When thinning cotton, we went mostly on our knees. One day, while thus engaged, my uncle found my row behind; and, by way of admonition, gave me a few blows with his hickory, the marks of which I carried for weeks. Often I followed the example of the fugitive slaves, and betook myself to the mountains; but hunger and fear drove me back, to share with the wretched slave his toil and stripes. But I have talked enough about my own bondage; I will now relate a few facts, showing the condition of the slaves *generally*.

"My uncle wishing to purchase what is called a good 'house wench,' a *trader* in human flesh soon produced a woman, recommending her as highly as ever a jockey did a horse. She was purchased, but on trial was found wanting in the requisite qualifications. She then fell a victim to the

disappointed rage of my uncle; innocent or guilty, she suffered greatly from his fury. He used to tie her to a peach tree in the yard, and whip her till there was no sound place to lay another stroke, and repeat it so often that her back was kept continually sore. Whipping the females around the legs, was a favorite mode of punishment with him. They must stand and hold up their clothes, while he plied his hickory. He did not, like some of his neighbors, keep a pack of hounds for hunting runaway negroes, but he kept one dog for that purpose, and when he came up with a runaway, it would have been death to attempt to fly, and it was nearly so to stand. Sometimes, when my uncle attempted to whip the slaves, the dog would rush upon them and relieve them of their rags, if not of their flesh. One object of my uncle's special hate was "Jerry," a slave of a proud spirit. He defied all the curses, rage and stripes of his tyrant. Though he was often overpowered—for my uncle would frequently wear out his stick upon his head—yet he would never submit. As he was not expert in picking cotton, he would sometimes run away in the fall, to escape abuse. At one time, after an absence of some months, he was arrested and brought back. As is customary, he was stripped, tied to a log, and the cow-skin applied to his naked body till his master was exhausted. Then a large log chain was fastened around one ankle, passed up his back, over his shoulders, then across his breast, and fastened under his arm. In this condition he was forced to perform his daily task. Add to this he was chained each night, and compelled to chop wood every Sabbath, to make up lost time. After being thus manacled for some months, he was released—but his spirit was unsubdued. Soon after, his master, in a paroxysm of rage, fell upon him, wore out his staff upon his head, loaded him again with chains, and after a month, sold him farther south. Another slave, by the name of Mince, who was a man of great strength, purloined some bacon on a Christmas eve. It was missed in the morning, and he being absent, was of course suspected. On returning home, my uncle commanded him to come to him, but he refused. The master strove in vain to lay hands on him; in vain he ordered his slaves to seize him—they dared not. At length the master hurled a stone at his head sufficient to have felled a bullock—but he did not heed it. At that instant my aunt sprang forward, and presenting the gun to my uncle, exclaimed, 'Shoot him! shoot him !' He made the attempt, but the gun missed fire, and Mince fled. He was taken eight or ten months after while crossing the Ohio. When brought back, the master, and an overseer on another plantation, took him to

the mountain and punished him to their satisfaction in secret; after which he was loaded with chains and set to his task.

"I here spent nearly all my life in the midst of slavery. From being the son of a slaveholder, I descended to the condition of a slave, and from that condition I rose (if you please to call it so,) to the station of a '*driver*.' I have lived in Alabama, Tennessee, and Kentucky; and I *know* the condition of the slaves to be that of unmixed wretchedness and degradation. And on the part of slaveholders, there is cruelty *untold*. The labor of the slave is constant toil, wrung out by fear. Their food is scanty, and taken without comfort. Their clothes answer the purposes neither of comfort nor decency. They are not allowed to read or write. Whether they may worship God or not, depends on the will of the master. The young children, until they can work, often go naked during the warm weather. I could spend months in detailing the sufferings, degradation and cruelty inflicted upon slaves. But my soul sickens at the remembrance of these things."

TESTIMONY OF MR. LEMUEL SAPINGTON, A NATIVE OF MARYLAND.

Mr. Sapington, is a repentant "soul driver" or slave trader, now a citizen of Lancaster, Pa. He gives the following testimony in a letter dated, Jan. 21, 1839.

"I was born in Maryland, afterwards moved to Virginia, where I commenced the business of farming and trafficking in slaves. In my neighborhood the slaves were 'quartered.' The description generally given of negro quarters is correct. The quarters are without floors, and not sufficient to keep off the inclemency of the weather, they are uncomfortable both in summer and winter. The food there consists of potatoes, pork, and corn, which were given to them daily, by weight and measure. The sexes were huddled together promiscuously. Their clothing is made by themselves after night, though sometimes assisted by the old women who are no longer able to do out door work, consequently it is harsh and uncomfortable. I have frequently seen those of both sexes who have not attained the age of twelve years go naked. Their punishments are invariably cruel. For the slightest offence, such as taking a hen's egg, I have seen them stripped and suspended by their hands, their feet tied together, a fence rail of ordinary

size placed between their ankles, and then most cruelly whipped, until, from head to foot, they were completely lacerated, a pickle made for the purpose of salt and water, would then be applied by a fellow-slave, for the purpose of healing the wounds as well as giving pain. Then taken down and without the least respite sent to work with their hoe.

"Pursuing my assumed right of driving souls, I went to the Southern part of Virginia for the purpose of trafficking in slaves. In that part of the state, the cruelties practised upon the slaves, are far greater than where I lived. The punishments there often resulted in death to the slave. There was no law for the negro, but that of the overseer's whip. In that part of the country, the slaves receive nothing for food, but corn in the ear, which has to be prepared for baking after working hours, by grinding it with a hand-mill. This they take to the fields with them, and prepare it for eating, by holding it on their hoes, over a fire made by a stump. Among the gangs, are often young women, who bring their children to the fields, and lay them in a fence corner, while they are at work, only being permitted to nurse them at the option of the overseer. When a child is three weeks old, a woman is considered in working order. I have seen a woman, with her young child strapped to her back, laboring the whole day, beside a man, perhaps the father of the child, and he not being permitted to give her any assistance, himself being under the whip. The uncommon humanity of the driver allowing her the comfort of doing so. I was then selling a drove of slaves, which I had brought by water from Baltimore, my conscience not allowing me to drive, as was generally the case uniting the slaves by collars and chains, and thus driving them under the whip. About that time an unaccountable something, which I now know was an interposition of Providence, prevented me from prosecuting any farther this unholy traffic; but though I had quitted it, I still continued to live in a slave state, witnessing every day its evil effects upon my fellow beings. Among which was a heart-rending scene that took place in my father's house, which led me to leave a slave state, as well as all the imaginary comforts arising from slavery. On preparing for my removal to the state of Pennsylvania, it became necessary for me to go to Louisville, in Kentucky, where, if possible, I became more horrified with the impositions practiced upon the negro than before. There a slave was sold to go farther south, and was handcuffed for the purpose of keeping him secure. But choosing death rather

than slavery, he jumped overboard and was drowned. When I returned four weeks afterwards his body, that had floated three miles below, was yet unburied. One fact; it is impossible for a person to pass through a slave state, if he has eyes open, without beholding every day cruelties repugnant to humanity.

Respectfully Yours,

LEMUEL SAPINGTON.

TESTIMONY OF MRS. NANCY LOWRY, A NATIVE OF KENTUCKY.

Mrs. Lory, is a member of the non-conformist church in Osnaburg, Stark County, Ohio, she is a native of Kentucky. We have received from her the following testimony.

"I resided in the family of Reuben Long, the principal part of the time, from seven to twenty-two years of age. Mr. Long had 16 slaves, among whom were three who were treated with severity, although Mr. Long was thought to be a very human master. These three, namely John, Ned, and James, had wives; John and Ned had theirs at some distance, but James had his with him. All three died a premature death, and it was generally believed by his neighbors, that extreme whipping was the cause. I believe so too. Ned died about the age of 25 and John 34 or 35. The cause of their flogging was commonly staying a little over the time, with their wives. Mr. Long would tie them up by the wrist, so high that their toes would just touch the ground, and then with a cow-hide lay the lash upon the naked back, until he was exhausted, when he would sit down and rest. As soon as he had rested sufficiently, he would ply the cow-hide again, thus he would continue until the whole back of the poor victim was lacerated into one uniform coat of blood. Yet he was a strict professor of the Christian religion, in the southern church. I frequently washed the wounds of John, with salt water, to prevent putrefaction. This was the usual course pursued after a severe flogging; their backs would be full of gashes, so deep the I could almost lay my finger in them. They were generally laid up after the flogging for several days. The last flogging Ned got, he was confined to the bed, which he never left till he was carried to his grave. During John's confinement in his last sickness on one occasion while attending on him, he exclaimed, 'oh, Nancy, Miss Nancy, I haven't much longer in this world, I feel as if my whole body inside and all my bones were beaten into a jelly.' Soon after he died. John and Ned were both professors of religion.

"John Ruffner, a slaveholder, had one slave named Pincy, whom he as well as Mrs. Ruffner would often flog very severely. I frequently saw Mrs.

Ruffner flog her with the broom, shovel, or any thing she could seize in her rage. She would knock her down and then kick and stamp her most unmercifully, until she would be apparently so lifeless, that I more than once thought she would never recover. Often Pincy would try to shelter herself from the blows of her mistress, by creeping under the bed, from which Mrs. Ruffner would draw her by the feet, and then stamp and leap on her body, till her breath would be gone. Often Pincy, would cry, 'Oh Missee, don't kill me!' 'Oh Lord, don't kill me!' 'For God's sake don't kill me!' But Mrs. Ruffner would beat and stamp away, with all the venom of a demon. The cause of Pincy's flogging was, not working enough, or making some mistake in baking, &c. &c. Many a night Pincy had to lie on the bare floor, by the side of the cradle, rocking the baby of her mistress, and if she would fall asleep, and suffer the child to cry, so as to waken Mrs. Ruffner, she would be sure to receive a flogging."

TESTIMONY OF MR. WM. C. GILDERSLEEVE, A NATIVE OF GEORGIA

MR. W.C. GILDERSLEEVE, a native of Georgia, is an elder of the Presbyterian Church at Wilkesbarre, Pa.

*"Acts of cruelty, without number, fell under my observation while I lived in Georgia. I will mention but one. A slave of a Mr. Pinkney, on his way with a wagon to Savannah, 'camped' for the night by the road side. That night, the nearest hen-roost was robbed. On his return, the hen-roost was again visited, and the fowl counted one less in the morning. The oldest son, with some attendants made search, and came upon the poor fellow, in the act of dressing his spoil. He was too nimble for them, and made his retreat good into a dense swamp. When much effort to start him from his hiding place had proved unsuccessful, it was resolved to lay an ambush for him, some distance ahead. The wagon, meantime, was in charge of a lad, who accompanied the teamster as an assistant. The little boy lay still till nearly night, (in the hope probably that the teamster would return,) when he started with his wagon. After travelling some distance, the lost one made his appearance, when the ambush sprang upon him. The poor fellow was conducted back to the plantation. He expected little mercy. He begged for himself, in the most suplicating manner, 'pray massa give me 100 lashes and let me go.' He was then tied by the hands, to a limb of a large mulberry tree, which grew in the yard, so that his feet were raised a few inches from the ground, while a *sharpened stick* was driven underneath that he might rest his weight on it, or swing by his hands. In this condition 100 lashes were laid on his bare body. I stood by and witnessed the whole, without as I recollect feeling the least compassion. So hardening is the influence of slavery, that it very much destroys feeling for the slave."*

TESTIMONY OF MR. HIRAM WHITE—A NATIVE OF NORTH CAROLINA

Mr. WHITE resided thirty-two years in Chatham county, North Carolina, and is now a member of the Baptist Church, at Otter Creek Prairie, Illinois.

About the 20th December 1830, a report was raised that the slaves in Chatham county, North Carolina, were going to rise on Christmas day, in consequence of which a considerable commotion ensued among the inhabitants; orders were given by the Governor to the militia captains, to appoint patrolling captains in each district, and orders were given for every man subject to military duty to patrol as their captains should direct. I went two nights in succession, and after that refused to patrol at all. The reason why I refused was this, orders were given to search every negro house for books or prints of any kind, and *Bibles* and *Hymn books* were particularly mentioned. And should we find any, our orders were to inflict punishment by whipping the slave until he *informed who* gave them to him, or how they came by them.

As regards the comforts of the slaves in the vicinity of my residence, I can say they had nothing that would bear that name. It is true, the slaves in general, of a good crop year, were tolerably well fed, but of a bad crop year, they were, as a general thing, cut short of their allowance. Their houses were pole cabins, without loft or floor. Their beds were made of what is there called "broom-straw." The men more commonly sleep on benches. Their clothing would compare well with their lodging. Whipping was common. It was hardly possible for a man with a common pair of ears, if he was out of his house but a short time on Monday mornings, to miss of hearing the sound of the lash, and the cries of the sufferers pleading with their masters to desist. These scenes were more common throughout the time of my residence there, from 1799 to 1831.

Mr. Hedding of Chatham county, held a slave woman. I traveled past Heddings as often as once in two weeks during the winter of 1828, and always saw her clad in a single cotton dress, sleeves came half way to the

elbow, and in order to prevent her running away, a child, supposed to be about seven years of age, was connected with her by a long chain fastened round her neck, and in this situation she was compelled all the day to grub up the roots of shrubs and sapplings to prepare ground for the plough. It is not uncommon for slaves to make up on Sundays what they are not able to perform through the week of their tasks.

At the time of the rumored insurrection above named, Chatham jail was filled with slaves who were said to have been concerned in the plot. Without the least evidence of it, they were punished in divers ways; some were whipped, some had their *thumbs screwed in a vice* to make them confess, but no proof satisfactory was ever obtained that the negroes had ever thought of an insurrection, nor did any so far as I could learn, acknowledge that an insurrection had ever been projected. From this time forth, the slaves were prohibited from assembling together for the worship of God, and many of those who had previously been authorized to preach the gospel were prohibited.

Amalgamation was common. There was scarce a family of slaves that had females of mature age where there were not some mulatto children.

HIRAM WHITE

Otter Creek Prairie, Jan. 22, 1839.

TESTIMONY OF MR. JOHN M. NELSON—A NATIVE OF VIRGINIA.

Extract of a letter, dated January 3, 1839, from John M. Nelson, Esq., of Hillsborough. Mr. Nelson removed from Virginia to Highland county, Ohio, many years since, where he is extensively known and respected.

I was born and raised in Augusta county, Virginia; my father was an elder in the Presbyterian Church, and was "owner" of about twenty slaves; he was what was generally termed a "good master." His slaves were generally tolerably well fed and clothed, and not over worked, they were sometimes permitted to attend church, and called in to family worship; few of them, however, availed themselves of these privileges. On *some occasions* I have seen him whip them severely, particularly for the crime of trying to obtain their liberty, or for what was called, "running away." For *this* they were scourged more severely than for any thing else. After they have been retaken, I have seen them stripped naked and suspended by the hands, sometimes to a tree, sometimes to a post, until their toes barely touched the ground, and whipped with a cowhide until the blood dripped from their backs. A boy named Jack, particularly, I have seen served in this way more than once. When I was quite a child, I recollect it grieved me very much to see one *tied up* to be whipped, and I used to intercede with tears in their behalf, and mingle my cries with theirs, and feel almost willing to take part of the punishment; I have been severely rebuked by my father for this kind of sympathy. Yet, such is the hardening nature of such scenes, that from this kind of commiseration for the suffering slave, I became so blunted that I could not only witness their stripes with composure, but *myself* inflict them, and that without remorse. One case I have often looked back to with sorrow and contrition, particularly since I have been convinced that "negroes are men." When I was perhaps fourteen or fifteen years of age, I undertook to correct a young fellow named Ned, for some supposed offence; I think it was leaving a bridle out of its proper place; he being larger and stronger than myself took hold of my arms and held me, in order to prevent my striking him; this I considered the height of insolence, and cried for help,

when my father and mother both came running to my rescue. My father stripped and tied him, and took him into the orchard, where switches were plenty, and directed me to whip him; when one switch wore out he supplied me with others. After I had whipped him a while, he fell on his knees to implore forgiveness, and I kicked him in the face; my father said, "don't kick him, but whip him;" this I did until his back was literally covered with *welts*. I know I have repented, and trust I have obtained pardon for these things.

My father owned a woman, (we used to call aunt Grace,) she was purchased in Old Virginia. She has told me that her old master, in his *will*, gave her her freedom, but at his death, his sons had sold her to my father: when he bought her she manifested some unwillingness to go with him, when she was put in irons and taken by force. This was before I was born; but I remember to have seen the irons, and was told that was what they had been used for. Aunt Grace is still living, and must be between seventy and eighty years of age; she has, for the last forty years, been an exemplary Christian. When I was a youth I took some pains to learn her to read; this is now a great consolation to her. Since age and infirmity have rendered her of little value to her "owners," she is permitted to read as much as she pleases; this she can do, with the aid of glasses, in the old family Bible, which is almost the only book she has ever looked into. This with some little mending for the black children, is all she does; she is still held as a slave. I well remember what a *heart-rending scene* there was in the family when *my father sold her husband*; this was, I suppose, thirty-five years ago. And yet my father was considered one of the best of masters. I know of few who were better, but of *many* who were worse.

The last time I saw my father, which was in the fall of 1832, he promised me that he would free all his slaves at his death. He died however without doing it; and I have understood since, that he omitted it, through the influence of Rev. Dr. Speece, a Presbyterian minister, who lived in the family, and was a *warm friend of the Colonization Society*.

About the year 1809 or 10, I became a student of Rev. George Bourne; he was the first abolitionist I had ever seen, and the first I had ever heard pray or plead for the oppressed, which gave me the first misgivings about the *innocence* of slaveholding. I received impressions from Mr. Bourne which I

could not get rid of,[[6](#)] and determined in my own mind that when I settled in life, it should be in a free state; this determination I carried into effect in 1813, when I removed to this place, which I supposed at that time, to be all the opposition to slavery that was necessary, but the moment I became convinced that all slaveholding was in itself *sinful*, I became an abolitionist, which was about four years ago.

[Footnote [6](#): Mr. Bourne resided seven years in Virginia, "in perils among false brethren; fiercely persecuted for his faithful testimony against slavery. More than twenty years since he published a work entitled 'The Book and Slavery irreconcilable.'"]

TESTIMONY OF ANGELINA GRIMKÉ WELD.

Mrs. Weld is the youngest daughter of the late Judge Grimké, of the Supreme Court of South Carolina, and a sister of the late Hon. Thomas S. Grimké, of Charleston.

Fort Lee, Bergen Co., New Jersey, Fourth month 6th, 1839.

I sit down to comply with thy request, preferred in the name of the Executive Committee of the American Anti-Slavery Society. The responsibility laid upon me by such a request, leaves me no option. While I live, and slavery lives, I *must* testify against it. If I should hold my peace, "the stone would cry out of the wall, and the beam out of the timber would answer it." But though I feel a necessity upon me, and "a woe unto me," if I withhold my testimony, I give it with a heavy heart. My flesh crieth out, "if it be possible, let *this* cup pass from me;" but, "Father, *thy* will be done," is, I trust, the breathing of my spirit. Oh, the slain of the daughter of my people! they lie in all the ways; their tears fall as the rain, and are their meat day and night; their blood runneth down like water; their plundered hearths are desolate; they weep for their husbands and children, because they are not; and the proud waves do continually go over them, while no eye pitieth, and no man careth for their souls.

But it is not alone for the sake of my poor brothers and sisters in bonds, or for the cause of truth, and righteousness, and humanity, that I testify; the deep yearnings of affection for the mother that bore me, who is still a slaveholder, both in fact and in heart; for my brothers and sisters, (a large family circle,) and for my numerous other slaveholding kindred in South Carolina, constrain me to speak: for even were slavery no curse to its victims, the exercise of arbitrary power works such fearful ruin upon the hearts of *slaveholders*, that I should feel impelled to labor and pray for its overthrow with my last energies and latest breath.

I think it important to premise, that I have seen almost nothing of slavery on *plantations*. My testimony will have respect exclusively to the treatment of "*house-servants*," and chiefly those belonging to the first families in the city

of Charleston, both in the religious and in the fashionable world. And here let me say, that the treatment of *plantation* slaves cannot be fully known, except by the poor sufferers themselves, and their drivers and overseers. In a multitude of instances, even the master can know very little of the actual condition of his own field-slaves, and his wife and daughters far less. A few facts concerning my own family will show this. Our permanent residence was in Charleston; our country-seat (Bellemont,) was 200 miles distant, in the north-western part of the state; where, for some years, our family spent a few months annually. Our *plantation* was three miles from this family mansion. There, all the field-slaves lived and worked. Occasionally, once a month, perhaps, some of the family would ride over to the plantation, but I never visited the *fields where the slaves were at work*, and knew almost nothing of their condition; but this I do know, that the overseers who had charge of them, were generally unprincipled and intemperate men. But I rejoice to know, that the general treatment of slaves in that region of country, was far milder than on the plantations in the lower country.

Throughout all the eastern and middle portions of the state, the planters very rarely reside permanently on their plantations. They have almost invariably *two residences*, and spend less than half the year on their estates. Even while spending a few months on them, politics, field-sports, races, speculations, journeys, visits, company, literary pursuits, &c., absorb so much of their time, that they must, to a considerable extent, take the condition of their slaves *on trust*, from the reports of their overseers. I make this statement, because these slaveholders (the wealthier class,) are, I believe, almost the only ones who visit the north with their families;—and northern opinions of slavery are based chiefly on their testimony.

But not to dwell on preliminaries, I wish to record my testimony to the faithfulness and accuracy with which my beloved sister, Sarah M. Grimké, has, in her 'narrative and testimony,' on a preceding page, described the condition of the slaves, and the effect upon the hearts of slaveholders, (even the best,) caused by the exercise of unlimited power over moral agents. Of the *particular acts* which she has stated, I have no personal knowledge, as they occurred before my remembrance; but of the spirit that prompted them, and that constantly displays itself in scenes of similar horror, the recollections of my childhood, and the effaceless imprint upon my riper years, with the breaking of my heart-strings, when, finding that I was

powerless to shield the victims, I tore myself from my home and friends, and became an exile among strangers—all these throng around me as witnesses, and their testimony is graven on my memory with a pen of fire.

Why I did not become totally hardened, under the daily operation of this system, God only knows; in deep solemnity and gratitude, I say, it was the *Lord's* doing, and marvellous in mine eyes. Even before my heart was touched with the love of Christ, I used to say, "Oh that I had the wings of a dove, that I might flee away and be at rest;" for I felt that there could be no rest for me in the midst of such outrages and pollutions. And yet I saw *nothing* of slavery in its most vulgar and repulsive forms. I saw it in the city, among the fashionable and the honorable, where it was garnished by refinement, and decked out for show. A few *facts* will unfold the state of society in the circle with which I was familiar far better than any general assertions I can make.

I will first introduce the reader to a woman of the highest respectability—one who was foremost in every benevolent enterprise, and stood for many years, I may say, at the *head* of the fashionable Elite of the city of Charleston, and afterwards at the head of the moral and religious female society there. It was after she had made a profession of religion, and retired from the fashionable world, that I knew her; therefore I will present her in her religious character. This lady used to keep cowhides, or small paddles, (called 'pancake sticks,') in four different apartments in her house; so that when she wished to punish, or to have punished, any of her slaves, she might not have the trouble of sending for an instrument of torture. For many years, one or other, and *often* more of her slaves, were flogged *every day*; particularly the young slaves about the house, whose faces were slapped, or their hands beat with the 'pancake stick; for every trifling offence—and often for no fault at all. But the floggings were not all; the scolding, and abuse daily heaped upon them all, were worse: 'fools' and 'liars,' 'sluts' and 'husseys,' 'hypocrites' and 'good-for-nothing creatures'; were the common epithets with which her mouth was filled, when addressing her slaves, adults as well as children. Very often she would take a position at her window, in an upper story, and scold at her slaves while working in the garden, at some distance from the house, (a large yard intervening,) and occasionally order a flogging. I have known her thus on the watch, scolding for more than an hour at a time, in so loud a voice that the whole

neighborhood could hear her; and this without the least apparent feeling of shame. Indeed, it was no disgrace among slaveholders, and did not in the least injure her standing, either as a lady or a Christian, in the aristocratic circle in which she moved. After the 'revival' in Charleston, in 1825, she opened her house to social prayer-meetings. The room in which they were held in the evening, and where the voice of prayer was heard around the family altar, and where she herself retired for private devotion thrice each day, was the very place in which, when her slaves were to be whipped with the cowhide, they were taken to receive the infliction; and the wail of the sufferer would be heard, where, perhaps only a few hours previous, rose the voices of prayer and praise. This mistress would occasionally send her slaves, male and female, to the Charleston work-house to be punished. One poor girl, whom she sent there to be flogged, and who was accordingly stripped *naked* and whipped, showed me the deep gashes on her back—I might have laid my whole finger in them—*large pieces of flesh had actually been cut out by the torturing lash*. She sent another female slave there, to be imprisoned and worked on the tread-mill. This girl was confined several days, and forced to work the mill while in a state of suffering from another cause. For ten days or two weeks after her return, she was lame, from the violent exertion necessary to enable her to keep the step on the machine. She spoke to me with intense feeling of this outrage upon her, as a *woman*. Her men servants were sometimes flogged there; and so exceedingly offensive has been the putrid flesh of their lacerated backs, for days after the infliction, that they would be kept out of the house—the smell arising from their wounds being too horrible to be endured. They were always stiff and sore for some days, and not in a condition to be seen by visitors.

This professedly Christian woman was a most awful illustration of the ruinous influence of arbitrary power upon the temper—her bursts of passion upon the heads of her victims were dreaded even by her own children, and very often, all the pleasure of social intercourse around the domestic board, was destroyed by her ordering the cook into her presence, and storming at him, when the dinner or breakfast was not prepared to her taste, and in the presence of all her children, commanding the waiter to slap his face. *Fault-finding*, was with her the constant accompaniment of every meal, and banished that peace which should hover around the social board, and smile

on every face. It was common for her to order brothers to whip their own sisters, and sisters their own brothers, and yet no woman visited among the poor more than she did, or gave more liberally to relieve their wants. This may seem perfectly unaccountable to a northerner, but these seeming contradictions vanish when we consider that over *them* she possessed no arbitrary power, they were always presented to her mind as unfortunate sufferers, towards whom her sympathies most freely flowed; she was ever ready to wipe the tears from *their* eyes, and open wide her purse for *their* relief, but the others were her *vassals*, thrust down by public opinion beneath her feet, to be at her beck and call, ever ready to serve in all humility, her, whom God in his providence had set over them—it was their *duty* to abide in abject submission, and hers to *compel* them to do so—it was *thus that she reasoned*. Except at family prayers, none were permitted to *sit* in her presence, but the seamstresses and waiting maids, and they, however delicate might be their circumstances, were forced to sit upon low stools, without backs, that they might be constantly reminded of their inferiority. A slave who waited in the house, was guilty on a particular occasion of going to visit his wife, and kept dinner waiting a little, (his wife was the slave of a lady who lived at a little distance.) When the family sat down to the table, the mistress began to scold the waiter for the offence—he attempted to excuse himself—she ordered him to hold his tongue—he ventured another apology; her son then rose from the table in a rage, and beat the face and ears of the waiter so dreadfully that the blood gushed from his mouth, and nose, and ears. This mistress was a *professor of religion*; her daughter who related the circumstance, was a *fellow member* of the Presbyterian church *with the poor outraged slave*—instead of feeling indignation at this outrageous abuse of her brother in the church, she justified the deed, and said "he got just what he deserved." I solemnly believe this to be a true picture of *slaveholding religion*.

The following is another illustration of it:

A mistress in Charleston sent a grey headed female slave to the workhouse, and had her severely flogged. The poor old woman went to an acquaintance of mine and begged her to buy her, and told her how cruelly she had been whipped. My friend examined her *lacerated back*, and out of compassion did purchase her. The circumstance was mentioned to one of the former owner's relatives, who asked her if it were true. The mistress told her it was,

and said that she had made the severe whipping of this aged woman a *subject of prayer*, and that she believed she had done right to have it inflicted upon her. The last 'owner' of the poor old slave, said she, had no fault to find with her as a servant.

I remember very well that when I was a child, our next door neighbor whipped a young woman so brutally, that in order to escape his blows she rushed through the drawing-room window in the second story, and fell upon the street pavement below and broke her hip. This circumstance produced no excitement or inquiry.

The following circumstance occurred in Charleston, in 1828:

A slaveholder, after flogging a little girl about thirteen years old, set her on a table with her feet fastened in a pair of stocks. He then locked the door and took out the key. When the door was opened she was found dead, having fallen from the table. When I asked a prominent lawyer, who belonged to one of the first families in the State, whether the murderer of this helpless child could not be indicted, he coolly replied, that the slave was Mr. ——'s property, and if he chose to suffer the *loss*, no one else had any thing to do with it. The loss of *human life*, the distress of the parents and other relatives of the little girl, seemed utterly out of his thoughts: it was the loss of *property* only that presented itself to his mind.

I knew a gentleman of great benevolence and generosity of character, so essentially to injure the eye of a little boy, about ten years old, as to destroy its sight, by the blow of a cowhide, inflicted whilst he was whipping him. [7] I have heard the same individual speak of "breaking down the spirit of a slave under the lash" as perfectly right.

[Footnote 7: The Jewish law would have set this servant free, for his eye's sake, but he was held in slavery and sold from hand to hand, although, besides this title to his liberty according to Jewish law, he was a *mulatto*, and therefore free under the Constitution of the United States, in whose preamble our fathers declare that they established it expressly to "secure the blessings of *liberty* to themselves and *their posterity*."—Ed.]

I also know that an aged slave of his, (by marriage,) was allowed to get a scanty and precarious subsistence, by begging in the streets of Charleston—he was too old to work, and therefore *his allowance was stopped*, and he was turned out to make his living by begging.

When I was about thirteen years old, I attended a seminary, in Charleston, which was superintended by a man and his wife of superior education. They had under their instruction the daughters of nearly all the aristocracy. Their cruelty to their slaves, both male and female, I can never forget. I remember one day there was called into the school room to open a window, a boy whose head had been shaved in order to disgrace him, and he had been so dreadfully whipped that he could hardly walk. So horrible was the impression produced upon my mind by his heart-broken countenance and crippled person that I fainted away. The sad and ghastly countenance of one of their female mulatto slaves who used to sit on a low stool at her sewing in the piazza, is now fresh before me. She often told me, secretly, how cruelly she was whipped when they sent her to the work house. I had known so much of the terrible scourgings inflicted in that house of blood, that when I was once obliged to pass it, the very sight smote me with such horror that my limbs could hardly sustain me. I felt as if I was passing the precincts of hell. A friend of mine who lived in the neighborhood, told me she often heard the screams of the slaves under their torture.

I once heard a physician of a high family, and of great respectability in his profession, say, that when he sent his slaves to the work-house to be flogged, he always went to see it done, that he might be sure they were properly, i.e. *severely* whipped. He also related the following circumstance in my presence. He had sent a youth of about eighteen to this horrible place to be whipped and *afterwards* to be worked upon the treadmill. From not keeping the step, which probably he COULD NOT do, in consequence of the lacerated state of his body; his arm got terribly torn, from the shoulder to the wrist. This physician said, he went every day to attend to it himself, in order that he might use those restoratives, which *would inflict the greatest possible pain*. This poor boy, after being imprisoned there for some weeks, was then brought home, and compelled to wear iron clogs on his ankles for one or two months. I saw him with those irons on one day when I was at the house. This man was, when young, remarkable in the fashionable

world for his elegant and fascinating manners, but the exercise of the slaveholder's power has thrown the fierce air of tyranny even over these.

I heard another man of equally high standing say, that he believed he suffered far more than his waiter did whenever he flogged him for he felt the *exertion* for days afterward, but he could not let his servant go on in the neglect of his business, it was *his duty* to chastise him. "His duty" to flog this boy of seventeen so severely that he felt *the exertion* for days after! and yet he never felt it to be his duty to instruct him, or have him instructed, even in the common principles of morality. I heard the mother of this man say it would be no surprise to her, if he killed a slave some day, for, that, when transported with passion he did not seem to care what he did. He once broke a *large* stick over the back of a slave and at another time the ivory butt-end of a long coach whip over the *head* of another. This last was attacked with epileptic fits some months after, and has ever since been subject to them, and occasionally to violent fits of insanity.

Southern mistresses sometimes flog their slaves themselves though generally one slave is compelled to flog another. Whilst staying at a friend's house some years ago, I one day saw the mistress with a cow-hide in her hand, and heard her scolding in an under tone, her waiting man, who was about twenty-five years old. Whether she actually inflicted the blows I do not know, for I hastened out of sight and hearing. It was not the first time I had seen a mistress thus engaged. I knew she was a cruel mistress, and had heard her daughters disputing, whether their mother did right or wrong, to send the slave *children*, (whom she sent out to sweep chimneys) to the work house to be whipped if they did not bring in their wages regularly. This woman moved in the most fashionable circle in Charleston. The income of this family was derived mostly from the hire of their slaves, about one hundred in number. Their luxuries were blood-bought luxuries indeed. And yet what stranger would ever have inferred their cruelties from the courteous reception and bland manners of the parlor. Every thing cruel and revolting is carefully concealed from strangers, especially those from the north. Take an instance. I have known the master and mistress of a family send to their friends to *borrow* servants to wait on company, because their own slaves had been so cruelly flogged in the work house, that they could not walk without limping at every step, and their putrified flesh emitted such an intolerable smell that they were not fit to be in the presence of

company. How can northerners know these things when they are hospitably received at southern tables and firesides? I repeat it, no one who has not been an *integral part* of a slaveholding community, can have any idea of its abominations. It is a whited sepulchre full of dead men's bones and all uncleanness. Blessed be God, the Angel of *Truth* has descended and rolled away the stone from the mouth of the sepulchre, and sits upon it. The abominations so long hidden are now brought forth before all Israel and the sun. Yes, the Angel of Truth *sits upon this stone*, and it can never be rolled back again.

The utter disregard of the comfort of the slaves, in *little* things, can scarcely be conceived by those who have not been a *component part* of slaveholding communities. Take a few particulars out of hundreds that might be named. In South Carolina musketoes swarm in myriads, more than half the year—they are so excessively annoying at night, that no family thinks of sleeping without nets or "musketoe-bars" hung over their bedsteads, yet slaves are never provided with them, unless it be the favorite old domestics who get the cast-off pavilions; and yet these very masters and mistresses will be so kind to their *horses* as to provide them with *fly nets*. Bedsteads and bedding too, are rarely provided for any of the slaves—if the waiters and coachmen, waiting maids, cooks, washers, &c., have beds at all, they must generally get them for themselves. Commonly they lie down at night on the bare floor, with a small blanket wrapped round them in winter, and in summer a coarse osnaburg sheet, or nothing. Old slaves generally have beds, but it is because when younger *they have provided them for themselves*.

Only two meals a day are allowed the house slaves—the *first at twelve o'clock*. If they eat before this time, it is by stealth, and I am sure there must be a good deal of suffering among them from *hunger*, and particularly by children. Besides this, they are often kept from their meals by way of punishment. No table is provided for them to eat from. They know nothing of the comfort and pleasure of gathering round the social board—each takes his plate or tin pan and iron spoon and holds it in the hand or on the lap. I *never* saw slaves seated round a *table* to partake of any meal.

As the general rule, no lights of any kind, no firewood—no towels, basins, or soap, no tables, chairs, or other furniture, are provided. Wood for cooking and washing *for the family* is found, but when the master's work is done, the

slave must find wood for himself if he has a fire. I have repeatedly known slave children kept the whole winter's evening, sitting on the stair-case in a cold entry, just to be at hand to snuff candles or hand a tumbler of water from the side-board, or go on errands from one room to another. It may be asked why they were not permitted to stay in the parlor, when they would be still more at hand. I answer, because waiters are not allowed to *sit* in the presence of their owners, and as children who were kept running all day, would of course get very tired of standing for two or three hours, they were allowed to go into the entry and sit on the staircase until rung for. Another reason is, that even slaveholders at times find the presence of slaves very annoying; they cannot exercise entire freedom of speech before them on all subjects.

I have also known instances where seamstresses were kept in cold entries to work by the stair case lamps for one or two hours, every evening in winter—they could not see without standing up all the time, though the work was often too large and heavy for them to sew upon it in that position without great inconvenience, and yet they were expected to do their work as *well* with their cold fingers, and standing up, as if they had been sitting by a comfortable fire and provided with the necessary light. House slaves suffer a great deal also from not being allowed to leave the house without permission. If they wish to go even for a draught of water, they must *ask leave*, and if they stay longer than the mistress thinks necessary, they are liable to be punished, and often are scolded or slapped, or kept from going down to the next meal.

It frequently happens that relatives, among slaves, are separated for weeks or months, by the husband or brother being taken by the master on a journey, to attend on his horses and himself.—When they return, the white husband seeks the wife of his love; but the black husband must wait to see *his* wife, until mistress pleases to let her chambermaid leave her room. Yes, such is the despotism of slavery, that wives and sisters dare not run to meet their husbands and brothers after such separations, and hours sometimes elapse before they are allowed to meet; and, at times, a fiendish pleasure is taken in keeping them asunder—this furnishes an opportunity to vent feelings of spite for any little neglect of "duty."

The sufferings to which slaves are subjected by separations of various kinds, cannot be imagined by those unacquainted with the working out of the system behind the curtain. Take the following instances.

Chambermaids and seamstresses often sleep in their mistresses' apartments, but with no bedding at all. I know an instance of a woman who has been married eleven years, and yet has never been allowed to sleep out of her mistress's chamber.—This is a *great* hardship to slaves. When we consider that house slaves are rarely allowed social intercourse during *the day*, as their work generally *separates* them; the barbarity of such an arrangement is obvious. It is peculiarly a hardship in the above case, as the husband of the woman does not "belong" to her "owner;" and because he is subject to dreadful attacks of illness, and can have but little attention from his wife in the *day*. And yet her mistress, who is an old lady, gives her the highest character as a faithful servant, and told a friend of mine, that she was "entirely dependent upon her for *all* her comforts; she dressed and undressed her, gave her all her food, and was so *necessary* to her that she could not do without her." I may add, that this couple are tenderly attached to each other.

I also know an instance in which the husband was a slave and the wife was free: during the illness of the former, the latter was *allowed* to come and nurse him; she was obliged to leave the work by which she had made a living, and come to stay with her husband, and thus lost weeks of her time, or he would have suffered for want of proper attention; and yet his "owner" made her no compensation for her services. He had long been a faithful and a favorite slave, and his owner was a woman very benevolent to the poor whites.—She went a great deal among these, as a visiting commissioner of the Ladies' Benevolent Society, and was in the constant habit of *paying the relatives of the poor whites* for nursing *their* husbands, fathers, and other relations; because she thought it very hard, when their time was taken up, so that they could not earn their daily bread, that they should be left to suffer. Now, such is the stupifying influence of the "*chattel* principle" on the minds of slaveholders, that I do not suppose it ever occurred to her that this poor *colored* wife ought to be paid for her services, and particularly as she was spending her time and strength in taking care of her "*property*." She no doubt only thought how kind she was, to *allow* her to come and stay so long in her yard; for, let it be kept in mind, that slaveholders have unlimited

power to separate husbands and wives, parents and children, however and whenever they please; and if this mistress had chosen to do it, she could have debarred this woman from all intercourse with her husband, by forbidding her to enter her premises.

Persons who own plantations and yet live in cities, often take children from their parents as soon as they are weaned, and send them into the country; because they do not want the time of the mother taken up by attendance upon her own children, it being too valuable to the mistress. As a *favor*, she is, in some cases, permitted to go to see them once a year. So, on the other hand, if field slaves happen to have children of an age suitable to the convenience of the master, they are taken from their parents and brought to the city. Parents are almost never consulted as to the disposition to be made of their children; they have as little control over them, as have domestic animals over the disposal of their young. Every natural and social feeling and affection are violated with indifference; slaves are treated as though they did not possess them.

Another way in which the feelings of slaves are trifled with and often deeply wounded, is by changing their names; if, at the time they are brought into a family, there is another slave of the same name; or if the owner happens, for some other reason, not to like the name of the new comer. I have known slaves very much grieved at having the names of their children thus changed, when they had been called after a dear relation. Indeed it would be utterly impossible to recount the multitude of ways in which the *heart* of the slave is continually lacerated by the total disregard of his feelings as a social being and a human creature.

The slave suffers also greatly from being continually watched. The system of espionage which is constantly kept up over slaves is the most worrying and intolerable that can be imagined. Many mistresses are, in fact, during the absence of their husbands, really their drivers; and the pleasure of returning to their families often, on the part of the husband, is entirely destroyed by the complaints preferred against the slaves when he comes home to his meals.

A mistress of my acquaintance asked her servant boy, one day, what was the reason she could not get him to do his work whilst his master was away,

and said to him, "Your master works a great deal harder than you do; he is at his office all day, and often has to study his law cases at night." "Master," said the boy, "is working for himself, and for you, ma'am, but I am working for *him*". The mistress turned and remarked to a friend, that she was so struck with the truth of the remark, that she could not say a word to him. But I forbear—the sufferings of the slaves are not only innumerable, but they are *indescribable*. I may paint the agony of kindred torn from each other's arms, to meet no more in time; I may depict the inflictions of the blood-stained lash, but I cannot describe the daily, hourly, ceaseless torture, endured by the heart that is constantly trampled under the foot of despotic power. This is a part of the horrors of slavery which, I believe, no one has ever attempted to delineate; I wonder not at it, it mocks all power of language. Who can describe the anguish of that mind which feels itself impaled upon the iron of arbitrary power—its living, writhing, helpless victim! every human susceptibility tortured, its sympathies torn, and stung, and bleeding—always feeling the death-weapon in its heart, and yet not so deep as to *kill* that humanity which is made the curse of Its existence.

In the course of my testimony I have entered somewhat into the *minutiae* of slavery, because this is a part of the subject often overlooked, and cannot be appreciated by any but those who have been witnesses, and entered into sympathy with the slaves as human beings. Slaveholders think nothing of them, because they regard their slaves as *property*, the mere instruments of their convenience and pleasure. *One who is a slaveholder at heart never recognises a human being in a slave.*

As thou hast asked me to testify respecting the *physical condition* of the slaves merely, I say nothing of the awful neglect of their *minds and souls* and the systematic effort to imbrute them. A wrong and an impiety, in comparison with which all the other unutterable wrongs of slavery are but as the dust of the balance.

ANGELINA G. WELD.

GENERAL TESTIMONY

TO THE CRUELITIES INFLICTED UPON SLAVES.

Before presenting to the reader particular details of the cruelties inflicted upon American slaves, we will present in brief the well-weighed declarations of slaveholders and other residents of slave states, testifying that the slaves are treated with barbarous inhumanity. All *details* and particulars will be drawn out under their appropriate heads. We propose in this place to present testimony of a *general character*—the solemn declarations of slaveholders and others, that the slaves are treated with great cruelty.

To discredit the testimony of witnesses who insist upon convicting themselves, would be an anomalous scepticism.

To show that American slavery has *always* had one uniform character of diabolical cruelty, we will go back one hundred years, and prove it by unimpeachable witnesses, who have given their deliberate testimony to its horrid barbarity, from 1739 to 1839.

TESTIMONY OF REV. GEORGE WHITEFIELD.

In a letter written by him in Georgia, and addressed to the slaveholders of Maryland, Virginia, North and South Carolina and Georgia, in 1739.—See Benezet's "Caution to Great Britain and her Colonies."

"As I lately passed through your provinces on my way hither, I was sensibly touched with a fellow-feeling of the miseries of the poor negroes.

"Sure I am, it is sinful to use them as bad, nay worse than if they were brutes; and whatever particular *exceptions* there may be, (as I would charitably hope there are *some*,) I fear the *generality* of you that own negroes *are liable to such a charge*. Not to mention what numbers have been given up to the inhuman usage of cruel *taskmasters*, who by their unrelenting scourges, have ploughed their backs and made long furrows, and at length brought them to the grave!

"The blood of them, spilt for these many years, in your respective provinces, will ascend up to heaven against you!" The following is the testimony of the celebrated JOHN WOOLMAN, an eminent minister of the Society of Friends, who traveled extensively in the slave state. We copy it from a "Memoir of JOHN WOOLMAN, chiefly extracted from a Journal of his Life and Travels." It was published in Philadelphia, by the "Society of Friends."

"The following reflections, were written in 1757, while he was traveling on a religious account among slaveholders."

"Many of the white people in these provinces, take little or no care of negro marriages; and when negroes marry, after their own way, some make so little account of those marriages, that, with views of outward interest, they often part men from their wives, by selling them far asunder; which is common when estates are sold by executors at vendue.

"Many whose labor is heavy, being followed at their business in the field by a man with a whip, hired for that purpose,—have, in common, little else allowed them but *one peck* of Indian corn and some salt for one week, with a few potatoes. (The potatoes they commonly raise by their labor on the first day of the week.) The correction ensuing on their disobedience to overseers, or slothfulness in business, is often *very severe*, and sometimes *desperate*. Men and women have many times *scarce clothes enough to hide their nakedness*—and boys and girls, ten and twelve years old, are often *quite naked* among their masters' children. Some use endeavors to instruct those (negro children) they have in reading; but in common, this is not only neglected, but disapproved."—p. 12.

TESTIMONY OF THE 'MARYLAND JOURNAL AND BALTIMORE ADVERTISER,' OF MAY 30, 1788.

"In the ordinary course of the business of the country, the punishment of relations frequently happens on the same farm, and in view of each other: the father often sees his beloved son—the son his venerable sire—the mother her much loved daughter—the daughter her affectionate parent—the

husband sees the wife of his bosom, and she the husband of her affection, *cruelly bound up* without delicacy or mercy, and without daring to interpose in each other's behalf, and punished with all the *extremity of incensed rage, and all the rigor of unrelenting severity*. Let us reverse the case, and suppose it ours: ALL IS SILENT HORROR!"

TESTIMONY OF THE HON. WILLIAM PINCKNEY, OF MARYLAND.

In a speech before the Maryland House of Delegates, in 1789, Mr. P. calls slavery in that state, "a speaking picture of *abominable oppression*;" and adds: "It will not do thus to ... act like *unrelenting tyrants*, perpetually sermonizing it with liberty as our text, and actual *oppression* for our commentary. Is she [Maryland] not ... the foster mother of *petty despots*,—the patron of *wanton oppression*?"

Extract from a speech of Mr. RICE, in the Convention for forming the Constitution of Kentucky, in 1790:

"The master may, and *often does, inflict upon him all the severity of punishment the human body is capable of bearing.*"

President Edwards, the Younger, in a sermon before the Connecticut Abolition Society, 1791, says:

"From these drivers, for every imagined, as well as real neglect or want of exertion, they receive the lash—the smack of which is all day long in the ears of those who are on the plantation or in the vicinity; and it is used with such dexterity and severity, as not only to lacerate the skin, but to tear out small portions of the flesh at almost every stroke.

"This is the general treatment of the slaves. But many individuals suffer still more severely. *Many, many are knocked down; some have their eyes beaten out: some have an arm or a leg broken, or chopped off*; and many, for a very small, or for no crime at all, have been beaten to death, merely to gratify the fury of an enraged master or overseer."

Extract from an oration, delivered at Baltimore, July 4, 1797, by GEORGE BUCHANAN, M.D., member of the American Philosophical Society.

Their situation (the slaves') is *insupportable*; misery inhabits their cabins, and pursues them in the field. Inhumanly beaten, they *often* fall sacrifices to the turbulent tempers of their masters! Who is there, unless inured to savage cruelties, that can hear of the inhuman punishments *daily inflicted* upon the unfortunate blacks, without feeling for them? Can a man who calls himself a Christian, coolly and deliberately tie up, *thumb-screw, torture with pincers*, and beat unmercifully a poor slave, for perhaps a trifling neglect of duty?—p. 14.

TESTIMONY OF HON. JOHN RANDOLPH, OF ROANOKE—A SLAVEHOLDER.

In one of his Congressional speeches, Mr. R. says: "Avarice alone can drive, as it does drive, this *infernal* traffic, and the wretched victims of it, like so many post-horses *whipped to death* in a mail coach. Ambition has its cover-sluts in the pride, pomp, and circumstance of glorious war; but where are the trophies of avarice? *The hand-cuff; the manacle, the blood-stained cowhide!*"

MAJOR STODDARD, of the United States' army, who took possession of Louisiana in behalf of the United States, under the cession of 1804, in his Sketches of Louisiana, page 332, says:

"The feelings of humanity are outraged—the most odious tyranny exercised in a land of freedom, and hunger and nakedness prevail amidst plenty. * * * Cruel, and even unusual punishments are daily inflicted on these wretched creatures, enfeebled with hunger, labor and the lash. The scenes of misery and distress constantly witnessed along the coast of the Delta, [of the Mississippi,] the wounds and lacerations occasioned by demoralized masters and overseers, torture the feelings of the passing stranger, and wring blood from the heart."

Though only the third of the following series of resolutions is directly relevant to the subject now under consideration, we insert the other resolutions, both because they are explanatory of the third, and also serve to reveal the public sentiment of Indiana, at the date of the resolutions. As a large majority of the citizens of Indiana at that time, were *natives of slave states*, they well knew the actual condition of the slaves.

1. "RESOLVED UNANIMOUSLY, by the Legislative Council and House of Representatives of Indiana Territory, that a suspension of the sixth article of compact between the United States and the territories and states north west of the river Ohio, passed the 13th day of January, 1783, for the term of ten years, would be highly advantageous to the territory, and meet the approbation of at least nine-tenths of the good citizens of the same."

2. "RESOLVED UNANIMOUSLY, that the abstract question of liberty and slavery, is not considered as involved in a suspension of the said article, inasmuch as the number of slaves in the United States would not be augmented by the measure."

3. "RESOLVED UNANIMOUSLY, that the suspension of the said article would be equally advantageous to the territory, to the states from whence the negroes would be brought, and *to the negroes themselves*. The states which are overburthened with negroes which they cannot comfortably support; * * and THE NEGRO HIMSELF WOULD EXCHANGE A SCANTY PITTANCE OF THE COARSEST FOOD, for a plentiful and nourishing diet; and a situation which admits not the most distant prospect of emancipation, for one which presents no considerable obstacle to his wishes."

4. "RESOLVED UNANIMOUSLY, that a copy of these resolutions be delivered to the delegate to Congress from this territory, and that he be, and he hereby is, instructed to use his best endeavors to obtain a suspension of the said article."

J.B. THOMAS, *Speaker of the House of Representatives*.

PIERRE MINARD, *President pro tem. of the Legislative Council*. Vincennes, Dec. 20, 1806.

"Forwarded to the Speaker the United States' Senate, by WILLIAM HENRY HARRISON, Governor"—*American State Papers* vol 1. p. 467.

MONSIEUR C.C. ROBIN, who resided in Louisiana from 1802 to 1806, and published a volume containing the results of his observations there,

thus speaks of the condition of the slaves:

"While they are at labor, the manager, the master, or the driver has commonly the whip in hand to strike the idle. But those of the negroes who are judged guilty of serious faults, are punished twenty, twenty-five, forty, fifty, or one hundred lashes. The manner of this cruel execution is as follows: four stakes are driven down, making a long square; the culprit is extended naked between these stakes, face downwards; his hands and his feet are bound separately, with strong cords, to each of the stakes, so far apart that his arms and legs, stretched in the form of St. Andrew's cross, give the poor wretch no chance of stirring. Then the executioner, who is ordinarily a negro, armed with the long whip of a coachman, strikes upon the reins and thighs. The crack of his whip resounds afar, like that of an angry cartman beating his horses. The blood flows, the long wounds cross each other, strips of skin are raised without softening either the hand of the executioner or the heart of the master, who cries 'sting him harder.'

"The reader is moved; so am I: my agitated hand refuses to trace the bloody picture, to recount how many times the piercing cry of pain has interrupted my silent occupations; how many times I have shuddered at the faces of those barbarous masters, where I saw inscribed the number of victims sacrificed to their ferocity.

"The women are subjected to these punishments as rigorously as the men—not even pregnancy exempts them; in that case, before binding them to the stakes, a hole is made in the ground to accommodate the enlarged form of the victim.

"It is remarkable that the white creole women are ordinarily more inexorable than the men. Their slow and languid gait, and the trifling services which they impose, betoken only apathetic indolence; but should the slave not promptly obey, should he even fail to divine the meaning of their gestures, or looks, in an instant they are armed with a formidable whip; it is no longer the arm which cannot sustain the weight of a shawl or a reticule—it is no longer the form which but feebly sustains itself. They themselves order the punishment of one of these poor creatures, and with a dry eye see their victim bound to four

stakes; they count the blows, and raise a voice of menace, if the arm that strikes relaxes, or if the blood does not flow in sufficient abundance. Their sensibility changed to fury must needs feed itself for a while on the hideous spectacle; they must, as if to revive themselves, hear the piercing shrieks, and see the flow of fresh blood; there are some of them who, in their frantic rage, pinch and bite their victims.

"It is by no means wonderful that the laws designed to protect the slave, should be little respected by the generality of such masters. I have seen some masters pay those unfortunate people the miserable overcoat which is their due; but others give them nothing at all, and do not even leave them the hours and Sundays granted to them by law. I have seen some of those barbarous masters leave them, during the winter, in a state of revolting nudity, even contrary to their own true interests, for they thus weaken and shorten the lives upon which repose the whole of their own fortunes. I have seen some of those negroes obliged to conceal their nakedness with the long moss of the country. The sad melancholy of these wretches, depicted upon their countenances, the flight of some, and the death of others, do not reclaim their masters; they wreak upon those who remain, the vengeance which they can no longer exercise upon the others."

WHITMAN MEAD, Esq. of New York, in his journal, published nearly a quarter of a century ago, under date of

"SAVANNAH, January 28, 1817.

"To one not accustomed to such scenes as slavery presents, the condition of the slaves is *impressively shocking*. In the course of my walks, I was every where witness to their wretchedness. Like the brute creatures of the north, they are driven about at the pleasure of all who meet them: *half naked and half starved*, they drag out a pitiful existence, apparently almost unconscious of what they suffer. A threat accompanies every command, and a bastinado is the usual reward of disobedience."

TESTIMONY OF REV. JOHN RANKIN,

A native of Tennessee, educated there, and for a number of years a preacher in slave states—now pastor of a church in Ripley, Ohio.

"Many poor slaves are stripped naked, stretched and tied across barrels, or large bags, *and tortured with the lash during hours, and even whole days, until their flesh is mangled to the very bones.* Others are stripped and hung up by the arms, their feet are tied together, and the end of a heavy piece of timber is put between their legs in order to stretch their bodies, and so prepare them for the torturing lash—and in this situation they are often whipped until their bodies are covered *with blood and mangled flesh*—and in order to add the greatest keenness to their sufferings, their wounds are washed with *liquid salt*! And some of the miserable creatures are permitted to hang in that position until they actually *expire*; some die under the lash, others linger about for a time, and at length die of their wounds, and many survive, and endure again similar torture. These bloody scenes are *constantly exhibiting in every slave holding country—thousands of whips are every day stained in African blood!* Even the poor *females* are not permitted to escape these shocking cruelties."—*Rankin's Letters.*

These letters were published fifteen years ago.—They were addressed to a brother in Virginia, who was a slaveholder.

TESTIMONY OF THE AMERICAN COLONIZATION SOCIETY.

"We have heard of slavery as it exists in Asia, and Africa, and Turkey—we have heard of the feudal slavery under which the peasantry of Europe have groaned from the days of Alaric until now, but excepting only the horrible system of the West India Islands, we have never heard of slavery in any country, ancient or modern, Pagan, Mohammedan, or *Christian! so terrible in its character,* as the slavery which exists in these United States."—*Seventh Report American Colonization Society, 1824.*

TESTIMONY OF THE GRADUAL EMANCIPATION SOCIETY OF NORTH CAROLINA.

Signed by Moses Swain, President, and William Swain, Secretary.

"In the eastern part of the state, the slaves considerably outnumber the free population. Their situation is there wretched beyond description. Impoverished by the mismanagement which we have already attempted to

describe, the master, unable to support his own grandeur and maintain his slaves, puts the unfortunate wretches upon short allowances, scarcely sufficient for their sustenance, so that a great part of them go half naked and half starved much of the time. Generally, throughout the state, the African is an *abused, a monstrously outraged creature.*"—See *Minutes of the American Convention, convened in Baltimore, Oct. 25, 1826.*

FROM NILES' BALTIMORE REGISTER FOR 1829, VOL 35, p. 4.

"Dealing in slaves has become a *large business*. Establishments are made at several places in Maryland and Virginia, at which they are sold like cattle. These places of deposit are strongly built, and well supplied with *iron thumb-screws and gags*, and ornamented with *catskins and other whips—often times bloody.*"

Judge RUFFIN, of the Supreme Court of North Carolina, in one of his judicial decisions, says—"The slave, to remain a slave, must feel that there is NO APPEAL FROM HIS MASTER. No man can anticipate the provocations which the slave would give, nor the consequent wrath of the master, prompting him to BLOODY VENGEANCE on the turbulent traitor, a vengeance *generally* practiced with impunity, by reason of its PRIVACY."—See *Wheeler's Law of Slavery* p. 247.

MR. MOORE, of VIRGINIA, in his speech before the Legislature of that state, Jan. 15, 1832, says: "It must be confessed, that although the treatment of our slaves is in the general, as mild and humane as it can be, that it must always happen, that there will be found hundreds of individuals, who, owing either to the natural ferocity of their dispositions, or to the effects of intemperance, will be guilty of cruelty and barbarity towards their slaves, which is *almost intolerable*, and at which humanity revolts."

TESTIMONY OF B. SWAIN, ESQ., OF NORTH CAROLINA.

"Let any man of spirit and feeling, for a moment cast his thoughts over this land of slave—think of the *nakedness* of some, the *hungry yearnings* of others, the *flowing tears and heaving sighs* of parting relations, the *wailings and wo*, the *bloody cut of the keen lash*, and the *frightful scream that rends the very skies*—and all this to gratify ambition, lust, pride, avarice, vanity,

and other depraved feelings of the human heart.... THE WORST IS NOT GENERALLY KNOWN. Were all the miseries, the horrors of slavery, to burst at once into view, a peal of seven-fold thunder could scarce strike greater alarm."—See "*Swain's Address*," 1830.

TESTIMONY OF DR. JAMES C. FINLEY,

Son of Dr. Finley, one of the founders of the Colonization Society, and brother of R.S. Finley, agent of the American Colonization Society. Dr. J.C. Finley was formerly one of the editors of the *Western Medical Journal*, at Cincinnati, and is well known in the west as utterly hostile to immediate abolition.

"In almost the last conversation I had with you before I left Cincinnati, I promised to give you some account of some scenes of atrocious cruelty towards slaves, which I witnessed while I lived at the south. I almost regret having made the promise, for not only are they *so atrocious* that you will with difficulty believe them, but I also fear that they will have the effect of driving you into that *abolitionism*, upon the borders of which you have been so long hesitating. The people of the north *are ignorant of the horrors of slavery*—of the *atrocities* which it commits upon the unprotected slave. * * *

"I do not know that any thing could be gained by particularizing the scenes of *horrible barbarity*, which fell under my observation during my *short* residence in one of the wealthiest, most intelligent, and most moral parts of Georgia. Their *number* and *atrociousness* are such, that I am confident they would gain credit with none but *abolitionists*. Every thing will be conveyed in the remark, that in a state of society calculated to foster the worst passions of our nature, the slave derives *no protection* either from *law* or *public opinion*, and that ALL the cruelties which the Russians are reported to have acted towards the Poles, after their late subjugation, ARE SCENES OF

EVERY-DAY OCCURRENCE in the southern states. This statement, incredible as it may seem, falls short, very far short of the truth."

The foregoing is extracted from a letter written by Dr. Finley to Rev. Asa Mahan, his former pastor, then of Cincinnati, now President of Oberlin Seminary.

TESTIMONY OF REV. WILLIAM T. ALLAN, OF ILLINOIS, *Son of a Slaveholder, Rev. Dr. Allan of Huntsville, Ala.*

"At our house it is so common to hear their (the slaves') screams, that we think nothing of it: and lest any one should think that in *general* the slaves are well treated, let me be distinctly understood:—*cruelty* is the *rule*, and *kindness* the *exception*."

Extract of a letter dated July 2d, 1834, from Mr. NATHAN COLE, of St. Louis, Missouri, to Arthur Tappan, Esq. of this city:

"I am not an advocate of the immediate and unconditional emancipation of the slaves of our country, yet *no man has ever yet depicted the wretchedness of the situation of the slaves in colors as dark for the truth....* I know that many good people *are not aware of the treatment to which slaves are usually subjected*, nor have they any just idea of the extent of the evil."

TESTIMONY OF REV. JAMES A. THOME, *A native of Kentucky—Son of Arthur Thome Esq., till recently a Slaveholder.*

"Slavery is the parent of more suffering than has flowed from any one source since the date of its existence. Such sufferings too! *Sufferings inconceivable and innumerable—unmingled wretchedness* from the ties of nature rudely broken and destroyed, the *acuteest bodily tortures, groans, tears and blood—lying forever in weariness and painfulness, in watchings, in hunger and in thirst, in cold and nakedness.*

"Brethren of the North, be not deceived. *These sufferings still exist*, and despite the efforts of their cruel authors to hush them down, and confine them within the precincts of their own plantations, they will ever and anon, struggle up and reach the ear of humanity."—*Mr. Thome's Speech at New York, May, 1834.*

TESTIMONY OF THE MARYVILLE (TENNESSEE) INTELLIGENCER,
OF OCT. 4, 1835.

The Editor, in speaking of the sufferings of the slaves which are taken by the internal trade to the South West, says:

"Place yourself in imagination, for a moment, in their condition. With *heavy galling chains*, riveted upon your person; *half-naked, half-starved*; your back *lacerated* with the 'knotted Whip;' traveling to a region where your *condition through time will be second only to the wretched creatures in Hell*.

"This depicting is not visionary. Would to God that it was."

TESTIMONY OF THE PRESBYTERIAN SYNOD OF KENTUCKY; A
large majority of whom are slaveholders.

"This system licenses and produces *great cruelty*.

"Mangling, imprisonment, starvation, every species of torture, may be inflicted upon him, (the slave,) and he has no redress.

"There are now in our whole land two millions of human beings, exposed, defenceless, to every insult, and every injury short of maiming or death, which their fellow men may choose to inflict. *They suffer all* that can be inflicted by wanton caprice, by grasping avarice, by brutal lust, by malignant spite, and by insane anger. Their happiness is the sport of every whim, and the prey of every passion that may, occasionally, or habitually, infest the master's bosom. If we could calculate the amount of wo endured by ill-treated slaves, it would overwhelm every compassionate heart—it would move even the obdurate to sympathy. There is also a vast sum of suffering inflicted upon the slave by humane masters, as a punishment for that idleness and misconduct which slavery naturally produces.

"*Brutal stripes* and all the varied kinds of personal indignities, are not the only species of cruelty which slavery licenses."

TESTIMONY OF THE REV. N.H. HARDING, Pastor of the Presbyterian
Church, in Oxford, North Carolina, a slaveholder.

"I am greatly surprised that you should in any form have been the apologist of a system so full of deadly poison to all holiness and benevolence as slavery, the concocted essence of fraud, selfishness, and cold hearted tyranny, and the fruitful parent of unnumbered evils, both to the oppressor and the oppressed, THE ONE THOUSANDTH PART OF WHICH HAS NEVER BEEN BROUGHT TO LIGHT."

MR. ASA A. STONE, a theological student, who lived near Natchez, (Mi.) in 1834 and 5, sent the following with other testimony, to be published under his own name, in the N.Y. Evangelist, while he was still residing there.

"Floggings for all offences, including deficiencies in work, are *frightfully common*, and *most terribly severe*.

"Rubbing with salt and red pepper is very common after a severe whipping."

TESTIMONY OF REV. PHINEAS SMITH, Centreville, Allegany Co., N.Y. who lived four years at the South.

"They are badly clothed, badly fed, wretchedly lodged, unmercifully whipped, from month to month, from year to year, from childhood to old age."

REV. JOSEPH M. SADD, Castile, Genessee CO. N.Y. who was till recently a preacher in Missouri, says,

"It is true that barbarous cruelties are inflicted upon them, such as terrible lacerations with the whip, and excruciating tortures are sometimes experienced from the thumb screw."

Extract of a letter from SARAH M. GRIMKÉ, dated 4th Month, 2nd, 1839

"If the following extracts from letters which I have received from South Carolina, will be of any use thou art at liberty to publish them. I need not say, that the names of the writers are withheld of necessity, because such sentiments if uttered at the south would peril their lives."

EXTRACTS

—South Carolina, 4th Month, 5th, 1835. "With regard to slavery I must confess, though we had heard a great deal on the subject, we found on coming South the *half*, the *worst* half too, had not been told us; not that we have ourselves seen much oppression, though truly we have felt its deadening influence, but the accounts we have received from every tongue that nobly dares to speak upon the subject, are indeed *deplorable*. To quote the language of a lady, who with true Southern hospitality, received us at her mansion. "The *northern* people don't know anything of slavery at all, they think it is *perpetual bondage merely*, but of the *depth of degradation* that that word involves, they have no conception; if they had any just idea of it, they would I am sure use every effort until an end was put to such a shocking system.'

"Another friend writing from South Carolina, and who sustains herself the legal relation of slaveholder, in a letter dated April 4th, 1838, says—"I have some time since, given you my views on the subject of slavery, which so much engrosses your attention. I would most willingly forget what I have seen and heard in my own family, with regard to the slaves. *I shudder when I think of it*, and increasingly feel that slavery is a curse since it leads to such *cruelty*.'"

PUNISHMENTS.

I. FLOGGINGS.

The slaves are terribly lacerated with whips, paddles, &c.; red pepper and salt are rubbed into their mangled flesh; hot brine and turpentine are poured into their gashes; and innumerable other tortures inflicted upon them.

We will in the first place, prove by a cloud of witnesses, that the slaves are whipped with such inhuman severity, as to lacerate and mangle their flesh in the most shocking manner, leaving permanent scars and ridges; after establishing this, we will present a mass of testimony, concerning a great variety of other tortures. The testimony, for the most part, will be that of the slaveholders themselves, and in their own chosen words. A large portion of it will be taken from the advertisements, which they have published in their own newspapers, describing by the scars on their bodies made by the whip, their own runaway slaves. To copy these advertisements *entire* would require a great amount of space, and flood the reader with a vast mass of matter irrelevant to the *point* before us; we shall therefore insert only so much of each, as will intelligibly set forth the precise point under consideration. In the column under the word "witnesses," will be found the name of the individual, who signs the advertisement, or for whom it is signed, with his or her place of residence, and the name and date of the paper, in which it appeared, and generally the name of the place where it is published. Opposite the name of each witness, will be an extract, from the advertisement, containing his or her testimony.

Mr. D. Judd, jailor, Davidson Co., Tennessee, in the "Nashville Banner," Dec. 10th, 1838.

"Committed to jail as a runaway, a negro woman named Martha, 17 or 18 years of age, has *numerous scars of the whip on her back.*"

Mr. Robert Nicoll, Dauphin st. between Emmanuel and Conception st's, Mobile, Alabama, in the "Mobile Commercial Advertiser."

"Ten dollars reward for my woman Siby, *very much scarred about the neck and ears by whipping.*"

Mr. Bryant Johnson, Fort Valley Houston Co., Georgia, in the "Standard of Union," Milledgeville Ga. Oct. 2, 1838. "Ranaway, a negro woman, named Maria, *some scars on her back occasioned by the whip.*"

Mr. James T. De Jarnett, Vernon, Autauga Co., Alabama, in the "Pensacola Gazette," July 14, 1838.

"Stolen a negro woman, named Celia. On examining her back you will find marks *caused by the whip.*"

Maurice Y. Garcia, Sheriff of the County of Jefferson, La., in the "New Orleans Bee," August, 14, 1838.

"Lodged in jail, a mulatto boy, *having large marks of the whip*, on his shoulders and other parts of his body."

R.J. Bland, Sheriff of Claiborne Co, Miss., in the "Charleston (S.C.) Courier." August, 28, 1838.

"Was committed a negro boy, named Tom, is *much marked with the whip.*"

Mr. James Noe, Red River Landing, La., in the "Sentinel," Vicksburg, Miss., August 22, 1837.

"Ranaway, a negro fellow named Dick—has *many scars on his back from being whipped.*"

William Craze, jailor, Alexandria, La. in the "Planter's Intelligencer." Sept. 26, 1838.

"Committed to jail, a negro slave—his back is *very badly scarred.*"

John A. Rowland, jailor, Lumberton, North Carolina, in the "Fayetteville (N.C.) Observer," June 20, 1838.

"Committed, a mulatto fellow—his back shows *lasting impressions of the whip*, and leaves no doubt of his being A SLAVE"

J.K. Roberts, sheriff, Blount county, Ala., in the "Huntsville Democrat," Dec. 9, 1839.

"Committed to jail, a negro man—his back *much marked* by the whip."

Mr. H. Varillat, No. 23 Girod street, New Orleans—in the "Commercial Bulletin," August 27, 1838.

"Ranaway, the negro slave named Jupiter—has a *fresh mark* of a cowskin on one of his cheeks."

Mr. Cornelius D. Tolin, Augusta, Ga., in the "Chronicle and Sentinel," Oct. 18, 1838.

"Ranaway, a negro man named Johnson—he has a *great many marks of the whip* on his back."

W.H. Brasseale, sheriff; Blount county, Ala., in the "Huntsville Democrat," June 9, 1838.

"Committed to jail, a negro slave named James—*much scarred* with a whip on his back."

Mr. Robert Beasley, Macon, Ga., in the "Georgia Messenger," July 27, 1837.

"Ranaway, my man Fountain—he is marked *on the back with the whip*."

Mr. John Wotton, Rockville, Montgomery county, Maryland, in the "Baltimore Republican," Jan. 13, 1838.

"Ranaway, Bill—has *several LARGE SCARS* on his back from a *severe* whipping in *early life*."

D.S. Bennett, sheriff, Natchitoches, La., in the "Herald," July 21, 1838.

"Committed to jail, a negro boy who calls himself Joe—said negro bears *marks of the whip*."

Messrs. C.C. Whitehead, and R.A. Evans, Marion, Georgia, in the Milledgeville (Ga.) "Standard of Union," June 26, 1838.

"Ranaway, negro fellow John—from being whipped, has *scars on his back, arms, and thighs.*"

Mr. Samuel Stewart, Greensboro', Ala., in the "Southern Advocate," Huntsville, Jan. 6, 1838.

"Ranaway, a boy named Jim—with the marks of the *whip* on the small of the back, reaching round to the flank."

Mr. John Walker, No. 6, Banks' Arcade New Orleans, in the "Bulletin," August 11, 1838.

"Ranaway, the mulatto boy Quash—*considerably marked* on the back and other places with the lash."

Mr. Jesse Beene, Cahawba, Ala., in the "State Intelligencer," Tuscaloosa, Dec. 25, 1837.

"Ranaway, my negro man Billy—he has the *marks of the whip.*"

Mr. John Turner, Thomaston, Upson county, Georgia—in the "Standard of Union," Milledgeville, June 26, 1838.

"Left, my negro man named George—has *marks of the whip very plain on his thighs.*"

James Derrah, deputy sheriff; Claiborne county, Mi., in the "Port Gibson Correspondent," April 15, 1837.

"Committed to jail, negro man Toy—he has been *badly whipped.*"

S.B. Murphy, sheriff, Wilkinson county, Georgia—in the Milledgeville "Journal," May 15, 1838.

"Brought to jail, a negro man named George—he has a *great many scars from the lash.*"

Mr. L.E. Cooner, Branchville Orangeburgh District, South Carolina—in the Macon "Messenger," May 25, 1837.

"One hundred dollars reward, for my negro Glasgow, and Kate, his wife. Glasgow is 24 years old—has *marks of the whip* on his back. Kate is 26—

has a *scar* on her cheek, *and several marks of a whip.*"

John H. Hand, jailor, parish of West Feliciana, La., in the St. "Francisville Journal," July 6, 1837

"Committed to jail, a negro boy named John, about 17 years old—his back *badly marked* with the *whip*, his upper lip and chin *severely bruised.*"

The preceding are extracts from advertisements published in southern papers, mostly in the year 1838. They are the mere *samples* of hundreds of similar ones published during the same period, with which, as the preceding are quite sufficient to show the *commonness* of inhuman floggings in the slave states, we need not burden the reader.

The foregoing testimony is, as the reader perceives, that of the slaveholders themselves, voluntarily certifying to the outrages which their own hands have committed upon defenceless and innocent men and women, over whom they have assumed authority. We have given to *their* testimony precedence over that of all other witnesses, for the reason that when men testify against *themselves* they are under no temptation to exaggerate.

We will now present the testimony of a large number of individuals, with their names and residences,—persons who witnessed the inflictions to which they testify. Many of them have been slaveholders, and *all* residents for longer or shorter periods in slave states.

Rev. JOHN H. CURTISS, a native of Deep Creek, Norfolk county, Virginia, now a local preacher of the Methodist Episcopal Church in Portage co., Ohio, testifies as follows:—

"In 1829 or 30, one of my father's slaves was accused of taking the key to the office and stealing four or five dollars: he denied it. A constable by the name of Hull was called; he took the Negro, very deliberately tied his hands, and whipped him till the blood ran freely down his legs. By this time Hull appeared tired, and stopped; he then took a rope, put a slip noose around his neck, and told the negro he was going to *kill* him, at the same time drew the rope and began whipping: the Negro fell; his cheeks looked as though they would burst with strangulation. Hull whipped and kicked him, till I really thought he was going to kill him; when he ceased, the negro was in a complete gore of blood from head to foot."

Mr. DAVID HAWLEY, a class-leader in the Methodist Church, at St. Alban's, Licking county, Ohio, who moved from Kentucky to Ohio in 1831, testifies as follows:—

"In the year 1821 or 2, I saw a slave hung for killing his master. The master had whipped the slave's mother to DEATH, and, locking him in a room, threatened him with the same fate; and, cowhide in hand, had begun the work, when the slave joined battle and slew the master."

SAMUEL ELLISON, a member of the Society of Friends, formerly of Southampton county, Virginia, now of Marlborough, Stark county, Ohio, gives the following testimony:—

"While a resident of Southampton county, Virginia, I knew two men, after having been severely treated, endeavor to make their escape. In this they failed—were taken, tied to trees, and whipped to *death* by their overseer. I lived a mile from the negro quarters, and, at that distance, could frequently hear the screams of the poor creatures when beaten, and could also hear the blows given by the overseer with some heavy instrument."

Major HORACE NYE, of Putnam, Ohio, gives the following testimony of Mr. Wm. Armstrong, of that place, a captain and supercargo of boats descending the Mississippi river:—

"At Bayou Sarah, I saw a slave *staked out*, with his face to the ground, and whipped with a large whip, which laid open the flesh for about two and a half inches *every stroke*. I stayed about five minutes, but could stand it no longer, and left them whipping."

Mr. STEPHEN E. MALTBY, inspector of provisions, Skeneateles, New York, who has resided in Alabama, speaking of the condition of the slaves, says:—

"I have seen them cruelly whipped. I will relate one instance. One Sabbath morning, before I got out of my bed, I heard an outcry, and got up and went to the window, when I saw some six or eight boys, from eight to twelve years of age, near a rack (made for tying horses) on the public square. A man on horseback rode up, got off his horse, took a cord from his pocket, *tied one of the boys* by the *thumbs* to the rack, and with his horsewhip

lashed him most severely. He then untied him and rode off without saying a word.

"It was a general practice, while I was at Huntsville, Alabama, to have a patrol every night; and, to my knowledge, this patrol was in the habit of traversing the streets with cow-skins, and, if they found any slaves out after eight o'clock without a pass, to whip them until they were out of reach, or to confine them until morning."

Mr. J.G. BALDWIN, of Middletown, Connecticut, a member of the Methodist Episcopal Church, gives the following testimony:—

"I traveled at the south in 1827: when near Charlotte, N.C. a free colored man fell into the road just ahead of me, and went on peaceably.—When passing a public-house, the landlord ran out with a large cudgel, and applied it to the head and shoulders of the man with such force as to shatter it in pieces. When the reason of his conduct was asked, he replied, that he owned slaves, and he would not permit free blacks to come into his neighborhood.

"Not long after, I stopped at a public-house near Halifax, N.C., between nine and ten o'clock P.M., to stay over night. A slave sat upon a bench in the bar-room asleep. The master came in, seized a large horsewhip, and, without any warning or apparent provocation, laid it over the face and eyes of the slave. The master cursed, swore, and swung his lash—the slave cowered and trembled, but said not a word. Upon inquiry the next morning, I ascertained that the only offence was falling asleep, and this too in consequence of having been up nearly all the previous night, in attendance upon company."

Rev. JOSEPH M. SADD, of Castile, N.Y., who has lately left Missouri, where he was pastor of a church for some years, says:—

"In one case, near where we lived, a runaway slave, when brought back, was most cruelly beaten—bathed in the *usual* liquid—laid in the sun, and a physician employed to heal his wounds:—then the same process of punishment and healing was *repeated, and repeated again*, and then the poor creature was sold for the New Orleans market. This account we had from the *physician himself*."

MR. ABRAHAM BELL, of Poughkeepsie, New York, a member of the Scotch Presbyterian Church, was employed, in 1837 and 38, in levelling and grading for a rail-road in the state of Georgia: he had under his direction, during the whole time, thirty slaves. Mr. B. gives the following testimony:—

"*All* the slaves had their backs scarred, from the oft-repeated whippings they had received."

Mr. ALONZO BARNARD, of Farmington, Ohio, who was in Mississippi in 1837 and 8, says:—

"The slaves were often severely whipped. I saw one *woman* very severely whipped for accidentally cutting up a stalk of cotton.[\[8\]](#) When they were whipped they were commonly *held down by four men*: if these could not confine them, they were fastened by stakes driven firmly into the ground, and then lashed often so as to draw blood at each blow. I saw one woman who had lately been delivered of a child in consequence of cruel treatment."

[Footnote [8](#): Mr. Cornelius Johnson, of Farmington, Ohio, was also a witness to this inhuman outrage upon an unprotected woman, for the unintentional destruction of a stalk of cotton! In his testimony he is more particular, and says, that the number of lashes inflicted upon her by the overseer was "ONE HUNDRED AND FIFTY."]

Rev. H. LYMAN, late pastor of the Free Presbyterian Church at Buffalo, N. Y. says:—

"There was a steam cotton press, in the vicinity of my boarding-house at New Orleans, which was driven night and day, without intermission. My curiosity led me to look at the interior of the establishment. There I saw several slaves engaged in rolling cotton bags, fastening ropes lading carts, &c.

"The presiding genius of the place was a driver, who held a rope four feet long in his hand, which he wielded with cruel dexterity. He used it in single blows, just as the men were lifting to *tighten* the bale cords. It seemed to me

that he was desirous to edify me with a specimen of his authority; at any rate the cruelty was horrible."

Mr. JOHN VANCE, a member of the Baptist Church, in St. Albans, Licking county, Ohio, who moved from Culpepper county, Va., his native state in 1814, testifies as follows:—

"In 1826, I saw a woman by the name of Mallix, flog her female slave with a horse-whip so horribly that she was washed in salt and water several days, to keep her bruises from mortifying.

"In 1811, I was returning from mill, in Shenandoah county, when I heard the cry of murder, in the field of a man named Painter. I rode to the place to see what was going on. Two men, by the names of John Morgan and Michael Siglar, had heard the cry and came running to the place. I saw Painter beating a negro with a tremendous club, or small handspike, swearing he would kill him: but he was rescued by Morgan and Siglar. I learned that Painter had commenced flogging the slave for not getting to work soon enough. He had escaped, and taken refuge under a pile of rails that were on some timbers up a little from the ground. The master had put fire to one end, and stood at the other with his club, to kill him as he came out. The pile was still burning. Painter said he was a turbulent fellow and he *would* kill him. The apprehension of P. was TALKED ABOUT, but, as a compromise, the negro was sold to another man."

EXTRACT FROM THE PUBLISHED JOURNAL OF THE LATE WM. SAVER, of Philadelphia, an eminent minister of the Religious Society of Friends:—

"6th mo. 22d, 1791. We passed on to Augusta, Georgia. They can scarcely tolerate us, on account of our abhorrence of slavery. On the 28th we got to Savannah, and lodged at one Blount's, a hard-hearted slaveholder. One of his lads, aged about fourteen, was ordered to go and milk the cow: and falling asleep, through weariness, the master called out and ordered him a flogging. I asked him what he meant by a flogging. He replied, the way we serve them here is, we cut their backs until they are raw all over, and then salt them. Upon this my feelings were roused; I told him that was too bad, and queried if it were possible; he replied it was, with many curses upon the blacks. At supper this unfeeling wretch *craved a blessing!*

"Next morning I heard some one begging for mercy, and also the lash as of a whip. Not knowing whence the sound came, I rose, and presently found the poor boy tied up to a post, his toes scarcely touching the ground, and a negro whipper. He had already cut him in an unmerciful manner, and the blood ran to his heels. I stepped in between them, and ordered him untied immediately, which, with some reluctance and astonishment, was done. Returning to the house I saw the landlord, who then showed himself in his true colors, the most abominably wicked man I ever met with, full of horrid execrations and threatenings upon all northern people; but I did not spare him; which occasioned a bystander to say, with an oath, that I should be "popped over." We left them, and were in full expectation of their way-laying or coming after us, but the Lord restrained them. The next house we stopped at we found the same wicked spirit."

Col. ELIJAH ELLSWORTH, of Richfield, Ohio, gives the following testimony:—

"Eight or ten years ago I was in Putnam county, in the state of Georgia, at a Mr. Slaughter's, the father of my brother's wife. A negro, that belonged to Mr. Walker, (I believe,) was accused of stealing a pedlar's trunk. The negro denied, but, without ceremony, was lashed to a tree—the whipping commenced—six or eight men took turns—the poor fellow begged for mercy, but without effect, until he was literally *cut to pieces, from his shoulders to his hips*, and covered with a gore of blood. When he said the trunk was in a stack of fodder, he was unlashed. They proceeded to the stack, but found no trunk. They asked the poor fellow, what he lied about it for; he said, "Lord, Massa, to keep from being whipped to death; I know nothing about the trunk." They commenced the whipping with redoubled vigor, until I really supposed he would be whipped to death on the spot; and such shrieks and crying for mercy! Again he acknowledged, and again they were defeated in finding, and the same reason given as before. Some were for whipping again, others thought he would not survive another, and they ceased. About two months after, the trunk was found, and it was then ascertained who the thief was: and the poor fellow, after being nearly beat to death, and twice made to lie about it, was as innocent as I was."

The following statements are furnished by Major HORACE NYE, of Putnam, Muskingum county, Ohio.

"In the summer of 1837, Mr. JOHN H. MOOREHEAD, a partner of mine, descended the Mississippi with several boat loads of flour. He told me that floating in a place in the Mississippi, where he could see for miles a head, he perceived a concourse of people on the bank, that for at least a mile and a half above he saw them, and heard the screams of some person, and from a great distance, the crack of a whip, he run near the shore, and saw them whipping a black man, who was on the ground, and at that time nearly unable to scream, but the whip continued to be applied without intermission, as long as he was in sight, say from one mile and a half, to two miles below—he probably saw and heard them for one hour in all. He expressed the opinion that the man could not survive.

"About four weeks since I had a conversation with Mr. Porter, a respectable citizen of Morgan county of this state, of about fifty years of age. He told me that he formerly traveled about five years in the southern states, and that on one occasion he stopped at a private house, to stay all night; (I think it was in Virginia,) while he was conversing with the man, his wife came in, and complained that the wench had broken some article in the kitchen, and that she must be whipped. He took the *woman* into the door yard, stripped her clothes down to her hips—tied her hands together, and drawing them up to a limb, so that she could just touch the ground, took a very large cowskin whip, and commenced flogging; he said that every stroke at first raised the skin, and immediately the blood came through; this he continued, until the blood stood in a puddle down at her feet. He then turned to my informant and said, 'Well, Yankee, what do you think of that?'"

EXTRACT OF A LETTER FROM MR. W. DUSTIN, a member of the Methodist Episcopal Church, and, when the letter was written, 1835, a student of Marietta College, Ohio.

"I find by looking over my journal that the murdering, which I spoke of yesterday, took place about the first of June, 1834.

"Without commenting upon this act of cruelty, or giving vent to my own feelings, I will simply give you a statement of the fact, as known from *personal* observation.

"Dr. K. a man of wealth, and a practising physician in the county of Yazoo, state of Mississippi, personally known to me, having lived in

the same neighborhood more than twelve months, after having scourged one of his negroes for running away, declared with an oath, that if he ran away again, he would kill him. The negro, so soon as an opportunity offered, ran away again. He was caught and brought back. Again he was scourged, until his flesh, mangled and torn, and thick mingled with the clotted blood, rolled from his back. He became apparently insensible, and beneath the heaviest stroke would scarcely utter a groan. The master got tired, laid down his whip and nailed the negro's ear to a tree; in this condition, nailed fast to the rugged wood, he remained all night!

"Suffice it to say, in the conclusion, that the next day he was found DEAD!

"Well, what did they do with the master? The sum total of it is this: he was taken before a magistrate and gave bonds, for his appearance at the next court. Well, to be sure he had plenty of cash, so he paid up his bonds and moved away, and there the matter ended.

"If the above fact will be of any service to you in exhibiting to the world the condition of the unfortunate negroes, you are at liberty to make use of it in any way you think best.

Yours, fraternally, M. DUSTIN."

Mr. ALFRED WILKINSON, a member of the Baptist Church in Skeneateles, N.Y. and the assessor of that town, has furnished the following:

"I went down the Mississippi in December, 1838 and saw twelve of fourteen negroes punished on one plantation, by stretching them on a ladder and tying them to it; then stripping off their clothes, and whipping them on the naked flesh with a heavy whip, the lash seven or eight feet long: most of the strokes cut the skin. I understood they were whipped for not doing the tasks allotted to them."

FROM THE PHILANTHROPIST, Cincinnati, Ohio, Feb. 26, 1839.

"A very intelligent lady the widow of a highly respectable preacher of the gospel of the Presbyterian Church, formerly a resident of a free state, and a

colonizationist, and a strong antiabolitionist, who, although an enemy to slavery, was opposed to abolition on the ground that it was for carrying things too rapidly, and without regard to circumstances, and especially who believed that abolitionists exaggerated with regard to the evils of slavery, and used to say that such men ought to go to slave states and see for themselves, to be convinced that they did the slaveholders injustice, has gone and seen for herself. Hear her testimony."

Kentucky, Dec. 25, 1835.

"Dear Mrs. W.—I am still in the land of oppression and cruelty, but hope soon to breathe the air of a free state. My soul is sick of slavery, and I rejoice that my time is nearly expired: but the scenes that I have witnessed have made an impression that never can be effaced, and have inspired me with the determination to unite my feeble efforts with those who are laboring to suppress this horrid system. I am *now* an *abolitionist*. You will cease to be surprised at this, when I inform you, that I have just seen a poor slave who was beaten by his inhuman master until he could neither walk nor stand. I saw him from my window carried from the barn where he had been whipped to the cabin, by two negro men; and he now lies there, and if he recovers, will be a sufferer for months, and probably for life. You will doubtless suppose that he committed some great crime; but it was not so. He was called upon by a young man (the son of his master,) to do something, and not moving as quickly as his young master wished him to do, he drove him to the barn, knocked him down, and jumped upon him, stamped, and then cowhided him until he was almost dead. This is not the first act of cruelty that I have seen, though it is the *worst*; and I am convinced that those who have described the cruelties of slaveholders, have not exaggerated."

EXTRACT OF A LETTER FROM GERRIT SMITH, Esq., of Peterboro'.
N. Y. Peterboro', December 1, 1838.

To the Editor of the Union Herald: "My dear Sir:—You will be happy to hear, that the two fugitive slaves, to whom in the brotherly love of your heart, you gave the use of your horse, are still making undisturbed progress towards the *monarchical* land whither *republican*

slaves escape for the enjoyment of liberty. They had eaten their breakfast, and were seated in my wagon, before day-dawn, this morning.

"Fugitive slaves have before taken my house in their way, but never any, whose lips and persons made so forcible an appeal to my sensibilities, and kindled in me so much abhorrence of the hell-concocted system of American slavery.

"The fugitives exhibited their bare backs to myself and a number of my neighbors. Williams' back is comparatively scarred. But, I speak within bounds, when I say, that one-third to one-half of the whole surface of the back and shoulders of poor Scott, *consists of scars and wales resulting from innumerable gashes*. His natural complexion being yellow and the callous places being nearly black, his back and shoulders remind you of a spotted animal."

The LOUISVILLE REPORTER (Kentucky,) Jan. 15, 1839, contains the report of a trial for inhuman treatment of a female slave. The following is some of the testimony given in court.

"Dr. CONSTANT testified that he saw Mrs. Maxwell at the kitchen door, whipping the negro severely, without being particular whether she struck her in the face or not. The negro was lacerated by the whip, and the blood flowing. Soon after, on going down the steps, he saw quantities of blood on them, and on returning, saw them again. She had been thinly clad—barefooted in very cold weather. Sometimes she had shoes—sometimes not. In the beginning of the winter she had linsey dresses, since then, calico ones. During the last four months, had noticed many scars on her person. At one time had one of her eyes tied up for a week. During the last three months seemed declining, and had become stupified. Mr. Winters was passing along the street, heard cries, looked up through the window that was hoisted, saw the boy whipping her, as much as forty or fifty licks, while he staid. The girl was stripped down to the hips. The whip seemed to be a cow-hide. Whenever she turned her face to him, he would hit her across the face either with the butt end or small end of the whip to make her turn her back round square to the lash, that he might get a fair blow at her.

"Mr. Say had noticed several wounds on her person, chiefly bruises.

"Captain Porter, keeper of the work-house, into which Milly had been received, thought the injuries on her person very bad—some of them appeared to be burns—some bruises or stripes, as of a cow-hide."

LETTER OF REV. JOHN RANKIN, of Ripley, Ohio, to the Editor of the Philanthropist.

RIPLEY, Feb. 20, 1839.

"Some time since, a member of the Presbyterian Church of Ebenezer, Brown county, Ohio, landed his boat at a point on the Mississippi. He saw some disturbance among the colored people on the bank. He stepped up, to see what was the matter. A black man was stretched naked on the ground; his hands were tied to a stake, and one held each foot. He was doomed to receive fifty lashes; but by the time the overseer had given him twenty-five with his great whip, the blood was standing round the wretched victim in little puddles. It appeared just as if it had rained blood.—Another observer stepped up, and advised to defer the other twenty-five to another time, lest the slave might die; and he was released, to receive the balance when he should have so recruited as to be able to bear it and live. The offence was, coming one hour too late to work."

Mr. RANKIN, who is a native of Tennessee, in his letters on slavery, published fifteen years since, says:

"A respectable gentleman, who is now a citizen of Flemingsburg, Fleming county, Kentucky, when in the state of South Carolina, was invited by a slaveholder, to walk with him and take a view of his farm. He complied with the invitation thus given, and in their walk they came to the place where the slaves were at work, and found the overseer whipping one of them very severely for not keeping pace with his fellows—in vain the poor fellow alleged that he was sick, and could not work. The master seemed to think all was well enough, hence he and the gentleman passed on. In the space of an hour they returned by the same way, and found that the poor slave, who had been whipped as they first passed by the field of labor, was actually dead! This I have from unquestionable authority."

Extract of a letter from a MEMBER OF CONGRESS, to the Editor of the New York American, dated Washington, Feb. 18, 1839. The name of the writer is with the Executive Committee of the American Anti-Slavery Society.

"Three days ago, the inhabitants in the vicinity of the new Patent Building were alarmed by an outcry in the street, which proved to be that of a slave who had just been knocked down with a brick-bat by his pursuing master. Prostrate on the ground, with a large gash in his head, the poor slave was receiving the blows of his master on one side, and the kicks of his master's son on the other. His cries brought a few individuals to the spot; but no one dared to interfere, save to exclaim—You will kill him—which was met by the response, "He is mine, and I have a right to do what I please with him." The heart-rending scene was closed from *public* view by dragging the poor bruised and wounded slave from the public street into his master's stable. What followed is not known. The outcries were heard by members of Congress and others at the distance of near a quarter of a mile from the scene.

"And now, perhaps, you will ask, is not the city aroused by this flagrant cruelty and breach of the peace? I answer—not at all. Every thing is quiet. If the occurrence is mentioned at all, it is spoken of in whispers."

From the Mobile Examiner, August 1, 1837.

"POLICE REPORT—MAYOR'S OFFICE. *Saturday morning, August 12, 1837.*

"His Honor the Mayor presiding.

"Mr. MILLER, of the foundry, brought to the office this morning a small negro girl aged about eight or ten years, whom he had taken into his house some time during the previous night. She had crawled under the window of his bed room to screen herself from the night air, and to find a warmer shelter than the open canopy of heaven afforded. Of all objects of pity that have lately come to our view, this poor little girl most needs the protection of authority, and the sympathies of the

charitable. From the cruelty of her master and mistress, she has been whipped, worked and starved, until she is now a breathing skeleton, hardly able to stand upon her feet.

"The back of the poor little sufferer, (which we ourselves saw,) *was actually cut into strings, and so perfectly was the flesh worn from her limbs*, by the wretched treatment she had received, that *every joint showed distinctly its crevices* and protuberances through the skin. Her little lips clung closely over her teeth—her cheeks were sunken and her head narrowed, and when her eyes were closed, the lids resembled film more than flesh or skin.

"We would desire of our northern friends such as choose to publish to the world their own version of the case we have related, not to forget to add, in conclusion, that the owner of this little girl is a foreigner, speaks against slavery as an institution, and reads his Bible to his wife, with the view of finding proofs for his opinions."

Rev. WILLIAM SCALES, of Lyndon, Vermont, gives the following testimony in a recent letter:

"I had a class-mate at the Andover Theological Seminary, who spent a season at the south,—in Georgia, I think—who related the following fact in an address before the Seminary. It occasioned very deep sensation on the part of opponents. The gentleman was Mr. Julius C. Anthony, of Taunton, Mass. He graduated at the Seminary in 1835. I do not know where he is now settled. I have no doubt of the fact, as he was an *eye-witness* of it. The man with whom he resided had a very athletic slave—a valuable fellow—a blacksmith. On a certain day a small strap of leather was missing. The man's little son accused this slave of stealing it. He denied the charge, while the boy most confidently asserted it. The slave was brought out into the yard and bound—his hands below his knees, and a stick crossing his knees, so that he would lie upon either side in form of the letter S. One of the overseers laid on fifty lashes—he still denied the theft—was turned over and fifty more put on. Sometimes the master and sometimes the overseers whipping—as they relieved each other to take breath. Then he was for a time left to himself, and in the course of the day received FOUR HUNDRED LASHES—still denying the charge, Next morning Mr.

Anthony walked out—the sun was just rising—he saw the man greatly enfeebled, leaning against a stump. It was time to go to work—he attempted to rise, but fell back—again attempted, and again fell back—still making the attempt, and still falling back, Mr. Anthony thought, nearly *twenty times* before he succeeded in standing—he then staggered off to his shop. In course of the morning Mr. A. went to the door and looked in. Two overseers were standing by. The slave was feverish and sick—his skin and mouth dry and parched. He was very thirsty. One of the overseers, while Mr. A. was looking at him, inquired of the other whether it were not best to give him a little water. 'No. damn him, he will do well enough,' was the reply from the other overseer. This was all the relief gained by the poor slave. A few days after, the slaveholder's *son confessed that he stole the strap himself.*"

Rev. D.C. EASTMAN, a minister of the Methodist Episcopal church at Bloomingburg, Fayette county, Ohio, has just forwarded a letter, from which the following is an extract:

"GEORGE ROEBUCK, an old and respectable farmer, near Bloomingburg, Fayette county, Ohio, a member of the Methodist Episcopal church, says, that almost forty-three years ago, he saw in Bath county, Virginia, a slave girl with a sore between the shoulders of the size and shape of a *smoothing iron*. The girl was 'owned' by one M'Neil. A slaveholder who boarded at M'Neil's stated that Mrs. M'Neil had placed the aforesaid iron when hot, between the girl's shoulders, and produced the sore.

"Roebuck was once at this M'Neil's father's, and whilst the old man was at morning prayer, he heard the son plying the whip upon a slave out of doors.

"ELI WEST, of Concord township, Fayette county, Ohio, formerly of North Carolina, a farmer and an exhorter in the Methodist Protestant church, says, that many years since he went to live with an uncle who owned about fifty negroes. Soon after his arrival, his uncle ordered his waiting boy, who was *naked*, to be tied—his hands to horse rack, and his feet together, with a rail passed between his legs, and held down by a person at each end. In this position he was whipped, from neck to feet, till covered with blood; after which he was *salted*.

"His uncle's slaves received one quart of corn each day, and that only, and were allowed one hour each day to cook and eat it. They had no meat but once in the year. Such was the general usage in that country.

"West, after this, lived one year with Esquire Starky and mother. They had two hundred slaves, who received the usual treatment of starvation, nakedness, and the cowhide. They had one lively negro woman who bore no children. For this neglect, her mistress had her back made naked and a severe whipping inflicted. But as she continued barren, she was sold to the 'negro buyers.'

"THOMAS LARRIMER, a deacon in the Presbyterian church at Bloomingburg, Fayette county, Ohio, and a respectable farmer, says, that in April, 1837, as he was going down the Mississippi river, about fifty miles below Natchez, he saw ahead, on the left side of the river, a colored person tied to a post, and a man with a driver's whip, the lash about eight or ten feet long. With this the man commenced, with much deliberation, to whip, with much apparent force, and continued till he got out of sight.

"When coming up the river forty or fifty miles below Vicksburg, a Judge Owens came on board the steamboat. He was owner of a cotton plantation below there, and on being told of the above whipping, he said that slaves were often whipped to death for great offences, such as *stealing*, &c.—but that when death followed, the overseers were generally severely *reproved*!

"About the same time, he spent a night at Mr. Casey's, three miles from Columbia, South Carolina. Whilst there they heard him giving orders as to what was to be done, and amongst other things, "That nigger must be buried." On inquiry, he learnt that a gentleman traveling with a servant, had a short time previous called there, and said his servant had just been taken ill, and he should be under the necessity of leaving him. He did so. The slave became worst, and Casey called in a physician, who pronounced it an old case, and said that he must shortly die. The slave said, if that was the case he would now tell the truth. He had been attacked, a long time since, with a difficulty in the side—his master swore he would 'have his own out of him' and started off to sell

him, with a threat to kill him if he told he had been sick, more than a few days. They saw them making a rough plank box to bury him in.

"In March, 1833, twenty-five or thirty miles south of Columbia, on the great road through Sumpterville district, they saw a large company of female slaves carrying rails and building fence. Three of them were far advanced in pregnancy.

"In the month of January, 1838, he put up with a drove of mules and horses, at one Adams', on the Drovers' road, near the south border of Kentucky. His son-in-law, who had lived in the south, was there. In conversation about picking cotton, he said, 'some hands cannot get the sleight of it. I have a girl who to-day has done as good a day's work at grubbing as any *man*, but I could not make her a hand at cotton-picking. I whipped her, and if I did it once I did it five hundred times, but I found she *could* not; so I put her to carrying rails with the men. After a few days I found her shoulders were so *raw* that every rail was *bloody* as she laid it down. I asked her if she would not rather pick cotton than carry rails. 'No,' said she, 'I don't get whipped now.'"

WILLIAM A. USTICK, an elder of the Presbyterian church at Bloomingburg, and Mr. G.S. Fullerton, a merchant and member of the same church, were with Deacon Larrimer on this journey, and are witnesses to the preceding facts.

Mr. SAMUEL HALL, a teacher in Marietta College, Ohio, and formerly secretary of the Colonization society in that village, has recently communicated the facts that follow. We quote from his letter.

"The following horrid flagellation was witnessed in part, till his soul was sick, by MR. GLIDDEN, an inhabitant of Marietta, Ohio, who went down the Mississippi river, with a boat load of produce in the autumn of 1837; it took place at what is called 'Matthews' or 'Matheses Bend' in December, 1837. Mr. G. is worthy of credit.

"A negro was tied up, and flogged until the blood ran down and filled his shoes, so that when he raised either foot and set it down again, the blood would run over their tops. I could not look on any longer, but turned away in horror; the whipping was continued to the number of

500 lashes, as I understood; a quart of spirits of turpentine was then applied to his lacerated body. The same negro came down to my boat, to get some apples, and was so weak from his wounds and loss of blood, that he could not get up the bank, but fell to the ground. The crime for which the negro was whipped, was that of telling the other negroes, that *the overseer had lain with his wife.*"

Mr. Hall adds:—

"The following statement is made by a young man from Western Virginia. He is a member of the Presbyterian Church, and a student in Marietta College. All that prevents the introduction of his *name*, is the peril to his life, which would probably be the consequence, on his return to Virginia. His character for integrity and veracity is above suspicion.

"On the night of the great meteoric shower, in Nov. 1833. I was at Remley's tavern, 12 miles west of Lewisburg, Greenbrier Co., Virginia. A drove of 50 or 60 negroes stopped at the same place that night. They usually 'camp out,' but as it was excessively muddy, they were permitted to come into the house. So far as my knowledge extends, 'droves,' on their way to the south, eat but twice a day, early in the morning and at night. Their supper was a compound of 'potatoes and meal,' and was, without exception, the *dirtyest, blackest looking mess I ever saw*. I remarked at the time that the food was not as clean, in appearance, as that which was given to a *drove of hogs*, at the same place the night previous. Such as it was, however, a black woman brought it on her head, in a tray or trough two and a half feet long, where the men and women were promiscuously herded. The slaves rushed up and seized it from the trough in handfulls, before the woman could take it off her head. They jumped at it as if half-famished.

"They slept on the floor of the room which they were permitted to occupy, lying in every form imaginable, males and females, promiscuously. They were so thick on the floor, that in passing through the room it was necessary to step over them.

"There were three drivers, one of whom staid in the room to watch the drove, and the other two slept in an adjoining room. Each of the latter took a female from the drove to lodge with him, as is the common practice of the drivers generally. There is no doubt about this particular instance, *for they were seen together*. The mud was so thick on the floor where this drove slept, that it was necessary to take a shovel, the next morning, and clear it out. Six or eight in this drove were chained; all were for the south.

In the autumn of the same year I saw a drove of upwards of a hundred, between 40 and 50 of them were fastened to one chain, the links being made of iron rods, as thick in diameter as a man's little finger. This drove was bound westward to the Ohio river, to be shipped to the south. I have seen many droves, and more or less in each, almost without exception, were chained. I never saw but one drove, that went on their way making merry. In that one they were blowing horns, singing, &c., and appeared as if they had been drinking whisky.

"They generally appear extremely dejected. I have seen in the course of five years, on the road near where I reside, 12 or 15 droves at least, passing to the south. They would average 40 in each drove. Near the first of January, 1834, I started about sunrise to go to Lewisburg. It was a bitter cold morning. I met a drove of negroes, 30 or 40 in number, remarkably ragged and destitute of clothing. One little boy particularly excited my sympathy. He was some distance behind the others, not being able to keep up with the rest. Although he was shivering with cold and crying, the driver was pushing him up in a trot to overtake the main gang. All of them looked as if they were half-frozen. There was one remarkable instance of tyranny, exhibited by a boy, not more than eight years old, that came under my observation, in a family by the name of D——n, six miles from Lewisburg. This youngster would swear at the slaves, and exert all the strength he possessed, to flog or beat them, with whatever instrument or weapon he could lay hands on, provided they did not obey him *instantly*. He was encouraged in this by his father, the master of the slaves. The slaves often fled from this young tyrant in terror."

Mr. Hall adds:—

"The following extract is from a letter, to a student in Marietta College, by his friend in Alabama. With the writer, Mr. Isaac Knapp, I am perfectly acquainted. He was a student in the above College, for the space of one year, before going to Alabama, was formerly a resident of Dummerston, Vt. He is a professor of religion, and as worthy of belief as any member of the community. Mr. K. has returned from the South, and is now a member of the same college.

"In Jan. (1838) a negro of a widow Phillips, runaway, was taken up, and confined in Pulaski jail. One Gibbs, overseer for Mrs. P., mounted on horseback, took him from confinement, compelled him to run back to Elkton, a distance of fifteen miles, whipping him all the way. When he reached home, the negro exhausted and worn out, exclaimed, 'you have broke my heart,' i.e. you have killed me. For this, Gibbs flew into a violent passion, tied the negro to a stake, and, in the language of a witness, '*cut his back to mince-meat.*' But the fiend was not satisfied with this. He burnt his legs to a blister, with hot embers, and then chained him *naked*, in the open air, weary with running, weak from the loss of blood, and smarting from his burns. It was a cold night—and *in the morning the negro was dead*. Yet this monster escaped without even *the shadow* of a trial. 'The negro,' said the doctor, 'died, by—he knew not what; any how, Gibbs did not kill him.'^[9] A short time since, (the letter is dated, April, 1838.) 'Gibbs whipped another negro unmercifully because the horse, with which he was ploughing, broke the reins and ran. He then raised his whip against Mr. Bowers, (son of Mrs. P.) who shot him. Since I came here,' (a period of about six months,) there have been eight white men and two negroes killed, within 30 miles of me."

[Footnote ⁹: Mr. Knapp, gives me some further verbal particulars about this affair. He says that his informant saw the negro dead the next morning, that his legs were blistered, and that the negroes affirmed that Gibbs compelled them to throw embers upon him. But Gibbs denied it, and said the blistering was the effect of frost, as the negro was much exposed to before being taken up. Mr. Bowers, a son of Mrs. Phillips by a former husband, attempted to have Gibbs brought to justice, but his mother justified Gibbs,

and nothing was therefore done about it. The affair took place in Upper Elkton, Tennessee, near the Alabama line.]

The following is from Mr. Knapp's own lips, taken down a day or two since.

"Mr. Buster, with whom I boarded, in Limestone Co., Ala., related to me the following incident: 'George a slave belonging to one of the estates in my neighborhood, was lurking about my residence without a pass. We were making preparations to give him a flogging, but he escaped from us. Not long afterwards, meeting a patrol which had just taken a negro in custody without a pass, I inquired, Who have you there? on learning that it was *George*, well, I rejoined, there is a small matter between him and myself that needs adjustment, so give me the raw hide, which I accordingly took, and laid 60 strokes on his back, to the utmost of my strength.' I was speaking of this barbarity, afterwards, to Mr. Bradley, an overseer of the Rev. Mr. Donnell, who lives in the vicinity of Moresville, Ala., 'Oh,' replied he, 'we consider *that* a very light whipping here' Mr. Bradley is a professor of religion, and is esteemed in that vicinity a very pious, exemplary Christian."

EXTRACT OF A LETTER FROM REV. C. STEWART RENSHAW, of Quincy, Illinois, dated Jan. 1, 1839.

"I do not feel at liberty to disclose the name of the brother who has furnished the following facts. He is highly esteemed as a man of scrupulous veracity. I will confirm my own testimony by the certificate of Judge Snow and Mr. Keyes, two of the oldest and most respectable settlers in Quincy."

"Quincy, Dec. 29, 1838

"Dear Sir,—We have been long acquainted with the Christian brother who has named to you some facts that fell under his observation while a resident of slave states. He is a member of a Christian church, in good standing; and is a man of strict integrity of character.

Henry H. Snow, Willard Keyes.
Rev. C. Stewart Renshaw."

"My informant spent thirty years of his life in Kentucky and Missouri. Whilst in Kentucky he resided in Hardin co. I noted down his testimony very nearly in his own words, which will account for their *evidence-like* form. On the general condition of the slaves in Kentucky, through Hardin co., he said, their houses were very uncomfortable, generally without floors, other than the earth: many had puncheon floors, but he never remembers to have seen a plank floor. In regard to clothing they were very badly off. In summer they cared little for clothing; but in winter they almost froze. Their rags might hide their nakedness from the sun in summer, but would not protect them from the cold in winter. Their bed-clothes were tattered rags, thrown into a corner by day, and drawn before the fire by night. 'The only thing,' said he, 'to which I can compare them, in winter, is *stock without a shelter*.'

"He made the following comparison between the condition of slaves in Kentucky and Missouri. So far as he was able to compare them, he said, that in Missouri the slaves had better *quarters*-but are not so well clad, and are more severely punished than in Kentucky. In both states, the slaves are huddled together, without distinction of sex, into the same quarter, till it is filled, then another is built; often two or three families in a log hovel, twelve feet square.

"It is proper to state, that the sphere of my informant's observation was mainly in the region of Hardin co., Kentucky, and the eastern part of Missouri, and not through those states generally.

"Whilst at St. Louis, a number of years ago, as he was going to work with Mr. Henry Males, and another carpenter, they heard groans from a barn by the road-side: they stopped, and looking through the cracks of the barn, saw a negro bound hand and foot to a post, so that his toes just touched the ground; and his master, Captain Thorpe, was inflicting punishment; he had whipped him till exhausted,—rested himself, and returned again to the punishment. The wretched sufferer was in a most pitiable condition, and the warm blood and dry dust of the barn had formed a mortar up to his instep. Mr. Males jumped the fence, and remonstrated so effectually with Capt. Thorpe, that he ceased the punishment. It was six weeks before that slave could put on his shirt!

"John Mackey, a rich slaveholder, lived near Clarksville, Pike co., Missouri, some years since. He whipped his slave Billy, a boy fourteen years old, till he was sick and stupid; he then sent him home. Then, for his stupidity, whipped him again, and fractured his skull with an axe-helve. He buried him away in the woods; dark words were whispered, and the body was disinterred. A coroner's inquest was held, and Mr. R. Anderson, the coroner, brought in a verdict of death from fractured skull, occasioned by blows from an axe-handle, inflicted by John Mackey. The case was brought into court, but Mackey was rich, and his murdered victim was his SLAVE; after expending about \$500 he walked free.

"One Mrs. Mann, living near ———, in ——— co., Missouri was known to be very cruel to her slaves. She had a bench made purposely to whip them upon; and what she called her "six pound paddle," an instrument of prodigious torture, bored through with holes; this she would wield with both hands as she stood over her prostrate victim.

"She thus punished a hired slave woman named Fanny, belonging to Mr. Charles Trabue, who lives near Palmyra, Marion co., Missouri; on the morning after the punishment Fanny was a corpse; she was silently and quickly buried, but rumor was not so easily stopped. Mr. Trabue heard of it, and commenced suit for his *property*. The murdered slave was disinterred, and an inquest held; her back was a mass of jellied muscle; and the coroner brought in a verdict of death by the 'six pound paddle.' Mrs. Mann fled for a few months, but returned again, and her friends found means to protract the suit.

"This same Mrs. Mann had another hired slave woman living with her, called Patterson's Fanny, she belonged to a Mr. Patterson; she had a young babe with her, just beginning to creep. One day, after washing, whilst a tub of rinsing water yet stood in the kitchen, Mrs. Mann came out in haste, and sent Fanny to do something out of doors. Fanny tried to beg off—she was afraid to leave her babe, lest it should creep to the tub and get hurt—Mrs. M. said she would watch the babe, and sent her off. She went with much reluctance, and heard the child struggle as she went out the door. Fearing lest Mrs. M. should leave the babe alone, she watched the room, and soon saw her pass out of the opposite door.

Immediately Fanny hurried in, and looked around for her babe, she could not see it, she looked at the tub—there her babe was floating, a strangled corpse. The poor woman gave a dreadful scream; and Mrs. M. rushed into the room, with her hands raised, and exclaimed, 'Heavens, Fanny! have you drowned your child?' It was vain for the poor bereaved one to attempt to vindicate herself: in vain she attempted to convince them that the babe had not been alone a moment, and could not have drowned itself; and that she had not been in the house a moment, before she screamed at discovering her drowned babe. All was false! Mrs. Mann declared it was all pretence—that Fanny had drowned her own babe, and now wanted to lay the blame upon her! and Mrs. Mann was a white woman—of course her word was more valuable than the oaths of all the slaves of Missouri. No evidence but that of slaves could be obtained, or Mr. Patterson would have prosecuted for his 'loss of property.' As it was, every one believed Mrs. M. guilty, though the affair was soon hushed up."

Extract of a letter from Col. THOMAS ROGERS, a native of Kentucky, now an elder in the Presbyterian Church at New Petersburg, Highland co., Ohio.

"When a boy, in Bourbon co., Kentucky, my father lived near a slaveholder of the name of Clay, who had a large number of slaves; I remember being often at their quarters; not one of their shanties, or hovels, had any floor but the earth. Their clothing was truly neither fit for covering nor decency. We could distinctly, of a still morning, hear this man whipping his blacks, and hear their screams from my father's farm; this could be heard almost any still morning about the dawn of day. It was said to be his usual custom to repair, about the break of day, to their cabin doors, and, as the blacks passed out, to give them as many strokes of his cowskin as opportunity afforded; and he would proceed in this manner from cabin to cabin until they were all out. Occasionally some of his slaves would abscond, and upon being retaken they were punished severely; and some of them, it is believed, died in consequence of the cruelty of their usage. I saw one of this man's slaves, about seventeen years old, wearing a collar, with long iron horns extending from his shoulders far above his head.

"In the winter of 1828-29 I traveled through part of the states of Maryland and Virginia to Baltimore. At Frost Town, on the national road, I put up for the night. Soon after, there came in a slaver with his drove of slaves; among them were two young men, chained together. The bar room was assigned to them for their place of lodging—those in chains were guarded when they had to go out. I asked the 'owner' why he kept these men chained; he replied, that they were stout young fellows, and should they rebel, he and his son would not be able to manage them. I then left the room, and shortly after heard a *scream*, and when the landlady inquired the cause, the slaver coolly told her not to trouble herself, he was only chastising one of his women. It appeared that three days previously her child had died on the road, and been thrown into a hole or crevice in the mountain, and a few stones thrown over it; and the mother weeping for her child was chastised by her master, and told by him, she 'should have something to cry for.' The name of this man I can give if called for.

"When engaged in this journey I spent about one month with my relations in Virginia. It being shortly after new year, *the time of hiring* was over; but I saw the pounds, and the scaffolds which remained of the pounds, in which the slaves had been penned up"

M. GEORGE W. WESTGATE, of Quincy, Illinois, who lived in the southwestern slave states a number of years, has furnished the following statement.

"The great mass of the slaves are under drivers and overseers. I never saw an overseer without a whip; the whip usually carried is a short loaded stock, with a heavy lash from five to six feet long. When they whip a slave they make him pull off his shirt, if he has one, then make him lie down on his face, and taking their stand at the length of the lash, they inflict the punishment. Whippings are so *universal* that a negro that has not been whipped is talked of in all the region as a wonder. By whipping I do not mean a few lashes across the shoulders, but a set flogging, and generally *lying down*.

"On sugar plantations generally, and on some cotton plantations, they have negro drivers, who are in such a degree responsible for their

gang, that if they are at fault, the driver is whipped. The result is, the gang are constantly driven by him to the extent of the influence of the lash; and it is uniformly the case that gangs dread a negro driver more than a white overseer.

"I spent a winter on widow Culvert's plantation, near Rodney, Mississippi, but was not in a situation to see extraordinary punishments. Bellows, the overseer, for a trifling offence, took one of the slaves, stripped him, and with a piece of burning wood applied to his posteriors, burned him cruelly; while the poor wretch screamed in the greatest agony. The principal preparation for punishment that Bellows had, was single handcuffs made of iron, with chains, by which the offender could be chained to four stakes on the ground. These are very common in all the lower country. I noticed one slave on widow Calvert's plantation, who was whipped from twenty-five to fifty lashes every fortnight during the whole winter. The expression 'whipped to death,' as applied to slaves, is common at the south.

"Several years ago I was going below New Orleans, in what is called the Plaquemine country, and a planter sent down in my boat a runaway he had found in New Orleans, to his plantation at Orange 5 Points. As we came near the Points he told me, with deep feeling, that he expected to be whipped almost to death: pointing to a graveyard, he said, 'There lie five who were whipped to death.' Overseers generally keep some of the women on the plantation; I scarce know an exception to this. Indeed, their intercourse with them is very much promiscuous, —they show them not much, if any favor. Masters frequently follow the example of their overseers in this thing.

"GEORGE W. WESTGATE."

II. TORTURES, BY IRON COLLARS, CHAINS, FETTERS, HANDCUFFS, &c.

The slaves are often tortured by iron collars, with long prongs or "horns" and sometimes bells attached to them—they are made to wear chains, handcuffs, fetters, iron clogs, bars, rings, and bands of iron upon their limbs, iron masks upon their faces, iron gags in their mouths, &c.

In proof of this, we give the testimony of slaveholders themselves, under their own names; it will be mostly in the form of extracts from their own advertisements, in southern newspapers, in which, describing their runaway slaves, they specify the iron collars, handcuffs, chains, fetters, &c., which they wore upon their necks, wrists, ankles, and other parts of their bodies. To publish the *whole* of each advertisement, would needlessly occupy space and tax the reader; we shall consequently, as heretofore, give merely the name of the advertiser, the name and date of the newspaper containing the advertisement, with the place of publication, and only so much of the advertisement as will give the particular *fact*, proving the truth of the assertion contained in the *general head*.

William Toler, sheriff of Simpson county, Mississippi, in the "Southern Sun," Jackson, Mississippi, September 22, 1838.

"Was committed to jail, a yellow boy named Jim—had on a *large lock chain around his neck*."

Mr. James R. Green, in the "Beacon," Greensborough, Alabama, August 23, 1838.

"Ranaway, a negro man named Squire—had on a *chain locked with a house-lock, around his neck*."

Mr. Hazlet Loflano, in the "Spectator," Staunton, Virginia, Sept. 27, 1838.

"Ranaway, a negro named David—with some *iron hobbles around each ankle*."

Mr. T. Enggy, New Orleans, Gallatin street, between Hospital and Barracks, N.O. "Bee," Oct. 27, 1837.

"Ranaway, negress Caroline—had on a *collar with one prong turned down.*"

Mr. John Henderson, Washington, county, Mi., in the "Grand Gulf Advertiser," August 29, 1838.

"Ranaway, a black woman, Betsey—had an *iron bar on her right leg.*"

William Dyer sheriff, Claiborne, Louisiana, in the "Herald," Natchitoches, (La.) July 26, 1837.

"Was committed to jail, a negro named Ambrose—has a *ring of iron around his neck.*"

Mr. Owen Cooke, "Mary street, between Common and Jackson streets," New Orleans, in the N.O. "Bee," September 12, 1837.

"Ranaway, my slave Amos, had a *chain* attached to one of his legs"

H.W. Rice, sheriff, Colleton district, South Carolina, in the "Charleston Mercury," September 1, 1838.

"Committed to jail, a negro named Patrick, about forty-five years old, and is *handcuffed.*"

W.P. Reeves, jailor, Shelby county, Tennessee, in the "Memphis Enquirer," June 17, 1837.

"Committed to jail, a negro—had on his right leg an *iron band* with one link of a chain."

Mr. Francis Durett, Lexington, Lauderdale county, Ala., in the "Huntsville Democrat," August 29, 1837.

"Ranaway, a negro man named Charles—had on a *drawing chain*, fastened around his ankle with a house lock."

Mr. A. Murat, Baton Rouge, in the New Orleans "Bee," June 20, 1837.

"Ranaway, the negro Manuel, *much marked with irons.*"

Mr. Jordan Abbott, in the "Huntsville Democrat," Nov. 17, 1838.

"Ranaway, a negro boy named Daniel, about nineteen years old, and was *handcuffed*."

Mr. J. Macoin, No. 177 Ann street, New Orleans, in the "Bee," August 11, 1838.

"Ranaway, the negress Fanny—had on an *iron band about her neck*."

Menard Brothers, parish of Bernard, Louisiana, In the N.O. "Bee," August 18, 1838.

"Ranaway, a negro named John—having an *iron around his right foot*."

Messrs. J.L. and W.H. Bolton, Shelby county, Tennessee, in the "Memphis Enquirer," June 7, 1837.

"Absconded, a colored boy named Peter—had an *iron round his neck* when he went away."

H. Gridly, sheriff of Adams county, Mi., in the "Memphis (Tenn.) Times," September, 1834.

"Was committed to jail, a negro boy—had on a *large neck iron* with a *huge pair of horns and a large bar or band of iron* on his left leg."

Mr. Lambre, in the "Natchitoches (La.) Herald," March 29, 1837.

"Ranaway, the negro boy Teams—he had on his neck an *iron collar*."

Mr. Ferdinand Lemos, New Orleans, in the "Bee," January 29, 1838.

"Ranaway, the negro George—he had on *his neck an iron collar*, the branches of which had been taken off"

Mr. T.J. De Yampert, merchant, Mobile, Alabama, of the firm of De Yampert, King & Co., in the "Mobile Chronicle," June 15, 1838.

"Ranaway, a negro boy about *twelve* years old—had round his neck a *chain dog-collar*, with 'De Yampert' engraved on it."

J.H. Hand, jailor, St. Francisville, La., in the "Louisiana Chronicle," July 26, 1837.

"Committed to jail, slave John—has several scars on his wrists, occasioned, as he says, by *handcuffs*."

Mr. Charles Curener, New Orleans, in the "Bee," July 2, 1838.

"Ranaway, the negro, Hown—has a ring of iron on his left foot. Also, Grise, his wife, having a *ring and chain on the left leg*."

Mr. P.T. Manning, Huntsville, Alabama, in the "Huntsville Advocate," Oct. 23, 1838.

"Ranaway, a negro boy named James—said boy was *ironed* when he left me."

Mr. William L. Lambeth, Lynchburg, Virginia, in the "Moulton [Ala.] Whig," January 30, 1836.

"Ranaway, Jim—had on when he escaped a pair of *chain handcuffs*."

Mr. D.F. Guex, Secretary of the Steam Cotton Press Company, New Orleans, in the "Commercial Bulletin," May 27, 1837.

"Ranaway, Edmund Coleman—it is supposed he must have *iron shackles on his ankles*."

Mr. Francis Durett, Lexington, Alabama, in the "Huntsville Democrat," March 8, 1838.

"Ranaway ——, a mulatto—had on when he left, a *pair of handcuffs* and a *pair of drawing chains*."

B.W. Hodges, jailor, Pike county, Alabama, in the "Montgomery Advertiser," Sept. 29, 1837.

"Committed to jail, a man who calls his name John—he has a *clog of iron on his right foot which will weigh four or five pounds*."

P. Bayhi captain of police, in the N.O. "Bee," June 9, 1838.

"Detained at the police jail, the negro wench Myra—has several marks of *lashing*, and has *irons on her feet*."

Mr. Charles Kernin, parish of Jefferson, Louisiana, in the N.O. "Bee," August 11, 1837.

"Ranaway, Betsey—when she left she had on her *neck an iron collar*."

The foregoing advertisements are sufficient for our purpose, scores of similar ones may be gathered from the newspapers of the slave states every month.

To the preceding testimony of slaveholders, published by themselves, and vouched for by their own signatures, we subjoin the following testimony of other witnesses to the same point.

JOHN M. NELSON, Esq., a native of Virginia, now a highly respected citizen of highland county, Ohio, and member of the Presbyterian Church in Hillsborough, in a recent letter states the following:—

"In Staunton, Va., at the house of Mr. Robert M'Dowell, a merchant of that place, I once saw a colored woman, of intelligent and dignified appearance, who appeared to be attending to the business of the house, with an *iron collar* around her neck, with horns or prongs extending out on either side, and up, until they met at something like a foot above her head, at which point there was a bell attached. This *yoke*, as they called it, I understood was to prevent her from running away, or to punish her for having done so. I had frequently seen *men* with iron collars, but this was the first instance that I recollect to have seen a *female* thus degraded."

Major HORACE NYE, an elder in the Presbyterian Church at Putnam, Muskingum county, Ohio, in a letter, dated Dec. 5, 1838, makes the following statement:—

"Mr. Wm. Armstrong, of this place, who is frequently employed by our citizens as captain and supercargo of descending boats, whose word may be relied on, has just made to me the following statement:—

"While laying at Alexandria, on Red River, Louisiana, he saw a slave brought to a blacksmith's shop and a collar of iron fastened round his

neck, with two pieces rivetted to the sides, meeting some distance above his head. At the top of the arch, thus formed, was attached a large cow-bell, the motion of which, while walking the streets, made it necessary for the slave to hold his hand to one of its sides, to steady it.

"In New Orleans he saw several with iron collars, with horns attached to them. The first he saw had three prongs projecting from the collar ten or twelve inches, with the letter S on the end of each. He says iron collars are quite frequent there."

To the preceding Major Nye adds:—

"When I was about twelve years of age I lived at Marietta, in this state: I knew little of slaves, as there were few or none, at that time, in the part of Virginia opposite that place. But I remember seeing a slave who had run away from some place beyond my knowledge at that time: he had an iron collar round his neck, to which was a strap of iron rivetted to the collar, on each side, passing over the top of the head; and another strap, from the back side to the top of the first—thus inclosing the head on three sides. I looked on while the blacksmith severed the collar with a file, which, I think, took him more than an hour."

Rev. JOHN DUDLEY, Mount Morris, Michigan, resided as a teacher at the missionary station, among the Choctaws, in Mississippi, during the years 1830 and 31. In a letter just received Mr. Dudley says:—

"During the time I was on missionary ground, which was in 1830 and 31, I was frequently at the residence of the agent, who was a slaveholder.—I never knew of his treating his own slaves with cruelty; but the poor fellows who were escaping, and lodged with him when detected, found no clemency. I once saw there a fetter for '*the d——d runaways*,' the weight of which can be judged by its size. It was at least three inches wide, half an inch thick, and something over a foot long. At this time I saw a poor fellow compelled to work in the field, at 'logging,' with such a galling fetter on his ankles. To prevent it from wearing his ankles, a string was tied to the centre, by which the victim suspended it when he walked, with one hand, and with the other carried his burden. Whenever he lifted, the fetter rested on his bare ankles. If he lost his balance and made a misstep, which must very often occur in lifting and rolling logs, the torture of his fetter was severe. Thus he

was doomed to work while wearing the torturing iron, day after day, and at night he was confined in the runaways' jail. Some time after this, I saw the same dejected, heart-broken creature obliged to wait on the other hands, who were husking corn. The privilege of sitting with the others was too much for him to enjoy; he was made to hobble from house to barn and barn to house, to carry food and drink for the rest. He passed round the end of the house where I was sitting with the agent: he seemed to take no notice of me, but fixed his eyes on his tormentor till he passed quite by us."

Mr. ALFRED WILKINSON, member of the Baptist Church in Skeneateles, N.Y. and an assessor of that town, testifies as follows :—

"I stayed in New Orleans three weeks: during that time there used to pass by where I stayed a number of slaves, each with an iron band around his ankle, a chain attached to it, and an eighteen pound ball at the end. They were employed in wheeling dirt with a wheelbarrow; they would put the ball into the barrow when they moved.—I recollect one day, that I counted nineteen of them, sometimes there were not as many; they were driven by a slave, with a long lash, as if they were beasts. These, I learned, were runaway slaves from the plantations above New Orleans.

"There was also a negro woman, that used daily to come to the market with milk; she had an iron band around her neck, with three rods projecting from it, about sixteen inches long, crooked at the ends."

For the fact which follows we are indebted to Mr. SAMUEL HALL, a teacher in Marietta College, Ohio. We quote his letter.

"Mr. Curtis, a journeyman cabinet-maker, of Marietta, relates the following, of which he was an eye witness. Mr. Curtis is every way worthy of credit.

"In September, 1837, at 'Milligan's Bend,' in the Mississippi river, I saw a negro with an iron band around his head, locked behind with a padlock. In the front, where it passed the mouth, there was a projection inward of an inch and a half, which entered the mouth.

"The overseer told me, he was so addicted to running away, it did not do any good to whip him for it. He said he kept this gag constantly on

him, and intended to do so as long as he was on the plantation: so that, if he ran away, he could not eat, and would starve to death. The slave asked for drink in my presence; and the overseer made him lie down on his back, and turned water on his face two or three feet high, in order to torment him, as he could not swallow a drop.—The slave then asked permission to go to the river; which being granted, he thrust his face and head entirely under the water, that being the only way he could drink with his gag on. The gag was taken off when he took his food, and then replaced afterwards."

EXTRACT OF A LETTER FROM MRS. SOPHIA LITTLE, of Newport, Rhode Island, daughter of Hon. Asher Robbins, senator in Congress for that state.

"There was lately found, in the hold of a vessel engaged in the southern trade, by a person who was clearing it out, an iron collar, with three horns projecting from it. It seems that a young female slave, on whose slender neck was riveted this fiendish instrument of torture, ran away from her tyrant, and begged the captain to bring her off with him. This the captain refused to do; but unriveted the collar from her neck, and threw it away in the hold of the vessel. The collar is now at the anti-slavery office, Providence. To the truth of these facts Mr. William H. Reed, a gentleman of the highest moral character, is ready to vouch.

"Mr. Reed is in possession of many facts of cruelty witnessed by persons of veracity; but these witnesses are not willing to give their names. One case in particular he mentioned. Speaking with a certain captain, of the state of the slaves at the south, the captain contended that their punishments were often very *lenient*; and, as an instance of their excellent clemency, mentioned, that in one instance, not wishing to whip a slave, they sent him to a blacksmith, and had an iron band fastened around him, with three long projections reaching above his head; and this he wore some time."

EXTRACT OF A LETTER FROM MR. JONATHON F. BALDWIN, of Lorain county, Ohio. Mr. B. was formerly a merchant in Massillon, Ohio, and an elder in the Presbyterian Church there.

"Dear Brother,—In conversation with Judge Lyman, of Litchfield county, Connecticut, last June, he stated to me, that several years since he was in Columbia, South Carolina, and observing a colored man lying on the floor of a blacksmith's shop, as he was passing it, his curiosity led him in. He learned the man was a slave and rather unmanageable. Several men were attempting to detach from his ankle an iron which had been bent around it.

"The iron was a piece of a flat bar of the ordinary size from the forge hammer, and bent around the ankle, the ends meeting, and forming a hoop of about the diameter of the leg. There was one or more strings attached to the iron and extending up around his neck, evidently so to suspend it as to prevent its galling by its weight when at work, yet it had galled or griped till the leg had swollen out beyond the iron and inflamed and suppurated, so that the leg for a considerable distance above and below the iron, was a mass of putrefaction, the most loathsome of any wound he had ever witnessed on any living creature. The slave lay on his back on the floor, with his leg on an anvil which sat also on the floor, one man had a chisel used for splitting iron, and another struck it with a sledge, to drive it between the ends of the hoop and separate it so that it might be taken off. Mr. Lyman said that the man swung the sledge over his shoulders as if splitting iron, and struck many blows before he succeeded in parting the ends of the iron at all, the bar was so large and stubborn—at length they spread it as far as they could without driving the chisel so low as to ruin the leg. The slave, a man of twenty-five years, perhaps, whose countenance was the index of a mind ill adapted to the degradations of slavery, never uttered a word or a groan in all the process, but the copious flow of sweat from every pore, the dreadful contractions and distortions of every muscle in his body, showed clearly the great amount of his sufferings; and all this while, such was the diseased state of the limb, that at every blow, the bloody, corrupted matter gushed out in all directions several feet, in such profusion as literally to cover a large area around the anvil. After various other fruitless attempts to spread the iron, they concluded it was necessary to weaken by filing before it could be got off which he left them attempting to do."

Mr. WILLIAM DROWN, a well known citizen of Rhode Island, formerly of Providence, who has traveled in nearly all the slave states, thus testifies in a recent letter:

"I recollect seeing large gangs of slaves, generally a considerable number in each gang, being chained, passing westward over the mountains from Maryland, Virginia, &c. to the Ohio. On that river I have frequently seen flat boats loaded with them, and their keepers armed with pistols and dirks to guard them.

"At New Orleans I recollect seeing gangs of slaves that were driven out every day, the Sabbath not excepted, to work on the streets. These had heavy chains to connect two or more together, and some had iron collars and yokes, &c. The noise as they walked, or worked in their chains, was truly dreadful!"

Rev. THOMAS SAVAGE, pastor of the Congregational Church at Bedford, New Hampshire, who was for some years a resident of Mississippi and Louisiana, gives the following fact, in a letter dated January 9, 1839.

"In 1819, while employed as an instructor at Second Creek, near Natchez, Mississippi, I resided on a plantation where I witnessed the following circumstance. One of the slaves was in the habit of running away. He had been repeatedly taken, and repeatedly whipped, with great severity, but to no purpose. He would still seize the first opportunity to escape from the plantation. At last his owner declared, I'll fix him, I'll put a stop to his running away. He accordingly took him to a blacksmith, and had an *iron head-frame* made for him, which may be called lock-jaw, from the use that was made of it. It had a lock and key, and was so constructed, that when on the head and locked, the slave could not open his mouth to take food, and the design was to prevent his running away. But the device proved unavailing. He was soon missing, and whether by his own desperate effort, or the aid of others, contrived to sustain himself with food; but he was at last taken, and if my memory serves me, his life was soon terminated by the cruel treatment to which he was subjected."

The Western Luminary, a religious paper published at Lexington, Kentucky, in an editorial article, in the summer of 1833, says:

"A few weeks since we gave an account of a company of men, women and children, part of whom were manacled, passing through our streets. Last week, a number of slaves were driven through the main street of our city, among whom were a number manacled together, two abreast, all connected by, and supporting a *heavy iron chain*, which extended the whole length of the line."

TESTIMONY OF A VIRGINIAN.

The *name* of this witness cannot be published, as it would put him in peril; but his *credibility* is vouched for by the Rev. Ezra Fisher, pastor of the Baptist Church, Quincy, Illinois, and Dr. Richard Eels, of the same place. These gentlemen say of him, "We have great confidence in his integrity, discretion, and strict Christian principle." He says—

"About five years ago, I remember to have passed, in *a single day*, four droves of slaves for the south west; the largest drove had 350 slaves in it, and the smallest upwards of 200. I counted 68 or 70 in a single *coffle*. The '*coffle chain*' is a chain fastened at one end to the centre of the bar of a pair of hand cuffs, which are fastened to the right wrist of one, and the left wrist of another slave, they standing abreast, and the chain between them. These are the head of the coffle. The other end is passed through a ring in the bolt of the next handcuffs, and the slaves being manacled thus, two and two together, walk up, and the coffle chain is passed, and they go up towards the head of the coffle. Of course they are closer or wider apart in the coffle, according to the number to be coffled, and to the length of the chain. *I have seen HUNDREDS of droves and chain-coffles of this description*, and every coffle was a scene of misery and wo, of tears and brokenness of heart."

Mr. SAMUEL HALL a teacher in Marietta College, Ohio, gives, in a late letter, the following statement of a fellow student, from Kentucky, of whom he says, "he is a professor of religion, and worthy of entire confidence."

"I have seen at least *fifteen* droves of 'human cattle,' passing by us on their way to the south; and I do not recollect an exception, where there were not more or less of them *chained* together."

Mr. GEORGE P.C. HUSSEY, of Fayetteville, Franklin county, Pennsylvania, writes thus:

"I was born and raised in Hagerstown, Washington county, Maryland, where slavery is perhaps milder than in any other part of the slave states; and yet I have seen *hundreds* of colored men and women chained together, two by two, and driven to the south. I have seen slaves tied up and lashed till the blood ran down to their heels."

Mr. GIDDINGS, member of Congress from Ohio, in his speech in the House of Representatives, Feb. 13, 1839, made the following statement:

"On the beautiful avenue in front of the Capitol, members of Congress, during this session, have been compelled to turn aside from their path, to permit a coffle of slaves, males and females, *chained to each other by their necks*, to pass on their way to this *national slave market*."

Testimony of JAMES K. PAULDING, Esq. the present Secretary of the United States' Navy.

In 1817, Mr. Paulding published a work, entitled 'Letters from the South, written during an excursion in the summer of 1816.' In the first volume of that work, page 128, Mr. P. gives the following description:

"The sun was shining out very hot—and in turning the angle of the road, we encountered the following group: first, a little cart drawn by one horse, in which five or six half naked black children were tumbled like pigs together. The cart had no covering, and they seemed to have been broiled to sleep. Behind the cart marched three black women, with head, neck and breasts uncovered, and without shoes or stockings: next came three men, bare-headed, and *chained together with an ox-chain*. Last of all, came a white man on horse back, carrying his pistols in his belt, and who, as we passed him, had the impudence to look us in the face without blushing. At a house where we stopped a little further on, we learned that he had bought these miserable beings in Maryland, and was marching them in this manner to one of the more southern states. Shame on the State of Maryland! and I say, shame on the State of Virginia! and every state through which this wretched cavalcade was permitted to pass! I do say, that when they (the slaveholders) permit such flagrant and indecent outrages upon humanity as that I have described; when they sanction a villain in thus marching half naked women and men, loaded with chains, without being charged with any crime but that of being *black* from one section of the United States to another, hundreds of miles in the face of day, they disgrace themselves, and the country to which they belong." [\[10\]](#)

[Footnote [10](#): The fact that Mr. Paulding, in the reprint of these "Letters," in 1835, struck out this passage with all others disparaging to slavery and its supporters, does not impair the force of his testimony, however much it may sink the man. Nor will the next generation regard with any more reverence, his character as a prophet, because in the edition of 1835, two years after the American Antislavery Society was formed, and when its auxiliaries were numbered by hundreds, he inserted a *prediction* that such movements would be made at the North, with most disastrous results. "Wot ye not that such a man as I can certainly divine!" Mr. Paulding has already been taught by Judge Jay, that he who aspires to the fame of an oracle, without its inspiration, must resort to other expedients to prevent detection, than the clumsy one of *antedating* his responses.]

III. BRANDINGS, MAIMINGS, GUY-SHOT WOUNDS, &c.

The slaves are often branded with hot irons, pursued with fire arms and *shot*, hunted with dogs and torn by them, shockingly maimed with knives, dirks, &c.; have their ears cut off, their eyes knocked out, their bones dislocated and broken with bludgeons, their fingers and toes cut off, their faces and other parts of their persons disfigured with scars and gashes, *besides* those made with the lash.

We shall adopt, under this head, the same course as that pursued under previous ones,—first give the testimony of the slaveholders themselves, to the mutilations, &c. by copying their own graphic descriptions of them, in advertisements published under their own names, and in newspapers published in the slave states, and, generally, in their own immediate vicinity. We shall, as heretofore, insert only so much of each advertisement as will be necessary to make the point intelligible.

Mr. Micajah Ricks, Nash County, North Carolina, in the Raleigh "Standard," July 18, 1838.

"Ranaway, a negro woman and two children; a few days before she went off, *I burnt her with a hot iron*, on the left side of her face, *I tried to make the letter M.*"

Mr. Asa B. Metcalf, Kingston, Adams Co. Mi. in the "Natchez Courier," June 15, 1832.

"Ranaway Mary, a black woman, has a *scar* on her back and right arm near the shoulder, *caused by a rifle ball.*"

Mr. William Overstreet, Benton, Yazoo Co. Mi. in the "Lexington (Kentucky) Observer," July 22, 1838.

"Ranaway a negro man named Henry, *his left eye out*, some scars from a *dirk* on and under his left arm, and *much scarred* with the whip."

Mr. R.P. Carney, Clark Co. Ala., in the Mobile Register, Dec. 22, 1832

One hundred dollars reward for a negro fellow Pompey, 40 years old, he is *branded on the left jaw.*

Mr. J. Guyler, Savannah Georgia, in the "Republican," April 12, 1837.

"Ranaway Laman, an old negro man, grey, has *only one eye.*"

J.A. Brown, jailor, Charleston, South Carolina, in the "Mercury," Jan. 12, 1837.

"Committed to jail a negro man, has *no toes* on his left foot."

Mr. J. Scrivener, Herring Bay, Anne Arundel Co. Maryland, in the Annapolis Republican, April 18, 1837.

"Ranaway negro man Elijah, has a scar on his left cheek, apparently occasioned by *a shot.*"

Madame Burvant corner of Chartres and Toulouse streets, New Orleans, in the "Bee," Dec. 21, 1838.

"Ranaway a negro woman named Rachel, has *lost all her toes* except the large one."

Mr. O.W. Lains, In the "Helena, (Ark.) Journal," June 1, 1833.

"Ranaway Sam, he was *shot* a short time since, through the hand, and has *several shots in his left arm and side.*"

Mr. R.W. Sizer, in the "Grand Gulf, [Mi.] Advertiser," July 8, 1837.

"Ranaway my negro man Dennis, said negro has been *shot* in the left arm between the shoulders and elbow, which has paralyzed the left hand."

Mr. Nicholas Edmunds, in the "Petersburgh [Va.] Intelligencer," May 22, 1838.

"Ranaway my negro man named Simon, *he has been shot badly* in his back and right arm."

Mr. J. Bishop, Bishopville, Sumpter District, South Carolina, in the "Camden [S.C.] Journal," March 4, 1837.

"Ranaway a negro named Arthur, has a considerable *scar* across his *breast and each arm*, made by a knife; loves to talk much of the goodness of God."

Mr. S. Neyle, Little Ogeechee, Georgia, in the "Savannah Republican," July 3, 1837.

"Ranaway George, he has a *sword cut* lately received on his left arm."

Mrs. Sarah Walsh, Mobile, Ala. in the "Georgia Journal," March 27, 1837.

"Twenty five dollars reward for my man Isaac, he has a scar on his forehead caused by a *blow*, and one on his back made by *a shot from a pistol*."

Mr. J.P. Ashford, Adams Co. Mi. in the "Natchez Courier," August 24, 1838.

"Ranaway a negro girl called Mary, has a small scar over her eye, a *good many teeth missing*, the letter A is *branded on her cheek and forehead*."

Mr. Ely Townsend, Pike Co. Ala. in the "Pensacola Gazette," Sep. 16, 1837.

"Ranaway negro Ben, has a scar on his right hand, his thumb and fore finger being injured by being *shot* last fall, a part of *the bone came out*, he has also one or two *large scars* on his back and hips."

S.B. Murphy, jailer, Irvington, Ga. in the "Milledgeville Journal," May 29, 1838.

"Committed a negro man, is *very badly shot in the right side* and right hand."

Mr. A. Luminais, Parish of St. John Louisiana, in the New Orleans "Bee," March 3, 1838.

"Detained at the jail, a mulatto named Tom, has a *scar* on the right cheek and appears to have been *burned with powder* on the face."

Mr. Isaac Johnson, Pulaski Co. Georgia, in the "Milledgeville Journal," June 19, 1838.

"Ranaway a negro man named Ned, *three of his fingers* are drawn into the palm of his hand by a *cut*, has a *scar* on the back of his neck nearly half round, done by a *knife*."

Mr. Thomas Hudnall, Madison Co. Mi. in the "Vicksburg Register," September 5, 1838.

"Ranaway a negro named Hambleton, *limps* on his left foot where he was *shot* a few weeks ago, while runaway."

Mr. John McMurrain, Columbus, Ga. in the "Southern Sun," August 7, 1838.

"Ranaway a negro boy named Mose, he has a *wound* in the right shoulder near the back bone, which was occasioned by a *rifle shot*."

Mr. Moses Orme, Annapolis, Maryland, in the "Annapolis Republican," June 20, 1837.

"Ranaway my negro man Bill, he has a *fresh wound in his head* above his ear."

William Strickland, Jailor, Kershaw District, S.C. in the "Camden [S.C.] Courier," July 8, 1837.

"Committed to jail a negro, says his name is Cuffee, he is lame in one knee, occasioned *by a shot*."

The Editor of the "Grand Gulf Advertiser," Dec. 7, 1838.

"Ranaway Joshua, his thumb is off of his left hand."

Mr. William Bateman, in the "Grand Gulf Advertiser," Dec. 7, 1838.

"Ranaway William, *scar* over his left eye, one between his eye brows, one on his breast, and his right leg has been *broken*."

Mr. B.G. Simmons, in the "Southern Argus," May 30, 1837.

"Ranaway Mark, his left arm has been *broken*."

Mr. James Artop, in the "Macon [Ga.] Messenger, May 25, 1837.

"Ranaway, Caleb, 50 years old, has an awkward gait occasioned by his being *shot* in the thigh."

J.L. Jolley, Sheriff of Clinton, Co. Mi. in the "Clinton Gazette," July 23, 1836.

"Was committed to jail a negro man, says his name is Josiah, his back very much scarred by the whip, and *branded on the thigh and hips, in three or four places*, thus (J.M.) *the rim of his right ear has been bit or cut off.*"

Mr. Thomas Ledwith, Jacksonville East Florida, in the "Charleston [S.C.] Courier, Sept. 1, 1838.

"Fifty dollars reward, for my fellow Edward, he has a *scar* on the corner of his mouth, two *cuts* on and under his arm, and the *letter E on his arm.*"

Mr. Joseph James, Sen., Pleasant Ridge, Paulding Co. Ga., in the "Milledgeville Union," Nov. 7, 1837.

"Ranaway, negro boy Ellie, has a *scar* on one of his arms *from the bite of a dog.*"

Mr. W. Riley, Orangeburg District, South Carolina, in the "Columbia [S.C.] Telescope," Nov. 11, 1837.

"Ranaway a negro man, has a *scar* on the ankle produced by a *burn*, and a *mark on his arm* resembling the letter S."

Mr. Samuel Mason, Warren Co, Mi. in the "Vicksburg Register," July 18, 1838."

"Ranaway, a negro man named Allen, he has a scar on his breast, also a scar under the left eye, and has *two buck shot in his right arm.*"

Mr. F.L.C. Edwards, in the "Southern Telegraph", Sept. 25, 1837

"Ranaway from the plantation of James Surgette, the following negroes, Randal, *has one ear cropped*; Bob, *has lost one eye*, Kentucky Tom, *has one jaw broken.*"

Mr. Stephen M. Jackson, in the "Vicksburg Register", March 10, 1837.

"Ranaway, Anthony, *one of his ears cut off*, and his left hand cut with an axe."

Philip Honerton, deputy sheriff of Halifax Co. Virginia, Jan. 1837.

"Was committed, a negro man, has a *scar* on his right side by a burn, one on his knee, and one on the calf of his leg *by the bite of a dog*."

Stearns & Co. No. 28, New Levee, New Orleans, in the "Bee", March 22, 1837.

"Absconded, the mulatto boy Tom, his fingers *scarred* on his right hand, and has a *scar* on his right cheek"

Mr. John W. Walton, Greensboro, Ala. in the "Alabama Beacon", Dec. 13, 1838.

"Ranaway my black boy Frazier, with a *scar* below and one above his right ear."

Mr. R. Furman, Charleston, S.C. in the "Charleston Mercury" Jan. 12, 1839.

"Ranaway, Dick, about 19, has lost the small toe of one foot."

Mr. John Tart, Sen. in the "Fayetteville [N.C.] Observer", Dec. 26, 1838

"Stolen a mulatto boy, *ten* years old, he has a *scar* over his eye which was made by an axe."

Mr. Richard Overstreet, Brook Neal, Campbell Co. Virginia, in the "Danville [Va.] Reporter", Dec. 21, 1838.

"Absconded my negro man Coleman, has a *very large scar* on one of his legs, also one on *each* arm, by a burn, and his heels have been frosted."

The editor of the New Orleans "Bee" in that paper, August 27, 1837.

"Fifty dollars reward, for the negro Jim Blake—has a *piece cut out of each ear*, and the middle finger of the left hand *cut off* to the second joint."

Mr. Bryant Jonson, Port Valley, Houston county, Georgia, in the Milledgeville "Union", Oct. 2, 1838.

"Ranaway, a negro woman named Maria—has a scar on one side of her cheek, by a *cut*—some scars on her back."

Mr. Leonard Miles, Steen's Creek, Rankin county, Mi. in the "Southern Sun", Sept. 22, 1838

"Ranaway, Gabriel—has *two or three scars across his neck* made with a knife."

Mr. Bezou, New Orleans, in the "Bee" May 23, 1838.

"Ranaway, the mulatto wench Mary—has a *cut on the left arm, a scar on the shoulder, and two upper teeth missing.*"

Mr. James Kimborough, Memphis, Tenn. in the "Memphis Enquirer" July 13, 1838.

"Ranaway, a negro boy, named Jerry—has a *scar* on his right cheek two inches long, from the cut of a knife."

Mr. Robert Beasley, Macon, Georgia, in the "Georgia Messenger", July 27, 1837.

"Ranaway, my man Fountain—has *holes in his ears, a scar* on the right side of his forehead—has been *shot in the hind parts of his legs*—is marked on the back with the whip."

Mr. B.G. Barrer, St. Louis, Missouri, in the "Republican", Sept. 6, 1837.

"Ranaway, a negro man named Jarret—*has a scar* on the under part of one of his arms, occasioned by a wound from a knife."

Mr. John D. Turner, near Norfolk, Virginia, in the "Norfolk Herald", June 27, 1838.

"Ranaway, a negro by the name of Joshua—he has a cut across one of his ears, which he will conceal as much as possible—one of his ankles is *enlarged by an ulcer.*"

Mr. William Stansell, Picksville, Ala. in the "Huntsville Democrat", August 29, 1837.

"Ranaway, negro boy Harper—has a scar on one of his hips in the form of a G."

Hon. Ambrose H. Sevier Senator, in Congress, from Arkansas in the "Vicksburg Register", of Oct. 18.

"Ranaway, Bob, a slave—has a *scar across his breast*, another on the *right side of his head*—his back is *much scarred* with the whip."

Mr. R.A. Greene, Milledgeville, Georgia, in the "Macon Messenger" July 27, 1837.

"Two hundred and fifty dollars reward, for my negro man Jim—he is much marked with *shot* in his right thigh,—the shot entered on the outside, half way between the hip and knee joints."

Benjamin Russel, deputy sheriff, Bibb county, Ga. in the "Macon Telegraph", December 25, 1837.

"Brought to jail, John—*left ear cropt*."

Hon. H Hitchcock, Mobile, judge of the Supreme Court, in the "Commercial Register", Oct. 27, 1837.

"Ranaway, the slave Ellis—he has *lost one of his ears*."

Mrs. Elizabeth L. Carter, near Groveton, Prince William county, Virginia, in the "National Intelligencer", Washington, D.C. June 10, 1837.

"Ranaway, a negro man, Moses—he has *lost a part* of one of his ears."

Mr. William D. Buckels, Natchez, Mi. in the "Natchez Courier," July 28, 1838.

"Taken up, a negro man—is *very much scarred* about the face and body, and has the left *ear bit off*."

Mr. Walter R. English, Monroe county, Ala. in the "Mobile Chronicle," Sept. 2, 1837.

"Ranaway, my slave Lewis—he has lost a *piece of one ear*, and a *part of one of his fingers*, a *part of one of his toes* is also lost."

Mr. James Saunders, Grany Spring, Hawkins county, Tenn. in the "Knoxville Register," June 6, 1838.

"Ranaway, a black girl named Mary—has a *scar* on her cheek, and the end of one of her toes *cut off*."

Mr. John Jenkins, St Joseph's, Florida, captain of the steamboat Ellen, "Apalachicola Gazette," June 7, 1838.

"Ranaway, the negro boy Caesar—he has *but one eye*."

Mr. Peter Hanson, Lafayette city, La., in the New Orleans "Bee," July 28, 1838.

"Ranaway, the negress Martha—she has *lost her right eye*."

Mr. Orren Ellis, Georgeville, Mi. in the "North Alabamian," Sept. 15, 1837.

"Ranaway, George—has had the lower part of *one of his ears bit off*."

Mr. Zadock Sawyer, Cuthbert, Randolph county, Georgia, in the "Milledgeville Union," Oct. 9, 1838.

"Ranaway, my negro Tom—has a piece *bit off the top of his right ear*, and his little finger is *stiff*."

Mr. Abraham Gray, Mount Morino, Pike county, Ga. in the "Milledgeville Union," Oct. 9, 1838.

"Ranaway, my mulatto woman Judy—she has had her *right arm broke*."

S.B. Tuston, jailer, Adams county, Mi. in the "Natchez Courier," June 15, 1838.

"Was committed to jail, a negro man named Bill—has had the *thumb of his left hand split*."

Mr. Joshua Antrim, Nineveh, Warren county, Virginia, in the "Winchester Virginian," July 11, 1837.

"Ranaway, a mulatto man named Joe—his fingers on the left hand are *partly amputated*."

J.B. Randall, jailor, Marietta, Cobb county, Ga., in the "Southern Recorder;" Nov. 6, 1838.

"Lodged in jail, a negro man named Jupiter—is very *lame in his left hip*, so that he can hardly walk—has lost a joint of the middle finger of his left hand."

Mr. John N. Dillahunty, Woodville, Mi., in the "N.O. Commercial Bulletin," July 21, 1837.

"Ranaway, Bill—has a scar over one eye, also one on his leg, from *the bite of a dog*—has a *burn on his buttock, from a piece of hot iron in shape of a T.*"

William K. Ratcliffe, sheriff, Franklin county, Mi. in the "Natchez Free Trader," August 23, 1838.

"Committed to jail, a negro named Mike—*his left ear off*"

Mr. Preston Halley, Barnwell, South Carolina, in the "Augusta [Ga.] Chronicle," July 27, 1838.

"Ranaway, my negro man Levi—his left hand has been *burnt*, and I think the end of his fore finger *is off.*"

Mr. Welcome H. Robbins, St. Charles county, Mo. in the "St. Louis Republican," June 30, 1838.

"Ranaway, a negro named Washington—has *lost a part of his middle finger and the end of his little finger.*"

G. Gourdon & Co. druggists, corner of Rampart and Hospital streets, New Orleans, in the "Commercial Bulletin," Sept. 18, 1838.

"Ranaway, a negro named David Drier—has *two toes cut.*"

Mr. William Brown, in the "Grand Gulf Advertiser," August 29, 1838.

"Ranaway, Edmund—has a *scar* on his right temple, and under his right eye, and *holes in both ears.*"

Mr. James McDonnell, Talbot county, Georgia, in the "Columbus Enquirer," Jan. 18, 1838.

"Runaway, a negro boy *twelve or thirteen* years old—has a scar on his left cheek *from the bite of a dog*."

Mr. John W. Cherry, Marengo county, Ala. in the "Mobile Register," June 15, 1838.

"Fifty dollars reward, for my negro man John—he has a considerable scar on his *throat*, done with a *knife*."

Mr. Thos. Brown, Roane co. Tenn. in the "Knoxville Register," Sept 12, 1838.

"Twenty-five dollars reward, for my man John—the *tip* of his nose is *bit off*."

Messrs. Taylor, Lawton & Co., Charleston, South Carolina, in the "Mercury," Nov. 1838.

"Ranaway, a negro fellow called Hover—has a *cut* above the right eye."

Mr. Louis Schmidt, Faubourg, Sivaudais, La. in the New Orleans "Bee," Sept. 5, 1837.

"Ranaway, the negro man Hardy—has a *scar* on the upper lip, and another made with a *knife* on his neck."

W.M. Whitehead, Natchez, in the "New Orleans Bulletin," July 21, 1837.

"Ranaway, Henry—has half of one *ear bit off*."

Mr. Conrad Salvo, Charleston, South Carolina, in the "Mercury," August 10, 1837.

"Ranaway, my negro man Jacob—he has but *one eye*."

William Baker, jailer, Shelby county, Ala., in the "Montgomery (Ala.) Advertiser," Oct. 5, 1838.

"Committed to jail, Ben—his *left thumb off* at the first joint."

Mr. S.N. Hite, Camp street, New Orleans, in the "Bee," Feb. 19, 1838.

"Twenty-five dollars reward for the negro slave Sally—walks as though *crippled* in the back."

Mr. Stephen M. Richards, Whitesburg, Madison county, Alabama, in the "Huntsville Democrat," Sept 8, 1838.

"Ranaway, a negro man named Dick—has a *little finger off* the right hand."

Mr. A. Brose, parish of St. Charles, La. in the "New Orleans Bee," Feb. 19, 1838.

"Ranaway, the negro Patrick—has his little finger of the right hand *cut close to the hand*."

Mr. Needham Whitefield, Aberdeen, Mi. in the "Memphis (Tenn.) Enquirer," June 15, 1838.

"Ranaway, Joe Dennis—has a small *notch* in one of his ears."

Col. M.J. Keith, Charleston, South Carolina, in the "Mercury," Nov. 27, 1837.

"Ranaway, Dick—has *lost the little toe* of one of his feet."

Mr. R. Faucette, Haywood, North Carolina, in the "Raleigh Register," April 30, 1838.

"Escaped, my negro man Eaton—his *little finger* of the right hand has been *broke*."

Mr. G.C. Richardson, Owen Station, Mo., in the St. Louis "Republican," May 5, 1838.

"Ranaway, my negro man named Top—has had one of his *legs broken*."

Mr. E. Han, La Grange, Fayette county, Tenn. in the Gallatin "Union," June 23, 1837.

"Ranaway, negro boy Jack—has a small *crop out of his left ear*."

D. Herring, warden of Baltimore city jail, in the "Marylander," Oct 6, 1837.

"Was committed to jail, a negro man—has *two scars* on his forehead, and the *top of his left ear cut off*."

Mr. James Marks, near Natchitoches, La. in the "Natchitoches Herald," July 21, 1838.

"Stolen, a negro man named Winter—has a *notch* cut out of the left ear, and the mark of *four or five buck shot* on his legs."

Mr. James Barr, Amelia Court House, Virginia, in the "Norfolk Herald," Sept. 12, 1838.

"Ranaway, a negro man—*scar back of his left eye*, as if from the *cut* of a knife."

Mr. Isaac Michell, Wilkinson county, Georgia, in the "Augusta Chronicle," Sept 21, 1837.

"Ranaway, negro man Buck—has a very *plain mark* under his ear on his jaw, about the size of a dollar, having been *inflicted by a knife*."

Mr. P. Bayhi, captain of the police, Suburb Washington, third municipality, New Orleans, in the "Bee," Oct. 13, 1837.

"Detained at the jail, the negro boy Hermon—has a scar below his left ear, from the *wound of a knife*."

Mr. Willie Paterson, Clinton, Jones county, Ga. in the "Darien Telegraph," Dec. 5, 1837.

"Ranaway, a negro man by the name of John—he has a *scar* across his cheek, and one on his right arm, apparently done with a *knife*."

Mr. Samuel Ragland, Triana, Madison county, Alabama, in the "Huntsville Advocate," Dec. 23, 1837.

"Ranaway, Isham—has a *scar* upon the breast and upon the under lip, from the *bite of a dog*."

Mr. Moses E. Bush, near Clayton, Ala. in the "Columbus (Ga.) Enquirer," July 5, 1838.

"Ranaway, a negro man—has a *scar* on his hip and on his breast, and *two front teeth out*."

C.W. Wilkins, sheriff Baldwin Co. Ala. in the "Mobile Advertiser," Sept. 24, 1837.

"Committed to jail, a negro man, he is *crippled* in the right leg."

Mr. James H. Taylor, Charleston South Carolina, in the "Courier," August 7, 1837.

"Absconded, a colored boy, named Peter, *lame* in the right leg."

N.M.C. Robinson, jailer, Columbus, Georgia, in the "Columbus (Ga.) Enquirer," August 2, 1838.

"Brought to jail, a negro man, his left ankle has been *broke*."

Mr. Littlejohn Rynes, Hinds Co. Mi. in the "Natchez Courier," August, 17, 1838.

"Ranaway, a negro man named Jerry, has a small piece *cut out of the top of each ear*."

The Heirs of J.A. Alston, near Georgetown, South Carolina, in the "Georgetown [S.C.] Union," June 17, 1837.

"Absconded a negro named Cuffee, has *lost one finger*; has an *enlarged leg*."

A.S. Ballinger, Sheriff, Johnston Co, North Carolina, In the "Raleigh Standard," Oct. 18, 1838.

"Committed to jail, a negro man; has a *very sore leg*."

Mr. Thomas Crutchfield, Atkins, Ten. in the "Tennessee Journal," Oct. 17, 1838.

"Ranaway, my mulatto boy Cy, has but *one hand*, all the fingers of his right hand were *burnt off* when young."

J.A. Brown, jailer, Orangeburg, South Carolina, in the "Charleston Mercury," July 18, 1838.

"Was committed to jail, a negro named Bob, appears to be *crippled* in the right leg."

S.B. Turton, jailer, Adams Co. Miss. in the "Natchez Courier," Sept. 29, 1838.

"Was committed to jail, a negro man, has his *left thigh broke*."

Mr. John H. King, High street, Georgetown, in the "National Intelligencer," August 1, 1837.

"Ranaway, my negro man, he has the *end of one* of his fingers *broken*."

Mr. John B. Fox, Vicksburg, Miss. in the "Register," March 29, 1837.

"Ranaway, a yellowish negro boy named Tom, has a *notch* in the back of one of his ears."

Messrs. Fernandez and Whiting, auctioneers, New Orleans, in the "Bee," April 8, 1837.

"Will be sold Martha, aged nineteen, *has one eye out*."

Mr. Marshall Jett, Farrowville, Fauquier Co. Virginia, in the "National Intelligencer," May 30, 1837.

"Ranaway, negro man Ephraim, has a *mark* over one of his eyes, occasioned by a *blow*."

S.B. Turton, jailer Adams Co. Miss. in the "Natches Courier," Oct. 12, 1838.

"Was committed a negro, calls himself Jacob, has been *crippled* in his right leg."

John Ford, sheriff of Mobile County, in the "Mississippian," Jackson Mi. Dec. 28, 1838.

"Committed to jail, a negro man Cary, a *large scar on his forehead*."

E.W. Morris, sheriff of Warren County, in the "Vicksburg [Mi.] Register," March 28, 1838.

"Committed as a runaway, a negro man Jack, he has *several scars* on his face."

Mr. John P. Holcombe, In the "Charleston Mercury," April 17, 1828.

"Absented himself, his negro man Ben, *has scars* on his throat, occasioned by the *cut of a knife*."

Mr. Geo. Kinlock, in the "Charleston, S.C. Courier," May 1, 1839.

"Runaway, negro boy Kitt, 15 or 16 years old, *has a piece taken out of one of his ears*."

Wm. Magee, sheriff, Mobile Co. in the "Mobile Register," Dec. 27, 1837.

"Committed to jail, a runaway slave, Alexander, a *scar* on his left cheek."

Mr. Henry M. McGregor, Prince George County, Maryland, in the "Alexandria [D.C.] Gazette," Feb. 6, 1838.

"Runaway, negro Phil, *scar through the right eye brow* part of the *middle toe* right foot *cut off*."

Green B Jourdan, Baldwin County Ga. in the "Georgia Journal," April 18, 1837.

"Runaway, John, has a *scar* on one of his hands extending from the wrist joint to the little finger, also a *scar* on one of his legs."

Messrs. Daniel and Goodman, New Orleans, in the "N.O. Bee," Feb. 2, 1838.

"Absconded, mulatto slave Alick, has a *large scar* over one of his cheeks."

Jeremiah Woodward, Gonchland, Co. Va. in the "Richmond Va. Whig," Jan. 30, 1838.

"200 DOLLARS REWARD for Nelson, has a *scar* on his forehead occasioned by a *burn*, and one on his lower lip and one about the knee."

Samuel Rawlins, Gwinet Co. Ga. in the "Columbus Sentinel," Nov. 29, 1838.

"Ranaway, a negro man and his wife, named Nat and Priscilla, he has a small *scar* on his left cheek, *two stiff fingers* on his right hand with a *running sore* on them; his wife has a *scar* on her left arm, and one *upper tooth out*."

The reader perceives that we have under this head, as under previous ones, given to the testimony of the slaveholders themselves, under their own names, a precedence over that of all other witnesses. We now ask the reader's attention to the testimonies which follow. They are endorsed by responsible names—men who 'speak what they know, and testify what they have seen'—testimonies which show, that the slaveholders who wrote the preceding advertisements, describing the work of their own hands, in branding with hot irons, maiming, mutilating, cropping, shooting, knocking out the teeth and eyes of their slaves, breaking their bones, &c., have manifested, *as far as they have gone* in the description, a commendable fidelity to truth.

It is probable that some of the scars and maimings in the preceding advertisements were the result of accidents; and some *may be* the result of violence inflicted by the slaves upon each other. Without arguing that point, we say, these are the *facts*; whoever reads and ponders them, will need no argument to convince him, that the proposition which they have been employed to sustain, *cannot be shaken*. That any considerable portion of them were *accidental*, is totally improbable, from the nature of the case; and is in most instances disproved by the advertisements themselves. That they have not been produced by assaults of the slaves upon each other, is manifest from the fact, that injuries of that character inflicted by the slaves upon each other, are, as all who are familiar with the habits and condition of slaves well know, exceedingly rare; and of necessity must be so, from the constant action upon them of the strongest dissuasives from such acts that can operate on human nature.

Advertisements similar to the preceding may at any time be gathered by scores from the daily and weekly newspapers of the slave states. Before presenting the reader with further testimony in proof of the proposition at

the head of this part of our subject, we remark, that some of the tortures enumerated under this and the preceding heads, are not in all cases inflicted by slaveholders as *punishments*, but sometimes merely as preventives of escape, for the greater security of their 'property'. Iron collars, chains, &c. are put upon slaves when they are driven or transported from one part of the country to another, in order to keep them from running away. Similar measures are often resorted to upon plantations. When the master or owner suspects a slave of plotting an escape, an iron collar with long 'horns,' or a bar of iron, or a ball and chain, are often fastened upon him, for the double purpose of retarding his flight, should he attempt it, and of serving as an easy means of detection.

Another inhuman method of *marking* slaves, so that they may be easily described and detected when they escape, is called *cropping*. In the preceding advertisements, the reader will perceive a number of cases, in which the runaway is described as '*cropt*,' or a '*notch cut* in the ear, or a part or the whole of the ear *cut off*,' &c.

Two years and a half since, the writer of this saw a letter, then just received by Mr. Lewis Tappan, of New York, containing a negro's ear cut off close to the head. The writer of the letter, who signed himself Thomas Oglethorpe, Montgomery, Alabama, sent it to Mr. Tappan as 'a specimen of a negro's ears,' and desired him to add it to his 'collection.'

Another method of *marking* slaves, is by drawing out or breaking off one or two *front teeth*—commonly the upper ones, as the mark would in that case be the more obvious. An instance of this kind the reader will recall in the testimony of Sarah M. Grimké, [page 30](#), and of which she had *personal* knowledge; being well acquainted both with the inhuman master, (a distinguished citizen of South Carolina,) by whose order the brutal deed was done, and with the poor young girl whose mouth was thus barbarously mutilated, to furnish a convenient mark by which to describe her in case of her elopement, as she had frequently run away.

The case stated by Miss G. serves to unravel what, to one uninitiated, seems quite a mystery: i.e. the frequency with which, in the advertisements of runaway slaves published in southern papers, they are described as having

one or two front teeth out. Scores of such advertisements are in southern papers now on our table. We will furnish the reader with a dozen or two.

Jesse Debruhl, sheriff, Richland District, "Columbia (S.C.) Telescope," Feb. 24, 1839.

"Committed to jail, Ned, about 25 years of age, has lost his *two upper front teeth.*"

Mr. John Hunt, Black Water Bay, "Pensacola (Ga.) Gazette," October 14, 1837.

"100 DOLLARS REWARD, for Perry, *one under front tooth* missing, aged 23 years."

Mr. John Frederick, Branchville, Orangeburgh District, S.C. "Charleston (S.C.) Courier," June 12, 1837.

"10 DOLLARS REWARD, for Mary, *one or two upper teeth* out, about 25 years old."

Mr. Egbert A. Raworth, eight miles west of Nashville on the Charlotte road "Daily Republican Banner," Nashville, Tennessee, April 30, 1938.

"Ranaway, Myal, 23 years old, one of his *fore teeth* out."

Benjamin Russel, Deputy sheriff Bibb Co. Ga. "Macon (Ga.) Telegraph," Dec. 25, 1837.

"Brought to jail John, 23 years old, *one fore tooth* out."

F. Wisner, Master of the Work House, "Charleston (S.C.) Courier." Oct. 17, 1837.

"Committed to the Charleston Work House Tom, *two of his upper front teeth* out, about 30 years of age."

Mr. S. Neyle, "Savannah (Ga.) Republican," July 3, 1837.

"Ranaway Peter, has lost *two front teeth* in the upper jaw."

Mr. John McMurrain, near Columbus, "Georgia Messenger," Aug. 2, 1838.

"Ranaway, a boy named Moses, some of his *front teeth out*."

Mr. John Kennedy, Stewart Co. La. "New Orleans Bee," April 7, 1837.

"Ranaway, Sally, her *fore teeth out*."

Mr. A.J. Hutchings, near Florence, Ala. "North Alabamian," August 25, 1838

"Ranaway, George Winston, two of his *upper fore teeth out* immediately in front."

Mr. James Purdon, 33 Commons street, N.O. "New Orleans Bee," Feb. 13, 1838.

"Ranaway, Jackson, has lost *one of his front teeth*."

Mr. Robert Calvert, in the "Arkansas State Gazette," August 22, 1838.

"Ranaway, Jack, 25 years old, has lost *one of his fore teeth*."

Mr. A.G.A. Beazley, in the Memphis Gazette, March 18, 1838.

"Ranaway, Abraham, 20 or 22 years of age, *his front teeth out*."

Mr. Samuel Townsend, in the "Huntsville [Ala.] Democrat," May 24, 1837.

"Ranaway, Dick, 18 or 20 years of age, *has one front tooth out*."

Mr. Philip A. Dew, in the "Virginia Herald," of May 24, 1837.

"Ranaway, Washington, about 25 years of age, has *an upper front tooth out*."

J.G. Dunlap, "Georgia Constitutionalist," April 24, 1838.

"Ranaway, negro woman Abbe, *upper front teeth out*."

John Thomas, "Southern Argus," August 7, 1838.

"Ranaway, Lewis, 25 or 26 years old, *one or two of his front teeth out*."

M.E.W. Gilbert, in the "Columbus [Ga.] Enquirer," Oct. 5. 1837.

"50 DOLLARS REWARD, for Prince, 25 or 26 years old, *one or two teeth out* in front on the upper jaw."

Publisher of the "Charleston Mercury," Aug. 31, 1838.

"Ranaway, Seller Saunders, *one fore tooth out*, about 22 years of age."

Mr. Byrd M. Grace, in the "Macon [Ga.] Telegraph," Oct. 16, 1838.

"Ranaway, Warren, about 25 or 26 years old, has lost *some of his front teeth*."

Mr. George W. Barnes, in the "Milledgeville [Ga.] Journal," May 22, 1837.

"Ranaway, Henry, about 23 years old, has one of his *upper front teeth out*."

D. Herring, Warden of Baltimore Jail, in "Baltimore Chronicle," Oct. 6, 1837.

"Committed to jail Elizabeth Steward, 17 or 18 years old, has *one of her front teeth out*."

Mr. J.L. Colborn, in the "Huntsville [Ala.] Democrat," July 4, 1837.

"Ranaway Liley, 26 years of age, *one fore tooth gone*."

Samuel Harman Jr. in the "New Orleans Bee," Oct. 12, 1838.

"50 DOLLARS REWARD, for Adolphe, 28 years old, *two of his front teeth* are missing."

Were it necessary, we might easily add to the preceding list, *hundreds*. The reader will remark that all the slaves, whose ages are given, are *young*—not one has arrived at middle age; consequently it can hardly be supposed that they have lost their teeth either from age or decay. The probability that their teeth were taken out by force, is increased by the fact of their being *front teeth* in almost every case, and from the fact that the loss of no *other* is mentioned in the advertisements. It is well known that the front teeth are not generally the first to fail. Further, it is notorious that the teeth of the slaves are remarkably sound and serviceable, that they decay far less, and at a much later period of life than the teeth of the whites: owing partly, no

doubt, to original constitution; but more probably to their diet, habits, and mode of life.

As an illustration of the horrible mutilations *sometimes* suffered by them in the breaking and tearing out of their teeth, we insert the following, from the New Orleans Bee of May 31, 1837.

\$10 REWARD.—Ranaway, Friday, May 12, JULIA, a negress, EIGHTEEN OR TWENTY YEARS OLD. SHE HAS LOST HER UPPER TEETH, and the under ones ARE ALL BROKEN. Said reward will be paid to whoever will bring her to her master, No. 172 Barracks-street, or lodge her in the jail.

The following is contained in the same paper.

Ranaway, NELSON, 27 years old,—*"ALL HIS TEETH ARE MISSING."*

This advertisement is signed by "S. ELFER," Faubourg Marigny.

We now call the attention of the reader to a mass of testimony in support of our general proposition.

GEORGE B. RIPLEY, Esq. of Norwich, Connecticut, has furnished the following statement, in a letter dated Dec. 12, 1838.

"GURDON CHAPMAN, Esq., a respectable merchant of our city, one of our county commissioners,—last spring a member of our state legislature,—and whose character for veracity is above suspicion, about a year since visited the county of Nansemond, Virginia, for the purpose of buying a cargo of corn. He purchased a large quantity of Mr. —, with whose family he spent a week or ten days; after he returned, he related to me and several other citizens the following facts. In order to prepare the corn for market by the time agreed upon, the slaves were worked as hard as they would bear, from daybreak until 9 or 10 o'clock at night. They were called directly from their bunks in the morning to their work, without a morsel of food until noon, when they took their breakfast and dinner, consisting of bacon and corn bread. The quantity of meat was not one tenth of what the same number of northern laborers usually have at a meal. They were allowed but fifteen minutes to take this meal, at the expiration of this time the horn was blown. The rigor with which they enforce

punctuality to its call, may be imagined from the fact, that a little boy only nine years old was whipped so severely by the driver, that in many places the whip cut through his clothes (which were of cotton,) for tardiness of not over three minutes. They then worked without intermission until 9 or 10 at night; after which they prepared and ate their second meal, as scanty as the first. An aged slave, who was remarkable for his industry and fidelity, was working with all his might on the threshing floor; amidst the clatter of the shelling and winnowing machines the master spoke to him, but he did not hear; he presently gave him several severe cuts with the raw hide, saying, at the same time, 'damn you, if you cannot hear I'll see if you can feel.' One morning the master rose from breakfast and whipped most cruelly, with a raw hide, a nice girl who was waiting on the table, for not opening a west window when he had told her to open an east one. The number of slaves was only forty, and yet the lash was in constant use. The bodies of all of them were literally covered with old scars.

"Not one of the slaves attended church on the Sabbath. The social relations were scarcely recognised among them, and they lived in a state of promiscuous concubinage. The master said he took pains to breed from his best stock—the whiter the progeny the higher they would sell for house servants. When asked by Mr. C. if he did not fear his slaves would run away if he whipped them so much, he replied, they know too well what they must suffer if they are taken—and then said, 'I'll tell you how I treat my runaway niggers. I had a big nigger that ran away the second time; as soon as I got track of him I took three good fellows and went in pursuit, and found him in the night, some miles distant, in a corn-house; we took him and ironed him hand and foot, and carted him home. The next morning we tied him to a tree, and whipped him until there was not a sound place on his back. I then tied his ankles and hoisted him up to a *limb*—feet up and head down—we then whipped him, until the damned nigger smoked so that I thought he would take fire and burn up. We then took him down; and to make sure that he should not run away the third time, I run my knife in back of the ankles, and *cut off the large cords*,—and then I ought to have put some lead into the wounds, but I forgot it'

"The truth of the above is from unquestionable authority; and you may publish or suppress it, as shall best subserve the cause of God and humanity."

EXTRACT OF A LETTER FROM STEPHAN SEWALL, Esq., Winthrop, Maine, dated Jan. 12th, 1839. Mr. S. is a member of the Congregational church in Winthrop, and late agent of the Winthrop Manufacturing company.

"Being somewhat acquainted with slavery, by a residence of about five years in Alabama, and having witnessed many acts of slaveholding cruelty, I will mention one or two that came under my eye; and one of excessive cruelty mentioned to me at the time, by the gentleman (now dead,) that interfered in behalf of the slave.

"I was witness to such cruelties by an overseer to a slave, that he twice attempted to drown himself, to get out of his power: this was on a raft of slaves, in the Mobile river. I saw an owner take his runaway slave, tie a rope round him, then get on his horse, give the slave and horse a cut the whip, and run the poor creature barefooted, very fast, over rough ground, where small black jack oaks had been cut up, leaving the sharp stumps, on which the slave would frequently fall; then the master would drag him as long as he could himself hold out; then stop, and whip him up on his feet again—then proceed as before. This continued until he got out of my sight, which was about half a mile. But what further cruelties this wretched man, (whose passion was so excited that he could scarcely utter a word when he took the slave into his own power,) inflicted upon his poor victim, the day of judgment will unfold.

"I have seen slaves severely whipped on plantations, but this *is an every day occurrence*, and comes under the head of general treatment.

"I have known the case of a husband compelled to whip his wife. This I did not witness, though not two rods from the cabin at the time.

"I will now mention the case of cruelty before referred to. In 1820 or 21, while the public works were going forward on Dauphin Island, Mobile Bay, a contractor, engaged on the works, beat one of his slaves

so severely that the poor creature had no longer power to writhe under his suffering: he then took out his knife, and began to *cut his flesh in strips, from his hips down*. At this moment, the gentleman referred to, who was also a contractor, shocked at such inhumanity, stepped forward, between the wretch and his victim, and exclaimed, 'If you touch that slave again you do it at the peril of your life.' The slaveholder raved at him for interfering between him and his slave; but he was obliged to drop his victim, fearing the arm of my friend—whose stature and physical powers were extraordinary."

EXTRACT OF A LETTER FROM MRS. MARY COWLES, a member of the Presbyterian church at Geneva, Ashtabula county, Ohio, dated 12th, mo. 18th, 1838. Mrs. Cowles is a daughter of Mr. James Colwell of Brook county, Virginia, near West Liberty.

"In the year 1809, I think, when I was twenty-one years old, a man in the vicinity where I resided, in Brooke co. Va. near West Liberty, by the name of Morgan, had a little slave girl about six years old, who had a habit or rather a natural infirmity common to children of that age. On this account her master and mistress would pinch her ears with hot tongs, and throw hot embers on her legs. Not being able to accomplish their object by these means, they at last resorted to a method too indelicate, and too horrible to describe in detail. Suffice it to say, it soon put an end to her life in the most excruciating manner. If further testimony to authenticate what I have stated is necessary, I refer you to Dr. Robert Mitchel who then resided in the vicinity, but now lives at Indiana, Pennsylvania, above Pittsburgh."

MARY COWLES.

TESTIMONY OF WILLIAM LADD, Esq., now of Minot, Maine, formerly a slaveholder in Florida. Mr. Ladd is now the President of the American Peace Society. In a letter dated November 29, 1838, Mr. Ladd says:

"While I lived in Florida I knew a slaveholder whose name was Hutchinson, he had been a preacher and a member of the Senate of Georgia. He told me that he dared not keep a gun in his house, because he was so passionate; and that he had *been the death of three or four*

men. I understood him to mean *slaves*. One of his slaves, a girl, once came to my house. She had run away from him at Indian river. The cords of one of her hands were so much contracted that her hand was useless. It was said that he had thrust her hand into the fire while he was in a fit of passion, and held it there, and this was the effect. My wife had hid the girl, when Hutchinson came for her. Out of compassion for the poor slave, I offered him more than she was worth, which he refused. We afterward let the girl escape, and I do not know what became of her, but I believe he never got her again. It was currently reported of Hutchinson, that he once knocked down a *new negro* (one recently from Africa) who was clearing up land, and who complained of the cold, as it was mid-winter. The slave was stunned with the blow. Hutchinson, supposing he had the 'sulks,' applied fire to the side of the slave until it was so roasted that he said the slave was not worth curing, and ordered the other slaves to pile on brush, and he was consumed.

"A murder occurred at the settlement, (Musquito) while I lived there. An overseer from Georgia, who was employed by a Mr. Cormick, in a fit of jealousy shot a slave of Samuel Williams, the owner of the next plantation. He was apprehended, but afterward suffered to escape. This man told me that he had rather whip a negro than sit down to the best dinner. This man had, near his house, a contrivance like that which is used in armies where soldiers are punished with the picket; by this the slave was drawn up from the earth, by a cord passing round his wrists, so that his feet could just touch the ground. It somewhat resembled a New England well sweep, and was used when the slaves were flogged.

"The treatment of slaves at Musquito I consider much milder than that which I have witnessed in the United States. Florida was under the Spanish government while I lived there. There were about fifteen or twenty plantations at Musquito. I have an indistinct recollection of four or five slaves dying of the cold in Amelia Island. They belonged to Mr. Bunce of musquito. The compensation of the overseers was a certain portion of the crop."

GERRIT SMITH, Esq. of Peterboro, in a letter, dated Dec. 15, 1838, says:

"I have just been conversing with an inhabitant of this town, on the subject of the cruelties of slavery. My neighbors inform me that he is a man of veracity. The candid manner of his communication utterly forbade the suspicion that he was attempting to deceive me.

"My informant says that he resided in Louisiana and Alabama during a great part of the years 1819 and 1820:—that he frequently saw slaves whipped, never saw any killed; but often heard of their being killed:—that in several instances he had seen a slave receive, in the space of two hours, five hundred lashes—each stroke drawing blood. He adds that this severe whipping was always followed by the application of strong brine to the lacerated parts.

"My informant further says, that in the spring of 1819, he steered a boat from Louisville to New Orleans. Whilst stopping at a plantation on the east bank of the Mississippi, between Natchez and New Orleans, for the purpose of making sale of some of the articles with which the boat was freighted, he and his fellow boatmen saw a shockingly cruel punishment inflicted on a couple of slaves for the repeated offence of running away. Straw was spread over the whole of their backs, and, after being fastened by a band of the same material, was ignited, and left to burn, until entirely consumed. The agonies and screams of the sufferers he can never forget."

Dr. DAVID NELSON, late president of Marion College, Missouri, a native of Tennessee, and till forty years old a slaveholder, said in an Anti-Slavery address at Northampton, Mass. Jan. 1839—

"I have not attempted to harrow your feelings with stories of cruelty. I will, however, mention one or two among the many incidents that came under my observation as family physician. I was one day dressing a blister, and the mistress of the house sent a little black girl into the kitchen to bring me some warm water. She probably mistook her message; for she returned with a bowl full of boiling water; which her mistress no sooner perceived, than she thrust her hand into it, and held it there till it was half cooked."

Mr. HENRY H. LOOMIS, a member of the Presbyterian Theological Seminary in the city of New York, says, in a recent letter—

"The Rev. Mr. Hart, recently my pastor, in Otsego county, New York, and who has spent some time at the south as a teacher, stated to me that in the neighborhood in which he resided a slave was set to watch a turnip patch near an academy, in order to keep off the boys who occasionally trespassed on it. Attempting to repeat the trespass in presence of the slave, they were told that his 'master forbad it.' At this the boys were enraged, and hurled brickbats at the slave until his face and other parts were much injured and wounded—but nothing was said or done about it as an injury to the slave.

"He also said, that a slave from the same neighborhood was found out in the woods, with his arms and legs burned almost to a cinder, up as far as the elbow and knee joints; and there appeared to be but little more said or thought about it than if he had been a brute. It was supposed that his master was the cause of it—making him an example of punishment to the rest of the gang!"

The following is an extract of a letter dated March 5, 1839, from Mr. JOHN CLARKE, a highly respected citizen of Scriba, Oswego county, New York, and a member of the Presbyterian church.

The 'Mrs. Turner' spoken of in Mr. C.'s letter, is the wife of Hon. Fielding S. Turner, who in 1803 resided at Lexington, Kentucky, and was the attorney for the Commonwealth. Soon after that, he removed to New Orleans, and was for many years Judge of the Criminal Court of that city. Having amassed an immense fortune, he returned to Lexington a few years since, and still resides there. Mr. C. the writer, spent the winter of 1836-7 in Lexington. He says,

"Yours of the 27th ult. is received, and I hasten to state the facts which came to my knowledge while in Lexington, respecting the occurrences about which you inquire. Mrs. Turner was originally a Boston lady. She is from 35 to 40 years of age, and the wife of Judge Turner, formerly of New Orleans, and worth a large fortune in slaves and plantations. I repeatedly heard, while in Lexington, Kentucky, during the winter of 1836-7, of the wanton cruelty practised by this woman upon her slaves, and that she had caused several to be *whipped to death*; but I never heard that she was suspected of being deranged,

otherwise than by the indulgence of an ungoverned temper, until I heard that her husband was attempting to incarcerate her in the Lunatic Asylum. The citizens of Lexington, believing the charge to be a false one, rose and prevented the accomplishment for a time, until, lulled by the fair promises of his friends, they left his domicile, and in the dead of night she was taken by force, and conveyed to the asylum. This proceeding being judged illegal by her friends, a suit was instituted to liberate her. I heard the testimony on the trial, which related only to proceedings had in order to getting her admitted into the asylum; and no facts came out relative to her treatment of her slaves, other than of a general character.

"Some days after the above trial, (which by the way did not come to an ultimate decision, as I believe) I was present in my brother's office, when Judge Turner, in a long conversation with my brother on the subject of his trials with his wife, said, *'That woman has been the immediate cause of the death of six of my servants, by her severities!*

"I was repeatedly told, while I was there, that she drove a colored boy from the second story window, a distance of 15 to 18 feet, on to the pavement, which made him a cripple for a time.

"I heard the trial of a man for the murder of his slave, by whipping, where the evidence was to my mind perfectly conclusive of his guilt; but the jury were two of them for convicting him of manslaughter, and the rest for acquitting him; and as they could not agree were discharged—and on a subsequent trial, as I learned by the papers, the culprit was acquitted."

Rev. THOMAS SAVAGE, of Bedford, New Hampshire, in a recent letter, states the following fact:

"The following circumstance was related to me last summer, by my brother, now residing as a physician, at Rodney, Mississippi; and who, though a pro-slavery man, spoke of it in terms of reprobation, as an act of capricious, wanton cruelty. The planter who was the actor in it I myself knew; and the whole transaction is so characteristic of the man, that, independent of the strong authority I have, I should entertain but little doubt of its authenticity. He is a wealthy planter, residing near Natchez, eccentric, capricious and

intemperate. On one occasion he invited a number of guests to an elegant entertainment, prepared in the true style of southern luxury. From some cause, none of the guests appeared. In a moody humor, and under the influence, probably, of mortified pride, he ordered the overseer to call the people (a term by which the field hands are generally designated,) on to the piazza. The order was obeyed, and the people came. 'Now,' said he, 'have them seated at the table. Accordingly they were seated at the well-furnished, glittering table, while he and his overseer waited on them, and helped them to the various dainties of the feast. 'Now,' said he, after awhile, raising his voice, 'take these rascals, and give them twenty lashes a piece. I'll show them how to eat at my table.' The overseer, in relating it, said he had to comply, though reluctantly, with this brutal command."

Mr. HENRY P. THOMPSON, a native and still a resident of Nicholasville, Kentucky, made the following statement at a public meeting in Lane Seminary, Ohio, in 1833. He was at that time a slaveholder.

"*Cruelties*, said he, *are so common*, I hardly know what to relate. But one fact occurs to me just at this time, that happened in the village where I live. The circumstances are these. A colored man, a slave, ran away. As he was crossing Kentucky river, a white man, who suspected him, attempted to stop him. The negro resisted. The white man procured help, and finally succeeded in securing him. He then wreaked his vengeance on him for resisting—flogging him till he was not able to walk. They then put him on a horse, and came on with him ten miles to Nicholasville. When they entered the village, it was noticed that he sat upon his horse like a drunken man. It was a very hot day; and whilst they were taking some refreshment, the negro sat down upon the ground, under the shade. When they ordered him to go, he made several efforts before he could get up; and when he attempted to mount the horse, his strength was entirely insufficient. One of the men struck him, and with an oath ordered him to get on the horse without any more fuss. The negro staggered back a few steps, fell down, and died. I do not know that any notice was ever taken of it."

Rev. COLEMAN S. HODGES, a native and still a resident of Western Virginia, gave the following testimony at the same meeting.

"I have frequently seen the mistress of a family in Virginia, with whom I was well acquainted, beat the woman who performed the kitchen work, with a stick two feet and a half long, and nearly as thick as my wrist; striking her over the head, and across the small of the back, as she was bent over at her work, with as much spite as you would a snake, and for what I should consider no offence at all. There lived in this same family a young man, a slave, who was in the habit of running away. He returned one time after a week's absence. The master took him into the barn, stripped him entirely naked, tied him up by his hands so high that he could not reach the floor, tied his feet together, and put a small rail between his legs, so that he could not avoid the blows, and commenced whipping him. He told me that he gave him five hundred lashes. At any rate, he was covered with wounds from head to foot. Not a place as big as my hand but what was cut. Such things as these are perfectly common all over Virginia; at least so far as I am acquainted. Generally, planters avoid punishing their slaves before strangers."

Mr. CALVIN H. TATE, of Missouri, whose father and brothers were slaveholders, related the following at the same meeting. The plantation on which it occurred, was in the immediate neighborhood of his father's.

"A young woman, who was generally very badly treated, after receiving a more severe whipping than usual, ran away. In a few days she came back, and was sent into the field to work. At this time the garment next her skin was stiff like a scab, from the running of the sores made by the whipping. Towards night, she told her master that she was sick, and wished to go to the house. She went, and as soon as she reached it, laid down on the floor exhausted. The mistress asked her what the matter was? She made no reply. She asked again; but received no answer. 'I'll see,' said she, 'if I can't make you speak.' So taking the tongs, she heated them red hot, and put them upon the bottoms of her feet; then upon her legs and body; and, finally, in a rage, took hold of her throat. This had the desired effect. The poor girl faintly whispered, 'Oh, misse, don't—I am most gone;' and expired."

Extract of a letter from Rev. C.S. RENSHAW, pastor of the Congregational Church, Quincy, Illinois.

"Judge Menzies of Boone county, Kentucky, an elder in the Presbyterian Church, and a slaveholder, told me that *he knew* some overseers in the tobacco growing region of Virginia, who, to make their slaves careful in picking the tobacco, that is taking the worms off; (you know what a loathsome thing the tobacco worm is) would make them *eat* some of the worms, and others who made them eat every worm they missed in picking."

"Mrs. NANCY JUDD, a member of the Non-Conformist Church in Osnaburg, Stark county, Ohio, and formerly a resident of Kentucky, testifies that she knew a slaveholder,

"Mr. Brubecker, who had a number of slaves, among whom was one who would frequently avoid labor by hiding himself; for which he would get severe floggings without the desired effect, and that at last Mr. B. would tie large cats on his naked body and whip them to make them tear his back, in order to break him of his habit of hiding."

Rev. HORACE MOULTON, a minister of the Methodist Episcopal Church in Marlborough, Massachusetts, says:

"Some, when other modes of punishment will not subdue them, *cat-haul* them; that is, take a cat by the nape of the neck and tail, or by its hind legs, and drag the claws across the back until satisfied; this kind of punishment, as I have understood, poisons the flesh much worse than the whip, and is more dreaded by the slave."

Rev. ABEL BROWN, Jr. late pastor of the first Baptist Church, Beaver, Pennsylvania, in a communication to Rev. C.P. Grosvenor, Editor of the Christian Reflector, says:

"I almost daily see the poor heart-broken slave making his way to a land of freedom. A short time since, I saw a noble, pious, distressed, spirit-crushed slave, a member of the Baptist church, escaping from a (professed Christian) bloodhound, to a land where he could enjoy that of which he had been robbed during forty years. His prayers would have made us all feel. I saw a Baptist sister of about the same age, her children had been torn from her, her head was covered with fresh wounds, while her upper lip had scarcely ceased to bleed, in consequence of a blow with the poker, which knocked out her teeth; she too, was going to a land of freedom. Only a very

few days since, I saw a girl of about eighteen, with a child as white as myself, aged ten months; a Christian master was raising her child (as well his own perhaps) to sell to a southern market. She had heard of the intention, and at midnight took her only treasure and traveled twenty miles on foot through a land of strangers—she found friends."

Rev. HENRY T. HOPKINS, pastor of the Primitive Methodist Church in New York City, who resided in Virginia from 1821 to 1826, relates the following fact:

"An old colored man, the slave of Mr. Emerson; of Portsmouth, Virginia, being under deep conviction for sin, went into the back part of his master's garden to pour out his soul in prayer to God. For this offence he was whipped thirty-nine lashes."

Extract of a letter from DOCTOR F. JULIUS LEMOYNE, of Washington, Pennsylvania, dated Jan. 9, 1839.

"Lest you should not have seen the statement to which I am going to allude, I subjoin a brief outline of the facts of a transaction which occurred in Western Virginia, adjacent to this county, a number of years ago—a full account of which was published in the "Witness" about two years since by Dr. Mitchell, who now resides in Indiana county, Pennsylvania. A slave boy ran away in cold weather, and during his concealment had his legs frozen; he returned, or was retaken. After some time the flesh decayed and *sloughed*—of course was offensive—he was carried out to a field and left there without bed, or shelter, *deserted to die*. His only companions were the house dogs which he called to him. After several days and nights spent in suffering and exposure, he was visited by Drs. McKitchen and Mitchell in the field, of their own accord, having heard by report of his lamentable condition; they remonstrated with the master; brought the boy to the house, amputated both legs, and he finally recovered."

Hon. JAMES K. PAULDING, the Secretary of the Navy of the U. States, in his "Letters from the South" published in 1817, relates the following:

"At one of the taverns along the road we were set down in the same room with an elderly man and a youth who seemed to be well acquainted with him, for they conversed familiarly and with true republican independence—

for they did not mind who heard them. From the tenor of his conversation I was induced to look particularly at the elder. He was telling the youth something like the following detested tale. He was going, it seems, to Richmond, to inquire about a draft for seven thousand dollars, which he had sent by mail, but which, not having been acknowledged by his correspondent, he was afraid had been stolen, and the money received by the thief. 'I should not like to lose it,' said he, 'for I worked hard for it, and sold many a poor d——l of a black to Carolina and Georgia, to scrape it together.' He then went on to tell many a perfidious tale. All along the road it seems he made it his business to inquire where lived a man who might be tempted to become a party in this accursed traffic, and when he had got some half dozen of these poor creatures, *he tied their hands behind their backs*, and drove them three or four hundred miles or more, bare-headed and half naked through the burning southern sun. Fearful that *even southern humanity* would revolt at such an exhibition of human misery and human barbarity, he gave out that they were runaway slaves he was carrying home to their masters. On one occasion a poor black woman exposed this fallacy, and told the story of her being *kidnapped*, and when he got her into a wood out of hearing, he beat her, to use his own expression, 'till her back was white.' It seems he married all the men and women he bought, himself, because they would sell better for being man and wife! But, said the youth, were you not afraid, in traveling through the wild country and sleeping in lone houses, these slaves would rise and kill you? 'To be sure I was,' said the other, 'but I always fastened my door, put a chair on a table before it, so that it might wake me in falling, and slept with a loaded pistol in each hand. It was a bad life, and I left it off as soon as I could live without it; for many is the time I have separated wives from husbands, and husbands from wives, and parents from children, but then I made them amends by marrying them again as soon as I had a chance, that is to say, I made them call each other man and wife, and sleep together, which is quite enough for negroes. I made one bad purchase though,' continued he. 'I bought a young mulatto girl, a lively creature, a great bargain. She had been the favorite of her master, who had lately married. The difficulty was to get her to go, for the poor creature loved her master. However, I swore most bitterly I was only going to take her to her mother's at —— and she went with me, though she seemed to doubt me very much. But when she discovered, at last, that we were out of the state, I thought she would go mad, and in fact,

the next night she drowned herself in the river close by. I lost a good five hundred dollars by this foolish trick." Vol. I. p. 121.

Mr. ——— SPILLMAN, a native, and till recently, a resident of Virginia, now a member of the Presbyterian church in Delhi, Hamilton co., Ohio, has furnished the two following facts, of which he had personal knowledge.

"David Stallard, of Shenandoah co., Virginia, had a slave, who run away; he was taken up and lodged in Woodstock jail. Stallard went with another man and took him out of the jail—tied him to their horses—and started for home. The day was excessively hot, and they rode so fast, dragging the man by the rope behind them, that he became perfectly exhausted—fainted—dropped down, and died.

"Henry Jones, of Culpepper co., Virginia, owned a slave, who ran away. Jones caught him, tied him up, and for two days, at intervals, continued to flog him, and rub salt into his mangled flesh, until his back was literally cut up. The slave sunk under the torture; and for some days it was supposed he must die. He, however, slowly recovered; though it was some weeks before he could walk."

Mr. NATHAN COLE, of St. Louis, Missouri, in a letter to Mr. Arthur Tappan, of New-York, dated July 2, 1834, says,—

"You will find inclosed an account of the proceedings of an inquest lately held in this city upon the body of a slave, the details of which, if published, not one in ten could be induced to believe true.[\[11\]](#) It appears that the master or mistress, or both, suspected the unfortunate wretch of hiding a bunch of keys which were missing; and to extort some explanation, which, it is more than probable, the slave was as unable to do as her mistress, or any other person, her master, Major Harney, an officer of our army, had whipped her for three successive days, and it is supposed by some, that she was kept tied during the time, until her flesh was so lacerated and torn that it was impossible for the jury to say whether it had been done with a whip or hot iron; some think both—but she was tortured to death. It appears also that the husband of the said slave had become suspected of telling some neighbor of what was going on, for which Major Harney commenced

torturing him, until the man broke from him, and ran into the Mississippi and drowned himself. The man was a pious and very industrious slave, perhaps not surpassed by any in this place. The woman has been in the family of John Shackford, Esq., the present doorkeeper of the Senate of the United States, for many years; was considered an excellent servant—was the mother of a number of children—and I believe was sold into the family where she met her fate, as matter of conscience, to keep her from being sent below."

[Footnote [11](#): The following is the newspaper notice referred to:—

An inquest was held at the dwelling house of Major Harney, in this city, on the 27th inst. by the coroner, on the body of Hannah, a slave. The jury, on their oaths, and after hearing the testimony of physicians and several other witnesses, found, that said slave "came to her death by wounds inflicted by William S. Harney."]

MR. EZEKIEL BIRDSEYE, a highly respected citizen of Cornwall, Litchfield co., Connecticut, who resided for many years at the south, furnished to the Rev. E. R. Tyler, editor of the Connecticut Observer, the following personal testimony.

"While I lived in Limestone co., Alabama, in 1826-7, a tavern-keeper of the village of Moresville discovered a negro carrying away a piece of old carpet. It was during the Christmas holidays, when the slaves are allowed to visit their friends. The negro stated that one of the servants of the tavern owed him some twelve and a half or twenty-five cents, and that he had taken the carpet in payment. This the servant denied. The innkeeper took the negro to a field near by, and whipped him cruelly. He then struck him with a stake, and punched him in the face and mouth, knocking out some of his teeth. After this, he took him back to the house, and committed him to the care of his son, who had just then come home with another young man. This was at evening. They whipped him by turns, with heavy cowskins, and made the *dogs shake him*. A Mr. Phillips, who lodged at the house, heard the cruelty during the night. On getting up he found the negro in the bar-room,

terribly mangled with the whip, and his flesh so torn by the dogs, that the cords were bare. He remarked to the landlord that he was dangerously hurt, and needed care. The landlord replied that he deserved none. Mr. Phillips went to a neighboring magistrate, who took the slave home with him, where he soon died. The father and son were both tried, and acquitted!! A suit was brought, however, for damages in behalf of the owner of the slave, a young lady by the name of Agnes Jones. *I was on the jury when these facts were stated on oath.* Two men testified, one that he would have given \$1000 for him, the other \$900 or \$950. The jury found the latter sum.

"At Union Court House, S.C., a tavern-keeper, by the name of Samuel Davis, procured the conviction and execution of his own slave, for stealing a cake of gingerbread from a grog shop. The slave raised the latch of the back door, and took the cake, doing no other injury. The shop keeper, whose name was Charles Gordon, was willing to forgive him, but his master procured his conviction and execution by hanging. The slave had but one arm; and an order on the state treasury by the court that tried him, which also assessed his value, brought him more money than he could have obtained for the slave in market."

Mr. —, an elder of the Presbyterian Church in one of the slave states, lately wrote a letter to an agent of the Anti-Slavery Society, in which he states the following fact. The name of the writer is with the Executive Committee of the American Anti-Slavery Society.

"I was passing through a piece of timbered land, and on a sudden I heard a sound as of murder; I rode in that direction, and at some distance discovered a naked black man, hung to the limb of a tree by his hands, his feet chained together, and a pine rail laid with one end on the chain between his legs, and the other upon the ground, to steady him; and in this condition the overseer gave him *four hundred lashes*. The miserably lacerated slave was then taken down, and put to the care of a physician. And what do you suppose was the offence for which all this was done? Simply this; his owner, observing that he laid off corn rows too crooked, he replied, 'Massa, much corn grow on crooked row as on straight one!' This was it—this was enough. His overseer, boasting of his skill in managing a *nigger*, he was submitted to him, and treated as above."

DAVID L. CHILD, Esq., of Northampton, Massachusetts, Secretary of the United States' minister at the Court of Lisbon during the administration of President Monroe, stated the following fact in an oration delivered by him in Boston, in 1831. (See Child's "Despotism of Freedom," p. 30.

"An honorable friend, who stands high in the state and in the nation, [[12](#)] was *present at the* burial of a female slave in Mississippi, who *had been whipped to death* at the stake by her master, because she was gone longer of an errand to the neighboring town than her master thought necessary. Under the lash she protested that she was ill, and was obliged to rest in the fields. To complete the climax of horror, she was delivered of a dead infant while undergoing the punishment."

[Footnote [12](#): "The narrator of this fact is now absent from the United States, and I do not feel at liberty to mention his name."]

The same fact is stated by MRS. CHILD in her "Appeal." In answer to a recent letter, inquiring of Mr. and Mrs. Child if they were now at liberty to disclose the name of their informant, Mr. C. says,—

"The witness who stated to us the fact was John James Appleton, Esq., of Cambridge, Mass. He is now in Europe, and it is not without some hesitation that I give his name. He, however, has openly embraced our cause, and taken a conspicuous part in some anti-slavery public meetings since the time that I felt a scruple at publishing his name. Mr. Appleton is a gentleman of high talents and accomplishments. He has been Secretary of Legation at Rio Janeiro, Madrid, and the Hague; Commissioner at Naples, and Charge d'Affaires at Stockholm."

The two following facts are stated upon the authority of the REV. JOSEPH G. WILSON, pastor of the Presbyterian Church in Salem, Washington co., Indiana.

"In Bath co., Kentucky, Mr. L., in the year '32 or '33, while intoxicated, in a fit of rage whipped a female slave until she fainted and fell on the floor. Then he whipped her to get up; then with red hot tongs he burned off her ears, and whipped her again! but all in vain. He then

ordered his negro men to carry her to the cabin. There she was found dead next morning.

"One Wall, in Chester district, S.C., owned a slave, whom he hired to his brother-in-law, Wm. Beckman, for whom the slave worked eighteen months, and worked well. Two weeks after returning to his master he ran away on account of bad treatment. To induce him to return, the master sold him *nominally* to his neighbor, to whom the slave gave himself up, and by whom he was returned to his master:— Punishment, *stripes*. To prevent escape a bar of iron was fastened with three bands, at the waist, knee, and ankle. That night he broke the bands and bar, and escaped. Next day he was taken and whipped to death, by three men, the master, Thorn, and the overseer. First, he was whipped and driven towards home; on the way he attempted to escape, and was shot at by the master,—caught, and knocked down with the butt of the gun by Thorn. In attempting to cross a ditch he fell, with his feet down, and face on the bank; they whipped in vain to get him up—he died. His soul ascended to God, to be a swift witness against his oppressors. This took place at 12 o'clock. Next evening an inquest was held. Of thirteen jurors, summoned by the coroner, nine said it was murder; two said it was manslaughter, and two said it was JUSTIFIABLE! He was bound over to court, tried, and acquitted—not even fined!"

The following fact is stated on the authority of Mr. WM. WILLIS, of Green Plains, Clark co. Ohio; formerly of Caroline co. on the eastern shore of Maryland.

"Mr. W. knew a slave called Peter White, who was sold to be taken to Georgia; he escaped, and lived a long time in the woods—was finally taken. When he found himself surrounded, he surrendered himself quietly. When his pursuers had him in their possession, they shot him in the leg, and broke it, out of mere wantonness. The next day a Methodist minister set his leg, and bound it up with splints. The man who took him, then went into his place of confinement, wantonly jumped upon his leg and crushed it. His name was William Sparks."

Most of our readers are familiar with the horrible atrocities perpetrated in New Orleans, in 1834, by a certain Madame La Laurie, upon her slaves. They were published extensively in northern newspapers at the time. The following are extracts from the accounts as published in the New Orleans papers immediately after the occurrence. The New Orleans Bee says:—

"Upon entering one of the apartments, the most appalling spectacle met their eyes. Seven slaves, more or less horribly mutilated, were seen suspended by the neck, with their limbs apparently stretched and torn, from one extremity to the other. They had been confined for several months in the situation from which they had thus providentially been rescued; and had been merely kept in existence to prolong their sufferings, and to make them taste all that a most refined cruelty could inflict."

The New Orleans Mercantile Advertiser says:

"A negro woman was found chained, covered with bruises and wounds from severe flogging.—All the apartments were then forced open. In a room on the ground floor, two more were found chained, and in a deplorable condition. Up stairs and in the garret, four more were found chained; some so weak as to be unable to walk, and all covered with wounds and sores. One mulatto boy declares himself to have been chained for five months, being fed daily with only a handful of meal, and receiving every morning the most cruel treatment."

The New Orleans Courier says:—

"We saw one of these miserable beings.—He had a large hole in his head—his body, from head to foot, was covered with scars and filled with worms."

The New Orleans Mercantile Advertiser says:

"Seven poor unfortunate slaves were found—some chained to the floor, others with chains around their necks, fastened to the ceiling; and one poor old man, upwards of sixty years of age, chained hand and foot, and made fast to the floor, in a *kneeling position*. His head bore the appearance of having been beaten until it was broken, and the worms were actually to be seen making a feast of his brains!! A woman had her back literally cooked (if the expression may be used) with the lash; *the very bones might be seen projecting through the skin!*"

The New York Sun, of Feb. 21, 1837, contains the following:—

"Two negroes, runaways from Virginia, were overtaken a few days since near Johnstown, Cambria co. Pa. when the persons in pursuit called out for them to stop or they would shoot them.—One of the negroes turned around and said, he would die before he would be taken, and at the moment received a rifle ball through his knee: the other started to run, but was brought to the ground by a ball being shot in his back. After receiving the above wounds they made battle with their pursuers, but were captured and brought into Johnstown. It is said that the young men who shot them had orders to take them dead or alive."

Mr. M.M. SHAFTER, of Townsend, Vermont, recently a graduate of the Wesleyan University at Middletown, Connecticut, makes the following statement:

"Some of the events of the Southampton, Va. insurrection were narrated to me by Mr. Benjamin W. Britt, from Riddicksville, N.C. Mr. Britt claimed the honor of having shot a black on that occasion, for the crime of disobeying Mr. Britt's imperative 'Stop.' And Mr. Ashurst, of Edenton, Georgia, told me that a neighbor of his 'fired at a likely negro boy of his mother,' because the said boy encroached upon his premises."

Mr. DAVID HAWLEY, a class leader in the Methodist Episcopal Church at St. Albans, Licking county, Ohio, who moved from Kentucky to Ohio in 1831, certifies as follows:—

"About the year 1825, a slave had escaped for Canada, but was arrested in Hardin county. On his return, I saw him in Hart county—his wrists tied together before, his arms tied close to his body, the rope then passing behind his body, thence to the neck of a horse on which rode the master, with a club about three feet long, and of the size of a hoe handle; which, by the appearance of the slave, had been used on his head, so as to wear off the hair and skin in several places, and the blood was running freely from his mouth and nose; his heels very much bruised by the horse's feet, as his master had rode on him because he *would* not go fast enough. Such was the slave's appearance when passing through where I resided. Such cases were not unfrequent."

The following is furnished by Mr. F.A. HART, of Middletown, Connecticut, a manufacturer, and an influential member of the Methodist Episcopal Church. It occurred in 1824, about twenty-five miles this side of Baltimore, Maryland.—

"I had spent the night with a Methodist brother; and while at breakfast, a person came in and called for help. We went out and found a crowd collected around a carriage. Upon approaching we discovered that a slave-trader was endeavoring to force a woman into his carriage. He had already put in three children, the youngest apparently about eight years of age. The woman was strong, and whenever he brought her to the side of the carriage, she resisted so effectually with her feet that he could not get her in. The woman becoming exhausted, at length, by her frantic efforts, he thrust her in with great violence, *stamped her down upon the bottom with his feet!* shouted to the driver to go on; and away they rolled, the miserable captives moaning and shrieking, until their voices were lost in the distance."

Mr. SAMUEL HALL, a teacher in Marietta College, Ohio, writes as follows:—

"Mr. ISAAC C. FULLER is a member of the Methodist Episcopal Church in Marietta. He was a fellow student of mine while in college, and now resides in this place. He says:—In 1832, as I was descending the Ohio with a flat boat, near the 'French Islands,' so called, below Cincinnati, I saw two negroes on horseback. The horses apparently took fright at something and ran. Both jumped over a rail fence; and one of the horses, in so doing, broke one of his fore-legs, falling at the same time and throwing the negro who was upon his back. A white man came out of a house not over two hundred yards distant, and came to the spot. Seizing a stake from the fence, he knocked the negro down five or six times in succession.

"In the same year I worked for a Mr. Nowland, eleven miles above Baton Rouge, La. at a place called 'Thomas' Bend.' He had an overseer who was accustomed to flog more or less of the slaves every morning. I heard the blows and screams as regularly as we used to hear the college bell that summoned us to any duty when we went to school. This overseer was a nephew of Nowland, and there were about fifty

slaves on his plantation. Nowland himself related the following to me. One of his slaves ran away, and came to the Homo Chitto river, where he found no means of crossing. Here he fell in with a white man who knew his master, being on a journey from that vicinity. He induced the slave to return to Baton Rouge, under the promise of giving him a pass, by which he might escape, but, in reality, to betray him to his master. This he did, instead of fulfilling his promise. Nowland said that he took the slave and inflicted five hundred lashes upon him, cutting his back all to pieces, and then threw on hot embers. The slave was on the plantation at the time, and told me the same story. He also rolled up his sleeves, and showed me the scars on his arms, which, in consequence, appeared in places to be callous to the bone. I was with Nowland between five and six months."

Rev. JOHN RANKIN, formerly of Tennessee, now pastor of the Presbyterian Church of Ripley, Ohio, has furnished the following statement:

"The Rev. LUDWELL G. GAINES, now pastor of the Presbyterian Church of Goshen, Clermont county, Ohio, stated to me, that while a resident of a slave state, he was summoned to assist in taking a man who had made his black woman work naked several days, and afterwards murdered her. The murderer armed himself, and threatened to shoot the officer who went to take him; and although there was ample assistance at hand, the officer declined further interference."

Mr. RANKIN adds the following:—

"A Presbyterian preacher, now resident in a slave state, and therefore it is not expedient to give his name, stated, that he saw on board of a steamboat at Louisville, Kentucky, a woman who had been forced on board, to be carried off from all she counted dear on earth. She ran across the boat and threw herself into the river, in order to end a life of intolerable sorrows. She was drawn back to the boat and taken up. The brutal driver beat her severely, and she immediately threw herself again into the river. She was hooked up again, chained, and carried off."

Testimony of M. WILLIAM HANSBOROUGH, of Culpepper county, Virginia, the "owner" of sixty slaves.

"I saw a slave taken out of prison by his master, on a hot summer's day, and driven, by said master, on the road before him, till he dropped down dead."

The above statement was made by Mr. Hansborough to Lindley Coates, of Lancaster county, Pa. a distinguished member of the Society of Friends, and a member of the late Convention in Pa. for altering the State Constitution. The letter from Mr. C. containing this testimony of Mr. H. is now before us.

Mr. TOBIAS BOUDINOT, a member of the Methodist Church in St. Albans, Licking county, Ohio, says:

"In Nicholasville, Ky. in the year 1823, he saw a slave fleeing before the patrol, but he was overtaken near where he stood, and a man with a knotted cane, as large as his wrist, struck the slave a number of times on his head, until the club was broken and he made tame; the blood was thrown in every direction by the violence of the blows."

The Rev. WILLIAM DICKEY, of Bloomingburg, Fayette county, Ohio, wrote a letter to the Rev. John Rankin, of Ripley, Ohio thirteen years since, containing a description of the cutting up of a slave with a broad axe; beginning at the feet and gradually cutting the legs, arms, and body into pieces! This diabolical atrocity was committed in the state of Kentucky, in the year 1807. The perpetrators of the deed were two brothers, Lilburn and Isham Lewis, NEPHEWS OF PRESIDENT JEFFERSON. The writer of this having been informed by Mr. Dickey, that some of the facts connected with this murder were not contained in his letter published by Mr. Rankin, requested him to write the account *anew*, and furnish the additional facts. This he did, and the letter containing it was published in the "Human Rights" for August, 1837. We insert it here, slightly abridged, with the introductory remarks which appeared in that paper.

"Mr. Dickey's first letter has been scattered all over the country, south and north; and though multitudes have affected to disbelieve its statements, *Kentuckians* know the truth of them quite too well to call them in question. The story is fiction or fact—if *fiction*, why has it not been nailed to the wall? Hundreds of people around the mouth of Cumberland River are personally knowing to these facts. *There* are the records of the court that tried the wretches.—*There* their acquaintances and kindred still live. All over that region of country, the brutal butchery of George is a matter of

public notoriety. It is quite needless, perhaps, to add, that the Rev. Wm. Dickey is a Presbyterian clergyman, one of the oldest members of the Chilicothe Presbytery, and greatly respected and beloved by the churches in Southern Ohio. He was born in South Carolina, and was for many years pastor of a church in Kentucky."

REV. WM. DICKEY'S LETTER.

"In the county of Livingston, KY. near the mouth of Cumberland River, lived Lilburn Lewis, a sister's son of the celebrated Jefferson. He was the wealthy owner of a considerable gang of negroes, whom he drove constantly, fed sparingly, and lashed severely. The consequence was, that they would run away. Among the rest was an ill-thrived boy of about seventeen, who, having just returned from a skulking spell, was sent to the spring for water, and in returning let fall an elegant pitcher: it was dashed to shivers upon the rocks. This was made the occasion for reckoning with him. It was night, and the slaves were all at home. The master had them all collected in the most roomy negro house, and a rousing fire put on. When the door was secured, that none might escape, either through *fear of him* or *sympathy with George*, he opened to them the design of the interview, namely, that they might be effectually advised to *stay at home and obey his orders*. All things now in train, he called up George, who approached his master with unreserved submission. He bound him with cords; and by the assistance of Isham Lewis, his youngest brother, laid him on a broad bench, the *meat-block*. He then proceeded to *hack off George at the ankles!* It was with the *broad axe!* In vain did the unhappy victim *scream and roar!* for he was completely in his master's power; not a hand among so many durst interfere; casting the feet into the fire, he lectured them at some length.—He next *chopped him off below the knees!* George *roaring out* and praying his master to begin at the *other end!* He admonished them again, throwing the legs into the fire—then, above the knees, tossing the joints into the fire—the next stroke severed the thighs from the body; these were also committed to the flames—and so it may be said of the arms, head, and trunk, until all was in the fire! He threatened any of them with similar punishment who should in future disobey, run away, or disclose the proceedings of that evening. Nothing now remained but to consume the flesh and

bones; and for this purpose the fire was brightly stirred until two hours after midnight; when a coarse and heavy back-wall, composed of rock and clay, covered the fire and the remains of George. It was the Sabbath—this put an end to the *amusements* of the evening. The negroes were now permitted to disperse, with charges to keep this matter among themselves, and never to whisper it in the neighbourhood, under the penalty of a like punishment.

"When he returned home and retired, his wife exclaimed, 'Why, Mr. Lewis, where have you been, and what were you doing?' She had heard a strange *pounding* and dreadful *screams*, and had smelled something like fresh meat *burning*. The answer he returned was, that he had never enjoyed himself at a ball so well as he had enjoyed himself that night.

"Next morning he ordered the hands to rebuild the back-wall, and he himself superintended the work, throwing the pieces of flesh that still remained, with the bones, behind, as it went up—thus hoping to conceal the matter. But it *could not be hid*—much as the negroes seemed to hazard, they did *whisper the horrid deed*. The neighbors came, and in his presence tore down the wall; and finding the *remains* of the boy, they apprehended Lewis and his brother, and testified against them. They were committed to jail, that they might answer at the coming court for this shocking outrage; but finding security for their appearance at court, THEY WERE ADMITTED TO BAIL!

"In the interim, other articles of evidence leaked out. That of Mrs. Lewis hearing a pounding, and screaming and her smelling fresh meat burning, for not till now had this come out. He was offended with her for disclosing these things, alleging that they might have some weight against him at the pending trial.

"In connection with this is another item, full of horror. Mrs. Lewis, or her girl, in making her bed one morning after this, found, under her bolster, a keen BUTCHER KNIFE! The appalling discovery forced from her the confession that she considered her life in jeopardy. Messrs. Rice and Philips, whose wives were her sisters, went to see her and to bring her away if she wished it. Mr. Lewis received them with

all the expressions of *Virginia hospitality*. As soon as they were seated they said, 'Well, Letitia, we supposed that you might be unhappy here, and afraid for your life; and we have come to-day to take you to your father's, if you desire it.' She said, 'Thank you, kind brothers, I am indeed afraid for my life.'—We need not interrupt the story to tell how much surprised he affected to be with this strange procedure of his brothers-in-law, and with this declaration of his wife. But all his professions of fondness for her, to the contrary notwithstanding, they rode off with her before his eyes.—He followed and overtook, and went with them to her father's; but she was locked up from him, with her own consent, and he returned home.

"Now he saw that his character was gone, his respectable friends believed that he had massacred George; but, worst of all, he saw that they considered the life of the harmless Letitia was in danger from his perfidious hands. It was too much for his chivalry to sustain. The proud Virginian sunk under the accumulated load of public odium. He proposed to his brother Isham, who had been his accomplice in the George affair, that they should finish the play of life with a still deeper tragedy. The plan was, that they should shoot one another. Having made the hot-brained bargain, they repaired with their guns to the grave-yard, which was on an eminence in the midst of his plantation. It was inclosed with a railing, say thirty feet square. One was to stand at one railing, and the other over against him at the other. They were to make ready, take aim, and count deliberately 1, 2, 3, and then fire. Lilburn's will was written, and thrown down open beside him. They cocked their guns and raised them to their faces; but the peradventure occurring that one of the guns might miss fire, Isham was sent for a rod, and when it was brought, Lilburn cut it off at about the length of two feet, and was showing his brother how the survivor might do, provided one of the guns should fail; (for they were determined upon going together;) but forgetting, perhaps, in the perturbation of the moment that the gun was cocked, when he touched trigger with the rod the gun fired, and he fell, and died in a few minutes—and was with George in the eternal world, where *the slave is free from his master*. But poor Isham was so terrified with this unexpected occurrence and so confounded by the awful contortions of his brother's face, that he

had not nerve enough to follow up the play, and finish the plan as was intended, but suffered Lilburn to go alone. The negroes came running to see what it meant that a gun should be fired in the grave-yard. There lay their master, dead! They ran for the neighbors. Isham still remained on the spot. The neighbors at the first charged him with the murder of his brother. But he, though as if he had lost more than half his mind, told the whole story; and the course of range of the ball in the dead man's body agreeing with his statement, Isham was not farther charged with Lilburn's death.

"The Court sat—Isham was judged to be guilty of a capital crime in the affair of George. He was to be hanged at Salem. The day was set. My good old father visited him in the prison—two or three times talked and prayed with him; I visited him once myself. We fondly hoped that he was a sincere penitent. Before the day of execution came, by some means, I never knew what, Isham was *missing*. About two years after, we learned that he had gone down to Natchez, and had married a lady of some refinement and piety. I saw her letters to his sisters, who were worthy members of the church of which I was pastor. The last letter told of his death. He was in Jackson's army, and fell in the famous battle of New Orleans."

"I am, sir, your friend,

"WM. DICKEY."

PERSONAL NARRATIVES-PART III.

NARRATIVE AND TESTIMONY OF REV. FRANCIS HAWLEY.

Mr. Hawley is the pastor of the Baptist Church in Colebrook, Litchfield county, Connecticut. He has resided fourteen years in the slave states, North and South Carolina. His character and standing with his own denomination at the south, may be inferred from the fact, that the Baptist State Convention of North Carolina appointed him, a few years since, their general agent to visit the Baptist churches within their bounds, and to secure their co-operation in the objects of the Convention. Mr. H. accepted the appointment, and for some time traveled in that capacity.

"I rejoice that the Executive Committee of the American Anti-Slavery Society have resolved to publish a volume of facts and testimony relative to the character and workings of American slavery. Having resided fourteen years at the south, I cheerfully comply with your request, to give the result of my observation and experience.

"And I would here remark, that one may reside at the south for years, and not witness extreme cruelties; a northern man, and one who is not a slaveholder, would be the last to have an opportunity of witnessing the infliction of cruel punishments.

PLANTATIONS.

"A majority of the large plantations are on the banks of rivers, far from the public eye. A great deal of low marshy ground lies in the vicinity of most of the rivers at the south; consequently the main roads are several miles from the rivers, and generally no *public* road passes the plantations. A stranger traveling on the *ridge*, would think himself in a miserably poor country; but every two or three miles he will see a road turning off and leading into the swamp; taking one of those roads, and traveling from two to six miles, he will come to a large gate; passing which, he will find himself in a clearing of several hundred acres of the first quality of land; passing on, he will see 30, or 40, or more

slaves—men, women, boys and girls, at their task, every one with a hoe; or, if in cotton picking season, with their baskets. The overseer, with his whip, either riding or standing about among them; or if the weather is hot, sitting under a shade. At a distance, on a little rising ground, if such there be, he will see a cluster of huts, with a tolerable house in the midst, for the overseer. Those huts are from ten to fifteen feet square, built of logs, and covered, not with shingles, but with boards, about four feet long, split out of pine timber with a 'frow'. The floors are very commonly made in this way. Clay is first worked until it is soft; it is then spread upon the ground, about four or five inches thick; when it dries, it becomes nearly as hard as a brick. The crevices between the logs are sometimes filled with the same. These huts generally cost the master nothing—they are commonly built by the negroes at night, and on Sundays. When a slave of a neighboring plantation takes a wife, or to use the phrase common at the south, 'takes up' with one of the women, he builds a hut, and it is called her house. Upon entering these huts, (not as comfortable in many instances as the horse stable,) generally, you will find no chairs, but benches and stools; no table, no bedstead, and no bed, except a blanket or two, and a few rags or moss; in some instances a knife or two, but very rarely a fork. You may also find a pot or skillet, and generally a number of gourds, which serve them instead of bowls and plates. The cruelties practiced on those secluded plantations, the judgment day alone can reveal. Oh, Brother, could I summon ten slaves from ten plantations that I could name, and have them give but one year's history of their bondage, it would thrill the land with horror. Those overseers who follow the business of overseeing for a livelihood, are generally the most unprincipled and abandoned of men. Their wages are regulated according to their skill in extorting labor. The one who can make the most bags of cotton, with a given number of hands, is the one generally sought after; and there is a competition among them to see who shall make the largest crop, according to the hands he works. I ask, what must be the condition of the poor slaves, under the unlimited power of such men, in whom, by the long-continued practise of the most heart-rending cruelties, every feeling of humanity has been obliterated? But it may be asked, cannot the slaves have redress by appealing to their masters? In many instances it is impossible, as their

masters live hundreds of miles off. There are perhaps thousands in the northern slave states, [and many in the free states,] who own plantations in the southern slave states, and many more spend their summers at the north, or at the various watering places. But what would the slaves gain, if they should appeal to the master? He has placed the overseer over them, with the understanding that he will make as large a crop as possible, and that he is to have entire control, and manage them according to his own judgment. Now suppose that in the midst of the season, the slaves make complaint of cruel treatment. The master cannot get along without an overseer—it is perhaps very sickly on the plantation he dare not risk his own life there. Overseers are all enraged at that season, and if he takes part with his slave against the overseer, he would destroy his authority, and very likely provoke him to leave his service—which would of course be a very great injury to him. Thus, in nineteen cases out of twenty, self-interest would prevent the master from paying any attention to the complaints of his slaves. And, if any should complain, it would of course come to the ears of the overseer, and the complainant would be inhumanly punished for it.

CLOTHING.

"The rule, where slaves are hired out, is two suits of clothes per year, one pair of shoes, and one blanket; but as it relates to the great body of the slaves, this cannot be called a general rule. On many plantations, the children under ten or twelve years old, go *entirely naked*—or, it clothed at all, they have nothing more than a shirt. The cloth is of the coarsest kind, far from being durable or warm; and their shoes frequently come to pieces in a few weeks. I have never known any provision made, or time allowed for the washing of clothes. If they wish to wash, as they have generally but one suit, they go after their day's toil to some stream, build a fire, pull off their clothes and wash them in the stream, and dry them by the fire; and in some instances they wear their clothes until they are worn off; without washing. I have never known an instance of a slaveholder putting himself to any expense, that his slaves might have decent clothes for the Sabbath. If by making baskets, brooms, mats, &c. at night or on Sundays, the slaves can get money enough to buy a Sunday suit, very well. I have

never known an instance of a slaveholder furnishing his slaves with stockings or mittens. I *know* that the slaves suffer much, and no doubt many die in consequence of not being well clothed.

FOOD.

"In the grain-growing part of the south, the slaves, as it relates to food, fare tolerably well; but in the cotton, and rice-growing, and sugar-making portion, some of them fare badly. I have been on plantations where, from the appearance of the slaves, I should judge they were half-starved. They receive their allowance very commonly on Sunday morning. They are left to cook it as they please, and when they please. Many slaveholders rarely give their slaves meat, and very few give them more food than will keep them in a working condition. They rarely ever have a *change* of food. I have never known an instance of slaves on plantations being furnished either with sugar, butter, cheese, or milk.

WORK.

"If the slaves on plantations were well fed and clothed, and had the stimulus of wages, they could perhaps in general perform their tasks without injury. The horn is blown soon after the dawn of day, when all the hands destined for the field must be 'on the march!' If the field is far from their huts, they take their breakfast with them. They toil till about ten o'clock, when they eat it. They then continue their toil till the sun is set.

"A neighbor of mine, who has been an overseer in Alabama, informs me, that there they ascertain how much labor a slave can perform in a day, in the following manner. When they commence a new cotton field, the overseer takes his watch, and marks how long it takes them to hoe one row, and then lays out the task accordingly. My neighbor also informs me, that the slaves in Alabama are worked very hard; that the lash is almost universally applied at the close of the day, if they fail to perform their task in the cotton-picking season. You will see them, with their baskets of cotton, slowly bending their way to the cotton house, where each one's basket is weighed. They have no means of knowing accurately, in the course of the day, how they make progress;

so that they are in suspense, until their basket is weighed. Here comes the mother, with her children; she does not know whether herself, or children, or all of them, must take the lash; they cannot weigh the cotton themselves—the whole must be trusted to the overseer. While the weighing goes on, all is still. So many pounds short, cries the overseer, and takes up his whip, exclaiming, 'Step this way, you d—n lazy scoundrel, or bitch.' The poor slave begs, and promises, but to no purpose. The lash is applied until the overseer is satisfied. Sometimes the whipping is deferred until the weighing is all over. I have said that all must be *trusted* to the overseer. If he owes any one a grudge, or wishes to enjoy the fiendish pleasure of whipping a little, (for some overseers really delight in it,) they have only to tell a falsehood relative to the weight of their basket; they can then have a pretext to gratify their diabolical disposition; and from the character of overseers, I have no doubt that it is frequently done. On all plantations, the male and female slaves fare pretty much alike; those who are with child are driven to their task till within a few days of the time of their delivery; and when the child is a few weeks old, the mother must again go to the field. If it is far from her hut, she must take her babe with her, and leave it in the care of some of the children—perhaps of one not more than four or five years old. If the child cries, she cannot go to its relief; the eye of the overseer is upon her; and if, when she goes to nurse it, she stays a little longer than the overseer thinks necessary, he commands her back to her task, and perhaps a husband and father must hear and witness it all. Brother, you cannot begin to know what the poor slave mothers suffer, on thousands of plantations at the south.

"I will now give a few facts, showing the workings of the system. Some years since, a Presbyterian minister moved from North Carolina to Georgia. He had a negro man of an uncommon mind. For some cause, I know not what, this minister whipped him most unmercifully. He next nearly *drowned* him; he then put him *in the fence*; this is done by lifting up the corner of a 'worm' fence, and then putting the feet through; the rails serve as *stocks*. He kept him there some time, how long I was not informed, but the poor slave *died* in a few days; and, if I was rightly informed, nothing was done about it, either in church or state. After some time, he moved back to North Carolina, and is now a

member of —— Presbytery. I have heard him preach, and have been in the pulpit with him. May God forgive me!

"At Laurel Hill, Richmond county, North Carolina, it was reported that a runaway slave was in the neighborhood. A number of young men took their guns, and went in pursuit. Some of them took their station near the stage road, and kept on the look-out. It was early in the evening—the poor slave came along, when the ambush rushed upon him, and ordered him to surrender. He refused, and kept them off with his club. They still pressed upon him with their guns presented to his breast. Without seeming to be daunted, he caught hold of the muzzle of one of the guns, and came near getting possession of it. At length, retreating to a fence on one side of the road, he sprang over into a corn-field, and started to run in one of the rows. One of the young men stepped to the fence, fired, and lodged the whole charge between his shoulders; he fell, and died in a short time. He died without telling who his master was, or whether he had any, or what his own name was, or where he was from. A hole was dug by the side of the road his body tumbled into it, and thus ended the whole matter.

"The Rev, Mr. C. a Methodist minister, held as his slave a negro man, who was a member of his own church. The slave was considered a very pious man, had the confidence of his master, and all who knew him, and if I recollect right, he sometimes attempted to preach. Just before the Nat Turner insurrection, in Southampton county, Virginia, by which the whole south was thrown into a panic, then worthy slave obtained permission to visit his relatives, who resided either in Southampton, or the county adjoining. This was the only instance that ever came to my knowledge, of a slave being permitted to go so far to visit his relatives. He went and returned according to agreement. A few weeks after his return, the insurrection took place, and the whole country was deeply agitated. Suspicion soon fixed on this slave. Nat Turner was a Baptist minister, and the south became exceedingly jealous of all negro preachers. It seemed as if the whole community were impressed with the belief that he knew all about it; that he and Nat Turner had concocted an extensive insurrection; and so confident were they in this belief, that they took the poor slave, tried him, and hung him. It was all done in a few days. He protested his innocence to

the last. After the excitement was over, many were ready to acknowledge that they believed him innocent. He was hung upon *suspicion*!

"In R—— county, North Carolina, lived a Mr. B. who had the name of being a cruel master. Three or four winters since, his slaves were engaged in clearing a piece of new land. He had a negro girl, about 14 years old, whom he had severely whipped a few days before, for not performing her task. She again failed. The hands left the field for home; she went with them a part of the way, and fell behind; but the negroes thought she would soon be along; the evening passed away, and she did not come. They finally concluded that she had gone back to the new ground, to lie by the log heaps that were on fire. But they were mistaken: she had sat down by the foot of a large pine. She was thinly clad—the night was cold and rainy. In the morning the poor girl was found, but she was speechless and died in a short time.

"One of my neighbors sold to a speculator a negro boy, about 14 years old. It was more than his poor mother could bear. Her reason fled, and she became a perfect *maniac*, and had to be kept in close confinement. She would occasionally get out and run off to the neighbors. On one of these occasions she came to my house. She was indeed a pitiable object. With tears rolling down her cheeks, and her frame shaking with agony, she would cry out, '*don't you hear him—they are whipping him now, and he is calling for me!*' This neighbor of mine, who tore the boy away from his poor mother, and thus broke her heart, was a *member of the Presbyterian church*.

"Mr. S——, of Marion District, South Carolina, informed me that a boy was killed by the overseer on Mr. P——'s plantation. The boy was engaged in driving the horses in a cotton gin. The driver generally sits on the end of the sweep. Not driving to suit the overseer, he knocked him off with the butt of his whip. His skull was fractured. He died in a short time.

"A man of my acquaintance in South Carolina, and of considerable wealth, had an only son, whom he educated for the bar; but not succeeding in his profession, he soon returned home. His father having

a small plantation three or four miles off; placed his son on it as an overseer. Following the example of his father, as I have good reason to believe, he took the wife of one of the negro men. The poor slave felt himself greatly injured, and expostulated with him. The wretch took his gun, and deliberately shot him. Providentially he only wounded him badly. When the father came, and undertook to remonstrate with his son about his conduct, he threatened to shoot him also! and finally, took the negro woman, and went to Alabama, where he still resided when I left the south.

"An elder in the Presbyterian church related to me the following.—'A speculator with his drove of negroes was passing my house, and I bought a little girl, nine or ten years old. After a few months, I concluded that I would rather have a plough-boy. Another speculator was passing, and I sold the girl. She was much distressed, and was very unwilling to leave.'—She had been with him long enough to become attached to his own and his negro children, and he concluded by saying, that in view of the little girl's tears and cries, he had determined never to do the like again. I would not trust him, for I know him to be a very avaricious man.

"While traveling in Anson county, North Carolina, I put up for a night at a private house. The man of the house was not at home when I stopped, but came in the course of the evening, and was noisy and profane, and nearly drunk. I retired to rest, but not to sleep; his cursing and swearing were enough to keep a regiment awake. About midnight he went to his kitchen, and called out his two slaves, a man and woman. His object, he said, was to whip them. They both begged and promised, but to no purpose. The whipping began, and continued for some time. Their cries might have been heard at a distance.

"I was acquainted with a very wealthy planter, on the Pedee river, in South Carolina, who has since died in consequence of intemperance. It was said that he had occasioned the death of twelve of his slaves, by compelling them to work in water, opening a ditch in the midst of winter. The disease with which they died was a pleurisy.

"In crossing Pedee river, at Cashway Ferry, I observed that the ferryman had no hair on either side of his head, I asked him the cause. He informed me that it was caused by his master's cane. I said, you have a very bad master. 'Yes, a very bad master.' I understood that he was once a number of Congress from South Carolina.

"While traveling as agent for the North Carolina Baptist State Convention, I attended a three days' meeting in Gates county, Friday, the first day, passed off. Saturday morning came, and the pastor of the church, who lived a few miles off, did not make his appearance. The day passed off, and no news from the pastor. On Sabbath morning, he came hobbling along, having but little use of one foot. He soon explained: said he had a hired negro man, who, on Saturday morning, gave him a 'little *slack jaw*.' Not having a stick at hand, he fell upon him with his fist and foot, and in *kicking* him, he injured his foot so seriously, that he could not attend meeting on Saturday.

"Some of the slaveholding ministers at the south, put their slaves under overseers, or hire them out, and then take the pastoral care of churches. The Rev. Mr. B——, formerly of Pennsylvania, had a plantation in Marlborough District, South Carolina, and was the pastor of a church in Darlington District. The Rev. Mr. T——, of Johnson county, North Carolina, has a plantation in Alabama.

"I was present, and saw the Rev. J—— W——, of Mecklenburg county, North Carolina, hire out four slaves to work in the gold mines in Burke county. The Rev. H—— M——, of Orange county, sold for \$900, a negro man to a speculator, on a Monday of a camp meeting.

"Runaway slaves are frequently hunted with guns and dogs. *I was once out on such an excursion, with my rifle and two dogs.* I trust the Lord has forgiven me this heinous wickedness! We did not take the runaways.

"Slaves are sometimes most unmercifully punished for trifling offences, or mere mistakes.

"As it relates to amalgamation, I can say, that I have been in respectable families, (so called,) where I could distinguish the family

resemblance in the slaves who waited upon the table. I once hired a slave who belonged to his own *uncle*. It is so common for the female slaves to have white children, that little or nothing is ever said about it. Very few inquiries are made as to who the father is.

"Thus, brother —, I have given you very briefly, the result, in part, of my observations and experience relative to slavery. You can make what disposition of it you please. I am willing that my name should go to the world with what I have now written.

"Yours affectionately, for the oppressed,

"FRANCIS HAWLEY."

Colebrook, Connecticut, March 18, 1839.

TESTIMONY OF REUBEN G. MACY AND RICHARD MACY.

The following is an extract of a letter recently received from CHARLES MARRIOTT of Hudson, New York. Mr. Marriott is an elder in the Religious Society of Friends, and is extensively known and respected.

"The two following brief statements, are furnished by Richard Macy and Reuben G. Macy, brothers, both of Hudson, New York. They are head carpenters by trade, and have been well known to me for more than thirty years, as esteemed members of the Religious Society of Friends. They inform me that during their stay in South Carolina, a number more similar cases to those here related, came under their notice, which to avoid repetition they omit.

C. MARRIOTT."

TESTIMONY OF REUBEN G. MACY.

"During the winter of 1818 and 19, I resided on an island near the mouth of the Savanna river, on the South Carolina side. Most of the slaves that came under my particular notice, belonged to a widow and her daughter, in whose family I lived. No white man belonged to the plantation. Her slaves were under the care of an overseer who came once a week to give orders, and settled the score laid up against such as their mistress thought deserved punishment, which was from

twenty-five to thirty lashes on their naked backs, with a whip which the overseer generally brought with him. This whip had a stout handle about two feet long, and a lash about four and a half feet. From two to four received the above, I believe nearly every week during the winter, sometimes in my presence, and always in my hearing. I examined the backs and shoulders of a number of the men, which were mostly naked while they were about their labor, and found them covered with hard ridges in every direction. One day, while busy in the cotton house, hearing a noise, I ran to the door and saw a colored woman pleading with the overseer, who paid no attention to her cries, but tied her hands together, and passed the rope over a beam, over head, where was a platform for spreading cotton, he then drew the rope as tight as he could, so as to let her toes touch the ground; then stripped her body naked to the waist, and went deliberately to work with his whip, and put on twenty-five or thirty lashes, she pleading in vain all the time. I inquired, the cause of such treatment, and was informed it was for answering her mistress rather '*short*.'"

"A woman from a neighboring plantation came where I was, on a visit; she came in a boat rowed by six slaves, who, according to the common practice, were left to take care of themselves, and having laid them down in the boat and fallen asleep, the tide fell, and the water filling the stern of the boat, wet their mistresses trunk of clothes. When she discovered it, she called them up near where I was, and compelled them to whip each other, till they all had received a severe flogging. She standing by with a whip in her hand to see that they did not spare each other. Their usual allowance of food was one peck of corn per week, which was dealt out to them every first day of the week, and such as were not there to receive their portion at the appointed time, had to live as they could during the coming week. Each one had the privilege of planting a small piece of ground, and raising poultry for their own use which they generally sold, that is, such as did improve the privilege which were but few. They had nothing allowed them besides the corn, except one quarter of beef at Christmas which a slave brought three miles on his head. They were allowed three days rest at Christmas. Their clothing consisted of a pair of trowsers and jacket, made of whitish woollen cloth called negro cloth. The women had

nothing but a petticoat, and a very short short-gown, made of the same kind of cloth. Some of the women had an old pair of shoes, but they generally went *barefoot*. The houses for the field slaves were about fourteen feet square, built in the coarsest manner, having but one room, without any chimney, or flooring, with a hole at the roof at one end to let the smoke out.

"Each one was allowed one blanket in which they rolled themselves up. I examined their houses but could not discover any thing like a bed. I was informed that when they had a sufficiency of potatoes the slaves were allowed some; but the season that I was there they did not raise more than were wanted for seed. All their corn was ground in one hand-mill, every night just as much as was necessary for the family, then each one his daily portion, which took considerable time in the night. I often awoke and heard the sound of the mill. Grinding the corn in the night, and in the dark, after their day's labor, and the want of other food, were great hardships.

"The traveling in those parts, among the islands, was altogether with boats, rowed by from four to ten slaves, which often stopped at our plantation, and staid through the night, when the slaves, after rowing through the day, were left to shift for themselves; and when they went to Savannah with a load of cotton they were obliged to sleep in the open boats, as the law did not allow a colored person to be out after eight o'clock in the evening, without a pass from his master."

TESTIMONY OF RICHARD MACY.

"The above account is from my brother, I was at work on Hilton Head about twenty miles north of my brother, during the same winter. The same allowance of one peck of corn for a week, the same kind of houses to live in, and the same method of grinding their corn, and always in the night, and in the dark, was practiced there.

"A number of instances of severe whipping came under my notice. The first was this:—two men were sent out to saw some blocks out of large live oak timber on which to raise my building. Their saw was in poor

order, and they sawed them badly, for which their master stripped them naked and flogged them.

"The next instance was a boy about sixteen years of age. He had crept into the coach to sleep; after two or three nights he was caught by the coach driver, a *northern man*, and stripped *entirely naked*, and whipped without mercy, his master looking on.

"Another instance. The overseer, a young white man, had ordered several negroes a boat's crew, to be on the spot at a given time. One man did not appear until the boat had gone. The overseer was very angry and told him to strip and be flogged; he being slow, was told if he did not instantly strip off his jacket, he, the overseer, would whip it off which he did in shreds, whipping him cruelly.

"The man ran into the barrens and it was about a month before they caught him. He was newly starved, and at last stole a turkey; then another, and was caught.

"Having occasion to pass a plantation very early one foggy morning, in a boat we heard the sound of the whip, before we could see, but as we drew up in front of the plantation, we could see the negroes at work in the field. The overseer was going from one to the other causing them to lay down their hoe, strip off their garment, hold up their hands and receive their number of lashes. Thus he went on from one to the other until we were out of sight. In the course of the winter a family came where I was, on a visit from a neighboring island; of course, in a boat with negroes to row them—one of these a barber, told me that he ran away about two years before, and joined a company of negroes who had fled to the swamps. He said they suffered a great deal—were at last discovered by a party of hunters, who fired among them, and caused them to scatter. Himself and one more fled to the coast, took a boat and put off to sea, a storm came on and swamped or upset them, and his partner was drowned, he was taken up by a passing vessel and returned to his master.

RICHARD MACY.

Hudson, 12 mo. 29th, 1838."

TESTIMONY OF MR. ELEAZAR POWELL

EXTRACT OF A LETTER FROM MR. WILLIAM SCOTT, a highly respectable citizen of Beaver co. Pennsylvania, dated Jan 7, 1839.

Chippeca Township, Beaver co. Pa. Jan. 7, 1839.

"I send you the statement of Mr. Eleazar Powell, who was born, and has mostly resided in this township from his birth. His character for sobriety and truth stands above impeachment.

"With sentiments of esteem, I am your friend, WILLIAM SCOTT.

"In the month of December, 1836, I went to the State of Mississippi to work at my trade, (masonry and bricklaying,) and continued to work in the counties of Adams and Jefferson, between four and five months. In following my business I had an opportunity of seeing the treatment of slaves in several places.

"In Adams county I built a chimney for a man named Joseph Gwatney; he had forty-five field hands of both sexes. The field in which they worked at that time, lay about two miles from the house; the hands had to cook and eat their breakfast, prepare their dinner, and be in the field at daylight, and continue there till dark. In the evening the cotton they had picked was weighed, and if they fell short of their task they were whipped. One night I attended the weighing—two women fell short of their task, and the master ordered the black driver to take them to the quarters and flog them; one of them was to receive twenty-five lashes and pick a peck of cotton seed. I have been with the overseer several times through the negro quarters. The huts are generally built of split timber, some larger than rails, twelve and a half feet wide and fourteen feet long—some with and some without chimneys, and generally without floors; they were generally without daubing, and mostly had split clapboards nailed on the cracks on the outside, though some were without even that: in some there was a kind of rough bedstead, made from rails, polished with the axe, and put together in a very rough manner, the bottom covered with clapboards, and over that a bundle of worn out clothes. In some huts there was no bedstead at all. The above

description applies to the places generally with which I was acquainted, and they were mostly *old settlements*.

"In the east part of Jefferson county I built a chimney for a man named —— M'Coy; he had forty-seven laboring hands. Near where I was at work, M'Coy had ordered one of his slaves to set a post for a gate. When he came to look at it, he said the slave had not set it in the right place; and ordered him to strip, and lie down on his face; telling him that if he struggled, or attempted to get up, two men, who had been called to the spot, should seize and hold him fast. The slave agreed to be quiet, and M'Coy commenced flogging him on the bare back, with the wagon whip. After some time the sufferer attempted to get up; one of the slaves standing by, seized him by the feet and held him fast; upon which he yielded, and M'Coy continued to flog him ten or fifteen minutes. When he was up, and had put on his trowsers, the blood came through them.

"About half a mile from M'Coy's was a plantation owned by his step-daughter. The overseer's name was James Farr, of whom it appears Mrs. M'Coy's waiting woman was enamoured. One night, while I lived there, M'Coy came from Natchez, about 10 o'clock at night. He said that Dinah was gone, and wished his overseer to go with him to Farr's lodgings. They went accordingly, one to each door, and caught Dinah as she ran out, she was partly dressed in her mistress's clothes; M'Coy whipped her unmercifully, and she afterwards made her escape. On the next day, (Sabbath), M'Coy came to the overseer's, where I lodged, and requested him and me to look for her, as he was afraid that she had hanged herself. He then gave me the particulars of the flogging. He stated that near Farr's he had made her strip and lie down, and had flogged her until he was tired; that before he reached home he had a second time made her strip, and again flogged her until he was tired; that when he reached home he had tied her to a peach-tree, and after getting a drink had flogged her until he was thirsty again; and while he went to get a drink the woman made her escape. He stated that he knew, from the whipping he had given her, there must be in her back cuts an inch deep. He showed the place where she had been tied to the tree; there appeared to be as much blood as if a hog had been stuck

there. The woman was found on Sabbath evening, near the sprang, and had to be carried into the house.

"While I lived there I heard M'Coy say, if the slaves did not raise him three hundred bales of cotton the ensuing season, he would kill every negro he had.

"Another case of flogging came under my notice: Philip O. Hughes, sheriff of Jefferson county, had hired a slave to a man, whose name I do not recollect. On a Sabbath day the slave had drank somewhat freely; he was ordered by the tavern keeper, (where his present master had left his horse and the negro,) to stay in the kitchen; the negro wished to be out. In persisting to go out he was knocked down three times; and afterwards flogged until another young man and myself ran about half a mile, having been drawn by the cries of the negro and the sound of the whip. When we came up, a number of men that had been about the tavern, were whipping him, and at intervals would ask him if he would take off his clothes. At seeing them drive down the stakes for a regular flogging he yielded, and took them off. They then flogged him until satisfied. On the next morning I saw him, and his pantaloons were all in a gore of blood.

"During my stay in Jefferson county, Philip O. Hughes was out one day with his gun—he saw a negro at some distance, with a club in one hand and an ear of corn in the other—Hughes stepped behind a tree, and waited his approach; he supposed the negro to be a runaway, who had escaped about nine months before from his master, living not very far distant. The negro discovered Hughes before he came up, and started to run; he refusing to stop, Hughes fired, and shot him through the arm. Through loss of blood the negro was soon taken and put in jail. I saw his wound twice dressed, and heard Hughes make the above statement.

"When in Jefferson county I boarded six weeks in Fayette, the county town, with a tavern keeper named James Truly. He had a slave named Lucy, who occupied the station of chamber maid and table waiter. One day, just after dinner Mrs. Truly took Lucy and bound her arms round a pine sapling behind the house, and commenced flogging her with a

riding-whip; and when tired would take her chair and rest. She continued thus alternately flogging and resting, for at least an hour and a half. I afterwards learned from the bar-keeper, and others, that the woman's offence was that she had bought two candles to set on the table the evening before, not knowing there were yet some in the box. I did not see the act of flogging above related; but it was commenced before I left the house after dinner, and my work not being more than twenty rods from the house, I distinctly heard the cries of the woman all the time, and the manner of tying I had from those who did see it.

"While I boarded at Truly's, an overseer shot a negro about two miles northwest of Fayette, belonging to a man named Hinds Stuart. I heard Stuart himself state the particulars. It appeared that the negro's wife fell under the overseer's displeasure, and he went to whip her. The negro said she should not be whipped. The overseer then let her go, and ordered him to be seized. The negro, having been a driver, rolled the lash of his whip round his hand, and said he would not be whipped at that time. The overseer repeated his orders. The negro took up a hoe, and none dared to take hold of him. The overseer then went to his coat, that he had laid off to whip the negro's wife, and took out his pistol and shot him dead. His master ordered him to be buried in a hole without a coffin. Stuart stated that he would not have taken two thousand dollars for him. No punishment was inflicted on the overseer.

ELEAZAR POWELL, Jr."

TESTIMONY ON THE AUTHORITY OF REV. WM. SCALES,
LYNDON, VT

The following is an extract of a letter from two professional gentlemen and their wives, who have lived for some years in a small village in one of the slave states. They are all persons of the highest respectability, and are well known in at least one of the New England states. Their names are with the Executive Committee of the American Anti-Slavery Society; but as the individuals would doubtless be murdered by the slaveholders, if they were published, the Committee feel sacredly bound to withhold them. The letter was addressed to a respected clergyman in New England. The writers say:

"A man near us owned a valuable slave—his best—most faithful servant. In a gust of passion, he struck him dead with a lever, or stick of wood.

"During the years '36 and '37, the following transpired. A slave in our neighborhood ran away and went to a place about thirty miles distant. There he was found by his pursuers on horseback, and compelled by the whip to run the distance of thirty miles. It was an exceedingly hot day—and within a few hours after he arrived at the end of his journey the slave was dead.

"Another slave ran away, but concluded to return. He had proceeded some distance on his return, when he was met by a company of two or three drivers who raced, whipped and abused him until he fell down and expired. This took place on the Sabbath." The writer after speaking of another murder of a slave in the neighborhood, without giving the circumstances, say—"There is a powerful New England influence at ——" the village where they reside—"We may therefore suppose that there would be as little of barbarian cruelty practiced there as any where;—at least we might suppose that the average amount of cruelty in that vicinity would be sufficiently favorable to the side of slavery.—Describe a circle, the centre of which shall be—, the residence of the writers, and the radius fifteen miles, and in about one year three, and I think four slaves have been *murdered*, within that circle, under circumstances of horrid cruelty.—What must have been the amount of

murder in the whole slave territory? The whole south is rife with the crime of separating husbands and wives, parents and children."

TESTIMONY OF JOSEPH IDE, ESQ.

Mr. IDE is a respected member of the Baptist Church in Sheffield, Caledonia county, Vt.; and recently the Postmaster in that town. He spent a few months at the south in the years 1837 and 8. In a letter to the Rev. Wm. Scales of Lyndon, Vt. written a few weeks since, Mr. Ide writes as follows.

"In answering the proposed inquiries, I will say first, that although there are various other modes resorted to, whipping with the cowskin is the usual mode of inflicting punishment on the poor slave. I have never actually witnessed a whipping scene, for they are usually taken into some back place for that purpose; but I have often heard their groans and screams while writhing under the lash; and have seen the blood flow from their torn and lacerated skins after the vengeance of the inhuman master or mistress had been glutted. You ask if the woman where I boarded whipped a slave to death. I can give you the particulars of the transaction as they were related to me. My informant was a gentleman—a member of the Presbyterian church in Massachusetts—who the winter before boarded where I did. He said that Mrs. T—— had a female slave whom she used to whip unmercifully, and on one occasion, she whipped her as long as she had strength, and after the poor creature was suffered to go, she crawled off into a cellar. As she did not immediately return, search was made, and she was found dead in the cellar, and the horrid deed was kept a secret in the family, and it was reported that she died of sickness. This wretch at the same time was a member of a Presbyterian church. Towards her slaves she was certainly the most cruel wretch of any woman with whom I was ever acquainted—yet she was nothing more than a slaveholder. She would deplore slavery as much as I did, and often told me she was much of an abolitionist as I was. She was constant in the declaration that her kind treatment to her slaves was proverbial. Thought I, then the Lord have mercy on the rest. She has often told me of the cruel treatment of the slaves on a plantation adjoining her father's in the low country of South Carolina. She says she has often seen them driven to the necessity of eating frogs and lizards to sustain

life. As to the mode of living generally, my information is rather limited, being with few exceptions confined to the different families where I have boarded. My stopping places at the south have mostly been in cities. In them the slaves are better fed and clothed than on plantations. The house servants are fed on what the families leave. But they are kept short, and I think are oftener whipped for stealing something to eat than any other crime. On plantations their food is principally hommony, as the southerners call it. It is simply cracked corn boiled. This probably constitutes seven-eighths of their living. The house-servants in cities are generally decently clothed, and some favorite ones are richly dressed, but those on the plantations, especially in their dress, if it can be called dress, exhibit the most haggard and squalid appearance. I have frequently seen those of both sexes more than two-thirds naked. I have seen from forty to sixty, male and female, at work in a field, many of both sexes with their bodies entirely naked—who did not exhibit signs of shame more than cattle. As I did not go among them much on the plantations, I have had but few opportunities for examining the backs of slaves—but have frequently passed where they were at work, and been occasionally present with them, and in almost every case there were marks of violence on some parts of them—every age, sex and condition being liable to the whip. A son of the gentleman with whom I boarded, a young man about twenty-one years of age, had a plantation and eight or ten slaves. He used to boast almost every night of whipping some of them. One day he related to me a case of whipping an old negro—I should judge sixty years of age. He said he called him up to flog him for some real or supposed offence, and the poor old man, being pious, asked the privilege of praying before he received his punishment. He said he granted him the favor, and to use his own expression, 'The old nigger knelt down and prayed for me, and then got up and took his whipping.' In relation to negro huts, I will say that planters usually own large tracts of land. They have extensive clearings and a beautiful mansion house—and generally some forty or fifty rods from the dwelling are situated the negro cabins, or huts, built of logs in the rudest manner. Some consist of poles rolled up together and covered with mud or clay—many of them not as comfortable as northern pigsties."

TESTIMONY OF REV. PHINEAS SMITH

MR. SMITH is now pastor of the Presbyterian Church in Centreville, Allegany county, N.Y. He has recently returned from a residence in the slave states, and the American slave holding settlements in Texas. The following is an extract of a letter lately received from him.

"You inquire respecting instances of cruelty that have come within my knowledge. I reply. Avarice and cruelty constitute the very gist of the whole slave system. Many of the enormities committed upon the plantations will not be described till God brings to light the hidden things of darkness, then the tears and groans and blood of innocent men, women and children will be revealed, and the oppressor's spirit must confront that of his victim.

"I will relate a case of *torture* which occurred on the Brassos while I resided a few miles distant upon the Chocolate Bayou. The case should be remembered as a true illustration of the nature of slavery, as it exists at the south. The facts are these. An overseer by the name of Alexander, notorious for his cruelty, was found dead in the timbered lands of the Brassos. It was supposed that he was murdered, but who perpetrated the act was unknown. Two black men were however seized, taken into the Prairie and put to the torture. A physician by the name of Parrott from Tennessee, and another from New England by the name of Anson Jones, were present on this occasion. The latter gentleman is now the Texan minister plenipotentiary to the United States, and resides at Washington. The unfortunate slaves being stripped, and all things arranged, the torture commenced by whipping upon their bare backs. Six athletic men were employed in this scene of inhumanity, the names of some of whom I well remember. There was one of the name of Brown, and one or two of the name of Patton. Those six executioners were successively employed in cutting up the bodies of these defenceless slaves, who persisted to the last in the avowal of their innocence. The bloody whip was however kept in motion till savage barbarity itself was glutted. When this was accomplished, the bleeding victims were re-conveyed to the inclosure of the mansion house where they were deposited for a few moments. *The dying groans however incommoding the ladies, they were taken to*

a back shed where one of them soon expired.'[\[13\]](#) The life of the other slave was for a time despaired of, but after hanging over the grave for months, he at length so far recovered as to walk about and labor at light work. These facts *cannot be controverted*. They were disclosed under the solemnity of an oath, at Columbia, in a court of justice. I was present, and shall never forget them. The testimony of Drs. Parrott and Jones was most appalling. I seem to hear the death-groans of that murdered man. His cries for mercy and protestations of innocence fell upon adamantine hearts. The facts above stated, and others in relation to this scene of cruelty came to light in the following manner. The master of the murdered man commenced legal process against the actors in this tragedy for the *recovery of the value of the chattel*, as one would institute a suit for a horse or an ox that had been unlawfully killed. It was a suit for the recovery of *damages* merely. No *indictment* was even dreamed of. Among the witnesses brought upon the stand in the progress of this cause were the physicians, Parrott and Jones above named. The part which they were called to act in this affair was, it is said, to examine the pulse of the victims during the process of *torture*. But they were mistaken as to the quantum of torture which a human being can undergo and not die under it. Can it be believed that one of these physicians was born and educated in the land of the pilgrims? Yes, in my own native New England. It is even so! The stone-like apathy manifested at the trial of the above cause, and the screams and the death-groans of an innocent man, as developed by the testimony of the witnesses, can never be obliterated from my memory. They form an era in my life, a point to which I look back with horror.

[Footnote [13](#): The words of Dr. Parrott, a witness on the trial hereafter referred to.]

"Another case of cruelty occurred on the San Bernard near Chance Prairie, where I resided for some time. The facts were these. A slave man fled from his master, (Mr. Sweeny) and being closely *pursued* by the overseer and a son of the owner, he stepped a few yards in the Bernard and placed himself upon a root, from which there was no possibility of his escape, for he could not swim. In this situation he

was fired upon with a blunderbuss loaded heavily with ball and grape shot. The overseer who shot the gun was at a distance of a few feet only. The charge entered the body of the negro near the groin. He was conveyed to the plantation, lingered in inexpressible agony a few days and expired. A physician was called, but medical and surgical skill was unavailing. No notice whatever was taken of this murder by the public authorities, and the murderer was not discharged from the service of his employer.

"When slaves flee, as they not unfrequently do, to the timbered lands of Texas, they are hunted with guns and dogs.

"The sufferings of the slave not unfrequently drive him to despair and suicide. At a plantation on the San Bernard, where there were but five slaves, two during the same year committed suicide by drowning."

TESTIMONY OF PHILEMON BLISS, ESQ.

Mr. Bliss is a highly respectable member of the bar, in Elyria, Lorain Co. Ohio, and member of the Presbyterian church, in that place. He resided in Florida, during the years 1834 and 5.

The following extracts are from letters, written by Mr. B. in 1835, while residing on a plantation near Tallahassee, and published soon after in the Ohio Atlas; also from letters written in 1836 and published in the New York Evangelist.

"In speaking of slavery as it is, I hardly know where to begin. The physical condition of the slave is far from being accurately known at the north. Gentlemen *traveling* in the south can know nothing of it. They must make the south their residence; they must live on plantations, before they can have any opportunity of judging of the slave. I resided in Augustine five months, and had I not made *particular* inquiries, which most northern visitors very seldom or never do, I should have left there with the impression that the slaves were generally very *well* treated, and were a happy people. Such is the report of many northern travelers who have no more opportunity of knowing their real condition than if they had remained at home. What confidence could we place in the reports of the traveler, relative to the

condition of the Irish peasantry, who formed his opinion from the appearance of the waiters at a Dublin hotel, or the household servants of a country gentleman? And it is not often on plantations even, that *strangers* can witness the punishment of the slave. I was conversing the other day with a neighboring planter, upon the brutal treatment of the slaves which I had witnessed: he remarked, that had I been with him I should not have seen this. "When I whip niggers, I take them out of sight and hearing." Such being the difficulties in the way of a stranger's ascertaining the treatment of the slaves, it is not to be wondered at that gentlemen, of undoubted veracity, should give directly false statements relative to it. But facts cannot lie, and in giving these I confine myself to what has come under my own personal observation.

"The negroes commence labor by daylight in the morning, and, excepting the plowboys, who must feed and rest their horses, do not leave the field till dark in the evening. There is a good deal of contention among planters, who shall make the most cotton to the hand, or, who shall drive their negroes the hardest; and I have heard bets made and staked upon the issue of the crops. Col. W. was boasting of his large crops, and swore that 'he made for his force, the largest crops in the country.' He was disputed of course. On riding home in company with Mr. C. the conversation turned upon Col. W. My companion remarked, that though Col. W. had the reputation of making a large crop, yet he could beat him himself, and did do it the last year. I remarked that I considered it no honor to *Col. W.* to drive his slaves to death to make a large crop. I have heard no more about large crops from him since. Drivers or overseers usually drive the slaves worse than masters.—Their reputation for good overseers depends in a great measure upon the crops they make, and the death of a slave is no loss to them.

"Of the extent and cruelty of the punishment of the slave, the northern public know nothing. From the nature of the case they can know little, as I have before mentioned.

"I *have seen* a woman, a mother, compelled, in the presence of her master and mistress, *to hold up her clothes*, and endure the whip of the

driver on the naked body for more than *twenty minutes*, and while her cries would have rent the heart of any one, who had not hardened himself to human suffering. Her master and mistress were conversing with apparent indifference. What was her crime? She had a task given her of sewing which she *must finish* that day. Late at night she finished it; but *the stitches were too long*, and she must be whipped. The same was repeated three or four nights for the same offence. *I have seen* a man tied to a tree, hands and feet, and receive 305 blows with the paddle[14] on the fleshy parts of the body. Two others received the same kind of punishment at the time, though I did not count the blows. One received 230 lashes. Their crime was stealing mutton. I have *frequently* heard the shrieks of the slaves, male and female, accompanied by the strokes of the paddle or whip, when I have not gone near the scene of horror. I knew not their crimes, excepting of one woman, which was stealing *four potatoes* to eat with her bread! The more common number of lashes inflicted was fifty or eighty; and this I saw not once or twice, but so frequently that I can not tell the number of times I have seen it. So frequently, that my own heart was becoming so hardened that I could witness with comparative indifference, the female writhe under the lash, and her shrieks and cries for mercy ceased to pierce my heart with that keenness, or give me that anguish which they first caused. It was not always that I could learn their crimes; but of those I did learn, the most common was non-performance of tasks. I have seen men strip and receive from one to three hundred strokes of the whip and paddle. My studies and meditations were almost nightly interrupted by the cries of the victims of cruelty and avarice. Tom, a slave of Col. N. obtained permission of his overseer on Sunday, to visit his son, on a neighboring plantation, belonging in part to his master, but neglected to take a "pass." Upon its being demanded by the other overseer, he replied that he had permission to come, and that his having a mule was sufficient evidence of it, and if he did not consider it as such, he could take him up. The overseer replied he would take him up; giving him at the same time a blow on the arm with a stick he held in his hand, sufficient to lame it for some time. The negro collared him, and threw him; and on the overseer's commanding him to submit to be tied and whipped, he said he would not be whipped by *him* but would leave it to massa J. They

came to massa J.'s. I was there. After the overseer had related the case as above, he was blamed for not shooting or stabbing him at once.—After dinner the negro was tied, and the whip given to the overseer, and he used it with a severity that was shocking. I know not how many lashes were given, but from his shoulders to his heels there was not a spot unridged! and at almost every stroke the blood flowed. He could not have received less than 300, *well laid on*. But his offence was great, almost the greatest known, laying hands on a *white* man! Had he struck the overseer, under any provocation, he would have been in some way disfigured, perhaps by the loss of his ears, in addition to a whipping: or he might have been hung. The most common cause of punishments is, not finishing tasks.

[Footnote [14](#): A piece of oak timber two and a half feet long, flat and wide at one end.]

"But it would be tedious mentioning further particulars. The negro has no other inducement to work but the *lash*; and as man never acts without motive, the lash must be used so long as all other motives are withheld. Hence corporeal punishment is a necessary part of slavery.

"Punishments for runaways are usually severe. Once whipping is not sufficient. I have known runaways to be whipped for six or seven nights in succession for one offence. I have known others who, with pinioned hands, and a chain extending from an iron collar on their neck, to the saddle of their master's horse, have been driven at a smart trot, one or two hundred miles, being compelled to ford water courses, their drivers, according to their own confession, not abating a whit in the rapidity of their journey for the case of the slave. One tied a kettle of sand to his slave to render his journey more arduous.

"Various are the instruments of torture devised to keep the slave in subjection. The stocks are sometimes used. Sometimes blocks are filled with pegs and nails, and the slave compelled to stand upon them.

"While stopping on the plantation of a Mr. C. I saw a whip with a knotted lash lying on the table, and inquired of my companion, who

was also an acquaintance of Mr. C's, if he used that to whip his negroes? "Oh," says he, "Mr. C. is not severe with his hands. He never whips very hard. The *knots in the lash are so large* that he does not usually draw blood in whipping them."

"It was principally from hearing the conversation of southern men on the subject, that I judge of the cruelty that is generally practiced toward slaves. They will deny that slaves are generally ill treated; but ask them if they are not whipped for certain offences, which either a freeman would have no temptation to commit, or which would not be an offence in any but a slave, and for non-performance of tasks, they will answer promptly in the affirmative. And frequently have I heard them excuse their cruelty by citing Mr. A. or Mr. B. who is a Christian, or Mr. C. a preacher, or Mr. D. from the *north*, who "drives his hands tighter, and whips them harder, than we ever do." Driving negroes to the utmost extent of their ability, with occasionally a hundred lashes or more, and a few switchings in the field if they hang back in the driving seasons, viz: in the hoing and picking months, is perfectly consistent with good treatment!

"While traveling across the Peninsula in a stage, in company with a northern gentleman, and southern lady, of great worth and piety, a dispute arose respecting the general treatment of slaves, the gentleman contending that their treatment was generally good—'O, no!' interrupted the lady, 'you can know nothing of the treatment they receive on the plantations. People here do whip the poor negroes most cruelly, and many half starve them. You have neither of you had opportunity to know scarcely anything of the cruelties that are practiced in this country,' and more to the same effect. I met with several others, besides this lady, who appeared to feel for the sins of the land, but they are few and scattered, and not usually of sufficiently stern mould to withstand the popular wave.

"Masters are not forward to publish their "domestic regulations," and as neighbors are usually several miles apart, one's observation must be limited. Hence the few instances of cruelty which break out can be but a fraction of what is practised. A planter, a professor of religion, in conversation upon the universality of whipping, remarked that a

planter in G—, who had whipped a great deal, at length got tired of it, and invented the following *excellent* method of punishment, which I saw practised while I was paying him a visit. The negro was placed in a sitting position, with his hands made fast above his head, and feet in the stocks, so that he could not move any part of the body.

"The master retired, intending to leave him till morning, but we were awakened in the night by the groans of the negro, which were so doleful that we feared he was dying. We went to him, and found him covered with a cold sweat, and almost gone. He could not have lived an hour longer. Mr. — found the 'stocks' such an effective punishment, that it almost superseded the whip."

"How much do you give your niggers for a task while hoeing cotton," inquired Mr. C—— of his neighbor Mr. H——."

H. "I give my men an acre and a quarter, and my women an acre."[[15](#)]

[Footnote [15](#): Cotton is planted in drills about three feet apart, and is hilled like corn.]

C. "Well, that is a fair task. Niggers do a heap better if they are drove pretty tight."

H. "O yes, I have driven mine into complete subordination. When I first bought them they were discontented and wished me to sell them, but I soon whipped *that* out of them; and they now work very contentedly!"

C. "Does Mary keep up with the rest?"

H. "No, she doesn't often finish the task alone, she has to get Sam to help her out after he has done his, *to save her a whipping*. There's no other way but to be severe with them."

C. "No other, sir, if you favor a nigger you spoil him."

"The whip is considered as necessary on a plantation as the plough; and its use is almost as common. The negro whip is the common teamster's whip with a black leather stock, and a short, fine, knotted lash. The paddle is also frequently used, sometimes with holes bored in

the flattened end. The ladies (!) in chastising their domestic servants, generally use the cowhide. I have known some use shovel and tongs. It is, however, more common to commit them to the driver to be whipped. The manner of whipping is as follows: The negro is tied by his hands, and sometimes feet, to a post or tree, and stripped to the skin. The female slave is not always tied. The number of lashes depends upon the character for severity of the master or overseer.

"Another instrument of torture is sometimes used, how extensively I know not. The negro, or, in the case which came to my knowledge, the negress was compelled to stand barefoot upon a block filled with sharp pegs and nails for two or three hours. In case of sickness, if the master or overseer thinks them seriously ill, they are taken care of, but their complaints are usually not much heeded. A physician told me that he was employed by a planter last winter to go to a plantation of his in the country, as many of the negroes were sick. Says he—"I found them in a most miserable condition. The weather was cold, and the negroes were barefoot, with hardly enough of *cotton* clothing to cover their nakedness. Those who had huts to shelter them were obliged to build them nights and Sundays. Many were sick and some had died. I had the sick taken to an older plantation of their masters, where they could be made comfortable, and they recovered. I directed that they should not go to work till after sunrise, and should not work in the rain till their health became established. But the overseer refusing to permit it, I declined attending on them farther. I was called,' continued he, 'by the overseer of another plantation to see one of the men. I found him lying by the side of a log in great pain. I asked him how he did, 'O,' says he, 'I'm most dead, can live but little longer.' How long have you been sick? I've felt for more than six weeks as though I could hardly stir.' Why didn't you tell your master, you was sick? 'I couldn't see my master, and the overseer always whips us when we complain, I could not stand a whipping.' I did all I could for the poor fellow, but his *lungs were rotten*. He died in three days from the time he left off work.' The cruelty of that overseer is such that the negroes almost tremble at his name. Yet he gets a high salary, for he makes the largest crop of any other man in the neighborhood, though none but the hardiest negroes

can stand it under him. "That man," says the Doctor, "would be hung in my country." He was a German."

TESTIMONY OF REV. WILLIAM A. CHAPIN.

REV. WILLIAM SCALES, of Lyndon, Vermont, has furnished the following testimony, under date of Dec. 15, 1838.

"I send you an extract from a letter that I have just received, which you may use *ad libitum*. The letter is from Rev. Wm. A. Chapin, Greensborough, Vermont. To one who is acquainted with Mr. C. his opinion and statements must carry conviction even to the most obstinate and incredulous. He observes, 'I resided, as a teacher, nearly two years in the family of Carroll Webb, Esq., of Hampstead, New Kent co. about twenty miles from Richmond, Virginia. Mr. Webb had three or four plantations, and was considered one of the two wealthiest men in the county: it was supposed he owned about two hundred slaves. He was a member of the Presbyterian Church, and was elected an elder while I was with him. He was a native of Virginia, but a graduate of a New-England college.

"The slaves were called in the morning before daylight, I believe at all seasons of the year, that they might prepare their food, and be ready to go to work as soon as it was light enough to see. I know that at the season of husking corn, October and November, they were usually compelled to work late—till 12 or 1 o'clock at night. I know this fact because they accompanied their work with a loud singing of their own sort. I usually retired to rest between 11 and 12 o'clock, and generally heard them at their work as long as I was awake. The slaves lived in wretched log cabins, of one room each, without floors or windows. I believe the slaves sometimes suffer for want of food. One evening, as I was sitting in the parlor with Mr. W. one of the most resolute of the slaves came to the door, and said, "Master, I am willing to work for you, but I want something to eat." The only reply was, "Clear yourself." I learned that the slaves had been without food all day, because the man who was sent to mill could not obtain his grinding. He went again the next day, and obtained his grist, and the slaves had no food till he returned. He had to go about five miles.[16]

[Footnote [16](#): To this, Rev. Mr. Scales adds, "In familiar language, and in more detail, as I have learned it in conversation with Mr. Chapin, the fact is as follows:—

"Mr. W. kept, what he called a 'boy,' i.e. a *man*, to go to mill. It was his custom not to give his slaves anything to eat while he was gone to mill—let him have been gone longer or shorter—for this reason, if he was lazy, and delayed, the slaves would become hungry: hence indignant, and abuse him—this was his punishment. On that occasion he went to mill in the morning. The slaves came up at noon, and returned to work without food. At night, after having worked hard all day, without food, went to bed without supper. About 10 o'clock the next day, they came up in a company, to their master's door, (that master an elder in the church), and deputed one more resolute than the rest to address him. This he did in the most respectful tones and terms. "We are willing to work for you, master, but we can't work without food; we want something to eat." "Clear yourself," was the answer. The slaves retired; and in the morning were driven away to work without food. At noon, I think, or somewhat after, they were fed."]

"I know the slaves were sometimes severely whipped. I saw the backs of several which had numerous scars, evidently caused by long and deep lacerations of the whip; and I have good reason to believe that the slaves were generally in that condition; for I never saw the back of one exposed that was not thus marked,—and from their tattered and scanty clothing their backs were often exposed."

TESTIMONY OF MESSRS. T.D.M. AND F.C. MACY.

This testimony is communicated in a letter from Mr. Cyrus Pierce, a respectable and well known citizen of Nantucket, Mass. Of the witnesses, Messrs. T.D.M. and F.C. Macy, Mr. Pierce says, "They are both inhabitants of this island, and have resided at the south; they are both worthy men, for whose integrity and intelligence I can vouch unqualifiedly; the former has furnished me with the following statement.

"During the winter of 1832-3, I resided on the island of St. Simon, Glynn county, Georgia. There are several extensive cotton plantations on the island. The overseer of the plantation on that part of the island where I resided was a Georgian—a man of stern character, and at times *cruelly abusive* to his slaves. I have often been witness of the *abuse* of his power. In South Carolina and Georgia, on the low lands, the cultivation is chiefly of rice. The land where it is raised is often inundated, and the labor of preparing it, and raising a crop, is very arduous. Men and women are in the field from earliest dawn to dark—often *without hats*, and up to their arm-pits in mud and water. At St. Simon's, cotton was the staple article. Odra, the driver, usually waited on the overseer to receive orders for the succeeding day. If any slave was insolent, or negligent, the driver was authorized to punish him with the whip, with as many blows as the magnitude of the crime justified. He was frequently cautioned, upon the peril of his skin, to see that all the negroes were off to the field in the morning. 'Odra,' said the overseer, one evening, to the driver, 'if any pretend to be sick, send me word—allow no lazy wench or fellow to skulk in the negro house.' Next morning, a few minutes after the departure of the hands to the field, Odra was seen hastening to the house of the overseer. He was soon in his presence. 'Well, Odra, what now?' 'Nothing, sir, only Rachel says she sick—can't go to de field to-day.' 'Ah, sick, is she? I'll see to her; you may be off. She shall see if I am longer to be fooled with in this way. Here, Christmas, mix these salts—bring them to me at the negro house.' And seizing his whip, he made off to the negro settlement. Having a strong desire to see what would be the result, I followed him. As I approached the negro house, I heard high words. Rachel was stating her complaint—children were crying from fright—and the overseer threatening. Rachel.—'I can't work to-day—I'm sick!' Overseer.—'But you shall work, if you die for it. Here, take these salts. Now move off—quick—let me see your face again before night, and, by G—d, you shall smart for it. Be off—no begging—not a word;'—and he dragged her from the house, and followed her 20 or 30 rods, threatening. The woman did not reach the field. Overcome by the exertion of walking, and by agitation, she sunk down exhausted by the road side—was taken up, and carried back to the house, where an *abortion* occurred, and her life was greatly jeoparded.

"It was *no uncommon* sight to see a whole family, father, mother, and from two to five children, collected together around their piggin of hommony, or pail of potatoes, watched by the overseer. One meal was always eaten in the field. No time was allowed for relaxation.

"It was not unusual for a child of five or six years to perform the office of nurse—because the mother worked in a remote part of the field, and was not allowed to leave her employment to take care of her infant. Want of proper nutriment induces sickness of the worst type.

"No matter what the nature of the service, a peck of corn, dealt out on Sunday, must supply the demands of nature for a week.

"The Sabbath, on a southern plantation, is a mere nominal holiday. The slaves are liable to be called upon at all times, by those who have authority over them.

"When it rained, the slaves were allowed to collect under a tree until the shower had passed. Seldom, on a week day, were they permitted to go to their huts during rain; and even had this privilege been granted, many of those miserable habitations were in so dilapidated a condition, that they would afford little or no protection. Negro huts are built of logs, covered with boards or thatch, having *no flooring*, and but one apartment, serving all the purposes of sleeping, cooking, &c. Some are furnished with a temporary loft. I have seen a whole family herded together in a loft ten feet by twelve. In cold weather, they gather around the fire, spread their blankets *on the ground*, and keep as comfortable as they can. Their supply of clothing is scanty—each slave being allowed a Holland coat and pantaloons, of the coarsest manufacture, and one pair of cowhide shoes. The women, enough of the same kind of cloth for one frock. They have also one pair of shoes. Shoes are given to the slaves in the winter only. In summer, their clothing is composed of osnaburgs. Slaves on different plantations are not allowed without a written permission, to visit their fellow bondsmen, under penalty of severe chastisement. I witnessed the chastisement of a young male slave, who was found lurking about the plantation, and could give no other account of himself, than that he wanted to visit some of his acquaintance. Fifty lashes was the penalty

for this offence. I could not endure the dreadful shrieks of the tortured slave, and rushed away from the scene."

The remainder of this testimony is furnished by Mr. F.C. Macy.

"I went to Savannah in 1820. Sailing up the river, I had my first view of slavery. A large number of men and women, with *a piece of board on their heads, carrying mud*, for the purpose of dyking, near the river. After tarrying a while in Savannah, I went down to the sea islands of De Fuskee and Hilton Head, where I spent six months. Negro houses are small, built of rough materials, *and no floor*. Their clothing, (one suit,) coarse; which they received on Christmas day. Their food was three pecks of potatoes per week, in the potatoe season, and one peck of corn the remainder of the year. The slaves carried with them into the field their meal, and a gourd of water. They cooked their hommony in the field, and ate it with a wooden paddle. Their treatment was little better than that of brutes. *Whipping* was nearly an every-day practice. On Mr. M——'s plantation, at the island De Fuskee, I saw an old man whipped; he was about 60. He had no clothing on, except a shirt. The man that inflicted the blows was Flim, a tall and stout man. The whipping was *very severe*. I inquired into the cause. Some vegetables had been stolen from his master's garden, of which he could give no account. I saw several women whipped, some of whom were in very *delicate* circumstances. The case of one I will relate. She had been purchased in Charleston, and separated from her husband. On her passage to Savannah, or rather to the island, she was delivered of a child; and in about three weeks after this, she appeared to be deranged. She would leave her work, go into the woods, and sing. Her master sent for her, and ordered the driver to whip her. I was near enough to hear the strokes.

"I have known negro boys, partly by persuasion, and partly by force, made to strip off their clothing and fight for *the amusement of their masters*. They would fight until both got to crying.

"One of the planters told me that his boat had been used without permission. A number of his negroes were called up, and put in a building that was lathed and shingled. The covering could be easily

removed from the inside. He called one out for examination. While examining this one, he discovered another negro, coming out of the roof. He ordered him back: he obeyed. In a few moments he attempted it again. The master took deliberate aim at his head, but his gun missed fire. He told me he should probably have killed him, had his gun gone off. The negro jumped and run. The master took aim again, and fired; but he was so far distant, that he received only a few shots in the calf of his leg. After several days he returned, and received a severe whipping.

"Mr. B——, planter at Hilton Head, freely confessed, that he kept one of his slaves as a mistress. She slept in the same room with him. This, I think, is a very common practice."

TESTIMONY OF A CLERGYMAN.

The following letter was written to Mr. ARTHUR TAPPAN, of New York, in the summer of 1833. As the name of the writer cannot be published with safety to himself, it is withheld.

The following testimonials, from Mr. TAPPAN, Professor WRIGHT, and THOMAS RITTER, M.D. of New York, establish the trust-worthiness and high respectability of the writer.

"I received the following letters from the south during the year 1833. They were written by a gentleman who had then resided some years in the slave states. Not being at liberty to give the writer's name, I cheerfully certify that he is a gentleman of established character, a graduate of Yale College, and a respected minister of the gospel.

"ARTHUR TAPPAN."

"My acquaintance with the writer of the following letter commenced, I believe, in 1823, from which time we were fellow students in Yale College till 1826. I have occasionally seen him since. His character, so far as it has come within my knowledge, has been that of an upright and remarkably *candid* man. I place great confidence both in his habits of careful and unprejudiced observation and his veracity.

"E. WRIGHT, jun. New York, April 13, 1839."

"I have been acquainted with the writer of the following letter about twelve years, and know him to be a gentleman of high respectability, integrity, and piety. We were fellow students in Yale College, and my opportunities for judging of his character, both at that time and since our graduation, have been such, that I feel myself fully warranted in making the above unequivocal declaration.

"THOMAS RITTER. 104, Cherry-street, New York."

"NATCHEZ, 1833.

"It has been almost four years since I came to the south-west; and although I have been told, from month to month, that I should soon wear off my northern prejudices, and probably have slaves of my own, yet my judgment in regard to oppression, or my prejudices, if they are pleased so to call them, remain with me still. I judge still from those principles which were fixed in my mind at the north; and a residence at the south has not enabled me so to pervert truth, as to make injustice appear justice.

"I have studied the state of things here, now for years, coolly and deliberately, with the eye of an uninterested looker on; and hence I may not be altogether unprepared to state to you some facts, and to draw conclusions from them.

"Permit me then to relate what I have seen; and do not imagine that these are all exceptions to the general treatment, but rather believe that thousands of cruelties are practised in this Christian land, every year, which no eye that ever shed a tear of pity could look upon.

"Soon after my arrival I made an excursion into the country, to the distance of some twenty miles. And as I was passing by a cotton field, where about fifty negroes were at work, I was inclined to stop by the road side to view a scene which was then new to me. While I was, in my mind, comparing this mode of labor with that of my own native place, I heard the driver, with a rough oath, order one that was near him, who seemed to be laboring to the extent of his power, to "lie down." In a moment he was obeyed; and he commenced whipping the offender upon his naked back, and continued, to the amount of about

twenty lashes, with a heavy raw-hide whip, the crack of which might have been heard more than half a mile. Nor did the females escape; for although I stopped scarcely fifteen minutes, no less than three were whipped in the same manner, and that so severely, I was strongly inclined to interfere.

"You may be assured, sir, that I remained not unmoved: I could no longer look on such cruelty, but turned away and rode on, while the echoes of the lash were reverberating in the woods around me. Such scenes have long since become familiar to me. But then the full effect was not lost; and I shall never forget, to my latest day, the mingled feelings of pity, horror, and indignation that took possession of my mind. I involuntarily exclaimed, O God of my fathers, how dost thou permit such things to defile our land! Be merciful to us! and visit us not in justice, for all our iniquities and the iniquities of our fathers!

"As I passed on I soon found that I had escaped from one horrible scene only to witness another. A planter with whom I was well acquainted, had caught a negro without a pass. And at the moment I was passing by, he was in the act of fastening his feet and hands to the trees, having previously made him take off all his clothing except his trowsers. When he had sufficiently secured this poor creature, he beat him for several minutes with a green switch more than six feet long; while he was writhing with anguish, endeavoring in vain to break the cords with which he was bound, and incessantly crying out, "Lord, master! do pardon me this time! do, master, have mercy!" These expressions have recurred to me a thousand times since; and although they came from one that is not considered among the sons of men, yet I think they are well worthy of remembrance, as they might lead a wise man to consider whether such shall receive mercy from the righteous Judge, as never showed mercy to their fellow men.

"At length I arrived at the dwelling of a planter of my acquaintance, with whom I passed the night. At about eight o'clock in the evening I heard the barking of several dogs, mingled with the most agonizing cries that I ever heard from any human being. Soon after the gentleman came in, and began to apologize, by saying that two of his runaway slaves had just been brought home; and as he had previously tried

every species of punishment upon them without effect, he knew not what else to add, except to set his blood hounds upon them. 'And,' continued he, 'one of them has been so badly bitten that he has been trying to die. I am only sorry that he did not; for then I should not have been further troubled with him. If he lives I intend to send him to Natchez or to New Orleans, to work with the ball and chain.'

"From this last remark I understood that private individuals have the right of thus subjecting their unmanageable slaves. I have since seen numbers of these 'ball and chain' men, both in Natchez and New Orleans, but I do not know whether there were any among them except the state convicts.

"As the summer was drawing towards a close, and the yellow fever beginning to prevail in town, I went to reside some months in the country. This was the cotton picking season, during which, the planters say, there is a greater necessity for flogging than at any other time. And I can assure you, that as I have sat in my window night after night, while the cotton was being weighed, I have heard the crack of the whip, without much intermission, for a whole hour, from no less than three plantations, some of which were a full mile distant.

"I found that the slaves were kept in the field from daylight until dark; and then, if they had not gathered what the master or overseer thought sufficient, they were subjected to the lash.

"Many by such treatment are induced to run away and take up their lodging in the woods. I do not say that all who run away are thus closely pressed, but I do know that many are; and I have known no less than a dozen desert at a time from the same plantation, in consequence of the overseer's forcing them to work to the extent of their power, and then whipping them for not having done more.

"But suppose that they run away—what is to become of them in the forest? If they cannot steal they must perish of hunger—if the nights are cold, their feet will be frozen; for if they make a fire they may be discovered, and be shot at. If they attempt to leave the country, their chance of success is about nothing. They must return, be whipped—if

old offenders, wear the collar, perhaps be branded, and fare worse than before.

"Do you believe it, sir, not six months since, I saw a number of my *Christian* neighbors packing up provisions, as I supposed for a deer hunt; but as I was about offering myself to the party, I learned that their powder and balls were destined to a very different purpose: it was, in short, the design of the party to bring home a number of runaway slaves, or to shoot them if they should not be able to get possession of them in any other way.

"You will ask, Is not this murder? Call it, sir, by what name you please, such are the facts:—many are shot every year, and that too while the masters say they treat their slaves well.

"But let me turn your attention to another species of cruelty. About a year since I knew a certain slave who had deserted his master, to be caught, and for the first time fastened to the stocks. In those same stocks, from which at midnight I have heard cries of distress, while the master slept, and was dreaming, perhaps, of drinking wine and of discussing the price of cotton. On the next morning he was chained in an immovable posture, and branded in both cheeks with red hot stamps of iron. Such are the tender mercies of men who love wealth, and are determined to obtain it at any price.

"Suffer me to add another to the list of enormities, and I will not offend you with more.

"There was, some time since, brought to trial in this town a planter residing about fifteen miles distant, for whipping his slave to death. You will suppose, of course, that he was punished. No, sir, he was acquitted, although there could be no doubt of the fact. I heard the tale of murder from a man who was acquainted with all the circumstances. 'I was,' said he, 'passing along the road near the burying-ground of the plantation, about nine o'clock at night, when I saw several lights gleaming through the woods; and as I approached, in order to see what was doing, I beheld the coroner of Natchez, with a number of men, standing around the body of a young female, which by the torches seemed almost perfectly white. On inquiry I learned that the master

had so unmercifully beaten this girl that she died under the operation: and that also he had so severely punished another of his slaves that he was but just alive."

We here rest the case for the present, so far as respects the presentation of facts showing the condition of the slaves, and proceed to consider the main objections which are usually employed to weaken such testimony, or wholly to set it aside. But before we enter upon the examination of specific objections, and introductory to them, we remark,—

1. That the system of slavery must be a system of horrible cruelty, follows of necessity, from the fact that two millions seven hundred thousand human beings *are held by force*, and used as articles of property. Nothing but a heavy yoke, and an iron one, could possibly keep so many necks in the dust. That must be a constant and mighty pressure which holds so still such a vast army; nothing could do it but the daily experience of severities, and the ceaseless dread and certainty of the most terrible inflictions if they should dare to toss in their chains.

2. Were there nothing else to prove it a system of monstrous cruelty, the fact that FEAR is the only motive with which the slave is plied during his whole existence, would be sufficient to brand it with execration as the grand tormentor of man. The slave's *susceptibility of pain* is the sole fulcrum on which slavery works the lever that moves him. In this it plants all its stings; here it sinks its hot irons; cuts its deep gashes; flings its burning embers, and dashes its boiling brine and liquid fire: into this it strikes its cold flesh hooks, grappling irons, and instruments of nameless torture; and by it drags him shrieking to the end of his pilgrimage. The fact that the master inflicts pain upon the slave not merely as an *end* to gratify passion, but constantly as a *means* of extorting labor, is enough of itself to show that the system of slavery is unmixed cruelty.

3. That the slaves must suffer frequent and terrible inflictions, follows inevitably from the *character of those who direct their labor*. Whatever may be the character of the slaveholders themselves, all agree that the overseers are, as a class, most abandoned, brutal, and desperate men. This is so well known and believed that any testimony to prove it seems needless. The testimony of Mr. WIRT, late Attorney General of the United States, a

Virginian and a slaveholder, is as follows. In his life of Patrick Henry, p. 36, speaking of the different classes of society in Virginia, he says,—"Last and lowest a feculum, of beings called 'overseers'—*the most abject, degraded, unprincipled race*, always cap in hand to the dons who employ them, and furnishing materials for the exercise of their *pride, insolence, and spirit of domination*."

Rev. PHINEAS SMITH, of Centreville, New-York, who has resided some years at the south, says of overseers—

"It need hardly be added that overseers are in general ignorant, *unprincipled and cruel*, and in such low repute that they are not permitted to come to the tables of their employers; yet they have the constant control of all the human cattle that belong to the master.

"These men are continually advancing from their low station to the higher one of masters. These changes bring into the possession of power a class of men of whose mental and moral qualities I have already spoken."

Rev. HORACE MOULTON, Marlboro', Massachusetts, who lived in Georgia several years, says of them,—

"The overseers are *generally loose in their morals*; it is the object of masters to employ those whom they think will get the most work out of their hands,—hence those who *whip and torment the slaves the most* are in many instances called the best overseers. The masters think those whom the slaves fear the most are the best. Quite a portion of the masters employ their own slaves as overseers, or rather they are called drivers; these are more subject to the will of the masters than the white overseers are; some of them are as lordly as an Austrian prince, and sometimes more cruel even than the whites."

That the overseers are, as a body, sensual, brutal, and violent men is *proverbial*. The tender mercies of such men *must be cruel*.

4. The *ownership* of human beings necessarily presupposes an utter disregard of their happiness. He who assumes it monopolizes their *whole capital*, leaves them no stock on which to trade, and out of which to *make* happiness. Whatever is the master's gain is the slave's loss, a loss wrested from him by the master, for the express purpose of making it *his own gain*;

this is the master's constant employment—forcing the slave to toil—violently wringing from him all he has and all he gets, and using it as his own;—like the vile bird that never builds its nest from materials of its own gathering, but either drives other birds from theirs and takes possession of them, or tears them in pieces to get the means of constructing their own. This daily practice of forcibly robbing others, and habitually living on the plunder, cannot but beget in the mind the *habit* of regarding the interests and happiness of those whom it robs, as of no sort of consequence in comparison with its own; consequently whenever those interests and this happiness are in the way of its own gratification, they will be sacrificed without scruple. He who cannot see this would be unable to *feel* it, if it were seen.

OBJECTIONS CONSIDERED.

Objection I—"SUCH CRUELTIES ARE INCREDIBLE."

The enormities inflicted by slaveholders upon their slaves will never be discredited except by those who overlook the simple fact, that he who holds human beings as his bona fide property, *regards* them as property, and not as *persons*; this is his permanent state of mind toward them. He does not contemplate slaves as human beings, consequently does not *treat* them as such; and with entire indifference sees them suffer privations and writhe under blows, which, if inflicted upon whites, would fill him with horror and indignation. He regards that as good treatment of slaves, which would seem to him insufferable abuse if practiced upon others; and would denounce that as a monstrous outrage and horrible cruelty, if perpetrated upon white men and women, which he sees every day meted out to black slaves, without perhaps ever thinking it cruel. Accustomed all his life to regard them rather as domestic animals, to hear them stormed at, and to see them cuffed and caned; and being himself in the constant habit of treating them thus, such practices have become to him a mere matter of course, and make no impression on his mind. True, it is incredible that men should treat as *chattels* those whom they truly regard as *human beings*; but that they should treat as chattels and working animals those whom they *regard* as such, is no marvel. The common treatment of dogs, when they are in the way, is to kick them out of it; we see them every day kicked off the sidewalks, and out of shops, and on Sabbaths out of churches,—yet, as they

are but *dogs*, these do not strike us as outrages; yet, if we were to see men, women, and children—our neighbors and friends, kicked out of stores by merchants, or out of churches by the deacons and sexton, we should call the perpetrators inhuman wretches.

We have said that slaveholders regard their slaves not as human beings, but as mere working animals, or merchandise. The whole vocabulary of slaveholders, their laws, their usages, and their entire treatment of their slaves fully establish this. The same terms are applied to slaves that are given to cattle. They are called "stock." So when the children of slaves are spoken of prospectively, they are called their "increase;" the same term that is applied to flocks and herds. So the female slaves that are mothers, are called "breeders" till past child bearing; and often the same terms are applied to the different sexes that are applied to the males and females among cattle. Those who compel the labor of slaves and cattle have the same appellation, "drivers:" the names which they call them are the same and similar to those given to their horses and oxen. The laws of slave states make them property, equally with goats and swine; they are levied upon for debt in the same way; they are included in the same advertisements of public sales with cattle, swine, and asses; when moved from one part of the country to another, they are herded in droves like cattle, and like them urged on by drivers; their labor is compelled in the same way. They are bought and sold, and separated like cattle: when exposed for sale, their good qualities are described as jockies show off the good points of their horses; their strength, activity, skill, power of endurance, &c. are lauded,—and those who bid upon them examine their persons, just as purchasers inspect horses and oxen; they open their mouths to see if their teeth are sound; strip their backs to see if they are badly scarred, and handle their limbs and muscles to see if they are firmly knit. Like horses, they are warranted to be "sound," or to be returned to the owner if "unsound." A father gives his son a horse and a *slave*; by his will he distributes among them his race-horses, hounds, game-cocks, and *slaves*. We leave the reader to carry out the parallel which we have only begun. Its details would cover many pages.

That slaveholders do not practically regard slaves as *human beings* is abundantly shown by their own voluntary testimony. In a recent work entitled, "The South vindicated from the Treason and Fanaticism of Northern Abolitionists," which was written, we are informed, by Colonel

Dayton, late member of Congress from South Carolina; the writer, speaking of the awe with which the slaves regard the whites, says,—

"The northerner looks upon a band of negroes as upon so many *men*, but the planter or southerner *views them in a very different light*."

Extract from the speech of Mr. SUMMERS, of Virginia, in the legislature of that state, Jan. 26, 1832. See the Richmond Whig.

"When, in the sublime lessons of Christianity, he (the slaveholder) is taught to 'do unto others as he would have others do unto him,' HE NEVER DREAMS THAT THE DEGRADED NEGRO IS WITHIN THE PALE OF THAT HOLY CANON."

PRESIDENT JEFFERSON, in his letter to GOVERNOR COLES, of Illinois, dated Aug. 25, 1814, asserts, that slaveholders regard their slaves as brutes, in the following remarkable language.

"Nursed and educated in the daily habit of seeing the degraded condition, both bodily and mental, of these unfortunate beings [the slaves], FEW MINDS HAVE YET DOUBTED BUT THAT THEY WERE AS LEGITIMATE SUBJECTS OF PROPERTY AS THEIR HORSES OR CATTLE."

Having shown that slaveholders regard their slaves as mere working animals and cattle, we now proceed to show that their actual treatment of them, is *worse* than it would be if they were brutes. We repeat it, SLAVEHOLDERS TREAT THEIR SLAVES WORSE THAN THEY DO THEIR BRUTES. Whoever heard of cows or sheep being deliberately tied up and beaten and lacerated till they died? or horses coolly tortured by the hour, till covered with mangled flesh, or of swine having their legs tied and being suspended from a tree and lacerated with thongs for hours, or of hounds stretched and made fast at full length, flayed with whips, red pepper rubbed into their bleeding gashes, and hot brine dashed on to aggravate the torture? Yet just such forms and degrees of torture are *daily* perpetrated upon the slaves. Now no man that knows human nature will marvel at this. Though great cruelties have always been inflicted by men upon brutes, yet incomparably the most horrid ever perpetrated, have been those of men upon *their own species*. Any leaf of history turned over at random has proof

enough of this. Every reflecting mind perceives that when men hold *human beings* as *property*, they must, from the nature of the case, treat them worse than they treat their horses and oxen. It is impossible for *cattle* to excite in men such tempests of fury as men excite in each other. Men are often provoked if their horses or hounds refuse to do, or their pigs refuse to go where they wish to drive them, but the feeling is rarely intense and never permanent. It is vexation and impatience, rather than settled rage, malignity, or revenge. If horses and dogs were intelligent beings, and still held as property, their opposition to the wishes of their owners, would exasperate them immeasurably more than it would be possible for them to do, with the minds of brutes. None but little children and idiots get angry at sticks and stones that lie in their way or hurt them; but put into sticks and stones intelligence, and will, and power of feeling and motion, while they remain as now, articles of property, and what a towering rage would men be in, if bushes whipped them in the face when they walked among them, or stones rolled over their toes when they climbed hills! and what exemplary vengeance would be inflicted upon door-steps and hearth-stones, if they were to move out of their places, instead of lying still where they were put for their owners to tread upon. The greatest provocation to human nature is *opposition to its will*. If a man's will be resisted by one far *below* him, the provocation is vastly greater, than when it is resisted by an acknowledged superior. In the former case, it inflames strong passions, which in the latter lie dormant. The rage of proud Haman knew no bounds against the poor Jew who would not do as he wished, and so he built a gallows for him. If the person opposing the will of another, be so far below him as to be on a level with chattels, and be actually held and used as an article of property; pride, scorn, lust of power, rage and revenge explode together upon the hapless victim. The idea of *property* having a will, and that too in opposition to the will of its *owner*, and counteracting it, is a stimulant of terrible power to the most relentless human passions and from the nature of slavery, and the constitution of the human mind, this fierce stimulant must, with various degrees of strength, act upon slaveholders almost without ceasing. The slave, however abject and crushed, is an intelligent being: he has a *will*, and that will cannot be annihilated, *it will show itself*; if for a moment it is smothered, like pent up fires when vent is found, it flames the fiercer. Make intelligence *property*, and its manager will have his match; he is met at every turn by an *opposing will*, not in the form of down-right

rebellion and defiance, but yet, visibly, an *ever-opposing will*. He sees it in the dissatisfied look, and reluctant air and unwilling movement; the constrained strokes of labor, the drawling tones, the slow hearing, the feigned stupidity, the sham pains and sickness, the short memory; and he *feels* it every hour, in innumerable forms, frustrating his designs by a ceaseless though perhaps invisible countermining. This unceasing opposition to the will of its 'owner,' on the part of his rational 'property,' is to the slaveholder as the hot iron to the nerve. He raves under it, and storms, and gnashes, and smites; but the more he smites, the hotter it gets, and the more it burns him. Further, this opposition of the slave's will to his owner's, not only excites him to severity, that he may gratify his rage, but makes it necessary for him to use violence in breaking down this resistance—thus subjecting the slave to additional tortures. There is another inducement to cruel inflictions upon the slave, and a necessity for it, which does not exist in the case of brutes. Offenders must be made an example to others, to strike them with terror. If a slave runs away and is caught, his master flogs him with terrible severity, not merely to gratify his resentment, and to keep him from running away again, but as a warning to others. So in every case of disobedience, neglect, stubbornness, unfaithfulness, indolence, insolence, theft, feigned sickness, when his directions are forgotten, or slighted, or supposed to be, or his wishes crossed, or his property injured, or left exposed, or his work ill-executed, the master is tempted to inflict cruelties, not merely to wreak his own vengeance upon him, and to make the slave more circumspect in future, but to sustain his authority over the other slaves, to restrain them from like practices, and to preserve his own property.

A multitude of facts, illustrating the position that slaveholders treat their slaves *worse* than they do their cattle, will occur to all who are familiar with slavery. When cattle break through their owners' inclosures and escape, if found, they are driven back and fastened in again; and even slaveholders would execrate as a wretch, the man who should tie them up, and bruise and lacerate them for straying away; but when *slaves* that have escaped are caught, they are flogged with the most terrible severity. When herds of cattle are driven to market, they are suffered to go in the easiest way, each by himself; but when slaves are driven to market, they are fastened together with handcuffs, galled by iron collars and chains, and thus forced to travel

on foot hundreds of miles, sleeping at night in their chains. Sheep, and sometimes horned cattle are marked with their owners' initials—but this is generally done with paint, and of course produces no pain. Slaves, too, are often marked with their owners' initials, but the letters are stamped into their flesh with a hot iron. Cattle are suffered to graze their pastures without stint; but the slaves are restrained in their food to a fixed allowance. The slaveholders' horses are notoriously far better fed, more moderately worked, have fewer hours of labor, and longer intervals of rest than their slaves; and their valuable horses are far more comfortably housed and lodged, and their stables more effectually defended from the weather, than the slaves' huts. We have here merely *begun* a comparison, which the reader can easily carry out at length, from the materials furnished in this work.

We will, however, subjoin a few testimonies of slaveholders, and others who have resided in slave states, expressly asserting that slaves are treated *worse than brutes*.

The late Dr. GEORGE BUCHANAN, of Baltimore, Maryland, a member of the American Philosophical Society, in an oration delivered in Baltimore, July 4, 1791, page 10, says:

"The Africans whom you despise, whom you *more inhumanly treat than brutes*, are equally capable of improvement with yourselves."

The Rev. GEORGE WHITEFIELD, in his celebrated letter to the slaveholders of Maryland, Virginia, North and South Carolina, and Georgia, written one hundred years ago, (See Benezet's Caution to Great Britain and her Colonies, page 13), says:

"Sure I am, it is sinful to use them as bad, nay worse than if they were brutes; and whatever particular *exceptions* there may be, (as I would charitably hope there are *some*) I fear the *generality* of you that own negroes, *are liable to such a charge*."

Mr. RICE, of Kentucky in his speech in the Convention that formed the Constitution of that state, in 1790, says:

"He [the slave] is a rational creature, reduced by the power of legislation to the *state of a brute*, and thereby deprived of every privilege of humanity.... The brute may steal or rob, to supply his hunger; but the slave, though in

the most starving condition, *dare not do either, on penalty of death, or some severe punishment.*"

Rev. HORACE MOULTON, a minister of the Methodist Episcopal Church, in Marlborough, Mass. who lived some years in Georgia, says:

"The southern horses and dogs have enough to eat, and good care is taken of them; but southern negroes—who can describe their misery and their wretchedness, their nakedness and their cruel scourgings! None but God. Should we *whip our horses* as they whip their slaves, even for small offences, we should expose ourselves to the penalty of the law."

Rev. PHINEAS SMITH, Centerville, Allegany county, New York, who has resided four years in the midst of southern slavery—

"Avarice and cruelty are twin sisters; and I do not hesitate to declare before the world, as my deliberate opinion, that there is *less compassion* for working slaves at the south, than for working oxen at the north."

STEVEN SEWALL, Esq. Winthrop, Maine, a member of the Congregational Church, and late agent of the Winthrop Manufacturing Company, who resided five years in Alabama, says—

"I do not think that brutes, not even horses, are treated with *so much cruelty* as American slaves."

If the preceding considerations are insufficient to remove incredulity respecting the cruelties suffered by slaves, and if northern objectors still say, 'We might believe such things of savages, but that civilized men, and republicans, in this Christian country, can openly and by system perpetrate such enormities, is impossible';—to such we reply, that this incredulity of the people of the free states, is not only discreditable to their intelligence, but to their consistency.

Who is so ignorant as not to know, or so incredulous as to disbelieve, that the early Baptists of New England were fined, imprisoned, scourged, and finally banished by our puritan forefathers?—and that the Quakers were confined in dungeons, publicly whipped at the cart-tail, had their ears cut off, cleft sticks put upon their tongues, and that five of them, four men and one woman, were hung on Boston Common, for propagating the sentiments

of the Society of Friends? Who discredits the fact, that the civil authorities in Massachusetts, less than a hundred and fifty years ago, confined in the public jail a little girl of four years old, and publicly hung the Rev. Mr. Burroughs, and eighteen other persons, mostly women, and killed another, (Giles Corey,) by extending him upon his back, and piling weights upon his breast till he was crushed to death [17]—and this for no other reason than that these men and women, and this little child, were accused by others of *bewitching* them.

[Footnote 17: Judge Sewall, of Mass. in his diary, describing this horrible scene, says that when the tongue of the poor sufferer had, in the extremity of his dying agony, protruded from his mouth, a person in attendance took his cane and thrust it back into his mouth.]

Even the children in Connecticut, know that the following was once a law of that state:

"No food or lodging shall be allowed to a Quaker. If any person turns Quaker, he shall be banished, and not be suffered to return on pain of death."

These objectors can readily believe the fact, that in the city of New York, less than a hundred years since, thirteen persons were publicly burned to death, over a slow fire: and that the legislature of the same State took under its paternal care the African slave-trade, and declared that "all encouragement should be given to the *direct* importation of slaves; that all *smuggling* of slaves should be condemned, as *an eminent discouragement to the fair trader*."

They do not call in question the fact that the African slave-trade was carried on from the ports of the free states till within thirty years; that even members of the Society of Friends were actively engaged in it, shortly before the revolutionary war; [18] that as late as 1807, no less than fifty-nine of the vessels engaged in that trade, were sent out from the little state of Rhode Island, which had then only about seventy thousand inhabitants; that among those most largely engaged in these foul crimes, are the men whom the people of Rhode Island delight to honor: that the man who

dipped most deeply in that trade of blood (James De Wolf,) and amassed a most princely fortune by it, was not long since their senator in Congress; and another, who was captain of one of his vessels, was recently Lieutenant Governor of the state.

[Footnote [18](#): See Life and Travels of John Woolman, page 92.]

They can believe, too, all the horrors of the middle passage, the chains, suffocation, maimings, stranglings, starvation, drownings, and cold blooded murders, atrocities perpetrated on board these slave-ships by their own citizens, perhaps by their own townsmen and neighbors—possibly by their own *fathers*: but oh! they 'can't believe that the slaveholders can be so hard-hearted towards their slaves as to treat them with great cruelty.' They can believe that his Holiness the Pope, with his cardinals, bishops and priests, have tortured, broken on the wheel, and burned to death thousands of Protestants—that eighty thousand of the Anabaptists were slaughtered in Germany—that hundreds of thousands of the blameless Waldenses, Huguenots and Lollards, were torn in pieces by the most titled dignitaries of church and state, and that *almost every professedly Christian sect, has, at some period of its history, persecuted unto blood* those who dissented from their creed. They can believe, also, that in Boston, New York, Utica, Philadelphia, Cincinnati, Alton, and in scores of other cities and villages of the free states, 'gentlemen of property and standing,' led on by civil officers, by members of state legislatures, and of Congress, by judges and attorneys-general, by editors of newspapers, and by professed ministers of the gospel, have organized mobs, broken up lawful meetings of peaceable citizens, committed assault and battery upon their persons, knocked them down with stones, led them about with ropes, dragged them from their beds at midnight, gagged and forced them into vehicles, and driven them into unfrequented places, and there tormented and disfigured them—that they have rifled their houses, made bonfires of their furniture in the streets, burned to the ground, or torn in pieces the halls or churches in which they were assembled—attacked them with deadly weapons, stabbed some, shot others, and killed one. They can believe all this—and further, that a majority of the citizens in the places where these outrages have been committed, connived at them; and by refusing to indict the perpetrators, or,

if they were indicted, by combining to secure their acquittal, and rejoicing in it, have publicly adopted these felonies as their own. All these things they can believe without hesitation, and that they have even been done by their own acquaintances, neighbors, relatives; perhaps those with whom they interchange courtesies, those for whom they *vote*, or to whose *salaries they contribute*—but yet, oh! they can never believe that slaveholders inflict cruelties upon their slaves!

They can give full credence to the kidnapping, imprisonment, and deliberate murder of WILLIAM MORGAN, and that by men of high standing in society; they can believe that this deed was aided and abetted, and the murderers screened from justice, by a large number of influential persons, who were virtually accomplices, either before or after the fact; and that this combination was so effectual, as successfully to defy and triumph over the combined powers of the government;—yet that those who constantly rob men of their time, liberty, and wages, and all their *rights*, should rob them of bits of flesh, and occasionally of a tooth, make their backs bleed, and put fetters on their legs, is too monstrous to be credited! Further these same persons, who 'can't believe' that slaveholders are so iron-hearted as to ill-treat their slaves, believe that the very *elite* of these slaveholders, those most highly esteemed and honored among them, are continually daring each other to mortal conflict, and in the presence of mutual friends, taking deadly aim at each other's hearts, with settled purpose to *kill*, if possible. That among the most distinguished governors of slave states, among their most celebrated judges, senators, and representatives in Congress, there is hardly *one*, who has not either killed, or tried to kill, or aided and abetted his friends in trying to kill, one or more individuals. That pistols, dirks, bowie knives, or other instruments of death are generally carried throughout the slave states—and that deadly affrays with them, in the streets of their cities and villages, are matters of daily occurrence; that the sons of slaveholders in southern colleges, bully, threaten, and fire upon their teachers, and their teachers upon them; that during the last summer, in the most celebrated seat of science and literature in the south, the University of Virginia, the professors were attacked by more than seventy armed students, and, in the words of a Virginia paper, were obliged 'to conceal themselves from their fury;' also that almost all the riots and violence that occur in northern colleges, are produced by the

turbulence and lawless passions of southern students. That such are the furious passions of slaveholders, no considerations of personal respect, none for the proprieties of life, none for the honor of our national legislature, none for the character of our country abroad, can restrain the slaveholding members of Congress from the most disgraceful personal encounters on the floor of our nation's legislature—smiting their fists in each other's faces, throttling and even *kicking* and trying to *gouge* each other—that during the session of the Congress just closed, no less than six slaveholders, taking fire at words spoken in debate, have either rushed at each other's throats, or kicked, or struck, or attempted to knock each other down; and that in all these instances, they would doubtless have killed each other, if their friends had not separated them. Further, they know full well, these were not insignificant, vulgar blackguards, elected because they were the head bullies and bottle-holders in a boxing ring, or because their constituents went drunk to the ballot box; but they were some of the most conspicuous members of the House—one of them a former speaker.

Our newspapers are full of these and similar daily occurrences among slaveholders, copied verbatim from their own accounts of them in their own papers and all this we fully credit; no man is simpleton enough to cry out 'Oh, I can't believe that slaveholders do such things;'—and yet when we turn to the treatment which these men mete out to their *slaves*, and show that they are in the habitual practice of striking, kicking, knocking down and shooting *them* as well as each other—the look of blank incredulity that comes over northern dough-faces, is a study for a painter: and then the sentimental outcry, with eyes and hands uplifted, 'Oh, indeed, I can't believe the slaveholders are so cruel to their slaves.' Most amiable and touching charity! Truly, of all Yankee notions and free state products, there is nothing like a '*dough face*'—the great northern staple for the southern market—'made to order,' in any quantity, and *always on hand*. 'Dough faces!' Thanks to a slaveholder's contempt for the name, with its immortality of truth, infamy and scorn.[\[19\]](#)

[Footnote [19](#): "*Doe face*," which owes its paternity to John Randolph, age has mellowed into "*dough face*"—a cognomen quite as expressive and appropriate, if not as classical.]

Though the people of the free states affect to disbelieve the cruelties perpetrated upon the slaves, yet slaveholders believe *each other* guilty of them, and speak of them with the utmost freedom. If slaveholders disbelieve any statement of cruelty inflicted upon a slave, it is not on account of its *enormity*. The traveler at the south will hear in Delaware, and in all parts of Maryland and Virginia, from the lips of slaveholders, statements of the most horrible cruelties suffered by the slaves *farther* south, in the Carolinas and Georgia; when he finds himself in those states he will hear similar accounts about the treatment of the slaves in *Florida* and *Louisiana*; and in Missouri, Kentucky, and Tennessee he will hear of the tragedies enacted on the plantations in Arkansas, Alabama and Mississippi. Since Anti-Slavery Societies have been in operation, and slaveholders have found themselves on trial before the world, and put upon their good behavior, northern slaveholders have grown cautious, and now often substitute denials and set defences, for the voluntary testimony about cruelty in the far south, which, before that period, was given with entire freedom. Still, however, occasionally the 'truth will out,' as the reader will see by the following testimony of an East Tennessee newspaper, in which, speaking of the droves of slaves taken from the upper country to Alabama, Mississippi, Louisiana, etc., the editor says, they are 'traveling to a region where their condition through time WILL BE SECOND ONLY TO THAT OF THE WRETCHED CREATURES IN HELL.' See "Maryville Intelligencer," of Oct, 4, 1835. Distant cruelties and cruelties *long past*, have been till recently, favorite topics with slaveholders. They have not only been ready to acknowledge that their *fathers* have exercised great cruelty toward their slaves, but have voluntarily, in their official acts, made proclamation of it and entered it on their public records. The Legislature of North Carolina, in 1798, branded the successive legislatures of that state for more than thirty years previous, with the infamy of treatment towards their slaves, which they pronounce to be 'disgraceful to humanity, and degrading in the highest degree to the laws and principles of a free, Christian, and enlightened country.' This treatment was the enactment and perpetuation of a most barbarous and cruel law.

But enough. As the objector can and does believe all the preceeding facts, if he still '*can't* believe' as to the cruelties of slaveholders, it would be

barbarous to tantalize his incapacity either with evidence or argument. Let him have the benefit of the act in such case made and provided.

Having shown that the incredulity of the objector respecting the cruelty inflicted upon the slaves, is discreditable to his consistency, we now proceed to show that it is equally so to his *intelligence*.

Whoever disbelieves the foregoing statements of cruelties, on the ground of their enormity, proclaims his own ignorance of the nature and history of man. What! incredulous about the atrocities perpetrated by those who hold human beings as property, to be used for their pleasure, when history herself has done little else in recording human deeds, than to dip her blank chart in the blood shed by arbitrary power, and unfold to human gaze the great red scroll? That cruelty is the natural effect of arbitrary power, has been the result of all experience, and the voice of universal testimony since the world began. Shall human nature's axioms, six thousand years old, go for nothing? Are the combined product of human experience, and the concurrent records of human character, to be set down as 'old wives' fables?' To disbelieve that arbitrary power naturally and habitually perpetrates cruelties, where it can do it with impunity, is not only ignorance of man, but of *things*. It is to be blind to innumerable proofs which are before every man's eyes; proofs that are stereotyped in the very words and phrases that are on every one's lips. Take for example the words *despot* and *despotic*. Despot, signifies etymologically, merely one who *possesses* arbitrary power, and at first, it was used to designate those alone who *possessed* unlimited power over human beings, entirely irrespective of the way in which they exercised it, whether mercifully or cruelly. But the fact, that those who possessed such power, made their subjects their *victims*, has wrought a total change in the popular meaning of the word. It now signifies, in common parlance, not one who *possesses* unlimited power over others, but one who exercises the power that he has, whether little or much, *cruelly*. So *despotic*, instead of meaning what it once did, something pertaining to the *possession* of unlimited power, signifies something pertaining to the *capricious, unmerciful and relentless exercise* of such power.

The word tyrant, is another example—formerly it implied merely a *possession* of arbitrary power, but from the invariable abuse of such power by its possessors, the proper and entire meaning of the word is lost, and it

now signifies merely one who *exercises power to the injury of others*. The words tyrannical and tyranny follow the same analogy. So the word arbitrary; which formerly implied that which pertains to the will of one, independently of others; but from the fact that those who had no restraint upon their wills, were invariably capricious, unreasonable and oppressive, these words convey accurately the present sense of *arbitrary*, when applied to a person.

How can the objector persist in disbelieving that cruelty is the natural effect of arbitrary power, when the very words of every day, rise up on his lips in testimony against him—words which once signified the *mere possession* of arbitrary power, but have lost their meaning, and now signify merely its cruel *exercise*; because such a use of it has been proved by the experience of the world, to be inseparable from its *possession*—words now frigid with horror, and never used even by the objector without feeling a cold chill run over him.

Arbitrary power is to the mind what alcohol is to the body; it intoxicates. Man loves power. It is perhaps the strongest human passion; and the more absolute the power, the stronger the desire for it; and the more it is desired, the more its exercise is enjoyed: this enjoyment is to human nature a fearful temptation,—generally an overmatch for it. Hence it is true, with hardly an exception, that arbitrary power is abused in proportion as it is *desired*. The fact that a person intensely desires power over others, *without restraint*, shows the absolute necessity of restraint. What woman would marry a man who made it a condition that he should have the power to divorce her whenever he pleased? Oh! he might never wish to exercise it, but the *power* he would have! No woman, not stark mad, would trust her happiness in such hands.

Would a father apprentice his son to a master, who insisted that his power over the lad should be *absolute*? The master might perhaps, never wish to commit a battery upon the boy, but if he should, he insists upon having full swing! He who would leave his son in the clutches of such a wretch, would be bled and blistered for a lunatic as soon as his friends could get their hands upon him.

The possession of power, even when greatly restrained, is such a fiery stimulant, that its lodgement in human hands is always perilous. Give men the handling of immense sums of money, and all the eyes of Argus and the hands of Briareus can hardly prevent embezzlement.

The mutual and ceaseless accusations of the two great political parties in this country, show the universal belief that this tendency of human nature to abuse power, is so strong, that even the most powerful legal restraints are insufficient for its safe custody. From congress and state legislatures down to grog-shop caucuses and street wranglings, each party keeps up an incessant din about *abuses of power*. Hardly an officer, either of the general or state governments, from the President down to the ten thousand postmasters, and from governors to the fifty thousand constables, escapes the charge of '*abuse of power*.' 'Oppression,' 'Extortion,' 'Venality,' 'Bribery,' 'Corruption,' 'Perjury,' 'Misrule,' 'Spoils,' 'Defalcation,' stand on every newspaper. Now without any estimate of the lies told in these mutual charges, there is truth enough to make each party ready to believe of the other, and of *their best men too*, any abuse of power, however monstrous. As is the State, so is the Church. From General Conferences to circuit preachers; and from General Assemblies to church sessions, abuses of power spring up as weeds from the dunghill.

All legal restraints are framed upon the presumption, that men will abuse their power if not hemmed in by them. This lies at the bottom of all those checks and balances contrived for keeping governments upon their centres. If there is among human convictions one that is invariable and universal, it is, that when men possess unrestrained power over others, over their time, choice, conscience, persons, votes, or means of subsistence, they are under great temptations to abuse it; and that the intensity with which such power is desired, generally measures the certainty and the degree of its abuse.

That American slaveholders possess a power over their slaves which is virtually absolute, none will deny.[\[20\]](#) That they *desire* this absolute power, is shown from the fact of their holding and exercising it, and making laws to confirm and enlarge it. That the desire to possess this power, every tittle of it, is *intense*, is proved by the fact, that slaveholders cling to it with such obstinate tenacity, as well as by all their doings and sayings, their threats,

cursings and gnashings against all who denounce the exercise of such power as usurpation and outrage, and counsel its immediate abrogation.

[Footnote [20](#): The following extracts from the laws of slave-states are proofs sufficient.]

"The slave is ENTIRELY subject to the WILL of his master."—Louisiana Civil Code, Art. 273.

"Slaves shall be deemed, sold, taken, reputed and adjudged in law to be *chattels personal*, in the hands of their owner and possessors, and their executors, administrators and assigns, TO ALL INTENTS, CONSTRUCTIONS, AND PURPOSES, WHATSOEVER."—Laws of South Carolina, 2 Brev. Dig. 229; Prince's Digest, 446, &c.]

From the nature of the case—from the laws of mind, such power, so intensely desired, griped with such a death-clutch, and with such fierce spurnings of all curtailment or restraint, *cannot but be abused*. Privations and inflictions must be its natural, habitual products, with ever and anon, terror, torture, and despair let loose to do their worst upon the helpless victims.

Though power over others is in every case liable to be used to their injury, yet, in almost all cases, the subject individual is shielded from great outrages by strong safeguards. If he have talents, or learning, or wealth, or office, or personal respectability, or influential friends, these, with the protection of law and the rights of citizenship, stand round him as a body guard: and even if he lacked all these, yet, had he the same color, features, form, dialect, habits, and associations with the privileged caste of society, he would find in *them* a shield from many injuries, which would be *invited*, if in these respects he differed widely from the rest of the community, and was on that account regarded with disgust and aversion. This is the condition of the slave; not only is he deprived of the artificial safeguards of the law, but has none of those *natural* safeguards enumerated above, which are a protection to others. But not only is the slave destitute of those peculiarities, habits, tastes, and acquisitions, which by assimilating the possessor to the rest of the community, excite their interest in him, and thus,

in a measure, secure for him their protection; but he possesses those peculiarities of bodily organization which are looked upon with deep disgust, contempt, prejudice, and aversion. Besides this, constant contact with the ignorance and stupidity of the slaves, their filth, rags, and nakedness; their cowering air, servile employments, repulsive food, and squalid hovels, their purchase and sale, and use as brutes—all these associations, constantly mingling and circulating in the minds of slaveholders, and inveterated by the hourly irritations which must assail all who use human beings as things, produce in them a permanent state of feeling toward the slave, made up of repulsion and settled ill-will. When we add to this the corrosions produced by the petty thefts of slaves, the necessity of constant watching, their reluctant service, and indifference to their master's interests, their ill concealed aversion to him, and spurning of his authority; and finally, that fact, as old as human nature, that men always hate those whom they oppress, and oppress those whom they hate, thus oppression and hatred mutually begetting and perpetuating each other—and we have a raging compound of fiery elements and disturbing forces, so stimulating and inflaming the mind of the slaveholder against the slave, that *it cannot but break forth upon him with desolating fury.*

To deny that cruelty is the spontaneous and uniform product of arbitrary power, and that the natural and controlling tendency of such power is to make its possessor cruel, oppressive, and revengeful towards those who are subjected to his control, is, we repeat, to set at nought the combined experience of the human race, to invalidate its testimony, and to reverse its decisions from time immemorial.

A volume might be filled with the testimony of American slaveholders alone, to the truth of the preceding position. We subjoin a few illustrations, and first, the memorable declaration of President Jefferson, who lived and died a slaveholder. It has been published a thousand times, and will live forever. In his "Notes on Virginia," sixth Philadelphia edition, p. 251, he says,—

"The WHOLE COMMERCE between master and slave, is a PERPETUAL EXERCISE of the most *boisterous passions*, the most unremitting DESPOTISM on the one part, and degrading submission on the other.... The parent *storms*, the child looks on, catches the lineaments of *wrath*, puts on

the same airs in the circle of smaller slaves, GIVES LOOSE TO THE WORST OF PASSIONS; and thus *nursed, educated, and daily exercised in tyranny*, cannot but be stamped by it with odious peculiarities."

Hon. Lewis Summers, Judge of the General Court of Virginia, and a slaveholder, said in a speech before the Virginia legislature in 1832; (see Richmond Whig of Jan. 26, 1832,)

"A slave population exercises *the most pernicious influence* upon the manners, habits and character, of those among whom it exists. Lispering infancy learns the vocabulary of abusive epithets, and struts the *embryo tyrant* of its little domain. The consciousness of superior destiny takes possession of his mind at its earliest dawning, and love of power and rule, 'grows with his growth, and strengthens with his strength.' Unless enabled to rise above the operation of those powerful causes, he enters the world with miserable notions of self-importance, and under the government of an unbridled temper."

The late JUDGE TUCKER of Virginia, a slaveholder, and Professor of Law in the University of William and Mary, in his "Letter to a Member of the Virginia Legislature," 1801, says,—

"I say nothing of the baneful effects of slavery on our *moral character*, because I know you have been long sensible of this point."

The Presbyterian Synod of South Carolina and Georgia, consisting of all the clergy of that denomination in those states, with a lay representation from the churches, most, if not all of whom are slaveholders, published a report on slavery in 1834, from which the following is an extract.

"Those only who have the management of servants, know what the *hardening effect* of it is upon *their own feelings towards them*. There is no necessity to dwell on this point, as all *owners and managers* fully understand it. He who commences to manage them with tenderness and with a willingness to favor them in every way, must be watchful, otherwise he will settle down in *indifference, if not severity*."

GENERAL WILLIAM H. HARRISON, now of Ohio, son of the late Governor Harrison of Virginia, a slaveholder, while minister from the United States to the Republic of Colombia, wrote a letter to General Simon

Bolivar, then President of that Republic, just as he was about assuming despotic power. The letter is dated Bogota, Sept. 22, 1826. The following is an extract.

"From a knowledge of your own disposition and present feelings, your excellency will not be willing to believe that you could ever be brought to an act of tyranny, or even to execute justice with unnecessary rigor. But trust me, sir, there is nothing more corrupting, nothing more *destructive of the noblest and finest feelings of our nature than the exercise of unlimited power*. The man, who in the beginning of such a career, might shudder at the idea of taking away the life of a fellow-being, might soon have his conscience so seared by the repetition of crime, that the agonies of his murdered victims might become music to his soul, and the drippings of the scaffold afford blood to swim in. History is full of such excesses."

WILLIAM H. FITZHUGH, Esq. of Virginia, a slaveholder, says,—*"Slavery, in its mildest form, is cruel and unnatural; its injurious effects on our morals and habits are mutually felt."*

HON. SAMUEL S. NICHOLAS, late Judge of the Court of Appeals of Kentucky, and a slaveholder, in a speech before the legislature of that state, Jan. 1837, says,—

"The deliberate convictions of the most matured consideration I can give the subject, are, that the institution of slavery is a *most serious injury to the habits, manners and morals* of our white population—that it leads to sloth, indolence, dissipation, and vice."

Dr. THOMAS COOPER, late President of the College of South Carolina, in a note to his edition of the "Institutes of Justinian" page 413, says,—

"All absolute power has a direct tendency, not only to detract from the happiness of the persons who are subject to it, but to DEPRAVE THE GOOD QUALITIES of those who possess it ... the whole history of human nature, in the present and every former age, will justify me in saying that *such is the tendency of power* on the one hand and slavery on the other."

A South Carolina slaveholder, whose name is with the executive committee of the Am. A.S. Society, says, in a letter, dated April 4, 1838:—

"I think it (slavery) *ruinous to the temper* and to our spiritual life; it is a thorn in the flesh, for ever and for ever goading us on to say and to do what the Eternal God cannot but be displeased with. I speak from experience, and oh! my desire is to be delivered from it."

Monsieur C.C. ROBIN, who was a resident of Louisiana from 1802 to 1806, published a work on that country; in which, speaking of the effect of slaveholding on masters and their children, he says:—

"The young creoles make the negroes who surround them the play-things of their whims: they flog, for pastime, those of their own age, just as their fathers flog others at their will. These young creoles, arrived at the age in which the passions are impetuous, do not *know how to bear contradiction*; they will have every thing done which they command, *possible or not*; and in default of this, they avenge their offended pride by multiplied punishments."

Dr. GEORGE BUCHANAN, of Baltimore, Maryland, member of the American Philosophical Society, in an oration at Baltimore, July 4, 1791, said:—

"For such are the effects of subjecting man to slavery, that it *destroys every humane principle*, vitiates the mind, instills ideas of unlawful cruelties, and eventually subverts the springs of government."—*Buchanan's Oration*, p. 12.

President EDWARDS the younger, in a sermon before the Connecticut Abolition Society, in 1791, page 8, says:—

"Slavery has a most direct tendency to haughtiness, and a *domineering spirit* and conduct in the proprietors of the slaves, in their children, and in all who have the control of them. A man who has been bred up in domineering over negroes, can scarcely avoid contracting such a habit of haughtiness and domination as will express itself in his general treatment of mankind, whether in his private capacity, or in any office, civil or military, with which he may be invested."

The celebrated MONTESQUIEU, in his "Spirit of the Laws," thus describes the effect of slaveholding upon the master:—

"The master contracts all sorts of bad habits; and becomes *haughty, passionate, obdurate, vindictive, voluptuous, and cruel.*"

WILBERFORCE, in his speech at the anniversary of the London Anti-Slavery Society, in March, 1828, said:—

"It is *utterly impossible* that they who live in the administration of the petty despotism of a slave community, whose minds have been *warped and polluted* by that contamination, should not *lose that respect* for their fellow creatures over whom they tyrannize, which is essential in the nature and moral being of man, to rescue them from the abuse of power over their prostrate fellow creatures."

In the great debate, in the British Parliament, on the African slave-trade, Mr. WHITBREAD said:

"Arbitrary power would spoil the hearts of the best."

But we need not multiply proofs to establish our position: it is sustained by the concurrent testimony of sages, philosophers, poets, statesmen, and moralists, in every period of the world; and who can marvel that those in all ages who have wisely pondered men and things, should be unanimous in such testimony, when the history of arbitrary power has come down to us from the beginning of time, struggling through heaps of slain, and trailing her parchments in blood.

Time would fail to begin with the first despot and track down the carnage step by step. All nations, all ages, all climes crowd forward as witnesses, with their scars, and wounds, and dying agonies.

But to survey a multitude bewilders; let us look at a single nation. We instance Rome; both because its history is more generally known, and because it furnishes a larger proportion of instances, in which arbitrary power was exercised with comparative mildness, than any other nation ancient or modern. And yet, her whole existence was a tragedy, every actor was an executioner, the curtain rose amidst shrieks and fell upon corpses, and the only shifting of the scenes was from blood to blood. The whole world stood aghast, as under sentence of death, awaiting execution, and all nations and tongues were driven, with her own citizens, as sheep to the slaughter. Of her seven kings, her hundreds of consuls, tribunes, decemvirs,

and dictators, and her fifty emperors, there is hardly one whose name has come down to us unstained by horrible abuses of power; and that too, notwithstanding we have mere shreds of the history of many of them, owing to their antiquity, or to the perturbed times in which they lived; and these shreds gathered from the records of their own partial countrymen, who wrote and sung their praises. What does this prove? Not that the Romans were worse than other men, nor that their rulers were worse than other Romans, for history does not furnish nobler models of natural character than many of those same rulers, when first invested with arbitrary power. Neither was it mainly because the martial enterprise of the earlier Romans and the gross sensuality of the later, hardened their hearts to human suffering. In both periods of Roman history, and in both these classes, we find men, the keen sympathies, generosity, and benevolence of whose general character embalmed their names in the grateful memories of multitudes. *They were human beings, and possessed power without restraint*—this unravels the mystery.

Who has not heard of the Emperor Trajan, of his moderation, his clemency, his gashing sympathies, his forgiveness of injuries and forgetfulness of self, his tearing in pieces his own robe, to furnish bandages for the wounded—called by the whole world in his day, "the best emperor of Rome;" and so affectionately regarded by his subjects, that, ever afterwards, in blessing his successors upon their accession to power, they always said, "May you have the virtue and goodness of Trajan!" yet the deadly conflicts of gladiators who were trained to kill each other, to make sport for the spectators, furnished his chief pastime. At one time he kept up those spectacles for 123 days in succession. In the tortures which he inflicted on Christians, fire and poison, daggers and dungeons, wild beasts and serpents, and the rack, did their worst. He threw into the sea, Clemens, the venerable bishop of Rome, with an anchor about his neck; and tossed to the famished lions in the amphitheatre the aged Ignatius.

Pliny the younger, who was proconsul under Trajan, may well be mentioned in connection with the emperor, as a striking illustration of the truth, that goodness and amiableness towards one class of men is often turned into cruelty towards another. History can hardly show a more gentle and lovely character than Pliny. While pleading at the bar, he always sought out the grievances of the poorest and most despised persons, entered into their

wrongs with his whole soul, and never took a fee. Who can read his admirable letters without being touched by their tenderness and warmed by their benignity and philanthropy: and yet, this tender-hearted Pliny coolly plied with excruciating torture two spotless females, who had served as deaconesses in the Christian church, hoping to extort from them matter of accusation against the Christians. He commanded Christians to abjure their faith, invoke the gods, pour out libations to the statues of the emperor, burn incense to idols, and curse Christ. If they refused, he ordered them to execution.

Who has not heard of the Emperor Titus—so beloved for his mild virtues and compassionate regard for the suffering, that he was named "The Delight of Mankind;" so tender of the lives of his subjects that he took the office of high priest, that his hands might never be defiled with blood; and was heard to declare, with tears, that he had rather die than put another to death. So intent upon making others happy, that when once about to retire to sleep, and not being able to recall any particular act of beneficence performed during the day, he cried out in anguish, "Alas! I have lost a day!" And, finally, whom the learned Kennet, in his *Roman Antiquities*, characterizes as "the only prince in the world that has the character of *never doing an ill action*." Yet, witnessing the mortal combats of the captives taken to war, killing each other in the amphitheatre, amidst the acclamations of the populace, was a favorite amusement with Titus. At one time he exhibited shows of gladiators, which lasted one hundred days, during which the amphitheatre was flooded with human blood. At another of his public exhibitions he caused five thousand wild beasts to be baited in the amphitheatre. During the siege of Jerusalem, he set ambushes to seize the famishing Jews, who stole out of the city by night to glean food in the valleys: these he would first dreadfully scourge, then torment them with all conceivable tortures, and, at last, crucify them before the wall of the city. According to Josephus, not less than five hundred a day were thus tormented. And when many of the Jews, frantic with famine, deserted to the Romans, Titus cut off their hands and drove them back. After the destruction of Jerusalem, he dragged to Rome one hundred thousand captives, sold them as slaves, and scattered them through every province of the empire.

The kindness, condescension, and forbearance of Adrian were proverbial; he was one of the most eloquent orators of his age; and when pleading the cause of injured innocence, would melt and overwhelm the auditors by the pathos of his appeals. It was his constant maxim, that he was an Emperor, not for his own good, but for the benefit of his fellow creatures. He stooped to relieve the wants of the meanest of his subjects, and would peril his life by visiting them when sick of infectious diseases; he prohibited, by law, masters from killing their slaves, gave to slaves legal trial, and exempted them from torture; yet towards certain individuals and classes, he showed himself a monster of cruelty. He prided himself on his knowledge of architecture, and ordered to execution the most celebrated architect of Rome, because he had criticised one of the Emperor's designs. He banished all the Jews from their native land, and drove them to the ends of the earth; and unloosed the bloodhounds of persecution to rend in pieces his Christian subjects.

The gentleness and benignity of the Emperor Aurelius, have been celebrated in story and song. History says of him, 'Nothing could quench his desire of being a blessing to mankind;' and Pope's eulogy of him is in the mouth of every schoolboy—'Like good Aurelius, let him reign;' and yet, '*good Aurelius*,' lifted the flood gates of the fourth, and one of the most terrible persecutions against Christians that ever raged. He sent orders into different parts of his empire, to have the Christians murdered who would not deny Christ. The blameless Polycarp, trembling under the weight of a hundred years, was dragged to the stake and burned to ashes. Pothinus, Bishop of Lyons, at the age of ninety, was dragged through the streets, beaten, stoned, trampled upon by the soldiers, and left to perish. Tender virgins were put into nets, and thrown to infuriated wild bulls; others were fastened in red hot iron chairs; and venerable matrons were thrown to be devoured by dogs.

Constantine the Great has been the admiration of Christendom for his virtues. The early Christian writers adorn his justice, benevolence and piety with the most exalted eulogy. He was baptized, and admitted to the Christian church. He abrogated Paganism, and made Christianity the religion of his empire; he attended the councils of the early fathers of the church, consulted with the bishops, and devoted himself with the most untiring zeal to the propagation of Christianity, and to the promotion of peace and love among its professors; he convened the Council of Nice, to

settle disputes which had long distracted the church, appeared in the assembly with admirable modesty and temper, moderated the heats of the contending parties, implored them to exercise mutual forbearance, and exhorted them to love unfeigned, to forgive one another, as they hoped to be forgiven by Christ. Who would not think it uncharitable to accuse such a man of barbarity in the exercise of power?—and yet he drove Arius and his associates into banishment, for opinion's sake, denounced death against all with whom his books should afterwards be found, and prohibited, on pain of death, the exercise, however peaceably, of the functions of any other religion than Christianity. In a fit of jealousy and rage, he ordered his innocent son, Crispus, to execution, without granting him a hearing; and upon finding him innocent, killed his own wife, who had falsely accused him.

To the preceding maybe added Theodosius the Great, the last Roman emperor before the division of the empire. He was a member of the Christian church, and in his zeal against paganism, and what he deemed heresy, surpassed all who were before him. The Christian writers of his time speak of him as a most illustrious model of justice, generosity, magnanimity, benevolence, and every virtue. And yet Theodosius denounced capital punishments against those who held 'heretical' opinions, and commanded inter-marriage between cousins to be punished by burning the parties alive. On hearing that the people of Antioch had demolished the statues set up in that city, in honor of himself, and had threatened the governor, he flew into a transport of fury, ordered the city to be laid in ashes, and all the inhabitants to be slaughtered; and upon hearing of a resistance to his authority in Thessalonica, in which one of his lieutenants was killed, he instantly ordered a *general massacre* of the inhabitants; and in obedience to his command, seven thousand men, women and children were butchered in the space of three hours.

The foregoing are a few of many instances in the history of Rome, and of a countless multitude in the history of the world, illustrating the truth, that the lodgement of arbitrary power, in the best human hands, is always a fearfully perilous experiment; that the mildest tempers, the most humane and benevolent dispositions, the most blameless and conscientious previous life, with the most rigorous habits of justice, are no security, that, in a moment of temptation, the possessors of such power will not make their subjects their

victims; illustrating also the truth, that, while men may exhibit nothing but honor, honesty, mildness, justice, and generosity, in their intercourse with those of their own grade, or language, or nation, or hue, they may practice towards others, for whom they have contempt and aversion, the most revolting meanness, perpetrate robbery unceasingly, and inflict the severest privations, and the most barbarous cruelties. But this is not all: history is full of examples, showing not only the effects of arbitrary power on its victims, but its terrible reaction on those who exercise it; blunting their sympathies, and hardening to adamant their hearts toward *them*, at least, if not toward the human race generally. This is shown in the fact, that almost every tyrant in the history of the world, has entered upon the exercise of absolute power with comparative moderation; multitudes of them with marked forbearance and mildness, and not a few with the most signal condescension, magnanimity, gentleness and compassion. Among these last are included those who afterwards became the bloodiest monsters that ever cursed the earth. Of the Roman Emperors, almost every one of whom perpetrated the most barbarous atrocities, Vitellius seems to have been the only one who cruelly exercised his power from the *outset*. Most of the other emperors, sprung up into fiends in the hot-bed of arbitrary power. If they had not been plied with its fiery stimulants, but had lived under the legal restraints of other men, instead of going to the grave under the curses of their generation, multitudes might have called them blessed.

The moderation which has generally distinguished absolute monarchs at the commencement of their reigns, was doubtless in some cases assumed from policy; in the greater number, however, as is manifest from their history, it has been the natural workings of minds held in check by previous associations, and not yet hardened into habits of cruelty, by being accustomed to the exercise of power without restraint. But as those associations have weakened, and the wielding of uncontrolled sway has become a habit, like other evil doers, they have, in the expressive language of Scripture, 'waxed worse and worse.'

For eighteen hundred years an involuntary shudder has run over the human race, at the mention of the name of Nero; yet, at the commencement of his reign, he burst into tears when called upon to sign the death-warrant of a criminal, and exclaimed, 'Oh, that I had never learned to write!' His mildness and magnanimity won the affections of his subjects; and it was not

till the poison of absolute power had worked within his nature for years, that it swelled him into a monster.

Tiberius, Claudius, and Caligula, began the exercise of their power with singular forbearance, and each grew into a prodigy of cruelty. So averse was Caligula to bloodshed, that he refused to look at a list of conspirators against his own life, which was handed to him; yet afterwards, a more cruel wretch never wielded a sceptre. In his thirst for slaughter, he wished all the necks in Rome *one*, that he might cut them off at a blow.

Domitian, at the commencement of his reign, carried his abhorrence of cruelty to such lengths, that he forbade the sacrificing of oxen, and would sit whole days on the judgment-seat, reversing the unjust decisions of corrupt judges; yet afterwards, he surpassed even Nero in cruelty. The latter was content to torture and kill by proxy, and without being a spectator; but Domitian could not be denied the luxury of seeing his victims writhe, and hearing them shriek; and often with his own hand directed the instrument of torture, especially when some illustrious senator or patrician was to be killed by piece-meal. Commodus began with gentleness and condescension, but soon became a terror and a scourge, outstripping in his atrocities most of his predecessors. Maximin too, was just and generous when first invested with power, but afterwards rioted in slaughter with the relish of a fiend. History has well said of this monarch, 'the change in his disposition may readily serve to show how dangerous a thing is power, that could transform a person of such rigid virtues into such a monster.'

Instances almost innumerable might be furnished in the history of every age, illustrating the blunting of sympathies, and the total transformation of character wrought in individuals by the exercise of arbitrary power. Not to detain the reader with long details, let a single instance suffice.

Perhaps no man has lived in modern times, whose name excites such horror as that of Robespierre. Yet it is notorious that he was naturally of a benevolent disposition, and tender sympathies.

"Before the revolution, when as a judge in his native city of Arras he had to pronounce judgment on an assassin, he took no food for two days afterwards, but was heard frequently exclaiming, 'I am sure he was guilty; he is a villain; but yet, to put a human being to death!!' He could not support

the idea; and that the same necessity might not recur, he relinquished his judicial office.—(See Laponneray's Life of Robespierre, p. 8.) Afterwards, in the Convention of 1791, he urged strongly the abolition of the punishment of death; and yet, for sixteen months, in 1793 and 1794, till he perished himself by the same guillotine which he had so mercilessly used on others, no one at Paris consigned and caused so many fellow-creatures to be put to death by it, with more ruthless insensibility."—*Turner's Sacred history of the World*, vol. 2 p. 119.

But it is time we had done with the objection, "such cruelties are INCREDIBLE." If the objector still reiterates it, he shall have the last word without farther molestation.

An objection kindred to the preceding now claims notice. It is the profound induction that slaves *must* be well treated because *slaveholders say they are!*

OBJECTION. II.—'SLAVEHOLDERS PROTEST THAT THEY TREAT THEIR SLAVES WELL.'

Self-justification is human nature; self-condemnation is a sublime triumph over it, and as rare as sublime. What culprits would be convicted, if their own testimony were taken by juries as good evidence? Slaveholders are on trial, charged with cruel treatment to their slaves, and though in their own courts they can clear themselves *by their own oaths*,[\[21\]](#) they need not think to do it at the bar of the world. The denial of crimes, by men accused of them, goes for nothing as evidence in all *civilized* courts; while the voluntary confession of them, is the best evidence possible, as it is testimony *against themselves*, and in the face of the strongest motives to conceal the truth. On the preceding pages, are hundreds of just such testimonies; the voluntary and explicit testimony of slaveholders against themselves, their families and ancestors, their constituents and their rulers; against their characters and their memories; against their justice, their honesty, their honor and their benevolence. Now let candor decide between those two classes of slaveholders, which is most entitled to credit; that which testifies in its own favor, just as self-love would dictate, or that which testifies against all selfish motives and in spite of them; and though it has nothing to gain, but every thing to lose by such testimony, still utters it.

[Footnote [21](#): The law of which the following is an extract, exists in South Carolina. "If any slave shall suffer in life, limb or member, when no white person shall be present, or being present, shall refuse to give evidence, the owner or other person, who shall have the care of such slave, and in whose power such slave shall be, shall be deemed guilty of such offence, *unless* such owner or other person shall make the contrary appear by good and sufficient evidence, or shall BY HIS OWN OATH CLEAR AND EXCULPATE HIMSELF. Which oath every court where such offence shall be tried, is hereby compared to administer, and to *acquit the offender*, if clear proof of the offence be not made by *two* witnesses at least."—2 Brevard's Digest, 242. The state of Louisiana has a similar law.]

But if there were no counter testimony, if all slaveholders were unanimous in the declaration that the treatment of the slaves is *good*, such a declaration would not be entitled to a feather's weight as testimony; it is not *testimony* but *opinion*. Testimony respects matters of *fact*, not matters of opinion: it is the declaration of a witness as to *facts*, not the giving of an opinion as to the nature or qualities of actions, or the *character* of a course of conduct. Slaveholders organize themselves into a tribunal to adjudicate upon their own conduct, and give us in their decisions, their estimate of their own character; informing us with characteristic modesty, that they have a high opinion of themselves; that in their own judgment they are very mild, kind, and merciful gentlemen! In these conceptions of their own merits, and of the eminent propriety of their bearing towards their slaves, slaveholders remind us of the Spaniard, who always took off his hat whenever he spoke of himself, and of the Governor of Schiraz, who, from a sense of justice to his own character added to his other titles, those of, 'Flower of Courtesy,' 'Nutmeg of Consolation,' and 'Rose of Delight.'

The *sincerity* of those worthies, no one calls in question; their real notions of their own merits doubtless ascended into the sublime: but for aught that appears, they had not the arrogance to demand that their own notions of their personal excellence, should be taken as the *proof* of it. Not so with our slaveholders. Not content with offering incense at the shrine of their own virtues, they have the effrontery to demand, that the rest of the world shall offer it, because *they* do; and shall implicitly believe the presiding divinity

to be a good Spirit rather than a Devil, because *they* call him so! In other words, since slaveholders profoundly appreciate their own gentle dispositions toward their slaves, and their kind treatment of them, and everywhere protest that they do truly show forth these rare excellencies, they demand that the rest of the world shall not only believe that they *think* so, but that they think *rightly*; that these notions of themselves are *true*, that their taking off their hats to themselves proves them worthy of homage, and that their assumption of the titles of, 'Flower of Kindness,' and 'Nutmeg of Consolation,' is conclusive evidence that they deserve such appellations!

Was there ever a more ridiculous doctrine, than that a man's opinion of his own actions is the true standard for measuring them, and the certificate of their real qualities!—that his own estimate of his treatment of others; is to be taken as the true one, and such treatment be set down as *good* treatment upon the strength of his judgment. He who argues the good treatment of the slave, from the slaveholder's *good opinion* of such treatment, not only argues against human nature and all history, his own common sense, and even the testimony of his senses, but refutes his own arguments by his daily practice. Every body acts on the presumption that men's feelings will vary with their *practices*; that the light in which they view individuals and classes, and their feelings towards them, will modify their opinions of the treatment which they receive. In any case of treatment that affects himself, his church, or his political party, no man so stultifies himself as to argue that such treatment must be good, because the *author* of it thinks so.

Who would argue that the American Colonies were well treated by the mother country, because parliament thought so? Or that Poland was well treated by Russia, because Nicholas thought so? Or that the treatment of the Cherokees by Georgia is proved good by Georgia notions of it? Or that of the Greeks by the Turks, by Turkish opinions of it? Or that of the Jews by almost all nations, by the judgment of their persecutors? Or that of the victims of the Inquisition, by the opinions of the Inquisitor general, or of the Pope and his cardinals? Or that of the Quakers and Baptists, at the hands of the Puritans,—to be judged of by the opinions of the legislatures that authorized, and the courts that carried it into effect. All those classes of persons did not, in their own opinion, abuse their victims. If charged with perpetrating outrageous cruelty upon them, all those oppressors would have repelled the charge with indignation.

Our slaveholders chime lustily the same song, and no man with human nature within him, and human history before him, and with sense enough to keep him out of the fire, will be gulled by such professions, unless his itch to be humbugged has put on the type of a downright chronic incurable. We repeat it—when men speak of the treatment of others as being either good or bad, their declarations are not generally to be taken as testimony to matters of *fact*, so much as expressions of *their own feelings* towards those persons or classes who are the subjects of such treatment. If those persons are their fellow citizens; if they are in the same class of society with themselves; of the same language, creed, and color; similar in their habits, pursuits, and sympathies; they will keenly feel any wrong done to them, and denounce it as base, outrageous treatment; but let the same wrongs be done to persons of a condition in all respects the reverse, persons whom they habitually despise, and regard only in the light of mere conveniences, to be used for their pleasure, and the idea that such treatment is barbarous will be laughed at as ridiculous. When we hear slaveholders say that their slaves are *well treated*, we have only to remember that they are not speaking of *persons*, but of *property*; not of men and women, but of *chattels* and *things*; not of friends but of *vassals* and *victims*; not of those whom they respect and honor, but of those whom they *scorn* and trample on; not of those with whom they sympathize, and co-operate, and interchange courtesies, but of those whom they regard with contempt and aversion and disdainfully set with the dogs of their flock. Reader, keep this fact in your mind, and you will have a clue to the slaveholder's definition of "*good treatment*." Remember also, that a part of this "*good treatment*" of which the slaveholders boast, is plundering the slaves of all their inalienable rights, of the ownership of their own bodies, of the use of their own limbs and muscles, of all their time, liberty, and earnings, of the free exercise of choice, of the rights of marriage and parental authority, of legal protection, of the right to be, to do, to go, to stay, to think, to feel, to work, to rest, to eat, to sleep, to learn, to teach, to earn money, and to expend it, to visit, and to be visited, to speak, to be silent, to worship according to conscience, in fine, their right to be protected by just and equal laws, and to be *amenable to such only*. Of *all these rights the slaves are plundered*; and this is a *part* of that "*good treatment*" of which their plunderers boast! What then is the *rest* of it? The above is enough for a sample, at least a specimen-brick from the kiln. Reader, we ask you no questions, but merely tell you what *you*

know, when we say that men and women who can habitually do such things to human beings, *can do ANY THING to them*.

The declarations of slaveholders, that they treat their slaves well, will put no man in a quandary, who keeps in mind this simple principle, that the state of mind towards others, which leads one to inflict cruelties on them *blinds the inflicter to the real nature of his own acts*. To him, they do not *seem* to be cruelties; consequently, when speaking of such treatment toward such persons, he will protest that it is not cruelty; though if inflicted upon himself or his friends, he would indignantly stigmatize it as atrocious barbarity. The objector equally overlooks another every-day fact of human nature, which is this, that cruelties invariably cease to *seem* cruelties when the *habit* is formed though previously the mind regarded them as such, and shrunk from them with horror.

The following fact, related by the late lamented THOMAS PRINGLE, whose Life and Poems have published in England, is an appropriate illustration. Mr. Pringle states it on the authority of Captain W.F. Owen, of the Royal Navy.

"When his Majesty's ships, the Leven and the Barracouta, employed in surveying the coast of Africa, were at Mozambique, in 1823, the officers were introduced to the family of Senor Manuel Pedro d'Almeydra, a native of Portugal, who was a considerable merchant settled on that coast; and it was an opinion agreed in by all, that Donna Sophia d'Almeydra was the most superior woman they had seen since they left England. Captain Owen, the leader of the expedition, expressing to Senor d'Almeydra his detestation of slavery, the Senor replied, 'You will not be long here before you change your sentiments. Look at my Sophia there. Before she would marry me, she made me promise that I should give up the slave trade. When we first settled at Mozambique, she was continually interceding for the slaves, and she *constantly wept when I punished them*; and now she is among the slaves front morning to night; she regulates the whole of my slave establishment; she inquires into every offence committed by them, pronounces sentence upon the offender, and *stands by and sees them punished*.'

"To this, Mr. Pringle, who was himself for six years a resident of the English settlement at the Cape of Good Hope, adds, 'The writer of this article has seen, in the course of five or six years, as great a change upon English ladies and gentleman of respectability, as that described to have taken place in Donna Sophia d'Almeydra; and one of the individuals whom he has in his eye, while he writes this passage, lately confessed to him this melancholy change, remarking at the same time, 'how altered I am in my feelings with regard to slavery. I do not appear to myself the same person I was on my arrival in this colony, and if I would give the world for the feelings I then had, I could not recall them.'"

Slaveholders know full well that familiarity with slavery produces indifference to its cruelties and reconciles the mind to them. The late Judge Tucker, a Virginia slaveholder and professor of law in the University of William and Mary, in the appendix to his edition of Blackstone's Commentaries, part 2, pp. 56, 57, commenting on the law of Virginia previous to 1792, which outlawed fugitive slaves, says:

"Such are the cruelties to which slavery gives rise, such the horrors to which the mind becomes *reconciled* by its adoption."

The following facts from the pen of CHARLES STUART, happily illustrate the same principle:

"A young lady, the daughter of a Jamaica planter, was sent at an early age to school to England, and after completing her education, returned to her native country.

"She is now settled with her husband and family in England. I visited her near Bath, early last spring, (1834.) Conversing on the above subject, the paralyzing effects of slaveholding on the heart, she said:

"'While at school in England, I often thought with peculiar tenderness of the kindness of a slave who had nursed and carried me about. Upon returning to my father's, one of my first inquiries was about him. I was deeply afflicted to find that he was on the point of undergoing a "law flogging for having run away." I threw myself at my father's feet and implored with tears, his pardon; but my father steadily replied, that it

would ruin the discipline of the plantation, and that the punishment must take place. I wept in vain, and retired so grieved and disgusted, that for some days after, I could scarcely bear with patience, the sight of my own father. But many months had not elapsed ere *I was as ready as any body* to seize the domestic whip, *and flog my slaves without hesitation.*'

"This lady is one of the most Christian and noble minds of my acquaintance. She and her husband distinguished themselves several years ago, in Jamaica, by immediately emancipating their slaves."

"A lady, now in the West Indies, was sent in her infancy, to her friends, near Belfast, in Ireland, for education. She remained under their charge from five to fifteen years of age, and grew up every thing which her friends could wish. At fifteen, she returned to the West Indies—was married—and after some years paid her friends near Belfast, a second visit. Towards white people, she was the same elegant, and interesting woman as before; apparently full of every virtuous and tender feeling; but towards the colored people she was like a tigress. If Wilberforce's name was mentioned, she would say, 'Oh, I wish we had the wretch in the West Indies, I would be one of the first to help to tear his heart out!'—and then she would tell of the manner in which the West Indian ladies used to treat their slaves. 'I have often,' she said, 'when my women have displeased me, snatched their baby from their bosom, and running with it to a well, have tied my shawl round its shoulders and pretended to be drowning it: oh, it was so funny to hear the mother's screams!'—and then she laughed almost convulsively at the recollection."

Mr. JOHN M. NELSON, a native of Virginia, whose testimony is on a preceding page, furnishes a striking illustration of the principle in his own case. He says:

"When I was quite a child, I recollect it grieved me very much to see one tied up to be whipped, and I used to intercede *with tears in their behalf*, and *mingle my cries with theirs*, and feel almost willing to take part of the punishment. Yet such is the hardening nature of such scenes, that from this kind of commiseration for the suffering slave, I became so blunted that I

could not only witness their stripes with composure, but *myself* inflict them, and that without remorse. When I was perhaps fourteen or fifteen years of age, I undertook to correct a young fellow named Ned, for some supposed offence, I think it was leaving a bridle out of its proper place; he being larger and stronger than myself took hold of my arms and held me, in order to prevent my striking him; this I considered the height of insolence, and cried for help, when my father and mother both came running to my rescue. My father stripped and tied him, and took him into the orchard, where switches were plenty, and directed me to whip him; when one switch wore out he supplied me with others. After I had whipped him a while, he fell on his knees to implore forgiveness, and I kicked him in the face; my father said, 'don't kick him but whip him,' this I did until his back was literally covered with *welts*."

W.C. GILDERSLEEVE, Esq., a native of Georgia, now elder of the Presbyterian church, Wilkes-barre, Penn. after describing the flogging of a slave, in which his hands were tied together, and the slave hoisted by a rope, so that his feet could not touch the ground; in which condition one hundred lashes were inflicted, says:

"I stood by and witnessed the whole without feeling the least compassion; so *hardening* is the influence of slavery that it *very much destroys feeling for the slave*."

Mrs. CHILD, in her admirable "Appeal," has the following remarks:

"The ladies who remove from the free States into the slaveholding ones almost invariably write that the sight of slavery was at first exceedingly painful; but that they soon become habituated to it; and after a while, they are very apt to vindicate the system, upon the ground that it is extremely convenient to have such submissive servants. This reason was actually given by a lady of my acquaintance, who is considered an unusually fervent Christian. Yet Christianity expressly teaches us to love our neighbor as ourselves. This shows how dangerous it is, for even the best of us, to become *accustomed* to what is wrong.

"A judicious and benevolent friend lately told me the story of one of her relatives, who married a slave owner, and removed to his

plantation. The lady in question was considered very amiable, and had a serene, affectionate expression of countenance. After several years residence among her slaves, she visited New England. 'Her history was written in her face,' said my friend; 'its expression had changed into that of a fiend. She brought but few slaves with her; and those few were of course compelled to perform additional labor. One faithful negro woman nursed the twins of her mistress, and did all the washing, ironing, and scouring. If, after a sleepless night with the restless babes, (driven from the bosom of their mother,) she performed her toilsome avocations with diminished activity, her mistress, with her own lady-like hands, applied the cowskin, and the neighborhood resounded with the cries of her victim. The instrument of punishment was actually kept hanging in the entry, to the no small disgust of her New England visitors. 'For my part,' continued my friend, 'I did not try to be polite to her; for I was not hypocrite enough to conceal my indignation.'"

The fact that the greatest cruelties may be exercised quite unconsciously when cruelty has become a habit, and that at the same time, the mind may feel great sympathy and commiseration towards other persons and even towards irrational animals, is illustrated in the case of Tamerlane the Great. In his Life, written by himself, he speaks with the greatest sincerity and tenderness of his grief at having accidentally crushed an ant; and yet he ordered melted lead to be poured down the throats of certain persons who drank wine contrary to his commands. He was manifestly sincere in thinking himself humane, and when speaking of the most atrocious cruelties perpetrated by himself, it does not seem to ruffle in the least the self-complacency with which he regards his own humanity and piety. In one place he says, "I never undertook anything but I commenced it placing my faith on God"—and he adds soon after, "the people of Shiraz took part with Shah Mansur, and put my governor to death; I therefore ordered *a general massacre of all the inhabitants.*"

It is one of the most common caprices of human nature, for the heart to become by habit, not only totally insensible to certain forms of cruelty, which at first gave it inexpressible pain, but even to find its chief amusement in such cruelties, till utterly intoxicated by their stimulation; while at the same time the mind seems to be pained as keenly as ever, at forms of cruelty to which it has not become accustomed, thus retaining

apparently the same general susceptibilities. Illustrations of this are to be found every where; one happens to lie before us. Bourgoing, in his history of modern Spain, speaking of the bull fights, the barbarous national amusement of the Spaniards, says:

"Young ladies, old men, people of all ages and of all characters are present, and yet the habit of attending these bloody festivals does not correct their weakness or their timidity, nor injure the sweetness of their manners. I have moreover known foreigners, distinguished by the gentleness of their manners, who experienced at first seeing a bull-fight such very violent emotions as made them turn pale, and they became ill; but, notwithstanding, this entertainment became afterwards an irresistible attraction, without operating any revolution in their characters." Modern State of Spain, by J.F. Bourgoing, Minister Plenipotentiary from France to the Court of Madrid, Vol ii., page 342.

It is the *novelty* of cruelty, rather than the *degree*, which repels most minds. Cruelty in a *new* form, however slight, will often pain a mind that is totally unmoved by the most horrible cruelties in a form to which it is *accustomed*. When Pompey was at the zenith of his popularity in Rome, he ordered some elephants to be tortured in the amphitheatre for the amusement of the populace; this was the first time they had witnessed the torture of those animals, and though for years accustomed to witness in the same place, the torture of lions, tigers, leopards, and almost all sorts of wild beasts, as well as that of men of all nations, and to shout acclamations over their agonies, yet, this *novel form* of cruelty so shocked the beholders, that the most popular man in Rome was execrated as a cruel monster, and came near falling a victim to the fury of those who just before were ready to adore him.

We will now briefly notice another objection, somewhat akin to the preceding, and based mainly upon the same and similar fallacies.

OBJECTION III.—'SLAVEHOLDERS ARE PROVERBIAL FOR THEIR KINDNESS, HOSPITALITY, BENEVOLENCE, AND GENEROSITY.'

Multitudes scout as fictions the cruelties inflicted upon slaves, because slaveholders are famed for their courtesy and hospitality. They tell us that their generous and kind attentions to their guests, and their well-known

sympathy for the suffering, sufficiently prove the charges of cruelty brought against them to be calumnies, of which their uniform character is a triumphant refutation.

Now that slaveholders are proverbially hospitable to their guests, and spare neither pains nor expense in ministering to their accommodation and pleasure, is freely admitted and easily accounted for. That those who make their inferiors work for them, without pay, should be courteous and hospitable to those of their equals and superiors whose good opinions they desire, is human nature in its every-day dress. The objection consists of a fact and an inference: the fact, that slaveholders have a special care to the accommodation of their *guests*; the inference, that therefore they must seek the comfort of their *slaves*—that as they are bland and obliging to their equals, they must be mild and condescending to their inferiors—that as the wrongs of their own grade excite their indignation, and their woes move their sympathies, they must be touched by those of their chattels—that as they are full of pains-taking toward those whose good opinions and good offices they seek, they will, of course, show special attention to those to whose good opinions they are indifferent, and whose good offices they can *compel*—that as they honor the literary and scientific, they must treat with high consideration those to whom they deny the alphabet—that as they are courteous to certain *persons*, they must be so to "property"—eager to anticipate the wishes of visitors, they cannot but gratify those of their vassals—jealous for the rights of the Texans, quick to feel at the disfranchisement of Canadians and of Irishmen, alive to the oppressions of the Greeks and the Poles, they must feel keenly for their *negroes*! Such conclusions from such premises do not call for serious refutation. Even a half-grown boy, who should argue, that because men have certain feelings toward certain persons in certain circumstances, they must have the same feelings toward all persons in all circumstances, or toward persons in opposite circumstances, of totally different grades, habits, and personal peculiarities, might fairly be set down as a hopeless simpleton: and yet, men of sense and reflection on other subjects, seem bent upon stultifying themselves by just such shallow inferences from the fact, that slaveholders are hospitable and generous to certain persons in certain grades of society belonging to their own caste. On the ground of this reasoning, all the crimes ever committed may be disproved, by showing, that their perpetrators were

hospitable and generous to those who sympathized and co-operated with them. To prove that a man does not hate one of his neighbors, it is only necessary to show that he loves another; to make it appear that he does not treat contemptuously the ignorant, he has only to show that he bows respectfully to the learned; to demonstrate that he does not disdain his inferiors, lord it over his dependents, and grind the faces of the poor, he need only show that he is polite to the rich, pays deference to titles and office, and fawns for favor upon those above him! The fact that a man always smiles on his customers, proves that he never scowls at those who dun him! and since he has always a melodious "good morning!" for "gentlemen of property and standing," it is certain that he never snarls at beggars. He who is quick to make room for a doctor of divinity, will, of course, see to it that he never runs against a porter; and he who clears the way for a lady, will be sure never to rub against a market woman, or jostle an apple-seller's board. If accused of beating down his laundress to the lowest fraction, of making his boot-black call a dozen times for his pay, of higgling and screwing a fish boy till he takes off two cents, or of threatening to discharge his seamstress unless she will work for a shilling a day, how easy to brand it all as slander, by showing that he pays his minister in advance, is generous in Christmas presents, gives a splendid new-year's party, expends hundreds on elections, and puts his name with a round sum on the subscription paper of the missionary society.

Who can forget the hospitality of King Herod, that model of generosity "beyond all ancient fame," who offered half his kingdom to a guest, as a compensation for an hour's amusement.—Could such a noble spirit have murdered John the Baptist? Incredible! Joab too! how his soft heart was pierced at the exile of Absalom! and how his bowels yearned to restore him to his home! Of course, it is all fiction about his assassinating his nephew, Amasa, and Abner the captain of the host! Since David twice spared the life of Saul when he came to murder him, wept on the neck of Jonathan, threw himself upon the ground in anguish when his child sickened, and bewailed, with a broken heart, the loss of Absalom—it proves that he did not coolly plot and deliberately consummate the murder of Uriah! As the Government of the United States generously gave a township of land to General La Fayette, it proves that they have never defrauded the Indians of theirs! So the fact, that the slaveholders of the present Congress are, to a man,

favorable to recognizing the independence of Texas, with her fifty or sixty thousand inhabitants, *before she has achieved it*, and before it is recognized by any other government, proves that these same slaveholders do *not oppose* the recognition of Hayti, with her million of inhabitants, whose independence was achieved nearly half a century ago, and which is recognized by the most powerful governments on earth!

But, seriously, no man is so slightly versed in human nature as not to know that men habitually exercise the most opposite feelings, and indulge in the most opposite practices toward different persons or different classes of persons around them. No man has ever lived who was more celebrated for his scrupulous observance of the most exact justice, and for the illustration furnished in his life of the noblest natural virtues, than the Roman Cato. His strict adherence to the nicest rules of equity—his integrity, honor, and incorruptible faith—his jealous watchfulness over the rights of his fellow citizens, and his generous devotion to their interest, procured for him the sublime appellation of "The Just." Towards *freemen* his life was a model of every thing just and noble: but to his slaves he was a monster. At his meals, when the dishes were not done to his liking, or when his slaves were careless or inattentive in serving, he would seize a thong and violently beat them, in presence of his guests.—When they grew old or diseased, and were no longer serviceable, however long and faithfully they might have served him, he either turned them adrift and left them to perish, or starved them to death in his own family. No facts in his history are better authenticated than these.

No people were ever more hospitable and munificent than the Romans, and none more touched with the sufferings of others. Their public theatres often rung with loud weeping, thousands sobbing convulsively at once over fictitious woes and imaginary sufferers: and yet these same multitudes would shout amidst the groans of a thousand dying gladiators, forced by their conquerors to kill each other in the amphitheatre for the *amusement* of the public.[[22](#)]

[Footnote [22](#): Dr. Leland, in his "Necessity of a Divine Revelation," thus describes the prevalence of these shows among the Romans:—"They were

exhibited at the funerals of great and rich men, and on many other occasions, by the Roman consuls, praetors, aediles, senators, knights, priests, and almost all that bore great offices in the state, as well as by the emperors; and in general, by all that had a mind to make an interest with the people, who were extravagantly fond of those kinds of shows. Not only the men, but the women, ran eagerly after them; who were, by the prevalence of custom, so far divested of that compassion and softness which is natural to the sex, that they took a pleasure in seeing them kill one another, and only desired that they should fall genteelly, and in an agreeable attitude. Such was the frequency of those shows, and so great the number of men that were killed on those occasions, that Lipsius says, no war caused such slaughter of mankind, as did these sports of pleasure, throughout the several provinces of the vast Roman empire."—*Leland's Neces. of Div. Rev.* vol. ii. p. 51.]

Alexander, the tyrant of Phaeres, sobbed like a child over the misfortunes of the Trojan queens, when the tragedy of Andromache and Hecuba was played before him; yet he used to murder his subjects every day for no crime, and without even setting up the pretence of any, but merely *to make himself sport*.

The fact that slaveholders may be full of benevolence and kindness toward their equals and toward whites generally, even so much so as to attract the esteem and admiration of all, while they treat with the most inhuman neglect their own slaves, is well illustrated by a circumstance mentioned by the Rev. Dr. CHANNING, of Boston, (who once lived in Virginia,) in his work on slavery, p. 162, 1st edition:—

"I cannot," says the doctor, "forget my feelings on visiting a hospital belonging to the plantation of a gentleman *highly esteemed for his virtues*, and whose manners and conversation expressed much *benevolence* and *conscientiousness*. When I entered with him the hospital, the first object on which my eye fell was a young woman very ill, probably approaching death. She was stretched on the floor. Her head rested on something like a pillow, but her body and limbs were extended on the hard boards. The owner, I doubt not, had, at least, as much kindness as myself; but he was so used to see the slaves living without common comforts, that the idea of unkindness in the present instance did not enter his mind."

Mr. GEORGE A. AVERY, an elder of a Presbyterian church in Rochester, N.Y. who resided some years in Virginia, says:—

"On one occasion I was crossing the plantation and approaching the house of a friend, when I met him, *rifle in hand*, in pursuit of one of his negroes, declaring he would shoot him in a moment if he got his eye upon him. It appeared that the slave had refused to be flogged, and ran off to avoid the consequences; *and yet the generous hospitality of this man to myself, and white friends generally, scarcely knew any bounds.*

"There were amongst my slaveholding friends and acquaintances, persons who were as *humane* and *conscientious* as men can be, and persist in the impious claim of *property* in a fellow being. Still I can recollect but *one instance* of corporal punishment, whether the subject were male or female, in which the infliction was not on the *bare back* with the *raw hide*, or a similar instrument, the subject being *tied* during the operation to a post or tree. The *exception* was under the following circumstances. I had taken a walk with a friend on his plantation, and approaching his gang of slaves, I sat down whilst he proceeded to the spot where they were at work; and addressing himself somewhat earnestly to a female who was wielding the hoe, in a moment caught up what I supposed a *tobacco stick*, (a stick some three feet in length on which the tobacco, when out, is suspended to dry.) about the size of a *man's wrist*, and laid on a number of blows furiously over her head. The woman crouched, and seemed stunned with the blows, but presently recommenced the motion of her hoe."

Dr. DAVID NELSON, a native of Tennessee, and late president of Marion College, Missouri, in a lecture at Northampton, Mass. in January, 1839, made the following statement:—

"I remember a young lady who played well on the piano, and was very ready to weep over any fictitious tale of suffering. I was present when one of her slaves lay on the floor in a high fever, and we feared she might not recover. I saw that young lady *stamp upon her with her feet*; and the only remark her mother made was, 'I am afraid Evelina is too *much* prejudiced against poor Mary.'"

General WILLIAM EATON, for some years U.S. Consul at Tunis, and commander of the expedition against Tripoli, in 1895, thus gives vent to his feelings at the sight of many hundreds of Sardinians who had been enslaved by the Tunisians:

"Many have died of grief, and the others linger out a life less tolerable than death. Alas! remorse seizes my whole soul when I reflect, that this is indeed but a copy of the very barbarity which *my eyes have seen* in my own native country. *How frequently*, in the southern states of my own country, have I seen *weeping mothers* leading the guiltless infant to the sales with as *deep anguish* as if they led them to the slaughter; and *yet felt my bosom tranquil* in the view of these aggressions on defenceless humanity. But when I see the same enormities practised upon beings whose complexions and blood claim kindred with my own, *I curse the perpetrators, and weep over the wretched victims of their rapacity*. Indeed, truth and justice demand from me the confession, that the Christian slaves among the barbarians of Africa are treated with more humanity than the African slaves among professing Christians of civilized America; and yet *here* [in Tunis] sensibility *bleeds at every pore* for the wretches whom fate has doomed to slavery."

Rev. H. LYMAN, late pastor of the free Presbyterian Church, Buffalo, N.Y. who spent the winter of 1832-3 at the south, says:—

"In the interior of Mississippi I was invited to the house of a planter, where I was received with great cordiality, and entertained with marked hospitality.

"There I saw a master in the midst of his household slaves. The evening passed most pleasantly, as indeed it must, where assiduous hospitalities are exercised towards the guest.

"Late in the morning, when I had gained the tardy consent of my host to go on my way, as a final act of kindness, he called a slave to show me across the fields by a nearer route to the main road. 'David,' said he, 'go and show this gentleman as far as the post-office. Do you know the big bay tree?' 'Yes, sir.' 'Do you know where the cotton mill is?' 'Yes, sir.' 'Where Squire Malcolm's old field is?' 'Y—e—s, sir,' said David, (beginning to be bewildered). 'Do you know where Squire Malcolm's cotton field is?' 'No, sir.' 'No, sir,' said the enraged master,

levelling his gun at him. 'What do you stand here, saying, Yes, yes, yes, for, when you don't know?' All this was accompanied with *threats* and *imprecations*, and a manner that contrasted strangely with the *religious conversation and gentle manners* of the previous evening."

The Rev. JAMES H. DICKEY, formerly a slaveholder in South Carolina, now pastor of the Presbyterian Church in Hennepin, Ill. in his "Review of Nevins' Biblical Antiquities," after asserting that slaveholding tends to beget "a spirit of cruelty and tyranny, and to destroy every generous and noble feeling," (page 33,) he adds the following as a note:—

"It may be that this will be considered censorious, and the proverbial generosity and hospitality of the south will be appealed to as a full confutation of it. The writer thinks he can appreciate southern kindness and hospitality. Having been born in Virginia, raised and educated in South Carolina and Kentucky, he is altogether southern in his feelings, and habits, and modes of familiar conversation. He can say of the south as Cowper said of England, 'With all thy faults I love thee still, my country.' And nothing but the abominations of slavery could have induced him willingly to forsake a land endeared to him by all the associations of childhood and youth.

"Yet it is candid to admit that it is not all gold that glitters. There is a fictitious kindness and hospitality. The famous Robin Hood was kind and generous—no man more hospitable—he robbed the rich to supply the necessities of the poor. Others rob the poor to bestow gifts and lavish kindness and hospitality on their rich friends and neighbors. It is an easy matter for a man to appear kind and generous, when he bestows that which others have earned.

"I said, there is a fictitious kindness and hospitality. I once knew a man who left his wife and children three days, without fire-wood, without bread-stuff and without shoes, while the ground was covered with snow—that he might indulge in his cups. And when I attempted to expostulate with him, he took the subject out of my hands, and expatiating on the evils of intemperance more eloquently than I could, concluded by warning me, *with tears*, to avoid the snares of the latter. He had tender feelings, yet a hard heart. I once knew a young lady of

polished manners and accomplished education, who would weep with sympathy over the fictitious woes exhibited in a novel. And waking from her reverie of grief, while her eye was yet wet with tears, would call her little waiter, and if she did not appear at the first call, would rap her head with her thimble till my head ached.

"I knew a man who was famed for kindly sympathies. He once took off his shirt and gave it to a poor white man. The same man hired a black man, and gave him for his *daily task*, through the winter, to feed the beasts, keep fires, and make one hundred rails: and in case of failure the lash was applied so freely, that, in the spring, his back was *one continued sore, from his shoulders to his waist*. Yet this man was a professor of religion, and famous for his tender sympathies to white men!"

OBJECTION IV.—'NORTHERN VISITORS AT THE SOUTH TESTIFY THAT THE SLAVES ARE NOT CRUELLY TREATED.'

ANSWER:—Their knowledge on this point must have been derived, either from the slaveholders and overseers themselves, or from the slaves, or from their own observation. If from the slaveholders, *their* testimony has already been weighed and found wanting; if they derived it from the slaves, they can hardly be so simple as to suppose that the *guest, associate and friend of the master*, would be likely to draw from his *slaves* any other testimony respecting his treatment of them, than such as would please *him*. The great shrewdness and tact exhibited by slaves in *keeping themselves out of difficulty*, when close questioned by strangers as to their treatment, cannot fail to strike every accurate observer. The following remarks of CHIEF JUSTICE HENDERSON, a North Carolina slaveholder, in his decision (in 1830,) in the case of the State *versus* Charity, 2 Devereaux's North Carolina Reports, 513, illustrate the folly of arguing the good treatment of slaves from their own declarations, *while in the power of their masters*. In the case above cited, the Chief Justice, in refusing to permit a master to give in evidence, declarations made to him by his slave, says of masters and slaves generally—

"The master has an almost *absolute control* over the body and *mind* of his slave. The master's *will* is the slave's *will*. All his acts, *all his sayings*, are

made with a view to propitiate his master. His confessions are made, not from a love of truth, not from a sense of duty, not to speak a falsehood, but to *please his master*—and it is in vain that his master tells him to speak the truth and conceals from him how he wishes the question answered. The slave *will* ascertain, or, which is the same thing, think that he has ascertained *the wishes of his master*, and MOULD HIS ANSWER ACCORDINGLY. We therefore more often get the wishes of the master, or the slave's belief of his wishes, than the truth."

The following extract of a letter from the Hon. SETH M. GATES, member elect of the next Congress, furnishes a clue by which to interpret the looks, actions, and protestations of slaves, when in the presence of their masters' guests, and the pains sometimes taken by slaveholders, in teaching their slaves the art of *pretending* that they are treated well, love their masters, are happy, &c. The letter is dated Leroy, Jan. 4, 1839.

"I have sent your letter to Rev. Joseph M. Sadd, Castile, Genesee county, who resided five years in a slave state, and left, disgusted with slavery. I trust he will give you some facts. I remember one fact, which his wife witnessed. A relative, where she boarded, returning to his plantation after a temporary absence, was not met by his servants with such demonstrations of joy as was their wont. He ordered his horse put out, took down his whip, ordered his servants to the barn, and gave them a most cruel beating, because they did not run out to meet him, and pretend great attachment to him. Mrs. Sadd had overheard the servants agreeing not to go out, before his return, as they said *they did not love him*—and this led her to watch his conduct to them. This man was a professor of religion!"

If these northern visitors derived their information that the slaves are *not* cruelly treated from *their own observation*, it amounts to this, *they did not see* cruelties inflicted on the slaves. To which we reply, that the preceding pages contain testimony from hundreds of witnesses, who testify that they *did see* the cruelties whereof they affirm. Besides this, they contain the solemn declarations of scores of slaveholders themselves, in all parts of the slave states, that the slaves are cruelly treated. These declarations are moreover fully corroborated, by the laws of slave states, by a multitude of advertisements in their newspapers, describing runaway slaves, by their scars, brands, gashes, maimings, cropped ears, iron collars, chains, &c. &c.

Truly, after the foregoing array of facts and testimony, and after the objectors' forces have one after another filed off before them, now to march up a phalanx of northern *visitors*, is to beat a retreat. 'Visitors!' What insight do casual visitors get into the tempers and daily practices of those whom they visit, or of the treatment that their slaves receive at their hands, especially if these visitors are strangers, and from a region where there are no slaves, and which claims to be opposed to slavery? What opportunity has a stranger, and a temporary guest, to learn the every-day habits and caprices of his host? Oh, these northern visitors tell us they have visited scores of families at the south and never saw a master or mistress whip their slaves. Indeed! They have, doubtless, visited hundreds of families at the north—did they ever see, on such occasions, the father or mother whip their children? If so, they must associate with very ill-bred persons. Because well-bred parents do not whip their children in the presence, or within the hearing of their guests are we to infer that they never do it *out* of their sight and hearing? But perhaps the fact that these visitors do not *remember* seeing slaveholders strike their slaves, merely proves, that they had so little feeling for them, that though they might be struck every day in their presence, yet as they were only slaves and 'niggers,' it produced no effect upon them; consequently they have no impressions to recall. These visitors have also doubtless *rode* with scores of slaveholders. Are they quite certain they ever saw them whip their *horses*? and can they recall the persons, times, places, and circumstances? But even if these visitors regarded the slaves with some kind feelings, when they first went to the south, yet being constantly with their oppressors, seeing them used as articles of property, accustomed to hear them charged with all kinds of misdemeanors, their ears filled with complaints of their laziness, carelessness, insolence, obstinacy, stupidity, thefts, elopements, &c. and at the same time, receiving themselves the most gratifying attentions and caresses from the same persons, who, while they make to them these representations of their slaves, are giving them airings in their coaches, making parties for them, taking them on excursions of pleasure, lavishing upon them their choicest hospitalities, and urging them to protract indefinitely their stay—what more natural than for the flattered guest to admire such hospitable people, catch their spirit, and fully sympathize with their feelings toward their slaves, regarding with increased disgust and aversion those who can habitually tease and worry such loveliness and generosity[[23](#)]. After the visitor had been in contact with the

slave-holding spirit long enough to have imbibed it, (no very tedious process,) a cuff, or even a kick administered to a slave, would not be likely to give him such a shock that his memory would long retain the traces of it. But lest we do these visitors injustice, we will suppose that they carried with them to the south humane feelings for the slave, and that those feelings remained unblunted; still, what opportunity could they have to witness the actual condition of the slaves? They come in contact with the house-servants only, and as a general thing, with none but the select ones of these, the *parlor*-servants; who generally differ as widely in their appearance and treatment from the cooks and scullions in the kitchen, as parlor furniture does from the kitchen utensils. Certain servants are assigned to the parlor, just as certain articles of furniture are selected for it, *to be seen*—and it is no less ridiculous to infer that the kitchen scullions are clothed and treated like those servants who wait at the table, and are in the presence of guests, than to infer that the kitchen is set out with sofas, ottomans, piano-fortes, and full-length mirrors, because the parlor is. But the house-slaves are only a fraction of the whole number. The *field-hands* constitute the great mass of the slaves, and these the visitors rarely get a glimpse at. They are away at their work by day-break, and do not return to their huts till dark. Their huts are commonly at some distance from the master's mansion, and the fields in which they labor, generally much farther, and out of sight. If the visitor traverses the plantation, care is taken that he does not go alone; if he expresses a wish to see it, the horses are saddled, and the master or his son gallops the rounds with him; if he expresses a desire to see the slaves at work, his conductor will know *where* to take him, and *when*, and *which* of them to show; the overseer, too, knows quite too well the part he has to act on such occasions, to shock the uninitiated ears of the visitors with the shrieks of his victims. It is manifest that visitors can see only the least repulsive parts of slavery, inasmuch as it is wholly at the option of the master, what parts to show them; as a matter of necessity, he can see only the *outside*—and that, like the outside of doorknobs and andirons is furbished up to be *looked at*. So long as it is human nature to wear *the best side out*, so long the northern guests of southern slaveholders will see next to nothing of the reality of slavery. Those visitors may still keep up their autumnal migrations to the slave states, and, after a hasty survey of the tinsel hung before the curtain of slavery, without a single glance behind it, and at the paint and varnish that *cover up* dead men's bones, and while those

who have hoaxed them with their smooth stories and white-washed specimens of slavery, are tittering at their gullibility, they return in the spring on the same fool's-errand with their predecessors, retailing their lesson, and mouthing the praises of the masters, and the comforts of the slaves. They now become village umpires in all disputes about the condition of the slaves, and each thence forward ends all controversies with his oracular, "I've *seen*, and sure I ought to know."

[Footnote [23](#)": Well saith the Scripture, "A gift blindeth the eyes." The slaves understand this, though the guest may not; they know very well that they have no sympathy to expect from their master's guests; that the good cheer of the "big house," and the attentions shown them, will generally commit them in their master's favor, and against themselves. Messrs. Thome and Kimball, in their late work, state the following fact, in illustration of this feeling among the negro apprentices in Jamaica.

"The governor of one of the islands, shortly after his arrival, dined with one of the wealthiest proprietors. The next day one of the negroes of the estate said to another, "De new gubner been *poison'd*." "What dat you say?" inquired the other in astonishment, "De gubner been *poison'd*! Dah, now!—How him poisoned?" "*Him eat massa's turtle soup last night*," said the shrewd negro. The other took his meaning at once; and his sympathy for the governor was turned into concern for himself, when he perceived that the poison was one from which he was likely to suffer more than his excellency."—*Emancipation in the West Indies*, p. 334.]

But all northern visitors at the south are not thus easily gulled. Many of them, as the preceding pages show, have too much sense to be caught with chaff.

We may add here, that those classes of visitors whose representations of the treatment of slaves are most influential in moulding the opinions of the free states, are ministers of the gospel, agents of benevolent societies, and teachers who have traveled and temporarily resided in the slave states—classes of persons less likely than any others to witness cruelties, because slaveholders generally take more pains to keep such visitors in ignorance than others, because their vocations would furnish them fewer opportunities

for witnessing them, and because they come in contact with a class of society in which fewer atrocities are committed than in any other, and that too, under circumstances which make it almost impossible for them to witness those which are actually committed.

Of the numerous classes of persons from the north who temporarily reside in the slave states, the mechanics who find employment on the *plantations*, are the only persons who are in circumstances to look "behind the scenes." Merchants, pedlars, venders of patents, drovers, speculators, and almost all descriptions of persons who go from the free states to the south to make money see little of slavery, except *upon the road*, at public inns, and in villages and cities.

Let not the reader infer from what has been said, that the *parlor*-slaves, chamber-maids, &c. in the slave states are not treated with cruelty—far from it. They often experience terrible inflictions; not generally so terrible or so frequent as the field-hands, and very rarely in the presence of guests[[24](#)] House-slaves are for the most part treated far better than plantation-slaves, and those under the immediate direction of the master and mistress, than those under overseers and drivers. It is quite worthy of remark, that of the thousands of northern men who have visited the south, and are always lauding the kindness of slaveholders and the comfort of the slaves, protesting that they have never seen cruelties inflicted on them, &c. each perhaps, without exception, has some story to tell which reveals, better perhaps than the most barbarous butchery could do, a public sentiment toward slaves, showing that the most cruel inflictions must of necessity be the constant portion of the slaves.

[Footnote [24](#): Rev. JOSEPH M. SADD, a Presbyterian clergyman, in Castile, Genesee county, N.Y. recently from Missouri, where he has preached five years, in the midst of slaveholders, says, in a letter just received, speaking of the pains taken by slaveholders to conceal from the eyes of strangers and visitors, the cruelties which they inflict upon their slaves—

"It is difficult to be an eye-witness of these things; the master and mistress, almost invariably punish their slaves only in the presence of themselves and

other slaves."]

Though facts of this kind lie thick in every corner, the reader will, we are sure, tolerate even a needless illustration, if told that it is from the pen of N.P. Rogers, Esq. of Concord, N.H. who, whatever he writes, though it be, as in this case, a mere hasty letter, always finds readers to the end.

"At a court session at Guilford, Stafford county, N.H. in August, 1837, the Hon. Daniel M. Durell, of Dover, formerly Chief Justice of the Common Pleas for that state, and a member of Congress, was charging the abolitionists, in presence of several gentlemen of the bar, at their boarding house, with exaggerations and misrepresentations of slave treatment at the south. 'One instance in particular,' he witnessed, he said, where he 'knew they misrepresented. It was in the Congregational meeting house at Dover. He was passing by, and saw a crowd entering and about the door; and on inquiry, found that *abolition was going on in there*. He stood in the entry for a moment, and found the Englishman, Thompson, was holding forth. The fellow was speaking of the treatment of slaves; and he said it was no uncommon thing for masters, when exasperated with the slave, to hang him up by the two thumbs, and flog him. I knew the fellow lied there,' said the judge, 'for I had traveled through the south, from Georgia north, and I never saw a single instance of the kind. The fellow said it was a common thing.' 'Did you see any *exasperated masters*, Judge,' said I, 'in your journey?' 'No sir,' said he, 'not an individual instance.' 'You hardly are able to convict Mr. Thompson of falsehood, then, Judge,' said I, 'if I understood you right. He spoke, as I understood you, of *exasperated masters*—and you say you did not see any. Mr. Thompson did not say it was common for masters in good humor to hang up their slaves.' The Judge did not perceive the materiality of the distinction. 'Oh, they misrepresent and lie about this treatment of the niggers,' he continued. 'In going through all the states I visited, I do not now remember a single instance of cruel treatment. Indeed, I remember of seeing but one nigger struck, during my whole journey. There was one instance. We were riding in the stage, pretty early one morning, and we met a black fellow, driving a span of horses, and a load (I think he said) of hay. The fellow turned out before we got to him, clean down into the ditch, as far as he could get. He knew, you see, what to depend on, if he did not give the road. Our driver, as we passed the fellow, fetched him a smart crack with his whip across the chops. He did not make any noise, though I guess it hurt

him some—he grinned.—Oh, no! these fellows exaggerate. The niggers, as a general thing, are kindly treated. There may be exceptions, but I saw nothing of it.' (By the way, the Judge did not know there were any abolitionists present.) 'What did you *do* to the driver, Judge,' said I, 'for striking that man?' 'Do,' said he, 'I did nothing to him, to be sure.' 'What did you *say* to him, sir?' said I. 'Nothing,' he replied: 'I said nothing to him.' 'What did the other passengers do?' said I. 'Nothing, sir,' said the Judge. 'The fellow turned out the white of his eye, but he did not make any noise.' 'Did the driver say any thing, Judge, when he struck the man?' 'Nothing,' said the Judge, 'only he *damned him*, and told him he'd learn him to keep out of the reach of his whip.' 'Sir,' said I, 'if George Thompson had told this story, in the warmth of an anti-slavery speech, I should scarcely have credited it. I have attended many anti-slavery meetings, and I never heard an instance of such *cold-blooded, wanton, insolent, DIABOLICAL* cruelty as this; and, sir, if I live to attend another meeting, I shall relate this, and give Judge Durell's name as the witness of it.' An infliction of the most insolent character, entirely unprovoked, on a perfect stranger, who had showed the utmost civility, in giving all the road, and only could not get beyond the long reach of the driver's whip—and he a stage driver, a class *generous* next to the sailor, in the sober hour of morning—and *borne in silence*—and *told to show that the colored man of the south was kindly treated*—all evincing, to an unutterable extent, that the temper of the south toward the slave is merciless, even to *diabolism*—and that the north regards him with, if possible, a more fiendish indifference still!"

It seems but an act of simple justice to say, in conclusion, that many of the slaveholders from whom our northern visitors derive their information of the "good treatment" of the slave, may not design to deceive them. Such visitors are often, perhaps generally brought in contact with the better class of slaveholders, whose slaves are really better fed, clothed, lodged, and housed; more moderately worked; more seldom whipped, and with less severity, than the slaves generally. Those masters in speaking of the good condition of their slaves, and asserting that they are treated *well*, use terms that are not *absolute* but *comparative*: and it may be, and doubtless often is true that their slaves are treated well *as slaves*, in comparison with the treatment received by slaves generally. So the overseers of such slaves, and the slaves themselves, may, without lying or designing to mislead, honestly

give the same testimony. As the great body of slaves within their knowledge *fare worse*, it is not strange that, when speaking of the treatment on their own plantation, they should call it *good*.

OBJECTION V.—'IT IS FOR THE INTEREST OF THE MASTERS TO TREAT THEIR SLAVES WELL.'

So it is for the interest of the drunkard to quit his cups; for the glutton to curb his appetite; for the debauchee to bridle his lust; for the sluggard to be up betimes; for the spendthrift to be economical, and for all sinners to stop sinning. Even if it were for the interest of masters to treat their slaves well, he must be a novice who thinks *that* a proof that the slaves *are* well treated. The whole history of man is a record of real interests sacrificed to present gratification. If all men's actions were consistent with their best interests, folly and sin would be words without meaning.

If the objector means that it is for the pecuniary interests of masters to treat their slaves well, and thence infers their good treatment, we reply, that though the love of money is strong, yet appetite and lust, pride, anger and revenge, the love of power and honor, are each an overmatch for it; and when either of them is roused by a sudden stimulant, the love of money worsted in the grapple with it. Look at the hourly lavish outlays of money to procure a momentary gratification for those passions and appetites. As the desire for money is, in the main, merely a desire for the means of gratifying *other* desires, or rather for one of the means, it must be the *servant* not the sovereign of those desires, to whose gratification its only use is to minister. But even if the love of money were the strongest human passion, who is simple enough to believe that it is all the time so powerfully excited, that no other passion or appetite can get the mastery over it? Who does not know that gusts of rage, revenge, jealousy and lust drive it before them as a tempest tosses a feather?

The objector has forgotten his first lessons; they taught him that it is human nature to gratify the *uppermost* passion: and is *prudence* the uppermost passion with slaveholders, and self-restraint their great characteristic? The strongest feeling of any moment is the sovereign of that moment, and rules. Is a propensity to practice *economy* the predominant feeling with slaveholders? Ridiculous! Every northerner knows that slaveholders are

proverbial for lavish expenditures, never higgling about the *price* of a gratification. Human passions have not, like the tides, regular ebbs and flows, with their stationary, high and low water marks. They are a dominion convulsed with revolutions; coronations and dethronements in ceaseless succession—each ruler a usurper and a despot. Love of money gets a snatch at the sceptre as well as the rest, not by hereditary right, but because, in the fluctuations of human feelings, a chance wave washes him up to the throne, and the next perhaps washes him off without time to nominate his successor. Since, then, as a matter of fact, a host of appetites and passions do hourly get the better of love of money, what protection does the slave find in his master's *interest*, against the sweep of his passions and appetites? Besides, a master can inflict upon his slave horrible cruelties without perceptibly injuring his health, or taking time from his labor, or lessening his value as property. Blows with a small stick give more acute pain, than with a large one. A club bruises, and benumbs the nerves, while a switch, neither breaking nor bruising the flesh, instead of blunting the sense of feeling, wakes up and stings to torture all the susceptibilities of pain. By this kind of infliction, more actual cruelty can be perpetrated in the giving of pain at the instant, than by the most horrible bruising and lacerations; and that, too, with little comparative hazard to the slave's health, or to his value as property, and without loss of time from labor. Even giving to the objection all the force claimed for it, what protection is it to the slave? It *professes* to shield the slave from such treatment alone, as would either lay him aside from labor, or injure his health, and thus lessen his value as a working animal, making him a *damaged article* in the market. Now, is nothing *bad treatment* of a human being except that which produces these effects? Does the fact that a man's constitution is not actually shattered, and his life shortened by his treatment, prove that he is treated well? Is no treatment cruel except what sprains muscles, or cuts sinews, or bursts blood vessels, or breaks bones, and thus lessens a man's value as a working animal?

A slave may get blows and kicks every hour in the day, without having his constitution broken, or without suffering sensibly in his health, or flesh, or appetite, or power to labor. Therefore, beaten and kicked as he is, he must be treated *well*, according to the objector, since the master's *interest* does not suffer thereby.

Finally, the objector virtually maintains that all possible privations and inflictions suffered by slaves, that do not actually cripple their power to labor, and make them 'damaged merchandize,' are to be set down as 'good treatment,' and that nothing is *bad* treatment except what produces these effects.

Thus we see that even if the slave were effectually shielded from all those inflictions, which, by lessening his value as property, would injure the interests of his master, he would still have no protection against numberless and terrible cruelties. But we go further, and maintain that in respect to large classes of slaves, it is for the *interest* of their masters to treat them with barbarous inhumanity.

1. *Old slaves*. It would be for the interest of the masters to shorten their days.

2. *Worn out slaves*. Multitudes of slaves by being overworked, have their constitutions broken in middle life. It would be *economical* for masters to starve or flog such to death.

3. *The incurably diseased and maimed*. In all such cases it would be *cheaper* for masters to buy poison than medicine.

4. *The blind, lunatics, and idiots*. As all such would be a tax on him, it would be for his interest to shorten their days.

5. *The deaf and dumb, and persons greatly deformed*. Such might or might not be serviceable to him; many of them at least would be a burden, and few men carry burdens when they can throw them off.

6. *Feeble infants*. As such would require much nursing, the time, trouble and expense necessary to raise them, would generally be more than they would be worth as *working animals*. How many such infants would be likely to be 'raised,' from *disinterested* benevolence? To this it may be added that in the far south and south west, it is notoriously for the interest of the master not to 'raise' slaves at all. To buy slaves when nearly grown, from the northern slave states, would be *cheaper* than to raise them. This is shown in the fact, that mothers with infants sell for less in those states than those without them. And when slave-traders purchase such in the upper country, it is notorious that they not unfrequently either sell their infants, or give them

away. Therefore it would be for the *interest* of the masters, throughout that region, to have all the new-born children left to perish. It would also be for their interest to make such arrangements as effectually to separate the sexes, or if that were not done, so to overwork the females as to prevent childbearing.

7. *Incorrigible slaves*. On most of the large plantations, there are, more or less, incorrigible slaves,—that is, slaves who *will not* be profitable to their masters—and from whom torture can extort little but defiance.^[25] These are frequently slaves of uncommon minds, who feel so keenly the wrongs of slavery that their proud spirits spurn their chains and defy their tormentors.

[Footnote ²⁵: Advertisements like the following are not unfrequent in the southern papers.

From the Elizabeth (N.C.) Phenix, Jan. 5, 1839. "The subscriber offers for sale his blacksmith NAT, 28 years of age, and remarkably large and likely. The only cause of my selling him is I CANNOT CONTROL HIM. Hertford, Dec.5, 1838. J. GORDON."]

They have commonly great sway over the other slaves, their example is contagious, and their influence subversive of 'plantation discipline.' Consequently they must be made a warning to others. It is for the *interest* of the masters (at least they believe it to be) to put upon such slaves iron collars and chains, to brand and crop them; to disfigure, lacerate, starve and torture them—in a word, to inflict upon them such vengeance as shall strike terror into the other slaves. To this class may be added the incorrigibly thievish and indolent; it would be for the interest of the masters to treat them with such severity as would deter others from following their example.

7. *Runaways*. When a slave has once runaway from his master and is caught, he is thenceforward treated with severity. It is for the interest of the master to make an example of him, by the greatest privations and inflictions.

8. *Hired slaves.* It is for the interest of those who hire slaves to get as much out of them as they can; the temptation to overwork them is powerful. If it be said that the master could, in that case, recover damages, the answer is, that damages would not be recoverable in law unless actual injury—enough to impair the power of the slave to labor, be *proved*. And this ordinarily would be impossible, unless the slave has been worked so greatly beyond his strength as to produce some fatal derangement of the vital functions. Indeed, as all who are familiar with such cases in southern courts well know, the proof of actual injury to the slave, so as to lessen his value, is exceedingly difficult to make out, and every hirer of slaves can overwork them, give them insufficient food, clothing, and shelter, and inflict upon them nameless cruelties with entire impunity. We repeat then that it is for the *interest* of the hirer to push his slaves to their utmost strength, provided he does not drive them to such an extreme, that their constitutions actually give way under it, while in his hands. The supreme court of Maryland has decided that, 'There must be *at least a diminution of the faculty of the slave for bodily labor* to warrant an action by the master.'—1 *Harris and Johnson's Reports*, 4.

9. *Slaves under overseers whose wages are proportioned to the crop which they raise.* This is an arrangement common in the slave states, and in its practical operation is equivalent to a bounty on *hard driving*—a virtual premium offered to overseers to keep the slaves whipped up to the top of their strength. Even where the overseer has a fixed salary, irrespective of the value of the crop which he takes off, he is strongly tempted to overwork the slaves, as those overseers get the highest wages who can draw the largest income from a plantation with a given number of slaves; so that we may include in this last class of slaves, the majority of all those who are under overseers, whatever the terms on which those overseers are employed.

Another class of slaves may be mentioned; we refer to the slaves of masters who *bet* upon their crops. In the cotton and sugar region there is a fearful amount of this desperate gambling, in which, though money is the ostensible stake and forfeit, human life is the real one. The length to which this rivalry is carried at the south and south west, the multitude of planters who engage in it, and the recklessness of human life exhibited in driving the murderous game to its issue, cannot well be imagined by one who has not lived in the midst of it. Desire of gain is only one of the motives that

stimulates them;—the *eclat* of having made the largest crop with a given number of hands, is also a powerful stimulant; the southern newspapers, at the crop season, chronicle carefully the "cotton brag," and the "crack cotton picking," and "unparalleled driving," &c. Even the editors of professedly religious papers, cheer on the *méleé* and sing the triumphs of the victor. Among these we recollect the celebrated Rev. J.N. Maffit, recently editor of a religious paper at Natchez, Miss. in which he took care to assign a prominent place, and capitals to "THE COTTON BRAG." The testimony of Mr. Bliss, [page 38](#), details some of the particulars of this *betting* upon crops. All the preceding classes of slaves are in circumstances which make it "for the *interest* of their masters," or those who have the management of them, to treat them cruelly.

Besides the operation of the causes already specified, which make it for the interest of masters and overseers to treat cruelly *certain classes* of their slaves, a variety of others exist, which make it for their interest to treat cruelly *the great body* of their slaves. These causes are, the nature of certain kinds of products, the kind of labor required in cultivating and preparing them for market, the best times for such labor, the state of the market, fluctuations in prices, facilities for transportation, the weather, seasons, &c. &c. Some of the causes which operate to produce this are—

1. *The early market.* If the planter can get his crop into market early, he may save thousands which might be lost if it arrived later.
2. *Changes in the market.* A sudden rise in the market with the probability that it will be short, or a gradual fall with a probability that it will be long, is a strong temptation to the master to push his slaves to the utmost, that he may in the one case make all he can, by taking the tide at the flood, and in the other lose as little as may be, by taking it as early as possible in the ebb.
3. *High prices.* Whenever the slave-grown staples bring a high price, as is now the case with cotton, every slaveholder is tempted to overwork his slaves. By forcing them to do double work for a few weeks or months, while the price is up, he can *afford* to lose a number of them and to lessen the value of all by over-driving. A cotton planter with a hundred vigorous slaves, would have made a profitable speculation, if, during the years '34, 5, and 6, when the average price of cotton was 17 cents a pound, he had so

overworked his slaves that half of them died upon his hands in '37, when cotton had fallen to six and eight cents. No wonder that the poor slaves pray that cotton and sugar may be cheap. The writer has frequently heard it declared by planters in the lower country, that, it is more profitable to drive the slaves to such over exertion as to *use them up*, in seven or eight years, than to give them only ordinary tasks and protract their lives to the ordinary period.[[26](#)]

[Footnote [26](#): The reader is referred to a variety of facts and testimony on this point on the [39th page](#) of this work.]

4. *Untimely seasons*. When the winter encroaches on the spring, and makes late seed time, the first favorable weather is a temptation to overwork the slaves, too strong to be resisted by those who hold men as mere working animals. So when frosts set in early, and a great amount of work is to be done in a little time, or great loss suffered. So also after a long storm either in seed or crop time, when the weather becomes favorable, the same temptation presses, and in all these cases the master would *save money* by overdriving his slaves.

5. *Periodical pressure of certain kinds of labor*. The manufacture of sugar is an illustration. In a work entitled "Travels in Louisiana in 1802," translated from the French, by John Davis, is the following testimony under this head:

"At the rolling of sugars, an interval of from two to three months, they (the slaves in Louisiana,) work *both night and day*. Abridged of their sleep, they scarcely retire to rest during the whole period" See page 81.

In an article on the agriculture of Louisiana, published in the second number of the "Western Review," is the following:—"The work is admitted to be severe for the hands, (slaves) requiring, when the process of making sugar is commenced, TO BE PRESSED NIGHT AND DAY."

It would be for the interest of the sugar planter greatly to overwork his slaves, during the annual process of sugar-making.

The severity of this periodical pressure, in preparing for market other staples of the slave states besides sugar, may be inferred from the following. Mr. Hammond, of South Carolina, in his speech in Congress, Feb. 1. 1836, (See National Intelligencer) said, "In the heat of the crop, the loss of one or two days, would inevitably ruin it."

6. *Times of scarcity.* Drought, long rain, frost, &c. are liable to cut off the corn crop, upon which the slaves are fed. If this happens when the staple which they raise is at a low price, it is for the interest of the master to put the slave on short rations, thus forcing him to suffer from hunger.

7. *The raising of crops for exportation.* In all those states where cotton and sugar are raised for exportation, it is, for the most part, more profitable to buy provisions for the slaves than to raise them. Where this is the case the slaveholders believe it to be for their interest to give their slaves less food, than their hunger craves, and they do generally give them insufficient sustenance.[\[27\]](#)

[Footnote [27](#): Hear the testimony of a slaveholder, on this subject, a member of Congress from Virginia, from 1817 to 1830, Hon. Alexander Smyth.

In the debate on the Missouri question in the U.S. Congress, 1819-20, the admission of Missouri to the Union, as a slave state, was urged, among other grounds, as a measure of humanity to the slaves of the south. Mr. Smyth, of Virginia said, "The plan of our opponents seems to be to confine the slave population to the southern states, to the countries where *sugar, cotton, and tobacco* are cultivated. But, sir, by confining the slaves to a part of the country where crops are raised for exportation, and the bread and meat are *purchased, you doom them to scarcity and hunger.* Is it not obvious that the way to render their situation more comfortable, is to allow them to be taken where there is not the same motive to force the slave to INCESSANT TOIL, that there is in the country where cotton, sugar, and tobacco, are raised for exportation. It is proposed to hem in the blacks *where they are* HARD WORKED and ILL FED, that they may be rendered unproductive and the race be prevented from increasing.... The proposed measure would be EXTREME CRUELTY to the blacks.... You would ...

doom them to SCARCITY and HARD LABOR."—[Speech of Mr. Smyth, Jan. 28, 1820]—See National Intelligencer.

Those states where the crops are raised for exportation, and a large part of the provisions purchased, are, Louisiana, Mississippi, Alabama, Arkansas, Western Tennessee, Georgia, Florida, and, to a considerable extent, South Carolina. That this is the case in Louisiana, is shown by the following. "Corn, flour, and bread stuffs, generally are obtained from Kentucky, Ohio;" &c. See "Emigrants Guide through the Valley of the Mississippi," Page 275. That it is the case with Alabama, appears from the testimony of W. Jefferson Jones, Esq. a lawyer of high standing in Mobile. In a series of articles published by him in the Mobile Morning Chronicle, he says; (See that paper for Aug. 26, 1837.)

"The people of Alabama *export* what they raise, and *import* nearly all they consume." But it seems quite unnecessary to prove, what all persons of much intelligence well know, that the states mentioned export the larger part of what they raise, and import the larger part of what they consume. Now more than *one million of slaves* are held in those states, and parts of states, where provisions are mainly imported, and consequently they are "*doomed to scarcity and hunger.*"]

Now let us make some estimate of the proportion which the slaves, included in the foregoing *nine classes*, sustain to the whole number, and then of the proportion affected by the operation of the *seven* causes just enumerated.

It would be nearly impossible to form an estimate of the proportion of the slaves included in a number of these classes, such as the old, the worn out, the incurably diseased, maimed and deformed, idiots, feeble infants, incorrigible slaves, &c. More or less of this description are to be found on all the considerable plantations, and often, many on the same plantation; though we have no accurate data for an estimate, the proportion cannot be less than one in twenty-five of the whole number of slaves, which would give a total of more than *one hundred thousand*. Of some of the remaining classes we have data for a pretty accurate estimate.

1st. *Lunatics*.—Various estimates have been made, founded upon the data procured by actual investigation, prosecuted under the direction of the Legislatures of different States; but the returns have been so imperfect and

erroneous, that little reliance can be placed upon them. The Legislature of New Hampshire recently ordered investigations to be made in every town in the state, and the number of insane persons to be reported. A committee of the legislature, who had the subject in charge say, in their report—"From many towns no returns have been received, from others the accounts are erroneous, there being cases *known to the committee* which escaped the notice of the 'selectmen.' The actual number of insane persons is therefore much larger than appears by the documents submitted to the committee." The Medical Society of Connecticut appointed a committee of their number, composed of some of the most eminent physicians in the state, to ascertain and report the whole number of insane persons in that state. The committee say, in their report, "The number of towns from which returns have been received is seventy, and the cases of insanity which have been noticed in them are five hundred and ten." The committee add, "fifty more towns remain to be heard from, and if insanity should be found equally prevalent in them, the entire number will scarcely fall short of *one thousand* in the state." This investigation was made in 1821, when the population of the state was less than two hundred and eighty thousand. If the estimate of the Medical Society be correct, the proportion of the insane to the whole population would be about one in two hundred and eighty. This strikes us as a large estimate, and yet a committee of the legislature of that state in 1837, reported seven hundred and seven insane persons in the state, who were either wholly or in part supported as *town paupers, or by charity*. It can hardly be supposed that more than *two-thirds* of the insane in Connecticut belong to families *unable to support them*. On this supposition, the whole number would be greater than the estimate of the Medical Society sixteen years previous, when the population was perhaps thirty thousand less. But to avoid the possibility of an over estimate, let us suppose the present number of insane persons in Connecticut to be only seven hundred.

The population of the state is now probably about three hundred and twenty thousand; according to this estimate, the proportion of the insane to the whole population, would be one to about four hundred and sixty. Making this the basis of our calculation, and estimating the slaves in the United States at two millions, seven hundred thousand, their present probable number, and we come to this result, that there are about six thousand insane persons among the slaves of the United States. We have no adequate data by

which to judge whether the proportion of lunatics among slaves is greater or less than among the whites; some considerations favor the supposition that it is less. But the dreadful physical violence to which the slaves are subjected, and the constant Sunderings of their tenderest ties, might lead us to suppose that it would be more. The only data in our possession is the official census of Chatham county, Georgia, for 1838, containing the number of lunatics among the whites and the slaves.—(See the Savannah Georgian, July 24, 1838.) According to this census, the number of lunatics among eight thousand three hundred and seventy three whites in the country, is only *two*, whereas, the number among ten thousand eight hundred and ninety-one slaves, is *fourteen*.

2d. *The Deaf and Dumb*.—The proportion of deaf and dumb persons to the other classes of the community, is about one in two thousand. This is the testimony of the directors of the 'American Asylum for the Deaf and Dumb,' located at Hartford, Connecticut. Making this the basis of our estimate, there would be one thousand six hundred deaf and dumb persons among the slaves of the United States.

3d. *The Blind*.—We have before us the last United States census, from which it appears, that in 1830, the number of blind persons in New Hampshire was one hundred and seventeen, out of a population of two hundred and sixty-nine thousand five hundred and thirty-three. Adopting this as our basis, the number of blind slaves in the United States would be nearly one thousand three hundred.

4th. *Runaways*.—Of the proportion of the slaves that run away, to those that do not, and of the proportion of the runaways that are *taken* to those that escape entirely, it would be difficult to make a probable estimate. Something, however, can be done towards such an estimate. We have before us, in the Grand Gulf (Miss.) Advertiser, for August 2, 1838, a list of runaways that were then in the jails of the two counties of Adams and Warren, in that State; the names, ages, &c. of each one given; and their owners are called upon to take them away. The number of runaways thus taken up and committed in these *two* counties is FORTY-SIX. The whole number of *counties* in Mississippi is *fifty-six*. Many of them, however, are thinly populated. Now, without making this the basis of our estimate for the whole slave population in all the state—which would doubtless make the

number much too large—we are sure no one who has any knowledge of facts as they are in the south, will charge upon us an over-statement when we say, that of the present generation of slaves, probably *one in thirty* is of that class—i.e., has at some time, perhaps often, runaway and been retaken; on that supposition the whole number would be not far from NINETY THOUSAND.

5th. *Hired Slaves*.—It is impossible to estimate with accuracy the proportion which the hired slaves bear to the whole number. That it is very large all who have resided at the south, or traveled there, with their eyes open, well know. Some of the largest slaveholders in the country, instead of purchasing plantations and working their slaves themselves, hire them out to others. This practice is very common.

Rev. Horace Moulton, a minister of the Methodist Episcopal church in Marlborough, Mass., who lived some years in Georgia, says: "*A large proportion* of the slave are owned by masters who keep them on purpose to hire out."

Large numbers of slaves, especially in Mississippi, Louisiana, Arkansas, Alabama, and Florida, are owned by *non-residents*; thousands of them by northern capitalists, who *hire them out*. These capitalists in many cases own large plantations, which are often leased for a term of years with a 'stock' of slaves sufficient to work them.

Multitudes of slaves 'belonging' to *heirs*, are hired out by their guardians till such heirs become of age, or by the executors or trustees of persons deceased.

That the reader may form some idea of the large number of slaves that are hired out, we insert below a few advertisements, as a specimen of hundreds in the newspapers of the slave states.

From the "Pensacola Gazette," May 27.

"NOTICE TO SLAVEHOLDERS. Wanted upon my contract, on the Alabama, Florida, and Georgia Rail Road, FOUR HUNDRED BLACK LABORERS, *for which* a liberal price will be paid.

R. LORING, *Contractor*."

The same paper has the following, signed by an officer of the United States.

"WANTED AT THE NAVY YARD, PENSACOLA, SIXTY LABORERS.
The OWNERS to subsist and quarter them beyond the limits of the yard.
Persons having Laborers to hire, will apply to the Commanding Officer.

W.K. LATIMER."

From the "Richmond (Va.) Enquirer," April 10, 1838.

"LABORERS WANTED.—The James River, and Kenawha Company, are in immediate want of SEVERAL HUNDRED good laborers. Gentlemen wishing to send negroes from the country, are assured that the very best care shall be taken of them.

RICHARD REINS, *Agent of the James River, and Kenawha Co.*"

From the "Vicksburg (Mis.) Register," Dec. 27, 1838.

"60 NEGROES, males and females, *for hire for the year 1839*. Apply to H. HENDREN."

From the "Georgia Messenger," Dec. 27, 1838. "NEGROES To HIRE. On the first Tuesday next, Including CARPENTERS, BLACKSMITHS, SHOEMAKERS, SEAMSTRESSES, COOKS, &c. &c. For information; Apply to OSSIAN GREGORY."

From the "Alexandria (D.C.) Gazette," Dec. 30, 1837.

"THE subscriber wishes to *employ* by the month or year, ONE HUNDRED ABLE BODIED MEN, AND THIRTY BOYS. Persons having servants, will do well to give him a call. PHILIP ROACH, near Alexandria."

From the "Columbia (S.C.) Telescope," May 19, 1838.

"WANTED TO HIRE, twelve or fifteen NEGRO GIRLS, from ten to fourteen years of age. They are wanted for the term of two or three years. E.H. & J. FISHER."

"NEGROES WANTED. The Subscriber is desirous of hiring 50 of 60 *first rate Negro Men*. WILSON NESBITT."

From the "Norfolk (Va.) Beacon," March 21, 1838.

"LABORERS WANTED. One hundred able bodied men are wanted. The hands will be required to be delivered in Halifax by the *owners*. Apply to SHIELD & WALKE."

From the "Lynchburg Virginian," Dec. 13, 1838.

"40 NEGRO MEN. The subscribers wish to hire for the next year 40 NEGRO MEN. LANGHORNE, SCRUGGS & COOK."

"HIRING of NEGROES. On Saturday, the 29th day of December, 1838, at Mrs. Tayloe's tavern, in Amherst county, there will be *hired* thirty or forty valuable Negroes.

In addition to the above, I have for *hire*, 20 men, women, boys, and girls—several of them excellent house servants. MAURICE H. GARLAND."

From the "Savannah Georgian," Feb. 5, 1838.

"WANTED TO HIRE, ONE HUNDRED prime negroes, by the year. J.V. REDDEN."

From the "North Carolina Standard," Feb. 31, 1838.

"NEGROES WANTED.—W. & A. STITH, will give twelve dollars per month for FIFTY strong Negro fellows, to commence work immediately; and for FIFTY more on the first day of February, and for FIFTY on the first day of March."

From the "Lexington (Ky.) Reporter," Dec. 26, 1838.

"WILL BE HIRED, for one year; on the first day of January, 1839, on the farm of the late Mrs. Meredith, a number of valuable NEGROES. R.S. TODD, Sheriff of Fayette Co. And Curator for James and Elizabeth Breckenridge."

"NEGROES TO HIRE. On Wednesday, the 26th inst. I will hire to the highest bidder, the NEGROES belonging to Charles and Robert Innes. GEO. W. WILLIAMS. *Guardian*."

The following *nine* advertisements were published in one column of the "Winchester Virginian," Dec. 20, 1838.

"NEGRO HIRINGS.

"WILL be offered for hire, at Captain Long's Hotel, a number of SLAVES—men, women, boys and girls—belonging to the orphans of George Ash,

deceased. RICHARD W. BARTON." *Guardian*.

"WILL be offered for hire, at my Hotel, a number of SLAVES, consisting of men, women, boys and girls. JOSEPH LONG. *Exr. of Edmund Shackelford, dec'd.*"

"WILL be offered for hire, for the ensuing year, at Capt. Long's Hotel, a number of SLAVES. MOSES R. RICHARDS."

"WILL be offered for hire, the slaves belonging to the estate of James Bowen, deceased, consisting of men, and women, boys and girls. GILES COOK. *One of the Exrs. of James Bowen dec'd.*"

"THE *hiring* at Millwood will take place on Friday, the 28th day of December, 1838. BURWELL."

"N.B. We are desired to say that other valuable NEGROES will also be *hired* at Millwood on the same day, besides those offered by Mr. B."

"The SLAVES of the late John Jolliffe, about twenty in number, and of all ages and both sexes, will be offered for hire at Cain's Depot. DAVID W. BARTON. *Administrator.*"

"I WILL hire at public hiring before the tavern door of Dr. Lacy, about 30 NEGROES, consisting of men, and women. JAMES R. RICHARDS."

"WILL be hired, at Carter's Tavern, on 31st of December, a number of NEGROES. JOHN J.H. GUNNELL."

"NEGROES FOR HIRE, (PRIVATELY.) About twelve servants, consisting of men, women, boys, and girls, for hire privately. Apply to the subscriber at Col. Smith's in Battletown. JOHN W. OWEN."

A volume might easily be filled with advertisements like the preceding, showing conclusively that *hired* slaves must be a large proportion of the whole number. The actual proportion has been variously estimated, at 1/2, 1/3, 1/4, 1/2, &c. if we adopt the last as our basis, it will make the number of hired slaves, in the United States, FIVE HUNDRED AND FORTY THOUSAND!

6th. *Slaves under overseers whose wages are a part of the crop.*—That this is a common usage; appears from the following testimony. The late Hon. John Taylor, of Caroline Co. Virginia, one of the largest slaveholders in the state, President of the State Agricultural Society, and three times elected to the Senate of the United States, says, in his "Agricultural Essays," No. 15. P. 57,

"This necessary class of men, (overseers,) are bribed by agriculturalists, not to improve, but to impoverish their land, *by a share of the crop for one year....* The *greatest* annual crop, and not the most judicious culture, advances his interest, and establishes his character; and the fees of these land-doctors, are much higher for killing than for curing.... The most which the land can yield, and seldom or never improvement with a view to future profit, is a point of common consent, and mutual need between the agriculturist and his overseer.... Must the practice of hiring a man for one year, by a share of the crop, to lay out all his skill and industry in killing land, and as little as possible in improving it, be kept up to commemorate the pious leaning of man to his primitive state of ignorance and barbarity? *Unless this is abolished,* the attempt to fertilize our lands is needless."

Philemon Bliss, Esq, of Elyria, Ohio, who lived in Florida, in 1834-5, says,

"It is common for owners of plantations and slaves, to hire overseers to take charge of them, while they themselves reside at a distance. *Their wages depend principally upon the amount of labor which they can exact from the slave.* The term "good overseer," signifies one who can make the greatest amount of the staple, cotton for instance, from a given number of hands, besides raising sufficient provisions for their consumption. He has no interest in the life of the slave. Hence the fact, so notorious at the south, that negroes are driven harder and fare worse under overseers than under their owners."

William Ladd, Esq. of Minot, Maine, formerly a slaveholder in Florida, speaking, in a recent letter of the system of labor adopted there, says; "The compensation of the overseers *was a certain portion of the crop.*"

Rev. Phineas Smith, of Centreville, Allegany Co. N.Y. who has recently returned from a four years' residence, in the Southern slave states and Texas, says,

"The mode in which *many* plantations are managed, is calculated and *designed*, as an inducement to the slave driver, to lay upon the slave the *greatest possible burden, the overseer being entitled by contract, to a certain share of the crop.*"

We leave the reader to form his own opinion, as to the proportion of slaves under overseers, whose wages are in proportion to the crop, raised by them. We have little doubt that we shall escape the charge of wishing to make out a "strong case" when we put the proportion at *one-eighth* of the whole number of slaves, which would be *three hundred and fifty thousand*.

Without drawing out upon the page a sum in addition for the reader to "run up," it is easily seen that the slaves in the preceding classes amount to more than ELEVEN HUNDRED THOUSAND, exclusive of the deaf and dumb, and the blind, some of whom, especially the former, might be profitable to their "owners";

Now it is plainly for the interest of the "owners" of these slaves, or of those who have the charge of them, to *treat than cruelly*, to overwork, under-feed, half-clothe, half-shelter, poison, or kill outright, the aged, the broken down, the incurably diseased, idiots, feeble infants, most of the blind, some deaf and dumb, &c. It is besides a part of the slave-holder's creed, that it is *for his interest* to treat with terrible severity, all runaways and the incorrigibly stubborn, thievish, lazy, &c.; also for those who hire slaves, to overwork them; also for overseers to overwork the slaves under them, when their own wages are increased by it.

We have thus shown that it would be "*for the interest,*" of masters and overseers to treat with *habitual cruelty more than one million* of the slaves in the United States. But this is not all; as we have said already, it is for the interest of overseers generally, whether their wages are proportioned to the crop or not, to overwork the slaves; we need not repeat the reasons.

Neither is it necessary to re-state the arguments, going to show that it is for the interest of slaveholders, who cultivate the great southern staples, especially cotton, and the sugarcane, to overwork periodically *all* their slaves, and *habitually* the majority of them, when the demand for those staples creates high prices, as has been the case with cotton for many years, with little exception. Instead of entering into a labored estimate to get at the

proportion of the slaves, affected by the operation of these and the other causes enumerated, we may say, that they operate *directly* on the "field hands," employed in raising the southern staples, and indirectly upon all classes of the slaves.

Finally, we conclude this head by turning the objector's negative proposition into an affirmative one, and state formally what has been already proved.

It is for the interest of shareholders, upon their own principles, and by their own showing, TO TREAT CRUELLY the great body of their slaves.

Objection VI.—THE FACT THAT THE SLAVES MULTIPLY SO RAPIDLY PROVES THAT THEY ARE NOT INHUMANELY TREATED, BUT ARE IN A COMFORTABLE CONDITION

To this we reply in brief, 1st. It has been already shown under a previous head, that, in considerable sections of the slave states, especially in the South West, the births among slaves are fewer than the deaths, which would exhibit a fearful decrease of the slave population in those sections, if the deficiency were not made up by the slave trade from the upper country.

2d. The fact that all children born of slave *mothers*, whether their fathers are whites or free colored persons, are included in the census with the slaves, and further that all children born of white mothers, whose fathers are mulattos or blacks, are also included in the census with colored persons and almost invariably with *slaves*, shows that it is impossible to ascertain with any accuracy, *what is the actual increase of the slaves alone.*

3d. The fact that thousands of slaves, generally in the prime of life, are annually smuggled into the United States from Africa, Cuba, and elsewhere, makes it manifest that all inferences drawn from the increase of the slave population, which do not make large deductions, for constant importations, must be fallacious. Mr. Middleton of South Carolina, in a speech in Congress in 1819, declared that "THIRTEEN THOUSAND AFRICANS ARE ANNUALLY SMUGGLED INTO THE SOUTHERN STATES." Mr. Mercer of Virginia, in a speech in Congress about the same time declared that "*Cargoes*," of African slaves were smuggled into the South to a deplorable extent.

Mr. Wright, of Maryland, in a speech in Congress, estimated the number annually at FIFTEEN THOUSAND. Miss Martineau, in her recent work, (Society in America,) informs us that a large slaveholder in Louisiana, assured her in 1835, that the annual importation of native Africans was from thirteen to fifteen thousand.

The President of the United States, in his message to Congress, December, 1837, says, "The large force under Commodore Dallas, (on the West India station,) has been most actively and efficiently employed in protecting our commerce, IN PREVENTING THE IMPORTATION OF SLAVES," &c. &c.

The New Orleans Courier of 15th February, 1839, has these remarks:

"It is believed that African negroes have been *repeatedly* introduced into the United States. The number and the proximity of the Florida ports to the island of Cuba, make it no difficult matter; nor is our extended frontier on the Sabine and Red rivers, at all unfavorable to the smuggler. Human laws have, in all countries and ages, been violated whenever the inducements to do so afforded hopes of great profit.

"The United States' law against the importation of Africans, *could it be strictly enforced*, might in a few years give the sugar and cotton planters of Texas advantage over those of this state; as it would, we apprehend, enable the former, under a stable government, to furnish cotton and sugar at a lower price than we can do. When giving publicity to such reflections as the subject seems to suggest, we protest against being considered advocates for any violation of the laws of our country. Every good citizen must respect those laws, notwithstanding we may deem them likely to be evaded by men less scrupulous."

That both the south and north swarm with men 'less scrupulous,' every one knows.

The Norfolk (Va.) Beacon, of June 8, 1837, has the following:

"*Slave Trade.*—Eight African negroes have been taken into custody, at Apalachicola, by the U.S. Deputy Marshal, alleged to have been imported

from Cuba, on board the schooner Emperor, Captain Cox. Indictments for piracy, under the acts for the suppression of the slave trade, have been found against Captain Cox, and other parties implicated. The negroes were bought in Cuba by a Frenchman named Malherbe, formerly a resident of Tallahassee, who was drowned soon after the arrival of the schooner."

The following testimony of Rev. Horace Moulton, now a minister of the Methodist Episcopal Church, in Marlborough, Mass., who resided some years in Georgia, reveals some of the secrets of the slave-smugglers, and the connivance of the Georgia authorities at their doings. It is contained in a letter dated February 24, 1839.

"The foreign slave-trade was carried on to some considerable extent when I was at the south, notwithstanding a law had been made some ten years previous to this, making this traffic piracy on the high seas. I was somewhat acquainted with the secrets of this traffic, and, I suppose, I might have engaged in it, had I so desired. Were you to visit all the plantations in South Carolina, Georgia, Alabama, and Mississippi, I think you would be convinced that the horrors of the traffic in human flesh have not yet ceased. I was *surprised to find so many that could not speak English among the slaves*, until the mystery was explained. This was done, when I learned that slave-cargoes were landed on the coast of Florida, not a thousand miles from St. Augustine. They could, and can still, in my opinion, be landed as safely on this coast as in any port of this continent. You can imagine for yourself how easy it was to carry on the traffic between this place and the West Indies. When landed on the coast of Florida, it is an easy matter to distribute them throughout the more southern states. The law which makes it piracy to traffic in the foreign slave trade is a dead letter; and I doubt not it has been so in the more southern states ever since it was enacted. For you can perceive at once, that interested men, who believe the colored man is so much better off here than he possibly can be in Africa, will not hesitate to kidnap the blacks whenever an opportunity presents itself. I will notice one fact that came under my own observation, which will convince you that the horrors of the foreign slave-trade have not yet ceased among our southern gentry. It is as follows. A slave ship, which I have reason to believe was employed by southern men, came near the port of Savannah with about FIVE HUNDRED SLAVES, from Guinea and Congo. It was said that the ship was driven there by contrary winds; and the crew, pretending to be

short of provisions, run the ship into a by place, near the shore, between Tybee Light and Darien, to recruit their stores. Well, as Providence would have it, the revenue cutter, at that time taking a trip along the coast, fell in with this slave ship, took her as a prize, and brought her up into the port of Savannah. The cargo of human chattels was unloaded, and the captives were placed in an old barracks, in the fort of Savannah, under the protection of the city authorities, they pretending that they should return them all to their native country again, as soon as a convenient opportunity presented itself. The ship's crew of course were arrested, and confined in jail. Now for the sequel of this history. About one third part of the negroes died in a few weeks after they were landed, in seasoning, so called, or in becoming acclimated—or, as I should think, a distemper broke out among them, and they died like the Israelites when smitten with the plague. Those who did not die in seasoning, must be hired out a little while, to be sure, as the city authorities could not afford to keep them on expense doing nothing. As it happened, the man in whose employ I was when the cargo of human beings arrived, hired some twenty or thirty of them, and put them under my care. They continued with me until the sickly season drove me off to the north. I soon returned, but could not hear a word about the crew of pirates. They had something like a mock trial, as I should think, for no one, as I ever learned, was condemned, fined, or censured. But where were the poor captives, who were going to be returned to Africa by the city authorities, as soon as they could make it convenient? Oh, forsooth, those of whom I spoke, being under my care, were tugging away for the same man; the remainder were scattered about among different planters. When I returned to the north again, the next year, the city authorities had not, down to that time; made it convenient to return these poor victims. The fact is, they belonged there; and, in my opinion, they were designed to be landed near by the place where the revenue cutter seized them. Probably those very planters for whom they were originally designed received them; and still there was a pretence kept up that they would be returned to Africa. This must have been done, that the consciences of those might be quieted, who were looking for justice to be administered to these poor captives. It is easy for a company of slaveholders, who desire to traffic in human flesh, to fit out a vessel, under Spanish colors, and then go prowling about the African coast for the victims of their lusts. If all the facts with relation to the African

slave-trade, now secretly carried on at the south, could be disclosed, the people of the free states would be filled with amazement."

It is plain, from the nature of this trade, and the circumstances under which it is carried on, that the number of slaves imported would be likely to be estimated far *below* the truth. There can be little doubt that the estimate of Mr. Wright, of Maryland, (fifteen thousand annually,) is some thousands too small. But even according to his estimate, the African slave-trade adds ONE HUNDRED AND FIFTY THOUSAND SLAVES TO EACH UNITED STATES' CENSUS. These are in the prime of life, and their children would swell the slave population many thousands annually—thus making a great addition to each census.

4. It is a notorious fact, that large numbers of free colored persons are kidnapped every year in the free states, taken to the south, and sold as slaves.

Hon. GEORGE M. STROUD, Judge of the Criminal Court of Philadelphia, in his sketch of the slave laws, speaking of the kidnapping of free colored persons in the northern states, says—

"Remote as is the city of Philadelphia from those slaveholding states in which the introduction of slaves from places within the territory of the United States is freely permitted, and where also the market is tempting, *it has been ascertained*, that MORE THAN THIRTY FREE COLORED PERSONS, MOSTLY CHILDREN, HAVE BEEN KIDNAPPED HERE, AND CARRIED AWAY, WITHIN THE LAST TWO YEARS. Five of these, through the kind interposition of several humane gentlemen, have been restored to their friends, though not without *great expense and difficulty*; the others *are still retained in bondage*, and if rescued at all, it must be by sending white witnesses a journey of more than a thousand miles. The costs attendant upon lawsuits, under such circumstances, will probably fall but little short of the estimated value, as slaves, of the individuals kidnapped."

The following is an extract from Mrs. CHILD's Appeal, pp. 64-6.

"I know the names of four colored citizens of Massachusetts, who went to Georgia on board a vessel, were seized under the laws of that

state, and sold as slaves. They have sent the most earnest exhortations to their families and friends, to do something for their relief; but the attendant expenses require more money than the friends of negroes are apt to have, and the poor fellows, as yet, remain unassisted.

"A New York paper, of November, 1829, contains the following caution.

*"Beware of Kidnappers!—*It is well understood, that there is at present in this city, a gang of kidnappers, busily engaged in their vocation, of stealing colored children for the southern market. It is believed that three or four have been stolen within as many days. There are suspicions of a foul nature connected with some who serve the police in subordinate capacities. It is hinted that there may be those in some authority, not altogether ignorant of these diabolical practices. Let the public be on their guard! It is still fresh in the memories of all, that a cargo, or rather drove of negroes, was made up from this city and Philadelphia, about the time that the emancipation of all the negroes in this state took place, under our present constitution, and were taken through Virginia, the Carolinas, and Tennessee, and disposed of in the state of Mississippi. Some of those who were taken from Philadelphia were persons of intelligence; and after they had been driven through the country in chains, and disposed of by sale on the Mississippi, wrote back to their friends, and were rescued from bondage. The persons who were guilty of this abominable transaction are known, and now reside in North Carolina. They may very probably be engaged in similar enterprizes at the present time—at least there is reason to believe, that the system of kidnapping free persons of color from the northern cities, has been carried on more extensively than the public are generally aware of."

GEORGE BRADBURN, Esq. of Nantucket, Mass. a member of the Legislature of that state, at its last session, made a report to that body, March 6, 1839, 'On the deliverance of citizens liable to be sold as slaves.' That report contains the following facts and testimony.

"The following facts are a few out of a VAST MULTITUDE, to which the attention of the undersigned has been directed.

"On the 27th of February last, the undersigned had an interview with the Rev. Samuel Snowden, a respectable and intelligent clergyman of the city of Boston. This gentleman stated, and he is now ready to make oath, that during the last six years, he has himself, by the aid of various benevolent individuals, procured the deliverance from jail of six citizens of Massachusetts, who had been, arrested and imprisoned as runaway slaves, and who, but for his timely interposition, would have been sold into perpetual bondage. The names and the places of imprisonment of those persons, as stated by Mr. S. were as follows:

"James Hight, imprisoned at Mobile; William Adams, at Norfolk; William Holmes, also at Norfolk; James Oxford, at Wilmington; James Smith, at Baton Rouge; John Tidd, at New Orleans.

"In 1836, Mary Smith, a native of this state, returning from New Orleans, whither she had been in the capacity of a servant, was cast upon the shores of North Carolina. She was there seized and sold as a slave. Information of the fact reached her friends at Boston. Those friends made an effort to obtain her liberation. They invoked the assistance of the Governor of this Commonwealth. A correspondence ensued between His Excellency and the Governor of North Carolina: copies of which were offered for the inspection of your committee. Soon afterwards, by permission of the authorities of North Carolina, 'Mary Smith' returned to Boston. But it turned out, that this was not *the* Mary Smith, whom our worthy Governor, and other excellent individuals of Boston, had taken so unwearied pains to redeem from slavery. It was another woman, of the same name, who was also a native of Massachusetts, and had been seized in North Carolina as a runaway slave. The Mary Smith has not yet been heard of. If alive, she is now, in all probability, wearing the chains of slavery.

"About a year and a half since, several citizens of different free states were rescued from slavery, at New Orleans, by the direct personal efforts of an acquaintance of the undersigned. The benevolent individual alluded to is Jacob Barker, Esq. a name not unknown to the commercial world. Mr. Barker is a resident of New Orleans. A statement of the cases in reference is contained in a letter addressed by him to the Hon. Samuel H. Jenks, of Nantucket."

The letter of Mr. Barker, referred to in this report to the Legislature of Massachusetts, bears date August 19, 1837. The following are extracts from it.

"A free man, belonging to Baltimore, by the name of Ephraim Larkin, who came here cook of the William Tell, was arrested and thrown into prison a few weeks since, and sent in chains to work on the road. I heard of it, and with difficulty found him; and after the most diligent and active exertions, got him released—in effecting which, I traveled in the heat of the day, thermometer ranging in the shade from 94 to 100, more than twenty times to and from prison, the place of his labor, and the different courts, a distance of near three miles from my residence; and after I had established his freedom, had to pay for his arrest, maintenance, and the advertising him as a runaway slave, \$29.89, as per copy of bill herewith—the allowance for work not equalling the expenses, the amount augments with every day of confinement.

"In pursuing the cook of the William Tell, I found three other free men, confined in the same prison; one belonged also to Baltimore, by the name of Leaven Dogerty: he was also released, on my paying \$28 expenses; one was a descendant of the Indians who once inhabited Nantucket—his name is Eral Lonnon. Lonnon had been six weeks in prison; he was released without difficulty, on my paying \$20.38 expenses—and no one seemed to know why he had been confined or arrested, as the law does not presume persons of mixed blood to be slaves. But for the others, I had great difficulty in procuring what was considered competent witnesses to prove them free. No complaint of improper conduct had been made against either of them. At one time, the Recorder said the witness must be white; at another, that one respectable witness was insufficient; at another, that a person who had been (improperly) confined and released, was not a competent witness, &c. &c. Lonnon has been employed in the South Sea fishery from Nantucket and New Bedford, nearly all his life; has sailed on those voyages in the ships Eagle, Maryland, Gideon, Triton, and Samuel. He was born at Marshpee, Plymouth (Barnstable) county, Mass. and prefers to encounter the leviathan of the deep, rather than the turnkeys of New Orleans.

"The other was born in St. Johns, Nova Scotia, and bears the name of William Smith, a seaman by profession.

"Immediately after these men were released, two others were arrested. They attempted to escape, and being pursued, ran for the river, in the vain hope of being able to swim across the Mississippi, a distance of a mile, with a current of four knots. One soon gave out, and made for a boat which had been despatched for their recovery, and was saved; the other being a better swimmer, continued on until much exhausted, then also made for the boat—it was too late; he sank before the boat could reach him, and was drowned. They claimed to be freemen.

"On Sunday last I was called to the prison of the Municipality in which I reside, to serve on an inquest on the body of a drowned man. There I saw one other free man confined, by the name of Henry Tier, a yellow man, born in New York, and formerly in my employ. He had been confined as a supposed runaway, near six months, without a particle of testimony; although from his color, the laws of Louisiana presume him to be free. I applied immediately for his release, which was promptly granted. At first, expenses similar to those exacted in the third Municipality were required; but on my demonstrating to the recorder that the law imposed no such burden on free men, he was released without any charge whatever. How free men can obtain satisfaction for having been thus wrongfully imprisoned, and made to work in chains on the highway, is not for me to decide. I apprehend no satisfaction can be had without more active friends, willing to espouse their cause, than can be found in this quarter. Therefore I repeat, that no person of color should come here without a certificate of freedom from the governor of the state to which he belongs.

"Very respectfully, your assured friend, Jacob Barker."

"N.B.—Since writing the preceding, I have procured the release of another free man from the prison of the third Municipality, on the payment of \$39.65, as per bill, copy herewith. His name is William Lockman—he was born in New Jersey, of free parents, and resides at Philadelphia. A greater sum was required which was reduced by the allowance of his maintenance (written *labor*,) while at work on the

road, which the law requires the Municipality to pay; but it had not before been so expounded in the third Municipality. I hope to get it back in the case of the other three. The allowance for labor, in addition to their maintenance, is twenty-five cents per day; but they require those illiterate men to advance the whole before they can leave the prison, and then to take a certificate for their labor, and go for it to another department—to collect which, is ten times more trouble than the money when received is worth. While these free men, without having committed any fault, were compelled to work in chains, on the roads, in the burning sun, for 25 cents per day, and pay in advance 18 3-4 cents per day for maintenance, doctor's, and other bills, and not able to work half their time, I paid others, working on ship-board, in sight, two dollars per day. J.B."

The preceding letter of Mr. Barker, furnishes grounds for the belief, that *hundreds*, if not *thousands* of free colored persons, from the different states of this Union, both slave and free from the West Indies, South America, Mexico, and the British possessions in North America, and from other parts of the world, are reduced to slavery *every year* in our slave states. If a single individual, in the course of a few days, *accidentally* discovered *six* colored free men, working in irons, and soon to be sold as slaves, in a *single* southern city, is it not fair to infer, that in all the slave states, there must be *multitudes* of such persons, now in slavery, and that this number is rapidly increasing, by ceaseless accessions?

The letter of Mr. Barker is valuable, also, as a graphic delineation of the 'public opinion' of the south. The great difficulty with which the release of these free men was procured, notwithstanding the personal efforts of Mr. Jacob Barker, who is a gentleman of influence, and has, we believe, been an alderman of New Orleans, reveals a 'public opinion,' insensible as adamant to the liberty of colored men.

It would be easy to fill scores of pages with details similar to the preceding. We have furnished enough, however, to show, that, in all probability, *each* United States' census of the *slave* population, is increased by the addition to it of *thousands* of free colored persons, kidnapped and sold as slaves.

5th. To argue that the rapid multiplication of any class in the community, is proof that such a class is well-clothed, well-housed, abundantly fed, and very *comfortable*, is as absurd as to argue that those who have *few children*, must of course, be ill-clothed, ill-housed, badly lodged, overworked, ill-fed, &c. &c. True, privations and inflictions may be carried to such an extent as to occasion a fearful diminishment of population. That was the case generally with the slave population in the West Indies, and, as has been shown, is true of certain portions of the southern states. But the fact that such an effect is *not* produced, does not prove that the slaves do not experience great privations and severe inflictions. They may suffer much hardship, and great cruelties, without experiencing so great a derangement of the vital functions as to prevent child-bearing. The Israelites multiplied with astonishing rapidity, under the task-masters and burdens of Egypt. Does this falsify the declarations of Scripture, that 'they sighed by reason of their bondage,' and that the Egyptians 'made them serve *with rigor*,' and made 'their lives bitter with *hard bondage*.' 'I have seen,' said God, 'their *afflictions*. I have heard their *groanings*,' &c. The history of the human race shows, that great *privations and much suffering* may be experienced, without materially checking the rapid increase of population.

Besides, if we should give to the objection all it claims, it would merely prove, that the female slaves, or rather a portion of them, are in a comfortable condition; and that, so far as the absolute necessities of life are concerned, the females of *child-bearing* age, in Delaware, Maryland, northern, western, and middle Virginia, the upper parts of Kentucky and Missouri, and among the mountains of east Tennessee and western North Carolina, are in general tolerably well supplied. The same remark, with some qualifications, may be made of the slaves generally, in those parts of the country where the people are slaveholders, mainly, that they may enjoy the privilege and profit of being *slave-breeders*.

OBJECTION VIII.—'PUBLIC OPINION IS A PROTECTION TO THE SLAVE.'

ANSWER. It was public opinion that *made him a slave*. In a republican government the people make the laws, and those laws are merely public opinion *in legal forms*. We repeat it,—public opinion made them slaves, and keeps them slaves; in other words, it sunk them from men to chattels, and

now, forsooth, this same public opinion will see to it, that these *chattels* are treated like *men*!

By looking a little into this matter, and finding out how this 'public opinion' (law) protects the slaves in some particulars, we can judge of the amount of its protection in others. 1. It protects the slaves from *robbery*, by declaring that those who robbed their mothers may rob them and their children. "All negroes, mulattoes, or mestizoes who now are, or shall hereafter be in this province, and all their offspring, are hereby declared to be, and shall remain, forever, hereafter, absolute slaves, and shall follow the condition of the mother."—Law of South Carolina, 2 Brevard's Digest, 229. Others of the slave states have similar laws.

2. It protects their *persons*, by giving their master a right to flog, wound, and beat them when he pleases. See Devereaux's North Carolina Reports, 263.—Case of the State vs. Mann, 1829; in which the Supreme Court decided, that a master who *shot* at a female slave and wounded her, because she got loose from him when he was flogging her, and started to run from him, had violated *no law*, AND COULD NOT BE INDICTED. It has been decided by the highest courts of the slave states generally, that assault and battery upon a slave is not indictable as a criminal offence.

The following decision on this point was made by the Supreme Court of South Carolina in the case of the State vs. Cheetwood, 2 Hill's Reports, 459.

Protection of slaves.—"The criminal offence of assault and battery *cannot, at common law, be committed on the person of a slave*. For, notwithstanding for some purposes a slave is regarded in law as a person, yet generally he is a mere chattel personal, and his right of personal protection belongs to his master, who can maintain an action of trespass for the battery of his slave.

"There can be therefore no offence against the state for a mere beating of a slave, unaccompanied by any circumstances of cruelty, or an attempt to kill and murder. The peace of the state is not thereby broken; for a slave is not generally regarded as legally capable of being within the peace of the state. He is not a citizen, and *is not in that character entitled to her protection.*"

This 'public opinion' protects the *persons* of the slaves by depriving them of Jury trial;[\[28\]](#) their *consciences*, by forbidding them to assemble for

worship, unless their oppressors are present;[29] their *characters*, by branding them as liars, in denying them their oath in law;[30] their *modesty*, by leaving their master to clothe, or let them go naked, as he pleases;[31] and their *health*, by leaving him to feed or starve them, to work them, wet or dry, with or without sleep, to lodge them, with or without covering, as the whim takes him;[32] and their *liberty*, marriage relations, parental authority, and filial obligations, by *annihilating* the whole.[33] This is the protection which 'PUBLIC OPINION,' in the form of *law*, affords to the slaves; this is the chivalrous knight, always in stirrups, with lance in rest, to champion the cause of the slaves.

[Footnote 28: Law of South Carolina. James' Digest, 392-3. Law of Louisiana. Martin's Digest, 42. Law of Virginia. Rev. Code, 429.]

[Footnote 29: Miss. Rev. Code, 390. Similar laws exist in the slave states generally.]

[Footnote 30: "A slave cannot be a witness against a white person, either in a civil or criminal cause." Stroud's Sketch of the Laws of Slavery, 65.]

[Footnote 31: Stroud's Sketch of the Slave Laws, 132.]

[Footnote 32: Stroud's Sketch, 26-32.]

[Footnote 33: Stroud's Sketch, 22-24.]

Public opinion, protection to the slave! Brazen effrontery, hypocrisy, and falsehood! We have, in the laws cited and referred to above, the formal testimony of the Legislatures of the slave states, that, 'public opinion' does pertinaciously *refuse* to protect the slaves; not only so, but that it does itself persecute and plunder them all: that it originally planned, and now presides over, sanctions, executes and perpetuates the whole system of robbery, torture, and outrage under which they groan.

In all the slave states, this 'public opinion' has taken away from the slave his *liberty*; it has robbed him of his right to his own body, of his right to improve his mind, of his right to read the Bible, of his right to worship God according to his conscience, of his right to receive and enjoy what he earns,

of his right to live with his wife and children, of his right to better his condition, of his right to eat when he is hungry, to rest when he is tired, to sleep when he needs it, and to cover his nakedness with clothing: this 'public opinion' makes the slave a prisoner for life on the plantation, except when his jailor pleases to let him out with a 'pass,' or sells him, and transfers him in irons to another jail-yard: this 'public opinion' traverses the country, buying up men, women, children—chaining them in coffles, and driving them forever from their nearest friends; it sets them on the auction table, to be handled, scrutinized, knocked off to the highest bidder; it proclaims that they shall not have their liberty; and, if their masters give it them, 'public opinion' seizes and throws them back into slavery. This same 'public opinion' has formally attached the following legal penalties to the following acts of slaves.

If more than seven slaves are found together in any road, without a white person, *twenty lashes a piece*; for visiting a plantation without a written pass, *ten lashes*; for letting loose a boat from where it is made fast, *thirty-nine lashes for the first offence*; and for the second, *'shall have cut off from his head one ear'*; for keeping or carrying a *club*, *thirty-nine lashes*; for having any article for sale, without a ticket from his master, *ten lashes*; for traveling in any other than 'the most usual and accustomed road,' when going alone to any place, *forty lashes*; for traveling in the night, without a pass, *forty lashes*; for being found in another person's negro-quarters, *forty lashes*; for hunting with dogs in the woods, *thirty lashes*; for being on *horseback* without the written permission of his master, *twenty-five lashes*; for riding or going abroad in the night, or riding horses in the day time, without leave, a slave may be whipped, *cropped*, or *branded in the cheek* with the letter R, or otherwise punished, *not extending to life*, or so as to render him *unfit for labor*. The laws referred to may be found by consulting 2 Brevard's Digest, 228, 213, 216; Haywood's Manual, 78, chap. 13, pp. 518, 529; 1 Virginia Revised Code, 722-3; Prince's Digest, 454; 2 Missouri Laws, 741; Mississippi Revised Code, 571. Laws similar to these exist throughout the southern slave code. Extracts enough to fill a volume might be made from these laws, showing that the protection which 'public opinion' grants to the slaves, is hunger, nakedness, terror, bereavements, robbery, imprisonment, the stocks, iron collars, hunting and worrying them with dogs and guns, mutilating their bodies, and murdering them.

A few specimens of the laws and the judicial decisions on them, will show what is the state of 'public opinion' among slaveholders towards their slaves. Let the following suffice.—'Any person may lawfully kill a slave, who has been outlawed for running away and lurking in swamps, &c.'—Law of North Carolina; Judge Stroud's Sketch of the Slave Laws, 103; Haywood's Manual, 524. 'A slave *endeavoring* to entice another slave to runaway, if provisions, &c. be prepared for the purpose of aiding in such running away, shall be punished with DEATH. And a slave who shall aid the slave so endeavoring to entice another slave to run away, shall also suffer DEATH.'—Law of South Carolina; Stroud's Sketch of Slave Laws, 103-4; 2 Brevard's Digest, 233, 244. Another law of South Carolina provides that if a slave shall, when absent from the plantation, refuse to be examined by '*any white person*,' (no matter how crazy or drunk,) 'such white person may seize and chastise him; and if the slave shall *strike* such white person, such slave may be lawfully killed.'—2 Brevard's Digest, 231.

The following is a law of Georgia.—'If any slave shall presume to strike any white person, such slave shall, upon trial and conviction before the justice or justices, suffer such punishment for the first offence as they shall think fit, not extending to life or limb; and for the second offence, DEATH.'—Prince's Digest, 450. The same law exists in South Carolina, with this difference, that death is made the punishment for the *third* offence. In both states, the law contains this remarkable proviso: 'Provided always, that such striking be not done by the command and in the defence of the person or property of the owner, or other person having the government of such slave, in which case the slave shall be wholly excused!' According to this law, if a slave, by the direction of his OVERSEER, strike a white man who is beating said overseer's *dog*, 'the slave shall be wholly excused;' but if the white man has rushed upon the slave himself, instead of the *dog*, and is furiously beating him, if the slave strike back but a single blow, the legal penalty is 'ANY *punishment* not extending to life or limb;' and if the tortured slave has a second onset made upon him, and, after suffering all but death, again strike back in self-defence, the law KILLS him for it. So, if a female slave, in obedience to her mistress, and in defence of 'her property,' strike a white man who is kicking her mistress' pet kitten, she 'shall be wholly excused,' saith the considerate law: but if the unprotected girl, when beaten and kicked *herself*, raise her hand against her brutal assailant, the

law condemns her to 'any punishment, not extending to life or limb; and if a wretch assail her again, and attempt to violate her chastity, and the trembling girl, in her anguish and terror, instinctively raise her hand against him in self-defence, she shall, saith the law, 'suffer DEATH.'

Reader, this diabolical law is the 'public opinion' of Georgia and South Carolina toward the slaves. This is the vaunted 'protection' afforded them by their 'high-souled chivalry.' To show that the 'public opinion' of the slave states far more effectually protects the *property* of the master than the *person* of the slave, the reader is referred to two laws of Louisiana, passed in 1819. The one attaches a penalty 'not exceeding one thousand dollars,' and 'imprisonment not exceeding two years,' to the crime of 'cutting or breaking any iron chain or collar,' which any master of slaves has used to prevent their running away; the other, a penalty 'not exceeding five hundred dollars,' to 'wilfully cutting out the tongue, putting out the eye, *cruelly* burning, or depriving any slave of *any limb*.' Look at it—the most horrible dismemberment conceivable cannot be punished by a fine of *more* than five hundred dollars. The law expressly fixes that, as the utmost limit, and it *may* not be half that sum; not a single moment's imprisonment stays the wretch in his career, and the next hour he may cut out another slave's tongue, or burn his hand off. But let the same man break a chain put upon a slave, to keep him from running away, and, besides paying double the penalty that could be exacted from him for cutting off a slave's leg, the law imprisons him not exceeding two years!

This law reveals the *heart* of slaveholders towards their slaves, their diabolical indifference to the most excruciating and protracted torments inflicted on them by '*any person*;' it reveals, too, the *relative* protection afforded by 'public opinion' to the *person* of the slave, in appalling contrast with the vastly surer protection which it affords to the master's *property* in the slave. The wretch who cuts out the tongue, tears out the eyes, shoots off the arms, or burns off the feet of a slave, over a slow fire, *cannot* legally be fined more than five hundred dollars; but if he should in pity loose a chain from his galled neck, placed there by the master to keep him from escaping, and thus put his property in some jeopardy, he may be fined *one thousand dollars*, and thrust into a dungeon for two years! and this, be it remembered, not for *stealing* the slave from the master, nor for *enticing*, or even advising him to run away, or giving him any information how he can effect his

escape; but merely, because, touched with sympathy for the bleeding victim, as he sees the rough iron chafe the torn flesh at every turn, he removes it;—and, as escape without this incumbrance would be easier than with it, the master's property in the slave is put at some risk. For having caused this slight risk, the law provides a punishment—fine not exceeding one thousand dollars, and imprisonment not exceeding *two years*. We say 'slight risk,' because the slave may not be disposed to encounter the dangers, and hunger, and other sufferings of the woods, and the certainty of terrible inflictions if caught; and if he should attempt it, the risk of losing him is small. An advertisement of five lines will set the whole community howling on his track; and the trembling and famished fugitive is soon scented out in his retreat, and dragged back and delivered over to his tormentors.

The preceding law is another illustration of the 'protection' afforded to the limbs and members of slaves, by 'public opinion' among slaveholders.

Here follow two other illustrations of the brutal indifference of 'public opinion' to the *torments* of the slave, while it is full of zeal to compensate the master, if any one disables his slave so as to lessen his market value. The first is a law of South Carolina. It provides, that if a slave, engaged in his owner's service, be attacked by a person 'not having sufficient cause for so doing,' and if the slave shall be '*maimed or disabled*' by him, so that the owner suffers a loss from his inability to labor, the person maiming him shall pay for his 'lost time,' and 'also the charges for the cure of the slave!' This Vandal law does not deign to take the least notice of the anguish of the '*maimed*' slave, made, perhaps, a groaning cripple for life; the horrible wrong and injury done to *him*, is passed over in utter silence. It is thus declared to be *not a criminal act*. But the pecuniary interests of the master are not to be thus neglected by 'public opinion'. Oh no! its tender bowels run over with sympathy at the master's injury in the 'lost *time*' of his slave, and it carefully provides that he shall have pay for the whole of it.—See 2 *Brevard's Digest*, 231, 2.

A law similar to the above has been passed in Louisiana, which contains an additional provision for the benefit of the *master*—ordaining, that 'if the slave' (thus *maimed and disabled*,) 'be forever rendered unable to work,' the person maiming, shall pay the master the appraised value of the slave before the injury, and shall, in addition, *take* the slave, and maintain him

during life.' Thus 'public opinion' transfers the helpless cripple from the hand of his master, who, as he has always had the benefit of his services, might possibly feel some tenderness for him, and puts him in the sole power of the wretch who has disabled him for life—protecting the victim from the fury of his tormentor, by putting him into his hands! What but butchery by piecemeal can, under such circumstances, be expected from a man brutal enough at first to 'maim' and 'disable' him, and now exasperated by being obliged to pay his full value to the master, and to have, in addition, the daily care and expense of his maintenance. Since writing the above, we have seen the following judicial decision, in the case of Jourdan, vs. Patton—5 Martin's Louisiana Reports, 615. A slave of the plaintiff had been deprived of his *only eye*, and thus rendered *useless*, on which account the court adjudged that the defendant should pay the plaintiff his full value. The case went up, by appeal, to the Supreme court. Judge Mathews, in his decision said, that 'when the defendant had paid the sum decreed, the slave ought to be placed in his possession,'—adding, that 'the judgment making full compensation to the owner *operates a change of property*. He adds, 'The principle of humanity which would lead us to suppose, that the mistress whom he had long served, would treat her miserable blind slave with more kindness than the defendant to whom the judgment ought to transfer him, CANNOT BE TAKEN INTO CONSIDERATION!' The full compensation of the mistress for the loss of the services of the slave, is worthy of all 'consideration,' even to the uttermost farthing; 'public opinion' is omnipotent for *her* protection; but when the food, clothing, shelter, fire and lodging, medicine and nursing, comfort and entire condition and treatment of her poor blind slave throughout his dreary pilgrimage, is the question—ah! that, says the mouthpiece of the law, and the representative of 'public opinion,' 'CANNOT BE TAKEN INTO CONSIDERATION.' Protection of slaves by 'public opinion' among slaveholders!!

The foregoing illustrations of southern 'public opinion,' from the laws made by it and embodying it, are sufficient to show, that, so far from being an efficient protection to the slaves, it is their deadliest foe, persecutor and tormentor.

But here we shall probably be met by the legal lore of some 'Justice Shallow,' instructing us that the life of the slave is fully protected by law, however unprotected he may be in other respects. This assertion we meet

with a point blank denial. The law does not, in reality, protect the life of the slave. But even if the letter of the law would fully protect the life of the slave, 'public opinion' in the slave states would make it a dead letter. The letter of the law would have been all-sufficient for the protection of the lives of the miserable gamblers in Vicksburg, and other places in Mississippi, from the rage of those whose money they had won; but 'gentlemen of property and standing' laughed the law to scorn, rushed to the gamblers' house, put ropes round their necks, dragged them through the streets, hanged them in the public square, and thus saved the sum they had not yet paid. Thousands witnessed this wholesale murder, yet of the scores of legal officers present, not a soul raised a finger to prevent it, the whole city consented to it, and thus aided and abetted it. How many hundreds of them helped to commit the murders, *with their own hands*, does not appear, but not one of them has been indicted for it, and no one made the least effort to bring them to trial. Thus, up to the present hour, the blood of those murdered men rests on that whole city, and it will continue to be a CITY OF MURDERERS, so long as its citizens, agree together to shield those felons from punishment; and they do thus agree together so long as they encourage each other in refusing to bring them to justice. Now, the *laws* of Mississippi were not in fault that those men were murdered; nor are they now in fault, that their murderers are not punished; the laws demand it, but the people of Mississippi, the legal officers, the grand juries and legislature of the state, with one consent agree, that the law *shall be a dead letter*, and thus the whole state assumes the guilt of those murders, and in bravado, flourishes her reeking hands in the face of the world.[[34](#)]

[Footnote [34](#): We have just learned from Mississippi papers, that the citizens of Vicksburg are erecting a public monument in honor of Dr. H.S. Bodley, who was the ring-leader of the Lynchers in their attack upon the miserable victims. To give the crime the cold encouragement of impunity alone, or such slight tokens of favor as a home and a sanctuary, is beneath the chivalry and hospitality of Mississippians; so they tender it incense, an altar, and a crown of glory. Let the marble rise till it be seen from afar, a beacon marking the spot where law lies lifeless by the hand of felons; and murderers, with chaplets on their heads, dance and shout upon its grave, while 'all the people say, amen.']

The letter of the law on the statute book is one thing, the practice of the community under that law often a totally different thing. Each of the slave states has laws providing that the life of no *white* man shall be taken without his having first been indicted by a grand jury, allowed an impartial trial by a petit jury, with the right of counsel, cross-examination of witnesses, &c.; but who does not know that if ARTHUR TAPPAN were pointed out in the streets of New Orleans, Mobile, Savannah, Charleston, Natchez, or St. Louis, he would be torn in pieces by the citizens with one accord, and that if any one should attempt to bring his murderers to punishment, he would be torn in pieces also. The editors of southern newspapers openly vaunt, that every abolitionist who sets foot in their soil, shall, if he be discovered, be hung at once, without judge or jury. What mockery to quote the *letter of the law* in those states, to show that abolitionists would have secured to them the legal protection of an impartial trial!

Before the objector can make out his case, that the life of the slave is protected by the law, he must not only show that the *words of the law* grant him such protection, but that such a state of public sentiment exists as will carry out the provisions of the law in their true spirit. Any thing short of this will be set down as mere prating by every man of common sense. It has been already abundantly shown in the preceding pages, that the public sentiment of the slaveholding states toward the slaves is diabolical. Now, if there were laws in those states, the *words* of which granted to the life of the slave the same protection granted to that of the master, what would they avail? ACTS constitute protection; and is that public sentiment which makes the slave 'property,' and perpetrates hourly robbery and batteries upon him, so penetrated with a sense of the sacredness of his right to life, that it will protect it at all hazards, and drag to the gallows his OWNER, if he take the life of his own *property*? If it be asked, why the penalty for killing a slave is not a mere *fine* then, if his life is not really regarded as sacred by public sentiment—we answer, that formerly in most, if not in all the slave states, the murder of a slave was punished by a mere fine. This was the case in South Carolina till a few years since. Yes, as late as 1821, in the state of South Carolina, which boasts of its chivalry and honor, at least as loudly as any state in the Union, a slaveholder might butcher his slave in the most deliberate manner—with the most barbarous and protracted

torments, and yet not be subjected to a single hour's imprisonment—pay his fine, stride out of the court and kill another—pay his fine again and butcher another, and so long as he paid to the state, cash down, its own assessment of damages, without putting it to the trouble of prosecuting for it, he might strut 'a gentleman.'—See 2 *Brevard's Digest*, 241.

The reason assigned by the legislature for enacting a law which punished the wilful murder of a human being by a *fine*, was that 'CRUELTY is HIGHLY UNBECOMING,' and 'ODIOUS.' It was doubtless the same reason that induced the legislature in 1821, to make a show of giving *more* protection to the life of the slave. Their fathers, when they gave *some* protection, did it because the time had come when, not to do it would make them 'ODIOUS,' So the legislature of 1821 made a show of giving still greater protection, because, not to do it would make them '*odious*.' Fitly did they wear the mantles of their ascending fathers! In giving to the life of a slave the miserable protection of a fine, their fathers did not even pretend to do it out of any regard to the sacredness of his life as a human being, but merely because cruelty is 'unbecoming' and 'odious.' The legislature of 1821 *nominally* increased this protection; not that they cared more for the slave's rights, or for the inviolability of his life as a human being, but the civilized world had advanced since the date of the first law. The slave-trade which was then honorable merchandise, and plied by lords, governors, judges, and doctors of divinity, raising them to immense wealth, had grown 'unbecoming,' and only raised its votaries by a rope to the yard arm; besides this, the barbarity of the slave codes throughout the world was fast becoming 'odious' to civilized nations, and slaveholders found that the only conditions on which they could prevent themselves from being thrust out of the pale of civilization, was to meliorate the iron rigor of their slave code, and thus *seem* to secure to their slaves some protection. Further, the northern states had passed laws for the abolition of slavery—all the South American states were acting in the matter; and Colombia and Chili passed acts of abolition that very year. In addition to all this the Missouri question had been for two years previous under discussion in Congress, in State legislatures, and in every village and stage coach; and this law of South Carolina had been held up to execration by northern members of Congress, and in newspapers throughout the free states—in a word, the legislature of South Carolina found that they were becoming 'odious;' and while in their

sense of justice and humanity they did not surpass their fathers, they winced with equal sensitiveness under the sting of the world's scorn, and with equal promptitude sued for a truce by modifying the law.

The legislature of South Carolina modified another law at the same session. Previously, the killing of a slave 'on a sudden heat or passion, or by undue correction,' was punished by a fine of three hundred and fifty pounds. In 1821 an act was passed diminishing the fine to five hundred dollars, but authorizing an imprisonment 'not exceeding six months.' Just before the American Revolution, the Legislature of North Carolina passed a law making *imprisonment* the penalty for the wilful and malicious murder of a slave. About twenty years after the revolution, the state found itself becoming 'odious,' as the spirit of abolition was pervading the nations. The legislature, perceiving that Christendom would before long rank them with barbarians if they so cheapened human life, repealed the law, candidly assigning in the preamble of the new one the reason for repealing the old—that it was 'DISGRACEFUL' and 'DEGRADING! As this preamble expressly recognizes the slave as 'a human creature,' and as it is couched in a phraseology which indicates some sense of justice, we would gladly give the legislature credit for sincerity, and believe them really touched with humane movings towards the slave, were it not for a proviso in the law clearly revealing that the show of humanity and regard for their rights, indicated by the words, is nothing more than a hollow pretence—hypocritical flourish to produce an impression favorable to their justice and magnanimity. After declaring that he who is 'guilty of wilfully and maliciously killing a slave, shall suffer the same punishment as if he had killed a freeman;' the act concludes thus: 'Provided, always, this act shall not extend to the person killing a slave outlawed by virtue of any act of Assembly of this state; or to any slave in the act of resistance to his lawful overseer, or master, or to any slave dying under *moderate correction*.' Reader, look at this proviso. 1. It gives free license to all persons to kill *outlawed slaves*. Well, what is an outlawed slave? A slave who runs away, lurks in swamps, &c., and kills a *hog* or any other domestic animal to keep himself from starving, is subject to a proclamation of *outlawry*; (Haywood's Manual, 521,) and then whoever finds him may shoot him, tear him in pieces with dogs, burn him to death over a slow fire, or kill him by any other tortures. 2. The proviso grants full license to a master to kill his slave,

if the slave *resist* him. The North Carolina Bench has decided that this law contemplates not only actual resistance to punishment, &c., but also *offering* to resist. (Stroud's Sketch, 37.) If, for example, a slave undergoing the process of branding should resist by pushing aside the burning stamp; or if wrought up to frenzy by the torture of the lash, he should catch and hold it fast; or if he break loose from his master and run, refusing to stop at his command; or if he *refuse* to be flogged; or struggle to keep his clothes on while his master is trying to strip him; if, in these, or any one of a hundred other ways he *resist*, or *offer*, or *threaten* to resist the infliction; or, if the master attempt the violation of the slave's wife, and the husband resist his attempts without the least effort to injure him, but merely to shield his wife from his assaults, this law does not merely permit, but it *authorizes* the master to murder the slave on the spot.

The brutality of these two provisos brands its authors as barbarians. But the third cause of exemption could not be outdone by the legislation of fiends. 'DYING under MODERATE *correction*!' MODERATE *correction* and DEATH—cause and effect! 'Provided ALWAYS,' says the law, 'this act shall not extend to any slave dying under *moderate correction*!' Here is a formal proclamation of impunity to murder—an express pledge of *acquittal* to all slaveholders who wish to murder their slaves, a legal absolution—an indulgence granted before the commission of the crime! Look at the phraseology. Nothing is said of maimings, dismemberments, skull fractures, of severe bruising, or lacerations, or even of floggings; but a word is used the common-parlance import of which is, *slight chastisement*; it is not even *whipping*, but '*correction*' And as if hypocrisy and malignity were on the rack to outwit each other, even that weak word must be still farther diluted; so '*moderate*' is added: and, to crown the climax, compounded of absurdity, hypocrisy, and cold-blooded murder, the *legal definition* of '*moderate correction*' is covertly given; which is, *any punishment* that KILLS the victim. All inflictions are either *moderate* or *immoderate*; and the design of this law was manifestly to shield the murderer from conviction, *by carrying on its face the rule for its own interpretation*; thus advertising, beforehand, courts and juries, that the fact of any infliction *producing death*, was no evidence that it was *immoderate*, and that beating a man to death came within the legal meaning of '*moderate correction*!' The *design* of the legislature of North Carolina in framing this law is manifest; it was to

produce the impression upon the world, that they had so high a sense of justice as voluntarily to grant adequate protection to the lives of their slaves. This is ostentatiously set forth in the preamble, and in the body of the law. That this was the most despicable hypocrisy, and that they had predetermined to grant no such protection, notwithstanding the pains taken to get the *credit* of it, is fully revealed by the *proviso*, which was framed in such a way as to nullify the law, for the express accommodation of slaveholding gentlemen murdering their slaves. All such find in this proviso a convenient accomplice before the fact, and a packed jury, with a ready-made verdict of 'not guilty,' both gratuitously furnished by the government! The preceding law and proviso are to be found in Haywood's Manual, 530; also in Laws of Tennessee, Act of October 23, 1791; and in Stroud's Sketch, 37.

Enough has been said already to show, that though the laws of the slave states profess to grant adequate protection to the life of the slave, such professions are mere empty pretence, no such protection being in reality afforded by them. But there is still another fact, showing that all laws which profess to protect the slaves from injury by the whites are a mockery. It is this—that the testimony, neither of a slave nor of a free colored person, is *legal* testimony against a white. To this rule there is *no exception* in any of the slave states: and this, were there no other evidence, would be sufficient to stamp, as hypocritical, all the provisions of the codes which *profess* to protect the slaves. Professing to grant *protection*, while, at the same time, it strips them of the only *means* by which they can make that protection available! Injuries must be legally *proved* before they can be legally *redressed*: to deprive men of the power of *proving* their injuries, is itself the greatest of all injuries; for it not only exposes to all, but invites them, by a virtual guarantee of impunity, and is thus the *author* of all injuries. It matters not what other laws exist, professing to throw safeguards round the slave—*this* makes them blank paper. How can a slave prove outrages perpetrated upon him by his master or overseer, when his own testimony and that of all his fellow-slaves, his kindred, associates, and acquaintances, is ruled out of court? and when he is entirely in the *power* of those who injure him, and when the only care necessary, on their part, is, to see that no *white* witness is looking on. Ordinarily, but *one* white man, the overseer, is with the slaves while they are at labor; indeed, on most plantations, to

commit an outrage in the *presence* of a white witness would be more difficult than in their absence. He who wished to commit an illegal act upon a slave, instead of being obliged to *take pains* and watch for an opportunity to do it unobserved by a white, would find it difficult to do it in the presence of a white if he wished to do so. The supreme court of Louisiana, in their decision, in the case of Crawford vs. Cherry,(15, *Martin's La. Rep.* 112; also "*Law of Slavery*," 249,) where the defendant was sued for the value of a slave whom he had shot and killed, say, "The act charged here, is one *rarely* committed in the presence of *witnesses*," (whites). So in the case of the State vs. Mann, (*Devereux, N.C. Rep.* 263; and "*Law of Slavery*," 247;) in which the defendant was charged with shooting a slave girl 'belonging' to the plaintiff; the Supreme Court of North Carolina, in their decision, speaking of the provocations of the master by the slave, and 'the consequent wrath of the master' prompting him to *bloody vengeance*, add, '*a vengeance generally practised with impunity, by reason of its privacy.*'

Laws excluding the testimony of slaves and free colored persons, where a white is concerned, do not exist in all the slave states. One or two of them have no legal enactment on the subject; but, in those, '*public opinion*' acts with the force of law, and the courts *invariably reject it*. This brings us back to the potency of that oft-quoted 'public opinion,' so ready, according to our objector, to do battle for the *protection* of the slave!

Another proof that 'public opinion,' in the slave states, plunders, tortures, and murders the slaves, instead of *protecting* them, is found in the fact, that the laws of slave states inflict *capital* punishment on slaves for a variety of crimes, for which, if their masters commit them, the legal penalty is merely *imprisonment*. Judge Stroud in his Sketch of the Laws of Slavery, says, that by the laws of Virginia, there are 'seventy-one crimes for which slaves are capitally punished though in none of these are whites punished in manner more severe than by imprisonment in the penitentiary.' (P. 107, where the reader will find all the crimes enumerated.) It should be added, however, that though the penalty for each of these seventy-one crimes is 'death,' yet a majority of them are, in the words of the law, 'death within clergy;' and in Virginia, *clergyable* offences, though *technically* capital, are not so in fact. In Mississippi, slaves are punished capitally for more than *thirty* crimes, for which whites are punished only by fine or imprisonment, or both. Eight of these are not *recognized as crimes*, either by common law or by statute,

when committed by whites. In South Carolina slaves are punished capitally for *nine* more crimes than the whites—in Georgia, for *six*—and in Kentucky, for *seven* more than whites, &c. We surely need not detain the reader by comments on this monstrous inequality with which the penal codes of slave states treat slaves and their masters. When we consider that guilt is in proportion to intelligence, and that these masters have by law doomed their slaves to ignorance, and then, as they darkle and grope along their blind way, inflict penalties upon them for a variety of acts regarded as praise worthy in whites; killing them for crimes, when whites are only fined or imprisoned—to call such a 'public opinion' inhuman, savage, murderous, diabolical, would be to use tame words, if the English vocabulary could supply others of more horrible import.

But slaveholding brutality does not stop here. While punishing the slaves for crimes with vastly greater severity than it does their masters for the same crimes, and making a variety of acts *crimes* in law, which are right, and often *duties*, it persists in refusing to make known to the slaves that complicated and barbarous penal code which loads them with such fearful liabilities. The slave is left to get a knowledge of these laws as he can, and cases must be of constant occurrence at the south, in which slaves get their first knowledge of the existence of a law by suffering its penalty. Indeed, this is probably the way in which they commonly learn what the laws are; for how else can the slave get a knowledge of the laws? He cannot *read*—he cannot *learn* to read; if he try to master the alphabet, so that he may spell out the words of the law, and thus avoid its penalties, the law shakes its terrors at him; while, at the same time, those who made the laws refuse to make them known to those for whom they are designed. The memory of Caligula will blacken with execration while time lasts, because he hung up his laws so high that people could not read them, and then punished them because they did not keep them. Our slaveholders aspire to blacker infamy. Caligula was content with hanging up his laws where his subjects could *see* them; and if they could not read them, they knew where they were, and might get at them, if, in their zeal to learn his will, they had used the same means to get up to them that those did who hung them there. Even Caligula, wretch as he was, would have shuddered at cutting their legs off, to prevent their climbing to them; or, if they had got there, at boring their eyes out, to prevent their reading them. Our slaveholders virtually do both; for they

prohibit their slaves acquiring that knowledge of letters which would enable them to read the laws; and if, by stealth, they get it in spite of them, they prohibit them books and papers, and flog them if they are caught at them. Further—Caligula merely hung his laws so high that they could not be *read*—our slaveholders have hung theirs so high above the slave that they cannot be *seen*—they are utterly out of sight, and he finds out that they are there only by the falling of the penalties on his head.[35] Thus the "public opinion" of slave states protects the defenceless slave by arming a host of legal penalties and setting them in ambush at every thicket along his path, to spring upon him unawares.

[Footnote 35: The following extract from the Alexandria (D.C.) Gazette is all illustration. "CRIMINALS CONDEMNED.—On Monday last the Court of the borough of Norfolk, Va. sat on the trial of four negro boys arraigned for burglary. The first indictment charged them with breaking into the hardware store of Mr. E.P. Tabb, upon which two of them were found guilty by the Court, and condemned to suffer the penalty of the law, which, in the case of a slave, is death. The second Friday in April is appointed for the execution of their awful sentence. *Their ages do not exceed sixteen.* The first, a fine active boy, belongs to a widow lady in Alexandria; the latter, a house servant, is owned by a gentleman in the borough. The value of one was fixed at \$1000, and the other at \$800; which sums are to be reimbursed to their respective owners out of the state treasury." In all probability these poor boys, who are to be hung for stealing, never dreamed that death was the legal penalty of the crime.

Here is another, from the "New Orleans Bee" of —— 14, 1837—"The slave who STRUCK some citizens in Canal street, some weeks since, has been tried and found guilty, and is sentenced to be HUNG on the 24th."]

Stroud, in his Sketch of the Laws of Slavery, page 100, thus comments on this monstrous barbarity.

"The hardened convict moves their sympathy, and is to be taught the laws before he is expected to obey them;[36] yet the guiltless slave is subjected to an extensive system of cruel enactments, of no part of which, probably, has he ever heard."

[Footnote [36](#): "It shall be the duty of the keeper [of the penitentiary] on the receipt of each prisoner, to *read* to him or her such parts of the penal laws of this state as impose penalties for escape, and to make all the prisoners in the penitentiary acquainted with the same. It shall also be his duty, on the discharge of such prisoner, to read to him or her such parts of the laws as impose additional punishments for the repetition of offences."—*Rule 12th*, for the internal government of the Penitentiary of Georgia. Sec. 26 of the Penitentiary Act of 1816.—Prince's Digest, 386.]

Having already drawn so largely on the reader's patience, in illustrating southern 'public opinion' by the slave laws, instead of additional illustrations of the same point from another class of those laws, as was our design, we will group together a few particulars, which the reader can take in at a glance, showing that the "public opinion" of slaveholders towards their slaves, which exists at the south, in the form of law, tramples on all those fundamental principles of right, justice, and equity, which are recognized as sacred by all civilized nations, and receive the homage even of barbarians.

1. One of these principles is, that the *benefits* of law to the subject should overbalance its burdens—its protection more than compensate for its restraints and exactions—and its blessings altogether outweigh its inconveniences and evils—the former being numerous, positive, and permanent, the latter few, negative, and incidental. Totally the reverse of all this is true in the case of the slave. Law is to him all exaction and no protection: instead of lightening his *natural* burdens, it crushes him under a multitude of artificial ones; instead of a friend to succor him, it is his deadliest foe, transfixing him at every step from the cradle to the grave. Law has been beautifully defined to be "benevolence acting by rule;" to the American slave it is malevolence torturing by system. It is an old truth, that *responsibility* increases with *capacity*; but those same laws which make the slave a "*chattel*," require of him *more* than of *men*. The same law which makes him a *thing* incapable of obligation, loads him with obligations superhuman—while sinking him below the level of a brute in dispensing its *benefits*, he lays upon him burdens which would break down an angel.

2. *Innocence is entitled to the protection of law.* Slaveholders make innocence free plunder; this is their daily employment; their laws assail it, make it their victim, inflict upon it all, and, in some respects, more than all the penalties of the greatest guilt. To other innocent persons, law is a blessing, to the slave it is a curse, only a curse and that continually.

3. *Deprivation of liberty is one of the highest punishments of crime;* and in proportion to its justice when inflicted on the guilty, is its injustice when inflicted on the innocent; this terrible penalty is inflicted on two million seven hundred thousand, innocent persons in the Southern states.

4. *Self-preservation and self-defence,* are universally regarded as the most sacred of human rights, yet the laws of slave states punish the slave with *death* for exercising these rights in that way, which in others is pronounced worthy of the highest praise.

5. *The safeguards of law are most needed where natural safe-guards are weakest.* Every principle of justice and equity requires, that, those who are totally unprotected by birth, station, wealth, friends, influence, and popular favor, and especially those who are the innocent objects of public contempt and prejudice, should be more vigilantly protected by law, than those who are so fortified by defence, that they have far less need of *legal* protection; yet the poor slave who is fortified by *none* of these *personal* bulwarks, is denied the protection of law, while the master, surrounded by them all, is panoplied in the mail of legal protection, even to the hair of his head; yea, his very shoe-tie and coat-button are legal protegees.

6. The grand object of law is to *protect men's natural rights*, but instead of protecting the natural rights of the slaves, it gives slaveholders license to wrest them from the weak by violence, protects them in holding their plunder, and *kills* the rightful owner if he attempt to recover it.

This is the *protection* thrown around the rights of American slaves by the 'public opinion,' of slaveholders; these the restraints that hold back their masters, overseers, and drivers, from inflicting injuries upon them!

In a Republican government, *law* is the pulse of its *heart*—as the heart beats the pulse beats, except that it often beats *weaker* than the heart, never stronger—or to drop the figure, laws are never *worse* than those who make

them, very often better. If human history proves anything, cruelty of practice will always go beyond cruelty of law.

Law-making is a formal, deliberate act, performed by persons of mature age, embodying the intelligence, wisdom, justice and humanity, of the community; performed, too, at leisure, after full opportunity had for a comprehensive survey of all the relations to be affected, after careful investigation and protracted discussion. Consequently laws must, in the main, be a true index of the permanent feelings, the settled *frame of mind*, cherished by the community upon those subjects, and towards those persons and classes whose condition the laws are designed to establish. If the laws are in a high degree cruel and inhuman, towards any class of persons, it proves that the feelings habitually exercised towards that class of persons, by those who make and perpetuate those laws, are at least *equally* cruel and inhuman. We say *at least equally* so; for if the *habitual* state of feeling towards that class be unmerciful, it must be unspeakably cruel, relentless and malignant when *provoked*; if its *ordinary* action is inhuman, its contortions and spasms must be tragedies; if the waves run high when there has been no wind, where will they not break when the tempest heaves them!

Further, when cruelty is the *spirit* of the law towards a proscribed class, when it *legalizes great outrages* upon them, it connives at, and abets *greater* outrages, and is virtually an accomplice of all who perpetrate them. Hence, in such cases, though the *degree* of the outrage is illegal, the perpetrator will rarely be convicted, and, even if convicted, will be almost sure to escape punishment. This is not *theory* but *history*. Every judge and lawyer in the slave states *knows*, that the legal conviction and *punishment* of masters and mistresses, for illegal outrages upon their slaves, is an event which has rarely, if ever, occurred in the slave states; they know, also, that although *hundreds* of slaves have been *murdered* by their masters and mistresses in the slave states, within the last twenty-five years, and though the fact of their having committed those murders has been established beyond a *doubt* in the minds of the surrounding community, yet that the murderers have not, in a single instance, suffered the penalty of the law.

Finally, since slaveholders have deliberately legalized the perpetration of the most cold-blooded atrocities upon their slaves, and do pertinaciously refuse to make these atrocities *illegal*, and to punish those who perpetrate

them, they stand convicted before the world, upon their own testimony, of the most barbarous, brutal, and habitual inhumanity. If this be slander and falsehood, their own lips have uttered it, their own fingers have written it, their own acts have proclaimed it; and however it may be with their *morality*, they have too much human nature to perjure themselves for the sake of publishing their own infamy.

Having dwelt at such length on the legal code of the slave states, that unerring index of the public opinion of slaveholders towards their slaves; and having shown that it does not protect the slaves from cruelty, and that even in the few instances in which the letter of the law, if *executed*, would afford some protection, it is virtually nullified by the connivance of courts and juries, or by popular clamor; we might safely rest the case here, assured that every honest reader would spurn the absurd falsehood, that the 'public opinion' of the slave states protects the slaves and restrains the master. But, as the assertion is made so often by slaveholders, and with so much confidence, notwithstanding its absurdity is fully revealed by their own legal code, we propose to show its falsehood by applying other tests.

We lay it down as a truth that can be made no plainer by reasoning, that the same 'public opinion,' which restrains men from *committing* outrages, will restrain them from *publishing* such outrages, if they do commit them;—in other words, if a man is restrained from certain acts through fear of losing his character, should they become known, he will not voluntarily destroy his character by *making them known*, should he be guilty of them. Let us look at this. It is assumed by slaveholders, that 'public opinion' at the south so frowns on cruelty to the slaves, that *fear of disgrace* would restrain from the infliction of it, were there no other consideration.

Now, that this is sheer fiction is shown by the fact, that the newspapers in the slaveholding states, teem with advertisements for runaway slaves, in which the masters and *mistresses* describe their men and women, as having been 'branded with a hot iron,' on their 'cheeks,' 'jaws,' 'breasts,' 'arms,' 'legs,' and 'thighs;' also as 'scarred,' 'very much scarred,' 'cut up,' 'marked,' &c. 'with the whip,' also with 'iron collars on,' 'chains,' 'bars of iron,' 'fetters,' 'bells,' 'horns,' 'shackles,' &c. They, also, describe them as having been wounded by 'buck-shot,' 'rifle-balls,' &c. fired at them by their 'owners,' and others when in pursuit; also, as having 'notches,' cut in their

ears, the tops or bottoms of their ears 'cut off,' or 'slit,' or 'one ear cut off' or 'both ears cut off' &c. &c. The masters and mistresses who thus advertise their runaway slaves, coolly sign their names to their advertisements, giving the street and number of their residences, if in cities, their post office address, &c. if in the country; thus making public proclamation as widely as possible that *they* 'brand,' 'scar,' 'gash,' 'cut up,' &c. the flesh of their slaves; load them with irons, cut off their ears, &c.; they speak of these things with the utmost *sang froid*, not seeming to think it possible, that any one will esteem them at all the less because of these outrages upon their slaves; further, these advertisements swarm in many of the largest and most widely circulated political and commercial papers that are published in the slave states. The editors of those papers constitute the main body of the literati of the slave states; they move in the highest circle of society, are among the 'popular' men in the community, and *as a class*, are more influential than any other; yet these editors publish these advertisements with iron indifference. So far from proclaiming to such felons, homicides, and murderers, that they will not be their blood-hounds, to hunt down the innocent and mutilated victims who have escaped from their torture, they freely furnish them with every facility, become their accomplices and share their spoils; and instead of outraging 'public opinion,' by doing it, they are the men after its own heart, its organs, its representatives, its *self*.

To show that the 'public opinion' of the slave states, towards the slaves, is absolutely *diabolical*, we will insert a few, out of a multitude, of similar advertisements from a variety of southern papers now before us.

The North Carolina Standard, of July 18, 1838, contains the following:—

"TWENTY DOLLARS REWARD. Ranaway from the subscriber, a negro woman and two children; the woman is tall and black, and *a few days before she went off*, I BURNT HER WITH A HOT IRON ON THE LEFT SIDE OF HER FACE; I TRIED TO MAKE THE LETTER M, *and she kept a cloth over her head and face, and a fly bonnet on her head so as to cover the burn*; her children are both boys, the oldest is in his seventh year; he is a *mulatto* and has blue eyes; the youngest is black and is in his fifth year. The woman's name is Betty, commonly called Bet."

MICAJAH RICKS.

Nash County, July 7, 1838.

Hear the wretch tell his story, with as much indifference as if he were describing the cutting of his initials in the bark of a tree.

"*I burnt her with a hot iron on the left side of her face,*"—"I tried to make the letter M," and this he says in a newspaper, and puts his name to it, and the editor of the paper who is, also, its proprietor, publishes it for him and pockets his fee. Perhaps the reader will say, 'Oh, it must have been published in an insignificant sheet printed in some obscure corner of the state; perhaps by a gang of 'squatters,' in the Dismal Swamp, universally regarded as a pest, and edited by some scape-gallows, who is detested by the whole community.' To this I reply that the "North Carolina Standard," the paper which contains it, is a large six columned weekly paper, handsomely printed and ably edited; it is the leading Democratic paper in that state, and is published at Raleigh, the Capital of the state, Thomas Loring, Esq. Editor and Proprietor. The motto in capitals under the head of the paper is, "THE CONSTITUTION AND THE UNION OF THE STATES—THEY MUST BE PRESERVED." The same Editor and Proprietor, who exhibits such brutality of feeling towards the slaves, by giving the preceding advertisement a conspicuous place in his columns, and taking his pay for it, has apparently a keen sense of the proprieties of life, where *whites* are concerned, and a high regard for the rights, character and feelings of those whose skin is colored like his own. As proof of this, we copy from the number of the paper containing the foregoing advertisement, the following *Editorial* on the pending political canvass.

"We cannot refrain from expressing the hope that the Gubernatorial canvass will be conducted with a *due regard to the character*, and *feelings* of the distinguished individuals who are candidates for that office; and that the press of North Carolina will *set an example* in this respect, worthy of *imitation and of praise*."

What is this but chivalrous and honorable feeling? The good name of North Carolina is dear to him—on the comfort, 'character and feelings,' of her *white* citizens he sets a high value; he feels too, most deeply for the *character of the Press* of North Carolina, sees that it is a city set on a hill, and implores his brethren of the editorial corps to 'set an example' of

courtesy and magnanimity worthy of imitation and praise. Now, reader, put all these things together and con them over, and then read again the preceding advertisement contained in the same number of the paper, and you have the true "North Carolina STANDARD," by which to measure the protection extended to slaves by the 'public opinion' of that state.

J.P. Ashford advertises as follows in the "Natchez Courier," August 24, 1838.

"Ranaway, a negro girl called Mary, has a small scar over her eye, a *good many teeth missing*, the letter A. *is branded on her cheek and forehead.*"

A.B. Metcalf thus advertises a woman in the same paper, June 15, 1838.

"Ranaway, Mary, a black woman, has a *scar* on her back and right arm near the shoulder, *caused by a rifle ball.*"

John Henderson, in the "Grand Gulf Advertiser," August 29, 1838, advertises Betsey.

"Ranaway, a black woman Betsey, has an *iron bar on her right leg.*"

Robert Nicoll, whose residence is in Mobile, in Dauphin street, between Emmanuel and Conception streets, thus advertises a woman in the "Mobile Commercial Advertiser."

"TEN DOLLARS REWARD will be given for my negro woman Liby. The said Liby is about 30 years old and VERY MUCH SCARRED ABOUT THE NECK AND EARS, occasioned by whipping, had on a handkerchief tied round her ears, as she COMMONLY wears it to HIDE THE SCARS."

To show that slaveholding brutality now is the same that it was the eighth of a century ago, we publish the following advertisement from the "Charleston (S.C.) Courier," of 1825.

"TWENTY DOLLARS REWARD.—Ranaway from the subscriber, on the 14th instant, a negro girl named Molly.

"The said girl was sold by Messrs. Wm. Payne & Sons, as the property of an estate of a Mr. Gearrall, and purchased by a Mr. Moses, and sold by him to a Thomas Prisley, of Edgefield District, of whom I bought her on the

17th of April, 1819. She is 16 or 17 years of age, slim made, LATELY BRANDED ON THE LEFT CHEEK, THUS, R, AND A PIECE TAKEN OFF OF HER EAR ON THE SAME SIDE; THE SAME LETTER ON THE INSIDE OF BOTH HER LEGS.

"ABNER ROSS, Fairfield District."

But instead of filling pages with similar advertisements, illustrating the horrible brutality of slaveholders towards their slaves, the reader is referred to the preceding pages of this work, to the scores of advertisements written by slaveholders, printed by slaveholders, published by slaveholders, in newspapers edited by slaveholders and patronized by slaveholders; advertisement describing not only men and boys, but women aged and middle-aged, matrons and girls of tender years, their necks chafed with iron collars with prongs, their limbs galled with iron rings and chains, and bars of iron, iron hobbles and shackles, all parts of their persons scarred with the lash, and branded with hot irons, and torn with rifle bullets, pistol balls and buck shot, and gashed with knives, their eyes out, their ears cut off, their teeth drawn out, and their bones broken. He is referred also to the cool and shocking indifference with which these slaveholders, 'gentlemen' and 'ladies,' Reverends, and Honorables, and Excellencies, write and print, and publish and pay, and take money for, and read and circulate, and sanction, such infernal barbarity. Let the reader ponder all this, and then lay it to heart, that this is that 'public opinion' of the slaveholders which protects their slaves from all injury, and is an effectual guarantee of personal security.

However far gone a community may be in brutality, something of protection may yet be hoped for from its 'public opinion,' if *respect for woman* survive the general wreck; that gone, protection perishes; public opinion becomes universal rapine; outrages, once occasional, become habitual; the torture, which was before inflicted only by passion, becomes the constant product of a *system*, and, instead of being the index of sudden and fierce impulses, is coolly plied as the permanent means to an end. When *women* are branded with hot irons on their faces; when iron collars, with prongs, are riveted about their necks; when iron rings are fastened upon their limbs, and they are forced to drag after them chains and fetters; when their flesh is torn with whips, and mangled with bullets and shot, and

lacerated with knives; and when those who do such things, are regarded in the community, and associated with as 'gentlemen' and 'ladies;' to say that the 'public opinion' of *such* a community is a protection to its victims, is to blaspheme God, whose creatures they are, cast in his own sacred image, and dear to him as the apple of his eye.

But we are not yet quite ready to dismiss this protector, 'Public Opinion.' To illustrate the hardened brutality with which slaveholders regard their slaves, the shameless and apparently unconscious indecency with which they speak of their female slaves, examine their persons, and describe them, under their own signatures, in newspapers, hand-bills, &c. just as they would describe the marks of cattle and swine, on all parts of their bodies; we will make a few extracts from southern papers. Reader, as we proceed to these extracts, remember our motto—"True humanity consists *not* in a squeamish ear.'

Mr. P. ABDIE, of New Orleans, advertises in the New Orleans Bee, of January 29, 1838, for one of his female slaves, as follows;

"Ranaway, the negro wench named Betsey, aged about 22 years, handsome-faced, and good countenance; having the marks of the whip behind her neck, and SEVERAL OTHERS ON HER RUMP. The above reward, (\$10,) will be given to whoever will bring that wench to P. ABDIE."

The New Orleans Bee, in which the advertisement of this Vandal appears, is the 'Official Gazette of the State—of the General Council—and of the first and third Municipalities of New Orleans.' It is the largest, and the most influential paper in the south-western states, and perhaps the most ably edited—and has undoubtedly a larger circulation than any other. It is a daily paper, of \$12 a year, and its circulation being mainly among the larger merchants, planters, and professional men, it is a fair index of the 'public opinion' of Louisiana, so far as represented by those classes of persons. Advertisements equally gross, indecent, and abominable, or nearly so, can be found in almost every number of that paper.

Mr. WILLIAM ROBINSON, Georgetown, District of Columbia, advertised for his slave in the National Intelligencer, of Washington City, Oct. 2, 1837, as follows:

"Eloped from my residence a young negress, 22 years old, of a chestnut, or brown color. She has a very singular mark—this mark, to the best of my RECOLLECTION, covers a part of her *breasts, body, and limbs*; and when her neck and arms are uncovered, is very perceptible; she has been frequently seen east and south of the Capitol Square, and is harbored by ill-disposed persons, of every complexion, for her services."

Mr. JOHN C. BEASLEY, near Huntsville, Alabama, thus advertises a young girl of eighteen, in the Huntsville Democrat, of August 1st, 1837. "Ranaway Maria, about 18 years old, *very far advanced with child*." He then offers a reward to any one who will commit this young girl, in this condition, *to jail*.

Mr. JAMES T. DE JARNETT, Vernon, Autauga co. Alabama, thus advertises a woman in the Pensacola Gazette, July 14, 1838. "Celia is a *bright* copper-colored negress, *fine figure* and *very smart*. On EXAMINING HER BACK, you will find marks caused by the whip." He closes the advertisement, by offering a reward of *five hundred dollars* to any person who will lodge her in *jail*, so that he can get her.

A person who lives at 124 Chartres street, New Orleans, advertises in the 'Bee,' of May 31, for "the negress Patience, about 28 years old, has *large hips*, and is *bow-legged*." A Mr. T. CUGGY, in the same paper, thus describes "the negress Caroline." "*She has awkward feet, clumsy ankles, turns out her toes greatly in walking, and has a sore on her left shin*."

In another, of June 22, Mr. P. BAHU advertises "Maria, with a clear white complexion, and *double nipple on her right breast*."

Mr. CHARLES CRAIGE, of Federal Point, New Hanover co. North Carolina, in the Wilmington Advertiser, August 11, 1837, offers a reward for his slave Jane, and says "*she is far advanced in pregnancy*."

The New Orleans Bulletin, August 18, 1838, advertises "the negress Mary, aged nineteen, has a scar on her face, walks parrot-toed, and is *pregnant*."

Mr. J.G. MUIR, of Grand Gulf, Mississippi, thus advertises a woman in the Vicksburg Register, December 5, 1838. "Ranaway a negro girl—has a number of *black lumps on her breasts, and is in a state of pregnancy*."

Mr. JACOB BESSON, Donaldsonville, Louisiana, advertises in the New Orleans Bee, August 7, 1838, "the negro woman Victorine—she is *advanced in pregnancy*."

Mr. J.H. LEVERICH & Co. No. 10, Old Levee, New Orleans, advertises in the 'Bulletin,' January 22, 1839, as follows.

"\$50 REWARD.—Ranaway a negro girl named Caroline about 18 years of age, is *far advanced in child-bearing*. The above reward will be paid for her delivery at either of the *jails* of the city."

Mr. JOHN DUGGAN, thus advertises a woman in the New Orleans Bee, of Sept. 7.

"Ranaway from the subscriber a mulatto woman, named Esther, about thirty years of age, *large stomach*, wants her upper front teeth, and walks pigeon-toed—supposed to be about the lower fauxbourg."

Mr. FRANCIS FOSTER, of Troop co. Georgia, advertises in the Columbus (Ga.) Enquirer of June 22, 1837—"My negro woman Patsey, has a stoop in her walking, occasioned by a *severe burn on her abdomen*."

The above are a few specimens of the gross details, in describing the persons of females, of all ages, and the marks upon all parts of their bodies; proving incontestably, that slaveholders are in the habit not only of stripping their female slaves of their clothing, and inflicting punishment upon their 'shrinking flesh,' but of subjecting their naked persons to the most minute and revolting inspection, and then of publishing to the world the results of their examination, as well as the scars left by their own inflictions upon them, their length, size, and exact position on the body; and all this without impairing in the least, the standing in the community of the shameless wretches who thus proclaim their own abominations. That such things should not at all affect the standing of such persons in society, is certainly no marvel: how could they affect it, when the same communities enact laws *requiring* their own legal officers to inspect minutely the persons and bodily marks of all slaves taken up as runaways, and to publish in the newspapers a particular description of all such marks and peculiarities of their persons, their size, appearance position on the body, &c. Yea, verily, when the 'public opinion' of the community, in the solemn form of law,

commands jailors, sheriffs, captains of police, &c. to divest of their clothing aged matrons and young girls, minutely examine their naked persons, and publish the results of their examination—who can marvel, that the same 'public opinion' should tolerate the slaveholders themselves, in doing the same things to their own property, which they have appointed legal officers to do as their proxies.[37]

[Footnote 37: 'As a sample of these laws, we give the following extract from one of the laws of Maryland, where slaveholding 'public opinion' exists in its mildest form.'

"It shall be the duty of the sheriffs of the several counties of this state, upon any runaway servant or slave being committed to his custody, to cause the same to be advertised, &c. and to make particular and minute descriptions of *the person and bodily marks*, of such runaway."—*Laws of Maryland of 1802*, Chap. 96, Sec. 1 and 2.

That the sheriffs, jailors, &c. do not neglect this part of their official 'duty,' is plain from the minute description which they give in the advertisements of marks upon all parts of the persons of females, as well as males; and also from the occasional declaration, 'no scars discoverable on any part,' or 'no marks discoverable *about* her;' which last is taken from an advertisement in the Milledgeville (Geo.) Journal, June 26, 1838, signed 'T.S. Denster, Jailor.']

The zeal with which slaveholding '*public opinion*' protects the lives of the slaves, may be illustrated by the following advertisements, taken from a multitude of similar ones in southern papers. To show that slaveholding 'public opinion' is the same *now*, that it was half a century ago, we will insert, in the first place, an advertisement published in a North Carolina newspaper, Oct. 29, 1785, by W. SKINNER, the Clerk of the County of Perquimons, North Carolina.

"Ten silver dollars reward will be paid for apprehending and delivering to me my man Moses, who ran away this morning; or I will give five times the sum to any person who will make due proof of his *being killed*, and never ask a question to know by whom it was done."

W. SKINNER.

Perquimons County, N.C. Oct. 29, 1785.

The late JOHN PARRISH, of Philadelphia, an eminent minister of the religious society of Friends, who traveled through the slave states about *thirty-five years* since, on a religious mission, published on his return a pamphlet of forty pages, entitled 'Remarks on the Slavery of the Black People.' From this work we extract the following illustrations of 'public opinion' in North and South Carolina and Virginia at that period.

"When I was traveling through North Carolina, a black man, who was outlawed, being shot by one of his pursuers, and left wounded in the woods, they came to an ordinary where I had stopped to feed my horse, in order to procure a cart to bring the poor wretched object in. Another, I was credibly informed, was shot, his head cut off, and carried in a bag by the perpetrators of the murder, who received the reward, which was said to be \$200, continental currency, and that his head was stuck on a coal house at an iron works in Virginia—and this for going to visit his wife at a distance. Crawford gives an account of a man being gibbeted alive in South Carolina, and the buzzards came and picked out his eyes. Another was burnt to death at a stake in Charleston, surrounded by a multitude of spectators, some of whom were people of the *first rank*; ... the poor object was heard to cry, as long as he could breathe, 'not guilty—not guilty.'"

The following is an illustration of the 'public opinion' of South Carolina about fifty years ago. It is taken from Judge Stroud's Sketch of the Slave Laws, page 39.

"I find in the case of 'the State vs. M'Gee,' 1 Bay's Reports, 164, it is said incidentally by Messrs. Pinckney and Ford, counsel for the state (of S.C.), 'that the *frequency* of the offence (*wilful* murder of a slave) was owing to the *nature of the punishment*', &c.... This remark was made in 1791, when the above trial took place. It was made in a public place—a courthouse—and by men of great personal respectability. There can be, therefore, no question as to its *truth*, and as little of its *notoriety*."

In 1791 the Grand Jury for the district of Cheraw, S.C. made a *presentment*, from which the following is an extract.

"We, the Grand Jurors of and for the district of Cheraw, do present the INEFFICACY of the present punishment for killing negroes, as a great defect in the legal system of this state: and we do earnestly recommend to the attention of the legislature, that clause of the negro act, which confines the penalty for killing slaves to fine and imprisonment only: in full confidence, that they will provide some other *more effectual* measures to prevent the FREQUENCY of crimes of this nature."—*Matthew Carey's American Museum, for Feb. 1791.*—Appendix, p. 10.

The following is a specimen of the 'public opinion' of Georgia twelve years since. We give it in the strong words of COLONEL STONE, Editor of the New York Commercial Advertiser. We take it from that paper of June 8, 1827.

"HUNTING MEN WITH DOGS.-A negro who had absconded from his master, and for whom a reward of \$100 was offered, has been apprehended and committed to prison in Savannah. The editor, who states the fact, adds, with as much coolness as though there were no barbarity in the matter, that he did not surrender till *he was considerably* MAIMED BY THE DOGS that had been set on him—desperately fighting them—one of which he badly cut with a sword."

Twelve days after the publication of the preceding fact, the following horrible transaction took place in Perry county, Alabama. We extract it from the African Observer, a monthly periodical, published in Philadelphia, by the society of Friends. See No. for August, 1827.

"Tuscaloosa, Ala. June 20, 1827.

"Some time during the last week a Mr. M'Neilly having lost some clothing, or other property of no great value, the slave of a neighboring planter was charged with the theft. M'Neilly, in company with his brother, found the negro driving his master's wagon; they seized him, and either did, or were about to chastise him, when the negro stabbed M'Neilly, so that he died in an hour afterwards. The negro was taken before a justice of the peace, who *waved his authority*, perhaps through fear, as a crowd of persons had collected to the number of seventy or eighty, near Mr. People's (the justice) house. *He acted as president of the mob*, and put the vote, when it was decided he should be immediately executed by *being burnt to death*. The

sable culprit was led to a tree, and tied to it, and a large quantity of pine knots collected and placed around him, and the fatal torch applied to the pile, even against the remonstrances of several gentlemen who were present; and the miserable being was in a short time burned to ashes.

"This is the SECOND negro who has been THUS put to death, without judge or jury, in this county."

The following advertisements, testimony, &c. will show that the slaveholders of *to-day* are the *children* of those who shot, and hunted with bloodhounds, and burned over slow fires, the slaves of half a century ago; the worthy inheritors of their civilization, chivalry, and tender mercies.

The "Wilmington (North Carolina) Advertiser" of July 13, 1838, contains the following advertisement.

"\$100 will be paid to any person who may apprehend and safely confine in any jail in this state, a certain negro man, named ALFRED. And the same reward will be paid, if satisfactory evidence is given of *having been* KILLED. He has one or more scars on one of his hands, caused by his having been shot.

"THE CITIZENS OF ONSLOW.

"Richlands, Onslow co. May 16th, 1838."

In the same column with the above and directly under it is the following:—

"RANAWAY my negro man RICHARD. A reward of \$25 will be paid for his apprehension DEAD or ALIVE. Satisfactory proof will only be required of his being KILLED. He has with him, in all probability, his wife ELIZA, who ran away from Col. Thompson, now a resident of Alabama, about the time he commenced his journey to that state. DURANT H. RHODES."

In the "Mason (Georgia) Telegraph," May 28, is the following:

"About the 1st of March last the negro man RANSOM left me without the least provocation whatever; I will give a reward of twenty dollars for said negro, if taken DEAD OR ALIVE,—and if killed in any attempt, an advance of five dollars will be paid. BRYANT JOHNSON.

"Crawford co. Georgia"

See the "Newbern (N.C.) Spectator," Jan. 5, 1838, for the following:—

"RANAWAY, from the subscriber, a negro man named SAMPSON. Fifty dollars reward will be given for the delivery of him to me, or his confinement in any jail so that I get him, and should he resist in being taken, so that violence is necessary to arrest him, I will not hold any person liable for damages should the slave be KILLED. ENOCH FOY.

"Jones County, N.C."

From the "Macon (Ga.) Messenger," June 14, 1838.

"TO THE OWNERS OF RUNAWAY NEGROES. A large mulatto Negro man, between thirty-five and forty years old, about six feet in height, having a high forehead, and hair slightly grey, was KILLED, near my plantation, on the 9th inst. *He would not surrender* but assaulted Mr. Bowen, who killed him in self-defence. If the owner desires further information relative to the death of his negro, he can obtain it by letter, or by calling on the subscriber ten miles south of Perry, Houston county. EDM'D. JAS. McGEHEE."

From the 'Charleston (S.C.) Courier,' Feb. 20, 1836.

"\$300 REWARD. Ranaway from the subscriber, in November last, his two negro men, named Billy and Pompey.

"Billy is 25 years old, and is known as the patroon of my boat for many years; in all probability he may resist; in that event 50 dollars will be paid for his HEAD."

From the 'Newbern (N.C.) Spectator,' Dec 2. 1836.

"\$200 REWARD. Ranaway from the subscriber, about three years ago, a certain negro man named Ben, commonly known by the name of Ben Fox. He had but one eye. Also, one other negro, by the name of Rigdon, who ranaway on the 8th of this month.

"I will give the reward of one hundred dollars for each of the above negroes, to be delivered to me or confined in the jail of Lenoir or Jones

county, or FOR THE KILLING OF THEM, SO THAT I CAN SEE THEM.
W.D. COBB."

In the same number of the Spectator two Justices of the Peace advertise the same runaways, and give notice that if they do not immediately return to W.D. Cobb, their master, they will be considered as outlaws, and any body may kill them. The following is an extract from the proclamation of the JUSTICES.

"And we do hereby, by virtue of an act of the assembly of this state, concerning servants and slaves, intimate and declare, if the said slaves do not surrender themselves and return home to their master immediately after the publication of these presents, *that any person may kill and destroy said slaves by such means as he or they think fit, without accusation or impeachment of any crime or offence for so doing, or without incurring any penalty or forfeiture thereby.*

"Given under our hands and seals, this 12th November, 1836.

"B. COLEMAN, J.P. [Seal.]

"JAS. JONES, J.P. [Seal.]"

On the 28th, of April 1836, in the city of St Louis, Missouri, a black man, named McIntosh who had stabbed an officer, that had arrested him, was seized by the multitude, fastened to a tree *in the midst of the city*, wood piled around him, and in open day and in the presence of an immense throng of citizens, he was burned to death. The Alton (Ill.) Telegraph, in its account of the scene says;

"All was silent as death while the executioners were piling wood around their victim. He said not a word, until feeling that the flames had seized upon him. He then uttered an awful howl, attempting to sing and pray, then hung his head, and suffered in silence, except in the following instance:— After the flames had surrounded their prey, his eyes burnt out of his head, and his mouth seemingly parched to a cinder, some one in the crowd, more compassionate than the rest, proposed to put an end to his misery by shooting him, when it was replied, 'that would be of no use, since he was already out of pain.' 'No, no,' said the wretch, 'I am not, I am suffering as much as ever; shoot me, shoot me.' 'No, no,' said one of the fiends who was

standing about the sacrifice they were roasting, 'he shall not be shot. *I would sooner slacken the fire, if that would increase his misery;*' and the man who said this was, as we understand, an OFFICER OF JUSTICE!"

The St. Louis correspondent of a New York paper adds,

"The shrieks and groans of the victim were loud and piercing, and to observe one limb after another drop into the fire was awful indeed. He was about fifteen minutes in dying. I visited the place this morning, and saw his body, or the remains of it, at the place of execution. He was burnt to a crump. His legs and arms were gone, and only a part of his head and body were left."

Lest this demonstration of 'public opinion' should be regarded as a sudden impulse merely, not an index of the settled tone of feeling in that community, it is important to add, that the Hon. Luke E. Lawless, Judge of the Circuit Court of Missouri, at a session of that Court in the city of St. Louis, some months after the burning of McIntosh was the act, either directly or by countenance of a *majority* of the citizens, it is 'a case which transcends the jurisdiction,' of the Grand Jury! Thus the state of Missouri has proclaimed to the world, that the wretches who perpetrated that unspeakably diabolical murder, and the thousands that stood by consenting to it, were *her representatives*, and the Bench sanctifies it with the solemnity of a judicial decision.

The 'New Orleans Post,' of June 7, 1836, publishes the following;

"We understand, that a negro man was lately condemned, by the mob, to be BURNED OVER A SLOW FIRE, which was put into execution at Grand Gulf, Mississippi, for murdering a black woman, and her master."

Mr. HENRY BRADLEY, of Pennyan, N.Y., has furnished us with an extract of a letter written by a gentleman in Mississippi to his brother in that village, detailing the particulars of the preceding transaction. The letter is dated Grand Gulf, Miss. August 15, 1836. The extract is as follows:

"I left Vicksburg and came to Grand Gulf. This is a fine place immediately on the banks of the Mississippi, of something like fifteen hundred inhabitants in the winter, and at this time, I suppose, there are not over two hundred white inhabitants, but in the town and its vicinity there are negroes

by thousands. The day I arrived at this place there was a man by the name of G—— murdered by a negro man that belonged to him. G—— was born and brought up in A——, state of New York. His father and mother now live south of A——. He has left a property here, it is supposed, of forty thousand dollars, and no family.

"They took the negro, mounted him on a horse, led the horse under a tree, put a rope around his neck, raised him up by throwing the rope over a limb; they then got into a quarrel among themselves; some swore that he should be burnt alive; the rope was cut and the negro dropped to the ground. He immediately jumped to his feet; they then made him walk a short distance to a tree; he was then tied fast and a fire kindled, when another quarrel took place; the fire was pulled away from him when about half dead, and a committee of twelve appointed to say in what manner he should be disposed of. They brought in that he should then be cut down, his head cut off, his body burned, and his head stuck on a pole at the corner of the road in the edge of the town. That was done and all parties satisfied!

"G—— *owned the negro's wife, and was in the habit of sleeping with her!* The negro said he had killed him, and he believed he should be rewarded in heaven for it.

"This is but one instance among many of a similar nature.

S.S."

We have received a more detailed account of this transaction from Mr. William Armstrong, of Putnam, Ohio, through Maj. Horace Nye, of that place. Mr. A. who has been for some years employed as captain and supercargo of boats descending the river, was at Grand Gulf at the time of the tragedy, and *witnessed* it. It was on the Sabbath. From Mr. Armstrong's statement, it appears that the slave was a man of uncommon intelligence; had the over-sight of a large business—superintended the purchase of supplies for his master, &c.—that exasperated by the intercourse of his master with his wife, he was upbraiding her one evening, when his master overhearing him, went out to quell him, was attacked by the infuriated man and killed on the spot. The name of the master was Green; he was a native of Auburn, New York, and had been at the south but a few years.

Mr. EZEKIEL BIRDSEYE, of Cornwall, Conn., a gentleman well known and highly respected in Litchfield county, who resided a number of years in South Carolina, gives the following testimony:—

"A man by the name of Waters was killed by his slaves, in Newberry District. Three of them were tried before the court, and ordered to be burnt. I was but a few miles distant at the time, and conversed with those who saw the execution. The slaves were tied to a stake, and pitch pine wood piled around them, to which the fire was communicated. Thousands were collected to witness this barbarous transaction. *Other executions of this kind took place in various parts of the state, during my residence in it, from 1818 to 1824.* About three or four years ago, a young negro was burnt in Abbeville District, for an attempt at rape."

In the fall of 1837, there was a rumor of a projected insurrection on the Red River, in Louisiana. The citizens forthwith seized and hanged NINE SLAVES, AND THREE FREE COLORED MEN, WITHOUT TRIAL. A few months previous to that transaction, a slave was seized in a similar manner and publicly burned to death, in Arkansas. In July, 1835, the citizens of Madison county, Mississippi, were alarmed by rumors of an insurrection arrested five slaves and publicly executed them without trial.

The Missouri Republican, April 30, 1838, gives the particulars of the deliberate murder of a negro man named Tom, a cook on board the steamboat Pawnee, on her passage up from New Orleans to St. Louis. Some of the facts stated by the Republican are the following:

"On Friday night, about 10 o'clock, a deaf and dumb German girl was found in the storeroom with Tom. The door was locked, and at first Tom denied she was there. The girl's father came. Tom unlocked the door, and the girl was found secreted in the room behind a barrel. The next morning some four or five of the deck passengers spoke to the captain about it. This was about breakfast time. Immediately after he left the deck, a number of the deck passengers rushed upon the negro, bound his arms behind his back and carried him forward to the bow of the boat. A voice cried out 'throw him overboard,' and was responded to from every quarter of the deck—and in an instant he was plunged into the river. The whole scene of tying him and

throwing him overboard scarcely occupied *ten minutes*, and was so precipitate that the officers were unable to interfere in time to save him.

"There were between two hundred and fifty and three hundred passengers on board."

The whole process of seizing Tom, dragging him upon deck, binding his arms behind his back, forcing him to the bow of the boat, and throwing him overboard, occupied, the editor informs us, about TEN MINUTES, and of the two hundred and fifty or three hundred deck passengers, with perhaps as many cabin passengers, it does not appear that *a single individual raised a finger to prevent this deliberate murder*; and the cry "throw him overboard," was it seems, "responded to from every quarter of the deck!"

Rev. JAMES A. THOME, of Augusta, Ky., son of Arthur Thome, Esq., till recently a slaveholder, published five years since the following description of a scene witnessed by him in New Orleans:

"In December of 1833, I landed at New Orleans, in the steamer W——. It was after night, dark and rainy. The passengers were called out of the cabin, from the enjoyment of a fire, which the cold, damp atmosphere rendered very comfortable, by a sudden shout of, 'catch him—catch him—catch the negro.' The cry was answered by a hundred voices—'Catch him—*kill* him,' and a rush from every direction toward our boat, indicated that the object of pursuit was near. The next moment we heard a man plunge into the river, a few paces above us. A crowd gathered upon the shore, with lamps and stones, and clubs, still crying, 'catch him—kill him—catch him—shoot him.'

"I soon discovered the poor man. He had taken refuge under the prow of another boat, and was standing in the water up to his waist. The angry vociferation of his pursuers, did not intimidate him. He defied them all. 'Don't you *dare* to come near me, or I will sink you in the river.' He was armed with despair. For a moment the mob was palsied by the energy of his threatenings. They were afraid to go to him with a skiff, but a number of them went on to the boat and tried to seize him. They threw a noose rope down repeatedly, *that they might pull him up by the neck!* but he planted his hand firmly against the boat and dashed the rope away with his arms. One of them took a long bar of wood, and leaning over the prow, endeavored to

strike him on the head, The blow must have shattered the skull, but it did not reach low enough. The monster raised up the heavy club again and said, 'Come out now, you old rascal, or die.' 'Strike,' said the negro; 'strike—shiver my brains *now*; I want to die;' and down went the club again, without striking. This was repeated several times. The mob, seeing their efforts fruitless, became more enraged and threatened to stone him, if he did not surrender himself into their hands. He again defied them, and declared that he would drown himself in the river, before they should have him. They then resorted to persuasion, and promised they would not hurt him. 'I'll die first;' was his only reply. Even the furious mob was awed, and for a while stood dumb.

"After standing in the cold water for an hour, the miserable being began to fail. We observed him gradually sinking—his voice grew weak and tremulous—yet he continued to *curse*! In the midst of his oaths he uttered broken sentences—'I didn't steal the meat—I didn't steal—my master lives—master—master lives up the river—(his voice began to gurgle in his throat, and he was so chilled that his teeth chattered audibly)—I didn't—steal—I didn't steal—my—my master—my—I want to see my master—I didn't—no—my mas—you want—you want to kill me—I didn't steal the'—His last words could just be heard as he sunk under the water.

"During this indescribable scene, *not one of the hundred that stood around made any effort to save the man until he was apparently drowned*. He was then dragged out and stretched on the bow of the boat, and soon sufficient means were used for his recovery. The brutal captain ordered him to be taken off his boat—declaring, with an oath, that he would throw him into the river again, if he was not immediately removed. I withdrew, sick and horrified with this appalling exhibition of wickedness.

"Upon inquiry, I learned that the colored man lived some fifty miles up the Mississippi; that he had been charged with stealing some article from the wharf; was fired upon with a pistol, and pursued by the mob.

"In reflecting upon this unmingled cruelty—this insensibility to suffering and disregard of life—I exclaimed,

'Is there no flesh in man's obdurate heart?'

"One poor man, chased like a wolf by a hundred blood hounds, yelling, howling, and gnashing their teeth upon him—plunges into the cold river to seek protection! A crowd of spectators witness the scene, with all the composure with which a Roman populace would look upon a gladiatorial show. Not a voice heard in the sufferer's behalf. At length the powers of nature give way; the blood flows back to the heart—the teeth chatter—the voice trembles and dies, while the victim drops down into his grave.

"What an atrocious system is that which leaves two millions of souls, friendless and powerless—hunted and chased—afflicted and tortured and driven to death, without the means of redress.—Yet such is the system of slavery."

The 'public opinion' of slaveholders is illustrated by scores of announcements in southern papers, like the following, from the Raleigh, (N.C.) Register, August 20, 1838. Joseph Gale and Son, editors and proprietors—the father and brother of the editor of the National Intelligence, Washington city, D.C.

"On Saturday night, Mr. George Holmes, of this county, and some of his friends, were in pursuit of a runaway slave (the property of Mr. Holmes) and fell in with him in attempting to make his escape. Mr. H. discharged a gun at his legs, for the purpose of disabling him; but unfortunately, the slave stumbled, and the shot struck him near the small of the back, of which wound he died in a short time. The slave continued to run some distance after he was shot, until overtaken by one of the party. We are satisfied, from all that we can learn, that Mr. H. had no intention of inflicting a mortal wound."

Oh! the *gentleman*, it seems, only shot at his legs, merely to 'disable'—and it must be expected that every *gentleman* will amuse himself in shooting at his own property whenever the notion takes him, and if he should happen to hit a little higher and go through the small of the back instead of the legs, why every body says it is 'unfortunate,' and the whole of the editorial corps, instead of branding him as a barbarous wretch for shooting at his slave, whatever part be aimed at, join with the oldest editor in North Carolina, in complacently exonerating Mr. Holmes by saying, "We are satisfied that Mr.

H. had no intention of inflicting a mortal wound." And so 'public opinion' wraps it up!

The Franklin (La.) Republican, August 19, 1837, has the following:

"NEGROES TAKEN.—Four gentlemen of this vicinity, went out yesterday for the purpose of finding the camp of some noted runaways, supposed to be near this place; the camp was discovered about 11 o'clock, the negroes four in number, three men and one woman, finding they were discovered, tried to make their escape through the cane; two of them were fired on, one of which made his escape; the other one fell after running a short distance, his wounds are not supposed to be dangerous; the other man was taken without any hurt; the woman also made her escape."

Thus terminated the mornings amusement of the '*four gentlemen*,' whose exploits are so complacently chronicled by the editor of the Franklin Republican. The three men and one woman were all fired upon, it seems, though only one of them was shot down. The half famished runaways made not the least resistance, they merely rushed in panic among the canes, at the sight of their pursuers, and the bullets whistled after them and brought to the ground one poor fellow, who was carried back by his captors as a trophy of the 'public opinion' among slaveholders.

In the Macon (Ga.) Telegraph, Nov. 27, 1838, we find the following account of a runaway's den, and of the good luck of a 'Mr. Adams,' in running down one of them 'with his excellent dogs:'

"A runaway's den was discovered on Sunday near the Washington Spring, in a little patch of woods, where it had been for several months, so artfully concealed under ground, that it was detected only by accident, though in sight of two or three houses, and near the road and fields where there has been constant daily passing. The entrance was concealed by a pile of pine straw, representing a hog bed—which being removed, discovered a trap door and steps that led to a room about six feet square, comfortably ceiled with plank, containing a small fire-place the flue of which was ingeniously conducted above ground and concealed by the straw. The inmates took the alarm and made their escape; but Mr. Adams and his excellent dogs being put upon the trail, soon run down and secured one of them, which proved to be a negro fellow who had been out about a year. He stated that the other

occupant was a woman, who had been a runaway a still longer time. In the den was found a quantity of meal, bacon, corn, potatoes, &c., and various cooking utensils and wearing apparel."

Yes, Mr. Adams' 'EXCELLENT DOGS' did the work! They were well trained, swift, fresh, keen-scented, 'excellent' men-hunters, and though the poor fugitive in his frenzied rush for liberty, strained every muscle, yet they gained upon him, and after dashing through fens, brier-beds, and the tangled undergrowth till faint and torn, he sinks, and the blood-hounds are upon him. What blood-vessels the poor struggler burst in his desperate push for life—how much he was bruised and lacerated in his plunge through the forest, or how much the dogs tore him, the Macon editor has not chronicled—they are matters of no moment—but his heart is touched with the merits of Mr. Adams' 'EXCELLENT DOGS,' that 'soon *run down* and *secured*' a guiltless and trembling human creature!

The Georgia Constitutionalist, of Jan. 1837, contains the following letter from the coroner of Barnwell District, South Carolina, dated Aiken, S.C. Dec. 20, 1836.

"To the Editor of the Constitutionalist:

"I have just returned from an inquest I held over the body of a negro man, a runaway, that was shot near the South Edisto, in this District, (Barnwell,) on Saturday last. He came to his death by his own recklessness. He refused to be taken alive—and said that other attempts to take him had been made, and he was determined that he would not be taken. He was at first, (when those in pursuit of him found it absolutely necessary,) shot at with small shot, with the intention of merely crippling him. He was shot at several times, and at last he was so disabled as to be compelled to surrender. He kept in the run of a creek in a very dense swamp all the time that the neighbors were in pursuit of him. As soon as the negro was taken, the best medical aid was procured, but he died on the same evening. One of the witnesses at the Inquisition, stated that the negro boy said he was from Mississippi, and belonged to so many persons, that he did not know who his master was, but again he said his master's name was Brown. He said his name was Sam, and when asked by another witness, who his master was, he muttered something like Augusta or Augustine. The boy was apparently above thirty-five or

forty years of age, about six feet high, slightly yellow in the face, very long beard or whiskers, and very stout built, and a stern countenance; and appeared to have been a runaway for a long time.

WILLIAM H. PRITCHARD,

The Norfolk (Va.) Herald, of Feb. 1837, has the following:

"Three negroes in a ship's yawl, came on shore yesterday evening, near New Point Comfort, and were soon after apprehended and lodged in jail. Their story is, that they belonged to a brig from New York bound to Havana, which was cast away to the southward of Cape Henry, some day last week; that the brig was called the Maria, Captain Whittemore. I have no doubt they are deserters from some vessel in the bay, as their statements are very confused and inconsistent. One of these fellows is a mulatto, and calls himself Isaac Turner; the other two are quite black, the one passing by the name of James Jones and the other John Murray. They have all their clothing with them, and are dressed in sea-faring apparel. They attempted to make their escape, and *it was not till a musket was fired at them, and one of them slightly wounded*, that they surrendered. They will be kept in jail till something further is discovered respecting them."

The 'St. Francisville (La.) Chronicle,' of Feb. 1, 1839. Gives the following account of a 'negro hunt,' in that Parish.

"Two or three days since a gentleman of this parish, in *hunting runaway negroes*, came upon a camp of them in the swamp on Cat Island. He succeeded in arresting two of them, but the third made fight; and upon *being shot in the shoulder*, fled to a sluice, where the *dogs succeeded* in drowning him before assistance could arrive."

"'The dogs *succeeded* in drowning him'! Poor fellow! He tried hard for his life, plunged into the sluice, and, with a bullet in his shoulder, and the blood hounds unflinching his bones, he bore up for a moment with feeble stroke as best he might, but 'public opinion,' *'succeeded* in drowning him,' and the same 'public opinion,' calls the man who fired and crippled him, and cheered on the dogs, 'a gentleman,' and the editor who celebrates the exploit is a 'gentleman' also!"

A large number of extracts similar to the above, might here be inserted from Southern newspapers in our possession, but the foregoing are more than sufficient for our purpose, and we bring to a close the testimony on this point, with the following. Extract of a letter, from the Rev. Samuel J. May, of South Scituate, Mass. dated Dec. 20, 1838.

"You doubtless recollect the narrative given in the *Oasis*, of a slave in Georgia, who having ranaway from his master, (accounted a very hospitable and even humane gentleman,) was hunted by his master and his retainers with horses, dogs, and rifles, and having been driven into a tree by the hounds, was shot down by his more cruel pursuers. All the facts there given, and some others equally shocking, connected with the same case, were first communicated to me in 1833, by Mr. W. Russell, a highly respectable teacher of youth in Boston. He is doubtless ready to vouch for them. The same gentleman informed me that he was keeping school on or near the plantation of the monster who perpetrated the above outrage upon humanity, that he was even invited by him to join in the hunt, and when he expressed abhorrence at the thought, the planter holding up the rifle which he had in his hand said with an oath, 'damn that rascal, this is the third time he has runaway, and he shall never run again. I'd rather put a ball into his side, than into the best buck in the land.'"

Mr. Russell, in the account given by him of this tragedy in the '*Oasis*,' page 267, thus describes the slaveholder who made the above expression, and was the leader of the 'hunt,' and in whose family he resided at the time as an instructor he says of him—he was "an opulent planter, in whose family the evils of slaveholding were palliated by every expedient that a humane and generous disposition could suggest. He was a man of noble and elevated character, and distinguished for his generosity, and kindness of heart."

In a letter to Mr. May, dated Feb. 3, 1839, Mr. Russell, speaking of the hunting of runaways with dogs and guns, says: "Occurrences of a nature similar to the one related in the '*Oasis*,' were not unfrequent in the interior of Georgia and South Carolina twenty years ago. *Several* such fell under my notice within the space of fifteen months. In two such 'hunts,' I was solicited to join."

The following was written by a sister-in-law of Gerrit Smith, Esq., Peterboro. She is married to the son of a North Carolinian.

"In North Carolina, some years ago, several slaves were arrested for committing serious crimes and depredations, in the neighborhood of Wilmington, among other things, burning houses, and, in one or more instances, murder.

"It happened that the wife of one of these slaves resided in one of the most respectable families in W. in the capacity of nurse. Mr. J. *the first lawyer in the place*, came into the room, where the lady of the house, was sitting, with the nurse, who held a child in her arms, and, addressing the nurse, said, Hannah! would you know your husband if you should see him?—Oh, yes, sir, she replied—When HE DREW FROM BENEATH HIS CLOAK THE HEAD OF THE SLAVE, at the sight of which the poor woman immediately fainted. The heads of the others were placed upon poles, in some part of the town, afterwards known as 'Negro Head Point.'"

We have just received the above testimony, enclosed in a letter from Mr. Smith, in which he says, "that the fact stated by my sister-in-law, actually occurred, there can be no doubt."

The following extract from the Diary of the Rev. ELIAS CORNELIUS, we insert here, having neglected to do it under a preceding head, to which it more appropriately belongs.

"New Orleans, Sabbath, February 15, 1818. Early this morning accompanied A.H. Esq. to the *hospital*, with the view of making arrangements to preach to such of the sick as could understand English. The first room we entered presented a scene of human misery, such as I had never before witnessed. A poor negro man was lying upon a couch, apparently in great distress; a more miserable object can hardly be conceived. His face was much *disfigured*, an IRON COLLAR, TWO INCHES WIDE AND HALF AN INCH THICK, WAS CLASPED ABOUT HIS NECK, while one of his feet and part of the leg were in a state of putrefaction. We inquired the cause of his being in this distressing condition, and he answered us in a faltering voice, that he was willing to tell us all the truth.

"He belonged to Mr. —— a Frenchman, ran-away, was caught, and punished with one hundred lashes! This happened about Christmas; and during the cold weather at that time, he was confined in the *Cane-house*, with a scanty portion of clothing, and without fire. In this situation his foot had frozen, and mortified, and having been removed from place to place, he was yesterday brought here by order of his new master, who was an American. I had no time to protract my conversation with him then, but resolved to return in a few hours and pray with him.

"Having returned home, I again visited the hospital at half past eleven o'clock, and concluded first of all [he was to preach at 12,] to pray with the poor lacerated negro. I entered the apartment in which he lay, and observed an old man sitting upon a couch; but, without saying anything went up to the bed-side of the negro, who appeared to be asleep. I spoke to him, but he gave no answer. I spoke again, and moved his head, still he said nothing. My apprehensions were immediately excited, and I felt for his pulse, but it was gone. Said I to the old man, 'surely this negro is dead.' 'No,' he answered, 'he has fallen asleep, for he had a very restless season last night.' I again examined and called the old gentleman to the bed, and alas, it was found true, that he was dead. Not an eye had witnessed his last struggle, and I was the first, as it should happen, to discover the fact. I called several men into the room, and without ceremony they wrapped him in a sheet, and carried him to the *dead-house* as it is called."—Edwards' Life of Rev. Elias Cornelius, pp. 101, 2, 3.

THE PROTECTION EXTENDED BY 'PUBLIC OPINION,' TO THE HEALTH[[38](#)] OF THE SLAVES.

This may be judged of from the fact that it is perfectly notorious among slaveholders, both North and South, that of the tens of thousands of slaves sold annually in the northern slave states to be transported to the south, large numbers of them die under the severe, process of acclimation, *all* suffer more or less, and multitudes *much*, in their health and strength, during their first years in the far south and south west. That such is the case is sufficiently proved by the care taken by all who advertise for sale or hire in Louisiana, Mississippi, Alabama, Arkansas, &c. to inform the reader, that their slaves are 'Creoles,' 'southern born,' 'country born,' &c. or if they are from the north, that they are 'acclimated,' and the importance attached to

their *acclimation*, is shown in the fact, that it is generally distinguished from the rest of the advertisements either by *italics* or CAPITALS. Almost every newspaper published in the states far south contains advertisements like the following.

[Footnote [38](#): See pp. 37-39.]

From the "Vicksburg (Mi.) Register," Dec. 27, 1838.

"I OFFER my plantation for sale. Also seventy-five *acclimated Negroes*. O.B. COBB."

From the "Southerner," June 7, 1837.

"I WILL sell my Old-River plantation near Columbia in Arkansas;—also ONE HUNDRED AND THIRTY ACCLIMATED SLAVES.

BENJ. HUGHES."

From the "Planters' (La.) Intelligencer," March 22.

"Probate sale—Will be offered for sale at Public Auction, to the highest bidder, ONE HUNDRED AND THIRTY *acclimated* slaves."

G.W. KEETON.

From the "Arkansas Advocate," May 22, 1837.

"By virtue of a Deed of Trust, executed to me, I will sell at public auction at Fisher's Prairie, Arkansas, sixty LIKELY NEGROES, consisting of Men, Women, Boys and Girls, the most of whom are WELL ACCLIMATED.

GRANDISON D. ROYSTON, *Trustee*."

From the "New Orleans Bee," Feb. 9, 1838.

"VALUABLE ACCLIMATED NEGROES"

"Will be sold on Saturday, 10th inst. at 12 o'clock, at the city exchange, St. Louis street."

Then follows a description of the slaves, closing with the same assertion, which forms the caption of the advertisement "ALL ACCLIMATED."

General Felix Houston, of Natchez, advertises in the "Natchez Courier," April 6, 1838, "Thirty five very fine *acclimated* Negroes."

Without inserting more advertisements, suffice it to say, that when slaves are advertised for sale or hire, in the lower southern country, if they are *natives*, or have lived in that region long enough to become acclimated, it is *invariably* stated.

But we are not left to *conjecture* the amount of suffering experienced by slaves from the north in undergoing the severe process of 'seasoning' to the climate, or '*acclimation*' A writer in the New Orleans Argus, September, 1830, in an article on the culture of the sugar cane, says; 'The loss by *death* in bringing slaves from a northern climate, which our planters are under the necessity of doing, is not less than TWENTY-FIVE PER CENT.'

Notwithstanding the immense amount of suffering endured in the process of acclimation, and the fearful waste of life, and the *notoriety* of this fact, still the 'public opinion' of Virginia, Maryland, Delaware, Kentucky, Missouri, &c. annually DRIVES to the far south, thousands of their slaves to undergo these sufferings, and the 'public opinion,' of the far south buys them, and forces the helpless victims to endure them.

THE 'PROTECTION' VOUCHSAFED BY 'PUBLIC OPINION,' TO LIBERTY.

This is shown by hundreds of advertisements in southern papers, like the following:

From the "Mobile Register," July 21. 1837. "WILL BE SOLD CHEAP FOR CASH, in front of the Court House of Mobile County, on the 22d day of July next, one mulatto man named HENRY HALL, WHO SAYS HE IS FREE; his owner or owners, *if any*, having failed to demand him, he is to be sold according to the statute in such cases made and provided, *to pay Jail fees*.

WM. MAGEE, Sh'ff M.C."

From the "Grand Gulf (Miss.) Advertiser," Dec. 7, 1838.

"COMMITTED to the jail of Chickasaw Co. Edmund, Martha, John and Louisa; the man 50, the woman 35, John 3 years old, and Louisa 14 months. They say they are FREE and were decoyed to this state."

The "Southern Argus," of July 25, 1837, contains the following.

"RANAWAY from my plantation, a negro boy named William. Said boy was taken up by Thomas Walton, and says *he was free*, and that his parents live near Shawneetown, Illinois, and that he was *taken* from that place in July 1836; says his father's name is William, and his mother's Sally Brown, and that they moved from Fredericksburg, Virginia. I will give twenty dollars to any person who will deliver said boy to me or Col. Byrn, Columbus. SAMUEL H. BYRN"

The first of the following advertisements was a standing one, in the "Vicksburg Register," from Dec. 1835 till Aug. 1836. The second advertises

the same FREE man for sale.

"SHERIFF'S SALE" "COMMITTED, to the jail of Warren county, as a Runaway, on the 23d inst. a Negro man, who calls himself John J. Robinson; *says that he is free*, says that he kept a baker's shop in Columbus, Miss. and that he peddled through the Chickasaw nation to Pontotoc, and came to Memphis, where he sold his horse, took water, and came to this place. The owner of said boy is requested to come forward, prove property, pay charges, and take him away, or he will be dealt with as the law directs.

WM. EVERETT, Jailer.
Dec. 24, 1835"

"NOTICE is hereby given, that the above described boy, who calls himself John J. Robinson, having been confined in the Jail of Warren county as a Runaway, for six months—and having been regularly advertised during this period, I shall proceed to sell said Negro boy at public auction, to the highest bidder for cash, at the door of the Court House in Vicksburg, on Monday, 1st day of August, 1836, in pursuance of the statute in such cases made and provided.

E. W. MORRIS, Sheriff.
Vicksburg, July 2, 1836."

See "Newborn (N.C.) Spectator," of Jan. 5, 1838, for the following advertisement.

"RANAWAY, from the subscriber a negro man known as Frank Pilot. He is five feet eight inches high, dark complexion, and about 50 years old, *HAS BEEN FREE SINCE* 1829—is now my property, as heir at law of his last owner, *Samuel Ralston*, dec. I will give the above reward if he is taken and confined in any jail so that I can get him.

SAMUEL RALSTON. Pactolus, Pitt County."

From the Tuscaloosa (Ala.) "Flag of the Union," June 7.

"COMMITTED to the jail of Tuscaloosa county, a negro man, who says his name is Robert Winfield, and *says he is free*.

R.W. BARBER, *Jailer.*"

That "public opinion," in the slave states affords no protection to the liberty of colored persons, even after those persons become legally free, by the operation of their own laws, is declared by Governor Comegys, of Delaware, in his recent address to the Legislature of that state, Jan. 1839. The Governor, commenting upon the law of the state which provides that persons convicted of certain crimes shall be sold as servants for a limited time, says,

"The case is widely different with the negro(!) Although ordered to be disposed of as a servant for a term of years, perpetual slavery in the south is his inevitable doom; unless, peradventure, age or disease may have rendered him worthless, or some resident of the State, from motives of benevolence, will pay for him three or four times his intrinsic value. It matters not for how short a time he is ordered to be sold, so that he can be carried from the State. Once beyond its limits, all chance of restored freedom is gone—for he is removed far from the reach of any testimony to aid him in an effort to be released from bondage, when his legal term of servitude has expired. Of the many colored convicts sold out of the State, it is believed none ever return. Of course they are purchased with the express view to their transportation for life, and bring such enormous prices as to prevent all competition on the part of those of our citizens who require their services, and would keep them in the State."

From the "Memphis (Ten.) Enquirer," Dec. 28, 1838.

"\$50 REWARD. Ranaway, from the subscriber, on Thursday last, a negro man named Isaac, 22 years old, about 5 feet 10 or 11 inches high, dark complexion, well made, full face, speaks quick, and very correctly for a negro. *He was originally from New-York*, and no doubt will attempt to pass himself as free. I will give the above reward for his apprehension and delivery, or confinement, so that I obtain him, if taken out of the state, or \$30 if taken within the state.

JNO. SIMPSON. *Memphis, Dec. 28."*

Mark, with what shameless hardihood this JNO. SIMPSON, tells the public that *he knew* Isaac Wright was a free man! 'HE WAS ORIGINALLY FROM NEW YORK,' he tells us. And yet he adds with brazen effrontery, '*he will attempt to pass himself as free.*' This Isaac Wright, was shipped by a man

named Lewis, of New Bedford, Massachusetts, and sold as a slave in New Orleans. After passing through several hands, and being flogged nearly to death, he made his escape, and five days ago, (March 5,) returned to his friends in Philadelphia.

From the "Baltimore Sun," Dec. 23, 1838.

"FREE NEGROES—Merry Ewall, a FREE NEGRO, from Virginia, was committed to jail, at Snow Hill, Md. last week, for remaining in the State longer than is allowed by the law of 1831. The fine in his case amounts to \$225. Capril Purnell, a negro from Delaware, is now in jail in the same place, for a violation of the same act. His fine amounts to FOUR THOUSAND DOLLARS, and he WILL BE SOLD IN A SHORT TIME."

The following is the decision of the Supreme Court, of Louisiana, in the case of Gomez vs. Bonneval, Martin's La. Reports, 656, and Wheeler's "Law of Slavery," p. 380-1.

Marginal remark of the Compiler.—"A slave does not become free on his being illegally imported into the state."

"*Per Cur. Derbigny*, J. The petitioner is a negro in actual state of slavery; he claims his freedom, and is bound to prove it. In his attempt, however, to show that he was free before he was introduced into this country, he has failed, so that his claim rests entirely on the laws prohibiting the introduction of slaves in the United States. That the plaintiff was imported since that prohibition does exist is a fact sufficiently established by the evidence. What right he has acquired under the laws forbidding such importation is the only question which we have to examine. Formerly, while the act dividing Louisiana into two territories was in force in this country, slaves introduced here in contravention to it, were freed by operation of law; but that act was merged in the legislative provisions which were subsequently enacted on the subject of importation of slaves into the United States generally. Under the now existing laws, the individuals thus imported acquire *no personal right*, they are mere passive beings, who are disposed of *according to the will* of the different state legislatures. In this country they are to *remain slaves*, and TO BE SOLD FOR THE BENEFIT OF THE STATE. The plaintiff, therefore, has nothing to claim as a freeman; and as

to a mere change of master, should such be his wish, *he cannot be listened to in a court of justice.*"

Extract from a speech of Mr. Thomson of Penn. in Congress, March 1, 1826, on the prisons in the District of Columbia.

"I visited the prisons twice that I might myself ascertain the truth. * * In one of these cells (but eight feet square,) were confined at that time, seven persons, three women and four children. The children were confined under a strange system of law in this District, by which a colored person who *alleges* HE IS FREE, and appeals to the tribunals of the country, to have the matter tried, is COMMITTED TO PRISON, till the decision takes place. They were almost naked—one of them was sick, lying on the damp brick floor, *without bed, pillow, or covering*. In this abominable cell, seven human beings were confined day by day, and night after night, without a bed, chair, or stool, or any other of the most common necessities of life."—*Gales' Congressional Debates*, v.2, p.1480.

The following facts serve to show, that the present generation of slaveholders do but follow in the footsteps of their fathers, in their zeal for LIBERTY.

Extract from a document submitted by the Committee of the yearly meeting of Friends in Philadelphia, to the Committee of Congress, to whom was referred the memorial of the people called Quakers, in 1797.

"In the latter part of the year 1776, several of the people called Quakers, residing in the counties of Perquimans and Pasquotank, in the state of North Carolina, liberated their negroes, as it was then clear there was no existing law to prevent their so doing; for the law of 1741 could not at that time be carried into effect; and they were suffered to remain free, until a law passed, in the spring of 1777, under which they were taken up and sold, contrary to the Bill of Rights, recognized in the constitution of that state, as a part thereof, and to which it was annexed.

"In the spring of 1777, when the General Assembly met for the first time, a law was enacted to prevent slaves from being emancipated, except for meritorious services, &c. to be judged of by the county courts or the general assembly; and ordering, that if any should be manumitted in any other way,

they be taken up, and the county courts within whose jurisdictions they are apprehended should order them to be sold. Under this law the county courts of Perquimans and Pasquotank, in the year 1777, ordered A LARGE NUMBER OF PERSONS TO BE SOLD, WHO WERE FREE AT THE TIME THE LAW WAS MADE. In the year 1778 several of those cases were, by certiorari, brought before the superior court for the district of Edentorn, where the decisions of the county courts were reversed, the superior court declaring, that said county courts, in such their proceedings, have exceeded their jurisdiction, violated the rights of the subject, and acted in direct opposition to the Bill of Rights of this state, considered justly as part of the constitution thereof; by giving to a law, not intended to affect this case, a retrospective operation, thereby to deprive free men of this state of their liberty, contrary to the laws of the land. In consequence of this decree several of the negroes were again set at liberty; but the next General Assembly, early in 1779, passed a law, wherein they mention, that doubts have arisen, whether the purchasers of such slaves have a good and legal title thereto, and CONFIRM the same; under which they were again taken up by the purchasers and reduced to slavery."

[The number of persons thus re-enslaved was 134.]

The following are the decrees of the Courts, ordering the sale of those freemen:—

"Perquimans County, July term, at Hartford, A.D. 1777.

"These may certify, that it was then and there ordered, that the sheriff of the county, to-morrow morning, at ten o'clock, expose to sale, to the highest bidder, for ready money, at the court-house door, the several negroes taken up as free, and in his custody, agreeable to law.

"Test. WM. SKINNER, Clerk. "A true copy, 25th August, 1791. "Test. J. HARVEY, Clerk."

"Pasquotank County, September Court, &c. &c. 1777.

"Present, the Worshipful Thomas Boyd, Timothy Hickson, John Paelin, Edmund Clancey, Joseph Reading, and Thomas Rees, Esqrs. Justices.

"It was then and there ordered, that Thomas Reading, Esq. take the FREE negroes taken up under an act to prevent domestic insurrections and other purposes, and expose the same to *the best bidder*, at public vendue, for ready money, and be accountable for the same, agreeable to the aforesaid act; and make return to this or the next succeeding court of his proceedings.

"A copy. ENOCH REESE, C.C."

THE PROTECTION OF "PUBLIC OPINION" TO DOMESTICS TIES.

The barbarous indifference with which slaveholders regard the forcible sundering of husbands and wives, parents and children, brothers and sisters, and the unfeeling brutality indicated by the language in which they describe the efforts made by the slaves, in their yearnings after those from whom they have been torn away, reveals a 'public opinion' towards them as dead to their agony as if they were cattle. It is well nigh impossible to open a southern paper without finding evidence of this. Though the truth of this assertion can hardly be called in question, we subjoin a few illustrations, and could easily give hundreds.

From the "Savannah Georgian," Jan. 17, 1839. "\$100 reward will be given for my two fellows, Abram and Frank. Abram has a *wife* at Colonel Stewart's, in Liberty county, and a *sister* in Savannah, at Capt. Grovenstine's. Frank has a *wife* at Mr. Le Cont's, Liberty county; a *mother* at Thunderbolt, and a *sister* in Savannah.

WM. ROBARTS. Wallhourville, 5th Jan. 1839"

From the "Lexington (Ky.) Intelligencer." July 7, 1838.

"\$160 Reward.—Ranaway from the subscribers living in this city, on Saturday 16th inst. a negro man, named Dick, about 37 years of age. It is highly probable said boy will make for New Orleans as *he has a wife* living in that city, and he has been heard to say frequently that *he was determined to go to New Orleans*.

"DRAKE C. THOMPSON. "Lexington, June 17, 1838"

From the "Southern Argus," Oct. 31, 1837.

"Runaway—my negro man, Frederick, about 20 years of age. He is no doubt near the plantation of G.W. Corprew, Esq of Noxubbee County, Mississippi, as *his wife belongs to that gentleman, and he followed her from my residence*. The above reward will be paid to any one who will confine him in jail and inform me of it at Athens, Ala. "Athens, Alabama. KERKMAN LEWIS."

From the "Savannah Georgian," July 8, 1837.

"Ran away from the subscriber, his man Joe. He visits the city occasionally, where he has been harbored by his *mother and sister*. I will give one hundred dollars for proof sufficient to *convict his harborers*. R.P.T. MONGIN."

The "Macon (Georgia) Messenger," Nov. 23, 1837, has the following:—

"\$25 Reward.—Ran away, a negro man, named Cain. He was brought from Florida, and *has a wife near Mariana*, and probably will attempt to make his way there. H.L. COOK."

From the "Richmond (Va.) Whig," July 25, 1837.

"Absconded from the subscriber, a negro man, by the name of Wilson. He was born in the county of New Kent, and raised by a gentleman named Ratliffe, and by him sold to a gentleman named Taylor, on whose farm he had a *wife and several children*. Mr. Taylor sold him to a Mr. Slater, who, in consequence of removing to Alabama, Wilson left; and when retaken was sold, and afterwards purchased, by his present owner, from T. McCargo and Co. of Richmond."

From the "Savannah (Ga.) Republican," Sept. 3, 1838.

"\$20 Reward for my negro man Jim.—Jim is about 50 or 55 years of age. It is probable he will aim for Savannah, as he said *he had children* in that vicinity.

J.G. OWENS.

From the "Staunton (Va.) Spectator," Jan. 3, 1839.

"Runaway, Jesse.—He has a *wife*, who belongs to Mr. John Ruff, of Lexington, Rockbridge county, and he may probably be lurking in that neighborhood. MOSES McCUE."

From the "Augusta (Georgia) Chronicle," July 10, 1837.

"\$120 Reward for my negro Charlotte. She is about 20 years old. She was purchased some months past from Mr. Thomas. J. Walton, of Augusta, by Thomas W. Oliver; and, as her *mother* and acquaintances live in that city, it is very likely she is *harbored* by some of them. MARTHA OLIVER."

From the "Raleigh (N.C.) Register," July 18, 1837.

Ranaway from the subscriber, a negro man named Jim, the property of Mrs. Elizabeth Whitfield. He *has a wife* at the late Hardy Jones', and may probably be lurking in that neighborhood. JOHN O'RORKE."

From the "Richmond (Va.) Compiler," Sept. 8, 1837.

"Ranaway from the subscriber, Ben. He ran off without any known cause, and *I suppose he is aiming to go to his wife, who was carried from the neighborhood last winter.* JOHN HUNT."

From the "Charleston (S.C.) Mercury," Aug. 1, 1837.

"Absconded from Mr. E.D. Bailey, on Wadmalaw, his negro man, named Saby. Said fellow was purchased in January, from Francis Dickinson, of St. Paul's parish, and is probably now in that neighborhood, *where he has a wife.* THOMAS N. GADSDEN."

From the "Portsmouth (Va.) Times," August 3, 1838.

"\$50 dollars Reward will be given for the apprehension of my negro man Isaac. He *has a wife* at James M. Riddick's, of Gates county, N.C. where he may probably be lurking. C. MILLER."

From the "Savannah (Georgia) Republican." May 24, 1838.

"\$40 Reward.—Ran away from the subscriber in Savannah, his negro girl Patsey. She was purchased among the gang of negroes, known as the

Hargreave's estate. She is no doubt lurking about Liberty county, at which place *she has relatives*. EDWARD HOUSTOUN, of Florida"

From the "Charleston (S.C.) Courier," June 29, 1837.

"\$20 Reward will be paid for the apprehension and delivery, at the workhouse in Charleston, of a mulatto woman, named Ida. It is probable she may have made her way into Georgia, where she has *connections*. MATTHEW MUGGRIDGE."

From the "Norfolk (Va.) Beacon," March 31, 1838.

"The subscriber will give \$20 for the apprehension of his negro woman, Maria, who ran away about twelve months since. She is known to be lurking in or about Chuckatuch, in the county of Nansemond, where *she has a husband*, and *formerly belonged*. PETER ONEILL."

From the "Macon (Georgia) Messenger," Jan. 16, 1839.

"Ranaway from the subscriber, two negroes, Davis, a man about 45 years old; also Peggy, his wife, near the same age. Said negroes will probably make their way to Columbia county, as *they have children* living in that county. I will liberally reward any person who may deliver them to me. NEHEMIAH KING."

From the "Petersburg (Va.) Constellation," June 27, 1837.

"Ranaway, a negro man, named Peter. *He has a wife* at the plantation of Mr. C. Haws, near Suffolk, where it is supposed he is still lurking. JOHN L. DUNN."

From the "Richmond (Va.) Whig," Dec. 7, 1739.

"Ranaway from the subscriber, a negro man, named John Lewis. It is supposed that he is lurking about in New Kent county, where he professes to have a *wife*. HILL JONES, Agent for R.F. & P. Railroad Co."

From the "Red River (La.) Whig," June 2d, 1838.

"Ran away from the subscriber, a mulatto woman, named Maria. It is probable she may be found in the neighborhood of Mr. Jesse Bynum's

plantation, where *she has relations*, &c. THOMAS J. WELLS."

From the "Lexington (Ky.) Observer and Reporter," Sept. 28, 1838.

"\$50 Reward.—Ran away from the subscriber, a negro girl, named Maria. She is of a copper color, between 13 and 14 years of age—*bare headed* and *bare footed*. She is small of her age—very sprightly and very likely. She stated she was *going to see her mother* at Maysville. SANFORD THOMSON."

From the "Jackson (Tenn.) Telegraph," Sept. 14, 1838.

"Committed to the jail of Madison county, a negro woman, who calls her name Fanny, and says she belongs to William Miller, of Mobile. She formerly belonged to John Givins, of this county, who now owns *several of her children*. DAVID SHROPSHIRE, Jailor."

From the "Norfolk (Va.) Beacon," July 3d, 1838.

"Runaway from my plantation below Edenton, my negro man, Nelson. *He has a mother living* at Mr. James Goodwin's, in Ballahack, Perquimans county; and *two brothers*, one belonging to Job Parker, and the other to Josiah Coffield. WM. D. RASCOE."

From the "Charleston (S.C.) Courier," Jan. 12, 1838.

"\$100 Reward.—Run away from the subscriber, his negro fellow, John. He is well known about the city as one of my bread carriers: *has a wife* living at Mrs. Weston's, on Hempstead. John formerly belonged to Mrs. Moor, near St. Paul's church, where his *mother* still lives, and *has been harbored by her* before.

JOHN T. MARSHALL.

From the "Newbern (N.C.) Sentinel," March 17, 1837.

"Ranaway, Moses, a black fellow, about 40 years of age—has a *wife* in Washington.

THOMAS BRAGG, Sen.
Warrenton, N.C."

From the "Richmond (Va.) Whig," June 30, 1837.

"Ranaway, my man Peter.—He has a *sister* and *mother* in New Kent, and a *wife* about fifteen or eighteen miles above Richmond, at or about Taylorsville. THEO. A. LACY."

From the "New Orleans Bulletin," Feb. 7, 1838.

"Ranaway, my negro Philip, aged about 40 years.—He may have gone to St. Louis, as *he has a wife there*. W.G. CLARK, 70 New Levee."

From the "Georgian," Jan. 29, 1838.

"A Reward of \$5 will be paid for the apprehension of his negro woman, Diana. Diana is from 45 to 50 age. She formerly belonged to Mr. Nath. Law, of Liberty county, *where her husband still lives*. She will endeavor to go there perhaps. D. O'BYRNE."

From the "Richmond (Va.) Enquirer," Feb. 20, 1838.

"\$10 Reward for a negro woman, named Sally, 40 years old. We have just reason to believe the said negro to be now lurking on the James River Canal, or in the Green Spring neighborhood, where, we are informed, *her husband resides*. The above reward will be given to any person *securing* her.

POLLY C. SHIELDS.

"\$50 Reward.—Ran away from the subscriber, his negro man Pauladore, commonly called Paul. I understand GEN. R.Y. HAYNE *has purchased his wife and children* from H.L. PINCKNEY, Esq. and has them now on his plantation at Goosecreek, where, no doubt, the fellow is frequently *lurking*. T. DAVIS."

"\$25 Reward.—Ran away from the subscriber, a negro woman, named Matilda. It is thought she may be somewhere up James River, as she was claimed as *a wife* by some boatman in Goochland. J. ALVIS."

"Stop the Runaway!!!—\$25 Reward. Ranaway from the Eagle Tavern, a negro fellow, named Nat. He is no doubt attempting to *follow his wife, who*

was lately sold to a speculator named Redmond. The above reward will be paid by Mrs. Lucy M. Downman, of Sussex county, Va."

Multitudes of advertisements like the above appear annually in the southern papers. Reader, look at the preceding list—mark the unfeeling barbarity with which their masters and *mistresses* describe the struggles and perils of sundered husbands and wives, parents and children, in their weary midnight travels through forests and rivers, with torn limbs and breaking hearts, seeking the embraces of each other's love. In one instance, a mother torn from all her children and taken to a remote part of another state, presses her way back through the wilderness, hundreds of miles, to clasp once more her children to her heart: but, when she has arrived within a few miles of them, in the same county, is discovered, seized, dragged to jail, and her purchaser told, through an advertisement, that she awaits his order. But we need not trace out the harrowing details already before the reader.

Rev. C.S. RENSHAW, of Quincy, Illinois, who resided some time in Kentucky, says;—

"I was told the following fact by a young lady, daughter of a slaveholder in Boone county, Kentucky, who lived within half a mile of Mr. Hughes' farm. Hughes and Neil traded in slaves down the river: they had bought up a part of their stock in the upper counties of Kentucky, and brought them down to Louisville, where the remainder of their drove was in jail, waiting their arrival. Just before the steamboat put off for the lower country, two negro women were offered for sale, each of them having a young child at the breast. The traders bought them, took their babes from their arms, and offered them to the highest bidder; and they were sold for one dollar apiece, whilst the stricken parents were driven on board the boat; and in an hour were on their way to the New Orleans market. You are aware that a young babe *decreases* the value of a field hand in the lower country, whilst it increases her value in the 'breeding states.'"

The following is an extract from an address, published by the Presbyterian Synod of Kentucky, to the churches under their care, in 1835:—

"Brothers and sisters, parents and children, husbands and wives, are *torn asunder*, and permitted to see each other no more. These acts are DAILY occurring in the midst of us. The *shrieks* and the *agony*, *often* witnessed on

such occasions, proclaim, with a trumpet tongue, the iniquity of our system. *There is not a neighborhood* where these heart-rending scenes are not displayed. *There is not a village or road* that does not behold the sad procession of manacled outcasts, whose mournful countenances tell that they are exiled by *force* from ALL THAT THEIR HEARTS HOLD DEAR."—*Address*, p. 12.

Professor ANDREWS, late of the University of North Carolina, in his recent work on Slavery and the Slave Trade, page 147, in relating a conversation with a slave-trader, whom he met near Washington City, says, he inquired,

"Do you *often* buy the wife without the husband?' 'Yes, VERY OFTEN; and FREQUENTLY, too, they *sell me the mother while they keep her children. I have often known them take away the infant from its mother's breast, and keep it, while they sold her.*"

The following sale is advertised in the "Georgia Journal," Jan, 2, 1838.

"Will be sold, the following PROPERTY, to wit: One —— CHILD, by the name of James, *about eight months old*, levied on as the property of Gabriel Gunn."

The following is a standing advertisement in the Charleston (S.C.) papers:

—
"120 Negroes for Sale—The subscriber has *just arrived from Petersburg, Virginia*, with one hundred and twenty *likely young* negroes of both sexes and every description, which he offers for sale on the most reasonable terms.

"The lot now on hand consists of plough boys several likely and well-qualified house servants of both sexes, several *women with children, small girls* suitable for nurses, and several SMALL BOYS WITHOUT THEIR MOTHERS. Planters and traders are earnestly requested to give the subscriber a call previously to making purchases elsewhere, as he is enabled and will sell as cheap, or cheaper, than can be sold by any other person in the trade. BENJAMIN DAVIS. Hamburg, S.C. Sept. 28, 1838."

Extract Of a letter to a member of Congress from a friend in Mississippi, published in the "Washington Globe," June, 1837.

"The times are truly alarming here. Many plantations *are entirely stripped of negroes* (protection!) and horses, by the marshal or sheriff.—Suits are multiplying—two thousand five hundred in the United States Circuit Court, and three thousand in Hinds County Court."

Testimony of MR. SILAS STONE, of Hudson, New York. Mr. Stone is a member of the Episcopal Church, has several times been elected an Assessor of the city of Hudson, and for three years has filled the office of Treasurer of the County. In the fall of 1807, Mr. Stone witnessed a sale of slaves, in Charleston, South Carolina, which he thus describes in a communication recently received from him.

"I saw droves of the poor fellows driven to the slave markets kept in different parts of the city, one of which I visited. The arrangements of this place appeared something like our northern horse-markets, having sheds, or barns, in the rear of a public house, where alcohol was a handy ingredient to stimulate the spirit of jockeying. As the traders appeared, lots of negroes were brought from the stables into the bar room, and by a flourish of the whip were made to assume an active appearance. 'What will you give for these fellows?' 'How old are they?' 'Are they healthy?' 'Are they quick?' &c. at the same time the owner would give them a cut with a cowhide, and tell them to dance and jump, cursing and swearing at them if they did not move quick. In fact all the transactions in buying and selling slaves, partakes of jockey-ship, as much as buying and selling horses. There was as little regard paid to the feelings of the former as we witness in the latter.

"From these scenes I turn to another, which took place in front of the noble 'Exchange Buildings,' in the heart of the city. On the left side of the steps, as you leave the main hall, immediately under the windows of that proud building, was a stage built, on which a mother with eight children were placed, and sold at auction. I watched their emotions closely, and saw their feelings were in accordance to human nature. The sale began with the eldest child, who, being struck off to the highest bidder, was taken from the stage or platform by the purchaser, and led to his wagon and stowed away, to be carried into the country; the second, and third were also sold, and so until

seven of the children were torn from their mother, while her discernment told her they were to be separated probably forever, causing in that mother the most agonizing sobs and cries, in which the children seemed to share. The scene beggars description; suffice it to say, it was sufficient to cause tears from one at least 'whose skin was not colored like their own,' and I was not ashamed to give vent to them."

THE "PROTECTION" AFFORDED BY "PUBLIC OPINION" TO CHILDHOOD AND OLD AGE.

In the "New Orleans Bee," May 31, 1837, MR. P. BAH, gives notice that he has *committed to JAIL* as a runaway 'a *little negro AGED ABOUT SEVEN YEARS.*'

In the "Mobile Advertiser," Sept. 13, 1838, WILLIAM MAGEE, Sheriff, gives notice that George Walton, Esq. Mayor of the city has *committed to JAIL* as a runaway slave, Jordan, ABOUT TWELVE YEARS OLD, and the Sheriff proceeds to give notice that if no one claims him the boy will be *sold as a slave* to pay jail fees.

In the "Memphis (Tenn.) Gazette," May 2, 1837, W.H. MONTGOMERY advertises that he will sell at auction a BOY AGED 14, ANOTHER AGED 12, AND A GIRL 10, to pay the debts of their deceased master.

B.F. CHAPMAN, Sheriff, Natchitoches (La.) advertises in the 'Herald,' of May 17, 1837, that he has "*committed to JAIL*, as a runaway a negro boy BETWEEN 11 AND 12 YEARS OF AGE."

In the "Augusta (Ga.) Chronicle," Feb. 13, 1838. R.H. JONES, jailor, says, "Brought to *jail* a negro woman Sarah, she is about 60 or 65 *years old.*"

In the "Winchester Virginian," August 8, 1837, Mr. R.H. MENIFEE, offers ten dollars reward to any one who will catch and lodge in jail, Abram and Nelly, *about 60 years old*, so that he can get them again.

J. SNOWDEN, Jailor, Columbia, S.C. gives notice in the "Telescope," Nov, 18, 1837, that he has committed to jail as a runaway slave, "*Caroline fifty years of age.*"

Y.S. PICKARD, Jailor, Savannah, Georgia, gives notice in the "Georgian," June 22, 1837, that he has taken up for a runaway and lodged in jail Charles, 60 *years of age*.

In the Savannah "Georgian," April 12, 1837, Mr. J. CUYLER, says he will give five dollars, to anyone who will catch and bring back to him "Saman, *an old negro man, and grey, and has only one eye.*"

In the "Macon (Ga.) Telegraph," Jan. 15, 1839, MESSRS. T. AND L. NAPIER, advertise for sale Nancy, a woman 65 *years of age*, and Peggy, a woman 65 *years of age*.

The following is from the "Columbian (Ga.) Enquirer," March 8, 1838.

"\$25 REWARD.—Ranaway, a Negro Woman named MATILDA, aged about 30 or 35 years. Also, on the same night, a Negro Fellow of small size, VERY AGED, *stoop-shouldered*, who walks VERY DECREPIDLY, is supposed to have gone off. His name is DAVE, and he has claimed Matilda for wife. It may be they have gone off together.

"I will give twenty-five dollars for the woman, delivered to me in Muscogee county, or confined in any jail so that I can get her. MOSES BUTT."

J.B. RANDALL, Jailor, Cobb (Co.) Georgia, advertises an old negro man, in the "Milledgeville Recorder," Nov. 6, 1838.

"A NEGRO MAN, has been lodged in the common jail of this county, who says his name is JUPITER. He *has lost all his front teeth above and below —speaks very indistinctly, is very lame, so that he can hardly walk.*"

Rev. CHARLES STEWART RENSCHAW, of Quincy, Illinois, who spent some time in slave states, speaking of his residence in Kentucky, says:—

"One Sabbath morning, whilst riding to meeting near Burlington, Boone Co. Kentucky, in company with Mr. Willis, a teacher of sacred music and a member of the Presbyterian Church, I was startled at mingled shouts and screams, proceeding from an old log house, some distance from the road side. As we passed it, some five or six boys from 12 to 15 years of age, came out, some of them cracking whips, followed by two colored boys

crying. I asked Mr. W. what the scene meant. 'Oh,' he replied, 'those boys have been whipping the niggers; that is the way we bring slaves into subjection in Kentucky—we let the children beat them.' The boys returned again into the house, and again their shouting and stamping was heard, but ever and anon a scream of agony that would not be drowned, rose above the uproar; thus they continued till the sounds were lost in the distance."

Well did Jefferson say, that the children of slaveholders are 'NURSED, EDUCATED, AND DAILY EXERCISED IN TYRANNY.'

The 'protection' thrown around a mother's yearnings, and the helplessness of childhood by the 'public opinion' of slaveholders, is shown by *thousands* of advertisements of which the following are samples.

From the "New Orleans Bulletin," June 2.

"NEGROES FOR SALE.—A negro woman 21 years of age, and has two children, one eight and the other three years. Said negroes will be sold SEPARATELY or together *as desired*. The woman is a good seamstress. She will be sold low for cash, or *exchanged* for GROCERIES. For terms apply to MAYHEW BLISS, & CO. 1 Front Levee."

From the "Georgia Journal," Nov. 7.

"TO BE SOLD—One negro girl about 18 *months old*, belonging to the estate of William Chambers, dec'd. Sold for the purpose of *distribution!!* JETHRO DEAN, SAMUEL BEALL, Ex'ors."

From the "Natchez Courier," April 2, 1838.

"NOTICE—Is hereby given that the undersigned pursuant to a certain Deed of Trust will on Thursday the 12th day of April next, expose to sale at the Court House, to the highest bidder for cash, the following Negro slaves, to wit; Fanny, aged about 28 years; Mary, aged about 7 years; Amanda, aged about 3 months; Wilson, aged about 9 months.

Said slaves, to be sold for the satisfaction of the debt secured in said Deed of Trust. W.J. MINOR."

From the "Milledgeville Journal," Dec. 26, 1837.

"EXECUTOR'S SALE.

"Agreeable to an order of the court of Wilkinson county, will be sold on the first Tuesday in April next, before the Court-house door in the town of Irwington, ONE NEGRO GIRL *about two years old*, named Rachel, belonging to the estate of William Chambers dec'd. Sold *for the benefit* of the heirs and creditors of said estate.

SAMUEL BELL, JESSE PEACOCK, Ex'ors."

From the "Alexandria (D.C.) Gazette" Dec. 19.

"I will give the highest cash price for likely negroes, *from 10 to 25 years of age*.

GEO. KEPHART."

From the "Southern Whig," March 2, 1838.—

"WILL be sold in La Grange, Troup county, one negro girl, by the name of Charity, aged about 10 or 12 years; as the property of Littleton L. Burk, to satisfy a mortgage fi. fa. from Troup Inferior Court, in favor of Daniel S. Robertson vs. said Burk."

From the "Petersburgh (Va.) Constellation," March 18, 1837.

"50 *Negroes wanted immediately*.—The subscriber will give a good market price for fifty likely negroes, *from 10 to 30 years of age*.

HENRY DAVIS."

The following is an extract of a letter from a gentleman, a native and still a resident of one of the slave states, and *still a slaveholder*. He is an elder in the Presbyterian Church, his letter is now before us, and his name is with the Executive Committee of the Am. Anti-slavery Society.

"Permit me to say, that around this very place where I reside, slaves are brought almost constantly, and sold to Miss. and Orleans; that *it is usual* to part families forever by such sales—the parents from the children and the children from the parents, of every size and age. A mother was taken not long since, in this town, from a *sucking child*, and sold to the lower country.

Three young men I saw some time ago taken from this place in chains—while the mother of one of them, old and decrepid, *followed with tears and prayers her son, 18 or 20 miles, and bid him a final farewell!* O, thou Great Eternal, is this justice! is this equity!!—Equal Rights!!"

We subjoin a few miscellaneous facts illustrating the INHUMANITY of slaveholding 'public opinion.'

The shocking indifference manifested at the death of slaves as *human beings*, contrasted with the grief at their loss *as property*, is a true index to the public opinion of slaveholders.

Colonel Oliver of Louisville, lost a valuable race-horse by the explosion of the steamer Oronoko, a few months since on the Mississippi river. Eight human beings whom he held as slaves were also killed by the explosion. They were the riders and grooms of his race-horses. A Louisville paper thus speaks of the occurrence:

"Colonel Oliver suffered severely by the explosion of the Oronoko. He lost *eight* of his rubbers and riders, and his horse, Joe Kearney, which he had sold the night before for \$3,000."

Mr. King, of the New York American, makes the following just comment on the barbarity of the above paragraph:

"Would any one, in reading this paragraph from an evening paper, conjecture that these '*eight* rubbers and riders,' that together with a horse, are merely mentioned as a 'loss' to their owner, were human beings—immortal as the writer who thus brutalizes them, and perhaps cherishing life as much? In this view, perhaps, the '*eight*' lost as much as Colonel Oliver."

The following is from the "Charleston (S.C.) Patriot," Oct. 18.

"*Loss of Property!*—Since I have been here, (Rice Hope, N. Santee,) I have seen much misery, and much of human suffering. The loss of PROPERTY has been immense, not only on South Santee, but also on this river. Mr. Shoolbred has lost, (according to the statement of the physician,) forty-six negroes—the majority lost being the *primest hands* he had—bricklayers, carpenters, blacksmiths and Coopers. Mr. Wm. Mazyck has lost 35 negroes. Col. Thomas Pinkney, in the neighborhood of 40, and many other planters,

10 to 20 on each plantation. Mrs. Elias Harry, adjoining the plantation of Mr. Lucas, has lost up to date, 32 negroes—the *best part of her prime*st negroes on her plantation."

From the "Natchez (Miss.) Daily Free Trader," Feb. 12, 1838.

"*Found.*—A NEGRO'S HEAD WAS PICKED UP ON THE RAIL-ROAD YESTERDAY, WHICH THE OWNER CAN HAVE BY CALLING AT THIS OFFICE AND PAYING FOR THE ADVERTISEMENT."

The way in which slaveholding 'public opinion' protects a poor female lunatic is illustrated in the following advertisement in the "Fayetteville (N.C.) Observer," June 27, 1838:

"Taken and committed to jail, a negro girl named Nancy, who is supposed to belong to Spencer P. Wright, of the State of Georgia. She is about 30 years of age, and is a LUNATIC. The owner is requested to come forward, prove property, pay charges, and take her away, or SHE WILL BE SOLD TO PAY HER JAIL FEES.

FRED'K HOME, Jailor."

A late PROSPECTUS Of the South Carolina Medical College, located in Charleston, contains the following passage:—

"Some advantages of a *peculiar* character are connected with this Institution, which it may be proper to point out. No place in the United States offers as great opportunities for the acquisition of anatomical knowledge, SUBJECTS BEING OBTAINED FROM AMONG THE COLORED POPULATION IN SUFFICIENT NUMBER FOR EVERY PURPOSE, AND PROPER DISSECTIONS CARRIED ON WITHOUT OFFENDING ANY INDIVIDUALS IN THE COMMUNITY!!"

Without offending any individuals in the community! More than half the population of Charleston, we believe, is 'colored;' *their* graves may be ravaged, their dead may be dug up, dragged into the dissecting room, exposed to the gaze, heartless gibes, and experimenting knives, of a crowd of inexperienced operators, who are given to understand in the prospectus, that, if they do not acquire manual dexterity in dissection, it will be wholly their own fault, in neglecting to improve the unrivalled advantages afforded

by the institution—since each can have as many human bodies as he pleases to experiment upon—and as to the fathers, mothers, husbands, wives, brothers, and sisters, of those whom they cut to pieces from day to day, why, they are not 'individuals in the community,' but 'property,' and however *their* feelings may be tortured, the 'public opinion' of slaveholders is entirely too 'chivalrous' to degrade itself by caring for them!

The following which has been for some time a standing advertisement of the South Carolina Medical College, in the Charleston papers, is another index of the same 'public opinion' toward slaves. We give an extract:—

"*Surgery of the Medical College of South Carolina, Queen st.*—The Faculty inform their professional brethren, and the public that they have established a *Surgery*, at the Old College, Queen street, FOR THE TREATMENT OF NEGROES, which will continue in operation, during the session of the College, say from first November, to the fifteenth of March ensuing.

"The *object* of the Faculty, in opening this *Surgery*, is to collect as *many interesting cases*, as possible, for the *benefit* and *instruction* of their pupils—at the same time, they indulge the hope, that it may not only prove an *accommodation*, but also a matter of economy to the public. They would respectfully call the attention of planters, living in the vicinity of the city, to this subject; particularly such as may have servants laboring under Surgical diseases. Such *persons of color* as may not be able to pay for Medical advice, will be attended to gratis, at stated hours, as often as may be necessary.

"The Faculty take this opportunity of soliciting the co-operation of such of their professional brethren, as are favorable to their objects."

"The first thing that strikes the reader of the advertisement is, that this *Surgery* is established exclusively 'for the treatment of *negroes*; and, if he knows little of the hearts of slaveholders towards their slaves, he charitably supposes, that they 'feel the dint of pity,' for the poor sufferers and have founded this institution as a special charity for their relief. But the delusion vanishes as he reads on; the professors take special care that no such derogatory inference shall be drawn from their advertisement. They give us the three reasons which have induced them to open this '*Surgery for the treatment of negroes.*' The first and main one is, 'to collect as many

interesting cases as possible for the benefit and instruction of their *pupils*—another is, 'the hope that it may prove an *accommodation*,'—and the third, that it may be 'a matter of economy to the *public*' Another reason, doubtless, and controlling one, though the professors are silent about it, is that a large collection of 'interesting surgical cases,' always on hand, would prove a powerful attraction to students, and greatly increase the popularity of the institution. In brief, then, the motives of its founders, the professors, were these, the accommodation of their *students*—the accommodation of the *public* (which means, *the whites*)—and the accommodation of slaveholders who have on their hands disabled slaves, that would make 'interesting cases,' for surgical operation in the presence of the pupils—to these reasons we may add the accommodation of the Medical Institution and the accommodation of *themselves*! Not a syllable about the *accommodation* of the hopeless sufferers, writhing with the agony of those gun shot wounds, fractured skulls, broken limbs and ulcerated backs which constitute the 'interesting cases' for the professors to 'show off' before their pupils, and, as practice makes perfect, for the students themselves to try their hands at by way of experiment.

Why, we ask, was this surgery established 'for the treatment of *negroes*' alone? Why were these 'interesting cases' selected from that class exclusively? No man who knows the feeling of slave holders towards slaves will be at a loss for the reason. 'Public opinion' would tolerate surgical experiments, operations, processes, performed upon them, which it would execrate if performed upon their master or other whites. As the great object in collecting the disabled negroes is to have 'interesting cases' for the students, the professors who perform the operations will of course endeavor to make them as 'interesting' as possible. The *instruction of the student* is the immediate object, and if the professors can accomplish it best by *protracting* the operation, pausing to explain the different processes, &c. the subject is only a negro, and what is his protracted agony, that it should restrain the professor from making the case as 'interesting' as possible to the students by so using his knife as will give them the best knowledge of the parts, and the process, however it may protract or augment the pain of the subject. The *end* to be accomplished is the *instruction* of the student, operations upon the negroes are the *means* to the end; *that* tells the whole story—and he who knows the hearts of slaveholders and has common

sense, however short the allowance, can find the way to his conclusions without a lantern.

By an advertisement of the same Medical Institution, dated November 12, 1838, and published in the Charleston papers, it appears that an 'infirmary has been opened in connection with the college.' The professors manifest a great desire that the masters of servants should send in their disabled slaves, and as an inducement to the furnishing of such *interesting cases* say, all medical and surgical aid will be offered *without making them liable to any professional charges*. Disinterested bounty, pity, sympathy, philanthropy. However difficult or numerous the surgical cases of slaves thus put into their hands by the masters, they charge not a cent for their *professional services*. Their yearnings over human distress are so intense, that they beg the privilege of performing all operations, and furnishing all the medical attention needed, *gratis*, feeling that the relief of misery is its own reward!!! But we have put down our exclamation points too soon—upon reading the whole of the advertisement we find the professors conclude it with the following paragraph:—

"The SOLE OBJECT Of the faculty in the establishment of such an institution being to promote the interest of Medical Education within their native State and City."

In the "Charleston (South Carolina) Mercury" of October 12, 1838, we find an advertisement of half a column, by a Dr. T. Stillman, setting forth the merits of another 'Medical Infirmary,' under his own special supervision, at No. 110 Church street, Charleston. The doctor, after inveighing loudly against 'men totally ignorant of medical science,' who flood the country with quack nostrums backed up by 'fabricated proofs of miraculous cures,' proceeds to enumerate the diseases to which his 'Infirmary' is open, and to which his practice will be mainly confined. Appreciating the importance of 'interesting cases,' as a stock in trade, on which to commence his experiments, he copies the example of the medical professors, and advertises for them. But, either from a keener sense of justice, or more generosity, or greater confidence in his skill, or for some other reason, he proposes to *buy up* an assortment of *damaged* negroes, given over, as incurable, by others, and to make such his 'interesting cases,' instead of experimenting on those who are the 'property' of others.

Dr. Stillman closes his advertisement with the following notice:—

"To PLANTERS AND OTHERS.—Wanted *fifty negroes*. Any person having sick negroes, considered incurable by their respective physicians, and wishing to dispose of them, Dr. S. will pay cash for negroes affected with scrofula or king's evil, confirmed hypocondriasm, apoplexy, diseases of the liver, kidneys, spleen, stomach and intestines, bladder and its appendages, diarrhea, dysentery, &c. The highest cash price will be paid on application as above."

The absolute barbarism of a 'public opinion' which not only tolerates, but *produces* such advertisements as this, was outdone by nothing in the dark ages. If the reader has a heart of flesh, he can feel it without help, and if he has not, comment will not create it. The total indifference of slaveholders to such a cold blooded proposition, their utter unconsciousness of the paralysis of heart, and death of sympathy, and every feeling of common humanity for the slave, which it reveals, is enough, of itself to show that the tendency of the spirit of slaveholding is, to kill in the soul whatever it touches. It has no eyes to see, nor ears to hear, nor mind to understand, nor heart to feel for its victims as *human beings*. To show that the above indication of the savage state is not an index of individual feeling, but of 'public opinion,' it is sufficient to say, that it appears to be a standing advertisement in the Charleston Mercury, the leading political paper of South Carolina, the organ of the Honorables John C. Calhoun, Robert Barnwell Rhett, Hugh S. Legare, and others regarded as the elite of her statesmen and literati. Besides, candidates for popular favor, like the doctor who advertises for the fifty 'incurables,' take special care to conciliate, rather than outrage, 'public opinion.' Is the doctor so ignorant of 'public opinion' in his own city, that he has unwittingly committed violence upon it in his advertisement? We trow not. The same 'public opinion' which gave birth to the advertisement of doctor Stillman, and to those of the professors in both the medical institutions, founded the Charleston 'Work House'—a soft name for a Moloch temple dedicated to torture, and reeking with blood, in the midst of the city; to which masters and mistresses send their slaves of both sexes to be stripped, tied up, and cut with the lash till the blood and mangled flesh flow to their feet, or to be beaten and bruised with the terrible paddle, or forced to climb the tread-mill till nature sinks, or to experience other nameless torments.

The "Vicksburg (Miss.) Register," Dec. 27, 1838, contains the following item of information: "ARDOR IN BETTING.—Two gentlemen, at a tavern, having summoned the waiter, the poor fellow had scarcely entered, when he fell down in a fit of apoplexy. 'He's dead!' exclaimed one. 'He'll come to!' replied the other. 'Dead, for five hundred!' 'Done!' retorted the second. The noise of the fall, and the confusion which followed, brought up the landlord, who called out to fetch a doctor. 'No! no! we must have no interference—there's a bet depending!' 'But, sir, I shall lose a valuable servant!' 'Never mind! you can put him down in the bill!'"

About the time the Vicksburg paper containing the above came to hand, we received a letter from N.P. ROGERS, Esq. of Concord, N.H. the editor of the 'Herald of Freedom,' from which the following is an extract:

"Some thirty years ago, I think it was, Col. Thatcher, of Maine, a lawyer, was in Virginia, on business, and was there invited to dine at a public house, with a company of the gentry of the south. *The place* I forget—the fact was told me by George Kimball, Esq. now of Alton, Illinois who had the story from Col. Thatcher himself. Among the servants waiting was a young negro man, whose beautiful person, obliging and assiduous temper, and his activity and grace in serving, made him a favorite with the company. The dinner lasted into the evening, and the wine passed freely about the table. At length, one of the gentlemen, who was pretty highly excited with wine, became unfortunately incensed, either at some trip of the young slave, in waiting, or at some other cause happening when the slave was within his reach. He seized the long-necked wine bottle, and struck the young man suddenly in the temple, and felled him dead upon the floor. The fall arrested, for a moment, the festivities of the table. 'Devilish unlucky,' exclaimed one. 'The gentleman is very unfortunate,' cried another. 'Really a loss,' said a third, &c, &c. The body was dragged from the dining hall, and the feast went on; and at the close, one of the gentlemen, and the very one, I believe, whose hand had done the homicide, shouted, in bacchanalian bravery, and *southern generosity*, amid the broken glasses and fragments of chairs, 'LANDLORD! PUT THE NIGGER INTO THE BILL!' This was that murdered young man's *requiem and funeral service*."

Mr. GEORGE A. AVERY, a merchant in Rochester, New York, and an elder in the Fourth Presbyterian Church in that city, who resided four years in

Virginia, gives the following testimony:

"I knew a young man who had been out hunting, and returning with some of his friends, seeing a negro man in the road, at a little distance, deliberately drew up his rifle, and shot him dead. This was done without the slightest provocation, or a word passing. This young man passed through the *form* of a trial, and, although it was not even *pretended* by his counsel that he was not guilty of the act, deliberately and wantonly perpetrated, *he was acquitted*. It was urged by his counsel, that he was a *young* man, (about 20 years of age,) had no *malicious* intention, his mother was a widow, &c, &c"

Mr. BENJAMIN CLENDENON, of Colerain, Lancaster county, Pennsylvania, a member of the Society of Friends, gives the following testimony:

"Three years ago the coming month, I took a journey of about seventy-five miles from home, through the eastern shore of Maryland, and a small part of Delaware. Calling one day, near noon, at Georgetown Cross-Roads, I found myself surrounded in the tavern by slaveholders. Among other subjects of conversation, their human cattle came in for a share. One of the company, a middle-aged man, then living with a second wife, acknowledged, that after the death of his first wife, he lived in a state of concubinage with a female slave; but when the time drew near for the taking of a second wife, he found it expedient to remove the slave from the premises. The same person gave an account of a female slave he formerly held, who had a propensity for some one pursuit, I think the attendance of religious meetings. On a certain occasion, she presented her petition to him, asking for this indulgence; he refused—she importuned—and he, with sovereign indignation, seized a chair, and with a blow upon the head, knocked her senseless upon the floor. The same person, for some act of disobedience, on the part, I think, of the same slave, when employed in stacking straw, felled her to the earth with the handle of a pitch fork. All these transactions were related with the *utmost composure*, in a bar-room within thirty miles of the Pennsylvania line."

The two following advertisements are illustrations of the regard paid to the marriage relations by slaveholding judges, governors, senators in Congress,

and mayors of cities.

From the "Montgomery, (Ala.) Advertiser," Sept. 29, 1837.

"\$20 REWARD.—Ranaway from the subscriber, a negro man named Moses. He is of common size, about 28 years old. He formerly belonged to Judge Benson, of Montgomery, and it is said, has a wife in that county. John Gayle"

The John Gayle who signs this advertisement, is an Ex-Governor of Alabama.

From the "Charleston Courier," Nov. 28.

"Ranaway from the subscriber, about twelve months since, his negro man Paulladore. His complexion is dark—about 50 years old. I understand Gen. R.Y. Hayne has purchased his wife and children from H.L. Pinckney, Esq. and has them now on his plantation, at Goose Creek, where, no doubt, the fellow is frequently lurking. Thomas Davis."

It is hardly necessary to say, that the GENERAL R.Y. HAYNE, and H.L. PINCKNEY, Esq. named in the advertisement, are Ex-Governor Hayne, formerly U.S. Senator from South Carolina, and Hon. Henry L. Pinckney, late member of Congress from Charleston District, and now Intendant (mayor) of that city.

It is no difficult matter to get at the 'public opinion' of a community, when *ladies* 'of property and standing' publish, under their own names, such advertisements as the following.

Mrs. ELIZABETH L. CARTER, of Groveton, Prince William county, Virginia, thus advertises her negro man Moses:

"Ranaway from the subscriber, a negro man named Moses, aged about 40 years, about six feet high, well made, and possessing a good address, and HAS LOST A PART ON ONE OF HIS EARS."

Mrs. B. NEWMAN, of the same place, and in the same paper, advertises—

"Penny, the wife of Moses, aged about 30 years, brown complexion, tall and likely, *no particular marks of person recollected.*"

Both of the above advertisements appear in the National Intelligencer, (Washington city,) June 10, 1837.

In the Mobile Mercantile Advertiser, of Feb. 13, 1838, is an advertisement Signed SARAH WALSH, of which the following is an extract:

"Twenty-five dollars reward will be paid to any one who may apprehend and deliver to me, or confine in any jail, so that, I can get him, my man Isaac, who ranaway sometime in September last. He is 26 years of age, 5 feet 10 inches high, has a *scar on his forehead, caused by a blow*, and one on his back, MADE BY A SHOT FROM A PISTOL."

In the "New Orleans Bee," Dec. 21, 1838, Mrs. BURVANT, whose residence is at the corner of Chartres and Toulouse streets, advertises a woman as follows:

"Ranaway, a negro woman named Rachel—*has lost all her toes except the large one.*"

From the "Huntsville (Ala.) Democrat," June 16, 1838:

"TEN DOLLARS REWARD.—Ranaway from the subscriber, a negro woman named Sally, about 21 years of age, taking along her two children—one three years, and the other seven months old. These negroes were PURCHASED BY ME at the sale of George Mason's negroes, on the first Monday in May, and left *a few days* thereafter. Any person delivering them to the jailor in Huntsville, or to me, at my plantation, five miles above Triana, on the Tennessee river, shall receive the above reward. CHARITY COOPER"

From the "Mississippian," May 13, 1838:

"TEN DOLLARS REWARD.—Ranaway from the subscriber, a man named Aaron, yellow complexion, blue eyes, &c. I have no doubt he is lurking about Jackson and its vicinity, probably harbored by some of the negroes sold as the property of *my late husband*, Harry Long, deceased. Some of them are about Richland, in Madison co. I will give the above reward when brought to me, about six miles north-west of Jackson, or put IN JAIL, so *that I can get him.* LUCY LONG."

If the reader, after perusing the preceding facts, testimony, and arguments, still insists that the 'public opinion' of the slave states protects the slave from outrages, and alleges, as proof of it, that *cruel* masters are frowned upon and shunned by the community generally, and regarded as monsters, we reply by presenting the following facts and testimony.

"Col. MEANS, of Manchester, Ohio, says, that when he resided in South Carolina, *his neighbor*, a physician, became enraged with his slave, and sentenced him to receive two hundred lashes. After having received one hundred and forty, he fainted. After inflicting the full number of lashes, the cords with which he was bound were loosed. When he revived, he staggered to the house, and sat down in the sun. Being faint and thirsty, he *begged* for some water to drink. The master went to the well, and procured some water but instead of giving him to drink, he threw the whole bucket-full in his face. Nature could not stand the shock—he sunk to rise no more. For this crime, the physician was bound over to Court, and tried, and *acquitted*—and THE NEXT YEAR HE WAS ELECTED TO THE LEGISLATURE!"

Testimony of Hon. JOHN RANDOLPH, of Virginia

"In one of his Congressional speeches, Mr. R. says: Avarice alone can drive, as it does drive, this *infernal* traffic, and the wretched victims of it, like so many post horses, *whipped to death* in a mail coach. Ambition has its cover-sluts in the pride, pomp, and circumstance of glorious war; but where are the trophies of avarice? The hand cuff, the manacle, the blood-stained cowhide! WHAT MAN IS WORSE RECEIVED IN SOCIETY FOR BEING A HARD MASTER? WHO DENIES THE HAND OF A SISTER OR DAUGHTER TO SUCH MONSTERS?"

Mr. GEORGE A. AVERY, of Rochester, New York, who resided four years in Virginia, testifies as follows:

"I know a local Methodist minister, a man of talents, and popular as a preacher, who took his negro girl into his barn, in order to whip her—and *she was brought out a corpse!* His friends seemed to think this of *so little importance to his ministerial standing*, that although I lived near him about three years, I do not recollect to have heard them apologize for the deed, though I recollect having heard ONE of his neighbors allege this fact as a reason why he did not wish to hear him preach."

Notwithstanding the mass of testimony which has been presented establishing the fact that in the 'public opinion' of the South the slaves find no protection, some may still claim that the 'public opinion' exhibited by the preceding facts is not that of the *highest class of society at the South*, and in proof of this assertion, refer to the fact, that 'Negro Brokers,' Negro Speculators, Negro Auctioneers, and Negro Breeders, &c., are by that class universally despised and avoided, as are all who treat their slaves with cruelty.

To this we reply, that, if all claimed by the objector were true, it could avail him nothing for 'public opinion' is neither made nor unmade by 'the first class of society.' That class produces in it, at most, but slight modifications; those who belong to it have generally a 'public opinion,' within their own circle which has rarely more, either of morality or mercy than the public opinion of the mass, and is, at least, equally heartless and more intolerant. As to the estimation in which 'speculators,' 'soul drivers,' &c. are held, we remark, that, they are not despised because they *trade in slaves* but because they are *working* men, all such are despised by slaveholders. White drovers who go with droves of swine and cattle from the free states to the slave states, and Yankee pedlars, who traverse the south, and white day-laborers are, in the main, equally despised, or, if negro-traders excite more contempt than drovers, pedlars, and day-laborers, it is because, they are, as a class more ignorant and vulgar, men from low families and boors in their manners. Ridiculous to suppose, that a people, who have, *by law*, made men articles of trade equally with swine, should despise men-drovers and traders, more than hog-drovers and traders. That they are not despised because it is their business to trade in *human beings* and bring them to market, is plain from the fact that when some 'gentleman of property and standing' and of a 'good family' embarks in a negro speculation, and employs a dozen 'soul drivers' to traverse the upper country, and drive to the south coffles of slaves, expending hundreds of thousands in his wholesale purchases, he does not lose caste. It is known in Alabama, that Mr. Erwin, son-in-law of the Hon. Henry Clay, and brother of J.P. Erwin, formerly postmaster, and late mayor of the city of Nashville, laid the foundation of a princely fortune in the slave-trade, carried on from the Northern Slave States to the Planting South; that the Hon. H. Hitchcock, brother-in-law of Mr. E., and since one of the judges of the Supreme Court of Alabama, was

interested with him in the traffic; and that a late member of the Kentucky Senate (Col. Wall) not only carried on the same business, a few years ago, but accompanied his droves in person down the Mississippi. Not as the *driver*, for that would be vulgar drudgery, beneath a gentleman, but as a nabob in state, ordering his understrappers.

It is also well known that President Jackson was a 'soul driver,' and that even so late as the year before the commencement of the last war, he bought up a coffle of slaves and drove them down to Louisiana for sale.

Thomas N. Gadsden, Esq. the principal slave auctioneer in Charleston, S.C. is of one of the first families in the state, and moves in the very highest class of society there. He is a descendant of the distinguished General Gadsden of revolutionary memory, the most prominent southern member in the Continental Congress of 1765, and afterwards elected lieutenant governor and then governor of the state. The Rev. Dr. Gadsden, rector of St. Phillip's Church, Charleston, and the Rev. Phillip Gadsden, both prominent Episcopal clergymen in South Carolina, and Colonel James Gadsden of the United States army, after whom a county in Florida was recently named, are all brothers of this Thomas N. Gadsden, Esq. the largest slave auctioneer in the state, under whose hammer, men, women and children go off by thousands; its stroke probably sunders *daily*, husbands and wives, parents and children, brothers and sisters, perhaps to see each other's faces no more. Now who supply the auction table of this Thomas N. Gadsden, Esq. with its loads of human merchandize? These same detested 'soul drivers' forsooth! They prowl through the country, buy, catch, and fetter them, and drive their chained coffles up to his stand, where Thomas N. Gadsden, Esq. knocks them off to the highest bidder, to Ex-Governor Butler perhaps, or to Ex-Governor Hayne, or to Hon. Robert Barnwell Rhett, or to his own reverend brother, Dr. Gadsden. Now this high born, wholesale *soul-seller* doubtless despises the retail 'soul-drivers' who give him their custom, and so does the wholesale grocer, the drizzling tapster who sneaks up to his counter for a keg of whiskey to dole out under a shanty in two cent glasses; and both for the same reason.

The plea that the 'public opinion' among the highest classes of society at the south is mild and considerate towards the slaves, that *they* do not overwork, underfeed, neglect when old and sick, scantily clothe, badly lodge, and half

shelter their slaves; that *they* do not barbarously flog, load with irons, imprison in the stocks, brand and maim them; hunt them when runaway with dogs and guns, and sunder by force and forever the nearest kindred—is shown, by almost every page of this work, to be an assumption, not only utterly groundless, but directly opposed to masses of irrefragable evidence. If the reader will be at the pains to review the testimony recorded on the foregoing pages he will find that a very large proportion of the atrocities detailed were committed, not by the most ignorant and lowest classes of society, but by persons 'of property and standing,' by masters and mistresses belonging to the 'upper classes,' by persons in the learned professions, by civil, judicial, and military officers, by the *literati*, by the fashionable elite and persons of more than ordinary 'respectability' and external morality—large numbers of whom are professors of religion.

It will be recollected that the testimony of Sarah M. Grimké, and Angelina G. Weld, was confined exclusively to the details of slavery as exhibited in the *highest classes of society*, mainly in Charleston, S.C. See their testimony pp. 22-24 and 52-57. The former has furnished us with the following testimony in addition to that already given.

"Nathaniel Heyward of Combahee, S.C., one of the wealthiest planters in the state, stated, in conversation with some other planters who were complaining of the idle and lazy habits of their slaves, and the difficulty of ascertaining whether their sickness was real or pretended, and the loss they suffered from their frequent absence on this account from their work, said, 'I never lose a day's work: it is an *established* rule on my plantations that the tasks of all the sick negroes *shall be done by those who are well in addition to their own*. By this means a vigilant supervision is kept up by the slaves over each other, and they take care that nothing but real sickness keeps any one out of the field.' I spent several winters in the neighborhood of Nathaniel Heyward's plantations, and well remember his character as a severe task master. *I was present when the above statement was made.*"

The cool barbarity of such a regulation is hardly surpassed by the worst edicts of the Roman Caligula—especially when we consider that the plantations of this man were in the neighborhood of the Combahee river, one of the most unhealthy districts in the low country of South Carolina; further, that large numbers of his slaves worked in the *rice marshes*, or

'swamps' as they are called in that state—and that during six months of the year, so fatal to health is the malaria of the swamps in that region that the planters and their families invariably abandon their plantations, regarding it as downright presumption to spend a single day upon them 'between the frosts' of the early spring and the last of November.

The reader may infer the high standing of Mr. Heyward in South Carolina, from the fact that he was selected with four other freeholders to constitute a Court for the trial of the conspirators in the insurrection plot at Charleston, in 1822. Another of the individuals chosen to constitute that court was Colonel Henry Deas, now president of the Board of Trustees of Charleston College, and a few years since a member of the Senate of South Carolina. From a late correspondence in the "Greenville (S.C.) Mountaineer," between Rev. William M. Wightman, a professor in Randolph, Macon, College, and a number of the citizens of Lodi, South Carolina, it appears that the cruelty of this Colonel Deas to his slaves, is proverbial in South Carolina, so much that Professor Wightman, in the sermon which occasioned the correspondence, spoke of the Colonel's inhumanity to his slaves as a matter of perfect notoriety.

Another South Carolina slaveholder, Hon. Whitmarsh B. Seabrook, recently, we believe, Lieut. Governor of the state, gives the following testimony to his own inhumanity, and his certificate of the 'public opinion' among South Carolina slaveholders 'of high degree.'

In an essay on the management of slaves, read before the Agricultural Society of St. Johns, S.C. and published by the Society, Charleston, 1834, Mr. S. remarks:

"I consider *imprisonment in the stocks at night*, with or without hard labor in the day, as a powerful auxiliary in the cause of *good* government. To the correctness of this opinion *many* can bear testimony. EXPERIENCE has convinced ME that there is no punishment to which the slave looks with more *horror*."

The advertisements of the Professors in the Medical Colleges of South Carolina, published with comments—on [pp. 169, 170](#), are additional illustrations of the 'public opinion' of the *literati*.

That the 'public opinion' of *the highest class of society* in South Carolina, regards slaves a mere *cattle*, is shown by the following advertisement, which we copy from the "Charleston (S.C.) Mercury" of May 16:

"NEGROES FOR SALE.—A girl about twenty years of age, (raised in Virginia,) and her two female children, one four and the other two year old—is remarkably strong and healthy—never having had a day's sickness, with the exception of the small pox, in her life. The children are fine and healthy. She is VERY PROLIFIC IN HER GENERATING QUALITIES, *and affords a rare opportunity to any person who wishes to raise a family of strong and healthy servants for their own use.*

"Any person wishing to purchase will please leave their address at the Mercury office."

The Charleston Mercury, in which this advertisement appears, *is the leading political paper in South Carolina*, and is well known to be the political organ of Messrs. Calhoun, Rhett, Pickens, and others of the most prominent politicians in the state. Its editor, John Stewart, Esq., is a lawyer of Charleston, and of a highly respectable family. He is a brother-in-law of Hon. Robert Barnwell Rhett, the late Attorney-General, now a Member of Congress, and Hon. James Rhett, a leading member of the Senate of South Carolina; his wife is a niece of the late Governor Smith, of North Carolina, and of the late Hon. Peter Smith, Intendant (Mayor) of the city of Charleston; and a cousin of the late Hon. Thomas S. Grimké.

The circulation of the 'Mercury' among the wealthy, the literary, and the fashionable, is probably much larger than that of any other paper in the state.

These facts in connection with the preceding advertisement, are a sufficient exposition of the 'public opinion' towards slaves, prevalent in these classes of society.

The following scrap of 'public opinion' in Florida, is instructive. We take it from the Florida Herald, June 23, 1838:

Ranaway from my plantation, on Monday night, the 13th instant, a negro fellow named Ben; eighteen years of age, polite when spoken to, and speaks very good English for a negro. As I have traced him out in several places in

town, I am certain he is harbored. This notice is given that I am determined, that whenever he is taken, *to punish him till he informs me* who has given him food and protection, and *I shall apply the law of Judge Lynch to my own satisfaction*, on those concerned in his concealment.

A. WATSON.

Now, who is this A. Watson, who proclaims through a newspaper, his determination to *put to the torture* this youth of eighteen, and to Lynch to his 'satisfaction' whoever has given a cup of cold water to the panting fugitive. Is he some low miscreant beneath public contempt? Nay, verily, he is a 'gentleman of property and standing,' one of the wealthiest planters and largest slaveholders in Florida. He resides in the vicinity of St. Augustine, and married the daughter of the late Thomas C. Morton, Esq. one of the first merchants in New York.

We may mention in this connection the well known fact, that many wealthy planters make it a *rule never to employ a physician among their slaves*. Hon. William Smith, Senator in Congress, from South Carolina, from 1816 to 1823, and afterwards from 1826 to 1831, is one of this number. He owns a number of large plantations in the south western states. One of these, borders upon the village of Huntsville, Alabama. The people of that village can testify that it is a part of Judge Smith's *system* never to employ a physician *even in the most extreme cases*. If the medical skill of the overseer, or of the slaves themselves, can contend successfully with the disease, they live, if not, *they die*. At all events, a physician is *not to be called*. Judge Smith was appointed a judge of the Supreme Court of the United States three years since.

The reader will recall a similar fact in the testimony of Rev. W.T. Allan, son of Rev. Dr. Allan, of Huntsville, (see [p. 47](#),) who says that Colonel Robert H. Watkins, a wealthy planter, in Alabama, and a PRESIDENTIAL ELECTOR in 1836, who works on his plantations three hundred slaves, 'After employing a physician for some time among his negroes, he ceased to do so, alledging as the reason, that it was *cheaper to lose a few negroes every year than to pay a physician*.'

It is a fact perfectly notorious, that the late General Wade Hampton, of South Carolina, who was the largest slaveholder in the United States, and

probably the wealthiest man south of the Potomac, was *excessively cruel* in the treatment of his slaves. The anecdote of him related by a clergyman, on [page 29](#), is perfectly characteristic.

For instances of barbarous inhumanity of various kinds, and manifested by persons BELONGING TO THE MOST RESPECTABLE CIRCLES OF SOCIETY, the reader can consult the following references:—Testimony of Rev. John Graham, [p. 25](#), near the bottom; of Mr. Poe, [p. 26](#), middle; of Rev. J. O. Choules, [p. 39](#), middle; of Rev. Dr. Channing, [p. 41](#), top; of Mr. George A. Avery, [p. 44](#), bottom; of Rev. W.T. Allan, [p. 47](#); of Mr. John M. Nelson, [p. 51](#), bottom; of Dr. J.C. Finley, [p. 61](#), top; of Mr. Dustin, [p. 66](#), bottom; of Mr. John Clarke, [p. 87](#); of Mr. Nathan Cole, [p. 89](#), middle; Rev. William Dickey, [p. 93](#); Rev. Francis Hawley, [p. 97](#); of Mr. Powell, [p. 100](#), middle; of Rev. P. Smith [p. 102](#).

The preceding are but a few of a large number of similar cases contained in the foregoing testimonies. The slaveholder mentioned by Mr. Ladd, [p. 86](#), who knocked down a slave and afterwards piled brush upon his body, and consumed it, held the hand of a female slave in the fire till it was burned so as to be useless for life, and confessed to Mr. Ladd, that he had killed *four* slaves, had been a *member of the Senate of Georgia* and a *clergyman*. The slaveholder who whipped a female slave to death in St. Louis, in 1837, as stated by Mr. Cole, [p. 69](#), was a *Major in the United States Army*. One of the physicians who was an abettor of the tragedy on the Brassos, in which a slave was tortured to death, and another so that he barely lived, (see Rev. Mr. Smith's testimony, [p. 102](#).) was Dr. Anson Jones, a native of Connecticut, who was soon after appointed minister plenipotentiary from Texas to this government, and now resides at Washington city. The slave mistress at Lexington, Ky., who, as her husband testifies, has killed six of his slaves, (see testimony of Mr. Clarke, [p. 87](#),) is the wife of Hon. Fielding S. Turner, late judge of the criminal court of New Orleans, and one of the wealthiest slaveholders in Kentucky. Lilburn Lewis, who deliberately chopped in pieces his slave George, with a broad-axe, (see testimony of Rev. Mr. Dickey, [p. 93](#)) was a wealthy slaveholder, and a nephew of President Jefferson. Rev. Francis Hawley, who was a general agent of the Baptist State Convention of North Carolina, confesses (see [p. 47](#),) that while residing in that state he once went out with his hounds and rifle, to hunt fugitive slaves. But instead of making further reference to testimony

already before the reader, we will furnish additional instances of the barbarous cruelty which is tolerated and sanctioned by the 'upper classes' of society at the south; we begin with clergymen, and other officers and members of churches.

That the reader may judge of the degree of 'protection' which slaves receive from 'public opinion,' and among the members and ministers of professed christian churches, we insert the following illustrations.

Extract from an editorial article in the "Lowell (Mass.) Observer" a religious paper edited at the time (1833) by the Rev. DANIEL S. SOUTHMAYD, who recently died in Texas.

"We have been among the slaves at the south. We took pains to make discoveries in respect to the evils of slavery. We formed our sentiments on the subject of the cruelties exercised towards the slaves from having witnessed them. We now affirm that we never saw a man, who had never been at the south, who thought as much of the cruelties practiced on the slaves, as we *know* to be a fact.

"A slave whom I loved for his kindness and the amiableness of his disposition, and who belonged to the family where I resided, happened to stay out *fifteen minutes longer* than he had permission to stay. It was a mistake—it was *unintentional*. But what was the penalty? He was sent to the house of correction with the order that he should have *thirty lashes upon his naked body with a knotted rope!!!* He was brought home and laid down in the stoop, in the back of the house, in *the sun, upon the floor*. And there he lay, with more the appearance of a rotten carcass than a living man, for four days before he could do more than move. And who was this inhuman being calling God's property his own, and ruing it as he would not have dared to use a beast? You may say he was a tiger—one of the more wicked sort, and that we must not judge others by him. *He was a professor of that religion which will pour upon the willing slaveholder the retribution due to his sin.*

"We wish to mention another fact, which our own eyes saw and our own ears heard. We were called to evening prayers. The family assembled around the altar of their accustomed devotions. There was one female *slave* present, who belonged to another master, but who had been hired for the

day and tarried to attend family worship. The precious Bible was opened, and nearly half a chapter had been read, when the eye of the master, who was reading, observed that the new female servant, instead of being seated like his own slaves, *flat upon the floor*, was standing in a stooping posture upon her feet. He told her to sit down on the floor. She said it was not her custom at home. He ordered her again to do it. She replied that her master did not require it. Irritated by this answer, he repeatedly *struck her upon the head with the very Bible he held in his hand*. And not content with this, he seized his cane and *caned her down stairs most unmercifully*. He then returned to resume his profane work, but we need not say that *all* the family were not there. Do you ask again, who was this wicked man? *He was a professor of religion!!*"

Rev. HUNTINGTON LYMAN, late pastor of the Free Church in Buffalo, New York, says:—

"Walking one day in New Orleans with a professional gentleman, who was educated in Connecticut, we were met by a black man; the gentleman was greatly incensed with the black man for passing so *near* him, and turning upon him *he pushed him with violence off walk into the street*. This man was a professor of religion."

(And *we* add, a member, and if we mistake not an officer of the Presbyterian Church which was established there by Rev. Joel Parker, and which was then under his teachings-ED.)

Mr. EZEKIEL BIRDSEYE, a gentleman of known probity, in Cornwall, Litchfield county, Conn. gives the testimony which follows:—

"A BAPTIST CLERGYMAN in Laurens District, S.C. WHIPPED HIS SLAVE TO DEATH, whom he *suspected* of having stolen about sixty dollars. The slave was in the prime of life and was purchased a few weeks before for \$800 of a slave trader from Virginia or Maryland. The coroner, Wm. Irby, at whose house I was then boarding, *told me*, that on reviewing the dead body, he found it *beat to a jelly from head to foot*. The master's wife discovered the money a day or two after the death of the slave. She had herself removed it from where it was placed, not knowing what it was, as it was tied up in a thick envelope. I happened to be present when the trial of this man took place, at Laurens Court House. His daughter testified that

her father untied the slave, when he appeared to be failing, and gave him cold water to drink, of which he took freely. His counsel pleaded that his death *might* have been caused by drinking cold water in a state of excitement. The Judge charged the jury, that it would be their duty to find the defendant guilty, if they believed the death was caused by the whipping; but if they were of opinion that drinking cold water caused the death, they would find him not guilty! The jury found him—NOT GUILTY!"

Dr. JEREMIAH S. WAUGH, a physician in Somerville, Butler county, Ohio, testifies as follows:—

"In the year 1825, I boarded with the Rev. John Mushat, a Seceder minister, and principal of an academy in Iredel county, N.C. He had slaves, and was in the habit of restricting them on the Sabbath. One of his slaves, however, ventured to disobey his injunctions. The offence was he went away on Sabbath evening, and did not return till Monday morning. About the time we were called to breakfast, the Rev. gentleman was engaged in chastising him for *breaking the Sabbath*. He determined not to submit—attempted to escape by flight. The master immediately took down his gun and pursued him—levelled his instrument of death, and told him, if he did not stop instantly *he would blow him through*. The poor slave returned to the house and submitted himself to the lash; and the good master, while YET PALE WITH RAGE, *sat down to the table, and with a trembling voice ASKED GOD'S BLESSING!*"

The following letter was sent by Capt. JACOB DUNHAM, of New York city, to a slaveholder in Georgetown, D.C. more than twenty years since:

"Georgetown, June 13, 1815.

"Dear sir—Passing your house yesterday, I beheld a scene of cruelty seldom witnessed—that was the brutal chastisement of your negro girl, *lashed to a ladder and beaten in an inhuman manner, too bad to describe*. My blood chills while I contemplate the subject. This has led me to investigate your character from your neighbors; who inform me that you have *caused the death* of one negro man, whom you struck with a sledge for some trivial fault—that you have beaten another black girl with such severity that the *splinters* remained in her back for some weeks after you sold her—and

many other acts of barbarity, too lengthy to enumerate. And to my great surprise, I find you are a *professor of the Christian religion!*

"You will naturally inquire, why I meddle with your family affairs. My answer is, the cause of humanity and a sense of my duty requires it.—these hasty remarks I leave you to reflect on the subject; but wish you to remember, that there is an all-seeing eye who knows all our faults and will reward us according to our deeds.

I remain, sir, yours, &c

JACOB DUNHAM.

Master of the brig Cyrus, of N.Y."

Rev. SYLVESTER COWLES, pastor of the Presbyterian church in Fredonia, N.Y. says:—

"A young man, a member of the church in Conewango, went to Alabama last year, to reside as a clerk in an uncle's store. When he had been there about nine months, he wrote his father that he must return home. To see members of the same church sit at the communion table of our Lord one day, and the next to see one seize any weapon and knock the other down, *as he had seen*, he *could not* live there. His good father forthwith gave him permission to return home."

The following is a specimen of the shameless hardihood with which a professed minister of the Gospel, and editor of a religious paper, assumes the right to hold God's image as a chattel. It is from the Southern Christian Herald:—

"It is stated in the Georgetown Union, that a negro, supposed to have died of cholera, when that disease prevailed in Charleston, was carried to the public burying ground to be interred; but before interment signs of life appeared, and, by the use of proper means, he was restored to health. And now the man who first perceived the signs of life in the slave, and that led to his preservation, claims the property as his own, and is about bringing suit for its recovery. As well might a man who rescued his neighbor's slave, or his *horse*, from drowning, or who extinguished the flames that would otherwise soon have burnt down his neighbor's house, claim the *property* as his own."

Rev. GEORGE BOURNE, of New York city, late Editor of the "Protestant Vindicator," who was a preacher seven years in Virginia, gives the following testimony.[\[39\]](#)

[Footnote [39](#): A few years since Mr. Bourne published a work entitled, "Picture of slavery in the United States." In which he describes a variety of horrid atrocities perpetrated upon slaves; such as brutal scourging and lacerations with the application of pepper, mustard, salt, vinegar, &c., to the bleeding gashes; also maimings, cat-haulings, burnings, and other tortures similar to hundreds described on the preceeding pages. These descriptions of Mr. Bourne were, at that time, thought by multitudes *incredible*, and probably, even by some abolitionists, who had never given much reflection to the subject. We are happy to furnish the reader with the following testimony of a Virginia slaveholder to the *accuracy* of Mr. Bourne's delineations. Especially as this slaveholder is a native of one of the counties (Culpepper) near to which the atrocities described by Mr. B. were committed.

Testimony of Mr. WILLIAM HANSBOROUGH, of Culpepper, County, Virginia, the "owner" of sixty slaves, to Mr. Bourne's "Picture or Slavery" as a *true* delineation.

Lindley Coates, of Lancaster Co., Pa., a well known member of the Society of Friends, and a member of the late Pennsylvania Convention for revising, the Constitution of the State, in a letter now before us, describing a recent interview between him and Mr. Hansborough, of several days continuance, says,—"I handed him Bourne's Picture of slavery to read: *after reading it*, he said, that all of the sufferings of slaves therein related, were *true delineations, and that he had seen all those modes of torture himself.*"]

"Benjamin Lewis, who was an elder in the Presbyterian church, engaged a carpenter to repair and enlarge his house. After some time had elapsed, Kyle, the builder, was awakened very early in the morning by a most piteous moaning and shrieking. He arose, and following the sound, discovered a colored woman nearly naked, tied to a fence, while Lewis was lacerating her. Kyle instantly commanded the slave driver to desist. Lewis maintained his jurisdiction over his slaves, and threatened Kyle that he

would punish him for his interference. Finally Kyle obtained the release of the victim.

"A second and a third scene of the same kind occurred, and on the third occasion the altercation almost produced a battle between the elder and the carpenter.

"Kyle immediately arranged his affairs, packed up his tools and prepared to depart. 'Where are you going?' demanded Lewis. 'I am going home;' said Kyle. 'Then I will pay you nothing for what you have done,' retorted the slave driver, 'unless you complete your contract.' The carpenter went away with this edifying declaration, 'I will not stay here a day longer; for I expect the fire of God will come down and burn you up altogether, and I do not choose to go to hell with you.' Through hush-money and promises not to whip the women any more, I believe Kyle returned and completed his engagement.

"James Kyle of Harrisonburg, Virginia, frequently narrated that circumstance, and his son, the carpenter, confirmed it with all the minute particulars combined with his temporary residence on the Shenandoah river.

"John M'Cue of Augusta county, Virginia, a *Presbyterian preacher*, frequently on the Lord's day morning, tied up his slaves and whipped them; and left them bound, while he went to the meeting house and preached—and after his return home repeated his scourging. That fact, with others more heinous, was known to all persons in his congregation and around the vicinity; and so far from being censured for it, he and his brethren justified it as essential to preserve their 'domestic institutions.'

"Mrs. Pence, of Rockingham county, Virginia, used to boast,—'I am the best hand to whip a *wench* in the whole county.' She used to pinion the girls to a post in the yard on the Lord's day morning, scourge them, put on the '*negro plaster*,' salt, pepper, and vinegar, leave them tied, and walk away to church as demure as a nun, and after service repeat her flaying, if she felt the whim. I once expostulated with her upon her cruelty. 'Mrs. Pence, how can you whip your girls so publicly and disturb your neighbors so on the Lord's day morning.' Her answer was memorable. 'If I were to whip them on any other day I should lose a day's work; but by whipping them on Sunday, their

backs get well enough by Monday morning.' That woman, if alive, is doubtless a member of the church now, as then.

"Rev. Dr. Staughton, formerly of Philadelphia, often stated, that when he lived at Georgetown, S.C. he could tell the doings of one of the slaveholders of the Baptist church there by his prayers at the prayer meeting. 'If,' said he, 'that man was upon good terms with his slaves, his words were cold and heartless as frost; if he had been whipping a man, he would pray with life; but if he had left a woman whom he had been flogging, tied to a post in his cellar, with a determination to go back and torture her again, O! how he would pray!' The Rev. Cyrus P. Grosvenor of Massachusetts can confirm the above statement by Dr. Staughton.

"William Wilson, a Presbyterian preacher of Augusta county, Virginia, had a young colored girl who was constitutionally unhealthy. As no means to amend her were availing, he sold her to a member of his congregation, and in the usual style of human flesh dealers, warranted her 'sound,' &c. The fraud was instantly discovered; but he would not refund the amount. A suit was commenced, and was long continued, and finally the plaintiff recovered the money out of which he had been swindled by slave-trading with his own preacher. No Presbytery censured him, although Judge Brown, the chancellor, severely condemned the imposition.

"In the year 1811, Johab Graham, a preacher, lived with Alexander Nelson a Presbyterian elder, near Stanton, Virginia, and he informed me that a man had appeared before Nelson, who was a magistrate, and swore falsely against his slave,—that the elder ordered him thirty-nine lashes. All that wickedness was done as an excuse for his dissipated owner to obtain money. A negro trader had offered him a considerable sum for the 'boy,' and under the pretence of saving him from the punishment of the law, he was trafficked away from his woman and children to another state. The magistrate was aware of the perjury, and the whole abomination, but all the truth uttered by every colored person in the southern states would not be of any avail against the notorious false swearing of the greatest white villain who ever cursed the world. 'How,' said Johab Graham, can I preach to-morrow?' I replied, 'Very well; go and thunder the doctrine of retribution in their ears, Obadiah 15, till by the divine blessing you kill or cure them. My friends, John M. Nelson of Hillsborough, Ohio, Samuel Linn, and Robert

Herron, and others of the same vicinity, could 'make both the ears of every one who heareth them tingle' with the accounts which they can give of slave-driving by professors of religion in the Shenandoah Valley, Virginia.

"In 1815, near Frederick, in Maryland, a most barbarous planter was killed in a fit of desperation, by four of his slaves *in self-defence*. It was declared by those slaves while in prison that, besides his atrocities among their female associates, he had deliberately butchered a number of his slaves. The four men were murdered by law, to appease the popular clamor. I saw them executed on the twenty-eighth day of Jan'y, 1816. The facts I received from the Rev. Patrick Davidson of Frederick, who constantly visited them during their imprisonment—and who became an abolitionist in consequence of the disclosures which he heard from those men in the jail. The name of the planter is not distinctly recollected, but it can be known by a inspection of the record of the trial in the clerk's office, Frederick.

"A minister of Virginia, still living, and whose name must not be mentioned for fear of Nero Preston and his confederate-hanging myrmidons, informed me of this fact in 1815, in his own house. 'A member of my church, said he, lately whipped a colored youth to death. What shall I do?' I answered, 'I hope you do not mean to continue him in your church.' That minister replied, 'How can we help it' We dare not call him to an account. We have no legal testimony.' Their communion season was then approaching. I addressed his wife,—'Mrs. —— do you mean to sit at the Lord's table with that murderer?'—,'Not I,' she answered: 'I would as soon commune with the devil himself.' The slave killer was equally unnoticed by the civil and ecclesiastical authority.

"John Baxter, a Presbyterian elder, the brother of that slaveholding doctor in divinity, George A. Baxter, held as a slave the wife of a Baptist colored preacher, familiarly called 'Uncle Jack.' In a late period of pregnancy he scourged her so that the lives of herself and her unborn child were considered in jeopardy. Uncle Jack was advised to obtain the liberation of his wife. Baxter finally agreed, I think, to sell the woman and her children, three of them, I believe for six hundred dollars, and an additional hundred if the unborn child survived a certain period after its birth. Uncle Jack was to pay one hundred dollars per annum for his wife and children for seven years, and Baxter held a sort of mortgage upon them for the payment. Uncle

Jack showed me his back in furrows like a ploughed field. His master used to whip up the flesh, then beat it downwards, and then apply the 'negro plaster,' salt, pepper, mustard, and vinegar, until all Jack's back was almost as hard and unimpressible as the bones. There is slaveholding religion! A Presbyterian elder receiving from a Baptist preacher seven hundred dollars for his wife and children. James Kyle and uncle Jack used to tell that story with great Christian sensibility; and uncle Jack would weep tears of anguish over his wife's piteous tale, and tears of ecstasy at the same moment that he was free, and that soon, by the grace of God, his wife and children, as he said, 'would be all free together.'"

Rev. JAMES NOURSE, a Presbyterian clergyman of Mifflia co. Penn., whose father is, we believe, a slaveholder in Washington City, says,—

"The Rev. Mr. M——, now of the Huntingdon Presbytery, after an absence of many months, was about visiting his old friends on what is commonly called the 'Eastern Shore.' Late in the afternoon, on his journey, he called at the house of Rev. A.C. of P——town, Md. With this brother he had been long acquainted. Just at that juncture Mr. C. was about proceeding to whip a colored female, who was his slave. She was firmly tied to a post in FRONT of his dwelling-house. The arrival of a clerical visitor at such a time, occasioned a temporary delay in the execution of Mr. C's purpose. But the delay was only temporary; for not even the presence of such a guest could destroy the bloody design. The guest interceded with all the mildness yet earnestness of a brother and new visitor. But all in vain, 'the woman had been saucy and must be punished.' The cowhide was accordingly produced, and the *Rev. Mr. C.*, a large and very stout man, applied it 'manfully' on 'woman's' bare and 'shrinking flesh.' I say bare, because you know that the slave women generally have but three or four inches of the arm near the shoulder covered, and the neck is left entirely exposed. As the cowhide moved back and forward, striking right and left, on the head, neck and arms, at every few strokes the sympathizing guest would exclaim, 'O, brother C. desist' But brother C. pursued his brutal work, till, after inflicting about sixty lashes, the woman was found to be suffused with blood on the hinder part of her neck, and under her frock between the shoulders. Yet this Rev. gentleman is well esteemed in the church—was, three or four years since, moderator of the synod of Philadelphia, and yet walks abroad, feeling himself unrebuked by law or gospel. Ah, sir does not this narration give

fearful force to the query—*What has the church to do with slavery?* Comment on the facts is unnecessary, yet allow me to conclude by saying, that it is my opinion such occurrences *are not rare in the south.*

J.N."

REV. CHARLES STEWART RENSHAW, of Quincy, Illinois, in a recent letter, speaking of his residence, for a period, in Kentucky, says—

"In a conversation with Mr. Robert Willis, he told me that his negro girl had run away from him some time previous. He was convinced that she was lurking round, and he watched for her. He soon found the place of her concealment, drew her from it, got a rope, and tied her hands across each other, then threw the rope over a beam in the kitchen, and hoisted her up by the wrists; 'and,' said he, 'I whipped her there till I made the lint fly, I tell you.' I asked him the meaning of making 'the lint fly,' and he replied, '*till the blood flew.*' I spoke of the iniquity and cruelty of slavery, and of its immediate abandonment. He confessed it an evil, but said, 'I am a *colonizationist*—I believe in that scheme.' Mr. Willis is a teacher of sacred music, and a member of the Presbyterian Church in Lexington, Kentucky."

Mr. R. speaking of the PRESBYTERIAN MINISTER and church where he resided, says:

"The minister and all the church members held slaves. Some were treated kindly, others harshly. *There was not a shade of difference* between their slaves and those of their *infidel* neighbors, either in their physical, intellectual, or moral state: in some cases they would *suffer* in the comparison.

"In the kitchen of the minister of the church, a slave man was living in open adultery with a slave woman, who was a member of the church, with an 'assured hope' of heaven—whilst the man's wife was on the minister's farm in Fayette county. The minister had to bring a cook down from his farm to the place in which he was preaching. The choice was between the wife of the man and this church member. He *left the wife*, and brought the church member to the adulterer's bed.

"A METHODIST PREACHER last fall took a load of produce down the river. Amongst other *things* he took down five slaves. He sold them at New

Orleans—he came up to Natchez—bought seven there—and took them down and sold them also. Last March he came up to preach the Gospel again. A number of persons on board the steamboat (the Tuscarora.) who had seen him in the slave-shambles in Natchez and New Orleans, and now, for the first time, found him to be a preacher, had much sport at the expense of 'the fine old preacher who dealt in slaves.'

A non-professor of religion, in Campbell county, Ky. sold a female and two children to a Methodist professor, with the proviso that they should not leave that region of country. The slave-driver came, and offered \$5 more for the woman than he had given, and he sold her. She is now in the lower country, and *her orphan babes are in Kentucky.*

"I was much shocked once, to see a Presbyterian elder's wife call a little slave to her to kiss her feet. At first the boy hesitated—but the command being repeated in tones not to be misunderstood, he approached timidly, knelt, and kissed her foot."

Rev. W.T. ALLAN, of Chatham, Illinois, gives the following in a letter dated Feb. 4, 1839:

"Mr. Peter Vanarsdale, an elder of the Presbyterian church in Carrollton, formerly from Kentucky, told me, the other day, that a Mrs. Burford, in the neighborhood of Harrodsburg, Kentucky, had *separated a woman and her children* from their husband and father, taking them into another state. Mrs. B. was a member of the *Presbyterian Church*. The bereaved husband and father was also a professor of religion.

"Mr. V. told me of a slave woman who had lost her son, separated from her by public sale. In the anguish of her soul, she gave vent to her indignation freely, and perhaps harshly. Sometime after, she wished to become a member of the church. Before they received her, she had to make humble confession for speaking as she had done. *Some of the elders that received her, and required the confession, were engaged in selling the son from his mother.*"

The following communication from the Rev. WILLIAM BARDWELL, of Sandwich, Massachusetts, has just been published in Zion's Watchman, New York city:

Mr. Editor:—The following fact was given me last evening, from the pen of a shipmaster, who has traded in several of the principal ports in the south. He is a man of unblemished character, a member of the M.E. Church in this place, and familiarly known in this town. The facts were communicated to me last fall in a letter to his wife, with a request that she would cause them to be published. I give verbatim, as they were written from the letter by brother Perry's own hand while I was in his house.

"A Methodist preacher, Wm. Whitby by name, who married in Bucksville, S.C., and by marriage came into possession of some slaves, in July, 1838, was about moving to another station to preach, and wished, also, to move his family and slaves to Tennessee, much against the will of the slaves, one of which, to get clear from him, ran into the woods after swimming a brook. The parson took after him with his gun, which, however, got wet and missed fire, when he ran to a neighbor for another gun, with the intention, as he said, of killing him: he did not, however, catch or kill him; he chained another for fear of his running away also. The above particulars were related to me by William Whitby himself. THOMAS C. PERRY. March 3, 1839."

"I find by examining the minutes of the S.C. Conference, that there is such a preacher in the Conference, and brother Perry further stated to me that he was well acquainted with him, and if this statement was published, and if it could be known where he was since the last Conference, he wished a paper to be sent him containing the whole affair. He also stated to me, verbally, that the young man he attempted to shoot was about nineteen years of age, and had been shut up in a corn-house, and in the attempt of Mr. Whitby to chain him, he broke down the door and made his escape as above mentioned, and that Mr. W. was under the necessity of hiring him out for one year, with the risk of his employer's getting him. Brother Perry conversed with one of the slaves, who was so old that he thought it not profitable to remove so far, and had been sold; *he* informed him of all the above circumstances, and said, with tears, that he thought he had been so faithful as to be entitled to liberty, but instead of making him free, he had sold him to another master, besides parting one husband and wife from those ties rendered a thousand times dearer by an infant child which was torn for ever from the husband.

WILLIAM BARDWELL.

Sandwich, Mass., March 4, 1839."

Mr. WILLIAM POE, till recently a slaveholder in Virginia, now an elder in the Presbyterian Church at Delhi, Ohio, gives the following testimony:—

"An elder in the Presbyterian Church in Lynchburg had a most faithful servant, whom he flogged severely and sent him to prison, and had him confined as a felon a number of days, for being *saucy*. Another elder of the same church, an auctioneer, habitually sold slaves at his stand—very frequently *parted families*—would often go into the country to sell slaves on execution and otherwise; when remonstrated with, he justified himself, saying, 'it was his business;' the church also justified him on the same ground.

"A Doctor Duval, of Lynchburg, Va. got offended with a very faithful, worthy servant, and immediately sold him to a negro trader, to be taken to New Orleans; Duval still keeping the wife of the man as his slave. This Duval was a professor of religion."

Mr. SAMUEL HALL, a teacher in Marietta College, Ohio, says, in a recent letter:—

"A student in Marietta College, from Mississippi, a professor of religion, and in every way worthy of entire confidence, made to me the following statement. [If his name were published it would probably cost him his life.]

"When I was in the family of the Rev. James Martin, of Louisville, Winston county, Mississippi, in the spring of 1838, Mrs. Martin became offended at a female slave, because she did not move faster. She commanded her to do so; the girl quickened her pace; again she was ordered to move faster, or, Mrs. M. declared, she would break the broomstick over her head. Again the slave quickened her pace; but not coming up to the *maximum* desired by Mrs. M. the latter declared she would *see* whether she (the slave) could move or not: and, going into another apartment, she brought in a raw hide, awaiting the return of her husband for its application. In this instance I know not what was the final result, but I have heard the sound of the raw-hide in at least *two* other instances, applied by this same reverend gentleman to the back of his *female* servant."

Mr. Hall adds—"The name of my informant must be suppressed, as" he says, "there are those who would cut my throat in a moment, if the information I give were to be coupled with my name." Suffice it to say that he is a professor of religion, a native of Virginia, and a student of Marietta College, whose character will bear the strictest scrutiny. He says:—

"In 1838, at Charlestown, Va. I conversed with several members of the church under the care of the Rev. Mr. Brown, of the same place. Taking occasion to speak of slavery, and of the sin of slaveholding, to one of them who was a lady, she replied, "I am a slaveholder, and I *glory* in it." I had a conversation, a few days after, with the pastor himself, concerning the state of religion in his church, and who were the most exemplary members in it. The pastor mentioned several of those who were of that description; the *first* of whom, however, was the identical lady who *gloried* in being a slaveholder! That church numbers nearly two hundred members.

"Another lady, who was considered as devoted a Christian as any in the same church, but who was in poor health, was accustomed to flog some of her female domestics with a raw-hide till she was exhausted, and then go and lie down till her strength was recruited, rising again and resuming the flagellation. This she considered as not at all derogatory to her Christian character."

Mr. JOEL S. BINGHAM, of Cornwall, Vermont, lately a student in Middlebury College, and a member of the Congregational Church, spent a few weeks in Kentucky, in the summer of 1838. He relates the following occurrence which took place in the neighborhood where he resided, and was a matter of perfect notoriety in the vicinity.

"Rev. Mr. Lewis, a Baptist minister in the vicinity of Frankfort, Ky. had a slave that ran away, but was retaken and brought back to his master, who threatened him with punishment for making an attempt to escape. Though terrified the slave immediately attempted to run away again. Mr. L. commanded him to stop, but he did not obey. *Mr. L. then took a gun, loaded with small shot and fired at the slave, who fell*; but was not killed, and afterward recovered. Mr. L. did not probably intend to kill the slave, as it was his legs which were aimed at and received the contents of the gun. The

master asserted that he was driven to this necessity to maintain his authority. This took place about the first of July, 1838."

The following is given upon the authority of Rev. ORANGE SCOTT, of Lowell, Mass. for many years a presiding elder in the Methodist Episcopal Church.

"Rev. Joseph Hough, a Baptist minister, formerly of Springfield, Mass. now of Plainfield, N.H. while traveling in the south, a few years ago, put up one night with a Methodist family, and spent the Sabbath with them. While there, one of the female slaves did something which displeased her mistress. She took a chisel and mallet, and very deliberately cut off one of her toes!"

SLAVE BREEDING AN INDEX OF PUBLIC 'OPINION' AMONG THE 'HIGHEST CLASS OF SOCIETY' IN VIRGINIA AND OTHER NORTHERN SLAVE STATES.

But we shall be told, that 'slave-breeders' are regarded with contempt, and the business of slave breeding is looked upon as despicable; and the hot disclaimer of Mr. Stevenson, our Minister Plenipotentiary at the Court of St. James, in reply to Mr. O'Connell, who had intimated that he might be a 'slave breeder,' will doubtless be quoted.[\[40\]](#) In reply, we need not say what every body knows, that if Mr. Stevenson is not a 'slave breeder,' he is a solitary exception among the large slaveholders of Virginia. What! Virginia slaveholders not 'slave-breeders?' the pretence is ridiculous and contemptible; it is meanness, hypocrisy, and falsehood, as is abundantly proved by the testimony which follows:—

[Footnote [40](#): The following is Mr. Stevenson's disclaimer: It was published in the 'London Mail,' Oct 30, 1838.

To the Editor of the Evening Mail:

Sir—I did not see until my return from Scotland the note addressed by Mr. O'Connell, to the editor of the Chronicle, purporting to give an explanation of the correspondence which has passed between us, and which I deemed it proper to make public. I do not intend to be drawn into any discussion of

the subject of domestic slavery as it exists in the United States, nor to give any explanation of the motives or circumstances under which I have acted.

Disposed to regard Mr. O'Connell as a man of honor. I was induced to take the course I did; whether justifiable or not, the world will now decide. The tone and report of his last note (in which he disavows responsibility for any thing he may say) precludes any further notice from me, than to say that the charge which he has thought proper again to repeat, of my being a breeder of slaves for sale and traffick, is wholly destitute of truth; and that I am warranted in believing it has been made by him without the slightest authority. SUCH, TOO, I VENTURE TO SAY, IS THE CASE IN RELATION TO HIS CHARGE OF SLAVE-BREEDING IN VIRGINIA.

I make this declaration, not because I admit Mr. O'Connell's right to call for it, but to prevent my silence from being misinterpreted.

A. STEVENSON

23 Portland Place, Oct. 29]

Mr. GHOLSON, of Virginia, in his speech in the Legislature of that state, Jan. 18, 1832, (see *Richmond Whig*,) says:—

"It has always (perhaps erroneously) been considered by steady and old-fashioned people, that the owner of land had a reasonable right to its annual profits; the owner of orchards, to their annual fruits; the owner of *brood mares*, to their product; and the owner of *female slaves*, to their *increase*. We have not the fine-spun intelligence, nor legal acumen, to discover the technical distinctions drawn by gentlemen. The legal maxim of '*Partus sequitur ventrem*' is coeval with the existence of the rights of property itself, and is founded in wisdom and justice. It is on the justice and inviolability of this maxim that the master foregoes the service of the female slave; has her nursed and attended during the period of her gestation, and raises the helpless and infant offspring. The value of the property justifies the expense; and I do not hesitate to say, that in its *increase consists much of our wealth*."

Hon. THOMAS MANN RANDOLPH, of Virginia. formerly Governor of that state, in his speech before the legislature in 1832, while speaking of the

number of slaves annually sold from Virginia to the more southern slave states, said:—

"The exportation has *averaged* EIGHT THOUSAND FIVE HUNDRED for the last twenty years. Forty years ago, the whites exceeded the colored 25,000, the colored now exceed the whites 81,000; and these results too during an exportation of near 260,000 slaves since the year 1790, now perhaps the fruitful progenitors of half a million in other states. It is a practice and an increasing practice, in parts of Virginia, to rear slaves for market. How can an honorable mind, a patriot and a lover of his country, bear to see this ancient dominion converted into one grand menagerie, where men are to be reared for market, like oxen for the shambles."

Professor DEW, now President of the University of William and Mary, Virginia, in his Review of the Debate in the Virginia Legislature, 1831-2, says, p 49.

"From all the information we can obtain, we have no hesitation in saying that upwards of six thousand [slaves] are yearly exported [from Virginia] to other states.' Again, p. 61: 'The 6000 slaves which Virginia annually sends off to the south, are a source of wealth to Virginia'—Again, p. 120: 'A full equivalent being thus left in the place of the slave, this emigration becomes an advantage to the state, and does not check the black population as much as, at first view, we might imagine—because it furnishes every inducement to the master to attend to the negroes, to ENCOURAGE BREEDING, and to cause the *greatest number possible to be raised*. &c."

"*Virginia is, in fact, a negro-raising state for other states.*"

Extract from the speech of MR. FAULKNER, in the Va. House of Delegates, 1832. [See Richmond Whig.]

"But he [Mr. Gholson,] has labored to show that the Abolition of Slavery, were it practicable, would be *impolitic*, because as the drift of this portion of his argument runs, your slaves constitute the entire wealth of the state, all the *productive capacity* Virginia possesses. And, sir, as things are, *I believe he is correct*. He says, and in this he is sustained by the gentleman from Halifax, Mr. Bruce, that the slaves constitute the entire available wealth at present, of Eastern Virginia. Is it true that for 200 years the only increase in

the wealth and resources of Virginia, has been a remnant of the natural *increase* of this miserable race?—Can it be, that on this *increase*, she places her solo dependence? I had always understood that indolence and extravagance were the necessary concomitants of slavery; but, until I heard these declarations, I had not fully conceived the horrible extent of this evil. These gentlemen state the fact, which the history and *present aspect of the Commonwealth but too well sustain*. The gentlemen's facts and argument in support of his plea of impolicy, to me, seem rather unhappy. To me, such a state of things would itself be conclusive at least, that something, even as a measure of policy, should be done. What, sir, have you lived for two hundred years, without personal effort or productive industry, in extravagance and indolence, sustained alone *by the return from sales of the increase of slaves*, and retaining merely such a number as your now impoverished lands can sustain, AS STOCK, *depending, too, upon a most uncertain market*? When that market is closed, as in the nature of things it must be, what then will become of this gentleman's hundred millions worth of slaves, AND THE ANNUAL PRODUCT?"

In the debates in the Virginia Convention, in 1829, Judge Upsher said—"The value of slaves as an article of property [and it is in that view only that they are legitimate subjects of taxation] *depends much on the state of the market abroad*. In this view, it is the value of land *abroad*, and not of land here, which furnishes the ratio. It is well known to us all, that nothing is more fluctuating than the value of slaves. A late law of Louisiana reduced their value 25 per cent, in two hours after its passage was known. IF IT SHOULD BE OUR LOT, AS I TRUST IT WILL BE, TO ACQUIRE THE COUNTRY OF TEXAS, THEIR PRICE WILL RISE AGAIN."—p. 77.

Mr. Goode, Of Virginia, in his speech before the Virginia Legislature, in Jan. 1832, [See Richmond Whig, of that date,] said:—

"The superior usefulness of the slaves in the south, will constitute an *effectual demand*, which will remove them from our limits. We shall send them from our state, because *it will be our interest to do so*. Our planters are already becoming farmers. Many who grew tobacco as their only staple, have already introduced, and commingled the wheat crop. They are already semi-farmers; and in the natural course of events, they must become more and more so.—As the greater quantity of rich western lands are

appropriated to the production of the staple of our planters, that staple will become less profitable.—We shall gradually divert our lands from its production, until we shall become actual farmers.—Then will the necessity for slave labor diminish; then will the effectual demand diminish, and then will the quantity of slaves diminish, until they shall be adapted to the effectual demand.

"But gentlemen are alarmed *lest the markets of other states be closed against the introduction of our slaves*. Sir, the demand for slave labor MUST INCREASE through the South and West. It has been heretofore limited by the want of capital; but when emigrants shall be relieved from their embarrassments, contracted by the purchase of their lands, the annual profits of their estates, will constitute an accumulating capital, which they will *seek to invest in labor*. That the demand for labor must increase in proportion to the increase of capital, is one of the demonstrations of political economists; and I confess, that for the removal of slavery from Virginia, I look to the efficacy of that principle; together with the circumstance that our southern brethren are constrained to continue planters, by their position, soil and climate."

The following is from Niles' Weekly Register, published at Baltimore, Md. vol. 35, p. 4.

"*Dealing in slaves has become a large business*; establishments are made in several places in Maryland and Virginia, at which they are sold like cattle; these places of deposit are strongly built, and well supplied with thumb-screws and gags, and ornamented with cow-skins and other whips oftentimes bloody."

R.S. FINLEY, Esq., late General Agent of the American Colonization Society, at a meeting in New York, 27th Feb. 1833, said:

"In Virginia and other grain-growing slave states, the blacks do not support themselves, and the only profit their masters derive from them is, repulsive as the idea may justly seem, in breeding them, like other live stock for the more southern states."

Rev. Dr. GRAHAM, of Fayetteville, N.C. at a Colonization Meeting, held in that place in the fall of 1837 said:

"He had resided for 15 years in one of the largest slaveholding counties in the state, had long and anxiously considered the subject, and still it was dark. There were nearly 7000 slaves offered in New Orleans market last winter. From Virginia alone 6000 were annually sent to the south; and from Virginia and N.C. there had gone, in the same direction, in the last twenty years, 300,000 slaves. While not 4000 had gone to Africa. What it portended, he could not predict, but he felt deeply, that *we must awake in these states and consider the subject.*"

Hon. PHILIP DODDRIDGE, of Virginia, in his speech in the Virginia Convention, in 1829, [Debates p. 89.] said:—

"The acquisition of Texas will greatly *enhance the value of the property*, in question, [Virginia slaves.]"

Hon C.F. MERCER, in a speech before the same Convention, in 1829, says:

"The tables of the natural growth of the slave population demonstrate, when compared with the increase of its numbers in the commonwealth for twenty years past, that an annual revenue of not less than a million and a half of dollars is derived from the exportation of a part of this population." (Debates, p. 199.)

Hon. HENRY CLAY, of Ky., in his speech before the Colonization Society, in 1829, says:

"It is believed that nowhere in the farming portion of the United States, would slave labor be generally employed, if the proprietor were not tempted to RAISE SLAVES BY THE HIGH PRICE OF THE SOUTHERN MARKET WHICH KEEPS IT UP IN HIS OWN."

The New Orleans Courier, Feb. 15, 1839, speaking of the prohibition of the African Slave-trade, while the internal slave-trade is plied, says:

"The United States law may, and probably does, put MILLIONS *into the pockets of the people living between the Roanoke, and Mason and Dixon's line*; still we think it would require some casuistry to show that *the present slave-trade from that quarter* is a whit better than the one from Africa. One thing is certain—that its results are more menacing to the tranquillity of the people in this quarter, as there can be no comparison between the ability

and inclination to do mischief, possessed by the Virginia negro, and that of the rude and ignorant African."

That the New Orleans Editor does not exaggerate in saying that the internal slave-trade puts 'millions' into the pockets of the slaveholders in Maryland and Virginia, is very clear from the following statement, made by the editor of the Virginia Times, an influential political paper, published at Wheeling, Virginia. Of the exact date of the paper we are not quite certain, it was, however, sometime in 1836, probably near the middle of the year—the file will show. The editor says:—

"We have heard intelligent men estimate the number of slaves exported from Virginia within the last twelve months, at 120,000—each slave averaging at least \$600, making an aggregate at \$72,000,000. Of the number of slaves exported, not more than *one-third* have been sold, (the others having been carried by their owners, who have removed,) *which would leave in the state the SUM OF \$24,000,000 ARISING FROM THE SALE OF SLAVES.*"

According to this estimate about FORTY THOUSAND SLAVES WERE SOLD OUT OF THE STATE OF VIRGINIA IN A SINGLE YEAR, and the 'slave-breeders' who hold them, put into their pockets TWENTY-FOUR MILLION OF DOLLARS, the price of the 'souls of men.'

The New York Journal of Commerce of Oct. 12, 1835, contained a letter from a Virginian, whom the editor calls 'a very good and sensible man,' asserting that TWENTY THOUSAND SLAVES had been driven to the south from Virginia *during that year*, nearly one-fourth of which was then remaining.

The Maryville (Tenn.) Intelligencer, some time in the early part of 1836, (we have not the date,) says, in an article reviewing a communication of Rev. J.W. Douglass, of Fayetteville, North Carolina: "Sixty thousand slaves passed through a little western town for the southern market, during the year 1835."

The Natchez (Miss.) Courier, says "that the states of Louisiana, Mississippi, Alabama, and Arkansas, imported TWO HUNDRED AND FIFTY

THOUSAND SLAVES from the more northern slave states in the year 1836."

The Baltimore American gives the following from a Mississippi paper, of 1837:

"The report made by the committee of the citizens Of Mobile, appointed at their meeting held on the 1st instant, on the subject of the existing pecuniary pressure, states, among other things: that so large has been the return of slave labor, that purchases by Alabama of that species of property from other states since 1833, have amounted to about TEN MILLION DOLLARS ANNUALLY."

FURTHER the *inhumanity* of a slaveholding 'public opinion' toward slaves, follows legitimately from the downright ruffianism of the slaveholding *spirit* in the 'highest class of society,' When roused, it tramples upon all the proprieties and courtesies, and even common decencies of life, and is held in check by none of those considerations of time, and place, and relations of station, character, law, and national honor, which are usually sufficient, even in the absence of conscientious principles, to restrain other men from outrages. Our National Legislature is a fit illustration of this. Slaveholders have converted the Congress of the United States into a very bear garden. Within the last three years some of the most prominent slaveholding members of the House, and among them the late speaker, have struck and kicked, and throttled, and seized each other by the hair, and with their fists pummelled each other's faces, on the floor of Congress. We need not publish an account of what every body knows, that during the session of the last Congress, Mr. Wise of Virginia and Mr. Bynum of North Carolina, after having called each other "liars, villains" and "damned rascals" sprung from their seats "both sufficiently armed for any desperate purpose," cursing each other as they rushed together, and would doubtless have butchered each other on the floor of Congress, if both had not been seized and held by their friends.

The New York Gazette relates the following which occurred at the close of the session of 1838.

"The House could not adjourn without another brutal and bloody row. It occurred on Sunday morning immediately at the moment of adjournment,

between Messrs. Campbell and Maury, both of Tennessee. He took offence at some remarks made to him by his colleague, Mr. Campbell, and the fight followed."

The Huntsville (Ala.) Democrat of June 16, 1838, gives the particulars which follow:

"Mr. Maury is said to be badly hurt. He was near losing his life by being knocked through the window; but his adversary, it is said, saved him by clutching the hair of his head with his left hand, while he struck him with his right."

The same number of the Huntsville Democrat, contains the particulars of a fist-fight on the floor of the House of Representatives, between Mr. Bell, the late Speaker, and his colleague Mr. Turney of Tennessee. The following is an extract:

"Mr. Turney concluded his remarks in reply to Mr. Bell, in the course of which he commented upon that gentleman's course at different periods of his political career with great severity.

"He did not think his colleague [Mr. Turney,] was actuated by private malice, but was the willing voluntary instrument of others, the tool of tools.

Mr. Turney. It is false! it is false!

Mr. Stanley called Mr. TURNEY to order.

At the same moment both gentlemen were perceived in personal conflict, and blows with the fist were aimed by each at the other. Several members interfered, and suppressed the personal violence; others called order, order, and some called for the interference of the Speaker.

The Speaker hastily took the chair, and insisted upon order; but both gentlemen continued struggling, and endeavoring, notwithstanding the constraint of their friends, to strike each other."

The correspondent of the New York Gazette gives the following, which took place about the time of the preceding affrays:

"The House was much agitated last night, by the passage between Mr. Biddle, of Pittsburgh, and Mr. Downing, of Florida. Mr. D. exclaimed "do you impute falsehood to me!" at the same time catching up some missile and making a demonstration to advance upon Mr. Biddle. Mr. Biddle repeated his accusation, and meanwhile, Mr. Downing was arrested by many members."

The last three fights all occurred, if we mistake not, in the short space of one month. The fisticuffs between Messrs. Bynum and Wise occurred at the previous session of Congress. At the same session Messrs. Peyton of Tenn. and Wise of Virginia, went armed with pistols and dirks to the meeting of a committee of Congress, and threatened to shoot a witness while giving his testimony.

We begin with the first on the list. Who are Messrs. Wise and Bynum? Both slaveholders. Who are Messrs. Campbell and Maury? Both slaveholders. Who are Messrs. Bell and Turney? Both slaveholders. Who is Mr. Downing, who seized a weapon and rushed upon Mr. Biddle? A slaveholder. Who is Mr. Peyton who drew his pistol on a witness before a committee of Congress? A slaveholder of course. All these bullies were slaveholders, and they magnified their office, and slaveholding was justified of her children. We might fill a volume with similar chronicles of slaveholding brutality. But time would fail us. Suffice it to say, that since the organization of the government, a majority of the most distinguished men in the slaveholding states have gloried in strutting over the stage in the character of murderers. Look at the men whom the people delight to honor. President Jackson, Senator Benton, the late Gen. Coffee,—it is but a few years since these slaveholders shot at, and stabbed, and stamped upon each other in a tavern broil. General Jackson had previously killed Mr. Dickenson. Senator Clay of Kentucky has immortalized himself by shooting at a near relative of Chief Justice Marshall, and being wounded by him; and not long after by shooting at John Randolph of Virginia. Governor M'Duffie of South Carolina has signalized himself also, both by shooting and being shot,—so has Governor Poindexter, and Governor Rowan, and Judge M'Kinley of the U.S. Supreme Court, late senator in Congress from Alabama,—but we desist; a full catalogue would fill pages. We will only add, that a few months since, in the city of London, Governor Hamilton, of South Carolina, went armed with pistols, to the lodgings of Daniel

O'Connell, 'to stop his wind' in the bullying slang of his own published boast. During the last session of Congress Messrs. Dromgoole and Wise^[41] of Virginia, W. Cost Johnson and Jenifer of Maryland, Pickens and Campbell of South Carolina, and we know not how many more slaveholding members of Congress have been engaged, either as principals or seconds, in that species of murder dignified with the name of duelling. But enough; we are heart-sick. What meaneth all this? Are slaveholders worse than other men? No! but arbitrary power has wrought in them its mystery of iniquity, and poisoned their better nature with its infuriating sorcery.

[Footnote ⁴¹: Mr. WISE said in one of his speeches during the last session of Congress, that he was obliged to go armed for the protection of his life in Washington. It could not have been for fear of *Northern* men.]

Their savage ferocity toward each other when their passions are up, is the natural result of their habit of daily plundering and oppressing the slave.

The North Carolina Standard of August 30, 1837, contains the following illustration of this ferocity exhibited by two southern lawyers in settling the preliminaries of a duel.

"The following conditions were proposed by Alexander K. McClung, of Raymond, in the State of Mississippi, to H.C. Stewart, as the laws to govern a duel they were to fight near Vicksburg:

"Article 1st. The parties shall meet opposite Vicksburg, in the State of Louisiana, on Thursday the 29th inst. precisely at 4 o'clock, P.M. Agreed to.

"2d. The weapons to be used by each shall weigh one pound two and a half ounces, measuring sixteen inches and a half in length, including the handle, and one inch and three-eighths in breadth. Agreed to.

"3d. Both knives shall be sharp on one edge, and on the back shall be sharp only one inch at the point. Agreed to.

"4th. Each party shall stand at the distance of eight feet from the other, until the word is given. Agreed to.

"5th. The second of each party shall throw up, with a silver dollar, on the ground, for the word, and two best out of three shall win the word. Agreed to.

"6th. After the word is given, either party may take what advantage he can with his knife, but on throwing his knife at the other, shall be shot down by the second of his opponent. Agreed to.

"7th. Each party shall be stripped entirely naked, except one pair of linen pantaloons; one pair of socks, and boots or pumps as the party please. Acceded to.

"8th. The wrist of the left arm of each party shall be tied tight to his left thigh, and a strong cord shall be fastened around his left arm at the elbow, and then around his body. Rejected.

"9th. After the word is given, each party shall be allowed to advance or recede as he pleases, over the space of twenty acres of ground, until death ensues to one of the parties. Agreed to—the parties to be placed in the centre of the space.

"10th. The word shall be given by the winner of the same, in the following manner, viz: "Gentlemen are you ready?" Each party shall then answer, "I am!" The second giving the word shall then distinctly command—*strike*. Agreed to.

"If either party shall violate these rules, upon being notified by the second of either party, he may be liable to be shot down instantly. As established usage points out the duty of both parties, therefore notification is considered unnecessary."

The FAVORITE AMUSEMENTS of slaveholders, like the gladiatorial shows of Rome and the Bull Fights of Spain, reveal a public feeling insensible to suffering, and a depth of brutality in the highest degree revolting to every truly noble mind. One of their most common amusements is cock fighting. Mains of cocks, with twenty, thirty, and fifty cocks on each side, are fought for hundreds of dollars aside. The fowls are armed with

steel spurs or '*gafts*,' about two inches long. These '*gafts*' are fastened upon the legs by sawing off the *natural* '*spur*,' leaving only enough of it to answer the purpose of a *stock* for the tube of the "*gafts*," which are so sharp that at a stroke the fowls thrust them through each other's necks and heads, and tear each other's bodies till one or both dies, then two others are brought forward for the amusement of the multitude assembled, and this barbarous pastime is often kept up for days in succession, hundreds and thousands gathering from a distance to witness it. The following advertisements from the Raleigh Register, June 18, 1838, edited by Messrs. Gales and Son, the father and brother of Mr. Gales, editor of the National Intelligencer, and late Mayor of Washington City, reveal the public sentiment of North Carolina.

"CHATHAM AGAINST NASH, or any other county in the State. I am authorized to take a bet of any amount that may be offered, to FIGHT A MAIN OF COCKS, at any place that may be agreed upon by the parties—to be fought the ensuing spring. GIDEON ALSTON. Chatham county, June 7, 1838."

Two weeks after, this challenge was answered as follows:

"TO MR. GIDEON ALSTON, of Chatham county, N.C.

"SIR: In looking over the North Carolina Standard of the 20th inst. I discover a challenge over your signature, headed 'Chatham against Nash,' in which you state: that you are 'authorized to take a bet of any amount that may be offered, to fight a main of cocks, at any place that may be agreed upon by the parties, to be fought the ensuing spring' which challenge I ACCEPT: and do propose to meet you at Rolesville, in Wake county, N.C. on the last Wednesday in May next, the parties to show thirty-one cocks each—fight four days, and be governed by the rules as laid down in Turner's Cock Laws—which, if you think proper to accede to, you will signify through this or any other medium you may select, and then I will name the sum for which we shall fight, as that privilege was surrendered by you in your challenge.

"I am, sir, very respectfully, &c. NICHOLAS W. ARRINGTON, near Hilliardston, Nash co. North Carolina June 22nd, 1838"

The following advertisement in the Richmond Whig, of July 12, 1837, exhibits the public sentiment of Virginia.

"MAIN OF COCKS.—A large 'MAIN OF COCKS,' 21 a side, for \$25 'the fight', and \$500 'the odd,' will be fought between the County of Dinwiddie on one part, and the Counties of Hanover and Henrico on the other.

"The 'regular' fighting will be continued *three days*, and from the large number of 'game uns' on both sides and in the adjacent country, will be prolonged no doubt a *fourth*. To prevent confusion and promote 'sport,' the Pit will be enclosed and furnished with *seats*; so that those having a curiosity to witness a species of diversion originating in a better day (for they had no rag money then,) can have *that* very *natural* feeling gratified.

"The Petersburg Constellation is requested to copy."

Horse-racing too, as every body knows, is a favorite amusement of slaveholders. Every slave state has its race course, and in the older states almost every county has one on a small scale. There is hardly a day in the year, the weather permitting, in which crowds do not assemble at the south to witness this barbarous sport. Horrible cruelty is absolutely inseparable from it. Hardly a race occurs of any celebrity in which some one of the coursers is not lamed, 'broken down,' or in some way seriously injured, often for life, and not unfrequently they are killed by the rupture of some vital part in the struggle. When the heats are closely contested, the blood of the tortured animal drips from the lash and flies at every leap from the stroke of the rowel. From the breaking of girths and other accidents, their riders (mostly slaves) are often thrown and maimed or killed. Yet these amusements are attended by thousands in every part of the slave states. The wealth and fashion, the gentlemen and *ladies* of the 'highest circles' at the south, throng the race course.

That those who can fasten steel spurs upon the legs of dunghill fowls, and goad the poor birds to worry and tear each other to death—and those who can crowd by thousands to *witness* such barbarity—that those who can throng the race-course and with keen relish witness the hot pantings of the life-struggle, the lacerations and fitful spasms of the muscles, swelling through the crimsoned foam, as the tortured steeds rush in blood-welterings

to the goal—that such, should look upon the sufferings of their slaves with, indifference is certainly small wonder.

Perhaps we shall be told that there are thronged race-courses at the North. True, there are a few, and they are thronged chiefly by *Southerners*, and 'Northern men with *Southern* principles,' and supported mainly by the patronage of slaveholders who summer at the North. Cock-fighting and horse-racing are "*Southern* institutions." The idleness, contempt of labor, dissipation, sensuality, brutality, cruelty, and meanness, engendered by the habit of making men and women work without pay, and flogging them if they demur at it, constitutes a congenial soil out of which cock-fighting and horse-racing are the spontaneous growth.

Again,—The kind treatment of the slaves is often argued from the liberal education and enlarged views of slaveholders. The facts and reasonings of the preceding pages have shown, that 'liberal education,' despotic habits and ungoverned passions work together with slight friction. And every day's observation shows that the former is often a stimulant to the latter.

But the notion so common at the north that the majority of the slaveholders are persons of education, is entirely erroneous. A *very few* slaveholders in each of the slave states have been men of *ripe* education, to whom our national literature is much indebted. A larger number may be called *well* educated—these reside mostly in the cities and large villages, but a majority of the slaveholders are ignorant men, thousands of them notoriously so, *mere boors* unable to write their names or to read the alphabet.

No one of the slave states has probably so much general education as Virginia. It is the oldest of them—has furnished one half of the presidents of the United States—has expended more upon her university than any state in the Union has done during the same time upon its colleges—sent to Europe nearly twenty years since for her most learned professors, and in fine, has far surpassed every other slave state in her efforts to disseminate education among her citizens, and yet, the Governor of Virginia in his message to the legislature (Jan. 7, 1839) says, that of four thousand six hundred and fourteen adult males in that state, who applied to the county clerks for marriage licenses in the year 1837, 'ONE THOUSAND AND FORTY SEVEN *were unable to write their names.*' The governor adds, 'These

statements, it will be remembered, are confined to one sex: the education of females it is to be feared, is in a condition of *much greater neglect*.'

The Editor of the Virginia Times, published at Wheeling, in his paper of Jan. 23, 1839, says,—

"We have every reason to suppose that one-fourth of the people of the state cannot write their names, and they have not, of course, any other species of education."

Kentucky is the child of Virginia; her first settlers were some of the most distinguished citizens of the mother state; in the general diffusion of intelligence amongst her citizens Kentucky is probably in advance of all the slave states except Virginia and South Carolina; and yet Governor Clark, in his last message to the Kentucky Legislature, (Dec 5, 1838) makes the following declaration: "From the computation of those most familiar with the subject, it appears that AT LEAST ONE THIRD OF THE ADULT POPULATION OF THE STATE ARE UNABLE TO WRITE THEIR NAMES."

The following advertisement in the "Milledgeville (Geo.) Journal," Dec. 26, 1837, is another specimen from one of the 'old thirteen.'

"NOTICE.—I, Pleasant Webb, of the State of Georgia, Oglethorpe county, being an *illiterate man, and not able to write my own name*, and whereas it hath been represented to me that there is a certain promissory note or notes out against me that I know nothing of, and further that some man in this State holds a bill of sale for *a certain negro woman named Ailsey and her increase, a part of which is now in my possession*, which I also know nothing of. Now do hereby certify and declare, that I have no knowledge whatsoever of any such papers existing in my name as above stated and I hereby require all or any person or persons whatsoever holding or pretending to hold any such papers, to produce them to me within thirty days from the date hereof, shewing their authority for holding the same, or they will be considered fictitious and fraudulently obtained or raised, by some person or persons for base purposes after my death.

"Given under my hand this 2nd day of December, 1837. PLEASANT WEBB. his mark X."

FINALLY, THAT SLAVES MUST HABITUALLY SUFFER GREAT CRUELITIES, FOLLOWS INEVITABLY FROM THE BRUTAL OUTRAGES WHICH THEIR MASTERS INFLICT ON EACH OTHER.

Slaveholders, exercising from childhood irresponsible power over human beings, and in the language of President Jefferson, "giving loose to the worst of passions" in the treatment of their slaves, become in a great measure unfitted for self control in their intercourse with each other. Tempers accustomed to riot with loose reins, spurn restraints, and passions inflamed by indulgence, take fire on the least friction. We repeat it, the state of society in the slave states, the duels, and daily deadly affrays of slaveholders with each other—the fact that the most deliberate and cold-blooded murders are committed at noon day, in the presence of thousands, and the perpetrators eulogized by the community as "honorable men," reveals such a prostration of law, as gives impunity to crime—a state of society, an omnipresent public sentiment reckless of human life, taking bloody vengeance on the spot for every imaginary affront, glorying in such assassinations as the only true honor and chivalry, successfully defying the civil arm, and laughing its impotency to scorn.

When such things are done in the green tree, what will be done in the dry? When slaveholders are in the habit of caning, stabbing, and shooting *each other* at every supposed insult, the unspeakable enormities perpetrated by such men, with such passions, upon their defenceless slaves, *must* be beyond computation. To furnish the reader with an illustration of slaveholding civilization and morality, as exhibited in the unbridled fury, rage, malignant hate, jealousy, diabolical revenge, and all those infernal passions that shoot up rank in the hot-bed of arbitrary power, we will insert here a mass of testimony, detailing a large number of affrays, lynchings, assassinations, &c., &c., which have taken place in various parts of the slave states within a brief period—and to leave no room for cavil on the subject, these extracts will be made exclusively from newspapers published in the slave states, and generally in the immediate vicinity of the tragedies described. They will not be made second hand from *northern* papers, but from the original *southern* papers, which now lie on our table.

Before proceeding to furnish details of certain classes of crimes in the slave states, we advertise the reader—1st. That *we shall not* include in the list

those crimes which are ordinarily committed in the free, as well as in the slave states. 2d. We shall not include any of the crimes perpetrated by whites upon slaves and free colored persons, who constitute a majority of the population in Mississippi and Louisiana, a large majority in South Carolina, and, on an average, two-fifths in the other slave states. 3d. Fist fights, canings, beatings, biting off noses and ears, gougings, knockings down, &c., unless they result in *death*, will not be included in the list, nor will *ordinary* murders, unless connected with circumstances that serve as a special index of public sentiment. 4th. Neither will *ordinary, formal duels* be included, except in such cases as just specified. 5th. The only crimes which, as the general rule, will be specified, will be deadly affrays with bowie knives, dirks, pistols, rifles, guns, or other death weapons, and *lynchings*. 6th. The crimes enumerated will, for the most part, be only those perpetrated *openly*, without *attempt at concealment*. 7th. We shall not attempt to give a full list of the affrays, &c., that took place in the respective states during the period selected, as the only files of southern papers to which we have access are very imperfect.

The reader will perceive, from these preliminaries, that only a *small* proportion of the crimes actually perpetrated in the respective slave states during the period selected, will be entered upon this list. He will also perceive, that the crimes which will be presented are of a class rarely perpetrated in the free states; and if perpetrated there at all, they are, with scarcely an exception, committed either by slaveholders, temporarily resident in them, or by persons whose passions have been inflamed by the poison of a southern contact—whose habits and characters have become perverted by living among slaveholders, and adopting the code of slaveholding morality.

We now proceed to the details, commencing with the new state of Arkansas.

ARKANSAS.

At the last session of the legislature of that state, Col. John Wilson, President of the Bank at Little Rock, the capital of the state, was elected Speaker of the House of Representatives. He had been elected to that office for a number of years successively, and was one of the most influential citizens of the state. While presiding over the deliberations of the House, he took umbrage at words spoken in debate by Major Anthony, a conspicuous member, came down from the Speaker's chair, drew a large bowie knife from his bosom, and attacked Major A., who defended himself for some time, but was at last stabbed through the heart, and fell dead on the floor. Wilson deliberately wiped the blood from his knife, and returned to his seat. The following statement of the circumstances of the murder, and the trial of the murderer, is abridged from the account published in the Arkansas Gazette, a few months since—it is here taken from the Knoxville (Tennessee) Register, July 4, 1838.

"On the 14th of December last, Maj. Joseph J. Anthony, a member of the Legislature of Arkansas, was murdered, while performing his duty as a member of the House of Representatives, by John Wilson, Speaker of that House.

"The facts were these: A bill came from the Senate, commonly called the *Wolf Bill*. Among the amendments proposed, was one by Maj. Anthony, that the signature of the President of the Real Estate Bank should be attached to the certificate of the wolf scalp. Col. Wilson, the Speaker, asked Maj. Anthony whether he intended the remark as personal. Maj. Anthony promptly said, "*No, I do not.*" And at that instant of time, a message was delivered from the Senate, which suspended the proceedings of the House for a few minutes. Immediately after the messenger from the Senate had retired, Maj. Anthony rose from his seat, and said he wished to explain, that he did not intend to insult the Speaker or the House; when Wilson, interrupting, peremptorily ordered him to take his seat. Maj. Anthony said, as a member, he had a right to the floor, to explain himself. Wilson said, in an angry tone, 'Sit down, or you had better;' and thrust his hand into his bosom, and drew out a large bowie knife, 10 or 11 inches in length, and descended from the Speaker's chair to the floor,

with the knife drawn in a menacing manner. Maj. Anthony, seeing the danger he was placed in, by Wilson's advance on him with a drawn knife, rose from his chair, set it out of his way, stepped back a pace or two, and drew his knife. Wilson caught up a chair, and struck Anthony with it. Anthony, recovering from the blow, caught the chair in his left hand, and a fight ensued over the chair. Wilson received two wounds, one on each arm, and Anthony lost his knife, either by throwing it at Wilson, or it escaped by accident. After Anthony had lost his knife, Wilson advanced on Anthony, who was then retreating, looking over his shoulder. Seeing Wilson pursuing him, he threw a chair. Wilson still pursued, and Anthony raised another chair as high as his breast, with a view, it is supposed, of keeping Wilson off. Wilson then caught hold of the chair with his left hand, raised it up, and with his right hand deliberately thrust the knife, up to the hilt, into Anthony's heart, and as deliberately drew it out, and wiping off the blood with his thumb and finger, retired near to the Speaker's chair.

"As the knife was withdrawn from Anthony's heart, he fell a lifeless corpse on the floor, without uttering a word, or scarcely making a struggle; so true did the knife, as deliberately directed, pierce his heart.

"Three days elapsed before the constituted authorities took any notice of this horrible deed; and not then, until a relation of the murdered Anthony had demanded a warrant for the apprehension of Wilson. Several days then elapsed before he was brought before an examining court. He then, in a carriage and four, came to the place appointed for his trial. Four or five days were employed in the examination of witnesses, and never was a clearer case of murder proved than on that occasion. Notwithstanding, the court (Justice Brown dissenting) admitted Wilson to bail, and positively refused that the prosecuting attorney for the state should introduce the law, to show that it was not aailable case, or even to hear an argument from him.

"At the time appointed for the session of the Circuit Court, Wilson appeared agreeably to his recognizance. A motion was made by Wilson's counsel for *change of venue*, founded on the affidavits of Wilson, and two other men. The court thereupon removed the case to

Saline county, and ordered the Sheriff to take Wilson into custody, and deliver him over to the Sheriff of Saline county.

"The Sheriff of Pulaski never confined Wilson one minute, but permitted him to go where he pleased, without a guard, or any restraint imposed on him whatever. On his way to Saline, he entertained him freely at his own house, and the next day delivered him over to the Sheriff of that county, who conducted the prisoner to the debtor's room in the jail, and gave him the key, so that he and every body else had free egress and ingress at all times. Wilson invited every body to call on him, as he wished to see his friends, and his room was crowded with visitors, who called to drink grog, and laugh and talk with him. But this theatre was not sufficiently large for his purpose. He afterwards visited the dram-shops, where he freely treated all that would partake with him, and went fishing and hunting with others at pleasure, and entirely without restraint. He also ate at the same table with the Judge, while on trial.

"When the court met at Saline, Wilson was put on his trial. Several days were occupied in examining the witnesses in the case. After the examination was closed, while Col. Taylor was engaged in a very able, lucid, and argumentative speech, on the part of the prosecution, some man collected a parcel of the rabble, and came within a few yards of the court-house door, and bawled in a loud voice, 'part them—part them!' Every body supposed there was an affray, and ran to the doors and windows to see; behold, there was nothing more than the man, and the rabble he had collected around him, for the purpose of annoying Col. Taylor while speaking. A few minutes afterwards, this same person brought a horse near the court-house door, and commenced crying the horse, as though he was for sale, and continued for ten or fifteen minutes to ride before the court-house door, crying the horse, in a loud and boisterous tone of voice. The Judge sat as a silent listener to the indignity thus offered the court and counsel by this man, without interposing his authority.

"To show the depravity of the times, and the people, after the verdict had been delivered by the jury, and the court informed Wilson that he was discharged, there was a rush toward him: some seized him by the

hand, some by the arm, and there was great and loud rejoicing and exultation, directly in the presence of the court: and Wilson told the Sheriff to take the jury to a grocery, that he might treat them, and invited every body that chose to go. The house was soon filled to overflowing. The rejoicing was kept up till near supper time: but to cap the climax, soon after supper was over, a majority of the jury, together with many others, went to the rooms that had been occupied several days by the friend and relation of the murdered Anthony, and commenced a scene of the most ridiculous dancing, (as it is believed,) in triumph for Wilson, and as a triumph over the feelings of the relations of the departed Anthony. The scene did not close here. The party retired to a dram-shop, and continued their rejoicing until about half after 10 o'clock. They then collected a parcel of horns, trumpets, &c., and marched through the streets, blowing them, till near day, when one of the company rode his horse in the porch adjoining the room which was occupied by the relations of the deceased."

This case is given to the reader at length, in order fully to show, that in a community where the law sanctions the commission of every species of outrage upon one class of citizens, it fosters passions which will paralyze its power to protect the other classes. Look at the facts developed in this case, as exhibiting the state of society among slaveholders. 1st. That the members of the legislature are *in the habit* of wearing bowie knives. Wilson's knife was 10 or 11 inches long.[\[42\]](#) 2d. The murderer, Wilson, was a man of wealth, president of the bank at the capital of the state, a high military officer, and had, for many years, been Speaker of the House of Representatives, as appears from a previous statement in the Arkansas Gazette. 3d. The murder was committed in open day, before all the members of the House, and many spectators, not one of whom seems to have made the least attempt to intercept Wilson, as he advanced upon Anthony with his knife drawn, but "made way for him," as is stated in another account. 4th. Though the murder was committed in the state-house, at the capital of the state, days passed before the civil authorities moved in the matter; and they did not finally do it, until the relations of the murdered man demanded a warrant for the apprehension of the murderer. Even then, several days elapsed before he was brought before an examining court. When his trial came on, he drove to it in state, drew up before the door with

"his coach and four," alighted, and strided into court like a lord among his vassals; and there, though a clearer case of deliberate murder never reeked in the face of the sun, yet he was admitted to bail, the court absolutely refusing to hear an argument from the prosecuting attorney, showing that it was not aailable case. 5th. The sheriff of Pulaski county, who had Wilson in custody, "never confined him a moment, but permitted him to go at large wholly unrestrained." When transferred to Saline co. for trial, the sheriff of that county gave Wilson the same liberty, and he spent his time in parties of pleasure, fishing, hunting, and at houses of entertainment. 6th. Finally, to demonstrate to the world, that justice among slaveholders is consistent with itself; that authorizing man-stealing and patronising robbery, it will, of course, be the patron and associate of murder also, the judge who sat upon the case, and the murderer who was on trial for his life before him, were boon-companions together, eating and drinking at the same table throughout the trial. Then came the conclusion of the farce—the uproar round the court-house during the trial, drowning the voice of the prosecutor while pleading, without the least attempt by the court to put it down—then the charge of the judge to the jury, and their unanimous verdict of acquittal—then the rush from all quarters around the murderer with congratulations—the whole crowd in the court room shouting and cheering—then Wilson leading the way to a tavern, inviting the sheriff, and jury, and all present to "a treat"—then the bacchanalian revelry kept up all night, a majority of the jurors participating—the dancing, the triumphal procession through the streets with the blowing of horns and trumpets, and the prancing of horses through the porch of the house occupied by the relations of the murdered Anthony, adding insult and mockery to their agony.

[Footnote [42](#): A correspondent of the "Frederick Herald," writing from Little Rock, says, "Anthony's knife was about *twenty-eight inches* in length. They *all* carry knives here, or pistols. There are several kinds of knives in use—a narrow blade, and about twelve inches long, is called an 'Arkansas tooth-pick.'"]

A few months before this murder on the floor of the legislature, George Scott, Esq., formerly marshall of the state was shot in an affray at Van Buren, Crawford co., Arkansas, by a man named Walker; and Robert

Carothers, in an affray in St. Francis co., shot William Rachel, just as Rachel was shooting at Carothers' father. (*National Intelligencer*, May 8, 1837, and *Little Rock Gazette*, August 30, 1837.)

While Wilson's trial was in progress, Mr. Gabriel Sibley was stabbed to the heart at a public dinner, in St. Francis co., Arkansas, by James W. Grant. (*Arkansas Gazette*, May 30, 1838.)

Hardly a week before this, the following occurred:

"On the 16th ult., an encounter took place at Little Rock, Ark., between David F. Douglass, a young man of 18 or 19, and Dr. Wm. C. Howell. A shot was exchanged between them at the distance of 8 or 10 feet with double-barrelled guns. The load of Douglass entered the left hip of Dr. Howell, and a buckshot from the gun of the latter struck a negro girl, 13 or 14 years of age, just below the pit of the stomach. Douglass then fired a second time and hit Howell in the left groin, penetrating the abdomen and bladder, and causing his death in four hours. The negro girl, at the last dates, was not dead, but no hopes were entertained of her recovery. Douglass was committed to await his trial at the April term of the Circuit Court."—*Louisville Journal*.

The Little Rock Gazette of Oct. 24, says, "We are again called upon to record the cold blooded murder of a valuable citizen. On the 10th instant, Col. John Lasater, of Franklin co., was murdered by John W. Whitson, who deliberately shot him with a shot gun, loaded with a handful of rifle balls, six of which entered his body. He lived twelve hours after he was shot.

"Whitson is the son of William Whitson, who was unfortunately killed, about a year since, in a rencontre with Col. Lasater, (who was fully exonerated from all blame by a jury,) and, in revenge of his father's death, committed this bloody deed."

These atrocities were all perpetrated within a few months of the time of the deliberate assassination, on the floor of the legislature by the speaker, already described, and are probably but a small portion of the outrages committed in that state during the same period. The state of Arkansas contains about forty-five thousand white inhabitants, which is, if we mistake not, the present population of Litchfield county, Connecticut. And

we venture the assertion, that a public affray, with deadly weapons, has not taken place in that county for fifty years, if indeed ever since its settlement a century and a half ago.

MISSOURI.

Missouri became one of the United States in 1821. Its present white population is about two hundred and fifty thousand. The following are a few of the affrays that have occurred there during the years 1837 and '38.

The "Salt River Journal" March 8, 1838, has the following.

"Fatal Affray.—An affray took place during last week, in the town of New London, between Dr. Peake and Dr. Bosley, both of that village, growing out of some trivial matter at a card party. After some words, Bosley threw a glass at Peake, which was followed up by other acts of violence, and in the quarrel Peake stabbed Bosley, several times with a dirk, in consequence of which, Bosley died the following morning. The court of inquiry considered Peake justifiable, and discharged him from arrest."

From the "St. Louis Republican," of September 29, 1837.

"We learn that a fight occurred at Bowling-Green, in this state, a few days since, between Dr. Michael Reynolds and Henry Lalor. Lalor procured a gun, and Mr. Dickerson wrested the gun from him; this produced a fight between Lalor and Dickerson, in which the former stabbed the latter in the abdomen. Mr. Dickerson died of the wound."

The following was in the same paper about a month previous, August 21, 1837.

"A Horse Thief Shot.—A thief was caught in the act of stealing a horse on Friday last, on the opposite side of the river, by a company of persons out sporting. Mr. Kremer, who was in the company, levelled his rifle and ordered him to stop; which he refused; he then fired and lodged the contents in the thief's body, of which he died soon afterwards. Mr. K. went before a magistrate, who after hearing the case, REFUSED TO HOLD HIM FOR FURTHER TRIAL!"

On the 5th of July, 1838, Alpha P. Buckley murdered William Yaochum in an affray in Jackson county, Missouri. (Missouri Republican, July 24, 1838.)

General Atkinson of the United States Army was waylaid on the 4th of September, 1838, by a number of persons, and attacked in his carriage near St. Louis, on the road to Jefferson Barracks, but escaped after shooting one of the assailants. The New Orleans True American of October 29, '38, speaking of this says: "It will be recollected that a few weeks ago, Judge Dougherty, one of the most respectable citizens of St. Louis, was murdered upon the same road."

The same paper contains the following letter from the murderer of Judge Dougherty.

"Murder of Judge Dougherty.—The St. Louis Republican received the following mysterious letter, unsealed, regarding this brutal murder:—"

"NATCHEZ, Miss., Sept. 24.

"Messrs. Editors:—Revenge is sweet. On the night of the 11th, 12th, and 13th, I made preparations, and did, on the 14th July kill a rascal, and only regret that I have not the privilege of telling the circumstance. I have so placed it that I can never be identified; and further, I have no compunctions of conscience for the death of Thomas M. Dougherty."

But instead of presenting individual affrays and single atrocities, however numerous, (and the Missouri papers abound with them,) in order to exhibit the true state of society there, we refer to the fact now universally notorious, that for months during the last fall and winter, some hundreds of inoffensive Mormons, occupying a considerable tract of land; and a flourishing village in the interior of the state, have suffered every species of inhuman outrage from the inhabitants of the surrounding counties—that for weeks together, mobs consisting of hundreds and thousands, kept them in a state of constant siege, laying waste their lands, destroying their cattle and provisions, tearing down their houses, ravishing the females, seizing and dragging off and killing the men. Not one of the thousands engaged in these horrible outrages and butcheries has, so far as we can learn, been indicted. The following extract of a letter from a military officer of one of the brigades

ordered out by the Governor of Missouri, to terminate the matter, is taken from the North Alabamian of December 22, 1838.

Correspondence of the Nashville Whig.

THE MORMON WAR.

"MILLERSBURG, Mo. November 8.

"Dear Sir—A lawless mob had organized themselves for the express purpose of driving the Mormons from the country, or exterminating them, for no other reason, that I can perceive, than that these poor deluded creatures owned a large and fertile body of land in their neighborhood, and would not let them (the Mobocrats) have it for their own price. I have just returned from the seat of difficulty, and am perfectly conversant with all the facts in relation to it. The mob meeting with resistance altogether unanticipated, called loudly upon the kindred spirits of adjacent counties for help. The Mormons determined to die in defence of their rights, set about fortifying their town "Far West," with a resolution and energy that kept the mob (who all the time were extending their cries of help to all parts of Missouri) at bay. The Governor, from exaggerated accounts of the Mormon depredations, issued orders for the raising of several thousand mounted riflemen, of which this division raised five hundred, and the writer of this was *honored* with the appointment of —— to the Brigade.

"On the first day of this month, we marched for the "seat of war," but General Clark, Commander-in-chief, having reached Far West on the day previous with a large force, the difficulty was settled when we arrived, so we escaped the infamy and disgrace of a bloody victory. Before General Clark's arrival, the mob had increased to about four thousand, and determined to attack the town. The Mormons upon the approach of the mob, sent out a white flag, which being fired on by the mob, Jo Smith and Rigdon, and a few other Mormons of less influence, gave themselves up to the mob, with a view of so far appeasing their wrath as to save their women and children from violence. Vain hope! The prisoners being secured, the mob entered the town and perpetrated every conceivable act of brutality and outrage—forcing fifteen or twenty Mormon girls to yield to their brutal

passions!!! Of these things I was assured by many persons while I was at Far West, in whose veracity I have the utmost confidence. I conversed with many of the prisoners, who numbered about eight hundred, among whom there were many young and interesting girls, and I assure you, a more distracted set of creatures I never saw. I assure you, my dear sir, it was peculiarly heart-rending to see old gray headed fathers and mothers, young ladies and innocent babes, forced at this inclement season, with the thermometer at 8 degrees below zero, to abandon their warm houses, and many of them the luxuries and elegances of a high degree of civilization and intelligence and take up their march for the uncultivated wilds of the Missouri frontier.

"The better informed here have but one opinion of the result of this Mormon persecution, and that is, it is a most fearful extension of Judge Lynch's jurisdiction."

The present white population of Missouri is but thirty thousand less than that of New Hampshire, and yet the insecurity of human life in the former state to that in the latter, is probably at least twenty to one.

ALABAMA.

This state was admitted to the Union in 1819. Its present white population is not far from three hundred thousand. The security of human life to Alabama, may be inferred from the facts and testimony which follow:

The Mobile Register of Nov. 15, 1837, contains the annual message of Mr. McVay, the acting Governor of the state, at the opening of the Legislature. The message has the following on the frequency of homicides:

"We hear of homicides in different parts of the state *continually*, and yet how few convictions for murder, and still fewer executions? How is this to be accounted for? In regard to 'assault and battery with intent to commit murder,' why is it that this offence continues so common—why do we hear of stabbings and shootings *almost daily* in some part or other of our state?"

The "Montgomery (Alabama) Advertiser" of April 22, 1837, has the following from the Mobile Register:

"Within a few days a man was shot in an affray in the upper part of the town, and has since died. The perpetrator of the violence is at large. We need hardly speak of another scene which occurred in Royal street, when a fray occurred between two individuals, a third standing by with a cocked pistol to prevent interference. On Saturday night a still more exciting scene of outrage took place in the theatre.

"An altercation commenced at the porquett entrance between the check-taker and a young man, which ended in the first being desperately wounded by a stab with a knife. The other also drew a pistol. If some strange manifestations of public opinion, do not coerce a spirit of deference to law, and the abandonment of the habit of carrying secret arms, we shall deserve every reproach we may receive, and have our punishment in the unchecked growth of a spirit of lawlessness, reckless deeds, and exasperated feeling, which will destroy our social comfort at home, and respectability abroad."

From the "Huntsville Democrat," of Nov. 7, 1837.

"A trifling dispute arose between Silas Randal and Pharaoh Massingale, both of Marshall county. They exchanged but a few words, when the former drew a Bowie knife and stabbed the latter in the abdomen fronting the left hip to the depth of several inches; also inflicted several other dangerous wounds, of which Massengale died immediately.—Randal is yet at large, not having been apprehended."

From the "Free Press" of August 16, 1838.

"The streets of Gainesville, Alabama, have recently been the scene of a most tragic affair. Some five weeks since, at a meeting of the citizens, Col. Christopher Scott, a lawyer of good standing, and one of the most influential citizens of the place, made a violent attack on the Tombeckbee Rail Road Company. A Mr. Smith, agent for the T.R.R. Company, took Col. C's remarks as a personal insult, and demanded an explanation. A day or two after, as Mr. Smith was passing Colonel Scott's door, he was shot down by him, and after lingering a few hours expired.

"It appears also from an Alabama paper, that Col. Scott's brother, L.S. Scott Esq., and L.J. Smith Esq., were accomplices of the Colonel in the murder."

The following is from the "Natchez Free Trader," June 14, 1838.

"An affray, attended with fatal consequences, occurred in the town of Moulton, Alabama, on the 12th May. It appears that three young men from the country, of the name of J. Walton, Geo. Bowling, and Alexander Bowling, rode into Moulton on that day for the purpose of chastising the bar-keeper at McCord's tavern, whose name is Cowan, for an alleged insult offered by him to the father of young Walton. They made a furious attack on Cowan, and drove him into the bar room of the tavern. Some time after, a second attack was made upon Cowan in the street by one of the Bowlings and Walton, when pistols were resorted to by both parties. Three rounds were fired, and the third shot, which was said to have been discharged by Walton, struck a young man by the name of Neil, who happened to be passing in the street at the time, and killed him instantly. The combatants were taken into custody, and after an examination before two magistrates, were bailed."

The following exploits of the "Alabama Volunteers," are recorded in the Florida Herald, Jan. 1, 1838.

"SAVE US FROM OUR FRIENDS.—On Monday last, a large body of men, calling themselves Alabama Volunteers, arrived in the vicinity of this city. It is reported that their conduct during their march from Tallahassee to this city has been a series of excesses of every description. They have committed almost every crime except murder, and have even threatened life.

"Large numbers of them paraded our streets, grossly insulted our females, and were otherwise extremely riotous in their conduct. One of the squads, forty or fifty in number, on reaching the bridge, where there was a small guard of three or four men stationed, assaulted the guard, overturned the sentry-box into the river, and bodily seized two of the guard, and threw them into the river, where the water was deep, and they were forced to swim for their lives. At one of the men while in the water, they pointed a musket, threatening to kill him; and pelted with every missile which came to hand."

The following Alabama tragedy is published by the "Columbia (S.C.) Telescope," Sept. 2, 1837, from the Wetumpka Sentinel.

"Our highly respectable townsman, Mr. Hugh Ware, a merchant of Wetumpka, was standing in the door of his counting room, between the hours of 8 and 9 o'clock at night, in company with a friend, when an assassin lurked within a few paces of his position, and discharged his musket, loaded with ten or fifteen buckshot. Mr. Ware instantly fell, and expired without a struggle or a groan. A coroner's inquest decided that the deceased came to his death by violence, and that Abner J. Cody, and his servant John, were the perpetrators. John frankly confessed, that his master, Cody, compelled him to assist, threatening his life if he dared to disobey; that he carried the musket to the place at which it was discharged; that his master then received it from him, rested it on the fence, fired and killed Mr. Ware."

From the "Southern (Miss.) Mechanic," April 17, 1838.

"HORRID BUTCHERY.—A desperate fight occurred in Montgomery, Alabama, on the 28th ult. We learn from the Advocate of that city, that the persons engaged were Wm. S. Mooney and Kenyon Mooney, his son, Edward Bell, and Bushrod Bell, Jr. The first received a wound in the abdomen, made by that fatal instrument, the Bowie knife, which caused his death in about fifteen hours. The second was shot in the side, and would doubtless have been killed, had not the ball partly lost its force by first striking his arm. The third received a shot in the neck, and now lies without hope of recovery. The fourth escaped unhurt, and, we understand has fled. This is a brief statement of one of the bloodiest fights that we ever heard of."

From the "Virginia Statesman," May 6, 1837.

"Several affrays, wherein pistols, dirks and knives were used, lately occurred at Mobile. One took place on the 8th inst., at the theatre, in which a Mr. Bellum was so badly stabbed that his life is despaired of. On the Wednesday preceding, a man named Johnson shot another named Snow dead. No notice was taken of the affair."

From the "Huntsville Advocate," June 20, 1837.

"DESPERATE AFFRAY.—On Sunday the 11th inst., an affray of desperate and fatal character occurred near Jeater's Landing, Marshall county, Alabama. The dispute which led to it arose out of a contested right to *possession* of a piece of land. A Mr. Steele was the occupant, and Mr. James McFarlane and some others, claimants. Mr. F. and his friends went to Mr. Steele's house with a view to take possession, whether peaceably or by violence, we do not certainly know. As they entered the house a quarrel ensued between the opposite parties, and some blows perhaps followed; in a short time, several guns were discharged from the house at Mr. McFarlane and friends. Mr. M. was killed, a Mr. Freamster dangerously wounded, and it is thought will not recover; two others were also wounded, though not so as to endanger life. Mr. Steele's brother was wounded by the discharge of a pistol from one of Mr. M's friends. We have heard some other particulars about the affray, but we abstain from giving them, as incidental versions are often erroneous, and as the whole matter will be submitted to legal investigation. Four of Steele's party, his brother, and three whose names are Lenten, Collins and Wills, have been arrested, and are now confined in the gaol in this place."

From the "Norfolk Beacon," July 14, 1838.

"A few days since at Claysville, Marshal co., Alabama, Messrs. Nathaniel and Graves W. Steele, while riding in a carriage, were shot dead, and Alex. Steele and Wm. Collins, also in the carriage, were severely wounded, (the former supposed mortally,) by Messrs. Jesse Allen, Alexander and Arthur McFarlane, and Daniel Dickerson. The Steeles, it appears, last year killed James McFarlane and another person in a similar manner, which led to this dreadful retaliation."

From the Montgomery (Ala.) Advocate—Washington, Autauga Co., Dec. 28, 1838.

"FATAL RENCONTRE.—On Friday last, the 28th ult., a fatal rencontre took place in the town of Washington, Autauga county, between John Tittle and Thomas J. Tarleton, which resulted in the death of the former. After a patient investigation of the matter, Mr. Tarleton was released by the investigating tribunal, on the ground that the homicide was clearly justifiable."

The "Columbus (Ga.) Sentinel" July 6, 1837, quotes the following from the Mobile (Ala.) Examiner.

"A man by the name of Peter Church was killed on one of the wharves night before last. The person by whom it was done delivered himself to the proper authorities yesterday morning. The deceased and destroyer were friends and the act occurred in consequence of an immaterial quarrel."

The "Milledgeville Federal Union" of July 11, 1837, has the following

"In Selma, Alabama resided lately messrs. Philips and Dickerson, physicians. Mr. P. is brother to the wife of V. Bleevin Esq., a rich cotton planter in that neighborhood; the latter has a very lovely daughter, to whom Dr. D. paid his addresses. A short time since a gentleman from Mobile married her. Soon after this, a schoolmaster in Selma set a cry afloat to the effect, that he had heard Dr. D. say things about the lady's conduct before marriage which ought not to be said about any lady. Dr. D. denied having said such things, and the other denied having spread the story; but neither denials sufficed to pacify the enraged parent. He met Dr. D. fired at him two pistols, and wounded him. Dr. D. was unarmed, and advanced to Mr. Bleevin, holding up his hands imploringly, when Mr. B. drew a Bowie knife, and stabbed him to the heart. The doctor dropped dead on the spot: and Mr. Bleevin has been held to bail."

The following is taken from the "Alabama, Intelligencer," Sept. 17, 1838.

"On the 5th instant, a deadly rencounter took place in the streets of Russelville, (our county town,) between John A. Chambers, Esq., of the city of Mobile, and Thomas L. Jones, of this county. In the rencounter, Jones was wounded by several balls which took effect in his chin, mouth, neck, arm, and shoulder, believed to be mortal; he did not fire his gun.

"Mr. Chambers forthwith surrendered himself to the Sheriff of the county, and was on the 6th, tried and fully acquitted, by a court of inquiry."

The "Maysville (Ky.) Advocate" of August 14, 1838, gives the following affray, which took place in Girard, Alabama, July 10th.

"Two brothers named Thomas and Hal Lucas, who had been much in the habit of quarrelling, came together under strong excitement, and Tom, as

was his frequent custom, being about to flog Hal with a stick of some sort, the latter drew a pistol and shot the former, his own brother, through the heart, who almost instantly expired!"

The "New Orleans Bee" of Oct. 5, 1838, relates an affray in Mobile, Alabama, between Benjamin Alexander, an aged man of ninety, with Thomas Hamilton, his grandson, on the 24th of September, in which the former killed the latter with a dirk.

The "Red River Whig" of July 7, 1838, gives the particulars of a tragedy in Western Alabama, in which a planter near Lakeville, left home for some days, but suspecting his wife's fidelity, returned home late at night, and finding his suspicions verified, set fire to his house and waited with his rifle before the door, till his wife and her paramour attempted to rush out, when he shot them both dead.

From the "Morgan (Ala.) Observer," Dec. 1838.

"We are informed from private sources, that on last Saturday, a poor man who was moving westward with his wife and three little children and driving a small drove of sheep, and perhaps a cow or two, which was driven by his family, on arriving in Florence, and while passing through, met with a citizen of that place, who rode into his flock and caused him some trouble to keep it together, when the mover informed the individual that he must not do so again or he would throw a rock at him, upon which some words ensued, and the individual again disturbed the flock, when the mover, as near as we can learn, threw at him upon this the troublesome man got off his horse, went into a grocery, got a gun, and came out and deliberately shot the poor stranger in the presence of his wife and little children. The wounded man then made an effort to get into some house, when his murderous assailant overtook and stabbed him to the heart with a *Bowie knife*. This revolting scene, we are informed, occurred in the presence of many citizens, who, report says, never even lifted their voices in defence of the murdered man."

A late number of the "Flag of the Union," published at Tuscaloosa, the seat of the government of Alabama, states that "since the commencement of the late session of the legislature of that state, no less than THIRTEEN FIGHTS

had been had within sight of the capitol." *Pistols and Bowie knives were used in every case.*

The present white population of Alabama is about the same with that of New Jersey, yet for the last twenty years there has not been so many public deadly affrays, and of such a horrible character, in New Jersey, as have taken place in Alabama within the last eight months.

MISSISSIPPI.

Mississippi became one of the United States in 1817. Its present white population is about one hundred and sixty thousand.

The following extracts will serve to show that those who combine together to beat, rob, and manacle innocent men, women and children, will stick at nothing when their passions are up.

The following murderous affray at Canton, Mississippi, is from the "Alabama Beacon," Sept, 13, 1838.

"A terrible tragedy recently occurred at Canton, Miss., growing out of the late duel between Messrs. Dickins and Drane of that place. A Kentuckian happening to be in Canton, spoke of the duel, and charged Mr. Mitchell Calhoun, the second of Drane, with cowardice and unfairness. Mr. Calhoun called on the Kentuckian for an explanation, and the offensive charge was repeated. *A challenge and fight with Bowie knives, toe to toe*, were the consequences. Both parties were dreadfully and dangerously wounded, though neither was dead at the last advices. Mr. Calhoun is a brother to the Hon. John Calhoun, member of Congress."

Here follows the account of the duel referred to above, between Messrs. Dickins and Drane.

"Intelligence has been received in this town of a fatal duel that took place in Canton, Miss., on the 28th ult., between Rufus K. Dickins, and a Mr. Westley Drane. They fought with double barrelled guns, loaded with buckshot—both were mortally wounded."

The "Louisville Journal" publishes the following, Nov. 23.

"On the 7th instant, a fatal affray took place at Gallatin, Mississippi. The principal parties concerned were, Messrs. John W. Scott, James G. Scott, and Edmund B. Hatch. The latter was shot down and then stabbed twice through the body, by J.G. Scott."

The "Alabama Beacon" of Sept. 13, 1838, says:

"An attempt was made in Vicksburg lately, by a gang of Lynchers, to inflict summary punishment on three men of the name of Fleckenstein. The assault was made upon the house, about 11 o'clock at night. Meeting with some resistance from the three Fleckensteins, a leader of the gang, by the name of Helt, discharged his pistol, and wounded one of the brothers severely in the neck and jaws. A volley of four or five shots was almost instantly returned, when Helt fell dead, a piece of the top of the skull being torn off, and almost the whole of his brains dashed out. His comrades seeing him fall, suddenly took to their heels. There were, it is supposed, some *ten or fifteen* concerned in the transaction."

The "Manchester (Miss.) Gazette," August 11, 1838, says:

"It appears that Mr. Asa Hazeltine, who kept a public or boarding house in Jackson, during the past winter, and Mr. Benjamin Tanner, came here about five or six weeks since, with the intention of opening a public house. Foiled in the design, in the settlement of their affairs some difficulty arose as to a question of veracity between the parties. Mr. Tanner, deeply excited, procured a pistol and loaded it with the charge of death, sought and found the object of his hatred in the afternoon, in the yard of Messrs. Kezer & Maynard, and in the presence of several persons, after repeated and ineffectual attempts on the part of Capt. Jackson to baffle his fell spirit, shot the unfortunate victim, of which wound Mr. Hazeltine died in a short time.

"We understand that Mr. Hazeltine was a native of Boston."

The "Columbia (S.C.) Telescope," Sept. 16, 1837, gives the details below:

"By a letter from Mississippi, we have an account of a rencontre which took place in Rodney, on the 27th July, between Messrs. Thos. J. Johnston and G.H. Wilcox, both formerly of this city. In consequence of certain publications made by these gentlemen against each other,

Johnston challenged Wilcox. The latter declining to accept the challenge, Johnston informed his friends at Rodney, that he would be there at the term of the court then not distant, when he would make an attack upon him. He repaired thither on the 26th, and on the next morning the following communication was read aloud in the presence of Wilcox and a large crowd:

"Rodney, July 27, 1837.

"Mr. Johnston informs Mr. Wilcox, that at or about 1 o'clock of this day, he will be on the common, opposite the Presbyterian Church of this town, waiting and expecting Mr. Wilcox to meet him there.

"I pledge my honor that Mr. Johnston will not fire at Mr. Wilcox, until he arrives at a distance of one hundred yards from him, and I desire Mr. Wilcox or any of his friends, to see that distance accurately measured.

"Mr. Johnston will wait there thirty minutes.

"J. M. DUFFIELD.

"Mr. Wilcox declined being a party to any such arrangement, and Mr. D. told him to be prepared for an attack. Accordingly, about an hour after this, Johnston proceeded towards Wilcox's office, armed with a double-barrelled gun, (one of the barrels rifled,) and three pistols in his belt. He halted about fifty yards from W's door and leveled his gun. W. withdrew before Johnston could fire, and seized a musket, returned to the door and flashed. Johnston fired both barrels without effect. Wilcox then seized a double barrel gun, and Johnston a musket, and both again fired. Wilcox sent twenty-three buck shot over Johnston's head, one of them passing through his hat, and Wilcox was slightly wounded on both hands, his thigh and leg."

From the "Alabama Beacon," May 27, 1838.

"An affray of the most barbarous nature was expected to take place in Arkansas opposite Princeton, on Thursday last. The two original parties have been endeavoring for several weeks, to settle their differences at Natchez. One of the individuals concerned stood pledged, our informant

states, to fight three different antagonists in one day. The fights, we understand, were to be with pistols; but a variety of other weapons were taken along—among others, the deadly Bowie knife. These latter instruments, we are told, were whetted and dressed up at Grand Gulf, as the parties passed up, avowedly with the intention of being used in the field."

From the "Southern (Miss) Argus," Nov. 21, 1837.

"We learn that, at a wood yard above Natchez, on Sunday evening last, a difficulty arose between Captain Crosly, of the steamboat Galenian, and one of his deck passengers. Capt. C. drew a Bowie knife, and made a pass at the throat of the passenger, which failed to do any harm, and the captain then ordered him to leave his boat. The man went on board to get his baggage, and the captain immediately sought the cabin for a pistol. As the passenger was about leaving the boat, the captain presented a pistol to his breast, which snapped. Instantly the enraged and wronged individual seized Capt. Crosly by the throat, and brought him to the ground, when he drew a dirk and stabbed him eight or nine times in the breast, each blow driving the weapon into his body up to the hilt. The passenger was arrested, carried to Natchez, tried and acquitted."

The "Planter's Intelligencer" publishes the following from the Vicksburg Sentinel of June 19, 1838.

"About 1 o'clock, we observed two men 'pummeling' one another in the street, to the infinite amusement of a crowd. Presently a third hero made his appearance in the arena, with Bowie knife in hand, and he cried out, "Let me come at him!" Upon hearing this threat, one of the pugilists 'took himself off,' our hero following at full speed. Finding his pursuit was vain, our hero returned, when an attack was commenced upon another individual. He was most cruelly beat, and cut through the skull with a knife; it is feared the wounds will prove mortal. The sufferer, we learn, is an inoffensive German."

From the "Mississippian," Nov. 9, 1838.

"On Tuesday evening last, 23d, an affray occurred at the town of Tallahassee, in this county, between Hugh Roark and Captain Flack, which resulted in the death of Roark. Roark went to bed, and Flack, who was in the barroom

below, observed to some persons there, that he believed they had set up Roark to whip him; Roark, upon hearing his name mentioned, got out of bed and came downstairs. Flack met and stabbed him in the lower part of his abdomen with a knife, letting out his bowels. Roark ran to the door, and received another stab in the back. He lived until Thursday night, when he expired in great agony. Flack was tried before a justice of the peace, and we understand was only held to bail to appear at court in the event Roark should die."

From the "Grand Gulf Advertiser" Nov. 7, 1838.

"*Attempt at Riot at Natchez.*—The *Courier* says, that in consequence of the discharge of certain individuals who had been arraigned for the murder of a man named *Medill*, a mob of about 200 persons assembled on the night of the 1st instant, with the avowed purpose of *lynching* them. But fortunately, the objects of their vengeance had escaped from town. Foiled in their purpose, the rioters repaired to the shantee where the murder was committed, and precipitated it over the bluff. The military of the city were ordered out to keep order."

From the "Natchez Free Trader."

"A violent attack was lately made on Captain Barrett, of the steamboat *Southerner*, by three persons from Wilkinson co., Miss., whose names are Carey, and one of the name of J.S. Towles. The only reason for the outrage was, that Captain B. had the assurance to require of the gentlemen, who were quarreling on board his boat, to keep order for the peace and comfort of the other passengers. *Towles* drew a Bowie knife upon the Captain; which the latter wrested from him. A pistol, drawn by one of the Careys was also taken, and the assailant was knocked overboard. Fortunately for him he was rescued from drowning. The brave band then landed. On her return up the river, the *Southerner* stopped at Fort Adams, and on her leaving that place, an armed party, among whom were the Careys and Towles, fired into the boat, but happily the shot missed a crowd of passengers on the hurricane deck."

From the "Mississippian," Dec. 18, 1838.

"Greet Spikes, a citizen of this county, was killed a few days ago, between this place and Raymond, by a man named Pegram. It seems that Pegram and Spikes had been carrying weapons for each other for some time past. Pegram had threatened to take Spikes' life on first sight, for the base treatment he had received at his hands.

"We have heard something of the particulars, but not enough to give them at this time. Pegram had not been seen since."

The "Lynchburg Virginian," July 23, 1838, says:

"A fatal affray occurred a few days ago in Clinton, Mississippi. The actors in it were a Mr. Parham, Mr. Shackleford, and a Mr. Henry. Shackleford was killed on the spot, and Henry was slightly wounded by a shot gun with which Parham was armed."

From the "Columbus (Ga.) Sentinel," Nov. 22, 1838.

"*Butchery.*—A Bowie knife slaughter took place a few days since in Honesville, Miss. A Mr. Hobbs was the victim; Strother the butcher."

The "Vicksburg Sentinel," Sept. 28, 1837, says:

"It is only a few weeks since humanity was shocked by a most atrocious outrage, inflicted by the Lynchers, on the person of a Mr. Saunderson of Madison, co. in this state. They dragged this respectable planter from the bosom of his family, and mutilated him in the most brutal manner—maiming him most inhumanly, besides cutting off his nose and ears and scarifying his body to the very ribs! We believe the subject of this foul outrage still drags out a miserable existence—an object of horror and of pity. Last week a club of Lynchers, amounting to four or five individuals, as we have been credibly informed, broke into the house of Mr. Scott of Wilkinson co., a respectable member of the bar, forced him out, and hung him dead on the next tree. We have heard of numerous minor outrages committed against the peace of society, and the welfare and happiness of the country; but we mention these as the most enormous that we have heard for some months.

"It now becomes our painful duty, to notice a most disgraceful outrage committed by the Lynchers of Vicksburg, on last Sunday. The victim was a

Mr. Grace, formerly of the neighborhood of Warrenton, Va., but for two years a resident of this city. He was detected in giving free passes to slaves and brought to trial before Squire Maxey. Unfortunately for the wretch, either through the want of law or evidence, he could not be punished, and he was set at liberty by the magistrate. The city marshal seeing that a few in the crowd were disposed to lay violent hands on the prisoner in the event of his escaping punishment by law, resolved to accompany him to his house. The Lynch mob still followed, and the marshal finding the prisoner could only be protected by hurrying him to jail, endeavored to effect that object. The Lynchers, however, pursued the officer of the law, dragged him from his horse, bruised him, and conveyed the prisoner to the most convenient point of the city for carrying their blood-thirsty designs into execution. We blush while we record the atrocious deed; in this city, containing nearly 5,000 souls, in the broad light of day, this aged wretch was stripped and flogged, we believe within hearing of the lamentations and the shrieks of his afflicted wife and children."

In an affray at Montgomery, Mississippi, July 1, 1838, Mr. A.L. Herbert was killed by Dr. J.B. Harrington. See Grand Gulf Advertiser, August 1, 1838.

The "Maryland Republican" of January 30, 1838, has the following:

"A street rencounter lately took place in Jackson, Miss., between Mr. Robert McDonald and Mr. W.H. Lockhart, in which McDonald was shot with a pistol and immediately expired. Lockhart was committed to prison."

The "Nashville Banner," June 22, 1838, has the following:

"On the 8th inst. Col. James M. Hulet was shot with a rifle without any apparent provocation in Gallatin, Miss., by one Richard M. Jones."

From the "Huntsville Democrat," Dec. 8, 1838.

"The Aberdeen (Miss.) Advocate, of Saturday last, states that on the morning of the day previous, (the 9th) a dispute arose between Mr. Robert Smith and Mr. Alexander Eanes, both of Aberdeen, which resulted in the death of Mr. Smith, who kept a boarding house, and was an amiable man and a good citizen. In the course of the contradictory words of the disputants, the lie was given by Eanes, upon which Smith gathered up a

piece of iron and threw it at Eanes, but which missed him and lodged in the walls of the house. At this Eanes drew a large dirk knife, and stabbed Smith in the abdomen, the knife penetrating the vitals, and thus causing immediate death. Smith breathed only a few seconds after the fatal thrust.

"Eanes immediately mounted his horse and rode off, but was pursued by Mr. Hanes, who arrested and took him back, when he was put under guard to await a trial before the proper authorities."

From the "Vicksburg Register," Nov. 17, 1838.

"On the 2d inst. an affray occurred between one Stephen Scarbrough and A.W. Higbee of Grand Gulf, in which Scarbrough was stabbed with a knife, which occasioned his death in a few hours. Higbee has been arrested and committed for trial."

From the "Huntsville (Ala.) Democrat" Nov. 10, 1838.

"Life in the Southwest.—A friend in Louisiana writes, under date of the 31st ult., that a fight took place a few days ago in Madison parish, 60 miles below Lake Providence, between a Mr. Nevils and a Mr. Harper, which terminated fatally. The police jury had ordered a road on the right bank of the Mississippi, and the neighboring planters were out with their forces to open it. For some offence, Nevils, the superintendent of the operations, flogged two of Harper's negroes. The next day the parties met on horseback, when Harper dismounted, and proceeded to cowskin Nevils for the chastisement inflicted on the negroes. Nevils immediately drew a pistol and shot his assailant dead on the spot. Both were gentlemen of the highest respectability.

"An affray also came off recently, as the same correspondent writes us, in Raymond, Hinds co., Miss., which for a serious one, was rather amusing. The sheriff had a process to serve on a man of the name of Bright, and, in consequence of some difficulty and intemperate language, thought proper to commence the service by the application of his cowskin to the defendant. Bright thereupon floored his adversary, and, wresting his cowhide from him, applied it to its owner to the extent of at least five hundred lashes, meanwhile threatening to shoot the first bystander who attempted to interfere. The sheriff was

carried home in a state of insensibility, and his life has been despaired of. The mayor of the place, however, issued his warrant, and started three of the sheriff's deputies in pursuit of the delinquent, but the latter, after keeping them at bay till they found it impossible to arrest him, surrendered himself to the magistrate, by whom he was bound over to the next Circuit Court. From the mayor's office, his honor and the parties litigant proceeded to the tavern to take a drink by way of ending hostilities. But the civil functionary refused to sign articles of peace by touching glasses with Bright, whereupon the latter made a furious assault upon him, and then turned and flogged 'mine host' within an inch of his life because he interfered. Satisfied with his day's work, Bright retired. Can we show any such specimens of chivalry and refinement in Kentucky!"

From the "Grand Gulf (Miss.) Advertiser," June 27, 1837.

"DEATH BY VIOLENCE.—The moral atmosphere in our state appears to be in a deleterious and sanguinary condition. *Almost every exchange paper which reaches us contains some inhuman and revolting case of murder or death by violence. Not less than fifteen deaths by violence have occurred, to our certain knowledge, within the past three months.* Such a state of things, in a country professing to be moral and christian, is a disgrace to human nature and is well calculated, to induce those abroad unacquainted with our general habits and feelings, to regard the morals of our people in no very enviable light; and does more to injure and weaken our political institutions than years of pecuniary distress. The frequency of such events is a burning disgrace to the morality, civilization, and refinement of feeling to which we lay claim and so often boast in comparison with the older states. And unless we set about and put an immediate and effectual termination to such revolting scenes, we shall be compelled to part with what all genuine southerners have ever regarded as their richest inheritance, the proud appellation of the '*brave, high-minded and chivalrous sons of the south.*'

"This done, we should soon discover a change for the better—peace and good order would prevail, and the ends of justice be effectually and speedily attained, and then the people of this wealthy state would

be in a condition to bid defiance to the disgraceful reproaches which are now daily heaped upon them by the religious and moral of other states."

"The present white population of Mississippi is but little more than half as great as that of Vermont, and yet more horrible crimes are perpetrated by them EVERY MONTH, than have ever been perpetrated in Vermont since it has been a state, now about half a century. Whoever doubts it, let him get data and make his estimate, and he will find that this is no random guess."

LOUISIANA.

Louisiana became one of the United States in 1811. Its present white population is about one hundred and fifteen thousand.

The extracts which follow furnish another illustration of the horrors produced by passions blown up to fury in the furnace of arbitrary power. We have just been looking over a broken file of Louisiana papers, including the last six months of 1837, and the whole of 1838, and find ourselves obliged to abandon our design of publishing even an abstract of the scores and *hundreds* of affrays, murders, assassinations, duels, lynchings, assaults, &c. which took place in that state during that period. Those which have taken place in New Orleans alone, during the last eighteen months, would, in detail, fill a volume. Instead of inserting the details of the principal atrocities in Louisiana, as in the states already noticed, we will furnish the reader with the testimony of various editors of newspapers, and others, residents of the state, which will perhaps as truly set forth the actual state of society there, as could be done by a publication of the outrages themselves.

From the "New Orleans Bee," of May 23, 1838.

"Contempt of human life.—In view of the crimes which are *daily* committed, we are led to inquire whether it is owing to the inefficiency of our laws, or to the manner in which those laws are administered, that this *frightful deluge of human blood flows through our streets and our places of public resort.*

"Whither will such contempt for the life of man lead us? The unhealthiness of the climate mows down annually a part of our

population; the murderous steel despatches its proportion; and if crime increases as it has, the latter will soon become *the most powerful agent in destroying life*.

"We cannot but doubt the perfection of our criminal code, when we see that *almost every criminal eludes the law*, either by boldly avowing the crime, or by the tardiness with which legal prosecutions are carried on, or, lastly, by the convenient application of *bail* in criminal cases."

The "New Orleans Picayune" of July 30, 1837, says:

"It is with the most painful feelings that we *daily* hear of some *fatal* duel. Yesterday we were told of the unhappy end of one of our most influential and highly respectable merchants, who fell yesterday morning at sunrise in a duel. As usual, the circumstances which led to the meeting were trivial."

The New Orleans correspondent of the New York Express, in his letter dated New Orleans, July 30, 1837, says:

"THIRTEEN DUELS have been fought in and near the city during the week; *five more were to take place this morning*."

The "New Orleans Merchant" of March 20, 1838, says:

"Murder has been rife within the two or three weeks last past; and what is worse, the authorities of those places where they occur are *perfectly regardless of the fact*."

The "New Orleans Bee" of September 8, 1838, says:

"Not two months since, the miserable BARBA became a victim to one of the most cold-blooded schemes of assassination that ever disgraced a civilized community. Last Sunday evening an individual, Gonzales by name, was seen in perfect health, in conversation with his friends. On Monday morning his dead body was withdrawn from the Mississippi, near the ferry of the first municipality, in a state of terrible mutilation. To cap the climax of horror, on Friday morning, about half past six o'clock, the coroner was called to hold an inquest over the body of an individual, between Magazine and Tchoupitoulas streets. The head was entirely severed from the body; the lower extremities had likewise suffered amputation; the right

foot was completely dismembered from the leg, and the left knee nearly severed from the thigh. Several stabs, wounds and bruises, were discovered on various parts of the body, which of themselves were sufficient to produce death."

The "Georgetown (South Carolina) Union" of May 20, 1837, has the following extract from a New Orleans paper.

"A short time since, two men shot one another down in one of our bar rooms, one of whom died instantly. A day or two after, one or two infants were found murdered, there was every reason to believe, by their own mothers. Last week we had to chronicle a brutal and bloody murder, committed in the heart of our city: the very next day a murder-trial was commenced in our criminal court: the day ensuing this, we published the particulars of Hart's murder. The day after that, Tibbetts was hung for attempting to commit a murder; the next day again we had to publish a murder committed by two Spaniards at the Lake—this was on Friday last. On Sunday we published the account of another murder committed by the Italian, Gregorio. On Monday, another murder was committed, and the murderer lodged in jail. On Tuesday morning another man was stabbed and robbed, and is not likely to recover, but the assassin escaped. The same day Reynolds, who killed Barre, shot himself in prison. On Wednesday, another person, Mr. Nicolet, blew out his brains. Yesterday, the unfortunate George Clement destroyed himself in his cell; and in addition to this dreadful catalogue we have to add that of the death of two, brothers, who destroyed themselves through grief at the death of their mother; and truly may we say that 'we know not what to-morrow will bring forth.'"

The "Louisiana Advertiser," as quoted by the Salt River (Mo.) Journal of May 25, 1837, says:

"Within the last ten or twelve days, three suicides, four murders, and two executions, have occurred in the city!"

The "New Orleans Bee" of October 25, 1837, says:

"We remark with regret the frightful list of homicides that are *daily* committed in New Orleans."

The "Planter's Banner" of September 30. 1838, published at Franklin, Louisiana, after giving an account of an affray between a number of planters, in which three were killed and a fourth mortally wounded, says that "Davis (one of the murderers) was arrested by the by-standers, but a *justice of the peace* came up and told them, he did not think it right to keep a man 'tied in that manner,' and 'thought it best to turn him loose.' *It was accordingly so done.*"

This occurred in the parish of Harrisonburg. The Banner closes the account by saying:

"Our informant states that *five white men* and *one negro* have been murdered in the parish of Madison, during the months of July and August."

This *justice of the peace*, who bade the by-standers unloose the murderer, mentioned above, has plenty of birds of his own feather among the law officers of Louisiana. Two of the leading officers in the New Orleans police took two witnesses, while undergoing legal examination at Covington, near New Orleans, "carried them to a bye-place, and *lynched* them, during which inquisitorial operation, they divulged every thing to the officers, Messrs. Foyle and Crossman." The preceding fact is published in the Maryland Republican of August 22, 1837.

Judge Canonge of New Orleans, in his address at the opening of the criminal court, Nov. 4, 1837, published in the "Bee" of Nov. 8, in remarking upon the prevalence of out-breaking crimes, says:

"Is it possible in a civilized country such crying abuses are *constantly* encountered? How many individuals have given themselves up to such culpable habits! Yet we find magistrates and juries hesitating to expose crimes of the blackest dye to eternal contempt and infamy, to the vengeance of the law.

"As a Louisianian parent, *I reflect with terror* that our beloved children, reared to become one day honorable and useful citizens, may be the victims of these votaries of vice and licentiousness. Without some powerful and certain remedy, *our streets will become butcheries overflowing with the blood of our citizens.*"

The Editor of the "New Orleans Bee," in his paper of Oct. 21, 1837, has a long editorial article, in which he argues for the virtual legalizing of LYNCH LAW, as follows:

"We think then that in the circumstances in which we are placed, the Legislature ought to sanction such measures as the situation of the country render necessary, by giving to justice a *convenient latitude*. There are occasions when the delays inseparable from the administration of justice would be inimical to the public safety, and when the most fatal consequences would be the result.

"It appears to us, that there is an urgent necessity to provide against the inconveniences which result from popular judgment, and to check the disposition for the speedy execution of justice resulting from the unconstitutional principle of a pretended Lynch law, by authorizing the parish court to take cognizance without delay, against every free man who shall be convicted of a crime; from the accusations arising from the mere provocations to the insurrection of the working classes.

"All judicial sentences ought to be based upon law, and the terrible privilege which the populace now have of punishing with death certain crimes, *ought to be consecrated by law*, powerful interests would not suffice in our view to excuse the interruption of social order, if the public safety was not with us the supreme law.

"This is the reason that whilst we deplore the imperious necessity which exists, we entreat the legislative power to give the sanction of principle to what already exists in fact."

The Editor of the "New Orleans Bee," in his paper, Oct 25, 1837, says:

"We remark with regret the frightful list of homicides, whether justifiable or not, that are daily committed in New Orleans. It is not through any inherent vice of legal provision that such outrages are perpetrated with impunity: it is rather in the neglect of the *application of the law* which exists on this subject.

"We will confine our observation to the dangerous facilities afforded by this code for the escape of the homicide. We are well aware that the

laws in question are intended for the distribution of equal justice, yet we have too often witnessed the acquittal of delinquents whom we can denominate by no other title than that of homicides, while the simple affirmation of others has been admitted (in default of testimony) who are themselves the authors of the deed, for which they stand in judgment. The *indiscriminate system of accepting bail* is a blot on our criminal legislation, and is one great reason why so many violators of the law avoid its penalties. To this doubtless must be ascribed the non-interference of the Attorney General. The law of *habeas corpus* being subjected to the interpretation of every magistrate, whether versed or not in criminal cases, a degree of arbitrary and incorrect explanation necessarily results. How frequently does it happen that the Mayor or Recorder decides upon the gravest case without putting himself to the smallest trouble to inform the Attorney General, who sometimes only hears of the affair when investigation is no longer possible, or when the criminal has wisely commuted his punishment into temporary or perpetual exile.

"That morality suffers by such practices, is beyond a doubt; yet moderation and mercy are so beautiful in themselves, that we would scarcely protest against indulgence, were it not well known that the acceptance of bail is the safeguard of every delinquent who, through wealth or connections, possesses influence enough to obtain it. Here arbitrary construction glides amidst the confusion of testimony; there it presumes upon the want of evidence, and from one cause or another it is extremely rare, that a refusal to bail has delivered the accused into the hands of justice. In criminal cases, the Court and Jury are the proper tribunals to decide upon the reality of the crime, and the palliating circumstances; *yet it is not unfrequent* for the public voice to condemn as an odious assassin, the very individual who by the acquittal of the judge, walks at large and scoffs at justice.

"It is time to restrict within its proper limits this pretended right of personal protection; it is time to teach our population to abstain from mutual murder upon slight provocation.—Duelling, Heaven knows, is dreadful enough, and quite a sufficient means of gratifying private aversion, and avenging insult. Frequent and serious brawls in our cafes, streets and houses, every where attest the insufficiency or

misapplication of our legal code, or the want of energy in its organs. To say that unbounded license is the insult of liberty is folly. Liberty is the consequence of well regulated laws—without these, Freedom can exist only in name, and the law which favors the escape of the opulent and aristocratic from the penalties of retribution, but consigns the poor and friendless to the chain-gang or the gallows, is in fact the very essence of slavery!!"

The editor of the same paper says (Nov. 4, 1837.)

"Perhaps by an equitable, but strict application of that law, (the law which forbids the wearing of deadly weapons concealed,) the effusion of human blood might be stopt *which now defiles our streets and our coffee-houses as if they were shambles!* Reckless disregard of the life of man is rapidly gaining ground among us, and the habit of seeing a man whom it is taken for granted was armed, murdered merely for a *gesture*, may influence the opinion of a jury composed of citizens, whom, LONG IMPUNITY TO HOMICIDES OF EVERY KIND has persuaded, that the right of self-defence extends even to the taking of life for *gestures*, more or less threatening. So many DAILY instances of outbreking passion which have thrown whole families into the deepest affliction, teach us a terrible lesson."

From the "Columbus (Ga.) Sentinel," July 6, 1837.

"*Wholesale Murders.*—No less than three murders were committed in New Orleans on Monday evening last. The first was that of a man in Poydras, near the corner of Tehapitoulas. The murdered individual had been suspected of a *liason* with another man's wife in the neighbourhood, was caught in the act, followed to the above corner and shot.

"The second was that of a man in Perdido street. Circumstances not known.

"The third was that of a watchman, on the corner of Custom House and Burgundy street, who was found dead yesterday morning, shot through the heart. The deed was evidently committed on the opposite side from where he was found, as the unfortunate man was tracked by his blood across the street. In addition to being shot through the heart, two

wounds in his breast, supposed to have been done with a Bowie knife, were discovered. No arrests have been made to our knowledge."

The editor of the "Charleston, (S.C.) Mercury" of April, 1837, makes the following remarks.

"The energy of a Tacon is much needed to vivify the police of New Orleans. In a single paper we find an account of the execution of one man for robbery and intent to kill, of the arrest of another for stabbing a man to death with a carving knife; and of a third found murdered on the Levee on the previous Sunday morning. In the last case, although the murderer was known, *no steps had been taken for his arrest*; and to crown the whole, it is actually stated in so many words, that the City guards are not permitted, according to their instructions, to patrol the Levee after night, for fear of attacks from persons employed in steamboats!"

The present white population of Louisiana is but little more than that of Rhode Island, yet more appalling crime is committed in Louisiana *every day*, than in Rhode Island during a year, notwithstanding the tone of public morals is probably lower in the latter than in any other New England state.

TENNESSEE.

Tennessee became one of the United States in 1796. Its present white population is about seven hundred thousand.

The details which follow, go to confirm the old truth, that the exercise of arbitrary power tends to make men monsters. The following, from the "Memphis (Tennessee) Enquirer," was published in the Virginia Advocate, Jan. 26, 1838.

"Below will be found a detailed account of one of the most unnatural and aggravated murders ever recorded. Col. Ward, the deceased, was a man of high standing in the state, and very much esteemed by his neighbors, and by all who knew him. The brothers concerned in this 'murder, most foul and unnatural,' were Lafayette, Chamberlayne, Caesar, and Achilles Jones, (the nephews of Col. Ward.)

"The four brothers, all armed, went to the residence of Mr. A.G. Ward, in Shelby co., on the evening of 22d instant. They were conducted into the room in which Col. Ward was sitting, together with some two or three ladies, his intended wife amongst the number. Upon their entering the room, Col. Ward rose, and extended his hand to Lafayette. He refused, saying he would shake hands with no such d——d rascal. The rest answered in the same tone. Col. Ward remarked that they were not in a proper place for a difficulty, if they sought one. Col. Ward went from the room to the passage, and was followed by the brothers. He said he was unarmed, but if they would lay down their arms, he could whip the whole of them; or if they would place him on an equal footing, he could whip the whole of them one by one. Caesar told Chamberlayne to give the Col. one of his pistols, which he did, and both went out into the yard, the other brothers following. While standing a few paces from each other, Lafayette came up, and remarked to the Col., 'If you spill my brother's blood, I will spill yours,' about which time Chamberlayne's pistol fired, and immediately Lafayette bursted a cap at him. The Colonel turned to Lafayette, and said, 'Lafayette, you intend to kill,' and discharged his pistol at him. The ball struck the pistol of Lafayette, and glanced into his arm. By this time Albert Ward, being close by, and hearing the fuss, came up to the assistance of the Colonel, when a scuffle amongst all hands ensued. The Colonel stumbled and fell down—he received several wounds from a large bowie knife; and, after being stabbed, Chamberlayne jumped upon him, and stamped him several times. After the scuffle, Caesar Jones was seen to put up a large bowie knife. Colonel Ward said he was a dead man. By the assistance of Albert Ward, he reached the house, distance about 15 or 20 yards, and in a few minutes expired. On examination by the Coroner, it appeared that he had received several wounds from pistols and knives. Albert Ward was also badly bruised, not dangerously."

The "New Orleans Bee," Sept. 22, 1838, published the following from the "Nashville (Tennessee) Whig."

"The Nashville Whig, of the 11th ult., says: Pleasant Watson, of De Kalb county, and a Mr. Carmichael, of Alabama, were the principals in an affray at Livingston, Overton county, last week, which terminated in the death of

the former. Watson made the assault with a dirk, and Carmichael defended himself with a pistol, shooting his antagonist through the body, a few inches below the heart. Watson was living at the last account. The dispute grew out of a horse race."

The New Orleans Courier, April 7, 1837, has the following extract from the "McMinersville (Tennessee) Gazette."

"On Saturday, the 8th instant, Colonel David L. Mitchell, the worthy sheriff of White county, was most barbarously murdered by a man named Joseph Little. Colonel Mitchell had a civil process against Little. He went to Little's house for the purpose of arresting him. He found Little armed with a rifle, pistols, &c. He commenced a conversation with Little upon the impropriety of his resisting, and stated his determination to take him, at the same time slowly advancing upon Little, who discharged his rifle at him without effect. Mitchell then attempted to jump in, to take hold of him when Little struck him over the head with the barrel of his rifle, and literally mashed his skull to pieces; and, as he lay prostrate on the earth, Little deliberately pulled a large pistol from his belt, and placing the muzzle close to Mitchell's head, he shot the ball through it. Little has made his escape. *There were three men near by when the murder was committed, who made no attempt to arrest the murderer.*"

The following affray at Athens, Tennessee, from the Mississippian, August 10, 1838.

"An unpleasant occurrence transpired at Athens on Monday. Captain James Byrnes was stabbed four times, twice in the arm, and twice in the side by A.R. Livingston. The wounds are said to be very severe, and fears are entertained of their proving mortal. The affair underwent an examination before Sylvester Nichols, Esq., by whom Livingston was let to bail."

The "West Tennessean," Aug. 4, 1837, says—

"A duel was fought at Calhoun, Tenn., between G.W. Carter and J.C. Sherley. They used yaugers at the distance of 20 yards. The former was slightly wounded, and the latter quite dangerously."

June 23d, 1838, Benjamin Shipley, of Hamilton co., Tennessee, shot Archibald McCallie. (*Nashville Banner*, July 16, 1838.)

June 23d, 1838, Levi Stunston, of Weakly co., Tennessee, killed William Price, of said county, in an affray. (*Nashville Banner*, July 6, 1838.)

October 8, 1838, in an affray at Wolf's Ferry, Tennessee, Martin Farley, Senior, was killed by John and Solomon Step. (*Georgia Telegraph*, Nov 6, 1838..)

Feb. 14, 1838, John Manie was killed by William Doss at Decatur, Tennessee. (*Memphis Gazette*, May 15, 1838.)

"From the Nashville Whig."

"*Fatal Affray in Columbia, Tenn.*—A fatal street encounter occurred at that place, on the 3d inst., between Richard H. Hays, attorney at law, and Wm. Polk, brother to the Hon. Jas. K. Polk. The parties met, armed with pistols, and exchanged shots simultaneously. A buck-shot pierced the brain of Hays, and he died early the next morning. The quarrel grew out of a sportive remark of Hays', at dinner, at the Columbia Inn, for which he offered an apology, not accepted, it seems, as Polk went to Hays' office, the same evening, and chastised him with a whip. This occurred on Friday, the fatal result took place on Monday."

In a fight near Memphis, Tennessee, May 15, 1837, Mr. Jackson, of that place, shot through the heart Mr. W.F. Gholson, son of the late Mr. Gholson, of Virginia. (*Raleigh Register*, June 13, 1837.)

The following horrible outrage, committed in West Tennessee, not far from Randolph, was published by the Georgetown (S.C.) Union, May 26, 1837, from the Louisville Journal.

"A feeble bodied man settled a few years ago on the Mississippi, a short distance below Randolph, on the Tennessee side. He succeeded in amassing property to the value of about \$14,000, and, like most of the settlers, made a business of selling wood to the boats. This he sold at \$2.50 a cord, while his neighbors asked \$3. One of them came to remonstrate against his underselling, and had a fight with his brother-in-law Clark, in which he was beaten. He then went and obtained legal process against Clark, and returned with a deputy sheriff, attended by a posse of desperate villains. When they arrived at Clark's house, he was seated among his children—they put two or three balls through his body. Clark ran, was overtaken and knocked down;

in the midst of his cries for mercy, one of the villains fired a pistol in his mouth, killing him instantly. They then required the settler to sell his property to them, and leave the country. He, fearing that they would otherwise take his life, sold them his valuable property for \$300, and departed with his family. *The sheriff was one of the purchasers.*"

The Baltimore American, Feb. 8, 1838, publishes the following from the Nashville (Tennessee) Banner:

"A most atrocious murder was committed a few days ago at Lagrange, in this state, on the body of Mr. John T. Foster, a respectable merchant of that town. The perpetrators of this bloody act are E. Moody, Thomas Moody, J.E. Douglass, W.R. Harris, and W.C. Harris. The circumstances attending this horrible affair, are the following:—On the night previous to the murder, a gang of villains, under pretence of wishing to purchase goods, entered Mr. Foster's store, took him by force, and rode him through the streets *on a rail*. The next morning, Mr. F. met one of the party, and gave him a caning. For this just retaliation for the outrage which had been committed on his person, he was pursued by the persons alone named, while taking a walk with a friend, and murdered in the open face of day."

The following presentment of a Tennessee Grand Jury, sufficiently explains and comments on itself:

The Grand Jurors empanelled to inquire for the county of Shelby, would separate without having discharged their duties, if they were to omit to notice public evils which they have found their powers inadequate to put in train for punishment. The evils referred to exist more particularly in the town of Memphis.

The audacity and frequency with which outrages are committed, forbid us, in justice to our consciences, to omit to use the powers we possess, to bring them to the severe action of the law; and when we find our powers inadequate, to draw upon them public attention, and the rebuke of the good.

An infamous female publicly and grossly assaults a lady; therefore a public meeting is called, the mayor of the town is placed in the chair, resolutions are adopted, providing for the summary and lawless punishment of the wretched woman. In the progress of the affair, *hundreds of citizens*

assemble at her house, and raze it to the ground. The unfortunate creature, together with two or three men of like character, are committed, in an open canoe or boat, without oar or paddle, to the middle of the Mississippi river.

Such is a concise outline of the leading incidents of a recent transaction in Memphis. It might be filled up by the detail of individual exploits, which would give vivacity to the description; but we forbear to mention them. We leave it to others to admire the manliness of the transaction, and the courage displayed by a mob of hundreds, in the various outrages upon the persons and property of three or four individuals who fell under its vengeance.

The present white population of Tennessee is about the same with that of Massachusetts, and yet more outbreaking crimes are committed in Tennessee in a *single month*, than in Massachusetts during a whole year; and this, too, notwithstanding the largest town in Tennessee has but six thousand inhabitants; whereas, in Massachusetts, besides one of eighty thousand, and two others of nearly twenty thousand each, there are at least a dozen larger than the chief town in Tennessee, which gives to the latter state an important advantage on the score of morality, the country being so much more favorable to it than large towns.

KENTUCKY.

Kentucky has been one of the United States since 1792. Its present white population is about six hundred thousand.

The details which follow show still further that those who unite to plunder of their rights one class of human beings, regard as *sacred* the rights of no class.

The following affair at Maysville, Kentucky, is extracted from the Maryland Republican, January 30, 1838.

"A fight came on at Maysville, Ky. on the 29th ultimo, in which a Mr. Coulster was stabbed in the side and is dead; a Mr. Gibson was well hacked with a knife; a Mr. Ferris was dangerously wounded in the head, and another of the same name in the hip; a Mr. Shoemaker was severely beaten, and several others seriously hurt in various ways."

The following is extracted from the N.C. Standard.

"A most bloody and shocking transaction took place in the little town of Clinton, Hickman co. Ken. The circumstances are briefly as follows: A special canvass for a representative from the county of Hickman, had for some time been in progress. A gentleman by the name of Binford was a candidate. The State Senator from the district, Judge James, took some exceptions to the reputation of Binford, and intimated that if B. should be elected, he (James) would resign rather than serve with such a colleague. Hearing this, Binford went to the house of James to demand an explanation. Mrs. James remarked, in a jest as Binford thought, that if she was in the place of her husband she would resign her seat in the Senate, and not serve with such a character. B. told her that she was a woman, and could say what she pleased. She replied that she was not in earnest. James then looked B. in the face and said that, if his wife said so, it was the fact—'he was an infamous scoundrel and d——d rascal.' He asked B. if he was armed, and on being answered in the affirmative, he stepped into an adjoining room to arm himself; He was prevented by the family from returning, and Binford walked out. J. then told him from his piazza, that he would meet him next day in Clinton.

"True to their appointment, the enraged parties met on the streets the following day. James shot first, his ball passing through his antagonist's liver, whose pistol fired immediately afterwards, and missing J., the ball pierced the head of a stranger by the name of Collins, who instantly fell and expired. After being shot, Binford sprang upon J. with the fury of a wounded tiger, and would have taken his life but for a second shot received through the back from Martin James, the brother of Thomas. Even after he received the last fatal wound he struggled with his antagonist until death relaxed his grasp, and he fell with the horrid exclamation, *'I am a dead man!'*

"Judge James gave himself up to the authorities; and when the informant of the editor left Clinton, Binford, and the unfortunate stranger lay shrouded corpses together."

The "N.O. Bee" thus gives the conclusion of the matter:

"Judge James was tried and acquitted, the death of Binford being regarded as an act of justifiable homicide."

From the "Flemingsburg Kentuckian," June 23,'38.

AFFRAY.—Thomas Binford, of Hickman county, Kentucky, recently attacked a Mr. Gardner of Dresden, with a drawn knife, and cut his face pretty badly. Gardner picked up a piece of iron and gave him a side-wipe above the ear that brought him to terms. The skull was fractured about two inches. Binford's brother was killed at Clinton, Kentucky, last fall by Judge James.

The "Red River Whig" of September 15, 1838, says:—"A ruffian of the name of Charles Gibson, attempted to murder a girl named Mary Green, of Louisville, Ky. on the 23d ult. He cut her in six different places with a Bowie knife. His object, as stated in a subsequent investigation before the Police Court, was to cut her throat, which she prevented by throwing up her arms."

From the "Louisville Advertiser," Dec. 17th, 1838:—"A startling tragedy occurred in this city on Saturday evening last, in which A.H. Meeks was instantly killed, John Rothwell mortally wounded, William Holmes severely wounded, and Henry Oldham slightly, by the use of Bowie knives, by Judge E.C. Wilkinson, and his brother, B.R. Wilkinson, of Natchez, and J. Murdough, of Holly Springs, Mississippi. It seems that Judge Wilkinson had ordered a coat at the shop of Messrs. Varnum & Redding. The coat was made; the Judge, accompanied by his brother and Mr. Murdough, went to the shop of Varnum & Redding, tried on the coat, and was irritated because, as he believed, it did not fit him. Mr. Redding undertook to convince him that he was in error, and ventured to assure the Judge that the coat was well made. The Judge instantly seized an iron poker, and commenced an attack on Redding. The blow with the poker was partially warded off—Redding grappled his assailant, when a companion of the Judge drew a Bowie knife, and, but for the interposition and interference of the unfortunate Meeks, a journeyman tailor, and a gentleman passing by at the moment, Redding might have been assassinated in his own shop. Shortly afterwards, Redding, Meeks, Rothwell, and Holmes went

to the Galt House. They sent up stairs for Judge Wilkinson, and he came down into the bar room, when angry words were passed. The Judge went up stairs again, and in a short time returned with his companions, all armed with knives. Harsh language was again used. Meeks, felt called on to state what he had seen of the conflict, and did so, and Murdough gave him the d—d lie, for which Meeks struck him. On receiving the blow with the whip, Murdough instantly plunged his Bowie knife into the abdomen of Meeks, and killed him on the spot.

"At the same instant B.R. Wilkinson attempted to get at Redding, and Holmes and Rothwell interfered, or joined in the affray. Holmes was wounded, probably by B.R. Wilkinson; and the Judge, having left the room for an instant, returned, and finding Rothwell contending with his brother, or bending over him, he (the Judge) stabbed Rothwell in the back, and inflicted a mortal wound.

"Judge Wilkinson, his brother, and J. Murdough, have been recently tried and ACQUITTED."

From the "New Orleans Bee," Sept. 27, 1838.

"It appears from the statement of the Lexington Intelligencer, that there has been for some time past, an enmity between the drivers of the old and opposition lines of stages running from that city. On the evening of the 13th an encounter took place at the Circus between two of them, Powell and Cameron, and the latter was so much injured that his life was in imminent danger. About 12 o'clock the same night, several drivers of the old line rushed into Keizer's Hotel, where Powell and other drivers of the opposition-line boarded, and a general melee took place, in the course of which several pistols were discharged, the ball of one of them passing through the head of Crabster, an old line driver, and killing him on the spot. Crabster, before he was shot, had discharged his own pistol which had burst into fragments. Two or three drivers of the opposition were wounded with buck shot, but not dangerously."

The "Mobile Advertiser" of September 15, 1838, copies the following from the Louisville (Ky.) Journal.

"A Mr. Campbell was killed in Henderson county on the 31st ult. by a Mr. Harrison. It appears, that there was an affray between the parties some months ago, and that Harrison subsequently left home and returned on the 31st in a trading boat. Campbell met him at the boat with a loaded rifle and declared his determination to kill him, at the same time asking him whether he had a rifle and expressing a desire to give him a fair chance. Harrison affected to laugh at the whole matter and invited Campbell into his boat to take a drink with him. Campbell accepted the invitation, but, while he was in the act of drinking, Harrison seized his rifle, fired it off, and laid Campbell dead by striking him with the barrel of it."

The "Missouri Republican" of July 29, 1837 published the details which follow from the Louisville Journal.

MOUNT STERLING, Ky. July 20, 1837.

"Gentlemen:—A most unfortunate and fatal occurrence transpired in our town last evening, about 6 o'clock. Some of the most prominent friends of Judge French had a meeting yesterday at Col. Young's, near this place, and warm words ensued between Mr. Albert Thomas and Belvard Peters, Esq., and a few blows were exchanged, and several of the friends of each collected at the spot. Whilst the parties were thus engaged. Mr. Wm. White, who was a friend of Mr. Peters, struck Mr. Thomas, whereupon B.F. Thomas Esq. engaged in the combat on the side of his brother and Mr. W. Roberts on the part of Peters—Mr. G.W. Thomas taking part with his brothers. Albert Thomas had Peters down and was taken off by a gentleman present, and whilst held by that gentleman, he was struck by White; and B.F. Thomas having made some remark White struck him. B.F. Thomas returned the blow, and having a large knife, stabbed White, who nevertheless continued the contest, and, it is said, broke Thomas's arm with a rock of a chair. Thomas then inflicted some other stabs, of which White died in a few minutes. Roberts was knocked down twice by Albert Thomas, and, I believe, is much hurt. G.W. Thomas was somewhat hurt also. White and B.F. Thomas had always been on friendly terms. You are acquainted with the Messrs. Thomas. Mr. White was a much larger man than either of them, weighing nearly 200 pounds, and in the prime of life. As you may very naturally suppose, great excitement prevails here, and Mr. B.F. Thomas regrets the fatal catastrophe as much as any one else, but believes from all

the circumstances that he was justifiable in what he did, although he would be as far from doing such an act when cool and deliberate as any man whatever."

The "New Orleans Bulletin" of Aug. 24, 1838, extracts the following from the Louisville Journal.

"News has just reached us, that Thomas P. Moore, attacked the Senior Editor of this paper in the yard of the Harrodsburg Springs. Mr. Moore advanced upon Mr. Prentice with a drawn pistol and fired at him; Mr. Prentice then fired, neither shot taking effect. Mr. Prentice drew a second pistol, when Mr. Moore quailed and said he had no other arms; whereupon Mr. Prentice from superabundant magnanimity spared the miscreant's life."

From "The Floridian" of June 10, 1837. MURDER. Mr. Gillespie, a respectable citizen aged 50, was murdered a few days since by a Mr. Arnett, near Mumfordsville, Ky., which latter shot his victim twice with a rifle.

The "Augusta (Ga.) Sentinel," May 11, 1838, has the following account of murders in Kentucky:

"At Mill's Point, Kentucky, Dr. Thomas Rivers was shot one day last week, from out of a window, by Lawyer Ferguson, both citizens of that place, and both parties are represented to have stood high in the estimation of the community in which they lived. The difficulty we understand to have grown out of a law suit at issue between them."

Just as our paper was going to press, we learn that the brother of Dr. Rivers, who had been sent for, had arrived, and immediately shot Lawyer Ferguson. He at first shot him with a shot gun, upon his retreat, which did not prove fatal; he then approached him immediately with a pistol, and killed him on the spot."

The Right Rev. B.B. Smith, Bishop of the Episcopal diocese of Kentucky, published about two years since an article in the Lexington (Ky.) Intelligencer, entitled "Thoughts on the frequency of homicides in the state of Kentucky." We conclude this head with a brief extract from the testimony of the Bishop, contained in that article.

"The writer has never conversed with a traveled and enlightened European or eastern man, who has not expressed the most undisguised horror at the frequency of homicide and murder within our bounds, and at the *ease with which the homicide escapes from punishment*.

"As to the frequency of these shocking occurrences, the writer has some opportunity of being correctly impressed, by means of a yearly tour through many counties of the State. He has also been particular in making inquiries of our most distinguished legal and political characters, and from some has derived conjectural estimates which were truly alarming. A few have been of the opinion, that on an average one murder a year may be charged to the account of every county in the state, making the frightful aggregate of 850 human lives sacrificed to revenge, or the victims of momentary passion, in the course of every ten years.

"Others have placed the estimate much lower, and have thought that thirty for the whole state, every year, would be found much nearer the truth. An attempt has been made lately to obtain data more satisfactory than conjecture, and circulars have been addressed to the clerks of most of the counties, in order to arrive at as correct an estimate as possible of the actual number of homicides during the three years last past. It will be seen, however, that statistics thus obtained, even from every county in the state, would necessarily be imperfect, inasmuch as the records of the courts *by no means show all the cases*, which occur, some escaping without *any* of the forms of a legal examination, and there being *many affrays* which end only in wounds, or where the parties are separated.

"From these returns, it appears that in 27 counties there have been, within the last three years, of homicides of every grade, 35, but only 8 convictions in the same period, leaving 27 cases which have passed wholly unpunished. During the same period there have been from eighty-five counties, only eleven commitments to the state prison, nine for manslaughter, and two for shooting with intent to kill, *and not an instance of capital punishment in the person of any white offender*. Thus an approximation is made to a general average, which probably

would not vary much from one in each county every three years, or about 280 in ten years.

"It is believed that such a register of crime amongst a people professing the protestant religion and speaking the English language, is not to be found, with regard to any three-quarters of a million of people, since the downfall of the feudal system. Compared with the records of crime in Scotland, or the eastern states, the results are **ABSOLUTELY SHOCKING!** *It is believed there are more homicides, on an average of two years, in any of our more populous counties, than in the whole of several of our states, of equal or nearly equal white population with Kentucky.*

"The victims of these affrays are not always, by any means, the most worthless of our population.

"It too often happens that the enlightened citizen, the devoted lawyer, the affectionate husband, and precious father, are thus instantaneously taken from their useful stations on earth, and hurried, all unprepared, to their final account!

"The question, is again asked, what could have brought about, and can perpetuate, this shocking state of things?"

As an illustration of the recklessness of life in Kentucky, and the terrible paralysis of public sentiment, the bishop states the following fact.

"A case of shocking homicide is remembered, where the guilty person was acquitted by a sort of acclamation, and the next day was seen in public, with two ladies hanging on his arm!"

Notwithstanding the frightful frequency of deadly affrays in Kentucky, as is certified by the above testimony of Bishop Smith, there are fewer, in proportion to the white population, than in any of the states which have passed under review, unless Tennessee may be an exception. The present white population of Kentucky is perhaps seventy thousand more than that of Maine, and yet more public fatal affrays have taken place in the former, within the last six months, than in the latter during its entire existence as a state.

The seven slave states which we have already passed under review, are just one half of the slave states and territories, included in the American Union. Before proceeding to consider the condition of society in the other slave states, we pause a moment to review the ground already traversed.

The present entire white population of the states already considered, is about two and a quarter millions; just about equal to the present white population of the state of New York. If the amount of crime resulting in loss of life, which is perpetrated by the white population of those states upon the *whites alone*, be contrasted with the amount perpetrated in the state of New York, by *all* classes, upon *all*, we believe it will be found, that more of such crimes have been committed in these states within the last 18 months, than have occurred in the state of New York for half a century. But perhaps we shall be told that in these seven states, there are scores of cities and large towns, and that a majority of all these deadly affrays, &c., take place in *them*; to this we reply, that there are *three times as many* cities and large towns in the state of New York, as in all those states together, and that nearly all the capital crimes perpetrated in the state take place in these cities and large villages. In the state of New York, there are more than *half a million* of persons who live in cities and villages of more than two thousand inhabitants, whereas in Kentucky, Tennessee, Alabama, Mississippi, Louisiana, Arkansas and Missouri, there are on the largest computation not more than *one hundred thousand* persons, residing in cities and villages of more than two thousand inhabitants, and the white population of these places (which alone is included in the estimate of crime, and that too *inflicted upon whites only*,) is probably not more than *sixty-five thousand*.

But it will doubtless be pleaded in mitigation, that the cities and large villages in those states are *new*; that they have not had sufficient time thoroughly to organize their police, so as to make it an effectual terror to evil doers; and further, that the rapid growth of those places has so overloaded the authorities with all sorts of responsibilities, that due attention to the preservation of the public peace has been nearly impossible; and besides, they have had no official experience to draw upon, as in the older cities, the offices being generally filled by young men, as a necessary consequence of the newness of the country, &c. To this we reply, that New Orleans is more than a century old, and for half that period has been the centre of a great trade; that St. Louis, Natchez, Mobile, Nashville,

Louisville and Lexington, are all half a century old, and each had arrived at years of discretion, while yet the sites of Buffalo, Rochester, Lockport, Canandaigua, Geneva, Auburn, Ithaca, Oswego, Syracuse, and other large towns in Western New-York, *were a wilderness*. Further, as *a number* of these places are larger than *either* of the former, their growth must have been more *rapid*, and, consequently, they must have encountered still greater obstacles in the organization of an efficient police than those south western cities, with this exception, THEY WERE NOT SETTLED BY SLAVEHOLDERS.

The absurdity of assigning the *newness* of the country, the unrestrained habits of pioneer settlers, the recklessness of life engendered by wars with the Indians, &c., as reasons sufficient to account for the frightful amount of crime in the states under review, is manifest from the fact, that Vermont is of the same age with Kentucky; Ohio, ten years younger than Kentucky, and six years younger than Tennessee; Indiana, five years younger than Louisiana; Illinois, one year younger than Mississippi; Maine, of the same age with Missouri, and two years younger than Alabama; and Michigan of the same age with Arkansas. Now, let any one contrast the state of society in Maine, Vermont, Ohio, Indiana, Illinois, and Michigan with that of Kentucky, Tennessee, Alabama, Missouri, Louisiana, Arkansas, and Mississippi, and candidly ponder the result. It is impossible satisfactorily to account for the immense disparity in crime, on any other supposition than that the latter states were settled and are inhabited almost exclusively by those who carried with them the violence, impatience of legal restraint, love of domination, fiery passions, idleness, and contempt of laborious industry, which are engendered by habits of despotic sway, acquired by residence in communities where such manners, habits and passions, mould society into their own image.[\[43\]](#) The practical workings of this cause are powerfully illustrated in those parts of the slave states where slaves abound, when contrasted with those where very few are held. Who does not know that there are fewer deadly affrays in proportion to the white population—that law has more sway and that human life is less insecure in East Tennessee, where there are very few slaves, than in West Tennessee, where there are large numbers. This is true also of northern and western Virginia, where few slaves are held, when contrasted with eastern Virginia; where they abound; the same remark applies to those parts of Kentucky and Missouri, where

large numbers of slaves are held, when contrasted with others where there are comparatively few.

[Footnote [43](#): Bishop Smith of Kentucky, in his testimony respecting homicides, which is quoted on a preceding pages, thus speaks of the influence of slave-holding, as an exciting cause.

"Are not some of the indirect influences of a system, the existence of which amongst us can never be sufficiently deplored, discoverable in these affrays? Are not our young men more heady, violent and imperious in consequence of their early habits of command? And are not our taverns and other public places of resort, much more crowded with an inflammable material, than if young men were brought up in the staid and frugal habits of those who are constrained to earn their bread by the sweat of their brow? * * * Is not intemperance more social, more inflammatory, more pugnacious where a fancied superiority of gentlemanly character is felt in consequence of exemption from severe manual labor? Is there ever stabbing where there is not idleness and strong drink?"

The Bishop also gives the following as another exciting cause; it is however only the product of the preceding.

"Has not a public sentiment which we hear characterized as singularly high-minded and honorable, and sensitively alive to every affront, whether real or imaginary, but which strangers denominate rough and ferocious, much to do in provoking these assaults, and then in applauding instead of punishing the offender."

The Bishop says of the young men of Kentucky, that they "grow up proud, impetuous, and reckless of all responsibility;" and adds, that the practice of carrying deadly weapons is with them "NEARLY UNIVERSAL."]

We see the same cause operating to a considerable extent in those parts of Ohio, Indiana and Illinois, settled mainly by slaveholders and others, who were natives of slave states, in contrast with other parts of these states settled almost exclusively by persons from free states; that affrays and breaches of the peace are far more frequent in the former than in the latter, is well known to all.

We now proceed to the remaining slave states. Those that have not yet been considered, are Delaware, Maryland, Virginia, North and South Carolina, Georgia, and the territory of Florida. As Delaware has hardly two thousand five hundred slaves, arbitrary power over human beings is exercised by so few persons, that the turbulence infused thereby into the public mind is but an inconsiderable element, quite insufficient to inflame the passions, much less to cast the character of the mass of the people; consequently, the state of society there, and the general security of life is but little less than in New Jersey and Pennsylvania, upon which states it borders on the north and east. The same causes operate in a considerable measure, though to a much less extent to Maryland and in Northern and Western Virginia. But in lower Virginia, North and South Carolina, Georgia and Florida, the general state of society as it respects the successful triumph of passion over law, and the consequent and universal insecurity of life is, in the main, very similar to that of the states already considered. In some portions of each of these states, human life has probably as little real protection as in Arkansas, Mississippi and Louisiana; but generally throughout the former states and sections, the laws are not so absolutely powerless as in the latter three. Deadly affrays, duels, murders, lynchings, &c., are, in proportion to the white population, as frequent and as rarely punished in lower Virginia as in Kentucky and Missouri; in North Carolina and South Carolina as in Tennessee; and in Georgia and Florida as in Alabama.

To insert the criminal statistics of the remaining slave states in detail, as those of the states already considered have been presented, would, we find, fill more space than can well be spared. Instead of this, we propose to exhibit the state of society in all the slaveholding region bordering on the Atlantic, by the testimony of the slaveholders themselves, corroborated by a few plain facts. Leaving out of view Florida, where law is the *most* powerless, and Maryland where probably it is the *least* so, we propose to select as a fair illustration of the actual state of society in the Atlantic slaveholding regions, North Carolina whose border is but 250 miles from the free states of Pennsylvania and New Jersey, and Georgia which constitutes its south western boundary.

We will begin with GEORGIA. This state was settled more than a century ago by a colony under General Oglethorpe. The colony was memorable for its high toned morality. One of its first regulations was an absolute

prohibition of slavery in every form: but another generation arose, the prohibition was abolished, a multitude of slaves were imported, the exercise of unlimited power over them lashed up passion to the spurning of all control, and now the dreadful state of society that exists in Georgia, is revealed by the following testimony out of her own mouth.

The editor of the Darien (Georgia) Telegraph, in his paper of November 6, 1838, published the following.

"Murderous Attack.—Between the hours of three and four o'clock, on Saturday last, the editor of this paper was attacked by FOURTEEN armed ruffians, and knocked down by repeated blows of bludgeons. All his assailants were armed with pistols, dirks, and large clubs. Many of them are known to us; but *there is neither law nor justice to be had in Darien! We are doomed to death* by the employers of the assassins who attacked us on Saturday, and no less than our blood will satisfy them. The cause alleged for this unmanly, base, cowardly outrage, is some expressions which occurred in an election squib, printed at this office, and extensively circulated through the county, *before the election*. The names of those who surrounded us, when the attack was made, are, A. Lefils, jr. (son to the representative), Madison Thomas, Francis Harrison, Thomas Hopkins, Alexander Blue, George Wing, James Eilands, W.I. Perkins, A.J. Raymur: the others we cannot at present recollect. The two first, LEFILS and THOMAS struck us at the same time. Pistols were levelled at us in all directions. We can produce the most respectable testimony of the truth of this statement."

The same number of the "Darien Telegraph," from which the preceding is taken, contains a correspondence between six individuals, settling the preliminaries of duels. The correspondence fills, with the exception of a dozen lines, *five columns* of the paper. The parties were Col. W. Whig Hazzard, commander of one of the Georgia regiments in the recent Seminole campaign, Dr. T.F. Hazzard, a physician of St. Simons, and Thomas Hazzard, Esq. a county magistrate, on the one side, and Messrs. J.A. Willey, A.W. Willey, and H.B. Gould, Esqs. of Darien, on the other. In their published correspondence the parties call each other "liar," "mean rascal," "puppy," "villain," &c.

The magistrate, Thomas Hazzard, who accepts the challenge of J.A. Willey, says, in one of his letters, "Being a magistrate, under a solemn oath to do all in my power to keep the peace," &c., and yet this personification of Georgia justice superscribes his letter as follows: "To the Liar, Puppy, Fool, and Poltroon, Mr. John A. Willey" The magistrate closes his letter thus:

"Here I am; call upon me for personal satisfaction (in *propria forma*); and in the Farm Field, on St. Simon's Island, (*Deo juvante*,) I will give you a full front of my body, and do all in my power to satisfy your thirst for blood! And more, I will wager you \$100, to be planked on the scratch! that J.A. Willey will neither kill or defeat T.F. Hazzard."

The following extract from the correspondence is a sufficient index of slaveholding civilization.

"ARTICLES OF BATTLE BETWEEN JOHN A. WILLEY AND W. WHIG HAZZARD.

"Condition 1. The parties to fight on the same day, and at the same place, (St. Simon's beach, near the lighthouse,) where the meeting between T.F. Hazzard and J.A. Willey will take place.

"Condition 2. The parties to fight with broad-swords in the right hand, and a dirk in the left.

"Condition 3. On the word "Charge," the parties to advance, and attack with the broadsword, or close with the dirk.

"Condition 4. THE HEAD OF THE VANQUISHED TO BE CUT OFF BY THE VICTOR, AND STUCK UPON A POLE ON THE FARM FIELD DAM, the original cause of dispute.

"Condition 5. Neither party to object to each other's weapons; and if a sword breaks, the contest to continue with the dirk.

"This Col. W. Whig Hazzard is one of the most prominent citizens in the southern part of Georgia, and previously signalized himself, as we learn from one of the letters in the correspondence, by "three deliberate rounds in a duel."

The Macon (Georgia) Telegraph of October 9, 1838, contains the following notice of two affrays in that place, in each of which an individual was killed, one on Tuesday and the other on Saturday of the same week. In publishing the case, the Macon editor remarks:

"We are compelled to remark on the inefficiency of our laws in bringing to the bar of public justice, persons committing capital offences. Under the present mode, a man has nothing more to do than to leave the state, or step over to Texas, or some other place not farther off, and he need entertain no fear of being apprehended. So long as such a state of things is permitted to exist, just so long will every man who has an enemy (and there are but few who have not) *be in constant danger of being shot down in the streets.*"

To these remarks of the Macon editor, who is in the centre of the state, near the capital, the editor of the Darien Telegraph, two hundred miles distant, responds as follows, in his paper of October 30. 1838.

"The remarks of our contemporary are not without cause. They apply, with peculiar force, to this community. *Murderers and rioters will never stand in need of a sanctuary as long as Darien is what it is.*"

It is a coincidence which carries a comment with it, that in less than a week after this Darien editor made these remarks, he was attacked in the street by "*fourteen* gentlemen" armed with bludgeons, knives, dirks, pistols, &c., and would doubtless have been butchered on the spot if he had not been rescued.

We give the following statement at length as the chief perpetrator of the outrages, Col. W.N. Bishop, was at the time a high functionary of the State of Georgia, and, as we learn from the Macon Messenger, still holds two public offices in the State, one of them from the direct appointment of the governor.

From the "Georgia Messenger" of August 25, 1837.

"During the administration of WILSON LUMPKIN, WILLIAM N. BISHOP received from his Excellency the appointment of Indian Agent, in the place of William Springer. During that year (1834,) the said governor gave the command of a company of men, 40 in number,

to the said W.N. Bishop, to be selected by him, and armed with the muskets of the State. This band was organized for the special purpose of keeping the Cherokees in subjection, and although it is a notorious fact that the Cherokees in the neighborhood of Spring Place were peaceable and by no means refractory, the said band were kept there, and seldom made any excursion whatever out of the county of Murray. It is also *a notorious fact*, that the said band, from the day of their organization, never permitted a citizen of Murray county opposed to the dominant party of Georgia, to exercise the right of suffrage at any election whatever. From that period to the last of January election, the said band appeared at the polls with the arms of the State, rejecting every vote that "was not of the true stripe," as they called it. That they frequently seized and dragged to the polls honest citizens, and compelled them to vote contrary to their will.

"Such acts of arbitrary despotism were tolerated by the administration. Appeals from the citizens of Murray county brought them no relief—and incensed at such outrages, they determined on the first Monday in January last, to turn out and elect such Judges of the Inferior Court and county officers, as would be above the control of Bishop, that he might thereby be prevented from packing such a jury as he chose to try him for his brutal and unconstitutional outrages on their rights. Accordingly on Sunday evening previous to the election, about twenty citizens who lived a distance from the county site, came in unarmed and unprepared for battle, intending to remain in town, vote in the morning and return home. They were met by Bishop and his State band, and asked by the former 'whether they were for peace or war.' They unanimously responded, 'we are for peace:' At that moment Bishop ordered a fire, and instantly *every musket of his band was discharged on those citizens*, 5 of whom were wounded, and others escaped with bullet holes in their clothes. Not satisfied with the outrage, *they dragged an aged man from his wagon and beat him nearly to death.*

"In this way the voters were driven from Spring Place, and before day light the next morning, the polls were opened by order of Bishop, and soon after sun rise they were closed; Bishop having ascertained that the band and Schley men had all voted. A runner was then dispatched to Milledgeville, and received from Governor Schley commissions for

those self-made officers of Bishop's, two of whom have since runaway, and the rest have been called on by the citizens of the county to resign, being each members of Bishop's band, and doubtless runaways from other States.

"After these outrages, Bishop apprehending an appeal to the judiciary on the part of the injured citizens of Murray county, had a jury drawn to suit him and appointed one of his band Clerk of the Superior Court. For these acts, the Governor and officers of the Central Bank rewarded him with an office in the Bank of the State, since which his own jury found *eleven true bills* against him."

In the Milledgeville Federal Union of May 2, 1837, we find the following presentment of the Grand Jury of Union County, Georgia, which as it shows some relics of a moral sense, still lingering in the state we insert.

Presentment of the Grand Jury of Union Co., March term, 1837.

"We would notice, as a subject of painful interest, the appointment of Wm. N. Bishop to the high and responsible office of Teller, of the Central Bank of the State of Georgia—an institution of such magnitude as to merit and demand the most unslumbering vigilance of the freemen of this State; as a portion of whom, we feel bound to express our *indignant reprehension* of the promotion of such a character to one of its most responsible posts—and do exceedingly regret the blindness or *depravity* of those who can sanction such a measure.

"We request that our presentment be published in the Miners' Recorder and Federal Union.

JOHN MARTIN, Foreman"

On motion of Henry L. Sims, Solicitor General, "Ordered by the court, that the presentments of the Grand Jury, be published according to their request." THOMAS HENRY, Clerk.

The same paper, four weeks after publishing the preceding facts, contained the following: we give it in detail as the wretch who enacted the tragedy was another public functionary of the state of Georgia and acting in an official capacity.

"MURDER.—One of the most brutal and inhuman murders it has ever fallen to our lot to notice, was lately committed in Cherokee county, by Julius Bates, the son of the principal keeper of the Penitentiary, upon an Indian.

"The circumstances as detailed to us by the most respectable men of both parties, are these. At the last Superior Court of Cass county, the unfortunate Indian was sentenced to the Penitentiary. Bates, as *one of the Penitentiary guard*, was sent with another to carry him and others, from other counties to Milledgeville. He started from Cassville with the Indian ironed and bare footed; and walked him within a quarter of a mile of Canton, the C.H. in Cherokee, a distance of twenty-eight to thirty miles, over a very rough road in little more than half the day. On arriving at a small creek near town, the Indian [who had walked until the *soles of his feet were off and those of his heel turned back*,] made signs to get water, Bates refused to let him, and ordered him to go on: the Indian stopped and finally set down, whereupon Bates dismounted and gathering a pine knot, commenced and continued beating him and jirking him by a chain around his neck, until the citizens of the village were drawn there by the severity of the blows. The unfortunate creature was taken up to town and died in a few hours.

"An inquest was held, and the jury found a verdict of murder by Bates. A warrant was issued, but Bates had departed that morning in charge of other prisoners taken from Canton, and the worthy officers of the county desisted from his pursuit, 'because they apprehended he had passed the limits of the county.' We understand that the warrant was immediately sent to the Governor to have him arrested. Will it be done? We shall see."

Having devoted so much space to a revelation of the state of society among the slaveholders of Georgia, we will tax the reader's patience with only a single illustration of the public sentiment—the degree of actual legal protection enjoyed in the state of North Carolina.

North Carolina was settled about two centuries ago; its present white population is about five hundred thousand.

Passing by the murders, affrays, &c. with which the North Carolina papers abound, we insert the following as an illustration of the public sentiment of North Carolina among 'gentlemen of property and standing.'

The 'North Carolina Literary and Commercial Journal,' of January 20, 1838, published at Elizabeth City, devotes a column and a half to a description of the lynching, tarring, feathering, ducking, riding on a rail, pumping, &c., of a Mr. Charles Fife, a merchant of that city, for the crime of 'trading with negroes.' The editor informs us that this exploit of vandalism was performed very deliberately, at mid-day, and *by a number of the citizens*, 'THE MOST RESPECTABLE IN THE CITY,' &c. We proceed to give the reader an abridgement of the editor's statement in his own words.—

"Such being the case, a number of the citizens, THE MOST RESPECTABLE IN THIS CITY, collected, about ten days since, and after putting the fellow on a rail, carried him through town with a duck and chicken tied to him. He was taken down to the water and his head tarred and feathered; and when they returned he was put under a pump, where for a few minutes he underwent a little cooling. He was then told that he must leave town by the next Saturday—if he did not he would be visited again, and treated more in accordance with the principles of the laws of Judge Lynch.

"On Saturday last, he was again visited, and as Fife had several of his friends to assist him, some little scuffle ensued, when several were knocked down, but nothing serious occurred. Fife was again mounted on a rail and brought into town, but as he promised if they would not trouble him he would leave town in a few days, he was set at liberty. Several of our magistrates *took no notice of the affair*, and rather seemed to tacitly acquiesce in the proceedings. The whole subject every one supposed was ended, as Fife was to leave in a few days, when WHAT WAS OUR ASTONISHMENT to hear that Mr. Charles R. Kinney had visited Fife, advised him not to leave, and actually took upon himself to examine witnesses, and came before the public as the defender of Fife. The consequence was, that all the rioters were summoned by the Sheriff to appear in the Court House and give bail for their appearance at our next court. On Monday last the court opened at 12 o'clock, Judge Bailey presiding. Such an excitement we

never witnessed before in our town. A great many witnesses were examined, which proved the character of Fife beyond a doubt. At one time rather serious consequences were apprehended—high words were spoken, and luckily a blow which was aimed at Mr. Kinney, was parried off, and we are happy to say the court adjourned after ample securities being given. The next day Fife was taken to jail for trading with negroes, but has since been released on paying \$100. The interference of Mr. Kinney was wholly unnecessary; it was an assumption on his part which properly belonged to our magistrates. Fife had agreed to go away, and the matter would have been amicably settled but for him. We have no unfriendly feelings towards Mr. Kinney: no personal animosities to gratify: we have always considered him as one of our best lawyers. But when he comes forth as the supporter of such a fellow as Fife, under the plea that the laws have been violated—when he arraigns the acts of thirty of the inhabitants of this place, it is high time for him to reflect seriously on the consequences. The Penitentiary system is the result of the refinement of the eighteenth century. As man advances in the sciences, in the arts, in the intercourse of social and civilized life, in the same proportion does crime and vice keep an equal pace, and always makes demands on the wisdom of legislators. Now, what is the Lynch law but the Penitentiary system carried out to its full extent, with a little more steam power? or more properly, it is simply thus: *There are some scoundrels in society on whom the laws take no effect; the most expeditious and short way is to let a majority decide and give them JUSTICE.*"

Let the reader notice, 1st, that this outrage was perpetrated with great deliberation, and after it was over, the victim was commanded to leave town by the next week: when that cooling interval had passed, the outrage was again deliberately repeated. 2d. It was perpetrated by "thirty persons," "*the most respectable in the city.*" 3d. That at the second lynching of Fife, several of his neighbors who had gathered to defend him, (seeing that all the legal officers in the city had refused to do it, thus violating their oaths of office,) *were knocked down*, to which the editor adds, with the business air of a professional butcher, "*nothing serious occurred!*" 4th. That not a single magistrate in the city took the least notice either of the barbarities inflicted

upon Fife, or of the assaults upon his friends, knocking them down, &c., but, as the editor informs us, all "seemed to acquiesce in the proceedings." 5th. That this conduct of the magistrates was well pleasing to the great mass of the citizens, is plain, from the remark of the editor that "every one supposed that the whole subject was ended," and from his wondering exclamation, "WHAT WAS OUR ASTONISHMENT to hear that Mr. C.R. Kinney had actually took upon him to examine witnesses," &c., and also from the editor's declaration, "Such an excitement we never before witnessed in our town." Excitement at what? Not because the laws had been most impiously trampled down at noon-day by a conspiracy of thirty persons, "the most respectable in the city;" not because a citizen had been twice seized and publicly tortured for hours, without trial, and in utter defiance of all authority; nay, verily! this was all complacently acquiesced in; but because in this slaveholding Sodom there was found a solitary Lot who dared to uplift his voice for *law* and the *right of trial by jury*; this crime stirred up such an uproar in that city of "most respectable" lynchers as was "*never witnessed before*," and the noble lawyer who thus put every thing at stake in invoking the majesty of law, would, it seems, have been knocked down, even in the presence of the Court, if the blow had not been "parried." 6th. Mark the murderous threat of the editor—when he arraigns the *acts*," (no matter how murderous) "of thirty citizens of this place, it is high time for him to reflect seriously *on the consequences*." 7th. The open advocacy of "Lynch law" by a set argument, boldly setting it above all codes, with which the editor closes his article, reveals a public sentiment in the community which shows, that in North Carolina, though society may still rally under the flag of civilization, and insist on wrapping itself in its folds, barbarism is none the less so in a stolen livery, and savages are savages still, though tricked out with the gauze and tinsel of the stars and stripes.

It may be stated, in conclusion, that the North Carolina "Literary and Commercial Journal," from which the article is taken, is a large six-columned paper, edited by F.S. Proctor, Esq., a graduate of a University, and of considerable literary note in the South.

Having drawn out this topic to so great a length, we waive all comments, and only say to the reader, in conclusion, *ponder these things*, and lay it to heart, that slaveholding "is justified *of her children*." Verily, they have their reward! "With what measure ye mete withal it shall be measured to you

again." Those who combine to trample on others, will trample on *each other*. The habit of trampling upon *one*, begets a state of mind that will trample upon *all*. Accustomed to wreak their vengeance on their slaves, indulgence of passion becomes with slaveholders a second law of nature, and, when excited even by their equals, their hot blood brooks neither restraint nor delay; *gratification* is the *first* thought—prudence generally comes too late, and the slaves see their masters fall a prey to each other, the victims of those very passions which have been engendered and infuriated by the practice of arbitrary rule over *them*. Surely it need not be added, that those who thus tread down their equals, must trample as in a wine-press their defenceless vassals. If, when in passion, they seize those who are *on their own level*, and dash them under their feet, with what a crushing vengeance will they leap upon those who are *always* under their feet?

INDEX.

To facilitate the use of the Index, some of the more common topics are arranged under one general title. Thus all the volumes which are cited are classed under the word, BOOKS; and to that head reference must be made. The same plan has been adopted concerning *Female Slave-Drivers, Laws, Narratives, Overseers, Runaways, Slaveholders, Slave-Murderers, Slave-Plantations, Slaves, Female and Male, Testimony and Witnesses*. Therefore, with a few *emphatical* exceptions only, the facts will be found, by recurring to the prominent person or subject which any circumstance includes. All other miscellaneous articles will be discovered in alphabetical order.

A.

Absolute power of slaveholders
Absurdity of slaveholding pretexts
Abuse of power
Acclimated slaves
Adrian
Adultery in a preacher's house
Advertisement for slaves
Advertisement for slaves to hire
Advertisements
Affray
African slave-trade
Aged slaves uncommon
Alabama
Alexander the tyrant
Allowance of provisions
Amalgamation
American Colonization Society
"Amiable and touching charity!"
Amusements of slave-drivers

Animals and slaves, usage of, contrasted
Antioch, massacre at
"Arbitrary,"
Arbitrary power, cruelty of
 " " pernicious
Ardor in betting
Arius
Arkansas
Atlantic Slaveholding Region
Auctioneers of slaves
Auctions for slaves
Augustine
Aurelius
Aversion between the oppressor and the slave

B.

Babbling of slaveholders
Backs of slaves carded
 " " putrid
"Ball and chain" men
Baptist preachers
Battles in Congress
Beating a woman's face with shoes
Bedaubing of slaves with oil and tar
Begetting slaves for pay
"Bend your backs"
Benevolence of slaveholders
Betting on crops
 " slaves
Beware of Kidnappers
Bibles searched for
Blind slaves
Blocks with sharp pegs and nails
Blood-bought luxuries
Bodley, H.S.

Bones dislocated
BOOKS.

African Observer
American Convention, minutes of
" Museum
" State Papers
Andrews' Slavery and the Slave Trade
Bay's Reports
Benezet's Caution to Britain and her Colonies
Blackstone's Commentaries, by Tucker
Book and Slavery irreconcilable
Bourgoing's Spain
Bourne's Picture of Slavery
Brevard's Digest of the Laws of South Carolina
Brewster's Exposition of Slave Treatment
Buchanan's Oration
Carey's American Museum
Carolina, History of
Channing on Slavery
Charity, "amiable and touching!"
Childs' Appeal
Civil Code of Louisiana
Clay's Address to Georgia Presbytery
Colonization Society's Reports
Cornelius Elias, Life of
Davis's Travels in Louisiana
Debates in Virginia Convention
Devereux's North Carolina Reports
Dew's Review of Debates in the Virginia
Legislature
Edwards' Sermon
Emancipation in the West Indies
Emigrant's Guide through the Valley of
Mississippi

Gales' Congressional Debates
Harris and Johnson's Reports
Haywood's Manual
Hill's reports
Human Rights
James' Digest
Jefferson's Notes
Josephus' History
Justinian, Institutes of
Kennet's Roman Antiquities
Laponneray's Life of Robespierre
Law of Slavery
Laws of United States
Leland's necessity of Divine Revelation
Letters from the South, by J.K. Paulding
Life of Elias Cornelius
Louisiana, civil code of
" , sketches of
Martineau's Harriet, Society in America
Martin's Digest of the laws of Louisiana
Maryland laws of
Mead's Journal
Mississippi Revised Code
Missouri Laws
Modern state of Spain by J.F. Bourgoing
Montesquieu's Spirit of Laws
Necessity of Divine Revelation
Niles' Baltimore Register
North Carolina Reports by Devereaux
Oasis
Parrish's remarks on slavery
Paulding's letters from the South
Paxton's letters on slavery
Presbyterian Synod, Report of
Picture of slavery
Prince's Digest
Prison Discipline Society, reports of

Rankin's Letters
Reed and Matheson's visit to Am. churches
Review of Nevins' Biblical Antiquities
Rice, speech of in Kentucky convention
Robespierre, Life of
Robin's travels
Roman Antiquities
Slavery's Journal
Slavery and the Slave Trade
Society in America
Sewall's Diary
South Carolina, Laws of
South vindicated by Drayton
Spirit of Laws
Swain's address
Stroud's Sketch of the Slave Laws
Taylor's Agricultural Essays
Travels in Louisiana
Tucker's Blackstone
Tucker's Judge, Letter
Turner's Sacred History of the world
Virginia Legislature, Review of Debates in
" , Revised Code
" , Negro-raising state
Visit to American churches
Western Medical Journal
Western Medical Reformer
Western Review
Wheeler's Law of slavery
Wirt's Life of Patrick Henry
Woolman John, Life of

Books of slaves stolen
Borrowing of slaves
Bourne, George, anecdote of
Boy killed
Boys' fight to amuse their drivers

Bowie Knives
Boys' retort
Brandings
Branding with hot iron
Brasses
"Breeders"
Breeding of slaves prevented
"Breeding wenches"
" " comparative value of
Bribes for begetting slaves
Brick-yards
"Broken-winded" slaves
Brutality to slaves
Brutes and slaves treated alike
Burial of slaves
Burning of McIntosh
Burning slaves
Burning with hot iron
Burning with smoothing irons
Butchery

C.

Cabins of slaves
Cachexia Africana
Caligula
Can't believe
Capital Crimes
Captain in the U.S. navy, tried for murder
Carding of Slaves
Cat-hauling
Cato the Just
Causes of the laws punishing cruelty to slaves
Chained slave
Chains
Changes in the market
Character of Overseers

" Romans
" Slave-drivers
Charleston
" Infirmary at
" Jail
" Slave auctions
" Surgery at
" Work-house
Chastity punished
Child-bearing prevented
Childbirth of slaves
Childhood unprotected
Children flogged
" naked
Choking of slaves
Chopping of slaves piecemeal
Christian females tortured
" martyr
" slave-hunting
" slave-murderer
Christian, slave whipped to death
Christians, persecutions of
" slavery among
" treat their slaves like others
Christian woman kidnapped
Chronic diseases
Churches, abuse of power in
Church members
"Citizens sold as slaves"
Civilization and morality
Clarkson, Thomas
Claudius
Clemens
Clothing for slaves
Cock-fighting
Code of Louisiana
Collars of iron

Columbia, district of
 " fatal affray at
Comfort of slaves disregarded
Commodus
Concubinage
Condemned criminals
Condition of slaves
Confinement at night
Congress of the United States
 " a bear garden
Connecticut, law of, against Quakers
Constables, character of
Constantine the Great
Contempt of human life
Contrasts of benevolence
Conversation between C. and H
Converted slave
Cooking for slaves
Correction moderate
Corrupting influence of slavery
Cotton-picking
Cotton-plantations
Cotton seed mixed with corn for food
Council of Nice
Courts, decrees of
Cowhides, with shovel and tongs
Crack of the whip heard afar off
Crimes of slaves, capital
Criminals condemned
Cringing of Northern Preachers
Cropping of ears
Crops for exportation
Cruelties, common
 " inflicted upon slaves
 " of Cortez in Mexico
 " Ovando in Hispaniola
 " Pizarro in Peru

" of slave-drivers incredible
Cruel treatment of slaves the masters' interest
Cultivation of rice
Cutting of A.T. s throat by a Presbyterian woman

D.

D'Almeydra, Donna Sophia
Damaged negroes bought
Darlington C.H., South Carolina
Dauphin Island, Mobile Bay
"Dead or Alive"
Dead slave claimed
Deaf slaves
Death at child birth
Death-bed, horrors of a slave driver
Death by violence,
Death of a slave murderer
Decrees of Courts
Decisions, judicial
Declarations of slaveholders
Deformed slaves
Delivery of a dead child from whipping
Description of slave drivers, by John Randolph
Despair of slaves
Desperate affray
"Despot"
"Dimensum" of Roman slaves
Diseased slaves
Dislocation of bones
District of Columbia
" " prisons in
Ditty of slaves
"Doe-faces"—"Dough-faces"
Dogs provided for
Dogs to hunt slaves
Domestic slavery

Domitian
Donnell, Rev. Mr.
"Dough-faces"
"Drivers"
Driving of slaves
Droves of "human cattle"
" " slaves
Duelling
Dumb slaves
Dwellings of slaves
Dying slave
Dying young women

E.

Ear-cropping
Early market
Ear-notching
Ear-slitting
Eating tobacco worms
Effects of public opinion concerning slavery
Emancipation society of North Carolina
English ladies and gentlemen
Enormities of slave drivers
Evenings in the "Negro quarter"
Evidence of slaves vs. white persons null
Ewall, Merry
Examples pleaded in justification of cruelty to slaves
Exchange of slaves
Exportation of slave from Virginia
Eyes struck out

F.

Faith objectors who "*can't believe*"
Fatal rencontre

"Fault-finding"
Favorite amusements of slaveholders
Fear, the only motive of slaves
Feast for slaves
Feeding insufficient
Feeble infants
Felonies on account of slavery
" perpetrated with impunity
Female hypocrite
Female slave deranged
FEMALE SLAVE DRIVERS

Burford, Mrs.
Carter, Mrs. Elizabeth L.
Charleston
Charlestown, Va
Galway, Mrs.
Harris, Mrs.
H., Mrs. throat cutter
Laurie, Madame La
Mallix, Mrs.
Mann, Mrs.
Mabtin, Mrs.
Maxwell, Mrs.
McNeil, Mrs.
Morgan, Mrs.
Newman, Mrs. B.
Pence, Mrs.
Phinps, Mrs.
Professor of religion
Ruffner, Mrs.
South Carolina
Starky, Mrs.
Swan, Mrs.
Teacher at Charleston

T., Mrs.
Trip, Mrs.
Truby, Mrs
Turner, Mrs.
Walsh, Sarah

Female slave starved to death
" " whipped to death by a Methodist
preacher
Female stripped by order of her mistress
Fetters
Field-hands
Fighting of boys to amuse their drivers
Fine old preacher who dealt in slaves
Fingers cut off
Flogging for unfinished tasks
" of children
" pregnant women until they miscarry
" slaves
" young man
Floggings
Florida
Food, kinds of
" of slaves
" quality of
" quantity of
Free citizens stolen
Free woman
" " kidnapped
Frequent murders
Friends, memorial of
Front-teeth knocked out
Fundamental rights destroyed

G.

Gadsden Thomas N. Slave Auctioneer
Gagging of slaves
Galloway flogging Jo.
Gambling on crops
Gambling slaveholder
Gang of slaves
Generosity of slaveholders
Georgia
Girls' backs burnt with smoothing irons
Girls' toe cut off
Good treatment of slaves
Governor of North Carolina
" " Shiraz
Grand Jury presentment of,
Guiltiness of Slavery
Gun shot wounds

H.

Habits of slave-drivers
Hampton Wade, murderer of slaves
Handcuffs
"Hands tied"
Hanging of nine slaves
Harris Benjamin, slave murderer
Head found
Head of a runaway slave on a pole
Health of slaves
Heart of slaveholders
Helton James, slave murderer
Herding of slaves
Hired slaves
Hiring of slaves
"Horrible malady"
"Horrid butchery"
Horrors of a slave-driver at death
" " the "middle passage"

Horse-racing
Horses more cared for than slaves
Hospitality of slaveholders
Hours of rest
 " " work
Hospital at New Orleans
House-slaves
Houses of slaves
"House-wench"
Hovels of slaves
Huguenots, persecution of
"Human cattle"
Human rights against slavery
Hunger of slaves
Hunter of slaves
Hunting men with dogs
Hunting of slaves
Hunt, Rev. Thomas P.
Husband whipping his wife
Huts of slaves
Hymn-books searched for
Hypocrisy of vice

I.

Idiot slaves
Ignatius
Ignorance of northern citizens of slavery
 " " slaveholders
Impunity of killing slaves
Inadequate clothing
Income from hiring slaves
Incorrigible slaves
Incredibility of evidence against slavery
Incredulity discreditable to consistency
 " " " intelligence
Indecency of slave-drivers

Indiana Legislature, resolutions of
Infant drowned
Infant slaves
Infirmary at Charleston
Infliction of pain
Inspection of naked slaves
Intercession for slaves
Interest of slaveholders
Introduction
Iron collars
Iron fetters
Iron head-front
Israelites in Egypt

J.

Jewish law
Joe flogged
Jones, Anson, Minister from Texas
Judicial decisions

K.

Kentucky
 " Sunday morning
Kicking of slaves
Kidnappers
Kidnapping
Kindness of slaveholders
Kinds of food
Kind treatment of slaves.
Knives, Bowie
Knocking out of teeth

L.

Labor, hours of
Labor of slaves
Ladies Benevolent Society
Ladies flog with cowhides
Ladies, public opinion known by
Ladies use shovel and tongs
Law concerning slavery
Law-making
Laws, Georgia
 " Louisiana
 " Maryland
 " Mississippi
 " North Carolina
 " South Carolina
 " Spirit of
 " Tennessee
 " United States
 " Virginia
Law, safeguards of taken from slaves
Law suit for a murdered slave,
Legal restraints
Licentiousness
 " encouraged by preachers
Licentiousness of slavedrivers
"Lie down" for whipping,
Life in the South-west,
Lives of slaves unprotected
Lodging of slaves
Long, his cruelty
'Loss of property'
Louisiana
 " law of
 " sketches of,
Louis XIV. of France
Lovers severed,
Lunatic slaves

"Lynchings" in the United States
Lynch Law,

M.

Maimed slaves
Maimings
Malady of slaves
Manacling of slaves
Maniac woman
Man sold by a Presbyterian elder
Man-stealing paid for
Marriage unknown among slaves
Martyr for Christ
Maryland Journal
Maryville Intelligencer
Massacre at Antioch
" " Thessalonica
" " Vicksburg
Masters grant no redress to slaves
McIntosh, burning of
Maximin
Meals number of
" of slaves
"Meat once a year"
Mediation for slaves
Medical attendance
" college of South Carolina
" Infirmary at Charleston
Medicine administered to slaves
Members of churches
Memorial of friends
Menagerie of slaves
Men and women whipped
Methodist colored preacher hung,
Methodist girl whipped for her chastity
Methodist preacher, a slave dealer

" " " driver
 " woman cut off a girl's toe
 Method of taking meals
 "Middle passage"
 Miscarriage of women at the whipping post
 Mississippi
 Missouri
 Mistresses flog slaves
 Mobile
 "Moderate correction"
 Moors, repulsion of
 Morgan, William
 Mormons
 Mothers and babes separated
 Mothers of slaves
 Mulatto children in all families
 Multiplying of slaves
 Murderers of slaves tried and acquitted
 Murder of slaves by law
 " " " bad feeling
 " " " piece-meal
 " " every seven years
 " " frequent
 " " with impunity
 Murders in Alabama
 " " Arkansas

N.

Naked children
 " "Dave"
 " females whipped
 " " inspected
 " Men and women at work in a field
 Nakedness of slaves
 Nantz, edict of
 'National slave-market'

Natchez
Nat Turner
'Negro Head Point'
'Negroes for sale'
'Negroes taken'
Nero
'Never lose a day's work'
New England, witches of
New Orleans
" " Hospital
New York, thirteen persons burnt at
Nice, council of
'Nigger put in the bill'
Night-confinement
Night at a slaveholder's house
Night in slave huts
Nine slaves hanged
No marriage among slaves
North Carolina
" " Governor of
" " Legislature of
" " Kidnappers
Northern visitors to the slave states
Nothing can disgrace slave-drivers
Novel torture
Nudity of slaves
Nursing of slave-children

O.

Objections considered
Odra, a slave-driver
Oiling of a slave
Old age uncommon among slaves
" " unprotected
Old dying slaves
"Old settlement"

" slaves
Oppressor aversion of to his slave
Outlawry of slaves
Outrageous Felonies on account of slavery
" " perpetrated with impunity
Overseers, character of
" generally armed
" no appeal from
OVERSEERS OF SLAVES—

Alabama
Alexander killed
Bellemont
Bellows
Blocken's
Bradley
Cormick's
Cruel to a proverb
Farr, James
Galloway
Gibbs
Goochland
Methodist preacher
Milligan's Bend
Nowland's
Tune
Turner's cousin
Walker
Overworking of slaves
Ownership Of human beings destroys their
comfort.

P.

"Paddle" torture
Paddle whipping
Pain, the means of slave drivers
"Pancake sticks"
Parents and children separated
Parlor-slaves
Parricide threatened
Patrol
Pay for begetting mulatto slaves
Periodical pressure
Persecution of Huguenots
Persecution for religion
PERSONAL NARRATIVES
Philanthropist
Philip II. and the Moors
Physicians not employed for slaves
Physicians of slaves
Physician's statement
Pig-sties more comfortable than slave-huts
Plantations
Pleas for cruelty to slaves
Ploughs and whips equally common
Pliny
Poles, Russian clemency to
Polycarp
"Poor African slave"
Portuguese slaves
Pothinus
Prayer of slaves
Praying and slave-whipping in the same room
Praying slaves whipped
Preacher claims a dead slave
Preacher hung
Preachers, cringing of
Preacher's "hands tied"
Preachers silenced
Pregnant slaves

" " whipped
Presbyterian Elders at Lynchburg
Presbyterian minister killed his slave
Presbyterian slave-trader
Presbyterian woman desirous to cut A.T.'s throat
Presentment of the Grand Jury at Cheraw
Pretexts for slavery absurd
Prisons in the District of Columbia
Prison slave
PRIVATIONS OF THE SLAVES—

Clothing
Dwellings
Food
Kinds of food
Labor
Number of meals
Quality of food
Quantity of food
Time of meals.

Promiscuous concubinage
"Property"
" " 'loss of'
Protection of slaves
Protestants in France
Provisions, allowance of
Public opinion destroys fundamental rights,
" " diabolical
" " protects the slave
Punishment of slaves
Punishments
Purchasing a wife
Purveyer "the devil"
Putrid backs of slaves

Q.

Quality of food
Quantity of food

R.

Race of slaves murdered every seven years
Randolph John will of
" " description of slavedrivers
" " "Doe faces"

Rations
Rearing of slaves
Relaxation, no time for
Religious persecutions
Respect for woman lost
Rest, hours of
Restrains, legal
Retort of a boy
Rhode Island, kidnappers and pirates of
Rice plantations
Richmond Whig
Rio Janeiro slavery at
Riot at Natchez
Riots in the United States
Robespierre
Romans
Roman slavery
Runaways
RUNAWAY SLAVES—
 Advertisements for
 Baptist man and woman
 Buried alive
 Chilton's
 Converted
 "Dead or alive"
 Head on a pole

Hung
Hunting of
Intelligent man
Jim Dragon
Luke
Man buried
" dragged by a horse
" maimed
" murdered
" severe punishments of
" shot
" " by Baptist preacher
" taken from jail
" tied and driven
" to his wife
" whipped to death
Many, annually shot I
Stallard's man
White Peter
Young woman

S.

Sabbath, a nominal holiday
Safeguards of the law taken from slaves
Sale of a man by a Presbyterian elder
Sale of slaves
Savannah, Ga.
Savannah slave-hunter
Save us from our friends
Scarcity, times of
Scenes of horror
Search for Bibles and Hymn books
Secretary of the Navy
Separation of slaves
Shame unknown among naked slaves
Shoes for slaves

Sick, treatment of
"Six pound paddle,"
"Slack-jaw,"
Slave-breeders
" breeding
Slave-drivers acknowledge their enormities
" " character of
SLAVEHOLDERS—

Adams
Baptist preachers
Barr
Baxter, George A.
Baxter, John
Blocker, Colonel
Blount
Britt, Benjamin W.
Burbecker
Burvant, Mrs.
C.A., Rev.
Casey
Chilton, Joseph
Clay
C., Mr.
Cooper, Charity
Curtis,
Davis, Samuel
Dras, Henry
Delaware
Female hypocrite
Gautney, Joseph
Gayle, Governor
Governor of North Carolina
Green
Hampton, Wade

Harney, William S.
Harris, Benjamin James
Hayne, Governor
Hedding
Henrico county, Va.
Heyward, Nathaniel
Hughes, Philip O.
Hutchinson
Hypocrite woman
Indecency of
Jones
Jones, Henry
Lewis, Benjamin
Lewis, Isham
Lewis, Lilburn
Lewis, Rev. Mr.
Long, Lucy
Long, Reuben
L., of Bath, Ky.
MacLay, John
Martin, Rev. James
Matthews' Bend
M'Coy
M'Cue, John
Methodist
Methodist Preachers
M'Neilly
Moresville
Morgan
Mosely, William
Murderer
Mushat, Rev. John
Nansemond, Va.
Natchez planter
Nelson, Alexander
Nichols, of Connecticut
North Carolina

Owens, Judge
Painter
Physician
Pinckney, H.L.
Presbyterian
Presbyterian minister, Huntsville
" " North Carolina
" preacher
Professing Christian
Puryar, "the Devil"
Randolph, John
Reiks, Micajah
Rodney
Ruffner
Shepherd, S.C.
Sherrod, Ben
Slaughter,
Smith, Judge
Sophistry of
South Carolina
Sparks, William
Stallard, David
Starky,
Swan, John
Teacher at Charleston
Thompson
Thorpe
Tripp, James
Truly, James
Turner, Fielding S.
Turner, uncle of
Virginian,
Wall
Watkins, Billy
Watkins, Robert H.
Watson, A.
W., Colonel

Webb, Carroll
" Pleasant
West's uncle
Widow and daughter, Savannah river
Willis, Robert
Wilson, William
Woman
Woman, professor of religion,

Slaveholders justify their cruelties by example

" possess absolute power
" sophistry of

Slaveholding amusements

" brutality
" indecency
" murderers
" religion

Slave-mothers,

" plantations second only to hell

Slavery among Christians

SLAVERY ILLUSTRATED—

Slave-auctions

" blocks with nails
" boys fight to amuse their drivers,
" branding
" breeding
" burner
" burning

Slave-cabins

" " at night

Slave-children nursed

" choking
" clothing
" collars
" cookery

Slave-ditty

" dogs

- " driver's death
- " " licentiousness of
- " driving
- " fetters
- " food
- " gagging
- " gangs
- " handcuffs
- " herding

Slaveholders, civilization and morality of

- " declarations of
- " habits of
- " heart of
- " hospitality of
- " interest of
- " sophistry of
- " "treat their slaves well"

Slaveholding professor

"Slaveholding religion"

Slave-hovels

- " hunting
- " " by Christians

Slave imprisoned

- " in chains
- " in the stocks
- " kicking
- " killed, and put in the bill
- " killing with impunity
- " labor
- " manacles
- " martyr
- " meals
- " mothers
- " murderers, tried and acquitted
- " patrol
- " physicians
- " punishments of

Slave quarters,

Slavery, code of law respecting

" among Christians

" domestic

" guilt of

" of whites

" public opinion and effects of

" unmixed cruelty

Slave selling

Slaves aversion of to their oppressors

" backs of, putrid

" blind

" books of searched for

" branded

" brutality to

" burial of

" carded

" cat-hauling of

" comfort of disregarded

" deaf

" dead or alive

" deformed

" deprived of every safeguard of the law

" described

" diseased

" dread to be sold for the South

" dumb

" dying

" evidence of against white persons null

" exchanged

" reported from Virginia

" fear their only motive

" feasted and flogged

" hired

" idiots

" incorrigible

" infant

" in the stocks
" " U.S. treatment of
" lunatics
" maimed
" merchandise
" multiply
" murdered by cottonseed
" " overwork
" " piece-meal
" " starvation
" " every seven years
" " frequently
" " with impunity
" naked
" not treated as human beings
" outlawed
" overworked
" prayers of
" privations of
" protection of
" sale of
" stock
" surgeons of
" taking medicine
" tantalized
" starvation of
" teeth of knocked out
" tied up all night
" toe cut off
" torments of
" travelling in droves
" treated worse as they are farther South
" treatment of by Christians
" under overseers
" watching of
" without redress
" " shelter

" working animals
" worn out
" worse treated than brutes
" wounded by gun-shot
Slave testimony excluded
" torturing hypocrite
" trade with Africa
" trading
" " honorable
" traffic
Slave Murderers
Slave plantation
Slave usage contrasted with that of animals
Slave whipping
Slave yokes
" Whipped
" Whipped and burnt
" Whipped to death
Slaves treatment of
Slave trade
Sleeping in clothes
Slitting of ears
Smoothing iron on girl's backs
Sophistry of slaveholders
South Carolina laws of
" " medical college
Southern dogs and horses
Spartan slavery
Speece, Rev. Conrad opposed to emancipation
Spirit of laws
Springfield, S.C.
Starvation of a female slave
" " slaves
Statement of a physician
State, abuse of power in
Stealing of freemen
Stevenson, Andrew, letter by

St. Helena, S.C.
Stillman's, Dr. medical infirmary at Charleston
Stocks for slaves
"Stock without shelter:
"Subject of prayer"
Suffering of slaves
" " " drives to despair and suicide
Sugar-planters
Suicide of slaves
Suit for a dead slave
" " " murdered slave
Sunday morning in Kentucky
Surgeon of slaves
Surgery at Charleston
"Susceptibility of pain"

T.

Tanner's oil poured on a slave
Tantalising of slaves
Tappan, Arthur
Tarring of slaves
Taskwork of slaves
Teeth knocked out
Tender regard of slaveholders for slave
Tennessee

TESTIMONY.—

Allen, Rev. William T.
Avery, George A.
Caulkins, Nehemiah
Channing, Dr.
Chapin, Rev. William A.
Chapman, Gordon
Clergyman
Cruelty to slaves
Dickey, Rev. William
Drayton, Colonel

Gildersleeve, William C.
Graham, Rev. John
Grimké, Sarah M.
Hawley, Rev. Francis
Ide, Joseph
Jefferson, Thomas
Macy, F.C.
" Reuben G.
" Richard
" T.D.M.
Moulton, Rev. Horace
Nelson, John M.
New Orleans
Of slaves excluded
Paulding, James K.
Poe, William
Powel, Eleazar
Sapington, Lemuel
Scales, Rev. William
Secretary of the Navy
Smith, Rev. Phineas
Summers, Mr.
Virginian
Westgate, George W.
Weld, Angelina Grimké
White, Hiram
Wist, William
Texas
Theodosius the Great
Thessalonica, massacre at
Thumb-screws
Tiberius
Time for relaxation, not allowed
Times of scarcity
Titus
Tobacco worms eaten
Tooth knocked out

Tortures

" eulogized by a professor of religion

Trading with negroes

Traffic in slaves

Trajan

Treatment of sick slaves

Treatment of slaves in the United States by
professing Christians,

" little better than that of brutes

Trial of women,—"*white and black*,"

Trials for murdering slaves

Turkish slavery

Turner, Nat

Twelve slaves killed by overwork

Twenty-seven hundred thousands of free-born
citizens in the United

States

Tying up of slaves at night

"Tyrant"

U.

"Uncle Jack," Baptist preacher

Under garments not allowed to slaves

United States, Laws of

University of Virginia

Untimely seasons

Usage of slaves and brutes contrasted

V.

Vapid babblings of slaveholders

Vice, hypocrisy of

Vicksburg, massacre of

Virginia, a slave menagerie

" exportation of slaves from

" University of

Visitors to slave states
Vitellius

W.

Washing for slaves
Washington slavery
" the national slave market
West Indian slaves
Whip, cracking of heard at a distance
"Whipped to death"
WHIPPING—

Children
Every day
Females
On three plantations heard at one time
Pregnant women
Slaves
Slaves after a feast
" for praying
With paddle
Women with prayer

Whipping-posts
Whips equally common on plantations as ploughs
"White or black;" trial of
Whites in slavery
White slave
Wholesale murders
Wife, purchase of a
Will of John Randolph
Wilmington, N.C.
Witches of New-England
WITNESSES.

Abbot, Jordan
Abdie, P.
Adams, Mr.
African Observer
Alexandria Gazette
Allan, Rev. William T.
Alston, J.A., Heirs of
Alton Telegraph
Alvis, J.
Anderson, Benjamin
Andrews, Professor
Anthony, Julius C.
Antram, Joshua
Appleton, John James
Arkansas Advocate
Armstrong, William
Artop, James
Ashford, J.P.
Augusta Chronicle
Avery, George A.
Aylethorpe, Thomas
Bahi, P.
Baker, William
Baldwin, J.G.
Baldwin, Jonathan F.
Ballinger, A.S.
Baltimore Sun
Baptist Deacon
Bardwell, Rev. William
Barker, Jacob
Barnard, Alonzo
Barnes, George W.
Barr, James
" Mrs.
" Rev. Hugh

Barrer, B.G.
Barton, David W.
" Richard W.
Bateman, William
Baton Rouge, Agricultural Society of
Bayli, P.
Beall, Samuel
Beasley, A.G.A.
" John C.
" Robert
Beene, Jesse
Bell, Abraham
" Samuel
Bennett, D.B.
Besson, Jacob
Bezon, Mr.
Bingham, Joel S.
Birdseye, Ezekiel
Birney, James G.
Bishop, J.
Blackwell, Samuel
Bland, R.J.
Bliss Mayhew and Co
" Philemon,
Bolton, J.L. and W.H.
Boudinot, Tobias
Bouldin, T.T.
Bourgoing, J.F.
Bourne, George
Bradley, Henry
Bragg, Thomas
Brasseale, W.H.
Brewster, Jarvis
Brothers, Menard
Brove, A.
Brown, J.A.
" John

" Rev. Abel
" William
Bruce Mr.
Buchanan, Dr.
Buckels, William D.
Burvant, Madame
Burwell
Bush, Moses E.
Buster, Mr.
Butt, Moses
Byrn, Samuel H.
Calvert, Robert
Carney, R.P.
Carolina, History of
Carter, Mrs. Elizabeth
Caulkins, Nehemiah
Channing, Dr.
Chapin, Rev. William A.
Chapman, B.F.
" Gardon
Charleston Courier
" Mercury
" Patriot
Cherry, John W.
Child, David L.
" Mrs.
Choules, Rev. John O.
Citizens of Onslow
Clark, W.G.
Clarke John
Clay, Henry,
" Thomas
Clenderson, Benjamin
Clergyman
Coates Lindley
Cobb, W.D.
Colborn, J.L.

Cole, Nathan
Coleman, H.
Colonization Society
Columbian Inquirer
Comegys, Governor
Congress, Member of
Connecticut, Medical Society of
Constant, Dr.
Cooke, Owen
Cook, Giles
" H.L.
Cooper, Thomas
Cornelius, Rev. Elias
Corner, Charles
" L.E.
Cotton plantere
Cowles, Mrs. Mary
" Rev. Sylvester
Craige, Charles
Crane, William
Crutchfield, Thomas
Cuggy, T.
Curtis, Mr.
" Rev. John H.
Cuyler, J.
Daniel and Goodman
Darien Telegraph
Davidson, Rev. Patrick
Davis, John
Davis, Benjamin
Dean, Jethro
" Thomas
Demming, Dr.
Denser, T.S.
Derbigny, Judge
Dew, Philip A.
" President

Dickey, Rev. James H.
" William
Dickinson, Mr.
Dillahunty, John H.
Doddridge, Philip
Dorrah, James
Downman, Mrs. Lucy M.
Douglas, Rev. J.W.
Drake and Thomson
Drayton, Colonel
Drown, William
Dudley, Rev. John
Duggan, John
Dunn, John L.
Dunham, Jacob
Durell, Judge
Durett, Francis
Dustin, W.
Dyer, William
Eastman, Rev. D.B.
Eaton, General William
Edmunds, Nicholas
Edwards, F.L.C.
" President
" Junior "
Ellison, Samuel
Ellis, Orren
Ellsworth, Elijah
Emancipation Society of N.C.
English, Walter R.
Evans, R.A.
Everett, William
Faulkner, Mr.
Fayetteville Observer
Fernandez and Whiting
Finley, James C.
" R.S.

Fishers, E.H. and I.
Fitzhugh, William H.
Ford, John
Foster, Francis
Fox, John B.
Foy, Enoch
Francisville Chronicle
Franklin Republican
Frederick, John
Friends, Yearly Meeting of
Fuller, Isaac C.
Fullerton, G.S.
Furman, B.
Gadsden, Thomas N.
Gaines, Rev. Ludwell, G.
Gales, Joseph
Garcia, Henrico Y.
Garland, Maurice H.
Gates, Seth M.
Gayle, John
Georgetown Union
Georgia Constitutionalist
" Journal
Georgian
Gholson, Mr.
Giddings, Mr.
Gilbert, E.W.
Gildersterre, William C.
Glidden, Mr.
Goode, Mr.
Gourden and Co.
Grace, Byrd M.
Graham, Rev. John
" Rev. Dr.
Grand Gulf Advertiser
Graham, Jehab
Gray, Abraham

Greene, R.A.
Green, James R.
Gregory, Ossian
Gridley, H.
Grimké, Sarah M.
Grosvenor. Rev. Cyrus P.
Guex, D.F.
Gunnell, John J.H.
Guthrie, A.A.
Guyler, J.
Halley, Preston
Hall, Samuel
Han, E.
Hand, John H.
Hansborough, William
Hanson, Peter
Harding, N.H.
Harman, Samuel
Harrison, General W.H.
Hart, F.A.
" Rev. Mr.
Harvey, J.
Hawley, David
" Rev. Francis
Hayne, General R.Y.
Henderson, John
" Judge
Hendren, H.
Herring, D.
" Dr.
Hitchcock, Judge
Hite, S.N.
Hodges, B.W.
" Rev. Coleman S.
Holcombe, John P.
Holmes, George
Home, Frederick

Honerton, Philip
Hopkins, Rev. Henry T.
Horse, Outerbridge
Hough, Rev. Joseph
Houstoun, Edward
Hudnall, Thomas
Hughes, Benjamin
Hunt, John
 " Rev. Thomas P.
Hussey, George P.C.
Huston, Felix
Hutchings, A.J.
Ide, Joseph
Indiana, Legislature of
Jackson, Stephen M.
 " Telegraph
James, Joseph
Jarnett, James T. De
Jarvett, James T.
Jefferson, Thomas
Jenkins, John
Jett, Marshall
Johnson, Bryant
 " Cornelius
 " Isaac
 " Josiah S.
Jolley, J.L.
Jones, Alexander
 " Anson
 " Hill
 " James
 " R.H.
 " W. Jefferson
Jourdan, Green B.
Judd, D.
 " Mrs. Nancy
Keeton, G.W.

Kennedy, John
Kentucky, Synod of
Kephart, George
Kernin, Charles
Keyes, Willard
Kimball and Thome
" George
Kimborough, James
King, Charles
" John H.
" Nehemiah
Knapp, Henry E.
" Isaac
Kyle, Frederick
" James
Lacy, Theodore A.
Ladd, William
Lains, O.W.
Lambeth, William L.
Lambre, Mr.
Lancette, R.
Langhorne, Scruggs and Cook
Larrimer, Thomas
Latimer, W.K.
Lawless, Judge
Lawyer, Zadok
Ledwith, Thomas
Leftwich, William
Lemes, Ferdinand
Leverich and Co.
Lewis, Kirkman
Lexington Intelligencer
" Observer
Little, Mrs. Sophia
Loflano, Hazlet
Long, Joseph
Loomis, Henry H.

Loring, R.
" Thomas
Louisville Reporter
Lowry, Mrs. Nancy
Luminais, A.
Lyman, Judge
" Rev. H.
Macoïn, J.
Macon Messenger
" Telegraph
Macy, F.C.
" Reuben G.
" Richard
" T.D.M.
Magee, William
Males, Henry
Maltby, Stephen E.
Manning, P.T.
Marietta College, student of
Marks, James
Marriott, Charles
Marshall, John T.
Martineau, Harriet
Maryland Journal
Maryville Intelligencer
Mason, Samuel
Mathieson, Rev. James
May, Rev. Samuel J.
McCue, Moses
McDonnell, James
McGehee, Edward J.
McGregor, Henry M.
McMurrain, John
Mead Whitman
Medical College of South Carolina
Memphis Gazette
" Inquirer

Menefee, R.H.
Menzies, Judge
Mercer, Mr.
Metcalf, Asa B.
Middleton, Mr.
Miles, Lemuel
Milledgeville Journal
" Recorder
Miller, C.
Minister from Texas, A. Jones
Minor, W.I.
Missouri Republican
Mitchell, Dr. Robert
Mitchell, Isaac
M'Neilly
Mobile Advertiser
" Examiner
" Register
Mongin, R.P.T.
Montesquieu
Montgomery, W.H.
Moore, Mr. Va.
Moorhead, John H.
Morris, E.W.
Moulton, Rev. Horace
Moyne Dr. F. Julius Le
Muggridge, Matthew
Muir J.G.
Murat A.
Murphy S.B.
Napier T. and L.
Natchez Courier
" Daily Free Trade
National Intelligencer
Nelson Dr. David
" John M.
Nesbitt Wilson

Newbern Sentinel
" Spectator
New Hampshire, legislature of
Newman Mrs. B.
New Orleans Argus
" Bee
" Bulletin
" Courier
" Kidnapping at
" Mercantile Advertiser
" Post
New York American
" Sun
Neyle S.
Nicholas Judge
Nicoll Robert
Niles Hezekiah
Noe James
Norfolk Beacon
" Herald
N.C. Literary and Commercial-Standard
N.C. Journal
Nourse Rev. James
Nye Horace
O'Byrne
O'Connell Daniel
Oliver Colonel
O'Neill Peter
Onslow, Citizens of
Orme Moses
O'Rorke John
Overstreet, Richard
Overstreet, William
Owen, Captain N.F.
Owen, John W.
Owens, J.G.
Parrish, John

Parrott, Dr.
Patterson, Willie
Paulding, James K.
Peacock, Jesse
Perry, Thomas C.
Petersburg Constellation
Philanthropist
Pickard, J.S.
Pinckney, H.L.
Pinkney, William
Planter's Intelligencer
Planters of South Carolina
Poe, William
Porter, Mr.
Portsmouth Times
Powell, Eleazar
Presbyterian elder
President of the United States
Pringle, Thomas
Pritchard, William H.
Probate sale
Purdon, James
Ragland, Samuel
Raleigh Register
Ralston, Samuel
Randall, J.B.
Randolph, John
Riadolph, Thomas Mann
Rankin, Rev. John
Rascoe, William D.
Rawlins, Samuel
Raworth, Egbert A.
Redden J.V.
Red River Whig
Reed, Rev. Andrew
Reed, William H.
Reese, Enoch

Reins, Richard
Reeves, W.P.
Renshaw Rev. C.S.
Rhodes, Durant H.
Rice, H.W.
Rice, Rev. David
Richardson, G.C.
Richards, James K.
Richards, Moses R.
Richards, Stephen M.
Richmond Compiler
Richmond Inquirer
Richmond Whig
Ricks, Micajah
Riley, W.
Ripley, George B.
Roach, Philip
Robbins, Welcome H.
Robarts, William
Roberts, J.H.
Robin, C.C.
Robinson, N.M.C.
Robinson, William
Roebuck, George
Rogers, N.P.
Rogers, Thomas
Ross, Abner
Rowland, John A.
Ruffin, Judge
Russel, Benjamin
Russel, W.
Rymes, Littlejohn
Sadd, Rev. Joseph M.
Salvo, Conrad
Sapington, Lemuel
Saunders, James
Savage, Rev. Thomas

Savannah Georgian
Savannah Republican
Savory, William
Scales, Rev. William
Schmidt, Louis
Scott, Rev. Orange
Scott, William
Scrivener, J.
Seabrook, Whitmarsh B.
Secretary of the navy
Selfer
Senator of the United States
Sevier, Ambrose H.
Sewall, Stephen
Shafter, M.M.
Sheith, M.J.
Shield and Walker
Shields, Polly C.
Shropshire, David
Simmons, B.C.
Simpson, John
Sizer, R.W.
Skinner, W.
Slaveholders
Smith, Bishop of Kentucky
Smith, Gerrit
Smith, Professor
Smith, Rev. Phineas
Smyth, Alexander
Snow, Henry H.
Snowden, J.
Snowden, Rev. Samuel
South Carolina, legislature of
South Carolina, Medical College of
South Carolina, Slaveholder of
Southern Argus
Southern Christian Herald

Southerner
Southmayd, Rev. Daniel S.
Spillman, Mr.
Stansell, William
Staughton, Rev. Dr.
Staunton Spectator
Steams and Co.
Stevenson, Andrew
Stewart, Samuel
Stillman, Dr.
Stith, W. and A.
Stone, Asa A.
Stone, Silas
Stone, William L.
Strickland, William
Stroud, George M.
Stuart, Charles
Summers, Mr.
Swain, B.
Synod of South Carolina and Georgia
Tart, John
Tate, Calvin H.
Taylor, James H.
" John
" Lawton, and Co.
Texan minister, Anson Jones
Thatcher, Colonel
Thome and Kimball
Thome, James A.
Thompson, Henry P.
Thomson, Mr.
" , Sandford
Todd, R.S.
Toler, William
Tolin, Cornelius D.
Townsend, Ely
" , Samuel

Tucker, Judge
Turnbull, Robert
Turner, John
 " , John D.
 " , L.
Tarton, S.B.
Tuscaloosa Flag of the Union
Upsher, Judge
Ustick, William A.
Vance, John
Van Buren, Martin
Varillat, H.
Vicksburg Register
Virginia Minister
Virginian
Walker, John
Walton, George
 " , John W.
Walsh, Sarah
Washington Globe
Waugh, Dr. Jeremiah S.
Weld, Angelina Grimké
Wells, Thomas J.
West Eli
Western Luminary
 " Medical Journal
 " " Reformer
 " Review
Westgate, George W.
Whitbread, Samuel
Whitefield, George
 " , Needham
Whitehead, C.C.
 " , W.W.
White, Hiram
Wightman, Rev. William M.
Wilberforce, W.

Wilkins, C.W.
Wilkinson, Alfred
Williams, George W.
Willis, Robert
Willis, William
Wilmington Advertiser
Wilson, Rev. Joseph G.
Winchester Virginian
Wirt, William
Wisner, F.
Witherspoon, Dr.
Woodward, Jeremiah
Woolman, John
Wotton, John
Wright, Mr.
Yampert, T.J. De
Yearly meeting of Friends

Woman dying
" flogged because her child died
" maniac
" no respect for
Women at childbirth
" " the same labor with men
" " work
" miscarry under the whip
" not breeding
" pregnant whipped
" severe whippers of slaves
" slaves
Workhouse at Charleston
Working hours
" of slaves
Worn-out slaves
"Worse and worse"
Worship of God prohibited

Wounds by gunshot
Wright Isaac

Y.

Yokes for slaves

* * * * *

THE
ANTI-SLAVERY EXAMINER.

No. 10.

SPEECH

of

HON. THOMAS MORRIS,

OF OHIO,

IN REPLY TO THE SPEECH OF

THE

HON. HENRY CLAY.

IN SENATE, FEBRUARY 9, 1839.

NEW YORK:

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Please Read and circulate.

SPEECH

MR. PRESIDENT—I rise to present for the consideration of the Senate, numerous petitions signed by, not only citizens of my own State, but citizens of several other States, New York, Pennsylvania, Michigan, Illinois, and Indiana. These petitioners, amounting in number to several thousand, have thought proper to make me their organ, in communicating to Congress their opinions and wishes on subjects which, to them, appear of the highest importance. These petitions, sir, are on the subject of slavery, the slave trade as carried on within and from this District, the slave trade between the different States of this Confederacy, between this country and Texas, and against the admission of that country into the Union, and also against that of any other State, whose constitution and laws recognise or permit slavery. I take this opportunity to present all these petitions together, having detained some of them for a considerable time in my hands, in order that as small a portion of the attention of the Senate might be taken up on their account as would be consistent with a strict regard to the rights of the petitioners. And I now present them under the most peculiar circumstances that have ever probably transpired in this or any other country. I present them on the heel of the petitions which have been presented by the Senator from Kentucky [Mr. Clay] signed by the inhabitants of this District, praying that Congress would not receive petitions on the subject of slavery in the District, from any body of men or citizens, but themselves. This is something new; it is one of the devices of the slave power, and most extraordinary in itself. These petitions I am bound in duty to present—a duty which I cheerfully perform, for I consider it not only a duty but an honor. The respectable names which these petitions bear, and being against a practice which I as deeply deprecate and deplore as they can possibly do, yet I well know the fate of these petitions; and I also know the time, place, and disadvantage under which I present them. In availing myself of this opportunity to explain my own views on this agitating topic, and to explain and justify the character and proceedings of these petitioners, it must be obvious to all that I am surrounded with no ordinary discouragements. The strong prejudice

which is evinced by the petitioners of the District, the unwillingness of the Senate to hear, the power which is arrayed against me on this occasion, as well as in opposition to those whose rights I am anxious to maintain; opposed by the very lions of debate in this body, who are cheered on by an applauding gallery and surrounding interests, is enough to produce dismay in one far more able and eloquent than the *lone* and humble individual who now addresses you.

What, sir, can there be to induce me to appear on this public arena, opposed by such powerful odds? Nothing, sir, nothing but a strong sense of duty, and a deep conviction that the cause I advocate is just; that the petitioners whom I represent are honest, upright, intelligent and respectable citizens; men who love their country, who are anxious to promote its best interests, and who are actuated by the purest patriotism, as well as the deepest philanthropy and benevolence. In representing such men, and in such a cause, though by the most feeble means, one would suppose that, on the floor of the Senate of the United States, order, and a decent respect to the opinions of others, would prevail. From the causes which I have mentioned, I can hardly hope for this. I expect to proceed through scenes which ill become this hall; but nothing shall deter me from a full and faithful discharge of my duty on this important occasion. Permit me, sir, to remind gentlemen that I have been now six years a member of this body. I have seldom, perhaps too seldom, in the opinion of many of my constituents, pressed myself upon the notice of the Senate, and taken up their time in useless and windy debate. I question very much if I have occupied the time of the Senate during the six years as some gentlemen have during six weeks, or even six days. I hope, therefore, that I shall not be thought obtrusive, or charged with taking up time with abolition petitions. I hope, Mr. President, to hear no more about agitating this slave question here. Who has began the agitation now? The Senator from Kentucky [Mr. Clay.] Who has responded to that agitation, and congratulated the Senate and the country on its results? The Senator from South Carolina, Mr. [Calhoun.] And pray, sir, under what circumstances is this agitation begun? Let it be remembered, let us collect the facts from the records on your table, that when I, as a member of this body, but a few days since offered a resolution as the foundation of proceedings on these petitions, gentlemen, as if operated on by an electric shock, sprung from their seats and objected to its introduction. And when you, sir, decided that

it was the right of every member to introduce such motion or resolution as he pleased, being responsible to his constituents and this body for the abuse of this right, gentlemen seemed to wonder that the Senate had no power to prevent the action of one of its members in cases like this, and the poor privilege of having the resolution printed, by order of the Senate, was denied.

Let the Senator from South Carolina before me remember that, at the last session, when he offered resolutions on the subject of slavery, they were not only received without objection, but printed, voted on, and decided; and let the Senator from Kentucky reflect, that the petition which he offered against our right, was also received and ordered to be printed without a single dissenting voice; and I call on the Senate and the country to remember, that the resolutions which I have offered on the same subject have not only been refused the printing, but have been laid on the table without being debated, or referred. Posterity, which shall read the proceedings of this time, may well wonder what power could induce the Senate of the United States to proceed in such a strange and contradictory manner. Permit me to tell the country now what this power behind the throne, greater than the throne itself, is. It is the power of SLAVERY. It is a power, according to the calculation of the Senator from Kentucky, which owns twelve hundred millions of dollars in human beings as property; and if money is power, this power is not to be conceived or calculated; a power which claims human property more than double the amount which the whole money of the world could purchase. What can stand before this power? Truth, everlasting truth, will yet overthrow it. This power is aiming to govern the country, its constitutions and laws; but it is not certain of success, tremendous as it is, without foreign or other aid. Let it be borne in mind that the Bank power, some years since, during what has been called the panic session, had influence sufficient in this body, and upon this floor, to prevent the reception of petitions against the action of the Senate on their resolutions of censure against the President. The country took instant alarm, and the political complexion of this body was changed as soon as possible. The same power, though double in means and in strength, is now doing the same thing. This is the array of power that even now is attempting such an unwarrantable course in this country; and the people are also now moving against the slave, as they formerly did against the Bank power. It, too,

begins to tremble for its safety. What is to be done? Why, petitions are received and ordered to be printed, against the right of petitions which are not received, and the whole power of debate is thrown into the scale with the slaveholding power. But all will not do; these two powers must now be united: an amalgamation of the black power of the South with the white power of the North must take place, as either, separately, cannot succeed in the destruction of the liberty of speech and the press, and the right of petition. Let me tell gentlemen, that both united will never succeed; as I said on a former day, God forbid that they should ever rule this country! I have seen this billing and cooing between these different interests for some time past; I informed my private friends of the political party with which I have heretofore acted, during the first week of this session, that these powers were forming a union to overthrow the present administration; and I warned them of the folly and mischief they were doing in their abuse of those who were opposed to slavery. All doubts are now terminated. The display made by the Senator from Kentucky, [Mr. Clay,] and his denunciations of these petitioners as abolitionists, and the hearty response and cordial embrace which his efforts met from the Senator from South Carolina, [Mr. Calhoun,] clearly shows that new moves have taken place on the political chessboard, and new coalitions are formed, new compromises and new bargains, settling and disposing of the rights of the country for the advantage of political aspirants.

The gentleman from South Carolina [Mr. Calhoun] seemed, at the conclusion of the argument made by the Senator from Kentucky, to be filled not only with delight but with ecstasy. He told us, that about twelve months since HE had offered a resolution which turned the tide in favor of the great principle of State rights, and says he is highly pleased with the course taken by the Kentucky Senator. All is now safe by the acts of that Senator. The South is now consolidated as one man; it was a great epoch in our history, but we have now passed it; it is the beginning of a moral revolution; slavery, so far from being a political evil, is a great blessing; both races have been improved by it; and that abolition is now DEAD, and will soon be forgotten. So far the Senator from South Carolina, as I understand him. But, sir, is this really the case? Is the South united as one man, and is the Senator from Kentucky the great centre of attraction? What a lesson to the friends of the present Administration, who have been throwing themselves

into the arms of the southern slave-power for support! The black enchantment I hope is now at an end—the dream dissolved, and we awake into open day. No longer is there any uncertainty or any doubt on this subject. But is the great epoch passed? is it not rather just beginning? Is abolitionism DEAD—or is it just awaking into life? Is the right of petition strangled and forgotten—or is it increasing in strength and force? These are serious questions for the gentleman's consideration, that may damp the ardor of his joy, if examined with an impartial mind, and looked at with an unprejudiced eye. Sir, when these paeans were sung over the death of abolitionists, and, of course, their right to liberty of speech and the press, at least in fancy's eye, we might have seen them lying in heaps upon heaps, like the enemies of the strong man in days of old. But let me bring back the gentleman's mind from this delightful scene of abolition death, to sober realities and solemn facts. I have now lying before me the names of thousands of living witnesses, that slavery has not entirely conquered liberty; that abolitionists (for so are all these petitioners called) are not *all dead*. These are my first proofs to show the gentleman his ideas are all fancy. I have also, sir, since the commencement of this debate, received a newspaper, as if sent by Providence to suit the occasion, and by whom I know not. It is the Cincinnati Republican of the 2d instant, which contains an extract from the Louisville Advertiser, a paper printed in Kentucky, in Louisville, our sister city; and though about one hundred and fifty miles below us, it is but a few hours distant. That paper is the leading Administration journal, too, as I am informed, in Kentucky. Hear what it says on the death of abolition:—

"ABOLITION—CINCINNATI—THE LOUISVILLE ADVERTISER.

"We copy the following notice of an article which we lately published, upon the subject of abolition movements in this quarter, from the Louisville Advertiser:—

"ABOLITION.—The reader is referred to an interesting article which we have copied from the Cincinnati Republican—a paper which lately supported the principles of Democracy; a paper which has *turned*, but not quite far enough to act with the Adamses and Slades in Congress, or the Whig abolitionists of Ohio. It does not, however, give a correct view of the strength of the abolitionists in Cincinnati. There they are in the ascendant.

They control the city elections, regulate what may be termed the morals of the city, give tone to public opinion, and "rule the roast," by virtue of their superior piety and intelligence. The Republican tells us, that they are not laboring Loco Focos—but "drones" and "consumers"—the "rich and well-born," of course; men who have leisure and means, and a disposition to employ the latter, to equalize whites and blacks in the slaveholding States. Even now, the absconding slave is perfectly safe in Cincinnati. We doubt whether an instance can be adduced of the recovery of a runaway in that place in the last four years. When negroes reach "the Queen city" they are protected by its intelligence, its piety, and its wealth. They receive the aid of the *elite* of the Buckeyes; and we have a strong faction in Kentucky, struggling zealously to make her one of the dependencies of Cincinnati! Let our mutual sons go on. The day of mutual retribution is at hand—much nearer than is now imagined. The Republican, which still looks with a friendly eye to the slaveholding States, warns us of the danger which exists, although its new-born zeal for Whiggery prompts it to insist, indirectly, on the right of petitioning Congress to abolish slavery. There are about two hundred and fifty abolition societies in Ohio at the present time, and, from the circular issued at head quarters, Cincinnati, it appears that agents are to be sent through every county to distribute books and pamphlets designed to inflame the public mind, and then organize additional societies—or, rather, form new clans, to aid in the war which has been commenced on the slaveholding States."

I do not, sir, underwrite for the truth of this statement as an entire whole; much of it I repel as an unjust charge on my fellow-citizens of Cincinnati; but, as it comes from a slaveholding State—from the State of the Senator who has so eloquently anathematized abolitionists that it is almost a pity they could not die under such sweet sounds—and as the South Carolina Senator pronounces them dead, I produce this from a slaveholding State, for the special benefit and consolation of the two Senators. It comes from a source to which, I am sure, both gentlemen ought to give credit. But suppose, sir, that abolitionism is dead, is liberty dead also and slavery triumphant? Is liberty of speech, of the press, and the right of petition also dead? True, it has been strangled here; but gentlemen will find themselves in great error if they suppose it also strangled in the country; and the very attempt, in legislative bodies, to sustain a local and individual interest, to

the destruction of our rights, proves that those rights are not dead, but a living principle, which slavery cannot extinguish; and be my lot what it may, I shall, to the utmost of my abilities, under all circumstances, and at all times, contend for that freedom which is the common gift of the Creator to all men, and against the power of these two great interests—the slave power of the South, and banking power of the North—which are now uniting to rule this country. The cotton bale and the bank note have formed an alliance; the credit system with slave labor. These two congenial spirits have at last met and embraced each other, both looking to the same object—to live upon the unrequited labor of others—and have now erected for themselves a common platform, as was intimated during the last session, on which they can meet, and bid defiance, as they hope, to free principles and free labor.

With these introductory remarks, permit me, sir, to say here, and let no one pretend to misunderstand or misrepresent me, that I charge gentlemen, when they use the word abolitionists, they mean petitioners here such as I now present—men who love liberty, and are opposed to slavery—that in behalf of these citizens I speak; and, by whatever name they may be called, it is those who are opposed to slavery whose cause I advocate. I make no war upon the rights of others. I do no act but what is moral, constitutional, and legal, against the peculiar institutions of any State; but acts only in defence of my own rights, of my fellow citizens, and, above all, of my State, I shall not cease while the current of life shall continue to flow.

I shall, Mr. President, in the further consideration of this subject, endeavor to prove, first, the right of the people to petition; second, why slavery is wrong, and why I am opposed to it; third, the power of slavery in this country, and its dangers; next, answer the question, so often asked, what have the free States to do with slavery? Then make some remarks by way of answer to the arguments of the Senator from Kentucky, [Mr. Clay.]

Mr. President, the duty I am requested to perform is one of the highest which a Representative can be called on to discharge. It is to make known to the legislative body the will and the wishes of his constituents and fellow-citizens; and, in the present case, I feel honored by the confidence reposed in me, and proceed to discharge the duty. The petitioners have not trusted to my fallible judgment alone, but have declared, in written

documents, the most solemn expression of their will. It is true these petitions have not been sent here by the whole people of the United States, but from a portion of them only; yet such is the justice of their claim, and the sure foundation upon which it rests, that no portion of the American people, until a day or two past, have thought it either safe or expedient to present counter petitions; and even now, when counter petitions have been presented, they dare not justify slavery, and the selling of men and women in this District, but content themselves with objecting to others enjoying the rights they practise, and praying Congress not to receive or hear petitions from the people of the States—a new device of slave power this, never before thought of or practiced in any country. I would have been gratified if the inventors of this system, which denies to others what they practise themselves, had, in their petition, attempted to justify slavery and the slave trade in the District, if they believe the practice just, that their names might have gone down to posterity. No, sir; very few yet have the moral courage to record their names to such an avowal; and even some of these petitioners are so squeamish on this subject, as to say that they might, from conscientious principles, be prevented from holding slaves. Not so, sir, with the petitioners which I have the honor to represent; they are anxious that their sentiments and their names should be made matter of record; they have no qualms of conscience on this subject; they have deep convictions and a firm belief that slavery is an existing evil, incompatible with the principles of political liberty, at war with our system of government, and extending a baleful and blasting influence over our country, withering and blighting its fairest prospects and brightest hopes. Who has said that these petitions are unjust in principle, and on that ground ought not to be granted? Who has said that slavery is not an evil? Who has said it does not tarnish the fair fame of our country? Who has said it does not bring dissipation and feebleness to one race, and poverty and wretchedness to another, in its train? Who has said, it is not unjust to the slave, and injurious to the happiness and best interest of the master? Who has said it does not break the bonds of human affection, by separating the wife from the husband, and children from their parents? In fine, who has said it is not a blot upon our country's honor, and a deep and foul stain upon her institutions? Few, very few, perhaps none but him who lives upon its labor, regardless of its misery; and even many whose local situations are within its jurisdiction, acknowledge its injustice, and deprecate its continuance; while millions of

freemen deplore its existence, and look forward with strong hope to its final termination. SLAVERY! a word, like a secret idol, thought too obnoxious or sacred to be pronounced here but by those who worship at its shrine—and should one who is not such worshipper happen to pronounce the word, the most disastrous consequences are immediately predicted, the Union is to be dissolved, and the South to take care of itself.

Do not suppose, Mr. President, that I feel as if engaged in a forbidden or improvident act. No such thing. I am contending with a local and "*peculiar*" interest, an interest which has already banded together with a force sufficient to seize upon every avenue by which a petition can enter this chamber, and exclude all without its haven. I am not now contending for the rights of the negro, rights which his Creator gave him and which his fellow-man has usurped or taken away. No, sir! I am contending for the rights of the white person in the free States, and am endeavoring to prevent them from being trodden down and destroyed by that power which claims the black person as *property*. I am endeavoring to sound the alarm to my fellow-citizens that this power, tremendous as it is, is endeavoring to unite itself with the monied power of the country, in order to extend its dominion and perpetuate its existence. I am endeavoring to drive from the back of the *negro slave* the politician who has seated himself there to ride into office for the purpose of carrying out the object of this unholy combination. The chains of slavery are sufficiently strong, without being riveted anew by tinkering politicians of the free States. I feel myself compelled into this contest, in defence of the institutions of my own State, the persons and firesides of her citizens, from the insatiable grasp of the slaveholding power as being used and felt in the free States. To say that I am opposed to slavery in the abstract, are but cold and unmeaning words, if, however capable of any meaning whatever, they may fairly be construed into a love for its existence; and such I sincerely believe to be the feeling of many in the free States who use the phrase. I, sir, am not only opposed to slavery in the abstract, but also in its whole volume, in its theory as well as practice. This principle is deeply implanted within me; it has "grown with my growth and strengthened with my strength." In my infant years I learned to hate slavery. Your fathers taught me it was wrong in their Declaration of Independence: the doctrines which they promulgated to the world, and upon the truth of which they staked the issue of the contest that made us a nation. They

proclaimed "that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that amongst these are life, liberty, and the pursuit of happiness." These truths are solemnly declared by them. I believed then, and believe now, they are self-evident. Who can acknowledge this, and not be opposed to slavery? It is, then, because I love the principles which brought your government into existence, and which have become the corner stone of the building supporting you, sir, in that chair, and giving to myself and other Senators seats in this body—it is because I love all this, that I hate slavery. Is it because I contend for the right of petition, and am opposed to slavery, that I have been denounced by many as an abolitionist? Yes; Virginia newspapers have so denounced me, and called upon the Legislature of my State to dismiss me from public confidence. Who taught me to hate slavery, and every other oppression? *Jefferson*, the great and the good Jefferson! Yes, *Virginia Senators*, it was your own Jefferson, Virginia's favorite son, a man who did more for the natural liberty of man, and the civil liberty of his country, than any man that ever lived in our country; it was him who taught me to hate slavery; it was in his school I was brought up. That Mr. Jefferson was as much opposed to slavery as any man that ever lived in our country, there can be no doubt; his life and his writings abundantly prove the fact. I hold in my hand a copy, as he penned it, of the original draft of the Declaration of Independence, a part of which was stricken out, as he says, in compliance with the wishes of South Carolina and Georgia. I will read it. Speaking of the wrongs done us by the British Government, in introducing slaves among us, he says: "He (the British King) has waged cruel war against human nature itself, violating its most sacred right of life and liberty in the persons of a distant people, who never offended him, captivating and carrying them into SLAVERY in another hemisphere, or to incur miserable death in their transportation thither. This piratical warfare, the opprobrium of infidel powers, is the warfare of the Christian King of Great Britain. Determined to keep open a market where MEN should be BOUGHT and SOLD, he has prostituted his prerogative for suppressing every legislative attempt to prohibit or restrain execrable commerce, and that this assemblage of horrors might want no fact of distinguished die, he is now exciting those very people to rise in arms against us, and purchase that liberty of which he has deprived them by murdering the people on whom he has also obtruded them, thus paying off former crimes committed against the liberties of one

people with crimes which he urges them to commit against the lives of another." Thus far this great statesman and philanthropist. Had his contemporaries been ruled by his opinions, the country had now been at rest on this exciting topic. What abolitionist, sir, has used stronger language against slavery than Mr. Jefferson has done? "Cruel war against human nature," "violating its most sacred rights," "piratical warfare," "opprobrium of infidel powers," "a market where men should be bought and sold," "execrable commerce," "assemblage of horrors," "crimes committed against the liberty of the people," are the brands which Mr. Jefferson has burned into the forehead of slavery and the slave trade. When, sir, have I, or any other person opposed to slavery, spoken in stronger and more opprobrious terms of slavery, than this? You have caused the bust of this great man to be placed in the centre of your Capitol; in that conspicuous part where every visitor must see it, with its hand resting on the Declaration of Independence, engraved upon marble. Why have you done this? Is it not mockery? Or is it to remind us continually of the wickedness and danger of slavery? I never pass that statue without new and increased veneration for the man it represents, and increased repugnance and sorrow that he did not succeed in driving slavery entirely from the country. Sir, if I am an abolitionist, Jefferson made me so; and I only regret that the disciple should be so far behind the master, both in doctrine and practice. But, sir, other reasons and other causes have combined to fix and establish my principles in this matter, never, I trust, to be shaken. A free State was the place of my birth; a free Territory the theatre of my juvenile actions. Ohio is my country, endeared to me by every fond recollection. She gave me political existence, and taught me in her political school; and I should be worse than an unnatural son did I forget or disobey her precepts. In her Constitution it is declared, "That all men are born equally free and independent," and "that there shall be neither slavery nor involuntary servitude in the State, otherwise than for the punishment of crimes." Shall I stand up for slavery in any case, condemned as it is by such high authority as this? No, never! But this is not all, Indiana, our younger Western sister, endeared to us by every social and political tie, a State formed in the same country as Ohio, from whose territory slavery was forever excluded by the ordinance of July, 1787—she too, has declared her abhorrence of slavery in more strong and empathic terms than we have done. In her constitution, after prohibiting slavery, or involuntary servitude, being introduced into the State, she

declares, "But as to the holding any part of the human creation in slavery, or involuntary servitude, can originate only in *tyranny* and *usurpation*, no alteration of her constitution should ever take place, so as to introduce slavery or involuntary servitude into the State, otherwise than for the punishment of crimes whereof the party had been duly convicted." Illinois and Michigan also formed their constitutions on the same principles. After such a cloud of witnesses against slavery, and whose testimony is so clear and explicit, as a citizen of Ohio, I should be recreant to every principle of honor and of justice, to be found the apologist or advocate of slavery in any State, or in any country whatever. No, I cannot be so inconsistent as to say I am opposed to slavery in the *abstract*, in its separation from a human being, and still lend my aid to build it up, and make it perpetual in its operation and effects upon *man* in this or any other country. I also, in early life, saw a slave kneel before his master, and hold up his hands with as much apparent submission, humility, and adoration, as a man would have done before his Maker, while his master with out-stretched rod stood over him. This, I thought, is slavery; one man subjected to the will and power of another, and the laws affording him no protection, and he has to beg pardon of man, because he has offended man, (not the laws,) as if his master were a superior and all powerful being. Yes, this is slavery, boasted American slavery, without which, it is contended even here, that the union of these States would be dissolved in a day, yes, even in an hour! Humiliating thought, that we are bound together as States by the chains of slavery! It cannot be—the blood and the tears of slavery form no part of the cement of our Union—and it is hoped that by falling on its bands they may never corrode and eat them asunder. We who are opposed to and deplore the existence of slavery in our country, are frequently asked, both in public and private, what have you to do with slavery? It does not exist in your State; it does not disturb you! Ah, sir, would to God it were so—that we had nothing to do with slavery, nothing to fear from its power, or its action within our own borders, that its name and its miseries were unknown to us. But this is not our lot; we live upon its borders, and in hearing of its cries; yet we are unwilling to acknowledge, that if we enter its territories and violate its laws, that we should be punished at its pleasure. We do not complain of this, though it might well be considered just ground of complaint. It is our firesides, our rights, our privileges, the safety of our friends, as well as the sovereignty and independence of our State, that we are now called upon to

protect and defend. The slave interest has at this moment the whole power of the country in its hands. It claims the President as a Northern man with Southern feelings, thus making the Chief Magistrate the head of an interest, or a party, and not of the country and the people at large. It has the cabinet of the President, three members of which are from the slave States, and one who wrote a book in favor of Southern slavery, but which fell dead from the press, a book which I have seen, in my own family, thrown musty upon the shelf. Here then is a decided majority in favor of the slave interest. It has five out of nine judges of the Supreme Court; here, also, is a majority from the slave States. It has, with the President of the Senate, and the Speaker of the House of Representatives, and the Clerks of both Houses, the army and the navy; and the bureaus, have, I am told, about the same proportion. One would suppose that, with all this power operating in this Government, it would be content to *permit*—yes I will use the word *permit*—it would be content to permit us, who live in the free States, to enjoy our firesides and our homes in quietness; but this is not the case. The slaveholders and slave laws claim that as property, which the free States know only as persons, a reasoning property, which, of its own will and mere motion, is frequently found in our States; and upon which THING we sometimes bestow food and raiment, if it appear hungry and perishing, believing it to be a human being; this perhaps is owing to our want of vision to discover the process by which a man is converted into a THING. For this act of ours, which is not prohibited by our laws, but prompted by every feeling, Christian and humane, the slaveholding power enters our territory, tramples under foot the sovereignty of our State, violates the sanctity of private residence, seizes our citizens, and disregarding the authority of our laws, transports them into its own jurisdiction, casts them into prison, confines them in fetters, and loads them with chains, for pretended offences against their own laws, found by willing grand juries upon the oath (to use the language of the late Governor of Ohio) of a perjured villain. Is this fancy, or is it fact, sober reality, solemn fact? Need I say all this, and much more, as now matter of history in the case of the Rev. John B. Mahan, of Brown county, Ohio? Yes, it is so; but this is but the beginning—a case of equal outrage has lately occurred, if newspapers are to be relied on, in the seizure of a citizen of Ohio, without even the forms of law, and who was carried into Virginia and shamefully punished by tar and feathers, and other disgraceful means, and rode upon a rail, according to the order of Judge Lynch, and this, only

because in Ohio he was an abolitionist. Would I could stop here—but I cannot. This slave interest or power seizes upon persons of color in our States, carries them into States where men are property, and makes merchandize of them, sometimes under sanction of law, but more properly by its abuse, and sometimes by mere personal force, thus disturbing our quiet and harassing our citizens. A case of this kind has lately occurred, where a colored boy was seduced from Ohio into Indiana, taken from thence into Alabama and sold as a slave; and to the honor of the slave States, and gentlemen who administer the laws there, be it said, that many who have thus been taken and sold by the connivance, if not downright corruption, of citizens in the free States, have been liberated and adjudged free in the States where they have been sold, as was the case of the boy mentioned, who was sold in Alabama.

Slave power is seeking to establish itself in every State, in defiance of the constitution and laws of the States within which it is prohibited. In order to secure its power beyond the reach of the States, it claims its parentage from the Constitution of the United States. It demands of us total silence as to its proceedings, denies to our citizens the liberty of speech and the press, and punishes them by mobs and violence for the exercise of these rights. It has sent its agents into the free States for the purpose of influencing their Legislatures to pass laws for the security of its power within such State, and for the enacting new offences and new punishments for their own citizens, so as to give additional security to its interest. It demands to be heard in its own person in the hall of our Legislature, and mingle in debate there. Sir, in every stage of these oppressions and abuses, permit me to say, in the language of the Declaration of Independence—and no language could be more appropriate—we have petitioned for redress in the most humble terms, and our repeated petitions have been answered by repeated injury. A power, whose character is marked by every act which may define a tyrant, is unfit to rule over a free people. In our sufferings and our wrongs we have besought our fellow-citizens to aid us in the preservation of our constitutional rights, but, influenced by the love of gain or arbitrary power, they have sometimes disregarded all the sacred rights of man, and answered in violence, burnings, and murder. After all these transactions, which are now of public notoriety and matter of record, shall we of the free States tauntingly be asked what we have to do with slavery? We should rejoice,

indeed, if the evils of slavery were removed far from us, that it could be said with truth, that we have nothing to do with slavery. Our citizens have not entered its territories for the purpose of obstructing its laws, nor do we wish to do so, nor would we justify any individual in such act; yet we have been branded and stigmatized by its friends and advocates, both in the free and slave States, as incendiaries, fanatics, disorganizers, enemies to our country, and as wishing to dissolve the Union. We have borne all this without complaint or resistance, and only ask to be secure in our persons, by our own firesides, and in the free exercise of our thoughts and opinions in speaking, writing, printing and publishing on the subject of slavery, that which appears to us to be just and right; because we all know the power of truth, and that it will ultimately prevail, in despite of all opposition. But in the exercise of all these rights, we acknowledge subjection to the laws of the State in which we are, and our liability for their abuse. We wish peace with all men; and that the most amicable relations and free intercourse may exist between the citizens of our State and our neighboring slaveholding States; we will not enter their States, either in our proper persons, or by commissioners, legislative resolutions, or otherwise, to interfere with their slave policy or slave laws; and we shall expect from them and their citizens a like return, that they do not enter our territories for the purpose of violating our laws in the punishment of our people for the exercise of their undoubted rights—the liberty of speech and of the press on the subject of slavery. We ask that no man shall be seized and transported beyond our State, in violation of our own laws, and that we shall not be carried into and imprisoned in another State for acts done in our own. We contend that the slaveholding power is properly chargeable with all the riots and disorders which take place on account of slavery. We can live in peace with all our sister States; if that power will be controlled by law, each can exercise and enjoy the full benefits secured by their own laws; and this is all we ask. If we hold up slavery to the view of an impartial public as it is, and if such view creates astonishment and indignation, surely we are not to be charged as libellers. A State institution ought to be considered the pride, not the shame of the State; and if we falsify such institutions, the disgrace is ours, not theirs. If slavery, however, is a blemish, a blot, an eating cancer in the body politic, it is not our fault if, by holding it up, others should see in the mirror of truth its deformity, and shrink back from the view. We have not, and we intend not, to use any weapons against slavery, but the moral power

of truth and the force of public opinion. If we enter the slave States, and tamper with the slave contrary to law, punish us, we deserve it; and if a slaveholder is found in a free State, and is guilty of a breach of the law there, he also ought to be punished. These petitioners, as far as I understand them, disclaim all right to enter a slave State for the purpose of intercourse with the slave. It is the master whom they wish to address; and they ask and ought to receive protection from the laws, as they are willing to be judged by the laws. We invite into the arena of public discussion in our State the slaveholder; we are willing to hear his reasons and facts in favor of slavery, or against abolitionists: we do not fear his errors while we are ourselves free to combat them. The angry feelings which in some degree exist between the citizens of the free and slaveholding States, on account of slavery, are, in many cases, properly chargeable to those who defend and support slavery. Attempts are almost daily making to force the execution of slave laws in the free States; at least, their power and principles: and no term is too reproachful to be applied to those who resist such acts, and contend for the rights secured to every man under their own laws. We are often reminded that we ought to take color as evidence of property in a human being. We do not believe in such evidence, nor do we believe that a man can justly be made property by human laws. We acknowledge, however, that a *man*, not a *thing* may be held to service or labor under the laws of a State, and, if he escape into another State, he ought to be delivered up on claim of the party to whom such labor or service may be due; that this delivery ought to be in pursuance of the laws of the State where such person is found, and not by virtue of any act of Congress.

This brings me, Mr. President, to the consideration of the petition presented by the Senator from Kentucky, and to an examination of the views he has presented to the Senate on this highly important subject. Sir, I feel, I sensibly feel my inadequacy in entering into a controversy with that old and veteran Senator; but nothing high or low shall prevent me from an honest discharge of my duty here. If imperfectly done, it may be ascribed to the want of ability, not intention. If the power of my mind, and the strength of my body, were equal to the task, I would arouse every man, yes, every woman and child in the country, to the danger which besets them, if such doctrines and views as are presented by the Senator should ever be carried into effect. His denunciations are against abolitionists, and under that term

are classed all those who petition Congress on the subject of slavery. Such I understand to be his argument, and as such I shall treat it. I, in the first place, put in a broad denial to all his general facts, charging this portion of my fellow citizens with improper motives or dangerous designs. That their acts are lawful he does not pretend to deny. I called for proof to sustain his charges. None such has been offered, and none such exists, or can be found. I repel them as calumnies double-distilled in the alembic of slavery. I deny them, also, in the particulars and inferences; and let us see upon what ground they rest, or by what process of reasoning they are sustained.

The very first view of these petitioners against our right of petition strikes the mind that more is intended than at first meets the eye. Why was the committee on the District overlooked in this case, and the Senator from Kentucky made the organ of communication? Is it understood that anti-abolitionism is a passport to popular favor, and that the action of this District shall present for that favor to the public a gentleman upon this hobby? Is this petition presented as a subject of fair legislation? Was it solicited by members of Congress, from citizens here, for political effect? Let the country judge. The petitioners state that no persons but themselves are authorized to interfere with slavery in the District; that Congress are their own Legislature; and the question of slavery in the District is only between them and their constituted legislators; and they protest against all interference of others. But, sir, as if ashamed of this open position in favor of slavery, they, in a very coy manner, say that some of them are not slaveholders, and might be forbidden by conscience to hold slaves. There is more dictation, more political heresy, more dangerous doctrine contained in this petition, than I have ever before seen couched together in so many words. We! Congress their OWN Legislature in all that concerns this District! Let those who may put on the city livery, and legislate for them and not for his constituents, do so; for myself, I came here with a different view, and for different purposes. I came a free man, to represent the people of Ohio; and I intend to leave this as such representative, without wearing any other livery. Why talk about executive usurpation and influence over the members of Congress? I have always viewed this District influence as far more dangerous than that of any other power. It has been able to extort, yes, extort from Congress, millions to pay District debts, make District improvements, and in support of the civil and criminal jurisprudence of the

District. Pray, sir, what right has Congress to pay the corporate debts of the cities in the District more than the Debts of the corporate cities in your State and mine? None, sir. Yet this has been done to a vast amount; and the next step is, that we, who pay all this, shall not be permitted to petition Congress on the subject of their institutions, for, if we can be prevented in one case, we can in all possible cases. Mark, sir, how plain a tale will silence these petitioners. If slavery in the District concerns only the inhabitants and Congress, so does all municipal regulations. Should they extend to granting lottery, gaming-houses, tippling-houses, and other places calculated to promote and encourage vice—should a representative in Congress be instructed by his constituents to use his influence, and vote against such establishments, and the people of the District should instruct him to vote for them, which should he obey? To state the question is to answer it; otherwise the boasted right of instruction by the constituent body is "mere sound," signifying nothing. Sir, the inhabitants of this district are subject to state legislation and state policy; they cannot complain of this, for their condition is voluntary; and as this city is the focus of power, of influence, and considered also as that of fashion, if not of folly, and as the streams which flow from here irradiate the whole country, it is right, it is proper, that it should be subject to state policy and state power, and not used as a leaven to ferment and corrupt the whole body politic.

The honorable Senator has said the petition, though from a city, is the fair expression of the opinion of the District. As such I treated it, am willing to acknowledge the respectability of the petitioners and their rights, and I claim for the people of my own state equal respectability and equal rights that the people of the District are entitled to: any peculiar rights and advantages I cannot admit.

I agree with the Senator, that the proceedings on abolition petitions, heretofore, have not been the most wise and prudent course. They ought to have been referred and acted on. Such was my object, a day or two since, when I laid on your table a resolution to refer them to a committee for inquiry. You did not suffer it, sir, to be printed. The country and posterity will judge between the people whom I represent and those who caused to be printed the petition from the city. It cannot be possible that justice can have been done in both cases. The exclusive legislation of Congress over the District is as much the act of the constituent body, as the general legislation

of Congress over the States, and to the operation of this act have the people within the District submitted themselves. I cannot, however, join the Senator that the majority, in refusing to receive and refer petitions, did not intend to destroy or impair the right in this particular. They certainly have done so.

The Senator admits the abolitionists are now formidable; that something must be done to produce harmony. Yes, sir, do justice, and harmony will be restored. Act impartially, that justice may be done: hear petitions on both sides, if they are offered, and give righteous judgments, and your people will be satisfied. You cannot compromise them out of their rights, nor lull them to sleep with fallacies in the shape of reports. You cannot conquer them by rebuke, nor deceive them by sophistry. Remember you cannot now turn public opinion, nor can you overthrow it. You must, and you will, abandon the high ground you have taken, and receive petitions. The reason of the case, the argument and the judgment of the people, are all against you. One in this cause can "chase a thousand," and the voice of justice will be heard whenever you agitate the subject. In Indiana, the right to petition has been most nobly advocated in a protest, by a member, against some puny resolutions of the Legislature of that State to whitewash slavery. Permit me to read a paragraph, worthy an American freeman:

"But who would have thought until lately, that any would have doubted the right to petition in a respectful manner to Congress? Who would have believed, that Congress had any authority to refuse to consider the petitions of the people? Such a step would overthrow the autocrat of Russia, or cost the Grand Seignior of Constantinople his head. Can it be possible, therefore, that it has been reserved for a republican Government, in a land boasting of its free institutions, to set the first precedent of this kind? Our city councils, our courts of justice, every department of Government are approached by petition, however unanswerable, or absurd, so that its terms are respectful. None go away unread, or unheard. The life of every individual is a perfect illustration of the subject of petitioning. Petition is the language of want, of pain, of sorrow, of man in all his sad variety of woes, imploring relief, at the hand of some power superior to himself. Petitioning is the foundation of all government, and of all administrations of law. Yet it has been reserved for our Congress, seconded indirectly by the vote of this Legislature, to question this right, hitherto supposed to be so

old, so heaven-deeded, so undoubted, that our fathers did not think it necessary to place a guaranty of it in the first draft of the Federal Constitution. Yet this sacred right has been, at one blow, driven, destroyed, and trodden under the feet of slavery. The old bulwarks of our Federal and State Constitutions seem utterly to have been forgotten, which declare, 'that the freedom of speech and the press shall not be abridged, nor the right of the people peaceably to assemble and *petition* for the redress of their grievances.'"

These, sir, are the sentiments which make abolitionists formidable, and set at nought all your councils for their overthrow. The honorable Senator not only admits that abolitionists are formidable, but that they consist of three classes. The friends of humanity and justice, or those actuated by those principles, compose one class. These form a very numerous class, and the acknowledgment of the Senator proves the immutable principles upon which opposition to slavery rests. Men are opposed to it from principles of humanity and justice—men are abolitionists, he admits, on that account. We thank the Senator for teaching us that word, we intend to improve it. The next class of abolitionists, the Senator says, are so, apparently, for the purpose of advocating the right of petition. What are we to understand from this? That the right of petition needs advocacy. Who has denied this right, or who has attempted to abridge it? The slaveholding power, that power which avoids open discussion, and the free exercise of opinion; it is that power alone which renders the advocacy of the right of petition necessary, having seized upon all the powers of the Government. It is fast uniting together those opposed to its iron rule, no matter to what political party they have heretofore belonged; they are uniting with the first class, and act from principles of humanity and justice; and if the mists and shades of slavery were not the atmosphere in which gentlemen were enveloped, they would see constant and increasing numbers of our most worthy and intelligent citizens attaching themselves to the two classes mentioned, and rallying under the banners of abolitionism. They are compelled to go there, if the gentleman will have it so, in order to defend and perpetuate the liberties of the country. The hopes of the oppressed spring up afresh from this discussion of the gentleman. The third class, the Senator says, are those who, to accomplish their ends, act without regard to consequences. To them, all the rights of property, of the States, of the Union, the Senator says,

are nothing. He says they aim at other objects than those they profess—emancipation in the District of Columbia. No, says the Senator, their object is *universal emancipation*, not only in the District, but in the Territories and in the States. Their object is to set free three millions of negro slaves. Who made the Senator, in his place here, the censor of his fellow citizens? Who authorized him to charge them with other objects than those they profess? How long is it since the Senator himself, on this floor, denounced slavery as an evil? What other inducements or object had he then in view? Suppose universal emancipation to be the object of these petitioners; is it not a noble and praiseworthy object; worthy of the Christian, the philanthropist, the statesman, and the citizen? But the Senator says, they (the petitioners) aim to excite one portion of the country against another. I deny, sir, this charge, and call for the proof; it is gratuitous, uncalled for, and unjust towards my fellow citizens. This is the language of a stricken conscience, seeking for the palliation of its own acts by charging guilt upon others. It is the language of those who, failing in argument, endeavor to cast suspicion upon the character of their opponents, in order to draw public attention from themselves. It is the language of disguise and concealment, and not that of fair and honorable investigation, the object of which is truth. I again put in a broad denial to this charge, that any portion of these petitioners, whom I represent, seek to excite one portion of the country against another; and without proof I cannot admit that the assertion of the honorable Senator establishes the fact. It is but opinion, and naked assertion only. The Senator complains that the means and views of the abolitionists are not confined to securing the right of petition only; no, they resort to other means, he affirms, to the BALLOT BOX; and if that fail, says the Senator, their next appeal will be to the bayonet. Sir, no man, who is an American in feeling and in heart, but ought to repel this charge instantly, and without any reservation whatever, that if they fail at the ballot box they will resort to the bayonet. If such a fratricidal course should ever be thought of in our country, it will not be by those who seek redress of wrongs, by exercising the right of petition, but by those only who deny that right to others, and seek to usurp the whole power of the Government. If the ballot box fail them, the bayonet may be their resort, as mobs and violence now are. Does the Senator believe that any portion of the honest yeomanry of the country entertain such thoughts? I hope he does not. If thoughts of this kind exist, they are to be found in the hearts of aspirants to office, and their adherents,

and none others. Who, sir, is making this question a political affair? Not the petitioners. It was the slaveholding power which first made this move. I have noticed for some time past that many of the public prints in this city, as well as elsewhere, have been filled with essays against abolitionists for exercising the rights of freemen.

Both political parties, however, have courted them in private and denounced them in public, and both have equally deceived them. And who shall dare say that an abolitionist has no right to carry his principles to the *ballot box*? *Who fears the ballot box*? The honest in heart, the lover of our country and its institutions? No, sir! It is feared by the tyrant; he who usurps power, and seizes upon the liberty of others; he, for one, fears the ballot box. Where is the slave to party in this country who is so lost to his own dignity, or so corrupted by interest or power, that he does not, or will not, carry his principles and his judgment into the ballot box? Such an one ought to have the mark of Cain in his forehead, and sent to labor among the negro slaves of the South. The honorable Senator seems anxious to take under his care the ballot box, as he has the slave system of the country, and direct who shall or who shall not use it for the redress of what they deem a political grievance. Suppose the power of the Executive chair should take under its care the right of voting, and who should proscribe any portion of our citizens who should carry with them to the polls of election their own opinions, creeds, and doctrines. This would at once be a deathblow to our liberties, and the remedy could only be found in revolution. There can be no excuse or pretext for revolution while the ballot box is free. Our Government is not one of force, but of principle; its foundation rests on public opinion, and its hope is in the morality of the nation. The moral power of that of the ballot box is sufficient to correct all abuses. Let me, then, proclaim here, from this high arena, to the citizens not only of my own State, but to the country, to all sects and parties who are entitled to the right of suffrage, To THE BALLOT BOX! carry with you honestly your own sentiments respecting the welfare of your country, and make them operate as effectually as you can, through that medium, upon its policy and for its prosperity. Fear not the frowns of power. It trembles while it denounces you. The Senator complains that the abolitionists have associated with the politics of the country. So far as I am capable of judging, this charge is not well founded; many politicians of the country have used abolitionists as

stepping stones to mount into power; and, when there, have turned about and traduced them. He admits that political parties are willing to unite with them any class of men, in order to carry their purposes. Are abolitionists, then, to blame if they pursue the same course? It seems the Senator is willing that his party should make use of even abolitionists; but he is not willing that abolitionists should use the same party for their purpose. This seems not to be in accordance with that equality of rights about which we heard so much at the last session. Abolitionists have nothing to fear. If public opinion should be for them, politicians will be around and amongst them as the locusts of Egypt. The Senator seems to admit that, if the abolitionists are joined to either party, there is danger—danger of what? That humanity and justice will prevail? that the right of petition will be secured to ALL EQUALLY? and that the long lost and trodden African race will be restored to their natural rights? Would the Senator regret to see this accomplished by argument, persuasion, and the force of an enlightened public opinion? I hope not; and these petitioners ask the use of no other weapons in this warfare.

These ultra-abolitionists, says the Senator, invoke the power of this government to their aid. And pray, sir, what power should they invoke? Have they not the same right to approach this government as other men? Is the Senator or this body authorized to deny them any privileges secured to other citizens? If so, let him show me the charter of his power and I will be silent. Until he can do this, I shall uphold, justify, and sustain them, as I do other citizens. The exercise of power by Congress in behalf of the slaves within this District, the Senator seems to think, no one without the District has the least claim to ask for. It is because I reside without the District, and am called within it by the Constitution, that I object to the existence of slavery here. I deny the gentleman's position, then, on this point. On this then, we are equal. The Senator, however, is at war with himself. He contends the object of the cession by the States of Virginia and Maryland, was to establish a seat of Government *only*, and to give Congress whatever power was necessary to render the District a valuable and comfortable situation for that purpose, and that Congress have full power to do whatever is necessary for this District; and if to abolish slavery be necessary, to attain the object, Congress have power to abolish slavery in the District. I am sure I quote the gentleman substantially; and I thank him for this precious

confession in his argument; it is what I believe, and I know it is all I feel disposed to ask. If we can, then, prove that this District is not as comfortable and convenient a place for the deliberations of Congress, and the comfort of our citizens who may visit it, while slavery exists here, as it would be without slavery, then slavery ought to be abolished; and I trust we shall have the distinguished Senator from Kentucky to aid us in this great national reformation. I take the Senator at his word. I agree with him that this ought to be such a place as he has described; but I deny that it is so. And upon what facts do I rest my denial? We are a Christian nation, a moral and religious people. I speak for the free States, at least for my own State; and what a contrast do the very streets of your capital daily present to the Christianity and morality of the nation? A race of slaves, or at least colored persons, of every hue from the jet black African, in regular gradation, up to the almost pure Anglo-Saxon color. During the short time official duty has called me here, I have seen the really red haired, the freckled, and the almost white negro; and I have been astonished at the numbers of the mixed race, when compared with those of full color, and I have deeply deplored this stain upon our national morals; and the words of Dr. Channing have, thousands of times, been impressed on my mind, that "a slave country reeks with licentiousness." How comes this amalgamation of the races? It comes from slavery. It is a disagreeable annoyance to persons who come from the free States, especially to their Christian and moral feelings. It is a great hindrance to the proper discharge of their duties while here. Remove slavery from this District, and this evil will disappear. We argue this circumstance alone as sufficient cause to produce that effect. But slavery presents within the District other and still more appalling scenes—scenes well calculated to awaken the deepest emotions of the human heart. The slave-trade exists here in all its HORRORS, and unwhipt of all its crimes. In view of the very chair which you now occupy, Mr. President, if the massy walls of this building, did not prevent it, you could see the prison, the *pen*, the HELL, where human beings, when purchased for sale, are kept until a cargo can be procured for transportation to a Southern or foreign market, for I have little doubt slaves are carried to Texas for sale, though I do not know the fact.

Sir, since Congress have been in session, a mournful group of these unhappy beings, some thirty or forty, were marched, as if in derision of

members of Congress, in view of your Capitol, chained and manacled together, in open day-light, yes, in the very face of heaven itself, to be shipped at Baltimore for a foreign market. I did not witness this cruel transaction, but speak from what I have heard and believe. Is this District, then, a fit place for our deliberations, whose feelings are outraged with impunity with transactions like this? Suppose, sir, that mournful and degrading spectacle was at this moment exhibited under the windows of our chamber, do you think the Senate could deliberate, could continue with that composure and attention which I see around me? No, sir; all your powers could not preserve order for a moment. The feelings of humanity would overcome those of regard for the peculiar institutions of the States; and though we would be politically and legally bound not to interfere, we are not morally bound to withhold our sympathy and our execration in witnessing such inhuman traffic. This traffic alone, in this District, renders it an uncomfortable and unfit place for your seat of Government. Sir, it is but one or two years since I saw standing at the railroad depot, as I passed from my boarding house to this chamber, some large wagons and teams, as if waiting for freight; the cars had not then arrived. I was inquired of, when I returned to my lodgings, by my landlady, if I knew the object of those wagons which I saw in the morning. I replied, I did not; I suppose they came and were waiting for loading. "Yes, for slaves," said she; "and one of those wagons was filled with little boys and little girls, who had been bought up through the country, and were to be taken to a southern market. Ah, sir!" continued she, "it made my very heart ache to see them." The very recital unnerved and unfitted me for thought or reflection on any other subject for some time. It is scenes like this, of which ladies of my country and my state complained in their petitions, some time since, as rendering this District unpleasant, should they visit the capital of the nation as wives, sisters, daughters, or friends of members of Congress. Yet, sir, these respectable females were treated here with contemptuous sneers; they were compared, on this floor, to the fish-women of Paris, who dipped their fingers in the blood of revolutionary France. Sir, if the transaction in slaves here, which I have mentioned, could make such an impression on the heart of a lady, a resident of the District, one who had been used to slaves, and was probably an owner, what would be the feelings of ladies from free states on beholding a like transaction? I will leave every gentleman and every lady to answer for themselves. I am unable to describe it. Shall the

capital of your country longer exhibit scenes so revolting to humanity, that the ladies of your country cannot visit it without disgust? No; wipe off the foul stain, and let it become a suitable and comfortable place for the seat of Government. The Senator, as if conscious that his argument on this point had proved too much, and of course had proven the converse of what he wished to establish, concluded this part by saying, that if slavery is abolished, the act ought to be confined to the city alone. We thank him for this small sprinkling of correct opinion upon this arid waste of public feeling. Liberty may yet vegetate and grow even here.

The Senator insists that the States of Virginia and Maryland would never have ceded this District if they had have thought slavery would ever have been abolished in it. This is an old story twice told. It was never, however, thought of, until the slave power imagined it, for its own security. Let the States ask a retrocession of the District, and I am sure the free States will rejoice to make the grant.

The Senator condemns the abolitionists for desiring that slavery should not exist in the Territories, even in Florida. He insists that, by the treaty, the inhabitants of that country have the right to remove their EFFECTS when they please; and that, by this condition, they have the right to retain their slaves as effects, independently of the power of Congress. I am no diplomatist, sir, but I venture to deny the conclusion of the Senator's argument. In all our intercourse with foreign nations, in all our treaties in which the words "goods, effects," &c. are used, slaves have never been considered as included. In all cases in which slaves are the subject matter of controversy, they are specially named by the word "slaves; and, if I remember rightly, it has been decided in Congress, that slaves are not property for which a compensation shall be made when taken for public use, (or rather, slaves cannot be considered as taken for public use,) or as property by the enemy, when they are in the service of the United States. If I am correct, as I believe I am, in the positions I have assumed, the gentleman can say nothing, by this part of his argument, against abolitionists, for asking that slavery shall not exist in Florida."

The gentleman contends that the power to remove slaves from one State to another, for sale, is found in that part of the Constitution which gives Congress the power to regulate commerce within the States, &c. This

argument is *non sequiter*, unless the honorable Senator can first prove that slaves are proper articles for commerce. We say that Congress have power over slaves only as persons. The United States can protect persons, *but cannot make them property*, and they have full power in regulating commerce, and can, in such regulations, prohibit from its operations every thing but property; property made so by the laws of nature, and not by any municipal regulations. The dominion of man over things, as property, was settled by his Creator when man was first placed upon the earth. He was to subdue the earth, and have dominion over the fish of the sea, the fowls of the air, and over every living thing that moveth upon the earth; every herb bearing seed, and the fruit of a tree yielding seed, was given for his use. This is the foundation of all right in property of every description. It is for the use of man the grant is made, and of course man cannot be included in the grant. Every municipal regulation, then, of any State, or any of its peculiar institutions, which makes man property, is a violation of this great law of nature, and is founded in usurpation and tyranny, and is accomplished by force, fraud, or an abuse of power. It is a violation of the principles of truth and justice, in subjecting the weaker to the stronger man. In a Christian nation such property can form no just ground for commercial regulations, but ought to be strictly prohibited. I therefore believe it is the duty of Congress, by virtue of this power, to regulate commerce, to prohibit, at once, slaves being used as articles of trade.

The gentleman says, the Constitution left the subject of slavery entirely to the States. To this position I assent; and, as the States cannot regulate their own commerce, but the same being the right of Congress, that body cannot make slaves an article of commerce, because slavery is left entirely to the States in which it exists; and slaves within those States, according to the gentleman, are excluded from the power of Congress. Can Congress, in regulating commerce among the several States, authorize the transportation of articles from one State, and their sale in another, which they have not power so to authorize in any State? I cannot believe in such doctrine; and I now solemnly protest against the power of Congress to authorize the transportation to, and the sale in, Ohio, of any negro slave whatever, or for any possible purpose under the sun. Who is there in Ohio, or elsewhere, that will dare deny this position? If Ohio contains such a recreant to her constitution and policy, I hope he may have the boldness to stand forth and

avow it. If the States in which slavery exists love it as a household god, let them keep it there, and not call upon us in the free States to offer incense to their idol. We do not seek to touch it with unhallowed hands, but with pure hands, upraised in the cause of truth and suffering humanity.

The gentleman admits that, at the formation of our Government, it was feared that slavery might eventually divide or distract our country; and, as the BALLOT BOX seems continually to haunt his imagination, he says there is real danger of dissolution of the Union if abolitionists, as is evident they do, will carry their principles into the BALLOT BOX. If not disunion in fact, at least in feeling, in the country, which is always the precursor to the clash of arms. And the gentleman further says we are taught by holy writ, "that the race is not to the swift, nor the battle to the strong." The moral of the gentleman's argument is, that truth and righteousness will prevail, though opposed by power and influence; that abolitionists, though few in number, are greatly to be feared; one, as I have said, may chase a thousand, and two put ten thousand to flight; and, as their weapons of warfare are not "carnal, but mighty to the pulling down of strong holds," even slavery itself; and as the ballot box is the great moral lever in political action, the gentleman would exclude abolitionists entirely from its use, and for opinion's sake, deny them this high privilege of every American citizen. Permit me, sir, to remind the gentleman of another text of holy writ. "The wicked flee when no man pursueth, but the righteous are bold as a lion." The Senator says that those who have slaves, are sometimes supposed to be under too much alarm. Does this prove the application of the text I have just quoted: "Conscience sometimes makes cowards of us all." The Senator appeals to abolitionists, and beseeches them to cease their efforts on the subject of slavery, if they wish, says he, "to exercise their benevolence." What! Abolitionists benevolent! He hopes they will select some object not so terrible. Oh, sir, he is willing they should pay tithes of "mint and rue," but the weightier matters of the law, judgment and mercy, he would have them entirely overlook. I ought to thank the Senator for introducing holy writ into this debate, and inform him his arguments are not the sentiments of Him, who, when on earth, went about doing good.

The Senator further entreats the clergy to desist from their efforts in behalf of abolitionism. Who authorized the Senator, as a politician, to use his influence to point out to the clergy what they should preach, or for what

they should pray? Would the Senator dare exert his power here to bind the consciences of men? By what rule of ethics, then, does he undertake to use his influence, from this high place of power, in order to gain the same object, I am at a loss to determine. Sir, this movement of the Senator is far more censurable and dangerous, as an attempt to unite Church and State, than were the petitions against Sunday mails, the report in opposition to which gained for you, Mr. President, so much applause in the country. I, sir, also appeal to the clergy to maintain their rights of conscience; and if they believe slavery to be a sin, we ought to honor and respect them for their open denunciation of it, rather than call on them to desist, for between their conscience and their God, we have no power to interfere; we do not wish to make them political agents for any purpose.

But the Senator is not content to entreat the clergy alone to desist; he calls on his countrywomen to warn them, also, to cease their efforts, and reminds them that the ink shed from the pen held in their fair fingers when writing their names to abolition petitions, may be the cause of shedding much human blood! Sir, the language towards this class of petitioners is very much changed of late; they formerly were pronounced idlers, fanatics, old women and school misses, unworthy of respect from intelligent and respectable men. I warned gentlemen then that they would change their language; the blows they aimed fell harmless at the feet of those against whom they were intended to injure. In this movement of my countrywomen I thought was plainly to be discovered the operations of Providence, and a sure sign of the final triumph of *universal emancipation*. All history, both sacred and profane, both ancient and modern, bears testimony to the efficacy of female influence and power in the cause of human liberty. From the time of the preservation, by the hands of women, of the great Jewish law-giver, in his infantile hours, and who was preserved for the purpose of freeing his countrymen from Egyptian bondage, has woman been made a powerful agent in breaking to pieces the rod of the oppressor. With a pure and uncontaminated mind, her actions spring from the deepest recesses of the human heart. Denounce her as you will, you cannot deter her from her duty. Pain, sickness, want, poverty and even death itself form no obstacles in her onward march. Even the tender Virgin would dress, as a martyr for the stake, as for her bridal hour, rather than make sacrifice of her purity and duty. The eloquence of the Senate, and clash of arms, are alike powerful

when brought in opposition to the influence of pure and virtuous woman. The liberty of the slave seems now to be committed to her charge, and who can doubt her final triumph? I do not.—You cannot fight against her and hope for success; and well does the Senator know this; hence this appeal to her feelings to terrify her from that which she believes to be her duty. It is a vain attempt.

The Senator says that it was the principles of the Constitution which carried us through the Revolution. Surely it was; and to use the language of another Senator from a slave State, on a former occasion, these are the very principles on which the abolitionists plant themselves. It was the principle that all men are born FREE AND EQUAL, that nerved the arm of our fathers in their contest for independence. It was for the natural and inherent rights of *man* they contended. It is a libel upon the Constitution to say that its object was not liberty, but slavery, for millions of the human race.

The Senator, well fearing that all his eloquence and his arguments thus far are but chaff, when weighed in the balance against truth and justice, seems to find consolation in the idea, and says that which opposes the ulterior object of abolitionists, is that the general government has no power to act on the subject of slavery, and that the Constitution or the Union would not last an hour if the power claimed was exercised by Congress. It is slavery, then, and not liberty, that makes us one people. To dissolve slavery, is to dissolve the Union. Why require of us to support the Constitution by oath, if the Constitution itself is subject to the power of slavery, and not the moral power of the country? Change the form of the oath which you administer to Senators on taking seats here, swear them to support slavery, and according to the logic of the gentleman, the Constitution and the Union will both be safe. We hear almost daily threats of dissolving the Union, and from whence do they come? From citizens of the free States? No! From the slave States only. Why wish to dissolve it? The reason is plain, that a new government may be formed, by which we, as a nation, may be made a slaveholding people. No impartial observer of passing events, can, in my humble judgment, doubt the truth of this. The Senator thinks the abolitionists in error, if they wish the slaveholder to free his slave. He asks, why denounce him? I cannot admit the truth of the question; but I might well ask the gentleman, and the slaveholders generally, "why are you angry at me, because I tell you the truth?" It is the light of truth which the

slaveholder cannot endure; a plain unvarnished tale of what slavery is, he considers a libel upon himself. The fact is, the slaveholder feels the leprosy of slavery upon him. He is anxious to hide the odious disease from the public eye, and the ballot box and the right of petition, when used against him, he feels as sharp reproof; and being unwilling to renounce his errors, he tries to escape from their consequences, by making the world believe that HE is the persecuted, and not the persecutor. Slaveholders have said here, during this very session, "the fact is, slavery will not bear examination." It is the Senator who denounces abolitionists for the exercise of their most unquestionable rights, while abolitionists condemn that only which the Senator himself will acknowledge to be wrong at all times and under all circumstances. Because he admits that if it was an original question whether slaves should be introduced among us, but few citizens would be found to agree to it, and none more opposed to it than himself. The argument is, that the evil of slavery is incurable; that the attempt to eradicate it would commence a struggle which would exterminate one race or the other. What a lamentable picture of our government, so often pronounced the best upon earth! The seeds of disease, which were interwoven into its first existence, have now become so incorporated into its frame, that they cannot be extracted without dissolving the whole fabric; that we must endure the evil without hope and without complaint. Our very natures must be changed before we can be brought tamely to submit to this doctrine. The evil will be remedied: and to use the language of Jefferson again, "this people will yet be free." The Senator finds consolation, however in the midst of this existing evil, in color and caste. The black race (says he) is the strong ground of slavery in our country. Yes, it is *color*, not right and justice, that is to continue forever slavery in our country. It is prejudice against color, which is the strong ground of the slaveholder's hope. Is that prejudice founded in nature, or is it the effect of base and sordid interest? Let the mixed race which we see here, from black to almost perfect white, springing from white fathers, answer the question. Slavery has no just foundation in color: it rests exclusively upon usurpation, tyranny, oppressive fraud, and force. These were its parents in every age and country of the world.

The Senator says, the next or greatest difficulty to emancipation is, the amount of property it would take from the owners. All ideas of right and

wrong are confounded in these words: emancipate property, emancipate a horse, or an ox, would not only be unmeaning, but a ludicrous expression. To emancipate is to set free from slavery. To emancipate, is to set free a man, not property. The Senator estimates the number of slaves—*men* now held in bondage—at three millions in the United States. Is this statement made here by the same voice which was heard in this Capitol in favor of the liberties of Greece, and for the emancipation of our South American brethren from political thralldom? It is; and has all its fervor in favor of liberty been exhausted upon foreign countries, so as not to leave a single whisper in favor of three millions of men in our own country, now groaning under the most galling oppression the world ever saw? No, sir. Sordid interest rules the hour. Men are made property, and paper is made money, and the Senator, no doubt, sees in these two peculiar institutions a power which, if united, will be able to accomplish all his wishes. He informs us that some have computed the slaves to be worth the average amount of five hundred dollars each. He will estimate within bounds at four hundred dollars each. Making the amount twelve hundred millions of dollars' worth of slave property. I heard this statement, Mr. President, with emotions of the deepest feeling. By what rule of political or commercial arithmetic does the Senator calculate the amount of property in human beings? Can it be fancy or fact, that I hear such calculation, that the people of the United States own twelve hundred millions' (double the amount of all the specie in the world) worth of property in human flesh! And this property is owned, the gentleman informs us, by all classes of society, forming part of all our contracts within our own country and in Europe. I should have been glad, sir, to have been spared the hearing of a declaration of this kind, especially from the high source and the place from which it emanated. But the assertion has gone forth that we have twelve hundred millions of slave property at the South; and can any man so close his understanding here as not plainly to perceive that the power of this vast amount of property at the South is now uniting itself to the banking power of the North, in order to govern the destinies of this country. Six hundred millions of banking capital is to be brought into this coalition, and the slave power and the bank power are thus to unite in order to break down the present administration. There can be no mistake, as I believe, in this matter. The aristocracy of the North, who, by the power of a corrupt banking system, and the aristocracy of the South, by the power of the slave system, both fattening upon the labor of

others, are now about to unite in order to make the reign of each perpetual. Is there an independent American to be found, who will become the recreant slave to such an unholy combination? Is this another compromise to barter the liberties of the country for personal aggrandisement? "Resistance to tyrants is obedience to God."

The Senator further insists, "that what the law makes property is property." This is the predicate of the gentleman; he has neither facts nor reason to prove it; yet upon this alone does he rest the whole case that negroes are property. I deny the predicate and the argument. Suppose the Legislature of the Senator's own State should pass a law declaring his wife, his children, his friends, indeed, any white citizen of Kentucky, *property*, and should they be sold and transferred as such, would the gentleman fold his arms and say, "Yes, they are property, for the law has made them such?" No, sir; he would denounce such law with more vehemence than he now denounces abolitionists, and would deny the authority of human legislation to accomplish an object so clearly beyond its power.

Human laws, I contend, cannot make human beings property, if human force can do it. If it is competent for our legislatures to make a black man *property*, it is competent for them to make a white man the same; and the same objection exists to the power of the people in an organic law for their own government; they cannot make property of each other; and, in the language of the Constitution of Indiana, such an act "can only originate in usurpation and tyranny." Dreadful, indeed, would be the condition of this country, if these principles should not only be carried into the ballot box, but into the presidential chair. The idea that abolitionists ought to pay for the slaves if they are set free, and that they ought to think of this, is addressed to their fears, and not to their judgment. There is no principle of morality or justice that should require them or our citizens generally to do so. To free a slave is to take from usurpation that which it has made property and given to another, and bestow it upon the rightful owner. It is not taking property from its true owner for public use. Men can do with their own as they please, to vary their peace if they wish, but cannot be compelled to do so.

The gentleman repeats the assertion that has been repeated a thousand and one times: that abolitionists are retarding the emancipation of the slave, and

have thrown it back fifty or a hundred years; that they have increased the rigors of slavery, and caused the master to treat his slave with more severity. Slavery, then, is to cease at some period; and because the abolitionists have said to the slaveholder, "Now is the accepted time," and because he thinks this an improper interference, and not having the abolitionists in his power, he inflicts his vengeance on his unoffending slave! The moral of this story is, the slaveholder will exercise more cruelty because he is desired to show mercy. I do not envy the senator the full benefit of his argument. It is no doubt a true picture of the feelings and principles which slavery engenders in the breast of the master. It is in perfect keeping with the threat we almost daily hear; that if petitioners do not cease their efforts in the exercise of their constitutional rights, others will dissolve the Union. These, however, ought to be esteemed idle assertions and idle threats.

The Senator tells us that the consequences arising from the freedom of slaves, would be to reduce the wages of the white laborer. He has furnished us with neither data nor fact upon which this opinion can rest. He, however, would draw a line, on one side of which he would place the slave labor, and on the other side free white labor; and looking over the whole, as a general system, both would appear on a perfect equality. I have observed, for some years past, that the southern slaveholder has insisted that his laborers are, in point of integrity, morality, usefulness, and comfort, equal to the laboring population of the North. Thus endeavoring to raise the slave in public estimation, to an equality with the free white laborer of the North; while, on the other hand, the northern aristocrat has, in the same manner, viz.: by comparison, endeavored to reduce his laborers to the moral and political condition of the slaves of the South. It is for the free white American citizens to determine whether they will permit such degrading comparisons longer to exist. Already has this spirit broken forth in denunciation of the right of universal suffrage. Will free white laboring citizens take warning before it is too late?

The last, the great, the crying sin of abolitionists, in the eyes of the Senator, is that they are opposed to colonization, and in favor of amalgamation. It is not necessary now to enter into any of the benefits and advantages of colonization; the Senator has pronounced it the noblest scheme ever devised by man; he says it is powerful but harmless. I have no knowledge of any resulting benefits from the scheme to either race. I have not a doubt as to

the real object intended by its founders; it did not arise from principles of humanity and benevolence towards the colored race, but a desire to remove the free of that race beyond the United States, in order to perpetuate and make slavery more secure.

The Senator further makes the broad charge, that abolitionists wish to *enforce* the unnatural system of amalgamation. We deny the fact, and call on the Senator for proof. The citizens of the free States, the petitioners against slavery, the abolitionists of the free States in favor of amalgamation! No, sir! If you want evidence of the fact, and reasoning in support of amalgamation, you must look into the slave States; it is there it spreads and flourishes from slave mothers, and presents all possible colors and complexions, from the jet black African to the scarcely to be distinguished white person. Does any one need proof of this fact? let him take but a few turns through the streets of your capital, and observe those whom he shall meet, and he will be perfectly satisfied. Amalgamation, indeed! The charge is made with a very bad grace on the present occasion. No, sir; it is not the negro *woman*, it is the *slave* and the contaminating influence of slavery that is the mother of amalgamation. Does the gentleman want facts on this subject? let him look at the colored race in the free States; it is a rare occurrence there. A colony of blacks, some three or four hundred, were settled, some fifteen or twenty years since, in the county of Brown, a few miles distant from my former residence in Ohio, and I was told by a person living near them, a country merchant with whom they dealt, when conversing with him on this very subject, he informed me he knew of but one instance of a mulatto child being born amongst them for the last fifteen years; and I venture the assertion, had this same colony been settled in a slave State, the cases of a like kind would have been far more numerous. I repeat again, in the words of Dr. Channing, it is a slave country that reeks with licentiousness of this kind, and for proof I refer to the opinions of Judge Harper, of North Carolina, in his defence of southern slavery.

The Senator, as if fearing that he had made his charge too broad, and might fail in proof to sustain it, seems to stop short, and make the inquiry, where is the process of amalgamation to begin? He had heard of no instance of the kind against abolitionists; they (the abolitionists) would begin it with the laboring class; and if I understand the Senator correctly, that abolitionism, by throwing together the white and the black laborers, would naturally

produce this result. Sir, I regret, I deplore, that such a charge should be made against the laboring class—that class which tills the ground; and, in obedience to the decree of their Maker, eat their bread in the sweat of their face—that class, as Mr. Jefferson says, if God has a chosen people on earth, they are those who thus labor. This charge is calculated for effect, to induce the laboring class to believe, that if emancipation takes place, they will be, in the free States, reduced to the same condition as the colored laborer. The reverse of that is the truth of the case. It is the slaveholder NOW, he who looks upon labor as only fit for a servile race, it is him and his kindred spirits who live upon the labor of others, endeavoring to reduce the white laborer to the condition of the slave. They do not yet claim him as property, but they would exclude him from all participation in the public affairs of the country. It is further said, that if the negroes were free, the black would rival the white laborer in the free States. I cannot believe it, while so many facts exist to prove the contrary. Negroes, like the white race, but with stronger feelings, are attached to the place of their birth, and the home of their youth; and the climate of the South is congenial to their natures, more than that of the North. If emancipation should take place at the South—and the negro be freed from the fear of being made merchandize, they would remove from the free States of the North and West, immediately return to that country, because it is the home of their friends and fathers. Already in Ohio, as far as my knowledge extends, has free white labor, (emigrants,) from foreign countries, engrossed almost entirely all situations in which male or female labor is found. But, sir, this plea of necessity and convenience is the plea of tyrants. Has not the free black person the same right to the use of his hands as the white person: the same right to contract and labor for what price he pleases? Would the gentleman extend the power of the government to the regulation of the productive industry of the country? This was his former theory, but put down effectually by the public voice. Taking advantage of the prejudice against labor, the attempt is now being made to begin this same system, by first operating on the poor black laborer. For shame! let us cease from attempts of this kind.

The Senator informs us that the question was asked fifty years ago that is now asked, Can the negro be continued forever in bondage? Yes; and it will continue to be asked, in still louder and louder tones. But, says the Senator, we are yet a prosperous and happy nation. Pray, sir, in what part of your

country do you find this prosperity and happiness? In the slave States? No! no! There all is weakness gloom, and despair; while, in the free States, all is light, business, and activity. What has created the astonishing difference between the gentleman's State and mine—between Kentucky and Ohio? Slavery, the withering curse of slavery, is upon Kentucky, while Ohio is free. Kentucky, the garden of the West, almost the land of promise, possessing all the natural advantages, and more than is possessed by Ohio, is vastly behind in population and wealth. Sir, I can see from the windows of my upper chamber, in the city of Cincinnati, lands in Kentucky, which, I am told, can be purchased from ten to fifty dollars per acre; while lands of the same quality, under the same improvements, and the same distance from me in Ohio, would probably sell from one to five hundred dollars per acre. I was told by a friend, a few days before I left home, who had formerly resided in the county of Bourbon, Kentucky—a most excellent county of lands adjoining, I believe, the county in which the Senator resides—that the white population of that county was more than four hundred less than it was five years since. Will the Senator contend, after a knowledge of these facts, that slavery in this country has been the cause of our prosperity and happiness? No, he cannot. It is because slavery has been excluded and driven from a large proportion of our country, that we are a prosperous and happy people. But its late attempts to force its influence and power into the free States, and deprive our citizens of their unquestionable rights, has been the moving cause of all the riots, burnings, and murders that have taken place on account of abolitionism; and it has, in some degree, even in the free States, caused mourning, lamentation, and woe. Remove slavery, and the country, the whole country, will recover its natural vigor, and our peace and future prosperity will be placed on a more extensive, safe, and sure foundation. It is a waste of time to answer the allegations that the emancipation of the negro race would induce them to make war on the white race. Every fact in the history of emancipation proves the reverse; and he that will not believe those facts, has darkened his own understanding, that the light of reason can make no impression: he appeals to interest, not to truth, for information on this subject. We do not fear his errors, while we are left free to combat them. The Senator implores us to cease all commotion on this subject. Are we to surrender all our rights and privileges, all the official stations of the country, into the hands of the slaveholding power, without a single struggle? Are we to cease all exertions for our own

safety, and submit in quiet to the rule of this power? Is the calm of despotism to reign over this land, and the voice of freemen to be no more heard! This sacrifice is required of us, in order to sustain slavery. *Freemen*, will you make it? Will you shut your ears and your sympathies, and withhold from the poor, famished slave, a morsel of bread? Can you thus act, and expect the blessings of heaven upon your country? I beseech you to consider for yourselves.

Mr. President, I have been compelled to enter into this discussion from the course pursued by the Senate on the resolutions I submitted a few days since. The cry of abolitionist has been raised against me. If those resolutions are abolitionism, then I am an abolitionist from the sole of my feet to the crown of my head. If to maintain the rights of the States, the security of the citizen from violence and outrage; if to preserve the supremacy of the laws; if insisting on the right of petition, a medium through which *every person* subject to the laws has an undoubted right to approach the constitutional authorities of the country, be the doctrines of abolitionists, it finds a response in every beating pulse in my veins. Neither power, nor favor, nor want, nor misery, shall deter me from its support while the vital current continues to flow.

Condemned at home for my opposition to slavery, alone and singlehanded here, well may I feel tremor and emotion in bearding this lion of slavery in his very *den* and upon his own ground. I should shrink, sir, at once, from this fearful and unequal contest, was I not thoroughly convinced that I am sustained by the power of truth and the best interests of the country.

I listened to the Senator of Kentucky with undivided attention. I was disappointed, sadly disappointed. I had heard of the Senator's tact in making compromises and agreements on this floor, and though opposed in principle to all such proceedings, yet I hoped to hear something upon which we could hang a hope that peace would be restored to the borders of our own States, and all future aggression upon our citizens from the free States be prevented. Now, sir, he offers us nothing but unconditional submission to political death; and not political alone, but absolute *death*. We have counted the cost in this matter, and are determined to live or die free. Let the slaveholder hug his system to his bosom in his own State, we will not go there to disturb him; but, sir, within our own borders we claim to enjoy the

same privileges. Even, sir, here in this District, this ten miles square of common property and common right, the slave power has the assurance to come into this very Hall, and request that we—yes, Mr. President, that my constituents—be denied the right of petition on the subject of slavery in this District. This most extraordinary petition against the right of others to petition on the same subject of theirs, is graciously received and ordered to be printed; paeans sung to it by the slave power, while the petitions I offer, from as honorable, free, high-minded and patriotic American citizens as any in this District, are spit upon, and turned out of doors as an *unclean thing*! Genius of liberty! how long will you sleep under this iron power of oppression? Not content with ruling over their own slaves, they claim the power to instruct Congress on the question of receiving petitions; and yet we are tauntingly and sneeringly told that we have nothing to do with the existence of slavery in the country, a suggestion as absurd as it is ridiculous. We are called upon to make laws in favor of slavery in the District, but it is denied that we can make laws against it; and at last the right of petition on the subject, by the people of the free States, is complained of as an improper interference. I leave it to the Senator to reconcile all these difficulties, absurdities, claims and requests of the people of this District, to the country at large; and I venture the opinion that he will find as much difficulty in producing the belief that he is correct now, that he has found in obtaining the same belief that he was before correct in his views and political course on the subject of banks, internal improvements, protective tariffs, &c., and the regulation, by acts of Congress, of the productive industry of the country, together with all the compromises and coalitions he has entered into for the attainment of those objects. I rejoice, however, that the Senator has made the display he has on this occasion. It is a powerful shake to awaken the sleeping energies of liberty, and his voice, like a trumpet, will call from their slumbers millions of freemen to defend their rights; and the overthrow of his theory now, is as sure and certain, by the force of public opinion, as was the overthrow of all his former schemes, by the same mighty power.

I feel, Mr. President, as if I had wearied your patience, while I am sure my own bodily powers admonish me to close; but I cannot do so without again reminding my constituents of the greetings that have taken place on the consummation and ratification of the treaty, offensive and defensive,

between the slaveholding and bank powers, in order to carry on a war against the liberties of our country, and to put down the present administration. Yes, there is no voice heard from New England now. Boston and Faneuil Hall are silent as death. The free day-laborer is, in prospect, reduced to the political, if not moral condition of the slave; an ideal line is to divide them in their labor; yes, the same principle is to govern on both sides. Even the farmer, too, will soon be brought into the same fold. It will be again said, with regard to the government of the country, "The farmer with his huge paws upon the statute book, what can he do?" I have endeavored to warn my fellow-citizens of the present and approaching danger, but the dark cloud of slavery is before their eyes, and prevents many of them from seeing the condition of things as they are. That cloud, like the cloud of summer, will soon pass away, and its thunders cease to be heard. Slavery will come to an end, and the sunshine of prosperity warm, invigorate and bless our whole country.

I do not know, Mr. President, that my voice will ever again be heard on this floor. I now willingly, yes, gladly, return to my constituents, to the people of my own State. I have spent my life amongst them, and the greater portion of it in their service, and they have bestowed upon me their confidence in numerous instances. I feel perfectly conscious that, in the discharge of every trust which they have committed to me, I have, to the best of my abilities, acted solely with a view to the general good, not suffering myself to be influenced by any particular or private interest whatever; and I now challenge those who think I have done otherwise, to lay their finger upon any public act of mine, and prove to the country its injustice or anti-republican tendency. That I have often erred in the selection of means to accomplish important ends I have no doubt, but my belief in the truth of the doctrines of the Declaration of Independence, the political creed of President Jefferson, remains unshaken and unsubdued. My greatest regret is that I have not been more zealous, and done more for the cause of individual and political liberty than I have done. I hope, on returning to my home and my friends, to join them again in rekindling the beacon-fires of liberty upon every hill in our State, until their broad glare shall enlighten every valley, and the song of triumph will soon be heard, for the hearts of our people are in the hands of a just and holy being, (who can not look upon oppression but with abhorrence.) and he can turn them whithersoever he

will, as the rivers of water are turned. Though our national sins are many and grievous, yet repentance, like that of ancient Nineveh, may divert from us that impending danger which seems to hang over our heads as by a single hair. That all may be safe, I conclude that THE NEGRO WILL YET BE SET FREE.

THE ANTI-SLAVERY EXAMINER.

No. 11.

THE

CONSTITUTION

A PRO-SLAVERY COMPACT.

OR

SELECTIONS

FROM

THE MADISON PAPERS, &c.

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CONTENTS.

- [INTRODUCTION](#)
- [Debates in the Congress of the Confederation](#)
- [Debates in the Federal Convention](#)
- [List of Members of the Federal Convention](#)
- [Speech of Luther Martin](#)

- **DEBATES IN STATE CONVENTIONS**
 - [Massachusetts](#)
 - [New York](#)
 - [Pennsylvania](#)
 - [Virginia](#)
 - [North Carolina](#)
 - [South Carolina](#)
- [Extracts from the Federalist](#)
- [Debates in First Congress](#)
- [Address of the Executive Committee of the American Anti-Slavery Society](#)
- [Letter from Francis Jackson to Gov. Briggs](#)
- [Extract from Mr. Webster's Speech](#)
- [Extracts from J.Q. Adams's Address, November, 1844](#)

INTRODUCTION.

Every one knows that the "Madison papers" contain a Report, from the pen of James Madison, of the Debates in the Old Congress of the Confederation and in the Convention which formed the Constitution of the United States. We have extracted from them, in these pages, all the Debates on those clauses of the Constitution which relate to slavery. To these we have added all that is found, on the same topic, in the Debates of the several State Conventions which ratified the Constitution: together with so much of the Speech of Luther Martin before the Legislature of Maryland, and of the Federalist, as relate to our subject; with some extracts, also, from the Debates of the first Federal Congress on Slavery. These are all printed without alteration, except that, in some instances, we have inserted in brackets, after the name of a speaker, the name of the State from which he came. The notes and italics are those of the original, but the editor has added one note on [page 30th](#), which is marked as his, and we have taken the liberty of printing in capitals one sentiment of Rufus King's, and two of James Madison's—a distinction which the importance of the statements seemed to demand—otherwise we have reprinted exactly from the originals.

These extracts develope most clearly all the details of that "compromise," which was made between freedom and slavery, in 1787; granting to the slaveholder distinct privileges and protection for his slave property, in return for certain commercial concessions on his part toward the North. They prove also that the Nation at large were fully aware of this bargain at the time, and entered into it willingly and with open eyes.

We have added the late "Address of the American Anti-Slavery Society," and the letter of Francis Jackson to Governor Briggs, resigning his commission of Justice of the Peace—as bold and honorable protests against the guilt and infamy of this National bargain, and as proving most clearly the duty of each individual to trample it under his feet.

The clauses of the Constitution to which we refer as of a pro-slavery character are the following:—

Art. 1, Sect. 2. Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three fifths of all other persons*.

Art. 1, Sect. 8. Congress shall have power ... to suppress insurrections.

Art. 1, Sect. 9. The migration or importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited by the Congress, prior to the year one thousand eight hundred and eight: but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

Art. 4. Sec. 2. No person, held to service or labor in one State, under the laws thereof, escaping, into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due.

Art. 4, Sect. 4. The United States shall guarantee to every State in this Union a republican form of government; and shall protect each of them against invasion; and, on application of the legislature, or of the executive, (when the legislature cannot be convened) *against domestic violence*.

The first of these clauses, relating to representation, confers on a slaveholding community additional political power for every slave held among them, and thus tempts them to continue to uphold the system: the second and the last, relating to insurrection and domestic violence, perfectly innocent in themselves—yet being made with the fact directly in view that slavery exists among us, do deliberately pledge the whole national force against the unhappy slave if he imitate our fathers and resist oppression—thus making us partners in the guilt of sustaining slavery: the third, relating to the slave trade, disgraces the nation by a pledge not to abolish that traffic till after twenty years, *without obliging Congress to do so even then*, and thus the slave trade may be legalized to-morrow if Congress choose: the

fourth is a promise on the part of the whole Nation to return fugitive slaves to their masters, a deed which God's law expressly condemns and which every noble feeling of our nature repudiates with loathing and contempt.

These are the articles of the "Compromise," so much talked of, between the North and South.

We do not produce the extracts which make up these pages to show what is the meaning of the clauses above cited. For no man or party, of any authority in such matters, has ever pretended to doubt to what subject they all relate. If indeed they were ambiguous in their terms, a resort to the history of those times would set the matter at rest for ever. A few persons, to be sure, of late years, to serve the purposes of a party, have tried to prove that the Constitution makes no compromise with slavery. Notwithstanding the clear light of history;—the unanimous decision of all the courts in the land, both State and Federal;—the action of Congress and the State Legislature;—the constant practice of the Executive in all its branches;—and the deliberate acquiescence of the whole people for half a century, still they contend that the Nation does not know its own meaning, and that the Constitution does not tolerate slavery! Every candid mind however must acknowledge that the language of the Constitution is clear and explicit.

Its terms are so broad, it is said, that they include many others beside slaves, and hence it is wisely (!) inferred that they cannot include the slaves themselves! Many persons beside slaves in this country doubtless are "held to service and labor under the laws of the States," but that does not at all show that slaves are not "held to service;" many persons beside the slaves may take part "in insurrections," but that does not prove that when the slaves rise, the National government is not bound to put them down by force. Such a thing has been heard of before as one description including a great variety of persons,—and this is the case in the present instance.

But granting that the terms of the Constitution are ambiguous—that they are susceptible of two meanings, if the unanimous, concurrent, unbroken practice of every department of the Government, judicial, legislative, and executive, and the acquiescence of the whole people for fifty years do not prove which is the true construction, then how and where can such a question ever be settled? If the people and the Courts of the land do not

know what they themselves mean, who has authority to settle their meaning for them?

If then the people and the Courts of a country are to be allowed to determine what their own laws mean, it follows that at this time and for the last half century, the Constitution of the United States, has been, and still is, a pro-slavery instrument, and that any one who swears to support it, swears to do pro-slavery acts, and violates his duty both as a man and an abolitionist. What the Constitution may become a century hence, we know not; we speak of it *as it is*, and repudiate it *as it is*.

But the purpose, for which we have thrown these pages before the community, is this. Some men, finding the nation unanimously deciding that the Constitution tolerates slavery, have tried to prove that this false construction, as they think it, has been foisted in upon the instrument by the corrupting influence of slavery itself, tainting all it touches. They assert that the known anti-slavery spirit of revolutionary times never *could* have consented to so infamous a bargain as the Constitution is represented to be, and has in its present hands become. Now these pages prove the melancholy fact that willingly, with deliberate purpose, our fathers bartered honesty for gain and became partners with tyrants that they might share in the profits of their tyranny.

And in view of this fact, will it not require a very strong argument to make any candid man believe, that the bargain which the fathers tell us they meant to incorporate into the Constitution, and which the sons have always thought they found there incorporated, does not exist there after all? Forty of the shrewdest men and lawyers in the land assemble to make a bargain, among other things, about slaves,—after months of anxious deliberation they put it into writing and sign their names to the instrument,—fifty years roll away, twenty millions at least of their children pass over the stage of life,—courts sit and pass judgment,—parties arise and struggle fiercely; still all concur in finding in the Instrument just that meaning which the fathers tell us they intended to express:—must not he be a desperate man, who, after all this, sets out to prove that the fathers were bunglers and the sons fools, and that slavery is not referred to at all?

Besides, the advocates of this new theory of the Anti-slavery character of the Constitution, quote some portions of the Madison Papers in support of their views,—and this makes it proper that the community should hear all that these Debates have to say on the subject. The further we explore them, the clearer becomes the fact that the Constitution was meant to be, what it has always been esteemed, a compromise between slavery and freedom.

If then the Constitution be, what these Debates show that our fathers intended to make it, and what, too, their descendants, this nation, say they did make it and agree to uphold,—then we affirm that it is a "covenant with death and an agreement with hell," and ought to be immediately annulled.

But if, on the contrary, our fathers failed in their purpose, and the Constitution is all pure and untouched by slavery,—then, Union itself is impossible, without guilt. For it is undeniable that the fifty years passed under this (anti-slavery) Constitution, shew us the slaves trebling in numbers;—slaveholders monopolizing the offices and dictating the policy of the Government;—prostituting the strength and influence of the Nation to the support of slavery here and elsewhere;—trampling on the rights of the free States and making the courts of the country their tools. To continue this disastrous alliance longer is madness. The trial of fifty years with the best of men and the best of Constitutions, on this supposition, only proves that it is impossible for free and slave States to unite on any terms, without all becoming partners in the guilt and responsible for the sin of slavery. We dare not prolong the experiment, and with double earnestness we repeat our demand upon every honest man to join in the outcry of the American Anti-Slavery Society,

NO UNION WITH SLAVEHOLDERS.

THE CONSTITUTION

A PRO-SLAVERY COMPACT.

Extracts from Debates in the Congress of Confederation, preserved by Thomas Jefferson, 1776.

On Friday, the twelfth of July, 1776, the committee appointed to draw the articles of Confederation reported them, and on the twenty-second, the House resolved themselves into a committee to take them into consideration. On the thirtieth and thirty-first of that month, and the first of the ensuing, those articles were debated which determined the proportion or quota of money which each State should furnish to the common treasury, and the manner of voting in Congress. The first of these articles was expressed in the original draught in these words:—

"Article 11. All charges of war and all other expenses that shall be incurred for the common defence, or general welfare, and allowed by the United States assembled, shall be defrayed out of a common treasury, which shall be supplied by the several colonies in proportion to the number of inhabitants of every age, sex and quality, except Indians not paying taxes, in each colony, a true account of which, distinguishing the white inhabitants, shall be triennially taken and transmitted to the assembly of the United States."

Mr. Chase (of Maryland) moved, that the quotas should be paid, not by the number of inhabitants of every condition but by that of the "white inhabitants." He admitted that taxation should be always in proportion to property; that this was in theory the true rule, but that from a variety of difficulties it was a rule which could never be adopted in practice. The value of the property in every State could never be estimated justly and equally. Some other measure for the wealth of the State must therefore be devised, some standard referred to which would be more simple. He considered the number of inhabitants as a tolerably good criterion of property, and that this might always be obtained. He therefore thought it the

best mode we could adopt, with one exception only. He observed that negroes are property, and as such cannot be distinguished from the lands or personalities held in those States where there are few slaves. That the surplus of profit which a Northern farmer is able to lay by, he invests in cattle, horses, &c.; whereas, a Southern farmer lays out that same surplus in slaves. There is no more reason therefore for taxing the Southern States on the farmer's head and on his slave's head, than the Northern ones on their farmer's heads and the heads of their cattle. That the method proposed would therefore tax the Southern States according to their numbers and their wealth conjunctly, while the Northern would be taxed on numbers only: that negroes in fact should not be considered as members of the State, more than cattle, and that they have no more interest in it.

Mr. John Adams (of Massachusetts) observed, that the numbers of people were taken by this article as an index of the wealth of the State, and not as subjects of taxation. That as to this matter, it was of no consequence by what name you called your people, whether by that of freemen or of slaves. That in some countries the laboring poor were called freemen, in others they were called slaves: but that the difference as to the state was imaginary only. What matters it whether a landlord employing ten laborers on his farm gives them annually as much money as will buy them the necessaries of life, or gives them those necessaries at short hand? The ten laborers add as much wealth, annually to the State, increase its exports as much, in the one case as the other. Certainly five hundred freemen produce no more profits, no greater surplus for the payment of taxes, than five hundred slaves. Therefore the State in which are the laborers called freemen, should be taxed no more than that in which are those called slaves. Suppose, by any extraordinary operation of nature or of law, one half the laborers of a State could in the course of one night be transformed into slaves,—would the State be made the poorer, or the less able to pay taxes? That the condition of the laboring poor in most countries,—that of the fishermen, particularly, of the Northern States,—is as abject as that of slaves. It is the number of laborers which produces the surplus for taxation; and numbers, therefore, indiscriminately, are the fair index of wealth. That it is the use of the word "property" here, and its application to some of the people of the State, which produces the fallacy. How does the Southern farmer procure slaves? Either by importation or by purchase from his neighbor. If he imports a

slave, he adds one to the number of laborers in his country, and proportionably to its profits and abilities to pay taxes; if he buys from his neighbor, it is only a transfer of a laborer from one firm to another, which does not change the annual produce of the State, and therefore should not change its tax; that if a Northern farmer works ten laborers on his farm, he can, it is true, invest the surplus of ten men's labor in cattle; but so may the Southern farmer working ten slaves. That a State of one hundred thousand freemen can maintain no more cattle than one of one hundred thousand slaves; therefore they have no more of that kind of property. That a slave may, indeed, from the custom of speech, be more properly called the wealth of his master, than the free laborer might be called the wealth of his employer: but as to the State, both were equally its wealth, and should therefore equally add to the quota of its tax.

Mr. Harrison (of Virginia) proposed, as a compromise, that two slaves should be counted as one freeman. He affirmed that slaves did not do as much work as freemen, and doubted if two affected more than one. That this was proved by the price of labor, the hire of a laborer in the Southern colonies being from £9 to £12, while in the Northern it was generally £24.

Mr. Wilson (of Pennsylvania) said, that if this amendment should take place, the Southern colonies would have all the benefit of slaves, whilst the Northern ones would bear the burthen. That slaves increase the profits of a State, which the Southern States mean to take to themselves; that they also increase the burthen of defence, which would of course fall so much the heavier on the Northern; that slaves occupy the places of freemen and eat their food. Dismiss your slaves, and freemen will take their places. It is our duty to lay every discouragement on the importation of slaves; but this amendment would give thee *jus trium liberorum* to him who would import slaves. That other kinds of property were pretty equally distributed through all the colonies: there were as many cattle, horses, and sheep, in the North as the South, and South as the North; but not so as to slaves: that experience has shown that those colonies have been always able to pay most, which have the most inhabitants, whether they be black or white; and the practice of the Southern colonies has always been to make every farmer pay poll taxes upon all his laborers, whether they be black or white. He acknowledged indeed that freemen worked the most; but they consume the most also. They do not produce a greater surplus for taxation. The slave is

neither fed nor clothed so expensively as a freeman. Again, white women are exempted from labor generally, which negro women are not. In this then the Southern States have an advantage as the article now stands. It has sometimes been said that slavery was necessary, because the commodities they raise would be too dear for market if cultivated by freemen; but now it is said that the labor of the slave is the dearest.

Mr. Payne (of Massachusetts) urged the original resolution of Congress, to proportion the quotas of the States to the number of souls.

Mr. Witherspoon (of New-Jersey) was of opinion, that the value of lands and houses was the best estimate of the wealth of a nation, and that it was practicable to obtain such a valuation. This is the true barometer of wealth. The one now proposed is imperfect in itself, and unequal between the States. It has been objected that negroes eat the food of freemen, and therefore should be taxed. Horses also eat the food of freemen; therefore they also should be taxed. It has been said too, that in carrying slaves into the estimate of the taxes the State is to pay, we do no more than those States themselves do, who always take slaves into the estimate of the taxes the individual is to pay. But the cases are not parallel. In the Southern Colonies, slaves pervade the whole colony; but they do not pervade the whole continent. That as to the original resolution of Congress, it was temporary only, and related to the moneys heretofore emitted: whereas we are now entering into a new compact, and therefore stand on original ground.

AUGUST 1st. The question being put, the amendment proposed was rejected by the votes of New-Hampshire, Massachusetts, Rhode-Island, Connecticut, New-York, New-Jersey and Pennsylvania, against those of Delaware, Maryland, Virginia, North, and South Carolina. Georgia was divided. *Vol. I. pp. 27-8-9, 30-1-2.*

Extracts from Madison's Report of Debates in the Congress of the Confederation.

TUESDAY, Feb. 11, 1783.

Mr. Wolcott declares his opinion that the Confederation ought to be amended by substituting numbers of inhabitants as the rule; admits the difference between freemen and blacks; and suggests a compromise, by

including in the numeration such blacks only as were within sixteen and sixty years of age. *p.* 331.

TUESDAY, March 27, 1783.

The eleventh and twelfth paragraphs:

Mr. Wilson (of Pennsylvania) was strenuous in their favor; said he was in Congress when the Articles of Confederation directing a valuation of land were agreed to; that it was the effect of the impossibility of compromising the different ideas of the Eastern and Southern States, as to the value of slaves compared with the whites, the alternative in question.

Mr. Clark (of New Jersey) was in favor of them. He said that he was also in Congress when this article was decided; that the Southern States would have agreed to numbers in preference to the value of land, if half their slaves only should be included; but that the Eastern States would not concur in that proposition.

It was agreed, on all sides, that, instead of fixing the proportion by ages, as the report proposed, it would be best to fix the proportion in absolute numbers. With this view, and that the blank might be filled up, the clause was recommitted. *p.* 421-2.

FRIDAY, March 28, 1783.

The committee last mentioned, reported that two blacks be rated as one freeman.

Mr. Wolcott (of Connecticut) was for rating them as four to three. Mr. Carroll as four to one. Mr. Williamson (of North Carolina) said he was principled against slavery; and that he thought slaves an incumbrance to society, instead of increasing its ability to pay taxes. Mr. Higginson (of Massachusetts) as four to three. Mr. Rutledge (of South Carolina) said, for the sake of the object, he would agree to rate slaves as two to one, but he sincerely thought three to one would be a juster proportion. Mr. Holton as four to three.—Mr. Osgood said he did not go beyond four to three. On a question for rating them as three to two, the votes were. New Hampshire, aye; Massachusetts, no; Rhode Island, divided; Connecticut, aye; New Jersey, aye; Pennsylvania, aye; Delaware, aye; Maryland, no; Virginia, no;

North Carolina, no; South Carolina, no. The paragraph was then proposed, by general consent, some wishing for further time to deliberate on it; but it appearing to be the general opinion that no compromise would be agreed to.

After some further discussions on the Report, in which the necessity of some simple and practicable rule of apportionment came fully into view, Mr. Madison (of Virginia) said that, in order to give a proof of the sincerity of his professions of liberality, he would propose that slaves should be rated as five to three. Mr. Rutledge (of South Carolina) seconded the motion. Mr. Wilson (of Pennsylvania) said he would sacrifice his opinion on this compromise.

Mr. Lee was against changing the rule, but gave it as his opinion that two slaves were not equal to one freeman.

On the question for five to three, it passed in the affirmative; New Hampshire, aye; Massachusetts, divided; Rhode Island, no; Connecticut, no; New Jersey, aye; Pennsylvania, aye; Maryland, aye; Virginia, aye; North Carolina, aye; South Carolina, aye.

A motion was then made by Mr. Bland, seconded by Mr. Lee, to strike out the clause so amended, and, on the question "Shall it stand," it passed in the negative; New Hampshire, aye; Massachusetts, no; Rhode Island, no; Connecticut, no; New Jersey, aye; Pennsylvania, aye; Delaware, no; Maryland, aye; Virginia, aye; North Carolina, aye; South Carolina, no; so the clause was struck out.

The arguments used by those who were for rating slaves high were, that the expense of feeding and clothing them was as far below that incident to freemen as their industry and ingenuity were below those of freemen; and that the warm climate within which the States having slaves lay, compared with the rigorous climate and inferior fertility of the others, ought to have greater weight in the case; and that the exports of the former States were greater than of the latter. On the other side, it was said, that slaves were not put to labor as young as the children of laboring families; that, having no interest in their labor, they did as little as possible and omitted every exertion of thought requisite to facilitate and expedite it: that if the exports of the States having slaves exceeded those of the others, their imports were in proportion, slaves being employed wholly in agriculture, not in

manufacturers; and that, in fact, the balance of trade formerly was much more against the Southern States than the others.

On the main question, New Hampshire, aye; Massachusetts, no; Rhode Island, no; Connecticut, no; New York (Mr. Lloyd, aye); New Jersey, aye; Delaware, no; Maryland, aye; Virginia, aye; North Carolina, aye; South Carolina, no. *pp.* 423-4-5.

Tuesday, April 1, 1783.

Congress resumed the Report on Revenue, &c. Mr. Hamilton, who had been absent when the last question was taken for substituting numbers in place of the value of land, moved to reconsider that vote. He was seconded by Mr. Osgood. Those who voted differently from their former votes were influenced by the conviction of the necessity of the change, and despair on both sides of a more favorable rate of the slaves. The rate of three-fifths was agreed to without opposition. *p.* 430.

Monday, May 26.

The Resolutions on the Journal, instructing the ministers in Europe to remonstrate against the carrying off the negroes—also those for furloughing the troops—passed *unanimously*. *p.* 456.

Extract from "Debates in the Federal Convention" of 1787, for the formation of the Constitution of the United States.

Monday, June 11, 1787.

It was then moved by Mr. Rutledge, seconded by Mr. Butler, to add to the words, "equitable ratio of representation," at the end of the motion just agreed to, the words, "according to the quotas of contribution." On motion of Mr. Wilson, seconded by Mr. Pinckney, this was postponed, in order to add, after the words, "equitable rates of representation," the words following: "In proportion to the whole number of white and other free citizens and inhabitants of every age, sex and condition, including those bound to servitude for a term of years, and three fifths of all other persons not comprehended in the foregoing description, except Indians not paying taxes, in each State"—this being the rule in the act of Congress, agreed to

by eleven States, for apportioning quotas of revenue on the States, and requiring a census only every five, seven, or ten years.

Mr. Gerry (of Massachusetts) thought property not the rule of representation. Why, then, should the blacks, who were property in the South, be in the rule of representation more than, the cattle and horses of the North?

On the question,—Massachusetts, Connecticut, New York, Pennsylvania, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—9; New jersey, Delaware, no—2. *Vol. II. pp. 842-3.*

Saturday, June 30, 1787.

He (Mr. Madison) admitted that every peculiar interest, whether in any class of citizens, or any description of states, ought to be secured as far as possible. Wherever there is danger of attack, there ought to be given a constitutional power of defence. But he contended that the States were divided into different interests, not by their difference of size, but by other circumstances; the most material of which resulted partly from climate, but principally from the effects of their having or not having slaves. These two causes concurred in forming the great division of interests in the United States. It did not lie between the large and small States. IT LAY BETWEEN THE NORTHERN AND SOUTHERN; and if any defensive power were necessary, it ought to be mutually given to these two interests. He was so strongly impressed with this important truth, that he had been casting about in his mind for some expedient that would answer the purpose. The one which had occurred was, that instead of proportioning the votes of the States in both branches to their respective numbers of inhabitants, computing the slaves in the ratio of five to three, they should be represented in one branch according to the number of free inhabitants only; and in the other, according to the whole number, counting the slaves as free. By this arrangement the Southern scale would have the advantage in one House, and the Northern in the other. He had been restrained from proposing this expedient by two considerations; one was his unwillingness to urge any diversity of interests on an occasion where it is but too apt to arise of itself; the other was, the inequality of powers that must be vested in the two branches, and which would destroy the equilibrium of interests. *pp. 1006-7.*

Monday, July 9, 1787.

Mr. Patterson considered the proposed estimate for the future according to the combined rules of numbers and wealth, as too vague. For this reason New Jersey was against it. He could regard negro slaves in no light but as property. They are no free agents, have no personal liberty, no faculty of acquiring property, but on the contrary are themselves property, and like other property, entirely at the will of the master. Has a man in Virginia a number of votes in proportion to the number of his slaves? And if negroes are not represented in the States to which they belong, why should they be represented in the General Government. What is the true principle of representation? It is an experiment by which an assembly of certain individuals, chosen, by the people, is substituted in place of the inconvenient meeting of the people themselves. If such a meeting of the people was actually to take place, would the slaves vote? They would not. Why then should they be represented? He was also against such an indirect encouragement of the slave trade; observing that Congress, in their act relating to the change of the eighth article of Confederation, had been assigned to use the term "slaves," and had substituted a description.

Mr. Madison reminded Mr. Patterson that his doctrine of representation, which was in its principle the genuine one, must for ever silence the pretensions of the small States to an equality of votes with the large ones. They ought to vote in the same proportion in which their citizens would do if the people of all the States were collectively met. He suggested, as a proper ground of compromise, that in the first branch the States should be represented according to their number of free inhabitants; and in the second, which has for one of its primary objects, the guardianship of property, according to the whole number, including slaves.

Mr. Butler urged warmly the justice and necessity of regarding wealth in the apportionment of representation.

Mr. King had always expected, that, as the Southern States are the richest, they would not league themselves with the Northern, unless some respect was paid to their superior wealth. If the latter expect those preferential distinctions in commerce, and other advantages which they will derive from the connexion, they must not expect to receive them without allowing some

advantages in return. Eleven out of thirteen of the States had agreed to consider slaves in the apportionment of taxation; and taxation and representation ought to go together. *pp.* 1054-5-6.

Tuesday, July 10; 1787.

Mr. King remarked that the four Eastern States, having 800,000 souls, have one-third fewer representatives than the four Southern States, having not more than 700,000 souls, rating the blacks as five for three. The Eastern people will advert to these circumstances, and be dissatisfied. He believed them to be very desirous of uniting with their Southern brethren, but did not think it prudent to rely so far on that disposition, as to subject them to any gross inequality. He was fully convinced that THE QUESTION CONCERNING A DIFFERENCE OF INTERESTS DID NOT LIE WHERE IT HAD HITHERTO BEEN DISCUSSED, BETWEEN THE GREAT AND SMALL STATES: BUT BETWEEN THE SOUTHERN AND EASTERN. *p.* 1057.

Wednesday, July 11, 1787.

Mr. Butler and General Pinckney insisted that blacks be included in rule of representation *equally* with the whites; and for that purpose moved that the words "three-fifths" be struck out.

Mr. Gerry thought that three fifths of them was, to say the least, the full proportion that could be admitted.

Mr. Gorham. This ratio was fixed by Congress as a rule of taxation. Then, it was urged, by the delegates representing the States having slaves, that the blacks were still more inferior to freemen. At present, when the ratio of representation is to be established, we are assured that they are equal to freemen. The arguments on the former occasion had convinced them that three fifths was pretty near the just proportion, he should vote according to the same opinion now.

Mr. Butler insisted that the labor of a slave in South Carolina was as productive and valuable as that of a freeman in Massachusetts; that as wealth was the greatest means of defence and utility to the nation, they were equally valuable to it with freemen; and that consequently an equal representation ought to be allowed for them in a government which was

instituted principally, for the protection of property, and was itself to be supported by property.

Mr. Mason could not agree to the motion, notwithstanding it was favorable to Virginia, because he thought it unjust. It was certain that the slaves were valuable, as they raised the value of land, increased the exports and imports, and of course the revenue, would supply the means of feeding and supporting an army, and might in cases of emergency become themselves soldiers. As in these important respects they were useful to the community at large, they ought not to be excluded from the estimate of representation. He could not, however, regard them as equal to freemen, and could not vote for them as such. He added, as worthy of remark, that the Southern States have this peculiar species of property, over and above the other species of property common to all the States.

Mr. Williamson reminded Mr. Gorham, that if the Southern States contended for the inferiority of blacks to whites, when taxation was in view, the Eastern States, on the same occasion, contended for their equality. He did not, however, either then or now, concur in either extreme, but approved of the ratio of three-fifths.

On Mr. Butler's motion, for considering blacks as equal to whites in the apportionment of representation,—Delaware, South Carolina, Georgia, aye—3; Massachusetts, Connecticut, New Jersey, Pennsylvania, Maryland, Virginia, North Carolina, no—7. New York not on the floor.

Mr. Gouverneur Morris said he had several objections to the proposition of Mr. Williamson. In the first place it fettered the Legislature too much. In the second place, it would exclude some States altogether who would not have a sufficient number to entitle them to a single representation. In the third place, it will not consist with the resolution passed on Saturday last, authorizing the Legislature to adjust the representation, from time to time on the principles of population and wealth; nor with the principles of equity. If slaves were to be considered as inhabitants, not as wealth, then the said resolution would not be pursued; if as wealth, then why is no other wealth but slaves included? These objections may perhaps be removed by amendments.... Another objection with him, against admitting the blacks into the census, was, that the people of Pennsylvania would revolt at the

idea of being put on a footing with slaves. They would reject any plan that was to have such an effect. pp. 1067-8-9 & 1072.

WEDNESDAY, JULY 11, 1787.

The next clause as to three-fifths of the negroes being considered:

Mr. King, being much opposed to fixing numbers as the rule of representation, was particularly so on account of the blacks. He thought the admission of them along with whites at all, would excite great discontents among the States having no slaves. He had never said, as to any particular point, that he would in no event acquiesce in and support it; but he would say that if in any case such a declaration was to be made by him, it would be in this.

He remarked that in the temporary allotment of representatives made by the Committee, the Southern States had received more than the number of their white and three-fifths of their black inhabitants entitled them to.

Mr. Sherman. South Carolina had not more beyond her proportion than New York and New Hampshire; nor either of them more than was necessary in order to avoid fractions, or reducing them below their proportion. Georgia had more; but the rapid growth of that State seemed to justify it. In general the allotment might not be just, but considering all circumstances he was satisfied with it.

Mr. Gorham was aware that there might be some weight in what had fallen from his colleague, as to the umbrage which might be taken by the people of the Eastern States. But he recollected that when the proposition of Congress for changing the eighth Article of the Confederation was before the Legislature of Massachusetts, the only difficulty then was, to satisfy them that the negroes ought not to have been counted equally with the whites, instead of being counted in the ratio of three-fifths only.[\[1\]](#)

[Footnote [1](#): They were then to have been a rule of taxation only.]

Mr. Wilson did not well see, on what principle the admission of blacks in the proportion of three fifths could be explained. Are they admitted as citizens—then why are they not admitted on an equality with white citizens? Are they admitted as property—then why is not other property admitted into the computation? These were difficulties, however, which he

thought must be overruled by the necessity of compromise. He had some apprehensions also, from the tendency of the blending of the blacks with the whites, to give disgust to the people of Pennsylvania, as had been intimated by his colleague (Mr. Gouverneur Morris.)

Mr. Gouverneur Morris was compelled to declare himself reduced to the dilemma of doing injustice to the Southern States, or to human nature; and he must therefore do it to the former. For he could never agree to give such encouragement to the slave trade, as would be given by allowing them a representation for their negroes; and he did not believe those States would ever confederate on terms that would deprive them of that trade.

On the question for agreeing to include three-fifths of the blacks,—Connecticut, Virginia, North Carolina. Georgia, aye—4; Massachusetts, New Jersey, Pennsylvania, Delaware, Maryland,[\[2\]](#) South Carolina, no—6. pp. 1076-7-8.

[Footnote [2](#): Mr. Carroll said, in explanation of the vote of Maryland, that he wished the *phraseology* to be altered as to obviate, if possible, the danger which had been expressed of giving umbrage to the Eastern and Middle States.

THURSDAY, July 12, 1787.

Mr. Butler contended that representation should be according to the full number of inhabitants, including all the blacks.

General Pinckney was alarmed at what was said yesterday, [by Gouverneur Morris,] concerning the negroes. He was now again alarmed at what had been thrown out concerning the taxing of exports. South Carolina has in one year exported to the amount of 600,000£. sterling, all which was the fruit of the labor of her blacks. Will she be represented in proportion to this amount? She will not. Neither ought she then be subject to a tax on it. He hoped a clause would be inserted in the system, restraining the Legislature from taxing exports.

Mr. Gouverneur Morris having so varied his motion by inserting the word "direct," it passed, *nem. con.*, as follows: "provided always that direct

taxation ought to be proportioned to representation."

Mr. Davie said it was high time now to speak out. He saw that it was meant by some gentlemen to deprive the Southern States of any share of representation for their blacks. He was sure that North Carolina would never confederate on any terms that did not rate them at least as three-fifths. If the Eastern States meant, therefore, to exclude them altogether, the business was at an end.

Dr. Johnson thought that wealth and population were the true, equitable rules of representation; but he conceived that these two principles resolved themselves into one, population being the best measure of wealth. He concluded, therefore, that the number of people ought to be established as the rule, and that all descriptions, including blacks *equally* with the whites, ought to fall within the computation. As various opinions had been expressed on the subject, he would move that a committee might be appointed to take them into consideration, and report them.

Mr. Gouverneur Morris. It had been said that it is high time to speak out. As one member, he would candidly do so. He came here to form a compact for the good of America. He was ready to do so with all the States. He hoped, and believed, that all would enter into such compact. If they would not, he was ready to join with any States that would. But as the compact was to be voluntary, it is in vain for the Eastern States to insist on what the Southern States will never agree to. It is equally vain for the latter to require, what the other States can never admit; and he verily believed the people of Pennsylvania will never agree to a representation of negroes. What can be desired by these States more than has been already proposed—that the legislature shall from time to time regulate representation according to population and wealth?

General Pinckney desired that the rule of wealth should be ascertained, and not left to the pleasure of the legislature; and that property in slaves should not be exposed to danger, under a government instituted for the protection of property.

The first clause in the Report of the first Grand Committee was postponed.

Mr. Ellsworth, in order to carry into effect the principle established, moved to add to the last clause adopted by the House, the words following, "and that the rule of contribution for direct taxation, for the support of the government of the United States, shall be the number of white inhabitants, and three-fifths of every other description in the several States, until some other use rule that shall more accurately ascertain the wealth of the several States, can be devised and adopted by the Legislature."

Mr. Butler seconded the motion, in order that it might be committed.

Mr. Randolph was not satisfied with the motion. The danger will be revived, that the ingenuity of the Legislature may evade or pervert the rule, so as to perpetuate the power where it shall be lodged in the first instance. He proposed, in lieu of Mr. Ellsworth's motion, "that in order to ascertain the alterations in representation that may be required, from time to time, by changes in the relative circumstances of the States, a census shall be taken within two years from the first meeting of the General Legislature of the United States, and once within the term of every —— years afterwards, of all the inhabitants, in the manner and according to the ratio recommended by Congress in their Resolution of the eighteenth day of April, 1783, (rating the blacks at three-fifths of their number;) and that the Legislature of the United States shall arrange the representation accordingly." He urged strenuously that express security ought to be provided for including slaves in the ratio of representation. He lamented that such a species of property existed. But as it did exist, the holders of it would require this security. It was perceived that the design was entertained by some of excluding slaves altogether; the Legislature therefore ought not to be left at liberty.

Mr. Ellsworth withdraws his motion, and seconds that of Mr. Randolph.

Mr. Wilson observed, that less umbrage would perhaps be taken against an admission of the slaves into the rule of representation, if it should be so expressed as to make them indirectly only an ingredient in the rule, by saying that they should enter into the rule of taxation; and as representation was to be according to taxation, the end would be equally attained.

Mr. Pinckney moved to amend Mr. Randolph's motion, so as to make "blacks equal to the whites in the ratio of representation." This, he urged, was nothing more than justice. The blacks are the laborers, the peasants, of

the Southern States. They are as productive of pecuniary resources as those of the northern states. They add equally to the wealth, and, considering money as the sinew of war, to the strength, of the nation. It will also be politic with regard to the Northern States, as taxation is to keep pace with representation.

On Mr. Pinckney's (of S. Carolina) motion, for rating blacks as equal to whites, instead of as three-fifths,—South Carolina, Georgia, aye —2; Massachusetts, Connecticut (Doctor Johnson, aye), New Jersey, Pennsylvania (three against two), Delaware, Maryland, Virginia, North Carolina, no—8.

Mr. Randolph's (of Virginia) proposition, as varied by Mr. Wilson (of Pennsylvania) being read for taking the question on the whole,—

Mr. Gerry (of Massachusetts) urged that the principle of it could not be carried into execution, as the States were not to be taxed as States. With regard to taxes on imposts, he conceived they would be more productive when there were no slaves, than where there were; the consumption being greater.

Mr. Ellsworth (of Connecticut.) In the case of a poll-tax there would be no difficulty. But there would probably be none. The sum allotted to a State may be levied without difficulty, according to the plan used by the State in raising its own supplies.

On the question on the whole proposition, as proportioning representation to direct taxation, and both to the white and three-fifths of the black inhabitants, and requiring a census within six years, and within every ten years afterwards,—Connecticut, Pennsylvania, Maryland, Virginia, North Carolina, Georgia, aye—6; New-Jersey, Delaware, no—2; Massachusetts, South Carolina, divided. *pp.* 1079 to 1087.

Friday, July 13, 1787.

On the motion of Mr. Randolph (of Virginia), the vote of Monday last, authorizing the Legislature to adjust, from time to time, the representation upon the principles of *wealth* and numbers of inhabitants, was reconsidered by common consent, in order to strike out *wealth* and adjust the resolution

to that requiring periodical revisions according to the number of whites and three-fifths of the blacks.

Mr. Gouverneur Morris (of Pennsylvania) opposed the alteration, as leaving still an incoherence. If negroes were to be viewed as inhabitants, and the revision was to proceed on the principle of numbers of inhabitants, they ought to be added in their entire number, and not in the proportion of three-fifths. If as property, the word wealth was right; and striking it out would produce the very inconsistency which it was meant to get rid of. The train of business, and the late turn which it had taken, had led him, he said, into deep meditation on it, and he would candidly state the result. A distinction has been set up, and urged, between the Northern and Southern States. He had hitherto considered this doctrine as heretical. He still thought the distinction groundless. He sees, however, that it is persisted in; and the Southern gentlemen will not be satisfied unless they see the way open to their gaining a majority in the public councils. The consequence of such a transfer of power from the maritime to the interior and landed interest, will, he foresees, be such an oppression to commerce, that he shall be obliged to vote for the vicious principle of equality in the second branch, in order to provide some defence for the Northern States against it. But to come more to the point, either this distinction is fictitious or real; if fictitious, let it be dismissed, and let us proceed with due confidence. If it be real, instead of attempting to blend incompatible things, let us at once take a friendly leave of each other. There can be no end of demands for security, if every particular interest is to be entitled to it. The Eastern States may claim it for their fishery, and for other objects, as the Southern States claim it for their peculiar objects. In this struggle between the two ends of the Union, what part ought the Middle States, in point of policy, to take? To join their Eastern brethren, according to his ideas. If the Southern States get the power into their hands, and be joined, as they will be, with the interior country, they will inevitably bring on a war with Spain for the Mississippi. This language is already held. The interior country, leaving no property nor interest exposed to the sea, will be little affected by such a war. He wished to know what security the Northern and Middle States will have against this danger. It has been said that North Carolina, South Carolina, and Georgia only, will in a little time have a majority of the people of America. They

must in that case include the great interior country, and every thing was to be apprehended from their getting the power into their hands.

Mr. Butler (of South Carolina). The security the Southern States want is, that their negroes may not be taken from them, which some gentlemen within or without doors have a very good mind to do. It was not supposed that North Carolina, South Carolina and Georgia, would have more people than all the other States, but many more relatively to the other States, than they now have. The people and strength of America are evidently bearing southwardly, and southwestwardly.

On the question to strike out *wealth*, and to make the change as moved by Mr. Randolph (of Virginia), it passed in the affirmative,— Massachusetts, Connecticut, New-Jersey, Pennsylvania, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—9; Delaware, divided. *pp.* 1090-1-2-3-4.

SATURDAY, July 14, 1787.

Mr. Madison (of Virginia). it seemed now pretty well understood, that the real difference of interests lay, not between the large and small, but between the Northern and Southern States. THE INSTITUTION OF SLAVERY, AND ITS CONSEQUENCES, FORMED THE LINE OF DISCRIMINATION. *p.* 1104.

MONDAY, July 23, 1787.

General Pinckney reminded the Convention, that if the Committee should fail to insert some security to the Southern States against an emancipation of slaves, and taxes on exports, he should be bound by duty to his State to vote against their report. *p.* 1187.

TUESDAY, July 24, 1787.

Mr. Gouverneur Morris hoped the Committee would strike out the whole of the clause proportioning direct taxation to representation. He had only meant it as a bridge^[3] to assist us over a certain gulf; having passed the gulf, the bridge may be removed. He thought the principle laid down with so much strictness liable to strong objections. *p.* 1197.

[Footnote 3: The object was to lessen the eagerness, on one side, for, and the opposition, on the other, to the share of representation claimed by the Southern States on account of the negroes.]

WEDNESDAY, August 8, 1787.

Mr. King wished to know what influence the vote just passed was meant to have on the succeeding part of the Report, concerning the admission of slaves into the rule of representation. He could not reconcile his mind to the Article, if it was to prevent objections to the latter part. The admission of slaves was a most grating circumstance to his mind, and he believed would be so to a great part of the people of America. He had not made a strenuous opposition to it heretofore, because he had hope that this concession would have produced a readiness, which had not been manifested, to strengthen the General Government, and to mark a full confidence in it. The Report under consideration had, by the tenor of it, put an end to all those hopes. In two great points the hands of the Legislature were absolutely tied. The importation of slaves could not be prohibited. Exports could not be taxed. Is this reasonable? What are the great objects of the general system? First, defence against foreign invasion; secondly, against internal sedition. Shall all the States, then, be bound to defend each, and shall each be at liberty to introduce a weakness which will render defence more difficult? Shall one part of the United States be bound to defend another part, and that other part be at liberty, not only to increase its own danger, but to withhold the compensation for the burden? If slaves are to be imported, shall not the exports produced by their labor supply a revenue the better to enable the General Government to defend their masters? There was so much inequality and unreasonableness in all this, that the people of the Northern States could never be reconciled to it. No candid man could undertake to justify it to them. He had hoped that some accommodation would have taken place on this subject; that at least a time would have been limited for the importation of slaves. He never could agree to let them be imported without limitation, and then be represented in the National Legislature. Indeed, he could so little persuade himself of the rectitude of such a practice, that he was not sure he could assent to it under any circumstances. At all events, either slaves should not be represented, or exports should be taxable.

Mr. Sherman regarded the slave trade as iniquitous; but the point of representation having been settled after much difficulty and deliberation, he did not think himself bound to make opposition; especially as the present Article, as amended, did not preclude any arrangement whatever on that point, in another place of the report.

Mr. Gouverneur Morris moved to insert "free" before the word "inhabitants." Much, he said, would depend on this point. He never would concur in upholding domestic slavery. It was a nefarious institution. It was the curse of Heaven on the States where it prevailed. Compare the free regions of the Middle States, where a rich and noble cultivation marks the prosperity and happiness of the people, with the misery and poverty which overspread the barren wastes of Virginia, Maryland, and the other States having slaves. Travel through the whole continent, and you behold the prospect continually varying with the appearance and disappearance of slavery. The moment you leave the Eastern States, and enter New-York, the effects of the institution become visible. Passing through the Jerseys and entering Pennsylvania, every criterion of superior improvement witnesses the change. Proceed southwardly, and every step you take, through the great regions of slaves, presents a desert increasing with the increasing proportion of these wretched beings. Upon what principle is it that the slaves shall be computed in the representation? Are they men? Then make them citizens, and let them vote. Are they property? Why, then is no other property included? The houses in this city (Philadelphia) are worth more than all the wretched slaves who cover the rice swamps of South Carolina. The admission of slaves into the representation, when fairly explained, comes to this, that the inhabitant of Georgia and South Carolina, who goes to the coast of Africa, and, in defiance of the most sacred laws of humanity, tears away his fellow-creatures from their dearest connections, and damns them to the most cruel bondage, shall have more votes in a government instituted for protection of the rights of mankind, than the citizen of Pennsylvania or New-Jersey, who views with a laudable horror so nefarious a practice. He would add, that domestic slavery is the most prominent feature in the aristocratic countenance of the proposed Constitution. The vassalage of the poor has ever been the favorite offspring of aristocracy. And what is the proposed compensation to the Northern States, for a sacrifice of every principle of right, of every impulse of humanity? They are to bind

themselves to march their militia for the defence of the Southern States, for their defence against those very slaves of whom they complain. They must supply vessels and seamen, in case of foreign attack. The Legislature will have indefinite power to tax them by excises, and duties on imports; both of which will fall heavier on them than on the Southern inhabitants; for the bohea tea used by a Northern freeman will pay more tax than the whole consumption of the miserable slave, which consists of nothing more than his physical subsistence and the rag that covers his nakedness. On the other side, the Southern States are not to be restrained from importing fresh supplies of wretched Africans, at once to increase the danger of attack, and the difficulty of defence; nay, they are to be encouraged to it, by an assurance of having their votes in the National Government increased in proportion; and are, at the same time, to have their exports and their slaves exempt from all contributions for the public service. Let it not be said, that direct taxation is to be proportioned to representation. It is idle to suppose that the General Government can stretch its hand directly into the pockets of the people, scattered over so vast a country. They can only do it through the medium of exports, imports and excises. For what, then, are all the sacrifices to be made? He would sooner submit himself to a tax for paying for all the negroes in the United States, than saddle posterity with such a Constitution.

Mr. Dayton seconded the motion. He did it, he said, that his sentiments on the subject might appear, whatever might be the fate of the amendment.

Mr. Sherman did not regard the admission of the negroes into the ratio of representation, as liable to such insuperable objections. It was the freemen of the Southern States who were, in fact, to be represented according to the taxes paid by them, and the negroes are only included in the estimate of the taxes. This was his idea of the matter.

Mr. Pinckney considered the fisheries, and the western frontier, as more burthensome to the United States than the slaves. He thought this could be demonstrated, if the occasion were a proper one.

Mr. Wilson thought the motion premature. An agreement to the clause would be no bar to the object of it.

On the question, on the motion to insert "free" before "inhabitants," New-Jersey, aye—1; New Hampshire, Massachusetts, Connecticut, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, Georgia, no—10. pp. 1261-2-3-4-5-6.

TUESDAY, August 21, 1787.

Mr. L. Martin proposed to vary Article 7, Section 4, so as to allow a prohibition or tax on the importation of slaves. In the first place, as five slaves are to be counted as three freemen, in the apportionment of Representatives, such a clause would leave an encouragement to this traffic. In the second place, slaves weakened one part of the Union, which the other parts were bound to protect; the privilege of importing them was therefore unreasonable. And in the third place, it was inconsistent with the principles of the Revolution, and dishonorable to the American character, to have such a feature in the Constitution.

Mr. Rutledge did not see how the importation of slaves could be encouraged by this section. He was not apprehensive of insurrections, and would readily exempt the other states from the obligation to protect the Southern against them. Religion and humanity had nothing to do with this question. Interest alone is the governing principle with nations. The true question at present is, whether the Southern States shall or shall not be parties to the Union. If the Northern States consult their interest, they will not oppose the increase of slaves, which will increase the commodities of which they will become the carriers.

Mr. Ellsworth was for leaving the clause as it stands. Let every State import what it pleases. The morality or wisdom of slavery are considerations belonging to the States themselves. What enriches a part enriches the whole, and the States are the best judges of their particular interest. The Old Confederation had not meddled with this point; and he did not see any greater necessity for bringing it within the policy of the new one.

Mr. Pinckney. South Carolina can never receive the plan if it prohibits the slave trade. In every proposed extension of the powers of Congress, that State has expressly and watchfully excepted that of meddling with the importation of negroes. If the States be all left at liberty on this subject,

South Carolina may perhaps, by degrees, do of herself what is wished, as Virginia and Maryland already have done. Adjourned. *pp.* 1388-9.

WEDNESDAY, August 22, 1787.

Article 7, Section 4, was resumed.

Mr. Sherman was for leaving the clause as it stands. He disapproved of the slave trade; yet as the States were now possessed of the right to import slaves, as the public good did not require it to be taken from them, and as it was expedient to have as few objections as possible to the proposed scheme of government, he thought it best to leave the matter as we find it. He observed that the abolition of slavery seemed to be going on in the United States, and that the good sense of the several States would probably by degrees complete it. He urged on the Convention the necessity of despatching its business.

Col. Mason. This infernal traffic originated in the avarice of British merchants. The British Government constantly checked the attempts of Virginia to put a stop to it. The present question concerns not the importing States alone, but the whole Union. The evil of having slaves was experienced during the late war. Had slaves been treated as they might have been by the enemy, they would have proved dangerous instruments in their hands. But their folly dealt by the slaves as it did by the tories. He mentioned the dangerous insurrections of the slaves in Greece and Sicily; and the instructions given by Cromwell to the commissioners sent to Virginia, to arm the servants and slaves, in case other means of obtaining its submission should fail. Maryland and Virginia he said had already prohibited the importation of slaves expressly. North Carolina had done the same in substance. All this would be in vain, if South Carolina and Georgia be at liberty to import. The Western people are already calling out for slaves for their new lands; and will fill that country with slaves, if they can be got through South Carolina and Georgia. Slavery discourages arts and manufactures. The poor despise labor when performed by slaves. They prevent the emigration of whites, who really enrich and strengthen a country. They produce the most pernicious effect on manners. Every master of slaves is born a petty tyrant. They bring the judgment of Heaven on a country. As nations cannot be rewarded or punished in the next world, they

must be in this. By an inevitable chain of causes and effects, Providence punishes national sins by national calamities. He lamented that some of our Eastern brethren had, from a lust of gain, embarked in the nefarious traffic. As to the States being in possession of the right to import, this was the case with many other rights, now to be properly given up. He held it essential in every point of view, that the General Government should have power to prevent the increase of slavery.

Mr. Ellsworth, as he had never owned a slave, could not judge of the effects of slavery on character. He said, however, that if it was to be considered in a moral light, we ought to go further and free those already in the country. As slaves also multiply so fast in Virginia and Maryland that it is cheaper to raise than import them, whilst in the sickly rice swamps foreign supplies are necessary, if we go no further than is urged, we shall be unjust towards South Carolina and Georgia. Let us not intermeddle. As population increases, poor laborers will be so plenty as to render slaves useless. Slavery, in time, will not be a speck in our country. Provision is already made in Connecticut for abolishing it. And the abolition has already taken place in Massachusetts. As to the danger of insurrections from foreign influence, that will become a motive to kind treatment of the slaves.

Mr. Pinckney. If slavery be wrong, it is justified by the example of all the world. He cited the case of Greece, Rome and other ancient States; the sanction given by France, England, Holland and other modern States. In all ages, one half of mankind have been slaves. If the Southern States were let alone, they will probably of themselves stop importations. He would himself, as a citizen of South Carolina, vote for it. An attempt to take away the right, as proposed, will produce serious objections to the Constitution, which he wished to see adopted.

Gen. Pinckney declared it to be his firm opinion that if himself and all his colleagues were to sign the Constitution and use their personal influence, it would be of no avail towards obtaining the assent of their constituents. South Carolina and Georgia cannot do without slaves. As to Virginia, she will gain by stopping the importations. Her slaves will rise in value, and she has more than she wants. It would be unequal, to require South Carolina and Georgia, to confederate on such unequal terms. He said the Royal assent, before the Revolution, had never been refused to South Carolina, as

to Virginia. He contended that the importation of slaves would be for the interest of the whole Union. The more slaves, the more produce to employ the carrying trade; the more consumption also; and the more of this, the more revenue for the common treasury. He admitted it to be reasonable that slaves should be dutied like other imports; but should consider a rejection of the clause as an exclusion of South Carolina from the Union.

Mr. Baldwin had conceived national objects alone to be before the Convention; not such as, like the present, were of a local nature. Georgia was decided on this point. That State has always hitherto supposed a General Government to be the pursuit of the central States, who wished to have a vortex for every thing; that her distance would preclude her, from equal advantage; and that she could not prudently purchase it by yielding national powers. From this it might be understood, in what light she would view an attempt to abridge one of her favorite prerogatives. If left to herself, she may probably put a stop to the evil. As one ground for this conjecture, he took notice of the sect of —; which he said was a respectable class of people, who carried their ethics beyond the mere *equality of men*, extending their humanity to the claims of the whole animal creation.

Mr. Wilson observed that if South Carolina and Georgia were themselves disposed to get rid of the importation of slaves in a short time, as had been suggested, they would never refuse to unite because the importation might be prohibited. As the section now stands, all articles imported are to be taxed. Slaves alone are exempt. This is in fact a bounty on that article.

Mr. Gerry thought we had nothing to do with the conduct of the States as to slaves, but ought to be careful not to give any sanction to it.

Mr. Dickinson considered it as inadmissible, on every principle of honor and safety, that the importation of slaves should be authorized to the States by the Constitution. The true question was, whether the national happiness would be promoted or impeded by the importation; and this question ought to be left to the National Government, not to the States particularly interested. If England and France permit slavery, slaves are, at the same time, excluded from both those kingdoms. Greece and Rome were made unhappy by their slaves. He could not believe that the Southern States would refuse to confederate on the account apprehended; especially as the

power was not likely to be immediately exercised by the General Government.

Mr. Williamson stated the law of North Carolina on the subject, to wit, that it did not directly prohibit the importation of slaves. It imposed a duty of £5 on each slave imported from Africa; £10 on each from elsewhere; and £50 on each from a State licensing manumission. He thought the Southern States could not be members of the Union, if the clause should be rejected; and that it was wrong to force any thing down not absolutely necessary, and which any State must disagree to.

Mr. King thought the subject should be considered in a political light only. If two states will not agree to the Constitution, as stated on one side, he could affirm with equal belief, on the other, that great and equal opposition would be experienced from the other States. He remarked on the exemption of slaves from duty, whilst every other import was subjected to it, as an inequality that could not fail to strike the commercial sagacity of the Northern and Middle States.

Mr. Langdon was strenuous for giving the power to the General Government. He could not, with a good conscience, have it with the States, who could then go on with the traffic, without being restrained by the opinions here given, that they will themselves cease to import slaves.

Gen. Pinckney thought himself bound to declare candidly, that he did not think South Carolina would stop her importations of slaves, in any short time; but only stop them occasionally as she now does. He moved to commit the clause, that slaves might be made liable to an equal tax with other imports; which he thought right, and which would remove one difficulty that had been started.

Mr. Rutledge. If the Convention thinks that North Carolina, South Carolina, and Georgia, will ever agree to the plan, unless their right to import slaves be untouched, the expectation is vain. The people of those States will never be such fools, as to give up so important an interest. He was strenuous against striking out the section, and seconded the motion of Gen. Pinckney for a commitment.

Mr. Gouverneur Morris wished the whole subject to be committed including the clauses relating to taxes on exports and to a navigation act. These things may form a bargain among the Northern and Southern States.

Mr. Butler declared that he never would agree to the power of taxing exports.

Mr. Sherman said it was better to let the Southern States import slaves, than to part with them, if they made that a *sine qua non*. He was opposed to a tax on slaves imported, as making the matter worse, because it implied they were *property*. He acknowledged that if the power of prohibiting the importation should be given to the General Government, that it would be exercised. He thought it would be its duty to exercise the power.

Mr. Read was for the commitment, provided the clause concerning taxes on exports should also be committed.

Mr. Sherman observed that that clause had been agreed to, and therefore could not be committed.

Mr. Randolph was for committing, in order that some middle ground might, if possible, be found. He could never agree to the clause as it stands. He would sooner risk the Constitution. He dwelt on the dilemma to which the Convention was exposed. By agreeing to the clause, it would revolt the Quakers, the Methodists, and many others in the States having no slaves. On the other hand, two States might be lost to the Union. Let us then, he said, try the chance of a commitment.

On the question for committing the remaining part of Sections 4 and 5, of Article 7,—Connecticut, New Jersey, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—7; New Hampshire, Pennsylvania, Delaware, no—3; Massachusetts absent. p. 1390-97. Friday, August 24, 1787.

In Convention,—Governor Livingston, from the committee of eleven, to whom were referred the two remaining clauses of the fourth section, and the fifth and sixth sections, of the seventh Article, delivered in the following Report:

"Strike out so much of the fourth section as was referred to the Committee, and insert, 'The migration or importation of such persons as the several States, now existing, shall think proper to admit, shall not be prohibited by the Legislature prior to the year 1800; but a tax or duty may be imposed on such migration or importation, at a rate not exceeding the average of the duties laid on imports.'

"The fifth Section to remain as in the Report.

"The sixth Section[4] to be stricken out." p. 1415.

[Footnote 4: This sixth Section was, "No Navigation act shall be passed without the assent of two-thirds of the members present in each House."—EDITOR.]

Saturday, August 25, 1787.

The Report of the Committee of eleven (see Friday, the twenty-fourth) being taken up,—

Gen. Pinckney moved to strike out the words, "the year eighteen hundred," as the year limiting the importation of slaves; and to insert the words, "the year eighteen hundred and eight."

Mr. Gorham seconded the motion.

Mr. Madison. Twenty years will produce all the mischief that can be apprehended from the liberty to import slaves. So long a term will be more dishonorable to the American character, than to say nothing about it in the Constitution.

On the motion, which passed in the affirmative,—New Hampshire, Massachusetts, Connecticut, Maryland, North Carolina, South Carolina, Georgia, aye—7; New Jersey, Pennsylvania, Delaware, Virginia, no—4.

Mr. Gouverneur Morris was for making the clause read at once, "the importation of slaves in North Carolina, South Carolina, and Georgia, shall not be prohibited, &c." This he said, would be most fair, and would avoid the ambiguity by which, under the power with regard to naturalization, the

liberty reserved to the States might be defeated. He wished it to be known, also, that this part of the Constitution was a compliance with those States. If the change of language, however, should be objected to, by the members from those States, he should not urge it.

Col. Mason was not against using the term "slaves," but against naming North Carolina, South Carolina, and Georgia, lest it should give offence to the people of those States.

Mr. Sherman liked a description better than the terms proposed, which had been declined by the old Congress, and were not pleasing to some people.

M. Clymer concurred with Mr. Sherman.

Mr. Williamson said, that both in opinion and practice he was against slavery; but thought it more in favor of humanity, from a view of all circumstances, to let in South Carolina and Georgia on those terms, than to exclude them from the Union.

Mr. Gouverneur Morris withdrew his motion.

Mr. Dickinson wished the clause to be confined to the States which had not themselves prohibited the importation of slaves; and for that purpose moved to amend the clause, so as to read: "The importation of slaves into such of the States as shall permit the same, shall not be prohibited by the Legislature of the United States, until the year 1808;" which was disagreed to, *nem. con.*[\[5\]](#)

[Footnote [5](#): In the printed Journals, Connecticut, Virginia, and Georgia, voted in the affirmative.]

The first part of the Report was then agreed to, amended as follows: "The migration or importation of such persons as the several States now existing shall think proper to admit, shall not be prohibited by the Legislature prior to the year 1808,"—

New Hampshire, Massachusetts, Connecticut, Maryland, North Carolina, South Carolina, Georgia, aye—7; New Jersey, Pennsylvania, Delaware, Virginia, no—4.

Mr. Baldwin, in order to restrain and more explicitly define, "the average duty," moved to strike out of the second part the words, "average of the duties and on imports," and insert "common impost on articles not enumerated;" which was agreed to, *nem. con.*

Mr. Sherman was against this second part, as acknowledging men to be property, by taxing them as such under the character of slaves.

Mr. King and Mr. Langdon considered this as the price of the first part.

Gen. Pinckney admitted that it was so.

Col. Mason. Not to tax, will be equivalent to a bounty on, the importation of slaves.

Mr. Gorham thought that Mr. Sherman should consider the duty, not as implying that slaves are property, but as a discouragement to the importation of them.

Mr. Gouverneur Morris remarked, that, as the clause now stands, it implies that the Legislature may tax freemen imported.

Mr. Sherman, in answer to Mr. Gorham, observed, that the smallness of the duty showed revenue to be the object, not the discouragement of the importation.

Mr. Madison thought it wrong to admit in the Constitution the idea that there could be property in men. The reason of duties did not hold, as slaves are not, like merchandise, consumed, &c.

Col. Mason, in answer to Mr. Gouverneur Morris. The provision as it stands, was necessary for the case of convicts; in order to prevent the introduction of them.

It was finally agreed, *nem. con.*, to make the clause read: "but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person;" and then the second part, as amended, was agreed to. *pp.* 1427 to 30.

Tuesday, August 28, 1787.

Article 14, was then taken up.

General Pinckney was not satisfied with it. He seemed to wish some provision should be included in favor of property in slaves.

On the question on Article 14,—

New Hampshire, Massachusetts, Connecticut, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, aye—9; South Carolina, no—1; Georgia, divided.

Article 15, being then taken up, the words, "high misdemeanor," were struck out, and the words, "other crime," inserted, in order to comprehend all proper cases; it being doubtful whether "high misdemeanor" had not a technical meaning too limited.

Mr. Butler and Mr. Pinckney moved to require "fugitive slaves and servants to be delivered up like criminals."

Mr. Wilson. This would oblige the Executive of the State to do it, at the public expense.

Mr. Sherman saw no more propriety in the public seizing and surrendering a slave or servant, than a horse.

Mr. Butler withdrew his proposition, in order that some particular provision might be made, apart from this article.

Article 15, as amended, was then agreed to, *nem. con.* pp. 1447-8.

Wednesday, August 29, 1787.

General Pinckney said it was the true interest of the Southern States to have no regulation of commerce; but considering the loss brought on the commerce of the Eastern States by the Revolution, their liberal conduct towards the views[6] of South Carolina, and the interest the weak Southern States had in being united with the strong Eastern States, he thought it proper that no fetters should be imposed on the power of making commercial regulations, and that his constituents, though prejudiced against the Eastern States, would be reconciled to this liberality. He had, himself, he said, prejudices against the Eastern States before he came here, but

would acknowledge that he had found them as liberal and candid as any men whatever. *p.* 1451.

[Footnote [6](#): He meant the permission to import slaves. An understanding on the two subjects of *navigation* and *slavery*, had taken place between those parts of the Union, which explains the vote on the motion depending, as well as the language of General Pinckney and others.]

Mr. Butler moved to insert after Article 15, "If any person bound to service or labor in any of the United States, shall escape into another State, he or she shall not be discharged from such service or labor, in consequence of any regulations subsisting in the State to which they escape, but shall be delivered up to the person justly claiming their service or labor,"—which was agreed to, *nem. con.* *p.* 1456.

Monday, September 10, 1787.

Mr. Rutledge said he never could agree to give a power by which the articles relating to slaves might be altered by the States not interested in that property, and prejudiced against it. In order to obviate this objection, these words were added to the proposition: "provided that no amendments, which may be made prior to the year 1808 shall in any manner affect the fourth and fifth sections of the seventh Article." *p.* 1536.

Thursday, September 13, 1787.

Article 1, Section 2. On motion of Mr. Randolph, the word "servitude" was struck out, and "service" unanimously[[Z](#)] inserted, the former being thought to express the condition of slaves, and the latter the obligations of free persons.

[Footnote [Z](#): See page 372 of the printed journal.]

Mr. Dickinson and Mr. Wilson moved to strike out, "and direct taxes," from Article 1, Section 2, as improperly placed in a clause relating merely to the Constitution of the House of Representatives.

Mr. Gouverneur Morris. The insertion here was in consequence of what had passed on this point; in order to exclude the appearance of counting the negroes in the *representation*. The including of them may now be referred to the object of direct taxes, and incidentally only to that representation.

On the motion to strike out, "and direct taxes," from this place,—New Jersey, Delaware, Maryland, aye—3; New Hampshire, Massachusetts, Connecticut, Pennsylvania, Virginia, North Carolina, South Carolina, Georgia, no—8. *pp.* 1569-70.

Saturday, September 15, 1787.

Article 4, Section 2, (the third paragraph,) the term "legally" was struck out; and the words, "under the laws thereof," inserted after the word "State," in compliance with the wish of some who thought the term *legal* equivocal, and favoring the idea that slavery was legal in a moral view. *p.* 1589.

Mr. Gerry stated the objections which determined him to withhold his name from the Constitution: 1—2—3—4—5—6, that three fifths of the blacks are to be represented, as if they were freemen. *p.* 1595.

LIST OF MEMBERS
OF THE FEDERAL CONVENTION WHO FORMED THE
CONSTITUTION OF THE UNITED STATES.

From
Attended.

New Hampshire, July 23, 1787.	1 John Langdon, <i>John Pickering,</i>
" 23.	2 Nicholas Gilman, <i>Benjamin West.</i>
Massachusetts, May 29.	<i>Francis Dana,</i> Elbridge Gerry,
" 25.	3 Nath'l Gorham,

" 25.	4 Rufus King,
	Caleb Strong,
" 28.	(No appointment.)
Rhode Island,	5 W.S. Johnson,
Connecticut,	
June 2.	6 Roger Sherman,
May 30.	Oliver Ellsworth,
" 29.	Robert Yates,
New York,	
" 25.	7 Alex'r Hamilton,
" 25.	John Lansing,
June 2.	
New Jersey,	8 Wm. Livingston,
" 5.	9 David Brearly,
May 5.	Wm. C. Houston,
do.	
do.	10 Wm. Patterson,
	<i>John Nielson,</i>
	<i>Abraham Clark.</i>
	11 Jonathan Dayton,
June 21.	
Pennsylvania,	12 Benj. Franklin,
May 28.	
do.	13 Thos. Mifflin,
Pennsylvania.	14 Robert Morris,
May 25.	15 Gen. Clymer,
" 28.	

	16 Thos. Fitzsimmons,
" 25.	
	17 Jared Ingersoll,
" 28.	
	18 James Wilson,
" 25.	
	19 Gouv'r Morris,
" 25.	
Delaware,	20 Geo. Reed,
" 25.	
	21 G. Bedford, Jr.
" 28.	
	22 John Dickinson,
" 28.	
	23 Richard Bassett,
" 25.	
	24 Jacob Broom,
" 25.	
Maryland,	25 James M'Henry,
" 29.	
	26 Daniel of St. Tho. Jenifer,
June 2.	
	27 Daniel Carroll,
July 9.	
	John F. Mercer,
Aug. 6.	
	Luther Martin,
June 9.	
Virginia,	28 G. Washington,
May 25.	
	<i>Patrick Henry, (declined.)</i>
	Edmund Randolph,
" 25.	
	29 John Blair,
" 25.	
	30 Jas. Madison, Jr.
" 25.	

" 25.	George Mason,
" 25.	George Wythe,
" 25.	James McClurg, (in room P. Henry)
North Carolina,	<i>Rich'd Caswell</i> (resigned).
May 25.	Alex'r Martin,
" 25.	Wm. R. Davie,
June 20.	31 Wm. Blount (in room of R. Caswell),
May 25.	<i>Willie Jones</i> (declined). 32 R. D. Spaight,
May 25.	33 Hugh Williamson, (in room of W. Jones,)
South Carolina,	34 John Rutledge,
" 25.	35 Chas. C. Pinckney,
" 25.	36 Chas. Pinckney,
" 25.	37 Peirce Butler,
" 25.	38 William Few,
Georgia,	39 Abr'm Baldwin,
" 25.	William Pierce,
June 11.	<i>George Walton.</i>
May 31.	Wm. Houston,

June 1.

Nath'l Pendleton.

Those with numbers before their names signed the Constitution. 39

Those in italics never attended.

10

Members who attended, but did not sign the Constitution, 16

—

65

Extract from a Speech of Luther Martin, (delivered before the Legislature of Maryland,) one of the delegates from Maryland to the Convention that formed the Constitution of the United States.

With respect to that part of the *second* section of the *first* Article, which relates to the apportionment of representation and direct taxation, there were considerable objections made to it, besides the great objection of inequality—It was urged, that no principle could justify taking *slaves* into computation in apportioning the number of *representatives* a state should have in the government—That it involved the absurdity of increasing the power of a state in making laws for *free men* in proportion as that State violated the rights of freedom—That it might be proper to take slaves into consideration, when *taxes* were to be apportioned, because it had a tendency to *discourage slavery*; but to take them into account in giving representation tended to *encourage the slave trade*, and to make it the *interest* of the states to *continue that infamous traffic*—That slaves could not be taken into account as *men*, or *citizens*, because they were not admitted to the *rights of citizens*, in the states which adopted or continued slavery—If they were to be taken into account as *property*, it was asked, what peculiar circumstance should render this property (of all others the most odious in its nature) entitled to the high privilege of conferring consequence and power in the government to its possessors, rather than *any other* property: and why *slaves* should, as property, be taken into account rather than horses, cattle, mules, or any other species; and it was observed by an honorable member

from Massachusetts, that he considered it as dishonorable and humiliating to enter into compact with the *slaves* of the *southern states*, as it would with the *horses* and *mules* of the *eastern*.

By the ninth section of this Article, the importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited prior to the year 1808, but a duty may be imposed on such importation, not exceeding ten dollars for each person.

The design of this clause is to prevent the general government from prohibiting the importation of slaves; but the same reasons which caused them to strike out the word "national," and not admit the word "stamps," influenced them here to guard against the word "*slaves*." They anxiously sought to avoid the admission of expressions which might be odious in the ears of Americans, although they were willing to admit into their system those *things* which the expression signified; and hence it is that the clause is so worded as really to authorize the general government to impose a duty of ten dollars on every foreigner who comes into a State to become a citizen, whether he comes absolutely free, or qualifiedly so as a servant; although this is contrary to the design of the framers, and the duty was only meant to extend to the importation of slaves.

This clause was the subject of a great diversity of sentiment in the Convention. As the system was reported by the committee of detail, the provision was general, that such importation should not be prohibited, without confining it to any particular period. This was rejected by eight States—Georgia, South Carolina, and, I think, North Carolina, voting for it.

We were then told by the delegates of the two first of those states, that their states would never agree to a system, which put it in the power of the general government to prevent the importation of slaves, and that they, as delegates from those states, must withhold their assent from such a system.

A committee of one member from each State was chosen by ballot, to take this part of the system under their consideration, and to endeavor to agree upon some report, which should reconcile those States. To this committee also was referred the following proposition, which had been reported by the committee of detail, to wit: "No navigation act shall be passed without the assent of two-thirds of the members present in each house;" a proposition

which the staple and commercial States were solicitous to retain, lest their commerce should be placed too much under the power of the Eastern States; but which these last States were as anxious to reject. This committee, of which also I had the honor to be a member, met and took under their consideration the subjects committed to them. I found the *eastern* States, notwithstanding their *aversion to slavery*, were very willing to indulge the southern States, at least with a temporary liberty to prosecute the *slave trade*, provided the southern states would in their turn gratify them, by laying no restriction on navigation acts; and after a very little time, the committee, by a great majority, agreed on a report, by which the general government was to be prohibited from preventing the importation of slaves for a limited time, and the restricted clause relative to navigation acts was to be omitted.

This report was adopted by a majority of the Convention, but not without considerable opposition.

It was said, we had just assumed a place among independent nations in consequence of our opposition to the attempts of Great Britain to *enslave us*; that this opposition was grounded upon the preservation of those, rights to which God and nature had entitled us, not in *particular*, but in *common* with all the rest of mankind; that we had appealed to the Supreme Being for his assistance, as the God of freedom, who could not but approve our efforts to preserve the *rights* which he had thus imparted to his creatures; that now, when we had scarcely risen from our knees, from supplicating his mercy and protection in forming our government over a free people, a government formed pretendedly on the principles of liberty, and for its preservation,—in that government to have a provision not only putting it out of its power to restrain and prevent the slave trade, even encouraging that most infamous traffic, by giving the States the power and influence in the Union in proportion as they cruelly and wantonly sported with the rights of their fellow-creatures, ought to be considered as a solemn mockery of, and an insult to, that God whose protection we had then implored, and could not fail to hold us up in detestation, and render us contemptible to every true friend of liberty in the world. It was said, it ought to be considered that national crimes can only be, and frequently are, punished in this world by national punishments; and that the continuance of the slave trade, and thus giving it a national sanction, and encouragement, ought to be considered as

justly exposing us to the displeasure and vengeance of him who is equally Lord of all, and who views with equal eye the poor African slave and his American master!

It was urged that by this system, we were giving the general government full and absolute power to regulate commerce, under which general power it would have a right to restrain, or totally prohibit, the slave trade: it must, therefore, appear to the world absurd and disgraceful to the last degree, that we should except from the exercise of that power, the only branch of commerce which is unjustifiable in its nature, and contrary to the rights of mankind. That, on the contrary, we ought rather to prohibit expressly in our Constitution, the further importation of slaves, and to authorize the general government, from time to time, to make such regulations as should be thought most advantageous for the gradual abolition of slavery, and the emancipation of the slaves which are already in the States. That slavery is inconsistent with the genius of republicanism and has a tendency to destroy those principles on which it is supported, as it lessens the sense of the equal rights of mankind, and habituates us to tyranny and oppression. It was further urged, that, by this system of government, every State is to be protected both from foreign invasion and from domestic insurrections; from this consideration, it was of the utmost importance it should have a power to restrain the importation of slaves, since, in proportion as the number of slaves are increased in any State, in the same proportion the State is weakened and exposed to foreign invasion or domestic insurrection, and by so much less will it be able to protect itself against either, and therefore will by so the much want aid from, and be a burden to, the Union.

It was further said, that, as in this system we were giving the general government a power, under the idea of national character, or national interest, to regulate even our weights and measures, and have prohibited all possibility of emitting paper money, and passing insolvent laws, &c., it must appear still more extraordinary, that we should prohibit the government from interfering with the slave trade, than which nothing could so materially affect both our national honor and interest.

These reasons influenced me, both on the committee and in convention, most decidedly to oppose and vote against the clause, as it now makes part of the system.

You will perceive, sir, not only that the general government is prohibited from interfering in the slave-trade before the year eighteen hundred and eight, but that there is no provision in the Constitution that it shall afterwards be prohibited, nor any security that such prohibition will ever take place; and I think there is great reason to believe, that, if the importation of slaves is permitted until the year eighteen hundred and eight, it will not be prohibited afterwards. At this time, we do not generally hold this commerce in so great abhorrence as we have done. When our liberties were at stake, we warmly felt for the common rights of men. The danger being thought to be past, which threatened ourselves, we are daily growing more insensible to those rights. In those States which have restrained or prohibited the importation of slaves, it is only done by legislative acts, which may be repealed. When those States find that they must, in their national character and connexion, suffer in the disgrace, and share in the inconveniences attendant upon that detestable and iniquitous traffic, they may be desirous also to share in the benefits arising from it; and the odium attending it will be greatly effaced by the sanction which is given to it in the general government.

By the next paragraph, the general government is to have a power of suspending the *habeas corpus act*, in cases of *rebellion* or *invasion*.

As the State governments have a power of suspending the habeas corpus act in those cases, it was said, there could be no reason for giving such a power to the general government; since, whenever the State which is invaded, or in which an insurrection takes place, finds its safety requires it, it will make use of that power. And it was urged, that if we gave this power to the general government, it would be an engine of oppression in its hands; since whenever a State should oppose its views, however arbitrary and unconstitutional, and refuse submission to them, the general government may declare it to be an act of rebellion, and, suspending the habeas corpus act, may seize upon the persons of those advocates of freedom, who have had virtue and resolution enough to excite the opposition, and may imprison them during its pleasure in the remotest part of the Union; so that a citizen of Georgia might be *bastiled* in the furthest part of New Hampshire; or a citizen of New Hampshire in the furthest extreme of the South, cut off from their family, their friends, and their every connexion. These considerations induced me, sir, to give my negative also to this clause.

EXTRACTS FROM DEBATES IN THE SEVERAL STATE
CONVENTIONS ON THE ADOPTION OF THE UNITED STATES'
CONSTITUTION.

MASSACHUSETTS CONVENTION.

The third paragraph of the 2d section being read,

Mr. King rose to explain it. There has, says he, been much misconception of this section. It is a principle of this Constitution, that representation and taxation should go hand in hand. This paragraph states, that the numbers of free persons shall be determined, by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. These persons are the slaves. By this rule is representation and taxation to be apportioned. And it was adopted, because it was the language of all America.

Mr. Widgery asked, if a boy of six years of age was to be considered as a free person?

Mr. King in answer said, all persons born free were to be considered as freemen; and to make the idea of *taxation by numbers* more intelligible, said that five negro children of South Carolina, are to pay as much tax as the three Governors of New Hampshire, Massachusetts, and Connecticut.

Mr. Gorham thought the proposed section much in favor of Massachusetts; and if it operated against any state, it was Pennsylvania, because they have more white persons *bound* than any other.

Judge Dana, in reply to the remark of some gentlemen, that the southern States were favored in this mode of apportionment, by having five of their negroes set against three persons in the eastern, the honorable judge observed, that the negroes of the southern States work no longer than when the eye of the driver is on them. Can, asked he, that land flourish like this, which is cultivated by the hands of freemen? Are not *three* of these independent freemen of more real advantage to a State, than *five* of those poor slaves?

Mr. Nasson remarked on the statement of the honorable Mr. King, by saying that the honorable gentleman should have gone further, and shown us the other side of the question. It is a good rule that works both ways—and the gentlemen should also have told us, that three of our infants in the cradle, are to be rated as high as five of the working negroes of Virginia. Mr. N. adverted to a statement of Mr. King, who had said, that five negro children of South Carolina were equally rateable as three governors of New England, and wished, he said, the honorable gentleman had considered this question upon the other side—as it would then appear that this State will pay as great a tax for three children in the cradle, as any of the southern States will for five hearty working negro men. He hoped, he said, while we were making a new government, we should make it better than the old one: for if we had made a bad bargain before, as had been hinted, it was a reason why we should make a better one now.

Mr. Dawes said, he was sorry to hear so many objections raised against the paragraph under consideration. He thought them wholly unfounded; that the black inhabitants of the southern States must be considered either as slaves, and as so much property, or in the character of so many freemen; if the former, why should they not be wholly represented? Our *own* State laws and Constitution would lead us to consider those blacks as *freemen*, and so indeed would our own ideas of natural justice: if, then, they are freemen, they might form an equal basis for representation as though they were all white inhabitants. In either view, therefore, he could not see that the northern States would suffer, but directly to the contrary. He thought, however, that gentlemen would do well to connect the passage in dispute with another article in the Constitution, that permits Congress, in the year 1808, wholly to prohibit the importation of slaves, and in the mean time to impose a duty of ten dollars a head on such blacks as should be imported before that period. Besides, by the new Constitution, every particular State is left to its own option totally to prohibit the introduction of slaves into its own territories. What could the convention do more? The members of the southern States, like ourselves, have *their* prejudices. It would not do to abolish slavery, by an act of Congress, in a moment, and so destroy what our southern brethren consider as property. But we may say, that although slavery is not smitten by an apoplexy, yet it has received a mortal wound and will die of a consumption.

Mr. Neal (from Kittery,) went over the ground of objection to this

Mr. President, shall it be said, that after we have established our own independence and freedom, we make slaves of others? Oh! Washington, what a name has he had! How he has immortalized himself! but he holds those in slavery who have a good right to be free as he has—he is still for self; and, in my opinion, his character has sunk 50 per cent.

On the other side, gentlemen said, that the step taken in this article, towards the abolition of slavery, was one of the beauties of the Constitution. They observed, that in the confederation there was no provision whatever for its ever being abolished; but this Constitution provides, that Congress may, after 20 years, totally annihilate the slave trade; and that, as all the States, except two, have passed laws to this effect, it might reasonably be expected, that it would then be done. In the interim, all the States were at liberty to prohibit it.

Saturday, January 26.—[The debate on the 9th section still continued desultory—and consisted of similar objections, and answers thereto, as had before been used. Both sides deprecated the slave trade in the most pointed terms; on one side it was pathetically lamented, by Mr. Nason, Major Lusk, Mr. Neal, and others, that this Constitution provided for the continuation of the slave trade for 20 years. On the other, the honorable Judge Dana, Mr. Adams and others, rejoiced that a door was now to be opened for the annihilation of this odious, abhorrent practice, in a certain time.]

Gen. Heath. Mr. President,—By my indisposition and absence, I have lost several important opportunities: I have lost the opportunity of expressing my sentiments with a candid freedom, on some of the paragraphs of the system, which have lain heavy on my mind. I have lost the opportunity of expressing my warm approbation on some of the paragraphs. I have lost the opportunity of hearing those judicious, enlightening and convincing arguments, which have been advanced during the investigation of the system. This is my misfortune, and I must bear it. The paragraph respecting the migration or importation of such persons as any of the States now existing shall think proper to admit, &c., is one of those considered during my absence, and I have heard nothing on the subject, save what has been mentioned this morning; but I think the gentlemen who have spoken, have

carried the matter rather too far on both sides. I apprehend that it is not in our power to do any thing for or against those who are in slavery in the southern States. No gentleman within these walls detests every idea of slavery more than I do: it is generally detested by the people of this Commonwealth; and I ardently hope that the time will soon come, when our brethren in the southern States will view it as we do, and put a stop to it; but to this we have no right to compel them. Two questions naturally arise: if we ratify the Constitution, shall we do any thing by our act to hold the blacks in slavery—or shall we become the partakers of other men's sins? I think neither of them. Each State is sovereign and independent to a certain degree, and they have a right, and will regulate their own internal affairs, as to themselves appears proper; and shall we refuse to eat, or to drink, or to be united, with those who do not think, or act, just as we do? surely not. We are not in this case partakers of other men's sins, for in nothing do we voluntarily encourage the slavery of our fellow-men; a restriction is laid on the Federal Government, which could not be avoided, and a union take place. The federal Convention went as far as they could; the migration or importation, &c., is confined to the States, now *existing only*, new States cannot claim it. Congress, by their ordinance for erecting new States, some time since, declared that the new States shall be republican, and that there shall be no slavery in them. But whether those in slavery in the southern States will be emancipated after the year 1808, I do not pretend to determine: I rather doubt it.

Mr. Neal rose and said, that as the Constitution at large, was now under consideration, he would just remark, that the article which respected the Africans, was the one which laid on his mind—and, unless his objections to that were removed, it must, how much soever he liked the other parts of the Constitution, be a sufficient reason for him to give his negative to it.

Major Lusk concurred in the idea already thrown out in the debate, that although the insertion of the amendments in the Constitution was devoutly wished, yet he did not see any reason to suppose they ever would be adopted. Turning from the subject of amendments, the Major entered largely into the consideration of the 9th section, and in the most pathetic and feeling manner, described the miseries of the poor natives of Africa, who are kidnapped and sold for slaves. With the brightest colors he painted

their happiness and ease on their native shores, and contrasted them with their wretched, miserable and unhappy condition, in a state of slavery.

Rev. Mr. Buckus. Much, sir, has been said about the importation of slaves into this country. I believe that, according to my capacity, no man abhors that wicked practice more than I do, and would gladly make use of all lawful means towards the abolishing of slavery in all parts of the land. But let us consider where we are, and what we are doing. In the articles of confederation, no provision was made to hinder the importation of slaves into any of these States: but a door is now opened hereafter to do it; and each State is at liberty now to abolish slavery as soon as they please. And let us remember our former connexion with Great Britain, from whom many in our land think we ought not to have revolted. How did they carry on the slave trade! I know that the Bishop of Gloucester, in an annual sermon in London, in February, 1766, endeavored to justify their tyrannical claims of power over us, by casting the reproach of the slave trade upon the Americans. But at the close of the war, the Bishop of Chester, in an annual sermon, in February, 1783, ingenuously owned, that their nation is the most deeply involved in the guilt of that trade, of any nation in the world; and also, that they have treated their slaves in the West Indies worse than the French or Spaniards have done theirs. Thus slavery grows more and more odious through the world; and, as an honorable gentleman said some days ago, "Though we cannot say that slavery is struck with an apoplexy, yet we may hope it will die with a consumption." And a main source, sir, of that iniquity, hath been an abuse of the covenant of circumcision, which gave the seed of Abraham to destroy the inhabitants of Canaan, and to take their houses, vineyards, and all their estates, as their own; and also to buy and hold others as servants. And as Christian privileges are greater than those of the Hebrews were, many have imagined that they had a right to seize upon the lands of the heathen, and to destroy or enslave them as far as they could extend their power. And from thence the mystery of iniquity, carried many into the practice of making merchandise of slaves and souls of men. But all ought to remember, that when God promised the land of Canaan to Abraham and his seed, he let him know that they were not to take possession of that land, until the iniquity of the Amorites was full; and then they did it under the immediate direction of Heaven; and they were as real executors of the judgment of God upon those heathens, as any person ever

was an executor of a criminal justly condemned. And in doing it they were not allowed to invade the lands of the Edomites, who sprang from Esau, who was not only of the seed of Abraham, but was born at the same birth with Israel; and yet they were not of that church. Neither were Israel allowed to invade the lands of the Moabites, or of the children of Ammon, who were of the seed of Lot. And no officer in Israel had any legislative power, but such as were immediately inspired. Even David, the man after God's own heart, had no legislative power, but only as he was inspired from above: and he is expressly called a *prophet* in the New Testament. And we are to remember that Abraham and his seed, for four hundred years, had no warrant to admit any strangers into that church, but by buying of him as a servant, with money. And it was a great privilege to be bought, and adopted into a religious family for seven years, and then to have their freedom. And that covenant was expressly repealed in various parts of the New Testament; and particularly in the first epistle to the Corinthians, wherein it is said—Ye are bought with a price; therefore glorify God in your body, and in your spirit, which are God's. And again—Circumcision is nothing, and uncircumcision is nothing, but keeping of the commandments of God. Ye are bought with a price; be not ye the servants of men. Thus the gospel sets all men upon a level, very contrary to the declaration of an honorable gentleman in this house, "that the Bible was contrived for the advantage of a particular order of men."

NEW YORK CONVENTION.

Mr. Smith. He would now proceed to state his objections to the clause just read, (section 2, of article 1, clause 3.) His objections were comprised under three heads: 1st, the rule of apportionment is unjust; 2d, there is no precise number fixed on, below which the house shall not be reduced; 3d, it is inadequate. In the first place, the rule of apportionment of the representatives is to be according to the whole number of the white inhabitants, with three-fifths of all others; that is, in plain English, each State is to send representatives in proportion to the number of freemen, and three-fifths of the slaves it contains. He could not see any rule by which slaves were to be included in the ratio of representation;—the principle of a representation being that every free agent should be concerned in governing himself, it was absurd to give that power to a man who could not exercise it

—slaves have no will of their own: the very operation of it was to give certain privileges to those people, who were so wicked as to keep slaves. He knew it would be admitted, that this rule of apportionment was founded on unjust principles, but that it was the result of accommodation; which, he supposed, we should be under the necessity of admitting, if we meant to be in union with the southern States, though utterly repugnant to his feelings.

Mr. Hamilton. In order that the committee may understand clearly the principles on which the General Convention acted, I think it necessary to explain some preliminary circumstances.

Sir, the natural situation of this country seems to divide its interests into different classes. There are navigating and non-navigating States—the Northern are properly the navigating States: the Southern appear to possess neither the means; nor the spirit of navigation. This difference of situation naturally produces a dissimilarity of interest and views respecting foreign commerce. It was the interest of the Northern States that there should be no restraints on their navigation, and that they should leave full power, by a majority in Congress, to make commercial regulations in favor of their own, and in restraint of the navigation of foreigners. The Southern States wished to impose a restraint on the Northern, by requiring that two-thirds in Congress should be requisite to pass an act in regulation of commerce: they were apprehensive that the restraints of a navigation law would discourage foreigners, and by obliging them to employ the shipping of the Northern States would probably enhance their freight. This being the case, they insisted strenuously on having this provision engrafted in the constitution; and the Northern States were as anxious in opposing it. On the other hand, the small States seeing themselves embraced by the confederation upon equal terms, wished to retain the advantages which they already possessed: the large States, on the contrary, thought it improper that Rhode Island and Delaware should enjoy an equal suffrage with themselves: from these sources a delicate and difficult contest arose. It became necessary, therefore, to compromise; or the Convention must have dissolved without effecting any thing. Would it have been wise and prudent in that body, in this critical situation, to have deserted their country? No. Every man who hears me—every wise man in the United States, would have condemned them. The Convention were obliged to appoint a committee for accommodation. In this committee the arrangement was formed as it now stands; and their

report was accepted. It was a delicate point; and it was necessary that all parties should be indulged. Gentlemen will see, that if there had not been a unanimity, nothing could have been done: for the Convention had no power to establish, but only to recommend a government. Any other system would have been impracticable. Let a Convention be called to-morrow—let them meet twenty times; nay, twenty thousand times; they will have the same difficulties to encounter; the same clashing interests to reconcile.

But dismissing these reflections, let us consider how far the arrangement is in itself entitled to the approbation of this body. We will examine it upon its own merits.

The first thing objected to, is that clause which allows a representation for three-fifths of the negroes. Much has been said of the impropriety of representing men, who have no will of their own. Whether this be reasoning or declamation, I will not presume to say. It is the unfortunate situation of the southern states, to have a great part of their population, as well as property, in blacks. The regulations complained of was one result of the spirit of accommodation, which governed the convention; and without this indulgence, no union could possibly have been formed. But, sir, considering some peculiar advantages which we derived from them, it is entirely just that they should be gratified. The southern states possess certain staples, tobacco, rice, indigo, &c., which must be capital objects in treaties of commerce with foreign nations; and the advantage which they necessarily procure in these treaties will be felt throughout all the states. But the justice of this plan will appear in another view. The best writers on government have held that representation should be compounded of persons and property. This rule has been adopted, as far as it could be, in the Constitution of New-York. It will, however, by no means, be admitted, that the slaves are considered altogether as property. They are men, though degraded to the condition of slavery. They are persons known to the municipal laws of the states which they inhabit as well as to the laws of nature. But representation and taxation go together—and one uniform rule ought to apply to both. Would it be just to compute these slaves in the assessment of taxes, and discard them from the estimate in the apportionment of representatives? Would it be just to impose a singular burthen, without conferring some adequate advantage?

Another circumstance ought to be considered. The rule we have been speaking of is a general rule, and applies to all the states. Now, you have a great number of people in your state, which are not represented at all; and have no voice in your government; these will be included in the enumeration—not two-fifths—nor three-fifths, but the whole. This proves that the advantages of the plan are not confined to the southern states, but extend to other parts of the Union.

Mr. M. Smith. I shall make no reply to the arguments offered by the hon. gentleman to justify the rule of apportionment fixed by this clause: for though I am confident they might be easily refuted, yet I am persuaded we must yield this point, in accommodation to the southern states. The amendment therefore proposes no alteration to the clause in this respect.

Mr. Harrison. Among the objections, that, which has been made to the mode of apportionment of representatives, has been relinquished. I think this concession does honor to the gentleman who had stated the objection. He has candidly acknowledged, that this apportionment was the result of accommodation; without which no union could have been formed.

PENNSYLVANIA CONVENTION.

Mr. Wilson. Much fault has been found with the mode of expression, used in the first clause of the ninth section of the first article. I believe I can assign a reason, why that mode of expression was used, and why the term slave was not admitted in this constitution—and as to the manner of laying taxes, this is not the first time that the subject has come into the view of the United States, and of the legislatures of the several states. The gentleman, (Mr. Findley) will recollect, that in the present congress, the quota of the federal debt, and general expenses, was to be in proportion to the value of land, and other enumerated property, within the states. After trying this for a number of years, it was found on all hands, to be a mode that could not be carried into execution. Congress were satisfied of this, and in the year 1783 recommended, in conformity with the powers they possessed under the articles of confederation, that the quota should be according to the number of free people, including those bound to servitude, and excluding Indians not taxed. These were the expressions used in 1783, and the fate of this recommendation was similar to all their other resolutions. It was not carried

into effect, but it was adopted by no fewer than eleven, out of thirteen states; and it cannot but be matter of surprise, to hear gentlemen, who agreed to this very mode of expression at that time, come forward and state it as an objection on the present occasion. It was natural, sir, for the late convention, to adopt the mode after it had been agreed to by eleven states, and to use the expression, which they found had been received as unexceptional before. With respect to the clause, restricting congress from prohibiting the migration or importation of such persons, as any of the states now existing, shall think proper to admit, prior to the year 1808. The honorable gentleman says, that this cause is not only dark, but intended to grant to congress, for that time, the power to admit the importation of slaves. No such thing was intended; but I will tell you what was done, and it gives me high pleasure, that so much was done. Under the present confederation, the states may admit the importation of slaves as long as they please; but by this article, after the year 1808 the congress will have power to prohibit such importation, notwithstanding the disposition of any state to the contrary. I consider this as laying the foundation for banishing slavery out of this country; and though the period is more distant than I could wish, yet it will produce the same kind, gradual change, which was pursued in Pennsylvania. It is with much satisfaction I view this power in the general government, whereby they may lay an interdiction on this reproachful trade; but an immediate advantage is also obtained, for a tax or duty may be imposed on such importation, not exceeding ten dollars for each person; and this, sir, operates as a partial prohibition; it was all that could be obtained, I am sorry it was no more; but from this I think there is reason to hope, that yet a few years, and it will be prohibited altogether; and in the mean time, the new states which are to be formed, will be under the control of congress in this particular; and slaves will never be introduced amongst them. The gentleman says, that it is unfortunate in another point of view; it means to prohibit the introduction of white people from Europe, as this tax may deter them from coming amongst us; a little impartiality and attention will discover the care that the convention took in selecting their language. The words are the *migration* or IMPORTATION of such persons, &c., shall not be prohibited by congress prior to the year 1808, but a tax or duty may be imposed on such importation; it is observable here, that the term migration is dropped, when a tax or duty is mentioned, so that congress have power to impose the tax only on those imported.

I recollect, on a former day, the honorable gentleman from Westmoreland (Mr. Findley) and the honorable gentleman from Cumberland (Mr. Whitehill,) took exception against the first clause of the 9th section, art. 1, arguing very unfairly, that because congress might impose a tax or duty of ten dollars on the importation of slaves, within any of the United States, congress might therefore permit slaves to be imported within this state, contrary to its laws. I confess I little thought that this part of the system would be excepted to.

I am sorry that it could be extended no further; but so far as it operates, it presents us with the pleasing prospect, that the rights of mankind will be acknowledged and established throughout the union.

If there was no other lovely feature in the constitution but this one, it would diffuse a beauty over its whole countenance. Yet the lapse of a few years! and congress will have power to exterminate slavery from within our borders.

How would such a delightful prospect expand the breast of a benevolent and philanthropic European? Would he cavil at an expression? catch at a phrase? No, sir, that is only reserved for the gentleman on the other side of your chair to do.

Mr. McKean. The arguments against the constitution are, I think, chiefly these: ...

That migration or importation of such persons, as any of the states shall admit, shall not be prohibited prior to 1808, nor a tax or duty imposed on such importation exceeding ten dollars for each person.

Provision is made that congress shall have power to prohibit the importation of slaves after the year 1808, but the gentlemen in opposition, accuse this system of a crime, because it has not prohibited them at once. I suspect those gentlemen are not well acquainted with the business of the diplomatic body, or they would know that an agreement might be made, that did not perfectly accord with the will and pleasure of any one person. Instead of finding fault with what has been gained, I am happy to see a disposition in the United States to do so much.

VIRGINIA CONVENTION.

Gov Randolph said, we are told in strong language, of dangers to which we will be exposed unless we adopt this Constitution. Among the rest, domestic safety is said to be in danger. This government does not attend to our domestic safety. It authorizes the importation of slaves for twenty-odd years, and thus continues upon us that nefarious trade. Instead of securing and protecting us, the continuation of this detestable trade adds daily to our weakness. Though this evil is increasing, there is no clause in the Constitution that will prevent the northern and eastern States from meddling with our whole property of that kind. There is a clause to prohibit the importation of slaves after twenty years, but there is no provision made for securing to the southern States those they now possess. It is far from being a desirable property. But it will involve us in great difficulties and infelicity to be now deprived of them. There ought to be a clause in the Constitution to secure us that property, which we have acquired under our former laws, and the loss of which would bring ruin on a great many people.

Mr. Lee. The honorable gentleman abominates it, because it does not prohibit the importation of slaves, and because it does not secure the continuance of the existing slavery! Is it not obviously inconsistent to criminate it for two contradictory reasons? I submit it to the consideration of the gentleman, whether, if it be reprehensible in the one case, it can be censurable in the other? Mr. Lee then concluded by earnestly recommending to the committee to proceed regularly.

Mr. Henry. It says, that "no state shall engage in war, unless actually invaded." If you give this clause a fair construction, what is the true meaning of it? What does this relate to? Not domestic insurrections, but war. If the country be invaded, a state may go to war; but cannot suppress insurrections. If there should happen an insurrection of slaves, the country cannot be said to be invaded.—They cannot therefore suppress it, without the interposition of congress.

Mr. George Nicholas said, another worthy member says, there is no power in the States to quell an insurrection of slaves. Have they it now? If they have, does the Constitution take it away? If it does, it must be in one of the three clauses which have been mentioned by the worthy member. The first

clause gives the general government power to call them out when necessary. Does this take it away from the States? No. But it gives an additional security: for, besides the power in the State governments to use their own militia, it will be the duty of the general government to aid them with the strength of the Union when called for. No part of the Constitution can show that this power is taken away.

Mr. George Mason. Mr. Chairman, this is a fatal section, which has created more dangers than any other. The first clause allows the importation of slaves for twenty years. Under the royal government, this evil was looked upon as a great oppression, and many attempts were made to prevent it; but the interest of the African merchants prevented its prohibition. No sooner did the revolution take place, than it was thought of. It was one of the great causes of our separation from Great Britain. Its exclusion has been a principal object of this State, and most of the States in the Union. The augmentation of slaves weakens the States; and such a trade is diabolical in itself, and disgraceful to mankind. Yet, by this Constitution, it is continued for twenty years. As much as I value an union of all the States, I would not admit the Southern States into the Union, unless they agreed to the discontinuance of this disgraceful trade, because it would bring weakness and not strength to the Union. And though this infamous traffic be continued, we have no security for the property of that kind which we have already. There is no clause in this Constitution to secure it; for they may lay such tax as will amount to manumission. And should the government be amended, still this detestable kind of commerce cannot be discontinued till after the expiration of twenty years. For the fifth article, which provides for amendments, expressly excepts this clause. I have ever looked upon this as a most disgraceful thing to America. I cannot express my detestation of it. Yet they have not secured us the property of the slaves we have already. So that, "they have done what they ought not to have done, and have left undone what they ought to have done."

Mr. Madison. Mr. Chairman, I should conceive this clause to be impolitic, if it were one of those things which could be excluded without encountering greater evils. The Southern States would not have entered into the Union of America, without the temporary permission of that trade. And if they were excluded from the Union, the consequences might be dreadful to them and to us. We are not in a worse situation than before. That traffic is prohibited

by our laws, and we may continue the prohibition. The Union in general is not in a worse situation. Under the articles of confederation, it might be continued forever: but by this clause an end may be put to it after twenty years. There is, therefore, an amelioration of our circumstances. A tax may be laid in the mean time; but it is limited, otherwise Congress might lay such a tax as would amount to a prohibition. From the mode of representation and taxation, Congress cannot lay such a tax on slaves as will amount to manumission. Another clause secures us that property which we now possess. At present, if any slave elopes to any of those States where slaves are free, he becomes emancipated by their laws. For the laws of the States are uncharitable to one another in this respect. But in this Constitution, "no person held to service, or labor, in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due." This clause was expressly inserted to enable owners of slaves to reclaim them. This is a better security than any that now exists. No power is given to the general government to interpose with respect to the property in slaves now held by the States. The taxation of this State being equal only to its representation, such a tax cannot be laid as he supposes. They cannot prevent the importation of slaves for twenty years; but after that period, they can. The gentlemen from South Carolina and Georgia argued in this manner: "We have now liberty to import this species of property, and much of the property now possessed, has been purchased, or otherwise acquired, in contemplation of improving it by the assistance of imported slaves. What would be the consequence of hindering us from it? The slaves of Virginia would rise in value, and we would be obliged to go to your markets." I need not expatiate on this subject. Great as the evil is, a dismemberment of the Union would be worse. If those States should disunite from the other States, for not including them in the temporary continuance of this traffic, they might solicit and obtain aid from foreign powers.

Mr. Tyler warmly enlarged on the impolicy, iniquity, and disgracefulness of this wicked traffic. He thought the reasons urged by gentlemen in defence of it were inconclusive, and ill founded. It was one cause of the complaints against British tyranny, that this trade was permitted. The Revolution had put a period to it; but now it was to be revived. He thought nothing could

justify it. This temporary restriction on Congress militated, in his opinion, against the arguments of gentlemen on the other side, that what was not given up, was retained by the States; for that if this restriction had not been inserted, Congress could have prohibited the African trade. The power of prohibiting it was not expressly delegated to them; yet they would have had it by implication, if this restraint had not been provided. This seemed to him to demonstrate most clearly the necessity of restraining them by a bill of rights, from infringing our unalienable rights. It was immaterial whether the bill of rights was by itself, or included in the Constitution. But he contended for it one way or the other. It would be justified by our own example, and that of England. His earnest desire was, that it should be handed down to posterity, that he had opposed this wicked clause.

Mr. Madison. As to the restriction in the clause under consideration, it was a restraint on the exercise of a power expressly delegated to congress, namely, that of regulating commerce with foreign nations.

Mr. Henry insisted, that the insertion of these restrictions on Congress, was a plain demonstration that Congress could exercise powers by implication. The gentleman had admitted that Congress could have interdicted the African trade, were it not for this restriction. If so, the power not having been expressly delegated, must be obtained by implication. He demanded where, then, was their doctrine of reserved rights? He wished for negative clauses to prevent them from assuming any powers but those expressly given. He asked why it was moited to secure us that property in slaves, which we held now? He feared its omission was done with design. They might lay such heavy taxes on slaves, as would amount to emancipation; and then the Southern States would be the only sufferers. His opinion was confirmed by the mode of levying money. Congress, he observed, had power to lay and collect taxes, imposts, and excises. Imposts (or duties) and excises, were to be uniform. But this uniformity did not extend to taxes. This might compel the Southern States to liberate their negroes. He wished this property therefore to be guarded. He considered the clause which had been adduced by the gentleman as a security for this property, as no security at all. It was no more than this—that a runaway negro could be taken up in Maryland or New-York. This could not prevent Congress from interfering with that property by laying a grievous and enormous tax on it, so as to compel owners to emancipate their slaves rather than pay the tax. He

apprehended it would be productive of much stock-jobbing, and that they would play into one another's hands in such a manner as that this property would be lost to the country.

Mr. George Nicholas wondered that gentlemen who were against slavery, would be opposed to this clause; as after that period the slave trade would be done away. He asked, if gentlemen did not see the inconsistency of their arguments? They object, says he, to the Constitution, because the slave trade is laid open for twenty-odd years; and yet tell you, that by some latent operation of it, the slaves who are so now, will be manumitted. At the same moment, it is opposed for being promotive and destructive of slavery. He contended that it was advantageous to Virginia, that it should be in the power of Congress to prevent the importation of slaves after twenty years, as it would then put a period to the evil complained of.

As the Southern States would not confederate without this clause, he asked, if gentlemen would rather dissolve the confederacy than to suffer this temporary inconvenience, admitting it to be such? Virginia might continue the prohibition of such importation during the intermediate period, and would be benefitted by it, as a tax of ten dollars on each slave might be laid, of which she would receive a share. He endeavored to obviate the objection of gentlemen, that the restriction on Congress was a proof that they would have power not given them, by remarking, that they would only have had a general superintendency of trade, if the restriction had not been inserted. But the Southern States insisted on this exception to that general superintendency for twenty years. It could not therefore have been a power by implication, as the restriction was an exception from a delegated power. The taxes could not, as had been suggested, be laid so high on negroes as to amount to emancipation; because taxation and representation were fixed according to the census established in the Constitution. The exception of taxes, from the uniformity annexed to duties and excises, could not have the operation contended for by the gentleman; because other clauses had clearly and positively fixed the census. Had taxes been uniform, it would have been universally objected to, for no one object could be selected without involving great inconveniences and oppressions. But, says Mr. Nicholas, is it from the general government we are to fear emancipation? Gentlemen will recollect what I said in another house, and what other gentlemen have said that advocated emancipation. Give me leave to say, that that clause is a

great security for our slave tax. I can tell the committee, that the people of our country are reduced to beggary by the taxes on negroes. Had this Constitution been adopted, it would not have been the case. The taxes were laid on all our negroes. By this system two-fifths are exempted. He then added, that he imagined gentlemen would not support here what they had opposed in another place.

Mr. Henry replied, that though the proportion of each was to be fixed by the census, and three-fifths of the slaves only were included in the enumeration, yet the proportion of Virginia being once fixed, might be laid on blacks and blacks only. For the mode of raising the proportion of each State being to be directed by Congress, they might make slaves the sole object to raise it. Personalities he wished to take leave of: they had nothing to do with the question, which was solely whether that paper was wrong or not.

Mr. Nicholas replied, that negroes must be considered as persons, or property. If as property, the proportion of taxes to be laid on them was fixed in the Constitution. If he apprehended a poll tax on negroes, the Constitution had prevented it. For, by the census, where a white man paid ten shillings, a negro paid but six shillings. For the exemption of two-fifths of them reduced it to that proportion.

The second, third, and fourth clauses, were then read as follows:

The privilege of the writ of habeas corpus shall not be suspended, unless when in cases of rebellion or invasion the public safety may require it.

No bill of attainder or ex post facto law shall be passed.

No capitation or other direct tax shall be paid, unless in proportion to the census or enumeration herein before directed to be taken.

Mr. George Mason said, that gentlemen might think themselves secured by the restriction in the fourth clause, capitation or other direct tax should be laid but in proportion to the census before directed to be taken. But that when maturely considered it would be found to be no security whatsoever. It was nothing but a direct assertion, or mere confirmation of the clause which fixed the ratio of taxes and representation. It only meant that the quantum to be raised of each State should be in proportion to their numbers in the manner therein directed. But the general government was not

precluded from laying the proportion of any particular State on any one species of property they might think proper. For instance, if five hundred thousand dollars were to be raised, they might lay the whole of the proportion of Southern States on the blacks, or any one species of property: so that by laying taxes too heavily on slaves, they might totally annihilate that kind of property. No real security could arise from the clause which provides, that persons held to labor in one State, escaping into another, shall be delivered up. This only meant, that runaway slaves should not be protected in other States. As to the exclusion of *ex post facto* laws, it could not be said to create any security in this case. For laying a tax on slaves would not be *ex post facto*.

Mr. Madison replied, that even the Southern States, who were most affected, were perfectly satisfied with this provision, and dreaded no danger to the property they now hold. It appeared to him, that the general government would not intermeddle with that property for twenty years, but to lay a tax on every slave imported, not exceeding ten dollars; and that after the expiration of that period they might prohibit the traffic altogether. The census in the constitution was intended to introduce equality in the burdens to be laid on the community. No gentleman objected to laying duties, imposts, and excises, uniformly. But uniformity of taxes would be subversive to the principles of equality: for that it was not possible to select any article which would be easy for one State, but what would be heavy for another. That the proportion of each State being ascertained, it would be raised by the general government in the most convenient manner for the people, and not by the selection of any one particular object. That there must be some decree of confidence put in agents, or else we must reject a state of civil society altogether. Another great security to this property, which he mentioned, was, that five States were greatly interested in that species of property, and there were other States which had some slaves, and had made no attempt, or taken any step to take them from the people. There were a few slaves in New York, New Jersey and Connecticut: these States could, probably, oppose any attempts to annihilate this species of property. He concluded, by observing, that he would be glad to leave the decision of this to the committee.

The second section was then read as follows:

No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up, on claim of the party to whom such service or labor may be due.

Mr. George Mason.—Mr. Chairman, on some former part of the investigation of this subject, gentlemen were pleased to make some observations on the security of property coming within this section. It was then said, and I now say, that there is no security, nor have gentlemen convinced me of this.

Mr. Henry. Among ten thousand implied powers which they may assume, they may, if we be engaged in war, liberate every one of your slaves if they please. And this must and will be done by men, a majority of whom have not a common interest with you. They will, therefore, have no feeling for your interests. It has been repeatedly said here, that the great object of a national government, was national defence. That power which is said to be intended for security and safety, may be rendered detestable and oppressive. If you give power to the general government to provide for the general defence, the means must be commensurate to the end. All the means in the possession of the people must be given to the government which is entrusted with the public defence. In this State there are 236,000 blacks, and there are many in several other States. But there are few or none in the Northern States, and yet if the Northern States shall be of opinion, that our numbers are numberless, they may call forth every national resource. May Congress not say, that every black man must fight? Did we not see a little of this last war? We were not so hard pushed, as to make emancipation general. But acts of assembly passed, that every slave who would go to the army should be free. Another thing will contribute to bring this event about—slavery is detested—we feel its fatal effects—we deplore it with all the pity of humanity. Let all these considerations, at some future period, press with full force on the minds of Congress. Let that urbanity, which I trust will distinguish America, and the necessity of national defence, let all these things operate on their minds, they will search that paper, and see if they have power of manumission. And have they not, sir? Have they not power to provide for the general defence and welfare? May they not think that these call for the abolition of slavery? May not they pronounce all slaves free, and will they not be warranted by that power? There is no ambiguous

implication or logical deduction. The paper speaks to the point. They have the power in clear, unequivocal terms; and will clearly and certainly exercise it. As much as I deplore slavery, I see that prudence forbids its abolition. I deny that the general government ought to set them free, because a decided majority of the States have not the ties of sympathy and fellow-feeling for those whose interest would be affected by their emancipation. The majority of Congress is to the North, and the slaves are to the South. In this situation, I see a great deal of the property of the people of Virginia in jeopardy, and their peace and tranquillity gone away. I repeat it again, that it would rejoice my very soul, that every one of my fellow-beings was emancipated. As we ought with gratitude to admire that decree of Heaven, which has numbered us among the free, we ought to lament and deplore the necessity of holding our fellow-men in bondage. But is it practicable by any human means, to liberate them, without producing the most dreadful and ruinous consequences? We ought to possess them in the manner we have inherited them from our ancestors, as their manumission is incompatible with the felicity of the country. But we ought to soften, as much as possible, the rigor of their unhappy fate. I know that in a variety of particular instances, the legislature, listening to complaints, have admitted their emancipation. Let me not dwell on this subject. I will only add, that this, as well as every other property of the people of Virginia, is in jeopardy, and put in the hands of those who have no similarity of situation with us. This is a local matter, and I can see no propriety in subjecting it to Congress.

Have we not a right to say, *hear our propositions*? Why, sir, your slaves have a right to make their humble requests.—Those who are in the meanest occupations of human life, have a right to complain.

Gov. Randolph said, that honorable gentleman, and some others, have insisted that the abolition of slavery will result from it, and at the same time have complained, that it encourages its continuation. The inconsistency proves in some degree, the futility of their arguments. But if it be not conclusive, to satisfy the committee that there is no danger of enfranchisement taking place, I beg leave to refer them to the paper itself. I hope that there is none here, who, considering the subject in the calm light of philosophy, will advance an objection dishonorable to Virginia; that at the moment they are securing the rights of their citizens, an objection is

started that there is a spark of hope, that those unfortunate men now held in bondage, may, by the operation of the general government, be made *free*. But if any gentleman be terrified by this apprehension, let him read the system. I ask, and I will ask again and again, till I be answered (not by declamation) where is the part that has a tendency to the abolition of slavery? Is it the clause which says, that "the migration or importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited by Congress prior to the year 1808?" This is an exception from the power of regulating commerce, and the restriction is only to continue till 1808. Then Congress can, by the exercise of that power, prevent future importations; but does it affect the existing state of slavery? Were it right here to mention what passed in convention on the occasion, I might tell you that the Southern States, even South Carolina herself, conceived this property to be secure by these words. I believe, whatever we may think here, that there was not a member of the Virginia delegation who had the smallest suspicion of the abolition of slavery. Go to their meaning. Point out the clause where this formidable power of emancipation is inserted. But another clause of the Constitution proves the absurdity of the supposition. The words of the clause are, "No person held to service or labor in our State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due." Every one knows that slaves are held to service and labor. And when authority is given to owners of slaves to vindicate their property, can it be supposed they can be deprived of it? If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, can it be seriously thought, that after taking him and bringing him home, he could be made free?

I observed that the honorable gentleman's proposition comes in a truly questionable shape, and is still more extraordinary and unaccountable for another consideration; that although we went article by article through the Constitution, and although we did not expect a general review of the subject, (as a most comprehensive view had been taken of it before it was regularly debated,) yet we are carried back to the clause giving that dreadful power, for the general welfare. Pardon me if I remind you of the true state of that business. I appeal to the candor of the honorable gentleman, and if

he thinks it an improper appeal, I ask the gentlemen here, whether there be a general indefinite power of providing for the general welfare? The power is, "to lay and collect taxes, duties, imposts, and excises, to pay the debts and provide for the common defence and general welfare." So that they can only raise money by these means, in order to provide for the general welfare. No man who reads it can say it is general as the honorable gentleman represents it. You must violate every rule of construction and common sense, if you sever it from the power of raising money and annex it to any thing else, in order to make it that formidable power which it is represented to be.

Mr. George Mason. Mr. Chairman, with respect to commerce and navigation, he has given it as his opinion, that their regulation, as it now stands, was a *sine qua non* of the Union, and that without it, the States in convention would never concur. I differ from him. It never was, nor in my opinion ever will be, a *sine qua non* of the Union. I will give you, to the best of my recollection, the history of that affair. This business was discussed at Philadelphia for four months, during which time the subject of commerce and navigation was often under consideration; and I assert, that eight States out of twelve, for more than three months, voted for requiring two-thirds of the members present in each house to pass commercial and navigation laws. True it is, that afterwards it was carried by a majority, as it stands. If I am right, there was a great majority for requiring two-thirds of the States in this business, till a compromise took place between the Northern and Southern States; the Northern States agreeing to the temporary importation of slaves, and the Southern States conceding, in return, that navigation and commercial laws should be on the footing on which they now stand. If I am mistaken, let me be put right. These are my reasons for saying that this was not a *sine qua non* of their concurrence. The Newfoundland fisheries will require that kind of security which we are now in want of. The Eastern States therefore agreed at length, that treaties should require the consent of two-thirds of the members present in the senate.

Mr. Madison said—

I was struck with surprise when I heard him express himself alarmed with respect to the emancipation of slaves. Let me ask, if they should even attempt it, if it will not be an usurpation of power? There is no power to

warrant it, in that paper. If there be, I know it not. But why should it be done? Says the honorable gentleman, for the general welfare—it will infuse strength into our system. Can any member of this committee suppose, that it will increase our strength? Can any one believe, that the American councils will come into a measure which will strip them of their property, discourage and alienate the affections of five-thirteenths of the Union? Why was nothing of this sort aimed at before? I believe such an idea never entered into an American breast, nor do I believe it ever will, unless it will enter into the heads of those gentlemen who substitute unsupported suspicious for reasons.

Mr. Henry. He asked me where was the power of emancipating slaves? I say it will be implied, unless implication be prohibited. He admits that the power of granting passports will be in the new congress without the insertion of this restriction—yet he can show me nothing like such a power granted in that constitution. Notwithstanding he admits their right to this power by implication, he says that I am unfair and uncandid in my deduction, that they can emancipate our slaves, though the word emancipation is not mentioned in it. They can exercise power by implication in one instance, as well as in another. Thus, by the gentleman's own argument, they can exercise the power though it not be delegated.

Mr. Z. Johnson. They tell us that they see a progressive danger of bringing about emancipation. The principle has begun since the revolution. Let us do what we will, it will come round. Slavery has been the foundation of that impiety and dissipation, which have been so much disseminated among our countrymen. If it were totally abolished, it would do much good.

NORTH CAROLINA CONVENTION.

The first three clauses of the second section read.

Mr. Goudy. Mr. Chairman, this clause of taxation will give an advantage to some States over others. It will be oppressive to the Southern States. Taxes are equal to our representation. To augment our taxes and increase our burthens, our negroes are to be represented. If a State has fifty thousand negroes, she is to send one representative for them. I wish not to be represented with negroes, especially if it increases my burthens.

Mr. Davie. Mr. Chairman, I will endeavor to obviate what the gentleman last up has said. I wonder to see gentlemen so precipitate and hasty on the subject of such awful importance. It ought to be considered, that *some of us* are slow of apprehension, not having those quick conceptions, and luminous understandings, of which other gentlemen may be possessed. The gentleman "does not wish to be represented with negroes." This, sir, is an unhappy species of population, but we cannot at present alter their situation. The Eastern States had great jealousies on this subject. They insisted that their cows and horses were equally entitled to representation; that the one was property as well as the other. It became our duty on the other hand, to acquire as much weight as possible in the legislation of the Union; and as the Northern States were more populous in whites, this only could be done by insisting that a certain proportion of our slaves should make a part of the computed population. It was attempted to form a rule of representation from a compound ratio of wealth and population; but, on consideration, it was found impracticable to determine the comparative value of lands, and other property, in so extensive a territory, with any degree of accuracy; and population alone was adopted as the only practicable rule or criterion of representation. It was urged by the deputies of the Eastern States, that a representation of two-fifths would be of little utility, and that their entire representation would be unequal and burthensome. That in a time of war, slaves rendered a country more vulnerable, while its defence devolved upon its *free* inhabitants. On the other hand, we insisted, that in time of peace they contributed by their labor to the general wealth as well as other members of the community. That as rational beings they had a right of representation, and in some instances might be highly useful in war. On these principles, the Eastern States gave the matter up, and consented to the regulation as it has been read. I hope these reasons will appear satisfactory. It is the same rule or principle which was proposed some years ago by Congress, and assented to by twelve of the States. It may wound the delicacy of the gentleman from Guilford, [Mr. Goudy,] but I hope he will endeavor to accommodate his feelings to the interests and circumstances of his country.

Mr. James Galloway said, that he did not object to the representation of negroes, so much as he did to the fewness of the number of representatives. He was surprised how we came to have but five, including those intended to

represent negroes. That in his humble opinion North Carolina was entitled to that number independent of the negroes.

First clause of the 9th section read.

Mr. J. M'Dowall wished to hear the reasons of this restriction.

Mr. Spaight answered that there was a contest between the Northern and Southern States—that the Southern States, whose principal support depended on the labor of slaves, would not consent to the desire of the Northern States to exclude the importation of slaves absolutely. That South Carolina and Georgia insisted on this clause, as they were now in want of hands to cultivate their lands: That in the course of twenty years they would be fully supplied: That the trade would be abolished then, and that in the mean time some tax or duty might be laid on.

Mr. M'Dowall replied, that the explanation was just such as he expected, and by no means satisfactory to him and that he looked upon it as a very objectionable part of the system.

Mr. Iredell. Mr. Chairman, I rise to express sentiments similar to those of the gentleman from Craven. For my part, were it practicable to put an end to the importation of slaves immediately, it would give me the greatest pleasure, for it certainly is a trade utterly inconsistent with the rights of humanity, and under which great cruelties have been exercised. When the entire abolition of slavery takes place, it will be an event which must be pleasing to every generous mind, and every friend of human nature; but we often wish for things which are not attainable. It was the wish of a great majority of the Convention to put an end to the trade immediately, but the States of South Carolina and Georgia would not agree to it. Consider then what would be the difference between our present situation in this respect, if we do not agree to the Constitution, and what it will be if we do agree to it. If we do not agree to it, do we remedy the evil? No, sir, we do not; for if the constitution be not adopted, it will be in the power of every State to continue it forever. They may or may not abolish it at their discretion. But if we adopt the constitution, the trade must cease after twenty years, if congress declare so, whether particular States please so or not: surely, then, we gain by it. This was the utmost that could be obtained. I heartily wish more could have been done. But as it is, this government is nobly

distinguished above others by that very provision. Where is there another country in which such a restriction prevails? We, therefore, sir, set an example of humanity by providing for the abolition of this inhuman traffic, though at a distant period. I hope, therefore, that this part of the constitution will not be condemned because it has not stipulated for what it was impracticable to obtain.

Mr. Spaight further explained the clause. That the limitation of this trade to the term of twenty years, was a compromise between the Eastern States and the Southern States. South Carolina and Georgia wished to extend the term. The Eastern States insisted on the entire abolition of the trade. That the State of North Carolina had not thought proper to pass any law prohibiting the importation of slaves, and therefore its delegation in the convention did not think themselves authorized to contend for an immediate prohibition of it.

Mr. Iredell added to what he had said before, that the States of Georgia and South Carolina had lost a great many slaves during the war, and that they wished to supply the loss.

Mr. Galloway. Mr. Chairman, the explanation given to this clause does not satisfy my mind. I wish to see this abominable trade put an end to. But in case it be thought proper to continue this abominable traffic for twenty years, yet I do not wish to see the tax on the importation extended to all persons whatsoever. Our situation is different from the people to the North. We want citizens; they do not. Instead of laying a tax, we ought to give a bounty, to encourage foreigners to come among us. With respect to the abolition of slavery, it requires the utmost consideration. The property of the Southern States consists principally of slaves. If they mean to do away slavery altogether, this property will be destroyed. I apprehend it means to bring forward manumission. If we must manumit our slaves, what country shall we send them to? It is impossible for us to be happy if, after manumission, they are to stay among us.

Mr. Iredell. Mr. Chairman, the worthy gentleman, I believe, has misunderstood this clause, which runs in the following words: "The migration or importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited by the Congress prior to

the year 1808, but a tax or duty may be imposed on *such importation*, not exceeding ten dollars for each person."

Now, sir, observe that the Eastern States, who long ago have abolished slavery, did not approve of the expression *slaves*; they therefore used another that answered the same purpose. The committee will observe the distinction between the two words migration and importation. The first part of the clause will extend to persons who come into the country as free people, or are brought as slaves, but the last part extends to slaves only. The word *migration* refers to free persons; but the word *importation* refers to slaves, because free people cannot be said to be imported. The tax, therefore, is only to be laid on slaves who are imported, and not on free persons who migrate. I further beg leave to say, that this gentleman is mistaken in another thing. He seems to say that this extends to the abolition of slavery. Is there anything in this constitution which says that Congress shall have it in their power to abolish the slavery of those slaves who are now in the country? Is it not the plain meaning of it, that after twenty years they may prevent the future importation of slaves? It does not extend to those now in the country. There is another circumstance to be observed. There is no authority vested in congress to restrain the States in the interval of twenty years, from doing what they please. If they wish to inhibit such importation, they may do so. Our next assembly may put an entire end to the importation of slaves.

Article fourth. The first section and two first clauses of the second

The last clause read—

Mr. Iredell begged leave to explain the reason of this clause. In some of the Northern States, they have emancipated all their slaves. If any of our slaves, said he, go there and remain there a certain time, they could, by the present laws, be entitled to their freedom, so that their masters could not get them again. This would be extremely prejudicial to the inhabitants of the Southern States, and to prevent it, this clause is inserted in the constitution. Though the word slave be not mentioned, this is the meaning of it. The Northern delegates, owing to their particular scruples on the subject of slavery, did not choose the word *slave* to be mentioned.

The rest of the fourth article read without any observation.

It is however to be observed, (said Mr. Iredell,) that the first and fourth clauses in the ninth section of the first article, are protected from any alteration till the year 1808; and in order that no consolidation should take place, it is provided, that no State shall, by any amendment or alteration, be ever deprived of an equal suffrage in the Senate without its own consent. The two first prohibitions are with respect to the census, according to which direct taxes are imposed, and with respect to the importation of slaves. As to the first, it must be observed, that there is a material difference between the Northern and Southern States. The Northern States have been much longer settled, and are much fuller of people than the Southern, but have not land in equal proportion, nor scarcely any slaves. The subject of this article was regulated with great difficulty, and by a spirit of concession which it would not be prudent to disturb for a good many years. In twenty years there will probably be a great alteration, and then the subject may be considered with less difficulty and greater coolness. In the mean time, the compromise was upon the best footing that could be obtained. A compromise likewise took place with regard to the importation of slaves. It is probable that all the members reprobated this inhuman traffic, but those of South Carolina and Georgia would not consent to an immediate prohibition of it; one reason of which was, that during the last war they lost a vast number of negroes, which loss they wish to supply. In the mean time, it is left to the States to admit or prohibit the importation, and Congress may impose a limited duty upon it.

SOUTH CAROLINA CONVENTION.

Hon. Rawlins Lowndes. In the first place, what cause was there for jealousy of our importing negroes? Why confine us to twenty years, or rather why limit us at all? For his part he thought this trade could be justified on the principles of religion, humanity, and justice; for certainly to translate a set of human beings from a bad country to a better, was fulfilling every part of these principles. But they don't like our slaves, because they have none themselves; and therefore want to exclude us from this great advantage; why should the Southern States allow of this, without the consent of nine States?

Judge Pendleton observed, that only three States, Georgia, South Carolina, and North Carolina, allowed the importation of negroes. Virginia had a clause in her constitution for this purpose, and Maryland, he believed, even before the war, prohibited them.

Mr. Lowndes continued—that we had a law prohibiting the importation of negroes for three years, a law he greatly approved of; but there was no reason offered, why the Southern States might not find it necessary to alter their conduct, and open their ports. Without negroes this State would degenerate into one of the most contemptible in the Union: and cited an expression that fell from Gen. Pinckney on a former debate, that whilst there remained one acre of swamp land in South Carolina he should raise his voice against restricting the importation of negroes. Even in granting the importation for twenty years, care had been taken to make us pay for this indulgence, each negro being liable, on importation, to pay a duty not exceeding ten dollars, and, in addition this, were liable to a capitation tax. Negroes were our wealth, our only natural resource; yet behold how our kind friends in the North were determined soon to tie up our hands, and drain us of what we had. The Eastern States drew their means of subsistence, in a great treasure, from their shipping; and on that head, they had been particularly careful not to allow of any burdens: they were not to pay tonnage, or duties; no, not even the form of clearing out: all ports were free and open to them! Why, then, call this a reciprocal bargain, which took all from one party, to bestow it on the other?

Major Butler observed that they were to pay a five per cent impost. This, Mr. Lowndes proved, must fall upon the consumer. They are to be the carriers: and we, being the consumers, therefore all expenses would fall upon us.

Hon. E. Rutledge. The gentleman had complained of the inequality of the taxes between the Northern and Southern States—that ten dollars a head was imposed on the importation of negroes, and that those negroes were afterwards taxed. To this it was answered, that the ten dollars per head was an equivalent to the five per cent on imported articles; and as to their being afterwards taxed, the advantage is on our side; or, at least, not against us.

In the Northern State, the labor is performed by white people; in the Southern by black. All the free people (and there are few others) in the Northern States, are to be taxed by the new constitution whereas, only the free people, and two-fifths of the slaves in the Southern States are to be rated in the apportioning of taxes.

But the principal objection is, that no duties are laid on shipping—that in fact the carrying trade was to be vested in a great measure in the Americans; that the ship-building business was principally carried on in the Northern States. When this subject is duly considered, the Southern States, should be the last to object to it. Mr. Rutledge then went into a consideration of the subject; after which the House adjourned.

Gen. Charles Cotesworth Pinckney. We were at a loss for some time for a rule to ascertain the proportionate wealth of the States, at last we thought that the productive labor of the inhabitants was the best rule for ascertaining their wealth; in conformity to this rule, joined to a spirit of concession, we determined that representatives should be apportioned among the several States, by adding to the whole number of free persons three-fifths of the slaves. We thus obtained a representation for our property, and I confess I did not expect that we had conceded too much to the Eastern States, when they allowed us a representation for a species of property which they have not among them.

The honorable gentleman alleges, that the Southern States are weak, I sincerely agree with him—we are so weak that by ourselves we could not form an union strong enough for the purpose of effectually protecting each other. Without union with the other States, South Carolina must soon fall. Is there any one among us so much a Quixotte as to suppose that this State could long maintain her independence if she stood alone, or was only connected with the Southern States? I scarcely believe there is. Let an invading power send a naval force into the Chesapeake to keep Virginia in alarm, and attack South Carolina with such a naval and military force as Sir Henry Clinton brought here in 1780, and though they might not soon conquer us, they would certainly do us an infinite deal of mischief; and if they considerably increased their numbers, we should probably fall. As, from the nature of our climate, and the fewness of our inhabitants, we are

undoubtedly weak, should we not endeavor to form a close union with the Eastern States, who are strong?

For who have been the greatest sufferers in the Union, by our obtaining, our independence? I answer, the Eastern States; they have lost every thing but their country, and their freedom. It is notorious that some ports to the Eastward, which used to fit out one hundred and fifty sail of vessels, do not now fit out thirty; that their trade of ship-building, which used to be very considerable, is now annihilated; that their fisheries are trifling, and their mariners in want of bread; surely we are called upon by every tie of justice, friendships, and humanity, to relieve their distresses; and as by their exertions they have assisted us in establishing our freedom, we should let them, in some measure, partake of our prosperity. The General then said he would make a few observations on the objections which the gentleman had thrown out on the restrictions that might be laid on the African trade after the year 1808. On this point your delegates had to contend with the religious and political prejudices of the Eastern and Middle States, and with the interested and inconsistent opinion of Virginia, who was warmly opposed to our importing more slaves. I am of the same opinion now as I was two years ago, when I used the expressions that the gentleman has quoted, that while there remained one acre of swamp land uncleared of South Carolina, I would raise my voice against restricting the importation of negroes. I am as thoroughly convinced as that gentleman is, that the nature of our climate, and the flat swampy situation of our country, obliges us to cultivate our land with negroes, and that without them South Carolina would soon be a desert waste.

You have so frequently heard my sentiments on this subject that I need not now repeat them. It was alleged, by some of the members who opposed an unlimited importation, that slaves increased the weakness of any State who admitted them; that they were a dangerous species of property, which an invading enemy could easily turn against ourselves and the neighboring States, and that as we were allowed a representation for them in the House of Representatives, our influence in government would be increased in proportion as we were less able to defend ourselves. "Show some period," said the members from the Eastern States, "when it may be in our power to put a stop, if we please, to the importation of this weakness, and we will

endeavor, for your convenience, to restrain the religious and political prejudices of our people on this subject."

The Middle States and Virginia made us no such proposition; they were for an immediate and total prohibition. We endeavored to obviate the objections that were made, in the best manner we could, and assigned reasons for our insisting on the importation, which there is no occasion to repeat, as they must occur to every gentleman in the House: a committee of the States was appointed in order to accommodate this matter, and after a great deal of difficulty, it was settled on the footing recited in the Constitution.

By this settlement we have secured an unlimited importation of negroes for twenty years; nor is it declared that the importation shall be then stopped; it may be continued—we have a security that the general government can never emancipate them, for no such authority is granted, and it is admitted on all hands, that the general government has no powers but what are expressly granted by the constitution; and that all rights not expressed were reserved by the several States. We have obtained a right to recover our slaves, in whatever part of America they may take refuge, which is a right we had not before. In short, considering all circumstances, we have made the best terms, for the security of this species of property, it was in our power to make. We would have made better if we could, but on the whole I do not think them bad.

Hon. Robert Barnwell. Mr. Barnwell continued to say, I now come to the last point for consideration, I mean the clause relative to the negroes; and here I am particularly pleased with the Constitution; it has not left this matter of so much importance to us open to immediate investigation; no, it has declared that the United States shall not, at any rate, consider this matter for twenty-one years, and yet gentlemen are displeased with it.

Congress has guaranteed this right for that space of time, and at its expiration may continue it as long as they please. This question then arises, what will their interest lead them to do? The Eastern States, as the honorable gentleman says, will become the carriers of America, it will, therefore certainly be their interest to encourage exportation to as great an extent as possible; and if the quantum of our products will be diminished by the prohibition of negroes, I appeal to the belief of every man, whether he

thinks those very carriers will themselves dam up the resources from whence their profit is derived? To think so is so contradictory to the general conduct of mankind, that I am of opinion, that without we ourselves put a stop to them, the traffic for negroes will continue forever.

FEDERALIST, No. 42.

BY JAMES MADISON

It were doubtless to be wished, that the power of prohibiting the importation of slaves, had not been postponed until the year 1808, or rather that it had been suffered to have immediate operation. But it is not difficult to account either for this restriction on the general government, or for the manner in which the whole clause is expressed.

It ought to be considered as a great point gained in favor of humanity, that a period of twenty years may terminate for ever within these States, a traffic which has so long and so loudly upbraided the barbarism of modern policy; that within that period, it will receive a considerable discouragement from the Federal government, and may be totally abolished, by a concurrence of the few States which continue the unnatural traffic, in the prohibitory example which has been given by so great a majority of the Union. Happy would it be for the unfortunate Africans, if an equal prospect lay before them, of being redeemed from the oppressions of their European brethren! Attempts have been made to pervert this clause into an objection against the Constitution, by representing it on one side, as a criminal toleration of an illicit practice; and on another, as calculated to prevent voluntary and beneficial emigrations from Europe to America. I mention these misconstructions, not with a view to give them an answer, for they deserve none; but as specimens of the manner and spirit, in which some have thought fit to conduct their opposition to the proposed government.

FEDERALIST, No. 54.

BY JAMES MADISON.

All this is admitted, it will perhaps be said: but does it follow from an admission of numbers for the measure of representation, or of slaves combined with free citizens as a ratio of taxation, that slaves ought to be included in the numerical rule of representation?

Slaves are considered as property, not as persons. They ought therefore, to be comprehended in estimates of taxation, which are founded on property, and to be excluded from representation, which is regulated by a census of persons. This is the objection as I understand it, stated in its full force. I

shall be equally candid in stating the reasoning which may be offered on the opposite side. We subscribe to the doctrine, might one of our Southern brethren observe, that representation relates more immediately to persons, and taxation more immediately to property; and we join in the application of this distinction to the case of our slaves.

But we must deny the fact, that slaves are considered merely as property, and in no respect whatever as persons. The true state of the case is, that they partake of both these qualities, being considered by our laws, in some respects as persons, and in other respects as property.

In being compelled to labor, not for himself, but for a master; in being vendible by one master to another master; and in being subject at all times to be restrained in his liberty: and chastised in his body by the capricious will of another; the slave may appear to be degraded from the human rank, and classed with those irrational animals which fall under the legal denomination of property. In being protected, on the other hand, in his life, and in his limbs, against the violence of all others, even the master of his labor and his liberty; and in being punishable himself for all violence committed against others; the slave is no less evidently regarded by the law as a member of the society, not as a part of the irrational creation; as a moral person, not as a mere article of property. The Federal constitution, therefore, decides with great propriety on the case of our slaves, when it views them in the mixed character of persons and property. This is in fact their true character. It is the character bestowed on them by the laws under which they live, and it will not be denied, that these are the proper criterion; because it is only under the pretext, that the laws have transformed the negroes into subjects of property, that a place is disputed them in the computation of numbers; and it is admitted, that if the laws were to restore the rights which have been taken away, the negroes could no longer be refused an equal share of representation with the other inhabitants.

This question may be placed in another light. It is agreed on all sides, that numbers are the best scale of wealth and taxation, as they are the only proper scale of representation. Would the convention have been impartial or consistent, if they had rejected the slaves from the list of inhabitants, when the shares of representation were to be calculated; and inserted them on the lists when the tariff of contributions was to be adjusted?

Could it be reasonably expected, that the Southern States would concur in a system, which considered their slaves in some degree as men, when burdens were to be imposed, but refused to consider them in the same light, when advantages were to be conferred?

Might not some surprise also be expressed, that those who reproach the Southern States with the, barbarous policy of considering as property a part of their human brethren, should themselves contend, that the government to which all the States are to be parties, ought to consider this unfortunate race more completely in the unnatural light of property, than the very laws of which they complain?

It may be replied, perhaps, that slaves are not included in the estimate of representatives in any of the States possessing them. They neither vote themselves, nor increase the votes of their masters. Upon what principle, then, ought they to be taken into the Federal estimate of representation? In rejecting them altogether, the constitution would, in this respect, have followed the very laws which have been appealed to as the proper guide.

This objection is repelled by a single observation. It is a fundamental principle of the proposed constitution, that as the aggregate number of representatives allotted to the several States is to be determined by a Federal rule, founded on the aggregate number of inhabitants; so, the right of choosing this allotted number in each State, is to be exercised by such part of the inhabitants, as the State itself may designate. The qualifications of which the right of suffrage depends, are not perhaps the same in any two States. In some of the States the difference is very material. In every State, a certain proportion of inhabitants are deprived of this right by the constitution of the State, who will be included in the census by which the Federal constitution apportions the representatives. In this point of view, the Southern States might retort the complaint, by insisting, that the principle laid down by the convention required that no regard should be had to the policy of particular States towards their own inhabitants; and consequently, that the slaves, as inhabitants, should have been admitted into the census according to their full number, in like manner with other inhabitants, who, by the policy of other States, are not admitted to all the rights of citizens. A rigorous adherence, however, to this principle is waived by those who would be gainers by it. All that they ask, is that equal moderation be shown

on the other side. Let the case of the slaves be considered, as it is in truth, a peculiar one. Let the compromising expedient of the constitution be annually adopted, which regards them as inhabitants, but as debased by servitude below the equal level of free inhabitants, which regards the *slave* as divested of two-fifths of the *man*.

DEBATES IN FIRST CONGRESS,
MAY 13, 1789.

Mr. Parker (of Va.) moved to insert a clause in the bill, imposing a duty on the importation of slaves of ten dollars each person. He was sorry that the constitution prevented Congress from prohibiting the importation altogether; he thought it a defect in that instrument that it allowed of such actions, it was contrary to the revolution principles, and ought not to be permitted; but as he could not do all the good he desired, he was willing to do what lay in his power. He hoped such a duty as he moved for would prevent, in some degree, this irrational and inhuman traffic; if so, he should feel happy from the success of his motion.

Mr. Smith (of South Carolina,) hoped that such an important and serious proposition as this would not be hastily adopted; it was a very late moment for the introduction of new subjects. He expected the committee had got through the business, and would rise without discussing any thing further; at least, if gentlemen were determined on considering the present motion, he hoped they would delay for a few days, in order to give time for an examination of the subject. It was certainly a matter big with the most serious consequences to the State he represented; he did not think any one thing that had been discussed was so important to them, and the welfare of the Union, as the question now brought forward, but he was not prepared to enter on any argument, and therefore requested the motion might either be withdrawn or laid on the table.

Mr. Sherman (of Ct.) approved of the object of the motion, but he did not think this bill was proper to embrace the subject. He could not reconcile himself to the insertion of human beings as an article of duty, among goods, wares and merchandise. He hoped it would be withdrawn for the present, and taken up hereafter as an independent subject.

Mr. Jackson, (of Geo.) observing the quarter from which this motion came, said it did not surprise him, though it might have that effect on others. He recollected that Virginia was an old settled State, and had her complement of slaves, so she was careless of recruiting her numbers by this means; the natural increase of her imported blacks were sufficient for their purpose; but he thought gentlemen ought to let their neighbors get supplied before they imposed such a burthen upon the importation. He knew this business was viewed in an odious light to the Eastward, because the people were capable of doing their own work, and had no occasion for slaves; but gentlemen will have some feeling for others; they will not try to throw all the weight upon others, who have assisted in lightening their burdens; they do not wish to charge us for every comfort and enjoyment of life, and at the same time take away the means of procuring them; they do not wish to break us down at once.

He was convinced, from the inaptitude of the motion, and the want of time to consider it, that the candor of the gentleman would induce him to withdraw it for the present; and if ever it came forward again, he hoped it would comprehend the white slaves as well as black, who were imported from all the goals of Europe; wretches, convicted of the most flagrant crimes, were brought in and sold without any duty whatever. He thought that they ought to be taxed equal to the Africans, and had no doubt but the constitutionality and propriety of such a measure was equally apparent as the one proposed.

Mr. Tucker (of S.C.) thought it unfair to bring in such an important subject at the time when debate was almost precluded. The committee had gone through the impost bill, and the whole Union were impatiently expecting the result of their deliberations, the public must be disappointed and much revenue lost, or this question cannot undergo that full discussion which it deserves.

We have no right, said he, to consider whether the importation of slaves is proper or not; the Constitution gives us no power on that point, it is left to the States to judge of that matter as they see fit. But if it was a business the gentleman was determined to discourage, he ought to have brought his motion forward sooner, and even then not have introduced it without previous notice. He hoped the committee would reject the motion, if it was

not withdrawn; he was not speaking so much for the State he represented, as for Georgia, because the State of South Carolina had a prohibitory law, which could be renewed when its limitation expired.

Mr. Parker (of Va.,) had ventured to introduce the subject after full deliberation, and did not like to withdraw it. Although the gentleman from Connecticut (Mr. Sherman) had said, that they ought not to be enumerated with goods, wares, and merchandise, he believed they were looked upon by the African traders in this light, he knew it was degrading the human species to annex that character to them; but he would rather do this than continue the actual evil of importing slaves a moment longer. He hoped Congress would do all that lay in their power to restore to human nature its inherent privileges, and if possible wipe off the stigma which America laboured under. The inconsistency in our principles, with which we are justly charged, should be done away; that we may shew by our actions the pure beneficence of the doctrine we held out to the world in our declaration of independence.

Mr. Sherman (of Ct.,) thought the principles of the motion and the principles of the bill were inconsistent; the principle of the bill was to raise revenue, the principle of the motion to correct a moral evil. Now, considering it as an object of revenue, it would be unjust, because two or three States would bear the whole burthen, while he believed they bore their full proportion of all the rest. He was against receiving the motion into this bill, though he had no objection to taking it up by itself, on the principles of humanity and policy; and therefore would vote against it if it was not withdrawn.

Mr. Ames (of Mass.,) joined the gentleman last up. No one could suppose him favorable to slavery, he detested it from his soul, but he had some doubts whether imposing a duty on the importation, would not have the appearance of countenancing the practice; it was certainly a subject of some delicacy, and no one appeared to be prepared for the discussion, he therefore hoped the motion would be withdrawn.

Mr. Livermore. Was not against the principle of the motion, but in the present case he conceived it improper. If negroes were goods, wares, or merchandise, they came within the title of the bill; if they were not, the bill

would be inconsistent: but if they are goods, wares or merchandise, the 5 per cent ad valorem, will embrace the importation; and the duty of 5 per cent is nearly equal to 10 dollars per head, so there is no occasion to add it even on the score of revenue.

Mr. Jackson (of Ga.,) said it was the fashion of the day, to favor the liberty of slaves; he would not go into a discussion of the subject, but he believed it was capable of demonstration that they were better off in their present situation, than they would be if they were manumitted; what are they to do if they are discharged? Work for a living? Experience has shewn us they will not. Examine what is become of those in Maryland, many of them have been set free in that State; did they turn themselves to industry and useful pursuits? No, they turn out common pickpockets, petty larceny villains; and is this mercy, forsooth, to turn them into a way in which they must lose their lives,—for where they are thrown upon the world, void of property and connections, they cannot get their living but by pilfering. What is to be done for compensation? Will Virginia set all her negroes free? Will they give up the money they cost them, and to whom? When this practice comes to be tried there, the sound of liberty will lose those charms which make it grateful to the ravished ear.

But our slaves are not in a worse situation than they were on the coast of Africa; it is not uncommon there for the parents to sell their children in peace; and in war the whole are taken and made slaves together. In these cases it is only a change of one slavery for another; and are they not better here, where they have a master bound by the ties of interest and law to provide for their support and comfort in old age, or infirmity, in which, if they were free, they would sink under the pressure of woe for want of assistance.

He would say nothing of the partiality of such a tax, it was admitted by the avowed friends of the measure; Georgia in particular would be oppressed. On this account it would be the most odious tax Congress could impose.

Mr. Schureman (of N.J.) hoped the gentleman would withdraw his motion, because the present was not the time or place for introducing the business; he thought it had better be brought forward in the House, as a distinct

proposition. If the gentleman persisted in having the question determined, he would move the previous question if he was supported.

Mr. Madison, (of Va.) I cannot concur with gentlemen who think the present an improper time or place to enter into a discussion of the proposed motion; if it is taken up in a separate view, we shall do the same thing at a greater expense of time. But the gentlemen say that it is improper to connect the two objects, because they do not come within the title of the bill. But this objection may be obviated by accommodating the title to the contents; there may be some inconsistency in combining the ideas which gentlemen have expressed, that is, considering the human race as a species of property; but the evil does not arise from adopting the clause now proposed, it is from the importation to which it relates. Our object in enumerating persons on paper with merchandise, is to prevent the practice of actually treating them as such, by having them, in future, forming part of the cargoes of goods, wares, and merchandise to be imported into the United States. The motion is calculated to avoid the very evil intimated by the gentleman. It has been said that this tax will be partial and oppressive; but suppose a fair view is taken of this subject, I think we may form a different conclusion. But if it be partial or oppressive, are there not many instances in which we have laid taxes of this nature? Yet are they not thought to be justified by national policy? If any article is warranted on this account, how much more are we authorized to proceed on this occasion? The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy requires it of us; the constitution has particularly called our attention to it—and of all the articles contained in the bill before us, this is one of the last I should be willing to make a concession upon so far as I was at liberty to go, according to the terms of the constitution or principles of justice—I would not have it understood that my zeal would carry me to disobey the inviolable commands of either.

I understood it had been intimated, that the motion was inconsistent or unconstitutional. I believe, sir, my worthy colleague has formed the words with a particular reference to the constitution; any how, so far as the duty is expressed, it perfectly accords with that instrument; if there are any inconsistencies in it, they may be rectified; I believe the intention is well understood, but I am far from supposing the diction improper. If the description of the persons does not accord with the ideas of the gentleman

from Georgia, (Mr. Jackson,) and his idea is a proper one for the committee to adopt, I see no difficulty in changing the phraseology.

I conceive the constitution, in this particular, was formed in order that the government, whilst it was restrained from laying a total prohibition, might be able to give some testimony of the sense of America, with respect to the African trade. We have liberty to impose a tax or duty upon the importation of such persons as any of the States now existing shall think proper to admit; and this liberty was granted, I presume, upon two considerations—the first was, that until the time arrived when they might abolish the importation of slaves, they might have an opportunity of evidencing their sentiments, on the policy and humanity of such a trade; the other was that they might be taxed in due proportion with other articles imported; for if the possessor will consider them as property, of course they are of value and ought to be paid for. If gentlemen are apprehensive of oppression from the weight of the tax, let them make an estimate of its proportion, and they will find that it very little exceeds five per cent, ad valorem, so that they will gain very little by having them thrown into that mass of articles, whilst by selecting them in the manner proposed, we shall fulfil the prevailing expectation of our fellow citizens, and perform our duty in executing the purposes of the constitution. It is to be hoped that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, and our posterity the imbecility ever attendant on a country filled with slaves.

I do not wish to say any thing harsh, to the hearing of gentlemen who entertain different sentiments from me, or different sentiments from those I represent; but if there is any one point in which it is clearly the policy of this nation, so far as we constitutionally can, to vary the practice obtaining under some of the State governments, it is this; but it is certain a majority of the States are opposed to this practice, therefore, upon principle, we ought to discountenance it as far as is in our power.

If I was not afraid of being told that the representatives of the several States, are the best able to judge of what is proper and conducive to their particular prosperity, I should venture to say that it is as much the interest of Georgia and South Carolina, as of any in the Union. Every addition they receive to their number of slaves, tends to weaken them and renders them less capable

of self defence. In case of hostilities with foreign nations, they will be the means of inviting attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well internal as external; every thing therefore which tends to increase this danger, though it may be a local affair, yet if it involves national expense or safety, becomes of concern to every part of the Union, and is a proper subject for the consideration of those charged with the general administration of the government. I hope, in making these observations, I shall not be understood to mean that a proper attention ought not to be paid to the local opinions and circumstances of any part of the United States, or that the particular representatives are not best able to judge of the sense of their immediate constituents.

If we examine the proposal measure by the agreement there is between it, and the existing State laws, it will show us that it is patronized by a very respectable part of the Union. I am informed that South Carolina has prohibited the importation of slaves for several years yet to come; we have the satisfaction then of reflecting that we do nothing more than their own laws do at this moment. This is not the case with one State. I am sorry that her situation is such as to seem to require a population of this nature, but it is impossible in the nature of things, to consult the national good without doing what we do not wish to do, to some particular part. Perhaps gentlemen contend against the introduction of the clause, on too slight grounds. If it does not conform with the title of the bill, alter the latter; if it does not conform to the precise terms of the constitution, amend it. But if it will tend to delay the whole bill, that perhaps will be the best reason for making it the object of a separate one. If this is the sense of the committee I shall submit.

Mr. Gerry (of Mass.) thought all duties ought to be laid as equal as possible. He had endeavored to enforce this principle yesterday, but without the success he wished for, he was bound by the principles of justice therefore to vote for the proposition; but if the committee were desirous of considering the subject fully by itself, he had no objection, but he thought when gentlemen laid down a principle, they ought to support it generally.

Mr. Burke (of S.C.) said, gentlemen were contending for nothing; that the value of a slave averaged about £80, and the duty on that sum at five per

cent, would be ten dollars, as congress could go no farther than that sum, he conceived it made not difference whether they were enumerated or left in the common mass.

Mr. Madison, (of Va.) If we contend for nothing, the gentlemen who are opposed to us do not contend for a great deal; but the question is, whether the five percent ad valorem, on all articles imported, will have any operation at all upon the introduction of slaves, unless we make a particular enumeration on this account; the collector may mistake, for he would not presume to apply the term goods, wares, and merchandise to any person whatsoever. But if that general definition of goods, wares, and merchandise are supposed to include African Slaves, why may we not particularly enumerate them, and lay the duty pointed out by the Constitution, which, as gentlemen tell us, is no more than five per cent upon their value; this will not increase the burden upon any, but it will be that manifestation of our sense, expected by our constituents, and demanded by justice and humanity.

Mr. Bland (of Va.) had no doubt of the propriety or good policy of this measure. He had made up his mind upon it, he wished slaves had never been introduced into America; but if it was impossible at this time to cure the evil, he was very willing to join in any measures that would prevent its extending farther. He had some doubts whether the prohibitory laws of the States were not in part repealed. Those who had endeavored to discountenance this trade, by laying a duty on the importation, were prevented by the Constitution from continuing such regulation, which declares, that no State shall lay any impost or duties on imports. If this was the case, and he suspected pretty strongly that it was, the necessity of adopting the proposition of his colleague was not apparent.

Mr. Sherman (of Ct.) said, the Constitution does not consider these persons as a species of property; it speaks of them as persons, and says, that a tax or duty may be imposed on the importation of them into any State which shall permit the same, but they have no power to prohibit such importation for twenty years. But Congress have power to declare upon what terms persons coming into the United States shall be entitled to citizenship; the rule of naturalization must however be uniform. He was convinced there were others ought to be regulated in this particular, the importation of whom was of an evil tendency, he meant convicts particularly. He thought that some

regulation respecting them was also proper; but it being a different subject, it ought to be taken up in a different manner.

Mr. Madison (of Va.) was led to believe, from the observation that had fell from the gentlemen, that it would be best to make this the subject of a distinct bill: he therefore wished his colleague would withdraw his motion, and move in the house for leave to bring in a bill on the same principles.

Mr. Parker (of Va.) consented to withdraw his motion, under a conviction that the house was fully satisfied of its propriety. He knew very well that these persons were neither goods, nor wares, but they were treated as articles of merchandise. Although he wished to get rid of this part of his property, yet he should not consent to deprive other people of theirs by any act of his without their consent.

The committee rose, reported progress, and the house adjourned.

FEBRUARY 11th, 1790.

Mr. Lawrance (of New York,) presented an address from the society of Friends, in the City of New York; in which they set forth their desire of co-operating with their Southern brethren.

Mr. Hartley (of Penn.) then moved to refer the address of the annual assembly of Friends, held at Philadelphia, to a committee; he thought it a mark of respect due so numerous and respectable a part of the community.

Mr. White (of Va.) seconded the motion.

Mr. Smith, (of S.C.) However respectable the petitioners may be, I hope gentlemen will consider that others equally respectable are opposed to the object which is aimed at, and are entitled to an opportunity of being heard before the question is determined. I flatter myself gentlemen will not press the point of commitment to-day, it being contrary to our usual mode of procedure.

Mr. Fitzsimons, (of Penn.) If we were now about to determine the final question, the observation of the gentleman from South Carolina would apply; but, sir, the present question does not touch upon the merits of the case; it is merely to refer the memorial to a committee, to consider what is

proper to be done; gentlemen, therefore, who do not mean to oppose the commitment to-morrow, may as well agree to it to-day, because it will tend to save the time of the house.

Mr. Jackson (of Geo.) wished to know why the second reading was to be contended for to-day, when it was diverting the attention of the members from the great object that was before the committee of the whole? Is it because the feelings of the Friends will be hurt, to have their affair conducted in the usual course of business? Gentlemen who advocate the second reading to-day, should respect the feelings of the members who represent that part of the Union which is principally to be affected by the measure. I believe, sir, that the latter class consists of as useful and as good citizens as the petitioners, men equally friends to the revolution, and equally susceptible of the refined sensations of humanity and benevolence. Why then should such particular attention be paid to them, for bringing forward a business of questionable policy? If Congress are disposed to interfere in the importation of slaves, they can take the subject up without advisers, because the Constitution expressly mentions all the power they can exercise on the subject.

Mr. Sherman (of Conn.) suggested the idea of referring it to a committee, to consist of a member from each State, because several States had already made some regulations on this subject. The sooner the subject was taken up he thought it would be the better.

Mr. Parker, (of Va.) I hope, Mr. Speaker, the petition of these respectable people, will be attended to with all the readiness the importance of its object demands: and I cannot help expressing the pleasure I feel in finding so considerable a part of the community attending to matters of such momentous concern to the future prosperity and happiness of the people of America. I think it my duty, as a citizen of the Union, to espouse their cause; and it is incumbent upon every member of this house to sift the subject well, and ascertain what can be done to restrain a practice so nefarious. The Constitution has authorized as to levy a tax upon the importation of such persons as the States shall authorize to be admitted. I would willingly go to that extent; and if any thing further can be devised to discountenance the trade, consistent with the terms of the Constitution, I shall cheerfully give it my assent and support.

Mr. Madison, (of Va.) The gentleman from Pennsylvania, (Mr. Fitzsimons) has put this question on its proper ground. If gentlemen do not mean to oppose the commitment to-morrow, they may as well acquiesce in it to-day; and I apprehend gentlemen need not be alarmed at any measure it is likely Congress should take; because they will recollect, that the Constitution secures to the individual States the right of admitting, if they think proper, the importation of slaves into their own territory, for eighteen years yet unexpired; subject, however, to a tax, if Congress are disposed to impose it, of not more than ten dollars on each person.

The petition, if I mistake not, speaks of artifices used by self-interested persons to carry on this trade; and the petition from New York states a case, that may require the consideration of Congress. If anything is within the Federal authority to restrain such violation of the rights of nations, and of mankind, as is supposed to be practised in some parts of the United States it will certainly tend to the interest and honor of the community to attempt a remedy, and is a proper subject for our discussion. It may be, that foreigners take the advantage of the liberty afforded them by the American trade, to employ our shipping in the slave trade between Africa and the West Indies, when they are restrained from employing their own by restrictive laws of their nation. If this is the case, is there any person of humanity that would not wish to prevent them? Another consideration why we should commit the petition is, that we may give no ground of alarm by a serious opposition, as if we were about to take measures that were unconstitutional.

Mr. Stone (of Md.) feared that if Congress took any measures, indicative of an intention to interfere with the kind of property alluded to, it would sink it in value very considerably, and might be injurious to a great number of the citizens, particularly in the Southern States.

He thought the subject was of general concern, and that the petitioners had no more right to interfere with it than any other members of the community. It was an unfortunate circumstance, that it was the property of sects to imagine they understood the rights of human nature better than all the world beside; and that they would, in consequence, be meddling with concerns in which they had nothing to do.

As the petition relates to a subject of a general nature, it ought to lie on the table, as information; he would never consent to refer petitions, unless the petitioners were exclusively interested. Suppose there was a petition to come before us from a society, praying us to be honest in our transactions, or that we should administer the Constitution according to its intention—what would you do with a petition of this kind? Certainly it would remain on your table. He would, nevertheless, not have it supposed, that the people had not a right to advise and give their opinion upon public measures; but he would not be influenced by that advice or opinion, to take up a subject sooner than the convenience of other business would admit. Unless he changed his sentiments, he would oppose the commitment.

Mr. Burke (of S.C.) thought gentlemen were paying attention to what did not deserve it. The men in the gallery had come here to meddle in a business with which they have nothing to do; they were volunteering it in the cause of others, who neither expected nor desired it. He had a respect for the body of Quakers, but, nevertheless, he did not believe they had more virtue, or religion, than other people, nor perhaps so much, if they were examined to the bottom, notwithstanding their outward pretences. If their petition is to be noticed, Congress ought to wait till counter applications were made, and then they might have the subject more fairly before them. The rights of the Southern States ought not to be threatened, and their property endangered, to please people who were to be unaffected by the consequences.

Mr. Hartley (of Penn.) thought the memorialists did not deserve to be aspersed for their conduct, if influenced by motives of benignity, they solicited the Legislature of the Union to repel, as far as in their power, the increase of a licentious traffic. Nor do they merit censure, because their behavior has the appearance of more morality than other people's. But it is not for Congress to refuse to hear the applications of their fellow-citizens, while those applications contain nothing unconstitutional or offensive. What is the object of the address before us? It is intended to bring before this House a subject of great importance to the cause of humanity; there are certain facts to be enquired into, and the memorialists are ready to give all the information in their power; they are waiting, at a great distance from their homes, and wish to return; if, then, it will be proper to commit the

petition to-morrow, it will be equally proper to-day, for it is conformable to our practice, beside, it will tend to their conveniency.

Mr. Lawrance, (of N.Y.) The Gentleman from South Carolina says, the petitioners are of a society not known in the laws or Constitution. Sir, in all our acts, as well as in the Constitution, we have noticed this Society; or why is it that we admit them to affirm, in cases where others are called upon to swear? If we pay this attention to them, in one instance, what good reason is there for condemning them in another? I think the gentleman from Maryland (Mr. Stone,) carries his apprehensions too far, when he fears that negro-property will fall in value, by the suppression of the slave-trade: not that I suppose it immediately in the power of Congress to abolish a traffic which is a disgrace to human nature; but it appears to me, that, if the importation was crushed, the value of a slave would be increased instead of diminished; however, considerations of this kind have nothing to do with the present question; gentlemen may acquiesce in the commitment of the memorial, without pledging themselves to support its object.

Mr. Jackson, (of Ga.) I differ much in opinion with the gentleman last up. I apprehend if, through the interference of the general government, the slave-trade was abolished, it would evince to the people a disposition toward a total emancipation, and they would hold their property in jeopardy. Any extraordinary attention of Congress to this petition may have, in some degree, a similar effect. I would beg to ask those, then, who are so desirous of freeing the negroes, if they have funds sufficient to pay for them? If they have, they may come forward on that business with some propriety; but, if they have not, they should keep themselves quiet, and not interfere with a business in which they are not interested. They may as well come forward, and solicit Congress to interdict the West-India trade, because it is injurious to the morals of mankind; from thence we import rum, which has a debasing influence upon the consumer. But, sir, is the whole morality of the United States confined to the Quakers? Are they the only people whose feelings are to be consulted on this occasion? Is it to them we owe our present happiness? Was it they who formed the Constitution? Did they, by their arms, or contributions, establish our independence? I believe they were generally opposed to that measure. Why, then, on their application, shall we injure men, who, at the risk of their lives and fortunes, secured to the community their liberty and property? If Congress pay any uncommon

degree of attention to their petition, it will furnish just ground of alarm to the Southern States. But, why do these men set themselves up, in such a particular manner, against slavery? Do they understand the rights of mankind, and the disposition of Providence better than others? If they were to consult that Book which claims our regard, they will find that slavery is not only allowed, but commended. Their Saviour, who possessed more benevolence and commiseration than they pretend to, has allowed of it. And if they fully examine the subject, they will find that slavery has been no novel doctrine since the days of Cain. But be these things as they may, I hope the house will order the petition to lie on the table, in order to prevent alarming our Southern brethren.

Mr. Sedgwick, (of Mass.) If it was a serious question, whether the Memorial should be committed or not, I would not urge it at this time; but that cannot be a question for a moment, if we consider our relative situation with the people. A number of men,—who are certainly very respectable, and of whom, as a society, it may be said with truth, that they conform their moral conduct to their religious tenets, as much as any people in the whole community,—come forward and tell you, that you may effect two objects by the exercise of a Constitutional authority which will give great satisfaction; on the one hand you may acquire revenue, and on the other, restrain a practice productive of great evil. Now, setting aside the religious motives which influenced their application, have they not a right, as citizens, to give their opinion of public measures? For my part I do not apprehend that any State, or any considerable number of individuals in any State, will be seriously alarmed at the commitment of the petition, from a fear that Congress intend to exercise an unconstitutional authority, in order to violate their rights; I believe there is not a wish of the kind entertained by any member of this body. How can gentlemen hesitate then to pay that respect to a memorial which it is entitled to, according to the ordinary mode of procedure in business? Why shall we defer doing that till to-morrow, which we can do to-day? for the result, I apprehend, will be the same in either case.

Mr. Smith, (of S.C.) The question, I apprehend, is, whether we will take the petition up for a second reading, and not whether it shall be committed? Now, I oppose this, because it is contrary to our usual practice, and does not allow gentlemen time to consider of the merits of the prayer; perhaps some

gentlemen may think it improper to commit it to so large a committee as has been mentioned; a variety of causes may be supposed to show that such a hasty decision is improper; perhaps the prayer of it is improper. If I understood it right, on its first reading, though, to be sure, I did not comprehend perfectly all that the petition contained, it prays that we should take measures for the abolition of the slave trade; this is desiring an unconstitutional act, because the constitution secures that trade to the States, independent of congressional restrictions, for the term of twenty-one years. If, therefore, it prays for a violation of constitutional rights, it ought to be rejected, as an attempt upon the virtue and patriotism of the house.

Mr. Boudinot, (of N.J.) It has been said that the Quakers have no right to interfere in this business; I am surprised to hear this doctrine advanced, after it has been so lately contended, and settled, that the people have a right to assemble and petition for redress of grievances; it is not because the petition comes from the society of Quakers that I am in favor of the commitment, but because it comes from citizens of the United States, who are as equally concerned in the welfare and happiness of their country as others. There certainly is no foundation for the apprehensions which seem to prevail in gentlemen's minds. If the petitioners were so uninformed as to suppose that congress could be guilty of a violation of the constitution, yet, I trust we know our duty better than to be led astray by an application from any man, or set of men whatever. I do not consider the merits of the main question to be before us; it will be time enough to give our opinions upon that, when the committee have reported. If it is in our power, by recommendation, or any other way, to put a stop to the slave-trade in America, I do not doubt of its policy; but how far the constitution will authorize us to attempt to depress it, will be a question well worthy of our consideration.

Mr. Sherman (of Conn.) observed, that the petitioners from New York, stated that they had applied to the legislature of that State, to prohibit certain practices which they conceived to be improper, and which tended to injure the well-being of the community; that the legislature had considered the application, but had applied no remedy, because they supposed that power was exclusively vested in the general government, under the constitution of the United States; it would, therefore, be proper to commit

that petition, in order to ascertain what were the powers of the general government, in the case doubted by the legislature of New York.

Mr. Gerry (of Mass.) thought gentlemen were out of order in entering upon the merits of the main question at this time, when they were considering the expediency of committing the petition; he should, therefore, now follow them further in that track than barely to observe, that it was the right of the citizens to apply for redress, in every case they conceived themselves aggrieved in; and it was the duty of congress to afford redress as far as in their power. That their Southern brethren had been betrayed into the slave-trade by the first settlers, was to be lamented; they were not to be reflected on for not viewing this subject in a different light, the prejudice of education is eradicated with difficulty; but he thought nothing would excuse the general government for not exerting itself to prevent, as far as they constitutionally could, the evils resulting from such enormities as were alluded to by the petitioners; and the same considerations induced him highly to commend the part the society of Friends had taken; it was the cause of humanity they had interested themselves in, and he wished, with them, to see measures pursued by every nation, to wipe off the indelible stain which the slave-trade had brought upon all who were concerned in it.

Mr. Madison (of Va.) thought the question before the committee was no otherwise important than as gentlemen made it so by their serious opposition. Did they permit the commitment of the Memorial, as a matter of course, no notice would be taken of it out of doors; it could never be blown up into a decision of the question respecting the discouragement of the African slave-trade, nor alarm the owners with an apprehension that the general government were about to abolish slavery in all the States; such things are not contemplated by any gentleman; but, to appearance, they decide the question more against themselves than would be the case if it was determined on its real merits, because gentlemen may be disposed to vote for the commitment of a petition, without any intention of supporting the prayer of it.

Mr. White (of Va.) would not have seconded the motion, if he had thought it would have brought on a lengthy debate. He conceived that a business of this kind ought to be decided without much discussion; it had constantly

been the practice of the house, and he did not suppose there was any reason for a deviation.

Mr. Page (of Va.) said, if the memorial had been presented by any individual, instead of the respectable body it was, he should have voted in favor of a commitment, because it was the duty of the legislature to attend to subjects brought before them by their constituents; if, upon inquiry, it was discovered to be improper to comply with the prayer of the petitioners, he would say so, and they would be satisfied.

Mr. Stone (of Md.) thought the business ought to be left to take its usual course; by the rules of the house, it was expressly declared, that petitions, memorials, and other papers, addressed to the house, should not be debated or decided on the day they were first read.

Mr. Baldwin (of Ga.) felt at a loss to account why precipitation was used on this occasion, contrary to the customary usage of the house; he had not heard a single reason advanced in favor of it. To be sure it was said the petitioners are a respectable body of men—he did not deny it—but, certainly, gentlemen did not suppose they were paying respect to them, or to the house, when they urged such a hasty procedure; anyhow it was contrary to his idea of respect, and the idea the house had always expressed, when they had important subjects under consideration; and, therefore, he should be against the motion. He was afraid that there was really a little volunteering in this business, as it had been termed by the gentleman from Georgia.

Mr. Huntington (of Conn.) considered the petitioners as much disinterested as any person in the United States; he was persuaded they had an aversion to slavery; yet they were not singular in this, others had the same; and he hoped when congress took up the subject, they would go as far as possible to prohibit the evil complained of. But he thought that would better be done by considering it in the light of revenue. When the committee of the whole, on the finance business, came to the ways and means, it might properly be taken into consideration, without giving any ground for alarm.

Mr. Tucker, (of S.C.) I have no doubt on my mind respecting what ought to be done on this occasion; so far from committing the memorial, we ought to dismiss it without further notice. What is the purport of the memorial? It is

plainly this; to reprobate a particular kind of commerce, in a moral view, and to request the interposition of congress to effect its abrogation. But congress have no authority, under the constitution, to do more than lay a duty of ten dollars upon each person imported; and this is a political consideration, not arising from either religion or morality, and is the only principle upon which we can proceed to take it up. But what effect do these men suppose will arise from their exertions? Will a duty of ten dollars diminish the importation? Will the treatment be better than usual? I apprehend it will not, nay, it may be worse. Because an interference with the subject may excite a great degree of restlessness in the minds of those it is intended to serve, and that may be a cause for the masters to use more rigor towards them, than they would otherwise exert; so that these men seem to overshoot their object. But if they will endeavor to procure the abolition of the slave-trade, let them prefer their petitions to the State legislatures, who alone have the power of forbidding the importation; I believe their applications there would be improper; but if they are any where proper, it is there. I look upon the address then to be ill-judged, however good the intention of the framers.

Mr. Smith (of S.C.) claimed it as a right, that the petition should lay over till to-morrow.

Mr. Boudinor (of N.J.) said it was not unusual to commit petitions on the day they were presented; and the rules of the house admitted the practice, by the qualification which followed the positive order, that petitions should not be decided on the day they were first read, "unless where the house shall direct otherwise."

Mr. Smith (of S.C.) declared his intention of calling the yeas and nays, if gentlemen persisted in pressing the question.

Mr. Clymer (of Penn.) hoped the motion would be withdrawn for the present, and the business taken up in course to-morrow; because, though he respected the memorialists, he also respected order and the situation of the members.

Mr. Fitzsimons (of Penn.) did not recollect whether he moved or seconded the motion, but if he had, he should not withdraw it on account of the threat of calling the yeas and nays.

Mr. Baldwin (of Ga.) hoped the business would be conducted with temper and moderation, and that gentlemen would concede and pass the subject over a day at least.

Mr. Smith (of S.C.) had no idea of holding out a threat to any gentleman. If the declaration of an intention to call the yeas and nays was viewed by gentlemen in that light, he would withdraw that call.

Mr. White (of Va.) hereupon withdrew his motion. And the address was ordered to lie on the table.

FEBRUARY 12th, 1790.

The following memorial was presented and read:

"To the Senate and House of Representatives of the United States: The Memorial of the Pennsylvania Society for promoting the abolition of slavery, the relief of free negroes unlawfully held in bondage, and the improvement of the condition of the African race, respectfully sheweth: That from a regard for the happiness of mankind, an association was formed several years since in this State, by a number of her citizens, of various religious denominations, for promoting the abolition of slavery, and for the relief of those unlawfully held in bondage. A just and acute conception of the true principles of liberty, as it spread through the land, produced accessions to their numbers, many friends to their cause, and a legislative co-operation with their views, which, by the blessing of Divine Providence, have been successfully directed to the relieving from bondage a large number of their fellow creatures of the African race. They have also the satisfaction to observe, that, in consequence of that spirit of philanthropy and genuine liberty which is generally diffusing its beneficial influence, similar institutions are forming at home and abroad. That mankind are all formed by the same Almighty Being, alike objects of his care, and equally designed for the enjoyment of happiness, the Christian religion teaches us to believe, and the political creed of Americans fully coincides with the position. Your memorialists, particularly engaged in attending to the distresses arising from slavery, believe it their indispensable duty to present this subject to your notice. They have observed with real satisfaction, that many important and salutary powers are vested in you for 'promoting the welfare and securing the blessings of liberty to the people of the United

States;' and as they conceive, that these blessings ought rightfully to be administered, without distinction of color, to all descriptions of people, so they indulge themselves in the pleasing expectation, that nothing which can be done for the relief of the unhappy objects of their care, will be either omitted or delayed. From a persuasion that equal liberty was originally the portion, and is still the birth-right of all men, and influenced by the strong ties of humanity and the principles of their institution, your memorialists conceived themselves bound to use all justifiable endeavors to loosen the bands of slavery, and promote a general enjoyment of the blessings of freedom. Under these impressions, they earnestly entreat your serious attention to the subject of slavery; that you will be pleased to countenance the restoration of liberty to those unhappy men, who alone, in this land of freedom, are degraded into perpetual bondage, and who, amidst the general joy of surrounding freemen, are groaning in servile subjection; that you will devise means for removing this inconsistency from the character of the American people; that you will promote mercy and justice towards this distressed race, and that you will step to the very verge of the power vested in you, for discouraging every species of traffic in the persons of our fellow-men.

"BENJAMIN FRANKLIN, *President*.

"PHILADELPHIA, *February 3, 1790.*"

Mr. Hartley (of Penn.) then called up the memorial presented yesterday, from the annual meeting of Friends at Philadelphia, for a second reading; whereupon the same was read a second time, and moved to be committed.

Mr. Tucker (of S.C.) was sorry the petition had a second reading as he conceived it contained an unconstitutional request, and from that consideration he wished it thrown aside. He feared the commitment of it would be a very alarming circumstance to the Southern States; for if the object was to engage Congress in an unconstitutional measure, it would be considered as an interference with their rights, the people would become very uneasy under the government, and lament that they ever put additional powers into their hands. He was surprised to see another memorial on the same subject and that signed by a man who ought to have known the constitution better. He thought it a mischievous attempt, as it respected the

persons in whose favor it was intended. It would buoy them up with hopes, without a foundation, and as they could not reason on the subject, as more enlightened men would, they might be led to do what they would be punished for, and the owners of them, in their own defence, would be compelled to exercise over them a severity they were not accustomed to. Do these men expect a general emancipation of slaves by law? This would never be submitted to by the Southern States without a civil war. Do they mean to purchase their freedom? He believed their money would fall short of the price. But how is it they are more concerned in this business than others? Are they the only persons who possess religion and morality? If the people are not so exemplary, certainly they will admit the clergy are; why then do we not find them uniting in a body, praying us to adopt measures for the promotion of religion and piety, or any moral object? They know it would be an improper interference; and to say the best of this memorial, it is an act of imprudence, which he hoped would receive no countenance from the house.

Mr. Seney (of Md.) denied that there was anything unconstitutional in the memorial, at least, if there was, it had escaped his attention, and he should be obliged to the gentleman to point it out. Its only object was, that congress should exercise their constitutional authority, to abate the horrors of slavery, as far as they could: Indeed, he considered that all altercation on the subject of commitment was at an end, as the house had impliedly determined yesterday that it should be committed.

Mr. Burke (of S.C.) saw the disposition of the house, and he feared it would be referred to a committee, maugre all their opposition; but he must insist that it prayed for an unconstitutional measure. Did it not desire congress to interfere and abolish the slave-trade, while the constitution expressly stipulated that congress should exercise no such power? He was certain the commitment would sound in alarm, and blow the trumpet of sedition in the Southern States. He was sorry to see the petitioners paid more attention to than the constitution; however, he would do his duty, and oppose the business totally; and if it was referred to a committee, as mentioned yesterday, consisting of a member from each State, and he was appointed, he would decline serving.

Mr. Scott, (of Penn.) I can't entertain a doubt but the memorial duty particularly assigned to us by that instrument, and I hope we may be inclined to take it into consideration. We can, at present, lay our hands upon a small duty of ten dollars. I would take this, and if it is all we can do, we must be content. But I am sorry that the framers of the constitution did not go farther and enable us to interdict it for good and all; for I look upon the slave-trade to be one of the most abominable things on earth; and if there was neither God nor devil, I should oppose it upon the principles of humanity and the law of nature. I cannot, for my part, conceive how any person can be said to acquire a property in another; is it by virtue of conquest? What are the rights of conquest? Some have dared to advance this monstrous principle, that the conqueror is absolute master of his conquest; that he may dispose of it as his property, and treat it as he pleases; but enough of those who reduce men to the state of transferable goods, or use them like beasts of burden; who deliver them up as the property or patrimony of another man. Let us argue on principles countenanced by reason and becoming humanity; the petitioners view the subject in a religious light, but I do not stand in need of religious motives to induce me to reprobate the traffic in human flesh; other considerations weigh with me to support the commitment of the memorial, and to support every constitutional measure likely to bring about its total abolition. Perhaps, in our legislative capacity, we can go no further than to impose a duty of ten dollars, but I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation; but I am sure I would go as far as I could.

Mr. Jackson (of Ga.) differed with the gentleman last up, and supposed the master had a qualified property in his slave; he said the contrary doctrine would go to the destruction of every species of personal service. The gentleman said he did not stand in need of religion to induce him to reprobate slavery, but if he is guided by that evidence, which the Christian system is founded upon, he will find that religion is not against it; he will see, from Genesis to Revelation, the current setting strong that way. There never was a government on the face of the earth, but what permitted slavery. The purest sons of freedom in the Grecian republics, the citizens of Athens and Lacedaemon all held slaves. On this principle the nations of Europe are associated; it is the basis of the feudal system. But suppose all

this to have been wrong, let me ask the gentleman, if it is policy to bring forward a business at this moment, likely to light up a flame of civil discord, for the people of the Southern States will resist one tyranny as soon as another; the other parts of the continent may bear them down by force of arms, but they will never suffer themselves to be divested of their property without a struggle. The gentleman says, if he was a federal judge, he does not know to what length he would go in emancipating these people; but, I believe his judgment would be of short duration in Georgia; perhaps even the existence of such a judge might be in danger.

Mr. Sherman (of Conn.) could see no difficulty in committing the memorial; because it was probable the committee would understand their business, and perhaps they might bring in such a report as would be satisfactory to gentlemen on both sides of the House.

Mr. Baldwin (of Ga.) was sorry the subject had ever been brought before Congress, because it was a delicate nature, as it respected some of the States. Gentlemen who had been present at the formation of this Constitution, could not avoid the recollection of the pain and difficulty which the subject caused in that body; the members from the Southern States were so tender upon this point, that they had well nigh broken up without coming to any determination; however, from the extreme desire of preserving the Union, and obtaining an efficient government, they were induced mutually, to concede, and the Constitution jealously guarded what they agreed to. If gentlemen look over the footsteps of that body, they will find the greatest degree of caution used to imprint them, so as not to be easily eradicated; but the moment we go to jostle on that ground, said he, I fear we shall feel it tremble under our feet. Congress have no power to interfere with the importation of slaves, beyond what is given in the 9th section of the 1st article of the Constitution; every thing else is interdicted to them in the strongest terms. If we examine the Constitution, we shall find the expressions, relative to this subject, cautiously expressed, and more punctiliously guarded than any other part. "The migration or importation of such persons, shall not be prohibited by Congress." But lest this should not have secured the object sufficiently, it is declared in the same section, "That no capitation or direct tax shall be laid, unless in proportion to the census;" this was intended to prevent Congress from laying any special tax upon negro slaves, as they might, in this way, so burthen the possessors of them,

as to induce a general emancipation. If we go on to the 5th article, we shall find the 1st and 5th clauses of the 9th section of the 1st article restrained from being altered before the year 1808.

Gentlemen have said, that this petition does not pray for an abolition of the slave-trade; I think, sir, it prays for nothing else, and therefore we have no more to do with it, than if it prayed us to establish an order of nobility, or a national religion.

Mr. Sylvester of (N.Y.) said that he had always been in the habit of respecting the society called Quakers; he respected them for their exertions in the cause of humanity, but he thought the present was not a time to enter into a consideration of the subject, especially as he conceived it to be a business in the province of the State legislature.

Mr. Lawrance of (of N.Y.) observed that the subject would undoubtedly come under the consideration of the House; and he thought, that as it was now before them, that the present time was as proper as any; he was therefore for committing the memorial; and when the prayer of it had been properly examined, they could see how far congress may constitutionally interfere; as they knew the limits of their power on this, as well as on every other occasion, there was no just apprehension to be entertained that they would go beyond them.

Mr. Smith (of S.C.) insisted that it was not in the power of the House to grant the prayer of the petition, which went to the total abolishment of the slave trade, and it was therefore unnecessary to commit it. He observed, that in the Southern States, difficulties had arisen on adopting the Constitution, inasmuch as it was apprehended, that Congress might take measures under it for abolishing the slave-trade.

Perhaps the petitioners, when they applied to this house, did not think their object unconstitutional, but now they are told that it is, they will be satisfied with the answer, and press it no further. If their object had been for Congress to lay a duty of ten dollars per head on the importation of slaves, they would have said so, but that does not appear to have been the case; the commitment of the petition, on that ground, cannot be contended; if they will not be content with that, shall it be committed to investigate facts? The petition speaks of none; for what purpose then shall it be committed? If

gentlemen can assign no good reason for the measure, they will not support it, when they are told that it will create great jealousies and alarm in the Southern States; for I can assure them, that there is no point on which they are more jealous and suspicious, than on a business with which they think the government has nothing to do.

When we entered into this Confederacy, we did it from political, not from moral motives, and I do not think my constituents want to learn morals from the petitioners; I do not believe they want improvement in their moral system; if they do, they can get it at home.

The gentleman from Georgia, has justly stated the jealousy of the Southern States. On entering into this government, they apprehended that the other States, not knowing the necessity the citizens of the Southern States were under to hold this species of property, would, from motives of humanity and benevolence, be led to vote for a general emancipation; and had they not seen that the Constitution provided against the effect of such a disposition, I may be bold to say, they never would have adopted it. And notwithstanding all the calmness with which some gentlemen have viewed the subject, they will find, that the discussion alone will create great alarm. We have been told, that if the discussion will create alarm, we ought to have avoided it, by saying nothing; but it was not for that purpose that we were sent here, we look upon this measure as an attack upon the palladium of the property of our country; it is therefore our duty to oppose it by every means in our power. Gentlemen should consider that when we entered into a political connexion with the other States, that this property was there; it was acquired under a former government, conformably to the laws and Constitution; therefore anything that will tend to deprive them of that property, must be an *ex post facto* law, and as such is forbid by our political compact.

I said the States would never have entered into the confederation, unless their property had been guaranteed to them, for such is the state of agriculture in that country, that without slaves it must be depopulated. Why will these people then make use of arguments to induce the slave to turn his hand against his master? We labor under difficulties enough from the ravages of the late war. A gentleman can hardly come from that country, with a servant or two, either to this place or Philadelphia, but what there are

persons trying to seduce his servants to leave him; and, when they have done this, the poor wretches are obliged to rob their master in order to obtain a subsistence; all those, therefore, who are concerned in this seduction, are accessaries to the robbery.

The reproaches which they cast upon the owners of negro property, is charging them with the want of humanity; I believe the proprietors are persons of as much humanity as any part of the continent and are as conspicuous for their good morals as their neighbors. It was said yesterday, that the Quakers were a society known to the laws, and the Constitution, but they are no more so than other religious societies; they stand exactly in the same situation; their memorial, therefore, relates to a matter in which they are no more interested than any other sect, and can only be considered as a piece of advice; it is customary to refer a piece of advice to a committee, but if it is supposed to pray for what they think a moral purpose, is that sufficient to induce us to commit it? What may appear a moral virtue in their eyes, may not be so in reality. I have heard of a sect of Shaking Quakers, who, I presume, suppose their tenets of a moral tendency; I am informed one of them forbids to intermarry, yet in consequence of their shakings and concussions, you may see them with a numerous offspring about them. Now, if these people were to petition Congress to pass a law prohibiting matrimony, I ask, would gentlemen agree to refer such a petition? I think if they would reject one of that nature, as improper, they ought also to reject this.

Mr. Page (of Va.) was in favor of the commitment; he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion of the prayer of the memorial. He observed that gentlemen had founded their arguments upon a misrepresentation; for the object of the memorial was not declared to be the total abolition of the slave trade: but that Congress would consider, whether it be not in reality within their power to exercise justice and mercy, which, if adhered to, they cannot doubt must produce the abolition of the slave trade. If then the prayer contained nothing unconstitutional, he trusted the meritorious effort would not be frustrated. With respect to the alarm that was apprehended, he conjectured there was none; but there might be just cause, if the memorial was not taken into consideration. He placed himself in the case of a slave, and said, that, on hearing that Congress had refused to

listen to the decent suggestions of a respectable part of the community, he should infer, that the general government (from which was expected great good would result to every class of citizens) had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if any thing could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf, and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and wait the decision patiently. He presumed that these unfortunate people would reason in the same way; and he, therefore, conceived the most likely way to prevent danger, was to commit the petition. He lived in a State which had the misfortune of having in her bosom a great number of slaves, he held many of them himself, and was as much interested in the business, he believed, as any gentleman in South Carolina or Georgia, yet, if he was determined to hold them in eternal bondage, he should feel no uneasiness or alarm on account of the present measure, because he should rely upon the virtue of Congress, that they would not exercise any unconstitutional authority.

Mr. Madison (of Va.) The debate has taken a serious turn, and it will be owing to this alone if an alarm is created; for had the memorial been treated in the usual way, it would have been considered as a matter of course, and a report might have been made, so as to have given general satisfaction.

If there was the slightest tendency by the commitment to break in upon the constitution, he would object to it; but he did not see upon what ground such an event was to be apprehended. The petition prayed, in general terms, for the interference of congress, so far as they were constitutionally authorized; but even if its prayer was, in some degree, unconstitutional, it might be committed, as was the case on Mr. Churchman's petition, one part of which was supposed to apply for an unconstitutional interference by the general government.

He admitted that congress was restricted by the constitution from taking measures to abolish the slave-trade; yet there were a variety of ways by which they could countenance the abolition, and they might make some regulations respecting the introduction of them into the new States, to be

formed out of the Western Territory, different from what they could in the old settled States. He thought the object well worthy of consideration.

Mr. Gerry (of Mass.) thought the interference of congress fully compatible with the constitution, and could not help lamenting the miseries to which the tribes of Africa were exposed by this inhuman commerce; and said that he never contemplated the subject, without reflecting what his own feelings would be, in case himself, his children, or friends, were placed in the same deplorable circumstances. He then adverted to the flagrant acts of cruelty which are committed in carrying on that traffic; and asked whether it can be supposed, that congress has no power to prevent such transactions? He then referred to the constitution, and pointed out the restrictions laid on the general government respecting the importation of slaves. It was not, he presumed, in the contemplation of any gentleman in this house to violate that part of the constitution; but that we have a right to regulate this business, is as clear as that we have any rights whatever; nor has the contrary been shown by any person who has spoken on the occasion. Congress can, agreeable to the constitution, lay a duty of ten dollars on imported slaves; they may do this immediately. He made a calculation of the value of the slaves in the Southern States, and supposed they might be worth ten millions of dollars; congress have a right, if they see proper, to make a proposal to the Southern States to purchase the whole of them, and their resources in the Western Territory may furnish them with means. He did not intend to suggest a measure of this kind, he only instanced these particulars, to show that congress certainly have a right to intermeddle in the business. He thought that no objection had been offered, of any force, to prevent the commitment of the memorial.

Mr. Boudinot (of N.J.) had carefully examined the petition, and found nothing like what was complained of by gentlemen, contained in it; he, therefore, hoped they would withdraw their opposition, and suffer it to be committed.

Mr. Smith (of S.C.) said, that as the petitioners had particularly prayed congress to take measures for the annihilation of the slave trade, and that was admitted on all hands to be beyond their power, and as the petitioners would not be gratified by a tax of ten dollars per head, which was all that

was within their power, there was, of consequence, no occasion for committing it.

Mr. Stone (of Md.) thought this memorial a thing of course; for there never was a society, of any considerable extent, which did not interfere with the concerns of other people, and this kind of interference, whenever it has happened, has never failed to deluge the country in blood: on this principle he was opposed to the commitment.

The question on the commitment being about to be put, the yeas and nays were called for, and are as follows:—

Yeas.—Messrs. Ames, Benson, Boudinot, Brown, Cadwallader, Clymer, Fitzsimons, Floyd, Foster, Gale, Gerry, Gilman, Goodhue, Griffin, Grout, Hartley, Hathorne, Heister, Huntington, Lawrence, Lee, Leonard, Livermore, Madison, Moore, Muhlenberg, Pale, Parker, Partridge, Renssellaer, Schureman, Scott, Sedgwick, Seney, Sherman, Sinnickson, Smith of Maryland, Sturges, Thatcher, Trumbull, Wadsworth, White, and Wynkoop—43.

Noes—Messrs. Baldwin, Bland, Bourke, Coles, Huger, Jackson, Mathews, Sylvester, Smith of S.C., Stone, and Tucker—11.

Whereupon it was determined in the affirmative; and on motion, the petition of the Society of Friends, at New York, and the memorial from the Pennsylvania Society, for the abolition of slavery, were also referred to a committee.—LLOYD'S DEBATES.

Debate on Committee's Report, March, 1790.

ELIOT'S DEBATES.

Mr. Tucker moved to modify the first paragraph by striking out all the words after the word opinion, and to insert the following: that the several memorials proposed to the consideration of this house, a subject on which its interference would be unconstitutional, and even its deliberations highly injurious to some of the States in the Union.

Mr. Jackson rose and observed, that he had been silent on the subject of the reports coming before the committee, because he wished the principles of

the resolutions to be examined fairly, and to be decided on their true grounds. He was against the propositions generally, and would examine the policy, the justice and the use of them, and he hoped, if he could make them appear in the same light to others as they did to him by fair argument, that the gentlemen in opposition were not so determined in their opinions as not to give up their present sentiments.

With respect to the policy of the measure, the situation of the slaves here, their situation in their native States, and the disposal of them in case of emancipation, should be considered. That slavery was an evil habit, he did not mean to controvert; but that habit was already established, and there were peculiar situations in countries which rendered that habit necessary. Such situations the States of South Carolina and Georgia were in—large tracts of the most fertile lands on the continent remained uncultivated for the want of population. It was frequently advanced on the floor of Congress, how unhealthy those climates were, and how impossible it was for northern constitutions to exist there. What, he asked, is to be done with this uncultivated territory? Is it to remain a waste? Is the rice trade to be banished from our coasts? Are congress willing to deprive themselves of the revenue arising from that trade, and which is daily increasing, and to throw this great advantage into the hands of other countries?

Let us examine the use or the benefit of the resolutions contained in the report. I call upon gentlemen to give me one single instance in which they can be of service. They are of no use to congress. The powers of that body are already defined, and those powers cannot be amended, confirmed or diminished by ten thousand resolutions. Is not that the guide and rule of this legislature. A multiplicity of laws is reprobated in any society, and tend but to confound and perplex. How strange would a law appear which was to confirm a law; and how much more strange must it appear for this body to pass resolutions to confirm the constitution under which they sit! This is the case with others of the resolutions.

A gentleman from Maryland (Mr. Stone) very properly observed, that the Union had received the different States with all their ill habits about them. This was one of these habits established long before the constitution, and could not now be remedied. He begged congress to reflect on the number on the continent who were opposed to this constitution, and on the number

which yet remained in the Southern States. The violation of this compact they would seize on with avidity; they would make a handle of it to cover their designs against the government, and many good federalists, who would be injured by the measure, would be induced to join them: his heart was truly federal, and it had always been so, and he wished those designs frustrated. He begged congress to beware before they went too far: he called on them to attend to the interest of two whole States, as well as to the memorials of a society of quakers, who came forward to blow the trumpet of sedition, and to destroy that constitution which they had not in the least contributed by personal service or supply to establish.

He seconded Mr. Tucker's motion.

Mr. Smith (of S.C.) said, the gentleman from Massachusetts, (Mr. Gerry,) had declared that it was the opinion of the select committee, of which he was a member, that the memorial of the Pennsylvania society, required congress to violate the constitution. It was not less astonishing to see Dr. Franklin taking the lead in a business which looks so much like a persecution of the Southern inhabitants, when he recollected the parable he had written some time ago, with a view of showing the immorality of one set of men persecuting others for a difference of opinion. The parable was to this effect: an old traveller, hungry and weary, applied to the patriarch Abraham for a night's lodging. In conversation, Abraham discovered that the stranger differed with him on religious points, and turned him out of doors. In the night God appeared unto Abraham, and said, where is the stranger? Abraham answered, I found that he did not worship the true God, and so I turned him out of doors. The Almighty thus rebuked the patriarch: have I borne with him three-score and ten years, and couldst thou not bear with him one night? Has the Almighty, said Mr. Smith, borne with us for more than three-score years and ten: He has even made our country opulent, and shed the blessings of affluence and prosperity on our land, notwithstanding all its slaves, and must we now be ruined on account of the tender consciences of a few scrupulous individuals who differ from us on this point?

Mr. Boudinot agreed with the general doctrines of Mr. S., but could not agree that the clause in the constitution relating to the want of power in congress to prohibit the importation of such persons as any of the States,

now existing, shall think proper to admit, prior to the year 1808, and authorizing a tax or duty on such importation not exceeding ten dollars for each person, did not extend to negro slaves. Candor required that he should acknowledge that this was the express design of the constitution, and therefore congress could not interfere in prohibiting the importation or promoting the emancipation of them, prior to that period. Mr. Boudinot observed, that he was well informed that the tax or duty of ten dollars was provided, instead of the five per cent. ad valorem, and was so expressly understood by all parties in the convention; that therefore it was the interest and duty of congress to impose this tax, or it would not be doing justice to the States, or equalizing the duties throughout the Union. If this was not done, merchants might bring their whole capitals into this branch of trade, and save paying any duties whatever. Mr. Boudinot observed, that the gentleman had overlooked the prophecy of St. Peter, where he foretells that among other damnable heresies, "Through covetousness shall they with feigned words make merchandize of you."

[NOTE.—This petition, with others of a similar object, was committed to a select committee; that committee made a report; the report was referred to a committee of the whole house, and discussed on four successive days; it was then reported to the House with amendments, and by the House ordered to be inscribed in its Journals, and then laid on the table.

That report, as amended in committee, is in the following words: The committee to whom were referred sundry memorials from the people called Quakers, and also a memorial from the Pennsylvania Society for promoting the abolition of slavery, submit the following report, (as amended in committee of the whole.)

"First: That the migration or importation of such persons as any of the States now existing shall think proper to admit, cannot be prohibited by Congress prior to the year 1808."

"Secondly: That Congress have no power to interfere in the emancipation of slaves, or in the treatment of them, within any of the States; it remaining with the several States alone to provide any regulations therein which humanity and true policy may require."

"Thirdly: That Congress have authority to restrain the citizens of the United States from carrying on the African Slave trade, for the purpose of supplying foreigners with slaves, and of providing by proper regulations for the humane treatment, during their passage, of slaves imported by the said citizens into the states admitting such importations."

"Fourthly: That Congress have also authority to prohibit foreigners from fitting out vessels in any part of the United States for transporting persons from Africa to any foreign port."]

ADDRESS OF THE EXECUTIVE COMMITTEE OF THE AMERICAN ANTI-SLAVERY

At the Tenth Anniversary of the American Anti-Slavery Society, held in the city of New York, May 7th, 1844,—after grave deliberation, and a long and earnest discussion,—it was decided, by a vote of nearly three to one of the members present, that fidelity to the cause of human freedom, hatred of oppression, sympathy for those who are held in chains and slavery in this republic, and allegiance to God, require that the existing national compact should be instantly dissolved; that secession from the government is a religious and political duty; that the motto inscribed on the banner of Freedom should be, NO UNION WITH SLAVEHOLDERS; that it is impracticable for tyrants and the enemies of tyranny to coalesce and legislate together for the preservation of human rights, or the promotion of the interests of Liberty; and that revolutionary ground should be occupied by all those who abhor the thought of doing evil that good may come, and who do not mean to compromise the principles of Justice and humanity.

A decision involving such momentous consequences, so well calculated to startle the public mind, so hostile to the established order of things, demands of us, as the official representatives of the American Society, a statement of the reasons which led to it. This is due not only to the Society, but also to the country and the world.

It is declared by the American people to be a self-evident truth, "that all men are created equal; that they are endowed BY THEIR CREATOR with certain inalienable rights; that among these are *life*, LIBERTY, and the pursuit of happiness." It is further maintained by them, that "all governments derive their just powers from the consent of the governed;"

that "whenever any form of government becomes destructive of human rights, it is the right of the people to alter or to abolish it, and institute a new government, laying its foundation on such principles, and organizing its powers in such form as to them shall seem most likely to effect their safety and happiness." These doctrines the patriots of 1776 sealed with their blood. They would not brook even the menace of oppression. They held that there should be no delay in resisting at whatever cost or peril, the first encroachments of power on their liberties. Appealing to the great Ruler of the universe for the rectitude of their course, they pledged to each other "their lives, their fortunes and their sacred honor," to conquer or perish in their struggle to be free.

For the example which they set to all people subjected to a despotic sway, and the sacrifices which they made, their descendants cherish their memories with gratitude, reverence their virtues, honor their deeds, and glory in their triumphs.

It is not necessary, therefore, for us to prove that a state of slavery is incompatible with the dictates of reason and humanity; or that it is lawful to throw off a government which is at war with the sacred rights of mankind.

We regard this as indeed a solemn crisis, which requires of every man sobriety of thought, prophetic forecast, independent judgment, invincible determination, and a sound heart. A revolutionary step is one that should not be taken hastily, nor followed under the influence of impulsive imitation. To know what spirit they are of—whether they have counted the cost of the warfare—what are the principles they advocate—and how they are to achieve their object—is the first duty of revolutionists.

But, while circumspection and prudence are excellent qualities in every great emergency, they become the allies of tyranny whenever they restrain prompt, bold and decisive action against it.

We charge upon the present national compact, that it was formed at the expense of human liberty, by a profligate surrender of principle, and to this hour is cemented with human blood.

We charge upon the American Constitution, that it contains provisions, and enjoins duties, which make it unlawful for freemen to take the oath of

allegiance to it, because they are expressly designed to favor a slaveholding oligarchy, and consequently, to make one portion of the people a prey to another.

We charge upon the existing national government, that it is an insupportable despotism, wielded by a power which is superior to all legal and constitutional restraints—equally indisposed and unable to protect the lives or liberties of the people—the prop and safeguard of American slavery.

These charges we proceed briefly to establish:

I. It is admitted by all men of intelligence,—or if it be denied in any quarter, the records of our national history settle the question beyond doubt,—that the American Union was effected by a guilty compromise between the free and slaveholding States; in other words, by immolating the colored population on the altar of slavery, by depriving the North of equal rights and privileges, and by incorporating the slave system into the government. In the expressive and pertinent language of scripture, it was "a covenant with death, and an agreement with hell"—null and void before God, from the first hour of its inception—the framers of which were recreant to duty, and the supporters of which are equally guilty.

It was pleaded at the time of the adoption, it is pleaded now, that, without such a compromise there could have been no union; that, without union, the colonies would have become an easy prey to the mother country; and, hence, that it was an act of necessity, deplorable indeed when viewed alone, but absolutely indispensable to the safety of the republic.

To this see reply: The plea is as profligate as the act was tyrannical. It is the jesuitical doctrine, that the end sanctifies the means. It is a confession of sin, but the denial of any guilt in its perpetration. It is at war with the government of God, and subversive of the foundations of morality. It is to make lies our refuge, and under falsehood to hide ourselves, so that we may escape the overflowing scourge. "Therefore, thus saith the Lord God, Judgment will I lay to the line, and righteousness to the plummet; and the hail shall sweep away the refuge of lies, and the waters shall overflow the hiding place." Moreover, "because ye trust in oppression and perverseness, and stay thereon; therefore this iniquity shall be to you as a breach ready to fall, swelling out in a high wall, whose breaking cometh suddenly at an

instant. And he shall break it as the breaking of the potter's vessel that is broken in pieces; he shall not spare."

This plea is sufficiently broad to cover all the oppression and villany that the sun has witnessed in his circuit, since God said, "Let there be light." It assumes that to be practicable, which is impossible, namely, that there can be freedom with slavery, union with injustice, and safety with bloodguiltiness. A union of virtue with pollution is the triumph of licentiousness. A partnership between right and wrong, is wholly wrong. A compromise of the principles of Justice, is the deification of crime.

Better that the American Union had never been formed, than that it should have been obtained at such a frightful cost! If they were guilty who fashioned it, but who could not foresee all its frightful consequences, how much more guilty are they, who, in full view of all that has resulted from it, clamor for its perpetuity! If it was sinful at the commencement, to adopt it on the ground of escaping a greater evil, is it not equally sinful to swear to support it for the same reason, or until, in process of time, it be purged from its corruption?

The fact is, the compromise alluded to, instead of effecting a union, rendered it impracticable; unless by the term union are to understand the absolute reign of the slaveholding power over the whole country, to the prostration of Northern rights. In the just use of words, the American Union is and always has been a sham—an imposture. It is an instrument of oppression unsurpassed in the criminal history of the world. How then can it be innocently sustained? It is not certain, it is not even probable, that if it had not been adopted, the mother country would have reconquered the colonies. The spirit that would have chosen danger in preference to crime, —to perish with justice rather than live with dishonor,—to dare and suffer whatever might betide, rather than sacrifice the rights of one human being, —could never have been subjugated by any mortal power. Surely it is paying a poor tribute to the valor and devotion of our revolutionary fathers in the cause of liberty, to say that, if they had sternly refused to sacrifice their principles, they would have fallen an easy prey to the despotic power of England.

II. The American Constitution is the exponent of the national compact. We affirm that it is an instrument which no man can innocently bind himself to support, because its anti-republican and anti-christian requirements are explicit and peremptory; at least, so explicit that, in regard to all the clauses pertaining to slavery, they have been uniformly understood and enforced in the same way, by all the courts and by all the people; and so peremptory, that no individual interpretation or authority can set them aside with impunity. It is not a ball of clay, to be moulded into any shape that party contrivance or caprice may choose it to assume. It is not a form of words, to be interpreted in any manner, or to any extent, or for the accomplishment of any purpose, that individuals in office under it may determine. *It means precisely what those who framed and adopted it meant—NOTHING MORE, NOTHING LESS, as a matter of bargain and compromise.* Even if it can be construed to mean something else, without violence to its language, such construction is not to be tolerated *against the wishes of either party.* No just or honest use of it can be made, in opposition to the plain intention of its framers, *except to declare the contract at an end, and to refuse to serve under it.*

To the argument, that the words "slaves" and "slavery" are not to be found in the Constitution, and therefore that it was never intended to give any protection or countenance to the slave system, it is sufficient to reply, that though no such words are contained in that instrument, other words were used, intelligently and specifically, TO MEET THE NECESSITIES OF SLAVERY; and that these were adopted *in good faith, to be observed until a constitutional change could be effected.* On this point, as to the design of certain provisions, no intelligent man can honestly entertain a doubt. If it be objected, that though these provisions were meant to cover slavery, yet, as they can fairly be interpreted to mean something exactly the reverse, it is allowable to give to them such an interpretation, *especially as the cause of freedom will thereby be promoted*—we reply, that this is to advocate fraud and violence toward one of the contracting parties, *whose co-operation was secured only by an express agreement and understanding between them both, in regard to the clauses alluded to;* and that such a construction, if enforced by pains and penalties, would unquestionably lead to a civil war, in which the aggrieved party would justly claim to have been betrayed, and robbed of their constitutional rights.

Again, if it be said, that those clauses, being immoral, are null and void—we reply, it is true they are not to be observed; but it is also true that they are portions of an instrument, the support of which, AS A WHOLE, is required by oath or affirmation; and, therefore, *because they are immoral*, and BECAUSE OF THIS OBLIGATION TO ENFORCE IMMORALITY, no one can innocently swear to support the Constitution.

Again, if it be objected, that the Constitution was formed by the people of the United States, in order to establish justice, to promote the general welfare, and secure the blessings of liberty to themselves and their posterity; and therefore, it is to be so construed as to harmonize with these objects; we reply, again, that its language is *not to be interpreted in a sense which neither of the contracting parties understood*, and which would frustrate every design of their alliance—to wit, *union at the expense of the colored population of the country*. Moreover, nothing is more certain than that the preamble alluded to never included, in the minds of those who framed it, *those who were then pining in bondage*—for, in that case, a general emancipation of the slaves would have instantly been proclaimed throughout the United States. The words, "secure the blessings of liberty to ourselves and our posterity," assuredly meant only the white population. "To promote the general welfare," referred to their own welfare exclusively. "To establish justice," was understood to be for their sole benefit as slaveholders, and the guilty abettors of slavery. This is demonstrated by other parts of the same instrument, and by their own practice under it.

We would not detract aught from what is justly their due; but it is as reprehensible to give them credit for *what they did not possess*, as it is to rob them of what is theirs. It is absurd, it is false, it is an insult to the common sense of mankind, to pretend that the Constitution was intended to embrace the entire population of the country under its sheltering wings; or that the parties to it were actuated by a sense of justice and the spirit of impartial liberty; or that it needs no alteration, but only a new interpretation, to make it harmonize with the object aimed at by its adoption. As truly might it be argued, that because it is asserted in the Declaration of Independence, that all men are created equal and endowed with an inalienable right to liberty, therefore none of its signers were slaveholders, and since its adoption, slavery has been banished from the American soil! The truth is, our fathers were intent on securing liberty *to themselves*,

without being very scrupulous as to the means they used to accomplish their purpose. They were not actuated by the spirit of universal philanthropy; and though in *words* they recognized occasionally the brotherhood of the human race, *in practice* they continually denied it. They did not blush to enslave a portion of their fellow-men, and to buy and sell them as cattle in the market, while they were fighting against the oppression of the mother country, and boasting of their regard for the rights of man. Why, then, concede to them virtues which they did not possess? *Why cling to the falsehood, that they were no respecters of person in the formation of the government?*

Alas! that they had no more fear of God, no more regard for man, in their hearts! "The iniquity of the house of Israel and Judah [The North and South] is exceeding great, and the land is full of blood, and the city full of perverseness; for they say, the Lord hath forsaken the earth, and the Lord seeth not."

We proceed to a critical examination of the American Constitution, in its relations to slavery.

In ARTICLE I, Section 9, it is declared—"The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress, prior to the year one thousand eight hundred and eight; but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person."

In this Section, it will be perceived, the phraseology is so guarded as not to imply, *ex necessitate*, any criminal intent or inhuman arrangement; and yet no one has ever had the hardihood or folly to deny, that it was clearly understood by the contracting parties, to mean that there should be no interference with the African slave trade, on the part of the general government, until the year 1808. For twenty years after the adoption of the Constitution, the citizens of the United States were to be encouraged and protected in the prosecution of that infernal traffic—in sacking and burning the hamlets of Africa—in slaughtering multitudes of the inoffensive natives on the soil, kidnapping and enslaving a still greater proportion, crowding them to suffocation in the holds of the slave ships, populating the Atlantic with their dead bodies, and subjecting the wretched survivors to all the horrors of unmitigated bondage! This awful covenant was strictly fulfilled;

and though, since its termination, Congress has declared the foreign slave traffic to be piracy, yet all Christendom knows that the American flag, instead of being the terror of the African slavers, has given them the most ample protection.

The manner in which the 9th Section was agreed to, by the national convention that formed the constitution, is thus frankly avowed by the Hon. Luther Martin,[[8](#)] who was a prominent member of that body:

[Footnote [8](#): Speech before the Legislature of Maryland in 1787.]

"The Eastern States, notwithstanding their aversion of slavery, (!) were *very willing to indulge the Southern States* at least with a temporary liberty to prosecute the slave trade, provided the Southern States would, in their turn, *gratify* them by laying no restriction on navigation acts; and, after a very little time, the committee, by a great majority, agreed on a report, *by which the general government was to be prohibited from preventing the importation of slaves* for a limited time; and the restrictive clause relative to navigation acts was to be omitted."

Behold the iniquity of this agreement! how sordid were the motives which led to it! what a profligate disregard of justice and humanity, on the part of those who had solemnly declared the inalienable right of all men to be free and equal, to be a self-evident truth!

It is due to the national convention to say, that this section was not adopted "without considerable opposition." Alluding to it, Mr. Martin observes—

"It was said we had just assumed a place among the independent nations in consequence of our opposition to the attempts of Great Britain to *enslave us*; that this opposition was grounded upon the preservation of those rights to which God and nature has entitled us, not in *particular*, but in *common with all the rest of mankind*; that we had appealed to the Supreme Being for his assistance, as the God of freedom, who could not but approve our efforts to preserve the rights which he had thus imparted to his creatures; that now, when we had scarcely risen from our knees, from supplicating his mercy and protection in forming our government over a free people, a government formed pretendedly on the principles of liberty, and for its preservation,—in

that government to have a provision, not only of putting out of its power to restrain and prevent the slave trade, even encouraging that most infamous traffic, by giving the States the power and influence in the Union in proportion as they cruelly and wantonly sported with the rights of their fellow-creatures, ought to be considered as a solemn mockery of, and insult to, that God whose protection we had thus implored, and could not fail to hold us up in detestation, and render us contemptible to every true friend of liberty in the world. It was said that national crimes can only be, and frequently are, punished in this world by *national punishments*, and that the continuance of the slave trade, and thus giving it a national character, sanction, and encouragement, ought to be considered as justly exposing us to the displeasure and vengeance of him who is equally the Lord of all, and who views with equal eye the poor *African slave* and his *American master*! [9]

[Footnote 9: How terribly and justly has this guilty nation been scourged, since these words were spoken, on account of slavery and the slave trade!]

"It was urged that, by this system, we were giving the general government full and absolute power to regulate commerce, under which general power it would have a right to restrain, or totally prohibit, the slave trade: it must, therefore, appear to the world absurd and disgraceful to the last degree that we should except from the exercise of that power the only branch of commerce which is unjustifiable in its nature, and contrary to the rights of mankind. That, on the contrary, we ought to prohibit expressly, in our Constitution, the further importation of slaves, and to authorize the general government, from time to time, to make such regulations as should be thought most advantageous for the gradual abolition of slavery, and the emancipation of the slaves already in the States. That slavery is inconsistent with the genius of republicanism, and has a tendency to destroy those principles on which it is supported, as it lessens the sense of the equal rights of mankind, and habituates to tyranny and oppression. It was further urged that, by this system of government, every State is to be protected both from foreign invasion and from domestic insurrections; and, from this consideration, it was of the utmost importance it should have the power to restrain the importation of slaves, since in proportion as the number of

slaves increased in any State, in the same proportion is the State weakened and exposed to foreign invasion and domestic insurrection; and by so much less will it be able to protect itself against either, and therefore by so much, want aid and be a burden to, the Union.

"It was further said, that, in this system, as we were giving the general government power, under the idea of national character, or national interest, to regulate even our weights and measures, and have prohibited all possibility of emitting paper money, and passing insolvent laws, &c., it must appear still more extraordinary that we prohibited the government from interfering with the slave trade, than which nothing could more effect our national honor and interest.

"These reasons influenced me, both in the committee and in the convention, most decidedly to oppose and vote against the clause, as it now makes part of the system." [\[10\]](#)

[Footnote [10](#): Secret Proceedings, p. 61.]

Happy had it been for this nation, had these solemn considerations been heeded by the framers of the Constitution! But for the sake of securing some local advantages, they choose to do evil that good may come, and to make the end sanctify the means. They were willing to enslave others, that they might secure their own freedom. They did this deed deliberately, with their eyes open, with all the facts and consequences arising therefrom before them, in violation of all their heaven-attested declarations, and in atheistical distrust of the overruling power of God. "The Eastern States were very willing to *indulge* the Southern States" in the unrestricted prosecution of their piratical traffic, provided in return they could be *gratified* by no restriction on being laid on navigation acts!!—Had there been no other provision of the Constitution justly liable to objection, this one alone rendered the support of that instrument incompatible with the duties which men owe to their Creator, and to each other. It was the poisonous infusion in the cup, which, though constituting but a very slight portion of its contents, perilled the life of every one who partook of it.

If it be asked to what purpose are these animadversions, since the clause alluded to has long since expired by its own limitation—we answer, that, if at any time the foreign slave trade could be *constitutionally* prosecuted, it may yet be renewed, under the Constitution, at the pleasure of Congress, whose prohibitory statute is liable to be reversed at any moment, in the frenzy of Southern opposition to emancipation. It is ignorantly supposed that the bargain was, that the traffic *should cease* in 1808; but the only thing secured by it was, the *right* of Congress (not any obligation) to prohibit it at that period. If, therefore, Congress had not chosen to exercise that right, *the traffic might have been prolonged indefinitely, under the Constitution*. The right to destroy any particular branch of commerce, implies the right to re-establish it. True, there is no probability that the African slave trade will ever again be legalized by the national government; but no credit is due the framers of the Constitution on this ground; for, while they threw around it all the sanction and protection of the national character and power for twenty years, *they set no bounds to its continuance by any positive constitutional prohibition*.

Again, the adoption of such a clause, and the faithful execution of it, prove what was meant by the words of the preamble—"to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity"—namely, that the parties to the Constitution regarded only their own rights and interests, and never intended that its language should be so interpreted as to interfere with slavery, or to make it unlawful for one portion of the people to enslave another, *without an express alteration in the instrument, in the manner therein set forth*. While, therefore, the Constitution remains as it was originally adopted, they who swear to support it are bound to comply with all its provisions, as a matter of allegiance. For it avails nothing to say, that some of those provisions are at war with the law of God and the rights of man, and therefore are not obligatory. Whatever may be their character, they are *constitutionally*, obligatory; and whoever feels that he cannot execute them, or swear to execute them, without committing sin, has no other choice left than to withdraw from the government, or to violate his conscience by taking on his lips an impious promise. The object of the Constitution is not to define *what is the law of God*, but WHAT IS THE

WILL OF THE PEOPLE—which will is not to be frustrated by an ingenious moral interpretation, by those whom they have elected to serve them.

ARTICLE 1, Sect. 2, provides—"Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three-fifths of all other persons.*"

Here, as in the clause we have already examined, veiled beneath a form of words as deceitful as it is unmeaning in a truly democratic government, is a provision for the safety, perpetuity and augmentation of the slaveholding power—a provision scarcely less atrocious than that which related to the African slave trade, and almost as afflictive in its operation—a provision still in force, with no possibility of its alteration, so long as a majority of the slave States choose to maintain their slave system—a provision which, at the present time, enables the South to have twenty-five additional representatives in Congress on the score of *property*, while the North is not allowed to have one—a provision which concedes to the oppressed three-fifths of the political power which is granted to all others, and then puts this power into the hands of their oppressors, to be wielded by them for the more perfect security of their tyrannous authority, and the complete subjugation of the non-slaveholding States.

Referring to this atrocious bargain, ALEXANDER HAMILTON remarked in the New York Convention—

"The first thing objected to, is that clause which allows a representation for three-fifths of the negroes. Much has been said of the impropriety of representing men who have no will of their own: whether this is *reasoning*, or *declamation*, (!!) I will not presume to say. It is the *unfortunate* situation of the Southern States to have a great part of their population, as well as *property*, in blacks. The regulation complained of was one result of *the spirit of accommodation* which governed the Convention: and without this *indulgence*, NO UNION COULD POSSIBLY HAVE BEEN FORMED. But, sir, considering some *peculiar advantages* which we derive from them,

it is entirely JUST that they should be *gratified*.—The Southern States possess certain staples, tobacco, rice, indigo, &c.—which must be *capital* objects in treaties of commerce with foreign nations; and the advantage which they necessarily procure in these treaties will be felt throughout the United states."

If such was the patriotism, such the love of liberty, such the morality of ALEXANDER HAMILTON, what can be said of the character of those who were far less conspicuous than himself in securing American independence, and in framing the American Constitution?

Listen, now, to the questions of JOHN QUINCY ADAMS, respecting the constitutional clause now under consideration:—

"In outward show, it is a representation of persons in bondage; in fact, it is a representation of their masters,—the oppressor representing the oppressed.'—'Is it in the compass of human imagination to devise a more perfect exemplification of the art of committing the lamb to the tender custody of the wolf?'—'The representative is thus constituted, not the friend, agent and trustee of the person whom he represents, but the most inveterate of his foes.'—'It was *one* of the curses from that Pandora's box, adjusted at the time, as usual, by a *compromise*, the whole advantage of which inured to the benefit of the South, and to aggravate the burdens of the North.'—'If there be a parallel to it in human history, it can only be that of the Roman Emperors, who, from the days when Julius Caesar substituted a military despotism in the place of a republic, among the offices which they always concentrated upon themselves, was that of tribune of the people. A Roman Emperor tribune of the people, is an exact parallel to that feature in the Constitution of the United States which makes the master the representative of his slave.'—'The Constitution of the United States expressly prescribes that no title of nobility shall be granted by the United States. The spirit of this interdict is not a rooted antipathy to the grant of mere powerless empty *titles*, but to titles of *nobility*; to the institution of privileged orders of men. But what order of men under the most absolute of monarchies, or the most aristocratic of republics, was ever invested with such an odious and unjust privilege as that of the separate and exclusive representation of less than half a million owners of slaves, in the Hall of this House, in the Chair of the Senate, and in the Presidential mansion?'—'This

investment of power in the owners of one species of property concentrated in the highest authorities of the nation, and disseminated through thirteen of the twenty-six States of the Union, constitutes a privileged order of men in the community, more adverse to the rights of all, and more pernicious to the interests of the whole, than any order of nobility ever known. To call government thus constituted a democracy, is to insult the understanding of mankind. To call it an aristocracy, is to do injustice to that form of government. Aristocracy is the government of *the best*. Its standard qualification for accession to power is *merit*, ascertained by popular election recurring at short intervals of time. If even that government is prone to degenerate into tyranny, what must be the character of that form of polity in which the standard qualification for access to power is wealth in the possession of slaves? It is doubly tainted with the infection of riches and of slavery. *There is no name in the language of national jurisprudence that can define it*—no model in the records of ancient history, or in the political theories of Aristotle, with which it can be likened. It was introduced into the Constitution of the United States by an equivocation—a representation of property under the name of persons. Little did the members of the Convention from the free States foresee what a sacrifice to Moloch was hidden under the mask of this concession.'—'The House of Representatives of the United States consists of 223 members—all, by *the letter* of the Constitution, representatives only of *persons*, as 135 of them really are; but the other 88, equally representing the *persons* of their constituents, by whom they are elected, also represent, under the name of *other persons*, upwards of two and a half millions of *slaves*, held as the *property* of less than half a million of the white constituents, and valued at twelve hundred millions of dollars. Each of these 88 members represents in fact the whole of that mass of associated wealth, and the persons and exclusive interests of its owners; all thus knit together, like the members of a moneyed corporation, with a capital not of thirty-five or forty or fifty, but of twelve hundred millions of dollars, exhibiting the most extraordinary exemplification of the anti-republican tendencies of associated wealth that the world ever saw.'—'Here is one class of men, consisting of not more than one fortieth part of the whole people, not more than one-thirtieth part of the free population, exclusively devoted to their personal interests identified with their own as slaveholders of the same associated wealth, and wielding by their votes, upon every question of government or of public policy, two-

fifths of the whole power of the House. In the Senate of the Union, the proportion of the slaveholding power is yet greater. By the influence of slavery, in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the 52 members of the federal Senate, 26 are owners of slaves, and as effectively representatives of that interest as the 88 members elected by them to the House.'—'By this process it is that all political power in the States is absorbed and engrossed by the owners of *slaves*, and the overruling policy of the States is shaped to strengthen and consolidate their domination. The legislative, executive, and judicial authorities are all in their hands—the preservation, propagation, and perpetuation of the black code of slavery—every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of *wrong*.'—'Its reciprocal operation upon the government of the nation is, to establish an artificial majority in the slave representation over that of the free people, in the American Congress, and thereby to make the **PRESERVATION, PROPAGATION, AND PERPETUATION OF SLAVERY THE VITAL AND ANIMATING SPIRIT OF THE NATIONAL GOVERNMENT**.'—'The result is seen in the fact that, at this day, the President of the United States, the President of the Senate, the Speaker of the House of Representatives, and five out of nine of the Judges of the Supreme Judicial Courts of the United States, are not only citizens of slaveholding States, but individual slaveholders themselves. So are, and constantly have been, with scarcely an exception, all the members of both Houses of Congress from the slaveholding States; and so are, in immensely disproportionate numbers, the commanding officers of the army and navy; the officers of the customs; the registers and receivers of the land offices, and the post-masters throughout the slaveholding States.—The Biennial Register indicates the birth-place of all the officers employed in the government of the Union. If it were required to designate the owners of this species of property among them, it would be little more than a catalogue of slaveholders.'"

It is confessed by Mr. Adams, alluding to the national convention that framed the Constitution, that "the delegation from the free States, in their extreme anxiety to conciliate the ascendancy of the Southern slaveholder,

did listen to *a compromise between right and wrong—between freedom and slavery*; of the ultimate fruits of which they had no conception, but which already even now is urging the Union to its inevitable ruin and dissolution, by a civil, servile, foreign, and Indian war, all combined in one; a war, the essential issue of which will be between freedom and slavery, and in which the unhallowed standard of slavery will be the desecrated banner of the North American Union—that banner, first unfurled to the breeze, inscribed with the self-evident truths of the Declaration of Independence."

Hence to swear to support the Constitution of the United States, *as it is*, is to make "a compromise between right and wrong," and to wage war against human liberty. It is to recognize and honor as republican legislators, *incorrigible men-stealers*, MERCILESS TYRANTS, BLOOD THIRSTY ASSASSINS, who legislate with deadly weapons about their persons, such as pistols, daggers, and bowie-knives, with which they threaten to murder any Northern senator or representative who shall dare to stain their *honor*, or interfere with their *rights*! They constitute a banditti more fierce and cruel than any whose atrocities are recorded on the pages of history or romance. To mix with them on terms of social or religious fellowship, is to indicate a low state of virtue; but to think of administering a free government by their co-operation, is nothing short of insanity.

Article IV., Section 2, declares,—"no person held to service or labor on one State, *under the laws thereof*, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due."

Here is a third clause, which, like the other two, makes no mention of slavery or slaves, in express terms; and yet, like them, was intelligently framed and mutually understood by the parties to the ratification, and intended both to protect the slave system and to restore runaway slaves. It alone makes slavery a national institution, a national crime, and all the people who are not enslaved, the body-guard over those whose liberties have been cloven down. This agreement, too, has been fulfilled to the letter by the North.

Under the Mosaic dispensation it was imperatively commanded,—“Thou shalt not deliver unto his master the servant which is escaped from his master unto thee: he shall dwell with thee, even among you, in that place which he shall choose in one of thy gates, where it liketh him best: thou shalt not oppress him.” The warning which the prophet Isaiah gave to oppressing Moab was of a similar kind: “Take counsel, execute judgment; make thy shadow as the night in the midst of the noon-day; hide the outcasts; bewray not him that wandereth. Let mine outcasts dwell with thee, Moab; be thou a covert to them from the face of the spoiler.” The prophet Obadiah brings the following charge against treacherous Edom, which is precisely applicable to this guilty nation:—“For thy violence against thy brother Jacob, shame shall come over thee, and thou shalt be cut off for ever. In the day that thou stoodest on the other side, in the day that the strangers carried away captive his forces, and foreigners entered into his gates, and cast lots upon Jerusalem, *even thou wast as one of them*. But thou shouldst not have looked on the day of thy brother, in the day that he became a stranger; neither shouldst thou have rejoiced over the children of Judah, in the day of their destruction; neither shouldst thou have spoken proudly in the day of distress; neither shouldst thou have *stood in the cross-way, to cut off those of his that did escape*; neither shouldst thou have *delivered up those of his that did remain*, in the day of distress.”

How exactly descriptive of this boasted republic is the impeachment of Edom by the same prophet! “The pride of thy heart hath deceived thee, thou whose habitation is high; that saith in thy heart, Who shall bring me down to the ground? Though thou exalt thyself as the eagle, and though thou set thy nest among the stars, thence will I bring thee down, saith the Lord.” The emblem of American pride and power is the *eagle*, and on her banner she has mingled *stars* with its *stripes*. Her vanity, her treachery, her oppression, her self-exaltation, and her defiance of the Almighty, far surpass the madness and wickedness of Edom. What shall be her punishment? Truly, it may be affirmed of the American people, (who live not under the Levitical but Christian code, and whose guilt, therefore, is the more awful, and their condemnation the greater,) in the language of another prophet—“They all lie in wait for blood; they hunt every man his brother with a net. That they may do evil with both hands earnestly, the prince asketh, and the judge asketh for a reward; and the great man, he uttereth his mischievous desire:

so they wrap it up." Likewise of the colored inhabitants of this land it may be said,—*"This is a people robbed and spoiled; they are all of them snared in holes, and they are hid in prison-houses; they are for a prey, and none delivereth; for a spoil, and none saith, Restore."*

By this stipulation, the Northern States are made the hunting ground of slave-catchers, who may pursue their victims with bloodhounds, and capture them with impunity wherever they can lay their robber hands upon them. At least twelve or fifteen thousand runaway slaves are now in Canada, exiled from their native land, because they could not find, throughout its vast extent, a single road on which they could dwell in safety, *in consequence of this provision of the Constitution?* How is it possible, then, for the advocates of liberty to support a government which gives over to destruction one-sixth part of the whole population?

It is denied by some at the present day, that the clause which has been cited, was intended to apply to runaway slaves. This indicates either ignorance, or folly or something worse. JAMES MADISON, as one of the framers of the Constitution, is of some authority on this point. Alluding to that instrument, in the Virginia convention, he said:—

"Another clause secures us that property which we now possess. At present, if any slave elopes to those States where slaves are free, he becomes emancipated by their laws; for the laws of the States are uncharitable (!) to one another in this respect; but in this constitution, 'No person held to service or labor in one State, under the laws thereof, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due.' THIS CLAUSE WAS EXPRESSLY INSERTED TO ENABLE THE OWNERS OF SLAVES TO RECLAIM THEM. This is a better security than any that now exists. No power is given to the general government to interfere with respect to the property in slaves now held by the States."

In the same convention, alluding to the same clause, GOV. RANDOLPH said:—

"Every one knows that slaves are held to service or labor. And, when authority is given to owners of slaves to vindicate their property, can it be

supposed they can be deprived of it? If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, can it be seriously thought that, after taking him and bringing him home, he could be made free?"

It is objected, that slaves are held as property, and therefore, as the clause refers to persons, it cannot mean slaves. But this is criticism against fact. Slaves are recognized not merely as property, but also as persons—as having a mixed character—as combining the human with the brutal. This is paradoxical, we admit; but slavery is a paradox—the American Constitution is a paradox—the American Union is a paradox—the American Government is a paradox; and if any one of these is to be repudiated on that ground, they all are. That it is the duty of the friends of freedom to deny the binding authority of them all, and to secede from them all, we distinctly affirm. After the independence of this country had been achieved, the voice of God exhorted the people, saying, "Execute true judgment, and show mercy and compassion, every man to his brother: and oppress not the widow, nor the fatherless, the stranger, nor the poor; and let none of you imagine evil against his brother in your heart. But they refused to hearken, and pulled away the shoulder, and stopped their ears, that they should not hear; yea, they made their hearts as an adamant stone." "Shall I not visit for these things? saith the Lord. Shall not my soul be avenged on such a nation as this?"

Whatever doubt may have rested on any honest mind, respecting the meaning of the clause in relation to persons held to service or labor, must have been removed by the unanimous decision of the Supreme Court of the United States, in the case of *Prigg versus The State of Pennsylvania*. By that decision, any Southern slave-catcher is empowered to seize and convey to the South, without hindrance or molestation on the part of the State, and without any legal process duly obtained and served, any person or persons, irrespective of caste or complexion, whom he may choose to claim as runaway slaves; and if, when thus surprised and attacked, or on their arrival South, they cannot prove by legal witnesses, that they are freemen, their doom is sealed! Hence the free colored population of the North are specially liable to become the victims of this terrible power, and all the other inhabitants are at the mercy of prowling kidnappers, because there are

multitudes of white as well as black slaves on Southern plantations, and slavery is no longer fastidious with regard to the color of its prey.

As soon as that appalling decision of the Supreme Court was enunciated, in the name of the Constitution, the people of the North should have risen *en masse*, if for no other cause, and declared the Union at an end; and they would have done so, if they had not lost their manhood, and their reverence for justice and liberty.

In the 4th Sect. of Art. IV., the United States guarantee to protect every State in the Union "against *domestic violence*." By the 8th Section of Article I., congress is empowered "to provide for calling forth the militia to execute the laws of the Union, *suppress insurrections*, and repel invasions." These provisions, however strictly they may apply to cases of disturbance among the white population, were adopted with special reference to the slave population, for the purpose of keeping them in their chains by the combined military force of the country; and were these repealed, and the South left to manage her slaves as best she could, a servile insurrection would ere long be the consequence, as general as it would unquestionably be successful. Says Mr. Madison, respecting these clauses:--

"On application of the legislature or executive, as the case may be, the militia of the other States are to be called to suppress domestic insurrections. Does this bar the States from calling forth their own militia? No; but it gives them a *supplementary* security to suppress insurrections and domestic violence."

The answer to Patrick Henry's objection, as urged against the constitution in the Virginia convention, that there was no power left to the *States* to quell an insurrection of slaves, as it was wholly vested in congress, George Nicholas asked:—

"Have they it now? If they have, does the constitution take it away? If it does, it must be in one of those clauses which have been mentioned by the worthy member. The first part gives the general government power to call them out when necessary. Does this take it away from the States? No! but *it gives an additional security*; for, beside the power in the State government to use their own militia, it will be *the duty of the general government* to aid them WITH THE STRENGTH OF THE UNION, when called for."

This solemn guaranty of security to the slave system, caps the climax of national barbarity, and stains with human blood the garments of all the people. In consequence of it, that system has multiplied its victims from five hundred thousand to nearly three millions—a vast amount of territory has been purchased, in order to give it extension and perpetuity—several new slave States have been admitted into the Union—the slave trade has been made one of the great branches of American commerce—the slave population, though over-worked, starved, lacerated, branded, maimed, and subjected to every form of deprivation and every species of torture, have been overawed and crushed,—or, whenever they have attempted to gain their liberty by revolt, they have been shot down and quelled by the strong arm of the national government; as, for example, in the case of Nat Turner's insurrection in Virginia, when the naval and military forces of the government were called into active service. Cuban bloodhounds have been purchased with the money of the people, and imported and used to hunt slave fugitives among the everglades of Florida. A merciless warfare has been waged for the extermination or expulsion of the Florida Indians, because they gave succor to those poor hunted fugitives—a warfare which has cost the nation several thousand lives, and forty millions of dollars. But the catalogue of enormities is too long to be recapitulated in the present address.

We have thus demonstrated that the compact between the North and the South embraces every variety of wrong and outrage,—is at war with God and man, cannot be innocently supported, and deserves to be immediately annulled. In behalf of the Society which we represent, we call upon all our fellow-citizens, who believe it is right to obey God rather than man, to declare themselves peaceful revolutionists, and to unite with us under the stainless banner of Liberty, having for its motto—"EQUAL RIGHTS FOR ALL—NO UNION WITH SLAVEHOLDERS!"

It is pleaded that the Constitution provides for its own amendment; and we ought to use the elective franchise to effect this object. True, there is such a proviso; but, until the amendment be made, that instrument is binding as it stands. Is it not to violate every moral instinct, and to sacrifice principle to expediency, to argue that we may swear to steal, oppress and murder by wholesale, because it may be necessary to do so only for the time being, and because there is some remote probability that the instrument which

requires that we should be robbers, oppressors and murderers, may at some future day be amended in these particulars? Let us not palter with our consciences in this manner—let us not deny that the compact was conceived in sin and brought forth in iniquity—let us not be so dishonest, even to promote a good object, as to interpret the Constitution in a manner utterly at variance with the intentions and arrangements of the contracting parties; but, confessing the guilt of the nation, acknowledging the dreadful specifications in the bond, washing our hands in the waters of repentance from all further participation in this criminal alliance, and resolving that we will sustain none other than a free and righteous government, let us glory in the name of revolutionists, unfurl the banner of disunion, and consecrate our talents and means to the overthrow of all that is tyrannical in the land,—to the establishment of all that is free, just, true and holy,—to the triumph of universal love and peace.

If, in utter disregard of the historical facts which have been cited, it is still asserted, that the Constitution needs no amendment to make it a free instrument, adapted to all the exigencies of a free people, and was never intended to give any strength or countenance to the slave system—the indignant spirit of insulted Liberty replies:—"What though the assertion be true? Of what avail is a mere piece of parchment? In itself, though it be written all over with words of truth and freedom—though its provisions be as impartial and just as words can express, or the imagination paint—though it be as pure as the gospel, and breathe only the spirit of Heaven—it is powerless; it has no executive vitality; it is a lifeless corpse, even though beautiful in death. I am famishing for lack of bread! How is my appetite relieved by holding up to my gaze a painted loaf? I am manacled, wounded, bleeding, dying! What consolation is it to know, that they who are seeking to destroy my life, profess in words to be my friends?" If the liberties of the people have been betrayed—if judgement is turned away backward and justice standeth afar off, and truth has fallen in the streets, and equality cannot enter—if the princes of the land are roaring lions, the judges evening wolves, the people light and treacherous persons, the priests covered with pollution—if we are living under a frightened despotism, which scoffs at all constitutional restraints, and wields the resources of the nation to promote its own bloody purposes—tell us not that the forms of freedom are still left to us! "Would such tameness and submission have freighted the May-Flower

for Plymouth Rock? Would it have resisted the Stamp Act, the Tea Tax, or any of those entering wedges of tyranny with which the British government sought to rive the liberties of America? The wheel of the Revolution would have rusted on its axle, if a spirit so weak had been the only power to give it motion. Did our fathers say, when their rights and liberties were infringed—"Why, what is done cannot be undone. That is the first thought." No it was the last thing they thought of: or, rather it never entered their minds at all. They sprang to the conclusion at once—"What is done SHALL be undone. That is our FIRST and ONLY thought."

"Is water running in our veins? Do we remember still
Old Plymouth Rock, and Lexington, and famous Bunker Hill?
The debt we owe our fathers' graves? and to the yet unborn,
Whose heritage ourselves must make a thing of pride or scorn?

Gray Plymouth Rock hath yet a tongue, and Concord is not dumb;
And voices from our fathers' graves and from the future come:
They call on us to stand our ground—they charge us still to be
Not only free from chains ourselves, but foremost to make free!"

It is of little consequence who is on the throne, if there be behind it a power mightier than the throne. It matters not what is the theory of the government, if the practice of the government be unjust and tyrannical. We rise in rebellion against a despotism incomparably more dreadful than that which induced the colonists to take up arms against the mother country; not on account of a three-penny tax on tea, but because fetters of living iron are fastened on the limbs of millions of our countrymen, and our own sacred rights are trampled in the dust. As citizens of the State, we appeal to the State in vain for protection and redress. As citizen of the United States, we are treated as outlaws in one half of the country, and the national government consents to our destruction. We are denied the right of locomotion, freedom of speech, the right of petition, the liberty of the press, the right peaceably to assemble together to protest against oppression and plead for liberty—at least in thirteen States of the Union. If we venture, as avowed and unflinching abolitionists, to travel South of Mason and Dixon's line, we do so at the peril of our lives. If we would escape torture and death, on visiting any of the slave States, we must stifle our conscientious convictions, hear no testimony against cruelty and tyranny, suppress the

struggling emotions of humanity, divest ourselves of all letters and papers of an antislavery character, and do homage to the slaveholding power—or run the risk of a cruel martyrdom! These are appalling and undeniable facts.

Three millions of the American people are crushed under the American Union! They are held as slaves—trafficked as merchandise—registered as goods and chattels! The government gives them no protection—the government is their enemy—the government keeps them in chains! There they lie bleeding—we are prostrate by their side—in their sorrows and sufferings we participate—their stripes are inflicted on our bodies, their shackles are fastened to our limbs, their cause is ours! The Union which grinds them to the dust rests upon us, and with them we will struggle to overthrow it! The Constitution, which subjects them to hopeless bondage, is one that we cannot swear to support! Our motto is, "NO UNION WITH SLAVEHOLDERS," either religious or political. They are the fiercest enemies of mankind, and the bitterest foes of God! We separate from them not in anger, not in malice, not for a selfish purpose, not to do them an injury, not to cease warning, exhorting, reproving them for their crimes, not to leave the perishing bondman to his fate—O no! But to clear our skirts of innocent blood—to give the oppressor no countenance—to signify our abhorrence of injustice and cruelty—to testify against an ungodly compact—to cease striking hands with thieves and consenting with adulterers—to make no compromise with tyranny—to walk worthily of our high profession—to increase our moral power over the nation—to obey God and vindicate the gospel of His Son—to hasten the downfall of slavery in America, and throughout the world!

We are not acting under a blind impulse. We have carefully counted the cost of this warfare, and are prepared to meet its consequences. It will subject us to reproach, persecution, infamy—it will prove a fiery ordeal to all who shall pass through it—it may cost us our lives. We shall be ridiculed as fools, scorned as visionaries, branded as disorganizers, reviled as madmen, threatened and perhaps punished as traitors. But we shall bide our time. Whether safety or peril, whether victory or defeat, whether life or death be ours, believing that our feet are planted on an eternal foundation, that our position is sublime and glorious, that our faith in God is rational and steadfast, that we have exceeding great and precious promises on which to rely, THAT WE ARE IN THE RIGHT, we shall not falter nor be dismayed,

"though the earth be removed, and though the mountains be carried into the midst of the sea,"—though our ranks be thinned to the number of "three hundred men." Freeman! are you ready for the conflict? Come what may, will you sever the chain that binds you to a slaveholding government, and declare your independence? Up, then, with the banner of revolution! Not to shed blood—not to injure the person or estate of any oppressor—not by force and arms to resist any law—not to countenance a servile insurrection—not to wield any carnal weapons! No—ours must be a bloodless strife, excepting *our* blood be shed—for we aim, as did Christ our leader, not to destroy men's lives, but to save them—to overcome evil with good—to conquer through suffering for righteousness' sake—to set the captive free by the potency of truth!

Secede, then, from the government. Submit to its exactions, but pay it no allegiance, and give it no voluntary aid. Fill no offices under it. Send no senators or representatives to the national or State legislature; for what you cannot conscientiously perform yourself, you cannot ask another to perform as your agent. Circulate a declaration of DISUNION FROM SLAVEHOLDERS, throughout the country. Hold mass meetings—assemble in conventions—nail your banners to the mast!

Do you ask what can be done, if you abandon the ballot-box? What did the crucified Nazarene do without the elective franchise? What did the apostles do? What did the glorious army of martyrs and confessors do? What did Luther and his intrepid associates do? What can women and children do? What has Father Mathew done for teetotalism? What has Daniel O'Connell done for Irish repeal? "Stand, having your loins girt about with truth, and having on the breast-plate of righteousness," and arrayed in the whole armor of God!

The form of government that shall succeed the present government of the United States, let time determine. It would be a waste of time to argue that question, until the people are regenerated and turned from their iniquity. Ours is no anarchical movement, but one of order and obedience. In ceasing from oppression, we establish liberty. What is now fragmentary, shall in due time be crystallized, and shine like a gem set in the heavens, for a light to all coming ages.

Finally—we believe that the effect of this movement will be,—First, to create discussion and agitation throughout the North; and these will lead to a general perception of its grandeur and importance.

Secondly, to convulse the slumbering South like an earthquake, and convince her that her only alternative is, to abolish slavery, or be abandoned by that power on which she now relies for safety.

Thirdly, to attack the slave power in its most vulnerable point, and to carry the battle to the gate.

Fourthly, to exalt the moral sense, increase the moral power, and invigorate the moral constitution of all who heartily espouse it.

We reverently believe that, in withdrawing from the American Union, we have the God of justice with us. We know that we have our enslaved countrymen with us. We are confident that all free hearts will be with us. We are certain that tyrants and their abettors will be against us.

In behalf of the Executive committee of the American Anti-Slavery Society,

WM. LLOYD GARRISON, *President.*

WENDELL PHILLIPS, MARIA WESTON CHAPMAN } *Secretaries.*

Boston, May 20, 1844.

LETTER FROM FRANCIS JACKSON.

BOSTON, 4th July, 1844.

To His Excellency George N. Briggs:

SIR—Many years since, I received from the executive of the Commonwealth a commission as Justice of the Peace. I have held the office that it conferred upon me till the present time, and have found it a convenience to myself, and others. It might continue to be so, could I consent longer to hold it. But paramount considerations forbid, and I herewith transmit to you my commission respectfully asking you to accept my resignation.

While I deem it a duty to myself to take this step, I feel called on to state the reasons that influence me.

In entering upon the duties of the office in question, I complied with the requirements of the law, by taking an oath "*to support the Constitution of the United States.*" I regret that I ever took that oath. Had I then as maturely considered its full import, and the obligations under which it is understood, and meant to lay those who take it, as I have done since, I certainly never would have taken it, seeing, as I now do, that the Constitution of the United States contains provisions calculated and intended to foster, cherish, uphold and perpetuate *slavery*. It pledges the country to guard and protect the slave system so long as the slaveholding States choose to retain it. It regards the slave code as lawful in the States which enact it. Still more, "it has done that, which, until its adoption, was never before done for African slavery. It took it out of its former category of municipal law and local life, adopted it as a national institution, spread around it the broad and sufficient shield of national law, and thus gave to slavery a national existence." Consequently, the oath to support the Constitution of the United States is a solemn promise to do that which is morally wrong; that which is a violation of the natural rights of man, and a sin in the sight of God.

I am not, in this matter, constituting myself a judge of others. I do not say that no honest man can take such an oath, and abide by it. I only say, that *I* would not now deliberately take it; and that, having inconsiderately taken it, I can no longer suffer it to lie upon my soul. I take back the oath, and ask

you, sir, to take back the commission, which was the occasion of my taking it.

I am aware that my course in this matter is liable to be regarded as singular, if not censurable; and I must, therefore, be allowed to make a more specific statement of those *provisions of the Constitution* which support the enormous wrong, the heinous sin of slavery.

The very first Article of the Constitution takes slavery at once under its legislative protection, as a basis of representation in the popular branch of the National Legislature. It regards slaves under the description "of all other *persons*"—as of only three-fifths of the value of free persons; thus to appearance undervaluing them in comparison with freemen. But its dark and involved phraseology seems intended to blind us to the consideration, that those underrated slaves are merely a *basis*, not the *source* of representation; that by the laws of all the States where they live, they are regarded not as *persons*, but as *things*; that they are not the *constituency* of the representative, but his property; and that the necessary effect of this provision of the Constitution is, to take legislative power out of the hands of *men* as such, and give it to the mere possessors of goods and chattels. Fixing upon thirty thousand persons, as the smallest number that shall send one member into the House of Representatives, it protects slavery by distributing legislative power in a free and in a slave State thus: To a congressional district in South Carolina, containing fifty thousand slaves, claimed as the property of five hundred whites, who hold, on an average, one hundred apiece, it gives one Representative in Congress; to a district in Massachusetts containing a population of thirty thousand five hundred, one Representative is assigned. But inasmuch as a slave is never permitted to vote, the fifty thousand persons in a district in Carolina form no part of "the constituency;" *that* is found only in the five hundred free persons. Five hundred freemen of Carolina could send one Representative to Congress, while it would take thirty thousand five hundred freemen of Massachusetts, to do the same thing; that is, one slaveholder in Carolina is clothed by the Constitution with the same political power and influence in the Representatives Hall at Washington, as sixty Massachusetts men like you and me, who "eat their bread in the sweat of their own brows."

According to the census of 1830, and the *ratio* of representation based upon that, slave property added twenty-five members to the House of Representatives. And as it has been estimated, (as an approximation to the truth,) that the two and a half million slaves in the United States are held as property by about two hundred and fifty thousand persons—giving an average of ten slaves to each slaveholder, those twenty-five Representatives, each chosen, at most, by only ten thousand voters, and probably by less than three-fourths of that number, were the representatives, not only of the two hundred and fifty thousand persons who chose them; but of *property* which, five years ago, when slaves were lower in market, than at present, were estimated, by the man who is now the most prominent candidate for the Presidency, at twelve hundred millions of dollars—a sum, which, by the natural increase of five years, and the enhanced value resulting from a more prosperous state of the planting interest, cannot now be less than fifteen hundred millions of dollars. All this vast amount of property, as it is "peculiar," is also identical in its character. In Congress, as we have seen, it is animated by one spirit, moves in one mass, and is wielded with one aim; and when we consider that tyranny is always timid, and despotism distrustful, we see that this vast money power would be false to itself, did it not direct all its eyes and hands, and put forth all its ingenuity and energy, to one end—self-protection and self-perpetuation. And this it has ever done. In all the vibrations of the political scale, whether in relation to a Bank or Sub-Treasury, Free Trade or a Tariff, this immense power has moved, and will continue to move, in one mass, for its own protection.

While the weight of the slave influence is thus felt in the House of Representatives, "in the Senate of the Union," says John Quincy Adams, "the proportion of slaveholding power is still greater. By the influence of slavery in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the fifty-two members of the federal Senate, twenty-six are owners of slaves, and are as effectually representatives of that interest, as the eighty-eight members elected by them to the House."

The dominant power which the Constitution gives to the slave interest, as thus seen and exercised in the *Legislative Halls* of our nation, is equally

obvious and obtrusive in every other department of the National government.

In the *Electoral college*, the same cause produces the same effect—the same power is wielded for the same purpose, as in the Halls of Congress. Even the preliminary nominating conventions, before they dare name a candidate for the highest office in the gift of the people, must ask of the Genius of slavery, to what votary she will show herself propitious. This very year, we see both the great political parties doing homage to the slave power, by nominating each a slaveholder for the chair of State. The candidate of one party declares, "I should have opposed, and would continue to oppose, any scheme whatever of emancipation, either gradual or immediate;" and adds, "It is not true, and I rejoice that it is not true, that either of the two great parties of this country has any design or aim at abolition. I should deeply lament it, if it were true."[[11](#)]

[Footnote [11](#): Henry Clay's speech in the United States Senate in 1839, and confirmed at Raleigh, N.C. 1844.]

The other party nominates a man who says, "I have no hesitation in declaring that I am in favor of the immediate re-annexation of Texas to the territory and government of the United States."

Thus both the political parties, and the candidates of both, vie with each other, in offering allegiance to the slave power, as a condition precedent to any hope of success in the struggle for the executive chair; a seat that, for more than three-fourths of the existence of our constitutional government, has been occupied by a slaveholder.

The same stern despotism overshadows even the sanctuaries of justice. Of the nine Justices of the Supreme Court of the United States, five are slaveholders and of course, must be faithless to their own interest, as well as recreant to the power that gives them place, or must, so far as *they* are concerned, give both to law and constitution such a construction as shall justify the language of John Quincy Adams, when he says—"The legislative, executive, and judicial authorities, are all in their hands—for the preservation, propagation, and perpetuation of the black code of slavery.

Every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of wrong."

Thus by merely advertng but briefly to the theory and the practical effect of this clause of the Constitution, that I have sworn to support, it is seen that it throws the political power of the nation into the hands of the slaveholders; a body of men, which, however it may be regarded by the Constitution as "persons," is in fact and practical effect, a vast moneyed corporation, bound together by an indissoluble unity of interest, by a common sense of a common danger; counselling at all times for its common protection; wielding the whole power, and controlling the destiny of the nation.

If we look into the legislative halls, slavery is seen in the chair of the presiding officer of each, and controlling the action of both. Slavery occupies, by prescriptive right, the Presidential chair. The paramount voice that comes from the temple of national justice, issues from the lips of slavery. The army is in the hands of slavery, and at her bidding, must encamp in the everglades of Florida, or march from the Missouri to the borders of Mexico, to look after her interests in Texas.

The navy, even that part that is cruising off the coast of Africa, to suppress the foreign slave trade, is in the hands of slavery.

Freemen of the North, who have even dared to lift up their voice against slavery, cannot travel through the slave States, but at the peril of their lives.

The representatives of freemen are forbidden, on the floor on Congress, to remonstrate against the encroachments of slavery, or to pray that she would let her poor victims go.

I renounce my allegiance to a Constitution that enthrones such a power, wielded for the purpose of depriving me of my rights, of robbing my countrymen of their liberties, and of securing its own protection, support and perpetuation.

Passing by that clause of the Constitution, which restricted Congress for twenty years, from passing any law against the African slave trade, and which gave authority to raise a revenue on the stolen sons of Africa, I come to that part of the fourth article, which guarantees protection against

"*domestic violence*," and which pledges to the South the military force of the country, to protect the masters against their insurgent slaves: binds us, and our children, to shoot down our fellow-countrymen, who may rise, in emulation of our revolutionary fathers, to vindicate their inalienable "right to life, *liberty* and the pursuit of happiness,"—this clause of the Constitution, I say distinctly, I never will support.

That part of the Constitution which provides for the surrender of fugitive slaves, I never have supported and never will. I will join in no slave-hunt. My door shall stand open, as it has long stood, for the panting and trembling victim of the slave-hunter. When I shut it against him, may God shut the door of her mercy against me! Under this clause of the Constitution, and designed to carry it into effect, slavery has demanded that laws should be passed, and of such a character, as have left the free citizen of the North without protection for his own liberty. The question, whether a man seized in a free State as a slave, is a slave or not, the law of Congress does not allow a jury to determine: but refers it to the decision of a Judge of a United State' Court, or even of the humblest State magistrate, it may be, upon the testimony or affidavit of the party most deeply interested to support the claim. By virtue of this law, freemen have been seized and dragged into perpetual slavery—and should I be seized by a slave-hunter in any part of the country where I am not personally known, neither the Constitution nor laws of the United States would shield me from the same destiny.

These, sir, are the specific parts of the Constitution of the united States, which in my opinion are essentially vicious, hostile at once to the liberty and to the morals of the nation. And these are the principal reasons of my refusal any longer to acknowledge my allegiance to it, and of my determination to revoke my oath to support it. I cannot, in order to keep the law of man, break the law of God, or solemnly call him to witness my promise that I will break it.

It is true that the Constitution provides for its own amendment, and that by this process, all the guarantees of Slavery may be expunged. But it will be time enough to swear to support it when this is done. It cannot be right to do so, until these amendments are made.

It is also true that the framers of the Constitution did studiously keep the words "Slave" and "Slavery" from its face. But to do our constitutional fathers justice, while they forebore—from very shame—to give the word "Slavery" a place in the Constitution, they did not forbear—again to do them justice—to give place in it to the *thing*. They were careful to wrap up the idea, and the substance of Slavery, in the clause for the surrender of the fugitive, though they sacrificed justice in doing so.

There is abundant evidence that this clause touching "persons held to service or labor," not only operates practically, under the judicial construction, for the protection of the slave interest; but that it was *intended* so to operate by the framers of the Constitution. The highest judicial authorities—Chief Justice Shaw, of the Supreme Court of Massachusetts, in the Latimer case, and Mr. Justice Story, in the Supreme Court of the United States, in the case of *Prigg vs. The State of Pennsylvania*,—tell us, I know not on what evidence, that without this "compromise," this security for Southern slaveholders, "the Union could not have been formed." And there is still higher evidence, not only that the framers of the Constitution meant by this clause to protect slavery, but that they did this, knowing that slavery was wrong. Mr. Madison^[12] informs us that the clause in question, as it came out of the hands of Dr. Johnson, the chairman of the "committee on style," read thus: "No person legally held to service, or labor, in one State, escaping into another, shall," &c., and the word "legally" was struck out, and the words "under the laws thereof" inserted after the word "State," in compliance with the wish of some, who thought the term *legal* equivocal, and favoring the idea that slavery was legal "*in a moral view*." A conclusive proof that, although future generations might apply that clause to other kinds of "service or labor," when slavery should have died out, or been killed off by the young spirit of liberty, which was *then* awake and at work in the land; still, slavery was what they were wrapping up in "equivocal" words: and wrapping it up for its protection and safe keeping: a conclusive proof that the framers of the Constitution were more careful to protect themselves in the judgement of coming generations, from the charge of ignorance, than of sin; a conclusive proof that they knew that slavery was not "legal in a moral view," that it was a violation of the moral law of God; and yet knowing and confessing its immorality, they dared to make this stipulation for its support and defence.

[Footnote [12](#): Madison Papers, p. 1589.]

This language may sound harsh to the ears of those who think it a part of their duty, as citizens, to maintain that whatever the patriots of the revolution did, was right; and who hold that we are bound to *do* all the iniquity that they covenanted for us that we *should* do. But the claims of truth and right are paramount to all other claims.

With all our veneration for our constitutional fathers, we must admit,—for they have left on record their own confession of it,—that in this part of their work they *intended* to hold the shield of their protection over a wrong, knowing that it was a wrong. They made a "compromise" which they had no right to make—a compromise of moral principle for the sake of what they probably regarded as "political expediency." I am sure they did not know—no man could know, or can now measure, the extent, or the consequences of the wrong that they were doing. In the strong language of John Quincy Adams,[\[13\]](#) in relation to the article fixing the basis of representation, "Little did the members of the Convention, from the free States, imagine or foresee what a sacrifice to Moloch was hidden under the mask of this concession."

[Footnote [13](#): See his Report on the Massachusetts Resolutions.]

I verily believe that, giving all due consideration to the benefits conferred upon this nation by the Constitution, its national unity, its swelling masses of wealth, its power, and the external prosperity of its multiplying millions; yet the *moral* injury that has been done, by the countenance shown to slavery by holding over that tremendous sin the shield of the Constitution, and thus breaking down in the eyes of the nation the barrier between right and wrong; by so tenderly cherishing slavery as, in less than the life of man, to multiply her children from half a million to nearly three millions; by exacting oaths from those who occupy prominent stations in society, that they will violate at once the rights of man and the law of God; by substituting itself as a rule of right, in place of the moral laws of the universe;—thus in effect, dethroning the Almighty in the hearts of this

people and setting up another sovereign in his stead—more than outweighs it all. A melancholy and monitory lesson this, to all time-serving and temporising statesmen! A striking illustration of the *impolicy* of sacrificing *right* to any considerations of expediency! Yet, what better than the evil effects that we have seen, could the authors of the Constitution have reasonably expected, from the sacrifice of right, in the concessions they made to slavery? Was it reasonable in them to expect that after they had introduced a vicious element into the very Constitution of the body politic which they were calling into life, it would not exert its vicious energies? Was it reasonable in them to expect that, after slavery had been corrupting the public morals for a whole generation, their children would have too much virtue to *use* for the defence of slavery, a power which they themselves had not too much virtue to *give*? It is dangerous for the sovereign power of a State to license immorality; to hold the shield of its protection over any thing that is not "legal in a moral view." Bring into your house a benumbed viper, and lay it down upon your warm hearth, and soon it will not ask you into which room it may crawl. Let Slavery once lean upon the supporting arm, and bask in the fostering smile of the State, and you will soon see, as we now see, both her minions and her victims multiply apace till the politics, the morals, the liberties, even the religion of the nation, are brought completely under her control.

To me, it appears that the virus of slavery, introduced into the Constitution of our body politic, by a few slight punctures, has now so pervaded and poisoned the whole system of our National Government, that literally there is no health in it. The only remedy that I can see for the disease, is to be found in the *dissolution of the patient*.

The Constitution of the United States, both in theory and practice, is so utterly broken down by the influence and effects of slavery, so imbecile for the highest good of the nation, and so powerful for evil, that I can give no voluntary assistance in holding it up any longer.

Henceforth it is dead to me, and I to it. I withdraw all profession of allegiance to it, and all my voluntary efforts to sustain it. The burdens that it lays upon me, while it is held up by others, I shall endeavor to bear patiently, yet acting with reference to a higher law, and distinctly declaring,

that while I retain my own liberty, I will be a part to no compact, which helps to rob any other man of his.

Very respectfully, your friend,

FRANCIS JACKSON.

FROM
MR. WEBSTER'S SPEECH
AT NIBLO'S GARDENS.

"We have slavery, already, amongst us. The Constitution found it among us; it recognized it and gave it SOLEMN GUARANTIES. To the full extent of these guaranties we are all bound, in honor, in justice, and by the Constitution. All the stipulations, contained in the Constitution, *in favor of the slaveholding States* which are already in the Union, ought to be fulfilled, and so far as depends on me, shall be fulfilled, in the fulness of their spirit, and to the exactness of their letter."!!!

EXTRACTS FROM
JOHN Q. ADAMS'S ADDRESS
AT NORTH BRIDGEWATER, NOV. 6, 1844.

The benefits of the Constitution of the United States, were the restoration of credit and reputation, to the country—the revival of commerce, navigation, and ship-building—the acquisition of the means of discharging the debts of the Revolution, and the protection and encouragement of the infant and drooping manufactures of the country. All this, however, as is now well ascertained, was insufficient to propitiate the rulers of the Southern States to

the adoption of the Constitution. What they specially wanted was *protection*.—Protection from the powerful and savage tribes of Indians within their borders, and who were harrassing them with the most terrible of wars—and protection from their own negroes—protection from their insurrections—protection from their escape—protection even to the trade by which they were brought into the country—protection, shall I not blush to say, protection to the very bondage by which they were held. Yes! it cannot be denied—the slaveholding lords of the South prescribed, as a condition of their assent to the Constitution, three special provisions to secure the perpetuity of their dominion over their slaves. The first was the immunity for twenty years of preserving the African slave-trade; the second was the stipulation to surrender fugitive slaves—an engagement positively prohibited by the laws of God, delivered from Sinai; and thirdly, the exaction fatal to the principles of popular representation, of a representation for slaves—for articles of merchandise, under the name of persons.

The reluctance with which the freemen of the North submitted to the dictation of these conditions, is attested by the awkward and ambiguous language in which they are expressed. The word slave is most cautiously and fastidiously excluded from the whole instrument. A stranger, who should come from a foreign land, and read the Constitution of the United States, would not believe that slavery or a slave existed within the borders of our country. There is not word in the Constitution *apparently* bearing up on the condition of slavery, nor is there a provision but would be susceptible of practical execution if there were not a slave in the land.

The delegates from South Carolina and Georgia distinctly avowed that, without this guarantee of protection to their property in slaves, they would not yield their assent to the Constitution; and the freemen of the North, reduced to the alternative of departing from the vital principle of their liberty, or of forfeiting the Union itself, averted their faces, and with trembling hand subscribed the bond.

Twenty years passed away—the slave markets of the South were saturated with the blood of African bondage, and from midnight of the 31st December, 1807, not a slave from Africa was suffered ever more to be introduced upon our soil. But the internal traffic was still lawful, and the *breeding* States soon reconciled themselves to a prohibition which gave

them the monopoly of the interdicted trade, and they joined the full chorus of reprobation, to punish with death the slave-trader from Africa, while they cherished and shielded and enjoyed the precious profits of the American slave-trade exclusively to themselves.

Perhaps this unhappy result of their concession had not altogether escaped the foresight of the freemen of the North; but their intense anxiety for the preservation of the whole Union, and the habit already formed of yielding to the somewhat peremptory and overbearing tone which the relation of master and slave welds into the nature of the lord, prevailed with them to overlook this consideration, the internal slave-trade having scarcely existed while that with Africa had been allowed. But of one consequence which has followed from the slave representation, pervading the whole organic structure of the Constitution, they certainly were not prescient; for if they had been, never—no, never would they have consented to it.

The representation, ostensibly of slaves, under the name of persons, was in its operation an exclusive grant of power to one class of proprietors, owners of one species of property, to the detriment of all the rest of the community. This species of property was odious in its nature, held in direct violation of the natural and inalienable rights of man, and of the vital principles of Christianity; it was all accumulated in one geographical section of the country, and was all held by wealthy men, comparatively small in numbers, not amounting to a tenth part of the free white population of the States in which it was concentrated.

In some of the ancient, and in some modern republics, extraordinary political power and privileges have been invested in the owners of horses; but then these privileges and these powers have been granted for the equivalent of extraordinary duties and services to the community, required of the favored class. The Roman knights constituted the cavalry of their armies, and the bushels of rings gathered by Hannibal from their dead bodies, after the battle of Cannae, amply prove that the special powers conferred upon them were no gratuitous grants. But in the Constitution of the United States, the political power invested in the owners of slaves is entirely gratuitous. No extraordinary service is required of them; they are, on the contrary, themselves grievous burdens upon the community, always threatened with the danger of insurrections, to be smothered in the blood of

both parties, master and slave, and always depressing the condition of the poor free laborer, by competition with the labor of the slave. The property in horses was the gift of God to man, at the creation of the world; the property in slaves is property acquired and held by crimes, differing in no moral aspect from the pillage of a freebooter, and to which no lapse of time can give a prescriptive right. You are told that this is no concern of yours, and that the question of freedom and slavery is exclusively reserved to the consideration of the separate States. But if it be so, as to the mere question of right between master and slave, it is of tremendous concern to you that this little cluster of slave-owners should possess, besides their own share in the representative hall of the nation, the exclusive privilege of appointing two-fifths of the whole number of the representatives of the people. This is now your condition, under that delusive ambiguity of language and of principle, which begins by declaring the representation in the popular branch of the legislature a representation of persons, and then provides that one class of persons shall have neither part nor lot in the choice of their representative; but their elective franchise shall be transferred to their masters, and the oppressors shall represent the oppressed. The same perversion of the representative principle pollutes the composition of the colleges of electors of President and Vice President of the United States, and every department of the government of the Union is thus tainted at its source by the gangrene of slavery.

Fellow-citizens,—with a body of men thus composed, for legislators and executors of the laws, what will, what must be, what has been your legislation? The numbers of freemen constituting your nation are much greater than those of the slaveholding States, bond and free. You have at least three-fifths of the whole population of the Union. Your influence on the legislation and the administration of the government ought to be in the proportion of three to two.—But how stands the fact? Besides the legitimate portion of influence exercised by the slaveholding States by the measure of their numbers, here is an intrusive influence in every department, by a representation nominally of persons, but really of property, ostensibly of slaves, but effectively of their masters, overbalancing your superiority of numbers, adding two-fifths of supplementary power to the two-fifths fairly secured to them by the compact, CONTROLLING AND OVERRULING THE WHOLE ACTION OF YOUR GOVERNMENT AT HOME AND

ABROAD, and warping it to the sordid private interest and oppressive policy of 300,000 owners of slaves.

From the time of the adoption of the Constitution of the United States, the institution of domestic slavery has been becoming more and more the abhorrence of the civilized world. But in proportion as it has been growing odious to all the rest of mankind, it has been sinking deeper and deeper into the affections of the holders of slaves themselves. The cultivation of cotton and of sugar, unknown in the Union at the establishment of the Constitution, has added largely to the pecuniary value of the slave. And the suppression of the African slave-trade as piracy upon pain of death, by securing the benefit of a monopoly to the virtuous slaveholders of the ancient dominion, has turned her heroic tyrannicides into a community of slave-breeders for sale, and converted the land of George Washington, Patrick Henry, Richard Henry Lee, and Thomas Jefferson, into a great barracoön—a cattle-show of human beings, an emporium, of which the staple articles of merchandise are the flesh and blood, the bones and sinews of immortal man.

Of the increasing abomination of slavery in the unbought hearts of men at the time when the Constitution of the United States was formed, what clearer proof could be desired, than that the very same year in which that charter of the land was issued, the Congress of the Confederation, with not a tithe of the powers given by the people to the Congress of the new compact, actually abolished slavery for ever throughout the whole Northwestern territory, without a remonstrance or a murmur. But in the articles of confederation, there was no guaranty for the property of the slaveholder—no double representation of him in the Federal councils—no power of taxation—no stipulation for the recovery of fugitive slaves. But when the powers of *government* came to be delegated to the Union, the—that is, South Carolina and Georgia—refused their subscription to the parchment, till it should be saturated with the infection of slavery, which no fumigation could purify, no quarantine could extinguish. The freemen of the North gave way, and the deadly venom of slavery was infused into the Constitution of freedom. Its first consequence has been to invert the first principle of Democracy, that the will of the majority of numbers shall rule the land. By means of the double representation, the minority command the whole, and a KNOT OF SLAVEHOLDERS GIVE THE LAW AND

PRESCRIBE THE POLICY OF THE COUNTRY. To acquire this superiority of a large majority of freemen, a persevering system of engrossing nearly all the seats of power and place, is constantly for a long series of years pursued, and you have seen, in a period of fifty-six years, the Chief-magistracy of the Union held, during forty-four of them, by the owners of slaves. The Executive departments, the Army and Navy, the Supreme Judicial Court and diplomatic missions abroad, all present the same spectacle;—an immense majority of power in the hands of a very small minority of the people—millions made for a fraction of a few thousands.

From that day (1830,) SLAVERY, SLAVEHOLDING, SLAVE-BREEDING AND SLAVE-TRADING, HAVE FORMED THE WHOLE FOUNDATION OF THE POLICY OF THE FEDERAL GOVERNMENT, and of the slaveholding States, at home and abroad; and at the very time when a new census has exhibited a large increase upon the superior numbers of the free States, it has presented the portentous evidence of increased influence and ascendancy of the slaveholding power.

Of the prevalence of that power, you have had continual and conclusive evidence in the suppression for the space of ten years of the right of petition, guarantied, if there could be a guarantee against slavery, by the first article amendatory of the Constitution.

THE ANTI-SLAVERY EXAMINER.—NO. XI

THE

CONSTITUTION

A PRO-SLAVERY COMPACT

OR

SELECTIONS

FROM

THE MADISON PAPERS, &C.

SECOND EDITION, ENLARGED.

NEW YORK:
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1845.

CONTENTS.

- [INTRODUCTION](#)
- [Debates in the Congress of the Confederation](#)
- [Debates in the Federal Convention](#)
- [List of Members of the Federal Convention](#)
- [Speech of Luther Martin](#)

- **DEBATES IN STATE CONVENTIONS**
 - [Massachusetts](#)
 - [New York](#)
 - [Pennsylvania](#)
 - [Virginia](#)
 - [North Carolina](#)
 - [South Carolina](#)
- [Extracts from the Federalist](#)
- [Debates in First Congress](#)
- [Address of the Executive Committee of the American Anti-Slavery Society](#)
- [Letter from Francis Jackson to Gov. Briggs](#)
- [Extract from Mr. Webster's Speech](#)
- [Extracts from J.Q. Adams's Address, November, 1844](#)

INTRODUCTION.

Every one knows that the "Madison Papers" contain a Report, from the pen of James Madison, of the Debates in the Old Congress of the Confederation and in the Convention which formed the Constitution of the United States. We have extracted from them, in these pages, all the Debates on those clauses of the Constitution which relate to slavery. To these we have added all that is found, on the same topic, in the Debates of the several State Conventions which ratified the Constitution: together with so much of the Speech of Luther Martin before the Legislature of Maryland, and of the Federalist, as relate to our subject; with some extracts, also, from the Debates of the first Federal Congress on Slavery. These are all printed without alteration, except that, in some instances, we have inserted in brackets, after the name of a speaker, the name of the State from which he came. The notes and italics are those of the original, but the editor has added two notes on [page 38](#), which are marked as his, and we have taken the liberty of printing in capitals one sentiment of Rufus King's, and two of James Madison's—a distinction which the importance of the statements seemed to demand—otherwise we have reprinted exactly from the originals.

These extracts develop most clearly all the details of that "compromise," which was made between freedom and slavery, in 1787; granting to the slaveholder distinct privileges and protection for his slave property, in return for certain commercial concessions on his part toward the North. They prove also that the Nation at large were fully aware of this bargain at the time, and entered into it willingly and with open eyes.

We have added the late "Address of the American Anti-Slavery Society," and the Letter of FRANCIS JACKSON to Governor BRIGGS, resigning his commission of Justice of the Peace—as bold and honorable protests against the guilt and infamy of this National bargain, and as proving most clearly the duty of each individual to trample it under his feet. The clauses of the

Constitution to which we refer as of a pro-slavery character are the following :—

ART. 1, SECT. 2.—Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three-fifths of all other persons*.

ART. 1, SECT. 8.—Congress shall have power ... to suppress insurrections.

ART. 1, SECT. 9.—The migration or importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited by the Congress, prior to the year one thousand eight hundred and eight: but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

ART. 4, SECT. 2.—No person, held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due.

ART. 4, SECT. 4.—The United States shall guarantee to every State in this Union a republican form of government; and shall protect each of them against invasion; and, on application of the legislature, or of the executive, (when the legislature cannot be convened) *against domestic violence*.

The first of these clauses, relating to representation, confers on a slaveholding community additional political power for every slave held among them, and thus tempts them to continue to uphold the system: the second and the last, relating to insurrection and domestic violence, perfectly innocent in themselves—yet being made with the fact directly in view that slavery exists among us, do deliberately pledge the whole national force against the unhappy slave if he imitate our fathers and resist oppression—thus making us partners in the guilt of sustaining slavery: the third, relating to the slave-trade, disgraces the nation by a pledge not to abolish that traffic till after twenty years, *without obliging Congress to do so even then*, and

thus the slave-trade may be legalized to-morrow if Congress choose: the fourth is a promise on the part of the whole Nation to return fugitive slaves to their masters, a deed which God's law expressly condemns and which every noble feeling of our nature repudiates with loathing and contempt.

These are the articles of the "Compromise," so much talked of, between the North and South.

We do not produce the extracts which make up these pages to show what is the meaning of the clauses above cited. For no man or party, of any authority in such matters, has ever pretended to doubt to what subject they all relate. If indeed they were ambiguous in their terms, a resort to the history of those times would set the matter at rest forever. A few persons, to be sure, of late years, to serve the purposes of a party, have tried to prove that the Constitution makes no compromise with slavery. Notwithstanding the clear light of history;—the unanimous decision of all the courts in the land, both State and Federal;—the action of Congress and the State Legislature;—the constant practice of the Executive in all its branches;—and the deliberate acquiescence of the whole people for half a century, still they contend that the Nation does not know its own meaning, and that the Constitution does not tolerate slavery! Every candid mind, however, must acknowledge that the language of the Constitution is clear and explicit.

Its terms are so broad, it is said, that they include many others beside slaves, and hence it is wisely (!) inferred that they cannot include the slaves themselves! Many persons besides slaves in this country doubtless are "held to service and labor under the laws of the States," but that does not at all show that slaves are not "held to service;" many persons beside the slaves may take part "in insurrections," but that does not prove that when the slaves rise, the National Government is not bound to put them down by force. Such a thing has been heard of before as one description including a great variety of persons,—and this is the case in the present instance.

But granting that the terms of the Constitution are ambiguous—that they are susceptible of two meanings, if the unanimous, concurrent, unbroken practice of every department of the Government, judicial, legislative, and executive, and the acquiescence of the whole people for fifty years do not prove which is the true construction, then how and where can such a

question ever be settled? If the people and the Courts of the land do not know what they themselves mean, who has authority to settle their meaning for them?

If then the people and the Courts of a country are to be allowed to determine what their own laws mean, it follows that at this time and for the last half century, the Constitution of the United States has been, and still is, a pro-slavery instrument, and that any one who swears to support it, swears to do pro-slavery acts, and violates his duty both as a man and an abolitionist. What the Constitution may become a century hence, we know not; we speak of it *as it is*, and repudiate it *as it is*.

But the purpose, for which we have thrown these pages before the community, is this. Some men, finding the nation unanimously deciding that the Constitution tolerates slavery, have tried to prove that this false construction, as they think it, has been foisted into the instrument by the corrupting influence of slavery itself, tainting all it touches. They assert that the known anti-slavery spirit of revolutionary times never *could* have consented to so infamous a bargain as the Constitution is represented to be, and has in its present hands become. Now these pages prove the melancholy fact, that willingly, with deliberate purpose, our fathers bartered honesty for gain, and became partners with tyrants, that they might share in the profits of their tyranny.

And in view of this fact, will it not require a very strong argument to make any candid man believe, that the bargain which the fathers tell us they meant to incorporate into the Constitution, and which the sons have always thought they found there incorporated, does not exist there, after all? Forty of the shrewdest men and lawyers in the land assemble to make a bargain, among other things, about slaves,—after months of anxious deliberation they put it into writing and sign their names to the instrument,—fifty years roll away, twenty millions, at least, of their children pass over the stage of life,—courts sit and pass judgment,—parties arise and struggle fiercely; still all concur in finding in the instrument just that meaning which the fathers tell us they intended to express:—must not he be a desperate man, who, after all this, sets out to prove that the fathers were bunglers and the sons fools, and that slavery is not referred to at all?

Besides, the advocates of this new theory of the Anti-slavery character of the Constitution, quote some portions of the Madison Papers in support of their views,—and this makes it proper that the community should hear *all* that these Debates have to say on the subject. The further we explore them, the clearer becomes the fact, that the Constitution was meant to be, what it has always been esteemed, a compromise between slavery and freedom.

If then the Constitution be, what these Debates show that our fathers intended to make it, and what, too, their descendants, this nation, say they did make it and agree to uphold,—then we affirm that it is a "covenant with death and an agreement with hell," and ought to be immediately annulled. No abolitionist can consistently take office under it, or swear to support it.

But if, on the contrary, our fathers failed in their purpose, and the Constitution is all pure and untouched by slavery,—then, Union itself is impossible, without guilt. For it is undeniable that the fifty years passed under this (anti-slavery) Constitution, show us the slaves trebling in numbers;—slaveholders monopolizing the offices and dictating the policy of the Government;—prostituting the strength and influence of the Nation to the support of slavery here and elsewhere;—trampling on the rights of the free States, and making the courts of the country their tools. To continue this disastrous alliance longer is madness. The trial of fifty years with the best of men and the best of Constitutions, on this supposition, only proves that it is impossible for free and slave States to unite on any terms, without all becoming partners in the guilt and responsible for the sin of slavery. We dare not prolong the experiment, and with double earnestness we repeat our demand upon every honest man to join in the outcry of the American Anti-Slavery Society,—

NO UNION WITH SLAVEHOLDERS!
THE CONSTITUTION
A PRO-SLAVERY COMPACT.

Extracts from Debates in the Congress of Confederation, preserved by Thomas Jefferson, 1776.

Congress proceeded the same day to consider the Declaration of Independence, * * *

The clause too reprobating the enslaving the inhabitants of Africa was struck out, in compliance to South Carolina and Georgia, who had never attempted to restrain the importation of Slaves, and who on the contrary still wished to continue it. Our Northern brethren also, I believe, felt a little tender under those censures; for though their people have very few slaves themselves, yet they had been pretty considerable carriers of them to others. —p. 18.

On Friday, the twelfth of July, 1776, the committee appointed to draw the articles of Confederation reported them, and on the twenty-second, the House resolved themselves into a committee to take them into consideration. On the thirtieth and thirty-first of that month, and the first of the ensuing, those articles were debated which determined the proportion or quota of money which each State should furnish to the common treasury, and the manner of voting in Congress. The first of these articles was expressed in the original draught in these words:—

"Article 11. All charges of war and all other expenses that shall be incurred for the common defence, or general welfare, and allowed by the United States assembled, shall be defrayed out of a common treasury, which shall be supplied by the several Colonies in proportion to the number of inhabitants of every age, sex and duality, except Indians not paying taxes, in each Colony, a true account of which, distinguishing the white inhabitants, shall be triennially taken and transmitted to the Assembly of the United States."

Mr. CHASE (of Maryland) moved, that the quotas should be paid, not by the number of inhabitants of every condition but by that of the "white inhabitants." He admitted that taxation should be always in proportion to property; that this was in theory the true rule, but that from a variety of difficulties it was a rule which could never be adopted in practice. The value of the property in every State could never be estimated justly and equally. Some other measure for the wealth of the State must therefore be devised, some standard referred to which would be more simple. He considered the number of inhabitants as a tolerably good criterion of property, and that this might always be obtained. He therefore thought it the best mode we could adopt, with one exception only. He observed that negroes are property, and as such cannot be distinguished from the lands or

personalities held in those States where there are few slaves. That the surplus of profit which a Northern farmer is able to lay by, he invests in cattle, horses, &c.; whereas, a Southern farmer lays out that same surplus in slaves. There is no more reason therefore for taxing the Southern States on the farmer's head and on his slave's head, than the Northern ones on their farmers' heads and the heads of their cattle. That the method proposed would therefore tax the Southern States according to their numbers and their wealth conjunctly, while the Northern would be taxed on numbers only: that negroes in fact should not be considered as members of the State, more than cattle, and that they have no more interest in it.

Mr. John Adams (of Massachusetts) observed, that the numbers of people were taken by this article as an index of the wealth of the State and not as subjects of taxation. That as to this matter it was of no consequence by what name you called your people, whether by that of freemen or of slaves. That in some countries the laboring poor were called freemen, in others they were called slaves: but that the difference as to the state was imaginary only. What matters it whether a landlord employing ten laborers on his farm gives them annually as much money as will buy them the necessaries of life, or gives them those necessaries at short hand? The ten laborers add as much wealth annually to the State, increase its exports as much, in the one case as the other. Certainly five hundred freemen produce no more profits, no greater surplus for the payment of taxes, than five hundred slaves. Therefore the State in which are the laborers called freemen, should be taxed no more than that in which are those called slaves. Suppose, by any extraordinary operation of nature or of law, one half the laborers of a State could in the course of one night be transformed into slaves,—would the State be made the poorer, or the less able to pay taxes? That the condition of the laboring poor in most countries,—that of the fishermen, particularly, of the Northern States,—is as abject as that of slaves. It is the number of laborers which produces the surplus for taxation; and numbers, therefore, indiscriminately, are the fair index of wealth. That it is the use of the word "property" here, and its application to some of the people of the State, which produces the fallacy. How does the Southern farmer procure slaves? Either by importation or by purchase from his neighbor. If he imports a slave, he adds one to the number of laborers in his country, and proportionably to its profits and abilities to pay taxes; if he buys from his

neighbor, it is only a transfer of a laborer from one farm to another, which does not change the annual produce of the State, and therefore should not change its tax; that if a Northern farmer works ten laborers on his farm, he can, it is true, invest the surplus of ten men's labor in cattle; but so may the Southern farmer working ten slaves. That a State of one hundred thousand freemen can maintain no more cattle than one of one hundred thousand slaves; therefore they have no more of that kind of property. That a slave may, indeed, from the custom of speech, be more properly called the wealth of his master, than the free laborer might be called the wealth of his employer: but as to the State, both were equally its wealth, and should therefore equally add to the quota of its tax.

Mr. HARRISON (of Virginia) proposed, as a compromise, that two slaves should be counted as one freeman. He affirmed that slaves did not do as much work as freemen, and doubted if two effected more than one. That this was proved by the price of labor, the hire of a laborer in the Southern colonies being from £8 to £12, while in the Northern it was generally £24.

Mr. WILSON (of Pennsylvania) said, that if this amendment should take place, the Southern colonies would have all the benefit of slaves, whilst the Northern ones would bear the burthen. That slaves increase the profits of a State, which the Southern States mean to take to themselves; that they also increase the burthen of defence, which would of course fall so much the heavier on the Northern; that slaves occupy the places of freemen and eat their food. Dismiss your slaves, and freemen will take their places. It is our duty to lay every discouragement on the importation of slaves; but this amendment would give the *jus trium liberorum* to him who would import slaves. That other kinds of property were pretty equally distributed through all the Colonies: there were as many cattle, horses, and sheep, in the North as the South, and South as the North; but not so as to slaves: that experience has shown that those colonies have been always able to pay most, which have the most inhabitants, whether they be black or white; and the practice of the Southern colonies has always been to make every farmer pay poll taxes upon all his laborers, whether they be black or white. He acknowledged indeed that freemen worked the most; but they consume the most also. They do not produce a greater surplus for taxation. The slave is neither fed nor clothed so expensively as a freeman. Again, white women are exempted from labor generally, which negro women are not. In this then

the Southern States have an advantage as the article now stands. It has sometimes been said that slavery was necessary, because the commodities they raise would be too dear for market if cultivated by freemen; but now it is said that the labor of the slave is the dearest.

Mr. PAYNE (of Massachusetts) urged the original resolution of Congress, to proportion the quotas of the States to the number of souls.

Dr. WITHERSPOON (of New-Jersey) was of opinion, that the value of lands and houses was the best estimate of the wealth of a nation, and that it was practicable to obtain such a valuation. This is the true barometer of wealth. The one now proposed is imperfect in itself, and unequal between the States. It has been objected that negroes eat the food of freemen, and therefore should be taxed: horses also eat the food of freemen; therefore they also should be taxed. It has been said too, that in carrying slaves into the estimate of the taxes the State is to pay, we do no more than those States themselves do, who always take slaves into the estimate of the taxes the individual is to pay. But the cases are not parallel. In the Southern Colonies, slaves pervade the whole Colony; but they do not pervade the whole continent. That as to the original resolution of Congress, it was temporary only, and related to the moneys heretofore emitted: whereas we are now entering into a new compact, and therefore stand on original ground.

AUGUST 1st. The question being put, the amendment proposed was rejected by the votes of New-Hampshire, Massachusetts, Rhode-Island, Connecticut, New-York, New-Jersey and Pennsylvania, against those of Delaware, Maryland, Virginia, North; and South Carolina. Georgia was divided.—pp. 27-8-9, 30-1-2.

Extracts from Madison's Report of Debates in the Congress of the Confederation.

TUESDAY, January 14, 1783.

If the valuation of land had not been prescribed by the Federal Articles, the Committee would certainly have preferred some other rule of appointment, particularly that of numbers, under certain qualifications as to slaves.—p.

TUESDAY, Feb. 11, 1783.

Mr. WOLCOTT declares his opinion that the Confederation ought to be amended by substituting numbers of inhabitants as the rule; admits the difference between freemen and blacks; and suggests a compromise, by including in the numeration such blacks only as were within sixteen and sixty years of age.—*p.* 331

THURSDAY, March 27, 1783.

(The eleventh and twelfth paragraphs:)

Mr. WILSON (of Pennsylvania) was strenuous in their favor; said he was in Congress when the Articles of Confederation directing a valuation of land were agreed to; that it was the effect of the impossibility of compromising the different ideas of the Eastern and Southern States, as to the value of slaves compared with the whites, the alternative in question.

Mr. CLARK (of New-Jersey) was in favor of them. He said that he was also in Congress when this article was decided; that the Southern States would have agreed to numbers in preference to the value of land if half their slaves only should be included; but that the Eastern States would not concur in that proposition.

It was agreed, on all sides, that, instead of fixing the proportion by ages, as the report proposed, it would be best to fix the proportion in absolute numbers. With this view, and that the blank might be filled up, the clause was recommitted. *p.* 421-2.

FRIDAY, March 28, 1783.

The committee last mentioned, reported that two blacks be rated as one freeman.

Mr. WOLCOTT (of Connecticut) was for rating them as four to three. Mr. CARROLL as four to one. Mr. WILLIAMSON (of North Carolina) said he was principled against slavery; and that he thought slaves an incumbrance to society, instead of increasing its ability to pay taxes. Mr. HIGGINSON (of Massachusetts) as four to three. Mr. RUTLEDGE (of South Carolina) said, for the sake of the object, he would agree to rate slaves as two to one,

but he sincerely thought three to one would be a juster proportion. Mr. HOLTON as four to three.—Mr. OSGOOD said he did not go beyond four to three. On a question for rating them as three to two, the votes were, New Hampshire, aye; Massachusetts, no; Rhode Island; divided; Connecticut, aye; New Jersey, aye; Pennsylvania, aye; Delaware, aye; Maryland, no; Virginia, no; North Carolina, no; South Carolina, no. The paragraph was then postponed, by general consent, some wishing for further time to deliberate on it; but it appearing to be the general opinion that no compromise would be agreed to.

After some further discussions on the Report, in which the necessity of some simple and practicable rule of apportionment came fully into view, Mr. MADISON (of Virginia) said that, in order to give a proof of the sincerity of his professions of liberality, he would propose that slaves should be rated as five to three. Mr. RUTLEDGE (of South Carolina) seconded the motion. Mr. WILSON (of Pennsylvania) said he would sacrifice his opinion on this compromise.

Mr. LEE was against changing the rule, but gave it as his opinion that two slaves were not equal to one freeman.

On the question for five to three, it passed in the affirmative; New Hampshire, aye; Massachusetts, divided; Rhode Island, no; Connecticut, no; New Jersey, aye; Pennsylvania, aye; Maryland, aye; Virginia, aye; North Carolina, aye; South Carolina, aye.

A motion was then made by Mr. BLAND, seconded by Mr. LEE, to strike out the clause so amended, and, on the question "Shall it stand," it passed in the negative; New Hampshire, aye; Massachusetts, no; Rhode Island, no; Connecticut, no; New Jersey, aye; Pennsylvania, aye; Delaware, no; Maryland, aye; Virginia, aye; North Carolina, aye; South Carolina, no; so the clause was struck out.

The arguments used by those who were for rating slaves high were, that the expense of feeding and clothing them was as far below that incident to freemen as their industry and ingenuity were below those of freemen; and that the warm climate within which the States having slaves lay, compared with the rigorous climate and inferior fertility of the others, ought to have great weight in the case; and that the exports of the former States were

greater than of the latter. On the other side, it was said, that slaves were not put to labor as young as the children of laboring families; that, having no interest in their labor, they did as little as possible, and omitted every exertion of thought requisite to facilitate and expedite it; that if the exports of the States having slaves exceeded those of the others, their imports were in proportion, slaves employed wholly in agriculture, not in manufactures; and that, in fact, the balance of trade formerly was much more against the Southern States than the others.

On the main question, New Hampshire, aye; Massachusetts, no; Rhode Island, no; Connecticut, no; New York (Mr. FLOYD, aye;) New Jersey, aye; Delaware, no; Maryland, aye; Virginia, aye; North Carolina, aye; South Carolina, no.—*pp.* 423-4-5.

TUESDAY, April 1, 1783.

Congress resumed the Report on Revenue, &c. Mr. HAMILTON, who had been absent when the last question was taken for substituting numbers in place of the value of land, moved to reconsider that vote. He was seconded by Mr. OSGOOD. Those who voted differently from their former votes were influenced by the conviction of the necessity of the change, and despair on both sides of a more favorable rate of the slaves. The rate of three-fifths was agreed to without opposition.—*p.* 430.

MONDAY, MAY 26, 1783.

The Resolutions on the Journal instructing the ministers in Europe to remonstrate against the carrying off the negroes—also those for furloughing the troops—passed *unanimously*.—*p.* 456.

Letter from Mr. Madison to Edmund Randolph.

PHILADELPHIA, April 8, 1783.

A change of the valuation of lands for the number of inhabitants, deducting two-fifths of the slaves, has received a tacit sanction, and, unless hereafter expunged, will go forth in the general recommendation, as material to future harmony and justice among the members of the Confederacy. The

deduction of two-fifths was a compromise between the wide opinions and demands of the Southern and other States.—*p. 523.*

Extract from "Debates in the Federal Convention" of 1787, for the formation of the Constitution of the United States.

TUESDAY, May 29, 1787.

Mr. CHARLES PINCKNEY laid before the House the draft of a Federal Government. * * * "The proportion of direct taxation shall be regulated by the whole number of inhabitants of every description"—*pp. 735, 741.*

WEDNESDAY, May 30, 1787.

The following Resolution, being the second of those proposed by Mr. RANDOLPH, was taken up, viz.

"That the rights of suffrage in the National Legislature ought to be proportioned to the quotas of contribution, or to the number of free inhabitants, as the one or the other rule may seem best in different cases."

Colonel HAMILTON moved to alter the resolution so as to read, "that the rights of suffrage in the National Legislature ought to be proportioned to the number of free inhabitants." Mr. SPAIGHT seconded the motion.—*p. 750.*

WEDNESDAY, June 6, 1787.

Mr. MADISON. We have seen the mere distinction of color made, in the most enlightened period of time, a ground of the most oppressive dominion ever exercised by man over man.—*p. 806.*

MONDAY, June 11, 1787.

Mr. SHERMAN proposed, that the proportion of suffrage in the first branch should be according to the respective numbers of free inhabitants;

Mr. RUTLEDGE proposed, that the proportion of suffrage in the first branch should be according to the quotas of contribution.

Mr. KING and Mr. WILSON, in order to bring the question to a point, moved, "that the right of suffrage in the first branch of the National

Legislature ought not to be according to the rule established in the Articles of Confederation, but according to some equitable ratio of representation."—*p.* 836.

It was then moved by Mr. RUTLEDGE, seconded by Mr. BUTLER, to add to the words, "equitable ratio of representation," at the end of the motion just agreed to, the words "according to the quotas of contribution." On motion of Mr. WILSON, seconded by Mr. PINCKNEY, this was postponed; in order to add, after the words, "equitable ratio of representation," the words following: "In proportion to the whole number of white and other free citizens and inhabitants of every age, sex and condition, including those bound to servitude for a term of years, and three-fifths of all other persons not comprehended in the foregoing description, except Indians not paying taxes, in each State"—this being the rule in the act of Congress, agreed to by eleven States, for apportioning quotas of revenue on the States, and requiring a census only every five, seven, or ten years.

Mr. GERRY (of Massachusetts) thought property not the rule of representation. Why, then, should the blacks, who were property in the South, be in the rule of representation more than the cattle and horses of the North?

On the question,—Massachusetts, Connecticut, New York, Pennsylvania, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—9; New Jersey, Delaware, no—2.—*pp.* 842-3.

TUESDAY, June 19, 1787.

Mr. MADISON. Where slavery exists, the republican theory becomes still more fallacious.—*p.* 899.

SATURDAY, June 30, 1787.

Mr. Madison,—admitted that every peculiar interest, whether in any class of citizens, or any description of states, ought to be secured as far as possible. Wherever there is danger of attack, there ought to be given a constitutional power of defence. But he contended that the States were divided into different interests, not by their difference of size, but by other circumstances; the most material of which resulted partly from climate, but principally from the effects of their having or not having slaves. These two

causes concurred in forming the great division of interests in the United States. It did not lie between the large and small States. IT LAY BETWEEN THE NORTHERN AND SOUTHERN; and if any defensive power were necessary, it ought to be mutually given to these two interests. He was so strongly impressed with this important truth, that he had been casting about in his mind for some expedient that would answer the purpose. The one which had occurred was, that, instead of proportioning the votes of the States in both branches, to the irrespective numbers of inhabitants, computing the slaves in the ratio of five to three, they should be represented in one branch according to the number of free inhabitants only; and in the other according to the whole number, counting slaves as free. By this arrangement the Southern scale would have the advantage in one House, and the Northern in the other. He had been restrained from proposing this expedient by two considerations; one was his unwillingness to urge any diversity of interests on an occasion where it is but too apt to arise of itself; the other was the inequality of powers that must be vested in the two branches, and which would destroy the equilibrium of interests.—*pp.* 1006-7

MONDAY, July 2, 1787.

Mr. PINCKNEY. There is a real distinction between the Northern and Southern interests. North Carolina, South Carolina, and Georgia, in their rice and indigo, had a peculiar interest which might be sacrificed.—*p.* 1016.

FRIDAY, July 6, 1787.

Mr. PINCKNEY—thought the blacks ought to stand on an equality with the whites; but would agree to the ratio settled by Congress.—*p.* 1039.

MONDAY, July 9, 1787.

Mr. PATTERSON considered the proposed estimate for the future according to the combined rules of numbers and wealth, as too vague. For this reason New Jersey was against it. He could regard negro slaves in no light but as property. They are no free agents, have no personal liberty, no faculty of acquiring property, but on the contrary are themselves property, and like other property entirely at the will of the master. Has a man in Virginia a number of votes in proportion to the number of his slaves? And if negroes

are not represented in the States to which they belong, why should they be represented in the General Government. What is the true principle of representation? It is an expedient by which an assembly of certain individuals, chosen by the people, is substituted in place of the inconvenient meeting of the people themselves. If such a meeting of the people was actually to take place, would the slaves vote? They would not. Why then should they be represented? He was also against such an indirect encouragement of the slave trade; observing that Congress, in their act relating to the change of the eighth article of Confederation, had been ashamed to use the term "slaves," and had substituted a description.

Mr. MADISON reminded Mr. PATTERSON that his doctrine of representation, which was in its principle the genuine one, must for ever silence the pretensions of the small States to an equality of votes with the large ones. They ought to vote in the same proportion in which their citizens would do, if the people of all the States were collectively met. He suggested, as a proper ground of compromise, that in the first branch the States should be represented according to their number of free inhabitants; and in the second, which had for one of its primary objects the guardianship of property, according to the whole number, including slaves.

Mr. BUTLER urged warmly the justice and necessity of regarding wealth in the apportionment of representation.

Mr. KING had always expected, that, as the Southern States are the richest, they would not league themselves with the Northern, unless some respect were paid to their superior wealth. If the latter expect those preferential distinctions in commerce, and other advantages which they will derive from the connexion, they must not expect to receive them without allowing some advantages in return. Eleven out of thirteen of the States had agreed to consider slaves in the apportionment of taxation; and taxation and representation ought to go together.—*pp.* 1054-5-6.

TUESDAY, July 10, 1787.

In Convention,—Mr. KING reported, from the Committee yesterday appointed, "that the States at the first meeting of the General Legislature, should be represented by sixty-five members, in the following proportions, to wit:—New Hampshire, by 3; Massachusetts, 8; Rhode Island, 1;

Connecticut, 5; New York, 6; New Jersey, 4; Pennsylvania, 8; Delaware, 1; Maryland, 6; Virginia, 10; North Carolina, 5; South Carolina, 5; Georgia, 3."

Mr. KING remarked that the four Eastern States, having 800,000 souls, have one-third fewer representatives than the four Southern States, having not more than 700,000 souls, rating the blacks as five for three. The Eastern people will advert to these circumstances, and be dissatisfied. He believed them to be very desirous of uniting with their Southern brethren, but did not think it prudent to rely so far on that disposition, as to subject them to any gross inequality. He was fully convinced that THE QUESTION CONCERNING A DIFFERENCE OF INTERESTS DID NOT LIE WHERE IT HAD HITHERTO BEEN DISCUSSED, BETWEEN THE GREAT AND SMALL STATES; BUT BETWEEN THE SOUTHERN AND EASTERN. For this reason he had been ready to yield something, in the proportion of representatives, for the security of the Southern. No principle would justify the giving them a majority. They were brought as near an equality as was possible. He was not averse to giving them a still greater security, but did not see how it could be done.

General PINCKNEY. The Report before it was committed was more favorable to the Southern States than as it now stands. If they are to form so considerable a minority, and the regulation of trade is to be given to the General Government, they will be nothing more than overseers for the Northern States. He did not expect the Southern States to be raised to a majority of representatives; but wished them to have something like an equality.

Mr. WILLIAMSON. The Southern interest must be extremely endangered by the present arrangement. The Northern States are to have a majority in the first instance, and the means of perpetuating it.

General PINCKNEY urged the reduction; dwelt on the superior wealth of the Southern States, and insisted on its having its due weight in the Government.

Mr. GOUVERNEUR MORRIS regretted the turn of the debate. The States, he found, had many representatives on the floor. Few, he feared, were to be deemed the representatives of America. He thought the Southern States

have, by the Report, more than their share of Representation. Property ought to have its weight, but not all the weight. If the Southern States are to supply money, the Northern States are to spill their blood. Besides, the probable revenue to be expected from the Southern States has been greatly overrated.—*pp.* 1056-7-8-9.

WEDNESDAY, July 11, 1787.

Mr. WILLIAMSON moved that Mr. RANDOLPH's propositions be postponed, in order to consider the following, "that in order to ascertain the alterations that may happen in the population and wealth of the several States, a census shall be taken of the free white inhabitants, and three-fifths of those of other descriptions on the first year after this government shall have been adopted, and every —— year thereafter; and that the representation be regulated accordingly."

Mr. BUTLER and General PINCKNEY insisted that blacks be included in the rule of representation *equally* with the whites; and for that purpose moved that the words "three-fifths" be struck out.

Mr. GERRY thought that three-fifths of them was, to say the least, the full proportion that could be admitted.

Mr. GORHAM. This ratio was fixed by Congress as a rule of taxation. Then, it was urged, by the Delegates representing the States having slaves, that the blacks were still more inferior to freemen. At present, when the ratio of representation is to be established, we are assured that they are equal to freemen. The arguments on the former occasion had convinced him, that three-fifths was pretty near the just proportion, and he should vote according to the same opinion now.

Mr. BUTLER insisted that the labor of a slave in South Carolina was as productive and valuable, as that of a freeman in Massachusetts; that as wealth was the great means of defence and utility to the nation, they were equally valuable to it with freemen; and that consequently an equal representation ought to be allowed for them in a government which was instituted principally, for the protection of property, and was itself to be supported by property.

Mr. MASON could not agree to the motion, notwithstanding it was favorable to Virginia, because he thought it unjust. It was certain that the slaves were valuable, as they raised the value of land, increased the exports and imports, and of course the revenue, would supply the means of feeding and supporting an army, and might in cases of emergency become themselves soldiers. As in these important respects they were useful to the community at large, they ought not to be excluded from the estimate of representation. He could not, however, regard them as equal to freemen, and could not vote for them as such. He added, as worthy of remark, that the Southern States have this peculiar species of property, over and above the other species of property common to all the States.

Mr. WILLIAMSON reminded Mr. GORHAM that if the Southern States contended for the inferiority of blacks to whites when taxation was in view, the Eastern States, on the same occasion, contended for their equality. He did not, however, either then or now, concur in either extreme, but approved of the ratio of three-fifths.

On Mr. BUTLER'S motion, for considering blacks as equal to whites in the apportionment of representation,—Delaware, South Carolina, Georgia, aye—3; Massachusetts, Connecticut, New Jersey, Pennsylvania, Maryland, Virginia, North Carolina, no—7; New York, not on the floor.

Mr. GOUVERNEUR MORRIS said he had several objections to the proposition of Mr. WILLIAMSON. In the first place, it fettered the Legislature too much. In the second place, it would exclude some States altogether who would not have a sufficient number to entitle them to a single representation. In the third place, it will not consist with the resolution passed on Saturday last, authorizing the Legislature to adjust the representation from time to time on the principles of population and wealth; nor with the principles of equity. If slaves were to be considered as inhabitants, not as wealth, then the said Resolution would not be pursued; if as wealth, then why is no other wealth but slaves included? These objections may perhaps be removed by amendments.

Mr. KING thought there was great force in the objections of Mr. GOUVERNEUR MORRIS. He would, however, accede to the proposition for the sake of doing something.

Mr. GOUVERNEUR MORRIS. Another objection with him, against admitting the blacks into the census, was, that the people of Pennsylvania would revolt at the idea of being put on a footing with slaves. They would reject any plan that was to have such an effect.

Mr. MADISON. Future contributions, it seemed to be understood on all hands, would be principally levied on imports and exports.—pp. 1066-7-8-9; 1070-2-3.

On the question on the first clause of Mr. WILLIAMSON's motion, as to taking a census of the *free* inhabitants, it passed in the affirmative,—Massachusetts, Connecticut, New Jersey, Pennsylvania, Virginia, North Carolina, aye—6; Delaware, Maryland, South Carolina, Georgia, no—4.

The next clause as to three-fifths of the negroes being considered,

Mr. KING, being much opposed to fixing numbers as the rule of representation, was particularly so on account of the blacks. He thought the admission of them along with whites at all, would excite great discontents among the States having no slaves. He had never said, as to any particular point, that he would in no event acquiesce in and support it; but he would say that if in any case such a declaration was to be made by him, it would be in this.

He remarked that in the temporary allotment of representatives made by the Committee, the Southern States had received more than the number of their white and three-fifths of their black inhabitants entitled them to.

Mr. SHERMAN. South Carolina had not more beyond her proportion than New York and New Hampshire; nor either of them more than was necessary in order to avoid fractions, or reducing them below their proportion. Georgia had more; but the rapid growth of that State seemed to justify it. In general the allotment might not be just, but considering all circumstances he was satisfied with it.

Mr. GORHAM was aware that there might be some weight in what had fallen from his colleague, as to the umbrage which might be taken by the people of the Eastern States. But he recollected that when the proposition of Congress for changing the eighth Article of the Confederation was before the Legislature of Massachusetts, the only difficulty then was, to satisfy

them that the negroes ought not to have been counted equally with the whites, instead of being counted in the ratio of three-fifths only.[1]

[Footnote 1: They were then to have been a rule of taxation only.]

Mr. WILSON did not well see, on what principle the admission of blacks in the proportion of three-fifths could be explained. Are they admitted as citizens—then why are they not admitted on an equality with white citizens? Are they admitted as property—then why is not other property admitted into the computation? These were difficulties, however, which he thought must be overruled by the necessity of compromise. He had some apprehensions also, from the tendency of the blending of the blacks with the whites, to give disgust to the people of Pennsylvania, as had been intimated by his colleague (Mr. GOUVERNEUR MORRIS.)

Mr. GOUVERNEUR MORRIS was compelled to declare himself reduced to the dilemma of doing injustice to the Southern States, or to human nature; and he must therefore do it to the former. For he could never agree to give such encouragement to the slave trade, as would be given by allowing them a representation for their negroes; and he did not believe those States would ever confederate on terms that would deprive them of that trade.

On the question for agreeing to include three-fifths of the blacks,—Connecticut, Virginia, North Carolina, Georgia, aye—4; Massachusetts, New-Jersey, Pennsylvania, Delaware, Maryland,[2] South Carolina, no—6. —pp.1076-7-8.

[Footnote 2: Mr. Carroll said, in explanation of the vote of Maryland, that he wished the *phraseology* to be so altered as to obviate, if possible, the danger which had been expressed of giving umbrage to the Eastern and Middle States.]

THURSDAY, July 12, 1787.

In Convention,—Mr. GOUVERNEUR MORRIS moved a proviso, "that taxation shall be in proportion to representation."

Mr. BUTLER contended again, that representation should be according to the full number of inhabitants, including all the blacks; admitting the justice of Mr. GOUVERNEUR MORRIS'S motion.

General PINCKNEY was alarmed at what was said yesterday, [by GOUVERNEUR MORRIS] concerning the negroes. He was now again alarmed at what had been thrown out concerning the taxing of exports. South Carolina has in one year exported to the amount of 600,000£. sterling, all which was the fruit of the labor of her blacks. Will she be represented in proportion to this amount? She will not. Neither ought she then to be subject to a tax on it. He hoped a clause would be inserted in the system, restraining the Legislature from taxing exports.

Mr. WILSON approved the principle, but could not see how it could be carried into execution; unless restrained to direct taxation.

Mr. GOUVERNEUR MORRIS having so varied his motion by inserting the word "direct," it passed, *nem. con.*, as follows: "provided always that direct taxation ought to be proportioned to representation"

Mr. DAVIE said it was high time now to speak out. He saw that it was meant by some gentlemen to deprive the Southern States of any share of representation for their blacks. He was sure that North Carolina would never confederate on any terms that did not rate them at least as three-fifths. If the Eastern States meant, therefore, to exclude them altogether, the business was at an end.

Dr. JOHNSON thought that wealth and population were the true, equitable rules of representation; but he conceived that these two principles resolved themselves into one, population being the best measure of wealth. He concluded, therefore, that the number of people ought to be established as the rule, and that all descriptions, including blacks *equally* with the whites, ought to fall within the computation. As various opinions had been expressed on the subject, he would move that a committee might be appointed to take them into consideration, and report them.

Mr. GOUVENEUR MORRIS. It had been said that it is high time to speak out. As one member, he would candidly do so. He came here to form a compact for the good of America. He was ready to do so with all the States. He hoped, and believed, that all would enter into such compact. If they would not, he was ready to join with any states that would. But as the compact was to be voluntary, it is in vain for the Eastern States to insist on what the Southern States will never agree to. It is equally vain for the latter to require, what the other States can never admit; and he verily believed the people of Pennsylvania will never agree to a representation of negroes. What can be desired by these States more than has been already proposed—that the legislature shall from time to time regulate representation according to population and wealth?

General PINCKNEY desired that the rule of wealth should be ascertained, and not left to the pleasure of the legislature, and that property in slaves should not be exposed to danger, under a government instituted for the protection of property.

The first clause in the Report of the first Grand Committee was postponed.

Mr. ELLSWORTH, in order to carry into effect the principle established, moved to add to the last clause adopted by the house the words following, "and that the rule of contribution by direct taxation, for the support of the Government of the United States, shall be the number of white inhabitants, and three-fifths of every other description in the several States, until some other rule that shall more accurately ascertain the wealth of the several States, can be devised and adopted by the Legislature."

Mr. BUTLER seconded the motion, in order that it might be committed.

Mr. RANDOLPH was not satisfied with the motion. The danger will be revived, that the ingenuity of the Legislature may evade or pervert the rule, so as to perpetuate the power where it shall be lodged in the first instance. He proposed, in lieu of Mr. ELLSWORTH'S motion "that in order to ascertain the alterations in representation that may be required, from time to time, by changes in the relative circumstances of the States, a census shall be taken within two years from the first meeting of the General Legislature of the United States, and once within the term of every —— years afterwards, of all the inhabitants, in the manner and according to the ratio

recommended by Congress in their Resolution of the eighteenth day of April, 1783, (rating the blacks at three-fifths of their number); and that the Legislature of the United States shall arrange the representation accordingly." He urged strenuously that express security ought to be presided for including slaves in the ratio of representation. He lamented that such a species of property existed. But as it did exist, the holders of it would require this security. It was perceived that the design was entertained by some of excluding slaves altogether; the Legislature therefore ought not to be left at liberty.

Mr. ELLSWORTH withdraws his motion, and seconds that of Mr. RANDOLPH.

Mr. WILSON observed, that less umbrage would perhaps be taken against an admission of the slaves into the rule of representation, if it should be so expressed as to make them indirectly only an ingredient in the rule, by saying that they should enter into the rule of taxation; and as representation was to be according to taxation, the end would be equally attained.

Mr. PINCKNEY moved to amend Mr. RANDOLPH'S motion, so as to make "blacks equal to the whites in the ratio of representation." This, he urged was nothing more than justice. The blacks are the laborers, the peasants, of the Southern States. They are as productive of pecuniary resources as those of the Northern States. They add equally to the wealth, and, considering money as the sinew of war, to the strength, of the nation. It will also be politic with regard to the Northern States, as taxation is to keep pace with representation.

On Mr. PINCKNEY'S (of S. Carolina) motion, for rating blacks as equal to whites, instead of as three-fifths,—South Carolina, Georgia, aye—2; Massachusetts, Connecticut (Doctor JOHNSON, aye), New Jersey, Pennsylvania (three against two), Delaware, Maryland, Virginia, North Carolina, no—8.

Mr. RANDOLPH'S (of Virginia) proposition, as varied by Mr. WILSON (of Pennsylvania) being read for taking the question on the whole,—

Mr. GERRY (of Massachusetts) urged that the principle of it could not be carried into execution, as the States were not to be taxed as States. With

regard to taxes on imposts, he conceived they would be more productive where there were no slaves, than where there were; the consumption being greater.

Mr. ELLSWORTH (of Connecticut). In the case of a poll-tax there would be no difficulty. But there would probably be none. The sum allotted to a State may be levied without difficulty, according to the plan used by the State in raising its own supplies.

On the question on the whole proposition, as proportioning representation to direct taxation, and both to the white and three-fifths of the black inhabitants, and requiring a census within six years, and within every ten years afterwards,—Connecticut, Pennsylvania, Maryland, Virginia, North Carolina, Georgia, aye—6; New Jersey, Delaware, no—2; Massachusetts, South Carolina, divided.—pp. 1079 to 1087.

Friday, July 13, 1787. Mr. MADISON said, that having always conceived that the difference of interest in the United States lay not between the large and small, but the Northern and Southern States.—p. 1088.

On the motion of Mr. RANDOLPH (of Virginia) the vote of Monday last, authorizing the Legislature to adjust, from time to time, the representation upon the principles of *wealth* and numbers of inhabitants, was reconsidered by common consent, in order to strike out *wealth* and adjust the resolution to that requiring periodical revisions according to the number of whites and three-fifths of the blacks.

Mr. GOUVERNEUR MORRIS (of Pennsylvania) opposed the alteration, as leaving still an incoherence. If negroes were to be viewed as inhabitants, and the revision was to proceed on the principle of numbers of inhabitants, they ought to be added in their entire number, and not in the proportion of three-fifths. If as property, the word *wealth* was right; and striking it out would produce the very inconsistency which it was meant to get rid of. The train of business, and the late turn which it had taken, had led him, he said, into deep meditation on it, and he would candidly state the result. A distinction had been set up, and urged, between the Northern and Southern States. He had hitherto considered this doctrine as heretical. He still thought the distinction groundless. He sees, however, that it is persisted in; and the Southern gentlemen will not be satisfied unless they see the way open to

their gaining a majority in the public councils. The consequence of such a transfer of power from the maritime to the interior and landed interest, will, he foresees, be such an oppression to commerce, that he shall be obliged to vote for the vicious principle of equality in the second branch, in order to provide some defence for the Northern States against it. But to come more to the point, either this distinction is fictitious or real; if fictitious, let it be dismissed, and let us proceed with due confidence. If it be real, instead of attempting to blend incompatible things, let us at once take a friendly leave of each other. There can be no end of demands for security, if every particular interest is to be entitled to it. The Eastern States may claim it for their fishery, and for other objects, as the Southern States claim it for their peculiar objects. In this struggle between the two ends of the Union, what part ought the Middle States, in point of policy, to take? To join their Eastern brethren, according to his ideas. If the Southern States get the power into their hands, and be joined, as they will be, with the interior country, they will inevitably bring on a war with Spain for the Mississippi. This language is already held. The interior country, having no property nor interest exposed on the sea, will be little affected by such a war. He wished to know what security the Northern and Middle States will have against this danger. It has been said that North Carolina, South Carolina, and Georgia only, will in a little time have a majority of the people of America. They must in that case include the great interior country, and every thing was to be apprehended from their getting the power into their hands.

Mr. BUTLER (of South Carolina). The security the Southern States want is, that their negroes may not be taken from them, which some gentlemen within or without doors have a very good mind to do. It was not supposed that North Carolina, South Carolina and Georgia, would have more people than all the other States, but many more relatively to the other States, than they now have. The people and strength of America are evidently bearing southwardly, and southwestwardly.

On the question to strike out *wealth*, and to make the change as moved by Mr. RANDOLPH (of Virginia) it passed in the affirmative,—Massachusetts, Connecticut, New Jersey, Pennsylvania, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—9; Delaware, divided.—pp. 1090-1-2-3-4.

SATURDAY, July 14, 1787.

Mr. MADISON. It seemed now to be pretty well understood, that the real difference of interests lay, not between the large and small, but between the Northern and Southern, States. THE INSTITUTION OF SLAVERY, AND ITS CONSEQUENCES, FORMED THE LINE OF DISCRIMINATION.—*p.* 1104.

TUESDAY, July 17, 1787.

Mr. WILLIAMSON. The largest State will be sure to succeed. This will not be Virginia, however. Her slaves will have no suffrage.—*p.* 1123.

THURSDAY, July 19, 1787.

Mr. MADISON. The right of suffrage was much more diffusive in the Northern than the Southern States; and the latter could have no influence in the election, on the score of the negroes.—*p.* 1148.

MONDAY, July 23, 1787.

General PINCKNEY reminded the Convention, that if the Committee should fail to insert some security to the Southern States against an emancipation of slaves, and taxes on exports, he should be bound by duty to his State to vote against their report.—*p.* 1187.

TUESDAY, July 24, 1787.

Mr. WILLIAMSON. As the Executive is to have a kind of veto on the laws, and there is an essential difference of interests between the Northern and Southern States, particularly in the carrying trade, the power will be dangerous, if the Executive is to be taken from part of the Union, to the part from which he is not taken.—*p.* 1189.

Mr. GOUVERNEUR MORRIS hoped the Committee would strike out the whole of the clause proportioning direct taxation to representation. He had only meant it as a bridge^[3] to assist us over a certain gulf; having passed the gulf, the bridge may be removed. He thought the principle laid down with so much strictness liable to strong objections.—*p.* 1197.

[Footnote [3](#): The object was to lessen the eagerness, on one side, for, and the opposition, on the other, to the share of representation claimed by the Southern States on account of the negroes.]

WEDNESDAY, July 25, 1787.

Mr. MADISON. Refer the appointment of the National Executive to the State Legislatures, and * * *

The remaining mode was an election by the people, or rather by the qualified part of them at large. * * *

The second difficulty arose from the disproportion of qualified voters in the Northern and Southern States, and the disadvantages which this mode would throw on the latter. The answer to this objection was—in the first place, that this disproportion would be continually decreasing under the influence of the republican laws introduced in the Southern States, and the more rapid increase of their population; in the second place, that local considerations must give way to the general interest. As an individual from the Southern States, he was willing to make the sacrifice.—pp. 1200-1.

THURSDAY, July 26, 1787.

Mr. Gouverneur Morris. Revenue will be drawn, it is foreseen, as much as possible from trade.—p. 1217.

MONDAY, August 6, 1787.

Mr. Rutledge delivered in the Report of the Committee of Detail.

ARTICLE VII.

SECT. 3. The proportions of direct taxation shall be regulated by the whole number of white and other free citizens and inhabitants of every age, sex and condition, including those bound to servitude for a term of years, and three-fifths of all other persons not comprehended in the foregoing description, (except Indians not paying taxes); which number shall, within six years after the first meeting of the Legislature, and within the term of every ten years afterwards, be taken in such a manner as the said Legislature shall direct.

SECT. 4. No tax or duty shall be laid by the Legislature on articles exported from any State; nor on the migration or importation of such persons as the several States shall think proper to admit; nor shall such migration or importation be prohibited.

SECT. 5. No capitation tax shall be laid, unless in proportion to the census herein before directed to be taken.

SECT. 6. No navigation act shall be passed without the assent of two-thirds of the members present in each house.—pp. 1226-33-34.

WEDNESDAY, August 8, 1787.

Mr. King wished to know what influence the vote just passed was meant to have on the succeeding part of the Report, concerning the admission of slaves into the rule of representation. He could not reconcile his mind to the Article, if it was to prevent objections to the latter part. The admission of slaves was a most grating circumstance to his mind, and he believed would be so to a great part of the people of America. He had not made a strenuous opposition to it heretofore, because he had hoped that this concession would have produced a readiness, which had not been manifested, to strengthen the General Government, and to mark a full confidence in it. The Report under consideration had, by the tenor of it, put an end to all those hopes. In two great points the hands of the Legislature were absolutely tied. The importation of slaves could not be prohibited. Exports could not be taxed. Is this reasonable? What are the great objects of the general system? First, defence against foreign invasion; secondly, against internal sedition. Shall all the States, then, be bound to defend each, and shall each be at liberty to introduce a weakness which will render defence more difficult? Shall one part of the United States be bound to defend another part, and that other part be at liberty, not only to increase its own danger, but to withhold the compensation for the burden? If slaves are to be imported, shall not the exports produced by their labor supply a revenue the better to enable the General Government to defend their masters? There was so much inequality and unreasonableness in all this, that the people of the Northern States could never be reconciled to it. No candid man could undertake to justify it to them. He had hoped that some accommodation would have taken place on this subject; that at least a time would have been limited for the

importation of slaves. He never could agree to let them be imported without limitation, and then be represented in the National Legislature. Indeed, he could so little persuade himself of the rectitude of such a practice, that he was not sure he could assent to it under any circumstances. At all events, either slaves should not be represented, or exports should be taxable.

Mr. SHERMAN regarded the slave trade as iniquitous; but the point of representation having been settled after much difficulty and deliberation, he did not think himself bound to make opposition; especially as the present Article, as amended, did not preclude any arrangement whatever on that point, in another place of the report.

Mr. GOUVERNEUR MORRIS moved to insert "free" before the word "inhabitants." Much, he said, would depend on this point. He never would concur in upholding domestic slavery. It was a nefarious institution. It was the curse of Heaven on the States where it prevailed. Compare the free regions of the Middle States, where a rich and noble cultivation marks the prosperity and happiness of the people, with the misery and poverty which overspread the barren wastes of Virginia, Maryland, and the other States having slaves. Travel through the whole continent, and you behold the prospect continually varying with the appearance and disappearance of slavery. The moment you leave the Eastern States, and enter New York, the effects of the institution become visible. Passing through the Jerseys and entering Pennsylvania, every criterion of superior improvement witnesses the change. Proceed southwardly, and every step you take, through the great regions of slaves, presents a desert increasing with the increasing proportion of these wretched beings. Upon what principle is it that the slaves shall be computed in the representation? Are they men? Then make them citizens, and let them vote. Are they property? Why, then, is no other property included? The houses in this city (Philadelphia) are worth more than all the wretched slaves who cover the rice swamps of South Carolina. The admission of slaves into the representation, when fairly explained, comes to this, that the inhabitant of Georgia and South Carolina who goes to the coast of Africa, and, in defiance of the most sacred laws of humanity, tears away his fellow creatures from their dearest connections, and damns them to the most cruel bondage, shall have more votes in a government instituted for protection of the rights of mankind, than the citizen of Pennsylvania or New Jersey, who views with a laudable horror so nefarious a practice. He would

add, that domestic slavery is the most prominent feature in the aristocratic countenance of the proposed Constitution. The vassalage of the poor has ever been the favorite offspring of aristocracy. And what is the proposed compensation to the Northern States, for a sacrifice of every principle of right, of every impulse of humanity? They are to bind themselves to march their militia for the defence of the Southern States, for their defence against those very slaves of whom they complain. They must supply vessels and seamen, in case of foreign attack. The Legislature will have indefinite power to tax them by excises, and duties on imports; both of which will fall heavier on them than on the Southern inhabitants; for the bohea tea used by a Northern freeman will pay more tax than the whole consumption of the miserable slave, which consists of nothing more than his physical subsistence and the rag that covers his nakedness. On the other side, the Southern States are not to be restrained from importing fresh supplies of wretched Africans, at once to increase the danger of attack, and the difficulty of defence; nay, they are to be encouraged to it, by an assurance of having their votes in the National Government increased in proportion; and are, at the same time, to have their exports and their slaves exempt from all contributions for the public service. Let it not be said, that direct taxation is to be proportioned to representation. It is idle to suppose that the General Government can stretch its hand directly into the pockets of the people, scattered over so vast a country. They can only do it through the medium of exports, imports and excises. For what, then, are all the sacrifices to be made? He would sooner submit himself to a tax for paying for all the negroes in the United States, than saddle posterity with such a Constitution.

Mr. DAYTON seconded the motion. He did it, he said, that his sentiments on the subject might appear, whatever might be the fate of the amendment.

Mr. SHERMAN did not regard the admission of the negroes into the ratio of representation, as liable to such insuperable objections. It was the freemen of the Southern States who were, in fact, to be represented according to the taxes paid by them, and the negroes are only included in the estimate of the taxes. This was his idea of the matter.

Mr. PINCKNEY considered the fisheries, and the western frontier, as more burdensome to the United States than the slaves. He thought this could be demonstrated, if the occasion were a proper one.

Mr. WILSON thought the motion premature. An agreement to the clause would be no bar to the object of it.

On the question, on the motion to insert "free" before "inhabitants," New-Jersey, aye—1; New-Hampshire, Massachusetts, Connecticut, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, Georgia, no—10.—pp. 1261-2-3-4-5-6.

THURSDAY, August 16, 1787.

Mr. MASON urged the necessity of connecting with the powers of levying taxes, duties, &c., the prohibition in Article 6, Sect. 4, "that no tax should be laid on exports."

He hoped the Northern States did not mean to deny the Southern this security.

MR. GOUVERNEUR MORRIS considered such a proviso as inadmissible anywhere.

MR. MADISON. Fourthly, the Southern States, being most in danger and most needing naval protection, could the less complain, if the burthen should be somewhat heaviest on them. And finally, we are not providing for the present moment only; and time will equalize the situation of the States in this matter. He was, for these reasons, against the motion.

MR. MERCER. It had been said the Southern States had most need of naval protection. The reverse was the case. Were it not for promoting the carrying trade of the Northern States, the Southern States could let the trade go into foreign bottoms, where it would not need our protection.—pp. 1339-40-41-42.

TUESDAY, August 21, 1787.

Articles 7, Section 3, was then resumed.

MR. DICKINSON moved to postpone this, in order to reconsider Article 4, Section 4, and to *limit* the number of Representatives to be allowed to the large States. Unless this were done, the small States would be reduced to entire insignificance, and encouragement given to the importation of slaves.

MR. SHERMAN would agree to such a reconsideration; but did not see the necessity of postponing the section before the House. MR. DICKINSON withdrew his motion.

Article 7, Section 3, was then agreed to,—ten ayes; Delaware alone, no.—p. 1379.

Article 7, Section 4, was then taken up.

MR. LANGDON. By this section the States are left at liberty to tax exports. This could not be admitted. It seems to be feared that the Northern States will oppress the trade of the Southern. This may be guarded against, by requiring the concurrence of two-thirds, or three-fourths of the Legislature, in such cases.—p. 1382-3.

MR. MADISON. As to the fear of disproportionate burthens on the more exporting States, it might be remarked that it was agreed, on all hands, that the revenue would principally be drawn from trade.—p. 1385.

COL. MASON—A majority, when interested, will oppress the minority.

If we compare the States in this point of view, the eight Northern States have an interest different from the five Southern States; and have, in one branch of the Legislature, thirty-six votes, against twenty-nine, and in the other in the proportion of eight against five. The Southern States had therefore ground for their suspicions. The case of exports was not the same with that of imports.—pp. 1386-7.

MR. L. MARTIN proposed to vary Article 7, Section 4, so as to allow a prohibition or tax on the importation of slaves. In the first place, as five slaves are to be counted as three freemen, in the apportionment of Representatives, such a clause would leave an encouragement to this traffic. In the second place, slaves weakened one part of the Union, which the other parts were bound to protect; the privilege of importing them was therefore unreasonable. And in the third place, it was inconsistent with the principles of the Revolution, and dishonorable to the American character, to have such a feature in the Constitution.

Mr. RUTLEDGE did not see how the importation of slaves could be encouraged by this section. He was not apprehensive of insurrections, and

would readily exempt the other States from the obligation to protect the Southern against them. Religion and humanity had nothing to do with this question. Interest alone is the governing principle with nations. The true question at present is, whether the Southern States shall or shall not be parties to the Union. If the Northern States consult their interest, they will not oppose the increase of slaves, which will increase the commodities of which they will become the carriers.

Mr. ELLSWORTH was for leaving the clause as it stands. Let every State import what it pleases. The morality or wisdom of slavery are considerations belonging to the States themselves. What enriches a part enriches the whole, and the States are the best judges of their particular interest. The Old Confederation had not meddled with this point; and he did not see any greater necessity for bringing it within the policy of the new one.

Mr. PINCKNEY. South Carolina can never receive the plan if it prohibits the slave trade. In every proposed extension of the powers of Congress, that State has expressly and watchfully excepted that of meddling with the importation of negroes. If the States be all left at liberty on this subject, South Carolina may perhaps, by degrees, do of herself what is wished, as Virginia and Maryland already have done. Adjourned.—*pp.* 1388-9.

WEDNESDAY, August 22, 1787.

In Convention,—Article 7, Section 4, was resumed.

Mr. SHERMAN was for leaving the clause as it stands. He disapproved of the slave trade; yet as the States were now possessed of the right to import slaves, as the public good did not require it to be taken from them, and as it was expedient to have as few objections as possible to the proposed scheme of government, he thought it best to leave the matter as we find it. He observed that the abolition of slavery seemed to be going on in the United States, and that the good sense of the several States would probably by degrees complete it. He urged on the Convention the necessity of despatching its business.

Col. MASON. This infernal traffic originated in the avarice of British merchants. The British Government constantly checked the attempts of

Virginia to put a stop to it. The present question concerns not the importing States alone, but the whole Union. The evil of having slaves was experienced during the late war. Had slaves been treated as they might have been by the enemy, they would have proved dangerous instruments in their hands. But their folly dealt by the slaves as it did by the Tories. He mentioned the dangerous insurrections of the slaves in Greece and Sicily; and the instructions given by Cromwell to the commissioners sent to Virginia, to arm the servants and slaves, in case other means of obtaining its submission should fail. Maryland and Virginia he said had already prohibited the importation of slaves expressly. North Carolina had done the same in substance. All this would be in vain, if South Carolina and Georgia be at liberty to import. The Western people are already calling out for slaves for their new lands; and will fill that country with slaves, if they can be got through South Carolina and Georgia. Slavery discourages arts and manufactures. The poor despise labor when performed by slaves. They prevent the emigration of whites, who really enrich and strengthen a country. They produce the most pernicious effect on manners. Every master of slaves is born a petty tyrant. They bring the judgment of Heaven on a country. As nations cannot be rewarded or punished in the next world, they must be in this. By an inevitable chain of causes and effects, Providence punishes national sins by national calamities. He lamented that some of our Eastern brethren had, from a lust of gain, embarked in this nefarious traffic. As to the States being in possession of the right to import, this was the case with many other rights, now to be properly given up. He held it essential in every point of view, that the General Government should have power to prevent the increase of slavery.

Mr. ELLSWORTH, as he had never owned a slave, could not judge of the effects of slavery on character. He said, however, that if it was to be considered in a moral light, we ought to go further and free those already in the country. As slaves also multiply so fast in Virginia and Maryland that it is cheaper to raise than import them, whilst in the sickly rice swamps foreign supplies are necessary, if we go no further than is urged, we shall be unjust towards South Carolina and Georgia. Let us not intermeddle. As population increases, poor laborers will be so plenty as to render slaves useless. Slavery, in time, will not be a speck in our country. Provision is already made in Connecticut for abolishing it. And the abolition has already

taken place in Massachusetts. As to the danger of insurrections from foreign influence, that will become a motive to kind treatment of the slaves.

Mr. PINCKNEY. If slavery be wrong, it is justified by the example of all the world. He cited the case of Greece, Rome and other ancient States; the sanction given by France, England, Holland and other modern States. In all ages one half of mankind have been slaves. If the Southern States were let alone, they will probably of themselves stop importations. He would himself, as a citizen of South Carolina, vote for it. An attempt to take away the right, as proposed, will produce serious objections to the Constitution, which he wished to see adopted.

Gen. PINCKNEY declared it to be his firm opinion that if himself and all his colleagues were to sign the Constitution and use their personal influence, it would be of no avail towards obtaining the assent of their constituents. South Carolina and Georgia cannot do without slaves. As to Virginia, she will gain by stopping the importations. Her slaves will rise in value, and she has more than she wants. It would be unequal, to require South Carolina and Georgia, to confederate on such unequal terms. He said the Royal assent, before the Revolution, had never been refused to South Carolina, as to Virginia. He contended that the importation of slaves would be for the interest of the whole Union. The more slaves, the more produce to employ the carrying trade; the more consumption also; and the more of this, the more revenue for the common treasury. He admitted it to be reasonable that slaves should be dutied like other imports; but should consider a rejection of the clause as an exclusion of South Carolina from the Union.

Mr. BALDWIN had conceived national objects alone to be before the Convention; not such as, like the present, were of a local nature. Georgia was decided on this point. That State has always hitherto supposed a General Government to be the pursuit of the central States, who wished to have a vortex for everything; that her distance would preclude her, from equal advantage; and that she could not prudently purchase it by yielding national powers. From this it might be understood, in what light she would view an attempt to abridge one of her favorite prerogatives. If left to herself, she may probably put a stop to the evil. As one ground for this conjecture, he took notice of the sect of ——; which he said was a respectable class of

people, who carried their ethics beyond the mere *equality of men*, extending their humanity to the claims of the whole animal creation.

Mr. WILSON observed that if South Carolina and Georgia were themselves disposed to get rid of the importation of slaves in a short time, as had been suggested, they would never refuse to unite because the importation might be prohibited. As the section now stands, all articles imported are to be taxed. Slaves alone are exempt. This is in fact a bounty on that article.

Mr. GERRY thought we had nothing to do with the conduct of the States as to slaves, but ought to be careful not to give any sanction to it.

Mr. DICKINSON considered it as inadmissible, on every principle of honor and safety, that the importation of slaves should be authorized to the States by the Constitution. The true question was, whether the national happiness would be promoted or impeded by the importation; and this question ought to be left to the National Government, not to the States particularly interested. If England and France permit slavery, slaves are, at the same time, excluded from both those kingdoms. Greece and Rome were made unhappy by their slaves. He could not believe that the Southern States would refuse to confederate on the account apprehended; especially as the power was not likely to be immediately exercised by the General Government.

Mr. WILLIAMSON stated the law of North Carolina on the subject, to wit, that it did not directly prohibit the importation of slaves. It imposed a duty of £5 on each slave imported from Africa; £10 on each from elsewhere; and £50 on each from a State licensing manumission. He thought the Southern States could not be members of the Union, if the clause should be rejected; and that it was wrong to force any thing down not absolutely necessary, and which any State must disagree to.

Mr. KING thought the subject should be considered in a political light only. If two States will not agree to the Constitution, as stated on one side, he could affirm with equal belief, on the other, that great and equal opposition would be experienced from the other States. He remarked on the exemption of slaves from duty, whilst every other import was subjected to it, as an inequality that could not fail to strike the commercial sagacity of the Northern and Middle States.

Mr. LANGDON was strenuous for giving the power to the General Government. He could not, with a good conscience, leave it with the States, who could then go on with the traffic, without being restrained by the opinions here given, that they will themselves cease to import slaves.

Gen. PINCKNEY thought himself bound to declare candidly, that he did not think South Carolina would stop her importations of slaves, in any short time; but only stop them occasionally as she now does. He moved to commit the clause, that slaves might be made liable to an equal tax with other imports; which he thought right, and which would remove one difficulty that had been started.

Mr. RUTLEDGE. If the Convention thinks that North Carolina, South Carolina, and Georgia, will ever agree to the plan, unless their right to import slaves be untouched, the expectation is vain. The people of those States will never be such fools, as to give up so important an interest. He was strenuous against striking out the section, and seconded the motion of Gen. PINCKNEY for a commitment.

Mr. GOUVERNEUR MORRIS wished the whole subject to be committed, including the clauses relating to taxes on exports and to a navigation act. These things may form a bargain among the Northern and Southern States.

MR. BUTLER declared that he never would agree to the power of taxing exports.

Mr. SHERMAN said it was better to let the Southern States import slaves, than to part with them, if they made that a *sine qua non*. He was opposed to a tax on slaves imported, as making the matter worse, because it implied they were *property*. He acknowledged that if the power of prohibiting the importation should be given to the General Government, that it would be exercised. He thought it would be its duty to exercise the power.

Mr. READ was for the commitment, provided the clause concerning taxes on exports should also be committed.

Mr. SHERMAN observed that that clause had been agreed to, and therefore could not be committed.

Mr. Randolph was for committing, in order that some middle ground might, if possible, be found. He could never agree to the clause as it stands. He would sooner risk the Constitution. He dwelt on the dilemma to which the Convention was exposed. By agreeing to the clause, it would revolt the Quakers, the Methodists, and many others in the States having no slaves. On the other hand, two States might be lost to the Union. Let us then, he said, try the chance of a commitment.

On the question for committing the remaining part of Sections 4 and 5, of Article 7,—Connecticut, New Jersey, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—7; New Hampshire, Pennsylvania, Delaware, no—3; Massachusetts absent.

Mr. Pinckney and Mr. Langdon moved to commit Section 6, as to a navigation act by two-thirds of each House.

Mr. Gorham did not see the propriety of it. Is it meant to require a greater proportion of votes? He desired it to be remembered, that the Eastern States had no motive to union but a commercial one. They were able to protect themselves. They were not afraid of external danger, and did not need the aid of the Southern States.

Mr. Wilson wished for a commitment, in order to reduce the proportion of votes required.

Mr. Ellsworth was for taking the plan as it is. This widening of opinions had a threatening aspect. If we do not agree on this middle and moderate ground, he was afraid we should lose two States, with such others as may be disposed to stand aloof; should fly into a variety of shapes and directions, and most probably into several confederations,—and not without bloodshed.

On the question for committing Section 6, as to a navigation act, to a member from each State,—New Hampshire, Massachusetts, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, Georgia, aye—9; Connecticut, New Jersey, no—2.

The Committee appointed were Messrs. Langdon, King, Johnson, Livingston, Clymer, Dickinson, L. Martin, Madison, Williamson, C.C. Pinckney, and Baldwin.

To this Committee were referred also the two clauses above mentioned of the fourth and fifth Sections of Article 7.—pp. 1390 to 1397.

Friday, August 24, 1787

In Convention,—Governor Livingston, from the committee of eleven, to whom were referred the two remaining clauses of the fourth section, and the fifth and sixth sections, of the seventh Article, delivered in the following Report:

"Strike out so much of the fourth section as was referred to the Committee, and insert, 'The migration or importation of such persons as the several States, now existing, shall think proper to admit, shall not be prohibited by the Legislature prior to the year 1800; but a tax or duty may be imposed on such migration or importation, at a rate not exceeding the average of the duties laid on imports.

"The fifth Section to remain as in the Report. The sixth Section to be stricken out."—p. 1415.

SATURDAY, August 25, 1787.

The Report of the Committee of eleven (see Friday, the twenty-fourth), being taken up,—

Gen. PINCKNEY moved to strike out the words, "the year eighteen hundred," as the year limiting the importation of slaves; and to insert the words, "the year eighteen hundred and eight."

Mr. GORHAM seconded the motion.

Mr. MADISON. Twenty years will produce all the mischief that can be apprehended from the liberty to import slaves. So long a term will be more dishonorable to the American character, than to say nothing about it in the Constitution.

On the motion, which passed in the affirmative,—New-Hampshire, Massachusetts, Connecticut, Maryland, North Carolina, South Carolina, Georgia, aye—7; New-Jersey, Pennsylvania, Delaware, Virginia, no—4.

Mr. GOUVERNEUR MORRIS was for making the clause read at once, "the importation of slaves in North Carolina, South Carolina, and Georgia, shall not be prohibited, &c." This he said, would be most fair, and would avoid the ambiguity by which, under the power with regard to naturalization, the liberty reserved to the States might be defeated. He wished it to be known, also, that this part of the Constitution was a compliance with those States. If the change of language, however, should be objected to, by the members from those States, he should not urge it.

Col. MASON was not against using the term "slaves," but against naming North Carolina, South Carolina, and Georgia, lest it should give offence to the people of those States.

Mr. SHERMAN liked a description better than the terms proposed, which had been declined by the old Congress, and were not pleasing to some people.

Mr. CLYMER concurred with Mr. SHERMAN.

Mr. WILLIAMSON said, that both in opinion and practice he was against slavery; but thought it more in favor of humanity, from a view of all circumstances, to let in South Carolina and Georgia on those terms, than to exclude them from the Union.

Mr. GOUVERNEUR MORRIS withdrew his motion.

Mr. DICKINSON wished the clause to be confined to the States which had not themselves prohibited the importation of slaves; and for that purpose moved to amend the clause, so as to read: "The importation of slaves into such of the States as shall permit the same, shall not be prohibited by the Legislature of the United States, until the year 1808;" which was disagreed to, *nem. con.*[\[4\]](#)

[Footnote [4](#): In the printed Journals, Connecticut, Virginia, and Georgia, voted in the affirmative.]

The first part of the Report was then agreed to, amended as follows: "The migration or importation of such persons as the several States now existing

shall think proper to admit, shall not be prohibited by the Legislature prior to the year 1808,"—

New Hampshire, Massachusetts, Connecticut, Maryland, North Carolina, South Carolina, Georgia, aye—7; New Jersey, Pennsylvania, Delaware, Virginia, no—4.

Mr. BALDWIN, in order to restrain and more explicitly define, "the average duty," moved to strike out of the second part the words, "average of the duties laid on imports," and insert "common impost on articles not enumerated;" which was agreed to, *nem. con.*

Mr. SHERMAN was against this second part, as acknowledging men to be property, by taxing them as such under the character of slaves.

Mr. KING and Mr. LANGDON considered this as the price of the first part. Gen. PINCKNEY admitted that it was so. Col. MASON. Not to tax, will be equivalent to a bounty on, the importation of slaves.

Mr. GORHAM thought that Mr. SHERMAN should consider the duty, not as implying that slaves are property, but as a discouragement to the importation of them.

Mr. GOUVERNEUR MORRIS remarked, that, as the clause now stands, it implies that the Legislature may tax freemen imported.

Mr. SHERMAN, in answer to Mr. GORHAM, observed, that the smallness of the duty showed revenue to be the object, not the discouragement of the importation.

Mr. MADISON thought it wrong to admit in the Constitution the idea that there could be property in men. The reason of duties did not hold, as slaves are not, like merchandize consumed, &c.

Col. MASON, in answer to Mr. GOUVERNEUR MORRIS. The provision, as it stands, was necessary for the case of convicts, in order to prevent the introduction of them.

It was finally agreed, *nem. con.*, to make the clause read: "but a tax or duty may be imposed on such importation, not exceeding ten dollars for each

person;" and then the second part, as amended, was agreed to.—*pp.* 1427 to 30.

TUESDAY, August 28, 1787.

Article 14, was then taken up.[\[5\]](#)

[Footnote [5](#): Article 14 was,—The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States.—EDITOR.]

General PINCKNEY was not satisfied with it. He seemed to wish some provision should be included in favor of property in slaves.

On the question on Article 14,—New Hampshire, Massachusetts, Connecticut, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, aye—9; South Carolina, no—1; Georgia, divided.

Article 15,[\[6\]](#) being then taken up, the words, "high misdemeanor," were struck out, and the words, "other crime," inserted, in order to comprehend all proper cases; it being doubtful whether "high misdemeanor" had not a technical meaning too limited.

[Footnote [6](#): Article 15 was,—Any person charged with treason, felony or high misdemeanor in any State, who shall flee from justice, and shall be found in any other State, shall, on demand of the Executive power of the State from which he fled, be delivered up and removed to the State having jurisdiction of the offence.—EDITOR.]

Mr. BUTLER and Mr. PINCKNEY moved to require "fugitive slaves and servants to be delivered up like criminals."

Mr. WILSON. This would oblige the Executive of the State to do it, at the public expense.

Mr. SHERMAN saw no more propriety in the public seizing and surrendering a slave or servant, than a horse.

Mr. BUTLER withdrew his proposition, in order that some particular provision might be made, apart from this article.

Article 15, as amended, was then agreed to, *nem. con.*—*pp.* 1447-8.

WEDNESDAY, AUGUST 29, 1787.

Article 7, Section 6, by the Committee of Eleven reported to be struck out (see the twenty-fourth inst.) being now taken up,—

Mr. PINCKNEY moved to postpone the Report, in favor of the following proposition: "That no act of the Legislature for the purpose of regulating the Commerce of the United States with foreign powers, among the several States, shall be passed without the assent of two-thirds of the members of each House." He remarked that there were five distinct commercial interests.

The power of regulating commerce was a pure concession on the part of the Southern States. They did not need the protection of the Northern States at present.—*p.* 1450.

General PINCKNEY said it was the true interest of the Southern States to have no regulation of commerce; but considering the loss brought on the commerce of the Eastern States by the Revolution, their liberal conduct towards the views[Z] of South Carolina, and the interest the weak Southern States had in being united with the strong Eastern States, he thought it proper that no fetters should be imposed on the power of making commercial regulations, and that his constituents, though prejudiced against the Eastern States, would be reconciled to this liberality. He had, himself, he said, prejudices against the Eastern States before he came here, but would acknowledge that he had found them as liberal and candid as any men whatever.—*p.* 1451.

[Footnote Z: He meant the permission to import slaves. An understanding on the two subjects of *navigation* and *slavery*, had taken place between those parts of the Union, which explains the vote of the motion depending, as well as the language of General Pinckney and others.]

Mr. PINCKNEY replied, that his enumeration meant the five minute interests. It still left the two great divisions of Northern and Southern interests.

Mr. GOUVERNEUR MORRIS opposed the object of the motion as highly injurious.—A navy was essential to security, particularly of the Southern States;—

Mr. WILLIAMSON. As to the weakness of the Southern States, he was not alarmed on that account. The sickliness of their climate for invaders would prevent their being made an object. He acknowledged that he did not think the motion requiring two-thirds necessary in itself; because if a majority of the Northern States should push their regulations too far, the Southern States would build ships for themselves; but he knew the Southern people were apprehensive on this subject, and would be pleased with the precaution.

Mr. SPAIGHT was against the motion. The Southern States could at any time save themselves from oppression, by building ships for their own use.—*p.* 1452.

Mr. BUTLER differed from those who considered the rejection of the motion as no concession on the part of the Southern States. He considered the interests of these and of the Eastern States to be as different as the interests of Russia and Turkey. Being, notwithstanding, desirous of conciliating the affections of the Eastern States, he should vote against requiring two-thirds instead of a majority.—*p.* 1453.

Mr. MADISON. He added, that the Southern States would derive an essential advantage, in the general security afforded by the increase of our maritime strength. He stated the vulnerable situation of them all, and of Virginia in particular.

Mr. RUTLEDGE was against the motion of his colleague. At the worst, a navigation act could bear hard a little while only on the Southern States. As we are laying the foundation for a great empire, we ought to take a permanent view of the subject, and not look at the present moment only.

Mr. GORMAN. The Eastern States were not led to strengthen the Union by fear for their own safety.

He deprecated the consequences of disunion; but if it should take place, it was the Southern part of the Continent that had most reason to dread them.

On the question to postpone, in order to take up Mr. PINCKNEY's motion,

Maryland, Virginia, North Carolina, Georgia, aye—4; New Hampshire, Massachusetts, Connecticut, New Jersey, Pennsylvania, Delaware, South Carolina, no—7. The Report of the Committee for striking out Section 6, requiring two-thirds of each House to pass a navigation act, was then agreed to, *nem. con.*

Mr. BUTLER moved to insert after Article 15, "If any person bound to service or labor in any of the United States, shall escape into another State, he or she shall not be discharged from such service or labor, in consequence of any regulations subsisting in the State to which they escape, but shall be delivered up to the person justly claiming their service or labor,"—which was agreed to, *nem. con.*—*p.* 1454-5-6.

THURSDAY, August 30, 1787.

Article 18, being taken up,

On a question for striking out "domestic violence," and inserting "insurrections," it passed in the negative,—New Jersey, Virginia, North Carolina, South Carolina, Georgia, aye—5; New Hampshire, Massachusetts, Connecticut, Pennsylvania, Delaware, Maryland, no—6.—*pp.* 1466-7.

MONDAY, September 10, 1787.

Mr. RUTLEDGE said he never could agree to give a power by which the articles relating to slaves might be altered by the States not interested in that property, and prejudiced against it. In order to obviate this objection, these words were added to the proposition: "provided that no amendments, which may be made prior to the year 1808 shall in any manner affect the fourth and fifth sections of the seventh Article:"—*p.* 1536.

TUESDAY, September 13, 1787.

Article 1, Section 2. On motion of Mr. RANDOLPH, the word "servitude" was struck out, and "service" unanimously^[8] inserted, the former being thought to express the condition of slaves, and the latter the obligations of free persons.

[Footnote ⁸: See page 372 of the printed journal.]

Mr. DICKENSON and Mr. WILSON moved to strike out, "and direct taxes," from Article 1, Section 2, as improperly placed in a clause relating merely to the Constitution of the House of Representatives.

Mr. GOUVERNEUR MORRIS. The insertion here was in consequence of what had passed on this point; in order to exclude the appearance of counting the negroes in the *representation*. The including of them may now be referred to the object of direct taxes, and incidentally only to that of representation.

On the motion to strike out, "and direct taxes," from this place,—

New Jersey, Delaware, Maryland, aye—3; New Hampshire, Massachusetts, Connecticut, Pennsylvania, Virginia, North Carolina, South Carolina, Georgia, no—8.—*pp.* 1569-70.

SATURDAY, September 15, 1787.

Article 4, Section 2, (the third paragraph,) the term "legally" was struck out; and the words, "under the laws thereof," inserted after the word "State," in compliance with the wish of some who thought the term *legal* equivocal, and favoring the idea that slavery was legal in a moral view.—p.1589.

Mr. GERRY stated the objections which determined him to withhold his name from the Constitution: 1-2-3-4-5-6, that three-fifths of the blacks are to be represented, as if they were freemen.—p. 1595.

LIST OF MEMBERS OF THE FEDERAL CONVENTION WHO FORMED THE

CONSTITUTION OF

THE UNITED STATES.

<i>From</i>		<i>Attended.</i>
New Hampshire, 23, 1787.	1 John Langdon,	July
	<i>John Pickering,</i>	
23.	2 Nicholas Gilman,	"
	<i>Benjamin West,</i>	
Massachusetts,	<i>Francis Dana,</i>	
29.	Elbridge Gerry,	May
28.	3 Nath'l Gorham,	"
25.	4 Rufus King,	"
28.	Caleb Strong,	May
Rhode Island,	(No appointment.)	
Connecticut,	5 W.S. Johnson,	June
2.	6 Roger Sherman,	May
30.	Oliver Ellsworth,	"
29.	Robert Yates,	"
New York,	7 Alex'r Hamilton,	"
25.	John Lansing,	June
2.	8 Wm. Livingston,	"
New Jersey,	9 David Brearly,	May
5.	Wm. C. Houston,	May
25.		

25.	10 Wm. Patterson,	
do.	<i>John Nielson,</i>	
	<i>Abraham Clark.</i>	
	11 Jonathan Dayton,	June
21.		
Pennsylvania,	12 Benj. Franklin,	May
28.		
	13 Thos. Mifflin,	
do.		
	14 Robert Morris,	May
25.		
	15 Geo. Clymer,	"
28.		
	16 Thos. Fitzsimons,	"
25.		
	17 Jared Ingersoll,	"
28.		
	18 James Wilson,	"
25.		
	19 Gouv'r Morris,	"
25.		
Delaware,	20 Geo. Reed,	"
25.		
	21 G. Bedford, Jr.	"
28.		
	22 John Dickenson,	"
28.		
	23 Richard Bassett,	"
25.		
	24 Jacob Broom,	"
25.		
Maryland,	25 James M'Henry,	"
29.		
	26 Daniel of St. Tho.	
	Jenifer,	June

2.	27 Daniel Carroll,	July
9.	John F. Mercer,	Aug.
6.	Luther Martin,	June
9.	28 G. Washington,	May
Virginia,	<i>Patrick Henry, (declined.)</i>	
25.	Edmund Randolph,	"
25.	29 John Blair,	"
25.	30 Jas. Madison, Jr.	"
25.	George Mason,	"
25.	George Wythe,	"
25.	James McClurg, (in room of P. Henry)	"
25.	31 Wm. Blount (in room of R. Caswell),	June
20.	<i>Willie Jones, (declined.)</i>	
25.	32 R.D. Spaight,	May
25.	33 Hugh Williamson, (in room of W. Jones,)	May
25.	34 John Rutledge,	"
South Carolina,	35 Chas. C. Pinckney,	"
25.	36 Chas. Pinckney,	"

25.	37 Peirce Butler,	"
25.		
Georgia,	38 William Few,	May
25.		
	39 Abr'm Baldwin,	June
11.		
	William Pierce,	May
31.		
	<i>George Walton.</i>	
	Wm. Houston,	June
1.		
	<i>Nath'l Pendleton.</i>	

Those with numbers before their names signed the Constitution. 39

Those in italics never attended.

10

Members who attended, but did not sign the Constitution, 16

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65

Extracts from a speech of Luther Martin, (delivered before the Legislature of Maryland,) one of the delegates from Maryland to the Convention that formed the Constitution of the United States.

With respect to that part of the *second* section of the *first* Article, which relates to the apportionment of representation and direct taxation, there were considerable objections made to it, besides the great objection of inequality—It was urged, that no principle could justify taking *slaves* into computation in apportioning the number of *representatives* a State should have in the government—That it involved the absurdity of increasing the power of a State in making laws for *free men* in proportion as that State violated the rights of freedom—That it might be proper to take slaves into consideration, when *taxes* were to be apportioned, because it had a tendency

to *discourage slavery*; but to take them into account in giving representation tended to *encourage the slave trade*, and to make it the interest of the States to continue that *infamous traffic*—That slaves could not be taken into account as *men*, or *citizens*, because they were not admitted to the *rights of citizens*, in the States which adopted or continued slavery—If they were to be taken into account as *property*, it was asked, what peculiar circumstance should render this property (of all others the most odious in its nature) entitled to the high privilege of conferring consequence and power in the government to its possessors, rather than *any other* property: and why *slaves* should, as property, be taken into account rather than horses, cattle, mules, or any other species; and it was observed by an honorable member from Massachusetts, that he considered it as dishonorable and humiliating to enter into compact with the *slaves* of the *Southern States*, as it would with the *horses* and *mules* of the *Eastern*.

By the ninth section of this Article, the importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited prior to the year 1808, but a duty may be imposed on such importation, not exceeding ten dollars for each person.

The design of this clause is to prevent the general government from prohibiting the importation of slaves; but the same reasons which caused them to strike out the word "national," and not admit the word "stamps," influenced them here to guard against the word "*slaves*." They anxiously sought to avoid the admission of expressions which might be odious in the ears of Americans, although they were willing to admit into their system those *things* which the expressions signified; and hence it is that the clause is so worded as really to authorize the general government to impose a duty of ten dollars on every foreigner who comes into a State to become a citizen, whether he comes absolutely free, or qualifiedly so as a servant; although this is contrary to the design of the framers, and the duty was only meant to extend to the importation of slaves.

This clause was the subject of a great diversity of sentiment in the Convention. As the system was reported by the committee of detail, the provision was general, that such importation should not be prohibited, without confining it to any particular period. This was rejected by eight States—Georgia, South Carolina, and, I think, North Carolina, voting for it.

We were then told by the delegates of the two first of those States, that their States would never agree to a system, which put it in the power of the general government to prevent the importation of slaves, and that they, as delegates from those States, must withhold their assent from such a system.

A committee of one member from each State was chosen by ballot, to take this part of the system under their consideration, and to endeavor to agree upon some report, which should reconcile those States. To this committee also was referred the following proposition, which had been reported by the committee of detail, to wit: "No navigation act shall be passed without the assent of two-thirds of the members present in each house;" a proposition which the staple and commercial States were solicitous to retain, lest their commerce should be placed too much under the power of the Eastern States; but which these last States were as anxious to reject. This committee, of which also I had the honor to be a member, met and took under their consideration the subjects committed to them. I found the *Eastern States*, notwithstanding their *aversion to slavery*, were very willing to indulge the Southern States, at least with a temporary liberty to prosecute the *slave trade*, provided the Southern States would in their turn gratify them, by laying no restriction on navigation acts; and after a very little time, the committee, by a great majority, agreed on a report, by which the general government was to be prohibited from preventing the importation of slaves for a limited time, and the restricted clause relative to navigation acts was to be omitted.

This report was adopted by a majority of the Convention, but not without considerable opposition.

It was said, we had just assumed a place among independent nations in consequence of our opposition to the attempts of Great Britain to *enslave us*; that this opposition was grounded upon the preservation of those rights to which God and nature had entitled us, not in *particular*, but in *common* with all the rest of mankind; that we had appealed to the Supreme Being for his assistance, as the God of freedom, who could not but approve our efforts to preserve the *rights* which he had thus imparted to his creatures; that now, when we had scarcely risen from our knees, from supplicating his mercy and protection in forming our government over a free people, a government formed pretendedly on the principles of liberty, and for its preservation,—in

that government to have a provision not only putting it out of its power to restrain and prevent the slave trade, even encouraging that most infamous traffic, by giving the States the power and influence in the Union in proportion as they cruelly and wantonly sported with the rights of their fellow-creatures, ought to be considered as a solemn mockery of, and an insult to, that God whose protection we had then implored, and could not fail to hold us up in detestation, and render us contemptible to every true friend of liberty in the world. It was said, it ought be considered that national crimes can only be, and frequently are, punished in this world by national punishments; and that the continuance of the slave trade, and thus giving it a national sanction, and encouragement, ought to be considered as justly exposing us to the displeasure and vengeance of him who is equally Lord of all, and who views with equal eye the poor African slave and his American master!

It was urged that by this system, we were giving the general government full and absolute power to regulate commerce, under which general power it would have a right to restrain, or totally prohibit, the slave trade: it must, therefore, appear to the world absurd and disgraceful to the last degree, that we should except from the exercise of that power, the only branch of commerce which is unjustifiable in its nature, and contrary to the rights of mankind. That, on the contrary, we ought rather to prohibit expressly in our Constitution, the further importation of slaves, and to authorize the general government, from time to time, to make such regulations as should be thought most advantageous for the gradual abolition of slavery, and the emancipation of the slaves which are already in the States. That slavery is inconsistent with the genius of republicanism, and has a tendency to destroy those principles on which it is supported, as it lessens the sense of the equal rights of mankind, and habituates us to tyranny and oppression. It was further urged, that, by this system of government, every State is to be protected both from foreign invasion and from domestic insurrections; from this consideration, it was of the utmost importance it should have a power to restrain the importation of slaves, since, in proportion as the number of slaves are increased in any State, in the same proportion the State is weakened and exposed to foreign invasion or domestic insurrection, and by so much less will it be able to protect itself against either, and therefore will by so much the more want aid from, and be a burden to, the Union.

It was further said, that, as in this system we were giving the general government a power, under the idea of national character, or national interest, to regulate even our weights and measures, and have prohibited all possibility of emitting paper money, and passing insolvent laws, &c., it must appear still more extraordinary, that we should prohibit the government from interfering with both slave trade, than which nothing could so materially affect both our national honor and interest.

These reasons influenced me, both on the committee and in convention, most decidedly to oppose and vote against the clause, as it now makes part of the system.

You will perceive, sir, not only that the general government is prohibited from interfering in the slave trade before the year eighteen hundred and eight, but that there is no provision in the Constitution that it shall afterwards be prohibited, nor any security that such prohibition will ever take place; and I think there is great reason to believe, that, if the importation of slaves is permitted until the year eighteen hundred and eight, it will not be prohibited afterwards. At this time, we do not generally hold this commerce in so great abhorrence as we have done. When our liberties were at stake, we warmly felt for the common rights of men. The danger being thought to be past, which threatened ourselves, we are daily growing more insensible to those rights. In those States which have restrained or prohibited the importation of slaves, it is only done by legislative acts, which may be repealed. When those States find that they must, in their national character and connexion, suffer in the disgrace, and share in the inconveniences attendant upon that detestable and iniquitous traffic, they may be desirous also to share in the benefits arising from it; and the odium attending it will be greatly effaced by the sanction which is given to it in the general government.

By the next paragraph, the general government is to have a power of suspending the *habeas corpus act*, in cases of *rebellion* or *invasion*.

As the State governments have a power of suspending the *habeas corpus act* in those cases, it was said, there could be no reason for giving such a power to the general government; since, whenever the State which is invaded, or in which an insurrection takes place, finds its safety requires it, it will make

use of that power. And it was urged, that if we gave this power to the general government, it would be an engine of oppression in its hands; since whenever a State should oppose its views, however arbitrary and unconstitutional, and refuse submission to them, the general government may declare it to be an act of rebellion, and, suspending the habeas corpus act, may seize upon the persons of those advocates of freedom, who have had virtue and resolution enough to excite the opposition, and may imprison them during its pleasure in the remotest part of the Union; so that a citizen of Georgia might be *bastiled* in the furthest part of New Hampshire; or a citizen of New Hampshire in the furthest extreme of the South, cut off from their family, their friends, and their every connexion. These considerations induced me, sir, to give my negative also to this clause.

EXTRACTS FROM DEBATES IN THE SEVERAL STATE
CONVENTIONS ON THE ADOPTION OF THE UNITED STATES'
CONSTITUTION.

MASSACHUSETTS CONVENTION.

The third paragraph of the 2d section being read,

Mr. KING rose to explain it. There has, says he, been much misconception of this section. It is a principle of this Constitution, that representation and taxation should go hand in hand. This paragraph states, that the number of free persons shall be determined, by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. These persons are the slaves. By this rule is representation and taxation to be apportioned. And it was adopted, because it was the language of all America.

Mr. WIDGERY asked, if a boy of six years of age was to be considered as a free person?

Mr. KING in answer said, all persons born free were to be considered as freemen; and to make the idea of *taxation by numbers* more intelligible, said that five negro children of South Carolina, are to pay as much tax as the three Governors of New Hampshire, Massachusetts, and Connecticut.

Mr. GORHAM thought the proposed section much in favor of Massachusetts; and if it operated against any State, it was Pennsylvania, because they have more white persons *bound* than any other.

Judge DANA, in reply to the remark of some gentlemen, that the southern States were favored in this mode of apportionment, by having five of their negroes set against three persons in the eastern, the honorable judge observed, that the negroes of the southern States work no longer than when the eye of the driver is on them. Can, asked he, that land flourish like this, which is cultivated by the hands of freemen? Are not *three* of these independent freemen of more real advantage to a State, than *five* of those poor slaves?

Mr. NASSON remarked on the statement of the honorable Mr. KING, by saying that the honorable gentleman should have gone further, and shown us the other side of the question. It is a good rule that works both ways—and the gentleman should also have told us, that three of our infants in the cradle, are to be rated as high as five of the working negroes of Virginia. Mr. N. adverted to a statement of Mr. KING, who had said, that five negro children of South Carolina were equally rateable as three governors of New England, and wished, he said, the honorable gentleman had considered this question upon the other side—as it would then appear that this State will pay as great a tax for three children in the cradle, as any of the southern States will for five hearty working negro men. He hoped, he said, while we were making a new government, we should make it better than the old one: for if we had made a bad bargain before, as had been hinted, it was a reason why we should make a better one now.

Mr. DAWES said, he was sorry to hear so many objections raised against the paragraph under consideration. He thought them wholly unfounded; that the black inhabitants of the southern States must be considered either as slaves, and as so much property, or in the character of so many freemen; if the former, why should they not be wholly represented? Our *own* State laws and Constitution would lead us to consider those blacks as *freemen*, and so indeed would our own ideas of natural justice: if, then, they are freemen, they might form an equal basis for representation as though they were all white inhabitants. In either view, therefore, he could not see that the northern States would suffer, but directly to the contrary. He thought, however, that gentlemen would do well to connect the passage in dispute with another article in the Constitution, that permits Congress, in the year 1808, wholly to prohibit the importation of slaves, and in the mean time to impose a duty of ten dollars a head on such blacks as should be imported before that period. Besides, by the new Constitution, every particular State is left to its own option totally to prohibit the introduction of slaves into its own territories. What could the convention do more? The members of the southern States, like ourselves, have *their* prejudices. It would not do to abolish slavery, by an act of Congress, in a moment, and so destroy what our southern brethren consider as property. But we may say, that although slavery is not smitten by an apoplexy, yet it has received a mortal wound and will die of a consumption.

Mr. NEAL (from Kittery,) went over the ground of objection to this section on the idea that the slave trade was allowed to be continued for 20 years. His profession, he said, obliged him to bear witness against any thing that should favor the making merchandise of the bodies of men, and unless his objection was removed, he could not put his hand to the Constitution. Other gentlemen said, in addition to this idea, that there was not even a proposition that the negroes ever shall be free, and Gen. THOMPSON exclaimed:

Mr. President, shall it be said, that after we have established our own independence and freedom, we make slaves of others? Oh! Washington, what a name has he had! How he has immortalized himself! but he holds those in slavery who have a good right to be free as he has—he is still for self; and, in my opinion, his character has sunk 50 per cent.

On the other side, gentlemen said, that the step taken in this article towards the abolition of slavery, was one of the beauties of the Constitution. They observed, that in the confederation there was no provision whatever for its ever being abolished; but this Constitution provides, that Congress may, after 20 years, totally annihilate the slave trade; and that, as all the States, except two, have passed laws to this effect, it might reasonably be expected, that it would then be done. In the interim, all the States were at liberty to prohibit it.

SATURDAY, January 26.—[The debate on the 9th section still continued desultory—and consisted of similar objections, and answers thereto, as had before been used. Both sides deprecated the slave trade in the most pointed terms; on one side it was pathetically lamented, by Mr. NASON, Major LUSK, Mr. NEAL, and others, that this Constitution provided for the continuation of the slave trade for 20 years. On the other, the honorable Judge DANA, Mr. ADAMS and others, rejoiced that a door was now to be opened for the annihilation of this odious, abhorrent practice, in a certain time.]

Gen. HEATH. Mr. President,—By my indisposition and absence, I have lost several important opportunities: I have lost the opportunity of expressing my sentiments with a candid freedom, on some of the paragraphs of the system, which have lain heavy on my mind. I have lost the opportunity of

expressing my warm approbation on some of the paragraphs. I have lost the opportunity of hearing those judicious, enlightening and convincing arguments, which have been advanced during the investigation of the system. This is my misfortune, and I must bear it. The paragraph respecting the migration or importation of such persons as any of the States now existing shall think proper to admit, &c., is one of those considered during my absence, and I have heard nothing on the subject, save what has been mentioned this morning; but I think the gentlemen who have spoken, have carried the matter rather too far on both sides. I apprehend that it is not in our power to do any thing for or against those who are in slavery in the southern States. No gentleman within these walls detests every idea of slavery more than I do: it is generally detested by the people of this Commonwealth; and I ardently hope that the time will soon come, when our brethren in the southern States will view it as we do, and put a stop to it; but to this we have no right to compel them. Two questions naturally arise: if we ratify the Constitution, shall we do any thing by our act to hold the blacks in slavery—or shall we become the partakers of other men's sins? I think neither of them. Each State is sovereign and independent to a certain degree, and they have a right, and will regulate their own internal affairs, as to themselves appears proper; and shall we refuse to eat, or to drink, or to be united, with those who do not think, or act, just as we do? surely not. We are not in this case partakers of other men's sins, for in nothing do we voluntarily encourage the slavery of our fellow-men; a restriction is laid on the Federal Government, which could not be avoided, and a union take place. The Federal Convention went as far as they could; the migration or importation, &c., is confined to the States, now *existing only*, new States cannot claim it. Congress, by their ordinance for erecting new States, some time since, declared that the new States shall be republican, and that there shall be no slavery in them. But whether those in slavery in the southern States will be emancipated after the year 1808, I do not pretend to determine: I rather doubt it.

Mr. NEAL rose and said, that as the Constitution at large, was now under consideration, he would just remark, that the article which respected the Africans, was the one which laid on his mind—and, unless his objections to that were removed, it must, how much soever he liked the other parts of the Constitution, be a sufficient reason for him to give his negative to it.

Major LUSK concurred in the idea already thrown out in the debate, that although the insertion of the amendments in the Constitution was devoutly wished, yet he did not see any reason to suppose they ever would be adopted. Turning from the subject of amendments, the Major entered largely into the consideration of the 9th section, and in the most pathetic and feeling manner, described the miseries of the poor natives of Africa, who are kidnapped and sold for slaves. With the brightest colors he painted their happiness and ease on their native shores, and contrasted them with their wretched, miserable and unhappy condition, in a state of slavery.

Rev. Mr. BACKUS. Much, sir, hath been said about the importation of slaves into this country. I believe that, according to my capacity, no man abhors that wicked practice more than I do, and would gladly make use of all lawful means towards the abolishing of slavery in all parts of the land. But let us consider where we are, and what we are doing. In the articles of confederation, no provision was made to hinder the importation of slaves into any of these States: but a door is now opened hereafter to do it; and each State is at liberty now to abolish slavery as soon as they please. And let us remember our former connexion with Great Britain, from whom many in our land think we ought not to have revolted. How did they carry on the slave trade! I know that the Bishop of Gloucester, in an annual sermon in London, in February, 1766, endeavored to justify their tyrannical claims of power over us, by casting the reproach of the slave trade upon the Americans. But at the close of the war, the Bishop of Chester, in an annual sermon, in February, 1783, ingenuously owned, that their nation is the most deeply involved in the guilt of that trade, of any nation in the world; and also, that they have treated their slaves in the West Indies worse than the French or Spaniards have done theirs. Thus slavery grows more and more odious through the world; and, as an honorable gentleman said some days ago, "Though we cannot say that slavery is struck with an apoplexy, yet we may hope it will die with a consumption." And a main source, sir, of that iniquity, hath been an abuse of the covenant of circumcision, which gave the seed of Abraham to destroy the inhabitants of Canaan, and to take their houses, vineyards, and all their estates, as their own; and also to buy and hold others as servants. And as Christian privileges are greater than those of the Hebrews were, many have imagined that they had a right to seize upon the lands of the heathen, and to destroy or enslave them as far as they could

extend their power. And from thence the mystery of iniquity, carried many into the practice of making merchandise of slaves and souls of men. But all ought to remember, that when God promised the land of Canaan to Abraham and his seed, he let him know that they were not to take possession of that land, until the iniquity of the Amorites was full; and then they did it under the immediate direction of Heaven; and they were as real executors of the judgment of God upon those heathens, as any person ever was an executor of a criminal justly condemned. And in doing it they were not allowed to invade the lands of the Edomites, who sprang from Esau, who was not only of the seed of Abraham, but was born at the same birth with Israel; and yet they were not of that church. Neither were Israel allowed to invade the lands of the Moabites, or of the children of Ammon, who were of the seed of Lot. And no officer in Israel had any legislative power, but such as were immediately inspired. Even David, the man after God's own heart, had no legislative power, but only as he was inspired from above: and he is expressly called a *prophet* in the New Testament. And we are to remember that Abraham and his seed, for four hundred years, had no warrant to admit any strangers into that church, but by buying of him as a servant, with money. And it was a great privilege to be bought, and adopted into a religious family for seven years, and then to have their freedom. And that covenant was expressly repealed in various parts of the New Testament; and particularly in the first epistle to the Corinthians, wherein it is said—Ye are bought with a price; therefore glorify God in your body, and in your spirit, which are God's. And again—Circumcision is nothing, and uncircumcision is nothing, but keeping of the commandments of God. Ye are bought with a price; be not ye the servants of men. Thus the gospel sets all men upon a level, very contrary to the declaration of an honorable gentleman in this house, "that the Bible was contrived for the advantage of a particular order of men."

NEW YORK CONVENTION.

Mr. M. SMITH. He would now proceed to state his objections to the clause just read, (section 2, of article 1, clause 3). His objections were comprised under three heads: 1st, the rule of apportionment is unjust; 2d, there is no precise number fixed on, below which the house shall not be reduced; 3d, it is inadequate. In the first place, the rule of apportionment of the representatives is to be according to the whole number of the white

inhabitants, with three-fifths of all others; that is, in plain English, each State is to send representatives in proportion to the number of freemen, and three-fifths of the slaves it contains. He could not see any rule by which slaves were to be included in the ratio of representation;—the principle of a representation being that every free agent should be concerned in governing himself, it was absurd to give that power to a man who could not exercise it—slaves have no will of their own: the very operation of it was to give certain privileges to those people who were so wicked as to keep slaves. He knew it would be admitted, that this rule of apportionment was founded on unjust principles, but that it was the result of accommodation; which, he supposed, we should be under the necessity of admitting, if we meant to be in union with the southern States, though utterly repugnant to his feelings.

Mr. HAMILTON. In order that the committee may understand clearly the principles on which the General Convention acted, I think it necessary to explain some preliminary circumstances.

Sir, the natural situation of this country seems to divide its interests into different classes. There are navigating and non-navigating States—the Northern are properly the navigating States: the Southern appear to possess neither the means nor the spirit of navigation. This difference of situation naturally produces a dissimilarity of interest and views respecting foreign commerce. It was the interest of the Northern States that there should be no restraints on the navigation, and that they should have full power, by a majority on Congress, to make commercial regulations. The Southern States wished to impose a restraint on the Northern, by requiring that two-thirds in Congress should be requisite to pass an act in regulation of commerce: they were apprehensive that the restraints of a navigation law would discourage foreigners, and by obliging them to employ the shipping of the Northern States would probably enhance their freight. This being the case, they insisted strenuously on having this provision engrafted in the Constitution; and the Northern States were as anxious in opposing it. On the other hand, the small States seeing themselves embraced by the confederation upon equal terms, wished to retain the advantages which they already possessed: the large States, on the contrary, thought it improper that Rhode Island and Delaware should enjoy an equal suffrage with themselves: from these sources a delicate and difficult contest arose. It became necessary, therefore, to compromise; or the Convention must have dissolved without effecting

any thing. Would it have been wise and prudent in that body, in this critical situation, to have deserted their country? No. Every man who hears me—every wise man in the United States, would have condemned them. The Convention were obliged to appoint a committee for accommodation. In this committee the arrangement was formed as it now stands; and their report was accepted. It was a delicate point; and it was necessary that all parties should be indulged. Gentlemen will see, that if there had not been a unanimity, nothing could have been done: for the Convention had no power to establish, but only to recommend a government. Any other system would have been impracticable. Let a Convention be called to-morrow—let them meet twenty times; nay, twenty thousand times; they will have the same difficulties to encounter; the same clashing interests to reconcile.

But dismissing these reflections, let us consider how far the arrangement is in itself entitled to the approbation of this body. We will examine it upon its own merits.

The first thing objected to, is that clause which allows a representation for three-fifths of the negroes. Much has been said of the impropriety of representing men, who have no will of their own. Whether this be reasoning or declamation, I will not presume to say. It is the unfortunate situation of the southern States, to have a great part of their population, as well as property, in blacks. The regulations complained of was one result of the spirit of accommodation, which governed the Convention; and without this indulgence, no union could possibly have been formed. But, sir, considering some peculiar advantages which we derived from them, it is entirely just that they should be gratified. The southern States possess certain staples, tobacco, rice, indigo, &c., which must be capital objects in treaties of commerce with foreign nations; and the advantage which they necessarily procure in these treaties will be felt throughout all the States. But the justice of this plan will appear in another view. The best writers on government have held that representation should be compounded of persons and property. This rule has been adopted, as far as it could be, in the Constitution of New York. It will, however, by no means, be admitted, that the slaves are considered altogether as property. They are men, though degraded to the condition of slavery. They are persons known to the municipal laws of the States which they inhabit as well as to the laws of nature. But representation and taxation go together—and one uniform rule

ought to apply to both. Would it be just to compute these slaves in the assessment of taxes, and discard them from the estimate in the apportionment of representatives? Would it be just to impose a singular burthen, without conferring some adequate advantage?

Another circumstance ought to be considered. The rule we have been speaking of is a general rule, and applies to all the States. Now, you have a great number of people in your State, which are not represented at all; and have no voice in your government: these will be included in the enumeration—not two-fifths—nor three-fifths, but the whole. This proves that the advantages of the plan are not confined to the southern States, but extend to other parts of the Union.

Mr. M. SMITH. I shall make no reply to the arguments offered by the honorable gentleman to justify the rule of apportionment fixed by this clause: for though I am confident they might be easily refuted, yet I am persuaded we must yield this point, in accommodation to the southern States. The amendment therefore proposes no alteration to the clause in this respect.

Mr. HARRISON. Among the objections, that, which has been made to the mode of apportionment of representatives, has been relinquished. I think this concession does honor to the gentleman who had stated the objection. He has candidly acknowledged, that this apportionment was the result of accommodation; without which no union could have been formed.

PENNSYLVANIA CONVENTION.

Mr. WILSON. Much fault has been found with the mode of expression, used in the first clause of the ninth section of the first article. I believe I can assign a reason, why that mode of expression was used, and why the term slave was not admitted in this Constitution—and as to the manner of laying taxes, this is not the first time that the subject has come into the view of the United States, and of the Legislatures of the several States. The gentleman, (Mr. FINDLEY) will recollect, that in the present Congress, the quota of the federal debt, and general expenses, was to be in proportion to the value of land, and other enumerated property, within the States. After trying this for a number of years, it was found on all hands, to be a mode that could not be

carried into execution. Congress were satisfied of this, and in the year 1783 recommended, in conformity with the powers they possessed under the articles of confederation, that the quota should be according to the number of free people, including those bound to servitude, and excluding Indians not taxed. These were the expressions used in 1783, and the fate of this recommendation was similar to all their other resolutions. It was not carried into effect, but it was adopted by no fewer than eleven, out of thirteen States; and it cannot but be matter of surprise, to hear gentlemen, who agreed to this very mode of expression at that time, come forward and state it as an objection on the present occasion. It was natural, sir, for the late convention, to adopt the mode after it had been agreed to by eleven States, and to use the expression, which they found had been received as unexceptionable before. With respect to the clause, restricting Congress from prohibiting the migration or importation of such persons, as any of the States now existing, shall think proper to admit, prior to the year 1808. The honorable gentleman says, that this clause is not only dark, but intended to grant to Congress, for that time, the power to admit the importation of slaves. No such thing was intended; but I will tell you what was done, and it gives me high pleasure, that so much was done. Under the present Confederation, the States may admit the importation of slaves as long as they please; but by this article, after the year 1808 the Congress will have power to prohibit such importation, notwithstanding the disposition of any State to the contrary. I consider this as laying the foundation for banishing slavery out of this country; and though the period is more distant than I could wish, yet it will produce the same kind, gradual change, which was pursued in Pennsylvania. It is with much satisfaction I view this power in the general government, whereby they may lay an interdiction on this reproachful trade; but an immediate advantage is also obtained, for a tax or duty may be imposed on such importation, not exceeding ten dollars for each person; and this, sir, operates as a partial prohibition; it was all that could be obtained, I am sorry it was no more; but from this I think there is reason to hope, that yet a few years, and it will be prohibited altogether; and in the mean time, the new States which are to be formed, will be under the control of Congress in this particular; and slaves will never be introduced amongst them. The gentleman says, that it is unfortunate in another point of view; it means to prohibit the introduction of white people from Europe, as this tax may deter them from coming amongst us; a little impartiality and

attention will discover the care that the Convention took in selecting their language. The words are the *migration* or IMPORTATION of such persons, &c., shall not be prohibited by Congress prior to the year 1808, but a tax or duty may be imposed on such importation; it is observable here, that the term migration is dropped, when a tax or duty is mentioned, so that Congress have power to impose the tax only on those imported.

I recollect, on a former day, the honorable gentlemen from Westmoreland (Mr. FINDLEY,) and the honorable gentleman from Cumberland (Mr. WHITEHILL,) took exception against the first clause of the 9th section, art. 1, arguing very unfairly, that because Congress might impose a tax or duty of ten dollars on the importation of slaves, within any of the United States, Congress might therefore permit slaves to be imported within this State, contrary to its laws. I confess I little thought that this part of the system would be excepted to.

I am sorry that it could be extended no further; but so far as it operates, it presents us with the pleasing prospect, that the rights of mankind will be acknowledged and established throughout the union.

If there was no other lovely feature in the Constitution but this one, it would diffuse a beauty over its whole countenance. Yet the lapse of a few years! and Congress will have power to exterminate slavery from within our borders.

How would such a delightful prospect expand the breast of a benevolent and philanthropic European? Would he cavil at an expression? catch at a phrase? No, sir, that is only reserved for the gentleman on the other side of your chair to do.

Mr. McKEAN. The arguments against the Constitution are, I think, chiefly these:....

That migration or importation of such persons, as any of the States shall admit, shall not be prohibited prior to 1808, nor a tax or duty imposed on such importation exceeding ten dollars for each person.

Provision is made that Congress shall have power to prohibit the importation of slaves after the year 1808, but the gentlemen in opposition, accuse this system of a crime, because it has not prohibited them at once. I

suspect those gentlemen are not well acquainted with the business of the diplomatic body, or they would know that an agreement might be made, that did not perfectly accord with the will and pleasure of any one person. Instead of finding fault with what has been gained, I am happy to see a disposition in the United States to do so much.

VIRGINIA CONVENTION.

GOV. RANDOLPH. This is one point of weakness I wish for the honor of my countrymen that it was the only one. There is another circumstance which renders us more vulnerable. Are we not weakened by the population of those whom we hold in slavery? The day may come when they may make impression upon us. Gentlemen who have been long accustomed to the contemplation of the subject, think there is a cause of alarm in this case: the number of those people, compared to that of the whites, is in an immense proportion: their number amounts to 236,000—that of the whites, only to 352,000. * * * * I beseech them to consider, whether Virginia and North Carolina, both oppressed with debts and slaves, can defend themselves externally, or make their people happy internally.

GEORGE MASON. We are told in strong language, of dangers to which we will be exposed unless we adopt this Constitution. Among the rest, domestic safety is said to be in danger. This government does not attend to our domestic safety. It authorizes the importation of slaves for twenty-odd years, and thus continues upon us that nefarious trade. Instead of securing and protecting us, the continuation of this detestable trade adds daily to our weakness. Though this evil is increasing, there is no clause in the Constitution that will prevent the Northern and Eastern States from meddling with our whole property of that kind. There is a clause to prohibit the importation of slaves after twenty years, but there is no provision made for securing to the Southern States those they now possess. It is far from being a desirable property. But it will involve us in great difficulties and infelicity to be now deprived of them. There ought to be a clause in the Constitution to secure us that property, which we have acquired under our former laws, and the loss of which would bring ruin on a great many people.

MR. LEE. The honorable gentleman abominates it, because it does not prohibit the importation of slaves, and because it does not secure the continuance of the existing slavery! Is it not obviously inconsistent to criminate it for two contradictory reasons? I submit it to the consideration of the gentleman, whether, if it be reprehensible in the one case, it can be censurable in the other? MR. LEE then concluded by earnestly recommending to the committee to proceed regularly.

MR. HENRY. It says that "no state shall engage in war, unless actually invaded." If you give this clause a fair construction, what is the true meaning of it? What does this relate to? Not domestic insurrections, but war. If the country be invaded, a State may go to war; but cannot suppress insurrections. If there should happen an insurrection of slaves, the country cannot be said to be invaded.—They cannot therefore suppress it, without the interposition of Congress.

MR. GEORGE NICHOLAS. Another worthy member says, there is no power in the States to quell an insurrection of slaves. Have they it now? If they have, does the Constitution take it away? If it does, it must be in one of the three clauses which have been mentioned by the worthy member. The first clause gives the general government power to call them out when necessary. Does this take it away from the States? No. But it gives an additional security: for, besides the power in the State governments to use their own militia, it will be the duty of the general government to aid them with the strength of the Union when called for. No part of this Constitution can show that this power is taken away.

Mr. GEORGE MASON. Mr. Chairman, this is a fatal section, which has created more dangers than any other. The first clause allows the importation of slaves for twenty years. Under the royal government, this evil was looked upon as a great oppression, and many attempts were made to prevent it; but the interest of the African merchants prevented its prohibition. No sooner did the revolution take place, than it was thought of. It was one of the great causes of our separation from Great Britain. Its exclusion has been a principal object of this State, and most of the States in the Union. The augmentation of slaves weakens the States; and such a trade is diabolical in itself, and disgraceful to mankind. Yet, by this Constitution, it is continued for twenty years. As much as I value an union of all the States, I would not

admit the Southern States into the Union, unless they agreed to the discontinuance of this disgraceful trade, because it would bring weakness and not strength to the Union. And though this infamous traffic be continued, we have no security for the property of that kind which we have already. There is no clause in this Constitution to secure it; for they may lay such tax as will amount to manumission. And should the government be amended, still this detestable kind of commerce cannot be discontinued till after the expiration of twenty years. For the fifth article, which provides for amendments, expressly excepts this clause. I have ever looked upon this as a most disgraceful thing to America. I cannot express my detestation of it. Yet they have not secured us the property of the slaves we have already. So that, "they have done what they ought not to have done, and have left undone what they ought to have done"

Mr. MADISON. Mr. Chairman, I should conceive this clause to be impolitic, if it were one of those things which could be excluded without encountering greater evils. The Southern States would not have entered into the union of America, without the temporary permission of that trade. And if they were excluded from the union, the consequences might be dreadful to them and to us. We are not in a worse situation than before. That traffic is prohibited by our laws, and we may continue the prohibition. The union in general is not in a worse situation. Under the articles of confederation, it might be continued forever: but by this clause an end may be put to it after twenty years. There is, therefore, an amelioration of our circumstances. A tax may be laid in the mean time; but it is limited, otherwise Congress might lay such a tax as would amount to a prohibition. From the mode of representation and taxation, Congress cannot lay such a tax on slaves as will amount to manumission. Another clause secures us that property which we now possess. At present, if any slave elopes to any of those States where slaves are free, he becomes emancipated by their laws. For the laws of the States are uncharitable to one another in this respect. But in this Constitution, "no person held to service, or labor, in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due." This clause was expressly inserted to enable owners of slaves to reclaim them. This is a better security than any that now exist. No power is

given to the general government to interpose with respect to the property in slaves now held by the States. The taxation of this State being equal only to its representation, such a tax cannot be laid as he supposes. They cannot prevent the importation of slaves for twenty years: but after that period, they can. The gentlemen from South Carolina and Georgia argued in this manner: "We have now liberty to import this species of property, and much of the property now possessed, has been purchased, or otherwise acquired, in contemplation of improving it by the assistance of imported slaves. What would be the consequence of hindering us from it? The slaves of Virginia would rise in value, and we would be obliged to go to your markets." I need not expatiate on this subject. Great as the evil is, a dismemberment of the union would be worse. If those States should disunite from the other States, for not including them in the temporary continuance of this traffic, they might solicit and obtain aid from foreign powers.

Mr. TYLER warmly enlarged on the impolicy, iniquity, and disgracefulness of this wicked traffic. He thought the reasons urged by gentlemen in defence of it were inconclusive, and ill founded. It was one cause of the complaints against British tyranny, that this trade was permitted. The Revolution had put a period to it; but now it was to be revived. He thought nothing could justify it. This temporary restriction on Congress militated, in his opinion, against the arguments of gentlemen on the other side, that what was not given up, was retained by the States; for that if this restriction had not been inserted, Congress could have prohibited the African trade. The power of prohibiting it was not expressly delegated to them; yet they would have had it by implication, if this restraint had not been provided. This seemed to him to demonstrate most clearly the necessity of restraining them by a bill of rights, from infringing our unalienable rights. It was immaterial whether the bill of rights was by itself, or included in the Constitution. But he contended for it one way or the other. It would be justified by our own example, and that of England. His earnest desire was, that it should be handed down to posterity, that he had opposed this wicked clause.

Mr. MADISON. As to the restriction in the clause under consideration, it was a restraint on the exercise of a power expressly delegated to Congress, namely, that of regulating commerce with foreign nations.

Mr. HENRY insisted, that the insertion of these restrictions on Congress, was a plain demonstration that Congress could exercise powers by implication. The gentleman had admitted that Congress could have interdicted the African trade, were it not for this restriction. If so, the power not having been expressly delegated, must be obtained by implication. He demanded where, then, was their doctrine of reserved rights? He wished for negative clauses to prevent them from assuming any powers but those expressly given. He asked why it was moited to secure us that property in slaves, which we held now? He feared its omission was done with design. They might lay such heavy taxes on slaves, as would amount to emancipation; and then the Southern States would be the only sufferers. His opinion was confirmed by the mode of levying money. Congress, he observed, had power to lay and collect taxes, imposts, and excises. Imposts (or duties) and excises, were to be uniform. But this uniformity did not extend to taxes. This might compel the Southern States to liberate their negroes. He wished this property therefore to be guarded. He considered the clause which had been adduced by the gentleman as a security for this property, as no security at all. It was no more than this—that a runaway negro could be taken up in Maryland or New York. This could not prevent Congress from interfering with that property by laying a grievous and enormous tax on it, so as to compel owners to emancipate their slaves rather than pay the tax. He apprehended it would be productive of much stockjobbing, and that they would play into one another's hands in such a manner as that this property would be lost to the country.

Mr. GEORGE NICHOLAS wondered that gentlemen who were against slavery would be opposed to this clause; as after that period the slave trade would be done away. He asked if gentlemen did not see the inconsistency of their arguments? They object, says he, to the Constitution, because the slave trade is laid open for twenty-odd years; and yet tell you, that by some latent operation of it, the slaves who are now, will be manumitted. At that same moment, it is opposed for being promotive and destructive of slavery. He contended that it was advantageous to Virginia, that it should be in the power of Congress to prevent the importation of slaves after twenty years, as it would then put a period to the evil complained of.

As the Southern States would not confederate without this clause, he asked, if gentlemen would rather dissolve the confederacy than to suffer this

temporary inconvenience, admitting to it to be such? Virginia might continue the prohibition of such importation during the intermediate period, and would be benefitted by it, as a tax of ten dollars on each slave might be laid, of which she would receive a share. He endeavored to obviate the objection of gentlemen, that the restriction on Congress was a proof that they would have power not given them, by remarking, that they would only have had a general superintendency of trade, if the restriction had not been inserted. But the Southern States insisted on this exception to that general superintendency for twenty years. It could not therefore have been a power by implication, as the restriction was an exception from a delegated power. The taxes could not, as had been suggested, be laid so high on negroes as to amount to emancipation; because taxation and representation were fixed according to the census established in the Constitution. The exception of taxes, from the uniformity annexed to duties and excises, could not have the operation contended for by the gentleman; because other clauses had clearly and positively fixed the census. Had taxes been uniform, it would have been universally objected to, for no one object could be selected without involving great inconveniences and oppressions. But, says Mr. Nicholas, is it from the general government we are to fear emancipation? Gentlemen will recollect what I said in another house, and what other gentlemen have said that advocated emancipation. Give me leave to say, that that clause is a great security for our slave tax. I can tell the committee, that the people of our country are reduced to beggary by the taxes on negroes. Had this Constitution been adopted, it would not have been the case. The taxes were laid on all our negroes. By this system two-fifths are exempted. He then added, that he had imagined gentlemen would not support here what they had opposed in another place.

Mr. HENRY replied, that though the proportion of each was to be fixed by the census, and three-fifths of the slaves only were included in the enumeration, yet the proportion of Virginia being once fixed, might be laid on blacks and blacks only. For the mode of raising the proportion of each State being to be directed by Congress, they might make slaves the sole object to raise it. Personalities he wished to take leave of; they had nothing to do with the question, which was solely whether that paper was wrong or not.

Mr. NICHOLAS replied, that negroes must be considered as persons, or property. If as property, the proportion of taxes to be laid on them was fixed in the Constitution. If he apprehended a poll tax on negroes, the Constitution had prevented it. For, by the census, where a white man paid ten shillings, a negro paid but six shillings. For the exemption of two-fifths of them reduced it to that proportion.

The second, third, and fourth clauses, were then read as follows:

The privilege of the writ of habeas corpus shall not be suspended, unless when in cases of rebellion or invasion the public safety may require it.

No bill of attainder or ex post facto law shall be passed.

No capitation or other direct tax shall be paid, unless in proportion to the census or enumeration herein before directed to be taken.

Mr. GEORGE MASON said, that gentlemen might think themselves secured by the restriction in the fourth clause, that no capitation or other direct tax should be laid but in proportion to the census before directed to be taken. But that when maturely considered it would be found to be no security whatsoever. It was nothing but a direct assertion, or mere confirmation of the clause which fixed the ratio of taxes and representation. It only meant that the quantum to be raised of each State should be in proportion to their numbers in the manner therein directed. But the general government was not precluded from laying the proportion of any particular State on any one species of property they might think proper. For instance, if five hundred thousand dollars were to be raised, they might lay the whole of the proportion of the Southern States on the blacks, or any one species of property: so that by laying taxes too heavily on slaves, they might totally annihilate that kind of property. No real security could arise from the clause which provides, that persons held to labor in one State, escaping into another, shall be delivered up. This only meant, that runaway slaves should not be protected in other States. As to the exclusion of *ex post facto* laws, it could not be said to create any security in this case. For laying a tax on slaves would not be *ex post facto*.

Mr. MADISON replied, that even the Southern States, who were most affected, were perfectly satisfied with this provision, and dreaded no danger

to the property they now hold. It appeared to him, that the general government would not intermeddle with that property for twenty years, but to lay a tax on every slave imported, not exceeding ten dollars; and that after the expiration of that period they might prohibit the traffic altogether. The census in the Constitution was intended to introduce equality in the burdens to be laid on the community. No gentleman objected to laying duties, imposts, and excises, uniformly. But uniformity of taxes would be subversive to the principles of equality: for that it was not possible to select any article which would be easy for one State, but what would be heavy for another. That the proportion of each State being ascertained, it would be raised by the general government in the most convenient manner for the people, and not by the selection of any one particular object. That there must be some degree of confidence put in agents, or else we must reject a state of civil society altogether. Another great security to this property, which he mentioned, was, that five States were greatly interested in that species of property, and there were other States which had some slaves, and had made no attempt, or taken any step to take them from the people. There were a few slaves in New York, New Jersey and Connecticut: these States would, probably, oppose any attempts to annihilate this species of property. He concluded, by observing, that he would be glad to leave the decision of this to the committee.

The second section was then read as follows: * * *

No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein be discharged from such service.

Mr. GEORGE MASON.—Mr. Chairman, on some former part of the investigation of this subject, gentlemen were pleased to make some observations on the security of property coming within this section. It was then said, and I now say, that there is no security, nor have gentlemen convinced me of this.

Mr. HENRY. Among ten thousand implied powers which they may assume, they may, if we be engaged in war, liberate every one of your slaves if they please. And this must and will be done by men, a majority of whom have not a common interest with you. They will, therefore, have no feeling for

your interests. It has been repeatedly said here, that the great object of a national government, was national defence. That power which is said to be intended for security and safety, may be rendered detestable and oppressive. If you give power to the general government to provide for the general defence, the means must be commensurate to the end. All the means in the possession of the people must be given to the government which is entrusted with the public defence. In this State there are 236,000 blacks, and there are many in several other States. But there are few or none in the Northern States, and yet if the Northern States shall be of opinion, that our numbers are numberless, they may call forth every national resource. May Congress not say, that every black man must fight? Did we not see a little of this last war? We were not so hard pushed, as to make emancipation general. But acts of assembly passed, that every slave who would go to the army should be free. Another thing will contribute to bring this event about—slavery is detested—we feel its fatal effects—we deplore it with all the pity of humanity. Let all these considerations, at some future period, press with full force on the minds of Congress. Let that urbanity, which I trust will distinguish America, and the necessity of national defence, let all these things operate on their minds, they will search that paper, and see if they have power of manumission. And have they not, sir? Have they not power to provide for the general defence and welfare? May they not think that these call for the abolition of slavery? May not they pronounce all slaves free, and will they not be warranted by that power? There is no ambiguous implication or logical deduction. The paper speaks to the point. They have the power in clear, unequivocal terms; and will clearly and certainly exercise it. As much as I deplore slavery, I see that prudence forbids its abolition. I deny that the general government ought to set them free, because a decided majority of the States have not the ties of sympathy and fellow-feeling for those whose interest would be affected by their emancipation. The majority of Congress is to the North, and the slaves are to the South. In this situation, I see a great deal of the property of the people of Virginia in jeopardy, and their peace and tranquillity gone away. I repeat it again, that it would rejoice my very soul, that every one of my fellow-beings was emancipated. As we ought with gratitude to admire that decree of Heaven, which has numbered us among the free, we ought to lament and deplore the necessity of holding our fellow-men in bondage. But is it practicable by any human means, to liberate them, without producing the

most dreadful and ruinous consequences? We ought to possess them in the manner we have inherited them from our ancestors, as their manumission is incompatible with the felicity of the country. But we ought to soften, as much as possible, the rigor of their unhappy fate. I know that in a variety of particular instances, the legislature, listening to complaints, have admitted their emancipation. Let me not dwell on this subject. I will only add, that this, as well as every other property of the people of Virginia, is in jeopardy, and put in the hands of those who have no similarity of situation with us. This is a local matter, and I can see no propriety in subjecting it to Congress.

Have we not a right to say, *hear our propositions*? Why, sir, your slaves have a right to make their humble requests.—Those who are in the meanest occupations of human life, have a right to complain.

Gov. RANDOLPH. That honorable gentleman, and some others, have insisted that the abolition of slavery will result from it, and at the same time have complained, that it encourages its continuation. The inconsistency proves in some degree, the futility of their arguments. But if it be not conclusive, to satisfy the committee that there is no danger of enfranchisement taking place, I beg leave to refer them to the paper itself. I hope that there is none here, who, considering the subject in the calm light of philosophy, will advance an objection dishonorable to Virginia; that at the moment they are securing the rights of their citizens, an objection is started that there is a spark of hope, that those unfortunate men now held in bondage, may, by the operation of the general government be made *free*. But if any gentleman be terrified by this apprehension, let him read the system. I ask, and I will ask again and again, till I be answered (not by declamation) where is the part that has a tendency to the abolition of slavery? Is it the clause which says, that "the migration or importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited by Congress prior to the year 1808?" This is an exception from the power of regulating commerce, and the restriction is only to continue till 1808. Then Congress can, by the exercise of that power, prevent future importations; but does it affect the existing state of slavery? Were it right here to mention what passed in Convention on the occasion, I might tell you that the Southern States, even South Carolina herself; conceived this property to be secure by these words. I believe,

whatever we may think here, that there was not a member of the Virginia delegation who had the smallest suspicion of the abolition of slavery. Go to their meaning. Point out the clause where this formidable power of emancipation is inserted. But another clause of the Constitution proves the absurdity of the supposition. The words of the clause are, "No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due." Every one knows that slaves are held to service and labor. And when authority is given to owners of slaves to vindicate their property, can it be supposed they can be deprived of it? If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, can it be seriously thought, that after taking him and bringing him home, he could be made free?

I observed that the honorable gentleman's proposition comes in a truly questionable shape, and is still more extraordinary and unaccountable for another consideration; that although we went article by article through the Constitution, and although we did not expect a general review of the subject, (as a most comprehensive view had been taken of it before it was regularly debated,) yet we are carried back to the clause giving that dreadful power, for the general welfare. Pardon me if I remind you of the true state of that business. I appeal to the candor of the honorable gentleman, and if he thinks it an improper appeal, I ask the gentlemen here, whether there be a general indefinite power of providing for the general welfare? The power is, "to lay and collect taxes, duties, imposts, and excises, to pay the debts and provide for the common defence and general welfare." So that they can only raise money by these means, in order to provide for the general welfare. No man who reads it can say it is general as the honorable gentleman represents it. You must violate every rule of construction and common sense, if you sever it from the power of raising money and annex it to any thing else, in order to make it that formidable power which it is represented to be.

Mr. GEORGE MASON. Mr. Chairman, with respect to commerce and navigation, he has given it as his opinion, that their regulation, as it now stands, was a *sine qua non* of the Union, and that without it, the States in Convention would never concur. I differ from him. It never was, nor in my

opinion ever will be, a *sine qua non* of the Union. I will give you, to the best of my recollection, the history of that affair. This business was discussed at Philadelphia for four months, during which time the subject of commerce and navigation was often under consideration; and I assert, that eight States out of twelve, for more than three months, voted for requiring two-thirds of the members present in each house to pass commercial and navigation laws. True it is, that afterwards it was carried by a majority, as it stands. If I am right, there was a great majority for requiring two-thirds of the States in this business, till a compromise took place between the Northern and Southern States; the Northern States agreeing to the temporary importation of slaves, and the Southern States conceding, in return, that navigation and commercial laws should be on the footing on which they now stand. If I am mistaken, let me be put right. These are my reasons for saying that this was not a *sine qua non* of their concurrence. The Newfoundland fisheries will require that kind of security which we are now in want of. The Eastern States therefore agreed at length, that treaties should require the consent of two-thirds of the members present in the senate.

Mr. Madison. I was struck with surprise when I heard him express himself alarmed with respect to the emancipation of slaves. Let me ask, if they should even attempt it, if it will not be an usurpation of power? There is no power to warrant it, in that paper. If there be, I know it not. But why should it be done? Says the honorable gentleman, for the general welfare—it will infuse strength into our system. Can any member of this committee suppose, that it will increase our strength? Can any one believe, that the American councils will come into a measure which will strip them of their property, discourage and alienate the affections of five-thirteenths of the Union? Why was nothing of this sort aimed at before? I believe such an idea never entered into an American breast, nor do I believe it ever will, unless it will enter into the heads of those gentlemen who substitute unsupported suspicions for reasons.

Mr. Henry. He asked me where was the power of emancipating slaves? I say it will be implied, unless implication be prohibited. He admits that the power of granting passports will be in the new Congress without the insertion of this restriction—yet he can shew me nothing like such a power granted in that Constitution. Notwithstanding he admits their right to this power by implication, he says that I am unfair and uncandid in my

deduction, that they can emancipate our slaves, though the word emancipation be not mentioned in it. They can exercise power by implication in one instance, as well as in another. Thus, by the gentleman's own argument, they can exercise the power though it be not delegated.

Mr. Z. Johnson. They tell us that they see a progressive danger of bringing about emancipation. The principle has begun since the revolution. Let us do what we will, it will come round. Slavery has been the foundation of that impiety and dissipation, which have been so much disseminated among our countrymen. If it were totally abolished, it would do much good.

NORTH CAROLINA CONVENTION.

The first three clauses of the second section read.

Mr. GOUDY. Mr. Chairman, this clause of taxation will give an advantage to some States, over the others. It will be oppressive to the Southern States. Taxes are equal to our representation. To augment our taxes and increase our burthens, our negroes are to be represented. If a State has fifty thousand negroes, she is to send one representative for them. I wish not to be represented with negroes, especially if it increases my burthens.

Mr. Davie. Mr. Chairman, I will endeavor to obviate what the gentleman last up has said. I wonder to see gentlemen so precipitate and hasty on a subject of such awful importance. It ought to be considered, that *some of us* are slow of apprehension, not having those quick conceptions, and luminous understandings, of which other gentlemen may be possessed. The gentleman "does not wish to be represented with negroes." This, sir, is an unhappy species of population, but cannot at present alter their situation. The Eastern States had great jealousies on this subject. They insisted that their cows and horses were equally entitled to representation; that the one was property as well as the other. It became our duty on the other hand, to acquire as much weight as possible in the legislation of the Union; and as the Northern States were more populous in whites, this only could be done by insisting that a certain proportion of our slaves should make a part of the computed population. It was attempted to form a rule of representation from a compound ratio of wealth and population; but, on consideration, it was found impracticable to determine the comparative value of lands, and other property, in so extensive a territory, with any degree of accuracy; and

population alone was adopted as the only practicable rule or criterion of representation. It was urged by the deputies of the Eastern States, that a representation of two-fifths would be of little utility, and that their entire representation would be unequal and burthensome. That in a time of war, slaves rendered a country more vulnerable, while its defence devolved upon its *free* inhabitants. On the other hand, we insisted, that in time of peace they contributed by their labor to the general wealth as well as other members of the community. That as rational beings they had a right of representation, and in some instances might be highly useful in war. On these principles, the Eastern States gave the matter up, and consented to the regulation as it has been read. I hope these reasons will appear satisfactory. It is the same rule or principle which was proposed some years ago by Congress, and assented to by twelve of the States. It may wound the delicacy of the gentleman from Guilford, (Mr. GOUDY,) but I hope he will endeavor to accommodate his feelings to the interests and circumstances of his country.

Mr. JAMES GALLOWAY said, that he did not object to the representation of negroes, so much as he did to the fewness of the number of representatives. He was surprised how we came to have but five, including those intended to represent negroes. That in his humble opinion North Carolina was entitled to that number independent of the negroes.

First clause of the 9th section read.

Mr. J. M'DOWALL wished to hear the reasons of this restriction.

Mr. SPAIGHT answered that there was a contest between the Northern and Southern States—that the Southern States, whose principal support depended on the labor of slaves, would not consent to the desire of the Northern States to exclude the importation of slaves absolutely. That South Carolina and Georgia insisted on this clause, as they were now in want of hands to cultivate their lands: That in the course of twenty years they would be fully supplied: That the trade would be abolished then, and that in the mean time some tax or duty might be laid on.

Mr. M'DOWALL replied, that the explanation was just such as he expected, and by no means satisfactory to him, and that he looked upon it as a very objectionable part of the system.

Mr. IREDELL. Mr. Chairman, I rise to express sentiments similar to those of the gentleman from Craven. For my part, were it practicable to put an end to the importation of slaves immediately, it would give me the greatest pleasure, for it certainly is a trade utterly inconsistent with the rights of humanity, and under which great cruelties have been exercised. When the entire abolition of slavery takes place, it will be an event which must be pleasing to every generous mind, and every friend of human nature; but we often wish for things which are not attainable. It was the wish of a great majority of the Convention to put an end to the trade immediately, but the States of South Carolina and Georgia would not agree to it. Consider then what would be the difference between our present situation in this respect, if we do not agree to the Constitution, and what it will be if we do agree to it. If we do not agree to it, do we remedy the evil? No, sir, we do not; for if the Constitution be not adopted, it will be in the power of every State to continue it forever. They may or may not abolish it at their discretion. But if we adopt the Constitution, the trade must cease after twenty years, if Congress declare so, whether particular States please so or not: surely, then, we gain by it. This was the utmost that could be obtained. I heartily wish more could have been done. But as it is, this government is nobly distinguished above others by that very provision. Where is there another country in which such a restriction prevails? We, therefore, sir, set an example of humanity by providing for the abolition of this inhuman traffic, though at a distant period. I hope, therefore, that this part of the Constitution will not be condemned, because it has not stipulated for what it was impracticable to obtain.

Mr. SPAIGHT further explained the clause. That the limitation of this trade to the term of twenty years, was a compromise between the Eastern States and the Southern States. South Carolina and Georgia wished to extend the term. The Eastern States insisted on the entire abolition of the trade. That the State of North Carolina had not thought proper to pass any law prohibiting the importation of slaves, and therefore its delegation in the convention did not think themselves authorized to contend for an immediate prohibition of it.

Mr. IREDELL added to what he had said before, that the States of Georgia and South Carolina had lost a great many slaves during the war, and that they wished to supply the loss.

Mr. GALLOWAY. Mr. Chairman, the explanation given to this clause does not satisfy my mind. I wish to see this abominable trade put an end to. But in case it be thought proper to continue this abominable traffic for twenty years, yet I do not wish to see the tax on the importation extended to all persons whatsoever. Our situation is different from the people to the North. We want citizens; they do not. Instead of laying a tax, we ought to give a bounty, to encourage foreigners to come among us. With respect to the abolition of slavery, it requires the utmost consideration. The property of the Southern States consists principally of slaves. If they mean to do away slavery altogether, this property will be destroyed. I apprehend it means to bring forward manumission. If we must manumit our slaves, what country shall we send them to? It is impossible for us to be happy if, after manumission, they are to stay among us.

Mr. IREDELL. Mr. Chairman, the worthy gentleman, I believe, has misunderstood this clause, which runs in the following words: "The migration or importation of such persons as any of the States now existing, shall think proper to admit, shall not be prohibited by the Congress prior to the year 1808, but a tax or duty may be imposed on *such importation*, not exceeding ten dollars for each person."

Now, sir, observe that the Eastern States, who long ago have abolished slavery, did not approve of the expression *slaves*; they therefore used another that answered the same purpose. The committee will observe the distinction between the two words migration and importation. The first part of the clause will extend to persons who come into the country as free people, or are brought as slaves, but the last part extends to slaves only. The word *migration* refers to free persons; but the word *importation* refers to slaves, because free people cannot be said to be imported. The tax, therefore, is only to be laid on slaves who are imported, and not on free persons who migrate. I further beg leave to say, that the gentleman is mistaken in another thing. He seems to say that this extends to the abolition of slavery. Is there anything in this constitution which says that Congress shall have it in their power to abolish the slavery of those slaves who are now in the country? Is it not the plain meaning of it, that after twenty years they may prevent the future importation of slaves? It does not extend to those now in the country. There is another circumstance to be observed. There is no authority vested in congress to restrain the States in the interval

of twenty years, from doing what they please. If they wish to inhibit such importation, they may do so. Our next assembly may put an entire end to the importation of slaves.

Article fourth. The first section and two first clauses of the second

The last clause read—

Mr. IREDELL begged leave to explain the reason of this clause. In some of the Northern States, they have emancipated all their slaves. If any of our slaves, said he, go there and remain there a certain time, they would, by the present laws, be entitled to their freedom, so that their masters could not get them again. This would be extremely prejudicial to the inhabitants of the Southern States, and to prevent it, this clause is inserted in the Constitution. Though the word *slave* be not mentioned, this is the meaning of it. The Northern delegates, owing to their particular scruples on the subject of slavery, did not choose the word *slave* to be mentioned.

The rest of the forth article read without observation.

Mr. IREDELL. It is however to be observed, that the first and forth clauses in the ninth section of the first article, are protected from any alteration until the year 1808; and in order that no consolidation should take place, it is provided, that no State shall, by any amendment or alteration, be ever deprived of an equal suffrage in the Senate without its own consent. The two first prohibitions are with respect to the census, according to which direct taxes are imposed, and with respect to the importation of slaves. As to the first, it must be observed, that there is a material difference between the Northern and Southern States. The Northern States have been much longer settled, and are much fuller of people than the Southern, but have not land in equal proportion, nor scarcely any slaves. The subject of this article was regulated with great difficulty, and by a spirit of concession which it would not be prudent to disturb for a good many years. In twenty years there will probably be a great alteration, and then the subject may be re-considered with less difficulty and greater coolness. In the mean time, the compromise was upon the best footing that could be obtained. A compromise likewise took place in regard to the importation of slaves. It is probable that all the members reprobated this inhuman traffic, but those of South Carolina and

Georgia would not consent to an immediate prohibition of it; one reason of which was, that during the last war they lost a vast number of negroes, which loss they wish to supply. In the mean time, it is left to the States to admit or prohibit the importation, and Congress may impose a limited duty upon it.

SOUTH CAROLINA CONVENTION.

Hon. RAWLINS LOWNDES. In the first place, what cause was there for jealousy of our importing negroes? Why confine us to twenty years, or rather why limit us at all? For his part he thought this trade could be justified on the principles of religion, humanity, and justice; for certainly to translate a set of human beings from a bad country to a better, was fulfilling every part of these principles. But they don't like our slaves, because they have none themselves; and therefore want to exclude us from this great advantage; why should the Southern States allow of this, without the consent of nine States?

Judge PENDLETON observed, that only three States, Georgia, South Carolina, and North Carolina, allowed the importation of negroes. Virginia had a clause in her Constitution for this purpose, and Maryland, he believed, even before the war, prohibited them.

Mr. LOWNDES continued—that we had a law prohibiting the importation of negroes for three years, a law he greatly approved of; but there was no reason offered, why the Southern States might not find it necessary to alter their conduct, and open their ports. Without negroes this State would degenerate into one of the most contemptible in the Union; and cited an expression that fell from Gen. PINCKNEY on a former debate, that whilst there remained one acre of swamp land in South Carolina he should raise his voice against restricting the importation of negroes. Even in granting the importation for twenty years, care had been taken to make us pay for this indulgence, each negro being liable, on importation, to pay a duty not exceeding ten dollars, and, in addition to this, were liable to a capitation tax. Negroes were our wealth, our only natural resource; yet behold how our kind friends in the North were determined soon to tie up our hands, and drain us of what we had. The Eastern States drew their means of subsistence, in a great measure, from their shipping; and on that head, they

had been particularly careful not to allow of any burdens; they were not to pay tonnage, or duties; no, not even the form of clearing out: all ports were free and open to them! Why, then, call this a reciprocal bargain, which took all from one party, to bestow it on the other?

Major BUTLER observed that they were to pay a five per cent impost. This, Mr. LOWNDES proved, must fall upon the consumer. They are to be the carriers; and we, being the consumers, therefore all expenses would fall upon us.

Hon. E. RUTLEDGE. The gentleman had complained of the inequality of the taxes between the Northern and Southern States—that ten dollars a head was imposed on the importation of negroes, and that those negroes were afterwards taxed. To this it was answered, that the ten dollars per head was an equivalent to the five per cent on imported articles; and as to their being afterwards taxed, the advantage is on our side; or, at least, not against us.

In the Northern States, the labor is performed by white people; in the Southern by black. All the free people (and there are few others) in the Northern States, are to be taxed by the new Constitution, whereas, only the free people, and two-fifths of the slaves in the Southern States are to be rated in the apportioning of taxes. But the principle objection is, that no duties are laid on shipping—that in fact the carrying trade was to be vested in a great measure in the Americans; that the shipbuilding business was principally carried on in the Northern States. When this subject is duly considered, the Southern States, should be the last to object to it. Mr. RUTLEDGE then went into a consideration of the subject; after which the house adjourned.

Gen. CHARLES COTESWORTH PINCKNEY. We were at a loss for some time for a rule to ascertain the proportionate wealth of the States, at last we thought that the productive labor of the inhabitants was the best rule for ascertaining their wealth; in conformity to this rule, joined to a spirit of concession, we determined that representatives should be apportioned among the several States, by adding to the whole number of free persons three-fifths of the slaves. We thus obtained a representation for our property, and I confess I did not expect that we had conceded too much to the Eastern

States, when they allowed us a representation for a species of property which they have not among them.

The honorable gentleman alleges, that the Southern States are weak, I sincerely agree with him—we are so weak that by ourselves we could not form an union strong enough for the purpose of effectually protecting each other. Without union with the other States, South Carolina must soon fall. Is there any one among us so much a Quixotte as to suppose that this State could long maintain her independence if she stood alone, or was only connected with the Southern States? I scarcely believe there is. Let an invading power send a naval force into the Chesapeake to keep Virginia in alarm, and attack South Carolina with such a naval and military force as Sir Henry Clinton brought here in 1780, and though they might not soon conquer us, they would certainly do us an infinite deal of mischief; and if they considerably increased their numbers, we should probably fall. As, from the nature of our climate, and the fewness of our inhabitants, we are undoubtedly weak, should we not endeavor to form a close union with the Eastern States, who are strong?

For who have been the greatest sufferers in the Union, by our obtaining our independence? I answer, the Eastern States; they have lost every thing but their country, and their freedom. It is notorious that some ports to the Eastward, which used to fit out one hundred and fifty sail of vessels, do not now fit out thirty; that their trade of ship-building, which used to be very considerable, is now annihilated; that their fisheries are trifling, and their mariners in want of bread; surely we are called upon by every tie of justice, friendship, and humanity, to relieve their distresses; and as by their exertions they have assisted us in establishing our freedom, we should let them, in some measure, partake of our prosperity. The General then said he would make a few observations on the objections which the gentleman had thrown out on the restrictions that might be laid on the African trade after the year 1808. On this point your delegates had to contend with the religious and political prejudices of the Eastern and Middle States, and with the interested and inconsistent opinion of Virginia, who was warmly opposed to our importing more slaves. I am of the same opinion now as I was two years ago, when I used the expressions that the gentleman has quoted, that while there remained one acre of swamp land uncleared of South Carolina, I would raise my voice against restricting the importation

of negroes. I am as thoroughly convinced as that gentleman is, that the nature of our climate, and the flat, swampy situation of our country, obliges us to cultivate our land with negroes, and that without them South Carolina would soon be a desert waste.

You have so frequently heard my sentiments on this subject that I need not now repeat them. It was alleged, by some of the members who opposed an unlimited importation, that slaves increased the weakness of any State who admitted them; that they were a dangerous species of property, which an invading enemy could easily turn against ourselves and the neighboring States, and that as we were allowed a representation for them in the House of Representatives, our influence in government would be increased in proportion as we were less able to defend ourselves. "Show some period," said the members from the Eastern States, "when it may be in our power to put a stop, if we please, to the importation of this weakness, and we will endeavor, for your convenience, to restrain the religious and political prejudices of our people on this subject."

The Middle States and Virginia made us no such proposition; they were for an immediate and total prohibition. We endeavored to obviate the objections that were made, in the best manner we could, and assigned reasons for our insisting on the importation, which there is no occasion to repeat, as they must occur to every gentleman in the house: a committee of the States was appointed in order to accommodate this matter, and after a great deal of difficulty, it was settled on the footing recited in the Constitution.

By this settlement we have secured an unlimited importation of negroes for twenty years; nor is it declared that the importation shall be then stopped; it may be continued—we have a security that the general government can never emancipate them, for no such authority is granted, and it is admitted on all hands, that the general government has no powers but what are expressly granted by the Constitution; and that all rights not expressed were reserved by the several States. We have obtained a right to recover our slaves, in whatever part of America they may take refuge, which is a right we had not before. In short, considering all circumstances, we have made the best terms, for the security of this species of property, it was in our power to make. We would have made better if we could, but on the whole I do not think them bad.

Hon. ROBERT BARNWELL. Mr. BARNWELL continued to say, I now come to the last point for consideration, I mean the clause relative to the negroes; and here I am particularly pleased with the Constitution; it has not left this matter of so much importance to us open to immediate investigation; no, it has declared that the United States shall not, at any rate, consider this matter for twenty-one years, and yet gentlemen are displeased with it.

Congress has guaranteed this right for that space of time, and at its expiration may continue it as long as they please. This question then arises, what will their interest lead them to do? The Eastern States, as the honorable gentleman says, will become the carriers of America, it will, therefore, certainly be their interest to encourage exportation to as great an extent as possible; and if the quantum of our products will be diminished by the prohibition of negroes, I appeal to the belief of every man, whether he thinks those very carriers will themselves dam up the resources from whence their profit is derived? To think so is so contradictory to the general conduct of mankind, that I am of opinion, that without we ourselves put a stop to them, the traffic for negroes will continue forever.

FEDERALIST, No. 42

BY JAMES MADISON.

It were doubtless to be wished, that the power of prohibiting the importation of slaves, had not been postponed until the year 1808, or rather that it had been suffered to have immediate operation. But it is not difficult to account either for this restriction on the general government, or for the manner in which the whole clause is expressed.

It ought to be considered as a great point gained in favor of humanity, that a period of twenty years may terminate for ever within these States, a traffic which has so long and so loudly upbraided the barbarism of modern policy; that within that period, it will receive a considerable discouragement from the Federal government, and may be totally abolished, by a concurrence of the few States which continue the unnatural traffic in the prohibitory example which has been given by so great a majority of the Union. Happy would it be for the unfortunate Africans, if an equal prospect lay before them, of being redeemed from the oppressions of their European brethren!

Attempts have been made to pervert this clause into an objection against the Constitution, by representing it on one side, as a criminal toleration of an illicit practice; and on another, as calculated to prevent voluntary and beneficial emigrations from Europe to America. I mention these misconstructions, not with a view to give them an answer, for they deserve none; but as specimens of the manner and spirit, in which some have thought fit to conduct their opposition to the proposed government.

FEDERALIST, No. 54.

BY JAMES MADISON.

All this is admitted, it will perhaps be said: but does it follow from an admission of numbers for the measure of representation, or of slaves combined with free citizens as a ratio of taxation, that slaves ought to be included in the numerical rule of representation?

Slaves are considered as property, not as persons. They ought therefore, to be comprehended in estimates of taxation, which are founded on property, and to be excluded from representation, which is regulated by a census of persons. This is the objection as I understand it; stated in its full force. I shall be equally candid in stating the reasoning which may be offered on the opposite side. We subscribe to the doctrine, might one of our Southern brethren observe, that representation relates more immediately to persons, and taxation more immediately to property; and we join in the application of this distinction to the case of our slaves.

But we must deny the fact, that slaves are considered merely as property, and in no respect whatever as persons. The true state of the case is, that they partake of both these qualities, being considered by our laws, in some respects as persons, and in other respects as property.

In being compelled to labor, not for himself; but for a master; in being vendible by one master to another master; and in being subject at all times to be restrained in his liberty and chastised in his body by the capricious will of another; the slave may appear to be degraded from the human rank, and classed with those irrational animals which fall under the legal denomination of property. In being protected, on the other hand, in his life, and in his limbs, against the violence of all others, even the master of his

labor and his liberty; and in being punishable himself for all violence committed against others; the slave is no less evidently regarded by the law as a member of the society, not as a part of the irrational creation; as a moral person, not as a mere article of property. The Federal Constitution, therefore, decides with great propriety on the case of our slaves, when it views them in the mixed character of persons and property. This is in fact their true character. It is the character bestowed on them by the laws under which they live, and it will not be denied, that these are the proper criterion; because it is only under the pretext, that the laws have transformed the negroes into subjects of property, that a place is disputed them in the computation of numbers; and it is admitted, that if the laws were to restore the rights which have been taken away, the negroes could no longer be refused an equal share of representation with the other inhabitants.

This question may be placed in another light. It is agreed on all sides, that numbers are the best scale of wealth and taxation, as they are the only proper scale of representation. Would the convention have been impartial or consistent, if they had rejected the slaves from the list of inhabitants, when the shares of representation were to be calculated; and inserted them on the lists when the tariff of contributions was to be adjusted?

Could it be reasonably expected, that the Southern States would concur in a system, which considered their slaves in some degree as men, when burdens were to be imposed, but refused to consider them in the same light, when advantages were to be conferred?

Might not some surprise also be expressed, that those who reproach the Southern States with the barbarous policy of considering as property a part of their human brethren, should themselves contend, that the government to which all the States are to be parties, ought to consider this unfortunate race more completely in the unnatural light of property, than the very laws of which they complain?

It may be replied, perhaps, that slaves are not included in the estimate of representatives in any of the States possessing them. They neither vote themselves, nor increase the votes of their masters. Upon what principle, then, ought they to be taken into the Federal estimate of representation? In

rejecting them altogether, the Constitution would, in this respect, have followed the very laws which have been appealed to the proper guide.

This objection is repelled by a single observation. It is a fundamental principle of the proposed Constitution, that as the aggregate number of representatives allotted to the several States is to be determined by a Federal rule, founded on the aggregate number of inhabitants; so, the right of choosing this allotted number in each State, is to be exercised by such part of the inhabitants, as the State itself may designate. The qualifications on which the right of suffrage depends, are not perhaps the same in any two States. In some of the States the difference is very material. In every State, a certain proportion of inhabitants are deprived of this right by the Constitution of the State, who will be included in the census by which the Federal Constitution apportions the representatives. In this point of view, the Southern States might retort the complaint, by insisting, that the principle laid down by the convention required that no regard should be had to the policy of particular States towards their own inhabitants; and consequently, that the slaves, as inhabitants, should have been admitted into the census according to their full number, in like manner with other inhabitants, who, by the policy of other States, are not admitted to all the rights of citizens. A rigorous adherence, however, to this principle is waived by those who would be gainers by it. All that they ask, is that equal moderation be shown on the other side. Let the case of the slaves be considered, as it is in truth, a peculiar one. Let the compromising expedient of the Constitution be mutually adopted, which regards them as inhabitants, but as debased by servitude below the equal level of free inhabitants, which regards the *slave* as divested of two-fifths of the *man*.

DEBATES IN FIRST CONGRESS.

LLOYD'S DEBATES.

May 13, 1789.

Mr. PARKER (of Va.) moved to insert a clause in the bill, imposing a duty on the importation of slaves of ten dollars each person. He was sorry that the Constitution prevented Congress from prohibiting the importation altogether; he thought it a defect in that instrument that it allowed of such actions, it was contrary to the revolution principles, and ought not to be permitted; but as he could not do all the good he desired, he was willing to do what lay in his power. He hoped such a duty as he moved for would prevent, in some degree, this irrational and inhuman traffic; if so, he should feel happy from the success of his motion.

Mr. SMITH (of South Carolina,) hoped that such an important and serious proposition as this would not be hastily adopted; it was a very late moment for the introduction of new subjects. He expected the committee had got through the business, and would rise without discussing any thing further; at least, if gentlemen were determined on considering the present motion, he hoped they would delay for a few days, in order to give time for an examination of the subject. It was certainly a matter big with the most serious consequences to the State he represented; he did not think any one thing that had been discussed was so important to them, and the welfare of the Union, as the question now brought forward, but he was not prepared to enter on any argument, and therefore requested the motion might either be withdrawn or laid on the table.

Mr. SHERMAN (of Ct.) approved of the object of the motion, but he did not think this bill was proper to embrace the subject. He could not reconcile himself to the insertion of human beings as an article of duty, among goods, wares and merchandise. He hoped it would be withdrawn for the present, and taken up hereafter as an independent subject.

Mr. JACKSON, (of Geo.) observing the quarter from which this motion came, said it did not surprise him, though it might have that effect on others. He recollected that Virginia was an old settled State, and had her complement of slaves, so she was careless of recruiting her numbers by this means; the natural increase of her imported blacks were sufficient for their purpose; but he thought gentlemen ought to let their neighbors get supplied before they imposed such a burden upon the importation. He knew this business was viewed in an odious light to the Eastward, because the people were capable of doing their own work, and had no occasion for slaves; but gentlemen will have some feeling for others; they will not try to throw all the weight upon others, who have assisted in lightening their burdens; they do not wish to charge us for every comfort and enjoyment of life, and at the same time take away the means of procuring them; they do not wish to break us down at once.

He was convinced, from the inaptitude of the motion, and the want of time to consider it, that the candor of the gentleman would induce him to withdraw it for the present; and if ever it came forward again, he hoped it would comprehend the white slaves as well as black, who were imported from all the goals of Europe; wretches, convicted of the most flagrant crimes, were brought in and sold without any duty whatever. He thought that they ought to be taxed equal to the Africans, and had no doubt but the constitutionality and propriety of such a measure was equally apparent as the one proposed.

Mr. TUCKER (of S.C.) thought it unfair to bring in such an important subject at a time when debate was almost precluded. The committee had gone through the impost bill, and the whole Union were impatiently expecting the result of their deliberations, the public must be disappointed and much revenue lost, or this question cannot undergo that full discussion which it deserves.

We have no right, said he, to consider whether the importation of slaves is proper or not; the Constitution gives us no power on that point, it is left to the States to judge of that matter as they see fit. But if it was a business the gentleman was determined to discourage, he ought to have brought his motion forward sooner, and even then not have introduced it without previous notice. He hoped the committee would reject the motion, if it was

not withdrawn; he was not speaking so much for the State he represented, as for Georgia, because the State of South Carolina had a prohibitory law, which could be renewed when its limitation expired.

Mr. PARKER (of Va.,) had ventured to introduce the subject after full deliberation, and did not like to withdraw it. Although the gentleman from Connecticut (Mr. SHERMAN) had said, that they ought not to be enumerated with goods, wares, and merchandise, he believed they were looked upon by the African traders in this light; he knew it was degrading the human species to annex that character to them; but he would rather do this than continue the actual evil of importing slaves a moment longer. He hoped Congress would do all that lay in their power to restore to human nature its inherent privileges, and if possible wipe off the stigma which America labored under. The inconsistency in our principles, with which we are justly charged, should be done away; that we may shew by our actions the pure beneficence of the doctrine we held out to the world in our declaration of independence.

Mr. SHERMAN (of Ct.,) thought the principles of the motion and the principles of the bill were inconsistent; the principle of the bill was to raise revenue, the principle of the motion to correct a moral evil. Now, considering it as an object of revenue, it would be unjust, because two or three States would bear the whole burden, while he believed they bore their full proportion of all the rest. He was against receiving the motion into this bill, though he had no objection to taking it up by itself, on the principles of humanity and policy; and therefore would vote against it if it was not withdrawn.

Mr. AMES (of Mass.,) joined the gentleman last up. No one could suppose him favorable to slavery, he detested it from his soul, but he had some doubts whether imposing a duty on the importation, would not have the appearance of countenancing the practice; it was certainly a subject of some delicacy, and no one appeared to be prepared for the discussion, he therefore hoped the motion would be withdrawn.

Mr. LIVERMORE. Was not against the principle of the motion, but in the present case he conceived it improper. If negroes were goods, wares, or merchandise, they came within the title of the bill; if they were not, the bill

would be inconsistent; but if they are goods, wares or merchandise, the 5 per cent ad valorem, will embrace the importation; and the duty of 5 per cent is nearly equal to 10 dollars per head, so there is no occasion to add it even on the score of revenue.

Mr. JACKSON (of Ga.,) said it was the fashion of the day, to favor the liberty of slaves; he would not go into a discussion of the subject, but he believed it was capable of demonstration that they were better off in their present situation, than they would be if they were manumitted; what are they to do if they are discharged? Work for a living? Experience has shewn us they will not. Examine what is become of those in Maryland, many of them have been set free in that State; did they turn themselves to industry and useful pursuits? No, they turn out common pickpockets, petty larceny villains; and is this mercy, forsooth, to turn them into a way in which they must lose their lives,—for where they are thrown upon the world, void of property and connections, they cannot get their living but by pilfering. What is to be done for compensation? Will Virginia set all her negroes free? Will they give up the money they cost them, and to whom? When this practice comes to be tried there, the sound of liberty will lose those charms which make it grateful to the ravished ear.

But our slaves are not in a worse situation than they were on the coast of Africa; it is not uncommon there for the parents to sell their children in peace; and in war the whole are taken and made slaves together. In these cases it is only a change of one slavery for another; and are they not better here, where they have a master bound by the ties of interest and law to provide for their support and comfort in old age, or infirmity, in which, if they were free, they would sink under the pressure of woe for want of assistance.

He would say nothing of the partiality of such a tax, it was admitted by the avowed friends of the measure; Georgia in particular would be oppressed. On this account it would be the most odious tax Congress could impose.

Mr. SCHUREMAN (of N.J.) hoped the gentleman would withdraw his motion, because the present was not the time or place for introducing the business; he thought it had better be brought forward in the House, as a

distinct proposition. If the gentleman persisted in having the question determined, he would move the previous question if he was supported.

Mr. MADISON, (of Va.) I cannot concur with gentlemen who think the present an improper time or place to enter into a discussion of the proposed motion; if it is taken up in a separate view, we shall do the same thing at a greater expense of time. But the gentlemen say that it is improper to connect the two objects, because they do not come within the title of the bill. But this objection may be obviated by accommodating the title to the contents; there may be some inconsistency in combining the ideas which gentlemen have expressed, that is, considering the human race as a species of property; but the evil does not arise from adopting the clause now proposed, it is from the importation to which it relates. Our object in enumerating persons on paper with merchandise, is to prevent the practice of actually treating them as such, by having them, in future, forming part of the cargoes of goods, wares, and merchandise to be imported into the United States. The motion is calculated to avoid the very evil intimated by the gentleman. It has been said that this tax will be partial and oppressive: but suppose a fair view is taken of this subject, I think we may form a different conclusion. But if it be partial or oppressive, are there not many instances in which we have laid taxes of this nature? Yet are they not thought to be justified by national policy? If any article is warranted on this account, how much more are we authorized to proceed on this occasion? The dictates of humanity, the principles of the people, the national safety and happiness, and prudent policy requires it of us; the constitution has particularly called our attention to it—and of all the articles contained in the bill before us, this is one of the last I should be willing to make a concession upon so far as I was at liberty to go, according to the terms of the constitution or principles of justice—I would not have it understood that my zeal would carry me to disobey the inviolable commands of either.

I understood it had been intimated, that the motion was inconsistent or unconstitutional. I believe, sir, my worthy colleague has formed the words with a particular reference to the Constitution; any how, so far as the duty is expressed, it perfectly accords with that instrument; if there are any inconsistencies in it, they may be rectified; I believe the intention is well understood, but I am far from supposing the diction improper. If the description of the persons does not accord with the ideas of the gentleman

from Georgia, (Mr. JACKSON,) and his idea is a proper one for the committee to adopt, I see no difficulty in changing the phraseology.

I conceive the Constitution, in this particular, was formed in order that the government, whilst it was restrained from laying a total prohibition, might be able to give some testimony of the sense of America, with respect to the African trade. We have liberty to impose a tax or duty upon the importation of such persons as any of the States now existing shall think proper to admit; and this liberty was granted, I presume, upon two considerations—the first was, that until the time arrived when they might abolish the importation of slaves, they might have an opportunity of evidencing their sentiments, on the policy and humanity of such a trade; the other was that they might be taxed in due proportion with other articles imported; for if the possessor will consider them as property, of course they are of value and ought to be paid for. If gentlemen are apprehensive of oppression from the weight of the tax, let them make an estimate of its proportion, and they will find that it very little exceeds five per cent ad valorem, so that they will gain very little by having them thrown into that mass of articles, whilst by selecting them in the manner proposed, we shall fulfil the prevailing expectation of our fellow citizens, and perform our duty in executing the purposes of the Constitution. It is to be hoped that by expressing a national disapprobation of this trade, we may destroy it, and save ourselves from reproaches, and our posterity the imbecility ever attendant on a country filled with slaves.

I do not wish to say anything harsh, to the hearing of gentlemen who entertain different sentiments from me, or different sentiments from those I represent; but if there is any one point in which it is clearly the policy of this nation, so far as we constitutionally can, to vary the practice of obtaining under some of the State governments, it is this; but it is certain a majority of the States are opposed to this practice, therefore, upon principle, we ought to discountenance it as far as is in our power.

If I was not afraid of being told that the representatives of the several States, are the best able to judge of what is proper and conducive to their particular prosperity, I should venture to say that it is as much the interest of Georgia and South Carolina, as of any in the Union. Every addition they receive to their number of slaves, tends to weaken them and renders them less capable

of self defence. In case of hostilities with foreign nations, they will be the means of inviting attack instead of repelling invasion. It is a necessary duty of the general government to protect every part of the empire against danger, as well internal as external; every thing therefore which tends to increase this danger, though it may be a local affair, yet if it involves national expense or safety, becomes of concern to every part of the Union, and is a proper subject for the consideration of those charged with the general administration of the government. I hope, in making these observations, I shall not be understood to mean that a proper attention ought not to be paid to the local opinions and circumstances of any part of the United States, or that the particular representatives are not best able to judge of the sense of their immediate constituents.

If we examine the proposed measure by the agreement there is between it, and the existing State laws, it will show us that it is patronized by a very respectable part of the Union. I am informed that South Carolina has prohibited the importation of slaves for several years yet to come; we have the satisfaction then of reflecting that we do nothing more than their own laws do at this moment. This is not the case with one State. I am sorry that her situation is such as to seem to require a population of this nature, but it is impossible in the nature of things, to consult the national good without doing what we do not wish to do, to some particular part. Perhaps gentlemen contend against the introduction of the clause, on too slight grounds. If it does not conform with the title of the bill, alter the latter; if it does not conform to the precise terms of the Constitution, amend it. But if it will tend to delay the whole bill, that perhaps will be the best reason for making it the object of a separate one. If this is the sense of the committee I shall submit.

Mr. GERRY (of Mass.) thought all duties ought to be laid as equal as possible. He had endeavored to enforce this principle yesterday, but without the success he wished for, he was bound by the principles of justice therefore to vote for the proposition; but if the committee were desirous of considering the subject fully by itself, he had no objection, but he thought when gentlemen laid down a principle, they ought to support it generally.

Mr. BURKE (of S.C.) said, gentlemen were contending for nothing; that the value of a slave, averaged about £80, and the duty on that sum at five per

cent, would be ten dollars, as congress could go no farther than that sum, he conceived it made no difference whether they were enumerated or left in the common mass.

Mr. MADISON, (of Va.) If we contend for nothing, the gentlemen who are opposed to us do not contend for a great deal; but the question is, whether the five per cent ad valorem, on all articles imported, will have any operation at all upon the introduction of slaves, unless we make a particular enumeration on this account; the collector may mistake, for he would not presume to apply the term goods, wares, and merchandise to any person whatsoever. But if that general definition of goods, wares and merchandise are supposed to include African Slaves, why may we not particularly enumerate them, and lay the duty pointed out by the Constitution, which, as gentlemen tell us, is no more than five per cent upon their value; this will not increase the burden upon any, but it will be that manifestation of our sense, expected by our constituents, and demanded by justice and humanity.

Mr. BLAND (of Va.) had no doubt of the propriety or good policy of this measure. He had made up his mind upon it, he wished had never been introduced into America; but if it was impossible at this time to cure the evil, he was very willing to join in any measures that would prevent its extending farther. He had some doubts whether the prohibitory laws of the States were not in part repealed. Those who had endeavored to discountenance this trade, by laying a duty on the importation, were prevented by the Constitution from continuing such regulation, which declares, that no State shall lay any impost or duties on imports. If this was the case, and he suspected pretty strongly that it was, the necessity of adopting the proposition of his colleague was now apparent.

Mr. SHERMAN (of Ct.) said, the Constitution does not consider these persons as a species of property; it speaks of them as persons, and says, that a tax or duty may be imposed on the importation of them into any State which shall permit the same, but they have no power to prohibit such importation for twenty years. But Congress have power to declare upon what terms persons coming into the United States shall be entitled to citizenship; the rule of naturalization must however be uniform. He was convinced there were others ought to be regulated in this particular, the importation of whom was of an evil tendency, he meant convicts

particularly. He thought that some regulation respecting them was also proper; but it being a different subject, it ought to be taken up in a different manner.

Mr. MADISON (of Va.) was led to believe, from the observation that had fell from the gentlemen, that it would be best to make this the subject of a distinct bill: he therefore wished his colleague would withdraw his motion, and move in the house for leave to bring in a bill on the same principles.

Mr. PARKER (of Va.) consented to withdraw his motion, under a conviction that the house was fully satisfied of its propriety. He knew very well that these persons were neither goods, nor wares, but they were treated as articles of merchandise. Although he wished to get rid of this part of his property, yet he should not consent to deprive other people of theirs by any act of his without their consent.

The committee rose, reported progress, and the house adjourned.

FEBRUARY 11th, 1790.

Mr. LAWRANCE (of New York,) presented an address from the society of Friends, in the City of New York; in which they set forth their desire of co-operating with their Southern brethren.

Mr. HARTLEY (of Penn.) then moved to refer the address of the annual assembly of Friends, held at Philadelphia, to a committee; he thought it a mark of respect due so numerous and respectable a part of the community.

Mr. WHITE (of Va.) seconded the motion.

Mr. SMITH, (of S.C.) However respectable the petitioners may be, I hope gentlemen will consider that others equally respectable are opposed to the object which is aimed at, and are entitled to an opportunity of being heard before the question is determined. I flatter myself gentlemen will not press the point of commitment to-day, it being contrary to our usual mode of procedure.

Mr. FITZSIMONS (of Penn.) If we were now about to determine the final question, the observation of the gentleman from South Carolina would apply; but, sir, the present question does not touch upon the merits of the

case; it is merely to refer the memorial to a committee, to consider what is proper to be done; gentlemen, therefore, who do not mean to oppose the commitment to-morrow, may as well agree to it to-day, because it will tend to save the time of the house.

Mr. JACKSON (of Geo.) wished to know why the second reading was to be contended for to-day, when it was diverting the attention of the members from the great object that was before the committee of the whole? Is it because the feelings of the Friends will be hurt, to have their affair conducted in the usual course of business? Gentlemen who advocate the second reading to-day, should respect the feelings of the members who represent that part of the Union which is principally to be affected by the measure. I believe, sir, that the latter class consists of as useful and as good citizens as the petitioners, men equally friends to the revolution, and equally susceptible of the refined sensations of humanity and benevolence. Why then should such particular attention be paid to them, for bringing forward a business of questionable policy? If Congress are disposed to interfere in the importation of slaves, they can take the subject up without advisers, because the Constitution expressly mentions all the power they can exercise on the subject.

Mr. SHERMAN (of Conn.) suggested the idea of referring it to a committee, to consist of a member from each State, because several States had already made some regulations on this subject. The sooner the subject was taken up he thought it would be the better.

Mr. PARKER, (of Va.) I hope, Mr. Speaker, the petition of these respectable people, will be attended to with all the readiness the importance of its object demands; and I cannot help expressing the pleasure I feel in finding so considerable a part of the community attending to matters of such momentous concern to the future prosperity and happiness of the people of America. I think it my duty, as a citizen of the Union, to espouse their cause; and it is incumbent upon every member of this house to sift the subject well, and ascertain what can be done to restrain a practice so nefarious. The Constitution has authorized us to levy a tax upon the importation of such persons as the States shall authorize to be admitted. I would willingly go to that extent; and if any thing further can be devised to

discountenance the trade, consistent with the terms of the Constitution, I shall cheerfully give it my assent and support.

Mr. MADISON, (of Va.) The gentleman from Pennsylvania, (Mr. FITZSIMONS) has put this question on its proper ground. If gentlemen do not mean to oppose the commitment to-morrow, they may as well acquiesce in it to-day; and I apprehend gentlemen need not be alarmed at any measure it is likely Congress should take; because they will recollect, that the Constitution secures to the individual States the right of admitting, if they think proper, the importation of slaves into their own territory, for eighteen years yet unexpired; subject, however, to a tax, if Congress are disposed to impose it, of not more than ten dollars on each person.

The petition, if I mistake not, speaks of artifices used by self-interested persons to carry on this trade; and the petition from New York states a case that may require the consideration of Congress. If anything is within the Federal authority to restrain such violation of the rights of nations, and of mankind, as is supposed to be practised in some parts of the United States, it will certainly tend to the interest and honor of the community to attempt a remedy, and is a proper subject for our discussion. It may be, that foreigners take advantage of the liberty afforded them by the American trade, to employ our shipping in the slave trade between Africa and the West Indies, when they are restrained from employing their own by restrictive laws of their nation. If this is the case, is there any person of humanity that would not wish to prevent them? Another consideration why we should commit the petition is, that we may give no ground of alarm by a serious opposition, as if we were about to take measures that were unconstitutional.

Mr. STONE (of Md.) feared that if Congress took any measures, indicative of an intention to interfere with the kind of property alluded to, it would sink it in value very considerably, and might be injurious to a great number of the citizens, particularly in the Southern States.

He thought the subject was of general concern, and that the petitioners had no more right to interfere with it than any other members of the community. It was an unfortunate circumstance, that it was the property of sects to imagine they understood the rights of human nature better than all the world

beside; and that they would, in consequence, be meddling with concerns in which they had nothing to do.

As the petition relates to a subject of a general nature, it ought to lie on the table, as information; he would never consent to refer petitions, unless the petitioners were exclusively interested. Suppose there was a petition to come before us from a society, praying us to be honest in our transactions, or that we should administer the Constitution according to its intention—what would you do with a petition of this kind? Certainly it would remain on your table. He would, nevertheless, not have it supposed, that the people had not a right to advise and give their opinion upon public measures; but he would not be influenced by that advice or opinion, to take up a subject sooner than the convenience of other business would admit. Unless he changed his sentiments, he would oppose the commitment.

Mr. BURKE (of S.C.) thought gentlemen were paying attention to what did not deserve it. The men in the gallery had come here to meddle in a business with which they had nothing to do; they were volunteering it in the cause of others, who neither expected nor desired it. He had a respect for the body of Quakers, but, nevertheless, he did not believe they had more virtue, or religion, than other people, nor perhaps so much, if they were examined to the bottom, notwithstanding their outward pretences. If their petition is to be noticed, Congress ought to wait till counter applications were made, and then they might have the subject more fairly before them. The rights of the Southern States ought not to be threatened, and their property endangered, to please people who were to be unaffected by the consequences.

Mr. HARTLEY (of Penn.) thought the memorialists did not deserve to be aspersed for their conduct, if influenced by motives of benignity, they solicited the Legislature of the Union to repel, as far as in their power, the increase of a licentious traffic. Nor do they merit censure, because their behavior has the appearance of more morality than other people's. But it is not for Congress to refuse to hear the applications of their fellow citizens, while those applications contain nothing unconstitutional or offensive. What is the object of the address before us? It is intended to bring before this House a subject of great importance to the cause of humanity; there are certain facts to be enquired into, and the memorialists are ready to give all

the information in their power; they are waiting, at a great distance from their homes, and wish to return; if, then, it will be proper to commit the petition to-morrow, it will be equally proper to-day, for it is conformable to our practice, beside, it will tend to their conveniency.

Mr. LAWRANCE (of N.Y.) The gentleman from South Carolina says, the petitioners are of a society not known in the laws or Constitution. Sir, in all our acts, as well as in the Constitution, we have noticed this Society; or why is it that we admit them to affirm, in cases where others are called upon to swear? If we pay this attention to them, in one instance, what good reason is there for contemning them in another? I think the gentleman from Maryland (Mr. STONE,) carries his apprehensions too far, when he fears that negro-property will fall in value, by the suppression of the slave-trade; not that I suppose it immediately in the power of Congress to abolish a traffic which is a disgrace to human nature; but it appears to me, that, if the importation was crushed, the value of a slave would be increased instead of diminished; however, considerations of this kind have nothing to do with the present question; gentlemen may acquiesce in the commitment of the memorial, without pledging themselves to support its object.

Mr. JACKSON, (of Ga.) I differ much in opinion with the gentleman last up. I apprehend if, through the interference of the general government, the slave trade was abolished, it would evince to the people a disposition toward a total emancipation, and they would hold their property in jeopardy. Any extraordinary attention of Congress to this petition may have, in some degree, a similar effect. I would beg to ask those, then, who are so desirous of freeing the negroes, if they have funds sufficient to pay for them? If they have, they may come forward on that business with some propriety; but, if they have not, they should keep themselves quiet, and not interfere with a business in which they are not interested. They may as well come forward, and solicit Congress to interdict the West India trade, because it is injurious to the morals of mankind; from thence we import rum, which has a debasing influence upon the consumer. But, sir, is the whole morality of the United States confined to the Quakers? Are they the only people whose feelings are to be consulted on this occasion? Is it to them we owe our present happiness? Was it they who formed the Constitution? Did they, by their arms, or contributions, establish our independence? I believe they were generally opposed to that measure. Why, then, on their application,

shall we injure men, who, at the risk of their lives and fortunes, secured to the community their liberty and property? If Congress pay any uncommon degree of attention to their petition, it will furnish just ground of alarm to the Southern States. But, why do these men set themselves up, in such a particular manner, against slavery? Do they understand the rights of mankind, and the disposition of Providence better than others? If they were to consult that Book which claims our regard, they will find that slavery is not only allowed, but commended. Their Saviour, who possessed more benevolence and commiseration than they pretend to, has allowed of it. And if they fully examine the subject, they will find that slavery has been no novel doctrine since the days of Cain. But be these things as they may, I hope the House will order the petition to lie on the table, in order to prevent alarming our Southern brethren.

Mr. SEDGWICK, (of Mass.) If it was a serious question, whether the Memorial should be committed or not, I would not urge it at this time; but that cannot be a question for a moment, if we consider our relative situation with the people. A number of men,—who are certainly very respectable, and of whom, as a society, it may be said with truth, that they conform their moral conduct to their religious tenets, as much as any people in the whole community,—come forward and tell you, that you may effect two objects by the exercise of a Constitutional authority which will give great satisfaction; on the one hand you may acquire revenue, and on the other, restrain a practice productive of great evil. Now, setting aside the religious motives which influenced their application, have they not a right, as citizens, to give their opinion of public measures? For my part I do not apprehend that any State, or any considerable number of individuals in any State, will be seriously alarmed at the commitment of the petition, from a fear that Congress intend to exercise an unconstitutional authority, in order to violate their rights; I believe there is not a wish of the kind entertained by any member of this body. How can gentlemen hesitate then to pay that respect to a memorial which it is entitled to, according to the ordinary mode of procedure in business? Why shall we defer doing that till to-morrow, which we can do to-day? for the result, I apprehend, will be the same in either case.

Mr. Smith, (of S.C.) The question, I apprehend, is, whether we will take the petition up for a second reading, and not whether it shall be committed?

Now, I oppose this, because it is contrary to our usual practice, and does not allow gentlemen time to consider of the merits of the prayer; perhaps some gentlemen may think it improper to commit it to so large a committee as has been mentioned; a variety of causes may be supposed to show that such a hasty decision is improper; perhaps the prayer of it is improper. If I understood it right, on its first reading, though, to be sure, I did not comprehend perfectly all that the petition contained, it prays that we should take measures for the abolition of the slave trade; this is desiring an unconstitutional act, because the constitution secures that trade to the States, independent of congressional restrictions, for the term of twenty-one years. If, therefore, it prays for a violation of constitutional rights, it ought to be rejected, as an attempt upon the virtue and patriotism of the house.

Mr. BOUDINOT, (of N.J.) It has been said that the Quakers have no right to interfere in this business; I am surprised to hear this doctrine advanced, after it has been so lately contended, and settled, that the people have a right to assemble and petition for redress of grievances; it is not because the petition comes from the society of Quakers that I am in favor of the commitment, but because it comes from citizens of the United States, who are as equally concerned in the welfare and happiness of their country as others. There certainly is no foundation for the apprehensions which seem to prevail in gentlemen's minds. If the petitioners were so uninformed: as to suppose that Congress could be guilty of a violation of the Constitution, yet, I trust we know our duty better than to be led astray by an application from any man, or set of men whatever. I do not consider the merits of the main question to be before us; it will be time enough to give our opinions upon that, when the committee have reported. If it is in our power, by recommendation, or any other way, to put a stop to the slave trade in America, I do not doubt of its policy; but how far the Constitution will authorize us to attempt to depress it, will be a question well worthy of our consideration.

Mr. SHERMAN (of Conn.) observed, that the petitioners from New York, stated that they had applied to the legislature of that State, to prohibit certain practices which they conceived to be improper, and which tended to injure the well-being of the community; that the legislature had considered the application, but had applied no remedy, because they supposed that power was exclusively vested in the general government, under the

Constitution of the United States; it would, therefore, be proper to commit that petition, in order to ascertain what were the powers of the general government, in the case doubted by the legislature of New York.

Mr. GERRY (of Mass.) thought gentlemen were out of order in entering upon the merits of the main question at this time, when they were considering the expediency of committing the petition; he should, therefore, not follow them further in that track than barely to observe, that it was the right of the citizens to apply for redress, in every case they conceived themselves aggrieved in; and it was the duty of Congress to afford redress as far as is in their power. That their Southern brethren had been betrayed into the slave trade by the first settlers, was to be lamented; they were not to be reflected on for not viewing this subject in a different light, the prejudice of education is eradicated with difficulty; but he thought nothing would excuse the general government for not exerting itself to prevent, as far as they constitutionally could, the evils resulting from such enormities as were alluded to by the petitioners; and the same considerations induced him highly to commend the part the society of Friends had taken; it was the cause of humanity they had interested themselves in, and he wished, with them, to see measures pursued by every nation, to wipe off the indelible stain which the slave trade had brought upon all who were concerned in it.

Mr. MADISON (of Va.) thought the question before the committee was no otherwise important than as gentlemen made it so by their serious opposition. Did they permit the commitment of the Memorial, as a matter of course, no notice would be taken of it out of doors; it could never be blown up into a decision of the question respecting the discouragement of the African slave trade, nor alarm the owners with an apprehension that the general government were about to abolish slavery in all the States; such things are not contemplated by any gentleman; but, to appearance, they decide the question more against themselves than would be the case if it was determined on its real merits, because gentlemen may be disposed to vote for the commitment of a petition, without any intention of supporting the prayer of it.

Mr. WHITE (of Va.) would not have seconded the motion, if he had thought it would have brought on a lengthy debate. He conceived that a business of this kind ought to be decided without much discussion; it had constantly

been the practice of the house, and he did not suppose there was any reason for a deviation.

Mr. PAGE (of Va.) said, if the memorial had been presented by any individual, instead of the respectable body it was, he should have voted in favor of a commitment, because it was the duty of the legislature to attend to subjects brought before them by their constituents; if, upon inquiry, it was discovered to be improper to comply with the prayer of the petitioners, he would say so, and they would be satisfied.

Mr. STONE (of Md.) thought the business ought to be left to take its usual course; by the rules of the house, it was expressly declared, that petitions, memorials, and other papers, addressed to the house, should not be debated or decided on the day they were first read.

Mr. BALDWIN (of Ga.) felt at a loss to account why precipitation was used on this occasion, contrary to the customary usage of the house; he had not heard a single reason advanced in favor of it. To be sure it was said the petitioners are a respectable body of men—he did not deny it—but, certainly, gentlemen did not suppose they were paying respect to them, or to the house, when they urged such a hasty procedure; anyhow it was contrary to his idea of respect, and the idea the house had always expressed, when they had important subjects under consideration; and, therefore, he should be against the motion. He was afraid that there was really a little volunteering in this business, as it had been termed by the gentleman from Georgia.

Mr. HUNTINGTON (of Conn.) considered the petitioners as much disinterested as any person in the United States; he was persuaded they had an aversion to slavery; yet they were not singular in this, others had the same; and he hoped when Congress took up the subject, they would go as far as possible to prohibit the evil complained of. But he thought that would better be done by considering it in the light of revenue. When the committee of the whole, on the finance business, came to the ways and means, it might properly be taken into consideration, without giving any ground for alarm.

Mr. TUCKER, (of S.C.) I have no doubt on my mind respecting what ought to be done on this occasion; so far from committing the memorial, we ought to dismiss it without further notice. What is the purport of the memorial? It

is plainly this; to reprobate a particular kind of commerce, in a moral view, and to request the interposition of Congress to effect its abrogation. But Congress have no authority, under the constitution, to do more than lay a duty of ten dollars upon each person imported; and this is a political consideration, not arising from either religion or morality, and is the only principle upon which we can proceed to take it up. But what effect do these men suppose will arise from their exertions? Will a duty of ten dollars diminish the importation? Will the treatment be better than usual? I apprehend it will not, nay, it may be worse. Because an interference with the subject may excite a great degree of restlessness in the minds of those it is intended to serve, and that may be a cause for the masters to use more rigor towards them, than they would otherwise exert; so that these men seem to overshoot their object. But if they will endeavor to procure the abolition of the slave trade, let them prefer their petitions to the State legislatures, who alone have the power of forbidding the importation; I believe their applications there would be improper; but if they are any where proper, it is there. I look upon the address then to be ill-judged, however good the intention of the framers.

Mr. SMITH (of S.C.) claimed it as a right, that the petition should lay over till to-morrow.

Mr. BOUDINOT (of N.J.) said it was not unusual to commit petitions on the day they were presented; and the rules of the house admitted the practice, by the qualification which followed the positive order, that petitions should not be decided on the day they were first read, "unless where the house shall direct otherwise."

Mr. SMITH (of S.C.) declared his intention of calling the yeas and nays, if gentlemen persisted in pressing the question.

Mr. CLYMER (of Penn.) hoped the motion would be withdrawn for the present, and the business taken up in course to-morrow; because, though he respected the memorialists, he also respected order and the situation of the members.

Mr. FITZSIMONS (of Penn.) did not recollect whether he moved or seconded the motion, but if he had, he should not withdraw it on account of the threat of calling the yeas and nays.

Mr. BALDWIN (of Ga.) hoped the business would be conducted with temper and moderation, and that gentlemen would concede and pass the subject over for a day at least.

Mr. SMITH (of S.C.) had no idea of holding out a threat to any gentleman. If the declaration of an intention to call the yeas and nays was viewed by gentlemen in that light, he would withdraw that call.

Mr. WHITE (of Va.) hereupon withdrew his motion. And the address was ordered to lie on the table.

FEBRUARY 12th, 1790.

The following memorial was presented and read:

"To the Senate and House of Representatives of the United States: The memorial of the Pennsylvania Society for promoting the abolition of slavery, the relief of free negroes unlawfully held in bondage, and the improvement of the condition of the African race, respectfully sheweth: That from a regard for the happiness of mankind, an association was formed several years since in this State, by a number of her citizens, of various religious denominations, for promoting the abolition of slavery, and for the relief of those unlawfully held in bondage. A just and acute conception of the true principles of liberty, as it spread through the land, produced accessions to their numbers, many friends to their cause, and a legislative cooperation with their views, which, by the blessing of Divine Providence, have been successfully directed to the relieving from bondage a large number of their fellow creatures of the African race. They have also the satisfaction to observe, that, in consequence of that spirit of philanthropy and genuine liberty which is generally diffusing its beneficial influence, similar institutions are forming at home and abroad. That mankind are all formed by the same Almighty Being, alike objects of his care, and equally designed for the enjoyment of happiness, the Christian religion teaches us to believe, and the political creed of Americans fully coincides with the position. Your memorialists, particularly engaged in attending to the distresses arising from slavery, believe it their indispensable duty to present this subject to your notice. They have observed with real satisfaction, that many important and salutary powers are vested in you for 'promoting the welfare and securing the blessings of liberty to the people of the United

States;' and as they conceive, that these blessings ought rightfully to be administered without distinction of color, to all descriptions of people, so they indulge themselves in the pleasing expectation, that nothing which can be done for the relief of the unhappy objects of their care, will be either omitted or delayed. From a persuasion that equal liberty was originally the portion, and is still the birth-right of all men, and influenced by the strong ties of humanity and the principles of their institution, your memorialists conceived themselves bound to use all justifiable endeavors to loosen the bands of slavery, and promote a general enjoyment of the blessings of freedom. Under these impressions, they earnestly entreat your serious attention to the subject of slavery; that you will be pleased to countenance the restoration of liberty to those unhappy men, who alone, in this land of freedom, are degraded into perpetual bondage, and who, amidst the general joy of surrounding freemen, are groaning in servile subjection; that you will devise means for removing this inconsistency from the character of the American people; that you will promote mercy and justice towards this distressed race, and that you will step to the very verge of the power vested in you, for discouraging every species of traffic in the persons of our fellow-men.

"BENJAMIN FRANKLIN, *President*.

"PHILADELPHIA, *February 3, 1790.*"

Mr. HARTLEY (of Penn.) then called up the memorial presented yesterday, from the annual meeting of Friends at Philadelphia, for a second reading; whereupon the same was read a second time, and moved to be committed.

Mr. TUCKER (of S.C.) was sorry the petition had a second reading, as he conceived it contained an unconstitutional request, and from that consideration he wished it thrown aside. He feared the commitment of it would be a very alarming circumstance to the Southern States; for if the object was to engage Congress in an unconstitutional measure, it would be considered as an interference with their rights, the people would become very uneasy under the government, and lament that they ever put additional powers into their hands. He was surprised to see another memorial on the same subject, and that signed by a man who ought to have known the constitution better. He thought it a mischievous attempt, as it respected the

persons in whose favor it was intended. It would buoy them up with hopes, without a foundation, and as they could not reason on the subject, as more enlightened men would, they might be led to do what they would be punished for, and the owners of them, in their own defence, would be compelled to exercise over them a severity they were not accustomed to. Do these men expect a general emancipation of slaves by law? This would never be submitted to by the Southern States without a civil war. Do they mean to purchase their freedom? He believed their money would fall short of the price. But how is it they are more concerned in this business than others? Are they the only persons who possess religion and morality? If the people are not so exemplary, certainly they will admit the clergy are; why then do we not find them uniting in a body, praying us to adopt measures for the promotion of religion and piety, or any moral object? They know it would be an improper interference; and to say the best of this memorial, it is an act of imprudence, which he hoped would receive no countenance from the house.

Mr. SENEY (of Md.) denied that there was anything unconstitutional in the memorial, at least, if there was, it had escaped his attention, and he should be obliged to the gentleman to point it out. Its only object was, that congress should exercise their constitutional authority, to abate the horrors of slavery, as far as they could: Indeed, he considered that all altercation on the subject of commitment was at an end, as the house had impliedly determined yesterday that it should be committed.

Mr. BURKE (of S.C.) saw the disposition of the house, and he feared it would be referred to a committee, maugre all their opposition; but he must insist that it prayed for an unconstitutional measure. Did it not desire congress to interfere and abolish the slave trade, while the constitution expressly stipulated that congress should exercise no such power? He was certain the commitment would sound an alarm, and blow the trumpet of sedition in the Southern States. He was sorry to see the petitioners paid more attention to than the constitution; however, he would do his duty, and oppose the business totally; and if it was referred to a committee, as mentioned yesterday, consisting of a member from each State, and he was appointed, he would decline serving.

Mr. SCOTT, (of Penn.) I can't entertain a doubt but the memorial is strictly agreeable to the constitution: it respects a part of the duty particularly assigned to us by that instrument, and I hope we may, be inclined to take it into consideration. We can, at present, lay our hands upon a small duty of ten dollars. I would take this, and if it is all we can do, we must be content. But I am sorry that the framers of the constitution did not go farther and enable us to interdict it for good and all; for I look upon the slave-trade to be one of the most abominable things on earth; and if there was neither God nor devil, I should oppose it upon the principles of humanity and the law of nature. I cannot, for my part, conceive how any person can be said to acquire a property in another; is it by virtue of conquest? What are the rights of conquest? Some have dared to advance this monstrous principle, that the conqueror is absolute master of his conquest; that he may dispose of it as his property, and treat it as he pleases; but enough of those who reduce men to the state of transferable goods, or use them like beasts of burden; who deliver them up as the property or patrimony of another man. Let us argue on principles countenanced by reason and becoming humanity; the petitioners view the subject in a religious light, but I do not stand in need of religious motives to induce me to reprobate the traffic in human flesh; other considerations weigh with me to support the commitment of the memorial, and to support every constitutional measure likely to bring about its total abolition. Perhaps, in our legislative capacity, we can go no further than to impose a duty of ten dollars, but I do not know how far I might go, if I was one of the judges of the United States, and those people were to come before me and claim their emancipation; but I am sure I would go as far as I could.

Mr. JACKSON (of Ga.) differed with the gentleman last up, and supposed the master had a qualified property in his slave; he said the contrary doctrine would go to the destruction of every species of personal service. The gentleman said he did not stand in need of religion to induce him to reprobate slavery, but if he is guided by that evidence, which the Christian system is founded upon, he will find that religion is not against it; he will see, from Genesis to Revelation, the current setting strong that way. There never was a government on the face of the earth, but what permitted slavery. The purest sons of freedom in the Grecian republics, the citizens of Athens and Lacedaemon all held slaves. On this principle the nations of

Europe are associated; it is the basis of the feudal system. But suppose all this to have been wrong, let me ask the gentleman, if it is policy to bring forward a business at this moment, likely to light up a flame of civil discord, for the people of the Southern States will resist one tyranny as soon as another; the other parts of the continent may bear them down by force of arms, but they will never suffer themselves to be divested of their property without a struggle. The gentleman says, if he was a federal judge, he does not know to what length he would go in emancipating these people; but, I believe his judgment would be of short duration in Georgia; perhaps even the existence of such a judge might be in danger.

Mr. SHERMAN (of Conn.) could see no difficulty in committing the memorial; because it was probable the committee would understand their business, and perhaps they might bring in such a report as would be satisfactory to gentlemen on both sides of the House.

Mr. BALDWIN (of Ga.) was sorry the subject had ever been brought before Congress, because it was of a delicate nature, as it respected some of the States. Gentlemen who had been present at the formation of this Constitution, could not avoid the recollection of the pain and difficulty which the subject caused in that body; the members from the Southern States were so tender upon this point, that they had well nigh broken up without coming to any determination; however, from the extreme desire of preserving the Union, and obtaining an efficient government, they were induced mutually, to concede, and the Constitution jealously guarded what they agreed to. If gentlemen look over the footsteps of that body, they will find the greatest degree of caution used to imprint them, so as not to be easily eradicated; but the moment we go to jostle on that ground, said he, I fear we shall feel it tremble under our feet. Congress have no power to interfere with the importation of slaves, beyond what is given in the 9th section of the first article of the Constitution; every thing else is interdicted to them in the strongest terms. If we examine the Constitution, we shall find the expressions, relative to this subject, cautiously expressed, and more punctiliously guarded than any other part. "The migration or importation of such persons, shall not be prohibited by Congress." But lest this should not have secured the object sufficiently, it is declared in the same section, "That no capitation or direct tax shall be laid, unless in proportion to the census;" this was intended to prevent Congress from laying any special tax upon

negro slaves, as they might, in this way, so burthen the possessors of them, as to induce a general emancipation. If we go on to the 5th article, we shall find the 1st and 5th clauses of the 9th section of the 1st article restrained from being altered before the year 1808.

Gentlemen have said, that this petition does not pray for an abolition of the slave-trade; I think, sir, it prays for nothing else, and therefore we have no more to do with it, than if it prayed us to establish an order of nobility, or a national religion.

Mr. SYLVESTER (of N.Y.) said that he had always been in the habit of respecting the society called Quakers; he respected them for their exertions in the cause of humanity, but he thought the present was not a time to enter into a consideration of the subject, especially as he conceived it to be a business in the province of the State legislatures.

Mr. LAWRANCE (of N.Y.) observed that the subject would undoubtedly come under the consideration of the house; and he thought, that as it was now before them, that the present time was as proper as any; he was therefore for committing the memorial; and when the prayer of it had been properly examined, they could see how far Congress may constitutionally interfere; as they knew the limits of their power on this, as well as on every other occasion, there was no just apprehension to be entertained that they would go beyond them. Mr. Smith (of S.C.) insisted that it was not in the power of the House to grant the prayer of the petition, which event to the total abolishment of the slave-trade, and it was therefore unnecessary to commit it. He observed, that in the Southern States, difficulties had arisen on adopting the Constitution, inasmuch as it was apprehended, that Congress might take measures under it for abolishing the slave-trade.

Perhaps the petitioners, when they applied to this House, did not think their object unconstitutional, but now they are told that if is, they will be satisfied with the answer, and press it no further. If their object had been for Congress to lay a duty of ten dollars per head on the importation of slaves, they would have said so, but that does not appear to have been the case; the commitment of the petition, on that ground, cannot be contended; if they will not be content with that, shall it be committed to investigate facts? The petition speaks of none; for what purpose then shall it be committed? If

gentlemen can assign no good reason for the measure, they will not support it, when they are told that it will create great jealousies and alarm in the Southern States; for I can assure them, that there is no point on which they are more jealous and suspicious, than on a business with which they think the government has nothing to do.

When we entered into this Confederacy, we did it from political, not from moral motives, and I do not think my constituents want to learn morals from the petitioners; I do not believe they want improvement in their moral system; if they do, they can get it at home.

The gentleman from Georgia, has justly stated the jealousy of the Southern States. On entering into this government, they apprehended that the other States, not knowing the necessity the citizens of the Southern States were under to hold this species of property, would, from motives of humanity and benevolence, be led to vote for a general emancipation; and had they not seen that the Constitution provided against the effect of such a disposition, I may be bold to say, they never would have adopted it. And notwithstanding all the calumny's with which some gentlemen have viewed the subject, they will find, that the discussion alone will create great alarm. We have been told, that if the discussion will create alarm, we ought to have avoided it, by saying nothing; but it was not for that purpose that we were sent here; we look upon this measure as an attack upon the palladium of the property of our country; it is therefore our duty to oppose it by every means in our power. Gentlemen should consider that when we entered into a political connexion with the other States, that this property was there; it was acquired under a former government, conformably to the laws and Constitution; therefore anything that will tend to deprive them of that property, must be an ex post facto law, and as such is forbid by our political compact.

I said the States would never have entered into the confederation, unless their property had been guaranteed to them, for such is the state of agriculture in that county, that without slaves it must be depopulated. Why will these people then make use of arguments to induce the slave to turn his hand against his master? We labor under difficulties enough from the ravages of the late war. A gentleman can hardly come from that country, with a servant or two, either to this place or Philadelphia, but what there are

persons trying to seduce his servants to leave him; and, when they have done this, the poor wretches are obliged to rob their master in order to obtain a subsistence; all those, therefore, who are concerned in this seduction, are accessaries to the robbery.

The reproaches which they cast upon the owners of negro property, is charging them with the want of humanity; I believe the proprietors are persons of as much humanity as any part of the continent and are as conspicuous for their good morals as their neighbors. It was said yesterday, that the Quakers were a society known to the laws, and the Constitution, but they are no more so than other religious societies; they stood exactly in the same situation; their memorial, therefore, relates to a matter in which they are no more interested than any other sect, and can only be considered as a piece of advice; it is customary to refer a piece of advice to a committee, but if it is supposed to pray for what they think a moral purpose, is that sufficient to induce us to commit it? What may appear a moral virtue in their eyes, may not be so in reality. I have heard of a sect of Shaking Quakers, who, I presume, suppose their tenets of a moral tendency; I am informed one of them forbids to intermarry, yet in consequence of their shakings and concussions, you may see them with a numerous offspring about them. Now, if these people were to petition Congress to pass a law prohibiting matrimony, I ask, would gentlemen agree to refer such a petition? I think if they would reject one of that nature, as improper, they ought also to reject this.

Mr. PAGE (of Va.) was in favor of the commitment; he hoped that the designs of the respectable memorialists would not be stopped at the threshold, in order to preclude a fair discussion of the prayer of the memorial. He observed that gentlemen had founded their arguments upon a misrepresentation; for the object of the memorial was not declared to be the total abolition, of the slave trade; but that Congress would consider, whether it be not in reality within their power to exercise justice and mercy, which, if adhered to, they cannot doubt must produce the abolition of the slave trade. If then the prayer contained nothing unconstitutional, he trusted the meritorious effort would not be frustrated. With respect to the alarm that was apprehended, he conjectured there was none; but there might be just cause, if the memorial was not taken into consideration. He placed himself in the case of a slave, and said, that on hearing that Congress had refused to

listen to the decent suggestions of a respectable part of the community, he should infer, that the general government (from which was expected great good would result to every class of citizens) had shut their ears against the voice of humanity, and he should despair of any alleviation of the miseries he and his posterity had in prospect; if anything could induce him to rebel, it must be a stroke like this, impressing on his mind all the horrors of despair. But if he was told, that application was made in his behalf and that Congress were willing to hear what could be urged in favor of discouraging the practice of importing his fellow-wretches, he would trust in their justice and humanity, and wait the decision patiently. He presumed that these unfortunate people would reason in the same way; and he, therefore, conceived the most likely way to prevent danger, was to commit the petition. He lived in a State which had the misfortune of having in her bosom a great number of slaves, he held many of them himself, and was as much interested in the business, he believed, as any gentleman in South Carolina or Georgia, yet, if he was determined to hold them in eternal bondage, he should feel no uneasiness or alarm on account of the present measure, because he should rely upon the virtue of Congress, that they would not exercise any unconstitutional authority.

Mr. MADISON (of Va.) The debate has taken a serious turn, and it will be owing to this alone if an alarm is created; for had the memorial been treated in the usual way, it would have been considered as a matter of course, and a report might have been made, so as to have given general satisfaction.

If there was the slightest tendency by the commitment to break in upon the Constitution, he would object to it; but he did not see upon what ground such an event was to be apprehended. The petition prayed, in general terms, for the interference of Congress, so far as they were constitutionally authorized; but even if its prayer was, in some degree, unconstitutional, it might be committed, as was the case on Mr. Churchman's petition, one part of which was supposed to apply for an unconstitutional interference by the general government.

He admitted that Congress was restricted by the Constitution from taking measures to abolish the slave trade; yet there were a variety of ways by which they could countenance the abolition, and they might make some regulations respecting the introduction of them into the new States, to be

formed out of the Western Territory, different from what they could in the old settled States. He thought the object well worthy of consideration.

Mr. GERRY (of Mass.) thought the interference of Congress fully compatible with the Constitution, and could not help lamenting the miseries to which the natives of Africa were exposed by this inhuman commerce; and said that he never contemplated the subject, without reflecting what his own feelings would be, in case himself, his children, or friends, were placed in the same deplorable circumstances. He then adverted to the flagrant acts of cruelty which are committed in carrying on that traffic; and asked whether it can be supposed, that Congress has no power to prevent such transactions? He then referred to the Constitution, and pointed out the restrictions laid on the general government respecting the importation of slaves. It was not, he presumed, in the contemplation of any gentleman in this house to violate that part of the Constitution; but that we have a right to regulate this business, is as clear as that we have any rights whatever; nor has the contrary been shown by any person who has spoken on the occasion. Congress can, agreeable to the Constitution, lay a duty of ten dollars on imported slaves; they may do this immediately. He made a calculation of the value of the slaves in the Southern States, and supposed they might be worth ten millions of dollars; Congress have a right, if they see proper, to make a proposal to the Southern States to purchase the whole of them, and their resources in the Western Territory may furnish them with means. He did not intend to suggest a measure of this kind, he only instanced these particulars, to show that Congress certainly have a right to intermeddle in the business. He thought that no objection had been offered, of any force, to prevent the commitment of the memorial.

Mr. BOUDINOT (of N.J.) had carefully examined the petition, and found nothing like what was complained of by gentlemen, contained in it; he, therefore, hoped they would withdraw their opposition, and suffer it to be committed.

Mr. SMITH (of S.C.) said, that as the petitioners had particularly prayed Congress to take measures for the annihilation of the slave trade, and that was admitted on all hands to be beyond their power, and as the petitioners would not be gratified by a tax of ten dollars per head, which was all that

was within their power, there was, of consequence, no occasion for committing it.

Mr. STONE (of Md.) thought this memorial a thing of course; for there never was a society, of any considerable extent, which did not interfere with the concerns of other people, and this kind of interference, whenever it has happened, has never failed to deluge the country in blood: on this principle he was opposed to the commitment.

The question on the commitment being about to be put, the yeas and nays were called for, and are as follows:—

Yeas.—Messrs. Ames, Benson, Boudinot, Brown, Cadwallader, Clymer, Fitzsimons, Floyd, Foster, Gale, Gerry, Gilman, Goodhue, Griffin, Grout, Hartley, Hathorne, Heister, Huntington, Lawrance, Lee, Leonard, Livermore, Madison, Moore, Muhlenberg, Page, Parker, Partridge, Renssellaer, Schureman, Scott, Sedgwick, Seney, Sherman, Sinnickson, Smith of Maryland, Sturges, Thatcher, Trumbull, Wadsworth, White, and Wynkoop—93.

Noes.—Messrs. Baldwin, Bland, Bourke, Coles, Huger, Jackson, Mathews, Sylvester, Smith of S.C., Stone, and Tucker—11.

Whereupon it was determined in the affirmative; and on motion, the petition of the Society of Friends, at New York, and the memorial from the Pennsylvania Society, for the abolition of slavery, were also referred to a committee.

Debate on Committee's Report, March 1790.

ELIOT'S DEBATES.

Mr. TUCKER moved to modify the first paragraph by striking out all the words after the word opinion, and to insert the following: that the several memorials proposed to the consideration of this house, a subject on which its interference would be unconstitutional, and even its deliberations highly injurious to some of the States in the Union.

Mr. JACKSON rose and observed, that he had been silent on the subject of the reports coming before the committee, because he wished the principles of the resolutions to be examined fairly, and to be decided on their true grounds. He was against the propositions generally, and would examine the policy, the justice and the use of them, and he hoped, if he could make them appear in the same light to others as they did to him by fair argument, that the gentlemen in opposition were not so determined in their opinions as not to give up their present sentiments.

With respect to the policy of the measure, the situation of the slaves here, their situation in their native States, and the disposal of them in case of emancipation, should be considered. That slavery was an evil habit, he did not mean to controvert; but that habit was already established, and there were peculiar situations in countries which rendered that habit necessary. Such situations the States of South Carolina and Georgia were in—large tracts of the most fertile lands on the continent remained uncultivated for the want of population. It was frequently advanced on the floor of Congress, how unhealthy those climates were, and how impossible it was for northern constitutions to exist there. What, he asked, is to be done with this uncultivated territory? Is it to remain a waste? Is the rice trade to be banished from our coasts? Are Congress willing to deprive themselves of the revenue arising from that trade, and which is daily increasing, and to throw this great advantage into the hands of other countries?

Let us examine the use or the benefit of the resolutions contained in the report. I call upon gentlemen to give me one single instance in which they can be of service. They are of no use to Congress. The powers of that body are already defined, and those powers cannot be amended, confirmed or diminished by ten thousand resolutions. Is not the first proposition of the report fully contained in the Constitution? Is not that the guide and rule of

this legislature. A multiplicity of laws is reprobated in any society, and tend but to confound and perplex. How strange would a law appear which was to confirm a law; and how much more strange must it appear for this body to pass resolutions to confirm the Constitution under which they sit! This is the case with others of the resolutions.

A gentleman from Maryland (Mr. STONE,) very properly observed, that the Union had received the different States with all their ill habits about them. This was one of these habits established long before the Constitution, and could not now be remedied. He begged Congress to reflect on the number on the continent who were opposed to this Constitution, and on the number which yet remained in the Southern States. The violation of this compact they would seize on with avidity; they would make a handle of it to cover their designs against the government, and many good federalists, who would be injured by the measure, would be induced to join them: his heart was truly federal, and it always had been so, and he wished those designs frustrated. He begged Congress to beware before they went too far: he called on them to attend to the interests of two whole States, as well as to the memorials of a society of Quakers, who came forward to blow the trumpet of sedition, and to destroy that Constitution which they had not in the least contributed by personal service or supply to establish.

He seconded Mr. TUCKER'S motion.

Mr. SMITH (of S.C.) said, the gentlemen from Massachusetts, (Mr. GERRY,) had declared that it was the opinion of the select committee, of which he was a member, that the memorial of the Pennsylvania society, required Congress to violate the Constitution. It was not less astonishing to see Dr. FRANKLIN taking the lead in a business which looks so much like a persecution of the Southern inhabitants, when he recollected the parable he had written some time ago, with a view of showing the impropriety of one set of men persecuting others for a difference of opinion. The parable was to this effect: an old traveller, hungry and weary, applied to the patriarch Abraham for a night's lodging. In conversation, Abraham discovered that the stranger differed with him on religious points, and turned him out of doors. In the night God appeared unto Abraham, and said, where is the stranger? Abraham answered, I found that he did not worship the true God, and so I turned him out of doors. The Almighty thus rebuked

the patriarch: Have I borne with him three-score and ten years, and couldst thou not bear with him one night? Has the Almighty, said Mr. SMITH, borne with us for more than three-score years and ten: he has even made our country opulent, and shed the blessings of affluence and prosperity on our land, notwithstanding all its slaves, and must we now be ruined on account of the tender consciences of a few scrupulous individuals who differ from us on this point?

Mr. BOUDINOT agreed with the general doctrines of Mr. S., but could not agree that the clause in the Constitution relating to the want of power in Congress to prohibit the importation of such persons as any of the States, *now existing*, shall think proper to admit, prior to the year 1808, and authorizing a tax or duty on such importation not exceeding ten dollars for each person, did not extend to negro slaves. Candor required that he should acknowledge that this was the express design of the Constitution, and therefore Congress could not interfere in prohibiting the importation or promoting the emancipation of them, prior to that period. Mr. BOUDINOT observed, that he was well informed that the tax or duty of ten dollars was provided, instead of the five per cent ad valorem, and was so expressly understood by all parties in the Convention; that therefore it was the interest and duty of Congress to impose this tax, or it would not be doing justice to the States, or equalizing the duties throughout the Union. If this was not done, merchants might bring their whole capitals into this branch of trade, and save paying any duties whatever. Mr. BOUDINOT observed, that the gentleman had overlooked the prophecy of St. Peter, where he foretells that among other damnable heresies, "Through covetousness shall they with feigned words make merchandize of you."

[NOTE.—This petition, with others of a similar object, was committed to a select committee; that committee made a report; the report was referred to a committee of the whole House, and discussed on four successive days; it was then reported to the House with amendments, and by the House ordered to be inscribed in its Journals, and then laid on the table.

That report, as amended in committee, is in the following words:

The committee to whom were referred sundry memorials from the people called Quakers, and also a memorial from the Pennsylvania Society for

promoting the abolition of slavery, submit the following report, (as amended in committee of the whole.)

"First: That the migration or importation of such persons as any of the States now existing shall think proper to admit, cannot be prohibited by Congress prior to the year 1808."

"Secondly: That Congress have no power to interfere in the emancipation of slaves, or in the treatment of them, within any of the States; it remaining with the several States alone to provide any regulations therein which humanity and true policy may require."

"Thirdly: That Congress have authority to restrain the citizens of the United States from carrying on the African Slave trade, for the purpose of supplying foreigners with slaves, and of providing by proper regulations for the humane treatment, during their passage, of slaves imported by the said citizens into the States admitting such importations."

"Fourthly: That Congress have also authority to prohibit foreigners from fitting out vessels in any part of the United States for transporting persons from Africa to any foreign port."]

ADDRESS

OF THE

EXECUTIVE COMMITTEE

OF

THE AMERICAN ANTI-SLAVERY SOCIETY

TO THE

Friends of Freedom and Emancipation in the U. States.

At the Tenth Anniversary of the American Anti-Slavery Society, held in the city of New-York, May 7th, 1844,—after grave deliberation, and a long and earnest discussion,—it was decided, by a vote of nearly three to one of the members present, that fidelity to the cause of human freedom, hatred of oppression, sympathy for those who are held in chains and slavery in this republic, and allegiance to God, require that the existing national compact should be instantly dissolved; that secession from the government is a religious and political duty; that the motto inscribed on the banner of Freedom should be, NO UNION WITH SLAVEHOLDERS; that it is impracticable for tyrants and the enemies of tyranny to coalesce and legislate together for the preservation of human rights, or the promotion of the interests of Liberty; and that revolutionary ground should be occupied by all those who abhor the thought of doing evil that good may come, and who do not mean to compromise the principles of Justice and Humanity.

A decision involving such momentous consequences, so well calculated to startle the public mind, so hostile to the established order of things, demands of us, as the official representatives of the American Society, a statement of the reasons which led to it. This is due not only to the Society, but also to the country and the world.

It is declared by the American people to be a self-evident truth, "that all men are created equal; that they are endowed BY THEIR CREATOR with certain inalienable rights; that among these are *life*, LIBERTY, and the pursuit of happiness." It is further maintained by them, that "all

governments derive their just powers from the consent of the governed;" that "whenever any form of government becomes destructive of human rights, it is the right of the people to alter or to abolish it, and institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness." These doctrines the patriots of 1776 sealed with their blood. They would not brook even the menace of oppression. They held that there should be no delay in resisting, at whatever cost or peril, the first encroachments of power on their liberties. Appealing to the great Ruler of the universe for the rectitude of their course, they pledged to each other "their lives, their fortunes and their sacred honor," to conquer or perish in their struggle to be free.

For the example which they set to all people subjected to a despotic sway, and the sacrifices which they made, their descendants cherish their memories with gratitude, reverence their virtues, honor their deeds, and glory in their triumphs.

It is not necessary, therefore, for us to prove that a state of slavery is incompatible with the dictates of reason and humanity; or that it is lawful to throw off a government which is at war with the sacred rights of mankind.

We regard this as indeed a solemn crisis, which requires of every man sobriety of thought, prophetic forecast, independent judgment, invincible determination, and a sound heart. A revolutionary step is one that should not be taken hastily, nor followed under the influence of impulsive imitation. To know what spirit they are of—whether they have counted the cost of the warfare—what are the principles they advocate—and how they are to achieve their object—is the first duty of revolutionists.

But, while circumspection and prudence are excellent qualities in every great emergency, they become the allies of tyranny whenever they restrain prompt, bold and decisive action against it.

We charge upon the present national compact, that it was formed at the expense of human liberty, by a profligate surrender of principle, and to this hour is cemented with human blood.

We charge upon the American Constitution, that it contains provisions, and enjoins duties, which make it unlawful for freemen to take the oath of allegiance to it, because they are expressly designed to favor a slaveholding oligarchy, and, consequently, to make one portion of the people a prey to another.

We charge upon the existing national government, that it is an insupportable despotism, wielded by a power which is superior to all legal and constitutional restraints—equally indisposed and unable to protect the lives or liberties of the people—the prop and safeguard of American slavery.

These charges we proceed briefly to establish:

1. It is admitted by all men of intelligence,—or if it be denied in any quarter, the records of our national history settle the question beyond doubt,—that the American Union was effected by a guilty compromise between the free and slaveholding States; in other words, by immolating the colored population on the altar of slavery, by depriving the North of equal rights and privileges, and by incorporating the slave system into the government. In the expressive and pertinent language of scripture, it was "a covenant with death, and an agreement with hell"—null and void before God, from the first hour of its inception—the framers of which were recreant to duty, and the supporters of which are equally guilty.

It was pleaded at the time of the adoption, it is pleaded now, that, without such a compromise there could have been no union; that, without union, the colonies would have become an easy prey to the mother country; and, hence, that it was an act of necessity, deplorable indeed when viewed alone, but absolutely indispensable to the safety of the republic.

To this we reply: The plea is as profligate as the act was tyrannical. It is the jesuitical doctrine, that the end sanctifies the means. It is a confession of sin, but the denial of any guilt in its perpetration. It is at war with the government of God, and subversive of the foundations of morality. It is to make lies our refuge, and under falsehood to hide ourselves, so that we may escape the overflowing scourge. "Therefore, thus saith the Lord God, Judgment will I lay to the line, and righteousness to the plummet; and the hail shall sweep away the refuge of lies, and the waters shall overflow the hiding place." Moreover, "because ye trust in oppression and perverseness,

and stay thereon; therefore this iniquity shall be to you as a breach ready to fall, swelling out in a high wall, whose breaking cometh suddenly at an instant. And he shall break it as the breaking of the potter's vessel that is broken in pieces; he shall not spare."

This plea is sufficiently broad to cover all the oppression and villainy that the sun has witnessed in his circuit, since God said, "Let there be light." It assumes that to be practicable, which is impossible, namely, that there can be freedom with slavery, union with injustice, and safety with bloodguiltiness. A union of virtue with pollution is the triumph of licentiousness. A partnership between right and wrong, is wholly wrong. A compromise of the principles of Justice, is the deification of crime.

Better that the American Union had never been formed, than that it should have been obtained at such a frightful cost! If they were guilty who fashioned it, but who could not foresee all its frightful consequences, how much more guilty are they, who, in full view of all that has resulted from it, clamor for its perpetuity! If it was sinful at the commencement, to adopt it on the ground of escaping a greater evil, is it not equally sinful to swear to support it for the same reason, or until, in process of time, it be purged from its corruption?

The fact is, the compromise alluded to, instead of effecting a union, rendered it impracticable; unless by the term union we are to understand the absolute reign of the slaveholding power over the whole country, to the prostration of Northern rights. In the just use of words, the American Union is and always has been a sham—an imposture. It is an instrument of oppression unsurpassed in the criminal history of the world. How then can it be innocently sustained? It is not certain, it is not even probable, that if it had not been adopted, the mother country would have reconquered the colonies. The spirit that would have chosen danger in preference to crime, —to perish with justice rather than live with dishonor,—to dare and suffer whatever might betide, rather than sacrifice the rights of one human being, —could never have been subjugated by any mortal power. Surely it is paying a poor tribute to the valor and devotion of our revolutionary fathers in the cause of liberty, to say that, if they had sternly refused to sacrifice their principles, they would have fallen an easy prey to the despotic power of England.

II. The American Constitution is the exponent of the national compact. We affirm that it is an instrument which no man can innocently bind himself to support, because its anti-republican and anti-Christian requirements are explicit and peremptory; at least, so explicit that, in regard to all the clauses pertaining to slavery, they have been uniformly understood and enforced in the same way, by all the courts and by all the people; and so peremptory, that no individual interpretation or authority can set them aside with impunity. It is not a ball of clay, to be moulded into any shape that party contrivance or caprice may choose it to assume. It is not a form of words, to be interpreted in any manner, or to any extent, or for the accomplishment of any purpose, that individuals in office under it may determine. *It means precisely what those who framed and adopted it meant—NOTHING MORE, NOTHING LESS, as a matter of bargain and compromise.* Even if it can be construed to mean something else, without violence to its language, such construction is not to be tolerated *against the wishes of either party.* No just or honest use of it can be made, in opposition to the plain intention of its framers, *except to declare the contract at an end, and to refuse to serve under it.*

To the argument, that the words "slaves" and "slavery" are not to be found in the Constitution, and therefore that it was never intended to give any protection or countenance to the slave system, it is sufficient to reply, that though no such words are contained in that instrument, other words were used intelligently and specifically, TO MEET THE NECESSITIES OF SLAVERY; and that these were adopted *in good faith, to be observed until a constitutional change could be effected.* On this point, as to the design of certain provisions, no intelligent man can honestly entertain a doubt. If it be objected, that though these provisions were meant to cover slavery, yet, as they can fairly be interpreted to mean something exactly the reverse, it is allowable to give to them such an interpretation, *especially as the cause of freedom will thereby be promoted*—we reply, that this is to advocate fraud and violence toward one of the contracting parties, *whose co-operation was secured only by an express agreement and understanding between them both, in regard to the clauses alluded to;* and that such a construction, if enforced by pains and penalties, would unquestionably lead to a civil war, in which the aggrieved party would justly claim to have been betrayed, and robbed of their constitutional rights.

Again, if it be said, that those clauses, being immoral, are null and void—we reply, it is true they are not to be observed; but it is also true that they are portions of an instrument, the support of which, AS A WHOLE, is required by oath or affirmation; and, therefore, *because they are immoral*, and BECAUSE OF THIS OBLIGATION TO ENFORCE IMMORALITY, no one can innocently swear to support the Constitution.

Again, if it be objected, that the Constitution was formed by the people of the United States, in order to establish justice, to promote the general welfare, and secure the blessings of liberty to themselves and their posterity; and therefore, it is to be so construed as to harmonize with these objects; we reply, again, that its language is *not to be interpreted in a sense which neither of the contracting parties understood*, and which would frustrate every design of their alliance—to wit, *union at the expense of the colored population of the country*. Moreover, nothing is more certain than that the preamble alluded to never included, in the minds of those who framed it, *those who were then pining in bondage*—for, in that case, a general emancipation of the slaves would have instantly been proclaimed throughout the United States. The words, "secure the blessings of liberty to ourselves and our posterity," assuredly meant only the white population. "To promote the general welfare," referred to their own welfare exclusively. "To establish justice," was understood to be for their sole benefit as slaveholders, and the guilty abettors of slavery. This is demonstrated by other parts of the same instrument, and by their own practice under it.

We would not detract aught from what is justly their due; but it is as reprehensible to give them credit for *what they did not possess*, as it is to rob them of what is theirs. It is absurd, it is false, it is an insult to the common sense of mankind, to pretend that the Constitution was intended to embrace the entire population of the country under its sheltering wings; or that the parties to it were actuated by a sense of justice and the spirit of impartial liberty; or that it needs no alteration, but only a new interpretation, to make it harmonize with the object aimed at by its adoption. As truly might it be argued, that because it is asserted in the Declaration of Independence, that all men are created equal, and endowed with an inalienable right to liberty, therefore none of its signers were slaveholders, and since its adoption, slavery has been banished from the American soil! The truth is, our fathers were intent on securing liberty to *themselves*,

without being very scrupulous as to the means they used to accomplish their purpose. They were not actuated by the spirit of universal philanthropy; and though in words they recognized occasionally the brotherhood of the human race, *in practice* they continually denied it. They did not blush to enslave a portion of their fellow-men, and to buy and sell them as cattle in the market, while they were fighting against the oppression of the mother country, and boasting of their regard for the rights of man. Why, then, concede to them virtues which they did not possess? *Why cling to the falsehood, that they were no respecters of persons in the formation of the government?*

Alas! that they had no more fear of God, no more regard for man, in their hearts! "The iniquity of the house of Israel and Judah [the North and South] is exceeding great, and the land is full of blood, and the city full of perverseness; for they say, the Lord hath forsaken the earth, and the Lord seeth not."

We proceed to a critical examination of the American Constitution, in its relations to slavery.

In ARTICLE 1, Section 9, it is declared—"The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress, prior to the year one thousand eight hundred and eight; but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person."

In this Section, it will be perceived, the phraseology is so guarded as not to imply, *ex necessitate*, any criminal intent or inhuman arrangement; and yet no one has ever had the hardihood or folly to deny, that it was clearly understood by the contracting parties, to mean that there should be no interference with the African slave trade, on the part of the general government, until the year 1808. For twenty years after the adoption of the Constitution, the citizens of the United States were to be encouraged and protected in the prosecution of that infernal traffic—in sacking and burning the hamlets of Africa—in slaughtering multitudes of the inoffensive natives on the soil, kidnapping and enslaving a still greater proportion, crowding them to suffocation in the holds of the slave ships, populating the Atlantic with their dead bodies, and subjecting the wretched survivors to all the horrors of unmitigated bondage! This awful covenant was strictly fulfilled;

and though, since its termination, Congress has declared the foreign slave traffic to be piracy, yet all Christendom knows that the American flag, instead of being the terror of the African slavers, has given them the most ample protection.

The manner in which the 9th Section was agreed to, by the national convention that formed the Constitution, is thus frankly avowed by the Hon. LUTHER MARTIN^[9] who was a prominent member of that body:

"The Eastern States, notwithstanding their aversion to slavery, (!) were *very willing to indulge the Southern States* at least with a temporary liberty to prosecute the slave trade, provided the Southern States would, in their turn, *gratify* them by laying no restriction on navigation acts; and, after a very little time, the committee, by a great majority, agreed on a report, *by which the general government was to be prohibited from preventing the importation of slaves* for a limited time; and the restrictive clause relative to navigation acts was to be omitted."

[Footnote ⁹: Speech before the Legislature of Maryland in 1787.]

Behold the iniquity of this agreement! how sordid were the motives which led to it! what a profligate disregard of justice and humanity, on the part of those who had solemnly declared the inalienable right of all men to be free and equal, to be a self-evident truth!

It is due to the national convention to say, that this Section was not adopted "without considerable opposition." Alluding to it, Mr. MARTIN observes—

"It was said that we had just assumed a place among independent nations in consequence of our opposition to the attempts of Great Britain to *enslave us*: that this opposition was grounded upon the preservation of those rights to which God and nature has entitled us, not in *particular*, but in *common with all the rest of mankind*; that we had appealed to the Supreme Being for his assistance, as the God of freedom, who could not but approve our efforts to preserve the rights which he had thus imparted to his creatures; that now, when we scarcely had risen from our knees, from supplicating his aid and protection in forming our government over a free people, a government formed pretendedly on the principles of liberty, and for its preservation,—in

that government to have a provision, not only putting it out of its power to restrain and prevent the slave trade, even encouraging that most infamous traffic, by giving the States power and influence in the Union in proportion as they cruelly and wantonly sport with the rights of their fellow-creatures, ought to be considered as a solemn mockery of, and insult to, that God whose protection we had then implored, and could not fail to hold us up in detestation, and render us contemptible to every true friend of liberty in the world. It was said it ought to be considered that national crimes can only be and frequently are, punished in this world by *national punishments*, and that the continuance of the slave trade, and thus giving it a national sanction, and encouragement, ought to be considered as justly exposing us to the displeasure and vengeance of Him who is equally Lord of all, and who views with equal eye the poor *African slave* and his *American master*! [[10](#)]

[Footnote [10](#): How terribly and justly has this guilty nation been scourged, since these words were spoken, on account of slavery and the slave trade!]

"It was urged that, by this system, we were giving the general government full and absolute power to regulate commerce, under which general power it would have a right to restrain, or totally prohibit, the slave trade: it must, therefore, appear to the world absurd and disgraceful to the last degree that we should except from the exercise of that power the only branch of commerce which is unjustifiable in its nature, and contrary to the rights of mankind. That, on the contrary, we ought rather to prohibit expressly, in our Constitution, the further importation of slaves, and to authorize the general government, from time to time, to make such regulations as should be thought most advantageous for the gradual abolition of slavery, and the emancipation of the slaves which are already in the States. That slavery is inconsistent with the genius of republicanism, and has a tendency to destroy those principles on which it is supported, as it lessens the sense of the equal rights of mankind, and habituates us to tyranny and oppression. It was further urged that, by this system of government, every State is to be protected both from foreign invasion and from domestic insurrections; that, from this consideration, it was of the utmost importance it should have a power to restrain the importation of slaves, since in proportion as the number of slaves were increased in any State, in the same proportion the

State is weakened and exposed to foreign invasion or domestic insurrection; and by so much less will it be able to protect itself against either, and therefore will by so much the more, want aid from, and be a burden to, the Union.

"It was further said, that, as in this system, we were giving the general government a power, under the idea of national character, or national interest, to regulate even our weights and measures, and have prohibited all possibility of emitting paper money, and passing insolvent laws, &c., it must appear still more extraordinary that we should prohibit the government from interfering with the slave trade, than which nothing could so materially affect both our national honor and interest.

"These reasons influenced me, both on the committee and in convention, most decidedly to oppose and vote against the clause, as it now makes a part of the system."[\[11\]](#)

[Footnote [11](#): Secret Proceedings, p. 64.]

Happy had it been for this nation, had these solemn considerations been heeded by the framers of the Constitution! But for the sake of securing some local advantages, they chose to do evil that good might come, and to make the end sanctify the means. They were willing to enslave others, that they might secure their own freedom. They did this deed deliberately, with their eyes open, with all the facts and consequences arising therefrom before them, in violation of all their heaven-attested declarations, and in atheistical distrust of the overruling power of God. "The Eastern States were very willing to *indulge* the Southern States" in the unrestricted prosecution of their piratical traffic, provided in return they could be *gratified* by no restriction being laid on navigation acts!!—Had there been no other provision of the Constitution justly liable to objection, this one alone rendered the support of that instrument incompatible with the duties which men owe to their Creator, and to each other. It was the poisonous infusion in the cup, which, though constituting but a very slight portion of its contents, perilled the life of every one who partook of it.

If it be asked to what purpose are these animadversions, since the clause alluded to has long since expired by its own limitation—we answer, that, if at any time the foreign slave trade could be *constitutionally* prosecuted, it may yet be renewed, under the Constitution, at the pleasure of Congress, whose prohibitory statute is liable to be reversed at any moment, in the frenzy of Southern opposition to emancipation. It is ignorantly supposed that the bargain was, that the traffic *should cease* in 1808; but the only thing secured by it was, the *right* of Congress (not any obligation) to prohibit it at that period. If, therefore, Congress had not chosen to exercise that right, *the traffic might have been prolonged indefinitely under the Constitution*. The right to destroy any particular branch of commerce, implies the right to re-establish it. True, there is no probability that the African slave trade will ever again be legalized by the national government; but no credit is due the framers of the Constitution on this ground; for, while they threw around it all the sanction and protection of the national character and power for twenty years, *they set no bounds to its continuance by any positive constitutional prohibition*.

Again, the adoption of such a clause, and the faithful execution of it, prove what was meant by the words of the preamble—"to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity"—namely, that the parties to the Constitution regarded only their own rights and interests, and never intended that its language should be so interpreted as to interfere with slavery, or to make it unlawful for one portion of the people to enslave another, *without an express alteration in that instrument, in the manner therein set forth*. While, therefore, the Constitution remains as it was originally adopted, they who swear to support it are bound to comply with all its provisions, as a matter of allegiance. For it avails nothing to say, that some of those provisions are at war with the law of God and the rights of man, and therefore are not obligatory. Whatever may be their character, they are *constitutionally* obligatory; and whoever feels that he cannot execute them, or swear to execute them, without committing sin, has no other choice left than to withdraw from the government, or to violate his conscience by taking on his lips an impious promise. The object of the Constitution is not to define *what is the law of God*, but WHAT IS THE

WILL OF THE PEOPLE—which will is not to be frustrated by an ingenious moral interpretation, by those whom they have elected to serve them.

ARTICLE 1, Sect. 2, provides—"Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three-fifths of all other persons.*"

Here, as in the clause we have already examined, veiled beneath a form of words as deceitful as it is unmeaning in a truly democratic government, is a provision for the safety, perpetuity and augmentation of the slaveholding power—a provision scarcely less atrocious than that which related to the African slave trade, and almost as afflictive in its operation—a provision still in force, with no possibility of its alteration, so long as a majority of the slave States choose to maintain their slave system—a provision which, at the present time, enables the South to have twenty-five additional representatives in Congress on the score of property, while the North is not allowed to have one—a provision which concedes to the oppressed three-fifths of the political power which is granted to all others, and then puts this power into the hands of their oppressors, to be wielded by them for the more perfect security of their tyrannous authority, and the complete subjugation of the non-slaveholding States.

Referring to this atrocious bargain, ALEXANDER HAMILTON remarked in the New York Convention—

"The first thing objected to, is that clause which allows a representation for three-fifths of the negroes. Much has been said of the impropriety of representing men who have no will of their own: whether this be *reasoning* or *declamation*, (!!) I will not presume to say. It is the *unfortunate* situation of the Southern States to have a great part of their population as well as *property*, in blacks. The regulation complained of was one result of *the spirit of accommodation* which governed the Convention; and without this *indulgence*, NO UNION COULD POSSIBLY HAVE BEEN FORMED. But, sir, considering some *peculiar advantages* which we derive from them,

it is entirely JUST that they should be *gratified*.—The Southern States possess certain staples, tobacco, rice, indigo, &c.—which must be *capital* objects in treaties of commerce with foreign nations; and the advantage which they necessarily procure in these treaties will be felt throughout all the States."

If such was the patriotism, such the love of liberty, such the morality of ALEXANDER HAMILTON, what can be said of the character of those who were far less conspicuous than himself in securing American independence, and in framing the American Constitution?

Listen, now, to the opinions of JOHN QUINCY ADAMS, respecting the constitutional clause now under consideration:—

"In outward show, it is a representation of persons in bondage; in fact, it is a representation of their masters,—the oppressor representing the oppressed.'—'Is it in the compass of human imagination to devise a more perfect exemplification of the art of committing the lamb to the tender custody of the wolf?'—'The representative is thus constituted, not the friend, agent and trustee of the person whom he represents, but the most inveterate of his foes.'—'It was *one* of the curses from that Pandora's box, adjusted at the time, as usual, by a *compromise*, the whole advantage of which inured to the benefit of the South, and to aggravate the burthens of the North.'—'If there be a parallel to it in human history, it can only be that of the Roman Emperors, who, from the days when Julius Caesar substituted a military despotism in the place of a republic, among the offices which they always concentrated upon themselves, was that of tribune of the people. A Roman Emperor tribune of the people, is an exact parallel to that feature in the Constitution of the United States which makes the master the representative of his slave.'—'The Constitution of the United States expressly prescribes that no title of nobility shall be granted by the United States. The spirit of this interdict is not a rooted antipathy to the grant of mere powerless empty *titles*, but to titles of *nobility*; to the institution of privileged orders of men. But what order of men under the most absolute of monarchies, or the most aristocratic of republics, was ever invested with such an odious and unjust privilege as that of the separate and exclusive representation of less than half a million owners of slaves, in the Hall of this House, in the chair of the Senate, and in the Presidential mansion?'—'This

investment of power in the owners of one species of property concentrated in the highest authorities of the nation, and disseminated through thirteen of the twenty-six States of the Union, constitutes a privileged order of men in the community, more adverse to the rights of all, and more pernicious to the interests of the whole, than any order of nobility ever known. To call government thus constituted a Democracy, is to insult the understanding of mankind. To call it an Aristocracy, is to do injustice to that form of government. Aristocracy is the government of the *best*. Its standard qualification for accession to power is *merit*, ascertained by popular election, recurring at short intervals of time. If even that government is prone to degenerate into tyranny, what must be the character of that form of polity in which the standard qualification for access to power is wealth in the possession of slaves? It is doubly tainted with the infection of riches and of slavery. *There is no name in the language of national jurisprudence that can define it*—no model in the records of ancient history, or in the political theories of Aristotle, with which it can be likened. It was introduced into the Constitution of the United States by an equivocation—a representation of property under the name of persons. Little did the members of the Convention from the free States imagine or foresee what a sacrifice to Moloch was hidden under the mask of this concession.'—'The House of Representatives of the U. States consists of 223 members—all, by the *letter* of the Constitution, representatives only of *persons*, as 135 of them really are; but the other 88, equally representing the *persons* of their constituents, by whom they are elected, also represent, under the name of *other persons*, upwards of two and a half millions of *slaves*, held as the *property* of less than half a million of the white constituents, and valued at twelve hundred millions of dollars. Each of these 88 members represents in fact the whole of that mass of associated wealth, and the persons and exclusive interests of its owners; all thus knit together, like the members of a moneyed corporation, with a capital not of thirty-five or forty or fifty, but of twelve hundred millions of dollars, exhibiting the most extraordinary exemplification of the anti-republican tendencies of associated wealth that the world ever saw.'—'Here is one class of men, consisting of not more than one-fortieth part of the whole people, not more than one-thirtieth part of the free population, exclusively devoted to their personal interests identified with their own as slaveholders of the same associated wealth, and wielding by their votes, upon every question of government or of public policy, two-

fifths of the whole power of the House. In the Senate of the Union, the proportion of the slaveholding power is yet greater. By the influence of slavery, in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the 52 members of the Federal Senate, 26 are owners of slaves, and as effectively representatives of that interest as the 88 member elected by them to the House.'—'By this process it is that all political power in the States is absorbed and engrossed by the owners of *slaves*, and the overruling policy of the States is shaped to strengthen and consolidate their domination. The legislative, executive, and judicial authorities are all in their hands—the preservation, propagation, and perpetuation of the black code of slavery—every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of *wrong*.'—'Its reciprocal operation upon the government of the nation is, to establish an artificial majority in the slave representation over that of the free people, in the American Congress, and thereby to make the PRESERVATION, PROPAGATION, AND PERPETUATION OF SLAVERY THE VITAL AND ANIMATING SPIRIT OF THE NATIONAL GOVERNMENT.'—'The result is seen in the fact that, at this day, the President of the United States, the President of the Senate, the Speaker of the House of Representatives, and five out of nine of the Judges of the Supreme Judicial Courts of the United States, are not only citizens of slaveholding States, but individual slaveholders themselves. So are, and constantly have been, with scarcely an exception, all the members of both Houses of Congress from the slaveholding States; and so are, in immensely disproportionate numbers, the commanding officers of the army and navy; the officers of the customs; the registers and receivers of the land offices, and the post-masters throughout the slaveholding States.—The Biennial Register indicates the birth-place of all the officers employed in the government of the Union. If it were required to designate the owners of this species of property among them, it would be little more than a catalogue of slaveholders.'"

It is confessed by Mr. ADAMS, alluding to the national convention that framed the Constitution, that "the delegation from the free States, in their extreme anxiety to conciliate the ascendancy of the Southern slaveholder,

did listen to a *compromise between right and wrong—between freedom and slavery*; of the ultimate fruits of which they had no conception, but which already even now is urging the Union to its inevitable ruin and dissolution, by a civil, servile, foreign and Indian war, all combined in one; a war, the essential issue of which will be between freedom and slavery, and in which the unhallowed standard of slavery will be the desecrated banner of the North American Union—that banner, first unfurled to the breeze, inscribed with the self-evident truths of the Declaration of Independence."

Hence, to swear to support the Constitution of the United States, *as it is*, is to make "a compromise between right and wrong," and to wage war against human liberty. It is to recognize and honor as republican legislators *incorrigible men-stealers*, MERCILESS TYRANTS, BLOOD THIRSTY ASSASSINS, who legislate with deadly weapons about their persons, such as pistols, daggers, and bowie-knives, with which they threaten to murder any Northern senator or representative who shall dare to stain their *honor*, or interfere with their rights! They constitute a banditti more fierce and cruel than any whose atrocities are recorded on the pages of history or romance. To mix with them on terms of social or religious fellowship, is to indicate a low state of virtue; but to think of administering a free government by their co-operation, is nothing short of insanity.

Article 4, Section 2, declares,—"No person held to service or labor in one State, *under the laws thereof*, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due."

Here is a third clause, which, like the other two, makes no mention of slavery or slaves, in express terms; and yet, like them, was intelligently framed and mutually understood by the parties to the ratification, and intended both to protect the slave system and to restore runaway slaves. It alone makes slavery a national institution, a national crime, and all the people who are not enslaved, the body-guard over those whose liberties have been cloven down. This agreement, too, has been fulfilled to the letter by the North.

Under the Mosaic dispensation it was imperatively commanded,—“Thou shalt not deliver unto his master the servant which is escaped from his master unto thee: he shall dwell with thee, even among you, in that place which he shall choose in one of thy gates, where it liketh him best: thou shalt not oppress him.” The warning which the prophet Isaiah gave to oppressing Moab was of a similar kind: “Take counsel, execute judgment; make thy shadow as the night in the midst of the noon-day; hide the outcasts; bewray not him that wandereth. Let mine outcasts dwell with thee, Moab; be thou a covert to them from the face of the spoiler.” The prophet Obadiah brings the following charge against treacherous Edom, which is precisely applicable to this guilty nation:—“For thy violence against thy brother Jacob, shame shall come over thee, and thou shalt be cut off for ever. In the day that thou stoodst on the other side, in the day that the strangers carried away captive his forces, and foreigners entered into his gates, and cast lots upon Jerusalem, *even thou wast as one of them*. But thou shouldst not have looked on the day of thy brother, in the day that he became a stranger; neither shouldst thou have rejoiced over the children of Judah, in the day of their destruction; neither shouldst thou have spoken proudly in the day of distress; neither shouldst thou have *stood in the cross-way, to cut off those of his that did escape*; neither shouldst thou have *delivered up those of his that did remain*, in the day of distress.”

How exactly descriptive of this boasted republic is the impeachment of Edom by the same prophet! “The pride of thy heart hath deceived thee, thou whose habitation is high; that saith in thy heart, Who shall bring me down to the ground? Though thou exalt thyself as the eagle, and though thou set thy nest among the stars, thence will I bring thee down, saith the Lord.” The emblem of American pride and power is the *eagle*, and on her banner she has mingled *stars* with its *stripes*. Her vanity, her treachery, her oppression, her self-exaltation, and her defiance of the Almighty, far surpass the madness and wickedness of Edom. What shall be her punishment? Truly, it may be affirmed of the American people, (who live not under the Levitical but Christian code, and whose guilt, therefore, is the more awful, and their condemnation the greater,) in the language of another prophet—“They all lie in wait for blood; they hunt every man his brother with a net. That they may do evil with both hands earnestly, the prince asketh, and the judge asketh for a reward; and the great man, he uttereth his mischievous desire:

so they wrap it up." Likewise of the colored inhabitants of this land it may be said,—*"This is a people robbed and spoiled; they are all of them snared in holes, and they are hid in prison-houses; they are for a prey, and none delivereth; for a spoil, and none saith, Restore."*

By this stipulation, the Northern States are made the hunting ground of slave-catchers, who may pursue their victims with blood-hounds, and capture them with impunity wherever they can lay their robber hands upon them. At least twelve or fifteen thousand runaway slaves are now in Canada, exiled from their native land, because they could not find, throughout its vast extent, a single road on which they could dwell in safety, *in consequence of this provision of the Constitution?* How is it possible, then, for the advocates of liberty to support a government which gives over to destruction one-sixth part of the whole population?

It is denied by some at the present day, that the clause which has been cited, was intended to apply to runaway slaves. This indicates, either ignorance, or folly, or something worse. JAMES MADISON, as one of the framers of the Constitution, is of some authority on this point. Alluding to that instrument, in the Virginia convention, he said:—

"Another clause secures us that property which we now possess. At present, if any slave elopes to any of those States where slaves are free, he becomes emancipated by their laws; for the laws of the States are uncharitable (!) to one another in this respect; but in this constitution, 'No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due.' THIS CLAUSE WAS EXPRESSLY INSERTED TO ENABLE OWNERS OF SLAVES TO RECLAIM THEM. *This is a better security than any that now exists.* No power is given to the general government to interpose with respect to the property in slaves now held by the States."

In the same convention, alluding to the same clause, Gov. RANDOLPH said:—

"Every one knows that slaves are held to service or labor. And, when authority is given to owners of slaves to vindicate their property, can it be

supposed they can be deprived of it? If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, can it be seriously thought that, after taking him and bringing him home, he could be made free?"

It is objected, that slaves are held as property, and therefore, as the clause refers to persons, it cannot mean slaves. But this is criticism against fact. Slaves are recognized not merely as property, but also as persons—as having a mixed character—as combining the human with the brutal. This is paradoxical, we admit; but slavery is a paradox—the American Constitution is a paradox—the American Union is a paradox—the American Government is a paradox; and if any one of these is to be repudiated on that ground, they all are. That it is the duty of the friends of freedom to deny the binding authority of them all, and to secede from them all, we distinctly affirm. After the independence of this country had been achieved, the voice of God exhorted the people, saying, "Execute true judgment, and show mercy and compassion, every man to his brother: and oppress not the widow, nor the fatherless, the stranger, nor the poor; and let none of you imagine evil against his brother in your heart. But they refused to hearken, and pulled away the shoulder, and stopped their ears, that they should not hear; yea, they made their hearts as an adamant stone." "Shall I not visit for these things? saith the Lord. Shall not my soul be avenged on such a nation as this?"

Whatever doubt may have rested on any honest mind, respecting the meaning of the clause in relation to persons held to service or labor, must have been removed by the unanimous decision of the Supreme Court of the United States, in the case of Prigg versus the State of Pennsylvania. By that decision, any Southern slave-catcher is empowered to seize and convey to the South, without hindrance or molestation on the part of the State, and without any legal process duly obtained and served, any person or persons, irrespective of caste or complexion, whom he may choose to claim as runaway slaves; and if, when thus surprised and attacked, or on their arrival South, they cannot prove by legal witnesses, that they are freemen, their doom is sealed! Hence the free colored population of the North are specially liable to become the victims of this terrible power, and all the other inhabitants are at the mercy of prowling kidnappers, because there are

multitudes of white as well as black slaves on Southern plantations, and slavery is no longer fastidious with regard to the color of its prey.

As soon as that appalling decision of the Supreme Court was enunciated, in the name of the Constitution, the people of the North should have risen *en masse*, if for no other cause, and declared the Union at an end; and they would have done so, if they had not lost their manhood, and their reverence for justice and liberty.

In the 4th Sect. of Art. IV., the United States guarantee to protect every State in the Union "against *domestic violence*." By the 8th Section of Article I., Congress is empowered "to provide for calling forth the militia to execute the laws of the Union, *suppress insurrections*, and repel invasions." These provisions, however strictly they may apply to cases of disturbance among the white population, were adopted with special reference to the slave population, for the purpose of keeping them in their chains by the combined military force of the country; and were these repealed, and the South left to manage her slaves as best she could, a servile insurrection would ere long be the consequence, as general as it would unquestionably be successful. Says Mr. Madison, respecting these clauses:--

"On application of the legislature or executive, as the case may be, the militia of the other States are to be called to suppress domestic insurrections. Does this bar the States from calling forth their own militia? No; but it gives them a *supplementary* security to suppress insurrections and domestic violence."

The answer to Patrick Henry's objection, as urged against the Constitution in the Virginia convention, that there was no power left to the *States* to quell an insurrection of slaves, as it was wholly vested in Congress, George Nicholas asked:—

"Have they it now? If they have, does the constitution take it away? If it does, it must be in one of the three clauses which have been mentioned by the worthy member. The first clause gives the general government power to call them out when necessary. Does this take it away from the States? No! but it *gives an additional security*; for, beside the power in the State governments to use their own militia, it will be *the duty of the general*

government to aid them WITH THE STRENGTH OF THE UNION, when called for."

This solemn guaranty of security to the slave system, caps the climax of national barbarity, and stains with human blood the garments of all the people. In consequence of it, that system has multiplied its victims from seven hundred thousand to nearly three millions—a vast amount of territory has been purchased, in order to give it extension and perpetuity—several new slave States have been admitted into the Union—the slave trade has been made one of the great branches of American commerce—the slave population, though over-worked, starved, lacerated, branded, maimed, and subjected to every form of deprivation and every species of torture, have been overawed and crushed,—or, whenever they have attempted to gain their liberty by revolt, they have been shot down and quelled by the strong arm of the national government; as, for example, in the case of Nat Turner's insurrection in Virginia, when the naval and military forces of the government were called into active service. Cuban bloodhounds have been purchased with the money of the people, and imported and used to hunt slave fugitives among the everglades of Florida. A merciless warfare has been waged for the extermination or expulsion of the Florida Indians, because they gave succor to these poor hunted fugitives—a warfare which has cost the nation several thousand lives, and forty millions of dollars. But the catalogue of enormities is too long to be recapitulated in the present address.

We have thus demonstrated that the compact between the North and the South embraces every variety of wrong and outrage,—is at war with God and man, cannot be innocently supported, and deserves to be immediately annulled. In behalf of the Society which we represent, we call upon all our fellow-citizens, who believe it is right to obey God rather than man, to declare themselves peaceful revolutionists, and to unite with us under the stainless banner of Liberty, having for its motto—"EQUAL RIGHTS FOR ALL—NO UNION WITH SLAVEHOLDERS!"

It is pleaded that the Constitution provides for its own amendment; and we ought to use the elective franchise to effect this object. True, there is such a proviso; but, until the amendment be made, that instrument is binding as it stands. Is it not to violate every moral instinct, and to sacrifice principle to

expediency, to argue that we may swear to steal, oppress and murder by wholesale, because it may be necessary to do so only for the time being, and because there is some remote probability that the instrument which requires that we should be robbers, oppressors and murderers, may at some future day be amended in these particulars? Let us not palter with our consciences in this manner—let us not deny that the compact was conceived in sin and brought forth in iniquity—let us not be so dishonest, even to promote a good object, as to interpret the Constitution in a manner utterly at variance with the intentions and arrangements of the contracting parties; but, confessing the guilt of the nation, acknowledging the dreadful specifications in the bond, washing our hands in the waters of repentance from all further participation in this criminal alliance, and resolving that we will sustain none other than a free and righteous government, let us glory in the name of revolutionists, unfurl the banner of disunion, and consecrate our talents and means to the overthrow of all that is tyrannical in the land,—to the establishment of all that is free, just, true and holy,—to the triumph of universal love and peace. If, in utter disregard of the historical facts which have been cited, it is still asserted, that the Constitution needs no amendment to make it a free instrument, adapted to all the exigencies of a free people, and was never intended to give any strength or countenance to the slave system—the indignant spirit of insulted Liberty replies;—"What though the assertion be true? Of what avail is a mere piece of parchment? In itself, though it be written all over with words of truth and freedom—Though its provisions be as impartial and just as words can express, or the imagination paint—though it be as pure as the Gospel, and breathe only the spirit of Heaven—it is powerless; it has no executive vitality: it is a lifeless corpse, even though beautiful in death. I am famishing for lack of bread! How is my appetite relieved by holding up to my gaze a painted loaf? I am manacled, wounded, bleeding, dying! What consolation is it to know, that they who are seeking to destroy my life, profess in words to be my friends?" If the liberties of the people have been betrayed—if judgment is turned away backward, and justice standeth afar off, and truth has fallen in the streets, and equity cannot enter—if the princes of the land are roaring lions, the judges evening wolves, the people light and treacherous persons, the priests covered with pollution—if we are living under a frightful despotism, which scoffs at all constitutional restraints, and wields the resources of the nation to promote its own bloody purposes—tell us not that

the forms of freedom are still left to us! "Would such tameness and submission have freighted the May-Flower for Plymouth Rock? Would it have resisted the Stamp Act, the Tea Tax, or any of those entering wedges of tyranny with which the British government sought to rive the liberties of America? The wheel of the Revolution would have rusted on its axle, if a spirit so weak had been the only power to give it motion. Did our fathers say, when their rights and liberties were infringed—"*Why, what is done cannot be undone*. That is the first thought." No, it was the last thing they thought of: or, rather, it never entered their minds at all. They sprang to the conclusion at once—"What is done SHALL be undone. That is our FIRST and ONLY thought."

"Is water running in our veins? Do we remember still
Old Plymouth Rock, and Lexington, and famous Bunker Hill?
The debt we owe our fathers' graves? and to the yet unborn,
Whose heritage ourselves must make a thing of pride or scorn?

Gray Plymouth Rock hath yet a tongue, and Concord is not dumb;
And voices from our fathers' graves and from the future come:
They call on us to stand our ground—they charge us still to be
Not only free from chains ourselves, but foremost to make free!"

It is of little consequence who is on the throne, if there be behind it a power mightier than the throne. It matters not what is the theory of the government, if the practice of the government be unjust and tyrannical. We rise in rebellion against a despotism incomparably more dreadful than that which induced the colonists to take up arms against the mother country; not on account of a three-penny tax on tea, but because fetters of living iron are fastened on the limbs of millions of our countrymen, and our most sacred rights are trampled in the dust. As citizens of the State, we appeal to the State in vain for protection and redress. As citizens of the United States, we are treated as outlaws in one half of the country, and the national government consents to our destruction. We are denied the right of locomotion, freedom of speech, the right of petition, the liberty of the press, the right peaceably to assemble together to protest against oppression and plead for liberty—at least in thirteen States of the Union. If we venture, as avowed and unflinching abolitionists, to travel South of Mason and Dixon's line, we do so at the peril of our lives. If we would escape torture and death,

on visiting any of the slave States, we must stifle our conscientious convictions, bear no testimony against cruelty and tyranny, suppress the struggling emotions of humanity, divest ourselves of all letters and papers of an anti-slavery character, and do homage to the slaveholding power—or run the risk of a cruel martyrdom! These are appalling and undeniable facts. Three millions of the American people are crushed under the American Union! They are held as slaves—trafficked as merchandise—registered as goods and chattels! The government gives them no protection—the government is their enemy—the government keeps them in chains! There they lie bleeding—we are prostrate by their side—in their sorrows and sufferings we participate—their stripes are inflicted on our bodies, their shackles are fastened on our limbs, their cause is ours! The Union which grinds them to the dust rests upon us, and with them we will struggle to overthrow it! The Constitution, which subjects them to hopeless bondage, is one that we cannot swear to support! Our motto is, "NO UNION WITH SLAVEHOLDERS," either religious or political. They are the fiercest enemies of mankind, and the bitterest foes of God! We separate from them not in anger, not in malice, not for a selfish purpose, not to do them an injury, not to cease warning, exhorting, reproving them for their crimes, not to leave the perishing bondman to his fate—O no! But to clear our skirts of innocent blood—to give the oppressor no countenance—to signify our abhorrence of injustice and cruelty—to testify against an ungodly compact—to cease striking hands with thieves and consenting with adulterers—to make no compromise with tyranny—to walk worthily of our high profession—to increase our moral power over the nation—to obey God and vindicate the Gospel of his Son—to hasten the downfall of slavery in America, and throughout the world!

We are not acting under a blind impulse. We have carefully counted the cost of this warfare, and are prepared to meet its consequences. It will subject us to reproach, persecution, infamy—it will prove a fiery ordeal to all who shall pass through it—it may cost us our lives. We shall be ridiculed as fools, scorned as visionaries, branded as disorganizers, reviled as madmen, threatened and perhaps punished as traitors. But we shall bide our time. Whether safety or peril, whether victory or defeat, whether life or death be ours, believing that our feet are planted on an eternal foundation, that our position is sublime and glorious, that our faith in God is rational and

steadfast, that we have exceeding great and precious promises on which to rely, THAT WE ARE IN THE RIGHT, we shall not falter nor be dismayed, "though the earth be removed, and though the mountains be carried into the midst of the sea,"—though our ranks be thinned to the number of "three hundred men." Freeman! are you ready for the conflict? Come what may, will you sever the chain that binds you to a slaveholding government, and declare your independence? Up, then, with the banner of revolution! Not to shed blood—not to injure the person or estate of any oppressor—not by force and arms to resist any law—not to countenance a servile insurrection—not to wield any carnal weapons! No—ours must be a bloodless strife, excepting *our* blood be shed—for we aim, as did Christ our leader, not to destroy men's lives, but to save them—to overcome evil with good—to conquer through suffering for righteousness' sake—to set the captive free by the potency of truth!

Secede, then, from the government. Submit to its exactions, but pay it no allegiance, and give it no voluntary aid. Fill no offices under it. Send no senators or representatives to the National or State legislature; for what you cannot conscientiously perform yourself, you cannot ask another to perform as your agent. Circulate a declaration of DISUNION FROM SLAVEHOLDERS, throughout the country. Hold mass meetings—assemble in conventions—nail your banners to the mast!

Do you ask what can be done, if you abandon the ballot box? What did the crucified Nazarene do without the elective franchise? What did the apostles do? What did the glorious army of martyrs and confessors do? What did Luther and his intrepid associates do? What can women and children do? What has Father Matthew done for teetotalism? What has Daniel O'Connell done for Irish repeal? "Stand, having your loins girt about with truth, and having on the breast-plate of righteousness," and arrayed in the whole armor of God!

The form of government that shall succeed the present government of the United States, let time determine. It would be a waste of time to argue that question, until the people are regenerated and turned from their iniquity. Ours is no anarchical movement, but one of order and obedience. In ceasing from oppression, we establish liberty. What is now fragmentary, shall in due

time be crystallized, and shine like a gem set in the heavens, for a light to all coming ages.

Finally—we believe that the effect of this movement will be,—First, to create discussion and agitation throughout the North; and these will lead to a general perception of its grandeur and importance.

Secondly, to convulse the slumbering South like an earthquake, and convince her that her only alternative is, to abolish slavery, or be abandoned by that power on which she now relies for safety.

Thirdly, to attack the slave power in its most vulnerable point, and to carry the battle to the gate.

Fourthly, to exalt the moral sense, increase the moral power, and invigorate the moral constitution of all who heartily espouse it.

We reverently believe that, in withdrawing from the American Union, we have the God of justice with us. We know that we have our enslaved countrymen with us. We are confident that all free hearts will be with us. We are certain that tyrants and their abettors will be against us.

In behalf of the Executive Committee of the American Anti-Slavery Society,

WM. LLOYD GARRISON, *President*.

WENDELL PHILLIPS, } *Secretaries*. MARIA WESTON CHAPMAN, }

Boston, May 20, 1844.

LETTER FROM FRANCIS JACKSON.

BOSTON, 4th July, 1844.

To His Excellency George N. Briggs:

SIR—Many years since, I received from the Executive of the Commonwealth a commission as Justice of the Peace. I have held the office that it conferred upon me till the present time, and have found it a convenience to myself, and others. It might continue to be so, could I consent longer to hold it. But paramount considerations forbid, and I herewith transmit to you my commission, respectfully asking you to accept my resignation.

While I deem it a duty to myself to take this step, I feel called on to state the reasons that influence me.

In entering upon the duties of the office in question, I complied with the requirements of the law, by taking an oath "*to support the Constitution of the United States.*" I regret that I ever took that oath. Had I then as maturely considered its full import, and the obligations under which it is understood, and meant to lay those who take it, as I have done since, I certainly never would have taken it, seeing, as I now do, that the Constitution of the United States contains provisions calculated and intended to foster, cherish, uphold and perpetuate *slavery*. It pledges the country to guard and protect the slave system so long as the slaveholding States choose to retain it. It regards the slave code as lawful in the States which enact it. Still more, "it has done that, which, until its adoption, was never before done for African slavery. It took it out of its former category of municipal law and local life; adopted it as a national institution, spread around it the broad and sufficient shield of national law, and thus gave to slavery a national existence." Consequently, the oath to support the Constitution of the United States is a solemn promise to do that which is morally wrong; that which is a violation of the natural rights of man, and a sin in the sight of God.

I am not in this matter, constituting myself a judge of others. I do not say that no honest man can take such an oath, and abide by it. I only say, that *I* would not now deliberately take it; and that, having inconsiderately taken it; I can no longer suffer it to lie upon my soul. I take back the oath, and ask you, sir, to receive back the commission, which was the occasion of my taking it.

I am aware that my course in this matter is liable to be regarded as singular, if not censurable; and I must, therefore, be allowed to make a more specific statement of those *provisions of the Constitution* which support the enormous wrong, the heinous sin of slavery.

The very first Article of the Constitution takes slavery at once under its legislative protection, as a basis of representation in the popular branch of the National Legislature. It regards slaves under the description "of all other *persons*"—as of only three-fifths of the value of free persons; thus to appearance undervaluing them in comparison with freemen. But its dark and involved phraseology seems intended to blind us to the consideration, that those underrated slaves are merely a *basis*, not the *source* of representation; that by the laws of all the States where they live, they are regarded not as *persons*, but as *things*; that they are not the *constituency* of the representative, but his property; and that the necessary effect of this provision of the Constitution is, to take legislative power out of the hands of *men*, as such, and give it to the mere possessors of goods and chattels. Fixing upon thirty thousand persons, as the smallest number that shall send one member into the House of Representatives, it protects slavery by distributing legislative power in a free and in a slave State thus: To a congressional district in South Carolina, containing fifty thousand slaves, claimed as the property of five hundred whites, who hold, on an average, one hundred apiece, it gives one Representative in Congress; to a district in Massachusetts containing a population of thirty thousand five hundred, one Representative is assigned. But inasmuch as a slave is never permitted to vote, the fifty thousand persons in a district in Carolina form no part of "the constituency;" *that* is found only in the five hundred free persons. Five hundred freemen of Carolina could send one Representative to Congress, while it would take thirty thousand five hundred freemen of Massachusetts, to do the same thing: that is, one slaveholder in Carolina is clothed by the Constitution with the same political power and influence in the Representatives Hall at Washington, as sixty Massachusetts men like you and me, who "eat their bread in the sweat of their own brows."

According to the census of 1830, and the *ratio* of representation based upon that, slave property added twenty-five members to the House of Representatives. And as it has been estimated, (as an approximation to the truth,) that the two and a half million slaves in the United States are held as

property by about two hundred and fifty thousand persons—giving an average of ten slaves to each slaveholder, those twenty-five Representatives, each chosen, at most by only ten thousand voters, and probably by less than three-fourths of that number, were the representatives not only of the two hundred and fifty thousand persons who chose them, but of property which, five years ago, when slaves were lower in market, than at present, were estimated, by the man who is now the most prominent candidate for the Presidency, at twelve hundred millions of dollars—a sum, which, by the natural increase of five years, and the enhanced value resulting from a more prosperous state of the planting interest, cannot now be less than fifteen hundred millions of dollars. All this vast amount of property, as it is "peculiar," is also identical in its character. In Congress, as we have seen, it is animated by one spirit, moves in one mass, and is wielded with one aim; and when we consider that tyranny is always timid, and despotism distrustful, we see that this vast money power would be false to itself, did it not direct all its eyes and hands, and put forth all its ingenuity and energy, to one end—self-protection and self-perpetuation. And this it has ever done. In all the vibrations of the political scale, whether in relation to a Bank or Sub-Treasury, Free Trade or a Tariff, this immense power has moved, and will continue to move, in one mass, for its own protection.

While the weight of the slave influence is thus felt in the House of Representatives, "in the Senate of the Union," says JOHN QUINCY ADAMS, "the proportion of slaveholding power is still greater. By the influence of slavery in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the fifty-two members of the federal Senate, twenty-six are owners of slaves, and are as effectually representatives of that interest, as the eighty-eight members elected by them to the House"

The dominant power which the Constitution gives to the slave interest, as thus seen and exercised in the *Legislative Halls* of our nation, is equally obvious and obtrusive in every other department of the National government.

In the *Electoral colleges*, the same cause produces the same effect—the same power is wielded for the same purpose, as in the Halls of Congress. Even the preliminary nominating conventions, before they dare name a candidate for the highest office in the gift of the people, must ask of the Genius of slavery, to what votary she will show herself propitious. This very year, we see both the great political parties doing homage to the slave power, by nominating each a slaveholder for the chair of State. The candidate of one party declares, "I should have opposed, and would continue to oppose, any scheme whatever of emancipation, either gradual or immediate;" and adds, "It is not true, and I rejoice that it is not true, that either of the two great parties of this country has any design or aim at abolition. I should deeply lament it, if it were true." [\[12\]](#)

[Footnote [12](#): Henry Clay's speech in the United States Senate in 1839, and confirmed at Raleigh, N.C. 1844.]

The other party nominates a man who says, "I have no hesitation in declaring that I am in favor of the immediate re-annexation of Texas to the territory and government of the United States."

Thus both the political parties, and the candidates of both, vie with each other, in offering allegiance to the slave power, as a condition precedent to any hope of success in the struggle for the executive chair; a seat that, for more than three-fourths of the existence of our constitutional government, has been occupied by a slaveholder.

The same stern despotism overshadows even the sanctuaries of *justice*. Of the nine Justices of the Supreme Court of the United States, five are slaveholders, and of course, must be faithless to their own interest, as well as recreant to the power that gives them place, or must, so far as *they* are concerned, give both to law and constitution such a construction as shall justify the language of John Quincy Adams, when he says—"The legislative, executive, and judicial authorities, are all in their hands—for the preservation, propagation, and perpetuation of the black code of slavery. Every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of wrong."

Thus by merely advertng but briefly to the theory and the practical effect of this clause of the Constitution, that I have sworn to support, it is seen that it throws the political power of the nation into the hands of the slaveholders; a body of men, which, however it may be regarded by the Constitution as "persons," is in fact and practical effect, a vast moneyed corporation, bound together by an indissoluble unity of interest, by a common sense of a common danger; counselling at all times for its common protection; wielding the whole power, and controlling the destiny of the nation.

If we look into the legislative halls, slavery is seen in the chair of the presiding officer of each; and controlling the action of both. Slavery occupies, by prescriptive right, the Presidential chair. The paramount voice that comes from the temple of national justice, issues from the lips of slavery. The army is in the hands of slavery, and at her bidding, must encamp in the everglades of Florida, or march from the Missouri to the borders of Mexico, to look after her interests in Texas.

The navy, even that part that is cruising off the coast of Africa, to suppress the foreign slave trade, is in the hands of slavery.

Freemen of the North, who have even dared to lift up their voice against slavery, cannot travel through the slave States, but at the peril of their lives.

The representatives of freemen are forbidden, on the floor of Congress, to remonstrate against the encroachments of slavery, or to pray that she would let her poor victims go.

I renounce my allegiance to a Constitution that enthrones such a power, wielded for the purpose of depriving me of my rights, of robbing my countrymen of their liberties, and of securing its own protection, support and perpetuation.

Passing by that clause of the Constitution, which restricted Congress for twenty years, from passing any law against the African slave trade, and which gave authority to raise a revenue on the stolen sons of Africa, I come to that part of the fourth article, which guarantees protection against "*domestic violence*," which pledges to the South the military force of the country, to protect the masters against their insurgent slaves, and binds us, and our children, to shoot down our fellow-countrymen, who may rise, in

emulation of our revolutionary fathers, to vindicate their inalienable "right to life, *liberty*, and the pursuit of happiness,"—this clause of the Constitution, I say distinctly, I never will support.

That part of the Constitution which provides for the surrender of fugitive slaves, I never have supported and never will. I will join in no slave-hunt. My door shall stand open, as it has long stood, for the panting and trembling victim of the slave-hunter. When I shut it against him, may God shut the door of his mercy against me! Under this clause of the Constitution, and designed to carry it into effect, slavery has demanded that laws should be passed, and of such a character, as have left the free citizen of the North without protection for his own liberty. The question, whether a man seized in a free State as a slave, is a slave or not, the law of Congress does not allow a jury to determine: but refers it to the decision of a Judge of a United States' Court, or even of the humblest State magistrate, it may be, upon the testimony or affidavit of the party most deeply interested to support the claim. By virtue of this law, freemen have been seized and dragged into perpetual slavery—and should I be seized by a slave-hunter in any part of the country where I am not personally known, neither the Constitution nor laws of the United States would shield me from the same destiny.

These, sir, are the specific parts of the Constitution of the United States, which in my opinion are essentially vicious, hostile at once to the liberty and to the morals of the nation. And these are the principal reasons of my refusal any longer to acknowledge my allegiance to it, and of my determination to revoke my oath to support it. I cannot, in order to keep the law of man, break the law of God, or solemnly call him to witness my promise that I will break it.

It is true that the Constitution provides for its own amendment, and that by this process, all the guarantees of Slavery may be expunged. But it will be time enough to swear to support it when this is done. It cannot be right to do so, until these amendments are made.

It is also true that the framers of the Constitution did studiously keep the words "Slave" and "Slavery" from its face. But to do our constitutional fathers justice, while they forebore—from very shame—to give the word

"Slavery" a place in the Constitution, they did not forbear—again to do them justice—to give place in it to the *thing*. They were careful to wrap up the idea, and the substance of Slavery, in the clause for the surrender of the fugitive, though they sacrificed justice in doing so.

There is abundant evidence that this clause touching "persons held to service or labor," not only operates practically, under the Judicial construction, for the protection of the slave interest; but that it was *intended* so to operate by the framers of the Constitution. The highest Judicial authorities—Chief Justice SHAW, of the Supreme Court of Massachusetts, in the LATIMER case, and Mr. Justice STORY, in the Supreme Court of the United States, in the case of *Prigg vs. The State of Pennsylvania*,—tell us, I know not on what evidence, that without this "compromise," this security for Southern slaveholders, "the Union could not have been formed." And there is still higher evidence, not only that the framers of the Constitution meant by this clause to protect slavery, but that they did this, knowing that slavery was wrong. Mr. MADISON^[13] informs us that the clause in question, as it came of the hands of Dr. JOHNSON, the chairman of the "committee on style," read thus: "No person legally held to service, or labor, in one State, escaping into another, shall," &c. and that the word "legally" was struck out, and the words "under the laws thereof" inserted after the word "State," in compliance with the wish of some, who thought the term *legal* equivocal, and favoring the idea that slavery was legal "*in a moral view*." A conclusive proof that, although future generations might apply that clause to other kinds of "service or labor," when slavery should have died out, or been killed off by the young spirit of liberty, which was *then* awake and at work in the land; still, slavery was what they were wrapping up in "equivocal" words; and wrapping it up for its protection and safe keeping: a conclusive proof that the framers of the Constitution were more careful to protect themselves in the judgment of coming generations, from the charge of ignorance, than of sin; a conclusive proof that they knew that slavery was *not* "legal in a moral view," that it was a violation of the moral law of God; and yet knowing and confessing its immorality, they dared to make this stipulation for its support and defence.

[Footnote ¹³: Madison Papers, p. 1589.]

This language may sound harsh to the ears of those who think it a part of their duty, as citizens, to maintain that whatever the patriots of the Revolution did, was right; and who hold that we are bound to *do* all the iniquity that they covenanted for us that we *should* do. But the claims of truth and right are paramount to all other claims.

With all our veneration for our constitutional fathers, we must admit,—for they have left on record their own confession of it,—that in this part of their work they *intended* to hold the shield of their protection over a wrong, knowing that it was a wrong. They made a "compromise" which they had no right to make—a compromise of moral principle for the sake of what they probably regarded as "political expediency." I am sure they did not know—no man could know, or can now measure, the extent, or the consequences of the wrong that they were doing. In the strong language of JOHN QUINCY ADAMS,[\[14\]](#) in relation to the article fixing the basis of representation, "Little did the members of the Convention, from the free States, imagine or foresee what a sacrifice to Moloch was hidden under the mask of this concession."

[Footnote [14](#): See his Report on the Massachusetts Resolutions.]

I verily believe that, giving all due consideration to the benefits conferred upon this nation by the Constitution, its national unity, its swelling masses of wealth, its power, and the external prosperity of its multiplying millions; yet the moral injury that has been done, by the countenance shown to slavery; by holding over that tremendous sin the shield of the Constitution, and thus breaking down in the eyes of the nation the barrier between right and wrong; by so tenderly cherishing slavery as, in less than the life of a man, to multiply her children from half a million to nearly three millions; by enacting oaths from those who occupy prominent stations in society, that they will violate at once the rights of man and the law of God; by substituting itself as a rule of right, in place of the moral laws of the universe;—thus in effect, dethroning the Almighty in the hearts of this people and setting up another sovereign in his stead—more than outweighs it all. A melancholy and monitory lesson this, to all time-serving and temporizing statesmen! A striking illustration of the *impolicy* of sacrificing

right to any considerations of expediency! Yet, what better than the evil effects that we have seen, could the authors of the Constitution have reasonably expected, from the sacrifice of right, in the concessions they made to slavery? Was it reasonable in them to expect that, after they had introduced a vicious element into the very Constitution of the body politic which they were calling into life, it would not exert its vicious energies? Was it reasonable in them to expect that, after slavery had been corrupting the public morals for a whole generation, their children would have too much virtue to *use* for the defence of slavery, a power which they themselves had not too much virtue to *give*? It is dangerous for the sovereign power of a State to license immorality; to hold the shield of its protection over anything that is not "legal in a moral view." Bring into your house a benumbed viper, and lay it down upon your warm hearth, and soon it will not ask you into which room it may crawl. Let Slavery once lean upon the supporting arm, and bask in the fostering smile of the State, and you will soon see, as we now see, both her minions and her victims multiply apace, till the politics, the morals, the liberties, even the religion of the nation, are brought completely under her control.

To me, it appears that the virus of slavery, introduced into the Constitution of our body politic, by a few slight punctures, has now so pervaded and poisoned the whole system of our National Government, that literally there is no health in it. The only remedy that I can see for the disease, is to be found in the *dissolution of the patient*.

The Constitution of the United States, both in theory and practice, is so utterly broken down by the influence and effects of slavery, so imbecile for the highest good of the nation, and so powerful for evil, that I can give no voluntary assistance in holding it up any longer.

Henceforth it is dead to me, and I to it. I withdraw all profession of allegiance to it, and all my voluntary efforts to sustain it. The burdens that it lays upon me, while it is held up by others, I shall endeavor to bear patiently, yet acting with reference to a higher law, and distinctly declaring, that while I retain my own liberty, I will be a party to no compact, which helps to rob any other man of his.

Very respectfully, your friend,

FRANCIS JACKSON

FROM
MR. WEBSTER'S SPEECH
AT NIBLO'S GARDENS.

"We have slavery, already, amongst us. The Constitution found it among us; it recognized it and gave it SOLEMN GUARANTIES. To the full extent of these guaranties we are all bound, in honor, in justice, and by the Constitution. All the stipulations, contained in the Constitution, *in favor of the slaveholding States* which are already in the Union, ought to be fulfilled, and so far as depends on me, shall be fulfilled, in the fulness of their spirit, and to the exactness of their letter." !!!

EXTRACTS FROM
JOHN Q. ADAMS'S ADDRESS
AT NORTH BRIDGEWATER, NOVEMBER 6, 1844.

The benefits of the Constitution of the United States, were the restoration of credit and reputation, to the country—the revival of commerce, navigation, and ship-building—the acquisition of the means of discharging the debts of the Revolution, and the protection and encouragement of the infant and drooping manufactures of the country. All this, however, as is now well ascertained, was insufficient to propitiate the rulers of the Southern States to the adoption of the Constitution. What they specially wanted was *protection*.—Protection from the powerful and savage tribes of Indians within their borders, and who were harassing them with the most terrible of wars—and protection from their own negroes—protection from their insurrections—protection from their escape—protection even to the trade by which they were brought into the country—protection, shall I not blush to say, protection to the very bondage by which they were held. Yes! it

cannot be denied—the slaveholding lords of the South prescribed, as a condition of their assent to the Constitution, three special provisions to secure the perpetuity of their dominion over their slaves. The first was the immunity for twenty years of preserving the African slave-trade; the second was the stipulation to surrender fugitive slaves—an engagement positively prohibited by the laws of God, delivered from Sinai; and thirdly, the exaction fatal to the principles of popular representation, of a representation for slaves—for articles of merchandise, under the name of persons.

The reluctance with which the freemen of the North submitted to the dictation of these conditions, is attested by the awkward and ambiguous language in which they are expressed. The word slave is most cautiously and fastidiously excluded from the whole instrument. A stranger, who should come from a foreign land, and read the Constitution of the United States, would not believe that slavery or a slave existed within the borders of our country. There is not a word in the Constitution *apparently* bearing upon the condition of slavery, nor is there a provision but would be susceptible of practical execution, if there were not a slave in the land.

The delegates from South Carolina and Georgia distinctly avowed that, without this guarantee of protection to their property in slaves, they would not yield their assent to the Constitution; and the freemen of the North, reduced to the alternative of departing from the vital principle of their liberty, or of forfeiting the Union itself, averted their faces, and with trembling hand subscribed the bond.

Twenty years passed away—the slave markets of the South were saturated with the blood of African bondage, and from midnight of the 31st of December, 1807, not a slave from Africa was suffered ever more to be introduced upon our soil. But the internal traffic was still lawful, and the *breeding* States soon reconciled themselves to a prohibition which gave them the monopoly of the interdicted trade, and they joined the full chorus of reprobation, to punish with death the slave-trader from Africa, while they cherished and shielded and enjoyed the precious profits of the American slave-trade exclusively to themselves.

Perhaps this unhappy result of their concession had not altogether escaped the foresight of the freemen of the North; but their intense anxiety for the

preservation of the whole Union, and the habit already formed of yielding to the somewhat peremptory and overbearing tone which the relation of master and slave welds into the nature of the lord, prevailed with them to overlook this consideration, the internal slave-trade having scarcely existed, while that with Africa had been allowed. But of one consequence which has followed from the slave representation, pervading the whole organic structure of the Constitution, they certainly were not prescient; for if they had been, never—no, never would they have consented to it.

The representation, ostensibly of slaves, under the name of persons, was in its operation an exclusive grant of power to one class of proprietors, owners of one species of property, to the detriment of all the rest of the community. This species of property was odious in its nature, held in direct violation of the natural and inalienable rights of man, and of the vital principles of Christianity; it was all accumulated in one geographical section of the country, and was all held by wealthy men, comparatively small in numbers, not amounting to a tenth part of the free white population of the States in which it was concentrated.

In some of the ancient, and in some modern republics, extraordinary political power and privileges have been invested in the owners of horses but then these privileges and these powers have been granted for the equivalent of extraordinary duties and services to the community, required of the favored class. The Roman knights constituted the cavalry of their armies, and the bushels of rings gathered by Hannibal from their dead bodies, after the battle of Cannae, amply prove that the special powers conferred upon them were no gratuitous grants. But in the Constitution of the United States, the political power invested in the owners of slaves is entirely gratuitous. No extraordinary service is required of them; they are, on the contrary, themselves grievous burdens upon the community, always threatened with the danger of insurrections, to be smothered in the blood of both parties, master and slave, and always depressing the condition of the poor free laborer, by competition with the labor of the slave. The property in horses was the gift of God to man, at the creation of the world; the property in slaves is property acquired and held by crimes, differing in no moral aspect from the pillage of a freebooter, and to which no lapse of time can give a prescriptive right. You are told that this is no concern of yours, and that the question of freedom and slavery is exclusively reserved to the

consideration of the separate States. But if it be so, as to the mere question of right between master and slave, it is of tremendous concern to you that this little cluster of slave-owners should possess, besides their own share in the representative hall of the nation, the exclusive privilege of appointing two-fifths of the whole number of the representatives of the people. This is now your condition, under that delusive ambiguity of language and of principle, which begins by declaring the representation in the popular branch of the legislature a representation of persons, and then provides that one class of persons shall have neither part nor lot in the choice of their representatives; but their elective franchise shall be transferred to their masters, and the oppressors shall represent the oppressed. The same perversion of the representative principle pollutes the composition of the colleges of electors of President and Vice President of the United States, and every department of the government of the Union is thus tainted at its source by the gangrene of slavery.

Fellow-citizens,—with a body of men thus composed, for legislators and executors of the laws, what will, what must be, what has been your legislation? The numbers of freemen constituting your nation are much greater than those of the slaveholding States, bond and free. You have at least three-fifths of the whole population of the Union. Your influence on the legislation and the administration of the government ought to be in the proportion of three to two—But how stands the fact? Besides the legitimate portion of influence exercised by the slaveholding States by the measure of their numbers, here is an intrusive influence in every department, by a representation nominally of persons, but really of property, ostensibly of slaves, but effectively of their masters, overbalancing your superiority of numbers, adding two-fifths of supplementary power to the two-fifths fairly secured to them by the compact, **CONTROLLING AND OVERRULING THE WHOLE ACTION OF YOUR GOVERNMENT AT HOME AND ABROAD**, and warping it to the sordid private interest and oppressive policy of 300,000 owners of slaves.

From the time of the adoption of the Constitution of the United States, the institution of domestic slavery has been becoming more and more the abhorrence of the civilized world. But in proportion as it has been growing odious to all the rest of mankind, it has been sinking deeper and deeper into the affections of the holders of slaves themselves. The cultivation of cotton

and of sugar, unknown in the Union at the establishment of the Constitution, has added largely to the pecuniary value of the slave. And the suppression of the African slave-trade as piracy upon pain of death, by securing the benefit of a monopoly to the virtuous slaveholders of the ancient dominion, has turned her heroic tyrannicides into a community of slave-breeders for sale, and converted the land of GEORGE WASHINGTON, PATRICK HENRY, RICHARD HENRY LEE, and THOMAS JEFFERSON, into a great barracoon—a cattle-show of human beings, an emporium, of which the staple articles of merchandise are the flesh and blood, the bones and sinews of immortal man.

Of the increasing abomination of slavery in the unbought hearts of men at the time when the Constitution of the United States was formed, what clearer proof could be desired, than that the very same year in which that charter of the land was issued, the Congress of the Confederation, with not a tithe of the powers given by the people to the Congress of the new compact, actually abolished slavery for ever throughout the whole Northwestern territory, without a remonstrance or a murmur. But in the articles of confederation, there was no guaranty for the property of the slaveholder—no double representation of him in the Federal councils—no power of taxation—no stipulation for the recovery of fugitive slaves. But when the powers of *government* came to be delegated to the Union, the South—that is, South Carolina and Georgia—refused their subscription to the parchment, till it should be saturated with the infection of slavery, which no fumigation could purify, no quarantine could extinguish. The freemen of the North gave way, and the deadly venom of slavery was infused into the Constitution of freedom. Its first consequence has been to invert the first principle of Democracy, that the will of the majority of numbers shall rule the land. By means of the double representation, the minority command the whole, and a KNOT OF SLAVEHOLDERS GIVE THE LAW AND PRESCRIBE THE POLICY OF THE COUNTRY. To acquire this superiority of a large majority of freemen, a persevering system of engrossing nearly all the seats of power and place, is constantly for a long series of years pursued, and you have seen, in a period of fifty-six years, the Chief-magistracy of the Union held, during forty-four of them, by the owners of slaves. The Executive department, the Army and Navy, the Supreme Judicial Court and diplomatic missions abroad, all present the

same spectacle;—an immense majority of power in the hands of a very small minority of the people—millions made for a fraction of a few thousands.

From that day (1830,) SLAVERY, SLAVEHOLDING, SLAVE-BREEDING AND SLAVE-TRADING, HAVE FORMED THE WHOLE FOUNDATION OF THE POLICY OF THE FEDERAL GOVERNMENT, and of the slaveholding States, at home and abroad; and at the very time when a new census has exhibited a large increase upon the superior numbers of the free States, it has presented the portentous evidence of increased influence and ascendancy of the slave-holding power.

Of the prevalence of that power, you have had continual and conclusive evidence in the suppression for the space of ten years of the right of petition, guarantied, if there could be a guarantee against slavery, by the first article amendatory of the Constitution.

No. 12.

ANTI-SLAVERY EXAMINER.

CHATTEL PRINCIPLE

THE ABHORRENCE OF JESUS

**CHRIST AND THE APOSTLES;
OR,
NO REFUGE FOR AMERICAN
SLAVERY IN THE NEW
TESTAMENT.**

BY BERIAH GREEN.

NEW YORK

PUBLISHED BY THE AMERICAN ANTI-SLAVERY SOCIETY,
NO. 143 NASSAU STREET

1839

This No. contains 4-1/2 sheet—Postage under 100 miles, 7 cts. over 100, 10 cts.

Please Read and circulate.

THE NEW TESTAMENT AGAINST SLAVERY.

"THE SON OF MAN IS COME TO SEEK AND TO SAVE THAT WHICH WAS LOST."

Is Jesus Christ in favor of American slavery? In 1776 THOMAS JEFFERSON, supported by a noble band of patriots and surrounded by the American people, opened his lips in the authoritative declaration: "We hold these truths to be SELF-EVIDENT, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, LIBERTY, and the pursuit of happiness." And from the inmost heart of the multitudes around, and in a strong and clear voice, broke forth the unanimous and decisive answer: Amen—such truths we do indeed hold to be self-evident. And animated and sustained by a declaration, so inspiring and sublime, they rushed to arms, and as the result of agonizing efforts and dreadful sufferings, achieved under God the independence of their country. The great truth, whence they derived light and strength to assert and defend their rights, they made the foundation of their republic. And in the midst of this republic, must we prove, that He, who was the Truth, did not contradict "the truths" which He Himself; as their Creator, had made self-evident to mankind?

Is Jesus Christ in favor of American slavery? What, according to those laws which make it what it is, is American slavery? In the Statute-book of South Carolina thus it is written:[[1](#)] "Slaves shall be deemed, held, taken, reputed and adjudged in law to be chattels personal in the hands of their owners and possessors, and their executors, administrators and assigns, to all intents, construction and purposes whatever." The very root of American slavery consists in the assumption, that law has reduced men to chattels. But this assumption is, and must be, a gross falsehood. Men and cattle are separated from each other by the Creator, immutably, eternally, and by an impassable gulf. To confound or identify men and cattle must be to lie most wantonly, impudently, and maliciously. And must we prove, that Jesus Christ is not in favor of palpable, monstrous falsehood?

[Footnote [1](#): Stroud's Slave Laws, p. 23.]

Is Jesus Christ in favor of American slavery? How can a system, built upon a stout and impudent denial of self-evident truth—a system of treating men like cattle—operate? Thomas Jefferson shall answer. Hear him. "The whole commerce between master and slave is a perpetual exercise of the most boisterous passions; the most unremitting despotism on the one part, and degrading submission on the other. The parent storms, the child looks on, catches the lineaments of wrath, puts on the same airs in the circle of smaller slaves, gives loose to his worst passions, and thus nursed, educated, and daily exercised in tyranny, cannot but be stamped by it with odious peculiarities. The man must be a prodigy, who can retain his manners and morals undepraved by such circumstances."[\[2\]](#) Such is the practical operation of a system, which puts men and cattle into the same family and treats them alike. And must we prove, that Jesus Christ is not in favor of a school where the worst vices in their most hateful forms are systematically and efficiently taught and practiced? Is Jesus Christ in favor of American slavery? What, in 1818, did the General Assembly of the Presbyterian church affirm respecting its nature and operation? "Slavery creates a paradox in the moral system—it exhibits rational, accountable, and immortal beings, in such circumstances as scarcely to leave them the power of moral action. It exhibits them as dependent on the will of others, whether they shall receive religious instruction; whether they shall know and worship the true God; whether they shall enjoy the ordinances of the gospel; whether they shall perform the duties and cherish the endearments of husbands and wives, parents and children, neighbors and friends; whether they shall preserve their chastity and purity, or regard the dictates of justice and humanity. Such are some of the consequences of slavery; consequences not imaginary, but which connect themselves with its very existence. The evils to which the slave is *always* exposed, *often take place* in their very worst degree and form; and where all of them do not take place, still the slave is deprived of his natural rights, degraded as a human being, and exposed to the danger of passing into the hands of a master who may inflict upon him all the hardship and injuries which inhumanity and avarice may suggest."[\[3\]](#) Must we prove, that Jesus Christ is not in favor of such things?

[Footnote [2](#): Notes on Virginia, Boston Ed. 1832, pp. 169, 170.]

[Footnote [3](#): Minutes of the General assembly for 1818, p. 29.]

Is Jesus Christ in favor of American slavery? It is already widely felt and openly acknowledged at the South, that they cannot support slavery without sustaining the opposition of universal Christendom. And Thomas Jefferson declared, "I tremble for my country when I reflect that God is just; that his justice can not sleep forever; that considering numbers, nature, and natural means only, a revolution of the wheel of fortune, an exchange of situation, is among possible events; that it may become practicable by supernatural influences! The Almighty has no attribute which can take sides with us in such a contest."[\[4\]](#) And must we prove, that Jesus Christ is not in favor of what universal Christendom is impelled to abhor, denounce, and oppose; is not in favor of what every attribute of Almighty God is armed against?

[Footnote [4](#): Notes on Virginia, Boston Ed. 1832, pp. 170, 171.]

"YE HAVE DESPISED THE POOR."

It is no man of straw, with whom, in making out such proof, we are called to contend. Would to God we had no other antagonist! Would to God that our labor of love could be regarded as a work of supererogation! But we may well be ashamed and grieved to find it necessary to "stop the mouths" of grave and learned ecclesiastics, who from the heights of Zion have undertaken to defend the institution of slavery. We speak not now of those, who amidst the monuments of oppression are engaged in the sacred vocation; who, as ministers of the Gospel, can "prophecy smooth things" to such as pollute the altar of Jehovah with human sacrifices; nay, who themselves bind the victim and kindle the sacrifice. That they should put their Savior to the torture, to wring from his lips something in favor of slavery, is not to be wondered at. They consent to the murder of the children; can they respect the rights of the Father? But what shall we say of distinguished theologians of the north—professors of sacred literature at our oldest divinity schools—who stand up to defend, both by argument and authority, southern slavery! And from the Bible! Who, Balaam-like, try a

thousand expedients to force from the mouth of Jehovah a sentence which they know the heart of Jehovah abhors! Surely we have here something more mischievous and formidable than a man of straw. More than two years ago, and just before the meeting of the General Assembly of the Presbyterian church, appeared an article in the Biblical Repertory,^[5] understood to be from the pen of the Professor of Sacred Literature at Princeton, in which an effort is made to show, that slavery, whatever may be said of any abuses of it, is not a violation of the precepts of the Gospel. This article, we are informed, was industriously and extensively distributed among the members of the General Assembly—a body of men, who by a frightful majority seemed already too much disposed to wink at the horrors of slavery. The effect of the Princeton Apology on the southern mind, we have high authority for saying, has been most decisive and injurious. It has contributed greatly to turn the public eye off from the sin—from the inherent and necessary evils of slavery to incidental evils, which the abuse of it might be expected to occasion. And how few can be brought to admit, that whatever abuses may prevail nobody knows where or how, any such thing is chargeable upon them! Thus our Princeton prophet has done what he could to lay the southern conscience asleep upon ingenious perversions of the sacred volume!

[Footnote ⁵: For April, 1836. The General Assembly of the Presbyterian Church met in the following May, at Pittsburgh, where, in pamphlet form, this article was distributed. The following appeared upon the title page:

PITTSBURGH:

1836.

For gratuitous distribution.

]

About a year after this, an effort in the same direction was jointly made by Dr. Fisk and Professor Stuart. In a letter to a Methodist clergyman, Mr. Merrit, published in Zion's Herald, Dr. Fisk gives utterance to such things as the following:—

"But that you and the public may see and feel, that you have the ablest and those who are among the honestest men of this age, arrayed against you, be

pleased to notice the following letter from Prof. Stuart. I wrote to him, knowing as I did his integrity of purpose, his unflinching regard for truth, as well as his deserved reputation as a scholar and biblical critic, proposing the following questions:—"

1. Does the New Testament directly or indirectly teach, that slavery existed in the primitive church?
2. In 1 Tim. vi. 2, And they that have believing masters, &c., what is the relation expressed or implied between "they" (servants) and "believing masters?" And what are your reasons for the construction of the passage?
3. What was the character of ancient and eastern slavery?— Especially what (legal) power did this relation give the master over the slave?

PROFESSOR STUART'S REPLY.

ANDOVER, 10th Apr., 1837

REV. AND DEAR SIR,—Yours is before me. A sickness of three month's standing (typhus fever) in which I have just escaped death, and which still confines me to my house, renders it impossible for me to answer your letter at large.

1. The precepts of the New Testament respecting the demeanor of slaves and of their masters, beyond all question, recognize the existence of slavery. The masters are in part "believing masters," so that a precept to them, how they are to behave as masters, recognizes that the relation may still exist, *salva fide et salva ecclesia*, ("without violating the Christian faith or the church.") Otherwise, Paul had nothing to do but to cut the band asunder at once. He could not lawfully and properly temporize with a *malum in se*, ("that which is in itself sin.")

If any one doubts, let him take the case of Paul's sending Onesimus back to Philemon, with an apology for his running away, and sending him back to be his servant for life. The relation did exist, may exist. The *abuse* of it is the essential and fundamental wrong. Not that the theory of slavery is in itself right. No; "Love thy neighbor as thyself," "Do unto others that which ye would that others should do unto you," decide against this. But the relation once constituted and continued, is not such a *malum in se* as calls for immediate and violent disruption at all hazards. So Paul did not counsel.

2. 1 Tim. vi. 2, expresses the sentiment, that slaves, who are Christians and have Christian masters, are not, on that account, and because *as Christians they are brethren*, to forego the reverence due to them as masters. That is, the relation of master and slave is not, as a matter of course, abrogated between all Christians. Nay, servants should in such a case, *a fortiori*, do their duty cheerfully. This sentiment lies on the very face of the case. What the master's duty in such a case may be in

respect to *liberation*, is another question, and one which the apostle does not here treat of.

3. Every one knows, who is acquainted with Greek or Latin antiquities, that slavery among heathen nations has ever been more unqualified and at looser ends than among Christian nations. Slaves were *property* in Greece and Rome. That decides all questions about their *relation*. Their treatment depended, as it does now, on the temper of their masters. The power of the master over the slave was, for a long time, that of *life and death*. Horrible cruelties at length mitigated it. In the apostle's day, it was at least as great as among us.

After all the spouting and vehemence on this subject, which have been exhibited, the *good old Book* remains the same. Paul's conduct and advice are still safe guides. Paul knew well that Christianity would ultimately destroy slavery, as it certainly will. He knew, too, that it would destroy monarchy and aristocracy from the earth: for it is fundamentally a doctrine of *true liberty and equality*. Yet Paul did not expect slavery or anarchy to be ousted in a day; and gave precepts to Christians respecting their demeanor *ad interim*.

With sincere and paternal regard,

Your friend and brother,

M. STUART.

—This, sir, is doctrine that will stand, because it is *Bible doctrine*. The abolitionists, then, are on a wrong course. They have traveled out of the record; and if they would succeed, they must take a different position, and approach the subject in a different manner.

Respectfully yours,

W. FISK"

"SO THEY WRAP [SNARL] IT UP."

What are we taught here? That in the ecclesiastical organizations which grew up under the hands of the apostles, slavery was admitted as a relation that did not violate the Christian faith; that the relation may now in like manner exist; that "the abuse of it is the essential and fundamental wrong;" and of course, that American Christians may hold their own brethren in slavery without incurring guilt or inflicting injury. Thus, according to Prof. Stuart, Jesus Christ has not a word to say against "the peculiar institutions" of the South. If our brethren there do not "abuse" the privilege of enacting unpaid labor, they may multiply their slaves to their hearts' content, without exposing themselves to the frown of the Savior or laying their Christian character open to the least suspicion. Could any trafficker in human flesh ask for greater latitude! And to such doctrines, Dr. Fisk eagerly and earnestly subscribes. He goes further. He urges it on the attention of his brethren, as containing important truth, which they ought to embrace. According to him, it is "*Bible doctrine*," showing, that "the abolitionists are on a wrong course," and must, "if they would succeed, take a different position."

We now refer to such distinguished names, to show, that in attempting to prove that Jesus Christ is not in favor of American slavery, we contend with something else than a man of straw. The ungrateful task, which a particular examination of Professor Stuart's letter lays upon us, we hope fairly to dispose of in due season. Enough has now been said to make it clear and certain, that American slavery has its apologists and advocates in the northern pulpit; advocates and apologists, who fall behind few if any of their brethren in the reputation they have acquired, the stations they occupy, and the general influence they are supposed to exert.

Is it so? Did slavery exist in Judea, and among the Jews, in its worst form, during the Savior's incarnation? If the Jews held slaves, they must have done in open and flagrant violation of the letter and the spirit of the Mosaic Dispensation. Whoever has any doubts of this may well resolve his doubts in the light of the Argument entitled "The Bible against Slavery." If, after a

careful and thorough examination of that article, he can believe that slaveholding prevailed during the ministry of Jesus Christ among the Jews and in accordance with the authority of Moses, he would do the reading public an important service to record the grounds of his belief—especially in a fair and full refutation of that Argument. Till that is done, we hold ourselves excused from attempting to prove what we now repeat, that if the Jews during our Savior's incarnation held slaves, they must have done so in open and flagrant violation of the letter and spirit of the Mosaic Dispensation. Could Christ and the Apostles every where among their countrymen come in contact with slaveholding, being as it was a gross violation of that law which their office and their profession required them to honor and enforce, without exposing and condemning it?

In its worst forms, we are told, slavery prevailed over the whole world, not excepting Judea. As, according to such ecclesiastics as Stuart, Hodge and Fisk, slavery in itself is not bad at all, the term "*worst*" could be applied only to "*abuses*" of this innocent relation. Slavery accordingly existed among the Jews, disfigured and disgraced by the "*worst abuses*" to which it is liable. These abuses in the ancient world, Professor Stuart describes as "*horrible cruelties*." And in our own country, such abuses have grown so rank, as to lead a distinguished eye-witness—no less a philosopher and statesman than Thomas Jefferson—to say, that they had armed against us every attribute of the Almighty. With these things the Savior every where came in contact, among the people to whose improvement and salvation he devoted his living powers, and yet not a word, not a syllable, in exposure and condemnation of such "*horrible cruelties*" escaped his lips! He saw—among the "*covenant people*" of Jehovah he saw, the babe plucked from the bosom of its mother; the wife torn from the embrace of her husband; the daughter driven to the market by the scourge of her own father;—he saw the word of God sealed up from those who, of all men, were especially entitled to its enlightening, quickening influence;—nay, he saw men beaten for kneeling before the throne of heavenly mercy;—such things he saw without a word of admonition or reproof! No sympathy with them who suffered wrong—no indignation at them who inflicted wrong, moved his heart!

From the alleged silence of the Savior, when in contact with slavery among the Jews, our divines infer, that it is quite consistent with Christianity. And

they affirm, that he saw it in its worst forms; that is, he witnessed what Professor Stuart ventures to call "horrible cruelties." But what right have these interpreters of the sacred volume to regard any form of slavery which the Savior found, as "worst," or even bad? According to their inference—which they would thrust gag-wise into the mouths of abolitionists—his silence should seal up their lips. They ought to hold their tongues. They have no right to call any form of slavery bad—an abuse; much less, horribly cruel! Their inference is broad enough to protect the most brutal driver amidst his deadliest inflictions!

**"THINK NOT THAT I AM COME TO
DESTROY THE LAW OR THE PROPHETS;
I AM NOT COME TO DESTROY, BUT TO
FULFIL."**

And did the Head of the new dispensation, then, fall so far behind the prophets of the old in a hearty and effective regard for suffering humanity? The forms of oppression which they witnessed, excited their compassion and aroused their indignation. In terms the most pointed and powerful, they exposed, denounced, threatened. They could not endure the creatures, "who used their neighbors' service without wages, and gave him not for his work;"[6] who imposed "heavy burdens"[7] upon their fellows, and loaded them with "the bands of wickedness;" who, "hiding themselves from their own flesh," disowned their own mothers' children. Professions of piety joined with the oppression of the poor, they held up to universal scorn and execration, as the dregs of hypocrisy. They warned the creature of such professions, that he could escape the wrath of Jehovah only by heart-felt repentance. And yet, according to the ecclesiastics with whom we have to do, the Lord of these prophets passed by in silence just such enormities as he commanded them to expose and denounce! Every where, he came in contact with slavery in its worst forms—"horrible cruelties" forced themselves upon his notice; but not a word of rebuke or warning did he utter. He saw "a boy given for a harlot, and a girl sold for wine, that they might drink,"[8] without the slightest feeling of displeasure, or any mark of disapprobation! To such disgusting and horrible conclusions, do the arguings which, from the haunts of sacred literature, are inflicted on our churches, lead us! According to them, Jesus Christ, instead of shining as the light of the world, extinguished the torches which his own prophets had kindled, and plunged mankind into the palpable darkness of a starless midnight! O savior, in pity to thy suffering people, let thy temple be no longer used as a "den of thieves!"

[Footnote [6](#): Jeremiah, xxii. 13.]

[Footnote [7](#): Isaiah, lviii. 6, 7.]

[Footnote [8](#): Joel, iii. 3.]

"THOU THOUGHTEST THAT I WAS ALTOGETHER SUCH AN ONE AS THYSELF."

In passing by the worst forms of slavery, with which he every where came in contact among the Jews, the Savior must have been inconsistent with himself. He was commissioned to preach glad tidings to the poor; to heal the broken-hearted; to preach deliverance to the captives; to set at liberty them that are bruised; to preach the year of Jubilee. In accordance with this commission, he bound himself, from the earliest date of his incarnation, to the poor, by the strongest ties; himself "had not where to lay his head;" he exposed himself to misrepresentation and abuse for his affectionate intercourse with the outcasts of society; he stood up as the advocate of the widow, denouncing and dooming the heartless ecclesiastics, who had made her bereavement a source of gain; and in describing the scenes of the final judgment, he selected the very personification of poverty, disease and oppression, as the test by which our regard for him should be determined. To the poor and wretched; to the degraded and despised, his arms were ever open. They had his tenderest sympathies. They had his warmest love. His heart's blood he poured out upon the ground for the human family, reduced to the deepest degradation, and exposed to the heaviest inflictions, as the slaves of the grand usurper. And yet, according to our ecclesiastics, that class of sufferers who had been reduced immeasurably below every other shape and form of degradation and distress; who had been most rudely thrust out of the family of Adam, and forced to herd with swine; who, without the slightest offence, had been made the footstool of the worst criminals; whose "tears were their meat night and day," while, under nameless insults and killing injuries they were continually crying, O Lord, O Lord:—this class of sufferers, and this alone, our biblical expositors, occupying the high places of sacred literature, would make us believe the compassionate Savior coldly overlooked. Not an emotion of pity; not a look of sympathy; not a word of consolation, did his gracious heart prompt him to bestow upon them! He denounces damnation upon the devourer of the widow's house. But the monster, whose trade it is to make widows and

devour them and their babes, he can calmly endure! O Savior, when wilt thou stop the mouths of such blasphemers!

"IT IS THE SPIRIT THAT QUICKENETH."

It seems that though, according to our Princeton professor, "the subject" of slavery "is hardly alluded to by Christ in any of his personal instructions," [9] he had a way of "treating it." What was that? Why, "he taught the true nature, DIGNITY, EQUALITY, and destiny of men," and "inculcated the principles of justice and love." [10] And according to Professor Stuart, the maxims which our Savior furnished, "decide against" "the theory of slavery." All, then, that these ecclesiastical apologists for slavery can make of the Savior's alleged silence is, that he did not, in his personal instructions, "*apply his own principles to this particular form of wickedness.*" For wicked that must be, which the maxims of the Savior decide against, and which our Princeton professor assures us the principles of the gospel, duly acted on, would speedily extinguish. [11] How remarkable it is, that a teacher should "hardly allude to a subject in any of his personal instructions," and yet inculcate principles which have a direct and vital bearing upon it!—should so conduct, as to justify the inference, that "slaveholding is not a crime," [12] and at the same time lend its authority for its "speedy extinction!"

[Footnote 9: Pittsburg pamphlet, (already alluded to,) p. 9.]

[Footnote 10: Pittsburg pamphlet, p. 9.]

[Footnote 11: The same, p. 34.]

[Footnote 12: The same, p. 13.]

Higher authority than sustains *self-evident truths* there cannot be. As forms of reason, they are rays from the face of Jehovah. Not only are their presence and power self-manifested, but they also shed a strong and clear light around them. In their light, other truths are visible. Luminaries themselves, it is their office to enlighten. To their authority, in every department of thought, the same mind bows promptly, gratefully, fully. And

by their authority, he explains, proves, and disposes of whatever engages his attention and engrosses his powers as a reasonable and reasoning creature. For what, when thus employed and when most successful, is the utmost he can accomplish? Why, to make the conclusions which he would establish and commend, *clear in the light of reason*;—in other words, to evince that *they are reasonable*. He expects that those with whom he has to do will acknowledge the authority of principle—will see whatever is exhibited in the light of reason. If they require him to go further, and, in order to convince them, to do something more than show that the doctrines he maintains, and the methods he proposes, are accordant with reason—are illustrated and supported with "self-evident truths"—they are plainly "beside themselves." They have lost the use of reason. They are not to be argued with. They belong to the mad-house.

"COME NOW, LET US REASON TOGETHER, SAITH THE LORD."

Are we to honor the Bible, which Professor Stuart quaintly calls "the good old book," by turning away from "self-evident truths" to receive its instructions? Can these truths be contradicted or denied there? Do we search for something there to obscure their clearness, or break their force, or reduce their authority? Do we long to find something there, in the form of premises or conclusions, of arguing or of inference, in broad statement or blind hints, creed-wise or fact-wise, which may set us free from the light and power of first principles? And what if we were to discover what we were thus in search of?—something directly or indirectly, expressly or impliedly prejudicial to the principles, which reason, placing us under the authority of, makes self-evident? In what estimation, in that case, should we be constrained to hold the Bible? Could we longer honor it as the book of God? *The book of God opposed to the authority of REASON!* Why, before what tribunal do we dispose of the claims of the sacred volume to divine authority? The tribunal of reason. *This every one acknowledges the moment he begins to reason on the subject.* And what must reason do with a book, which reduces the authority of its own principles—breaks the force of self-evident truths? Is he not, by way of eminence, the apostle of infidelity, who, as a minister of the gospel or a professor of sacred literature, exerts himself, with whatever arts of ingenuity or show of piety, to exalt the Bible at the expense of reason? Let such arts succeed and such piety prevail, and Jesus Christ is "crucified afresh and put to an open shame."

What saith the Princeton professor? Why, in spite of "general principles," and "clear as we may think the arguments against DESPOTISM, there have been thousands of ENLIGHTENED *and good men*, who *honestly* believe it to be of all forms of government the best and most acceptable to God."[\[13\]](#) Now these "good men" must have been thus warmly in favor of despotism, in consequence of, or in opposition to, their being "enlightened." In other words, the light, which in such abundance they enjoyed, conducted them to the position in favor of despotism, where the Princeton professor so heartily

shook hands with them, or they must have forced their way there in despite of its hallowed influence. Either in accordance with, or in resistance to the light, they became what he found them—the advocates of despotism. If in resistance to the light—and he says they were "enlightened men"—what, so far as the subject with which alone he and we are now concerned, becomes of their "honesty" and "goodness?" Good and honest resisters of the light, which was freely poured around them! Of such, what says Professor Stuart's "good old Book?" Their authority, where "general principles" command the least respect, must be small indeed. But if in accordance with the light, they have become the advocates of despotism, then is despotism "the best form of government and most acceptable to God." It is sustained by the authority of reason, by the word of Jehovah, by the will of Heaven! If this be the doctrine which prevails at certain theological seminaries, it must be easy to account for the spirit which they breathe, and the general influence which they exert. Why did not the Princeton professor place this "general principle" as a shield, heaven-wrought and reason approved, over that cherished form of despotism which prevails among the churches of the South, and leave the "peculiar institutions" he is so forward to defend, under its protection?

[Footnote [13](#): Pittsburg pamphlet, p. 12.]

What is the "general principle" to which, whatever may become of despotism, with its "honest" admirers and "enlightened" supporters, human governments should be universally and carefully adjusted? Clearly this—*that as capable of, man is entitled to, self government*. And this is a specific form of a still more general principle, which may well be pronounced self-evident—*that every thing should be treated according to its nature*. The mind that can doubt this, must be incapable of rational conviction. Man, then,—it is the dictate of reason, it is the voice of Jehovah—must be treated as *a man*. What is he? What are his distinctive attributes? The Creator impressed his own image on him. In this were found the grand peculiarities of his character. Here shone his glory. Here REASON manifests its laws. Here the WILL puts forth its volitions. Here is the crown of IMMORTALITY. Why such endowments? Thus furnished—the image of Jehovah—is he not capable of self-government? And is he not to be so

treated? *Within the sphere where the laws of reason place him*, may he not act according to his choice—carry out his own volitions?—may he not enjoy life, exult in freedom, and pursue as he will the path of blessedness? If not, why was he so created and endowed? Why the mysterious, awful attribute of will? To be a source, profound as the depths of hell, of exquisite misery, of keen anguish, of insufferable torment! Was man, formed "according to the image of Jehovah," to be crossed, thwarted, counteracted; to be forced in upon himself; to be the sport of endless contradictions; to be driven back and forth forever between mutually repellant forces; and all, all "*at the discretion of another!*"[[14](#)] How can man be treated according to his nature, as endowed with reason or will, if excluded from the powers and privileges of self-government?—if "despotism" be let loose upon him, to "deprive him of personal liberty, oblige him to serve at the discretion of another" and with the power of "transferring" such "authority" over him and such claim upon him, to "another master?" If "thousands of enlightened and good men" can so easily be found, who are forward to support "despotism" as "of all governments the best and most acceptable to God," we need not wonder at the testimony of universal history, that "the whole creation groaneth and travaileth in pain together until now." Groans and travail pangs must continue to be the order of the day throughout "the whole creation," till the rod of despotism be broken, and man be treated as man—as capable of, and entitled to, self-government.

[Footnote [14](#): Pittsburg pamphlet, p. 12.]

But what is the despotism whose horrid features our smooth professor tries to hide beneath an array of cunningly selected words and nicely-adjusted sentences? It is the despotism of American slavery—which crushes the very life of humanity out of its victims, and transforms them to cattle! At its touch, they sink from men to things! "Slaves," saith Professor Stuart, "were *property* in Greece and Rome. That decides all questions about their *relation*." Yes, truly. And slaves in republican America are *property*; and as that easily, clearly, and definitely settles "all questions about their *relation*," why should the Princeton professor have put himself to the trouble of weaving a definition equally ingenious and inadequate—at once subtle and deceitful. Ah, why? Was he willing thus to conceal the wrongs of his

mother's children even from himself? If among the figments of his brain, he could fashion slaves, and make them something else than property, he knew full well that a very different pattern was in use among the southern patriarchs. Why did he not, in plain words and sober earnest, and good faith, describe the thing as it was, instead of employing honied words and courtly phrases, to set forth with all becoming vagueness and ambiguity, what might possibly be supposed to exist in the regions of fancy.

"FOR RULERS ARE NOT A TERROR TO GOOD WORKS, BUT TO THE EVIL."

But are we, in maintaining the principle of self-government, to overlook the unripe, or neglected, or broken powers of any of our fellow-men with whom we may be connected?—or the strong passions, vicious propensities, or criminal pursuits of others? Certainly not. But in providing for their welfare, we are to exert influences and impose restraints suited to their character. In wielding those prerogatives which the social of our nature authorizes us to employ for their benefit, we are to regard them as they are in truth, not things, not cattle, not articles of merchandize, but men, our fellow-men—reflecting, from however battered and broken a surface, reflecting with us the image of a common Father. And the great principle of self-government is to be the basis, to which the whole structure of discipline under which they may be placed, should be adapted. From the nursery and village school on to the work-house and state-prison, this principle is ever and in all things to be before the eyes, present in the thoughts, warm on the heart. Otherwise, God is insulted, while his image is despised and abused. Yes, indeed; we remember, that in carrying out the principle of self-government, multiplied embarrassments and obstructions grow out of wickedness on the one hand and passion on the other. Such difficulties and obstacles we are far enough from overlooking. But where are they to be found? Are imbecility and wickedness, bad hearts and bad heads, confined to the bottom of society? Alas, the weakest of the weak, and the desperately wicked, often occupy the high places of the earth, reducing every thing within their reach to subserviency to the foulest purposes. Nay, the very power they have usurped, has often been the chief instrument of turning their heads, inflaming their passions, corrupting their hearts. All the world knows, that the possession of arbitrary power has a strong tendency to make men shamelessly wicked and insufferably mischievous. And this, whether the vassals over whom they domineer, be few or many. If you cannot trust man with himself, will you put his fellows under his control?—and flee from the inconveniences incident to self-government, to the horrors of despotism?

"THOU THAT PREACHEST A MAN SHOULD NOT STEAL, DOST THOU STEAL."

Is the slaveholder, the most absolute and shameless of all despots, to be entrusted with the discipline of the injured men who he himself has reduced to cattle?—with the discipline with which they are to be prepared to wield the powers and enjoy the privileges of freemen? Alas, of such discipline as *he* can furnish, in the relation of owner to property, they have had enough. From this sprang the very ignorance and vice, which in the view of many, lie in the way of their immediate enfranchisement. He it is, who has darkened their eyes and crippled their powers. And are they to look to him for illumination and renewed vigor!—and expect "grapes from thorns and figs from thistles!" Heaven forbid! When, according to arrangements which had usurped the sacred name of law, he consented to receive and use them as property, he forfeited all claims to the esteem and confidence, not only of the helpless sufferers themselves, but also of every philanthropist. In becoming a slaveholder, he became the enemy of mankind. The very act was a declaration of war upon human nature. What less can be made of the process of turning men to cattle? It is rank absurdity—it is the height of madness, to propose to employ *him* to train, for the places of freemen, those whom he has wantonly robbed of every right—whom he has stolen from themselves. Sooner place Burke, who used to murder for the sake of selling bodies to the dissector, at the head of a hospital. Why, what have our slaveholders been about these two hundred years? Have they not been constantly and earnestly engaged in the work of education?—training up their human cattle? And how? Thomas Jefferson shall answer. "The whole commerce between master and slave, is a perpetual exercise of the most boisterous passions; the most unremitting despotism on the one part, and degrading submission on the other." Is this the way to fit the unprepared for the duties and privileges of American citizens? Will the evils of the dreadful process be diminished by adding to its length? What, in 1818, was the unanimous testimony of the General Assembly of the Presbyterian Church? Why, after describing a variety of influences growing out of slavery, most fatal to mental and moral improvement, the General Assembly assure us,

that such "consequences are not imaginary, but connect themselves WITH THE VERY EXISTENCE[[15](#)] of slavery. The evils to which the slave is *always* exposed, *often* take place in fact, and IN THEIR VERY WORST DEGREE AND FORM; and where all of them do not take place," "still the slave is deprived of his natural right, degraded as a human being, and exposed to the danger of passing into the hands of a master who may inflict upon him all the hardships and injuries which inhumanity and avarice may suggest." Is this the condition in which our ecclesiastics would keep the slave, at least a little longer, to fit him to be restored to himself?

[Footnote [15](#): The words here marked as emphatic, were so distinguished by ourselves.]

"AND THEY STOPPED THEIR EARS."

The methods of discipline under which, as slaveholders; the Southrons now place their human cattle, they with one consent and in great wrath, forbid us to examine. The statesman and the priest unite in the assurance, that these methods are none of our business. Nay, they give us distinctly to understand, that if we come among them to take observations, and make inquiries, and discuss questions, they will dispose of us as outlaws. Nothing will avail to protect us from speedy and deadly violence! What inference does all this warrant? Surely, not that the methods which they employ are happy and worthy of universal application. If so, why do they not take the praise, and give us the benefit of their wisdom, enterprise, and success? Who, that has nothing to hide, practices concealment? "He that doeth truth cometh to the light, that his deeds may be manifest, that they are wrought in God." Is this the way of slaveholders? Darkness they court—they will have darkness. Doubtless "because their deeds are evil." Can we confide in methods for the benefit of our enslaved brethren, which it is death for us to examine? What good ever came, what good can we expect, from deeds of darkness?

Did the influence of the masters contribute any thing in the West Indies to prepare the apprentices for enfranchisement? Nay, verily. All the world knows better. They did what in them lay, to turn back the tide of blessings, which, through emancipation, was pouring in upon the famishing around them. Are not the best minds and hearts in England now thoroughly convinced, that slavery, under no modification, can be a school for freedom?

We say such things to the many who allege, that slaves cannot at once be entrusted with the powers and privileges of self-government. However this may be, they cannot be better qualified under the *influence of slavery*. *That must be broken up* from which their ignorance, and viciousness, and wretchedness proceeded. That which can only do what it has always done, pollute and degrade, must not be employed to purify and elevate. *The lower their character and condition, the louder, clearer, sterner, the just demand*

for immediate emancipation. The plague-smitten sufferer can derive no benefit from breathing a little longer an infected atmosphere.

In thus referring to elemental principles—in thus availing ourselves of the light of self-evident truths—we bow to the authority and tread in the foot-prints of the great Teacher. He chid those around him for refusing to make the same use of their reason in promoting their spiritual, as they made in promoting their temporal welfare. He gives them distinctly to understand, that they need not go out of themselves to form a just estimation of their position, duties, and prospects, as standing in the presence of the Messiah. "Why, EVEN OF YOURSELVES," he demands of them, "judge ye not what is *right*?"[[16](#)] How could they, unless they had a clear light, and an infallible standard *within them*, whereby, amidst the relations they sustained and the interests they had to provide for, they might discriminate between truth and falsehood, right and wrong, what they ought to attempt and what they ought to eschew? From this pointed, significant appeal of the Savior, it is clear and certain, that in human consciousness may be found self-evident truths, self-manifested principles; that every man, studying his own consciousness, is bound to recognize their presence and authority, and in sober earnest and good faith to apply them to the highest practical concerns of "life and godliness." It is in obedience to the Bible, that we apply self-evident truths, and walk in the light of general principles. When our fathers proclaimed these truths, and at the hazard of their property, reputation, and life, stood up in their defence, they did homage to the sacred Scriptures—they honored the Bible. In that volume, not a syllable can be found to justify that form of infidelity, which in the abused name of piety, reproaches us for practising the lessons which nature teacheth. These lessons, the Bible requires us [[17](#)] reverently to listen to, earnestly to appropriate, and most diligently and faithfully to act upon in every direction, and on all occasions.

[Footnote [16](#): Luke, xii. 57.]

[Footnote [17](#): Cor. xi. 14.]

Why, our Savior goes so far in doing honor to reason, as to encourage men universally to dispose of the characteristic peculiarities and distinctive features of the Gospel in the light of its principles. "If any man will do his

will, he shall know of the doctrine, whether it be of God, or whether I speak of myself."[18] Natural religion—the principles which nature reveals, and the lessons which nature teaches—he thus makes a test of the truth and authority of revealed religion. So far was he, as a teacher, from shrinking from the clearest and most piercing rays of reason—from calling off the attention of those around him from the import, bearings, and practical application of general principles. And those who would have us escape from the pressure of self-evident truths, by betaking ourselves to the doctrines and precepts of Christianity, whatever airs of piety they may put on, do foul dishonor to the Savior of mankind.

[Footnote 18: John, vii. 17.]

And what shall we say of the Golden Rule, which, according to the Savior, comprehends all the precepts of the Bible? "Whatsoever ye would that men should do to you, do ye even so to them; for this is the law and the prophets."

According to this maxim, in human consciousness, universally, may be found,

- 1. The standard whereby, in all the relations and circumstances of life, we may determine what Heaven demands and expects of us.
- 2. The just application of this standard, is practicable for, and obligatory upon, every child of Adam.
- 3. The qualification requisite to a just application of this rule to all the cases in which we can be concerned, is simply this—to *regard all the members of the human family as our brethren, our equals.*

In other words, the Savior here teaches us, that in the principles and laws of reason, we have an infallible guide in all the relations and circumstances of life; that nothing can hinder our following this guide, but the bias of *selfishness*; and that the moment, in deciding any moral question, we place *ourselves in the room of our brother*, before the bar of reason, we shall see what decision ought to be pronounced. Does this, in the Savior, look like fleeing self-evident truths!—like decrying the authority of general principles!—like exalting himself at the expense of reason!—like opening a

refuge in the Gospel for those whose practice is at variance with the dictates of humanity!

What then is the just application of the Golden Rule—that fundamental maxim of the Gospel, giving character to, and shedding light upon, all its precepts and arrangements—to the subject of slavery?—*that we must "do to" slaves as we would be done by, AS SLAVES, the RELATION itself being justified and continued?* Surely not. A little reflection will enable us to see, that the Golden Rule reaches farther in its demands, and strikes deeper in its influences and operations. The *natural equality* of mankind lies at the very basis of this great precept. It obviously requires *every man to acknowledge another self in every other man*. With my powers and resources, and in my appropriate circumstances, I am to recognize in any child of Adam who may address me, another self in his appropriate circumstances and with his powers and resources. This is the natural equality of mankind; and this the Golden Rule requires us to admit, defend, and maintain.

"WHY DO YE NOT UNDERSTAND MY SPEECH; EVEN BECAUSE YE CANNOT HEAR MY WORD."

They strangely misunderstand and grossly misrepresent this doctrine, who charge upon it the absurdities and mischiefs which *any "levelling system"* cannot but produce. In all its bearings, tendencies, and effects, it is directly contrary and powerfully hostile to any such system. EQUALITY OF RIGHTS, the doctrine asserts; and this necessarily opens the way for *variety of condition*. In other words, every child of Adam has, from the Creator, the inalienable right of wielding, within reasonable limits, his own powers, and employing his own resources, according to his own choice;—the right, while he respects his social relations, to promote as he will his own welfare. But mark—HIS OWN powers and resources, and NOT ANOTHER'S, are thus inalienably put under his control. The Creator makes every man free, in whatever he may do, to exert HIMSELF, and not *another*. Here no man may lawfully cripple or embarrass another. The feeble may not hinder the strong, nor may the strong crush the feeble. Every man may make the most of himself, in his own proper sphere. Now, as in the constitutional endowments; and natural opportunities, and lawful acquisitions of mankind, infinite variety prevails, so in exerting each HIMSELF, in his own sphere, according to his own choice, the variety of human condition can be little less than infinite. Thus equality of rights opens the way for variety of condition.

But with all this variety of make, means, and condition, considered individually, the children of Adam are bound together by strong ties which can never be dissolved. They are mutually united by the social of their nature. Hence mutual dependence and mutual claims. While each is inalienably entitled to assert and enjoy his own personality as a man, each sustains to all and all to each, various relations. While each owns and honors the individual, all are to own and honor the social of their nature. Now, the Golden Rule distinctly recognizes, lays its requisitions upon, and extends its obligations to, the whole nature of man, in his individual

capacities and social relations. What higher honor could it do to man, as *an individual*, than to constitute him the judge, by whose decision, when fairly rendered, all the claims of his fellows should be authoritatively and definitely disposed of? "Whatsoever YE WOULD" have done to you, so do ye to others. Every member of the family of Adam, placing himself in the position here pointed out, is competent and authorized to pass judgment on all the cases in social life in which he may be concerned. Could higher responsibilities or greater confidence be reposed in men individually? And then, how are their *claims upon each other* herein magnified! What inherent worth and solid dignity are ascribed to the social of their nature! In every man with whom I may have to do, I am to recognize the presence of *another self*, whose case I am to make *my own*. And thus I am to dispose of whatever claims he may urge upon me.

Thus, in accordance with the Golden Rule, mankind are naturally brought, in the voluntary use of their powers and resources, to promote each other's welfare. As his contribution to this great object, it is the inalienable birthright of every child of Adam, to consecrate whatever he may possess. With exalted powers and large resources, he has a natural claim to a correspondent field of effort. If his "abilities" are small, his task must be easy and his burden light. Thus the Golden Rule requires mankind mutually to serve each other. In this service, each is to exert *himself*—employ *his own* powers, lay out his own resources, improve his own opportunities. A division of labor is the natural result. One is remarkable for his intellectual endowments and acquisitions; another, for his wealth; and a third, for power and skill in using his muscles. Such attributes, endlessly varied and diversified, proceed from the basis of a *common character*, by virtue of which all men and each—one as truly as another—are entitled, as a birthright, to "life, liberty, and the pursuit of happiness." Each and all, one as well as another, may choose his own modes of contributing his share to the general welfare, in which his own is involved and identified. Under one great law of mutual dependence and mutual responsibility, all are placed—the strong as well as the weak, the rich as much as the poor, the learned no less than the unlearned. All bring their wares, the products of their enterprise, skill and industry, to the same market, where mutual exchanges are freely effected. The fruits of muscular exertion procure the fruits of mental effort. John serves Thomas with his hands, and Thomas serves John

with his money. Peter wields the axe for James, and James wields the pen for Peter. Moses, Joshua, and Caleb, employ their wisdom, courage, and experience, in the service of the community, and the community serve Moses, Joshua, and Caleb, in furnishing them with food and raiment, and making them partakers of the general prosperity. And all this by mutual understanding and voluntary arrangement. And all this according to the Golden Rule.

What then becomes of *slavery*—a system of arrangements in which one man treats his fellow, not as another self, but as a thing—a chattel—an article of merchandize, which is not to be consulted in any disposition which may be made of it;—a system which is built on the annihilation of the attributes of our common nature—in which man doth to others what he would sooner die than have done to himself? The Golden Rule and slavery are mutually subversive of each other. If one stands, the other must fall. The one strikes at the very root of the other. The Golden Rule aims at the abolition of THE RELATION ITSELF, in which slavery consists. It lays its demands upon every thing within the scope of *human action*. To "whatever MEN DO," it extends its authority. And the relation itself, in which slavery consists, is the work of human hands. It is what men have done to each other—contrary to nature and most injurious to the general welfare. This RELATION, therefore, the Golden Rule condemns. Wherever its authority prevails, this relation must be annihilated. Mutual service and slavery—like light and darkness, life and death—are directly opposed to, and subversive of, each other. The one the Golden Rule cannot endure; the other it requires, honors, and blesses.

"LOVE WORKETH NO ILL TO HIS NEIGHBOR."

Like unto the Golden Rule is the second great commandment—"Thou shalt love thy neighbor as thyself." "A certain lawyer," who seems to have been fond of applying the doctrine of limitation of human obligations, once demanded of the Savior, within what limits the meaning of the word "neighbor" ought to be confined. "And who is my neighbor?" The parable of the good Samaritan set that matter in the clearest light, and made it manifest and certain, that every man whom we could reach with our sympathy and assistance, was our neighbor, entitled to the same regard which we cherished for ourselves. Consistently with such obligations, can *slavery, as a RELATION*, be maintained? Is it then a *labor of love*—such love as we cherish for ourselves—to strip a child of Adam of all the prerogatives and privileges which are his inalienable birthright? To obscure his reason, crush his will, and trample on his immortality?—To strike home to the inmost of his being, and break the heart of his heart?—To thrust him out of the human family, and dispose of him as a chattel—as a thing in the hands of an owner, a beast under the lash of a driver? All this, apart from every thing incidental and extraordinary, belongs to the RELATION, in which slavery, as such, consists. All this—well fed or ill fed, underwrought or overwrought, clothed or naked, caressed or kicked, whether idle songs break from his thoughtless tongue or "tears be his meat night and day," fondly cherished or cruelly murdered;—*all this ENTERS VITALLY INTO THE RELATION ITSELF, by which every slave, AS A SLAVE, is set apart from the rest of the human family.* Is it an exercise of love, to place our "neighbor" under the crushing weight, the killing power, of such a relation?—to apply the murderous steel to the very vitals of his humanity?

**"YE THEREFORE APPLAUD AND DELIGHT
IN THE DEEDS OF YOUR FATHERS;**

FOR THEY KILLED THEM, AND YE BUILD THEIR SEPULCHRES."[19]

The slaveholder may eagerly and loudly deny, that any such thing is chargeable upon him. He may confidently and earnestly allege, that he is not responsible for the state of society in which he is placed. Slavery was established before he began to breathe. It was his inheritance. His slaves are his property by birth or testament. But why will he thus deceive himself? Why will he permit the cunning and rapacious spiders, which in the very sanctuary of ethics and religion are laboriously weaving webs from their own bowels, to catch him with their wretched sophistries?—and devour him, body, soul, and substance? Let him know, as he must one day with shame and terror own, that whoever holds slaves is himself responsible for *the relation*, into which, whether reluctantly or willingly, he thus enters. *The relation cannot be forced upon him*. What though Elizabeth countenanced John Hawkins in stealing the natives of Africa?—what though James, and Charles, and George, opened a market for them in the English colonies?—what though modern Dracos have "framed mischief by law," in legalizing man-stealing and slaveholding?—what though your ancestors, in preparing to go "to their own place," constituted you the owner of the "neighbors" whom they had used as cattle?—what of all this, and as much more like this, as can be drawn from the history of that dreadful process by which men are "deemed, held, taken, reputed, and adjudged in law to be *chattels personal*?" Can all this force you to put the cap upon the climax—to clinch the nail by doing that, without which nothing in the work of slave-making would be attempted? *The slaveholder is the soul of the whole system*. Without him, the chattel principle is a lifeless abstraction. Without him, charters, and markets, and laws, and testaments, are empty names. And does *he* think to escape responsibility? Why, kidnappers, and soul-drivers, and law-makers, are nothing but his *agents*. He is the guilty *principal*. Let him look to it.

[Footnote [19](#): You join with them in their bloody work. They murder, and you bury the victims.]

But what can he do? Do? Keep his hands off his "neighbor's" throat. Let him refuse to finish and ratify the process by which the chattel principle is carried into effect. Let him refuse, in the face of derision, and reproach, and opposition. Though poverty should fasten its bony hand upon him, and persecution shoot forth its forked tongue; whatever may betide him—scorn, flight, flames—let him promptly and steadfastly refuse. Better the spite and hate of men than the wrath of Heaven! "If thy right eye offend thee, pluck it out and cast it from thee; for it is profitable for thee, that one of thy members should perish, and not that thy whole body should be cast into hell."

Professor Stewart admits, that the Golden Rule and the second great commandment "decide against the theory of slavery, as being in itself right." What, then, is their relation to the particular precepts, institutions, and usages, which are authorized and enjoined in the New Testament? Of all these, they are the summary expression—the comprehensive description. No precept in the Bible, enforcing our mutual obligations, can be more or less than *the application of these injunctions to specific relations or particular occasions and conditions*. Neither in the Old Testament nor the New, do prophets teach or laws enjoin, any thing which the Golden Rule and the second great command do not contain. Whatever they forbid, no other precept can require; and whatever they require, no other precept can forbid. What, then, does he attempt, who turns over the sacred pages to find something in the way of permission or command, which may set him free from the obligations of the Golden Rule? What must his objects, methods, spirit be, to force him to enter upon such inquiries?—to compel him to search the Bible for such a purpose? Can he have good intentions, or be well employed? Is his frame of mind adapted to the study of the Bible?—to make its meaning plain and welcome? What must he think of God, to search his word in quest of gross inconsistencies, and grave contradictions! Inconsistent legislation in Jehovah! Contradictory commands! Permissions at war with prohibitions! General requirements at variance with particular arrangements!

What must be the moral character of any institution which the Golden Rule decides against?—which the second great command condemns? *It cannot but be wicked*, whether newly established or long maintained. However it may be shaped, turned, colored—under every modification and at all times—*wickedness must be its proper character. It must be, IN ITSELF, apart from its circumstances, IN ITS ESSENCE, apart from its incidents, SINFUL.*

"THINK NOT TO SAY WITHIN YOURSELVES,

WE HAVE ABRAHAM FOR OUR FATHER."

In disposing of those precepts and exhortations which have a specific bearing upon the subject of slavery, it is greatly important, nay, absolutely essential, that we look forth upon the objects around us from the right post of observation. Our stand we must take at some central point, amidst the general maxims and fundamental precepts, the known circumstances and characteristic arrangements, of primitive Christianity. Otherwise, wrong views and false conclusions will be the result of our studies. We cannot, therefore, be too earnest in trying to catch the general features and prevalent spirit of the New Testament institutions and arrangements. For to what conclusions must we come, if we unwittingly pursue our inquiries under the bias of the prejudice, that the general maxims of social life which now prevail in this country, were current, on the authority of the Savior, among the primitive Christians! That, for instance, wealth, station, talents, are the standard by which our claims upon, and our regard for, others, should be modified?—That those who are pinched by poverty, worn by disease, tasked in menial labors, or marked by features offensive to the taste of the artificial and capricious, are to be excluded from those refreshing and elevating influences which intelligence and refinement may be expected to exert; that thus they are to constitute a class by themselves, and to be made to know and keep their place at the very bottom of society? Or, what if we should think and speak of the primitive Christians, as if they had the same pecuniary resources as Heaven has lavished upon the American churches?—as if they were as remarkable for affluence, elegance, and splendor? Or, as if they had as high a position and as extensive an influence in politics and literature?—having directly or indirectly, the control over the high places of learning and of power?

If we should pursue our studies and arrange our arguments—if we should explain words and interpret language—under such a bias, what must inevitably be the results? What would be the worth of our conclusions? What confidence could be reposed in any instruction we might undertake to furnish? And is not this the way in which the advocates and apologists of slavery dispose of the bearing which primitive Christianity has upon it?

They first ascribe, unwittingly, perhaps, to the primitive churches; the character, relations, and condition of American Christianity, and amidst the deep darkness and strange confusion thus produced, set about interpreting the language and explaining the usages of the New Testament!

"SO THAT YE ARE WITHOUT EXCUSE."

Among the lessons of instruction which our Savior imparted, having a general bearing on the subject of slavery, that in which he sets up the *true standard of greatness*, deserves particular attention. In repressing the ambition of his disciples, he held up before them the methods by which alone healthful aspirations for eminence could be gratified, and thus set the elements of true greatness in the clearest light. "Ye know, that they which are accounted to rule over the Gentiles, exercise lordship over them; and their great ones exercise authority upon them. But so shall it not be among you; but whosoever will be great among you, shall be your minister; *and whosoever of you will be the chiefest, shall be servant of all.*" In other words, through the selfishness and pride of mankind, the maxim widely prevails in the world, that it is the privilege, prerogative, and mark of greatness, TO EXACT SERVICE; that our superiority to others, while it authorizes us to relax the exertion of our own powers, gives us a fair title to the use of theirs; that "might," while it exempts us from serving, "gives the right" to be served. The instructions of the Savior open the way to greatness for us in the opposite direction. Superiority to others, in whatever it may consist, gives us a claim to a wider field of exertion, and demands of us a larger amount of service. We can be great only as we *are useful*. And "might gives right" to bless our fellow men, by improving every opportunity and employing every faculty, affectionately, earnestly, and unweariedly, in their service. Thus the greater the man, the more active, faithful, and useful the servant.

The Savior has himself taught us how this doctrine must be applied. He bids us improve every opportunity and employ every power, even through the most menial services, in blessing the human family. And to make this lesson shine upon our understandings and move our hearts, he embodied in it a most instructive and attractive example. On a memorable occasion, and just before his crucifixion, he discharged for his disciples the most menial of all offices—taking, *in washing their feet*, the place of the lowest servant. He took great pains to make them understand, that only by imitating this example could they honor their relations to him as their Master; that thus

only would they find themselves blessed. By what possibility could slavery exist under the influence of such a lesson, set home by such an example? *Was it while washing the disciples' feet, that our Savior authorized one man to make a chattel of another?*

To refuse to provide for ourselves by useful labor, the apostle Paul teaches us to regard as a grave offence. After reminding the Thessalonian Christians, that in addition to all his official exertions he had with his own muscles earned his own bread, he calls their attention to an arrangement which was supported by apostolical authority, "that if any would not work, neither should he eat." In the most earnest and solemn manner, and as a minister of the Lord Jesus Christ, he commanded and exhorted those who neglected useful labor, "*with quietness to work and eat their own bread.*" What must be the bearing of all this upon slavery? Could slavery be maintained where every man eat the bread which himself had earned?—where idleness was esteemed so great a crime, as to be reckoned worthy of starvation as a punishment? How could unrequited labor be exacted, or used, or needed? Must not every one in such a community contribute his share to the general welfare?—and mutual service and mutual support be the natural result?

The same apostle, in writing to another church, describes the true source whence the means of liberality ought to be derived. "Let him that stole steal no more; but rather let him labor, working with his hands the thing which is good, that he may have to give to him that needeth." Let this lesson, as from the lips of Jehovah, be proclaimed throughout the length and breadth of South Carolina. Let it be universally welcomed and reduced to practice. Let thieves give up what they had stolen to the lawful proprietors, cease stealing, and begin at once to "labor, working with their hands," for necessary and charitable purposes. Could slavery, in such a case, continue to exist? Surely not! Instead of exacting unpaid services from others, every man would be busy, exerting himself not only to provide for his own wants, but also to accumulate funds, "that he might have to give to" the needy. Slavery must disappear, root and branch, at once and forever.

In describing the source whence his ministers should expect their support, the Savior furnished a general principle, which has an obvious and powerful bearing on the subject of slavery. He would have them remember, while

exerting themselves for the benefit of their fellow men, that "the laborer is worthy of his hire." He has thus united wages with work. Whoever renders the one is entitled to the other. And this manifestly according to a mutual understanding and a voluntary arrangement. For the doctrine that I may force you to work for me for whatever consideration I may please to fix upon, fairly opens the way for the doctrine, that you, in turn, may force me to render you whatever wages you may choose to exact for any services you may see fit to render. Thus slavery, even as involuntary servitude, is cut up by the root. Even the Princeton professor seems to regard it as a violation of the principle which unites work with wages.

The apostle James applies this principle to the claims of manual laborers—of those who hold the plough and thrust in the sickle. He calls the rich lordlings who exacted sweat and withheld wages, to "weeping and howling," assuring them that the complaints of the injured laborer had entered into the ear of the Lord of Hosts, and that, as a result of their oppression, their riches were corrupted, and their garments moth-eaten; their gold and silver were cankered; that the rust of them should be a witness against them, and should eat their flesh as it were fire; that, in one word, they had heaped treasures together for the last days, when "miseries were coming upon them," the prospect of which might well drench them in tears and fill them with terror. If these admonitions and warnings were heeded there, would not "the South" break forth into "weeping and wailing, and gnashing of teeth?" What else are its rich men about, but withholding by a system of fraud, his wages from the laborer, who is wearing himself out under the impulse of fear, in cultivating their fields and producing their luxuries! Encouragement and support do they derive from James, in maintaining the "peculiar institution" which they call patriarchal, and boast of as the "corner-stone" of the republic?

In the New Testament, we have, moreover, the general injunction, "*Honor all men.*" Under this broad precept, every form of humanity may justly claim protection and respect. The invasion of any human right must do dishonor to humanity, and be a transgression of this command. How then, in the light of such obligations, must slavery be regarded? Are those men honored, who are rudely excluded from a place in the human family, and shut up to the deep degradation and nameless horrors of chattelship? *Can they be held as slaves, and at the same time be honored as men?*

How far, in obeying this command, we are to go, we may infer from the admonitions and instructions which James applies to the arrangements and usages of religious assemblies. Into these he can not allow "respect of persons" to enter. "My brethren," he exclaims, "have not the faith of our Lord Jesus Christ, the Lord of glory, with respect of persons. For if there come unto your assembly a man with a gold ring, in goodly apparel; and there come in also a poor man in vile raiment; and ye have respect to him that weareth the gay clothing, and say unto him, sit thou here in a good place; and say to the poor, stand thou there, or sit here under my footstool; are ye not then partial in yourselves, and are become judges of evil thoughts?" *If ye have respect to persons, ye commit sin, and are convinced of the law as transgressors.* On this general principle, then, religious assemblies ought to be regulated—that every man is to be estimated, not according to his *circumstances*—not according to anything incidental to his *condition*; but according to his *moral worth*—according to the essential features and vital elements of his *character*. Gold rings and gay clothing, as they qualify no man for, can entitle no man to, a "good place" in the church. Nor can the "vile raiment of the poor man," fairly exclude him from any sphere, however exalted, which his heart and head may fit him to fill. To deny this, in theory or practice, is to degrade a man below a thing; for what are gold rings, or gay clothing, or vile raiment, but things, "which perish with the using?" And this must be "to commit sin, and be convinced of the law as transgressor."

In slavery, we have "respect of persons," strongly marked, and reduced to system. Here men are despised not merely for "the vile raiment," which may cover their scarred bodies. This is bad enough. But the deepest contempt of humanity here grows out of birth or complexion. Vile raiment may be, often is, the result of indolence, or improvidence, or extravagance. It may be, often is, an index of character. But how can I be responsible for the incidents of my birth?—how for my complexion? To despise or honor me for these, is to be guilty of "respect of persons" in its grossest form, and with its worst effects. It is to reward or punish me for what I had nothing to do with; for which, therefore, I cannot, without the greatest injustice, be held responsible. It is to poison the very fountains of justice, by confounding all moral distinctions. What, then, so far as the authority of the New Testament is concerned, becomes of slavery, which cannot be

maintained under any form nor for a single moment, without "respect of persons" the most aggravated and unendurable? And what would become of that most pitiful, silly, and wicked arrangement in so many of our churches, in which worshippers of a dark complexion are to be sent up to the negro pew? [20]

[Footnote 20: In Carlyle's Review of the Memoirs of Mirabeau, we have the following anecdote illustrative of the character of a "grandmother" of the Count. "Fancy the dame Mirabeau sailing stately towards the church font; another dame striking in to take precedence of her; the dame Mirabeau despatching this latter with a box on the ear, and these words, '*Here, as in the army, THE BAGGAGE goes last!*'" Let those who justify the negro-pew arrangement, throw a stone at this proud woman—if they dare.]

Nor are we permitted to confine this principle to *religious* assemblies. It is to pervade social life everywhere. Even where plenty, intelligence and refinement, diffuse their brightest rays, the poor are to be welcomed with especial favor. "Then said he to him that bade him, when thou makest a dinner or a supper, call not thy friends, nor thy brethren, neither thy kinsmen, nor thy rich neighbors, lest they also bid thee again, and a recompense be made thee. But when thou makest a feast, call the poor and the maimed, the lame and the blind, and thou shalt be blessed; for they cannot recompense thee, but thou shalt be recompensed at the resurrection of the just."

In the high places of social life then—in the parlor, the drawing-room, the saloon—special reference should be had, in every arrangement, to the comfort and improvement of those who are least able to provide for the cheapest rites of hospitality. For these, ample accommodations must be made, whatever may become of our kinsmen and rich neighbors. And for this good reason, that while such occasions signify little to the latter, to the former they are pregnant with good—raising their drooping spirits, cheering their desponding hearts, inspiring them with life, and hope, and joy. The rich and the poor thus meeting joyfully together, cannot but mutually contribute to each other's benefit; the rich will be led to moderation,

sobriety, and circumspection, and the poor to industry, providence, and contentment. The recompense must be great and sure.

A most beautiful and instructive commentary on the text in which these things are taught, the Savior furnished in his own conduct. He freely mingled with those who were reduced to the very bottom of society. At the tables of the outcasts of society he did not hesitate to be a cheerful guest, surrounded by publicans and sinners. And when flouted and reproached by smooth and lofty ecclesiastics, as an ultraist and leveler, he explained and justified himself by observing, that he had only done what his office demanded. It was his to seek the lost, to heal the sick, to pity the wretched;—in a word, to bestow just such benefits as the various necessities of mankind made appropriate and welcome. In his great heart, there was room enough for those who had been excluded from the sympathy of little souls. In its spirit and design, the gospel overlooked none—least of all, the outcasts of a selfish world.

Can slavery, however modified, be consistent with such a gospel?—a gospel which requires us, even amidst the highest forms of social life, to exert ourselves to raise the depressed by giving our warmest sympathies to those who have the smallest share in the favor of the world?

Those who are in "bonds" are set before us as deserving an especial remembrance. Their claims upon us are described as a modification of the Golden Rule—as one of the many forms to which its obligations are reducible. To them we are to extend the same affectionate regard as we would covet for ourselves, if the chains upon their limbs were fastened upon ours. To the benefits of this precept, the enslaved have a natural claim of the greatest strength. The wrongs they suffer spring from a persecution which can hardly be surpassed in malignancy. Their birth and complexion are the occasion of the insults and injuries which they can neither endure nor escape. It is for *the work of God*, and not their own deserts, that they are loaded with chains. *This is persecution.*

Can I regard the slave as another self—can I put myself in his place—and be indifferent to his wrongs? Especially, can I, thus affected, take sides with the oppressor? Could I, in such a state of mind as the gospel requires me to

cherish, reduce him to slavery or keep him in bonds? Is not the precept under hand naturally subversive of every system and every form of slavery?

The *general descriptions* of the church, which are found here and there in the New Testament, are highly instructive in their bearing on the subject of slavery. In one connection, the following words meet the eye: "There is neither Jew nor Greek, there is neither bond nor free, there is neither male nor female; for ye are all one in Christ Jesus."[[2121](#)] Here we have—

- 1. A clear and strong description of the doctrine of *human equality*. "Ye are all ONE;"—so much alike, so truly placed on common ground, all wielding each his own powers with such freedom, *that one is the same as another*.
- 2. This doctrine, self-evident in the light of reason, is affirmed on divine authority. "IN CHRIST JESUS, *ye are all one*." The natural equality of the human family is a part of the gospel. For—
- 3. All the human family are included in this description. Whether men or women, whether bond or free, whether Jews or Gentiles, all are alike entitled to the benefit of this doctrine. Whether Christianity prevails, the *artificial* distinctions which grow out of birth, condition, sex, are done away. *Natural distinctions* are not destroyed. *They* are recognized, hallowed, confirmed. The gospel does not abolish the sexes, forbid a division of labor, or extinguish patriotism. It takes woman from beneath the feet, and places her by the side of man; delivers the manual laborer from "the yoke," and gives him wages for his work; and brings the Jew and the Gentile to embrace each other with fraternal love and confidence. Thus it raises all to a common level, gives to each the free use of his own powers and resources, binds all together in one dear and loving brotherhood. Such, according to the description of the apostle, was the influence, and such the effect of primitive Christianity. "Behold the picture!" Is it like American slavery, which, in all its tendencies and effects, is destructive of all oneness among brethren?

[Footnote [21](#): Gal. iii. 28.]

"Where the spirit of the Lord is," exclaims the same apostle, with his eye upon the condition and relations of the church, "*where the spirit of the Lord is, THERE IS LIBERTY.*" Where, then, may we reverently recognize the presence, and bow before the manifested power, of this spirit? *There*, where the laborer may not choose how he shall be employed!—in what way his wants shall be supplied!—with whom he shall associate!—who shall have the fruit of his exertions! *There*, where he is not free to enjoy his wife and children! *There*, where his body and his soul, his very "destiny," [22] are placed altogether beyond his control! *There*, where every power is crippled, every energy blasted, every hope crushed! *There*, where in all the relations and concerns of life, he is legally treated as if he had nothing to do with the laws of reason, the light of immortality, or the exercise of will! Is the spirit of the Lord *there*, where liberty is decried and denounced, mocked at and spit upon, betrayed and crucified! In the midst of a church which justified slavery, which derived its support from slavery, which carried on its enterprises by means of slavery, would the apostle have found the fruits of the Spirit of the Lord! Let that Spirit exert his influences, and assert his authority, and wield his power, and slavery must vanish at once and for ever.

[Footnote 22: "The legislature (of South Carolina) from time to time, has passed many restricted and penal acts, with a view to bring under direct control and subjection the DESTINY of the *black population.*" See the Remonstrance of James S. Pope and 352 others against home missionary efforts for the benefit of the enslaved—a most instructive paper.]

In more than one connection, the apostle James describes Christianity as "*the law of liberty.*" It is, in other words, the law under which liberty cannot but live and flourish—the law in which liberty is clearly defined, strongly asserted, and well protected. As the law of liberty, how can it be consistent with the law of slavery? The presence and the power of this law are felt wherever the light of reason shines. They are felt in the uneasiness and conscious degradation of the slave, and in the shame and remorse which the master betrays in his reluctant and desperate efforts to defend himself. This law it is which has armed human nature against the oppressor. Wherever it is obeyed, "every yoke is broken."

In these references to the New Testament we have a *general description* of the primitive church, and the *principles* on which it was founded and fashioned. These principles bear the same relation to Christian *history* as to Christian *character*, since the former is occupied with the development of the latter. What then is Christian character but Christian principle *realized*, acted out, bodied forth, and animated? Christian principle is the soul, of which Christian character is the expression—the manifestation. It comprehends in itself, as a living seed, such Christian character, under every form, modification, and complexion. The former is, therefore, the test and interpreter of the latter. In the light of Christian principle, and in that light only, we can judge of and explain Christian character. Christian history is occupied with the forms, modifications, and various aspects of Christian character. The facts which are there recorded serve to show, how Christian principle has fared in this world—how it has appeared, what it has done, how it has been treated. In these facts we have the various institutions, usages, designs, doings, and sufferings of the church of Christ. And all these have of necessity, the closest relation to Christian principle. They are the production of its power. Through them, it is revealed and manifested. In its light, they are to be studied, explained, and understood. Without it they must be as unintelligible and insignificant as the letters of a book scattered on the wind.

In the principles of Christianity, then, we have a comprehensive and faithful account of its objects, institutions, and usages—of how it must behave, and act, and suffer, in a world of sin and misery. For between the principles which God reveals, on the one hand, and the precepts he enjoins, the institutions he establishes, and the usages he approves, on the other, there must be consistency and harmony. Otherwise we impute to God what we must abhor in man—practice at war with principle. Does the Savior, then, lay down the *principle* that our standing in the church must depend upon the habits formed within us, of readily and heartily subserving the welfare of others; and permit us *in practice* to invade the rights and trample on the happiness of our fellows, by reducing them to slavery. Does he, *in principle* and by example, require us to go all lengths in rendering mutual service, or comprehending offices the most menial, as well as the most honorable; and permit us *in practice* to EXACT service of our brethren, as if they were nothing better than "articles of merchandize!" Does he require us *in*

principle "to work with quietness and eat our own bread;" and permit us *in practice* to wrest from our brethren the fruits of their unrequited toil? Does he *in principle* require us, abstaining from every form of theft, to employ our powers in useful labor, not only to provide for ourselves but also to relieve the indigence of others; and permit us *in practice*, abstaining from every form of labor, to enrich and aggrandize ourselves with the fruits of man-stealing? Does he require us *in principle* to regard "the laborer as worthy of his hire"; and permit us *in practice* to defraud him of his wages? Does he require us *in principle* to honor ALL men; and permit us *in practice* to treat multitudes like cattle? Does he *in principle* prohibit "respect of persons;" and permit us *in practice* to place the feet of the rich upon the necks of the poor? Does he *in principle* require us to sympathize with the bondman as another self; and permit us *in practice* to leave him unpitied and unhelpt in the hands of the oppressor? *In principle*, "where the Spirit of the Lord is, there is liberty;" *in practice*, is slavery the fruit of the Spirit? *In principle*, Christianity is the law of liberty; *in practice*, it is the law of slavery? Bring practice in these various respects into harmony with principle, and what becomes of slavery? And if, where the divine government is concerned, practice is the expression of principle, and principle the standard and interpreter of practice, such harmony cannot but be maintained and must be asserted. In studying, therefore, fragments of history and sketches of biography—in disposing of references to institutions, usages, and facts in the New Testament, this necessary harmony between principle and practice in the government of God, should be continually present to the thoughts of the interpreter. Principles assert what practice must be. Whatever principle condemns, God condemns. It belongs to those weeds of the dung-hill which, planted by "an enemy," his hand will assuredly "root up." It is most certain then, that if slavery prevailed in the first ages of Christianity, it could nowhere have prevailed under its influence and with its sanction.

The condition in which in its efforts to bless mankind, the primitive church was placed, must have greatly assisted the early Christians in understanding and applying the principles of the gospel. Their *Master* was born in great obscurity, lived in the deepest poverty, and died the most ignominious death. The place of his residence, his familiarity with the outcasts of society, his welcoming assistance and support from female hands, his

casting his beloved mother, when he hung upon the cross, upon the charity of a disciple—such things evince the depth of his poverty, and show to what derision and contempt he must have been exposed. Could such an one, "despised and rejected of men—a man of sorrows and acquainted with grief," play the oppressor, or smile on those who made merchandize of the poor!

And what was the history of the *apostles*, but an illustration of the doctrine, that "it is enough for the disciple, that he be as his Master?" Were they lordly ecclesiastics, abounding with wealth, shining with splendor, bloated with luxury! Were they ambitious of distinction, fleecing, and trampling, and devouring "the flocks," that they themselves might "have the pre-eminence!" Were they slaveholding bishops! Or did they derive their support from the wages of iniquity and the price of blood! Can such inferences be drawn from the account of their condition, which the most gifted and enterprising of their number has put upon record? "Even unto this present hour, we both hunger, and thirst, and are naked, and *are buffeted*, and have *no certain dwelling place, and labor working with our own hands*. Being reviled, we bless; being persecuted, we suffer it; being defamed, we entreat; we are made as *the filth of the world*, and are THE OFFSCOURING OF ALL THINGS unto this day."[\[23\]](#) Are these the men who practised or countenanced slavery? *With such a temper, they WOULD NOT; in such circumstances, they COULD NOT*. Exposed to "tribulation, distress, and persecution;" subject to famine and nakedness, to peril and the sword; "killed all the day long; accounted as sheep for the slaughter,"[\[24\]](#) they would have made but a sorry figure at the *great-house* or slave-market.

[Footnote [23](#): 1 Cor. iv. 11-13.]

[Footnote [24](#): Rom. viii. 35, 36.]

Nor was the condition of the brethren, generally, better than that of the apostles. The position of the apostles doubtless entitled them to the strongest opposition, the heaviest reproaches, the fiercest persecution. But derision and contempt must have been the lot of Christians generally. Surely we cannot think so ill of primitive Christianity as to suppose that believers, generally, refused to share in the trials and sufferings of their

leaders; as to suppose that while the leaders submitted to manual labor, to buffeting, to be reckoned the filth of the world, to be accounted as sheep for the slaughter, his brethren lived in affluence, ease, and honor! despising manual labor and living upon the sweat of unrequited toil! But on this point we are not left to mere inference and conjecture. The apostle Paul in the plainest language explains the ordination of Heaven. "But *God hath CHOSEN* the foolish things of the world to confound the wise; and God hath CHOSEN the weak things of the world to confound the things which are mighty; and base things of the world, and things which are despised hath God CHOSEN, yea, and THINGS WHICH ARE NOT, to bring to nought things that are."[[25](#)] Here we may well notice,

- 1. That it was not by *accident*, that the primitive churches were made up of such elements, but the result of the DIVINE CHOICE—an arrangement of His wise and gracious Providence. The inference is natural, that this ordination was co-extensive with the triumphs of Christianity. It was nothing new or strange, that Jehovah had concealed his glory "from the wise and prudent, and had revealed it unto babes," or that "the common people heard him gladly," while "not many wise men after the flesh, not many mighty, not many noble, had been called."
- 2. The description of character, which the apostle records, could be adapted only to what are reckoned the *very dregs of humanity*. The foolish and the weak, the base and the contemptible, in the estimation of worldly pride and wisdom—these were they whose broken hearts were reached, and moulded, and refreshed by the gospel; these were they whom the apostle took to his bosom as his own brethren.

[Footnote [25](#): 1 Cor. i. 27, 28.]

That *slaves* abounded at Corinth, may easily be admitted. *They* have a place in the enumeration of elements of which, according to the apostle, the church there was composed. The most remarkable class found there, consisted of "THINGS WHICH ARE NOT"—mere nobodies, not admitted to the privileges of men, but degraded to a level with "goods and chattels;" of whom *no account* was made in such arrangements of society as

subverted the improvement, and dignity, and happiness of MANKIND. How accurately the description applies to those who are crushed under the chattel principle!

The reference which the apostle makes to the "deep poverty of the churches of Macedonia,"[[26](#)] and this to stir up the sluggish liberality of his Corinthian brethren, naturally leaves the impression, that the latter were by no means inferior to the former in the gifts of Providence. But, pressed with want and pinched by poverty as were the believers in "Macedonia and Achaia, it pleased them to make a certain contribution for the poor saints which were at Jerusalem."[[27](#)] Thus it appears, that Christians everywhere were familiar with contempt and indigence, so much so, that the apostle would dissuade such as had no families from assuming the responsibilities of the conjugal relation![[28](#)]

[Footnote [26](#): 2 Cor. viii. 2.]

[Footnote [27](#): Rom. xv. 26.]

[Footnote [28](#): Cor. vii. 26, 27.]

Now, how did these good people treat each other? Did the few among them, who were esteemed wise, mighty, or noble, exert their influence and employ their power in oppressing the weak, in disposing of the "things that are not," as marketable commodities!—kneeling with them in prayer in the evening, and putting them up at auction the next morning! Did the church sell any of the members to swell the "certain contribution for the poor saints at Jerusalem!" Far other wise—as far as possible! In those Christian communities where the influence of the apostles was most powerful, and where the arrangements drew forth their highest commendations, believers treated each other as *brethren*, in the strongest sense of that sweet word. So warm was their mutual love, so strong the public spirit, so open-handed and abundant the general liberality, that they are set forth as "*having all things common*." [[29](#)] Slaves and their holders here? Neither the one nor the other could, in that relation to each other, have breathed such an atmosphere. The appeal of the kneeling bondman, "Am I not a man and a brother," must here have met with a prompt and powerful response.

[Footnote [29](#): Acts, iv. 32.]

The *tests* by which our Savior tries the character of his professed disciples, shed a strong light upon the genius of the gospel. In one connection,[\[30\]](#) an inquirer demands of the Savior, "What good thing shall I do that I may have eternal life?" After being reminded of the obligations which his social nature imposed upon him, he ventured, while claiming to be free from guilt in his relations to mankind, to demand, "what lack I yet?" The radical deficiency under which his character labored, the Savior was not long or obscure in pointing out. "If thou wilt be perfect, go and sell that thou hast and give to the poor, and thou shall have treasure in heaven; and come and follow me." On this passage it is natural to suggest—

- 1. That we have here a *test of universal application*. The rectitude and benevolence of our Savior's character forbid us to suppose, that he would subject this inquirer, especially as he was highly amiable, to a trial, where eternal life was at stake, *peculiarly* severe. Indeed, the test seems to have been only a fair exposition of the second great command, and of course it must be applicable to all who are placed under the obligations of that precept. Those who cannot stand this test, as their character is radically imperfect and unsound, must, with the inquirer to whom our Lord applied it, be pronounced unfit for the kingdom of heaven.
- 2. The least that our Savior can in that passage be understood to demand is, that we disinterestedly and heartily devote ourselves to the welfare of mankind, "the poor" especially. We are to put ourselves on a level with *them*, as we must do "in selling that we have" for their benefit—in other words, in employing our powers and resources to elevate their character, condition, and prospects. This our Savior did; and if we refuse to enter into sympathy and co-operation with him, how can we be his *followers*? Apply this test to the slaveholder. Instead of "selling that he hath" for the benefit of the poor, he BUYS THE POOR, and exacts their sweat with stripes, to enable him to "clothe himself in purple and fine linen, and fare sumptuously every day;" or, HE SELLS THE POOR to support the gospel and convert the heathen!

[Footnote [30](#): Luke, xviii. 18-25.]

What, in describing the scenes of the final judgment, does our Savior teach us? *By what standard* must our character be estimated, and the retributions of eternity be awarded? A standard, which both the righteous and the wicked will be surprised to see erected. From the "offscouring of all things," the meanest specimen of humanity will be selected—a "stranger" in the hands of the oppressor, naked, hungry, sickly; and this stranger, placed in the midst of the assembled universe, by the side of the sovereign Judge, will be openly acknowledged as his representative. "Glory, honor, and immortality," will be the reward of those who had recognized and cheered their Lord through his outraged poor. And tribulation, anguish, and despair, will seize on "every soul of man" who had neglected or despised them. But whom, within the limits of our country, are we to regard especially as the representatives of our final Judge? Every feature of the Savior's picture finds its appropriate original in our enslaved countrymen.

- 1. They are the LEAST of his brethren.
- 2. They are subject to thirst and hunger, unable to command a cup of water or a crumb of bread.
- 3. They are exposed to wasting sickness, without the ability to procure a nurse or employ a physician.
- 4. They are emphatically "in prison," restrained by chains, goaded with whips, tasked, and under keepers. Not a wretch groans in any cell of the prisons of our country, who is exposed to a confinement so vigorous and heartbreaking as the law allows theirs to be continually and permanently.
- 5. And then they are emphatically, and peculiarly, and exclusively, STRANGERS—*strangers* in the land which gave them birth. Whom else do we constrain to remain aliens in the midst of our free institutions? The Welch, the Swiss, the Irish? The Jews even? Alas, it is the *negro* only, who may not strike his roots into our soil. Every where we have conspired to treat him as a stranger—every where he is forced to feel himself a stranger. In the stage and steamboat, in the parlor and at our tables, in the scenes of business and in the scenes of amusement—even in the church of God and at the communion table,

he is regarded as a stranger. The intelligent and religious are generally disgusted and horror-struck at the thought of his becoming identified with the citizens of our republic—so much so, that thousands of them have entered into a conspiracy to send him off "out of sight," to find a home on a foreign shore!—and justify themselves by openly alleging, that a "single drop" of his blood, in the veins of any human creature, must make him hateful to his fellow citizens!—That nothing but banishment from "our coasts," can redeem him from the scorn and contempt to which his "stranger" blood has reduced him among his own mother's children!

Who, then, in this land "of milk and honey," is "hungry and athirst," but the man from whom the law takes away the last crumb of bread and the smallest drop of water?

Who "naked," but the man whom the law strips of the last rag of clothing?

Who "sick," but the man whom the law deprives of the power of procuring medicine or sending for a physician?

Who "in prison," but the man who, all his life, is under the control of merciless masters and cruel keepers!

Who a "stranger," but the man who is scornfully denied the cheapest courtesies of life—who is treated as an alien in his native country?

There is one point in this awful description which deserves particular attention. Those who are doomed to the left hand of the Judge, are not charged with inflicting *positive* injuries on their helpless, needy, and oppressed brother. Theirs was what is often called *negative* character. What they *had done* is not described in the indictment. Their *neglect* of duty, what they *had NOT done*, was the ground of their "everlasting punishment." The representative of their Judge, they had seen a hungered and they gave him no meat, thirsty and they gave him no drink, a stranger and they took him not in, naked and they clothed him not, sick and in prison and they visited him not. In as much as they did NOT yield to the claims of suffering humanity—did NOT exert themselves to bless the meanest of the human family, they were driven away in their wickedness. But what if the indictment had run thus: I was a hungered and ye snatched away the crust

which might have saved me from starvation; I was thirsty and ye dashed to the ground the "cup of cold water," which might have moistened my parched lips; I was a stranger and ye drove me from the hovel which might have sheltered me from the piercing wind; I was sick and ye scourged me to my task; in prison and you sold me for my jail-fees—to what depths of hell must not those who were convicted under such charges be consigned! And what is the history of American slavery but one long indictment, describing under ever-varying forms and hues just such injuries!

Nor should it be forgotten, that those who incurred the displeasure of their Judge, took far other views than he, of their own past history. The charges which he brought against them, they heard with great surprise. They were sure that they had never thus turned away from his necessities. Indeed, when had they seen him thus subject to poverty, insult, and oppression? Never. And as to that poor friendless creature, whom they left unpitied and unhelped in the hands of the oppressor, and whom their Judge now presented as his own representative, they never once supposed, that *he* had any claims on their compassion and assistance. Had they known, that he was destined to so prominent a place at the final judgment, they would have treated him as a human being, in despite of any social, pecuniary, or political considerations. But neither their *negative virtue* nor their *voluntary ignorance* could shield them from the penal fire which their selfishness had kindled.

Now amidst the general maxims, the leading principles, the "great commandments" of the gospel; amidst its comprehensive descriptions and authorized tests of Christian character, we should take our position in disposing of any particular allusions to such forms and usages of the primitive churches as are supported by divine authority. The latter must be interpreted and understood in the light of the former. But how do the apologists and defenders of slavery proceed? Placing themselves amidst the arrangements and usages which grew out of the *corruptions* of Christianity, they make these the standard by which the gospel is to be explained and understood! Some Recorder or Justice, without the light of inquiry or the aid of a jury, consigns the negro whom the kidnapper has dragged into his presence to the horrors of slavery. As the poor wretch shrieks and faints, Humanity shudders and demands why such atrocities are endured. Some "priest" or "Levite," "passing by on the other side," quite self-possessed and

all complacent, reads in reply from his broad phylactery, *Paul sent back Onesimus to Philemon!* Yes, echoes the negro-hating mob, made up of "gentlemen of property and standing" together with equally gentle-men reeking from the gutter; *Yes—Paul sent back Onesimus to Philemon!* And Humanity, brow-beaten, stunned with noise and tumult, is pushed aside by the crowd! A fair specimen this of the manner in which modern usages are made to interpret the sacred Scriptures?

Of the particular passages in the New Testament on which the apologists for slavery especially rely, the epistle to Philemon first demands our attention.

- 1. This letter was written by the apostle Paul while a "prisoner of Jesus Christ" at Rome.
- 2. Philemon was a benevolent and trustworthy member of the church at Colosse, at whose house the disciples of Christ held their assemblies, and who owed his conversion, under God, directly or indirectly to the ministry of Paul.
- 3. Onesimus was the servant of Philemon; under a relation which it is difficult with accuracy and certainty to define. His condition, though servile, could not have been like that of an American slave; as, in that case, however he might have "wronged" Philemon, he could not also have "*owed him ought.*"[\[31\]](#) The American slave is, according to law, as much the property of his master as any other chattel; and can no more "owe" his master than can a sheep or a horse. The basis of all pecuniary obligations lies in some "value received." How can "an article of merchandise" stand on this basis and sustain commercial relations to its owner? There is no *person* to offer or promise. *Personality is swallowed up in American slavery!*
- 4. How Onesimus found his way to Rome it is not easy to determine. He and Philemon appear to have parted from each other on ill terms. The general character of Onesimus, certainly, in his relation to Philemon, had been far from attractive, and he seems to have left him without repairing the wrongs he had done him or paying the debts which he owed him. At Rome, by the blessing of God upon the exertions of the apostle, he was brought to reflection and repentance.
- 5. In reviewing his history in the light of Christian truth, he became painfully aware of the injuries he had inflicted on Philemon. He longed for an opportunity for frank confession and full restitution. Having,

however, parted with Philemon on ill terms, he knew not how to appear in his presence. Under such embarrassments, he naturally sought sympathy and advice of Paul. *His* influence upon Philemon, Onesimus knew must be powerful, especially as an apostle.

- 6. A letter in behalf of Onesimus was therefore written by the apostle to Philemon. After such salutations, benedictions, and thanksgiving as the good character and useful life of Philemon naturally drew from the heart of Paul, he proceeds to the object of the letter. He admits that Onesimus had behaved ill in the service of Philemon; not in running away, for how they had parted with each other is not explained; but in being unprofitable and in refusing to pay the debts [32] which he had contracted. But his character had undergone a radical change. Thenceforward fidelity and usefulness would be his aim and mark his course. And as to any pecuniary obligations which he had violated, the apostle authorized Philemon to put them on his account.[33] Thus a way was fairly opened to the heart of Philemon. And now what does the apostles ask?
- 7. He asks that Philemon would receive Onesimus, How? "Not as a *servant*, but *above* a servant." [34] How much above? Philemon was to receive him as "a son" of the apostle—"as a brother beloved"—nay, if he counted Paul a partner, an equal, he was to receive Onesimus as he would receive *the apostle himself*. [35] *So much* above a servant was he to receive him!
- 8. But was not this request to be so interpreted and complied with as to put Onesimus in the hands of Philemon as "an article of merchandise," CARNALLY, while it raised him to the dignity of a "brother beloved," SPIRITUALLY? In other words, might not Philemon consistently with the request of Paul have reduced Onesimus to a chattel, as A MAN, while he admitted him fraternally to his bosom, as a CHRISTIAN? Such gibberish in an apostolic epistle! Never. As if, however to guard against such folly, the natural product of mist and moonshine, the apostle would have Onesimus raised above a servant to the dignity of a brother beloved, "BOTH IN THE FLESH AND IN THE LORD;" [36] as a man and Christian, in all the relations, circumstances, and responsibilities of life.

[Footnote [31](#): Philemon, 18.]

[Footnote [32](#): Verse 11, 18.]

[Footnote [33](#): Verse 18.]

[Footnote [34](#): Verse 16.]

[Footnote [35](#): Verse 10, 16, 17.]

[Footnote [36](#): Verse 16.]

It is easy now with definiteness and certainty to determine in what sense the apostle in such connections uses the word "*brother*". It describes a relation inconsistent with and opposite to the *servile*. It is "NOT" the relation of a "SERVANT." It elevates its subject "above" the servile condition. It raises him to full equality with the master, to the same equality, on which Paul and Philemon stood side by side as brothers; and this, not in some vague, undefined, spiritual sense, affecting the soul and leaving the body in bonds, but in every way, "both in the FLESH and in the Lord." This matter deserves particular and earnest attention. It sheds a strong light on other lessons of apostolic instruction.

- 9. It is greatly to our purpose, moreover, to observe that the apostle clearly defines the *moral character* of his request. It was fit, proper, right, suited to the nature and relation of things—a thing which *ought* to be done.[\[37\]](#) On this account, he might have urged it upon Philemon in the form of an *injunction*, on apostolic authority and with great boldness.[\[37\]](#) *The very nature* of the request made it obligatory on Philemon. He was sacredly bound, out of regard to the fitness of things, to admit Onesimus to full equality with himself—to treat him as a brother both in the Lord and as having flesh—as a fellow man. Thus were the inalienable rights and birthright privileges of Onesimus, as a member of the human family, defined and protected by apostolic authority.
- 10. The apostle preferred a request instead of imposing a command, on the ground of CHARITY.[\[39\]](#) He would give Philemon an opportunity of discharging his obligations under the impulse of love. To this impulse, he was confident Philemon would promptly and fully yield.

How could he do otherwise? The thing itself was right. The request respecting it came from a benefactor, to whom, under God, he was under the highest obligations.[[40](#)] That benefactor, now an old man, and in the hands of persecutors, manifested a deep and tender interest in the matter and had the strongest persuasion that Philemon was more ready to grant than himself to entreat. The result, as he was soon to visit Collosse, and had commissioned Philemon to prepare a lodging for him, must come under the eye of the apostle. The request was so manifestly reasonable and obligatory, that the apostle, after all, described a compliance with it, by the strong word "*obedience*."([41](#))

[Footnote [37](#): Verse 8. To [Greek: anaekon]. See Robinson's New Testament Lexicon; "*it is fit, proper, becoming, it ought.*" In what sense King James' translators used the word "convenient" any one may see who will read Rom. i. 28 and Eph. v. 3, 4.]

[Footnote [38](#): Verse 8.]

[Footnote [39](#): Verse 9—[Greek: dia taen agapaen]]

[Footnote [40](#): Verse 19.]

[Footnote [41](#): Verse 21.]

Now, how must all this have been understood by the church at Colosse?—a church, doubtless, made up of such materials as the church at Corinth, that is, of members chiefly from the humblest walks of life. Many of them had probably felt the degradation and tasted the bitterness of the servile condition. Would they have been likely to interpret the apostle's letter under the bias of feelings friendly to slavery!—And put the slaveholder's construction on its contents! Would their past experience or present sufferings—for doubtless some of them were still "under the yoke"—have suggested to their thoughts such glosses as some of our theological professors venture to put upon the words of the apostle! Far otherwise. The Spirit of the Lord was there, and the epistle was read in the light of "*liberty.*" It contained the principles of holy freedom, faithfully and affectionately applied. This must have made it precious in the eyes of such men "of low degree" as were most of the believers, and welcome to a place in the sacred canon. There let it remain as a luminous and powerful defence of the cause of emancipation!

But what saith Professor Stuart? "If any one doubts, let him take the case of Paul's sending Onesimus back to Philemon, with an apology for his running away, and sending him back to be his servant for life."[[42](#)]

[Footnote [42](#): See his letter to Dr. Fisk, supra pp. 7, 8]

"Paul sent back Onesimus to Philemon." By what process? Did the apostle, a prisoner at Rome, seize upon the fugitive, and drag him before some heartless and perfidious "Judge," for authority to send him back to Colosse? Did he hurry his victim away from the presence of the fat and supple magistrate, to be driven under chains and the lash to the field of unrequited toil, whence he had escaped? Had the apostle been like some teachers in the American churches, he might, as a professor of sacred literature in one of our seminaries, or a preacher of the gospel to the rich in some of our cities, have consented thus to subserve the "peculiar" interests of a dear slaveholding brother. But the venerable champion of truth and freedom was himself under bonds in the imperial city, waiting for the crown of martyrdom. He wrote a letter to the church at Colosse, which was accustomed to meet at the house of Philemon, and another letter to that magnanimous disciple, and sent them by the hand of Onesimus. So much for *the way* in which Onesimus was sent back to his master.

A slave escapes from a patriarch in Georgia, and seeks a refuge in the parish of the Connecticut doctor of Divinity, who once gave public notice that he saw no reason for caring for the servitude of his fellow men.^[43] Under his influence, Caesar becomes a Christian convert. Burning with love for the son whom he hath begotten in the gospel, our doctor resolves to send him back to his master. Accordingly, he writes a letter, gives it to Caesar, and bids him return, staff in hand, to the "corner-stone of our republican institutions." Now, what would my Caesar do, who had ever felt a link of slavery's chain? As he left his *spiritual father*, should we be surprised to hear him say to himself, What, return of my own accord to the man who, with the hand of a robber, plucked me from my mother's bosom!—for whom I have been so often drenched in the sweat of unrequited toil!—whose violence so often cut my flesh and scarred my limbs!—who shut out every ray of light from my mind!—who laid claim to those honors to which my Creator and Redeemer only are entitled! And for what am I to return? To be cursed, and smitten, and sold! To be tempted, and torn, and destroyed! I cannot thus throw myself away—thus rush upon my own destruction.

[Footnote ⁴³: "Why should I care?"]

Who ever heard of the voluntary return of a fugitive from American oppression? Do you think that the doctor and his friends could persuade one to carry a letter to the patriarch from whom he had escaped? And must we believe this of Onesimus?

"Paul sent back Onesimus to Philemon." On what occasion?—"If," writes the apostle, "he hath wronged thee, or oweth thee ought, put that on my account." Alive to the claims of duty, Onesimus would "restore" whatever he "had taken away." He would honestly pay his debts. This resolution the apostle warmly approved. He was ready, at whatever expense, to help his young disciple in carrying it into full effect. Of this he assured Philemon, in language the most explicit and emphatic. Here we find one reason for the conduct of Paul in sending Onesimus to Philemon.

If a fugitive slave of the Rev. Dr. Smylie, of Mississippi, should return to him with a letter from a doctor of divinity in New York, containing such an assurance, how would the reverend slaveholder dispose of it? What, he exclaims, have we here? "If Cato has not been upright in his pecuniary intercourse with you—if he owes you any thing—put that on my account." What ignorance of southern institutions! What mockery, to talk of pecuniary intercourse between a slave and his master! *The slave himself, with all he is and has, is an article of merchandise.* What can he owe his master? A rustic may lay a wager with his mule, and give the creature the peck of oats which he has permitted it to win. But who, in sober earnest, would call this a pecuniary transaction?

"TO BE HIS SERVANT FOR LIFE!" From what part of the epistle could the expositor have evolved a thought so soothing to tyrants—so revolting to every man who loves his own nature? From this? "For perhaps he therefore departed for a season, that thou shouldst receive him for ever." Receive him how? *As a servant*, exclaims our commentator. But what wrote the apostle? "NOT *now as a servant, but above a servant*, a brother beloved, especially to me, but how much more unto thee, both in the flesh and in the Lord." Who authorized the professor to bereave the word "*not*" of its negative influence? According to Paul, Philemon was to receive Onesimus "*not as a servant*;"—according to Stuart, he was to receive him "*as a servant*!" If the professor will apply the same rules of exposition to the writings of the abolitionists, all difference between him and them must in his view

presently vanish away. The harmonizing process would be equally simple and effectual. He has only to understand them as affirming what they deny, and as denying what they affirm.

Suppose that Professor Stuart had a son residing, at the South. His slave, having stolen money of his master, effected his escape. He fled to Andover, to find a refuge among the "sons of the prophets." There he finds his way to Professor Stuart's house, and offers to render any service which the professor, dangerously ill "of a typhus fever," might require. He is soon found to be a most active, skilful, faithful nurse. He spares no pains, night and day, to make himself useful to the venerable sufferer. He anticipates every want. In the most delicate and tender manner, he tries to sooth every pain. He fastens himself strongly on the heart of the reverend object of his care. Touched with the heavenly spirit, the meek demeanor, the submissive frame, which the sick bed exhibits, Archy becomes a Christian. A new bond now ties him and his convalescent teacher together. As soon as he is able to write, the professor sends Archy with the following letter to the South, to Isaac Stuart, Esq.:—

"MY DEAR SON,—With a hand enfeebled by a distressing and dangerous illness, from which I am slowly recovering, I address you on a subject which lies very near my heart. I have a request to urge, which our mutual relation to each other, and your strong obligations to me, will, I cannot doubt, make you eager fully to grant. I say a request, though the thing I ask is, in its very nature and on the principles of the gospel, obligatory upon you. I might, therefore, boldly demand, what I earnestly entreat. But I know how generous, magnanimous, and Christ-like you are, and how readily you will "do even more than I say"—I, your own father, an old man, almost exhausted with multiplied exertions for the benefit of my family and my country and now just rising, emaciated and broken, from the brink of the grave. I write in behalf of Archy, whom I regard with the affection of a father, and whom, indeed, 'I have forgotten in my sickness.' Gladly would I have retained him, to be *an Isaac* to me; for how often did not his soothing voice, and skilful hand, and unwearied attention to my wants remind me of you! But I chose to give you an opportunity of manifesting, voluntarily, the goodness of your heart; as, if I had retained him with me, you might seem to have been forced to grant what you will gratefully bestow. His temporary absence from you may have opened the way for his permanent continuance

with you. Not now as a slave. Heaven forbid! But superior to a slave. Superior, did I say? Take him to your bosom, as a beloved brother; for I own him as a son, and regard him as such, in all the relations of life, both as a man and a Christian. 'Receive him as myself.' And that nothing may hinder you from complying with my request at once, I hereby promise, without adverting to your many and great obligations to me, to pay you every cent which he took from your drawer. Any preparation which my comfort with you may require, you will make without much delay, when you learn, that I intend, as soon as I shall be able 'to perform the journey,' to make you a visit."

And what if Dr. Baxter, in giving an account of this letter should publicly declare that Professor Stuart, of Andover regarded slaveholding as lawful; for that "he had sent Archy back to his son Isaac, with an apology for his running away" to be held in perpetual slavery? With what propriety might not the professor exclaim: False, every syllable false. I sent him back, NOT TO BE HELD AS A SLAVE, *but recognized as a dear brother, in all respects, under every relation, civil and ecclesiastical.* I bade my son receive *Archy as myself.* If this was not equivalent to a requisition to set him fully and most honorably free, and that, too, on the ground of natural obligation and Christian principle, then I know not how to frame such a requisition.

I am well aware that my supposition is by no means strong enough fully to illustrate the case to which it is applied. Professor Stuart lacks apostolical authority. Isaac Stuart is not a leading member of a church consisting, as the early churches chiefly consisted, of what the world regard as the dregs of society—"the offscouring of all things." Nor was slavery at Colosse, it seems, supported by such barbarous usages, such horrid laws as disgrace the South.

But it is time to turn to another passage which, in its bearing on the subject in hand, is, in our view, as well as in the view of Dr. Fisk. and Prof. Stuart, in the highest degree authoritative and instructive. "Let as many servants as are under the yoke count their own masters worthy of all honor, that the name of God and his doctrines be not blasphemed. And they that have believing masters, let them not despise them because they are brethren; but

rather do them service, because they are faithful and beloved, partakers of the benefit." [44]

[Footnote [44](#): 1 Tim. vi. 1. 2. The following exposition of this passage is from the pen of ELIZUR WRIGHT, JR.:—

"This word [Greek: antilambanesthai] in our humble opinion, has been so unfairly used by the commentators, that we feel constrained to take its part. Our excellent translators, in rendering the clause 'partakers of the benefit,' evidently lost sight of the component preposition, which expresses the *opposition of reciprocity*, rather than the *connection of participation*. They have given it exactly the sense of [Greek: metalambanein], (2 Tim. ii. 6.) Had the apostle intended such a sense, he would have used the latter verb, or one of the more common words, [Greek: metochoi, koinonomtes, &c.] (See Heb. iii. 1, and 1 Tim. v. 22, where the latter word is used in the clause, 'neither be partaker of other men's sins.' Had the verb in our text been used, it might have been rendered, 'neither be the *part-taker* of other men's sins.') The primary sense of [Greek: antilambans] is *to take in return—to take instead of, &c.* Hence, in the middle with the genitive, it signifies *assist*, or *do one's part towards* the person or thing expressed by that genitive. In this sense only is the word used in the New Testament,—(See Luke i. 54, and Acts, xx. 35.) If this be true, the word [Greek: emsgesai] cannot signify the benefit conferred by the gospel, as our common version would make it, but the *well doing* of the servants, who should continue to serve their believing masters, while they were no longer under the *yoke* of compulsion. This word is used elsewhere in the New Testament but once (Acts. iv. 3.) in relation to the '*good deed*' done to the impotent man. The plain import of the clause, unmystified by the commentators, is, that believing masters would not fail to *do their part towards*, or encouraged by suitable returns, the *free* service of those who had once been under the *yoke*."]'

- 1. The apostle addresses himself here to two classes of servants, with instructions to each respectively appropriate. Both the one class and the other, in Professor Stuart's eye, were *slaves*. This he assumes, and

thus begs the very question in dispute. The term servant is *generic*, as used by the sacred writers. It comprehends all the various offices which men discharge for the benefit of each other, however honorable, or however menial; from that of an apostle[45] opening the path to heaven, to that of washing "one another's feet." [46] A general term it is, comprehending every office which belongs to human relations and Christian character.[47]

[Footnote 45: Cor. iv. 5.]

[Footnote 46: John, xiii, 14.]

[Footnote 47: Mat, xx, 26-28.]

A leading signification gives us the *manual laborer*, to whom, in the division of labor, muscular exertion was allotted. As in his exertions the bodily powers are especially employed—such powers as belong to man in common with mere animals—his sphere has generally been considered low and humble. And as intellectual power is superior to bodily, the manual laborer has always been exposed in very numerous ways and in various degrees to oppression. Cunning, intrigue, the oily tongue, have, through extended and powerful conspiracies, brought the resources of society under the control of the few, who stood aloof from his homely toil. Hence his dependence upon them. Hence the multiplied injuries which have fallen so heavily upon him. Hence the reduction of his wages from one degree to another, till at length, in the case of millions, fraud and violence strip him of his all, blot his name from the record of *mankind*, and, putting a yoke upon his neck, drive him away to toil among the cattle. *Here you find the slave*. To reduce the servant to his condition, requires abuses altogether monstrous—injuries reaching the very vitals of man—stabs upon the very heart of humanity. Now, what right has Professor Stuart to make the word "*servants*," comprehending, even as manual laborers, so many and such various meanings, signify "*slaves*," especially where different classes are concerned? Such a right he could never have derived from humanity, or philosophy, or hermeneutics. It is his by sympathy with the oppressor?

Yes, different classes. This is implied in the term "as many,"[48] which sets apart the class now to be addressed. From these he proceeds to others, who are introduced by a particle,[49] whose natural meaning indicates the presence of another and a different subject.

[Footnote 48: [Greek: Ochli] See Passow's Schneider.]

[Footnote 49: [Greek: Dd.] See Passow.]

- 2. The first class are described as "*under the yoke*"—a yoke from which they were, according to the apostle, to make their escape if possible.[50] If not, they must in every way regard the master with respect—bowing to his authority, working his will, subserving his interests so far as might be consistent with Christian character.[51] And this, to prevent blasphemy—to prevent the pagan master from heaping profane reproaches upon the name of God and the doctrines of the gospel. They should beware of rousing his passions, which, as his helpless victims, they might be unable to allay or withstand.

[Footnote 50: See 1 Cor. vii, 21—[Greek: All' ei kai dunasai eleuphoros genesthai].]

[Footnote 51: See 1 Cor. vii, 23—[Greek: Mae ginesthe doulos anthroton].]

But all the servants whom the apostle addressed were not "*under the yoke*"[52]—an instrument appropriate to cattle and to slaves. These he distinguishes from another class, who instead of a "yoke"—the badge of a slave—had "*believing masters*." *To have a "believing master," then, was equivalent to freedom from "the yoke."* These servants were exhorted not to *despise* their masters. What need of such an exhortation, if their masters had been slaveholders, holding them as property, wielding them as mere instruments, disposing of them as "articles of merchandise." But this was not consistent with believing. Faith, "breaking every yoke," united master and servants in the bonds of brotherhood. Brethren they were, joined in a relation which, excluding the yoke,[53] placed them side by side on the ground of

equality, where, each in his appropriate sphere, they might exert themselves freely and usefully, to the mutual benefit of each other. Here, servants might need to be cautioned against getting above their appropriate business, putting on airs, despising their masters, and thus declining or neglecting their service.[54] Instead of this, they should be, as emancipated slaves often have been, [55] models of enterprise, fidelity, activity, and usefulness—especially as their masters were "worthy of their confidence and love," their helpers in this well-doing.

[Footnote 52: See Lev. xxvi. 13; Isa lviii. 6, 9.]

[Footnote 5353: Supra p. 44.]

[Footnote 5454: See Mat. vi. 24.]

[Footnote 55: Those, for instance, set free by that "believing master" James G. Birney.]

Such, then, is the relation between those who, in the view of Professor Stuart, were Christian masters and Christian slaves[56]—the relation of "brethren," which, excluding "the yoke," and of course conferring freedom, placed them side by side on the common ground of mutual service, both retaining, for convenience sake, the one while giving and the other while receiving employment, the correlative name, *as is usual in such cases*, under which they had been known. Such was the instruction which Timothy was required, as a Christian minister, to give. Was it friendly to slaveholding?

[Footnote 56: Letter to Dr. Fisk, supra, p. 7.]

And on what ground, according to the Princeton professor, did these masters and these servants stand in their relation to each other? On that of a "*perfect religious equality*." [57] In all the relations, duties, and privileges—in all the objects, interests, and prospects, which belong to the province of Christianity, servants were as free as their master. The powers of the one, were allowed as wide a range and as free an exercise, with as warm

encouragements, as active aids, and as high results, as the other. Here, the relation of a servant to his master imposed no restrictions, involved no embarrassments, occasioned no injury. All this, clearly and certainly, is implied in "*perfect religious equality*," which the Princeton professor accords to servants in relation to their master. Might the *master*, then, in order more fully to attain the great ends for which he was created and redeemed, freely exert himself to increase his acquaintance with his own powers, and relations, and resources—with his prospects, opportunities, and advantages? So might his *servants*. Was *he* at liberty to "study to approve himself to God," to submit to his will and bow to his authority, as the sole standard of affection and exertion? So were *they*. Was *he* at liberty to sanctify the Sabbath, and frequent the "solemn assembly?" So were *they*. Was *he* at liberty so to honor the filial, conjugal, and paternal relations, as to find in them that spring of activity and that source of enjoyment, which they are capable of yielding? So were *they*. In every department of interest and exertion, they might use their capacities, and wield their powers, and improve their opportunities, and employ their resources, as freely as he, in glorifying God, in blessing mankind, and in laying up imperishable treasures for themselves! Give perfect religious equality to the American slave, and the most eager abolitionist must be satisfied. Such equality would, like the breath of the Almighty, dissolve the last link of the chain of servitude. Dare those who, for the benefit of slavery, have given so wide and active a circulation to the Pittsburg pamphlet, make the experiment?

[Footnote [57](#): Pittsburg Pamphlet, p. 9.]

In the epistle to the Colossians, the following passage deserves earnest attention:—"Servants, obey in all things your masters according to the flesh; not with eye-service, as men-pleasers; but in singleness of heart, fearing God: and whatsoever ye do, do it heartily, as to the Lord, and not unto men; knowing, that of the Lord ye shall receive the reward of the inheritance; for ye serve the Lord Christ. But he that doeth wrong shall receive for the wrong which he hath done: and there is no respect of persons.—Masters, give unto your servants that which is just and equal; knowing that ye have a Master in heaven."[[58](#)]

[Footnote [58](#): Col. iii. 22 to iv. 1.]

Here it is natural to remark—

- 1. That in maintaining the relation, which mutually united them, both masters and servants were to act in conformity with the principles of the divine government. Whatever *they* did, servants were to do in hearty obedience to the Lord, by whose authority they were to be controlled and by whose hand they were to be rewarded. To the same Lord, and according to the same law, was the *master* to hold himself responsible. *Both the one and the other were of course equally at liberty and alike required to study and apply the standard, by which they were to be governed and judged.*
- 2. The basis of the government under which they thus were placed, was *righteousness*—strict, stern, impartial. Nothing here of bias or antipathy. Birth, wealth, station,—the dust of the balance not so light! Both master and servants were hastening to a tribunal, where nothing of "respect of persons" could be feared or hoped for. There the wrong-doer, whoever he might be, and whether from the top or bottom of society, must be dealt with according to his deservings.
- 3. Under this government, servants were to be universally and heartily obedient; and both in the presence and absence of the master, faithfully to discharge their obligations. The master on his part, in his relations to the servants, was to make JUSTICE AND EQUALITY the *standard of his conduct*. Under the authority of such instructions, slavery falls discountenanced, condemned, abhorred. It is flagrantly at war with the government of God, consists in "respect of persons" the most shameless and outrageous, treads justice and equality under foot, and in its natural tendency and practical effects is nothing else than a system of wrong-doing. What have *they* to do with the just and the equal who in their "respect of persons" proceed to such a pitch as to treat one brother as a thing because he is a servant, and place him, without the least regard to his welfare here, or his prospects hereafter, absolutely at the disposal of another brother, under the name of master, in the relation of owner to property? Justice and equality on the one hand, and the chattel principle on the other, are naturally subversive of

each other—proof clear and decisive that the correlates, masters and servants, cannot here be rendered slaves and owners, without the grossest absurdity and the greatest violence.

- "Servants, be obedient to them that are *your* masters according to the flesh, with fear and trembling, in singleness of your heart, as unto Christ; not with eye-service, as men-pleasers; but as the servants of Christ, doing the will of God from the heart; with good will doing service, as to the Lord, and not to men: knowing that whatsoever good thing any man doeth, the same shall he receive of the Lord, whether *he* be bond or free. And, ye masters, do the same things unto them, forbearing threatening: knowing that your Master also is in heaven; neither is there respect of persons with him."[[59](#)]

[Footnote [59](#): Ephesians, vi. 5-9.]

Without repeating here what has already been offered in exposition of kindred passages, it may be sufficient to say:—

- 1. That the relation of the servants here addressed, to their master, was adapted to make him the object of their heart-felt attachment. Otherwise they could not have been required to render him an affectionate service.
- 2. This relation demanded a perfect reciprocity of benefits. It had its soul in *good-will*, mutually cherished and properly expressed. Hence "THE SAME THINGS," the same in principle, the same in substance, the same in their mutual bearing upon the welfare of the master and the servants, was to be rendered back and forth by the one and the other. It was clearly the relation of mutual service. Do we here find the chattel principle?
- 3. Of course, the servants might not be slack, time-serving, unfaithful. Of course, the master must "FORBEAR THREATENING." Slavery without threatening! Impossible. Wherever maintained, it is of necessity a *system of threatening*, injecting into the bosom of the slave such terrors, as never cease for a moment to haunt and torment him. Take from the chattel principle the support, which it derives from "threatening," and you annihilate it at once and forever.

- 4. This relation was to be maintained in accordance with the principles of the divine government, where "RESPECT OF PERSONS" could not be admitted. It was, therefore, totally inconsistent with, and submissive of, the chattel principle, which in American slavery is developed in a system of "respect of persons," equally gross and hurtful. No Abolitionist, however eager and determined in his opposition to slavery, could ask for more than these precepts, once obeyed, would be sure to confer.

"The relation of slavery," according to Professor Stuart, is recognized in "the precepts of the New Testament," as one which "may still exist without violating the Christian faith or the church."[\[60\]](#) Slavery and the chattel principle! So our professor thinks; otherwise his reference has nothing to do with the subject—with the slavery which the abolitionist, whom he derides, stands opposed to. How gross and hurtful is the mistake into which he allows himself to fall. The relation recognized in the precepts of the New Testament had its basis and support in "justice and equality;" the very opposite of the chattel principle; a relation which may exist as long as justice and equality remain, and thus escape the destruction to which, in the view of Professor Stuart, slavery is doomed. The description of Paul obliterates every feature of American slavery, raising the servant to equality with his master, and placing his rights under the protection of justice; yet the eye of Professor Stuart can see nothing in his master and servant but a slave and his owner. With this relation he is so thoroughly possessed, that, like an evil angel, it haunts him even when he enters the temple of justice!

[Footnote [60](#): Letter to Dr. Fisk, *supra* p. 7.]

"It is remarkable," saith the Princeton professor, "that there is not even an exhortation" in the writings of the apostles "to masters to liberate their slaves, much less is it urged as an imperative and immediate duty."[\[61\]](#) It would be remarkable, indeed, if they were chargeable with a defect so great and glaring. And so they have nothing to say upon the subject? *That* not even the Princeton professor has the assurance to affirm. He admits that KINDNESS, MERCY, AND JUSTICE, were enjoined with a *distinct reference to the government of God*.[\[62\]](#) "Without respect of persons," they

were to be God-like in doing justice. They were to act the part of kind and merciful "brethren." And whither would this lead them? Could they stop short of restoring to every man his natural, inalienable rights?—of doing what they could to redress the wrongs, sooth the sorrows, improve the character, and raise the condition of the degraded and oppressed? Especially, if oppressed and degraded by any agency of theirs. Could it be kind, merciful, or just to keep the chains of slavery on their helpless, unoffending brother? Would this be to honor the Golden Rule, or obey the second great command of "their Master in Heaven?" Could the apostles have subserved the cause of freedom more directly, intelligibly, and effectually, than *to enjoin the principles, and sentiments, and habits, in which freedom consists—constituting its living root and fruitful germ!*

[Footnote [61](#): Pittsburg pamphlet, p. 9.]

[Footnote [62](#): The same, p. 10.]

The Princeton professor himself, in the very paper which the South has so warmly welcomed and so loudly applauded as a scriptural defence of "the peculiar institution," maintains, that the "GENERAL PRINCIPLES OF THE GOSPEL *have DESTROYED SLAVERY throughout the greater part of Christendom*"[[63](#)]"—"THAT CHRISTIANITY HAS ABOLISHED BOTH POLITICAL AND DOMESTIC BONDAGE WHEREVER IT HAS HAD FREE SCOPE—*that it ENJOINS a fair compensation for labor; insists on the mental and intellectual improvement of ALL classes of men; condemns ALL infractions of marital or parental rights; requires, in short, not only that FREE SCOPE should be allowed to human improvement, but that ALL SUITABLE MEANS should be employed for the attainment of that end.*" [[64](#)] It is indeed "remarkable," that while neither Christ nor his apostles ever gave "an exhortation to masters to liberate their slaves," they enjoined such "general principles as have destroyed domestic slavery throughout the greater part of Christendom;" that while Christianity forbears "to urge" emancipation "as an imperative and immediate duty," it throws a barrier, heaven high, around every domestic circle; protects all the rights of the husband and the father; gives every laborer a fair compensation; and makes the moral and intellectual improvement of all classes, with free scope and

all suitable means, the object of its tender solicitude and high authority. This is not only "remarkable," but inexplicable. Yes and no—hot and cold, in one and the same breath! And yet these things stand prominent in what is reckoned an acute, ingenious, effective defence of slavery!

[Footnote [63](#): Pittsburg pamphlet, p. 18, 19.]

[Footnote [64](#): The same, p. 31.]

In his letter to the Corinthian church, the apostle Paul furnishes another lesson of instruction, expressive of his views and feelings on the subject of slavery. "Let every man abide in the same calling wherein he was called. Art thou called being a servant? care not for it; but if thou mayest be made free, use it rather. For he that is called in the Lord, being a servant, is the Lord's freeman: likewise also he that is called, being free, is Christ's servant. Ye are bought with a price; be not ye the servants of men." [[65](#)]

[Footnote [65](#): 1 Cor. vii. 20-23.]

In explaining and applying this passage, it is proper to suggest:

- 1. That it *could* not have been the object of the apostle to bind the Corinthian converts to the stations and employments in which the gospel found them. For he exhorts some of them to escape, if possible, from their present condition. In the servile state, "under the yoke," they ought not to remain unless impelled by stern necessity. "If thou canst be free, use it rather." If they ought to prefer freedom to bondage and to exert themselves to escape from the latter for the sake of the former, could their master consistently with the claims and spirit of the gospel have hindered or discouraged them in so doing? Their "brother" could *he* be, who kept "the yoke" upon their neck, which the apostle would have them shake off if possible? And had such masters been members of the Corinthian church, what inferences must they have drawn from this exhortation to their servants? That the apostle regarded slavery as a Christian institution?—or could look complacently on any efforts to introduce or maintain it in the church? Could they have expected less

from him than a stern rebuke, if they refused to exert themselves in the cause of freedom?

- 2. But while they were to use their freedom, if they could obtain it, they should not, even on such a subject, give themselves up to ceaseless anxiety. "The Lord was no respecter of persons." They need not fear, that the "low estate," to which they had been wickedly reduced, would prevent them from enjoying the gifts of his hand or the light of his countenance. *He* would respect their rights, sooth their sorrows, and pour upon their hearts, and cherish there, the spirit of liberty. "For he that is called in the Lord, being a servant, is the Lord's freeman." In *him*, therefore, should they cheerfully confide.
- 3. The apostle, however, forbids them so to acquiesce in the servile relation, as to act inconsistently with their Christian obligations. To their Savior they belonged. By his blood they had been purchased. It should be their great object, therefore, to render *Him* a hearty and effective service. They should permit no man, whoever he might be, to thrust in himself between them and their Redeemer. "*Ye are bought with a price; BE NOT YE THE SERVANTS OF MEN.*"

With his eye upon the passage just quoted and explained, the Princeton professor asserts that "Paul represents this relation"—the relation of slavery—"as of comparatively little account."[\[66\]](#) And this he applies—otherwise it is nothing to his purpose—to *American slavery*. Does he then regard it as a small matter, a mere trifle, to be thrown under the slave-laws of this republic, grimly and fiercely excluding their victim from almost every means of improvement, and field of usefulness, and source of comfort; and making him, body and substance, with his wife and babes, "the servant of men?" Could such a relation be acquiesced in consistently with the instructions of the apostle?

[Footnote [66](#): Pittsburg pamphlet, p.10.]

To the Princeton professor we commend a practical trial of the bearing of the passage in hand upon American slavery. His regard for the unity and prosperity of the ecclesiastical organizations, which in various forms and under different names, unite the southern with the northern churches, will

make the experiment grateful to his feelings. Let him, then, as soon as his convenience will permit, proceed to Georgia. No religious teacher[67] from any free State, can be likely to receive so general and so warm a welcome there. To allay the heat, which the doctrines and movements of the abolitionists have occasioned in the southern mind, let him with as much despatch as possible, collect, as he goes from place to place, masters and their slaves. Now let all men, whom it may concern, see and own that slavery is a Christian institution! With his Bible in his hand and his eye upon the passage in question, he addresses himself to the task of instructing the slaves around him. Let not your hearts, my brethren, be overcharged with sorrow, or eaten up with anxiety. Your servile condition cannot deprive you of the fatherly regards of Him "who is no respecter of persons." Freedom you ought, indeed, to prefer. If you can escape from "the yoke," throw it off. In the mean time rejoice that "where the Spirit of the Lord is, there is liberty;" that the gospel places slaves "on a perfect religious equality" with their master; so that every Christian is "the Lord's freeman." And, for your encouragement, remember that "Christianity has abolished both political and domestic servitude wherever it has had free scope. It enjoins a fair compensation for labor; it insists on the moral and intellectual improvement of all classes of men; it condemns all infractions of marital or parental rights; in short it requires not only that free scope be allowed to human improvement, but that all suitable means should be employed for the attainment of that end." [68] Let your lives, then, be honorable to your relations to your Savior. He bought you with his own blood; and is entitled to your warmest love and most effective service. "Be not ye the servants of men." Let no human arrangements prevent you, as citizens of the kingdom of heaven, from making the most of your powers and opportunities. Would such an effort, generally and heartily made, allay excitement at the South, and quench the flames of discord, every day rising higher and waxing hotter, in almost every part of the republic, and cement "the Union?"

[Footnote 67: Rev. Mr. Savage, of Utica, New York, had, not very long ago, a free conversation with a gentleman of high standing in the literary and religious world from a slaveholding State, where the "peculiar institution" is cherished with great warmth and maintained with iron rigor. By him, Mr. Savage was assured, that the Princeton professor had, through the Pittsburg

pamphlet, contributed most powerfully and effectually to bring the "whole South" under the persuasion, *that slaveholding is in itself right—a system to which the Bible gives countenance and support.*

In an extract from an article in the Southern Christian Sentinel, a new Presbyterian paper established in Charleston, South Carolina, and inserted in the Christian Journal for March 21, 1839, we find the following paragraphs from the pen of Rev. C.W. Howard, and, according to Mr. Chester, ably and freely endorsed by the editor. "There is scarcely any diversity of sentiment at the North upon this subject. The great mass of the people, believing slavery to be sinful, are clearly of the opinion that, as a system, it should be abolished throughout this land and throughout the world. They differ as to the time and mode of abolition. The abolitionists consistently argue, that whatever is sinful should be instantly abandoned. The others, *by a strange sort of reasoning for Christian men*, contend that though slavery is sinful, *yet it may be allowed to exist until it shall be expedient to abolish it*; or, if, in many cases, this reasoning might be translated into plain English, the sense would be, both in Church and State, *slavery, though sinful, may be allowed to exist until our interest will suffer us to say that it must be abolished.* This is not slander; it is simply a plain way of stating a plain truth. It does seem the evident duty of every man to become an abolitionist, who believes slavery to be sinful, for the Bible allows no tampering with sin.

"To these remarks, there are some noble exceptions, to be found in both parties in the church. *The South owes a debt of gratitude to the Biblical Repertory, for the fearless argument in behalf of the position, that slavery is not forbidden by the Bible.* The writer of that article is said, without contradiction, to be *Professor Hodge, of Princeton*—HIS NAME OUGHT TO BE KNOWN AND REVERED AMONG YOU, *my brethren, for in a land of anti-slavery men, he is the ONLY ONE who has dared to vindicate your character from the serious charge of living in the habitual transgression of God's holy law.*"

[Footnote [68](#): Pittsburg pamphlet, p. 31.]

"It is," affirms the Princeton professor, "on all hands acknowledged, that, at the time of the advent of Jesus Christ, slavery in its worst forms prevailed

over the whole world. *The Savior found it around him IN JUDEA.*"[69] To say that he found it *in Judea*, is to speak ambiguously. Many things were to be found "*in Judea*," which neither belonged to, nor were characteristic of *the Jews*. It is not denied that *the Gentiles*, who resided among them, might have had slaves; *but of the Jews this is denied*. How could the professor take that as granted, the proof of which entered vitally into the argument and was essential to the soundness of the conclusions to which he would conduct us? How could he take advantage of an ambiguous expression to conduct his confiding readers on to a position which, if his own eyes were open, he must have known they could not hold in the light of open day!

[Footnote 69: The same, p. 9]

We do not charge the Savior with any want of wisdom, goodness, or courage,[70] for refusing to "break down the wall of partition between Jews and Gentiles" "before the time appointed." While this barrier stood, he could not, consistently with the plan of redemption, impart instruction freely to the Gentiles. To some extent, and on extraordinary occasions, he might have done so. But his business then was with "the lost sheep of the house of Israel." [71] The propriety of this arrangement is not the matter of dispute between the Princeton professor and ourselves.

[Footnote 70: Pittsburg pamphlet, p. 10.]

[Footnote 71: Matt. xv. 24.]

In disposing of the question whether the Jews held slaves during our Savior's incarnation among them, the following points deserve earnest attention:—

- 1. Slaveholding is inconsistent with the Mosaic economy. For the proof of this, we would refer our readers, among other arguments more or less appropriate and powerful, to the tract already alluded to.[72] In all the external relations and visible arrangements of life, the Jews, during our Savior's ministry among them, seem to have been scrupulously observant of the institutions and usages of the "Old

Dispensation." They stood far aloof from whatever was characteristic of Samaritans and Gentiles. From idolatry and slaveholding—those twin-vices which had always so greatly prevailed among the heathen—they seem at length, as the result of a most painful discipline, to have been effectually divorced.

[Footnote [72](#): "The Bible against Slavery."]

- 2. While, therefore, John the Baptist; with marked fidelity and great power, acted among the Jews the part of a *reprover*, he found no occasion to repeat and apply the language of his predecessors,[\[73\]](#) in exposing and rebuking idolatry and slaveholding. Could he, the greatest of the prophets, have been less effectually aroused by the presence of "the yoke," than was Isaiah?—or less intrepid and decisive in exposing and denouncing the sin of oppression under its most hateful and injurious forms?

[Footnote [73](#): Psalm lxxxii; Isa. lviii. 1-12 Jer. xxii. 13-16.]

- 3. The Savior was not backward in applying his own principles plainly and pointedly to such forms of oppression as appeared among the Jews. These principles, whenever they have been freely acted on, the Princeton professor admits, have abolished domestic bondage. Had this prevailed within the sphere of our Savior's ministry, he could not, consistently with his general character, have failed to expose and condemn it. The oppression of the people by lordly ecclesiastics, of parents by their selfish children, of widows by their ghostly counsellors, drew from his lips scorching rebukes and terrible denunciations.[\[74\]](#) How, then, must he have felt and spoke in the presence of such tyranny, if *such tyranny had been within his official sphere*, as should *have made widows*, by driving their husbands to some flesh-market, and their children not orphans, *but cattle*?

[Footnote [74](#): Matt. xxiii; Mark, vii. 1-13.]

- 4. Domestic slavery was manifestly inconsistent with the *industry*, which, *in the form of manual labor*, so generally prevailed among the Jews. In one connection, in the Acts of the Apostles, we are informed, that, coming from Athens to Corinth, Paul "found a certain Jew, named Aquila, born in Pontus, lately come from Italy, with his wife Priscilla; (because that Claudius had commanded all Jews to depart from Rome;) and came unto them. And because he was of the same craft, he abode with them and wrought: (for by their occupation they were tent-makers.")[75] This passage has opened the way for different commentators to refer us to the public sentiment and general practice of the Jews respecting useful industry and manual labor. According to *Lightfoot*, "it was their custom to bring up their children to some trade, yea, though they gave them learning or estates." According to Rabbi Judah, "He that teaches not his son a trade, is as if he taught him to be a thief." [76] It was, *Kuinoel* affirms, customary even for Jewish teachers to unite labor (opificium) with the study of the law. This he confirms by the highest Rabbinical authority. [77] *Heinrichs* quotes a Rabbi as teaching, that no man should by any means neglect to train his son to honest industry. [78] Accordingly, the apostle Paul, though brought up at the "feet of Gamaliel," the distinguished disciple of a most illustrious teacher, practised the art of tent-making. His own hands ministered to his necessities; and his example is so doing, he commends to his Gentile brethren for their imitation. [79] That Zebedee, the father of John the Evangelist, had wealth, various hints in the New Testament render probable. [80] Yet how do we find him and his sons, while prosecuting their appropriate business? In the midst of the hired servants, "in the ship mending their nets." [81]

[Footnote 75: Acts, xviii. 1-3.]

[Footnote 76: Henry on Acts, xviii. 1-3.]

[Footnote 77: Kuinoel on Acts.]

[Footnote 78: Heinrichs on Acts.]

[Footnote 79: Acts, xx. 34, 35; 1 Thess. iv. 11.]

[Footnote [80](#): See Kuinoel's Prolegom. to the Gospel of John.]

[Footnote [81](#): Mark, i. 19, 20.]

Slavery among a people who, from the highest to the lowest, were used to manual labor! What occasion for slavery there? And how could it be maintained? No place can be found for slavery among a people generally inured to useful industry. With such, especially if men of learning, wealth, and station, "labor, working with their hands," such labor must be honorable. On this subject, let Jewish maxims and Jewish habits be adopted at the South, and the "peculiar institution" would vanish like a ghost at daybreak.

- 5. Another hint, here deserving particular attention, is furnished in the allusions of the New Testament to the lowest casts and most servile employments among the Jews. With profligates, *publicans* were joined as depraved and contemptible. The outcasts of society were described, not as fit to herd with slaves, but as deserving a place among Samaritans and publicans. They were "*hired servants*," whom Zebedee employed. In the parable of the prodigal son we have a wealthy Jewish family. Here servants seem to have abounded. The prodigal, bitterly bewailing his wretchedness and folly, described their condition as greatly superior to his own. How happy the change which should place him by their side? His remorse, and shame, and penitence made him willing to embrace the lot of the lowest of them all. But these—what was their condition? They were HIRED SERVANTS. "Make me as one of thy hired servants." Such he refers to as the lowest menials known in Jewish life.

Lay such hints as have now been suggested together; let it be remembered, that slavery was inconsistent with the Mosaic economy; that John the Baptist in preparing the way for the Messiah makes no reference "to the yoke" which, had it been before him, he would, like Isaiah, have condemned; that the Savior, while he took the part of the poor and sympathized with the oppressed, was evidently spared the pain of witnessing within the sphere of his ministry, the presence, of the chattel principle, that it was the habit of the Jews, whoever they might be, high or low, rich or poor, learned or rude, "to labor, working with their hands;" and that where reference was had to the most menial employments, in families,

they were described as carried on by hired servants; and the question of slavery "in Judea," so far as the seed of Abraham were concerned, is very easily disposed of. With every phase and form of society among them slavery was inconsistent.

The position which, in the article so often referred to in this paper, the Princeton professor takes, is sufficiently remarkable. Northern abolitionists he saw in an earnest struggle with southern slaveholders. The present welfare and future happiness of myriads of the human family were at stake in this contest. In the heat of the battle, he throws himself between the belligerent powers. He gives the abolitionists to understand, that they are quite mistaken in the character of the objections they have set themselves so openly and sternly against. Slaveholding is not, as they suppose, contrary to the law of God. It was witnessed by the Savior "in its worst forms"[[82](#)] without extorting from his lips a syllable of rebuke. "The sacred writers did not condemn it."[[83](#)] And why should they? By a definition [[84](#)] sufficiently ambiguous and slippery, he undertakes to set forth a form of slavery which he looks upon as consistent with the law of Righteousness. From this definition he infers that the abolitionists are greatly to blame for maintaining that American slavery is inherently and essentially sinful, and for insisting that it ought at once to be abolished. For this labor of love the slaveholding South is warmly grateful and applauds its reverend ally, as if a very Daniel had come as their advocate to judgment.[[85](#)]

[Footnote [82](#): Pittsburg pamphlet, p. 9.]

[Footnote [83](#): The same, p. 13.]

[Footnote [84](#): The same, p. 12.]

[Footnote [85](#): Supra, p. 58.]

A few questions, briefly put, may not here be inappropriate.

- 1. Was the form of slavery which our professor pronounces innocent *the form* witnessed by our Savior "in Judea?" That, *he* will by no means admit. The slavery there was, he affirms, of the "worst" kind. *How then does he account for the alleged silence of the Savior?—a*

silence covering the essence and the form—the institution and its "worst" abuses?

- 2. Is the slaveholding, which, according to the Princeton professor, Christianity justifies, the same as that which the abolitionists so earnestly wish to see abolished? Let us see.

Christianity in supporting Slavery, according to Professor Hodge:

The American system for supporting Slavery:

"Enjoins a fair compensation for labor"

Makes compensation impossible by reducing the laborer to a chattel.

"It insists on the moral and intellectual improvement of all classes of men"

It sternly forbids its victim to learn to read even the name of his Creator and Redeemer.

"It condemns all infractions of marital or parental rights."

It outlaws the conjugal and parental relations.

"It requires that free scope should be allowed to human improvement."

It forbids any effort, on the part of myriads of the human family, to improve their character, condition, and prospects.

"It requires that all suitable means should be employed to improve mankind"

It inflicts heavy penalties for teaching letters to the poorest of the poor.

"Wherever it has had free scope, it has abolished domestic bondage."

Wherever it has free scope, it perpetuates domestic bondage.

*Now it is slavery according to the American system that the abolitionists are set against. Of the existence of any such form of slavery as is consistent with Professor Hodge's account of the requisitions of Christianity, they know nothing. It has never met their notice, and of course, has never roused their feelings or called forth their exertions. What, then, have they to do with the censures and reproaches which the Princeton professor deals around? Let those who have leisure and good nature protect the *man of straw* he is so hot against. The abolitionists have other business. It is not the figment of some sickly brain; but that system of oppression which in theory is*

corrupting, and in practice destroying both Church and State;—it is this that they feel pledged to do battle upon, till by the just judgment of Almighty God it is thrown, dead and damned, into the bottomless abyss.

- 3. *How can the South feel itself protected by any shield which may be thrown over SUCH SLAVERY, as may be consistent with what the Princeton professor describes as the requisitions of Christianity? Is this THE slavery which their laws describe, and their hands maintain? "Fair compensation for labor"—"marital and parental rights"—"free scope" and "all suitable means" for the "improvement, moral and intellectual, of all classes of men;"—are these, according to the statutes of the South, among the objects of slaveholding legislation? Every body knows that any such requisitions and American slavery are flatly opposed to and directly subversive of each other. What service, then, has the Princeton professor, with all his ingenuity and all his zeal, rendered the "peculiar institution?" Their gratitude must be of a stamp and complexion quite peculiar, if they can thank him for throwing their "domestic system" under the weight of such Christian requisitions as must at once crush its snaky head "and grind it to powder."*

And what, moreover, is the bearing of the Christian requisitions, which Professor Hodge quotes, upon the *definition of slavery* which he has elaborated? "All the ideas which necessarily enter into the definition of slavery are, deprivation of personal liberty, obligation of service at the discretion of another, and the transferable character of the authority and claim of service of the master."[\[86\]](#)

[Footnote [86](#): Pittsburg pamphlet p. 12.]

According to Professor Hodge's account of the requisitions of Christianity,

The spring of effort in the laborer is a fair compensation.

According to Professor Hodge's definition of Slavery,

The laborer must serve at the discretion of another.

Free scope must be given for his moral and intellectual improvement. He is deprived of personal liberty—the necessary condition, and living soul of improvement, without which he has no control of either intellect or morals.

His rights as a husband and a father are to be protected. The authority and claims of the master may throw an ocean between him and his family, and separate them from each other's presence at any moment and forever.

Christianity, then, requires such slavery as Professor Hodge so cunningly defines, to be abolished. It was well provided for the peace of the respective parties, that he placed *his definition* so far from *the requisitions of Christianity*. Had he brought them into each other's presence, their natural and invincible antipathy to each other would have broken out into open and exterminating warfare. But why should we delay longer upon an argument which is based on gross and monstrous sophistry? It can mislead only such as *wish* to be misled. The lovers of sunlight are in little danger of rushing into the professor's dungeon. Those who, having something to conceal, covet darkness, can find it there, to their heart's content. The hour cannot be far away, when upright and reflective minds at the South will be astonished at the blindness which could welcome such protection as the Princeton argument offers to the slaveholder.

But *Professor Stuart* must not be forgotten. In his celebrated letter to Dr. Fisk, he affirms that "*Paul did not expect slavery to be ousted in a day.*"[[87](#)] *Did not EXPECT!* What then! Are the *requisitions* of Christianity adapted to any EXPECTATIONS which in any quarter and on any ground might have risen to human consciousness? And are we to interpret the *precepts* of the gospel by the expectations of Paul? The Savior commanded all men every where to repent, and this, though "Paul did not expect" that human wickedness, in its ten thousand forms would in any community "be ousted in a day." Expectations are one thing; requisitions quite another.

[Footnote [87](#): Supra, p. 7.]

In the mean time, while expectation waited, Paul, the professor adds, "gave precepts to Christians respecting their demeanor." *That* he did. Of what character were these precepts? Must they not have been in harmony with the Golden Rule? But this, according to Professor Stuart, "decides against the righteousness of slavery" even as a "theory." Accordingly, Christians were required, *without respect of persons*, to do each other justice—to maintain equality as common ground for all to stand upon—to cherish and express in all their intercourse that tender love and disinterested charity which one *brother* naturally feels for another. These were the "ad interim precepts."[\[88\]](#) which cannot fail, if obeyed, to cut up slavery, "root and branch," at once and forever.

[Footnote [88](#): Letter to Dr. Fisk, p. 7.]

Professor Stuart comforts us with the assurance that "*Christianity will ultimately certainly destroy slavery.*" Of this we have not the feeblest doubt. But how could *he* admit a persuasion and utter a prediction so much at war with the doctrine he maintains, that "*slavery may exist without VIOLATING THE CHRISTIAN FAITH OR THE CHURCH?*"[\[89\]](#) What, Christianity bent on the destruction of an ancient and cherished institution which hurts neither her character nor condition?[\[90\]](#) Why not correct its abuses and purify its spirit; and shedding upon it her own beauty, preserve it, as a living trophy of her reformatory power? Whence the discovery that, in her onward progress, she would trample down and destroy what was no way hurtful to her? This is to be *aggressive* with a witness. Far be it from the Judge of all the earth to overwhelm the innocent and guilty in the same destruction! In aid of Professor Stuart, in the rude and scarcely covert attack which he makes upon himself, we maintain that Christianity will certainly destroy slavery on account of its inherent wickedness—its malignant temper—its deadly effects—its constitutional, insolent, and unmitigable opposition to the authority of God and the welfare of man.

[Footnote [89](#): Letter to Dr. Fisk, p. 7.]

[Footnote [90](#): Professor Stuart applies here the words, *salva fide et salva ecclesia*.]

"Christianity will *ultimately* destroy slavery." "ULTIMATELY!" What meaneth that portentous word? To what limit of remotest time, concealed in the darkness of futurity, may it look? Tell us, O watchman, on the hill of Andover. Almost nineteen centuries have rolled over this world of wrong and outrage—and yet we tremble in the presence of a form of slavery whose breath is poison, whose fang is death! If any one of the incidents of slavery should fall, but for a single day, upon the head of the prophet, who dipped his pen in such cold blood, to write that word "ultimately," how, under the sufferings of the first tedious hour, would he break out in the lamentable cry, "How *long*, O Lord, HOW LONG!" In the agony of beholding a wife or daughter upon the table of the auctioneer, while every bid fell upon his heart like the groan of despair, small comfort would he find in the dull assurance of some heartless prophet, quite at "ease in Zion," that "ULTIMATELY *Christianity would destroy slavery*." As the hammer falls, and the beloved of his soul, all helpless and most wretched, is borne away to the haunts of *legalized* debauchery, his hearts turns to stone, while the cry dies upon his lips, "*How LONG, O Lord, HOW LONG!*"

"*Ultimately!*" In *what circumstances* does Professor Stuart assure himself that Christianity will destroy slavery? Are we, as American citizens, under the sceptre of a Nero? When, as integral parts of this republic—as living members of this community, did we forfeit the prerogatives of *freemen*? Have we not the right to speak and act as wielding the powers which the privileges of self-government has put in our possession? And without asking leave of priest or statesman of the North or the South, may we not make the most of the freedom which we enjoy under the guaranty of the ordinances of Heaven and the Constitution of our country! Can we expect to see Christianity on higher vantage-ground than in this country she stands upon? In the midst of a republic based on the principle of the equality of mankind, where every Christian, as vitally connected with the state, freely wields the highest political rights and enjoys the richest political privileges; where the unanimous demand of one-half of the members of the churches would be promptly met in the abolition of slavery, what "*ultimately*" must Christianity here wait for before she crushes the chattel principle beneath her heel? Her triumph over slavery is retarded by nothing but the corruption

and defection so widely spread through the "sacramental host" beneath her banners! Let her voice be heard and her energies exerted, and the *ultimately* of the "dark spirit of slavery" would at once give place to the *immediately* of the Avenger of the Poor.

No. 12.

THE

ANTI-SLAVERY EXAMINER.

DISUNION.

ADDRESS OF THE AMERICAN ANTI-SLAVERY SOCIETY

AND

F. JACKSON'S LETTER ON THE PRO-SLAVERY
CHARACTER

OF THE CONSTITUTION

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ADDRESS OF THE EXECUTIVE COMMITTEE

**OF THE AMERICAN ANTI-SLAVERY
SOCIETY**

TO THE

Friends of Freedom and Emancipation in the U. States.

At the Tenth Anniversary of the American Anti-Slavery Society, held in the city of New-York, May 7th, 1844,—after grave deliberation, and a long and earnest discussion,—it was decided, by a vote of nearly three to one of the members present, that fidelity to the cause of human freedom, hatred of oppression, sympathy for those who are held in chains and slavery in this republic, and allegiance to God, require that the existing national compact should be instantly dissolved; that secession from the government is a religious and political duty; that the motto inscribed on the banner of Freedom should be, **NO UNION WITH SLAVEHOLDERS**; that it is impracticable for tyrants and the enemies of tyranny to coalesce and legislate together for the preservation of human rights, or the promotion of the interests of Liberty; and that revolutionary ground should be occupied by all those who abhor the thought of doing evil that good may come, and who do not mean to compromise the principles of Justice and Humanity.

A decision involving such momentous consequences, so well calculated to startle the public mind, so hostile to the established order of things, demands of us, as the official representatives of the American Society, a statement of the reasons which led to it. This is due not only to the Society, but also to the country and the world.

It is declared by the American people to be a self-evident truth, "that all men are created equal; that they are endowed **BY THEIR CREATOR** with certain inalienable rights; that among these are *life*, **LIBERTY**, and the pursuit of happiness." It is further maintained by them, that "all governments derive their just powers from the consent of the governed;" that "whenever any form of government becomes destructive of human rights, it is the right of the people to alter or to abolish it, and institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness." These doctrines the patriots of 1776 sealed with their blood.

They would not brook even the menace of oppression. They held that there should be no delay in resisting, at whatever cost or peril, the first encroachments of power on their liberties. Appealing to the great Ruler of the universe for the rectitude of their course, they pledged to each other "their lives, their fortunes and their sacred honor," to conquer or perish in their struggle to be free.

For the example which they set to all people subjected to a despotic sway, and the sacrifices which they made, their descendants cherish their memories with gratitude, reverence their virtues, honor their deeds, and glory in their triumphs.

It is not necessary, therefore, for us to prove that a state of slavery is incompatible with the dictates of reason and humanity; or that it is lawful to throw off a government which is at war with the sacred rights of mankind.

We regard this as indeed a solemn crisis, which requires of every man sobriety of thought, prophetic forecast, independent judgment, invincible determination, and a sound heart. A revolutionary step is one that should not be taken hastily, nor followed under the influence of impulsive imitation. To know what spirit they are of—whether they have counted the cost of the warfare—what are the principles they advocate—and how they are to achieve their object—is the first duty of revolutionists.

But, while circumspection and prudence are excellent qualities in every great emergency, they become the allies of tyranny whenever they restrain prompt, bold and decisive action against it.

We charge upon the present national compact, that it was formed at the expense of human liberty, by a profligate surrender of principle, and to this hour is cemented with human blood.

We charge upon the American Constitution, that it contains provisions, and enjoins duties, which make it unlawful for freemen to take the oath of allegiance to it, because they are expressly designed to favor a slaveholding oligarchy, and, consequently, to make one portion of the people a prey to another.

We charge upon the existing national government, that it is an insupportable despotism, wielded by a power which is superior to all legal and

constitutional restraints—equally indisposed and unable to protect the lives or liberties of the people—the prop and safeguard of American slavery.

These charges we proceed briefly to establish:

I. It is admitted by all men of intelligence,—or if it be denied in any quarter, the records of our national history settle the question beyond doubt,—that the American Union was effected by a guilty compromise between the free and slaveholding States; in other words, by immolating the colored population on the altar of slavery, by depriving the North of equal rights and privileges, and by incorporating the slave system into the government. In the expressive and pertinent language of scripture, it was "a covenant with death, and an agreement with hell"—null and void before God, from the first hour of its inception—the framers of which were recreant to duty, and the supporters of which are equally guilty.

It was pleaded at the time of the adoption, it is pleaded now, that, without such a compromise there could have been no union; that, without union, the colonies would have become an easy prey to the mother country; and, hence, that it was an act of necessity, deplorable indeed when viewed alone, but absolutely indispensable to the safety of the republic.

To this we reply: The plea is as profligate as the act was tyrannical. It is the jesuitical doctrine, that the end sanctifies the means. It is a confession of sin, but the denial of any guilt in its perpetration. It is at war with the government of God, and subversive of the foundations of morality. It is to make lies our refuge, and under falsehood to hide ourselves, so that we may escape the overflowing scourge. "Therefore, thus saith the Lord God, Judgment will I lay to the line, and righteousness to the plummet; and the bail shall sweep away the refuge of lies, and the waters shall overflow the hiding place." Moreover, "because ye trust in oppression and perverseness, and stay thereon; therefore this iniquity shall be to you as a breach ready to fall, swelling out in a high wall, whose breaking cometh suddenly at an instant. And he shall break it as the breaking of the potter's vessel that is broken in pieces; he shall not spare."

This plea is sufficiently broad to cover all the oppression and villany that the sun has witnessed in his circuit, since God said, "Let there be light." It assumes that to be practicable, which is impossible, namely, that there can

be freedom with slavery, union with injustice, and safety with blood guiltiness. A union of virtue with pollution is the triumph of licentiousness. A partnership between right and wrong, is wholly wrong. A compromise of the principles of Justice, is the deification of crime.

Better that the American Union had never been formed, than that it should have been obtained at such a frightful cost! If they were guilty who fashioned it, but who could not foresee all its frightful consequences, how much more guilty are they, who, in full view of all that has resulted from it, clamor for its perpetuity! If it was sinful at the commencement, to adopt it on the ground of escaping a greater evil, is it not equally sinful to swear to support it for the same reason, or until, in process of time, it be purged from its corruption?

The fact is, the compromise alluded to, instead of effecting a union, rendered it impracticable; unless by the term union we are to understand the absolute reign of the slaveholding power over the whole country, to the prostration of Northern rights. In the just use of words, the American Union is and always has been a sham—an imposture. It is an instrument of oppression unsurpassed in the criminal history of the world. How then can it be innocently sustained? It is not certain, it is not even probable, that if it had not been adopted, the mother country would have reconquered the colonies. The spirit that would have chosen danger in preference to crime,—to perish with justice rather than live with dishonor,—to dare and suffer whatever might betide, rather than sacrifice the rights of one human being,—could never have been subjugated by any mortal power. Surely it is paying a poor tribute to the valor and devotion of our revolutionary fathers in the cause of liberty, to say that, if they had sternly refused to sacrifice their principles, they would have fallen an easy prey to the despotic power of England.

II. The American Constitution is the exponent of the national compact. We affirm that it is an instrument which no man can innocently bind himself to support, because its anti-republican and anti-Christian requirements are explicit and peremptory; at least, so explicit that, in regard to all the clauses pertaining to slavery, they have been uniformly understood and enforced in the same way, by all the courts and by all the people; and so peremptory, that no individual interpretation or authority can set them aside with

impunity. It is not a ball of clay, to be moulded into any shape that party contrivance or caprice may choose it to assume. It is not a form of words, to be interpreted in any manner, or to any extent, or for the accomplishment of any purpose, that individuals in office under it may determine. *It means precisely what those who framed and adopted it meant—NOTHING MORE, NOTHING LESS, as a matter of bargain and compromise.* Even if it can be construed to mean something else, without violence to its language, such construction is not to be tolerated *against the wishes of either party.* No just or honest use of it can be made, in opposition to the plain intention of its framers, *except to declare the contract at an end, and to refuse to serve under it.*

To the argument, that the words "slaves" and "slavery" are not to be found in the Constitution, and therefore that it was never intended to give any protection or countenance to the slave system, it is sufficient to reply, that though no such words are contained in that instrument, other words were used, intelligently and specifically, TO MEET THE NECESSITIES OF SLAVERY; and that these were adopted *in good faith, to be observed until a constitutional change could be effected.* On this point, as to the design of certain provisions, no intelligent man can honestly entertain a doubt. If it be objected, that though these provisions were meant to cover slavery, yet, as they can fairly be interpreted to mean something exactly the reverse, it is allowable to give to them such an interpretation, *especially as the cause of freedom will thereby be promoted*—we reply, that this is to advocate fraud and violence toward one of the contracting parties, *whose co-operation was secured only by an express agreement and understanding between them both, in regard to the clauses alluded to;* and that such a construction, if enforced by pains and penalties, would unquestionably lead to a civil war, in which the aggrieved party would justly claim to have been betrayed, and robbed of their constitutional rights.

Again, if it be said, that those clauses, being immoral, are null and void—we reply, it is true they are not to be observed; but it is also true that they are portions of an instrument, the support of which, AS A WHOLE, is required by oath or affirmation; and, therefore, *because they are immoral,* and BECAUSE OF THIS OBLIGATION TO ENFORCE IMMORALITY, no one can innocently swear to support the Constitution.

Again, if it be objected, that the Constitution was formed by the people of the United States, in order to establish justice, to promote the general welfare, and secure the blessings of liberty to themselves and their posterity: and therefore, it is to be so construed as to harmonize with these objects; we reply, again, that its language is *not to be interpreted in a sense which neither of the contracting parties understood*, and which would frustrate every design of their alliance—to wit, *union at the expense of the colored population of the country*. Moreover, nothing is more certain than that the preamble alluded to never included, in the minds of those who framed it, *those who were then pining in bondage*—for, in that case, a general emancipation of the slaves would have instantly been proclaimed throughout the United States. The words, "secure the blessings of liberty to ourselves and our posterity," assuredly meant only the white population. "To promote the general welfare," referred to their own welfare exclusively. "To establish justice," was understood to be for their sole benefit as slaveholders, and the guilty abettors of slavery. This is demonstrated by other parts of the same instrument, and by their own practice under it.

We would not detract aught from what is justly their due; but it is as reprehensible to give them credit for *what they did not possess*, as it is to rob them of what is theirs. It is absurd, it is false, it is an insult to the common sense of mankind, to pretend that the Constitution was intended to embrace the entire population of the country under its sheltering wings; or that the parties to it were actuated by a sense of justice and the spirit of impartial liberty; or that it needs no alteration, but only a new interpretation, to make it harmonize with the object aimed at by its adoption. As truly might it be argued, that because it is asserted in the Declaration of Independence, that all men are created equal, and endowed with an inalienable right to liberty, therefore none of its signers were slaveholders, and since its adoption, slavery has been banished from the American soil! The truth is, our fathers were intent on securing liberty *to themselves*, without being very scrupulous as to the means they used to accomplish their purpose. They were not actuated by the spirit of universal philanthropy; and though *in words* they recognized occasionally the brotherhood of the human race, *in practice* they continually denied it. They did not blush to enslave a portion of their fellow-men, and to buy and sell them as cattle in the market, while they were fighting against the oppression of the mother country, and

boasting of their regard for the rights of man. Why, then, concede to them virtues which they did not possess. *Why cling to the falsehood, that they were not respecters of persons in the formation of the government?*

Alas! that they had no more fear of God, no more regard for man, in their hearts! "The iniquity of the house of Israel and Judah [the North and South] is exceeding great, and the land is full of blood, and the city full of perverseness; for they say, the Lord hath forsaken the earth, and the Lord seeth not."

We proceed to a critical examination of the American Constitution, in its relations to slavery.

In ARTICLE 1, Section 9, it is declared—"the migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress, prior to the year one thousand eight hundred and eight; but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person."

In this Section, it will be perceived, the phraseology is so guarded as not to imply, *ex necessitate*, any criminal intent or inhuman arrangement; and yet no one has ever had the hardihood or folly to deny, that it was clearly understood by the contracting parties, to mean that there should be no interference with the African slave trade, on the part of the general government, until the year 1808. For twenty years after the adoption of the Constitution, the citizens of the United States were to be encouraged and protected in the prosecution of that infernal traffic—in sacking and burning the hamlets of Africa—in slaughtering multitudes of the inoffensive natives on the soil, kidnapping and enslaving a still greater proportion, crowding them to suffocation in the holds of the slave ships, populating the Atlantic with their dead bodies, and subjecting the wretched survivors to all the horrors of unmitigated bondage! This awful covenant was strictly fulfilled; and though, since its termination, Congress has declared the foreign slave traffic to be piracy, yet all Christendom knows that the American flag, instead of being the terror of the African slavers, has given them the most ample protection.

The manner in which the 9th Section was agreed to, by the national convention that formed the constitution, is thus frankly avowed by the Hon.

Luther Martin,[\[91\]](#) who was a prominent member of that body:

"The Eastern States, notwithstanding their aversion of slavery, (!) *were very willing to indulge the Southern States* at least with a temporary liberty to prosecute the slave trade, provided the Southern States would, in the return, *gratify* them by laying no restriction on navigation acts; and, after a very little time, the committee, by a great majority, agreed on a report, *by which the general government was to be prohibited from preventing the importation of slaves* for a limited time; and the restrictive clause relative to navigation acts was to be omitted."

[Footnote [91](#): Speech before the Legislature of Maryland in 1787.]

Behold the iniquity of this agreement! How sordid were the motives which led to it! what a profligate disregard of justice and humanity, on the part of those who had solemnly declared the inalienable right of all men to be free and equal, to be a self-evident truth!

It is due to the national convention to say, that this section was not adopted "without considerable opposition." Alluding to it, Mr. Martin observes—

"It was said we had just assumed a place among the independent nations in consequence of our opposition to the attempts of Great Britain to *enslave us*; that this opposition was grounded upon the preservation of those rights to which God and nature has entitled us, not in *particular*, but in *common with all the rest of mankind*; that we had appealed to the Supreme Being for his assistance, as the God of freedom, who could not but approve our efforts to preserve the rights which he had thus imparted to his creatures; that now, when we had scarcely risen from our knees, from supplicating his mercy and protection in forming our government over a free people, a government formed pretendedly on the principles of liberty, and for its preservation,—in that government to have a provision, not only of putting out of its power to restrain and prevent the slave trade, even encouraging that most infamous traffic, by giving the States the power and influence in the Union in proportion as they cruelly and wantonly sported with the rights of their fellow-creatures, ought to be considered as a solemn mockery of, and insult

to, that God whose protection we had thus implored, and could not fail to hold us up in detestation, and render us contemptible to every true friend of liberty in the world. It was said that national crimes can only be, and frequently are, punished in this world by *national punishments*, and that the continuance of the slave trade, and thus giving it a national character, sanction, and encouragement, ought to be considered as justly exposing us to the displeasure and vengeance of him who is equally the Lord of all, and who views with equal eye the poor *African slave* and his *American master*! [\[92\]](#)

[Footnote [92](#): How terribly and justly has this guilty nation been scourged, since these words were spoken, on account of slavery and the slave trade! Secret Proceedings, p. 64.]

"It was urged that, by this system, we were giving the general government full and absolute power to regulate commerce, under which general power it would have a right to restrain, or totally prohibit, the slave trade: it must, therefore, appear to the world absurd and disgraceful to the last degree that we should except from the exercise of that power the only branch of commerce which is unjustifiable in its nature, and contrary to the rights of mankind. That, on the contrary, we ought to prohibit expressly, in our Constitution, the further importation of slaves, and to authorize the general government, from time to time, to make such regulations as should be thought most advantageous for the gradual abolition of slavery, and the emancipation of the slaves already in the States. That slavery is inconsistent with the genius of republicanism, and has a tendency to destroy those principles on which it is supported, as it lessens the sense of the equal rights of mankind, and habituates to tyranny and oppression. It was further urged that, by this system of government, every State is to be protected both from foreign invasion and from domestic insurrections; and, from this consideration, it was of the utmost importance it should have the power to restrain the importation of slaves, since in proportion as the number of slaves increased in any State, in the same proportion is the State weakened and exposed to foreign invasion and domestic insurrection: and by so much less will it be able to protect itself against either, and therefore by so much, want aid from, and be a burden to, the Union.

"It was further said, that, in this system, as we were giving the general government power, under the idea of national character, or national interest, to regulate even our weights and measures, and have prohibited all possibility of emitting paper money, and passing insolvent laws, &c., it must appear still more extraordinary that we prohibited the government from interfering with the slave trade, than which nothing could more effect our national honor and interest.

"These reasons influenced me, both in the committee and in the convention, most decidedly to oppose and vote against the clause, as it now makes part of the system."[93](#)

[Footnote [93](#): Secret Proceedings, p. 64.]

Happy had it been for this nation, had these solemn considerations been heeded by the framers of the Constitution! But for the sake of securing some local advantages, they choose to do evil that good may come, and to make the end sanctify the means. They were willing to enslave others, that they might secure their own freedom. They did this deed deliberately, with their eyes open, with all the facts and consequences arising therefrom before them, in violation of all their heaven-attested declarations, and in atheistical distrust of the overruling power of God. "The Eastern States were very willing to *indulge* the Southern States" in the unrestricted prosecution of their piratical traffic, provided in return they could be *gratified* by no restriction being laid on navigation acts!!—Had there been no other provision of the Constitution justly liable to objection, this one alone rendered the support of that instrument incompatible with the duties which men owe to their Creator, and to each other. It was the poisonous infusion in the cup, which, though constituting but a very slight portion of its contents, perilled the life of every one who partook of it.

If it be asked to what purpose are these animadversions, since the clause alluded to has long since expired by its own limitation—we answer, that, if at any time the foreign slave trade could be *constitutionally* prosecuted, it may yet be renewed, under the Constitution, at the pleasure of Congress, whose prohibitory statute is liable to be reversed at any moment, in the frenzy of Southern opposition to emancipation. It is ignorantly supposed

that the bargain was, that the traffic *should cease* in 1808; but the only thing secured by it was, the *right* of Congress (not any obligation) to prohibit it at that period. If, therefore, Congress had not chosen to exercise that right, *the traffic might have been prolonged indefinitely, under the Constitution*. The right to destroy any particular branch of commerce, implies the right to re-establish it. True, there is no probability that the African slave trade will ever again be legalized by the national government; but no credit is due the framers of the Constitution on this ground; for, while they threw around it all the sanction and protection of the national character and power for twenty years, *they set no bounds to its continuance by any positive constitutional prohibition*.

Again, the adoption of such a clause, and the faithful execution of it, prove what was meant by the words of the preamble—"to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity"—namely, that the parties to the Constitution regarded only their own rights and interests, and never intended that its language should be so interpreted as to interfere with slavery, or to make it unlawful for one portion of the people to enslave another, *without an express alteration in that instrument, in the manner therein set forth*. While, therefore, the Constitution remains as it was originally adopted, they who swear to support it are bound to comply with all its provisions, as a matter of allegiance. For it avails nothing to say, that some of those provisions are at war with the law of God and the rights of man, and therefore are not obligatory. Whatever may be their character, they are *constitutionally* obligatory; and whoever feels that he cannot execute them, or swear to execute them, without committing sin, has no other choice left than to withdraw from the government, or to violate his conscience by taking on his lips an impious promise. The object of the Constitution is not to define *what is the law of God*, but WHAT IS THE WILL OF THE PEOPLE—which will is not to be frustrated by an ingenious moral interpretation, by those whom they have elected to serve them.

ARTICLE 1, Sect. 2, provides—"Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by

adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three-fifths of all other persons.*"

Here, as in the clause we have already examined, veiled beneath a form of words as deceitful as it is unmeaning in a truly democratic government, is a provision for the safety, perpetuity and augmentation of the slaveholding power—a provision scarcely less atrocious than that which related to the African slave trade, and almost as afflictive in its operation—a provision still in force, with no possibility of its alteration, so long as a majority of the slave States choose to maintain their slave system—a provision which, at the present time, enables the South to have twenty-five additional representatives in Congress on the score of *property*, while the North is not allowed to have one—a provision which concedes to the oppressed three-fifths of the political power which is granted to all others, and then puts this power into the hands of their oppressors, to be wielded by them for the more perfect security of their tyrannous authority, and the complete subjugation of the non-slaveholding States.

Referring to this atrocious bargain, ALEXANDER HAMILTON remarked in the New York Convention—

"The first thing objected to, is that clause which allows a representation for three-fifths of the negroes. Much has been said of the impropriety of representing men who have no will of their own: whether this is *reasoning* or *declamation*, (!!) I will not presume to say. It is the *unfortunate* situation of the Southern States to have a great part of their population, as well as *property*, in blacks. The regulation complained of was one result of *the spirit of accommodation* which governed the Convention; and without this *indulgence*, NO UNION COULD POSSIBLY HAVE BEEN FORMED. But, sir, considering some *peculiar advantages* which we derive from them it is entirely JUST that they should be *gratified*—The Southern States possess certain staples,—tobacco, rice, indigo, &c.—which must be *capital* objects in treaties of commerce with foreign nations; and the advantage which they necessarily procure in these treaties will be felt throughout the United States."

If such was the patriotism, such the love of liberty, such the morality of ALEXANDER HAMILTON, what can be said of the character of those who were far less conspicuous than himself in securing American independence, and in framing the American Constitution?

Listen, now, to the opinions of JOHN QUINCY ADAMS, respecting the constitutional clause now under consideration:—

"In outward show, it is a representation of persons in bondage; in fact, it is a representation of their masters,—the oppressor representing the oppressed.'—'Is it in the compass of human imagination to devise a more perfect exemplification of the art of committing the lamb to the tender custody of the wolf?'—'The representative is thus constituted, not the friend, agent and trustee of the person whom he represents, but the most inveterate of his foes.'—'It was *one* of the curses from that Pandora's box, adjusted at the time, as usual, by a *compromise*, the whole advantage of which inured to the benefit of the South, and to aggravate the burdens of the North.'—'If there be a parallel to it in human history, it can only be that of the Roman Emperors, who, from the days when Julius Caesar substituted a military despotism in the place of a republic, among the offices which they always concentrated upon themselves, was that of tribune of the people. A Roman Emperor tribune of the people, is an exact parallel to that feature in the Constitution of the United States which makes the master the representative of his slave.'—'The Constitution of the United States expressly prescribes that no title of nobility shall be granted by the United States. The spirit of this interdict is not a rooted antipathy to the grant of mere powerless empty *titles*, but to titles of *nobility*; to the institution of privileged orders of men. But what order of men under the most absolute of monarchies, or the most aristocratic of republics, was ever invested with such an odious and unjust privilege as that of the separate and exclusive representation of less than half a million owners of slaves, in the Hall of this House, in the Chair of the Senate, and in the Presidential mansion?'—'This investment of power in the owners of one species of property concentrated in the highest authorities of the nation, and disseminated through thirteen of the twenty-six States of the Union, constitutes a privileged order of men in the community, more adverse to the rights of all, and more pernicious

to the interests of the whole, than any order of nobility ever known. To call government thus constituted a democracy, is to insult the understanding of mankind. To call it an aristocracy, is to do injustice to that form of government. Aristocracy is the government of *the best*. Its standard qualification for accession to power is *merit*, ascertained by popular election recurring at short intervals of time. If even that government is prone to degenerate into tyranny, what must be the character of that form of polity in which the standard qualification for access to power is wealth in the possession of slaves? It is doubly tainted with the infection of riches and of slavery. *There is no name in the language of national jurisprudence that can define it*—no model in the records of ancient history, or in the political theories of Aristotle, with which it can be likened. It was introduced into the Constitution of the United States by an equivocation—a representation of property under the name of persons. Little did the members of the Convention from the free States foresee what a sacrifice to Moloch was hidden under the mask of this concession.'—'The House of Representatives of the United States consists of 223 members—all, by the *letter* of the Constitution, representatives only of *persons*, as 135 of them really are; but the other 88, equally representing the *persons* of their constituents, by whom they are elected, also represent, under the name of *other persons*, upwards of two and a half millions of *slaves*, held as the *property* of less than half a million of the white constituents, and valued at twelve hundred millions of dollars. Each of these 88 members represents in fact the whole of that mass of associated wealth, and the persons and exclusive interests of its owners; all thus knit together, like the members of a moneyed corporation, with a capital not of thirty-five or forty or fifty, but of twelve hundred millions of dollars, exhibiting the most extraordinary exemplification of the anti-republican tendencies of associated wealth that the world ever saw,'—'Here is one class of men, consisting of not more than one fortieth part of the whole people, not more than one-thirtieth part of the free population, exclusively devoted to their personal interests identified with their own as slaveholders of the same associated wealth, and wielding by their votes, upon every question of government or of public policy, two-fifths of the whole power of the House. In the Senate of the Union, the proportion of the slaveholding

power is yet greater. By the influence of slavery, in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the 52 members of the federal Senate, 26 are owners of slaves, and as effectively representatives of that interest as the 88 members elected by them to the House.'—'By this process it is that all political power in the States is absorbed and engrossed by the owners of *slaves*, and the overruling policy of the States is shaped to strengthen and consolidate their domination. The legislative, executive, and judicial authorities are all in their hands—the preservation, propagation, and perpetuation of the black code of slavery—every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of *wrong*.'—'Its reciprocal operation upon the government of the nation is, to establish an artificial majority in the slave representation over that of the free people, in the American Congress, and thereby to make the PRESERVATION, PROPAGATION, AND PERPETUATION OF SLAVERY THE VITAL AND ANIMATING SPIRIT OF THE NATIONAL GOVERNMENT.'—'The result is seen in the fact that, at this day, the President of the United States, the President of the Senate, the Speaker of the House of Representatives, and five out of nine of the Judges of the Supreme Judicial Courts of the United States, are not only citizens of slaveholding States, but individual slaveholders themselves. So are, and constantly have been, with scarcely an exception, all the members of both Houses of Congress from the slaveholding States; and so are, in immensely disproportionate numbers, the commanding officers of the army and navy; the officers of the customs; the registers and receivers of the land offices, and the post-masters throughout the slaveholding States.—The Biennial Register indicates the birth-place of all the officers employed in the government of the Union. If it were required to designate the owners of this species of property among them, it would be little more than a catalogue of slaveholders.'"

It is confessed by Mr. Adams, alluding to the national convention that framed the Constitution, that "the delegation from the free States, in their

extreme anxiety to conciliate the ascendancy of the Southern slaveholder, did listen to a *compromise between right and wrong—between freedom and slavery*; of the ultimate fruits of which they had no conception, but which already even now is urging the Union to its inevitable ruin and dissolution, by a civil, servile, foreign, and Indian war, all combined in one; a war, the essential issue of which will be between freedom and slavery, and in which the unhallowed standard of slavery will be the desecrated banner of the North American Union—that banner, first unfurled to the breeze, inscribed with the self-evident truths of the Declaration of Independence."

Hence, to swear to support the Constitution of the United States, *as it is*, is to make "a compromise between right and wrong," and to wage war against human liberty. It is to recognize and honor as republican legislators, *incorrigible men-stealers*, MERCILESS TYRANTS, BLOOD THIRSTY ASSASSINS, who legislate with deadly weapons about their persons, such as pistols, daggers, and bowie-knives, with which they threaten to murder any Northern senator or representative who shall dare to stain their *honor*, or interfere with their *rights*! They constitute a banditti more fierce and cruel than any whose atrocities are recorded on the pages of history or romance. To mix with them on terms of social or religious fellowship, is to indicate a low state of virtue; but to think of administering a free government by their co-operation, is nothing short of insanity.

Article IV., Section 2, declares,—"No person held to service or labor in one State, *under the laws thereof*, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due."

Here is a third clause, which, like the other two, makes no mention of slavery or slaves, in express terms; and yet, like them, was intelligently framed and mutually understood by the parties to the ratification, and intended both to protect the slave system and to restore runaway slaves. It alone makes slavery a national institution, a national crime, and all the people who are not enslaved, the body-guard over those whose liberties have been cloven down. This agreement, too, has been fulfilled to the letter by the North.

Under the Mosaic dispensation it was imperatively commanded,—“Thou shalt not deliver unto his master the servant which is escaped from his master unto thee: he shall dwell with thee, even among you, in that place which he shall choose in one of thy gates, where it liketh him best: thou shalt not oppress him.” The warning which the prophet Isaiah gave to oppressing Moab was of a similar kind: “Take counsel, execute judgment; make thy shadow as the night in the midst of the noon-day; hide the outcasts; bewray not him that wandereth. Let mine outcasts dwell with thee, Moab; be thou a covert to them from the face of the spoiler.” The prophet Obadiah brings the following charge against treacherous Edom, which is precisely applicable to this guilty nation:—“For thy violence against thy brother Jacob, shame shall come over thee, and thou shalt be cut off for ever. In the day that thou stoodest on the other side, in the day that the strangers carried away captive his forces, and foreigners entered into his gates, and cast lots upon Jerusalem, *even thou wast as one of them*. But thou shouldst not have looked on the day of thy brother, in the day that he became a stranger; neither shouldst thou have rejoiced over the children of Judah, in the day of their destruction; neither shouldst thou have spoken proudly in the day of distress; neither shouldst thou have *stood in the cross-way, to cut off those of his that did escape*; neither shouldst thou have *delivered up those of his that did remain*, in the day of distress.”

How exactly descriptive of this boasted republic is the impeachment of Edom by the same prophet! “The pride of thy heart hath deceived thee, thou whose habitation is high; that sayeth in thy heart, Who shall bring me down to the ground? Though thou exalt thyself as the eagle, and though thou set thy nest among the stars, thence will I bring thee down, saith the Lord.” The emblem of American pride and power is the *eagle*, and on her banner she has mingled *stars* with its *stripes*. Her vanity, her treachery, her oppression, her self-exaltation, and her defiance of the Almighty, far surpass the madness and wickedness of Edom. What shall be her punishment? Truly, it may be affirmed of the American people, (who live not under the Levitical but Christian code, and whose guilt, therefore, is the more awful, and their condemnation the greater,) in the language of another prophet—“They all lie in wait for blood; they hunt every man his brother with a net. That they may do evil with both hands earnestly, the prince asketh, and the judge asketh for a reward; and the great man, he uttereth his mischievous desire:

so they wrap it up." Likewise of the colored inhabitants of this land it may be said, —"This is a people robbed and spoiled; they are all of them snared in holes, and they are hid in prison-houses; they are for a prey, and none delivereth; for a spoil, and none saith, Restore."

By this stipulation, the Northern States are made the hunting ground of slave-catchers, who may pursue their victims with blood-hounds, and capture them with impunity wherever they can lay their robber hands upon them. At least twelve or fifteen thousand runaway slaves are now in Canada, exiled from their native land, because they could not find, throughout its vast extent, a single road on which they could dwell in safety, *in consequence of this provision of the Constitution?* How is it possible, then, for the advocates of liberty to support a government which gives over to destruction one-sixth part of the whole population?

It is denied by some at the present day, that the clause which has been cited, was intended to apply to runaway slaves. This indicates either ignorance, or folly, or something worse. JAMES MADISON as one of the framers of the Constitution, is of some authority on this point. Alluding to that instrument, in the Virginia convention, he said:—

"Another clause *secures us that property which we now possess.* At present, if any slave elopes to those States where slaves are free, *he becomes emancipated by their laws;* for the laws of the States are *uncharitable(!)* to one another in this respect; but in this constitution, 'No person held to service or labor in one State, under the laws thereof, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered upon claim of the party to whom such service or labor away be due. THIS CLAUSE WAS EXPRESSLY INSERTED TO ENABLE THE OWNERS OF SLAVES TO RECLAIM THEM. *This is a better security than any that now exists.* No power is given to the general government to interfere with respect to the property in slaves now held by the States."

In the same convention, alluding to the same clause, GOV. RANDOLPH said:—

"Every one knows that slaves are held to service or labor. And, when authority is given to owners of slaves *to vindicate their property*, can it be supposed they can be deprived of it? If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, can it be seriously thought that, after taking him and bringing him home, he could be made free?"

It is objected, that slaves are held as property, and therefore, as the clause refers to persons, it cannot mean slaves. But this is criticism against fact. Slaves are recognized not merely as property, but also as persons—as having a mixed character—as combining the human with the brutal. This is paradoxical, we admit; but slavery is a paradox—the American Constitution is a paradox—the American Union is a paradox—the American Government is a paradox; and if any one of these is to be repudiated on that ground, they all are. That it is the duty of the friends of freedom to deny the binding authority of them all, and to secede from them all, we distinctly affirm. After the independence of this country had been achieved, the voice of God exhorted the people, saying, "Execute true judgment, and show mercy and compassion every man to his brother: and oppress not the widow, nor the fatherless, the stranger, nor the poor; and let none of you imagine evil against his brother in your heart. But they refused to hearken, and pulled away the shoulder, and stopped their ears, that they should not hear; yea, they made their hearts as an adamant stone." "Shall I not visit for these things? saith the Lord. Shall not my soul be avenged on such a nation as this?"

Whatever doubt may have rested on any honest mind, respecting the meaning of the clause in relation to persons held to service or labor, must have been removed by the unanimous decision of the Supreme Court of the United States, in the case of *Prigg versus The State of Pennsylvania*. By that decision, any Southern slave-catcher is empowered to seize and convey to the South, without hindrance or molestation on the part of the State, and without any legal process duly obtained and served, any person or persons, irrespective of caste or complexion, whom he may choose to claim as runaway slaves; and if, when thus surprised and attacked, or on their arrival South, they cannot prove by legal witnesses, that they are freemen, their doom is sealed! Hence the free colored population of the North are specially liable to become the victims of this terrible power, and all the

other inhabitants are at the mercy of prowling kidnappers, because there are multitudes of white as well as black slaves on Southern plantations, and slavery is no longer fastidious with regard to the color of its prey.

As soon as that appalling decision of the Supreme Court was enunciated, in the name of the Constitution, the people of the North should have risen *en masse*, if for no other cause, and declared the Union at an end; and they would have done so, if they had not lost their manhood, and their reverence for justice and liberty.

In the 4th Sect. of Art. IV., the United States guarantee to protect every State in the Union "*against domestic violence*." By the 8th Section of Article 1., congress is empowered "to provide for calling forth the militia to execute the laws of the Union, *suppress insurrections*, and repel invasions." These provisions, however strictly they may apply to cases of disturbance among the white population, were adopted with special reference to the slave population, for the purpose of keeping them in their chains by the combined military force of the country; and were these repealed, and the South left to manage her slaves as best she could, a servile insurrection would ere long be the consequence, as general as it would unquestionably be successful. Says Mr. Madison, respecting these clauses:--

"On application of the legislature or executive, as the case may be, the militia of the other States are to be called to suppress domestic insurrections. Does this bar the States from calling forth their own militia? No; but it gives them a *supplementary* security to suppress insurrections and domestic violence."

The answer to Patrick Henry's objection, as urged against the constitution in the Virginia convention, that there was no power left to the States to quell an insurrection of slaves, as it was wholly vested in congress, George Nicholas asked:—

"Have they it now? If they have, does the constitution take it away? If it does, it must be in one of those clauses which have been mentioned by the worthy member. The first part gives the general government power to call them out when necessary. Does this take it away from the States? No! but *it gives an additional security*; for, beside the power in

the State government to use their own militia, it will be *the duty of the general government* to aid them **WITH THE STRENGTH OF THE UNION**, when called for."

This solemn guaranty of security to the slave system, caps the climax of national barbarity, and stains with human blood the garments of all the people. In consequence of it, that system has multiplied its victims from five hundred thousand to nearly three millions—a vast amount of territory has been purchased, in order to give it extension and perpetuity—several new slave States have been admitted into the Union—the slave trade has been made one of the great branches of American commerce—the slave population, though over-worked, starved, lacerated, branded, maimed, and subjected to every form of deprivation and every species of torture, have been over awed and crushed,—or, whenever they have attempted to gain their liberty by revolt, they have been shot down and quelled by the strong arm of the national government; as, for example, in the case of Nat Turner's insurrection in Virginia, when the naval and military forces of the government were called into active service. Cuban bloodhounds have been purchased with the money of the people, and imported and used to hunt slave fugitives among the everglades of Florida. A merciless warfare has been waged for the extermination or expulsion of the Florida Indians, because they gave succor to those poor hunted fugitives—a warfare which has cost the nation several thousand lives, and forty millions of dollars. But the catalogue of enormities is too long to be recapitulated in the present address.

We have thus demonstrated that the compact between the North and the South embraces every variety of wrong and outrage,—is at war with God and man, cannot be innocently supported, and deserves to be immediately annulled. In behalf of the Society which we represent, we call upon all our fellow-citizens, who believe it is right to obey God rather than man, to declare themselves peaceful revolutionists, and to unite with us under the stainless banner of Liberty, having for its motto—"EQUAL RIGHTS FOR ALL—**NO UNION WITH SLAVEHOLDERS!**"

It is pleaded that the Constitution provides for its own amendment; and we ought to use the elective franchise to effect this object. True, there is such a proviso; but, until the amendment be made, that instrument is binding as it

stands. Is it not to violate every moral instinct, and to sacrifice principle to expediency, to argue that we may swear to steal, oppress and murder by wholesale, because it may be necessary to do so only for the time being, and because there is some remote probability that the instrument which requires that we should be robbers, oppressors and murderers, may at some future day be amended in these particulars? Let us not palter with our consciences in this manner—let us not deny that the compact was conceived in sin and brought forth in iniquity—let us not be so dishonest, even to promote a good object, as to interpret the Constitution in a manner utterly at variance with the intentions and arrangements of the contracting parties; but, confessing the guilt of the nation, acknowledging the dreadful specifications in the bond, washing our hands in the waters of repentance from all further participation in this criminal alliance, and resolving that we will sustain none other than a free and righteous government, let us glory in the name of revolutionists, unfurl the banner of disunion, and consecrate our talents and means to the overthrow of all that is tyrannical in the land,—to the establishment of all that is free, just, true and holy,—to the triumph of universal love and peace.

If, in utter disregard of the historical facts which have been cited, it is still asserted, that the Constitution needs no amendment to make it a free instrument, adapted to all the exigencies of a free people, and was never intended to give any strength or countenance to the slave system—the indignant spirit of insulted Liberty replies:—"What though the assertion be true? Of what avail is a mere piece of parchment? In itself, though it be written all over with words of truth and freedom—though its provisions be as impartial and just as words can express, or the imagination paint—though it be as pure as the gospel, and breathe only the spirit of Heaven—it is powerless; it has no executive vitality; it is a lifeless corpse, even though beautiful in death. I am famishing for lack of bread! How is my appetite relieved by holding up to my gaze a painted loaf? I am manacled, wounded, bleeding dying! What consolation is it to know, that they who are seeking to destroy my life, profess in words to be my friends?" If the liberties of the people have been betrayed—if judgment is turned away backward, and justice standeth afar off, and truth has fallen in the streets, and equality cannot enter—if the princes of the land are roaring lions, the judges evening wolves, the people light and treacherous persons, the priests covered with

pollution—if we are living under a frightful despotism, which scoffs at all constitutional restraints, and wields the resources of the nation to promote its own bloody purposes—tell us not that the forms of freedom are still left to us! Would such tameness and submission have freighted the May-Flower for Plymouth Rock? Would it have resisted the Stamp Act, the Tea Tax, or any of those entering wedges of tyranny with which the British government sought to rive the liberties of America? The wheel of the Revolution would have rusted on its axle, if a spirit so weak had been the only power to give it motion. Did our fathers say, when their rights and liberties were infringed—"*Why, what is done cannot be undone*. That is the first thought." No, it was the last thing they thought of: or, rather, it never entered their minds at all. They sprang to the conclusion at once—"*What is done SHALL be undone*. That is our FIRST and ONLY thought."

"Is water running in our veins? Do we remember still
Old Plymouth Rock, and Lexington, and famous Bunker Hill?
The debt we owe our fathers' graves? and to the yet unborn,
Whose heritage ourselves must make a thing of pride or scorn?"

"Gray Plymouth Rock hath yet a tongue, and Concord is not dumb;
And voices from our fathers' graves and from the future come:
They call on us to stand our ground—they charge us still to be
Not only free from chains ourselves, but foremost to make free!"

It is of little consequence who is on the throne, if there be behind it a power mightier than the throne. It matters not what is the theory of the government, if the practice of the government be unjust and tyrannical. We rise in rebellion against a despotism incomparably more dreadful than that which induced the colonists to take up arms against the mother country; not on account of a three-penny tax on tea, but because fetters of living iron are fastened on the limbs of millions of our countrymen, and our most sacred rights are trampled in the dust. As citizens of the State, we appeal to the State in vain for protection and redress. As citizens of the United States, we are treated as outlaws in one half of the country, and the national government consents to our destruction. We are denied the right of locomotion, freedom of speech, the right of petition, the liberty of the press, the right peaceably to assemble together to protest against oppression and plead for liberty—at least in thirteen States of the Union. If we venture, as

avowed and unflinching abolitionists, to travel South of Mason and Dixon's line, we do so at the peril of our lives. If we would escape torture and death, on visiting any of the slave States, we must stifle our conscientious convictions, bear no testimony against cruelty and tyranny, suppress the struggling emotions of humanity, divest ourselves of all letters and papers of an anti-slavery character, and do homage to the slaveholding power—or run the risk of a cruel martyrdom! These are appalling and undeniable facts.

Three millions of the American people are crushed under the American Union! They are held as slaves—trafficked as merchandise—registered as goods and chattels! The government gives them no protection—the government is their enemy—the government keeps them in chains! There they lie bleeding—we are prostrate by their side—in their sorrows and sufferings we participate—their stripes are inflicted on our bodies, their shackles are fastened on our limbs, their cause is ours! The Union which grinds them to the dust rests upon us, and with them we will struggle to overthrow it! The Constitution, which subjects them to hopeless bondage, is one that we cannot swear to support! Our motto is, "**NO UNION WITH SLAVEHOLDERS**," either religious or political. They are the fiercest enemies of mankind, and the bitterest foes of God! We separate from them not in anger, not in malice, not for a selfish purpose, not to do them an injury, not to cease warning, exhorting, reproving them for their crimes, not to leave the perishing bondman to his fate—O no! But to clear our skirts of innocent blood—to give the oppressor no countenance—to signify our abhorrence of injustice and cruelty—to testify against an ungodly compact—to cease striking hands with thieves and consenting with adulterers—to make no compromise with tyranny—to walk worthily of our high profession—to increase our moral power over the nation—to obey God and vindicate the gospel of his Son—hasten the downfall of slavery in America, and throughout the world!

We are not acting under a blind impulse. We have carefully counted the cost of this warfare, and are prepared to meet its consequences. It will subject us to reproach, persecution, infamy—it will prove a fiery ordeal to all who shall pass through it—it may cost us our lives. We shall be ridiculed as fools, accused as visionaries, branded as disorganizers, reviled as madmen, threatened and perhaps punished as traitors. But we shall bide our time. Whether safety or peril, whether victory or defeat, whether life or death be

ours, believing that our feet are planted on an eternal foundation, that our position is sublime and glorious, that our faith in God is rational and steadfast, that we have exceeding great and precious promises on which to rely, **THAT WE ARE IN THE RIGHT**, we shall not falter nor be dismayed, "though the earth be removed, and though the mountains be carried into the midst of the sea,"—though our ranks be thinned to the number of "three hundred men." Freemen! are you ready for the conflict? Come what may, will you sever the chain that binds you to a slaveholding government, and declare your independence? Up, then, with the banner of revolution! Not to shed blood—not to injure the person or estate of any oppressor—not by force and arms to resist any law—not to countenance a servile insurrection—not to wield any carnal weapons! No—ours must be a bloodless strife, excepting *our* blood be shed—for we aim, as did Christ our leader, not to destroy men's lives, but to save them—to overcome evil with good—to conquer through suffering for righteousness' sake—to set the captive free by the potency of truth!

Secede, then, from the government. Submit to its exactions, but pay it no allegiance, and give it no voluntary aid. Fill no offices under it. Send no senators or representatives to the national or State legislature; for what you cannot conscientiously perform yourself, you cannot ask another to perform as your agent. Circulate a declaration of **DISUNION FROM SLAVEHOLDERS**, throughout the country. Hold mass meetings—assemble in conventions—nail your banners to the mast!

Do you ask what can be done, if you abandon the ballot-box? What did the crucified Nazarene do without the elective franchise? What did the apostles do? What did the glorious army of martyrs and confessors do? What did Luther and his intrepid associates do? What can women and children do? What has Father Mathew done for teetotalism? What has Daniel O'Connell done for Irish repeal? "Stand, having your loins girt about with truth, and having on the breast-plate of righteousness," and arrayed in the whole armor of God!

The form of government that shall succeed the present government of the United States, let time determine. It would be a waste of time to argue that question, until the people are regenerated and turned from their iniquity. Ours is no anarchical movement, but one of order and obedience. In ceasing

from oppression, we establish liberty. What is now fragmentary, shall in due time be crystallized, and shine like a gem set in the heavens, for a light to all coming ages.

Finally—we believe that the effect of this movement will be,—First, to create discussion and agitation throughout the North; and these will lead to a general perception of its grandeur and importance.

Secondly, to convulse the slumbering South like an earthquake, and convince her that her only alternative is, to abolish slavery, or be abandoned by that power on which she now relies for safety.

Thirdly, to attack the slave power in its most vulnerable point, and to carry the battle to the gate.

Fourthly, to exalt the moral sense, increase the moral power, and invigorate the moral constitution of all who heartily espouse it.

We reverently believe that, in withdrawing from the American Union, we have the God of justice with us. We know that we have our enslaved countrymen with us. We are confident that all free hearts will be with us. We are certain that tyrants and their abettors will be against us.

In behalf of the Executive Committee of the American Anti-Slavery Society,

WM. LLOYD GARRISON, *President*.

WENDELL PHILLIPS, MARIA WESTON CHAPMAN,

Secretaries.

Boston, May 20, 1844.

LETTER FROM FRANCIS JACKSON.

BOSTON, 4TH July, 1844

To His Excellency George N. Briggs:

SIR—Many years since, I received from the Executive of the Commonwealth a commission as Justice of the Peace. I have held the office that it conferred upon me till the present time, and have found it a convenience to myself, and others. It might continue to be so, could I consent longer to hold it. But paramount considerations forbid, and I herewith transmit to you my commission, respectfully asking you to accept my resignation.

While I deem it a duty to myself to take this step, I feel called on to state the reasons that influence me.

In entering upon the duties of the office in question, I complied with the requirements of the law, by taking an oath "*to support the Constitution of the United States.*" I regret that I ever took that oath. Had I then as maturely considered its full import, and the obligations under which it is understood, and meant to lay those who take it, as I have done since, I certainly never would have taken it, seeing, as I now do, that the Constitution of the United States contains provisions calculated and intended to foster, cherish, uphold and perpetuate *slavery*. It pledges the country to guard and protect the slave system so long as the slaveholding States choose to retain it. It regards the slave code as lawful in the States which enact it. Still more, "it has done that, which, until its adoption, was never before done for African slavery. It took it out of its former category of municipal law and local life, adopted it as a national institution, spread around it the broad and sufficient shield of national law, and thus gave to slavery a national existence." Consequently, the oath to support the Constitution of the United States is a solemn promise to do that which is morally wrong; that which is a violation of the natural rights of man, and a sin in the sight of God.

I am not, in this matter, constituting myself a judge of others. I do not say that no honest man can take such an oath, and abide by it. I only say, that *I* would not now deliberately take it; and that, having inconsiderately taken it, I can no longer suffer it to lie upon my soul. I take back the oath, and ask you, sir, to take back the commission, which was the occasion of my taking it.

I am aware that my course in this matter is liable to be regarded as singular, if not censurable; and I must, therefore, be allowed to make a more specific

statement of those *provisions of the Constitution* which support the enormous wrong, the heinous sin of slavery.

The very first Article of the Constitution takes slavery at once under its legislative protection, as a basis of representation in the popular branch of the National Legislature. It regards slaves under the description "of all other *persons*"—as of only three-fifths of the value of free persons; thus to appearance undervaluing them in comparison with freemen. But its dark and involved phraseology seems intended to blind us to the consideration, that those underrated slaves are merely a *basis*, not the *source* of representation; that by the laws of all the States where they live, they are regarded not as *persons*; but as *things*; that they are not the *constituency* of the representative, but his property; and that the necessary effect of this provision of the Constitution is, to take legislative power out of the hands of *men*, as such, and give it to the mere possessors of goods and chattels. Fixing upon thirty thousand persons, as the smallest number that shall send one member into the House of Representatives, it protects slavery by distributing legislative power in a free and in a slave State thus: To a congressional district in South Carolina, containing fifty thousand slaves, claimed as the property of five hundred whites, who hold, on an average, one hundred apiece, it gives one Representative in Congress; to a district in Massachusetts containing a population of thirty thousand five hundred, one Representative is assigned. But inasmuch as a slave is never permitted to vote, the fifty thousand persons in a district in Carolina form no part of "the constituency;" that is found only in the five hundred free persons. Five hundred freemen of Carolina could send one Representative to Congress, while it would take thirty thousand five hundred freemen of Massachusetts, to do the same thing: that is, one slaveholder in Carolina is clothed by the Constitution with the same political power and influence in the Representatives Hall at Washington, as sixty Massachusetts men like you and me, who "eat their bread in the sweat of their own brows."

According to the census of 1830, and the ratio of representation based upon that, slave property added twenty-five members to the House of Representatives. And as it has been estimated, (as an approximation to the truth,) that the two and a half million slaves in the United States are held as property by about two hundred and fifty thousand persons—giving an average of ten slaves to each slaveholder, those twenty-five

Representatives, each chosen, at most, by only ten thousand voters, and probably by less than three-fourths of that number, were the representatives, not only of the two hundred and fifty thousand persons who chose them; but of *property* which, five years ago, when slaves were lower in market, than at present, were estimated, by the man who is now the most prominent candidate for the Presidency, at twelve hundred millions of dollars—a sum, which, by the natural increase of five years, and the enhanced value resulting from a more prosperous state of the planting interest, cannot now be less than fifteen hundred millions of dollars. All this vast amount of property, as it is "peculiar," is also identical in its character. In Congress, as we have seen, it is animated by one spirit, moves in one mass, and is wielded with one aim; and when we consider that tyranny is always timid, and despotism distrustful, we see that this vast money power would be false to itself, did it not direct all its eyes and hands, and put forth all its ingenuity and energy, to one end—self-protection and self-perpetuation. And this it has ever done. In all the vibrations of the political scale, whether in relation to a Bank or Sub-Treasury, Free Trade or a Tariff, this immense power has moved, and will continue to move, in one mass, for its own protection.

While the weight of the slave influence is thus felt in the House of Representatives, "in the Senate of the Union," says John Quincy Adams, "the proportion of slaveholding power is still greater. By the influence of slavery in the States where the institution is tolerated, over their elections, no other than a slaveholder can rise to the distinction of obtaining a seat in the Senate; and thus, of the fifty-two members of the federal Senate, twenty-six are owners of slaves, and are as effectually representatives of that interest, as the eighty-eight members elected by them to the House."

The dominant power which the Constitution gives to the slave interest, as thus seen and exercised in the *Legislative Halls* of our nation, is equally obvious and obtrusive in every other department of the National government.

In the *Electoral colleges*, the same cause produces the same effect—the same power is wielded for the same purpose, as in the Halls of Congress. Even the preliminary nominating conventions, before they dare name a candidate for the highest office in the gift of the people, must ask of the

Genius of slavery, to what votary she will show herself propitious. This very year, we see both the great political parties doing homage to the slave power, by nominating each a slaveholder for the chair of the State. The candidate of one party declares. "I should have opposed, and would continue to oppose, any scheme whatever of emancipation, either gradual or immediate;" and adds, "It is not true, and I rejoice that it is not true, that either of the two great parties of this country has any design or aim at abolition. I should deeply lament it, if it were true."[94]

[Footnote 94: Henry Clay's speech in the United States Senate in 1839, and confirmed at Raleigh, N.C. 1844.]

The other party nominates a man who says, "I have no hesitation in declaring that I am in favor of the immediate re-annexation of Texas to the territory and government of the United States."

Thus both the political parties, and the candidates of both, vie with each other, in offering allegiance to the slave power, as a condition precedent to any hope of success in the struggle for the executive chair; a seat that, for more than three-fourths of the existence of our constitutional government, has been occupied by a slaveholder.

The same stern despotism overshadows even the sanctuaries of *justice*. Of the nine Justices of the Supreme Court of the United States, five are slaveholders, and of course, must be faithless to their own interest, as well as recreant to the power that gives them place, or must, so far as *they* are concerned, give both to law and constitution such a construction as shall justify the language of John Quincy Adams, when he says—"The legislative, executive, and judicial authorities, are all in their hands—for the preservation, propagation, and perpetuation of the black code of slavery. Every law of the legislature becomes a link in the chain of the slave; every executive act a rivet to his hapless fate; every judicial decision a perversion of the human intellect to the justification of wrong."

Thus by merely adverting but briefly to the theory and the practical effect of this clause of the Constitution, that I have sworn to support, it is seen that it throws the political power of the nation into the hands of the slaveholders; a

body of men, which, however it may be regarded by the Constitution as "persons," is in fact and practical effect, a vast moneyed corporation, bound together by an indissoluble unity of interest, by a common sense of a common danger; counselling at all times for its common protection; wielding the whole power, and controlling the destiny of the nation.

If we look into the legislative halls, slavery is seen in the chair of the presiding officer of each, and controlling the action of both. Slavery occupies, by prescriptive right, the Presidential chair. The paramount voice that comes from the temple of national justice, issues from the lips of slavery. The army is in the hands of slavery, and at her bidding, must encamp in the everglades of Florida, or march from the Missouri to the borders of Mexico, to look after her interests in Texas.

The navy, even that part that is cruising off the coast of Africa, to suppress the foreign slave trade, is in the hands of slavery.

Freemen of the North, who have even dared to lift up their voice against slavery, cannot travel through the slave States, but at the peril of their lives.

The representatives of freemen are forbidden, on the floor of Congress, to remonstrate against the encroachments of slavery, or to pray that she would let her poor victims go.

I renounce my allegiance to a Constitution that enthrones such a power, wielded for the purpose of depriving me of my rights, of robbing my countrymen of their liberties, and of securing its own protection, support and perpetuation.

Passing by that clause of the Constitution, which restricted Congress for twenty years, from passing any law against the African slave trade, and which gave authority to raise a revenue on the stolen sons of Africa, I come to that part of the fourth article, which guarantees protection against "*domestic violence*," and which pledges to the South the military force of the country, to protect the masters against their insurgent slaves: binds us, and our children, to shoot down our fellow-countrymen, who may rise, in emulation of our revolutionary fathers, to vindicate their inalienable "right to life, *liberty* and the pursuit of happiness,"—this clause of the Constitution, I say distinctly, I never will support.

That part of the Constitution which provides for the surrender of fugitive slaves, I never have supported and never will. I will join in no slave-hunt. My door shall stand open, as it has long stood, for the panting and trembling victim of the slave-hunter. When I shut it against him, may God shut the door of his mercy against me! Under this clause of the Constitution, and designed to carry it into effect, slavery has demanded that laws should be passed, and of such a character, as have left the free citizen of the North without protection for his own liberty. The question, whether a man seized in a free State as a slave, *is* a slave or not, the law of Congress does not allow a jury to determine: but refers it to the decision of a Judge of a United States' Court, or even of the humblest State magistrate, it may be, upon the testimony or affidavit of the party most deeply interested to support the claim. By virtue of this law, freemen have been seized and dragged into perpetual slavery—and should I be seized by a slave-hunter in any part of the country where I am not personally known, neither the Constitution nor laws of the United States would shield me from the same destiny.

These, sir, are the specific parts of the Constitution of the United States, which in my opinion are essentially vicious, hostile at once to the liberty and to the morals of the nation. And these are the principal reasons of my refusal any longer to acknowledge my allegiance to it, and of my determination to revoke my oath to support it. I cannot, in order to keep the law of man, break the law of God, or solemnly call him to witness my promise that I will break it.

It is true that the Constitution provides for its own amendment, and that by this process, all the guarantees of Slavery may be expunged. But it will be time enough to swear to support it when this is done. It cannot be right to do so, until these amendments are made.

It is also true that the framers of the Constitution did studiously keep the words "Slave" and "Slavery" from its face. But to do our constitutional fathers justice, while they forebore—from very shame—to give the word "Slavery" a place in the Constitution, they did not forbear—again to do them justice—to give place in it to the *thing*. They were careful to wrap up the idea, and the substance of Slavery, in the clause for the surrender of the fugitive, though they sacrificed justice in doing so.

There is abundant evidence that this clause touching "persons held to service or labor," not only operates practically, under the judicial construction, for the protection of the slave interest; but that it was intended so to operate by the framers of the Constitution. The highest judicial authorities—Chief Justice Shaw, of the Supreme Court of Massachusetts, in the Latimer case, and Mr. Justice Story, in the Supreme Court of the United States, in the case of *Prigg vs. The State of Pennsylvania*,—tell us, I know not on what evidence, that without this "compromise," this security for Southern slaveholders, "the Union could not have been formed." And there is still higher evidence, not only that the framers of the Constitution meant by this clause to protect slavery, but that they did this, knowing that slavery was wrong. Mr. Madison^[95] informs us that the clause in question, as it came out of the hands of Dr. Johnson, the chairman of the "committee on style," read thus: "No person legally held to service, or labor, in one State, escaping into another, shall," &c., and that the word "legally" was struck out, and the words "under the laws thereof" inserted after the word "State," in compliance with the wish of some, who thought the term *legal* equivocal, and favoring the idea that slavery was legal "*in a moral view*." A conclusive proof that, although future generations might apply that clause to other kinds of "service or labor," when slavery should have died out, or been killed off by the young spirit of liberty, which was *then* awake and at work in the land; still, slavery was what they were wrapping up in "equivocal" words; and wrapping it up for its protection and safe keeping: a conclusive proof that the framers of the Constitution were more careful to protect themselves in the judgment of coming generations, from the charge of ignorance, than of sin; a conclusive proof that they knew that slavery was *not* "legal in a moral view," that it was a violation of the moral law of God; and yet knowing and confessing its immorality, they dared to make this stipulation for its support and defence.

[Footnote ⁹⁵: Madison Papers, p. 1589]

This language may sound harsh to the ears of those who think it a part of their duty, as citizens, to maintain that whatever the patriots of the Revolution did, was right; and who hold that we are bound to *do* all the

iniquity that they covenanted for us that we *should* do. But the claims of truth and right are paramount to all other claims.

With all our veneration for our constitutional fathers, we must admit,—for they have left on record their own confession of it,—that in this part of their work they intended to hold the shield of their protection over a wrong, knowing that it was a wrong. They made a "compromise" which they had no right to make—a compromise of moral principle for the sake of what they probably regarded as "political expediency." I am sure they did not know—no man could know, or can now measure, the extent, or the consequences of the wrong, that they were doing. In the strong language of John Quincy Adams,[[96](#)] in relation to the article fixing the basis of representation, "Little did the members of the Convention, from the free States, imagine or foresee what a sacrifice to Moloch was hidden under the mask of this concession."

[Footnote [96](#): See his Report on the Massachusetts Resolutions.]

I verily believe that, giving all due consideration to the benefits conferred upon this nation by the Constitution, its national unity, its swelling masses of wealth, its power, and the external prosperity of its multiplying millions; yet the *moral* injury that has been done, by the countenance shown to slavery by holding over that tremendous sin the shield of the Constitution, and thus breaking down in the eyes of the nation the barrier between right and wrong; by so tenderly cherishing slavery as, in less than the life of man, to multiply her children from half a million to nearly three millions; by exacting oaths from those who occupy prominent stations in society, that they will violate at once the rights of man and the law of God; by substituting itself as a rule of right, in place of the moral laws of the universe;—thus in effect, dethroning the Almighty in the hearts of this people and setting up another sovereign in his stead—more than outweighs it all. A melancholy and monitory lesson this, to all timeserving and temporising statesmen! A striking illustration of the *impolicy* of sacrificing *right* to any considerations of expediency! Yet, what better than the evil effects that we have seen, could the authors of the Constitution have reasonably expected, from the sacrifice of right, in the concessions they

made to slavery? Was it reasonable in them to expect that after they had introduced a vicious element into the very Constitution of the body politic which they were calling into life, it would not exert its vicious energies? Was it reasonable in them to expect that, after slavery had been corrupting the public morals for a whole generation, their children would have too much virtue to *use* for the defence of slavery, a power which they themselves had not too much virtue to *give*? It is dangerous for the sovereign power of a State to license immorality; to hold the shield of its protection over any thing that is not "legal in a moral view." Bring into your house a benumbed viper, and lay it down upon your warm hearth, and soon it will not ask you into which room it may crawl. Let Slavery once lean upon the supporting arm, and bask in the fostering smile of the State, and you will soon see, as we now see, both her minions and her victims multiply apace till the politics, the morals, the liberties, even the religion of the nation, are brought completely under her control.

To me, it appears that the virus of slavery, introduced into the Constitution of our body politic, by a few slight punctures, has now so pervaded and poisoned the whole system of our National Government, that literally there is no health in it. The only remedy that I can see for the disease, is to be found in the *dissolution of the patient*.

The Constitution of the United States, both in theory and practice, is so utterly broken down by the influence and effects of slavery, so imbecile for the highest good of the nation, and so powerful for evil, that I can give no voluntary assistance in holding it up any longer.

Henceforth it is dead to me, and I to it. I withdraw all profession of allegiance to it, and all my voluntary efforts to sustain it. The burdens that it lays upon me, while it is held up by others, I shall endeavor to bear patiently, yet acting with reference to a higher law, and distinctly declaring, that while I retain my own liberty, I will be a party to no compact, which helps to rob any other man of his.

Very respectfully, your friend,

FRANCIS JACKSON.

FROM MR. WEBSTER'S SPEECH AT NIBLO'S GARDENS.

"We have slavery, already, amongst us. The Constitution found it among us; it recognized it and gave it **SOLEMN GUARANTIES**. To the full extent of these guaranties we are all bound, in honor, in justice, and by the Constitution. All the stipulations, contained in the Constitution, *in favor of the slaveholding States* which are already in the Union, ought to be fulfilled, and so far as depends on me, shall be fulfilled, in the fullness of their spirit, and to the exactness of their letter."!!!

EXTRACTS FROM JOHN Q. ADAMS'S ADDRESS

AT NORTH BRIDGEWATER, NOV. 6, 1844.

The benefits of the Constitution of the United States, were the restoration of credit and reputation, to the country—the revival of commerce, navigation, and ship-building—the acquisition of the means of discharging the debts of the Revolution, and the protection and encouragement of the infant and drooping manufactures of the country. All this, however, as is now well ascertained, was insufficient to propitiate the rulers of the Southern States to the adoption of the Constitution. What they specially wanted was *protection*.—Protection from the powerful and savage tribes of Indians within their borders, and who were harassing them with the most terrible of wars—and protection from their own negroes—protection from their insurrections—protection from their escape—protection even to the trade by which they were brought into the country—protection, shall I not blush to say, protection to the very bondage by which they were held. Yes! it cannot be denied—the slaveholding lords of the South prescribed, as a condition of their assent to the Constitution, three special provisions to secure the perpetuity of their dominion over their slaves. The first was the immunity for twenty years of preserving the African slave-trade; the second was the stipulation to surrender fugitive slaves—an engagement positively prohibited by the laws of God, delivered from Sinai; and thirdly, the

exaction fatal to the principles of popular representation, of a representation for slaves—for articles of merchandise, under the name of persons.

The reluctance with which the freemen of the North submitted to the dictation of these conditions, is attested by the awkward and ambiguous language in which they are expressed. The word slave is most cautiously and fastidiously excluded from the whole instrument. A stranger, who should come from a foreign land, and read the Constitution of the United States, would not believe that slavery or a slave existed within the borders of our country. There is not a word in the Constitution *apparently* bearing upon the condition of slavery, nor is there a provision but would be susceptible of practical execution, if there were not a slave in the land.

The delegates from South Carolina and Georgia distinctly avowed that, without this guarantee of protection to their property in slaves, they would not yield their assent to the Constitution; and the freemen of the North, reduced to the alternative of departing from the vital principle of their liberty, or of forfeiting the Union itself, averted their faces, and with trembling hand subscribed the bond.

Twenty years passed away—the slave markets of the South were saturated with the blood of African bondage, and from midnight of the 31st of December, 1807, not a slave from Africa was suffered ever more to be introduced upon our soil. But the internal traffic was still lawful, and the *breeding* States soon reconciled themselves to a prohibition which gave them the monopoly of the interdicted trade, and they joined the full chorus of reprobation, to punish with death the slave-trader from Africa, while they cherished and shielded and enjoyed the precious profits of the American slave-trade exclusively to themselves.

Perhaps this unhappy result of their concession had not altogether escaped the foresight of the freemen of the North; but their intense anxiety for the preservation of the whole Union, and the habit already formed of yielding to the somewhat peremptory and overbearing tone which the relation of master and slave welds into the nature of the lord, prevailed with them to overlook this consideration, the internal slave-trade having scarcely existed while that with Africa had been allowed. But of one consequence which has followed from the slave representation, pervading the whole organic

structure of the Constitution, they certainly were not prescient; for if they had been, never—no, never would they have consented to it.

The representation, ostensibly of slaves, under the name of persons, was in its operation an exclusive grant of power to one class of proprietors, owners of one species of property, to the detriment of all the rest of the community. This species of property was odious in its nature, held in direct violation of the natural and inalienable rights of man, and of the vital principles of Christianity; it was all accumulated in one geographical section of the country, and was all held by wealthy men, comparatively small in numbers, not amounting to a tenth part of the free white population of the States in which it was concentrated.

In some of the ancient, and in some modern republics, extraordinary political power and privileges have been invested in the owners of horses; but then these privileges and these powers have been granted for the equivalent of extraordinary duties and services to the community, required of the favoured class. The Roman knights constituted the cavalry of their armies, and the bushels of rings gathered by Hannibal from their dead bodies, after the battle of Cannae, amply prove that the special powers conferred upon them were no gratuitous grants. But in the Constitution of the United States, the political power invested in the owners of slaves is entirely gratuitous. No extraordinary service is required of them; they are, on the contrary, themselves grievous burdens upon the community, always threatened with the danger of insurrections, to be smothered in the blood of both parties, master and slave, and always depressing the condition of the poor free laborer, by competition with the labor of the slave. The property in horses was the gift of God to man, at the creation of the world; the property in slaves is property acquired and held by crimes, differing in no moral aspect from the pillage of a freebooter, and to which no lapse of time can give a prescriptive right. You are told that this is no concern of yours, and that the question of freedom and slavery is exclusively reserved to the consideration of the separate States. But if it be so, as to the mere question of right between master and slave, it is of tremendous concern to you that this little cluster of slave-owners should possess, besides their own share in the representative hall of the nation, the exclusive privilege of appointing two-fifths of the whole number of the representatives of the people. This is now your condition, under that delusive ambiguity of language and of

principle, which begins by declaring the representation in the popular branch of the legislature a representation of persons, and then provides that one class of persons shall have neither part nor lot in the choice of their representatives; but their elective franchise shall be transferred to their masters, and the oppressors shall represent the oppressed. The same perversion of the representative principle pollutes the composition of the colleges of electors of President and Vice President of the United States, and every department of the government of the Union is thus tainted at its source by the gangrene of slavery.

Fellow-citizens,—with a body of men thus composed, for legislators and executors of the laws, what will, what must be, what has been your legislation? The numbers of freemen constituting your nation are much greater than those of the slaveholding States, bond and free. You have at least three-fifths of the whole population of the Union. Your influence on the legislation and the administration of the government ought to be in the proportion of three to two.—But how stands the fact? Besides the legitimate portion of influence exercised by the slaveholding States by the measure of their numbers, here is an intrusive influence in every department, by a representation nominally of persons, but really of property, ostensibly of slaves, but effectively of their masters, overbalancing your superiority of numbers, adding two-fifths of supplementary power to the two-fifths fairly secured to them by the compact, **CONTROLLING AND OVERRULING THE WHOLE ACTION OF YOUR GOVERNMENT AT HOME AND ABROAD**, and warping it to the sordid private interest and oppressive policy of 300,000 owners of slaves.

From the time of the adoption of the Constitution of the United States, the institution of domestic slavery has been becoming more and more the abhorrence of the civilized world. But in proportion as it has been growing odious to all the rest of mankind, it has been sinking deeper and deeper into the affections of the holders of slaves themselves. The cultivation of cotton and of sugar, unknown in the Union at the establishment of the Constitution, has added largely to the pecuniary value of the slave. And the suppression of the African slave-trade as piracy upon pain of death, by securing the benefit of a monopoly to the virtuous slaveholders of the ancient dominion, has turned her heroic tyrannicides into a community of slave-breeders for sale, and converted the land of George Washington,

Patrick Henry, Richard Henry Lee, and Thomas Jefferson, into a great barracoon—a cattle-show of human beings, an emporium, of which the staple articles of merchandise are the flesh and blood, the bones and sinews of immortal man.

Of the increasing abomination of slavery in the unbought hearts of men at the time when the Constitution of the United States was formed, what clearer proof could be desired, than that the very same year in which that charter of the land was issued, the Congress of the Confederation, with not a tithe of the powers given by the people to the Congress of the new compact, actually abolished slavery for ever throughout the whole Northwestern territory, without a remonstrance or a murmur. But in the articles of confederation, there was no guaranty for the property of the slaveholder—no double representation of him in the Federal councils—no power of taxation—no stipulation for the recovery of fugitive slaves. But when the powers of *government* came to be delegated to the Union, the South—that is, South Carolina and Georgia—refused their subscription to the parchment, till it should be saturated with the infection of slavery, which no fumigation could purify, no quarantine could extinguish. The freemen of the North gave way, and the deadly venom of slavery was infused into the Constitution of freedom. Its first consequence has been to invert the first principle of Democracy, that the will of the majority of numbers shall rule the land. By means of the double representation, the minority command the whole, and a **KNOT OF SLAVEHOLDERS GIVE THE LAW AND PRESCRIBE THE POLICY OF THE COUNTRY**. To acquire this superiority of a large majority of freemen, a persevering system of engrossing nearly all the seats of power and place, is constantly for a long series of years pursued, and you have seen, in a period of fifty-six years, the Chief-magistracy of the Union held, during forty-four of them, by the owners of slaves. The Executive departments, the Army and Navy, the Supreme Judicial Court and diplomatic missions abroad, all present the same spectacle:—an immense majority of power in the hands of a very small minority of the people—millions made for a fraction of a few thousands.

From that day (1830), **SLAVERY, SLAVEHOLDING, SLAVE-BREEDING AND SLAVE-TRADING, HAVE FORMED THE**

WHOLE FOUNDATION OF THE POLICY OF THE FEDERAL GOVERNMENT, and of the slaveholding States, at home and abroad; and at the very time when a new census has exhibited a large increase upon the superior numbers of the free States, it has presented the portentous evidence of increased influence and ascendancy of the slaveholding power.

Of the prevalence of that power, you have had continual and conclusive evidence in the suppression for the space of ten years of the right of petition, guarantied, if there could be a guarantee against slavery, by the first article amendatory of the Constitution.

No. 13.

THE ANTI-SLAVERY EXAMINER.



**ON THE CONDITION OF THE FREE PEOPLE
OF COLOR**

IN THE UNITED STATES.

NEW YORK:

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Please Read and circulate.

ON THE CONDITION OF THE FREE PEOPLE OF COLOR.

It appears from the census of 1830, that there were then 319,467 free colored persons in the United States. At the present time the number cannot be less than 360,000. Fifteen States of the Federal Union have each a smaller population than this aggregate. Hence if the whole mass of human beings inhabiting Connecticut, or New Jersey, or any other of these fifteen States, were subjected to the ignorance, and degradation, and persecution and terror we are about to describe, as the lot of this much injured people, the amount of suffering would still be numerically less than that inflicted by a professedly Christian and republican community upon the free negroes. Candor, however, compels us to admit that, deplorable as is their condition, it is still not so wretched as Colonizationists and slaveholders, for obvious reasons, are fond of representing it. It is not true that free negroes are "more vicious and miserable than slaves *can* be,"[[97](#)] nor that "it would be as humane to throw slaves from the decks of the middle passage, as to set them free in this country," [[98](#)] nor that "a sudden and universal emancipation without colonization, would be a greater CURSE to the slaves themselves, than the bondage in which they are held."

[Footnote [97](#): Rev. Mr. Bacon, of New Haven, 7 Rep. Am. Col. Soc. p. 99.]

[Footnote [98](#): African Repository, Vol. IV. p. 226.]

It is a little singular, that in utter despite of these rash assertions slaveholders and colonizationists unite in assuring us, that the slaves are rendered *discontented* by *witnessing* the freedom of their colored brethren; and hence we are urged to assist in banishing to Africa these sable and dangerous mementoes of liberty.

We all know that the wife and children of the free negro are not ordinarily sold in the market—that he himself does not toil under the lash, and that in certain parts of our country he is permitted to acquire some intelligence, and to enjoy some comforts, utterly and universally denied to the slave. Still it is most unquestionable, that these people grievously suffer from a cruel and wicked prejudice—cruel in its consequences; wicked in its voluntary adoption, and its malignant character.

Colonizationists have taken great pains to inculcate the opinion that prejudice against color is implanted in our nature by the Author of our being; and whence they infer the futility of every effort to elevate the colored man in this country, and consequently the duty and benevolence of sending him to Africa, beyond the reach of our cruelty.[99] The theory is as false in fact as it is derogatory to the character of that God whom we are told is LOVE. With what astonishment and disgust should we behold an earthly parent exciting feuds and animosities among his own children; yet we are assured, and that too by professing Christians, that our heavenly Father has implanted a principle of hatred, repulsion and alienation between certain portions of his family on earth, and then commanded them, as if in mockery, to "love one another."

[Footnote 99: "Prejudices, which neither refinement, nor argument, nor education, NOR RELIGION ITSELF can subdue, mark the people of color, whether bond or free, as the subjects of a degradation *inevitable and incurable*."—*Address of the Connecticut Col. Society*. "The managers consider it clear that causes exist, and are now operating, to prevent their improvement and elevation to any considerable extent as a class in this country, which are fixed, not only beyond the control of the friends of humanity, but of *any human power*: CHRISTIANITY cannot do for them here, what it will do for them in Africa. This is not the *fault* of the colored man, *nor of the white man*, but an ORDINATION OF PROVIDENCE, *and no more to be changed than the laws of nature*."—15 Rep. Am. Col. Soc. p. 47.

"The people of color must, in this country, remain for ages, probably for ever, a separate and distinct caste, weighed down by causes powerful,

universal, invincible, which neither legislation nor CHRISTIANITY can remove."—African Repository Vol. VIII. p. 196.

"Do they (the abolitionists) not perceive that in thus confounding all the distinctions which GOD himself has made, they arraign the wisdom and goodness of Providence itself? It has been His divine pleasure, to make the black man black, and the white man white, and to distinguish them by other *repulsive* constitutional differences."—Speech in Senate of the United States, February 7, 1839, by HENRY CLAY, PRESIDENT OF THE AM. COL. SOC.]

In vain do we seek in nature, for the origin of this prejudice. Young children never betray it, and on the continent of Europe it is unknown. We are not speaking of matters of taste, or of opinions of personal beauty, but of a prejudice against complexion, leading to insult, degradation and oppression. In no country in Europe is any man excluded from refined society, or deprived of literary, religious, or political privileges on account of the tincture of his skin. If this prejudice is the fiat of the Almighty, most wonderful is it, that of all the kindreds of the earth, none have been found submissive to the heavenly impulse, excepting the white inhabitants of North America; and of these, it is no less strange than true, that this divine principle of repulsion is most energetic in such persons as, in other respects, are the least observant of their Maker's will. This prejudice is sometimes erroneously regarded as the *cause* of slavery; and some zealous advocates of emancipation have flattered themselves that, could the prejudice be destroyed, negro slavery would fall with it. Such persons have very inadequate ideas of the malignity of slavery. They forget that the slaves in Greece and Rome were of the same hue as their masters; and that at the South, the value of a slave, especially of a female, rises, as the complexion recedes from the African standard.

Were we to inquire into the geography of this prejudice, we should find that the localities in which it attains its rankest luxuriance, are not the rice swamps of Georgia, nor the sugar fields of Louisiana, but the hills and valleys of New England, and the prairies of Ohio! It is a fact of acknowledged notoriety, that however severe may be the laws against colored people at the South, the prejudice against their *persons* is far weaker than among ourselves.

It is not necessary for our present purpose, to enter into a particular investigation of the condition of the free negroes in the slave States. We all know that they suffer every form of oppression which the laws can inflict upon persons not actually slaves. That unjust and cruel enactments should proceed from a people who keep two millions of their fellow men in abject bondage, and who believe such enactments essential to the maintenance of their despotism, certainly affords no cause for surprise.

We turn to the free States, where slavery has not directly steeled our hearts against human suffering, and where no supposed danger of insurrection affords a pretext for keeping the free blacks in ignorance and degradation; and we ask, what is the character of the prejudice against color *here*? Let the Rev. Mr. Bacon, of Connecticut, answer the question. This gentleman, in a vindication of the Colonization Society, assures us, "The *Soodra* is not farther separated from the *Brahim* in regard to all his privileges, civil, intellectual, and moral, than the negro from the white man by the prejudices which result from the difference made between them by THE GOD OF NATURE."—(*Rep. Am. Col. Soc.* p. 87.)

We may here notice the very opposite effect produced on Abolitionists and Colonizationists, by the consideration that this difference *is* made by the GOD OF NATURE; leading the one to discard the prejudice, and the other to banish its victims.

With these preliminary remarks we will now proceed to take a view of the condition of the free people of color in the non-slaveholding States; and will consider in order, the various disabilities and oppressions to which they are subjected, either by law or the customs of society.

1. GENERAL EXCLUSION FROM THE ELECTIVE FRANCHISE.

Were this exclusion founded on the want of property, or any other qualification deemed essential to the judicious exercise of the franchise, it would afford no just cause of complaint; but it is founded solely on the color of the skin, and is therefore irrational and unjust. That taxation and representation should be inseparable, was one of the axioms of the fathers of our revolution; and one of the reasons they assigned for their revolt from

the crown of Britain. But *now*, it is deemed a mark of fanaticism to complain of the disfranchisement of a whole race, while they remain subject to the burden of taxation. It is worthy of remark, that of the thirteen original States, only *two* were so recreant to the principles of the Revolution, as to make a *white skin* a qualification for suffrage. But the prejudice has grown with our growth, and strengthened with our strength; and it is believed that in *every* State constitution subsequently formed or revised, [excepting Vermont and Maine, and the Revised constitution of Massachusetts,] the crime of a dark complexion has been punished, by debarring its possessor from all approach to the ballot-box.[[100](#)] The necessary effect of this proscription in aggravating the oppression and degradation of the colored inhabitants must be obvious to all who call to mind the solicitude manifested by demagogues, and office-seekers, and law makers, to propitiate the good will of all who have votes to bestow.

[Footnote [100](#): From this remark the revised constitution of New York is *nominally* an exception; colored citizens, possessing a *freehold* worth two hundred and fifty dollars, being allowed to vote; while suffrage is extended to *white* citizens without any property qualification.]

2. DENIAL OF THE RIGHT OF LOCOMOTION.

It is in vain that the Constitution of the United States expressly guarantees to "the citizens of each State, all the privileges and immunities of citizens in the several States:"—It is in vain that the Supreme Court of the United States has solemnly decided that this clause confers on every citizen of one State the right to "pass through, or reside in any other State for the purposes of trade, agriculture, professional pursuits, or *otherwise*." It is in vain that "the members of the several State legislatures" are required to "be bound by oath or affirmation to support" the constitution conferring this very guarantee. Constitutions, and judicial decisions, and religious obligations are alike outraged by our State enactments against people of color. There is scarcely a slave State in which a citizen of New York, with a dark skin, may visit a dying child without subjecting himself to legal penalties. But in the slave States we look for cruelty; we expect the rights of humanity and the laws of the land to be sacrificed on the altar of slavery. In the free States we

had reason to hope for a greater deference to decency and morality. Yet even in these States we behold the effects of a miasma wafted from the South. The Connecticut Black Act, prohibiting, under heavy penalties, the instruction of any colored person from another State, is well known. It is one of the encouraging signs of the times, that public opinion has recently compelled the repeal of this detestable law. But among all the free States, OHIO stands pre-eminent for the wickedness of her statutes against this class of our population. These statutes are not merely infamous outrages on every principle of justice and humanity, but are gross and palpable violations of the State constitution, and manifest an absence of moral sentiment in the Ohio legislature as deplorable as it is alarming. We speak the language, not of passion, but of sober conviction; and for the truth of this language we appeal, first, to the Statutes themselves, and then to the consciences of our readers. We shall have occasion to notice these laws under the several divisions of our subject to which they belong; at present we ask attention to the one intended to prevent the colored citizens of other States from removing into Ohio. By the constitution of New York, the colored inhabitants are expressly recognized as "citizens." Let us suppose then a New York freeholder and voter of this class, confiding in the guarantee given by the Federal constitution removes into Ohio. No matter how much property he takes with him; no matter what attestations he produces to the purity of his character, he is required by the Act of 1807, to find, within twenty days, two freehold sureties in the sum of five hundred dollars for his *good behavior*; and likewise for his *maintenance*, should he at any future period from any cause whatever be unable to maintain himself, and in default of procuring such sureties he is to be removed by the overseers of the poor. The legislature well knew that it would generally be utterly impossible for a stranger, and especially a *black* stranger, to find such sureties. It was the *design* of the Act, by imposing impracticable conditions, to prevent colored emigrants from remaining within the State; and in order more certainly to effect this object, it imposes a pecuniary penalty on every inhabitant who shall venture to "harbor," that is, receive under his roof, or who shall even "employ" an emigrant who has not given the required sureties; and it moreover renders such inhabitant so harboring or employing him, legally liable for his future maintenance!!

We are frequently told that the efforts of the abolitionists have in fact aggravated the condition of the colored people, bond and free. The *date* of this law, as well as the date of most of the laws composing the several slave codes, show what credit is to be given to the assertion. If a barbarous enactment is *recent*, its odium is thrown upon the friends of the blacks—if *ancient*, we are assured it is *obsolete*. The Ohio law was enacted only four years after the State was admitted into the Union. In 1800 there were only three hundred and thirty-seven free blacks in the territory, and in 1830 the number in the State was nine thousand five hundred. Of course a very large proportion of the present colored population of the State must have entered it in ignorance of this iniquitous law, or in defiance of it. That the law has not been universally enforced, proves only that the people of Ohio are less profligate than their legislators—that it has remained in the statute book for thirty-two years, proves the depraved state of public opinion and the horrible persecution to which the colored people are legally exposed. But let it not be supposed that this vile law is in fact obsolete, and its very existence forgotten.

In 1829, a very general effort was made to enforce this law, and about *one thousand free blacks* were in consequence of it driven out of the State; and sought a refuge in the more free and Christian country of Canada. Previous to their departure, they sent a deputation to the Governor of the Upper Province, to know if they would be admitted, and received from Sir James Colebrook this reply,—“Tell the *republicans* on your side of the line, that we royalists do not know men by their color. Should you come to us, you will be entitled to all the privileges of the rest of his majesty's subjects.” This was the origin of the Wilberforce colony in Upper Canada.

We have now before us an Ohio paper, containing a proclamation by John S. Wiles, overseer of the poor in the town of Fairfield, dated 12th March, 1838. In this instrument notice is given to all “black or mulatto persons” residing in Fairfield, to comply with the requisitions of the Act of 1807 within twenty days, or the law would be enforced against them. The proclamation also addresses the white inhabitants of Fairfield in the following terms,—“Whites, look out! If any person or persons *employing* any black or mulatto person, contrary to the 3d section of the above law, you may look out for the breakers.” The extreme vulgarity and malignity of

this notice indicates the spirit which gave birth to this detestable law, and continues it in being.

Now what says the constitution of Ohio? "ALL are born free and independent, and have certain natural, inherent, inalienable rights; among which are the enjoying and defending life and liberty, *acquiring, possessing, and protecting property*, and pursuing and attaining happiness and safety." Yet men who had called their Maker to witness, that they would obey this very constitution, require impracticable conditions, and then impose a pecuniary penalty and grievous liabilities on every man who shall give to an innocent fellow countryman a night's lodging, or even a meal of victuals in exchange for his honest labor!

3. DENIAL OF THE RIGHT OF PETITION.

We explicitly disclaim all intention to imply that the several disabilities and cruelties we are specifying are of universal application. The laws of some States in relation to people of color are more wicked than others; and the spirit of persecution is not in every place equally active and malignant. In none of the free States have these people so many grievances to complain of as in Ohio, and for the honor of our country we rejoice to add, that in no other State in the Union, has their right to petition for a redress of their grievances been denied.

On the 14th January, 1839, a petition for relief from certain legal disabilities, from colored inhabitants of Ohio, was presented to the *popular* branch of the legislature, and its rejection was moved by George H. Flood. [101] This rejection was not a denial of the prayer, but an *expulsion of the petition itself*, as an intruder into the house. "The question presented for our decision," said one of the members, "is simply this—Shall human beings, who are bound by every enactment upon our statute book, be *permitted* to *request* the legislature to modify or soften the laws under which they live?" To the Grand Sultan, crowded with petitions as he traverses the streets of Constantinople, such a question would seem most strange; but American democrats can exert a tyranny over *men who have no votes*, utterly unknown to Turkish despotism. Mr. Flood's motion was lost by a majority of only *four* votes; but this triumph of humanity and republicanism was as transient as it was meagre. The *next* day, the House, by a large majority,

resolved: "That the blacks and mulattoes who may be residents within this State, have no constitutional right to present their petitions to the General Assembly for any purpose whatsoever, and that any reception of such petitions on the part of the General Assembly is a mere act of privilege or policy, and not imposed by any expressed or implied power of the Constitution."

[Footnote [101](#): It is sometimes interesting to preserve the names of individuals who have perpetrated bold and unusual enormities.]

The phraseology of this resolution is as clumsy as its assertions are base and sophistical. The meaning intended to be expressed is simply, that the Constitution of Ohio, neither in terms nor by implication, confers on such residents as are negroes or mulattoes, any right to offer a petition to the legislature for any object whatever; nor imposes on that body any obligation to notice such a petition; and whatever attention it may please to bestow upon it, ought to be regarded as an act not of duty, but merely of favor or expediency. Hence it is obvious, that the *principle* on which the resolution is founded is, that the reciprocal right and duty of offering and hearing petitions *rest solely on constitutional enactment*, and not on moral obligation. The reception of negro petitions is declared to be a mere act of *privilege or policy*. Now it is difficult to imagine a principle more utterly subversive of all the duties of rulers, the rights of citizens, and the charities of private life. The victim of oppression or fraud has no *right* to appeal to the constituted authorities for redress; nor are those authorities under any obligation to consider the appeal—the needy and unfortunate have no right to implore the assistance of their more fortunate neighbors: and all are at liberty to turn a deaf ear to the cry of distress. The eternal and immutable principles of justice and humanity, proclaimed by Jehovah, and impressed by him on the conscience of man, have no binding force on the legislature of Ohio, unless expressly adopted and enforced by the State Constitution!

But as the legislature has thought proper thus to set at defiance the moral sense of mankind, and to take refuge behind the enactments of the Constitution, let us try the strength of their entrenchments. The words of the Constitution, which it is pretended sanction the resolution we are

considering are the following, viz.—"The *people* have a right to assemble together in a peaceable manner to consult for their common good, to *instruct their representatives*, and to apply to the legislature for a redress of grievances." It is obvious that this clause confers no rights, but is merely declaratory of existing rights. Still, as the right of the people to apply for a redress of grievances is coupled with the right of *instructing their representatives*, and as negroes are not electors and consequently are without representatives, it is inferred that they are not part of *the people*. That Ohio legislators are not Christians would be a more rational conclusion. One of the members avowed his opinion that "none but voters had a right to petition." If then, according to the principle of the resolution, the Constitution of Ohio denies the right of petition to all but electors, let us consider the practical results of such a denial. In the first place, every female in the State is placed under the same disability with "blacks and mulattoes." No wife has a right to ask for a divorce—no daughter may plead for a father's life. Next, no man under twenty-one years—no citizen of any age, who from want of sufficient residence, or other qualification, is not entitled to vote—no individual among the tens of thousands of aliens in the State—however oppressed and wronged by official tyranny or corruption, has a right to seek redress from the representatives of the people, and should he presume to do so, may be told, that, like "blacks and mulattoes," he "has no constitutional right to present his petition to the General Assembly for any purpose whatever." Again—the State of Ohio is deeply indebted to the citizens of other States, and also to the subjects of Great Britain for money borrowed to construct her canals. Should any of these creditors lose their certificates of debt, and ask for their renewal; or should their interest be withheld, or paid in depreciated currency, and were they to ask for justice at the hands of the legislature, they might be told, that any attention paid to their request must be regarded as a "mere act of privilege or policy, and not imposed by any expressed or implied power of the Constitution," for, not being voters, they stood on the same ground as "blacks and mulattoes." Such is the folly and wickedness in which prejudice against color has involved the legislators of a republican and professedly Christian State in the nineteenth century.

4. EXCLUSION FROM THE ARMY AND MILITIA.

The Federal Government is probably the only one in the world that forbids a portion of its subjects to participate in the national defence, not from any doubts of their courage, loyalty, or physical strength, but merely on account of the tincture of their skin! To such an absurd extent is this prejudice against color carried, that some of our militia companies have occasionally refused to march to the sound of a drum when beaten by a black man. To declare a certain class of the community unworthy to bear arms in defence of their native country, is necessarily to consign that class to general contempt.

5. EXCLUSION FROM ALL PARTICIPATION IN THE ADMINISTRATION OF JUSTICE.

No colored man can be a judge, juror, or constable. Were the talents and acquirements of a Mansfield or a Marshall veiled in a sable skin, they would be excluded from the bench of the humblest court in the American republic. In the slave States generally, no black man can enter a court of justice as a witness against a white one. Of course a white man may, with perfect impunity, defraud or abuse a negro to any extent, provided he is careful to avoid the presence of any of his own caste, at the execution of his contract, or the indulgence of his malice. We are not aware that an outrage so flagrant is sanctioned by the laws of any *free* State, with one exception. That exception the reader will readily believe can be none other than OHIO. A statute of this State enacts, "that no black or mulatto *person* or *persons* shall hereafter be permitted to be sworn, or give evidence in any court of Record or elsewhere, in this State, in any cause depending, or matter of controversy, when either party to the same is a WHITE person; or in any prosecution of the State against any WHITE person."

We have seen that on the subject of petition the legislature regards itself as independent of all obligation except such as is imposed by the Constitution. How mindful they are of the requirements even of that instrument, when obedience to them would check the indulgence of their malignity to the blacks, appears from the 7th Section of the 8th Article, viz.—"All courts shall be open, and *every* person, for any injury done him in his lands, goods, person or reputation, shall have remedy by due course of law, and right and justice administered without denial or delay."

Ohio legislators may deny that negroes and mulattoes are citizens, or people; but they are estopped by the very words of the statute just quoted, from denying that they are "*persons*." Now, by the Constitution every *person*, black as well as white, is to have justice administered to him without denial or delay. But by the law, while any unknown *white* vagrant may be a witness in any case whatever, no black suitor is permitted to offer a witness of his own color, however well established may be his character for intelligence and veracity, to prove his rights or his wrongs; and hence in a multitude of cases, justice is denied in despite of the Constitution; and why denied? Solely from a foolish and wicked prejudice against color.

6. IMPEDIMENTS TO EDUCATION.

No people have ever professed so deep a conviction of the importance of popular education as ourselves, and no people have ever resorted to such cruel expedients to perpetuate abject ignorance. More than one third of the whole population of the slave States are prohibited from learning even to read, and in some of them free men, if with dark complexions, are subject to stripes for teaching their own children. If we turn to the free States, we find that in all of them, without exception, the prejudices and customs of society oppose almost insuperable obstacles to the acquisition of a liberal education by colored youth. Our academies and colleges are barred against them. We know there are instances of young men with dark skins having been received, under peculiar circumstances, into northern colleges; but we neither know nor believe, that there have been a dozen such instances within the last thirty years.

Colored children are very generally excluded from our common schools, in consequence of the prejudices of teachers and parents. In some of our cities there are schools *exclusively* for their use, but in the country the colored population is usually too sparse to justify such schools; and white and black children are rarely seen studying under the same roof; although such cases do sometimes occur, and then they are confined to elementary schools. Some colored young men, who could bear the expense, have obtained in European seminaries the education denied them in their native land.

It may not be useless to cite an instance of the malignity with which the education of the blacks is opposed. The efforts made in Connecticut to

prevent the establishment of schools of a higher order than usual for colored pupils, are too well known to need a recital here; and her BLACK ACT, prohibiting the instruction of colored children from other States, although now expunged from her statute book through the influence of abolitionists, will long be remembered to the opprobrium of her citizens. We ask attention to the following illustration of public opinion in another New England State.

In 1834 an academy was built by subscription in CANAAN, New Hampshire, and a charter granted by the legislature; and at a meeting of the proprietors it was determined to receive all applicants having "suitable moral and intellectual recommendations, without other distinctions;" in other words, without reference to *complexion*. When this determination was made known, a TOWN MEETING was forthwith convened, and the following resolutions adopted, viz.

"RESOLVED, That we view with *abhorrence* the attempt of the Abolitionists to establish in this town a school for the instruction of the sable sons and daughters of Africa, in common with our sons and daughters.

"RESOLVED, That we will not associate with, nor in any way countenance, any man or woman who shall hereafter persist in attempting to establish a school in this town for the *exclusive* education of blacks, *or* for their education in conjunction with the whites."

The frankness of this last resolve is commendable. The inhabitants of Canaan, assembled in legal town meeting, determined, it seems, that the blacks among them should in future have no education whatever—they should not be instructed in company with the whites, neither should they have schools exclusively for themselves.

The proprietors of the academy supposing, in the simplicity of their hearts, that in a free country they might use their property in any manner not forbidden by law, proceeded to open their school, and in the ensuing spring had twenty-eight white, and fourteen colored scholars. The crisis had now arrived when the cause of prejudice demanded the sacrifice of constitutional liberty and of private property. Another town meeting was convoked, at which, without a shadow of authority, and in utter contempt of law and decency, it was ordered, that the academy should be forcibly removed, and

a committee was appointed to execute the abominable mandate. Due preparations were made for the occasion, and on the 10th of August, three hundred men, with about 200 oxen, assembled at the place, and taking the edifice from off its foundation, dragged it to a distance, and left it a ruin. No one of the actors in this high-handed outrage was ever brought before a court of justice to answer for this criminal and riotous destruction of the property of others.

The transaction we have narrated, expresses in emphatic terms the deep and settled hostility felt in the free States to the education of the blacks. The prejudices of the community render that hostility generally effective without the aid of legal enactments. Indeed, some remaining regard to decency and the opinion of the world, has restrained the Legislatures of the free States, with *one exception*, from consigning these unhappy people to ignorance by "decreeing unrighteous decrees," and "framing mischief by a law." Our readers, no doubt, feel that the exception must of course be OHIO.

We have seen with what deference Ohio legislators profess to regard their *constitutional* obligations; and we are now to contemplate another instance of their shameless violation of them. The Constitution which these men have sworn to obey declares, "NO LAW SHALL BE PASSED to prevent the poor of the several townships and counties in this State from an *equal* participation in the schools, academies, colleges, and universities in this State, which are endowed in whole, or *in part*, from the revenue arising from *donations* made by the United States, for the support of *colleges and schools*—and the door of said schools, academies, and universities shall be open for the reception of scholars, students, and teachers of every *grade*, without ANY DISTINCTION OR PREFERENCE WHATEVER."

Can language be more explicit or unequivocal? But have any donations been made by the United States for the support of colleges and schools in Ohio? Yes—by an act of Congress, the sixteenth section of land in *each* originally surveyed township in the State, was set apart as a donation for the express purpose of endowing and supporting common schools. And now, how have the scrupulous legislators of Ohio, who refuse to acknowledge any other than constitutional obligations to give ear to the cry of distress—how have they obeyed this injunction of the Constitution respecting the

freedom of their schools? They enacted a law in 1831, declaring that, "when any appropriation shall be made by the directors of any school district, from the treasury thereof, for the payment of a teacher, the school in such district shall be open"—to whom? "*to scholars, students, and teachers of every grade, without distinction or preference whatever,*" as commanded by the Constitution? Oh no! "Shall be open to all the WHITE children residing therein!!" Such is the impotency of written constitutions, where a sense of moral obligation is wanting to enforce them.

We have now taken a review of the Ohio laws against free people of color. Some of them are of old, and others of recent date. The opinion entertained of all these laws, new and old, by the *present* legislators of Ohio, may be learned by a resolution adopted in January last, (1839) by both houses of the legislature. "RESOLVED, That in the opinion of this general assembly it is unwise, impolitic, and inexpedient to repeal *any* law now in force imposing disabilities upon black or mulatto persons, thus placing them upon an equality with the whites, so far as this legislature can do, and indirectly inviting the black population of other States to emigrate to this, to the manifest injury of the public interest." The best comment on the *spirit* which dictated this resolve is an enactment by the *same* legislature, abrogating the supreme law which requires us to "Do unto others as we would they should do unto us," and prohibiting every citizen of Ohio from *harboring or concealing* a fugitive slave, under the penalty of fine or imprisonment. General obedience to this vile statute is alone wanting to fill to the brim the cup of Ohio's iniquity and degradation. She hath done what she could to oppress and crush the free negroes within her borders. She is now seeking to rechain the slave who has escaped from his fetters.

7. IMPEDIMENTS TO RELIGIOUS INSTRUCTION.

It is unnecessary to dwell here on the laws of the slave States prohibiting the free people of color from learning to read the Bible, and in many instances, from assembling at discretion to worship their Creator. These laws, we are assured, are indispensable to the perpetuity of that "peculiar institution," which many masters in Israel are now teaching, enjoys the sanction of HIM who "will have all men to be saved, and to come to the knowledge of the truth," and who has left to his disciples the injunction, "search the Scriptures." We turn to the free States, in which no institution requires, that the light of the glorious gospel of Christ should be prevented from shining on any portion of the population, and inquire how far prejudice here supplies the place of southern statutes.

The impediments to education already mentioned, necessarily render the acquisition of religious knowledge difficult, and in many instances impracticable. In the northern cities, the blacks have frequently churches of their own, but in the country they are too few, and too poor to build churches and maintain ministers. Of course they must remain destitute of public worship and religious instruction, unless they can enjoy these blessings in company with the whites. Now there is hardly a church in the United States, not exclusively appropriated to the blacks, in which one of their number owns a pew, or has a voice in the choice of a minister. There are usually, indeed, a few seats in a remote part of the church, set apart for their use, and in which no white person is ever seen. It is surely not surprising, under all the circumstances of the case, that these seats are rarely crowded.

Colored ministers are occasionally ordained in the different denominations, but they are kept at a distance by their white brethren in the ministry, and are very rarely permitted to enter their pulpits; and still more rarely, to sit at their tables, although acknowledged to be ambassadors of Christ. The distinction of *caste* is not forgotten, even in the celebration of the Lord's Supper, and seldom are colored disciples permitted to eat and drink of the memorials of the Redeemer's passion till after every white communicant has been served.

8. IMPEDIMENTS TO HONEST INDUSTRY.

In this country ignorance and poverty are almost inseparable companions; and it is surely not strange that those should be poor whom we compel to be ignorant. The liberal professions are virtually sealed against the blacks, if we except the church, and even in that admission is rendered difficult by the obstacles placed in their way in acquiring the requisite literary qualifications;[\[102\]](#) and when once admitted, their administrations are confined to their own color. Many of our most wealthy and influential citizens have commenced life as ignorant and as penniless as any negro who loiters in our streets. Had their complexion been dark, notwithstanding their talents, industry, enterprize and probity, they would have continued ignorant and penniless, because the paths to learning and to wealth, would then have been closed against them. There is a conspiracy, embracing all the departments of society, to keep the black man ignorant and poor. As a general rule, admitting few if any exceptions, the schools of literature and of science reject him—the counting house refuses to receive him as a bookkeeper, much more as a partner—no store admits him as a clerk—no shop as an apprentice. Here and there a black man may be found keeping a few trifles on a shelf for sale; and a few acquire, as if by stealth, the knowledge of some handicraft; but almost universally these people, both in town and country, are prevented by the customs of society from maintaining themselves and their families by any other than menial occupations.

[Footnote [102](#): Of the truth of this remark, the trustees of the Episcopal Theological Seminary at New-York, lately (June, 1839) afforded a striking illustration. A young man, regularly acknowledged by the Bishop as a candidate for orders, and in consequence of such acknowledgment entitled, by an *express statute* of the seminary, to admission to its privileges, presented himself as a pupil. But God had given him a dark complexion, and *therefore* the trustees, regardless of the statute, barred the doors against him, by a formal and deliberate vote. As a compromise between conscience and prejudice, the professors offered to give him *private* instruction—to do in secret what they were ashamed to do openly—to confer as a favor, what he was entitled to demand as a right. The offer was rejected.

It is worthy of remark, that of the trustees who took an *active* part against the *colored* candidate, one is the PRESIDENT of the *New York Colonization*

Society; another a MANAGER, and a third, one of its public champions; and that the Bishop of the diocese, who wished to exclude his candidate from the theological school of which he is both a trustee and a professor, lately headed a recommendation in the newspapers for the purchase of a packet ship for Liberia, as likely to "render far more efficient than heretofore, the enterprize of colonization."]

In 1836, a black man of irreproachable character, and who by his industry and frugality had accumulated several thousand dollars, made application in the City of New York for a carman's license, and was refused solely and avowedly on account of his complexion! We have already seen the effort of the Ohio legislature, to consign the negroes to starvation, by deterring others from employing them. Ignorance, idleness, and vice, are at once the punishments we inflict upon these unfortunate people for their complexion; and the crimes with which we are constantly reproaching them.

9. LIABILITY TO BE SEIZED, AND TREATED AS SLAVES.

An able-bodied colored man sells in the southern market for from eight hundred to a thousand dollars; of course he is worth stealing. Colonizationists and slaveholders, and many northern divines, solemnly affirm, that the situation of a slave is far preferable to that of a free negro; hence it would seem an act of humanity to convert the latter into the former. Kidnapping being both a lucrative and a benevolent business, it is not strange it should be extensively practised. In many of the States this business is regulated by law, and there are various ways in which the transmutation is legally effected. Thus, in South Carolina, if a free negro "entertains" a runaway slave, it may be his own wife or child, he himself is turned into a slave. In 1827, a *free woman and her three children* underwent this benevolent process, for *entertaining* two fugitive children of six and nine years old. In Virginia all emancipated slaves remaining twelve months in the State, are kindly restored to their former condition. In Maryland a free negro who marries a white woman, thereby acquires all the privileges of a slave—and generally, throughout the slave region, including the District of Columbia, every negro not known to be free, is mercifully considered as a slave, and if his master cannot be ascertained, he is thrown into a dungeon, and there kept, till by a public sale a master can be provided

for him. But often the law grants to colored men, *known to be free*, all the advantages of slavery. Thus, in Georgia, every *free* colored man coming into the State, and unable to pay a fine of one hundred dollars, becomes a slave for life; in Florida, insolvent debtors, if *black*, are SOLD for the benefit of their creditors; and in the District of Columbia a free colored man, thrown into jail on suspicion of being a slave and proving his freedom, is required by law to be sold as a slave, if too poor to pay his jail fees. Let it not be supposed that these laws are all obsolete and inoperative. They catch many a northern negro, who, in pursuit of his own business, or on being decoyed by others ventures to enter the slave region; and who, of course, helps to augment the wealth of our southern brethren. On the 6th of March, 1839, a report by a Committee was made to the House of Representatives of the Massachusetts Legislature, in which are given the *names* of seventeen free colored men who had been enslaved at the south. It also states an instance in which twenty-five colored citizens, belonging to Massachusetts, were confined at one time in a southern jail, and another instance in which 75 free colored persons from different free States were confined, all preparatory to their sale as slaves according to law.

The facts disclosed in this report induced the Massachusetts Legislature to pass a resolution protesting against the kidnapping laws of the slave States, "as invading the sacred rights of citizens of this commonwealth, as contrary to the Constitution of the United States, and in utter derogation of that great principle of the common law which presumes every person to be innocent until proved to be guilty;" and ordered the protest to be forwarded to the Governors of the several States.

But it is not at the south alone that freemen may be converted into slaves "according to law." The Act of Congress respecting the recovery of fugitive slaves, affords most extraordinary facilities for this process, through official corruption and individual perjury. By this Act, the claimant is permitted to *select* a justice of the peace, before whom he may bring or send his alleged slave, and even to prove his property by *affidavit*. Indeed, in almost every State in the Union, a slaveholder may recover at law a human being as his beast of burden with far less ceremony than he could his pig from the possession of his neighbor. In only three States is a man, claimed as a slave, entitled to a trial by jury. At the last session of the New York Legislature a bill allowing a jury trial in such cases was passed by the lower House, but

rejected by a *democratic* vote in the Senate, democracy in that State, being avowedly only *skin deep*, all its principles of liberty, equality, and human rights depending on complexion.

Considering the wonderful ease and expedition with which fugitives may be recovered by law, it would be very strange if mistakes did not sometimes occur. *How* often they occur cannot, of course, be known, and it is only when a claim is *defeated*, that we are made sensible of the exceedingly precarious tenure by which a poor friendless negro at the north holds his personal liberty. A few years since, a girl of the name of Mary Gilmore was arrested in Philadelphia, as a fugitive slave from Maryland. Testimony was not wanting in support of the claim; yet it was most conclusively proved that she was the daughter of poor *Irish* parents—having not a drop of negro blood in her veins—that the father had absconded, and that the mother had died a drunkard in the Philadelphia hospital, and that the infant had been kindly received and *brought up in a colored family*. Hence the attempt to make a slave of her. In the spring of 1839, a colored man was arrested in Philadelphia, on a charge of having absconded from his owner *twenty-three* years before. This man had a wife and family depending upon him, and a home where he enjoyed their society; and yet, unless he could find witnesses who could prove his freedom for more than this number of years, he was to be torn from his wife, his children, his home, and doomed for the remainder of his days to toil under the lash. *Four* witnesses for the claimant swore to his identity, although they had not seen him before for twenty-three years! By a most extraordinary coincidence, a New England Captain, with whom this negro had sailed *twenty-nine* years before, in a sloop from Nantucket, happened at this very time to be confined for debt in the same prison with the alleged slave, and the Captain's testimony, together with that of some other witnesses, who had known the man previous to his pretended elopement, so fully established his freedom, that the Court discharged him.

Another mode of legal kidnapping still remains to be described. By the Federal Constitution, fugitives from *justice* are to be delivered up, and under this constitutional provision, a free negro may be converted into a slave without troubling even a Justice of the Peace to hear the evidence of the captor's claim. A fugitive slave is, of course, a felon—he not only steals himself, but also the rags on his back which belong to his master. It is understood he has taken refuge in New York, and his master naturally

wishes to recover him with as little noise, trouble, and delay as possible. The way is simple and easy. Let the Grand Jury indict A.B. for stealing wearing apparel, and let the indictment, with an affidavit of the criminal's flight, be forwarded by the Governor of the State, to his Excellency of New York, with a requisition for the delivery of A.B., to the agent appointed to receive him. A warrant is, of course, issued to "any Constable of the State of New York," to arrest A.B. For what purpose?—to bring him before a magistrate where his identity may be established?—no, but to deliver him up to the foreign agent. Hence, the Constable may pick up the first likely negro he finds in the street, and ship him to the south; and should it be found, on his arrival on the plantation, that the wrong man has come, it will also probably be found that the mistake is of no consequence to the planter. A few years since, the Governor of New York signed a warrant for the apprehension of 17 Virginia negroes, as fugitives from justice.[\[103\]](#) Under this warrant, a man who had lived in the neighborhood for three years, and had a wife and children, and who claimed to be free, was seized, on a Sunday evening, in the public highway, in West Chester County, N.Y., and without being permitted to take leave of his family, was instantly handcuffed, thrown into a carriage, and hurried to New York, and the next morning was on his voyage to Virginia.

[Footnote [103](#): There is no evidence that he knew they were negroes; or that he acted otherwise than in perfect good faith. The alleged crime was stealing a boat. The *real* crime, it is said, was stealing themselves and escaping in a boat. The most horrible abuses of these warrants can only be prevented by requiring proof of identity before delivery.]

Free colored men are converted into slaves not only by law, but also contrary to law. It is, of course, difficult to estimate the extent to which illegal kidnapping is carried, since a large number of cases must escape detection. In a work published by Judge Stroud, of Philadelphia, in 1827, he states, that it had been *ascertained* that more than *thirty* free colored persons, mostly children, had been kidnapped in that city within the last two years.[\[104\]](#)

[Footnote [104](#): Stroud's Sketch of the Slave Laws, p. 94.]

10. SUBJECTION TO INSULT AND OUTRAGE.

The feeling of the community towards these people, and the contempt with which they are treated, are indicated by the following notice, lately published by the proprietors of a menagerie, in New York. "The proprietors wish it to be understood, that people of color are not permitted to enter, *except when in attendance upon children and families*." For two shillings, any white scavenger would be freely admitted, and so would negroes, provided they came in a capacity that marked their dependence—their presence is offensive, *only* when they come as independent spectators, gratifying a laudable curiosity.

Even death, the great leveller, is not permitted to obliterate, among Christians, the distinction of caste, or to rescue the lifeless form of the colored man from the insults of his white brethren. In the porch of a Presbyterian Church, in Philadelphia, in 1837, was suspended a card, containing the form of a deed, to be given to purchasers of lots in a certain burial ground, and to enhance the value of the property, and to entice buyers, the following clause was inserted, "No person of *color*, nor any one who has been the subject of *execution*, shall be interred in said lot."

Our colored fellow-citizens, like others, are occasionally called to pass from one place to another; and in doing so are compelled to submit to innumerable hardships and indignities. They are frequently denied seats in our stage coaches; and although admitted upon the *decks* of our steam boats, are almost universally excluded from the cabins. Even women have been forced, in cold weather, to pass the night upon deck, and in one instance the wife of a colored clergyman lost her life in consequence of such an exposure.

The contempt poured upon these people by our laws, our churches, our seminaries, our professions, naturally invokes upon their heads the fierce wrath of vulgar malignity. In order to exhibit the actual condition of this portion of our population, we will here insert some *samples* of the outrages to which they are subjected, taken from the ordinary public journals.

In an account of the New York riots of 1834, the *Commercial Advertiser* says—"About twenty poor African (native American) families, have had their all destroyed, and have neither bed, clothing, nor food remaining. Their houses are completely eviscerated, their furniture a wreck, and the ruined and disconsolate tenants of the devoted houses are reduced to the necessity of applying to the corporation for bread."

The example set in New York was zealously followed in Philadelphia. "Some arrangement, it appears, existed between the mob and the white inhabitants, as the dwelling houses of the latter, contiguous to the residences of the blacks, were illuminated and left undisturbed, while the huts of the negroes were singled out with unerring certainty. The furniture found in these houses was generally broken up and destroyed—beds ripped open and their contents scattered in the streets.... The number of houses assailed was not less than twenty. In one house there was a *corpse, which was thrown from the coffin, and in another a dead infant was taken out of the bed, and cast on the floor, the mother being at the same time barbarously treated.*"—*Philadelphia Gazette*.

"No case is reported of an attack having been *invited* or *provoked* by the residents of the dwellings assailed or destroyed. The extent of the depredations committed on the *three* evenings of riot and outrage can only be judged of by the number of houses damaged or destroyed. So far as ascertained, this amounts to FORTY-FIVE. One of the houses assaulted was occupied by an unfortunate cripple—who, unable to fly from the fury of the mob, was so beaten by some of the ruffians, that he has since died in consequence of the bruises and wounds inflicted.... For the last two days the Jersey steam boats have been loaded with numbers of the colored population, who, fearful their lives were not safe in this, determined to seek refuge in another State. On the Jersey side, tents were erected, and the negroes have taken up a temporary residence, until a prospect shall be offered for their perpetual location in some place of security and liberty."—*National Gazette*.

The facts we have now exhibited, abundantly prove the extreme cruelty and sinfulness of that prejudice against color which we are impiously told is an ORDINATION OF PROVIDENCE. Colonizationists, assuming the prejudice to be natural and invincible, propose to remove its victims beyond

its influence. Abolitionists, on the contrary, remembering with the Psalmist, that "It is HE that hath made us, and not we ourselves," believe that the benevolent Father of us all requires us to treat with justice and kindness every portion of the human family, notwithstanding any particular organization he has been pleased to impress upon them. Instead, therefore, of gratifying and fostering this prejudice, by continually banishing from our country those against whom it is directed, Abolitionists are anxious to destroy the prejudice itself; feeling, to use the language of another, that—"It is time to recognize in the humblest portions of society, partakers of our nature with all its high prerogatives and awful destinies—time to remember that our distinctions are *exterior* and evanescent, our resemblance real and permanent—that all is transient but what is moral and spiritual—that the only graces we can carry with us into another world, are graces of divine implantation, and that amid the rude incrustations of poverty and ignorance there lurks an imperishable jewel—a SOUL, susceptible of the highest spiritual beauty, destined, perhaps, to adorn the celestial abodes, and to shine for ever in the mediatorial diadem of the Son of God—*Take heed that ye despise not one of these little ones.*"

No. 13.

THE ANTI-SLAVERY EXAMINER.



CAN ABOLITIONISTS VOTE OR TAKE OFFICE UNDER

THE UNITED STATES CONSTITUTION?

"The preservation, propagation, and perpetuation of slavery is the vital and animating spirit of the National Government."

NEW YORK:
AMERICAN ANTI-SLAVERY SOCIETY,
142 NASSAU STREET

1815.

INTRODUCTION.

The American Anti-Slavery Society, at its Annual Meeting in May, 1844, adopted the following Resolution:

Resolved, That secession from the present United States government is the duty of every abolitionist; since no one can take office, or throw a vote for another to hold office, under the United States Constitution, without violating his anti-slavery principles, and rendering himself an abettor of the slaveholder in his sin.

The passage of this Resolution has caused two charges to be brought against the Society: *First*, that it is a *no-government* body, and that the whole doctrine of non-resistance is endorsed by this vote:—and *secondly*, that the Society transcended its proper sphere and constitutional powers by taking such a step.

The logic which infers that because a man thinks the Federal Government bad, he must necessarily think *all* government so, has at least, the merit and the charm of novelty. There is a spice of arrogance just perceptible, in the conclusion that the Constitution of these United States is so perfect, that one who dislikes it could never be satisfied with any form of government whatever!

Were O'Connell and his fellow Catholics non-resistants, because for two hundred years they submitted to exclusion from the House of Lords and the House of Commons, rather than qualify themselves for a seat by an oath abjuring the Pope? Were the *non-juring* Bishops of England non-resistants, when they went down to the grave without taking their seats in the House of Lords, rather than take an oath denying the Stuarts and to support the House of Hanover? Both might have purchased power at the price of one annual falsehood. There are some in this country who do not seem to think that price at all unreasonable. It were a rare compliment indeed to the non-resistants, if every exhibition of rigid principle on the part of an individual is to make the world suspect him of leaning towards their faith.

The Society is not opposed to government, but only to *this* Government based upon and acting for slavery.

With regard to the second charge, of exceeding its proper limits and trespassing on the rights of the minority, it is enough to say, that the object of the American Anti-Slavery Society is the "entire abolition of slavery in the United States." Of course it is its duty to find out all the sources of pro-slavery influence in the land. It is its right, it is its duty to try every institution in the land, no matter how venerable, or sacred, by the touchstone of anti-slavery principle; and if it finds any one false, to proclaim that fact to the world, with more or less of energy, according to its importance in society. It has tried the Constitution, and pronounced it unsound.

No member's conscience need be injured—The qualification for membership remains the same, "the belief that slave-holding is a heinous crime"—No new test has been set up—But the majority of the Society, for the time being, faithful to its duty of trying every institution by the light of the present day—of uttering its opinion on every passing event that touches the slave's welfare, has seen it to be duty to sound forth its warning,

NO UNION WITH SLAVEHOLDERS.

No one who did not vote for the Resolution is responsible for it. No one is asked to quit our platform. We, the majority, only ask him to extend to our opinions the same toleration that we extend to him, and agreeing to differ on this point, work together where we can. We proscribe no man for difference of opinion.

It is said, that having refused in 1840, to say that a man *ought to vote*, on the ground that such a resolution would be tyrannical and intolerant, the Society is manifestly inconsistent now in taking upon itself to say that no abolitionist *can* consistently vote. But the inconsistency is only apparent and not real.

There may be a thousand reasons why a particular individual ought not to do an act, though the act be innocent in itself. It would be tyranny therefore in a society which can properly take notice of but one subject, slavery, to promulgate the doctrine that all its members ought to do any particular act,

as for instance, to vote, to give money, to lecture, to petition, or the like. The particular circumstances and opinions of each one must regulate his actions. All we have a right to ask is, that he do for the slave's cause as much as he does for any other of equal importance. But when an act is wrong, it is no intolerance to say to the whole world that it ought *not to be done*. After the abolitionist has granted that slavery is wrong, we have the right to judge him by his own principles, and arraign him for inconsistency that, so believing, he helps the slaveholder by his oath.

The following pages have been hastily thrown together in explanation of the vote above recited. They make no pretension to a full argument of the topic. I hope that in a short time I shall get leisure sufficient to present to our opponents, unless some one does it for me, a full statement of the reasons which have led us to this step.

I am aware that we non-voters are rather singular. But history, from the earliest Christians downwards, is full of instances of men who refused all connection with government, and all the influence which office could bestow, rather than deny their principles, or aid in doing wrong. Yet I never heard them called either idiots or over-scrupulous. Sir Thomas More need never have mounted the scaffold, had he only consented to take the oath of supremacy. He had only to tell a lie with solemnity, as we are asked to do, and he might not only have saved his life, but, as the trimmers of his day would have told him, doubled his influence. Pitt resigned his place as Prime Minister of England, rather than break faith with the Catholics of Ireland. Should I not resign a petty ballot rather than break faith with the slave? But I was specially glad to find a distinct recognition of the principle upon which we have acted, applied to a different point, in the life of that Patriarch of the Anti-Slavery enterprise, Granville Sharpe. It is in a late number of the Edinburgh Review. While an underclerk in the War Office, he sympathized with our fathers in their struggle for independence. "Orders reached his office to ship munitions of war to the revolted colonies. If his hand had entered the account of such a cargo, it would have contracted in his eyes the stain of innocent blood. To avoid this pollution, he resigned his place and his means of subsistence at a period of life when he could no longer hope to find any other lucrative employment." As the thoughtful clerk of the War Office takes his hat down from the peg where it has used to hang for twenty years, methinks I hear one of our opponents cry out, "Friend Sharpe, you

are absurdly scrupulous." "You may innocently aid Government in doing wrong," adds another. While Liberty Party yelps at his heels, "My dear Sir, you are quite losing your influence!" And indeed it is melancholy to reflect how, from that moment the mighty underclerk of the War Office(!) dwindled into the mere Granville Sharpe of history! the man of whom Mansfield and Hargrave were content to learn law, and Wilberforce, philanthropy.

One friend proposes to vote for men who shall be pledged not to take office unless the oath to the Constitution is dispensed with, and who shall then go on to perform in their offices only such duties as we, their constituents, approve. He cites, in support of his view, the election of O'Connell to the House of Commons, in 1828, I believe, just one year before the "Oath of Supremacy," which was the objectionable one to the Catholics, was dispensed with. Now, if we stood in the same circumstances as the Catholics did in 1828, the example would be in point. When the public mind is thoroughly revolutionized, and ready for the change, when the billow has reached its height and begins to crest into foam, then such a measure may bring matters to a crisis. But let us first go through, in patience, as O'Connell did, our twenty years of agitation. Waiving all other objections, this plan seems to me mere playing at politics, and an entire waste of effort.

It loses our high position as moral reformers; it subjects us to all that malignant opposition and suspicion of motives which attend the array of parties; and while thus closing up our access to the national conscience, it wastes in fruitless caucussing and party tactics, the time and the effort which should have been directed to efficient agitation.

The history of our Union is lesson enough, for every candid mind, of the fatal effects of every, the least, compromise with evil. The experience of the fifty years passed under it, shows us the slaves trebling in numbers;—slaveholders monopolizing the offices and dictating the policy of the Government;—prostituting the strength and influence of the Nation to the support of slavery here and elsewhere;—trampling on the rights of the free States, and making the courts of the country their tools. To continue this disastrous alliance longer is madness. The trial of fifty years only proves that it is impossible for free and slave States to unite on any terms, without

all becoming partners in the guilt and responsible for the sin of slavery. Why prolong the experiment? Let every honest man join in the outcry of the American Anti-Slavery Society,

NO UNION WITH SLAVEHOLDERS.

WENDELL PHILLIPS.

Boston, Jan. 15, 1845.

THE NO-VOTING THEORY.

"God never made a CITIZEN, and no one will escape as a man, from the sins which he commits as a citizen."

Can an abolitionist consistently take office, or vote, under the Constitution of the United States?

1st. What is an abolitionist?

One who thinks slaveholding a sin in all circumstances, and desires its abolition. Of course such an one cannot consistently aid another in holding his slave;—in other words, I cannot innocently aid a man in doing that which I think wrong. No amount of fancied good will justify me in joining another in doing wrong, unless I adopt the principle "of doing evil that good may come."

2d. What do taking office and voting under the Constitution imply?

The President swears "to execute the office of president," and "to preserve, protect, and defend the Constitution of the United States." The judges "to discharge the duties incumbent upon them agreeably to the constitution and laws of the United States."

All executive, legislative, and judicial officers, both of the several States and of the General Government, before entering on the performance of their official duties, are bound to take an oath or affirmation, "*to support the Constitution of the United States.*" This is what every office-holder expressly *promises in so many words*. It is a contract between him and *the whole nation*. The voter, who, by voting, sends his fellow citizen into office as his representative, knowing beforehand that the taking of this oath is the first duty his agent will have to perform, does by his vote, request and authorize him to take it. He therefore, by voting, impliedly engages to support the Constitution. What one does by his agent he does himself. Of course no honest man will authorize and request another to do an act which

he thinks it wrong to do himself! Every voter, therefore, is bound to see, *before voting*, whether he could himself honestly swear to *support* the constitution. Now what does this oath of office-holders relate to and imply? "It applies," says Chief Justice Marshall, "in an especial manner, to their conduct in their official character." Judge Story, in his Commentaries on the Constitution, speaks of it as "a solemn obligation to the due execution of the trusts reposed in them, and to support the Constitution." It is universally considered throughout the country, by common men and by the courts, as a promise to do what the Constitution bids, and to avoid what it forbids. It was in the spirit of this oath, under which he spake, that Daniel Webster said in New York, "The Constitution gave it (slavery) SOLEMN GUARANTIES. To the full extent of these guaranties we are all bound by the Constitution. All the stipulations contained in the Constitution in favor of the slaveholding States ought to be fulfilled; and so far as depends on me, shall be fulfilled, in the fulness of their spirit and to the exactness of their letter."

It is more than an oath of allegiance; more than a mere promise that we will not resist the laws. For it is an engagement to "support them"; as an *officer* of government, to carry them into effect. Without such a promise on the part of its functionaries, how could government exist? It is more than the expression of that obligation which rests on all peaceable citizens to *submit* to laws, even though they will not actively *support* them. For it is the promise which the judge makes, that he will actually *do* the business of the courts; which the sheriff assumes, that he will actually *execute* the laws.

Let it be remarked, that it is an oath to support *the* Constitution—that is, *the whole of it*; there are no exceptions. And let it be remembered, that by it each *one* makes a contract with the *whole* nation, that he will do certain acts.

3d. What is the Constitution which each voter thus engages to support?

It contains the following clauses:

Art. 1, Sect. 2. Representatives and direct taxes shall be apportioned among the several States, which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole

number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, *three fifths of all other persons*.

Art. 1, Sect. 8. Congress shall have power ... to suppress insurrections.

Art. 4, Sec. 2. No person, held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due.

Art. 4, Sect. 4. The United States shall guarantee to every State in this Union a republican form of government; and shall protect each of them against invasion; and, on application of the legislature, or of the executive, (when the legislature cannot be convened) *against domestic violence*.

The first of these clauses, relating to representation, gives to 10,000 inhabitants of Carolina equal weight in the government with 40,000 inhabitants of Massachusetts, provided they are rich enough to hold 50,000 slaves:—and accordingly confers on a slaveholding community additional political power for every slave held among them, thus tempting them to continue to uphold the system.

Its result has been, in the language of John Quincy Adams, "to make the preservation, propagation, and perpetuation of slavery the vital and animating spirit of the National Government;" and again, to enable "a knot of slaveholders to give the law and prescribe the policy of the country." So that "since 1830 slavery, slaveholding, slavebreeding, and slavetrading have formed the whole foundation of the policy of the Federal Government." The second and the last articles relating to insurrection and domestic violence, perfectly innocent in themselves—yet being made with the fact directly in view that slavery exists among us, do deliberately pledge the whole national force against the unhappy slave if he imitate our fathers and resist oppression—thus making us partners in the guilt of sustaining slavery: the third is a promise, on the part of the whole North, to return fugitive slaves to their masters; a deed which God's law expressly condemns, and which every noble feeling of our nature repudiates with loathing and contempt.

These are the clauses which the abolitionist, by voting or taking office, engages to uphold. While he considers slaveholding to be sin, he still rewards the master with additional political power for every additional slave that he can purchase. Thinking slaveholding to be sin, he pledges to the master the aid of the whole army and navy of the nation to reduce his slave again to chains, should he at any time succeed a moment in throwing them off. Thinking slaveholding to be sin, he goes on, year after year, appointing by his vote judges and marshals to aid in hunting up the fugitives, and seeing that they are delivered back to those who claim them! How beautifully consistent are his *principles* and his *promises*!

OBJECTIONS.

OBJECTION I.

Allowing that the clause relating to representation and that relating to insurrections are immoral, it is contended that the article which orders the return of fugitive slaves was not meant to apply to slaves, but has been misconstrued and misapplied!

ANSWER. The meaning of the other two clauses, settled as it has been by the unbroken practice and cheerful acquiescence of the Government and people, no one has attempted to deny. This also has the same length of practice, and the same acquiescence, to show that it relates to slaves. No one denies that the Government and Courts have so construed it, and that the great body of the people have freely concurred in and supported this construction. And further, "The Madison Papers" (containing the debates of those who framed the Constitution, at the time it was made) settle beyond all doubt what meaning the framers intended to convey.

Look at the following extracts from those Papers:

Tuesday, August 28th, 1787.

Mr. Butler and Mr. Pinckney moved to require "fugitive slaves and servants to be delivered up like criminals."

Mr. Wilson. This would oblige the Executive of the State to do it, at the public expense.

Mr. Sherman saw no more propriety in the public seizing and surrendering a slave or servant, than a horse.

Mr. Butler withdrew his proposition, in order that some particular provision might be made, apart from this article.

Article 15, as amended, was then agreed to, *nem. con.*—Madison papers, pp. 1447-8.

Wednesday, August 29, 1787.

Mr. Butler moved to insert after Article 15, "If any person bound to service or labor in any of the United States, shall escape into another State, he or she shall not be discharged from such service or labor, in consequence of any regulations subsisting in the State to which they escape, but shall be delivered up to the person justly claiming their service or labor,"—which was agreed to, *nem. con.*—p. 1456.

And again, after the wording of the above article had been slightly changed, and the clause newly numbered, as in the present Constitution, we find another statement most clearly showing to what subject the whole was intended to refer:

Saturday, September 15, 1787.

Article 4, Section 2, (the third paragraph,) the term "legally" was struck out; and the words, "under the laws thereof," inserted after the word "State," in compliance with the wish of some who thought the term *legal* equivocal, and favoring the idea that SLAVERY was legal in a moral view.—p. 1589.

Is it not hence evident that SLAVERY was the subject referred to by the whole article?

The debates of the Convention held in the several States to ratify the Constitution, at the same time show clearly what meaning it was thought the framers had conveyed:—In Virginia Mr. Madison said,

Another clause secures to us that property which we now possess. At present, if any slave elopes to any of those States where slaves are free, he becomes emancipated by their laws. For the laws of the States are uncharitable to one another in this respect. But in this Constitution, "no person held to service, or labor, in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up on claim of the party to whom such service or labor may be due." This clause was expressly inserted to enable owners of slaves to reclaim them. This is a better security than any that now exists.

Patrick Henry, in reply observed,

The clause which had been adduced by the gentleman was no more than this—that a runaway negro could be taken up in Maryland or New York.

Governor Randolph said,

But another clause of the Constitution proves the absurdity of the supposition. The words of the clause are, "No person held to service or labor in one State," &c. Every one knows that slaves are held to service and labor. If a citizen of this State, in consequence of this clause, can take his runaway slave in Maryland, &c.

General Pinckney in South Carolina Convention observed,

"We have obtained a right to recover our slaves, in whatever part of America they may take refuge, which is a right we had not before."

In North Carolina, Mr. Iredell

Begged leave to explain the reason of this clause. In some of the Northern States, they have emancipated all their slaves. If any of our slaves, said he, go there and remain there a certain time, they would, by the present laws, be entitled to their freedom, so that their masters could not get them again. This would be extremely prejudicial to the inhabitants of the Southern States, and to prevent it, this clause is inserted in the Constitution. Though the word *slave* be not mentioned, this is the meaning of it. The Northern delegates, owing to their particular scruples on the subject of slavery, did not choose the word *slave* to be mentioned.

But even if TWO clauses are immoral that is enough for our purpose, and shews that no honest man should engage to uphold them. Who has the right to construe and expound the laws? Of course the Courts of the Nation. The Constitution provides (Article 3, Section 2,) that the Supreme Court shall be the final and only interpreter of its meaning. What says the Supreme Court? That this clause does relate to slaves, and order their return. All the other

courts concur in this opinion. But, say some, the courts are corrupt on this question. Let us appeal to the people. Nine hundred and ninety-nine out of every thousand answer, that the courts have construed it rightly, and almost as many cheerfully support it. If the unanimous, concurrent, unbroken practice of every department of the Government, judicial, legislative, and executive, and the acquiescence of the people for fifty years, do not prove which is the true construction, then how and where can such a question ever be settled? If the people and the courts of the land do not know what they themselves mean, who has authority to settle their meaning for them?

If the Constitution is not what history, unbroken practice, and the courts prove that our fathers intended to make it, and what too, their descendants, this nation say they did make it, and agree to uphold,—who shall decide what the Constitution is?

This is the sense then in which the Nation understand that the promise is made to them. The Nation *understand* that the judge pledges himself to return fugitive slaves. The judge knows this when he takes the oath. And Paley expresses the opinion of all writers on morals, as well as the conviction of all honest men, when he says, "that a promise is binding in that sense in which the promiser thought at the time that the other party understood it."

OBJECTION II.

A promise to do an immoral act is not binding: therefore an oath to support the Constitution of the United States, does not bind one to support any provisions of that instrument which are repugnant to his ideas of right. And an abolitionist, thinking it wrong to return slaves, may as an office-holder, innocently and properly take an oath to support a Constitution which commands such return.

ANSWER. Observe that this objection allows the Constitution to be pro-slavery, and admits that there are clauses in it which no abolitionist ought to carry out or support.

And observe, further, that we all agree, that a bad promise is better broken than kept—that every abolitionist, who has before now taken the oath to the

Constitution, is bound to break it, and disobey the pro-slavery clauses of that instrument. So far there is no difference between us. But the point in dispute now is, whether a man, having found out that certain requirements of the Constitution are wrong, can, after that, innocently swear to support and obey them, *all the while meaning not to do so*.

Now I contend that such loose construction of our promises is contrary alike to honor, to fair dealing, and to truthfulness—that it tends to destroy utterly that confidence between man and man which binds society together, and leads, in matters of government, to absolute tyranny.

The Constitution is a series of contracts made by each individual with every other of the fourteen millions. A man's oath is evidence of his assent to this contract. If I offer a man the copy of an agreement, and he, after reading, swears to perform it, have I not a right to infer from his oath that he assents to the *rightfulness* of the articles of that paper? What more solemn form of expressing his assent could he select? A man's oath expresses his conviction of the rightfulness of the actions he promises to do, as well as his determination to do them. If this be not so, I can have no trust in any man's word. He may take my money, promise to do what I wish in return, and yet, keeping my money, tell me, on the morrow, that he shall not keep his promise, and never meant to, because the act, his conscience tells him, is wrong. Who would trust property to such men, or such maxims in the common affairs of life? Shall we not be as honest in the Senate House as on 'Change? The North makes a contract with the South by which she receives certain benefits, and agrees to render certain services. The benefits she carefully keeps—but the services she refuses to render, because immoral contracts are not binding! Is this fair dealing? It is the rule alike of law and common sense, that if we are not able, from *any cause*, to furnish the article we have agreed to, we ought to return the pay we have received. If power is put into our hands on certain conditions, and we find ourselves unable to comply with those conditions, we ought to surrender the power back to those who gave it.

Immoral laws are doubtless void, and should not be obeyed. But the question is here, whether one knowing a law to be immoral, may innocently promise to obey it in order to get into office? The people have settled the conditions on which one may take office. The first is, that he assent to their

Constitution. Is it honest to accept power with the intention at the time of not keeping the conditions?—The rightfulness of those conditions is not here the question.

OBJECTION III.

I swear to support the Constitution, as *I understand it*. Certain parts of it, in my opinion, contradict others and are therefore void.

ANSWER. Will any one take the title deed of his house and carry it to the man he bought of, and let him keep the covenants of that paper as he says "he understands them?" Do we not all recognize the justice of having some third, disinterested party to judge between two disputants about the meaning of contracts? Who ever heard of a contract of which each party was at liberty to keep as much as he thought proper?

As in all other contracts, so in that of the Constitution, there is a power provided to affix the proper construction to the instrument, and that construction both parties are bound to abide by, or repudiate the *whole* contract. That power is the Supreme Court of the United States.

Do we seek the common sense, practical view of this question? Go to the Exchange and ask any broker how many dollars he will trust any man with, who avows his right to make promises with the design, at the time, of breaking some parts, and not feeling called upon to state which those parts will be?

Do you seek the moral view of the point, which philosophers have taken? Paley says, "A promise is binding in that sense in which the promiser thought at the time of making that the other party understood it." Is there any doubt what meaning the great body of the American people attach to the Constitution and the official oath? They are that party to whom the promise is made.

But, say some, our lives are notice to the whole people what meaning we attach to the oath, and we will protest when we swear, that we do not include in our oath the pro-slavery clauses. You may as well utter the protest now, as when you are swearing—or at home, equally as well as within the State House. For no such protest can be of any avail. The Chief

Justice stands up to administer to me the oath of some office, no matter which. "Sir," say I, "I must take that oath with a qualification, excluding certain clauses." His reply will be, "Sir, I have no discretion in this matter. I am here merely to administer a prescribed form of oath. If you assent to it, you are qualified for your station. If you do not, you cannot enter. I have no authority given me to listen to exceptions. I am a servant—the people are my masters—here is what they require that you support, not this or that part of the Constitution, but '*the Constitution*,' that is, the *whole*."

Baffled here, I turn to the people. I publish my opinions in newspapers. I proclaim them at conventions, I spread them through the country on the wings of a thousand presses. Does this avail me? Yes, says Liberty party, if after this, men choose to vote for you, it is evident they mean you shall take the oath as you have given notice that you understand it.

Well, the voters in Boston, with this understanding, elect me to Congress, and I proceed to Washington. But here arises a difficulty,—my constituents at home have assented—but when I get to Congress, I find I am not the representative of Boston only, but of the whole country. The interests of Carolina are committed to my hands as well as those of Massachusetts; I find that the contract I made by my oath was not with Boston, but with the whole nation. It is the *nation* that gives me the power to declare war and make peace—to lay taxes on cotton, and control the commerce of New Orleans. The nation prescribed the conditions in 1789, when the Constitution was settled, and though Boston may be willing to accept me on other terms, Carolina is not willing. Boston has accepted my protest, and says, "Take office." Carolina says, "The oath you swear is sworn to me, as well as to the rest—I demand the whole bond." In other words, when I have made my protest, what evidence is there that *the nation*, the other party to the contract, assents to it? There can be none until that nation amends its Constitution. Massachusetts when she accepted that Constitution, bound herself to send only such men as could swear to return slaves. If by an underhand compromise with some of her citizens, she sends persons of other sentiments, she is perjured, and any one who goes on such an errand is a partner in the perjury. Massachusetts has no right to assent to my protest—she has no right to send representatives, except on certain conditions. She cannot vary those conditions, without leave from those whose interests are to be affected by the change, that is, the whole nation. Those conditions are

written down in the Constitution. Do she and South Carolina differ, as to the meaning? The Court will decide for them.

But, says the objector, do you mean to say that I swear to support the Constitution, not as I understand it, but as some judge understands it? Yes, I do—otherwise there is no such thing as law. This right of private judgment, for which he contends, exists in religion—but not in Government. Law is a rule *prescribed*. The party prescribing must have the right to construe his own rule, otherwise there would be as many laws as there are individual consciences. Statutes would be but recommendations if every man was at liberty to understand and obey them as he thought proper. But I need not argue this. The absurdity of a Government that has no right to govern—and of laws which have no fixed meaning—but which each man construes to mean what he pleases and obeys accordingly—must be evident to every one.

What more power did the most despotic of the English Stuarts ask, than the right, after having sworn to laws, to break such as their consciences disapproved? It is the essence of tyranny.

What is the Constitution of the United States? In good old fashioned times we thought we knew, when we had read it and listened to the court's exposition. But we have improved upon that. The Liberty party man says, it is for him "what he understands it." John C. Calhoun, of course, has the same right, and instead of "Liberty regulated by law," we have liberty regulated by fourteen millions of understandings!

The Liberty party man takes office on conditions, which, he says, are not binding upon him. He gives us notice that he shall use the power as he thinks right, without any regard to these conditions of his oath. Well, if this is law, it is good for all. John C. Calhoun can of course take office with the same broad liberty, and swear to support the Constitution "as *he* understands it." He has told us often what that "understanding" is—"to sustain Slavery." Of course having made this public, if, after that, Carolina sends him, according to Liberty party logic, it is evidence that Massachusetts assents to his "understanding," and accepts his oath with that meaning! Why I thought I had fathomed the pro-slavery depths of the Constitution when I read over all its wicked clauses—but that is skimming

only the surface, if the Constitution allows every man, to whom it commits power to use it, as he chooses to "understand" the conditions, and not as the nation understands them. If with this right, Abolitionists may take office and help Liberty, we must remember that by the same rule, slaveholders may take office and lawfully use all their power to help Slavery. If this be so, how absurd to keep crying out of this and the other thing it is "unconstitutional."

Away with such logic! If we have a Constitution, let us remember Jefferson's advice, and not make it "waste paper by construction." The man who tampers thus with the sacred obligation of an oath,—swears, and Jesuit like, keeps "reserved meanings" in his own breast,—does more harm to society by loosening the foundations of morals, than he would do good, did his one falsehood free every slave from the Potomac to the Del Norte.

OBJECTION IV.

"The oath does not mean that I will positively do what I swear to do, but only that I will do it, *or submit* to the penalty the law awards. If my actions in office don't suit the nation, let them impeach me."

ANSWER. That is, John Tyler may, without consulting Congress, plunge us into war with Mexico—incur fifty millions of public debt—lose a hundred thousand lives—and the *sufficient recompense* to this nation will be to impeach John Tyler, Esq., and send him home to his slaves! These are the wise safeguards of Constitutional liberty! He has faithfully kept it "as he understands it." What is a Russian slave? One who holds life, property, and all, at the mercy of the Czar's idea of right. Does not this description of the power every officer has here, under our Constitution, reduce Americans to the same condition?

But, is it true that the bearing of the penalty is an excuse for breach of our official oaths?

The Judge who, in questions of divorce, has trifled with the sanctity of the marriage tie—who, in matters of property has decided unjustly, and taken bribes—in capital cases has so dealt judgment as to send innocent men to the gallows—may cry out, "If you don't like me, impeach me." But will

impeachment restore the dead to life, or the husband to his defamed wife? Would the community consider his submission to impeachment as equivalent to the keeping of his oath of office, and thenceforward view him as an honest, truth-speaking, unperjured man? It is idle to suppose so. Yet the interests committed to some of our officeholders' keeping, are more important often than even those which a Judge controls. And we must remember that men's ideas of right always differ. To admit such a principle into the construction of oaths, if it enable one man to do much good, will enable scoundrels who creep into office to do much harm, "according to *their* consciences." But yet the rule, if it be admitted, must be universal. Liberty becomes, then, matter of accident.

OBJECTION V.

I shall resign whenever a case occurs that requires me to aid in returning a fugitive slave.

ANSWER. "The office-holder has promised active obedience to the Constitution in every exigency which it has contemplated and sought to provide for. If he promised, not meaning to perform in certain cases, is he not doubly dishonest? Dishonest to his own conscience in promising to do wrong, and to his fellow-citizens in purposing from the first to break his oath, as he knew they understood it? If he had sworn, not regarding anything as immoral which he bound himself to do, and afterwards found in the oath something against his conscience of which he was not at first aware, or if by change of views he had come to deem sinful what before he thought right, then doubtless, by promptly resigning, he might escape guilt. But is not the case different, when among the acts promised are some known at the time to be morally wrong? 'It is a sin to swear unto sin,' says the poet, although it be, as he truly adds, 'a greater sin to keep the sinful oath.'"

The captain has no right to put to sea, and resign when the storm comes. Besides what supports a wicked government more than good men taking office under it, even though they secretly determine not to carry out all its provisions? The slave balancing in his lonely hovel the chance of escape, knows nothing of your secret reservations, your future intentions. He sees only the swarming millions at the North ostensibly sworn to restore him to

his master, if he escape a little way. Perchance it is your false oath, which you don't mean to keep, that makes him turn from the attempt in despair. He knows you only—the world knows only by your *actions*, not your *intentions*, and those side with his master. The prayer which he lifts to Heaven, in his despair, numbers you rightly among his oppressors.

OBJECTION VI.

I shall only take such an office as brings me into no connection with slavery.

ANSWER. Government is a whole; unless each in his circle aids his next neighbor, the machine will stand still. The Senator does not himself return the fugitive slave, but he appoints the Marshal, whose duty it is to do so. The State representative does not himself appoint the Judge who signs the warrant for the slave's recapture, but he chooses the United States Senator who does appoint that Judge. The elector does not himself order out the militia to resist "domestic violence," but he elects the President, whose duty requires, that a case occurring, he should do so.

To suppose that each of these may do that part of his duty that suits him, and leave the rest undone, is *practical anarchy*. It is bringing ourselves precisely to that state which the Hebrew describes. "In those days there was no king in Israel, but each man did what was right in his own eyes." This is all consistent in us, who hold that man is to do right, even if anarchy follows. How absurd to set up such a scheme, and miscall it a *government*,—where nobody governs, but everybody does as he pleases.

OBJECTION VII.

As men and all their works are imperfect, we may innocently "support a Government which, along with many blessings, assists in the perpetration of some wrong."

ANSWER. As nobody disputes that we may rightly assist the worst Government in doing good, provided we can do so without at the same time aiding it in the wrong it perpetrates, this must mean, of course, that it is right to aid and obey a Government *in doing wrong*, if we think that, on the

whole, the Government effects more good than harm. Otherwise the whole argument is irrelevant, for this is the point in dispute; since every office of any consequence under the United States Constitution has some immediate connection with Slavery. Let us see to what lengths this principle will carry one. Herod's servants, then, were right in slaying every child in Bethlehem, from two years old and under, provided they thought Herod's Government, on the whole, more a blessing than a curse to Judea! The soldiers of Charles II. were justified in shooting the Covenanters on the muirs of Scotland, if they thought his rule was better, on the whole, for England, than anarchy! According to this theory, the moment the magic wand of Government touches our vices, they start up into virtues! But has Government any peculiar character or privilege in this respect? Oh, no—Government is only an association of individuals, and the same rules of morality which govern my conduct in relation to a thousand men, ought to regulate my conduct to any one. Therefore, I may innocently aid a man in doing wrong, if I think that, on the whole, he has more virtues than vices. If he gives bread to the hungry six days in the week, I may rightly help him, on the seventh, in forging bank notes, or murdering his father! The principle goes this length, and every length, or it cannot be proved to exist at all. It ends at last, practically, in the old maxim, that the subject and the soldier have no right to keep any conscience, but have only to obey the rulers they serve: for there are few, if any, Governments this side of Satan's, which could not, in some sense, be said to do more good than harm. Now I candidly confess, that I had rather be covered all over with inconsistencies, in the struggle to keep my hands clean, than settle quietly down on such a principle as this. It is supposing that we may—

"To do a great right, do a little wrong;"

a rule, which the master poet of human nature has rebuked. It is doing evil that good may come—a doctrine, of which an Apostle has pronounced the condemnation.

And let it be remembered that in dealing with the question of slavery, we are not dealing with extreme cases. Slavery is no minute evil which lynx-eyed suspicion has ferreted out. Every sixth man is a slave. The ermine of justice is stained. The national banner clings to the flag-staff heavy with

blood. "The preservation of slavery," says our oldest and ablest statesman, "is the vital and animating *spirit* of the National Government."

Surely IF it be true that a man may justifiably stand connected with a government in which he sees some slight evils—still it is also true, even then, that governments *may* sin so atrociously, so enormously, may make evil so much the *purpose* of their being, as to render it the duty of honest men to wash their hands of them.

I may give money to a friend whose life has some things in it which I do not fully approve—but when his nights are passed in the brothel, and his days in drunkenness, when he uses his talents to seduce others, and his gold to pave their road to ruin, surely the case is changed.

I may perhaps sacrifice health by staying awhile in a room rather overheated, but I shall certainly see it to be my duty to rush out, when the whole house is in full blaze.

OBJECTION VIII.

God intended that society and governments should exist. We therefore are bound to support them. He has conferred upon us the rights of citizenship in this country, and we cannot escape from the responsibility of exercising them. God made us *citizens*.

ANSWER. This reminds me of an old story I have heard. When the Legislature were asked to set off a portion of the town of Dorchester and call it South Boston, the old minister of the town is said to have objected, saying, "God made it Dorchester, and Dorchester it ought to be."

God made us social beings, it is true, but *society* is not necessarily the Constitution of the United States! Because God meant some form of government should exist, does not at all prove that we are justified in supporting a wicked one. Man confers the rights and regulates the duties of citizenship. God never made a *citizen*, and no one will escape, as a man, from the sins he commits as a citizen. This is the first time that it has ever been held an excuse for sin that we "went with the multitude to do evil!"

Certainly we can be under no *such* responsibility to become and remain *citizens*, as will excuse us from the sinful acts which as such citizens we are called to commit. Does God make obligatory on his creature the support of institutions which require him to do acts in themselves wrong? To suppose so, were to confound all the rules of God's moral kingdom.

President Wayland has lately been illustrating, and giving his testimony to the principle, that a combination of men cannot change the moral character of an act, which is in itself sinful—that the law of morals is binding the same on communities, corporations, &c. as on individuals.

After describing slavery, and saying that to hold a man in such a state is wrong—he goes on:

"I will offer but one more supposition. Suppose that any number, for instance one half of the families in our neighborhood, should by law enact that the weaker half should be slaves, that we would exercise over them the authority of masters, prohibit by law their instruction, and concert among ourselves means for holding them permanently in their present situation. In what manner would this alter the moral aspect of the case?"

A law in this case is merely a determination of one party, in which all unite, to hold the other party in bondage; and a compact by which the whole party bind themselves to assist every individual of themselves to subdue all resistance from the other party, and guaranteeing to each other that exercise of this power over the weaker party which they now possess.

Now I cannot see that this in any respect changes the nature of the parties. They remain, as before, human beings, possessing the same intellectual and moral nature, holding the same relations to each other and to God, and still under the same unchangeable law, Thou shalt love thy neighbor as thyself. By the act of holding a man in bondage, this law is violated. Wrong is done, moral evil is committed. In the former case it was done by the individual; now it is done by the individual and the society. Before, the individual was responsible only for his own wrong; now he is responsible both for his own, and also, as a member

of the society, for all the wrong which the society binds itself to uphold and render perpetual.

The scriptures frequently allude to the fact, that wrong done by law, that is by society, is amenable to the same retribution as wrong done by the individual. Thus, Psalm 94:20-23. 'Shall the throne of iniquity have fellowship with them which frame mischief by a law, and gather themselves together against the soul of the righteous, and condemn the innocent blood? But the Lord is my defence; and my God is the rock of my refuge. And he shall bring upon them their own iniquity, and shall cut them off in their own wickedness; yea, the Lord our God shall cut them off' So also Isaiah 10:1-4. 'Wo unto them that decree unrighteous decrees, and that write grievousness which they have prescribed.' &c. Besides, persecution for the sake of religious opinion is always perpetrated by law; but this in no manner affects its moral character.

There is, however, one point of difference, which arises from the fact that this wrong has been established by law. It becomes a social wrong. The individual, or those who preceded him, may have surrendered their individual right over it to the society. In this case it may happen that the individual cannot act as he might act, if the law had not been made. In this case the evil can only be eradicated by changing the opinions of the society, and inducing them to abolish the law. It will however be apparent that this, as I said before, does not change the relation of the parties either to each other or to God. The wrong exists as before. The individual act is wrong. The law which protects it is wrong. The whole society, in putting the law into execution, is wrong. Before only the individual, now, the whole society, becomes the wrong doer, and for that wrong, both the individuals and the society are held responsible in the sight of God."

If such "individual act is wrong," the man who knowingly does it is surely a sinner. Does God, through society, require men to sin?

OBJECTION IX.

If not being non-resistants, we concede to mankind the right to frame Governments, which must, from the very nature of man, be more or less evil, the right or duty to support them, when framed, necessarily follows.

ANSWER. I do not think it follows at all. Mankind, that is, any number of them, have a right to set up such forms of worship as they see fit, but when they have done so, does it necessarily follow that I am in duty bound to support any one of them, whether I approve it or not? Government is precisely like any other voluntary association of individuals—a temperance or anti-slavery society, a bank or railroad corporation. I join it, or not, as duty dictates. If a temperance society exists in the village where I am, that love for my race which bids me seek its highest good, commands me to join it. So if a Government is formed in the land where I live, the same feeling bids me to support it, if I innocently can. This is the whole length of my duty to Government. From the necessity of the case, and that constitution of things which God has ordained, it follows that in any specified district, the majority must rule—hence results the duty of the minority to submit. But we must carefully preserve the distinction between *submission* and *obedience*—between *submission* and *support*. If the majority set up an immoral Government, I obey those laws which seem to me good, because they are good—and I submit to all the penalties which my disobedience of the rest brings on me. This is alike the dictate of common sense, and the command of Christianity. And it must be the true doctrine, since any other obliges me to obey the majority if they command me to commit murder, a rule which even the Tory Blackstone has denied. Of course for me to do anything I deem wrong, is the same, in quality, as to commit murder.

OBJECTION X.

But it is said, your theory results in good men leaving government to the dishonest and wicked.

ANSWER. Well, if to sustain government we must sacrifice honesty, government could not be in a more appropriate place, than in the hands of dishonest men.

But it by no means follows, that if I go out of government, I leave nothing but dishonest men behind. An act may be sin to me, which another may

sincerely think right—and if so, let him do it, till he changes his mind. I leave government in the hands of those whom I do not think as clear-sighted as myself, but not necessarily in the hands of the dishonest. Whether it be so in this country now, is not, at present, the question, but whether it would be so necessarily, in all cases. The real question is, what is the duty of those who presume to think that God has given them clearer views of duty than the bulk of those among whom they live?

Don't think us conceited in supposing ourselves a little more enlightened than our neighbors. It is no great thing after all to be a little better than a lynching—mobocratic—slaveholding—debt repudiating community.

What then is the duty of such men? Doubtless to do all they can to extend to others the light they enjoy.

Will they best do so by compromising their principles? by letting their political life give the lie to their life of reform? Who will have the most influence, he whose life is consistent, or he who says one thing to-day, and swears another thing to-morrow—who looks one way and rows another? My object is to let men *understand me*, and I submit that the body of the Roman people understood better, and felt more earnestly, the struggle between the people and the princes, when the little band of democrats *left the city* and encamped on *Mons Sacer, outside*, than while they remained mixed up and voting with their masters, shoulder to shoulder. *Dissolution* is our *Mons Sacer*—God grant that it may become equally famous in the world's history as the spot where the right triumphed.

It is foolish to suppose that the position of such men, divested of the glare of official distinction, has no weight with the people. If it were so, I am still bound to remember that I was not sent into the world *to have influence*, but to do my duty according to my own conscience. But it is not so. People do know an honest man when they see him. (I allow that this is so rare an event now-a-days, as almost to justify one in supposing they might have forgotten how he looked.) They will give a man credit, when his life is one manly testimony to the truthfulness of his lips. Even Liberty party, blind as she is, has light enough to see that "Consistency is the jewel, the everything of such a cause as ours." The position of a non-voter, in a land where the ballot is so much idolized, kindles in every beholder's bosom something of the

warm sympathy which waits on the persecuted, carries with it all the weight of a disinterested testimony to truth, and pricks each voter's conscience with an uneasy doubt, whether after all voting *is* right. There is constantly a Mordecai in the gate.

I admit that we should strive to have a *political* influence—for with politics is bound up much of the welfare of the people. But this objection supposes that the ballot box is the *only* means of political influence. Now it is a good thing that every man should have the right to vote. But it is by no means necessary that every man should actually vote, in order to influence his times. We by no means necessarily desert our social duty when we refuse to take office, or to confer it. Lafayette did better service to the cause of French liberty when he retired to Lagrange and refused to acknowledge Napoleon, than he could have done had he stood, for years, at the tyrant's right hand. From the silence of that chamber there went forth a voice—from the darkness of that retreat there burst forth a light; feeble indeed at first, like the struggling beams of the morning, but destined like them to brighten into perfect day.

This objection, that we non-voters shall lose all our influence, confounds the broad distinction between *influence* and *power*. *Influence* every honest man must and will have, in exact proportion to his honesty and ability. God always annexes influence to worth. The world, however unwilling, can never get free from the influence of such a man. This influence the possession of office cannot give, nor the want of it take away. For the exercise of such influence as this, man is responsible. *Power* we buy of our fellow men at a certain price. Before making the bargain it is our duty to see that we do not pay "too dear for our whistle." He who buys it at the price of truth and honor, buys only weakness—and sins beside.

Of those who go to the utmost verge of honesty in order to reach the seats of worldly power, and barter a pure conscience for a weighty name, it may be well said with old Fuller, "They need to have steady heads who can dive into these gulfs of policy, and come out with a safe conscience."

OBJECTION XI.

This withdrawing from government is pharisaical—"Shall we, 'weak, sinful men,'" one says, "perhaps even more sinful than the slaveholder, cry out, No Union with Slaveholders?" Such a course is wanting in brotherly kindness.

ANSWER. Because we refuse to aid a wrong-doer in his sin, we by no means proclaim, or assume, that we think our *whole character* better than his. It is neither pharisaical to have opinions, nor presumptuous to guide our lives by them. If I have joined with others in doing wrong, is it either presumptuous or unkind, when my eyes are opened, to refuse to go any further with them in their career of guilt? Does love to the thief require me to help him in stealing? Yet this is all we refuse to do. We will extend to the slaveholder all the courtesy he will allow. If he is hungry, we will feed him; if he is in want, both hands shall be stretched out for his aid. We will give him full credit for all the good that he does, and our deep sympathy in all the temptations under whose strength he falls. But to help him in his sin, to remain partners with him in the slave-trade, is more than he has a right to ask. He would be a strange preacher who should set out to reform his circle by joining in all their sins! It is a principle similar to that which the tipsy Duke of Norfolk acted on, when seeing a drunken friend in the gutter, he cried out, "My dear fellow, I can't help you out, but I'll do better, I'll lie down by your side."

OBJECTION XII.

But consider, the abstaining from all share in Government will leave bad men to have everything their own way—admit Texas—extend slavery, &c. &c.

ANSWER. That is no matter of mine. God, the great conservative power of the Universe, when he established the right, saw to it that it should always be the safest and best. He never laid upon a poor finite worm the staggering load of following out into infinity the complex results of his actions. We may rest on the bosom of Infinite Wisdom, confident that it is enough for us to do justice, he will see to it that happiness results.

OBJECTION XIII.

But the same conscientious objection against promising your support to government, ought to lead you to avoid actually giving your support to it by paying taxes or sueing in the courts.

ANSWER. This is what logicians call a *reductio ad absurdum*: an attempt to prove our principle unsound by showing that, fairly carried out, it leads to an absurdity. But granting all it asks, it does not saddle us with any absurdity at all. It is perfectly possible to live without petitioning, sueing, or holding stocks. Thousands in this country have lived, died, and been buried, without doing either. And does it load us with any absurdity to prove that we shall be obliged to do from principle, what the majority of our fellow-citizens do from choice? We lawyers may think it is an absurdity to say a man can't sue, for, like the Apostle at Ephesus, it touches our "craft," but that don't go far to prove it. Then, as to taxes, doubtless many cases might be imagined, when every one would allow it to be our duty to resist the slightest taxation, did Christianity allow it, with "war to the hilt." If such cases may ever arise, why may not this be one?

Until I become an Irishman, no one will ever convince me that I ought to vote, by proving that I ought not to pay taxes! Suppose all these difficulties do really encompass us, it will not be the first time that the doing of one moral duty has revealed a dozen others which we never thought of. The child has climbed the hill over his native village, which he thought the end of the world, and lo! there are mountains beyond! He won't remedy the matter by creeping back to his cradle and disbelieving in mountains!

But then, is there any such inconsistency in non-voters sueing and paying taxes?

Look at it. A. and B. have agreed on certain laws, and appointed C. to execute them. A. owes me, who am no party to the contract, a just debt, which his laws oblige him to pay. Do I acknowledge the rightfulness of his relation to B. and C. by asking C. to use the power given him, in my behalf? It appears to me that I do not. I may surely ask A. to pay me my debt—why not then ask the keeper, whom he has appointed over himself, to make him do so?

I am a prisoner among pirates. The mate is abusing me in some way contrary to their laws. Do I recognize the rightfulness of the Captain's

authority, by asking him to use the power the mate has consented to give him, to protect me? It seems to me that I do not necessarily endorse the means by which a man has acquired money or power, when I ask him to use either in my behalf.

An alien does not recognize the rightfulness of a government by living under it. It has always been held that an English subject may swear allegiance to an usurper and yet not be guilty of treason to the true king. Because he may innocently acknowledge the king *de facto* (the king *in deed*,) without assuming him to be king *de jure* (king by *right*.) The distinction itself is as old as the time of Edward the First. The principle is equally applicable to suits. It has been universally acted on and allowed. The Catholic, who shrank from acknowledging the heretical Government of England, always, I believe, sued in her courts.

Who could convince a common man, that by sueing in Constantinople or Timbuctoo, he does an act which makes him responsible for the character of those governments?

Then, as for taxes. It is only our voluntary acts for which we are responsible. And when did government ever trust tax-paying to the voluntary good will of its subjects? When it does so, I, for one, will refuse to pay.

When did any sane man conclude that our Saviour's voluntary payment of a tax acknowledged the rightfulness of Rome's authority over Judea?

"The States," says Chief Justice Marshall, "have only not to elect Senators, and this government expires without a struggle."

Every November, then, we *create* the government anew. Now, what "instinct" will tell a common-sense man, that the act of a *sovereign*,—voting—which creates a wicked government, is, *essentially* the same as the submission of a *subject*,—tax-paying,—an act done without our consent. It should be remembered, that we vote as *sovereigns*,—we pay taxes as *subjects*. Who supposes that the humble tax-payer of Austria, who does not, perhaps, know in what name the charter of his bondage runs, is responsible for the doings of Metternich? And what sane man likens his position to that of the voting sovereign of the United States? My innocent acts may, through

others' malice, result in evil. In that case, it will be for my best judgment to determine whether to continue or cease them. They are not thereby rendered essentially sinful. For instance, I walk out on Sabbath morning. The priest over the way will exclaim, "Sabbath-breaker," and the infidel will delude his followers, by telling them I have no regard for Christianity. Still, it will be for me to settle which, in present circumstances, is best,—to remain in, and not be misconstrued, or to go out and bear a testimony against the superstitious keeping of the day. Different circumstances will dictate different action on such a point.

I may often be the *occasion* of evil when I am not responsible for it. Many innocent acts *occasion* evil, and in such case all I am bound to ask myself before doing such *innocent act*, is, "Shall I occasion, on the whole, more harm or good." There are many cases where doing a duty even, we shall occasion evil and sin in others. To save a slaveholder from drowning, when we know he has made a will freeing his slaves, would put off, perhaps forever, their emancipation, but of course that is not my fault. This making a man responsible for all the evil his acts, *incidentally*, without his will, occasion, reminds me of that principle of Turkish law which Dr. Clarke mentions, in his travels, and which they call "homicide by an intermediate cause." The case he relates is this: A young man in love poisoned himself, because the girl's father refused his consent to the marriage. The Cadi sentenced the father to pay a fine of \$80, saying "if you had not had a daughter, this young man had not loved; if he had not loved, he had never been disappointed; if not disappointed, he would never have taken poison." It was the same Cadi possibly, who sentenced the island of Samos to pay for the wrecking of a vessel, on the principle that "if the island had not been in the way, the vessel would never have been wrecked!"

Then of taxes on imports. Buying and selling, and carrying from country to country, is good and innocent. But government, if I trade here, will take occasion to squeeze money out of me. Very well. I shall deliberate whether I will cease trading, and deprive them of the opportunity, or go on and use my wealth to reform them. 'Tis a question of expediency, not of right, which my judgment, not my conscience, must settle. An act of mine, innocent in itself, and done from right motives, no after act of another's can make a sin. To import, is rightful. After-taxation, against my consent, cannot make it

wrong. Neither am I obliged to smuggle, in order to avoid it. I include in these remarks, all taxes, whether on property, or imports, or railroads.

A chemist, hundreds of years ago, finds out how to temper steel. The art is useful for making knives, lancets, and machinery. But he knows that the bad will abuse it by making swords and daggers. Is he responsible? Certainly not.

Similar to this is trading in America,—knowing government will thus have an opportunity to increase its revenue.

But suppose the chemist to see two men fighting, one has the other down,—to the first our chemist presents a finely tempered dagger.

Such is voting under the United States Constitution—appointing an officer to help the oppressor.

The difference between voting and tax-paying is simply this: I may do an act right in itself, though I know some evil will result. Paul was bound to preach the gospel to the Jews, though he knew some of them would thereby be led to add to their sins by cursing and mobbing him.

So I may locate property in Philadelphia, trade there, and ride on its railroads, though I know government will, without my consent, thereby enrich itself. Other things being equal, of course I shall not allow it the opportunity. But the advantages and good results of my doing so, *may be* such as would make it my duty there to live and trade, even subject to such an evil.

But on the other hand, I may not do an act wrong in itself to secure any amount of fancied good.

Now, appointing a man by my vote to a pro-slavery office, (and such is every one under the United States Constitution,) is wrong in itself, and no other good deeds which such officer may do, will justify an abolitionist in so appointing him.

Let it not be said, that this reasoning will apply to voting—that voting is the right of every human being, (which I grant only for the sake of argument,) and innocent in itself.

Voting *under our Constitution* is appointing a man to swear to protect, and actually to protect slavery. Now, appointing agents generally is the right of every man, and innocent in itself, but appointing an agent to commit a murder is sin.

I trade, and government taxes me; do I authorize it? No.

I vote, and the marshal whom my agent appoints, returns a slave to South Carolina. Do I authorize it? *Yes*. I knew it would be his *sworn duty*, when I voted; and I assented to it, by voting under the Constitution which makes it his duty. If I trade, it is said, I may foresee that government will be helped by the taxes I pay, therefore I ought not to trade. But I do not trade *for the purpose* of paying taxes! And if I am to be charged with all the foreseen results of my actions, then Garrison is responsible for the Boston mob!

The reason why I am responsible for the pro-slavery act of a United States officer, for whom I have voted, is this: I must be supposed to have *intended* that which my agent is *bound* by his contract with me (that is, his oath of office) to do.

Allow me to request our opposers to keep distinctly in view the precise point in debate. This is not whether Massachusetts can rightfully trade and make treaties with South Carolina, although she knows that such a course will result in strengthening a wrongdoer. Such are most of the cases which they consider parallel to ours, and for permitting which they charge us with inconsistency. But the question really is, whether Massachusetts can join hands and strength with South Carolina, for the express and avowed purpose of sustaining Slavery. This she does in the Constitution. For he who swears to support an instrument of twelve clauses, swears to support one as well as another,—and though one only be immoral,—still he swears to do an immoral act. Now, my conviction is, "which fire will not burn out of me," that to return fugitive slaves is sin—to promise so to do, and not do it, is, if possible, baser still; and that any conjunction of circumstances which makes either necessary, is of the Devil, and not of God.

OBJECTION XIV.

Duty requires of a non-voter to quit the country, and go where his taxes will not help to build up slavery.

ANSWER. God gave me my birth here. Because bad men about me "play such tricks before high Heaven, as make the angels weep," does it oblige me to quit? I have as good right here as they. If they choose to leave, let them—I Shall remain. 'Twould be a pretty thing, indeed, if, as often as I found myself next door to a bad man, who would bring up his children to steal my apples and break my windows, I were obliged to take the temptation away by cutting down all my apple trees and moving my house further west, into the wilderness. This would be, in good John Wesley's phrase, "giving up all the good times to the devil," with a witness.

OBJECTION XV.

"Society has the right to prescribe the terms, upon the expressed or implied agreement to comply with which a person may reside within its limits."

ANSWER. This principle I utterly deny. All that Society has a right to demand is peaceful submission to its exactions:—*consent* they have neither the power nor the right to exact or to imply. Twenty men live on a lone island. Nineteen set up a government and say, every man who lives there shall worship idols. The twentieth submits to all their laws, but refuses to commit idolatry. Have they the *right* to say, "Do so, or quit;" or, to say, "If you stay, we will consider you as impliedly worshipping idols?" Doubtless they have the *power*, but the majority have no *rights*, except those which justice sanctions. Will the objector show me the justice of his principle? I was born here. I ask no man's permission to remain. All that any man or body of men have a right to infer from my staying here, is that, in doing this *innocent act*, I think, that on the whole, I am effecting more good than harm. Lawyers say, I cannot find this right laid down in the books. That will not trouble me. Some old play has a character in it who never ties his neckcloth without a warrant from Mr. Justice Overdo. I claim no relationship to that very scrupulous individual.

OBJECTION XVI.

These clauses, to which you refer, are inconsistent with the Preamble of the Constitution, which describes it as made "to establish justice" and "secure the blessings of liberty to ourselves and our posterity:" And as, when two clauses of the same instrument are inconsistent, one must yield and be held void—we hold these three clauses void.

ANSWER. A *specific* clause is not to be held void on account of general terms, such as those of the preamble. It is rather to be taken as an exception, allowed and admitted at the time, to those general terms.

Again. You say they are inconsistent. But the Courts and the People do not think so. Now they, being the majority, settle the law. The question then is, whether the law being settled,—and according to your belief settled immorally,—you will *volunteer* your services to execute it and carry it into effect? This you do by becoming an officeholder. It seems to me this question can receive but one answer from honest men.

LAST OF ALL, THE OBJECTOR CRIES OUT,

The Constitution may be *amended*, and I shall vote to have it changed.

ANSWER. But at present it is necessary to swear to support it *as it is*. What the Constitution may become, a century hence, we know not; we speak of it *as it is*, and repudiate it *as it is*. How long may one promise to do evil, in hope some time or other to get the power to do good? We will not brand the Constitution of the United States as pro-slavery, after—it had ceased to be so! This objection reminds me of Miss Martineau's story of the little boy, who hurt himself, and sat crying on the sidewalk. "Don't cry!" said a friend, "it won't hurt you tomorrow."—"Well then," said the child, "I won't cry tomorrow."

We come then, it seems to me, back to our original conclusion: that the man who swears to support the Constitution, swears to support the whole of it, pro-slavery clauses and all,—that he swears to support it *as it is*, not as it hereafter may become,—that he swears to support it in the sense given to it by the Courts and the Nation, not as he chooses to understand it,—and that the Courts and the Nation expect such an one in office to do his share toward the suppression of slave, as well as other, insurrections, and to aid

the return of fugitive slaves. After an *abolitionist* has taken such an oath, or by his vote sent another to take it for him, I do not see how he can look his own principles in the face.

Thou that preachest a man should not steal, dost thou lie?

We who call upon the slaveholder to do right, no matter what the consequences or the cost, are certainly bound to look well to our own example. At least we can hardly expect to win the master to do justice by *setting him an example of perjury*. It is almost an insult in an abolitionist, while not willing to sacrifice even a petty ballot for his principles, to demand of the slaveholder that he give up wealth, home, old prejudices and social position at their call.

EXTRACTS FROM J.Q. ADAMS.

The benefits of the Constitution of the United States, were the restoration of credit and reputation, to the country—the revival of commerce, navigation, and ship building—the acquisition of the means of discharging the debts of the Revolution, and the protection and encouragement of the infant and drooping manufactures of the country. All this, however, as is now well ascertained, was insufficient to propitiate the rulers of the Southern States to the adoption of the Constitution. What they specially wanted was *protection*. Protection from the powerful and savage tribes of Indians within their borders, and who were harassing them with the most terrible of wars—and protection from their own negroes—protection from their insurrections—protection from their escape—protection even to the trade by which they were brought into this country—protection, shall I not blush to say, protection to the very bondage by which they were held. Yes! it cannot be denied—the slaveholding lords of the South prescribed, as a condition of their assent to the Constitution, three special provisions to secure the perpetuity of their dominion over their slaves. The first was the immunity for twenty years of preserving the African slave-trade; the second was the stipulation to surrender fugitive slaves—an engagement positively prohibited by the laws of God, delivered from Sinai; and thirdly, the exaction, fatal to the principles of popular representation, of a representation for slaves—for articles of merchandise, under the name of persons.

In outward show, it is a representation of persons in bondage; in fact, it is a representation of their masters,—the oppressor representing the oppressed.—Is it in the compass of human imagination to devise a more perfect exemplification of the art of committing the lamb to the tender custody of the wolf?—The representative is thus constituted, not the friend, agent and trustee of the person whom he represents, but the most inveterate of his foes. To call government thus constituted a democracy, is to insult the understanding of mankind. It is doubly tainted with the infection of riches

and of slavery. *There is no name in the language of national jurisprudence that can define it*—no model in the records of ancient history, or in the political theories of Aristotle, with which it can be likened. Here is one class of men, consisting of not more than one-fortieth part of the whole people, not more than one-thirtieth part of the free population, exclusively devoted to their personal interests identified with their own as slaveholders of the same associated wealth, and wielding by their votes, upon every question of government or of public policy, two-fifths of the whole power of the House. In the Senate of the Union, the proportion of the slaveholding power is yet greater. Its operation upon the government of the nation is, to establish an artificial majority in the slave representation over that of the free people, in the American Congress, and thereby to make the **PRESERVATION, PROPAGATION, AND PERPETUATION OF SLAVERY THE VITAL AND ANIMATING SPIRIT OF THE NATIONAL GOVERNMENT.**—The result is seen in the fact that, at this day, the President of the United States, the President of the Senate, the Speaker of the House of Representatives, and five out of nine of the Judges of the Supreme Judicial Courts of the United States, are not only citizens of slaveholding States, but individual slaveholders themselves. So are, and constantly have been, with scarcely an exception, all the members of both Houses of Congress from the slaveholding States; and so are, in immensely disproportionate numbers, the commanding officers of the army and navy; the officers of the customs; the registers and receivers of the land offices, and the post-masters throughout the slaveholding States.

Fellow-citizens,—with a body of men thus composed, for legislators and executors of the laws, what will, what must be, what has been your legislation? The numbers of freemen constituting your nation are much greater than those of the slaveholding States, bond and free. You have at least three-fifths of the whole population of the Union. Your influence on the legislation and the administration of the Government ought to be in the proportion of three to two. But how stands the fact? Besides the legitimate portion of influence exercised by the slaveholding States by the measure of their numbers, here is an intrusive influence in every department, by a representation, nominally of persons, but really of property, ostensibly of slaves, but effectively of their masters, overbalancing your superiority of numbers, adding two-fifths of supplementary power to the two-fifths fairly

secured to them by the compact, **CONTROLLING AND OVERRULING THE WHOLE ACTION OF YOUR GOVERNMENT AND HOME AND ABROAD**, and warping it to the sordid private interest and oppressive policy of 300,000 owners of slaves.

In the Articles of Confederation, there was no guaranty for the property of the slaveholder—no double representation of him in the Federal councils—no power of taxation—no stipulation for the recovery of fugitive slaves. But when the powers of *government* came to be delegated to the Union, the South—that is, South Carolina and Georgia—refused their subscription to the parchment, till it should be saturated with the infection of slavery, which no fumigation could purify, no quarantine could extinguish. The freemen of the North gave way, and the deadly venom of slavery was infused into the Constitution of freedom. Its first consequence has been to invert the first principle of Democracy, that the will of the majority shall rule the land. By means of the double representation, the minority command the whole, and a **KNOT OF SLAVEHOLDERS GIVE THE LAW AND PRESCRIBE THE POLICY OF THE COUNTRY.**

THE ANTI-SLAVERY EXAMINER.

**ADDRESS TO THE FRIENDS OF
CONSTITUTIONAL LIBERTY,**

**ON THE VIOLATION BY THE UNITED
STATES HOUSE OF REPRESENTATIVES**

**OF THE RIGHT OF PETITION AT THE
EXECUTIVE COMMITTEE**

OF THE AMERICAN ANTI-SLAVERY SOCIETY.

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ADDRESS.

TO THE FRIENDS OF CONSTITUTIONAL LIBERTY:—

There was a time, fellow citizens, when the above address would have included the **PEOPLE OF THE UNITED STATES**. But, alas! the freedom of the press, freedom of speech, and the right of petition, are now hated and dreaded by our Southern citizens, as hostile to the perpetuity of human bondage; while, by their political influence in the Federal Government, they have induced numbers at the North to unite with them in their sacrilegious crusade against these inestimable privileges.

On the 28th January last, the House of Representatives, on motion of Mr. Johnson, from Maryland, made it a standing **RULE** of the House that "no petition, memorial, resolution, or other paper, praying the abolition of slavery in the District of Columbia, or any State or Territory of the United States, in which it now exists, **SHALL BE RECEIVED BY THE HOUSE, OR ENTERTAINED IN ANY WAY WHATEVER.**"

Thus has the **RIGHT OF PETITION** been immolated in the very Temple of Liberty, and offered up, a propitiatory sacrifice to the demon of slavery. Never before has an outrage so unblushingly profligate been perpetrated upon the Federal Constitution. Yet, while we mourn the degeneracy which this transaction evinces, we behold, in its attending circumstances, joyful omens of the triumph which awaits our struggle with the hateful power that now perverts the General Government into an engine of cruelty and loathsome oppression.

Before we congratulate you on these omens, let us recall to your recollection the steps by which the enemies of human rights have advanced to their present rash and insolent defiance of moral and constitutional obligation.

In 1831, a newspaper was established in Boston, for the purpose of disseminating facts and arguments in favor of the duty and policy of immediate emancipation. The Legislature of Georgia, with all the

recklessness of despotism, passed a law, offering a reward of \$5000, for the abduction of the Editor, and his delivery in Georgia. As there was no law, by which a citizen of Massachusetts could be tried in Georgia, for expressing his opinions in the capital of his own State, this reward was intended as the price of **BLOOD**. Do you start at the suggestion? Remember the several sums of \$25,000, of \$50,000, and of \$100,000, offered in Southern papers for kidnapping certain abolitionists. Remember the horrible inflictions by Southern Lynch clubs. Remember the declaration, in the United States Senate, by the brazen-fronted Preston, that, should an abolitionist be caught in Carolina, he would be **HANGED**. But, as the Slaveholders could not destroy the lives of the Abolitionists, they determined to murder their characters. Hence, the President of the United States was induced, in his Message of 1835, to Congress, to charge them with plotting the massacre of the Southern planters; and even to stultify himself, by affirming that, for this purpose, they were engaged in sending, by *mail*, inflammatory appeals to the *slaves*—sending papers to men who could not read them, and by a conveyance through which they could not receive them! He well knew that the papers alluded to were appeals on the immorality of converting men, women, and children, into beasts of burden, and were sent to the masters, for *their* consideration. The masters in Charleston, dreading the moral influence of these appeals on the conscience of the slaveholding community, forced the Post Office, and made a bonfire of the papers. The Post Master General, with the sanction of the President, also hastened to their relief, and, in violation of oaths, and laws, and the constitution, established ten thousand censors of the press, each one of whom was authorized to abstract from the mail every paper which *he* might think too favorable to the rights of man.

For more than twenty years, petitions have been presented to Congress, for the abolition of slavery in the District of Columbia. The right to present them, and the power of Congress to grant their prayer, were, until recently, unquestioned. But the rapid multiplication of these petitions alarmed the slaveholders, and, knowing that they tended to keep alive at the North, an interest in the slave, they deemed it good policy to discourage and, if possible, suppress all such applications. Hence Mr. Pinckney's famous resolution, in 1836, declaring, "that all petitions, or papers, relating *in any way, or to any extent* whatever to the *subject of slavery*, shall, without being

printed or referred, be laid on the table; and no further action, whatever shall be had thereon!"

The peculiar atrocity of this resolution was, that it not merely trampled upon the rights of the petitioners, but took from each member of the House his undoubted privilege, as a legislator of the District, to introduce any proposition he might think proper, for the protection of the slaves. In every Slave State there are laws affording, at least, some nominal protection to these unhappy beings; but, according to this resolution, slaves might be flayed alive in the streets of Washington, and no representative of the people could offer even a resolution for inquiry. And this vile outrage upon constitutional liberty was avowedly perpetrated "to repress agitation, to allay excitement, and re-establish harmony and tranquillity among the various sections of the Union!!"

But this strange opiate did not produce the stupefying effects anticipated from it. In 1836, the petitioners were only 37,000—the next session they numbered 110,000. Mr. Hawes, of Ky., now essayed to restore tranquillity, by gagging the uneasy multitude; but, alas! at the next Congress, more than 300,000 petitioners carried new terror to the hearts of the slaveholders. The next anodyne was prescribed by Mr. Patton, of Va., but its effect was to rouse from their stupor some of the Northern Legislatures, and to induce them to denounce his remedy as "a usurpation of power, a violation of the Constitution, subversive of the fundamental principles of the government, and at war with the prerogatives of the people." [\[105\]](#) It was now supposed that the people must be drugged by a *northern* man, and *Atherton* was found a fit instrument for this vile purpose; but the dose proved only the more nauseous and exciting from the foul hands by which it was administered.

[Footnote [105](#): Resolutions of Massachusetts and Connecticut, April and May, 1838.]

In these various outrages, although all action on the petitions was prohibited, the papers themselves were received and laid on the table, and *therefore* it was contended, that the right of petition had been preserved inviolate. But the slaveholders, maddened by the failure of all their devices,

and fearing the influence which the mere sight of thousands and tens of thousands of petitions in behalf of liberty, would exert, and, taking advantage of the approaching presidential election to operate upon the selfishness of some northern members, have succeeded in crushing the right of petition itself.

That you may be the more sensible, fellow citizens, of the exceeding profligacy of the late **RULE** and of its palpable violation of both the spirit and the letter of the Constitution, which those who voted for it had sworn to support, suffer us to recall to your recollection a few historical facts.

The framers of the Federal Constitution supposed the right of petition too firmly established in the habits and affections of the people, to need a constitutional guarantee. Their omission to notice it, roused the jealousy of some of the State conventions, called to pass upon the constitution. The *Virginia* convention proposed, as an amendment, "that every *freeman* has a right to petition, or apply to the Legislature, for a redress of grievances." And this amendment, with others, was ordered to be forwarded to the different States, for their consideration. The Conventions of North Carolina, New York, and Rhode Island, were held subsequently, and, of course, had before them the Virginia amendment. The North Carolina Convention adopted a declaration of rights, embracing the very words of the proposed amendment; and this declaration was ordered to be submitted to Congress, before that State would enter the Union. The Conventions of New York and of Rhode Island incorporated in their *certificates of ratification*, the assertion that "Every *person* has a right to petition or apply to the legislature for a redress of grievances"—using the Virginia phraseology, merely substituting the word *person* for *freeman*, thus claiming the right of petition even for slaves; while Virginia and North Carolina confined it to freemen.

The first Congress, assembled under the Constitution, gave effect to the wishes thus emphatically expressed, by proposing, as an amendment, that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof, or *abridging* the freedom of the press, or the right of the people peaceably to assemble, and *to petition Government* for a redress of grievances." This amendment was duly ratified by the States, and when members of Congress swear to support the

Constitution of the United States, they are as much bound by their oath to refrain from abridging the right of petition, as they are to fulfil any other constitutional obligation. And will the slaveholders and their abettors, dare to maintain that they have not foresworn themselves, because they have abridged the right of the people to petition for a redress of grievances, by a **RULE** of the House, and not by a *law*? If so, they may by a **RULE** require every member, on taking his seat, to subscribe the creed of a particular church, and then call their Maker to witness that they are guiltless of making a *law* "respecting an establishment of religion, or prohibiting the free exercise thereof."

The right to petition is one thing, and the disposition of a petition after it is received, is another. But the new rule makes no disposition of the petitions; it **PROHIBITS THEIR RECEPTION**; they may not be brought into the legislative chamber. Hundreds of thousands of the people are debarred all access to their representatives, for the purpose of offering them a prayer.

It is said that the manifold abominations perpetrated in the District are no grievances to the petitioners, and *therefore* they have no right to ask for their removal. But the right guaranteed by the Constitution, is a right to ask for the redress of *grievances*, whether personal, social, or moral. And who, except a slaveholder, will dare to contend that it is no grievance that our agents, our representatives, our servants, in our name and by our authority, enact laws erecting and licensing markets in the Capital of the Republic, for the sale of human beings, and converting free men into slaves, for no other crime, than that of being too poor to pay United States' officers the **JAIL FEES** accruing from an iniquitous imprisonment?

Again, it is pretended that the objects prayed for, are palpably unconstitutional, and that *therefore* the petitions ought not to be received. And by what authority are the people deprived of their right to petition for any object which a majority of either House of Congress, for the time being, may please to regard as unconstitutional? If this usurpation be submitted to, it will not be confined to abolition petitions. It is well known that most of the slaveholders *now* insist, that all protecting duties are unconstitutional, and that on account of the tariff the Union was nearly rent by the very men who are now horrified by the danger to which it is exposed by these *petitions*! Should our Northern Manufacturers again presume to ask

Congress to protect them from foreign competition, the Southern members will find a precedent, sanctioned by Northern votes, for a rule that "no petition, memorial, resolution, or other paper, praying for the **IMPOSITION OF DUTIES FOR THE ENCOURAGEMENT OF MANUFACTURES**, shall be received by the House, or entertained in any way whatever."

It does indeed, require Southern arrogance, to maintain that, although Congress is invested by the Constitution with "exclusive jurisdiction, in all cases whatsoever," over the District of Columbia, yet that it would be so palpably unconstitutional to abolish the slave-trade, and to emancipate the slaves in the District, that petitions for these objects ought not to be received. Yet this is asserted in that very House, on whose minutes is recorded a resolution, in 1816, appointing a committee, with power to send for persons and papers, "to inquire into the existence of an inhuman and illegal traffic in slaves, carried on, in and through the District of Columbia, and report whether any, and what means are necessary for putting a stop to the same:" and another, in 1829, instructing the Committee on the District of Columbia to inquire into the expediency of providing by law, "for the gradual abolition of slavery in the District."

In the very first Congress assembled under the Federal Constitution, petitions were presented, asking its interposition for the mitigation of the evils, and final abolition of the African slave-trade, and also praying it, as far as it possessed the power, to take measures for the abolition of slavery. These petitions excited the wrath and indignation of many of the slave-holding members, yet no one thought of refusing to receive them. They were referred to a select committee, at the instance of Mr. Madison, himself, who "entered into a critical review of the circumstances respecting the adoption of the Constitution, and the ideas upon the limitation of the powers of Congress to interfere in the regulation of the commerce of slaves, and showed that they undoubtedly were not precluded from interposing in their importation; and generally to regulate the mode in which every species of business shall be transacted. He adverted to the western country, and the Cession of Georgia, in which Congress have certainly the power to *regulate the subject of slavery*; which shows that gentlemen are mistaken in supposing, that Congress cannot constitutionally interfere in the business, in any degree, whatever. He was in favor of committing the petition, and

justified the measure by repeated precedents in the proceedings of the House."—*U.S. Gazette*, 17th Feb., 1790.

Here we find one of the earliest and ablest expounders of the Constitution, maintaining the power of Congress to "regulate the subject of slavery" in the national territories, and urging the reference of abolition petitions to a special committee.

The committee made a report; for which, after a long debate, was substituted a declaration, by the House, that Congress could not abolish the slave trade prior to the year 1808, but had a right so to regulate it as to provide for the humane treatment of the slaves on the passage; and that Congress could not interfere in the emancipation or treatment of slaves in the *States*.

This declaration gave entire satisfaction, and no farther abolition petitions were presented, till after the District of Columbia had been placed under the "exclusive jurisdiction" of the General Government.

You all remember, fellow citizens, the wide-spread excitement which a few years since prevailed on the subject of SUNDAY MAILS. Instead of attempting to quiet the agitation, by outraging the rights of the petitioners, Congress referred the petitions to a committee, and made no attempt to stifle discussion.

Why, then, we ask, with such authorities and precedents before them, do the slaveholders in Congress, regardless of their oaths, strive to gag the friends of freedom, under *pretence* of allaying agitation? Because conscience does make cowards of them all—because they know the accursed system they are upholding will not bear the light—because they fear, if these petitions are discussed, the abominations of the American slave trade, the secrets of the prison-houses in Washington and Alexandria, and the horrors of the human shambles licensed by the authority of Congress, will be exposed to the score and indignation of the civilized world.

Unquestionably the late **RULE** surpasses, in its profligate contempt of constitutional obligation, any act in the annals of the Federal Government. As such it might well strike every patriot with dismay, were it not that attending circumstances teach us that it is the expiring effort of desperation.

When we reflect on the past subserviency of our northern representatives to the mandates of the slaveholders, we may well raise, on the present occasion, the shout of triumph, and hail the vote on the recent **RULE** as the pledge of a glorious victory. Suffer us to recall to your recollection the majorities by which the successive attempts to crush the right of petition and the freedom of debate have been carried.

Pinckney's Gag was passed May, 1836, by a majority of 51

Hawes's do.	Jan. 1837,	58
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Patton's do.	Dec. 1837,	48
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Atherton's do.	Dec. 1838,	48
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JOHNSON's do.	Jan. 1840,	6
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Surely, when we find the majority against us reduced from 58 to 6, we need no new incentive to perseverance.

Another circumstance which marks the progress of constitutional liberty, is the gradual diminution in the number of our northern *serviles*. The votes from the free States in favor of the several gags were as follows:—

For Pinckney's 62

For Hawes's 70

For Patton's 52

For Atherton's 49

For JOHNSON's 28

There is also another cheering fact connected with the passage of the **RULE** which deserves to be noticed. Heretofore the slaveholders have uniformly, by enforcing the previous question, imposed their several gags by a silent vote. On the present occasion they were twice baffled in their efforts to stifle debate, and were, for days together, compelled to listen to speeches on a subject which they have so often declared should not be discussed.

A base strife for southern votes has hitherto, to no small extent, enlisted both the political parties at the north in the service of the slaveholders. The late unwonted independence of northern politicians, and the deference paid

by them to the wishes of their own constituents, in preference to those of their southern colleagues, indicates the advance of public opinion. No less than 49 northern members of the administration party voted for the Atherton gag, while only 27 dared to record their names in favor of Johnson's; and of the representation of **SIX** States, *every vote* was given *against* the rule, without distinction of party. The tone in which opposite political journals denounce the late outrage may warn the slaveholders that they will not much longer hold the north in bonds. The leading administration paper in the city of New York regards the **RULE** with "utter abhorrence;" while the official paper of the opposition, edited by the state printer, trusts that the names of the recreant northerners who voted for it may be "handed down to eternal infamy and execration."

The advocates of abolition are no longer consigned to unmitigated contempt and obloquy. Passing by the various living illustrations of our remark, we appeal for our proofs to the dead. The late WILLIAM LEGGETT, the editor of a Democratic Journal in the city of New York, was denounced, in 1835, by the "Democratic Republican General Committee," for his abolition doctrines. Far from faltering in his course, on account of the censure of his own party, he exclaimed, with a presentiment almost amounting to prophecy, "The stream of public opinion now sets against us, but it is about to turn, and the regurgitation will be tremendous. Proud in that day may well be the man who can float in triumph on the first reflux wave, swept onward by the deluge which he himself, in advance of his fellows, had largely shared in occasioning. Such be my fate; and, living or dying, it will in some measure be mine. I have written my name in ineffaceable letters on the abolition record." And he did live to behold the first swelling of the reflux wave. The denounced abolitionist was honored by a democratic President with a diplomatic mission; and since his death, the resolution condemning him has been **EXPUNGED** from the minutes of the democratic committee.

Of the many victims of the recent awful calamity in our waters, what name has been most frequently uttered by the pulpit and the press in the accents of lamentation and panegyric? On whose tomb have freedom, philanthropy, and letters been invoked to strew their funeral wreaths? All who have heard of the loss of the Lexington are familiar with the name of CHARLES FOLLEN. And who was he? One of the men officially denounced by

President Jackson as a gang of miscreants, plotting insurrection and murder—and, recently, a member of the Executive Committee of the American Anti-Slavery Society.

Let us then, fellow citizens, in view of all these things, thank God and take courage. We are now contending, not merely for the emancipation of our unhappy fellow men, kept in bondage under the authority of our own representatives—not merely for the overthrow of the human shambles erected by Congress on the national domain—but also for the preservation of those great constitutional rights which were acquired by our fathers, and are now assailed by the slaveholders and their northern auxiliaries. That you may remember these auxiliaries and avoid giving them new opportunities of betraying your rights, we annex a list of their dishonored names.

The following twenty-eight members from the Free States voted in the affirmative on the recent GAG RULE.

MAINE.

Virgil D. Parris

Albert Smith

NEW HAMPSHIRE.

Charles G. Atherton

Edmund Burke

Ira A. Eastman

Tristram Shaw

NEW YORK.

Nehemiah H. Earle

John Fine

Nathaniel Jones

Gouverneur Kemble

James de la Montayne

John H. Prentiss

Theron R. Strong

PENNSYLVANIA.

John Davis

Joseph Fornance
James Gerry
George M'Cullough
David Petriken
William S. Ramsey

OHIO.

D.P. Leadbetter
William Medill
Isaac Parrish
George Sweeney
Jonathan Taylor
John B. Weller

INDIANA.

John Davis
George H. Proffit

ILLINOIS.

John Reynolds

Let us turn to our more immediate representatives, and we trust more faithful servants. Our State Legislatures will not refuse to hear our prayers. Let us petition them immediately to rebuke the treason by which the Constitution has been surrendered into the hands of the slaveholders—let us implore them to demand from Congress, in the name of the free States, that they shall neither destroy nor abridge the right of petition—a right without which our government would be converted into a despotism.

We call on you, fellow citizens of every religious faith and party name, to unite with us in guarding the citadel of our country's freedom. If there are any who will not co-operate with us in laboring for the emancipation of the slave, surely there are none who will stand aloof from us while contending for the liberty of themselves, their children, and their children's children.

To the rescue, then, fellow citizens! and, trusting in HIM without whom all human effort is weakness, let us not doubt that our faithful endeavors to

preserve the rights HE has given us will, through HIS blessing, be crowned with success.

ARTHUR TAPPAN,
JAMES G. BIRNEY,
JOSHUA LEAVITT,
LEWIS TAPPAN,
SAMUEL E. CORNISH,
SIMEON S. JOCELYN,
LA ROY SUNDERLAND,
THEODORE S. WRIGHT,
DUNCAN DUNBAR,
JAMES S. GIBBONS,
HENRY B. STANTON

*Executive Committee
of the
American
Anti-Slavery Society.*

New York, February 13, 1840.

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